SUPPLEMENT NO. 40
VOLUMES I AND II
September 2026

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14374, enacted June 16, 2026.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:33	SH:33, SH:34
CD3:21—CD3:24	CD3:21—CD3:24
CD10:11—CD10:12.1	CD10:11—CD10:12.1
VOLUME II	
xv—xxvi	xv—xxvi
CD24:1—CD24:8	CD24:1—CD24:8
CD24:65—CD24:105	CD24:65—CD24:117
CD35:13, CD35:14	CD35:13—CD35:14.1
CD38:1—CD38:234	CD38:1—CD38:250
CCT:23	CCT:23

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 39
VOLUMES I AND II
May 2026

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14339, enacted March 17, 2026.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:31, SH:32	SH:31—SH:33
CD4:19—CD4:70	CD4:19—CD4:70.1
CD4:125—CD4:126	CD4:125—CD4:126
CD4:231, CD4:232	CD4:231, CD4:232
CD4:273—CD4:282	CD4:273—CD4:282
	VOLUME II
xv—xxvi	xv—xxvi
CD24:93—CD24:105	CD24:93—CD24:105
CD31:77—CD31:92.3	CD31:77—CD31:92.4
CD35:43—CD35:46	CD35:43—CD35:46
CD35:65—CD35:85	CD35:65—CD35:86
CD38:1—CD38:3	CD38:1—CD38:3
CD38:5—CD38:222	CD38:5—CD38:234
CCT:21, CCT:22	CCT:21—CCT:23

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 38
VOLUMES I AND II
January 2026

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14257, enacted July 29, 2025.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:31	SH:31, SH:32
CD3:1—CD3:44	CD3:1—CD3:88
CD7:1—CD7:5	CD7:1—CD7:5
CD7:31—CD7:36	CD7:31—CD7:36.3
CD10:12.1	CD10:12.1
CD11:67—CD11:70	CD11:67—CD11:70.1
VOLUME II	
xv—xxv	xv—xxvi
CD14:3, CD14:4	CD14:3, CD14:4
CD16:1—CD16:6	CD16:1—CD16:6.4
CD21:7—CD21:12	CD21:7—CD21:12
CD21:29—CD21:55	CD21:29—CD21:55
CD24:93—CD24:105	CD24:93—CD24:105
CD31:15—CD31:38.1	CD31:15—CD31:38.1
CD31:77—CD31:92.3	CD31:77—CD31:92.3
CD31:105, CD31:106	CD31:105, CD31:106
CD32:1—CD32:5	CD32:1—CD32:5
CD32:55—CD32:65	CD32:55—CD32:75
CD38:7, CD38:8	CD38:7—CD38:8.1
CD38:39—CD38:44	CD38:39—CD38:44
CD38:57—CD38:66	CD38:57—CD38:66.1
CD38:95—CD38:224	CD38:95—CD38:222
CCT:21	CCT:21, CCT:22

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 37
VOLUMES I AND II
April 2025

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14202, enacted February 28, 2025.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:29, SH:30	SH:29—SH:31
	VOLUME II
xv—xxv	xv—xxv
CD25:1—CD25:14.2	CD25:1—CD25:14.6
CD38:35—CD38:56	CD38:35—CD38:56.1
CD38:95—CD38:150	CD38:95—CD38:150.2
CD38:185—CD38:223	CD38:185—CD38:224
CCT:19, CCT:20	CCT:19—CCT:21

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 36
VOLUMES I AND II
March 2025

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14167(7), enacted November 5, 2024.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 14168, enacted November 12, 2024.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:29	SH:29, SH:30
CHT3:3, CHT3:4	CHT3:3, CHT3:4
CHTA:31, CHTA:32	CHTA:31, CHTA:32
CD2:19—CD2:22.1	CD2:19—CD2:22.1
CD4:1—CD4:272	CD4:1—CD4:282
CD5:1—CD5:36	CD5:1—CD5:39
CD10:3—CD10:12	CD10:3—CD10:12.1
	VOLUME II
xv—xxvi	xv—xxv
CD16:3, CD16:4	CD16:3—CD16:4.1
CD23:3—CD23:7	CD23:3—CD23:7
CD24:55—CD24:64	CD24:55—CD24:64.1
CD24:101—CD24:105	CD24:101—CD24:105
CD31:15—CD31:22	CD31:15—CD31:22
CD31:81—CD31:82.2	CD31:81—CD31:82.2
CD38:1—CD38:228	CD38:1—CD38:223
CCT:19	CCT:19, CCT:20

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 35
VOLUMES I AND II
August 2024

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14101, enacted April 9, 2024.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 13192, enacted July 11, 2017. The Charter is current through Ordinance No. 13555, enacted May 19, 2020.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
SH:27, SH:28	SH:27—SH:29
CHT3:1—CHT3:10	CHT3:1—CHT3:10
CHT8:1—CHT8:9	CHT8:1—CHT8:9
CHTA:1—CHTA:31	CHTA:1—CHTA:32
CD2:116.1—CD2:155	CD2:117—CD2:153
CD5:1—CD5:33	CD5:1—CD5:36
CD10:1—CD10:47	CD10:1—CD10:47
VOLUME II	
xv—xxvi	xv—xxvi
CD21:45—CD21:55	CD21:45—CD21:55
CD26:9—CD26:22	CD26:9—CD26:23
CD32:1—CD32:18	CD32:1—CD32:18.3
CD32:36.1—CD32:56	CD32:37—CD32:65
CD35:29—CD35:46	CD35:29—CD35:46
CD38:1—CD38:50	CD38:1—CD38:50.20
CD38:172.1—CD38:198	CD38:173—CD38:198.11

Remove Old Pages	*Insert New Pages*
CCT:19	CCT:19

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 34
VOLUMES I AND II
January 2024

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14038, enacted October 3, 2023.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:27	SH:27, SH:28
VOLUME II	
xv—xxvi	xv—xxvi
CD21:15, CD21:16	CD21:15—CD21:16.1
CD26:1, CD26:2	CD26:1, CD26:2
CD26:19—CD26:22	CD26:19—CD26:22
CCT:19	CCT:19

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 33
VOLUMES I AND II
November 2023

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14022, enacted August 29, 2023.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:25, SH:26	SH:25—SH:27
CD2:33, CD2:34	CD2:33, CD2:34
CD2:39—CD2:42	CD2:39—CD2:42
CD2:51, CD2:52	CD2:51—CD2:52.1
VOLUME II	
CD38:1—CD38:8	CD38:1—CD38:8
CD38:22.1—CD38:26.3	CD38:23—CD38:26.3
CD38:45, CD38:46	CD38:45, CD38:46
CD38:139—CD38:140.4	CD38:139—CD38:140.4.1
CD38:195, CD38:196	CD38:195, CD38:196
CCT:17, CCT:18	CCT:17—CCT:19

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 32
VOLUMES I AND II
September 2023

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 14000, enacted July 11, 2023.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:25, SH:26	SH:25, SH:26
CD4:3—CD4:18	CD4:3—CD4:18.2
CD4:31, CD4:32	CD4:31—CD4:32.1
CD4:41—CD4:44.1	CD4:41—CD4:44.1
CD4:51—CD4:66.1	CD4:51—CD4:66.1
CD4:72.1—CD4:90	CD4:72.1—CD4:90
CD4:99—CD4:104	CD4:99—CD4:104.2
CD4:113—CD4:124	CD4:113—CD4:124.1
CD4:131—CD4:134	CD4:131—CD4:134.1
CD4:147, CD4:148	CD4:147, CD4:148
CD4:155, CD4:156	CD4:155, CD4:156
CD4:163—CD4:168	CD4:163—CD4:168.1
CD4:217—CD4:244	CD4:217—CD4:244.1
CD4:257—CD4:260	CD4:257—CD4:260
CD4:269—CD4:271	CD4:269—CD4:272
CD5:5, CD5:6	CD5:5, CD5:6
CD10:1	CD10:1, CD10:2
CD10:19—CD10:24	CD10:19—CD10:24.1
CD10:39, CD10:40	CD10:39—CD10:47
CD11:6.1	CD11:6.1
CD11:77—CD11:84.1	CD11:77—CD11:79
	VOLUME II
xv—xxvi	xv—xxvi
CD17:1	CD17:1

Remove Old Pages	*Insert New Pages*
CD17:3, CD17:4	CD17:3—CD17:4.1
CD17:9, CD17:10	CD17:9—CD17:11
CD21:29—CD21:32.1	CD21:29—CD21:32
CD25:1, CD25:2	CD25:1, CD25:2
CD25:27—CD25:29	CD25:27—CD25:30
CD38:1—CD38:10	CD38:1—CD38:10
CD38:139, CD38:140	CD38:139—CD38:140.7
CCT:17, CCT:18	CCT:17, CCT:18

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 31
VOLUMES I AND II
March 2023

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13931, enacted December 20, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:25	SH:25, SH:26
CD10:3—CD10:14.1	CD10:3—CD10:13
CD10:39, CD10:40	CD10:39, CD10:40
CD11:6.1	CD11:6.1
CD11:83, CD11:84	CD11:83, CD11:84
	VOLUME II
xv—xxvi	xv—xxvi
CD14:5, CD14:6	CD14:5, CD14:6
CD17:1—CD17:6.1	CD17:1—CD17:6
CD19:3—CD19:8	CD19:3—CD19:8
CD22.5:3—CD22.5:6	CD22.5:3—CD22.5:6
CD26:1, CD26:2	CD26:1, CD26:2
CD26:8.1—CD26:28	CD26:9—CD26:22
CD27:3—CD27:6.1	CD27:3—CD27:6
CD31:7—CD31:10	CD31:7—CD31:10
CD35:43—CD35:46	CD35:43—CD35:46
CCT:17, CCT:18	CCT:17, CCT:18

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 30
VOLUMES I AND II
December 2022

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13909, enacted November 8, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:23, SH:24	SH:23—SH:25
CD2:7, CD2:8	CD2:7, CD2:8
CD2:141—CD2:144	CD2:141—CD2:144
CD11:87—CD11:89	CD11:87—CD11:89
VOLUME II	
xv—xxvi	xv—xxvi
CD31:7—CD31:12.1	CD31:7—CD31:12.1
CD38:7—CD38:10	CD38:7—CD38:10
CD38:48.1, CD38:48.2	CD38:48.1, CD38:48.2
CD38:155—CD38:158	CD38:155, CD38:156
CCT:17	CCT:17, CCT:18

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 29
VOLUMES I AND II
September 2022

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13882, enacted August 16, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv--xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:23	SH:23, SH:24
CD2:5—CD2:8	CD2:5—CD2:8
CD2:29, CD2:30	CD2:29, CD2:30
CD2:121, CD2:122	CD2:121, CD2:122
CD2:153	CD2:153—CD2:155
CD9:3—CD9:6	CD9:3—CD9:7
CD11:17—CD11:22	CD11:17—CD11:22
VOLUME II	
xv—xxvi	xv—xxvi
CD16:11—CD16:14.2	CD16:11—CD16:14.2
CD26:11—CD26:14	CD26:11—CD26:14
CD31:5	CD31:5
CD31:15—CD31:22	CD31:15—CD31:22
CD31:81, CD31:82	CD31:81. CD31:82
CD31:105, CD31:106	CD31:105—CD31:106
CD31:109, CD31:110	CD31:109, CD31:110
CD38:1—CD38:10	CD38:1—CD38:10
CD38:45, CD38:46	CD38:45, CD38:46
CD38:91—CD38:94.1	CD38:91—CD38:94
CD38:101—CD38;104.2	CD38:101—CD38:104.1
CD38:225	CD38:225—CD38:228
CCT:17	CCT:17

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 28
VOLUMES I AND II
June 2022

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13811, enacted April 19, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:21, SH:22	SH:21—SH:23
CD2:5, CD2:6	CD2:5, CD2:6
CD2:133—CD2:136	CD2:133—CD2:136.1
CD11:6.1	CD11:6.1
CD11:83—CD11:84.1	CD11:83—CD11:84.1
	VOLUME II
xv—xxvi	xv—xxvi
CD38:2.1—CD38:6	CD38:3—CD38:6.1
CD38:90.1—CD38:94	CD38:91—CD38:94.1
CD38:200.1—CD38:204	CD38:201—CD38:204.1
	CCT:17

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 27
VOLUMES I AND II
March 2022

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13778, enacted January 18, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:21	SH:21, SH:22
	VOLUME II
CD38:59—CD38:64.1	CD38:59—CD38:64.1
CCT:1, CCT:2	CCT:1, CCT:2
CCT:15, CCT:16	CCT:15, CCT:16

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 26
VOLUMES I AND II
January 2022

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13743, enacted November 16, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Title Page	Title Page
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19, SH:20	SH:19—SH:21
CD2:3—CD2:8	CD2:3—CD2:8
CD2:29, CD2:30	CD2:29—CD2:30.1
CD12:5, CD12:6	CD12:5, CD12:6
VOLUME II	
Title Page	Title Page
xv—xxvi	xv—xxvi
CD25:1—CD25:6	CD25:1—CD25:6.1
CD31:15—CD31:22	CD31:15—CD31:22
CD31:81, CD31:82	CD31:81, CD31:82
CD31:105, CD31:106	CD31:105, CD31:106
CD38:1, CD38:2	CD38:1—CD38:2.1
CD38:41, CD38:42	CD38:41, CD38:42
CD38:42.3, CD38:42.4	CD38:42.3, CD38:42.4
CD38:42.11, CD38:42.12	CD38:42.11, CD38:42.12
CD38:42.15, CD38:42.16	CD38:42.15, CD38:42.16
CD38:44.1—CD38:48.1	CD38:45—CD38:48.2
CD38:57, CD38:58	CD38:57, CD38:58
CD38:159—CD38:162	CD38:159—CD38:162
CCT:15, CCT:16	CCT:15, CCT:16

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 25
VOLUMES I AND II
October 2021

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13702, enacted August 17, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19, SH:20	SH:19, SH:20
CD12:9	CD12:9
	VOLUME II
xv—xxvi	xv—xxvi
CD14:9—CD14:14	CD14:9—CD14:14.1
CD24:9—CD24:14	CD24:9—CD24:14.1
CD24:93—CD24:98	CD24:93—CD24:98
CD38:5—CD38:10	CD38:5—CD38:10
CD38:95—CD38:98	CD38:95—CD38:98.4
CCT:15, CCT:16	CCT:15, CCT:16

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 24
VOLUMES I AND II
June 2021

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13676, enacted May 25, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19	SH:19, SH:20
CD2:11—CD2:14	CD2:11—CD2:14.1
CD2:115, CD2:116	CD2:115—CD2:116.1
CD2:123, CD2:124	CD2:123—CD2:124.1
VOLUME II	
xv—xxvi	xv—xxvi
CD24:93—CD24:98	CD24:93—CD24:98.1
CD31:3—CD31:5	CD31:3—CD31:5
CD31:91, CD31:92	CD31:91—CD31:92.3
CD31:105—CD31:108.1	CD31:105—CD31:108.1
CD31:113, CD31:114	CD31:113—CD31:114.1
CCT:15, CCT:16	CCT:15, CCT:16

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 23
VOLUMES I AND II
April 2021

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13639, enacted January 12, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19	SH:19
	VOLUME II
xv—xxvi	xv—xxvi
CD21:29—CD21:32	CD21:29—CD21:32.1
CCT:15, CCT:16	CCT:15, CCT:16

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 22
VOLUMES I AND II
December 2020

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13613, enacted October 27, 2020.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 13555, enacted May 19, 2020.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:17	SH:17—SH:19
CHT13:1, CHT13:2	CHT13:1, CHT13:2
CHT13:5—CHT13:7	CHT13:5—CHT13:8
CHTA:31	CHTA:31
VOLUME II	
xv—xxvi	xv—xxvi
CD16:11—CD16:14.6	CD16:11—CD16:14.6
CD26:7—CD26:8.2	CD26:7—CD26:8.2
CD26:24.1—CD26:27	CD26:25—CD26:28
CD31:15—CD31:22	CD31:15—CD31:22
CD31:79—CD31:82	CD31:79—CD31:82
CD31:105, CD31:106	CD31:105, CD31:106
CD38:3, CD38:4	CD38:3, CD38:4
CD38:15—CD38:16.1	CD38:15—CD38:16.1
CD38:26.1—CD38:26.3	CD38:26.1—CD38:26.3
CD38:57—CD38:64.1	CD38:57—CD38:64.1
CCT:15	CCT:15, CCT:16

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 21
VOLUMES I AND II
June 2020

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13541, enacted March 10, 2020.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:17	SH:17
CD3:5—CD3:8	CD3:5—CD3:8
VOLUME II	
xv—xxvi	xv—xxvi
CCT:15	CCT:15

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 20
VOLUMES I AND II
April 2020

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13533, enacted February 4, 2020.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:15, SH:16	SH:15—SH:17
CD2:51—CD2:56	CD2:51—CD2:56
CD2:61, CD2:62	CD2:61, CD2:62
CD5:1, CD5:2	CD5:1, CD5:2
CD5:10.1—CD5:20.1	CD5:11—CD5:20.2
CD11:77—CD11:84	CD11:77—CD11:84.1
	VOLUME II
xv—xxvi	xv—xxvi
CD24:91—CD24:98	CD24:91—CD24:98
CD24:103—CD24:105	CD24:103—CD24:105
CD38:3, CD38:4	CD38:3, CD38:4
CD38:62.1—CD38:64	CD38:63—CD38:64.1
CCT:15	CCT:15

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 19
VOLUMES I AND II
December 2019

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13507, enacted October 22, 2019.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:15, SH:16	SH:15, SH:16
CD9:3, CD9:4	CD9:3, CD9:4
CD11:77—CD11:80	CD11:77—CD11:80
CD11:87—CD11:89	CD11:87—CD11:89
VOLUME II	
xv—xxvi	xv—xxvi
CD19:9, CD19:10	CD19:9, CD19:10
CD24:1, CD24:2	CD24:1—CD24:2.1
CD24:27—CD24:30.2	CD24:27—CD24:30.2
CD27:9, CD27:10	CD27:9—CD27:10.1
CCT:15	CCT:15

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 18
VOLUMES I AND II
September 2019

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13496, enacted August 27, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:15	SH:15, SH:16
CD11:6.1	CD11:6.1
CD11:79—CD11:80.1	CD11:79—CD11:80.1
CD11:83	CD11:83—CD11:89
	VOLUME II
xv—xxvi	xv—xxvi
CD24:7, CD24:8	CD24:7, CD24:8
CD24:103, CD24:104	CD24:103—CD24:105
CD31:15—CD31:22	CD31:15—CD31:22
CD31:67, CD31:68	CD31:67, CD31:68
CD31:73, CD31:74	CD31:73, CD31:74
CD31:79—CD31:82.1	CD31:79—CD31:82.2
CD31:105—CD31:108.1	CD31:105—CD31:108.1
CD38:5—CD38:12	CD38:5—CD38:12.1
CD38:21, CD38:22	CD38:21—CD38:22.1
CD38:26.1—CD38:26.3	CD38:26.1—CD38:26.3
CD38:85—CD38:86.1	CD38:85—CD38:86.1
CD38:113—CD38:122.1	CD38:113—CD38:122
CD38:139—CD38:142.2	CD38:139—CD38:142.2
CCT:13, CCT:14	CCT:13—CCT:15

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 17
VOLUMES I AND II
June 2019

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13466, enacted June 4, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxv	xv—xxvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:15	SH:15
CD2:15, CD2:16	CD2:15, CD2:16
CD3:31—CD3:34	CD3:31—CD3:34
CD4:71, CD4:72	CD4:71—CD4:72.1
CD4:221, CD4:222	CD4:221, CD4:222
CD5:1, CD5:2	CD5:1, CD5:2
CD5:19, CD5:20	CD5:19, CD5:20
CD11:79, CD11:80	CD11:79—CD11:80.1
	VOLUME II
xv—xxv	xv—xxvi
CD16:1, CD16:2	CD16:1—CD16:2.1
CD16:11—CD16:14	CD16:11—CD16:14.6
CD18:1—CD18:3	CD18:1—CD18:3
CD18:23—CD18:30	CD18:23—CD18:28
CD21:1—CD21:3	CD21:1—CD21:4
CD21:5—CD21:49	CD21:5—CD21:55
CD24:1, CD24:2	CD24:1, CD24:2
CD24:13—CD24:18	CD24:13—CD24:18.1
CD24:95—CD24:100	CD24:95—CD24:100
CD26:1, CD26:2	CD26:1, CD26:2
CD26:7, CD26:8	CD26:7—CD26:8.2
CD32:13, CD32:14	CD32:13, CD32:14
CD35:7, CD35:8	CD35:7—CD35:8.1
CD35:71, CD35:72	CD35:71—CD35:72.1

Remove Old Pages	*Insert New Pages*
CD38:3—CD38:10	CD38:3—CD38:10
CD38:13—CD38:16.1	CD38:13—CD38:16.1
CD38:26.3	CD38:26.3
CD38:66.1—CD38:68	CD38:67—CD38:68.1
CD38:85, CD38:86	CD38:85—CD38:86.1
CD38:115, CD38:116	CD38:115, CD38:116
CD38:171—CD38:172.1	CD38:171—CD38:172.3
CCT:13	CCT:13, CCT:14

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 16
VOLUMES I AND II
March 2019

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13414, enacted January 8, 2019.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 13344, enacted August 7, 2018.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:13, SH:14	SH:13—SH:15
CHT4:1—CHT4:9	CHT4:1—CHT4:7
CHTA:31	CHTA:31
CD2:3, CD2:4	CD2:3, CD2:4
CD2:51— CD2:62.2	CD2:51—CD2:62.3
VOLUME II	
xv—xxv	xv—xxv
CD38:15, CD38:16	CD38:15—CD38:16.1
CD38:26.3	CD38:26.3
CD38:161, CD38:162	CD38:161, CD38:162
CD38:177—CD38:178.1	CD38:177—CD38:178.1
CD38:195, CD38:196	CD38:195, CD38:196
CCT:13	CCT:13

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 15, REVISION
VOLUMES I AND II
December 2018

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement No. 15, Revision, is printed to revise pages appearing in Supplement No. 15, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xxiii—xxv	xxiii—xxv
	VOLUME II
xxiii—xxv	xxiii—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD35:1	CD35:1—CD35:5 CD35:7—CD35:85
CCT:13	CCT:13

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 15
VOLUMES I AND II
December 2018

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13395, enacted November 20, 2018.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:13	SH:13, SH:14
CD1:1	CD1:1
CD1:5, CD1:6	CD1:5, CD1:6
CD2:1—CD2:6	CD2:1—CD2:6
CD2:11—CD2:14	CD2:11—CD2:14
CD2:135, CD2:136	CD2:135, CD2:136
CD6:1—CD6:10	CD6:1
	CD6:3—CD6:6
CD10:5—CD10:8.1	CD10:5—CD10:8.1
CD10:13, CD10:14	CD10:13, CD10:14
CD10:39, CD10:40	CD10:39, CD10:40
CD11:1, CD11:2	CD11:1—CD11:2.1
CD11:11—CD11:14	CD11:11—CD11:14
CD11:67—CD11:72	CD11:67—CD11:72
CD12:1	CD12:1
CD12:3—CD12:6	CD12:3—CD12:6
VOLUME II	
xv—xxv	xv—xxv
CD14:1—CD14:4	CD14:1—CD14:4
CD16:1, CD16:2	CD16:1, CD16:2
CD16:5—CD16:12	CD16:5—CD16:12.1
CD18:1—CD18:3	CD18:1—CD18:3
CD18:5—CD18:31	CD18:5—CD18:31
CD20:1, CD20:2	CD20:1, CD20:2

Remove Old Pages	*Insert New Pages*
CD20:5, CD20:6	CD20:5, CD20:6
CD24:1—CD24:8	CD24:1—CD24:8
CD24:17, CD24:18	CD24:17, CD24:18
CD24:29, CD24:30	CD24:29—CD24:30.2
CD24:81, CD24:82	CD24:81—CD24:82.4
CD25:1, CD25:2	CD25:1, CD25:2
CD25:5, CD25:6	CD25:5, CD25:6
CD26:1, CD26:2	CD26:1, CD26:2
CD26:7, CD26:8	CD26:7, CD26:8
CD26:23, CD26:24	CD26:23—CD26:24.1
CD28:1	CD28:1
CD28:3	
CD31:105—CD31:108	CD31:105—CD31:108.1
CD35:1—CD35:90	CD35:1
CD38:2.1—CD38:6	CD38:3—CD38:6.1
CD38:11—CD38:26.1	CD38:11—CD38:26.3
CD38:85—CD38:90	CD38:85—CD38:90.1
CD38:101—CD38:104	CD38:101—CD38:104.2
CCT:11, CCT:12	CCT:11—CCT:13

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 14
VOLUMES I AND II
September 2018

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13348, enacted August 14, 2018.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11—SH:13
CD2:3—CD2:8	CD2:3—CD2:8
CD2:48.1—CD2:62	CD2:49— CD2:62.2
CD2:126.1—CD2:130	CD2:127, CD2:128
CD11:43—CD11:46	CD11:43—CD11:46
VOLUME II	
xv—xxv	xv—xxv
CD20:1, CD20:2	CD20:1—CD20:2.1
CD20:13—CD20:16	CD20:13—CD20:19
CD26:1, CD26:2	CD26:1, CD26:2
CD26:15—CD26:22	CD26:15—CD26:22
CD31:15—CD31:22	CD31:15—CD31:22
CD31:81, CD31:82	CD31:81—CD31:82.1
CD31:105, CD31:106	CD31:105, CD31:106
CD38:65, CD38:66	CD38:65—CD38:66.1
CD38:159—CD38:162.1	CD38:159—CD38:162.1
CCT:3—CCT:6	CCT:3—CCT:6
CCT:11	CCT:11, CCT:12

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 13
VOLUMES I AND II
June 2018

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13302, enacted April 17, 2018.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11, SH:12
CD11:69, CD11:70	CD11:69—CD11:70.1
VOLUME II	
xv—xxv	xv—xxv
CD25:11—CD25:14	CD25:11—CD25:14.2
CD38:1, CD38:2	CD38:1—CD38:2.1
CD38:33—CD38:42	CD38:33—CD38:42.16
CD38:54.1—CD38:62	CD38:55—CD38:62.1
CCT:11	CCT:11

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 12
VOLUMES I AND II
April 2018

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13286, enacted March 6, 2018.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9—SH:11
CD2:3—CD2:6	CD2:3—CD2:6
CD2:15, CD2:16	CD2:15, CD2:16
CD2:47, CD2:48	CD2:47—CD2:48.2
CD9:1	CD9:1
CD9:3, CD9:4	CD9:3—CD9:6
CD11:77—CD11:83	CD11:77—CD11:83
VOLUME II	
xv—xxv	xv—xxv
CD22:1	CD22:1
CD22:3, CD22:4	CD22:3—CD22:5
CD31:1—CD31:5	CD31:1—CD31:5
CD31:11, CD31:12	CD31:11—CD31:12.1
CD31:64.5—CD31:112	CD31:65—CD31:115
CD32:1—CD32:5	CD32:1—CD32:5
CD32:9—CD32:16	CD32:9—CD32:16.2
CD32:29—CD32:36	CD32:29—CD32:36.10
CD38:5—CD38:10	CD38:5—CD38:10
CD38:23—CD38:26	CD38:23—CD38:26.1
CD38:44.1	CD38:44.1
CD38:73, CD38:74	CD38:73, CD38:74
CD38:93, CD38:94	CD38:93, CD38:94
CD38:104.1—CD38:112	CD38:105—CD38:107
CD38:171, CD38:172	CD38:171—CD38:172.1

Remove Old Pages	*Insert New Pages*
CD38:177—CD38:178.1	CD38:177—CD38:178.1
CD38:195—CD38:196.1	CD38:195—CD38:196.1
CCT:1—CCT:9	CCT:1—CCT:11

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 11
VOLUMES I AND II
December 2017

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13240, enacted November 14, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
CD2:1—CD2:8	CD2:1—CD2:8
CD2:15, CD2:16	CD2:15—CD2:16.1
CD2:21, CD2:22	CD2:21—CD2:22.1
CD2:55, CD2:56	CD2:55, CD2:56
CD2:63—CD2:66	CD2:63—CD2:67
CD4:9—CD4:12	CD4:9—CD4:12.2
CD4:17—CD4:28	CD4:17—CD4:28.1
CD4:33—CD4:36	CD4:33—CD4:36.1
CD4:41—CD4:44	CD4:41—CD4:44.1
CD4:49—CD4:52	CD4:49—CD4:52.1
CD4:63—CD4:66	CD4:63—CD4:66.1
CD4:137—CD4:178	CD4:137—CD4:178.4
CD4:221, CD4:222	CD4:221, CD4:222
CD4:263—CD4:271	CD4:263—CD4:271
CD5:19, CD5:20	CD5:19, CD5:20
CD5:24.1—CD5:26	CD5:25—CD5:26.1
CD8:1	CD8:1
CD8:3—CD8:7	CD8:3—CD8:15
CD12:7, CD12:8	CD12:7—CD12:9
	VOLUME II
xv—xxv	xv—xxv
CD21:3	CD21:3
CD21:39—CD21:42	CD21:39—CD21:42.1

Remove Old Pages	*Insert New Pages*
CD24:75—CD24:76.2	CD24:75—CD24:76.2
CD25:1, CD25:2	CD25:1, CD25:2
CD25:19, CD25:20	CD25:19—CD25:20.1
CD25:23—CD25:29	CD25:23—CD25:29
CD31:15—CD31:22	CD31:15—CD31:22
CD31:105, CD31:106	CD31:105, CD31:106
CD38:1—CD38:10	CD38:1—CD38:10
CD38:23—CD38:26	CD38:23—CD38:26
CD38:41—CD38:44.1	CD38:41—CD38:44.1
CD38:93, CD38:94	CD38:93, CD38:94
CD38:139—CD38:142	CD38:139—CD38:142.2
CD38:159—CD38:162	CD38:159—CD38:162.1
CD38:173, CD38:174	CD38:173, CD38:174
CD38:197—CD38:200	CD38:197—CD38:200.1
CCT:9	CCT:9

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 10
VOLUMES I AND II
September 2017

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13205, enacted July 18, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
CD10:5—CD10:8	CD10:5—CD10:8.1
CD10:13—CD10:14.1	CD10:13—CD10:14.1
CD11:6.1	CD11:6.1
CD11:17, CD11:18	CD11:17, CD11:18
CD11:77, CD11:78	CD11:77—CD11:83
VOLUME II	
xv—xxv	xv—xxv
CD16:5—CD16:8	CD16:5—CD16:8
CD17:3, CD17:4	CD17:3—CD17:4.1
CD38:1—CD38:14	CD38:1—CD38:14.1
CD38:17—CD38:26	CD38:17—CD38:26
CD38:45—CD38:48.1	CD38:45—CD38:48.1
CD38:53, CD38:54	CD38:53—CD38:54.1
CD38:59—CD38:72	CD38:59—CD38:72.1
CD38:81—CD38:104.1	CD38:81—CD38:104.2
CD38:113—CD38:122.1	CD38:113—CD38:122.1
CD38:141, CD38:142	CD38:141, CD38:142
CD38:179—CD38:184	CD38:179—CD38:184.7
CD38:195, CD38:196	CD38:195, CD38:196
CCT:7, CCT:8	CCT:7—CCT:9

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 9
VOLUMES I AND II
July 2017

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13186, enacted June 6, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
VOLUME II	
xv—xxv	xv—xxv
CD17:3—CD17:6	CD17:3—CD17:6.1
CD21:39—CD21:42	CD21:39—CD21:42
CD26:13—CD26:16	CD26:13—CD26:16
CD31:1—CD31:5	CD31:1—CD31:5
CD31:11—CD31:38	CD31:11—CD31:38.1
CD31:53—CD31:58	CD31:53—CD31:58
CD31:64.3—CD31:64.5	CD31:64.3—CD31:64.5
CD38:43—CD38:44.1	CD38:43—CD38:44.1
CD38:46.1—CD38:48	CD38:47—CD38:48.1
CCT:1—CCT:7	CCT:1—CCT:8

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 8
VOLUMES I AND II
April 2017

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13127, enacted December 13, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7—SH:9
CD5:1, CD5:2	CD5:1, CD5:2
CD5:7—CD5:10	CD5:7—CD5:10.1
CD5:15—CD5:20	CD5:15—CD5:20.1
VOLUME II	
xv—xxv	xv—xxv
CD35:73—CD35:76	CD35:73—CD35:76
CD38:3, CD38:4	CD38:3— CD38:4.1
CD38:25, CD38:26	CD38:25, CD38:26
CD38:61—CD38:64	CD38:61—CD38:64.1
CD38:177, CD38:178	CD38:177—CD38:178.1
CD38:195, CD38:196	CD38:195, CD38:196
CCT:7	CCT:7

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 7
VOLUMES I AND II
January 2017

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13117, enacted October 18, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD2:125, CD2:126	CD2:125—CD2:126.1
VOLUME I I	
xv—xxv	xv—xxv
CD21:3	CD21:3
CD21:39, CD21:40	CD21:39—CD21:49
CD31:55—CD31:58	CD31:55—CD31:58
CD38:157, CD38:158	CD38:157, CD38:158
CCT:7	CCT:7

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 6
VOLUMES I AND II
October 2016

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13093, enacted August 9, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5—SH:7
CD5:1—CD5:3	CD5:1—CD5:3
CD5:13, CD5:14	CD5:13, CD5:14
CD5:19—CD5:24	CD5:19—CD5:24.1
VOLUME I I	
xv—xxv	xv—xxv
CD26:19—CD26:22	CD26:19—CD26:22.1
CD38:133—CD38:136	CD38:133—CD38:136.1
CD38:177—CD38:180	CD38:177—CD38:180
CD38:195, CD38:196	CD38:195, CD38:196
CCT:7	CCT:7

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 5
VOLUMES I AND II
August 2016

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13062, enacted May 17, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title Page	Title Page
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD11:5, CD11:6	CD11:5—CD11:6.1
CD11:69, CD11:70	CD11:69—CD11:78
	VOLUME I I
Title Page	Title Page
xv—xxv	xv—xxv
CD24:43, CD24:44	CD24:43—CD24:44.1
CD24:89—CD24:98	CD24:89—CD24:98
CD38:7—CD38:12.1	CD38:7—CD38:12.1
CD38:17, CD38:18	CD38:17—CD38:18.1
CD38:25, CD38:26	CD38:25, CD38:26
CD38:85, CD38:86	CD38:85—CD39:86.1
CD38:89—CD38:90.1	CD38:89—CD38:90.1
CD38:113, CD38:114	CD38:113, CD38:114
CD38:121, CD38:122	CD38:121—CD38:122.1
CD38:133—CD38:140	CD38:133—CD38:140
CD38:157, CD38:158	CD38:157, CD38:158
CD38:177—CD38:180	CD38:177—CD38:180
CD38:195, CD38:196	CD38:195—CD38:196.1
CCT:5, CCT:6	CCT:5—CCT:7

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 4
VOLUMES I AND II
April 2016

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13025, enacted February 16, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
CHT1:3—CHT1:6	CHT1:3—CHT1:6
CHT3:3, CHT3:4	CHT3:3—CHT3:4.1
CD2:3—CD2:7	CD2:3—CD2:8
CD2:31—CD2:36	CD2:31—CD2:36.1
CD2:45—CD2:62	CD2:45—CD2:66
CD5:7, CD5:8	CD5:7—CD5:8.1
CD7:1—CD7:5	CD7:1—CD7:5
CD7:15, CD7:16	CD7:15—CD7:16.1
CD11:5, CD11:6	CD11:5, CD11:6
CD11:69	CD11:69, CD11:70
VOLUME II	
xv—xxv	xv—xxv
CD27:1, CD27:2	CD27:1, CD27:2
CD27:3—CD27:6	CD27:3—CD27:6.1
CD35:73—CD35:76	CD35:73—CD35:76
CD38:11—CD38:12.1	CD38:11—CD38:12.1
CD38:25, CD38:26	CD38:25, CD38:26
CD38:121, CD38:122	CD38:121, CD38:122
CD38:173, CD38:174	CD38:173—CD38:174.1
CDA:77—CDA:84	CDA:77—CDA:79
CCT:1—CCT:6	CCT:1—CCT:6

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 3
VOLUMES I AND II
December 2015

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 13000, enacted November 10, 2015.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxvi	xv—xxv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1—SH:5	SH:1—SH:5
CD2:1—CD2:10	CD2:1—CD2:7
CD2:21—CD2:110	CD2:21—CD2:62
CD10:29, CD10:30	CD10:29, CD10:30
	VOLUME II
xv—xxvi	xv—xxv
CD24:75—CD24:76.2	CD24:75—CD24:76.2
CD24:99, CD24:100	CD24:99, CD24:100
CD31:67, CD31:68	CD31:67, CD31:68
CD31:73—CD31:82	CD31:73—CD31:82.1
CD32:21—CD32:26	CD32:21—CD32:26
CD38:1—CD38:10	CD38:1—CD38:10
CD38:203, CD38:204	CD38:203, CD38:204
	CDA:1
	CDA:3—CDA:112
CCT:1—CCT:5	CCT:1—CCT:6

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 2
VOLUMES I AND II
September 2015

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12982, enacted August 18, 2015.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxv	xv—xxvi
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3	SH:3—SH:5
CD2:21—CD2:26	CD2:21—CD2:26.1
CD2:43, CD2:44	CD2:43, CD2:44
CD2:59, CD2:60	CD2:59, CD2:60
CD2:129, CD2:130	CD2:129, CD2:130
CD3:35—CD3:38	CD3:35—CD3:38
CD3:43, CD3:44	CD3:43, CD3:44
CD5:11—CD5:14	CD5:11—CD5:14
CD7:1—CD7:18	CD7:1—CD7:5
	CD7:7—CD7:18.3
CD7:23—CD7:35	CD7:23—CD7:51
CD10:13, CD10:14	CD10:13—CD10:14.1
CD10:37—CD10:40	CD10:37—CD10:40
	VOLUME II
xv—xxv	xv—xxvi
CD24:5—CD24:8	CD24:5—CD24:8
CD24:47—CD24:52	CD24:47—CD24:52
CD24:73—CD24:76	CD24:73—CD24:76.2
CD24:103, CD24:104	CD24:103, CD24:104
CD27:1, CD27:2	CD27:1, CD27:2
CD27:7—CD27:13	CD27:7—CD27:14
CD31:1, CD31:2	CD31:1, CD31:2

Remove Old Pages	*Insert New Pages*
CD31:7—CD31:64	CD31:7—CD31:64.5
CD31:105, CD31:106	CD31:105, CD31:106
CD32:3, CD32:4	CD32:3, CD32:4
CD32:9, CD32:10	CD32:9, CD32:10
CD32:21—CD32:34	CD32:21—CD32:34.1
CD38:1—CD38:10	CD38:1—CD38:10
CD38:29—CD38:32	CD38:29—CD38:32
CD38:43, CD38:44	CD38:43—CD38:44.1
CD38:95, CD38:96	CD38:95, CD38:96
CD38:113—CD38:118	CD38:113—CD38:118
CD38:143, CD38:144	CD38:143—CD38:144.2
CD38:169—CD38:178	CD38:169—CD38:177
CD38:223, CD38:224	CD38:223—CD38:225
CCT:1—CCT:3	CCT:1—CCT:5

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 1
June 2015

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 12941, enacted May 5, 2015.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxv	xv—xxv
	Checklist of Up-to-Date Pages (following Table of Contents)
	SH:1—SH:3 (following Checklist of Up-to-Date Pages)
	VOLUME II
xv—xxv	xv—xxv
CD14:11—CD14:20	CD14:11—CD14:20
CD18:3	CD18:3
CD18:13, CD18:14	CD18:13, CD18:14
CD18:29	CD18:29—CD18:31
CD24:3, CD24:4	CD24:3, CD24:4
CD24:35, CD24:36	CD24:35, CD24:36
CD24:51—CD24:74	CD24:51—CD24:74
CD24:101—CD24:104	CD24:101—CD24:104
CD26:1, CD26:2	CD26:1, CD26:2
CD26:7—CD26:28	CD26:7—CD26:27
CD31:63—CD31:108	CD31:63—CD31:108.5
CD35:1—CD35:5	CD35:1—CD35:5
CD35:7—CD35:26	CD35:7—CD35:26.4
CD35:51—CD35:80	CD35:51—CD35:90
CD38:1—CD38:12	CD38:1—CD38:12.1
CD38:25, CD38:26	CD38:25, CD38:26
CD38:45, CD38:46	CD38:45—CD38:46.1
CD38:69—CD38:74	CD38:69—CD38:74

Remove Old Pages	*Insert New Pages*
CD38:81—CD38:90	CD38:81—CD38:90.1
CD38:95—CD38:104	CD38:95—CD38:104.1
CD38:111—CD38:114	CD38:111—CD38:114.1
CD38:163—CD38:166	CD38:163—CD38:165
CD38:173, CD38:174	CD38:173—CD38:174.1
CD38:193—CD38:196	CD38:193—CD38:196
CCT:1	CCT:1—CCT:3

Insert and maintain this instruction sheet in front of Volume I of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

REPUBLICATION
April 2015

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

Looseleaf Supplement

This copy of the Code of Ordinances of the City of Chattanooga, Tennessee, is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time.

This copy replaces all existing copies of the Code as published by the City of Chattanooga. Future supplements will commence with "Supplement No. 1" by Municipal Code Corporation.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

VOLUME I

As Republished 2015

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

PREFACE

This Code constitutes a codification of the general and permanent ordinances of the City of Chattanooga, Tennessee.

Source materials used in the preparation of the Code were the ordinances adopted by the City. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of any ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation, which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CODE	CD1:1
CODE APPENDIX	CDA:1
CODE COMPARATIVE TABLES	CCT:1

STATE LAW REFERENCE TABLE SLT:1

CHARTER INDEX CHTi:1

CODE INDEX CDi:1

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the index itself that stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Austin Bates, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Wade A. Hinton, City Attorney, for his cooperation and assistance during the progress of the work on this publication. It is hoped that her efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the City readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City's affairs.

Copyright

All editorial enhancements of this Code are copyrighted by Municipal Code Corporation and the City of Chattanooga, Tennessee. Editorial enhancements include, but are not limited to: organization; table of contents; section catchlines; prechapter section analyses; editor's notes; cross references; state law references; numbering system; code comparative table; state law reference table; and index. Such material may not be used or reproduced for commercial purposes without the express written consent of Municipal Code Corporation and the City of Chattanooga, Tennessee.

© Copyrighted material.
Municipal Code Corporation and the City of Chattanooga, Tennessee. 2015.

TABLE OF CONTENTS

VOLUME I

Page

Preface vii

Checklist of Up-to-Date Pages . . . . . [1]

Supplement History Table SH:1

CODE OF ORDINANCES

PART I

CHARTER COMPILATION

Charter Prologue CHT:1

1. Incorporation CHT1:1

2. Corporate Powers and Prohibitions Generally CHT2:1

3. City Officers and Employees CHT3:1
   - Ch. I. In General CHT3:3
   - Ch. II. Recall CHT3:4
   - Ch. III. Pensions and Death Benefits CHT3:4
     - Art. 1. Generally CHT3:4
     - Art. 2. General Pension Plan CHT3:5
   - Ch. IV. City Attorney CHT3:5
   - Ch. V. Subordinate Officers, Employees and Laborers CHT3:6
     - Art. 1. Generally CHT3:6
     - Art. 2. City Finance Officer CHT3:7
     - Art. 3. City Treasurer CHT3:7
     - Art. 4. Office of Internal Audit, Audit Committee, and City Auditor CHT3:8

4. Courts, Fines and Imprisonments CHT4:1
   - Ch. I. In General CHT4:3
   - Ch. II. City Judge CHT4:4
   - Ch. III. Clerk of City Court CHT4:6
   - Ch. IV. Fines, Penalties and Forfeitures CHT4:6

5. Elections of Mayor, Council Members and City Judges CHT5:1
   - Ch. I. In General CHT5:3
   - Ch. II. Mayor and Council Elections CHT5:3
   - Ch. III. City Judge CHT5:6
   - Ch. IV. Election Offenses CHT5:6

6. Finance and Taxation CHT6:1
   - Ch. I. In General CHT6:3
   - Ch. II. City Taxes CHT6:3
     - Art. 1. Generally CHT6:3

Title		Page
	Art. 2. Delinquent Taxes	CHT6:4
	Art. 3. Privilege Taxes	CHT6:8
	Div. I. Generally	CHT6:8
	Art. 4. Property Taxes	CHT6:8
	Ch. III. Budget	CHT6:8
	Ch. IV. Appropriations	CHT6:9
	Ch. V. Borrowing Power of City	CHT6:10
	Art. 1. Generally	CHT6:10
	Ch. VI. Aid to Railroads	CHT6:10
	Ch. VII. Legal Liability Fund	CHT6:11
7.	Franchises	CHT7:1
8.	Distribution of Powers	CHT8:1
	Ch. I. Legislative	CHT8:3
	Ch. II. Executive	CHT8:5
	Ch. III. Generally	CHT8:8
9.	Municipal Boards and Commissions	CHT9:1
	Ch. I. In General	CHT9:3
	Ch. II. Reserved	CHT9:3
	Ch. III. Reserved	CHT9:3
10.	Municipal Electrical System	CHT10:1
	Ch. I. In General	CHT10:3
	Ch. II. Electric Power Board of Chattanooga	CHT10:7
11.	Ordinances and Resolutions	CHT11:1
	Ch. I. In General	CHT11:3
	Ch. II. Initiative and Referendum	CHT11:5
12.	Planning, Zoning and Development	CHT12:1
	Ch. I. Planning	CHT12:3
	Ch. II. Zoning	CHT12:3
	Ch. III. Plats and Subdivisions	CHT12:5
13.	Police and Fire	CHT13:1
	Ch. I. In General	CHT13:3
	Ch. II. Salaries	CHT13:5
	Ch. III. Tenure	CHT13:5
	Ch. IV. Fire and Police Pension	CHT13:7
14.	Public Utilities	CHT14:1
15.	Public Works, Streets, Sewers and Airports	CHT15:1
	Ch. I. In General	CHT15:3
	Ch. II. Sewerage System	CHT15:4
	Ch. III. Removal, Relocation and Installation of Utilities in Connection with Public Improvements	CHT15:6
	Ch. IV. Gas, Water, Sewer and Other Connections By City	CHT15:8
	Ch. V. Abutting Property Law of 1907 Relative to Streets and Sidewalks	CHT15:8
	Ch. VI. Sidewalk Improvement Act of 1915	CHT15:8

Title		Page
	Ch. VII. Metropolitan Improvement Act of 1927	CHT15:8
	Ch. VIII. Improvement Act of 1931	CHT15:9
16.	Railroads	CHT16:1
17.	Reserved	CHT17:1
18.	Reserved	CHT18:1
	Charter Appendices	CHTA:1
	App. No. 1 Judgment	CHTA:3
	App. No. 2 Agreed Order	CHTA:12
	App. No. 3 Order	CHTA:14
	App. No. 4 Charter Comparative Tables	CHTA:18

PART II

CITY CODE

1.	General Provisions	CD1:1
2.	Administration	CD2:1
	Art. I. In General	CD2:11
	Art. II. Officers	CD2:13
	Div. 1. Generally	CD2:13
	Div. 2. City Attorney	CD2:13
	Div. 3. City Finance Officer	CD2:15
	Div. 4. Engineer	CD2:17
	Div. 5. Treasurer	CD2:18
	Art. III. Human Resources—Miscellaneous	CD2:21
	Div. 1. Other Post-Employment Benefits Program	CD2:21
	Div. 2. Social Security Generally	CD2:28
	Div. 3. Social Security for Educational Personnel	CD2:29
	Div. 4. General Pension Plan	CD2:30
	Div. 5. Fire and Police Pension Fund	CD2:48.1
	Art. IV. Finance	CD2:66
	Art. V. Purchases, Contracts and Property Disposition	CD2:117
	Art. VI. Reserved	CD2:127
	Art. VII. Municipal Planning Commission	CD2:127
	Art. VIII. Inspection Department	CD2:128
	Art. IX. Chattanooga Department of Early Learning	CD2:132
	Art. X. Supplemental Pension Benefits	CD2:134
	Art. XI. Suspension and Debarment of Contractors	CD2:137
	Art. XII. Department of Equity and Community	CD2:140
	Art. XIII. Code of Ethics	CD2:142
	Art. XIV. Audit Committee	CD2:149
	Art. XV. Whistle Blower Protection	CD2:150
	Art. XVI. Chattanooga Department of Community Development	CD2:152
3.	Advertising	CD3:1
	Ch. 3A. Off-Premise Advertising	CD3:7
	Art. I. Administration and Enforcement	CD3:7

Chapter Page

Art. II. General Off-Premise Sign Regulations CD3:17
Art. III. Controlled Access Facility Sign Regulation CD3:19
Art. IV. Major Advertising Zone Sign Regulation CD3:20
Art. V. Scenic Areas and Scenic Corridors CD3:21
Art. VI. Reserved CD3:23
Art. VII. Reserved CD3:23
Art. VIII. Reserved CD3:23
Art. IX. Reserved CD3:23
Art. X. Variances and Special Permits CD3:23
Art. XI. Veterans Bridge Sign-Control District CD3:26
Art. XII. Reserved CD3:27
Art. XIII. Reserved CD3:27
Ch. 3B. On-Premise Advertising CD3:27
Art. XIV. Purpose and Applicability CD3:27
Art. XV. Definitions, Rules of Measurement, and Sign Types . CD3:29
Div. 1. Rules of Interpretation and General Abbreviations CD3:29
Div. 2. Definitions CD3:30
Div. 3. Sign Types CD3:34
Div. 4. Lighting Types CD3:39
Div. 5. Rules of Measurement CD3:40
Art. XVI. Prohibited Signs CD3:44
Art. XVII. Exempt and Temporary Signs CD3:45
Div. 1. Exempt Signs CD3:45
Div. 2. Temporary On-Premises Signs CD3:46
Art. XVIII. Sign Lighting CD3:48
Div. 1. Illumination Standards CD3:48
Div. 2. Digital Signs CD3:48
Art. XIX. Regulations Character Areas CD3:50
Div. 1. Overview Map CD3:50
Div. 2. Brainerd Overlay CD3:51
Div. 3. General Character Area CD3:53
Div. 4. Highway Commercial Corridors (Billboards) CD3:54
Div. 5. Lovell Field Gateway Overlay CD3:55
Div. 6. Residential CD3:57
Div. 7. Scenic Areas and Corridors CD3:57
Div. 8. Veterans Bridge CD3:61
Art. XX. On-Premises Permitted Sign Regulations CD3:62
Div. 1. Overview CD3:62
Div. 2. Attached Signs CD3:63
Div. 3. Detached Signs CD3:71
Div. 4. Special Purpose Signs CD3:76
Art. XXI. Administrative Provisions, Variances, and Appeals . CD3:77
Div. 1. Administrative Provisions CD3:77
Div. 2. Notices CD3:85
Art. XXII. Enforcement CD3:86
Div. 1. Enforcement and Penalties CD3:86
Art XXIII. Non-Conforming Signs CD3:87

4. Air Pollution CD4:1
Art. I. In General CD4:3

Chapter		Page
	Art. II. Rules, Regulations, Criteria, Standards	CD4:62
	Art. III. Part 70 Source Regulation and Permits	CD4:232
5.	Alcoholic Beverages	CD5:1
	Art. I. In General	CD5:5
	Art. II. Beer Board	CD5:5
	Art. III. Beer (as Defined at T.C.A. § 57-5-101(b), and Amendments Thereto)	CD5:8
	Div. 2. Permits	CD5:8
	Art. IV. Liquor (as Defined at T.C.A. § 57-5-101(a)(1), and Amendments Thereto)	CD5:22
	Div. 1. Generally	CD5:22
	Div. 2. License	CD5:28
	Div. 3. Inspection Fee on Retail Sales; Privilege Tax for Consumption on Premises	CD5:30
	Art. V. Bottle Clubs (Brown Bagging)	CD5:32
	Div. 1. Generally	CD5:32
	Div. 2. Permit	CD5:33
	Art. VI. Hearing Officer	CD5:36
6.	Amusements	CD6:1
	Art. I. In General	CD6:3
	Art. II. Drive-In Theaters	CD6:4
	Art. III. Billiard Rooms or Pool	CD6:4
	Art. IV. Reserved	CD6:6
	Art. V. Reserved	CD6:6
7.	Animals and Fowl	CD7:1
	Art. I. In General	CD7:7
	Art. II. Licensing, Inoculation and Permitting of Dogs and Cats	CD7:16
	Art. III. Offenses	CD7:18.1
	Art. IV. Barking Dogs	CD7:20
	Art. V. Potentially Dangerous and Dangerous Dogs	CD7:21
	Art. VI. Impoundment, Redemption and Disposition of Animals	CD7:26
	Art. VII. Trapping Animals	CD7:30
	Art. VIII. Large Animals	CD7:30
	Art. IX. Exotic Animals	CD7:32
	Art. X. Dead Animals	CD7:32
	Art. XI. Guard Dogs	CD7:33
	Art. XII. Miscellaneous	CD7:34
	Art. XIII. Animal Control Board	CD7:36.1
	Art. XIV. General Provisions For Permits	CD7:36.2
	Art. XV. Dealer Permits	CD7:41
	Art. XVI. Kennel Permits	CD7:42
	Art. XVII. Animal Performance Permits	CD7:43
	Art. XVIII. Animal Rescuer Permits	CD7:47
	Art. XIX. Dogs in Outdoor Dining Areas Permits	CD7:49
8.	Aviation	CD8:1
	Art. I. In General	CD8:3

Chapter		Page
	Art. II. Overlay Zones	CD8:4
	Art. III. Development on the Direct Airport Property	CD8:8
9.	Beautification	CD9:1
	Art. I. In General	CD9:3
	Div. 1. Public Art Commission	CD9:3
	Art. II. Commission	CD9:5
10.	Buildings	CD10:1
	Art. I. Building Code	CD10:3
	Art. II. Historic Zoning	CD10:27
	Art. III. Other Fees	CD10:39
	Art. IV. Commercial Property Assessed Clean Energy and Resiliency (C-PACER) Program	CD10:40
11.	Businesses, Trades and Occupations	CD11:1
	Art. I. In General	CD11:3
	Art. II. Auctions and Auctioneers	CD11:3
	Div. 1. Generally	CD11:3
	Div. 2. Jewelry Auctions	CD11:3
	Art. III. Barbershops	CD11:12
	Div. 1. Generally	CD11:12
	Art. IV. Coal and Coke Dealers	CD11:13
	Art. V. Filling Stations	CD11:16
	Art. VI. Hotels and Rooming Houses	CD11:18
	Art. VII. Junk and Secondhand Dealers	CD11:21
	Art. VIII. Pawnbrokers	CD11:23
	Art. IX. Transient Merchants	CD11:28
	Art. X. Massage Technicians and Parlors	CD11:30
	Art. XI. Professional Fund Solicitors	CD11:37
	Art. XII. Sidewalk Vendors	CD11:42
	Art. XIII. Special Sales	CD11:45
	Art. XIV. Adult-Oriented Establishments	CD11:50
	Art. XV. Teen Social Clubs	CD11:64
	Art. XVI. Small Business Incentive Grant Program	CD11:67
	Art. XVII. Small Business Construction Mitigation Grants	CD11:69
	Art. XVIII. Innovation District Grants	CD11:70.1
	Art. XIX. Waste Tire Haulers	CD11:72
	Art. XX. Reserved	CD11:78
	Art. XXI. Downtown Central Business Improvement District (Downtown CBD)	CD11:84
12.	City Court	CD12:1
	Art. I. In General	CD12:3
	Art. II. Clerk	CD12:8
	Art. III. City Judges	CD12:9
13.	Civil Defense	CD13:1

VOLUME II

14.	Electricity	CD14:1
	Art. I. In General	CD14:3

Chapter		Page
	Art. II. Electricians	CD14:7
	Div. 1. Generally	CD14:7
	Div. 2. Board of Examiners	CD14:8
	Div. 3. Examinations, Licenses and Certificates	CD14:10
15.	Energy	CD15:1
	Art. I. In General	CD15:3
	Art. II. Energy Curtailment	CD15:3
	Div. 1. Generally	CD15:3
	Div. 2. Electric	CD15:3
	Div. 3. Petroleum Product Usage	CD15:5
16.	Fire and Police Departments	CD16:1
	Art. I. In General	CD16:5
	Art. II. Fire Department	CD16:6.2
	Art. III. Police Department	CD16:7
	Art. IV. Police Advisory and Review Committee	CD16:11
	Art. V. Interception of Police Radio Signals	CD16:14.3
	Art. VI. Private Security Police	CD16:14.4
	Art. VII. Pension Benefits	CD16:14.6
17.	Fire Prevention	CD17:1
	Art. I. In General	CD17:3
	Art. II. Bureau of Fire Prevention	CD17:4
18.	Garbage and Refuse	CD18:1
	Art. I. In General	CD18:5
	Art. II. Containers	CD18:9
	Art. III. Municipal Collection and Disposal	CD18:11
	Art. IV. Private Collections, Permits, Etc.	CD18:14
	Art. V. Leaves, Grass, Rubbish, Etc.	CD18:16
	Art. VI. Sanitary Landfills	CD18:19
	Art. VII. Refuse Transfer Station	CD18:20
	Art. VIII. Anti-Litter Code	CD18:21
	Art. IX. Reserved	CD18:26
	Art. X. Public Dumpster Service	CD18:26
	Art. XI. Donation Bins	CD18:26
19.	Gas	CD19:1
	Art. I. In General	CD19:3
	Art. II. Permits and Inspections	CD19:5
	Art. III. Gas Fitters and Installers	CD19:7
	Div. 1. Generally	CD19:7
	Div. 2. Board of Examiners	CD19:7
	Div. 3. Examinations and Certificates of Competency	CD19:9
	Div. 4. Licenses	CD19:15
20.	Health and Sanitation	CD20:1
	Art. I. In General	CD20:3
	Art. II. Health Nuisances	CD20:3
	Art. III. Contagious Diseases	CD20:5
	Art. IV. Mosquito Control	CD20:6

Chapter		Page
	Art. V. Rat Control in Business Buildings	CD20:8
	Art. VI. Lead Substances Control	CD20:10
	Art. VII. Food Service Establishments	CD20:12
	Div. 1. Generally	CD20:12
	Div. 2. Examination of Employees	CD20:12
	Div. 3. Mobile Food Units	CD20:14
21.	Property Maintenance	CD21:1
	Art. I. Scope, Application and Definitions	CD21:5
	Div. 1. Scope and Application	CD21:5
	Div. 2. Definitions	CD21:6
	Art. II. Administration	CD21:11
	Art. III. Enforcement	CD21:13
	Div. 1. Violations and Prosecution Thereof; Liens	CD21:13
	Div. 2. Condemnation	CD21:16
	Div. 3. Demolition	CD21:22
	Art. IV. Exterior Requirements	CD21:25
	Div. 1. General Requirements	CD21:25
	Div. 2. Exterior of Structure	CD21:26
	Div. 3. Swimming Pools and Other Accessory Structures	CD21:29
	Div. 4. Litter and Overgrowth	CD21:29
	Div. 5. Abandoned and Inoperable Vehicles	CD21:31
	Art. V. Interior Requirements	CD21:33
	Div. 1. General Requirements	CD21:33
	Div. 2. Component Serviceability	CD21:35
	Div. 3. Light, Ventilation and Space for Occupancy	CD21:36
	Div. 4. Plumbing	CD21:39
	Div. 5. Mechanical and Electrical Systems	CD21:41
	Div. 6. Fire Safety	CD21:44
	Art. VI. Office of Administrative Hearing Officer	CD21:46
22.	Libraries	CD22:1
22.5.	Mechanical	CD22.5:1
	Art. I. In General	CD22.5:3
	Art. II. Mechanical Journeymen and Contractors	CD22.5:6
	Div. 1. Generally	CD22.5:6
	Div. 2. Board of Mechanical Examiners	CD22.5:7
	Div. 3. Examinations, Licenses and Certificates	CD22.5:8
23.	Metropolitan Transit Authority	CD23:1
24.	Motor Vehicles and Traffic	CD24:1
	Art. I. In General	CD24:9
	Art. II. Traffic Administration	CD24:30
	Div. 1. Generally	CD24:30
	Div. 2. Citations for Violations	CD24:30.1
	Div. 3. Transportation Department	CD24:32
	Div. 4. Traffic Division	CD24:35
	Div. 5. Reserved	CD24:36
	Art. III. Accidents	CD24:36

Chapter		Page
	Art. IV. Pedestrians	CD24:36
	Art. V. One-Way Streets and Alleys	CD24:39
	Art. VI. Right-of-Way	CD24:40
	Art. VII. Turning Movements and Stopping	CD24:41
	Art. VIII. Speed Regulations	CD24:43
	Art. IX. Traffic-Control Devices	CD24:44.1
	Art. X. Stopping, Standing and Parking	CD24:51
	Div. 1. Generally	CD24:51
	Div. 2. Establishment of Parking Authority	CD24:58
	Div. 3. Parking Meters	CD24:60
	Div. 4. Parking Citation Enforcement and Review	CD24:63
	Div. 5. Abandoned and Discarded Vehicles	CD24:67
	Div. 6. Special Stops	CD24:70
	Div. 7. Snow or Ice Emergency	CD24:72
	Div. 8. Neighborhood Parking	CD24:73
	Div. 9. Valet Parking	CD24:76
	Div. 10. Immobilization of Vehicles	CD24:78
	Art. XI. Vehicle Licenses	CD24:85
	Art. XII. Vehicle Equipment	CD24:87
	Art. XIII. Bicycles	CD24:99
	Art. XIV. Schedules	CD24:101
	Art. XV. Dockless Electric Scooters and Bicycles	CD24:117
25.	Offenses and Miscellaneous Provisions	CD25:1
	Art. I. In General	CD25:5
	Art. II. Special Gathering Permit	CD25:14.4
	Art. III. Noises	CD25:18
	Art. IV. Offenses Against Morals	CD25:29
	Div. 1. Generally	CD25:29
	Div. 2. Prostitution and Related Offenses	CD25:29
26.	Parks and Playgrounds	CD26:1
	Art. I. In General	CD26:3
	Art. II. Cemetery Park	CD26:18
	Art. III. Miller Park	CD26:19
	Div. 1. Generally	CD26:19
	Art. IV. Municipal Golf Courses	CD26:20
	Art. V. Parks and Outdoors Advisory Committee	CD26:22
27.	Plumbing	CD27:1
	Art. I. In General	CD27:3
	Art. II. Plumbers	CD27:6
	Div. 1. Generally	CD27:6
	Div. 2. Board of Examiners	CD27:7
	Div. 3. Certificates of Competency	CD27:8
28.	Reserved	CD28:1
29.	Railroads	CD29:1
30.	Schools	CD30:1

Chapter		Page
31.	Sewers, Mains and Drainage	CD31:1
	Art. I. In General	CD31:7
	Art. II. Sewer Service Charges	CD31:14
	Art. III. Industrial Waste	CD31:22
	Div. 1. Generally	CD31:22
	Div. 2. Pretreatment Standards	CD31:29
	Div. 3. Permits and Administration	CD31:44
	Div. 4. Wastewater Regulations Board	CD31:56
	Div. 5. Director	CD31:57
	Div. 6. Pretreatment Enforcement	CD31:60
	Art. IV. Disposal of Excreta	CD31:64.1
	Art. V. Water and Gas Mains	CD31:64.2
	Art. VI. Sewer Agreements with Chattanooga Area Regional Council Members	CD31:64.3
	Art. VII. Other Enforcement and Appeal Procedures	CD31:64.4
	Art. VIII. Stormwater Management	CD31:65
	Div. 1. Generally	CD31:65
	Div. 2. New Development and Redevelopment Requirements	CD31:74
	Div. 3. Land Disturbing Activity and Erosion and Sedimentation Control	CD31:79
	Div. 4. General Requirements Applicable to All Permits Issued Under this Article	CD31:97
	Div. 5. Monitoring and Inspection	CD31:98
	Div. 6. Enforcement and Abatement	CD31:99
	Div. 7. Fees	CD31:103
	Div. 8. Stormwater Regulations Board	CD31:111
	Art. IX. Water and Wastewater Authority	CD31:114
32.	Streets and Sidewalks	CD32:1
	Art. I. In General	CD32:7
	Art. II. Obstructions	CD32:10
	Art. III. Excavations and Restoration of Paving	CD32:13
	Art. IV. Encroachments and Excavations on State and Federal Highways	CD32:18.2
	Art. V. Curb and Sidewalk Construction and Maintenance	CD32:18.3
	Art. VI. Sidewalk Openings and Gratings	CD32:20
	Art. VII. Driveways and Curb Cuts	CD32:21
	Art. VIII. Address Numbering System	CD32:22
	Art. IX. Street Names	CD32:26
	Art. X. Poles and Wires	CD32:28
	Art. XI. Telecommunications Services; Franchises for Telecommunications Services	CD32:29
	Art. XII. Street Construction	CD32:46
	Art. XIII. Chattanooga Tree Ordinance	CD32:55
	Div. 1. General	CD32:55
	Div. 2. Public Property Tree Maintenance, Protection, and Planting	CD32:60
	Div. 3. Private Property Tree Protection and Responsibilities	CD32:69

Chapter		Page
	Div. 4. Enforcement	CD32:72
	Art. XIV. Complete Streets	CD32:73
33.	Swimming Pools	CD33:1
	Art. I. In General	CD33:3
	Art. II. Public Pools	CD33:3
	Div. 1. Generally	CD33:3
	Div. 2. Minimum Standards	CD33:7
34.	Trailers and Trailer Camps	CD34:1
	Art. I. In General	CD34:3
	Art. II. Trailer Camps	CD34:3
	Div. 1. Generally	CD34:3
	Div. 2. Permit	CD34:7
35.	Vehicles for Hire	CD35:1
	Art. I. In General	CD35:7
	Art. II. Taxicabs, Limousines, Shuttles, and Motor Vehicles Transporting Passengers for Hire	CD35:7
	Div. 1. Passenger Vehicle for Hire Board	CD35:7
	Art. III. Regulation of Taxicabs, Limousines, Shuttles, and Motor Vehicles Transporting Passengers for Hire	CD35:8
	Div. 1. Generally	CD35:8
	Div. 2. Certificate of Public Convenience and Necessity	CD35:20
	Div. 3. Drivers' Permits	CD35:23
	Div. 4. Vehicle for Hire Privilege	CD35:27
	Art. IV. Traffic Incident Management Service	CD35:30
	Art. V. Ambulances	CD35:56
	Art. VI. Horse-Drawn Carriages	CD35:57
	Div. 1. In General	CD35:57
	Div. 2. Certificate of Public Convenience and Necessity	CD35:58
	Div. 3. Horse-Drawn Carriage Drivers	CD35:63
	Div. 4. Horses, Carriages and Equipment	CD35:66
	Art. VII. Pedal Carriages and Rickshaws	CD35:71
	Div. 1. In General	CD35:71
	Div. 2. Pedal Carriage or Pedicab Business Permit	CD35:73
	Div. 3. Electric Personal Assistive Mobility Devices (Segways)	CD35:82
	Art. VIII. Reserved	CD35:86
36.	Water	CD36:1
	Art. I. In General	CD36:3
	Art. II. Service by Companies	CD36:3
	Art. III. Wells	CD36:5
37.	Reserved	CD37:1
38.	Zoning	CD38:1
	Art. I. Title, Purpose, & Applicability	CD38:5
	Art. II. Definitions & Rules of Measurement	CD38:8
	Art. III. Zones & Zoning Map	CD38:36
	Art. IV. Residential Zones	CD38:39

Chapter		Page
	Art. V. Mixed-Use & Commercial Zones	CD38:50
	Art. VI. Downtown Form-Based Code	CD38:59
	Art. VII. Industrial Zones	CD38:59
	Art. VIII. Special Purpose Zones	CD38:64
	Art. IX. Uses	CD38:115
	Art. X. General Development Standards	CD38:169
	Art. XI. Accessory Structures	CD38:177
	Art. XII. Off-Street Parking & Loading	CD38:183
	Art. XIII. Landscape	CD38:198
	Art. XIV. Administrators	CD38:208
	Art. XV. Application Process	CD38:209
	Art. XVI. Zoning Approvals	CD38:216
	Art. XVII. Short-Term Vacation Rentals	CD38:232
	Art. XVIII. Nonconformities	CD38:239
	Art. XIX. Voluntary Incentives Program	CD38:244
	Art. XX. Enforcement	CD38:250
App. A.	City Boundaries	CDA:1
Code Comparative Table		CCT:1

Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

Page No.	Supp. No.	Page No.	Supp. No.
VOLUME I		SH:21, SH:22	28
PART I		SH:23, SH:24	30
Title Page	26	SH:25, SH:26	33
vii, viii	OC	SH:27, SH:28	35
ix	OC	SH:29, SH:30	37
xv, xvi	40	SH:31, SH:32	39
xvii, xviii	40	SH:33, SH:34	40
xix, xx	40	CHT:1, CHT:2	OC
xxi, xxii	40	CHT1:1	OC
xxiii, xxiv	40	CHT1:3, CHT1:4	4
xxv, xxvi	40	CHT1:5, CHT1:6	4
SH:1, SH:2	3	CHT2:1	OC
SH:3, SH:4	3	CHT2:3, CHT2:4	OC
SH:5, SH:6	6	CHT2:5, CHT2:6	OC
SH:7, SH:8	8	CHT2:7, CHT2:8	OC
SH:9, SH:10	35	CHT2:9, CHT2:10	OC
SH:11, SH:12	14	CHT3:1, CHT3:2	35
SH:13, SH:14	16	CHT3:3, CHT3:4	36
SH:15, SH:16	20	CHT3:5, CHT3:6	35
SH:17, SH:18	22	CHT3:7, CHT3:8	35
SH:19, SH:20	26	CHT3:9, CHT3:10	35

Page No.	Supp. No.	Page No.	Supp. No.
CHT4:1	16	CHT13:7, CHT13:8	22
CHT4:3, CHT4:4	16	CHT14:1	OC
CHT4:5, CHT4:6	16	CHT14:3, CHT14:4	OC
CHT4:7	16	CHT14:5, CHT14:6	OC
CHT5:1	OC	CHT14:7, CHT14:8	OC
CHT5:3, CHT5:4	OC	CHT15:1, CHT15:2	OC
CHT5:5, CHT5:6	OC	CHT15:3, CHT15:4	OC
CHT5:7	OC	CHT15:5, CHT15:6	OC
CHT6:1, CHT6:2	OC	CHT15:7, CHT15:8	OC
CHT6:3, CHT6:4	OC	CHT15:9	OC
CHT6:5, CHT6:6	OC	CHT16:1	OC
CHT6:7, CHT6:8	OC	CHT16:3	OC
CHT6:9, CHT6:10	OC	CHT17:1	OC
CHT6:11, CHT6:12	OC	CHT18:1	OC
CHT7:1	OC	CHTA:1	35
CHT7:3	OC	CHTA:3, CHTA:4	35
CHT8:1, CHT8:2	35	CHTA:5, CHTA:6	35
CHT8:3, CHT8:4	35	CHTA:7, CHTA:8	35
CHT8:5, CHT8:6	35	CHTA:9, CHTA:10	35
CHT8:7, CHT8:8	35	CHTA:11, CHTA:12	35
CHT8:9	35	CHTA:13, CHTA:14	35
CHT9:1	OC	CHTA:15, CHTA:16	35
CHT9:3	OC	CHTA:17, CHTA:18	35
CHT10:1	OC	CHTA:19, CHTA:20	35
CHT10:3, CHT10:4	OC	CHTA:21, CHTA:22	35
CHT10:5, CHT10:6	OC	CHTA:23, CHTA:24	35
CHT10:7, CHT10:8	OC	CHTA:25, CHTA:26	35
CHT10:9, CHT10:10	OC	CHTA:27, CHTA:28	35
CHT10:11, CHT10:12	OC	CHTA:29, CHTA:30	35
CHT11:1	OC	CHTA:31, CHTA:32	36
CHT11:3, CHT11:4	OC	PART II	
CHT11:5, CHT11:6	OC	CD1:1	15
CHT12:1	OC	CD1:3, CD1:4	OC
CHT12:3, CHT12:4	OC	CD1:5, CD1:6	15
CHT12:5	OC	CD1:7	OC
CHT13:1, CHT13:2	22	CD2:1, CD2:2	15
CHT13:3, CHT13:4	OC	CD2:3, CD2:4	26
CHT13:5, CHT13:6	22	CD2:5, CD2:6	29

Page No.	Supp. No.	Page No.	Supp. No.
CD2:7, CD2:8	30	CD2:111, CD2:112	OC
CD2:11, CD2:12	24	CD2:113, CD2:114	OC
CD2:13, CD2:14	24	CD2:115, CD2:116	24
CD2:14.1	24	CD2:117, CD2:118	35
CD2:15, CD2:16	17	CD2:119, CD2:120	35
CD2:16.1	11	CD2:121, CD2:122	35
CD2:17, CD2:18	OC	CD2:123, CD2:124	35
CD2:19, CD2:20	36	CD2:125, CD2:126	35
CD2:21, CD2:22	36	CD2:127, CD2:128	35
CD2:22.1	36	CD2:129, CD2:130	35
CD2:23, CD2:24	3	CD2:131, CD2:132	35
CD2:25, CD2:26	3	CD2:133, CD2:134	35
CD2:27, CD2:28	3	CD2:135, CD2:136	35
CD2:29, CD2:30	29	CD2:137, CD2:138	35
CD2:30.1	26	CD2:139, CD2:140	35
CD2:31, CD2:32	4	CD2:141, CD2:142	35
CD2:33, CD2:34	33	CD2:143, CD2:144	35
CD2:35, CD2:36	4	CD2:145, CD2:146	35
CD2:36.1	4	CD2:147, CD2:148	35
CD2:37, CD2:38	3	CD2:149, CD2:150	35
CD2:39, CD2:40	33	CD2:151, CD2:152	35
CD2:41, CD2:42	33	CD2:153	35
CD2:43, CD2:44	3	CD3:1, CD3:2	38
CD2:45, CD2:46	4	CD3:3, CD3:4	38
CD2:47, CD2:48	12	CD3:5, CD3:6	38
CD2:49, CD2:50	14	CD3:7, CD3:8	38
CD2:51, CD2:52	33	CD3:9, CD3:10	38
CD2:52.1	33	CD3:11, CD3:12	38
CD2:53, CD2:54	20	CD3:13, CD3:14	38
CD2:55, CD2:56	20	CD3:15, CD3:16	38
CD2:57, CD2:58	16	CD3:17, CD3:18	38
CD2:59, CD2:60	16	CD3:19, CD3:20	38
CD2:61, CD2:62	20	CD3:21, CD3:22	40
CD2:62.1, CD2:62.2	16	CD3:23, CD3:24	40
CD2:62.3	16	CD3:25, CD3:26	38
CD2:63, CD2:64	11	CD3:27, CD3:28	38
CD2:65, CD2:66	11	CD3:29, CD3:30	38
CD2:67	11	CD3:31, CD3:32	38

Page No.	Supp. No.	Page No.	Supp. No.
CD3:33, CD3:34	38	CD4:21, CD4:22	39
CD3:35, CD3:36	38	CD4:23, CD4:24	39
CD3:37, CD3:38	38	CD4:25, CD4:26	39
CD3:39, CD3:40	38	CD4:27, CD4:28	39
CD3:41, CD3:42	38	CD4:29, CD4:30	39
CD3:43, CD3:44	38	CD4:31, CD4:32	39
CD3:45, CD3:46	38	CD4:33, CD4:34	39
CD3:47, CD3:48	38	CD4:35, CD4:36	39
CD3:49, CD3:50	38	CD4:37, CD4:38	39
CD3:51, CD3:52	38	CD4:39, CD4:40	39
CD3:53, CD3:54	38	CD4:41, CD4:42	39
CD3:55, CD3:56	38	CD4:43, CD4:44	39
CD3:57, CD3:58	38	CD4:45, CD4:46	39
CD3:59, CD3:60	38	CD4:47, CD4:48	39
CD3:61, CD3:62	38	CD4:49, CD4:50	39
CD3:63, CD3:64	38	CD4:51, CD4:52	39
CD3:65, CD3:66	38	CD4:53, CD4:54	39
CD3:67, CD3:68	38	CD4:55, CD4:56	39
CD3:69, CD3:70	38	CD4:57, CD4:58	39
CD3:71, CD3:72	38	CD4:59, CD4:60	39
CD3:73, CD3:74	38	CD4:61, CD4:62	39
CD3:75, CD3:76	38	CD4:63, CD4:64	39
CD3:77, CD3:78	38	CD4:65, CD4:66	39
CD3:79, CD3:80	38	CD4:67, CD4:68	39
CD3:81, CD3:82	38	CD4:69, CD4:70	39
CD3:83, CD3:84	38	CD4:70.1	39
CD3:85, CD3:86	38	CD4:71, CD4:72	36
CD3:87, CD3:88	38	CD4:73, CD4:74	36
CD4:1, CD4:2	36	CD4:75, CD4:76	36
CD4:3, CD4:4	36	CD4:77, CD4:78	36
CD4:5, CD4:6	36	CD4:79, CD4:80	36
CD4:7, CD4:8	36	CD4:81, CD4:82	36
CD4:9, CD4:10	36	CD4:83, CD4:84	36
CD4:11, CD4:12	36	CD4:85, CD4:86	36
CD4:13, CD4:14	36	CD4:87, CD4:88	36
CD4:15, CD4:16	36	CD4:89, CD4:90	36
CD4:17, CD4:18	36	CD4:91, CD4:92	36
CD4:19, CD4:20	39	CD4:93, CD4:94	36

Page No.	Supp. No.	Page No.	Supp. No.
CD4:95, CD4:96	36	CD4:171, CD4:172	36
CD4:97, CD4:98	36	CD4:173, CD4:174	36
CD4:99, CD4:100	36	CD4:175, CD4:176	36
CD4:101, CD4:102	36	CD4:177, CD4:178	36
CD4:103, CD4:104	36	CD4:179, CD4:180	36
CD4:105, CD4:106	36	CD4:181, CD4:182	36
CD4:107, CD4:108	36	CD4:183, CD4:184	36
CD4:109, CD4:110	36	CD4:185, CD4:186	36
CD4:111, CD4:112	36	CD4:187, CD4:188	36
CD4:113, CD4:114	36	CD4:189, CD4:190	36
CD4:115, CD4:116	36	CD4:191, CD4:192	36
CD4:117, CD4:118	36	CD4:193, CD4:194	36
CD4:119, CD4:120	36	CD4:195, CD4:196	36
CD4:121, CD4:122	36	CD4:197, CD4:198	36
CD4:123, CD4:124	36	CD4:199, CD4:200	36
CD4:125, CD4:126	39	CD4:201, CD4:202	36
CD4:127, CD4:128	36	CD4:203, CD4:204	36
CD4:129, CD4:130	36	CD4:205, CD4:206	36
CD4:131, CD4:132	36	CD4:207, CD4:208	36
CD4:133, CD4:134	36	CD4:209, CD4:210	36
CD4:135, CD4:136	36	CD4:211, CD4:212	36
CD4:137, CD4:138	36	CD4:213, CD4:214	36
CD4:139, CD4:140	36	CD4:215, CD4:216	36
CD4:141, CD4:142	36	CD4:217, CD4:218	36
CD4:143, CD4:144	36	CD4:219, CD4:220	36
CD4:145, CD4:146	36	CD4:221, CD4:222	36
CD4:147, CD4:148	36	CD4:223, CD4:224	36
CD4:149, CD4:150	36	CD4:225, CD4:226	36
CD4:151, CD4:152	36	CD4:227, CD4:228	36
CD4:153, CD4:154	36	CD4:229, CD4:230	36
CD4:155, CD4:156	36	CD4:231, CD4:232	39
CD4:157, CD4:158	36	CD4:233, CD4:234	36
CD4:159, CD4:160	36	CD4:235, CD4:236	36
CD4:161, CD4:162	36	CD4:237, CD4:238	36
CD4:163, CD4:164	36	CD4:239, CD4:240	36
CD4:165, CD4:166	36	CD4:241, CD4:242	36
CD4:167, CD4:168	36	CD4:243, CD4:244	36
CD4:169, CD4:170	36	CD4:245, CD4:246	36

Page No.	Supp. No.	Page No.	Supp. No.
CD4:247, CD4:248	36	CD6:1	15
CD4:249, CD4:250	36	CD6:3, CD6:4	15
CD4:251, CD4:252	36	CD6:5, CD6:6	15
CD4:253, CD4:254	36	CD7:1, CD7:2	38
CD4:255, CD4:256	36	CD7:3, CD7:4	38
CD4:257, CD4:258	36	CD7:5	38
CD4:259, CD4:260	36	CD7:7, CD7:8	2
CD4:261, CD4:262	36	CD7:9, CD7:10	2
CD4:263, CD4:264	36	CD7:11, CD7:12	2
CD4:265, CD4:266	36	CD7:13, CD7:14	2
CD4:267, CD4:268	36	CD7:15, CD7:16	4
CD4:269, CD4:270	36	CD7:16.1	4
CD4:271, CD4:272	36	CD7:17, CD7:18	2
CD4:273, CD4:274	39	CD7:18.1, CD7:18.2	2
CD4:275, CD4:276	39	CD7:18.3	2
CD4:277, CD4:278	39	CD7:19, CD7:20	OC
CD4:279, CD4:280	39	CD7:21, CD7:22	OC
CD4:281, CD4:282	39	CD7:23, CD7:24	2
CD5:1, CD5:2	36	CD7:25, CD7:26	2
CD5:3, CD5:4	36	CD7:27, CD7:28	2
CD5:5, CD5:6	36	CD7:29, CD7:30	2
CD5:7, CD5:8	36	CD7:31, CD7:32	38
CD5:9, CD5:10	36	CD7:33, CD7:34	38
CD5:11, CD5:12	36	CD7:35, CD7:36	38
CD5:13, CD5:14	36	CD7:36.1, CD7:36.2	38
CD5:15, CD5:16	36	CD7:36.3	38
CD5:17, CD5:18	36	CD7:37, CD7:38	2
CD5:19, CD5:20	36	CD7:39, CD7:40	2
CD5:21, CD5:22	36	CD7:41, CD7:42	2
CD5:23, CD5:24	36	CD7:43, CD7:44	2
CD5:25, CD5:26	36	CD7:45, CD7:46	2
CD5:27, CD5:28	36	CD7:47, CD7:48	2
CD5:29, CD5:30	36	CD7:49, CD7:50	2
CD5:31, CD5:32	36	CD7:51	2
CD5:33, CD5:34	36	CD8:1	11
CD5:35, CD5:36	36	CD8:3, CD8:4	11
CD5:37, CD5:38	36	CD8:5, CD8:6	11
CD5:39	36	CD8:7, CD8:8	11

Page No.	Supp. No.	Page No.	Supp. No.
CD8:9, CD8:10	11	CD11:7, CD11:8	OC
CD8:11, CD8:12	11	CD11:9, CD11:10	OC
CD8:13, CD8:14	11	CD11:11, CD11:12	15
CD8:15	11	CD11:13, CD11:14	15
CD9:1	12	CD11:15, CD11:16	OC
CD9:3, CD9:4	29	CD11:17, CD11:18	29
CD9:5, CD9:6	29	CD11:19, CD11:20	29
CD9:7	29	CD11:21, CD11:22	29
CD10:1, CD10:2	35	CD11:23, CD11:24	OC
CD10:3, CD10:4	36	CD11:25, CD11:26	OC
CD10:5, CD10:6	36	CD11:27, CD11:28	OC
CD10:7, CD10:8	36	CD11:29, CD11:30	OC
CD10:9, CD10:10	36	CD11:31, CD11:32	OC
CD10:11, CD10:12	40	CD11:33, CD11:34	OC
CD10:12.1	40	CD11:35, CD11:36	OC
CD10:13, CD10:14	35	CD11:37, CD11:38	OC
CD10:15, CD10:16	35	CD11:39, CD11:40	OC
CD10:17, CD10:18	35	CD11:41, CD11:42	OC
CD10:19, CD10:20	35	CD11:43, CD11:44	14
CD10:21, CD10:22	35	CD11:45, CD11:46	14
CD10:23, CD10:24	35	CD11:47, CD11:48	OC
CD10:25, CD10:26	35	CD11:49, CD11:50	OC
CD10:27, CD10:28	35	CD11:51, CD11:52	OC
CD10:29, CD10:30	35	CD11:53, CD11:54	OC
CD10:31, CD10:32	35	CD11:55, CD11:56	OC
CD10:33, CD10:34	35	CD11:57, CD11:58	OC
CD10:35, CD10:36	35	CD11:59, CD11:60	OC
CD10:37, CD10:38	35	CD11:61, CD11:62	OC
CD10:39, CD10:40	35	CD11:63, CD11:64	OC
CD10:41, CD10:42	35	CD11:65, CD11:66	OC
CD10:43, CD10:44	35	CD11:67, CD11:68	38
CD10:45, CD10:46	35	CD11:69, CD11:70	38
CD10:47	35	CD11:70.1	38
CD11:1, CD11:2	15	CD11:71, CD11:72	15
CD11:2.1	15	CD11:73, CD11:74	5
CD11:3, CD11:4	OC	CD11:75, CD11:76	5
CD11:5, CD11:6	5	CD11:77, CD11:78	32
CD11:6.1	32	CD11:79	32

Page No.	Supp. No.	Page No.	Supp. No.
CD11:85, CD11:86	18	CD16:6.3, CD16:6.4	38
CD11:87, CD11:88	30	CD16:7, CD16:8	15
CD11:89	30	CD16:9, CD16:10	15
CD12:1	15	CD16:11, CD16:12	29
CD12:3, CD12:4	15	CD16:13, CD16:14	29
CD12:5, CD12:6	26	CD16:14.1, CD16:14.2	29
CD12:7, CD12:8	11	CD16:14.3, CD16:14.4	22
CD12:9	25	CD16:14.5, CD16:14.6	22
CD13:1	OC	CD16:15, CD16:16	OC
CD13:3, CD13:4	OC	CD16:17, CD16:18	OC
CD13:5, CD13:6	OC	CD17:1	32
VOLUME II		CD17:3, CD17:4	32
Title Page	26	CD17:4.1	32
xv, xvi	40	CD17:5, CD17:6	31
xvii, xviii	40	CD17:7, CD17:8	OC
xix, xx	40	CD17:9, CD17:10	32
xxi, xxii	40	CD17:11	32
xxiii, xxiv	40	CD18:1, CD18:2	17
xxv, xxvi	40	CD18:3	17
CD14:1, CD14:2	15	CD18:5, CD18:6	15
CD14:3, CD14:4	38	CD18:7, CD18:8	15
CD14:5, CD14:6	31	CD18:9, CD18:10	15
CD14:7, CD14:8	OC	CD18:11, CD18:12	15
CD14:9, CD14:10	25	CD18:13, CD18:14	15
CD14:11, CD14:12	25	CD18:15, CD18:16	15
CD14:13, CD14:14	25	CD18:17, CD18:18	15
CD14:14.1	25	CD18:19, CD18:20	15
CD14:15, CD14:16	1	CD18:21, CD18:22	15
CD14:17, CD14:18	1	CD18:23, CD18:24	17
CD14:19, CD14:20	1	CD18:25, CD18:26	17
CD15:1	OC	CD18:27, CD18:28	17
CD15:3, CD15:4	OC	CD19:1, CD19:2	OC
CD15:5, CD15:6	OC	CD19:3, CD19:4	31
CD15:7, CD15:8	OC	CD19:5, CD19:6	31
CD16:1, CD16:2	38	CD19:7, CD19:8	31
CD16:3	38	CD19:9, CD19:10	19
CD16:5, CD16:6	38	CD19:11, CD19:12	OC
CD16:6.1, CD16:6.2	38	CD19:13, CD19:14	OC

Page No.	Supp. No.	Page No.	Supp. No.
CD19:15	OC	CD21:51, CD21:52	38
CD20:1, CD20:2	15	CD21:53, CD21:54	38
CD20:2.1	14	CD21:55	38
CD20:3, CD20:4	OC	CD22:1	12
CD20:5, CD20:6	15	CD22:3, CD22:4	12
CD20:7, CD20:8	OC	CD22:5	12
CD20:9, CD20:10	OC	CD22.5:1, CD22.5:2	OC
CD20:11, CD20:12	OC	CD22.5:3, CD22.5:4	31
CD20:13, CD20:14	14	CD22.5:5, CD22.5:6	31
CD20:15, CD20:16	14	CD22.5:7, CD22.5:8	OC
CD20:17, CD20:18	14	CD22.5:9, CD22.5:10	OC
CD20:19	14	CD22.5:11, CD22.5:12	OC
CD21:1, CD21:2	17	CD22.5:13, CD22.5:14	OC
CD21:3, CD21:4	17	CD22.5:15	OC
CD21:5, CD21:6	17	CD23:1	OC
CD21:7, CD21:8	38	CD23:3, CD23:4	36
CD21:9, CD21:10	38	CD23:5, CD23:6	36
CD21:11, CD21:12	38	CD23:7	36
CD21:13, CD21:14	17	CD24:1, CD24:2	40
CD21:15, CD21:16	34	CD24:3, CD24:4	40
CD21:16.1	34	CD24:5, CD24:6	40
CD21:17, CD21:18	17	CD24:7, CD24:8	40
CD21:19, CD21:20	17	CD24:9, CD24:10	25
CD21:21, CD21:22	17	CD24:11, CD24:12	25
CD21:23, CD21:24	17	CD24:13, CD24:14	25
CD21:25, CD21:26	17	CD24:14.1	25
CD21:27, CD21:28	17	CD24:15, CD24:16	17
CD21:29, CD21:30	38	CD24:17, CD24:18	17
CD21:31, CD21:32	38	CD24:18.1	17
CD21:33, CD21:34	38	CD24:19, CD24:20	OC
CD21:35, CD21:36	38	CD24:21, CD24:22	OC
CD21:37, CD21:38	38	CD24:23, CD24:24	OC
CD21:39, CD21:40	38	CD24:25, CD24:26	OC
CD21:41, CD21:42	38	CD24:27, CD24:28	19
CD21:43, CD21:44	38	CD24:29, CD24:30	19
CD21:45, CD21:46	38	CD24:30.1, CD24:30.2	19
CD21:47, CD21:48	38	CD24:31, CD24:32	OC
CD21:49, CD21:50	38	CD24:33, CD24:34	OC

Page No.	Supp. No.	Page No.	Supp. No.
CD24:35, CD24:36	1	CD24:107, CD24:108	40
CD24:37, CD24:38	OC	CD24:109, CD24:110	40
CD24:39, CD24:40	OC	CD24:111, CD24:112	40
CD24:41, CD24:42	OC	CD24:113, CD24:114	40
CD24:43, CD24:44	5	CD24:115, CD24:116	40
CD24:44.1	5	CD24:117	40
CD24:45, CD24:46	OC	CD25:1, CD25:2	37
CD24:47, CD24:48	2	CD25:3	37
CD24:49, CD24:50	2	CD25:5, CD25:6	37
CD24:51, CD24:52	2	CD25:7, CD25:8	37
CD24:53, CD24:54	1	CD25:9, CD25:10	37
CD24:55, CD24:56	36	CD25:11, CD25:12	37
CD24:57, CD24:58	36	CD25:13, CD25:14	37
CD24:59, CD24:60	36	CD25:14.1, CD25:14.2	37
CD24:61, CD24:62	36	CD25:14.3, CD25:14.4	37
CD24:63, CD24:64	36	CD25:14.5, CD25:14.6	37
CD24:64.1	36	CD25:15, CD25:16	OC
CD24:65, CD24:66	40	CD25:17, CD25:18	OC
CD24:67, CD24:68	40	CD25:19, CD25:20	11
CD24:69, CD24:70	40	CD25:20.1	11
CD24:71, CD24:72	40	CD25:21, CD25:22	OC
CD24:73, CD24:74	40	CD25:23, CD25:24	11
CD24:75, CD24:76	40	CD25:25, CD25:26	11
CD24:77, CD24:78	40	CD25:27, CD25:28	32
CD24:79, CD24:80	40	CD25:29, CD25:30	32
CD24:81, CD24:82	40	CD26:1, CD26:2	34
CD24:83, CD24:84	40	CD26:3, CD26:4	OC
CD24:85, CD24:86	40	CD26:5, CD26:6	OC
CD24:87, CD24:88	40	CD26:7, CD26:8	22
CD24:89, CD24:90	40	CD26:9, CD26:10	35
CD24:91, CD24:92	40	CD26:11, CD26:12	35
CD24:93, CD24:94	40	CD26:13, CD26:14	35
CD24:95, CD24:96	40	CD26:15, CD26:16	35
CD24:97, CD24:98	40	CD26:17, CD26:18	35
CD24:99, CD24:100	40	CD26:19, CD26:20	35
CD24:101, CD24:102	40	CD26:21, CD26:22	35
CD24:103, CD24:104	40	CD26:23	35
CD24:105, CD24:106	40	CD27:1, CD27:2	4

Page No.	Supp. No.	Page No.	Supp. No.
CD27:3, CD27:4	31	CD31:49, CD31:50	2
CD27:5, CD27:6	31	CD31:51, CD31:52	2
CD27:7, CD27:8	2	CD31:53, CD31:54	9
CD27:9, CD27:10	19	CD31:55, CD31:56	9
CD27:10.1	19	CD31:57, CD31:58	9
CD27:11, CD27:12	2	CD31:59, CD31:60	2
CD27:13, CD27:14	2	CD31:61, CD31:62	2
CD28:1	15	CD31:63, CD31:64	2
CD29:1	OC	CD31:64.1, CD31:64.2	2
CD29:3, CD29:4	OC	CD31:64.3, CD31:64.4	9
CD30:1	OC	CD31:65, CD31:66	12
CD30:3	OC	CD31:67, CD31:68	18
CD31:1, CD31:2	12	CD31:69, CD31:70	12
CD31:3, CD31:4	24	CD31:71, CD31:72	12
CD31:5	29	CD31:73, CD31:74	18
CD31:7, CD31:8	31	CD31:75, CD31:76	12
CD31:9, CD31:10	31	CD31:77, CD31:78	39
CD31:11, CD31:12	30	CD31:79, CD31:80	39
CD31:12.1	30	CD31:81, CD31:82	39
CD31:13, CD31:14	9	CD31:83, CD31:84	39
CD31:15, CD31:16	38	CD31:85, CD31:86	39
CD31:17, CD31:18	38	CD31:87, CD31:88	39
CD31:19, CD31:20	38	CD31:89, CD31:90	39
CD31:21, CD31:22	38	CD31:91, CD31:92	39
CD31:23, CD31:24	38	CD31:92.1, CD31:92.2	39
CD31:25, CD31:26	38	CD31:92.3, CD31:92.4	39
CD31:27, CD31:28	38	CD31:93, CD31:94	12
CD31:29, CD31:30	38	CD31:95, CD31:96	12
CD31:31, CD31:32	38	CD31:97, CD31:98	12
CD31:33, CD31:34	38	CD31:99, CD31:100	12
CD31:35, CD31:36	38	CD31:101, CD31:102	12
CD31:37, CD31:38	38	CD31:103, CD31:104	12
CD31:38.1	38	CD31:105, CD31:106	38
CD31:39, CD31:40	2	CD31:107, CD31:108	24
CD31:41, CD31:42	2	CD31:108.1	24
CD31:43, CD31:44	2	CD31:109, CD31:110	29
CD31:45, CD31:46	2	CD31:111, CD31:112	12
CD31:47, CD31:48	2	CD31:113, CD31:114	24

Page No.	Supp. No.	Page No.	Supp. No.
CD31:114.1	24	CD32:69, CD32:70	38
CD31:115	12	CD32:71, CD32:72	38
CD32:1, CD32:2	38	CD32:73, CD32:74	38
CD32:3, CD32:4	38	CD32:75	38
CD32:5	38	CD33:1, CD33:2	OC
CD32:7, CD32:8	35	CD33:3, CD33:4	OC
CD32:9, CD32:10	35	CD33:5, CD33:6	OC
CD32:11, CD32:12	35	CD33:7, CD33:8	OC
CD32:13, CD32:14	35	CD33:9, CD33:10	OC
CD32:15, CD32:16	35	CD33:11, CD33:12	OC
CD32:17, CD32:18	35	CD33:13, CD33:14	OC
CD32:18.1, CD32:18.2	35	CD33:15, CD33:16	OC
CD32:18.3	35	CD33:17, CD33:18	OC
CD32:19, CD32:20	OC	CD33:19, CD33:20	OC
CD32:21, CD32:22	3	CD33:21, CD33:22	OC
CD32:23, CD32:24	3	CD33:23	OC
CD32:25, CD32:26	3	CD34:1, CD34:2	OC
CD32:27, CD32:28	2	CD34:3, CD34:4	OC
CD32:29, CD32:30	12	CD34:5, CD34:6	OC
CD32:31, CD32:32	12	CD34:7, CD34:8	OC
CD32:33, CD32:34	12	CD35:1, CD35:2	15, Rev.
CD32:35, CD32:36	12	CD35:3, CD35:4	15, Rev.
CD32:37, CD32:38	35	CD35:5	15, Rev.
CD32:39, CD32:40	35	CD35:7, CD35:8	17
CD32:41, CD32:42	35	CD35:8.1	17
CD32:43, CD32:44	35	CD35:9, CD35:10	15, Rev.
CD32:45, CD32:46	35	CD35:11, CD35:12	15, Rev.
CD32:47, CD32:48	35	CD35:13, CD35:14	40
CD32:49, CD32:50	35	CD35:14.1	40
CD32:51, CD32:52	35	CD35:15, CD35:16	15, Rev.
CD32:53, CD32:54	35	CD35:17, CD35:18	15, Rev.
CD32:55, CD32:56	38	CD35:19, CD35:20	15, Rev.
CD32:57, CD32:58	38	CD35:21, CD35:22	15, Rev.
CD32:59, CD32:60	38	CD35:23, CD35:24	15, Rev.
CD32:61, CD32:62	38	CD35:25, CD35:26	15, Rev.
CD32:63, CD32:64	38	CD35:27, CD35:28	15, Rev.
CD32:65, CD32:66	38	CD35:29, CD35:30	35
CD32:67, CD32:68	38	CD35:31, CD35:32	35

Page No.	Supp. No.	Page No.	Supp. No.
CD35:33, CD35:34	35	CD38:15, CD38:16	40
CD35:35, CD35:36	35	CD38:17, CD38:18	40
CD35:37, CD35:38	35	CD38:19, CD38:20	40
CD35:39, CD35:40	35	CD38:21, CD38:22	40
CD35:41, CD35:42	35	CD38:23, CD38:24	40
CD35:43, CD35:44	39	CD38:25, CD38:26	40
CD35:45, CD35:46	39	CD38:27, CD38:28	40
CD35:47, CD35:48	15, Rev.	CD38:29, CD38:30	40
CD35:49, CD35:50	15, Rev.	CD38:31, CD38:32	40
CD35:51, CD35:52	15, Rev.	CD38:33, CD38:34	40
CD35:53, CD35:54	15, Rev.	CD38:35, CD38:36	40
CD35:55, CD35:56	15, Rev.	CD38:37, CD38:38	40
CD35:57, CD35:58	15, Rev.	CD38:39, CD38:40	40
CD35:59, CD35:60	15, Rev.	CD38:41, CD38:42	40
CD35:61, CD35:62	15, Rev.	CD38:43, CD38:44	40
CD35:63, CD35:64	15, Rev.	CD38:45, CD38:46	40
CD35:65, CD35:66	39	CD38:47, CD38:48	40
CD35:67, CD35:68	39	CD38:49, CD38:50	40
CD35:69, CD35:70	39	CD38:51, CD38:52	40
CD35:71, CD35:72	39	CD38:53, CD38:54	40
CD35:73, CD35:74	39	CD38:55, CD38:56	40
CD35:75, CD35:76	39	CD38:57, CD38:58	40
CD35:77, CD35:78	39	CD38:59, CD38:60	40
CD35:79, CD35:80	39	CD38:61, CD38:62	40
CD35:81, CD35:82	39	CD38:63, CD38:64	40
CD35:83, CD35:84	39	CD38:65, CD38:66	40
CD35:85, CD35:86	39	CD38:67, CD38:68	40
CD36:1	OC	CD38:69, CD38:70	40
CD36:3, CD36:4	OC	CD38:71, CD38:72	40
CD36:5, CD36:6	OC	CD38:73, CD38:74	40
CD37:1	OC	CD38:75, CD38:76	40
CD38:1, CD38:2	40	CD38:77, CD38:78	40
CD38:3	40	CD38:79, CD38:80	40
CD38:5, CD38:6	40	CD38:81, CD38:82	40
CD38:7, CD38:8	40	CD38:83, CD38:84	40
CD38:9, CD38:10	40	CD38:85, CD38:86	40
CD38:11, CD38:12	40	CD38:87, CD38:88	40
CD38:13, CD38:14	40	CD38:89, CD38:90	40

Page No.	Supp. No.	Page No.	Supp. No.
CD38:91, CD38:92	40	CD38:167, CD38:168	40
CD38:93, CD38:94	40	CD38:169, CD38:170	40
CD38:95, CD38:96	40	CD38:171, CD38:172	40
CD38:97, CD38:98	40	CD38:173, CD38:174	40
CD38:99, CD38:100	40	CD38:175, CD38:176	40
CD38:101, CD38:102	40	CD38:177, CD38:178	40
CD38:103, CD38:104	40	CD38:179, CD38:180	40
CD38:105, CD38:106	40	CD38:181, CD38:182	40
CD38:107, CD38:108	40	CD38:183, CD38:184	40
CD38:109, CD38:110	40	CD38:185, CD38:186	40
CD38:111, CD38:112	40	CD38:187, CD38:188	40
CD38:113, CD38:114	40	CD38:189, CD38:190	40
CD38:115, CD38:116	40	CD38:191, CD38:192	40
CD38:117, CD38:118	40	CD38:193, CD38:194	40
CD38:119, CD38:120	40	CD38:195, CD38:196	40
CD38:121, CD38:122	40	CD38:197, CD38:198	40
CD38:123, CD38:124	40	CD38:199, CD38:200	40
CD38:125, CD38:126	40	CD38:201, CD38:202	40
CD38:127, CD38:128	40	CD38:203, CD38:204	40
CD38:129, CD38:130	40	CD38:205, CD38:206	40
CD38:131, CD38:132	40	CD38:207, CD38:208	40
CD38:133, CD38:134	40	CD38:209, CD38:210	40
CD38:135, CD38:136	40	CD38:211, CD38:212	40
CD38:137, CD38:138	40	CD38:213, CD38:214	40
CD38:139, CD38:140	40	CD38:215, CD38:216	40
CD38:141, CD38:142	40	CD38:217, CD38:218	40
CD38:143, CD38:144	40	CD38:219, CD38:220	40
CD38:145, CD38:146	40	CD38:221, CD38:222	40
CD38:147, CD38:148	40	CD38:223, CD38:224	40
CD38:149, CD38:150	40	CD38:225, CD38:226	40
CD38:151, CD38:152	40	CD38:227, CD38:228	40
CD38:153, CD38:154	40	CD38:229, CD38:230	40
CD38:155, CD38:156	40	CD38:231, CD38:232	40
CD38:157, CD38:158	40	CD38:233, CD38:234	40
CD38:159, CD38:160	40	CD38:235, CD38:236	40
CD38:161, CD38:162	40	CD38:237, CD38:238	40
CD38:163, CD38:164	40	CD38:239, CD38:240	40
CD38:165, CD38:166	40	CD38:241, CD38:242	40

Page No.	Supp. No.	Page No.	Supp. No.
CD38:243, CD38:244	40	CDA:69, CDA:70	3
CD38:245, CD38:246	40	CDA:71, CDA:72	3
CD38:247, CD38:248	40	CDA:73, CDA:74	3
CD38:249, CD38:250	40	CDA:75, CDA:76	3
CDA:1	3	CDA:77, CDA:78	4
CDA:3, CDA:4	3	CDA:79	4
CDA:5, CDA:6	3	CDA:85, CDA:86	3
CDA:7, CDA:8	3	CDA:87, CDA:88	3
CDA:9, CDA:10	3	CDA:89, CDA:90	3
CDA:11, CDA:12	3	CDA:91, CDA:92	3
CDA:13, CDA:14	3	CDA:93, CDA:94	3
CDA:15, CDA:16	3	CDA:95, CDA:96	3
CDA:17, CDA:18	3	CDA:97, CDA:98	3
CDA:19, CDA:20	3	CDA:99, CDA:100	3
CDA:21, CDA:22	3	CDA:101, CDA:102	3
CDA:23, CDA:24	3	CDA:103, CDA:104	3
CDA:25, CDA:26	3	CDA:105, CDA:106	3
CDA:27, CDA:28	3	CDA:107, CDA:108	3
CDA:29, CDA:30	3	CDA:109, CDA:110	3
CDA:31, CDA:32	3	CDA:111, CDA:112	3
CDA:33, CDA:34	3	CCT:1, CCT:2	27
CDA:35, CDA:36	3	CCT:3, CCT:4	14
CDA:37, CDA:38	3	CCT:5, CCT:6	14
CDA:39, CDA:40	3	CCT:7, CCT:8	12
CDA:41, CDA:42	3	CCT:9, CCT:10	12
CDA:43, CDA:44	3	CCT:11, CCT:12	15
CDA:45, CDA:46	3	CCT:13, CCT:14	18
CDA:47, CDA:48	3	CCT:15, CCT:16	27
CDA:49, CDA:50	3	CCT:17, CCT:18	33
CDA:51, CDA:52	3	CCT:19, CCT:20	37
CDA:53, CDA:54	3	CCT:21, CCT:22	39
CDA:55, CDA:56	3	CCT:23	40
CDA:57, CDA:58	3		
CDA:59, CDA:60	3		
CDA:61, CDA:62	3		
CDA:63, CDA:64	3		
CDA:65, CDA:66	3		
CDA:67, CDA:68	3		

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Included/ Omitted	Supp. No.
12888	Included	1
12889	Included	1
12890	Omitted	1
12891	Included	1
12892	Included	1
12893	Omitted	1
12894	Omitted	1
12895	Omitted	1
12896	Included	1
12898	Omitted	1
12899	Included	1
12900	Included	1
12901	Omitted	1
12904	Omitted	1
12905	Omitted	1
12906	Omitted	1
12907	Omitted	1
12908	Omitted	1
12909	Omitted	1
12910	Omitted	1
12911	Included	1
12912	Omitted	1
12913	Omitted	1
12914	Omitted	1
12915	Omitted	1
12916	Omitted	1
12917	Omitted	1
12923	Omitted	1
12928	Included	1
12929	Omitted	1
12930	Included	1
12931	Omitted	1
12932	Included	1

Ord. No.	Included/ Omitted	Supp. No.
12933	Included	1
12934	Omitted	1
12935	Omitted	1
12936	Omitted	1
12937	Omitted	1
12938	Omitted	1
12939	Included	1
12940	Included	1
12941	Included	1
28189(Res.)	Omitted	1
28190(Res.)	Omitted	1
28191(Res.)	Omitted	1
28192(Res.)	Omitted	1
28193(Res.)	Omitted	1
28194(Res.)	Omitted	1
28195(Res.)	Omitted	1
28196(Res.)	Omitted	1
28197(Res.)	Omitted	1
28199(Res.)	Omitted	1
28200(Res.)	Omitted	1
28201(Res.)	Omitted	1
28202(Res.)	Omitted	1
28203(Res.)	Omitted	1
28204(Res.)	Omitted	1
28205(Res.)	Omitted	1
28206(Res.)	Omitted	1
28207(Res.)	Omitted	1
28208(Res.)	Omitted	1
28209(Res.)	Omitted	1
28210(Res.)	Omitted	1
28211(Res.)	Omitted	1
28212(Res.)	Omitted	1
28213(Res.)	Omitted	1
28214(Res.)	Omitted	1
28215(Res.)	Omitted	1
28216(Res.)	Omitted	1
28217(Res.)	Omitted	1
28218(Res.)	Omitted	1
28219(Res.)	Omitted	1
28220(Res.)	Omitted	1
28221(Res.)	Omitted	1
28222(Res.)	Omitted	1
28223(Res.)	Omitted	1
28224(Res.)	Omitted	1
28225(Res.)	Omitted	1
28226(Res.)	Omitted	1

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
28227(Res.)	Omitted	1
28228(Res.)	Omitted	1
28229(Res.)	Omitted	1
28230(Res.)	Omitted	1
28231(Res.)	Omitted	1
28232(Res.)	Omitted	1
28233(Res.)	Omitted	1
28237(Res.)	Omitted	1
28238(Res.)	Omitted	1
28239(Res.)	Omitted	1
28240(Res.)	Omitted	1
28241(Res.)	Omitted	1
28242(Res.)	Omitted	1
12589	Included	2
12599	Included	2
12880	Included	2
12942	Omitted	2
12943	Omitted	2
12944	Omitted	2
12945	Omitted	2
12946	Omitted	2
12947	Omitted	2
12948	Omitted	2
12949	Omitted	2
12950	Included	2
12951	Included	2
12952	Omitted	2
12953	Included	2
12954	Omitted	2
12955	Omitted	2
12956	Omitted	2
12957	Included	2
12958	Included	2
12960	Omitted	2
12961	Omitted	2
12962	Included	2
12963	Included	2
12964	Omitted	2
12965	Omitted	2
12966	Included	2
12967	Included	2
12968	Omitted	2
12969	Omitted	2
12970	Omitted	2
12971	Omitted	2
12972	Omitted	2

Ord. No.	Included/ Omitted	Supp. No.
12974	Included	2
12976	Omitted	2
12977	Omitted	2
12978	Omitted	2
12979	Omitted	2
12980	Included	2
12981	Included	2
12982	Included	2
28246(Res.)	Omitted	2
28247(Res.)	Omitted	2
28248(Res.)	Omitted	2
28249(Res.)	Omitted	2
28250(Res.)	Omitted	2
28251(Res.)	Omitted	2
28252(Res.)	Omitted	2
28253(Res.)	Omitted	2
28254(Res.)	Omitted	2
28255(Res.)	Omitted	2
28256(Res.)	Omitted	2
28257(Res.)	Omitted	2
28258(Res.)	Omitted	2
28259(Res.)	Omitted	2
28260(Res.)	Omitted	2
28261(Res.)	Omitted	2
28262(Res.)	Omitted	2
28263(Res.)	Omitted	2
28264(Res.)	Omitted	2
28265(Res.)	Omitted	2
28266(Res.)	Omitted	2
28267(Res.)	Omitted	2
28268(Res.)	Omitted	2
28269(Res.)	Omitted	2
28270(Res.)	Omitted	2
28271(Res.)	Omitted	2
28272(Res.)	Omitted	2
28273(Res.)	Omitted	2
28274(Res.)	Omitted	2
28275(Res.)	Omitted	2
28276(Res.)	Omitted	2
28277(Res.)	Omitted	2
28278(Res.)	Omitted	2
28279(Res.)	Omitted	2
28280(Res.)	Omitted	2
28281(Res.)	Omitted	2
28282(Res.)	Omitted	2
28283(Res.)	Omitted	2

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
12296	Included	3
12299	Included	3
12556	Included	3
12557	Included	3
12596	Included	3
12597	Included	3
12659	Included	3
12803	Included	3
12897	Included	3
12902	Included	3
12903	Included	3
12959	Included	3
12975	Omitted	3
12983	Included	3
12984	Included	3
12985	Included	3
12986	Included	3
12987	Included	3
12988	Omitted	3
12989	Omitted	3
12990	Included	3
12998	Included	3
13000	Included	3
13001	Omitted	3
13002	Omitted	3
13003	Omitted	4
13004	Omitted	4
13005	Omitted	4
13006	Included	4
12605	Included	4
13007	Included	4
13008	Omitted	4
13009	Omitted	4
13010	Omitted	4
13011	Omitted	4
13012	Omitted	4
13013	Omitted	4
13014	Omitted	4
13015	Included	4
13016	Included	4
13017	Omitted	4
13018	Omitted	4
13019	Omitted	4
13020	Included	4
13021	Omitted	4
13022	Included	4

Ord. No.	Included/ Omitted	Supp. No.
13023	Included	4
13024	Included	4
13025	Included	4
13026	Omitted	4
13027	Included	5
13028	Omitted	5
13029	Omitted	5
13030	Omitted	5
13031	Omitted	5
13032	Omitted	5
13033	Omitted	5
13034	Included	5
13035	Included	5
13036	Included	5
13037	Omitted	5
13038	Included	5
13039	Omitted	5
13040	Omitted	5
13041	Omitted	5
13042	Omitted	5
13043	Omitted	5
13044	Omitted	5
13045	Omitted	5
13046	Omitted	5
13047	Included	5
13048	Omitted	5
13049	Omitted	5
13050	Omitted	5
13051	Omitted	5
13052	Omitted	5
13053	Omitted	5
13054	Omitted	5
13055	Omitted	5
13056	Omitted	5
13057	Omitted	5
13058	Omitted	5
13059	Omitted	5
13060	Omitted	5
13061	Included	5
13062	Included	5
13063	Omitted	5
13064	Omitted	5
13065	Omitted	5
13066	Omitted	5
13067	Omitted	5
13072	Omitted	6

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
13073	Omitted	6
13074	Omitted	6
13075	Included	6
13076	Omitted	6
13077	Omitted	6
13079	Omitted	6
13080	Omitted	6
13081	Omitted	6
13082	Omitted	6
13083	Omitted	6
13084	Included	6
13085	Included	6
13086	Included	6
13087	Omitted	6
13088	Omitted	6
13089	Omitted	6
13090	Omitted	6
13091	Omitted	6
13092	Included	6
13093	Included	6
13094	Omitted	6
13095	Omitted	6
13096	Omitted	6
13097	Omitted	6
13098	Omitted	6
13099	Omitted	6
13100	Omitted	6
13101	Omitted	6
13102	Omitted	6
13103	Omitted	6
13104	Included	7
13105	Included	7
13106	Omitted	7
13107	Omitted	7
13108	Omitted	7
13109	Omitted	7
13110	Omitted	7
12973	Included	7
13077	Omitted	7
13111	Omitted	7
13112	Omitted	7
13113	Omitted	7
13114	Omitted	7
13115	Omitted	7
13116	Omitted	7
13117	Included	7

Ord. No.	Included/ Omitted	Supp. No.
13071	Omitted	8
13073	Omitted	8
13075	Omitted	8
13078	Omitted	8
13118	Included	8
13119	Omitted	8
13120	Omitted	8
13121	Included	8
13122	Included	8
13123	Omitted	8
13124	Omitted	8
13125	Omitted	8
13126	Omitted	8
13127	Included	8
13128	Omitted	8
13129	Omitted	8
13130	Omitted	8
13131	Omitted	8
13132	Omitted	8
13133	Omitted	8
13134	Omitted	8
13135	Omitted	8
13136	Omitted	8
13137	Omitted	8
13138	Omitted	8
13139	Omitted	8
13140	Omitted	8
13141	Omitted	8
13142	Omitted	8
13143	Omitted	8
13144	Omitted	8
13145	Omitted	8
13146	Omitted	8
13147	Omitted	8
13148	Omitted	8
13149	Omitted	8
13151	Omitted	8
13152	Omitted	8
13153	Omitted	8
13154	Omitted	8
13155	Omitted	8
13156	Omitted	8
13157	Omitted	8
13158	Omitted	8
13159	Omitted	8
13160	Omitted	8

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
13161	Omitted	8
13162	Omitted	8
13072	Included	9
13163	Omitted	9
13164	Omitted	9
13165	Included	9
13166	Omitted	9
13167	Omitted	9
13168	Omitted	9
13169	Omitted	9
13170	Omitted	9
13171	Omitted	9
13172	Included	9
12764	Included	9
13173	Omitted	9
13174	Omitted	9
13175	Omitted	9
13176	Omitted	9
13177	Included	9
13180	Omitted	9
13181	Omitted	9
13182	Omitted	9
13183	Omitted	9
13184	Included	9
13185	Included	9
13186	Included	9
13187	Omitted	10
13188	Omitted	10
13189	Omitted	10
13190	Omitted	10
13191	Included	10
13192	Included	10
13193	Omitted	10
13194	Included	10
13195	Included	10
13196	Omitted	10
13197	Omitted	10
13198	Omitted	10
13199	Omitted	10
13200	Omitted	10
13201	Omitted	10
13202	Omitted	10
13203	Omitted	10
13204	Included	10
13205	Included	10
13206	Omitted	10

Ord. No.	Included/ Omitted	Supp. No.
13207	Omitted	10
13208	Omitted	10
13209	Omitted	10
13210	Omitted	10
13211	Included	11
13212	Included	11
13213	Included	11
13214	Omitted	11
13215	Omitted	11
13216	Omitted	11
13217	Omitted	11
13218	Included	11
13219	Included	11
13220	Included	11
13221	Included	11
12927	Included	11
13222	Omitted	11
13223	Omitted	11
13224	Omitted	11
13225	Included	11
13226	Included	11
13227	Included	11
13228	Omitted	11
13229	Omitted	11
13230	Omitted	11
13232	Omitted	11
13233	Omitted	11
13234	Included	11
13236	Omitted	11
13237	Omitted	11
13238	Included	11
13239	Included	11
13240	Included	11
13241	Omitted	11
12859	Included	12
13242	Omitted	12
13243	Omitted	12
13244	Omitted	12
13245	Omitted	12
13246	Omitted	12
13247	Omitted	12
13248	Omitted	12
13249	Omitted	12
13250	Omitted	12
13251	Included	12
13252	Omitted	12

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
13253	Omitted	12
13254	Omitted	12
13256	Omitted	12
13257	Included	12
13258	Omitted	12
13259	Omitted	12
13260	Omitted	12
13261	Omitted	12
13262	Omitted	12
13263	Omitted	12
13264	Omitted	12
13265	Omitted	12
13266	Omitted	12
13267	Included	12
13268	Omitted	12
13269	Omitted	12
13270	Omitted	12
13271	Omitted	12
13272	Included	12
13273	Included	12
13274	Included	12
13275	Omitted	12
13276	Included	12
13277	Omitted	12
13278	Omitted	12
12999	Included	12
13070	Included	12
13178	Included	12
13279	Omitted	12
13280	Omitted	12
13281	Omitted	12
13282	Omitted	12
13283	Omitted	12
13284	Omitted	12
13285	Omitted	12
13286	Included	12
13287	Omitted	13
13288	Omitted	13
13289	Included	13
13290	Included	13
13291	Omitted	13
13292	Omitted	13
13293	Omitted	13
13294	Omitted	13
13295	Included	13
13296	Omitted	13

Ord. No.	Included/ Omitted	Supp. No.
13297	Included	13
13298	Omitted	13
13299	Omitted	13
13300	Omitted	13
13301	Omitted	13
13302	Included	13
13303	Omitted	13
13305	Omitted	13
13306	Omitted	13
13307	Omitted	13
13308	Omitted	13
13309	Omitted	13
13310	Omitted	13
13311	Omitted	13
13312	Omitted	13
13313	Omitted	13
13314	Omitted	13
12926	Included	14
13315	Omitted	14
13316	Omitted	14
13317	Omitted	14
13318	Included	14
13319	Included	14
13320	Omitted	14
13321	Omitted	14
13322	Omitted	14
13323	Omitted	14
13324	Omitted	14
13325	Omitted	14
13326	Omitted	14
13327	Omitted	14
13328	Omitted	14
13329	Omitted	14
13330	Omitted	14
13331	Omitted	14
13332	Included	14
13333	Included	14
13334	Included	14
13335	Omitted	14
13336	Omitted	14
13337	Omitted	14
13338	Omitted	14
13339	Omitted	14
13340	Omitted	14
13341	Omitted	14
13342	Omitted	14

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
13343	Omitted	14
13344	Omitted	14
13345	Omitted	14
13346	Omitted	14
13347	Omitted	14
13348	Included	14
13349	Included	15
13350	Included	15
13351	Omitted	15
13352	Omitted	15
13353	Omitted	15
13354	Omitted	15
13355	Omitted	15
13356	Omitted	15
13357	Omitted	15
13358	Omitted	15
13359	Omitted	15
13360	Omitted	15
13361	Included	15
13362	Omitted	15
13363	Included	15
13364	Omitted	15
13365	Omitted	15
13366	Included	15
13367	Omitted	15
13368	Omitted	15
13369	Included	15
13370	Omitted	15
13371	Omitted	15
13372	Omitted	15
13373	Omitted	15
13374	Omitted	15
13375	Included	15
13376	Included	15
13377	Omitted	15
13378	Omitted	15
13379	Omitted	15
13380	Omitted	15
13381	Omitted	15
13382	Omitted	15
13383	Omitted	15
13384	Included	15
13385	Included	15
13386	Included	15
13387	Omitted	15
13388	Omitted	15

Ord. No.	Included/ Omitted	Supp. No.
13389	Included	15
13390	Included	15
13391	Omitted	15
13392	Included	15
13393	Included	15
13394	Included	15
13395	Included	15
13396	Omitted	15
13397	Omitted	15
13398	Omitted	15
13399	Omitted	15
13400	Omitted	15
13401	Omitted	15
13402	Omitted	15
13403	Omitted	15
13404	Omitted	16
13405	Omitted	16
13406	Omitted	16
13407	Included	16
13408	Included	16
13409	Omitted	16
13410	Omitted	16
13411	Omitted	16
13412	Omitted	16
13413	Omitted	16
13414	Included	16
13415	Omitted	16
13416	Omitted	16
13417	Omitted	16
13418	Omitted	16
13344	Included	16
13419	Omitted	16
13420	Omitted	16
13421	Omitted	16
13422	Omitted	16
13423	Omitted	16
13424	Omitted	16
13425	Omitted	16
13426	Omitted	16
13427	Omitted	16
13428	Omitted	16
13429	Omitted	16
13430	Omitted	16
13431	Omitted	16
13432	Omitted	16
13433	Omitted	16

Ord. No.	Included/ Omitted	Supp. No.
13434	Omitted	16
13435	Omitted	16
13436	Omitted	16
13437	Omitted	16
13438	Omitted	16
13439	Omitted	16
13440	Omitted	16
13441	Omitted	16
13442	Included	17
13443	Included	17
13444	Included	17
13445	Omitted	17
13446	Omitted	17
13447	Included	17
13448	Omitted	17
13449	Omitted	17
13450	Included	17
13451	Omitted	17
13452	Included	17
13453	Omitted	17
13454	Omitted	17
13455	Included	17
13456	Omitted	17
13457	Included	17
13458	Included	17
13459	Omitted	17
13460	Omitted	17
13461	Omitted	17
13462	Included	17
13463	Included	17
13464	Omitted	17
13465	Included	17
13466	Included	17
13467	Omitted	18
13468	Omitted	18
13469	Omitted	18
13470	Omitted	18
13471	Omitted	18
13472	Omitted	18
13473	Included	18
13474	Omitted	18
13475	Omitted	18
13476	Included	18
13477	Omitted	18
13478	Included	18
13479	Included	18

Ord. No.	Included/ Omitted	Supp. No.
13480	Omitted	18
13481	Omitted	18
13482	Included	18
13483	Omitted	18
13484	Omitted	18
13485	Omitted	18
13486	Included	18
13487	Included	18
13488	Omitted	18
13489	Omitted	18
13491	Omitted	18
13492	Omitted	18
13493	Omitted	18
13494	Omitted	18
13495	Omitted	18
13496	Included	18
13490	Omitted	19
13497	Included	19
13498	Included	19
13499	Omitted	19
13500	Omitted	19
13501	Omitted	19
13502	Omitted	19
13503	Included	19
13504	Omitted	19
13505	Omitted	19
13506	Included	19
13507	Included	19
13508	Omitted	19
13509	Omitted	19
13510	Omitted	20
13511	Omitted	20
13512	Omitted	20
13513	Omitted	20
13514	Omitted	20
13515	Included	20
13516	Omitted	20
13517	Omitted	20
13518	Omitted	20
13519	Omitted	20
13521	Omitted	20
13522	Omitted	20
13523	Omitted	20
13524	Omitted	20
13525	Omitted	20
13526	Omitted	20

Ord. No.	Included/ Omitted	Supp. No.
13527	Omitted	20
13528	Omitted	20
13529	Included	20
13530	Included	20
13531	Included	20
13532	Included	20
13533	Included	20
13534	Omitted	20
13535	Omitted	20
13536	Omitted	20
13537	Omitted	20
13538	Omitted	20
13539	Omitted	20
13540	Omitted	20
13541	Included	21
13542	Omitted	21
13543	Omitted	21
13544	Omitted	21
13545	Omitted	21
13546	Omitted	21
13547	Omitted	21
13548	Omitted	21
13549	Omitted	21
13550	Omitted	21
13551	Omitted	21
13552	Omitted	21
13553	Omitted	21
13554	Omitted	21
13520	Included	22
13555	Included	22
13556	Omitted	22
13557	Omitted	22
13558	Included	22
13559	Omitted	22
13560	Omitted	22
13561	Omitted	22
13562	Omitted	22
13563	Omitted	22
13564	Omitted	22
13565	Omitted	22
13566	Omitted	22
13567	Omitted	22
13568	Omitted	22
13569	Omitted	22
13570	Omitted	22
13571	Omitted	22

Ord. No.	Included/ Omitted	Supp. No.
13572	Omitted	22
13573	Omitted	22
13574	Omitted	22
13575	Omitted	22
13576	Omitted	22
13577	Omitted	22
13578	Omitted	22
13579	Omitted	22
13580	Omitted	22
13581	Omitted	22
13582	Omitted	22
13583	Omitted	22
13584	Included	22
13585	Included	22
13586	Omitted	22
13587	Omitted	22
13588	Omitted	22
13589	Omitted	22
13590	Omitted	22
13591	Included	22
13592	Included	22
13593	Omitted	22
13594	Omitted	22
13595	Omitted	22
13596	Omitted	22
13597	Omitted	22
13598	Omitted	22
13599	Omitted	22
13600	Omitted	22
13601	Omitted	22
13602	Omitted	22
13603	Omitted	22
13604	Omitted	22
13605	Omitted	22
13606	Omitted	22
13607	Omitted	22
13608	Omitted	22
13609	Omitted	22
13610	Omitted	22
13611	Omitted	22
13612	Omitted	22
13613	Included	22
13614	Omitted	22
13615	Omitted	22
13616	Omitted	22
13617	Omitted	22

Ord. No.	Included/ Omitted	Supp. No.
13618	Omitted	22
13619	Omitted	22
13620	Omitted	22
13621	Omitted	22
13622	Omitted	22
13623	Omitted	22
13624	Omitted	22
13625	Omitted	22
13626	Omitted	22
13627	Omitted	22
13628	Omitted	23
13629	Omitted	23
13630	Omitted	23
13631	Omitted	23
13632	Omitted	23
13633	Omitted	23
13634	Omitted	23
13635	Omitted	23
13636	Omitted	23
13637	Omitted	23
13638	Omitted	23
13639	Included	23
13640	Omitted	23
13641	Omitted	23
13642	Omitted	23
13643	Omitted	23
13644	Omitted	23
13645	Omitted	23
13646	Omitted	23
13647	Omitted	23
13648	Omitted	23
13649	Omitted	23
13650	Omitted	23
13651	Omitted	23
13652	Omitted	23
13653	Omitted	23
13654	Omitted	24
13655	Omitted	24
13656	Omitted	24
13657	Omitted	24
13658	Included	24
13659	Omitted	24
13660	Included	24
13661	Included	24
13662	Omitted	24
13663	Included	24

Ord. No.	Included/ Omitted	Supp. No.
13664	Omitted	24
13665	Omitted	24
13666	Omitted	24
13667	Omitted	24
13668	Omitted	24
13669	Omitted	24
13670	Omitted	24
13671	Included	24
13672	Omitted	24
13673	Omitted	24
13674	Omitted	24
13675	Included	24
13676	Included	24
13667	Omitted	25
13678	Omitted	25
13679	Omitted	25
13680	Omitted	25
13681	Omitted	25
13682	Omitted	25
13683	Omitted	25
13684	Omitted	25
13686	Omitted	25
13687	Included	25
13688	Omitted	25
13689	Omitted	25
13690	Omitted	25
13691	Omitted	25
13692	Omitted	25
13693	Omitted	25
13694	Omitted	25
13695	Omitted	25
13696	Omitted	25
13697	Omitted	25
13698	Omitted	25
13699	Omitted	25
13700	Included	25
13701	Omitted	25
13702	Included	25
13703	Omitted	25
13704	Omitted	25
13705	Omitted	25
13706	Omitted	25
13707	Omitted	25
13708	Omitted	25
13709	Omitted	26
13710	Included	26

Ord. No.	Included/ Omitted	Supp. No.
13711	Omitted	26
13712	Omitted	26
13713	Omitted	26
13714	Omitted	26
13715	Omitted	26
13716	Omitted	26
13717	Omitted	26
13718	Omitted	26
13719	Included	26
13720	Included	26
13721	Omitted	26
13722	Omitted	26
13723	Omitted	26
13724	Omitted	26
13725	Omitted	26
13726	Omitted	26
13727	Omitted	26
13728	Omitted	26
13729	Omitted	26
13730	Omitted	26
13731	Omitted	26
13732	Included	26
13733	Omitted	26
13734	Omitted	26
13735	Omitted	26
13736	Omitted	26
13737	Omitted	26
13738	Omitted	26
13739	Omitted	26
13740	Omitted	26
13741	Omitted	26
13742	Omitted	26
13743	Included	26
13744	Omitted	26
12798	Omitted	27
13749	Omitted	27
13750	Omitted	27
13751	Omitted	27
13752	Omitted	27
13753	Omitted	27
13754	Omitted	27
13755	Omitted	27
13756	Omitted	27
13757	Omitted	27
13758	Omitted	27
13759	Omitted	27

Ord. No.	Included/ Omitted	Supp. No.
13760	Omitted	27
13761	Omitted	27
13762	Omitted	27
13763	Omitted	27
13764	Omitted	27
13765	Omitted	27
13766	Omitted	27
13767	Omitted	27
13768	Omitted	27
13769	Omitted	27
13770	Omitted	27
13771	Omitted	27
13772	Omitted	27
13773	Omitted	27
13774	Omitted	27
13775	Omitted	27
13776	Omitted	27
13777	Omitted	27
13778	Included	27
13779	Omitted	27
13780	Omitted	27
13781	Omitted	27
13782	Omitted	27
13783	Omitted	27
13784	Omitted	27
13785	Omitted	27
13786	Included	28
13787	Omitted	28
13788	Omitted	28
13789	Omitted	28
13790	Omitted	28
13791	Omitted	28
13792	Omitted	28
13793	Omitted	28
13794	Omitted	28
13795	Included	28
13796	Omitted	28
13797	Omitted	28
13798	Omitted	28
13799	Omitted	28
13800	Omitted	28
13801	Omitted	28
13802	Omitted	28
13803	Omitted	28
13804	Omitted	28
13805	Omitted	28

Ord. No.	Included/ Omitted	Supp. No.
13806	Omitted	28
13807	Omitted	28
13808	Omitted	28
13809	Omitted	28
13810	Omitted	28
13811	Included	28
13812	Omitted	28
13813	Omitted	28
13814	Omitted	28
13815	Omitted	28
13816	Omitted	28
13817	Omitted	28
13818	Omitted	28
13819	Omitted	28
13820	Omitted	28
13821	Omitted	28
13822	Omitted	28
13823	Omitted	28
13824	Omitted	28
13825	Omitted	28
13826	Omitted	28
13827	Omitted	28
13828	Omitted	28
13829	Omitted	28
13830	Omitted	28
13831	Omitted	28
13832	Omitted	28
13833	Omitted	28
13834	Omitted	28
13835	Omitted	28
13836	Omitted	29
13837	Omitted	29
13838	Omitted	29
13839	Included	29
13840	Included	29
13841	Omitted	29
13842	Included	29
13843	Omitted	29
13845	Omitted	29
13846	Omitted	29
13847	Omitted	29
13848	Omitted	29
13849	Omitted	29
13850	Omitted	29
13851	Omitted	29
13844	Omitted	29

Ord. No.	Included/ Omitted	Supp. No.
13852	Omitted	29
13853	Omitted	29
13854	Included	29
13855	Omitted	29
13856	Omitted	29
13857	Omitted	29
13858	Included	29
13859	Included	29
13860	Omitted	29
13861	Omitted	29
13862	Omitted	29
13863	Omitted	29
13864	Omitted	29
13865	Omitted	29
13866	Omitted	29
13867	Omitted	29
13868	Omitted	29
13869	Omitted	29
13870	Omitted	29
13871	Included	29
13872	Omitted	29
13873	Omitted	29
13874	Included	29
13875	Omitted	29
13876	Omitted	29
13877	Omitted	29
13878	Omitted	29
13879	Omitted	29
13880	Included	29
13881	Included	29
13882	Included	29
13884	Omitted	30
13885	Omitted	30
13886	Included	30
13887	Omitted	30
13888	Omitted	30
13889	Omitted	30
13890	Omitted	30
13891	Omitted	30
13892	Omitted	30
13893	Included	30
13894	Omitted	30
13895	Omitted	30
13896	Omitted	30
13897	Omitted	30
13898	Omitted	30

Ord. No.	Included/ Omitted	Supp. No.
13899	Omitted	30
13900	Omitted	30
13901	Included	30
13902	Omitted	30
13903	Omitted	30
13904	Omitted	30
13905	Omitted	30
13906	Omitted	30
13907	Omitted	30
13908	Omitted	30
13909	Included	30
13910	Omitted	30
13911	Omitted	30
13912	Omitted	30
13913	Omitted	30
13914	Omitted	30
13915	Omitted	30
13916	Omitted	30
13917	Omitted	30
13918	Omitted	30
13919	Omitted	30
13920	Included	31
13921	Included	31
13922	Included	31
13923	Included	31
13924	Included	31
13925	Included	31
13926	Omitted	31
13927	Included	31
13928	Included	31
13929	Included	31
13930	Included	31
13931	Included	31
13932	Omitted	31
13933	Omitted	31
13934	Omitted	31
13935	Omitted	31
13936	Omitted	31
13937	Omitted	31
13938	Omitted	31
13939	Omitted	31
13940	Omitted	31
13941	Omitted	31
13942	Omitted	31
13943	Omitted	31
13945	Omitted	31

Ord. No.	Included/ Omitted	Supp. No.
13947	Omitted	31
13948	Omitted	31
13949	Omitted	31
13961	Omitted	32
13962	Omitted	32
13963	Omitted	32
13964	Omitted	32
13965	Omitted	32
13966	Omitted	32
13967	Included	32
13968	Omitted	32
13969	Omitted	32
13970	Omitted	32
13971	Omitted	32
13972	Included	32
13973	Omitted	32
13974	Included	32
13975	Omitted	32
13976	Omitted	32
13977	Omitted	32
13978	Omitted	32
13979	Omitted	32
13980	Omitted	32
13981	Included	32
13982	Omitted	32
13983	Omitted	32
13984	Omitted	32
13985	Included	32
13986	Included	32
13987	Omitted	32
13988	Omitted	32
13989	Omitted	32
13990	Omitted	32
13991	Omitted	32
13992	Omitted	32
13993	Omitted	32
13994	Omitted	32
13995	Omitted	32
13996	Omitted	32
13997	Omitted	32
13998	Included	32
13999	Omitted	32
14000	Included	32
14011	Omitted	32
14012	Omitted	32
14001	Omitted	33

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
14002	Omitted	33
14003	Omitted	33
14004	Omitted	33
14005	Omitted	33
14006	Omitted	33
14007	Omitted	33
14008	Omitted	33
14009	Omitted	33
14010	Omitted	33
14013	Included	33
14014	Omitted	33
14015	Omitted	33
14016	Omitted	33
14017	Included	33
14018	Omitted	33
14019	Omitted	33
14020	Omitted	33
14021	Omitted	33
14022	Included	33
14023	Omitted	33
14024	Omitted	33
14025	Omitted	34
14026	Omitted	34
14027	Omitted	34
14028	Included	34
14029	Omitted	34
14030	Omitted	34
14031	Omitted	34
14032	Omitted	34
14033	Omitted	34
14034	Omitted	34
14035	Omitted	34
14036	Omitted	34
14037	Omitted	34
14038	Included	34
14039	Omitted	34
14040	Omitted	34
14041	Omitted	34
14042	Omitted	34
14043	Omitted	34
14044	Omitted	34
14045	Omitted	34
14046	Omitted	34
14047	Omitted	34
14048	Omitted	34
14052	Omitted	34

Ord. No.	Included/ Omitted	Supp. No.
14053	Omitted	34
14054	Omitted	34
14055	Omitted	34
14056	Omitted	34
14057	Included	35
14058	Omitted	35
14059	Omitted	35
14060	Omitted	35
14061	Omitted	35
14062	Omitted	35
14063	Included	35
14064	Omitted	35
14065	Included	35
14066	Omitted	35
14067	Omitted	35
14068	Omitted	35
14069	Included	35
14070	Omitted	35
14071	Omitted	35
14057	Included	35
14058	Omitted	35
14059	Omitted	35
14060	Omitted	35
14061	Omitted	35
14062	Omitted	35
14063	Included	35
14064	Omitted	35
14065	Included	35
14066	Omitted	35
14067	Omitted	35
14068	Omitted	35
14069	Included	35
14070	Omitted	35
14071	Omitted	35
13951	Included	35
13952	Omitted	35
13953	Omitted	35
13954	Omitted	35
13955	Omitted	35
13956	Omitted	35
13957	Omitted	35
13958	Omitted	35
13959	Omitted	35
13960	Included	35
14089	Omitted	35
14090	Included	35

Ord. No.	Included/ Omitted	Supp. No.
14091	Included	35
14092	Included	35
14093	Included	35
14094	Included	35
14095	Omitted	35
14096	Omitted	35
14097	Omitted	35
14098	Omitted	35
14099	Omitted	35
14100	Omitted	35
14101	Included	35
14102	Omitted	35
14103	Omitted	35
14104	Omitted	35
14105	Omitted	35
14106	Omitted	35
14107	Omitted	35
14108	Omitted	35
14109	Omitted	35
14110	Omitted	35
14111	Omitted	35
14112	Omitted	35
14113	Omitted	35
14114	Omitted	35
14118	Included	36
14124	Omitted	36
14125	Omitted	36
14126	Omitted	36
14127	Omitted	36
14128	Omitted	36
14129	Omitted	36
14130	Omitted	36
14131	Omitted	36
14132	Omitted	36
14133	Omitted	36
14134	Omitted	36
14135	Included	36
14136	Omitted	36
14137	Included	36
14138	Included	36
14139	Omitted	36
14140	Omitted	36
14141	Omitted	36
14142	Omitted	36
14143	Omitted	36
14144	Omitted	36

Ord. No.	Included/ Omitted	Supp. No.
14145	Omitted	36
14146	Omitted	36
14147	Omitted	36
14148	Included	36
14149	Omitted	36
14150	Omitted	36
14151	Omitted	36
14152	Omitted	36
14153	Omitted	36
14154	Included	36
14155	Omitted	36
14156	Omitted	36
14157	Included	36
14158	Included	36
14159	Included	36
14160	Included	36
14161	Omitted	36
14162	Omitted	36
14163	Omitted	36
14164	Omitted	36
14165	Included	36
14166	Omitted	36
14167(1)	Included	36
14167(2)	Included	36
14167(3)	Included	36
14167(4)	Included	36
14167(5)	Included	36
14167(6)	Included	36
14167(7)	Included	36
14168	Included	36
14169	Included	37
14170	Omitted	37
14171	Omitted	37
14172	Omitted	37
14173	Omitted	37
14174	Omitted	37
14175	Omitted	37
14176	Omitted	37
14177	Omitted	37
14178	Omitted	37
14179	Omitted	37
14180	Omitted	37
14181	Included	37
14182	Omitted	37
14183	Included	37
14184	Omitted	37

Ord. No.	Included/ Omitted	Supp. No.
14185	Omitted	37
14186	Omitted	37
14187	Omitted	37
14188	Omitted	37
14189	Omitted	37
14190	Omitted	37
14191	Omitted	37
14192	Omitted	37
14193	Omitted	37
14194	Omitted	37
14195	Omitted	37
14196	Omitted	37
14197	Omitted	37
14198	Omitted	37
14199	Omitted	37
14200	Omitted	37
14201	Omitted	37
14202	Included	37
14203	Omitted	37
14117	Included	38
14204	Included	38
14205	Omitted	38
14206	Omitted	38
14207	Omitted	38
14208	Included	38
14209	Omitted	38
14210	Omitted	38
14211	Omitted	38
14212	Omitted	38
14213	Omitted	38
14214	Omitted	38
14215	Omitted	38
14216	Included	38
14217	Included	38
14218	Omitted	38
14219	Omitted	38
14220	Omitted	38
14221	Omitted	38
14222	Included	38
14223	Included	38
14224	Included	38
14225	Omitted	38
14226	Omitted	38
14227	Omitted	38
14228	Included	38
14229	Omitted	38

Ord. No.	Included/ Omitted	Supp. No.
14230	Omitted	38
14231	Included	38
14232	Included	38
14233	Included	38
14234	Omitted	38
14235	Omitted	38
14236	Omitted	38
14237	Omitted	38
14238	Included	38
14239	Included	38
14240	Omitted	38
14242	Omitted	38
14243	Omitted	38
14244	Omitted	38
14245	Omitted	38
14246	Omitted	38
14247	Omitted	38
14248	Included	38
14249	Omitted	38
14250	Omitted	38
14251	Omitted	38
14252	Omitted	38
14253	Omitted	38
14254	Included	38
14255	Omitted	38
14256	Omitted	38
14257	Included	38
14258	Omitted	38
14259	Omitted	38
14260	Omitted	38
14261	Omitted	38
14262	Omitted	38
14263	Omitted	38
14264	Omitted	38
14265	Omitted	38
14266	Omitted	38
14267	Omitted	38
14268	Omitted	38
14253	Included	39
14256	Included	39
14278	Included	39
14291	Included	39
14297	Included	39
14309	Included	39
14310	Omitted	39
14311	Omitted	39

Ord. No.	Included/ Omitted	Supp. No.
14312	Included	39
14313	Omitted	39
14314	Omitted	39
14315	Omitted	39
14316	Omitted	39
14317	Omitted	39
14318	Omitted	39
14319	Included	39
14320	Included	39
14321	Omitted	39
14322	Omitted	39
14323	Omitted	39
14324	Included	39
14325	Omitted	39
14326	Omitted	39
14327	Omitted	39
14328	Omitted	39
14329	Included	39
14330	Included	39
14331	Omitted	39
14332	Omitted	39
14333	Included	39
14334	Included	39
14335	Omitted	39
14336	Included	39
14337	Included	39
14338	Included	39
14339	Included	39
14340	Omitted	39
14341	Omitted	39
14342	Omitted	39
14343	Omitted	39
14344	Omitted	39
14345	Omitted	39
14346	Omitted	39
14347	Included	40
14348	Omitted	40
14349	Omitted	40
14350	Omitted	40
14351	Omitted	40
14352	Omitted	40
14353	Omitted	40
14354	Omitted	40
14355	Omitted	40
14356	Omitted	40
14357	Omitted	40

Ord. No.	Included/ Omitted	Supp. No.
14358	Omitted	40
14292	Included	40
14298	Included	40
14308	Included	40
14359	Omitted	40
14360	Omitted	40
14361	Omitted	40
14362	Omitted	40
14363	Omitted	40
14364	Omitted	40
14365	Included	40
14366	Included	40
14367	Omitted	40
14368	Omitted	40
14369	Omitted	40
14370	Omitted	40
14371	Omitted	40
14372	Included	40
14373	Included	40
14374	Included	40
14375	Omitted	40
14376	Omitted	40
14377	Omitted	40
14378	Omitted	40
14379	Omitted	40
14380	Omitted	40

CHARTER PROLOGUE

The City of Chattanooga was established by the General Assembly of the State of Tennessee in 1839. Since that time the Private Acts establishing the City were amended many times. The Charter of the City was composed entirely of those private acts of the General Assembly as periodically compiled, until 1972 when the voters of the City adopted Home Rule as provided for by Article XI, Section 9 of the Constitution of Tennessee. Thereafter, pursuant to said section, amendments to the Charter have been in the form of Ordinances approved by the qualified voters of the City at general elections.

In November of 1987, a civil action captioned Brown, et al. v. Board of Commissioners of the City of Chattanooga, Tennessee, et al., Civil Action No. 1-87-388, was filed in the United States District Court for the Eastern District of Tennessee, Southern Division. The plaintiffs in the suit, twelve minority residents of the City, brought action against the Board of Commissioners of the City, seeking to have the City's at-large method of electing its Board of Commissioners set aside as being unconstitutional and/or in violation of Section 2 of the Federal Voting Rights Act of 1965, as amended in 1982 (the "Voting Rights Act"). On August 8, 1989, the court held the at-large voting provisions of the City Charter to be in violation of the Voting Rights Act and ordered that the defendant City officials and the City submit an acceptable remedial plan to bring the City into compliance with the Voting Rights Act. The court further held that pending further order of the court, the Board of Commissioners of the City would continue to operate as the governing body of the City.

Pursuant to the court's order, the City and the defendant City Commissioners submitted to the court an amended plan agreeable to counsel for the plaintiffs. With the consent of the parties, the court, by the Agreed Order, accepted and adopted the Defendants' Amended Plan (the "Defendants' Amended Plan") as a full and complete remedy for violations of the plaintiffs' rights in the case. The Agreed Order provided that the City Charter be amended as provided in the Defendants' Amended Plan.

The amendments to the City Charter provided for by the Agreed Order were extensive. Following are significant amendments to the City Charter; others are set forth in the Defendants' Amended Plan. Pursuant to the Agreed Order, the Board of Commissioners of the City and the present offices of the Mayor and the Commissioners were abolished as of noon, June 11, 1990. Under the Agreed Order, there was created the office of the Mayor, and all executive and administrative authority and responsibility vested in and executed by the Board of Commissioners and its individual members was vested exclusively in the Mayor. Further, there was created a City Council of the City, and all legislative and quasi-judicial authority and responsibility originally vested in and exercised by the Board of Commissioners was vested exclusively in the City Council. The Mayor is elected at-large and is not a member of the City Council, and the City Council is composed of nine members, each member being elected from one of nine districts within the geographic boundaries of the City.

Since June 11, 1990, at Noon, the City has operated under the Mayor/Council form of government.

The information set forth above is a summary of selected provisions of the Agreed Order and the Defendants' Amended Plan. The summaries of these documents do not purport to be complete and are qualified in their entirety by reference to the Agreed Order and Defendants' Amended Plan.

A copy of the Court's Judgment, the Agreed Order, the Defendants' Amended Plan, and two subsequent amendments thereto are included in the Appendix to the Charter Compilation.

In 2002, Ordinance No. 11272 was adopted by the Council and approved by the people, which Ordinance amended and restated the Charter so as to conform it to the decision in Brown.

Subsequently, the Charter has been amended by the adoption of Ordinances 11305, 11306, 11307, 1308, 11309, 11310, 11590, 11591, 11592, 11872, 11873, and 11877, and their respective approvals by the electorate.

PART I

CHARTER COMPILATION

Title 1

INCORPORATION

Sec. 1.1. Incorporation of city; corporate name; general powers and liabilities.
Sec. 1.2. City to have perpetual existence.

Sec. 1.1. Incorporation of city; corporate name; general powers and liabilities.

The inhabitants of the City of Chattanooga, in the County of Hamilton, are hereby constituted a corporation and body politic, by the name and style of "the City of Chattanooga, Tennessee"; and by the same may sue and be sued; plead and be impleaded, in all the courts of law and equity, and in all actions whatsoever; may purchase, receive and hold property, real and personal, within said city; and may sell, lease or dispose of the same for the benefit of said city; and may purchase, receive and hold property, real and personal, beyond the limits of the city, to be used for the burial of the dead, for the erection of water works, for the establishment of a hospital, poor house, workhouse or house of correction; and may sell, lease or dispose of said property for the benefit of the city; and do all other acts touching the same, as natural persons; and shall have a common seal and change it at pleasure.
(Priv. Acts 1869, Ch. 4, § 1; Priv. Acts 1911, Ch. 10, § 2; Priv. Acts 1969, Ch. 82, § 4)

Editor's note—Priv. Acts 1969, Ch. 68, § 4, amended the acts codified as § 1.1, by superseding the provision that "the same shall have succession for ninety-nine years."

Cross reference—For composite description of corporate limits and subsequent annexation ordinances, see Appendix A of Chattanooga City Code, Part II.

Sec. 1.2. City to have perpetual existence.

The City of Chattanooga, Tennessee, as a municipal corporation and body politic, shall have perpetual existence, and shall be considered for all purposes to have had perpetual existence since being first chartered by the General Assembly; and no act of said city, including the issuance of bonds, shall be affected in any manner by any prior charter provision to the contrary that may not have been expressly amended or repealed heretofore.
(Priv. Acts 1969, Ch. 82, § 4)

Editor's note—Part I of this Volume contains the compilation of the Acts of the Tennessee General Assembly and Home Rule amendments adopted by the voters of the City pursuant to Art. 11, § 9 of the Constitution of Tennessee. Historically, the Charter has been arranged according to subject matter and each provision assigned an arbitrary section number to facilitate referencing and indexing. Although major changes to the Charter were made prior to the 2013 publication of the Charter, the historic numbering system has been maintained to the extent practicable to facilitate cross-referencing and legal research.

The adoption of Home Rule was submitted to the voters to ratify Ordinance No. 6489, 9-19-72 pursuant to Art. 11, § 9 of the Constitution of Tennessee on November 7, 1972, and approved by a vote of 15,895 to 8,190. A list of Home Rule ordinances that have been duly ratified by the voters pursuant to Art. 11, § 9 set forth below. All amendments have been worked into their proper places and amended or repealed revisions deleted.

Legislation that has clearly been superseded by subsequent legislation has been deleted. This provision is set out in the language in which it was enacted, but the editors have added clarifying words or phrases in brackets where necessary. The bracketed material should not, of course, be considered authoritative, but is for convenience and clarity only.

Ordinance No. 11272, 5-2-02, approved by referendum amended and restated the Charter of the City in its entirety so as to conform to the decision of the United States District Court in *Brown v. Board of Commissioners*, U.S.D.C. No. CIV-1-87-388 and subsequent amendments thereto. The Court of Appeals of Tennessee held in the case of *Ron Littlefield v. Hamilton County Election Commission, et al*, No. 11C1520, that Ordinance No. 11272, was "*sufficient to 'enact' a 'contrary charter provision'* pursuant to Tennessee Code Annotated Section 2-5-151 (i)..." (page 17 of opinion). The editors are of the opinion that based upon this Court of Appeals decision that Ordinance No. 11272 is the baseline for the present charter.

Michael A. McMahan, City Attorney, 2009-2013, is the principal editor of this 2013 publication of the Charter of the City of Chattanooga. Thanks is given to Maria Sirchia for her ongoing efforts to accurately maintain the Charter and City Code.

The following Home Rule Ordinances approved by referendum have been compiled in this Charter of the City of Chattanooga:

TITLE 2	ORDINANCE NO.	EFFECTIVE DATE
	6783	8/13/74
	10741	8/13/74
	10079	6/30/97
	11272	5/2/02
	11305	8/22/02
	11306	8/22/02
	12677	12/18/12
	12766	12/18/12
TITLE 3	**ORDINANCE NO.**	**EFFECTIVE DATE**
	7408	8/22/78
	8688	8/19/86
	8936	4/26/88
	9435	8/21/90
	9437	8/21/90
	9439	8/2/90
	9766	8/11/92
	10084	8/16/94
	10463	8/20/96
	10739	8/18/98
	10742	8/18/98
	10745	8/18/98
	11011	5/9/000
	11018	5/6/00
	11101	5/9/00
	11272	5/2/02
	11833	5/23/06
	11876	8/29/06
	11877	8/29/06
	12424	8/17/10
	12566	1/24/12
	12631	7/24/12
	12677	12/18/12
	13007	12/15/15
TITLE 4	**ORDINANCE NO.**	**EFFECTIVE DATE**
	10742	8/18/98
	11010	5/9/00
	11014	5/9/00
	11018	5/16/00
	11305	8/22/02
	11308	8/22/02
	11310	8/22/02
TITLE 5	**ORDINANCE NO.**	**EFFECTIVE DATE**
	7036	5/11/76
	9713	5/5/92
	9724	5/19/92
	10740	8/18/98

	10742	8/18/98
	12677	12/18/12
TITLE 6	**ORDINANCE NO.**	**EFFECTIVE DATE**
	10742	8/18/98
	11307	8/22/02
	11591	8/3/04
	12677	12/18/12
TITLE 8	**ORDINANCE NO.**	**EFFECTIVE DATE**
	7368	5/16/78
	10048	5/18/94
	10742	8/18/98
	10746	8/18/98
	11009	5/9/00
	11873	8/22/06
	12566	1/24/12
TITLE 9	**ORDINANCE NO.**	**EFFECTIVE DATE**
	12677	12/18/12
TITLE 10	**ORDINANCE NO.**	**EFFECTIVE DATE**
	10742	8/18/98
	11872	8/22/06
TITLE 11	**ORDINANCE NO.**	**EFFECTIVE DATE**
	9433	8/21/90
	10742	8/18/98
	11592	8/3/04
	12677	12/18/12
TITLE 12	**ORDINANCE NO.**	**EFFECTIVE DATE**
	11309	8/22/02
	12677	12/18/12
TITLE 13	**ORDINANCE NO.**	**EFFECTIVE DATE**
	8688	8/19/86
	9437	8/21/90
	9767	8/11/92
	9778	8/19/92
	9785	9/8/92
	9839	2/9/93
	10463	8/20/96
	10743	8/18/98
	10744	8/18/98
	10747	8/18/98
	11012	5/9/00
	11272	4/30/02
	12424	8/17/10
	12677	12/18/12
TITLE 14	**ORDINANCE NO.**	**EFFECTIVE DATE**
	10742	8/18/98

TITLE 15	ORDINANCE NO.	EFFECTIVE DATE
	11013	5/9/00
	12677	12/18/12
TITLE 18	**ORDINANCE NO.**	**EFFECTIVE DATE**
	12677	12/18/12

Title 2

CORPORATE POWERS AND PROHIBITIONS GENERALLY

Sec. 2.1. General enumeration.
Sec. 2.2. Reserved.
Sec. 2.3. Reserved.
Sec. 2.4. Reserved.
Sec. 2.5. Parking meters.
Sec. 2.6. Lease contracts with federal government.
Sec. 2.7. Declaration of nuisances; abatement of same.
Sec. 2.8. Creation, discontinuance, etc., of offices not provided for by charter.
Sec. 2.9. Authority to subscribe to stock in railroad or turnpike companies.
Sec. 2.10. Reserved.
Sec. 2.11. Privilege tax on pleasure automobiles and motorcycles, taxicabs, buses, etc.
Sec. 2.12. Reserved.
Sec. 2.13. Reserved.
Sec. 2.14. Supplemental pension payments.

Sec. 2.1. General enumeration.

The city council of the City of Chattanooga shall have power by ordinance.

(1) Property taxes. To levy and collect taxes upon all property taxable by law for state purposes, but no property shall be exempt from taxation except property exempt from state taxes.

Cross reference—Property tax provisions generally, § 6.66.

(2) Privilege taxes; fees. To levy and collect taxes upon all privileges taxable by laws of the state; to impose any fee or charge reasonably necessary to the exercise of any of its powers.

Cross reference—Privilege taxes generally, § 6.44.

(3) Appropriations; payment of city debts. To appropriate money and provide for the payment of all debts and expenses of the city.

Cross reference—Appropriations generally, § 6.91.

(4) General health; abatement of nuisances. To make regulations to secure the general health of the inhabitants, and to prevent, abate and remove nuisances. The city shall have the power to abate and remove nuisances at the expense of the owner or owners and the expense shall be secured by a lien upon the property for which the expenditure is made, which lien shall be superior to all other liens, except liens for state, county and municipal taxes and special assessments, which lien may be enforced by suit in any court of competent jurisdiction of Hamilton County.

Cross reference—Declaration and abatement of nuisances, § 2.7.

(5) Contagious disease; quarantines. To make regulations to prevent the introduction of contagious disease in the city; to make quarantine laws for that purpose, and to enforce same within the corporate limits and within the city's police jurisdiction.

(6) Reserved.

Editor's note—Former § 6 relating to hospitals repealed by Ord. No. 12677, § 2, 12-18-12.

(7) Streets and sidewalks generally. To alter, abandon, widen, extend, establish, grade, pave or otherwise improve, clean and keep in repair streets, alleys and sidewalks or to have same done by the owners of adjacent property. The city shall have the power to require the owners abutting to construct, reconstruct, maintain and repair sidewalks in front of such property or the city may construct, reconstruct or repair such sidewalks at the expense of the owner or owners and the expense shall be secured by a lien upon the property for which the expenditure is made, which lien shall be superior to all liens except liens for state, county and municipal taxes, which lien may be enforced in any court of competent jurisdiction in Hamilton County.

Cross reference—Streets and sidewalks generally, Title 15.

(8) Bridges, culverts, sewers and gutters. To construct, erect, establish and keep in repair bridges, culverts, sewers and gutters.

(9) Lighting streets and public buildings. To provide for lighting the streets and public buildings.

(10) Markets and markethouses. To erect markethouses, establish markets and regulate the same.

(11) Erection of buildings by city. To provide for the erection of all buildings necessary for the use of the city.

(12) Public grounds. To provide for enclosing, improving and regulating all public grounds belonging to the city within or without the corporate limits.

(13) Public wharves. To construct, maintain and repair public wharves, and to regulate the use of wharves, docks and landings, and to fix the rate of wharfage and the rent of any buildings or structures.

(14) Gaming. To restrain and prohibit gaming.

(15) Licenses-Generally. To license, tax and regulate all businesses and occupations in accordance with the general laws of the state.

Cross reference—Privilege taxes generally, § 6.44.

(16) Same—Vehicles for hire. To license, tax and regulate taxicabs, automobiles for hire, trucks and buses; to fix a rate to be charged for the carriage of persons and property by any vehicle held out to the public use for hire within the city; to require indemnity bonds, issued by surety companies, or indemnity insurance policies to be filed with the city by the owner or operator of any such vehicle for the protection of the city or any person against loss by injury to person or damage to property, and to make all needful rules or regulations for the government of such conveyances and their operation within the city and for a distance of seven miles beyond the city limits; to issue certificates of convenience and necessity for the operation of taxicabs, automobiles for hire and buses, and to determine the number of taxicabs, automobiles or buses needed for the furnishing of transportation to the inhabitants of the city and the public in general.

(17) Same—Theatrical and other exhibitions; suppression of bawdy houses, gambling equipment, etc. To license, tax and regulate theatrical or other exhibitions, moving picture shows, amusements and to prohibit and suppress gambling houses, disorderly houses, bawdy houses, obscene pictures and literature; the sale, manufacture or transportation of intoxicating liquors in violation of the laws of the state or ordinances of the city, and to confiscate and destroy gambling equipment, stills and intoxicating liquors when manufactured, possessed or transported in violation of the federal or state laws or ordinances of the city.

Cross reference—Privilege taxes generally, § 6.44.

(18) Same—Machines used for sport or skill, jukeboxes, etc. To license, tax and regulate machines for use for sport, skill or exhibition, including pinball machines, marble tables or machines, plunger shooting tables or machines, high score games, digger or grabbing machines, video game machines and jukeboxes or other musical devices or machines.

Cross reference—Privilege taxes generally, § 6.44.

(19) Firearms, fireworks, fire hazards, etc. To provide for the prevention and extinguishment of fires. To regulate and prohibit and suppress the sale of firearms and the carrying of concealed weapons; to regulate, prohibit and suppress the sale and use of firecrackers, fireworks and toy pistols and any other business of any character which may be declared to be dangerous to the security and well-being of the inhabitants or to property. To regulate, restrain and prohibit the erection of wooden buildings in any part of the city; to regulate and prevent the carrying on of manufactories dangerous in causing or producing fires. To regulate the transportation, storage and use of combustible, explosive and inflammable materials and the use of lighting and heating equipment and to provide for the abatement and prevention of fire hazards of all kinds.

(20) Fire prevention bureau. To establish a fire prevention bureau for the enforcement of ordinances for the prevention of fires.

(21) Reserved.

Editor's note—Former § 21 relating to Weights and Measures repealed by Ord. No. 12677, § 2, 12-18-12.

(22) Reserved.

Editor's note—Former § 22, relating to Inspection, weighing, etc. of lumber, coal, fuel, etc. repealed by Ord. No. 12677, § 2, 12-18-12.

(23) Disorderly persons; breaches of the peace. To provide for the arrest, imprisonment and punishment of riotous and disorderly persons within the city, and for the punishment of all breaches of the peace, noise, disturbance or disorderly assemblies.

(24) Animals and fowls. To license, tax, regulate or suppress the keeping and going at large of all animals, including domestic fowls, within the city, to impound the same, and, in default of redemption, to sell or kill the same; to regulate the treatment of animals and provide for the punishment of cruelty to the same.

(25) Inspection department; buildings generally. To establish an inspection department for the inspection of the construction of buildings, plumbing, electrical, heating and other components and to license builders, electricians, plumbers, steamfitters, and other crafts people, and to impose license fees for permits for the construction of buildings, installation of electric wiring, plumbing, heating systems or other systems; to regulate the erection of buildings and other structures; to compel the owner to provide and maintain fire escapes and other safety features, and to provide fire districts or zones and building zones; to regulate, prohibit or suppress or provide for the destruction and removal of any building or other structure which may be or become dangerous or detrimental to the inhabitants or to the public.

(26) Eminent domain. To acquire by eminent domain land and grounds within the city for any municipal or corporate purpose when the public convenience and necessity require it.

(27) Acquisition of land beyond corporate limits. To provide for the taking and appropriating of lands and grounds beyond the corporate limits of the city by condemnation when the public necessity so requires for any municipal purpose.

(28) Acquisition of property for parks. To acquire all necessary property for park purposes within the corporate limits of the city, either by purchase, condemnation or otherwise.

(29) Reserved.

Editor's note—Former § 29 relating to acquisition of property in Moccasin Bend repealed by Ord. No. 12677, § 2, 12-18-12.

(30) Protection of children. To provide for the protection of children.

(31) Acquisition, disposition, etc., of public buildings, etc. To purchase, erect, construct, equip, maintain and operate; or sell, lease or dispose of any public building and equipment and appurtenances thereto within or without the corporate limits of the city.

(32) Acquisition, disposition, etc., of land or buildings for municipal purposes. To purchase, lease or otherwise acquire and hold any land or building for any municipal purpose.

(33) Disposition of surplus property. To authorize the sale, lease or disposition of any property belonging to the City of Chattanooga not needed for public purposes for the fair, reasonable market value thereof.

(34) Heating and air conditioning; stationary engineers. To regulate the installation of boilers, heating systems, air conditioning systems and to require permits for such installations, and to examine and license stationary engineers engaging in operating steam plants within the corporate limits.

(35) Loudspeakers and other noise making devices. To regulate, prohibit and suppress the operation of loudspeakers or other noise making devices on vehicles, aircrafts or buildings.

(36) Breaches of the peace. To prevent and punish by pecuniary penalties all breaches of the peace, noise, disturbances or disorderly assemblies in any street, house or place in the city by day or by night.

(37) Solicitors; distribution of handbills. To license and regulate solicitors and the distribution of handbills.

(38) Privilege taxes. To collect such privilege taxes and fees as may be authorized by state law.

Cross reference—Privilege taxes generally, § 6.44 et seq.

(39) Right-of-way for public utilities. To grant rights-of-way through the streets, alleys, thoroughfares and tunnels and over the bridges of the city for the use of public or quasi-public utilities, and to provide the terms under which said permits may be granted.

Cross references—Franchises, Title 7; public utilities generally, Title 14.

(40) Fines and civil penalties. To provide for fines, forfeitures and civil penalties for the breach of any ordinance of the city and for the enforcement, recovery and appropriation of the same.

Cross references—Courts, fines and imprisonments, Title 4; police and fire generally, Title 13 § 4.8; maximum fine for ordinance violations, § 4.50.

(41) Police and fire departments. To provide for a police force and fire department and the organization and maintenance of the same, and to provide all proper equipment, houses and stations for said police force and the said fire department.

Cross reference—Police and firefighters generally, Title 13.

(42) Anchoring and mooring of vessels. To regulate stationary anchorage and mooring of vessels, houseboats or rafts when in the city.

(43) Closing of wells, cisterns, etc. To provide for temporary or permanent closing of wells, cisterns and springs used by the public whenever the same are or are likely to be injurious to health.

(44) Creation of offices; appointment of officials. To create such offices and provide for the appointment or election of all officers as may be necessary for the good government of the city.

Cross reference—City officers and employees generally, Title 3.

(45) Bonds of certain city officials. To designate the positions in the city administration, where not otherwise provided by the Charter, in which the incumbent shall give bond, and to fix the amount of such bond.

Cross references—City officers and employees generally, Title 3; duty of officers to give bond before entering into office, § 3.2.

(46) Consolidation, etc., of services with county, state, etc. To consolidate any of the services of the city with similar services of any authority authorized by law, county, state or other municipality or to use the service of any authority authorized by law, county, state or other municipality or to cooperate with any authority authorized by law, county, state or other municipality in the construction, establishment, use or acquisition of any services for the city and its inhabitants, upon agreement with the other authorities authorized by law or jurisdictions as to the services to be provided by each and the respective shares of the cost involved.

(47) Tourist camps, trailers, hotels, etc. To license, tax and regulate tourist camps, trailer camps, tourist homes, rest homes, hotels, inns and boardinghouses and the use and occupancy of trailers.

(48) Tourist guides. To license, tax and regulate tourist guides within the city and within one mile of the corporate limits thereof.

Cross reference—Privilege taxes generally, § 6.44.

(49) Reserved.

Editor's note—Former § 49 relating to milk repealed by Ord. No. 12677, § 2, 12-18-12.

(50) Dangerous, etc., houses and walks. To impose penalties upon the owner or owners, occupants or agents of any house, walk or sidewalk or other structures which may be considered dangerous or detrimental unless, after due notice to be fixed by ordinance, the same be removed or repaired; and, in the event the city shall at its own expense be compelled to remove or repair such property, the cost of such repairs or removal shall be and constitute a lien against said property, and the city shall also be entitled to a personal judgment against the owner or occupant thereof, and said lien may be enforced in any court of competent jurisdiction in Hamilton County.

(51) Weeds, rubbish, etc. To impose penalties upon the owner or owners, occupants or agents of any lot or parcel of land in the city for permitting to remain thereon obnoxious weeds, rubbish, grass or leaves which may be considered dangerous or detrimental to the health or safety of the citizens unless, after due notice, to be fixed by ordinance, the same be removed; and, in the event the city shall at its own expense be compelled to remove such grass, rubbish, leaves or weeds from such lot or parcel of land the cost of such removal shall be and constitute a lien against said property, and the city shall also be entitled to a personal judgment against the owner or occupant thereof, and said lien may be enforced in any court of competent jurisdiction in Hamilton County.

(52) Acts, businesses, etc., detrimental to public health, safety, etc. To define, prohibit, suppress, prevent and regulate all acts, practices, conduct, business, occupation, callings, trades, uses of property, and all other things whatsoever detrimental to the health, morals, comfort, safety, convenience or welfare of the inhabitants of the city, and to exercise general police powers under the provisions of this Act and the general law.

(53) Golf driving ranges and archeries. To license and regulate golf driving courses and archeries in said city, and to require a license from all persons operating or maintaining a golf driving course or archery of thirty dollars ($30.00) per annum for each golf driving course or archery.

(54) Agents, etc., of boat manufacturers and jobber. To license all persons maintaining an office or place of business as agent or representative of any manufacturer or representative of any manufacturer or jobber of boats, or engaged in dealing in buying or selling boats, shall be classified as boat dealers, and shall pay a privilege tax for each place of business of fifty dollars ($50.00) per annum.

Cross reference—Privilege taxes generally, § 6.44.

(55) Gasoline filling stations. To, by ordinance, regulate the construction, maintenance and operation of gasoline filling stations; to require permits for the construction, opening and reopening of filling stations; to regulate and zone the streets on which gasoline filling stations may be hereafter erected and existing filling stations reopened, and to provide for the issuance or certificates of necessity and convenience for the construction of additional filling stations, and to determine the number of filling stations that may be permitted on any street or in any block of any street, and such other regulations as may be necessary for the public health, safety and welfare, and collect inspection fees therefor.

Cross reference—Zoning generally, § 12.21.

(56) Reserved.

Editor's note—Former § 56 relating to barbershops and barber schools repealed by Ord. No. 12677, § 2, 12-18-12.

(57) Reserved.

Editor's note—Former § 57 relating to barbering repealed by Ord. No. 12677, § 2, 12-18-12.

(58) Venereal disease. To pass an ordinance to prevent the spread of venereal diseases within said city and to quarantine all persons arrested for prostitution or vagrancy found to be infected with any venereal disease arrested within said city and to provide means and methods for examination of all such persons and means and methods of treating all persons so infected.

(59) Steam boilers, etc.; regulation of steam fitters. To, by ordinance, regulate the installation of steam boilers, pressure tanks, steam and hot water heating plants, and steam pipes of any character, and to create the office of steam fitter inspector and fix the compensation thereof, and the term of office, and require permits for the installation of steam boilers, pressure tanks, steam and hot water systems or the installation of steam pipes of any character. The provisions of this Act [subsection] shall not apply to any work done in connection with any manufacturing plant or assembly plant.

(60) Reserved.

Editor's note—Former § 60 relating to schools, repealed by Ord. 10079, 9-9-94, effective 6-30-97.

(61) Waterworks. To provide the city with water by waterworks or otherwise, within or beyond the boundaries of the city.

(62) Watchmen and security guards. To regulate watchmen and security guards by night.

(63) Ferries. To regulate ferries so as not to conflict with the laws of Tennessee.

(64) Disorderly, etc., houses. To protect and suppress disorderly houses and bawdy houses.

(65) Additional general powers. To pass all ordinances not contrary to the Constitution and laws of the state necessary for the health, convenience, safety and general welfare of the inhabitants of the city, and to carry out the full intent, corporate purposes and meaning of this Act as fully as if specifically authorized and as if the powers were expressly conferred.

Cross reference—General authority of city council to pass ordinances, § 11.1.

(66) General powers. To have and exercise all powers which now or hereafter would be competent for this charter specifically to enumerate, as fully and completely as though said powers were specifically enumerated herein; and such powers as may be authorized pursuant to general state law for a municipal government to exercise including, but not limited to, the power to sue or be sued, implead or be impleaded in all courts of law and equity; and no enumeration of particular powers by this charter shall be held to be exclusive.

(Acts 1839-40, Ch. 32, § 3; Priv. Acts 1869-70, Ch. 4, § 9; Priv. Acts 1937, Ch. 28; Priv. Acts 1939, Ch. 578, § 1; Priv. Acts 1941, Ch. 535, § 2; Priv. Acts 1949, Ch. 536, § 2, Ch. 715, § 2; Priv. Acts 1969, Ch. 82, §§ 2, 5; Ord. No. 11272, §§ 1, 2, 5-2-02; Ord. No. 11305 § 1, 8-22-02; Ord. No. 12677, § 2, 12-18-12)

Sec. 2.2. Reserved.

Editor's note—Former § 2.2 relating to wards repealed by Ord. No. 12677, § 2, 12-18-12.

Sec. 2.3. Reserved.

Editor's note—Former § 2.3 relating to municipal band repealed by Ord. No. 12677, § 2, 12-18-12.

Sec. 2.4. Reserved.

Editor's note—Former § 2.4 relating to opening and closing hours of merchants repealed by Ord. No. 12677, § 2, 12-18-12.

Sec. 2.5. Parking meters.

In order to promote public safety and relieve traffic congestion on the streets of the City of Chattanooga, said city be, and is hereby, authorized and empowered to provide by ordinance for the installation, operation, maintenance, policing and supervision of parking meters or parking devices on its streets as an aid to the regulation and control of the parking of vehicles thereon, and to fix and require the payment of a fee for the privilege of parking opposite such meters or devices when they are in operation, and to determine on what streets or parts of streets in said city parking meters shall be placed, and the hours during which same shall be in operation. The City may contract for operation of parking meters and devices and for enforcement. In event there is any revenue left after paying the cost of acquiring, maintenance and enforcement of the ordinances authorized herein, such net revenue shall become a part of the general fund of the city.

(Priv. Acts 1941, Ch. 416, §§ 2, 3; Ord. No. 12677, § 2, 12-18-12)

Sec. 2.6. Lease contracts with federal government.

The charter of the City of Chattanooga, Tennessee, and all acts heretofore passed amendatory, be, and the same are hereby amended so as to authorize the city council of said city to enter into lease contracts with the United States of America for the use of any property owned by said city for the purpose of constructing armories and auxiliary buildings in which to house its military forces, said lease contracts to be for such terms and upon such conditions as the city council may determine, and for such rental, including nominal rent, as may be agreed upon by the city council and representatives of the United States of America.
(Priv. Acts 1951, Ch. 532, § 1; Ord. No. 11272, § 1, 5-2-02)

Sec. 2.7. Declaration of nuisances; abatement of same.

The City of Chattanooga shall have power to make regulations to secure the general health and safety of the inhabitants, and to prevent and remove nuisances. In order to accomplish these objects, the city council may declare, by ordinance, what constitutes nuisances, and provide for the abatement of the same, and make or cause to be made all repairs and improvements necessary for the health, safety and convenience of the inhabitants; and all expenses or outlay of said city shall be reimbursed by the owner or owners, and shall be secured by a lien upon the property upon which the expenditure is made, which lien shall be superior to any other contractual lien and may be enforced by suit in the chancery court.
(Priv. Acts 1937, Ch. 830, § 2; Ord. No. 11272, § 1, 5-2-02)

Sec. 2.8. Creation, discontinuance, etc., of offices not provided for by charter.

Said city council and mayor shall have power from time to time to create, fill, and discontinue other offices and employments than those herein prescribed, according to their judgment of the needs of the city.

When said city council shall, as now authorized by law, create any new office, the ordinance creating such office may provide that it shall be filled by appointment by the Mayor with the approval of said city council.
(Priv. Acts 1869, Ch. 4, § 6; Priv. Acts 1901, Ch. 432, § 6; Priv. Acts 1911, Ch. 10, § 21; Priv. Acts 1913, Ch. 301, § 4; Ord. No. 11272, § 1, 5-2-02)

Sec. 2.9. Authority to subscribe to stock in railroad or turnpike companies.

The city shall have power to subscribe for stock in any railroad or turnpike company, and pay for the same with its bonds or otherwise; provided, that any subscription of stock herein provided for shall, before the same shall become valid and binding, be approved by a majority of the taxpayers of the city.
(Priv. Acts 1866, Ch. 8, § 28; Ord. No. 11272, 5-2-02)

Sec. 2.10. Reserved.

Editor's note—Former § 2.10 relating to construction, enlargement, etc., of joint City-County hospitals is repealed by Ord. No. 12766, § 2, 12-18-12.

Sec. 2.11. Privilege tax on pleasure automobiles and motorcycles, taxicabs, buses, etc.

The city council of the City of Chattanooga, Tennessee, shall have power by ordinance to levy a privilege tax on automobiles for hire, taxicabs, automobile passenger buses, and require indemnity bonds in surety companies or indemnity insurance policies to be filed with the Chief Financial Officer of said city by the owner or operator of any such vehicle for the protection of the city or any person against loss by injury to person or property. The said city council shall also have authority to levy a privilege tax upon the running of automobiles for pleasure and motorcycles, not to exceed five dollars ($5.00) per annum on automobiles

and two dollars ($2.00) per annum on motorcycles. Said license shall be renewable annually, and for said license and each renewal thereof a fee fixed by ordinance not to exceed five dollars ($5.00) for automobiles and not to exceed two dollars ($2.00) for motorcycles may be charged.
(Priv. Acts 1929, Ch. 652, § 3; Ord. No. 11272, § 1, 5-2-02)

Cross reference—Privilege taxes generally, § 6.44.

Sec. 2.12. Reserved.

Editor's note—Former § 2.12 relating to off street parking repealed by Ord. No. 11306, § 1, 8-22-02.

Sec. 2.13. Reserved.

Editor's note—Former § 2.13 relating to dog licenses repealed by Ord. No. 10741, § 1(1), 8-18-98.

Sec. 2.14. Supplemental pension payments.

The city council may by ordinance provide for supplemental payments to all persons who are receiving a pension from the City of Chattanooga, and the same shall be payable from the general funds of the city. (Ord. No. 6783, § 1, 8-13-74; Ord. No. 11272, § 1, 5-2-02)

Title 3

CITY OFFICERS AND EMPLOYEES*

Chapter I. In General

Sec. 3.1. Eligibility for office.
Sec. 3.1.1. Employees and appointed officials required to be residents or legally qualified voters.
Sec. 3.2. Bonds and oaths of officers.
Sec. 3.3. Officers to serve until successors are elected and qualified.
Sec. 3.4. Reserved.
Sec. 3.5. Military leave.
Sec. 3.6. Minimum salaries of City Judges.
Secs. 3.7—3.17. Reserved.

Chapter II. Recall

Sec. 3.18. Recall authorized; procedure.
Secs. 3.19—3.25. Reserved.

Chapter III. Pensions and Death Benefits

Article 1. Generally

Secs. 3.26—3.34. Reserved.

Article 2. General Pension Plan

Sec. 3.35. General Pension Plan.
Sec. 3.36. Amendments by ordinance.
Secs. 3.37—3-60. Reserved.

Chapter IV. City Attorney

Sec. 3.61. Qualifications.
Sec. 3.62. Appointment by mayor and council.
Sec. 3.63. Duties generally.
Sec. 3.64. Reserved.
Sec. 3.65. Reserved.
Secs. 3.66—3.75. Reserved.

Chapter V. Subordinate Officers, Employees and Laborers

Article 1. Generally

Sec. 3.76. Reserved.

***Cross references—**Election of mayor, city council and city judge, Title 5; mayor and city council generally, Title 8; municipal boards and commissions, Title 9; general authority to create and fill offices, § 2.1(44); bonds of city officials, § 2.1(45); creation and discontinuance of offices not provided for by charter, § 2.8.

Sec. 3.77. Reserved.
Sec. 3.78. Reserved.
Sec. 3.79. Dismissal, suspension or demotion and appeal therefrom.
Secs. 3.80—3.86. Reserved.
Secs. 3.87—3.89. Reserved.
Secs. 3.90—3.94. Reserved.

Article 2. City Finance Officer

Sec. 3.95. Qualifications.
Sec. 3.96. Duties generally.
Secs. 3.97—3.101. Reserved.

Article 3. City Treasurer

Sec. 3.102. Qualifications.
Sec. 3.103. To serve as tax collector; duties generally.
Sec. 3.104. Oath and bond.
Sec. 3.105. Assistant city treasurer to sign checks when treasurer disabled or absent.
Secs. 3.106—3.110. Reserved.

Article 4. Office of Internal Audit, Audit Committee, and City Auditor

Sec. 3.111. Establishment.
Sec. 3.112. Appointment and Removal of City Auditor.
Sec. 3.113. Qualifications of City Auditor.
Sec. 3.114. Scope.
Sec. 3.115. Access to Employees, Records, and Property.
Sec. 3.116. Irregularities.
Sec. 3.117. Audit Committee Responsibilities.
Sec. 3.118. Orientation.

CHAPTER I. IN GENERAL

Sec. 3.1. Eligibility for office.

No person shall be eligible to any popularly elected office under City government to the extent that political activity by such person would interfere with state business prohibited by Tennessee or Federal law or otherwise result in any disqualification from taking office pursuant to Tennessee Code Annotated §§ 2-19-201 through 2-19-208 under Tennessee or Federal law. No person shall have any interest, direct or indirect, in any contract with or franchise from the city while holding any popularly elected office under the city government. But stockholders in corporations having such relations with the city, may be eligible to membership on the city council, but shall not vote on or interfere directly or indirectly, with any matters or questions affecting a contract or franchise between such company and the city, or its right or duty under the same. If, while any person is holding any popularly elected office under the city government, such person shall cease to possess any or all of the qualifications, or become subject to any of the disqualifications herein prescribed, such person's office shall thereby become immediately vacant. No person, while in arrears to the city for money collected, shall be eligible to any popularly elected office under the city government.
(Acts 1899, Ch. 216, § 7; Priv. Acts 1901, Ch. 432, § 4; Priv. Acts 1968, Ch. 476, § 1; Ord. No. 11272, § 1, 5-2-02; Ord. No. 11833, § 1, 5-23-06; Ord. No. 11876, § 1, 8-29-06; Ord. No. 11877, § 1, 8-29-06; Ord. No. 13192, § 1, 7-11-17)

Sec. 3.1.1. Employees and appointed officials required to be residents or legally qualified voters.

All employees of the city shall be residents of the State of Tennessee. This section 3.1.1 shall only apply to those employees working in general government of the city. Those employees who were hired on or before January 18, 1990, and who have lived outside the State of Tennessee continuously since said date, shall be exempted from this section 3.1.1.
(Ord. No. 11272, § 1, 5-2-02; Ord. No. 13007, § 1, 12-15-15; Ord. No. 14168, § 1, 11-12-24)

Sec. 3.2. Bonds and oaths of officers.

All officers of the city, before assuming the duties of office, shall enter into bond, as now required by law, and take and subscribe an oath that they possess the qualifications and are free from the disqualifications prescribed by this Act [section 3.1 of this Charter] and to faithfully discharge the duties of their respective offices, and such other oath or affirmation as may be now or hereafter prescribed by ordinance.
(Priv. Acts 1901, Ch. 432, § 5)

Cross reference—Authority to establish bond of officers, § 2.1(45).

Sec. 3.3. Officers to serve until successors are elected and qualified.

All city officers shall serve until their successors are appointed, or elected and qualified.
(Priv. Acts 1901, Ch. 432, § 4)

Sec. 3.4. Reserved.

Editor's note—Former § 3.4 relating to warrants repealed by Ord. No. 11272, § 1, 5-2-02.

Sec. 3.5. Military leave.

Any employee of the City of Chattanooga who shall enter the military or naval service of the United States Government during the time designated by the president of the United States as a period of emergency shall be given a leave of absence for the duration of said military or naval service, and upon the

termination of said service the mayor, if said position exists. If said position has been abolished, he shall be given a position of equal rank and at a salary of not less than that which he received when given said leave of absence for military or naval service during such emergency. And said employee shall retain all rights and benefits which he had under any civil service or tenure law of said city, and shall retain all rights and benefits which he had under any insurance and pension law of the city at the time he entered said service of the United States Government, and shall be given credit for the years spent in the military or naval service in computing the time served for pension purposes.
(Priv. Acts 1941, Ch. 492, § 1; Ord. No. 11272, § 1, 5-2-02)

Sec. 3.6. Minimum salaries of City Judges.

The annual salaries for the city judges, respectively, shall each be not less than the annual salary paid to any of the city council, which salaries shall be payable to each of them in equal semimonthly installments.
(Priv. Acts 1965, Ch. 237, § 2; Priv. Acts 1970, Ch. 343, § 2; Ord. No. 11272, § 1, 5-2-02)

Editor's note—Priv. Acts 1970, Ch. 343, § 2, amended the acts codified as § 3.6, by substituting "salaries" in lieu of "salary" and "judges" in lieu of "judge."

Cross references—City judge generally, § 4.20 et seq.; salary of city judges to be paid semi-monthly, § 4.23.

Secs. 3.7—3.17. Reserved.

CHAPTER II. RECALL

Sec. 3.18. Recall authorized; procedure.

The Mayor or a City Judge elected at large may be recalled pursuant to the provisions of Tennessee Code Annotated Section 2-5-151. A member of the City Council elected by district may be recalled pursuant to the provisions of Tennessee Code Annotated Section 2-5-151 provided a recall petition instituted pursuant to the provisions of this statute is signed by fifteen (15%) of the registered voters in that district. The successor of any officer so removed shall hold office during the unexpired term of his or her predecessor.
(Priv. Acts 1911, Ch. 10, § 25; Priv. Acts 1911, Ch. 126, § 3; Priv. Acts 1913, Ch. 301, § 8; Priv. Acts 1917, Ch. 432, § 2; Priv. Acts 1939, Ch. 573, § 1; Ord. No. 8936, § 1(2), 4-26-88; Ord. No. 9435, § 1(2), 8-21-90; Ord. No. 12631, § 1, 7-24-12)

Editor's note—Sections 8-47-101 through 8-47-126 of the Tennessee Code Annotated provide an alternate procedure for the removal of public officers.

Secs. 3.19—3.25. Reserved.

CHAPTER III. PENSIONS AND DEATH BENEFITS*

ARTICLE 1. GENERALLY

Secs. 3.26—3.34. Reserved.

***Cross reference—**Pensions for policemen and firemen, § 13.63 et seq.

ARTICLE 2. GENERAL PENSION PLAN

Sec. 3.35. General Pension Plan.

The General Pension Plan as established by the Private Acts of 1965, Chapter 254, as amended by private acts and Home Rule referenda, shall be transferred from the Charter compilation to the City Code compilation, but the vested rights of any participant or beneficiary shall not thereby be affected. No current provision of the General Pension Plan may be amended hereafter except pursuant to the provisions of section 3.36 below.
(Priv. Acts 1965, Ch. 254; Priv. Acts 1967, Ch. 169; Priv. Acts 1968, Ch. 430; Priv. Acts 1971, Ch. 137; Priv. Acts 1972, Ch. 402; Ord. No. 7408, 8-22-78; Ord. No. 8688, 8-19-86; Ord. No. 9766, 8-11-92; Ord. No. 10084, 8-16-94; Ord. No. 10463, 8-20-96; Ord. No. 10739, 8-18-98; Ord. No. 11011, 5-9-00; Ord. No. 11272, 4-30-02; Ord. No. 12677, 12-18-12)

Sec. 3.36. Amendments by ordinance.

The City Council of the City of Chattanooga, in its discretion, may upon recommendation of the Board of Trustees of the General Pension Plan, upon advice by the Mayor, and upon receipt of an actuarial report as to the costs and actuarial soundness of such changes, may amend by ordinance passed upon two separate meetings the provisions of the General Pension Plan providing such amendments are consistent with sound actuarial principles, methods and assumptions and further provided that such amendments shall not decrease any vested financial benefits accrued by any participant or beneficiary.
(Ord. No. 11101, § 1(12), 5-9-00; Ord. No. 12677, 12-18-12)

Secs. 3.37—3-60. Reserved.

CHAPTER IV. CITY ATTORNEY

Sec. 3.61. Qualifications.

The city attorney shall be a practicing attorney of at least one year's standing in Chattanooga.
(Priv. Acts 1901, Ch. 432, § 82; Priv. Acts 1911, Ch. 126, §§ 1, 2; Priv. Acts 1919, Ch. 76; Priv. Acts 1968, Ch. 468, § 1; Ord. No. 11272, § 1, 5-2-02)

Sec. 3.62. Appointment by mayor and council.

The mayor and the council shall each have the right to retain independent separate attorneys, from time-to-time. No later than the date the mayor appoints department heads, the mayor and council shall jointly appoint a city attorney for a term concurrent with the term of the mayor, and until he is discharged or his successor is appointed and qualified. The city attorney may be removed from office at any time by the affirmative vote of two-thirds of the entire membership of the city council, and the concurrence of the mayor. Any vacancy occurring in said office shall be filled by joint appointment of the mayor and the council.
(Ord. No. 9439, § 1(2), 8-2-90; Ord. No. 11272, § 1, 5-2-02)

Sec. 3.63. Duties generally.

It shall be the duty of the city attorney to give legal advice to the mayor and city council, and all other officers and boards of the city in the discharge of their official duties. If required, he shall give his opinions in writing, and they shall be preserved for reference. It shall be his duty to prosecute or defend all suits for or against the city and to attend to such other legal business as may be prescribed by the mayor and/or city council. It shall also be his duty, either in person or by an assistant, to appear and prosecute cases in the city

court when called upon by the mayor or any council member or the city judge. He shall prepare all contracts, bonds and instruments in writing when called upon by the mayor or any council member. He shall give his first time and attention to the city's legal business.
(Priv. Acts 1935, Ch. 687, § 2; Ord. No. 11272, § 1, 5-2-02)

Sec. 3.64. Reserved.
(Ord. No. 10745, § 1(2), 8-18-98)

Sec. 3.65. Reserved.
(Ord. No. 10745, § 1(1), 8-18-98)

Secs. 3.66—3.75. Reserved.

CHAPTER V. SUBORDINATE OFFICERS, EMPLOYEES AND LABORERS

ARTICLE 1. GENERALLY

Sec. 3.76. Reserved.
(Ord. No. 10745, § 1(1), 8-18-98)

Sec. 3.77. Reserved.
(Ord. No. 10745, § 1(1), 8-18-98)

Sec. 3.78. Reserved.
(Ord. No. 11018, § 1(1), 5-16-00)

Sec. 3.79. Dismissal, suspension or demotion and appeal therefrom.

All officers, agents and employees whose employment and employment rights are not otherwise specifically governed in this Charter, whether the same be under the administrative and executive branch, or under the legislative or judicial branches, shall be subject to dismissal, suspension or demotion by the authority which appointed them, but any such officer, agent, or employee so dismissed, suspended or demoted shall have the right of appeal of any disciplinary action to the extent provided by Ordinance.

The city council is authorized to establish administrative procedures to provide a fair and impartial method to hear such appeals. The administrative body or judge established by these administrative procedures shall have the right to determine whether such dismissal, suspension or demotion shall be effective, the employee should be reinstated or to otherwise modify the order of dismissal, suspension or demotion. As used herein, the term "hearing body or judge" shall mean the person or persons duly established by Ordinance of the City Council to conduct appeal hearings.
(Ord. No. 12424, § 1, 8-17-10)

Secs. 3.80—3.86. Reserved.

Editor's note—Former Sections 3.79 through 3.86 were repealed by Ord. No. 9437, § 1(2), 8-21-90.

Secs. 3.87—3.89. Reserved.

Editor's note—Former Sections 3.87 through 3.89 were repealed by Ord. No. 10745, § 1(1), 8-18-98.

Secs. 3.90—3.94. Reserved.

ARTICLE 2. CITY FINANCE OFFICER

Sec. 3.95. Qualifications.

No person shall be eligible to the office of finance officer if he shall hold any civil office under the federal, state or county government.
(Priv. Acts 1901, Ch. 432, § 4; Priv. Acts 1968, Ch. 476, § 1; Ord. No. 10742, § 1(1), 8-18-98)

Sec. 3.96. Duties generally.

The City Finance Officer of the City of Chattanooga shall be the general accounting and chief fiscal officer of the City. Additionally the City Finance Officer shall:

1. Maintain accounting and financial reporting records in accordance with standards and procedures established by the State of Tennessee.
2. Ensure that City funds are expended as appropriated by the City Council and that no expenditures are made in excess of the amount previously appropriated.
3. Perform such other duties as may be imposed upon him by other provisions of the Charter or by ordinance of the City.
4. Maintain and be the custodian of the City's official records, except when another custodian for specific records is designated by Charter or ordinance.

(Priv. Acts 1953, Ch. 105, § 2; Ord. No. 10742, § 1(2), 8-18-98)

Secs. 3.97—3.101. Reserved.

ARTICLE 3. CITY TREASURER

Sec. 3.102. Qualifications.

No person shall be eligible to the office of treasurer if he shall hold any civil office under the federal, state or county government.
(Priv. Acts 1901, Ch. 432, § 4; Priv. Acts 1968, Ch. 476, § 1; Ord. No. 11272, § 1, 5-2-02)

Cross reference—Residence and voting requirements, § 3.1.1.

Sec. 3.103. To serve as tax collector; duties generally.

The city treasurer shall act as tax collector. He shall collect all ad valorem taxes, privilege and other licenses. It shall be the duty of the city treasurer to receive and safely keep all taxes, privilege or other moneys due the city and receipt for the same; to keep a strict account of the same, and to pay same out on warrants drawn by the City Finance Officer. For all moneys paid into the treasury the treasurer shall execute duplicate receipts-one for the party paying and one for the city finance officer. His books shall at all times be open to the inspection of the mayor, city finance officer or any member of the city council. He shall report at the close of business each day to the city finance officer the balance in the treasury. He shall perform such other duties as may be imposed upon him by the provisions of the charter or ordinances of the city.

Receipts for the payment of taxes shall be recorded in a stub book kept for that purpose, filed with the City Finance Officer.

The city treasurer shall make a report of the condition of the treasury, which shall be addressed to the Mayor and City Council of the City of Chattanooga, and be submitted to them at the last regular meeting of said board in December of each year. Said report shall be verified by the treasurer, under oath, and shall

show: 1st. The amount of money received for taxes upon lands and town lots; 2nd. The amount of money received for license and special taxes of all kinds; 3rd. The amount of money received from other sources; 4th. The total receipts; 5th. Items of expenditures; 6th. Aggregate expenditures; 7th. Balance on hand; 8th. Amount due the city from all sources. The report of the treasurer shall be published six times in one of the city papers. Said treasurer shall turn over to his successor in office, or when such successor shall be elected and qualified, all books, papers, moneys, creditors or other property or evidence of indebtedness, pertaining to his said office.
(Priv. Acts 1866-67, Ch. 8, § 21; Priv. Acts 1901, Ch. 432, § 71; Priv. Acts 1901, Ch. 495, § 4; Priv. Acts 1911, Ch. 10, § 13; Priv. Acts 1919, Ch. 548; Priv. Acts 1953, Ch. 105, § 3; Ord. No. 11272, § 1, 5-2-02)

Cross reference—City taxes generally, see § 6.15 et seq.

Sec. 3.104. Oath and bond.

Before entering upon his duties, the city treasurer shall take and subscribe an oath faithfully, honestly and impartially to discharge the duties of said office, and shall give bond with good and sufficient sureties, approved by the City Council, payable to the City of Chattanooga, conditioned upon the faithful, honest and lawful discharge of his office; and when said bond has been accepted by the board, it, together with the oath herein prescribed, shall be filed by the city clerk. The bond of the treasurer shall be for the sum of twenty thousand dollars ($20,000.00).
(Priv. Acts 1866, Ch. 8, § 19; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Sec. 3.105. Assistant city treasurer to sign checks when treasurer disabled or absent.

The charter of the City of Chattanooga, Tennessee, and all acts amendatory thereof, be, and the same are, hereby amended so as to authorize the assistant city treasurer to sign checks for and on behalf of the city in the event the city treasurer is absent or disabled.
(Priv. Acts 1945, Ch. 284, § 1)

Secs. 3.106—3.110. Reserved.

ARTICLE 4. OFFICE OF INTERNAL AUDIT, AUDIT COMMITTEE, AND CITY AUDITOR

Sec. 3.111. Establishment.

(A) There is hereby established the Office of Internal Audit of the City of Chattanooga. The Office of Internal Audit shall be independent and separate from any other agency, board or department of the City of Chattanooga and shall report to the Audit Committee, Mayor, Council and the citizens.

(B) The Audit Committee shall consist of five voting members. The members shall be residents of the City of Chattanooga. At least four of the members shall have experience in auditing and shall be Certified Public Accountants. The members shall be recommended two each by the local chapters of the Tennessee Society of Certified Public Accountants and the Institute of Internal Auditors, and one by the local chapter of the Association of Certified Fraud Examiners. Should any of these organizations cease to exist, the Council may name a replacement organization or that organization's recommendation may be made by the Council. The recommendations shall be approved by a majority vote of the current members of the Audit Committee. The members shall serve five year staggered terms. Three members shall constitute a quorum. Members of the current Audit Committee shall serve as if appointed under this section. Members shall serve until their successors are approved. No member shall be an employee of the City or any City board or agency. No member shall have a direct or indirect interest in any contract with the City during their term

of service, nor for one year after their term of service. Nor shall any member, member of their immediate family, or regular member of their household, be employed by the City or any agency that obtains more than ten percent of its annual funding from the City. The Audit Committee shall meet at least quarterly.

(C) The Office of Internal Audit shall be provided a separate budget to carry out the responsibilities and functions established in this section. Budget reductions shall only be made when proportional to reductions in the City's budget for ordinary expenses.

(D) The Chief Audit Executive shall have the title City Auditor. The City Auditor shall establish the internal organization of the office and shall organize it as deemed necessary to perform the functions, powers, and duties of the office. The City Auditor shall have the power to appoint, employ, and remove staff following the same administrative processes established for City personnel practices. The City Auditor shall be a resident of the City of Chattanooga.

(E) The existing functions, personnel, funds, equipment, facilities and records of the Internal Audit Division established as an executive office of the Mayor shall be transferred to the Office of Internal Audit as established herein.
(Ord. No. 12566, § 1, 1-24-12)

Sec. 3.112. Appointment and Removal of City Auditor.

The City Auditor shall be appointed by the Audit Committee and approved by the Council. If a vacancy occurs in the City Auditor position, a replacement shall be appointed within six months. The City Auditor shall receive a salary set by the Audit Committee using established market data. The City Auditor may be removed from office for just cause by the affirmation vote of two-thirds of the entire membership of the Audit Committee and approval by the Council. The current Director of Internal Audit on August 11, 2011 shall serve as City Auditor as if appointed under the terms of this section.
(Ord. No. 12566, § 1, Item 1, 1-24-12)

Sec. 3.113. Qualifications of City Auditor.

The City Auditor shall be a Certified Public Accountant knowledgeable in governmental auditing, public administration, and government financial and fiscal practices.
(Ord. No. 12566, § 1, 1-24-12)

Sec. 3.114. Scope.

The Office of Internal Audit shall have authority to conduct audits, special projects, inspections, investigations, or audit-related functions of all departments, offices, boards, activities and agencies of the City of Chattanooga or chartered under the City of Chattanooga. The Office of Internal Audit shall conduct audits in accordance with government auditing standards promulgated by the Comptroller General of the United States. The City Auditor shall not be denied independent legal counsel. The Office of Internal Audit shall assert no direct responsibility or authority over City activities reviewed. Its review and appraisal of activities does not relieve other persons in the City of any responsibilities assigned to those activities.
(Ord. No. 12566, § 1, 1-24-12)

Sec. 3.115. Access to Employees, Records, and Property.

(A) All officers and employees of the City of Chattanooga, its agencies or any entity chartered under the City of Chattanooga shall cooperate with and furnish the Office of Internal Audit unrestricted access to employees and information regarding powers, duties, activities, organization, assets, financial transactions, contracts, and methods of business, as well as all facilities, property, and records including automated data and digital information.

(B) All contracts with outside contractors and subcontractors shall provide for the Office of Internal Audit to have access to all financial and performance related records, property and equipment related to City of Chattanooga contracts.
(Ord. No. 12566, § 1, 1-24-12)

Sec. 3.116. Irregularities.

The Office of Internal Audit shall be informed of any special investigation, fraud, theft, or other suspected cases of misappropriation occurring within the City government.
(Ord. No. 12566, § 1, 1-24-12)

Sec. 3.117. Audit Committee Responsibilities.

(A) The Audit Committee shall review the annual audit plan provided by the City Auditor and recommend additional audits it deems advisable. The Audit Committee shall monitor follow-up reports on audit findings and recommendations and may require any manager who has not successfully completed corrective actions to appear before the committee. Any employee of the City shall appear before the Audit Committee when summoned.

(B) The Audit Committee shall meet with the external auditor at least three times per year: During the planning stage, during the field work stage, and after completion of the audit.

(C) The Audit Committee shall provide for and oversee the annual external audit. The Audit Committee shall administer and manage a request for proposal process to select the external auditor.

(D) The Audit Committee should ensure the continuing independence of the external auditor and review the external auditor's peer review report.

(E) The Audit Committee shall review the Office of Internal Audit's peer review report that shall be conducted as required by government auditing standards referenced in Section 3.114.

(F) The Audit Committee shall report to the Council and Mayor on problems or problem areas as deemed appropriate.

(G) The Audit Committee shall maintain and have oversight of the City's fraud, waste and abuse prevention program.

(H) The City Auditor shall provide staff resources as needed by the Audit Committee to fulfill its responsibilities.
(Ord. No. 12566, § 1, 1-24-12)

Sec. 3.118. Orientation.

The City Auditor shall develop and provide an orientation training program for all newly elected City officials. The training shall be provided within 60 days of the date such officials take office. All newly elected City officials shall attend. The training shall include, but not be limited to, an overview of the City's administrative code and relevant sections of state law.
(Ord. No. 12566, § 1, 1-24-12)

Title 4

COURTS, FINES AND IMPRISONMENTS*

Chapter I. In General

Sec. 4.1. Jurisdiction and appeals from city court for ordinance violations; contempt.
Sec. 4.2. Court costs; litigation tax not required.
Sec. 4.3. Judge and clerk of city court may administer oaths.
Secs. 4.4—4.19. Reserved.

Chapter II. City Judge

Sec. 4.20. Qualifications.
Sec. 4.21. Vacancies in office.
Sec. 4.22. Oath of office; bond.
Sec. 4.23. Salaries to be paid semi-monthly.
Sec. 4.24. Special city judge—Election; to act in absence of city judge.
Sec. 4.25. Same—Powers; compensation.
Sec. 4.26. Same—Clerk to enter on minutes call and result of election, etc.
Sec. 4.27. Divisions of city court; presiding judge of first division.
Sec. 4.28. Judge of second division; powers, jurisdiction, compensation.
Sec. 4.29. Reserved.
Sec. 4.30. Emergency special judges.
Secs. 4.31—4.36. Reserved.

Chapter III. Clerk of City Court

Sec. 4.37. Reserved.
Sec. 4.38. Clerk.
Sec. 4.39. Keeping of minutes and dockets.
Sec. 4.40. Duties pertaining to functioning of court.
Secs. 4.41—4.49. Reserved.

Chapter IV. Fines, Penalties and Forfeitures

Sec. 4.50. Maximum fine for violation of ordinance.
Sec. 4.51. Suits for and recovery of fines, penalties and forfeitures.
Sec. 4.52. Deductions from sentence of city prisoners for good conduct.

***Cross reference—**Election of city judge, Title 5.

CHAPTER I. IN GENERAL*

Sec. 4.1. Jurisdiction and appeals from city court for ordinance violations; contempt.

The city court shall have original and exclusive jurisdiction of all violations of municipal ordinances. In all city cases in which the fine imposed does not exceed ten dollars ($10.00), the judgment of the city court shall be final, and no appeal shall be had therefrom. In all other cases, an appeal may be taken to the circuit court of Hamilton Comity, as now provided by law.

The city court and the judge thereof shall have and exercise the same jurisdiction in cases of contempt of court as is now provided by statute.
(Ord. No. 13344, § 2, 8-7-18)

Sec. 4.2. Court costs; litigation tax not required.

In all cases tried in the city court of Chattanooga for the violation of ordinances of said city, fees shall be taxed by the clerk of the city court in an amount to be set by state law or city ordinance for all matters and services.

Such part of said fees as may accrue in each case shall be taxed by the clerk as a part of the cost and collected from the defendant in addition to the fine imposed by the court. Court costs shall take precedence over fines for partial payments by defendants.

The clerk of the city court shall remit collections to the City Treasury daily, but in no event later than three (3) business days after collection. A report providing a detailed description of the collections by type shall be submitted with said collections as support and proof of completeness of all collections received.

The city judge shall not in cases involving violations of the parking ordinance impose court costs in fining a violator, provided that in the event the violator of the ordinance shall willfully fail to appear to answer a parking ticket, the costs provided in this section shall be taxed as costs against such violator.

The City Council shall establish by ordinance a fee to be added as and in the nature of court cost to the cost incurred in the city court on all forfeitures of fines or monies for or on conviction for violation of any city ordinances. Said increase in court costs for the city court shall be collected by the clerk of said court and deposited in the City Treasury. The City Finance Officer shall remit said funds to the trustees of the firemen's and policemen's insurance and pension fund, together with all other monies properly collected for credit to said fund as set forth herein.
(Ord. No. 13344, § 2, 8-7-18)

Sec. 4.3. Judge and clerk of city court may administer oaths.

Both the judge and clerk of the city court shall be authorized to administer oaths and affirmations.
(Ord. No. 13344, § 2, 8-7-18)

Secs. 4.4—4.19. Reserved.

***Editor's note—**Ord. No. 1334, § 1, adopted Aug. 7, 2018, repealed the former Ch. 1, §§ 4.1—4.9, and enacted a new Ch. 1 as set out herein. The former Ch. 1 pertained to similar subject matter and derived from Priv. Acts 1901, Ch. 432, §§ 77, 78, 81; Priv. Acts 1901, Ch. 495, § 5; Priv. Acts 1915, Ch. 221; Priv. Acts 1929, Ch. 652, § 2; Priv. Acts 1937, Ch. 868, §§ 1—3; Priv. Acts 1945, Ch. 425, §§ 2—6; Priv. Acts 1969, Ch. 165, § 1; Ord. No. 10742, § 1(1), 8-18-98; Ord. No. 11272, § 1, 5-2-02; Ord. No. 11308, § 1, 8-22-02; Ord. No. 11310, § 1, 8-22-02.

CHAPTER II. CITY JUDGE*

Sec. 4.20. Qualifications.

No person shall be eligible to the office of city judge unless he shall have been for at least one year next before his election a citizen of Tennessee and a resident of said city.
(Priv. Acts 1911, Ch. 10, §§ 4, 22; Priv. Acts 1919, Ch. 76)

Sec. 4.21. Vacancies in office.

Any vacancy occurring in the office of the city judge shall be filled by appointment of the mayor, concurred in by the city council, which appointment shall be valid only until the next primary or general election or referendum which is held in the city after the vacancy occurs.
(Priv. Acts 1911, Ch. 10, § 22; Ord. No. 11010, § 1, 5-9-00)

Sec. 4.22. Oath of office; bond.

The city judge shall take an oath of office and enter into a bond, with good security, to be approved by the City Council, in the sum of five thousand dollars ($5,000.00), payable to the City of Chattanooga, and conditioned for the faithful discharge of the duties of his office, and in addition thereto, shall give bond, as required by law, as a justice of the peace, to account for fines and forfeitures due to the State of Tennessee.
(Priv. Acts 1868, Ch. 45, § 15; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Sec. 4.23. Salaries to be paid semi-monthly.

The annual salaries so fixed for all such city officials shall be payable in equal semi-monthly installments.
(Priv. Acts 1949, Ch. 627, § 3; Priv. Acts 1970, Ch. 343, § 3)

Editor's note—Prior to the enactment of Private Acts 1970, Ch. 343, § 3, § 4.23 provided: "The salary of the city judge shall be payable in monthly installments."

Sec. 4.24. Special city judge—Election; to act in absence of city judge.

If for any reason the judge of the city court should fail to attend any daily session of said court, it shall be the duty of the clerk of said court to open court and hold an election, to be participated in by the attorneys present for the selection of a special judge to preside during the absence of the regular judge. Such election shall be governed by the same rules as now prevail for the election of special judges in the circuit and criminal courts of the state.
(Priv. Acts 1917, Ch. 713)

Sec. 4.25. Same—Powers; compensation.

Such special judge shall take the same oath and be clothed with the same powers pro tempore, as the regular judge. If he shall serve for a longer period than five (5) days he shall be paid such compensation as the City Council by ordinance may allow, not exceeding the salary for the same time as the regular judge, and the ordinance shall also provide how much, if any, of the compensation shall be deducted from the salary of the regular judge.
(Priv. Acts 1901, Ch. 432, § 78; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

***Cross reference—**Minimum salary of city judges, § 3.6.

Sec. 4.26. Same—Clerk to enter on minutes call and result of election, etc.

It shall be the duty of the clerk to enter upon his minutes the call and result of such election and the administering of the oath of office by said clerk to such special judge.
(Priv. Acts 1917, Ch. 713)

Sec. 4.27. Divisions of city court; presiding judge of first division.

The city court is hereby divided into two (2) divisions, and a first division and a second division are hereby created. The present city judge shall preside over the first division of the city court.
(Priv. Acts 1969, Ch. 102, § 2)

Sec. 4.28. Judge of second division; powers, jurisdiction, compensation.

The judge of the second division shall possess the same powers and jurisdictions as are now possessed by the city court and the city judge, and shall receive such compensation as the City Council shall provide by ordinance.
(Priv. Acts 1969, Ch. 102, § 3; Ord. No. 11272, § 1, 5-2-02)

Sec. 4.29. Reserved.
(Ord. No. 11014, § 1, 5-9-00)

Sec. 4.30. Emergency special judges.

The mayor is hereby authorized and empowered to appoint emergency special judges of the city court during any period of emergency proclaimed by the mayor or any other state or municipal official authorized to proclaim a state of emergency in the city. Such emergency special judges shall possess all the judicial power and jurisdiction now conferred on the city court or city judge; may hold court sessions at such place or places as the judge of the first division may designate, either at the city courtroom or elsewhere, as the exigencies of the situation may demand; and the authority of such emergency special judges shall cease at the termination of the state of emergency.
(Priv. Acts 1969, Ch. 102, § 7; Priv. Acts 1969, Ch. 180, § 3)

Secs. 4.31—4.36. Reserved.

CHAPTER III. CLERK OF CITY COURT

Sec. 4.37. Reserved.
(Ord. No. 11018, § 1(1), 5-16-00)

Sec. 4.38. Clerk.

The mayor shall appoint the city court clerk at the time (s)he appoints all other department heads, subject to confirmation by a majority vote of the entire membership of the council. The term of the clerk shall be concurrent with that of the mayor and until the clerk's successor is appointed and qualified. The mayor may remove the clerk at any time with the approval of a majority vote of the entire membership of the council.
(Priv. Acts 1901, Ch. 432, § 76; Ord. No. 10742, § 1(1), 8-18-98; Ord. No. 11018, § 1(1), 5-16-00)

Sec. 4.39. Keeping of minutes and dockets.

The clerk of said court shall keep the minutes of the court in the same manner that the minutes of the circuit courts of said state are required by law to be kept. He shall also prepare for each session of the court a docket of all cases not previously disposed of.
(Priv. Acts 1901, Ch. 432, § 80)

Sec. 4.40. Duties pertaining to functioning of court.

The clerk of the city court is hereby authorized to issue all writs and processes necessary to the functioning of said court; to administer oaths and to take acknowledgments; and to accept appearances, waivers and pleas of guilty to citations issued for traffic violations.
(Priv. Acts 1969, Ch. 102, § 5)

Secs. 4.41—4.49. Reserved.

CHAPTER IV. FINES, PENALTIES AND FORFEITURES

Sec. 4.50. Maximum fine for violation of ordinance.

The City Council shall have power by ordinance (a) to provide for fines, forfeitures and penalties for the breach of any ordinance of the city and for the enforcement, recovery and appropriation of the same, and (b) to provide for confinement in a workhouse for failures to pay any fine.
(Priv. Acts 1901, Ch. 432, § 11; Priv. Acts 1911, Ch. 10, § 13; Priv. Acts 1969, Ch. 82, § 2; Ord. No. 11272, § 1, 5-2-02; Ord. No. 11305, § 1, 8-22-02)

Editor's note—Prior to the enactment of Priv. Acts 1969, Ch. 82, § 2, § 4.50 provided: "The board of commissioners shall have power by ordinance to impose fines not to exceed fifty dollars ($50.00) for the violation of any ordinance."

Sec. 4.51. Suits for and recovery of fines, penalties and forfeitures.

All fines, penalties or forfeitures imposed by the bylaws and ordinances of said corporation, shall be sued for and recovered as other moneys are under the existing laws of the state, by the City Council of said corporation, and for the use of said town [city].
(Acts 1839, Ch. 32, § 5; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Sec. 4.52. Deductions from sentence of city prisoners for good conduct.

The City Council may, for good conduct, authorize deductions from the time of city prisoners under its control.
(Priv. Acts 1901, Ch. 432, § 48; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Title 5

ELECTIONS OF MAYOR, COUNCIL MEMBERS AND CITY JUDGES*

Chapter I. In General

Sec. 5.1. Which district voters to vote in.
Sec. 5.2. Primary elections—Required.

Chapter II. Mayor and Council Elections

Sec. 5.3. Same—When held; hours polls open.
Sec. 5.4. Same—Supplemental registration.
Sec. 5.5. Same—Candidates to file petitions.
Sec. 5.6. Same—Publication of names of candidates; distribution of ballots, etc.
Sec. 5.7. Reserved.
Sec. 5.8. Reserved.
Sec. 5.9. Same—Certification of names of two candidates receiving highest vote for each administrative post.
Sec. 5.10. Same—Persons receiving majority vote in primary deemed elected.
Sec. 5.11. Same—Inspectors at voting places.
Sec. 5.12. Same—Expense of primary election.
Sec. 5.13. Purpose of regular election.
Sec. 5.13.1. When regular election to be held; beginning of terms.
Sec. 5.14. Candidates on ballot in regular election.
Sec. 5.15. Reserved.
Secs. 5.16—5.25. Reserved.
Sec. 5.26. Council to be judge of eligibility and election of members of board.
Sec. 5.27. Effect of redistricting on residency requirement.
Secs. 5.28—5.37. Reserved.

Chapter III. City Judge

Sec. 5.38. Term of office.
Sec. 5.39. Manner of nomination and election.
Secs. 5.40—5.49. Reserved.

Chapter IV. Election Offenses

Sec. 5.50. Offenses in state elections declared to be offenses in city elections.
Sec. 5.51. Offering reward, etc., for vote prohibited.
Sec. 5.52. Bribery.

***Cross references—**City court generally, Title 4; mayor and city council generally, Title 8; recall of elective officers, § 3.18 et seq.; initiative and referendum, § 11.24 et seq.

CHAPTER I. IN GENERAL

Sec. 5.1. Which district voters to vote in.

The voters shall vote by ballot, and only in the districts in which they may have resided thirty (30) days next preceding the election. Only persons who are residents of the City of Chattanooga shall be eligible to vote in City elections.
(Acts 1889, Ch. 29, § 2; Ord. No. 11272, § 1, 5-2-02; Ord. No. 12677, 12-18-12)

Sec. 5.2. Primary elections—Required.

Candidates to be voted for in all municipal elections at which the mayor and council members and city judges are to be elected under the provisions of this Title shall be nominated by a primary election to be held by the commissioners of election at Hamilton County, Tennessee, of the legally qualified voters of said city at large, and no other names shall be placed upon the official ballot or be voted for at such regular election except those selected in the manner hereinafter prescribed.
(Priv. Acts 1911, Ch. 10, § 5; Priv. Acts 1911, Ch. 126, § 2; Ord. No. 11272, § 1, 5-2-02)

CHAPTER II. MAYOR AND COUNCIL ELECTIONS

Sec. 5.3. Same—When held; hours polls open.

Elections for Mayor and City Council members shall be held on the first Tuesday in March, 1993, and every four (4) years thereafter. The Mayor and each City Council member shall be elected by a majority of the votes cast for the office he or she seeks. If no candidate for Mayor or no candidate for one or more City Council seats attains a majority in the March elections, a run-off election shall be held on the second Tuesday in April. The run-off election shall be held between the two candidates in each such contest who received the highest number of votes. Those candidates elected either in the first election in March or in the run-off election in April shall file a bond, take the oath of office and assume their respective duties on the first Monday after the second Tuesday in April following the initial March elections, each to serve until the first Monday after the second Tuesday in April, 1997, or until a successor is elected and qualified. A Mayor and all City Council members shall be elected to four (4) year terms of office in the same manner thereafter.

Said primary election shall be held, as far as possible, at the voting places in the various districts, and the polls shall be opened at 9:00 o'clock a.m. and closed at 7:00 o'clock p.m.
(Priv. Acts 1911, Ch. 10, § 5; Priv. Acts 1951, Ch. 327, § 1; Ord. No. 11272, § 1, 5-2-02; Ord. No. 12677, 12-18-12)

Sec. 5.4. Same—Supplemental registration.

The primary elections herein provided for shall be deemed elections within the meaning of the provisions of the election laws, requiring a supplemental registration preceding each election, so that there shall be such supplemental registration before each primary election and again before each regular election; and registration as now provided by law, shall be a prerequisite to voting in either primary or other elections under this Act.
(Priv. Acts 1911, Ch. 10, § 5)

Sec. 5.5. Same—Candidates to file petitions.

Any person desiring to become a candidate for mayor or city council member shall, at least thirty (30) days prior to said primary election, file with said board of election commissioners and over his own signature a statement of his candidacy; that he has the qualifications prescribed by this Act, and that he requests that

his name be printed upon the official primary ballot and at the same time he shall file with said board of election commissioners the petition of at least twenty-five (25) qualified voters of said city requesting such candidacy. Each petition shall be verified by one or more persons as to the qualifications and residence, with street number of each of the persons so signing the said petition.
(Priv. Acts 1911, Ch. 10, § 6; Priv. Acts 1911, Ch. 126, § 2; Priv. Acts 1939, Ch. 85, § 1; Ord. No. 11272, § 1, 5-2-02)

Sec. 5.6. Same—Publication of names of candidates; distribution of ballots, etc.

Upon the expiration of the time of filing the statements and petitions for candidates, the said board of election commissioners shall cause to be published once a week for three (3) consecutive weeks in one or more daily newspapers published in the city the names of the persons that will appear upon the primary ballots for mayor and city council, respectively, and the said board of election commissioners shall thereupon cause the primary ballots to be printed and distributed, the primary held, the vote canvassed, and certified as now required by law in cases of regular municipal elections.
(Priv. Acts 1911, Ch. 10, § 7; Priv. Acts 1911, Ch. 126, § 2; Priv. Acts 1915, Ch. 398, § 1; Priv. Acts 1939, Ch. 85, § 2; Priv. Acts 1957, Ch. 73, § 5; Ord. No. 11272, 5-2-02)

Sec. 5.7. Reserved.
(Ord. No. 11272, 5-2-02)

Sec. 5.8. Reserved.
(Ord. No. 11272, 5-2-02)

Sec. 5.9. Same—Certification of names of two candidates receiving highest vote for each administrative post.

In each city primary election hereafter held, the board of election commissioners shall certify in writing to the city finance officer the names of the two (2) candidates for each administrative post receiving the largest number of votes therefor, or such candidate, if less than two (2).
(Priv. Acts 1957, Ch. 73, § 5; Ord. No. 10742, § 1(1), 8-18-98)

Sec. 5.10. Same—Persons receiving majority vote in primary deemed elected.

In each city primary election hereafter held if any candidate for mayor, city judge or city council member shall receive a majority of the votes cast for all candidates for the office or administrative post for which (a) he was a candidate,(b) he shall be declared elected, and given a certificate of election, and his name shall not be placed on the ballot in the regular election.

If, under the provisions of this section, said primary election shall result in the election of candidates to fill all of the offices to be filled, no further election shall be held, and the term of office of all officers elected as the result of said primary election shall begin at the time it would have begun if they had been elected at the regular or second election provided for in the Charter of the City of Chattanooga.
(Priv. Acts 1957, Ch. 73, § 6; Priv. Acts 1959, Ch. 13, § 1; Ord. No. 11272, 5-2-02)

Sec. 5.11. Same—Inspectors at voting places.

Each of the candidates to be voted for in said primary shall, upon conferring that authority in writing, have, from the opening of the polls until the votes shall have been counted and certified by the primary officers, an inspector at each voting place to watch the primary election.
(Priv. Acts 1911, Ch. 10, § 8)

Sec. 5.12. Same—Expense of primary election.

The said board of election commissioners shall also certify to the City of Chattanooga for payment such expense as shall have been properly incurred in holding said primary election, and said amount of expense shall be a charge against said city, and shall be paid by it in like manner as other miscellaneous expenses.
(Priv. Acts 1911, Ch. 10, § 7)

Sec. 5.13. Purpose of regular election.

Any regular election hereafter shall be held for the purpose of filling such offices and not otherwise filled as the result of the primary and in accordance with the provisions of section 6 of this act [section 5.10 hereof].
(Priv. Acts 1957, Ch. 73, § 7; Ord. No. 11272, 5-2-02)

Sec. 5.13.1. When regular election to be held; beginning of terms.

When under the charter it shall be necessary to conduct a regular election for the purpose of filling such offices (mayor and council) not otherwise filled as a result of the primary election, such regular election shall be held on the second Tuesday in April after the primary election. The terms of office shall continue to begin on the first Monday after the second Tuesday in April.
(Ord. No. 7036, § 1, 5-11-76; Ord. No. 11272, 5-2-02)

Sec. 5.14. Candidates on ballot in regular election.

In each regular election hereafter held, the two (2) candidates who received the largest number of votes for mayor and for city council, respectively, in the primary, who received the largest number of votes in the primary shall be the candidates, and the only candidates, whose names shall be placed upon the ballot.
(Priv. Acts 1957, Ch. 73, § 7; Ord. No. 11272, 5-2-02)

Sec. 5.15. Reserved.

Editor's note—Former § 5.15 relating to compensation of election commission repealed.
(Ord. No. 12677, 12-18-12)

Secs. 5.16—5.25. Reserved.

Sec. 5.26. Council to be judge of eligibility and election of members of board.

Said city council shall judge the eligibility and the election of its members.
(Priv. Acts 1911, Ch. 10, § 14; Ord. No. 11272, 5-2-02)

Sec. 5.27. Effect of redistricting on residency requirement.

Any reorganization and adjustment of district boundaries shall not affect any candidate's eligibility for City office in a redistricted area where the candidate has resided in the new district for at least one year.
(Ord. No. 9724, § 1(2), 5-19-92)

Secs. 5.28—5.37. Reserved.

CHAPTER III. CITY JUDGE

Sec. 5.38. Term of office.

The term of office for the term of the city judge commencing in April, 1999, shall be until August 31, 2006. Thereafter, the term of office of the city judge of Chattanooga, Tennessee, shall be for a term of eight (8) years and until a successor is elected and qualified.
(Priv. Acts 1949, Ch. 192, § 3; Ord. No. 10740, § 1(1), 8-18-98)

Sec. 5.39. Manner of nomination and election.

Candidates to be voted for the office of city judge shall be nominated by a primary election to be held by the commissioners of election at Hamilton County, Tennessee, of the legally qualified voters of said city at large, and no other names shall be placed upon the official ballot or be voted for at such regular election except those selected in the manner hereinafter prescribed.

The primary election for such nomination shall be held on the first Tuesday in May before the August elections. Qualification of candidates, certification of petitioners, and the conduct of the election shall be as set forth in the state's "Election Code."

In each primary election hereafter held, if any candidate for city judge shall receive a majority of the votes cast for all candidates for the office, (s)he shall be declared elected, given a certification of election, and no further election for the office shall be held at the following August general election, and the term of office shall begin at the time it would have begun if the regular August election for city judge had been held.

If no candidate receives a majority of all votes cast at the May primary for the office of city judge, a regular election shall be held for the purpose of filling the office on the following first Thursday of August. In any such regular election hereafter held, the two (2) candidates who receive the largest number of votes for city judge in the primary shall be the candidates, and the only candidates whose names shall be placed upon the ballot. (The term of office shall begin on September 1, after the August election.)
(Priv. Acts 1949, Ch. 192, § 4; Priv. Acts 1969, Ch. 102, § 2; Ord. No. 10740, § 1(2), 8-18-98)

Secs. 5.40—5.49. Reserved.

CHAPTER IV. ELECTION OFFENSES

Sec. 5.50. Offenses in state elections declared to be offenses in city elections.

Every act or deed, whether of commission or omission, denounced by law as an offense in the case of regular state elections is hereby declared to be a like offense in the case of any primary, regular or removal election held under this Act, and to be punishable in like form and manner.
(Priv. Acts 1911, Ch. 10, § 10)

State law reference—Prohibited practices under state election code, T.C.A. § 2-19-101 et seq.

Sec. 5.51. Offering reward, etc., for vote prohibited.

Any candidate for nomination or election under this Act who shall to any person pay, give, or offer to pay or give, directly or indirectly, money or anything of value, or who shall knowingly suffer any person to do so, for the purpose of obtaining the vote or influence of an elector, or of obtaining his vote or influence against an opposing candidate, shall be disqualified as mayor or council member [or city judge], and this section shall be so construed as to prohibit any candidate for nomination or election under this Act from promising to appoint or use his influence for the appointment of any person to a position of income.
(Priv. Acts 1911, Ch. 10, § 11; Ord. No. 11272, 5-2-02)

Sec. 5.52. Bribery.

Any person who shall agree to perform any services in the interest of any candidate for any office provided in this Act, in consideration of any money or other valuable thing for such services performed in the interest of any candidate, shall be punished by a fine not exceeding three hundred dollars ($300.00) or be imprisoned in the county jail not exceeding thirty (30) days.
(Priv. Acts 1911, Ch. 10, § 12)

Title 6

FINANCE AND TAXATION*

Chapter I. In General

Sec. 6.1. Bank for city funds.
Sec. 6.2. Reports required of certain organizations to which the city appropriates money.
Sec. 6.3. Reserved.
Sec. 6.4. Reserved.
Secs. 6.5—6.14. Reserved.

Chapter II. City Taxes

Article 1. Generally

Sec. 6.15. Levy and collection of taxes.
Sec. 6.16. Authority of city as to license taxes on privileges, businesses, occupations, etc.
Sec. 6.17. Designation of due date of taxes.
Sec. 6.18. Penalties for nonpayment of taxes.
Sec. 6.19. Distress warrants.
Sec. 6.20. Reserved.
Secs. 6.21—6.25. Reserved.

Article 2. Delinquent Taxes

Sec. 6.26. Taxes lien on property.
Sec. 6.27. Publication of delinquent tax notice.
Sec. 6.28. Publication of Delinquent Tax Notice.
Sec. 6.29. Filing and prosecution of suits.
Sec. 6.30. Authority of courts relative to title to real property; evidence of certain facts; and procedure.
Sec. 6.31. Reserved.
Sec. 6.32. City may purchase property at tax sales.
Sec. 6.33. Reserved.
Sec. 6.34. Appointment of receivers for income producing property upon which taxes are delinquent.
Sec. 6.35. Delinquent tax attorney—Appointment.
Sec. 6.36. Penalty added.
Sec. 6.37. Same—Authority of mayor to withdraw tax, etc., collections from attorney if collections not made within five years.
Sec. 6.38. Compensation for contracted attorney.
Sec. 6.39 Supplemental powers; legal construction; Interlocal Agreement.
Secs. 6.40—6.43. Reserved.

***Cross references—**Authority to appropriate money and provide for payment of city debts and expenses, § 2.1(3); city finance officer generally, § 3.95 et seq.; city treasurer generally, § 3.102 et seq.; examination of affairs and accounts of the city, § 8.39.

Article 3. Privilege Taxes

Division I. Generally

Sec. 6.44. Authority of city generally.
Secs. 6.45—6.65. Reserved.

Article 4. Property Taxes

Sec. 6.66. City to use property valuation of county tax assessor.
Secs. 6.67—6.69 Reserved.
Secs. 6.70—6.79. Reserved.

Chapter III. Budget

Sec. 6.80. Annual budget not to exceed estimated revenue except in cases of extraordinary emergencies.
Sec. 6.81. Information to be a part of the annual budget.
Secs. 6.82—6.90. Reserved.

Chapter IV. Appropriations

Sec. 6.91. Levy and appropriations for departments.
Sec. 6.92. Reserved.
Sec. 6.93. Reserved.
Sec. 6.94. Reserved.
Sec. 6.95. Reserved.
Sec. 6.96. Appropriations for legislative delegations (To be repealed).
Secs. 6.97—6.106. Reserved.

Chapter V. Borrowing Power of City

Article 1. Generally

Sec. 6.107. General debt limit.
Secs. 6.108—6.151. Reserved.

Chapter VI. Aid to Railroads

Secs. 6.152—6.155. Reserved.
Secs. 6.156—6.165. Reserved.

Chapter VII. Legal Liability Fund

Sec. 6.166. Purpose.
Sec. 6.167. Appropriations for, use of legal liability fund.
Sec. 6.168. Permanent nature of fund.
Sec. 6.169. Insurance not barred.
Sec. 6.170. Reserved.
Sec. 6.171. Reserved.
Sec. 6.172. Reserved.

CHAPTER I. IN GENERAL

Sec. 6.1. Bank for city funds.

The Chief Financial Officer and City Treasurer shall select one or more banking institution providing services in the City for the deposit of city funds and for banking services. Banking institutions shall be selected upon interests paid, cost of services, variety of services offered, quality of services provided, and needs of the city.
(Ord. No. 12677, § 7, 12-18-12)

Sec. 6.2. Reports required of certain organizations to which the city appropriates money.

All boards, institutions, agencies, and organizations to which the City of Chattanooga appropriates ten thousand dollars ($10,000.00) or more shall submit to the city council annual financial statements in such detail as the city council may require; provided that the City Council may change this amount by ordinance. The city council shall have access at all reasonable times through representatives designated by the city council to records of files of recipients of city funds for purposes of verifying and clarifying said reports.
(Ord. No. 12677, § 7, 12-18-12)

Sec. 6.3. Reserved.

Editor's note—Former § 6.3 concerning receipts and disbursements repealed.
(Ord. No. 12677, § 7, 12-18-12)

Sec. 6.4. Reserved.

Editor's note—Former § 6.4 concerning advertising fund repealed.
(Ord. No. 12677, § 7, 12-18-12)

Secs. 6.5—6.14. Reserved.

CHAPTER II. CITY TAXES*

ARTICLE 1. GENERALLY

Sec. 6.15. Levy and collection of taxes.

The City Council may by ordinance levy taxes on all property, real and personal or business related, as authorized under state law. The City Treasurer and delinquent tax attorneys shall collect any unpaid taxes due to the City.
(Priv. Acts 1935, Ch. 647, § 3; Ord. No. 12677, § 8, 12-18-12)

Sec. 6.16. Authority of city as to license taxes on privileges, businesses, occupations, etc.

The city council of said city, may, by ordinance, impose license taxes on any and all privileges, businesses, occupations, vocations, pursuits, trades or calling, or on any class thereof, now or hereafter subject to such taxation under the laws of the State of Tennessee.
(Priv. Acts 1935, Ch. 647, § 4; Ord. No. 11272, § 1, 5-2-02)

***Cross references—**Authority to tax for municipal band, § 2.3; treasurer to act as tax collector, § 3.103.

Sec. 6.17. Designation of due date of taxes.

Taxes on property and privileges shall become due and payable to such officers and at such times as the city council may, by ordinance or resolution, designate, and also provide the date such taxes shall become delinquent.
(Priv. Acts 1935, Ch. 647, § 5; Ord. No. 11272, § 1, 5-2-02)

Sec. 6.18. Penalties for nonpayment of taxes.

In order to enforce the collection of taxes when due, the City Council is empowered, by ordinance, to affix both interest and penalty for the non-payment of taxes when due as provided by state law. The interest and penalty shall be paid to the City Treasurer at the same time the taxes are paid. Nothing herein shall preclude the imposition of such additional collection fees, penalties, and costs as may be authorized by law if the delinquent taxes are placed in the hands of an attorney for collection or if any legal proceeding is instituted to collect such taxes.
(Priv. Acts 1935, Ch. 674, § 5; Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 8, 12-18-12)

Sec. 6.19. Distress warrants.

The city shall have power to issue distress warrants and alias pluries distress warrants in the name of the City of Chattanooga to enforce the collection of privileges, ad valorem and property taxes, and any other tax, respectively, and such warrants when issued may be served by a police officer, sheriff or such other person as may be designated by the city council. Such distress warrants shall be ample authority for the officer having same to distrain and sell a sufficient amount of the personal property of any delinquent taxpayer to satisfy his taxes, interest, penalties and costs. Such officer to whom the distress warrants are delivered may proceed against said delinquent taxpayers by garnishment proceedings, returnable before the General Sessions Court, the Circuit Court, or the Chancery Court of Hamilton County. The officer for each collection made under such warrant in case of a levy or garnishment shall receive the same fees as allowed by law for collecting under execution and garnishment, the same to be taxed as a part of the cost of collection and to be paid by the delinquent taxpayer; provided, however, that the issuance and return nulla bona of a distress warrant shall not be a condition precedent to the filing and maintaining of a bill to enforce the tax lien. Ten days' notice of the time and place of the sale of personalty shall be given by advertisement placed in three (3) public places in the city, one of which shall be in the district in which the property is located and one in the lobby of the municipal building.
(Priv. Acts 1935, Ch. 647, § 6; Ord. No. 12677, § 8, 12-18-12)

Sec. 6.20. Reserved.

Editor's note—Former § 6.20 relating to islands and towheads repealed.
(Ord. No. 12677, § 8, 12-18-12)

Secs. 6.21—6.25. Reserved.

ARTICLE 2. DELINQUENT TAXES

Sec. 6.26. Taxes lien on property.

Assessed taxes on realty shall be and remain a lien on the property until the same are paid, and such lien may after return of nulla bona, be enforced as other liens.
(Priv. Acts 1919, Ch. 548, § 2)

Sec. 6.27. Publication of delinquent tax notice.

At least thirty (30) days prior to filing suit to collect delinquent ad valorem taxes, the City Treasurer shall cause to be published in a daily newspaper published in the City of Chattanooga a notice substantially in the following form:

"WARNING TO DELINQUENT TAXPAYERS.

On _____(date), unpaid city real estate and personal property taxes will be placed in the hands of delinquent tax attorney for collection by legal proceedings. On said date, an additional penalty of ten percent (10%) will be imposed on the gross amount of taxes, interest and penalties, as now provided by law. Delinquent taxes may be paid at my office prior to _____(date) without the aforementioned additional penalty.

_____

City Treasurer"

(Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.28. Publication of Delinquent Tax Notice.

After publication of a notice as required by Section 6.27, the City Treasurer shall furnish the Delinquent Tax Attorney a list showing the unpaid real estate taxes for said year, and it shall be the duty of said attorney to prepare and file suit in the Chancery, Circuit or Sessions Court of Hamilton County for collection of said delinquent taxes by enforcing the lien of such taxes, such lien being hereby declared to be subordinate only to the lien of state and county taxes in lien of a abutting property and/or improvement district assessments. When the delinquent tax lists are placed in the hands of said attorney, the additional penalty of ten percent (10%) of the gross amount of taxes, interest and penalties due on the date of payment shall be added for the purpose of defraying the cost of collecting such delinquent taxes.
(Priv. Acts 1933, Ch. 640, § 3; Priv. Acts 1967, Ch. 170, § 2; Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.29. Filing and prosecution of suits.

(a) The attorney designated by the Mayor shall after file suit in the Chancery, Circuit or Sessions Court for collection of delinquent taxes due the City, as well as the interest, penalties and costs attached to and a part of such taxes, which taxes, interest penalties and costs are declared a lien upon the property; and, for enforcement of this lien, suits shall be brought in the name of the City, in its own behalf and for the use and benefit of the state.

(b) The procedure for collecting municipal ad valorem taxes shall be the same as now provided for the collection set forth in Tennessee Code Annotated §§ 67-5-2405, 67-5-2410, 67-5-2411, and 67-5-2414 through 67-5-2421.
(Priv. Acts 1933, Ch. 640, § 5; Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.30. Authority of courts relative to title to real property; evidence of certain facts; and procedure.

(a) The court in which such proceedings are filed shall be vested with the authority to render judgments and decrees divesting and vesting title and ordering writs of possession for the purpose of placing the purchaser of such property in possession thereof, and after the time for redemption, hereinafter fixed, shall have expired the court in which said cause is heard shall divest out of the defendants all their interest in such real estate so sold for delinquent taxes and vest in the purchaser of such land at such sale absolute title to the property in fee simple, subject only to unpaid state and county taxes, unpaid street improvement

assessments, and such other taxes and/or assessments as by law may be prior or paramount to the lien for municipal taxes. A duly certified copy of the final decree of the court vesting title in the purchaser of said land at such tax sale shall be entitled to record as other conveyances of land under the laws of this state, and shall be *prima facie* evidence that the property was subject to the tax assessed and that the assessment was made in the manner required by law; that the taxes were not paid before the entry of the final decree of sale; that the grantee named in the final decree was the purchaser of his assignee; that the sale was conducted in the manner required by law; that the property had not been redeemed from sale; and no such conveyance shall be invalidated in any court except upon satisfactory proof that the land was not liable to sale for taxes, or that the taxes for which the land was sold had been paid before said sale, and, if any part of the taxes for which said land was sold was not legally chargeable against such land, that fact shall not affect the sale or invalidate the conveyance unless it appears to the court that, before the sale, the amount legally chargeable against the land was paid or tendered to the clerk of the court, and no other objection to the sale of the title thereunder shall be valid in any controversy involving the same.

(b) Any person who buys real estate at a sale for delinquent taxes which were a lien thereon, and who, for any cause shall fail to receive a good title or obtain possession of said land, shall be subrogated to all liens which secured the taxes, interest, penalties, fees and costs, and shall have the right to enforce the same at law or in equity for reimbursement of all sums paid by him for said land and all improvements placed thereon by him; and the chancery court shall have jurisdiction of such cause, even though the amount sued for be less than fifty dollars ($50.00).

(c) The procedure for collecting municipal taxes shall be the same as now provided for the collection set forth in Tennessee Code Annotated §§ 67-5-2405, 67-5-2410, 67-5-2411, and 67-5-2414 through 67-5-2421.
(Priv. Acts 1933, Ch. 640, § 5; Ord. No. 11307, § 1, 8-22-02)

Sec. 6.31. Reserved.

Editor's note—The deleted section dealt with consolidation of suits against same person.
(Ord. No. 11307, § 1)

Sec. 6.32. City may purchase property at tax sales.

(a) The City of Chattanooga is authorized and empowered to bid at such sale the amount of taxes, interest, penalties and costs, and if such property is purchased by such municipality, the title of such municipality thereto shall be in fee simple, and the municipality shall have full right and power to sell, lease or dispose of such real estate and execute conveyance thereof.

(b) If the city council determines that environmental risk are such that it is not in the best interest of the city for a minimum bid to be offered at this tax sale, the clerk shall not offer a bid on the property at tax sale. In such event, the delinquent tax attorney shall use other procedures authorized by law to collect the tax from the owner.
(Priv. Acts 1933, Ch. 640, § 7; Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.33. Reserved.

Editor's note—The deleted section dealt with consolidation of suits against same parcel of land.
(Ord. No. 11307, § 1)

Sec. 6.34. Appointment of receivers for income producing property upon which taxes are delinquent.

Wherever property involved in tax suits is producing an income and no substantial part of such income is being applied to the payment of delinquent taxes on such property, the court in which any tax suit is pending is authorized to and shall appoint receivers to take charge of the property in question and collect

the rents and profits thereon to the end that such rents and profits, after paying the receiver reasonable compensation, shall be applied to the delinquent taxes, penalties, interest and costs, and upon the payment of all taxes, interest, penalties and costs involved in said cause such receivers shall be discharged.
(Priv. Acts 1933, Ch. 640, § 9; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.35. Delinquent tax attorney—Appointment.

The Mayor shall appoint some practicing attorney or attorneys as Delinquent Tax Attorney(s) who shall proceed with the collection of delinquent taxes as provided by the provisions of this article and applicable laws. The City Attorney's office may be appointed to collect delinquent taxes.
(Priv. Acts 1933, Ch. 640, § 11; Priv. Acts 1967, Ch. 170, § 4; Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.36. Penalty added.

When ad valorem taxes, real or personalty are delinquent or other delinquent taxes or assessments are delivered to the delinquent tax attorney, a penalty of ten percent (10%) or such other amount as may be authorized by state law shall be added to defray the cost of collection.
(Priv. Acts 1933, Ch. 640, § 10; Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.37. Same—Authority of mayor to withdraw tax, etc., collections from attorney if collections not made within five years.

If delinquent ad valorem taxes, personalty taxes, or delinquent special benefit assessments heretofore or hereafter turned over by the mayor to a private attorney for collection are not collected or the property against which such taxes and benefits are assessed sold for such taxes or benefit assessments within a period of five (5) years from the date they are turned over to such attorney, the mayor shall have authority to recall and withdraw such tax collections from the attorney, and such attorney shall forfeit all rights to fees or commissions that he has for the filing of suits against property for the collection of such taxes or benefit assessments. The attorney shall deliver to the mayor upon demand any and all records that he may have with reference to such taxes and benefit assessments, and the mayor thereafter may appoint another attorney to collect the taxes and benefit assessments or to sell the property for such taxes or benefit assessments who shall be entitled to all fees or commissions on all taxes or benefit assessments collected or on property sold for such taxes or benefit assessments by him.
(Priv. Acts 1949, Ch. 760, § 2; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.38. Compensation for contracted attorney.

Private attorneys to whom delinquent ad valorem taxes, special benefits assessments, or other taxes which may hereafter be turned over for collection shall receive a fee or commission on all such taxes or benefit assessments collected by them. The amount of the fee shall be reached by agreement, provided that the fee shall not exceed maximum amount authorized by state law.
(Priv. Acts 1933, Ch. 640, § 11; Priv. Acts 1949, Ch. 760, § 3; Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Sec. 6.39 Supplemental powers; legal construction; Interlocal Agreement.

Neither the provisions of this article nor anything herein contained shall be construed as a restriction or a limitation upon any powers which the city might otherwise have under any laws of this state, but shall be construed as cumulative of and supplemental to any such powers. The City Council may provide by ordinance for any supplemental or additional provisions it deems advisable to collect delinquent taxes or to

take advantage of or conform to future changes in state laws. Nothing in this article may be construed as limiting the authority of the city to contract with the county trustee to collect both current and delinquent municipal taxes pursuant to an interlocal agreement.
(Ord. No. 11307, § 1, 8-22-02; Ord. No. 12677, § 9, 12-18-12)

Secs. 6.40—6.43. Reserved.

ARTICLE 3. PRIVILEGE TAXES*

Division I. Generally

Sec. 6.44. Authority of city generally.

Privileges shall be taxed and collected, as may be provided by city ordinance.
(Priv. Acts 1919, Ch. 548)

Secs. 6.45—6.65. Reserved.
(Ord. No. 12677, § 10, 12-18-12)

Editor's note—Sections 6.45 through 6.52 inclusive dealing with alcoholic beverages sold at retail repealed.

ARTICLE 4. PROPERTY TAXES†

Sec. 6.66. City to use property valuation of county tax assessor.

For the purpose of fixing and determining the valuation for tax purposes of real and personal property within the City of Chattanooga, Tennessee, the valuation of said property as assessed by the tax assessor of Hamilton County, Tennessee, shall govern, and the valuation assessed by said tax assessor, and no other valuation, shall be the valuation upon which the said city may assess, levy and collect taxes on real and personal property within said city.
(Priv. Acts 1945, Ch. 553, § 3)

Secs. 6.67—6.69 Reserved.

Editor's note—Sections 6.67 to 6.69 dealing with assessments of property repealed.
(Ord. No. 12677, § 11, 12-18-12)

Secs. 6.70—6.79. Reserved.

CHAPTER III. BUDGET‡

Sec. 6.80. Annual budget not to exceed estimated revenue except in cases of extraordinary emergencies.

It shall be the duty of the mayor and city council elected under this act to prepare and pass an annual budget each year. The budget for the ordinary and extraordinary expenses of the city for any one year shall

---

***Cross references—**General authority to levy privilege taxes, § 2.1(2); general licensing authority, § 2.1(15); authority to license amusements, § 2.1(17); authority to license amusement machines, § 2.1(18); licensing of solicitors and handbill distributors, § 2.1(37); authority to impose fee for collection of privilege taxes, § 2.1(38); authority to license lodging establishments, § 2.1(47); authority to license tourist guides, § 2.1(48); authority to license dairies and milk plants, § 2.1(49); authority to license driving ranges and archeries, § 2.1(53); authority to license boat dealers and fee therefor, § 2.1(54); privilege tax on vehicles, § 2.11; authority to license electricians, § 9.1; authority to provide for licensing of plumbers, § 9.2.

†**Cross reference—**General authority to levy and collect property taxes, § 2.1(1).

‡**Cross reference—**Budgets of planning commission, § 12.10.

not exceed the estimated amount of revenue to be collected for said year; and in no event shall there be appropriated by the city council any sum or sums in excess of the estimated revenues of said city, for the fiscal year in which said appropriation is made. Provided, however, the city council may make appropriations from fund balance to the extent allowed under established guidelines and state law.
(Priv. Acts 1911, Ch. 10, § 19; Priv. Acts 1911, Ch. 621; Priv. Acts 1917, Ch. 42, § 9; Ord. No. 12677, § 12, 12-18-12)

Sec. 6.81. Information to be a part of the annual budget.

The annual budget ordinance shall contain at least as much information as that required by Tennessee Code Annotated § 6-56-203(1) and (3) as the same may be amended from time to time.
(Ord. No. 11591, 8-3-04)

Secs. 6.82—6.90. Reserved.

CHAPTER IV. APPROPRIATIONS*

Sec. 6.91. Levy and appropriations for departments.

In fixing the annual tax rate the ordinance shall designate what amount of the total appropriation is made for various departments, for debt service, and for such other purposes as may require an appropriation for the ensuing year. It is not intended, however, that it shall be obligatory upon the city council to make a levy and appropriation for all the purposes above enumerated, but only for such as may be necessary, in its judgment. It shall not be lawful to use any funds appropriated to a particular fund for any other fund unless the same shall have been previously directed by ordinance. In making appropriations for the various departments the city council shall not be bound by the estimates submitted by the officer or board in charge of such departments, but shall appropriate only as much as it shall deem necessary. It shall not be lawful to expend in any year a greater amount in any fund than shall have been appropriated for that fund.
(Priv. Acts 1901, Ch. 432, § 15; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 12677, § 13, 12-18-12)

Sec. 6.92. Reserved.

Editor's note—The deleted section dealt with appropriations to youth concerts.
(Ord. No. 12677, § 14, 12-18-12)

Sec. 6.93. Reserved.

Editor's note—The deleted section dealt with appropriations to farmers' institute.
(Ord. No. 12677, § 14, 12-18-12)

Sec. 6.94. Reserved.

Editor's note—The deleted section dealt with farmers' institute.
(Ord. No. 12677, § 14, 12-18-12)

Sec. 6.95. Reserved.

Editor's note—The deleted section dealt with appropriation to legislative delegation.
(Ord. No. 12677, § 14, 12-18-12)

***Cross reference—**General authority to make appropriations, § 2.1(3).

Sec. 6.96. Appropriations for legislative delegations (To be repealed).
(Ord. No. 12677, § 14, 12-18-12)

Secs. 6.97—6.106. Reserved.

CHAPTER V. BORROWING POWER OF CITY*

ARTICLE 1. GENERALLY

Sec. 6.107. General debt limit.

Hereafter no bonds shall be issued by the City of Chattanooga in such an aggregate amount as will create or increase the total bonded indebtedness of said city more than ten per cent (10%) of the assessed valuation for the preceding year of all taxable property in said city.

Provided, that bonds payable out of funds derived from special assessments for public improvements, or designated revenue sources other than property taxes, or bonds payable wholly from revenue derived from the operation of any utility owned or controlled by the city and the amount in the sinking fund shall be deducted in computing the amount of the net bonded debt of said city. Provided, further, that the provisions of this Act [section] shall not apply to refunding bonds issued for the purpose of paying or to be exchanged for outstanding bonds of the city, or to bonds issued for funding any floating indebtedness of said city now outstanding.
(Priv. Acts 1941, Ch. 251, § 1; Ord. No. 12677, § 15, 12-18-12)

Secs. 6.108—6.151. Reserved.

Editor's note—Deleted §§ 6.108 through 6.155 inclusive dealing with borrowing power of City repealed.
(Ord. No. 12677, § 16, 12-18-12)

CHAPTER VI. AID TO RAILROADS†

Secs. 6.152—6.155. Reserved.

Editor's note—Deleted §§ 6.152 through 6.155 dealing with aid to railroads repealed.
(Ord. No. 12677, § 17, 12-18-12)

Secs. 6.156—6.165. Reserved.

***Cross references—**Borrowing for public works and improvements generally, Title 15; general authority to provide for payment of debts, § 2.1(3); bonds for electrical system, § 10.3 et seq.; issuance of bonds for water and gas systems, § 14.2 et seq.; issuance of bonds for sewer improvements, § 15.20 et seq.

†**Cross reference—**Railroads generally, Title 16.

CHAPTER VII. LEGAL LIABILITY FUND

Sec. 6.166. Purpose.

The purpose of the legal liability fund is to provide for the City's legal liabilities and for the defense of and prosecution of claims for the City.
(Ord. No. 12677, § 18, 12-18-12)

Editor's note—Former § 6.166 based upon Priv. Acts 1965, Ch. 165 establishing tort liability and moral claims fund replaced by this section.

Sec. 6.167. Appropriations for, use of legal liability fund.

There shall be included in the budget and appropriated to the legal liability reserve fund an amount which the city council reasonably anticipates will be needed to create and maintain the fund at a level to meet any liability of the city under the Tennessee Governmental Tort Liability Act and any other laws that may create liability resulting from acts or omissions of any officials, officers or employees of the city while engaged in the exercise of any of their functions, governmental or proprietary. Disbursements from the fund shall be made only for this purpose and the cost of litigation relating to claims for or against the city. Neither the creation of this fund, nor the appropriation of money to the fund from whatever source, shall constitute a waiver of any legal immunity from suit for acts or omissions of officers and employees of the city, and the city council shall not have the power to waive such immunity. The city attorney may settle or compromise and authorize payments from the legal liability fund, which does not exceed ten thousand ($10,000.00) dollars per claim. The city council may increase this amount by ordinance. All payments in excess of ten thousand ($10,000.00) dollars or larger amounts, as may be subsequently amended by ordinance, are subject to approval by the city council.
(Acts 1923, Ch. 580, § 2; Ord. No. 12677, § 18, 12-18-12)

Sec. 6.168. Permanent nature of fund.

The liability fund shall be a permanent fund and at the end of the fiscal year the same shall not be appropriated for any other municipal purpose, nor shall the same revert to surplus or a contingency fund.
(Priv. Acts 1965, Ch. 165, § 5; Ord. No. 12677, § 18, 12-18-12)

Editor's note—Former §§ 6.168 and 6.169 based upon Priv. Acts. 1965, Ch. 165, § 3 and § 4 repealed.

Sec. 6.169. Insurance not barred.

Nothing herein shall be construed as prohibiting the city from contracting for any form of insurance, including but not limited to coverage for motor vehicles, buildings, or other insurable risks, whether as to one department, agency or division of city government, or for more than one, or for all divisions of city government.
(Priv. Acts 1965, Ch. 165, § 6; Ord. No. 12677, § 18, 12-18-12)

Editor's note—Former § 6.171.

Sec. 6.170. Reserved.

(Priv. Acts 1965, Ch. 165, § 5; repealed by Ord. No. 12677, § 18, 12-18-12)

Sec. 6.171. Reserved.

(Priv. Acts 1965, Ch. 165, § 6; repealed by Ord. No. 12677, § 18, 12-18-12)

Sec. 6.172. Reserved.

Editor's note—Former § 6.172 repealed (Ord. No. 12677, § 18, 12-18-12)

Title 7

FRANCHISES

Sec. 7.1. Maximum term for franchises, etc.
Sec. 7.2. Ordinances granting franchises.

Sec. 7.1. Maximum term for franchises, etc.

The power of the city council in the granting of franchises or rights to use, or easements in, or to, any public property of said City of Chattanooga, to any corporation or corporations, individual or individuals, is hereby restricted, so that the said city council shall be, and is hereby, prohibited from hereafter granting to any corporation or corporations, individual or individuals, any special grant, right, easement or franchise in or to any public property, way, street, alley or thoroughfare for a longer period than forty (40) years.
(Priv. Acts 1899, Ch. 216, § 6; Priv. Acts 1907, Ch. 388; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Sec. 7.2. Ordinances granting franchises.

The grant of all franchises shall be subject to the limitations and restrictions now prescribed by law, and in addition, no ordinance granting any kind of franchise shall be passed by the city council on more than one reading at the same meeting, or by the city council on any reading at any but a regular meeting. Nor shall any ordinance granting a franchise be valid unless published in full at least five days before final passage in some daily newspaper published in said City of Chattanooga.
(Priv. Acts 1901, Ch. 432, § 10; Priv. Acts 1911, Ch. 10, § 15; Ord. No. 11272, § 1, 5-2-02)

Title 8

DISTRIBUTION OF POWERS*

Chapter I. Legislative

Sec. 8.1. City Council created.
Sec. 8.2. Qualifications of council members.
Sec. 8.3. Officers of council.
Sec. 8.4. Chairperson as interim mayor.
Sec. 8.5. Rules and meetings.
Sec. 8.6. Same—To be open to public; place.
Sec. 8.7. Same—Attendance of members.
Sec. 8.8. Same—Adjourned meetings.
Sec. 8.9. Redistricting.
Sec. 8.10. Quorum and Majority.
Sec. 8.11. Vacancies.
Sec. 8.12. Salaries.
Sec. 8.13. Committees and clerk.
Sec. 8.14. Expenses.
Sec. 8.15. Reserved
Secs. 8.16—8.25. Reserved.

Chapter II. Executive

Sec. 8.26. Office of mayor created.
Sec. 8.27. Qualifications of mayor.
Sec. 8.28. Executive officer.
Sec. 8.29. Term limits of mayor.
Sec. 8.30. Succession to office of mayor.
Sec. 8.31. Organization of government.
Sec. 8.32. Department heads.
Sec. 8.33. Charter officials
Sec. 8.34. Salaries.
Sec. 8.35. Control, etc., of city buildings.
Sec. 8.36. Bond.
Sec. 8.38. Enforcement of laws and ordinances; report on condition of city; general supervision over officers of city.
Sec. 8.39. Examination of affairs and accounts of city.
Sec. 8.40. Authority to administer oaths.
Sec. 8.41. Temporary disability of the mayor.
Secs. 8.42—8.50. Reserved.

***Cross references—**Election of mayor and commissioners, Title 5; ordinances and resolutions, Title 11.

Chapter III. Generally

Sec. 8.51. Oath of Office.
Sec. 8.52. Annual Budget.
Sec. 8.53. Disqualification for elective office.

CHAPTER I. LEGISLATIVE

Sec. 8.1. City Council created.

There is hereby created a city council of the City of Chattanooga, Tennessee, and all legislative and quasi-judicial authority and responsibility now vested in and exercised by the board of commissioners shall be vested exclusively in the city council. All references to the "board of commissioners" or "board" or "city commission" or "commissioners" or "commission" where the same refers to the board of commissioners acting in its or their legislative or quasi-judicial capacity in the present city charter are hereby deleted and there is inserted in lieu thereof the phrase "city council" or "council" or "council members" except as otherwise specified herein.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.2. Qualifications of council members.

The City shall be divided into nine (9) districts within the geographic boundaries of the city. The city council shall be composed of nine (9) members with each member elected from one of such single districts. The candidate for each council position who receives the majority of his or her district shall be elected. No person shall be elected or appointed as a member of the council who is not at least 21 years of age and who has not been a resident of the district for at least one year preceding his or her election.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.3. Officers of council.

At its initial meeting, the council shall elect from its membership a chairperson who shall preside over council meetings. The council shall also elect a vice-chairperson who shall preside in the chairperson's absence. Terms of the chairperson and vice-chairperson shall be for one year. No council person may serve more than two years as chairperson, nor more than two years as vice chairperson within any council term. The council may when necessary elect from their members a chairperson pro tempore to preside at a particular meeting in the absence of the chairperson and vice-chairperson.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.4. Chairperson as interim mayor.

The chairperson of the council shall ascend to the office of the mayor as interim mayor on a temporary basis in the event of a vacancy in the office of the mayor by reason of death, resignation, removal, or otherwise, all as specified in Section 8.5 hereof. During service as interim mayor, the council chairperson shall step down from his or her position as a member of the council. However, the temporary ascension of the council chairperson to the office of the mayor will not create a vacancy on the council to be filled by the council.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.5. Rules and meetings.

The council shall from time to time establish and publish such procedures and rules for its organization and orderly operation as the council deems appropriate so long as the procedures and rules do not conflict with provisions of the Charter, state or federal law. The council shall have the power to issue subpoenas and administer oaths. The council's rules shall specify the schedule for its regular meetings, which shall be held at least twice a month, and the procedures for calling special meetings. In the event that a member of the

council shall be absent from all council meetings during three (3) consecutive months without proper and reasonable explanation acceptable to the council, his or her office may be declared vacated by a majority vote of the remaining membership of the council and such vacancy shall be filled as provided herein.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.6. Same—To be open to public; place.

All meetings of said council shall be public, and shall be held at the place provided for such meetings, and said place cannot be changed except by ordinance.
(Priv. Acts 1911, Ch. 10, § 14; Ord. No. 11272, § 1, 5-2-02)

Sec. 8.7. Same—Attendance of members.

The attendance of members may be enforced by rules or ordinances with appropriate fines.
(Priv. Acts 1911, Ch. 10, § 14; Ord. No. 11272, § 1, 5-2-02)

Sec. 8.8. Same—Adjourned meetings.

If the business of any regular or special meeting be not concluded on the day when the same convenes, the board may adjourn such meeting to any subsequent day of the week. Any number of council members, even less than a quorum, may adjourn a regular council meeting from day to day.
(Priv. Acts 1911, Ch. 10, § 14; Ord. No. 11272, § 1, 5-2-02)

Sec. 8.9. Redistricting.

Following publication of each new official decennial federal census, the council shall reorganize and adjust by ordinance the boundaries of the districts currently established. The council's reorganization and adjustment of the district boundaries shall be completed no later than one (1) year prior to the next city election; provided, however, that the council shall have not less than six (6) calendar months within which to reorganize the districts. The adjusted districts shall be as equal in population as practicable. Such reorganization and adjustment of district boundaries shall not affect the qualifications of any council member to fulfill his or her remaining unexpired term.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.10. Quorum and Majority.

A majority of the entire membership of the council shall constitute a quorum for the transaction of business. The affirmative votes of a majority of the members of the entire council shall be necessary to enact any ordinance or adopt any resolution or take any affirmative action. Every ordinance enacted by the council shall be signed by the council chairperson, vice-chairperson or chairperson pro tempore and shall also be approved or vetoed by the mayor as provided by the Charter and shall then be delivered to the clerk of the city council.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.11. Vacancies.

Removal of residence by a member of the council from that member's district shall constitute a vacancy in that member's council position. Any vacancy occurring on the council, including any vacancy in the office of chairperson of the council, shall be filled by a vote of a majority of all of the remaining members of the council. Any person elected to fill such a vacancy shall possess the same qualifications as a council

member elected by the people. Any person elected or appointed as a member of the council shall serve until his or her successor is elected and qualified; provided, however, that if any general statute requires an earlier election, then such general statute shall apply.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.12. Salaries.

Members of the council shall be paid fifteen percent (15%) of the mayor's salary as may be adjusted from time to time. The chairperson shall be paid an additional Five Thousand Dollars ($5,000.00) per annum, and the vice-chairperson shall be paid an additional Twenty-five Hundred Dollars ($2,500.00) per annum. Such salaries shall be payable on a monthly basis.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.13. Committees and clerk.

The council may from time to time establish such committees, committee responsibilities, and the manner of committee appointment as the council deems appropriate. The council shall employ a clerk whose duty it shall be to preserve, keep and retain all of the records of the council and shall have the authority to certify the correctness of such records when necessary or requested by a citizen.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.14. Expenses.

Members of the council may be reimbursed their reasonable, necessary and actual expenses incurred in the performance of their official duties. The council shall adopt procedures and guidelines for documentation and reimbursement of expenses of members of the council and of all the officials and employees of the government after receiving appropriate recommendations on the same from the mayor.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.15. Reserved

Editor's note—Ord. No. 13039, § 1, adopted April 19, 2016, repealed § 8.15, which pertained to management analysis and derived from Ord. No. 12566 § 1, adopted Jan. 24, 2012.

Secs. 8.16—8.25. Reserved.

CHAPTER II. EXECUTIVE

Sec. 8.26. Office of mayor created.

There is hereby created the office of the mayor, and all executive and administrative authority and responsibility now vested in and exercised by the board of commissioners and its individual members shall be vested exclusively in the mayor. All references in the Charter to individual commissioners or the board of commissioners acting in their administrative or executive capacity are hereby deleted and the word "mayor" substituted therefore.

The mayor shall be elected at-large and shall not be a member of the city council. The mayor shall not have a vote in any matter considered by the city council. The mayor shall have a veto over any ordinance enacted or resolution adopted by the city council, but the city council may override the veto of the mayor at the next regular meeting of the council but only by a majority of the entire membership of the city council.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.27. Qualifications of mayor.

No person shall be elected to the office of mayor unless he or she has been a resident of the city of Chattanooga for at least one year prior to his or her election and unless he or she shall be at least thirty (30) years of age.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.28. Executive officer.

The chief executive officer of the city of Chattanooga shall be the mayor. The mayor shall be authorized to administer oaths and shall supervise and control all of the divisions of the city, except as otherwise provided, and shall see that the ordinances of the City and the provisions of the Charter are observed. The mayor shall devote his or her entire time and attention to the duties of the office of the mayor. The mayor may attend any meeting of the council or any of its committee meetings and may address the council or its committee meetings subject to recognition by the chairperson.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.29. Term limits of mayor.

No person shall be eligible to be elected as mayor for more than two (2) consecutive four (4) year terms.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.30. Succession to office of mayor.

In the case of the mayor's death, resignation, inability to serve for any reason, recall or removal of his or her residence from the city, upon such fact being certified by resolution of the council, the chairperson of the council shall become the interim mayor upon being administered the oath and making bond. Such person shall hold the office of the mayor on an interim basis until a new mayor is elected as provided in this Charter and qualified. The interim mayor shall have the authority to cast a vote to break a tie in the city council. A vacancy in the office of the mayor shall be filled by election at the next regularly scheduled election to be held in the city not less than ninety (90) days but not more than one hundred twenty (120) days after the vacancy is certified by the council. If no such election is scheduled, a special election shall be held within not less than ninety (90) nor more than one hundred twenty (120) days. The person so elected shall serve the remainder of the term vacated by the mayor.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.31. Organization of government.

Within sixty (60) days after taking office, the mayor shall recommend to the council any revisions to the names, functions, and organization of city departments that the mayor deems appropriate. The council shall adopt a plan of reorganization within thirty (30) days after receiving recommendations for the same from the mayor, which recommendations the council may accept, modify or reject.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.32. Department heads.

The mayor shall appoint all department heads, subject to confirmation by a majority vote of the entire membership of the council. The mayor may remove department heads at any time with the approval of a majority of the entire membership of the council. The city council may remove department heads and/or city officials (but not the mayor) for cause after notice and hearing, and pursuant to a vote of two-thirds of the entire membership of the council.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.33. Charter officials*

(a) No later than the date he or she appoints department heads, the mayor shall appoint, with the approval of a majority vote of the entire membership of the council, persons to fill the positions of fire chief and police chief for terms concurrent with the mayor and until they are discharged or their successors are appointed and qualified. The mayor, with the approval of a majority vote of the entire membership of the council, may discharge any of these officials prior to the expiration of their terms of office. Thereafter, vacancies shall be filled by appointment of the mayor with the approval of a majority vote of the entire membership of the council.

(b) No later than the date the mayor appoints department heads, the mayor shall appoint, with the approval of a majority vote of the entire membership of the council, a city finance officer and a city treasurer, for terms concurrent with the terms of the mayor, and until they are discharged or their successors are appointed and qualified. The mayor may discharge the city finance officer or city treasurer with the approval of a majority vote of the entire membership of the council. Any vacancy occurring in said offices shall be filled by appointment of the mayor with the approval of a majority vote of the entire membership of the council.
(Ord. No. 11272, § 1, 5-2-02; Ord. No. 11873, § 1, 8-22-06; Ord. No. 12566, § 2, 1-24-12)

Sec. 8.34. Salaries.

(a) The salary of the mayor shall be at all times the same as is received by the county executive of Hamilton County.

(b) The annual salary fixed for all city officials shall be payable in equal semi-monthly installments.
(Priv. Acts 1959, Ch. 10, § 12; Priv. Acts 1965, Ch. 237, § 1; Priv. Acts 1967, Ch. 45, § 1; Priv. Acts 1968, Ch. 461, § 1; Priv. Acts 1970, Ch. 343, §§ 1, 3, 4; Ord. No. 7368, § 1, 5-16-78)

Sec. 8.35. Control, etc., of city buildings.

The preliminary and primary control over the planning erection, repairs and maintenance of all public buildings belonging to the city of Chattanooga, and all public buildings of said city to be hereafter erected, shall be under the supervision and control of the mayor.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.36. Bond.

The mayor shall be required to execute and file with the city finance officer a bond in the sum of ten thousand dollars ($10,000.00) for the faithful discharge of his duties.
(Priv. Acts 1911, Ch. 10, § 16; Ord. No. 10742, § 1(1), 8-18-98)

Sec. 8.38. Enforcement of laws and ordinances; report on condition of city; general supervision over officers of city.

It shall be the duty of the mayor to be vigilant and active in causing the ordinances of the city and the laws of the state to be executed and enforced within the city; to communicate to the city council at least once a year a statement of the finances and general condition of the city, and also such information in relation to the same as said council may, from time to time, request; to recommend to the council by message in writing, all such measures connected with the affairs of the city, as he shall deem expedient; to exercise a general supervision over all the executive and ministerial officers of the city, and see that their

***Cross reference—**The provisions for the city attorney are set forth in Section 3.62.

official duties are honestly and faithfully performed, and he may require from them statements in writing and under oath or affirmation concerning the discharge of their duties, and shall at all times have access to the books of all executive officers and boards.
(Priv. Acts 1901, Ch. 432, § 26; Priv. Acts 1911, Ch. 10, § 13)

Editor's note—Refer to 1953 Private Acts, Chapter 105, 1957 Private Acts, Chapter 73 and 1965 Private Acts, Chapter 207; Ord. No. 11272, § 1, 5-2-02.

Sec. 8.39. Examination of affairs and accounts of city.

The mayor may, as often as he may deem necessary, appoint not more than three (3) competent persons to examine without notice the affairs and accounts of any city officer or board, and the money, securities and property belonging to the city and in the possession or charge of such officer or board. The compensation of such person[s] shall be paid out of the general or the miscellany fund, appropriated by the council on the warrant of the mayor, stating on its face for what purpose it is drawn, and countersigned by the finance officer.
(Priv. Acts 1901, Ch. 432, § 29; Ord. No. 10742, § 1(1), 8-18-98)

Sec. 8.40. Authority to administer oaths.

The mayor shall have the same power to administer oaths and affirmations that justices of the peace in this state now have.
(Priv. Acts 1901, Ch. 432, § 32 and Ord. No. 11272, § 1, 5-2-02)

Sec. 8.41. Temporary disability of the mayor.

(a) Whenever the mayor transmits to the clerk of the city council and the city finance officer his written declaration that he is unable to discharge the powers and duties of his office, and until he transmits to them a written declaration to the contrary, such powers and duties shall be discharged by the chairperson of the council as acting mayor.

(b) Whenever the chairperson of the council and a majority of the department heads of the executive department transmit to the clerk of the council and the city finance officer their written declaration that the mayor is unable to discharge the powers and duties of his office, the chairperson of the council shall immediately assume the powers and duties of the office as acting mayor.

Thereafter, when the mayor transmits to the clerk of the council and the city finance officer his written declaration that no inability exists, he shall resume the powers and duties of his office.

(c) In the event the chairperson of the council serves as acting mayor, the vice chairperson shall temporarily assume the chairmanship and the chairperson (acting mayor) shall temporarily step down from his or her position as a member of the council. However, the temporary ascension of the council chairperson to acting mayor will not create a vacancy on the council to be filled by the council. The compensation of the acting mayor, if any, shall be determined by the council.
(Ord. No. 10746, § 1(1), 8-18-98)

Secs. 8.42—8.50. Reserved.

CHAPTER III. GENERALLY

Sec. 8.51. Oath of Office.

The mayor of said city shall, before entering upon the duties of his office, take and subscribe an oath before some justice of the peace of said county to faithfully, uprightly and honestly demean himself as

mayor of said corporation during his continuance in office; and that he possesses the qualifications and is free from the disqualifications prescribed in section 3.1 of this Charter; and to faithfully discharge the duties of his office, and such other oath or affirmation as may be now or hereafter prescribed by ordinance.

Each member of said city council, before assuming the duties of office, shall take and subscribe an oath that he possesses the qualifications and is free from the disqualifications prescribed in section 3.1 of this Charter, and to faithfully discharge the duties of his office, and such other oath or affirmation as may be now or hereafter prescribed by ordinance.
(Priv. Acts 1839, Ch. 32, § 9; Priv. Acts 1901, Ch. 432, § 5; Priv. Acts 1911, Ch. 10, §§ 13, 16; Ord. No. 11272, § 1, 5-2-02)

Sec. 8.52. Annual Budget.

The mayor shall propose an annual budget and present it to the city council. The council shall enact a budget ordinance after receiving recommendations for the same from the mayor, which recommendations the council may accept, modify or reject.
(Ord. No. 11272, § 1, 5-2-02)

Sec. 8.53. Disqualification for elective office.

No person who has been convicted of a felony may serve in an elective office of the city of Chattanooga unless his full rights of citizenship, including the right to suffrage, have been restored according to law.
(Priv. Acts 1911, Ch. 10, § 14, Ord. No. 11009, § 1, 5-9-00)

Editor's note—This section was adopted as a new § 8.21 in Ordinance No. 1009, but renumbered at discretion of editors.

Title 9

MUNICIPAL BOARDS AND COMMISSIONS

Chapter I. In General

Sec. 9.1. Board of electrical examiners.
Sec. 9.2. Boards of plumbing examiners.
Sec. 9.3. Reserved.
Secs. 9.4—9.13. Reserved.

Chapter II. Reserved

Secs. 9.14—9.28. Reserved.

Chapter III. Reserved

CHAPTER I. IN GENERAL

Sec. 9.1. Board of electrical examiners.

The city council of the City of Chattanooga, Tennessee, are hereby authorized and empowered to license and regulate the business of electricians and electrical work of all character in said city, and create a board of electrical examiners, and to pass all ordinances necessary to carry out and enforce the powers herein granted.
(Priv. Acts 1933, Ch. 572, § 2; Ord. No. 11272, § 1, 5-2-02)

Sec. 9.2. Boards of plumbing examiners.

The city council of the City of Chattanooga, Tennessee, shall have power by ordinance to regulate and control plumbers and plumbing works; to provide by ordinance for the creation of boards of plumbing examiners and for the licensing of plumbers and to pass all other ordinances necessary to carry out and enforce the powers herein delegated.
(Priv. Acts 1929, Ch. 584, § 2; Ord. No. 11272, § 1, 5-2-02)

Sec. 9.3. Reserved.

Editor's note—Former § 9.3 relating to hospital board repealed Ord. No. 12677, § 19, 12-18-12.

Secs. 9.4—9.13. Reserved.

CHAPTER II. RESERVED

Secs. 9.14—9.28. Reserved.

CHAPTER III. RESERVED*

***Editor's note—**Former Chapter III relating to City-County Historical Commission repealed by Ord. No. 12677, § 20, 12-18-12 which section provided that this repeal "shall not be deemed to preclude the City from exercising those functions pursuant to other state laws of general application."

Title 10

MUNICIPAL ELECTRICAL SYSTEM*

Chapter I. In General

Sec. 10.1. Authorization for city to purchase, construct, acquire, etc., electric light, power and distribution stations, etc., within and without city.

Sec. 10.2. Authorization for city to purchase, construct, acquire, etc., electric light, power and distribution system, etc., within and without city and in State of Georgia; city may sell, advertise, etc., electrical current and portions of electric distribution system.

Sec. 10.3. Bonds—Authority to issue.

Sec. 10.4. Same—Denominations; to be issued as serial bonds; interest; how payable; signatures; tax levy when bonds issued as general obligations of city; sale to federal agencies; private sales.

Sec. 10.5. Same—Statutory mortgage lien created on power plant and distribution system purchased with bonds.

Sec. 10.6. Same—City Council authorized to do certain acts to secure payment of revenue bonds.

Sec. 10.7. Same—Rights of holders of revenue bonds.

Sec. 10.8. Same—City Council authorized to confer certain rights upon bond holders.

Sec. 10.9. Same—Use of proceeds from sale of bonds.

Sec. 10.10. What cost of electric power plant and distribution system to include.

Sec. 10.11. Statutes fixing maximum indebtedness of city not to apply to bonds issued under act.

Secs. 10.12—10.21. Reserved.

Chapter II. Electric Power Board of Chattanooga

Sec. 10.22. Created; membership; term of office of members.

Sec. 10.23. Vacancies in office of board.

Sec. 10.24. General counsel—Position created; appointment of assistants.

Sec. 10.25. Same—Vacancy in office.

Sec. 10.26. Compensation; duties of chairman; selection, duties of vice-chairman.

Sec. 10.27. Organization of board.

Sec. 10.28. Oath and bond of members of board.

Sec. 10.29. Removal of members of board from office.

Sec. 10.30. Authority of power board to purchase, construct, etc., electric power plant, distribution system, etc.; authority to contract with Tennessee Valley Authority, etc.

Sec. 10.31. Power board to have exclusive management and control of operation of power plant, distribution system, etc.; authority to engage, fix salaries, etc., of employees; semiannual financial statement to be filed with City Council.

Sec. 10.32. Board to charge city for services.

Sec. 10.33. Use of revenue derived from operation of electric power plant and distribution system.

Sec. 10.34. Board to have control and supervision of expenditure of funds from sale of bonds.

Sec. 10.35. Power of eminent domain.

***Cross references—**Public utilities generally, Title 14; board of electrical examiners, § 9.1.

CHAPTER I. IN GENERAL

Sec. 10.1. Authorization for city to purchase, construct, acquire, etc., electric light, power and distribution stations, etc., within and without city.

The City of Chattanooga in its corporate capacity is hereby authorized and empowered to purchase, construct, lease or otherwise acquire, and to maintain, operate and regulate, either within or without the corporation limits of said city, and [an] electric light and power plant and distribution system and substations, together with all necessary or appropriate equipment, appliances and appurtenances for the proper operation thereof, for the purpose of lighting public buildings, streets, parks and other municipal property, and for any and all other purposes; and for the sale of electric current for light, heat, power, or any other purpose whatever, within the corporate limits of said city and the territory adjacent thereto.
(Priv. Acts 1935, Ch. 455, § 2)

Sec. 10.2. Authorization for city to purchase, construct, acquire, etc., electric light, power and distribution system, etc., within and without city and in State of Georgia; city may sell, advertise, etc., electrical current and portions of electric distribution system.

The City of Chattanooga in its corporate capacity, is hereby authorized and empowered to purchase, construct, lease, or otherwise acquire, and to maintain, operate, and regulate an electric light and power plant and distribution system and substations, together with all necessary and appropriate equipment, appliances, and appurtenances, for the proper operation thereof, within the corporate limits of said city, and within the territory of Hamilton County, Tennessee, and adjoining counties, and within the territory of Catoosa County and Walker County, in the State of Georgia, for the purpose of sale of electric current for light, heat, power, or any other purposes; and that the said City of Chattanooga is hereby authorized and empowered, in its corporate capacity, to expend such moneys as may be deemed necessary to further the sale of electric energy, including educational work, advertising, sales promotion and such other means as may be deemed necessary for the efficient operation of said electric distribution system and the furthering of sales of electric current; and the said City of Chattanooga is hereby authorized and empowered, in its corporate capacity, to lease, sell, and convey, any part or portion of said electric power plant and distribution system, lying outside of the corporate limits of the City of Chattanooga, that may be deemed necessary and expedient for the efficient and successful operation of said electric distribution system.
(Priv. Acts 1939, Ch. 538, § 1)

Sec. 10.3. Bonds—Authority to issue.

The said City of Chattanooga be and it is hereby authorized, in its corporate capacity, to issue and sell its bonds to be signed by the mayor and countersigned by the finance officer of said city in an amount not exceeding fourteen million dollars ($14,000,000.00) for the purpose of acquiring an existing electric power plant and distributing system, or of constructing, equipping, maintaining and operating an electric power plant and distribution system.
(Priv. Acts 1935, Ch. 455, § 3; Priv. Acts 1939, Ch. 348, § 1; Ord. No. 10742, § 1(1), 8-18-98)

Sec. 10.4. Same—Denominations; to be issued as serial bonds; interest; how payable; signatures; tax levy when bonds issued as general obligations of city; sale to federal agencies; private sales.

The bonds herein authorized shall be payable in lawful money of the United States of America and shall be executed in denominations of one hundred dollars ($100.00) or multiples thereof, no single bond to exceed one thousand dollars ($1,000.00), said bonds shall be issued as serial bonds, maturing in such amounts and at such times not less than three (3) nor more than thirty (30) years from the date of the issuance thereof as the city council may determine, and shall bear interest at the rate of not more than six per cent (6%) per annum, payable semiannually, said interest installments to be evidenced by coupons attached to the

bonds, which coupons shall bear the printed or lithographed facsimile of the signatures of the mayor and finance officer of said city; and said bonds and coupons shall be payable to bearer and the bonds shall be sold at the best price obtainable and shall in no case be sold for less than par and accrued interest. Said bonds shall be issued from time to time in such amounts, and shall bear dates, as the electric power board hereinafter created shall direct; and it shall be the duty of the mayor and city council of the city to provide by resolution or ordinance for the issuance of said bonds as directed by said electric power board. Said bonds shall be known as electric power bonds of the City of Chattanooga and they may be issued either as direct and general obligations of the city, payable out of its general income and revenue, or at the election and subject to the determination of said power board they may be made payable only out of the revenue from said power plant and distribution system. In case the bonds are issued as general obligations of the city, it shall be the duty of the governing board of said city to levy a tax each year over and above the taxes levied for general municipal purposes, to pay the interest and principal of said bonds as they mature, provided, however, that in case the revenue derived from the operation of the electric plant and distribution system herein provided for is sufficient to pay the interest and principal of said bonds, as they severally mature, then, in that event it will not be necessary to make a special levy for the payment of said interest and principal, but the city shall each year levy a sufficient amount which, when added to the amount of revenue derived from the operation of the electric power plant and distribution system, will be sufficient to pay the interest on said bonds and the installments of principal maturing during the year.

The mayor of said city, with the approval of the city council, shall have power and authority to sell the bonds issued under the provisions of this Act to the Reconstruction Finance Corporation, Public Works Administration, Tennessee Valley Authority or any federal agency at private sale, without any public advertisement. Unless the bonds are sold to a federal agency, said bonds shall be sold at public sale in accordance with the provisions of section 3707, Tennessee Code of 1932 [T.C.A. § 6-57-209], and the mayor and city council shall have power and authority to hypothecate any or all of the bonds issued under the provisions of this Act and to borrow thereon funds from the Reconstruction Finance Corporation, the Public Works Administration, or any other similar government agency or board, or from any bank. Said bonds shall contain a recital that they are issued pursuant to and in accordance with this Act, and such recital shall be conclusive of their legality.
(Priv. Acts 1935, Ch. 455, § 4; Ord. No. 10742, § 1(1), 8-18-98; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.5. Same—Statutory mortgage lien created on power plant and distribution system purchased with bonds.

In event the power board shall elect to have bonds issued payable only out of the revenue from the operation of said power plant and distribution system they shall notify the city council of such determination. If revenue bonds are issued for the construction or acquiring of an existing power plant and distribution system there is hereby created a statutory mortgage lien upon the power plant and distribution system constructed or acquired to and in favor of the holders of said revenue bonds. Any holder of any of said bonds may either at law or in equity by suit, action, mandamus or other proceedings protect and enforce the statutory mortgage lien hereby conferred, and may by suit, action, mandamus, or other proceedings enforce and compel performance of all the duties required by this Act.
(Priv. Acts 1935, Ch. 455, § 4; Priv. Acts 1937, Ch. 899, § 1; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.6. Same—City Council authorized to do certain acts to secure payment of revenue bonds.

In order to secure the payment of revenue bonds issued pursuant to this Act and the interest thereon, the city council shall have the power as to such bonds, to the extent not inconsistent with the mandatory provisions of this Act:

(a) After the payment of operating expenses from the gross revenue to pledge all or any part of the remaining revenue derived from the operation of the electric power plant and distribution system to secure the payment of the bonds and interest thereon.

(b) The covenant as to the rates and charges to be imposed and the amounts to be raised in each year by such rates and charges and the use and disposition thereof, and the electric power board shall carry out the provisions of this covenant.

(c) To set aside a reserve or sinking fund and the relation and disposition thereof and to provide for the redemption of revenue bonds and to provide the terms and conditions thereof.

(d) To covenant and prescribe as to what happenings or occurrences shall constitute "default" and the terms and conditions upon which any or all of such bonds shall become or may be declared due before maturity and as to the terms and conditions upon which such declaration and its consequences may be waived.

(e) To covenant as to the right, liabilities, and powers and duties arising upon the breach by it of any covenant, condition or obligation.

(f) To vest in a trustee or trustees the right to receive all or any part of the income assigned to, or for the benefit of, the holder or holders of bonds issued hereunder, and to hold, apply and dispose of the same and the right to enforce any covenant made to secure or pay or in relation to the bonds; to execute and deliver a trust agreement or trust agreements which may set forth the powers and duties and the remedies available to such trustee or trustees and limiting the liabilities thereof, and describing what occurrences shall constitute default, and prescribing the terms and conditions upon which such trustee or trustees or the holder or holders of bonds of any specified amount or percentage of such bonds may exercise such rights and enforce any and all of such covenants and resort to such remedies as may be appropriate.

(g) To make covenants other than, and in addition to, the covenants herein authorized, of like or different character, necessary or advisable to effectuate the purpose of this Act.

(h) To execute all instruments necessary or convenient in the exercise of the powers herein granted or in the performance of its covenants or duties.

(i) To provide for the replacement of lost, destroyed or mutilated bonds.

(j) The electric power board shall carry out the agreements and covenants made by the city council with the holder or holders of revenue bonds as herein provided.

(Priv. Acts 1937, Ch. 899, § 1; Ord. No. 11272, § 1, 5-2-02)

Note—(Paragraph 4 of the Amended Plan appended to the Agreed Order, dated 1-18-90, in the case of Brown v. Board of Commissioners, U.S.D.C., No. CIV-1-87-388).

Sec. 10.7. Same—Rights of holders of revenue bonds.

Any holder or holders of revenue bonds, including a trustee or trustees for holders of such bonds, shall have the right, in addition to all other rights:

(a) By mandamus or other suit, action or proceedings in any court of competent jurisdiction to enforce his or their rights against the City of Chattanooga, the city council thereof, and the electric power board of said city and any other proper officer, agent or employee of any of them, including, but without limitation, the right to require the electric power board and any proper officer, agent or employee thereof to fix and collect rates and charges adequate to carry out any agreement as to the electric power plant and distribution system revenues.

(b) By action or suit in equity to enjoin any acts or things which may be unlawful or a violation of the rights of such holders of bonds.

(Priv. Acts 1937, Ch. 899, § 1; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.8. Same—City Council authorized to confer certain rights upon bond holders.

The City of Chattanooga shall have power by resolution of its city council to confer upon any holder or holders of a specified amount or percentage of bonds the right in event of default as defined in such resolution or as may be defined in any agreement with the holder or holders of such bonds or the trustee or trustees therefor:

(a) By suit, action or proceedings in any court of competent jurisdiction to obtain the appointment of a receiver of the electric power plant and distribution system or any part or parts thereof. If such receiver be appointed he may enter and take possession of such electric power plant and distribution system or any part or parts thereof and operate and maintain the same, and collect the revenue thereafter arising therefrom in the same manner as the electric power board or City of Chattanooga might do and shall deposit such moneys in a separate account or accounts and apply the same in accordance with the obligations of the City of Chattanooga as the court shall direct.

(b) By suit, action or proceedings in any court of competent jurisdiction, to require the city council of the City of Chattanooga and the electric power board of said city to account as if they were the trustee on an express trust.

(Priv. Acts 1937, Ch. 899, § 1; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.9. Same—Use of proceeds from sale of bonds.

All moneys received from bonds issued under this Act shall be used solely for the purpose of defraying the cost of acquiring or constructing an electric power and distribution system, and extension thereof, and the equipment, appliances and appurtenances necessary or appropriate thereto; provided, however, that such moneys may be also used to pay interest maturing on said bonds during negotiations for the acquiring of an existing electric power and distribution system, or during the construction of such power plant and distribution system, and until the system has been put into operation. The board hereinafter created is authorized to incur expenses for the making of surveys and estimates of costs and of revenues, and to certify the expense thereof to the city council of said city, who shall pay the same from the general funds of the city; and such payments from the general funds shall be considered as temporary loans, and shall be repaid, upon sale and delivery of said bonds, out of said bond fund.

(Priv. Acts 1935, Ch. 455, § 5; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.10. What cost of electric power plant and distribution system to include.

The cost of the electric power plant and distribution system shall be deemed to include all necessary expenses of preliminary surveys, estimates of costs and of revenues, and all the cost of acquiring such power plant and distribution system or of the construction thereof also the cost of all necessary or suitable property; rights-of-way, casements [easements] and franchises; and also to include interest in bonds issued under this Act maturing prior to and during the construction or acquisition of the plant for six (6) months thereafter, together with engineering and legal expenses, expenses for plans, specifications and surveys, administrative expenses and all such other expenses as may be necessary or incidental to the financing of, acquiring or constructing and equipping an electric power and distribution system as herein authorized, and the placing of such power plant and distribution system is [in] operation.

(Priv. Acts 1935, Ch. 455, § 6)

Sec. 10.11. Statutes fixing maximum indebtedness of city not to apply to bonds issued under act.

No statute, general or special, fixing the maximum indebtedness of the said City of Chattanooga, or prohibiting the issuance of bonds, notes or other indebtedness, shall apply to or limit the amount of bonds that may be issued or the amount of money that may be borrowed under this Act and all acts or provisions of the Charter of said city in conflict with the provisions of this Act are hereby repealed.

(Priv. Acts 1935, Ch. 455, § 17)

Secs. 10.12—10.21. Reserved.

CHAPTER II. ELECTRIC POWER BOARD OF CHATTANOOGA

Sec. 10.22. Created; membership; term of office of members.

There is hereby created a board to be known and designated as the "Electric Power Board of Chattanooga," consisting of five (5) members, all of whom shall be residents of Hamilton County, Tennessee. Two (2) members of said board shall be appointed for a period of four (4) years; two (2) for a period of six (6) years, and one for a period of eight (8) years, and each of the members of the board shall serve until his successor is appointed and qualified. The first board shall consist of the following named persons, to wit: Stanton Smith and L.J. Wilhoite, who are appointed for a period of four (4) years; J.C. Twinam and George H. Patton, who are appointed for a term of six (6) years; and Harold C. Fiske, who is appointed for a period of eight (8) years, and who shall act as chairman of said board.

When the term of the first appointee, hereinabove named, expires, his successor shall be appointed to serve for a period of two (2) years or until his successor is elected and qualified, and thereafter, his successor shall be appointed for a period of five (5) years or until his successor is elected and qualified. Upon the expiration of the term of the second appointee, his successor shall serve for a period of four (4) years or until his successor is elected and qualified, and, thereafter, his successor shall be appointed for a period of five (5) years or until his successor is elected and qualified. Upon the expiration of the term of the third appointee, his successor shall be appointed for a term of three (3) years or until his successor is elected and qualified, and, at the expiration of said term of three (3) years, his successor shall be appointed for a term of five (5) years or until his successor is elected and qualified. Upon the expiration of the term of the fourth appointee, his successor shall be appointed for a term of five (5) years or until his successor is elected and qualified, and, thereafter, his successor shall be appointed for a term of five (5) years or until his successor is elected and qualified. On or about April 15, 2007 and every year thereafter, the members of the Electric Power Board shall elect from among their number a chairperson and a vice chairperson to serve for a year's term. The current chairperson shall continue as a member of the Board until the normal expiration of his five (5) year term as a Board member and thereafter his successor shall be appointed in the same manner and for the same length of term as other Board members.
(Priv. Acts 1935, Ch. 455, § 7; Priv. Acts 1941, Ch. 455, § 1; Ord. No. 11872, § 1, 8-22-06)

Sec. 10.23. Vacancies in office of board.

When the term of appointment of any member or members of said board shall have expired, or when any vacancy in the board occurs by reason of death, resignation, removal or other cause, the vacancy or vacancies shall be filled by appointments made by the mayor, subject to confirmation by the city council of the City of Chattanooga, and if any appointment made by the mayor shall not be confirmed by the city council within a period of ten (10) days after notice of the appointment has been given to the city council, such appointment shall be null and void, and thereupon it will be the duty of the mayor to make a new appointment or appointments, which shall likewise be subject to confirmation by the city council of the City of Chattanooga.
(Priv. Acts 1935, Ch. 455, § 7; Ord. No. 11872, § 1, 8-22-06; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.24. General counsel—Position created; appointment of assistants.

There is hereby created the position of general counsel of said electric power board for a period of eight (8) years. The first general counsel of said board shall be Will F. Chamblee, who shall serve for a period of

eight (8) years from and after the passage of this Act, or until his successor is appointed and qualified. Provided, further, that said general counsel shall have full authority to select and appoint his legal assistants subject, however, to approval of the board.
(Priv. Acts 1935, Ch. 455, § 7)

Sec. 10.25. Same—Vacancy in office.

When the term of appointment of the general counsel of said board shall have expired, or when any vacancy occurs by reason of death, resignation or other cause, the vacancy in the position of general counsel shall be filled by appointment made be [by] the board.
(Priv. Acts 1935, Ch. 455, § 7)

Sec. 10.26. Compensation; duties of chairman; selection, duties of vice-chairman.

The compensation of the chairman shall be nine thousand dollars ($9,000.00) per annum, and he shall have immediate charge of the operating departments, the financial department, and the management of the electric distribution system, plant, equipment and other property belonging to the system, and shall be chargeable with the enforcement and execution of all rules and regulations, programs, plans and decisions made and adopted by the board.

The board shall elect one of its members vice-chairman, who, in the absence of the chairman or his inability to act, shall discharge the duties of the chairman and such other duties as may be prescribed by the board. The compensation of the vice-chairman of the board shall be eighteen hundred dollars ($1,800.00) per annum and the compensation of the other members of the board shall be twelve hundred dollars ($1,200.00) per annum.

The compensation of the general counsel shall be in such amount or amounts as the board shall determine from time to time, and all compensation of the general counsel and assistants and the members of said board shall be payable monthly out of the revenue derived from the operation of said power plant and distribution system, provided however, that the compensation of said board and the general counsel and assistants prior to the time that said power plant and distribution system shall be put into operation and is earning sufficient revenue to pay the same, may be paid out of the proceeds of the bonds issued and sold under this Act, and provided further that the compensation of the general counsel and assistants and of the other members of said board prior to the issuance and sale of said bonds, shall be paid out of the general funds of the city, and such payment from the general funds shall be considered as a temporary loan and shall be refunded out of the proceeds of the sale of the bonds when realized.
(Priv. Acts 1935, Ch. 455, § 7; Priv. Acts 1941, Ch. 455, § 2; Priv. Acts 1951, Ch. 27, § 1; Priv. Acts 1970, Ch. 280, § 1; Priv. Acts 1970, Ch. 318, § 1)

Editor's note—Private Acts 1970, Ch. 280, § 1, and Private Acts 1970, Ch. 318, § 1, amended the acts codified as § 10.26 by increasing the salaries. Formerly the chairman received $6,000.00; the vice-chairman, $1,800.00; each board member, $900.00; the general counsel, not less than $6,000.00 nor more than $7,500.00.

Sec. 10.27. Organization of board.

Said board shall organize immediately after the passage of this Act, and enter upon the discharge of its duties, and the board may, in its discretion, employ someone not a member of the board to act as secretary.
(Priv. Acts 1935, Ch. 455, § 7)

Sec. 10.28. Oath and bond of members of board.

The members of said board hereinbefore designated and all subsequent members before entering upon the discharge of the duties of their office, shall take and subscribe to an affidavit before any person authorized

to administer an oath that they will faithfully and honestly discharge the duties of their office, and they shall file said affidavit with the mayor and city council of said city, and each member of the board shall execute and file with the mayor and city council a bond in the sum of five thousand dollars ($5,000.00), payable to the City of Chattanooga, Tennessee, conditioned for the faithful performance of his duties.
(Priv. Acts 1935, Ch. 455, § 8; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.29. Removal of members of board from office.

Any member of said board who shall knowingly or willfully neglect to perform any duty enjoined upon him by virtue of the provisions of this Act or of the laws of the State of Tennessee, or who shall prove incompetent to perform or shall fail to perform the duties of his office, or who shall be guilty of any act involving moral turpitude shall be removed from office, as hereinafter provided.

It shall be the duty of the city attorney of the said City of Chattanooga, on notice being filed with him in writing that any member of said board is subject to removal on the grounds set forth in the last preceding section [paragraph], to forthwith investigate such complaint and if upon such investigation he shall find there is reasonable cause for the complaint he shall forthwith institute proceedings by filing a petition in the circuit, criminal or chancery court of Hamilton County, Tennessee, to oust such member from said board. The accused member shall be named as defendant to the petition or complaint, which shall state the charges against the defendant with reasonable certainty and shall be verified by affidavit.

Upon the filing of the petition, a summons shall issue, requiring the defendant to appear and answer the petition within twenty (20) days from the service thereof, and there shall accompany the summons and be served upon the defendant a copy of the petition so filed against him. The petition and answer shall constitute the only pleadings allowed, and all allegation[s] in the answer inconsistent with or contradictory of the allegations of the petition shall be deemed controverted, and any and all questions as to the sufficiency of the petition shall be raised and determined on the trial; and if such petition or complaint is held to be insufficient in form the same shall be amended at once and such amendment shall not delay the trial of the case. The proceedings, whether in the circuit, criminal, or chancery court, shall be conducted in accordance with the procedure of courts of chancery, and each of said courts is hereby given the full jurisdiction and powers of courts of equity with respect to such proceedings.

Such proceedings shall be given precedence over all other civil and criminal cases, and shall be tried at the first term after the filing of the petition, provided the answer to the petition shall have been filed at least ten (10) days before the day of trial. If the defendant shall fail to answer said petition within twenty (20) days after the service thereof or if on trial he shall be found guilty as charged in the petition, judgment of ouster shall be rendered against him and he shall be ousted and removed from his office and forever disqualified from again being a member of the board. Either party may appeal or prosecute a writ of error to the supreme court from the final judgment or decree rendered in such cause, but such appeal or writ of error shall not operate to suspend or vacate the judgment or decree of the trial court, but the same shall remain in full force until vacated, reversed or modified by the supreme court. Upon petition being filed as herein provided against any member of said board praying for his ouster or removal, the court in which the petition is filed may suspend the defendant from acting as a member of the board or performing any of the duties thereof pending the final determination of the case; and the vacancy caused by such suspension shall be filed as provided in this Act for the filling of other vacancies on said board and the person filling such vacancy shall act as a member of the board until the ouster proceedings shall be finally determined or until the successor of the member so suspended shall be appointed and qualified as provided in this Act. If upon the final hearing of such ouster proceeding the defendant is not found to be subject to removal or ouster he shall be immediately restored as a member of said board if he has been suspended in the meantime, and he

shall be allowed his full salary during the time of his suspension. The person temporarily filling the office of member of the board, as herein provided, shall receive compensation during the time of his service at the same rate provided by this Act, to be paid to the member so suspended.
(Priv. Acts 1935, Ch. 455, §§ 9, 10)

Sec. 10.30. Authority of power board to purchase, construct, etc., electric power plant, distribution system, etc.; authority to contract with Tennessee Valley Authority, etc.

Said Electric Power Board of Chattanooga be and they are hereby authorized to purchase, construct, erect or otherwise acquire and to maintain and operate the electric power plant, distribution system, substations, etc., hereinbefore provided for; and said board shall have full power and authority to purchase, rent, lease or otherwise acquire any and all kinds of property, real or personal, for the said City of Chattanooga, in order to carry out the powers herein granted, and also to enter into any and all contracts with the Tennessee Valley Authority or others for the furnishing of electric current to the City of Chattanooga, and to enter into any other contracts with any other persons, partnerships, associations or public or private corporations which may be by said board deemed necessary or expedient in exercising said powers; and said board shall have full control over the erection, construction, maintenance and operation of said plants and properties with full power to make rules for the control and maintenance of said plants and properties, the manner of operation, and the employment of officials and employees of every kind. Said board may acquire by purchase and [an] existing electric power plant and distribution system with substation appurtenances, equipment, etc., and it is authorized to carry on all necessary or proper negotiations therefor; and in the event the board is unable to acquire an existing power plant and distribution system within a reasonable time and on terms which it considers to be fair and reasonable, it is authorized to make the necessary surveys and enter into contracts for the construction of such power plant, districution [distribution] system, substations, etc., and the equipment and appliances necessary or appropriate thereto. The board is also authorized to enter into contracts with the Tennessee Valley Authority or other agencies for the furnishing of electric current to the said City of Chattanooga to be used by said city for its own purposes and, also to sell the same for light, power, heating or any other purpose, and to agree on rates for the sale of such current.
(Priv. Acts 1935, Ch. 455, § 11)

Sec. 10.31. Power board to have exclusive management and control of operation of power plant, distribution system, etc.; authority to engage, fix salaries, etc., of employees; semiannual financial statement to be filed with City Council.

Said Electric Power Board of Chattanooga shall have exclusive management and control of the operation of said electric power plant and distribution system, with authority to engage, determine the number, and fix the salaries and duties of, all employees and to remove employees at their discretion; provided, said board may in its discretion delegate to a manager or superintendent to be chosen by it the power and authority to employ and remove subordinate employees. The board shall provide an accounting system, and all revenues collected from the operation of the said power plant and distribution system shall be deposited in the name of the City of Chattanooga and kept in a separate fund and shall be dispersed upon warrants of the said board drawn on the city treasurer, the warrants to be signed by the secretary of the board and approved by the general manager of the power plant and distribution system. Said board shall make and file with the mayor and city council of said city on the first day of January and first day of July of each year a financial statement showing the financial operations during the preceding six (6) months and the financial condition of the said power and distribution plant.
(Priv. Acts 1935, Ch. 455, § 12; Ord. No. 11272, § 1, 5-2-02)

Sec. 10.32. Board to charge city for services.

The said Electric Power Board of Chattanooga shall charge the said city for any electric service furnished it at rates applicable to other customers served under similar conditions; and the revenue derived from such services shall be treated as all other revenues of said board or power system.
(Priv. Acts 1935, Ch. 455, § 13)

Sec. 10.33. Use of revenue derived from operation of electric power plant and distribution system.

The revenues derived from the operation of said electric power plant and distribution system shall be used for the following purposes:

(1) Current electric system operating expenses, including, without limitation salaries, wages, cost of materials and supplies, power at wholesale, and insurance;

(2) Current payments of interest on electric system indebtedness, and the payment of principal amounts, including sinking fund payments, when due;

(3) From any remaining revenues, reasonable reserves for renewals, replacements, and contingencies, and cash working capital adequate to cover operating expenses for a reasonable number of weeks; and

(4) From any revenues then remaining, tax and tax equivalent payments to taxing districts (defined for purposes hereof as governmental bodies, including without limitation the City of Chattanooga, and other taxing jurisdictions in which the tangible property used in board's electric operations is located) as follows:

(a) The board shall determine as of the first day of January 1969, and as of the first day of January each and every year thereafter from the general books of the board, the depreciated original cost of the board's tangible property, including materials and supplies, used or usable in electric operations in each taxing district, including the City of Chattanooga, in which the board has such property.

(b) The board shall create each year as soon as current ad valorem tax rates are available a tax equivalent fund for that year by applying the current ad valorem tax rate in each taxing district to the depreciated original cost of the board's tangible property, including materials and supplies, used or usable in electric operations with such taxing district.

(c) The board shall make payments from this tax equivalent fund within the period allowed for tax payments without penalty the following as taxes or tax equivalents:

(1) To each taxing district the amount of taxes assessed against the board as legally assessed taxes;

(2) To each other taxing district where no taxes are legally assessed against the board an amount arrived at by applying the current ad valorem tax rate in that district to the depreciated original cost of the board's tangible property, including materials and supplies, used or usable in electric operations in that district; and

(3) To the City of Chattanooga as the owner of the board's electric system (no matter where located), in addition to the amount determined under clause (2) of paragraph (c) above, any remaining amount of the tax equivalent fund not paid out in accordance with clauses (1) and (2) of paragraph (c) above; provided, however, that with respect to taxing districts other than those which levy taxes against the board the amount to which the current ad valorem tax rate of any taxing district is applied under paragraph (b) and clause (2) of paragraph (c) above, shall not be less than the amount to which said district's tax rate was applied for purposes of determining the tax equivalent for that district for the year 1968; and provided, further, that the payments in lieu of taxes hereunder shall be in lieu of all taxes and other charges on the property or operations of board's electric system, or upon the sale, purchase, use, or consumption of electric power and energy, and such payments shall be made only so long as

the respective taxing districts do not levy such taxes or other charges. In the event that any taxing district is hereafter authorized to and does levy any such tax or charge, the amount payable as a tax equivalent to that taxing district and the total amount payable into the tax equivalent fund created by board shall be reduced by the amount of such tax or charge; provided, however, that in no event shall any such reduction resulting from such tax or charge levied by any taxing district other than Chattanooga cause the sum of (1) the amount paid hereunder to the City of Chattanooga and (2) any portion of such tax or charge received directly or indirectly by the City of Chattanooga to be less than an amount calculated by applying the prevailing tax rate of said city to the depreciated original cost of the tangible property used in board's electric operations within the corporate limits of the city; provided further that nothing herein or in the provisions of this Act, as amended, shall have the effect of limiting or restricting the powers of the City of Chattanooga and the Electric Power Board of Chattanooga to contract otherwise with respect to payments in lieu of taxes either with any supplier of wholesale power or with purchasers or holders of its bonds issued for electric system purposes.

(5) The determination by the board of the respective amounts of the payments in lieu of taxes to be made to the taxing districts and of the funds available for such payments shall be final.

(Priv. Acts 1935, Ch. 455, § 14; Priv. Acts 1939, Ch. 538, § 2; Priv. Acts 1941, Ch. 455, § 3; Priv. Acts 1945, Ch. 53, § 1; Priv. Acts 1968, Ch. 310, § 1)

Sec. 10.34. Board to have control and supervision of expenditure of funds from sale of bonds.

Said board shall have control and supervision of the expenditure of the funds realized from the sale of the bonds herein authorized, which fund shall be disbursed upon warrants of said board signed by the secretary of the board and approved by the chairman thereof.

(Priv. Acts 1935, Ch. 455, § 15)

Sec. 10.35. Power of eminent domain.

Said board is expressly authorized to exercise the power of eminent domain on behalf and in the name of the City of Chattanooga within the said city and the boundaries of Hamilton County, Tennessee, in order to require [acquire] any property, real or personal, necessary or useful in exercising the power and authority conferred by this Act; and any property so acquired shall be paid for out of the earnings of the power plant and system herein provided for, or from the proceeds of the bond issue authorized by this Act. The title to all property taken for the purpose of exercising the powers conferred by this Act whether acquired by contract or by exercise of the power of eminent domain, shall be taken in the name of the City of Chattanooga, Tennessee; and such condemnation proceedings as may be deemed necessary or proper shall be pursuant to and in accordance with the provisions of Section 3109 and Section 3134, inclusive, of the 1932 Code of Tennessee. [T.C.A. §§ 29-16-101—29-16-124].

(Priv. Acts 1935, Ch. 455, § 16)

Title 11

ORDINANCES AND RESOLUTIONS*

Chapter I. In General

Sec. 11.1. General authority of City Council.
Sec. 11.2. Required readings; subject matter.
Sec. 11.3. Introductory clause.
Sec. 11.4. When ordinances take effect.
Sec. 11.5. Signing of ordinances, maintenance of ordinances, and resolutions.
Sec. 11.6. Veto power of mayor-generally.
Sec. 11.7. Same—Item veto.
Sec. 11.8. Ordinances may become valid without signature of mayor.
Sec. 11.9. Vote required for passage of ordinances, etc.
Sec. 11.10. Existing ordinances saved; amendment and repeal.
Sec. 11.11. Codification—Authority of city generally.
Sec. 11.12. Same—Amendment, repeal, etc., of existing ordinances; Code conclusive as to law in city; use of evidence.
Sec. 11.13. Same—Severability of sections, etc., of City Code.
Secs. 11.14—11.23. Reserved.

Chapter II. Initiative and Referendum

Sec. 11.24. Initiative.
Sec. 11.25. Referendum.

*__Cross reference—__Requirements for ordinances granting franchises, § 7.2.

CHAPTER I. IN GENERAL

Sec. 11.1. General authority of City Council.

The city council shall have power to pass for the government of the city any ordinance not in conflict with the Constitution of the United States or the Constitution of the State of Tennessee or the statutes thereof.
(Priv. Acts 1901, Ch. 432, § 9; Priv. Acts 1911, Ch. 10, §§ 13, 15; Ord. No. 11272, § 1, 5-2-02)

Cross reference—Powers of city enumerated generally, § 2.1.

Sec. 11.2. Required readings; subject matter.

No ordinance shall be valid unless passed on two (2) separate readings after an opportunity for free discussion thereof; however, this prohibition shall not apply to a motion, a motion in the nature of a resolution, or a resolution not having the force and effect of an ordinance, and such motions and resolutions shall be effective upon passage by the city council. No ordinance shall be valid if passed on the first and final reading on the same day. This section shall not apply to a franchise ordinance. No ordinance of any kind shall be invalid if it should embrace more than one (1) subject. All resolutions heretofore passed by the city which were motions in the nature of a resolution, or were resolutions not having the force and effect of an ordinance, are hereby validated notwithstanding they were passed and executed after one (1) reading.
(Priv. Acts 1901, Ch. 432, § 9; Priv. Acts 1911, Ch. 10, §§ 13, 15; Priv. Acts 1969, Ch. 82, § 3; Ord. No. 11272, § 1, 5-2-02; Ord. No. 11590, § 1, 8-3-04)

Editor's note—Ordinance No. 11590, Section 1, amended Section 11.2 to read as herein set out. Formerly, said section said required three readings of ordinances.

Sec. 11.3. Introductory clause.

The style or introductory clause of all ordinances shall be: "Be it ordained by the City Council of the City of Chattanooga."
(Priv. Acts 1911, Ch. 10, § 15; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.4. When ordinances take effect.

Ordinances shall take effect upon becoming law or at such other and subsequent time as the Council may designate within the Ordinance.
(Priv. Acts 1911, Ch. 15, § 3, Ord. No. 11592, § 1, 8-3-04; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.5. Signing of ordinances, maintenance of ordinances, and resolutions.

Every ordinance upon final passage shall be signed by the council chairperson, vice-chairperson or chairperson pro tempore, and shall also be approved or vetoed by the mayor and shall then be delivered to the clerk of the city council whose duties it shall be to maintain same as required by law. Resolutions are not required to be signed but shall be numbered and maintained by the Clerk of the Council for such period as may be required by applicable laws and regulations or directive of the City Council.
(Ord. No. 12677, § 21, 12-18-12)

Sec. 11.6. Veto power of mayor-generally.

All resolutions and ordinances passed by the board, except resolutions calling for information from the mayor and ordinances fixing the compensation of a mayor pro tem, shall be subject to approval or disapproval of the mayor. If the mayor should disapprove of any ordinance or resolution, he shall specify

his objection thereto in writing by the next regular meeting of the city council. Such ordinance or resolution so disapproved or vetoed by the mayor shall not be valid unless passed over said veto by a majority vote, to be taken by ayes and nays, and a record thereof entered on the minutes.
(Priv. Acts 1901, Ch. 432, §§ 17, 28; Priv. Acts 1911, Ch. 10, § 15; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.7. Same—Item veto.

The mayor may disapprove any item or items in an ordinance making appropriations, and the part or parts of such ordinance approved by him shall be valid, but the item or items disapproved shall not be effective unless again passed as required for the passage of an ordinance, notwithstanding the mayor's veto.
(Priv. Acts 1901, Ch. 432, § 28)

Sec. 11.8. Ordinances may become valid without signature of mayor.

Should the mayor withhold any such resolution or ordinance beyond the day for the next regular meeting, and the city council actually meets, if three (3) days shall have intervened between the presentation to the mayor and said meeting, it shall be obligatory as if signed.
(Priv. Acts 1901, Ch. 432, § 28; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.9. Vote required for passage of ordinances, etc.

The affirmative votes of five (5) members shall be necessary to adopt any motion, resolution or ordinance or pass any measure.
(Priv. Acts 1911, Ch. 10, § 14; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.10. Existing ordinances saved; amendment and repeal.

All ordinances now in force and not in conflict with this Act or the constitution or statutes of the state, are continued in force, but the city council shall have power to amend or repeal any of them by ordinance.
(Priv. Acts 1901, Ch. 432, § 11; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.11. Codification—Authority of city generally.

The city attorney and his assistants shall cause to be prepared a codification of the City Charter of the City of Chattanooga and all amendments thereto, and all ordinances and resolutions of said city of general application or having regulatory effect, which are in force and effect as of the date of such codification. Said codification shall be known and designated as the City Code of the City of Chattanooga. The Code shall carry notes and cumulative reference indicating prior amendments to any section thereof and all case citations. The City Code shall be updated at least annually and then current copies shall be maintained in the Office of the City Attorney and in the Office of the Clerk of Council.

Copies of said official Code and all annual supplements shall be certified by the city attorney, and when so certified shall be competent evidence as to the matters contained therein. Copies of the official Code shall be maintained electronically on the city's website or upon any technologically advanced electronically accessible site maintained on behalf of the city.

The codification of the city charter and ordinances shall be in two volumes. PART I shall contain the codification of the provisions of the charter, with separate index; PART II, shall contain the ordinances of the city, with separate index. PART II, shall contain ordinances and resolutions adopted in the form of an ordinance in the same form and manner as now provided for the passage of ordinances by the city. The city council of the city shall designate PART II, as the Official Code of Chattanooga, and shall have authority to amend, and to enact additional ordinances other than those contained in such official code, from time to time. The codification of the City Charter in Part I and the ordinances and resolutions in Part II or copy

thereof which is duly certified by the city attorney or the clerk of the city council as a true and correct copy of said Charter, Code, or supplement may be read in evidence in any court in this state without further proof of passage.
(Priv. Acts 1957, Ch. 193, § 2; Priv. Acts 1961, Ch. 341, § 1; Ord. No. 12677, § 22, 12-18-12)

Sec. 11.12. Same—Amendment, repeal, etc., of existing ordinances; Code conclusive as to law in city; use of evidence.

The City of Chattanooga, in the preparation of any digest of its local laws and ordinances is hereby empowered and authorized to codify, revise and collect in the form of a Code all ordinances of a general nature, and in so doing, the city council shall have full power and authority without special ordinance referring to each ordinance amended, altered, repealed or modified, to amend, alter, repeal or modify any ordinance of a general nature other than contract ordinances, franchise ordinances, ordinances relating to bond issues or other ordinances in or by which the city has assumed such contract obligations as are protected by the Constitution of the United States or the State of Tennessee. Such Code shall be in the form of an ordinance and shall be published by the city council in the same form and manner as is now provided for the passage of other ordinances. The provisions of any such Code shall be conclusively held to be the law of the City of Chattanooga from and after its passage with respect to any subject or provision contained therein. Such Code or any copy thereof which purports to be published by authority of the City of Chattanooga may be read in evidence in any court in this state without further proof of its passage.
(Priv. Acts 1939, Ch. 572, § 2; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.13. Same—Severability of sections, etc., of City Code.

The invalidity of any section or part of section of such Code shall not affect the validity of any part of such Code, and only such invalid part shall be elided from such Code.
(Priv. Acts 1939, Ch. 572, § 5)

Secs. 11.14—11.23. Reserved.

CHAPTER II. INITIATIVE AND REFERENDUM

Sec. 11.24. Initiative.

Any proposed ordinance may be submitted to the city council of the City of Chattanooga by petition signed by the qualified voters of said city equal in number to twenty-five per centum (25%) of the votes cast for all the candidates for mayor at the last preceding general municipal election, with the request that said ordinance be submitted to a vote of the people, if not passed by the city council. The signatures, verification, inspection, amendment and certification of each petition shall be the same as provided in section 23 of the Act hereby amended [section 3.18 hereof]. If the commissioners of election certify to the sufficiency of the petition, the proposed ordinance and petition shall be filed, with the city finance officer, and thereupon either (1) the city council shall pass such ordinance without alteration within six (6) weeks after it is so filed, or, if they fail or refuse to do so, (2) the city finance officer shall transmit said ordinance and petition, together with his certificate that the city council fail or refuse to pass such an ordinance, to the commissioners of election, whose duty it shall then be to call special election to be held as soon as may be done conformably to law, unless a general municipal election is fixed to be held within ninety (90) days; and at said special election, if one is so fixed, said ordinance shall be submitted without alteration to the vote of the qualified voters of said city. The ballots used when voting upon said ordinance shall contain these words: "For the Ordinance" (stating the nature of the proposed ordinance) and "Against the Ordinance" (stating the nature of the proposed ordinance). If a majority of the qualified voters voting on the proposed ordinance shall vote

in favor thereof, such ordinance shall thereupon become as valid and binding an ordinance of the city as if duly passed by the board of commissioners; and any ordinance proposed by petition or which shall be adopted by a vote of the people, cannot be repealed or amended except by a vote of the people.

Any number of proposed ordinances may be voted upon at the same election in accordance with the provisions of this section, but there shall not be more than one special election in any period of six (6) months for such a purpose.

The city council may submit a proposition for the repeal of any such ordinance or for amendments thereto, to be voted upon at any succeeding general city election; and should such proposition so submitted receive a majority of the votes cast thereon at such election, such ordinance shall thereby be repealed or amended accordingly. Whenever any ordinance or proposition is required by this Act to be submitted to the voters of the city at any election, the city finance officer shall cause such ordinance or proposition to be published in each of the daily newspapers published in said city, such publication to be not more than twenty (20) nor less than five (5) days before the submission of such proposition or ordinance to be voted on.
(Priv. Acts 1911, Ch. 15, § 2; Ord. No. 9433, § 1, 8-21-90; Ord. No. 10742, § 1(1), 8-18-98; Ord. No. 11272, § 1, 5-2-02)

Sec. 11.25. Referendum.

No ordinance passed by the city council, except an ordinance which the public peace, health or safety shall require to take effect immediately and which shall contain a statement of such urgency and be passed by a vote of more than five (5) of the city council, shall go into effect before two (2) weeks from its final passage; and if, during said two (2) weeks a petition such as is hereinafter described to be filed with the city finance officer protesting against the passage of said ordinance, the same shall be suspended from going into operation, and it shall be the duty of the city council to reconsider such ordinance; and if the same is not entirely repealed, the city finance officer shall transmit said petition with his certificate of the action of the city council thereon to the commissioners of election, whose duty it shall then be to submit said ordinance to a vote of the qualified voters of said city at a general election or a special election called for that purpose in like manner as provided in the second section of this Act [section 11.24 hereof], and said ordinance shall not go into effect or become operative unless a majority of the qualified voters voting upon the same shall vote in favor thereof. Said petition shall be in all respects in accordance with the provisions of the second section of this Act [section 11.24 hereof], but it shall be the duty of the said commissioners of election to examine and certify the same within said period of two (2) weeks.
(Priv. Acts 1911, Ch. 15, § 3; Ord. No. 10742, § 1(1), 8-18-98; Ord. No. 11272, § 1, 5-2-02)

Title 12

PLANNING, ZONING AND DEVELOPMENT

Chapter I. Planning

Sec. 12.1. Municipal Planning.
Secs. 12.2—12.20. Reserved.

Chapter II. Zoning

Sec. 12.21. Zoning.
Sec. 12.22. Height, area regulations authorized generally; purposes.
Sec. 12.23. Repealed.
Sec. 12.24. Repealed.
Sec. 12.25. Pre-existing uses and structures.
Sec. 12.26. Advisory and appeals board.
Sec. 12.27. Penalties and enforcement.
Secs. 12.28—12.37. Reserved.

Chapter III. Plats and Subdivisions

Sec. 12.38. Plats and subdivisions.

CHAPTER I. PLANNING*

Sec. 12.1. Municipal Planning.

The legislative body of the City is authorized to create and establish a Municipal Planning Commission with full authority to act on all zoning plans, plots, replots, recommendations, dedications, and utilities pursuant to laws of the State of Tennessee, including Priv. Acts 1923, Ch. 397, §§ 1 - 9 and as the same may have been amended, and other Private Acts of the Tennessee General Assembly and General Laws of the State which are applicable to the City of Chattanooga, and to provide appropriating funding and hiring of staff to perform duties of the Municipal Planning Commission. The legislative body of the City is further authorized to enter into Interlocal Agreements pursuant to State law for the funding of a Regional Planning Commission and/or Regional Planning Agency as authorized by State law.
(Ord. No. 12677, § 23, 12-18-12)

State law references—Municipal Planning Commission T.C.A. § 13-4-101 *et seq.*; Regional Planning Commission, T.C.A. § 13-3-101 *et seq.*

Secs. 12.2—12.20. Reserved.

CHAPTER II. ZONING†

Sec. 12.21. Zoning.

The legislative body of the City has been empowered with full authority pursuant to laws of the State of Tennessee, pursuant to Priv. Acts 1923, Ch. 402, §§ 1 - 7 and as the same may have been amended, including other Private Acts of the Tennessee General Assembly and General Laws of the State to establish zoning or land use regulations applicable to the City of Chattanooga, which regulate the location, height, bulk, number of stories and size of buildings and other structures, the percentage of the lot which may be occupied, the sizes of yards, courts and other open spaces, the density of population, and the uses of buildings, structures and land for trade, industry, residence, recreation, public activities and other purposes, and to identify areas where there are inadequate or nonexistent publicly or privately owned and maintained services and facilities which the planning commission may determine that services are necessary in order for development to occur. The legislative body of the City has further been empowered to establish Special districts or zones in those areas deemed subject to seasonal or periodic flooding, and such regulations may be applied therein as will minimize danger to life and property, and as will secure City residents eligibility for flood insurance under State and federal laws, as may be amended, or subsequent related laws or regulations promulgated thereunder. The legislative body has further been empowered to provide for the protection and encouragement of access to sunlight for solar energy systems which may be considered in promulgating zoning regulations and any other appropriate land use regulations which are authorized by the General Laws of the State. The legislative body may establish a Board of Appeals as authorized by State law to hear appeals from decisions by the City on zoning and land use decisions.
(Ord. No. 12677, § 24, 12-18-12)

Sec. 12.22. Height, area regulations authorized generally; purposes.

Such legislative body may regulate by ordinance and limit the height and the bulk of the buildings hereafter erected, or hereafter altered as provided in the fifth section [section 12.25] hereof, and regulate and determine the percentage of land area to be devoted to yards, courts, and other open spaces, and for said

---

***State law reference—**Municipal planning commissions generally, T.C.A. §§ 13-4-101 et seq.

†**Cross reference—**Zoning of filling stations, § 2.1(55).

State law reference—Zoning generally, T.C.A. §§ 13-7-201 et seq.

purposes may divide the municipality into districts of such number, shape and area as may be deemed best suited to carry out the purpose of this section. Such regulations shall be uniform for each class of buildings throughout each district, but the regulations in one or more districts may differ from those in another district.

Such regulations shall be made in accordance with a comprehensive plan, and designed to lessen congestion in the streets; to secure safety from fire, panic and other dangers; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentration of population; to facilitate the adequate provisions of transportation, water, sewerage, schools, parks, and other public requirements, and otherwise to promote the public safety, health, convenience, and the general welfare. Such regulations shall be further made with reasonable consideration to the character of the district, the character of the buildings then existing therein, and the value of the land therein, and the peculiar suitability of the district for particular uses, and with a further view to conserving the value of the buildings, stabilizing the value of land and encouraging the most appropriate use of land throughout such municipality, all for the purpose of promoting the public health, safety, convenience, and the general welfare.
(Priv. Acts 1923, Ch. 402, § 2)

Sec. 12.23. Repealed.
(Ord. No. 11309, § 1, 8-22-02)
Editor's note—The repealed section dealt with recommendations of planning commission.

Sec. 12.24. Repealed.
(Ord. No. 11309, § 1, 8-22-02)
Editor's note—The repealed section dealt with changes in regulations

Sec. 12.25. Pre-existing uses and structures.

The lawful use of premises existing at the time of the adoption of an ordinance under the provisions of this Act [chapter], although such use does not conform to the provisions of such ordinance, may be continued; and the lawful use of a building existing at such time, although such use does not conform to the provisions of such ordinance, may be continued throughout the life of the building; provided, that no alteration thereof to a greater extent than fifteen per cent (15%) of the then value of such building, except those required or permitted by an ordinance adopted hereunder, are made therein; but if such nonconforming use is discontinued, any future use of said premises shall be in conformity with the provisions of ordinance and regulations adopted under the authority of this Act [chapter].

When structural alterations greater in extent than fifteen per cent (15%) of the then value of the building are made in a building of nonconforming use, such building shall be altered in conformity with the provisions of ordinances and regulations adopted under the authority of this Act [chapter], for the district in which such building is located, and thereafter the use of such building shall be in accordance with ordinances adopted hereunder.

When the boundary line of any such district divides a parcel of ground in common ownership at the time of the adoption of an ordinance under the provisions of this Act [chapter], nothing herein shall be construed to prevent the extension of the use existing on either portion of such parcel of ground, to the entire parcel, but for a distance of not greater than twenty-five (25) feet from such boundary line.

Nothing in this Act [chapter] shall be taken to prevent: (a) the erection of a building for which a permit shall have been issued previous to the passage of an ordinance under the provisions of this Act [chapter]; (b) the restoration of a building destroyed to the extent of not more than seventy-five per cent (75%) of its

reasonable value, by fire, explosion, or other casualty, or act of God, or the public enemy, nor the continued occupancy or use of such building or part thereof after restored, which existed at the time of such partial destruction; (c) the restoration of a wall declared unsafe by the building inspector.
(Priv. Acts 1923, Ch. 402, § 5)

Sec. 12.26. Advisory and appeals board.

The legislative body of such municipality may create a board whose duty it shall be to advise the mayor of such municipality or other officer having control over the enforcement of the provisions of an ordinance adopted under this Act [chapter], with reference to the proper enforcement and application of the provisions of such ordinance. Such board may be given power to hear appeals from the action of such building commissioner or other officer aforesaid, and determine the rights of such applicant. The decision of such board, however, shall be subject to review by the city council of such municipality. The board herein provided for may consist of the city planning commission, where such commission exists in any municipality, or any portion thereof as provided for by ordinance, such portion thereof to be selected by the mayor, by and with the consent of the legislative body of the municipality.
(Priv. Acts 1923, Ch. 402, § 6; Ord. No. 11272, § 1, 5-2-02)

Sec. 12.27. Penalties and enforcement.

The legislative body of such municipality may fix such penalty or fine for the violation of any ordinance adopted hereunder as it may be authorized to do by charter or the general law, to be enforced and collected as provided by charter or general law; and in addition, such municipality shall have power to file a bill to restrain such threatened violation or to abate it once initiated or carried on.
(Priv. Acts 1923, Ch. 402, § 7)

Secs. 12.28—12.37. Reserved.

CHAPTER III. PLATS AND SUBDIVISIONS

Sec. 12.38. Plats and subdivisions.

The legislative body of the City has been authorized to provide for the development of plats and subdivisions for registration in the office of the County Register pursuant to Priv. Acts 1923, Ch. 405, §§ 1 - 2 and as the same may have been amended, including other Private Acts of the Tennessee General Assembly and General Laws of the State which are applicable to plats and subdivisions which are developed within the City of Chattanooga.
(Ord. No. 12677, § 25, 12-18-12)

State law references—T.C.A. § 13-4-301 *et seq.*; T.C.A. § 13-3-401 *et seq.*

Title 13

POLICE AND FIRE*

Chapter I. In General

Sec. 13.1. Reserved.
Sec. 13.2. Reserved.
Sec. 13.2.1. Reserved.
Sec. 13.3. Special policemen.
Sec. 13.4. Reserved.
Sec. 13.5. Reserved.
Sec. 13.6. Reserved.
Sec. 13.7. Political activities.
Sec. 13.8. Gratuities prohibited.
Sec. 13.9. Reserved.
Sec. 13.10. Reserved.
Sec. 13.11. Reserved.
Sec. 13.12. Reserved.
Sec. 13.13. City to pay for repairs of uniforms damaged in discharge of duty.
Sec. 13.14. Uniform and equipment allowance.
Sec. 13.15. Reserved.
Sec. 13.16. Political activities of members of the fire and police departments.
Sec. 13.17. Title and authority for the police advisory and review committee.
Secs. 13.18—13.25. Reserved.

Chapter II. Salaries

Secs. 13.26—13.30. Reserved.
Secs. 13.31—13.43. Reserved.

Chapter III. Tenure

Sec. 13.44. Grant of tenure; arbitrary, etc., dismissal, etc., prohibited; effective date.
Sec. 13.45. Maximum period of suspension.
Sec. 13.46. Political activity.
Sec. 13.47. Dismissal, suspension, etc.—To be in accord with chapter.
Sec. 13.48. Same—Written charges to be filed.
Sec. 13.49. Same—Hearing.
Sec. 13.50. Reinstated employees.
Sec. 13.51. Rights of appeal under general state law.
Sec. 13.52. Applicability of chapter.
Secs. 13.53—13.62. Reserved.

***Editor's note—**Ord. No. 12677, § 13, adopted December 18, 2012, amended the title of Title 13 to read as set out herein. Previously Title 13 was titled police and firemen.

Cross references—General authority to regulate police, § 2.1(40); authority to provide police and fire departments, § 2.1(41).

Chapter IV. Fire and Police Pension

Sec. 13.63. Fire and Police Pension Fund.
Sec. 13.64. Amendments by ordinance.
Secs. 13.65—13.86. Reserved.

CHAPTER I. IN GENERAL

Sec. 13.1. Reserved.

Editor's note—Ord. No. 10743, § 1(1), adopted August 18, 1998, proposed an amendment to the charter, subsequently approved at a referendum of the electorate November 3, 1998. Said ordinance repealed Priv. Acts 1901, Ch. 432, § 57, as amended by Priv. Acts 1911, Ch. 10, § 13, relating to the powers of the chief of police generally.

Sec. 13.2. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1901, Ch. 432, § 58, relating to the powers of policemen generally.

Sec. 13.2.1. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1969, Ch. 155, § 2, relating to a table of organization for the fire department.

Sec. 13.3. Special policemen.

The chief of police, with the approval of the city council, may, in case of need, appoint special policemen to do special duty at any place within the city, and on such terms as the city council may deem proper. (Priv. Acts 1901, Ch. 432, § 59; Priv. Acts 1911, Ch. 10, §§ 13, 17, 20; Ord. No. 10743, § 1(2), 8-18-98)

Sec. 13.4. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1901, Ch. 432, § 56, as amended by Priv. Acts 1911, Ch. 10, § 13, relating to qualifications for firemen and policemen.

Sec. 13.5. Reserved.

Editor's note—Former Sec. 13.5 relating to maximum age of new employees was repealed by Ord. No. 9767, § 1, 8-11-92.

Sec. 13.6. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1967, Ch. 299, § 3, relating to requiring persons employed by the City as firemen or policemen to furnish a birth certificate.

Sec. 13.7. Political activities.

No officer or any member of the fire or police department shall be called on for any contribution or assessment by any political organization or member or committee thereof. No officer or member of either of said departments shall be allowed to solicit any contribution, or to sell any ticket, or to procure money by any device from the public without consent of the city council. Any person violating any of the provisions of this section shall, upon conviction in the city court, be fined not exceeding fifty dollars ($50.00). (Priv. Acts 1901, Ch. 432, § 60; Priv. Acts 1901, Ch. 495, § 3; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 11272, § 1, 5-2-02)

Sec. 13.8. Gratuities prohibited.

No policeman, fireman or other officer in either of said departments shall, without the consent of the city council, receive any money or gratuity or compensation in addition to his salary, for any service he may render as an officer.
(Priv. Acts 1901, Ch. 432, § 61; Priv. Acts 1911, Ch. 10, § 13; Ord. No. 10743, § 1(2), 8-18-98)

Sec. 13.9. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, proposed an amendment to the charter, subsequently approved at a referendum of the electorate November 3, 1998. Said ordinance repealed Priv. Acts 1923, Ch. 580, § 1, relating to requiring two platoon systems for the fire department and setting maximum hours of service per day.

Sec. 13.10. Reserved.

Editor's note—Former § 13.10 relating to vacation for fire department members deleted.
(Ord. No. 12677, § 26, 12-18-12)

Sec. 13.11. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1967, Ch. 52, § 2, relating to the work week and vacations for policemen and detectives.

Sec. 13.12. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1949, Ch. 127, § 2, relating to giving members of the police and fire departments one day per week off with pay.

Sec. 13.13. City to pay for repairs of uniforms damaged in discharge of duty.

The Charter of the City of Chattanooga and all acts amendatory thereof be and the same are hereby amended to require the city to pay the expenses of repairing or replacing the uniform of any policeman or fireman damaged while engaged in the performance of his duty.
(Priv. Acts 1941, Ch. 472, § 1)

Sec. 13.14. Uniform and equipment allowance.

The City of Chattanooga shall provide in each fiscal budget hereafter a uniform and equipment allowance for every city fireman and policeman, and that same be paid annually thereafter to each and every city fireman and policeman beginning July 1, 1963.
(Priv. Acts 1963, Ch. 30, § 2; Ord. No. 10743, § 1(4), 8-18-98)

Sec. 13.15. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1901, Ch. 432, § 56, as amended by Priv. Acts 1911, Ch. 10, § 13, relating to a manual of instructions.

Sec. 13.16. Political activities of members of the fire and police departments.

No officer or any member of the fire or police department(s) shall be called on for any contribution or assessment by any political organization or member or committee thereof. No officer or member of either of said departments shall be allowed to solicit any contribution, or to sell any ticket, or procure money by

any device from the public while on duty or while in uniform. Any person violating any of the provisions of this Section shall, upon conviction in the City Court, be fined not exceed fifty dollars ($50.00) and shall be subject to disciplinary action.
(Ord. No. 10743, § 1(3), 8-18-98; Ord. No. 12677, § 27, 12-18-12)

Sec. 13.17. Title and authority for the police advisory and review committee.

(a) There is hereby created the Police Advisory and Review Committee for the City of Chattanooga.

(b) The Police Advisory and Review Committee is established pursuant to Council's authority under Sections 13.44 and 13.49 of the Charter of the City of Chattanooga to provide for the safe tenure of officers on their jobs so long as they properly and efficiently fulfill the duties of their positions and pursuant to the Council's authority under Section 16-43 of the Chattanooga City Code to ratify and adopt rules and regulations for the government and discipline of the police department. This Committee shall further have all powers of a Community Oversight Board consistent with Tennessee state law.

(c) The purpose of the Police Advisory and Review Committee is to strengthen the relationship between the citizens of the City of Chattanooga and the Chattanooga Police Department, to assure timely, fair and objective review of citizen complaints while protecting the individual rights of police officers, and to make recommendations concerning citizen complaints to the Chief of Police, the Mayor and to the City Council.

(d) The Committee shall have no authority to direct the Police Chief to alter or to impose any disciplinary action against any employee of the Chattanooga Police Department. In all cases, the Police Chief will be the final authority on case dispositions and discipline of police officers.
(Ord. No. 13555, § 1, 5-19-20)

Secs. 13.18—13.25. Reserved.

CHAPTER II. SALARIES

Secs. 13.26—13.30. Reserved.

Editor's note—Ord. No. 10743, § 1(1), 8-18-98, repealed Priv. Acts 1951, Ch. 139, relating to minimum salaries for certain members of the fire and police departments.

Secs. 13.31—13.43. Reserved.

Editor's note—Section 1, Ch. 155, Private Acts 1969 repealed: Priv. Acts 1951, Ch. 9; Priv. Acts 1963, Ch. 150; Priv. Acts of 1967, Ch. 51, formerly codified as §§ 13.31 through 13.33, pertaining to the salary and additional pay for police and fire personnel.

CHAPTER III. TENURE

Sec. 13.44. Grant of tenure; arbitrary, etc., dismissal, etc., prohibited; effective date.

All firemen and policemen of the City of Chattanooga shall have safe tenure on their jobs so long as they properly and efficiently fulfill the duties of their respective positions. They shall not be discharged, or suspended for political or religious reasons or for any other unjust or arbitrary cause. This Act [chapter]

shall apply to all firemen and policemen of the City of Chattanooga serving as of the effective date of this Act [chapter]; provided, however, that this Act [chapter] shall apply only to those firemen and policemen who have been employed for more than one year.
(Priv. Acts 1953, Ch. 141, § 2; Ord. No. 10744, § 1(1), 8-18-98)

Sec. 13.45. Maximum period of suspension.

No suspension of any such employee [fireman or policeman] shall be of a longer period than thirty (30) days.
(Priv. Acts 1953, Ch. 141, § 2; Ord. No. 10744, § 1(1), 8-18-98)

Sec. 13.46. Political activity.

Each fireman and policeman shall be free to vote for and support any political candidate he or she chooses, without interference, coercion, pressure or dictation by any superior of such employee. No fireman or policeman shall engage in political activities while on duty or while wearing his uniform. As private citizens, and while not on official duty and not in uniform, firemen and policemen shall have a right to work for and support any political candidate whom they choose so long as they do not use their official positions in connection therewith.
(Priv. Acts 1953, Ch. 141, § 2; Ord. No. 10744, § 1(1), 8-18-98)

Sec. 13.47. Dismissal, suspension, etc.—To be in accord with chapter.

No fireman or policeman shall be dismissed, or suspended, except as provided herein.
(Priv. Acts 1953, Ch. 141, § 2; Ord. No. 10744, § 1(1), 8-18-98)

Sec. 13.48. Same—Written charges to be filed.

Any fireman or policeman who shall be discharged, suspended, or laid off, shall be furnished with written charges within twenty-four (24) hours from such discharge, suspension, or layoff action, specifically stating the offense or offenses with which he is charged, which shall be signed by the department head.
(Priv. Acts 1953, Ch. 141, § 2; Ord. No. 9437, § 1(3), 8-21-90; Ord. No. 10744, § 1(1), 8-18-98)

Sec. 13.49. Same—Hearing.

Any fireman or policeman who is discharged, suspended, or laid off and who claims that such discharge, suspension, or lay off, was made for political or religious reasons, or otherwise in violation of the provisions of this Act [chapter], may request, and shall have the right to have a hearing as established by the administrative procedures authorized by the City Council, and such employee, or employees will have the right to have witnesses subpoenaed for such hearing without discrimination, or coercion being used against them for serving as witnesses in such hearing. A copy of said request shall be furnished to the department head. Said administrative procedures shall require that a time and place for the hearing be set within fifteen (15) days after said appeal. Upon such hearing both the employee and his superior authority whose action is reviewed shall have the right to appear at the hearing and plead his cause in person or by counsel; and the right to present proof. The administrative hearing body or judge shall have the right and duty to administer oaths, subpoena witnesses, compel the production of books and papers pertinent to any hearing, and shall have the right to file proceedings in the circuit court of Hamilton County for appropriate action for contempt against any person failing or refusing to answer or obey a summons, and to give and produce testimony before said hearing body. Any person who shall fail to appear in response to a subpoena

or to answer any questions or produce any books or papers pertinent to any such proceeding or proceedings, or hearing or who shall knowingly give false testimony in connection therein shall be guilty of a misdemeanor.

The hearing may be private or public, in the discretion of the hearing body or judge. If the hearing body or judge finds that the employee was discharged, suspended, or laid off for a political or a religious motive, or in violation of the provisions of this Act, the appealing employee shall be reinstated without loss of faith. The hearing body or judge shall have the duty and power to affirm, reverse, set aside or modify the order of discharge, suspension or layoff, as theretofore made by the superior officer of such employee. Any and all employees discharged, or suspended in the event that such employee or employees are proven innocent of said charges by the hearing body or judge or any other of the courts will be reinstated at his position he held when charges were made, with full retroactive pay for the time lost. A copy of the order of the hearing body or judge shall be furnished to the proper city official. In the event said order directs the reinstatement of said employee, or retroactive pay, it shall be the ministerial duty of the cognizant officials of the City of Chattanooga to comply with the terms thereof. As used herein, the term "hearing body or judge" shall mean the person or persons duly established by the City Council to conduct appeal hearings of employees.
(Priv. Acts 1953, Ch. 141, § 2; Ord. No. 9437, § 1(3)(4), 8-21-90; Ord. No. 10744, § 1(1), 8-18-98; Ord. No. 12424, § 2, 8-17-10)

Sec. 13.50. Reinstated employees.

Nothing in this Act will prohibit any discharged employee from being reinstated to his former position and rank at the same salary he was receiving when discharged.
(Priv. Acts 1953, Ch. 141, § 2)

Sec. 13.51. Rights of appeal under general state law.

No employee will be discharged or suspended without full rights of appealing the case in accordance with section 9008 of the Tennessee Code [T.C.A. §§ 27-9-101—27-9-103].
(Priv. Acts 1953, Ch. 141, § 3)

Sec. 13.52. Applicability of chapter.

All provisions of the Charter of the City of Chattanooga in conflict herewith be, and the same hereby are repealed. This Act shall not be construed to amend, repeal, supersede or modify chapter 301, Private Acts of 1913, except to the extent of irreconcilable conflict therewith.
(Priv. Acts 1953, Ch. 141, § 4)

Secs. 13.53—13.62. Reserved.

CHAPTER IV. FIRE AND POLICE PENSION

Sec. 13.63. Fire and Police Pension Fund.

The Fire and Police Pension Fund formerly called "Firemen's and policemen's insurance and pension fund" as established by the Private Acts of 1949 Chapter 165, as amended by private acts and Home Rule referenda, shall be transferred from the Charter compilation to the City Code compilation, but the vested

rights of any participant or beneficiary shall not thereby be affected. No current provision of the Fire and Police Pension Fund may be amended hereafter except pursuant to the provisions of section 13.64 below. (Priv. Acts 1949, Ch. 165; Priv. Acts 1953, Ch. 90; Priv. Acts 1961, Ch. 222; Priv. Acts 1969, Ch. 165; Priv. Acts 1971, Ch. 149; Priv. Acts 1972, Ch. 406; Ord. No. 8688, 8-19-86; Ord. No. 9778, 8-19-92; Ord. No. 9839, 2-9-93; Ord. No. 10463, 8-20-96; Ord. No. 11012, 5-9-00; Ord. No. 11272, 4-30-02; Ord. No. 12677, § 28, 12-18-12)

Sec. 13.64. Amendments by ordinance.

The City Council, City of Chattanooga, in its discretion, only after a recommendation of the Board of Directors of the Fire and Police Pension Fund, upon advice by the Mayor, may, by ordinance, passed on two separate readings, amend any section of the Private Acts of 1949, as amended; provided that such amendment is not inconsistent with sound actuarial principles, methods, and actuarial assumptions and further provided that such amendment shall not in any way decrease any vested financial benefits accrued by any participant or beneficiary of the Fire and Police Pension Fund.
(Ord. No. 11012, 5-9-00; Ord. No. 12677, § 28, 12-18-12)

Secs. 13.65—13.86. Reserved.

Editor's note—Former §§ 13.65 to 13.86 transferred to City Code, Chapter 2, Division 18, Fire and Police Pension Fund, §§ 2-400 to 2-422 pursuant to Ord. No. 12677, § 28, 12-18-12.

Title 14

PUBLIC UTILITIES*

Sec. 14.1. Definitions.
Sec. 14.2. Authority for city to acquire water and gas systems; sell water and gas; issue bonds, etc.
Sec. 14.3. Bonds—Election required prior to issuance.
Sec. 14.4. Same—May be authorized by resolutions; interest; how payable; execution; signatures; negotiable; tax exempt.
Sec. 14.5. Same—Debt limitations not applicable.
Sec. 14.6. Same—Valid when signed by offices holding office at time of signature; statement in resolution as to validity and regularity of issuance.
Sec. 14.7. Same—To have lien on revenue of systems.
Sec. 14.8. Same—City authorized to do certain acts to secure bonds.
Sec. 14.9. Same—Rights of bondholders.
Sec. 14.10. Same—Bondholders may not compel city to use taxing power to pay bonds.
Sec. 14.11. Same—Proceeds to be used to acquire, expand, etc., systems.
Sec. 14.12. Bond proceeds, income from systems, etc., to be kept in separate account.
Sec. 14.13. Action by board to be by resolution.
Sec. 14.14. Act supplementary to prior Acts.

***Cross references—**Municipal electrical system, Title 10; authority to grant right-of-way for public utilities, § 2.1(39); removal, relocation and installation of utilities in connection with public improvements, § 15.44 et seq.; gas, water, sewer and other connections by the city, § 15.61 et seq.

Sec. 14.1. Definitions.

The following terms whenever used or referred to in this Act [Title] shall have the following meaning, unless a different meaning appears from the context:

(a) The term "city" shall mean the City of Chattanooga, Tennessee.

(b) The term "board" shall mean the city council of the City of Chattanooga, Tennessee.

(c) The term "federal agency" shall include the United States of America, the President of the United States of America, the Reconstruction Finance Corporation or any other agency, instrumentality or corporation of the United States of America which has heretofore been or may hereafter be designated, created or authorized by or pursuant to any Act or Acts of Congress of the United States of America to mane [make] loans or grants to municipalities.

(d) The term "water system" includes all or any part of the following: Source of supply, pumping facilities, purification works, storage facilities, distribution facilities and mains, together with all necessary parts and appurtenances for the proper operation of a water distribution system.

(e) The term "gas system" shall be construed to include all or any part of the following: Gas plant for the manufacture of gas, mains, pumping facilities, and complete system for the distribution of either natural, artificial or by-product gas, together with all parts and appurtenances necessary for the proper operation of a gas distribution system.

(Priv. Acts 1949, Ch. 201, § 2; Ord. No. 11276, 5-2-02)

Sec. 14.2. Authority for city to acquire water and gas systems; sell water and gas; issue bonds, etc.

The city, acting by and through its board, shall have power and is hereby authorized to:

(a) Acquire an existing water system or gas system, and to extend, enlarge, improve, equip, operate and maintain, within or partially within and partially without the corporate limits of the city a water system or a gas system, as the case may be, for the purpose of providing water and gas to the city and persons, firms and corporations which are situated or whose residence or places of business are within the city or without the corporate limits of the city but within Hamilton County, Tennessee, and within a radius of twenty (20) miles for the corporate limits of the city.

(b) Contract with persons, firms and corporations for the sale and distribution of water and gas to be used for domestic, commercial and industrial purposes.

(c) Accept from any federal agency grants for or in aid of the acquisition, extension, enlargement and improvement of a water system or a gas system.

(d) Contract debts for the acquisition of an existing water system or gas system, or extension, enlargement or improvement thereof, to borrow money, and to issue its bonds for such acquisition, extension, enlargement or improvement, and to provide for the rights of the holders of the bonds, and to secure the bonds as hereinafter provided.

(e) Fix, levy and collect fees, rents or other charges for water services or gas services furnished by the city.

(f) Acquire, by purchase or the exercise of eminent domain, an existing water system or gas system and property or easements or other right or interest in property necessary for the extension, enlargement or improvement of a water system or gas system whether such property be within or without the city or partially within and partially without the city.

(g) Make contracts and execute instruments containing such terms, provisions and conditions as in the discretion of the board may be necessary, proper or advisable for the purpose of obtaining a grant, loan or other financial assistance from any federal agency by virtue of any Act of Congress; to make

all contracts and execute all other instruments necessary, proper and advisable in or for the furtherance of the acquisition of an existing water system or gas system, and for the extension, enlargement and improvement of same.

(h) Require the owner, tenant or occupant of each lot or parcel of land who is obligated to pay the charges made for water or gas services furnished to make a reasonable deposit in advance to insure the payment of such charges, and to discontinue service upon failure or refusal to do so.

(i) Employ engineers, superintendents and other employees for the operation and maintenance of a water system or gas system.

(j) Perform any and all acts authorized under this Act [Title] through or by its own officers, agents and employees or by contracts with private corporations, firms or individuals.

(k) Do all acts and things necessary or convenient to carry out the powers expressly given in this Act [Title].

(Priv. Acts 1949, Ch. 201, § 3)

Sec. 14.3. Bonds—Election required prior to issuance.

The bonds herein authorized shall not be issued nor sold unless there first shall have been held an election to ascertain the will of the voters of the city respecting the issuance of said bonds and a majority of the legal votes cast at such election shall be in favor of the issuance of the bonds proposed to be issued. The board may at any time after the passage of this Act [Title] adopt a resolution fixing the amount of bonds to be issued, the purposes for which they are issued and the date for such election, and on such date the election commissioners of Hamilton County shall hold an election at the regular voting precincts in the city, and shall name and designate the officials of said election, and shall call said election in the way and manner general municipal elections are called. All persons qualified to vote for mayor and city council of the city who are otherwise qualified may vote at said election. The election commissioners shall prepare ballots for each ward and precinct on which shall be printed the words:

"For the issuance of $_____ of _____ Revenue Bonds."

"Against the issuance of $_____ of _____ Revenue Bonds."

And voters shall indicate their desire by putting a cross (X) mark opposite their choice. The result of such election shall be certified by the officers thereof to the election commissioners of Hamilton County within five (5) days after such election is held, and the county election commissioners shall then canvass and declare and certify the result of such election to the board. The board may submit the question of the issuance of bonds for a water system and a gas system to the voters at the same election or the question may be submitted at a different time or times, it being the intent of this Act [Title] to authorize the city, acting through its board, to acquire an existing water system and issue its revenue bonds therefor or to acquire an existing gas system and issue its revenue bonds therefor, and it may acquire one system without acquiring the other. In the event at an election held a majority of the legal votes cast are against the issuance of revenue bonds for either of the systems the board may, after the expiration of one year, by resolution, call and have another election held for the purpose of submitting the question again to the voters of the city.
(Priv. Acts 1949, Ch. 201, § 5)

Sec. 14.4. Same—May be authorized by resolutions; interest; how payable; execution; signatures; negotiable; tax exempt.

The revenue bonds provided for under the provisions of this Act [Title] may be authorized by resolution or resolutions of the board, which resolution or resolutions may be adopted at the same meeting at which they are introduced, and may be adopted by a majority vote of the members of said board, and shall take effect immediately upon adoption. Such bonds shall bear interest at such rate or rates, not to exceed five per

cent (5%) per annum, payable semiannually, may be issued all at one time or from time to time, may be payable at such place or places, may carry such registration privileges, may be executed in such manner, may contain such terms, covenants and conditions, and may be in such form, either coupon or registered, as such resolution or subsequent resolutions may provide. Said bonds shall bear such date or dates, may mature at such time or times, not less than thirty (30) years from their respective dates, as the board may direct. Such bonds shall not be sold for less than par and accrued interest, and shall be signed by the mayor and countersigned by the city finance officer, and, if coupon bonds are issued, such coupons may bear the printed or lithographed facsimile signature of the mayor and finance officer. Unless the bonds are sold to a federal agency the bonds authorized to be issued by the provisions of this Act [title] shall be sold at public sale in accordance with the provisions of section 3707, Code of Tennessee of 1932 [T.C.A. § 6-57-209]. Bonds may be sold at private sale without any public advertisement to any federal agency. The bonds shall be fully negotiable for all purposes and said bonds and the income therefrom shall be exempt from all state, county and municipal taxation, except inheritance, transfer and estate taxes.
(Priv. Acts 1949, Ch. 201, § 6; Ord. No. 10742, § 1(1), 8-18-98)

Sec. 14.5. Same—Debt limitations not applicable.

Revenue bonds may be issued under the provisions of this Act [Title] notwithstanding, and without regard to any limit on indebtedness of the city provided by the provisions of the charter or other law.
(Priv. Acts 1949, Ch. 201, § 7)

Sec. 14.6. Same—Valid when signed by offices holding office at time of signature; statement in resolution as to validity and regularity of issuance.

Bonds bearing the signature of officers in office on the date of the signing thereof shall be valid and binding obligations notwithstanding that before delivery thereof and payment therefor any and all of the persons whose signatures appear thereon shall have ceased to be officers of the city. The validity of said bonds shall not be dependent on nor affected by the validity or regularity of any proceeding relating to the acquisition of a water system or gas system, or the extension, enlargement and improvement of a water system or gas system for which the bonds are issued. The resolution authorizing said bonds may provide that the bonds shall contain a recital that they are issued pursuant to this Act [Title] which recital shall be conclusive evidence of their validity and of the regularity of their issuance.
(Priv. Acts 1949, Ch. 201, § 8)

Sec. 14.7. Same—To have lien on revenue of systems.

All bonds of the same issue shall, subject to the prior and superior rights of outstanding bonds, claims or obligations, have a prior and paramount lien on the revenue of the water system or gas system, as the case may be, over and ahead of all bonds of any issue payable from said revenue of the water system or gas system, as the case may be, which may be subsequently issued, and over and ahead of any claims or obligations of any nature against said revenue subsequently arising or subsequently incurred. All bonds of the same issue for either a water system or gas system shall be equally and ratably secured without priority by reason of number, date of bonds, of sale, of execution, or of delivery by a lien on such revenue in accordance with the provisions of this Act [Title] and the resolution or resolutions authorizing said bonds.
(Priv. Acts 1949, Ch. 201, § 9)

Sec. 14.8. Same—City authorized to do certain acts to secure bonds.

In order to secure the payment of the bonds issued pursuant to this Act [Title] and interest thereon the city shall have power as to such bonds to:

(a) After the payment of operating expenses from the gross revenue of either a water system or gas system, as the case may be, pledge all or any part of the remaining revenue derived from the

operation of the water system or gas system to secure the payment of the bonds and interest thereon, and to covenant against thereafter pledging any such rents, fees or other charges to any other bonds or any other obligations of the city for any other purpose.

(b) Provide for the term, form, registration, exchange and execution of such bonds.

(c) Provide for the replacement of lost, destroyed or mutilated bonds.

(d) Covenant as to the use and disposition of the proceeds from the sale of such bonds, the use and disposition of the revenue of the water system or gas system.

(e) Covenant as to the fees, rents or charges in connection with the operation of the water system or gas system, as the case may be, for which such bonds are to be issued.

(f) The operation and maintenance of such water system or gas system, as the case may be.

(g) The insurance to be carried on the water system or gas system, as the case may be, and the use and distribution of insurance monies.

(h) Covenant to set aside or pay other reserves and sinking funds for such bonds and as to the disposition thereof, and provide for a working fund.

(i) Redeem such bonds and to covenant for their redemption and to provide the terms and conditions thereof.

(j) Covenant as to its books of account and as to the inspection and audit thereof and as to the accounting methods.

(k) Covenant and prescribe as to what happenings or occurrences shall constitute "events of default" and the terms and conditions upon which any or all of such bonds shall become or may be declared due before maturity, and as to the terms and conditions upon which such declaration and its consequences may be waived.

(l) Covenant as to the rights, liabilities, powers and duties arising upon the breach by it of any covenant, condition or obligation.

(m) Vest in any trustee or trustees the right to receive all or any part of the income pledged and assigned to or for the benefit of the holder or holders of bonds issued hereunder for either a water system or gas system, and to hold, apply and dispose of the same, and the right to enforce any covenant made to secure or pay in relation to bonds, to execute and deliver a trust agreement or trust agreements which may set forth the powers and duties and remedies available to such trustee or trustees, and limiting the liabilities thereof, and prescribing what occurrences shall constitute default, and prescribing the terms and conditions upon which such trustee or trustees or the holder or holders of bonds of any specified amount or percentage of such bonds may exercise such rights, and enforce any or all of such covenants and resort to such remedies as may be appropriate.

(n) Execute all instruments necessary or convenient in the exercise of the powers herein granted or in the performance of its covenants or duties.

(Priv. Acts 1949, Ch. 201, § 11)

Sec. 14.9. Same—Rights of bondholders.

Any holder or holders of the bonds, including a trustee or trustees for holders of such bonds, shall have the right, in addition to all others, to:

(a) By mandamus, or other suit, action or proceeding, in a court of competent jurisdiction, to enforce his or their rights against the city or board and any officer, agent or employee of the city, including, but not limited to, the right to require the city and the board to fix and collect rents, fees or other charges for the furnishing of either water or gas adequate to carry out any agreement as to such fees,

rents or other charges, and to require the city and board and any officer, agent and employee of the city to carry out any other covenant and agreement and to perform its and their duties under this Act [Title].

(b) By action or suit in equity, to enjoin any acts or things which may be unlawful or a violation of the rights of such holder or holders of bonds.

(c) By suit, action or proceeding in the chancery court of Hamilton County, Tennessee, to require the board to account as if it were the trustee of any express trust.

(Priv. Acts 1949, Ch. 201, § 12)

Sec. 14.10. Same—Bondholders may not compel city to use taxing power to pay bonds.

No holder or holders of any bonds issued under this Act [Title] shall ever have the right to compel any exercise of taxing power of the city to pay said bonds or the interest thereon. Each bond issued under this Act [Title] shall recite, in substance, that said bond, including interest thereon, is payable from the revenue of the water system or gas system, as the case may be, pledged to the payment thereof, and that said bond does not constitute a debt of the municipality within the meaning of any statutory limitation.
(Priv. Acts 1949, Ch. 201, § 10)

Sec. 14.11. Same—Proceeds to be used to acquire, expand, etc., systems.

The proceeds derived from the sale of said bonds shall be used for the purpose of paying all the cost of the city in acquiring a water system or a gas system, as the case may be, the cost of constructing extensions, enlarging and improving a water system or gas system, the cost of appraisals, engineering, legal, and other expenses incurred in the acquisition of either a water system or a gas system prior to the issuance of bonds, the cost of acquiring any additional land, easements or other property necessary for the extension, enlargement or improvement of a water system or gas system acquired, the expense of issuing and selling bonds, and the interest on the outstanding bonds during the construction of any extension, enlargement or improvement of either a water system or gas system.
(Priv. Acts 1949, Ch. 201, § 13)

Sec. 14.12. Bond proceeds, income from systems, etc., to be kept in separate account.

All proceeds received from the sale of bonds issued under this Act [Title], and all fees, rents or other charges received by the city from the operation of a water system or a gas system, and all monies received from any federal agency shall be paid to the city treasurer, who shall not commingle any money so received with any other monies of the city, but the monies received shall be deposited in a separate bank account, or bank accounts, in the name of the city.

The funds derived for and from the water system or gas system shall be kept separate.
(Priv. Acts 1949, Ch. 201, § 4)

Sec. 14.13. Action by board to be by resolution.

Any and all action required or authorized to be taken under this Act [Title] by the board may be by resolution, which resolution may be adopted at the meeting of the board at which such resolution is introduced, and shall take effect immediately upon adoption.
(Priv. Acts 1949, Ch. 201, § 14)

Sec. 14.14. Act supplementary to prior Acts.

Power to issue bonds and acquiring a water system or gas system under the provisions of this Act [Title] is hereby declared to be supplementary to and not in derogation of the right and power to issue bonds for and the acquisition of a water system or gas system, as the case may be, or the extension, enlargement or improvement of same under any existing law or laws.
(Priv. Acts 1949, Ch. 201, § 15)

Title 15

PUBLIC WORKS, STREETS, SEWERS AND AIRPORTS*

Chapter I. In General

Sec. 15.1. Authority of city relative to public works, streets, generally.
Sec. 15.2. Authority to establish, operate airports.
Sec. 15.3. Adjustment of assessments for public improvements.
Sec. 15.4. New assessments when original assessment declared invalid.
Sec. 15.5. Reserved.
Sec. 15.6. Negotiations with lowest responsible bidder for work to be done on cost-plus, etc., basis.
Sec. 15.7. City authorized to condemn property of railroads and other corporations for street, etc., widening purposes.
Sec. 15.8. Authority of water company to contract for collection of sewer charges.
Secs. 15.9—15.18. Reserved.

Chapter II. Sewerage System

Sec. 15.19. Definitions.
Sec. 15.20. Powers of city generally.
Sec. 15.21. Proceeds from bonds, rents, fees, etc., to be deposited in separate account in city's name.
Secs. 15.22—15.33. Repealed.
Secs. 15.34—15.43. Reserved.

Chapter III. Removal, Relocation and Installation of Utilities in Connection With Public Improvements

Sec. 15.44. Removal of poles, cables, etc., prior to widening, etc., of streets—City may require companies to do work.
Sec. 15.45. Same—City may do work when company fails to do so.
Sec. 15.46. Same—Assessment and penalty to constitute lien on property.
Sec. 15.47. Installation of utilities by abutting property owners—City may require work to be done.
Sec. 15.48. Same—City may do work when owner fails to do so.
Sec. 15.49. Same—Assessment and penalty to constitute lien on property.
Sec. 15.50. Certification and collection of assessments.
Secs. 15.51—15.60. Reserved.

Chapter IV. Gas, Water, Sewer and Other Connections By City

Sec. 15.61. City authorized to make connections at expense of abutting property owners.
Secs. 15.62—15.65. Repealed.
Secs. 15.66—15.75. Reserved.

Chapter V. Abutting Property Law of 1907 Relative to Streets and Sidewalks

Secs. 15.76—15.85. Reserved.

***Cross references—**General authority over streets and sidewalks, § 2.1(7); general authority over bridges, culverts, sewers and gutters, § 2.1(8); general authority to provide for lighting of streets, § 2.1(9).

Chapter VI. Sidewalk Improvement Act Of 1915

Secs. 15.86—15.95. Reserved.

Chapter VII. Metropolitan Improvement Act of 1927

Secs. 15.96—15.105. Reserved.

Chapter VIII. Improvement Act of 1931

Secs. 15.106—15.115. Reserved.

CHAPTER I. IN GENERAL

Sec. 15.1. Authority of city relative to public works, streets, generally.

Said City of Chattanooga shall have full control, authority and power over all streets, alleys, sidewalks and sewers, and the building, altering, repairing, cleaning and improving the same, including the power to fix and change the grades of all streets, alleys, sidewalks and sewers, to determine their with width, size, location and grade, and to order and enforce by law the grading, laying down, repairing and cleaning of sidewalks by the owners of abutting property, and to procure for the benefit of said city, by condemnation in the name of the city council, as now provided by law for such condemnation proceedings by purchase or otherwise, as now provided by law, any and all necessary property for widening or extending streets, and for enlarging and extending sewers when necessary to do so.

Said council shall also have the absolute control of the expenditure of all moneys and funds arising from taxation or any other source, for street and sewer purposes; and the mayor shall also have control and management over all gangs, forces or individuals condemned to, or in any way placed on street or sewer work by conviction and judgment of any court or order or judgment of any court or order or judgment of any other lawful authority; and over all scavenger and street cleaning forces.
(Pub. Acts 2nd Sess. 1890, Ch. 1, § 8; Priv. Acts 1911, Ch. 10, §§ 13, 17, 20; Ord. No. 11272, 5-2-02)

Sec. 15.2. Authority to establish, operate airports.

The City of Chattanooga, Tennessee, is hereby empowered in its corporate capacity to establish, construct, equip, maintain and operate an airport for the use of aeroplanes and other aircraft, and may through its city council lease or acquire real property for such use either within or without the corporate limits of said city.

The city council of the said city are hereby authorized to acquire in the name of the said city all necessary property for airports or landing fields, and parks or parkways, either within or without the corporate limits of said city, by purchase or by condemnation proceedings as now provided by law for the condemnation of property for school sites and street purposes by municipalities.
(Priv. Acts 1929, Ch. 2, §§ 2, 3; Ord. No. 11272, 5-2-02)

Sec. 15.3. Adjustment of assessments for public improvements.

The city council of the City of Chattanooga is hereby authorized and empowered to adjust assessments heretofore or hereafter made for public improvements where, in the opinion of said council, on account of changed conditions the assessments are materially in excess of the benefits which have accrued to the property so assessed. Provided, however, that the person applying for an adjustment shall agree to pay promptly the installment assessments after such adjustment shall have been made.
(Priv. Acts 1935, Ch. 647, § 8; Ord. No. 11272, 5-2-02)

Sec. 15.4. New assessments when original assessment declared invalid.

If any assessment heretofore or hereafter made by said city of property, or any special assessment made pursuant to any improvement act shall be declared invalid by a court of competent jurisdiction the city council are hereby empowered to make a new assessment on property for the year, or years, so declared to be invalid and shall adopt the assessment made by the tax assessor of Hamilton County, Tennessee, as the assessment of said property by said city. The reassessment of improvement assessments shall be made as provided in the Improvement Act authorizing the original assessment.
(Priv. Acts 1935, Ch. 647, § 9; Ord. No. 11272, 5-2-02)

Sec. 15.5. Reserved.
(Ord. No. 11013, § 1, 5-9-00)

Sec. 15.6. Negotiations with lowest responsible bidder for work to be done on cost-plus, etc., basis.

After bids have been advertised and received for making any public improvement the mayor may negotiate with the lowest responsible bidder to have such bidder make such public improvement by force account or on a cost-plus basis, if, in the opinion of the mayor, the making of such agreement is advantageous to the city, and such agreement shall be in writing and approved by the city council.
(Priv. Acts 1949, Ch. 607, § 3; Ord. No. 11272, 5-2-02)

Sec. 15.7. City authorized to condemn property of railroads and other corporations for street, etc., widening purposes.

The city council of the City of Chattanooga are hereby specifically authorized and empowered to condemn and take the property, buildings, privileges, rights and easements, etc., of railway companies, or other corporations, their lessees, trustees and receivers, and any other person, firm or corporation that may be in possession of, using or controlling all or any part of the rights-of-way and properties of such railway companies or other corporations, and to condemn and acquire other property for the purpose of relocating tracks, buildings and other structures of such railway companies or other corporations, all in the manner and mode and upon the terms provided in sections 3397 to 3401 of the Code of Tennessee for the year 1932 [T.C.A. §§ 7-31-108—7-31-111], when it is necessary that the property of such railway companies or other corporations be acquired in order to widen any street, alley or sidewalk within the corporate limits of the City of Chattanooga.
(Priv. Acts 1947, Ch. 548, § 2; Ord. No. 11272, 5-2-02)

Sec. 15.8. Authority of water company to contract for collection of sewer charges.

Chapter No. 91, Public Acts of Tennessee of 1867 and 1868, entitled as set out in the caption hereof, be, and the same is hereby amended so as to authorize the City Water Company of Chattanooga (successor to the Chattanooga Water Company) and its successors and assigns, to enter into contracts with the City of Chattanooga, or other public agency owning and operating a sewerage system, to bill and collect sewer service charges as an added designated item on its water service bills, or otherwise, and to contract with the City of Chattanooga, or other public agency, not to accept payment of water service charges without the simultaneous payment of sewer service charges, and to discontinue water service to sewer users who fail and refuse to pay sewer service charges, and not to re-establish water service until such time as sewer service charges due have been paid.
(Priv. Acts 1951, Ch. 249, § 1)

Editor's note—Public Acts 1867-68, Ch. 91, which is not set out in this compilation, is the act chartering the Chattanooga Water Company.

Cross reference—Authority of city to enter into contracts with water company for collection of sewer charges, § 15.20(m).

Secs. 15.9—15.18. Reserved.

CHAPTER II. SEWERAGE SYSTEM

Sec. 15.19. Definitions.

The following terms, wherever used or referred to in this Act [chapter], shall have the following meaning, unless a different meaning appears from the context:

(a) The term "city" shall mean the City of Chattanooga, Tennessee.

(b) The term "board" shall mean the city council of the City of Chattanooga, Tennessee.

(c) The term "federal agency" shall include the United States of America, the President of the United States of America, the Reconstruction finance Corporation, or any other agency, instrumentality or corporation of the United States of America which has heretofore been or may hereafter be designated, created or authorized by or pursuant to any Act of Congress of the United States of America to make allowances or grants to municipalities.

(d) The term "sewerage system" shall be construed to include all or any part of the following: The collecting system, intercepting and out-fall sewers, pumping facilities, and treatment, purification and disposal plants, the disposition of sewage and industrial waste.

(Priv. Acts 1949, Ch. 602, § 2; Ord. No. 11272, 5-2-02)

Sec. 15.20. Powers of city generally.

The city, acting by and through its board, shall have power, and is hereby authorized to:

(a) Construct a sewerage system within or partially within and partially without the corporate limits of the city.

(b) Operate and maintain a sewerage system for its own purposes or for the benefit and use of its inhabitants, and also to operate and maintain such sewerage system for the benefit and use of persons, firms and corporations within the corporate limits of the city, and persons, firms and corporations, including municipal corporations, which are situated or whose residence or places of business are situated outside the corporate limits of the city but within Hamilton County, Tennessee, and within a radius of twenty (20) miles from the corporate limits of the city.

(c) Contract with the City of Rossville, Georgia, to jointly construct and operate a sewerage system, and to agree with said city for the apportionment of the construction and operating cost between the two (2) municipalities.

(d) Contract with Hamilton County, Tennessee, or any county adjacent to the city located in another state, for the furnishing of sewerage service to the county or to the inhabitants thereof where by furnishing such service the public health of the city will be protected and stream pollution eliminated.

(e) Accept from any federal agency or from the State of Tennessee or any agency of said state grants for or in aid of the construction of a sewerage system.

(f) Contract debts for the construction of a sewerage system; to borrow money and to issue its bonds to finance such construction, and to provide for the rights of the holders of the bonds, and to secure the bonds as hereinafter provided.

(g) Fix, levy and collect fees, rents, tolls or other charges for connecting to and for the use of the sewerage system, including the use for industrial waste.

(h) Acquire, by purchase or the exercise of the right of eminent domain, any property or easements or other right or interest in property necessary for the construction, reconstruction, extension or enlargement of a sewerage system whether such property be within or without the city or partially within and partially without the city.

(i) Make contracts and execute instruments containing such terms, provisions and conditions as in the discretion of the board may be necessary, proper or advisable for the purpose of obtaining a grant, loan or other financial assistance from any federal agency or from the State of Tennessee by virtue of any Act of Congress or Act of the Legislature of Tennessee; to make all contracts and execute all other instruments necessary, proper or advisable in or for the furtherance of the construction of the sewerage system.

(j) Enter on any lands, waters and premises for the purpose of making surveys, soundings and examinations in or for the furtherance of the construction of a sewerage system.

(k) Require the owner, tenant or occupant of each lot or parcel of land which abuts upon a street or other public way containing a sanitary sewer upon which lot or parcel a building exists for residential, commercial or industrial use to connect such building with such sanitary sewer and to cease to use any other means for the disposal of sewage, sewage waste or other polluting matter.

(l) Require the owner, tenant or occupant of each lot or parcel of land who is obligated to pay the charges made for the service furnished by the sewerage system to make a reasonable deposit in advance to insure the payment of such charges.

(m) Contract with the city water company of Chattanooga, its successors and assigns, for the billing and collection from each water user as an added and designated item on its water service bill the sewer service charges of the city, and to contract with said water company for it not to accept payment of water service charges without payment of the city sewer service charge, and for the company to discontinue water service to users who fail and refuse to pay sewer service charges, and not to re-establish water service until such time as sewer service charges due have been paid.

Cross reference—Authority of water company to contract for collection of sewer charges, § 15.8.

(n) Employ engineers, superintendents and other employees for the operation and maintenance of the sewerage system.

(o) Perform any acts authorized under this Act [chapter] through or by means of its own officers, agents and employees or by contracts with private corporations, firms or individuals.

(p) Do all acts and things necessary convenient to carry out the powers expressly given in this Act [chapter].

(Priv. Acts 1949, Ch. 602, § 3; Priv. Acts 1951, Ch. 230, § 1)

Sec. 15.21. Proceeds from bonds, rents, fees, etc., to be deposited in separate account in city's name.

All proceeds received from the sale of bonds issued under this Act [chapter] and all fees, rents, tolls, or other charges received by the city from the operation of the sewerage system, and all monies received from any federal agency or the State of Tennessee or state agency shall be paid to the city treasurer, who shall not commingle any money so received with any other monies of the city, but the monies received shall be deposited in a separate bank account, or accounts, in the name of the city.

(Priv. Acts 1949, Ch. 602, § 4)

Secs. 15.22—15.33. Repealed.

Editor's note—Former §§ 15.22 through 15.33 inclusive relating to issuance of bonds relating to the sewer system repealed by Ord. No. 12766, § 29, adopted December 18, 2012. These Charter provisions have been superseded by the "Local Government Public Obligations Act of 1986," T.C.A. § 9-21-101 *et seq.*

Secs. 15.34—15.43. Reserved.

CHAPTER III. REMOVAL, RELOCATION AND INSTALLATION OF UTILITIES IN CONNECTION WITH PUBLIC IMPROVEMENTS

Sec. 15.44. Removal of poles, cables, etc., prior to widening, etc., of streets—City may require companies to do work.

The City of Chattanooga, Tennessee, shall have the power to require the removal, in advance, by public service companies concerned, including the electric power board of Chattanooga, of all telephone, telegraph,

light and power poles, towers, cables or lines and all water and gas mains or pipes which may be necessary or advisable in any street widening, straightening, paving, repaving or other street improvement project within said city.
(Priv. Acts 1947, Ch. 604, § 2)

Sec. 15.45. Same—City may do work when company fails to do so.

The City of Chattanooga, Tennessee, shall have the power to remove, or have removed, all telephone, telegraph, light and power poles, towers, cables, or lines and all water and gas mains and pipes, at the expense of the public service company concerned (including the electric power board of Chattanooga) in event of the failure or refusal of any public service company, after notice, to remove same, and to assess such public service company (including the electric power board of Chattanooga) for the cost and expense thereof, plus a penalty of ten per cent (10%).
(Priv. Acts 1947, Ch. 604, § 4)

Sec. 15.46. Same—Assessment and penalty to constitute lien on property.

Assessment made to cover the cost or expense incurred by the City of Chattanooga, Tennessee, in removing or having removed, telephone, telegraph, light and power poles, towers, cables or lines, water and gas mains or pipes, as provided in section 4 of this Act [15.45. of this compilation], together with the penalty of ten per cent (10%), shall operate as a levy and is hereby declared to be a lien upon any and all property of the public service company concerned located within said city, which lien shall be superior to all other liens, except liens for state, county and city ad valorem taxes and special assessments.
(Priv. Acts 1947, Ch. 604, § 6)

Sec. 15.47. Installation of utilities by abutting property owners—City may require work to be done.

The City of Chattanooga, Tennessee, shall have the power to require all abutting property owners on any street being widened, straightened, paved, repaved or otherwise improved, within said city to make such sewer, water, gas or other utility connections as may be necessary or advisable in advance of construction.
(Priv. Acts. 1947, Ch. 604, § 3)

Sec. 15.48. Same—City may do work when owner fails to do so.

The City of Chattanooga, Tennessee, shall have the power to make or have made all sewer, water, gas or other utility connections at the cost and expense of the abutting property owner concerned in the event of the owner's failure or refusal, after notice, to make such connections, and to assess such owner with the cost and expense thereof, plus a penalty of ten per cent (10%).
(Priv. Acts 1947, Ch. 604, § 5)

Sec. 15.49. Same—Assessment and penalty to constitute lien on property.

Any assessment made to cover the cost or expense incurred by the City of Chattanooga, Tennessee, in making sewer, gas, water or other utility connections, as provided in section 5 of this Act [15.48 of this compilation], together with the penalty of ten per cent (10%), shall operate as a levy and is hereby declared to be a lien upon that property of the abutting owner concerned where the connection or connections were made, which lien shall be superior to all other liens, except liens for state, county and city ad valorem taxes and special assessments.
(Priv. Acts 1947, Ch. 604, § 7)

Sec. 15.50. Certification and collection of assessments.

The assessments authorized in sections 4 and 5 of this Act [15.45 and 15.48 of this compilation] shall be certified and collected in such manner as the city council may, by resolution, provide.
(Priv. Acts 1947, Ch. 604, § 8; Ord. No. 11272, 5-2-02)

Secs. 15.51—15.60. Reserved.

CHAPTER IV. GAS, WATER, SEWER AND OTHER CONNECTIONS BY CITY

Sec. 15.61. City authorized to make connections at expense of abutting property owners.

Without impairing the powers it already has with respect to requiring property owners to construct and connect sewers, gas, water and other connections, said city shall hereafter have the power to construct and connect sewers, gas, water and other connections at the expense of the abutting property owners in the manner hereinafter provided.
(Priv. Acts 1929, Ch. 790, § 2)

Secs. 15.62—15.65. Repealed.

Editor's note—Former §§ 15.62 through 15.65 inclusive relating to sewer districts repealed by Ord. No. 12677, § 30, 12-18-12.

Secs. 15.66—15.75. Reserved.

CHAPTER V. ABUTTING PROPERTY LAW OF 1907 RELATIVE TO STREETS AND SIDEWALKS*

Secs. 15.76—15.85. Reserved.

CHAPTER VI. SIDEWALK IMPROVEMENT ACT OF 1915†

Secs. 15.86—15.95. Reserved.

CHAPTER VII. METROPOLITAN IMPROVEMENT ACT OF 1927‡

Secs. 15.96—15.105. Reserved.

***Editor's note—**The abutting property law of 1907, consisting of Priv. Acts 1907, Ch. 149, is not set out in this compilation in order to conserve space and because of its limited interest. Various titles and names of officers and departments in said act are changed by Priv. Acts 1911, Ch. 10, adopting the commission form of government. The 1907 act has been specifically amended, as of Nov. 1, 1967, by the following: Priv. Acts 1909, Ch. 484; Priv. Acts 1915, Ch. 574; Priv. Acts 1917, Ch. 432, 3, 4; Priv. Acts 1919, Ch. 548; Priv. Acts 1921, Ch. 302; Priv. Acts 1921, Ch. 920.

†**Editor's note—**The sidewalk improvement act of 1915, consisting of Priv. Acts 1915, Ch. 131, is not set out in this compilation in order to conserve space and because of its limited interest. Said act has been amended, as of Nov. 1, 1967, by the following: Priv. Acts 1919, Ch. 548.

‡**Editor's note—**The Metropolitan Improvement Act of 1927, consisting of Priv. Acts 1927, Ch. 457, is not set out in this compilation in order to conserve space and because of its limited interest. Said Act has been amended, as of Nov. 1, 1967, by Priv. Acts 1929, Ch. 482 and Priv. Acts 1929, Ch. 665.

CHAPTER VIII. IMPROVEMENT ACT OF 1931*

Secs. 15.106—15.115. Reserved.

***Editor's note—**The Improvement Act of 1931, consisting of Priv. Acts 1931, Ch. 727, is not set out in this compilation in order to conserve space and because of its limited interest. Said Act has not been amended as of Nov. 1, 1967.

Title 16

RAILROADS*

Sec. 16.1. Railroad companies may be required to build and maintain bridges, etc., over tracks, etc.
Sec. 16.2. Railroad companies may be required to keep watchmen at dangerous crossings.

***Cross references—**Authority to subscribe to railroad stock, § 2.9; aid to railroads, § 6.152 et seq.; authority to condemn railroad property for street widening, § 15.7.

Sec. 16.1. Railroad companies may be required to build and maintain bridges, etc., over tracks, etc.

The power is hereby conferred upon the city council of the City of Chattanooga, in its corporate capacity, to require by ordinance, railroad companies to build maintain, repair, or replace, at their own expense, such bridges and approaches, tunnels or other conveniences over their tracks when the same cross any streets of said city, as the city council may deem necessary to the safety and convenience of the public traveling on said streets, and said city council may prescribe all reasonable regulations touching the kind and character of bridges to be built and the manner of maintaining them.
(Priv. Acts. 1907, Ch. 149, § 25; Priv. Acts 1911, Ch. 10, §§ 2, 3; Ord. No. 11272, 5-2-02)

Sec. 16.2. Railroad companies may be required to keep watchmen at dangerous crossings.

The Charter of the City of Chattanooga, Tennessee, and all acts heretofore passed amendatory thereof be, and they are hereby amended so as to confer on the city council of said city the power to require railroad companies to place and maintain watchmen, at their own expense, at such railroad street crossings as the city council may deem dangerous or a menace to public travel.
(Pub. Acts 1909, Ch. 420; Priv. Acts 1911, Ch. 10, §§ 3, 13; Ord. No. 11272, 5-2-02)

RESERVED*

***Editor's note—**Former Title 17 captioned "Schools and Education" repealed by Ord. No. 10079, 9-9-94, effective 6-30-97.

RESERVED*

***Editor's note—**Title 18, §§ 18.1—18.8 derived from Priv. Acts 1970, Ch. 303, § 1, and Priv. Acts 1970, Ch. 307, §§ 1-8, was repealed by Ord. No. 12677, § 31, 12-18-12. Former Tit. 18, §§ 18.1—18.8 pertained to transportation. This section further provided "that the City shall retain the authority to operate public transportation systems under state laws of general application."

State law reference—T.C.A. § 7-56-101 *et seq.*

CHARTER APPENDICES

Appendix No. 1 Judgment

Appendix No. 2 Agreed Order

Appendix No. 3 Order

Appendix No. 4 Charter Comparative Table (Private Acts)

APPENDIX NO. 1 JUDGMENT*

The agreed order and defendants' amended plan, both of which this Court has approved and filed this date, shall be the judgment of the Court in accordance with Rule 58, Federal Rules of Civil Procedure.

Under the plan, this Court will retain jurisdiction for the purpose of (1) reviewing, in accordance with 42 U.S.C. § 1973a(c), the first redistricting plan based on 1990 Census figures if such a plan is submitted to this Court, and (2) the assessment of costs and attorneys' fees, which are hereby awarded to the plaintiffs in accordance with 42 U.S.C. § 1973(e). Counsel for the plaintiffs are reminded of the provisions of L.R. 10.6, EDTN, which requires that all petitions for attorneys' fees must be filed within thirty (30) days after the entry of judgment.

SO ORDERED.

ENTER.

_____

R. ALLAN EDGAR
UNITED STATES DISTRICT JUDGE

***Case law reference—**Filed in Brown, et al. v. Board of Commissioners, et al., No. CIV-1-87-388, in the United States District Court for the Eastern District of Tennessee, Southern Division, on January 18, 1990.

AGREED ORDER*

Pursuant to the Order of the Court of August 8, 1989, directing the Defendants to submit an acceptable remedial plan to bring the City of Chattanooga, Tennessee, into compliance with the Voting Rights Act of 1965, as amended, and after the submission by Defendants of a proposed plan and following an evidentiary hearing pursuant to Section 2 of the Voting Rights Act, 42 U.S.C. Sec. 1973, the parties have agreed upon a remedy for the voting rights violation in this case, which is described more fully in Defendants' Amended Plan, a copy of which is attached hereto as Exhibit A and made a part hereof by reference. With the consent of the parties and for good cause shown, the Court accepts and adopts Defendants' Amended Plan as a full and complete remedy for the violation of Plaintiffs' rights in this case.

The Court's retention of jurisdiction over this case is limited by the agreement of the parties (which is contained in Paragraphs nineteen (19) and twenty (20) of said Amended Plan) pursuant to Section 3(c) of the Voting Rights Act, 42 U.S.C. Sec. 1973a(c). The Court retains jurisdiction over Plaintiffs' request for costs and attorneys' fees, and this case remains on the docket for this purpose only.

This Order shall be binding upon the parties, their successors, agents and assigns.

AND IT IS SO ORDERED.

January 18, 1990
Chattanooga, Tennessee

_____
R. ALLAN EDGAR
UNITED STATES DISTRICT JUDGE

We Consent:

_____
Laughlin McDonald
Derek Alphran
January 17, 1990
Attorneys for Plaintiffs

_____
Margaret Carey
C. Victor McTeer
January 17, 1990
Attorneys for Plaintiffs

_____
Myron Bernard McClary
January 17, 1990
Attorney for Plaintiffs

City of Chattanooga
By:_____
Mayor Gene Roberts
January 17, 1990

_____
John P. Franklin, Commissioner
January 17, 1990

_____

***Case law reference—**Filed in Brown, et al. v. Board of Commissioners, et al. in the United States District Court for the Eastern District of Tennessee, Southern Division, on January 18, 1990.

Richard Dinkins
January 17, 1990

Ron Littlefield, Commissioner
January 17, 1990

Eugene N. Collins
City Attorney Emeritus
January 17, 1990
Attorney for Defendants

Ervin L. Dinsmore, Commissioner
January 17, 1990

C. A. Rose, Commissioner
January 17, 1990

EXHIBIT A

DEFENDANTS' AMENDED PLAN

AMENDED PLAN TO REORGANIZE THE GOVERNING BODY OF THE CITY OF CHATTANOOGA AS ORDERED BY THE UNITED STATES DISTRICT COURT, EASTERN DISTRICT, SOUTHERN DIVISION, AT CHATTANOOGA, TENNESSEE IN THE CASE OF BROWN, ET AL. V. CITY, ET AL., CIVIL ACTION NO. 1-87-388.

1. The Charter of the City of Chattanooga, Tennessee (which is a compilation of various acts of the Tennessee General Assembly as well as certain ordinances enacted by the Board of Commissioners and ratified by a vote of the people pursuant to the Constitution of Tennessee) shall be amended as provided herein when approved and implemented by a final order of the United States District Court for the Eastern District of Tennessee, Southern Division sitting at Chattanooga, Tennessee, in the case of Brown, et al. v. City, et al., Civil Action No. 1-87-388.

2. The Board of Commissioners of the City of Chattanooga and the present offices of the Mayor and the Commissioners are hereby abolished as of noon, June 11, 1990. A special municipal election for the office of Mayor and members of the City Council of the City of Chattanooga shall be held on May 1, 1990. If there is to be a run-off election held pursuant to this Plan, then such election shall be held on Thursday, June 7, 1990. All persons duly elected to a City office hereunder shall file the appropriate bond, take the prescribed oath and assume the duties of office at noon on Monday, June 11, 1990.

3. There is hereby created the office of the Mayor, and all executive and administrative authority and responsibility now vested in and exercised by the Board of Commissioners and its individual members shall be vested exclusively in the Mayor. All references in the Charter to individual Commissioners or the Board of Commissioners acting in their administrative or executive capacity are hereby deleted and the word 'Mayor' substituted therefor.

4. There is hereby created a City Council of the City of Chattanooga, Tennessee, and all legislative and quasi-judicial authority and responsibility now vested in and exercised by the Board of Commissioners shall be vested exclusively in the City Council. All references to the 'Board of Commissioners' or 'Board' or 'City Commission' or 'Commissioners' or 'Commission' where the same refers to the Board of Commissioners acting in its or their legislative or quasi-judicial capacity in the present City Charter are hereby deleted and there is inserted in lieu thereof the phrase 'City Council' or 'Council' or 'Council Members' except as otherwise specified herein.

5. The Mayor shall be elected at-large and shall not be a member of the City Council. The Mayor shall not have a vote in any matter considered by the City Council. The Mayor shall have a veto over any ordinance enacted or resolution adopted by the City Council, but the City Council may override the veto of the Mayor at the next regular meeting of the Council but only by a majority vote of the entire membership of the City Council.

6. No person shall be elected to the office of Mayor unless he or she has been a resident of the City of Chattanooga for at least one year prior to his or her election and unless he or she shall be at least thirty (30) years of age. The residency and age requirements must be met at the time (s)he qualifies to run for office. Each candidate, at the time of qualification, shall sign an oath that (s)he meets the residency and age requirements.

Editor's note—Modified by Ord. No. 9432, § 1(2), adopted 8-21-90, and was approved by the voters of the city on 11-6-90.

7. The Chief Executive Officer of the City of Chattanooga shall be the Mayor. The Mayor shall be authorized to administer oaths and shall supervise and control all of the divisions of the City, except as otherwise provided, and shall see that the ordinances of the City and the provisions of the Charter are observed. The Mayor shall devote his or her entire time and attention to the duties of the office of the Mayor. The Mayor may attend any meeting of the Council or any of its committee meetings and may address the Council or its committee meetings subject to recognition by the Chairperson.

8. No person shall be eligible to be elected as Mayor for more than two (2) consecutive four (4) year terms.

9. In the case of the Mayor's death, resignation, inability to serve for any reason, recall or removal of his or her residence from the City, upon such fact being certified by resolution of the Council, the Chairperson of the Council shall become the interim Mayor upon being administered the oath and making bond. Such person shall hold the Office of the Mayor on an interim basis until a new Mayor is elected as provided in this Charter and qualified. The interim Mayor shall have the authority to cast a vote to break a tie in the City Council. A vacancy in the Office of the Mayor shall be filled by election at the next regularly scheduled election to be held in the City not less than ninety (90) days but not more than one hundred twenty (120) days after the vacancy is certified by the Council. If no such election is scheduled, a special election shall be held within not less than ninety (90) nor more than one hundred twenty (120) days. The person so elected shall serve the remainder of the term vacated by the Mayor.

10. The Mayor shall appoint all department heads, subject to confirmation by a majority vote of the entire membership of the Council. The Mayor may remove department heads at any time with the approval of a majority vote of the entire membership of the Council. The City Council may remove department heads and/or City officials (but not the Mayor) for cause after notice and hearing, and pursuant to a vote of two-thirds of the entire membership of the Council.

11. Within sixty (60) days after taking office, the Mayor shall recommend to the Council any revisions to the names, functions, and organization of City departments that the Mayor deems appropriate. The Council shall adopt a plan of reorganization within thirty (30) days after receiving recommendations for the same from the Mayor, which recommendations the Council may accept, modify or reject.

12. The existing City departments as specified in Pr. Acts 1911, Ch. 10, Sec. 17, as modified directly or indirectly by Pr. Acts 1953, Ch. 105; Pr. Acts 1955, Ch. 56; Pr. Acts 1957, Ch. 73; and, Pr. Acts 1965, Ch. 207, will be retained and will continue to perform their respective duties pending the reorganization of the departmental structure described herein.

13. (a) No later than the date he or she appoints department heads, the Mayor shall appoint, with the approval of a majority of the entire membership of the City Council, persons to fill the positions of Fire Chief and Police Chief for terms concurrent with the Mayor and until they are discharged or their

successors are appointed and qualified. The Mayor, with the approval of a majority vote of the entire membership of the Council, may discharge any of these officials prior to the expiration of their terms of office. Thereafter, vacancies shall be filled by appointment of the Mayor with the approval of a majority vote of the entire membership of the Council.

Editor's note—Modified by Ord. No. 10745, § 1(3), adopted 8-18-98, approved by the voters of the city on 11-3-98.

(b) The persons holding the offices of City Auditor and City Treasurer on the operative date of these Charter amendments shall continue in those offices on an interim basis and until their successors are appointed and qualified. No later than the date the Mayor appoints department heads, the Mayor shall appoint, with the approval of a majority vote of the entire membership of the Council, a City Finance Officer in place of the City Auditor, and a City Treasurer, for terms concurrent with the terms of the Mayor, and until they are discharged or their successors are appointed and qualified. The Mayor may discharge the City Finance Officer or City Treasurer with the approval of a majority vote of the entire membership of the Council. Any vacancy occurring in said offices shall be filled by appointment of the Mayor with the approval of a majority vote of the entire membership of the Council.

(c) An Internal Auditor shall be appointed by the Council, independent of the Mayor, and may be removed and replaced at any time by the affirmative vote of a majority of the Council. The Internal Auditor's responsibilities will include, but not be limited to, auditing expenditures of the executive and administrative departments and verifying that all revenues due the City are properly collected and accounted for.

(d) The Mayor and Council shall jointly appoint a City Attorney for a four (4) year term from the date of appointment to said four (4) year term. The City Attorney may be removed from office at any time by the affirmative vote of two-thirds of the entire membership of the City Council, and the concurrence of the Mayor.

Editor's note—Subsection (d) herein has been amended by Ord. No. 9439, § 1(2), adopted 8-21-90, approved by the voters of the city on 11-6-90, and which is codified as § 3.62 of the City Charter.

14. The salary of the Mayor shall be at all times the same as the salary of the County Executive of Hamilton County.

15. The City shall be divided into nine (9) districts within the geographic boundaries of the City. The City Council shall be composed of nine (9) members with each member elected from one of such single districts. The candidate for each Council position who receives the majority of votes cast for that Council position shall be elected or appointed as a member of the Council who is not at least 21 years of age and who has not been a resident of the district for at least one year preceding his or her election. The residency and age requirements must be met at the time (s)he qualifies to run for office. Each candidate, at the time of qualification, shall sign an oath that (s)he meets the residency and age requirements.

Editor's note—Modified by Ord. No. 9432, § 1(2), adopted 8-21-90, and approved by the voters of the city on 11-6-90.

16. At its initial meeting, the Council shall elect from its membership a Chairperson who shall preside over Council meetings. The Council shall also elect a Vice-Chairperson who shall preside in the Chairperson's absence. Terms of the Chairperson and Vice-Chairperson shall be for one year or until the end of the Council's term, whichever is shorter. No Council person may serve more than two years as Chairperson, nor more than two years as Vice-Chairperson, within any Council term. The Council may when necessary elect from their members a Chairperson *pro tempore* to preside at a particular meeting in the absence of the Chairperson and Vice-Chairperson.

Editor's note—Modified by Ord. No. 10090, § 1(2), adopted 08-23-94, and approved by the voters of the city on 11-8-94.

17. The Chairperson of the Council shall ascend to the Office of the Mayor as interim Mayor on a temporary basis in the event of a vacancy in the office of the Mayor by reason of death, resignation, removal, or otherwise, all as specified in paragraph 9 hereof. During service as interim Mayor, the Council Chairperson shall step down from his or her position as a member of the council. However, the temporary ascension of the Council Chairperson to the Office of the Mayor will not create a vacancy on the Council to be filled by the Council.

18. The following districts are hereby established for the various Council positions:

District No.	*Precincts*
District 1	Mountain Creek, Northwoods North, Northwoods South, Valleyview East, and Wauhatchie City.
District 2	Lupton City, Moccasin Bend, North Chattanooga, Northgate, Riverview, and Stuart Heights.
District 3	Dupont, Hixson, Kings Point, Lake Hills, Murray Hills, Hixson 2 and East Chattanooga.
District 4	Brainerd Hills, Concord, East Brainerd, and Tyner.
District 5	Airport, Bonny Oaks, Dalewood, Eastdale, and Woodmore.
District 6	Brainerd, Eastgate, Eastside, Missionary Ridge N, Missionary Ridge S, Ridgedale, and Sunnyside.
District 7	Alton Park, Cedar Hill, East Lake, Piney Woods, and St. Elmo.
District 8	Amnicola, City Hall, Clifton Hills, Courthouse, Downtown, and Howard.
District 9	Avondale, Bushtown, Highland Park, Glenwood, and Orchard Knob.

19. Following publication of each new official decennial federal census, the Council shall reorganize and adjust by ordinance the boundaries of the districts currently established. The Council's reorganization and adjustment of the district boundaries shall be completed no later than one (1) year prior to the next City election; provided, however, that the Council shall have not less than six (6) calendar months within which to reorganize and adjust the districts. The adjusted districts shall be as equal in population as practicable. Such reorganization and adjustment of district boundaries shall not affect the qualifications of any Council member to fulfill his or her remaining unexpired term.

Editor's note—This section is augmented by Ord. No. 9724, § 1(2), adopted 5-19-92 and approved by the voters of the city on 8-6-92, and which is codified as § 5.28 of this Charter.

20. The first and only the first redistricting plan (based on the 1990 census figures only) prepared pursuant to paragraph 19 hereof, prior to its implementation, shall be submitted by the Mayor and Council, or the Chief Legal Officer (pursuant to Section 3(c) of the Voting Rights Act, 42 U.S.C. Sec. 1973 a(c)), to the District Court for the Eastern District of Tennessee, Southern Division, or in the alternative to the Attorney General of the United States for preclearance under Section 5 of the Act, 42 U.S.C. Sec. 1973c.

21. A majority of the entire membership of the Council shall constitute a quorum for the transaction of business. The affirmative votes of a majority of the members of the entire Council shall be necessary to enact any ordinance or adopt any resolution or take any affirmative action. Every ordinance enacted by the council shall be signed by the Council Chairperson, Vice-Chairperson or Chairperson *pro tempore* and shall also be approved or vetoed by the Mayor as provided by the Charter and shall then be delivered to the Clerk of the City Council. Except as provided herein, wherever in the Charter more than three (3) votes of the present Board of Commissioners is required to take any action, it shall mean more than five (5) votes of the entire membership of the City Council.

22. Removal of residence by a member of the Council from that member's district shall constitute a vacancy in that member's Council position. Any vacancy occurring on the Council, including any vacancy in the office of Chairperson of the Council, shall be filled by a vote of a majority of all of the remaining members of the Council. Any person elected to fill such a vacancy shall possess the same qualifications as a Council member elected by the people. Any person elected or appointed as a member of the Council shall serve until his or her successor is elected and qualified; provided, however, that if any general statute requires an earlier election, then such general statute shall apply.

23. Members of the Council shall be paid fifteen percent (15%) of the Mayor's salary as may be adjusted from time to time. The Chairperson shall be paid an additional Five Thousand Dollars ($5,000.00) per annum, and the Vice-Chairperson shall be paid an additional Twenty-Five Hundred Dollars ($2,500.00) per annum. Such salaries shall be payable on a monthly basis.

24. The Council shall from time to time establish and publish such procedures and rules for its organization and orderly operation as the Council deems appropriate so long as the procedures and rules do not conflict with provisions of the Charter, state or federal law. The Council shall have the power to issue subpoenas and administer oaths. The Council's rules shall specify the schedule for its regular meetings, which shall be held at least twice a month, and the procedures for calling special meetings. In the event that a member of the council shall be absent from all Council meetings during three (3) consecutive months without proper and reasonable explanation acceptable to the Council, his or her office may be declared vacated by a majority vote of the remaining membership of the Council and such vacancy shall be filled as provided herein.

25. The Council may from time to time establish such committees, committee responsibilities, and the manner of committee appointment as the Council deems appropriate. The Council shall employ a Clerk whose duty it shall be to preserve, keep and retain all of the records of the Council and shall have the authority to certify the correctness of such records when necessary or requested by a citizen.

26. Members of the Council may be reimbursed their reasonable, necessary and actual expenses incurred in the performance of their official duties. The Council shall adopt procedures and guidelines for documentation and reimbursement of expenses of members of the Council and of all the officials and employees of the government after receiving appropriate recommendations on the same from the Mayor.

27. Only persons who are residents of the City of Chattanooga shall be eligible to vote in City elections.

28. Subsequent elections for Mayor and City Council members shall be held on the first Tuesday in March, 1993, and every four (4) years thereafter. The Mayor and each City Council member shall be elected by a majority of the votes cast for the office he or she seeks. If no candidate for Mayor or no candidate for one or more City Council seats attains a majority in the March elections, a run-off election shall be held on the second Tuesday in April. The run-off election shall be held between the two candidates in each such contest who receive the highest number of votes. Those candidates elected either in the first election in March or in the run-off election in April shall file a bond, take the oath of office and assume their respective duties on the first Monday after the second Tuesday in April following the initial March elections, each to serve until the first Monday after the second Tuesday in April, 1997, or until a successor is elected and qualified. A Mayor and all City Council members shall be elected to four (4) year terms of office in the same manner thereafter.

29. The current Chairman of the Board of Education shall serve until February 1, 1991. Thereafter, the Chairman of the Board of Education shall be elected by the Board from among its members, which Chairman shall have full voting rights on all matters and questions coming before the Board of Education.

30. Current members of the Board of Education shall serve until their terms expire. Elections shall be held in the general election in November, 1990 for Districts 1, 3, 5, 7 and 9 as defined herein. The candidates receiving the most votes (plurality) in his or her district shall be elected. Those candidates

elected shall take the oath of office and assume their respective duties February 1, 1991, for four (4) year terms. Thereafter, elections shall be held in the general election of November, 1994 and every four (4) years thereafter with terms of office to begin the following February first. An election shall be held in the general election of November, 1992 for Districts 2, 4, 6 and 8 as defined herein. Those candidates receiving the most votes (plurality) in his or her district shall be elected. The candidates elected shall take the oath of office and shall assume their respective duties on February 1, 1993. Thereafter, elections for Districts 2, 4, 6 and 8 shall be held in the general election of November, 1996 and every four (4) years thereafter with terms of office to begin the following February first. Members of the Board of Education shall be paid two and one-half percent (2.5%) of the Mayor's salary as adjusted from time to time. Qualifications for Board membership shall be the same as those for members of the City Council. Any vacancy occurring on the Board of Education shall be filled by appointment of the Mayor with the approval of a majority of the Council. Any person chosen to fill such a vacancy shall possess the same qualifications as that of a Board member elected by the people. Any person elected or appointed as a member of the Board of Education shall serve until his or her successor is elected and qualified; provided, however, that if any general statute requires an earlier election, then such general statute shall apply.

Editor's note—This section is superseded by the Agreed Order entered August 9, 1990 in Brown v. Board of Commissioners, which was thereafter amended by Ord. No. 9713, § (1)(2), adopted 5-5-92, approved by the voters of the City on 8-6-92, and codified as part of § 17.28 of this Charter.

31. All employees of the City shall either be registered voters in the State of Tennessee, or eligible to vote in the State of Tennessee, except that those employees currently employed and living outside the State of Tennessee shall be exempted from this provision.

32. The Board of Trustees of the General Pension Plan is hereby expanded to seven (7) members. The Mayor shall be an ex officio member of the Board of Trustees and shall have the right to vote on all matters. The other six (6) Trustees shall be appointed by the Mayor with the approval of a majority vote of the entire membership of the City Council. (The City Auditor and City Treasurer shall no longer serve as ex officio members of the Board of Trustees.) The Mayor and Council shall ensure in the exercise of their appointment powers as vacancies occur on the Board of Trustees that black representation thereon will be consistent with the percentage of the black population in the City. No person shall be eligible to be a Trustee unless he or she (a) is a trust or investment officer, or has the qualifications of a trust or investment officer as determined from the requirements for those positions by prevailing custom in local government, and among the banks, insurance companies or licensed stock or bond brokers who have offices in Chattanooga, Tennessee, and (b) is a resident of the City of Chattanooga, Tennessee, or is employed within the corporate boundaries of the City of Chattanooga, Tennessee. Of the six (6) appointed members of the Board, no more than two (2) may be employed by the same employer. Two (2) of the members of the Board shall be appointed to initial terms of five (5) years, two (2) of the members shall be appointed to initial terms of four (4) years and two (2) of the members shall be appointed to initial terms of three (3) years. Thereafter, all terms shall be for five (5) years. The City Personnel Director (by whatever title) shall be the keeper of the records of the Board of Trustees.

33. The Mayor shall propose an annual budget and present it to the City Council. The Council shall enact a budget ordinance after receiving recommendations for the same from the Mayor, which recommendations the Council may accept, modify or reject.

34. On June 11, 1990, the current Mayor and Commissioners of the City of Chattanooga, shall act as consultants to the new Mayor and Council until April 15, 1991. As consultants they shall perform any duties specified by the Mayor and Council in keeping with their former positions and duties. Nothing herein shall prohibit any Commissioner from being elected or appointed to any position in City government. Any Commissioner who shall be elected or appointed to a position in City government shall receive for the remainder of his current elective term the greater of either the prior salary or the City salary to which such official shall be entitled by election or appointment. In addition to the prior salary, a Mayor

or former Commissioner as a consultant shall be entitled to all the benefits to which said Mayor or Commissioner had been previously entitled, including health insurance, pension, and retirement benefits. Any Mayor's or Commissioner's entitlement shall terminate upon such Commissioner's establishment of residence outside the City or rejection of the offer of a position in the City government having a salary of not less than that of the former office held by such person.

35. Nothing herein shall preclude persons who are receiving benefits from any of the City's pension plans from serving on the City Council without loss of previously accrued pension benefits; provided, however, such service by such retired employees shall not constitute additional credited service toward greater pension benefits.

36. Any existing provision of the Charter of the City of Chattanooga not directly amended or materially and substantially affected by the foregoing amendments shall remain in full force and effect, but all provisions of the existing Charter that are in conflict or are not consistent with the foregoing amendments shall be considered repealed by implication.

APPENDIX NO. 2 AGREED ORDER*

It appearing to the Court that the parties are in agreement, that paragraph 30 of the Agreed Order entered January 18, 1990, be revised pursuant to Rule 60, Federal Rules of Civil Procedure, to provide for the election of school board members for the City of Chattanooga as set forth in Resolution No. 18691, adopted by the City Counsel [Council] of the City of Chattanooga on June 19, 1990, and for other good cause shown, it is hereby

ORDERED, that paragraph 30 of the Judgment Order entered January 18, 1990 be amended to include a new paragraph 30 as set forth in Resolution No. 18691 of the Chattanooga City Council dated June 19, 1990, a certified copy of which is attached hereto and incorporated herein by reference.

ENTER this 9th day of August, 1990.

_____

R. ALLAN EDGAR

SUBMITTED FOR APPROVAL:
RANDALL L. NELSON, CITY ATTORNEY
By:_____

Phillip A. Noblett
Michael A. McMahan
Special Counsel
400 Pioneer Bank Bldg.
Chattanooga, TN 37402

TAYLOR, SCOTT & McCLARY
By:_____

Myron B. McClary, Esquire
537 Market St., Suite 402
Chattanooga, TN 37402

_____

Margaret Carey, Esquire
Center for Constitutional Rights
213 Main Street
P.O. Box 428
Greenville, MS 38701

_____

Laughlin McDonald, Esquire
American Civil Liberties Union
44 Forsyth St., N.W., Suite 202
Atlanta, GA 30303

WILLIAM & DINKINS
By:_____

_____

***Case law reference—**Filed in Brown, et al. v. Board of Commissioners, et al. in the United States District Court for the Eastern District of Tennessee, Southern Division, on August 9, 1990.
This Order, in the opinion of the City Attorney, has now been superseded by Ord. No. 9713, § 1(1), 5-5-92, approved by the voters of the City on 8-6-92, and codified as Sec. 17.28 of this Charter.

Richard Dinkins, Esquire
202 Second Avenue, North
Nashville, TN 37201

* * * * * * * * * *

RESOLUTION NO. 18691

A RESOLUTION RATIFYING, CONFIRMING AND APPROVING A PROPOSED AMENDMENT TO PARAGRAPH 30 OF THE AMENDED PLAN TO REORGANIZE THE GOVERNING BODY OF THE CITY OF CHATTANOOGA AS ORDERED BY THE UNITED STATES DISTRICT COURT, EASTERN DISTRICT, SOUTHERN DIVISION, IN THE CASE OF BROWN, ET AL. V. CITY OF CHATTANOOGA, ET AL., CIVIL ACTION NO. 1-87-388.

BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF CHATTANOOGA, TENNESSEE, That a proposed amendment submitted to the Court by the City Attorney to Paragraph 30 of the amended plan to reorganize the governing body of the City of Chattanooga as referred to in the caption hereof be and is hereby ratified, confirmed and approved, which paragraph as amended would read as follows:

30. Current members of the Board of Education shall serve until their terms expire. Elections shall be held in the general election in November, 1990, for Districts 1, 4, 5, 7 and 8 as defined herein. The candidates receiving the most votes (plurality) in his or her district shall be elected. Those candidates shall take the oath of office and assume their respective duties February 1, 1991, for four (4) year terms. Thereafter, elections for Districts 1, 4, 5, 7 and 8 shall be held in the general election of November, 1994, and every four (4) years thereafter with terms of office to begin the following February 1. An election shall be held in the general election of November, 1992, for Districts 2, 3, 6 and 9 as defined herein. Those candidates receiving the most votes (plurality) in his or her district shall be elected. The candidates elected shall take the oath of office and shall assume their respective duties on February 1, 1993. Thereafter, elections for Districts 2, 3, 6 and 9 shall be held in the general election of November, 1996, and every four (4) years thereafter with terms of office to begin the following February 1. Members of the Board of Education shall be paid two and one-half percent (2.5%) of the Mayor's salary as adjusted from time to time. Qualifications for board membership shall be the same as those for members of the City Council. Any vacancy occurring on the Board of Education shall be filled by appointment of the Mayor with the approval of a majority of the Council. Any person chosen to fill such a vacancy shall possess the same qualifications as that of a board member elected by the people. Any person elected or appointed as a member of the Board of Education shall serve until his or her successor is elected and qualified; provided, however, that if any general statute requires an earlier election, then such general statute shall apply.

ADOPTED: 6/19/90

MAM:cjc

APPENDIX NO. 3 ORDER*

This case is before the Court pursuant to the motion of defendant City of Chattanooga for approval of the Redistricting Plan for Elections of Members of the City Council ("Redistricting Plan") which the Chattanooga City Council approved as Ordinance 9640 on third and final reading on November 26, 1991. The Redistricting Plan is based on 1990 census figures and has been submitted to this Court for review pursuant to paragraph 20 of the Amended Plan which was a part of the Agreed Order entered by this Court on January 18, 1990. This Court retained jurisdiction for the limited purpose of reviewing this Redistricting Plan pursuant to 42 U.S.C. § 1973a(c).

No opposition has been filed to the City's motion. A review of the Redistricting Plan reveals on its face that it is in compliance with the Voting Rights Act of 1965, as amended, 42 U.S.C. §§ 1973 — 1973ff-6, as well as the Equal Protection Clause of the Fourteenth Amendment of the United States Constitution.

It is, therefore, ORDERED that the Redistricting Plan (Ordinance 9640) be, and it hereby is, APPROVED. Therefore, the judgment previously entered in this case is now in all respects FINAL.

ENTER:

_____

R. ALLAN EDGAR
UNITED STATES DISTRICT JUDGE

***Case law reference—**Filed in Brown, et al. v. Board of Commissioners, et al. in the United States District Court for the Eastern District of Tennessee, Southern Division, on January 17, 1992.

ORDINANCE NO. 9640

AN ORDINANCE REAPPORTIONING THE NINE DISTRICTS FOR CITY COUNCIL AND SCHOOL BOARD POSITIONS AND AUTHORIZING THE CITY ATTORNEY TO SUBMIT THIS REAPPORTIONMENT PLAN TO THE UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF TENNESSEE, CHATTANOOGA DIVISION.

SECTION 1. WHEREAS, Section 19 of the Court Order in the case of Brown v. Board of Commissioners of the City of Chattanooga, Tennessee, No. Civ-1-87-388, in the United States District Court for the Eastern District of Tennessee requires that following the publication of each new official decennial federal census, the Council shall reorganize and adjust by ordinance the boundaries of the council districts; and

WHEREAS, the same section requires that the adjusted districts shall be as equal in population as practicable; and

WHEREAS, the City has now received the official results of the 1990 decennial federal census and is therefore required to redistrict;

NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF CHATTANOOGA, TENNESSEE, That the nine districts for City Council and School Board positions be and are hereby reapportioned and redistricted so as to provide that the following districts are hereby established for the various council positions:

CHATTANOOGA PRECINCT MAP

	1990 TOTAL	1990 BLACK POP.	% OF TOTAL
DISTRICT 1:			
Wauhatchie City	1,774	0	0.00%
Valleyview East	3,106	2	0.06%
Mountain Creek	6,590	475	7.21%
Northwoods North	4,902	105	2.14%
SUBTOTAL	16,372	582	3.55%
DISTRICT 2:			
Northgate	3,918	93	2.37%
Lupton City	2,509	23	0.92%
Stuart Heights	2,515	81	3.22%
Northwoods South	1,984	69	3.48%
Riverview	2,537	105	4.14%
North Chattanooga	2,854	188	6.59%
SUBTOTAL	16,317	559	3.43%
DISTRICT 3:			
Hixson	3,206	74	2.31%
Hixson 2	4,485	33	0.74%
Dupont	2,484	17	0.68%
Murray Hills	2,829	566	20.01%

	1990 TOTAL	1990 BLACK POP.	% OF TOTAL
Lake Hills	2,247	256	11.39%
Kings Point	2,334	852	36.50%
SUBTOTAL	17,585	1,798	10.22%
DISTRICT 4:			
Tyner	6,090	464	7.62%
Concord	6,235	621	9.96%
East Brainerd	4,849	131	2.70%
SUBTOTAL	17,174	1,216	7.08%
DISTRICT 5:			
Bonny Oaks	3,721	2,028	54.50%
Airport	2,969	1,998	67.30%
Woodmore	3,467	2,256	65.07%
Dalewood	2,819	2,572	91.24%
Eastdale	4,299	3,746	87.14%
SUBTOTAL	17,275	12,600	72.94%
DISTRICT 6:			
Eastgate	3,749	586	15.63%
Brainerd	2,988	612	20.48%
Sunnyside	2,635	1,001	37.99%
Miss. Ridge-South	1,318	41	3.11%
Miss. Ridge-North	278	19	6.83%
Ridgedale	1,323	652	49.28%
Cedar Hill	1,768	49	2.77%
Brainerd Hills	3,254	362	11.12%
SUBTOTAL	17,313	3,322	19.19%
DISTRICT 7:			
St. Elmo	2,872	1,191	41.47%
Moccasin Bend	3,524	1,030	29.23%
Alton Park	3,222	3,192	99.07%
East Lake	4,403	530	12.04%
Howard	1,456	1,370	94.09%
Piney Woods	2,262	2,235	98.81%
SUBTOTAL	17,739	9,548	53.82%
DISTRICT 8:			
Downtown	3,023	1,826	60.40%
Avondale	3,782	3,703	97.91%
City Hall	2,520	1,919	76.15%
Clifton Hills	2,607	1,356	52.01%
Courthouse	2,599	1,141	43.90%
Bushtown	1,564	1,432	91.56%

	1990 TOTAL	1990 BLACK POP.	% OF TOTAL
SUBTOTAL	16,095	11,377	70.69%
DISTRICT 9:			
Highland Park	2,423	930	38.38%
East Chattanooga	3,161	1,516	47.96%
Glenwood	4,541	4,038	88.92%
Amnicola	534	388	72.66%
Eastside	4,372	1,828	41.81%
Orchard Knob	1,565	1,533	97.96%
SUBTOTAL	16,596	10,233	61.66%
TOTAL	152,466	51,235	33.60%

SECTION 2. BE IT FURTHER ORDAINED That the City Attorney, as Chief Legal Officer of the City, be and is hereby authorized to submit this Ordinance to the United States District Court for the Eastern District of Tennessee, Chattanooga Division, for the preclearance pursuant to the provisions of Section 20 of the above-referenced Court Order.

SECTION 3. BE IT FURTHER ORDAINED That this Ordinance shall take effect two weeks from and after its passage as required by law; however, it shall not be operative until such time as the District Plan is approved by Court Order of the said United States District Court.

PASSED on Third and Final
Reading Nov. 26, 1991.

_____
CHAIRPERSON

APPROVED:_____ DISAPPROVED:_____

DATE: _____ _____, 1991.

_____
MAYOR

RLN:cmc

APPENDIX NO. 4 CHARTER COMPARATIVE TABLE (PRIVATE ACTS)

This table shows the location of the sections of the basic Charter and any amendments thereto.

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
1972	402	4	3.40
1839	32	5	4.51
		9	8.14
1866	8	19	3.104
		28	2.9
1866-67	8	21	3.103
1868	45	15	4.22
1869	4	1	1.1
		6	2.8
1869-70	4	9	2.1(1)—(3)
			2.1(5), (6)
			2.1(19)
			2.1(41)
			2.1(60)—(64)
			2.1(64)
		12	4.8
1887	173	1	6.20
1889	29	2	5.1
1899	216	6	7.1
		7	3.1
1901	432	4	3.1
			3.3
			3.95
			3.102
			8.11
		5	3.2
			8.14
		6	2.8
		9	11.1, 11.2
		10	7.2
		11	4.50
			11.10
		15	6.91
		17, 28	11.6
		26	8.35
			13.15

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
		57	8.38
			13.1
		58, 59	13.2, 13.3
		60, 61	13.7, 13.8
		71	3.4
			3.103
		72	6.1
		76	4.37, 4.38
		77	4.1
		78	4.5
			4.25
		80	4.39
		81	4.6
		82	3.61
	495	3	13.7
		4	3.103
		5	4.1
1907	149	25	16.1
	388		7.1
1909	420		16.2
1911		10	5.5
	10	2	1.1
		2, 3	16.1
		3	4.8
			8.1
			16.2
		4	4.20
			5.26
			8.11, 8.12
		5	5.2—5.4
		7	5.6
			5.12
		8	5.11
		10—12	5.50—5.52
		13	3.103, 3.104
			3.111
			4.8
			4.22
			4.25

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
			4.37
			4.50—4.52
			6.91
			6.153
			6.155
			7.1
			8.3
			8.14
			8.33
			8.35
			8.52
			11.8
			11.10
			13.1
			13.3, 13.4
			13.7, 13.8
			13.15
			15.1
			16.2
		13	11.1, 11.2
		14	5.27
		15	11.1, 11.2
			8.15—8.22
			8.34
			8.50, 8.51
			11.9
		15	7.2
			11.3
			11.5, 11.6
		16	8.13, 8.14
		17	3.111
			8.4
			8.36
			13.3
			15.1
		18	8.4.1
		19	6.80
		20	3.111
			13.3

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
			15.1
		21	2.8
			3.86
		22	4.20, 4.21
		23	6.3
		25	3.18
		26	5.15
	11	13	8.2
	15	2	11.24
		3	11.4
			11.25
	126	1, 2	3.61
		2	5.2
			5.5, 5.6
		3	3.18
	552	1, 2	6.4
	621		6.80
1913	53	4	17.5
	301	4	2.8
			3.76
			3.79—3.83
			3.85, 3.86
		6, 7	3.76
		8	3.18
1915	221		4.1
	398	1	5.6
	475		8.15
1917	42	9	6.80
	432	2	3.18
		7	3.78
	713		4.24
			4.26
1919	76		3.61
			4.20
			8.11, 8.12
	405	2	17.1—17.3
	548		3.103
			6.44
			6.67—6.69

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
		2	3.77
			6.26
1921	791	1	6.113—6.121
1923	397	1	12.1
		2—10	12.2—12.10
	402	1—7	12.21—12.27
	403	1	8.8
	405	1, 2	12.38, 12.39
	580	1, 2	13.9, 13.10
1925	557	1—9	2.13
1927	246	1	2.3
1929	2	2, 3	15.2
	584	2	9.2
	652	2	4.9
		3	2.11
	790	2—6	15.61—15.65
1931	664	3	8.9
	766	1—3	6.93—6.95
1933	572	2	9.1
	640	3—9	6.28—6.34
		10	6.36
		11	6.35
			6.38
	894	1	3.62
1935	256	2	17.85
		3—11	17.86—17.94
	455	2	10.1
		3	10.3
		4	10.4, 10.5
		6	10.9, 10.10
		7	10.22—10.27
		8	10.28
		9, 10	10.29
		11	10.30
		13—16	10.32—10.35
		17	10.11
	647	3, 4	6.15, 6.16
		5	6.17, 6.18
		6	6.19

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
		8, 9	15.3, 15.4
	687	2	3.63
			3.65
	723	1	8.50—8.52
	778	1, 2	2.1(59)
1937	25	1	2.4
	28		2.1(58)
	221		3.46
	314	1	2.10
		2	9.3
		3	2.10
	678		3.46
	830	2	2.7
	858	1, 2	2.1(56), 2.1(57)
	868	1—3	4.2—4.4
	899	1	10.5—10.8
1939	85	1	5.5
		2	5.6
	348	1	10.3
	485	2	17.95
	538	1	10.42
		2	10.33
	572	2	11.12
	573	1	3.18
	578	1	2.1(55)
1939-40	32	3	2.1(65)
1941	251	1	6.107
	252	2	17.27
		4	17.32
		5	17.33
			17.91, 17.92
		6	17.47—17.49
		7	17.50
		8	17.34, 17.35
		9, 10	17.61
		11	17.62
		12	17.64
		13	17.63
		14	17.36

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
		15	17.6
	416	2, 3	2.5
	455	1	10.22
		2	10.26
		3	10.33
	456	1—12	6.128
	472	1	13.13
	492	1	3.5
	535	2	2.1(53), (54)
1945	45	1, 2	4.7
	53	1	10.33
	284	1	3.105
	425	2—6	4.4
	533	3	6.66
1947	548	2	15.7
	604	2	15.44
		3	15.47
		4	15.45
		5	15.48
		6	15.46
		7, 8	15.49, 15.50
1949	12	4	5.39
	127	2	13.12
	165	1—4	13.63—13.66
		6	13.68
		7	13.67
		9—12	13.69—13.72
		13	13.74
		14	13.73
		15—19	13.75—13.79
		22, 23	13.81, 13.82
	192	3	5.38
	201	2, 3	14.1, 14.2
		4	14.12
		5—9	14.3—14.7
		10	14.10
		11, 12	14.8, 14.9
		13	14.11
		14, 15	14.13, 14.14

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
	536	2	2.1
			2.1(1)—(28)
			2.1(30)—(52)
			2.1(65)
	602	2	15.19
		3—16	15.20—15.33
	607	2, 3	15.5, 15.6
	614	2	6.2
	627	3	4.23
		4	3.64
	715	2	2.1(28)
	760	2, 3	6.37, 6.38
	761	2	6.46
		3	6.45
		4	6.47
		5	6.48
			6.50
		6	6.51
	762	2—4	9.14—9.16
		5, 6	9.17
		6	9.18
	884	2—4	6.134—6.136
		5	6.137—6.139
		6, 7	6.140, 6.141
1951	27	1	10.26
	139	2	13.27
		3	13.26
		4—6	13.28—13.30
	230	1	15.20
	249	1	15.8
	327	1	5.3
	526	1	6.92
	532	1	2.6
1953	2	2—6	2.1(29)
	9	1	17.4
	90	1	13.66
		2	13.75
	105	2	3.96
		3	3.103

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
	141	2	13.44—13.50
		3, 4	13.51, 13.52
	522	1—6	9.29—9.34
1955	0	1	8.4
	56	1	3.80
			3.111
1957	73	2	8.5
		3, 4	5.7, 5.8
		5	5.6
			5.9
		6	5.10
		7	5.13, 5.14
		8	8.6, 8.7
	193	2	11.11
	240	1	2.12
1959	10	12	8.10
	13	1	5.10
	73		3.49
		2	3.29
	101	1	2.1(56)
1961	222	1	13.66
		2	13.75
		3	13.80
		4	13.83
	298		3.46
	300		3.46
	341	1	11.11
	396	1, 2	2.12
	398	1	6.46
1963	5	1	6.96
	30	2	13.14
	153	1	13.74
		2	13.5
			13.75
1965	160	2	13.5
	161	1	13.77
	165	1—7	6.166—6.172
	169	15	3.41
	206	1	6.127

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
	207	2—4	3.87—3.89
	237	1	8.10
		2	3.6
			3.64
	254		3.40
		1(1.11)	3.37
		2, 3	3.35, 3.36
		3(1)	3.37
		3(1.01)—3(1.07)	3.37
		3(1.09), (1.10)	3.37
		3(1.12)—3(1.22)	3.37
		3(2.01)	3.38
		3(3.01)—3(3.03)	3.39
		3(4.01)—3(4.05)	3.40
		3(4.06(b))—3(4.06(f))	3.40
		3(4.07), 3(4.08)	3.40
		3(4.09)	3.45.1
		3(5.01)—3(5.03)	3.41
		3(6.01)—3(6.03)	3.42
		3(7.01)	3.43
		3(8.01)—3(8.03)	3.44
		3(9.01)—3(9.04)	3.45
		3(9.04-A)	3.45
		3(9.05), 3(9.06)	3.45
		3(10.01)—3(10.03)	3.46
		3(10.05)—3(10.09)	3.46
		3(11.01)—3(11.08)	3.47
		5	3.49
		6	3.50
	256	2	2.2
	259	5	3.29
1967	45	1	8.10
	52	2	13.11
	169	1	3.40
		2, 3	3.37
		3(1.08)	3.37
		4, 5	3.37
		8	3.39
		8—10	3.40

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
		9, 10	3.39
		11—13	3.40
		12, 13	3.40
		14	3.41
		16, 17	3.45
	170	2, 3	6.28, 6.29
		4	6.35
	298	1	13.77
	299	2, 3	13.5, 13.6
	300	1	13.75
1968	310	1	10.33
	430	1	3.37
	461	1	8.10
	468	1	3.61
	476	1	3.1
			3.95
		2	3.1.1
		1	3.102
1969	82	2	2.1(40)
			4.50
		3	11.2
		4	1.1, 1.2
		5	2.1(2)
		6	13.67
	102	2	4.27
			5.39
		3	4.28
		4	3.78
			4.37
		5	4.40
		6, 7	4.29, 4.30
	155	2	13.2.1
	165	1	4.4
			13.66
			13.75, 13.76
			13.84
	180	2	3.78
			4.37
		3	4.30

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
1970	280	1	10.26
	303	1	18.2
	307	1	18.1
		2—6	18.3—18.7
		7	18.2
		8	18.8
	318	1	10.26
	343	1	8.10
		2	3.6
			3.89
		3	4.23
		3, 4	8.10
1971	137	2—4	3.47
		5	3.37
		6, 7	3.45
	149	1	13.64
			13.67
			13.74—13.76
			13.80
1972	402	1	3.37
		2	3.39, 3.40
			3.47
		3	3.41
		4	3.40
	403	1	3.45
	406	1	13.64
			13.66, 13.67
			13.70
			13.74, 13.75
	407	1	13.75
	496	1	13.76
1985	133	2	6.153

CHARTER COMPARATIVE TABLE (PUBLIC ACTS)

This table shows the location of the Public Acts pertaining to the City.

YEAR	*CHAPTER*	*SECTION*	*SECTION(S) THIS CHARTER*
1890	1	8	15.1
		23	3.111
1895	133	1	6.152
		4	6.155

CHARTER COMPARATIVE TABLE (ORDINANCES)

This table gives the location within this Charter of those ordinances adopted since the 1995 Chattanooga City Code (and its Supplement No. 1 thereto) and ratified by the vote of the people. Ordinances adopted prior to such date were incorporated into the 1995 Chattanooga City Code. Ordinances not listed herein have been omitted as repealed, superseded, or not of a general and permanent nature.

Ordinance Number	Adoption Date/ Ratification Date	Section(s)		Section(s) This Charter
10739	08-18-98/11-03-98	1(1)		3.35—3.50
10740	08-18-98/11-03-98	1(1)—(2)		5.38—5.39
10741	08-18-98/11-03-98	1(1)		2.13
10742	08-18-98/11-03-98	1(1)—(2)		3.95, 3.96, 4.4, 4.38, 5.9, 6.15, 6.128, 6.138, 8.13, 8.37, 10.3, 10.4, 11.24, 11.25, 14.4, 15.23
10743	08-18-98/11-03-98	1(1)—(4)		13.1, 13.2, 13.2.1, 13.3, 13.4, 13.6, 13.8, 13.9, 13.11, 13.12, 13.14, 13.15, 13.16(new), 13.26-13.30
10744	08-18-98/11-03-98	1(1)		13.44—13.49
10745	08-18-98/11-03-98	1(1)—(3)		App. 1 — par. 13(a), 3.64, 3.65, 3.76, 3.87, 3.88, 3.89
10746	08-18-98/11-03-98	1(1)		8.40(new)
10747	08-18-98/11-03-98	1(1)		13.76(a)
11009	05-09-00/10-02-00	1		8.21
11010	05-09-00/10-02-00	1		4.21
11011	05-09-00/10-02-00	1(1)—(13)		3.37, 3.40, 3.41, 3.41.1, 3.47, 3.51, 3.52
11012	05-09-00/10-02-00	1(1)—(13)		13.66, 13.74, 13.75, 13.76, 13.81, 13.86
11013	05-09-00/10-02-00	1		15.5
11014	05-09-00/10-02-00	1		4.29
11018	05-16-00/10-02-00	1(1)		3.78, 4.37, 4.38
12566	01-24-12/08-07-12	1	Rpld	8.15
				8.33(c)
13039	04-19-16/11-08-16	1	Rpld	8.15
13192	07-11-17/11-03-20	1		3.1
13344	08-07-18/11-06-18	1	Rpld	4.1—4.9
		2	Added	4.1—4.3
13555	05-19-20/11-03-20	1	Added	13.17

Ordinance Number	Adoption Date/ Ratification Date	Section(s)	Section(s) This Charter
14168	11-12-24	1	3.1.1

PART II

CITY CODE

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Provisions considered continuations of existing ordinances.
Sec. 1-4. Catchlines of sections.
Sec. 1-5. Repeal of ordinance not to affect liabilities.
Sec. 1-6. Repeal not to revive former ordinance.
Sec. 1-7. Severability of provisions of Code.
Sec. 1-8. General penalty; exceptions; continuing violations.
Sec. 1-9. Reserved.
Sec. 1-10. Enforcement of city's right-of-entry.
Sec. 1-11. Supplementation of Code.
Sec. 1-12. Ordinances not affected by adoption of Code.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in the following chapters and sections shall constitute and be designated as the "City Code of the City of Chattanooga, Tennessee" and may be so cited. The Code may also be cited as "Chattanooga City Code."
(Code 1986, § 1-1)

Sec. 1-2. Definitions and rules of construction.

In the construction of this Code and of all ordinances of the city, the following definitions and rules of construction shall be observed, unless they are inconsistent with the manifest intent of the city council or the context clearly requires otherwise:

Bond. When a bond is required, an undertaking in writing shall be sufficient.

City. The words "city" or "the city" shall mean the City of Chattanooga, in the County of Hamilton and State of Tennessee.

Computation of time. The time within which an act is to be done shall be computed by excluding the first and including the last day, unless the last day is a Saturday, a Sunday or a legal holiday, and then it shall also be excluded.
State law reference—Similar provisions, T.C.A., § 1-3-102.

Council. The words "council" or "city council" shall mean the City Council of the City of Chattanooga.

County. The word "county" shall mean the County of Hamilton in the State of Tennessee.

Gender. Words importing the masculine gender shall include the feminine and neuter.
State law reference—Similar provisions, T.C.A., § 1-3-104.

In the city. The words "in the city" shall mean and include any territory jurisdiction over which the exercise of its regulatory power has been conferred on the city by public or private law.
State law reference—Police powers outside city, T.C.A., § 6-54-301.

Joint authority. All words giving a joint authority to three (3) or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.
State law reference—Similar provisions, T.C.A., § 1-3-106.

Month. The word "month" shall mean a calendar month.
State law reference—Similar provisions, T.C.A., § 1-3-105(16).

Number. Words used in the singular shall include the plural and the plural shall include the singular number.
State law reference—Similar provisions, T.C.A., § 1-3-104.

Oath. The word "oath" shall include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."
State law reference—Similar provisions, T.C.A., § 1-3-105(18).

Or, and. The word "or" may be read as "and" and the word "and" as "or," where the sense requires it.

Owner. The word "owner," applied to a building or land, shall include any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such building or land.

Person. The word "person" shall include a corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual.
State law reference—Similar provisions, T.C.A., § 1-3-105(19).

Personal property. The words "personal property" include money, goods, chattels, things in action, evidences of debt on every species of property except real property, as defined in this section.

State law reference—Similar provisions, T.C.A., § 1-3-105(20).

Preceding, following. The words "preceding" and "following" shall mean next before and next after respectively.

Property. The word "property" shall mean both personal and real property.

State law reference—Similar provisions, T.C.A., § 1-3-105(23).

Real property. The words "real property" shall mean lands, tenements and hereditaments and all rights thereto and interests therein, equitable as well as legal.

State law reference—Similar provisions, T.C.A. § 1-3-105(20).

Shall. The word "shall" shall be deemed to be mandatory.

Sidewalk. The word "sidewalk" shall mean any portion of a street between the curb line and the adjacent property line intended for the use of pedestrians.

Signature, subscription. The words "signature" and "subscription" shall include a mark when a person cannot write, the name being written near the mark and witnessed.

State law reference—Similar provisions, T.C.A., § 1-3-105(25,27).

State. The word "state" shall mean the State of Tennessee.

Street. The word "street" shall mean and include streets, avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and the approaches thereto and all other public thoroughfares in the city.

Tenant, occupant. The words "tenant" and "occupant" applied to a building or land, shall mean any person who occupies the whole or a part of such building or land, whether alone or with others.

Tense. Words used in the past or present tense shall include the future as well as the past and present, and the future tense includes the present.

State law reference—Similar provisions, see T.C.A. § 1-3-104.

Writing, written. The words "writing" and "written" shall include printing, typewriting, engraving, lithography and any other mode of representing words and letters.

State law reference—Similar provisions, see T.C.A. § 1-3-105(30).

Year. The word "year" shall mean a calendar year.

State law reference—Similar provisions, T.C.A. § 1-3-105(31).

(Code 1986, § 1-2; Ord. No. 9654, §§ 1, 2, 1-6-92)

Sec. 1-3. Provisions considered continuations of existing ordinances.

The provisions appearing in this Code, so far as they are the same as those of the City Code and ordinances existing at the time of adoption of this Code, shall be considered as a continuation thereof and not as new enactments.

(Code 1986, § 1-3)

Sec. 1-4. Catchlines of sections.

The catchlines of the sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the sections and shall not be deemed or taken to be titles of such sections, nor as any part of any section, nor, unless expressly so provided, shall they be so deemed when any section, including its catchlines, is amended or reenacted.

(Code 1986, § 1-4)

Sec. 1-5. Repeal of ordinance not to affect liabilities.

No new ordinance shall be construed to repeal a former ordinance as to any offense committed against the former ordinance or as to any act done or penalty, forfeiture or punishment incurred, or as to any right accrued or claim arising under the former ordinance, or in any way whatever to affect any such offense or act committed or done, penalty, forfeiture or punishment incurred, right accrued, or claim arising before the new ordinance takes effect, save only that the proceedings thereafter had shall conform, so far as practicable, to the ordinance in force at the time of such proceedings.
(Code 1986, § 1-5)

Sec. 1-6. Repeal not to revive former ordinance.

When an ordinance which has repealed another shall itself be repealed, the previous ordinance shall not be revived without express words to that effect.
(Code 1986, § 1-6)

Sec. 1-7. Severability of provisions of Code.

In any part, section, subsection, sentence, clause, or phrase of this Code or any code adopted by reference in this Code is for any reason declared to be unconstitutional or otherwise invalid by any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Code or any code adopted by reference in this Code.
(Code 1986, § 1-7)

Sec. 1-8. General penalty; exceptions; continuing violations.

(a) Wherever in this Code or in any ordinance or rule or regulation promulgated by any officer of the city under authority vested in him by law or ordinance, any act is prohibited or is declared to be unlawful or a misdemeanor, or the doing of any act is required, or the failure to do any act is declared to be unlawful, the violation of any such provision of this Code or any such ordinance, rule or regulation shall be punished by a monetary penalty and forfeiture not exceeding five hundred dollars ($500.00).

(b) Notwithstanding the provisions of subsection (a), the penalties set forth in Chapter 4 and in Sections 24-304, 24-322 and 24-329 of this Code are not affected by this Section 1-8.

(c) Each day any violation of this Code or any such ordinance, rule or regulation continues shall constitute a separate offense.
(Code 1986, § 1-8; Ord. No. 9802, § 1, 10-20-92)

State law reference—Penalty for violation of home rule municipal ordinances, T.C.A. § 6-54-306.

Sec. 1-9. Reserved.

Editor's note—Ord. No. 13386, § 1, adopted Oct. 23, 2018, repealed § 1-9, which pertained to commitment required for nonpayment of fine and costs and derived from Code 1986, § 1-9.

Sec. 1-10. Enforcement of city's right-of-entry.

If the owner, occupant or person in charge of any premises in the city, to which the city is given a right-of-entry for enforcement or administration purposes by any provision of this Code or any code or regulation adopted by this Code, refuses entry to the person responsible for enforcement of such provision, such person shall seek a warrant or use such other legal procedures as shall be advisable and reasonably necessary to discharge his duties.
(Code 1986, § 1-10)

Sec. 1-11. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city council. A supplement to the Code shall include all substantive parts of permanent and general ordinances passed by the city council during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified Code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be or to "sections _____ to _____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code); and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but, in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

(Code 1986, § 1-11)

Sec. 1-12. Ordinances not affected by adoption of Code.

The repeal provided for in section 2 of the ordinance adopting this Code shall not affect any of the following:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of the ordinance adopting this Code;

(2) Any ordinance or resolution promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligation assumed by the city;

(3) Any ordinance or resolution fixing salaries or compensation of officers or employees of the city;

(4) Any appropriation ordinance or resolution;

(5) Any right or franchise granted by the council to any person, firm or corporation;

(6) Any ordinance or resolution dedicating, naming, establishing, locating, relocating, opening, closing, paving, widening, vacating, etc., any street or public way in the city;

(7) Any ordinance or resolution establishing and prescribing the street grades of any streets in the city;

(8) Any ordinance or resolution providing for local improvements or assessing taxes therefor;

(9) Any ordinance annexing property to the city;

(10) Any zoning ordinance of the city or amendments thereto;

(11) Any ordinance levying taxes;

(12) Ordinance No. 7034, providing regulations for professional fund solicitors, and any amendments thereto;

(13) Any subdivision ordinance or amendments thereto;

(14) Any ordinance enacted after February 11, 1986;

nor shall such repeal be construed to revive any ordinance or part of an ordinance that has been repealed by a subsequent ordinance which is repealed by the ordinance adopting this Code.
(Code 1986, § 1-12)

Chapter 2

ADMINISTRATION*

Article I. In General

Sec. 2-1. Corporate seal.
Sec. 2-2. Mayor to report neglect or misconduct of city officers.
Sec. 2-3. Hours of operation; Holidays; Work Schedules; and Meal Periods.
Sec. 2-4. Officer to furnish new bond where original bond defective or security insufficient.
Sec. 2-5. Departmental inventories of city property.
Sec. 2-6. Records, documents open to public inspection.
Sec. 2-7. City authorized to contribute to pension funds created, operated by labor organizations.
Sec. 2-8. City and employees contribution rate for general pension plan.
Sec. 2-9. Reserved.
Sec. 2-10. Reserved.
Sec. 2-11. Alternate site for City Council meetings.
Sec. 2-12. Boards and commissions—Removal of members.
Secs. 2-13—2-25. Reserved.

Article II. Officers

Division 1. Generally

Secs. 2-26—2-40. Reserved.

Division 2. City Attorney

Sec. 2-41. Attendance and services at meetings of city council.
Sec. 2-42. To be notified of service of process or notices.
Sec. 2-43. Docket and opinion book.
Sec. 2-44. When other counsel to represent city.
Sec. 2-45. Qualifications, duties of assistants.
Sec. 2-46. Appointment of subordinates.
Sec. 2-47. Investigator for office of city attorney.
Sec. 2-48. Payment for legal services.
Sec. 2-49. Legal liability claims.
Secs. 2-50—2-60. Reserved.

Division 3. City Finance Officer

Sec. 2-61. Oath of office.
Sec. 2-62. Official bond.
Sec. 2-63. Custody of public records.

***Cross references—**Air pollution control board, § 4-6; beer board, § 5-16 et seq.; control of airport, Ch. 8; beautification commission, § 9-16 et seq.; city court clerk, § 12-36 et seq.; civil defense, Ch. 13; board of electrical examiners, § 14-46 et seq.; fire department, § 16-26 et seq.; police department, § 16-41 et seq.; bureau of fire prevention, § 17-16 et seq.; board of examiners of gasfitters and installers, § 19-66 et seq.; metropolitan transit authority, Ch. 23; administration of traffic rules and regulations, § 24-61 et seq.; Miller Park board, § 26-71 et seq.; board of examiners of plumbers, § 27-36 et seq.

Sec. 2-64. Resolution book.
Sec. 2-65. Payment for publication of ordinances granting franchises.
Sec. 2-66. Franchise book.
Sec. 2-67. Assistant city finance officer.
Sec. 2-68. Budget officer; assistant budget officer.
Secs. 2-69—2-80. Reserved.

Division 4. Engineer

Sec. 2-81. Duty to prepare map.
Sec. 2-82. Duty to survey streets.
Sec. 2-83. Duty to establish, keep record of grades.
Sec. 2-84. Reserved.
Sec. 2-85. Maps showing rights-of-way granted by city.
Sec. 2-86. Profile of grades to be made.
Secs. 2-87—2-100. Reserved.

Division 5. Treasurer

Sec. 2-101. Offices of treasurer and tax collector consolidated.
Sec. 2-102. Official bond.
Sec. 2-103. Extra compensation prohibited.
Sec. 2-104. Tax collections and receipts.
Sec. 2-105. Assistant treasurer—office created; appointment.
Sec. 2-106. Same—Duties.
Sec. 2-107. Official bonds of assistant treasurer and deputies.
Sec. 2-108. Licenses and permits—Issuance; posting.
Sec. 2-109. Licenses and permits.
Sec. 2-110. Partial Payments of property taxes and water quality fees.
Sec. 2-111. Senior tax freeze program.
Secs. 2-112—2-230. Reserved.

Article III. Human Resources—Miscellaneous

Division 1. Other Post-Employment Benefits Program

Sec. 2-231. Definitions.
Sec. 2-232. Establishment of trust.
Sec. 2-233. Construction.
Sec. 2-234. Benefits.
Sec. 2-235. General duties.
Sec. 2-236. Investments.
Sec. 2-237. Contributions.
Sec. 2-238. Multiple plans.
Sec. 2-239. Disbursements and expenses.
Sec. 2-240. Accounting.
Sec. 2-241. Miscellaneous provisions.
Sec. 2-242. Amendment and termination.
Sec. 2-243. Trustees and successor trustees.
Sec. 2-244. Limited effect of trust.

Sec. 2-245. Protective clause.
Secs. 2-246—2-250. Reserved.

Division 2. Social Security Generally

Sec. 2-251. Policy and purpose.
Sec. 2-252. Agreements authorized.
Sec. 2-253. Withholdings.
Sec. 2-254. Appropriations.
Sec. 2-255. Records, reports.
Sec. 2-256. Employees excluded.
Secs. 2-257—2-260. Reserved.

Division 3. Social Security for Educational Personnel

Sec. 2-261. Policy and purpose.
Sec. 2-262. Agreements authorized.
Sec. 2-263. Reserved.
Sec. 2-264. Appropriations.
Sec. 2-265. Records, reports.
Sec. 2-266. Employees excluded.
Sec. 2-267. Paid leave for active-duty training.
Secs. 2-268—2-300. Reserved.

Division 4. General Pension Plan

Sec. 2-301. General Pension Plan.
Sec. 2-302. Contents of Plan.
Sec. 2-303. Definitions.
Sec. 2-304. Conditions of eligibility; non-eligibility.
Sec. 2-305. Financing of plan.
Sec. 2-306. Benefits; conditions.
Sec. 2-307. Benefits; methods of calculation.
Sec. 2-308. Benefits; method of calculation with Social Security Offset.
Sec. 2-309. Optional retirement benefits.
Sec. 2-310. Amendment and termination of plan.
Sec. 2-311. Administration of plan.
Sec. 2-312. Additional rights and powers.
Sec. 2-313. Trust management.
Sec. 2-314. Miscellaneous.
Sec. 2-315. Other pension systems closed to new employees.
Sec. 2-316. Amendment to Ch. 73, Priv. Acts 1959; effect of plan thereon.
Sec. 2-317. Repeal of Ch. 397, Priv. Acts 1961.
Sec. 2-318. Deferred Retirement Option Plan ("DROP").
Sec. 2-319. Amendments by ordinance.
Sec. 2-320. Compliance with requirements of Internal Revenue Code.
Sec. 2-321. Amendments at request of Internal Revenue Service.
Sec. 2-322. Qualified domestic relations orders and orders for assignment of support.
Secs. 2-323—2-399. Reserved.

Division 5. Fire and Police Pension Fund

Sec. 2-400. Appropriation to pension fund of percentage of salaries; control of fund; investments.
Sec. 2-401. Tax levy for pensions.
Sec. 2-402. Assessment of employees.
Sec. 2-403. Sum to be collected, paid over to Custodian Bank when employee contribution deducted.
Sec. 2-404. Proceeds from sale of unclaimed property to be placed in pension fund.
Sec. 2-405. Reserved.
Sec. 2-406. Board of Trustees of pension fund-created; membership; term of office; vacancies.
Sec. 2-407. Same—Organization; officers; compensation of secretary.
Sec. 2-408. Same—To hear and decide applications for pensions and benefits.
Sec. 2-409. Same—Supervision of retired, disabled, etc., employees.
Sec. 2-410. Disability or death benefits.
Sec. 2-411. Service retirement pension; maximum pension benefits; death benefit.
Sec. 2-412. Reserved.
Sec. 2-413. Refund to member terminating employment.
Sec. 2-414. Benefits exempt from debts of employee, may not be garnished, etc.
Sec. 2-415. Termination of employment after ten (10) years of service; vesting; death after termination.
Sec. 2-416. Reserved.
Sec. 2-417. Cost of living adjustments to pension benefits.
Sec. 2-418. Optional retirement benefits.
Sec. 2-419. Definition of terms.
Sec. 2-420. City court costs for benefit of Fire and Police Pension Fund.
Sec. 2-421. Credited service under general pension plan.
Sec. 2-422. Deferred Retirement Option Provision.
Sec. 2-423. Modified Deferred Retirement Option Provision.
Sec. 2-424. Actuarial and Experience Study Review.
Sec. 2-425. Compliance with requirements of Internal Revenue Code.
Secs. 2-426—2-430. Reserved.

Division 6. Extracurricular Activities

Sec. 2-431. Outside employment.
Sec. 2-432. Regulation of outside employment so as to prevent conflicts of interest.
Secs. 2-433—2-500. Reserved.

Article IV. Finance

Sec. 2-501. Fiscal year.
Sec. 2-502. Reserved.
Sec. 2-503. Transfer of unencumbered balances.
Sec. 2-504. Supervisory powers of city finance officer.
Sec. 2-505. Accounting procedure; weekly reports.
Sec. 2-506. Monthly and annual reports.
Sec. 2-507. Audits required.
Sec. 2-508. Audit of finance officer's accounts.
Sec. 2-509. Action where audit or investigation reveals indebtedness by officer.
Sec. 2-510. Accounts for appropriations and loan authorizations.
Sec. 2-511. Records of status of city's bank accounts.
Sec. 2-512. Finance officer to keep record of city treasurer's receipts and disbursements.

Sec. 2-513. Special accounts with respect to state and federal moneys received.
Sec. 2-514. Treasurer's accounts.
Sec. 2-515. Custody of cash book and tax duplicates.
Sec. 2-516. Record of daily cash balance.
Sec. 2-517. Deposit of checks received; dishonored checks.
Sec. 2-518. Duplicate deposit slips required; where filed.
Sec. 2-519. Record and report of bank balances.
Sec. 2-520. Issuance of warrants; withdrawal of funds.
Sec. 2-521. Withholding percentage of salary or claims due, for payment of delinquent taxes.
Sec. 2-522. Checks to be countersigned by mayor or city finance officer.
Sec. 2-523. Debt service fund.
Sec. 2-524. Manpower development and training fund.
Sec. 2-525. Capital expenditures.
Sec. 2-526. Appropriation and disbursement of municipal funds to nonprofit charitable and civic organizations.
Secs. 2-527—2-540. Reserved.

Article V. Purchases, Contracts and Property Disposition

Sec. 2-541. Purchasing department created; supervision; subordinate personnel.
Sec. 2-542. Duties, powers of purchasing agent.
Sec. 2-543. Emergency purchases.
Sec. 2-543.5. Fuel purchase in the open market.
Sec. 2-544. Unclaimed personal property—Forfeiture; notice to owner.
Sec. 2-545. Methods of disposal of Unclaimed Personal Property.
Sec. 2-546. Same—Disposition of proceeds of sale.
Sec. 2-547. Purchase requisitions required; approval of form.
Sec. 2-548. Signing, custody of contracts.
Sec. 2-549. Approval not required for expenditures not exceeding fifty thousand dollars ($50,000.00).
Sec. 2-550. Petty cash funds.
Sec. 2-551. Approval of expenditures exceeding fifty thousand dollars ($50,000.00).
Sec. 2-552. When bids required; advertisements for bids.
Sec. 2-553. Submission, opening, acceptance of bids.
Sec. 2-554. Competitive sealed proposals.
Sec. 2-555. Exception for utility charges.
Sec. 2-556. Exception for professional services.
Sec. 2-557. Contents of bid proposals.
Sec. 2-558. Specifications attached to contracts.
Sec. 2-559. Compliance prerequisite to paying warrants.
Sec. 2-560. Public improvement contracts.
Sec. 2-561. Force account or cost-plus contracts for public improvements.
Sec. 2-562. Contractor's bond.
Sec. 2-563. Certificate that funds available required.
Sec. 2-564. Obligations without funds declared void; liability.
Sec. 2-565. Determination of available funds.
Sec. 2-566. Disposal of surplus real property.
Sec. 2-567. When negotiated or private sales authorized.
Secs. 2-568—2-580. Reserved.

Article VI. Reserved

Secs. 2-581—2-600. Reserved.

Article VII. Municipal Planning Commission

Sec. 2-601. Designated.
Sec. 2-602. Membership.
Sec. 2-603. General duties.
Sec. 2-604. Disbursement of funds.
Sec. 2-605. Authority to adopt bylaws; purchases and contracts regulated.
Secs. 2-606—2-620. Reserved.

Article VIII. Inspection Department

Sec. 2-621. Composition.
Sec. 2-622. Building inspector and assistant—Powers and duties.
Sec. 2-623. Same—Conflict of interest prohibited.
Sec. 2-624. Plumbing inspector.
Sec. 2-625. Construction Board of Adjustment and Appeals for Building, Residential, Electrical, Fire, Fuel Gas, Life Safety, Mechanical and Plumbing codes.
Sec. 2-626 Mechanical codes review committee.
Sec. 2-627. Charge for issuance of permits.
Secs. 2-628—2-640. Reserved.

Article IX. Chattanooga Department of Early Learning

Sec. 2-641. Created; purpose.
Sec. 2-642. City council designated policy body; powers.
Sec. 2-643. Head Start Governing Board—Created; function; composition.
Sec. 2-644. Same—Terms; vacancies.
Sec. 2-645. Same—Limited scope of board function.
Sec. 2-646. Same—Bylaws; officers; executive committee.
Sec. 2-647. Reserved.
Sec. 2-648. Administrator.
Sec. 2-649. Administrative control of department; powers of mayor, administrator.
Sec. 2-650. Financial affairs; receipts and disbursements.
Secs. 2-651—2-660. Reserved.

Article X. Supplemental Pension Benefits

Sec. 2-661. Reserved.
Sec. 2-662. Administration of fund by board of directors.
Sec. 2-663. Procedure for determining supplemental benefit.
Sec. 2-664. Application for supplemental benefit; termination of benefits.
Sec. 2-665. Application filing date; payment of benefit.
Sec. 2-666. Annual reapplication required.
Sec. 2-667. "Entitlement date" defined.
Sec. 2-668. When benefits payable.
Sec. 2-669. Termination upon death of recipient.
Sec. 2-670. Studies of city pension systems; purpose.
Sec. 2-671. Benefit increases.
Secs. 2-672—2-690. Reserved.

Article XI. Suspension and Debarment of Contractors

Sec. 2-691. Authority of city to take action; grounds for debarment or suspension.
Sec. 2-692. Instituting debarment process.
Sec. 2-693. Instituting suspension process.
Sec. 2-694. Debarment or suspension hearing.
Sec. 2-695. Debarred and suspended bidders list.
Sec. 2-696. Petition for early lifting of debarment.
Secs. 2-697—2-710. Reserved.

Article XII. Department of Equity and Community

Sec. 2-711. Created.
Sec. 2-712. Purpose; functions.
Sec. 2-713. Equity board—Created; function; composition.
Sec. 2-714. Same—Terms; vacancies.
Sec. 2-715. Same—Limited scope of board function.
Sec. 2-716. Same—Bylaws; officers; executive committee.
Sec. 2-717. Administrator.
Sec. 2-718. Administrative control of department; powers of mayor, administrator.
Sec. 2-719. Financial affairs; receipts and disbursements.
Secs. 2-720—2-749. Reserved.

Article XIII. Code of Ethics

Sec. 2-750. Applicability.
Sec. 2-751. Definition of "personal interest."
Sec. 2-752. Disclosure of personal interest by official with vote.
Sec. 2-753. Disclosure of personal interest in nonvoting matters.
Sec. 2-754. Acceptance of gratuities, etc.
Sec. 2-755. Use of information.
Sec. 2-756. Use of municipal time, facilities, etc.
Sec. 2-757. Use of position or authority.
Sec. 2-758. Outside employment.
Sec. 2-759. Ethics Officer.
Sec. 2-760. Ethics Committee.
Sec. 2-761. Complaints and Complaint Procedures.
Sec. 2-762. Reporting; whistleblower protection; abuse of process; complicity.
Sec. 2-763. Violations.
Sec. 2-764. Conduct during meetings.
Sec. 2-765. Meeting attendance.
Sec. 2-766. Ethics Training.
Sec. 2-767. Ethics Pledge.
Secs. 2-768—2-774. Reserved.

Article XIV. Audit Committee

Sec. 2-775. Audit Committee.
Sec. 2-776. Duties of Audit Committee.
Sec. 2-277. Subversion of Audit Process.
Sec. 2-778. City Council Auditor.

Secs. 2-779, 2-780. Reserved.

Article XV. Whistle Blower Protection

Sec. 2-781. Purpose.
Sec. 2-782. Audit Committee.
Sec. 2-783. Confidential Reports.
Sec. 2-784. Employee protection.
Secs. 2-785—2-789. Reserved.

Article XVI. Chattanooga Department of Community Development

Sec. 2-790. Created; purpose.
Sec. 2-791. Office of Family Empowerment Advisory Board—Created; function; composition.
Sec. 2-792. Office of Family Empowerment Advisory Board—Terms; vacancies.
Sec. 2-793. Office of Family Empowerment Advisory Board—Limited scope of Board function.
Sec. 2-794. Bylaws; officers; executive committee.
Sec. 2-795. Administrator.
Sec. 2-796. Administrative control of department; powers of mayor, administrator.
Sec. 2-797. Financial affairs; receipts and disbursements.

ARTICLE I. IN GENERAL

Sec. 2-1. Corporate seal.

(a) The official seal of the city shall be circular, bearing in circular form around the outer portion thereof the words "Corporation Seal" and a drawing presenting a view of downtown Chattanooga and a part of Moccasin Bend as seen from the vantage of Point Park on Lookout Mountain, such vantage being represented by the drawing of a cannon on a rock within the lower left-hand quadrant of the outer and inner portion of the seal. It shall be unlawful for any person to use any other seal as the corporate seal of the City of Chattanooga, Tennessee; provided, however, that, it shall be lawful for the city finance officer and other officers of the city to use the former seal of the City of Chattanooga, Tennessee, as authorized by Ordinance No. 618, until such time as the seal described in this section is prepared; and the presence, after the effective date of this section [June 15, 1975], of such former seal on any document, correspondence, affidavit, certification, bond, voucher or other instrument on which the seal must be affixed according the law shall not affect the validity of such instrument.

(b) The official seal of the city adopted and described in this section shall be reproduced for all purposes in substantially the same form and appearance as shown on the copy of the artist's rendering of the original made a part hereof by reference.
(Code 1986, § 2-1; Ord. No. 9654, § 8, 1-6-92)

Sec. 2-2. Mayor to report neglect or misconduct of city officers.

The mayor shall report to the city council any violation or neglect of duty on the part of any officer which may come to his knowledge.
(Code 1986, § 2-2; Ord. No. 9654, § 2, 1-6-92)

Sec. 2-3. Hours of operation; Holidays; Work Schedules; and Meal Periods.

(a) Offices of City government shall be opened for transaction of public business from 8:00 a.m. until 4:30 p.m. except on Saturday, Sunday and when City Hall and related offices are closed unless otherwise designated.

(b) City Hall and related offices shall be closed on the following City recognized holidays:

PAID HOLIDAY SCHEDULE

1) New Year's Day January 1
2) Martin Luther King's Birthday Third Monday in January
3) Good Friday Friday preceding Easter Sunday
4) Memorial Day Last Monday in May
5) Juneteenth Independence Day June 19
6) Independence Day July 4
7) Labor Day First Monday in September
8) Veteran's Day November 11
9) Thanksgiving Day Fourth Thursday in November
10) Friday After Thanksgiving Day in November
11) Christmas Eve December 24

12) Christmas Day December 25

When holidays fall on a Saturday, then City Hall and related offices shall be closed on the preceding day (Friday). When holidays fall on a Sunday, then City Hall and related offices shall be closed the next day (Monday).

(c) All employee work weeks and work periods as required by the Fair Labor Standards Act shall be established by department administrators and made available in writing to employees and filed with the Departments of Finance and Personnel.

(d) Each employee shall have a minimum of a thirty (30) minute unpaid meal period (one (1) hour maximum) if scheduled to work six (6) hours consecutively. The meal period shall not be scheduled within the first or last hour of the scheduled work day or shift unless specifically authorized by the immediate supervisor on a sporadic basis.

(e) Department heads are to ensure that all regular employees work their scheduled standard hours.
(Code 1986, § 2-3; Ord. No. 12414, § 1, 7-20-10; Ord. No. 13671, § 1, 5-18-21)

Sec. 2-4. Officer to furnish new bond where original bond defective or security insufficient.

If at any time an official bond becomes defective for any reason or the sureties thereon have become insufficient, the internal auditor shall notify at once the officer whose duty it is to furnish a new bond in accordance with the provisions of section 2-3. If such officer fails to comply within ten (10) days after being so notified, his office shall automatically become vacant, and such vacancy shall be filled as provided by law.
(Code 1986, § 2-4; Ord. No. 9654, § 3, 1-6-92)

Sec. 2-5. Departmental inventories of city property.

Each department and agency of the city shall, under the supervision of the city finance officer, keep a perpetual inventory of the city property under its control, and shall furnish such reports in relation thereto as the city finance officer may require.
(Code 1986, § 2-5; Ord. No. 9654, § 4, 1-6-92)

Sec. 2-6. Records, documents open to public inspection.

All accounts and records, including papers, books, documents, memoranda and reports of all kinds in any departments or offices of the city shall be open to public inspection at all reasonable times except as otherwise provided by state statutes.
(Code 1986, § 2-6)

Sec. 2-7. City authorized to contribute to pension funds created, operated by labor organizations.

Contributions during each fiscal year, in the sum of twenty cents ($0.20) per hour, fifteen cents ($0.15) per hour, and fifteen cents ($0.15) per hour, may be paid to the Central Pension Fund of the International Union of Operating Engineers and Participating Employers; Central States Southeast and Southwest Areas Pension Fund; and Laborers' International Union of North America National (Industrial) Pension Fund, respectively, for pensions coverage of certain hourly employees of the city. Specific payments, whether past due or to become due, or contracts for future payments, shall be authorized by resolution adopted by the city council.
(Code 1986, § 2-7; Ord. No. 9654, § 2, 1-6-92)

Cross references—City personnel regulations generally, § 2-136 et seq.; social security for city employees generally, § 2-231 et seq.; social security for educational personnel, § 2-251 et seq.; supplemental pension benefits, § 2-661 et seq.

Sec. 2-8. City and employees contribution rate for general pension plan.

(a) The city contribution rate for the general pension plan shall be and is hereby established at four and one-half percent (4½%) of the salaries and wages of the covered participants in the general pension plan.

(b) The employee contribution rate shall be and is hereby set at an amount equal to two percent (2%) of the amount of salary and wages covered by social security and five percent (5%) of the amount of salaries and wages not covered by social security.
(Code 1986, § 2-8)

Cross references—City contribution to firemen's and policemen's insurance and pension fund, § 16-8; increase in pension benefits, § 16-8.1.

Sec. 2-9. Reserved.

Editor's note—Ord. No. 13386, § 2, adopted Oct. 23, 2018, repealed § 2-9, which pertained to City relief bureau—Duties of mayor and derived from Code 1986, § 2-9; Ord. No. 9654, § 5, 1-6-92.

Sec. 2-10. Reserved.

Editor's note—Ord. No. 13386, § 2, adopted Oct. 23, 2018, repealed § 2-10, which pertained to Same—Truthfulness of applicant's statements; certification; penalty for violation and derived from Code 1986, § 2-10.

Sec. 2-11. Alternate site for City Council meetings.

The Hamilton County Board of Commissioners Assembly Room, located at the Courthouse at 7th and Georgia Avenues, is hereby designated by the City Council of the City of Chattanooga as an alternate site for meetings of the City Council of the City when in joint session with the Hamilton County Board of Commissioners.
(Code 1986, § 2-11; Ord. No. 9654, § 2, 1-6-92)

Editor's note—Ordinance No. 8646, enacted June 10, 1986, provided for amendment of Part II of the Chattanooga City Code, but did not specify the manner of such amendment; hence, codification of the substantive provisions of § 1 of the ordinance as § 2-11 was at the discretion of the editor.

Sec. 2-12. Boards and commissions—Removal of members.

(a) The chairman of any duly authorized board or commission shall notify the Mayor in writing of any member's failure to attend three (3) consecutive meetings, or if a member misses more than fifty percent (50%) of the meetings in any twelve (12) month period.

(b) Any duly appointed member of a board or commission may be removed by the Mayor, after notice to the City Council, for neglect of duty, or, malfeasance. Neglect of duty may be determined if a member of a board or commission fails to attend three (3) consecutive meetings or misses more than fifty percent (50%) of the meetings during any twelve (12) month period.
(Ord. No. 10849, § 1, 05-11-99)

Secs. 2-13—2-25. Reserved.

ARTICLE II. OFFICERS*

DIVISION 1. GENERALLY

Secs. 2-26—2-40. Reserved.

DIVISION 2. CITY ATTORNEY†

Sec. 2-41. Attendance and services at meetings of city council.

The city attorney shall attend all regular special meetings of the city council and shall give his advice and counsel to the council whenever it is requested.
(Code 1986, § 2-41; Ord. No. 9654, § 6, 1-6-92)

Sec. 2-42. To be notified of service of process or notices.

Whenever any process or notice shall be served on the mayor in any legal proceeding against the city, he shall immediately deliver the same to the city attorney or notify him that he has been served therewith.
(Code 1986, § 2-42)

Sec. 2-43. Docket and opinion book.

The city attorney shall keep a docket containing a complete record of all suits in which the city may be interested, and shall keep a further book in which shall be recorded such opinions as he may be called upon to furnish to any of the departments or agencies of the city.
(Code 1986, § 2-43)

Sec. 2-44. When other counsel to represent city.

The city attorney, when any suit is brought against the city which he is incompetent to defend because of former connection with the plaintiffs or for any other reasons, shall report the fact at once to the mayor, and the city attorney shall engage the services of competent counsel to defend such suit.
(Code 1986, § 2-44; Ord. No. 9654, § 7, 1-6-92)

Sec. 2-45. Qualifications, duties of assistants.

Each assistant city attorney shall be a practicing attorney, and shall be a resident of the state licensed to practice in the state. The assistant city attorney shall be subordinate to and shall assist the city attorney in the performance of the duties incident to his office.
(Code 1986, § 2-45)

Sec. 2-46. Appointment of subordinates.

The city attorney shall appoint and/or contract for the services of assistants, special counsel, agents and stenographers, or other employees who shall serve at the pleasure of the city attorney.
(Code 1986, § 2-46)

***Cross references—**City court clerk, § 12-36 et seq.; fire and police departments, Ch. 16; city traffic engineer, § 24-96 et seq.

†**Charter reference—**City attorney generally, § 3.61 et seq.

Cross reference—City attorney to assist in investigation of suspected arson, § 17-31.

Sec. 2-47. Investigator for office of city attorney.

The office investigator for the office of the city attorney is hereby created and established, which shall be composed of one (1) or more persons on a full-time, part time, temporary or contractual basis, who shall be subordinate to and shall assist the city attorney in the performance of the duties incident to his office. The appointment and services shall be pursuant to section 2-46. Upon appointment, such person shall comply with section 16-42; and shall have and possess the authority contained in section 16-45 and the last sentence of section 5-43, together with any other applicable ordinances or laws, but such appointment shall not be subject to the personnel policies of the city.
(Code 1986, § 2-47)

Sec. 2-48. Payment for legal services.

The city attorney is authorized to execute contracts for professional legal services pursuant to sections 2-46 and 2-356, whereby such attorneys will be paid a maximum retainer, whether, as periodic fees or as a salary, against which charges for legal services rendered for general corporate legal counseling, advising and drafting, etc., on behalf of the city will be debited and any credit balance shall be applied against additional fees for legal services relating to litigation involving the city, including matters involving administrative tribunals, title search and certifications, and security transactions; and all of such compensation shall not be inconsistent with Rule 8, Canon 2-106(B)1-8, of the Tennessee Supreme Court; and, further, that such arrangement is authorized for all other or subsequent attorneys in the office of the city attorney; provided, however, that any such additional payments as fees for legal services rendered by a special counsel relative to litigation shall be within budgetary limitations, and in order to comply with such budgetary limitations any such professional legal service contracts with special counsel shall provide that all retainer and/or fee determinations shall be made by the city attorney and his judgment on such questions shall be final and conclusive.
(Code 1986, § 2-48)

Sec. 2-49. Legal liability claims.

Pursuant to Section 6.167 of the City Charter, the City Council has been authorized to maintain a legal liability reserve fund. The City Attorney may settle or compromise and authorize payments from the legal liability fund for any expenditures, contracts, requisitions, and vouchers in the amounts set forth in Chattanooga City Code §§ 2-549 or 2-551 without seeking City Council approval.
(Ord. No. 13212, § 1, 8-22-17; Ord. No. 13450, § 1, 4-2-19)

Secs. 2-50—2-60. Reserved.

DIVISION 3. CITY FINANCE OFFICER*

Sec. 2-61. Oath of office.

The city finance officer shall, before entering upon the discharge of the duties of his office, take an oath to faithfully and honestly discharge such duties.
(Code 1986, § 2-61; Ord. No. 9654, § 8, 1-6-92)

Sec. 2-62. Official bond.

The city finance officer shall execute a guaranty bond in the penal sum of one hundred thousand dollars ($100,000.00) before entering upon the duties of his office, conditioned that he will faithfully and fully discharge all the duties imposed on him by law or ordinance, and will well, truly and faithfully pay over and account for, according to law, all money or funds that may come into his hands, or under his control, by virtue of his office.
(Code 1986, § 2-62; Ord. No. 9654, § 8, 1-6-92)

Sec. 2-63. Custody of public records.

The city finance officer shall be responsible for the care and protection of all public records kept at the city hall whose custody is not assigned to another officer by law or ordinance.
(Code 1986, § 2-63; Ord. No. 9654, § 8, 1-6-92)

***Charter reference—**City finance officer [auditor] generally, § 3.95 et seq.

Sec. 2-64. Resolution book.

The clerk of the city council shall maintain a suitable well bound book, to be called "resolution book," in which he shall copy all resolutions passed by the city council. He shall place at the head of each resolution entered an appropriate caption indicating the nature of such resolution, with the name of the mover, and shall properly enter the caption in the index of the book, with the number of such resolution, and the number of the page in the book on which it is copied. He shall not be required to spread any resolution in full on the minute book or journal of the board, but when reference to any resolution is made in the minutes, it shall be by caption or number and the number of the page of the resolution book where such resolution is copied.
(Code 1986, § 2-64; Ord. No. 9654, § 9, 1-6-92)

Sec. 2-65. Payment for publication of ordinances granting franchises.

The cost of advertising ordinances granting franchises shall be paid by the grantees of the franchise rights as a condition precedent to the publication of the notice of such ordinances and before the passage thereof on the second and final reading. The clerk of the city council, before the publication by him or her of any ordinance granting any franchise, shall ascertain the cost of notice publication thereof in a daily newspaper published in the county and shall collect from the grantee of the franchise the cost of publication before delivering the ordinance to such newspaper for publication.
(Code 1986, § 2-65; Ord. No. 9654, § 10, 1-6-92; Ord. No. 13267, § 1, 1-30-18)

Charter reference—Requirements of ordinances granting franchises, § 7.2.

Sec. 2-66. Franchise book.

The clerk of the city council shall keep in a separate book known as the "franchise book," a record of franchises granted by the city, the date of passage of the ordinance granting any franchise, the limitation as to time in which rights-of-way, as defined under Chattanooga City Code Section 32-231 or as amended, may be built upon, if any, and the motive power to be employed in the exercise of such franchise, if any.
(Code 1986, § 2-66; Ord. No. 9654, § 10, 1-6-92; Ord. No. 13267, § 1, 1-30-18)

Sec. 2-67. Assistant city finance officer.

The office of assistant city finance officer is hereby created. The assistant city finance officer shall exercise the same authority as the city finance officer relative to countersigning vouchers, certifying the availability of funds, and certifying the correctness of public records, and he shall perform such other duties as may be imposed upon him from time to time by the city finance officer; however, the assistant city finance officer at all times shall be subordinate to and shall assist the city finance officer in the performance of the duties incident to his office. When the office of the city finance officer is vacant, or when the city finance officer is absent or unable to perform his duties, the assistant city finance officer shall act for and in the stead of the city finance officer. The assistant city finance officer shall be appointed by the city finance officer with the approval of the mayor and city council, but shall serve at the pleasure of the city finance officer, and shall give bond with good and sufficient sureties in the sum of fifty thousand dollars ($50,000.00).
(Code 1986, § 2-67; Ord. No. 9654, § 11, 1-6-92)

Sec. 2-68. Budget officer; assistant budget officer.

(a) The office of budget officer is hereby created. He shall be appointed by the city finance officer with the approval of the mayor and city council, but shall serve at the pleasure of the city finance officer, and shall give bond with good and sufficient sureties in the sum of fifty thousand dollars ($50,000.00). The budget officer, under the direction of the city finance officer, shall be responsible for the formulation and

the keeping of all records relating to the annual budget and any capital budget of the city; the certification that funds are available to meet expenditures covered by purchase orders; the approval of vouchers for payment of purchases pursuant to a prior purchase order; and for countersigning vouchers and requisitions drawn for the payment of funds when such voucher has been signed by the officer of the department, agency, board or commission or other division who is responsible by law for the expenditure of the appropriation against which such voucher or requisition is drawn. The budget officer shall be subordinate to and shall assist the city finance officer and the assistant city finance officer in the performance of their respective duties. The

budget officer shall act for and in the stead of the city finance officer when both the city finance officer and the assistant city finance officer are absent or unable to perform their respective duties or there is a vacancy in both of such offices.

(b) The office of assistant budget officer is likewise created, who shall have the same authority as the budget officer but shall be subordinate to and assist the budget officer as well as the superiors of the budget officer.
(Code 1986, § 2-68; Ord. No. 9654, § 11, 1-6-92)

Secs. 2-69—2-80. Reserved.

DIVISION 4. ENGINEER*

Sec. 2-81. Duty to prepare map.

The city engineer shall prepare a map of the city on which the town lots and their numbers shall be designated in such manner as to be of assistance in assessing such property for taxation.
(Code 1986, § 2-81)

Sec. 2-82. Duty to survey streets.

The city engineer shall survey accurately all the streets in the city and keep a record of such survey.
(Code 1986, § 2-82)

Sec. 2-83. Duty to establish, keep record of grades.

The city engineer shall establish the permanent grade of all streets and sidewalks in the city and shall prepare a suitable map of the city, showing such grades, which shall be kept for reference in his office, and shall keep a record of such grades in a book provided for that purpose.
(Code 1986, § 2-83)

Sec. 2-84. Reserved.

Sec. 2-85. Maps showing rights-of-way granted by city.

The city engineer shall, upon request of the clerk of the city council, prepare and place on file in the franchise book of the city a map or plat showing the streets over which a right-of-way granted by the city is to extend, the number of tracks, if any, whether single or double, and the location of all switches and turnouts.
(Code 1986, § 2-85; Ord. No. 9654, § 14, 1-6-92)

Sec. 2-86. Profile of grades to be made.

Whenever the grade is ordered to be established on any street in the city, the city engineer shall give such grade, under the direction of the mayor, and shall make a profit thereof and preserve the same in the city engineer's office for public use. Under the direction of the mayor, he shall give the owners of abutting property the grade of sidewalks. No fees or other allowance shall be made him for such work.
(Code 1986, § 2-86; Ord. No. 9654, § 15, 1-6-92)

Secs. 2-87—2-100. Reserved.

***Charter reference—**City engineer generally, § 3.111.
Cross reference—City traffic engineer, § 24-96 et seq.

DIVISION 5. TREASURER*

Sec. 2-101. Offices of treasurer and tax collector consolidated.

The offices of city treasurer and city tax collector are hereby consolidated. The duties pertaining to both offices shall devolve upon and be discharged by one (1) officer who shall be known as the city treasurer.
(Code 1986, § 2-101)

Sec. 2-102. Official bond.

The city treasurer shall execute a guaranty bond in at least the penal sum of five hundred thousand dollars ($500,000.00), conditioned that he will faithfully and fully discharge all the duties imposed on him by law or ordinance and will well, truly and faithfully pay over and account for, according to law, all money or funds that may come into his hands or under his control by virtue of his office.
(Code 1986, § 2-102)

Sec. 2-103. Extra compensation prohibited.

The city treasurer shall receive no extra compensation for any service performed which the mayor deems to be within the legitimate function of his office.
(Code 1986, § 2-103; Ord. No. 9654, § 13, 1-6-92)

Sec. 2-104. Tax collections and receipts.

The city treasurer shall collect all taxes due the city and shall issue to each taxpayer a receipt for taxes paid by him, which shall contain a clear description of the property taxed and the amount of tax assessed.
(Code 1986, § 2-104)

Sec. 2-105. Assistant treasurer—office created; appointment.

The office of assistant city treasurer is hereby created as a subordinate position in the department of public affairs and finance. Such office shall be filled by appointment by the mayor, with the consent of the city council.
(Code 1986, § 2-105; Ord. No. 9654, § 2, 1-6-92)

Sec. 2-106. Same—Duties.

The assistant city treasurer shall keep books in connection with the issuance and retirement of paving bonds and the collection of taxes as they mature against owners of property in the various paving districts. In addition he may, under the direction of the city treasurer, receive taxes and receipt for the same. He shall prepare and file with the mayor, on the tenth day of each month, a trial balance of the paving tax funds for the preceding month.
(Code 1986, § 2-106)

Sec. 2-107. Official bonds of assistant treasurer and deputies.

The assistant city treasurer and each deputy in the office of the city treasure shall execute a guaranty bond in the penal sum of fifty thousand dollars ($50,000.00), conditioned that he will faithfully and fully discharge all the duties imposed on him by law or ordinance and will well, truly and faithfully pay over and account for all city funds received by him, or that come into his possession.
(Code 1986, § 2-107)

***Charter references—**City treasurer generally, § 3.102; finance and taxation generally, Title 6.

Sec. 2-108. Licenses and permits—Issuance; posting.

The city treasurer shall, unless otherwise provided, issue all licenses and permits required under the provisions of this Code or any ordinance. Each person to whom a license is issued pursuant to the payment of a privilege tax shall keep such license posted conspicuously in his place of business for the entire year for which such license was issued. The city treasurer shall collect an administrative charge of five dollars ($5.00) for the issuance of each such license and permit in addition to the fees imposed therefor under the provisions of this Code or any ordinance.
(Code 1986, § 2-108; Ord. No. 9202, § 1, 07-25-89)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 2-109. Licenses and permits.

(a) Failure to obtain. It shall be unlawful for any person who engages in any vocation, occupation or business for which a privilege license is required or a permit is required to fail to pay the license fee or permit fee and obtain a license or permit for such vocation, occupation or business. Each day's violation shall constitute a separate offense.

(b) Settlement upon termination or transfer of business.

(1) If any person liable for any tax, penalty or interest levied hereunder shall sell out the person's business or stock of goods, or shall quit the business, the person shall make a final return and payment within fifteen (15) days after the date of selling or quitting the business.

(2) The person's successor, successors, or assigns, if any, shall withhold sufficient of the purchase money to cover the amount of such taxes, interest and penalties due and unpaid until such former owner shall produce a receipt from the proper city tax collector stating that no taxes, interest or penalties are due.

(3) If the purchaser of a business or stock of goods shall fail to withhold the purchase money as above provided, the purchaser shall be personally liable for the payment of the taxes, interest and penalties accruing and unpaid on account of the operation of the business by any former owner, owners, or assigns.

(4) (i) Nothing in this section shall apply to any license transferring a business from one (1) location to another, within the municipality, on a one-time basis during any annual taxable period.

(ii) In this event a licensee shall notify the local tax collector at least five (5) days prior to the last day of business at the old location, submitting information and payment of a five dollar ($5.00) recording fee for the new location.

(iii) Succeeding transfers by the same licensee, with the same annual taxable period, shall be subject to a final return and payment within fifteen (15) days, plus a new minimum business license and recording fee for the new location.

(Code 1986, § 2-109; Ord. No. 10561, § 1, 04-29-97)

Sec. 2-110. Partial Payments of property taxes and water quality fees.

(a) The City Treasurer shall accept partial payments of annual property taxes and water quality fees beginning October 1. Notwithstanding the following schedule, the entire amount of taxes and fees due must be paid in full prior to the first day of March following the year of levy otherwise interest and penalties will be applied on balance on March 1.

(b) No penalties, fines, interest or other fees shall be assessed against the payer of taxes or fees except as provided by the Chattanooga City Code and/or the laws of the State of Tennessee.

(c) Prior to the final reading of this ordinance, the City Treasurer shall transmit to the State Comptroller of the Treasury a copy of this ordinance which shall serve as the plan required by T.C.A. § 6-56-109(b). To fulfill this requirement, the City hereby declares that:

1. The City has the appropriate accounting technology to implement this program; and
2. The City can implement this program within existing resources.

(d) The City's Partial Payment Plan will be as follows:

1. Current year property tax bills are mailed in September with a due date of October 1. Taxes may be paid without penalty and interest through February of the following year.
2. Prepayments for current year taxes and water quality fees may be made any time during the calendar year in which assessed. Payments made prior to billing for a calendar year must be made in person at the City Treasury.
3. Any partial payment or property taxes other than electronic transfer made within ten (10) days of the delinquency date, or at any time following such delinquency date, may subject the property to a tax lien and enforcement by tax sale or other legally authorized procedures.
4. Partial payments of **PROPERTY TAXES** and **WATER QUALITY FEES** are subject to the following:
    - A. This plan shall NOT apply to the following:
        - i. Properties that have applied for bankruptcy;
        - ii. Escrow accounts.
    - B. No more than one (1) partial payment shall be made in one (1) calendar month.
    - C. May not be made in installments of less than fifty dollars ($50.00), except for final payment.
    - D. Cancelled Check will serve as a receipt for taxpayers who mail in payments by check.
    - E. Payments received March 1 or later following year of levy are subject to penalty and interest.
    - F. Any voucher issued pursuant to a tax relief program shall be used as all or a portion of the final payment.
    - G. Payments made after the delinquency date or after the last day of February will be applied as outlined below in Item K.
    - H. Partial payments received on or after the first day of any month following the last day of February will decrease the penalty and interest for the following month only.
    - I. Partial payment may be made by cash (except for mail in payments), credit card (including online payments), debit card, check or money order.
    - J. Partial payments will be applied to the oldest year with delinquent amounts due not in bankruptcy.
    - K. Partial payments will be applied in the following order:
        - i. Property taxes
            - a. Oldest year first not filed in Chancery Court:
                - 1- Interest and Penalty
                - 2- Tax
        - ii. Payment of Water Quality fee
            - 1- Interest

2- Fee

3- Oldest year first for current owner.

L. Any partial payments except electronic payments must be remitted to: Office of City Treasurer, 101 East 11th Street, Suite 100, Chattanooga, TN 37402.

(Ord. No. 12535, 8-9-11; Ord. No. 14148, § 1, 8-27-24)

Sec. 2-111. Senior tax freeze program.

The City of Chattanooga adopts the property tax freeze program for elderly low-income homeowners authorized by Tennessee Code Annotated, Section 67-5-705, and all of the qualifications, requirements, and procedures contained therein as amended from time to time.
(Ord. No. 13213, § 2, 9-12-17)

Secs. 2-112—2-230. Reserved.

ARTICLE III. HUMAN RESOURCES—MISCELLANEOUS*

DIVISION 1. OTHER POST-EMPLOYMENT BENEFITS PROGRAM†

Sec. 2-231. Definitions.

For the purposes of this Declaration, the following terms shall have the respective meanings set forth below unless otherwise expressly provided:

(a) *Account* means the investment recordkeeping account established to fund post-retirement welfare benefits on behalf of Employer's Employees, their Spouses, Dependents and Beneficiaries.

(b) *Administrator* means the Employer, acting by and through its City Finance Officer. The Employer acting through its Administrator or its Trustees may secure such administrative services as are necessary to implement a Plan.

(c) *Beneficiary* means the Spouse, Dependents, or the person or persons designated by a Participant pursuant to the terms of a Plan, who will receive any benefits payable under a Plan in the event of the Employee's death. In the case where there is no designated Beneficiary, any amount of contributions, plus accrued earnings thereon, remaining in a Participant's Account must, under the terms of a Plan, be returned to the Trust.

(d) *Code* means the Internal Revenue Code of 1986, as amended from time to time.

(e) *Dependent* means an individual who is a person described in Code Section 152(a).

***Editor's note—**Ord. No. 12983, §§ 2, 3, adopted August 25, 2015, amended art. III, in its entirety, to read as set out herein. Former art. III was titled "Personnel Ordinance." See Code Comparative Table for the complete history of derivation.

Cross references—City authorized to contribute to pension funds created and operated by labor organizations, § 2-7; mayor authorized to prescribe rules and regulations for police department, § 16-43; superintendent authorized to issue rules and regulations for administration of garbage and refuse chapter, § 18-4; superintendent's authority to make rules and regulations for identification of private garbage collectors, § 18-67; minimum pension for teachers with 25 years service, § 30-1; pension for personnel for whom city receives reimbursement, § 30-2.

†**Note—**This division creates an irrevocable "City of Chattanooga Post-Employment Benefits Other than Pension Trust" which is sometimes referred to as an OPEB Trust.

(f) *Employee* means an individual who performs services for the Employer, and who has been designated as eligible to participate in, and received benefits under a Plan.

(g) *Investment Fund* means any investment vehicle selected by the Employer in which all or a portion of the Trust assets may be invested as herein provided.

(h) *Non-Forfeitable Interest* means the interest of a Participant or the Participant's Spouse, Dependent or Beneficiary (whichever is applicable) in the percentage of Employer Contributions that has vested pursuant to the vesting schedule in a Plan sponsored by the Employer. A Participant shall, at all times, have a one hundred percent (100%) Non-Forfeitable Interest in the Participant's own contributions, if Participant contributions are permitted pursuant to the terms of the Plan.

(i) *Participant* means an Employee of the Employer who satisfies the requirements for participation in a Plan sponsored by the Employer.

(j) *Participant Account* means an individual recordkeeping account maintained under a Plan to record the contribution, if any, and earnings of a Participant in the Plan in accordance with Section 7.4.

(k) *Plan* or *Plans* means one (1) or more post-employment welfare benefits established by Employer for the Employer's Employees, their Spouses, Dependents, and Beneficiaries. Plan or Plans shall include such post-employment welfare benefit plans established by Employer prior to or subsequent to the adoption of this Division as the same maybe adopted, amended or repealed from time to time.

(l) *Spouse* means the Participant's lawful spouse as determined under the laws of the state in which the Participant has his primary place of residence.

(m) *Trust* means the trust established by this Declaration.

(n) *Trustees* means the Trustees of the General Pension Plan of the City of Chattanooga who shall act as designees of the Employer to administer the Investment Fund.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-232. Establishment of trust.

The Trust is hereby established as of the effective date of this Division for the exclusive purpose of providing a funding mechanism for post-employment welfare benefits for the Employer's Employees, their Spouses, Dependents and Beneficiaries.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-233. Construction.

(a) This Trust and its validity, construction and effect shall be governed by the laws of the State of Tennessee.

(b) Pronouns and other similar words used herein in the masculine gender shall be read as the feminine gender where appropriate, and the singular form of words shall be read as the plural where appropriate.

(c) If any provision of this Trust shall be held illegal or invalid for any reason, such determination shall not affect the remaining provisions, and such provisions shall be construed to effectuate the purpose of this Trust.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-234. Benefits.

(a) *Benefits.* This Trust may be used to fund benefits on behalf of a Participant, the Participant's Spouse and Dependents pursuant to the terms of a Plan.

(b) *Form of Benefits.* Assets held in this Trust may be used to reimburse a Participant, his Spouse and Dependents for insurance premiums or other payments expended for permissible benefits described under a Plan. This Trust may reimburse the Employer, or the Administrator for insurance premiums or other payments pursuant to the Plan.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-235. General duties.

(a) It shall be the duty of the Trustees to hold title to assets held in respect of the Account and Plan or Plans in the Trustees' name, as directed by the Employer or its designees in writing. The Trustees shall not be under any duty to compute the amount of contributions to be paid by the Employer or to take any steps to collect such amounts as may be due to be held in trust under the terms of a Plan. The Trustees shall not be responsible for the custody, investment, safekeeping or disposition of any assets comprising the Trust, to the extent such functions are performed by the Employer or the Administrator, or both.

(b) It shall be the duty of the Employer, subject to the provisions of a Plan, to pay over to the Administrator or other person designated hereunder from time to time the Employer's contributions, and to keep accurate books and records, or cause its designee to keep accurate books and records with respect to the Account and a Plan.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-236. Investments.

(a) The Employer shall appoint an investment committee that will, as a minimum, develop an investment policy.

(b) The Employer delegates to its Trustees the authority to appoint one (1) or more delegates and Trustees shall notify Employer in writing of any such appointment.

(c) To the extent directed by the Employer (or Participants, their Spouses, Dependents or Beneficiaries, to the extent provided herein), the Trustees are authorized and empowered with the following powers, rights and duties, each of which the Trustee shall exercise in a non-discretionary manner:

(1) To cause stocks, bonds, securities, or other investments to be registered in its name as Trustee or in the name of a nominee, or to take and keep the same unregistered;

(2) To employ such agents and legal counsel as it deems advisable or proper in connection with its duties. The Trustees shall not be liable for the acts of such agents and counsel or for the acts done in good faith and in reliance upon the advice of such agents and legal counsel, provided it has used reasonable care in selecting such agents and legal counsel;

(3) To exercise where applicable and appropriate any rights of ownership in any contracts of insurance in which any part of the Trust may be invested and to pay the premiums thereon; and

(4) At the direction of the Employer (or Participants, their Spouses, Dependents or Beneficiaries or the investment manager, as the case may be) to sell, write options on, convey or transfer, invest and reinvest any part thereof in each and every kind of property, whether real, personal or mixed, tangible or intangible, whether income or non-income producing and wherever situated, including but not limited to, time deposits, shares of common and preferred stock, mortgages, bonds, leases, notes, debentures, equipment or collateral trust certificates, rights, warrants, convertible or exchangeable securities and other corporate, individual or government securities or obligations, annuity, retirement or other insurance contracts, mutual funds or in units of any other common, collective or commingled trust fund.

(d) Notwithstanding anything to the contrary herein, the assets of the Account shall be held by the Trustees as title holders only. Persons holding custody or possession of assets titled to the Trust shall include the Employer, the Administrator, the investment manager, and any agents and subagents, but not the Trustees. The Trustees shall not be responsible or liable for any loss or expense which may arise from or result from compliance with any direction from the Employer, Administrator, the investment manager, or such agents to take title to any assets nor shall the Trustees be responsible or liable for any loss or expense which may result from the Trustees' refusal or failure to comply with any direction to hold title, except if

the same shall involve or result from the Trustees' negligence or intentional misconduct. The Trustees may refuse to comply with any direction from the Employer, the Administrator, the investment manager, or such agents in the event that the Trustees, in their sole and absolute discretion, deem such direction illegal.

(e) The Employer, to the extent permitted by the Tennessee Governmental Tort Liability Act, 29-20-201 *et seq.*, particularly, Section 29-20-310, or other applicable law hereby indemnifies and holds the Trustees harmless from any and all actions, claims, demands, liabilities, losses, damages or reasonable expenses of whatsoever kind and nature in connection with or arising out of (i) any action taken or omitted in good faith by the Trustees in accordance with the directions of the Employer or its agents and subagents hereunder; or (ii) any disbursements of any part of the Trust made by the Trustees in accordance with the directions of the Employer; or (iii) any action taken by or omitted in good faith by the Trustees with respect to an investment managed by an investment manager in accordance with any direction of the investment manager or any inaction with respect to any such investment in the absence of directions from the investment manager. Notwithstanding anything to the contrary herein, the Employer shall have no responsibility to the Trustees under the foregoing indemnification if the Trustees fail intentionally or recklessly to perform any of the duties undertaken by it under the provisions of this Trust.

(f) Notwithstanding anything to the contrary herein, the Employer or, if so designated by the Employer, the Administrator and the investment manager or another agent of the Employer or Trustees, will be responsible for valuing all assets so acquired for all purposes of the Trust and of holding, investing, trading and disposing of the same. The Employer will indemnify and hold the Trustees harmless, to the extent permitted by law, against any and all claims, actions, demands, liabilities, losses, damages, or expenses of whatsoever kind and nature, which arise from or are related to any use of such valuation by the Trustee or holding, trading, or disposition of such assets.

(g) The Trustees shall and hereby do indemnify and hold harmless the Employer from any and all actions, claims, demands, liabilities, losses, damages and reasonable expenses of whatsoever kind and nature in connection with or arising out of (a) the Trustees' failure to follow the directions of the Employer, the Administrator, the investment manager, or agents thereof, except as permitted by the last sentence of Section (4) above; (b) any disbursements made without the direction of the Employer, the Administrator, the investment manager, or agents thereof; and (c) the Trustees' willful misconduct, or recklessness with respect to the Trustee's duties under this Declaration.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-237. Contributions.

(a) *Employer Contributions.* The Employer shall contribute to the Trust such amounts as specified in a Plan or by resolution.

(b) *Participant Contributions.* If specified in a Plan, each Participant may make voluntary after-tax contributions. Under no circumstances shall Participant Contributions exceed an insubstantial amount. These contributions shall be collected by the Employer and remitted to the Trust for deposit at such time or times as required under the terms of the Plan.

(c) *Accrued Leave.* If the Employer's Plan includes contributions from accrued leave, the plan must contain a forfeiture provision that will prevent Participants from receiving the accrued leave in cash in lieu of a contribution to the Trust.

(d) *Accounts.* Employer contributions, and if provided under the terms of a Plan, Participant contributions and contributions of accrued leave, and all investment income and realized and unrealized gains and losses, and forfeitures allocable thereto will be deposited into one (1) or more Accounts in the

name of the Employer for the exclusive purpose of funding benefits on behalf of Participants, their Spouses, Dependents and Beneficiaries under a Plan. The assets in each Account may be invested in Investment Funds as directed by the Trustees from among the Investment Funds selected by the Trustees.

(e) *Receipt of Contributions.* The Employer or, if so designated by the Employer, the Administrator or investment manager or another agent of the Employer, shall receive all contributions paid or delivered to it hereunder and shall hold, invest, reinvest and administer such contributions pursuant to this Declaration, without distinction between principal and income. The Trustee shall not be responsible for the calculation or collection of any contribution under the Plan, but shall hold title to property received in respect of the Plan in the Trustee's name as directed by the Employer or its designee pursuant to this Declaration.

(f) *Spend Thrift Clause.* No amount in any Account or Participant Account maintained under this Trust shall be subject to transfer, assignment, or alienation, whether voluntary of involuntary, in favor of any creditor, transferee, or assignee of the Employer, the Trustees, any Participant, his Spouse, Dependent or Beneficiaries.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-238. Multiple plans.

If the Employer hereafter adopts one (1) or more other Plans and designate the Trust hereby created as part of such other Plan, the Employer or, if so designated by the Employer, the Trustees shall, subject to the terms of this Declaration, accept and hold hereunder contributions to such other Plans. In the event (a) the Employer or, if so designated by the Employer, the Administrator or the Trustees, may commingle for investment purposes the contributions received under such Plan or Plans with the contributions previously received by the Trust, but the books and records of the Employer or, if so designated by the Employer, the Administrator or Trustees or another agent of the Employer, shall at all times show the portion of the Trust Fund allocable to each Plan; (b) the term "Plan" as used herein shall be deemed to refer separately to each other Plan; and (c) the term "Employer" as used herein shall be deemed to refer to the person or group of persons which have been designated by the terms of such other Plans as having the authority to control and manage the operation and administration of such other Plan.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-239. Disbursements and expenses.

(a) The Employer or its designee shall make such payments from the Trust at such time to such persons and in such amounts as shall be authorized by the provisions of a Plan provided, however, that no payment shall be made, either during the existence of or upon the discontinuance of the Plan, which would cause any part of the Trust to be used for or diverted to purposes other than the exclusive purpose of funding post-employment welfare benefits for Employees, their Spouses, Dependents and Beneficiaries pursuant to the provisions of a Plan. Provided, however, the investment and administrative expenses of the Trust can be funded from the assets of the Trust.

(b) All payments of benefits under the Plan shall be made exclusively from the assets of the Accounts or Participant Accounts of Participants to whom or to whose Spouse, Dependents or Beneficiaries such payments are to be made, and no person shall be entitled to look at any other source for such payments.

(c) The Employer, Trustee and Administrator may be reimbursed for expenses reasonably incurred by them in the administration of the Trust. All such expenses, including, without limitation, reasonable fees of accountants, investment managers, and legal counsel to the extent not otherwise reimbursed, shall constitute a charge against and shall be paid from the Trust upon the direction of the Employer.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-240. Accounting.

(a) All accounts, books, and records relating thereto shall be maintained by the Employer or its designee.

(b) As promptly as possible following the close of each year, the Trustees shall file with the Employer a written account setting forth assets titled to the Trust as reported to the Trustees by the Employer or its designee.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-241. Miscellaneous provisions.

(a) The Trustees shall not be required to give any bond or to qualify before, be appointed by, or account to any court of law in the exercise of its powers hereunder.

(b) No person transferring title or receiving a transfer of title from the Trustees shall be obligated to look to the propriety of the acts of the Trustees in connection therewith.

(c) The Employer may engage the Trustees as their agent in the performance of any duties required of the Employer under a Plan, but such agency shall not be deemed to increase the responsibility or liability of the Trustees under this Declaration.

(d) The Employer shall have the right at all reasonable times during the term of this Declaration and for three (3) years after the termination of this Declaration to examine, audit, inspect, review, extract information from, and copy all books, records, accounts, and other documents of the Trustees relating to this Declaration and the Trustees' performance hereunder.

(e) The Trust shall be subject to audit by the State Comptroller.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-242. Amendment and termination.

(a) *Plan Alteration, Amendment or Termination.* The Employer reserves the right to alter, amend, or (subject to Section 9.1) terminate this Declaration at any time for any reason without the consent of the Trustees or any other person, provided that no amendment affecting the rights, duties, or responsibilities of the Trustees shall be adopted without the execution of the Trustee to the amendment. Any such amendment shall become effective as of the date provided in the amendment, if requiring the Trustees' execution, or on delivery of the amendment to the Trustees, if the Trustees' executive is not required.

(b) *Rights Upon Plan Termination or Substantial Modification.* In the event the other post-employment benefits plan is terminated or substantially modified rendering the assets of the trust to be unnecessary to fund the plan, the assets will be distributed pursuant to section 2-241(3).

(c) *Employee and Beneficiary Vested Rights.* (a) If the plan is terminated the employees and former employees who have met all the conditions for other post-employment benefits as set out in the plan document in existence immediately preceding plan termination, to include retirees or their surviving beneficiaries shall be vested in a proportionate share of the accumulated assets based on the present value of the previous plan benefit as determined by an independent consulting actuary; (b) If substantial plan modification is adopted that because a reduction of benefits or eligibility results in the plan moving from a funded status of less than seventy-five percent (75%) to an over-funded status of at least one hundred fifty percent (150%) and continues in such over-funded level for two (2) consecutive actuarial valuations, then such action shall be considered a plan termination and the excess assets shall be distributed in the same manner as in subsection (a) above.

(d) *Actuarial Valuations.* Actuarial valuations contemplated by this section shall be performed by the plan's independent consulting actuary in accordance with actuarial methods recognized by the Governmental Accounting Standards Board for other post- employment benefits.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-243. Trustees and successor trustees.

(a) The Trustees of the General Pension Plan of the City of Chattanooga are designated as Trustees of the City of Chattanooga Post-Employment Benefits Other than Pension Trust. The General Pension Plan trustees shall not commingle the assets of the OPEB Trust Plan(s) and shall maintain separate and apart OPEB assets and liabilities from the assets and liabilities of the General Pension Plan, provided that this shall not preclude the use of the same investments providing that the books and records for such investments shall separately account for the OPEB investment. The Trustees may elect but are not required to utilize the same attorneys, actuaries, investment managers, custodians, and other supporting services as used by the General Pension Plan.

(b) The Employer reserves the right to change Trustees for any or no reason, at any time by giving ninety (90) days' advance written notice.

(c) The Employer reserves the right to change Trustees for cause by giving thirty (30) days advance written notice.

(d) The Trustees reserve the right to resign at any time by giving ninety (90) days' advance written notice to the Employer; provided that individual General Pension Plan Trustees may resign from time to time in their discretion.

(e) In the event of a change or resignation of a Trustee, the Employer may appoint a successor Trustee who shall succeed to all rights, duties, and responsibilities of the former Trustee under this Declaration and the terminated Trustee shall be deemed discharged of all duties under this Declaration and responsibilities for the Trust.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-244. Limited effect of trust.

(a) Neither the establishment of the Trust or any modification thereof, the creation of any fund or account, nor the payment of any benefits, shall be construed as giving to any person any legal or equitable right against the Trustees, the Administrator, the Employer or any officer or employee thereof, except as may otherwise be expressly provided in a Plan or in this Declaration.

(b) The creation of this trust shall not be deemed to create rights beyond the assets of the trust. Any non-forfeitable rights beyond this trust must be bestowed in the employment contract, plan document, ordinance, resolution, or statute.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-245. Protective clause.

Neither the Administrator, the Employer, nor the Trustees shall be responsible for the validity of any contract of insurance or other arrangement maintained in connection with a Plan, or for the failure on the part of the insurer or provider to make payments provided by such contract, or for the action of any person which may delay payment or render a contract void or unenforceable in whole or in part.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Secs. 2-246—2-250. Reserved.

DIVISION 2. SOCIAL SECURITY GENERALLY*

Sec. 2-251. Policy and purpose.

It is hereby declared to be the policy and purpose of the city to extend, at the earliest date, to the employees and officials thereof, not excluded by law or this division, and whether employed in connection with a governmental or proprietary function, the benefits of the system of Federal Old Age and Survivors Insurance as authorized by the Federal Social Security Act and amendments thereto, including Public Law 734—81st Congress, and Public Law 761—83rd Congress. In pursuance of such policy, and for that purpose, the city shall take such action as may be required by applicable state or federal laws or regulations.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-252. Agreements authorized.

The mayor of the city is hereby authorized and directed to execute all necessary agreements and amendments thereto with the state executive director of Old Age and Survivors Insurance, as agent or agency, to secure coverage of employees and officials as provided in this division.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-253. Withholdings.

Withholdings from salaries or wages of employees and officials for the purpose provided in Section 2-251 are hereby authorized to be made in the amounts and at such times as may be required by applicable state or federal laws or regulations and shall be paid over to the state or federal agency designated by such laws or regulations.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-254. Appropriations.

There shall be appropriated from available funds such amounts at such times as may be required by applicable state or federal laws or regulations for employer's contributions, which shall be paid over to the state or federal agency designated by such laws or regulations.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-255. Records, reports.

The city shall keep such records and make such reports as may be required by applicable state and federal laws or regulations.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-256. Employees excluded.

There is hereby excluded from this division any authority to make any agreement with respect to position or any employee or official now covered or authorized to be covered by any retirement system for any employee or official of the city, other than any position, employee or official covered by the general

---

***Charter references—**For pensions and death benefits generally, see § 3.35 et seq.; pensions for policemen and firemen, § 13.63 et seq.

Cross references—City authorized to contribute to pension funds created and operated by labor organizations, § 2-7; social security for educational personnel, § 2-261 et seq.

employees retirement system who have heretofore, by a majority vote in a referendum, duly held as provided by Public Law 761—83rd Congress, voted in favor of accepting the benefits offered by the Federal Social Security Act.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Secs. 2-257—2-260. Reserved.

DIVISION 3. SOCIAL SECURITY FOR EDUCATIONAL PERSONNEL*

Sec. 2-261. Policy and purpose.

It is hereby declared to be the policy and purpose of the city to extend, at the earliest date, to the employees and officials of the department of education who are employed in positions covered by such department's insurance and pension fund, not excluded by law or this division, and whether employed in connection with a governmental or proprietary function, the benefits of the system of Federal Old Age and Survivors Insurance as authorized by the Federal Social Security Act and all amendments thereto. In pursuance of such policy, and for that purpose, the city shall take such action as may be required by applicable state or federal laws or regulations.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-262. Agreements authorized.

The mayor of the city is hereby authorized and directed to execute all necessary agreements and amendments thereto with the state executive director of Old Age and Survivors Insurance, as agent or agency, to secure coverage of employees and officials as provided in section 2-261 of this division.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-263. Reserved.

Sec. 2-264. Appropriations.

There shall be appropriated from available funds such amounts at such times as may be required by applicable state or federal laws or regulations for employer's contributions, which shall be paid over to the state or federal agency designated by such laws or regulations.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-265. Records, reports.

The city shall keep such records and make such reports as may be required by applicable state and federal laws or regulations.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

***Cross references—**City authorized to contribute to pension funds created and operated by labor organizations, § 2-7; social security for city employees generally, § 2-251 et seq.; minimum pension for teachers with twenty-five (25) years' service, § 30-1; pension for personnel for whom city receives reimbursement, § 30-2.

Sec. 2-266. Employees excluded.

There is hereby excluded from this division any authority to make any agreement with respect to any position or any employee or official now covered or authorized to be covered by any retirement system for any such employee or official of the city, other than any position, employee or official covered by the insurance and pension fund of the department of education of the city.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-267. Paid leave for active-duty training.

Employees shall be granted twenty (20) scheduled work days of paid leave each calendar year for active-duty service, inactive duty service, and required annual training. After the twenty (20) days of military pay has been exhausted, the employee activated for military service may elect to use accrued PTO balance (all or in part) or immediately commence leave without pay. Every employee returning from military leave shall submit to his/her Department Head proof of the number of days spent on duty.
(Ord. No. 13710, § 15, 9-28-21; Ord. No. 13840, § 15, 6-14-22)

Secs. 2-268—2-300. Reserved.

DIVISION 4. GENERAL PENSION PLAN

Sec. 2-301. General Pension Plan.

The General Pension Plan as established by the Private Acts of 1965, Chapter 254, as amended by private acts and Home Rule referenda, shall be transferred from the Charter compilation to the City Code compilation, but the vested rights of any participant or beneficiary shall not thereby be affected. No current provision of the General Pension Plan may be amended hereafter except pursuant to the provisions of section 2-318.
(Priv. Acts 1965, Ch. 254; Priv. Acts 1967, Ch. 169; Priv. Acts 1968, Ch. 430; Priv. Acts 1971, Ch. 137; Priv. Acts 1972, Ch. 402; Ord. No. 7408, 8-22-78; Ord. No. 8688, 8-19-86; Ord. No. 9766, 8-11-92; Ord. No. 10084, 8-16-94; Ord. No. 10463, 8-20-96; Ord. No. 10739, 8-18-98; Ord. No. 11011, 5-9-00; Ord. No. 11272, 4-30-02; Ord. No. 12677, 12-18-12)

Editor's note—The General Pension System initially created by the Priv. Acts 1965, Ch. 254 moved from Charter to City Code pursuant to Ordinance No. 12677, § 3, 12-18-12. The City Attorney has been authorized pursuant to § 33 of Ordinance No. 12677 to rearrange, regroup, and renumber titles, chapters, and parts thereof to change reference numbers to correlate with any renumbered chapter or heading. Such changes are necessary to assimilate the General Pension System into the City Code and such changes will be referenced in Editor's notes. The notes will reflect the previous references to the Priv. Acts and to the Charter.

Sec. 2-302. Contents of Plan.

The City Council of the City of Chattanooga, in its discretion, may upon recommendation of the Board of Trustees of the General Pension Plan, upon advice by the Mayor, and upon receipt of an actuarial report as to the costs and actuarial soundness of such changes, may amend by ordinance passed upon two (2) separate meetings the provisions of the General Pension Plan providing such amendments are consistent with sound actuarial principles, methods and assumptions and further provided that such amendments shall not decrease any vested financial benefits accrued by any participant or beneficiary.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 5-9-00; Ord. No. 12677, 12-18-12)

Cross reference—Identical provision codified at Chattanooga City Charter, Sec. 3.52.

Sec. 2-303. Definitions.

As used herein the following words and phrases shall have the meaning indicated, unless otherwise defined or required by the context:

(1) Plan shall mean the "General Pension Plan" as contained herein.

(2) Former plan shall mean any other pension plan created for the benefit of employees of the City of Chattanooga now in existence, whether open or closed to current or further participation, including but not limited to the Employees' Insurance and Pension Fund created by Chapter 678 of the Private Acts of 1937; the Department of Education Insurance and Pension Fund created by Chapter 221 of

the 1937 Private Acts; Salaried Employees' Insurance and Pension Fund created by Chapter 298 of the 1961 Private Acts; Officials Pension System created by Chapter 300 of the 1961 Private Acts; and all Acts amendatory of any of said Acts.

(3) Board of trustees or board or trustees shall mean the board of trustees appointed in accordance with Section 2-311, charged with the administration of the Plan as provided in Sections 2-311 and 2-313 hereof.

Editor's note—Section 2-311 was formerly numbered 3.44 in the City's Charter and Article 8 in the Priv. Acts 1965. Section 2-313 was formerly numbered 3.46 in the City's Charter and Article 10 in Priv. Act. 1965, references to Art. 8 and 10 of Priv. Acts 1965 changed for codification.

(4) City council shall mean the governing body of the City of Chattanooga.

(5) City shall mean the City of Chattanooga, Tennessee, a Municipal Corporation chartered under the laws of the State of Tennessee.

(6) Employee shall mean any person regularly employed by the City and paid on an hourly basis or on a weekly, semimonthly or monthly salary (but not including temporary or seasonal employees or persons rendering a service under a contract) whether employed on a full-time or a part-time basis. However, the term "employee" shall not include (i) any person employed by the City in the Department of Fire or Police who is eligible for or is participating in the [Firemen's and Policemen's Insurance and Pension Fund, created by Chapter 165 of the 1949 Private Acts], as amended in § 2-400, *et seq.* hereof, (ii) any person who is eligible for or who is participating in the Tennessee Teachers Retirement System, as contained in Section 49-1501, *et seq.* [repealed], of Tennessee Code Annotated, or (iii) any Active Retired Participant as herein defined in subsection (24). In all cases of doubt, the Board of Trustees shall determine whether or not a person is an employee as herein defined.

Editor's note—In the opinion of the City Attorney, § 3 (1.06) of the Priv. Acts. 1965, Ch. 254, § 3 (1.06) has been effectively repealed by the assimilation of the former Tennessee Teachers Retirement System into the Tennessee Consolidated Retirement System. T.C.A. § 8-34-101, *et seq.* The Firemen's and Policemen's Insurance and Pension Fund is now named the Fire and Police Pension Fund codified at sections 2-400 *et seq.* of this City Code.

(7) Participant shall mean any employee or any of the 2013 Active Retirees as defined in subsections (6) and (23) of this Section 2-303 or a former employee who completed five (5) years of credited service and thereby has a vested interest in the general pension plan.

Editor's note—Prior reference to Charter Section 3.38 changed to § 2-303 for codification.

(8) Participant in a former plan shall mean any employee who, on the day prior to the effective date, was covered under a former plan or then had a right to receive a benefit from a former plan.

(9) Retired participant shall mean any participant who is retired from the city and is entitled to receive retirement benefits provided by the plan.

(10) Credited service shall mean the length of time a person participated in this plan or any former plan prior to the date as of which credited service is being determined. Credited service shall be expressed in years and a decimal fraction of a year based on completed calendar months. Credited service shall include that period of time that such person was an employee, whether continuous or not, while a former plan(s) was in force and he was not a participant in such former plan(s); but it shall not include any time a person is on leave of absence without pay or for any time for which a refund was paid in accordance with Section 2-312. Prior reference to Priv. Acts 1965 Section 4.98 and prior reference to 3.45(3) of the Charter changed to § 2-312 for codification.

Editor's note—The following sentence which was the last sentence in this subsection has in the opinion of the editors been removed from this compilation as having been repealed by Ord. No. 8688. [Such

credited service for any period of time that he was not a participant will be granted only if and on the condition that the employee pay to the city an amount as determined in accordance with the provisions for reinstatement of prior service (Section 4.09) [Section 3.45.1 hereof], the social security law.]

(11) Earnings shall mean the total compensation paid by the city to an employee by a weekly, semimonthly or monthly salary for his personal services that are subject to federal income tax but excluding any payment for personal services made by virtue of any contract.

A. Notwithstanding any other provision of law, the amount of Earnings used to determine the benefits payable under the Plan must not exceed the amount of compensation permitted to be taken into account under Code Section 401(a)(17) as such existed on January 1, 1986.

B. Earnings, for purposes of the limitations under Code Sections 415 and 401(a)(17), the computation of benefits payable from the Plan and contrihutions, shall include any elective deferral, as defined under Code Section 402(g)(3), and any amount that is contributed or deferred by the City of Chattanooga at the election of a member and which, by reason of sections 125 and 457 of the Code, is not includible in his gross income.

The Earnings described in Subsection B. above, taken into account in determining benefit accruals in any year beginning after December 31, 2001 shall not exceed the limit set out in Code Section 401(a)(17). For this purpose, annual compensation means compensation during the calendar year or such other consecutive twelve (12) month period over which compensation is determined under the plan (the "determination period"). The limit on annual compensation shall be adjusted for cost-of-living increases in accordance with Code Section 401(a)(17)(B). The cost-of-living adjustment in effect for a calendar year applies to annual compensation for the determination period that begins with or within such calendar year.

(12) Average shall mean an arithmetic average determined for the highest paid three (3) full calendar years of a participant preceding the date as of which such average is being determined, or based on such lesser number of full calendar years of credited service actually completed by the participant.

(13) Effective date shall mean the effective date of the plan which shall be January 1, 1965.

(14) Normal retirement date shall mean the first day of the month next following the sixty-second (62nd) birthday of a participant.

(15) Beneficiary shall mean the recipient or recipients, last designated by the participant in writing on form acceptable to the board who shall receive any death benefits payable under the plan.

(16) Plan year shall mean the fiscal year adopted from time to time by the city; but the first plan year shall mean the eighteen (18) month period ending June 30, 1966.

(17) Fund shall mean the cash or other property held and maintained in trust in accordance with Section 2-313 hereunder and Sections 2-302 to 2-314.

Editor's note—Prior references to Article 10 and Section 3 of Priv. Acts 1965 and to former Charter provisions 3.46 and 3.36 through 3.47 have been changed to Section 2-313 hereof and 2-302 to 2-314 respectively for codification.

(18) Early retirement date shall mean the first day of the month next following the fifty-fifth (55th) birthday of a participant; provided that if the sum of a participant's age and years of credited service is at least eighty (80), the early retirement date shall be the first day of the month after the participant attains said eighty (80) years of age and credited service.

(19) Primary insurance amount shall mean the amount payable to a person at sixty-two (62) under the social security law.

Editor's note—This definition is utilized in calculations for social security offset in Section 2-308 hereof for employees hired or vested prior to 8-19-86 pursuant to Ord. No. 8688.

(20) Refund shall mean a refund of a participant's contributions in lieu of all other benefits to which he may be entitled, payable one (1) year after a participant's termination of employment as an employee or at such earlier date approved by the board of trustees, together with interest at the refund interest rate from the date of termination to the date the refund is to be made.

(21) Refund interest rate shall mean the rate of six percent (6%) per annum.

(22) Part-time Employee shall mean an employee whose job description provides for one thousand five hundred (1,500) hours per year or more is eligible to be a participant, but this term shall not apply to an official of the city elected by popular vote who is also eligible to be a participant.

(23) 2013 Active Retirees shall mean those retired participants who (i) have terminated their employment with the City, (ii) are receiving retirement benefits provided by the plan, and (iii) were re-employed by the City between April 15, 2013 and April 1, 2014; and (iv) are paid on an hourly basis or on a weekly, semimonthly or monthly salary (but not including temporary or seasonal employees or persons rendering a service under a contract) whether employed on a full-time or a part-time basis. However, the term "2013 Active Retirees" shall not include (i) any person employed by the City in the Department of Fire or Police who is eligible for or is participating in the [Firemen's and Policemen's Insurance and Pension Fund, created by Chapter 165 of the 1949 Private Acts], as amended in § 2-400, *et seq.* hereof, or (ii) any person who is eligible for or who is participating in the Tennessee Teachers Retirement System, as contained in Section 49-1501, *et seq.* [repealed], of Tennessee Code Annotated.

(24) Active Retired Participant shall mean any retired participant who (i) has terminated his/her employment with the City, (ii) is receiving retirement benefits provided by the plan, (iii) is re-employed by the City on or after April 1, 2014, and (iv) is paid on an hourly basis or on a weekly, semimonthly or monthly salary (but not including temporary or seasonal employees or persons rendering a service under a contract) whether employed on a full-time or a part-time basis. However, the term "Active Retired Participant" shall not include (i) any person employed by the City in the Department of Fire or Police who is eligible for or is participating in the [Firemen's and Policemen's Insurance and Pension Fund, created by Chapter 165 of the 1949 Private Acts], as amended in § 2-400, *et seq.* hereof, or (ii) any person who is eligible for or who is participating in the Tennessee Teachers Retirement System, as contained in Section 49-1501, *et seq.* [repealed], of Tennessee Code Annotated. In all cases of doubt, the trustees shall determine whether or not a person is an Active Retired Participant as herein defined.

(25) The term Code means the Internal Revenue Code of 1986, as amended.

(Ord. No. 12983, §§ 2, 3, 8-25-15)—(1.12), (1.17)—(1.22); Priv. Acts 1967, Ch. 169, §§ 2—5; Priv. Acts 1968, Ch. 430, § 1; Priv. Acts 1971, Ch. 137, § 5; Priv. Acts 1972, Ch. 402, § 1; Ord. No. 7408, §§ 1(2)—(4), 8-22-78; Ord. No. 9766, §§ 1(3), (7), 8-11-92; Ord. No. 8688, §§ 1(3), (23), 8-19-86; Ord. No. 10739, § 1(1), 8-18-98; Ord. No. 11011, §§ 1(1), (4), 5-9-00; Ord. No. 11272, § 1, 5-2-02; Ord. No. 12852, §§ 1, 2, 8-26-14; Ord. No. 13023, §§ 1, 2, 1-26-16; Ord. No. 14017, § 1, 8-15-23)

Sec. 2-304. Conditions of eligibility; non-eligibility.

(a) Except for an Active Retired Participant as that term is defined in Section 2-303(24), each employee hired after February 1, 1979, and each of the 2013 Active Retirees shall be a participant of this plan as a condition of employment. Participation in the plan shall commence with the first payroll period.

(b)* Each of the 2013 Active Retirees as that term is defined in Section 2-303(23) shall be allowed to either (i) opt out of participation in the plan for their current re-employment, receive a refund of all contributions made for their current re-employment and be eligible to participate in the deferred compensation program offered by the City or (ii) make the mandatory employee contributions at the plan's stated percentage rate and be entitled to accrue credited service for the period of-re-employment in the same manner and subject to the same vesting rules applicable to newly hired employees with any benefit earned being treated as a new and independent retirement benefit.

(c) Except for an Active Retired Participant as that term is defined in Section 2-303(24), each employee or 2013 Active Retiree shall continue to be a participant as long as he/she continues employment with the City.

(d) Beginning April 1, 2014, and continuing thereafter, any Active Retired Participant who has terminated his/her employment with the City and who is receiving pension benefit payments during his/her re-employment period with the City (which represents benefits accrued for periods of employment before his/her re-employment) shall continue to receive his/her pension benefit payments but shall not be entitled to participate in the plan during the period of re-employment with the City. However, during the period of re-employment, an Active Retired Participant may participate in the deferred compensation program offered by the City.
(Ord. No. 12983, §§ 2, 3, 8-25-15); Ord. No. 7408, §§ 1(6), (16), 8-22-78; Ord. No. 8688, § 1(5), 8-19-86; Ord. No. 10084, § 1(6), 8-16-94; Ord. No. 12852, § 3, 8-26-14)

Sec. 2-305. Financing of plan.

(1) Employee contributions. Each participant shall pay to the city by payroll deduction an amount which shall be two percent (2%) of their earnings. Employee contributions shall be payable by a participant each payroll period during which he or she is a participant. The City Council, in its discretion, after, and only after, a recommendation has been received from the board of trustees, may by ordinance passed on three (3) separate readings, increase or decrease such employee contributions on or after July 1, 1969, and annually thereafter; provided, however, that such increase or decrease specified in said ordinance is the same as recommended by the board of trustees and is not inconsistent with any recommendation or report rendered by a qualified and accredited actuary as required by subsection (2) below.

Editor's note—Former reference to § 3.02 of Priv. Acts 1965 and to Charter § 3.39(2) changed to subsection (2) below for codification.

(2) City contributions. The city shall contribute monthly to the fund for the first plan year an initial amount equal to nine percent (9%) of the annual payroll of participants, such percentage being known as the "city contribution rate." The city must also contribute, commencing with the fiscal year of 1966-67, an amount that will amortize the past service liabilities over a period not in excess of thirty (30) years from December 31, 1978. Thereafter the city contribution rate applicable for any plan year shall be determined actuarially on the basis of an annual actuarial valuation of the plan made as of December 31 in the preceding plan year. The city contribution rate, and the past service liability, shall be determined by a qualified or accredited actuary, selected by the board of trustees, according to accepted and sound actuarial principles, methods and actuarial assumptions. Such city contributions, as are so determined by said actuary and when approved by the board of trustees and certified to the Human Resources Director on or before June 1, must be appropriated by the city in the annual budget ordinance for the immediately following fiscal year.

***Note—**It is the opinion of the City Attorney that this provision is not inconsistent with Chattanooga City Charter, Appendix 1, ¶ 35.

(3) City to levy tax. The city is hereby empowered, authorized, and required to levy a sufficient annual tax upon all taxable property and taxable privileges within the City of Chattanooga for the purpose of raising revenue in order to make its contributions to the plan and for the payment of pensions to participants in the plan, and it shall appropriate same for such purposes.

(4) Picking up of contributions. Notwithstanding the provisions hereof employee contributions may be "picked up" by the city pursuant to Section 414(h) of the Internal Revenue Code.
(Ord. No. 12983, §§ 2, 3, 8-25-15)—(3.03); Priv. Acts 1967, Ch. 169, §§ 8—10; Priv. Acts 1972, Ch. 402, § 2; Ord. No. 7408, §§ 1, 1(7), 8-22-78; Ord. No. 9766, §§ 1(5), (7), 8-11-92; Ord. No. 10084, § 1(2), 8-16-94)

Sec. 2-306. Benefits; conditions.

(1) Application forms. Payment of all benefits under the plan shall be subject to written application by the participant or beneficiary, as the case may be, submitted in such form as the board may direct from time to time.

(2) Normal retirement-conditions. Each participant in the employment of the city on his normal retirement date shall be eligible to retire on that date and to receive a benefit as provided in Section 2-307 hereof.

Editor's note—Former reference to Section 5.01 of the Priv. Acts 1965 and to § 3.41 of the Charter has been changed to Section 2-307 for codification.

(3) Early retirement, vesting-conditions. A participant who has at least five (5) years of credited service as provided in this plan and whose employment is terminated for whatever reason, including resignation or for cause, may elect not to receive a refund and thereby be eligible for any of the benefits provided under this plan.

(4) Death before retirement benefits are payable. If a participant dies before he has completed five (5) years of credited service and before he has attained age sixty-two (62), his beneficiary shall receive a refund of all the deceased participant's contributions to the plan, without interest, payable within fifteen (15) days after date of death. If a participant dies after he has completed five (5) years of credited service or after he has attained age sixty-two (62), any option he may have elected, in lieu of his otherwise retirement benefit, shall be payable as though he had been entitled to have such optional benefit commence on his date of death; and in the event such a participant has not elected any option prior to his death, a benefit shall be payable to the deceased participant's surviving spouse, if any, as though he had elected Option A. However, a beneficiary entitled to receive any optional benefit in accordance with this subsection shall be eligible to elect to receive a full refund, without interest, of the deceased participant's contributions to this plan in lieu of all other benefits payable in accordance with this subsection, or may elect to receive a monthly benefit payable for life to commence at or after age sixty-two (62) which has an actuarial value equal to and in lieu of the amount of optional benefit to which she is otherwise entitled.

Editor's note—Change in original text from reference of "section" to "subsection" made for accuracy.

(5) Death after retirement benefits are payable. No death benefit shall be payable to a participant's beneficiary under the plan other than a refund of the amount by which the deceased participant's contributions exceed benefits that have been paid to him or his beneficiary in the case of a participant who dies after retirement benefits are payable, unless an optional form of retirement benefit has been elected which specifically provides for another method of payment.

(6) Disability pensions.

(a) The board of trustees shall establish a disability pension plan for persons who become disabled in the line of duty or not in the line of duty. The trustees may fulfill this obligation by purchasing a commercial disability insurance policy, by establishing a self-funded disability plan administered

by an insurance company or other qualified administrator, or by any combination thereof. This disability program may provide for partial disability payments for employees who recover sufficiently to become gainfully employed, but who are not recovered sufficiently to return to their normal employment or occupation.

(b) For the purposes hereof, the phrase "disabled in the line of duty" shall generally relate to those disabilities proximately caused by acts or incidences occurring as a result of employment with the city; however, the trustees may purchase insurance policies with different definitions. The trustees are also authorized to adopt a more specific definition of disability with respect to a self-funded program.

(c) For the purposes hereof, the phrase "disabled not in the line of duty" shall refer to those disabilities that do not qualify as "disabled in the line of duty." The trustees may purchase insurance policies with different definitions of "disabled not in the line of duty" or may establish a more specific definition with respect to a self-funded program.

(d) For the purposes hereof, the words "disabled" or "disability," shall refer to a medically determinable bodily injury, disease, or condition or mental disorder so that during the continuation thereof the person is unable to perform the duties of his occupation or employment. The trustees may purchase insurance policies with different definitions, including definitions of "partial disability," or adopt more specific definitions in a self funded disability program.

(e) For the purposes hereof, the phrases "partial disability" or "partially disabled" shall refer to those medically determinable bodily injury, disease, or condition or mental disorder which prevents a person from following his normal employment or occupation, but which does not disable the employee from other employment or occupations for which he or she is qualified by reasons of education, training, or experience or for which he or she can be reasonably trained. The trustees may purchase insurance policies with different definitions or adopt a more specific definition in a self funded disability program.

(f) Employees who become totally disabled as a result of an injury in the line of duty continue to accrue credited service for those periods of time in which they are totally disabled. The accrual of such credited service shall end at the normal retirement date of the employee.

(g) Except to the extent otherwise provided by any policy or self-funded program, no employee shall be entitled to disability benefits under the section if the disability may be corrected by competent medical treatment, and said employee fails or refuses to be so treated. Employees may be required to undergo medical examinations by physicians selected by the insurance carrier or Trustee to establish eligibility for a disability pension. If a disability pension is approved, employees shall thereafter be subject to periodic medical examinations by physicians selected by the Trustees or the insurance carrier to maintain their eligibility for disability pension payments.

(h) Except as hereinafter provided, no employee shall be entitled to disability benefits under this section as a result of injury or disease sustained by the participant while serving in the Armed Forces or as a result of warfare. Notwithstanding the foregoing, in the case of a death or disability occurring on or after January 1, 2007, if a member dies while performing qualified military service (as defined in section 414(u) of the Internal Revenue Code of 1986), as amended, the survivors of the participant are entitled to any additional benefits (other than benefit accruals relating to the period of qualified military service) provided under the plan as if the participant had resumed and then terminated employment on account of death.

(7) Physical examination. The trustees or insurance carrier, before granting any disability pension, may require the applicant to submit to a physical examination by one (1) or more physicians designated by said trustees or insurance carrier. Each person drawing any disability pension shall be subject to periodic examination by a physician selected by the trustees or insurance carrier at the expense of the fund or carrier.

(8) Other termination of employment. If the employment of a participant is terminated for any reason, and he or his beneficiary is not eligible to receive a benefit under subsections (2) through (6) above, he shall receive a refund without interest of his contributions to this plan, and any former plan, without interest, payable ninety (90) days thereafter, if he so requests.

(Ord. No. 12983, §§ 2, 3, 8-25-15)—(4.05), (4.08); Priv. Acts 1967, Ch. 169, §§ 11—13; Priv. Acts 1972, Ch. 402, § 4; Ord. No. 7408, §§ 1, 1(8), 8-22-78; Ord. No. 9766, § 1(2), 8-11-92; Ord. No. 10739, § 1(1), 8-18-98; Ord. No. 11011, § 1(9), 5-9-00; Ord. No. 13023, § 4, 1-26-16)

Editor's note—Former reference to Sections 4.02, 4.03, 4.04, 4.05 or 4.06 of Priv. Acts 1965 changed to "subsection (2) through (6) above" for codification.

Sec. 2-307. Benefits; methods of calculation.

(1) Normal retirement benefit. Any participant may upon retirement at his or her normal retirement date or early retirement date receive as an annual pension, payable in monthly installments beginning upon the last day of the first month following retirement and on the last day of each month thereafter during his lifetime, the sum of two percent (2%) of average earnings multiplied by years of credited service up to twenty (20) years plus one percent (1%) of average earnings multiplied by years of credited service in excess of twenty (20) years. Provided that any employee who shall be vested as of the effective date of this amendment may have his or her normal retirement benefit calculated pursuant to the provisions of 2-308, but the remaining applicable provisions of this 2-307 shall apply.

Editor's note—Ord. No. 11011 changed the method of calculating benefits to eliminate the "social security offset" except for employees who were vested. The "social security offset" calculation was retained as an optional method of calculation of benefits for those vested as provided in Section 2-307. Former reference to Sections 5.01 and 5.01.1 of Priv. Acts 1965 were changed to Sections 2-307 and 2-308 respectively for codification.

(2) Early retirement benefit. A participant upon retirement on their early retirement date, shall as they may elect, receive either (a), (b), or (c) as follows:

(a) A monthly deferred early retirement benefit, which shall be payable on his normal retirement date, provided he is then living and on the first day of each month thereafter during his lifetime, computed in the manner set forth in 2-307(1) hereof, except that such computation shall be made as of his early retirement date.

Editor's note—Former reference to 5.01 of Priv. Acts 1965 and 3.41(1) of the Charter changed to 2-307(1) for codification.

(b) An immediate early retirement benefit shall be payable on the last day of the month after retirement and monthly thereafter during their lifetime, the amount of which shall be the amount of the benefit provided in subparagraph (a) above reduced by two and one-half (2½) divided by twelve (12) of one percent (1%) thereof for each full month in the period of time between their early retirement date and their normal retirement date. However, if the sum of the participant's age and years of credited service is at least eighty (80) at the time of retirement, there shall be no reduction in the immediate early retirement benefit.

(c) Provided that any participant who shall be vested upon the effective date hereof, may have his or her early retirement benefits calculated pursuant to Section 2-308(2). The remaining applicable provisions of this 2-307 shall apply to employees selecting the calculation of benefits pursuant to 2-308(2).

Editor's note—Former reference to Section 5.01, 5.02.1 of Priv. Acts 1965 and 3.41.1(2) of Charter changed to 2-307, 2-308(2), and 2-308(2) respectively for codification.

(3) Reduction of benefits. Notwithstanding any provision in this plan to the contrary, any benefit payable to the participant determined in accordance with this section on account of service as an employee of the city shall be reduced actuarially to reflect any pension benefit or other benefit attributed to the same service and payable from any other pension plan (other than Social Security), including but not limited to labor union pension plan(s), to which the city has contributed and under which an employee has a right to receive a benefit. The actuarial method to be used to effect the actuarial reduction shall be to determine the benefit which has the same single sum value as the single sum value of pension benefits otherwise payable under this plan less the single sum value of the pensions received from said other pension plan.

(4) Cost-of-living adjustments to pension benefits. Effective January 1, 2000, any benefit payable under this plan to or on account of a retired participant shall be increased by a three percent (3%) cost-of-living adjustment and such benefits shall be increased each subsequent year on January 1 by three percent (3%); provided that the City Council may by ordinance upon recommendation from the Board of Trustees of the General Pension, and upon receipt of a report of the actuarial consequences of a change either increase or decrease future cost of living increases for any subsequent year. Once a cost-of-living benefit has been added to a benefit, it shall never be reduced thereafter. Provided, further, that the cost of living increase payable to any surviving beneficiary of a participant receiving optional benefits shall be determined by multiplying the applicable cost-of-living percentage by the benefit payable to the participant at the time of his death and the benefit payable to the beneficiary shall thereafter be adjusted in accordance with the applicable cost-of-living percentage payable on the optional benefits received by the beneficiary commencing on the January 1 following the participant's date of death.

(5) Transfer to Firemen's and Policemen's Insurance and Pension Plan. Notwithstanding any provisions to the contrary, the General Pension Plan is hereby amended to provide that a Participant in the Firemen's and Policemen's Insurance and Pension Plan [Fire and Police Pension Fund] who has transferred employment from the provisions of the General Pension Plan shall have the right to have his service under the General Pension Plan vested if it amounts to five (5) years or more and said Participant has more than five (5) years credited service under the Firemen's and Policemen's Insurance and Pension Plan. Such employee shall be entitled to receive, if no longer employed by the City, a proportionate pension from the General Pension Plan based upon either the Early Retirement or Normal Retirement Provisions, provided such employee is eligible to retire under either of such provisions. Such pension shall be calculated according to salary history and method used at the time of such transfer from the General Pension Plan. If a Participant leaves the employment of the City with less than five (5) years credited service in each plan, unless disabled in the line of duty or entitled to any pension benefits under either plans, then said person shall receive a Refund of the contributions made by such person to either or both of said pension plans.
(Ord. No. 12983, §§ 2, 3, 8-25-15); Ord. No. 7408, §§ 1(10), (11), 8-22-78; Ord. No. 8688, § 1(2)(b)(c), 8-19-86; Ord. No. 10084, §§ 1(1), 1(2), 8-16-94; Ord. No. 11011, §§ 1(2), (5), 5-9-00)

Editor's note—Firemen's and Policemen's Pension Plan is now called Fire and Police Pension Fund and is set forth in this Code at § 2-400 et seq.

Sec. 2-308. Benefits; method of calculation with Social Security Offset.

(1) Normal retirement benefit. A participant, upon retirement on his normal retirement date, shall receive a monthly retirement benefit which shall be payable on the last day of the month after retirement and on the last day of each month thereafter during his lifetime. Unless an optional benefit under Section 2-309 is selected, the amount of such monthly benefit, computed as of his normal retirement date, shall be one-twelfth (1/12) of (a) multiplied by (b) as follows:

(a) Sixty percent (60%) of average earnings, less fifty percent (50%) of any primary insurance amount payable to him as a benefit under the Social Security law at age sixty-two (62), but not including that portion of Social Security benefits attributable to his having a spouse and/or dependents. If a participant has credited service at retirement in excess of twenty-five (25) years, the sixty percent (60%) in the preceding sentence will be increased in increments of one percent (1%) for each full year of such credited service in excess of twenty-five (25) years. (Ord. No. 11011, § 1(6), 5-9-00)

(b) Credited service not in excess of twenty-five (25) years divided by twenty-five (25). The amount of such primary social security shall be computed by the board of trustees in accordance with the method by which the primary insurance amount is determined under the social security law as such law existed on the date of termination of the participant's employment; except that the primary insurance amount shall be based on the amount of his average earnings on such date, and shall be assumed to commence on such date; provided further, however, that if the participant proves to the satisfaction of the board of trustees that the actual amount of his monthly primary social security, not reduced by reason of any earnings, is less than the amount computed by the board of trustees, then the board shall thereupon adjust upward his benefit provided by this plan to reflect appropriately his actual amount of primary social security.

Editor's note—Former reference to Article 6 of Priv. Acts 1965 and Section 3.42 of Charter changed to Section 2-309 for codification.

(2) Early retirement benefit. A participant, upon retirement on his early retirement date, shall as he may elect, receive either (a) or (b), as follows:

(a) A monthly deferred early retirement benefit, which shall be payable on his normal retirement date, provided he is then living, and on the first day of each month thereafter during his lifetime, computed in the manner set forth in Section 2-307, except that such computation shall be made as of his early retirement date and the deduction for social security shall be based upon an estimate of the primary insurance amount payable at age sixty-two (62), subject to adjustment of future payments based upon the primary insurance amount actually payable at age sixty-two (62).

Editor's note—Former reference to Section 5.01 of Priv. Acts 1965 and Section 3.41(1) of Charter changed to Section 2-307 for codification.

(b) An immediate early retirement benefit shall be payable on the last day of the month after retirement and monthly thereafter during their lifetime, the amount of which shall be the amount of the benefit provided in subparagraph (a) above reduced by two and one-half (2½) divided by twelve (12) of one percent (1%) thereof for each full month in the period of time between their early retirement date and their normal retirement date. However, if the sum of the participant's age and years of credited service is at least eighty (80) at the time of retirement, there shall be no reduction in the immediate early retirement benefit.

(Ord. No. 12983, §§ 2, 3, 8-25-15), (5.02); Priv. Acts 1967, Ch. 169, §§ 14, 15; Priv. Acts 1972, Ch. 402, § 3; Ord. No. 8688, § 1(4), 8-19-86; Ord. No. 10084, §§ 1(4), (5), 8-16-94; Ord. No. 11011, §§ 1(3), (7), 5-9-00)

Sec. 2-309. Optional retirement benefits.

(1) Election of optional retirement benefits. A participant entitled to a retirement benefit may elect, subject to written notice of his election filed with or prior to his application for retirement to which the participant may be entitled and subject to such requirements as the trustees may establish, to have a

retirement benefit payable under one (1) of the options hereinafter set forth in lieu of all other retirement benefits he is otherwise entitled to receive. The benefit shall be paid in accordance with the terms of the option elected. The participant may revoke his election of an option and make a new election, subject to written notice of his new election filed with or prior to his application for retirement and subject to such requirements as the trustees may establish. Election of any optional retirement benefit shall be approved by the trustees and must be made by the participant in writing in such manner and form as the trustees may require.

(2) Description of optional retirement benefits. The amount of any optional retirement benefit set forth below shall be the actuarial equivalent of the amount of benefit that would otherwise be payable to the retired participant under Section 2-307; provided, however, that an optional retirement benefit in lieu of the deferred early retirement benefit shall not be less than the benefit that would have been payable if retirement had occurred at the normal retirement date.

OPTION A: 120 PAYMENTS CERTAIN AND LIFE OPTION. A decreased retirement benefit payable for life with the first one hundred twenty (120) payments guaranteed. Any guaranteed payments due after the death of the retired participant shall be payable to his designated beneficiary, if any, who survives the retired participant, or to the estate of the retired participant if there is no surviving, designated beneficiary.

OPTION B: JOINT AND SURVIVOR OPTION. A decreased retirement benefit payable to the retired participant for life which shall continue after his death to his surviving beneficiary in the same amount as that payable to the retired participant.

OPTION C: MODIFIED JOINT AND SURVIVOR OPTION. A decreased retirement benefit payable to the retired participant for life, fifty percent (50%) (or some other percent that is less than one hundred percent (100%)) of which shall continue after his death to his surviving beneficiary for life.

OPTION D: MODIFICATION OF OPTION B. A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life which shall continue after his or her death to their surviving beneficiary in the same amount as that payable to the retired participant provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit, which would have been payable had the participant not elected an option.

OPTION E: MODIFICATION OF OPTION C. A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life fifty percent (50%) (or some other percent that is less than one hundred percent (100%)) of which shall continue after his or her death to their surviving beneficiary for life. Provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit, which would have been payable had the participant not elected an option.

Editor's note—Former reference to Article 5 of Priv. Acts 1965 and Section 3.41 of Charter changed to Section 2-307 for codification.

(3) In the event of a divorce of a participant who retired under an optional retirement plan, where the spouse is the designated beneficiary, the beneficiary may be cancelled upon the written request of the member and proper documentation, which shall include the final decree and marital dissolution agreement of the parties; provided, that such cancellation is not in conflict with the decree or marital dissolution agreement. The retirement allowance payable to the retiree after the cancellation of the designated beneficiary shall not be affected by such cancellation.

(Ord. No. 12983, §§ 2, 3, 8-25-15)—(6.03); Ord. No. 8688, § 1(2)(d), 8-19-86; Ord. No. 10463, §§ 1(5), (6), 8-20-96)

Sec. 2-310. Amendment and termination of plan.

In the event that the plan is amended, no such amendment shall cause or permit any part of the plan assets to be used for, or diverted to, purposes other than for the exclusive benefit of the participants and retired participants, or their beneficiaries; no amendment shall have the effect of revesting in the city any portion of such funds; and no amendment, unless it is necessary to meet the requirements of any state or federal law or regulation, shall operate to deprive any participant of any benefits which have vested in him prior to such amendment.
(Ord. No. 12983, §§ 2, 3, 8-25-15))

Sec. 2-311. Administration of plan.

(1) Administration. The Board of Trustees of the General pension Plan is hereby expanded to seven (7) members. The Mayor or his/her designee shall be an ex-officio member of the Board of Trustees and shall have the right to vote on all matters. The other six (6) Trustees shall be appointed by the Mayor with the approval of a majority vote of the entire membership of the City Council. (The City Auditor and City Treasurer shall no longer serve as ex officio members of the Board of Trustees.) The Mayor and Council shall ensure in the exercise of their appointment powers as vacancies occur on the Board of Trustees that black representation thereon will be consistent with the percentage of the black population in the City. No person shall be eligible to be a Trustee unless he or she (a) is a trust or investment officer, or has the qualifications of a trust or investment officer as determined from the requirements for those positions by prevailing custom in local government, and among the banks, insurance companies or licensed stock or bond brokers who have offices in Chattanooga, Tennessee, and (b) is a resident of the City of Chattanooga, Tennessee, or is employed within the corporate boundaries of the City of Chattanooga, Tennessee. Of the six (6) appointed members of the Board, no more than two (2) may be employed by the same employer. Two (2) of the members of the Board shall be appointed to initial terms of five (5) years, two (2) of the members shall be appointed to initial terms of four (4) years and two (2) of the members shall be appointed to initial terms of three (3) years. Thereafter, all terms shall be for five (5) years. The City Human Resources Director (by whatever title) shall be the keeper of the records of the Board of Trustees.

It shall establish written rules, regulations and procedures to be followed by participants and beneficiaries in filing applications for benefits, in furnishing and verifying proof necessary to determine age, and in any other matters required to administer this plan or as required by law. Before any such rule, regulation or procedure is operative it shall be approved by the city attorney as to legality and form, and shall then be filed with the city finance officer.

The Board of Trustees shall receive all applications for benefits and shall determine all facts necessary to establish the right of the applicant to benefits under the provisions of the plan and the amount thereof as herein provided, and it will afford any applicant the right of a hearing with respect to any findings of fact or determination.

The Board of Trustees shall prepare and distribute information concerning the plan to the participants at the expense of the fund and in such manner as it shall deem appropriate.

The Board of Trustees shall be entitled to rely upon all tables, valuations, certificates, and reports furnished by a consultant or actuary appointed by it. The trustees may require opinions from the city attorney or any special counsel selected by the city attorney. The board of trustees and the city shall be fully protected in respect of any action taken or suffered by them in good faith in reliance upon the advice or opinion of any such consultant, actuary of [or] counsel, and all action so taken or suffered shall be binding upon each of them and upon all participants or other persons interested in the plan. The trustees shall pay from the fund the fees, charges or expenses for consultant, actuary or said legal services.

(2) Records. All acts and determinations of the Board shall be duly recorded and all such records, together with such other documents as may be necessary for the administration of the plan, shall be preserved in its custody and kept by the City Human Resources Director. Such records and documents shall at all reasonable times be open for inspection and for the purpose of making copies by any person duly authorized by the Board.

(3) Exemption from liability. The members of the Board, and each of them, shall be free from all liability, joint or several, for their acts, omissions and conduct, and for the acts, omissions and conduct of their duly constituted agents, in the administration of the plan, and the city shall indemnify and save them, and each of them, harmless from effects and consequences of their acts, omissions and conduct in their official capacity, except to the extent that such effects and consequences shall result from their own willful misconduct or gross negligence.
(Ord. No. 12983, §§ 2, 3, 8-25-15)—(8.03); Ord. No. 9766, § 1(7), 8-11-92; Ord. No. 11272, 5-2-02; Ord. No. 14017, § 2, 8-15-23)

Sec. 2-312. Additional rights and powers.

(1) Supplemental contributions. Any person who was an employee on January 1, 1965, upon becoming a participant in this plan, shall be eligible to receive credited service for (a) all of the time he was a participant in a former plan, plus (b) a period of time not to exceed ten (10) prior years that he was an employee, whether continuous or not, while a former plan(s) was in force and he was not a participant in such former plan(s); but only if, and on the condition that, he pay to the city before January 1, 1966, such amounts as he would have paid as employee contributions under this plan had it been in existence during such time. The City shall likewise pay into this plan nine percent (9%) of the gross compensation for the same period of time of said employee who, as aforesaid, shall pay for said past service while not a participant in a former plan(s).

(2) [Determination of service for charter officials.] With regard only to the computation of benefits as provided in Section 2-307 hereof, credited service for the charter officials of the city who are elected by the voters shall mean and be equal to the sum of credited service as defined in Section 2-303(10), plus an additional amount of service equal to fifty percent (50%) of the number or years of service as such official. This credited service also shall apply to such official who is appointed to the city council or to a city judgeship to fill a vacancy.

Editor's note—Former references to Article 5 and Section 1.10 of Priv. Acts 1965 and of Section 3.37(10) of the Charter changed to 2-307 and 2-303(10) for codification.

(3) Employees who terminated employment under the salaried employees insurance and pension fund prior to the effective date of this plan. In the event that an employee, who was covered by the salaried employees' insurance and pension fund (Private Acts of 1961, Chapter 298), ceased to be employed by the city after December 31, 1965, and was eligible to receive a refund of a portion of his contributions from the aforesaid salaried employees' insurance and pension fund, he shall receive a refund of his total contributions without interest. Such amount shall be deducted and payable from the fund of the salaried employees' insurance and pension fund before any transfer of funds is made to the plan.

Editor's note—In the opinion of the City Attorney, this provision is archaic and no employees or beneficiaries of this plan are affected; however, it is retained in this codification for historic reference.

(4) Reserved.

(4.1) Reserved.

(5) Minimum benefit for participants who were participants in a former plan. Notwithstanding any other provision of this plan to the contrary, eligibility for and the amount of benefits under any former plan(s), in which the participant under this plan was a member may be paid in the manner provided for in

such former plan(s) if requested by the participant or his beneficiary, but such selection, once made, shall be irrevocable; provided, however, that any person who was under the Department of Education Insurance and Pension Fund Act, and who has elected to become a member of this plan, shall also be eligible for retirement benefits under the salaried employees' insurance and pension fund act if said benefits are not less than the benefits under this plan.

(6) Reserved.

(Ord. No. 12983, §§ 2, 3, 8-25-15)—(9.06); Priv. Acts 1967, Ch. 169, §§ 16, 17; Priv. Acts 1971, Ch. 137, §§ 6, 7; Priv. Acts 1972, Ch. 403, § 1; Ord. No. 8688, § 1(2)(d), 8-19-86; Ord. No. 9766, §§ 1(b), 1(7), 8-11-92)

Sec. 2-313. Trust management.

(1) Establishment of trust. The fund under this plan shall initially consist, as of January 1, 1965, of the current appropriations, if any, and/or the assets less any benefits or expenses incurred between January 1, 1965, and when this Act is ratified, of said existing pension systems whether now open or closed by law, known as-

(a) Employees' Insurance and Pension Fund (Private Acts of 1937, Chapter 678),

(b) Department of Education Insurance and Pension Fund (Private Acts of 1937, Chapter 221),

(c) Salaried Employees' Insurance and Pension Fund (Private Acts of 1961, Chapter 298), and

(d) Officials Pension System (Private Acts of 1961, Chapter 300), all as may have been heretofore amended.

Editor's note—In the opinion of the City Attorney, these references to prior pension plans are archaic and that no current participant or beneficiary is affected; however, these provisions are maintained in this codification for historic reference.

(2) Contributions to trustee. Contributions shall be paid to the trustees from time to time in accordance with the terms of this Act [division]. It shall be the duty of the trustees to receive, hold, invest, reinvest and distribute the fund in accordance with the provisions of this Act [division]. The trustees shall be under no duty to enforce payment of any contribution to the fund and shall not be responsible for the adequacy of the fund to meet and discharge any liabilities under this plan.

(3) Management of fund. The trustee shall be authorized and empowered to manage the fund and invest and reinvest the principal and income thereof in its discretion, subject to the terms and provisions of Chapter Two, Chapter Three, Chapter Seven and Chapter Nine of Title Thirty-five of the Tennessee Code Annotated as said statutes now exist or as they may be hereafter amended, repealed or interpreted by the courts.

(4) Disbursements. The trustees shall be authorized to direct the city Human Resources Director to make payments from the fund and shall maintain a written account of all payments from the fund. The trustees shall be fully protected in acting upon any action decided up by the board in good faith without inquiry or investigation, and shall have the duty and authority to determine the right or benefits of any employee or beneficiary under the plan. The board of trustees may give directions in writing signed by such person or persons as the trustees may authorize in writing from time to time.

(5) Spendthrift clause. Except for obligations which may be owed to the city by an employee at the time of his termination or retirement, no benefit under the plan shall be subject in any manner to anticipation, alienation, sale, transfer, assignment, pledge, encumbrance, or charge; and any attempt to anticipate, alienate, sell, transfer, assign, pledge, encumber or charge shall be void. No such benefit shall in any manner be liable for or subject to the debts, contracts, liabilities, engagements or torts of the person entitled to such benefit except as specifically provided in the plan.

(6) Accounting by trustee. The trustees shall keep accurate and detailed accounts of all investments, receipts, disbursements and other transactions hereunder; and all accounts, books and records relating thereto shall be open to inspection and audit at all reasonable times by any certified public accountant designated by the city council and the expense thereof shall be paid by the city. The city council shall have an annual audit made as aforesaid.

(7) Expenses. The expenses incurred by the city in the installation and in the administration of this plan, and the expenses incurred by the trustees in the performance of their duties, and all other proper charges and disbursements of the trustees, shall be paid from the fund unless paid by the city. The compensation of each of the seven (7) trustees for his services as such trustee shall be fixed from time to time by the city council, and paid from the fund. Taxes of any and all kinds whatsoever that might be levied or assessed under existing or future laws upon the fund, or the income thereof, shall be paid from the fund.

(8) Resignation and removal of trustee. Any elected trustee may resign at any time upon written notice delivered to the board. Any elected trustee may be removed at any time for cause by the city council upon thirty (30) days' prior written notice delivered to said trustee and after an open hearing. Upon such resignation or removal of any trustee, the Mayor of the city shall, for the unexpired term of such trustee, appoint a successor trustee, subject to the approval of the Council, who shall have the same powers and duties as those conferred upon the trustees hereunder; and, upon acceptance of such election by the successor trustee, the funds and properties then constituting the fund shall thereby automatically be assigned, transferred and paid over to the board of trustees as then constituted.
(Ord. No. 12983, §§ 2, 3, 8-25-15)—(10.03), (10.05)—(10.09); Ord. No. 9766, § 1(7), 8-11-92; Ord. No. 11272, § 1, 5-2-02)

Sec. 2-314. Miscellaneous.

(1) Headings. The headings and subheadings in this Act [division] have been inserted for convenience of reference only, and are to be ignored in any construction of the provisions hereof.

(2) Construction. In the construction of this Act [division], the masculine shall include the feminine and the singular the plural in all cases where such meanings would be appropriate. The plan shall be construed in accordance with the laws of the State of Tennessee.

(3) Claims. Any payment to or for a participant, retired participant, or beneficiary, or to their legal representatives, in accordance with the provisions of this plan, shall, as to the extent of the method of computation as well as the amount thereof, constitute full satisfaction of all claims arising hereunder against the trustees and/or the city, and the trustees may require such participant, retired participant, or beneficiary or legal representative, as a condition precedent to such payment, to execute a receipt and release therefor in such form as shall be determined by the trustees.

(4) Legally incompetent. If any participant, retired participant, or beneficiary is a minor, or is in the judgment of the trustees otherwise legally incapable of personally receiving and giving a valid receipt for any payment due him hereunder, the trustees may, unless and until claim shall have been made by a guardian or conservator of such person duly appointed by a court of competent jurisdiction, direct that payment or any part thereof be made to such person or to such person's spouse, child, parent, brother or sister, or other person deemed by the board to be a proper person to receive such payment. Any payment so made shall be a complete discharge of any liability under the plan for such payment.

(5) Vested right based on credited service. Any participant whose credited service has been five (5) years or more shall not be deprived of a pension if discharged because of a change of administration, political or any other reason. Without prejudice to the foregoing vested right based on credited service, any employee may be discharged for legal cause after charges have been preferred in writing and he has been given a reasonable opportunity to have a public hearing and the charges are sustained by competent evidence.

(6) Correction of errors. If any change in records or error results in any retired participant or beneficiary receiving from the plan more or less than he would have been entitled to receive had the records been correct or had the error not been made, the board, upon discovery of such error, shall correct the error by adjusting, as far as practicable, the payments in such a manner that the benefits to which such person was correctly entitled shall be paid.

(7) Teacher benefits. A participant in this plan or former plan who is a teacher, whether now retired or who hereafter retires, shall receive an annuity that shall be twice the amount of the actuarial equivalent of his accumulated contributions to this plan plus any amount paid to this plan under Section 49-1542, Tennessee Code Annotated, as amended, or as it may be amended hereafter; but the total amount received from this plan and/or the Tennessee Teachers Retirement System by any such participant who hereafter retires on or after his normal retirement date shall not be less than the retirement benefit payable under Article 4 [section 3.04 hereof] (Benefits); provided, however, that the total amount received by such participant who is now retired from this plan and/or the Tennessee Teachers Retirement System, if any, shall not be less than the amount said participant is receiving from this plan and/or the Tennessee Teachers Retirement System, if any, at the time when this Act shall become operative by ratification by the city council.

As used in the preceding paragraph the following words and phrases shall have the following meaning:

(a) TEACHER shall mean any person employed in a public school as a teacher, helping teacher, librarian, principal, or supervisor, and shall include any superintendent or administrative officer of the department of education.

(b) TEACHER ANNUITY shall mean payment for life derived from the accumulated contributions of a participant.

(c) ACTUARIAL EQUIVALENT shall mean a benefit of equal value when computed upon the basis of mortality tables and rates of interest as shall be adopted by the board of trustees.

(d) ACCUMULATED CONTRIBUTIONS shall mean the sum of all the amounts deducted from the compensation of a participant together with interest compounded annually at the rate of three percent (3%).

Editor's note—It is the opinion of the City Attorney that no participants or beneficiaries remain in the plan that would be affected by this subsection; however, it is retained in this codification as a historic reference.

(8) Rights of survivors to pension. Should any participant die as a result of any medically determinable bodily injury, disease or condition resulting, directly or indirectly, from an act occurring, or a thing done, or a known or unknown risk taken in the performance of his duty with the city and shall be survived by a spouse, then his or her spouse shall receive the pension to which such deceased participant would have been entitled as if he had retired at age sixty-two (62) with twenty-five (25) years credited service so long as she remains his or her spouse and does not re-marry; if not survived by a spouse but is survived by a child or children under twenty-one (21) years of age, or if the spouse of such deceased participant should thereafter leave a surviving child or children of the deceased participant under twenty-one (21) years of age, the child shall receive said pension until he reaches the age of twenty-one (21) years or said children shall receive a pro rata amount of said pension until each becomes twenty-one (21) years of age. As each surviving child reaches age twenty-one (21), the pension shall be reapportioned among the then living children under age twenty-one (21). Further, in the event such participant is not survived by a spouse, or child or children under twenty-one (21) years of age, but is survived by a parent(s) solely dependent on the deceased participant, the parent(s) shall receive the pension to which a spouse would have been entitled as aforesaid so long as there is no other means of support.

(Ord. No. 12983, §§ 2, 3, 8-25-15)—(11.08); Priv. Acts 1971, Ch. 137, §§ 2—4; Priv. Acts 1972, Ch. 402, § 2; Ord. No. 9766, § 1(7), 8-11-92; Ord. No. 10739, § 1(1), 8-18-98; Ord. No. 11011, § 1(10), 5-9-00)

Sec. 2-315. Other pension systems closed to new employees.

Upon the date when this Act is ratified by the board of commissioners of the City of Chattanooga the pension systems known as Employees' Insurance and Pension Fund (Private Acts of 1937, Chapter 678), Salaried Employees' Insurance and Pension Fund (Private Acts of 1961, Chapter 298), and Officials Pension System (Private Acts of 1961, Chapter 300), shall be closed to all persons now or thereafter employed by the city who would otherwise have been eligible to participate therein, but the foregoing provision closing said pension systems to all future employees or elected officials, as the case may be, shall not effect or impair the right of any person who may now or hereafter receive a retirement or a full or disability pension therefrom.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Editor's note—The acts referred to in the above subsection are not included in this compilation, since they are closed to future employees. It is the opinion of the City Attorney that no participants or beneficiaries remain in the plan that would be affected by this section; however, it is retained in this codification as a historic reference.

Sec. 2-316. Amendment to Ch. 73, Priv. Acts 1959; effect of plan thereon.

Chapter 73 of the 1959 Private Acts, the title of which is set forth in the caption hereof, shall apply to this plan, and the age of children specified in said Act as being "sixteen (16) years of age" shall be changed, amended, or deleted and the words and figures "eighteen (18) years of age" shall be substituted in lieu thereof wherever they appear in said Chapter 73, Private Acts of 1959, but this amendment shall not affect or impair the existing right of any person who is receiving benefits provided under said 1959 Act.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Editor's note—Ch. 73, Priv. Acts 1959, is set out as § 3.29 of this compilation. The caption of Priv. Acts 1965, Ch. 254, which comprises this division, is not set out in this compilation. It is the opinion of the City Attorney that no participants or beneficiaries remain in the plan that would be affected by this section; however, it is retained in this codification as a historic reference.

Sec. 2-317. Repeal of Ch. 397, Priv. Acts 1961.

Chapter 397, Private Acts of 1961, the title of which is set forth in the caption hereof, be and the same is hereby repealed, but this repeal shall not affect or impair the existing right of any person who is now receiving the benefits provided by said Act to continue to receive benefits under said Act.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Editor's note—The caption to Priv. Acts 1965, Ch. 254, which comprises this division, is not set out herein. Ch. 397, Priv. Acts 1961 is not set out in this compilation. It is the opinion of the City Attorney that no participants or beneficiaries remain in the plan that would be affected by this section; however, it is retained in this codification as a historic reference.

Sec. 2-318. Deferred Retirement Option Plan ("DROP").

(a) A deferred retirement option plan ("DROP") is hereby created. A DROP is an optional retirement plan elected by the participants. A one (1) year DROP provides a lump sum payment to the participant at retirement based upon twelve (12) times the monthly benefit amount that the participant would be eligible to receive at retirement calculated prior to any actuarial reductions for other retirement options elected. Two (2) or three (3) year DROP payments shall be based upon twenty-four (24) or thirty-six (36) times said monthly benefit amount. The amount of the DROP lump sum elected shall be deducted from the actuarial value of the participant's pension and the reduced actuarial equivalent balance shall be payable in monthly periodic pension payments dependent upon the participant's elected retirement option.

(b) Only participants with twenty-six (26) or more years of service shall be eligible to participate in the DROP. A participant with twenty-six (26) years of service may elect a one (1) year DROP payment, a participant with twenty-seven (27) years of service may elect a one (1) or two (2) year DROP, and a participant with twenty-eight (28) or more years of service may elect a one (1) to three (3) year DROP. DROP elections shall be made in whole years only. The election shall be made at the time of retirement.

(c) The DROP payment elected shall be paid as soon as practicable after the retirement of the participant.

(d) Actuarial equivalents shall be based upon the age of the participant, the age of beneficiaries, if any, the retirement option selected, the amount of the DROP elected, the mortality tables and rates of interest then adopted by the Trustees of the General Pension Plan and upon such rules as may be adopted by said Trustees.

(e) A participant's right to participate in the DROP plan shall not be vested until a participant retires and elects to receive DROP lump sum payments. The DROP plan may be discontinued at any time or modified in any manner.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-319. Amendments by ordinance.

The City Council of the City of Chattanooga, in its discretion, may upon recommendation of the Board of Trustees of the General Pension Plan, upon advice by the Mayor, and upon receipt of an actuarial report as to the costs and actuarial soundness of such changes, may amend by ordinance passed upon two (2) separate meetings the provisions of the General Pension Plan providing such amendments are consistent with sound actuarial principles, methods and assumptions and further provided that such amendments shall not decrease any vested financial benefits accrued by any participant or beneficiary.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 5-9-00; Ord. No. 12677, 12-18-12)

Cross reference—Identical provision codified in Chattanooga City Charter, Sec. 3.52.

Sec. 2-320. Compliance with requirements of Internal Revenue Code.

The following provisions are intended to cause the Plan to comply with the requirements of the Internal Revenue Code of 1986, as amended, and the regulations thereunder.

A. Exclusive benefit to employees. All assets in the plan must be used exclusively for the benefit of participants or their beneficiaries or to defray the reasonable expenses of administration of the plan.

B. Mandatory commencement of benefits. Notwithstanding any provision of the plan to the contrary, the plan will begin benefit payments to a participant by the required beginning date, whether or not he/she applies for benefits. The "required beginning date" is April 1 of the calendar year following the calendar year in which the member attains age 70 ½.

C. Maximum limitation.

   a. Aggregate limits. For any limitation year the annual benefit cannot exceed the limitations set forth under Code Section 415(b) and the regulations thereunder, as applicable to a governmental plan (as defined in Code Section 414(d)), as indexed in accordance with Code Section 415(d), which are hereby incorporated by reference, including the definition of compensation under Code Section 415(c). The limitation year shall be the calendar year.

      If the plan must be aggregated with another plan to determine the effect of Code Section 415 on a participant's annual benefit, and if the benefit must be reduced to comply with Code Section 415, then such reduction shall be made pro rata between the two plans, in proportion to the participant's credited service in each plan.

b. Definition. The participant's accrued benefit shall not exceed the maximum permissible benefit, as defined below.

1. Defined benefit dollar limitation. The "defined benefit dollar limitation" is $160,000.00, as adjusted, effective January 1 of each year, under Code Section 415(d) in such manner as the Secretary of the Treasury shall prescribe, and payable in the form of a straight life annuity. A limitation as adjusted under Code Section 415(d) will apply to calendar years ending with or within the calendar year for which the adjustment applies.

2. Maximum permissible benefit. The "maximum permissible benefit" is the defined benefit dollar limitation, adjusted where required, as provided in subparagraphs (a), (b) and (c) below.

(a) Fewer than 10 years of participation. If the participant has fewer than 10 years of participation in the plan, the defined benefit dollar limitation shall be multiplied by a fraction, the numerator of which is the number of years (or part thereof) of participation in the Plan and the denominator of which is 10.

(b) Benefits beginning after age 65. If the benefit of a participant begins after the member attains age 65, the defined benefit dollar limitation applicable to the participant at the later age is the annual benefit payable in the form of a straight life annuity beginning at the later age that is actuarially equivalent to the defined benefit dollar limitation applicable to the participant at age 65 (adjusted under subparagraph (a) above, if required).

(c) Benefits not payable as a straight life annuity. Where a benefit from the plan is payable in a form other than a straight life annuity, the benefit shall be adjusted to an actuarially equivalent straight life annuity that begins at the same time as such other form of benefit.

For purposes of subparagraphs (a), (b), and (c) above, the determination of actuarial equivalent shall be made in accordance with the applicable provision of Code Section 415(b)(2)(E) and related regulations and rulings.

D. Qualified military service. Notwithstanding any provision of this Plan to the contrary, contributions, benefits and service credit for the purpose of vesting with respect to qualified military service will be provided in accordance with and to the extent required by the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA) and Code Section 414(u), under rules adopted hy the Board.

(Ord. No. 13023, § 3, 1-26-16)

Sec. 2-321. Amendments at request of Internal Revenue Service.

The following provisions are intended to cause the Plan to comply with the requirements of the Internal Revenue Code of 1986, as amended, and the regulations thereunder, pursuant to the request of the Internal Revenue Service in connection with the Plan's Application for Determination for Employee Benefit Plan (Form 5300), filed with the IRS on January 29, 2016.

(a) For years beginning after December 31, 2008: (i) an individual receiving a differential wage payment, as defined by Code § 3401(h)(2), is treated as an employee of the employer making the payment; (ii) the differential wage payment is treated as compensation for purposes of Code § 415(c)(3) and Treasury Reg. § 1.415(c)-2; and (iii) the Plan is not treated as failing to meet the requirements of any provision described in Code § 414(u)(1)(C) by reason of any contribution or benefit which is based on the differential wage payment.

(b) Notwithstanding any provision of the Plan to the contrary, a distributee may elect to have all or only a portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover. However, if less than the entire amount of an eligible rollover distribution is paid directly to an eligible retirement plan, the minimum partial rollover must equal at least five hundred dollars ($500.00).

(c) For purposes of subsections (b)—(e) of this Section 2-321, the following definitions shall apply:

(1) *Eligible rollover distribution.* An "eligible rollover distribution" means any distribution described in Code § 402(c)(4) and generally includes any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten (10) years or more; any distribution to the extent such distribution is required under Code § 401(a)(9); the portion of any other distribution(s) that is not includible in gross income; and any other distribution that is reasonably expected to total less than two hundred dollars ($200.00) during a year.

(2) *Eligible retirement plan.* An "eligible retirement plan" is an individual retirement account described in Code § 408(a), an individual retirement annuity described in Code § 408(b) (other than an endowment contract), a qualified trust (an employees' trust) described in Code § 401(a) which is exempt from tax under Code § 501(a) and which agrees to separately account for amounts transferred into such plan from this Plan, an annuity plan described in Code § 403(a), an eligible deferred compensation plan described in Code § 457(b) which is maintained by a state, political subdivision of a state, or any agency or instrumentality thereof which agrees to separately account for amounts transferred into such plan from this Plan, and an annuity contract described in Code § 403(b) that accepts the distributee's eligible rollover distribution. The definition of eligible retirement plan shall also apply in the case of a distribution to a surviving spouse, or to a spouse or former spouse who is an alternate payee. Effective for distributions after December 31, 2006, in the case of a "distributee" who is a non-spouse designated beneficiary, (1) the direct rollover may be made only to a traditional or Roth individual retirement account that is established on behalf of the designated non-spouse beneficiary for the purpose of receiving that distribution and that will be treated as an inherited IRA pursuant to the provisions of Code § 402(c)(11), and (2) the determination of any required minimum distribution required under Code § 401(a)(9) that is ineligible for rollover shall be made in accordance with IRS Notice 2007-7, Q&A 17 and 18.

Roth IRA rollover. For distributions made after December 31, 2007, a participant may elect to roll over directly an eligible rollover distribution to a Roth IRA described in Code § 408A(b).

(3) *Distributee.* A "distributee" includes an Employee or former employee. In addition, the employee's or former employee's surviving spouse and the employee's or former employee's spouse or former spouse who is an alternate payee, are distributees with regard to the interest of the spouse or former spouse.

(4) *Direct rollover.* A "direct rollover" is a payment by the Plan to the "eligible retirement plan" specified by the distributee.

(d) For distributions after December 31, 2006, a non-spouse beneficiary who is a "designated beneficiary" under Code § 401(a)(9)(E) and the Regulations thereunder, by a direct trustee-to-trustee transfer ("direct rollover"), may roll over all or any portion of his or her distribution to an

individual retirement account the beneficiary establishes for purposes of receiving the distribution. In order to be able to roll over the distribution, the distribution otherwise must be an "eligible rollover distribution."

(1) Any distribution made prior to January 1, 2010 is not subject to the "direct rollover" requirements of Code § 401(a)(31) (including Code § 401(a)(31)(B)), the notice requirements of Code § 402(f) or the mandatory withholding requirements of Code § 3405(c)).

(2) If the participant's named beneficiary is a trust, the Plan may make a direct rollover to an IRA on behalf of the trust, provided the trust satisfies the requirements to be a "designated beneficiary."

(e) A participant entitled to an eligible rollover distribution must receive a written explanation of his/her right to a direct rollover, the tax consequences of not making a direct rollover, and, if applicable, any available special income tax elections. The notice must be provided no less than thirty (30) days and no more than 180 days (90 days for Plan Years beginning before January 1, 2007) before such distribution. The direct rollover notice must be provided to all participants, unless the total amount the participant will receive as a distribution during the calendar year is expected to be less than two hundred dollars ($200.00).

(f) In case of termination of the Plan, the rights of participants to the benefits accrued under the Plan to the date of termination, to the extent then funded, shall be nonforfeitable.

(Ord. No. 13274, § 1, 1-30-18)

Sec. 2-322. Qualified domestic relations orders and orders for assignment of support.

(a) The Plan will honor claims presented under a qualified domestic relations order ("QDRO") as provided in T.C.A. Section 26-2-105. A QDRO is defined in Section 414(p) of the Internal Revenue Code. If a QDRO pertains to a participant who has not commenced receiving benefits at the time the QDRO is received by the Board of Trustees, the alternate payee under said QDRO will begin receiving a portion of the benefits otherwise payable to the participant, as specified by the order, at the time the participant commences benefits. If a QDRO pertains to a participant who is already receiving benefits under the Plan at the time the QDRO is received by the Board of Trustees, the alternate payee shall receive a portion of the payments being made to the participant, as specified by the order, at the time the order is determined by the Board of Trustees to be a QDRO that complies with T.C.A. Section 26-2-105. In no event will the alternate payee be allowed to change the payment method or the timing of the payments.

(b) As provided in T.C.A. Section 26-2-105, the Plan shall honor orders for assignment of support issued under T.C.A. Section 36-5-501.

(Ord. No. 13274, § 1, 1-30-18)

Secs. 2-323—2-399. Reserved.

DIVISION 5. FIRE AND POLICE PENSION FUND

Sec. 2-400. Appropriation to pension fund of percentage of salaries; control of fund; investments.

The City Council of said city, after it has adopted a budget for the salaries of the departments of fire and police each year, shall add a sum to be fixed by a majority vote of the City Council of said city, which shall not be less than ten percent (10%) of each monthly payroll of those persons who are participants in the pension system, which sum so added shall be placed in the Fire and Police Pension Fund. Said pension and trust fund from all sources herein provided shall be paid to the Custodian Bank. The Custodian Bank shall be a national or state chartered bank, under a suitable bond, designated, from time to time, as Custodian

Bank of this Fund by the Board of Trustees. The Custodian Bank shall hold said funds for the purposes stated in this Article. The funds coming into the hands of the Custodian Bank shall be under the direction and control of the Board of Trustees of the Fire and Police Pension Fund. Any and all investments made under the direction and control of the Board of Trustees, and all other acts done in the administration of the plan in good faith, shall be without liability on their part.
(Priv. Acts 1949, Ch. 165, § 2; Priv. Acts 1971, Ch. 149, § 1; Priv. Acts 1972, Ch. 406, § 1; Ord. No. 8688, § 1(7), 8-19-86; Ord. No. 9778, § 14, 8-19-92; Ord. No. 11377, § 1, 2-4-03; Ord. No. 13318, § 1, 6-5-18)

Sec. 2-401. Tax levy for pensions.

The City Council of said city be and is hereby required to levy a sufficient annual tax upon all taxable property and taxable privileges within the City of Chattanooga for the purposes of raising revenue for the payment of pensions to members of said department of fire and police and appropriate same for such purpose.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-402. Assessment of employees.

(a) Beginning on the effective date of this ordinance and continuing until June 30, 2015, each Member will be assessed a contribution to the Fund in an amount, fixed by majority vote of the Board, not less than nine percent (9%) of the Member's Base Salary. However, each Member eligible for and who has elected to participate in the DROP provided for in Section 2-422 will be assessed a contribution to the Fund in an amount, fixed by majority vote of the Board, not less than ten percent (10%) of the Member's Base Salary.

(b) Beginning July 1, 2015, and continuing until June 30, 2016, each Member will be assessed a contribution to the Fund in an amount, fixed by majority vote of the Board, not less than ten percent (10%) of the Member's Base Salary. However, each Member eligible for and electing to participate in the DROP provided for in Section 2-422 will be assessed a contribution to the Fund in an amount, fixed by majority vote of the Board, not less than eleven percent (11%) of the Member's Base Salary.

(c) Beginning July 1, 2016, and continuing thereafter, each Member will be assessed a contribution to the Fund in an amount, fixed by majority vote of the Board, not less than eleven percent (11%) of the Member's Base Salary. However, each Member eligible for and electing to participate in the DROP provided for in Section 2-422 will be assessed a contribution to the Fund in an amount, fixed by majority vote of the Board, not less than twelve percent (12%) of the Member's Base Salary.

(d) Notwithstanding the provisions of subsection (a), (b), and (c), a Member hired prior to July 1, 1999, whose Average Base Salary as of that date was less than forty-one thousand one hundred thirty-eight dollars ($41,138.00) and whose Average Base Salary as of July 1, 2007, was less than forty-one thousand one hundred thirty-eight dollars ($41,138.00), will be assessed a sum, beginning July 1, 2007 and continuing thereafter, to be fixed by a majority vote of the Board, which will not be less than eight percent (8%) of that Member's Base Salary, and in no event will be less than eight percent (8%) of forty-one thousand one hundred thirty-eight dollars ($41,138.00), annually.

(e) The contribution amounts set forth in this Section 2-402 will be deducted and withheld from the salary of each Member during the time that the Member is employed by the Chattanooga Fire or Police Department. The city officer responsible for disbursing salary payments to Members will make the appropriate deductions and withholdings of contribution amounts and will pay all such amounts to the Fund at the time deducted and withheld to be kept by its Custodian Bank in accordance with the provisions of Section 2-400 of the Chattanooga City Code.
(Priv. Acts 1949, Ch. 165, § 4; Priv. Acts 1953, Ch. 90, § 1; Priv. Acts 1961, Ch. 222, § 1; Priv. Acts 1969, Ch. 165, § 1; Priv. Acts 1972, Ch. 406, § 1; Ord. No. 8688, § 1(8), 8-19-86; Ord. No. 9778, § 1(5), 8-18-92; Ord. No. 10463, § 1(2), 8-20-96; Ord. No. 11012, § 1(1), 5-9-00; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12813, § 1, 3-11-14; Ord. No. 13318, § 2, 6-5-18)

Sec. 2-403. Sum to be collected, paid over to Custodian Bank when employee contribution deducted.

An amount equal to the sum fixed by the City Council, as provided in Section 2-400 of this Article, shall be collected by the tax collector and treasurer and paid over to said Custodian Bank when the contribution by the employees as provided in Section 2-402 is deducted from the payroll.
(Priv. Acts 1949, Ch. 165, § 7; Priv. Acts 1969, Ch. 82, § 6; Priv. Acts 1971, Ch. 149, § 1; Priv. Acts 1972, Ch. 406, § 1; Ord. No. 9778, § 1(12), 8-18-92; Ord. No. 11377, § 1, 2-4-03; Ord. No. 13318, § 3, 6-5-18)

Sec. 2-404. Proceeds from sale of unclaimed property to be placed in pension fund.

If any personal property comes into the possession of the departments of fire and police, if the owner cannot be found, or if no person shall claim such property after six (6) months, the property shall be sold, the net proceeds derived from the sale thereof shall be turned over to said Custodian Bank to be placed in said special Fire and Police Pension Fund, as provided in Sections 2-400 and 2-402 of this Article.
(Ord. No. 12983, §§ 2, 3, 8-25-15; Ord. No. 13318, § 4, 6-5-18)

Sec. 2-405. Reserved.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Editor's note—Former Charter § 13.69, a prior State Act, was repealed by Charter § 1(12) of Ord. No. 8688, enacted Aug. 19, 1986. The repealed provisions derived from Priv. Acts 1949, Ch. 165, § 9.

Sec. 2-406. Board of Trustees of pension fund-created; membership; term of office; vacancies.

(a) The Board of Trustees of the Chattanooga Fire and Police Pension Fund consists of a total of eight Trustees. Three Trustees must be Members in Active Service with the Fire Department; three Trustees must be Members in Active Service with the Police Department; one Trustee must be the Mayor, by virtue of his office, or if the Mayor so chooses, a City employee knowledgeable of pensions, investments, and financial matters appointed by the Mayor; and one Trustee, who cannot be a City employee, must be appointed by the City Council and must be knowledgeable of pensions, investments, and financial matters.

(b) If a Firefighter or Police Officer Trustee becomes ineligible to serve as a Trustee as outlined in Sec. 2-407(d), the Trustee must resign from the Board effective as of the date the Trustee became ineligible. The Trustees appointed by the Mayor and City Council will serve until they resign or are replaced by the Mayor or City Council.

(c) Alignment of Terms of Office. On Tuesday, September 5, 2023, an election will be held to choose one Trustee from the Fire Department and one Trustee from the Police Department for a term of three years. On Tuesday, September 3, 2024, an election will be held to choose one Trustee from the Fire Department and one Trustee from the Police Department for a term of four years. On Tuesday, September 2, 2025, an election will be held to choose one Trustee from the Fire Department and one Trustee from the Police Department for a term of five years. On Tuesday, September 1, 2026, and thereafter every two years on the first Tuesday in September, an election will be held to choose one Trustee from the Fire Department and one Trustee from the Police Department for a term of six years. If a Firefighter's or Police Officer's candidacy is unopposed, the election will be held at the Pension Fund office only, during hours established by the Board. For contested elections of Firefighters, a monitored ballot box will also be provided at the Fire Department training center during hours established by the Board. For contested elections of Police Officers, a monitored ballot box will also be provided at police headquarters during hours established by the Board. All votes will be counted openly and publicly, and the Firefighter and Police Officer who receive the highest number of votes will be elected for the given term.

(d) Firefighters and Police Officers who hold appointed positions in the Fire Department or Police Department are not eligible to be elected, to serve, or to continue to serve as a Trustee of the Board. If a Firefighter or Police Officer Trustee on the Board becomes unable or ineligible to serve as a Trustee, the Board will appoint a replacement Trustee to serve until the first Tuesday in September of the next election year. If the election cycle following the appointment is not for the Trustee position to which the Board made an appointment, a special election will be held at that time to elect a Trustee to serve the remaining duration of the term of the Trustee who was replaced. A vacancy of a Trustee appointed by the Mayor will be filled by appointment by the Mayor, and a vacancy of a Trustee appointed by the City Council will be filled by appointment by the City Council.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-19-86; Ord. No. 9778, § 1(11), 8-18-92; Ord. No. 11377, § 1, 2-4-03; Ord. No. 11863, § 1, 8-8-06; Ord. No. 12155, § 1, 9-2-08; Ord. No. 13318, § 5, 6-5-18; Ord. No. 14013, § 1, 8-1-23)

Sec. 2-407. Same—Organization; officers; compensation of secretary.

As soon as may be practical following a regular election of Trustees, the Board will meet and elect from among the Firefighter and Police Officer Trustees the following officers: (a) a President, (b) a Vice-President, and (c) a Secretary, each of whom will discharge the customary duties of such offices until the next regular election of officers has been completed. The Secretary and President will receive pay for their services in an amount to be fixed by the Board, commensurate with the amount of time and work required to fulfill their duties. The Secretary shall maintain a record of retired Firefighters, Police Officers, and their spouses, including a complete record of all pensions being paid and the actions of the Board in retiring any and all persons under this Division 5, including the names, dates of employment, dates of retirement, and reasons for retirement. The compensation of each Trustee, except for the Secretary and President, shall be fixed from time to time by the City Council and paid from the Fund. The Board will pay from the Fund the fees, charges, and expenses for consultants, actuarial services, and legal services as well as such expenses as may be necessary for the administration of the Fund, including compensation of the Secretary and President for duties they perform on behalf of the Fund.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-19-87; Ord. No. 9778, § 1(17), 8-18-92; Ord. No. 11377, § 1, 2-4-03; Ord. No. 13318, § 6, 6-5-18; Ord. No. 14013, § 1, 8-1-23)

Sec. 2-408. Same—To hear and decide applications for pensions and benefits.

The said Board of Trustees shall hear and decide all applications for pensions and death benefits under this Article, and its decision on such applications shall be final and conclusive. The said Board shall have the power to make and enforce such reasonable rules and regulations, not inconsistent with the Article, as in its opinion may be necessary or desirable for the carrying out of its duties and shall have the authority to interpret the provisions of the Article.
(Ord. No. 12983, §§ 2, 3, 8-25-15; Ord. No. 13318, § 7, 6-5-18)

Sec. 2-409. Same—Supervision of retired, disabled, etc., employees.

Upon organization of the Board of Trustees, the Board shall assume supervision of all members of the Fire Department and Police Department who have heretofore been placed on the existing pension roll, including the ones placed thereon as the result of a disability or injuries causing disability, and said Board, on the advice of competent physicians, shall determine whether or not such members have again become able to perform duties in the Fire Department and Police Department and are eligible for reinstatement. In the event the Board of Trustees shall determine, on the advice of competent physicians, that an employee retired on disability is again able to work, then such employee shall be removed from the pension rolls and his or her disability pension discontinued.
(Priv. Acts 1949, Ch. 165, § 14; Ord. No. 8688, § 1 (11), 8-19-86; Ord. No. 9778, § 1(16), 8-18-92; Ord. No. 11377, §1, 02-04-03; Ord. No. 12983, §§ 2, 3, 8-25-15; Ord. No. 13318, § 8, 6-5-18; Ord. No. 13414, § 1, 1-8-19; Ord. No. 13530, § 1, 1-28-20)

Sec. 2-410. Disability or death benefits.

(a) *Categories of disability and applicable rules and procedures.* There are three (3) categories of disability for which disability benefits may be available:

(1) A disability from injury or illness not resulting from performance of duties, hereafter referred to as a "non-job related disability",

(2) A disability from injury or illness resulting from performance of duties, hereafter referred to as a "job related disability", and

(3) Permanent and total disability;

and rules, policies, and procedures for the investigation, adjudication, and determination of a claim for such benefits are set forth in subsection (f) of this Section.

(b) *Cause not resulting from performance of duties, a non-job related disability.*

(1) Any member of the Fire Department or Police Department with not less than three (3) years nor more than ten (10) years of active service in said department who becomes disabled while employed, but from causes arising outside of and unrelated to the course of his or her employment with said department, shall so long as he or she remains disabled be paid a monthly sum equal to thirty percent (30%) of the Average Base Salary of such member during the three (3) years of member's service which yields the highest average. The benefit of any such member with more than ten (10) years of active service shall be increased by two percent (2%) of the above defined Average Base Salary for each year's active service in the said department over ten (10) years but not to exceed sixty percent (60%) of the above defined Average Base Salary. Payment under this Section shall commence after the member's sick days, annual days, accumulated days, compensatory days, and annual leave days have been exhausted.

(2) Any member with less than three (3) years of service, who becomes disabled while employed, but from causes arising outside of the course of his or her employment with the said department, shall be refunded his or her contributions under the provisions of Section 2-413. In the event of death of any member with less than three (3) years of service, the ten thousand dollars ($10,000.00) death benefit shall be paid to his or her beneficiary and his or her contributions shall be refunded to his or her estate.

(3) If any member with more than three (3) years of active service, but less than ten (10) years of active service dies before retirement from any disability occurring while employed, but from causes arising outside of the course of his or her employment with the said department, there shall be paid to his or her beneficiary the death benefit of ten thousand dollars ($10,000.00) and to the surviving spouse an amount equal to $500.00 per month, increased by all appropriate cost of living adjustments from and after July 1, 1999 until death, subject to the conditions of this Section.

(4) If a member has more than ten (10) years of active service but less than the time required for a service retirement pension and dies before retirement from any disability occurring while employed, but from causes arising outside of the course of his or her employment with the said department, there shall be paid to his or her beneficiary a death benefit of ten thousand dollars ($10,000.00) and to the surviving spouse until death that benefit which said spouse would have been entitled to receive under Option D, Section 2-418 of this Article, subject to the conditions of this Section

(c) *Cause resulting from performance of duties, a job related disability.*

(1) Any member of the Fire Department and Police Department who, while engaged in the discharge of his or her duties, becomes disabled, he or she shall be placed on a pension and paid sixty percent (60%) of the member's Base Salary as computed over the highest three (3) years of Base Salary during the member's years of active service, regardless of the length of time served.

(2) No member may be retired on a pension under this subsection (c) until at least six (6) months after such disability was incurred.

(3) (i) If any member shall die prior to retirement from any injury suffered, or receive a disability while engaged in the performance of his or her duties resulting in death within six (6) months thereafter, and shall leave a surviving spouse, said surviving spouse shall be entitled, unless receiving benefits under Section 2-418, to receive until his or her death the benefit herein provided for a member receiving a disability benefit under this Section. Said

surviving spouse shall in no event receive a monthly benefit of less than Five Hundred Dollars ($500.00), increased by all appropriate cost of living adjustments from and after July 1, 1999.

(ii) If there be no surviving spouse, then the dependent child or children shall each receive five hundred dollars ($500.00) per month increased by all appropriate cost of living adjustments from and after July 1, 1999, during the minority, provided that the total amount payable to all of such children shall not exceed the member's maximum pension. If such deceased member is not survived by spouse or minor children, but is survived by two (2) parents solely dependent upon said member, each parent so long as he or she has no other means of support, shall receive one-half (½) of the benefits which a surviving spouse would receive under this Section. If there is only one (1) parent dependent upon such member for support, such parent shall be paid the same benefits which a surviving spouse would receive under this Section.

(4) Notwithstanding the provisions of subsection (c)(3), if any Member employed by the Fire Department or Police Department on or after April 1, 2011, is killed as a direct and proximate result of a personal and traumatic injury involving external forces sustained in the line of duty, the Member's surviving spouse will be placed on an annual pension calculated as one hundred percent (100%) of the average Base Salary paid to the Member during his or her three (3) highest-earning years of Active Service in the Chattanooga Fire or Police Department. This pension will be distributed in twelve (12) equal payments as benefits become payable each month until the death of the Member's surviving spouse. Notwithstanding the foregoing, if a member's spouse receives a federal death benefit, as determined under the Public Safety Officers' Benefits Act (generally codified at 34 U.S.C. sections 10281 - 10288) and under related regulations promulgated by the U.S. Department of Justice (codified at 28 C.F.R. sections 32.0 - 32.55 (2018)) he or she shall be entitled to the benefit described in this subsection (4).

(5) Upon the death of any member who retires under the provisions of subsection (c)(1), there shall be paid to his or her beneficiary or beneficiaries the sum of ten thousand dollars ($10,000.00).

(d) *Permanent and Total Disability, either non-job related or job related.*

(1) From and after July 1, 1999, if an active member of the Fire Department or Police Department shall become Permanently and Totally Disabled, he or she shall be placed on a pension and paid sixty-eight and seventy-five-hundredths percent (68.75%) of the member's Base Salary as computed over the highest three (3) years of Base Salary during the member's years of active service, regardless of the length of time served. Notwithstanding the foregoing, in no event shall a retired member's monthly benefit be less than Seven Hundred Fifty Dollars ($750.00).

(2) In the event that a member who was Permanently and Totally Disabled recovers to the extent that he or she is able to engage in gainful employment again, he or she must notify the Board of such change of condition and such Permanent and Total Disability retirement pension shall be discontinued. Such member may reapply for such other disability pension for which such member may be eligible.

(3) In addition to any other Permanent and Total Disability Benefit to which a member is entitled under this Section, if a member has one (1) or more minor children at the time he or she begins to receive a Permanent and Total Disability retirement pension, he or she shall receive Five Hundred Dollars ($500.00) per month, per minor child, not to exceed a total of One Thousand Dollars ($1,000.00) per month during the minority of such children.

(e) *Death benefits.*

(1) If a member dies before retirement and has reached the conditions for a service retirement pension, there shall be paid to the beneficiary of said member a death benefit of ten thousand dollars ($10,000.00) and the benefits elected under Section 2-418.

(2) If there be no surviving spouse, then the member's minor child or children shall each receive an amount equal to five hundred dollars ($500.00) per month, increased by all appropriate cost of living adjustments from and after July 1, 1999, during their minority, provided that the total amount payable to all of such children shall not exceed the member's maximum pension. If such deceased member is not survived by spouse or minor children, but is survived by two (2) parents solely dependent upon said member, each parent, so long as he or she has no other means of support, shall receive one-half (½) of the benefits which a surviving spouse would receive under this Section. If there is only one (1) parent dependent upon such member for support, such parent shall be paid the same benefits which a surviving spouse would receive under this Section.

(3) At the death, hereafter, of any retired employee of the departments of Fire and Police, who was a participant in the Fire and Police Pension Fund, and whose beneficiaries for any reason do not receive the ten thousand dollars ($10,000.00) death benefit in Section 2-411, or the monthly spouse's benefit, there shall be paid from the said Fire and Police Pension Fund to the member's Estate, whichever said benefits have not been received.

(f) *Rules, policies, and procedures for benefit claims.*

(1) A member seeking benefits under this Section 2-410 shall submit to the Board on a form to be provided by the Board an application accompanied by objective proof satisfactory to the Board of facts entitling the member to such benefits. Receipt of the application shall be recorded by the Secretary, and the applicant shall be notified five (5) days in advance, unless waived by applicant, of any hearing by the Board on his or her application.

(2) It is the applicant's burden and responsibility to prove entitlement to benefits by providing satisfactory, objective proof of disability to the Board and to cooperate fully in the Board's investigation and adjudication of the claim for benefits. Taking into consideration that each claim for benefits is unique and based on the individual circumstances and personal medical history of the claimant, the Board may request proof of disability from one (1) or more competent physicians selected by the Board, in addition to any medical information provided by the member, and otherwise investigate the claim for benefits as the Board determines is reasonable under the circumstances.

(3) At its sole discretion and from time to time, such as, but not limited to, prior to a member's being retired on a pension, the Board may require satisfactory, objective proof of continued disability and require up-to-date, current medical examinations of the disabled member.

(4) No member shall be given disability benefits under this Section if the Board finds that said disability could probably be successfully corrected by competent medical treatment, and said member refuses to cooperate or otherwise fails or refuses to be so treated.

(5) The term "disabled" or "disability" in this Section shall, for purposes of a non-job related disability, mean a medically determinable impairment proven by satisfactory, objective proof, which, in the sole opinion of the Board, prevents such member from meeting the normal and reasonable demands of his or her regularly assigned job or any other job which the City, or officials of the Fire Department or Police Department, may offer said member for which he or she is reasonably qualified by experience, training, or education. For purposes of a job related disability, the term "disabled" or "disability" shall mean a medically determinable impairment proven by satisfactory, objective proof, which in the sole opinion of the Board prevents such

member from performing duties in the Fire or Police Department. Notwithstanding the foregoing, if a member is granted a disability for a mental health disorder, including but not limited to Post-Traumatic Stress Disorder, such member shall be removed from the pension rolls if such member goes to work, either on a paid or volunteer basis, as a paramedic, emergency medical technician, rescuer or in any other position referred to as a "first responder".

(6) The term "Permanently and Totally Disabled" or "Permanent and Total Disability" in this Section shall have the same meaning as found in Section 2-419(8).

(7) Any member retired on a pension because of a disability, in the event of recovery to the extent that he or she is again able to perform any duty required of him or her by the Fire Department or Police Department, shall be removed from the pension roll; if such member refuses to cooperate with the Board in its investigation of the disability, the Board shall have the right to suspend his or her pension until such time as he or she cooperates with the Board and provides satisfactory proof of continued disability.

(8) A member will not be eligible for disability benefits nor the member's spouse eligible for periodic death benefits under this Section if disability or death is a result of any of the following:

(i) Excessive and habitual use by the member of drugs, intoxicating liquors, or narcotics unless, at the time of disability or death, such member is actively and continuously undergoing treatment for substance abuse at an approved clinic or treatment center for drug addicts and alcoholics;

(ii) Injury or disease sustained by the member while willfully and illegally participating in acts of violence, riots, or civil insurrections, or while committing an unlawful act;

(iii) Except as hereinafter provided, injury or disease sustained by the Pension Fund member while serving in any Armed Forces or as the result of warfare. Notwithstanding the foregoing, in the case of a death or disability occurring on or after January 1, 2007, if a member dies while performing qualified military service (as defined in Section 414(u) of the Internal Revenue Code of 1986, as amended), the survivors of the member are entitled to any additional benefits (other than benefit accruals relating to the period of qualified military service) provided under the Fund as if the member had resumed and then terminated employment on account of death;

(iv) Injury or disease sustained by the member after his or her employment has been terminated or while the member has been on leave without pay for a period exceeding forty-five (45) consecutive days; or

(v) Intentional, self-inflicted injury.

If a member is not qualified for benefits under this Section, he or she shall receive a refund of his or her contributions. In the event of the death of a member, when the death is a direct result of any of the above stipulations, his or her contributions shall be refunded to his or her estate.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-18-92; Ord. No. 9785, 9-8-92; Ord. No. 11012, §§ 1(2)—(4), 5-9-00; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12674, § 1, 12-11-12; Ord. No. 12813, § 2, 3-11-14; Ord. No. 13024, § 2, 1-26-16; Ord. No. 13414, § 2, 1-8-19; Ord. No. 13530, § 2, 1-28-20)

Sec. 2-411. Service retirement pension; maximum pension benefits; death benefit.

(a) Minimum Age and Service Requirements for Service Retirement Pension.

(1) Any Member who has completed ten (10) or more years of Active Service with the Chattanooga Fire or Police Department as of the effective date of this ordinance may, at his or her election, retire upon completing twenty-five (25) years of Active Service with the Chattanooga Fire or

Police Department and, upon notifying the Board of his or her election pursuant to this subsection, will be entitled to receive the annual Service Retirement Pension provided in subsection (b) to be distributed in twelve (12) equal payments as benefits become payable each month.

(2) Any Member who has completed fewer than ten (10) years of Active Service with the Chattanooga Fire or Police Department as of the effective date of this ordinance, including, for purposes of this subsection, any person who is a fire or police academy cadet as of the effective date of this ordinance and subsequently becomes a Member, may, at his or her election, retire upon (i) completing twenty-five (25) years of Active Service with the Chattanooga Fire or Police Department and attaining the age of fifty (50) years or (ii) completing twenty-eight (28) years of Active Service with the Chattanooga Fire or Police Department and, upon notifying the Board of his or her election pursuant to (i) or (ii) of this subsection, will be entitled to receive the annual Service Retirement Pension provided in subsection (b) to be distributed in twelve (12) equal payments as benefits become payable each month.

(3) Any Member hired by the Chattanooga Fire or Police Department after the effective date of this ordinance (except current fire and police academy cadets covered under subsection (a)(2)) may, at his or her election, retire upon (i) completing twenty-five (25) years of Active Service with the Chattanooga Fire or Police Department and attaining the age of fifty-five (55) years or (ii) completing thirty (30) years of Active Service with the Chattanooga Fire or Police Department and, upon notifying the Board of his or her election pursuant to (i) or (ii) of this subsection, will be entitled to receive an annual Service Retirement Pension. The total annual pension for the Member will be an amount equal to two-and-one-half percent (2½%) of the average Base Salary paid to the Member during his or her three (3) highest-earning years of Active Service in the Chattanooga Fire or Police Department multiplied by the Member's years of Active Service up to a maximum annual payment equal to no more than seventy-five percent (75%) of the average Base Salary paid to the Member during his or her three (3) highest-earning years of Active Service in the Chattanooga Fire or Police Department. The annual pension will be distributed in twelve (12) equal payments as benefits become payable each month.

(4) Notwithstanding the foregoing, the age and service requirements of paragraphs (1), (2), and (3) of this subsection (a) must comply with the rules and regulations of the Internal Revenue Service relating to normal retirement as they may change from time to time. If the age and service requirements do not comply with these rules and regulations, then they will change automatically to comply.

(b) From and after July 1, 1999, a member of the Fund who was employed in the Fire Department or Police Department may at his or her election retire upon completion of twenty-five (25) years of active service in the Fire or Police Departments, and upon notifying the Board in writing of such election, receive an annual Service Retirement Pension to be distributed in twelve (12) equal payments as benefits become payable each month in an amount equal to two and three-quarters percent (2¾%) of the average pay for such member during the highest three (3) years that such member is employed in the Fire or Police Department multiplied by said member's years of active service up to twenty-five (25) years of active service plus one and one-quarter percent (1¼%) of the aforesaid average pay for each year of active service between twenty-five (25) and thirty (30) years. Such benefit shall be based upon such member's Average Base Salary.

(c) Upon the death of any member employed on November 3, 1992, who is retired under the provisions of this Section, or upon the death of such member prior to retirement, but eligible for benefits under this Section, there shall be paid to said member's beneficiary a death benefit of ten thousand dollars ($10,000.00), and the benefits under Section 2-418, and the surviving spouse shall be paid the sum of five hundred dollars ($500.00) per month, increased by all appropriate cost of living adjustments under this Division from and after July 1, 1999, until death if said spouse is not a beneficiary under one of the options

listed in Section 2-418. Effective January 1, 2013, upon the death of such member who is eligible for benefits under this Section, there shall be paid to said member's beneficiary a death benefit of ten thousand dollars ($10,000.00), and the benefits, if any, elected by the member under Section 2-418. If the member has not elected any option prior to his or her death, a benefit shall be payable to the deceased's surviving spouse, if any, as though he or she had elected Option D., Section 2-418. Notwithstanding the foregoing, if a member who is employed on November 3, 1992, but is not eligible for benefits under this Section on January 1, 2013, or is employed after November 3, 1992, shall die before retirement and after reaching the conditions to be eligible for benefits under this Section or shall die after retirement, there shall be paid to his or her beneficiary or beneficiaries the benefit of ten thousand dollars ($10,000.00) and such benefits elected under Section 2-418.

(d) The City Council, City of Chattanooga, in its discretion, only after a recommendation of the Board of Trustees of the Fire and Police Pension Fund, upon advice by the Mayor, may, by ordinance, passed on three (3) separate readings, amend any section of the Private Acts of 1949, as amended, or this Article XIII; provided that such amendment is not inconsistent with sound actuarial principles, methods, and actuarial assumptions and further provided that such amendment shall not in any way decrease any vested financial benefits accrued by any participant or beneficiary of the Fire and Police Pension Fund.

(e) Those benefits payable to participants retired prior to July 1, 1999, or beneficiaries of those members retired prior to July 1, 1999, shall continue under the provisions in effect at the time such benefit was granted except where specifically amended or modified to include such participants or beneficiaries. No participant or beneficiary vested as of July 1, 1999, will receive an amount that would be less than the amount payable to a participant or beneficiary with equivalent service retiring as of July 1, 1999.

(f) For years beginning after December 31, 2008, (i) a member receiving a differential wage payment, as defined by Section 3401(h)(2) of the Internal Revenue Code of 1986, as amended, shall be treated as an employee of the City of Chattanooga, (ii) the differential wage payment shall be treated as compensation, and (iii) the Pension Fund shall not be treated as failing to meet the requirements of any provision described in Section 414(u)(1)(C) of the Internal Revenue Code of 1986, as amended, by reason of any contribution or benefit which is based on the differential wage payment.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-18-92; Ord. No. 11012, §§ 1(2), 1(5)—(8), 5-9-00; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12674, §§ 2, 3, 12-11-12; Ord. No. 12813, § 3, 3-11-14; Ord. No. 13318, § 9, 6-5-18)

Sec. 2-412. Reserved.

Editor's note—Ord. No. 13414, § 4, adopted Jan. 8, 2019, repealed § 2-412, which pertained to disability or death benefits from cause resulting from performance of duty and derived from Ord. No. 12983, §§ 2, 3, 8-25-15), 8-18-92; Ord. No. 10747, § 1(1), 8-18-98; Ord. No. 11012, §§ 1(3), 1(9), 1(10), 5-9-00; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12813, § 4, 3-11-14.

Sec. 2-413. Refund to member terminating employment.

Except as otherwise provided in the Uniform Services Employment and Re-Employment Rights Act of 1994, if the employment of a member is terminated for any reason, or if the member is on leave without pay for a period in excess of ninety (90) consecutive days, said member shall be entitled to receive at the time of said termination or leave one hundred percent (100%) of whatever sums he or she contributed to the Pension Fund. If such member is subsequently reemployed in the Fire or Police Department, he or she may at the time of reemployment reimburse the Pension Fund to the full extent of the amount he or she received from the Pension Fund upon said termination with interest compounded annually and computed at the rate utilized in the actuarial evaluation of the Pension Fund during their periods of absence from the date of said withdrawal to the date of reemployment. Any reimbursement of amounts received upon prior

termination shall be made by the date of reemployment and may not be reimbursed thereafter. If a member who is subsequently reemployed does not reimburse the Pension Fund, such member shall be treated as a newly hired member for purposes of the Pension Fund.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-18-92; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12674, § 4, 12-11-12)

Sec. 2-414. Benefits exempt from debts of employee, may not be garnished, etc.

The Pension Fund, either before or after its distribution by the trustee to disabled or retired employees of said fire and police department, and their widows, or the beneficiary of any deceased employee, shall be exempt from the debts of such employee and shall not be assignable nor subject to attachment, garnishment, execution or other legal process, but the same shall be received by such employee or beneficiary, free from debts, judgments and demands of such employee or beneficiary.

Notwithstanding the foregoing, effective July 1, 2016, the language of this Section 2-414 shall not apply to an "alternate payee" under a "qualified domestic relations order" as defined in Section 414(p) of the Code. The Board shall establish a written procedure to determine the qualified status of domestic relations orders and to administer distributions under such qualified domestic relations orders.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-18-92; Ord. No. 11377, § 1, 2-4-03; Ord. No. 13239, § 4, 11-14-17)

Sec. 2-415. Termination of employment after ten (10) years of service; vesting; death after termination.

(a) Except as otherwise provided in the Uniform Services Employment and Re-Employment Rights Act of 1994, a member who has completed ten (10) or more years of active service at the time of his or her termination of employment, or at the time he or she has been on leave without pay for a period in excess of ninety (90) consecutive days, shall have the right to either (1) or (2) as follows:

(1) A right to receive a one hundred percent (100%) refund of whatever sums he or she contributed to the Pension Fund. If such member is subsequently reemployed in the Fire or Police Department, he or she may at the time of reemployment reimburse the Pension Fund to the full extent of the amount he or she received from the Pension Fund upon said termination with interest compounded annually and computed at the rate utilized in the actuarial valuation of the Pension Fund from the date of withdrawal to the date of reemployment. Any reimbursement of amounts received upon prior termination shall be made by the date of reemployment and may not be reimbursed thereafter. If a member who is subsequently reemployed does not reimburse the Pension Fund, such member shall be treated as a newly hired member for purposes of the Pension Fund.

(2) A right to leave his or her contribution in the Pension Fund and be eligible to receive after reaching fifty-five (55) years of age a monthly deferred vested retirement benefit equal to two and four-tenths percent ($2^4/_{10}$%) of his or her Average Base Salary as computed over the highest three (3) years of pay during the member's years of service for each year of active service, subject to a maximum of twenty-five (25) years.

(b) If the death of such member occurs prior to commencement of the payment of any benefits under this Section, a refund of whatever sums such member contributed to the Pension Fund shall be paid to the member's estate, and his or her beneficiary shall be paid a death benefit sum of ten thousand dollars ($10,000.00). If death occurs following the commencement of eligibility to receive benefits under this Section, benefits shall be payable according to the terms elected under Section 2-418.

(c) (1) If all or any portion of the distribution payable to a member or beneficiary under this section or any other section shall remain unpaid because the board has been unable to ascertain the whereabouts of the member or beneficiary after sending a registered letter, return receipt requested, to the last known address of such member or beneficiary, the amount so distributable

may be forfeited and used to reduce the cost of the fund. Notwithstanding the foregoing, if a claim is subsequently made by the member or beneficiary for the forfeited benefit, and such claim is determined to be valid by the board, in its sole discretion, such benefit shall be reinstated without any other actuarial adjustment.

(2) Claims for reinstated benefit payments shall only be payable to the member or beneficiary to whom the payment was originally payable. Eligibility for benefits ends with the death of the member or beneficiary.

(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-19-86; Ord. No. 9778, § 8, 8-18-92; Ord. No. 9839, § 3, 2-9-93; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12674, § 5, 12-11-12; Ord. No. 13024, § 1, 1-26-16)

Sec. 2-416. Reserved.

Editor's note—Ord. No. 13414, § 5, adopted Jan. 8, 2019, repealed § 2-416, which pertained to permanent and total disability and derived from Ord. No. 12983, §§ 2, 3, 8-25-15.

Sec. 2-417. Cost of living adjustments to pension benefits.

(a) The annual pension to a Member retired before the effective date of this ordinance, or to any qualified survivor or beneficiary of such Member will be increased in the manner described in subsection (b) or (c), whichever is applicable, each January 1 after the twelfth monthly benefit payable.

(b) Any time the Fund is less than eighty percent (80%) funded on a market value basis as determined by the Fund's most recently completed annual actuarial valuation and review, the total amount payable from the Fund to eligible recipients will be increased effective each January 1, beginning as soon as practicable after January 1, 2015, by one and one-half percent (1½%). This increase will be allocated among eligible retired Members receiving annual pensions and the qualified survivors or beneficiaries of such Members by the Board, after consultation with the Fund's actuary, to provide higher cost of living adjustments to those receiving lower monthly benefits payable. In no event, however, will any annual pension be increased by greater than two percent (2%) or less than one percent (1%) of the monthly benefit payable.

(c) Any time the Fund is at least eighty percent (80%) funded on a market value basis as determined by the Fund's most recently completed annual actuarial valuation and review, all cost of living adjustments beginning the following January 1 will correspond to the Consumer Price Index up to a maximum cost of living adjustment of three percent (3%), provided that the Fund, inclusive of this change, would not be less than eighty percent (80%) funded on a market value basis.

(d) The cost of living adjustment for the annual pension to a Member retiring on or after the effective date of this ordinance, or to any qualified survivor or beneficiary of such Member, will be as follows:

(1) The annual pension to a Member retiring on or after the effective date of this ordinance, or to any qualified survivor or beneficiary of such Member, will not be increased until the January 1 after the thirty-sixth (36th) monthly benefit payable, at which time the annual pension will be increased in the manner described in subsection (b) or (c), whichever is applicable, except as provided in subsection (d)(2).

(2) If after the twelfth monthly benefit payable but before the thirty-sixth (36th) monthly benefit payable to a Member retiring on or after the effective date of this ordinance, or to any qualified survivor or beneficiary of such Member, the Fund is at least seventy percent (70%) funded on a market value basis as determined by the Fund's most recently completed annual actuarial valuation and review, the annual pension will be increased, beginning the following January 1, in the manner described in subsection (b) or (c), whichever is applicable, so long as the increase would not cause the Fund to fall below seventy percent (70%) funded on a market value basis. If

the increase is applied, but the Fund subsequently falls below seventy percent (70%) funded on a market value basis before the thirty-sixth (36th) monthly benefit payable, then the increase for these Members will be discontinued until the January 1 following the first thirty-sixth (36th) monthly benefit payable.

(e) For individuals eligible for cost of living adjustments effective January 1, 2015, and January 1, 2016, such cost of living adjustments will be dividend cost of living adjustments and will not be compounded or placed into the base pension amount in subsequent years. Nothing in this Section 2-417 should be construed to affect benefits payable as of the effective date of this ordinance.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-18-92; Ord. No. 11012, § 1(11), 5-9-00; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12813, § 6, 3-11-14)

Sec. 2-418. Optional retirement benefits.

1. When a member reaches the conditions for retirement benefits under Section 2-411; or qualifies to reach the conditions for retirement benefits under Section 2-411 and qualified for retirement benefits under Section 2-410; or is eligible to commence receiving retirement benefits under Section 2-415, he or she may elect to have the pension benefits under said Sections converted into an optional retirement benefit which is the actuarial equivalent of such benefit based upon mortality basis approved from time to time by the Board, and the age of the member and of the beneficiary as of the date the member becomes eligible to exercise the election.

The optional retirement benefits may take one (1) of the forms listed below and for members who become employed after November 3, 1992 there shall be paid to the beneficiary the option selected by such member under this Section; but for a member who was an employee on November 3, 1992, and eligible to retire on or before December 31, 2012, the surviving spouse shall receive the sum of seven hundred fifty dollars ($750.00), increased by all appropriate cost of living adjustments under this Division, if the said member has not designated the spouse as a beneficiary under one (1) of the option forms listed below:

OPTION A: 120 Payments Certain and Life Option

A decreased retirement benefit payable for life with the first one hundred twenty (120) payments guaranteed. Any guaranteed payments due after the death of the retired participant shall be payable to the designated beneficiary, if any who survives the retired participant, or the estate of the retired participant if there is no surviving designated beneficiary.

OPTION B: Joint and Survivor Option

A decreased retirement benefit payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at one hundred percent (100%) of that payable to the retired participant.

OPTION C: Modified Joint and Survivor Option

A decreased retirement benefit payable to the retired participant for life which shall continue after his or her death to their surviving beneficiary at seventy-five percent (75%) of that payable to the retired participant.

OPTION D: Modified Joint and Survivor Option

A decreased retirement benefit payable to the retired participant for life which shall continue after his or her death to their surviving beneficiary at fifty percent (50%) of that payable to the retired participant.

OPTION E: Modification of Option B

A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at one hundred percent

(100%) of that payable to the retired participant provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit, which would have been payable had the member not elected an option.

OPTION F: Modification of Option C

A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at seventy-five percent (75%) of that payable to the retired participant provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit, which would have been payable had the member not elected an option.

OPTION G: Modification of Option D

A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at fifty percent (50%) of that payable to the retired participant provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit, which would have been payable had the member not elected an option.

2. Application for any optional retirement benefit shall be in writing, duly executed, and filed with the Board. Such application shall contain all information required by the Board, including such proofs of age as are deemed necessary by the Board. A retirement option selected at the time of eligibility may only be changed by written notice of the new election filed with or prior to his or her application for retirement and subject to such requirement as the Board may require.

3. If an active member dies after he or she has reached the aforesaid conditions for retirement benefits, any option they may have elected, in lieu of their otherwise retirement benefit, shall be payable as though he or she had been entitled to have such optional benefit commence on their date of death.

4. In the event of a divorce of a member who retired under an optional retirement plan, where the spouse is the designated beneficiary, the beneficiary may be cancelled upon the written request of the member and proper documentation, which shall include the final decree and marital dissolution agreement of the parties; provided, that such cancellation is not in conflict with the decree or marital dissolution agreement. The retirement allowance payable to the retiree after the cancellation of the designated beneficiary shall not be affected by such cancellation.
(Ord. No. 12983, §§ 2, 3, 8-25-15), 8-18-92; Ord. No. 10463, §§ 1(3), (4), 8-20-96; Ord. No. 11377, § 1, 2-4-03; Ord. No. 12813, § 7, 3-11-14; Ord. No. 13530, § 3, 1-28-20)

Sec. 2-419. Definition of terms.

1. The term "Member" shall mean an employee of the Chattanooga Fire or Police Department who is a sworn Firefighter or Police Officer. An employee hired into the said department to be a sworn Firefighter or Police Officer shall not become a member until he or she completes all training required for the position and is sworn, nor shall he or she be eligible for participation in the General Pension Plan.

2. The term "Board" shall mean the Board of Trustees of the Chattanooga Fire and Police Pension Fund.

3. The term "Fund" shall mean the Chattanooga Fire and Police Pension Fund, formerly called the Firemen's and Policemen's Insurance and Pension Fund, created by Chapter 165 of the Private Acts of 1949, as amended.

4. The term "Average Base Salary" or "Base Salary" shall mean the regular wages or salary paid on a monthly basis, but shall not include overtime pay or any supplements, including but not limited to supplements for years of service or education.

A. Notwithstanding any other provision of law, the amount of Average Base Salary or Base Salary used to determine the benefits payable under the Fund must not exceed the amount of compensation permitted to be taken into account under Code Section 401(a)(17) as such existed on January 1, 1986.

B. Average Base Salary or Base Salary, for purposes of the limitations under Code Sections 415 and 401(a)(17), the computation of benefits payable from the Fund and contributions, shall include any elective deferral, as defined under Code Section 402(g)(3), and any amount that is contributed or deferred by the City of Chattanooga at the election of a member and which, by reason of Sections 125 and 457 of the Code, is not includible in his gross income.

The annual Base Salary described in Subsection B. above, taken into account in determining benefit accruals in any year beginning after December 31, 2001 shall not exceed the limit set out in Code Section 401(a)(17). For this purpose, annual compensation means compensation during the calendar year or such other consecutive twelve (12) month period over which compensation is determined under the Fund (the "determination period"). The limit on annual compensation shall be adjusted for cost-of-living increases in accordance with Code Section 401(a)(17)(B). The cost-of-living adjustment in effect for a calendar year applies to annual compensation for the determination period that begins with or within such calendar year.

5. The term "Active Service" shall mean that period of time after the date of permanent employment as a sworn officer with POST certification in the Chattanooga Police Department or a sworn officer with permanent employment in the Chattanooga Fire Department, that the member serves and is paid from the payroll of the said departments.

6. The term "Service Retirement Pension" means the annual pension that a Member who has elected to retire upon meeting the applicable minimum age and service requirements of Section 2-411(a) is entitled to receive and which will be distributed in twelve (12) monthly benefits payable subject to adjustment as provided in Sections 2-418, 2-422, and 2-423, if applicable.

7. The term "Surviving Spouse" shall mean the spouse who is married to a member at the member's death and who has been continuously married to the member for a period of at least eighteen (18) months prior to the date of the member's death. Effective April 1, 2013, the term "Surviving Spouse" shall mean any spouse who meets the requirements of the preceding sentence and who is married to a member on April 1, 2013, or, the spouse who is married to a member at the member's retirement and who has been continuously married to the member for a period of at least eighteen (18) months prior to the date of the member's death and who is married to the member upon his or her death.

8. The term "Permanent and Total Disability" or "Permanently and Totally Disabled" shall mean the medically determinable consequences of a catastrophic injury or illness that permanently prevents a member from performing any gainful work.

9. The term "Consumer Price Index" means the percent change in the Chained Consumer Price Index for All Urban Consumers (C-CPI-U) as reported by the Bureau of Labor Statistics of the United States Department of Labor for the twelve (12) months ending the previous September.

10. The term "Code" means the Internal Revenue Code of 1986, as amended.
(Ord. No. 12983, §§ 2, 3, 8-25-15; Ord. No. 13024, §§ 3, 4, 1-26-16; Ord. No. 13318, § 10, 6-5-18)

Sec. 2-420. City court costs for benefit of Fire and Police Pension Fund.

A sum determined by the City of Chattanooga, but in no event less than five dollars ($5.00) shall be added as and in the nature of court costs to the cost incurred in the City Court of the City of Chattanooga on all forfeitures of fines or monies for or on conviction for violation of any city ordinances and that said increase in court costs for the City Court of the City of Chattanooga be collected by the clerk of said court and paid over to the treasurer of the City of Chattanooga who will account for said funds and pay same over to the Custodian Bank of the Fire and Police Pension Fund together with all other monies properly collected for credit to said Fund as herein before set out.
(Ord. No. 12983, §§ 2, 3, 8-25-15; Ord. No. 13318, § 11, 6-5-18; Ord. No. 13414, § 6, 1-8-19)

Sec. 2-421. Credited service under general pension plan.

A participant in the General Pension Plan who has transferred employment from the provisions of the Fire and Police Pension Plan shall have the right to have his service under the Fire and Police Pension Plan vested if it amounts to five (5) years or more and said participant has more than five (5) years credited service under the General Pension Plan. Such employee shall be entitled to receive at age fifty-five (55), if not employed by the City of Chattanooga, ten percent (10%) of the pension he or she could have received if employed for twenty-five (25) years that was paid at the time of transfer, for five (5) years of service, and if any employee transfers after serving more than five (5) years and less than ten (10) years, the vested percent of said pension paid at the time of transfer shall be increased by three percent (3%) for each additional year of service up to ten (10) years of service.
(Ord. No. 12983, §§ 2, 3, 8-25-15)(a), 8-19-86; Ord. No. 11377, § 1, 2-4-03)

Sec. 2-422. Deferred Retirement Option Provision.

(a) Only Members who have completed at least twenty-four (24) years of Active Service with the Chattanooga Fire Department or Police Department as of the effective date of this ordinance and filed a written election with the Board on or before December 31, 2008, agreeing to contribute an additional one percent (1%) of their Average Base Salary to the Fund will be eligible for the Deferred Retirement Option Provision (DROP) described in this Section 2-422 so long as the Member complies with the contribution requirements of Section 2-402.

(b) From and after July 1, 1999, a member of the Fire Department or Police Department with more than twenty-five (25) years of active service, but no more than thirty (30) years of active service, may elect the Deferred Retirement Option Provision (DROP) at the time of retirement, to cover a retroactive period not to exceed thirty-six (36) months.

(c) A member shall elect to take the DROP by completing a written form provided by the Board of Trustees. If a member elects to take the DROP, his or her Service Retirement Pension shall be adjusted as follows: Upon retirement, the eligible member's Service Retirement Pension shall be calculated as provided in Section 2-411 above, and further adjusted as provided in Section 2-418, if applicable, except that, for purposes of the calculation under Section 2-411, the member's active service shall be reduced by the number of months elected by the member hereunder. The number of months elected by the member hereunder shall not exceed the lesser of: (A) the number of months of active service accumulated by the member beginning on the date the member attains twenty-five (25) years of active service and ending on the member's actual retirement date; and (B) thirty-six (36) months.

(d) The member's monthly Service Retirement Pension, calculated in accordance with the provisions of subsection (c), above, shall be added together with an amount that is equal to the average of the member's monthly employee assessment, required by Section 2-402, above, for the thirty-six (36) month period immediately prior to the member's retirement. The resulting sum shall then be multiplied by the number of

months elected by the member pursuant to subsection (c), above. The resulting product shall be credited with interest at seven percent (7%) annually, compounded monthly, for the same number of months. The total amount so derived shall constitute the DROP benefit, which shall be paid in a single lump sum.

(e) The DROP payment shall be paid as soon as practicable after the retirement of the member.

(f) A member's right to participate in the DROP shall not be vested until the member retires and elects to take the DROP. The DROP may be discontinued or modified at any time.
(Ord. No. 12983, §§ 2, 3, 8-25-15; Ord. No. 13318, § 12, 6-5-18)

Sec. 2-423. Modified Deferred Retirement Option Provision.

(a) Members who do not meet the requirements of Section 2-422(a) are eligible only for the DROP described in this Section 2-423. A Member may elect to receive, and may receive, only one (1) DROP. Any Member not eligible for the DROP described in Section 2-422 who, as of the effective date of this ordinance, filed a written election with the Board on or before December 31, 2008, agreeing to contribute an additional one percent (1%) of their Average Base Salary to the Fund will have the total amount of their additional one percent (1%) contributions refunded to them as soon as practicable after the effective date of this ordinance.

(b) Beginning on the effective date of this ordinance, a Member of the Chattanooga Fire Department or Police Department currently employed in such capacity with the City who serves at least twenty-five (25) years of Active Service, but no more than thirty-three (33) years of Active Service (the DROP Period), may elect to receive the DROP described in this Section 2-423. Any Member hired by the Chattanooga Fire or Police Department after the effective date of this ordinance who reaches the age and service requirement for a normal retirement as noted in section 2-411(a)(3), but has achieved no more than thirty-three (33) years of Active Service (the DROP Period), may elect to receive the DROP described in this Section 2-423. The Service Retirement Pension for a Member who has elected to receive the DROP described in this Section 2-423 will be adjusted as follows: Upon retiring and providing written notice of retirement to the Board, the Member's Service Retirement Pension will be calculated as provided in Section 2-411, and further adjusted as provided in Section 2-418, if applicable, except that, for purposes of the calculation under Section 2-411, the Member's Active Service will be reduced by the number of months elected by the Member on his or her DROP election form. The number of months elected by the Member may not exceed

the lesser of (i) the number of months of Active Service accumulated by the Member beginning on the date the Member completes twenty-five (25) years of Active Service and ending on the Member's actual retirement date or (ii) thirty-six (36) months.

(c) The DROP will be calculated by multiplying the number of months elected by the Member as provided in subsection (b) by the Member's Average Base Salary at the time the Member first becomes eligible to elect to receive the DROP as provided in subsection (b). The resulting dollar amount will be paid, in a single lump sum, from the Fund as soon as practicable after the Member's retirement. No cost of living adjustment or interest will be applied to or earned by the DROP payment.

(d) To elect to receive the DROP described in this Section 2-423, an eligible Member must complete a written election form provided by the Board and file it with the Board during the DROP Period. The right of a Member who elects to receive the DROP described in this Section 2-423 will not accrue or vest until the Member retires.

(e) A member's right to participate in the DROP shall not be vested until the member retires and elects to take the DROP. The DROP may be discontinued or modified at any time.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-424. Actuarial and Experience Study Review.

(a) Immediately upon the effective date of this ordinance and once every five (5) years thereafter, the Board will commission a full actuarial study of the financial impact and cost neutrality of the DROPs on the Fund. The study will be performed by a third party actuary (an actuary or actuarial firm holding membership in the Academy of American Actuaries that does not serve as actuary for either the Board or the Fund), which will prepare a report of the study and its findings. The study and report will be submitted to the Mayor, the City Council, and the Board and will include an assessment of whether the DROP provided for in Section 2-423 is cost neutral to the Fund. The first report required by this subsection (a) is due as soon as practicable after the effective date of this ordinance. In the event that a report indicates that the DROP provided for in Section 2-423 is not cost neutral to the Fund, the Board will modify the DROP to ensure its cost neutrality to the Fund.

(b) The Board will submit to the Mayor and City Council quarterly performance evaluations of the Fund.
(Ord. No. 12983, §§ 2, 3, 8-25-15)

Sec. 2-425. Compliance with requirements of Internal Revenue Code.

The following provisions are intended to cause the Fund to comply with the requirements of the Internal Revenue Code of 1986, as amended, and the regulations thereunder.

A. Exclusive benefit to employees. All assets in the Fund must be used exclusively for the benefit of members or their beneficiaries or to defray the reasonable expenses of administration of the Fund.

B. Actuarial methods. In establishing the liabilities under the Fund and contributions thereto, the enrolled actuary will use such methods and assumptions as will reasonably reflect the cost of the benefits. The assets of the Fund are to be valued on the last day of the year (or on any other date determined by the Administrator) using any reasonable method of valuation that takes into account fair market value pursuant to regulations. There must be an actuarial valuation of the Fund at least once every year.

C. Mandatory commencement of benefits. Notwithstanding any provision of the Fund to the contrary, the Fund will begin benefit payments to a member by the Required Beginning Date, whether or not he applies for benefits. The "Required Beginning Date" is April 1 of the calendar year following the calendar year in which the member attains age seventy and one-half (70 ½).

D. Claims procedure. The Board shall make all determinations as to the right of any person to a benefit. Any denial by the Board of a claim for benefits under the Fund by a member or his beneficiary shall be stated in writing by the Board and delivered or mailed to the member or his beneficiary, and such notice shall set forth the specific reasons for the denial, reference pertinent Fund provisions, describe any additional information needed and the steps to be taken to submit the claim for review, all written to the best of the Board's ability in a manner that may be understood without legal or actuarial counsel. Should the member or his beneficiary receive no response to a claim for benefits within ninety (90) days of making the claim, it shall be deemed to be denied and the member or his beneficiary may proceed to have the claim reviewed. The claimant may, within sixty (60) days after receiving such denial notice, request a repeal of the denial in writing, submit issues and comments, and may review pertinent documents. The Board shall reach a decision as to the claimant's appeal not later than sixty (60) days after receiving the request for review.

E. Maximum limitation.

a. Aggregate limits. For any limitation year the annual benefit cannot exceed the limitations set forth under Code Section 415(b) and the regulations thereunder, as applicable to a governmental plan (as defined in Code Section 414(d)), as indexed in accordance with Code Section 415(d), which are hereby incorporated by reference, including the definition of compensation under Treas. Reg. Section 1.415(c)-2(d)(2). The definition of compensation shall include any differential wage payments made after December 31, 2008. The limitation year shall be the calendar year.

If the Fund must be aggregated with another plan to determine the effect of Code Section 415 on a member's annual benefit, and if the benefit must be reduced to comply with Code Section 415, then such reduction shall be made pro rata between the two (2) plans, in proportion to the member's credited service in each plan.

b. Definition. The member's accrued benefit shall not exceed the maximum permissible benefit, as defined below.

1. Defined benefit dollar limitation. The "defined benefit dollar limitation" is one hundred sixty thousand dollars ($160,000.00), as adjusted, effective January 1 of each year, under Code Section 415(d) in such manner as the Secretary of the Treasury shall prescribe, and payable in the form of a straight life annuity. A limitation as adjusted under Code Section 415(d) will apply to calendar years ending with or within the calendar year for which the adjustment applies.

2. Maximum permissible benefit. The "maximum permissible benefit" is the defined benefit dollar limitation, adjusted where required, as provided in subparagraphs (a), (b) and (c) below.

(a) Fewer than ten (10) years of participation. If the member has fewer than ten (10) years of participation in the Fund, the defined benefit dollar limitation shall be multiplied by a fraction, the numerator of which is the number of years (or part thereof) of participation in the Fund and the denominator of which is ten (10).

(b) Benefits beginning after age sixty-five (65). If the benefit of a member begins after the member attains age sixty-five (65), the defined benefit dollar limitation applicable to the member at the later age is the annual benefit payable in the form of a straight life annuity beginning at the later age that is actuarially equivalent to the defined benefit dollar limitation applicable to the member at age sixty-five (65) (adjusted under subparagraph (a) above, if required).

(c) Benefits not payable as a straight life annuity. Where a benefit from the Fund is payable in a form other than a straight life annuity, the benefit shall be adjusted to an actuarially equivalent straight life annuity that begins at the same time as such other form of benefit.

For purposes of subparagraphs (a), (b), and (c) above, the determination of actuarial equivalent shall be made in accordance with the applicable provision of Code Section 415(b)(2)(E) and related regulations and rulings.

F. Qualified military service. Notwithstanding any provision of this Fund to the contrary, contributions, benefits and service credit for the purpose of vesting with respect to qualified military service will be provided in accordance with and to the extent required by the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA) and Code Section 414(u), under rules adopted by the Board.

G. Direct rollover.

a. Notwithstanding any provision of the Fund to the contrary that would otherwise limit a "distributee's" election under this Section, a "distributee" may elect, at the time and in the manner prescribed by the Board, to have any portion of an "eligible rollover distribution" that is equal to at least one thousand dollars ($1,000.00) paid directly to an "eligible retirement plan" specified by the "distributee" in a "direct rollover".

b. For purposes of this Subsection the following definitions shall apply:

1. An "eligible rollover distribution" is any distribution of all or any portion of the balance to the credit of the "distributee", except that an "eligible rollover distribution" does not include: any distribution that is one (1) of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the "distributee" or the joint lives (or joint life expectancies) of the "distributee" and the "distributee's" designated beneficiary, or for a specified period of ten (10) years or more; any distribution to the extent such distribution is required under Code Section 401(a)(9); the portion of any other distribution that is not includible in gross income (determined without regard to the exclusion for net unrealized appreciation with respect to employer securities); and any other distribution that is reasonably expected to total less than five hundred dollars ($500.00) during a year.

2. An "eligible retirement plan" is an individual retirement account described in Code Section 408(a), (other than an endowment contract), a qualified trust (an employees' trust) described in Code Section 401(a) which is exempt from tax under Code Section 501(a), an annuity plan described in Code Section 403(a), an eligible deferred compensation plan described in Code Section 457(b) which is maintained by an eligible employer described in Code Section 457(e)(1)(A), and an annuity contract described in Code Section 403(b), that accepts the "distributee's" "eligible rollover distribution". However, in the case of an "eligible rollover distribution" to the surviving spouse, an "eligible retirement plan" is an individual retirement account or individual retirement annuity. In addition, a member may elect to roll over directly an eligible rollover distribution to a Roth IRA described in Code Section 408A, or to a qualified plan or a 403(b) plan that agrees to account separately for amounts and the portion of such distribution which is not includible in gross income.

3. A "distributee" includes a member or former member. In addition, the member's or former member's surviving spouse and the member's or former member's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Code Section 414(p), are "distributees" with regard to the interest of the

spouse or former spouse. In addition, a non-spouse beneficiary who is a "designated beneficiary" under Code Section401(a)(9)(E) and the regulations thereunder, may by a direct trustee-to-trustee transfer ("direct rollover") roll over all or any portion of his or her distribution to an individual retirement account the beneficiary establishes for purposes of receiving the distribution. In order to be able to roll over the distribution, the distribution otherwise must satisfy the definition of an eligible rollover distribution. If the member's named beneficiary is a trust, the Fund may make a direct rollover to an individual retirement account on behalf of the trust, provided the trust satisfied the requirements to be a designated beneficiary within the meaning of Code Section401(a)(9)(E).

4. A "direct rollover" is a payment by the Fund to the "eligible retirement plan" specified by the "distributee".

c. Member notice. A member entitled to an eligible rollover distribution must receive a written explanation of his/her right to a direct rollover, the tax consequences of not making a direct rollover, and, if applicable, any available special income tax elections. The notice must be provided within 30-to-180 days of the date of distribution. The direct rollover notice must be provided to all members, unless the total amount the member will receive as a distribution during the calendar year is expected to be less than two hundred dollars ($200.00). The description of a member's right, if any, to defer receipt of a distribution also will describe the consequences of failing to defer receipt of the distribution, in a manner consistent with Treasury Department requirements.

H. Vesting upon Fund termination. Upon termination of the Fund or upon the complete discontinuance of contributions, under the Fund, the rights of all members to benefits accrued to the date of such termination or discontinuance, to the extent then funded, are nonforfeitable.

(Ord. No. 13024, § 5, 1-26-16; Ord. No. 13239 , §§ 1—3, 11-14-17)

Secs. 2-426—2-500. Reserved.

(Ord. No. 12983, §§ 2, 3, 8-25-15)

See footnote below.*

ARTICLE IV. FINANCE†

Sec. 2-501. Fiscal year.

The fiscal year of the city shall be computed and reckoned from the first day of July of each year. All annual reports relating to the city's finances, as well as those of all departments, officers and agencies of the city, shall be made up to and including the thirtieth day of June of each year.

(Code 1986, § 2-301; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-502. Reserved.

***Note—**The specific intent of the City Council in passing this ordinance is to create a structure for the Fund that ensures its long-term actuarial integrity and ability to pay benefits while preserving the City's fiscal health. This ordinance must be construed to effectuate this specific intent.

†**Charter reference—**Finance and taxation, Title 6.

Cross references—City finance officer, § 2-61 et seq.; city treasurer, § 2-101 et seq.; purchases, contracts and property disposition, § 2-541 et seq.; businesses, trades and occupations, Ch. 11; free public library fund created, § 22-7.

(Ord. No. 11103, § 2, 11-28-00)

Sec. 2-503. Transfer of unencumbered balances.

At the close of each fiscal year any unencumbered balance of an appropriation, except special funds duly created, shall revert to the general fund. The city council may transfer the unencumbered balance of one (1) general fund appropriation to any other; provided that such action shall only be taken during the last two (2) months of the fiscal year.
(Code 1986, § 2-303; Ord. No. 9654, § 2, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-504. Supervisory powers of city finance officer.

The city finance officer shall supervise and have charge of the keeping of all accounts and financial records for every department and agency of the city, the preparation of all financial reports and statements, the audit of all claims, and budgetary and auditing control over the city's revenues and expenditures.
(Code 1986, § 2-304; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-505. Accounting procedure; weekly reports.

The method of installing and keeping all general and departmental accounts and financial records of the city and of rendering all financial reports shall be prescribed by the city finance officer and, unless otherwise directed by him, such accounts and records shall be kept in his office. He shall establish the city accounting procedure in such a way that his accounts will show the financial transactions of every branch of the city government and the financial transactions relating to all appropriations and funds, all revenues accrued and liabilities incurred, all cash receipts and disbursements and all transactions affecting the acquisition, custody, and disposition of assets. He shall secure a weekly report from each department and agency of the city showing all money received by it and the disposition thereof, and shall see that all such money is paid promptly into the treasury.
(Code 1986, § 2-305; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-506. Monthly and annual reports.

(a) The city finance officer shall prepare and submit a report to the mayor and city council not later than the tenth day of each month, showing revenues accrued and expenditures incurred, giving details as to appropriations and funds in such manner as to show the exact financial condition of the city and of each department and agency thereof as of the last day of the previous month. Such monthly report shall also show actual revenue receipts of the city as compared with the estimated receipts set up in the annual budget, and

[The next page is CD2:111]

it shall be his responsibility to call the fact to the attention of the council in writing whenever actual receipts are falling behind estimated receipts in order that the council may curtail original budget appropriations in accordance with the new situation.

(b) At the close of the fiscal year, the city finance officer shall have prepared an annual report showing the financial condition and transactions of the city and file the same with the council.
(Code 1986, § 2-306; Ord. No. 9654, § 38, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-507. Audits required.

(a) At least once each year the city finance officer shall audit the accounts of all officials and employees of the city who have the custody of, collect or disburse funds.

(b) Upon the resignation, removal or expiration of the term of any city officer other than the city finance officer, the city finance officer shall make an audit and investigation of the accounts of such officer and shall report the condition thereof to the mayor and city council.

(c) Either the mayor or the council may at any time require the city finance officer to make other audits or investigations of the accounts of any officer, department or agency of the city.
(Code 1986, § 2-307; Ord. No. 9654, § 38, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

State law reference—Audits required, T.C.A. § 6-56-101.

Sec. 2-508. Audit of finance officer's accounts.

In case of the death, resignation or removal of the city finance officer, the mayor shall cause an audit to be made of his accounts. The mayor and council shall provide for an independent annual audit of the city finance officer's accounts, records and transactions, and may provide for such an audit at any other time. All audits provided by this section shall be made by certified public accountants holding certificates issued by the state board of accountancy or by a similar agency in some other state maintaining an equal standard of professional requirements.
(Code 1986, § 2-308; Ord. No. 9654, § 38, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-509. Action where audit or investigation reveals indebtedness by officer.

If, as a result of any audit or investigation made as provided in this article, an officer is found to be indebted to the city, the city finance officer or other person making such audit shall immediately give notice thereof to the mayor and city council and the city attorney, and the city attorney shall proceed forthwith to collect such indebtedness.
(Code 1986, § 2-309; Ord. No. 9654, § 38, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-510. Accounts for appropriations and loan authorizations.

Accounts shall be kept by the city finance officer for each appropriation and loan authorization made by the city council and every warrant issued for payment shall state specifically against which of such accounts it is drawn. The city finance officer's accounts shall show in detail the appropriations or loan authorizations made by the city council, the amount drawn thereon, the unpaid obligations charged against each and the unencumbered balance to the credit of each.
(Code 1986, § 2-310; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-511. Records of status of city's bank accounts.

When city funds are paid out for any purpose or on any account or withdrawn from one (1) bank and deposited in another bank, an account of the transaction shall be recorded in the city finance officer's

accounts so that at any time there may be determined by a reference to his records the exact status and condition of all bank accounts of the city and their nature, whether general or special funds, and, if special, the rate of interest they are earning on time deposits, if any.
(Code 1986, § 2-311; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-512. Finance officer to keep record of city treasurer's receipts and disbursements.

All funds paid to the city treasurer for any purpose or from any source and all funds paid out by the city treasurer shall be reported by him to the city finance officer, whose accounts shall show the amounts reported as received, from what source they were derived, the amounts reported as paid out and for what purposes they were so paid.
(Code 1986, § 2-312; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-513. Special accounts with respect to state and federal moneys received.

The city finance officer shall set up and maintain special accounts with respect to moneys received for designated purposes from the state or the federal government.
(Code 1986, § 2-313; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-514. Treasurer's accounts.

(a) The city finance officer shall maintain an account with the city treasurer as tax collector. He shall charge to the city treasurer, as such collector the full amount of the annual tax levy and all uncollected back tax levies, and credit him with all sums reported by him as collected. When the city treasurer goes out of office as such collector, the city finance officer shall credit him with all uncollected balances and releases made by proper authority and shall charge him with all sums reported as coming into his hands as tax collector.

(b) The city finance officer shall maintain another account with the city treasurer as such, in which he shall charge him with all sums coming into his hands as city treasurer, and shall credit him with such sums as are shown to be paid out by him on warrants issued as provided herein.
(Code 1986, § 2-314; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-515. Custody of cash book and tax duplicates.

The city's cash book and tax duplicates shall be under the immediate control and supervision of the city treasurer and he shall be responsible for the safekeeping of the same.
(Code 1986, § 2-315; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-516. Record of daily cash balance.

The city treasurer shall bring down and show on his cash book the city's daily cash balance at the close of each day's business.
(Code 1986, § 2-316; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-517. Deposit of checks received; dishonored checks.

(a) All checks or money orders received by the City as payment for taxes, license fees or permit fees, or received for any other purpose shall be deposited within three (3) days after they are received.

(b) If for any reason any check or money order is not honored by the bank on which it is drawn, in addition to other penalties by law, there shall be paid as a penalty by the person who tendered such check or money order, upon written notice and demand by the City, an amount equal to one percent (1%) of the

amount of such check or money order, except that if the amount of the check or money order is less than two thousand dollars ($2,000.00), the fee under this section shall be twenty dollars ($20.00) or the amount of the check, whichever is less.

(c) A record shall be made by the officer handling such check or money order showing the disposition thereof.
(Code 1986, § 2-317; Ord. No. 9209, 8-15-89; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12078, 2-19-08; Ord. No. 12644, § 1, 9-18-12)

Sec. 2-518. Duplicate deposit slips required; where filed.

When making deposits of funds for any purpose, the city treasurer shall prepare duplicate slips, one (1) to be filed with the city finance officer and one (1) to be kept in the office of the city treasurer.
(Code 1986, § 2-318; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-519. Record and report of bank balances.

The city treasurer shall keep a book showing the amount of public money on deposit with each bank and which deposits are made, and shall file with the mayor at such times as the mayor may require a report of the bank balances for all funds on deposit, showing each fund separately.
(Code 1986, § 2-319; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-520. Issuance of warrants; withdrawal of funds.

(a) No money shall be paid out of the city treasury except by means of a warrant on the treasury issued by the city finance officer. The city finance officer shall examine all payrolls, bills and other claims and demands against the city and shall issue no warrant for payment unless he has found by diligent investigation that the claim is in proper form, correctly computed and duly approved, and that it is justly due and payable. He may investigate any claim and for that purpose may summon before him any officer, agent or employee of the city, the claimant or other person, and examine him upon oath or affirmation administered by him relative to such claim. If he finds that a claim is fraudulent, erroneous or otherwise invalid, he shall not authorize the payment of such claim.

(b) No warrant shall be issued by the city finance officer to satisfy any claim unless the claim is approved in the department or agency to which the claim pertains by the official of such department or agency authorized by the mayor or department head to approve such claim. Every warrant shall set out the purpose for which it is issued.

(c) When a warrant is issued, as provided herein, the city treasurer or the assistant city treasurer shall issue a check for the amount called for in such warrant payable to the person named therein.
(Code 1986, § 2-320; Ord. No. 9654, §§ 40-41, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-521. Withholding percentage of salary or claims due, for payment of delinquent taxes.

The city finance officer shall retain twenty-five percent (25%) of the salary due any person on the payroll of the city who is indebted to the city for delinquent taxes until the amount of such taxes, with penalties and interest, has been paid in full. He shall retain twenty-five percent (25%) of any amount due by the city to any person indebted to the city for delinquent taxes on each claim or bill due such person, until a sufficient amount has been withheld from such claim or bill to pay such taxes, with penalties and interest, in full.
(Code 1986, § 2-321; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-522. Checks to be countersigned by mayor or city finance officer.

All checks issued by the city treasurer or assistant city treasurer shall be countersigned by the city finance officer or the mayor before they will be payable at any bank in which deposits are kept by the city. (Code 1986, § 2-322; Ord. No. 9654, § 40, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-523. Debt service fund.

A fund to be known as the debt service fund is hereby created and designated as the fund from which all expenditures relating to the bonded debt or other long term obligations of the city shall be made as herein provided, and in which all revenues therefor shall be deposited. Transactions involving the city's funding and refunding bonds outstanding on July 1, 1948, shall be handled through the funding and refunding sinking fund under the administration of the sinking fund commission, but all other debt service transactions shall be administered by the finance officer through the debt service fund, and disbursement warrants therefor shall be prepared by the city finance officer in the manner provided for all other city funds. The amount necessary to finance debt service requirements shall be provided and set up in the budget of the city general fund and disbursements shall be made from the general fund to the debt service fund as need may arise. (Code 1986, § 2-323; Ord. No. 9654, §§ 40, 42, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-524. Manpower development and training fund.

There hereby is established a special fund known as the manpower development and training fund for the purpose of implementing federal laws and to authorize expenditures from such fund in the carrying out of the purposes of federal law pending receipt of funds from the federal government in reimbursement therefor. (Code 1986, § 2-324; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-525. Capital expenditures.

(a) *Requests.* All requests for capital expenditures by all departments, agencies and branches of the city government wherein city funds are to be expended shall be presented to the office of the mayor prior to the beginning of each calendar year. Such requests shall be on forms supplied by the office of the mayor and shall include detailed requests for capital funds for the ensuing calendar year and forecasts and estimates of capital expenditures or needs for each of the next five (5) calendar years.

(b) *Submittal of proposed annual capital improvements budget and program.* The office of the mayor shall prepare and submit to the city council a proposed annual capital improvements budget and program for consideration after adoption of the annual budget ordinance for the city. Such capital improvements program shall include a detailed budget recommendation for the ensuing calendar year and recommendations for a capital improvements program for the subsequent five (5) calendar years. A schedule of submission by the various departments, agencies, and branches of government shall be set by the mayor and distributed each year with materials for the departmental submissions.

(c) *Action upon capital improvements budget and program.* It is intended that the capital improvements budget and program should be acted upon by the council not later than January 30 of each year.

(d) *Review of ordinance by planning commission staff.* Before adoption of the annual capital improvements ordinance, or any amendments thereto, such ordinance or amendments shall first be submitted to the staff of the Chattanooga-Hamilton County Regional Planning Commission for review and recommendation prior to the passage by the city council and such staff shall make a report to the mayor and city council on any proposed amendments within sixty (60) days of submission.

(e) *Compliance with budget ordinance.* All capital expenditures of the city shall be in accordance with the capital improvements budget ordinance except that the city council may make an appropriation, allocation or authorization for a project in order to meet an emergency.
(Code 1986, § 2-325; Ord. No. 9654, §§ 2, 43, 44, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-526. Appropriation and disbursement of municipal funds to nonprofit charitable and civic organizations.

(a) The City Council may appropriate funds for the financial aid of any non-profit charitable organization or any non-profit civic organization as set forth in Tenn. Code Ann. § 6-54-111. Such appropriated funds may be used for the purpose of promoting the common good and general welfare of the people of the city by bringing about civic betterments and social improvements including efforts to maintain and increase employment opportunities in the city by promoting industry, trade, commerce, tourism and recreation by introducing manufacturing, industrial, governmental, educational, financial, service, commercial, recreational and agricultural enterprises to locate in or remain in the city or to locate nearby so as to provide jobs for residents of the city.

(b) Appropriated funds may be expended to carry out any activity which promotes the above-mentioned purpose so long as such activity is approved by the city council based on the guidelines established by the legislative body directing for what purpose the appropriated money may be spent in conjunction with the guidelines and procedures of the comptroller of the treasury.

(c) Any non-profit organization that desires financial assistance from the City shall file a copy of an annual report of its business affairs and transactions with the City Council Clerk in the manner set forth in Tenn. Code Ann. § 6-54-111 (c) for any proposed project before any city funds are appropriated in connection with such project in order to assure compliance with these guidelines.

(d) The annual budget of the city shall specify each recipient non-profit organization by name as beneficiary of the appropriated funds and the amount appropriated therefor.

(e) Any non-profit organization requesting funds from the City of Chattanooga shall furnish the Chief Financial Officer, prior to any consideration of monetary appropriation, with the following information:

(1) The name and address of the non-profit organization;

(2) The name, address, and telephone number of a specific contact person within the non-profit organization relative to any request for appropriation of funds;

(3) A description of the specific programs of the non-profit organization which serve the residents of the City of Chattanooga;

(4) A signed statement by the chief executive officer of the non-profit organization indicating that the non-profit organization will, upon request, provide the following:

a. Detailed accounting of how and for what purpose municipal funds were spent by the non-profit organization;

b. List of accomplishments or outcomes achieved through the use of municipal funds;

c. Copies of annual audits of the non-profit organization (performed by an independent Certified Public Accountant in accordance with Generally Accepted Auditing Standards)

(5) A copy of the entity's most recently completed annual audit or an annual report detailing all receipts and expenditures in a form prescribed by the comptroller of the treasury and prepared and certified by the chief financial officer of such non-profit organization as set forth in Tenn. Code Ann. § 6-54-111(c) at the time of the request for appropriation of funds from the City of Chattanooga;

(6) A copy of the charter of the non-profit organization filed with the Tennessee Secretary of State;

(7) A copy of the document indicating non-profit tax exemption status for the non-profit organization under the Internal Revenue Code, such as an IRS Determination Letter;

(8) A copy of the most recent IRS Form 990 as filed with the IRS;

(9) A copy of the most recent annual audit of the non-profit organization, prepared by an independent Certified Public Accountant in accordance with Generally Accepted Auditing Standards;

(10) A description of the proposed usage, proposed outcomes, and proposed budget related to request for appropriation of funds (template to be provided);

(11) Other financial and operational information upon request;

(12) Each non-profit organization requesting appropriation of funds from the City of Chattanooga shall pay an application fee which shall be expended to cover the costs of advertising notices pursuant to T.C.A. Section 6-54-111 and to defray clerical time and supplies associated with the application.

(f) For each nonprofit application, the Chief Financial Officer shall submit a verification form to the City Council Clerk certifying that all items required in subsection (e) have been received and reviewed prior to the budget recommendations for each fiscal year and before any appropriation is made by the City Council in the annual budget ordinance.

(g) Each organization receiving such funds from the city shall comply with the requirements of Tennessee Code Annotated section 6-54-111, as amended, by filing with the Chief Financial Officer a copy of an annual report of its business affairs and transactions, which includes a copy of an annual audit, its program which serves the residents of the city and the proposed use of the municipal assistance before any monetary appropriation is made

(h) Funds appropriated by the city may not be utilized for advertising commercial, social, industrial or any other advantages of the city in excess of the amount authorized to be appropriated annually from city funds for this purpose by Tennessee Code Annotated section 6-54-201.

(i) The City or its agent may audit all financial and related records (including digital) associated with the terms of the contract or agreement including timesheets, reimbursable out of pocket expenses, materials, goods, and equipment claimed by the organization. The City may further audit any organization records to conduct performance audits (to identify waste and abuse or to determine efficiency and effectiveness of the contract or agreement) or to identify conflicts of interest. Costs of any audits conducted under the authority of this section and not addressed elsewhere will be borne by the City unless the audit identifies significant findings that would benefit the City. The recipient organization shall reimburse the City for the total costs of an audit that identifies significant findings that would benefit the City.

(j) Appropriations to nonprofit organizations other than charitable organizations may be made only upon meeting the following conditions:

(1) Notices shall be published in a newspaper of general circulation in the city of the intent to make an appropriation to a non-profit but not charitable organization specifying the intended amount of the appropriation and the purposes for which the appropriation will be spent; and

(2) The city council must approve the appropriation at two (2) consecutive regularly scheduled meetings.

(Code 1986, § 2-326; Ord. No. 9654, § 2, 1-6-92; Ord. No. 9693, § 1, 4-7-92; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12872, § 1, 11-4-14; Ord. No. 13671, § 1, 5-25-21)

Secs. 2-527—2-540. Reserved.
(Ord. No. 11103, § 2, 11-28-00)

ARTICLE V. PURCHASES, CONTRACTS AND PROPERTY DISPOSITION*

Sec. 2-541. Purchasing department created; supervision; subordinate personnel.

There is hereby created a department of the city to be known as the purchasing department. The head of such department shall be known as the purchasing agent. He or she shall be elected by the mayor to serve at the pleasure of the mayor. The mayor may appoint such deputy or assistant purchasing agents as may be necessary to carry out the efficient and orderly functions of the department.
(Code 1986, § 2-341; Ord. No. 9654, § 45, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Cross references—Inspection department, § 2-621 et seq.; Chattanooga Youth and Family Development Department, § 2-641 et seq.; fire department, § 16-26 et seq.; police department, § 16-41 et seq.

Sec. 2-542. Duties, powers of purchasing agent.

The purchasing agent as head of the purchasing department shall possess the following powers and perform the following duties:

(1) He shall contract for and purchase all supplies, materials and equipment necessary for the conduct and operation of all departments and agencies of the city; except, the department of education may establish its own purchasing department subject to the city charter and applicable ordinances enacted pursuant thereto. Such purchases shall include those for all jointly financed agencies (such as civil defense, the Chattanooga-Hamilton County Health Department, the metropolitan planning commission, and any other joint operations with the county, other municipalities or the state or the federal government) when payment for such supplies and the accounting function therefor is a responsibility of the city.

(2) He may transfer from one (1) department or agency to any other departments or agencies such supplies, materials and equipment or other personal property not needed by one (1) but necessary to the conduct and operation of the other; or may sell any personal property belonging to the city which is declared surplus by the head of a department or agency, or by the city council.

(3) When established by the mayor, he shall have charge of and supervision over all storerooms and storage places and may distribute to the departments and agencies of the city on requisition any supplies, materials or equipment available for distribution from such storerooms.

(4) He may inspect or supervise inspection of all deliveries of supplies, materials and equipment to determine their conformity to the specifications as to quantity and quality stated in the contract therefor.

(5) He may, subject to the approval of the mayor and city council, advertise for and enter into requirements, blanket, annual orders or indefinite quantity contracts, or term contracts. No such contract shall be let unless the same shall have been first advertised for bids as required by section 2-552. Such contracts must contain a provision giving the city the right of cancellation at any time

---

***Charter references—**Power to purchase property, § 1.1; authority to dispose of surplus property, § 2.1(33).

Cross references—City finance officer, § 2-61 et seq.; city treasurer, § 2-101 et seq.; city finance generally, § 2-501 et seq.; businesses, trades and occupations, Ch. 11.

State law reference—Municipal purchasing, T.C.A. § 6-56-301 et seq.

with no more than one (1) year's notice, and at the end of any fiscal year without notice in the event that funds to support the contract become unavailable and no such contract may be let for periods of time in excess of sixty (60) months.

(6) He may, subject to the approval of the mayor and city council, establish standard specifications as to quantity and quality for all supplies, materials and equipment generally needed by the departments or agencies of the city, and may make use of existing laboratories or other agencies belonging to the city for testing samples and inspecting deliveries.

(7) The purchasing agent may establish rules and regulations for the operation, procedures and functions of the purchasing department. Before submission to the city council, such rules and regulations shall first be submitted to the mayor, city finance officer and to the city attorney. The city finance officer shall advise whether or not such rules and regulations are consistent with the prevailing accounting practices of the city and are fiscally feasible. The city attorney shall approve such rules and regulations as to legality and form. When and if approved by the city council, such rules and regulations shall be spread upon the minutes of the city council and filed in the office of the city finance officer. The purchasing agent shall then publish such rules and regulations in the form of a purchasing manual for the benefit of the various departments, agencies and divisions of the city, persons dealing with the city and the general public.

(Code 1986, § 2-342; Ord. No. 9654, §§ 2, 13, 46, 47, 1-6-92; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12204, § 1, 1-13-09)

Sec. 2-543. Emergency purchases.

(a) In the event of an apparent emergency which requires immediate procurement of supplies, material and equipment, or contractual services, the mayor shall be empowered to authorize the purchasing agent to procure, at the lowest available price, any supplies or contractual services, regardless of the amount of the expenditure. A full report of the circumstances of an emergency purchase shall be filed by the purchasing agent with the city council at its next meeting, and shall be entered on the minutes of the city council.

(b) In the event of actual emergency and with the consent of the purchasing agent and the approval of the mayor, the head of any department may procure directly at the lowest available price any supplies, material and equipment, or contractual services, whose immediate procurement is essential to prevent delays in the work of a department which may vitally affect the life, health, safety or convenience of the public. The head of such department shall send to the purchasing agent a requisition and a copy of the delivery record, together with a full written report of the circumstances of the emergency. The report shall be filed with the city council and spread upon its minutes.

(c) When it is necessary to purchase from a single source, a report thereon shall be filed with the mayor and city council before its next meeting.

(Code 1986, § 2-343; Ord. No. 9654, §§ 2, 48, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-543.5. Fuel purchase in the open market.

Fuel and fuel products may be purchased in the open market without public advertisement, but shall whenever possible be based on at least three (3) competitive bids. Fuel and fuel products may be purchased from the state department of general services contract where available.

(Code 1986, § 2-343.5; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-544. Unclaimed personal property—Forfeiture; notice to owner.

(a) All unclaimed personal property which comes into the possession of the City Court or other department of the City shall, if it remains unclaimed for a period of sixty (60) days, be delivered to the purchasing agent to be forfeited and disposed of as surplus property. Prior to disposal of the unclaimed personal property, the purchasing agent shall make reasonable efforts to notify the owner, including mailing notice to the owner of such personal property by certified mail to such owner's last known address if such has not been done by the department that came into possession of such unclaimed/abandoned property before delivery to the purchasing agent.

(b) All unclaimed/abandoned personal property from any citizen or business which comes into the possession of the Chattanooga Police Department and which remains unclaimed for a period of sixty (60) days thereafter shall be declared abandoned and all rights, interests, and/or ownership shall be forfeited by the owner. The Chief of Police shall declare such unclaimed personal property abandoned and may dispose of such property by the following means: (a) internet auction; (b) destruction; or (c) may be diverted to city property. Any articles declared by the Chief of Police to be sold at auction shall have a complete inventory list prepared which shall be delivered to the city purchasing agent. Prior to disposal of the unclaimed personal property, the purchasing agent shall make reasonable efforts to notify the owner, including mailing notice to the owner of such personal property by certified mail to such owner's last known address if such has not been done by the department that came into possession of such unclaimed/abandoned property before delivery to the purchasing agent.
(Code 1986, § 2-344; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12075, § 1, 2-12-08)

Sec. 2-545. Methods of disposal of Unclaimed Personal Property.

(a) The purchasing agent shall dispose of unclaimed/abandoned personal property which comes into the possession of the Police Department, City Court and/or other departments of the City, by any method of disposal authorized pursuant to T.C.A. § 12-2-403. Methods of disposal shall include sales at public auction, publicly advertised and held; sale under sealed bids, publicly advertised, opened and recorded; sale by internet auction; negotiated contract for sale, at arms length; but only in those instances in which the availability of the property is recurring or repetitive in character, such as marketable waste products, for disposal of the property as it is generated in the most economically feasible, fiscally sound, and administratively practicable method for the City to utilize; trade-in, where such is permitted due to the nature of the property or equipment and under the terms and conditions of the contract by which the City replaces the property as authorized by T.C.A. § 12-2-403.

(b) Notice of any public auctions and sales under sealed bids, as provided in this part, shall be publicly advertised and publicly held. Notice of intended disposal by public auction or sale under sealed bid shall be entered by the purchasing agent in at least one (1) newspaper of general circulation in Hamilton County or the county in which the disposal is to be made. Such notice shall specify and reasonably describe the property to be disposed of, the date, time, place, manner, and conditions of disposal, all as previously determined by the purchasing agent in accordance with the regulations of the City. The advertisement shall be entered in the public notice or equivalent section of the newspaper and shall be run not less than one (1) day. Disposal shall be made not sooner than seven (7) days after the last day of publication nor later than fifteen (15) days after the last day of publication of the required notice, excluding Saturdays, Sundays, and holidays. Prominent notice shall also be conspicuously for ten (10) days prior to the date of disposal, excluding Saturdays, Sundays, and holidays, in at least two (2) public places in Hamilton County or the County where the disposal is to be made. Furthermore, notice shall be sent to the County Clerk of Hamilton County and such notice shall be posted in the Hamilton County Courthouse unless otherwise directed by the purchasing agent.

(c) Notice of intended disposal by internet auction shall be posted on the city's web site and the Police Departments web page notifying the public of such intend sale. Such notice shall specify the site and provide a link to the online auction site in which any citizen may view and/or bid on any article. The Web Page notice shall be displayed on a basis of twenty-four (24) hours a day, seven (7) days per week. Such Web Page notice shall serve as a permanent notice thereby excluding section 2 requirements and reasonably describe the property to be disposed of, the date (s), time, manner and conditions of disposal, all as previously determined by the internet auction provider in accordance with the contract and/or signed agreement with the Police Department.

(d) The purchasing agent shall furnish the City Finance Officer a list of all articles disposed of by surplus, the method of disposal of such surplus property, and the price obtained as a result of the sale of any surplus property disposed of in accordance with T.C.A. § 12-2-403.

(e) The Chief of Police or his designee shall obtain from the contract vendor a list of all abandoned/unclaimed items disposed of by the vendor for the department, the method of disposal and the price obtained as a result of the sale of any unclaimed/abandoned property. Documentation of disposed items of shall be furnished to the Purchasing agent by the police department.
(Code 1986, § 2-345; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12075, § 1, 2-12-08)

Sec. 2-546. Same—Disposition of proceeds of sale.

(a) Any money received from the sale of unclaimed personal property of the Chattanooga Police Department, as provided in this article, shall be paid to the Chattanooga Police Department by the contract vendor. The Police Chief or his designee shall deposit all such monies received by the department to the City Treasurer's office upon receipt of any payments from the vendor.

(b) Any money received from sales of unclaimed/abandoned personal property which has been in the possession of the departments of fire and/or police shall be kept in a separate account by the city treasurer and, quarterly, the city treasurer shall pay the amount of these proceeds into the firemen's and policemen's insurance and pension fund.

(c) If the owner of any article of unclaimed/abandoned personal property sold shall, present satisfactory proof to the city that he was the owner of any article sold within a period of thirty (30) days after the sale, he shall be entitled to the proceeds of the sale thereof, less his proportionate share of the expenses of the sale.

(d) All funds received from the sale of unclaimed, abandoned or surplus property from any other city departments shall be paid by the purchasing agent into the city treasury and shall certify to the city treasurer. The purchasing agent shall certify to the city treasurer the expense incurred in making the sale or otherwise disposing of such property, including the costs and expenses of storage during the period such property was in the possession of the city. All funds received from the sales of unclaimed/abandoned personal property in all other city departments except Fire and Police shall be paid into the city general fund.
(Code 1986, § 2-346; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12075, § 1, 2-12-08)

Sec. 2-547. Purchase requisitions required; approval of form.

All purchases made under the provisions of this article shall be made pursuant to a written requisition from the head of a department, agency or division of the city. The city finance officer shall approve the form of any requisition.
(Code 1986, § 2-347; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-548. Signing, custody of contracts.

(a) Contracts for the purchase of supplies, materials and equipment shall be signed for and on behalf of the city by the purchasing agent. Contracts for construction, services and all other contracts shall be signed for and on behalf of the city by the purchasing agent or the head of a department, agency or division of the city where the contract originates, or as otherwise provided by ordinance or resolution.

(b) The original of all contracts shall be delivered to and kept by the city finance officer.
(Code 1986, § 2-348; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-549. Approval not required for expenditures not exceeding fifty thousand dollars ($50,000.00).

Where the amounts of requisitions or contracts approved by the Purchasing Agent do not exceed fifty thousand dollars ($50,000.00), approval by the City Council shall not be necessary for the issuance of a purchase order, payment of an invoice, or the execution of a contract. All amounts over the fifty thousand dollars ($50,000.00) threshold shall require public advertisement and sealed competitive bids or proposals for nonemergency or nonproprietary purchases. In no event shall a requisition, invoice, or contract be split or divided into two (2) or more purchases with the intent of evading the necessity for having competitive bids or proposals and/or the necessity of obtaining the approval of the City Council.
(Code 1986, § 2-349; Ord. No. 9590, § 1, 8-6-91; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10903, § 1, 9-14-99; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12794, § 1, 01-7-14 ; Ord. No. 13854, § 1, 7-12-22)

Sec. 2-550. Petty cash funds.

The mayor and every other official who has the responsibility of expending an appropriation is hereby authorized to maintain a petty cash fund not to exceed five hundred dollars ($500.00) from which purchases or payments may be made not to exceed fifty dollars ($50.00) each, and receipts shall be attached to the warrant voucher replenishing or reimbursing the petty cash fund, provided, that the city treasurer and golf course managers are hereby authorized to maintain petty cash funds not to exceed two thousand dollars ($2,000.00). From said funds, purchases or payments may be made not to exceed said amount by the city treasurer and not to exceed one thousand dollars ($1,000.00) each by the golf course managers and receipts shall be attached to the warrant voucher replenishing or reimbursing the petty cash fund.
(Code 1986, § 2-350; Ord. No. 9943, § 1, 9-7-93; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-551. Approval of expenditures exceeding fifty thousand dollars ($50,000.00).

Whenever any requisition, invoice, or contract calls for the expenditure of more than fifty thousand dollars ($50,000.00), the issuance of a purchase order, the payment of an invoice, or the award of a contract shall be subject to the approval of the City Council and shall not be binding on or create any liability against the city until approved by the City Council. Such approval shall be by resolution or by motion adopted by majority vote of the City Council; provided, however, that such approval shall not be necessary where an invoice or requisition is issued pursuant to a prior lawful contract or pursuant to an ordinance authorizing such expenditure and spending will be approved annually prior to passage of the budget.
(Code 1986, § 2-351; Ord. No. 9590, § 1, 8-6-91; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10903, § 1, 9-14-99; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12794, § 1, 1-7-14 ; Ord. No. 13854, § 2, 7-12-22)

Sec. 2-552. When bids required; advertisements for bids.

Whenever any requisition, invoice or contract calls for an expenditure exceeding fifty thousand dollars ($50,000.00), there shall be public advertisement for competitive bids or proposals; provided, however, purchases under fifty thousand dollars ($50,000.00) shall also be subject to advertisement and bids in the case of purchases of like items which individually cost less than fifty thousand dollars ($50,000.00), but

which are customarily purchased in lots of two (2) or more, if the total purchase price of such items would exceed fifty thousand dollars ($50,000.00) during any fiscal year. Notice for bid invitations and/or requests for proposals shall be advertised at least once in one (1) or more daily newspapers published in the City at least ten (10) days prior to the time set for a public opening of bids and/or proposals. The Purchasing Agent, in collaboration with the head of any department, will issue such invitations to bid and/or requests for proposals to vendors in the items or services to be purchased in addition to, but not in lieu of the advertisement required under this section. Secondhand equipment or specialized equipment or equipment purchased from any federal, state, or municipal agency, where it is not practicable to take bids, may be purchased without taking bids, but such purchases shall be subject to the requirements of sections 2-549 and 2-551.

No public advertisement nor competitive bidding or proposals shall be required for purchases up to forty percent (40%) of the above amount established for purchases requiring full public advertisement and competitive bidding or proposals. For purchases between forty percent (40%) and one hundred percent (100%) of said amount, such purchases shall be based upon three (3) written quotes.
(Code 1986, § 2-352; Ord. No. 9590, § 1, 8-6-91; Ord. No. 10903, § 1, 9-14-99; Ord. No. 11103, § 2, 11-28-00; Ord. No. 11834, § 1, 5-30-06; Ord. No. 12795, § 1, 1-7-14 ; Ord. No. 13854, § 3, 7-12-22)

Sec. 2-553. Submission, opening, acceptance of bids.

(a) All bids shall be sealed and submitted to the official authorized herein to request bids on or before the specified time when such bidding is to be closed. The official receiving bids shall open them publicly on the date and at the hour specified. A purchase order may be issued, and/or a contract may be awarded, to the bidder presenting the best value after approval by the city council. The city council may reject any and all bids submitted regardless of the amount involved. In determining the best value for the City, the purchase price and whether the goods or services meet specifications are the most important considerations. However, the purchasing agent may consider other relevant factors including, but not limited to the following:

(1) The ability, capacity and skill of the bidder to perform the contract or provide the service required;

(2) Whether the bidder can perform the contract or provide the service promptly or within the time specified, without delay or interference;

(3) The character, integrity, reputation, judgment, experience and efficiency of the bidder;

(4) The quality of performance of previous contracts or services;

(5) The previous and existing compliance by the bidder with laws and ordinances relating to the contract or service;

(6) The sufficiency of the financial resources and ability of the bidder to perform the contract or provide the service;

(7) The quality, availability and adaptability of the supplies, material and equipment, or contractual services to the particular use required;

(8) The ability of the bidder to provide future maintenance and service for the use of the subject of the contract, and the proposed warranty or guaranty;

(9) The number and scope of conditions attached to the bid;

(10) The approach of the bidders to issues raised in the solicitation for bids;

(11) The peculiar capabilities of the bidders to perform the contract;

(12) The proprietary features of the bid;

(13) The overall responsiveness of the bid to the needs of the City;

(14) Installation Costs;

(15) Life Cycle Costs;

(16) Delivery Terms;

(17) The cost of employee training associated with the purchase;

(18) The effect of the Purchase on Productivity; and

(19) Other factors relevant to determining Best Value for the City in the context of a particular purchase with the approval of the purchasing agent.

(b) If only one (1) bid is received, the bid shall not be opened and the contract or service to be performed shall be re-bid. If after having re-bid the contract or service only one (1) bid is received, the bid may be accepted. Provided, a re-bid shall not be required when there is only one (1) local supplier to perform the contract or provide the service required, or for the purchase of a unique or proprietary product. (Code 1986, § 2-353; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10903, § 2, 9-14-99; Ord. No. 10913, § 1, 9-28-99; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12795, § 2, 1-7-14)

Sec. 2-554. Competitive sealed proposals.

(a) The Purchasing Agent may recommend to the governing body to use competitive sealed proposals to purchase goods and services rather than competitive sealed bids after determining that the use of competitive sealed bidding is either not practicable or not advantageous for the City. In actual emergencies caused by unforeseen circumstances, such as natural or human-made disasters, delays by contractors, delays in transportation, or unanticipated volume of work, purchases through competitive sealed proposals may be made without specific authorizing action of the City Council. A record of any emergency purchase shall be made by the Purchasing Agent when authorizing the emergency purchase, specifying the amount paid, the items and services purchased, from whom the purchase was made, and the nature of the emergency. A report of the emergency purchase through competitive sealed proposals containing all relevant information shall be made as soon as possible by the Purchasing Agent to the City Council.

(b) In the decision to use competitive sealed proposals, the governing body shall follow the criteria set forth in this section for purchasing through competitive sealed proposals and procedures.

(c) Competitive sealed proposals may be used only when City Council determines qualifications, experience, or competence are more important than price in making the purchase and:

(1) When there is more than one (1) solution to a purchasing issue and the competitive sealed proposals will assist in choosing the best solution; or

(2) When there is no readily identifiable solution to a purchasing issue and the competitive sealed proposals will assist in identifying one (1) or more solutions.

(d) The City Council shall adopt as part of its procurement code a process to guide the City Council and Purchasing Agent in making purchases through requests for competitive sealed proposals. The model procurement code shall contain provisions allowing an aggrieved respondent to protest the intended award to another respondent if the protest is filed within seven (7) calendar days after the intended award is announced. The protest shall be filed with and decided by the municipal governing body.

(e) Adequate public notice of the request for competitive sealed proposals shall be given in the same manner provided for competitive sealed bids.

(f) Competitive sealed proposals shall be opened in a manner that avoids disclosure of contents to competing proposers during the negotiation. The proposals shall be open for public inspection after the intent to award the contract to a particular proposer is announced.

(g) The request for competitive sealed proposals shall be reviewed and approved by City Council prior to issuance and state the relative importance of price and other evaluation factors.

(h) As provided in the request for competitive sealed proposals and in the Procurement Instructional Manual, discussions may be conducted for clarification to assure full understanding of, and responsiveness to, the solicitation requirements with responsible proposers who submit proposals determined by the Purchasing Agent to be reasonably susceptible of being selected. The proposers shall be accorded fair and equal treatment with respect to any opportunity for discussion and revision of proposals, and revisions may be permitted after submission and before the intent to award to a particular proposer is announced to obtain the best and final offers. In conducting discussions, the Purchasing Agent and other City personnel shall make no disclosure to any proposer of any information derived from proposals submitted by competing proposers.

(i) The competitive sealed proposal award shall be made to the responsible proposer whose proposal the City Council determines is the most advantageous to the City, taking into consideration price and the evaluation factors set out in the request for competitive sealed proposals. No other factor may be used in the evaluation. The Purchasing Agent shall place in the contract file a statement containing the basis on which the award was made.
(Code 1986, § 2-354; Ord. No. 9590, § 1, 8-6-91; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10903, § 1, 9-14-99; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12676, § 1, 12-18-12; Ord. No. 13663, § 1, 4-13-21)

Sec. 2-555. Exception for utility charges.

Nothing in this article shall preclude the head of any department, agency or division of the city from arranging for reasonable utility services to be charged against its appropriation account.
(Code 1986, § 2-355; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-556. Exception for professional services.

Contracts for professional services shall not be subject to competitive bidding. Tennessee Code Annotated, section 12-4-106.
(Code 1986, § 2-356; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-557. Contents of bid proposals.

All bid proposals for contracts to furnish supplies, materials or equipment, or do construction work, shall set forth with particularity the nature of the work to be performed, how it shall be done, the type and quality of the material to be used and any other details necessary for the guidance of the contractor and the protection of the city.
(Code 1986, § 2-357; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-558. Specifications attached to contracts.

The purchasing agent, or the department head in whose department the contract is to be executed, may have the city engineer or other competent city officer or employee, or private consultant, draw specifications in detail which shall be attached to the contract and construed to be a part thereof. Such specifications shall be made in duplicate, one (1) copy to be furnished to the contractor and the other retained by the department head and filed in his office as a part of the records of the city.
(Code 1986, § 2-358; Ord. No. 9654, § 49, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-559. Compliance prerequisite to paying warrants.

No warrant shall be approved for the payment of any contract of the city unless provisions of this article shall have been complied with and unless the original of the contract is on file with the city finance officer and the minutes of the city council show that the contract has been ratified or approved by the board where necessary.
(Code 1986, § 2-359; Ord. No. 9654, §§ 2, 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-560. Public improvement contracts.

All contracts of the city for any public improvement, when the cost shall exceed ten thousand dollars ($10,000.00) shall be let to the bidder providing the best value, the city council to be the judge thereof, and the council shall have the right to reject any and all bids. All contracts of the city shall be in writing, and may be signed on behalf of the city by the mayor or head of the department in whose department such contract originates. All contracts shall be subject to the approval of the city council. Whenever a requisition or contract calls for an expenditure exceeding twenty-five thousand ($25,000.00), notice to bidders shall be given by publication in a daily newspaper published in the city, giving the date, hour and place bids will be received and publicly opened, which publication notice shall be at least ten (10) days before the bids are to be received.
(Code 1986, § 2-360; Ord. No. 9654, § 50, 1-6-92; Ord. No. 10903, § 3, 9-14-99; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12795, § 3, 1-7-14)

Sec. 2-561. Force account or cost-plus contracts for public improvements.

After bids have been advertised and received for making any public improvement, the mayor may negotiate with the lowest responsible bidder to have such bidder make such public improvement by force account or on a cost-plus basis if, in the opinion of the mayor, the making of such agreement is advantageous to the city. Contracts for repair of buildings or structures may be let on a cost-plus basis which shall include the cost of labor, material, insurance or other legitimate expenses of the contractor and a fixed fee or percentage for profit with a maximum cost to the city of such contract. All such agreements shall be in writing and approved by the city council.
(Code 1986, § 2-361; Ord. No. 9654, § 51, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-562. Contractor's bond.

No contract shall be let for any public construction project until the contractor shall have first executed a good and solvent bond to the effect that he/she will pay for all the labor and materials used by such contractor, or any immediate or remote subcontractor under him/her, in such contract, in lawful money of the United States. The bond to be so given shall be for one hundred percent (100%) of the contract price on all contracts in excess of twenty-five thousand dollars ($25,000). Where advertisement is made, the condition of the bond shall be stated in the advertisement; provided, that this section shall not apply to contracts of twenty-five thousand dollars ($25,000) or less. In lieu of the bond required by this section, the following securities or cash may be substituted at the percentage rate required for such bond:

(1) United States treasury bonds, United States treasury notes and United States treasury bills;

(2) General obligation bonds in the State of Tennessee;

(3) Certificates of deposit or evidence of other deposits irrevocably pledged from:

   a. A state or national bank having its principal office in Tennessee; or

   b. A state or federal savings and loan association having its principal office in Tennessee.

(4) A letter of credit from a state or national bank or state or federal savings and loan association having its principal office in Tennessee. The terms and conditions of any letter of credit shall be

subject to the approval of the city. The form of such letter of credit shall be provided by the bank or savings and loan association and may be based on either the Uniform Commercial Code, title 47, chapter 5, or the ICC Uniform Customs and Practice for Documentary Credits. All letters of credit shall be accompanied by an authorization of the contractor to deliver retained funds to the bank issuing the letter; or

(5) Cash.

(Code 1986, § 2-362; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12973, § 1, 7-28-15)

Sec. 2-563. Certificate that funds available required.

No contract, purchase order, order on stores, agreement or other obligation involving the expenditure of any money shall be issued or entered into or be valid unless the city finance officer first certifies thereon that there is in the city treasury to the credit of the appropriation or loan authorization for which it is to be paid on unencumbered balance in excess of all other unpaid obligations. Before so certifying, the city finance officer shall encumber the proper appropriation or loan authorization with the amount of such contract, purchase order, order on stores, agreement or obligation until the city is discharged therefrom.
(Code 1986, § 2-363; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-564. Obligations without funds declared void; liability.

(a) All contracts. purchase orders, orders on stores, agreements and obligations issued or entered into contrary to the provisions of the preceding section shall be void and no person shall have any claim or demand whatever against the city thereunder, nor shall any official or employee of the city waive or qualify the limitation fixed by the preceding section or fasten upon the city any liability whatever contrary to such limitation.

(b) If any official or employee of the city authorizes or incurs an obligation against the city without first securing the city finance officer's certification as required by the preceding section, such official or employee and his sureties shall be individually liable for the amount of such obligation.
(Code 1986, § 2-364; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-565. Determination of available funds.

All unencumbered money actually in the treasury to the credit of a fund from which they may be drawn, all money anticipated to be received from taxes or other sources to the extent of the amounts stated in the annual budget, all money to be derived from bonds, notes and certificates of indebtedness, either then or previously authorized and either sold or authorized to be sold, shall, for the purpose of the city finance officer's certification, be deemed to be in the treasury to the credit of the appropriate fund and subject to certification.
(Code 1986, § 2-365; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-566. Disposal of surplus real property.

(a) When the head of any department, agency, office, board or commission of the city shall determine that any real property used in that department is no longer useful or required for the operations of such department, he shall certify this fact to the mayor and city council, together with a full description of the property in question; its former use or uses; and whether it has or may have any future use for any other department or agency, etc., of the city. Upon receipt of such certification, the city council shall determine in its sound discretion whether to declare the property to be surplus and whether to be sold or disposed of or whether to be held or transferred to other branches of the city.

(b) Upon a determination by the city council, by motion to be spread upon the minutes of the council, that such real property is surplus and no longer required for the present use of any branch of the city, or in the foreseeable future, the city council, subject to the limitations hereinafter set out, may direct the mayor to cause the purchasing agent of the city to advertise for bids for the sale of such real property or to engage the services of a licensed realtor for the sale of the real property.

(c) The purchasing agent, when so directed, shall prepare an advertisement to be published in all the daily newspapers of the city at least ten (10) days before the date set for the submission of bids. Such advertisement shall clearly state that the property is to be sold to the highest and best bidder with the right retained by the city to reject any or all bids or to waive any informalities or immaterial defects contained in such bids. The full and complete legal description of the property shall be included in the advertisement; the street address, if any, together with a full and complete disclosure of any liens, encumbrances, easements, restrictions or known defects in title and the zoning classification of the property on the date of advertisement thereof.
(Code 1986, § 2-366; Ord. No. 9654, § 52, 1-6-92; Ord. No. 11103, § 2, 11-28-00; Ord. No. 14057, § 1, 11-28-23)

Sec. 2-567. When negotiated or private sales authorized.

Nothing in this article shall be construed to limit the right of the mayor, subject to city council approval, to make a negotiated or private sale of property without advertisement, where such appears to be advantageous to the city; or where the property in question is of such a specialized nature as not to be of general market-ability; or where the prospective purchaser is an agency of the United States, this state or any political subdivision thereof.
(Code 1986, § 2-367; Ord. No. 9654, § 53, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Secs. 2-568—2-580. Reserved.

ARTICLE VI. RESERVED*

Secs. 2-581—2-600. Reserved.

ARTICLE VII. MUNICIPAL PLANNING COMMISSION†

Sec. 2-601. Designated.

The Chattanooga-Hamilton County Regional Planning Commission, a regional planning commission established by the state planning commission in accordance with Tennessee Code Annotated, section 13-3-101, is designated as the municipal planning commission of the city in accordance with Tennessee Code Annotated, section 13-3-301.
(Code 1986, § 2-401; Ord. No. 11103, § 2, 11-28-00)

***Editor's note—**Ord. No. 1333, § 1, adopted June 3, 2018, repealed Art. VI, §§ 2-581—2-586, which pertained to memorial auditorium and derived from [Code 1986, §§ 2-381—2-384; Ord. No. 9386, § 1, 5-29-90; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10010, § 1, 2-8-94; Ord. No. 10541, § 1, 2-25-97; Ord. No. 10826, § 1, 2-9-99; Ord. No. 11103, § 2, 11-28-00; Ord. No. 11175, § 15, 9-11-01; Ord. No. 11581, § 15, 7-6-04; Ord. No. 12362, §§ 1, 2, 3-2-10; Ord. No. 12736, § 6, 7-2-13

†**Charter reference—**Planning generally, § 12.1 et seq.

Cross reference—Zoning regulations, Ch. 38.

State law references—Regional planning commission, T.C.A. §§ 13-3-101—13-3-105; regional planning regulations, T.C.A. §§ 13-3-401—13-3-408.

Sec. 2-602. Membership.

The commission referred to in section 2-401 shall consist of fifteen (15) members (as specified in Tennessee Code Annotated, section 13-3-101 designated by the director of the state planning office with the approval of the local government planning advisory committee in accordance with the bylaws of the Chattanooga-Hamilton County Regional Planning Commission, and Tennessee Code Annotated, section 13-3-101.
(Code 1986, § 2-402; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-603. General duties.

It shall be the duty of the commission referred to in section 2-401 to make and adopt a general plan for the physical development of the territory of Hamilton County, including the territory within the municipalities; to develop a land use plan for all property within the county, including the municipalities; and to develop a major street plan so as to coordinate the streets and highways in the county and municipalities; and to perform other such duties and make such plans as directed by the city council and the planning commission.
(Code 1986, § 2-403; Ord. No. 9654, § 2, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-604. Disbursement of funds.

The city finance officer will disburse the funds which are appropriated by the city and county for the operation of the municipal planning commission, the disbursements to be made upon vouchers signed by the chairman and countersigned by the mayor or county executive.
(Code 1986, § 2-404; Ord. No. 9654, § 54, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-605. Authority to adopt bylaws; purchases and contracts regulated.

The municipal planning commission is hereby authorized to adopt bylaws governing its internal operations relative to the employment, discharge, promotion or demotion of personnel. All purchases and all contracts shall be made or executed pursuant to the provisions of sections 2-341 through 2-367, inclusive, of this Code or as the same may be hereafter amended.
(Code 1986, § 2-405; Ord. No. 11103, § 2, 11-28-00)

Secs. 2-606—2-620. Reserved.
(Ord. No. 11103, § 2, 11-28-00)

ARTICLE VIII. INSPECTION DEPARTMENT*

Sec. 2-621. Composition.

The personnel of the inspection department, under the general administrative supervision of the Director of the Land Development Office, shall consist of inspections as determined to be needed. Such employees shall be appointed by the mayor.
(Code 1986, § 2-421; Ord. No. 9654, § 55, 1-6-92; Ord. No. 11103, § 2, 11-28-00; Ord. No. 12966, § 1, 6-30-15)

***Cross references—**Buildings, Ch. 10; electrical regulations, Ch. 14; fire prevention and protection, Ch. 17; gas, Ch. 19; housing, Ch. 21; mechanical code, Ch. 22.5; plumbing regulations, Ch. 27.

Sec. 2-622. Building inspector and assistant—Powers and duties.

The building inspector shall supervise inspections of buildings. He and his assistant may enter any building in the city in the performance of their duties and may issue such orders as may be necessary to secure compliance with the ordinances of the city relating to buildings and structures. Failure, neglect or refusal of any person to comply with any such order shall be unlawful. Any duty or act required of or authorized to be done by the building inspector may be performed by the assistant building inspector, subject to the approval of the building inspector.
(Code 1986, § 2-422; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-623. Same—Conflict of interest prohibited.

The building inspector and his assistant shall not, during their tenure in office, be employed or engaged directly or indirectly in any building business, enter into any contract for building for others or furnish materials, specifications or plans for buildings for others in the city.
(Code 1986, § 2-423; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-624. Plumbing inspector.

The office of plumbing inspector is hereby created. Such officer shall be appointed by the mayor for a term of one (1) year from the first Monday in June until his successor is elected and qualified; provided, that he shall be subject to removal at any time by the mayor. When a vacancy in such office occurs, it shall be filled by the mayor. The plumbing inspector shall be a capable man of good moral character experienced in plumbing work. He shall enforce the provisions of this Code and other ordinances of the city relating to the installation and maintenance of plumbing. Before entering upon the discharge of the duties of his office, he shall take and subscribe before the mayor an oath faithfully and impartially to perform his duties.
(Code 1986, § 2-424; Ord. No. 9654, § 13, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-625. Construction Board of Adjustment and Appeals for Building, Residential, Electrical, Fire, Fuel Gas, Life Safety, Mechanical and Plumbing codes.

(a) There hereby is created a Construction Board of Adjustment and Appeals for all of the adopted building codes of the city. Such Board shall consist of nine (9) members, who shall be active in the field of construction and shall serve without compensation. One (1) member of the board shall be a building contractor; one (1) member shall be a plumbing contractor; one (1) member shall be an electrical contractor; one (1) member shall be a mechanical, heating, ventilation, and air conditioning contractor; one (1) member shall be a realtor; one (1) member shall be an architect; one (1) member shall be an engineer; one (1) member shall be a building supply dealer; and one (1) member shall be a person who is qualified by experience and training with the hazards of fire, explosions, hazardous conditions or fire protection systems. The members shall be appointed by the mayor, subject to city council approval, for terms of four (4) years each. The board shall organize by electing one (1) of its members as chair. The chair or the chair's designee shall act as secretary to the Board.

(b) The Construction Board of Adjustment and Appeals shall meet once monthly on a date to be determined by its chair, to consider appeals from the decisions of the various enforcement officers of the various construction codes of the city and to consider adjustments in the various construction codes. The Board shall also have the power to determine questions of administrative interpretations of the code, questions of the use of materials and types of construction, to hear proof of performance of new materials or materials not specifically covered in the codes, and to determine the usability of such materials and the safety and permanence of various types of construction.

(c) Every decision of the Board shall be final, subject however to such remedy as any aggrieved party might have at law or in equity from the Hamilton County Chancery Court.

(d) The Construction Board of Adjustment and Appeals shall also have power to make recommendations for revisions or modifications of all existing construction codes to the mechanical codes review committee.

(e) Five (5) members of the Construction Board of Adjustment and Appeals shall constitute a quorum. In varying the application of any provisions of this Code or in modifying an order of the building official, affirmative votes of the majority present, but not less than three (3) affirmative votes, shall be required. No board member shall act in a case in which that board member has a personal interest.

(f) Powers. The Construction Board of Adjustment and Appeals shall have the power, as further defined in (g), to hear appeals of decisions and interpretations of the building official and consider variances of the technical codes.

(g) Appeals of a Decision of the Building Official. The owner of a building, structure or service system, or a duly authorized agent, may appeal a decision of the building official to the Construction Board of Adjustment and Appeals whenever any one (1) of the following conditions are claimed to exist:

1. The building official rejected or refused to approve the mode or manner of construction proposed to be followed or materials to be used in the installation or alteration of a building, structure or service system.
2. The provisions of this code do not apply to this specific case.
3. That an equally good or more desirable form of installation can be employed in any specific case.
4. The true intent and meaning of this code or any of the regulations thereunder have been misconstrued or incorrectly interpreted.

(h) Variances. The Construction Board of Adjustment and Appeals, when so appealed to and after a hearing, may vary the application of any particular case when, in its opinion, the enforcement thereof would do manifest injustice and would be contrary to the spirit and purpose of this or the technical codes or public interest, and also finds all of the following:

1. That special conditions and circumstances exist which are peculiar to the building, structure or service system involved and which are not applicable to others.
2. That granting the variance requested will not confer on the applicant any special privilege that is denied by this code to other buildings, structures or service system.
3. That the variance granted is the minimum variance that will make possible the reasonable use of the building, structure or service system.
4. That the grant of the variance that will be in harmony with the general intent and purpose of this code and will not be detrimental to the public health, safety and general welfare.

   Conditions of the variance. In granting the variance, the board may prescribe a reasonable time limit within which the action for which the variance is required shall be commenced or completed or both. In addition, the board may prescribe appropriate conditions and safeguards in conformity with this code. Violation of the conditions of a variance shall be deemed a violation of this code.

(i) Procedures of the Board.

1. Rules and regulations. The board shall establish rules and regulations for its own procedure not inconsistent with the provisions of this code. The board shall meet once monthly, if applications are submitted, on a date to be determined by the chairman. The board shall meet within thirty (30) calendar days after notice of appeal has been received. No applications for any appeal shall be accepted if filed less than five (5) days before a scheduled monthly meeting.

2. Decisions. The Construction Board of Adjustment and Appeals shall, in every case, reach a decision without unreasonable or unnecessary delay. Each decision of the Board shall also include the reasons for the decision. If a decision of the Board reverses or modifies a refusal, order, or disallowance of the building official or varies the application of any provision of this code, the building official shall immediately take action in accordance with such decision. Every decision shall be promptly filed in writing in the office of the building official and shall be open to public inspection. Every decision of the Board shall be final, subject however to such remedy as any aggrieved party might have at law or in equity.

(Code 1986, § 2-425; Ord. No. 9654, §§ 2, 53, 1-6-92; Ord. No. 11041, § 5, 7-25-00; Ord. No. 11103, § 2, 11-28-00; Ord. No. 11721, § 5, 7-26-05)

Sec. 2-626 Mechanical codes review committee.

(a) There is hereby created a mechanical codes review committee. The committee shall have twelve (12) members which shall include all members of the Construction Board of Adjustment and Appeals for building, residential, electrical, fire, fuel gas, life safety, mechanical and plumbing codes for the city, and the Building Official, the Fire Marshall, and the City Attorney.

(b) The review committee shall meet, as needed, whenever the City considers the adoption of any new building, residential, electrical, fire, fuel gas, life safety, mechanical or plumbing codes as amendments to those codes become available. The review committee shall submit a recommendation any new code amendments which shall be presented to the City Council whenever new codes are considered for adoption.

(Code 1986, § 2-426; Ord. No. 9654, § 56, 1-6-92; Ord. No. 11103, § 2, 11-28-00; Ord. No. 11721, § 5, 7-26-05)

Sec. 2-627. Charge for issuance of permits.

The personnel of the inspection department shall collect an administrative charge of five dollars ($5.00) for the issuance of each permit issued by the department as required under the provisions of this Code or any ordinance or state statute in addition to the fees imposed therefor by the provisions of this Code or any ordinance or state statute.

(Code 1986, § 2-427; Ord. No. 9545, § 1, 4-30-91; Ord. No. 11103, § 2, 11-28-00)

Secs. 2-628—2-640. Reserved.

(Ord. No. 11103, § 2, 11-28-00)

ARTICLE IX. CHATTANOOGA DEPARTMENT OF EARLY LEARNING*

Sec. 2-641. Created; purpose.

There be and is hereby created and established the Department of Early Learning. This department will manage the City of Chattanooga Head Start and Early Head Start programs, manage the City of Chattanooga Foster Grandparent program, and manage partnerships with Hamilton County Schools and early learning centers throughout Chattanooga.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-642. City council designated policy body; powers.

The city council is hereby appointed as the policy body for human services programs. Such body shall also have the power to grant final approval of all programs, proposals, and budgets; to enforce compliance with all conditions made by federal agencies; and to determine, subject to such federal regulations and policies, the rules of procedure for the policy-making body.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-643. Head Start Governing Board—Created; function; composition.

(a) As part of the Department of Early Learning, there is hereby created the Head Start Governing Board (the "Board"). Pursuant to the Head Start Act, 42 USC § § 9801, et seq., this Board shall: 1) be the governing body for the City of Chattanooga Head Start and Early Head Start Programs; 2) be directly responsible for overseeing the legal and fiscal affairs of the City of Chattanooga Head Start and Early Head Start programs; and 3) fulfill the responsibilities and requirements set forth in 42 USC § 9837 and other applicable federal, state, and local laws, rules, and regulations.

(b) The Board shall be composed of fifteen (15) members. The Mayor of the City of Chattanooga (also referred to herein as the "City Mayor") shall appoint five (5) members to the Board, each member of the City Council shall appoint one (1) member to the Board, and the Hamilton County Mayor shall appoint one (1) member to the Board. Prospective members who are appointed by City Council shall live in the district of the Council member who appointed them. The prospective Board members appointed by the City Mayor and by each City Council member shall be subject to confirmation by a majority of the City Council.

(c) Not less than one (1) member shall have a background and expertise in fiscal management or accounting; not less than one (1) member shall have a background and expertise in early childhood education and development; and not less than one (1) member shall be a licensed attorney familiar with issues that come before the Board. Additional members shall (I) reflect the community to be served and include parents of children who are currently, or were formerly, enrolled in Head Start programs; and (II) are selected for their expertise in education, business administration, or community affairs from the following categories: private social service agencies; educational institutions; child services; business organizations; veteran organizations; religious institutions; and low income residents of the City. At any meeting of this Board eight (8) members shall constitute a quorum to conduct business.
(Ord. No. 13786, § 1, 2-22-22)

***Editor's note—**Ord. No. 13786, § 1, adopted Feb. 22, 2022, repealed the former Art. IX, §§ 2-641—2-650, and enacted a new Art. IX as set out herein. The former Art. IX pertained to Chattanooga Youth and Family Development Department and derived from Code 1986, §§ 2-441—2-446, 2-448—2-450; Ord. No. 9496, §§ 2, 3, adopted Dec. 11, 1990; Ord. No. 9654, §§ 2, 8, 57, 59, adopted Jan. 6, 1992; Ord. No. 11103, § 2, adopted Nov. 28, 2000; Ord. No. 12148, §§ 1, 2, adopted July 22, 2008; Ord. No. 12736, § 1, adopted July 2, 2013.

Cross references—City relief bureau, § 2-9 et seq.; fair housing regulations, § 21-81 et seq.

Sec. 2-644. Same—Terms; vacancies.

The terms of the members of the Head Start Governing Board shall be for two (2) years. Initially, the members of the Board shall be appointed so that they hold office for staggered terms. The members appointed from City Council districts 1, 3, 5, 7, and 9, and three (3) of the City Mayor appointments shall be initially appointed for one (1) year terms. The members appointed from City Council districts 2, 4, 6, and 8, and two (2) of the City Mayor appointments and the one (1) County Mayor appointment shall be initially appointed for two (2) year terms. Upon the expiration of the term of any appointed member, a successor shall serve a term of two (2) years. The failure of any member to attend two (2) consecutive meetings or three (3) meetings within any calendar year shall be the basis for removal by the City Mayor and reappointment of another member by the City Mayor, subject to the confirmation of a majority of the City Council. Should any vacancy occur on the Board by death, resignation, or removal of a member, the member's unexpired term shall be filled by appointment of a member residing in the same district as the member vacating the Board, if possible. No member, other than an elected official or his designee, may serve more than two (2) consecutive terms on the Board.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-645. Same—Limited scope of board function.

The governance authority of the Head Start Governing Board shall be limited to the City of Chattanooga Head Start and Early Head Start programs only. The Board shall not have any governance, administrative, nor operational authority over the Department of Early Learning, its administrator, directors, managers, or staff. All administrative and operational authority over the Department of Early Learning shall be vested in the City Mayor and in the administrator of the department, as set forth in Sec. 2-649 below, and her or his executive leadership team.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-646. Same—Bylaws; officers; executive committee.

The Head Start Governing Board shall adopt and may amend bylaws for the regulation of its meetings and proceedings. It shall also elect officers. At the same time officers are elected, the Board shall appoint an executive committee, not to exceed five (5) in number. The executive committee shall have as members the Board chairman, vice chairman, secretary, and two (2) members elected by the board from among its number. The executive committee shall have power to function between formal board meetings and power to act on behalf of the Board.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-647. Reserved.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-648. Administrator.

There shall be an administrator of the Department of Early Learning who shall be appointed by the Mayor of the City of Chattanooga subject to confirmation by a majority of the City Council. If the administrator position becomes vacant, the vacancy shall be filled by the Mayor of the City of Chattanooga, and be subject to confirmation by a majority of the City Council.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-649. Administrative control of department; powers of mayor, administrator.

The City Mayor and the administrator of the Department of Early Learning shall have respective levels of administrative authority over the Department of Early Learning. The City Mayor shall be empowered to

employ, discharge or suspend the administrator of the department subject to confirmation by a majority of the City Council. The administrator shall be empowered to employ, discharge or suspend all other employees of the department subject to confirmation of the mayor and city council.
(Ord. No. 13786, § 1, 2-22-22)

Sec. 2-650. Financial affairs; receipts and disbursements.

All fiscal and financial affairs of the Department of Early Learning shall be conducted by the city finance officer. All receipts and disbursements shall be handled in accordance with the applicable provisions of the charter and ordinances of the city.
(Ord. No. 13786, § 1, 2-22-22)

Secs. 2-651—2-660. Reserved.

ARTICLE X. SUPPLEMENTAL PENSION BENEFITS*

Sec. 2-661. Reserved.

Editor's note—Ord. No. 13386, § 2, adopted Oct. 23, 2018, repealed § 2-661, which pertained to special fund created and derived from Code 1986, § 2-461; Ord. No. 11103, § 2, 11-28-00.

Sec. 2-662. Administration of fund by board of directors.

The supplemental pension fund shall be administered by a board to be known as the board of directors of the supplemental pension fund. Such board shall be composed of five (5) persons to be appointed by the mayor subject to confirmation by the city council. The board members shall serve for three (3) year terms or until their successors have been duly appointed. Any member may be reappointed. The mayor, subject to confirmation by the city council, shall designate a chairman, vice-chairman and a secretary of the board. The board members shall serve either at the pleasure of the mayor or the city council.
(Code 1986, § 2-462; Ord. No. 9654, § 2, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-663. Procedure for determining supplemental benefit.

Any retiree or person who is being paid a pension by the city, or from the firemen's and policemen's insurance and pension fund, who is or will be at least sixty-five (65) years of age on any entitlement date, as defined in section 2-467, shall be entitled to receive as a supplemental pension benefit two hundred fifty dollars ($250.00) per month less the total amount such person is now receiving per month from any pension or retirement benefit paid by any government entity (whether federal, any state, county or city), including the amount such person is or would be entitled to receive as social security benefits or any annuity income that has been or is being provided in whole or in part by contributions from any government entity, but excluding earned or investment income.
(Code 1986, § 2-463; Ord. No. 11103, § 2, 11-28-00)

***Charter reference—**Pensions and death benefits, §§ 3.35—3.52.

Cross references—City authorized to contribute to pension funds created and operated by labor organizations, § 2-7; social security for city employees generally, § 2-231 et seq.; minimum pension for teachers with twenty-five (25) years' service, § 30-1.

Sec. 2-664. Application for supplemental benefit; termination of benefits.

(a) Before any person shall be entitled to a supplemental pension benefit such person shall file an application with the city finance officer on a form provided by the city finance officer stating under oath or affirmation the required information or facts as would show that such person may be entitled to a supplemental pension benefit, and there shall be filed with such application proof as to the amount of social security or pension income being received by or to which the applicant may be entitled. If the city finance officer at any time shall not be satisfied as to the accuracy or truthfulness of the contents of the application, whether before or after a supplemental pension benefit may have been granted, he shall be and is hereby empowered to subpoena such person or other witnesses and examine them under oath or affirmation as to the facts contained in such application, or as to any such matters as should have been contained therein. If the city finance officer is of the opinion that such application is false, fraudulent, erroneous, inaccurate or invalid, he shall report such finding to the board of directors which shall then conduct a hearing after at least fourteen (14) days' notice to all parties in interest. The city attorney or his representative may attend and examine or cross-examine any witness. The chairman, vice-chairman or secretary of the board of directors shall have the authority to summon witnesses and administer oaths or affirmations. The decision of the board of directors shall be final and conclusive, but subject to review by any court of competent jurisdiction as may be provided by law. The applicant may be represented by counsel before the city finance officer and/or before the board of directors at any such hearing.

(b) If at any time the board of directors has reason to believe that any person is not entitled to a supplemental pension benefit that may have been previously granted, or that any person is no longer entitled thereto, it shall be the duty of the board of directors to have a notice served on the recipient of such supplemental pension benefit, either by certified mail or otherwise, requiring such person to appear, not less than fourteen (14) days after service of such notice, before the board of directors and show cause, if any there be, why such supplemental pension benefit should not be terminated. If the board of directors finds that such person has previously received supplemental pension benefits to which such person was not entitled under the provisions of this article, or that an application of such person contains false or materially inaccurate information or false testimony was given before either the city auditor or the board of directors, or before a court, then in such event the recipient shall be liable to repay the total of such illegally received money and the city attorney is authorized in his discretion to file suit on behalf of the city to collect same. Furthermore, if any person files a willfully false or materially inaccurate application, such person shall be fined not more than fifty dollars ($50.00) upon conviction by the city court. Any person found by the board of directors to have filed a false or materially inaccurate application, or to have given false testimony, or who is convicted by the city court as aforesaid, shall forfeit any right to any future supplemental pension benefits under this article.
(Code 1986, § 2-464; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-665. Application filing date; payment of benefit.

Applications for supplemental pension benefit by any person who is entitled thereto as of January 1, 1975, shall be filed on or before May 1, 1975; and if granted by the board of directors of the supplemental pension fund, then supplemental pension benefit payments shall be paid in a lump sum retroactive to and for the month of January, 1975; otherwise, such person shall be entitled to a supplemental pension benefit the first of the month following the filing of an application, provided the same is granted.
(Code 1986, § 2-465; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-666. Annual reapplication required.

On or before October 1, 1975, and each year thereafter, each person receiving a supplemental pension benefit shall refile an application similar to the original application, setting forth under oath or affirmation

the pertinent information relative to pension or retirement income as referred to in section 2-463. Such annual reapplication shall be subject to examination by the city finance officer in the same manner as provided in section 2-464(a) and (b) and the review procedure shall be the same as provided therein.
(Code 1986, § 2-466; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-667. "Entitlement date" defined.

The phrase "entitlement date," as used in section 2-463 shall mean January 1, 1975, and the first day of the month following the applicant's sixty-fifth (65th) birthday.
(Code 1986, § 2-467; Ord. No. 11103, § 2, 11-28-00)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 2-668. When benefits payable.

Supplemental pension benefits shall be payable on the first of each month for the preceding month.
(Code 1986, § 2-468; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-669. Termination upon death of recipient.

Any supplemental pension benefits shall terminate as of the date of death of any person receiving same.
(Code 1986, § 2-469; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-670. Studies of city pension systems; purpose.

It shall be the duty of the city finance officer to conduct an ongoing study of all the pension systems of the city, and he is authorized to employ from time to time the services of actuarial or other consultants to make any necessary and relevant studies that may now or hereafter be needed. The results of any such studies by the city finance officer and/or any consultant, together with any recommendations, shall be reported annually to the mayor and city council. It shall be the purpose of such studies to accomplish equity and fairness of treatment among all retirees relative to retirement benefits, including those retirees who will not, it the time of the enactment of this article, receive supplemental pension benefits under the provisions of this article.
(Code 1986, § 2-470; Ord. No. 9654, §§ 8, 38, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-671. Benefit increases.

(a) Every person receiving or hereafter entitled to receive a supplemental pension benefit, and every person who retired on or before July 1, 1972, receiving or hereafter entitled to receive a pension from any pension plan of the city, shall receive as a supplemental pension benefit a sum equal to five percent (5%) more than such person is now [August 12, 1975] receiving or would otherwise hereafter be entitled to receive. Such additional five percent (5%) shall commence with the payment due for the month of September, 1975, and thereafter.

(b) Every person receiving or hereafter entitled to receive a supplemental pension benefit, and ever, person who retired on or before July 1, 1973, receiving or now entitled to receive, or hereafter entitled to receive, a pension from any pension plan of the city, shall receive as a supplemental pension benefit an additional four percent (4%) over and above and in addition to the amount so provided in prior ordinances. Such additional four percent (4%) shall commence with the payment due for the month of October, 1976 and thereafter.
(Code 1986, § 2-471; Ord. No. 11103, § 2, 11-28-00)

Secs. 2-672—2-690. Reserved.
(Ord. No. 11103, § 2, 11-28-00)

ARTICLE XI. SUSPENSION AND DEBARMENT OF CONTRACTORS*

Sec. 2-691. Authority of city to take action; grounds for debarment or suspension.

In addition to other provisions of law for rejecting bids and debarring or suspending bidders, the city may take the following actions to debar or suspend persons not otherwise debarred from city contracts by Tennessee Code Annotated, section 12-4-602 or other applicable law:

(1) Any person who has, since January 1, 1979, performed services as a contractor or subcontractor under, or bid on, a city contract, may be debarred from bidding on, or subcontracting for all or any part of, or entering any partnership or joint venture with respect to, or other-wise participating in, city contracts for a period of not more than five (5) years, if in connection with any federal, state or local government contract (including without limitation, the submission of bids or proposals therefor) the person has at any time since January 1, 1979:

a. Violated or participated in a violation of the Sherman Act (15 U.S.C. §§ 1, 2), or the Racketeer Influenced and Corrupt Organizations Act (18 U.S.C. §§ 1961-1968), or the Hobbs Act (18 U.S.C. § 1951), or the mail or wire fraud statutes (18 U.S.C. §§ 1341, 1343), or the false statement statute (18 U.S.C. § 1001) or other similar provision of federal or state law, as evidenced by (i) a plea of guilty or nolo contendere or a conviction in a criminal action; (ii) a judgment of liability in a civil action (whether public or private); or (iii) other competent evidence; or

b. Committed or participated in any other acts of such a serious nature as to affect the person's responsibility as a contractor or subcontractor on city contracts.

(2) a. Any person who has since January 1, 1979, performed services as a contractor or subcontractor under, or bid on, a city contract may be suspended from bidding on, or subcontracting for all or any part of, or entering any partnership or joint venture with respect to, or otherwise participating in, city contracts if there are reasonable grounds for suspecting that such person has committed any of the acts or conduct stated in subparagraph (1) of this section and the public interest requires that the person be immediately temporarily disqualified from bidding. Reasonable grounds shall consist of, but are not limited to, the return of an indictment or the filing of criminal information.

b. A suspension shall be for a temporary period, pending investigation, legal proceedings or other events which would be a basis for a debarment, or pending the completion of a debarment proceeding. A suspension shall not continue more than twelve (12) months, unless criminal or civil legal proceedings or debarment proceedings are in progress, in which case the suspension may be extended until the completion of such legal or debarment proceedings.

(3) For purposes of determining whether a basis for debarment or suspension exists under subparagraphs (1) and (2) of this section (and the scope of such debarment or suspension under this article), the term "person" shall include (i) in the case of a corporation: the corporation, its

---

***Editor's note—**The Court of Appeals of Tennessee, Eastern Section, in the case of CFW Construction Company, Inc., et al. v. City of Chattanooga and McDowell Contractors, Inc., et al. v. City of Chattanooga, dated February 21, 1985, reversed and dismissed the decision of the Hamilton County Chancery Court which had held that Ordinance No. 8259, codified in this article, violated the Tennessee Constitution's prohibition on retrospective laws and was preempted by T.C.A. § 12-4-601 et seq. The Court of Appeals ruled that the ordinance violated no vested right or contractual obligation. The Court also held that the statute cited did not preempt local ordinances on the subject, noting that T.C.A. § 6-56-306 gives municipalities authority to adopt regulations for competitive bidding on municipal contracts.

Cross reference—City purchases, contracts and property disposition, § 2-541 et seq.

officers, directors, shareholders, employees and agents, and its parents, subsidiaries or affiliates, whether in existence at the time of the event referred to in subparagraph (1) of this section or subsequently formed or acquired; (ii) in the case of a partnership or joint venture: the partnership or joint venture, its general or limited partners and joint ventures, its officers, employees and agents; and (iii) in the case of a sole proprietorship: the individual proprietor and his employees and agents. Where a partner or joint venture is a corporation, the partnership or joint venture shall have attributed to it the actions of persons attributable to the corporation under paragraph (i) of this subsection.

(Code 1986, § 2-491; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-692. Instituting debarment process.

(a) The debarment process shall begin with the issuance of a notice to debar which may be issued by the mayor. The notice to debar shall specify the grounds, set forth in section 2-691, for the debarment, and advise the person considered for debarment that he may request a hearing thereon, and shall be served on the person named therein or on his duly authorized agent.

(b) Debarment shall be effective at 12:00 noon upon the twentieth day after the notice to debar is issued unless within that time the bidder has requested in writing a hearing on the notice, in which event debarment shall not be effective until or unless so ordered by the mayor. A request for a hearing shall be effective only if it is received by the city finance officer before 12:00 noon on the twentieth day after issuance.

(c) If a timely request for a hearing is made, a hearing shall be scheduled as soon as practicable before a hearing officer who shall promptly report his findings and recommendation to the city council. Based on these findings, the city council shall determine whether the person should be debarred and the period of such debarment. In the event of debarment, the period thereof shall begin on the day following such determination.

(Code 1986, § 2-492; Ord. No. 9654, §§ 2, 8, 61, 64, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-693. Instituting suspension process.

(a) The suspension process shall begin with the issuance of a notice to suspend which may be issued by the mayor. The notice to suspend shall specify the grounds set forth in section 2-691, for suspension, and advise the person suspended that he may request a hearing thereon, and shall be served on the person named therein or on his duly authorized agent.

(b) Suspension shall be effective as of the date of the notice to suspend. A suspended bidder may request a hearing if he files a request therefor with the clerk of the city council by 12:00 noon on the twentieth day after issuance of the notice to suspend.

(c) If a timely request for a hearing is made, a hearing shall be scheduled before a hearing officer within twenty (20) days of receipt of the request therefor, and the hearing officer shall, within ten (10) days of the hearing, report his findings and recommendation to the city council. Based on these findings, the city council shall determine whether the suspension shall remain in effect.

(Code 1986, § 2-493; Ord. No. 9654, §§ 2, 10, 61, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-694. Debarment or suspension hearing.

(a) Any hearing convened under this article shall be presided over by a hearing officer appointed by the mayor, subject to confirmation by the city council. The hearing officer shall be an attorney or former judge, licensed to practice law in this state, who has never represented the persons subject to debarment or suspension proceedings. Such attorney or former judge shall be entitled to a reasonable fee for his services rendered. The hearing officer shall be a notary public authorized to administer oaths in the county.

(b) At any hearing convened pursuant to this section, the party requesting the hearing shall have the burden of demonstrating that it is not subject to debarment under section 2-691(1) or suspension under section 2-691(2), as the case may be.

(c) The party requesting the hearing shall have the right to be represented by counsel and to present evidence. Such party shall (i) produce testimony under oath from all persons under its control and (ii) produce all documents in its possession, custody or control, which shall be requested by the hearing officer, or by the attorney for the city, which are relevant to the issues before it. All witnesses shall be subject to cross-examination by the hearing officer and the attorneys for the parties, including the attorney for the city.

(d) The hearing officer shall regulate proceedings in hearings before him and may receive any evidence which is probative and trustworthy, without being bound by judicial rules of evidence. If evidence requested by the hearing officer pursuant to paragraph (c) of this section is not produced, the hearing officer may draw such adverse inferences therefrom as may be warranted under the circumstances.
(Code 1986, § 2-494; Ord. No. 9654, § 2, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-695. Debarred and suspended bidders list.

The city finance officer shall maintain a current list of debarred and suspended bidders which shall be circulated to all city contracting personnel.
(Code 1986, § 2-495; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11103, § 2, 11-28-00)

Sec. 2-696. Petition for early lifting of debarment.

(a) Any debarred bidder may petition at any time to have the debarment lifted or the term of debarment reduced by filing a petition in writing with the city finance officer. Upon any such petition which shows, by affidavits or otherwise, substantial facts which may warrant lifting of the debarment or reduction of its term, the mayor may schedule a hearing thereon under the procedures of section 2-694. A petition which does not set forth substantial facts under oath which may warrant lifting of the debarment or reduction in its term under the standards of this section shall not be effective, and no such hearing shall be scheduled thereon.

(b) The debarment may be lifted, or reduced in term, only if the petitioner proves that there is no significant risk that the petitioner will commit any of the acts described in section 2-691 on city contracts in the future, and the relief requested otherwise serves the public interest under the circumstances, taking into account the following factors:

(1) Whether petitioner has taken adequate and specific steps to insure that these acts are unlikely to occur in the future;

(2) Whether all individuals responsible for the prior violations have been removed from responsibility for the relevant matters;

(3) Whether petitioner has adopted a compliance program designed and implemented so as to educate its personnel about these violations and substantially to reduce the risk that they will recur;

(4) Whether petitioner has had its relevant personnel, and will take steps to assure that new personnel will, execute and file with the city a non-collusion affidavit in form acceptable to the city;

(5) Whether petitioner has cooperated in any investigation of the relevant violations by city, the state and the federal government;

(6) The degree of culpability on the part of the petitioner;

(7) The degree of continuity of the petitioner's business, assets or personnel;

(8) Whether petitioner has made monetary restitution to the city for the violations which affected city contracts; and

(9) Any other factor significantly affecting the public interest.

(Code 1986, § 2-496; Ord. No. 11103, § 2, 11-28-00)

Secs. 2-697—2-710. Reserved.

(Ord. No. 11103, § 2, 11-28-00)

ARTICLE XII. DEPARTMENT OF EQUITY AND COMMUNITY*

Sec. 2-711. Created.

There be and is hereby created and established the Department of Equity and Community Engagement ("ECE").

(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-712. Purpose; functions.

The Department of Equity and Community Engagement assists Chattanooga residents who experience discriminatory practices by working to remove City wide barriers that inhibit personal and communal financial stability and growth, hinder professional/career opportunities and advancement, and impede social inclusion and well-being. ECE will aim to connect Chattanooga residents to economic, educational, and civic resources, influence local policy, and promote advocacy. At its core, ECE will serve as a bridge that connects people to resources, support, information, and community. The three (3) functions and focus areas of ECE are as follows:

a. Community Engagement will lead community engagement efforts for the City of Chattanooga that are equitable and effective. Community Engagement will collaborate with diverse groups of local neighborhood leaders, non-profit organizations, faith leaders, advocates, organizers, and Chattanooga residents to elevate the voices and participation of our entire community. Such collaborations will assist Community Engagement in building trust through strong relationships and partnerships with community members and influencers, nonprofit partners, faith leaders, and industry partners, and facilitate authentic community engagement to uplift underrepresented voices to meaningfully involve them in decisions that affect their lives and communities.

b. Supplier Diversity will work to assist diverse business owners who encounter economic and professional barriers by creating strategic partnerships and cultivating networking opportunities with local business leaders by building a community of support and resources.

c. The Office of New Americans ("ONA") is charged with connecting local immigrant and refugee communities to resources and opportunities to foster a greater sense of belonging in Chattanooga. ONA will create strategies, programs, and projects that seek to facilitate the elimination of barriers that prevent immigrant and refugee residents from engaging as thriving members of the Chattanooga community. ONA's goal is to welcome and embrace the diverse cultures and backgrounds of immigrant and refugee residents by creating and offering equitable access to opportunities and city programs and services and connecting people to communities. ONA will

---

***Editor's note—**Ord. No. 13909, § 1, adopted Nov. 8, 2022, repealed the former Art. XII, §§ 2-711—2-716, and enacted a new Art. XII as set out herein. The former Art. XII pertained to office of multicultural affairs and derived from Code 1986, §§ 2-511—2-515; Ord. No. 9654, §§ 2, 38, 56, 1-6-92; Ord. No. 10703; § 1, 5-19-98; Ord. No. 11103, § 2, 11-28-00; Ord. No. 11767, § 2, 11-22-05; Ord. No. 12243, §§ 1, 2, 5-19-09.

also endeavor to work with and support the existing immigrant and refugee ecosystem, helping it to better serve Chattanooga's immigrant and refugee community and their accessible opportunities.

(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-713. Equity board—created; function; composition.

a. As part of the Department of Equity and Community Engagement, there is hereby created the Equity Board (the "Board"). This Board shall advise, promote, and advocate for the various initiatives, projects, and goals of ECE.

b. The Board shall be composed of no more than fifteen (15) members. The Mayor of the City of Chattanooga (also referred to herein as the "Mayor") shall appoint at least four (4) members to the Board and each member of the City Council shall appoint one (1) member to the Board. Prospective members who are appointed by City Council shall live in the district of the Council member who appointed them. The prospective Board members appointed by the Mayor and by each City Council member shall be subject to confirmation by a majority of the City Council.

c. Board members shall reflect the diversity of Chattanooga and shall have experience being actively engaged in the Chattanooga community and/or a strong interest in advocating on behalf of all demographics of Chattanooga residents. Members shall be committed to assisting ECE fulfill its goals of working towards building an equitable, tolerant, and prosperous community for all Chattanooga residents.

(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-714. Same—Terms; vacancies.

The terms of the members of the Board shall be for three (3) years. Initially, the members of the Board shall be appointed so that they hold office for staggered terms. The members appointed from City Council districts 1, 3, 5, 7, and 9, and at least two (2) of the Mayor appointments shall be initially appointed for one (1) year terms. The members appointed from City Council districts 2, 4, 6, and 8, and at least two (2) of the Mayor appointments shall be initially appointed for two (2) year terms. Upon the expiration of the term of any appointed member, a successor shall serve a term of three (3) years. The failure of any member to attend two (2) consecutive meetings or three (3) meetings within any calendar year shall be the basis for removal by the Mayor and reappointment of another member by the Mayor, subject to the confirmation of a majority of the City Council. Should any vacancy occur on the Board by death, resignation, or removal of a member, the member's unexpired term shall be filled by appointment of a member residing in the same district as the member vacating the Board, if possible. No member may serve more than two (2) consecutive terms on the Board.

(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-715. Same—Limited scope of Board function.

The advisory responsibilities of the Board shall be limited to the City of Chattanooga Department of Equity and Community Engagement programs and initiatives only. The Board shall not have any governance, administrative, nor operational authority over the Department of Equity and Community Engagement, including its four divisions, its administrator, directors, managers, or staff. All administrative and operational authority over the Department of Equity and Community Engagement shall be vested in the Mayor and in the administrator of the department, as set forth in Sec. 2-717 below, and her or his executive leadership team.

(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-716. Same—Bylaws; officers; executive committee.

The Equity Board shall adopt and may amend bylaws for the regulation of its meetings and proceedings. It shall also elect as officers, a Chairperson, Vice Chairperson, and Secretary, who will serve as the executive committee for the Board.
(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-717. Administrator.

There shall be an administrator of the Department of Equity and Community Engagement who shall be appointed by the Mayor of the City of Chattanooga subject to confirmation by a majority of the City Council. If the administrator position becomes vacant, the vacancy shall be filled by the Mayor of the City of Chattanooga and be subject to confirmation by a majority of the City Council.
(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-718. Administrative control of department; powers of mayor, administrator.

The City Mayor and the administrator of the Department of Equity and Community Engagement shall have respective levels of administrative authority over the Department of Equity and Community Engagement. The City Mayor shall be empowered to employ, discharge, or suspend the administrator of the department. The administrator shall be empowered to employ, discharge, or suspend all other employees of the department.
(Ord. No. 13909, § 1, 11-8-22)

Sec. 2-719. Financial affairs; receipts and disbursements.

All fiscal and financial affairs of the Department of Equity and Community Engagement shall be conducted by the city finance officer. All receipts and disbursements shall be handled in accordance with the applicable provisions of the charter and ordinances of the city.
(Ord. No. 13909, § 1, 11-8-22)

Secs. 2-720—2-749. Reserved.

ARTICLE XIII. CODE OF ETHICS*

Sec. 2-750. Applicability.

This Article is the code of ethics for personnel of the City of Chattanooga ("City"). It applies to all full-time and part-time employees, including individuals serving on any separate board, commission, committee, authority, corporation, or other instrumentality appointed or created by the City, whether compensated or not.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-751. Definition of "personal interest."

A. For purposes of Sections 2-752 and 2-753, "personal interest" means:

1. Any financial, ownership, or employment interest in the subject of a vote by a municipal board not otherwise regulated by state statutes on conflicts of interests; or

2. Any financial, ownership, or employment interest in a matter to be regulated or supervised; or

---

***Editor's note—**Formerly entitled "Boards and Commissions," which was created by Ord. No. 11769, § 1, 12-6-05 and repealed by Ord. No. 11985, § 2, 6-26-07.

3. Any such financial, ownership, or employment interest of the official's or employee's spouse, parent(s), stepparent(s), grandparent(s), sibling(s), child(ren), or stepchild(ren).

B. "Employment interest" includes, but is not limited to, a situation in which an official or employee or an immediate family member is negotiating possible employment with a person or entity that is the subject of the vote or that is to be regulated or supervised.

C. In any situation in which a personal interest is also a conflict of interest under state law, the provisions of the state law take precedence over the provisions of this chapter.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-752. Disclosure of personal interest by official with vote.

An official with the responsibility to vote on a measure shall disclose during the meeting at which the vote takes place, before the vote and so it appears in the minutes, any personal interest that affects or that would lead a reasonable person to infer that it affects the official's vote on the measure. In addition, the official shall not lobby any official or employee of the City of Chattanooga or vote on matters in which they have a personal interest.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-753. Disclosure of personal interest in nonvoting matters.

An official or employee who must exercise discretion relative to any matter, other than casting a vote, and who has a personal interest in the matter that affects or that would lead a reasonable person to infer that it affects the exercise of discretion shall disclose, before the exercise of the discretion when possible, the interest on a form provided by and filed with the Office of the City Attorney. In addition, the official or employee shall not participate in any way on matters in which they have a personal interest.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-754. Acceptance of gratuities, etc.

A. An official or employee may not accept, directly or indirectly, any money, gift, gratuity, or other consideration or favor of any kind from anyone other than the City:

1. For the performance of an act, or refraining from performance of an act, that he or she would be expected to perform, or refrain from performing, in the regular course of his or her duties; or

2. That might reasonably be interpreted as an attempt to influence his or her action, or reward him or her for past action, in executing business of the City.

B. No official or employee shall solicit or accept, directly or indirectly, on behalf of himself or any member of the employee's household, any gift, including but not limited to any gratuity, service, favor, food, entertainment, lodging, transportation, loan, loan guarantee or any other thing of monetary value from any person or entity that:

1. Has or is seeking to obtain contractual or other business or financial relations with the City;

2. Conducts operations or activities that are regulated by the City; or

3. Has interests that may be substantially affected by the performance or nonperformance of the official's or employee's duties.

C. Exceptions. The prohibition of accepting gifts does not apply to:

1. A gift or gratuity that is not cash or a cash equivalent (such as a check or gift card), and which has a value of Fifty Dollars ($50.00) or less, shall not be interpreted as an attempt to influence the action of an official or employee;

2. A gift given by a member of an official's or employee's immediate family, or by an individual if the gift is given for a non-business purpose and is motivated by a close personal relationship;

3. Informational materials, such as books, periodicals, audio or video, or sample merchandise helpful as a part of the employee's or official's duties in determining the appropriateness of the product for use as a part of city business;

4. Unsolicited tokens or awards of appreciation, honorary degrees or bona fide awards in recognition of public service, provided that any such item cannot be readily converted to cash;

5. Food, refreshments, foodstuffs, entertainment or beverages provided as a part of a meal or other event in which the employee or official is attending or is a speaker or part of a panel discussion at a scheduled meeting of an established or recognized membership organization;

6. Loans from established financial institutions made in the ordinary course of business on usual and customary terms; and

7. Voluntary, legally disclosed political campaign contributions given in accordance with applicable federal and state statutes to an individual covered by the provisions of this section who has announced his intention to seek elected office.

Except as provided in subsection C. above, an official or employee shall not accept any gift from anyone for any service or duty performed as an official or employee of the City without the express consent of the City Council.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14; Ord. No. 12863, § 1, 10-14-14)

Sec. 2-755. Use of information.

A. An official or employee shall not disclose any information obtained in his or her official capacity or position of employment that is made confidential under state or federal law except as authorized by law.

B. An official or employee shall not use or disclose information obtained in his or her official capacity or position of employment with the intent to result in financial gain for himself or any other person or entity.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-756. Use of municipal time, facilities, etc.

A. An official or employee shall not use or authorize the use of municipal time, facilities, equipment, or supplies for private gain or advantage to himself or herself.

B. An official or employee shall not use or authorize the use of municipal time, facilities, equipment, or supplies for private gain or advantage to any private person or entity, except as authorized by legitimate contract or lease that is determined by the governing body to be in the best interests of the municipality.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-757. Use of position or authority.

A. An official or employee shall not make or attempt to make private purchases, for cash or otherwise, in the name of the municipality.

B. An official or employee shall not use or attempt to use his or her position for personal financial gain or to secure any privilege or exemption for himself, herself, or others that is not authorized by the charter, general law, or ordinance or policy of the municipality.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-758. Outside employment.

An official or employee shall not accept or continue any outside employment if the work unreasonably inhibits the performance of any affirmative duty of the municipal position or conflicts with any provision of the municipality's charter or any ordinance or policy and outside employment must comply with Sections 2-431 and 2-432 of this chapter.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-759. Ethics Officer.

A. Authority. The city attorney is designated as the Chief Ethics Officer of the City. Upon the written request of an official or employee potentially affected by a provision of this chapter, the city attorney may render an oral or written advisory ethics opinion based upon this chapter and other applicable law.

B. Conflicts of Interest. Except as otherwise provided in this subsection, the Chief Ethics Officer shall investigate any credible complaint against an appointed official or employee charging any violation of this chapter, or may undertake an investigation on his or her own initiative when he or she acquires information indicating a possible violation and make recommendations for action to end or seek retribution for any activity that, in the attorney's judgment, constitutes a violation of this code of ethics.

C. Conflicts of Interest for the Chief Ethics Officer. When a conflict of interest exists in a particular matter, the Chief Ethics Officer may request that the governing body hire another attorney, individual, or entity to act as Chief Ethics Officer.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-760. Ethics Committee.

A. Creation and membership. There is created the Ethics Committee for the City. The Ethics Committee shall consist of the Director of Human Resources, the Chief Financial Officer, and the Chair of the City Council or his or her designee.

B. Duties of the Ethics Committee. The Ethics Committee shall work with the Chief Ethics Officer to review ethics opinions as provided in subsection C of this section and to perform such other duties as provided in this Article.

C. Ethics opinions.

1. An official or employee subject to this Article may request an ethics opinion; provided, however, that the Ethics Committee or the Chief Ethics Officer shall retain sole discretion concerning whether such a formal ethics opinion should be issued.

2. The Chief Ethics Officer shall place and publish formal ethics opinions on the Office of City Attorney's website for public access.

(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-761. Complaints and Complaint Procedures.

A. Complaints against an official or employee.

1. Any citizen of the City, including but not limited to officials or employees, may submit a complaint in writing and under oath, alleging that one (1) or more officials or employees have violated or may have violated any provision of this Article within ninety (90) days following of the alleged violation.

2. The complaint must be signed by the complainant and notarized, and must contain the following:

   (i) The complainant's legal name and current mailing address;

(ii) The name or names of any officials or employees who committed or may have committed the alleged violation;

(iii) A summary of the facts giving rise to the complaint; and

(iv) Some explanation of why those facts constitute or may constitute a violation of this Article.

3. Anyone filing a false complaint will be subject to the penalties for perjury.

4. The Chief Ethics Officer, or his or her designee, may assist complainants in completing the form of a complaint.

5. The complaint must be filed with the Chief Ethics Officer. Upon receipt, the Chief Ethics Officer shall promptly provide a copy of the complaint to the official or employee named therein and to the Ethics Committee. As used in this section, unless otherwise noted, the term "provide" means to send by U.S. mail or to hand deliver.

6. The Chief Ethics Officer will evaluate the complaint, applying the law of the standards of conduct to the facts alleged in the complaint.

7. Within twenty-one (21) days from receipt of the complaint, the Chief Ethics Officer shall issue a report and recommendation, including a copy of the complaint, to the Ethics Committee. The report should provide a conclusion as to whether the facts alleged in the complaint, if true, would give rise to a violation of this Article.

8. After receiving the Chief Ethics Officer's report, the Ethics Committee shall review the Chief Ethics Officer's report, and may accept or reject the Chief Ethics Officer's recommendation. Based on its findings, the Ethics Committee is authorized to dismiss the complaint or make certain recommendations to the official, administrator, or chair of the board, commission, or committee on which an employee or official serves.

9. Any decision shall require the affirmative concurring vote of at least two (2) members of the Ethics Committee. The decision shall be filed with the Chief Ethics Officer, who shall within a reasonable amount of time place all such decisions on City Attorney's office website for public access, and provide to the complainant and to the official or employee named in the complaint.

10. From the time a complaint has been received by the members of the Ethics Committee, until a written decision has been issued, no member of the Ethics Committee shall participate in any communication regarding the allegations or merits of the complaint, outside of the Ethics Committee's public meetings or hearings, except as contemplated by these procedures.

11. If a complaint is filed against a member of the Ethics Committee, that member shall recuse himself or herself from any discussion contemplated by this article pursuant to the process outlined herein.

B. Complaints against members of City Council. When a complaint of a violation of any provision of this Article is lodged against a member of City Council, the Chief Ethics Officer shall present such complaint at the next regularly scheduled meeting of the City Council. Upon hearing the nature of the complaint, by a majority vote, the City Council shall determine that the complaint has merit, determine that the complaint does not have merit, or determine that the complaint has sufficient merit to warrant further investigation. If by a majority vote, the City Council determines that a complaint warrants further investigation, it shall authorize an investigation by the Chief Ethics Officer or another individual or entity chosen by the City Council.

(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-762. Reporting; whistleblower protection; abuse of process; complicity.

A. It is the duty of every employee of the City to report, directly and without delay, to their supervisor, Chief Ethics Officer, or City Auditor any and all information concerning conduct which they know or should reasonably know to involve corrupt or other criminal activity, by an official or employee, which concerns his or her office or employment or by persons dealing with the City, which concerns their dealings with the City. The knowing failure of any official or employee to report as required above shall subject the official or employee to disciplinary action. For purposes of this Subsection A, a report made to the ethics hotline shall be considered a report to the City Auditor.

B. Officials and employees are encouraged to report suspected ethical violations to the Ethics Committee.

C. No official or employee shall use or threaten to use any official authority or influence to discourage, restrain or interfere with any other person for the purpose of preventing such person from acting in good faith to report or otherwise bring to the attention of the Ethics Committee information relating to an ethics violation or investigation.

D. No official or employee shall use or threaten to use any official authority or influence to effect any action to retaliate against any person who reports or initiates a complaint, or otherwise assists in the investigation of an ethics complaint.

E. No official or employee shall file a complaint with the Chief Ethics Officer absent a good-faith basis for the allegations.

F. An official or employee shall not falsely accuse another official or employee of failing to comply with this Article.

G. No official or employee may knowingly induce, encourage, or aid anyone to violate any provision of this Article.

H. Any violation of this subsection shall be subject to investigation and action by the Chief Ethics Officer and the Ethics Committee.
(Ord. No. 11985, § 2, 6-26-07; Ord. No. 12804, § 1, 2-18-14)

Sec. 2-763. Violations.

An elected official or appointed member of a separate municipal board, commission, committee, authority, corporation, or other instrumentality who violates any provision of this Article is subject to punishment as provided by the Charter, City Code, or other applicable law and, in addition, is subject to censure by the governing body, which censure shall be made a part of the minutes of the governing body. Additionally, an appointed official or an employee who violates any provision of this Article is subject to disciplinary action.
(Ord. No. 12804, § 1, 2-18-14)

Sec. 2-764. Conduct during meetings.

Conduct of individual members during meetings of any municipal board, commission, committee, authority, corporation, or other instrumentality is expected to reflect a total sense of respect for the office held by those assembled to conduct business. Members shall be courteous to one another, to any member of the administrative staff, as well as to other persons who may address the municipal board, commission, committee, authority, corporation, or other instrumentality. A member may not speak until recognized by the Chair and shall not be recognized the second time on the same subject matter until all members who

wish to speak have had an opportunity to do so. Any disorderly conduct shall be noted by the Chair, and the offending member shall forfeit the privilege of the floor for the remainder of the meeting, except for the purpose of casting his or her vote.
(Ord. No. 12804, § 1, 2-18-14)

Sec. 2-765. Meeting attendance.

Municipal board, commission, committee, authority, corporation, or other instrumentality members shall be prompt and regular in attendance for scheduled meetings. Failure of a member to be present at three (3) consecutive scheduled meetings for a calendar year shall constitute grounds for terminating his/her membership. The removal of City Council members for failure to attend meetings is provided for in Title 8, Section 8.5 of the City of Chattanooga Charter and therefore not governed by this section.
(Ord. No. 12804, § 1, 2-18-14)

Sec. 2-766. Ethics Training.

The ethics training program to be provided by the Ethics Committee in accordance with the City's ethics ordinance shall be mandatory for all City personnel described in Section 2-750. The training should not simply be a review of this ethics ordinance, policy or law. Instead, training should emphasize ethical decision making in complex and/or high pressure situations.
(Ord. No. 12804, § 1, 2-18-14)

Sec. 2-767. Ethics Pledge.

The following persons shall comply with the requirements of this section:

(1) Any employee who serves in the Office of the Mayor;

(2) Any Administrator or Director reporting to the Mayor;

(3) Any employee who serves City Council; and

(4) Any person who is appointed by the Mayor or the City Council to a statutory board, commission, authority, or agency on or after February 4, 2014.

As a condition of employment or appointment, any person meeting the requirements of this section shall sign, and upon signing shall be contractually committed to, the following pledge:

> "As a condition, and in consideration, of my employment or appointment by the City of Chattanooga in a position of the public trust, I hereby acknowledge and agree to abide by the City of Chattanooga's Code of Ethics as set forth in City Code Section 2-750 et seq. which I understand is binding on me. I understand that the terms of this pledge are in addition to any statutory or other legal restrictions applicable to me by my government service."

Any person required to sign a pledge under this section shall file such pledge with the Chief Ethics Officer within fourteen (14) days of commencing employment or appointment.
(Ord. No. 12804, § 1, 2-18-14)

Secs. 2-768—2-774. Reserved.

ARTICLE XIV. AUDIT COMMITTEE

Sec. 2-775. Audit Committee.

(a) There is hereby established an Audit Committee of the City of Chattanooga (the "Audit Committee"). The Audit Committee shall consist of five (5) voting members. There shall be at least three (3) members with expertise in auditing, such as, but not limited to, a Certified Public Accountant, Certified Internal Auditor, or Certified Information Systems Auditor. The City Council shall appoint two (2) members who shall be experienced in business, law, information systems, or government. All members shall be residents of the City. Initially, members shall serve terms as follows: one (1) member for one (1) year, two (2) members for two (2) years, and two (2) members for three (3) years. Thereafter, appointments shall be for a term of three (3) years. Future appointees will be nominated by the Council Chair and require approval of a majority of the Council. All members shall continue to serve until their successors are appointed. Three (3) members shall constitute a quorum. No member of the Audit Committee shall have a direct or indirect interest in any contract with the City during their term of service, nor for one (1) year after their term of service. Nor shall any member, member of their immediate family, or regular member of their household, be employed by any City Department or any agency that obtains more than ten percent (10%) of its annual funding from the City.
(Ord. No. 12250, 6-9-09)

Sec. 2-776. Duties of Audit Committee.

The Audit Committee shall meet as needed to perform its duties but shall not meet less than once quarterly and shall:

(a) Review any audit plan prepared by the Internal Audit Division and recommend to the City Council additional audits that it deems advisable;

(b) Monitor follow-up on reported findings of the Internal Audit Division to assure corrective action is taken;

(c) Report to the legislative body on problems or problem areas at such times as deemed appropriate;

(d) Provide oversight of the external audit;

(e) Evaluate findings and recommendations of any peer review as required by recognized government auditing standards; and

(f) Provide advice to the City Council Auditor, in performing audits or procuring contracted audit services.

(Ord. No. 12250, 6-9-09)

Sec. 2-277. Subversion of Audit Process.

Any efforts or attempts to subvert the audit process shall be reported to the Audit Committee. Any effort or attempt to subvert the audit process by an employee of the City shall be grounds for dismissal. Each Audit Committee member shall be required to certify annually to the City Council that they are unaware of any efforts or attempts to subvert the audit process or alternatively to report any known or suspected attempts to subvert the audit process.
(Ord. No. 12250, 6-9-09)

Sec. 2-778. City Council Auditor.

The City Council shall appoint a person to be the City Council Auditor, provided that this person may also be assigned other duties. The City Council Auditor shall have the authority to conduct audits and

request funding for additional contract audit services based on need. Funding shall not to be withheld absent substantial cause. The City Council Auditor shall meet with the Audit Committee to assist with the development of an audit plan. In addition to planned audits, the City Council Auditor shall conduct special audits or investigations upon receiving reports of fiscal mismanagement or misappropriation.
(Ord. No. 12250, 6-9-09)

Secs. 2-779, 2-780. Reserved.

ARTICLE XV. WHISTLE BLOWER PROTECTION

Sec. 2-781. Purpose.

The purpose of this Article is to establish protection by confidentiality for City employees who report illegal, improper, wasteful or fraudulent activity in good faith.
(Ord. No. 12376, 4-13-10)

Sec. 2-782. Audit Committee.

The Audit Committee appointed by the City Council shall be responsible for oversight of the provisions of this Article. It shall recommend to the mayor, administrators, and department heads internal controls or procedures that will tend to reduce fraud, waste, abuse, and illegal or unethical behavior. It shall recommend to the City Council policies and procedures needed to implement this article. It shall when warranted recommend to the City Council changes to the City Code or ordinances of the City.
(Ord. No. 12376, 4-13-10)

Sec. 2-783. Confidential Reports.

(a) All City officials, appointees, and employees are required to report any instances of suspected waste, abuse, fraud or other illegal acts upon becoming aware of such suspect activity or issues within City government.

(b) The City shall maintain a telephone hotline number providing any employee, vendor, or member of the public the ability to anonymously and confidentially report any suspected fraud, waste, abuse, illegal or unethical behavior. The Audit Committee shall have oversight of the hotline's administration. In addition to a telephone hotline, web and e-mail based reporting may be utilized.

(c) The audit working papers of the internal audit staff regarding illegal, improper, wasteful or fraudulent activity or any investigation of illegal, improper, wasteful or fraudulent activity are confidential pursuant to T.C.A. 10-7-504(22) and, therefore, not open to public inspection.

(d) The Audit Committee shall keep all information confidential while an active investigation is being conducted. When an investigation results in a criminal indictment or arrest, it shall be considered active until disposed of by the judicial system. This shall not be construed to limit those conducting an actual investigation from revealing or discussing information as necessary to facilitate said investigation.

(e) Nothing in this ordinance shall be construed to limit, discourage, or prevent employees from reporting inappropriate or unethical activities directly to their supervisor, Administrator, the Mayor, the Human Resources Department or the Internal Audit Division.
(Ord. No. 12376, 4-13-10)

Sec. 2-784. Employee protection.

(a) Employees of the City of Chattanooga shall be protected from being disciplined, discharged, or subjected to threats thereof, or otherwise discriminated against in retaliation for bringing forth, in good faith, charges of fraud, unlawful conduct, unethical conduct, or conduct in violation of any City policy, directive, ordinance, or Charter provision by any official, employee, appointee, contractor, or vendor of the City.

(b) Good faith is established if an employee had a reasonable belief that an official, employee, appointee, contractor, or vendor of the City engaged in fraud, unlawful conduct, unethical conduct, or conduct in violation of a City policy, directive, ordinance, or Charter provision.

(c) An employee will not have protection under this Article if they were the subject of an ongoing or existing disciplinary action or investigation prior to filing a report of fraud, unlawful conduct, unethical conduct or conduct in violation of any City policy, directive, ordinance, or Charter provision.

(d) An employee who knowingly or with reckless indifference to the truth, makes a false report shall be subject to disciplinary and legal action.

(e) Employees who believe they have suffered retaliation must file a detailed written report within thirty (30) days from the date of the alleged retaliatory action or when the employee first had knowledge of alleged retaliatory action. The report must be filed with the Director of Internal Audit, the Administrator of Personnel, and the Chair of the City Council. The written report must include all the relevant facts concerning the alleged retaliatory action including:

(1) The name and work address of the complainant;

(2) The name and title of each City employee against whom the complaint of retaliation is made;

(3) The specific type and date of retaliation;

(4) A statement as to the facts that form the basis of the complaint of retaliation; and

(5) A statement of the complainant's explanation of how his or her reported allegation of fraud or misconduct and/or participation in an investigation, proceeding, or hearing is related to the retaliation.

(f) All complaints alleging a violation of this Section shall be promptly investigated. In the event that the City Council determines that an investigation conducted by City staff would present a conflict of interest, an independent investigator may be appointed by the Audit Committee.

(g) Those involved in initiating, recommending, imposing and/or implementing disciplinary action against the employee shall not be in violation of this Article if they can demonstrate they had no knowledge that a report of fraud, unlawful conduct, unethical conduct, or conduct in violation of any City policy, directive, ordinance, or Charter provision had been filed by the employee prior to initiating disciplinary action against the employee.

(h) Nothing herein shall supplant any other remedies available to City officers and employees pursuant to the City Code.
(Ord. No. 12376, 4-13-10)

Secs. 2-785—2-789. Reserved.

ARTICLE XVI. CHATTANOOGA DEPARTMENT OF COMMUNITY DEVELOPMENT

Sec. 2-790. Created; purpose.

There be and is hereby created and established the Department of Community Development. This department will manage the City of Chattanooga Code Enforcement Division, the City of Chattanooga Community Centers, Neighborhood Services, and the Office of Family Empowerment.
(Ord. No. 13874, § 1, 8-9-22)

Sec. 2-791. Office of Family Empowerment Advisory Board—Created; function; composition.

(a) As part of the Department of Community Development, there is hereby created the Office of Family Empowerment Advisory Board (the "Board"). Pursuant to the Community Services Block Grant Act, 42 USC § 9910(b), the Office of Family Empowerment shall administer the community services block grant ("CSGB") program through the Board which will fully participate in the development, planning, implementation, and evaluation of the CSGB program to serve low-income communities.

(b) The Board shall be composed of nine (9) members. Three (3) members shall be recommended and voted for appointment, by the Board, from among the City's economically, disadvantaged communities and approved by a majority of the City Council. Two (2) members shall be appointed by the Mayor of the City of Chattanooga and approved by a majority of the City Council. One (1) member shall be appointed by the Mayor of Hamilton County. Three (3) members shall be recommended for appointment, by Office of Family Empowerment leadership, from among major community partners and approved by a majority of the City Council.

(c) At least one third of the members shall be democratically selected representatives of the low-income community; one-third of the members shall be local elected officials (or their representatives); and the remaining members shall be from major groups and interests in the community. At any meeting of this Board five (5) members shall constitute a quorum to conduct business.
(Ord. No. 13874, § 1, 8-9-22)

Sec. 2-792. Office of Family Empowerment Advisory Board—Terms; vacancies.

The terms of the members of the Head Start Governing Board shall be for two (2) years. Initially, the members of the Board shall be appointed so that they hold office for staggered terms. The three (3) members recommended and appointed by the Board and the one (1) County Mayor appointment shall be initially appointed for one (1) year terms. The three (3) members recommended by OFE leadership, and the two (2) City Mayor appointments shall be initially appointed for two (2) year terms. Upon the expiration of the term of any appointed member, a successor shall serve a term of two (2) years. The failure of any member to attend two (2) consecutive meetings or three (3) meetings within any calendar year shall be the basis for removal by the City Mayor and reappointment of another member by the City Mayor, subject to the confirmation of a majority of the City Council. Should any vacancy occur on the Board by death, resignation, or removal of a member, the member's unexpired term shall be filled by appointment of an individual in the same manner as the vacating member was appointed, if possible. No member, other than an elected official or his designee, may serve more than two (2) consecutive terms on the Board.
(Ord. No. 13874, § 1, 8-9-22)

Sec. 2-793. Office of Family Empowerment Advisory Board—Limited scope of Board function.

The advisory responsibilities of the Board shall be limited to the City of Chattanooga Office of Family Empowerment programs only. The Board shall not have any governance, administrative, nor operational authority over the Department of Community Development, including the Office of Family Empowerment,

its administrator, directors, managers, or staff. All administrative and operational authority over the Department of Community Development shall be vested in the City Mayor and in the administrator of the department, as set forth in Sec. 2-795 below, and her or his executive leadership team.
(Ord. No. 13874, § 1, 8-9-22)

Sec. 2-794. Bylaws; officers; executive committee.

The Office of Family Empowerment Advisory Board shall adopt and may amend bylaws for the regulation of its meetings and proceedings. It shall also elect as officers, a Chairperson, Vice Chairperson, and Secretary, who will serve as the executive committee for the Board.
(Ord. No. 13874, § 1, 8-9-22)

Sec. 2-795. Administrator.

There shall be an administrator of the Department of Community Development who shall be appointed by the Mayor of the City of Chattanooga subject to confirmation by a majority of the City Council. If the administrator position becomes vacant, the vacancy shall be filled by the Mayor of the City of Chattanooga and be subject to confirmation by a majority of the City Council.
(Ord. No. 13874, § 1, 8-9-22)

Sec. 2-796. Administrative control of department; powers of mayor, administrator.

The City Mayor and the administrator of the Department of Community Development shall have respective levels of administrative authority over the Department of Community Development. The City Mayor shall be empowered to employ, discharge, or suspend the administrator of the department subject to confirmation by a majority of the City Council. The administrator shall be empowered to employ, discharge, or suspend all other employees of the department subject to confirmation of the mayor and city council.
(Ord. No. 13874, § 1, 8-9-22)

Sec. 2-797. Financial affairs; receipts and disbursements.

All fiscal and financial affairs of the Department of Community Development shall be conducted by the city finance officer. All receipts and disbursements shall be handled in accordance with the applicable provisions of the charter and ordinances of the city.
(Ord. No. 13874, § 1, 8-9-22)

Chapter 3

ADVERTISING*

Chapter 3A: Off-Premise Advertising

Article I. Administration and Enforcement

Sec. 3-1. Exemptions from and applicability of Chapter.
Sec. 3-2. Definitions.
Sec. 3-3. License required for erecting off-premise signs.
Sec. 3-4. Marking of vehicles.
Sec. 3-5. Disposal of glue, paste, waste material.
Sec. 3-6. Permit required to erect, maintain sign.
Sec. 3-7. Application for sign permit; notification to building official; expiration; renewal of permits; and construction methods and structural requirements.

***Editor's note—**Ord. No. 14216, § 1, adopted April 8, 2025, amended the Code by repealing former ch. 3, §§ 3-1—3-22, 3-31—3-33, 3-41, 3-42, 3-51—3-55, 3-61, 3-71, 3-81—3-86, 3-91—3-109, 3-111—3-115, 3-121—3-126, 3-131, 3-132, and adding a new ch. 3. Former ch. 3 pertained to similar subject matter, and derived from Code of 1986, §§ 3-1—3-3, adopted March 5—3-8, adopted March 10—3-14, adopted March 21, adopted March 31—3-33, adopted March 41, adopted March 42, adopted March 51—3-55, adopted March 71—3-76; Ord. No. 9119, adopted Feb. 14, 1989; Ord. No. 9273, adopted Dec. 5, 1989; Ord. No. 9279, adopted Dec. 12, 1989; Ord. No. 9280, adopted Dec. 12, 1989; Ord. No. 9301, adopted Jan. 2, 1990; Ord. No. 9332, adopted Feb. 27, 1990; Ord. No. 9338, adopted March 13, 1990; Ord. No. 9382, adopted May 29, 1990; Ord. No. 9385, adopted May 29, 1990; Ord. No. 9482, adopted Nov. 13, 1990; Ord. No. 9501, adopted Dec. 18, 1990; Ord. No. 9507, adopted Jan. 15, 1991; Ord. No. 9593, adopted Aug. 6, 1991; Ord. No. 9611, adopted Sep. 10, 1991; Ord. No. 9619, adopted Oct. 8, 1991; Ord. No. 9620, adopted Oct. 8, 1991; Ord. No. 9654, adopted Jan. 6, 1992; Ord. No. 9702, adopted April 21, 1992; Ord. No. 9703, adopted April 21, 1992; Ord. No. 9765, adopted Aug. 11, 1992; Ord. No. 9822, adopted Jan. 5, 1993; Ord. No. 9823, adopted Jan. 5, 1993; Ord. No. 9824, adopted Jan. 5, 1993; Ord. No. 9889, adopted June 1, 1993; Ord. No. 9965, adopted Oct. 19, 1993; Ord. No. 10037, adopted May 3, 1994; Ord. No. 10278, adopted Aug. 15, 1995; Ord. No. 10283, adopted Sep. 5, 1995; Ord. No. 10337, adopted Nov. 21, 1995; Ord. No. 10523, adopted Jan. 7, 1997; Ord. No. 10620, adopted Sep. 30, 1997; Ord. No. 10623, adopted Oct. 7, 1997; Ord. No. 10624, adopted Oct. 7, 1997; Ord. No. 10818, adopted Jan. 12, 1999; Ord. No. 10949, adopted Jan. 11, 2000; Ord. No. 10950, adopted Jan. 11, 2000; Ord. No. 11006, adopted April 18, 2000; Ord. No. 11175, adopted Sep. 11, 2001; Ord. No. 11549, adopted May 4, 2004; Ord. No. 11700, adopted July 7, 2005; Ord. No. 11931, adopted Jan. 30, 2007; Ord. No. 12070, adopted Feb. 5, 2008; Ord. No. 12124, adopted May 6, 2008; Ord. No. 12188, adopted Dec. 2, 2008; Ord. No. 12192, adopted Dec. 9, 2008; Ord. No. 12286, adopted Sep. 22, 2009; Ord. No. 12290, adopted Sep. 29, 2009; Ord. No. 12364, adopted March 9, 2010; Ord. No. 12420, adopted Aug. 17, 2010; Ord. No. 12462, adopted Jan. 18, 2011; Ord. No. 12652, adopted Oct. 2, 2012; Ord. No. 12689, adopted Feb. 12, 2013; Ord. No. 12966, adopted June 30, 2015; Ord. No. 12974, adopted Aug. 18, 2015; Ord. No. 13444, adopted March 12, 2019; and Ord. No. 13541, adopted March 10, 2020.

Charter references—Authority to levy privilege taxes, § 2.1(2); authority to license businesses, § 2.1(15).

Cross references—Purchases, contracts and property disposition, § 2-541, et seq.; alcoholic beverages, Ch. 5; amusements, Ch. 6; businesses, trades and occupations, Ch. 11; metropolitan transit authority, Ch. 23; erection of signs and other structures in parks and on playgrounds restricted, § 26-12; streets to be designated by signs at corners, § 32-1; vehicles for hire, Ch. 35.

Sec. 3-8. No permits to be issued in violation of ordinances; approval of traffic engineer; schedule of permit fees; inventory of certain existing signs.
Sec. 3-9. Power to revoke permit; remedies for violation.
Sec. 3-10. Owner's name required on off-premise signs.
Sec. 3-11. Non-conforming signs.
Sec. 3-12. Violation declared misdemeanors; penalty.
Sec. 3-13. Violations declared nuisances; preexisting violations.
Sec. 3-14. Notice requiring abatement of violation; abatement by city; lien for costs.
Sec. 3-15. Appeals.
Sec. 3-16. Obscene displays on signs.
Sec. 3-17. Signs over streets, sidewalks; where other advertising prohibited.
Sec. 3-18. Change of sign classification—Removal.
Sec. 3-19. Signs distracting to motor vehicle operators prohibited.
Sec. 3-20. Lighting and illumination.

Article II. General Off-Premise Sign Regulations

Sec. 3-21. General off-premise sign regulations.
Sec. 3-22. Maintenance of off-premise signs and sign structures.
Secs. 3-23—3-30. Reserved.

Article III. Controlled Access Facility Sign Regulation

Sec. 3-31. Controlled access facility sign regulation.
Sec. 3-32. Control districts established.
Sec. 3-33. Standards and restrictions.
Secs. 3-34—3-40. Reserved.

Article IV. Major Advertising Zone Sign Regulation

Sec. 3-41. General provisions.
Sec. 3-42. Standards and regulations.
Secs. 3-43—3-50. Reserved.

Article V. Scenic Areas and Scenic Corridors

Sec. 3-51. Scenic areas and scenic corridors.
Sec. 3-52. Scenic areas.
Sec. 3-53. Off-premise signs prohibited in scenic areas.
Sec. 3-54. Scenic corridors established.
Sec. 3-55. Off-premise signs along scenic corridors prohibited.
Secs. 3-56—3-60. Reserved.

Article VI. Reserved

Secs. 3-61—3-70. Reserved.

Article VII. Reserved

Secs. 3-71—3-80. Reserved.

Article VIII. Reserved

Secs. 3-81—3-90. Reserved

Article IX. Reserved

Secs. 3-91—3-100. Reserved.

Article X. Variances and Special Permits

Sec. 3-101. Board of Zoning Appeals to hear requests; meetings; membership.
Sec. 3-102. Jurisdiction of the board.
Sec. 3-103. Applications to the board.
Sec. 3-104. Notices.
Sec. 3-105. Conditions for granting variances.
Sec. 3-106. Conditions for granting special permit for message center.
Sec. 3-107. Rehearings; termination of variances and special permits.
Sec. 3-108. Records; administration.
Sec. 3-109. Appeals from Board's decision.
Sec. 3-110. Reserved.

Article XI. Veterans Bridge Sign-Control District

Sec. 3-111. Reserved.
Sec. 3-112. Established; boundaries.
Sec. 3-113. Special Regulations.
Sec. 3-114. Existing signs.
Secs. 3-115—3-120. Reserved.

Article XII. Reserved

Secs. 3-121—3-130. Reserved.

Article XIII. Reserved

Secs. 3-131, 3-132. Reserved.

Chapter 3B: On-Premise Advertising

Article XIV. Purpose and Applicability

Sec. 3-133. Intent and Purpose.
Sec. 3-134. Applicability.
Sec. 3-135. Current Versions and Citations.

Article XV. Definitions, Rules of Measurement, and Sign Types

Division 1. Rules of Interpretation and General Abbreviations

Sec. 3-136. Rules of Interpretation.
Sec. 3.137. General Abbreviations.

Division 2. Definitions

Division 3. Sign Types

Sec. 3-138. Attached Signs.
Sec. 3-138.2. Detached Signs.
Sec. 3-138.3. Temporary and Portable Signs.

Division 4. Lighting Types

Division 5. Rules of Measurement

Sec. 3-139. Sign Area.
Sec. 3-140. Sign Width.
Sec. 3-141. Sign Height.

Article XVI. Prohibited Signs

Sec. 3-142. Prohibited Signs.

Article XVII. Exempt and Temporary Signs

Division 1. Exempt Signs

Division 2. Temporary On-Premises Signs

Sec. 3-143. Authorized use of temporary signs.
Sec. 3-144. Limitations.
Sec. 3-145. Permitting.
Sec. 3-146. Temporary Sign Types.
Sec. 3-147. Temporary Sign Standards.

Article XVIII. Sign Lighting

Division 1. Illumination Standards

Sec. 3-148. General Requirements.
Sec. 3-149. Indirect Illumination.
Sec. 3-150. Direct Illumination.
Sec. 3-151. Electrical Wiring.

Division 2. Digital Signs

Article XIX. Regulations Character Areas

Division 1. Overview Map

Division 2. Brainerd Overlay

Sec. 3-152. Purpose.
Sec. 3-153. Brainerd Overlay Zone Map.
Sec. 3-154. Legal Description.
Sec. 3-155. Standards/Regulations.

Division 3. General Character Area

Sec. 3-156. Legal Description.

Sec. 3-157. Standards/Regulations.

Division 4. Highway Commercial Corridors (Billboards)

Sec. 3-158. Highway Commercial Corridor Map.
Sec. 3-159. Legal Description.
Sec. 3-160. Standards/Regulations.

Division 5. Lovell Field Gateway Overlay

Sec. 3-161. Purpose.
Sec. 3-162. Lovell Field Gateway Map.
Sec. 3-163. Legal Description.
Sec. 3-164. Standards/Regulations.

Division 6. Residential

Sec. 3-165. Legal Description.
Sec. 3-166. Standards/Regulations.

Division 7. Scenic Areas and Corridors

Sec. 3-167. Purpose.
Sec. 3-168. Map.
Sec. 3-169. Legal Description.
Sec. 3-170. Standards/Regulations.

Division 8. Veterans Bridge

Sec. 3-171. Purpose.
Sec. 3-172. Map.
Sec. 3-173. Legal Description.
Sec. 3-174. Standards/Regulations.

Article XX. On-Premises Permitted Sign Regulations

Division 1. Overview

Sec. 3-175. General Regulation of On-Premises Signs.
Sec. 3-176. Permitted Signs by Character Area.
Sec. 3-177. Number of Signs and Sign Types.
Sec. 3-178. Use of Combustible Materials.

Division 2. Attached Signs

Sec. 3-179. Attached Sign Regulations.
Sec. 3-180. Awning.
Sec. 3-180.1. Additional Regulations.
Sec. 3-181. Canopy.
Sec. 3-181.1. Additional Regulations.
Sec. 3-182. Marquee Signs.
Sec. 3-183. Projecting Signs.
Sec. 3-183.1. Additional Regulations.
Sec. 3-184. Wall Signs.
Sec. 3-184.1. Additional Regulations.

Sec. 3-185. Window and Door Signs.
Sec. 3-185.1. Additional Regulations.

Division 3. Detached Signs

Sec. 3-186. Freestanding.
Sec. 3-186.1. Additional Regulations.
Sec. 3-187. Monument.
Sec. 3-187.1. Additional Regulations.

Division 4. Special Purpose Signs

Sec. 3-188. Business Directional Signage.
Sec. 3-189. Drive-Thru.
Sec. 3-189.1. Additional Regulations.
Sec. 3-190. Directional Signs on Hospital Premises.
Sec. 3-191. Traffic directional signs.

Article XXI. Administrative Provisions, Variances, and Appeals

Division 1. Administrative Provisions

Sec. 3-192. Permit Administration.
Sec. 3-193. Power to Revoke Permit, Remedies for Violation.
Sec. 3-194. Master Sign Plan.
Sec. 3-195. Administrative Modifications.
Sec. 3-196. Variances.
Sec. 3-197. Appeals.

Division 2. Notices

Sec. 3-198. Administrative Modifications.
Sec. 3-199. Variances.

Article XXII. Enforcement

Division 1. Enforcement and Penalties

Sec. 3-200. Administration and Enforcement.
Sec. 3-201. Sign Maintenance.
Sec. 3-202. Violation and Penalties.

Article XXIII. Non-Conforming Signs

Sec. 3-203. Purpose.
Sec. 3-204. General Provisions.

CHAPTER 3A: OFF-PREMISE ADVERTISING

ARTICLE I. ADMINISTRATION AND ENFORCEMENT

Sec. 3-1. Exemptions from and applicability of Chapter.

Nothing in this Chapter shall apply to any notice required by this Code or other ordinances of the City or legal notices of public officers and attorneys, posted in the manner and places provided by law, or to the right of any newspaper to distribute its paper throughout the City.

Nothing in this Chapter 3 shall affect the provisions of Ordinance No. 6958, the Zoning Ordinance, as amended, and the provisions of said ordinance shall have priority over the provisions of this Chapter 3. Nothing in this Chapter 3 shall affect the provisions of Chapter 18 of this Code.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-2. Definitions.

For the purposes of this Chapter, the following definitions shall apply to off-premise signs and billboards only. All on-premise signs are regulated under Chapter 3B: On-Premise Sign Code.

Compensation. The exchange of anything of value, including money, securities, real property interests, personal property interests, goods or services, promise of future payment, or forbearance of debt.

Controlled Access Facility. Controlled access facility shall mean any highway or street especially designed for through traffic and over, from, or to which owners, or occupants of abutting land or other persons generally have no right or easement of access from abutting properties. Such highways or streets may be parkways, from which trucks, buses, and other commercial vehicles shall be excluded; or they may be freeways open to use by all customary forms of street and highway traffic, and may, if so designated, include interstate connector roadways and airport access roadways.

Height. Height shall mean the total measurement of the vertical side of the rectangle which is used to calculate "sign area" as specified in this § 3-2.

Intersection. Intersection shall mean the center point where two (2) or more open roads, streets, or highways located within the corporate limits of the city join.

Major Advertising Zones. Major advertising zones shall mean the major commercial areas designated herein as follows: Rossville Boulevard from its intersection with Interstate 24 generally southward to the city limits; Brainerd Road/Lee Highway from its intersection Tunnel Boulevard generally eastward to its intersection with Shallowford Road; Signal Mountain Road the city limits with Red Bank, Tennessee to Mountain Creek Road; excluding that portion which falls within the Scenic Corridor along Highway 153; Amnicola Highway from its intersection with Riverfront Parkway to the southernmost or westernmost edge of the property presently occupied by Chattanooga State Community College, excluding that portion which falls within the Scenic Corridor along Dupont Parkway; Hixson Pike from its intersection with Ashland Terrace to its intersection with Adams Road; and Highway 153 from its intersection with Gadd Road to its intersection with Dupont Parkway. All measurements herein to an intersection of two (2) or more roads shall be to the center of such intersection.

Off-Premise Sign.

(a) A sign that is operated or owned by a person or entity that is earning compensation directly or indirectly from a third party or parties for the placement of a message on the sign; or

(b) A sign located on a facility's parcel owned or operated for the primary purpose of displaying a sign for purposes set forth in subdivision (a).

Person. Person shall mean individual, company, corporation, association, partnership, joint venture, business, proprietorship or any other legal entity.

Premises. Premises shall mean all contiguous land in the same ownership which is not divided by any public highway, street or alley or right-of-way therefor. As part of a dominant parcel of property, premises shall also include a permanent easement to the dominant parcel which (1) connects the dominant parcel to a public right-of-way, (2) is the sole means of ingress and egress to and from a public right-of-way for vehicular traffic to the dominant parcel, and (3) is regularly used for ingress and egress to the dominant parcel by vehicular traffic.

Scenic Area. Scenic area shall mean those areas within the city limits, as more specifically identified in Article V, which are either of uncommon visual importance or scenic attractiveness and within which the construction of off-premise signs is prohibited in accordance with the provisions of Article V.

Scenic Corridor. Scenic corridor shall mean those land areas within the city limits which lie within six hundred sixty (660) feet of either side of the outermost edge of any of the roads, rivers, or rights-of-way more specifically designated in Article V, which are either of uncommon visual importance or scenic attractiveness.

Sign. Sign shall mean any structure or wall or other object which is designed, intended, or used to advertise or inform any part of the advertising or informative contents; such term shall include without limitation any structure, display, device or inscription which is located upon, attached to, or painted or represented on any land, on any building or structure, on the outside of a window, or on an awning, canopy, marquee, or similar appendage. Provided, however, that the following shall be excluded from this definition:

(a) Signs or flags erected, provided, owned, authorized or required by a duly constituted governmental body, including, but not limited to, traffic or similar regulatory devices, legal notices, or warnings at railroad crossings.

(b) Signs located inside a building.

(c) Memorial plaques or tablets.

(d) Gravestones.

(e) Insides faces of scoreboard fences or walls on athletic fields.

(f) Historical site plaques.

(g) The display of street numbers.

(h) Any message or messages on the clothing of any person or on motor vehicles unless otherwise prohibited in accordance with § 3-71 hereof.

(i) Seasonal displays and seasonal decorations not advertising a product, service or entertainment.

(j) Signs approved by the Board of Zoning Appeals and donated to and erected by or, at the option of the city, under the supervision of the city which designate (i) a public area or public right-of-way adopted by a private entity for a program of landscaping, maintenance and/or litter control for such area or right-of-way, and (ii) the private entity responsible for such program; no such sign shall be erected without the approval of the City Engineer and City Traffic Engineer or their designees, and the city shall have the right to remove such signs at any time.

(k) Any living display on the ground of flowers or other plants which conveys a message.

Sign Area.

(a) Sign area shall mean for all signs the area within the rectangle which is defined by the larger of (i) the lines which include the outer extremities of all letters, figures, characters, messages, graphics or delineations on any sign structure, or (ii) the lines which include the outer extremities of the framework or background of the sign structure. The support for the sign background, whether it be columns, or pylon, or a building or part thereof, shall not be included in the sign area unless it forms a part of the message of the sign to which it is attached. On any sign structure which has multiple sign faces, any sign faces which are separated by an angle of less than sixty (60) degrees as measured from the rear of each sign face, shall be counted separately in computing sign area; if the angle of separation of the backs of such sign faces exceeds sixty (60) degrees, then all such faces shall be included together in the computations of any sign area. The sign area of a sign made of individually cut-out letters is the area of the rectangle necessary to enclose all such letters.

Spacing. Spacing shall mean the interval between signs determined by measuring from the upright column or outermost supporting columns and extending by the most direct line perpendicular to the road to a point nearest the road right-of-way, and then proceeding in either direction along the nearest edge of the right-of-way or pavement for the prescribed distance.

Width. Width shall mean the total measurement of the horizontal side of the rectangle which is used to calculate "sign area" as specified in § 3-2.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-3. License required for erecting off-premise signs.

No person shall carry on the business of erecting or posting off-premise signs without having secured a business license from the City to carry on such business.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-4. Marking of vehicles.

Every person licensed to erect off-premise signs in the City shall cause his name or his company's name and the number of his license to be plainly printed in a conspicuous place on the outside of each vehicle used in such business, and such information shall be kept in a legible condition during the continuance of such license. Upon the expiration of such license, unless renewed, such person shall at once cause such name and number to be erased from such vehicle, and shall not allow such vehicle to be used with such name or number thereon.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-5. Disposal of glue, paste, waste material.

No person shall scatter, daub or leave any glue, paste or other like substance for affixing signs upon any street or sidewalk or scatter or throw any old signs or waste material removed from signs on the surface of any public property, street or sidewalk or upon any private property.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-6. Permit required to erect, maintain sign.

(a) Except as specified in subsection (b) of this Section, any person must obtain a sign permit from the Building Official prior to the erection, installation or material alteration of any sign. As used in the preceding sentence, the term 'material alteration' shall mean any change in (i) the height of a sign, (ii) the sign area of a sign, (iii) the location of a sign, (iv) the supporting structure of a sign, (v) the number of

words in excess of six (6) includes in height for an Attached Sign; such term shall not include routine maintenance and repair or electrical work only for which an electrical permit must be obtained. Such sign permit shall be obtained in addition to any building permit otherwise required by this Code.

(b) Reserved.

(c) No person shall paste, paint, print, rope, bill, nail or pin any sign or any advertisement or notice of any kind whatsoever or cause the same to be done, on any curbstone, or in any portion of part of any sidewalk or street, tree, lamppost, telephone or telegraph pole, awning, porch or balcony or upon any other structure in the limits of any street or public right-of-way in the City including but not limited to any divided roadway median, traffic island and/or traffic circle/roundabout, except such as may be required by this Code or other City ordinance.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-7. Application for sign permit; notification to building official; expiration; renewal of permits; and construction methods and structural requirements.

(a) Application for the sign permit required by the preceding Section shall be made to the Building Official or designee concurrently with an application for a Building Permit if required and shall be accompanied by such drawings, plans, specifications and engineering designs in compliance with the provisions of the International Building Code most recently adopted by the City of Chattanooga for the proposed sign as may be necessary to fully advise and acquaint the Building Official or designee and the Traffic Engineer with the proposed construction thereof. The application shall also include the owner and address of the premises where such sign is to be located, together with the size of the proposed sign, and a description of any other signs located on such premises or for which a permit has been issued and remains outstanding. Any application for a sign permit or temporary sign permit shall be approved or denied by the Building Official or designee within thirty (30) business days, excluding holidays recognized by the City of Chattanooga, after the filing of the application for such permit, and in the event the Building Official or designee does not approve or deny an application within said period, such application shall be deemed approved. Notwithstanding the provisions of the foregoing sentence, the Building Official or designee may grant contingent approval subject to on-site inspection in cases where an applicant for a temporary sign permit requires immediate attention on the application. Before processing of the application for sign permit, the applicant shall pay to the City of Chattanooga the following fees:

I.	Plans Review Fee:	$25.00
II.	Technology Fee:	10.00
III.	Administrative Fee:	5.00
	Total	$40.00

(b) An applicant for an off-premise sign shall submit with the application for a sign permit a most recent certified survey showing property lines, easements and distance from the nearest intersection as defined in the chapter. The certified survey must have been completed within no less than five (5) years of the date the application for a sign permit is submitted as required by this chapter. An applicant for a sign permit shall additionally submit elevation drawings and engineering plans and design with the application for an off-premise sign. The drawings and designs required by this Section must be in compliance with provisions of the City's building codes, as amended.

(c) The owner, sign contractor or other person installing any sign for which a new sign permit is required shall notify or cause to be notified the Building Official or designee of the date the erection or material alteration of the sign will begin not less than forty-eight (48) hours prior to the beginning of such work. Such person shall also notify or cause to be notified the Building Official or designee of the completion of such work within forty-eight (48) hours after completion of such work. In the case of any

sign to which electricity is provided for any reason, the sign contractor or other person installing such sign shall be responsible for the notifications required by this paragraph. The failure to give or cause to be given either of the notices set forth in this paragraph shall constitute a violation of this Chapter and shall subject any sign erected without both of the above notices having been given to abatement as a nuisance.

(d) Any sign for which any permit has been issued but for which no substantial expenditures have been made as of the effective date of this Chapter shall only be erected in accordance with the provisions of this Chapter except that no additional initial permit charge will be required for any permit which has already been issued and for which a permit fee has been paid.

(e) Any sign permit issued pursuant to this Chapter for the erection of a sign shall expire one hundred eighty (180) days from the date of its issuance in the event such sign has not been fully erected within said one hundred eighty (180) days, provided, that upon good cause shown to the Building Official such permit may be renewed one (1) time for a period not to exceed ninety (90) days. If a permit is requested for a location on which a valid permit is already outstanding but has not expired, and upon which no sign has been erected, and if such subsequent permit is requested by a person other than the holder of the outstanding permit, the Building Official or designee shall file, without fee, such application for the subsequent permit. In the event the outstanding permit expires without a sign being erected, as set forth above, the next valid permit application on file with the Building Official or designee shall be processed upon payment of the required fee.

(f) For any sign requiring a state permit, such permit shall be included when making application.

(g) A notarized letter of intent or permission from the property owner shall be submitted with the permit application.

(h) Structural requirements and design required. Before a permit shall be granted, the erector of every outdoor advertising sign, with the exception of shingle signs and light cloth temporary signs, shall submit to the building official or designee a design and stress diagram or plan, containing the necessary information to enable the building official to determine that such sign complies with all the regulations of Chapter 16 of the International Building Code. In the design and erection of all outdoor advertising display signs, the effect of wind and working stresses shall be carefully considered. All signs shall be structurally constructed to withstand the wind loads and working stresses specified in Chapter 16 of the International Building Code.

Exceptions:

1. The allowable working stresses for steel and wood shall be in accordance with the provisions of Chapter 22 and Chapter 23 of the International Building Code.
2. The working strength of chains, cables, guys, or steel rods shall not exceed one-fifth (⅕) of the ultimate strength of such chains, cables, guys, or steel.

(i) Electrical service and illumination. All signs requiring illumination or having electrical service devices or wiring shall be constructed in accordance with the requirements of the National Electric Code.

(j) Reserved.

(k) Reserved.

(l) Reserved.

(m) Use of plastic materials.

1. Notwithstanding any other provisions of this code, plastic materials which burn at a rate no faster than two and one-half (2½) inches per minute (one and six-hundredths (1.06) millimeters/second)

when tested in accordance with ASTM D 635 shall be deemed approved plastics and may be used as the display surface material and for the letters, decorations and facings on signs and outdoor display structures.

2. Individual plastic facings of electric signs shall not exceed two hundred (200) square feet (eighteen and six-tenths (18.6) square meters) in area.

3. If the area of a display surface exceeds two hundred (200) square feet (eighteen and six-tenths (18.6) square meters), the area occupied or covered by approved plastics shall be limited to two hundred (200) square feet (eighteen and six-tenths (18.6) square meters) plus fifty percent (50%) of the difference between two hundred (200) square feet (eighteen and six-tenths (18.6) square meters) and the area of display surface. The area of plastic on a display surface shall not in any case exceed one thousand one hundred (1,100) square feet (one hundred two (102) square meters).

4. Letters and decorations mounted upon an approved plastic facing or display surface may be made of approved plastics.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-8. No permits to be issued in violation of ordinances; approval of traffic engineer; schedule of permit fees; inventory of certain existing signs.

The Building Official shall not issue any sign permit for any sign which is not in conformance with the City Code of Chattanooga and applicable state laws, including all electrical codes of the City of Chattanooga and/or State of Tennessee; any permit issued which does not so conform will be null and void and any sign constructed pursuant thereto shall be removed in accordance with the provisions of this Chapter. The Building Official shall collect a permit fee with the application of each sign. The permit fee shall be as follows:

(a) For off-premise signs, Two Hundred Dollars ($200.00) for each such sign.

(b) Reserved.

(c) A logbook, list or other such public record with a chronological numbering system shall be maintained in the city building codes office for the purpose of recording all permit submittals and for providing a receipt verifying the date, time and sequence number of such applications. This record shall be considered public information available for review as a reference in considering the availability of potential permittable sign locations. The list or record shall contain all existing and pending sign locations and all applicants shall be given a receipt bearing the time, date and sequence number of such permit applications at the time of submittal.

Every person maintaining an off-premise sign as of the effective date of this Chapter shall, within one hundred twenty (120) days of said effective date, furnish to the Office of the Building Official an inventory of all such signs; said inventory shall specify the exact location, measurements and size (including sign area as defined in § 3-2) of each sign, provided, that such persons who have previously furnished such inventory shall not be required to furnish a new inventory. In lieu of such inventory, persons maintaining such signs may furnish or mail to the Office of the Building Official a photograph of each sign for which an inventory is required together with the name of the owner of the premises on which the sign is located. The failure to file the inventory for a sign as specified herein shall create a rebuttable presumption that such sign was erected subsequent to the effective date of this Chapter.

(d) Location restrictions. An outdoor advertising display sign shall not be erected, constructed or maintained so as to obstruct any fire escape or any window or door or opening used as a means of

egress or as to prevent free passage from one (1) party of a roof to any other part thereof. A sign shall not be attached in any form, shape or manner to a fire escape, nor be placed in such a manner as to interfere with any opening required for legal ventilation.

(e) Where not otherwise specified in this section, the fees for sign permits shall be as follows:

Off-Premise Permit Fees

1.	Failure to Obtain Permit	Double Fee
2.	Reserved	
3.	Reserved	
4.	Reserved	
5.	Reserved	
6.	Reserved	
7.	Installation—$1,000.00 or less	$15.00
8.	Installation—$1,001.00—$2,000	$20.00
9.	Installation per $1,000.00 over $2,000.00	$5.00
10.	Electrical Fee—25 sq. ft. or less	$40.00
11.	Electrical Fee per sq. ft. over 25 sq. ft.	$0.40
12.	Electrical Fee Non-UL listed/labeled	$25.00
13.	Demolition	$50.00
14.	Billboard/Off-Premise Sign	$200.00
15.	Reserved	
16.	Illuminated Sign	$125.00
17.	Re-Inspection Fee	$50.00

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-9. Power to revoke permit; remedies for violation.

(a) If any sign permit is issued based upon any false or untrue information which is material to the application and the granting of a sign permit, the Building Official shall revoke any such permit and order the removal of such sign within thirty (30) days.

(b) If the Building Official determines that any sign erected pursuant to a permit issued under the provisions of this Chapter is in violation of any provision of this Chapter by error in the construction of the sign, the Building Official shall (i) notify the holder of the permit of the nature of the non-compliance and allow the holder a reasonable amount of time, but not less than fifteen (15) days nor in excess of sixty (60) days, to correct the defects giving rise to the non-compliance; or (ii) if such non-compliance cannot be corrected, to require the removal of the non-complying sign within thirty (30) days of the expiration of the period for correction specified above.

(c) If any sign is erected without a sign permit but is otherwise erected in compliance with the provisions of this Code, the Building Official may upon proper application for a sign permit and payment of double the normally required permit fee issue a sign permit for such sign, provided, however, that any such permit so issued shall in no event operate to relieve the person so erecting a sign without a permit from any penalties provided by this Chapter until such permit has been issued.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-10. Owner's name required on off-premise signs.

No sign permit shall be issued to any applicant to erect an off-premise sign unless the applicant agrees to place and maintain on each such sign the name of the person owning or in possession, charge or control thereof. The Building Official shall verify that the name of the person owning or in control of such sign is placed upon the same forthwith upon the erection of such sign and kept thereon at all times while such sign is maintained.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-11. Non-conforming signs.

(a) Nothing contained in this Chapter shall be construed in any way to ratify or approve the erection and/or maintenance of any sign which was erected in violation of any prior ordinance or ordinances of the City of Chattanooga, Tennessee, and such signs so erected in violation of any prior ordinance or ordinances shall be subject to removal as provided in this Article. Signs which are now in existence and were constructed in compliance with the terms of any prior ordinance or ordinances of the City of Chattanooga, Tennessee, but which are not in conformance with the provisions of this Chapter are hereby designated as legal, non-conforming signs, and shall be removed hereafter in accordance with this Section.

(b) For off-premise signs, any person owning, controlling or having a substantial ownership interest in any legal non-conforming off-premise sign(s) shall remove one (1) such non-conforming off-premise sign and its supporting structure prior to the issuance of an off-premise sign permit to such person; any such person shall remove one (1) legal non-conforming off-premise sign and its supporting structure for each off-premise sign permit issued until such person no longer owns, controls or has a substantial ownership interest in any legal non-conforming off-premise signs. Evidence of the removal of a non-conforming off-premise sign shall be furnished to the satisfaction of the Building Official. As used herein, "substantial" ownership interest shall mean any ownership interest in excess of five percent (5%) of the total ownership interest.

Notwithstanding the provisions of the foregoing paragraph, no credit shall be given for the removal of a legal, non-conforming sign and its supporting structure in the event a new legal non-conforming sign is erected on the site where the former legal non-conforming sign has been removed within ninety (90) days of the removal of the former sign. No credit shall be given for the removal of a legal non-conforming sign if such removal is done by or at the direction and expense of the City of Chattanooga. For the purposes of this paragraph, "site" shall include any portion of property designated by the same tax map parcel number maintained by the Hamilton County Tax Assessor at the time the original sign structure was erected.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-12. Violation declared misdemeanors; penalty.

Any person who shall violate any provision of this Chapter, or any person who shall fail or refuse to comply with any notice to abate or other notice issued by the Building Official within the time allowed by such notice, shall be guilty of a misdemeanor; each day of such violation or failure or refusal to comply shall be deemed a separate offense and punishable accordingly. Each violation of this Chapter shall be punishable by a fine of not less than Twenty-Five Dollars ($25.00) nor more than Fifty Dollars ($50.00).
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-13. Violations declared nuisances; preexisting violations.

The maintenance of any unused sign and/or its supporting structure or any violation of the provisions of this Chapter by any person is declared to be a public nuisance dangerous to the public safety and shall be abated as set forth in this Article. For the purposes of this Section, "unused sign" shall include any sign which (i) has not displayed a message or messages for more than ninety (90) days or (ii) is not kept in good

structural repair such that the sign could pose a risk to public health or safety. Except for temporary signs regulated by Article VIII of this Chapter, every sign to which the provisions of this Chapter shall apply that was legally erected prior to the effective date of this Chapter and was in use on said date, but which violates any of the provisions of this Chapter, shall not be subject to removal, provided, that the owner of any legal non-conforming off-premise sign shall obtain without charge within sixty (60) days of the effective date of this Chapter a permit from the Building Official which permit shall be marked on the face thereof: "non-conforming sign permit"; whenever there is a future non-use of any legal non-conforming off-premise sign and/or its supporting structure for more than ninety (90) days, said non-conforming sign and its supporting structure shall then be removed forthwith within the time allowed in the notice required by § 3-14 or the Building Official may cause said removal to be done as provided in this Article.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-14. Notice requiring abatement of violation; abatement by city; lien for costs.

Upon ascertaining a violation of the provisions of this Chapter, the Building Official shall cause to be served upon both the offender, or his agent, and upon the owner, or his agent, or the occupant(s) of the premises, a written notice to abate which shall (i) describe the conditions constituting a nuisance under this Chapter, and (ii) state that the nuisance may be abated by the City at the expense of the offender, and/or the owner, and/or the occupant of the premises at the expiration of not less than fifteen (15) days nor more than sixty (60) days from the date of such notice if such condition is not corrected by the offender, or the owner, or the occupant, or the person in control of the premises. If, at the expiration of the time given to abate the nuisance in said notice to abate, the condition constituting a nuisance has not been corrected, then such condition may be corrected or the nuisance abated by the City at the expense of the offender and/or the owner and/or the occupant of the premises under the directions of the Building Official. The City shall have a lien on the property upon which such sign is located to secure the amount expended for the abatement of such nuisance; the 'amount expended for the abatement of such nuisance' shall include all unpaid annual maintenance and safety inspection fees and delinquent charges due to such sign.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-15. Appeals.

An appeal to the Board of Zoning Appeals from any adverse decision of the Building Official or Traffic Engineer may be filed in writing with the Building Official or the secretary to the Board within ten (10) days of any such decision; the secretary to the Board shall notify the person filing the appeal of the hearing date. The decision of the Board of Zoning Appeals shall be final.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-16. Obscene displays on signs.

No person carrying on the business of bill posting, sign or bulletin painting, card, sign or banner tacking, shall post or paint, or cause to be posted or painted, so that the same can be seen from the streets or other public places of the City, any advertisements containing pictures or illustrations of any obscene character. For the purpose of this Section, "obscene" shall have the same meaning as provided in *Tennessee Code Annotated* § 39-6-1101, as amended.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-17. Signs over streets, sidewalks; where other advertising prohibited.

(a) No sign of any kind shall be permitted to project over or be suspended over or across any street or sidewalk except in accordance with the provisions of § 3-94 of this Chapter.

(b) No person shall paste, paint, print, rope, bill, nail or pin any sign or any advertisement or notice of any kind whatsoever or cause the same to be done, on any curbstone, or in any portion of part of any sidewalk or street, tree, lamppost, telephone or telegraph pole, awning, porch or balcony or upon any other structure in the limits of any street or public right-of-way in the City, except such as may be required by this Code or other City ordinance.

(c) When any sign of the type enumerated in this Section is found in any place prohibited by this Section, it shall be *prima facie* evidence that such sign was so placed contrary to the provisions of this Section by the person to whom reference is thereby made.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-18. Change of sign classification—Removal.

If for any reason an off-premise sign becomes an on-premise sign, such on-premise sign and its supporting structure shall receive notification from the City allowing thirty (30) days to comply with all of the provisions of this Chapter governing on- premise signs. If for any reason such sign cannot be brought into compliance, it shall be removed within ninety (90) days of the change of classification unless such sign is in compliance with all of the provisions of this Chapter governing on-premise signs. If for any reason an on-premise sign becomes an off-premise sign, such off-premise sign and its supporting structure shall receive notification from the City allowing thirty (30) days to comply with all of the provision of this Chapter governing off-premise signs. If for any reason such sign cannot be brought into compliance, it shall be removed within ninety (90) days unless such sign is in compliance with all of the provisions of this Chapter governing off-premise signs. For the purpose of this section, a legally placed billboard, whether conforming to current regulations or allowed as a legal nonconforming use and situated on any parcel of land containing five (5) or more acres or with at least five (5) businesses shall be allowed to contract to advertise businesses located on the same tract of land without being considered to be an on-premise sign.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-19. Signs distracting to motor vehicle operators prohibited.

(a) Where there are entrance and exit ramps to any controlled access facility, or a confluence of traffic, or anywhere else where operators of vehicles might be required to make sudden decisions in order to safely operate their vehicles, then no signs shall be permitted or allowed that will be or is distracting to drivers and thereby hazardous and dangerous to the traveling public.

(b) No off-premise sign shall have moving parts, picture tubes, lights or illumination that vary in intensity, flash or change color, except as follows: (i) that tri-vision and electronic light emitting display off-premise signs with moving parts shall be permitted provided that the message on must change in no less than two (2) seconds and shall remain static for no less than nine (9) seconds.

(c) No signs that resemble any regulatory or warning traffic control device or sign as found in the latest edition of the Manual on Uniform Traffic Control Devices for Streets and Highways shall be permitted.

(d) Any signs which contain light emitting diode (LED), liquid crystal display (LCD) illumination or any sign capable of its message/display being changed by electronic/remote means shall comply with the following requirements or equivalent:

i. All LED signs and off-premise message centers shall be mounted on permanent sign structures only. Vehicle-mounted LED displays of any type, including parked or moving vehicles, are prohibited.

ii. All LED signs and off-premise message centers shall have static images only. Flashing signs, scrolling message signs, or any form of animated images are prohibited. Audible signs are also prohibited.

iii. LED images shall be displayed a minimum of ten (10) seconds.

iv. Transitions between images shall be a minimum of two (2) seconds and shall be a fade out/fade in image change only. Scrolling transitions or abrupt image changes are prohibited.

v. Automated light intensity and dimming controls for LED signs shall be required.

vi. Using industry standards, daytime brightness levels should be no more than ninety percent (90%) of maximum intensity. Nighttime brightness shall be reduced to thirty percent (30%) of the maximum light intensity for the LED sign. The Traffic Engineer shall establish daytime and nighttime brightness levels based upon (mCd) levels which are approved by the City Council on all LED signs. [A millicandela (mCd) is the unit of measure commonly used to describe LED brightness.]

vii. All LED sign permit requests shall be reviewed and approved by the City Traffic Engineer.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-20. Lighting and illumination.

Off-premise advertising faces using external illumination shall use a maximum of two (2) luminaries per sign face. All luminaries will use a type of lenses that will direct the light to only illuminate the intended bulletin or poster face. Lamp and ballast watts shall not exceed two (2) watts per square foot of advertising area. Lighting fixtures illuminating signs and billboards shall be aimed and shielded so that properties are protected from light trespass or spillage to the maximum extent practicable.
(Ord. No. 14216, § 1, 4-8-25)

ARTICLE II. GENERAL OFF-PREMISE SIGN REGULATIONS

Sec. 3-21. General off-premise sign regulations.

Unless otherwise provided in this Chapter, the following regulations shall govern the construction and maintenance of any off-premise sign within the City:

(a) No sign shall exceed twelve (12) feet in height or thirty-six (36) feet in width.

(b) Sign area shall not exceed three hundred seventy-eight (378) square feet.

(c) The highest portion of a sign or sign structure shall not exceed fifty (50) feet above the lower of (i) the closest point on the top of the finished grade of the public road nearest thereto, or (ii) the closest point on the top of the finished grade of the public road towards which the sign is principally oriented and from which it is principally intended to be viewed.

(d) Sign structures supporting an off-premise sign or signs with a sign area greater than seventy-five (75) square feet shall be spaced not less than seven hundred (700) feet apart regardless of the direction in which any such sign is facing; said spacing shall only apply to signs on the same side of the street, provided, however, that any off-premise sign located within three hundred (300) feet of the center of any intersection of two (2) or more roads shall be spaced not less than three hundred fifty (350) feet in all directions from any other sign of any size.

(e) Sign structures supporting an off-premise sign or signs with a sign area less than seventy-five (75) square feet in size shall be spaced not less than three hundred fifty (350) feet from any other off-premise sign of any size; said spacing shall apply only to signs on the same side of the road regardless of the direction in which any such sign is facing, provided, however, that any off-premise sign located within three hundred (300) feet of the center of any intersection of two (2) or more roads shall be spaced not less than three hundred fifty (350) feet from any other sign of any size.

(f) Signs with a sign area of less than seventy-five (75) square feet shall be located no closer than ten (10) feet to the closest edge of any public right-of-way. All signs with a sign area exceeding seventy-five (75) square feet shall be located no closer than twenty (20) feet from the closest edge of any public right-of-way.

(g) Signs with a sign area less than seventy-five (75) square feet shall be erected so that the lowest portion of the sign face is not less than ten (10) feet above ground level at the base of the sign structure and so that the highest portion of the sign face is no more than eighteen (18) feet above ground level at the base of the sign structure.

(h) No sign shall be permitted on top of any building or rooftop.

(i) No sign face shall be permitted atop or beneath another sign face, i.e., no "stacked" signs are permitted on any sign structure, building or rooftop; provided, however, that if any off-premise sign is used merely to identify the tenants and/or the location of any commercial development located within six hundred (600) feet of said off-premise sign and contains no other commercial messages, then such sign may utilize "stacked" faces to identify the names of the tenants within and the location of such commercial development, so long as the total sign area of all such stacked faces when added together complies with the sign area and sign dimension limitations otherwise set forth herein.

(j) No sign shall be located where prohibited or not permitted by Zoning Ordinance No. 5149, as amended, or as may hereafter be amended.

(k) Off-premise traffic directional signs for licensed facilities offering twenty-four (24) hour emergency medical and/or psychiatric care shall be permitted without regard to the provisions of subsections (d), (e) and (g) of this Section 3-21, provided, that any person desiring to erect such a sign shall first obtain a special permit from the Board of Zoning Appeals pursuant to the provisions of Section 3-102 of this Chapter.

(l) Construction type. All new or rebuilt billboards shall be constructed using single mono pole design unless otherwise prohibited by other Governmental Entities. All legal conforming or legal non-conforming signs in all areas or zones may be rebuilt using newly adopted rules and regulations including height, provided that no sign may be expanded in advertising area beyond its originally permitted standard size classification. For example, a sign originally permitted under "General off-premise sign regulations " with a maximum advertising area of three hundred seventy five (375) square feet may not exceed the amended maximum of three hundred seventy eight (378) square feet and off-premise signs with a sign area of less than seventy five (75) square feet may not under this provision advance to a larger area, etc.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-22. Maintenance of off-premise signs and sign structures.

All off-premise signs shall be properly maintained. Off-premise signs which are not properly maintained are declared to be a nuisance and are subject to removal in accordance with the provisions of this Chapter. Rusted surfaces and/or components of signs shall be promptly repaired. Exposed surfaces of signs shall be clean and painted if paint is required. Defective parts of signs shall be replaced. The Sign Inspector shall order the removal of any off-premise sign which is defective, damaged or substantially deteriorated pursuant to Article I of this Chapter. For the purposes of this section 3-22, "sign" shall include signs and their supporting structures.

(Ord. No. 14216, § 1, 4-8-25)

Secs. 3-23—3-30. Reserved.

ARTICLE III. CONTROLLED ACCESS FACILITY SIGN REGULATION

Sec. 3-31. Controlled access facility sign regulation.

This Article shall govern the placement, location and size of both and off-premise signs along controlled access facilities. Except where provisions differing from those in Article II are set forth in this Article III, all provisions of Article II shall otherwise continue to be applicable.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-32. Control districts established.

There is hereby established a sign control district, which shall consist of a strip of land six hundred sixty (660) feet wide on each side of the right-of-way of all controlled access facilities, as defined herein, within the City, within which district all signs that are primarily oriented toward and are designed or situated to be observed from the controlled access facility are hereby regulated. For the purposes of this Article, "right-of-way" shall include all entrance and exit ramps of controlled access facilities.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-33. Standards and restrictions.

The following standards and requirements shall govern signs within the sign control districts:

(a) Off-premise signs and their supporting structures shall be set back a minimum of twenty (20) feet from the right-of-way of all controlled access facilities.

(b) Off-premise signs and their supporting structures shall extend no higher than fifty (50) feet above the roadway of the controlled access facility at the nearest point.

(c) Reserved.

(d) Reserved.

(e) The sign area of an off-premise sign shall not exceed six hundred seventy-five (675) square feet, and such sign shall not exceed fourteen (14) feet in height or forty-eight (48) feet in width, excepting the addition of temporary graphic embellishments extending beyond the edge of rectangular sign face, provided that the addition of such embellishments does not increase the total sign area, as defined in § 3-2, to greater than seven hundred fifty (750) square feet.

(f) When two (2) off-premise signs are placed back-to-back on the same structure, with an angle between the backs of each sign face of not more than sixty (60) degrees, only one (1) facing shall be measured in computing sign area; provided, that the second facing shall be no larger than the facing computed.

(g) Off-premise signs shall be located not less than one thousand (1,000) feet apart, as measured from the next adjacent sign on the same side of the controlled access facility. For the purposes of this Article, two (2) off-premise sign faces placed back-to-back on the same structure with an angle between the backs of each sign face of not more than sixty (60) degrees shall be construed as one (1) sign.

(h) Any off-premise sign located within three hundred (300) feet of any intersection of two (2) or more roads shall be spaced not less than three hundred fifty (350) feet from any other sign of any size.

(Ord. No. 14216, § 1, 4-8-25)

Secs. 3-34—3-40. Reserved.

ARTICLE IV. MAJOR ADVERTISING ZONE SIGN REGULATION

Sec. 3-41. General provisions.

This Article shall govern the placement, location and size of off-premise signs located in Major Advertising Zones as defined in § 3-2. Except where provisions differing from those in Article II of this Chapter are set forth in this Article IV, all provisions of Article II shall otherwise continue to be applicable. (Ord. No. 14216, § 1, 4-8-25)

Sec. 3-42. Standards and regulations.

(a) Off-premise signs with a sign area in excess of seventy-five (75) square feet in size shall be located not less than one thousand (1,000) feet apart on the same side of the road and located not less than three hundred fifty (350) feet from any off-premise sign with a sign area of less than seventy-five (75) square feet as measured on the same side of the right-of-way. In the event a sign is within twenty-five (25) feet of a building which completely obscures the sign from view from the right-of-way in one (1) direction, a companion sign may be located within twenty-five (25) feet of the opposite end of such building; in such event, both signs shall be spaced no less than one thousand (1,000) feet from any other adjacent sign as measured on the same side of the road; provided, however, that any off-premise sign located within three hundred (300) feet of the center of any intersection of two (2) or more roads shall be spaced not less than three hundred fifty (350) feet from any other sign of any size.

(b) The sign area of an off-premise sign shall not exceed six hundred seventy-five (675) square feet, and such sign shall not exceed fourteen (14) feet in height or forty-eight (48) feet in width, excepting the addition of temporary graphic embellishments extending beyond the edge of rectangular sign face, provided that the addition of such embellishments does not increase the total sign area, as defined in § 3-2, to greater than seven hundred fifty (750) square feet.

(c) The highest portion of an off-premise sign or its supporting structure shall not exceed fifty (50) feet above the lower of (i) the closest point on the top of the finished grade of the public road nearest thereto, or (ii) the closest point on the top of the finished grade of the public road toward which the sign is principally oriented and from which it is intended to be viewed, provided that signs with a sign area of less than seventy-five (75) square feet shall be governed by § 3-21.

(d) Off-premise signs with a sign area of less than seventy-five (75) square feet shall not be located less than three hundred fifty (350) feet from any other off-premise sign of any size; said spacing shall apply only to signs on the same side of the road regardless of the direction in which any such sign is facing, provided, however that any such sign located within three hundred (300) feet of the center of any intersection of two (2) or more roads shall be spaced not less than three hundred fifty (350) feet from any other sign of any size.

(e) Off-premise signs with a sign area of less than seventy-five (75) square feet shall be located no closer than ten (10) feet from the closest edge of any public right-of-way; all signs with a sign area in excess of seventy-five (75) square feet shall be located no closer than twenty (20) feet from the closest edge of any public right-of-way.

(f) For the purposes of this Article, two (2) off-premise sign faces placed back-to-back on the same structure with an angle between the backs of each sign face of not more than sixty (60) degrees shall be construed as one (1) sign.
(Ord. No. 14216, § 1, 4-8-25)

Secs. 3-43—3-50. Reserved.

ARTICLE V. SCENIC AREAS AND SCENIC CORRIDORS

Sec. 3-51. Scenic areas and scenic corridors.

Notwithstanding the provisions of Article III and Article IV, this Article shall govern the erection of off-premise signs in Scenic Areas and Scenic Corridors. Except where provisions differing from those in Article II of this Chapter are set forth in this Article V, all of the provisions of Article II shall otherwise continue to be applicable.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-52. Scenic areas.

There are hereby established the following Scenic Areas, in which off-premise signs shall be prohibited as set forth in this Article V:

(a) The entirety of that portion of downtown Chattanooga which is bounded on the north and west by the Tennessee River, on the south by Main Street from its westernmost extremity (and extended by an imaginary line from such extremity directly to the Tennessee River) to its intersection with Market Street, and on the east by Market Street from its intersection with Main Street northwardly to King Street, and further on King Street from its intersection with Market Street to its intersection with 8th Street, thence westwardly along 8th Street to its intersection with Houston Street, thence northwardly along Houston Street to its intersection with 3rd Street and extended therefrom by an imaginary line directly to the Tennessee River.

(b) The entirety of the slopes of all ridges and mountains identified herein to the extent that such are located within the city limits, and including those areas more specifically illustrated in yellow on the topographic map attached hereto and specifically adopted as part of this Chapter. (Topographic map is located in the Office of the Clerk of the City Council.) The mountains and ridges included within such Scenic Areas are Lookout Mountain, Signal Mountain/Waldens Ridge, Elder Mountain/Raccoon Mountain, Missionary Ridge, Stringers Ridge, Godsey Ridge and Big Ridge.

(c) Barton Avenue to its intersection with Hixson Pike; Hixson Pike from its intersection with Barton Avenue to its intersection with Lupton Drive; Cherokee Boulevard from its intersection with Market Street to the Stringers Ridge Tunnel; Amnicola Highway from its intersection with the east side of Chattanooga State to Access Road; Hixson Pike from its intersection with Middle Valley Road to the City limits; Main Street from its intersection with Market Street to Holtzclaw Avenue; Holtzclaw Avenue to its intersection with Houston Street; East Brainerd Road from its intersection with Concord Drive to the City limits.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-53. Off-premise signs prohibited in scenic areas.

No off-premise signs shall be erected or established within any Scenic Area.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-54. Scenic corridors established.

There are hereby established Scenic Corridors, which shall consist of certain strips of land six hundred sixty (660) feet on either side of the outermost edge of the right-of-way of all of the roads, routes and rivers specified in this Article, within which Scenic Corridors all off-premise signs are regulated as set forth herein.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-55. Off-premise signs along scenic corridors prohibited.

(a) Interstate 24, beginning at the city limits south and west of the Tiftonia area and continuing to the center of its interchange with U.S. Highway 27, excluding the area within one thousand three hundred twenty (1,320') feet on either side of the Interstate 24 and U.S. Highway 41 intersection at the Tiftonia (Cummings Highway) exit.

(b) Cummings Highway/Lookout Mountain Pike from the City limits west of Lookout Valley to its intersection with Highway 58.

(c) Highway 27 ("Corridor J") and any extensions thereof, beginning at the southern bank of the Tennessee River and extending northward to the northernmost city limits of Chattanooga, limited to those portions of the roadway located within the municipal boundaries of the City of Chattanooga.

(d) The Tennessee River from Chickamauga Dam downstream to the city limits.

(e) Within the area of Veterans Bridge and its approaches beginning at the midpoint of the intersection of Barton Avenue and Crewdson Street and extending southward four hundred seventy-five (475') feet on either side of the centerline of Barton Avenue across Veterans Bridge at the Tennessee River to its intersection with Fourth Street.

(f) Along Interstates 24 and 75 from one hundred fifty (150') feet east of Dodds Avenue eastward to the city limits as they now exist or may hereafter be expanded, except for an area one thousand three hundred twenty (1,320') feet in either direction along Interstate 75 from the intersection with Lee Highway (U.S. Highway 11 and 64) at Ooltewah and State Route 2 (Bonny Oaks Drive).

(g) The Dupont Parkway from its north end, at the center of its intersection with Highway 153, generally south and east across Access Road and across the C.B. Robinson Bridge to the center of its intersection with Amnicola Highway, including all entrance and exit ramps thereto on the north side of Amnicola Highway.

(h) The Airport Connector Road and Shepherd Road from State Highway 153 generally southward to Airport Road.

(i) Riverside Drive generally northwardly and eastwardly from its intersection with Broad Street where it becomes W. 20th Street to the point where it crosses Citico Creek, east of Amincola Highway.

(j) All of Jenkins Road lying within the Chattanooga City limits.

(k) East Brainerd Road from its intersection with N. Concord Road and extending South and East to the City limits.

(l) Highway 153 from its intersection with Amnicola Highway to its intersection with Hamill Road.

(m) Cassandra Smith Road from its intersection with Hixson Pike to its intersection with Hamill Road.

(n) Hamill Road from its intersection with Hixson Pike to Big Ridge Road.

(o) Highway 153 from its intersection with Grubb Road going north to the City limits.

(p) Hickory Valley Road in its entirety.

(q) Jersey Pike in its entirety.

(r) Shallowford Road in its entirety.

(s) Bonny Oaks Drive from its intersection with Highway 58 eastwardly to its intersection with Old Lee Highway at Interstate 75.

(t) Highway 58 from its intersection with Jersey Pike northwardly to the City limits.

(u) All of Harrison-Ooltewah Road lying within the Chattanooga City limits.

(v) All of Old Lee Highway lying within the Chattanooga City limits.

(w) All of Old Cleveland Pike lying within the Chattanooga City limits.

(x) All of Hunter Road lying within the Chattanooga City limits.

(y) All of Mountain View Road lying within the Chattanooga City limits.

(z) All of Snow Hill Road lying within the Chattanooga City limits.

(aa) All of Ooltewah-Georgetown Road lying within the Chattanooga City limits.

(bb) Lee Highway from its intersection with Hunter Road southeastwardly to the City limits towards Bradley County.

(cc) Apison Pike.
(Ord. No. 14216, § 1, 4-8-25; Ord. No. 14366, § 1, 5-26-26)

Secs. 3-56—3-60. Reserved.

ARTICLE VI. RESERVED

Secs. 3-61—3-70. Reserved.

ARTICLE VII. RESERVED

Secs. 3-71—3-80. Reserved.

ARTICLE VIII. RESERVED

Secs. 3-81—3-90. Reserved

ARTICLE IX. RESERVED

Secs. 3-91—3-100. Reserved.

ARTICLE X. VARIANCES AND SPECIAL PERMITS

Sec. 3-101. Board of Zoning Appeals to hear requests; meetings; membership.

(a) The Board of Appeals is hereby established and is hereby designated to hear and decide all requests for variances and special permits made pursuant to this Article X. Said Board shall hear such requests at the time and place fixed by said Board for its regular monthly meeting or at such other meetings of the Board as may be called by the Chairman or established by said Board. The City Attorney or his designated representative shall be present at each Board meeting.

(b) The Board of Appeals shall consist of nine (9) members; each member of the City Council shall appoint one (1) member to said Board. Three (3) members of the first Board shall serve terms of one (1) year expiring on July 31, 1992; three (3) members of the first Board shall serve terms of two (2) years expiring July 31, 1993; three (3) members of the first Board shall serve terms of three (3) years expiring

on July 31, 1994. The City Council shall designate the term of each member of the first Board; each member of the Board shall thereafter serve a term of three (3) years. In the event of a vacancy on the Board, the member of the City Council responsible for the appointment of that particular position shall appoint a new member to serve the unexpired term. A member of said Board may be removed from the Board upon a majority vote of the entire City Council.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-102. Jurisdiction of the board.

The Board of Appeals shall have the following powers:

(a) Reserved.

(b) To hear and rule on requests for variances to permit an attached sign greater in size than allowed by Article IX, Section 3-92(e) of this Chapter, if, in the opinion of said Board, a severe and substantial hardship is imposed by the provision of this Chapter. The Board shall require a showing of such hardship with respect to circumstances of a unique site location, which may include, but not limited to: (i) setback of building rights-of-way, or, (ii) building heights or other visual impediments that would prevent visibility of said sign to (the) traveling public.

(c) Reserved.

(d) Reserved.

(e) To hear and rule on requests for special permits for off-premise traffic directional signs for licensed facilities offering twenty-four (24) hour emergency medical and/or psychiatric care; no such sign shall be permitted with any message thereon other than ordinary and customary traffic directions to such facility. The Board in its discretion may impose such reasonable conditions on the size, height and placement of such traffic directional signs as it deems appropriate for traffic safety. Any such traffic directional sign operated or maintained in violation of any condition placed upon it by the Board of Zoning Appeals in the special permit for such sign is hereby declared to be a violation of the provisions of this Chapter and subject to abatement as set forth in Article I of this Chapter.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-103. Applications to the board.

Persons desiring consideration by the Board shall apply to the Secretary of the Board of Zoning Appeals and shall supply such information as the Board may require to identify the premises and proposed location of the sign in question and to determine the reason for the request. Each application shall be accompanied by a receipt for a fee of One Hundred Dollars ($100.00) paid to the City Treasurer to cover the City's cost of handling the application, no part of which fee is refundable. Persons objecting to the application or interested in the determination made by the Board may likewise set forth their views and actual evidence in writing. The application and any objection shall be submitted to the Board within the time provided in its rules of procedure.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-104. Notices.

A notice of the public hearings held by the Board of Zoning Appeals shall be sent by regular mail to each of the property owners within a minimum of two hundred (200) feet of each property in question before the Board. Said notice will be mailed at least seven (7) days prior to the public hearing by the Board. The most recently updated tax rolls for the City of Chattanooga will be the source of ownership information for Board purposes. A notice shall be published in a daily newspaper at least seven (7) days before the hearing. The names of each of the property owners within a minimum of two hundred (200) feet of each property in question before the Board shall be supplied by the applicant to the secretary of the Board concurrently with the filing of any application for a variance, special permit or special exception; failure to provide a complete list of such property owners shall, in the discretion of the Board, constitute grounds for denial of the application.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-105. Conditions for granting variances.

Before a variance may be granted, the Board must find that the following conditions exist:

(a) That by reason of exceptional narrowness, shallowness or shape of a specific piece of property or by reason of exceptional topographic conditions or other extraordinary and exceptional situation or condition of such piece of property, the strict application of this Chapter would result in peculiar and practical difficulties or undue hardships upon the owner. If the ground level of the premises for which a variance is sought is higher than the ground level of the public right-of-way at its nearest point from the proposed location of such sign, the Board shall not consider topographical conditions as contributing to such peculiar and practical difficulties or undue hardships upon the owner.

(b) That the relief of the peculiar and practical difficulties or undue hardships granted by the Board would not establish substantial detriment to the public good or substantially impair the intent and purpose of this Chapter.

(c) That the peculiar and practical difficulties or undue hardship is not created as a result of any act upon the part of the applicant.

(d) That the conditions upon which the petition for which a variance is based would not be applicable generally to other property and that the difficulty complained of by the applicant is not a general or widespread condition throughout the City.

(e) That the condition or hardship is not simply the presence of a legal or illegal nonconforming sign on a nearby premises. The presence of a nonconforming sign on another parcel of property shall not by itself be sufficient cause for granting of a variance.

(f) That the proposed variance will not increase the danger of fire or electrical hazard, obscure sight lines for motorists or otherwise endanger the public safety.

(g) That the peculiar hardship is related to specific qualities of the property as noted in (a) above, and not simply to the financial expectations of the applicant. Financial factors alone shall not be considered as a basis for granting a variance.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-106. Conditions for granting special permit for message center.

Before a special permit for a message center may be granted, the Board of Zoning Appeals must find that the granting of the special permit will not result in substantial distraction to traffic on any adjacent public right-of-way or increase substantially the obstruction of an approach to a scene of unusual attractiveness or detract from an area that has been determined to be unusually scenic or attractive.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-107. Rehearings; termination of variances and special permits.

The Board shall not rehear any request for a variance or special permit for a message center within a minimum period of one (1) year from its previous hearing date. If a decision of the Board to grant a variance or special permit for a message center has not been fully utilized and confirmed by the completion of the construction of the sign contemplated by the applicant within a period of one (1) year from the date of the Board's decision, such variance or special permit previously granted shall be considered void.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-108. Records; administration.

The Board shall keep a duplicate record of its proceedings, findings and action in each case, giving specific reasons for its action and for any deviation from policy it might have established in past cases. The vote of each member on each question shall appear in the record. All records of the Board shall be open to the public.

The mayor shall name the secretary to the board. The secretary shall conduct all official correspondence subject to the rules and directions of the Board and shall send out all notices and attend all meetings or cause the same to be done. The secretary shall keep the Minutes of the Board, compile the records and maintain the official files of the Board or cause the same to be done.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-109. Appeals from Board's decision.

The action of the Board shall be final, provided, an appeal from the action of the Board may be taken to a court of competent jurisdiction by any aggrieved, affected party.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-110. Reserved.

ARTICLE XI. VETERANS BRIDGE SIGN-CONTROL DISTRICT

Sec. 3-111. Reserved.

Sec. 3-112. Established; boundaries.

There is hereby established a Veterans Bridge Sign-Control District which shall be defined as follows: Within the area of Veterans Bridge and its approaches beginning as the midpoint of the intersection of Barton Avenue and Crewdson Street and extending southward four hundred seventy-five (475) feet on either side of the centerline of Barton Avenue across Veterans Bridge at that Tennessee River and continuing along four hundred seventy-five (475) feet on either side of the centerline of Georgia Avenue to Fourth Street; thence continuing westward to include an area four hundred seventy-five (475) feet on either side of the centerline of Fourth Street to Interstate Highway 124.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-113. Special Regulations.

Within the specific control district, the following special regulations shall apply:

1. *Off-premises signs:* Within the specified control district, off-premises attached signs shall be permitted, subject to the following limits:
    a. *Sign:* Not regulated except that:
        1. Signs shall not extend above the eave line or roof line or parapet wall (if any) of the building;

2. No more than twenty percent (20%) of a wall shall be covered with signs;

b. *Number:* Except as provided above, there are no limits on the number of attached signs.

c. *Exceptions:* On-premises signs for businesses fronting on Market and Broad Streets are excepted from these limitations.

2. Reserved.

3. *Off-premises, detached:* Within the specified control district, off-premises detached signs shall be prohibited.

4. Reserved.

5. Reserved.

6. *Lighted and animated signs:* Within the specified control district, signs with flashing lights or moving parts shall be prohibited. Furthermore, no amber, blue, red or green lights shall be permitted, and any direct lighting shall not exceed sixty (60) watts in an incandescent bulb or seventy-five (75) watts in a fluorescent fixture.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-114. Existing signs.

Signs existing within the control district as of June 12, 1984, which may fail to conform with these new regulations may continue to be used so long as they are not enlarged, lighted in not low lighted, or otherwise materially altered, except that such signs may be replaced, remodeled or otherwise improved if, in the opinion of the Building Official, such work does not violate the intent of this provision. Examples of permitted improvements might include: replacement of a wooden structure with a steel structure; replacement of multiple supports with a single steel post, and other such modifications which result in a cleaner, less cluttered appearance.

(Ord. No. 14216, § 1, 4-8-25)

Secs. 3-115—3-120. Reserved.

ARTICLE XII. RESERVED

Secs. 3-121—3-130. Reserved.

ARTICLE XIII. RESERVED

Secs. 3-131, 3-132. Reserved.

CHAPTER 3B: ON-PREMISE ADVERTISING

AS AMENDED

ARTICLE XIV. PURPOSE AND APPLICABILITY

Sec. 3-133. Intent and Purpose.

1. To promote the creation of an attractive visual environment that encourages a healthy economy by:

a. Permitting businesses to inform, identify, and communicate effectively.

b. Assist the public with wayfinding using signs while maintaining attractive and harmonious application of signs on the buildings and sites.

2. To protect and enhance the physical appearance of the community in a lawful manner that recognizes the rights of property owners by:

a. Encouraging the appropriate context and design, scale, and placement of signs.

b. Encouraging the orderly placement of signs on the building while avoiding regulations that are so rigid and inflexible that all signs in a series are monotonously uniform.

c. Assuring that the information displayed on a sign is clearly visible, conspicuous, legible, and readable so that the sign achieves the intended purpose.

3. To foster public safety along public and private streets within the community by assuring that all signs are in safe and appropriate locations.

4. To provide administrative review procedures that are the minimum necessary to:

a. Balance the community's objectives and regulatory requirements with the reasonable advertising and wayfinding needs of businesses.

b. Allow for consistent enforcement of the Sign Code.

c. Minimize the time required to review a sign application.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-134. Applicability.

1. The regulations of Chapter 3B (Sections 3-133—3-204) are applicable in zoning districts without sign and other sign structure requirements exclusive to a specific zoning district. Where sign requirements are provided in a specific zoning district, those requirements control.

2. The provisions of Chapter 3B shall apply to all on-premises signs erected within the corporate limits of the City that are directed to be viewed from the right-of-way. All erection, construction, reconstruction, enlargement, moving, altering, or converting of signs in the City shall be performed in compliance with the requirements of Chapter 3B.

3. If any provision or requirement of Chapter 3B is found to conflict with any other provision or requirement of Chapter 3B or of any other applicable ordinance or regulation of any kind, the regulation which established the more restrictive rule or higher standard shall govern.

4. The provisions of Chapter 3B shall be deemed to be severable. If any part or provision of Chapter 3B is found to be illegal, invalid, or unenforceable as a matter of law, all other provisions of Chapter 3B shall remain in full force and effect.

5. Illustrations, photographs, and graphics are included in this Sign Code to illustrate the intent and requirement of the text. In the case of a conflict between the text of this Sign Code and any illustrations, photographs and graphics, the text governs.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-135. Current Versions and Citations.

1. All references to other regulations, documents, maps, or manuals in this Code refer to the most current version and citation for those regulations, documents, maps, or manuals, unless expressly indicated otherwise.

2. If the referenced regulations or documents have been repealed and not replaced by other regulations or manuals, Code requirements for compliance are no longer in effect.

3. Whenever a provision of this Code refers to any other part of the City Code or to any other law, the reference applies to any subsequent amendment of that law.
(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XV. DEFINITIONS, RULES OF MEASUREMENT, AND SIGN TYPES

DIVISION 1. RULES OF INTERPRETATION AND GENERAL ABBREVIATIONS

Sec. 3-136. Rules of Interpretation.

The terms in the text of this Code are interpreted in accordance with the following rules of construction:

(a) The singular number includes the plural, and the plural the singular.

(b) The present tense includes the past and future tenses, and the future tense includes the present.

(c) The terms "must," "shall," and "will" are mandatory.

(d) The terms "may" and "can" are permissive.

(e) The terms "must not," "will not," "cannot," "may not," and "shall not" are prohibiting.

(f) Any gender includes all genders.

(g) Whenever a defined word or term appears in the text of this Code, its meaning must be construed as set forth in the definition. Words not defined must be interpreted in accordance with the definitions considered to be normal dictionary usage unless the words have a specific definition under the International Building Code or Sign Research Foundation's Sign Glossary, in which case the International Building Code or Sign Research Foundation's Sign Glossary definition shall apply.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3.137. General Abbreviations.

The following abbreviations may be used within this Code:

AHO: Administrative Hearing Officer

BOZA: Board of Zoning Appeals

EMC: Electronic Message Center

LCD: Liquid Crystal Display

LED: Light Emitting Diode

MSP: Master Sign Plan

SF: Square Feet

R-O-W: Right-of-way
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 2. DEFINITIONS

Abandoned or Dilapidated Sign. A sign which for a period of at least 180 consecutive days or longer no longer advertises or identifies a legal business establishment, product, or activity. For the purpose of this Section, "dilapidated" shall mean a condition of decay, deterioration, or partial ruin especially through neglect or misuse.

Alteration. Any change in copy, color, size, or shape, which changes the appearance of a sign, or a change in position, location, construction or supporting structure of a sign.

Animated Sign. A sign which has any visible moving part, flashing or oscillating lights, visible mechanical movement of any description, or other apparent visible movement achieved by any means that move, change, flash, oscillate, or visibly alters in appearance in a manner that is not permitted by these regulations.

Attached Sign. Attached sign shall mean an on-premises sign painted onto or attached to a building, canopy, awning, marquee, or mechanical equipment located outside a building.

Awning. A roof-like cover providing protection from the weather placed over or extending from above any window, door or other entrance to a building but excluding any column, pole or other supporting structure to which the awning is attached.

Backlit (Halo Letters) Sign. An internally illuminated sign with letters or graphics that have an opaque face where only the back of the sign is illuminated. These signs are also often referred to as "reverse channel letters."

Building. Building shall mean any structure that encloses a place for sheltering any occupancy that (a) contains not less than three hundred (300) square feet of enclosed space at the ground level or (b) is routinely used for human occupancy in the ordinary course of business.

Building Identification Sign. A sign that contains only the building name or identification.

Canopy. A permanent roof-like structure providing protection against the weather, either attached to or detached from a building, but excluding any column, pole, or other supporting structure to which the canopy may be attached.

Channel Letter. Three-dimensional individually cut letters or figures affixed to a sign.

Compensation. The exchange of anything of value, including money, securities, real property interests, personal property interests, goods or services, promise of future payment, or forbearance of debt.

Detached Sign. An on-premises sign not attached to or painted on a building, but which is affixed to the ground.

Directional Sign. A sign that points the way for pedestrians or drivers when a business is not clearly seen from the entrance to a building. They can also be called wayfinding signs.

External Illumination. Illumination by an artificial source of light not internal to the sign face.

Façade. An exterior building wall, from grade to the top of the parapet or eaves. A façade incorporates the full width of a building elevation, including any projections or recesses occurring across an elevation. The front facade is the principal elevation of a building and contains the building's main entrance; the rear facade is the building's rear exterior wall; and the side facades are a building's side exterior walls.

Flashing Sign. A sign (i) the illumination of which is intermittently on and off so as to appear to flash, blink, chase, travel or stream; (ii) which resembles zooming, twinkling or sparkling; (iii) which fluctuates in light intensity or uses intermittent, strobe or moving light or lights; (iv) which reflects light so as to

appear to flash, blink, chase, sparkle or flutter, such as but not limited to metallic or mylar-type fluttering materials; (v) which changes color; (vi) which displays any movement or simulates movement; or (vii) which displays any form or appearance of animation.

Footcandle. A measure of illumination on a surface that is one foot from a uniform source of light of one candle and equal to one lumen per square foot.

Governmental Sign. A sign erected and maintained pursuant to, and in discharge of, any governmental functions, or required by law, ordinance, or other governmental regulation.

Holiday Decorations. Displays including lighting which are a nonpermanent installation celebrating national, state, and local holidays or holiday seasons.

Illegal Sign. Any sign placed without proper approval or permits as required by this Code at the time of sign placement. Illegal sign shall also mean any sign placed contrary to the terms or time limits of any permit.

Illuminated Sign. Any sign for which an artificial source of light is used to make readable the sign's message, including internally and externally lighted signs and reflectorized, glowing, or radiating signs.

Incidental Sign. An on-premises sign, emblem or decal mounted flush with the facade to which it is attached informing the public of goods, facilities, or services available on the premises (e.g., a credit card sign, ice machine sign, vending machine sign or a sign indicating hours of business) or an on-premises sign which is affixed to mechanical equipment used to dispense a product.

Inflatable Signs. A temporary inflated sign, which may be stationary or mobile, that is used to attract attention.

Internal Illumination. A light source that is concealed or contained within the sign or letter and becomes visible in darkness through a translucent surface.

Landmark Sign. A sign that exemplifies the cultural, architectural, or commercial identity of Chattanooga and Hamilton County, is iconic in its location, and contributes to the surrounding neighborhood character.

a. *Historic Sign.* A landmark sign that identifies and is attached to any building which is included on the National Register of Historic Places, is listed as a Certified Historic Structure, is listed as a National Monument, or listed under any similar local, state or national historical or cultural designation.

b. *Vintage Sign.* A landmark sign that is iconic and culturally significant and was constructed between fifty (50) and twenty-five (25) years before the date of application.

c. *Replica Sign.* A landmark sign that is an exact reproduction of an historic sign which no longer exists.

Logo, Logogram, or *Logotype.* An emblem, letter, character, pictograph, trademark, or symbol used to represent any firm, organization, entity, or product.

Mansard. The lower portion of a roof with two (2) pitches, including a flat-top roof with a mansard portion.

Mansard Sign. Any sign attached to the mansard portion of a roof.

Marquee. A permanent roof-like structure projecting from and beyond a building wall at an entrance to a building or extending along and projecting beyond the building's wall and generally designed and constructed to provide protection against the weather.

Master Sign Plan. A Master Sign Plan shall include all proposed signs or sign locations for the entire multiple-tenant non-residential development, including defined wall sign spaces for tenants (tenant sign space), a ground sign or multiple tenant sign, directional signs, etc.

Menu Board. A sign associated with drive-through windows that is oriented toward drive-through traffic.

Mural. A painted picture on an exterior surface of a structure. A mural is a sign only if it contains the business name and/or logo of the business. See "Mural Painted Wall Sign."

Mural Painted Wall Sign. A picture/image (including but not limited to painted art) which is painted, constructed, or affixed directly onto a vertical building wall that contains a business name and/or logo of the business.

Neon Sign. A sign with tubing that is internally illuminated by neon or other electrically charged gas.

Nonconforming Sign. A sign that was validly installed under laws or ordinances in effect at the time of its installation, but which conflicts with the current provisions of this Code.

Occupant. Occupant shall mean each separate person which owns or leases and occupies a separate portion of a premises.

On-Premises Sign. A sign that is operated or owned by a person or entity that is earning no compensation directly or indirectly from a third party or parties for the placement of a message on the sign.

Parapet. An extension of a false front or wall above a roof line.

Person. An individual, company, corporation, association, partnership, joint venture, business, proprietorship, or any other legal entity.

Premises. Premises shall mean all contiguous land in the same ownership which is not divided by any public highway, street, alley, or right-of-way. As part of a dominant parcel of property, premises shall also include a permanent easement to the dominant parcel which (1) connects the dominant parcel to a public right-of-way, (2) is the sole means of ingress and egress to and from a public right-of-way for vehicular traffic to the dominant parcel, and (3) is regularly used for ingress and egress to the dominant parcel by vehicular traffic.

Pole Sign. A freestanding sign erected and maintained on a mast(s) or pole(s) and not attached to any building.

Portable Sign. Any movable sign not permanently attached to the ground or a building and easily removable using ordinary hand tools.

Public Right-of-Way. For the purposes of this Code, public right-of-way (R-O-W) shall mean any street, sidewalk, parking lot, or public entrance that is primarily oriented towards a pedestrian entrance into a building. For the purposes of this Code, "public street", "public right-of-way" and "public road" shall include any private street which is open to and regularly used by the public and which is constructed to City standards set forth in the Subdivision Regulations adopted by the City.

Reader Board. Any on-premises sign attached to or made a part of the support system of a freestanding sign which either displays interchangeable messages or advertises some product or service offered separately from the name of the premises where it is located.

Reflectorized Sign. A sign made with highly reflective material to enhance visibility, especially at night or in low-light conditions. The purpose of a reflectorized sign is to improve safety and visibility by reflecting light from vehicle headlights or other sources, making the sign more noticeable to drivers and pedestrians.

Scenic Area. Scenic area shall mean those areas within the city limits, as more specifically identified in Article VI, which are either of uncommon visual importance or scenic attractiveness and within which the construction of off-premise signs is prohibited in accordance with the provisions of Article VI.

Scenic Corridor. Scenic corridor shall mean those land areas within the city limits which lie within six hundred sixty (660) feet of either side of the outermost edge of any of the roads, rivers, or rights-of-way more specifically designated in Article VI, which are either of uncommon visual importance or scenic attractiveness.

Sign. Any name, figure, character, outline, display, announcement, or device, or structure supporting the same, or any other device of similar nature designed to attract attention outdoors, and shall include all parts, portions, units, and materials composing the same, together with the frame, background, and supports or anchoring thereof. A sign shall not include any architectural or landscape features that may also attract attention.

Snipe Sign. Any on-premises sign for which a permit has not been issued which is attached in any way to a utility pole, building column, tree, rock, fence, or fence post.

Spacing. The interval between signs determined by measuring from the upright column or outermost supporting columns and extending by the most direct line perpendicular to the road to a point nearest the road right-of-way, and then proceeding in either direction along the nearest edge of the right-of-way or pavement for the prescribed distance.

Special Event. A short-term event of unique significance not in excess of thirty (30) days; such terms shall include only grand openings, health-related promotions or health-related service programs (i.e., flu shots clinic, blood donation drives, chest x-ray clinic, etc.), going-out-of-business sales, promotions sponsored by a governmental entity, fairs, school fairs, school bazaars, charity runs, festivals, religious celebrations, charity fundraisers, or similar type of events and shall not include other sales or promotions in the ordinary course of business.

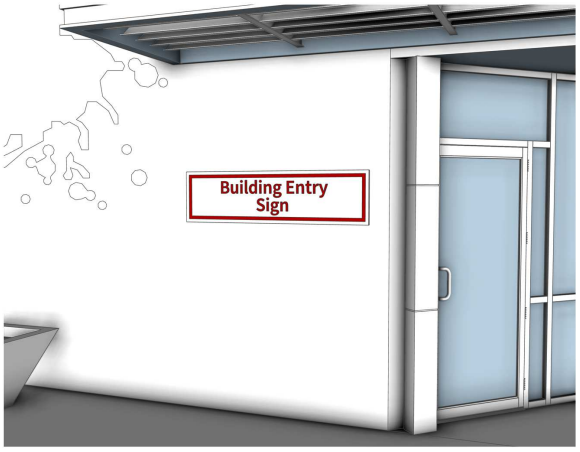
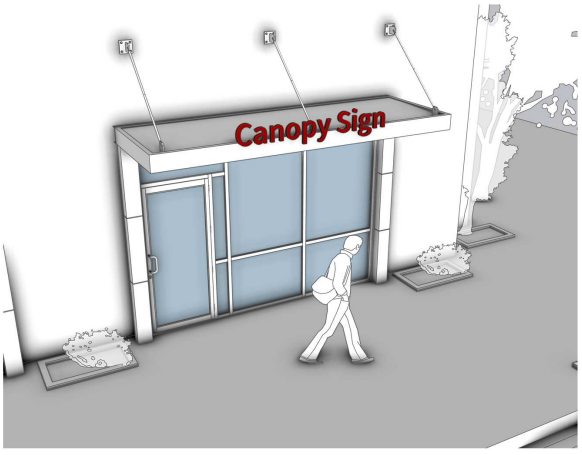
Temporary Sign. Any sign which is installed for a period not to exceed one hundred twenty (120) days.

Traffic Sign. A sign to govern motor vehicle and pedestrian movements or activities on streets, roads, or highways and containing no advertisement.

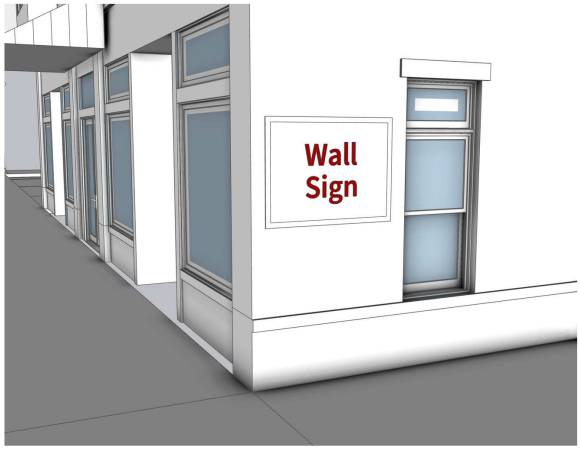
Vehicle Sign. Any sign permanently or temporarily attached to or placed on a vehicle or trailer.

Window Art. A picture or graphic on a window that does not display the business name, logos, or trademarked symbols.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-138. Attached Signs.

Name	*Definition*	*Graphic*
Awning Sign	Any sign painted on or attached to or supported by an awning.	
Building Entry Sign	An attached sign that is located near a primary pedestrian entrance of a building that identifies the interior uses of the building that are accessible from that entrance. This sign is not included in the total number of attached signs.	
Canopy Sign	Any permanent sign attached to or constructed underneath a canopy. These signs are below a projecting structure that extends over the pedestrian walkway, which effectively prevents the wall signs from being visible to the pedestrian walking under the canopy. See Also Projecting Sign.	

Name	*Definition*	*Graphic*
Marquee Sign	Any sign painted on or attached to or supported by a marquee.	
Projecting Sign	A sign that hangs from beams, brackets, or poles or that projects from poles or brackets from the building.	
Roof Sign	Any sign erected upon or above a roof line or parapet wall of a building or placed above the apparent flat roof or eaves of a building.	

Name	*Definition*	*Graphic*
Wall Sign	A sign that is flat against the building façade and mounted or applied directly to the building.	
Window and Door Sign	Any sign affixed in any manner to a window or exterior glass door such that it is intended to be viewable from the exterior (beyond the sidewalk immediately adjacent to the window), including signs located inside a building but visible primarily from the outside of the building.	

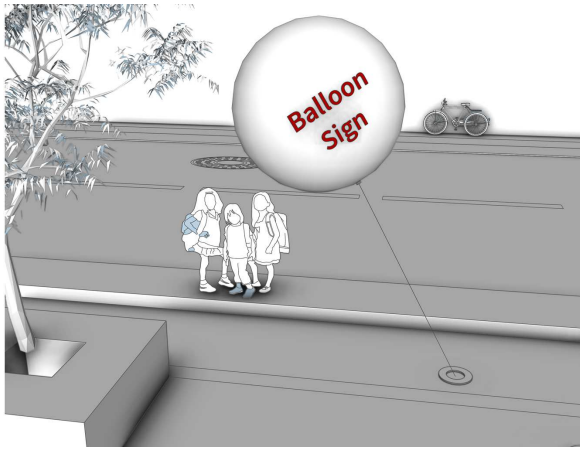
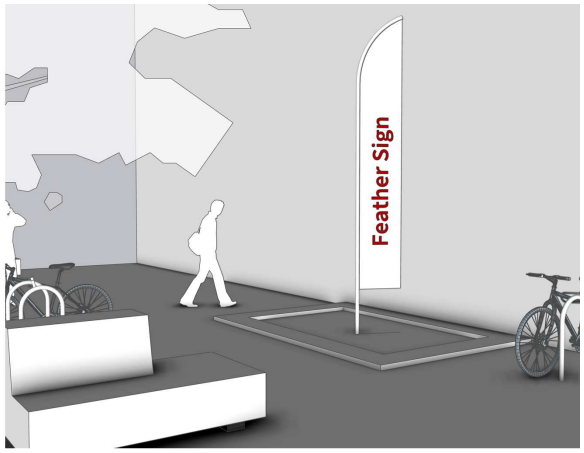
(Ord. No. 14216, § 1, 4-8-25)

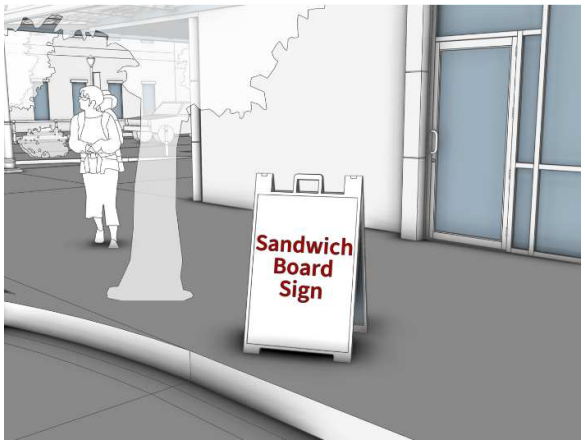
Sec. 3-138.2. Detached Signs.

Name	*Definition*	*Graphic*
Message Center Sign	A sign on which the message or copy changes automatically on a lamp bank or through mechanical means also known as a Commercial Electronic Variable Message Sign and Electronic Message Center.	
Freestanding Sign	Any sign that is permanently affixed in or upon the ground, supported by one or more structural members, with air space between the ground and the sign face.	
Monument Sign	An advertising or identification device that is ground mounted and constructed so that there is no space between the ground and the bottom of the device.	

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-138.3. Temporary and Portable Signs.

Name	*Definition*	*Graphic*
Balloon Sign	A lighter-than-air gas-filled balloon, tethered in a fixed location, which has a sign with a message on its surface or attached in any manner to the balloon.	
Banner	An on-premises sign which is made of fabric or any other non-rigid material and which has no enclosing framework or internal supporting structure but not including balloon signs.	
Feather Sign	A wind activated feather, blade or teardrop shaped sign of flexible material attached to a support pole that is normally inserted into a receptacle in the ground.	

Name	*Definition*	*Graphic*
Sandwich Board Sign	A stationary, double faced temporary sign that is ground supported; also known as an A-frame sign.	
Yard Sign	A type of temporary sign such as garage sale, political sports league, and contractor signs, that is neither permanently anchored to the ground, nor permanently affixed to a structure. Yard signs are constructed of cloth, canvas, corrugated plastic, light fabric, cardboard, wallboard, or other similar materials, with or without frames and are intended to be displayed for a limited period.	

(Ord. No. 14216, § 1, 4-8-25)

DIVISION 4. LIGHTING TYPES

Sign Lighting Type	*Definition*	*Example*
Direct Lighting	A specific style of illumination where the source of light is internal and integral to the sign structure and where the resultant illumination radiates out in the direction of the viewer. This designation includes neon lighting, face-lighted channel letters and sign panels with routed and push-through graphics (backlit).	

Sign Lighting Type	*Definition*	*Example*
Indirect Lighting	A specific style of illumination where the source of light is external to, and independent of, the sign structure, and the illumination radiates toward the message area away from the viewer. This includes goose neck, linear sign lights, and ground mounted spotlights.	

(Ord. No. 14216, § 1, 4-8-25)

DIVISION 5. RULES OF MEASUREMENT

Sec. 3-139. Sign Area.

1. *Determining Sign Area.* In determining the square footage of allowable signage for any business, use, or tenant space, the area of each sign face will be added together excluding identical double-faced signs.

2. *Measuring Sign Area.* Sign area is the entire surface area of a sign, including the frame. The supports, uprights, or structures on which any sign is mounted shall not be included in determining sign area.

a. *Standard Geometric Shapes.* When the surface area of a sign consists of a conventional geometric shape, such as a circle, an oval, a rhombus, a trapezoid, or a triangle, the accepted mathematical formulas for calculating area will be used to determine the surface area of a sign.

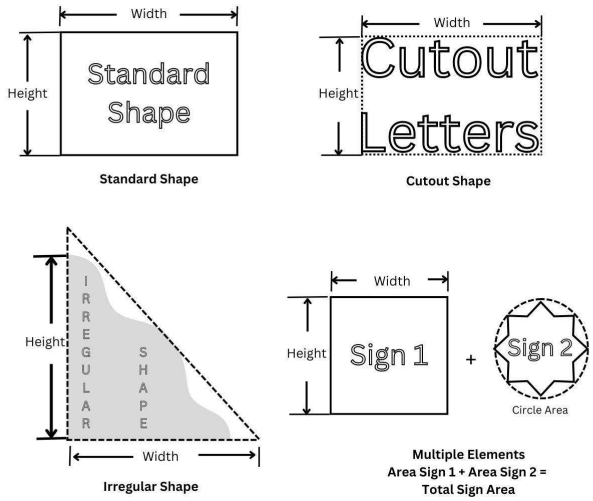
b. *Cutout Letters.* Sign area for cutout letters or display applied directly to the building surface and lacking a defined border or trim shall be determined by including the total area within the periphery of the cutout letters on display, which can be enclosed within a rectangle or the closest geometric shape with a maximum of two enclosing shapes.

c. *Irregular Geometric Shapes.* If a sign consists of a symbol, or an irregular geometric shape without an accepted mathematical formula for calculating area, the entire surface area of the symbol, which can be enclosed within a rectangle or the closest geometric shape with a maximum of two enclosing shapes, shall be determined as the sign area.

d. *Multiple Elements.* If a sign consists of a symbol, graphic or text with multiple elements that are an irregular geometric shape the sign area and dimensions shall be calculated by determining the geometric form, or combination of forms, which comprises all the display areas, including the space between different elements.

e. *Multi-Faced Sign.* When two identical sign faces are placed back-to-back so that both faces cannot be viewed from any point at the same time, and are part of the same sign structure, the sign area shall be computed as the measurement of one of the two faces. When the sign has more than two display surfaces, the area of the sign shall be the area of the largest display surface or surfaces that are visible from any single direction.

MEASURING SIGN AREA DIAGRAM



(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-140. Sign Width.

1. *Width.* Width shall mean the total measurement of the horizontal side of the rectangle which is used to calculate "sign area."
(Ord. No. 14216, § 1, 4-8-25)

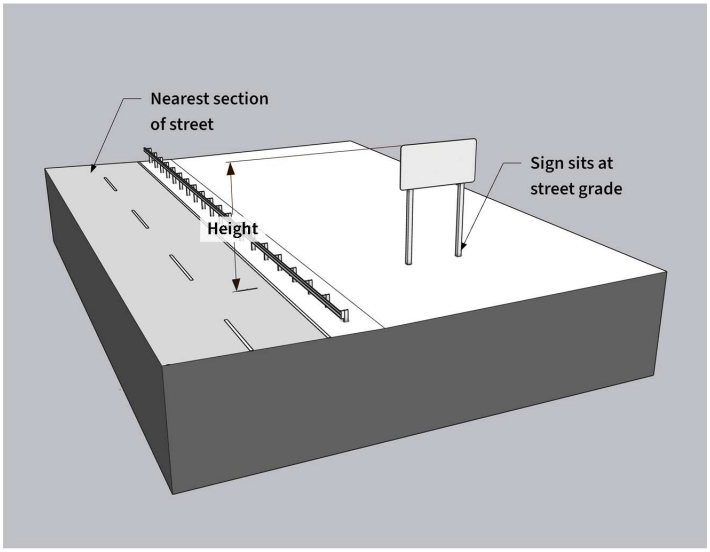
Sec. 3-141. Sign Height.

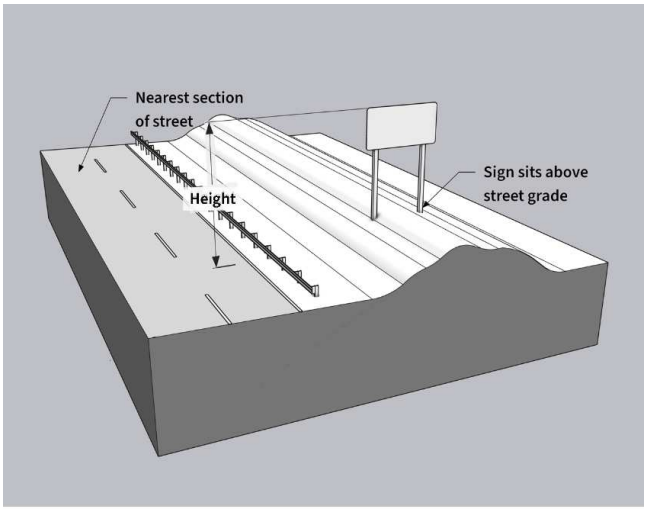
1. *Height.* Height shall mean the total measurement of the vertical side of the rectangle which is used to calculate "sign area."

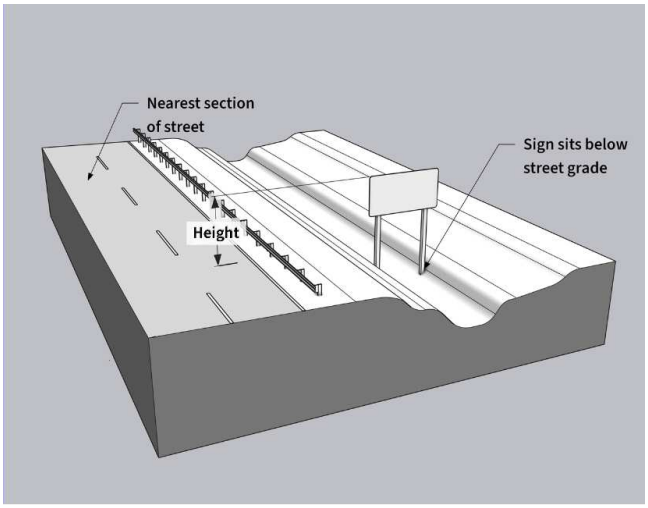
2. *Determining Sign Height.*

a. Freestanding Signs. The height of a sign or sign structure shall be measured from finished grade to the highest point of the sign or sign structure. When a sign is located on a graded earth mound or in an area lower than the adjacent public street, the sign shall be measured from a surveyed point located at the horizontal line of sight from the paved surface of the nearest section of street.

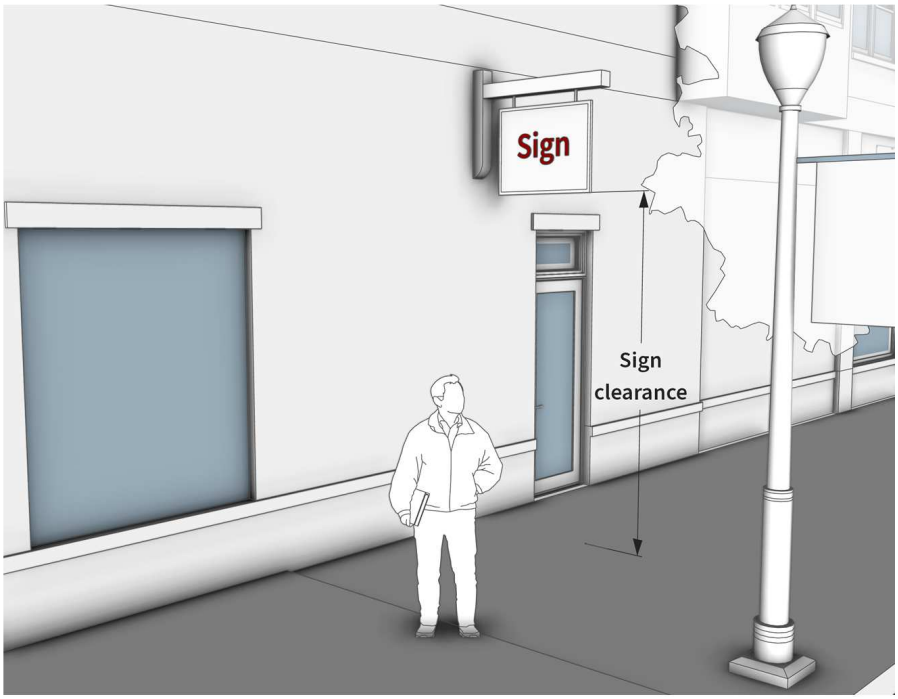
SIGN HEIGHT DIAGRAM







3. *Awning, Canopy, Marquee, and Projecting Signs.* Clearance for signs shall be measured at the smallest vertical distance between the ground and the lowest point of the sign, including any framework or other embellishments.



4. *Wall Signs.* Heights shall not exceed the height of the building wall to which the sign is affixed. (Ord. No. 14216, § 1, 4-8-25)

ARTICLE XVI. PROHIBITED SIGNS

Sec. 3-142. Prohibited Signs.

It shall be unlawful for any person to erect or maintain a sign which is prohibited as follows:

1. Signs which by color, location, and/or design resemble or conflict with traffic control signs or signals.

2. Signs which are attached or otherwise affixed to trees or other living vegetation, lampposts, and/or utility poles.

3. Vehicle signs, when the vehicle is parked on or otherwise utilizing a public right-of-way, public property, or on private property so as to be intended to be visible from the street right-of-way for the primary purpose of providing advertisement of products or services or directing people to a business or activity and is not regularly used in the conduct of the business.

4. Abandoned or dilapidated signs.

5. Banners greater than forty (40) square feet in sign area, except where specifically permitted for an authorized temporary use in accordance with the provisions of Article XVII.

6. A sign placed in a right-of-way (including roadway median, traffic island and/or traffic circle/roundabout), except as required by appropriate federal, state, city or county governmental authorities or otherwise stated in this Chapter.

7. Signs that contain any lighting or control mechanism that causes unreasonable interference with radio, television, or other communication signals.

8. Sign display areas with varying light illumination and/or intensity, blinking, bursting, dissolving, distorting, fading, flashing, oscillating, rotating, scrolling, sequencing, shimmering, sparkling, streaming, traveling, tracing, twinkling, simulated movement, or convey the illusion of movement.

9. Signs that are of such intensity or brilliance as to cause glare or impair the vision of any motorist, cyclist or pedestrian using or entering a public way.

10. Signs that emit audible sound, odor, or visible matter such as smoke or steam.

11. Signs with moving parts.

12. Roof signs and signs painted on a roof.

13. Balloon Signs except when permitted as a temporary sign for special events in accordance with Article XVII.

14. Snipe Signs.

15. Inflatable Signs.

16. Animated Signs.

(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XVII. EXEMPT AND TEMPORARY SIGNS

DIVISION 1. EXEMPT SIGNS

The following signs shall not require a sign permit but may be subject to other applicable laws and regulations outside of this Chapter. Refer to Table 1 below for exempt sign standards.

1. Banners forty (40) square feet or less in sign area. Only one banner per business is permitted.
2. Building entry and building identification sign
3. Entrance and exit signs regulated by the International Building Code
4. Feather Signs. Not permitted in the Residential Character Area.
5. Incidental Signs not exceeding two (2) square feet in sign area.
6. Landmark signs
7. Signs and other devices erected, posted, or otherwise established by any governmental agency regulating traffic, public purpose/safety, or any other notice or warning required by a valid and applicable federal, state, or local law, regulation, or resolution.
8. Sandwich Board Signs, subject to the following regulations:
    a. Sandwich board signs are not permitted in the Residential Character Area- Residentially zoned parcels see Article VI for more information.
    b. A sandwich board sign must be placed on the ground or paved surface and may be placed on a sidewalk within public right-of-way or public property within fifteen (15) feet of the entry to a business or outdoor space associated with the business.
    c. Such signs cannot be located within any designated fire lane or obstruct vehicular, bicycle, or pedestrian traffic, must comply with ADA clearance and accessibility standards, and must be removed from the sidewalk at the close of business each day.
9. Yard signs including but not limited to garage sale, temporary signs for political, construction or real estate purposes, and sports leagues.
10. Works of art, including murals, that are not considered mural painted wall signs.

Table 1 Exempt Sign Standards

Sign Type	*Max Size*	*Max Number*	*Max Height*	*Illumination Type*	*Display Period*	*Removal Required*
Banner	40 SF	1 per business	Can't exceed height of building wall	None	N/A	N/A
Feather Sign	25 SF	1 per street frontage & shall not be within 100' along the same street frontage of any other temporary sign providing the same information	12'	None	Dawn to dusk	Stored inside each evening after dusk

Table 1 Exempt Sign Standards						
Sign Type	*Max Size*	*Max Number*	*Max Height*	*Illumination Type*	*Display Period*	*Removal Required*
Sandwich Board Sign	7.5 sf, signs can be double sided & only 1 side is counted toward the sign area	1 per business	36"	None	When the business is open for business	Remove signs during non-business hours
Yard Sign	32 SF	1 per street frontage	10'	None	N/A	N/A

(Ord. No. 14216, § 1, 4-8-25)

DIVISION 2. TEMPORARY ON-PREMISES SIGNS

Sec. 3-143. Authorized use of temporary signs.

1. *Purpose.* Limited on-premises temporary signs are allowed to provide reasonable opportunities for communication while protecting the aesthetics of the city and avoiding confusion and clutter.

2. *Sign Types Allowed.* A temporary sign may be an on-premises ground or on-premises building sign but may not be constructed of or operated by electrical, electronic, or mechanical parts. Banners, balloon signs, and feather signs are defined as being temporary signs.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-144. Limitations.

1. *Limit on Use of Temporary Signs.* No occupant shall be eligible for issuance of a temporary sign permit for more than a total of one hundred twenty (120) days during any calendar year.

2. *Time Limit for Display of Temporary Signs.* All temporary sign permits shall state an effective date and an expiration date; such permits shall be issued only for fifteen (15) day increments. Any temporary sign and its supporting structure permitted under this Article shall be removed at or before 11:59 p.m. of the expiration date on the temporary sign permit notwithstanding any other provision of this Chapter, unless the temporary sign permit for such sign is renewed.

3. *Temporary Signs for Occupants Which Have Relocated.* Any occupant which has relocated may obtain a temporary sign permit for a period not to exceed one hundred twenty (120) days. No renewal shall be permitted for any such temporary sign, and not more than one (1) such temporary sign shall be permitted per occupant. Any such temporary sign shall be permitted and maintained only on the premises at which the occupant was located prior to relocation and only with the permission of the owner of the premises.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-145. Permitting.

1. *Permit Required.* All temporary signs other than political signs must be permitted in accordance with Section 3-192 prior to placement or erection of such sign or banner.

2. *Renewal of Permit.* A temporary sign permit may be renewed once for an additional consecutive fifteen (15) day period; such renewal may be made by the Land Development Office prior to the expiration date of the initial permit and shall require an additional fee.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-146. Temporary Sign Types.

1. *Banners.* An occupant may display one (1) banner (whether attached or detached) at a time. In no event may any banner be displayed unless it is secured on all corners in a manner designed to prevent excessive movements in the wind.

2. *Special Events.*

a. The sponsor of a special event lasting three (3) days or less shall not be required to obtain a sign permit. The sponsor of a special event lasting more than three (3) but no more than thirty (30) days shall obtain a special permit from the Land Development Office prior to the beginning of such an event. Such special permits shall be granted only in increments of fifteen (15) days.

b. The sponsor of a special event may use temporary on-premises signs, flags, lights, pennants, streamers, balloons, and banners during the special event and must meet any conditions placed upon such use by the Land Development Office where a special permit must be obtained.

c. All signs and other devices for a special event shall be promptly removed after the end of the special event and in no case shall such signs and devices remain on display longer than forty-eight (48) hours after the end of the special event.

d. No sponsor may display signs and devices for special events pursuant to this Section on the same premises for more than a cumulative total of thirty (30) days per calendar year. No occupant may display signs and devices for special events pursuant to this Section for more than a cumulative total of thirty (30) days per calendar year. Each special event lasting three (3) days or less shall be counted as three (3) days for the purposes of this Section.

3. *Yard Signs.* All yard signs including but not limited to garage sales, construction or real estate purposes, and sports leagues and excluding political signs shall be limited to fifteen (15) days before and no more than thirty (30) days following the event. Yard signs shall have a sign area of thirty-two (32) square feet or less and shall be subject to the following restrictions:

(a) No such yard sign less than thirty-six (36) inches in height may be placed closer than five (5) feet or ten (10) feet if greater that thirty-six (36) inches to the closest edge of the pavement or curb of any public or private street.

(b) No such yard sign may be placed closer than twenty-five (25) feet to the closet edge of the pavement or curb of two (2) public or private streets.

(c) No person shall paste, paint, print, rope, bill, nail or pin any sign or any advertisement or notice of any kind whatsoever or' cause the same to be done, on any curbstone, or in any portion of part of any sidewalk or street, tree, lamppost, telephone or telegraph pole, awning, porch or balcony or upon any other structure in the limits of any street or public right-of-way in the City including but not limited to any divided roadway median, traffic island and/or traffic circle/roundabout, except such as may be required by this Code or other City ordinance.

(d) No such yard sign may be placed upon or attached in any way to any tree, fence, fence post, utility pole, light pole or rock.

(e) All such political yard signs shall be removed within fifteen (15) days after the election to which they refer has been held. Such signs erected for a primary election may remain only if they continue to be valid for the next general election.

(f) The Office of the Building Official or the Chattanooga Department of Transportation may order the removal or relocation of any temporary sign which may constitute a hazard to the public traveling on public streets.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-147. Temporary Sign Standards.

Temporary signs shall comply with the following standards:

1. No temporary sign may be placed in any handicapped parking space, or any parking space required by any provision of the Chattanooga City Code, the Chattanooga Zoning Ordinance, or state law.
2. Signs may be placed on the sidewalk if four (4) feet of unobstructed sidewalk is provided. Signs may not block driveways or be affixed to utility poles, trees, or traffic control devices, and may not block vision clearance areas.

(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XVIII. SIGN LIGHTING

DIVISION 1. ILLUMINATION STANDARDS

Sec. 3-148. General Requirements.

1. The type of lighting allowed is determined by the sign type and character area. Please reference those tables in Article XX for that information.

2. Exterior illumination, such as floodlights or spotlights, shall be positioned so that none of the light shines onto an adjoining property or in the eyes of motorists or pedestrians.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-149. Indirect Illumination.

1. Indirectly illuminated signs must be shielded from adjacent buildings and streets and cannot cause glare or other nuisances to adjacent land uses or traffic.

2. Projecting light fixtures used for indirectly illuminated signs must not obscure the sign.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-150. Direct Illumination.

1. Direct illumination must provide steady, stationary lighting through translucent materials.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-151. Electrical Wiring.

1. All signs requiring illumination or having electrical service devices or wiring shall be constructed in accordance with the requirements of the National Electric Code and International Building Code standards.

(Ord. No. 14216, § 1, 4-8-25)

DIVISION 2. DIGITAL SIGNS

Any sign which contains light emitting diode (LED), liquid crystal display (LCD) illumination, electronic messaging center (EMC), or any sign capable of its message/display being changed by electronic/remote means shall comply with the following requirements or equivalent:

1. No on-premise sign shall have moving parts, picture tubes, lights or illumination that vary in intensity, flash or change color, except as follows:
    a. Tri-vision and digital signs with moving parts shall be permitted provided that the message shall remain static for no less than eight (8) seconds.

2. Digital signs shall be mounted on permanent sign structures only. Vehicle-mounted LED displays of any type, including parked or moving vehicles, are prohibited.
3. All LED signs and on-premises message centers shall have static images only. Flashing signs, scrolling message signs, or any form of animated images are prohibited. Audible signs are also prohibited.
4. Automated light intensity and dimming controls for LED signs shall be required. Using industry standards, daytime brightness levels should be no more than ninety percent (90%) of maximum intensity. Nighttime brightness shall be reduced to thirty percent (30%) of the maximum light intensity for the LED sign.
5. An EMC must be equipped with an automatic dimmer device and controlled by a light detector. It is the responsibility of the sign owner to demonstrate compliance with brightness/intensity and dimming settings.

Table 2 - Electronic Messaging Center

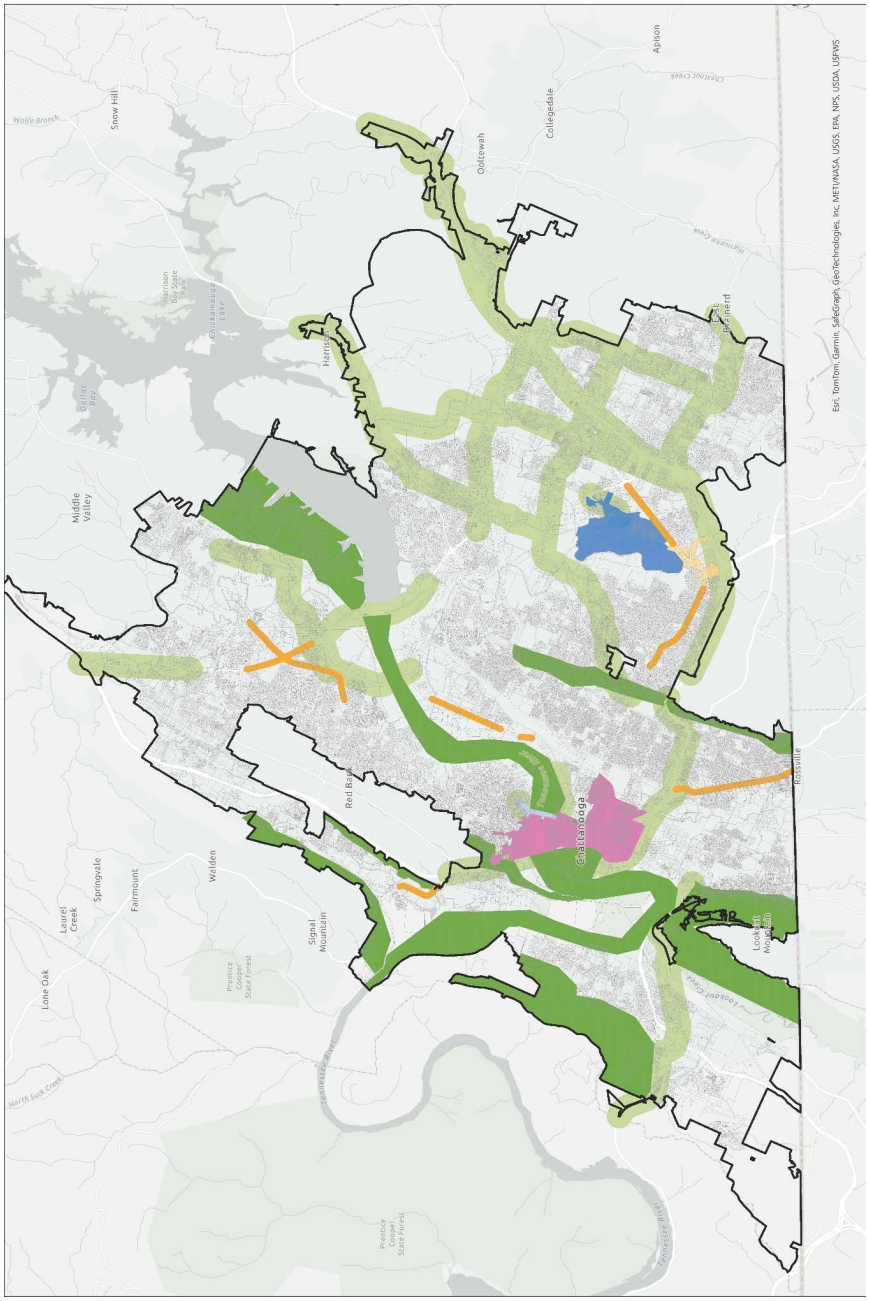
Character Area	*Permitted*	*Min Hold Time*	*Size Limitation*	
			EMCs as a Maximum Percentage of the Total Sign Area Permitted on the Site	*EMCs as a Maximum Percentage of a Single Sign*
General	Y	8 Seconds	50%	80%
Highway Commercial	Y	8 Seconds	80%	100%
Brainerd Overlay	N	-	-	-
Lovell Field Gateway Overlay	N	-	-	-
Residential	N	-	-	-
Scenic Areas/ Corridors	N	-	-	-
Veterans Bridge	N	-	-	-

Maps and legal descriptions of the character areas in Table 2 Electronic Message Center are included in Article XIX.

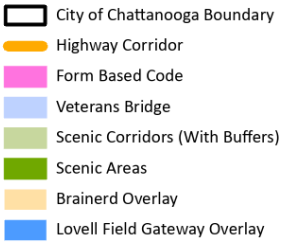
(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XIX. REGULATIONS CHARACTER AREAS

DIVISION 1. OVERVIEW MAP



Legend.



The Character Areas Are as follows:

1. Brainerd Overlay
2. General Character Area
3. Highway Commercial Corridors
4. Lovell Field Gateway Overlay
5. Residential Character Area
6. Scenic Corridors and Areas
7. Veterans Bridge

(Ord. No. 14216, § 1, 4-8-25)

DIVISION 2. BRAINERD OVERLAY

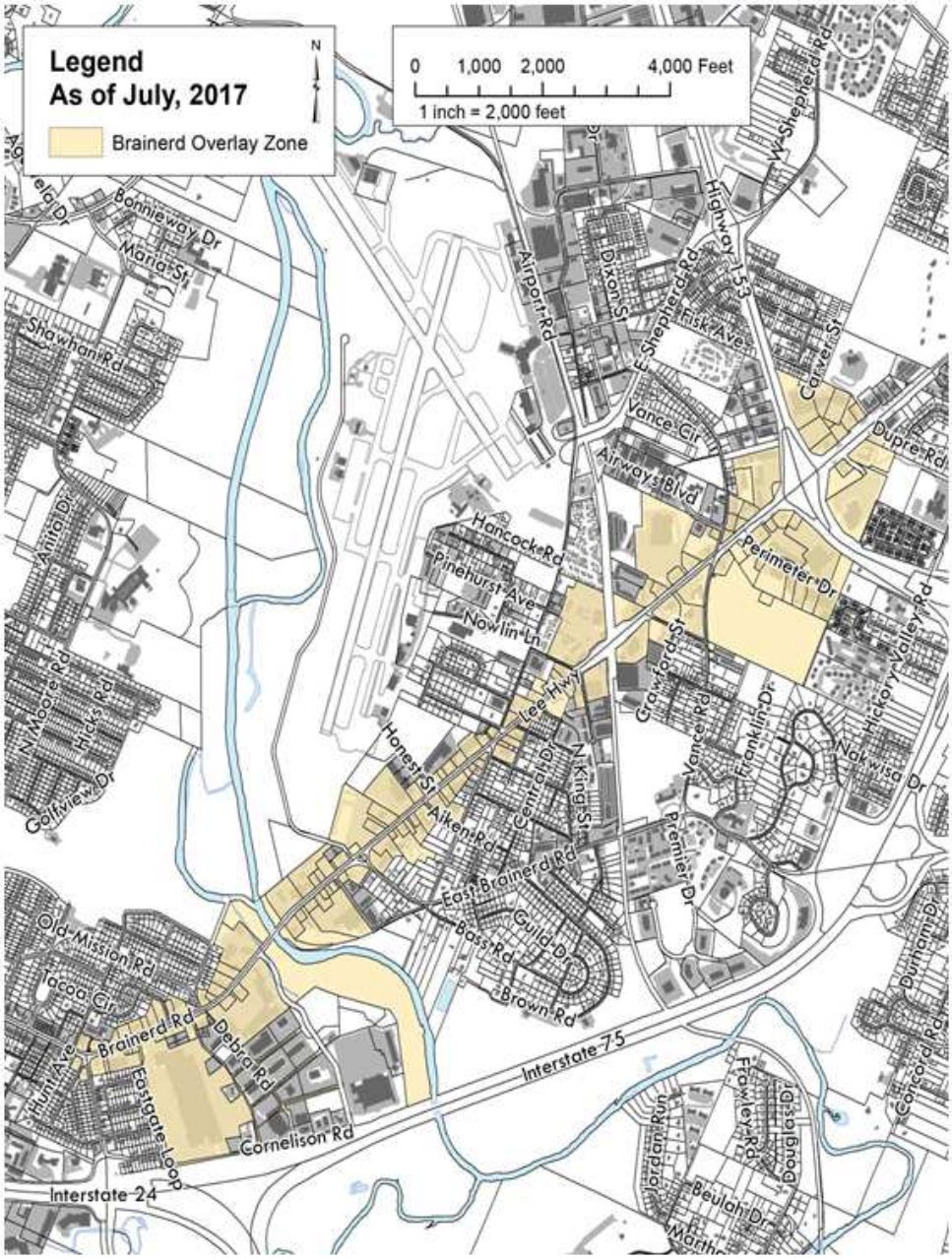
Sec. 3-152. Purpose.

The intent of the Brainerd Road Overlay Zone is to realize the primary objectives of "BRAINERD . . . a vision for Today" - the community's master plan. Adopted by the Chattanooga City Council in 2011, the Plan's goal is to create a vibrant town center along Brainerd Road that is well connected to adjacent neighborhoods. Specific issues identified in the community's master plan and in meetings by the Brainerd community include:

1. Poor visual quality in the corridor is attributed to sign clutter, overhead utility poles and electrical lines, lack of street trees, varying building setbacks, and poor-quality building designs.
2. Poor walkability and pedestrian connectivity due to large parking lots and multiple curb cuts, gaps in the sidewalk network, and lack of landscaping along the street and in parking lots.
3. Unsafe cycling conditions due to multiple car/bicycle conflict points from numerous curb cuts, high traffic speeds, and lack of dedicated bike lanes.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-153. Brainerd Overlay Zone Map.



(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-154. Legal Description.

All properties along Brainerd Road and Lee Highway from the Spring Creek Road intersection to the TN-153 intersection highlighted yellow in Brainerd Overlay Zone Map.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-155. Standards/Regulations.

Regulations are stated in Article XX.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 3. GENERAL CHARACTER AREA

Sec. 3-156. Legal Description.

The General character area includes all parcels that are:

1. Not included in any overlay (Brainerd, Lovell Field, Veteran's Bridge);
2. Not included in Scenic Corridors or Areas;
3. Not included in the Highway Commercial Corridor;
4. Not included in Form Based Code;
5. Not residentially zoned.

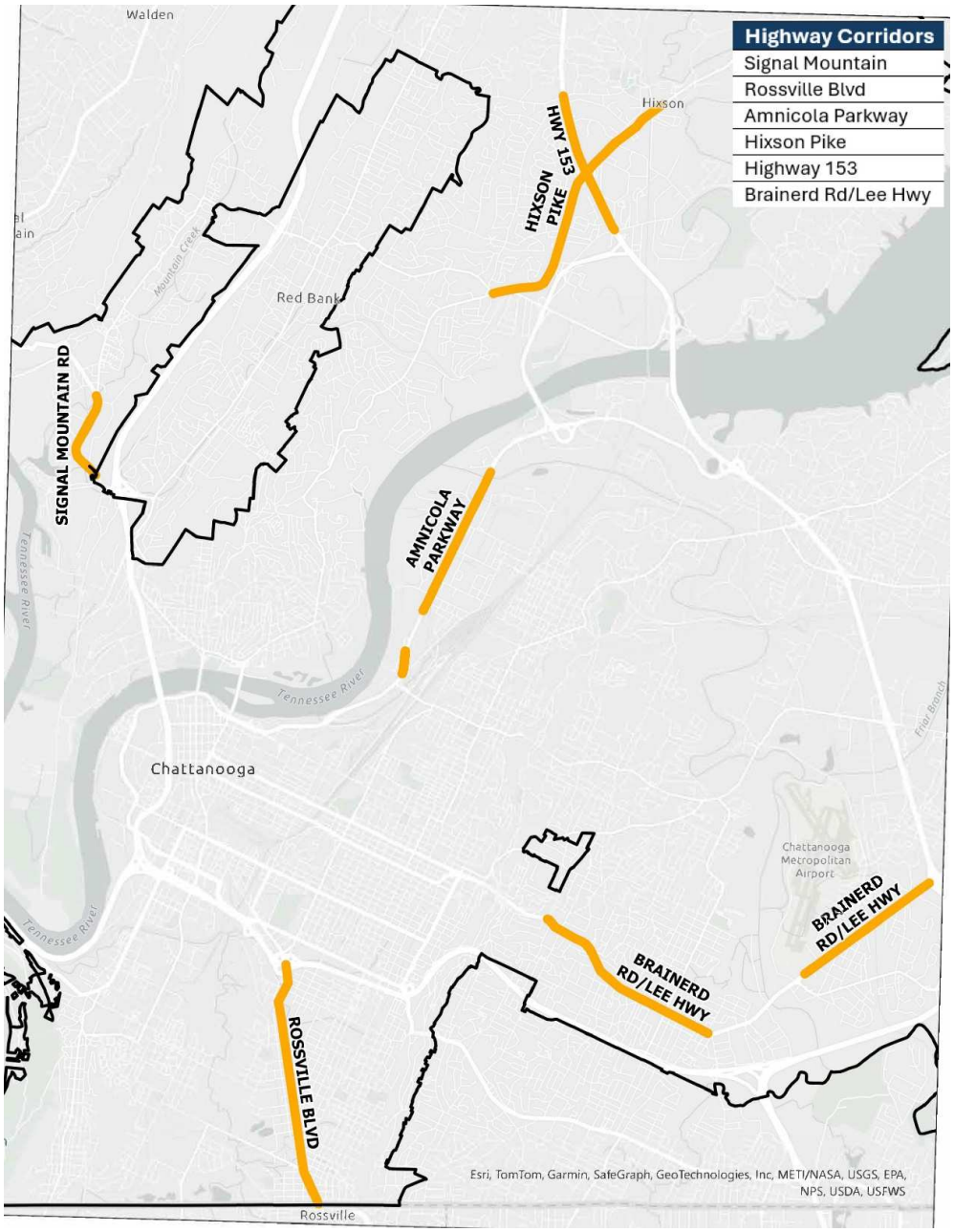
The General Character Area regulates all other parcels that do not fit into the above.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-157. Standards/Regulations.

Regulations are stated in Article XX.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 4. HIGHWAY COMMERCIAL CORRIDORS (BILLBOARDS)

Sec. 3-158. Highway Commercial Corridor Map.



(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-159. Legal Description.

Highway Commercial Corridors shall mean the major commercially zoned parcels designated herein as follows:

1. Rossville Boulevard from its intersection with Interstate 24 generally southward to the city limits.
2. Brainerd Road/Lee Highway from its intersection Tunnel Boulevard generally eastward to its intersection with Shallowford Road.
3. Signal Mountain Road the city limits with Red Bank, Tennessee to Mountain Creek Road; excluding that portion which falls within the Scenic Corridor along Highway 153.
4. Amnicola Highway from its intersection with Riverfront Parkway to the southernmost or westernmost edge of the property presently occupied by Chattanooga State Community College, excluding that portion which falls within the Scenic Corridor along Dupont Parkway.
5. Hixson Pike from its intersection with Ashland Terrace to its intersection with Adams Road.
6. Highway 153 from its intersection with Gadd Road to its intersection with Dupont Parkway.

All measurements herein to an intersection of two (2) or more roads shall be to the center of such intersection.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-160. Standards/Regulations.

Regulations are stated in Article XX.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 5. LOVELL FIELD GATEWAY OVERLAY

Sec. 3-161. Purpose.

The purpose of the Lovell Field Gateway Overlay Zone is to realize the primary objectives of "BRAINERD . . . a vision for Today" - the community's master plan. Adopted by the Chattanooga City Council in 2011, the Plan's goal is to create a vibrant town center along Brainerd Road that is well connected to adjacent neighborhoods. Specific issues and opportunities identified in the community's master plan and in meetings by the Brainerd community include:

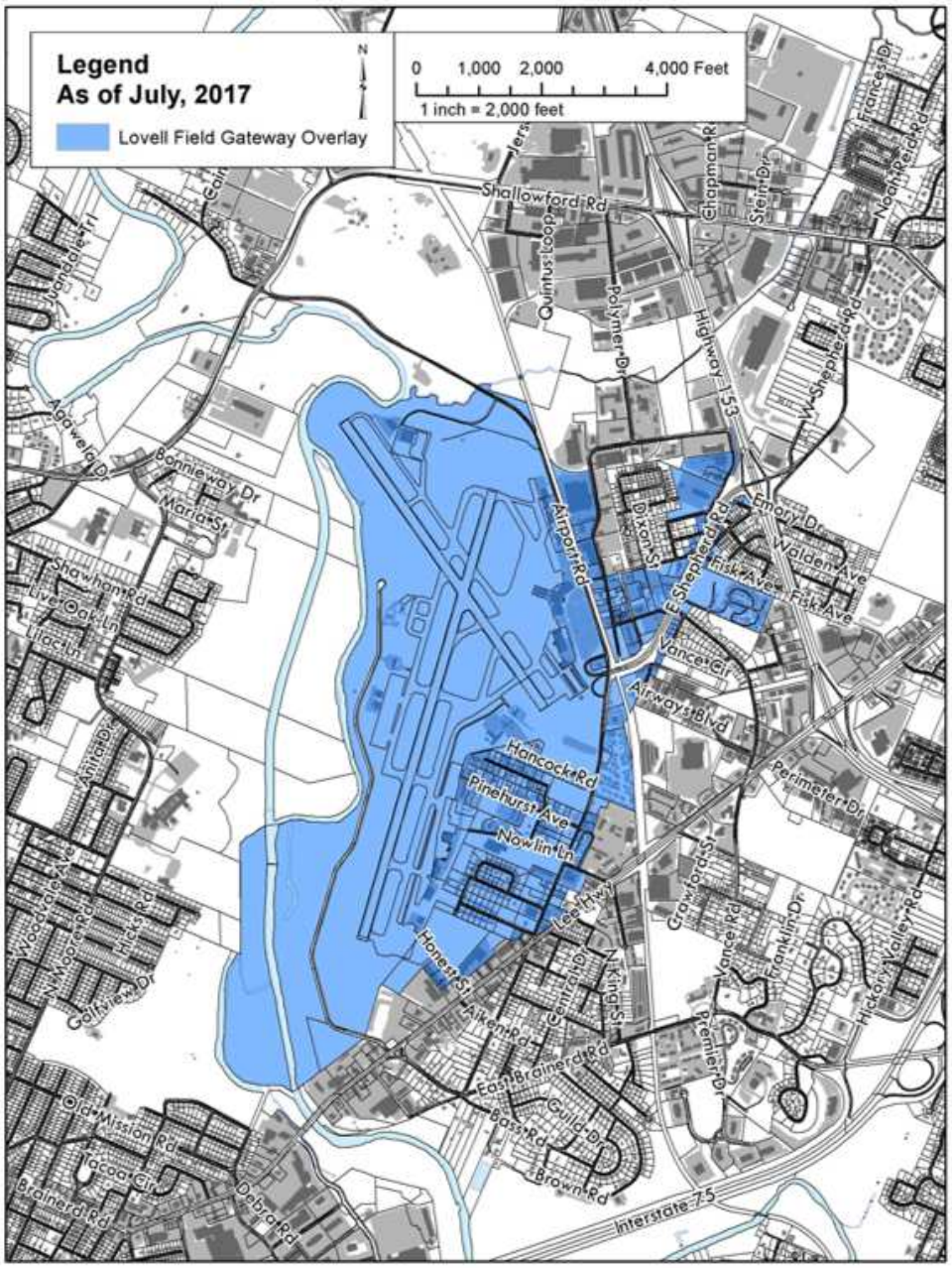
a. Poor visual quality in the corridor is attributed to sign clutter, overhead utility poles and electrical lines, lack of street trees, varying building setbacks, and poor-quality building designs.

b. Poor walkability and pedestrian connectivity due to large parking lots and multiple curb cuts, gaps in the sidewalk network, and lack of landscaping along the street and in parking lots.

c. Unsafe cycling conditions due to multiple car/bicycle conflict points from numerous curb cuts, high traffic speeds, and lack of dedicated bike lanes.

d. Enhance the corridor as it acts as a Gateway into the City of Chattanooga.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-162. Lovell Field Gateway Map.



(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-163. Legal Description.

That portion of the area indicated as the "FAA Aviation Overlay District" on the AOD Map, which is located within the jurisdictional limits of the City of Chattanooga.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-164. Standards/Regulations.

Regulations are stated in Article XX.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 6. RESIDENTIAL

Sec. 3-165. Legal Description.

All properties with zones listed under Residential Zones in Chapter 38 Article III Section 38-11. Zones.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-166. Standards/Regulations.

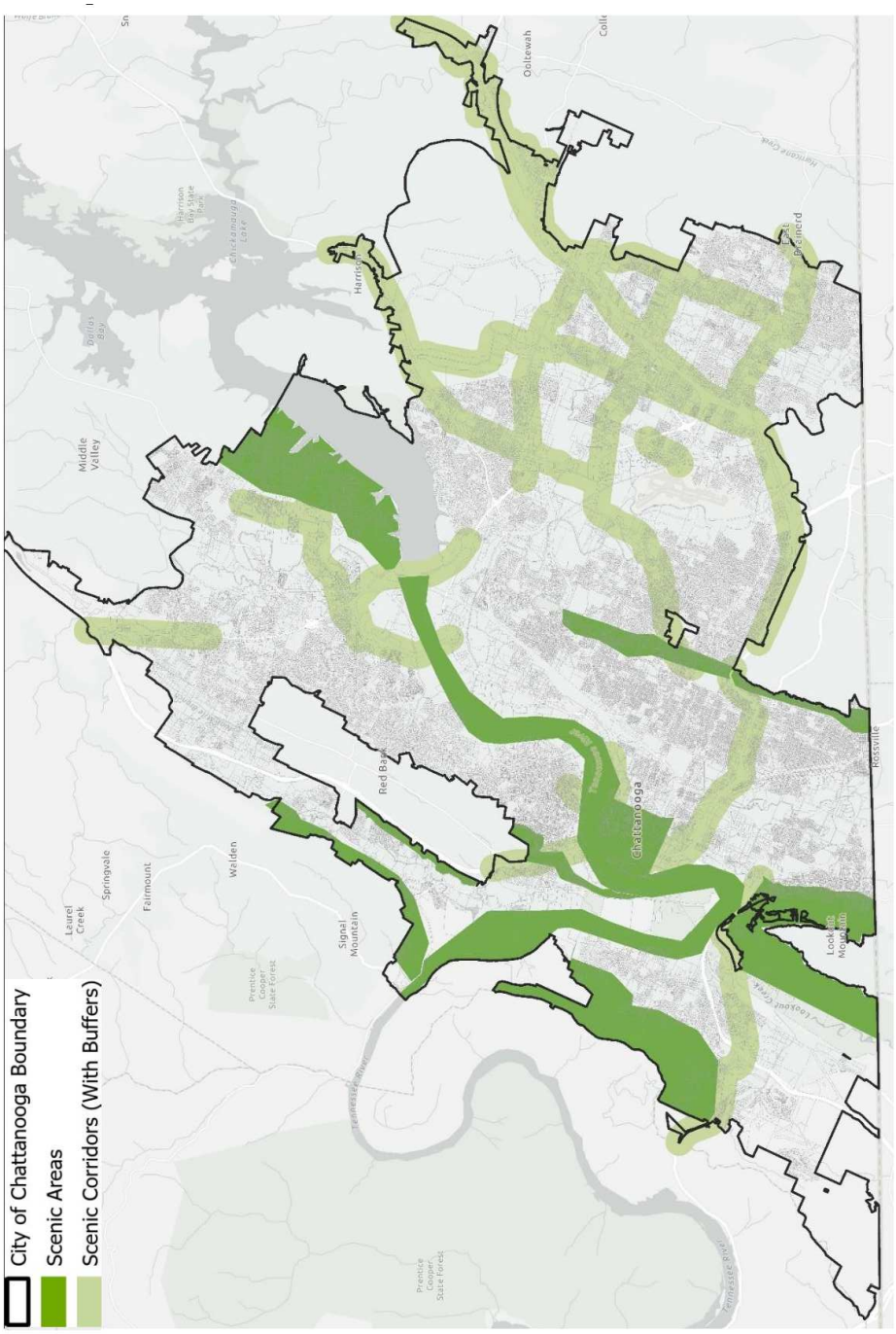
Regulations are stated in Article XX.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 7. SCENIC AREAS AND CORRIDORS

Sec. 3-167. Purpose.

To preserve the scenic nature of the City of Chattanooga.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-168. Map.


City of Chattanooga Boundary
Scenic Areas
Scenic Corridors (With Buffers)
Ooltewah
Middle Valley
Red Bank
Chattanooga
Hixson
Walden
Signal Mountain
Fairmount
Springvale
Laurel Creek
Prentice Cooper State Forest

Sec. 3-169. Legal Description.

1. *Scenic Corridors.* There are hereby established Scenic Corridors, which shall consist of certain strips of land six hundred sixty (660) feet on either side of the outermost edge of the right-of-way of all of the roads, routes and rivers specified in this Article, within which Scenic Corridors all off-premise signs are regulated as set forth herein.

a. Interstate 24 from the city limits south and west of the Tiftonia area to the center of its junction with U.S. Highway 27, except for an area one thousand three hundred twenty (1,320) feet on either side of the intersection of Interstate 24 and U.S. Highway 41 at the Tiftonia exit (Cummings Highway).

b. Cummings Highway/Lookout Mountain Pike from the City limits west of Lookout Valley to its intersection with Highway 58.

c. Highway 27 and any extension thereof, including the "Corridor J" roadway, from the southern bank of the Tennessee River northward to the northernmost Chattanooga city limits to the extent that said extension is within the city limits of Chattanooga.

d. The Tennessee River from Chickamauga Dam downstream to the city limits.

e. Within the area of Veterans Bridge and its approaches beginning at the midpoint of the intersection of Barton Avenue and Crewdson Street and extending southward four hundred seventy-five (475) feet on either side of the centerline of Barton Avenue across Veterans Bridge at the Tennessee River to its intersection with Fourth Street.

f. Along Interstates 24 and 75 from one hundred fifty (150) feet east of Dodds Avenue eastward to the city limits as they now exist or may hereafter be expanded, except for an area one thousand three hundred twenty (1,320) feet in either direction along Interstate 75 from the intersection with Lee Highway (U.S. Highway 11 and 64) at Ooltewah and State Route 2 (Bonny Oaks Drive).

g. The Dupont Parkway from its north end, at the center of its intersection with Highway 153, generally south and east across Access Road and across the C.B. Robinson Bridge to the center of its intersection with Amnicola Highway, including all entrance and exit ramps thereto on the north side of Amnicola Highway.

h. The airport connector road from State Highway 153 generally southward to Airport Road.

i. Shallowford Road from its intersection with Gunbarrel Road to the intersection of Jenkins Road.

j. Riverside Drive generally northwardly and eastwardly from its intersection with Broad Street to the point where it crosses Citico Creek.

k. All of Jenkins Road lying within the Chattanooga city limits.

l. East Brainerd Road from its intersection with Concord Road and extending South and East to the City Limits.

m. Highway 153 from its intersection with Amnicola Highway to its intersection with Hamill Road.

n. Cassandra Smith Road from its intersection with Hixson Pike to its intersection with Hamill Road.

o. Hamill Road from its intersection with Hixson Pike to Big Ridge Road.

p. Highway 153 from its intersection with Grubb Road going north to the City limits.

q. Hickory Valley Road in its entirety.

r. Jersey Pike in its entirety.

s. Shallowford Road in its entirety.

t. Bonny Oaks Drive from its intersection with Highway 58 eastwardly to its intersection with Old Lee Highway at Interstate 75.

u. Highway 58 from its intersection with Jersey Pike northwardly to the City limits.

v. All of Harrison-Ooltewah Road lying within the Chattanooga City limits.

w. All of Old Lee Highway lying within the Chattanooga City limits.

x. All of Old Cleveland Pike lying within the Chattanooga City limits.

y. All of Hunter Road lying within the Chattanooga City limits.

z. All of Mountain View Road lying with the Chattanooga City limits.

aa. All of Snow Hill Road lying within the Chattanooga City limits.

bb. All of Ooltewah-Georgetown Road lying within the Chattanooga City limits.

cc. Lee Highway from its intersection with Hunter Road southeastwardly to the City limits towards Bradley County; and Apison Pike.

2. *Scenic areas.* There are hereby established the following Scenic Areas, in which off-premise signs shall be prohibited:

a. The entirety of that portion of downtown Chattanooga which is bounded on the north and west by the Tennessee River, on the south by Main Street from its westernmost extremity (and extended by an imaginary line from such extremity directly to the Tennessee River) to its intersection with Market Street, and on the east by Market Street from its intersection with Main Street northwardly to King Street, and further on King Street from its intersection with Market Street to its intersection with 8th Street, thence westwardly along 8th Street to its intersection with Houston Street, thence northwardly along Houston Street to its intersection with 3rd Street and extended therefrom by an imaginary line directly to the Tennessee River.

b. The entirety of the slopes of all ridges and mountains identified herein to the extent that such are located within the city limits, and including those areas more specifically illustrated in yellow on the topographic map attached hereto and specifically adopted as part of this Chapter. (Topographic map is in the Office of the Clerk of the City Council.) The mountains and ridges included within such Scenic Areas are Lookout Mountain, Signal Mountain/Walden's Ridge, Elder Mountain/ Raccoon Mountain, Missionary Ridge, Stringers Ridge, Godsey Ridge and Big Ridge.

c. Barton Avenue to its intersection with Hixson Pike; Hixson Pike from its intersection with Barton Avenue to its intersection with Lupton Drive; Cherokee Boulevard from its intersection with Market Street to the Stringers Ridge Tunnel; Amnicola Highway from its intersection with the east side of Chattanooga State to Access Road; Hixson Pike from its intersection with Middle Valley Road to the City limits; Main Street from its intersection with Market Street to Holtzclaw Avenue; Holtzclaw Avenue to its intersection with Houston Street; East Brainerd Road from its intersection with Concord Drive to the City limits.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-170. Standards/Regulations.

1. Regulations are stated in Article XX.

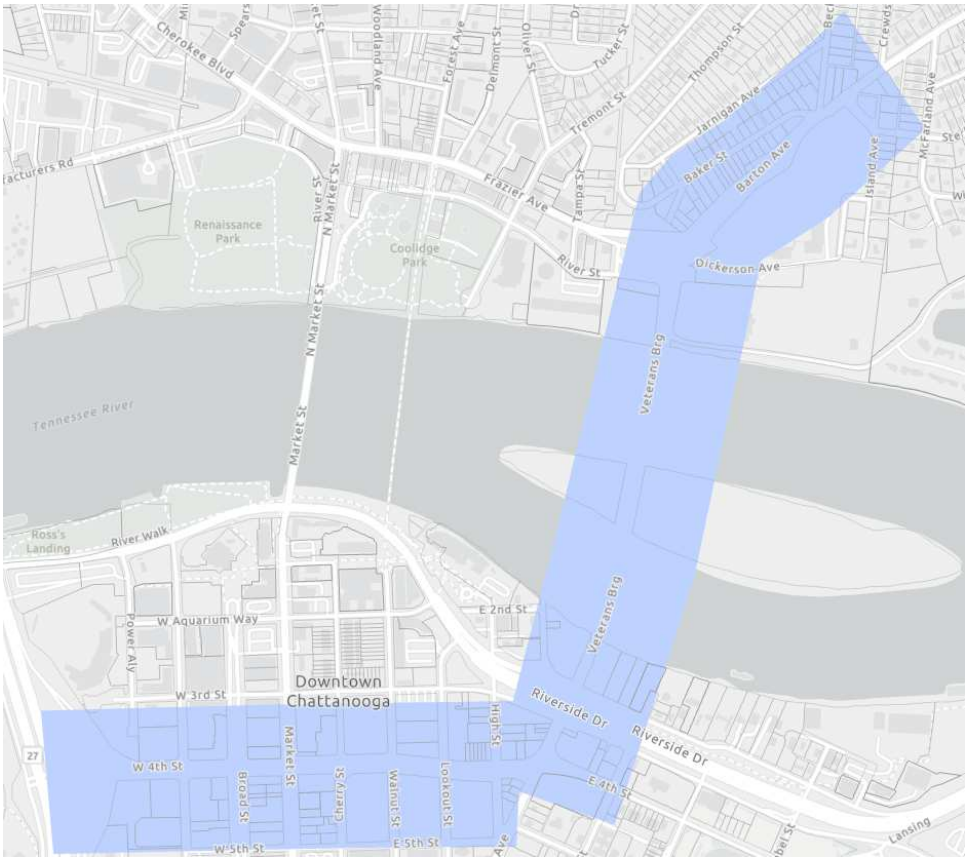
2. Off-premise signs in Scenic Areas and along Scenic Corridors prohibited. No off-premise signs shall be permitted within the Scenic Corridors and Areas established along the roads, routes, and rivers, and no off-premise signs shall be permitted outside of any such Scenic Corridors and Areas which are principally oriented toward and are designed or situated to be observed from any of the following roads, routes or rivers.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 8. VETERANS BRIDGE

Sec. 3-171. Purpose.

To capture the unique area that is Veterans Bridge.

Sec. 3-172. Map.



(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-173. Legal Description.

Within the area of Veterans Bridge and its approaches beginning as the midpoint of the intersection of Barton Avenue and Crewdson Street and extending southward four hundred seventy-five (475) feet on either side of the centerline of Barton Avenue across Veterans Bridge at that Tennessee River and

continuing along four hundred seventy-five (475) feet on either side of the centerline of Georgia Avenue to Fourth Street; thence continuing westward to include an area four hundred seventy-five (475) feet on either side of the centerline of Fourth Street to Interstate Highway 24.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-174. Standards/Regulations.

1. *Existing signs.* Signs existing within the control district as of June 12, 1984, which may fail to conform with these new regulations may continue to be used so long as they are not enlarged, lighted in not low lighted, or otherwise materially altered, except that such signs may be replaced, remodeled or otherwise improved if, in the opinion of the Code Official, such work does not violate the intent of this provision. Examples of permitted improvements might include replacement of a wooden structure with a steel structure; replacement of multiple supports with a single steel post, and other such modifications which result in a cleaner, less cluttered appearance.

2. *Exclusions from Article.* The following shall not be subject to the provisions of this Article:

a. Signs provided or required by a duly constituted governmental body, including traffic or similar regulatory devices, or legal notices.

b. Flags or emblems of a political, philanthropic, educational, or religious organization.

c. Memorial plaques or tablets.

d. Holiday decorations which are clearly incidental to and customarily and commonly associated with any national, local, or religious holiday.

(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XX. ON-PREMISES PERMITTED SIGN REGULATIONS

DIVISION 1. OVERVIEW

Sec. 3-175. General Regulation of On-Premises Signs.

1. Other than signs which are prohibited under the provisions of Article XVI, or which are permitted as temporary signs pursuant to Article XVII, this Article shall regulate the general use of on-premises signs.

2. Signs that are not explicitly noted under permitted signs within this Article are prohibited.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-176. Permitted Signs by Character Area.

Sign Types	*Brainerd Overlay*	*General*	*Highway Commercial*	*Lovell Field Overlay*	*Residential*	*Scenic Areas/ Corridors*	*Veterans Bridge*
Awning	Y	Y	Y	Y	N	Y	Y
Banner	Y	Y	Y	Y	N	Y	Y
Canopy	Y	Y	Y	Y	N	Y	Y
Freestanding	O	Y	Y	O	N	Y	Y
Marquee Sign	Y	Y	Y	Y	N	Y	Y
Monument	Y	Y	Y	Y	Y	Y	Y
Projecting Signs	Y	Y	Y	Y	N	Y	Y
Wall Signs	Y	Y	Y	Y	N	Y	Y

Sign Types	*Brainerd Overlay*	*General*	*Highway Commercial*	*Lovell Field Overlay*	*Residential*	*Scenic Areas/ Corridors*	*Veterans Bridge*
Window & Door	Y	Y	Y	Y	Y	Y	Y

Y - Permitted

N - Not Permitted

O - Some Permitted
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-177. Number of Signs and Sign Types.

1. The number of attached signs for a premises, or for each occupant of a premises, shall not be limited, but the total sign area of attached signs shall not exceed 20% of the wall facade.

2. In the event there is more than one (1) tenant on the premises, attached signs on the premises for a particular tenant shall be located only on the portions of the building directly outside the area occupied by that tenant or on portions of the building which are common areas.

3. Buildings where there are multiple tenant centers, each business may not be entitled to its own freestanding sign.

4. Retail commercial developments that contain a min of 25 acres under the same ownership shall be allowed one (1) freestanding sign at each primary entrance of development as long as the entrance is controlled by a traffic signal.

5. For premises which have frontage along any single public road or public right-of-way more than three hundred fifty (350) linear feet along such road or right-of-way and which have more than two (2) occupants, all of the provisions of this Article shall apply, except that the sign area of a freestanding sign located along such frontage shall not exceed three hundred (300) square feet. In addition, if any premises which has more than two (2) occupants has less than three hundred fifty (350) linear feet of frontage along a public road or public right-of-way but has a developed store or building frontage of greater than five hundred (500) linear feet, then the sign area of a detached sign shall not exceed three hundred (300) square feet.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-178. Use of Combustible Materials.

1. Sign materials must comply with Section H107 of the 2018 International Building Code.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 2. ATTACHED SIGNS

Within the Character Areas, the sign types within this Division are categorized as attached signs.

Sec. 3-179. Attached Sign Regulations.

1. *Signs Extending Over Public R-O-W.* Notwithstanding the foregoing setback limitations, any sign which is attached to a building whose building line adjoins a public sidewalk or public right-of-way may extend out over the public sidewalk or right-of-way, but not over any public street and not greater than the distance otherwise permitted hereunder. Notwithstanding the foregoing, any owner from whose property any sign may project over any public right-of-way shall, prior to erecting or installing such sign, obtain a temporary use permit from the Transportation Department.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-180. Awning.

SIGN TYPE: AWNING		
REGULATION	**GENERAL - HIGHWAY COMMERCIAL - SCENIC - VETERANS BRIDGE**	**BRAINERD OVERLAY - LOVELL FIELD OVERLAY**
Sign Count	1 per building at the main pedestrian entrance; or 1 per tenant suite with an exterior pedestrian entrance, if applicable.	
Sign Area	75% valance area maximum 25% sloping portion area maximum	
Sign Height/Placement	Minimum clearance of 10' between the ground & the lowest portion of the awning	
Maximum Width	Cannot exceed width of tenant space or building wall	
Illumination Type	Indirect	
Setback from R-O-W	If attached to a building whose building line adjoins a public sidewalk or public R-O-W may extend out over, but not over any public street.	
Materials	N/A	Materials that complement the materials of the associated building shall be used. Signs shall be located to fit within the architectural elements such as in the lintel or sign frieze that separates the ground level from the upper facade, on the upper facade walls, or projecting from the face of the building.
Additional Notes	Lettering may not extend beyond the awning and a single row of lettering may not cover both the valence and sloping portion.	

(Ord. No. 14216, § 1, 4-8-25)

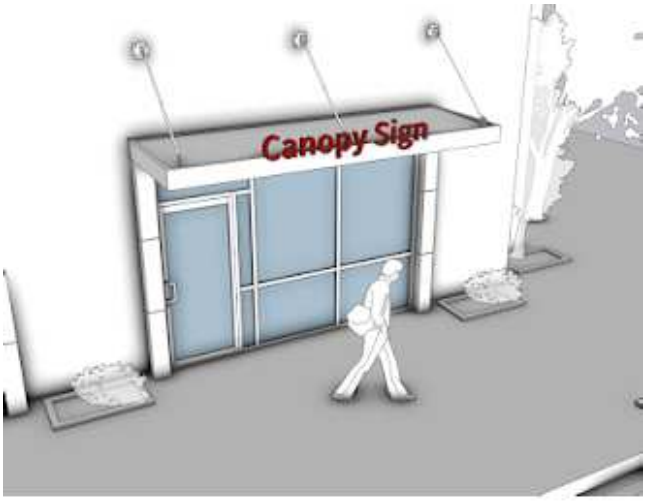
Sec. 3-180.1. Additional Regulations.

1. Prohibited in Residential Character Areas.

2. All measurements shall be in accordance with Sec. 3-139.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-181. Canopy.

<table>
<tr><td colspan="3">SIGN TYPE: CANOPY</td></tr>
<tr><td colspan="3"> 
</td></tr>
<tr><td>REGULATION</td><td>GENERAL - HIGHWAY COMMERCIAL - SCENIC - VETERANS BRIDGE</td><td>BRAINERD OVERLAY - LOVELL FIELD OVERLAY</td></tr>
<tr><td>Sign Count</td><td colspan="2">1 per building at main pedestrian entrance, or 1 per tenant suite with an exterior pedestrian entrance, if applicable.</td></tr>
<tr><td>Sign Area</td><td colspan="2">1 SF per linear foot of width of ground floor glazing over which the awning is located or 1 SF per linear foot of width tenant suite pedestrian entrance doors, whichever is bigger.</td></tr>
<tr><td>Height</td><td colspan="2">Minimum clearance of 10' between the ground & the lowest portion of the Canopy</td></tr>
<tr><td>Placement</td><td colspan="2">Affixed above or on front face of Canopy</td></tr>
<tr><td>Illumination Type</td><td colspan="2">Indirect & Direct</td></tr>
<tr><td>Setback from R-O-W</td><td colspan="2">If attached to a building whose building line adjoins a public sidewalk or public R-O-W may extend out over, but not over any public street.</td></tr>
<tr><td>Materials</td><td>N/A</td><td>Materials that complement the materials of the associated building shall be used.</td></tr>
</table>

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-181.1. Additional Regulations.

1. *Prohibited in Residential Character Areas.*

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-182. Marquee Signs.

SIGN TYPE: MARQUEE		
REGULATION	**GENERAL - HIGHWAY COMMERCIAL - SCENIC - VETERANS BRIDGE**	**BRAINERD OVERLAY - LOVELL FIELD OVERLAY**
Sign Count	1 per building at main pedestrian entrance.	1 per building at main pedestrian entrance.
Sign Area	1 SF per linear foot of width of ground floor glazing over which the awning is located or 1 SF per linear foot of width tenant suite pedestrian entrance doors, whichever is bigger.	1 SF per linear foot of width of ground floor glazing over which the awning is located or 1 SF per linear foot of width tenant suite pedestrian entrance doors, whichever is bigger.
Placement	Minimum clearance of 10' between the ground & the lowest portion of the Marquee	Minimum clearance of 10' between the ground & the lowest portion of the Marquee
Illumination Type	Indirect & Direct	Indirect & Direct
Setback from R-O-W	If attached to a building whose building line adjoins a public sidewalk or public R-O-W may extend out over, but not over any public street.	If attached to a building whose building line adjoins a public sidewalk or public R-O-W may extend out over, but not over any public street.
Materials	N/A	Metal or noncombustible materials that complement the materials of the associated building shall be used.

Additional Notes	N/A	Signs shall be located to fit within the architectural elements such as in the lintel or sign frieze that separates the ground level from the upper facade, on the upper facade walls, or projecting from the face of the building.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-183. Projecting Signs.

SIGN TYPE: PROJECTING SIGN

REGULATION	**GENERAL**	**HIGHWAY COMMERCIAL**	**VETERANS BRIDGE**	**SCENIC AREAS/ CORRIDORS**	**BRAINERD OVERLAY - LOVELL FIELD GATEWAY OVERLAY**
Sign Count	1 for each public R-O-W or 1 per building, or 1 building mounted sign per tenant suite with an exterior pedestrian entrance, if applicable.		1 per building, or 1 building mounted sign per tenant suite with an exterior pedestrian entrance, if applicable.		
Max Sign Area (Per Sign Face)	175 SF		32 SF		16 SF
Sign Faces	2		2		
Sign Height/ Placement	Min clearance of 10' between the ground and the lowest portion of the sign.		Min clearance of 10' between the ground and the lowest portion of the sign and located a min of 12" below the 2nd story windowsill or top of the building, whichever is lower.		

Angle at Facade	90 degrees		90 degrees		
Projection	4' Maximum		Projects outward from a building or other structure & extends more than 24" horizontally from the plane of the building wall. Maximum of 4' from the building façade, inclusive of bracket depth.		
Illumination Type	Direct & Indirect	Direct & Indirect	Direct & Indirect	Indirect	Indirect
Setback from R-O-W	If attached to a building whose building line adjoins a public sidewalk or public R-O-W may extend out over, but not over any public street.				
Materials	N/A	N/A	N/A	N/A	Materials that complement the materials of the associated building shall be used. Signs shall be located to fit within the architectural elements such as in the lintel or sign frieze that separates the ground level from the upper facade, on the upper facade walls, or projecting from the face of the building

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-183.1. Additional Regulations.

1. Prohibited in Residential Character Areas.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-184. Wall Signs.

SIGN TYPE: WALL SIGN				
REGULATION	**BRAINERD OVERLAY - LOVELL FIELD GATEWAY OVERLAY**	**GENERAL - HIGHWAY COMMERCIAL**	**RESIDENTIAL**	**SCENIC AREAS/ CORRIDORS - VETERANS BRIDGE**
Sign Area	1.5 SF per linear foot of building facade	20% of Wall Facade		
Sign Height/ Placement	Cannot exceed height of building wall			
Projection	Max of 1' from the building facade			
Illumination Type	Indirect	Direct & Indirect	Indirect	Indirect
Materials	Materials that complement the materials of the associated building shall be used.	N/A		

Additional Notes	Signs shall be located to fit within the architectural elements such as in the lintel or sign frieze that separates the ground level from the upper facade, on the upper facade walls, or projecting from the face of the building. Banners shall only remain in place for 30 days and require a sign permit	N/A

(Ord. No. 14216, § 1, 4-8-25)

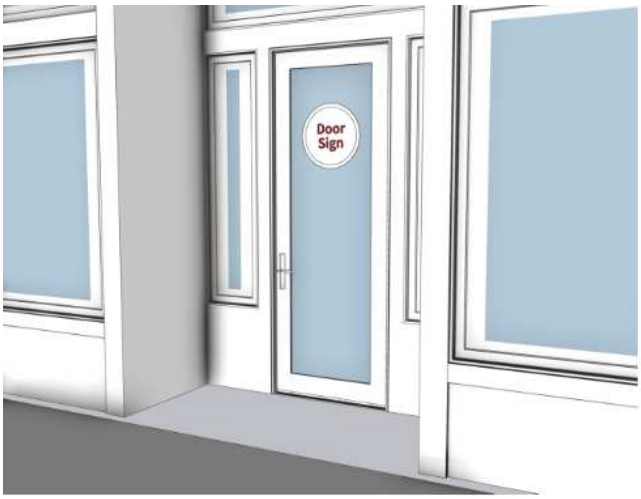
Sec. 3-184.1. Additional Regulations.

1. Prohibited in Residential Character Areas.

2. Attached banners and mural painted wall signs fall under wall signs and shall adhere to the same standards.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-185. Window and Door Signs.

SIGN TYPE: WINDOW AND DOOR


REGULATION	BRAINERD OVERLAY - GENERAL - HIGHWAY COMMERCIAL - LOVELL FIELD GATEWAY OVERLAY - RESIDENTIAL - SCENIC - VETERANS BRIDGE
Sign Area	25% of Window/Door Area
Sign Height/ Placement	Cannot exceed height of window
Illumination Type	None

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-185.1. Additional Regulations.

1. Signage must be maintained in a clean and orderly condition.

2. Window signage shall not obstruct the visibility through the window in a manner that impairs pedestrian or vehicular safety.

3. Signage must be placed in a manner that allows for clear visibility through the window for security and safety purposes.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 3. DETACHED SIGNS

1. The sign types within this Division are categorized as detached signs.

2. Detached Electronic Messaging Centers must be within the cabinet or facade. Projecting is prohibited.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-186. Freestanding.

SIGN TYPE: FREESTANDING			
REGULATION	**GENERAL - HIGHWAY COMMERCIAL**	**VETERANS BRIDGE**	**SCENIC AREAS/CORRIDORS**

Sign Count: Max Number per Building	1 Per R-O-W	1 Per R-O-W	1 Per R-O-W
Sign Area	175 SF	A max of 30 SF or 1 SF of sign area for every 3 lineal feet of public street frontage, whichever is greater.	60 SF
Sign Height/ Placement	5' R-O-W setback: 20' in height max For each additional foot of setback beyond 5' from R-O-W, a freestanding sign can extend an additional one foot in height up to a max of 30.	A max of 20' above finished grade at the base of the sign or curb level at the nearest frontage on a public street, whichever provides greatest height, shall be permitted on the south side of the river; on the north side of the river such signs shall not project above the road level of Veterans Bridge, or 20' above finished grade at the base of the sign or curb level at the nearest frontage on a public street, whichever is greater.	6'
Illumination Type	Direct & Indirect	No amber, blue, red or green lights shall be permitted.	Indirect
Setback from R-O-W	Sign Area < 40 SF: 5' from R-O-W Sign Area > 40 SF: 10' from R-O-W Sign Area > 100 SF: 15' from R-O-W		
Max Sign Faces	2		
Additional Notes	If a detached sign is maintained on premises which fronts upon 2 or more public streets and any part of such sign is located within 50' of the closest edge of the R-O-W of 2 or more public streets, 1 detached sign shall be allowed for such premises		

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-186.1. Additional Regulations.

1. Freestanding signs are prohibited in the Brainerd Overlay, Lovell Field Gateway Overlay, and Residential character areas.

2. Detached banners and pole signs fall under freestanding signs.

3. Measurements are in accordance with Section 3-139.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-187. Monument.

<table>
<tr><td colspan="6">SIGN TYPE: MONUMENT</td></tr>
<tr><td colspan="6">
</td></tr>
<tr><td>REGULATION</td><td>BRAINERD OVERLAY - LOVELL FIELD GATEWAY OVERLAY</td><td>GENERAL - HIGHWAY COMMERCIAL</td><td>RESIDENTIAL</td><td>SCENIC AREAS/CORRIDORS</td><td>VETERANS BRIDGE</td></tr>
<tr><td>Min Setback</td><td>18'</td><td colspan="3">Sign Area < 40 sq. ft.: 5' from R-O-W
Sign Area > 40 sq. ft.: 10' from R-O-W
Sign Area > 100 sq. ft.: 15' from R-O-W</td><td></td></tr>
<tr><td>Max Width</td><td>10'</td><td colspan="2">N/A</td><td colspan="2">10'</td></tr>
</table>

Max Number of Signs per Building	1 Per R-O-W	1 Per R-O-W Retail commercial developments that contain a min of 25 acres under the same ownership shall be allowed 1 freestanding sign at each primary entrance of said development as long as the entrance is controlled by a traffic signal	1 double-faced sign or 2 single-faced signs may be placed at an entrance to a residential subdivision	1 Per R-O-W	
Sign Area	25 SF per face and 50 SF for a two-sided monument sign	100 SF	< 8 acres or 30 lots: 40 sf > 8 acres or 30 lots: 100 sf	60 SF	
Sign Height	6'	5' from R-O-W: 20' For each additional foot of set-back, a freestanding sign may extend an additional 1' in height, up to a max of 30' in height	< 8 acres or 30 lots: 5' > 8 acres or 30 lots: 10'	6'	5' from R-O-W: 20' For each additional foot of set-back, a freestanding sign may extend an additional 1' in height, up to a max of 30' in height

Illumination Type	Indirect	Direct & Indirect	Indirect	Direct & Indirect	Indirect, lighting fixtures illuminating signs and billboards shall be aimed and shielded so that properties are protected from light trespass or spillage to the max extent practicable
Additional Notes	Monument signs shall not be located in the sight distance triangle or otherwise obstruct lines of sight for vehicular or pedestrian traffic. Materials that complement the materials of the associated building shall be used.	If a detached sign is maintained on premises which fronts upon 2 or more public streets and any part of such sign is located within 50' of the closest edge of the R-O-W 2 or more public streets, only one 1 detached sign shall be allowed for such premises			

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-187.1. Additional Regulations.

Prohibited in Residential Character Areas.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 4. SPECIAL PURPOSE SIGNS

Sec. 3-188. Business Directional Signage.

1. For a location at the intersection of a minor street and a through street where a business, which is located on a minor street and which is within one thousand (1,000) feet of the major thoroughfare, is not visible from the through street upon approaching the intersection, a business directional sign may be placed upon the public right-of-way subject to the following provisions:

a. Such directional signs shall be constructed by the City and shall be of the type determined by the Chattanooga Department of Transportation.

b. Businesses otherwise complying with all provisions of this Chapter may request that their sign be placed on the business directional sign.

c. No such sign shall be erected without the approval of the Chattanooga Department of Transportation.

d. Business directional signs are provided by the City for the convenience of the City and are subject to removal at any time.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-189. Drive-Thru.

DRIVE-THRU DETACHED SIGNS		
REGULATION	**BRAINERD OVERLAY - LOVELL FIELD OVERLAY**	**GENERAL - HIGHWAY COMMERCIAL - SCENIC - VETERANS BRIDGE**
Sign Area	90 SF per "Drive-Thru" window or "Drive-Thru" lane	90 SF per "Drive-Thru" window or "Drive-Thru" lane
Sign Height	8'	8'
Illumination Type	Indirect	Direct & Indirect
Setback from R-O-W	On-premises & situated to be viewed by customers in the drive-thru lane only	On-premises & situated to be viewed by customers in the drive-thru lane only
Additional Notes	Max Distance Between Signs: pre-sale sign located <25' from primary menu sign	Max Distance Between Signs: pre-sale sign located <25' from primary menu sign

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-189.1. Additional Regulations.

1. Prohibited in Residential Character Areas.

2. In the Character Areas where allowed, any premises where goods and/or services are offered on a "drive-thru" basis which may be purchased or obtained by a person without the necessity of exiting their motor vehicle, two (2) additional detached sign per "drive-thru" window or "drive-thru" lane shall be permitted with one (1) sign to be the primary menu sign and the second to be designated as a pre-sale menu sign to be located within twenty-five (25) feet of the primary menu sign and situated to be viewed by customers in the drive-thru lane only. It is the intent to allow businesses offering "drive-thru" services to use such additional detached sign(s) to list the services and/or goods offered to their customers while such customers are on the premises, and it is not the intent of this subsection to allow any additional detached

sign(s) which are primarily designed and oriented to be read by customers or prospective customers who are not on the premises. The Director of the Land Development Office shall not approve any such additional detached sign which does not conform to the intent of this subsection.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-190. Directional Signs on Hospital Premises.

1. The restrictions of Article XX shall not apply to on-premises directional signs located on the premises of any hospital, medical center or clinic which offers emergency medical care.

2. Prohibited in Residential Character Areas.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-191. Traffic directional signs.

1. The number, height and setback limitations above shall not apply to on-premises entrance, exit or other directional traffic signs at any premises, provided that no such directional sign shall exceed thirty (30) inches in height nor more than six (6) square feet in sign area, and further provided that no such signs shall provide customary motor vehicle or pedestrian traffic directional instructions.

2. On premises with land area in excess of seven (7) acres which have two (2) or more occupants, signs marking a one-way entrance to the premises, including the name(s) of the occupant(s) of the premises, shall not exceed fifty (50) square feet in sign area nor exceed nine (9) feet in overall height but shall be located no closer than ten (10) feet from the closest edge of the pavement of any public right-of-way but in no event on a public right-of-way.

3. In no event shall there be permitted more than two (2) traffic directional signs per entrance or exit to the premises.

4. On premises traffic directional signs which are within six hundred sixty (660) feet of a controlled access facility, which have a detached sign which is taller than fifty (50) feet and which are not adjacent to a public right-of-way, one (1) such traffic directional sign shall be permitted not in excess of forty (40) square feet in sign area and not in excess of twelve (12) feet in overall height; any such sign shall be located no closer than ten (10) feet from the closest curb or edge of any public street but in no event on any public right-of-way, and any such sign may be placed on an access easement to such premises, provided that this sentence shall not apply to premises which are permitted more than one (1) detached sign.
(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XXI. ADMINISTRATIVE PROVISIONS, VARIANCES, AND APPEALS

DIVISION 1. ADMINISTRATIVE PROVISIONS

Sec. 3-192. Permit Administration.

1. *Application Required.* Applicants intending to erect a new permanent or temporary sign must obtain a sign permit from the Director of the Land Development Office prior to the erection, installation, or material alteration of any sign. The term 'material alteration' shall mean any change in the following:

a. The height of a sign.

b. The sign area of a sign.

c. Change to sign face.

d. The location of a sign.

e. The supporting structure of a sign.

Material alternation shall not include routine maintenance and repair or electrical work only for which an electrical permit must be obtained. A sign permit shall be obtained in addition to any building permit otherwise required by this Code.

2. *Time Limits.* All completed sign applications shall be reviewed for compliance with these regulations within fifteen (15) business days, excluding holidays recognized by the City of Chattanooga, from the time a completed application has been accepted by the Director of the Land Development Office. In the event the Land Development Office does not approve or deny an application within said period, such application shall be deemed approved.

3. *Issuance of permit.* A sign permit shall not be issued until the application has been approved, any conditions stated in the approval have been satisfied, any required electrical or building permit has been issued, and any required permit fee has been received. For any sign requiring a state permit, such permit shall be included when making the application. Construction shall not begin until after issuance of the sign permit.

4. *Inspections.* It is the responsibility of the owner, sign contractor, or other person installing any sign to schedule with the Land Development Office and request all required site, footing, final and any other inspections required by the sign permit. It is the responsibility of the electrical contractor, if any, to schedule with the Department and request all required electrical inspections. Whenever any work is required to be inspected by this Chapter, no additional work can be undertaken until the required inspection is completed and the work approved. If additional work is undertaken prior to an inspection, the sign contractor shall, at the sign contractor's expense, tear out, remove or demolish such additional work as may be necessary in order to conduct the required inspection, provided that the Director of the Land Development Office may, in such Official's sole discretion, accept a letter of indemnity, in form and substance satisfactory to the Code Official in lieu of such tear out, removal or demolition.

5. *Expiration of Sign Permit.* If work authorized under a sign permit has not been completed within 180 days after the date of issuance, the permit shall expire and immediately become null and void. Any work in process shall immediately stop and no additional work shall be initiated until a new sign permit is issued. The Director of the Land Development Office may extend an existing sign permit under which substantial work has been accomplished before expiration. A new sign permit shall not be issued without a new application and payment of applicable fees.

6. *Permit Fees.* No sign permit may be issued until the applicable fee, if any, has been paid. Sign permit fees shall be established and may be amended from time to time by resolution of the City Council.

Administrative Processing Fees	
Plans Review Fee	$25.00
Technology Fee	$20.00
Administrative Fee	$5.00
Sign Type Fees	
On-Premise Sign: Electric	$330.00
On-Premise Sign: Non Electric	$70.00
Digital (Electric Message Center) Sign	$500.00
Temporary Sign	$50.00

Master Sign Plan	$500.00 + $3.00 per SF of Signage
Other Fees	
Failure to Obtain Permit	Double Fee
Re-inspection Fee	$50.00

7. *Permit Revocation.* Unless it expires pursuant to this Section, sign permits are valid for the life of the sign. However, it is the responsibility of the owner to ensure that the owner's architect or engineer and the owner's contractor(s) follow all applicable provisions of this Chapter in the design, construction, and installation of a sign. The issuance of a sign permit or the passing of an inspection through inadvertence, mistake, or oversight shall in no event be construed as waiving any provisions of this Chapter. Any sign permit may be revoked by the Director of the Land Development Office upon determination that the sign is not in full compliance with the provisions of this Chapter.

8. *Appeals.* An appeal to the Board of Zoning Appeals from any adverse decision of the Director of the Land Development Office may be filed in writing with the Land Development Office within ten (10) days of any such decision; the secretary to the Board shall notify the person filing the appeal of the hearing date. The decision of the Board of Zoning Appeals shall be final.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-193. Power to Revoke Permit, Remedies for Violation.

1. If any sign permit is issued based upon any false or untrue information which is material to the application and the granting of a sign permit, the Director of the Land Development Office shall revoke any such permit and order the removal of such sign within thirty (30) days.

2. If the Director of the Land Development Office determines that any sign erected pursuant to a permit issued under the provisions of this Chapter is in violation of any provision of this Chapter by error in the construction of the sign, the Director of the Land Development Office shall (i) notify the holder of the permit of the nature of the non-compliance and allow the holder thirty (30) days, to correct the defects giving rise to the non-compliance; or (ii) if such non-compliance cannot be corrected, to require the removal of the non-complying sign within thirty (30) days of the expiration of the period for correction specified above.

3. If any sign is erected without a sign permit but is otherwise erected in compliance with the provisions of this Code, the Director of the Land Development Office may upon proper application for a sign permit and payment of double the normally required permit fee issue a sign permit for such sign, provided, however, that any such permit so issued shall in no event operate to relieve the person of erecting a sign without a permit from any penalties provided by this Chapter until such permit has been issued.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-194. Master Sign Plan.

1. *Purpose.* Master Sign Plans (MSP) are authorized under this section to allow, within parcels as this section deems applicable the following:

a. The unified presentation of signage throughout applicable parcels;

b. The authorization to deviate from the existing rules relating to the number, dimensions, locations, or design characteristics of attached and detached signs within the MSP area when the design and quality components of signs proposed in the MSP area exceed the existing rules in other aspects;

c. The flexibility to provide for unique environments; and

d. A pre-approval of designs and design elements process that will make subsequent applications for sign permits under an approved MSP more efficient.

2. *Applicability.* An application for a MSP Permit is authorized only for those developments that meet the criteria that follows:

a. Single-use development: a single use development that exceeds 100,000 square feet of gross floor area; or

b. Multi-tenant development: A multi-tenant development that exceeds 150,000 square feet of gross floor area.

3. *Authorized Deviation from Applicable Rules.* Deviation from the applicable rules that may be authorized under an approved MSP are as follows:

a. Maximum Sign Area;

b. Number of Signs; and

c. Location of Signs

4. *Permit Application.* The requestor must pay an application fee and fill out an application on forms provided by the city and filed in such quantity and with such submittals as required by the instructions.

5. *Prohibited Signs and Sign Elements.*

a. Except as otherwise authorized in this Section, signs and sign elements prohibited by the applicable rules are prohibited from inclusion in a MSP.

b. Nonconforming Signs. Existing non-conforming signs are not permitted within a development that is subject of the Master Sign Plan. A MSP permit issued for a development on which an existing non-conforming sign is located shall require that the existing non-conforming sign be eliminated or brought into conformance with the standards of the approved MSP before installation of any new signs under the approved MSP.

6. *Permit Approval.*

a. Permit application shall be reviewed by the Land Development Office. Upon determination that the application is administratively complete, and the fee has been paid, the Land Development office may issue a MSP permit if the Land Development Office finds the application demonstrates that the MSP will:

    a. Result in a substantially improved, comprehensive, and unified use of signs within the applicable single or multi-tenant development, compared to what is allowed through strict compliance with the applicable rules and

    b. Provides for all signs to be architecturally integrated into or complimentary to the design of the buildings and character of the site, and use similar and coordinated design features, materials, and colors; and plans for multi-tenant developments provide for uniformity of signs.

7. *Amendment.*

a. A valid MSP may be amended upon application by the permittee and approval by the Land Development Office. An amendment application may seek to alter the design, materials, locations, placements, orientations, and specifications of a sign or signs designated within an approved MSP; provided the amendment does not attempt to increase the area of any freestanding or wall sign subject to the original MSP by more than ten percent (10%).

8. *Expiration.* An approved permit shall expire two (2) years from the date of approval if no progress has been made toward the completion of the placement of signs pursuant to the MSP.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-195. Administrative Modifications.

1. *Purpose.* The purpose of the administrative modification is to provide relief from carrying out a requirement of this Code that may cause a minor practical difficulty.

2. *Initiation.* The owner, tenant and/or occupant of a building or part thereof in the City may file an application for an administrative modification.

3. *Authority.* The Director of the Land Development Office is authorized to grant certain administrative modifications, as defined below. Only those items listed below are eligible for an administrative modification; all other requests for relief are considered variances.

4. *Eligible Administrative Modifications.* Eligible Administrative Modifications are defined below:

a. A 10% or less dimensional standard in this Code.

b. A 10% or less setback standard in this Code.

c. A revokable zero-foot (0') setback variance for properties directly facing the TN Highway 58 corridor from a point beginning at TN Highway 153 eastward to the City limits (Intersection with Harrison-Ooltewah Rd).

5. *Procedure.*

a. The requestor must pay an application fee and fill out an application on forms provided by the city and filed in such quantity and with such submittals as required by the instructions.

b. The Director of the Land Development Office may decide that an application for an administrative modification, even if it meets the thresholds established in this section, is by its nature a variance to be decided by the Board of Zoning Appeals. The applicant must resubmit the application to the Board of Zoning Appeals as a variance. No additional fees are required.

c. The Director of the Land Development Office must review and evaluate the complete administrative modification application, pursuant to the standards of this Section.

d. The Director of the Land Development Office must render a decision within thirty (30) days of the date listed on the required notice and either approve, approve with modifications, or deny the application. If the Director of the Land Development Office fails to act within 30 days, the administrative modification will be resubmitted to the Board of Zoning Appeals as a variance. No additional fees are required.

e. If an objection is filed to the administrative modification application in writing, prior to the date indicated on the notice that the Director of the Land Development Office may render a decision, the application must be resubmitted as a variance. No additional fees are required.

f. The Director of the Land Development Office may impose such restrictions upon the administrative modification as deemed necessary for the protection of the public health, safety, and welfare.

g. The Director of the Land Development Office may grant an administrative modification that is less than that requested when it has been decided that the applicant is entitled to some relief of the hardship, but not to the entire relief requested in the application.

h. If the administrative modification is denied, it may be resubmitted as a variance. If resubmitted as a variance, payment of associated fees is required.

6. *Evaluation Criteria.* The decision of the Land Development Office must make findings to support each of the following criteria:

a. That by reason of exceptional narrowness, shallowness, or shape of a specific piece of property at the time of enactment of the sign regulations, or by reason of exceptional topographic conditions or other extraordinary and exceptional situation or condition, the strict application of this Code would result in peculiar and practical difficulties or undue hardships upon the owner, tenant, and/or occupant of the building, or any part thereof, to erect signage.

b. The modification will not significantly impact adjacent property owners, the character of the area, traffic conditions, parking, public infrastructure, water quality management, and other matters affecting the public health, safety and general welfare.

c. The applicant meets the burden of presenting an alternative means of compliance that clearly demonstrates how the code exception would equal or exceed the existing standard.

d. The modification will add value to the animation and pedestrian walkability of the street edge or enhance the building facade.

7. *Limitations.*

a. Administrative Modifications may not authorize any increase in the maximum sign area for any permitted freestanding sign.

b. If an applicant has been denied a variance by the Board of Zoning Appeals, such cannot be resubmitted as an administrative modification for the same dimensional standard or setback standard for a period of one year.

c. Such request for an administrative modification for the same dimensional standard or setback standard may be resubmitted as an administrative modification one year later if it qualifies as such per the Eligible Administrative Modifications Section above.

8. *Expiration.* An approved administrative modification will expire two years from the date of approval unless a sign permit is obtained or applied for within such period. The Director of the Land Development Office may grant an extension for a period of validity so long as the applicant applies in writing for an extension of time prior to the date of expiration. No public hearing is required for approval of such extension of time.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-196. Variances.

1. *Purpose.* The purpose of the variance process is to provide a narrowly circumscribed means by which relief may be granted from unforeseen applications of the sign regulations of this Code that create practical difficulties or hardships.

2. *Initiation.* An owner, tenant, and/or occupant of any building or a part thereof, and any architect, builder, contractor, agent, or other person in the City may file an application for a variance.

3. *Authority*

a. The Board of Zoning Appeals will take formal action on variances of the sign regulations.

b. Certain types of modifications are eligible for approval under the administrative modification process in Section 3-195.

4. *Procedure.* The requestor must pay an application fee and fill out an application on forms provided by the city and filed in such quantity and with such submittals as required by the instructions. Once the application is complete and the fee is paid, the staff will schedule the application for consideration by the Board of Zoning Appeals.

a. Upon receipt of a complete application, the Board of Zoning Appeals will consider the variance at a public hearing.

b. The Board of Zoning Appeals must evaluate the application based upon the evidence presented at the public hearing, pursuant to the approval standards of this section. The Board of Zoning Appeals will approve, approve with modifications, or deny, whole or in part, the variance.

c. The Board of Zoning Appeals may grant a variance that is less than that requested when it has been decided that the applicant is entitled to some relief of the hardship, but not to the entire relief requested in the variance application.

5. *Criteria.* The Board of Zoning Appeals may authorize a variance from the strict application of this Code to relieve such difficulties or hardship only in accordance with the following criteria:

a. That by reason of exceptional narrowness, shallowness, or shape of a specific piece of property at the time of enactment of the zoning regulations, or by reason of exceptional topographic conditions or other extraordinary and exceptional situation or condition, the strict application of this Code would result in peculiar and practical difficulties or undue hardships upon the owner, tenant and/or occupant of the building, or any part thereof, to erect signage.

b. The relief of the peculiar hardships, practical difficulties, or undue hardships granted by the Board would not establish substantial detriment to the public good or substantially impair the intent and purpose of this code.

c. That the peculiar hardship, practical difficulties, or undue hardship apply to the particular land or building regardless of the owner.

d. That the peculiar hardship, practical difficulties, or undue hardships relate only to the premises for the benefit of which the variance is sought and would not be generally applicable to other premises in the City or the personal conditions of the applicant.

6. *Limitations.*

a. No variance may allow a sign type that is prohibited in the code, applicable character area, or overlay.

b. The variance granted is the minimum adjustment necessary to remedy the particular hardship.

c. Only one (1) sign per premise may receive a setback and/or height variance.

d. In no event may BOZA permit any such sign to be constructed to a height greater than eighty (80) feet within six hundred sixty (660) feet of either side of a controlled access facility or any such sign to be constructed to a height greater than fifty (50) feet in any other area.

e. The BOZA may not authorize any increase in the maximum sign area for any permitted freestanding sign.

7. *Expiration of Variance.* An approved variance will expire two years from the date of approval unless a sign permit is obtained or applied for within such period. The Board of Zoning Appeals may grant an extension for a period of validity so long as the applicant applies in writing for an extension of time prior to the date of expiration. No public hearing is required for approval of such extension of time.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-197. Appeals.

1. *Purpose.* This appeals process is intended to provide appropriate checks and balances on the administrative authority of the Director of the Land Development Office.

2. *Initiation.*

a. An owner, tenant, and/or occupant of any building or a part thereof, and any architect, builder, contractor, agent, or other person in the City that is directly affected by a determination of the Director of the Land Development Office may file an appeal of the Director of the Land Development Office decision on an administrative modification, sign code interpretation, temporary sign permit, or other administrative sign decision related to this Code.

b. A decision of the Director of the Land Development Office may only be appealed if an application is filed within thirty (30) days of the date the decision is made.

3. *Procedure.* The requestor must pay an application fee and fill out an application on forms provided by the city and filed in such quantity and with such submittals as required by the instructions. Once the application is complete and the fee is paid, the staff will schedule the application for consideration by the Board of Zoning Appeals.

4. *Information Necessary for Appeal.* An appeal of alleged erroneous order, requirement, decision, determination, or interpretation shall be filed in writing with the Director of the Land Development Office and shall include the following information:

a. The names, addresses and telephone numbers of the petitioner, the owner of the property on which the sign is to be erected or affixed, the owner of the sign, and the person to be erecting or affixing the sign.

b. Decision being appealed.

c. Description of the requested appeal.

d. Questions to be raised on appeal.

e. Justification of the requested appeal.

f. The location of the building, structure, or zoning lot on which the sign is erected, to be erected or affixed.

g. If the application involves a ground sign, a site plan of the property involved showing dimensions of the lot, improvements thereon and showing accurate placement thereon of the sign involved.

h. A blueprint, ink drawing or photograph of the sign involved.

i. Written consent of the owner of the building, structure, or property on which the sign is erected or to be erected or affixed.

j. Such other information as the Director of the Land Development Office may require determining full compliance with the decision.

    i. Upon receipt of a complete application, the Board of Zoning Appeals will consider the appeal at a public hearing.

    ii. The Board of Zoning Appeals must evaluate the application based upon the evidence presented at the public hearing.

    iii. Following the close of the public hearing, the Board of Zoning Appeals must either confirm or overturn the Director of the Land Development Office decision.

5. *Effect of Appeal.* An appeal shall stay all proceedings in furtherance of the action appealed from unless the Director of the Land Development Office certifies to the BOZA, after the appeal has been filed with the Director of the Land Development Office, that, by reason of the facts stated in the application, a stay would, in the Code Official's opinion, cause imminent peril to life or property. In such a case, the proceeding shall not be stayed unless a restraining order is issued by a court of record.

6. *Board of Zoning Appeals, Public Hearing, Timing, and Attendance.* Not more than forty-five (45) days after a notice of appeal is filed, the BOZA shall hold a public hearing thereon. Written notice of such hearing shall be given to the person who filed the appeal and to such other persons as the BOZA deems advisable. The petitioner and Director of the Land Development Office and/or their authorized representatives shall attend those meetings of the BOZA at which an appeal is to be heard.

7. *Board of Zoning Appeals Determination.* Following the hearing of any such appeal, the BOZA may affirm, reverse, or modify the action of the Director of the Land Development Office and/or representative and may take any other action which is appropriate under the circumstances and is allowed by law. The action of the BOZA on any such appeal shall be final and conclusive.

8. *Effect of Board of Zoning Appeals Denial.* No appeal which has been denied, wholly or in part, by the BOZA, in accordance with the provisions established herein, upon which no variance has been granted, may be resubmitted for a period of one year from the date of such denial except on grounds of new evidence or proof of changed conditions found to be valid by the BOZA.
(Ord. No. 14216, § 1, 4-8-25)

DIVISION 2. NOTICES

Sec. 3-198. Administrative Modifications.

1. Administrative Modifications do not require public notice.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-199. Variances.

1. *Published Notice.* A notice of the public hearings held by the Board of Zoning Appeals must be published in a daily newspaper no less than seven (7) days in advance of the scheduled action.

2. *Mailed Notice.* The Land Development Office will mail written notice at least seven (7) days in advance of the first scheduled action to all property owners within three hundred feet (300') of the property line of the subject property. The notice must include:

a. Date;

b. Time;

c. Place;

d. Purpose of such action;

e. Name of applicant;

f. Address of the subject property.

3. *Posted Notice.* The names of the property owners within a minimum of two hundred feet (200') of each property in question before the Board shall be supplied by the applicant to the secretary of the Board concurrently with the filing of any application for a variance, special permit or special exception; failure to provide a complete list of such property owners shall, in the discretion of the Board, constitute grounds for denial of the application.
(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XXII. ENFORCEMENT

DIVISION 1. ENFORCEMENT AND PENALTIES

Sec. 3-200. Administration and Enforcement.

The Director of the Land Development Office is hereby designated as the enforcement officer for this Code. In addition to all other authority conferred by statute, ordinance or resolution, the Director of Land Development Office shall have the following duties and powers:

1. *Review and Issue Permits.* Review all applications for sign permits, issuing permits for those signs found to be in compliance with the provisions of this Code.
2. *Conduct Inspections.* Conduct location, footing and final construction inspections, and conduct such other inspections of all permanent and temporary signs displayed in the City as necessary to require compliance with the provisions of this Code.
3. *Issue Notices of Violation.* Issue notices of correction or citation regarding any sign which is found to be in noncompliance with one or more of the provisions of this Code.
4. *Cause Removal of Certain Signs.* After giving any required notice, cause the removal of certain signs which are found to be in noncompliance with one or more of the provisions of this Code.
5. *Administrative Interpretations.* Render, when called to do so, administrative interpretations regarding the provisions of this Code and their effect on the display of any sign located or to be in the City.
6. *Maintenance of Records.* Maintain all records necessary to the appropriate administration and enforcement of this Code, including applications for variances and appeals.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-201. Sign Maintenance.

1. The owner, tenant, and/or occupant of the building or any part thereof shall maintain the sign and their supporting structure; in a condition appropriate to the intended use; to all City standards; and has a continuing obligation to comply with all building code requirements.

2. Defective parts of signs, including but not limited to printed or painted surfaces, trims, poles, and text integrity shall be replaced or repaired.

(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-202. Violation and Penalties.

1. *Violations Declared Misdemeanors.* Any person who shall violate any provision of this Code, or any person who shall fail or refuse to comply with any notice to abate or other notice issued by the Land Development Office within the time allowed by such notice, shall be guilty of a misdemeanor; each day of such violation or failure or refusal to comply shall be deemed a separate offense and punishable accordingly. Each violation of this Chapter shall be punishable by a fine of not less than Twenty-Five Dollars ($25.00) nor more than Fifty Dollars ($50.00).

2. *Violations Declared Nuisances.* Upon ascertaining a violation of the provisions of this Code, the Director of the Land Development Office shall cause to be served upon both the offender, or their agent or the occupant(s) of the premises, a written notice to abate which shall (i) describe the conditions constituting a nuisance under this Code, and (ii) state that the nuisance may be abated by the City at the expense of the offender, and/or the owner, and/or the occupant of the premises at the expiration of not less than fifteen (15) days nor more than sixty (60) days from the date of such notice if such condition is not

corrected by the offender, or the owner, or the occupant, or the person in control of the premises. If, at the expiration of the time given to abate the nuisance in said notice to abate, the condition constituting a nuisance has not been corrected, then such condition may be corrected, or the nuisance abated by the City at the expense of the offender and/or the owner and/or the occupant of the premises under the directions of the Director of the Land Development Office. The City shall have a lien on the property upon which such sign is located to secure the amount expended for the abatement of such nuisance; the 'amount expended for the abatement of such nuisance' shall include all unpaid annual maintenance and safety inspection fees and delinquent charges due to such sign.

3. *Signs Placed in the Right-of-Way.* Signs that exist in a nonconforming status placed in the public R-O-W shall be immediately confiscated by the City and the owner or responsible party for the sign shall be fined for each sign in violation for the sign's return.

4. *Persons Subject to Penalty.* The owner, tenant and/or occupant of any building, structure, premises, or a part thereof, and any architect, builder, contractor, agent or other person, who commits, maintains, aids or participates in such violation may be found guilty of a separate offense and suffer the penalties as herein provided.

5. *Sign Maintenance Violation.* The maintenance of any unused sign and/or its supporting structure or any violation of the provisions of this Code by any person is declared to be a public nuisance dangerous to the public safety and shall be abated as set forth in this Article. For the purposes of this Section, "unused sign" shall include any sign which (i) has not displayed a message or messages for more than ninety (90) days or (ii) is not kept in good structural repair such that the sign could pose a risk to public health or safety.

6. *Penalties.* All penalties for violations described in the paragraphs above shall be administered by the Administrative Hearing Officer.
(Ord. No. 14216, § 1, 4-8-25)

ARTICLE XXIII. NON-CONFORMING SIGNS

Sec. 3-203. Purpose.

1. *Purpose.* For the purpose of promoting aesthetics, protecting the environment, and regulating excess signage, encouraging the positive economic development of the City, promoting the safety of the traveling public, protecting existing property values in both residential and nonresidential areas, preventing overcrowding of land, promoting a positive community appearance as part of a concerted citywide effort to protect and enhance the aesthetics of the City for the enjoyment of all citizens, the nonconforming signs are herein regulated.

These regulations are designed to prevent a public nuisance through the overconcentration, improper placement and excessive height, bulk, enlargement, number, and area of signs. It is intended that outdoor advertising signs be located away from residential areas, and that such signs be regulated to protect the character of the area wherein signs are located and to conserve property values in these areas.
(Ord. No. 14216, § 1, 4-8-25)

Sec. 3-204. General Provisions.

1. Nothing contained in this Chapter shall be construed in any way to ratify or approve the erection and/or maintenance of any sign which was erected in violation of any prior ordinance or ordinances of the City of Chattanooga, Tennessee, and such signs so erected in violation of any prior ordinance or ordinances shall be subject to removal as provided in this Article. Signs which are now in existence and were

constructed in compliance with the terms of any prior ordinance or ordinances of the City of Chattanooga, Tennessee, but which are not in conformance with the provisions of this Chapter are hereby designated as legal, non-conforming signs, and shall be removed hereafter in accordance with this Section.

a. For on-premises signs, any occupant who applies for a new sign permit for any on-premises detached sign shall be required to either remove all legal non-conforming detached signs and the devices on the area of the property occupied by such occupant, or to bring such non-conforming signs into conformance with the provisions of this Chapter before any new permit may be issued.

b. Any occupant who applies for a new sign permit for any on-premises attached sign shall be required to either remove all legal non-conforming attached signs and the devices on the area of the premises occupied by such occupant, or to bring such non-conforming signs into conformance with the provisions of this Chapter before any new sign permit may be issued.

Notwithstanding any other provision of this Chapter, any person using a portable sign, balloon sign or banner for which a temporary sign permit must be obtained on the effective date of this Chapter must obtain a temporary sign permit as required by Article XVII within sixty (60) days of the effective date of this ordinance and thereafter may use temporary signs only in accordance with the provisions of this Chapter.
(Ord. No. 14216, § 1, 4-8-25)

Chapter 4

AIR POLLUTION*

Article I. In General

Sec. 4-1. Declaration of policy and purpose; title.
Sec. 4-2. Definitions.
Sec. 4-3. Regulations cumulative; compliance with one (1) provision no defense to noncompliance with another; sampling and testing methods.
Sec. 4-4. Penalties for violation of chapter, permit or order.
Sec. 4-5. Limitations of chapter.
Sec. 4-6. Air pollution control board; bureau of air pollution control; persons required to comply with chapter.
Sec. 4-7. Powers and duties of the board; delegation.
Sec. 4-8. Installation permit and certificate of operation.
Sec. 4-9. Charges for technical reports, research, computer time.
Sec. 4-10. Records.
Sec. 4-11. General requirements.
Sec. 4-12. Exceedances of limitations on emissions.
Sec. 4-13. Certificate of alternate control.
Sec. 4-14. Court determination of invalidity of having two (2) sets of limitations for process or fuel-burning equipment; effect.
Sec. 4-15. Right to file abatement suits.
Sec. 4-16. Right of entry of employees of the bureau, search warrants.
Sec. 4-17. Enforcement of chapter; procedure for adjudicatory hearings for violations.
Sec. 4-18. Hearings, appeals and judicial review.
Sec. 4-19. Confidentiality of certain records.
Sec. 4-20. Emergencies.
Sec. 4-21. Variances.
Secs. 4-22—4-40. Reserved.

Article II. Rules, Regulations, Criteria, Standards

Sec. 4-41. Rules adopted.
Secs. 4-42—4-49. Reserved.

Article III. Part 70 Source Regulation and Permits

Sec. 4-50. Part 70 sources.
Sec. 4-51. Permitting authority.
Sec. 4-52. Program overview.
Sec. 4-53. Definitions.

***Charter reference—**Authority to regulate boilers, § 2.1(34).

Cross references—Occupational safety and health program for city employees, § 2-271 et seq.; businesses, trades and occupations, Ch. 11; fire prevention, Ch. 17; garbage and refuse, Ch. 18; gas, Ch. 19; health and sanitation, Ch. 20.

State law references—Air pollution control, T.C.A. § 68-201-101 et seq.; local programs, § 68-201-115; local ordinances, § 68-201-202.

Sec. 4-54. Applicability.
Sec. 4-55. Local program submittals and transition.
Sec. 4-56. Permit applications.
Sec. 4-57. Permit content.
Sec. 4-58. Permit issuance, renewal, reopenings, and revisions.
Sec. 4-59. Permit review by EPA and affected States.
Sec. 4-60. Fee determination and certification.
Sec. 4-61. Judicial Review—Failure to Take Final Action.
Sec. 4-62. Final action—Administrative and Judicial Review.
Sec. 4-63. Judicial Review of Terms and Conditions of Permit.
Sec. 4-64. Hearings and Review.
Sec. 4-65. Enforcement.
Sec. 4-66. Severability.
Sec. 4-67. Titles.
Sec. 4-68. Incorporation of documents by reference.

ARTICLE I. IN GENERAL

Sec. 4-1. Declaration of policy and purpose; title.

(a) It is hereby declared to be the public policy of this city and the purpose of this chapter to achieve and maintain such levels of air quality as will protect human health and safety and to the greatest degree practicable, prevent injury to plant and animal life and property, and foster the comfort and convenience of the people.

(b) To these ends it is the purpose of this chapter to provide a program of air pollution prevention, abatement and control.

(c) This chapter shall be known and cited as "The Chattanooga Air Pollution Control Ordinance." (Code 1986, § 4-1)

Sec. 4-2. Definitions.

In the interpretation and enforcement of this chapter, the following definitions shall apply:

Actual emissions: The calculated rate of emissions of a pollutant from an emissions unit, as determined in accordance with Paragraphs (1), (2) and (3) below:

(1) Actual emissions calculated as of a particular date shall equal the average rate, in tons per year, at which the unit emitted the pollutant during a two (2) year period which precedes the particular date and which is representative of normal source operation. The director may allow the use of a different time period upon a determination that it is more representative of normal source operation. Actual emissions shall be calculated using the unit's actual operating hours, production rates, and types of materials processed, stored, or combusted during the selected time period. For a new source, actual emissions shall be calculated on the projected operating hours submitted on the installation permit application as representative of normal source operation. If the projected hours are less than eight thousand seven hundred sixty (8,760) hours per year, then the operating hours shall be specified as a federally enforceable permit condition. The calculation of actual emissions shall include fugitive emissions except where fugitive emissions are expressly excluded by a provision of this chapter.

(2) However, unless the source is in compliance with legally enforceable limits which restrict the operating rate, or hours of operation, or both, the director shall deem actual emissions of the unit to be those calculated using the maximum rated capacity of the source, based on eight thousand seven hundred sixty (8,760) hours per year, and the most stringent of the following:

   a. The applicable standards as set forth in Section 4-41, Rule 15 and Rule 16; or

   b. The applicable emissions limitation in this chapter, including those with a future compliance date; or

   c. The emissions rate specified as an enforceable permit condition under local, state or federal law.

(3) If there is an emissions unit in place and subject to a permit or certificate of operation which has not begun normal operations on the particular date that an additional unit is to be issued a permit or certificate of operation, then actual emissions of the unit in place shall be calculated as being the potential to emit of the unit on that date.

Air contaminant: Any smoke, soot, fly ash, dust, cinders, dirt, noxious or obnoxious acids, fumes, oxides, gases, vapors, odors, toxic or radioactive substance, waste, particulate, solid, liquid or gaseous matter, or any other materials in the outdoor atmosphere, but excluding uncombined water.

Air flow permeability: The volumetric rate of air flow in cfm, produced by a pressure decrease of one-half (0.5) inches w.g. across a new, clean filtering fabric, divided by the area of the fabric in square feet. The test air stream is maintained at nominal atmospheric pressure and temperature.

Air pollution: The presence in the outdoor atmosphere of one (1) or more air contaminants or combinations thereof in such quantities and of such duration that they are or may tend to be injurious to human, plant or animal life, or property, or that interfere with the comfortable enjoyment of life or property, or the conduct of business.

Air pollution control equipment: Any item of equipment which has as its primary function the elimination or reduction of the emissions of an air pollutant.

Allowable emissions: The emissions rate of a stationary source calculated using the maximum rated capacity of the source (unless the source is subject to legally enforceable limits which restrict the operating rate, or hours of operation, or both) and the most stringent of the following:

(1) The applicable standards under this chapter or in an applicable state implementation plan, including those with a future compliance date; or

(2) The emissions rate specified as a legally enforceable permit or certificate condition established pursuant to this chapter, including those with a future compliance date.

Asbestos: Any of six (6) naturally occurring hydrated mineral silicates: actinolite, amosite, anthophyllite, chrysolite, crocidolite and tremolite.

Begin actual construction: Initiation of physical on-site construction activities on an emissions unit which are of a permanent nature. Such activities include, but are not limited to, installation of building supports and foundations, laying of underground pipework and construction of permanent storage structures. With respect to a change in method of operation, this term refers to those on-site activities, other than preparatory activities, which mark the initiation of the change.

Best available control technology (BACT) for § 4-8(e) and § 4-41, Rule 25: An emissions limitation (including a visible emissions limitation), based on the maximum degree of reduction for each pollutant subject to regulation under this chapter which would be emitted from any stationary source or modification which the director, on a case-by-case basis, taking into account energy, environmental, and economic impacts and other costs, determines is achievable for such source or modification through application of production processes or available methods, systems and techniques, including fuel cleaning or treatment or innovative fuel combination techniques for control of each such pollutant. In no event shall the application of "best available control technology" result in emissions of any pollutant which would exceed the emissions allowed by any applicable limitation established under Rules 15 and 16. If a source demonstrates to the director that technological or economic limitations on the application of measurement methodology to a particular emissions unit would make the imposition of an emissions limitation infeasible, a design, equipment, work practice, operations standard or combination thereof, submitted by the source and approved by the director, may be prescribed instead to satisfy the requirement for the application of best available control technology. Such standards shall, to the degree possible, set forth the emissions reduction achievable by implementation of such design, equipment, work practice or operation, and shall provide for compliance by means which achieve equivalent results.

Board: The Chattanooga-Hamilton County Air Pollution Control Board.

Building, structure, facility or installation: All of the pollutant-emitting activities which belong in the same industrial grouping, are located on one (1) or more contiguous or adjacent properties, and are under the control of the same person (or persons under common control). Pollutant-emitting activities shall be considered as part of the same industrial grouping if they belong to the same major group (i.e., described by the first two (2) digits in the code which is specified in Standard Industrial Classification Manual 1987).

Bureau: The Chattanooga-Hamilton County Air Pollution Control Bureau.

Calendar day: A twenty-four (24) hour period of time between 12:01 a.m. and midnight on a numbered day in the Gregorian calendar.

Certificate of Operation: Any certificate of operation issued pursuant to the provisions of this chapter, including a federally enforceable certificate of operation.

Commence: As applied to construction of a major stationary source or major modification, means that the owner or operator has all necessary preconstruction approvals or permits and either has:

(1) Begun, or caused to begin, a continuous program of actual on-site construction of the source, to be completed within a reasonable time as determined by the director; or

(2) Entered into binding agreements or contractual obligations, which cannot be canceled or modified without substantial loss to the owner or operator, to undertake a program of actual construction of the source to be completed within a reasonable time.

Construction: Any physical change or change in the method of operation (including fabrication, erection, installation, demolition or modification of an emissions unit) which would result in a change in actual emissions.

Controlled burning: Open burning conducted in such manner or with the aid of such special equipment that emissions are reduced.

Director: The Executive Director of the Bureau.

Dwelling unit. Any room or group of rooms located within a dwelling and forming a single habitable unit with facilities which are used or intended to be used for living, cooking, sleeping and eating.

Emission: A release into the outdoor atmosphere of air contaminants.

Emission limitation: A requirement established which limits the quantity, rate or concentration of emissions of air pollutants, including any requirement relating to the operation or maintenance of a source to ensure continuous emission reductions or a legally enforceable emissions cap that the source has assumed to avoid an applicable requirement to which the source would otherwise be subject, without exception for startup or shutdown.

Emission point: That place where emission occurs.

Emissions unit: Any part or activity of a stationary source which emits or would have the potential to emit any pollutant subject to regulation under this chapter.

Excess air: Air, entering a combustion chamber in excess of the amount theoretically required to complete combustion of materials in the combustion chamber.

Existing source: A source whose installation, modification, alteration or reconstruction commenced on or before the effective date of any provision of this chapter applicable to it is deemed to be an "existing source" for such provision. If any existing source is subsequently altered, repaired or rebuilt so that its potential to emit any air pollutant is increased, or so that it emits any air pollutant it did not previously emit, it shall be reclassified as a "new source," as defined in this chapter.

Federal Clean Air Act: Title 42 United States Code Sections 7401 through 7671q, as amended by Public Law 101-549, November 15, 1990.

Fixed capital cost: The capital needed to provide all the depreciable components.

Fly ash: Particulate matter capable of being airborne, resulting from combustion of fuel or refuse.

Fossil: Coal, coke and liquid petroleum fuels other than gasoline, diesel fuels and kerosene.

Fuel burning equipment: Any equipment, device or contrivance used for the burning of any fuel, except refuse) and all appurtenances thereto, including ducts, breechings, fly ash collecting equipment, fuel feeding equipment, ash removal equipment, combustion controls, stacks, chimneys, etc., used for indirect heating in which the material being heated is not contacted by and adds no substance to the products of combustion. Such equipment includes, but is not limited to, that used for heating water to boiling; raising steam or superheating steam; heating air as in warm air furnaces; furnishing process heat that is conducted through process vessel walls; and furnishing process heat indirectly through its transfer by fluids.

Fugitive dust. Particulate matter emitted from any source other than a flue or stack.

Fugitive emissions: Those emissions which could not reasonably pass through a stack, chimney, vent or other functionally-equivalent opening.

Hand-fired fuel-burning equipment: Fuel-burning equipment in which fresh fuel is manually introduced directly into the combustion chamber.

Hazardous air pollutant: Any air pollutant listed in Title 42 U.S.C. 7412(b)(1), as revised by Title 40 CFR Part 63, Subpart C, which has been incorporated by reference in Chapter 4.

Implementation plan: A plan devised by a governmental unit to provide for the attainment, maintenance and enforcement of any ambient air quality standard.

Incinerator: Refuse-burning equipment as is defined in this section.

Internal combustion engine: Any engine of ten (10) horsepower as rated by S.A.E. methods, or larger, in which the combustion of gaseous, liquid or pulverized solid fuel takes place.

Legally enforceable: All limitations and conditions which are enforceable under local, state, or federal law, including those under this chapter or an implementation plan, and any permit or certificate of operation requirements established pursuant to this chapter.

Lowest achievable emission rate (LAER): For any source, that rate of emission which reflects the more stringent rate of emissions based on the following:

(1) The most stringent emissions limitation which is contained in the applicable provisions of this chapter for such class or category of stationary source, unless the owner or operator of the proposed source demonstrates that such limitations are not achievable; or

(2) The most stringent emission limitation which is achieved in practice by such class or category of stationary source. This limitation, when applied to a modification, means the lowest achievable emissions rate for the new or modified emissions units within the stationary source. In no event shall a new or modified source emit any pollutant in excess of the amount allowable under applicable provisions of section 4-41, Rule 15 (New Source Performance Standards), of this chapter. This rate will be determined by the director prior to the issuance of the installation permit.

[*T.A.R. 1200-3-9-.01(2)(e) as revised by the TN APCB 12/14/95 not yet state-effective, pending State procedural requirements completion.*]

Malfunction: Any exceedance arising from sudden and not reasonably foreseeable events beyond the control of the source, including acts of God or *force majeure*, which exceedance requires immediate corrective action to restore normal operation, and that causes the source to exceed an applicable emission limitation provision of this chapter, or of any installation permit or certificate of operation issued thereunder, due to unavoidable increases in emissions attributable to the situation. To the extent the situation is caused by improperly designed equipment, lack of preventative maintenance, careless or improper operation, operator error or any other preventable upset condition or preventable equipment breakdown, it shall not be considered a malfunction.

Modification, alteration, reconstruction: Any physical change in, or change in the method of operation of, an air pollutant source which increases the actual emissions of any air pollutant to which an emission standard or limitation applies emitted by such source or its potential to emit any air pollutant to which an emission standard or limitation applies, or which results in the emission of any air pollutant to which an emission standard or limitation applies that was not previously emitted, except that:

(1) Routine maintenance, repair, and replacement shall not be considered physical changes; and

(2) The following shall not be considered a change in the method of operation:

a. An increase in the production rate that exceeds neither the operating design capacity nor the applicable maximum production rate stated in the installation permit or certificate of operation for the source.

b. An increase in hours of operation that does not exceed any limitation on operating hours stipulated as a legally enforceable permit condition of the source;

c. The use of an alternative fuel if the source is designed to accommodate such alternative fuel; or

d. Required alterations to equipment for the use of an alternative fuel or raw material by reason of an order under section 2(a) and (b) of the federal Energy Supply and Environmental Coordination Act of 1974 (or any superseding legislation) or by reason of a natural gas curtailment plan in effect pursuant to the Federal Power Act.

(3) The burden of proof establishing that a change is excepted under parts a. and b. is on the owner or operator. The director shall rule in a timely fashion on whether a reported change is excepted. Further expansions or restrictions of the definition may be listed in this chapter. In the event of a conflict, the most stringent requirement shall apply.

[Origin is T.A.R. 1200-3-2-.01(aa)]

Any other increases and decreases in actual emissions at the source that are contemporaneous with the particular change and are otherwise creditable.

Multiple chamber incinerator. Any article, machine, equipment, contrivance, structure or part of a structure used to dispose of combustible refuse by burning, consisting of three (3) or more refractory lined combustion furnaces in series, physically separated by refractory walls, interconnected by gas passage ports or ducts and employing adequate design parameters necessary for maximum combustion of the material to be burned.

New source: A source whose installation, modification, alteration or reconstruction is commenced after the effective date of any provision of this chapter to which the source is subject is deemed to be a "new source" for such provision.

Odor-producing equipment: Any equipment, container, device or contrivance which is not process equipment, fuel-burning equipment, refuse-burning equipment or control equipment as defined by this section, that releases substances that produce or may tend to produce odors in the ambient air.

Opacity: The degree to which emissions reduce the transmission of light and obscure the view of an object in the background.

Open burning: Unconfined burning of combustible material where no equipment has been provided and used for control of air.

Owner or operator: Any person who owns, leases, operates, controls, or supervises a source.

Owner or operator of a demolition or renovation activity means any person who owns, leases, operates, controls, or supervises the facility being demolished or renovated or any person who owns, leases, operates, controls or supervises the demolition or renovation, or both.

Particulate matter: Material other than uncombined water, which is suspended in air or other gases, in a finely divided form, as a liquid or solid.

Person: Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. The masculine gender shall include the feminine, the singular shall include the plural where indicated by the context.

Plant: Any building, structure, installation, activity or combination thereof which contains any stationary source of air contaminants.

PM2.5: Particulate matter with an aerodynamic diameter of less than or equal to a nominal 2.5 micrometers as measured by a reference method based on Appendix L of Title 40 Code of Federal Regulations Part 50 and designated in accordance with Title 40 Code of Federal Regulations Part 53, by an equivalent method designated in accordance with Part 53, or by an approved regional method designated in accordance with Appendix C of Title 40 Code of Federal Regulations Part 58.

PM10: Particulate matter with an aerodynamic diameter less than or equal to a nominal 10 micrometers as measured by a reference method based on Appendix J of Title 40, Code of Federal Regulations, Part 50, or by an equivalent method designated in accordance with Part 53 of Title 40, Code of Federal Regulations.

PM10 emissions: Finely divided solid or liquid material with an aerodynamic diameter less than or equal to a nominal 10 micrometers emitted into the ambient air as measured by an applicable reference method.

Pollutant: Any air contaminant as defined in section 4-2 or combination of such air contaminants, including any physical, chemical, biological, or radioactive (including source material, special nuclear material, and byproduct material) air contaminant which is emitted into or otherwise enters the ambient air. Such term includes any precursors to the formation of any such air contaminant, to the extent the U.S. Environmental Protection Agency has identified such precursor or precursors for the particular purposes for which the term "pollutant" is used.

Potential to emit: The maximum capacity of a stationary source to emit a pollutant under its physical and operational design. Any physical or operational limitation on the capacity of the source to emit a pollutant, including air pollution control equipment and restrictions on hours of operation or on the type or amount of material combusted, stored or processed, shall be treated as part of its design if the limitation or the effect it would have on emissions is legally enforceable. Secondary emissions do not count in determining the potential to emit of a stationary source.

Ppm: Parts per million by volume at a temperature of twenty degrees (20°) Celsius and at a pressure of seven hundred sixty (760) millimeters of mercury.

Primary Air Quality Standards: Primary ambient air quality standards define levels of air quality believed adequate, with an appropriate margin of safety, to protect public health.

Process air: Air used principally as a function of the process.

Process emission: Any emission of an air contaminant to the ambient air other than that from fuel-burning equipment, incinerator or open burning.

Process equipment: Any equipment, device or contrivance for changing any materials whatever or for storage or handling of any materials, the use or existence of which may cause any discharge of air pollutants into the open air, but not including that equipment specifically defined as "fuel-burning equipment" or "refuse-burning equipment" in this chapter.

Process weight: The total weight of all materials introduced into any specific process, which process may cause any discharge of air contaminant. Solid fuels discharged will be considered as part of process weight, but liquid and gaseous fuels and combustion and process air will not. For a cyclical or batch operation, the process weight per hour will be derived by dividing the total process weight by the number of hours in one (1) complete operation from the beginning of any given process to the completion thereof, excluding any time during which the equipment is idle. For a continuous operation, the process weight per hour will be derived by dividing the process weight for a twenty-four (24) hour period by twenty-four (24).

Reasonable further progress (RFP): Annual incremental reductions in emissions of the applicable pollutant which are sufficient to provide for attainment of the applicable ambient air quality standards by December 31, 1982, or in the case of the primary ambient air quality standard for photochemical oxidants or carbon monoxide (or both) by December 31, 1987, if attainment is not possible by December 31, 1982.

Reasonably available control technology (RACT): The lowest emission limit that a particular source is capable of meeting by the application of control technology that is reasonably available considering technological and economic feasibility.

Reconstruction: Reconstruction will be presumed to have taken place where the fixed capital cost of the new components exceeds fifty percent (50%) of the fixed capital cost of a comparable entirely new facility. Any final decisions as to whether reconstruction has occurred shall be based on:

(1) The fixed capital cost of the replacements in comparison to the fixed capital cost that would be required to construct a comparable entirely new facility;

(2) The estimated life of the facility after the replacements compared to the life of a comparable entirely new facility; and

(3) The extent to which the components being replaced cause or contribute to the emissions from the facility.

A reconstructed facility will be treated as a new stationary source. In determining lowest achievable emission rate for a reconstructed facility any economic or technical limitations on compliance with applicable standards of performance which are inherent in the proposed replacements shall be taken into account in assessing whether a new source performance standard is applicable to such facility.

Refuse-burning equipment: Any equipment, device or contrivance used for the destruction of garbage and/or other combustible wastes by burning, and all appurtenances thereto.

Salvage operation: Any operation conducted in whole or in part for the salvage or reclaiming of any product or material.

Secondary Air Quality Standards: Secondary ambient air quality standards define levels of air quality believed adequate, with an appropriate margin of safety, to protect the public welfare from any known anticipated adverse effects of the pollutant.

Secondary emissions: Emissions which would occur as a result of the construction or operation of a major stationary source or major modification, but do not come from the major stationary source or major modification itself. Secondary emissions must be specific, well defined, quantifiable, and impact the same general area as the stationary source or modification which causes the secondary emissions. Secondary emissions include emissions from any off-site support facility which would not be constructed or increase

its emissions except as a result of the construction or operation of the major stationary source or major modification. Secondary emissions do not include any emissions which come directly from a mobile source, such as emissions from the tailpipe of a motor vehicle, from a train, or from a vessel.

Shutdown: The removal of equipment from operation.

Smoke: Small gas or airborne particles resulting from combustion operations and consisting of carbon and ash and other matter and present in sufficient quantity to be observable.

Source: Any activity, equipment, process or operation which causes or contributes to cause emission or has the potential to emit one (1) or more air pollutants at an emission point or as fugitive emissions, or any combination of items of equipment, processes or operations which when combined cause emission of one (1) or more air pollutant(s) at one (1) or more emission points or as fugitive emissions.

Standard conditions: Fourteen and seven-tenths (14.7) psia and a temperature of seventy degrees (70°) Fahrenheit.

Stationary source: Any source of an air pollutant except those resulting directly from an internal combustion engine for transportation purposes or from nonroad engines or nonroad vehicles as defined in Title 42 U.S.C. § 7550.

(*Federal Clean Air Act § 302(z), 42 USC 7602(z)*)

Start-up: The placing into operation of new, down or off-line equipment.

Suspended particulate: Particulate matter which will remain suspended in air for an appreciable period of time.

Synthetic minor source: A source that would otherwise be considered a "Part 70 source," as defined in section 4-53, due to its potential to emit, if it were not for a mutually agreed upon, more restrictive, federally enforceable limitation, contained in an installation permit or certificate of operation issued pursuant to section 4-8, upon the potential to emit of that source under its physical and operational design. All emissions limitations, controls, and other requirements imposed by such permit or certificate of operation shall be at least as stringent as any other applicable limitations and requirements contained in this chapter and enforceable thereunder.

Test: Any monitoring or sampling relied on by a source to demonstrate or certify compliance with this chapter.

Total suspended particulate: Particulate matter as measured by the method described in Appendix B of Title 40, Code of Federal Regulations, Part 50.

Uncontrolled emissions: The maximum capacity to emit a pollutant absent air pollution control equipment. "Air pollution control equipment" includes control equipment which is not, aside from air pollution control laws and regulations, vital to production of the normal operation. Annual uncontrolled emissions shall be based on the maximum annual rated capacity of the source, unless the source is subject to enforceable permit conditions which limit the operating rate or hours of operation, or both. Enforceable permit conditions on the type or amount of materials combusted or processed may be used in determining the uncontrolled emission rate of a source.

Volatile organic compound (VOC): Any compound of carbon, excluding carbon monoxide, carbon dioxide, carbonic acid, metallic carbides or carbonates, and ammonium carbonate, that participates in atmospheric photochemical reactions.

(1) This includes any such organic compound other than the following, which have been determined to have negligible photochemical reactivity:

methane;

ethane;
methylene chloride (dichloromethane);
1,1,1-trichloroethane (methyl chloroform);
1,1,2-trichloro-1,2,2-trifluoroethane (CFC-113);
trichlorofluoromethane (CFC-11);
dichlorodifluoromethane (CFC-12);
chlorodifluoromethane (HCFC-22);
trifluoromethane (HFC-23);
1,2-dichloro-1,1,2,2-tetrafluoroethane (CFC-114);
chloropentafluoroethane (CFC-115);
1,1,1-trifluoro-2,2-dichloroethane (HCFC-123);
1,1,1,2-tetrafluoroethane (HFC-134a);
1,1-dichloro-1-fluoroethane (HCFC-141b);
1-chloro-1,1-difluoroethane (HCFC-142b);
2-chloro-1,1,1,2-tetrafluoroethane (HCFC-124);
pentafluoroethane (HFC-125);
1,1,2,2-tetrafluoroethane (HFC-134);
1,1,1-trifluoroethane (HFC-143a);
1,1-difluoroethane (HFC-152a);
parachlorobenzotrifluoride (PCBTF);
cyclic, branched, or linear completely methylated siloxanes;
acetone;
perchloroethylene (tetrachloroethylene);
3,3-dichloro-1,1,1,2,2-pentafluoropropane (HCFC-225ca);
1,3-dichloro-1,1,2,2,3-pentafluoropropane (HCFC-225cb);
1,1,1,2,3,4,4,5,5,5-decafluoropentane (HFC-43-10mee);
difluoromethane (HFC-32);
ethylfluoride (HFC-161);
1,1,1,3,3,3-hexafluoropropane (HFC-236fa);
1,1,2,2,3-pentafluoropropane (HFC-245ca);
1,1,2,3,3-pentafluoropropane (HFC-245ea);
1,1,1,2,3-pentafluoropropane (HFC-245eb);
1,1,1,3,3-pentafluoropropane (HFC-245fa);
1,1,1,2,3,3-hexafluoropropane (HFC-236ea);
1,1,1,3,3-pentafluorobutane (HFC-365mfc);
chlorofluoromethane (HCFC-31);
1-chloro-1-fluoroethane (HCFC-151a);
1,2-dichloro-1,1,2-trifluoroethane (HCFC-123a);

1,1,1,2,2,3,3,4,4-nonafluoro-4-methoxy-butane ($C_4F_9OCH_3$, HFE-7100);

2-(difluoromethoxymethyl)-1,1,1,2,3,3,3-heptafluoropropane [$(CF_3)_2CFCF_2OCH_3$];

1-ethoxy-1,1,2,2,3,3,4,4,4-nonafluorobutane ($C_4F_9OC_2H_5$, HFE-7200);

2-(ethoxydifluoromethyl)-1,1,1,2,3,3,3-heptafluoropropane [$(CF_3)_2CFCF_2OC_2H_5$];

methyl acetate;

1,1,1,2,2,3,3-heptafluoro-3-methoxy-propane (n-$C_3F_7OCH_3$, HFE-7000);

3-ethoxy-1,1,1,2,3,4,4,5,5,6,6,6-dodecafluoro-2-(trifluoromethyl)hexane (HFE-7500);

1,1,1,2,3,3,3-heptafluoropropane (HFC 227ea);

methyl formate ($HCOOCH_3$);

1,1,1,2,2,3,4,5,5,5-decafluoro-3-methoxy-4-(trifluoromethyl)pentane (HFE-7300);

propylene carbonate;

dimethyl carbonate;

trans-1,3,3,3-tetrafluoropropene;

HCF_2OCF_2H (HFE-134);

$HCF_2OCF_2OCF_2H$ (HFE-236cal2);

$HCF_2OCF_2CF_2OCF_2H$ (HFE-338pcc13);

$HCF_2OCF_2OCF_2CF_2OCF_2H$ (H-Galden 1040x or H-Galden ZT 130 (or 150 or 180));

trans-1-chloro-3,3,3-trifluoroprop-1-ene;

2,3,3,3-tetrafluoropropene;

2-amino-2-methyl-1-propanol;

t-butyl acetate;

1,1,2,2-tetrafluoro-1-(2,2,2-trifluoroethoxy) ethane;

cis-1,1,1,4,4,4-hexafluorobut-2-ene (HFO-1336mzz-Z); and

perfluorocarbon compounds which fall into these classes:

a. Cyclic, branched, or linear, completely fluorinated alkanes;

b. Cyclic, branched, or linear, completely fluorinated ethers with no unsaturations;

c. Cyclic, branched, or linear, completely fluorinated tertiary amines with no unsaturations; and

d. Sulfur containing perfluorocarbons with no unsaturations and with sulfur bonds only to carbon and fluorine.

(2) For purposes of determining compliance with emissions limits, VOC will be measured by the test methods in this chapter or Title 40 Code of Federal Regulations Part 60, Appendix A, which have been incorporated by reference in Chapter 4, as applicable. Where such a method also measures compounds with negligible photochemical reactivity, these negligibly-reactive compounds may be excluded as VOC if the amount of such compounds is accurately quantified, and such exclusion is approved by the Director.

(3) As a precondition to excluding these compounds as VOC or at any time thereafter, the Director may require an owner or operator to provide monitoring or testing methods and results demonstrating, to the satisfaction of the Director, the amount of negligibly-reactive compounds in the source's emissions.

(4) For purposes of enforcement for a specific source, the test methods specified in these regulations, in the EPA-approved SIP, or in a permit or certificate issued pursuant to these regulations shall be used.

(Code 1986, § 4-2; Ord. No. 9171, §§ 1—3, 5-30-89; Ord. No. 9846, § 1, 3-9-93; Ord. No. 10277, § 1, 8-15-95; Ord. No. 10786, § 1, 10-27-98; Ord. No. 12054, § 1, 12-11-07; Ord. No. 13221, § 1, 9-19-17; Ord. No. 13998, §§ 1—4, 6-27-23; Ord. No. 14165, § 1, 10-29-24)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 4-3. Regulations cumulative; compliance with one (1) provision no defense to noncompliance with another; sampling and testing methods.

(a) *Regulations, methods generally.* The provisions of this chapter, as previously adopted and as amended, shall be construed to be cumulative in effect, and it is declared to be the legislative intent that compliance with any one (1) or more provisions of those ordinances or rules and regulations thereof or with any one (1) or more provisions of this chapter shall not be construed as a defense for noncompliance with any other applicable provisions of those ordinances or rules or regulations thereof or with any other applicable provisions of this chapter. In addition to and consistent with specific methods of sampling and analysis described in this chapter, samples shall be taken in such number, duration and location so as to be statistically significant and representative of the condition which the samples purport to evaluate. Where specific materials, equipment, methods or procedures are specified, it shall be permissible to use other materials, equipment or procedures where it has been reliably demonstrated that their use produces results comparable to that which would have been obtained by use of the specified materials, equipment, methods or procedures, including any federally enforceable monitoring or testing method promulgated in Title 40 Code of Federal Regulations Part 51, Appendix M—Recommended Test Methods for State Implementation Plans, Appendix P—Minimum Emission Monitoring Requirements, and Appendix W—Guideline on Air Quality Models (Revised); Part 60, Appendix A—Test Methods, Appendix B—Performance Specifications, Appendix C—Determination of Emission Rate Change, and Appendix F—Quality Assurance; Part 61, Appendix A—National Emission Standards for Hazardous Air Pollutants, Compliance Status Information, Appendix B—Test Methods, Appendix C—Quality Assurance Procedures, Appendix D—Methods for Estimating Radionuclide Emissions, and Appendix E—Compliance Procedures Methods for Determining Compliance with Subpart I; or Part 75 including Appendices A through I—Continuous Emission Monitoring which have been incorporated by reference in Chapter 4. Any method of sampling or analysis permissible under Section 4-3 of this chapter may be used for the purpose of submission of a compliance certification by a source or for the purpose of establishing whether a person has violated any provision of this chapter or of a compliance plan. In addition, nothing in this chapter precludes the use, even the exclusive use, of any credible evidence or information, relevant to whether a source would have been in compliance with applicable requirements if the appropriate performance or compliance test or procedure is performed for the purpose of submitting compliance certifications or establishing whether or not a person has violated or is in violation of any provision of this chapter or of a compliance plan.

(b) *Procedures for ambient sampling and analysis.* Sampling and analytical procedures required for particulate matter, particulate matter as PM_{10}, particulate matter as $PM_{2.5}$, ozone, sulfur dioxide, carbon monoxide, nitrogen dioxide, and lead may be found in Title 40 Code of Federal Regulations Part 50, Appendices A-1, A-2, B, C, D, F, G, H, I, J, K, L, N, O, P, Q, R, S, T, and U, which have been incorporated by reference in Chapter 4. The procedure for sampling and analyzing atmospheric fluorides shall conform with the method adopted by the American Society for Testing Materials (ASTM) and found in the Annual Book of ASTM Standards published in the most recent year prior to enactment of this ordinance year by the American Society for Testing Materials bearing ASTM designation D 3266 "Standard Test Method for Automated Separation and Collection of Particulate and Acidic Fluoride in the Atmosphere (Double Paper Tape Sampler Method)." Each ambient monitor sited in the field for the purpose of generating data for the

monitoring procedures listed in Section 4-3(b) must have a valid data recovery of at least seventy-five percent (75%). Information that documents the cause of any missing data shall be submitted in writing to the Director.

[*New: 1200-3-12-.02(1) and (5)*]

(c) *Source sampling analysis.* The methods set forth in this section shall be applicable for determining compliance with emission limitations contained in this ordinance, except where otherwise specifically provided.

(1) Sample and velocity traverses. Sample and velocity traverses shall be determined by Method 1 or 1A as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(2) Stack gas flow rate determination. Stack gas flow rate shall be determined by Method 2, 2A, 2B, 2C, 2D, 2E, 2F, 2G, or 2H as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(3) Gas analysis for carbon dioxide, oxygen, excess air, and dry molecular weight shall be determined by Method 3, 3A, 3B or 3C as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(4) Determination of moisture content in stack gases. Moisture content shall be determined by Method 4 as set forth in Title 40 CFR Part 60 Appendix A, which has been incorporated by reference in Chapter 4.

(5) Determination of particulate emissions. Particulate emissions shall be determined by Method 5, 5A, 5B, 5D, 5E, 5F, 5G, 5H, 5I, or 17 as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4, or by Method 201, 201A, or 202 as set forth in Title 40 CFR Part 51, Appendix M, which has been incorporated by reference in Chapter 4. Particulate or gaseous mercury emissions shall be determined by Method 29, 30A, or 30B as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4, or by Method 101, 101A, 102, or 105 as set forth in Title 40 CFR Part 61, Appendix B, which has been incorporated by reference in Chapter 4.

(6) Measurement of sulfur dioxide in stack gases. The approved procedure for measuring sulfur dioxide in stack gases is Method 6, 6A, 6B, or 6C set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(7) Determination of nitrogen oxides in stack gases. Nitrogen oxides in stack gases shall be determined by Method 7, 7A, 7B, 7C, 7D, or 7E set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(8) Determination of sulfuric acid (H_2SO_4) in stack gases. Sulfuric acid in stack gases shall be determined by Method 8 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(9) Visible emissions evaluation procedures. The procedure for evaluating visible emissions shall be Method 9 as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4, provided, however, that the provisions of Rule 3, Section 41, of this ordinance shall supplant the averaging provisions of Method 9, except where otherwise provided. The procedure for evaluating visible emissions resulting from roads and parking areas shall be Tennessee Visible Emission Evaluation Method 1, Visible Emissions Evaluation Instruction Manual, August 1988 Revised 1995, issued by the Tennessee Department of Health and Environment Division of Air Pollution Control, which has been incorporated by reference in Chapter 4.

(10) Determination of carbon monoxide emissions. Carbon monoxide emissions shall be determined by Method 10, 10A, or 10B set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(11) Determination of hydrogen sulfide content of fuel gas streams. Hydrogen sulfide content of fuel gas streams shall be determined by Method 11 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(12) Determination of inorganic lead emissions. Inorganic lead emissions shall be determined by Method 12 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(13) Determination of fluoride emissions. Fluoride emissions shall be determined by Method 13A, 13B, 14, or 14A as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(14) Reserved.

(15) Reserved.

(16) Determination of total reduced sulfur emissions. Total reduced sulfur emissions shall be determined by Method 15A, 16, 16A, 16B, or 16C as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(17) Determination of gaseous organic compound emissions. Gaseous organic compound emissions shall be made by Method 18 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(18) Determination of sulfur dioxide removal efficiency. Sulfur dioxide removal efficiency shall be determined by Method 19 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(19) Determination of emissions from stationary gas turbines. Nitrogen oxides, sulfur dioxide, and diluent emissions from stationary gas turbines shall be determined by Method 20 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(20) Determination of volatile organic compound leaks shall be made by Method 21 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(21) Visual determination of fugitive emissions from material sources and smoke emissions from flares shall be made by Method 22 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(22) Determination of polychlorinated dibenzo-p-dioxins and polychlorinated dibenzofurans from stationary sources shall be made by Method 23 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(23) Determination of volatile matter content, water content, density, volume solids, and weight solids of surface coatings shall be made by Method 24 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(24) Determination of volatile matter content and density of printing inks and related coatings shall be made by Method 24A set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4. Volatile hazardous air pollutant content of a liquid coating shall be determined by Method 311 set forth in Title 40 CFR Part 63, Appendix A, which has been incorporated by reference in Chapter 4, in conjunction with formulation data.

(25) Determination of organic emissions. Organic emissions shall be determined by Method 25, 25A, 25B, 25C, 25D, or 25E as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(26) Determination of hydrogen halide and halogen emissions. Hydrogen halide and halogen emissions shall be determined by Method 26 or 26A as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(27) Determination of vapor tightness of gasoline delivery tank shall be made using the pressure vacuum-test described in Method 27 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(28) Certification and auditing of wood heaters shall be determined using Method 28 set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(29) Determination of air-to-fuel ratio and minimum achievable burn rates for wood-fired appliances shall be made using Method 28A set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(30) Determination of metals emissions. Metals emissions from stationary sources shall be determined using Method 29 as set forth in Title 40 CFR Part 60, Appendix A, which has been incorporated by reference in Chapter 4.

(31) Determination of capture efficiency of volatile organic compounds. Capture efficiency of volatile organic compounds shall be determined using Method 204, 204A, 204B, 204C, 204D, 204E, or 204F set forth in Title 40 CFR Part 51, Appendix M, which has been incorporated by reference in Chapter 4.

(32) Determination of chromium emissions. Chromium emissions and surface tension measurements and recordkeeping in conjunction with Title 40 CFR Part 63, Subpart N—National Emission Standards for Chromium Emissions From Hard and Decorative Chromium Electroplating and Chromium Anodizing Tanks shall be made using Method 306, 306A, and 306B set forth in Title 40 CFR Part 63, Appendix A, which have been incorporated by reference in Chapter 4.

(33) Determination of residual amounts of hazardous air pollutants. Residual amounts of hazardous air pollutants in conjunction with Title 40 CFR Part 63, Subpart U—National Emission Standards for Hazardous Air Pollutants for the Manufacture of Major Elastomers (Polymers and Resins I) shall be made using Methods 310 A, B and C; Methods 312 A, B and C; and Methods 313 A and B set forth in Title 40 CFR Part 63, Appendix A, which have been incorporated by reference in Chapter 4.

(34) Determination of halogenated solvent cleaning emissions. Emissions in conjunction with Title 40 CFR Part 63, Subpart T—National Emission Standards for Halogenated Solvent Cleaning shall be determined using Method 307 set forth in Title 40 CFR Part 63, Appendix A, which has been incorporated by reference in Chapter 4.

(35) Determination of emissions from waste media. Emissions from waste media shall be determined using Method 301, Method 304A, Method 304B, or Method 305 set forth in Title 40 CFR Part 63, Appendix A, which have been incorporated by reference in Chapter 4.

(36) Determination of beryllium emissions. Beryllium emissions shall be determined using Method 103 and Method 104 set forth in Title 40 CFR Part 61, Appendix B, which have been incorporated by reference in Chapter 4.

(37) Determination of vinyl chloride emissions. Vinyl chloride emissions shall be determined using Method 106, Method 107, and Method 107A set forth in Title 40 CFR Part 61, Appendix B, which have been incorporated by reference in Chapter 4.

(38) Determination of arsenic emissions. Arsenic emissions shall be determined using Method 108, 108A, 108B, and 108C set forth in Title 40 CFR Part 61, Appendix B, which have been incorporated by reference in Chapter 4.

(39) Determination of polonium emissions. Polonium-210 emissions from stationary sources shall be determined by Method 111 set forth in Title 40 CFR Part 61, Appendix B, which has been incorporated by reference in Chapter 4.

(40) Any method of stack sampling in accordance with good professional practice approved by the director may be used. Stack sampling methods promulgated before the effective date of this ordinance by the U.S. Environmental Protection Agency for specified air contaminant sources are considered to be acceptable equivalent methods.

(d) Where any specific test method requires quality assurance audit samples and the audit result does not validate the source's sample within the specified parameters, the source must retest the stack test until such time as the audit result does validate the sample within the specified parameters; except that the director may waive retesting if the source's stack test sample is in compliance with this chapter even if not validated within the specified quality assurance parameters.

(e) Each owner or operator of an air monitoring network required by the director shall submit in writing to the director a Quality Control/Quality Assurance Plan for approval prior to commencing air monitoring. This plan shall be reviewed and approved prior to start-up of new monitoring networks or whenever any significant change is made to an existing network.

[*New: T.A.R. 1200-3-12-.02(3)*]

(f) All ambient air monitoring data generated by continuous operating monitors shall be submitted on magnetic media in a format acceptable to the director. All ambient air monitoring data generated by intermittent sampling techniques shall be submitted in a format acceptable to the director.

[*New: T.A.R. 1200-3-12-.02(4)*]

(g) *Sampling, Recording and Reporting Required for Part 70 Sources.*

(1) For any Part 70 source, as defined in Section 4-53, the provisions of this Section 4-3(g) shall also apply.

(2) The director is authorized to require by permit condition any periodic or enhanced monitoring, recording and reporting that the director deems necessary for the verification of the source's compliance with the applicable requirements, as defined in Section 4-53.

a. Monitoring may include, but is not limited to: source testing; in-stack monitoring; process parameter monitoring of material feed rates, temperature, pressure differentials, power consumption or fuel consumption; chemical analysis of feed stocks, coatings or solvents; ambient monitoring; visible emissions evaluations; control equipment performance parameters of pressure differentials, power consumption, air or liquid flow rates or amount of air contaminants collected for disposal; air contaminant leak detection tests from process or control equipment; and any other such monitoring that the director may prescribe.

1. The monitoring must be conducted in a manner acceptable to the director. This includes, but is not limited to: sampling methods, analytical methods, sensor locations and frequency of sampling.

2. The monitoring method must have at least a ninety-five percent (95%) operational availability rate to prove compliance directly or indirectly with the applicable

requirements unless otherwise stipulated by the director. Ambient air monitors shall have their minimum operational availability rates prescribed by Section 4-3. Missing data in excess of these levels shall be grounds for enforcement action.

b. Recordkeeping may include handwritten or computerized records and shall be kept in accordance with the manner approved by the director. The director, or an employee of the Bureau authorized by the director, shall have the authority to inspect the records during reasonable hours at the place where such records are kept. The owner or operator of the Part 70 source must provide copies of the records to the Director upon request. If the records are computerized, the source may provide them to the director in an electronic format compatible with the Bureau's electronic data processing equipment for initial review. Upon discovery of electronic data that may reveal noncompliance, the director shall request hard copy excerpts documenting the noncompliance, and the owner or operator shall comply with the request. All electronic submittals shall be in "read only" format such that the integrity of the recorded submittal will be maintained and cannot be written over with different electronic data.

1. In the absence of a specific recordkeeping procedure, it is the general duty of a person required to keep the records required under this Section 4-3(g) in such order that compliance with the applicable requirement can be readily ascertained.

(3) Reporting shall be in the manner prescribed by the director in the Part 70 permit.

(4) Any report submitted to the director shall be signed by a responsible official consistent with the provisions of Article III (Part 70 Source Regulation and Permits).

(Code 1986, § 4-3; Ord. No. 10277, § 2, 8-15-95; Ord. No. 10297, § 1, 10-3-95; Ord. No. 10786, §§ 2—18, 10-27-98; Ord. No. 13998, §§ 5—13, 6-27-23)

Sec. 4-4. Penalties for violation of chapter, permit or order.

(a) Any person who violates or fails to comply with any provision of this chapter, any order of the board or of the Director; or who makes any false material statement, representation, or certification in, or omits material information from, any record, report, plan or other document required either to be filed or submitted or maintained pursuant to this chapter; or who falsifies, tampers with, renders inaccurate, or fails to install any monitoring device or method required to be maintained or followed under this chapter; or fails to pay a fee established under this chapter; commits a misdemeanor and, upon conviction, is punishable as provided in Tennessee Code Annotated. For the prosecution of criminal action, the Chattanooga-Hamilton County Air Pollution Control Board and the Director shall follow and comply with the provisions of T.C.A. § 68-201-112 and shall notify the District Attorney General of the violation. Any person who violates or fails to comply with any provision of this chapter who is cited to city court by the board or Director and the city judge has issued process on the complaint of the board or Director shall be subject to a fine of fifty dollars ($50.00) for each violation and any costs imposed by the court.

(b) Each separate violation shall constitute a separate offense and upon a continuing violation each calendar day or portion thereof of violation shall constitute a separate offense.

(c) In addition to the fines provided in paragraph (a) of this section, any person who violates or fails to comply with any provision of this chapter, including any fee or filing requirement; or any duty to allow or carry out inspection, entry, or monitoring activities; or who violates the terms and conditions of any permit or certificate of operation issued pursuant to the provisions of this chapter; or who violates any order of the board or of the director, shall be subject to a civil penalty of up to twenty-five thousand dollars ($25,000.00) per separate violation, as hereinafter provided, to be imposed by the board after hearing, or opportunity for hearing. Provided, however, that the board may, in its discretion and for good cause shown, reduce the amount of a civil penalty or suspend the payment of all or part of the civil penalty imposed.

Upon a civil penalty assessed by the board or other order of the board becoming final, the board may institute in the name of the board a civil action in either circuit or chancery court to enforce the order of the board and/or to recover the amount of the civil penalty, plus interest, from the date of the assessment of the penalty. In imposing such civil penalty, the board shall give due consideration to all pertinent factors as justice may require, including, but not necessarily limited to:

(1) The character and degree of injury to, or interference with, the protection of the health, general welfare and physical property of people;

(2) The social and economic value of the air pollutant source;

(3) The technical practicability and economic reasonableness of reducing or eliminating the emission of air pollutants;

(4) The economic benefit gained by the air pollutant source through any failure to comply with the provisions of this chapter or any permit, certificate, or order issued pursuant to the provisions of this chapter;

(5) The amount or degree of effort put forth by the air pollutant source to attain compliance;

(6) Any prior violations of this chapter, violations of orders of the board or director, or violations of conditions imposed upon any permit, certificate, or variance and payment by the violator of penalties previously assessed for the same violation;

(7) The type and character of a violation, including the duration of the violation as established by any credible evidence, and the extent to which the same is in excess of the permissible limits or permissible activity or action;

(8) The past history of pollution control efforts in regard to the taking of appropriate action to control emissions or abate pollution on the part of the person found to be in violation or others subject to entry of any order of the board; and

(9) The size of the business and the economic impact of the penalty on the business. The plea of financial inability to prevent, abate or control air pollution by any person shall not be a valid defense to liability for a violation of any provision of this chapter. [T.C.A. 68-201-106 and 68-201-116(c); Clean Air Act § 113(e)]

(d) In addition to the fines provided for in paragraph (a) of this section and the civil penalties provided for in paragraph (c) of this section, any person who violates or fails to comply with any provision of this chapter, who violates or fails to comply with the terms and conditions of any permit or certificate of operation issued pursuant to the provisions of this chapter, or who violates any order of the board or of the director, shall be liable for any damages to the board, any unit of local government, or any fire department including the Tennessee Division of Forestry and volunteer fire departments resulting therefrom. Damages to the board, any unit of local government, or any fire department including the Tennessee Division of Forestry and volunteer fire departments, may include any expenses incurred in investigating or enforcing this chapter; in removing, correcting, or terminating the effects of air pollution as well as government-incurred damages or clean-up expenses caused by the pollution or by the violation. These damages shall be in addition to, not in lieu of, the civil penalty provided for above. [T.C.A. 68-201-116(c)]

(e) The amount of the civil penalty to be imposed by the board, pursuant to subsection (c) and subsection (d) of this section, shall in no event exceed the amount of twenty five thousand dollars ($25,000.00) for each separate violation occurring. In determining the amount of a penalty to be imposed or the type and character of any other order to be entered by the board, the board may give due consideration to pertinent facts including, but not necessarily limited to, the factors listed in section 4-4(c).

(f) In addition to the civil penalties provided in subsections (c) and (d) of this section, the board may order that any person who violates any provision of this chapter, who violates the terms and conditions of any permit or certificate of operation issued pursuant to the provisions of this chapter, or who violates any order of the board, shall cease and desist the operation, use or activity which resulted in such violation.

(g) In addition to the civil penalties provided for in subsections (c) and (d) of this section, the board may order that such person cease and desist from the use of the equipment, activity or other source of air contaminant; or the board may enter a conditional cease and desist order; and such order may include a reasonable delay during which to correct the source of violation.

(h) The liabilities which shall be imposed upon violation of any provision of this chapter, upon violation of the terms and conditions of any permit or certificate of operation issued pursuant to the provision of this chapter, or upon violations of the provision of this chapter, or upon violations of any order of the board, may not be imposed on account of any violation caused by an act of God, war, strike, riot or other force majeure.

(i) Action pursuant to this section shall not be a bar to enforcement of this chapter, or enforcement of orders made by the director or the board pursuant to this chapter, by injunction to enjoin any violation of any requirement of this chapter, including conditions of a permit or certificate of operation, without the necessity of a prior revocation of the permit or certificate of operation, or other appropriate remedy, and the board shall have power to institute and maintain in the name of the board any and all enforcement proceedings. The engaging in any activity in violation of a permit or certificate of operation where that activity is presenting an imminent and substantial endangerment to the public health, welfare or environment may be restrained and enjoined by an action of the appropriate court of record.

(j) The burden of proof requirement on any enforcement hearing or action before the board shall be that which is applicable to civil, and not criminal, proceedings.

(k) An additional fee of 5.0 percent of the outstanding amount, compounded monthly, shall be assessed for any fine, civil penalty, damages amount, or enforcement cost that has not been paid by thirty (30) days after the due date that is indicated on the corresponding invoice. Said fee shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board.
(Code 1986, § 4-4; Ord. No. 10277, § 3, 8-15-95; Ord. No. 13221, § 2, 9-19-17; Ord. No. 14324, § 1, 2-17-26)

Sec. 4-5. Limitations of chapter.

This chapter shall not:

(1) Abridge, limit, impair, create, enlarge or otherwise affect substantively or procedurally the right of any person to damages or other relief on account of injury to persons or property and to maintain any action or other appropriate proceeding therefor;

(2) Grant to the board any jurisdiction or authority with respect to air contamination existing solely within commercial and industrial plants, works or shops;

(3) Affect the relations between employers and employees with respect to or arising out of any condition of air contamination or air pollution;

(4) Supersede or limit the applicability of any law or ordinance relating to sanitation, industrial health, or safety;

(5) Apply to locomotive engines or steamboat engines operated solely for recreational, educational or historical purposes; provided, however, that the limitation of this subsection (5) shall not apply to nuisance and enforcement of nuisance provisions of this chapter.

(Code 1986, § 4-5)

Sec. 4-6. Air pollution control board; bureau of air pollution control; persons required to comply with chapter.

(a) *Air pollution control board.*

(1) There is hereby created the Chattanooga-Hamilton County Air Pollution Control Board, hereinafter referred to as "the board," to be composed of ten (10) members, three (3) of whom are to be appointed by the county mayor and confirmed by the county board of commissioners; three (3) of whom are to be appointed by the mayor of the city, and confirmed by the city council; three (3) of whom are to be appointed jointly by the county mayor and the mayor of the city and confirmed by both the county board of commissioners and the city council. The terms of members shall be four (4) years. Whenever a vacancy occurs, the vacancy shall be filled for the unexpired term of the same member as the original appointment. If a member of the board unjustifiably fails to attend three (3) consecutive regular meetings, the chairman of the board may notify in writing the mayor and city council if appointed by the mayor, or county mayor and county board of commissioners if appointed by the county mayor, or both if appointed jointly. The mayor or county mayor or both shall immediately request the resignation of such board member and a new board member shall be appointed promptly to fill the vacancy. The administrator of the Chattanooga-Hamilton County Health Department or their designated representative shall be an ex-officio voting member; provided, however, that if the administrator of the Chattanooga-Hamilton County Health Department desires to designate a representative such designation shall be made on an annual basis and in writing prior to June thirtieth of each year, and such designated representative shall serve as the ex-officio member in the place of the administrator of the Chattanooga-Hamilton County Health Department during the year for which that person has been designated by the administrator of the Chattanooga-Hamilton County Health Department. Provided further, that should the designated representative resign or otherwise terminate their employment with the Chattanooga-Hamilton County Health Department such shall terminate their appointment to and service upon, the board.

(2) The members of the board shall have the following qualifications: They shall be residents of the county. Industry may have no more than three (3) members active or retired, of whom no more than one (1) shall be from the same major two-digit grouping as defined by the Standard Industrial Classification Manual (1987) of the United States Department of Commerce. The chairman of the board shall have the right to vote on all matters. Members shall be selected for merit without regard to political affiliation; the mayor of the city and county mayor in their appointments shall select persons for their ability and all appointments shall be of such nature as to aid the work of the board, to inspire the highest degree of confidence and cooperation in furthering the policy of this chapter. The appointing authority (or authorities) shall, in making an appointment, assure that the membership of the board shall have at least a majority of members who represent the public interest and do not derive any significant portion of their income from persons subject to permits or enforcement orders under this chapter. Any member of the board who has any conflict of interest or potential conflict of interest shall make adequate disclosure of it and abstain from voting on matters related to it.

(3) The board shall select annually a chairman, vice-chairman and secretary from among its members as officers; each officer shall have the right to vote on all matters and shall hold office until the expiration of the term for which elected and thereafter until his successor has been elected. The board shall hold at least two (2) regular meetings each year and such additional meetings as the chairman deems desirable, at a place within this county and time to be set by the chairman upon written request of any four (4) members. Six (6) members shall constitute a quorum.

(4) All members of the board shall serve without compensation but shall receive their actual expenses incurred in attending meetings of the board and the performance of any duties as members or by direction of the board.

(5) The board may employ and discharge such employees and consultants as may be necessary for the administration of this chapter with the approval of the mayor, county mayor and chairman of the board or with the approval of any two (2) of such officials. Subject to any applicable restrictions contained in law all departments and agencies of the county shall, upon request, assist the board in the performance of its duties, with or without charge. The board may compensate such other agencies for services.

(b) *Bureau of air pollution control.* The bureau of air pollution control, hereinafter referred to as "the bureau," shall be headed by a director appointed by the board, subject to the approval of the mayor, county executive and chairman of the board or with the approval of any two (2) of such officials. The bureau shall administer this chapter under the overall supervision of the board and shall provide, by rules consistent with law, for the performance by the employees of any act or duty necessary or incidental to the administration of this chapter. No employee shall engage in any business, transaction, or professional activity which is a conflict of interest or a potential conflict of interest with the performance of duties in the public interest on behalf of the board. Any applicant for employment shall, in submitting the application for employment and prior to employment, make a full disclosure of any conflicts or potential conflicts of interest with the work of the bureau which the applicant may have.

(c) *Persons required to comply with chapter.* Persons responsible for compliance with this chapter and who are liable for violation of this chapter shall include, but not necessarily be limited to, all persons owning, occupying, operating, in charge of or in control of any premises, equipment, installations or operations from which or as a result of which any violation of this chapter shall occur whether such persons be proprietor, owner, lessee, tenant, manager, operator or in charge of such premises, equipment, installations or operations, and further, any of the foregoing who having a reasonable opportunity to do so should fail to take all reasonable and necessary steps to terminate or abate any condition or operation which causes or from which arises a violation of this chapter shall be deemed to be in violation of this chapter. Any one (1) or more of the foregoing persons shall be held individually and jointly responsible for compliance herewith and shall be jointly and severally liable for violation hereof.
(Code 1986, § 4-6; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10277, §§ 4, 5, 8-15-95; Ord. No. 13221, § 3, 9-19-17)

Cross reference—Administration generally, Ch. 2.

Sec. 4-7. Powers and duties of the board; delegation.

(a) In addition to any other powers otherwise conferred upon it by law, the board shall have power to:

(1) Recommend from time to time to the city council that it adopt, promulgate, amend and repeal provisions of this chapter; provided, however, that prior to making such recommendations a public hearing shall be held on such proposed changes with adequate advance public notice of such hearing;

(2) Hold hearings relating to any aspect of or matter in the administration of this chapter;

(3) Make such determinations and issue such orders as may be necessary to effectuate the purposes of this chapter and enforce the same by all appropriate administrative and judicial proceedings;

(4) Retain, employ, provide for and compensate, within appropriations available therefor, such consultants, assistants, deputies, clerks and other employees including legal counsel, on a full- or

part-time basis as may be necessary to carry out the provisions of this chapter and prescribe the times at which they shall be appointed and their powers and duties consistent with section 4-6 of this chapter;

(5) Through its bureau, determine by means of field studies and sampling the degree of air contamination and air pollution in the city and various areas therein;

(6) Recommend ambient air quality standards for the city;

(7) Hold hearings upon appeals from orders of the director, or from the grant or denial by the director of permits, or from any other actions or determinations of the director hereunder for which provision is made for appeal;

(8) Institute in the name of the city in the circuit court or the chancery court of the county legal proceedings to compel compliance with any final order or determination entered by the board or the director;

(9) Settle or compromise in its discretion, with the approval of the city attorney, as it may deem advantageous to the city and in keeping with the purpose and spirit of this chapter, any suit for recovery of any penalty or for compelling compliance with the provisions of any rule or regulation issued hereunder or for compelling compliance with any order or determination entered by the board or the director;

(10) Require access to records relating to emissions which cause or contribute to air contamination;

(11) Issue, suspend and revoke installation permits, temporary operating permits and certificates of operation and other permits and licenses provided for in this chapter, and in accordance with the provisions of this chapter place conditions of installation and operation upon the permits issued by the board;

(12) To provide for forfeitures and penalties for any breach of this chapter, such forfeitures and penalties to be imposed upon a violator only after hearing, or opportunity for hearing, before the board and to provide for forfeitures and penalties upon failure of a violator of this chapter to comply with any order of the board, and to bring legal actions in the name of the city in the appropriate court for the collection of such penalty or forfeiture;

(13) Promulgate techniques for the sampling of emissions from any source of air contaminants and promulgate techniques for predicting the concentration of air pollution at any point.

(14) The Chattanooga-Hamilton County Air Pollution Control Board shall act as the representative of the City of Chattanooga, Tennessee, in connection with any application to the State for the issuance of a Permit under T.C.A. §68-212-101, et seq. and/or T.C.A. §68-212-201, et seq. or State regulations promulgated pursuant thereto and shall, among other things, discharge the following responsibilities:

14.1 Review permit applications and documentation;

14.2 Participate in a community meeting (or meetings);

14.3 Participate in a public hearing (or hearings);

14.4 Act as an official representative for the City at any "community meeting";

14.5 Prepare and present to the local government recommendations for all reports allowed under the state statutes including the reports representing the interpretation of the local government of the concerns of the community;

14.6 Prepare and present within the recommendations for such report(s) draft proposed summary (or summaries) of issues that the local governing body may review for possible adoption;

14.7 Develop and recommend to local government a proposed decision to accept, reject or modify the permit application;

14.8 To consider in making the aforementioned proposal of a decision those criteria set forth in the Tennessee Statutes [T.C.A. §68-212-108(t)(2); T.C.A. §68-212-107(d)(10), etc.];

14.9 Among other things (but without limitation) to determine, and to report upon, whether or not the location, and operation of the proposed facility conforms to the Chattanooga-Hamilton County Hazardous Waste Management Plan and complies with the applicable portions of the City of Chattanooga, Tennessee, Zoning Ordinance;

14.10 Among other things (but without limitation) to determine and report upon whether or not the proposed facility meets all other criteria set forth in the applicable parts of the State statues;

14.11 To generally monitor the permit process conducted by the State and to maintain liaison with the appropriate state agency (or agencies) during the permitting process, and during the construction process, the start-up and the operation of the facility to assist local government in assuring that the local concerns expressed are adequately considered in the permit process and/or the construction and/or operating process;

14.12 Acting through the Chairman of the Air Pollution Control Board (or his/her designee) to serve as a participant for the City of Chattanooga in any community meeting(s) or any public hearing (s);

14.13 To conduct opinion polls and/or local-government public hearings and to otherwise gather the necessary data for the preparation and report to the Mayor and City Council, of the recommended interpretation of the local government of the concerns of the community and thereafter, if the Mayor and City Council concur in the interpretation, to express (on behalf of local government) the same at all appropriate times and places in the permit process;

14.14 To prepare and report to the Mayor and the City Council a recommendation of the "decision" provided for in T.C.A. §68-212-108(f)(2) of local government to "accept, reject or modify" the application; and thereafter, to express, on behalf of the City of Chattanooga, Tennessee, (or to support the Mayor and/or Chairperson of the City Council in the expression) at all appropriate times and places the decision (or the decisions) of the City of Chattanooga, Tennessee, as expressed by the City Council and/or the Mayor following the recommendation;

14.15 To monitor the State permit process, and to the full extent permissible under the law (or terms of the permit), to monitor the construction and operation of the facility to assure continuing compliance with the provisions and conditions of the permit and all applicable regulations and statutes; and to maintain close liaison and cooperation with the State of Tennessee in the discharge of the State's responsibility to monitor construction and operation of the facility; and

14.16 To carry out such other duties and responsibilities as may be assigned to it in writing by the Mayor or the City Council (or both) in connection with any application by any person, firm, corporation or other legal entity for a permit to site, construct or operate a "commercial facility" as that term is defined at T.C.A. §68-212-202 for a permit under T.C.A. §68-212-101 et seq.

(b) The board shall have the following duties with respect to the prevention, abatement and control of air pollution:

(1) Prepare and develop a comprehensive plan or plans for the prevention, abatement and control of air pollution in this city and report upon request of the mayor or chairman of the council or chairman of the board to the mayor and city council of the city on progress being made toward the prevention, abatement and control of air pollution;

(2) Encourage voluntary cooperation by persons and affected groups to achieve the purposes of this chapter;

(3) Encourage and conduct studies, investigations and research relating to air contamination and air pollution and their cause, effects, prevention, abatement and control;

(4) Collect and disseminate information and conduct educational and training programs relating to air contamination and air pollution;

(5) Advise, consult, contract and cooperate with other agencies of the state and this city, other local governments, industries, other states, interstate or interlocal agencies, and the federal government, and with interested persons or groups;

(6) Accept, receive and administer grants or other funds or gifts from public or private agencies, including the state and federal governments, for the purpose of carrying out any of the functions of this chapter. Such funds received by the board pursuant to this subdivision shall be deposited with the city finance officer and held and disbursed by him in accordance with regulations of the board. The board is authorized to purchase or otherwise procure equipment, supplies and services through the general services administration of the federal government, and, when so doing, the board need not comply with the competitive bidding procedures contained in sections 2-341 through 2-367 of this Code relative to purchases, contracts and property disposition. The board is authorized to promulgate such rules for the conduct of its business as it may deem necessary for carrying out the provisions of this chapter.

(c) The board may delegate to the director, and through him to the personnel of the bureau, any powers conferred upon the board by this section with the exception of those enumerated in subdivisions (1), (4), (6), (7) and (9) of subsection (a) of this section. The director shall report to the board at the next board meeting any penalties imposed, upon whom imposed and the amount of such penalty.
(Code 1986, § 4-7; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10226, § 1, 5-23-95; Ord. No. 10786, § 62, 10-27-98; Ord. No. 13221, § 4, 9-19-17)

Sec. 4-8. Installation permit and certificate of operation.

(a) *Installation permit.*

(1) No person shall cause or allow the construction, installation, or beginning any modification, alteration or reconstruction of any fuel-burning, refuse-burning, process or air pollution control equipment or any other source, as defined in section 4-2, until a complete application, together with plans and specifications applicable to the work on the equipment and structures or buildings used in connection therewith, has been filed by the person or his agent in the office of, and has been approved by, the director and an installation permit has been issued for such construction, installation or alteration.

a. For the purposes of subsection 4-8(a), any activities listed in subsection 4-56(c)(11) due to de minimis emissions level are deemed to be insignificant activities that are not subject to the requirement to obtain an installation permit. Any activities listed in subsection 4-56(c)(12) due to size or production rate are also deemed to be insignificant activities not subject to the requirement to obtain an installation permit. These de minimis activities exemptions from permit application requirements shall not be used to avoid any emission limitations, standards, prohibitions or other requirements of Chapter 4; nor shall they be used to lower the "potential to emit," as defined in section 4-53, below "major source" thresholds, as defined in section 4-53.

(2) The plans and specifications, submitted pursuant to paragraph (a)(1) of this section, shall show the form and dimensions of the process, fuel burning, refuse burning, air pollution control or other equipment, together with the description and dimensions of the building or part thereof in which such process, fuel-burning, refuse-burning, air pollution control or other equipment is to be located; identification and description of compliance monitoring devices or activities; the

character of the fuel to be used; the maximum quantity of such fuel to be burned per hour; the kind and amount of raw or basic materials processed; the expected air pollutant emission rate; production rates and the operating requirements, including operating schedules; air pollutant concentration; air pollutant concentration; gas volume and gas temperature at each emission point; the location and elevation of each emission point relative to nearby structures and window openings; a flow diagram showing the equipment under consideration and its relationship to other processes, if any, and a general description of these processes; and any other reasonable and pertinent information that may be required by the director. The plans and specifications shall show that the room or premises in which fuel-burning, refuse-burning or process equipment is to be located is provided with adequate ventilation to provide sufficient air for the proper operation of the equipment.

(3) Maintenance or repair or physical transfer of any installed equipment within the premises of the original installation which does not change the capacity of such process or control equipment and which does not involve any change in the method of processing or increase the amount or alter the characteristics of the emission of air pollutants therefrom may be made without an installation permit. The physical transfer of any installed equipment to a location other than within the premises of the original installation shall cause said equipment to be reclassified as new equipment.

(4) The requirement for filing plans and specifications involving the installation, erection, construction, reconstruction, modification, alteration, or repair of, or addition to, any source, including any fuel- or refuse-burning equipment or process equipment or the building of a pilot plant or process, to be used in or to become part of a confidential formula, process or method used in any manufacturing operation is subject to section 4-19, upon the filing with the director of a written request for confidentiality by an owner or operator for such formula, equipment, method or process. Provided, however, that the type and emission rate of each air pollutant shall in no event be deemed to be confidential information subject to the protection of the provisions of this paragraph and must be disclosed under all circumstances; and provided further that the person claiming the protection of this paragraph shall institute and conduct a self-monitoring system and shall report the results thereof when and as required by the director. The confidentiality of such formula, equipment, method or process shall in no way relieve the person or persons responsible for the confidential formula, equipment, method or process from complying with all other provisions of this chapter.

(5) No construction, installation, modification, alteration or reconstruction shall be made which is not in accordance with the plans, specifications, and other pertinent information upon which the installation permit was issued unless prior written approval of the director is obtained.

(6) Violation of the installation permit shall be sufficient cause for the director to stop all work, and the director is hereby authorized to seal the installation. No further work shall be done until the director is assured that the condition in question will be corrected and that the work will proceed in accordance with the installation permit.

(7) *Failure to obtain installation permit.* If work which requires an installation permit is begun without having obtained an installation permit, or if work is performed other than in accordance with the plans and specifications filed with and approved by the director to obtain the installation permit, the director may grant such permit; provided, however, that the installation permit fee is doubled in all such cases. If work upon equipment which requires an installation permit under this chapter is begun without having obtained such permit, or if faulty work has been performed, the director may grant such permit, conditioned upon the removal of all faulty work; provided, however, that this provision shall not be construed as authorizing such violation.

(8) If the work authorized under the installation permit is not commenced and continued within one (1) year after the date of issuance of the installation permit, the permit shall become void and all fees shall be forfeited, unless an extension of time is warranted and granted by the director. An installation permit shall be valid for twelve (12) months after the date of its issuance. An extension of time may be granted by the director to a source that notifies the director, in writing not later than thirty (30) days before expiration of its installation permit, of the request for an extension, the reason for extension, and the duration of the requested extension.

(9) *Emergency repair.* An emergency repair other than as specified in paragraph (a)(3) of this section may be made prior to the application for an installation permit if serious consequences may result if the repair were deferred. When such repair is made, the owner or operator concerned shall notify the director on the first business day after the emergency commenced and file an application for an installation permit if such permit is otherwise required by this chapter.

(10) Upon review of the required plans and specifications, an application shall be approved or rejected within a reasonable time after it is filed in the office of the director. Upon the approval of the application and upon the payment of the prescribed fees, the director shall issue an installation permit. Issuance of an installation permit will not be construed to indicate compliance with the requirements of the building code of this municipality or any other requirement of this municipality or of the air pollution control ordinance of this municipality.

(11) An installation permit is not transferable from one (1) person to another person, nor from one (1) air pollutant source to another air pollutant source, nor from one (1) location to another location. An application for an installation permit by the new owner or operator of the new air pollutant source, or by the owner or operator of the air pollutant source at the new location, shall be required as if there had been no previous permit issued. An existing source would retain its status as an existing source. The permits contemplated by this section shall be for the control of air pollutants. This section shall apply to fuel-burning equipment, refuse-burning equipment, process equipment which causes air emissions, or any other source or equipment that has the potential to emit air pollutants and to air pollution control equipment, but nothing contained herein shall require application for, or issuance of, a permit for any overall manufacturing process provided permits are applied for, and obtained, for the foregoing items of equipment in the overall process.

[*New: T.A.R. 1200-3-9-.03(6)*]

(12) The director shall reject any application for an installation permit and shall require resubmission of an application and further tests or information if:

a. The proposed construction, installation or modification, alteration or reconstruction or the anticipated emission of air pollutants does not meet the provisions of this chapter; or

b. The proposed emission control equipment is of a type reasonably anticipated by the director, based upon tests or other available evidence, not to be adequate for its intended usage; or

c. The proposed construction, installation or modification, alteration, or reconstruction will interfere with the attainment or maintenance of an ambient air quality standard contained in Section 4-41, Rule 21.

(13) The director or a designated representative shall have the right to enter the premises and inspect the installation in progress at any reasonable time. For the purposes of this paragraph, "any reasonable time" shall mean any time construction or installation activity is being conducted at the source.

[*Formerly Section 4-8(a)(15)*]

(14) The following fee schedules shall apply to the issuance of all installation permits. The fees in these schedules may be adjusted each year, if necessary as determined by the Board, by up to the percentage, if any, by which the Consumer Price Index for All Urban Consumers (CPI-U) for the most recent completed calendar year exceeds the CPI-U for calendar year 2025. The CPI-U is compiled by the Bureau of Labor Statistics of the U.S. Department of Labor. The Board may review these fees annually to determine if they continue to meet the financial requirements of the Bureau to fulfill the activities allowed to be funded by these fees. A source shall be required to pay the required fee prior to issuance of an installation permit to that source. Said fees shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board who shall accumulate such fees in an account dedicated to the Board for air pollution control activities.

INSTALLATION PERMITS

SCHEDULE 4-8-A-I. FUEL-BURNING EQUIPMENT

Fees shall be assessed based upon the design fuel burning rate per unit as expressed in millions of British thermal units (Btu) per hour, using gross heating values of the fuel.

Fuel Burning Rate (Million Btu per Hour)	*Fee*
0.5 to 4.99	$660.00
5 to 14.99	780.00
15 to 99.99	900.00
100 or greater	1,200.00

SCHEDULE 4-8-A-II. INCINERATORS

Fees shall be assessed based upon the design input incineration rate as expressed in pounds per hour.

Incineration Rate (Pounds per Hour)	*Fee*
Up to 200	$125.00
200 to 599	250.00
600 to 999	365.00
1,000 to 1,999	480.00
2,000 to 4,999	6000.00
5,000 to 9,999	660.00
10,000 or greater	720.00

SCHEDULE 4-8-A-III. PROCESS EQUIPMENT

Fees shall be assessed based upon the design input process weight per hour as expressed in pounds per hour.

Process Weight (Pounds per Hour)	*Fee*
Up to 999	$250.00
1,000 to 9,999	425.00

Process Weight (Pounds per Hour)	*Fee*
10,000 to 49,999	600.00
50,000 to 149,999	780.00
150,000 to 499,999	960.00
500,000 to 999,999	1,140.00
1,000,000 or greater	1,200.00

(NOTE: Examples of this type of equipment include: chemical processing equipment; crushing, grinding or milling equipment; and metal forming equipment.)

SCHEDULE 4-8-A-IV. ODOR PRODUCING EQUIPMENT

Each unit shall be assessed a fee of four hundred eighty dollars ($480.00).

(NOTE: Examples of this type of equipment include: tar and asphalt kettles, varnish and paint heating kettles, and rendering kettles.)

SCHEDULE 4-8-A-V. MISCELLANEOUS

Any article, machine, equipment or other contrivance which is not included in the preceding schedules shall be assessed a fee of four hundred eighty dollars ($480.00) per unit.

(b) (Reserved)

(c) *Certificate of Operation.*

(1) No person shall cause, suffer, allow or permit the operation of any new or modified, altered, or reconstructed fuel-burning, refuse-burning, process, or air pollution control equipment, or any equipment pertaining thereto, or any other source as defined in section 4-2 for which an installation permit was required or was issued until a certificate of operation has been issued for the source by the director. A certificate of operation is not transferable from one (1) person to another person, nor from one (1) air pollutant source to another air pollutant source, nor from one (1) location to another location. An application for a certificate of operation by the new owner or operator of the air pollutant source, shall be submitted to the Director prior to a transfer of ownership identifying the new owner and any other anticipated changes in operation. An existing source would retain its status as an existing source, except where the source has been shutdown for more than two (2) years. The director is hereby authorized to seal equipment in operation for which a certificate of operation was not obtained as required in this chapter.

[*Formerly in Section 4-8(b)(1); New T.A.R. 1200-3-9-.03(6)*]

(2) The owner or operator of any source for which an installation permit is required shall give notification to the director when the work is completed and ready for final inspection. This notification to the director shall include a description of:

a. The equipment or air pollution control equipment or activity in consideration;

b. Any air pollution control equipment connected or attached to, or serving, or served by the emission unit unless up to date information is on file with the director; and

c. Any reasonable additional information, evidence or documentation to show that the completed work is in accord with the original plans as stipulated in section 4-8(a).

[*Formerly in Section 4-8(b)(1)*]

(3) Not later than sixty (60) days after achieving the maximum production rate at which the source will be operated, and not later than one hundred fifty (150) days after initial startup of such source, and not later than one hundred fifty (150) days after issuance of the initial certificate of operation for such source, the owner or operator of such source shall complete any required performance test(s) and deliver to the director a written report of the results of such performance test(s). An extension of time may be granted by the director to a source that notifies the director, in writing not later than one hundred twenty (120) days after issuance of the initial certificate of operation for such source, of the request for an extension, the reason for extension, and the duration of the requested extension, except not to any source subject to section 4-41, Rule 15. Failure to operate successfully under test within the limitations and requirements of this chapter shall constitute sufficient grounds for the director to require that changes in the source be made; to reopen the certificate of operation for the revision of its terms and conditions or the addition of new terms and conditions; or to revoke or suspend the certificate of operation, as appropriate. Responsibility for proof and all expenses incurred in conducting the tests shall be borne by the owner or operator of such equipment, or the agent(s) of that person. The director may, if in the opinion of the director the nature of the source in consideration or the use to which it is to be put so justifies, waive the demonstration or test operation, but such waiver shall in no manner provide immunity from prosecution for violations of the other requirements of any applicable law.

[*Formerly Section 4-8(b)(2)*]

(4) The director or a designated representative shall have the right to enter the source premises to inspect the source and observe any performance test or operation of the equipment for which a certificate of operation is issued, as provided in section 4-16.

[*Formerly Section 4-8(b)(3)*]

(5) Prior to operating any source subject to section 4-8, the owner or operator shall obtain a certificate of operation issued by the director. Each owner and operator of a source that has been issued a certificate of operation shall adhere to the terms and limitations of such certificate of operation throughout its term. All emissions limitations, controls and other requirements imposed by a certificate of operation will be at least as stringent as those contained in this chapter or enforceable under this chapter. Said certificate(s) of operation shall be kept on file at the source premises and made available to bureau representatives upon request.

[*Formerly Section 4-8(b)(4)*]

[*New: federal enforceability criteria in 54 FR 27282, 6-28-89*]

(6) Each certificate of operation shall properly identify the equipment to which it pertains and shall specify the class of fuel, type of raw or intermediary material used, if any, for which the equipment and appurtenances have been designed or which have been successfully used in the operating test. The owner or operator or the agent of the owner or operator shall be responsible for notifying the director that equipment for which an initial certificate of operation has been issued has completed any required testing and is ready for permanent operation. With such notification the owner or operator or agent shall submit to the director test and operation data as required by the director for use as evidence that the equipment or source will operate in compliance with all provisions of this chapter.

[*Formerly in 4-8(c)(1)*]

(7) *Term of a Certificate of Operation.* Each initial certificate of operation shall be issued for up to a one (1) year period. Each renewal certificate of operation shall be issued for a period of up to five (5) years. Application for renewal of a certificate of operation for a source shall be made in writing upon forms furnished by the bureau not less than sixty (60) days prior to expiration of the certificate for which renewal is sought. Disclosures of information, tests and other prerequisites to

the issuance of an installation permit or initial certificate of operation may be required by the director prior to the issuance of a renewal certificate of operation. The director may refuse to renew a certificate of operation or may require further tests or information if the director determines that the equipment is not in compliance with all the provisions of this chapter. The director may renew a certificate of operation and impose special conditions upon a source that is not in full compliance with this chapter but is subject to a legally enforceable compliance schedule, or upon a source that has appealed other special conditions to the board if that source has filed a timely appeal pursuant to section 4-18. Expiration of any certificate of operation terminates the source's right to operate any equipment or process previously covered by that certificate of operation, except where expiration has occurred due to delay on the part of the Bureau.

[*Formerly in 4-8(c)(1)*]

(8) *Sampling and Testing.*

a. Authorization. Whenever the director has reason to believe that the emission limits required by this chapter are being violated by an existing source, the director may require the owner to conduct or to have conducted at the owner's expense tests to determine the emission level of specific air pollutants. The director may require the applicant for an installation permit or a certificate of operation or a federally enforceable certificate of operation, at either a new or an existing source, to conduct, or to have conducted, such tests as are necessary to establish the amount of air pollutants emitted from such source. Such tests shall be conducted in a manner approved by the director. The director shall be notified in writing of any testing at least thirty (30) days prior to such testing, and the director or a representative of the director shall be permitted to witness any testing. The director may conduct tests of air pollution emissions from any source.

[*Formerly 4-8(c)(2)a.; New T.A.R. 1200-3-10-.01)*]

b. Test openings and Access, Scaffolding and Facilities.

1. Existing Sources. When tests of existing equipment are deemed necessary by the director and the director elects to conduct such test himself or have his representative conduct such testing the owner shall provide, at no expense to the bureau, reasonable and necessary openings in stacks, vents, and ducts along with safe and easy access thereto including a suitable power source to the point of testing for proper determination of the level of air pollutant emissions and other pertinent facilities as requested by the director. Such facilities may be either permanent or temporary, at the discretion of the owner subject to these provisions; and shall be suitable for determination consistent with the emission limits established in this chapter; and shall comply with all laws and regulations concerning safe construction of, and safe practice in connection with such facilities; provided, however, that if the owner elects to provide temporary facilities then in the event future tests are desired by the director the permittee shall, at no expense to the bureau, provide further facilities when requested to do so by the director. [*Formerly 4-8(c)(2)b.; New T.A.R. 1200-3-10-.01)*]

2. New Facilities. When tests of new equipment or sources are deemed necessary by the director and the director elects to conduct such test himself or have his representative conduct such testing the owner shall provide, at no expense to the bureau, reasonable and necessary openings in stacks, vents, and ducts along with safe and easy access thereto including a suitable power source to the point of testing for proper determination of the level of air pollutant emissions and other pertinent facilities as requested by the director. Such facilities may be either permanent or temporary, at the discretion of the owner subject to these provisions; and shall be suitable for

determination consistent with the emission limits established in this chapter; and shall comply with all laws and regulations concerning safe construction of, and safe practice in connection with such facilities; provided, however, that if the owner elects to provide temporary facilities then in the event future tests are desired by the director the permittee shall, at no expense to the bureau, provide further facilities when requested to do so by the director. The owner or operator shall provide, for any stack or duct at a new source, adequate sampling facilities as follows:

(i) Sampling ports of a size, number, and location as the director may require;

(ii) Safe access to each port; and

(iii) A suitable power source to the point of testing for proper determination of the level of air pollutant emissions.

(*New T.A.R. 1200-3-10-.01*)

3. Periodic Testing. The director may require the owner to conduct or to have conducted periodic tests as are necessary to establish the amount of air pollutants emitted from the source. The nature, extent and frequency of such required testing shall be specified in the certificate of operation. Such tests shall be made at the expense of the owner and shall be conducted in a manner approved by the director. The director shall be supplied with such data as stipulated in the certificate of operation or federally enforceable operating permit.

(*New T.A.R. 1200-3-10-.01*)

c. Bureau test. Nothing in this chapter concerning tests conducted by and paid for by any owner or authorized agent of the owner shall be deemed to abridge the rights of the director or a representative of the director to conduct separate or additional tests if the director so requires on behalf of the board or the bureau of air pollution control at the bureau's expense, except regarding test openings as discussed in paragraph (c)(8)b. of this section, covering test openings and access. [*Formerly 4-8(c)(2)c.*]

d. Cost of tests other than section 4-8(c)(8)b.3. Periodic Testing. The owner or operator is liable for the cost of initial tests of any equipment and tests resulting from any change in the activity, equipment, methods or conditions of operation of the source. Initial tests will include all testing performed for the purpose of demonstrating compliance with this chapter for installation permits and for any certificate of operation. The data obtained during any such testing shall be made available to the director and to the owner. [*Formerly 4-8(c)(2)d.; New T.A.R. 1200-3-10-.01*]

e. Methods and procedures. Sampling and analytical determinations to ascertain compliance with this chapter shall be made in accordance with methods and procedures specified in section 4-3. [*Formerly 4-8(c)(2)e.*]

(9) When a certificate of operation is refused, suspended, revoked, or has expired, the director is authorized to seal the process or control equipment until the owner or operator complies with the provisions of this chapter, and no person shall operate any equipment which requires a certificate of operation until such certificate is obtained. [*Formerly 4-8(c)(3)*]

(10) The director shall have authority to require owners and operators of stationary sources to install, maintain and use emission monitoring devices and to make periodic reports to the director on the nature and amounts of emissions from such stationary sources. The director shall have authority to make such data available to the public as reported and as correlated with any applicable emission standards or limitations. [*Formerly 4-8(c)(4)*]

(11) *Federally Enforceable Certificates of Operation.* All requirements and provisions of this chapter which are applicable to sources issued certificates of operation are also applicable to sources

issued federally enforceable certificates of operation, and such requirements are cumulative. A federally enforceable certificate of operation may be applied for and issued under the requirements of section 4-8(c)(11) only after section 4-8(c)(11) has been approved by U.S. EPA into the State Implementation Plan. This municipality retains the authority to designate from time to time which sources or source categories, in addition to those Part 70 sources seeking to qualify themselves for synthetic minor source status, shall be allowed or required to obtain federally enforceable certificates of operation under section 4-8(c)(11). In addition:

a. The owner and operator of a source that has been issued a federally enforceable certificate of operation shall adhere to its terms and limitations throughout the term of the certificate of operation and any renewal or revision of it. This requirement of adherence shall be legally enforceable, and a violation of same shall constitute a violation of this chapter.

b. Nothing in section 4-8(c)(11) shall be construed to require that a certificate of operation be federally enforced. Nothing in section 4-8(c)(11) shall be construed to impede or impair enforcement of a federally enforceable certificate of operation under other provisions of this chapter or state or federal law. It is the declared legislative intent of this municipality to recognize that any part of this municipality's air pollution control ordinance that is an EPA-approved part of the state implementation plan is also federally enforceable, subject to the provisions and limitations of the federal Clean Air Act; and that any permit or certificate of operation issued under any other part of the air pollution control ordinance of this municipality and any requirement or limitation contained in such ordinance may be enforced federally to the extent that federal law provides for such enforcement. A permit issued under this section 4-8(c)(11) does not authorize or allow a relaxation of any otherwise applicable federal requirements.

c. The director or the board, in issuing a federally enforceable certificate of operation, shall assure that all emissions limitations, controls and other requirements imposed by such certificate of operation are at least as stringent as any other applicable limitations and requirements contained in, or enforceable under, the State Implementation Plan. The director or the board shall not issue a federally enforceable certificate of operation that waives or makes less stringent any limitations or requirements contained in or issued pursuant to the State Implementation Plan or that are otherwise federally enforceable under it.

d. The limitations, controls and requirements in a federally enforceable certificate of operation shall be permanent, quantifiable and otherwise enforceable as a practical matter.

e. Any federally enforceable certificate of operation issued to a synthetic minor source shall also contain a statement of basis comparing the source's potential to emit with the synthetic limit to emit and a description of the procedures to be followed that will ensure that the limit on which the director or the board bases a determination that a source is a synthetic minor source and not a major source, as those terms are defined in section 4-53, is not exceeded.

f. Nothing in section 4-8(c)(11) shall be construed to prohibit enforcement of a federally enforceable certificate of operation under the general enforcement provisions of this ordinance or of state or federal law.

g. The Director shall give notice to U.S. EPA and the general public at least thirty (30) days in advance of a public hearing on the issuance of a proposed federally enforceable certificate of operation and shall provide at least thirty (30) days for public comment. A proposed change to the potential to emit air pollutants or hazardous air pollutants of any source previously determined by the Board to be a synthetic minor source and issued one (1) or more federally enforceable certificates of operation that have not yet expired, is not subject to subsequent public participation requirements regarding the proposed change so long as

the proposed change would not result in a net increase in the potential-to-emit of any air pollutant or any hazardous air pollutant, as determined by the Director. The Director shall provide U.S. EPA with a copy of a proposed certificate of operation intended to be federally enforceable at the same time notice is provided. Such notice shall be given by publication as an electronic notice (e-notice) on the Bureau website for the duration of the public comment period and by other means designated by the Director, if necessary. Such advance notice must be given and a public hearing must be held prior to issuance of any federally enforceable certificate of operation to any source. The Director shall, in a timely manner, provide U.S. EPA a copy of the final certificate of operation intended to be federally enforceable.

h. If U.S. EPA deems such a proposed certificate of operation to fail to qualify as a federally enforceable certificate of operation, then the director shall notify the applicant of the position taken by U.S. EPA and either (1) the applicant may resubmit the application in amended or modified form for further processing under this section 4-8(c)(11) or (2) the director may issue a certificate of operation stating on its face that it is deemed not be federally enforceable.

i. A source that has submitted a written request for synthetic minor source status to the director by September 1, 1995, with apparently approvable proposed physical or operational limitations on its potential to emit, or both, including a statement of basis comparing the source's potential to emit with its proposed synthetic limit to emit and a description of the procedures to be followed that will ensure its proposed limitations are not exceeded, will remain subject to the fees set forth in § 4-8 and not to the Part 70 Operating Permit Program fees set forth in § 4-60. If the board or the director determines after November 1, 1995, that such source is not eligible for synthetic minor source status, such source shall be liable for Part 70 Operating Permit Program fees set forth in § 4-60 retroactive to November 1, 1995, with interest pursuant to *Tennessee Code Annotated* Section 47-14-121.

(12) *Fees for Certificates of Operation.*

a. *Fees.* A source shall be required to pay the required fee prior to issuance of any certificate of operation to that source and to maintain the certificate of operation, once issued.

b. *Initial Certificate of Operation Fees.* The following fee schedules shall apply to the initial issuance of any certificate of operation. The fees in these schedules may be adjusted each year, if necessary as determined by the Board, by up to the percentage, if any, by which the Consumer Price Index for All Urban Consumers (CPI-U) for the most recent completed calendar year exceeds the CPI-U for calendar year 2025. The CPI-U is compiled by the Bureau of Labor Statistics of the U.S. Department of Labor. The Board may review these fees annually to determine if they continue to meet the financial requirements of the Bureau to fulfill the activities allowed to be funded by these fees. Said fees shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board, who shall accumulate such fees in an account dedicated to the Board for air pollution control activities.

INITIAL CERTIFICATES OF OPERATION

SCHEDULE 4-8-C-I. FUEL-BURNING EQUIPMENT

Fuel Burning Rate (Million Btu per Hour)	*Fee*
0.5 to 4.99	$900.00

Fuel Burning Rate (Million Btu per Hour)	*Fee*
5 to 14.99	1,020.00
15 to 99.99	1,200.00
100 or greater	1,380.00

SCHEDULE 4-8-C-II. INCINERATORS

Incineration Rate (Pounds per Hour)	*Fee*
Up to 200	$420.00
200 to 599	480.00
600 to 999	540.00
1,000 to 1,999	600.00
2,000 to 4,999	660.00
5,000 to 9,999	720.00
10,000 or greater	780.00

SCHEDULE 4-8-C-III. PROCESS EQUIPMENT

Process Weight (Pounds per Hour)	*Fee*
Up to 999	$540.00
1,000 to 9,999	720.00
10,000 to 49,999	900.00
50,000 to 149,999	1,080.00
150,000 and greater	1,200.00

SCHEDULE 4-8-C-IV. ODOR PRODUCING EQUIPMENT

Each unit shall be assessed a fee of four hundred eight dollars ($480.00).

SCHEDULE 4-8-C-V. MISCELLANEOUS

Each unit shall be assessed a fee of four hundred eight dollars ($480.00).

c. *Renewal Certificate of Operation Annual Fees.* A source that has applied for renewal of one or more certificates of operation shall pay the required annual fee prior to issuance of any renewal certificate(s) of operation to it. Subsequent to issuance of any renewal certificate(s) of operation to a source, the source shall pay the required annual fee throughout the term of the permit, not later than the anniversary of issuance of any renewal certificate(s) of operation. The following annual fee schedules shall apply to the renewal of any certificate of operation. The fees in these schedules may be adjusted each year, if necessary as determined by the Board, by up to the percentage, if any, by which the Consumer Price Index for All Urban Consumers (CPI-U) for the most recent completed calendar year exceeds the CPI-U for calendar year 2025. The CPI-U is compiled by the Bureau of Labor Statistics of the U.S. Department of Labor. The Board may review these fees annually to determine if they continue to meet the financial requirements of the Bureau to fulfill the activities allowed to be funded by these fees. Said fees shall be collected by the Bureau and

remitted to the City of Chattanooga finance officer as fiscal agent for the Board, who shall accumulate such fees in an account dedicated to the Board for air pollution control activities.

RENEWAL CERTIFICATES OF OPERATION

SCHEDULE 4-8-C-VI. FUEL-BURNING EQUIPMENT

Fuel Burning Rate (Million Btu per Hour)	*Fee*
0.5 to 4.99	$420.00
5 to 14.99	480.00
15 to 99.99	540.00
100 or greater	620.00

SCHEDULE 4-8-C-VII. INCINERATORS

Incineration Rate (Pounds per Hour)	*Fee*
Up to 200	$300.00
200 to 599	320.00
600 to 999	365.00
1,000 to 1,999	438.00
2,000 to 4,999	480.00
5,000 to 9,999	530.00
10,000 or greater	575.00

SCHEDULE 4-8-C-VIII. PROCESS EQUIPMENT

Process Weight (Pounds per Hour)	*Fee*
Up to 999	$300.00
1,000 to 9,999	420.00
10,000 to 49,999	540.00
50,000 to 149,999	660.00
150,000 to 499,999	780.00
500,000 to 999,999	900.00
1,000,000 or greater	1,020.00

SCHEDULE 4-8-C-IX. ODOR PRODUCING EQUIPMENT

Each unit shall be assessed a fee of three hundred dollars ($300.00).

SCHEDULE 4-8-C-X. MISCELLANEOUS

Each unit shall be assessed a fee of three hundred dollars ($300.00).

(d) *General provisions.*

(1) The issuance by the director or board of any installation permit or certificate of operation shall not be held to exempt the person to whom the permit or certificate of operation was issued, or any

other person subject to this chapter, from prosecution for any violation of any provisions of this chapter, or from action under any other provisions of this chapter or any other provisions of law. [*Formerly 4-8(d)(2)*]

(2) No person shall cause, suffer, allow or permit the operation of any equipment or installation subject to the provisions of this chapter in violation of an authorized seal of said equipment or installation. [*Formerly 4-8(d)(3)*]

(3) The provisions of this section shall not apply to fuel-burning equipment used exclusively for heating the dwellings of less than three (3) families; nor to equipment for burning gas, or number one (1) or number two (2) fuel oil, with a design heat input capacity of less than five million (5,000,000) BTU per hour (BTU/hr). [*Formerly Section 4-8(d)(4)*]

(4) *Duplicate Permits.* Duplicate permits or certificates of operation may be issued by the Director if requested by the owner or operator. A fee of seventy-five dollars ($75.00) shall be charged for issuing a duplicate installation permit or certificate of operation. A fee of three hundred dollars ($300.00) shall be charged for issuing a duplicate Part 70 operating permit. Said fees shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board who shall accumulate such fees in an account dedicated to the Board for air pollution control activities.

(5) The schedules of fees for certificates of operation for fuel-burning equipment, incinerators, and process equipment are to be based upon rated design input of said equipment. Whenever legally enforceable limitations on operating hours or production rate are included in a certificate of operation for a source, then the schedule of fees imposed on the source is to be based on the legally enforceable limitations. [*Formerly 4-8(d)(6)*]

(6) An additional fee of 5.0 percent of the outstanding amount, compounded monthly, shall be assessed for any certificate of operation fee that has not been paid by thirty (30) days after the due date that is indicated on the corresponding invoice. Said fee shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board who shall accumulate such fees in an account dedicated to the Board for air pollution control activities.

(7) *Administrative Amendments to a Certificate of Operation or an Installation Permit.*

a. An administrative amendment is a revision of a certificate of operation or an installation permit that:

1. Corrects typographical errors;

2. Identifies a change in the legal name, address, or telephone number of any person initially identified in the permit (but not transfer of ownership to a different party), or provides a similar minor administrative change at the source; or

3. Incorporates into the certificate of operation all applicable provisions of the installation permit.

b. The director shall take no more than sixty (60) days after receipt of a request for an administrative amendment to take final action on such request, and may incorporate such changes without giving public notice or opportunity for public comment. (*New based on concept in 40 CFR 70.7(d)*)

[*Formerly 4-8(d)(9)*]

(e) *Construction or modification permit.*

(1) Except as provided in paragraph (e)(2) of this section, the director shall not grant a permit for the construction or modification of any air contaminant source in any attainment area or unclassified area if such construction or modification will interfere with the maintenance of the air quality

standard in an area where the construction or modification has a significant impact on air quality standards or will violate any provisions of this chapter or will violate any provisions of the Tennessee Air Quality Act. If an attainment area is redesignated to nonattainment status, the terms and conditions of the installation permits and certificates of operation issued in accordance with section 4-8 of the Chattanooga Air Pollution Control Ordinance immediately preceding the effective date of the redesignation shall remain in full force and effect for those sources to which section 4-8 had applicability prior to the effective date of the redesignation, until such time as revised or additional installation permits or certificates of operation are issued to those sources with revised or additional terms and conditions that are applicable to sources in nonattainment areas.

(2) Nonattainment areas. If a nonattainment area is redesignated to attainment or unclassifiable or nonattainment status is otherwise eliminated, the requirements contained in this subsection 4-8(e)(2) shall remain in full force and effect for those sources to which this section 4-8 had applicability prior to the effective date of the redesignation. The director shall not grant a permit for construction or modification of any air contaminant source in a nonattainment area nor to any source that significantly impacts on a nonattainment area if such construction or modification will interfere with reasonable further progress in attainment of the specific air quality standards or will violate provisions of this chapter except in accordance with the following:

a. All new or modified sources shall utilize good engineering practice, as determined by the director, in designing stacks. The director will consider only stack heights that represent good engineering practice in determining whether emission control measures are sufficient.

b. All new or modified sources of criteria pollutants constructed or modified after the effective date of this provision which are not classified as major sources or major modifications shall utilize best available control technology (BACT) as determined by the director at the time of the permit application.

1. For the purposes of section 4-8(e), "major modification" is defined as follows:

(i) "Major modification" means any physical change in or change in the method of operation of a major stationary source that would result in a significant net emissions increase for any pollutant subject to regulations under this chapter.

(ii) Any net emissions increase that is considered significant for volatile organic compounds or nitrogen oxides shall be considered significant for ozone.

(iii) A physical change or change in the method of operation shall not include:

(A) Routine maintenance, repair, and replacement;

(B) Use of an alternative fuel or raw material by reason of any order under section 2(a) and (b) of the Energy Supply and Environmental Coordination Act of 1974 (or any superseding legislation) or by reason of a natural gas curtailment plan pursuant to an applicable federal statute;

(C) Use of an alternative fuel by reason of an order or rule under section 125 of the Federal Clean Air Act;

(D) Use of an alternative fuel at a steam generating unit (burning equipment of two hundred fifty million (250,000,000) BTUs per hour or larger) to the extent that the fuel is generated from municipal solid waste as determined by the Tennessee Division of Solid Waste Management;

(E) Use of an alternative fuel or raw material by a stationary source which the source was capable of accommodating before January 6, 1975, unless such change would be prohibited under a legally enforceable permit or certificate condition which was established after January 6, 1975, pursu-

ant to Title 40 CFR Part 52.21 or under regulations approved pursuant to Title 40 CFR Part 51 Subpart I or Subpart 51.166, which have been incorporated by reference in Chapter 4 or the source is approved to use under any permit or certificate issued pursuant to this paragraph;

(F) An increase in the hours of operation or in the production rate, unless such change would be prohibited under a legally enforceable permit or certificate of condition which was established after January 6, 1975, pursuant to Title 40 CFR Part 52.21 or regulations approved pursuant to Title 40 CFR Part 51 Subpart I or Subpart 51.166, which have been incorporated by reference in Chapter 4; or

(G) Any change in ownership at a stationary source.

2. For the purposes of section 4-8(e), "net emissions increase" shall have the following meaning:

(i) "Net emissions increase" means the amount by which the sum of the following exceeds zero:

(A) Any increase in actual emissions from a particular physical change or change in the method of operation at a stationary source; and

(B) Any other increases and decreases in actual emissions at the stationary source that are contemporaneous with the particular change and are otherwise creditable.

(ii) An increase or decrease in actual emissions is creditable only if it occurs between:

(A) The date five (5) years before a completed application for the particular change is submitted; and

(B) The date that the increase from the particular change occurs.

(iii) An increase or decrease in actual emissions is creditable only if the board or director has not relied on it in issuing a permit or certificate of operation for the source, under regulations approved pursuant to Title 40 CFR Part 51, Subpart I, which has been incorporated by reference in Chapter 4 which is in effect when the increase in actual emissions from the particular change occurs.

(iv) An increase in actual emissions is creditable only to the extent that the new level of actual emissions exceeds the old level.

(v) A decrease in actual emissions is creditable only to the extent that:

(A) The old level of actual emissions or the old level of allowable emissions, whichever is lower, exceeds the new level of actual emissions;

(B) It is legally enforceable at and after the time that actual construction on the particular change begins;

(C) The board or director has not relied on it in issuing any permit or certificate of operation to a new or modified air pollutant source under regulations approved pursuant to Title 40 CFR Part 51, Subpart I, which has been incorporated by reference in Chapter 4 or the board or the director have not relied on it in demonstrating attainment or reasonable further progress; and

(D) It has approximately the same qualitative significance for public health and welfare as that attributed to the increase from the particular change, considering the nature of the air pollutants to be released into the ambient air from the particular change.

3. For the purposes of section 4-8(e), "significant" means, in reference to a net emissions increase or the potential of a source to emit any of the following air pollutants, a rate of emissions that would equal or exceed any of the following rates:
   (i) Carbon monoxide: One hundred (100) tons per year (tpy)
   (ii) Nitrogen Oxides: Forty (40) tpy
   (iii) Sulfur dioxide: Forty (40) tpy
   (iv) Ozone: Forty (40) tpy of an ozone precursor
   (v) Lead: Six-tenths (0.6) tpy
   (vi) PM_{10}: Fifteen (15) tpy
4. For the purposes of section 4-8(e), "ozone precursor" means volatile organic compounds and/or nitrogen oxides. A proposed new source or a net emissions increase at an existing source in an ozone nonattainment area can be classified as major based on either VOC or NO_x emissions or both (but not in combination). That is, the determination of major must be made individually for each pollutant, since VOC and NO_x emissions cannot be added to meet the minimum level required for such a demonstration. Notwithstanding the above, NO_x shall not be considered an ozone precursor when:
   (a) Additional NO_x emissions reductions would not be expected to decrease ozone; and
   (b) The EPA Administrator determines for certain classes or categories of sources, when approving a revision of the State Implementation Plan for Tennessee, that net air quality benefits would be greater in the absence of further nitrogen oxides reductions from sources concerned.

[*New: T.A.R. 1200-3-9-.01(5)(b)1.*]

c. A new major source or major modification shall meet the lowest achievable emission rate (LAER) as determined by the director at the time of the permit application.

d. A major source or major modification shall also show that it will not interfere with reasonable further progress in attaining the ambient air quality standards by one (1) of the following methods:
   1. Banked credits.
      (i) By agreeing to control the nonattainment emissions to a rate lower than the nonattainment emissions specified as reasonably available control technology (RACT), the owner or operator of an air contaminant source has reserved the right to utilize the incremental reduction between RACT and the banked credit agreed rate (BCAR) to provide for future growth in the nonattainment area.
      (ii) The banked credit agreed rate is an emission rate more restrictive than RACT which is mutually agreed to by the director and an air contaminant source for the purpose of establishing a banked credit. This emission level is in no way related to BACT or LAER. Only sources in existence at the time of a nonattainment state implementation plan revision for an area are eligible to establish a banked credit agreed rate.
      (iii) The following limitations shall apply to the issuance of a permit for construction or modification for sources using banked credit agreed rate:
         (A) All banked credits in a given nonattainment area shall become void upon official reclassification of that area as an attainment area.

(B) An increase in pounds per hour shall be offset by a banked credit of that amount. The banked credit account will be reduced by that amount.

(C) The owner or operator shall demonstrate by air quality modeling that there is a net air quality benefit in the nonattainment area, taking into account emissions credits used to offset them.

(D) A banked credit shall not be used until the banked credit agreed rate level of control is attained by the source involved and demonstrated through a source test or through another method acceptable to the director.

(E) The banked credit agreed rate shall be contained in the state implementation plan as the legally enforceable standard for the air contaminant source. If the source electing to use banked credits must reduce emissions to achieve the banked credit agreed rate level approved a compliance schedule shall be included in the state implementation plan revision.

2. Emission offsets.

(i) For major sources, a larger than one (1) to one (1) offset of emissions of the nonattainment pollutant, based on both allowable and actual emissions, shall be employed. This offset must result in a net improvement in predicted air quality for the pollutant in the area under the influence of emissions from the new or modified major sources and ensure that reasonable further progress shall not be hindered.

(ii) All or any portions of the offsets shall be consummated at the time new source operation commences and demonstrated through a source test or through another method acceptable to the director.

(iii) The reductions shall come from sources in the emission inventory used in the approved control strategy for the nonattainment area state implementation plan revision.

(iv) The amount of the proposed reduction shall be sufficient to offset both the emission increases directly associated with the proposed source construction or modification and those emissions attributed to permitted minor sources that have come into the area since the last reasonable further progress milestone was met.

3. Construction of new major sources or major modifications that have insufficient emission offsets or banked credits to meet the requirements of paragraphs (e)(2)d.1. and (e)(2)d.2. The director may issue a construction permit or proposed new or modified sources provided the sources' emissions will not prevent reasonable further progress in the nonattainment area or will not prevent the ambient air quality standards from being met. Completed applications from sources qualifying for this provision will be processed in the order received by the bureau. (Existing sources will not be required to offset any emissions resulting from permitting of a source for which no emission offsets or banked credits were provided.)

4. Combination of the provisions of paragraphs (e)(2)d.1., (e)(2)d.2. and (e)(2)d.3. of this section.

e. A source is identified as major source for each pollutant as indicated below:

1. A major source for SO_2 is a source with uncontrolled emissions of more than one hundred (100) tons per year and allowable emissions (based on BACT) greater than any of the following:

Fifty (50) tons per year;

One thousand (1,000) pounds per day;

One hundred (100) pounds per hour.

2. A major source for carbon monoxide is a source with uncontrolled emissions of greater than one thousand (1,000) tons per year and allowable emissions (based on BACT) greater than any of the following:

   Fifty (50) tons per year;

   One thousand (1,000) pounds per day;

   One hundred (100) per hour.

3. A major source for particulate matter is any source with uncontrolled emissions of more than one hundred (100) tons per year and allowable emissions of greater than five (5) tons per year, one thousand (1,000) pounds per day, or one hundred (100) pounds per hour (based on BACT).

   Piecemeal construction is cumulative.

   When an air contaminant source's new or modified allowable emissions equal or exceed the above levels, it becomes a major source.

   "Uncontrolled emissions" as used above means the capability at maximum capacity to emit a pollutant in the absence of air pollution control equipment. "Air pollution control equipment" includes control equipment which is not, aside from air pollution control laws and regulations, vital to production of the normal product of the source or to its normal operation. Annual uncontrolled emissions shall be based on the maximum annual rated capacity of the source, unless the source is subject to enforceable permit conditions which limit the annual hours of operation. Enforceable permit conditions on the type or amount of materials combusted or processed may be used in determining the uncontrolled emission rate of a source.

f. An increase in emissions from a new or modified air contaminant source (all sources at a given plant location) is deemed to significantly impact on air quality within the nonattainment area when it contributes to air quality, in the following amounts or more:

Pollutant	*Annual*	*24-hour*	*3-hour*	*8-hour*	*1-hour*
Sulfur dioxide	1 $\mu g/m^3$	5 $\mu g/m^3$	25 $\mu g/m^3$		
Particulate matter	1 $\mu g/m^3$	5 $\mu g/m^3$			
Carbon monoxide				0.5 mg/m^3	2 mg/m^3

g. The director shall not issue a permit to any major source in or significantly impacting a nonattainment area unless all other sources owned or operated by the applicant anywhere in the state are in compliance or on an approved compliance schedule.

h. Regardless of the specific emission limitations contained in this rule, all sources identified in section 4-41, Rule 18.2 of this chapter, shall comply with the standards set pursuant to section 4-41, Rule 18.2.

i. For existing fuel-burning equipment, credit shall be based on the allowable emissions under the applicable state implementation plan for the type of fuel being burned at the time the application for an installation permit for the proposed construction or modification is filed. If the existing source commits to switch to a cleaner fuel at some future date, emissions offset credit based on the allowable (or actual) emissions of the fuel involved is not acceptable, unless the permit and subsequent permits and certificates of operation are conditioned to require the use of a specified alternative control measure which would achieve the same degree of emissions reduction should the source switch back to a dirtier

fuel at some later date. The director, or the board where appropriate, should ensure that adequate long-term supplies of the new fuel are available before granting emissions offset credit for fuel switches.

j. Emissions reductions achieved by shutting down an existing source or permanently curtailing production or operating hours below baseline levels may be credited, provided that the work force to be affected has been notified of the proposed shutdown or curtailment. Source shutdowns and curtailments in production or operating hours occurring prior to the date the new source application is filed generally may not be used for emissions offset credit. However, where an applicant can establish that it shut down or curtailed production after August 7, 1977, or less than one (1) year prior to the date of permit application, whichever is earlier, and the proposed new source is a replacement for the shutdown or curtailment, credit for such shutdown or curtailment may be applied to offset emissions from the new source.

k. All emission reductions claimed as offset credit shall be legally enforceable.

l. Procedures relating to the permissible location of offsetting emissions shall be followed which are at least as stringent as those set out in 40 CFR Part 51 Appendix S, section IV.D.

m. Credit for an emissions reduction can be claimed to the extent that the bureau, or the board where appropriate, has not relied on it in issuing any permit under regulations approved or has not relied on it in demonstrating attainment or reasonable further progress.

n. Approval to construct shall not relieve any owner or operator of the responsibility to comply fully with applicable provisions of the plan and any other requirements under local, state or federal law. At such time that a particular source or modification becomes a major stationary source or major modification solely by virtue of a relaxation in any enforcement limitation which was established after August 7, 1980, on the capacity of the source or modification otherwise to emit a pollutant, such as a restriction on hours of operation, then the requirements of this section shall apply to the source or modification as though construction had not yet commenced on the source or modification.

(f) *Building demolition or renovation permit (Asbestos).*

(1) No person shall cause, suffer, allow or permit the renovation of any facility involving the removal or disturbance of friable asbestos-containing material subject to Section 4-41, Rule 17.5, of this chapter, until an application, together with the plans and specifications required by said rule, has been filed by the person or his agent in the office of, and has been approved by, the director and a permit issued for such renovation. For the purposes of this rule, the terms "renovation" and "facility" shall have the same meaning given them in Section 4-41, Rule 17.1, of this chapter.

(2) No person shall cause, suffer, allow or permit the demolition of any facility until an application, together with the plans and specifications required by Section 4-41, Rule 17, of this chapter, has been filed by the person or his agent in the office of, and has been approved by, the director and a permit issued for such demolition. For the purposes of this rule, the terms "demolition" and "facility" shall have the same meaning given them in Section 4-41, Rule 17.1, of this chapter.

(3) The plans and specifications, filed pursuant to paragraphs (f)(1) and (f)(2) above, shall be submitted on forms approved by the director. Such application shall be filed in accordance with the time requirements set forth in Section 4-41, Rule 17.5, of this chapter. In addition, Rule 17.5 contains the standard for demolition and renovation, including notification requirements applicable to all demolition projects and to certain renovation projects.

(4) *Fees.* The following fee schedules shall apply to the issuance of permits for all demolitions or for those renovations involving friable asbestos-containing materials (ACM) subject to Rule 17.5,

except in paragraphs (f)(5) and (f)(6) below. The fees in these schedules may be adjusted each year, if necessary as determined by the Board, by up to the percentage, if any, by which the Consumer Price Index for All Urban Consumers (CPI-U) for the most recent completed calendar year exceeds the CPI-U for calendar year 2025. The CPI-U is compiled by the Bureau of Labor Statistics of the U.S. Department of Labor. The Board may review these fees annually to determine if they continue to meet the financial requirements of the Bureau to fulfill the activities allowed to be funded by these fees. If work begins on any regulated renovation or demolition without having obtained the required permit, or if work is performed other than in accordance with the plans and specifications filed with and approved by the Director to obtain the permit, the Director may grant such permit; provided, however, that the permit fee is doubled in all such cases. Fees shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board who shall accumulate such fees in an account dedicated to the Board for air pollution control activities. Only one initial fee shall be assessed for any renovation or demolition project occurring at an installation on one contiguous site owned by the same owner within six months after receipt of the initial application where the ACM is calculated (as set forth in Section 4-41, Rule 17.5 of this chapter) in both linear feet and in square feet. When ACM is to be removed and involves calculating in both linear and square feet, the ACM footage will be summed to determine the appropriate fee from Schedule 4-8-F-II or Schedule 4-8-F-III:

SCHEDULE 4-8-F-I.

DEMOLITIONS WHERE NO ASBESTOS IS PRESENT

Fee	*$250.00 perstructure*

SCHEDULE 4-8-F-II.

DEMOLITIONS WHERE REGULATED ASBESTOS IS PRESENT

For ACM used to fireproof or insulate pipes, or to insulate any duct, boiler, tank, reactor, turbine, furnace, or structural member, including interior and exterior walls, floors, ceilings, and roofs:

Linear/Square Feet of ACM	*Fee*
160 - 299 (square feet)	$390.00 plus $250.00 per structure
260 - 299 (linear feet)	390.00 plus $250.00 per structure
300 - 499	625.00 plus $250.00 per structure
500 - 999	855.00 plus $250.00 per structure
1,000 - 1,499	1,015.00 plus $250.00 per structure
1,500 - 4,999	1,250.00 plus $250.00 per structure
5,000 and up	1,560.00 plus $250.00 per structure

SCHEDULE 4-8-F-III.

RENOVATIONS WHERE REGULATED ASBESTOS IS PRESENT

For ACM used to fireproof or insulate pipes, or to insulate any duct, boiler, tank, reactor, turbine, furnace, or structural member, including interior and exterior walls, floors, ceilings, and roofs:

Linear/Square Feet of ACM	*Fee*
160 - 299 (square feet)	390.00
260 - 299 (linear feet)	390.00
300 - 499	625.00
500 - 999	855.00
1,000 - 1,499	1,015.00
1,500 - 4,999	1,250.00
5,000 and up	1,560.00

(5) Schedule 4-8-F-I shall apply only to a demolition project in which at least twenty-five percent (25%) of one building is razed. If less than twenty-five percent (25%) of one building is being demolished, the notice required by Section 4-41, Rule 17.5 shall be required, but the fee established in Schedule 4-8-F-I shall be waived.

(6) These fee schedules shall not apply to an owner or operator who has previously certified to the bureau that all asbestos-containing materials have been removed from a building, which was confirmed by the bureau at that time, that is the subject of a subsequent notification of a demolition subject to Rule 17.5 if the owner or operator certifies, at the time of notification to the bureau, that no asbestos-containing materials were added to or placed in the building after the date of original bureau confirmation.

(g) *Public Notice Requirements.* The Bureau shall notify the public, on a monthly basis, by publication as an electronic notice (e-notice) on the Bureau website for the duration of the public comment period and by other means designated by the Director, if necessary, of any applicants seeking to obtain a permit to construct or modify an air contaminant source. Provided, however, that modifications which do not result in a net emissions increase in the potential emissions of any air pollutant or that qualify as a minor permit modification will not be subject to the notice requirements of this paragraph. The notice shall specify the general vicinity or location of the proposed source or modification, the type of source or modification, and opportunity for public comment. Comments shall be in writing and delivered to the Director within thirty (30) days after the publication of the public notice. If there is no application during a particular month, no notice shall be required for that month. The Bureau may publish the notice for a single application if the source so requests. Any costs for all public notices required to be published, including those for federally-enforceable initial certificates of operation, Part 70 major source operating permits (initial and renewal), installation (construction) permits, PSD permits, and applicable modifications of any permit, shall be assessed to the applicant in addition to the associated permit fee. Where multiple sources are included in the published notice, any costs shall be apportioned equally between or among those multiple sources. The Bureau shall be required to publish notices pursuant to this section only in those months for which an actual application has been received and which is subject to these provisions. Failure to pay these costs shall constitute a violation of this ordinance for which enforcement action may be taken
(Code 1986, § 4-8; Ord. No. 9846, § 2, 3-9-93; Ord. No. 10277, §§ 6—8, 27, 8-15-95; Ord. No. 10786, §§ 19—29, 58, 62, 10-27-98; Ord. No. 10924, §§ 1—15, 11-2-99; Ord. No. 10968, §§ 1—4, 2-8-00; Ord. No. 12054, §§ 1—7, 12-11-07; Ord. No. 13221, §§ 5—10, 9-19-17; Ord. No. 13998, §§ 14—18, 6-27-23; Ord. No. 14165, § 2, 10-29-24; Ord. No. 14324, §§ 2—6, 2-17-26)

Cross reference—Businesses, trades and occupations, Ch. 11.

Sec. 4-9. Charges for technical reports, research, computer time.

Information, circulars, reports of technical work, other reports, research and computer time prepared by, performed, or utilized by the air pollution control bureau, when supplied to other governmental agencies or individuals or groups requesting the same or when performed in conjunction with a permit or certificate application or renewal, may be charged for by the bureau in a sum not to exceed the costs of preparation and distribution of such documents or the cost of research or computer time.
(Code 1986, § 4-9)

Sec. 4-10. Records.

(a) The director shall keep in the office of the bureau all applications required under this chapter, and a complete record thereof, including a record of all permits and certificates issued. The director shall keep a record on all official business of the bureau and complaints and generally of the work done by the bureau. Records pertaining to permitted facilities shall be kept in perpetuity except for facilities which have permanently shutdown. In the case of permanently shutdown facilities, records may be destroyed after seven (7) years. Other records shall be maintained for a period of seven (7) year unless federal requirements provide for a shorter retention period. All such records shall be open for inspection by the public at all reasonable times; provided, however, that such records or other information of a confidential nature voluntarily furnished pursuant to section 4-19 shall receive the protection provided by section 4-19.

(b) The director may, at any time, require the person responsible for a source of emission subject to the provisions of this chapter to record, maintain and keep records relative to the operation of the source and emissions from the source, and may further request from such person such information, analyses or specifications as will disclose the nature, extent, quantity and degree of air contaminants as may be emitted by such source.
(Code 1986, § 4-10; Ord. No. 9171, § 4, 5-30-89; Ord. No. 13221, § 11, 9-19-17)

Sec. 4-11. General requirements.

(a) Any owner, operator or other person responsible for any permanently discontinued or dismantled equipment coming under the jurisdiction of this chapter shall report to the bureau within thirty (30) days the permanent discontinuance or dismantlement of such equipment, and to surrender any outstanding permit or the certificate of operation thereon.

(b) *Separation of emissions.* If air contaminants from a single source are emitted through two (2) or more emission points, the total emitted quantity of any contaminant, limited in this chapter, cannot exceed the quantity which would be the allowable emission through a single emission point, and the total emitted quantity of any such air contaminant shall be taken as the product of the highest concentration measured in any of the emission points and the exhaust gas volume through all emission points, unless the person responsible for the source proves the correct total emitted quantity to be within the limits established by this chapter.

(c) *Combination of contaminants prior to emission.* If air contaminants from two (2) or more sources are combined prior to emission and there are adequate and reliable means reasonably susceptible to confirmation and use by the director for establishing a separation of the components of the combined emission to indicate the nature, extent, quantity and degree of emission arising from each such source, this chapter shall apply to each source separately.

(d) *Inseparable combination of contaminants prior to emission.* If air contaminants from two (2) or more sources are combined prior to emission and combined emissions cannot be separated according to the requirements of subsection (c) of this section, this chapter shall be applied to the combined emission as if it originated in a single source subject to the most stringent limitations and requirements placed by this chapter on any of the sources whose air contaminants are so combined.
(Code 1986, § 4-11)

Sec. 4-12. Exceedances of limitations on emissions.

(a) *Purpose.* The purpose of this section is to place reasonable limits on the amount of emissions an air pollutant source can emit due to a "malfunction" as defined in section 4-2, or during start-up or shutdown of said source. Without such limits air quality standards may not be met or public health and welfare may be endangered.

[*Formerly 4-12(a); New T.A.R. 1200-3-20-.01*]

(b) *Reasonable measures required.* Air pollutant sources must take all reasonable measures to keep emissions to a minimum during start-ups, shutdowns, operation, and malfunctions. These measures may include installation and use of alternate control systems, changes in operating methods or procedures, cessation of operation until the process equipment or air pollution control equipment is repaired, maintaining sufficient spare parts, use of overtime labor, use of outside consultants and contractors, and other appropriate means. Exceedances of limitations on emissions that are caused by poor maintenance, careless operation, or any other preventable upset condition or preventable equipment breakdown shall not be considered malfunctions, and shall be considered in violation of the emission standard exceeded and this section.

[*Formerly 4-12(b); New T.A.R. 1200-3-2-.02*]

(c) Reserved.

(d) Reserved.

(e) *Notice Required When an Emission Limitation is Exceeded.*

(1) When any air pollutant emission source, air pollution control equipment or related emissions unit operates, or fails to operate, in such a manner as to cause the emission of air pollutants in excess of any applicable emission standard contained in this chapter or under any installation permit or certificate of operation issued thereunder, or of sufficient duration to cause damage to property or public health, the owner or operator of such source, air pollution control equipment, or related emissions unit shall promptly notify the director of such excess emissions, specifying that it is a malfunction if that is the case, and provide a statement giving all pertinent facts sufficient for the director to determine whether the exceedance is a malfunction, including the estimated duration of the excess emissions.

(2) Prompt notification shall mean an initial telephone report to the bureau within twenty-four (24) hours after the onset of the excess emissions, followed up by a written report submitted to the bureau within seven (7) days after the onset of the excess emissions. The written report shall include the information described in section 4-12(f)(1)a.1 through a.8. The director shall be notified when the condition causing the excess emissions has been corrected and the source or equipment is again in operation. Any excess emissions that create an imminent hazard requiring immediate action to protect health or safety must be reported by telephone immediately to the bureau and to the appropriate local emergency response agency and to the Tennessee Emergency Management Agency.

[*Formerly 4-12(c); T.A.R. 1200-3-20-.06*]

(f) *Logs and reports.*

(1) a. A log of any operation or failure to operate, start-up, or shutdown resulting in air pollutant emissions in excess of any applicable standard in this chapter, or of any installation permit or certificate of operation issued thereunder, by any source must be kept at the source. This log must record at least the following:

1. Stack, air pollution control equipment, or emission point involved;
2. Time excess emissions, start-up, or shutdown began or when excess emissions were first discovered by the source;
3. Type of exceedance qualifying as a malfunction, or reason for shutdown;
4. Time start-up or shutdown was complete or time the air pollutant source returned to normal operation after an emissions exceedance;
5. Documentation that the source was or was not, at the time of the onset of the exceedance, being properly operated;
6. Documentation of any preventative maintenance of the air pollution control equipment or process equipment or processes that had been completed prior to the emissions exceedance, start-up, or shutdown;
7. The steps taken by the source during the period of the emissions exceedance, start-up, or shutdown to minimize levels of emissions that exceeded the emission standards, or other requirements in the installation permit or certificate of operation; and
8. The magnitude and identity of the excess emissions, expressed in pounds per hour and the units of the applicable emission limitation, and the operating data and calculations used in determining the magnitude of the excess emissions.
9. The employee of the owner or operator making entry on the log must sign, date and indicate the time of each log entry.

b. The information under items (f)(1)a.1. and 2. of this subsection must be entered into the log by the end of the shift during which the emissions exceedance, start-up or shutdown began.

c. All information shall be entered in the log no later than twenty-four (24) hours after the start-up or shutdown is complete, or the emissions exceedance has ceased or has been corrected.

d. Any later discovered corrections may be added in the log as footnotes with the reason given for the change. There shall be no erasures, obliterations, modifications, or revisions of the log entry except by single line-through and identification of corrections.

(2) The owner or operator of a source located in a nonattainment area or having a significant impact on the air quality in a nonattainment area (for the nonattainment pollutant) in a calendar quarter must submit a report to the director within thirty (30) days after the end of such calendar quarter listing the times and dates at which any emissions exceedance, start-up, or shutdown resulted in emissions greater than any applicable emission limits under this chapter, or under any installation permit or certificate of operation issued thereunder, and the estimated amount of emissions discharged during such times. This report should also include total emissions during the quarter and be reported in a format specified by the director. If these emissions are required to be reported and are reported as required under section 4-41, Rule 15, then the report required by this paragraph is waived.

[*Formerly 4-12(d) and (g)(2); T.A.R. 1200-3-20-.04 and 1200-3-20-.06*]

(g) *Copies of log required.* The director may require the owner or operator of any air pollutant source to submit a copy of the emissions exceedance, start up and shutdown log required under subsection (e) of this section to the director ten (10) days after the request is received. The director can require submission of copies of the entire log.

[*Formerly 4-12(e); T.A.R. 1200-3-20-.05*]

(h) *Special reports required.* The director may require any air pollutant source to submit a report within thirty (30) days after the end of each calendar quarter in a format he specifies containing as a minimum the following information:

(1) The dates on which emissions exceedances, start-ups, and shutdowns resulted in emissions greater than those allowed by the emission standards in this chapter or any installation permit or certificate of operation issued thereunder;

(2) The estimated amount of air pollutants emitted in excess of the emission standards in units of pounds of air pollutant per hour and pounds of air pollutant per day;

(3) Other emission characteristics such as stack exit temperature, stack height and diameter, stack exit velocities, and other similar information;

(4) Information needed to evaluate the possibility of instituting measures to eliminate or reduce the number of emission exceedances or the amount of emissions from emission exceedances, start-ups, and shutdowns;

(5) Information to determine if the excess emissions truly resulted from a malfunction; and

(6) Information to evaluate the impact of the emissions on the surrounding area.

(Code 1986, § 4-12; Ord. No. 9171, § 5, 5-30-89; Ord. No. 10277, § 9, 8-15-95; Ord. No. 14165, §§ 3, 4, 10-29-24)

Sec. 4-13. Certificate of alternate control.

(a) In lieu of satisfying otherwise applicable standards and requirements of this chapter, an air pollutant source may apply for and be issued a certificate of alternate control. No source with a certificate of alternate control shall emit particulate matter, sulfur dioxide, carbon monoxide, nitrogen dioxide or volatile organic compounds in excess of the respective limits on such certificate. No source applying for a certificate of alternate control shall be considered as modifying a source under the definition of "modification, alteration, reconstruction" in section 4-2, provided the rated capacity in terms of heat input, charging rate or process weight does not change for any fuel-burning, refuse-burning, incinerator, process or air pollution control equipment, respectively.

(b) The owner or operator of any source that discharges particulate matter, sulfur dioxide, carbon monoxide, nitrogen dioxide or volatile organic compounds regulated by this chapter can apply to the director for a certificate of alternate control for the source or any portion of the source. The director may grant the request if the following conditions are met:

(1) The source or portion thereof is reducing, or will be after a specific date taking actions to reduce, emissions of particulate matter, sulfur dioxide, carbon monoxide, nitrogen dioxide or volatile organic compounds to a level at least as stringent as required under other provisions of this chapter, even though affected emissions units at the source may not be meeting the mass emission limitation specified in any other provision of this chapter. Calculations to determine equivalence to standards limiting the pounds of volatile organic compounds per gallon of material shall be on the basis of equivalent solids applied. The total final emission limitation specified in the certificate of alternate control for the source for each given pollutant must be equivalent to or more stringent than would otherwise be applicable under this chapter. These limitations shall

include limitations specified in other provisions of this chapter in pounds per hour, or if hourly emissions cannot be determined per the shortest period over which emissions can be determined, and tons per year, for the entire source.

(2) If a schedule for compliance is required, it must be as expeditious as is practicable and be specified as a condition on the certificate of alternate control. In no case shall the final compliance date be beyond a date that would cause interference with the attainment of the reasonable further progress line specified for a specific nonattainment area in the applicable state implementation plan.

(3) The source shall verify through modeling, consistent with Title 40 CFR Part 51, Appendix W—Guideline on Air Quality Models (Revised), which has been incorporated by reference in Chapter 4, that this alternate emission limitation will yield equivalent or improved air quality for the pollutant involved. For volatile organic compound emissions, modeling for ozone impacts may be required. Air quality need not improve or stay the same at every location affected by the alternate emission standard, but on balance the air quality of the affected area must not be adversely affected. This will be demonstrated by modeling all included emission points at the proposed alternative levels and at the allowable emission level for sources subject to emissions limitations contained in section 4-41, Rule 26 for the pollutant involved. The lower of either the allowable emissions under other rules in this chapter or actual emissions shall be used in all other modeling. In addition, the source shall demonstrate that the use of the alternate emission limitation will not interfere with the attainment or maintenance of any ambient air quality standard nor violate any applicable ambient air increment under section 4-41, Rule 18.

(4) Interpollutant trades are not allowed. Plants subject to the standards in section 4-41, Rule 16 (Emission Standards for Hazardous Air Contaminants), cannot apply the alternate emission limitation to hazardous air contaminants. The sources at a plant subject to emission standards in section 4-41, Rule 15 (New Source Performance Standards), or section 4-8(e)(2)b. and c. cannot use an alternate emission limitation except for reductions in actual emissions below the level required in these sections.

(5) Each emission point identified in the alternate control limitation shall be subject to a specific emission limit expressed in measurable units of the emission limitation. The director shall require an initial compliance test in order to demonstrate that the required emission limitations are being met for each emission point where actual emissions are estimated to exceed ten (10) tons per year or where allowable emissions are in excess of five (5) pounds per hour. Subsequent compliance tests may be required in accordance with the requirements of section 4-8(c).

(6) A fee of one thousand dollars ($1,000.00) for each pollutant emitted at each emission point to be covered by a certificate of alternate control has been paid to the bureau at the time the application is made to cover the cost of review of the request for the certificate of alternate control.

(7) Sources utilizing the alternate emission limitation (1) must be in compliance with all applicable emission limits; or (2) if not in compliance, must be meeting the requirements in an approved compliance schedule; or (3) if not in compliance, must be subject to a court order which includes a compliance schedule and allows for timely modification of the decree without delaying the final compliance date. Under no circumstances can the alternate emission limitation delay or defer a specified compliance date nor shall the certificate of alternate control insulate the source from any penalties or sanctions for noncompliance or affect the source's liability for failure to comply with any regulation, order or compliance plan.

(c) The alternate emission limitations and certificate conditions must be subjected to a public hearing and submitted to the United States Environmental Protection Agency for approval as a revision to the state implementation plan. The owner or operator requesting this alternate emission control limitation shall be responsible for all costs associated with publishing the required legal notices.

(d) Good engineering practice stack heights shall be utilized on all stack changes associated with the alternate control limitations for particulate matter, sulfur dioxide, carbon monoxide, and nitrogen dioxide.

(e) The owner or operator of the plant must:

(1) Post or file on the operating premises a copy of the certificate of alternate control; and

(2) Keep all pollution control equipment in good operating condition and utilize such equipment at all times.

(f) The certificate of alternate control shall be revoked after a hearing by the board if it is found that any of the requirements of subsection (b) of this section have been violated or if any of the requirements of subsection (e) have been frequently and flagrantly violated after the certificate was issued or if violation of the requirements of subsection (d) or conditions placed on their certificate under subsection (i) are not corrected promptly on written notice.

(g) The certificate of alternate control does not relieve the owner or operator of the duty of meeting all emission requirements in other rules for new sources whose installation, modification, alteration or reconstruction is commenced after the effective date of the rule.

(h) Upon revocation of the certificate of alternate control, the sources at the plant must comply with other provisions in this chapter that would have been applicable had the certificate not been issued. The board may specify a time period for the source to come into compliance with the more restrictive emission limitations.

(i) The director shall specify the new emission limits for each emission point as conditions of the certificate of alternate control. If methods other than reference test methods are to be used to determine compliance, they should be specified on the certificate. Other conditions needed to insure and to verify compliance may be placed on the certificate as conditions.

(j) Notice is hereby given that any certificate granted pursuant to this section shall become void should the board find it proper to amend the regulations covering any source listed on the certificate if the effect of the amendment is to reduce the allowable emissions of the source. The certificate in this instance shall be deemed void ninety (90) days after the source's receipt of notice from the director of the effective date of the revised regulations.

[*New: See T.A.R. 1200-3-21*]
(Code 1986, § 4-13; Ord. No. 10277, § 10, 8-15-95)

Sec. 4-14. Court determination of invalidity of having two (2) sets of limitations for process or fuel-burning equipment; effect.

If a court of competent jurisdiction should ever rule that having two (2) sets of limitations for process or fuel-burning equipment is invalid, then the most stringent emission limitation for process or fuel-burning equipment shall be the limitation of all such equipment.
(Code 1986, § 4-14)

Sec. 4-15. Right to file abatement suits.

Nothing in this chapter shall be construed to impair the right of the board of commissioners or the city attorney to file appropriate suits to abate a nuisance involving air pollution or to prosecute anyone for creating a nuisance or allowing a nuisance to continue or permitting a nuisance to exist. The board, with the approval of the city attorney, may in the name of the city institute action to abate a nuisance.
(Code 1986, § 4-15)

Sec. 4-16. Right of entry of employees of the bureau, search warrants.

(a) In the performance of their duties, the director and other employees of the bureau are hereby authorized to enter upon and into premises or buildings with permission of the owner or occupant thereof to make inspection of the premises or building, to collect and preserve evidence of all facts of violation of this chapter or to perform any duty imposed upon them by this chapter. For the purposes of the preceding sentence, "reasonable times" shall be considered to be during normal business hours, unless reasonable cause exists to suspect noncompliance with this chapter or with any installation permit, certificate of operation, issued by the Bureau, and the director specifically authorizes a bureau employee to inspect a source at any other time.

(b) Alternatively, the director or other employees of the bureau or any other law enforcement officer may obtain a search warrant from the city court of the municipality if the premises lie within a municipality which has a city court, or from the state court of the county, as other search warrants are issued upon a showing of probable cause to believe that the provisions of this chapter or the rules and regulations thereof have been or are being violated, and may thereafter enter upon or into the premises or buildings and obtain, collect and preserve evidence or perform any duty imposed upon them by this chapter.
(Code 1986, § 4-16; Ord. No. 10277, § 11, 8-15-95)

Sec. 4-17. Enforcement of chapter; procedure for adjudicatory hearings for violations.

(a) Whenever the board or director has reason to believe that a violation of any provision of this chapter or rule or regulation pursuant thereto has occurred, the board or director may cause written notice to be served upon the alleged violator or violators. The notice shall specify the provision of this chapter or rule or regulation alleged to be violated and the date, time, place and general nature of the alleged violation or violations thereof and may include an order that necessary action be taken within a reasonable time. The notice provided for in this subsection may be served by the sheriff or a deputy sheriff of the county; or by a police officer of this city; or by a special police officer of this city; or by a special deputy sheriff; or may be served in any other manner prescribed for the service of a writ of summons by the statutes of the state or by the Tennessee Rules of Civil Procedure. Any such order shall become final unless, no later than thirty (30) days after the date the notice and order are served, the person or persons named therein request in writing a hearing before the board and file a notice of appeal and a bond pursuant to subsection 4-18(e). Upon such request, the board shall hold a hearing. In lieu of an order, the board may require that the alleged violator or violators appear before the board for a hearing at a time and place specified in the notice and answer the charges complained of, or the board may initiate action pursuant to section 4-15 or section 4-4 of this chapter, or the board may initiate action pursuant to any applicable provisions of the statutes of the state, or the acts of Congress of the United States, or the board may initiate action pursuant to any provisions or doctrines of the law of this state.

(b) If, after a hearing held pursuant to subsection (a) of this section, the board finds that a violation or violations have occurred, it shall affirm or modify the order previously issued, or issue an appropriate order or orders for the prevention, abatement, or control of the emissions involved or for the taking of such other corrective action as may be appropriate and the board may assess a civil penalty or enter any other appropriate order. If, after a hearing on an order contained in a notice, the board finds that no violation

hasoccurred, it shall rescind the director's order. Any order issued as part of a notice or after a hearing may prescribe the date or dates by which the violation or violations shall cease and may prescribe timetables for necessary actions in preventing, abating or controlling the emissions. Any action taken by the board under this chapter shall be in writing and signed by the chairman, vice-chairman or chairman pro tempore of the board.

(c) Nothing in this chapter shall prevent the board or director from making efforts to obtain voluntary compliance through warning, conference or any other appropriate means. Nothing in this chapter, or in this section of this chapter, shall be construed as requiring the board to hold a hearing pursuant to this section of this chapter prior to or as prerequisite to its institution of action in court pursuant to this or any other section of this chapter or pursuant to the statutes of the state, the acts of the Congress of the United States, or any applicable doctrine of the law of this state; and nothing in this chapter or this section of this chapter shall prevent the board or director from suspending or revoking an installation permit or a certificate of operation or any other permit or license issued pursuant to the provisions of this chapter, but notice shall be served pursuant to this section of this chapter prior to revocation of a valid and outstanding certificate of operation.

(d) In addition to the preceding, whenever the board or director has reason to believe that a violation of any provision of this chapter or rule or regulation pursuant thereto has occurred, the board or director may cause written notice to be served upon the alleged violator or violators citing the alleged violator or violators to municipal court for adjudication of the alleged violation or violations. The board or director, or the director's designee, may make complaint to the city judge for issuance of process on the alleged violation or violations.
(Code 1986, § 4-17; Ord. No. 10277, § 12, 8-15-95; Ord. No. 13221, § 12, 9-19-17)

Sec. 4-18. Hearings, appeals and judicial review.

(a) At any public hearing, all testimony taken before the board shall be under oath and recorded stenographically, but the record shall not be transcribed unless any party seeks judicial review by writ of certiorari pursuant to T.C.A. 27-9-101 et seq. from any order or determination of the board, and in such event the party seeking such judicial review shall pay for the transcription and reimburse the board its stenographic expense incident to the hearing and shall furnish the original transcript to the board.

(b) The chairman, vice-chairman or chairman pro tempore of the board or the director may issue notice for the hearing and may issue subpoenas requiring attendance and testimony of witnesses or the production of evidence relevant to any matter involved in such hearing, or both. Such subpoena shall be served in the same manner as is provided for service of notice in section 4-17. The director shall issue subpoenas requested by a person upon whom notice has been served to appear for a hearing or who otherwise has a real and substantial interest in the hearing. The chairman, the vice-chairman, the chairman pro tempore or the director is authorized to administer oaths and to examine witnesses. Witnesses may likewise be examined by any member of the board, the attorney representing this municipality, the attorney representing the board, the attorney presenting proof from the bureau, the interested party or their attorney, or any other person determined by the board to have a real and substantial interest in the hearing or his attorney. In case of a refusal to obey a subpoena under this chapter, upon approval of a majority of the members of the board conducting the hearing, application may be made to the municipal court of this municipality or to any state court for such necessary subpoenas, orders or other proceedings to compel the attendance and testimony of such witness or witnesses and to compel the production of such evidence. Upon application to the municipal court of this municipality, the court shall issue such order. Upon application to a state court of record the court may issue such order, and failure to appear before the board or to produce evidence will be deemed to be contempt of the court from which such order has issued. Failure to obey the order shall be punishable as provided by ordinances, state statutes or the common law for failure to obey a subpoena issued for appearance of a witness before such court.

(c) All hearings shall be held before not less than a majority of the board.

(d) Nothing in this section shall be construed to require a hearing prior to the issuance of an emergency order pursuant to section 4-20 of this chapter or prior to the institution by the board of action in court pursuant to any other section or provision of this chapter or the statutes of the state, the acts of the Congress of the United States, or any applicable doctrine of the law of this state.

(e) Any person aggrieved by any order or determination of the director may appeal such order or determination to the board for a public hearing before the board pursuant to the provisions of this section. Notice of appeal and a bond in the amount of five hundred dollars ($500.00) to secure costs of the hearing shall be filed in the bureau within thirty (30) days after the date of the order or determination from which appeal is sought, otherwise the director's order or determination becomes final and nonappealable. Failure to file such appeal within the time provided herein regarding any terms, limitations, or special conditions in any permit or certificate of operation issued under this chapter, including but not limited to determinations of best available control technology, particulate matter best available control technology, and lowest achievable emissions rate, consummates the final determination of those terms, limitations and special conditions and constitutes a conclusive presumption that they are valid and enforceable under this ordinance and that a violation of the same constitutes a violation of the ordinance. The filing of the notice of appeal and bond herein provided for within the time herein prescribed shall perfect the appeal to the board.

Upon receipt of the notice of appeal and bond, the director shall immediately notify the chairman, vice-chairman or chairman pro tempore of the board of the appeal. The hearing on appeal to the board may be had at a special meeting of the board called by the chairman, vice-chairman or chairman pro tempore or at a regular meeting. The perfecting of the appeal as herein provided shall suspend only the operation of that portion of the order or determination appealed from and only until such time as the board has acted upon the appeal; provided, however, that the continuation of a special condition carried over from the immediately preceding certificate of operation and reimposed on the renewal certificate of operation shall not be suspended pending final action on the appeal. Any person aggrieved by any final order or determination of the board hereunder shall have judicial review thereof exclusively by writ of certiorari pursuant to T.C.A. 27-9-101 et seq. No judicial review shall be available to any person so aggrieved until and after all administrative remedies have been exhausted.
(Code 1986, § 4-18; Ord. No. 10277, § 13, 8-15-95)

Sec. 4-19. Confidentiality of certain records.

(a) Upon the filing with the Director of a written request for confidentiality by an owner or operator for any formulae, processes, methods, or information associated with an air pollutant source that are certified by the owner or operator of the source as confidential, the Director shall conduct a review for confidentiality. Records or other information concerning an air pollutant source that are certified by the owner or operator as related to confidential production techniques, production rates, trade secrets, or sales figures or to processes or methods sufficiently unique to the owner or operator or which would affect adversely the competitive position of such owner or operator if made available to the general public are eligible for confidential status. For sources subject to the Part 70 permit provisions at Article III of the Ordinance, the confidential information provisions of Section 4-56(a)(3) shall also apply in reviewing the request for treatment of information as confidential.

(b) If the Director determines that any information for which confidentiality has been requested should not be protected as confidential, the Director shall so notify the source owner or operator in writing. All disapproved information will be treated as confidential until forty-five (45) days from the date of such notification. If an appeal to the Board is received from the owner or operator within this forty-five (45)-day period, applicable information shall be treated as confidential throughout the appeal period. If the Director

or Board determines that information should be protected as confidential, then such information shall be reserved only for the confidential use of the Board and Bureau in the administration of this chapter or the Administrator of the U.S. Environmental Protection Agency in the administration of the Federal Clean Air Act. Nothing herein shall be construed to prevent the use of such information by the Bureau or Board in compiling or publishing analyses or summaries relating to the general conditions of the outdoor atmosphere provided that such analyses or summaries do not identify the owner, operator, or business or reveal any information considered confidential under this section.

(c) Notwithstanding the foregoing, the following information shall not be considered confidential:

(1) The composition of air pollutants and emission data;

(2) The applicable provisions under this chapter that a source must fulfill and the source's compliance status with respect to each provision; and

(3) The business name, address, location of the source, and the name of the source's owner or operator.

(d) The Director shall report to the Board at the next board meeting any determinations made by the Director concerning requests for confidentiality made pursuant to this Section 4-19.
(Code 1986, § 4-19; Ord. No. 10277, § 14, 8-15-95; Ord. No. 13998, §§ 19, 20, 6-27-23; Ord. No. 14165, § 5, 10-29-24)

State law reference—T.C.A. § 68-201-105(b)(2).

Sec. 4-20. Emergencies.

(a) It is the purpose of this section to establish criteria so as to prevent air pollutants from reaching levels that would cause imminent and substantial endangerment to the health of persons, especially during adverse meteorological conditions. Any other provisions of law to the contrary notwithstanding, if the Director or the administrator of the Chattanooga-Hamilton County Health Department finds that a condition of air pollution exists or is likely to exist, and that it creates any emergency requiring immediate action to protect human health or safety, the mayor with the concurrence of the Director or the administrator of the Chattanooga-Hamilton County Health Department shall order persons causing or contributing to the air pollution to reduce or discontinue immediately the emission of air pollutants. Upon issuance of any such order, the Director shall fix a place and time, not later than twenty-four (24) hours thereafter, for a hearing to be held before the board. Not more than twenty-four (24) hours after commencement of such hearing, and without adjournment thereat the board shall affirm, modify, or recommend to the mayor that the order be affirmed, modified or set aside.

(b) Episode Criteria. Conditions justifying the order of an air pollution alert, air pollution warning, or air pollution emergency shall be deemed to exist when the Director or the administrator of the Chattanooga-Hamilton County Health Department determines, in concurrence with the mayor, that the accumulation of air pollutants is attaining or has attained levels which could, if such levels are sustained or exceeded, lead to a substantial threat to the health of persons. In making this determination, the Director or administrator will be guided by the criteria described below.

(1) *Air Pollution Forecast:* An internal watch by the Chattanooga-Hamilton County Air Pollution Control Bureau shall be activated by a National Weather Service advisory that an atmospheric stagnation advisory is in effect or the equivalent local forecast of stagnant atmospheric conditions.

(2) *Air Pollution Alert:* The alert level is that concentration of air pollutants at which emissions reductions must begin. An alert will be declared when any of the following levels is reached at any monitoring site, and when meteorological conditions are such that air pollutant concentrations can

be expected to remain at these levels or to increase for twelve (12) or more hours, or in the case of ozone this level is likely to recur within the next twenty-four (24) hours unless control actions are taken:

a. SO_2: 800 μg/m^3 (0.3 parts per million), twenty-four (24) hour average

b. PM_{10}: 350 μg/m^3, twenty-four (24) hour average

c. (Reserved)

d. CO: 17 mg/m^3 (15 ppm), eight (8) hour average

e. Ozone (0_3): 400 μg/m^3 (0.2 ppm), one (1) hour average

f. NO_2: 1130 μg/m^3 (0.6 ppm), one (1) hour average;
282 μg/m^3 (0.15 ppm), twenty-four (24) hour average.

(3) *Air Pollution Warning:* The warning level indicates that air quality is continuing to degrade and that additional control actions are necessary. A warning will be declared when any one (1) of the following levels is reached at any monitoring site, and when meteorological conditions are such that air pollutant concentrations can be expected to remain at these levels or to increase for twelve (12) or more hours, or in the case of ozone this level is likely to recur within the next twenty-four (24) hours unless control actions are taken:

a. SO_2: 1600 μg/m^3 (0.6 ppm), twenty-four (24) hour average

b. PM_{10}: 420 μg/m^3, twenty-four (24) hour average

c. (Reserved)

d. CO: 34 mg/m^3 (30 ppm), eight (8) hour average

e. Ozone (O_3): 800 μg/m^3 (0.4 ppm), one (1) hour average

f. NO_2: 2260 μg/m^3 (1.2 ppm), one (1) hour average;
565 μg/m^3 (0.3 ppm), twenty-four (24) hour average.

(4) *Air Pollution Emergency:* The emergency level indicates that air quality is continuing to degrade toward a level that would cause an unreasonable risk to public health and that the most stringent control actions are necessary. An emergency will be declared when any one (1) of the following levels is reached at any monitoring site, and when meteorological conditions are such that air pollutant concentrations can be expected to remain at these levels or to increase for twelve (12) or more hours, or in the case of ozone this level is likely to recur within the next twenty-four (24) hours unless control actions are taken:

a. SO_2: 2100 μg/m^3 (0.8 ppm), twenty-four (24) hour average

b. PM_{10}: 500 μg/m^3, twenty-four (24) hour average

c. (Reserved)

d. CO: 46 mg/m^3 (40 ppm), eight (8) hour average

e. Ozone(O_3): 1000 μg/m^3 (0.5 ppm), one (1) hour average

f. NO_2: 3000 μg/m^3 (1.6 ppm), one (1) hour average;
750 μg/m^3 (0.4 ppm), twenty-four (24) hour average.

(5) *Termination.* Once declared, any status reached by application of these criteria will remain in effect until the criteria for that level are no longer met. At that time, the next higher or the next lower status will become effective upon declaration of the concurrence of the mayor and the Director or the administrator of the Chattanooga-Hamilton County Health Department.

(c) Required Emissions Reductions.

(1) When an air pollution alert, an air pollution warning, or an air pollution emergency has been declared, all sources must follow the requirements for that episode level as outlined in Tables 1, 2, or 3 or in the air pollution episode emissions reduction plan approved in accordance with Section 4-20. Title 40 CFR Part 51, Subpart H—Prevention of Air Pollution Emergency Episodes, requires episode plans for Priority I, IA, and II areas. Priority III areas are not required to develop episode plans. If a plan has been approved by the Director, emissions must be reduced to that level or lower during a declared episode.

(2) Preplanned Abatement Strategies. Major sources in or significantly impacting a nonattainment area must submit to the Director an acceptable air pollution episode emissions reduction plan to be followed during the alert, warning and emergency levels of an air pollution episode. The term "major source" as used in Section 4-20 means any of the following types of stationary sources of air pollutants which emit, or have the potential to emit, one hundred (100) tons per year or more of any air pollutant: fossil fuel fired steam electric plants of more than two hundred fifty million (250,000,000) British thermal units per hour heat input; coal cleaning plants (thermal dryers); draft pulp mills; Portland cement plants; primary zinc smelters; iron and steel mill plants; primary copper smelters; municipal incinerators capable of charging more than fifty (50) tons of refuse per day; hydrofluoric, sulfuric, and nitric acid plants; petroleum refineries; lime plants; coke oven batteries; sulfur plants; phosphate rock processing plants; sulfur recovery plants; carbon black plants (furniture process); primary lead smelters; fuel conversion plants; sintering plants; secondary metal production facilities; chemical process plants; fossil-fuel boilers of more than two hundred fifty million (250,000,000) British thermal units per hour heat input; petroleum storage and transfer facilities with a capacity exceeding three hundred thousand (300,000) barrels; taconite ore processing facilities; glass fiber processing plants; and charcoal production facilities. The term "major source" also includes, for the purposes of Section 4-20, any other source with the potential to emit two hundred fifty (250) tons per year or more of any air pollutant. Only the pollutants for which the air quality planning area is designated nonattainment are considered in determining whether a source is a major source, for the purposes of Section 4-20.

(3) Any source subject to the preceding paragraph (2) must submit a revised air pollution episode emissions reduction plan at the request of the Director should the nature and quantity of the source's emissions change or the original plan be deemed inadequate.

(4) The owner or operator of any other air pollutant source, having a potential to emit less than one hundred (100) tons per year of any air pollutant, may file an air pollution episode emissions reduction plan for use during an air pollution episode if the owner or operator anticipates achievement of comparable or greater reduction of the health hazard in the area at a much lower cost than can be achieved by a major source.

(5) Where specific actions may be necessary to relieve a health hazard by sources emitting air pollutants at lower levels than that indicated in paragraph (2) above, the Director may require the submittal of an acceptable air pollution episode emissions reduction plan from the owners or operators of those sources. The owner or operator must submit such plan within thirty (30) days after the Director so requires.

(6) If the owner or operator of any source required to have an approved air pollution episode emissions reduction plan on file with the Director fails to submit an approvable plan to the Director, the Director may schedule a hearing to set an approved air pollution episode emissions reduction plan for that air pollutant source.

TABLE 1
EMISSION REDUCTION PLANS
ALERT LEVEL

Part A. GENERAL

1. There shall be no open burning by any persons of tree waste, vegetation, refuse, or debris in any form.
2. The use of incinerators for the disposal of any form of solid waste shall be limited to the hours between 12:00 noon and 4:00 p.m.
3. Persons operating fuel-burning equipment which requires boiler lancing or soot blowing shall perform such operations only between the hours of 12:00 noon and 4:00 p.m.
4. The Chattanooga-Hamilton County Air Pollution Control Board encourages persons operating motor vehicles to eliminate all unnecessary operation.

Part B. SOURCE CURTAILMENT

Any owner or operator of a source of air pollutants listed below shall take all required control actions specified below for this Alert Level and the preplanned abatement strategies submitted to and approved by the Director for that source.

Source of Air Pollution	*Control Action*
1. Coal or oil-fired electric power reduction by generating facilities	a. Substantial utilization of fuels having low ash and sulfur content. b. Maximum utilization of mid-day (12:00 p.m. to 4:00 p.m.) atmospheric turbulence for boiler lancing and soot blowing. c. Substantial reduction by diverting electric power generation to facilities outside of Alert Area.
2. Coal and oil-fired process steam generating facilities	a. Substantial reduction by utilization of fuels having low ash and sulfur content. b. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing and soot blowing. c. Substantial reduction of steam load demands consistent with continuing plant operations.
3. Manufacturing industries of the following classifications: Primary Metals Industry Petroleum Refining Operations Chemical Industries Paper and Allied Products Grain Industry	a. Substantial reduction of air contaminants from manufacturing operations by curtailing, postponing, or deferring production and all operations. b. Maximum reduction by deferring trade (industry) waste disposal operations which emit solid gases, vapors, or malodorous substances. c. Maximum reduction of heat load demands for processing. d. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing or soot blowing.

TABLE 2
EMISSION REDUCTION PLANS
WARNING LEVEL

Part A. GENERAL

1. There shall be no open burning by any persons of tree waste, vegetation, refuse or debris in any form.

2. The use of incinerators for the disposal of any form of solid waste or liquid waste shall be prohibited.

3. Persons operating fuel-burning equipment which requires boiler lancing or soot blowing shall perform such operations only between the hours of 12:00 noon and 4:00 p.m.

4. The Chattanooga-Hamilton County Air Pollution Control Board encourages persons operating motor vehicles to reduce operations by the use of car pools and increase use of public transportation and the elimination of unnecessary operation.

Part B. SOURCE CURTAILMENT

Any owner or operator of a source of air pollutants listed below shall take all required control actions specified below for this Warning Level and the preplanned abatement strategies submitted to and approved by the Director for that source.

Source of Air Pollution	*Control Level*
1. Coal or oil-fired electric power generating facilities	a. Maximum reduction by utilization of fuels having lowest ash and sulfur content. b. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing and soot blowing. c. Maximum reduction by diverting electric power generation to facilities outside of Warning Area.
2. Coal and oil-fired process steam generating facilities	a. Maximum reduction by utilization of fuels having the lowest ash and sulfur content. b. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing and soot blowing. c. Making ready for use a plan of action to be taken if an emergency develops.

Source of Air Pollution	*Control Level*
3. Manufacturing industries which require considerable lead time for shut-down including the following classifications: Petroleum Refining Chemical Industries Primary Metal Industries Glass Industry Paper and Allied Products	a. Maximum reduction of air contaminants from manufacturing operations if necessary, assuming reasonable economic hardship by postponing production and allied operation. b. Maximum reduction by deferring trade (industry) waste disposal operations which emit solid particles, gases, vapors, or malodorous substances. c. Maximum reduction of heat load demands for processing. d. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing and soot blowing.
4. Manufacturing industries which require relatively short lead time for shut-down including the following classifications: Primary Metal Industries Chemical Industries Mineral Processing Industries Grain Industry	a. Elimination of air contaminants from manufacturing operations by ceasing, curtailing, postponing, or deferring production and allied operations to the extent possible without causing injury to persons or damage to equipment. b. Elimination of air contaminants from trade (industry) waste disposal processes which emit solid particulates, gases, vapors, or malodorous substances. c. Maximum reduction of heat load demands for processing. d. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing and soot blowing.

TABLE 3
EMISSION REDUCTION PLANS
EMERGENCY LEVELS

Part A. GENERAL

1. There shall be no open burning by any persons of tree waste, vegetation, refuse or debris in any form.
2. The use of incinerators for the disposal of any form of solid or liquid waste shall be prohibited.
3. All places of employment described below shall immediately cease operations:
   a. Mining and quarrying of non-metallic minerals
   b. All construction work except that which must proceed to avoid emergent physical harm.
   c. All air contaminant sources except those required to have in force an air pollution emergency plan.

4. Any commercial or manufacturing establishments not included in these Tables shall institute such actions as will result in maximum reduction of air pollutants from their operations by ceasing, curtailing, or postponing operations which emit air pollutants to the extent possible without causing injury to person or damage to equipment.
5. The Chattanooga-Hamilton County Air Pollution Control Board encourages the users of motor vehicles to cease usage except in emergencies.

Part B. SOURCE CURTAILMENT

Any owner or operator of a source of air pollutants listed below shall take all required control actions specified below for this Emergency Level and the preplanned abatement strategies submitted to and approved by the Director for that source.

Source of Air Pollution	*Control Action*
1. Coal or oil-fired electric power generating facilities	a. Maximum reduction by utilization of fuels having lowest sulfur and ash content. b. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing or soot blowing. c. Maximum reduction by diverting electric power generation to facilities outside of Emergency Area.
2. Coal and oil-fired process steam generating facilities	a. Maximum reduction, by reducing heat and steam demands to absolute necessities, consistent with preventing equipment damage. b. Maximum utilization of mid-day (12:00 noon to 4:00 p.m.) atmospheric turbulence for boiler lancing and soot blowing. c. Taking the action called for in the emergency plan.
3. Manufacturing industries of the following classifications: Primary Metals Industries Petroleum Refining Chemical Industries Grain Industry	a. Elimination of air contaminants from manufacturing operations by ceasing, curtailing, postponing or deferring production and allied operations to the extent possible without causing injury to persons or damage to equipment b. Elimination of air contaminants from trade (industry) waste disposal processes which emit solid particles, gases, vapors, or malodorous substances. c. Maximum reduction of heat load demands for processing. d. Maximum utilization of mid-day (12:00 Paper and Allied Products noon to 4:00 p.m.) atmospheric turbulence for boiler lancing or soot blowing.

(Code 1986, § 4-20; Ord. No. 10786, § 30, 10-27-98; Ord. No. 13998, § 21, 6-27-23)

Sec. 4-21. Variances.

(a) Any person who owns or is in control of any plant, building, structure, process or equipment may apply to the board for a variance from rules or regulations. Each applicant to the board for variance shall pay a fee of one hundred dollars ($100.00) to cover the cost of handling such application, no part of which fee is returnable. The board may grant such variance if it finds that:

(1) The emissions occurring or proposed to occur do not endanger or are not likely to endanger human health or safety; and

(2) Compliance with the rules or regulations from which variance is sought would produce serious hardship without equal or greater benefits to the public.

(b) No variance or renewal thereof shall be granted pursuant to this section except after public hearing on due notice by publication as an electronic notice (e-notice) on the Bureau website for a period of thirty (30) days prior to the public hearing and by other means designated by the Director, if necessary, and until the Board has considered the relative interests of the applicant, other owners of property likely to be affected by the discharges, and the general public.

(c) Any variance or renewal thereof may be granted within the requirements of subsection (a) and for the time periods and under conditions consistent with the reasons therefor and with the following limitations:

(1) If the variance is granted on the grounds that there is not practicable means known or available for the adequate prevention, abatement or control of the air pollution involved, it shall be only until the necessary means for prevention, abatement or control becomes known and available and subject to the taking of any substitute or alternate measures that the board may prescribe;

(2) If the variance is granted on the grounds that compliance with the particular requirement or requirements from which variance is sought will necessitate the taking of measures which, because of their extent or cost, must be spread over a considerable period of time, it shall be for a period not to exceed such reasonable time as in the view of the board is requisite for the taking of the necessary measures. A variance granted on the grounds specified herein shall contain a timetable for the taking of action in an expeditious manner and shall be conditioned on adherence to such timetable;

(3) If the variance is granted on the ground that it is justified to relieve or prevent hardship of any kind other than provided for in items (1) and (2) of this subsection, it shall be for not more than one (1) year.

(d) Any variance granted pursuant to this section may be renewed on terms and conditions and for periods which would be appropriate on initial granting of a variance. If complaint is made to the Board on account of the variance, no renewal thereof shall be granted unless, following public hearing on the complaint notice, the Board finds that renewal is justified. No renewal shall be granted except on application therefor. Any such application shall be made at least thirty (30) days prior to the expiration of the variance. Upon receipt of an application for renewal, the Bureau shall provide for public notice by publication as an electronic notice (e-notice) on the Bureau website for a period of thirty (30) days prior to the public hearing and by other means designated by the Director, if necessary.

(e) A variance or renewal shall not be a right of the applicant or holder thereof but shall be in the discretion of the board. However, any person adversely affected by a variance or renewal granted by the board may obtain judicial review thereof by a proceeding in the chancery court. Judicial review of the denial of variance may be had only on common law writ of certiorari on the grounds that the denial is arbitrary or capricious.

(f) Nothing in this section and no variance or renewal granted pursuant hereto shall be construed to prevent or limit the application of the emergency provisions and procedures of section 4-20 of this chapter to any person or his property.

(g) Any hearing held under the provisions of this section shall conform with the relevant requirements set out in section 4-18 of this chapter.
(Code 1986, § 4-21; Ord. No. 13998, §§ 22, 23, 6-27-23)

Secs. 4-22—4-40. Reserved.

ARTICLE II. RULES, REGULATIONS, CRITERIA, STANDARDS

Sec. 4-41. Rules adopted.

The following rules, regulations, criteria and standards for air pollution control are hereby adopted:

Rule 1. Title.

These regulations shall be known and referred to as the "Chattanooga-Hamilton County Air Pollution Control Regulations."

Rule 2. Regulations of Nitrogen Oxides.

Rule 2.1. No person shall cause, suffer, allow or permit the emission of nitrogen oxides, expressed as nitrogen dioxide, from fuel-burning equipment which has design capacity of or in excess of two hundred fifty million (250,000,000) Btu's per hour, built or installed on and after January 1, 1973, in excess of the following:

(1) One hundred sixty-five (165) ppm corrected to fifteen percent (15%) excess air when gaseous fossil fuel is fired (equivalent to two-tenths (0.20) pounds of nitrogen oxides, expressed as nitrogen dioxide, per million Btu heat input);

(2) Two hundred twenty-seven (227) ppm corrected to fifteen percent (15%) excess air when liquid fossil fuel is fired (equivalent to three-tenths (0.30) pounds of nitrogen oxides, expressed as nitrogen dioxide, per million Btu heat input);

(3) Five hundred twenty-five (525) ppm corrected to fifteen percent (15%) excess air when solid fossil fuel is fired (equivalent to seven-tenths (0.70) pounds of nitrogen oxides, expressed as nitrogen dioxide, per million Btu heat input).

When different fossil fuels are burned simultaneously in any combination, the applicable standard shall be determined by proration (i.e., the allowable emission, expressed as nitrogen dioxide, shall be equal to the value obtained from the equation:

$$A = S \times (525) + L \times (227) + G \times (165)$$

Where:

S = fraction of total heat input derived from solid fossil fuel.

L = fraction of total heat input derived from liquid fossil fuel.

G = fraction of total heat input derived from gaseous fossil fuel.

A = the emission limit in ppm.

Rule 2.2. (Reserved).

Rule 2.3. No person shall cause, suffer, allow or permit the emission of nitrogen oxides from any nitric acid plant built or installed on and after January 1, 1973, in excess of three (3) pounds (calculated as nitrogen dioxide) per ton of acid produced.

Rule 2.4. No person shall cause, suffer, allow or permit the emission of nitrogen oxides in excess of three hundred (300) ppm from any source except fuel-burning equipment, which is regulated by Rule 2.1; nitric acid plants, which are regulated by Rule 2.2 and Rule 2.3; Portland cement plants, which are regulated by Rule 2.6; and emergency generators, which are regulated by Rule 2.7.

Rule 2.5. All sampling of emissions from any source of nitrogen oxides and all analyses of samples to determine the amount of nitrogen oxides in such samples shall be conducted as specified by techniques promulgated by the board.

Rule 2.6. No owner or operator of any Portland cement plant shall cause, suffer, allow or permit the emission of nitrogen oxides (NO_x) in excess of seven hundred and fifty (750) parts per million when averaged over any three (3) consecutive hour period. After April 30, 2007, the owner or operator of any Portland cement kiln subject to this rule shall not operate the kiln during May 1 through September 30 unless the kiln has installed and operates during May 1 through September 30 with at least one (1) of the following:

(a) Low-NO_x burners;

(b) Mid-kiln system firing;

(c) Alternative control techniques approved by the Director and the EPA and achieving the same emissions decreases as low-NO_x burners or mid-kiln system firing; or

(d) Reasonably available control technology approved by the Director and the EPA.

By April 30, 2007, the owner or operator of a cement kiln subject to this rule shall provide the Director with a statement confirming that the kiln is subject to the rule and a report demonstrating compliance with the requirements of the rule. If compliance is achieved by the use of prescribed equipment, the compliance demonstration shall be a written certification that the equipment is installed and in use. By October 31, 2007, the owner or operator shall provide the Director a report documenting the NO_x emissions for the period of May 1, 2007, through September 30, 2007. Beginning in 2008, an annual report documenting NO_x emissions for May 1 through September 30 of each year shall be submitted to the director by October 31 of that year. The annual report shall include a certification that the kiln has continued to be in compliance with this rule as stated in the initial compliance certification.

Rule 2.7. For the purposes of this rule, "emergency generator" is defined as a generator used when loss of primary electrical power occurs for reasons beyond the control of the source. In no event shall an emergency generator emitting in excess of one thousand five hundred (1,500) parts per million be operated for a period of time longer than five (5) consecutive days or more than a total of twenty (20) days in any calendar year, unless a source demonstrates to the director with clear and convincing evidence that reasonably unforeseeable events beyond the control of the source require use of the emergency generator for an additional period of time. The source shall maintain a written record of each loss of primary electrical power, including a record of the cause and a record of the duration of the loss. Such written record shall be retained for a period of not less than two (2) years and shall be available to the director upon request. Periodic start-up of an emergency generator to test proper functioning shall not be subject to these recordkeeping requirements.

Rule 3. Visible Emission Regulations.

Rule 3.1. No person shall cause, suffer, allow or permit visible emissions from any air contaminant source with an opacity in excess of twenty percent (20%) for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period; provided, however, that the time limitations as set forth in Rule 7.1 apply to incinerators, but all other provisions of Rule 3 shall apply to incinerators.

Rule 3.3. It is expressly intended that in testing compliance with Rule 3.1 that visible emissions will be evaluated in terms of equivalent opacity and expressed as percent opacity.

Rule 3.4. Visible emissions from fuel-burning equipment used exclusively to provide space heating in a building not containing more than two (2) dwelling units shall not be subject to the provisions of this Rule 3.

Rule 3.5. Regardless of the visible emission limitation contained in this Rule 3, all sources identified in Rule 15, Rule 16, Rule 18, Rule 26, and Rule 27 in this section and in section 4-8(e) (Construction and modification permit, nonattainment areas) of this chapter shall comply with the visible emission limitations set pursuant to those rules or that section.

Rule 3.6. Visible emissions from nonstack emission points at coke plants shall not be subject to the provisions of this Rule 3, but shall be subject to the opacity limitations of Rule 26.4.

Rule 4. Regulation of the Importation, Sale, Transportation, Use or Consumption of Certain Fuels.

Rule 4.1. It shall be unlawful for any persons to import, sell, offer for sale, expose for sale, exchange, deliver or transport for use and consumption in the city, or to use or consume in the city, any fuel containing in excess of four percent (4%) sulfur content by weight for fuel-burning equipment regulated under Rule 8 and Table 1. Fuels with sulfur contents greater than allowed in this rule may be burned, used and consumed, and may be delivered by any person to any user, provided such user utilizes methods or processes or a combination of methods or processes approved in writing by the director which will limit the emission of sulfur dioxide from the source to a quantity or rate not greater than that which would result from the use of a low sulfur fuel as specified in the first part of this rule. Any person who desires to sell, offer for sale, expose for sale, exchange, deliver or transport for use and consumption any fuel with sulfur content greater than allowed as hereinabove set forth upon the basis that the user utilizes methods or processes approved in writing by the director as hereinabove set forth must have in his possession at the time of sale, offer for sale, exposure for sale, exchange, delivery or transport an exact reproduced copy of the approval by the director as hereinabove provided for, which approval must at that time be valid, effective and unrevoked. Sale, offer for sale, exposure for sale, exchange, delivery or transport for use and consumption in the absence of such copy of such valid, effective and unrevoked written approval shall be prima facie a violation of this rule and the burden shall be upon the person charged to establish that written and effective approval had been extended by the director as hereinabove provided.

Rule 4.2. To determine compliance with Rule 4.1 above, the board is authorized under this chapter to make, or obtain tests of fuel when it deems necessary to determine compliance.

(1) An adequate supply of the fuel, ready for use, must be made available to the director to conduct whatever tests in accordance with A.S.M.E., P.T.C. 3.2-1954 he deems necessary.

(2) Any person whose fuel is submitted to such tests must pay all expenses necessary to conduct the tests when found to be in violation.

(3) Tests certified by a competent person approved by the director may be accepted by the director as the tests required by this rule.

Rule 4.3. The provisions of Rule 4 shall become effective on and after October 14, 1970.

Rule 4.4. The director or his representative may examine the weigh bills for all fuels delivered to and by all fossil fuel dealers by any means of transportation.

Rule 5. Prohibition of Hand-Fired Fuel-Burning Equipment.

Rule 5.1. All operation or use of hand-fired fuel-burning equipment with solid fuels is prohibited.

Rule 5.2. Rule 5.1 shall not apply to fuel-burning equipment used exclusively for heating a dwelling designed and used for occupancy of less than three (3) families.

Rule 6. Prohibition of Open Burning.

Rule 6.1. No person shall cause, suffer, allow or permit open burning except as provided in Rule 6.3, 6.4, and 6.5. No person shall cause, suffer, allow or permit controlled burning except as provided in Rule 6.6. No person shall fail or refuse to take all reasonable and necessary steps and precautions to prevent open or controlled burning upon any premises owned, occupied or under the control of such person. No person shall fail or refuse to take all reasonable and necessary steps and precautions to extinguish or otherwise terminate and abate any open or controlled burning which has originated through any cause whatsoever upon any premises owned, occupied or under the control of such person or upon premises upon which such person is carrying out any operation or activity.

Rule 6.2. No person shall conduct a salvage operation by open burning.

Rule 6.3. Open Burning. Open burning of vegetation and raw, untreated, non-manufactured wood materials, thoroughly dried to facilitate efficient combustion while minimizing smoke caused by naturally occurring moisture contained in vegetative materials ("clean wood materials") may be permitted only in the months of October, November, December, January, February, March and April, provided that the following conditions are met:

(1) An application shall be submitted to the director stating the reason why there is no other method of disposal, the amount of material to be burned, and the location of material to be burned;

(2) A non-refundable application fee of seventy-five dollars ($75.00) shall be included with the application, which fee shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board;

(3) No burning shall occur until such inspection of the material as may be required by the bureau is conducted, a permit has been issued and the permit has been received by the applicant;

(4) The size of the piles of material to be burned shall not exceed eight (8) feet by eight (8) feet by eight (8) feet and no pile shall be within one hundred (100) feet of the nearest structure or within fifty (50) feet of wooden or plastic fencing not owned by the permittee. No brush in excess of twelve (12) inches in diameter and no tree stumps shall be burned;

(5) Burning may only be conducted on days of low air pollution potential, as determined by the Director. In addition, burning may not be allowed during periods of high winds, dry conditions, or low humidity, as determined by the Director;

(6) Only clean fuel not containing garbage, rubber, tires, plastics, roofing materials, tar paper or other refuse shall be allowed for the startup of fires;

(7) Burning will only be allowed during the following hours on days approved pursuant to subparagraph (5) above. The burning shall be completed by, and completely extinguished by, the end of the time period set forth below. Dirt shall not be used to attempt to extinguish the burning. No smoke or smoldering is allowed after the termination time;

October 1 through November 3	9:00 a.m.—4:00 p.m.

November 4 through December 31	9:00 a.m.—3:30 p.m.
January 1 through February 15	9:00 a.m.—4:00 p.m.
February 16 through March 13	9:00 a.m.—5:00 p.m.
March 14 through April 30	9:00 a.m.—6:00 p.m.

Burning will not be deemed extinguished if smoke or smoldering is present or if dirt is used to cover a burn pile.

(8) The burning must be attended at all times by a person 16 years or older who shall have adequate means of extinguishing the fire available and is capable of doing so;

(9) The permit may be revoked or suspended at any time at the site where there is a violation of the permit conditions or of this Rule, with the right to a hearing before the director or the Air Pollution Control Board;

(10) The permit must be kept at or near the burn site and be readily available for inspection;

(11) The permit is not valid until signed by the applicant signifying that the permit conditions have been read and understood;

(12) The person conducting the burning shall contact the local fire agency each day before burning;

(13) Any permit issued will remain valid until the expiration date of the permit, unless revoked or suspended.

(14) Burning is allowed only at the location set forth in the application and only for materials removed or generated from the burn site address. Burning of waste generated as a result of a commercial operation is prohibited.

(15) Burning shall not be conducted where an obvious nuisance or safety hazard is present.

Rule 6.4. Open Burning Exemptions. Open burning shall be allowed without compliance with Rule 6.3 only in the following specifically listed instances:

(1) Fires used only for cooking of food or for ceremonial or recreational purposes (recreational fires are limited in size to three (3) feet in diameter and two (2) feet high), including barbecues and outdoor fireplaces, but only if such fires are fueled with clean fuel for that particular purpose (clean seasoned wood, gas, charcoal, wood pellets, or fire logs). Smoke or ash from cooking, ceremonial, or recreational fires shall not create a nuisance beyond the boundary of the property where the burning is occurring. Cooking, ceremonial, or recreational fires shall not be left unattended and shall be completely extinguished when the purpose of the fire is completed;

(2) Fires set by or at the direction of responsible fire control agencies for the prevention, elimination or reduction of the spread of existing fires;

(3) Safety flares and smokeless flares; except those for the combustion of waste gases. Flares for the combustion of waste gases shall comply with the permitting provisions of section 4-8 of this chapter and any other applicable requirement;

(4) Open burning used solely for the purpose of warming persons who are in the out-of-doors performing work and conducting lawful activities, provided such fires use only clean, raw, untreated, non-manufactured wood, not containing garbage, rubber, plastics, roofing materials, tar paper, cardboard, paperboard or other refuse;

(5) Operation of devices using open flames such as tar kettles, blow torches, cutting torches, portable heaters and other flame-producing equipment.

Rule 6.5. Open Burning Exceptions. Open burning may be allowed without a permit in the following instances provided a written statement, such as is required in Rule 6.3(1), is filed with the director and written approval is given by the director:

(1) Fires set for the training and instruction of public or private fire-fighting personnel, including those in civil defense provided such training is conducted in accordance with National Fire Protection Association standards;

(2) Carrying out recognized Best Management Practices for Agriculture necessary for production of crops;

(3) The director may allow open burning prohibited during the months of May, June, July, August and September upon a determination that such open burning is necessary to protect public health, safety or welfare of the people, or there are no reasonable alternatives, e.g. disposal of vegetative debris from storm damage. The action of the director shall be in writing.

Rule 6.6. Controlled Burning. Clearing and burning of two (2) or more acres of vegetation within a one (1)-year period, including burning for silvicultural purposes, requires controlled burning and compliance with the following enumerated conditions. Controlled burning may be permitted by the Director only in the months of October, November, December, January, February, March and April. Controlled burning, other than for silvicultural purposes, requires the use a pit and an air curtain destructor. Burning for silvicultural purposes requires the use of special equipment designed for that purpose.

(1) Controlled burning (other than burning for silvicultural purposes) requires the continuous use of a pit and an effective air curtain destructor to maintain the necessary air velocity to minimize to the absolute extent practical any emission of fly ash and/or smoke;

(2) To obtain a controlled burning permit, a signed application shall be submitted to the director including the following:

   a. Complete plans and details of the method and equipment to be used for the control of such burning must be approved by the director before the permit shall issue;

   b. The names of those in charge of the equipment and those in charge of the site and how they may be contacted must be furnished;

(3) A non-refundable application fee of six hundred twenty-five dollars ($625.00) shall be included with the application, which fee shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board;

(4) Written approval is received from the director in the form of a controlled burning permit with conditions determined by the director;

(5) The pit shall be cleaned of ash on a daily basis;

(6) Brush in the pit shall not be piled above the pit surface;

(7) The persons in charge of the equipment shall notify the fire department serving the area in which the burning occurs at the beginning of each day's burn and the completion of each day's burn;

(8) The person in charge of the equipment must have an operating telephone at the site at all times during operation of the equipment;

(9) There shall be enough fuel at the site to maintain operation of the air curtain destructor without interruption;

(10) Any modification to the pit design or location must be approved by the director prior to the modification;

(11) The permit may be revoked or suspended at any time at the site where there is a violation of the permit or of this Rule, with the right to a hearing before the Director or the Air Pollution Control Board;

(12) Burning will only be allowed during the following hours on days of low air pollution potential, as determined by the Director. In addition, burning may not be allowed during periods of high winds, dry conditions, or low humidity, as determined by the Director. The burning shall be completed by, and completely extinguished by, the end of the time period set forth below. Dirt shall not be used to attempt to extinguish the burning. No smoke or smoldering is allowed after the termination time;

October 1 through November 3	9:00 a.m.—4:00 p.m.
November 4 through December 31	9:00 a.m.—3:30 p.m.
January 1 through February 15	9:00 a.m.—4:00 p.m.
February 16 through March 13	9:00 a.m.—5:00 p.m.
March 14 through April 30	9:00 a.m.—6:00 p.m.

Burning will not be deemed extinguished if smoke or smoldering is present or if dirt is used to cover a burn pile.

(13) The burning must be attended at all times;

(14) The permit must be kept at or near the burn site and be readily available for inspection;

(15) The permit is not valid until signed by the applicant signifying that the permit conditions have been read and understood;

(16) Any permit issued will remain valid until the expiration date of the permit, unless revoked or suspended.

(17) Applicant shall review the permit conditions with all parties that will be involved with the controlled burning process.

Rule 7. Incinerator Regulation.

Rule 7.1. No person shall cause, suffer, allow or permit discharge of a visible emission from any incinerator with an opacity equal to or in excess of twenty percent (20%) for an aggregate of more than three (3) minutes in any one (1) hour or more than twelve (12) minutes in any twenty-four (24) hour period.

Rule 7.2. No person shall cause, suffer, allow or permit particulate emission from any incinerator in excess of one-tenth (0.1) pounds per one hundred (100) pounds charge or in excess of the following:

Input (lbs. per hour)	Maximum Allowable Emissions (grains per std. dry cu. ft.)
0—5000	0.20
5001 and above	0.15

Test results shall be calculated (1) to twelve percent (12%) carbon dioxide for products of combustion, (2) to standard conditions. This limitation shall be met when the incinerator is operating at full load. In measuring emissions from incinerators the carbon dioxide produced by combustion of any liquid or gaseous fuels shall be excluded from the calculation to a maximum of twelve percent (12%) carbon dioxide.

Tests to determine compliance with this rule shall be conducted as provided in sections 4-3, 4-8, and 4-11 of this chapter.

Rule 7.3. All incinerators constructed after October 14, 1969, shall be of the multiple chamber design consisting of three (3) or more refractory lined combustion furnaces connected in series and when operating shall (1) create a preignition temperature of eight hundred degrees (800°) Fahrenheit in the primary furnace and (2) maintain a temperature of fifteen hundred degrees (1,500°) Fahrenheit in the secondary furnace.

Designs other than those outlined above shall be considered on an individual basis and will be exempt from these provisions, if such design results in performance which meets the standards set forth in Rules 7.1 and 7.2 above.

Rule 7.4. Reserved.

Rule 7.5. On and after March 1, 1973, the person in responsible charge of the operation of an incinerator (including a cremation system) must be licensed by the Bureau. Such license shall be issued only after a passing score is received on a standardized test to be devised and administered by the bureau. The bureau shall test persons on their knowledge of the principles of incineration, including but not necessarily limited to the subjects of preignition, firing and cleaning. The Bureau shall have the power to collect a one (1) time fee of one hundred dollars ($100.00) pursuant to the issuance of such license. Such fee shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board. The Director shall have the authority to suspend or revoke such license if the person holding such license willfully or by reason of incompetence violates any provision of this chapter. No license issued in accordance with the provisions of this rule shall be assignable or transferable. The failure to issue a license, or suspension or revocation of such license, shall be an order or determination of the Director within the meaning of Section 4-18(e) of this chapter.

Rule 7.6. The board has found that the ambient air quality standards for particulate matter are being violated in a portion of the city. The emission limitations for plants in existence prior to January 1, 1978, which are located in the particulate matter nonattainment area or which have a significant impact upon the particulate nonattainment area are to be found in Rule 26. The emission limitations that are found in Rule 26 are in addition to the limitations contained in this Rule 7.

Rule 8. Fuel-Burning Equipment Regulations.

Rule 8.1. No person shall cause, suffer, allow or permit the emission of air contaminants from fuel-burning equipment built or installed before January 1, 1973, in excess of that provided in Schedule 1 of Table 1 and the provisions of Rule 8.3.

Rule 8.2. No person shall cause, suffer, allow or permit the emission of air contaminants from fuel-burning equipment built or installed on and after January 1, 1973, in excess of that provided in Schedule 2 of Table 1.

Rule 8.3. The emission or escape into the open air of fly ash, particulate matter or other air contaminants, resulting from the combustion of fuel, from any fuel-burning equipment or from any stack connected thereto, in quantities exceeding the limits specified in Table 1 for the size of equipment involved is prohibited. The emission limitations specified in Table 1 are the maximum allowable emission in any consecutive sixty (60) minute period. The limitations, subject to linear interpolation, are to be conformed to when the fuel-burning equipment is operating at the maximum design heat input rating. The heat input rating of any unit discharging to a single stack shall be the maximum design input rating, including both heat available from burning of fuel and any sensible heat from materials introduced into the combustion zone at temperatures above the ambient air temperature. When two (2) or more fuel-burning units are connected to a single stack, the combined fuel-burning capacity of all units connected to the stack denotes the size of equipment in terms of Btu input for establishing the maximum allowable emission. When one (1) fuel-burning unit is connected to two (2) or more stacks, the heat input of the equipment shall be the criterion for the maximum allowable total emission from all stacks combined.

Tests to determine compliance with this rule shall be conducted as provided in sections 4-3, 4-8 and 4-11 of this chapter.

Rule 8.4. Fuel-burning equipment located in dwellings designed for not more than two (2) families are exempt from the operation of Rule 8.

Rule 8.5. The board has found that the ambient air quality standards for particulate matter are being violated in a portion of the city. The emission limitations for plants in existence prior to January 1, 1978, which are located in the particulate matter nonattainment area or which have a significant impact upon the particulate nonattainment area are to be found in Rule 26. The emission limitations that are found in Rule 26 are in addition to the limitations contained in this Rule 8.

TABLE 1
EMISSION LIMITATIONS FOR FUEL-BURNING EQUIPMENT

Use the following formulas:

Equipment Rating	*Maximum Allowable Particulate Emissions (lbs./hr.)*	
(10^6 Btu/hr.)	*Schedule 1*	*Schedule 2*
Below 10	$Q = 0.6 \times B$	$Q = 0.6 \times B$
10 to 250	$Q = 1.09 \times B^{0.7406}$	$Q = 2.16 \times B^{0.4434}$
250 and above	$Q = 1.09 \times B^{0.7406}$	$Q = 0.1 \times B$

Where:

Q = maximum allowable particulate emission in pounds per hour.

B = the burning rate in 10^6 Btu/hr.

Determine intermediate values by linear interpolation.

Rule 9. Regulation of Visible Emissions from Internal Combustion Engines.

Rule 9.1. No person shall cause, suffer, allow or permit the emission of visible air contaminants from any spark ignition engine of ten (10) brake horsepower or more:

(1) For a period of time exceeding ten (10) seconds; or

(2) After the vehicle has moved one hundred (100) yards or more from its initial starting point.

Rule 9.2. No person shall cause, suffer, allow or permit the visible emission of air contaminants from a diesel type engine for a period of more than sixty (60) consecutive seconds in excess of twenty percent (20%) opacity.

Rule 9.3. Responsibility for compliance with Rules 9.1 and 9.2 applies to the owner, the registered owner, the lessee and the operator, individually, and each shall be jointly or severally liable for violation of these rules and subject to the fines and penalties of this chapter.

Rule 9.4. Reserved.

Rule 9.5. Testing in the outdoor atmosphere of internal combustion engines which have been or are to be repaired will be allowed if such tests are performed on the premises of the repairing facility.

Rule 9.6. No motor vehicle which is equipped with a pollution control device shall be modified or altered in any manner which will decrease its efficiency or effectiveness in the control of air pollution.

Rule 9.7. No diesel engine which supplies motive power to a vehicle shall be allowed to idle more than five (5) consecutive minutes when the vehicle is not in motion, except when the vehicle is forced to remain motionless because of traffic conditions over which the operator has no control; provided, however, that any diesel engine which supplies motive power to a truck or locomotive shall be allowed to idle for more than five (5) consecutive minutes when it is at a distance in excess of five hundred (500) feet from the nearest residential, recreational, institutional, retail sales, hotel or educational premises.

Rule 10. Process Emissions Regulations.

Rule 10.1. All installations, operations or equipment, except fuel-burning equipment and incinerators, from which any air contaminant is, or may be, emitted or permitted to escape into the open air shall comply with the provisions of this rule. The emission limitations specified in Table 2 are the maximum allowable emissions in any consecutive sixty (60) minute period.

Rule 10.2. No person shall cause, suffer, allow or permit emission from any air contaminant source built or installed before the first day of January, 1973, in excess of that provided in Schedule 1 of Table 2.

Rule 10.3. No person shall cause, suffer, allow or permit emission from any air contaminant source built or installed on and after January 1, 1973, in excess of that provided in Schedule 2 of Table 2.

Rule 10.4. Tests to determine compliance with this Rule 10 shall be conducted as provided in sections 4-3, 4-8 and 4-11 of this chapter; provided, however, that compliance with this Rule 10 does not exempt such persons from compliance with any other rule or section of this chapter applicable to emissions.

Rule 10.5. The board has found that the ambient air quality standards for particulate matter are being violated in a portion of the city. The emission limitations for plants in existence prior to January 1, 1978, which are located in the particulate matter nonattainment area or which have a significant impact upon the particulate nonattainment are to be found in Rule 26 are in addition to the limitations contained in this Rule 10.

Rule 10.6. Any other provision of this chapter notwithstanding, no person shall cause, suffer, allow or permit the discharge of particulate emissions from any asphalt plant with an input process weight rate greater than two hundred thousand (200,000) pounds per hour in excess of fifty-one and two-tenths (51.2) pounds per hour.

Rule 10.7. Irrespective of the maximum allowable particulate emission limitations contained in Table 2 of this Rule 10, no person shall cause, suffer, allow or permit the discharge of particulate emissions from process equipment in excess of 0.25 grains per cubic foot of stack gases corrected to seventy degrees (70°) Fahrenheit and one (1) atmosphere. This Rule 10.7 shall not apply to vents from storage tanks for liquids.

TABLE 2
PARTICULATE MATTER EMISSION LIMITATIONS FOR PROCESS EQUIPMENT

Input Process Weight Lbs./hour	*Input Process Weight Tons/hour*	*Maximum Allowable Emission Rate Schedule 1*[*1]	*Maximum Allowable Emission Rate Schedule 2*[*2]
50	0.025	0.346	0.36
100	0.05	0.551	0.55
200	0.10	0.877	0.86
400	0.20	1.40	1.32
600	0.30	1.83	1.70
800	0.40	2.22	2.03
1,000	0.50	2.58	2.34
1,500	0.75	3.38	3.00
2,000	1.00	4.10	3.59
2,500	1.25	4.76	4.12
3,000	1.50	5.38	4.62
3,500	1.75	5.96	5.08
4,000	2.00	6.52	5.52
5,000	2.50	7.58	6.34
6,000	3.00	8.56	7.09
7,000	3.50	9.49	7.81
8,000	4.00	10.4	8.50
9,000	4.50	11.2	9.10
10,000	5.00	12.0	9.70
12,000	6.00	13.6	10.9
16,000	8.00	16.5	13.0
18,000	9.00	17.9	14.0
20,000	10.00	19.2	15.0
30,000	15.00	25.2	19.2
40,000	20.00	30.5	23.0
50,000	25.00	35.4	26.4
60,000	30.00	40.0	29.6
70,000	35.00	41.3	30.6
80,000	40.00	42.5	31.2
90,000	45.00	43.6	31.8
100,000	50.00	44.6	32.4
120,000	60.00	46.3	33.3
140,000	70.00	47.8	34.2
160,000	80.00	49.0	34.9
200,000	100.00	51.2	36.1
1,000,000	500.00	69.0	46.7
2,000,000	1,000.00	77.6	52.3

Input Process Weight Lbs./hour	*Input Process Weight Tons/hour*	*Maximum Allowable Emission Rate Schedule 1*[*1]	*Maximum Allowable Emission Rate Schedule 2*[*2]
6,000,000	3,000.00	92.7	62.3

*[1] Interpolation of the data in Schedule 1 for process weight rates up to sixty thousand (60,000) pounds per hour shall be accomplished by using the following equation: $E = 4.10\ P^{0.67}$.

Interpolation and extrapolation of the data for process weight rates in excess of 60,000 lbs/hour shall be accomplished by using the following equation:

$$E = 55.0\ P^{0.11} - 40$$

Where: E = Maximum allowable emission rate in lbs/hour

P = Process weight rate in tons/hour

*[2] Interpolation of the data in Schedule 2 for process weight rates up to sixty thousand (60,000) pounds per hour shall be accomplished by the use of the following equation:

$$E = 3.59\ P^{0.62}$$

Interpolation and extrapolation of the data for process weight rates in excess of sixty thousand (60,000) pounds per hour shall be accomplished by the use of the following equation:

$$E = 17.31\ P^{0.16}$$

Where: E = Maximum allowable emission rate in lbs/hour, and

P = Process weight rate in tons per hour

Rule 11. Regulation of Transporting and Material Handling in Open Air.

Rule 11.1. No person shall cause or permit the handling, processing or storage of any material in the open air in a manner which allows or may allow particulate matter to become airborne which exceeds twenty percent (20%) opacity for more than three (3) minutes in any consecutive sixty-minute period, or more than twenty (20) minutes in any twenty-four (24) hour period.

Rule 11.2. No person shall cause or permit a building or its appurtenances, a road, a driveway, a parking area or an open area to be constructed, used, repaired or demolished without applying all such reasonable measures as may be required to prevent particulate matter from becoming airborne. The director may require such reasonable measures as may be necessary to prevent particulate matter from becoming airborne including but not limited to paving or cleaning of roads, driveways and parking, areas; by the application of dust free surfaces; by the application of water; and by the planting and maintenance of vegetative ground cover.

Rule 11.3. No person shall transport any material in the open air in a manner which allows or may allow particulate matter to become airborne beyond the boundary line of the property of the person doing the transporting.

Rule 12. Regulation of Odors in the Ambient Air.

Rule 12.1. Prohibited. No person or permitted business shall cause, keep or permit any material, substance or condition which is, or is likely to become, a public nuisance, by the emission of noxious odors, fumes, dusts, vapors, or gases that are offensive.

Rule 12.2. Definition. Noxious Odor is the sensation of smell perceived as a result of olfactory stimulation. An odor is deemed offensive, and therefore a nuisance, when one-third (1/3) or more of a sample of persons exposed to it believe it to be objectionable in usual places of occupancy. The sample size is to be at least twenty-five (25) persons, or when fewer than twenty-five (25) are exposed, at least eight (8)

persons believe it to be objectionable beyond the property's boundaries of the subject property. No person or permitted business shall cause, suffer, allow or permit emission such as to cause an "offensive" odor on or adjacent to residential, recreational, institutional, retail sales, hotel or educational premises.

Rule 12.3. Odor Impacts. Odors from animals or fowl, animal or fowl manure or other animal or fowl-related substances shall constitute a nuisance as set forth within Rule 12.1 if the odor is deemed offensive at the property boundaries and any property owner or permitted business fails to comply with the applicable regulations and performance standards of the Food Safety and Inspection Service, U.S. Department of Agriculture at 9 CFR §416, 21 CFR §110, or other applicable federal standards after notice to a permitted business by the Air Pollution Control Board.

Rule 12.4. Animal Care and Sanitation. Any animals or fowl within the city shall be kept in a clean, sanitary and healthful condition. Manure, animal waste or fecal matter, feathers, fur, hair or other animal or fowl debris shall not be allowed to accumulate on any public or private property or contaminate the city's storm water or sewer drainage systems and must comply with all performance standards of the Food Safety and Inspection Service, U.S. Department of Agriculture at 9 CFR §416, 21 CFR §110, or other applicable federal standards. Any such accumulation or contamination that is not in compliance with any valid issued permit is hereby declared to be a public nuisance. For the slaughter of poultry, all blood, feathers and offal shall be deposited in appropriate containers with a suitable top, and such containers shall be kept closed at all times, except when being filled or discharged as required by applicable federal standards. Nothing in this ordinance creates any private right of action or basis for a private civil action. Furthermore, nothing in this ordinance defines a nuisance for any private civil action.

Rule 13. Regulation of Sulfur Oxides.

Rule 13.1. No person shall cause, suffer, allow or permit the emission of gas containing sulfur dioxide from any source, except fuel-burning equipment, in excess of five hundred (500) ppm.

Rule 13.2. No person shall cause, suffer, allow or permit the emission from fuel-burning equipment of sulfur dioxide gas in excess of four (4) pounds per million Btu of fuel consumed in the equipment.

Rule 13.3. All sampling of exhaust gases from any source of sulfur dioxide, and all analyses of samples to determine the amount of sulfur dioxide in exhaust gases, shall be conducted as specified by techniques promulgated by the board.

Rule 13.4. For the purposes of this Rule 13, all sulfur present in gaseous compounds and containing oxygen shall be deemed to be present as sulfur dioxide.

Rule 13.5. Compliance with this Rule 13 shall not relieve a person from the requirements of Rule 12 or from the requirements of any other rules or provisions of this chapter.

Rule 14. Nuisances.

Rule 14.1. No person shall cause, suffer, allow or permit or fail to take reasonable steps to abate or terminate the discharge from any source whatsoever of air contaminants or other material which shall cause injury, detriment, nuisance or annoyance of the public or which endanger the comfort, repose, health or safety of the public or which cause or have a tendency to cause injury or damage to business or property.

Rule 14.2. No person shall cause, suffer, allow or permit or fail to take reasonable steps to abate or terminate the discharge from any source whatsoever of air contaminants or water or steam or a combination of such which cause, or combine with natural elements to cause, the reduction of visibility across any road or thoroughfare to such an extent as to cause a hazard.

Rule 14.3. Nothing in any other section of this chapter relating to regulation of emission or pollutants shall in any manner be construed as authorizing or legalizing the creation or maintenance of a nuisance as described in this Rule 14 or as may otherwise be deemed by law to be a nuisance.

Rule 15. New Source Performance Standards and Standards for Landfills.

Rule 15.1. The provisions of Title 40 Code of Federal Regulations Part 60 "Standards of Performance for New Stationary Sources," Subparts A, D, Da, Db, Dc, E, Ea, Eb, Ec, F, G, Ga, H, I, J, Ja, K, Ka, Kb, L, M, N, Na, O, P, Q, R, S, T, U, V, W, X, Y, Z, AA, AAa, BB, BBa, CC, DD, EE, GG, HH, KK, KKa, LL, MM, MMa, NN, PP, QQ, RR, SS, TT, UU, VV, VVa, WW, XX, AAA, BBB, DDD, FFF, GGG, GGGa, HHH, III, JJJ, KKK, LLL, NNN, OOO, PPP, QQQ, RRR, SSS, TTT, TTTa, UUU, VVV, WWW, XXX, AAAA, CCCC, EEEE, IIII, JJJJ, KKKK, LLLL, OOOO, OOOOa, QQQQ, and TTTT and Appendices A-1, A-2, A-3, A-4, A-5, A-6, A-7, A-8, B, C, D, F, and I (Revised as of July 1, 2023) are hereby incorporated by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121. The following subparts and appendices are included:

Subpart A—	General Provisions
Subpart D—	Fossil-Fuel-Fired Steam Generators
Subpart Da—	Electric Utility Steam Generating Units
Subpart Db—	Industrial-Commercial-Institutional Steam Generating Units
Subpart Dc—	Small Industrial-Commercial-Institutional Steam Generating Units
Subpart E—	Incinerators
Subpart Ea—	Municipal Waste Combustors for Which Construction is Commenced After December 20, 1989 and On or Before September 20, 1994
Subpart Eb—	Large Municipal Waste Combustors for Which Construction is Commenced After September 20, 1994 or for Which Modification or Reconstruction is Commenced After June 19, 1996
Subpart Ec—	Hospital/Medical/Infectious Waste Incinerators
Subpart F—	Portland Cement Plants
Subpart G—	Nitric Acid Plants
Subpart Ga—	Nitric Acid Plants for Which Construction, Reconstruction, or Modification Commenced After October 14, 2011
Subpart H—	Sulfuric Acid Plants
Subpart I—	Hot Mix Asphalt Facilities
Subpart J—	Petroleum Refineries
Subpart Ja—	Petroleum Refineries for Which Construction, Reconstruction, or Modification Commenced After May 14, 2007
Subpart K—	Storage Vessels for Petroleum Liquids for Which Construction, Reconstruction, or Modification Commenced After June 11, 1973, and Prior to May 19, 1978
Subpart Ka—	Storage Vessels for Petroleum Liquids for Which Construction, Reconstruction, or Modification Commenced After May 18, 1978, and Prior to July 23, 1984
Subpart Kb—	Volatile Organic Liquid Storage Vessels (Including Petroleum Liquid Storage Vessels) for Which Construction, Reconstruction, or Modification Commenced After July 23, 1984
Subpart L—	Secondary Lead Smelters
Subpart M—	Secondary Brass and Bronze Production Plants
Subpart N—	Primary Emissions from Basic Oxygen Process Furnaces for Which Construction is Commenced After June 11, 1973

Subpart Na—	Secondary Emissions from Basic Oxygen Process Steelmaking Facilities for Which Construction is Commenced After January 20, 1983
Subpart O—	Sewage Treatment Plants
Subpart P—	Primary Copper Smelters
Subpart Q—	Primary Zinc Smelters
Subpart R—	Primary Lead Smelters
Subpart S—	Primary Aluminum Reduction Plants
Subpart T—	Phosphate Fertilizer Industry: Wet Process Phosphoric Acid Plants
Subpart U—	Phosphate Fertilizer Industry: Superphosphoric Acid Plants
Subpart V—	Phosphate Fertilizer Industry: Diammonium Phosphate Plants
Subpart W—	Phosphate Fertilizer Industry: Triple Superphosphate Plants
Subpart X—	Phosphate Fertilizer Industry: Granular Triple Superphosphate Storage Facilities
Subpart Y—	Coal Preparation and Processing Plants
Subpart Z—	Ferroalloy Production Facilities
Subpart AA—	Steel Plants: Electric Arc Furnaces Constructed After October 21, 1974 and On or Before August 17, 1983
Subpart AAa—	Steel Plants: Electric Arc Furnaces and Argon-Oxygen Decarburization Vessels Constructed After August 17, 1983
Subpart BB—	Kraft Pulp Mills
Subpart BBa—	Kraft Pulp Mill Affected Sources for Which Construction, Reconstruction, or Modification Commenced After May 23, 2013
Subpart CC—	Glass Manufacturing Plants
Subpart DD—	Grain Elevators
Subpart EE—	Surface Coating of Metal Furniture
Subpart GG—	Stationary Gas Turbines
Subpart HH—	Lime Manufacturing Plants
Subpart KK—	Lead-Acid Battery Manufacturing Plants for Which Construction, Reconstruction, or Modification Commenced After January 14, 1980, and On or Before February 23, 2022
Subpart KKa—	Lead-Acid Battery Manufacturing Plants for Which Construction, Modification or Reconstruction Commenced After February 23, 2022
Subpart LL—	Metallic Mineral Processing Plants
Subpart MM—	Automobile and Light Duty Truck Surface Coating Operations for Which Construction, Modification or Reconstruction Commenced After October 5, 1979, and On or Before May 18, 2022
Subpart MMa—	Automobile and Light Duty Truck Surface Coating Operations for Which Construction, Modification or Reconstruction Commenced After May 18, 2022
Subpart NN—	Phosphate Rock Plants
Subpart PP—	Ammonium Sulfate Manufacture
Subpart QQ—	Graphic Arts Industry: Publication Rotogravure Printing
Subpart RR—	Pressure Sensitive Tape and Label Surface Coating Operations
Subpart SS—	Industrial Surface Coating: Large Appliances

Subpart TT—	Metal Coil Surface Coating
Subpart UU—	Asphalt Processing and Asphalt Roofing Manufacture
Subpart VV—	Equipment Leaks of VOC in the Synthetic Organic Chemicals Manufacturing Industry for Which Construction, Reconstruction, or Modification Commenced After January 5, 1981, and on or Before November 7, 2006
Subpart VVa—	Equipment Leaks of VOC in the Synthetic Organic Chemicals Manufacturing Industry for Which Construction, Reconstruction, or Modification Commenced After November 7, 2006
Subpart WW—	Beverage Can Surface Coating Industry
Subpart XX—	Bulk Gasoline Terminals
Subpart AAA—	New Residential Wood Heaters
Subpart BBB—	Rubber Tire Manufacturing Industry
Subpart DDD—	Volatile Organic Compound (VOC) Emissions from the Polymer Manufacturing Industry
Subpart FFF—	Flexible Vinyl and Urethane Coating and Printing
Subpart GGG—	Equipment Leaks of VOC in Petroleum Refineries for Which Construction, Reconstruction, or Modification Commenced After January 4, 1983, and on or Before November 7, 2006
Subpart GGGa—	Equipment Leaks of VOC in Petroleum Refineries for Which Construction, Reconstruction, or Modification Commenced After November 7, 2006
Subpart HHH—	Synthetic Fiber Production Facilities
Subpart III—	Volatile Organic Compound (VOC) Emissions From the Synthetic Organic Chemical Manufacturing Industry (SOCMI) Air Oxidation Unit Processes
Subpart JJJ—	Petroleum Dry Cleaners
Subpart KKK—	Equipment Leaks of VOC From Onshore Natural Gas Processing Plants for Which Construction, Reconstruction, or Modification Commenced After January 20, 1984, and on or Before August 23, 2011
Subpart LLL—	SO2 Emissions From Onshore Natural Gas Processing for Which Construction, Reconstruction, or Modification Commenced After January 20, 1984, and on or Before August 23, 2011
Subpart NNN—	Volatile Organic Compound (VOC) Emissions From Synthetic Organic Chemical Manufacturing Industry (SOCMI) Distillation Operations
Subpart OOO—	Nonmetallic Mineral Processing Plants
Subpart PPP—	Wool Fiberglass Insulation Manufacturing Plants
Subpart QQQ—	VOC Emissions From Petroleum Refinery Wastewater Systems
Subpart RRR—	Volatile Organic Compound Emissions from Synthetic Organic Chemical Manufacturing Industry (SOCMI) Reactor Processes
Subpart SSS—	Magnetic Tape Coating Facilities
Subpart TTT—	Industrial Surface Coating: Surface Coating of Plastic Parts for Business Machines
Subpart TTTa—	Industrial Surface Coating: Surface Coating of Plastic Parts for Business Machines for Which Construction, Reconstruction, or Modification Commenced After June 21, 2022

Subpart UUU—	Calciners and Dryers in Mineral Industries
Subpart VVV—	Polymeric Coating of Supporting Substrates Facilities
Subpart WWW—	Municipal Solid Waste Landfills That Commenced Construction, Reconstruction, or Modification on or After May 30, 1991, but Before July 18, 2014
Subpart XXX—	Municipal Solid Waste Landfills That Commenced Construction, Reconstruction, or Modification After July 17, 2014
Subpart AAAA—	Small Municipal Waste Combustion Units for Which Construction is Commenced After August 30, 1999 or for Which Modification or Reconstruction is Commenced After June 6, 2001
Subpart CCCC—	Commercial and Industrial Solid Waste Incineration Units
Subpart EEEE—	Other Solid Waste Incineration Units for Which Construction is Commenced After December 9, 2004, or for Which Modification or Reconstruction is Commenced on or After June 16, 2006
Subpart IIII—	Stationary Compression Ignition Internal Combustion Engines
Subpart JJJJ—	Stationary Spark Ignition Internal Combustion Engines
Subpart KKKK—	Stationary Combustion Turbines
Subpart LLLL—	New Sewage Sludge Incineration Units
Subpart OOOO—	Crude Oil and Natural Gas Facilities for which Construction, Modification, or Reconstruction Commenced After August 23, 2011, and on or Before September 18, 2015
Subpart OOOOa—	Crude Oil and Natural Gas Facilities for which Construction, Modification or Reconstruction Commenced After September 18, 2015
Subpart QQQQ—	New Residential Hydronic Heaters and Forced-Air Furnaces
Subpart TTTT—	Greenhouse Gas Emissions for Electric Generating Units
Appendix A-1—	Test Methods 1 through 2F
Appendix A-2—	Test Methods 2G through 3C
Appendix A-3—	Test Methods 4 through 5I
Appendix A-4—	Test Methods 6 through 10B
Appendix A-5—	Test Methods 11 through 15A
Appendix A-6—	Test Methods 16 through 18
Appendix A-7—	Test Methods 19 through 25E
Appendix A-8—	Test Methods 26 through 30B
Appendix B—	Performance Specifications
Appendix C—	Determination of Emission Rate Change
Appendix D—	Required Emission Inventory Information
Appendix F—	Quality Assurance Procedures
Appendix I—	Owner's Manuals and Temporary Labels for Wood Heaters Subject to Subparts AAA and QQQQ of Part 60

Rule 15.2. Wherever the term "Administrator" is used in the new source performance standards, the term "Chattanooga-Hamilton County Air Pollution Control Board or Director of the Chattanooga-Hamilton County Air Pollution Control Bureau" shall be substituted, where appropriate, for the purposes of Rule 15.

Rule 15.3. Emissions Standards for Municipal Solid Waste Landfills.

(a) *Definitions.* All terms defined in this rule shall have the meaning given them herein, and all terms not defined herein shall have the meaning given them in Section 4-2.

(1) *Existing municipal solid waste (MSW) landfill or existing MSW landfill* means an entire disposal facility in a contiguous geographical space where household waste is placed in or on land for which construction, reconstruction or modification was commenced before the effective date of this ordinance. (It should be noted that federal regulations control for sources where construction, reconstruction or modification was commenced before the effective date of this ordinance.) An existing MSW landfill may also receive other types of wastes described in Subtitle D of the Resource Conservation and Recovery Act of 1976 (RCRA), as amended, (Title 42 U.S.C. § 6901 et seq.) such as commercial solid waste, nonhazardous sludge, conditionally exempt small quantity generator waste, and industrial solid waste. Portions of an existing MSW landfill may be separated by access roads. An existing MSW landfill may be publicly or privately owned. Physical or operational changes made to an existing MSW landfill solely to comply with these emission guidelines are not considered a modification or reconstruction and would not subject an existing MSW landfill to the requirements for a new MSW landfill. Activities required by or conducted pursuant to a remedial action pursuant to Title 42 U.S.C. § 9601 et seq. (CERCLA), Title 42 U.S.C. § 6901 et seq. (RCRA), or State remedial action are not considered construction, reconstruction, or modification for purposes of Rule 15.3. For purposes of obtaining an operating permit under Article III. of Chapter 4, Part 70 Source Regulation and Permits, the owner or operator of a MSW landfill subject to Rule 15.3 with a design capacity less than two million five hundred thousand (2,500,000) megagrams or two million five hundred thousand (2,500,000) cubic meters is not subject to the requirement to obtain an operating permit for the landfill under Article III unless the landfill is otherwise subject to Article III. For purposes of submitting a timely application for an operating permit under Article III. Part 70 Source Regulation and Permits, the owner or operator of a MSW landfill subject to Rule 15.3 with a design capacity greater than or equal to two million five hundred thousand (2,500,000) megagrams and two million five hundred thousand (2,500,000) cubic meters on the effective date of approval by U.S. EPA of Rule 15.3, and not otherwise subject to Article III, becomes subject to the requirements of Section 4-56(a)(i) or Title 40 CFR § 71.5(a)(1)(I) ninety (90) days after the effective date of such approval, even if the design capacity report is submitted earlier.

(2) *New municipal solid waste (MSW) landfill or new MSW landfill* means an entire disposal facility in a contiguous geographical space where household waste is placed in or on land for which construction, reconstruction or modification was commenced on or after the effective date of this ordinance. Physical or operational changes made to an existing MSW landfill solely to comply with the provisions of Rule 15.3 that apply to an existing MSW landfill are not considered a modification or reconstruction and would not subject an existing MSW landfill to the requirements in Rule 15.3 for a new MSW landfill. Activities required by or conducted pursuant to a remedial action pursuant to Title 42 U.S.C. § 9601 et seq. (CERCLA), Title 42 U.S.C. § 6901 et seq. (RCRA), or State remedial action are not considered construction, reconstruction, or modification for purposes of Rule 15.3. For purposes of obtaining an operating permit under Article III. Part 70 Source Regulation and Permits, the owner or operator of a MSW landfill subject to Rule 15.3 with a design capacity less than two million five hundred thousand (2,500,000) megagrams or two million five hundred thousand (2,500,000) cubic meters is not subject to the requirement to obtain an operating permit for the landfill under Article III., unless the landfill is otherwise subject to Article III. For purposes of submitting a timely application for an operating permit under

Article III. Part 70 Source Regulation and Permits, the owner or operator of a MSW landfill subject to Rule 15.3 with a design capacity greater than or equal to two and one-half (2.5) megagrams and two million five hundred thousand (2,500,000) cubic meters on the effective date of approval by U.S. EPA of Rule 15.3, and not otherwise subject to either Article III., becomes subject to the requirements of Section 4-56(a)(1)(i) ninety (90) days after the effective date of such approval, even if the design capacity report is submitted earlier.

(3) *Active Collection System* means a gas collection system that uses gas mover equipment.

(4) *Active Landfill* means a landfill in which solid waste is being placed or a landfill that is planned to accept waste in the future.

(5) *Closed Landfill* means a landfill in which solid waste is no longer being placed, and in which no additional solid wastes will be placed without first filing a notification of modification as prescribed under Title 40 CFR § 60.7(a)(4), which has been incorporated by reference in Chapter 4. Once a notification of modification has been filed, and additional solid waste is placed in the landfill, the landfill is no longer closed. When a MSW landfill subject to Rule 15.3 is closed, the owner or operator is no longer subject to the requirement of maintaining a Part 70 operating permit under Article III of this ordinance for the landfill if the landfill is not otherwise subject to the requirements of Article III and if either of the following conditions are met:

a. The landfill was never subject to the requirements for a control system under Rule 15.3(b)(2)b.3.; or

b. The owner or operator meets the conditions for control system removal specified in Rule 15.3(b)(2)b.5.

(6) *Closure* means that point in time when a landfill becomes a closed landfill.

(7) *Commercial Solid Waste* means all types of solid waste generated by stores, offices, restaurants, warehouses, and other nonmanufacturing activities, excluding residential and industrial wastes.

(8) *Controlled Landfill* means any landfill at which collection and control systems are required under Rule 15.3 as a result of the nonmethane organic compounds emission rate. The landfill is considered controlled at the time a collection and control system design plan is submitted in compliance with Rule 15.3(b)(2)b.

(9) *Design Capacity* means the maximum amount of solid waste a landfill can accept, as indicated in terms of volume or mass in the most recent construction or operating permit issued by the State or local agency responsible for regulating the landfill plus any in-place waste not accounted for in the most recent permit. If the owner or operator chooses to convert the design capacity from volume to mass or from mass to volume to demonstrate its design capacity is less than two million five hundred thousand (2,500,000) Mg. [megagrams] or two million five hundred thousand (2,500,000) cubic meters, the calculation must include a site specific density, which must be recalculated annually.

(10) *Disposal Facility* means all contiguous land and structures, other appurtenances, and improvements on the land used for the disposal of solid waste.

(11) *Emission Rate Cutoff* means the threshold annual emission rate to which a landfill compares its estimated emission rate to determine if control under the regulation is required.

(12) *Enclosed Combustor* means an enclosed firebox which maintains a relatively constant limited peak temperature generally using a limited supply of combustion air. An enclosed flare is considered an enclosed combustor.

(13) *Flare* means an open combustor without enclosure or shroud.

(14) *Gas Mover Equipment* means the equipment (i.e., fan, blower, compressor) used to transport landfill gas through the header system.

(15) *Household Waste* means any solid waste (including garbage, trash, and sanitary waste in septic tanks) derived from households (including, but not limited to, single and multiple residences, hotels and motels, bunkhouses, ranger stations, crew quarters, campgrounds, picnic grounds, and day-use recreation areas).

(16) *Reserved.*

(17) *Industrial Solid Waste* means solid waste generated by manufacturing or industrial processes that is not a hazardous waste regulated under Subtitle C of the Resource Conservation and Recovery Act, Title 40 CFR Part 264 and Part 265. Such waste may include, but is not limited to, waste resulting from the following manufacturing processes: electric power generation; fertilizer/agricultural chemicals; food and related products/by-products; inorganic chemicals; iron and steel manufacturing; leather and leather products; nonferrous metals manufacturing/foundries; organic chemicals; plastics and resins manufacturing; pulp and paper industry; rubber and miscellaneous plastic products; stone, glass, clay, and concrete products; textile manufacturing; transportation equipment; and water treatment. This term does not include mining waste or oil and gas waste.

(18) *Interior Well* means any well or similar collection component located inside the perimeter of the landfill waste. A perimeter well located outside the landfilled waste is not an interior well.

(19) *Landfill* means an area of land or an excavation in which wastes are placed for permanent disposal, and that is not a land application unit, surface impoundment, injection well, or waste pile as those terms are defined under Title 40 CFR § 257.2, which has been incorporated by reference in Chapter 4.

(20) *Lateral Expansion* means a horizontal expansion of the waste boundaries of an existing MSW landfill. A lateral expansion is not a modification unless it results in an increase in the design capacity of the landfill.

(21) *Modification* means an increase in the permitted volume design capacity of the landfill by either horizontal or vertical expansion.

(22) *Municipal Solid Waste (MSW) Landfill or MSW Landfill* means an entire disposal facility in a contiguous geographical space where household waste is placed in or on land. An MSW landfill may also receive other types of RCRA Subtitle D wastes (as defined in Title 40 CFR § 257.2, which has been incorporated by reference in Chapter 4) such as commercial solid waste, nonhazardous sludge, conditionally exempt small quantity generator waste, and industrial solid waste. Portions of an MSW landfill may be separated by access roads. An MSW landfill may be publicly or privately owned. An MSW landfill may be a new MSW landfill, an existing MSW landfill, or a lateral expansion.

(23) *Municipal Solid Waste Landfill Emissions or MSW Landfill Emissions* means gas generated by the decomposition of organic waste deposited in an MSW landfill or derived from the evolution of organic compounds in the waste.

(24) *NMOC* means nonmethane organic compounds, as measured according to the provisions of Rule 15.3(d).

(25) *Nondegradable Waste* means any waste that does not decompose through chemical breakdown or microbiological activity. Examples are, but are not limited to, concrete, municipal waste combustor ash, and metals.

(26) *Passive Collection System* means a gas collection system that solely uses positive pressure within the landfill to move the gas rather than using gas mover equipment.

(27) *Sludge* means any solid, semisolid, or liquid waste generated from a municipal, commercial, or industrial wastewater treatment plant, water supply treatment plant, or air pollution control facility, exclusive of the treated effluent from a wastewater treatment plant.

(28) *Solid waste* means any garbage, sludge from a wastewater treatment plant, water supply treatment plant, or air pollution control facility and other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from industrial, commercial, mining, and agricultural operations, and from community activities, but does not include solid or dissolved material in domestic sewage, or solid or dissolved materials in irrigation return flows or industrial discharges that are point sources subject to permits under Title 33 U.S.C. § 1342, or source, special nuclear, or by-product material as defined by the Atomic Energy Act of 1954, as amended (Title 42 U.S.C. § 2011 et seq.)

(29) *Sufficient density* means any number, spacing, and combination of collection system components, including vertical wells, horizontal collectors, and surface collectors, necessary to maintain emission and migration control as determined by measures of performance set forth in Rule 15.3.

(30) *Sufficient extraction rate* means a rate sufficient to maintain a negative pressure at all wellheads in the collection system without causing air infiltration, including any wellheads connected to the system as a result of expansion or excess surface emissions, for the life of the blower.

(b) *Emission Standards.*

(1) Each owner or operator of an existing MSW landfill or a new MSW landfill having a design capacity less than two million five hundred thousand (2,500,000) megagrams by mass or two million five hundred thousand (2,500,000) cubic meters by volume shall submit an initial design capacity report to the Director as provided in Rule 15.3(g)(1). The landfill may calculate design capacity in either megagrams or cubic meters for comparison with the exemption values. Any density conversions shall be documented and submitted with the report. Submittal of the initial design capacity report shall fulfill the requirements of Rule 15.3 except as provided for in Rule 15.3(b)(1) and (2).

a. The owner or operator shall submit to the Director an amended design capacity report, as provided for in Rule 15.3(g)(1)c.

b. When an increase in the maximum design capacity of a landfill exempted from the provisions of Rule 15.3(b)(2) through Rule 15.3(i) on the basis of the design capacity exemption in Rule 15.3(b)(1) results in a revised maximum design capacity equal to or greater than two million five hundred thousand (2,500,000) megagrams and two million five hundred thousand (2,500,000) cubic meters, the owner or operator shall comply with the provision of Rule 15.3(b)(2).

(2) Each owner or operator of an MSW landfill having a design capacity equal to or greater than two million five hundred thousand (2,500,000) megagrams and two million five hundred thousand (2,500,000) cubic meters, shall either comply with Rule 15.3(b)(2)b. or calculate an NMOC emission rate for the landfill using the procedures specified in Rule 15.3(d). The NMOC emission rate shall be recalculated annually, except as provided in Rule 15.3(g). The owner or operator of an MSW landfill subject to Rule 15.3 with a design capacity greater

than or equal to two million five hundred thousand (2,500,000) megagrams and two million five hundred thousand (2,500,000) cubic meters is subject to Article III. of Chapter 4 entitled Part 70 Source Regulation and Permits.

a. If the calculated NMOC emission rate is less than fifty (50) megagrams per year, the owner or operator shall:
   1. Submit an annual emission report to the Director, except as provided for in Rule 15.3(g)(2)a.2.; and
   2. Recalculate the NMOC emission rate annually using the procedures specified in Rule 15.3(d)(1)a. until such time as the calculated NMOC emission rate is equal to or greater than fifty (50) megagrams per year, or the landfill is closed.
      (i) If the NMOC emission rate, upon recalculation required in Rule 15.3(b)(2)a.2., is equal to or greater than fifty (50) megagrams per year, the owner or operator shall install a collection and control system in compliance with Rule 15.3(b(2)b.
      (ii) If the landfill is permanently closed, a closure notification shall be submitted to the Director and the Administrator as provided for in Rule 15.3(g)(4).

b. If the calculated NMOC emission rate is equal to or greater than fifty (50) megagrams per year, the owner or operator shall:
   1. Submit a collection and control system design plan prepared by a professional engineer to the Director within one (1) year after the submittal of an initial or annual NMOC report pursuant to Rule 15.3(g)(2) reporting this NMOC emission rate:
      (i) The collection and control system as described in the plan shall meet the design requirements of Rule 15.3(b)(2)b.2.
      (ii) The collection and control system design plan shall include any alternatives proposed by the owner or operator to the operational standards, test methods, procedures, compliance measures, monitoring, recordkeeping or reporting provisions of Rule 15.3(c) through (h).
      (iii) The collection and control system design plan shall either conform with specifications for active collection systems outlined in Rule 15.3(i) or include a demonstration to the Director's satisfaction of the sufficiency of the alternative provisions to Rule 15.3(i).
      (iv) The Director shall review the information submitted under Rule 15.3(b)(2)b.1.(i), (ii) and (iii) and either approve it, disapprove it, or request that additional information be submitted. Because of the many site-specific factors involved with landfill gas system design, alternative systems may be necessary. A wide variety of system designs are possible, such as vertical wells, combination horizontal and vertical collection systems, or horizontal trenches only, leachate collection components, and passive systems.
   2. Install a collection and control system that captures the gas generated within the landfill as required under Rule 15.3(b)(2)b.2.(i) or b.2.(ii) and (b)(2)b.3. within thirty (30) months after the first annual report in which the emission rate equals or exceeds fifty (50) megagrams per year, unless Tier 2 or Tier 3 sampling demonstrates that the emission rate is less than fifty (50) megagrams per year, as specified in Rule 15.3(g)(3)a. or b.
      (i) An active collection system shall:
         (A) Be designed to handle the maximum expected gas flow rate from the entire area of the landfill that warrants control over the intended use period of the gas control or treatment system equipment;

(B) Collect gas from each area, cell, or group of cells in the landfill in which the initial solid waste has been placed for a period of:

(aa) Five (5) years or more if active; or

(bb) Two (2) years or more if closed or at final grade;

(C) Collect gas at a sufficient extraction rate;

(D) Be designed to minimize off-site migration of subsurface gas.

(ii) A passive collection system shall:

(A) Comply with the provisions specified in Rule 15.3(b)(2)b.2.(i)(A), (B), and (D).

(B) Be installed with liners on the bottom and all sides in all areas in which gas is to be collected. The liners shall be installed as required under Title 40 CFR § 258.40, which has been incorporated by reference in Chapter 4.

3. Route all the collected gas to a control system that complies with the requirements in either Rule 15.3(b)(2)b.3.(i), (ii) or (iii).

(i) An open flare designed and operated in accordance with Title 40 CFR § 60.18, which has been incorporated by reference in Chapter 4;

(ii) A control system designed and operated to reduce NMOC by ninety-eight (98) weight percent, or, when an enclosed combustion device is used for control, to either reduce NMOC by ninety-eight (98) weight percent or reduce the outlet NMOC concentration to less than 20 parts per million by volume, dry basis as hexane at three (3) percent oxygen. The reduction efficiency or parts per million by volume shall be established by an initial performance test to be completed no later than one hundred eighty (180) days after the initial startup of this approved control system using the test methods specified in Rule 15.3(d)(4).

(A) If a boiler or process heater is used as the control device, the landfill gas stream shall be introduced into the flame zone.

(B) The control device shall be operated within the parameter ranges established during the initial or most recent performance test. The operating parameters to be monitored are specified in Rule 15.3(f).

(iii) Route the collected gas to a treatment system that processes the collected gas for subsequent sale or use. All emissions from any atmospheric vent from the gas treatment system shall be subject to the requirements of Rule 15.3(b)(2)b.3.(i) or (ii).

4. Operate the collection and control device installed to comply with Rule 15.3 in accordance with the provisions of Rule 15.3(c), (e) and (f).

5. The collection and control system may be capped or removed provided that all the conditions of Rule 15.3(b)(2)b.5.(i), (ii), and (iii) are met:

(i) The landfill shall be a closed landfill as defined in Rule 15.3(a)(5). A closure report shall be submitted to the Director and Administrator as provided in Rule 15.3(g)(4).

(ii) The collection and control system shall have been in operation a minimum of fifteen (15) years; and

(iii) Following the procedures specified in Rule 15.3(d)(2), the calculated NMOC gas produced by the landfill shall be less than fifty (50)

megagrams per year on three successive test dates. The test dates shall be no less than ninety (90) days apart, and no more than one hundred eighty (180) days apart.

(3) Control of emissions from an existing MSW landfill is required and compliance with permitting requirements for Part 70 sources, contained in Article III of Chapter 4 of the Chattanooga City Code, is required if the existing landfill meets the following three (3) conditions:

a. The landfill has accepted waste at any time since November 8, 1987, or had additional design capacity available for future waste deposition;

b. The landfill has a design capacity greater than or equal to two million five hundred thousand (2,500,000) megagrams and two million five hundred thousand (2,500,000) cubic meters. The landfill may calculate design capacity in either megagrams or cubic meters for comparison with the exemption values. Any density conversions shall be documented and submitted with the report; and

c. The landfill has a nonmethane organic compound emission rate of fifty (50) megagrams per year or more.

(4) For the purposes of obtaining an operating permit under Article III. of Chapter 4, Part 70 Source Regulation and Permits, the owner or operator of a MSW landfill subject to Rule 15.3 with a design capacity less than two million five hundred thousand (2,500,000) megagrams or two million five hundred thousand (2,500,000) cubic meters is not subject to the requirement to obtain an operating permit for the landfill under Article III, unless the landfill is otherwise subject to Article III. For purposes of submitting a timely application for an operating permit under Article III., the owner or operator of a MSW landfill subject to Rule 15.3 with a design capacity greater than or equal to two million five hundred thousand (2,500,000) megagrams and two million five hundred thousand (2,500,000) cubic meters, and not otherwise subject to Article III., becomes subject to the requirements of Section 4-56(a)(1), regardless of when the design capacity report is actually submitted, no later than:

a. Ninety (90) days after [the effective date of this ordinance] for MSW landfills that commenced construction, modification or reconstruction before [the effective date of this ordinance];

b. Ninety (90) days after the date of commenced construction, modification, or reconstruction for MSW landfills that commence construction, modification, or reconstruction on or after [the effective date of this ordinance].

(5) When a MSW landfill subject to Rule 15.3 is closed, the owner or operator is no longer subject to the requirement to maintain an operating permit under Article III. for the landfill if the landfill is not otherwise subject to the requirements of Article III. and if either of the following conditions are met:

a. The landfill was never subject to the requirement for a control system under Rule 15.3; or

b. The owner or operator meets the conditions for control system removal specified in Rule 15.3 (b)(2)b.5.

(c) *Operational Standards for Collection and Control Systems.* Each owner or operator of an MSW landfill gas collection system used to comply with the provisions of Rule 15.3(b)(2)b.2. shall:

(1) Operate the collection system such that gas is collected from each area, cell, or group of cells in the MSW landfill in which solid waste has been in place for:

a. Five (5) years or more if active; or

b. Two (2) years or more if closed or at final grade;

(2) Operate the collection system with negative pressure at each wellhead except under the following conditions:

a. A fire or increased well temperature. The owner or operator shall record instances when positive pressure occurs in efforts to avoid a fire. These records shall be submitted with the annual reports as provided in Rule 15.3(g)(6)a.;

b. Use of a geomembrane or synthetic cover. The owner or operator shall develop acceptable pressure limits in the design plan;

c. A decommissioned well. A well may experience a static positive pressure after shutdown to accommodate for declining flows. All design changes shall be approved by the Director.

(3) Operate each interior wellhead in the collection system with a landfill gas temperature less than Fifty-five degrees (55°) Celsius and with either a nitrogen level less than twenty percent (20%) or an oxygen level less than five percent (5%). The owner or operator may establish a higher operating temperature. nitrogen, or oxygen value at a particular well. A higher operating value demonstration shall show supporting data that the elevated parameter does not cause fires or significantly inhibit anaerobic decomposition by killing methanogens.

a. The nitrogen level shall be determined using Method 3C as described in Section 4-3(c) of Chapter 4, unless an alternative test method is established as allowed by Rule 15.3(b)(2)b.1.

b. Unless an alternative test method is established as allowed by Rule15.3(b)(2)b.1., the oxygen shall be determined by an oxygen meter using Method 3A as described in Section 4-3(c) of Chapter 4 except that:

1. The span shall be set so that the regulatory limit is between twenty percent (20%) and fifty percent (50%) of the span;

2. A data recorder is not required;

3. Only two (2) calibration gases are required, a zero and span, and ambient air may be used as the span;

4. A calibration error check is not required;

5. The allowable sample bias, zero drift, and calibration drift are ± ten percent (10%).

(4) Operate the collection system so that the methane concentration is less than five hundred (500) parts per million above background at the surface of the landfill. To determine if this level is exceeded, the owner or operator shall conduct surface testing around the perimeter of the collection area and along a pattern that traverses the landfill at thirty (30) meter intervals and where visual observations indicate elevated concentrations of landfill gas, such as distressed vegetation and cracks or seeps in the cover. The owner or operator may establish an alternative traversing pattern that ensures equivalent coverage. A surface monitoring design plan shall be developed that includes a topographical map with the monitoring route and the rationale for any site-specific deviations from the thirty (30) meter intervals. Areas with steep slopes or other dangerous areas may be excluded from the surface testing.

(5) Operate the system such that all collected gases are vented to a control system designed and operated in compliance with Rule 15.3(b)(2)b.3. In the event the collection or control

system is inoperable, the gas mover system shall be shut down and all valves in the collection and control system contributing to venting of the gas to the atmosphere shall be closed within one (1)hour.

(6) Operate the control or treatment system at all times when the collected gas is routed to the system.

(7) If monitoring demonstrates that the operational requirements in Rule 15.3(c)(2), (3) or (4) are not met, corrective action shall be taken as specified in Rule 15.3(e)(1)c., d. and e. or Rule 15.3(e)(3). If corrective actions are taken as specified in Rule 15.3(e), the monitored exceedance is not a violation of the operational requirements of Rule 15.3(c).

(d) *Test Methods and Procedures.*

(1) a. The landfill owner or operator shall calculate the NMOC emission rate using either the equation provided in Rule 15.3(d)(1)a.1. or the equation provided in Rule 15.3(d)(1)a.2. Both equations may be used if the actual year-to-year solid waste acceptance rate is known, as specified in Rule 15.3(d)(1)a.1., for part of the life of the landfill and the actual year-to-year solid waste acceptance rate is unknown, as specified in Rule 15.3(d)(1)a.2., for part of the life of the landfill. The values to be used in both equations are five-hundredths (0.05) per year for k, one hundred seventy (170) cubic meters per megagram for L_0, and four thousand (4,000) parts per million by volume as hexane for the C_{NMOC}. For landfills located in geographical areas with a thirty (30) year annual average precipitation of less than twenty-five (25) inches, as measured at the nearest representative official meteorologic site, the k value to be used is two-hundredths (0.02) per year.

1. The following equation shall be used if the actual year-to-year solid waste acceptance rate is known:

$$M_{NMOC} = \sum_{i=1}^{n} 2\,k\,L_0\,M_i\,(e^{-kt_i})\,(C_{NMOC})\,(3.6 \times 10^{-9})$$

where,

M_{NMOC}	=	Total NMOC emission rate from the landfill, megagrams per year
k	=	Methane generation rate constant, year $^{-1}$
L_0	=	Methane generation potential, cubic meters per megagram solid waste
M_i	=	Mass of solid waste in the i^{th} section, megagrams
t_i	=	Age of the i^{th} section, years
C_{NMOC}	=	Concentration of NMOC, parts per million by volume as hexane
3.6×10^{-9}	=	Conversion factor

The mass of nondegradable solid waste may be subtracted from the total mass of solid waste in a particular section of the landfill when calculating the value for M_i if the documentation of the nature and amount of such wastes is maintained.

2. The following equation shall be used if the actual year-to-year solid waste acceptance rate is unknown:

M_{NMOC}	=	$2L_0 R (e^{-ke} - e^{-kt}) (C_{NMOC}) (3.6 \times 10^{-9})$

where,

M_{NMOC}	=	Mass emission rate of NMOC, megagrams per year
L_0	=	Methane generation potential, cubic meters per megagram solid waste
R	=	Average annual acceptance rate, megagrams per year
k	=	Methane generation rate constant, year $^{-1}$
t	=	Age of landfill, years
C_{NMOC}	=	Concentration of NMOC, parts per million by volume as hexane
c	=	Time since closure, years. For active landfill c = 0 and $e^{-kc} = 1$
3.6×10^{-9}	=	Conversion factor

The mass of nondegradable solid waste may be subtracted from the total mass of solid waste in a particular section of the landfill when calculating a value for R, if documentation of the nature and amount of such wastes is maintained.

b. Tier 1. The owner or operator shall compare the calculated NMOC mass emission rate to the standard of fifty (50) megagrams per year.

1. If the NMOC emission rate calculated in Rule 15.3(d)(1)a. is less than fifty (50) megagrams per year, then the landfill owner shall submit an emission rate report as provided in Rule 15.3(g)(2)a. and shall recalculate the NMOC mass emission rate annually as required by Rule 15.3(b)(2)a.
2. If the calculated NMOC emission rate is equal to or greater than fifty (50) megagrams per year, then the landfill owner shall either comply with Rule 15.3(b)(2)b. or determine a site-specific NMOC concentration and recalculate the NMOC emission rate using the procedures provided in Rule 15.3(d)(1)c.

c. Tier 2. The landfill owner or operator shall determine the NMOC concentration using the following sampling procedure. The landfill owner or operator shall install at least two (2) sample probes per hectare of landfill surface that has retained waste for at least two (2) years. If the landfill is larger than twenty-five (25) hectares in area, only fifty (50) samples are required. The sample probes should be located to avoid known areas of nondegradable solid waste. The owner or operator shall collect and analyze one (1) sample of landfill gas from each probe to determine the NMOC concentration using Title 40 CFR Part 60, Appendix A, Method 25C or Method 18, which have been incorporated by reference in Chapter 4 and are described in Section 4-3(c). If using Method 18 of Appendix A, the minimum list of compounds to be tested shall be those published in the Fifth Edition January 1995 U.S. Environmental Protection Agency Compilation of Air Pollutant Emission Factors (AP-42). If composite sampling is used, equal volumes shall be taken from each sample probe. If more than the required number of samples are taken, all samples shall be used in the analysis. The landfill owner or operator shall divide the NMOC concentration from Method 25C of Appendix A of Title 40 CFR Part 60 by six (6) to convert from C_{NMOC} as carbon to C_{NMOC} as hexane.

1. The landfill owner or operator shall recalculate the NMOC mass emission rate using the equations provided in Rule 15.3(d)(1)a.1. or a.2. and using the average NMOC concentration from the collected samples instead of the default value in the equation provided in Rule 15.3(d)(1)a.

2. If the resulting mass emission rate calculated using the site-specific NMOC concentration is equal to or greater than fifty (50) megagrams per year, then the landfill owner or operator shall either comply with Rule 15.3(b)(2)b., or determine the site-specific methane generation rate constant and recalculate the NMOC emission rate using the site-specific methane generation rate using the procedure specified in Rule 15.3(d)(1)d.

3. If the resulting NMOC mass emission rate is less than fifty (50) megagrams per year, the owner or operator shall submit a periodic estimate of the emission rate report as provided in Rule 15.3(g)(2)a. and retest the site-specific NMOC concentration every five (5) years using the methods specified in Rule 15.3(d).

d. Tier 3. The site-specific methane generation rate constant shall be determined using the procedures provided in Method 2E of Appendix A of Title 40 CFR Part 60, which has been incorporated by reference in Chapter 4 and is described in Section 4-3(c). The landfill owner or operator shall estimate the NMOC mass emission rate using equations in Rule 15.3(d)(1)a.1. or a.2. and using a site-specific methane generation rate constant k, and the site-specific NMOC concentration as determined in Rule 15.3(d)(1)c. instead of the default values provided in Rule 15.3(d)(1)a. The landfill owner or operator shall compare the resulting NMOC mass emission rate to the standard of fifty (50) megagrams per year.

1. If the NMOC mass emission rate as calculated using the site-specific methane generation rate and concentration of NMOC is equal to or greater than fifty (50) megagrams per year, the owner or operator shall comply with Rule 15.3(b)(2)b.

2. If the NMOC mass emission rate is less than fifty (50) megagrams per year, then the owner or operator shall submit a periodic emission rate report as provided in Rule 15.3(g)(2) and shall recalculate the NMOC mass emission rate annually, as provided in Rule 15.3(g)(2) using the equations in Rule 15.3(d)1)a. and using the site-specific methane generation rate constant and NMOC concentration obtained in Rule 15.3(d)(1)c. The calculation of the methane generation rate constant is performed only once, and the value obtained from this test shall be used in all subsequent annual NMOC emission rate calculations.

e. The owner or operator may use other methods to determine the NMOC concentration or a site-specific k as an alternative to the methods required in Rule 15.3(d)(1)c. and d. if the method has been approved by the Administrator.

(2) After the installation of a collection and control system in compliance with Rule 15.3(e), the owner or operator shall calculate the NMOC emission rate for purposes of determining when the system can be removed as provided in Rule 15.3(b)(2)b.5. using the following equation:

$$M_{NMOC} = 1.89 \times 10^{-3} Q_{LFG} C_{NMOC}$$

where,

M_{NMOC} = mass emission rate of NMOC, megagrams per year

Q_{LFG} = flow rate of landfill gas, cubic meters per minute

C_{NMOC} = NMOC concentration, parts per million by volume as hexane

a. The flow rate of landfill gas, Q_{LFG}, shall be determined by measuring the total landfill gas flow rate at the common header pipe that leads to the control device using a gas

flow measuring device calibrated according to the provisions of Section 4 of Method 2E of Appendix A of Title 40 CFR Part 60, which has been incorporated by reference in Chapter 4 and is described in Section 4-3(c).

b. The average NMOC concentration, C_{NMOC}, shall be determined by collecting and analyzing landfill gas sampled from the common header pipe before the gas moving or condensate removal equipment using the procedures in Method 25C or Method 18 of Appendix A of Title 40 CFR Part 60, which have been incorporated by reference in Chapter 4 and are described at Section 4-3(c). If using Method 18, the minimum list of compounds to be tested shall be those published in the Fifth Edition January 1995 U.S. Environmental Protection Agency Compilation of Air Pollutant Emission Factors (AP-42). The sample location on the common header pipe shall be before any condensate removal or other gas refining units. The landfill owner or operator shall divide the NMOC concentration from Method 25C by six (6) to convert from C_{NMOC} as carbon to C_{NMOC} as hexane.

c. The owner or operator may use another method to determine landfill gas flow rate and NMOC concentration if the method has been approved by the Administrator.

(3) When calculating emissions for PSD purposes, the owner or operator of each MSW landfill subject to the provisions of Rule 15.3 shall estimate the NMOC emission rate for comparison to the PSD major source and significance levels in Section 4-41, Rule 18 using AP-42 or other measurement procedures approved in advance by the Director.

(4) For the performance test required in Rule 15.3(b)(2)b.3.(ii), Method 25C or Method 18 of Appendix A of Title 40 CFR Part 60, which have been incorporated by reference in Chapter 4 and are described at Section 4-3(c), shall be used to determine compliance with the ninety-eight (98) weight-percent efficiency or the twenty (20) ppmv outlet concentration level, unless another method to demonstrate compliance has been approved by the Administrator. If using Method 18 of Appendix A of Title 40 CFR Part 60, the minimum list of compounds to be tested shall be those published in the Fifth Edition January 1995 U.S. Environmental Protection Agency Compilation of Air Pollutant Emission Factors (AP-42). The following equation shall be used to calculate efficiency:

Control Efficiency	=	$(NMOC_{in} - NMOC_{out})/(NMOC_{in})$
where,		
$NMOC_{in}$	=	Mass of NMOC entering control device
$NMOC_{out}$	=	Mass of NMOC exiting control device

(e) *Compliance Provisions.*

(1) Except as provided in Rule 15.3(b)(2)b.1.(ii), the specified methods in Rule 15.3(e)(1)a. through f. shall be used to determine whether the gas collection system is in compliance with Rule 15.3(b)(2)b.2.

a. For the purposes of calculating the maximum expected gas generation flow rate from the landfill to determine compliance with Rule 15.3(b)(2)b.2.(i)(A), one (1) of the following equations shall be used. The k and L_0 kinetic factors should be those published in the Fifth Edition January, 1995 U.S. Environmental Protection Agency Compilation of Air Pollutant Emission Factors (AP-42) or other site- specific values demonstrated to be appropriate and approved by the Director. If k has been determined as specified in Rule 15.3(d)(1)d., the value of k determined from the test

shall be used. A value of no more than fifteen (15) years shall be used for the intended use period of the gas mover equipment. The active life of the landfill is the age of the landfill plus the estimated number of years until closure.

1. For sites with unknown year-to-year solid waste acceptance rate:

$Q_M = 2L_0 R (e^{-kc} - e^{-kt})$

where,

Q_M	=	Maximum expected gas generation flow rate, cubic meters per year
L_0	=	Methane generation potential, cubic meters per megagram solid waste
R	=	Average annual acceptance rate, megagrams per year
k	=	Methane generation rate constant, $year^{-1}$
t	=	Age of the landfill at equipment installation plus the time the owner or operator intends to use the gas mover equipment or active life of the landfill, whichever is less. If the equipment is installed after closure, t is the age of the landfill at installation, years
c	=	Time since closure, years (for an active landfill c = 0 and $e^{-kc} = 1$)

2. For sites with known year-to-year solid waste acceptance rate:

$$Q_M = \sum_{i=1}^{n} 2 k L_0 M_i (e^{-kt}i)$$

where,

Q_M	=	Maximum expected gas generation flow rate, cubic meters per year
k	=	Methane generation rate constant, $year^{-1}$
L_0	=	Methane generation potential, cubic meters per megagram solid waste
M_i	=	Mass of solid waste in the i^{th} section, megagrams
t_i	=	Age of the i^{th} section, years

3. If a collection and control system has been installed, actual flow data may be used to project the maximum expected gas generation flow rate instead of, or in conjunction with, the equations in Rule 15.3(e)(1)a.1. and a.2. If the landfill is still accepting waste, the actual measured flow data will not equal the maximum expected gas generation rate, so calculations using the equations in Rule 15.3(e)(1)a.1. and a.2. or other methods shall be used to predict the maximum expected gas generation rate over the intended period of use of the gas control system equipment.

b. For the purposes of determining sufficient density of gas collectors for compliance with Rule 15.3(b)(2)b.2.(i)(B), the owner or operator shall design a system of vertical wells, horizontal collectors, or other collection devices, satisfactory to the Director, capable of controlling and extracting gas from all portions of the landfill sufficient to meet all operational and performance standards.

c. For the purpose of demonstrating whether the gas collection system flow rate is sufficient to determine compliance with Rule 15.3(b)(2)b.2.(i)(C), the owner or operator shall measure gauge pressure in the gas collection header at each individual well monthly. If a positive pressure exists, action shall be initiated to correct the exceedance within five (5) calendar days, except for the three (3) conditions allowed under Rule 15.3(c)(2). If negative pressure cannot be achieved without excess air infiltration within fifteen (15) calendar days of the first measurement, the gas collection system shall be expanded to correct the exceedance within one hundred twenty (120) days of the initial measurement of positive pressure. Any attempted corrective measure shall not cause exceedances of other operational or performance standards. An alternative timeline for correcting the exceedance may be submitted to the Director for approval.

d. Owners or operators are not required to expand the system as required in Rule 15.3(e)(1)c. during the first one hundred eighty (180) days after gas collection system start-up.

e. For the purpose of identifying whether excess air infiltration into the landfill is occurring, the owner or operator shall monitor each well monthly for temperature and nitrogen or oxygen as provided in Rule 15.3(c)(3). If a well exceeds one (1) of these operating parameters, action shall be initiated to correct the exceedance within five (5) calendar days. If correction of the exceedance cannot be achieved within fifteen (15) calendar days of the first measurement, the gas collection system shall be expanded to correct the exceedance within one hundred twenty (120) days of the initial exceedance. Any attempted corrective measure shall not cause exceedances of other operational or performance standards. An alternative timeline for correcting the exceedance may be submitted to the Director for approval.

f. An owner or operator seeking to demonstrate compliance with Rule 15.3 (b)(2)b.2.(i)(D) through the use of a collection system not conforming to the specifications provided in Rule 15.3(i) shall provide information satisfactory to the Director as specified in Rule 15.3(b)(2)b.1.(iii) demonstrating that offsite migration is being controlled.

(2) For purposes of compliance with Rule 15.3(c)(1), each owner or operator of a controlled landfill shall place each well or design component as specified in the approved design plan as provided in Rule 15.3(b)(2)b.1. Each well shall be installed no later than sixty (60) days after the date on which the initial solid waste has been in place for a period of:

a. 5 years or more if active; or

b. 2 years or more if closed or at final grade.

(3) The following procedures shall be used for compliance with the surface methane operational standard as provided in Rule 15.3(c)(4).

a. After installation of the collection system, the owner or operator shall monitor surface concentrations of methane along the entire perimeter of the collection area and along a pattern that traverses the landfill at thirty (30) meter intervals (or a site-specific established spacing) for each collection area on a quarterly basis using an organic vapor analyzer, flame ionization detector, or other portable monitor meeting the specifications provided in Rule 15.3(e)(4).

b. The background concentration shall be determined by moving the probe inlet upwind and downwind outside the boundary of the landfill at a distance of at least thirty (30) meters from the perimeter wells.

c. Surface emission monitoring shall be performed in accordance with Section 4.3.1 of Method 21 of Appendix A of Title 40 CFR Part 60, which has been incorporated by reference in Chapter 4 and is described in Section 4-3(c) except that the probe inlet shall be placed within five (5) to ten (10) centimeters of the ground. Monitoring shall be performed during typical meteorological conditions.

d. Any reading of five hundred (500) parts per million or more above background at any location shall be recorded as a monitored exceedance and the actions specified in Rule 15.3(e)(3)d.1. through 5. shall be taken. As long as the specified actions are taken, the exceedance is not a violation of the operational requirements of Rule 15.3(c)(4).

1. The location of each monitored exceedance shall be marked and the location recorded.

2. Cover maintenance or adjustments to the vacuum of the adjacent wells to increase the gas collection in the vicinity of each exceedance shall be made and the location shall be re-monitored within ten (10) calendar days of detecting the exceedance.

3. If the re-monitoring of the location shows a second exceedance, additional corrective action shall be taken and the location shall be monitored again within ten (10) days of the second exceedance. If the re-monitoring shows a third exceedance for the same location, the action specified in Rule 15.3(e)(3)d.5. shall be taken, and no further monitoring of that location is required until the action specified in Rule 15.3(e)(3)d.5. has been taken.

4. Any location that initially showed an exceedance but has a methane concentration less than five hundred (500) ppm methane above background at the ten (10) day re-monitoring specified in Rule 15.3(e)(3)d.2. or d.3. shall be re-monitored one (1) month from the initial exceedance. If the l-month re-monitoring shows a concentration less than five hundred (500) parts per million above background, no further monitoring of that location is required until the next quarterly monitoring period. If the l-month re-monitoring shows an exceedance, the actions specified in Rule 15.3(e)(3)d.3. or d.5. shall be taken.

5. For any location where monitored methane concentration equals or exceeds five hundred (500) parts per million above background three times within a quarterly period, a new well or other collection device shall be installed within one hundred twenty (120) calendar days of the initial exceedance. An alternative remedy to the exceedance, such as upgrading the blower, header pipes or control device, and a corresponding timeline for installation may be submitted to the Director for approval.

e. The owner or operator shall implement a program to monitor for cover integrity and implement cover repairs as necessary on a monthly basis.

(4) Each owner or operator seeking to comply with the provisions in Rule 15.3(e)(3) shall comply with the following instrumentation specifications and procedures for surface emission monitoring devices:

a. The portable analyzer shall meet the instrument specifications provided in Section 3 of Method 21 of Appendix A of Title 40 CFR Part 60, which has been incorporated by reference in Chapter 4 and is described at Section 4-3(c)(3), except that "methane" shall replace all references to VOC.

b. The calibration gas shall be methane, diluted to a nominal concentration of five hundred (500) parts per million in air.

c. To meet the performance evaluation requirements in Section 3.1.3 of Method 21 of Appendix A of Title 40 CFR Part 60, the instrument evaluation procedures of Section 4.4 of Method 21 of Appendix A shall be used.

d. The calibration procedures provided in Section 4.2 of Method 21 of Appendix A of Title 40 CFR Part 60 shall be followed immediately before commencing a surface monitoring survey.

(5) The provisions of Rule 15.3 apply at all times, except during periods of start-up, shutdown or malfunction, provided that the duration of start-up, shutdown or malfunction shall not exceed five (5) days for collection systems and shall not exceed one (1) hour for treatment or control devices. A log of all start-ups, shutdown and malfunctions must be maintained on site.

(f) *Monitoring of Operations.* Except as provided in Rule 15.3(b)(2)b.1.(ii):

(1) Each owner or operator seeking to comply with Rule 15.3(b)(2)b.2.(i)(A) for an active gas collection system shall install a sampling port and a thermometer, other temperature measuring device, or an access port for temperature measurements at each wellhead and:

a. Measure the gauge pressure in the gas collection header on a monthly basis as provided in Rule 15.3(e)(1)c.; and

b. Monitor nitrogen or oxygen concentration in the landfill gas on a monthly basis as provided in Rule 15.3(e)(1)e.; and

c. Monitor temperature of the landfill gas on a monthly basis as provided in Rule 15.3(e)(1)e.

(2) Each owner or operator seeking to comply with Rule 15.3(b)(2)b.3. by using an enclosed combustor shall calibrate, maintain, and operate according to the manufacturer's specifications, the following equipment:

a. A temperature monitoring device equipped with a continuous recorder and having a minimum accuracy of ± one percent (1%) of the temperature being measured expressed in degrees Celsius or ± one-half-degrees (0.5°) Celsius, whichever is greater. A temperature monitoring device is not required for boilers or process heaters with design heat input capacity greater than forty-four (44) megawatts.

b. A device that records flow to or bypass of the control device. The owner or operator shall either:

1. Install, calibrate, and maintain a gas flow rate measuring device that shall record the flow to the control device at least every fifteen (15) minutes; or

2. Secure the bypass line valve in the closed position with a car-seal or a lock-and-key type configuration. A visual inspection of the seal or closure mechanism shall be performed at least once every month to ensure that the valve is maintained in the closed position and that the gas flow is not diverted through the bypass line.

(3) Each owner or operator seeking to comply with Rule 15.3(b)(2)b.3. by using an open flare shall install, calibrate, maintain, and operate according to the manufacturer's specifications the following equipment:

a. A heat sensing device, such as an ultraviolet beam sensor or thermocouple, at the pilot light or the flame itself to indicate the continuous presence of a flame.

b. A device that records flow to or bypass of the flare. The owner or operator shall either:

1. Install, calibrate, and maintain a gas flow rate measuring device that shall record the flow to the control device at least fifteen (15) minutes; or

2. Secure the bypass line valve in the closed position with a car-seal or a lock-and-key type configuration. A visual inspection of the seal or closure mechanism shall be performed at least once every month to ensure that the valve is maintained in the closed position and that the gas flow is not diverted through the bypass line.

(4) Each owner or operator seeking to demonstrate compliance with Rule 15.3(b)(2)b.3. by using a device other than an open flare or an enclosed combustor shall provide information satisfactory to the Director as provided in Rule 15.3(b)(2)b.1.(ii) describing the operation of the control device, the operating parameters that would indicate proper performance, and appropriate monitoring procedures. The Director shall review the information and either approve it, or request that additional information be submitted. The Director may specify additional appropriate monitoring procedures.

(5) Each owner or operator seeking to install a collection system that does not meet the specifications in Rule 15.3(i) or seeking to monitor alternative parameters to those required by Rule 15.3(c) through (f) shall provide information satisfactory to the Director as provided in Rule 15.3(b)(2)b.1.(ii) and (iii) describing the design and operation of the collection system, the operating parameters that would indicate proper performance, and appropriate monitoring procedures. The Director may specify additional appropriate monitoring procedures.

(6) Each owner or operator seeking to demonstrate compliance with Rule 15.3(e)(3) shall monitor surface concentrations of methane according to the instrument specifications and procedures provided in Rule 15.3(e)(4). Any closed landfill that has no monitored exceedances of the operational standard in three (3) consecutive quarterly monitoring periods may skip to annual monitoring. Any methane reading of five hundred (500) ppm or more above background detected during the annual monitoring returns the frequency for that landfill to quarterly monitoring.

(g) *Reporting Requirements.* Except as provided in Rule 15.3(b)(2)b.1.(ii):

(1) Each owner or operator subject to the requirements of Rule 15.3 shall submit an initial design capacity report to the Director.

a. The initial design capacity report shall fulfill the requirements of the notification of the date construction is commenced as required under Title 40 CFR § 60.7(a)(1), which has been incorporated by reference in Chapter 4, and shall be submitted no later than ninety (90) days after [the effective date of Rule 15.3] by each existing MSW landfill. The initial design capacity report for a new MSW landfill shall be submitted no later than ninety (90) days after the date of commencement of construction, reconstruction, or modification as defined in Rule 15.3(a)(21), for landfills that commence construction, modification, or reconstruction on or after [the effective date of this ordinance].

b. The initial design capacity report shall contain the following information:

1. A map or plot of the landfill, providing the size and location of the landfill, and identifying all areas where solid waste may be landfilled according to the permit issued by the State or local agency responsible for regulating the landfill;

2. The maximum design capacity of the landfill. Where the maximum design capacity is specified in the permit issued by the State or local, agency responsible for regulating the landfill, a copy of the permit specifying the maximum design capacity may be submitted as part of the report. If the maximum design capacity of the landfill is not specified in the permit, the

maximum design capacity shall be calculated using good engineering practices. The calculations shall be provided, along with the relevant parameters as part of the report. The Director may request other reasonable information as may be necessary to verify the maximum design capacity of the landfill.

c. An amended design capacity report shall be submitted to the Director providing notification of an increase in the design capacity of the landfill, within ninety (90) days of an increase in the maximum design capacity of the landfill to or above two million five hundred thousand (2,500,000) megagrams and two million five hundred thousand (2,500,000) cubic meters. This increase in design capacity may result from an increase in the permitted volume of the landfill or an increase in the density as documented in the annual recalculation required in Rule 15.3(h)(6).

(2) Each owner or operator subject to the requirements of Rule 15.3 shall submit an NMOC emission rate report to the Director initially and annually thereafter, except as provided for in Rule 15.3(g)(2)a.2. or c. The Director may request such additional information as may be necessary to verify the reported NMOC emission rate.

a. The NMOC emission rate report shall contain an annual or five (5) year estimate of the NMOC mission rate calculated using the formula and procedures provided in Rule 15.3(d)(1) or (2) as applicable.

1. The initial NMOC emission rate report shall be submitted within ninety (90) days after [the effective date of Rule 15.3] by each existing MSW landfill, and within ninety (90) days after the commencement of construction, modification, or reconstruction by each new MSW landfill maybe combined with the initial design capacity report required in Rule 15.3(g)(1) and shall be submitted no later than indicated in Rule 15.3(g)(2)a.1. Subsequent NMOC emission rate reports shall be submitted annually thereafter, except as provided for in Rule 15.3(g)(2)a.2. and Rule 15.3(g)(2)c.

2. If the estimated NMOC emission rate as reported in the annual report to the Director is less than fifty (50) megagrams per year in each of the next five (5) consecutive years, the owner or operator may elect to submit an estimate of the NMOC emission rate for the next five (5) year period in lieu of the annual report. This estimate shall include the current amount of solid waste-in-place and the estimated waste acceptance rate for each year of the five (5) years for which an NMOC emission rate is estimated. All data and calculations upon which this estimate is based shall be provided to the Director. This estimate shall be revised at least once every five (5) years. If the actual waste acceptance rate exceeds the estimated waste acceptance rate in any year reported in the five (5) year estimate, a revised five (5) year estimate shall be submitted to the Director. The revised estimate shall cover the five (5) year period beginning with the year in which the actual waste acceptance rate exceeded the estimated waste acceptance rate.

b. The NMOC emission rate report shall include all the data, calculations, sample reports and measurements used to estimate the annual or five (5) year emissions.

c. Each owner or operator subject to the requirements of Rule 15.3 is exempted from the requirements of Rule 15.3(g)(2)a. and b., after the installation of a collection and control system in compliance with Rule 15.3(b)(2)b., during such time as the collection and control system is in operation and in compliance with Rule 15.3(c) and (e).

(3) Each owner or operator subject to the provisions of Rule 15.3(b)(2)b.1. shall submit a collection and control system design plan to the Director within one (1) year of the first report, required under Rule 15.3(g)(2), in which the emission rate equals or exceeds fifty (50) megagrams per year, except as follows:

a. If the owner or operator elects to recalculate the NMOC emission rate after Tier 2 NMOC sampling and analysis as provided in Rule 15.3(d)(1)c. and the resulting rate is less than fifty (50) megagrams per year, annual periodic reporting shall be resumed, using the Tier 2 determined site-specific NMOC concentration, until the calculated emission rate is equal to or greater than fifty (50) megagrams per year or the landfill is closed. The revised NMOC emission rate report, with the recalculated emission rate based on NMOC sampling and analysis, shall be submitted within one hundred eighty (180) days of the first calculated exceedance of fifty (50) megagrams per year.

b. If the owner or operator elects to recalculate the NMOC emission rate after determining a site-specific methane generation rate constant (k) as provided in Tier 3 in Rule 15.3(d)(1)d., and the resulting NMOC emission rate is less than fifty (50) megagrams per year, annual periodic reporting shall be resumed. The resulting site-specific methane generation rate constant (k) shall be used in the emission rate calculation until such time as the emissions rate calculation results in an exceedance. The revised NMOC emission rate report based on the provisions of Rule 15.3(d)(1)d. and the resulting site-specific methane generation rate constant (k) shall be submitted to the Director within one (1) year of the first calculated emission rate exceeding fifty (50) megagrams per year.

(4) Each owner or operator of a controlled landfill shall submit a closure report to the Director and the Administrator within thirty (30) days of waste acceptance cessation. The Director or the Administrator may request additional information as may be necessary to verify that permanent closure has taken place in accordance with the requirements of Title 40 CFR § 258.60, which has been incorporated by reference in Chapter 4. If a closure report has been submitted to the Director and the Administrator, no additional wastes may be placed in the landfill without filing a notification of modification as described under Title 40 CFR § 60.7 (a)(4), which has been incorporated by reference in Chapter 4.

(5) Each owner or operator of a controlled landfill shall submit an equipment removal report to the Director thirty (30) days prior to removal or cessation of operation of the control equipment.

a. The equipment removal report shall contain all of the following items:

1. A copy of the closure report submitted in accordance with Rule 15.3(g)(4);

2. A copy of the initial performance test report demonstrating that the fifteen (15) year minimum control period has expired; and

3. Dated copies of three (3) successive NMOC emission rate reports demonstrating that the landfill is no longer producing fifty (50) megagrams or greater of NMOC per year.

b. The Director may request such additional information as may be necessary to verify that all of the conditions for removal in Rule 15.3(b)(2)b.5. have been met.

(6) Each owner or operator of a landfill seeking to comply with Rule 15.3(b)(2)b. using an active collection system designed in accordance with Rule 15.3(b)(2)b.2. shall submit to the Director annual reports of the recorded information required by Rule 15.3(g)(6)a. through f. The initial annual report shall be submitted within one hundred eighty (180) days of installation and start-up of the collection and control system or within one hundred eighty

(180) days of the date of adoption of Rule 15.3 for existing collection systems, and shall include the initial performance test report required under Title 40 CFR § 60.8, which has been incorporated by reference in Chapter 4. For enclosed combustion devices and flares, reportable exceedances are defined under Rule 15.3(h)(3).

a. Value and length of time for exceedance of applicable parameters monitored under Rule 15.3(f)(1), (2), (3), and (4).

b. Description and duration of all periods when the gas stream is diverted from the control device through a bypass line or the indication of bypass flow as specified under Rule 15.3(f).

c. Description and duration of all periods when the control device was not operating for a period exceeding one (1) hour and length of time the control device was not operating.

d. All periods when the collection system was not operating in excess of five (5) days.

e. The location of each exceedance of the five hundred (500) parts per million methane concentration as provided in Rule 15.3(c)(4) and the concentration recorded at each location for which an exceedance was recorded in the previous month.

f. The date of installation and the location of each well or collection system expansion added pursuant to Rule 15.3(e)(1)c., (e)(2), and (e)(3)d.

(7) Each owner or operator seeking to comply with Rule 15.3(b)(2)b.3. shall include the following information with the initial performance test report required under Title 40 CFR § 60.8, which has been incorporated by reference in Chapter 4:

a. A diagram of the collection system showing collection system positioning including all wells, horizontal collectors, surface collectors, or other gas extraction devices, including the locations of any areas excluded from collection and the proposed sites for the future collection system expansion;

b. The data upon which the sufficient density of wells, horizontal collectors, surface collectors, or other gas extraction devices and the gas mover equipment sizing are based;

c. The documentation of the presence of asbestos or nondegradable material for each area from which collection wells have been excluded based on the presence of asbestos or nondegradable material;

d. The sum of the gas generation flow rates for all areas from which collection wells have been excluded based on nonproductivity and the calculations of gas generation flow rate for each excluded area;

e. The provisions for increasing gas mover equipment capacity with increased gas generation flow rate, if the present gas mover equipment is inadequate to move the maximum flow rate expected over the life of the landfill; and

f. The provisions for the control of off-site migration.

(h) *Recordkeeping Requirements.*

(1) Except as provided in Rule 15.3(b)(2)b.1., each owner or operator of an MSW landfill subject to the provisions of Rule 15.3(b)(2) shall keep for at least five (5) years up-to-date, readily accessible, on-site records of the design capacity report which triggered Rule 15.3(b)(2), the current amount of solid waste in-place, and the year-by-year waste acceptance rate. Off-site records may be maintained if they are retrievable within four (4) hours. Either paper copy or electronic formats are acceptable.

(2) Except as provided in Rule 15.3(b)(2)b.1.(ii), each owner or operator of a controlled landfill shall keep up-to-date, readily accessible records for the life of the control equipment of the data listed in Rule 15.3(h)(2)a. through d. as measured during the initial performance test or compliance determination. Records of subsequent tests or monitoring shall be maintained for a minimum of five (5) years. Records of the control device vendor specifications shall be maintained until removal.

a. Where an owner or operator subject to the provisions of Rule 15.3 seeks to demonstrate compliance with Rule 15.3(b)(2)b.2.:

1. The maximum expected gas generation flow rate as calculated in Rule 15.3(e)(1)a. The owner or operator may use another method to determine the maximum gas generation flow rate, if the method has been approved by the Director.

2. The density of wells, horizontal collectors, surface collectors, or other gas extraction devices determined using the procedures specified in Rule 15.3(i)(1)a.

b. Where an owner or operator subject to the provisions of Rule 15.3 seeks to demonstrate compliance with Rule 15.3(b)(2)b.3. through use of an enclosed combustion device other than a boiler or process heater with a design heat input capacity greater than forty-four (44) megawatts:

1. The average combustion temperature measured at least every fifteen (15) minutes and averaged over the same time period of the performance test.

2. The percent reduction of NMOC determined as specified in Rule 15.3(b)(2)b.3. achieved by the control device.

c. Where an owner or operator subject to the provisions of Rule 15.3 seeks to demonstrate compliance with Rule 15.3(b)(2)b.3.(ii)(A) through use of a boiler or process heater of any size: a description of the location at which the collected gas vent stream is introduced into the boiler or process heater over the same time period of the performance testing.

d. Where an owner or operator subject to the provisions of Rule 15.3 seeks to demonstrate compliance with Rule 15.3(b)(2)b.3.(ii)(A) through use of an open flare: the flare type (i.e., steam-assisted, air-assisted, or nonassisted), all visible emission readings, heat content determination, flow rate or bypass flow rate measurements, and exit velocity determinations made during the performance test as specified in Title 40 CFR § 60.18, which has been incorporated by reference in Chapter 4, continuous records of the flare pilot flame or flare flame monitoring, and records of all periods of operations during which the pilot flame of the flare flame is absent.

(3) Except as provided in Rule 15.3(b)(2)b.1.(ii), each owner or operator of a controlled landfill subject to the provisions of Rule 15.3 shall keep for five (5) years up-to-date, readily accessible continuous records of the equipment operating parameters specified to be monitored in Rule 15.3(f) as well as up-to-date, readily accessible records for periods of operation during which the parameter boundaries established during the most recent performance test are exceeded.

a. The following constitute exceedances that shall be recorded and reported under Rule 15.3(g)(6):

1. For enclosed combustors except for boilers and process heaters with design heat input capacity of forty-four (44) megawatts (150 million British thermal unit per hour) or greater, all three (3) hour periods of operation during which the average

combustion temperature was more than twenty-eight degrees (28°) Celsius below the average combustion temperature during the most recent performance test at which compliance with Rule 15.3(b)(2)b.3. was determined.

2. For boilers or process heaters, whenever there is a change in the location at which the vent stream is introduced into the flame zone as required under Rule 15.3(b)(2)b.3.(ii)(A).

b. Each owner or operator subject to the provisions of Rule 15.3 shall keep up-to date, readily accessible continuous records of the indication of flow to the control device or the indication of bypass flow or records of monthly inspections of car-seals or lock-and-key configurations used to seal bypass lines, specified under Rule 15.3(f).

c. Each owner or operator subject to the provisions of Rule 15.3 who uses a boiler or process heater with a design heat input capacity of forty-four (44) megawatts or greater to comply with Rule 15.3(b)(2)b.3. shall keep an up-to-date, readily accessible record of all periods of operation of the boiler or process heater. (Examples of such records could include records of steam use, fuel use, or monitoring data collected pursuant to other State, local, or Federal regulatory requirements.)

d. Each owner or operator seeking to comply with the provisions of Rule 15.3 by use of an open flare shall keep up-to-date, readily accessible continuous records of the flame or flare pilot flame monitoring specified under Rule 15.3(f), and up-to-date, readily accessible records of all periods of operation in which the flame or flare pilot flame is absent.

(4) Except as provided in Rule 15.3(b)(2)b.1.(ii), each owner or operator subject to the provisions of Rule 15.3 shall keep for the life of the collection system an up-to-date, readily accessible plot map showing each existing and planned collector in the system and providing a unique identification location label for each collector.

a. Each owner or operator subject to the provisions of Rule 15.3 shall keep up-to-date, readily accessible records of the installation date and location of all newly installed collectors as specified under Rule 15.3(e)(2).

b. Each owner or operator subject to the provisions of Rule 15.3 shall keep readily accessible documentation of the nature, date of deposition, amount, and location of asbestos-containing or nondegradable waste excluded from collection as provided in Rule 15.3(i)(1)c.1. as well as any nonproductive areas excluded from collection as provided in Rule 15.3(i)(1)c.2.

(5) Except as provided in Rule 15.3(b)(2)b.1.(ii), each owner or operator subject to the provisions of Rule 15.3 shall keep for at least five (5) years up-to-date, readily accessible records of all collection and control system exceedances of the operational standards outlined in Rule 15.3(c), the reading in the subsequent month whether or not the second reading is an exceedance, and the location of each exceedance.

(6) Landfill owners or operators who convert design capacity from volume to mass or mass to volume to demonstrate that landfill design capacity is less than two million five hundred thousand (2,500,000) megagrams or two million five hundred thousand (2,500,000) cubic meters, as provided in the definition of "design capacity" in Rule 15.3(a), shall keep readily accessible, on-site records of the annual recalculation of site-specific density, design capacity, and the supporting documentation. Off-site records may be maintained if they are retrievable within four (4) hours. Either paper copy or electronic formats are acceptable.

(i) *Specifications for Active Collection Systems.*

(1) Each owner or operator seeking to comply with Rule 15.3(b)(2)b.1. shall site active collection wells, horizontal collectors, surface collectors, or other extraction devices at a sufficient density throughout all gas producing areas using the following procedures unless alternative procedures have been approved by the Director as provided in Rule 15.3(b)(2)b.1.(iii) and (iv):

a. The collection devices within the interior and along the perimeter areas shall be certified to achieve comprehensive control of surface gas emissions by a professional engineer. The following issues shall be addressed in the design: depths of refuse, refuse gas generation rates and flow characteristics, cover properties, gas system expandability, leachate and condensate management, accessibility, compatibility with filling operations, integration with closure end use, air intrusion control, corrosion resistance, fill settlement, and resistance to the refuse decomposition heat.

b. The sufficient density of gas collection devices determined in Rule 15.3(i)(1)a. shall address landfill gas migration issues and augmentation of the collection system through the use of active or passive systems at the landfill perimeter or exterior.

c. The placement of gas collection devices determined in Rule 15.3(i)(1)a. shall control all gas producing areas, except as provided by Rule 15.3(i)(1)c.1. and c.2.

1. Any segregated area of asbestos or nondegradable material may be excluded from collection if documented as provided under Rule 15.3(h)(4). The documentation shall provide the nature, date of deposition, location and amount of asbestos or nondegradable material deposited in the area, and shall be provided to the Director upon request.

2. Any nonproductive area of the landfill may be excluded from control, provided that the total of all excluded areas can be shown to contribute less than one percent (1%) of the total amount of NMOC emissions from the landfill. The amount, location, and age of the material shall be documented and provided to the Director upon request. A separate NMOC emissions estimate shall be made for each section proposed for exclusion, and the sum of all such sections shall be compared to the NMOC emissions estimate for the entire landfill. Emissions from each section shall be computed using the following equation:

$$Q_i = 2\,k\,L_0\,M_i\,(e^{-kti})\,(C_{NMOC})\,(3.6 \times 10^{-9})$$

where,

Q_i	=	NMOC emission rate from the i^{th} section, megagrams per year
k	=	Methane generation rate constant, $year^{-1}$
L_0	=	Methane generation potential, cubic meters per megagram solid waste
M_i	=	Mass of the degradable solid waste in the i^{th} section, megagrams
t_i	=	Age of the solid waste in the i^{th} section, years
C_{NMOC}	=	Concentration of nonmethane organic compounds, parts per million by volume
3.6×10^{-9}	=	Conversion factor

3. The values for k and C_{NMOC} determined in field testing shall be used, if field testing has been performed in determining the NMOC emission rate or the radii of influence (the distance from the well center to a point in the landfill where the pressure gradient applied by the blower or compressor approaches zero). If field testing has not been performed, the default values for k, L_0 and C_{NMOC} provided in Rule 15.3(d)(1)a. or the alternative values from Rule 15.3(d)(1)e. shall be used. The mass of nondegradable solid waste contained within the given section may be subtracted from the total mass of the section when estimating emissions provided the nature, location, age, and amount of the nondegradable material is documented as provided in Rule 15.3(i)(1)c.1.

(2) Each owner or operator seeking to comply with Rule 15.3(b)(2)b.1.(i) shall construct the gas collection devices using the following equipment or procedures:

a. The landfill gas extraction components shall be constructed of polyvinyl chloride (PVC), high density polyethylene (HDPE) pipe, fiberglass, stainless steel, or other nonporous corrosion resistant material of suitable dimensions to: convey projected amounts of gases; withstand installation, static, and settlement forces; and withstand planned overburden or traffic loads. The collection system shall extend as necessary to comply with emission and migration standards. Collection devices such as wells and horizontal collectors shall be perforated to allow gas entry without head loss sufficient to impair performance across the intended extent of control. Perforations shall be situated with regard to the need to prevent excessive air infiltration.

b. Vertical wells shall be placed so as not to endanger underlying liners and shall address the occurrence of water within the landfill. Holes and trenches constructed for piped wells and horizontal collectors shall be of sufficient cross-section so as to allow for their proper construction and completion including, for example, centering of pipes and placement of gravel backfill. Collection devices shall be designed so as not to allow indirect short circuiting of air into the cover or refuse into the collection system or gas into the air. Any gravel used around pipe perforations should be of a dimension so as not to penetrate or block perforations.

c. Collection devices may be connected to the collection header pipes below or above the landfill surface. The connector assembly shall include a positive closing throttle valve, any necessary seals and couplings, access couplings and at least one (!) sampling port. The collection devices shall be constructed of PVC, HDPE, fiberglass, stainless steel, or other nonporous material of suitable thickness.

(3) Each owner or operator seeking to comply with Rule 15.3(b)(2)b.1.(i) shall convey the landfill gas to a control system in compliance with Rule 15.3(b)(2)b.3. through the collection header pipe(s). The gas mover equipment shall be sized to handle the maximum gas generation flow rate expected over the intended use period of the gas moving equipment using the following procedures:

a. For existing collection systems, the flow data shall be used to project the maximum flow rate. If no flow data exists, the procedures in Rule 15.3(i)(3)b. shall be used.

b. For new collection systems, the maximum flow rate shall be determined in accordance with Rule 15.3(e)(1)a.

Rule 15.4 The provisions of Title 40 Code of Federal Regulations Part 62 "Approval and Promulgation of State Plans for Designated Facilities and Pollutants," Subpart OOO "Federal Plan Requirements for Municipal Solid Waste Landfills That Commenced Construction On or Before July 17, 2014 and Have Not

Been Modified or Reconstructed Since July 17, 2014" (Revised as of July 1, 2023) is hereby incorporated by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121.

Rule 16. Emission Standards for Hazardous Air Pollutants Other Than Asbestos.

Rule 16.1. The provisions of Title 40 Code of Federal Regulations Part 61 "National Emissions Standards for Hazardous Air Pollutants," Subparts A, B, C, D, E, F, H, I, J, K, L, N, O, P, Q, R, T, V, W, Y, BB, and FF and Appendices A, B, C, D, and E (Revised as of July 1, 2023) are hereby incorporated by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121. The following subparts and appendices are included:

Subpart A—	General Provisions
Subpart B—	Radon Emissions From Underground Uranium Mines
Subpart C—	Beryllium
Subpart D—	Beryllium Rocket Motor Firing
Subpart E—	Mercury
Subpart F—	Vinyl Chloride
Subpart H—	Emissions of Radionuclides Other Than Radon From Department of Energy Facilities
Subpart I—	Radionuclide Emissions From Federal Facilities Other Than Nuclear Regulatory Commission Licensees and Not Covered by Subpart H
Subpart J—	Equipment Leaks (Fugitive Emission Sources) of Benzene
Subpart K—	Radionuclide Emissions From Elemental Phosphorus Plants
Subpart L—	Benzene Emissions from Coke By-Product Recovery Plants
Subpart N—	Inorganic Arsenic Emissions From Glass Manufacturing Plants
Subpart O—	Inorganic Arsenic Emissions From Primary Copper Smelters
Subpart P—	Inorganic Arsenic Emissions From Arsenic Trioxide and Metallic Arsenic Production Facilities
Subpart Q—	Radon Emissions From Department of Energy Facilities
Subpart R—	Radon Emissions From Phosphogypsum Stacks
Subpart T—	Radon Emissions From the Disposal of Uranium Mill Tailings
Subpart V—	Equipment Leaks (Fugitive Emission Sources)
Subpart W—	Radon Emissions From Operating Mill Tailings
Subpart Y—	Benzene Emissions From Benzene Storage Vessels
Subpart BB—	Benzene Emissions From Benzene Transfer Operations
Subpart FF—	Benzene Waste Operations
Appendix A—	National Emission Standards for Hazardous Air Pollutants, Compliance Status Information
Appendix B—	Test Methods
Appendix C—	Quality Assurance Procedures
Appendix D—	Methods for Estimating Radionuclide Emissions
Appendix E—	Compliance Procedures Methods for Determining Compliance With Subpart I

Rule 16.2. Wherever the term "Administrator" is used in the national emission standards for hazardous air pollutants, the term "Chattanooga-Hamilton County Air Pollution Control Board or Director of the Chattanooga-Hamilton County Air Pollution Control Bureau" shall be substituted, where appropriate, for the purposes of Rule 16.

Rule 16.3. Where the term "construction permit" is used, the term "installation permit" shall be substituted for the purposes of Rule 16.1.

Rule 16.4. Where the term "commenced" is used, it shall have the meaning of the word "commence" in Section 4-2 of this Chapter.

Rule 16.5. Emission Standards for Source Categories.

(a) (Reserved).

(b) No emission standard or other requirement in Rule 16 shall be interpreted, construed, or applied to diminish or replace the requirements of a more stringent emission limitation or other applicable requirement in this chapter for a source category.

(c) The provisions of Title 40 Code of Federal Regulations Part 63 "National Emissions Standards for Hazardous Air Pollutants for Source Categories," Subparts A, B, C, D, F, G, H, I, J, L, M, N, O, Q, R, S, T, U, W, X, Y, AA, BB, CC, DD, EE, GG, HH, II, JJ, KK, LL, MM, NN, OO, PP, QQ, RR, SS, TT, UU, VV, WW, XX, YY, CCC, DDD, EEE, GGG, HHH, III, JJJ, LLL, MMM, NNN, OOO, PPP, QQQ, RRR, TTT, UUU, VVV, XXX, AAAA, CCCC, DDDD, EEEE, FFFF, GGGG, HHHH, IIII, JJJJ, KKKK, MMMM, NNNN, OOOO, PPPP, QQQQ, RRRR, SSSS, TTTT, UUUU, VVVV, WWWW, XXXX, YYYY, ZZZZ, AAAAA, BBBBB, CCCCC, DDDDD, EEEEE, FFFFF, GGGGG, HHHHH, IIIII, JJJJJ, KKKKK, LLLLL, MMMMM, NNNNN, PPPPP, QQQQQ, RRRRR, SSSSS, TTTTT, UUUUU, WWWWW, YYYYY, ZZZZZ, BBBBBB, CCCCCC, DDDDDD, EEEEEE, FFFFFF, GGGGGG, HHHHHH, JJJJJJ, LLLLLL, MMMMMM, NNNNNN, OOOOOO, PPPPPP, QQQQQQ, RRRRRR, SSSSSS, TTTTTT, VVVVVV, WWWWWW, XXXXXX, YYYYYY, ZZZZZZ, AAAAAAA, BBBBBBB, CCCCCCC, DDDDDDD, EEEEEEE, and HHHHHHH and Appendices A, B, C, D, and E (Revised as of July 1, 2023) are hereby incorporated by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121. The following subparts and appendices are included:

The following subparts are included:

Subpart A—	General Provisions
Subpart B—	Requirements for Control Technology Determinations for Major Sources in Accordance With Clean Air Act Sections, Sections 112(g) and 112(j)
Subpart C—	List of Hazardous Air Pollutants, Petitions Process, Lesser Quantity Designations, Source Category List
Subpart D—	Regulations Governing Compliance Extensions for Early Reductions of Hazardous Air Pollutants
Subpart F—	Organic Hazardous Air Pollutants From the Synthetic Organic Chemical Manufacturing Industry
Subpart G—	Organic Hazardous Air Pollutants From the Synthetic Organic Chemical Manufacturing Industry for Process Vents, Storage Vessels, Transfer Operations, and Wastewater
Subpart H—	Organic Hazardous Air Pollutants for Equipment Leaks
Subpart I—	Organic Hazardous Air Pollutants for Certain Processes Subject to the Negotiated Regulation for Equipment Leaks
Subpart J—	Polyvinyl Chloride and Copolymers Production
Subpart L—	Coke Oven Batteries

Subpart M—	Perchloroethylene Air Emission Standards for Dry Cleaning Facilities
Subpart N—	Chromium Emissions From Hard and Decorative Chromium Electroplating and Chromium Anodizing Tanks
Subpart O—	Ethylene Oxide Emission Standards for Sterilization Facilities
Subpart Q—	Industrial Process Cooling Towers
Subpart R—	Gasoline Distribution Facilities (Bulk Gasoline Terminals and Pipeline Breakout Stations)
Subpart S—	Pulp and Paper Industry
Subpart T—	Halogenated Solvent Cleaning
Subpart U—	Group I Polymers and Resins
Subpart W—	Epoxy Resins Production and Non-Nylon Polyamides Production
Subpart X—	Secondary Lead Smelting
Subpart Y—	Marine Tank Vessel Loading Operations
Subpart AA—	Phosphoric Acid Manufacturing Plants
Subpart BB—	Phosphate Fertilizers Production Plants
Subpart CC—	Petroleum Refineries
Subpart DD—	Off-Site Waste and Recovery Operations
Subpart EE—	Magnetic Tape Manufacturing Operations
Subpart GG—	Aerospace Manufacturing and Rework Facilities
Subpart HH—	Oil and Natural Gas Production Facilities
Subpart II—	Shipbuilding and Ship Repair (Surface Coating)
Subpart JJ—	Wood Furniture Manufacturing Operations
Subpart KK—	Printing and Publishing Industry
Subpart LL—	Primary Aluminum Reduction Plants
Subpart MM—	Chemical Recovery Combustion Sources at Kraft, Soda, Sulfite, and Stand-Alone Semichemical Pulp Mills
Subpart NN—	Wool Fiberglass Manufacturing at Area Sources
Subpart OO—	Tanks - Level 1
Subpart PP—	Containers
Subpart QQ—	Surface Impoundments
Subpart RR—	Individual Drain Systems
Subpart SS—	Closed Vent Systems, Control Devices, Recovery Devices and Routing to a Fuel Gas System or a Process
Subpart TT—	Equipment Leaks - Control Level 1
Subpart UU—	Equipment Leaks - Control Level 2 Standards
Subpart VV—	Oil-Water Separators and Organic-Water Separators
Subpart WW—	Storage Vessels (Tanks) - Control Level 2
Subpart XX—	Ethylene Manufacturing Process Units: Heat Exchange Systems and Waste Operations
Subpart YY—	Generic Maximum Achievable Control Technology Standards
Subpart CCC—	Steel Pickling - HCl Process Facilities and Hydrochloric Acid Regeneration Plants

Subpart DDD—	Mineral Wool Production
Subpart EEE—	Hazardous Waste Combustors
Subpart GGG—	Pharmaceuticals Production
Subpart HHH—	Natural Gas Transmission and Storage Facilities
Subpart III—	Flexible Polyurethane Foam Production
Subpart JJJ—	Group IV Polymers and Resins
Subpart LLL—	Portland Cement Manufacturing Industry
Subpart MMM—	Pesticide Active Ingredient Production
Subpart NNN—	Wool Fiberglass Manufacturing
Subpart OOO—	Manufacture of Amino Phenolic Resins
Subpart PPP—	Polyether Polyols Production
Subpart QQQ—	Primary Copper Smelting
Subpart RRR—	Secondary Aluminum Production
Subpart TTT—	Primary Lead Smelting
Subpart UUU—	Petroleum Refineries: Catalytic Cracking Units, Catalytic Reforming Units, and Sulfur Recovery Units
Subpart VVV—	Publicly Owned Treatment Works
Subpart XXX—	Ferroalloys Production: Ferromanganese and Silicomanganese
Subpart AAAA—	Municipal Solid Waste Landfills
Subpart CCCC—	Manufacturing of Nutritional Yeast
Subpart DDDD—	Plywood and Composite Wood Products
Subpart EEEE—	Organic Liquids Distribution (Non-Gasoline)
Subpart FFFF—	Miscellaneous Organic Chemical Manufacturing
Subpart GGGG—	Solvent Extraction for Vegetable Oil Production
Subpart HHHH—	Wet-Formed Fiberglass Mat Production
Subpart IIII—	Surface Coating of Automobiles and Light-Duty Trucks
Subpart JJJJ—	Paper and Other Web Coating
Subpart KKKK—	Surface Coating of Metal Cans
Subpart MMMM—	Surface Coating of Miscellaneous Metal Parts and Products
Subpart NNNN—	Surface Coating of Large Appliances
Subpart OOOO—	Printing, Coating, and Dyeing of Fabrics and Other Textiles
Subpart PPPP—	Surface Coating of Plastic Parts and Products
Subpart QQQQ—	Surface Coating of Wood Building Products
Subpart RRRR—	Surface Coating of Metal Furniture
Subpart SSSS—	Surface Coating of Metal Coil
Subpart TTTT—	Leather Finishing Operations
Subpart UUUU—	Cellulose Products Manufacturing
Subpart VVVV—	Boat Manufacturing
Subpart WWWW—	Reinforced Plastic Composites Production
Subpart XXXX—	Rubber Tire Manufacturing
Subpart YYYY—	Stationary Combustion Turbines
Subpart ZZZZ—	Stationary Reciprocating Internal Combustion Engines

Subpart AAAAA—	Lime Manufacturing Plants
Subpart BBBBB—	Semiconductor Manufacturing
Subpart CCCCC—	Coke Ovens: Pushing, Quenching, and Battery Stacks
Subpart DDDDD—	Major Sources: Industrial, Commercial, and Institutional Boilers and Process Heaters
Subpart EEEEE—	Iron and Steel Foundries
Subpart FFFFF—	Integrated Iron and Steel Manufacturing Facilities
Subpart GGGGG—	Site Remediation
Subpart HHHHH—	Miscellaneous Coating Manufacturing
Subpart IIIII—	Mercury Cell Chlor-Alkali Plants
Subpart JJJJJ—	Brick and Structural Clay Products Manufacturing
Subpart KKKKK—	Clay Ceramics Manufacturing
Subpart LLLLL—	Asphalt Processing and Asphalt Roofing Manufacturing
Subpart MMMMM—	Flexible Polyurethane Foam Fabrication Operations
Subpart NNNNN—	Hydrochloric Acid Production
Subpart PPPPP—	Engine Test Cells Stands
Subpart QQQQQ—	Friction Materials Manufacturing Facilities
Subpart RRRRR—	Taconite Iron Ore Processing
Subpart SSSSS—	Refractory Products Manufacturing
Subpart TTTTT—	Primary Magnesium Refining
Subpart UUUUU—	Coal- and Oil-Fired Electric Utility Steam Generating Units
Subpart WWWWW—	Hospital Ethylene Oxide Sterilizers
Subpart YYYYY—	Area Sources: Electric Arc Furnace Steelmaking Facilities
Subpart ZZZZZ—	Iron and Steel Foundries Area Sources
Subpart BBBBBB—	Gasoline Distribution Bulk Terminals, Bulk Plants, and Pipeline Facilities
Subpart CCCCCC—	Gasoline Dispensing Facilities
Subpart DDDDDD—	Polyvinyl Chloride and Copolymers Production Area Sources
Subpart EEEEEE—	Primary Copper Smelting Area Sources
Subpart FFFFFF—	Secondary Copper Smelting Area Sources
Subpart GGGGGG—	Primary Nonferrous Metals Area Sources - Zinc, Cadmium, and Beryllium
Subpart HHHHHH—	Paint Stripping and Miscellaneous Surface Coating Operations at Area Sources
Subpart JJJJJJ—	Industrial, Commercial, and Institutional Boilers Area Sources
Subpart LLLLLL—	Acrylic and Modacrylic Fibers Production Area Sources
Subpart MMMMMM—	Carbon Black Production Area Sources
Subpart NNNNNN—	Chemical Manufacturing Area Sources: Chromium Compounds
Subpart OOOOOO—	Flexible Polyurethane Foam Production and Fabrication Area Sources
Subpart PPPPPP—	Lead Acid Battery Manufacturing Area Sources
Subpart QQQQQQ—	Wood Preserving Area Sources
Subpart RRRRRR—	Clay Ceramics Manufacturing Area Sources

Subpart SSSSSS—	Glass Manufacturing Area Sources
Subpart TTTTTT—	Secondary Nonferrous Metals Processing Area Sources
Subpart VVVVVV—	Chemical Manufacturing Area Sources
Subpart WWWWWW—	Area Source Standards for Plating and Polishing Operations
Subpart XXXXXX—	Area Source Standards for Nine Metal Fabrication and Finishing Source Categories
Subpart YYYYYY—	Area Sources: Feroalloys Production Facilities
Subpart ZZZZZZ—	Area Source Standards for Aluminum, Copper, and Other Nonferrous Foundries
Subpart AAAAAAA—	Area Sources: Asphalt Processing and Asphalt Roofing Manufacturing
Subpart BBBBBBB—	Area Sources: Chemical Preparations Industry
Subpart CCCCCCC—	Area Sources: Paints and Allied Products Manufacturing
Subpart DDDDDDD—	Area Sources: Prepared Feeds Manufacturing
Subpart EEEEEEE—	Gold Mine Ore Processing and Production Area Source Category
Subpart HHHHHHH—	Polyvinyl Chloride and Copolymers Production
Appendix A—	Test Methods
Appendix B—	Sources Defined for Early Reduction Provisions
Appendix C—	Determination of the Fraction Biodegraded (F_{bio}) in a Biological Treatment Unit
Appendix D—	Alternative Validation Procedure for EPA Waste and Wastewater Methods
Appendix E—	Monitoring Procedure for Nonthoroughly Mixed Open Biological Treatment Systems at Kraft Pulp Mills Under Unsafe Sampling Conditions

(d) If the owner or operator of a source category has executed an enforceable agreement with the U.S. EPA Administrator pursuant to the Title 42 U.S.C. Section 7412(i)(5) [Early Reductions Program] that contains more stringent requirements or more stringent emissions limitations than would otherwise be applicable under this Rule, any certificate of operation issued to the source shall include the requirements and emissions limitations contained in that agreement, unless the source is subsequently released from said enforceable agreement and such release is confirmed in a writing signed by the U.S. EPA Administrator, or designee, and submitted to the Director.

(e) No source shall emit any hazardous air pollutant in excess of any emissions limitation or contrary to any standard, prohibition or requirement contained in a certificate of operation, effective for new source categories beginning with initial operation and effective for existing source categories as expeditiously as practicable, but not later than the date determined by the U.S. EPA Administrator in a standard promulgated in Title 40 Code of Federal Regulations Part 63, which has been incorporated by reference in Chapter 4, or such other compliance date as would apply under Title 42 U.S.C. 7412(i) [Early Reductions Program].

Rule 16.6. (Reserved)

Rule 16.7. The words, phrases and terms defined in Title 40 Code of Federal Regulations Part 63, its subparts, and its appendices shall be used only for the purpose of interpreting and administering Rule 16 and shall not be used to otherwise alter or vary in any way the definitions provided in Section 4-2 of this chapter.

Rule 16.8. Where the term "Administrator" is used in the national emission standards for hazardous air pollutants for source categories, the term "Director of the Chattanooga-Hamilton County Air Pollution Control Bureau" shall be substituted for the purposes of this chapter, where appropriate, except at Title 40 Code of Federal Regulations Part 63.325(c), except at Title 40 Code of Federal Regulations Part 61.102(b); 61.104(a)(1)(xv); and 61.107(b)(3)(iv).

Rule 16.9. Reserved.

Rule 16.10. Maximum Achievable Control Technology Pollution Control Determinations

(a) *Applicability.* This rule applies to any owner or operator who constructs or reconstructs a major source of hazardous air pollutants unless the major source in question has been specifically regulated or exempted from regulation under a standard issued pursuant to Section 112(d), Section 112(h), or Section 112(j) of the Clean Air Act and promulgated in Title 40 Code of Federal Regulations Part 63, or unless the owner or operator of such major source has been issued all required air pollution control permits for such construction or reconstruction project before the effective date of this ordinance. Rule 16.10 does not apply to electric utility steam generating units. Rule 16.10 does not apply to stationary sources that are within the following source categories, which have been deleted from the source category list by promulgations pursuant to Section 112(c)(9) of the Clean Air Act: (1) asbestos processing area source category; 60 FR 61550-551 November 30, 1995 (2) Chromium chemicals manufacturing, lead acid battery manufacturing, non-stainless steel manufacturing—electric arc furnace operation; stainless steel manufacturing—electric arc furnace operation; and wood treatment; 61 FR 28200-02 June 4, 1996. Rule 16.10 does not apply to research and development activities, as defined in Rule 16.10(b).

(b) *Definitions.* Terms used in Rule 16.10 that are not defined in Rule 16.10(b) have the meaning given to them in Section 4-2.

(1) *Affected source* means the stationary source or group of stationary sources fabricated (on site), erected, or installed meets the definition of "construct a major source" or the definition of "reconstruct a major source" contained in Rule 16.10(b).

(2) *Affected States* are all States (1) Whose air quality may be affected and that are contiguous to Hamilton County, Tennessee, where a determination is made in accordance with Rule 16.10; or (2) Whose air quality may be affected and that are within 50 miles of the major source for which a determination is made in accordance with Rule 16.10.

(3) *Available information* means, for purposes of identifying control technology options for the affected source, information contained in the following information sources as of the date of approval of the determination made in accordance with Rule 16.10:

a. A relevant proposed regulation, including all supporting information;

b. Background information documents for a draft or proposed regulation;

c. Data and information available for the Control Technology Center developed pursuant to Section 113 of the Clean Air Act;

d. Data and information contained in the Aerometric Informational Retrieval System including information in the MACT data base;

e. Any additional information that can be expeditiously provided by the Administrator; and

f. For the purpose of determinations in accordance with Rule 16.10, any additional information provided by the applicant or others, and any additional information considered available by the Director.

(4) *Construct a major source* means:

a. To fabricate, erect, or install at any greenfield site a stationary source, or group of stationary sources, which is located within a contiguous area and under common control and which emits or has the potential to emit ten (10) tons per year of any individual hazardous air pollutant or twenty-five (25) tons per year or more of any combination of hazardous air pollutants, or

b. To fabricate, erect or install at any developed site a new process or production unit which in and of itself emits or has the potential to emit ten (10) tons per year of any individual hazardous air pollutant or twenty-five (25) tons per year or more of any combination of hazardous air pollutants, unless the process or production unit satisfies criteria in paragraphs b.1. through b.6. of this definition.

1. All hazardous air pollutants emitted by the process or production unit that would otherwise be controlled under the requirements of Rule 16.10 will be controlled by emission control equipment which was previously installed at the same site as the process or production unit; and

2. (i) The Director has determined within a period of five (5) years prior to the fabrication, erection, or installation of the process or production unit that the existing emission control equipment represented best available control technology (BACT), lowest achievable emission rate (LAER) pursuant to Title 40 CFR Part 51 or Part 52, BACT for hazardous air pollutants based on the air pollution control ordinance for the category of pollutants which includes those hazardous air pollutants to be emitted by the process or production unit; or

(ii) The Director determines that the control of hazardous air pollutant emissions provided by the existing equipment will be equivalent to that level of control currently achieved by other well-controlled similar sources (i.e., equivalent to the level of control that would be provided by a current BACT, LAER, or BACT for hazardous air pollutants determination); and

3. The Director determines that the percent control efficiency for emissions of hazardous air pollutants from all sources to be controlled by the existing control equipment will be equivalent to the percent control efficiency provided by the control equipment prior to the inclusion of the new process or production unit; and

4. The Director has provided notice and an opportunity for public comment concerning the determination that criteria described in Rule 16.10(b) definition of "construct a major source" described above apply and concerning the continued adequacy of any prior BACT, LAER, or BACT for hazardous air pollutants determination; and

5. If any commenter has asserted that a prior BACT, LAER, or BACT for hazardous air pollutants determination is no longer adequate, the Director has determined that the level of control required by that prior determination remains adequate; and

6. Any emission limitations, work practice requirements, or other terms and conditions upon which the above determinations by the Director are applicable requirements in accordance with Section 504(a) of the Clean Air Act and either have been incorporated into any existing Part 70 permit for the affected source or will be incorporated into any existing Part 70 permit for the affected source or will be incorporated into such permit upon issuance.

(5) *Control technology* means measures, processes, methods, systems, or techniques to limit the emission of hazardous air pollutants through process changes, substitution of materials or other modifications that:

a. Reduce the quantity of, or eliminate emissions of, such pollutants through process changes, substitution of materials or other modifications;

b. Enclose systems or processes to eliminate emissions;

c. Collect, capture or treat such pollutants when released from a process, stack, storage or fugitive emissions point;

d. Are design, equipment, work practice, or operational standards (including requirements for operator training or certification) as provided in Section 112(h) of the Clean Air Act; or

e. Are a combination of paragraphs a. through d. of this definition.

(6) *Electric utility steam generating unit* means any fossil fuel fired combustion unit of more than twenty-five (25) megawatts that serves a generator that produces electricity for sale. A unit that cogenerates steam and electricity and supplies more than one-third (1/3) of its potential electric output capacity and more than twenty-five (25) megawatts electric output to any utility power distribution system for sale shall be considered an electric utility steam generating unit.

(7) *Greenfield site* means a contiguous area under common control that is an undeveloped site.

(8) *List of Source Categories* means the Source Category List required by Section 112(c) of the Clean Air Act.

(9) *Maximum achievable control technology (MACT) emission limitation for new sources* means the emission limitation which is not less stringent than the emission limitation achieved in practice by the best controlled similar source, and which reflects the maximum degree of reduction in emissions that the Director or the Board, taking into consideration the cost of achieving such emission reduction, and any non-air quality health and environmental impacts and energy requirements, determines is achievable by the constructed or reconstructed major source.

(10) *Notice of MACT Approval* means a document issued by the Director containing all federally enforceable conditions necessary to enforce the application and operation of MACT or other control technologies such that the MACT emission limitation is met.

(11) *Process or production unit* means any collection of structures and/or equipment, that processes assembles, applies, or otherwise uses material inputs to produce or store an intermediate or final product. A single facility may contain more than one (1) process or production unit.

(12) *Reconstruct a major source* means the replacement of components at an existing process or production unit that in and of itself emits or has the potential to emit ten (10) tons per year of any individual hazardous air pollutant or twenty-five (25) tons per year of any combination of hazardous air pollutants, whenever:

a. The fixed capital cost of the new components exceeds fifty percent (50%) of the fixed capital cost that would be required to construct a comparable process or production unit; and

b. It is technically and economically feasible for the reconstructed major source to meet the applicable maximum achievable control technology emission limitation for new sources established under Rule 16.10.

(13) *Research and development activities* means activities conducted at a research or laboratory facility whose primary purpose is to conduct research and development into new processes and products, where such source is operated under the close supervision of technically trained personnel and is not engaged in the manufacture of products for sale or exchange for commercial profit, except where such sales do not exceed two percent (2%) of the gross receipts of the source for which it is conducting the research and development.

(14) *Similar source* means a stationary source or process that has comparable emissions and is structurally similar in design and capacity to a constructed or reconstructed major source such that the source could be controlled using the same control technology.

(c) *Prohibition.* After the effective date of this ordinance, no person may begin actual construction or reconstruction of a major source of hazardous air pollutants in this municipality unless:

(1) The major source in question has been specifically regulated or exempted from regulation under a standard issued pursuant to Section 112(d), Section 112(h), or Section 112(j) promulgated in Title 40 Code of Federal Regulations Part 63, which has been incorporated by reference in Chapter 4, and the owner and operator has fully complied with all procedures and requirements for preconstruction review established by that standard, including any applicable requirements set forth in Subpart A—General Provisions of Part 63; or

(2) The Director or the Board has made a final and effective case-by-case determination pursuant to Rule 16.10 such that emissions from the constructed or reconstructed major source will be controlled to a level no less stringent than the maximum achievable control technology emission limitation for new sources.

(d) *Maximum Achievable Control Technology (MACT) Determinations for Constructed and Reconstructed Major Sources.*

(1) Applicability. The requirements of Rule 16.10 apply to an owner or operator who constructs or reconstructs a major source of one (1) or more hazardous air pollutants subject to a case-by-case determination of maximum achievable control technology pursuant to Rule 16.10(c).

(2) Requirements for Constructed and Reconstructed Major Sources. When a case-by-case determination of MACT is required by Rule 16.10(c), the owner and operator shall obtain from the Director an approved MACT determination according to one (1) of the review options contained in Rule 16.10(d)(3).

(3) Review Options.

a. When the Director requires the owner or operator to obtain, or revise, a permit issued pursuant to Article III. of Chapter 4 entitled Part 70 Source Regulation and Permits before construction or reconstruction of the major source, or when the Director allows the owner or operator at its discretion to obtain or revise such a permit before construction or reconstruction, and the owner or operator elects that option, the owner or operator shall follow the administrative procedures in Article III. Part 70 Source Regulation and Permits.

b. When an owner or operator is not required to obtain or revise a Part 70 Source Permit before construction or reconstruction, the owner or operator (unless the owner or operator voluntarily follows the process to obtain a Part 70 Permit) shall either, at the discretion of the Director:

1. Apply for and obtain a Notice of MACT Approval according to the procedures outlined in Rule 16.10 Rule 16.10(d)(6)-(8); or

2. Apply for a MACT determination under any other administrative procedures for preconstruction review and approval established by the Director or the Board which provide for public participation in the determination, and ensure that no person may begin actual construction or reconstruction of a major source in the City of Chattanooga unless the MACT emission limitation for new sources will be met.

c. When applying for a Part 70 Permit, an owner or operator may request approval of case-by-case MACT determinations for alternative operating scenarios. Approval of such determinations satisfies the requirements of Section 112(g) of the Clean Air Act of each such scenario.

d. Regardless of the review process, the MACT emission limitation and requirements established shall be effective as required by Rule 16.10(d)(10) consistent with the principles established in Rule 16.10(d)(4), and supported by the information listed in Rule 16.10(d)(5). The owner or operator shall comply with the requirements in Rule 16.10(d)(5) and with all applicable requirements in Title 40 CFR Part 63, Subpart A, which has been incorporated by reference in Chapter 4.

(4) Principles of MACT Determinations. The following general principles shall govern preparation by the owner or operator of each permit application or other application requiring a case-by-case MACT determination concerning construction or reconstruction of a major source, and all subsequent review of and actions taken concerning such an application by the Board or Director:

a. The MACT emission limitation or MACT requirements recommended by the applicant and approved by the Board or Director shall not be less stringent than the emission control which is achieved in practice by the best controlled similar source, as determined by the Board or Director.

b. Based upon available information, as defined in Rule 16.10, the MACT emission limitation and control technology (including any requirements under Rule 16.10(d)(4)c. recommended by the applicant and approved by the Board and Director shall achieve the maximum degree of reduction in emissions of hazardous air pollutants which can be achieved by utilizing those control technologies that can be identified from the available information, taking into consideration the costs of achieving such emission reduction and any non-air quality health and environmental impacts and energy requirements associated with the emission reduction.

c. The applicant may recommend a specific design, equipment, work practice, or operational standard, or a combination thereof, and the Director may approve such a standard if the Director specifically determines that it is not feasible to prescribe or enforce an emission limitation under the criteria set forth in Section 112(h) of the Clean Air Act.

d. If the Administrator has either proposed a relevant emission standard pursuant to Section 112(d) or Section 112(h) of the Clean Air Act or adopted a presumptive MACT determination for the source category which includes the constructed or reconstructed major source, then the MACT requirements applied to the constructed or reconstructed major source shall take into consideration those MACT emission limitations and requirements of the proposed standard or presumptive MACT determination.

(5) Application Requirements For a Case-By-Case MACT Determination.

a. An application for a MACT determination [whether a Part 70 permit application, an application for a Notice of MACT Approval, or other document specified by the

Board or Director under Rule 16.10(d)(3)b.2.] shall specify a control technology selected by the owner or operator that, if properly operated and maintained, will meet the MACT emission limitation or standard as determined according to the principles set forth in Rule 16.10(d)(4).

b. In each instance where a constructed or reconstructed major source would require additional control technology or a change in control technology, the application for a MACT determination shall contain the following information:
   1. The name and address (physical location) of the major source to be constructed or reconstructed;
   2. A brief description of the major source to be constructed or reconstructed and identification of any listed source category or categories in which it is included;
   3. The expected commencement date for the construction or reconstruction of the major source;
   4. The expected completion date for construction or reconstruction of the major source;
   5. The anticipated date of start-up for the constructed or reconstructed major source;
   6. The hazardous air pollutants emitted by the constructed or reconstructed major source, and the estimated emission rate for each such hazardous air pollutant, to the extent this information is needed by the Board or the Director to determine MACT;
   7. Any federally enforceable emission limitations applicable to the constructed or reconstructed major source;
   8. The maximum and expected utilization of capacity of the constructed or reconstructed major source, and the associated uncontrolled emission rates for that source, to the extent this information is needed by the Board or the Director to determine MACT;
   9. The controlled emissions for the constructed or reconstructed major source in tons/year at expected and maximum utilization of capacity, to the extent this information is needed by the Board or Director to determine MACT;
   10. A recommended emission limitation for the constructed or reconstructed major source consistent with the principles set forth in Rule 16.10(d)(4);
   11. The selected control technology to meet the recommended MACT emission limitation, including technical information on the design, operation, size, estimated control efficiency of the control technology (and the manufacturer's name, address, telephone number, and relevant specifications and drawings, if requested by the Board or the Director);
   12. Supporting documentation including documentation of alternative control technologies considered by the applicant to meet the emission limitation, and analysis of cost and non-air quality health environmental impacts or energy requirements for the selected control technology; and
   13. Any other relevant information required pursuant to Title 40 CFR Part 63, Subpart A, which has been incorporated by reference in Chapter 4.

c. In each instance where the owner or operator contends that a constructed or reconstructed major source will be in compliance, upon startup, with case-by-case MACT under Rule 16.10 without a change in control technology, the application for a MACT determination shall contain the following information:
   1. The information described in Rule 16.10(d)(5)b.1.-b.10.; and

2. Documentation of the control technology in place.

(6) Administrative Procedures for Review of the Notice of MACT Approval.

a. The Director will notify the owner or operator in writing, within forty-five (35) days after the date the application is first received, as to whether the application for a MACT determination is complete or whether additional information is required.

b. The Director will initially approve the recommended MACT emission limitation and other terms set forth in the application, or the Board or Director will notify the owner or operator in writing of its intent to disapprove the application, within thirty (30) calendar days after the owner or operator is notified in writing that the application is complete.

c. The owner or operator may present, in writing, within sixty (60) calendar days after receipt of notice of the Director's intent to disapprove the application, additional information or arguments pertaining to, or amendments to, the application for consideration by the Board or Director before it decides whether to finally disapprove the application.

d. The Director will either initially approve or issue a final disapproval of the application within ninety (90) days after it notifies the owner or operator of an intent to disapprove or within thirty (30) days after the date additional information is received from the owner or operator, whichever is earlier.

e. A final determination by the Director to disapprove any application will be in writing and will specify the grounds on which the disapproval is based. If any application is finally disapproved, the owner or operator may appeal to the Board or may submit a subsequent application concerning construction or reconstruction of the same major source, provided that the subsequent application has been amended in response to the stated grounds for the prior disapproval.

f. An initial decision to approve an application for a MACT determination will be set forth in the Notice of MACT Approval as described in Rule 16.10(d)(7).

(7) Notice of MACT Approval.

a. The notice of MACT Approval will contain a MACT emission limitation (or a MACT work practice standard if the Board or Director determines it is not feasible to prescribe or enforce an emission standard) to control the emissions of hazardous air pollutants. The MACT emission limitation or standard will be determined by the Board or Director and will conform to the principles set forth in Rule 16.10(d)(4).

b. The Notice of MACT Approval will specify any notification, operation and maintenance, performance testing, monitoring, reporting and record keeping requirements. The Notice of MACT Approval shall include:

1. In addition to the MACT emission limitation or MACT work practice standard established under Rule 16.10, additional emission limits, production limits, operational limits or other terms and conditions necessary to ensure practical enforceability of the MACT emission limitation;

2. Compliance certifications, testing, monitoring, reporting and record keeping requirements that are consistent with the requirements of § 4-57;

3. In accordance with Section 114(a)(3) of the Clean Air Act, monitoring shall be capable of demonstrating continuous compliance during the applicable reporting period. Such monitoring data shall be of sufficient quality to be used as a basis for enforcing all applicable requirements established under Rule 16.10, including emission limitations;

4. A statement requiring the owner or operator to comply with all applicable requirements contained in Title 40 CFR Part 63, Subpart A.

c. All provisions contained in the Notice of MACT Approval shall be practically enforceable upon the effective date of issuance of such notice, as provided by Rule 16.10(d)(10).

d. The Notice of MACT Approval shall expire if construction or reconstruction has not commenced within eighteen (18) months after issuance, unless the Board or Director has granted an extension, which shall not exceed an additional twelve (12) months.

(8) Opportunity for Public Comment on the Notice of MACT Approval.

a. The Board or Director will provide opportunity for public comment on the Notice of MACT Approval, including, at a minimum:

1. Availability for public inspection in at least one (1) location in the area affected of the information submitted by the owner or operator and of the Board or Director's initial decision to approve the application;

2. A thirty (30) day period for submittal of public comment; and

3. A notice by prominent advertisement in the area affected of the location of the source information and initial decision specified in Rule 16.10(d)(8)a.1.

b. At the discretion of the Board or Director, the Notice of MACT Approval setting forth the initial decision to approve the application may become final automatically at the end of the comment period if no adverse comments are received. If adverse comments are received, the Board or Director shall have thirty (30) days after the end of the comment period to make any necessary revisions in its analysis and decide whether to finally approve the application.

(9) EPA Notification. The Board or Director shall send a copy of the final Notice of MACT Approval, notice of approval of a Part 70 permit application incorporating a MACT determination (in those instances where the owner or operator either is required or elects to obtain such a permit before construction or reconstruction), or other notice of approval issued pursuant to Rule 16.10(d)(3)b.2. to the Administrator through the appropriate Regional Office, and to all other State air pollution control agencies having jurisdiction in affected States.

(10) Effective Date. The effective date of a MACT determination shall be the date the Notice of MACT Approval becomes final, the date of issuance of a Part 70 permit incorporating a MACT determination [in those instances where the owner or operator either is required or elects to obtain such a permit before construction or reconstruction], or the date any other notice of approval issued pursuant to Rule 16.10(d)(3)b.2. of this section becomes final.

(11) Compliance date. On and after the date of start-up, a constructed or reconstructed major source which is subject to Rule 16.10 shall be in compliance with all applicable requirements specified in the MACT determination.

(12) Compliance with MACT determinations.

a. An owner or operator of a constructed or reconstructed major source that is subject to a MACT determination shall comply with all requirements in the final Notice of MACT Approval, the Part 70 permit (in those instances where the owner or operator either is required or elects to obtain such a permit before construction or reconstruction), or any other final notice of approval issued pursuant to Rule 16.10(c)(3)b.2., including but not limited to any MACT emission limitation or MACT work practice standard, and any notification, operation and maintenance, performance testing, monitoring, reporting, and recordkeeping requirements.

b. An owner or operator of a constructed or reconstructed major source which has obtained a MACT determination shall be deemed to be in compliance with Section 112(g)(2)(B) of the Clean Air Act only to the extent that the constructed or reconstructed major source is in compliance with all requirements set forth in the final Notice of MACT Approval, the Part 70 permit (in those instances where the owner or operator either is required or elects to obtain such a permit before construction or reconstruction), or any other final notice of approval issued pursuant to Rule 16.10(d)(3)b.2. Any violation of such requirements by the owner or operator shall be deemed to be a violation of the prohibition on construction or reconstruction in Section 112(g)(2)(B) for whatever period the owner or operator is determined to be in violation of such requirements, and shall subject the owner or operator to appropriate enforcement action under the Clean Air Act.

(13) Reporting to the Administrator. Within sixty (60) days after the issuance of a final Notice of MACT Approval, a Part 70 permit incorporating a MACT determination (in those instances where the owner or operator either is required or elects to obtain such a permit before construction or reconstruction), or any other final notice of approval issued pursuant to Rule 16.10(d)(3)b.2., the Director shall provide a copy of such notice to the Administrator, and shall provide a summary in a compatible electronic format for inclusion in the MACT data base.

(e) *Requirements for Constructed or Reconstructed Major Sources Subject to a Subsequently Promulgated MACT Standard or MACT Requirement.*

(1) If the Administrator promulgated an emission standard under Section 112(d) or Section 112(h) of the Clean Air Act or the Board or Director issues a determination under Section 112(j) of the Clean Air Act that is applicable to a stationary source or group of sources which would be deemed to be a constructed or reconstructed major source under Rule 16.10 before the date that the owner or operator has obtained a final and legally effective MACT determination under any of the review options available pursuant to Rule 16.10(d), the owner or operator of the source(s) shall comply with the promulgated standard or determination rather than any MACT determination under Section 112(g) of the Clean Air Act by the Board or Director, and the owner or operator shall comply with the promulgated standard by the compliance date in the promulgated standard.

(2) If the Administrator promulgates an emission standard under Section 112(d) or Section 112(h) of the Clean Air Act or the Board or Director makes a determination under Section 112(j) of the Clean Air Act that is applicable to a stationary source or group of sources which was deemed to be a constructed or reconstructed major source under Rule 16.10 and has been subject to a prior case-by-case MACT determination pursuant to Rule 16.10(d), and the owner and operator obtained a final and legally effective case-by-case MACT determination prior to the promulgation date of such emission standard, then the Board or Director shall (if the initial Part 70 permit has not yet been issued) issue an initial operating permit which incorporates the emission standard or determination, or shall (if the initial Part 70 permit has been issued) revise the operating permit according to the reopening procedures in Article III of Chapter 4, to incorporate the emission standard or determination.

a. If the Administrator has included in the emission standard established under Section 112(d) or Section 112(h) of the Clean Air Act a specific compliance date for those sources which have obtained a final and legally effective MACT determination under Rule 16.10 and which have submitted the information required by Rule 16.10(d) to the EPA before the close of the public comment period for the standard established under

Section 112(d) of the Act, such date shall assure that the owner or operator shall comply with the promulgated standard as expeditiously as practicable, but not longer than eight (8) years after such standard is promulgated. In that event, the Board or Director shall incorporate the applicable compliance date in the Part 70 permit.

b. If no compliance date has been established in the promulgated Section 112(d) or 112(h) standard or Section 112(j) determination, for those sources which have obtained a final and legally effective MACT determination under Rule 16.10, then the Board or Director shall establish a compliance date in the permit that assures that the owner or operator shall comply with the promulgated standard or determination as expeditiously as practicable, but not longer than eight (8) years after such standard is promulgated or a Section 112(j) determination is made.

(3) Notwithstanding the requirements of paragraphs (1) and (2) above, if the Administrator promulgates an emission standard under Section 112(d) or Section 112(h) of the Clean Air Act or the Board or Director issues a determination under Section 112(j) of the Act that is applicable to a stationary source or group of sources which was deemed to be a constructed or reconstructed major source under Rule 16.10 and which is the subject of a prior case-by-case MACT determination pursuant to Rule 16.10(d), and the level of control required by the emission standard issued under Section 112(d) or Section 112(h) or the determination issued under Section 112(j) of the Act is less stringent than the level of control required by any emission limitation or standard in the prior MACT determination, the Board or Director is not required to incorporate any less stringent terms of the promulgated standard in the Part 70 permit applicable to such source(s) and may in its discretion consider any more stringent provisions of the prior MACT determination to be applicable legal requirements when issuing or revising such an operating permit.

Rule 17. Emission Standard for Asbestos.

Title 40 Code of Federal Regulations Part 763, Subpart E "Asbestos-Containing Materials in Schools," Appendix E "Interim Method of the Determinations of Asbestos in Bulk Insulation Samples" (Revised as of July 1, 2023) is hereby incorporated by reference in Chapter 4 as a requirement of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121.

Rule 17.1. Definitions. All terms that are used in this rule and are not defined below are given the same meaning as in Section 4-2.

(1) *Active waste disposal site* means any disposal site other than an inactive site.

(2) *Adequately wet* means to sufficiently mix or penetrate with liquid to prevent the release of particulates. If visible emissions are observed coming from asbestos-containing material, then that material has not been adequately wetted. However, the absence of visible emissions is not sufficient evidence of being adequately wetted.

(3) *Asbestos* means the asbestiform varieties of serpentinite (chrysotile), riebeckite (crocidolite), cummingtonite-grunerite, anthophyllite, and actinolite-tremolite.

(4) *Asbestos-containing waste materials* means mill tailings or any waste that contains commercial asbestos and is generated by a source subject to the provisions of this subpart. This term includes filters from control devices, friable asbestos waste material, and bags or other similar packaging contaminated with commercial asbestos. As applied to demolition and renovation operations, this term also includes regulated asbestos-containing material waste and materials contaminated with asbestos including disposable equipment and clothing.

(5) *Asbestos mill* means any facility engaged in converting, or in any intermediate step in converting, asbestos ore into commercial asbestos. outside storage of asbestos material is not considered a part of the asbestos mill.

(6) *Asbestos tailings* means any solid waste that contains asbestos and is a product of asbestos mining or milling operations.

(7) *Asbestos waste from control devices* means any waste material that contains asbestos and is collected by a pollution control device.

(8) *Category I nonfriable asbestos-containing material (ACM)* means asbestos-containing packing, gaskets, resilient floor covering, and asphalt roofing products containing more than one percent (1%) asbestos as determined using the method specified in Title 40 CFR Part 763, Subpart E, Appendix E, Section 1 "Polarized Light Microscopy," which has been incorporated by reference in Chapter 4.

(9) *Category II nonfriable ACM* means any material, excluding Category I nonfriable ACM, containing more than one percent (1%) asbestos as determined using the method specified in Title 40 CFR Part 763, Subpart E, Appendix E, Section 1 "Polarized Light Microscopy," which has been incorporated by reference in Chapter 4, that, when dry, cannot be crumbled, pulverized, or reduced to powder by hand pressure.

(10) *Commercial asbestos* means any material containing asbestos that is extracted from ore and has value because of its asbestos content.

(11) *Cutting* means to penetrate with a sharp-edged instrument and includes sawing, but does not include shearing, slicing.

(12) *Demolition* means the wrecking or taking out of any load-supporting structural member of a facility together with any related handling operations or the intentional burning of any facility.

(13) *Emergency renovation operation* means a renovation operation that was not planned but results from a sudden, unexpected event that, if not immediately attended to, presents a safety or public health hazard, is necessary to protect equipment from damage, or is necessary to avoid imposing an unreasonable financial burden. This term includes operations necessitated by nonroutine failures of equipment.

(14) *Fabricating* means any processing (e.g., cutting, sawing, drilling) of a manufactured product that contains commercial asbestos, with the exception of processing at temporary sites (field fabricating) for the construction or restoration of facilities. In the case of friction products, fabricating includes bonding, debonding, grinding, sawing, drilling, or other similar operations performed as part of fabricating.

(15) *Facility* means any institutional, commercial, public, industrial, or residential structure, installation, or building (including any structure, installation, or building containing condominiums or individual dwelling units operated as a residential cooperative, but excluding residential buildings having four or fewer dwelling units); any ship; and any active or inactive waste disposal site. For purposes of this definition, any building, structure, or installation that contains a loft used as a dwelling is not considered a residential structure, installation, or building. Any structure, installation or building that was previously subject to this Rule is not excluded, regardless of its current use or function.

(16) *Facility component* means any part of a facility including equipment.

(17) *Friable asbestos material* means any material containing more than one percent (1%) asbestos as determined using the method specified in Title 40 CFR Part 763, Subpart E, Appendix E, Section 1 "Polarized Light Microscopy," which has been incorporated by reference in Chapter 4, that,

when dry, can be crumbled, pulverized, or reduced to powder by hand pressure. If the asbestos content is less than ten percent (10%) as determined by a method other than point counting by polarized light microscopy (PLM), verify the asbestos content by point counting using PLM.

(18) *Fugitive source* means any source of emissions not controlled by an air pollution control device.

(19) *Glove bag* means a sealed compartment with attached inner gloves used for the handling of asbestos-containing materials. Properly installed and used, glove bags provide a small work area enclosure typically used for small-scale asbestos stripping operations. Information on glove-bag installation, equipment and supplies, and work practices is contained in Title 29 CFR Part 1926, Subpart Z, § 1926.1101 "Asbestos."

(20) *Grinding* means to reduce to powder or small fragments and includes mechanical chipping or drilling.

(21) *In poor condition* means the binding of the material is losing its integrity as indicated by peeling, cracking, or crumbling of the material.

(22) *Inactive waste disposal site* means any disposal site or portion of it where additional asbestos-containing waste material has not been deposited within the past year.

(23) *Installation* means any building or structure or any group of buildings or structures at a single demolition or renovation site that are under the control of the same owner or operator (or owner or operator under common control).

(24) *Leak-tight* means that solids or liquids cannot escape or spill out. It also means dust-tight.

(25) *Malfunction*, for the purposes of Rule 17, means any sudden and unavoidable failure of air pollution control equipment or process equipment or of a process to operate in a normal or usual manner so that emissions of asbestos are increased. Failures of equipment shall not be considered malfunctions if they are caused in any way by poor maintenance, careless operation, or any other preventable upset condition, equipment breakdown, or process failure.

(26) *Manufacturing* means the combining of commercial asbestos—or, in the case of woven friction products, the combining of textiles containing commercial asbestos—with any other material(s), including commercial asbestos, and the processing of this combination into a product. Chlorine production is considered a part of manufacturing.

(27) *Natural barrier* means a natural object that effectively precludes or deters access. Natural barriers include physical obstacles such as cliffs, lakes or other large bodies of water, deep and wide ravines, and mountains. Remoteness by itself is not a natural barrier.

(28) *Nonfriable asbestos-containing material* means any material containing more than one percent (1%) asbestos as determined using the method specified in Title 40 CFR Part 763, Subpart E, Appendix E, Section 1 "Polarized Light Microscopy," which has been incorporated by reference in Chapter 4, that, when dry, cannot be crumbled, pulverized, or reduced to powder by hand pressure.

(29) *Nonscheduled renovation operation* means a renovation operation necessitated by the routine failure of equipment, which is expected to occur within a given period based on past operating experience, but for which an exact date cannot be predicted.

(30) *Outside air* means the air outside buildings and structures, including, but not limited to, the air under a bridge or in an open air ferry dock.

(31) *Owner or operator of a demolition or renovation activity* means any person who owns, leases, operates, controls, or supervises the facility being demolished or renovated or any person who owns, leases, operates, controls, or supervises the demolition or renovation operation, or both.

(32) *Particulate asbestos material* means finely divided particles of asbestos or material containing asbestos.

(33) *Planned renovation operations* means a renovation operation, or a number of such operations, in which some RACM will be removed or stripped within a given period of time and that can be predicted. Individual nonscheduled operations are included if a number of such operations can be predicted to occur during a given period of time based on operating experience.

(34) *Regulated asbestos-containing material (RACM)* means (a) friable material, (b) Category I nonfriable ACM that has become friable, (c) Category I nonfriable ACM that will be or has been subjected to sanding, grinding, cutting, or abrading, or (d) Category II nonfriable ACM that has a high probability of becoming or has become crumbled, pulverized, or reduced to powder by the forces expected to act on the material in the course of demolition or renovation operations regulated by this Rule.

(35) *Remove* means to take out RACM or facility components that contain or are covered with RACM from any facility.

(36) *Renovation* means altering a facility or one (1) or more facility components in any way, including the stripping or removal of RACM from a facility component even if temporary. Operations in which load-supporting structural members are wrecked or taken out are demolitions.

(37) *Resilient floor covering* means asbestos-containing floor tile, including asphalt and vinyl floor tile, and sheet vinyl floor covering containing more than one percent (1%) asbestos as determined using the method specified in Title 40 CFR Part 763, Subpart E, Appendix E, Section 1 "Polarized Light Microscopy," which has been incorporated by reference in Chapter 4.

(38) *Roadways* means surfaces on which vehicles travel. This term includes public and private highways, roads, streets, parking areas, and driveways.

(39) *Strip* means to take off RACM from any part of a facility or facility components.

(40) *Structural member* means any load supporting member of a facility, such as beams and load supporting walls; or any nonload-supporting member, such as ceilings and nonload-supporting walls.

(41) *Visible emissions* means any emissions, which are visually detectable without the aid of instruments, coming from RACM or asbestos-containing waste material, or from any asbestos milling, manufacturing, or fabricating operation. This does not include condensed, uncombined water vapor.

(42) *Waste generator* means any owner or operator of a source covered by this Rule whose act or process produces asbestos-containing waste material.

(43) *Waste shipment record* means the shipping document, required to be originated and signed by the waste generator, used to track and substantiate the disposition of asbestos-containing waste material.

(44) *Working day* means Monday through Friday and includes holidays that fall on any of the days Monday through Friday.

Rule 17.2. Standard for asbestos mills.

(1) Each owner or operator of an asbestos mill shall either discharge no visible emissions to the outside air from that asbestos mill, including fugitive sources, or use the methods specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air.

(2) Each owner or operator of an asbestos mill shall meet the following requirements:

a. Monitor each potential source of asbestos emissions from any part of the mill facility, including air cleaning devices, process equipment, and buildings that house equipment for material processing and handling, at least once a day, during daylight hours, for visible emissions to the outside air during periods of operation. The monitoring shall be by visual observation of at least fifteen (15) seconds duration per source of emissions.

b. Inspect each air cleaning device at least once each week for proper operation and for changes that signal the potential for malfunction, including, to the maximum extent possible without dismantling other than opening the device, the presence of tears, holes, and abrasions in filter bags and for dust deposits on the clean side of bags. For air cleaning devices that cannot be inspected on a weekly basis according to this paragraph, submit to the Director, and revise as necessary, a written maintenance plan to include, at a minimum, the following:

1. Maintenance schedule.

2. Recordkeeping plan.

c. Maintain records of the results of visible emissions monitoring and air cleaning device inspections using a format similar to that shown in Figures 1 and 2 (copies of which shall be maintained in the office of the Chattanooga-Hamilton County Air Pollution Control Board) **OR** (attached hereto and incorporated herein by reference) and include the following:

1. Date and time of each inspection.

2. Presence or absence of visible emissions.

3. Condition of fabric filters, including presence of any tears, holes, and abrasions.

4. Presence of dust deposits on clean side of fabric filters.

5. Brief description of corrective actions taken, including date and time.

6. Daily hours of operation for each air cleaning device.

d. Furnish upon request, and make available at the affected facility during normal business hours for inspection by the Director, all records required under this Rule.

e. Retain a copy of all monitoring and inspection records for at least two (2) years.

f. Submit quarterly a copy of visible emission monitoring records to the Director if visible emissions occurred during the report period. Quarterly reports shall be postmarked by the thirtieth (30th) day following the end of the calendar quarter.

Rule 17.3. Standard for roadways. No person may construct or maintain a roadway with asbestos tailings or asbestos-containing material on that roadway, unless, for asbestos tailings:

(1) It is a temporary roadway on an area of asbestos ore deposits (asbestos mine); or

(2) It is a temporary roadway at an active asbestos mill site and is encapsulated with a resinous or bituminous binder. The encapsulated road surface must be maintained at a minimum frequency of once per year to prevent dust emissions; or

(3) It is encapsulated in asphalt concrete meeting the specifications contained in section 401 of Standard Specifications for Construction of Roads and Bridges on Federal Highway Projects, FP-85, 1985, or their equivalent.

Rule 17.4. Standards for manufacturing.

(1) *Applicability.* This standard applies to the following manufacturing operations using commercial asbestos:

a. The manufacture of cloth, cord, wicks, tubing, tape, twine, rope, thread, yarn, roving, lap, or other textile materials;

b. The manufacture of cement products;

c. The manufacture of fireproofing and insulating materials;

d. The manufacture of friction products;

e. The manufacture of paper, millboard, and felt;

f. The manufacture of floor tile;

g. The manufacture of paints, coatings, caulks, adhesives, and sealants;

h. The manufacture of plastics and rubber materials;

i. The manufacture of chlorine utilizing asbestos diaphragm technology;

j. The manufacture of shotgun shell wads; and

k. The manufacture of asphalt concrete.

(2) *Standard.* Each owner or operator of any of the manufacturing operations to which Rule 17.4 applies shall:

a. Either discharge no visible emissions to the outside air from these operations or from any building or structure in which they are conducted or from any other fugitive sources; or

b. Use the methods specified by Rule 17.12 to clean emissions from these operations containing particulate asbestos material before they escape to, or are vented to, the outside air; and shall also

c. Monitor each potential source of asbestos emissions from any part of the manufacturing facility, including air cleaning devices, process equipment, and buildings housing material processing and handling equipment, at least once each day during daylight hours for visible emissions to the outside air during periods of operation. The monitoring shall be by visual observation of at least fifteen (15) seconds duration per source of emissions.

d. Inspect each air cleaning device at least once each week for proper operation and for changes that signal the potential for malfunctions, including, to the maximum extent possible without dismantling other than opening the device, the presence of tears, holes, and abrasions in filter bags and for dust deposits on the clean side of bags. For air cleaning devices that cannot be inspected on a weekly basis according to this paragraph, submit to the Director, and revise as necessary, a written maintenance plan to include, at a minimum, the following:

1. Maintenance schedule; and

2. Recordkeeping plan.

e. Maintain records of the results of visible emission monitoring and air cleaning device inspections using a format similar to that shown in Figures 1 and 2 and include the following:

1. Date and time of each inspection;

2. Presence or absence of visible emissions;

3. Condition of fabric filters, including presence of any tears, holes and abrasions;

4. Presence of dust deposits on clean side of fabric filters;

5. Brief description of corrective actions taken, including date and time; and

6. Daily hours of operation for each air cleaning device.

f. Furnish, upon request, and make available at the affected facility during normal business hours for inspection by the Director or a representative of the Director, all records required under Rule 17.4.

g. Retain a copy of all monitoring and inspection records for at least two (2) years.

h. Submit quarterly a copy of the visible emission monitoring records to the Director if visible emissions occurred during the reporting period. Quarterly reports shall be postmarked by the thirtieth (30th) day following the end of the calendar quarter.

Rule 17.5. Standard for demolition and renovation.

(1) *Applicability.* To determine which requirements of paragraphs (1), (2), and (3) of Rule 17.5 apply to the owner or operator of a demolition or renovation activity and prior to the commencement of the demolition or renovation, the owner or operator is required to have the affected facility or part of the facility where the demolition or renovation operation will occur thoroughly inspected for the presence of asbestos, including Category I and Category II nonfriable ACM. Any asbestos survey conducted by or for the owner or operator to determine the applicability of Rule 17.5 shall be conducted by a qualified person who has complied with the training requirements of paragraph (3)h. The requirements of paragraphs (2) and (3) of Rule 17.5 apply to each owner or operator of a demolition or renovation activity, including the removal of RACM as follows:

a. In a facility being demolished, all the requirements of paragraphs (2) and (3) of this section apply, except as provided in paragraph (1)(c) of Rule 17.5, if the combined amount of RACM is:

1. At least eighty (80) linear meters (two hundred sixty (260) linear feet) on pipes or at least fifteen (15) square meters (one hundred sixty (160) square feet) on other facility components, or

2. At least one (1) cubic meter (thirty-five (35) cubic feet) removed from facility components where the length or area could not be measured previously.

b. In a facility being demolished, only the notification requirements of paragraphs (2)a., (2)b., (2)c.,1. and 4., and (2)d.1. through 7. and 9. through 16. of Rule 17.5 apply, if the combined amount of RACM is

1. Less than eighty (80) linear meters (two hundred sixty (260) linear feet) on pipes and less than fifteen (15) square meters (one hundred sixty (160) square feet) on other facility components, and

2. Less than one (1) cubic meter (thirty-five (35) cubic feet) removed from facility components where the length or area could not be measured previously or there is no asbestos.

These notification requirements apply to all demolition projects, even if no RACM has been identified by the owner or operator.

c. If the facility is being demolished under an order of a State or local government agency, issued because the facility is structurally unsound and in danger of imminent collapse, only the requirements of paragraphs (2)a., (2)b., (2)c.3, (2)d. (except (2)d.8), and (3)d. through i. of Rule 17.5 apply.

d. In a facility being renovated, including any individual nonscheduled renovation operation, all the requirements of paragraphs (2) and (3) of Rule 17.5 apply if the combined amount of RACM to be stripped, removed, dislodged, cut, drilled, or similarly disturbed is

1. At least eighty (80) linear meters (two hundred sixty (260) linear feet) on pipes or at least fifteen (15) square meters (one hundred sixty (160) square feet) on facility components, or

2. At least one (1) cubic meter (thirty-five (35) cubic feet) removed from facility components where the length or area could not be measured previously.

3. To determine whether paragraph (1)d. of Rule 17.5 applies to planned renovation operations involving individual nonscheduled operations, predict the combined additive amount of RACM to be removed or stripped during a calendar year of January 1 through December 31.

4. To determine whether paragraph (1)d. of Rule 17.5 applies to emergency renovation operations, estimate the combined amount of RACM to be removed or stripped as a result of the sudden, unexpected event that necessitated the renovation.

e. *Courtesy notification.* The owner or operator of a renovation activity at any facility being renovated that is not described in paragraph (1)d. of Rule 17.5 shall provide the Director with a written courtesy notification on a form specified by the Director and available from the Bureau before any renovation activity begins. None of the requirements of paragraphs (2) and (3) of Rule 17.5 are applicable to such renovations. A fee of two hundred dollars ($200.00) shall be included with the notification, which fee shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board.

(2) *Notification requirements.* Each owner or operator of a demolition or renovation activity to which Rule 17.5 applies shall:

a. Provide the Director with written notice of intention to demolish or renovate on a form specified by the Director and available from the Bureau. In addition, Section 4-8(f) contains requirements for building demolition or renovation permits and related permit fees, including requirements applicable to all demolition projects and to certain renovation projects.

b. Update the notice, as necessary, including when the amount of asbestos affected changes by at least twenty percent (20%).

c. Assure receipt by the Director of written notice as follows:

1. At least ten (10) working days before asbestos stripping or removal work or any other activity begins (such as site preparation that would break up, dislodge or similarly disturb asbestos material), if the operation is described in paragraphs (1)a. and d. (except (1)d.3. and (1)d.4.) of Rule 17.5.

2. At least ten (10) working days before any demolition operation described in paragraph (1)b. begins.

3. At least thirty (30) working days before the end of the calendar year preceding the year for which notice is being given for renovations described in paragraph (1)d.3. of Rule 17.5.

4. As early as possible before, but not later than the following working day, if the operation is a demolition according to paragraph (1)c. of Rule 17.5 or if the operation is a renovation described in paragraph (1)d.4. of Rule 17.5.

5. For asbestos stripping or removal work in a demolition or renovation operation, described in paragraphs (1)a. or (1)d. (except (1)d.3. and (1)d.4.) of Rule 17.5, and for

a demolition described in paragraph (1)b. of Rule 17.5, that will begin on a date other than the one contained in the original notice, notice of the new start date must be provided to the Director as follows:

(i) When the asbestos stripping or removal operation or demolition operation covered by Rule 17.5 will begin after the date contained in the notice, the Director shall be notified of the new start date as soon as possible before, and no later than, the original start date.

(ii) When the asbestos stripping or removal operation or demolition operation covered by Rule 17.5 will begin on a date earlier than the date contained in the notice, the Director shall be notified of the new start date at least ten (10) working days before the asbestos stripping or removal operation or demolition operation begins.

d. Include the following in the notice:

1. An indication of whether the notice is the original or a revised notification;
2. Name, address, and telephone number of the facility owner or operator and the asbestos removal contractor (if applicable) and/or the demolition contractor (if applicable);
3. Type of operation:
   (i) Demolition without friable asbestos present;
   (ii) Demolition with friable asbestos present;
   (iii) Removal of friable asbestos without demolition;
   (iv) Emergency demolition;
   (v) Court ordered demolition; or
   (vi) Other;
4. Description of the facility or affected part of the facility including the size (square meters [square feet] and number of floors), age, and present and prior use of the facility;
5. (Reserved)
6. Estimate of the approximate amount of RACM to be removed from the facility in terms of length of pipe in linear meters (linear feet), surface area in square meters (square feet) on other facility components, or volume in cubic meters (cubic feet) if off the facility components. Also, estimate the approximate amount of Category I and Category II nonfriable ACM in the affected part of the facility that will not be removed before demolition;
7. Location and street address (including city and building number or name and floor or room number, if appropriate) of the facility being demolished or renovated;
8. Scheduled starting and completion dates of asbestos work (or any other activity, such as site preparation that would break up, dislodge, or similarly disturb asbestos material) in a demolition or renovation; planned renovation operations involving individual nonscheduled operations shall only include the beginning and ending dates of the report period as described in paragraph (1)d.3. of Rule 17.5;
9. Scheduled starting and completion dates of demolition or renovation;
10. (Reserved)
11. (Reserved)

12. Name and location of the waste disposal site where the asbestos-containing waste material will be deposited;
13. On and after January 1, 1993, a certification that at least one (1) person trained as required by paragraph (3)h. of Rule 17.5 will supervise the stripping and removal described by this notification;
14. For facilities described in paragraph (1)c. of Rule 17.5, the name, title, and authority of the State or local government representative who has ordered the demolition, the date that the order was issued, and the date on which the demolition was ordered to begin or was ordered to be completed. A copy of the order shall be attached to the notification;
15. For emergency renovations described in paragraph (1)d.4. of Rule 17.5, the date and hour that the emergency occurred, a description of the sudden, unexpected event, and an explanation of how the event caused an unsafe condition, or would cause equipment damage or an unreasonable financial burden;
16. Description of procedures to be followed in the event that unexpected RACM is found or Category II nonfriable ACM becomes crumbled, pulverized, or reduced to powder;
17. Name, address, and telephone number of the waste transporter; and
18. Attach any required asbestos survey, including a diagram showing the location of all identified ACM.

(3) *Procedures for asbestos emission control.* Each owner or operator of a demolition or renovation activity to whom Rule 17.5 applies, according to paragraph (1) of Rule 17.5, shall comply with the following procedures:

a. Remove all RACM from a facility being demolished or renovated before any activity begins that would break up, dislodge, or similarly disturb the material or preclude access to the material for subsequent removal. RACM need not be removed before demolition if:
   1. It is Category I nonfriable ACM that is not in poor condition and is not friable;
   2. It is on a facility component that is encased in concrete or other similarly hard material and is adequately wet whenever expected during demolition;
   3. It was not accessible for testing and was, therefore, not discovered until after demolition began and, as a result of the demolition, the material cannot be safely removed. If not removed for safety reasons, the exposed RACM and any asbestos-contaminated debris must be treated as asbestos-containing waste material and adequately wet at all times until disposed of; or
   4. It is Category II nonfriable ACM and the probability is low that the materials will become crumbled, pulverized, or reduced to powder during demolition.

b. When a facility component that contains, is covered with, or is coated with RACM is being taken out of the facility as a unit or in sections:
   1. Adequately wet all RACM exposed during cutting or disjoining operations; and
   2. Carefully lower each unit or section to the floor and to ground level, not dropping, throwing, sliding, or otherwise damaging or disturbing the RACM.

c. When RACM is stripped from a facility component while it remains in place in the facility, adequately wet the RACM during the stripping operation.
   1. In renovation operations, wetting is not required if:
      (i) The owner or operator has obtained prior written approval from the Director based on a written application that wetting to comply with this paragraph would unavoidably damage equipment or present a safety hazard; and

(ii) The owner or operator uses one (1) of the following emission control methods:

(A) A local exhaust ventilation and collection system designed and operated to capture the particulate asbestos material produced by the stripping and removal of the asbestos materials. The system must exhibit no visible emissions to the outside air or be designed and operated in accordance with the requirements in Rule 17.12;

(B) A glove-bag system designed and operated to contain particulate asbestos material produced by the stripping of the materials; or

(C) Leak-tight wrapping to contain all RACM prior to dismantlement.

2. In renovation operations where wetting would result in equipment damage or a safety hazard, and the methods allowed in paragraph (3)c.1. of Rule 17.5 cannot be used, another method may be used after written approval from the Director based upon a determination that it is equivalent to wetting in controlling emissions or to the methods allowed in paragraph (3)c.1. of Rule 17.5.

3. A copy of the Director's written approval shall be kept at the worksite and made available for inspection.

d. After a facility component covered with, coated with, or containing RACM has been taken out of the facility as a unit or in sections pursuant to paragraph (3)b. of Rule 17.5, it shall be stripped or contained in leak-tight wrapping, except as described in paragraph (3)e. of Rule 17.5. If stripped, either:

1. Adequately wet the RACM during stripping; or

2. Use a local exhaust ventilation and collection system designed and operated to capture the particulate asbestos material produced by the stripping. The system must exhibit no visible emissions to the outside air or be designed and operated in accordance with the requirements in Rule 17.12.

e. For large facility components such as reactor vessels, large tanks, and steam generators, but not beams (which must be handled in accordance with paragraphs (3)b., c., and d. of Rule 17.5), the RACM is not required to be stripped if the following are met:

1. The component is removed, transported, stored, disposed of, or reused without disturbing or damaging the RACM;

2. The component is encased in a leak-tight wrapping; and

3. The leak-tight wrapping is labeled according to Rule 17.9 (4)a.1., and 3. during all loading and unloading operations and during storage.

f. For all RACM, including material that has been removed or stripped:

1. Adequately wet the material and ensure that it remains wet until collected and contained or treated in preparation for disposal in accordance with Rule 17.10;

2. Carefully lower the material to the ground and floor, not dropping, throwing, sliding, or damaging or disturbing the material;

3. Transport the material to the ground via leak-tight chutes or containers if it has been removed or stripped more than fifty (50) feet above ground level and was not removed as units or in sections;

4. RACM contained in leak-tight wrapping that has been removed in accordance with paragraphs (3)d. and (3)c.1.(ii)(c) of Rule 17.5 need not be wetted.

g. When the temperature at the point of wetting is below zero degrees (0°) Celsius (thirty-two degrees (32°) Fahrenheit):

1. The owner or operator need not comply with paragraph (3)b.1. and the wetting provisions of paragraph (3)c. of Rule 17.5.

2. The owner or operator shall remove facility components containing, coated with, or covered with RACM as units or in sections to the maximum extent possible.

3. During periods when wetting operations are suspended due to freezing temperatures, the owner or operator must record the temperature in the area containing the facility components at the beginning, middle, and end of each workday and keep daily temperature records available for inspection by the Director during normal business hours at the demolition or renovation site. The owner or operator shall retain the records for at least two (2) years.

h. On and after January 1, 1993, no RACM shall be stripped, removed, or otherwise handled or disturbed at a facility regulated by Rule 17.5 unless at least one on-site representative, such as a foreman or management-level person or other authorized representative, trained in the provisions of Rule 17.5 and the means of complying with them, is present. Every two (2) years, the trained on-site individual shall receive refresher training in the provisions of Rule 17.5. The required training shall include as a minimum: applicability; notifications; material identification; control procedures for removals including, at least, wetting, local exhaust ventilation, negative pressure enclosures, glove-bag procedures, and High Efficiency Particulate Air (HEPA) filters; waste disposal work practices; reporting and recordkeeping; and asbestos hazards and worker protection. Evidence that the required training has been completed shall be posted and made available for inspection by the Director at the demolition or renovation site.

i. For facilities described in paragraph (1)c. of Rule 17.5, adequately wet the portion of the facility that contains RACM during the operation.

j. If a facility is demolished by intentional burning, all RACM including Category I and Category II nonfriable ACM must be removed in accordance with Rule 17.5 before burning.

k. Any person conducting an asbestos survey or engaged in the removal of asbestos at a facility within Tennessee is required to be in possession of either a valid and appropriate asbestos accreditation certificate or valid and appropriate asbestos accreditation photo identification card as issued by the State of Tennessee in accordance with Chapter 1200-01-20 "Asbestos Accreditation Requirements" of the Rules of the Tennessee Department of Health and Tennessee Department of Environment and Conservation. Such accreditation certificate or identification card shall be made available for inspection by representatives or designees of the Director upon request at the facility.

Rule 17.6. Standard for spraying. The owner or operator of an operation in which asbestos-containing materials are spray applied shall comply with the following requirements:

(1) For spray-on application on buildings, structures, pipes, and conduits, do not use material containing more than one percent (1%) asbestos as determined using the method specified in Title 40 CFR Part 763, Subpart E, Appendix E, Section 1 "Polarized Light Microscopy," which has been incorporated by reference in Chapter 4, except as provided in paragraph (3) of Rule 17.6.

(2) For spray-on application of materials that contain more than one percent (1%) asbestos as determined using the method specified in Title 40 CFR Part 763, Subpart E, Appendix E, Section 1 "Polarized Light Microscopy," which has been incorporated by reference in Chapter 4, on equipment and machinery, except as provided in paragraph (3) of Rule 17.6:

a. Notify the Director at least twenty (20) days before beginning the spraying operation. Include the following information in the notice:

1. Name and address of owner or operator;

2. Location of spraying operation;

3. Procedures to be followed to meet the requirements of this paragraph.

b. Discharge no visible emissions to the outside air from spray-on application of the asbestos-containing material or use the methods specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air.

(3) The requirements of paragraphs (1) and (2) of Rule 17.6 do not apply to the spray-on application of materials where the asbestos fibers in the materials are encapsulated with a bituminous or resinous binder during spraying and the materials are not friable after drying.

Rule 17.7. Standards for fabricating.

(1) *Applicability.* This rule applies to the following fabricating operations using commercial asbestos:

a. The fabrication of cement building products;

b. The fabrication of friction products, except those operations that primarily install asbestos friction materials on motor vehicles; and

c. The fabrication of cement or silicate board for ventilation hoods; ovens; electrical panels; laboratory furniture, bulkheads, partitions, and ceilings for marine construction; and flow control devices for the molten metal industry.

(2) *Standard.* Each owner or operator of any of the fabricating operations to which Rule 17.7 applies shall either:

a. Either discharge no visible emissions to the outside air from any of the operations or from any building or structure in which they are conducted or from any other fugitive sources; or

b. Use the methods specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air; and shall also

c. Monitor each potential source of asbestos emissions from any part of the fabricating facility, including air cleaning devices, process equipment, and buildings that house equipment for material processing and handling, at least once each day, during daylight hours, for visible emissions to the outside air during periods of operation. The monitoring shall be by visual observation of at least fifteen (15) second duration per source of emissions.

d. Inspect each air cleaning device at least once each week for proper operation and for changes that signal the potential for malfunctions, including, to the maximum extent possible without dismantling other than opening the device, the presence of tears, holes, and abrasions in filter bags and for dust deposits on the clean side of bags. For air cleaning devices that cannot be inspected on a weekly basis according to this paragraph, submit to the Director, and revise as necessary, a written maintenance plan to include, at a minimum, the following:

1. Maintenance schedule; and

2. Recordkeeping plan.

e. Maintain records of the results of visible emission monitoring and air cleaning device inspections using a format similar to that shown in Figures 1 and 2 and include the following:

1. Date and time of each inspection;
2. Presence or absence of visible emissions;
3. Condition of fabric filters, including presence of any tears, holes, and abrasions;
4. Presence of dust deposits on clean side of fabric filters;
5. Brief description of corrective actions taken, including date and time; and
6. Daily hours of operation for each air cleaning device.

f. Furnish upon request and make available at the affected facility during normal business hours for inspection by the Director, all records required under Rule 17.7.

g. Retain a copy of all monitoring and inspection records for at least two (2) years.

h. Submit quarterly a copy of the visible emission monitoring records to the Director if visible emissions occurred during the report period. Quarterly reports shall be postmarked by the thirtieth (30th) day following the end of the calendar quarter.

Rule 17.8. Standard for insulating materials. No owner or operator of a facility may install or reinstall on a facility component any insulating materials that contain commercial asbestos if the materials are either molded and friable or wet-applied and friable after drying. The provisions of Rule 17.8 do not apply to spray-applied insulating materials regulated under Rule 17.6.

Rule 17.9. Standard for waste disposal for asbestos mills. Each owner or operator of any source covered under the provisions of Rule 17.2 shall:

(1) Deposit all asbestos-containing waste material at a waste disposal site operated in accordance with the provisions of Rule 17.14; and

(2) Discharge no visible emissions to the outside air from the transfer of control device asbestos waste to the tailings conveyor, or use the method specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air. Dispose of the asbestos waste from control devices in accordance with Rule 17.10 or paragraph (3) of Rule 17.9; and

(3) Discharge no visible emissions to the outside air during the collection, processing, packaging, or on-site transporting of any asbestos-containing waste material, or use one (1) of the disposal methods specified in paragraphs (3)a. or b. of Rule 17.9, as follows:

a. Use a wetting agent as follows:

1. Adequately mix all asbestos-containing waste material with a wetting agent recommended by the manufacturer of the agent to effectively wet dust and tailings, before depositing the material at a waste disposal site. Use the agent as recommended for the particular dust by the manufacturer of the agent.
2. Discharge no visible emissions to the outside air from the wetting operation or use the methods specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air.
3. Wetting may be suspended when the ambient temperature at the waste disposal site is less than minus nine and one-half degrees (-9.5°) Celsius (fifteen degrees (15°) Fahrenheit), as determined by an appropriate measurement method with an accuracy of ± one degree (1°) Celsius (± two degrees (2°) Fahrenheit). During periods when

wetting operations are suspended, the temperature must be recorded at least at hourly intervals, and records must be retained for at least two (2) years in a form suitable for inspection.

b. Use an alternative emission control and waste treatment method that has received prior written approval by the Administrator of the U.S. Environmental Protection Agency pursuant to 40 CFR 61.149(c)(2). The owner or operator shall provide the Director with a photocopy of the written approval. To obtain approval for an alternative method, a written application must be submitted to the Director demonstrating that the following criteria are met:

1. The alternative method will control asbestos emissions equivalent to currently required methods;
2. The suitability of the alternative method for the intended application;
3. The alternative method will not violate other regulations; and
4. The alternative method will not result in increased water pollution, land pollution, or occupational hazards.

(4) When waste is transported by vehicle to a disposal site:

a. Mark vehicles used to transport asbestos-containing waste material during the loading and unloading of the waste so that the signs are visible. The markings must:

1. Be displayed in such a manner and location that a person can easily read the legend;
2. Conform to the following requirements for fifty-one (51) centimeters by thirty-six (36) centimeters (twenty (20) inches by fourteen (14) inches) upright format signs:

   Caution signs. Standard color of the background shall be yellow; and the panel, black with yellow letters. Any letters used against the yellow background shall be black. The colors shall be those of opaque glossy samples as specified in Table 1 of American National Standard Z53.1-1967; and
3. Display the following legend in the lower panel with letter sizes and styles of a visibility at least equal to those specified in Rule 17.9.

Legend	*Notation*
DANGER	2.5 cm (1 inch) Sans Serif Gothic or Block
ASBESTOS DUST HAZARD	2.5 cm (1 inch) Sans Serif Gothic or Block
CANCER AND LUNG DISEASE HAZARD	1.9 cm (3/4 inch) Sans Serif Gothic or Block
Authorized Personnel Only	14 point Gothic

Spacing between any two (2) lines must be at least equal to the height of the upper of the two (2) lines.

b. For off-site disposal, provide a copy of the waste shipment record, described in paragraph (5)a. of Rule 17.9, to the disposal site owner or operator at the same time as the asbestos-containing waste material is delivered to the disposal site.

(5) For all asbestos-containing waste material transported off the facility site:

a. Maintain asbestos waste shipment records, using a form similar to that shown in Figure 3 (a copy of which may be obtained from the Chattanooga-Hamilton County Air Pollution Control Board) **OR** (a copy of which is attached hereto and incorporated herein by reference), and include the following information:

1. The name, address, and telephone of the waste generator;
2. The name and address of the local, State, or EPA Regional agency responsible for administering the asbestos NESHAP program;
3. The quantity of the asbestos-containing material in cubic meters (cubic yards);
4. The name and telephone number of the disposal site operator;
5. The name and physical site location of the disposal site;
6. The date transported;
7. The name, address, and telephone number of the transporter(s); and
8. A certification that the contents of this consignment are fully and accurately described by proper shipping name and are classified, packed, marked, and labeled, and are in all respects in proper condition for transport by highway according to applicable international and government regulations.

b. For waste shipments where a copy of the waste shipment record, signed by the owner or operator of the designated disposal site, is not received by the waste generator within thirty-five (35) days of the date the waste was accepted by the initial transporter, contact the transporter and/or the owner or operator of the designated disposal site to determine the status of the waste shipment.

c. Report in writing to the Director and also to any other officer or agency where required by local, state, or federal law covering the waste generator if a copy of the waste shipment record, signed by the owner or operator of the designated waste disposal site, is not received by the waste generator within forty-five (35) days of the date the waste was accepted by the initial transporter. Include in the report the following information:

1. A copy of the waste shipment record for which a confirmation of delivery was not received, and
2. A cover letter signed by the waste generator explaining the efforts taken to locate the asbestos waste shipment and the results of those efforts.

d. Retain a copy of all waste shipment records, including a copy of the waste shipment record signed by the owner or operator of the designated waste disposal site, for at least two (2) years.

(6) Furnish upon request, and make available for inspection by the Director, all records required under Rule 17.9.

Rule 17.10. Standard for waste disposal for manufacturing, fabricating, demolition, renovation, and spraying operations. Each owner or operator of any source covered under the provisions of Rules 17.4, 17.5, 17.6, and 17.7 shall comply with the following provisions:

(1) Discharge no visible emissions to the outside air during the collection, processing (including incineration), packaging, or transporting of any asbestos-containing waste material generated by the source, or use one (1) of the emission control and waste treatment methods specified in paragraphs (1)a. through d. of Rule 17.10.

a. Adequately wet asbestos-containing waste material as follows:

1. Mix control device asbestos waste to form a slurry; adequately wet other asbestos-containing waste material; and

2. Discharge no visible emissions to the outside air from collection, mixing, wetting, and handling operations, or use the methods specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air; and

3. After wetting, seal all asbestos-containing waste material in leak-tight containers while wet; or, for materials that will not fit into containers without additional breaking, put materials into leak-tight wrapping; and

4. Label the containers or wrapped materials specified in paragraphs (1)a.3. of Rule 17.10 using warning labels specified by Occupational Safety and Health Standards of the Department of Labor, occupational Safety and Health Administration under 29 CFR 1910.1001(j)(2) or 1926.58(k)(2)(iii). The labels shall be printed in letters of sufficient size and contrast so as to be readily visible and legible.

5. For asbestos-containing waste material to be transported off the facility site, label containers or wrapped materials with the name of the waste generator and the location at which the waste was generated.

b. Process asbestos-containing waste material into nonfriable forms as follows:

1. Form all asbestos-containing waste material into nonfriable pellets or other shapes;

2. Discharge no visible emissions to the outside air from collection and processing operations, including incineration, or use the method specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air.

c. For facilities demolished where the RACM is not removed prior to demolition according to Rule 17.5(3)a.1., 2., 3., and 4. or for facilities demolished according to Rule 17.5(3)i., adequately wet asbestos-containing waste material at all times after demolition and keep wet during handling and loading for transport to a disposal site. Asbestos-containing waste materials covered by Rule 17.10 do not have to be sealed in leak-tight containers or wrapping but may be transported and disposed of in bulk.

d. Use an alternative emission control and waste treatment method that has received prior approval by the Administrator of the U.S. Environmental Protection Agency pursuant to 40 CFR 61.150(a)(4) according to the procedure described in Rule 17.9(3)b. The owner or operator shall provide the Director with a photocopy of the written approval.

e. As applied to demolition and renovation, the requirements of paragraph (1) of Rule 17.10 do not apply to Category I nonfriable ACM waste and Category II nonfriable ACM waste that did not become crumbled, pulverized, or reduced to powder.

(2) All asbestos-containing waste material shall be deposited as soon as is practical by the waste generator at:

a. A waste disposal site operated in accordance with the provisions of Rule 17.14 or

b. An EPA-approved site that converts RACM and asbestos-containing waste material into nonasbestos (asbestos-free) material according to the provisions of Rule 17.15.

c. The requirements of paragraph (2) of Rule 17.10 do not apply to Category I nonfriable ACM that is not RACM.

(3) Mark vehicles used to transport asbestos-containing waste material during the loading and unloading of waste so that the signs are visible. The markings must conform to the requirements of Rule 17.9(4)a.1., 2., and 3.

(4) For all asbestos-containing waste material transported off the facility site:

a. Maintain waste shipment records, using a form similar to that shown in Figure 3, and include the following information:

1. The name, address, and telephone number of the waste generator;

2. The name and address of the local, State, or EPA Regional office responsible for administering the asbestos NESHAP program;

3. The approximate quantity in cubic meters (cubic yards);

4. The name and telephone number of the disposal site operator;

5. The name and physical site location of the disposal site;

6. The date transported;

7. The name, address, and telephone number of the transporter; and

8. A certification under oath that the contents of this consignment are fully and accurately described by proper shipping name and are classified, packed, marked, and labeled, and are in all respects in proper condition for transport by highway according to applicable international and government regulations.

b. Provide a copy of the waste shipment record, described in paragraph (4)a. of Rule 17.10, to the disposal site owners or operators at the same time as the asbestos-containing waste material is delivered to the site.

c. For waste shipments where a copy of the waste shipment record, signed by the owner or operator of the designated site, is not received by the waste generator within thirty-five (35) days of the date the waste was accepted by the initial transporter, contact the transporter and/or the owner or operator of the designated disposal site to determine the status of the waste shipment.

d. Report in writing to the Director and also to any other officer or agency where required by local, state, or federal law covering the waste generator if a copy of the waste shipment record, signed by the owner or operator of the designated waste disposal site, is not received by the waste generator within forty-five (35) days of the date the waste was accepted by the initial transporter. Include in the report the following information:

1. A copy of the waste shipment record for which a confirmation of delivery was not received, and

2. A cover letter signed by the waste generator explaining the efforts taken to locate the asbestos waste shipment and the results of those efforts.

e. Retain a copy of all waste shipment records, including a copy of the waste shipment record signed by the owner or operator of the designated waste disposal site, for at least two (2) years.

(5) Furnish upon request, and make available for inspection by the Director, all records required under Rule 17.10.

Rule 17.11. Standard for inactive waste disposal sites for asbestos mills and manufacturing and fabricating operations. Each owner or operator of any inactive waste disposal site that was operated by sources covered under Rules 17.2, 17.4, or 17.7 and received deposits of asbestos-containing waste material generated by the sources, shall:

(1) Comply with one (1) of the following:

a. Either discharge no visible emissions to the outside air from an inactive waste disposal site subject to this paragraph; or

b. Cover the asbestos-containing waste material with at least fifteen (15) centimeters (six (6) inches) of compacted nonasbestos-containing material, and grow and maintain a cover of vegetation on the area adequate to prevent exposure of the asbestos-containing waste material. In any chert area where vegetation is impossible to maintain, at least eight (8) additional centimeters (three (3) inches) of well-graded, nonasbestos crushed rock may be placed on top of the chert and maintained to prevent emissions; or

c. Cover the asbestos-containing waste with at least sixty (60) centimeters (two (2) feet) of compacted nonasbestos-containing material, and maintain it to prevent the exposure of the asbestos-containing waste; or

d. For inactive waste disposal sites for asbestos tailings, a resinous or petroleum-based dust suppression agent that effectively binds dust to control surface air emissions may be used instead of the methods in paragraphs (1)a., b., and c. of Rule 17.11. Use the agent in the manner and frequency recommended for the particular asbestos tailings by the manufacturer of the dust suppression agent to achieve and maintain dust control, obtain prior written approval of the Director to use other equally effective dust suppression agents. For purposes of Rule 17.11, any used, spent, or other waste oil is not considered a dust suppression agent.

(2) Unless a natural barrier adequately deters access by the general public, install and maintain warning signs and fencing as follows, or comply with paragraph (1)b. or (1)c. of Rule 17.11.

a. Display warning signs at all entrances and at intervals of 100 m (328 feet) or less along the property line of the site or along the perimeter of the sections of the site where asbestos-containing waste material was deposited. The warning signs must:

1. Be posted in such a manner and location that a person can easily read the legend; and

2. Conform to the following requirements for fifty-one (51) centimeters by thirty-six (36) centimeters (twenty (20) inches by fourteen (14) inches) upright format: signs specified in 29 CFR 1910.145(d);

Caution signs. Standard color of the background shall be yellow; and the panel, black with yellow letters. Any letters used against the yellow background shall be black. The colors shall be those of opaque glossy samples as specified in Table 1 of American National Standard Z53.1-1967; and

3. Display the following legend in the lower panel with letter sizes and styles of a visibility at least equal to those specified in this paragraph.

Legend	*Notation*
ASBESTOS WASTE DISPOSAL SITE	2.5 cm (1 inch) Sans Serif Gothic or Block
DO NOT CREATE DUST	1.9 cm (3/4 inch) Sans Serif Gothic or Block
BREATHING ASBESTOS IS HAZARDOUS TO YOUR HEALTH	14 point Gothic

Spacing between any two (2) lines must be at least equal to the height of the upper of the two (2) lines.

b. Fence the perimeter of the site in a manner adequate to deter access by the general public.

c. When requesting a determination on whether a natural barrier adequately deters public access, supply information enabling the Director to determine whether a fence or a natural barrier adequately deters access by the general public.

(3) The owner or operator may use an alternative control method that has received prior approval of the Administrator of the U.S. Environmental Protection Agency pursuant to 40 CFR 61.151(c) rather than comply with the requirements of paragraph (1) or (2) of Rule 17.11. The owner or operator shall provide the Director with a photocopy of the written approval.

(4) Notify the Director in writing at least forty-five (35) days prior to excavating or otherwise disturbing any asbestos-containing waste material that has been deposited at a waste disposal site under Rule 17.11, and follow the procedures specified in the notification. If the excavation will begin on a date other than the one (1) contained in the original notice, notice of the new start date must be provided to the Director at least ten (10) working days before excavation begins and in no event shall excavation begin earlier than the date specified in the original notification. Include the following information in the notice:

a. Scheduled starting and completion dates;

b. Reason for disturbing the waste;

c. Procedures to be used to control emissions during the excavation, storage, transport, and ultimate disposal of the excavated asbestos-containing waste material. If deemed necessary, the Director may require changes in the emission control procedures to be used; and

d. Location of any temporary storage site and the final disposal site.

(5) On or before the site becomes inactive, record, in accordance with State law, an instrument in the chain of title of the facility property that would normally be examined in a title search, that will in perpetuity notify any potential purchaser of the property that:

a. The land has been used for the disposal of asbestos-containing waste material;

b. The survey plot and record of the location and quantity of asbestos-containing waste disposed of within the disposal site required in Rule 17.14(6) have been filed with the Director; and

c. The site is subject to 40 CFR part 61, subpart M.

Rule 17.12. Air cleaning.

(1) The owner or operator who uses air cleaning, as specified in Rules 17.2(1); 17.4(2)b.; 17.5(3)c.1.(ii)(A); 17.5(3)d.2.; 17.6(2)b.; 17.7(2)b.; 17.9(2); 17.9(3)a.2.; 17.10(1)a.2.; 17.10(1)b.2.; and 17.15(5) shall:

a. Use fabric filter collection devices, except as noted in paragraph (b) of Rule 17.12, doing all of the following:

1. Ensuring that the airflow permeability, as determined by ASTM Method D737-75, does not exceed 9 $m^3/min/m^2$ (30 $ft^3/min/ft^2$) for woven fabrics or $11^3/min/m^2$ (35 $ft^3/min/ft^2$) for felted fabrics, except that 12 $m^3/min/m^2$ (40 $ft^3/min/ft^2$) for woven and 14 $m^3/min/m^2$ (45 $ft^3/min/ft^2$) for felted fabrics is allowed for filtering air from asbestos ore dryers; and

2. Ensuring that felted fabric weighs at least four hundred seventy-five (475) grams per square meter (fourteen (14) ounces per square yard) and is at least one and six-tenths (1.6) millimeter (one-sixteenth ($^1/_{16}$) inch) thick throughout; and

3. Avoiding the use of synthetic fabrics that contain fill yarn other than that which is spun.

b. Properly install, use, operate, and maintain all air-cleaning equipment authorized by Rule 17.12. Bypass devices may be used only during upset or emergency conditions and then only for so long as it takes to shut down the operation generating the particulate asbestos material.

c. For fabric filter collection devices, provide for easy inspection for faulty bags.

(2) There are the following exceptions to paragraph (1)a.:

a. If the use of fabric creates a fire or explosion hazard, or the Director determines that a fabric filter is not feasible, the Director may authorize as a substitute the use of wet collectors designed to operate with a unit contacting energy of at least nine and ninety-five-hundredths (9.95) kilopascals (forty (40) inches water gage pressure).

b. Use a HEPA filter that is certified to be at least ninety-nine and ninety-seven-hundredths (99.97) percent efficient for three-tenths (0.3) micron particles.

c. The Administrator of the U.S. Environmental Protection Agency pursuant to 40 CFR 61.152(b)(3) may authorize the use of filtering equipment other than described in paragraphs (1)a. and (2)a. and b. of Rule 17.13 if the owner or operator demonstrates to the Administrator's satisfaction that it is equivalent to the described equipment in filtering particulate asbestos material. The owner or operator shall provide the Director with a photocopy of the written authorization.

Rule 17.13. Reporting.

(1) Any new source to which Rule 17 applies (with the exception of sources subject to Rules 17.3, 17.5, 17.6, and 17.8) which has an initial startup date preceding the effective date of this revision, shall provide the following information to the Director delivered within ninety (90) days of the effective date. In the case of a new source that does not have an initial startup date preceding the effective date, the information shall be delivered within ninety (90) days of the initial startup date. Any owner or operator of an existing source shall deliver the following information to the Director within ninety (90) days of the effective date of this subpart unless the owner or operator of the existing source has previously provided this information to the Director. Any changes in the information provided by any existing source shall be delivered to the Director within thirty (30) days after the change. Facsimile transmission is not acceptable.

a. A description of the emission control equipment used for each process; and

1. If the fabric device uses a woven fabric, the airflow permeability in $m^3/min/m^2$ and; if the fabric is synthetic, whether the fill yarn is spun or not spun; and

2. If the fabric filter device uses a felted fabric, the density in g/m^2, the minimum thickness in inches, and the airflow permeability in $m^3/min/m^2$.

b. If a fabric filter device is used to control emissions,

1. The airflow permeability in $m^3/min/m^2$ ($ft^3/min/ft^2$) if the fabric filter device uses a woven fabric, and, if the fabric is synthetic, whether the fill yarn is spun or not spun; and

2. If the fabric filter device uses a felted fabric, the density in g/m^2 (oz/yd^2), the minimum thickness in millimeters (inches), and the airflow permeability in $m^3/min/m^2$ ($ft^3/min/ft^2$).

c. If a HEPA filter is used to control emissions, the certified efficiency.

d. For sources subject to Rules 17.9 and 17.10:

1. A brief description of each process that generates asbestos-containing waste material; and

2. The average volume of asbestos-containing waste material disposed of, measured in m^3/day (yd^3/day); and

3. The emission control methods used in all stages of waste disposal; and

4. The type of disposal site or incineration site used for ultimate disposal, the name of the site operator, and the name and location of the disposal site.

e. For sources subject to Rules 17.11 and 17.14:

1. A brief description of the site; and

2. The method or methods used to comply with the standard, or alternative procedures to be used.

(2) The information required by Rule 17.13(1) must accompany the information submitted to the Administrator of U.S. EPA pursuant to Title 40 CFR Part 61, Subpart A, § 61.10 "Source reporting and waiver request," which has been incorporated by reference in Chapter 4. Active waste disposal sites subject to Rule 17.14 shall also comply with this provision. The information described in Rule 17.13 must be reported using the format required by the Bureau.

Rule 17.14. Standard for active waste disposal sites. Each owner or operator of an active waste disposal site that receives asbestos-containing waste material from a source covered under Rules 17.9, 17.10, or 17.15 shall meet the requirements of this rule:

(1) Either there must be no visible emissions to the outside air from any active waste disposal site where asbestos-containing waste material has been deposited, or the requirements of paragraph (3) or (4) of Rule 17.14 must be met.

(2) Unless a natural barrier adequately deters access by the general public, either warning signs and fencing must be installed and maintained as follows, or the requirements of paragraph (3)a. of Rule 17.14 must be met.

a. Warning signs must be displayed at all entrances and at intervals of one hundred (100) meters (three hundred thirty (330) feet) or less along the property line of the site or along the perimeter of the sections of the site where asbestos-containing waste material is deposited. The warning signs must:

1. Be posted in such a manner and location that a person can easily read the legend; and

2. Conform to the requirements of fifty-one (51) centimeters by thirty-six (36) centimeters (twenty (20) inches by fourteen (14) inches) upright format signs:

Caution signs. Standard color of the background shall be yellow; and the panel, black with yellow letters. Any letters used against the yellow background shall be black. The colors shall be those of opaque glossy samples as specified in Table 1 of American National Standard Z53.1-1967; and

3. Display the following legend in the lower panel with letter sizes and styles of a visibility at least equal to those specified in Rule 17.14.

Legend	*Notation*
ASBESTOS WASTE DISPOSAL SITE	2.5 cm (1 inch) Sans Serif Gothic or Block
DO NOT CREATE DUST	1.9 cm (3/4 inch) Sans Serif Gothic or Block
BREATHING ASBESTOS IS HAZARDOUS TO YOUR HEALTH	14 point Gothic

Spacing between any two (2) lines must be at least equal to the height of the upper of the two (2) lines.

b. The perimeter of the disposal site must be fenced in a manner adequate to deter access by the general public.

c. Upon request and supply of appropriate information, the Director will determine whether a fence or a natural barrier adequately deters access by the general public.

(3) Rather than meet the no visible emission requirement of paragraph (1) of Rule 17.14, at the end of each operating day, or at least once every twenty-four (24) hour period while the site is in operation, the asbestos-containing waste material that has been deposited at the site during the operating day or previous twenty-four (24) hour period shall:

a. Be covered with at least fifteen (15) centimeters (six (6) inches) of compacted nonasbestos-containing material, or

b. Be covered with a resinous or petroleum-based dust suppression agent that effectively binds dust and controls wind erosion. Such an agent shall be used in the manner and frequency recommended for the particular dust by the dust suppression agent manufacturer to achieve and maintain dust control. Other equally effective dust suppression agents may be used upon prior approval by the Director. For the purposes of Rule 17.14, any used, spent, or other waste oil is not considered a dust suppression agent.

(4) Rather than meet the no visible emission requirement of paragraph (1) of Rule 17.14, use an alternative emissions control method that has received prior written approval by the Administrator of the U.S. Environmental Protection Agency pursuant to 40 CFR 61.154(d) according to the procedures described in Rule 17.9(3)b. The owner or operator shall provide the Director with a photocopy of the written approval.

(5) For all asbestos-containing waste material received, the owner or operator of the active waste disposal site shall:

a. Maintain waste shipment records, using a form similar to that shown in Figure 3, and include the following information:

1. The name, address, and telephone number of the waste generator;

2. The name, address, and telephone number of the transporter(s);

3. The quantity of the asbestos-containing waste material in cubic meters (cubic yards);

4. The presence of improperly enclosed or uncovered waste, or any asbestos-containing waste material not sealed in leak-tight containers. Report in writing to the Director and also to any other officer or agency where required by local, state or federal law covering the waste generator (identified in the waste shipment record), and, if different, the local, State, or EPA Regional office responsible for administering the asbestos NESHAP program for the disposal site, by the following working day, the presence of a significant amount of improperly enclosed or uncovered waste. Submit a copy of the waste shipment record along with the report; and

5. The date of the receipt.

b. As soon as possible and no longer than thirty (30) days after receipt of the waste, send a copy of the signed waste shipment record to the waste generator.

c. Upon discovering a discrepancy between the quantity of waste designated in the waste shipment records and the quantity actually received, attempt to reconcile the discrepancy with the waste generator. If the discrepancy is not resolved within fifteen (15) days after receiving the waste, immediately report in writing to the Director and also to any other

officer or agency where required by local, state, or federal law covering the waste generator (identified in the waste shipment record), and, if different, the local, State, or EPA Regional office responsible for administering the asbestos NESHAP for the disposal site. Describe the discrepancy and attempts to reconcile it, and submit a copy of the waste shipment record along with the report.

d. Retain a copy of all records and reports required by this paragraph for at least two (2) years.

(6) Maintain, until closure, records of the location, depth and area, and quantity in cubic meters (cubic yards) of asbestos-containing waste material within the disposal site on a map or diagram of the disposal area.

(7) Upon closure, comply with all the provisions of Rule 17.11.

(8) Submit to the Director, upon closure of the facility, a copy of records of asbestos waste disposal locations and quantities.

(9) Furnish upon request, and make available during normal business hours for inspection by the Director, all records required under Rule 17.14.

(10) Notify the Director in writing at least forty-five (35) days prior to excavating or otherwise disturbing any asbestos-containing waste material that has been deposited at a waste disposal site and is covered. If the excavation will begin on a date other than the one (1) contained in the original notice, notice of the new start date must be provided to the Director at least ten (10) working days before excavation begins and in no event shall excavation begin earlier than the date specified in the original notification. Include the following information in the notice:

a. Scheduled starting and completion dates;

b. Reason for disturbing the waste;

c. Procedures to be used to control emissions during the excavation, storage, transport, and ultimate disposal of the excavated asbestos-containing waste material. If deemed necessary, the Administrator may require changes in the emission control procedures to be used; and

d. Location of any temporary storage site and the final disposal site.

Rule 17.15. Standard for operations that convert asbestos-containing waste material into nonasbestos (asbestos-free) material. Each owner or operator of an operation that converts RACM and asbestos-containing waste material into nonasbestos (asbestos-free) material shall:

(1) Obtain the prior written approval of the Administrator of the U.S. Environmental Protection Agency pursuant to 40 CFR 61.155(a) to construct the facility. The owner or operator shall provide the Director with a photocopy of the written approval. To obtain approval, the owner or operator shall provide the Administrator with the following information:

a. Application to construct pursuant to Section 4-840 CFR 61.07.

b. In addition to the information requirements of 40 CFR 61.07(b)(3), a

1. Description of waste feed handling and temporary storage.

2. Description of process operating conditions.

3. Description of the handling and temporary storage of the end product.

4. Description of the protocol to be followed when analyzing output materials by transmission electron microscopy.

c. Performance test protocol, including provisions for obtaining information required under paragraph (2) of Rule 17.15.

d. The Administrator of the U.S. Environmental Protection Agency may require that a demonstration of the process be performed prior to approval of the application to construct.

(2) Conduct a start-up performance test. Test results shall include:

a. A detailed description of the types and quantities of nonasbestos material, RACM, and asbestos-containing waste material processed, e.g., asbestos cement products, friable asbestos insulation, plaster, wood, plastic, wire, etc. The test feed is to include the full range of materials that will be encountered in actual operation of the process;

b. Results of analyses, using polarized light microscopy, that document the asbestos content of the wastes processed;

c. Results of analyses, using transmission electron microscopy, that document that the output materials are free of asbestos. Samples for analysis are to be collected as eight (8) hour composite samples (one (1) two hundred (200) gram [seven (7) ounce] sample per hour), beginning with the initial introduction of RACM or asbestos-containing waste material and continuing until the end of the performance test;

d. A description of operating parameters, such as temperature and residence time, defining the full range over which the process is expected to operate to produce nonasbestos (asbestos-free) materials. Specify the limits for each operating parameter within which the process will produce nonasbestos (asbestos-free) materials; and

e. The duration of the test.

(3) During the initial ninety (90) days of operation,

a. Continuously monitor and log the operating parameters identified during start-up performance tests that are intended to ensure the production of nonasbestos (asbestos-free) output material.

b. Monitor input materials to ensure that they are consistent with the test feed materials described during start-up performance tests in paragraph (2)a. of Rule 17.15.

c. Collect and analyze samples, taken as ten (10) day composite samples (one (1) two hundred (200) gram [seven (7) ounce] sample collected every 8 hours of operation) of all output material for the presence of asbestos. Composite samples may be for fewer than ten (10) days. Transmission electron microscopy shall be used to analyze the output material for the presence of asbestos. During the initial ninety (90) day period, all output materials must be stored on-site until analysis shows the material to be asbestos-free or disposed of as asbestos-containing waste material in accordance with Rule 17.10.

(4) After the initial ninety (90) days of operation,

a. Continuously monitor and record the operating parameters identified during start-up performance testing and any subsequent performance testing. Any output produced during a period of deviation from the range of operating conditions established to ensure the production of nonasbestos (asbestos-free) output materials shall be:

1. Disposed of as asbestos-containing waste material in accordance with Rule 17.10 or

2. Recycled as waste feed during process operation within the established range of operating conditions, or

3. Stored temporarily on-site in a leak-tight container until analyzed for asbestos content. Any product that is not asbestos-free shall be either disposed of as asbestos-containing waste material or recycled as waste feed to the process.

b. Collect and analyze monthly composite samples (one (1) two hundred (200) gram [seven (7) ounce] sample collected every eight (8) hours of operation) of the output material. Transmission electron microscopy shall be used to analyze the output material for the presence of asbestos.

(5) Discharge no visible emissions to the outside air from any part of the operation, or use the methods specified by Rule 17.12 to clean emissions containing particulate asbestos material before they escape to, or are vented to, the outside air.

(6) Maintain records on-site and include the following information:

a. Results of start-up performance testing and all subsequent performance testing, including operating parameters, feed characteristic, and analyses of output materials.

b. Results of the composite analyses required during the initial ninety (90) days of operation under Rule 17.15(3).

c. Results of the monthly composite analyses required under Rule 17.15(4).

d. Results of the continuous monitoring and logs of process operating parameters under Rules 17.15(3) and (4).

e. The information on waste shipments received as required in Rule 17.14(5).

f. For output materials where no analyses were performed to determine the presence of asbestos, record the name and location of the purchaser or disposal site to which the output materials were sold or deposited, and the date of sale or disposal.

g. Retain records required by paragraph (6) of Rule 17.15 for at least two (2) years.

(7) Submit the following reports to the Administrator:

a. A report for each analysis of product composite samples performed during the initial ninety (90) days of operation.

b. A quarterly report, including the following information concerning activities during each consecutive three (3) month period:

1. Results of analyses of monthly product composite samples;

2. A description of any deviation from the operating parameters established during performance testing, the duration of the deviation, and steps taken to correct the deviation;

3. Disposition of any product produced during a period of deviation, including whether it was recycled, disposed of as asbestos-containing waste material, or stored temporarily on-site until analyzed for asbestos content;

4. The information on waste disposal activities as required in Rule 17.14(6).

(8) Nonasbestos (asbestos-free) output material is not subject to any of the provisions of Rule 17. Output materials in which asbestos is detected, or output materials produced when the operating parameters deviated from those established during the start-up performance testing, unless shown by transmission electron microscopy analysis to be asbestos-free, shall be considered to be asbestos-containing waste and shall be handled and disposed of according to Rules 17.10 and 17.14 or reprocessed while all of the established operating parameters are being met.

Rule 18. Prevention of Significant Deterioration of Air Quality.

Rule 18.1. General provisions.

(a) The requirements of this Rule apply to the construction of any new major stationary source [as defined in Rule 18.2(hh)] or any project at an existing major stationary source in an area

designated as attainment or unclassifiable under Sections 107(d)(1)(A)(ii) or (iii) of the Federal Clean Air Act. No major stationary source or major modification will be subject to this rule with respect to a particular pollutant if the owner or operator demonstrates that the major source or major modification is located in an area designated nonattainment with respect to that pollutant, in which event other rules in this chapter would apply.

(b) The requirements of Rule 18.9 through 18.17 apply to the construction of any new major stationary source or the major modification of any existing major stationary source, except as this Rule otherwise provides.

(c) No person shall cause or allow the beginning of actual construction of a new major stationary source or major modification to which the requirements of Rules 18.9 through 18.17(d) apply without a permit that states that the major stationary source or major modification will meet those requirements. The Director has authority to issue any such permit.

(d) The requirements of this Rule will be applied in accordance with the principles set out in paragraphs d(1) through d(5) below:

(1) Except as otherwise provided in Rule 18.1(e), and consistent with the definition of major modification contained in Rule 18.2(ff), a project is a major modification for a regulated NSR pollutant if it causes two (2) types of emissions increases—a significant emissions increase [as defined in Rule 18.2(aaa)], and a significant net emissions increase [as defined in Rule 18.2(jj) and Rule 18.2(zz)]. The project is not a major modification if it does not cause a significant emissions increase. If the project causes a significant emissions increase, then the project is a major modification only if it also results in a significant net emissions increase.

(2) The procedure for calculating (before beginning actual construction) whether a significant emissions increase (i.e., the first step of the process) will occur depends upon the type of emissions units being modified, according to Rule 18.1(d)(3) through (5). The procedure for calculating (before beginning actual construction) whether a significant net emissions increase will occur at the major stationary source (i.e., the second step of the process) is contained in the definition in Rule 18.2(jj). Regardless of any such preconstruction projections, a major modification results if the project causes a significant emissions increase and a significant net emissions increase.

(3) Actual-to-projected-actual applicability test for projects that only involve existing emissions units. A significant emissions increase of a regulated NSR pollutant is projected to occur if the sum of the difference between the projected actual emissions [as defined in Rule 18.2(rr)] and the baseline actual emissions [as defined in Rule 18.2(d)(1) and (2)], for each existing emissions unit, equals or exceeds the significant amount for that pollutant [as defined in Rule 18.2(zz)].

(4) Actual-to-potential test for projects that only involve construction of a new emissions unit(s). A significant emissions increase of a regulated NSR pollutant is projected to occur if the sum of the difference between the potential to emit [as defined in Rule 18.2(mm)] from each new emissions unit following completion of the project and the baseline actual emissions [as defined in Rule 18.2(d)(3)] of these units before the project equals or exceeds the significant amount for that pollutant [as defined in Rule 18.2(zz)].

(5) Hybrid test for projects that involve multiple types of emissions units. A significant emissions increase of a regulated NSR pollutant is projected to occur if the sum of the emissions increases for each emissions unit, using the method specified in paragraphs

18.1(d)(3) and (4) of this section as applicable with respect to each emissions unit, for each type of emissions unit equals or exceeds the significant amount for that pollutant (as defined in paragraph 18.2(zz) of this section).

(e) For any major stationary source for a "plantwide applicability limitation (PAL)" [as defined in Rule 18.21(b)(5)] for a regulated New Source Review (NSR) pollutant [as defined in Rule 18.2(uu)], the major stationary source shall comply with the requirements under Rule 18.21.

Rule 18.2. Definitions. For the purposes of this Rule:

(a) *Actual emissions.*

(1) Actual emissions means the actual rate of emissions of a regulated NSR pollutant from an emissions unit, as determined in accordance with Rule18.2(a)(2) through (a)(4) except that this definition shall not apply for calculating whether a significant emissions increase has occurred, or for establishing a plantwide applicability limitation (PAL) under Rule 18.21. Instead, Rule 18.2(rr) and Rule 18.2(d) shall apply for those purposes.

(2) In general, actual emissions as of a particular date shall equal the average rate, in tons per year, at which the unit actually emitted the pollutant during a consecutive twenty-four (24) month period which precedes the particular date and which is representative of normal source operation. The Director shall allow the use of a different time period upon a determination that it is more representative of normal source operation. Actual emissions shall be calculated using the unit's actual operating hours, production rates, and types of materials processed, stored, or combusted during the selected time period.

(3) The Director may presume that source-specific allowable emissions for the unit are equivalent to the actual emissions of the unit.

(4) For any emissions unit that has not begun normal operations on the particular date, actual emissions shall equal the potential to emit of the unit on that date.

(b) *Adverse impact on visibility* means visibility impairment which interferes with the management, protection, preservation or enjoyment of the visitor's visual experience of the Federal Class I area. This determination must be made on a case-by-case basis taking into account the geographic extent, intensity, duration, frequency and time of visibility impairment, and how these factors correlate with (1) times of visitor use of the Federal Class I area, and (2) the frequency and timing of natural conditions that reduce visibility.

(c) *Allowable emissions* means the emissions rate of a stationary source calculated using the maximum rated capacity of the source (unless the source is subject to federally enforceable limits which restrict the operating rate, or hours of operation, or both) and the most stringent of the following:

(1) The applicable standards as set forth in 40 CFR Parts 60 and 61;

(2) The applicable local portion of the State Implementation Plan emissions limitation, including those with a future compliance date; or

(3) The emissions rate specified as a federally enforceable permit condition, including those with a future compliance date.

(d) *Baseline actual emissions* means the rate of emissions, in tons per year, of a regulated NSR pollutant, as determined in accordance Rule 18.2(d)(1) through (d)(4).

(1) For any existing electric utility steam generating unit, baseline actual emissions means the average rate, in tons per year, at which the unit actually emitted the pollutant during any consecutive twenty-four (24) month period selected by the owner or operator within the five

(5) year period immediately preceding when the owner or operator begins actual construction of the project. The Director shall allow the use of a different time period upon a determination that it is more representative of normal source operation.

a. The average rate shall include fugitive emissions to the extent quantifiable, and emissions associated with startups, shutdowns, and malfunctions.

b. The average rate shall be adjusted downward to exclude any non-compliant emissions that occurred while the source was operating above any emission limitation that was legally enforceable during the consecutive twenty-four (24) month period.

c. For a regulated NSR pollutant, when a project involves multiple emissions units, one (1) consecutive twenty-four (24) month period must be used to determine the baseline actual emissions for the emissions units being changed. However, the Director is authorized to allow the use of multiple, pollutant specific consecutive twenty-four (24) month baselines in determining the magnitude of a significant net emissions increase and the applicability of major new source review requirements if all of the following conditions are met:

1. Construction of a new source or modification would become subject to major new source review if a single two (2) year baseline is used for all pollutants;

2. One or more pollutants were emitted during such 2-year period in amounts that were less than otherwise permitted for reasons other than operations at a lower production or utilization rate;

Qualifying examples include, but are not limited to, the voluntary use of:

(i). a cleaner fuel than otherwise permitted in a fuel burning operation (e.g., natural gas instead of coal in a multi-fuel boiler);

(ii). a coating with a lower VOC content than otherwise permitted in a coating operation;

(iii) a voluntary improvement in the control efficiency of an air pollution control device or the voluntary addition of a control device where one (1) did not exist before, and

(iv). alternate production methods, raw materials, or products that result in lower emissions of one (1) or more pollutants.

3. Use of alternate two (2) year baselines for the pollutants described in sub-item 2 above would result in the construction of the new source or modification not being subject to major new source review.

4. The use of the multiple baselines is not prohibited by any applicable provision of the US EPA's new source review regulations. The burden for demonstrating that these conditions are met is upon the permit applicant. The demonstration and the Director's approval will be made a part of the permit record.

d. The average rate shall not be based on any consecutive 24-month period for which there is inadequate information for determining annual emissions, in tons per year, and for adjusting this amount if required by Rule 18.2(d)(1)b.

(2) For an existing emissions unit (other than an electric utility steam generating unit), baseline actual emissions means the average rate, in tons per year, at which the emissions unit actually emitted the pollutant during any consecutive twenty-four (24) month period selected by the owner or operator within the ten (10) year period immediately preceding either the date the owner or operator begins actual construction of the project, or the date a

complete permit application is received by the Director for a permit required under this Rule, whichever is earlier, except that the ten (10) year period shall not include any period earlier than November 15, 1990.

a. The average rate shall include fugitive emissions to the extent quantifiable, and emissions associated with startups, shutdowns, and malfunctions.

b. The average rate shall be adjusted downward to exclude any non-compliant emissions that occurred while the source was operating above an emission limitation that was legally enforceable during the consecutive twenty-four (24) month period.

c. The average rate shall be adjusted downward to exclude any emissions that would have exceeded an emission limitation with which the major stationary source must currently comply, had such major stationary source been required to comply with such limitations during the consecutive twenty-four (24) month period. However, if an emission limitation is part of a maximum achievable control technology standard that the U.S. EPA Administrator proposed or promulgated under 40 CFR Part 63, the baseline actual emissions need only be adjusted if the State or the Chattanooga-Hamilton County Air Pollution Control Bureau has taken credit for such emissions reductions in an attainment demonstration or maintenance plan consistent with the requirements of 40 CFR §51.165(a)(3)(ii)(G).

d. For a regulated NSR pollutant, when a project involves multiple emissions units one (1) consecutive twenty-four (24) month period must be used to determine the baseline actual emissions for the emissions units being changed. However, the Director is authorized to allow the use of multiple, pollutant specific consecutive twenty-four (24) month baselines in determining the magnitude of a significant net emissions increase and the applicability of major new source review requirements if all of the following conditions are met:

   1. Construction of a new source or modification would become subject to major new source review if a single two (2) year baseline is used for all pollutants;

   2. One or more pollutants were emitted during such (2) year period in amounts that were less than otherwise permitted for reasons other than operations at a lower production or utilization rate;

      Qualifying examples include, but are not limited to, the voluntary use of:

      (i) a cleaner fuel than otherwise permitted in a fuel burning operation (e.g., natural gas instead of coal in a multi-fuel boiler);

      (ii) a coating with a lower VOC content than otherwise permitted in a coating operation;

      (iii) a voluntary improvement in the control efficiency of an air pollution control device or the voluntary addition of a control device where one (1) did not exist before, and

      (iv) alternate production methods, raw materials, or products that result in lower emissions of one (1) or more pollutants.

   3. Use of alternate two (2) year baselines for the pollutants described in sub-item 2 above would result in the construction of the new source or modification not being subject to major new source review.

   4. The use of the multiple baselines is not prohibited by any applicable provision of the US EPA's new source review regulations.

The burden for demonstrating that these conditions are met is upon the permit applicant.

The demonstration and the Director's approval will be made a part of the permit record.

e. The average rate shall not be based on any consecutive 24-month period for which there is inadequate information for determining annual emissions, in tons per year, and for adjusting this amount if required by Rule 18.2(d)(2)b. and (2)c.

(3) For a new emissions unit, the baseline actual emissions for purposes of determining the emissions increase that will result from the initial construction and operation of such unit shall equal zero; and thereafter, for all other purposes, shall equal the unit's potential to emit.

(4) For a PAL for a stationary source, the baseline actual emissions shall be calculated for existing electric utility steam generating units in accordance with the procedures contained in Rule 18.2(d)(1), for other existing emissions units in accordance with the procedures contained in Rule 18.2(d)(2), and for a new emissions unit in accordance with the procedures contained in Rule 18.2(d)(3).

(e) *Baseline area*

(1) Baseline area means any intrastate area (and every part thereof) designated as attainment or unclassifiable under Section 107(d)(1)(A)(ii) or (iii) of the Federal Clean Air Act in which the major source or major modification establishing the minor source baseline date would construct or would have an air quality impact equal to or greater than 1 $\mu g/m^3$ (annual average) for SO_2, NO_2, or PM_{10}; or equal to or greater than 0.3 $\mu g/m^3$ (annual average) for $PM_{2.5}$.

(2) Area redesignations under Section 107(d)(1) (D) or (E) of the federal Clean Air Act cannot intersect or be smaller than the area of impact of any major stationary source or major modification which:

a. Establishes a minor source baseline date; or

b. Is subject to this Rule and would be constructed in the same state as the state proposing the redesignation.

(3) Any baseline area established originally for the TSP increments shall remain in effect and shall apply for purposes of determining the amount of available PM_{10} increments, except that such baseline area shall not remain in effect if the Director rescinds the corresponding minor source baseline date in accordance with Rule 18.2(gg)(4).

(f) *Baseline concentration*

(1) Baseline concentration means that ambient concentration level that exists in the baseline area at the time of the applicable minor source baseline date. A baseline concentration is determined for each pollutant for which a minor source baseline date is established and shall include:

a. The actual emissions, as defined in Rule 18.2(a), representative of sources in existence on the applicable minor source baseline date, except as provided in 18.2(f)(2) below ; and

b. The allowable emissions of major stationary sources that commenced construction before the major source baseline date, but were not in operation by the applicable minor source baseline date.

(2) The following will not be included in the baseline concentration and will affect the applicable maximum allowable increase(s):

a. Actual emissions, as defined in Rule 18.2(a), from any major stationary source on which construction commenced after the major source baseline date; and

b. Actual emissions increases and decreases, as defined in Rule 18.2(a), at any stationary source occurring after the minor source baseline date.

(g) *Begin actual construction* means, in general, initiation of physical on-site construction activities on an emissions unit which are of a permanent nature. Such activities include, but are not limited to, installation of building supports and foundations, laying underground pipework and construction of permanent storage structures. With respect to a change in method of operations, this term refers to those on-site activities other than preparatory activities which mark the initiation of the change.

(h) *Best available control technology* means an emissions limitation (including a visible emission standard) based on the maximum degree of reduction for each regulated NSR pollutant which would be emitted from any proposed major stationary source or major modification which the reviewing authority, on a case-by-case basis, taking into account energy, environmental, and economic impacts and other costs, determines is achievable for such source or modification through application of production processes or available methods, systems, and techniques, including fuel cleaning or treatment or innovative fuel combustion techniques for control of such pollutant. In no event shall application of best available control technology result in emissions of any pollutant which would exceed the emissions allowed by any applicable standard under Rules 15 and 16 (or 40 CFR Parts 60 and 61). If the reviewing authority determines that technological or economic limitations on the application of measurement methodology to a particular emissions unit would make the imposition of an emissions standard infeasible, a design, equipment, work practice, operational standard, or combination thereof, may be prescribed instead to satisfy the requirement for the application of best available control technology. Such standard shall, to the degree possible, set forth the emissions reduction achievable by implementation of such design, equipment, work practice or operation, and shall provide for compliance by means which achieve equivalent results.

(i) *Building, structure, facility, or installation* means all of the pollutant-emitting activities which belong to the same industrial grouping, are located on one (1) or more contiguous or adjacent properties, and are under the control of the same person (or persons under common control) except the activities of any vessel. Pollutant-emitting activities shall be considered as part of the same industrial grouping if they belong to the same "Major Group" (i.e., which have the same first two (2) digit code) as described in the Standard Industrial Classification Manual, 1972, as amended by the 1977 Supplement (U. S. Government Printing Office stock numbers 4101-0066 and 003-005-00176-0, respectively).

(j) *Clean coal technology* means any technology, including technologies applied at the pre combustion, combustion, or post combustion stage, at a new or existing facility which will achieve significant reductions in air emissions of sulfur dioxide or oxides of nitrogen associated with the utilization of coal in the generation of electricity, or process steam which was not in widespread use as of November 15, 1990.

(k) *Clean coal technology demonstration project* means a project using funds appropriated under the heading "Department of Energy-Clean Coal Technology," up to a total amount of two billion five hundred million ($2,500,000,000.00) for commercial demonstration of clean coal technology, or similar projects funded through appropriations for the Environmental Protection Agency. The Federal contribution for a qualifying project shall be at least twenty (20) percent of the total cost of the demonstration project.

(l) (Reserved)

(m) *Commence* as applied to construction of a major stationary source or major modification means that the owner or operator has all necessary preconstruction approvals or permits and either has:

(1) Begun, or caused to begin, a continuous program of actual on-site construction of the source, to be completed within a reasonable time; or

(2) Entered into binding agreements or contractual obligations, which cannot be cancelled or modified without substantial loss to the owner or operator, to undertake a program of actual construction of the source to be completed within a reasonable time.

(n) *Complete* means, in reference to an application for a permit, that the application contains all of the information necessary for processing the application. Designating an application complete for purposes of permit processing does not preclude the reviewing authority from requesting or accepting any additional information.

(o) *Construction* means any physical change or change in the method of operation (including fabrication, erection, installation, demolition, or modification of an emissions unit) that would result in a change in emissions.

(p) *Continuous emissions monitoring system (CEMS)* means all of the equipment that may be required to meet the data acquisition and availability requirements of this Rule, to sample, condition (if applicable), analyze, and provide a record of emissions on a continuous basis.

(q) *Continuous emissions rate monitoring system (CERMS)* means the total equipment required for the determination and recording of the pollutant mass emissions rate (in terms of mass per unit of time).

(r) *Continuous parameter monitoring system (CPMS)* means all of the equipment necessary to meet the data acquisition and availability requirements of this Rule, to monitor process and control device operational parameters (for example, control device secondary voltages and electric currents) and other information (for example, gas flow rate, O_2 or CO_2 concentrations), and to record average operational parameter value(s) on a continuous basis.

(s) *Electric utility steam generating unit* means any steam electric generating unit that is constructed for the purpose of supplying more than one-third (1/3) of its potential electric output capacity and more than twenty-five (25) MW electrical output to any utility power distribution system for sale. Any steam supplied to a steam distribution system for the purpose of providing steam to a steam-electric generator that would produce electrical energy for sale is also considered in determining the electrical energy output capacity of the affected facility.

(t) *Emissions unit* means any part of a stationary source that emits or would have the potential to emit any regulated NSR pollutant and includes an electric utility steam generating unit as defined in Rule 18.2(s). For purposes of this Rule, there are two (2) types of emissions units as described in this Rule 18.2(t) as follows:

(1) A new emissions unit is any emissions unit that is (or will be) newly constructed and that has existed for less than two (2) years from the date such emissions unit first operated.

(2) An existing emissions unit is any emissions unit that does not meet the requirements in Rule18.2(t)(1) above. A replacement unit, as defined in Rule 18.2(vv), is an existing emissions unit.

(u) *Federal Land Manager* means, with respect to any lands in the United States, the Secretary of the department with authority over such lands.

(v) *Federally enforceable* means all limitations and conditions which are enforceable by the U.S. EPA Administrator, including those requirements developed pursuant to 40 CFR Parts 60 and 61, requirements within any applicable local portion of the State Implementation Plan, any permit

requirements established pursuant to this Rule, including operating permits issued under an EPA-approved program that is incorporated into the local portion of the State Implementation Plan and expressly requires adherence to any permit issued under such program.

(w) (Reserved)

(x) *Fugitive emissions* means those emissions which could not reasonably pass through a stack, chimney, vent, or other functionally equivalent opening.

(y) (Reserved)

(z) *High terrain* means any area having an elevation 900 feet or more above the base of the stack of a source.

(aa) *Indian Governing Body* means the governing body of any tribe, band, or group of Indians subject to the jurisdiction of the United States and recognized by the United States as possessing power of self-government.

(bb) *Indian Reservation* means any federally recognized reservation established by Treaty, Agreement, executive order, or act of Congress.

(cc) *Innovative control technology* means any system of air pollution control that has not been adequately demonstrated in practice, but would have a substantial likelihood of achieving greater continuous emissions reduction than any control system in current practice or of achieving at least comparable reductions at lower cost in terms of energy, economics, or nonair quality environmental impacts.

(dd) *Low terrain* means any area other than high terrain.

(ee) *Lowest achievable emission rate (LAER)* is as defined in Section 4-2 of this chapter.

(ff) *Major Modification*

(1) Major Modification means any physical change in or change in the method of operation of a major stationary source that would result in: a significant emissions increase [as defined in Rule 18.2(aaa)] of a regulated NSR pollutant [as defined in Rule 18.2(uu)]; and a significant net emissions increase of that pollutant from the major stationary source.

(2) Any significant emissions increase [as defined in Rule 18.2(aaa)] from any emissions units or net emissions increase [as defined in Rule18.2(jj)] at a major stationary source that is significant for volatile organic compounds or NO_X shall be considered significant for ozone.

(3) A physical change or change in the method of operation shall not include:

a. Routine maintenance, repair, and replacement.

b. Use of an alternative fuel or raw material by reason of an order under Sections 2 (a) and (b) of the Energy Supply and Environmental Coordination Act of 1974 (or any superseding legislation) or by reason of a natural gas curtailment plant pursuant to the Federal Power Act;

c. Use of an alternative fuel by reason of an order or rule under Section 125 of the Federal Clean Air Act;

d. Use of an alternative fuel at a steam generating unit to the extent that the fuel is generated from municipal solid waste;

e. Use of an alternative fuel or raw material by a stationary source which:

1. The source was capable of accommodating before January 6, 1975, unless such change would be prohibited under any federally enforceable permit condition

which was established after January 6, 1975 pursuant to this Rule or under regulations approved pursuant to 40 CFR Part 51, Subpart 1; or 2. The source is approved to use under any permit issued under this Rule;

f. An increase in the hours of operation or in the production rate, unless such change would be prohibited under any federally enforceable permit condition which was established after January 6, 1975, pursuant to this Rule or under regulations approved pursuant to 40 CFR Part 51, Subpart I, or 40 CFR §51.166.

g. Any change in ownership at a stationary source.

h. The installation, operation, cessation, or removal of a temporary clean coal technology demonstration project, provided that the project complies with:

1. The local portion of the State Implementation Plan for the State in which the project is located, and

2. Other requirements necessary to attain and maintain the national ambient air quality standards during the project and after it is terminated.

i. The installation or operation of a permanent clean coal technology demonstration project that constitutes repowering, provided that the project does not result in an increase in the potential to emit of any regulated pollutant emitted by the unit. This exemption shall apply on a pollutant-by-pollutant basis.

j. The reactivation of a very clean coal-fired electric utility steam generating unit.

k. This definition shall not apply with respect to a particular regulated NSR pollutant when the major stationary source is complying with the requirements under Rule 18.21 for a plantwide applicability limitation (PAL) for that pollutant. Instead, the definition in Rule 18.21(b)(8) shall apply.

(gg) *Major source baseline date and minor source baseline date*

(1) Major source baseline date means:

a. In the case of PM_{10} and sulfur dioxide, January 6, 1975;

b. In the case of nitrogen dioxide, February 8, 1988; and

c. In the case of $PM_{2.5}$, October 20, 2011.

(2) "Minor source baseline date" means the earliest date after the trigger date on which a major stationary source or a major modification subject to this Rule submits a complete application under the relevant regulations. The trigger date is:

a. In the case of PM_{10} and sulfur dioxide, August 7, 1977;

b. In the case of nitrogen dioxide, February 8, 1988; and

c. In the case of $PM_{2.5}$, October 20, 2011.

(3) The baseline date is established for each pollutant for which increments or other equivalent measures have been established if:

a. The area in which the proposed source or modification would construct is designated as attainment or unclassifiable under Section 107(d)(1)(A)(ii) or (iii) of the Federal Clean Air Act for the pollutant on the date of its complete application under this Rule, and

b. In the case of a major stationary source, the pollutant would be emitted in significant amounts, or, in the case of a major modification, there would be a significant net emissions increase of the pollutant.

(4) Any minor source baseline date established originally for the TSP increments shall remain in effect and shall apply for purposes of determining the amount of available PM_{10} increments, except that the Director shall rescind a minor source baseline date where it can be shown, to the satisfaction of the Director, that the emissions increase from the major stationary source, or net emissions increase from the major modification, responsible for triggering that date did not result in a significant amount of PM_{10} emissions.

(hh) *Major stationary source*

(1) Major stationary source means:

a. Any of the following stationary sources of air pollutants which emits, or has the potential to emit, one hundred (100) tons per year or more of any regulated NSR pollutant: fossil fuel-fired steam electric plants of more than two hundred fifty million (250,000,000) British thermal units per hour heat input, coal cleaning plants (with thermal dryers), kraft pulp mills, Portland cement plants, primary zinc smelters, iron and steel mill plants, primary aluminum ore reduction plants, primary copper smelters, municipal incinerators capable of charging more than fifty (50) tons of refuse per day, hydrofluoric, sulfuric, and nitric acid plants, petroleum refineries, lime plants, phosphate rock processing plants, coke oven batteries, sulfur recovery plants, carbon black plants (furnace process), primary lead smelters, fuel conversion plants, sintering plants, secondary metal production plants, chemical process plants, fossil fuel boilers (or combinations thereof) totaling more than two hundred fifty million (250,000,000) British thermal units per hour heat input, petroleum storage and transfer units with a total storage capacity exceeding three hundred thousand (300,000) barrels, taconite ore processing plants, glass fiber processing plants, and charcoal production plants;

b. Notwithstanding the stationary source size specified in Rule 18.2(hh)(1)(a), any stationary source which emits, or has the potential to emit, two hundred fifty (250) tons per year or more of a regulated NSR pollutant; or

c. Any physical change that would occur at a stationary source not otherwise qualifying under Rule 18.2(hh) as a major stationary source, if the changes would constitute a major stationary source by itself.

(2) A major stationary source that is major for volatile organic compounds or NOx shall be considered major for ozone.

(3) The fugitive emissions of a stationary source shall not be included in determining for any of the purposes of this Rule whether it is a major stationary source, unless the source belongs to one (1) of the following categories of stationary sources:

a. Coal cleaning plants (with thermal dryers);

b. Kraft pulp mills;

c. Portland cement plants;

d. Primary zinc smelters;

e. Iron and steel mills;

f. Primary aluminum ore reduction plants;

g. Primary copper smelters;

h. Municipal incinerators capable of charging more than fifty (50) tons of refuse per day;

i. Hydrofluoric, sulfuric, or nitric acid plants;

j. Petroleum refineries;

k. Lime plants;

l. Phosphate rock processing plants;

m. Coke oven batteries;

n. Sulfur recovery plants;

o. Carbon black plants (furnace process);

p. Primary lead smelters;

q. Fuel conversion plants;

r. Sintering plants;

s. Secondary metal production plants;

t. Chemical process plants;

u. Fossil-fuel boilers (or combination thereof) totaling more than two hundred fifty million (250,000,000) British thermal units per hour heat input;

v. Petroleum storage and transfer units with a total storage capacity exceeding three hundred thousand (300,000) barrels;

w. Taconite ore processing plants;

x. Glass fiber processing plants;

y. Charcoal production plants;

z. Fossil fuel-fired steam electric plants of more than two hundred fifty million (250,000,000) British thermal units per hour heat input; and

aa. Any other stationary source category which, as of August 7, 1980, is being regulated under Section 111 or 112 of the Federal Clean Air Act.

(ii) Necessary preconstruction approvals or permits means those permits or approvals required under Federal air quality control laws and regulations and those air quality control laws and regulations which are part of the applicable local portion of the State Implementation Plan.

(jj) *Net emissions increase*

(1) A net emissions increase means, with respect to any regulated NSR pollutant emitted by a major stationary source, the amount by which the sum of the following exceeds zero:

a. The increase in emissions from a particular physical change or change in the method of operation at a stationary source as calculated pursuant to Rule 18.1(d); and

b. Any other increases and decreases in actual emissions at the major stationary source that are contemporaneous with the particular change and are otherwise creditable. Baseline actual emissions for calculating increases and decreases under this Rule 18.2(jj)(1)b. shall be determined as provided in Rule 18.2(d), except that Rule 18.2(d)(1)(c) and (d)(2)(d) shall not apply.

(2) An increase or decrease in actual emissions is contemporaneous with the increase from the particular change only if it occurs between:

a. The date five years before construction on the particular change commences; and

b. The date that the increase from the particular change occurs.

(3) An increase or decrease in actual emissions is creditable only if the Director has not relied on it in issuing a permit for the source under this Rule, which permit is in effect when the increase in actual emissions from the particular change occurs.

(4) An increase or decrease in actual emissions of sulfur dioxide, particulate matter, or nitrogen oxides that occurs before the applicable minor source baseline date is creditable only if it is required to be considered in calculating the amount of maximum allowable increases remaining available.

(5) An increase in actual emissions is creditable only to the extent that the new level of actual emissions exceeds the old level.

(6) A decrease in actual emissions is creditable only to the extent that:

a. The old level of actual emissions or the old level of allowable emissions, whichever is lower, exceeds the new level of actual emissions;

b. It is enforceable as a practical matter at and after the time that actual construction on the particular change begins; and

c. It has approximately the same qualitative significance for public health and welfare as that attributed to the increase from the particular change.

(7) (Reserved)

(8) An increase that results from a physical change at a source occurs when the emissions unit on which construction occurred becomes operational and begins to emit a particular pollutant. Any replacement unit that requires shakedown becomes operational only after a reasonable shakedown period, not to exceed one hundred eighty (180) days.

(9) Rule 18.2(a)(2) shall not apply for determining creditable increases and decreases.

(kk) (Reserved)

(ll) (Reserved)

(mm) *Potential to emit* means the maximum capacity of a stationary source to emit a pollutant under its physical and operational design. Any physical or operational limitation on the capacity of the source to emit a pollutant, including air pollution control equipment and restrictions on hours of operation or on the type or amount of material combusted, stored, or processed, shall be treated as part of its design if the limitation or the effect it would have on emissions is federally enforceable. Secondary emissions do not count in determining the potential to emit of a stationary source.

(nn) *Predictive emissions monitoring system (PEMS)* means all of the equipment necessary to monitor process and control device operational parameters (for example, control device secondary voltages and electric currents) and other information (for example, gas flow rate, O_2 or CO_2 concentrations), and calculate and record the mass emissions rate (for example, lb/hr) on a continuous basis.

(oo) *Prevention of Significant Deterioration (PSD)* program means the major source preconstruction permit program under this Rule or a major source preconstruction permit program that has been approved by the U.S. EPA Administrator and incorporated into the local portion of the State Implementation Plan pursuant to 40 CFR §51.166 to implement the requirements of that section. Any permit issued under such a program is a major NSR (new source review) permit.

(pp) (Reserved)

(qq) *Project* means a physical change in, or change in the method of operation of, an existing major stationary source.

(rr) *Projected actual emissions*

(1) Projected actual emissions means the maximum annual rate, in tons per year, at which an existing emissions unit is projected to emit a regulated NSR pollutant in any one (1) of the

five (5) years (twelve (12) month period) following the date the unit resumes regular operation after the project, or in any one (1) of the ten (10) years following that date, if the project involves increasing the emissions unit's design capacity or its potential to emit that regulated NSR pollutant and full utilization of the unit would result in a significant emissions increase or a significant net emissions increase at the major stationary source.

(2) In determining the projected actual emissions in accordance with Rule 18.2(rr)(1) above and before beginning actual construction, the owner or operator of the major stationary source:

a. Shall consider all relevant information, including but not limited to, historical operational data, the company's own representations, the company's expected business activity and the company's highest projections of business activity, the company's filings with the Chattanooga-Hamilton County Air Pollution Control Bureau or with State or Federal regulatory authorities, and compliance plans under the approved local portion of the State Implementation Plan; and

b. Shall include fugitive emissions to the extent quantifiable and emissions associated with startups, shutdowns, and malfunctions; and

c. Shall exclude, in calculating any increase in emissions that results from the particular project, that portion of the unit's emissions following the project that an existing unit could have accommodated during the consecutive twenty-four (24) month period used to establish the baseline actual emissions under Rule 18.2(d) and that are also unrelated to the particular project, including any increased utilization due to product demand growth; or

d. In lieu of using the method set out in paragraphs a. through c. above, may elect to use the emissions unit's potential to emit, in tons per year, as defined in Rule 18.2(mm).

(ss) *Reactivation of a very clean coal-fired electric utility steam generating unit* means any physical change or change in the method of operation associated with the commencement of commercial operations by a coal-fired utility unit after a period of discontinued operation where the unit:

(1) Has not been in operation for the two-year period prior to the enactment of the Federal Clean Air Act Amendments of 1990, and the emissions from such unit continue to be carried in the permitting authority's emissions inventory at the time of enactment;

(2) Was equipped prior to shut-down with a continuous system of emissions control that achieves a removal efficiency for sulfur dioxide of no less than eighty-five (85) percent and a removal efficiency for particulates of no less than ninety-eight (98) percent;

(3) Is equipped with low-NO_X burners prior to the time of commencement of operations following reactivation; and

(4) Is otherwise in compliance with the requirements of the Federal Clean Air Act.

(tt) *Reasonably available control technology (RACT)* is as defined in section 4-2 of this chapter.

(uu) *Regulated NSR pollutant*, for purposes of this Rule, means the following:

(1) Any pollutant for which a national ambient air quality standard has been promulgated by the U.S. EPA Administrator. This includes, but is not limited to, the following:

a. $PM_{2.5}$ emissions and PM_{10} emissions shall include gaseous emissions from a source or activity which condense to form particulate matter at ambient temperatures. On or after January 1, 2011, such condensable particulate matter shall be accounted for in applicability determinations and in establishing emissions limitations for $PM_{2.5}$ and PM_{10} in PSD permits. Compliance with emissions limitations for $PM_{2.5}$ and PM_{10} issued prior to this date shall not be based on condensable particulate matter unless

required by the terms and conditions of the permit or the applicable implementation plan. Applicability determinations made prior to this date without accounting for condensable particulate matter shall not be considered in violation of this section unless the applicable implementation plan required condensable particulate matter to be included;

b. Any pollutant identified under this paragraph 18.2(uu)(1)b. as a constituent or precursor to a pollutant for which a national ambient air quality standard has been promulgated. Precursors identified by the Administrator for purposes of NSR are the following:

1. Volatile organic compounds and nitrogen oxides are precursors to ozone in all attainment and unclassifiable areas.

2 Sulfur dioxide is a precursor to $PM_{2.5}$ in all attainment and unclassifiable areas.

3. Nitrogen oxides are presumed to be precursors to $PM_{2.5}$ in all attainment and unclassifiable areas, unless the State demonstrates to the Administrator's satisfaction or EPA demonstrates that emissions of nitrogen oxides from sources in a specific area are not a significant contributor to that area's ambient $PM_{2.5}$ concentrations.

4. Volatile organic compounds are presumed not to be precursors to $PM_{2.5}$ in any attainment or unclassifiable area, unless the State demonstrates to the Administrator's satisfaction or EPA demonstrates that emissions of volatile organic compounds from sources in a specific area are a significant contributor to that area's ambient $PM_{2.5}$ concentrations.

(2) Any pollutant that is subject to any standard promulgated under section 111 of the Federal Clean Air Act;

(3) Any Class I or II substance subject to a standard promulgated under or established by Title VI of the Federal Clean Air Act; or

(4) Reserved

(5) Any pollutant that otherwise is subject to regulation under the Federal Clean Air Act; except that any or all hazardous air pollutants either listed in Section 112 of the Federal Clean Air Act or added to the list pursuant to Section 112(b)(2) of the Federal Clean Air Act, which have not been delisted pursuant to Section 112(b)(3) of the Federal Clean Air Act, are not regulated NSR pollutants unless the listed hazardous air pollutant is also regulated as a constituent or precursor of a general pollutant listed under Section 108 of the Federal Clean Air Act.

(vv) *Replacement unit* means an emissions unit for which all the criteria listed in Rule 18.2(vv)(1) through (4) below are met. No creditable emission reductions shall be generated from shutting down the existing emissions unit that is replaced.

(1) The emissions unit is a reconstructed unit within the meaning of 40 CFR §60.15(b)(1), or the emissions unit completely takes the place of an existing emissions unit.

(2) The emissions unit is identical to or functionally equivalent to the replaced emissions unit.

(3) The replacement does not alter the basic design parameters [as discussed in Rule 18.22] of the process unit.

(4) The replaced emissions unit is permanently removed from the major stationary source, otherwise permanently disabled, or permanently barred from operation by a permit that is enforceable as a practical matter. If the replaced emissions unit is brought back into operation, it shall constitute a new emissions unit.

(ww) *Repowering*

(1) Repowering means replacement of an existing coal-fired boiler with one (1) of the following clean coal technologies: atmospheric or pressurized fluidized bed combustion, integrated gasification combined cycle, magnetohydrodynamics, direct and indirect coal-fired turbines, integrated gasification fuel cells, or as determined by the U.S. EPA Administrator, in consultation with the Secretary of Energy, a derivative of one (1) or more of these technologies, and any other technology capable of controlling multiple combustion emissions simultaneously with improved boiler or generation efficiency and with significantly greater waste reduction relative to the performance of technology in widespread commercial use as of November 15, 1990.

(2) Repowering shall also include any oil and/or gas-fired unit which has been awarded clean coal technology demonstration funding as of January 1, 1991, by the Department of Energy.

(3) The Director shall give expedited consideration to permit applications for any source that satisfies the requirements of this subsection and is granted an extension under Section 409 of the Federal Clean Air Act.

(xx) *Reviewing authority* means the Chattanooga-Hamilton County Air Pollution Control Bureau.

(yy) *Secondary emissions* means emissions which would occur as a result of the construction or operation of a major stationary source or major modification, but do not come from the major stationary source or major modification itself. Secondary emissions include emissions from any offsite support facility which would not be constructed or increase its emissions except as a result of the construction or operation of the major stationary source or major modification. Secondary emissions do not include any emissions which come directly from a mobile source, such as emissions from the tailpipe of a motor vehicle, from a train, or from a vessel.

(1) Emissions from ships or trains coming to or from the new or modified stationary source; and

(2) Emissions from any offsite support facility which would not otherwise be constructed or increase its emissions as a result of the construction or operation of the major stationary source or major modification.

(zz) *Significant*

(1) Significant means, in reference to a net emissions increase or the potential of a source to emit any of the following pollutants, a rate of emissions that would equal or exceed any of the following rates:

Pollutant and Emissions Rate

Carbon monoxide: 100 tons per year (tpy)

Nitrogen oxides: 40 tpy

Sulfur dioxide: 40 tpy

Particulate matter: 25 tpy of particulate matter emissions

PM_{10}: 15 tpy

$PM_{2.5}$: 10 tpy of direct $PM_{2.5}$ emissions; 40 tpy of sulfur dioxide emissions; 40 tpy of nitrogen oxide emissions unless demonstrated not to be a $PM_{2.5}$ precursor under Rule 18.2(uu) of this section

Ozone: 40 tpy of volatile organic compounds or NO_X

Lead: 0.6 tpy

Fluorides: 3 tpy

Sulfuric acid mist: 7 tpy

Hydrogen sulfide (H2S): 10 tpy

Total reduced sulfur (including H2S): 10 tpy

Reduced sulfur compounds (including H2S): 10 tpy

Municipal waste combustor organics (measured as total tetra- through octa-chlorinated dibenzo-p-dioxins and dibenzofurans): 3.2×10^{-6} megagrams per year (3.5×10^{-6} tons per year)

Municipal waste combustor metals (measured as particulate matter): 14 megagrams per year (15 tons per year)

Municipal waste combustor acid gases (measured as sulfur dioxide and hydrogen chloride): 36 megagrams per year (40 tons per year)

Municipal solid waste landfills emissions (measured as nonmethane organic compounds): 45 megagrams per year (50 tons per year)

(2) Significant means, in reference to a net emissions increase or the potential of a source to emit a regulated NSR pollutant that Rule 18.2(zz)(1) does not list, any emissions rate.

(3) Notwithstanding Rule 18.2(zz)(1), significant means any emissions rate or any net emissions increase associated with a major stationary source or major modification, which would construct within ten (10) kilometers of a Class I area, and have an impact on such area equal to or greater than 1 $\mu g/m^3$, (twenty-four (24) hour average).

(aaa) *Significant emissions increase* means, for a regulated NSR pollutant, an increase in emissions that is significant [as defined in Rule 18.2(zz)] for that pollutant.

(bbb) *Stationary source* means any building, structure, facility, or installation which emits or may emit a regulated NSR pollutant.

(ccc) *Temporary clean coal technology demonstration project* means a clean coal technology demonstration project that is operated for a period of five (5) years or less, and which complies with the local portion of the State Implementation Plans for the State in which the project is located and other requirements necessary to attain and maintain the national ambient air quality standards during the project and after it is terminated.

(ddd) (Reserved)

(eee) *Volatile organic compounds (VOC)* is as defined in section 4-2 of this chapter.

Rule 18.3. Ambient air increments. In areas designated as Class I, II or III, increases in pollutant concentration over the baseline concentration shall be limited to the following:

Pollutant	*Maximum Allowable Increase (micrograms per cubic meter)*
Class I Areas	
Particulate matter-$PM_{2.5}$	
Annual arithmetic mean	1
24-hr maximum	2
Particulate matter-PM_{10}	
Annual arithmetic mean	4
24-hr maximum	8
Sulfur dioxide	
Annual arithmetic mean	2

Pollutant	*Maximum Allowable Increase (micrograms per cubic meter)*
24-hr maximum	5
3-hr maximum	25
Nitrogen dioxide	
Annual arithmetic mean	2.5
Class II Areas	
Particulate Matter-$PM_{2.5}$	
Annual arithmetic mean	4
24-hr maximum	9
Particulate Matter-PM_{10}	
Annual arithmetic mean	17
24-hr maximum	30
Sulfur dioxide	
Annual arithmetic mean	20
24-hr maximum	91
3-hr maximum	512
Nitrogen dioxide	
Annual arithmetic mean	25
Class III Areas	
Particulate Matter-$PM_{2.5}$	
Annual arithmetic mean	8
24-hr maximum	18
Particulate Matter-PM_{10}	
Annual arithmetic mean	34
24-hr maximum	60
Sulfur dioxide	
Annual arithmetic mean	40
24-hr maximum	182
3-hr maximum	700
Nitrogen dioxide	
Annual arithmetic mean	50

For any period other than an annual period, the applicable maximum allowable increase may be exceeded during one (1) such period per year at any one (1) location.

For the purposes of this Rule, the following classifications shall apply:

Area Classification	*Designated Area*
Class I Areas	Great Smoky Mountains National Park
	Joyce Kilmer Slickrock National Wilderness Area
	Cohutta Wilderness Area
Class II Areas	Remainder of State
Class III Areas	None

Rule 18.4. Ambient air ceilings. No concentration of a pollutant shall exceed:

(a) The concentration permitted under the national secondary ambient air quality standard, or

(b) The concentration permitted under the national primary ambient air quality standard, whichever concentration is lowest for the pollutant for a period of exposure.

Rule 18.5. Restrictions on area classifications.

(a) All of the following areas which were in existence on August 7, 1977, shall be Class I areas and may not be redesignated:

(1) International parks,

(2) National wilderness areas which exceed 5,000 acres in size,

(3) National memorial parks which exceed 5,000 acres in size, and

(4) National parks which exceed 6,000 acres in size.

(b) Areas which were redesignated as Class I under regulations promulgated before August 7, 1977, shall remain Class I, but may be redesignated as provided in this Rule.

(c) Any other area, unless otherwise specified in the legislation creating such an area, is initially designated Class II, but may be redesignated as provided in this Rule.

(d) The following areas may be redesignated only as Class I or II:

(1) An area which as of August 7, 1977, exceeded 10,000 acres in size and was a national monument, a national primitive area, a national preserve, a national recreational area, a national wild and scenic river, a national wildlife refuge, a national lakeshore or seashore; and

(2) A national park or national wilderness area established after August 7, 1977, which exceeds ten thousand (10,000) acres in size.

Rule 18.6. (Reserved)

Rule 18.7. Stack heights.

(a) The degree of emission limitation required for control of any air pollutant under this Rule shall not be affected in any manner by:

(1) So much of the stack height of any source as exceeds good engineering practice, or

(2) Any other dispersion technique.

(b) Rule 18.7 shall not apply with respect to stack heights in existence before December 31, 1970, or to dispersion techniques implemented before then.

Rule 18.8. Exemptions.

(a) The requirements of Rules 18.9 through 18.17 shall not apply to a particular major stationary source or major modification, if:

(1) (Reserved)

(2) (Reserved)

(3) (Reserved)

(4) (Reserved)

(5) (Reserved)

(6) The source or modification would be a nonprofit health or nonprofit educational institution, or a major modification would occur at such an institution, and the governor of the state in which the source or modification would be located requests that it be exempt from those requirements; or

(7) The source or modification would be a major stationary source or major modification only if fugitive emissions, to the extent quantifiable, are considered in calculating the potential to emit of the stationary source or modification and the source does not belong to any of the following categories:

a. Coal cleaning plants (with thermal dryers);

b. Kraft pulp mills;

c. Portland cement plants;

d. Primary zinc smelters;

e. Iron and steel mills;

f. Primary aluminum ore reduction plants;

g. Primary copper smelters;

h. Municipal incinerators capable of charging more than fifty (50) tons of refuse per day;

i. Hydrofluoric, sulfuric, or nitric acid plants;

j. Petroleum refineries;

k. Lime plants;

l. Phosphate rock processing plants;

m. Coke oven batteries;

n. Sulfur recovery plants;

o. Carbon black plants (furnace process);

p. Primary lead smelters;

q. Fuel conversion plants;

r. Sintering plants;

s. Secondary metal production plants;

t. Chemical process plants;

u. Fossil-fuel boilers (or combination thereof) totaling more than two hundred fifty million (250,000,000) British thermal units per hour heat input;

v. Petroleum storage and transfer units with a total storage capacity exceeding three hundred thousand (300,000) barrels;

w. Taconite ore processing plants;

x. Glass fiber processing plants;

y. Charcoal production plants;

z. Fossil fuel-fired steam electric plants of more than two hundred fifty million (250,000,000) British thermal units per hour heat input;

aa. Any other stationary source category which, as of August 7, 1980, is being regulated under Sections 111 or 112 of the Federal Clean Air Act; or

(8) The source is a portable stationary source which has previously received a permit under this Rule, and

a. The owner or operator proposes to relocate the source and emissions of the source at the new location would be temporary; and

b. The emissions from the source would not exceed its allowable emissions; and

c. The emissions from the source would impact no Class I area and no area where an applicable increment is known to be violated; and

d. Reasonable notice is given to the Director prior to the relocation identifying the proposed new location and the probable duration of operation at the new location. Such notice shall be given to the Director not less than ten (10) days in advance of the proposed relocation unless a different time duration is previously approved by the Director.

(9) (Reserved)

(10) (Reserved).

(b) The requirements of Rules 18.9 through 18.17 shall not apply to a major stationary source or major modification with respect to a particular pollutant if the owner or operator demonstrates that, as to that pollutant, the source or modification is located in an area designated as nonattainment under Section 107 of the Federal Clean Air Act.

(c) The requirements of Rules 18.10, 18.12 and 18.14 shall not apply to a major stationary source or major modification with respect to a particular pollutant, if the allowable emissions of that pollutant from the source, or the net emissions increase of that pollutant from the modification:

(1) Would impact no Class I area and no area where an applicable increment is known to be violated, and

(2) Would be temporary.

(d) The requirements of Rules 18.10, 18.12 and 18.14 as they relate to any maximum allowable increase for a Class II area shall not apply to a major modification at a stationary source that was in existence on March 1, 1978, if the net increase in allowable emissions of each regulated NSR pollutant from the modification after the application of best available control technology would be less than fifty (50) tons per year.

(e) The Director may exempt a stationary source or modification from the requirements of Rule 18.12, with respect to monitoring for a particular pollutant if:

(1) The emissions increase of the pollutant from the new source or the net emissions increase of the pollutant from the modification would cause, in any area, air quality impacts less than the following amounts:

Carbon monoxide . . . . . 575 $\mu g/m^3$, 8-hour average;

Nitrogen dioxide . . . . . 14 $\mu g/m^3$, annual average;

Particulate matter . . . . . 10 $\mu g/m^3$ of PM_{10}, 24-hour average;

Sulfur dioxide . . . . . 13 $\mu g/m^3$, 24-hour average;

Lead . . . . . 0.1 $\mu g/m^3$, 3-month average;

Fluorides . . . . . 0.25 μg/m^3, 24-hour average;

Total reduced sulfur . . . . . 10 μg/m^3, 1-hour average;

Hydrogen sulfide . . . . . 0.2 μg/m^3, 1-hour average;

Reduced sulfur compounds . . . . . 10 μg/m^3, 1-hour average;

Ozone ..... No de minimis air quality level is provided for ozone. However, any net increase of one hundred (100) tons per year or more of volatile organic compounds or nitrogen oxides subject to PSD would be required to perform an ambient impact analysis including the gathering of ambient air quality data); or

(2) The concentrations of the pollutant in the area that the source or modification would affect are less than the concentrations in Rule 18.8 (e)(1) above, or the pollutant is not listed in Rule 18.8 (e)(1) above.

(f) (Reserved)

(g) (Reserved)

(h) (Reserved)

(i) (Reserved)

(j) (Reserved)

(k) The requirements of Rule 18.10(b) shall not apply to a stationary source or modification with respect to any maximum allowable increase for nitrogen oxides if the owner or operator of the source or modification submitted an application for a permit under this Rule before the provisions embodying the maximum allowable increase took effect as part of the applicable implementation plan and the Director subsequently determined that the application as submitted before that date was complete.

(l) The requirements in Rule 18.10(b) shall not apply to a stationary source or modification with respect to any maximum allowable increase for PM_{10} if (i) the owner or operator of the source or modification submitted an application for a permit under this Rule before the provisions embodying the maximum allowable increases for PM_{10} took effect in an implementation plan to which this Rule applies, and (ii) the Director subsequently determined that the application as submitted before that date was otherwise complete. Instead, the requirements of Rule 18.10(b) shall apply with respect to the maximum allowable increases for TSP as in effect on the date the application was submitted.

Rule 18.9. Control technology review.

(a) A major stationary source or major modification shall meet each applicable emissions limitation under the local portion of the State Implementation Plan and each applicable emissions standard and standard of performance under 40 CFR Parts 60 and 61.

(b) A new major stationary source shall apply best available control technology for each regulated NSR pollutant that it would have the potential to emit in significant amounts.

(c) A major modification shall apply best available control technology for each regulated NSR pollutant for which it would result in a significant net emissions increase at the source. This

requirement applies to each proposed emissions unit at which a net emissions increase in the pollutant would occur as a result of a physical change or change in the method of operation in the unit.

(d) For phased construction projects, the determination of best available control technology shall be reviewed and modified as appropriate at the latest reasonable time which occurs no later than eighteen (18) months prior to commencement of construction of each independent phase of the project. At such time, the owner or operator of the applicable stationary source may be required to demonstrate the adequacy of any previous determination of best available control technology for the source.

Rule 18.10. Source impact analysis. The owner or operator of the proposed source or modification shall demonstrate that allowable emission increases from the proposed source or modification, in conjunction with all other applicable emissions increases or reductions (including secondary emissions), would not cause or contribute to air pollution in violation of:

(a) Any national ambient air quality standard in any air quality control region; or

(b) Any applicable maximum allowable increase over the baseline concentration in any area.

Rule 18.11. Air quality models.

(a) All estimates of ambient concentrations required under this Rule shall be based on applicable air quality models, data bases, and other requirements specified in appendix W of 40 CFR Part 51 (Guideline on Air Quality Models).

(b) Where an air quality model specified in appendix W of 40 CFR Part 51 (Guideline on Air Quality Models) is inappropriate, the model may be modified or another model substituted. Such a modification or substitution of a model may be made on a case-by-case basis or, where appropriate, on a generic basis for a specific state program. Written approval of the U.S. EPA Administrator must be obtained for any modification or substitution. In addition, use of a modified or substituted model must be subject to notice and opportunity for public comment under procedures developed in accordance with Rule 18.16.

Rule 18.12. Air quality analysis.

(a) Preapplication analysis.

(1) Any application for a permit under this Rule shall contain an analysis of ambient air quality in the area that the major stationary source or major modification would affect for each of the following pollutants:

a. For the source, each pollutant that it would have the potential to emit in a significant amount;

b. For the modification, each pollutant for which it would result in a significant net emissions increase.

(2) With respect to any such pollutant for which no National Ambient Air Quality Standard exists, the analysis shall contain such air quality monitoring data as the Director determines is necessary to assess ambient air quality for that pollutant in any area that the emissions of that pollutant would affect.

(3) With respect to any such pollutant (other than nonmethane hydrocarbons) for which such a standard does exist, the analysis shall contain continuous air quality monitoring data gathered for purposes of determining whether emissions of that pollutant would cause or contribute to a violation of the standard or any maximum allowable increase.

(4) In general, the continuous air quality monitoring data that is required shall have been gathered over a period of at least one (1) year and shall represent at least the year preceding receipt of the application, except that, if the Director determines that a complete and adequate analysis can be accomplished with monitoring data gathered over a period shorter than one (1) year (but not to be less than four (4) months), the data that is required shall have been gathered over at least that shorter period.

(5) (Reserved)

(6) The owner or operator of a proposed stationary source or modification of volatile organic compounds who satisfies all conditions of 40 CFR Part 51 Appendix S, Section IV may provide post-approval monitoring data for ozone in lieu of providing preconstruction data as required under Rule 18.12 (a).

(7) (Reserved)

(8) With respect to any requirements for air quality monitoring of PM_{10} the owner or operator of the source or modification shall use a monitoring method approved by the Director and shall estimate the ambient concentrations of PM_{10} using the data collected by such approved monitoring method in accordance with estimating procedures approved by the Director.

(b) Post-construction monitoring. The owner or operator of a major stationary source or major modification shall, after construction of the stationary source or modification, conduct such ambient monitoring as the Director determines is necessary to determine the effect emissions from the stationary source or modification may have, or are having, on air quality in any area.

(c) Operations of monitoring stations. The owner or operator of a major stationary source or major modification shall meet the requirements of Appendix B to 40 CFR Part 58 during the operation of monitoring stations for purposes of satisfying Rule 18.12.

Rule 18.13. Source information. The owner or operator of a proposed source or modification shall submit all information necessary to perform any analysis or make any determination required under this Rule.

(a) With respect to a source or modification to which Rules 18.9, 18.11, 18.13 and 18.15 apply, such information shall include:

(1) A description of the nature, location, design capacity, and typical operating schedule of the source or modification, including specifications and drawings showing its design and plant layout;

(2) A detailed schedule for construction of the source or modification;

(3) A detailed description as to what system of continuous emission reduction is planned for the source or modification, emission estimates, and any other information necessary to determine that best available control technology would be applied.

(b) Upon request of the Director, the owner or operator shall also provide information on:

(1) The air quality impact of the source or modification, including meteorological and topographical data necessary to estimate such impact; and

(2) The air quality impacts, and the nature and extent of any or all general commercial, residential, industrial, and other growth which has occurred since August 7, 1977, in the area the source or modification would affect.

Rule 18.14. Additional impact analyses.

(a) The owner or operator shall provide an analysis of the impairment to visibility, soils and vegetation that would occur as a result of the source or modification and general commercial,

residential, industrial and other growth associated with the source or modification. The owner or operator need not provide an analysis of the impact on vegetation having no significant commercial or recreational value.

(b) The owner or operator shall provide an analysis of the air quality impact projected for the area as a result of general commercial, residential, industrial and other growth associated with the source or modification.

(c) Visibility monitoring. The Director may require monitoring of visibility in any Federal Class I area near the proposed new stationary source for major modification for such purposes and by such means as the Director deems necessary and appropriate.

Rule 18.15. Sources impacting Federal Class I areas - additional requirements

(a) *Notice to EPA.* The Director shall transmit to the EPA Region 4 Administrator a copy of each permit application relating to a major stationary source or major modification and provide notice to the EPA Region 4 Administrator of every action related to the consideration of such permit.

(b) *Notice to Federal Land Managers.* The Director shall provide written notice of any permit application for a proposed major stationary source or major modification, the emissions from which may affect a Class I area, to the Federal Land Manager and the Federal official charged with direct responsibility for management of any lands within any such area. Such notification shall include a copy of all information relevant to the permit application and shall be given within thirty (30) days of receipt and at least sixty (60) days prior to any public hearing on the application for a permit to construct. Such notification shall include an analysis of the proposed source's anticipated impacts on visibility in the Federal Class I area. The Director shall also provide the Federal Land Manager and such Federal officials with a copy of the preliminary determination required under Rule 18.16, and shall make available to them any materials used in making that determination, promptly after the Director makes such determination. Finally, the Director shall also notify all affected Federal Land Managers within thirty (30) days of receipt of any advance notification of any such permit application.

(c) *Federal Land Manager.* The Federal Land Manager and the Federal official charged with direct responsibility for management of such lands have an affirmative responsibility to protect the air quality related values (including visibility) of such lands and to consider, in consultation with the Director, whether a proposed source or modification will have an adverse impact on such values.

(d) *Visibility analysis.* The Director shall consider any analysis performed by the Federal Land Manager, provided within thirty (30) days of the notification required by Rule 18.15(b), that shows that a proposed new major stationary source or major modification may have an adverse impact on visibility in any Federal Class I area. Where the Director finds that such an analysis does not demonstrate to the satisfaction of the Director that an adverse impact on visibility will result in the Federal Class I area, the Director must, in the notice of public hearing on the permit application, either explain his decision or give notice as to where the explanation can be obtained.

(e) *Denial—impact on air quality related values.* The Federal Land Manager of any such lands may demonstrate to the Director that the emissions from a proposed source or modification would have an adverse impact on the air quality-related values (including visibility) of those lands, notwithstanding that the change in air quality resulting from emissions from such source or modification would not cause or contribute to concentrations which would exceed the maximum allowable increases for a Class I area. If the Director concurs with such demonstration, then he shall not issue the permit.

(f) *Class I variances.* The owner or operator of a proposed source or modification may demonstrate to the Federal Land Manager that the emissions from such source or modification would have no

adverse impact on the air quality related values of any such lands (including visibility), notwithstanding that the change in air quality resulting from emissions from such source or modification would cause or contribute to concentrations which would exceed the maximum allowable increases for a Class I area. If the Federal Land Manager concurs with such demonstration and he so certifies, the Director may: Provided, That the applicable requirements of this Rule are otherwise met, issue the permit with such emission limitations as may be necessary to assure that emissions of sulfur dioxide, particulate matter, and nitrogen oxides would not exceed the following maximum allowable increases over minor source baseline concentration for such pollutants:

Pollutant	*Maximum Allowable Increase (micrograms per cubic meter)*
Particulate matter-$PM_{2.5}$	
Annual arithmetic mean	4
24-hr maximum	9
Particulate matter-PM_{10}	
Annual arithmetic mean	17
24-hr maximum	30
Sulfur dioxide	
Annual arithmetic mean	20
24-hr maximum	91
3-hr maximum	325
Nitrogen dioxide	
Annual arithmetic mean	25

(g) *Sulfur dioxide variance by Governor with Federal Land Manager's concurrence.* The owner or operator of a proposed source or modification which cannot be approved under Rule 18.15(f) may demonstrate to the Governor that the source cannot be constructed by reason of any maximum allowable increase for sulfur dioxide for a period of twenty-four (24) hours or less applicable to any Class I area and, in the case of Federal mandatory Class I areas, that a variance under this clause would not adversely affect the air quality related values of the area (including visibility). The Governor, after consideration of the Federal Land Manager's recommendation (if any) and subject to his concurrence, may, after notice and public hearing, grant a variance from such maximum allowable increase. If such variance is granted, the Director shall issue a permit to such source or modification pursuant to Rule 18.15(i), provided that the applicable requirements of this Rule are otherwise met.

(h) *Variance by the Governor with the President's concurrence.* In any case where the Governor recommends a variance in which the Federal Land Manager does not concur, the recommendations of the Governor and the Federal Land Manager shall be transmitted to the President. The President may approve the Governor's recommendation if he finds that the variance is in the national interest. If the variance is approved, the Director shall issue a permit pursuant to the requirements of Rule 18.15(i), provided that the applicable requirements of this Rule are otherwise met.

(i) *Emission limitations for Presidential or gubernatorial variance.* In the case of a permit issued pursuant to Rules 18.15(g) or (h), the source or modification shall comply with such emission limitations as may be necessary to assure that emissions of sulfur dioxide from the source or modification would not (during any day on which the otherwise applicable maximum allowable increases are exceeded) cause or contribute to concentrations which would exceed the following

maximum allowable increases over the baseline concentration and to assure that such emissions would not cause or contribute to concentrations which exceed the otherwise applicable maximum allowable increases for periods of exposure of twenty-four (24) hours or less for more than eighteen (18) days, not necessarily consecutive, during any annual period:

Period of Exposure	*Maximum Allowable Increase (micrograms per cubic meter)*	
	Terrain Areas	
	Low	*High*
24-hr maximum	36	62
3-hr maximum	130	221

Rule 18.16. Public participation.

(a) The Director shall notify any applicant under the PSD rule within thirty (30) days after receipt of an application as to the completeness or any deficiency in the application or information submitted. In the event of such a deficiency, the date of receipt of the application shall be the date on which the Director received all required information.

(b) Within one year after receipt of a complete application, the Director shall:

(1) Make a preliminary determination whether construction should be approved, approved with conditions, or disapproved.

(2) Make available in at least one location in the jurisdiction of the permitting authority a copy of all materials the applicant submitted, a copy of the preliminary determination, and a copy or summary of other materials, if any, considered in making the preliminary determination.

(3) Notify the public, by publication as an electronic notice (e-notice) on the Bureau website for the duration of the public comment period and by other means designated by the Director, if necessary, of the preliminary determination, the degree of increment consumption that is expected from the source or modification, and the opportunity for comment at a public hearing as well as through written public comment. The notice shall include the draft permit, information on how to access the administrative record for the draft permit, and information on how to request and/or attend a public hearing on the draft permit.

(4) Send a copy of the notice of public comment to the applicant, the U.S. EPA Administrator, the State of Tennessee, the State of Alabama, the State of Georgia, the chief executives of the city and county where the source would be located; the regional land use planning agency, and any State, Federal Land Manager, or Indian Governing body whose lands may be affected by emissions from the source or modification.

(5) Provide opportunity for a public hearing for interested persons to appear and submit written or oral comments on the air quality impact of the source, alternatives to it, the control technology required, and other appropriate considerations.

(6) Consider all written comments submitted within a time specified in the notice of public comment and all comments received at any public hearing(s) in making a final decision on the approvability of the application. The director shall make all comments available for public inspection at the same location where preconstruction information relating to the proposed source or modification was available.

(7) Make a final determination whether construction should be approved, approved with conditions, or disapproved.

(8) Notify the applicant in writing of the final determination and make such notification available for public inspection at the same location where the reviewing authority made available preconstruction information and public comments relating to the source.

Rule 18.17. Source obligation.

(a) Any owner or operator who constructs or operates a source or modification not in accordance with the application submitted pursuant to this Rule or with the terms of any approval to construct, or any owner or operator of a source or modification subject to this Rule who commences construction after the effective date of these regulations without applying for and receiving approval hereunder, shall be subject to appropriate enforcement action.

(b) Approval to construct shall become invalid if construction is not commenced within eighteen (18) months after receipt of such approval, if construction is discontinued for a period of eighteen (18) months or more, or if construction is not completed within a reasonable time. The Director may extend the eighteen (18) month period upon a satisfactory showing that an extension is justified. This provision does not apply to the time period between construction of the approved phases of a phased construction project; each phase must commence construction within eighteen (18) months of the projected and approved commencement date.

(c) Approval to construct shall not relieve any owner or operator of the responsibility to comply fully with applicable provisions of the local portion of the State Implementation Plan and any other requirements under local, State, or Federal law.

(d) At such time that a particular source or modification becomes a major stationary source or major modification solely by virtue of a relaxation in any enforceable limitation which was established after August 7, 1980, on the capacity of the source or modification otherwise to emit a pollutant, such as a restriction on hours of operation, then the requirements Rule 18.9 through 8.18 shall apply to the source or modification as though construction had not yet commenced on the source or modification.

(e) (Reserved)

(f) The provisions of this Rule 18.17(f) apply to projects at an existing emissions unit at a major stationary source (other than at a source with a plantwide applicability limitation (PAL)) in circumstances where there is a reasonable possibility, within the meaning of Rule 18.17(f)(6), that a project that is not a part of a major modification may result in a significant emissions increase of such pollutant, and the owner or operator elects to use the method specified in Rule 18.2(rr)(2)a. through (rr)(2)c. for calculating projected actual emissions.

(1) Before beginning actual construction of the project, the owner or operator shall document and maintain a record of the following information:

a. A description of the project;

b. Identification of the emissions unit(s) whose emissions of a regulated NSR pollutant could be affected by the project; and

c. A description of the applicability test used to determine that the project is not a major modification for any regulated NSR pollutant, including the baseline actual emissions, the projected actual emissions, the amount of emissions excluded under Rule 18.2(rr)(2)c. and an explanation for why such amount was excluded, and any netting calculations, if applicable.

(2) If the emissions unit is an existing electric utility steam generating unit, before beginning actual construction, the owner or operator shall provide a copy of the information set out in Rule 18.17(f)(1) to the Director. Nothing in this Rule 18.17(f)(2) shall be construed to

require the owner or operator of such a unit to obtain any determination from the Director before beginning actual construction. However the source remains subject to Section 4-58 of this chapter requiring the appropriate modification of the Part 70 operating permit.

(3) The owner or operator shall monitor the emissions of any regulated NSR pollutant that could increase as a result of the project and that is emitted by any emissions unit identified in Rule 18.17(f)(1)b.; and calculate and maintain a record of the annual emissions, in tons per year on a calendar year basis, for a period of five (5) years following resumption of regular operations after the change, or for a period of ten (10) years following resumption of regular operations after the change if the project increases the design capacity of or potential to emit that regulated NSR pollutant at such emissions unit.

(4) If the unit is an existing electric utility steam generating unit, the owner or operator shall submit a report to the Director within sixty (60) days after the end of each year during which records must be generated under Rule 18.17(f)(3) setting out the unit's annual emissions during the calendar year that preceded submission of the report.

(5) If the unit is an existing unit other than an electric utility steam generating unit, the owner or operator shall submit a report to the Director if the annual emissions, in tons per year, from the project identified in Rule 18.17(f)(1), exceed the baseline actual emissions (as documented and maintained pursuant to Rule 18.17(f)(1)c.), by a significant amount [as defined in Rule 18.2(zz)] for that regulated NSR pollutant, and if such emissions differ from the preconstruction projection as documented and maintained pursuant to Rule 18.17(f)(1)c. Such report shall be submitted to the Director within sixty (60) days after the end of such year. The report shall contain the following:

a. The name, address and telephone number of the major stationary source;

b. The annual emissions as calculated pursuant to Rule 18.17(f)(3) and

c. Any other information that the owner or operator wishes to include in the report (e.g., an explanation as to why the emissions differ from the preconstruction projection).

(6) A "reasonable possibility" under this Rule 18.17(f) occurs when the owner or operator calculates the project to result in either:

a. A projected actual emissions increase of at least 50 percent of the amount that is a "significant emissions increase," as defined under Rule 18.2(aaa) (without reference to the amount that is a significant net emissions increase), for the regulated NSR pollutant; or

b. A projected actual emissions increase that, added to the amount of emissions excluded under Rule 18.2(rr)(2)c, sums to at least fifty (50) percent of the amount that is a "significant emissions increase," as defined under Rule 18.2(aaa) (without reference to the amount that is a significant net emissions increase), for the regulated NSR pollutant. For a project for which a reasonable possibility occurs only within the meaning of Rule 18.17(f)(6)b., and not also within the meaning of Rule 18.17(f)(6)a., then provisions in Rule 18.17(f)(2) through (5) do not apply to the project.

(g) The owner or operator of the source shall make the information required to be documented and maintained pursuant to Rule 18.17(f) available for review upon a request for inspection by the Director or the general public pursuant to the requirements contained in forty (40) CFR §70.4(b)(3)(viii).

Rule 18.18. Environmental impact statements. Whenever any proposed source or modification is subject to action by a Federal Agency which might necessitate preparation of an environmental impact statement

pursuant to the National Environmental Policy Act (42 U.S.C. §4321), review by the Director conducted pursuant to this Rule shall be coordinated with the broad environmental reviews under that Act and under Section 309 of the Federal Clean Air Act to the maximum extent feasible and reasonable.

Rule 18.19. Innovative control technology.

(a) An owner or operator of a proposed major stationary source or major modification may request the Director in writing no later than the close of the comment period under Rule 18.16 to approve a system of innovative control technology.

(b) The Director with the consent of the governor(s) of the affected state(s) may determine that the source or modification may employ a system of innovative control technology, if:

(1) The proposed control system would not cause or contribute to an unreasonable risk to public health, welfare, or safety in its operation or function;

(2) The owner or operator agrees to achieve a level of continuous emissions reduction equivalent to that which would have been required under Rule 18.9(b) by a date specified by the Director. Such date shall not be later than four (4) years from the time of startup or seven (7) years from permit issuance;

(3) The source or modification would meet the requirements of Rule 18.9 and 18.10 based on the emissions rate that the stationary source employing the system of innovative control technology would be required to meet on the date specified by the Director;

(4) The source or modification would not before the date specified by the Director:

a. Cause or contribute to a violation of an applicable national ambient air quality standard; or

b. Impact any area where an applicable increment is known to be violated; and

(5) All other applicable requirements including those for public participation have been met.

(6) The provisions of Rule 18.15 (relating to Class I areas) have been satisfied with respect to all periods during the life of the source or modification.

(c) The Director shall withdraw any approval to employ a system of innovative control technology made under this Rule, if:

(1) The proposed system fails by the specified date to achieve the required continuous emissions reduction rate; or

(2) The proposed system fails before the specified date so as to contribute to an unreasonable risk to public health, welfare, or safety; or

(3) The Director decides at any time that the proposed system is unlikely to achieve the required level of control or to protect the public health, welfare, or safety.

(d) If a source or modification fails to meet the required level of continuous emission reduction within the specified time period or the approval is withdrawn in accordance with Rule 18.19(c), the Director may allow the source or modification up to an additional three (3) years to meet the requirement for the application of best available control technology through use of a demonstrated system of control.

Rule 18.20. Permit rescission.

(a) Any permit issued pursuant to this rule or a prior version of this rule shall remain in effect, unless and until it expires or is rescinded.

(b) Any owner or operator of a stationary source or modification who holds a permit for the source or modification which was issued pursuant to this Rule as in effect on July 30, 1987, or any earlier version, may request that the Director rescind the permit or a particular portion of the permit.

(c) The Director shall grant an application for rescission if the application shows that this Rule would not apply to the source or modification.

(d) If the Director rescinds a permit under this Rule, the public shall be given adequate notice of the rescission. Publication of an announcement of rescission as an electronic notice (e-notice) on the Bureau website for a period of sixty (60) days prior to the rescission and by other means designated by the Director, if necessary, shall be considered adequate notice.

Rule 18.21. Actuals Plantwide Applicability Limitations (PALs). The provisions in Rule 18.21(a) through (o) shall govern actuals Plantwide Applicability imitations (PALs):

(a) *Applicability.*

(1) The Director may approve the use of an actuals plantwide applicability limitation (PAL)for any existing major stationary source if the PAL meets the requirements of Rule 18.21. The term "PAL" shall mean "actuals PAL" [as defined in Rule 18.21(b)(1)] throughout Rule 18.21.

(2) Any physical change in or change in the method of operation of a major stationary source that maintains its total source-wide emissions below the plantwide applicability limitation (PAL) level, meets the requirements in Rule 18.21, and complies with the PAL permit:

a. Is not a major modification for the plantwide applicability limitation (PAL) pollutant;

b. Does not have to be approved through the PSD program; and

c. Is not subject to the provisions in Rule18.17(d) (restrictions on relaxing enforceable emission limitations that the major stationary source used to avoid applicability of the major New Source Review program).

(3) Except as provided under Rule 18.21(a)(2)c., a major stationary source shall continue to comply with all applicable local, state, or federal requirements, emission limitations, and work practice requirements that were established prior to the effective date of the plantwide applicability limitation (PAL).

(b) *Definitions.* For the purposes of Rule 18.21, the definitions in this Rule 18.21apply. When a term is not defined in this rule, it shall have the meaning given in Rule 18.2 or in the Federal Clean Air Act.

(1) *Actuals PAL* for a major stationary source means a plantwide applicability limitation (PAL) based on the baseline actual emissions [as defined in Rule 18.2(d)] of all emissions units [as defined in Rule 18.2(t)] that emit or have the potential to emit the PAL pollutant.

(2) *Allowable emissions* means "allowable emissions" as defined in Rule 18.2(c), except as this definition is modified according to Rule 18.21(b)(2)a. and b. below:

a. The allowable emissions for any emissions unit shall be calculated considering any emission limitations that are enforceable as a practical matter on the emissions unit's potential to emit.

b. An emissions unit's potential to emit shall be determined using the definition in Rule 18.2(mm), except that the words "or enforceable as a practical matter" should be added after "federally enforceable."

(3) *Small emissions unit* means an emissions unit that emits or has the potential to emit the plantwide applicability limitation (PAL) pollutant in an amount less than the significant level for that PAL pollutant, as defined in Rule 18.2(zz) or in the Federal Clean Air Act, whichever is lower.

(4) *Major emissions unit* means:

a. Any emissions unit that emits or has the potential to emit 100 tons per year or more of the plantwide applicability limitation (PAL) pollutant in an attainment area; or

b. Any emissions unit that emits or has the potential to emit the PAL pollutant in an amount that is equal to or greater than the major source threshold for the PAL pollutant as defined by the Federal Clean Air Act for nonattainment areas. For example, in accordance with the definition of major stationary source in Section 182(c) of the Federal Clean Air Act, an emissions unit would be a major emissions unit for VOC if the emissions unit is located in a serious ozone nonattainment area and it emits or has the potential to emit fifty (50) or more tons of VOC per year.

(5) *Plantwide applicability limitation (PAL)* means an emission limitation expressed in tons per year, for a pollutant at a major stationary source, that is enforceable as a practical matter and established source-wide in accordance with Rule 18.21.

(6) *PAL effective date* generally means the date of issuance of the plantwide applicability limitation (PAL) permit. However, the PAL effective date for an increased PAL is the date any emissions unit that is part of the plantwide applicability limitation (PAL) major modification becomes operational and begins to emit the PAL pollutant.

(7) *PAL effective period* means the period beginning with the plantwide applicability limitation (PAL) effective date and ending ten (10) years later.

(8) *PAL major modification* means, notwithstanding Rule 18.2(ff) and (jj) (the definitions for major modification and net emissions increase), any physical change in or change in the method of operation of the plantwide applicability limitation (PAL) source that causes it to emit the PAL pollutant at a level equal to or greater than the PAL.

(9) *PAL permit* means the major New Source Review permit, the minor New Source Review permit, or the State or local operating permit under a program that is approved into the local portion of the State Implementation Plan, or the Part 70 operating permit issued by the Director that establishes a plantwide applicability limitation (PAL) for a major stationary source.

(10) *PAL pollutant* means the pollutant for which a plantwide applicability limitation (PAL) is established at a major stationary source.

(11) *Significant emissions unit* means an emissions unit that emits or has the potential to emit a PAL pollutant in an amount that is equal to or greater than the significant level (as defined in Rule 18.2(zz) or in the Federal Clean Air Act, whichever is lower) for that PAL pollutant, but less than the amount that would qualify the unit as a major emissions unit as defined in Rule 18.21(b)(4).

(c) *Permit application requirements.* As part of a permit application requesting a plantwide applicability limitation (PAL), the owner or operator of a major stationary source shall submit the following information to the Director for approval:

(1) A list of all emissions units at the source designated as small, significant or major based on their potential to emit. In addition, the owner or operator of the source shall indicate which, if any, local, state, or federal applicable requirements, emission limitations, or work practices apply to each unit.

(2) Calculations of the baseline actual emissions (with supporting documentation). Baseline actual emissions are to include emissions associated not only with operation of the unit, but also emissions associated with startup, shutdown, and malfunction.

(3) The calculation procedures that the major stationary source owner or operator proposes to use to convert the monitoring system data to monthly emissions and annual emissions based on a twelve (12) month rolling total for each month as required by Rule 18.21(m)(1).

(d) *General requirements for establishing plantwide applicability limitations (PALs).*

(1) The Director is allowed to establish a plantwide applicability limitation (PAL) at a major stationary source, provided that at a minimum, the requirements Rule 18.21 are met.

a. The plantwide applicability limitation (PAL) shall impose an annual emission limitation in tons per year that is enforceable as a practical matter, for the entire major stationary source. For each month during the PAL effective period after the first twelve (12) months of establishing a PAL, the major stationary source owner or operator shall show that the sum of the monthly emissions from each emissions unit under the PAL for the previous twelve (12) consecutive months is less than the PAL (a twelve (12) month average, rolled monthly). For each month during the first eleven (11) months from the PAL effective date, the major stationary source owner or operator shall show that the sum of the preceding monthly emissions from the PAL effective date for each emissions unit under the PAL is less than the PAL.

b. The PAL shall be established in a PAL permit that meets the public participation requirements in Rule 18.21(e).

c. The PAL permit shall contain all the requirements in Rule 18.21(g).

d. The PAL shall include fugitive emissions, to the extent quantifiable, from all emissions units that emit or have the potential to emit the PAL pollutant at the major stationary source.

e. Each PAL shall regulate emissions of only one (1) pollutant.

f. Each PAL shall have a PAL effective period of ten (10) years.

g. The owner or operator of the major stationary source with a PAL shall comply with the monitoring, recordkeeping, and reporting requirements provided in Rule 18.21(l), (m), and (n) for each emissions unit under the PAL through the PAL effective period.

(2) At no time (during or after the PAL effective period) are emissions reductions of a PAL pollutant that occur during the PAL effective period creditable as decreases for purposes of offsets under 40 CFR §51.165(a)(3)(ii) unless the level of the PAL is reduced by the amount of such emissions reductions and such reductions would be creditable in the absence of the PAL.

(e) *Public participation requirements for plantwide applicability limitations (PALs).* Plantwide applicability limitations (PALs) for existing major stationary sources shall be established, renewed, or increased through a procedure that is consistent with 40 CFR §51.160, 40 CFR §51.161, and this chapter. This includes the requirement that the Director provide the public with notice of the proposed approval of a PAL permit and at least a thirty (30) day period for submittal of public comment. The Director must address all material comments before taking final action on the permit.

(f) *Setting the ten (10) year actuals PAL level.*

(1) Except as provided in Rule 18.21(f)(2), the plan shall provide that the actuals PAL level for a major stationary source shall be established as the sum of the baseline actual emissions [as defined in Rule 18.2(d)] of the PAL pollutant for each emissions unit at the source; plus an

amount equal to the applicable significant level for the PAL pollutant under Rule 18.2(zz) or under the Federal Clean Air Act, whichever is lower. When establishing the actuals PAL level, for a PAL pollutant, only one (1) consecutive twenty-four (24) month period must be used to determine the baseline actual emissions for all existing emissions units. However, a different consecutive twenty-four (24) month period may be used for each different PAL pollutant. Emissions associated with units that were permanently shut down after this twenty-four (24) month period must be subtracted from the plantwide applicability limitation (PAL) level. The reviewing authority shall specify a reduced PAL level(s) (in tons/yr) in the PAL permit to become effective on the future compliance date(s) of any applicable local, state, or federal regulatory requirement(s) that the reviewing authority is aware of prior to issuance of the PAL permit. For instance, if the source owner or operator will be required to reduce emissions from industrial boilers in half from baseline emissions of sixty (60) ppm NO_X to a new rule limit of thirty (30) ppm, then the permit shall contain a future effective PAL level that is equal to the current PAL level reduced by half of the original baseline emissions of such unit(s).

(2) For newly constructed units (which do not include modifications to existing units) on which actual construction began after the twenty-four (24) month period, in lieu of adding the baseline actual emissions as specified in Rule 18.21(f)(1), the emissions must be added to the PAL level in an amount equal to the potential to emit of the units.

(g) *Contents of the plantwide applicability limitation (PAL) permit.* The PAL permit must contain, at a minimum, the information in (1) through (10) below:

(1) The PAL pollutant and the applicable source-wide emission limitation in tons per year.

(2) The PAL permit effective date and the expiration date of the plantwide applicability limitation (PAL) [PAL effective period].

(3) Specification in the PAL permit that if a major stationary source owner or operator applies to renew a PAL in accordance with Rule 18.21(j) before the end of the PAL effective period, then the PAL shall not expire at the end of the PAL effective period. It shall remain in effect until a revised PAL permit is issued by a reviewing authority.

(4) A requirement that emission calculations for compliance purposes must include emissions from startups, shutdowns, and malfunctions.

(5) A requirement that, once the PAL expires, the major stationary source is subject to the requirements of Rule 18.21(i).

(6) The calculation procedures that the major stationary source owner or operator shall use to convert the monitoring system data to monthly emissions and annual emissions based on a twelve (12) month rolling total as required by Rule 18.21(m)(1).

(7) A requirement that the major stationary source owner or operator monitor all emissions units in accordance with the provisions of Rule 18.21(l).

(8) A requirement to retain the records required by Rule 18.21(m) on site. Such records may be retained in an electronic format.

(9) A requirement to submit the reports required under Rule 18.21(n) by the required deadlines.

(10) Any other requirements that the Director deems necessary to implement and enforce the PAL.

(h) *Plantwide applicability limitation (PAL) effective period and reopening of the PAL permit.* The requirements in Rule 18.22(h)(1) and Rule 18.22(h)(2) apply to actuals PALs.

(1) PAL effective period. The Director shall specify a plantwide applicability limitation (PAL) effective period of ten (10) years.

(2) Reopening of the plantwide applicability limitation (PAL) permit.

a. During the plantwide applicability limitation (PAL) effective period, the Director must reopen the PAL permit to:

1. Correct typographical/calculation errors made in setting the PAL or reflect a more accurate determination of emissions used to establish the PAL;

2. Reduce the PAL if the owner or operator of the major stationary source creates creditable emissions reductions for use as offsets under 40 CFR §51.165(a)(3)(ii); and

3. Revise the PAL to reflect an increase in the PAL as provided under Rule 18.21(k).

b. The Director shall have discretion to reopen the PAL permit for the following:

1. Reduce the PAL to reflect newly applicable Federal requirements (for example, New Source Performance Standards) with compliance dates after the PAL effective date;

2. Reduce the PAL consistent with any other requirement, that is enforceable as a practical matter, and that the State may impose on the major stationary source under the local portion of the State Implementation Plan; and

3. Reduce the PAL if the reviewing authority determines that a reduction is necessary to avoid causing or contributing to a National Ambient Air Quality Standard (NAAQS) or Prevention of Significant Deterioration of Air Quality (PSD) increment violation, or to an adverse impact on an air quality related value that has been identified for a Federal Class I area by a Federal Land Manager and for which information is available to the general public.

c. Except for the permit reopening in Rule 18.22(h)(2)a.1 for the correction of typographical/calculation errors that do not increase the PAL level, all other reopenings shall be carried out in accordance with the public participation requirements of Rule 18.21(e).

(i) *Expiration of a plantwide applicability limitation (PAL).* Any plantwide applicability limitation (PAL) that is not renewed in accordance with the procedures in Rule 18.21(j) shall expire at the end of the PAL effective period, and the requirements in Rule 18.21(i)(1) through (5) shall apply.

(1) Each emissions unit (or each group of emissions units) that existed under the PAL shall comply with an allowable emission limitation under a revised permit established according to the procedures Rule 18.21(i)(1)a. and b.

a. Within the time frame specified for PAL renewals in Rule 18.21(j)(2), the major stationary source shall submit a proposed allowable emission limitation for each emissions unit (or each group of emissions units, if such a distribution is more appropriate as decided by the Director) by distributing the PAL allowable emissions for the major stationary source among each of the emissions units that existed under the PAL. If the PAL had not yet been adjusted for an applicable requirement that became effective during the PAL effective period, as required by Rule 18.22(j)(5) such distribution shall be made as if the PAL had been adjusted.

b. The Director shall decide whether and how the PAL allowable emissions will be distributed and issue a revised permit incorporating allowable limits for each emissions unit, or each group of emissions units, as the Director determines is appropriate.

(2) Each emissions unit(s) shall comply with the allowable emission limitation on a twelve (12) month rolling basis. The Director may approve the use of monitoring systems (source testing, emission factors, etc.) other than continuous emissions monitoring system (CEMS) [as defined in Rule 18.2(p)]; continuous emissions rate monitoring system (CERMS) [as defined in Rule 18.2(q)]; predictive emissions monitoring system (PEMS) [as defined in Rule 18.2(nn)]; or continuous parameter monitoring system (CPMS) [as defined in Rule 18.2(r)]; to demonstrate compliance with the allowable emission limitation.

(3) Until the Director issues the revised permit incorporating allowable limits for each emissions unit, or each group of emissions units, as required by Rule 18.21(i)(1)b. the source shall continue to comply with a source-wide, multi-unit emissions cap equivalent to the level of the plantwide applicability limitation (PAL) emission limitation.

(4) Any physical change or change in the method of operation at the major stationary source will be subject to major New Source Review requirements if such change meets the definition of major modification Rule 18.2(ff).

(5) The major stationary source owner or operator shall continue to comply with any local, state, or federal applicable requirements (Best Available Control Technology, Reasonably Available Control Technology, New Source Performance Standards, etc.) that may have applied either during the plantwide applicability limitation (PAL) effective period or prior to the PAL effective period except for those emission limitations that had been established pursuant to Rule18.17(d), but were eliminated by the PAL in accordance with the provisions in Rule 18.21(a)(2)c.

(j) *Renewal of a plantwide applicability limitation (PAL).*

(1) The Director shall follow the procedures specified in Rule 18.21(e) in approving any request to renew a plantwide applicability limitation (PAL) for a major stationary source, and shall provide both the proposed PAL level and a written rationale for the proposed PAL level to the public for review and comment. During such public review, any person may propose a PAL level for the source for consideration by the Director.

(2) *Application deadline.* A major stationary source owner or operator shall submit a timely application to the Director to request renewal of a plantwide applicability limitation (PAL). A timely application is one (1) that is submitted at least six (6) months prior to, but not earlier than eighteen (18) months from, the date of permit expiration. This deadline for application submittal is to ensure that the permit will not expire before the permit is renewed. If the owner or operator of a major stationary source submits a complete application to renew the PAL within this time period, then the PAL shall continue to be effective until the revised permit with the renewed PAL is issued.

(3) *Application requirements.* The application to renew a plantwide applicability limitation (PAL) permit shall contain the information required by a. through d. below.

a. The information required in Rule 18.21(c)(1) through (3).

b. A proposed PAL level.

c. The sum of the potential to emit of all emissions units under the PAL (with supporting documentation).

d. Any other information the owner or operator wishes the Director to consider in determining the appropriate level for renewing the PAL.

(4) *PAL adjustment.* In determining whether and how to adjust the plantwide applicability limitation (PAL), the director shall consider the options outlined in Rule 18.21(j)(4)a. and b. below. However, in no case may any such adjustment fail to comply with Rule 18.21(j)(4)c.

a. If the emissions level calculated in accordance with Rule18.21(f) is equal to or greater than 80 percent of the PAL level, the Director may renew the PAL at the same level without considering the factors set forth in Rule 18.21(j)(4)b. below; or

b. The Director may set the PAL at a level that he or she determines to be more representative of the source's baseline actual emissions, or that he or she determines to be more appropriate considering air quality needs, advances in control technology, anticipated economic growth in the area, desire to reward or encourage the source's voluntary emissions reductions, or other factors as specifically identified by the Director in his or her written rationale.

c. Notwithstanding Rule18.21(j)(4)a. and b. above:

1. If the potential to emit of the major stationary source is less than the PAL, the Director shall adjust the PAL to a level no greater than the potential to emit of the source; and

2. The Director shall not approve a renewed PAL level higher than the current PAL, unless the major stationary source has complied with the provisions of Rule 18.21(k) (increasing a PAL).

(5) If the compliance date for a State or Federal requirement that applies to the PAL source occurs during the PAL effective period, and if the Director has not already adjusted for such requirement, the PAL shall be adjusted at the time of PAL permit renewal or Part 70 operating permit renewal, whichever occurs first.

(k) *Increasing a plantwide applicability limitation (PAL) during the PAL effective period.*

(1) The Director may increase a plantwide applicability limitation (PAL) emission limitation only if the major stationary source complies with the provisions in a. through d. below.

a. The owner or operator of the major stationary source shall submit a complete application to request an increase in the PAL limit for a PAL major modification. Such application shall identify the emissions unit(s) contributing to the increase in emissions so as to cause the major stationary source's emissions to equal or exceed its PAL.

b. As part of this application, the major stationary source owner or operator shall demonstrate that the sum of the baseline actual emissions of the small emissions units, plus the sum of the baseline actual emissions of the significant and major emissions units assuming application of Best Available Control Technology (BACT) equivalent controls, plus the sum of the allowable emissions of the new or modified emissions unit(s) exceeds the PAL. The level of control that would result from BACT equivalent controls on each significant or major emissions unit shall be determined by conducting a new BACT analysis at the time the application is submitted, unless the emissions unit is currently required to comply with a BACT or Lowest Achievable Emissions Rate (LAER) requirement that was established within the preceding ten (10) years. In such a case, the assumed control level for that emissions unit shall be equal to the level of BACT or LAER with which that emissions unit must currently comply.

c. The owner or operator obtains a major New Source Review (NSR) permit for all emissions unit(s) identified in Rule 18.21(k)(1)a., regardless of the magnitude of the emissions increase resulting from them (that is, no significant levels apply). These emissions unit(s) shall comply with any emissions requirements resulting from the major NSR process (for example, BACT), even though they have also become subject to the PAL or continue to be subject to the PAL.

d. The PAL permit shall require that the increased PAL level shall be effective on the day any emissions unit that is part of the PAL major modification becomes operational and begins to emit the PAL pollutant.

(2) The Director shall calculate the new PAL level as the sum of the allowable emissions for each modified or new emissions unit, plus the sum of the baseline actual emissions of the significant and major emissions units [assuming application of BACT equivalent controls as determined in accordance with Rule 18.21(k)(1)b.] plus the sum of the baseline actual emissions of the small emissions units.

(3) The PAL permit shall be revised to reflect the increased PAL level pursuant to the public notice requirements of Rule 18.21(e).

(l) *Monitoring requirements for plantwide applicability limitations (PALs).*

(1) *General requirements.*

a. Each plantwide applicability limitation (PAL) permit must contain enforceable requirements for the monitoring system that accurately determines plantwide emissions of the PAL pollutant in terms of mass per unit of time. Any monitoring system authorized for use in the PAL permit must be based on sound science and meet generally acceptable scientific procedures for data quality and manipulation. Additionally, the information generated by such system must meet minimum legal requirements for admissibility in a judicial proceeding to enforce the PAL permit.

b. The PAL monitoring system must employ one or more of the four general monitoring approaches meeting the minimum requirements set forth in Rule 18.21(l)(2)a. through d. and must be approved by the Director.

c. Notwithstanding Rule 18.21(l)(1)b. an alternative monitoring approach that meets the requirements of Rule18.21(l)(1)a. can be employed if approved by the Director.

d. Failure to use a monitoring system that meets the requirements of this Rule renders the PAL invalid.

(2) Minimum performance requirements for approved monitoring approaches. The following are acceptable general monitoring approaches when conducted in accordance with the minimum requirements in Rule 18.21(l)(3) through Rule 18.21(l)(9):

a. Mass balance calculations for activities using coatings or solvents;

b. Continuous emissions monitoring system (CEMS) [as defined in Rule 18.2(p)];

c. Continuous parameter monitoring system (CPMS) [as defined in Rule 18.2(r)] or predictive emissions monitoring system (PEMS) [as defined in Rule 18.2(nn)]; and

d. Emission factors.

(3) *Mass balance calculations.* An owner or operator using mass balance calculations to monitor PAL pollutant emissions from activities using coating or solvents shall meet the following requirements:

a. Provide a demonstrated means of validating the published content of the PAL pollutant that is contained in or created by all materials used in or at the emissions unit;

b. Assume that the emissions unit emits all of the PAL pollutant that is contained in or created by any raw material or fuel used in or at the emissions unit, if it cannot otherwise be accounted for in the process; and

c. Where the vendor of a material or fuel, which is used in or at the emissions unit, publishes a range of pollutant content from such material, the owner or operator must use the highest value of the range to calculate the PAL pollutant emissions unless the Director determines there is site-specific data or a site-specific monitoring program to support another content within the range.

(4) *Continuous Emissions Monitoring System (CEMS).* An owner or operator using a continuous emissions monitoring system (CEMS) [as defined in Rule 18.2(p)] to monitor plantwide applicability limitation (PAL) pollutant emissions shall meet the following requirements:

a. CEMS must comply with applicable Performance Specifications found in 40 CFR Part 60, Appendix B; and

b. CEMS must sample, analyze and record data at least every 15 minutes while the emissions unit is operating.

(5) *Continuous Parameter Monitoring System (CPMS) or Predictive Emissions Monitoring System (PEMS).* An owner or operator using a continuous parameter monitoring system (CPMS) [as defined in Rule 18.2(r)] or a predictive emissions monitoring system (PEMS) [as defined in Rule 18.2(nn)] to monitor plantwide applicability limitation (PAL) pollutant emissions shall meet the following requirements:

a. The CPMS or the PEMS must be based on current site-specific data demonstrating a correlation between the monitored parameter(s) and the PAL pollutant emissions across the range of operation of the emissions unit; and

b. Each CPMS or PEMS must sample, analyze, and record data at least every fifteen (15) minutes, or at another less frequent interval approved by the Director, while the emissions unit is operating.

(6) *Emission factors.* An owner or operator using emission factors to monitor plantwide applicability limitation (PAL) pollutant emissions shall meet the following requirements:

a. All emission factors shall be adjusted, if appropriate, to account for the degree of uncertainty or limitations in the factors' development;

b. The emissions unit shall operate within the designated range of use for the emission factor, if applicable; and

c. If technically practicable, the owner or operator of a significant emissions unit that relies on an emission factor to calculate PAL pollutant emissions shall conduct validation testing to determine a site-specific emission factor within six (6) months of PAL permit issuance, unless the Director determines that testing is not required.

(7) A source owner or operator must record and report maximum potential emissions without considering enforceable emission limitations or operational restrictions for an emissions unit during any period of time that there is no monitoring data, unless another method for determining emissions during such periods is specified in the plantwide applicability limitation (PAL) permit.

(8) Notwithstanding the requirements in Rule18.21(l)(3) through (7), where an owner or operator of an emissions unit cannot demonstrate a correlation between the monitored parameter(s) and the plantwide applicability limitation (PAL) pollutant emissions rate at all operating points of the emissions unit, the Director shall, at the time of permit issuance:

a. Establish default value(s) for determining compliance with the PAL based on the highest potential emissions reasonably estimated at such operating point(s); or

b. Determine that operation of the emissions unit during operating conditions when there is no correlation between monitored parameter(s) and the PAL pollutant emissions is a violation of the PAL.

(9) *Re-validation.* All data used to establish the plantwide applicability limitation (PAL) pollutant must be re-validated through performance testing or other scientifically valid means approved by the Director. Such testing must occur at least once every five (5) years after issuance of the PAL.

(m) *Recordkeeping requirements.*

(1) The plantwide applicability limitation (PAL) permit shall require an owner or operator to retain a copy of all records necessary to determine compliance with any requirement of Rule 18.21 and of the PAL, including a determination of each emissions unit's twelve (12) month rolling total emissions, for five (5) years from the date of such record.

(2) The plantwide applicability limitation (PAL) permit shall require an owner or operator to retain a copy of the following records for the duration of the PAL effective period plus five (5) years:

a. A copy of the PAL permit application and any applications for revisions to the PAL; and

b. Each annual certification of compliance pursuant to the requirements for the Part 70 operating permit program and the data relied on in certifying the compliance.

(n) *Reporting and notification requirements.* The owner or operator shall submit semi-annual monitoring reports and prompt deviation reports to the Director in accordance with the applicable Part 70 operating permit program. The reports shall meet the requirements in Rule 18.21(n)(1) through (3) below:

(1) Semi-annual report. The semi-annual report shall be submitted to the Director within thirty (30) days of the end of each reporting period. This report shall contain the information required by a. through g. below:

a. The identification of owner and operator and the permit number.

b. Total annual emissions (tons/year) based on a twelve (12) month rolling total for each month in the reporting period recorded pursuant to Rule 18.21(m).

c. All data relied upon, including, but not limited to, any Quality Assurance or Quality Control data, in calculating the monthly and annual plantwide applicability limitation (PAL) pollutant emissions.

d. A list of any emissions units modified or added to the major stationary source during the preceding six (6) month period.

e. The number, duration, and cause of any deviations or monitoring malfunctions (other than the time associated with zero and span calibration checks), and any corrective action taken.

f. A notification of a shutdown of any monitoring system, whether the shutdown was permanent or temporary, the reason for the shutdown, the anticipated date that the monitoring system will be fully operational or replaced with another monitoring system, and whether the emissions unit monitored by the monitoring system continued to operate, and the calculation of the emissions of the pollutant or the number determined by method included in the permit, as required by Rule 18.21(l)(7).

g. A signed statement under oath by the responsible official (as defined in Section 4-53 of this chapter) certifying the truth, accuracy, and completeness of the information provided in the report. It shall constitute a certification under T.C.A. § 68-201-112.

(2) *Deviation report.* The major stationary source owner or operator shall promptly submit reports of any deviations or exceedance of the plantwide applicability limitation (PAL) requirements, including periods where no monitoring is available. The report shall be submitted according to the requirements of section 4-12 of this chapter. The deviation report will be certified by the responsible official as required in Rule 18.21(n)(1)g. The reports shall contain the following information:

a. The identification of owner and operator and the permit number;

b. The PAL requirement that experienced the deviation or that was exceeded;

c. Emissions resulting from the deviation or the exceedance; and

d. A statement by the responsible official meeting the requirements of Rule 18.21(n)(1)g.

(3) *Re-validation results.* The owner or operator shall submit to the Director the results of any re-validation test or method within 3 months after completion of such test or method.

(o) *Transition requirements.*

(1) The Director may not issue a plantwide applicability limitation (PAL) that does not comply with the requirements in Rule 18.21 after March 3, 2003.

(2) The Director may supersede any PAL that was established prior to March 3, 2003 with a PAL that complies with the requirements of Rule 18.21.

Rule 18.22. Basic design parameters are determined as follows:

(a) Except as provided in Rule 18.22(c) for a process unit at a steam electric generating facility, the owner or operator may select as its basic design parameters either maximum hourly heat input and maximum hourly fuel consumption rate or maximum hourly electric output rate and maximum steam flow rate. When establishing fuel consumption specifications in terms of weight or volume, the minimum fuel quality based on British Thermal Units content shall be used for determining the basic design parameter(s) for a coal-fired electric utility steam generating unit.

(b) Except as provided in Rule18.22(c), the basic design parameter(s) for any process unit that is not at a steam electric generating facility are maximum rate of fuel or heat input, maximum rate of material input, or maximum rate of product output. Combustion process units will typically use maximum rate of fuel input. For sources having multiple end products and raw materials, the owner or operator should consider the primary product or primary raw material when selecting a basic design parameter.

(c) If the owner or operator believes the basic design parameter(s) in Rule 18.22(a) and (b) are not appropriate for a specific industry or type of process unit, the owner or operator may propose to the director an alternative basic design parameter(s) for the source's process unit(s). If the Director approves of the use of an alternative basic design parameter(s), the Director shall issue a permit that is legally enforceable that records such basic design parameter(s) and requires the owner or operator to comply with such parameter(s).

(d) The owner or operator shall use credible information, such as results of historic maximum capability tests, design information from the manufacturer, or engineering calculations, in establishing the magnitude of the basic design parameter(s) specified in Rule 18.22(a) and (b).

(e) If design information is not available for a process unit, then the owner or operator shall determine the process unit's basic design parameter(s) using the maximum value achieved by the process unit in the five (5) year period immediately preceding the planned activity.

(f) Efficiency of a process unit is not a basic design parameter its function.

Rule 19. Regulation of Lead Emissions.

Rule 19.1. Definitions.

Unless specifically defined in this Rule 19, the definitions from Section 4-2 will apply:

(1) *Significant source of lead* means

a. Any one (1) permit unit, or combination of permit units as determined by the Board of Director, at any of the following stationary sources that emit lead or lead compounds (measured as elemental lead) of at least one twenty-five (125) tons per calendar quarter or at least five (5) tons per year whichever is the more restrictive: primary lead smelters, secondary lead smelters, primary cooper smelters, lead gasoline additive plants, lead-acid storage battery manufacturing plants that produce two thousand (2,000) or more batteries per day.

b. Notwithstanding the source sizes specified in subparagraph a. of this paragraph, any other stationary source that emits twenty-five (25) or more tons per year of lead or lead compounds measured as elemental lead.

(2) *Source* means any structure, building, facility, equipment, installation, or operation, or combination thereof, which is located on one (1) or more contiguous or adjacent properties and which is owned or operated by the same person or by persons under common control. If a portion of a source is rented to or leased to another person for the purpose of a totally separate business venture, the Board or the Director may designate that portion as a separate source.

(3) *Permit unit* means any part of a source required to obtain a certificate of operation as required by this chapter.

Rule 19.2. General limitations for lead emissions.

(1) No person shall cause, suffer, allow, or permit lead emissions in excess of the limits established in this chapter.

(2) Upon mutual agreement of the Board or the Director and the owner or operator of a significant source of lead, an emission limitation more restrictive than that otherwise specified in this chapter may be established. Also, upon mutual agreement of the owner or operator of any source and the Board or the Director, operating hours, process flow rates, or any other operating parameters may be established as a binding limitation. The mutually acceptable limitations shall be stated as a special conditions for any permit, or certificate concerning the source. Violation of any accepted special limitations is grounds for revocation of the issued permit or certificate and/or other enforcement measures.

Rule 19.3. Requirements for new and modified sources of lead.

(1) A new source the actual emissions of which are in excess of five (5.0) tons per year of lead or lead compounds measured as elemental lead shall utilize best available control technology (BACT).

(2) Any modification of a source which results in an increase in excess of six-tenths (0.6) tons per year of lead or lead compounds measured as elemental lead shall utilize BACT.

(3) The owner or operator of a proposed new or modified source of lead shall perform a source impact analysis to demonstrate that the allowable emission increases from the proposed source or modification would not cause or contribute to a violation of the lead ambient air quality standard in the source impact area including background concentrations. Source impact analysis shall be based on the applicable air quality models and data bases acceptable to the Board or the Director.

(4) Additional requirements for certain new or modified sources of lead are given in Section 4-41, Rule 18.2 (Prevention of Significant Deterioration) and in Section 4-41, Rule 15 (New Source Performance Standards) of this chapter.

Rule 19.4. Source sampling and analysis. Source sampling and analysis for lead shall be conducted in the manner prescribed in Section 4-3(c) of this chapter.

Rule 19.5. Ambient monitoring requirements for lead. The Board or the Director may require ambient lead monitoring in the vicinity of a source regulated by this Rule 19. This monitoring shall be done in accordance with the requirements of this chapter.

Rule 20. (Reserved)

Rule 21. Ambient Air Quality Standards.

Ambient air quality standards as given in the following table.

Ambient Air Quality Standards

Pollutant	*Primary/ Secondary Standard*	*Averaging Time*	*Level*	*Form*
Carbon Monoxide	Primary	8-hour	9 ppm	Not to be exceeded more than once per year
		1-hour	35 ppm	
Lead	Primary and Secondary	Rolling 3-Month Average	0.15 $\mu g/m^3$	Not to be exceeded
Nitrogen Dioxide	Primary	1-hour	100 ppb	98^{th} percentile of 1-hour daily maximum concentrations, averaged over 3 years
	Primary and Secondary	1-year	53 ppb	Annual arithmetic mean
Ozone	Primary and Secondary	8-hour (1)	0.070 ppm	Annual fourth-highest daily maximum 8-hour concentration, averaged over 3 years
		1-hour (2)	0.12 ppm	Not to be exceeded during more than one day per year
Particulate Matter-$PM_{2.5}$	Primary	1-year (3)	9.0 $\mu g/m^3$	Annual arithmetic mean, averaged over 3 years
	Secondary		15.0 $\mu g/m^3$	
	Primary and Secondary	24-hour (4)	35 $\mu g/m^3$	98^{th} percentile, averaged over 3 years
Particulate Matter-PM_{10}	Primary and Secondary	1-year (5)	50 $\mu g/m^3$	Annual arithmetic mean
		24-hour (6)	150 $\mu g/m^3$	Not to be exceeded more than once per year on average over three years
Sulfur Dioxide	Primary	1-year	0.030 ppm	Annual arithmetic mean
		24-hour	0.14 ppm	Not to be exceeded more than once per year
		1-hour	75 ppb	99^{th} percentile of 1-hour daily maximum concentrations, averaged over 3 years
	Secondary	3-hour	0.5 ppm	Not to be exceeded more than once per year

Pollutant	*Primary/ Secondary Standard*	*Averaging Time*	*Level*	*Form*
Gaseous Fluorides (expressed as HF) (7)	Secondary	30-day	1.5 ppb (1.2 $\mu g/m^3$)	Not to be exceeded more than once per year
		7-day	2.0 ppb (1.6 $\mu g/m^3$)	
		24-hour	3.5 ppb (2.9 $\mu g/m^3$)	
		12-hour	4.5 ppb (3.7 $\mu g/m^3$)	

Notes:

ppm — parts per million by volume

ppb — parts per billion by volume

$\mu g/m^3$ — microgramsper cubic meter of air

(1) To attain this standard, the three (3) year average of the fourth highest daily maximum eight (8) hour average ozone concentrations measured at each monitor within an area over each year must not exceed 0.070 ppm.

(2) This standard is attained when the expected number of days per calendar year, with maximum hourly average concentrations above 0.12 ppm, as determined in accordance with 40 CFR Part 50, Appendix H, is less than or equal to one. [This standard has been eliminated by the U.S. Environmental Protection Agency but remains a standard of the State of Tennessee.]

(3) To attain these standards, the three (3) year average of the weighted annual PM2.5 concentrations from single or multiple community-oriented monitors must not exceed 9.0 $\mu g/m^3$ for the primary standard and 15.0 $\mu g/m^3$ for the secondary standard.

(4) To attain this standard, the three (3) year average of the 98^{th} percentile of twenty-four (24) hour concentrations at each population-oriented monitor within an area must not exceed 35 $\mu g/m^3$.

(5) This standard is attained when the expected annual arithmetic mean concentration, as determined in accordance with 40 CFR Part 50, Appendix K, is less than or equal to fifty (50)$\mu g/m^3$. [This standard has been eliminated by the U.S. Environmental Protection Agency but remains a standard of the State of Tennessee.]

(6) This standard is attained when the expected number of days per calendar year with a twenty-four (24) hour average concentration above 150 $\mu g/m^3$, as determined in accordance with 40 CFR Part 50, Appendix K, is less than or equal to one.

(7) Sources that emit gaseous fluorides, including hydrogen fluoride, and that are within a source category (including sources that would otherwise be included in the source category but fall below emissions or size thresholds for the source category) for which the EPA has promulgated standards under Section 112 of the Clean Air Act are deemed to be in compliance with any requirements under these standards if they meet any and all applicable requirements of the federal standards. These standards are not applicable to sources subject to 40 CFR Part 63, Subpart LL. [These are standards of the State of Tennessee.]

Rule 22. Good Engineering Practices Stack Heights.

Rule 22.1. General Provisions.

(1) This Rule 22 provides that the degree of emission limitation required of any source for control of any air pollutant must not be affected by that portion of any source's stack height that exceeds good engineering practice (GEP) or any other dispersion technique, except as provided in Rule 22.1(2). Before a new or revised emission limitation is established that is based on a GEP stack height that exceeds the height allowed by Rule 22.2(3)a. or b., the Director must notify the public of the availability of the applicable demonstration study that is specified by Rule 22.2(3)c. and must provide opportunity for a public hearing on it. This Rule 22 does not restrict in any manner the actual stack height of any source.

(2) The provisions of this Rule 22 shall not apply to stack heights in existence, or dispersion techniques implemented on or before December 31, 1970, except where pollutants are being emitted from such stacks or using such dispersion techniques by stationary sources which were constructed, reconstructed, or for which major modifications, as defined in Section 4-2, and were carried out after December 31, 1970.

Rule 22.2. Definitions. As used in this Rule 22, the following definitions shall apply:

(1) *Dispersion technique* means any technique which attempts to affect the concentration of a pollutant in the ambient air by:

a. Using that portion of a stack which exceeds good engineering practice stack height;

b. Varying the rate of emission of a pollutant according to atmospheric conditions or ambient concentrations of that pollutant; or

c. Increasing final exhaust gas plume rise by manipulating source process parameters, exhaust gas parameters, stack parameters, or combining exhaust gases from several existing stacks into one (1) stack; or other selective handling of exhaust gas streams so as to increase the exhaust gas plume rise.

The preceding sentence defining *dispersion technique* does not include:

a. The reheating of a gas stream, following use of a pollution control system, for the purpose of returning the gas to the temperature at which it was originally discharged from the facility generating the gas stream;

b. The merging of exhaust gas streams where:

1. The source owner or operator demonstrates that the facility was originally designed and constructed with such merged gas streams;

2. After July 8, 1985, such merging is part of a change in operation at the facility that includes the installation of pollution controls and is accompanied by a net reduction in the allowable emissions of a pollutant. This exclusion from the definition of *dispersion techniques* shall apply only to the emission limitation for the pollutant affected by such change in operation; or

3. Before July 8, 1985, such merging was part of a change in operation at the facility that included the installation of emissions control equipment or was carried out for sound economic or engineering reasons. Where there was an increase in the emissions limitation or, in the event that no emission limitation was in existence prior to the merging, an increase in the quantity of pollutants actually emitted prior to the merging, the Director shall presume that the merging was significantly motivated by an intent to gain emissions credit for greater dispersion. Absent a demonstration by

the source owner or operator that merging was not significantly motivated by such intent, the Director shall deny credit for the effects of such merging in calculating the allowable emissions for the source;

c. Smoke management in agricultural or silvicultural prescribed burning programs;

d. Episodic restrictions on residential wood burning and open burning; or

e. Techniques under Rule 22.2(1)(C) which increase final exhaust gas plume rise where the resulting plant-wide allowable emissions of sulfur dioxide do not exceed five thousand (5,000) tons per year.

(2) *Emission limitation* means a requirement established by the Director, which limits the quantity, rate or concentration of emissions of air pollutants on a continuous basis, including any requirements which limit the level of opacity, prescribe equipment, set fuel specifications, or prescribe operation or maintenance procedures for a source to assure continuous emission reduction.

(3) *Good engineering practice* (GEP) stack height means the greater of:

a. Sixty-five (65) meters (two hundred thirteen (213)) feet, measured form the ground-level elevation at the base of the stack;

b. Considering other stack criteria the following formulae apply:

1. For stacks in existence on January 12, 1979, and for which the owner or operator had obtained all applicable permits or approvals required,

$$Hg = 2.5H,$$

provided the owner or operator produces evidence that this equation was actually relied on in establishing an emission limitation;

2. For all other stacks;

$$Hg = H + 1.5L,$$

where

Hg = good engineering practice stack height, measured from the ground-level elevation at the base of the stack,

H = height of nearby structure(s) measured from ground-level elevation at the base of the stack,

L = lesser dimension, height (H) or projected width, of nearby structure(s) provided that the director may require the use of a field study or fluid model to verify GEP stack height for the source; or

c. The height demonstrated by a fluid model or a field study approved by the director, which ensures that the emissions from a stack do not result in excessive concentrations of any air pollutant as a result of atmospheric downwash, wakes, or eddy effects created by the source itself, nearby structures or nearby terrain features.

(4) *Nearby* as used in Rule 22.2(3) is defined for a specific structure or terrain feature and

a. For the purposes of applying the formulae provided in Rule 22.2(3)(b) means that distance up to five times the lesser of the height or the width dimension of a structure, but not greater than eight-tenths (0.8) kilometers (one-half ½ mile), and

b. For conducting demonstrations under Rule 22.2(3)(c) means not greater than eight-tenths (0.8) kilometers (one-half ½), except that the portion of a terrain feature may be considered to be nearby which falls within a distance of up to 10 times the maximum height (H_t) feature achieves a height (h_t) eight-tenths (0.8) kilometers from the stack that is at least forty percent (40%) of the GEP stack height determined by the formulae provided in Rule

19(B)(3)(b)2. or 26 meters (85 feet), whichever is greater, as measured from the ground level elevation at the base of the stack. The height of the structure of terrain feature is measured from the ground-level elevation at the base of the stack.

(5) *Excessive concentration* is defined for the purposes of determining good engineering practice stack height under Rule 22.2(3)(C), and means:

a. For sources seeking credit for stack height exceeding that established under Rule 22.2(3)(b), a maximum ground-level concentration due to emissions from a stack due in part to downwash, wakes, and eddy effects produced by nearby structures or nearby terrain features which individually is at least fifty percent (50%) in excess of the maximum concentration experienced in the absence of such downwash, wakes, or eddy effect and which contributes to a total concentration due to the emissions from all sources that is greater than an ambient air quality standard. For sources subject to Rule 18.2, an excessive concentration alternatively means a maximum ground-level concentration due to emissions from a stack due in whole or part to downwash, wakes, or eddy effects produced by nearby structures or nearby terrain features which individually is at least fifty percent (50%) in excess of the maximum concentration experienced in the absence of such downwash, wakes or eddy effects and greater than a prevention of significant deterioration increment. The allowable emission rate to be used in making demonstrations under this rule shall be prescribed by the new source performance standards (NSPS) that is applicable to the source category unless the owner or operator demonstrates that this emission rate is infeasible. Where such demonstrations are approved by the director, an alternative emission rate shall be established in consultation with the source owner or operator;

b. For sources seeking credit after October 11, 1983, for increases in existing stack heights established under Rule 22.2(3)(b) either:

1. a maximum ground-level concentration due in whole or part to downwash, wakes, or eddy effect as provided in Rule 22.2(5)(a), except that the emission rate specified by the State Implementation Plan (or, in absence of such a limit, the actual emission rate) shall be used, or

2. the actual presence of a local nuisance caused by the existing stack, as determined by the director; and

c. For sources seeking credit after January 12, 1979, for a stack height determined under Rule 22.2(3)(b) where the director requires the use of a field study or fluid model to verify GEP stack height; for sources seeking stack height credit after November 9, 1984, based on the aerodynamic influence of cooling towers; and for sources seeking stack height credit after December 31, 1970, based on the aerodynamic influence of structures not adequately represented by the equations in Rule 22.2(3)(b), a maximum ground-level concentration due in whole or part to downwash, wakes, or eddy effects that is at least forty percent (40%) in excess of the maximum concentration experienced in the absence of such downwash, wakes, or eddy effects.

(6) *Stack* for the purpose of good engineering practice means any point in a source designed to emit solids, liquids, or gases into the air, including a pipe or duct but not including flares.

(7) *A stack in existence* means that the owner or operator had (1) begun, or caused to begin, a continuous program of physical on-site construction of the stack; or (2) entered into binding agreements or contractual obligations, which could not be cancelled or modified without substantial loss to the operator, to undertake a program of construction of the stack to be completed in a reasonable time.

Rule 22.3. Good Engineering Practice Stack Height Requirements.

(1) No person shall cause, suffer, allow, or permit emissions in excess of the limitations in this Rule 22.

(2) Upon mutual agreement of the owner or operator of a source and the director, an emission limitation more restrictive than that otherwise specified in this Rule 22 may be established. The mutually acceptable limits shall be stated as a special condition(s) for any permit or certificate concerning the source. Violation of any accepted special limitation is grounds for revocation of the issued certificate of operation and other enforcement measures provided for in law.

(3) The possession of a valid permit or certificate of operation shall not protect the source from enforcement actions if permit or certificate conditions are not met.

Rule 22.4. Specific Emissions Limitations. For any affected air contaminant source or sources at a facility, the director shall specify as special conditions on the installation permit, and certificate of operation the emission limitation that is determined to be necessary under the provisions of this Rule 22. Such conditions shall be subjected to a public hearing and incorporated as a revision to the State Implementation Plan.

Rule 23. General Provisions and Applicability for Process Gaseous Emissions Standards.

Rule 23.1. No person shall cause, suffer, allow or permit gaseous emission in excess of the standards provided in this chapter. For the purpose of this Rule 23 the term "process gaseous emission" shall mean any gaseous emission of an air contaminant to the ambient air other than that from fuel-burning equipment, incinerators or open burning.

Rule 23.2. Any person constructing or otherwise establishing an air contaminant source emitting gaseous air contaminants after the effective date of this regulation, which is not limited by a specific standard provided elsewhere in this chapter, shall install and utilize equipment and technology which is deemed reasonable and proper by the director.

Rule 24. Reserved.

Rule 25. General Provisions and Applicability for Volatile Organic Compounds.

Rule 25.1. Purpose. It is the purpose of this Rule 25 to establish emission standards for new and existing sources of volatile organic compounds located within the city. The emission standards established within this rule will apply to different sources depending upon the potential emissions of the source.

Rule 25.2. Definitions. Words or terms defined in Rule 25 are for the purpose of this rule only and will not affect the definitions of section 4-2. Unless specifically defined in this Rule 25, the definitions from section 4-2 will apply:

(1) *Approved* means approved by the director, Chattanooga-Hamilton County Air Pollution Control Bureau.

(2) *Capture system* means the equipment (including hoods, ducts, fans, etc.) used to contain, capture or transport a pollutant to a control device.

(3) *Coating applicator* means an apparatus used to apply a surface coating.

(4) *Coating line* means one (1) or more apparatus or operations, which include a coating applicator, flashoff area, and over, wherein a surface coating is applied, dried and/or cured.

(5) *Commenced* means that an owner operator has undertaken a continuous program of construction or modification or that an owner or operator has entered into a contractual obligation to undertake and complete, within a reasonable time, a continuous program of construction or modification.

(6) *Construction* means commencement of on-site fabrication, erection or installation of a new or modified source or facility.

(7) *Control device* means any method, process or equipment which removes or reduces volatile organic compounds (VOC) emissions to the ambient air.

(8) *Continuous vapor control system* means a vapor control system that treats vapors displaced from tanks during filling on a demand basis without intermediate accumulation.

(9) *Day* means a twenty-four (24) hour period beginning at midnight.

(10) *Emission* means the release or discharge, whether directly or indirectly, of VOC's into the ambient air from any source.

(11) *Existing source* is any process in existence or having an installation permit prior to the effective date of each Rule 25 category.

(12) *Facility* means any building, structure, installation, activity or combination thereof which contains one (1) or more stationary source of air contaminants.

(13) *Flashoff area* means the space between the application area and the oven.

(14) *Incinerator* means a combustion apparatus designed for high temperature operation in which solid, semisolid, liquid or gaseous combustible wastes are ignited and burned efficiently and from which the solid and gaseous residues contain little or no combustible material.

(15) *Intermittent vapor control system* means a vapor control system that employs an intermediate vapor holder to accumulate vapors displaced from tanks during filling. The control device treats the accumulated vapors only during automatically controlled cycles.

(16) *Knife coating* means the application of a coating material to a substrate by means of drawing the substrate beneath a knife that spreads the coating evenly over the full width of the substrate.

(17) *Loading rack* means an aggregation or combination of gasoline loading equipment arranged so that all loading outlets in the combination can be connected to a tank truck or trailer parked in a specified loading space.

(18) *New source* is all other processes not defined in definition (11) as an existing source.

(19) *Organic material* means a chemical compound of carbon excluding carbon monoxide, carbon dioxide, carbonic acid, metallic carbides or carbonates and ammonium carbonate.

(20) *Oven* means a chamber within which heat is used to bake, cure, polymerize and/or dry a surface coating.

(21) *Owner or operator* means any person who owns, leases, controls, operates or supervises a facility, existing source, new source or control device.

(22) *Petroleum liquid* means crude oil, condensate and any finished or intermediate products manufactured or extracted in a petroleum refinery.

(23) *Prime coat* means the first film of coating applied to a multiple-coat operation.

(24) *Reid vapor pressure* means the absolute vapor pressure of volatile crude oil and volatile nonviscous petroleum liquids except liquefied petroleum gases as determined by American Society for Testing and Materials, D-323-94 Standard Test Method for Vapor Pressure of Petroleum Products (Reid Method), 1994 Annual Book of ASTM Standards Volume 5.01.

(25) *Roll coating* means the application of a coating material to a substrate by means of hard rubber or steel rolls.

(26) *Rotogravure coating* means the application of a coating material to a substrate by means of a roll coating technique in which the pattern to be applied is etched on the coating roll. The coating material is picked up in these recessed areas and is transferred to the substance.

(27) *Solvent* means organic materials which are liquid at standard conditions and which are used as dissolvers, viscosity reducers or cleaning agents.

(28) *Standard conditions* means a temperature of twenty degrees (20°) centigrade (sixty-eight degrees (68°) Fahrenheit) and pressure of seven hundred sixty (760) millimeters of mercury (twenty-nine and ninety-two hundredths (29.92) inches of mercury).

(29) *Top coat* means the final film of coating applied in a multiple-coat operation.

(30) *True vapor pressure* means the equilibrium partial pressure exerted by a petroleum liquid as determined in accordance with methods described in American Petroleum Institute Bulletin 2517, "Evaporation Loss from External Floating-Roof Tanks," Third Edition with addendum, May 1994.

(31) *Vapor collection system* means a vapor transport system which uses direct displacement by the liquid loaded to force vapors from the tank into a vapor control system.

(32) *Vapor control system* means a system approved by the director that prevents release to the atmosphere of organic compounds in the vapors displaced from a tank during the transfer of gasoline.

(33) *Reserved.*

Rule 25.3. Standards for new sources.

(1) For the purpose of this Rule 25.3, the following definitions apply:

a. *Lowest achievable emission rate* (also denoted as LAER) means for any source that rate of emissions which reflects:

1. The most stringent emission limitation which is achieved in practice by such class or category of source.

2. In no event shall a new or modified source emit any pollutant in excess of the amount allowable under applicable rules of Rule 15.

This limit will be determined by the director at the time of the permit application.

b. *Potential emissions* means the maximum capacity to emit a pollutant absent air pollution control equipment. Air pollution control equipment includes control equipment which is not, aside from air pollution control laws and regulations, vital to production of the normal product of the source or to its normal operation. Annual potential shall be based on the maximum annual rated capacity of the source unless the source is subject to enforceable permit conditions which limit the operating rate of hour of operation, or both. Enforceable permit conditions on the type or amount of materials combusted or processed may be used in determining the potential emission rate of a source.

(2) New or modified sources identified as having potential emissions of one hundred (100) tons per year or greater shall utilize LAER. All other new or modified sources locating in the county shall utilize BACT. Regardless of the specific emission standards derived from these rules, a new and/or modified source in the county must comply with the provisions of this rule.

a. Attainment and unclassified areas. The director shall not grant a permit or waiver for the construction or modification of any air contaminant source in an attainment or unclassified

area if such construction or modification will interfere with the maintenance of an air quality standard or will violate any provision of these regulations or will violate any provision of the Tennessee Air Quality Act.

b. Nonattainment areas. The director shall not grant a permit for construction or modification of any air contaminant source in a nonattainment area nor to any source that significantly impacts on a nonattainment area if such construction or modification will interfere with reasonable further progress in attainment of the specific air quality standards or will violate any provision of the Tennessee Air Quality Act or will violate provisions of these regulations, except in accordance with the following:

1. All new or modified sources shall utilize good engineering practice as determined by the director in designing stacks.

2. New or modified sources with potential emissions of less than one hundred (100) tons per year shall utilize best available control technology (BACT) as specified by the director.

3. New or modified sources identified as having potential emissions of one hundred (100) tons per year or greater shall meet the lowest achievable emission rate (LAER) for that type of source as determined by the director at the time of the permit application. The term "lowest achievable emission rate" means, for, any source, that rate of emissions which reflects:

   (i) The most stringent emission limitation which is achieved in practice by such class or category of source.

   (ii) In no event shall a new or modified source emit any pollutant in excess of the amount allowable under applicable rules of Rule 15.

4. A major source shall also show that it will not interfere with reasonable further progress in attaining the ambient air quality standards by one (1) of the following methods:

   (i) Banked credits.

      (A) By agreeing to control the nonattainment emissions to a rate lower than the nonattainment emissions specified as reasonable available control technology (RACT) by the director, the owner or operator of an air contaminant source has reserved the right to utilize the incremental reduction between RACT and the banked credit agreed rate (BCAR) to provide for future growth in the nonattainment area.

      (B) The banked credit agreed rate is an emission rate more restrictive than RACT which is mutually agreed to by the director and an air contaminant source for the purpose of establishing a banked credit. This emission level is in no way related to BACT or LAER. Only sources in existence at the time of a nonattainment state implementation plan (SIP) revision for an area are eligible to establish a banked credit agreed rate.

      (C) The following limitations shall apply to the issuance of a permit for construction or modification for sources using banked credit agreed rate.

      All banked credits in a given nonattainment area shall become void upon official reclassification of that area as an attainment area.

      An increase in pounds per hour shall be offset by a banked credit of that amount. The banked credit account will be reduced by that amount.

An air quality modeling review shall show that the banked credit used and the new and/or modified source result in predicted cleaner air for the nonattainment area than air quality at the RACT emission level. No predicted new violations of the ambient air quality standards will be permitted.

A banked credit shall not be used until the banked credit agreed rate level of control is attained by the source involved and demonstrated through another method acceptable to the director.

The banked credit agreed rate shall be contained in the state implementation plan as the legally enforceable standard for the air contaminant source. If the source electing to use banked credits must reduce emissions to achieve the banked credit agreed rate level approved by the board, a compliance schedule shall be included in the state implementation plan revision.

(ii) Emission offsets.

(A) For major sources, a larger than one (1) to one (1) offset of emissions of the nonattainment pollutant, based on both allowable and actual emissions shall be employed. This offset must result in a net improvement in predicted air quality for the pollutant in the area under the influence of emissions from the new or modified major sources and that reasonable further progress shall not be hindered.

(B) All or any portions of the offsets shall be accomplished on or before the time of new source operation and demonstrated through a source test or through another method acceptable to the director.

(C) The reductions shall come from sources in the emission inventory used in the approved control strategy for the nonattainment area state implementation plan revision.

(D) The amount of the proposed reduction shall be sufficient to offset both the emission increases directly associated with the proposed source construction and/or modification and those emissions attributed to permitted minor sources that have come into the area since the last reasonable further progress milestone was met.

(iii) Construction or modification of major sources that have no emission offsets or banked credit. The director shall issue a construction permit to proposed new or modified sources provided the sources' emissions will not prevent reasonable further progress in the nonattainment area or will not prevent the ambient air quality standards being met. Completed applications from sources qualifying for this provision will be processed based on the date of receipt of the application by the director.

(iv) Combination of the provisions of subparts (i), (ii) and (iii) of this part.

5. Prior to the issuance of a permit to a major volatile organic compound (VOC) source in Hamilton, an analysis of alternate sites, sizes, production process and environmental control techniques for the proposed source shall be made. A permit shall only be issued if the benefits of the proposed source significantly outweigh the environmental and social costs imposed on the public as a result of the source's location, construction or modification in this county. The director shall require the submittal of such information as he deems necessary for this analysis.

6. A source is identified as a major source for each pollutant as indicated below:

A major source for volatile organic compounds is a source with potential emissions of more than one hundred (100) tons per year and allowable emissions (based on BACT) greater than any of the following: fifty (50) tons per year; one thousand (1,000) pounds per day; or one hundred (100) pounds per hour.

Piecemeal construction is cumulative.

When an air contaminant source's new and/or modified allowable emissions equals or exceeds the above levels, it becomes a major source.

"Potential emissions" as used above means the capability at maximum capacity to emit a pollutant in the absence of air pollution control equipment. Air pollution control equipment includes control equipment which is not, aside from air pollution control laws and regulations, vital to production of the normal product of the source or to its normal operation. Annual potential shall be based on the maximum annual rated capacity of the source, unless the source is subject to enforceable permit conditions which limit the annual hours of operation. Enforceable permit conditions on the type or amount of materials combusted or processed may be used in determining the potential emission rate of a source.

7. The director shall not issue a permit to any major source in or significantly impacting a nonattainment area unless all other sources owned or operated by the applicant anywhere in the state are in compliance or on an approved compliance schedule.

(3) If new or modified sources at a facility occurring since February 16, 1979, or since the time of the last construction approval issued requiring LAER under this rule total to more than one hundred (100) tons per year potential emissions, all the new and modified sources during the period shall utilize LAER. The stage of construction and the ability of the source to install additional control equipment shall be considered in determining LAER.

(4) No emissions credit may be allowed for replacing one (1) volatile organic compound (VOC) with another of lesser reactivity.

Rule 25.4. Alternate emission limitation.

(1) Plants with process emission sources regulated by this Rule 25 with a certificate of alternate control shall not emit volatile organic compounds in excess of the limits on such certificate. This limitation is in lieu of the emission limitation contained in other rules of this chapter. Only sources with an emission limitation in Rule 25 are eligible for inclusion in the certificate.

(2) The owner or operator of any plant having process emission sources regulated by Rule 25 can apply to the director for a certificate of alternate control for a plant and the director may grant the request if the following conditions are met:

a. The plant is reducing, or will be after a specified date taking actions to reduce, emissions of volatile organic compounds at least as much as is required under the other rules in this Rule 25, even though specific process emission sources in the plant may not be meeting the limitations specified in the other rules of this Rule 25.

b. If a specified future date for compliance is involved, this date must be as expeditious as is practicable and be specified in a schedule of compliance as a condition on the certificate. This schedule must conform with the requirements of paragraphs (c) and (d) of Rule 25.42 for individual compliance schedules.

c. There must be reasonable means for the director or his representatives to determine that this alternative emission control method is being implemented and complied with.

d. A fee of two hundred fifty dollars ($250.00) has been paid to the bureau at the time application is made to cover the cost of review of the request for the certificate of alternate control.

e. All process emission sources commenced on or after the effective date of a rule or rules in Rules 15 and 18.2 of this section, and the requirements of section 4-8(f) limiting emissions of volatile organic compounds are meeting the limits specified in those rules.

f. No credit can be given for reduction of emissions in determining if the requirements of subparagraph a. of this paragraph are met if another rule would require that reduction anyway.

(3) Alternate emission control limitations approved under this section must be subjected to a public hearing and incorporated as a revision to the state implementation plan. The owner or operator requesting this alternate emission control limitation shall be responsible for all costs associated with publishing the required legal notices.

(4) The owner or operator of the plant must:

a. File or post on the operating premises the certificate of alternate control;

b. Keep all pollution control equipment in good operating condition and utilize such equipment at all times;

c. Meet other conditions specified in accordance with Rule 25.4(8).

(5) The certificate of alternate control may be revoked by the board if it is found that any of the requirements of this section have been violated or the board may enforce this section by seeking any other remedy available under this chapter or at law.

(6) The certificate of alternate control does not relieve the owner or operator of the duty to meet all emission requirements in other rules for process emission sources commenced after the effective date of the rule.

(7) Upon revocation of the certificate of alternate control, the process emission sources at the plant must comply with all other rules in this chapter that would have been applicable had the certificate not been issued. The board may specify a time period for the source to come into compliance with the more restrictive emission limitations.

(8) The certificate of alternate control may specify alternate test methods to determine compliance or different averaging times (so long as this time does not exceed eight (8) hours) or may contain other conditions appropriate to insure compliance with the alternate control method and the meeting of compliance on the date specified in accordance with subparagraph (2)b. of this rule. The certificate must contain, as conditions, specific standards for each emission source involved.

Rule 25.5. (Reserved)

Rule 25.6. (Reserved)

Rule 25.7. Petroleum liquid storage.

(1) For the purpose of this Rule 25.7, the following definitions apply:

a. *Condensate* means hydrocarbon liquid separated from natural gas which condenses due to changes in the temperature and/or pressure and remains liquid at standard conditions.

b. *Crude oil* means a naturally occurring mixture which consists of hydrocarbons and/or sulfur, nitrogen and/or oxygen derivatives of hydrocarbons and which is a liquid at standard conditions.

c. *Custody transfer* means the transfer of produced crude oil and/or condensate, after processing and/or treating in the producing operations, from storage tanks or automatic facilities to pipelines or any other forms of transportation.

d. *External floating roof* means a storage vessel cover in an open top tank consisting of a double deck or pontoon single deck which rests upon and is supported by the petroleum liquid being contained and is equipped with a closure seal or seals to close the space between the roof edge and tank shell.

e. *Internal floating roof* means a cover or roof in a fixed roof tank which rests upon or is floated upon the petroleum liquid being contained and is equipped with a closure seal or seals to close the space between the roof edge and tank shell.

f. *Petroleum refinery* means any facility engaged in producing gasoline, kerosene, distillate fuel oils, residual fuel oils, lubricants or other products through distillation of crude oils, or through redistillation, cracking, extraction or reforming of unfinished petroleum derivatives.

(2) This Rule 25.7 will apply to all fixed roof storage vessels with capacities greater than forty-two thousand (42,000) gallons containing volatile petroleum liquids whose true vapor pressure is greater than ten and one-half (10.5) kPa (one and fifty-two-hundredths (1.52) psia).

(3) This Rule 25.7 will not apply to volatile petroleum liquid storage vessels:

a. Equipped with floating roofs before January 1, 1979; or

b. Having capacities less than four hundred twenty thousand (420,000) gallons used to store produced crude oil and condensate prior to lease custody transfer.

(4) Except as provided under paragraph (3) of this rule, no owner or operator of an affected source under paragraph (2) of this Rule 25.7 shall permit the use of such source except as provided in Rule 25.41 unless:

a. The source has been retrofitted with an internal floating roof equipped with a closure seal or seals to close the space between the roof edge and tank wall;

b. The source has been retrofitted with equally effective alternative control, approved by the director;

c. The source is maintained such that there are no visible holes, tears or other openings in the seal or any seal fabric or materials;

d. All openings, except stub drains are equipped with covers, lids or seals such that:

1. The cover, lid or seal is in the closed position at all times except when in actual use;

2. Automatic bleeder vents are closed at all times except when the roof is floated off or landed on the roof leg supposes; and

3. Rim vents, if provided, are set to open when the roof is being floated off the roof leg supports or at the manufacturer's recommended setting;

e. Routine inspections are conducted through roof hatches once per month;

f. A complete inspection of cover and seal is conducted as specified by the director; and

g. Records are maintained as specified by the director.

Rule 25.8. Bulk gasoline plants.

(1) For the purpose of this Rule 25.8, the following definitions apply:

a. *Bottom filling* means the filling of a tank truck through an opening or nozzle located either flush with or near the bottom of the tank compartment or the filling of a stationary storage tank through a shell nozzle located in conformance with "API Standard 650 Welded Steel Tanks for Oil Storage; Section 3.6.3, Shell Nozzles" or the equivalent as approved by the director.

b. *Bulk gasoline plant* means a gasoline storage and distribution facility with an annual average daily throughout of less than seventy-six thousand (76,000) liters (twenty thousand

(20,000) gallons) which receives gasoline from bulk terminals by trailer transport, stores it in tanks, and subsequently dispenses it via account trucks to local farms, businesses and service stations.

c. *Gasoline* means any petroleum distillate having a Reid vapor pressure of twenty-seven and six-tenths (27.6) kPa (four (4) psia) or greater.

d. *Splash filling* means the filling of a tank truck or stationary storage tank through a pipe or hose whose discharge opening is above the surface level of the liquid in the tank being filled.

e. *Submerged filling* means the following for the specified sources:

1. Tank trucks. Filling with a drop tube which extends within six (6) inches of the bottom of the compartment.

2. Terminal or bulk plant storage tanks. Filling through an outlet located in accordance with "API Standard 650 Welded Steel Tanks for Oil Storage; Section 3.6.3 Shell Nozzles" or the equivalent as approved by the director.

f. *Vapor balance systems* means a combination of pipes or hoses which create a closed system between the vapor spaces of an unloading tank and a receiving tank such that vapors displaced from the receiving tank are transferred to the tank being unloaded.

(2) This Rule 25.8 will apply, in accordance with Rule 25.41, to the unloading, loading and storage facilities of all bulk gasoline plants and all tank trucks or trailers delivering or receiving gasoline at bulk gasoline plants.

(3) This Rule 25.8 will not apply to:

a. Stationary storage tanks of less than two thousand (2,000) gallons capacity; or

b. Bulk plants in the county with less than four thousand (4,000) gallons per day annual average throughout, provided records of throughput are maintained and reported to the director as specified by the director.

(4) Except as provided under paragraph (3) of this Rule 25.8, no owner or operator of a bulk gasoline plant (tank truck or trailer) shall load gasoline into a stationary storage tank from a tank truck, trailer or other stationary storage tank unless each tank and truck or trailer is equipped with a vapor balance system as described under paragraph (7) of this rule.

(5) Except as provided under paragraph (3) of this Rule 25.8, no owner or operator of a bulk gasoline plant, tank truck or trailer shall unload gasoline from a stationary tank into a tank truck or trailer unless a bottom filling or submerged filling system or its equivalent is installed at the bulk plant.

(6) No owner, or operator of a bulk gasoline plant, tank truck or trailer shall permit the transfer of gasoline between a tank truck or trailer and a stationary storage tank unless the equipment required in paragraph (4) and (5) is installed and properly operated to minimize the loss of VOC emissions.

(7) Vapor balance systems required under paragraph (4) of this Rule 25.8 shall consist of the following major components:

a. A vapor space connection on the stationary storage tank equipped with fittings which are vapor tight and will eliminate back flow so as to prevent release of organic material;

b. A connecting pipe or hose equipped with fittings which are vapor tight and will automatically and immediately close upon disconnection so as to prevent release of organic material; and

c. A vapor space connection on the tank truck or trailer equipped with fittings which are vapor tight and must be closed prior to disconnection so as to prevent release of organic material.

(8) No owner or operator of a bulk gasoline plant may permit gasoline to be stored in open containers or handled in any other manner that would result in evaporation.

Rule 25.9. Bulk gasoline terminals.

(1) For the purpose of this Rule 25.9, the following definitions apply:

a. *Bulk gasoline terminal* means a gasoline storage facility which receives gasoline from refineries primarily by pipeline, ship or barge and delivers gasoline to bulk gasoline plants or to commercial or retail accounts primarily by tank truck, and has an annual average daily throughput of more than seventy-six thousand (76,000) liters (twenty thousand (20,000) gallons) of gasoline.

b. *Gasoline* means a petroleum distillate having a Reid vapor pressure of 27.6 kPa (4 psia) or greater.

(2) This Rule 25.9 will apply, in accordance with Rule 25.41, to bulk gasoline terminals and the appurtenant equipment necessary to load the tank truck or trailer compartments.

(3) No person may load gasoline into any tank trucks or trailers from any bulk gasoline terminals unless:

a. The bulk gasoline terminal is equipped with a vapor control system capable of complying with paragraph (4) of this rule properly installed, in good working order, in operation and consisting of one (1) of the following:

1. An absorber or condensation system which processes and recovers vapors and gases from the equipment being controlled;

2. A vapor collection system which directs all vapors to a fuel gas system;

3. A control system, demonstrated to have control efficiency equivalent to or greater than parts (3)a. 1. or (3)a. 2. of this section and approved by the director; and

b. All displaced vapors and gases are vented only to the vapor control system;

c. Loading devices must not leak when in use and should be designed and operated to allow no more than ten (10) cubic centimeters drainage per disconnect on the basis of five (5) consecutive disconnects; and

d. All loading and vapor lines are equipped with fittings which are vapor-tight.

(4) Sources affected under subparagraph (3)a. may not allow mass emissions of volatile organic compounds from control equipment to exceed eighty (80) milligrams per liter (four and seven-tenths (4.7) grains per gallon) of gasoline loaded.

(5) Sources affected under paragraph (2) may not:

a. Allow gasoline to be discarded in sewers or stored in open containers or handled in any manner that would result in evaporation; or

b. Allow the pressure in the vapor-collection system to exceed the tank truck or trailer pressure relief settings.

Rule 25.10. Gasoline dispensing facilities — stage I vapor recovery.

(1) For the purpose of this rule, the following definitions will apply:

a. *Coaxial system* means the delivery of the product to the stationary storage tank and the recovery of vapors from the stationary storage tanks occurs through a single coaxial fill tube, which is a tube within a tube. Produce is delivered through the inner tube and vapor is recovered through the annular space between the walls of the inner tube and outer tube.

b. *Delivery vessel* means tank trucks or trailers equipped with a storage tank and used for the transport of gasoline from sources of supply to stationary storage tanks of gasoline dispensing facilities.

c. *Dual point system* means the delivery of the product to the stationary storage tank and the recovery of vapors from the stationary storage tank occurs through two (2) separate openings in the storage tank and two (2) separate hoses between the tank truck and the stationary storage tank.

d. *Gasoline* means any petroleum distillate having a Reid vapor pressure of four (4.0) psia or greater.

e. *Gasoline dispensing facility* means any site where gasoline is dispensed to motor vehicle gasoline tanks from stationary storage tanks.

f. *Gasoline service station* means any gasoline dispensing facility where gasoline is sold to the motoring public from stationary storage tanks.

g. *Line* means any pipe suitable for transferring gasoline.

h. *Operator* means any person who leases, operates, controls or supervises a facility at which gasoline is dispensed.

i. *Owner* means any person who has legal or equitable title to the gasoline storage tank at a facility.

j. *Poppeted vapor recovery adaptor* means a vapor recovery adaptor that automatically and immediately closes itself when the vapor return line is disconnected and maintains a tight seal when the vapor return line is not connected.

k. *Stationary storage tank* means a gasoline storage container that is a permanent fixture.

l. *Submerged fill pipe* means any fill pipe with a discharge opening which is entirely submerged when the pipe normally used to withdraw liquid from the tank can no longer withdraw any liquid, or which is entirely submerged when the level of liquid is:

1. Six (6) inches above the bottom of the tank if the tank does not have a vapor recovery adaptor; or

2. Twelve (12) inches above the bottom of the tank if the tank has a vapor recovery adaptor.

If the opening of the submerged fill pipe is cut at a slant, the distance is measured from the top of the slanted cut to the bottom of the tank.

m. *Throughput* means the amount of gasoline dispenses at a facility.

(2) Applicability. This rule applies to all gasoline dispensing facilities and gasoline service stations and to delivery vessels delivering gasoline to a gasoline dispensing facility or gasoline service station; and this rule applies to all persons owning, occupying, operating or using a gasoline distribution facility or gasoline service station.

(3) Exemptions. This rule does not apply to:

a. Transfers made to storage tanks at gasoline dispensing facilities or gasoline service stations equipped with floating roofs or their equivalent;

b. Stationary tanks with a capacity of not more than two thousand (2,000) gallons which were in place before July 1, 1979, if the tanks are equipped with a permanent or portable submerged fill pipe;

c. Stationary storage tanks with a capacity of not more than five hundred fifty (550) gallons which were installed after June 30, 1979, if the tanks are equipped with a permanent or portable submerged fill pipe;

d. Stationary storage tanks at a gasoline dispensing facility or gasoline service station where the combined annual throughput of gasoline at the facility or station does not exceed fifty thousand (50,000) gallons, if the tanks are equipped with a permanent submerged fill pipe; and

e. Any tanks used exclusively to test fuel dispensing meters.

(4) No person may cause, suffer, allow or permit the transfer of gasoline from any delivery vessel into any stationary storage tank unless they comply with the following:

a. The stationary storage tank is equipped with a submerged fill pipe and the vapors displaced from the tank during filing are controlled by a vapor control system as described in Paragraph (8) of this rule;

b. The vapor control system is in good working order and is connected and operating with a vapor tight connection;

c. The vapor control system is properly maintained and any damaged or malfunctioning components or elements of design have been repaired, replaced or modified;

d. Gauges, meters or other specified testing devices are maintained in proper working order;

e. All loading lines and vapor lines of delivery vessels and vapor collection systems are equipped with fittings which are leak tight and vapor tight; and

f. All hatches on the delivery vessel are kept closed and securely fastened.

(5) The following records shall be maintained for not less than two (2) years and the same shall be made available for inspection and copy by representative or designees of the Bureau:

a. The scheduled date for maintenance or the date that a malfunction was detected;

b. The date the maintenance was performed or the malfunction corrected; and

c. The date the component or element of design of the control system was repaired, replaced or modified.

(6) The premises of any gasoline dispensing facility or gasoline service station shall be available for inspection by representatives or designees of the Bureau at any time the facility or station is in operation.

(7) The process of transfer of gasoline from any delivery vessel into any stationary storage tank shall be subject to observation and inspection or investigation by representatives or designees of the Bureau.

(8) The vapor control system required by Paragraph (4) of this rule shall include one (1) or more of the following:

a. A vapor-tight line from the stationary storage tank to the delivery vessel and;

1. For a coaxial vapor recovery system, either a poppeted or unpoppeted vapor recovery adaptor; or

2. For a dual point vapor recovery system, a poppeted vapor recovery adaptor; or

b. A refrigeration-condensation system or equivalent designed to recover at least ninety (90) percent by weight of the organic compounds in the displaced vapor.

(9) If an unpoppeted vapor recovery adaptor is used pursuant to Part (8)a.1 of this rule, the tank liquid fill connection shall remain covered either with a vapor-tight cap or a vapor return line except when the vapor return line is being connected or disconnected.

(10) If an unpoppeted vapor recovery adaptor is used pursuant to Part (8)a.1 of this rule, the unpoppeted vapor recovery adaptor shall be replaced with a poppeted vapor recovery adaptor when the tank is replaced or upgraded.

(11) Where vapor lines from the storage tanks are manifolded, poppeted vapor recovery adaptors shall be used. No more than one (1) tank is to be loaded at a time if the manifold vapor lines have a nominal pipe size of less than three (3) inches. If the manifold vapor lines have a nominal pipe size of three (3) inches or larger, then two (2) tanks at a time may be loaded.

(12) Vent lines on stationary storage tanks shall have pressure release valves or restrictors.

(13) The vapor-laden delivery vessel:

a. Shall be designed and maintained to be vapor-tight during loading and unloading operations and during transport with the exception of normal pressure/vacuum venting as required by regulations of the Department of Transportation; and

b. If it is refilled in Hamilton County, Tennessee, shall be refilled only at:

1. Bulk gasoline plants complying with Rule 25.8 of this section; and

2. Bulk gasoline terminals complying with Rule 25.9 of this section.

(14) It shall be the responsibility of owners, occupiers and operators of gasoline dispensing facilities and gasoline service stations to assure compliance with this rule and to disallow the transfer from any delivery vessel that does not comply with those requirements of this rule applicable to delivery vessels. It shall be the responsibility of owners, operators and drivers of delivery vessels to assure compliance with this rule and to refuse to transfer from any delivery vessel that does not comply with those requirements of this rule applicable to delivery vessels.

Rule 25.11. (Reserved)

Rule 25.12. Can coating.

(1) For the purpose of this Rule 25.12, the following definitions apply:

a. *End sealing compound* means a synthetic rubber compound which is coated onto can ends and which functions as a gasket when the end is assembled on the can.

b. *Exterior base coating* means a coating applied to the exterior of a can to provide exterior protection to the metal and to provide background for the lithographic or printing operation.

c. *Interior base coating* means a coating applied by roller coating or spray to the interior of a can to provide a protective lining between the can metal and product.

d. *Interior body spray* means a coating sprayed on the interior of the can body to provide a protective film between the product and the can.

e. *Overvarnish* means a coating applied directly over the ink to reduce the coefficient of friction, to provide gloss and to protect the finish against abrasion and corrosion.

f. *Three-piece can side-seam spray* means a coating sprayed on the exterior and interior of a welded, cemented or soldered seam to protect the exposed metal.

g. *Two-piece can exterior end coating* means a coating applied by roller coating or spraying to the exterior end of a can to provide protection to the metal.

(2) This Rule 25.12 will apply, in accordance with Rule 25.18(3) to coating applicators and ovens of sheet, can or end coating lines involved in sheet basecoat (exterior and interior) and overvarnish; two-piece can exterior (basecoat) and overvarnish; two and three-piece can interior body spray; two-piece can exterior end (spray or roll coat); three-piece can side-seam spray and end sealing compound operations.

(3) No owner or operator of a can coating line subject to this Rule 25.12 may cause, allow or permit the discharge into the atmosphere of any volatile organic compounds, except as provided in Rule 25.41, in excess of:

a. Thirty-four hundredths (0.34) kilograms per liter of coating (two and eight-tenths (2.8) pounds per gallon), excluding water, delivered to the coating applicator from sheet basecoat (exterior and interior) and overvarnish or two-piece can exterior (basecoat and overvarnish) operations.

b. Fifty-one hundredths (0.51) kilograms per liter of coating (four and two-tenths (4.2) pounds per gallon), excluding water, delivered to the coating applicator from two- and three-piece can interior body spray and two-piece can exterior end (spray or roll coat) operations.

c. Sixty-six hundredths (0.66) kilograms per liter of coating (five and five-tenths (5.5) pounds per gallon), excluding water, delivered to the coating applicator from three-piece can side-seam spray operations.

d. Forty-four hundredths (0.44) kilograms per liter of coating (three and seven-tenths (3.7) pounds per gallon), excluding water, delivered to the coating applicator from end sealing compound operations.

(4) This Rule 25.12 will apply to facilities having potential VOC emissions from can coating of twenty-five (25) tons per year or greater.

Rule 25.13. Coil coating.

(1) For the purpose of this Rule 25.13, the following definitions apply:

a. *Coil coating* means the coating of any flat metal sheet or strip that comes in rolls or coils.

b. *Quench area* means a chamber where the hot metal exiting the oven is cooled by either a spray of water or a blast of air followed by water cooling.

(2) This Rule 25.13 will apply, in accordance with Rule 25.13(3), to the coating applicators, ovens and quench areas of coil coating lines involved in prime and top coat or single coat operations.

(3) No owner or operator of a coil coating line subject to this Rule 25.13 may cause, allow or permit the discharge into the atmosphere of any volatile organic compounds in excess of thirty-one hundredths (0.31) kilograms per liter of coating (two and six-tenths (2.6) pounds per gallon excluding water, delivered to the coating applicator from prime and topcoat or single coat operations except as provided in Rule 25.41.

(4) This Rule 25.13 will apply to facilities having potential VOC emissions from can coating of twenty-five (25) tons per year or greater.

Rule 25.14. Fabric and vinyl coatings.

(1) For the purpose of this Rule 25.14, the following definitions apply:

a. *Fabric coating* means the coating of a textile substrate with a knife, roll or rotogravure coater to impart properties that are not initially present, such as strength, stability, water or acid repellancy, or appearance.

b. *Vinyl coating* means applying a decorative or protective topcoat, or printing on vinyl-coated fabric or vinyl sheets.

(2) This Rule 25.14 will apply, in accordance with Rule 25.14(3), to roll, knife or rotogravure coaters and drying ovens of fabric and vinyl coating lines.

(3) No owner or operator of a fabric coating line or a vinyl coating line subject to this Rule 25.14 may cause, allow or permit the discharge into the atmosphere of any volatile organic compounds except as provided in Rule 25.14 in excess of:

a. Thirty-five hundredths (0.35) kilograms per liter of coating (two and nine-tenths (2.9) pounds per gallon), excluding water, delivered to the coating applicator from a fabric coating line.

b. Forty-five hundredths (0.45) kilograms per liter of coating (three and eight-tenths (3.8) pounds per gallon, excluding water, delivered to the coating applicator from a vinyl coating line.

(4) This Rule 25.14 will apply to facilities having potential VOC emissions from fabric and vinyl coating of twenty-five (25) tons per year or greater.

Rule 25.15. Metal furniture coating.

(1) For the purpose of this Rule 25.15, the following definitions apply:

a. *Application area* means the area where the coating is applied by spraying, dipping or flowcoating techniques.

b. *Metal furniture coating* means the surface coating of any furniture made of metal or any metal part which will be assembled with other metal, wood, fabric, plastic or glass parts to form a furniture piece.

(2) This Rule 25.15 will apply, in accordance with Rule 25.15(3), to the application areas, flashoff areas and ovens of metal furniture coating lines involved in prime and topcoat or single coating operations.

(3) No owner or operator of a metal furniture coating line subject to this Rule 25.15 may cause, allow or permit the discharge into the atmosphere of any volatile organic compounds in excess of thirty-six hundredths (0.36) kilograms per liter of coating (three (33) pounds per gallon excluding, water, delivered to the coating applicator from prime and topcoat or single coat operations except as provided in Rule 25.41.

(4) This Rule 25.15 will apply to facilities having the potential VOC emissions from metal furniture coating of twenty-five (25) tons per year or greater.

(5) This Rule 25.15 shall not apply to the use of quick-drying lacquers for repair of scratches and nicks that occur during assembly.

Rule 25.16. Surface coating of large appliances.

(1) For the purpose of this Rule 25.16, the following definitions apply:

a. *Application area* means the area where the coating is applied by spraying, dipping or flowcoating techniques.

b. *Single coat* means a single film of coating applied directly to the metal substrate, omitting the primer application.

c. *Large appliances* means doors, cases, lids, panels and interior support parts of residential and commercial washers, dryers, ranges, refrigerators, freezers, water heaters, dishwashers, trash compactors, air conditioners and other similar products.

(2) This Rule 25.16 will not apply to the use of quick-drying lacquers for repair of scratches and nicks that occur during assembly.

(3) This Rule 25.16 will apply, in accordance with Rule 25.16(4), to the application areas, flashoff areas and ovens of large appliance coating lines involved in prime, single or topcoat coating operations.

(4) No owner or operator of a large appliance coating line subject to this Rule 25.16 may cause, allow or permit the discharge into the atmosphere of any volatile organic compounds in excess of thirty-four hundredths (0.34) kilograms per liter of coating (two and eight-tenths (2.8) pounds per gallon), excluding water, delivered to the coating applicator from prime, single or topcoat coating operations except as provided in Rule 25.41.

(5) This Rule 25.16 will apply to facilities having potential VOC emissions from surface coating of large appliances of twenty-five (25) tons per year or greater.

Rule 25.17. Magnet wire coating.

(1) For the purpose of this Rule 25.17, the following definition applies:

Magnet wire coating means the process of applying a coating of electrically insulating varnish or enamel to aluminum or copper wire for use in electrical machinery.

(2) No owner or operator of a magnet wire coating oven subject to this Rule 25.17 may cause, allow or permit the discharge into the atmosphere of any volatile organic compounds in excess of twenty hundredths (0.20) kilograms per liter of coating (one and seven-tenths (1.7) pounds per gallon), excluding water, delivered to the coating applicator from magnet wire coating operations except as provided in Rule 25.41.

(3) This Rule 25.17 will apply to facilities having potential VOC emissions from magnet wire coating of twenty-five (25) tons per year or greater.

Rule 25.18. Solvent metal cleaning.

(1) For the purpose of this Rule 25.18, the following definitions apply:

a. *Cold cleaning* means the batch process of cleaning and removing greasy soils from metal surfaces by spraying, brushing, flushing or immersion while maintaining the solvent below its boiling point. Wipe cleaning is not included in this definition.

b. *Conveyorized degreasing* means the continuous process of cleaning and removing greasy soils from metal surfaces by operating with either cold or vaporized solvents.

c. *Freeboard height* means the distance from the top of the vapor zone to the top of the degreaser tank for vapor degreasers and from the liquid surface to the top of degreaser toner for cold cleaners.

d. *Freeboard ratio* means the freeboard height divided by the width of the degreaser.

e. *Open top vapor degreasing* means the batch process of cleaning and removing greasy soils from metal surfaces in an open top tank by condensing hot solvent vapor on the colder metal parts.

f. *Solvent metal cleaning* means the process of cleaning greasy soils from metal surfaces by cold cleaning or open top vapor degreasing or conveyorized degreasing.

(2) The provisions of this Rule 25.18 shall apply, in accordance with Rule 25.41, with the following exceptions:

a. Open top vapor degreasers with an open area smaller than one (1) square meter (ten and eight-tenths (10.8) square feet) shall be exempt from parts (5)c.2. and (5)c.4. of this rule;

b. Conveyorized degreasers with an air/vapor interface smaller than two (2.0) square meters (twenty-one and six-tenths (21.6) square feet) shall be exempt from subparagraph (6)b. of this rule.

(3) This Rule 25.18 will apply to facilities having potential VOC emissions from solvent metal cleaning of twenty-five (25) tons per year or greater.

(4) Except as provided under paragraphs (2) and (3) of this rule, the owner or operator of a cold cleaning facility shall:

a. Equip the cleaner with a cover;

b. Equip the cleaner with a facility for draining cleaned parts;

c. Provide a permanent, conspicuous label, summarizing the operating requirements;

d. Store waste solvent only in covered containers and not dispose of waste solvent or transfer it to another party such that greater than twenty percent (20%) of the waste solvent (by weight) can evaporate into the atmosphere;

e. Close the cover whenever parts are not being handled in the cleaner;

f. Drain the cleaned parts for at least fifteen (15) seconds or until dripping ceases; and

g. If used, supply a solvent spray that is a solid fluid stream (not a fine, atomized or shower-type spray) at a pressure which does not cause excessive splashing.

(5) Except as provided under paragraph (2) of this Rule 25.18, the owner or operator of an open top vapor degreaser shall:

a. Equip the vapor degreaser with a cover that can be opened and closed easily without disturbing the vapor zone;

b. Keep the cover closed at all times except when processing work loads through the degreaser;

c. Minimum solvent carryout by:

1. Racking parts to allow complete drainage;

2. Moving parts in and out of the degreaser at less than three and three-tenths (3.3) meters per minute (eleven (11) feet per minute);

3. Holding the parts in the vapor zone at least thirty (30) seconds or until condensation ceases;

4. Tipping out any pools of solvent on the cleaned parts before removal from the vapor zone;

5. Allowing parts to dry within the degreaser for at least fifteen (15) seconds or until visually dry;

d. Not degrease porous or absorbed materials such as cloth, leather, wood or rope:

e. Not occupy more than half of the degreaser's open top area with a workload;

f. Not load the degreaser to the point where the vapor level would drop more than ten (10) centimeters (four (4) inches) when the workload enters the vapor zone;

g. Always spray below the vapor level;

h. Repair solvent leaks immediately or shut down the degreaser;

i. Store waste solvent only in covered containers and not dispose of waste solvent or transfer it to another party such that greater than twenty percent (20%) of the waste solvent (by weight) can evaporate into the atmosphere;

j. Not operate the cleaner so as to allow water to be visually detectable in solvent exiting the water separator;

k. Not use ventilation fans near the degreaser opening, nor provide exhaust ventilation exceeding twenty (20) cubic meters per minute per square meter (sixty-five (65) cubic feet per minute per square foot) of degreaser open area, unless necessary to meet OSHA requirements; and

l. Provide a permanent, conspicuous label summarizing the operating procedures of subparagraphs (5)b. through (5)j. of this rule.

(6) Except as provided under paragraph (3) of this Rule 25.18, the owner or operator of a conveyorized degreaser shall:

a. Not use workplace fans near the degreaser opening, nor provide exhaust ventilation exceeding twenty (20) cubic meters per minute per square meter (sixty-five (65) cubic feet per minute per square foot of degreaser opening, unless necessary to meet OSHA requirements;

b. Equip the cleaner with equipment such as drying tunnel or rotating (tumbling) basket sufficient to prevent cleaned parts from carrying out solvent liquid or vapor;

c. Minimize openings during operation so that entrances and exits will silhouette workloads with an average clearance between the largest parts and the edge of the degreaser opening of less than ten (10) centimeters (four (4) inches) or less than ten percent (10%) of the width of the opening;

d. Provide downtime covers for closing off the entrance and exit during shutdown hours;

e. Minimize carryout emissions by:

1. Racking parts for best drainage; and

2. Maintaining the vertical conveyor speed at less than three and three-tenths (3.3) meters per minute (eleven (11) feet per minute);

f. Store waste solvent only in covered containers and not dispose of waste solvent or transfer it to another party such that greater than twenty percent (20%) of the waste solvent (by weight) can evaporate into the atmosphere;

g. Repair solvent leaks immediately or shut down the degreaser;

h. Not operate the cleaner so as to allow water to be visually detectable in solvent exiting the water separator; and

i. Place downtime covers over entrances and exits of conveyorized degreasers immediately after the conveyors and exhausts are shut down and not remove them until just before startup.

Rule 25.19. Cutback asphalt.

(1) For the purpose of this Rule 25.19, the following definitions apply:

a. *Asphalt means* a dark brown to black cementitious material (solid, semisolid or liquid consistency) in which the predominating constituents are bitumens which occur in nature as such or which are obtained as residue in refining petroleum.

b. *Cutback asphalt* means asphalt cement which has been liquefied by blending with petroleum solvents (diluents). Upon exposure to atmospheric conditions the diluents evaporate, leaving the asphalt cement to perform its function.

c. *Penetrating prime* coat means an application of low viscosity liquid asphalt to an absorbent surface. It is used to prepare an untreated base for an asphalt surface. The prime penetrates the base and plugs the voids, hardens the top, and helps bind it to the overlying asphalt course. It also reduces the necessity of maintaining an untreated based course prior to placing the asphalt pavement.

(2) No person may cause, allow or permit the use or application of cutback asphalts for paving purposes in urban counties except for:

a. Long-term stockpile storage;

b. Application when the ambient temperature is less than fifty degrees (50°) Fahrenheit within four (4) hours after the time of application;

c. Use as a penetrating prime coat; or

d. Use for base stabilization.

Rule 25.20. Reserved.

Rule 25.21. Surface coating of miscellaneous metal parts and products.

(1) For the purpose of this rule, the following definitions apply:

a. *Air dried coating* is a coating which is dried by the use of air or forced warm air at temperatures up to ninety degrees (90°) Celsius (one hundred ninety-four degrees (194°) Fahrenheit);

b. *Clear coating* is a coating which lacks color and opacity or is transparent and uses the undercoat as a reflectant base or undertone color;

c. *Extreme performance coating* is a coating designed for extreme environmental conditions;

d. *Extreme environmental conditions* is exposure to outdoor conditions most of the time, temperatures consistently above ninety-five degrees (95°) Celsius, detergents, abrasive and scouring agents, solvents, corrosive atmospheres or similar environmental conditions;

e. *Coating operation* includes all equipment which applies, conveys and dries a surface coating, including, but not limited to, spray booths, flow coaters, flashoff areas, air dryers and ovens;

f. *Top coating* includes all coatings other than prime coatings.

(2) No owner or operator of a coating operation subject to this rule may cause, suffer, allow or permit the discharge into the atmosphere of any volatile organic compounds from that operation in excess of the following, except as provided for in Rule 25.4 or 25.42 or paragraph (7) of this rule:

a. Fifty-two-hundredths (0.52) kg/l (four and three-tenths (4.3) lb/gal) of coating, excluding water, delivered to a coating applicator in a clear coating operation;

b. Forty-three-hundredths (0.43) kg/l (Three and one-half (3.5) lb/gal) of coating, excluding water, delivered to a coating applicator in an air dried coating operation;

c. Forty-three-hundredths (0.43) kg/l (Three and one-half (3.5) lb/gal) of coating, excluding water, delivered to a coating applicator in an extreme performance coating operation; or

d. Thirty-six-hundredths (0.36) kg/l (three (3.0) lb/gal) of coating, excluding water, delivered to a coating applicator in all other coating operations.

(3) If more than one (1) emission limitation in paragraph (2) applies to a specific coating operation, then the least stringent emission limitation shall be applied.

(4) This rule applies to surface coating of the following miscellaneous metal parts and products:

a. Large farm machinery (harvesting, fertilizing and planting machines, tractors, combines, etc.;

b. Small farm machinery (lawn and garden tractors, lawn mowers, rototillers, etc.);

c. Small appliances (fans, mixers, blenders, crock pots, dehumidifiers, vacuum cleaners, etc.);

d. Commercial machinery (office equipment, computers and auxiliary equipment, typewriters, calculators, vending machines, etc.);

e. Industrial machinery (pumps, compressors, conveyor components, fans, blowers, transformers, etc.);

f. Fabricated metal products (metal covered doors, frames, etc.);

g. Any other industrial category which coats metal parts or products under the Standard Industrial Classification Code of Major Group 33 (primary metal industries), Major Group 34 (fabricated metal products), Major Group 35 (non-electric machinery), Major Group 36 (electrical machinery), Major Group 37 (transportation equipment), Major Group 38 (miscellaneous instruments) and Major Group 39 (miscellaneous manufacturing industries).

(5) This Rule 25.21 does not apply to the surface coating of the following metal parts and products:

a. Automobile and light-duty truck manufacturing plants subject to Rule 25.5;

b. Metal cans;

c. Flat metal sheets and strips in the form of rolls or coils;

d. Magnet wire for use in electrical machinery;

e. Metal furniture;

f. Large appliances;

g. Exterior surface areas of airplanes;

h. Automobile refinishing;

i. Customized top coating of automobiles and truck, if production is less than thirty-five (35) vehicles per day;

j. Exterior surfaces of marine vessels; and

k. Storage vessels.

(6) This rule applies to facilities having potential volatile organic compound emissions of twenty-five (25) or more tons per year from coating operations not otherwise exempt from this rule.

(7) The owner or operator of a coating operation subject to this rule shall:

a. Meet the applicable increments of progress in the following schedule:

1. Submit final plans for the emission control technique before April 1, 1983;

2. Award contracts or purchase orders before July 1, 1983;
3. Initiate on-site construction or installation before December 1, 1983;
4. Complete on-site construction or installation before December 1, 1984;
5. Achieve final compliance before December 31, 1984;

b. Certify to the director within twenty (20) days after each deadline for each applicable increment of progress whether the required increment has been met.

(8) Proof of compliance with the standards of this rule shall be provided by:

a. Methods approved by the director and consistent with:
1. EPA Guideline Series document, "Measurement of Volatile Organic Compounds," EPA-450/2-78-0041;
2. Appendix A of "Control of Volatile Organic Emissions from Existing Stationary Sources-Volume II: Surface Coating of Cans, Coils, Paper, Fabrics, Automobiles, and Light-Duty Trucks," EPA-450/2-77-008; and
3. Rules 25.43, 25.44 and 25.45;

b. Certification by the manufacturer of the composition of coatings, if supported by batch formulation records and approved by the director, may be accepted as the coatings analyses;

c. Monitoring of process equipment and emission control equipment as required by the director to confirm continued compliance.

Rules 25.22 through 25.26. Reserved.

Rules 25.27. Manufacture of synthesized pharmaceutical products.

(1) For the purpose of this rule, the following definitions apply:

a. *Synthesized pharmaceutical manufacturing* is the manufacture of pharmaceutical products by chemical synthesis;

b. *Condenser* is a device which cools a gas stream to a temperature which removes organic compounds by condensation:

c. *Control system* is any number of control devices, including condensers, which are designed and operated to reduce the quantity of volatile organic compounds emitted to the atmosphere.

d. *Exhaust system* is a device for collecting and directing out of the work area volatile organic compound fugitive emissions from the reactor openings, centrifuge openings, and other vessel openings for the purpose of protecting workers from excessive volatile organic compounds exposure;

e. *Reactor* is a vat or vessel which may be jacketed to allow temperature control and is designed to contain chemical reactions.

(2) No owner or operator of a synthesized pharmaceutical manufacturing facility subject to this rule may cause, suffer, allow or permit the discharge into the atmosphere of any volatile organic compounds from that facility, except as provided in Rule 25.4 or 25.42 or paragraph (4) of this rule, unless:

a. From reactors, distillation operations, crystallizers, centrifuges and vacuum dryers that have the potential to emit 6.80 kg/day (15 lb/day) or more of volatile organic compounds, condensers or equivalent control systems shall be used, provided that:
1. If condensers are used, the condenser outlet gas temperature must not exceed:
(i) Minus twenty-five degrees (-25°) Celsius when condensing volatile organic compounds of vapor pressure greater than forty (40.0) kPa (five and eight-tenths (5.8) psi) at twenty degrees (20°) Celsius;

(ii) Minus fifteen degrees (-15°) Celsius when condensing volatile organic compounds of vapor pressure greater than twenty (20.0) kPa (two and nine-tenths (2.9) psi) at twenty degrees (20°) Celsius;

(iii) Minus zero degrees (-0°) Celsius when condensing volatile organic compounds of vapor pressure greater than ten (10.0) kPa (one and one-half (1.5) psi) at twenty degrees (20°) Celsius;

(iv) Ten degrees (10°) Celsius when condensing volatile organic compounds of vapor pressure greater than seven (7.0) kPa (one (1.0) psi) at twenty degrees (20°) Celsius; or

(v) Twenty-five degrees (25°) Celsius when condensing volatile organic compounds of vapor pressure greater than three and one-half (3.50) kPa (one-half (0.5) psi) at twenty degrees (20°) Celsius; or

2. If equivalent control systems are used, the volatile organic compounds emissions must not be in excess of what would be emitted by using condensers which meet the requirements above.

b. From all air dryers and production equipment exhaust systems:

1. Achieve at least ninety percent (90%) control efficiency if total facility uncontrolled emissions are one hundred fifty (150) kg/day (330 lb/day) or more;

2. Reduce emissions to fifteen (15.0) kg/day (thirty-three (33) lb/day) or less if total facility uncontrolled emissions are less than one hundred fifty (150) kg/day (330 lb/day);

c. Provide a vapor balance system or equivalent control system with control efficiency of at least ninety percent (90%) for control of emissions from truck or railcar deliveries to storage tanks with capacities greater than seven thousand five hundred (7,500) liters (two thousand (2,000) gallons) that store volatile organic compounds with vapor pressures greater than twenty-eight (28.0) kPa (four and one-tenth (4.1) psi) at twenty degrees (20°) Celsius;

d. Install pressure/vacuum conservation vents set at —+-0.2 kPa on all storage tanks that store volatile organic compounds with vapor pressures greater than ten (10.0) kPa (one and one-half (1.5) psi) at twenty degrees (20°) Celsius, unless a more effective control system is used;

e. Enclose all centrifuges, rotary vacuum filters, and other filters having an exposed liquid surface, where the liquid contains volatile organic compounds and exerts a total volatile organic compounds vapor pressure of three and one-half (3.50) kPa (one-half (0.5) psi) or more at twenty degrees (20°) Celsius;

f. Install covers on all in-process tanks containing volatile organic compounds;

g. Repair leaks of liquids containing volatile organic compounds.

(3) This rule applies to operations which are sources of volatile organic compounds, including reactors, distillation units, dryers, storage of volatile organic compounds, transfer of volatile organic compounds, extraction equipment, filters, crystallizers and centrifuges that have the potential to emit six and eight-tenths (6.8) kg/day (fifteen (15) lb/day) or more in synthesized pharmaceutical manufacturing facilities having total facility potential emissions, from subject operations, of volatile organic compounds of twenty-five (25) or more tons per year.

(4) The owner or operator of a facility subject to this rule must:

a. Meet the applicable increments of progress contained in the following schedule:

1. Submit final plans for the emission control techniques before April 1, 1983;

2. Award contracts or purchase orders before July 1, 1983;
3. Initiate on-site construction or installation before December 1, 1983;
4. Complete on-site construction or installation before December 1, 1984;
5. Achieve final compliance before December 31, 1984;

b. Certify to the director within twenty (20) days after the deadline for each applicable increment of progress whether the required increment has been met.

Rules 25.28 through 25.40. Reserved.

Rule 25.41. Compliance schedules.

(1) *Process equipment and control devices.* The owner or operator of an existing source of volatile organic compound emissions subject to the standard in this chapter proposing to install and operate a control device and/or replacement process equipment to comply shall adhere to the increment of progress contained in the following schedule:

a. Final plans for the emission control device and/or process equipment must be submitted before March 1, 1980.

b. Contracts for the emission control systems and/or process equipment must be awarded or orders must be issued for purchase of component parts before June 1, 1980.

c. Initiation of on-site construction of control device or process equipment before January 1, 1981.

d. On-site construction or installation of the control device or process equipment completed before October 1, 1981.

e. Final compliance shall be determined before November 1, 1981 in accordance with the methods specified by the director.

f. Any owner or operator of an existing emission source subject to the compliance schedule of this section shall certify to the director within thirty (30) days after the deadline for each increment of progress whether the required increment of progress has been met.

(2) *Low solvent content coating.* The owner or operator of an existing source of volatile organic compound emissions subject to the standards in this chapter proposing to employ low solvent content coating technology to comply shall adhere to the increments of progress contained in the following schedule:

a. Final plans for the application of low solvent content coating technology must be submitted before March 1, 1980.

b. Research and development of low solvent content coating must be completed before September 1, 1980.

c. Evaluation of product quality and commercial acceptance must be completed before January 1, 1981.

d. Purchase orders must be issued for low solvent content coatings and process modifications before April 1, 1981.

e. Initiation of process modifications must begin before June 1, 1981.

f. Process modifications must be completed and use of low solvent content coatings must begin before August 1, 1981.

g. Final compliance shall be determined before September 1, 1981, in accordance with the methods specified by the director.

h. Any owner or operator of an existing source subject to the compliance schedule of this section shall certify to the director within twenty (20) days after the deadline for each increment of progress whether the required increment of progress has been met.

(3) *Equipment modification.* The owner or operator of an existing source of volatile organic compound emissions subject to the standards in this chapter proposing to comply by modification of existing process equipment shall adhere to the increments of progress contained in the following schedule:

a. Final plans for process modification must be submitted before March 1, 1980.

b. Contracts for process modifications must be awarded or orders must be issued for the purchase of component parts to accomplish process modifications before June 1, 1980.

c. Initiation of on-site construction or installation of process modifications must begin before January 1, 1981.

d. On-site construction or installation of process modifications must be completed before October 1, 1981.

e. Final compliance shall be determined before November 1, 1981, in accordance with the methods specified by the director.

f. Any owner or operator of an existing source subject to the compliance schedule of this section shall certify to the director within thirty (30) days after the deadline for each increment of progress whether the required increment of progress has been met.

Rule 25.42. Individual compliance schedules.

(1) A facility may petition for a source-specific compliance schedule extending beyond those categorical compliance schedules contained in Rule 25.41 only if one (1) or more of the following conditions are satisfied:

a. The facility demonstrates that it is physically impossible for the source in question to comply with the date in the categorical schedule.

b. That, by allowing additional time, innovative technology will be applied and the reductions to be achieved will be significantly greater than that from the applicable emission standard. That the facility agrees that this revised value will be contained on the permit as a condition of source operation.

c. Additional time is necessary to allow for the development of low solvent systems rather than apply add-on controls.

d. The facility in question is a part of a state-wide or multistate program to prioritize the sequence of installing controls at a number of similar sources owned or controlled by the same company, and the overall compliance program is as expeditious as practicable.

(2) Individual compliance schedules approved under this section must contain the increments of progress below and achieve final compliance with the specified emission standard no later than July 1, 1987:

a. Date control plan will be submitted.

b. Date contract will be awarded.

c. Date initial construction will commence.

d. Date construction will be completed.

e. Date final compliance will be achieved.

(3) Individual compliance schedules approved under this section will be subjected to a public hearing and incorporated as a revision to these regulations. The facility requesting such individual compliance schedule shall be responsible for all costs associated with the required legal notices.

(4) No individual compliance schedule will be granted if such a revised schedule would interfere with reasonable further progress in the county.

(5) The petition for the individual compliance schedule must be received by the director prior to the first date contained in the categorical compliance schedule.

Rule 25.43. General provisions for test methods and procedures.

(1) The owner or operator of any new or existing source required to comply with standards contained in this chapter shall at his own expense, when so directed by the director, demonstrate compliance by the following methods or an alternative method approved by the director.

(2) No volatile organic compound emissions compliance testing will be allowed, nor the results accepted, unless prior notification has been supplied to the director as required under paragraphs (3) and (4) of this Rule 25.43, and the director has granted approval.

(3) Any person proposing to conduct a volatile organic compound emissions compliance test shall notify the director of the intent to test not less than thirty (30) days before the proposed initiation of the tests so the director may, at his option, observe the test.

(4) For compliance determination, the owner or operator of any new or existing source shall be responsible for providing:

a. Sampling ports, pipes, lines or appurtenances for the collection of samples and data required by the test procedure;

b. Safe access to the sample and data collection locations; and

c. Light, electricity and other utilities required for sample and data collection.

(5) A copy (or copies) of the test report shall be submitted to the director by the prescribed time period in a format stipulated by the director.

Rule 25.44. Determination of volatile content of surface coatings.

(1) This method applies, in accordance with Rule 25.43, to paint, varnish, lacquer and surface coatings which are air-dried or force dried.

(2) This method does not apply to any coating system requiring a special curing process such as:

a. Exposure to temperatures in excess of one hundred ten degrees (110°) Celsius (two hundred thirty degrees (230°) Fahrenheit) to promote thermal cross-linking; or

b. Exposure to ultraviolet light to promote cross-linking.

(3) For the purpose of this method, the applicable surface coatings are divided into three (3) classes. They are:

a. Class I: General solvent-type paints. This class includes white linseed oil outside paint, white soya and phthalic alkyd enamel, white linseed o-phthalic alkyd enamel, red lead primer, zinc chromate primer, slat white inside enamel, white epoxy enamel, white vinyl toluene modified alkyd, white amino modified baking enamel, and other solvent-type paints not included in Class II.

b. Class II: Varnishes and lacquers. This class includes clear and pigmented lacquers and varnishes.

c. Class III: Water-thinned paints. This class includes emulsion or latex paints and colored enamels.

(4) For the purposes of this method, a representative sample of the surface coating shall be obtained at the point of delivery to the coater or any other point in the process that the director approves.

(5) The volatile organic content of the sample shall be determined as follows:

a. Assign the coating to one (1) of the three (3) classes in paragraph c. of this section. Assign any coating not clearly belonging to Class II or III or Class I.

b. Determine the density D_m (in grams per cubic centimeter) of the paint, varnish, lacquer or, related product according to the procedure outlined in ASTM D 1475-60, Standard Method of Test for Density of Paint, Varnish, Lacquer and Related Products. Then, depending on the class of the coating, use one (1) of the following specified procedures to determine the volatile content:

1. Class I. Use the procedure in ASTM D 2369-73, Standard Method of Test for Volatile Content of Paints.

(i) Record the following information:

W_1 = Weight of dish and sample, grams

W_2 = Weight of dish and sample after heating, grams

S = Sample, weight, grams

(ii) Compute the volatile matter content C, (in grams/liter of paint) as follows:

$$C_v = \frac{(W_1 - W_2)(D_m)(10^3)}{S}$$

(iii) To convert grams per liter to pounds per gallon, multiply C, by 8.3455×10^{-3}.

2. Class II. Use the procedure in ASTM D 1644-59 Method A, Standard Methods of Test for Nonvolatile Content of Varnishes. (Do not use Method B).

(i) Record the following information:

A = Weight of dish, grams

B = Weight of sample used, grams

C = Weight of dish and contents after heating, grams

(ii) Compute the volatile matter content C, (in grams/liter of paint) as follows:

$$C_v = \frac{(A + B - C)(D_m)(10^3)}{B}$$

(iii) To convert grams per liter to pounds per gallon, multiply C_v by 8.3455×10^{-3}.

3. Class III. Use the procedure in ASTM D 2369-73, Standard Method of Test for Volatile Content of Paints.

(i) Record the same information as specified for Class II.

(ii) Determine the water content in P (in percent water) of the paint according to the procedure outlined in Federal Standard 141a, Method 4082.1, Water in Paint and Varnishes (Karl Fischer Titration Method).

(iii) Compute the nonaqueous volatile matter content C, (in grams/liter) as follows:

$$C_v = \frac{(W_1 - W_2 - 0.01\ PS)(D_m)(10^3)}{S}$$

(iv) To convert grams per liter to pounds per gallon, multiply C_v by 8.3455×10^{-3}.

Rule 25.45. Test method for determination of volatile organic compound emission control system efficiency.

(1) The provisions of this section are generally applicable, in accordance with Rule 25.43, to any test method employed to determine the collection or control efficiency of any device or system designed, installed and operated for the purpose of reducing volatile organic compound emissions.

(2) The following procedures shall be included in any efficiency determination:

a. The volatile organic compound containing material shall be sampled and analyzed in a manner approved by the director such that the quantity of emissions that could result from the use of the material can be quantified.

b. The efficiency of any capture system used to transport the volatile organic compound emissions from their point of origination to the control equipment shall be computed using accepted engineering practice and in a manner approved by the director.

c. Samples of the volatile organic compound shall be taken simultaneously at the inlet and outlet of the emissions control device in a manner by the director.

d. The total combustible carbon content of the samples shall be determined by a method approved by the director.

e. The efficiency of the control device shall be expressed as the fraction of total combustible carbon content reduction achieved.

f. The volatile organic compound mass emission rate shall be the sum of emissions from the control device, emissions not collected by the capture system and capture system losses.

Rule 25.46. Test method for determination of solvent metal cleaning organic compound emissions.

(1) This method is applicable to determining volatile organic compound emissions from solvent metal cleaning equipment in accordance with Rule 25.43.

(2) The purpose of this method is to quantify, by material balance, the amount of solvent input into a degreaser over a sufficiently long period of time so that an average emission rate can be computed.

(3) The following procedure shall be followed to perform a material balance test:

a. Clean the degreaser sump before testing.

b. Record the amount of solvent added to the tank with a flow meter.

c. Record the weight and type of work load degreased each day.

d. At the end of the test run, pump out the used solvent and measure the amount with a flow meter. Also, estimate the volume of metal chips and other material remaining in the emptied sump, if significant.

e. Bottle a sample of the used solvent and analyze it to find the percent that is oil and other contaminants. The oil and solvent proportions can be estimated by weighing samples of used solvent before and after boiling of the solvent. The volume of solvent displaced by this oil along with the volume of makeup solvent added during operations is equal to the solvent emission.

Rule 25.47. Test procedure for determination of VOC emissions from bulk gasoline terminals.

(1) *Use of test.* This test method is applicable to determining volatile organic compound emissions from bulk gasoline terminals in accordance with Rule 25.43.

(2) *Principle.* VOC mass emissions are determined directly using flow meters and hydrocarbon analyzers. The volume of liquid gasoline dispensed is determined by a computation based on the metered quantity of gasoline at the loading rack. Test results are expressed in milligrams of hydrocarbons emitted per liter of gasoline transferred.

(3) *Summary of the method.* This method describes the test conditions and test procedure to be followed in determining the emissions from systems installed to control volatile organic compound vapors resulting from tank truck and trailer loading operations at bulk terminals. Under this procedure, direct measurements are made to compute the hydrocarbon mass exhausted from the vapor control system. All possible sources of leaks are qualitatively checked to insure that no uncontrolled vapors are emitted to the atmosphere. The results are expressed in terms of mass hydrocarbons emitted per unit volume of gasoline transferred. Emissions are determined on a total hydrocarbon basis. If methane is present in the vapors returned from the tank trucks or trailers, provisions are included for conversion of a total nonmethane hydrocarbon basis.

(4) *Applicability.* This method is applicable to determining VOC emission rates at tank truck and trailer gasoline loading terminals employing vapor collection systems and either continuous or intermittent vapor control systems. This method is applicable to motor tank truck and trailer loading only as per Rule 25.9.

(5) *Apparatus.* The components essential to the evaluation of emissions from gasoline loading terminals.

a. Portable combustible gas detector equipped to read zero (0) to one hundred (100) percent of the lowest explosive limit;

b. Flexible thermocouple with recorder;

c. Gas volume meter, sized for the expected exhaust flow rate and range;

d. Total hydrocarbon analyzer with recorder (flame ionization detector or nondispersive infrared equipped to read zero (0) to ten percent (10%) by volume hydrocarbon as propane for vapor control systems which recover the vapor as liquid; or zero (0) to ten thousand (10,000) ppm hydrocarbons as propane for incineration vapor control systems);

e. Barometer to measure atmospheric pressure;

f. Gas chromatography/flame ionization detector with a column to separate C_1-C_7 alkanes, used if methane is present in recovered vapors or if incineration is the vapor control technique.

(6) *Test requirements.*

a. No fewer than three (3) eight-hour test repetitions will be performed.

b. During the test period, all loading racks shall be open for each product line which is controlled by the system under test. Simultaneous use of more than one (1) loading rack shall occur to the extent that such use would normally occur.

c. Simultaneous use of more than one (1) dispenser on each loading rack shall occur to the extent that such use would normally occur.

d. Dispensing rates shall be set at the maximum rate at which the equipment is designed to be operated. Automatic product dispensers are to be used according to normal operating practices.

e. Applicable operating parameters of the vapor control system shall be monitored to demonstrate levels. For intermittent vapor control systems employing a vapor holder, each

test repetition shall include at least one (1) fully automatic operation cycle of the vapor holder and control device. Tank trucks and truckers shall be essentially leak-free as determined by the director.

(7) *Basic measurements required.* The basic measurements essential to the evaluation of emissions from gasoline loading terminals are:

a. The amount of gasoline dispensed from gasoline dispensers;

b. Leak check of all fittings and vents; exhaust:

c. The following items for the processing unit exhaust:

1. Temperature;

2. Pressure;

3. Volume of vapors;

4. Hydrocarbon concentration of vapors;

5. Gas chromatograph analysis of vapors if methane is present in recovered vapors.

(8) *Test procedure.*

a. Calibrate and span all instruments as outlined under paragraph (10) of this rule.

b. Install an appropriately sized gas meter on the exhaust vent of the vapor control system. For those vapor control systems where size restrictions preclude the use of a volume meter, or when incineration is used for vapor control, a gas flow rate meter) orifice, pitot tube, annubar, etc.) is necessary. At the meter inlet, install a thermocouple with recorder. Install as tap at the volume meter outlet. Attach a sample line for a total hydrocarbon analyzer (zero (0) to ten percent (10%) as propane) to this tap. If the meter pressure is different than barometric pressure, install a second tap at the meter outlet and attach an appropriate manometer for pressure measurement. If methane analysis is required, install a third tap for connection to a constant volume sample/pump evacuated bag assembly as described in Method 3, Federal Register, 36:247, December 23, 1977.

c. Measurements and data required for evaluating emissions from the system:

1. At the beginning and end of each test repetition, record the volume readings on each product dispenser on each loading rack served by the system under test.

2. At the beginning of each test repetition and each two (2) hours thereafter record the ambient temperature and the barometric pressure.

3. For intermittent vapor control systems employing a vapor holder, the unit shall be manually started and allowed to process vapors in the holder until the lower automatic cutoff is reached. This cycle should be performed immediately prior to the beginning of the test repetition before readings required under part 8(c)1 of this rule are taken.

4. For each cycle of the vapor control system during each test repetition, record the start and stop time, the initial and final gas meter readings, the average vapor temperature, pressure and hydrocarbon concentration. If a flow rate meter readouts continuously during the cycle. If required, extract a sample continuously during each cycle for chromatographic analysis for specific hydrocarbons.

5. For each tank truck or trailer loading during the test period, check all fittings and seals on the tanker compartments with the combustible gas detector. Record the maximum combustible gas reading for any incidents of leakage of hydrocarbon vapors. Explore the entire periphery of the potential leak source with the sample hose inlet one (1) centimeter (four-tenths (0.4) inches) away from the interface.

6. During each test period, monitor all possible sources of leaks in the vapor collection and control systems with the combustible gas indicator. Record the location and combustible gas reading for any incidents of leakage.

7. For intermittent vapor control systems, the control unit shall be manually started and allowed to process vapors in the holder until the lower automatic shut off is reached at the end of each test repetition.

(9) *Calculations.*

a. Terminology:

T_a = Ambient temperature

P_b = Barometric pressure (mm Hg)

L_t = Total volume of liquid dispensed from all controlled racks during the test period (liters)

V_e = Volume of air-hydrocarbon mixture exhausted from the processing unit (M^3)

V_{es} = Normalized volume of air-hydrocarbon mixture exhausted, NM^3 at 20°C, 760 mm Hg

C_e = Volume fraction of hydrocarbons in exhausted mixture (volume percent as C_3H_{10}/100, corrected for methane content if required)

T_e = Temperature at processing unit exhaust (°C)

P_e = Pressure at processing unit exhaust (mm Hg abs)

$(M/L)_e$ = Mass of hydrocarbons exhausted from the processing unit per volume of liquid loaded, (mg/liter)

b. 1. Calculate the following results for each period of the vapor control system:

$V_e = V_{ef}V_{ei}(M^3)$

Where:

V_e = Totalized volume from flow rate and time records

V_{ef} = Final volume

V_{ei} = Initial volume

2. Normalized volume of exhausted mixture:

$$V_{es} = \frac{(0.3858\ °K/mm\ Hg)\ VePe}{(T_e + 273.2)}\ NM \text{ at } 20°C, 760 \text{ mm Hg}$$

3. Mass of hydrocarbons exhausted from the vapor control system:

$$M_e = (1.833 \times \frac{10^6\ mg\ C_3\ H_8}{NM^3\ C_3\ H_8})$$

c. Calculate the average mass of hydro carbons emitted per volume of gasoline loaded:

$$(M/L)_e = \frac{Me}{Lt}\ (mg/liter)$$

(10) *Calibrations.*

a. Flow meters shall be calibrated using standard methods and procedures which have been approved by the director.

b. Temperature recording instruments shall be calibrated prior to a test period and following the test period using an ice bath (zero degrees Celsius) and a known reference temperature source of about thirty-five degrees (35°) Celsius. Daily during the test period, use an accurate reference to measure the ambient temperature and compare the ambient temperature reading of all other instruments to this value.

c. Manufacturer's instructions concerning warmup and adjustments shall be followed for total hydrocarbon analyzers. Prior to and immediately after the emission test, perform a comprehensive laboratory calibration on each analyzer used. Calibration gases should be propane in nitrogen prepared gravimetrically with mass quantities of approximately one hundred percent (100%) propane. A calibration curve shall be provided using a minimum of five (5) prepared standards in the range of concentrations expected during testing:

1. For each repetition, zero with zero gas (3 ppm C) and span with seventy percent (70%) propane for instruments used in the vapor lines and with ten percent (10%) propane for instruments used at the vapor control system exhaust.
2. The zero and span procedure shall be performed at least once prior to the first test measurement, once during the middle of the run, and once following the final test measurement for each run.
3. Conditions in calibration gas cylinders must be kept such that condensation of propane does not occur. A safety factor of two (2) for pressure and temperature is recommended.

Rule 26. Reasonably Available Control Technology (RACT).

Rule 26.1. General provisions.

(1) No person shall cause, suffer, allow or permit any source located inside the particulate matter nonattainment area, or any source of a plant located outside the particulate matter nonattainment area which plant significantly impacts the nonattainment area, to emit particulate matter concentrations in excess of the limitations set forth in this Rule 26. If the particulate matter nonattainment area is redesignated to attainment or unclassifiable, the emission limitations contained in this Rule 26 shall remain in full force and effect for those plants to which this Rule 26 had applicability on its effective date. No source shall be deemed in automatic violation of the emission limitations in this Rule 26 provided that each increment of progress established pursuant to Rules 26.21 and 26.22 is met in a timely fashion.

(2) This Rule 26 shall apply only to those sources and plants specified in Rule 26.1(1) which were in existence on January 1, 1978.

(3) Nothing in this Rule 26 shall prevent a source from exceeding the limitations set forth in this Rule 26 as provided for in section 4-13 by use of an alternate control strategy so that maximum allowable particulate matter limitations for the plant containing the source are not exceeded on either daily or an annual basis.

(4) If any source is subject to more than one (1) of the limitations in this Rule 26, for any one (1) piece of equipment or operation, then the most stringent limitation shall apply.

(5) The limitations of this Rule 26 shall not apply to emissions from any internal combustion engine.

(6) Definitions. As used in this Rule 26, all terms, units and abbreviations not defined herein but defined in section 4-2 shall have the meaning give them in section 4-2.

a. *Asphalt concrete plant* means any plant used to manufacture asphalt concrete by heating and drying aggregate and mixing with asphalt cements.

b. *Btu* means British thermal unit.

c. *Ceramic plant* means any plant used for the manufacture of any product made essentially from a nonmetallic mineral by firing at a high temperature.

d. CO_2 means carbon dioxide.

e. *(Reserved)*

f. *Drop point* means any area where particulate laden process or waste material is allowed to fall in a manner which causes particulate matter to become airborne.

g. *Concrete batch plant* means any plant where sand, aggregate and cement are transferred to vehicles which transport the batch to a site.

h. *dscf* means dry cubic feet at standard conditions.

i. *Dust disturbance point* means any area where particulate laden process or waste material is exposed to activities which cause particulate matter to become airborne.

j. *(Reserved)*

k. *gr* means grain (one-seven-thousandth (1/7000th) pound avoirdupois weight).

l. *Grain* means any corn, wheat, sorghum, rice, rye, oats, barley or soybeans.

m. *Grain elevator* means any plant used for the processing, unloading, loading, handling, cleaning, drying or storing of grain.

n. *Liquid alum reactor* means any plant used to complete the reaction of required ingredients under pressure in a reactor for manufacturing alum.

o. *Material handling source* means any plant engaging in the processing or storing of materials by conveyor, elevator, feeder, vehicle or other method including loading or unloading.

p. *Metal melting plant* means any plant engaged in the smelting or refining of ferrous and nonferrous metals from ore, pig or scrap.

q. *Outlet concentration* means the particulate matter content of gases exhausted from control equipment, expressed in weight per unit volume.

r. *Portland cement plant* means any plant used for the manufacturing of Portland-type cement by either the wet or dry process.

s. *Pharmaceutical plant* means any plant used for the conversion of basic raw material into products used in the manufacture or pharmaceuticals.

t. *Rare earth plant* means any plant used for the processing of menozite sand to extract the rare earth elements.

u. *Rock crushing and quarry operation* means any plant engaged in operating gravel pits and quarries and in crushing, washing, screening and otherwise preparing gravel for construction use.

v. *Rule 26.1(6)v. (Reserved)*

w. *Synthetic yarn plant* means any plant used for the processing of synthetic fibers in the form of monofilament, yarn, staple or tow suitable for further manufacturing on spindles, looms, knitting machines or other textile processing equipment.

x. *Transfer point* means any area where particulate laden process or waste material moves from one (1) conveyance to another in such a manner which causes particulate matter to become airborne.

y. *Woodworking plant* means any plant used for manufacturing articles made entirely or partially of wood or wood substitutes.

Rule 26.2. Asphalt concrete plants. No person shall cause, suffer, allow or permit to be emitted from any asphalt concrete plant operation any gases which:

(1) Contain particulate matter in excess of 0.040 gr/dscf;

(2) Exceed twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period.

Rule 26.3. Ceramics plants.

(1) No person shall cause, suffer, allow or permit to be emitted from any ceramics plant operation any gases which contain particulate matter in excess of:

a. 0.025 gr/dscf from any spray dryer;

b. 0.022 gr/dscf from any machining system;

c. 0.100 gr/dscf from any calciner;

d. 0.090 gr/dscf from any tunnel kiln;

e. 0.020 gr/dscf from any other equipment or operation.

(2) No person shall cause, suffer, allow or permit to be emitted from any transfer point, drop point or dust disturbance point any particulate matter in excess of 0.020 gr/dscf.

Rule 26.4. (Reserved)

Rule 26.5. Concrete batch plants. No person shall cause, suffer, allow or permit to be emitted from any concrete batch plant operation any gases which:

(1) Contain particulate matter in excess of 0.100 gr/dscf from any belt conveyor, clam shell crane, bucket elevator or truck loadout;

(2) Exceed ten percent (10%) opacity for an aggregate of more than fifteen (15) minutes in any one (1) hour or more than sixty (60) minutes in any twenty-four (24) hour period from any belt conveyor, clam shell crane, bucket elevator or loadout;

(3) Exceed five percent (5%) opacity for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period from any storage silo.

Rule 26.6. Fuel-burning equipment. No person shall cause, suffer, allow or permit to be emitted from any fuel-burning equipment any gases which contain particulate matter in excess of the limitations determined as follows:

(1) Determine the total rated fuel-burning capacity of all fuel-burning equipment at a plant in millions of Btu, designated as "B" in Table 1 below, and then using Table 1, determine the allowable emission rate in pounds per million Btu (lbs/10^6 Btu), designated as "Q" in Table 1.

(2) To determine compliance, calculate actual emissions rate (lbs/10^6 Btu) when all equipment is burning the most particulate-producing fuel that equipment is capable of handling.

(3) A lower fuel-burning capacity may be specified if the owner or operator notifies the bureau in writing that the specified fuel-burning rate will not be exceeded any time during the year, and fuel monitoring equipment and verification logs adequate to determine fuel-burning rates are available to the bureau for inspection during normal business hours. This lower, specified fuel-burning rate will become a permit condition.

(4) If the owner or operator of the equipment agrees to utilize a technique whereby a less polluting fuel will be used in conjunction with the more polluting fuel to achieve these emissions limitations, and this agreement is made a permit condition, the provisions of Rule 26.6(2) shall not apply.

(5) This Rule 26.6 shall not apply to equipment designed to be fueled solely by coke oven gas.

TABLE 1

Equipment Rating (10^6 Btu)	*Maximum Allowable Particulate Emissions (lbs/10^6 Btu)*
Below 10	Q = 0.6
10 to 250	$Q = 2.16 \times B^{-0.5566}$
250 and greater	Q = 0.1

Rule 26.7. (Reserved)

Rule 26.8. Grain elevators.

(1) No person shall cause or allow to be operated a grain dryer unless it complies with one (1) of the following:

a. No existing column grain dryers shall have external sheeting with transverse perforations of effective circular diameter greater than 0.094 inch.

b. No existing rack grain dryers shall have any portion of exhaust air emitted to the atmosphere without passing through a particulate collection screen having a maximum opening of 50-mesh US Sieve series.

c. All other types of grain dryers shall be controlled in a manner which shall result in the same degree of control required pursuant to Rule 26.8(1)a. and Rule 26.8(1)b.

(2) The owner or operator may use methods of emission control other than those described above, or combinations of the same, if it is demonstrated to the director's satisfaction that these other methods or combinations would result in the same degree of control required pursuant to Rule 26.8(1)a. and Rule 26.8(1)b.

(3) No person shall cause or allow to be emitted from any grain dryer gases which exceed zero percent opacity.

(4) No person shall cause to be emitted from any process where the exhaust gases have a dew point higher than the ambient temperature any gases which contain particulate matter in excess of 0.050 grains per dscf. This regulation shall not apply to those processes specified in Rule 26.8(1).

(5) No person shall cause to be emitted from any grain elevator process other than those specified in Rule 26.8(1) any gases which contain particulate matter in excess of 0.010 grains per dscf.

(6) No person shall cause, suffer, allow or permit to be emitted from any grain handling operation except barge or ship loading any particulate matter which exceeds ten percent (10%) opacity for an aggregate of more than fifteen (15) minutes in any one-hour period or more than sixty (60) minutes in any twenty-four (24) hour period.

(7) No person shall cause, suffer, allow or permit to be emitted from any grain barge or ship loading operation any particulate matter which exceeds twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one-hour period or more than twenty (20) minutes in any twenty-four (24) hour period.

Rule 26.9. (Reserved)

Rule 26.10. Liquid alum reactors. No person shall cause, suffer, allow or permit to be emitted from any liquid alum reactor operation any gases which:

(1) Contain particulate matter in excess of 0.250 gr/dscf;

(2) Exceed twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period.

Rule 26.11. Material handling sources. No person shall cause, suffer, allow or permit to be emitted from any material handling operation, including stored product or waste material, any particulate matter which exceeds ten percent (10%) opacity for an aggregate of more than fifteen (15) minutes in any one-hour period or sixty (60) minutes in any twenty-four (24) hour period.

Rule 26.12. Metal melting plants.

(1) No person shall cause, suffer, allow or permit to be emitted from any metal melting plant operation any gases which contain particulate matter in excess of 0.020 gr/dscf except from operations specified in Rule 26.12(2), (3) and (4).

(2) No person shall cause, suffer, allow or permit to be emitted from any sand transfer point, drop point or dust disturbance point, any particulate matter in excess of 0.02 gr/dscf.

(3) No person shall cause, suffer, allow or permit to be emitted from any inoculation operation any gases which contain particulate matter in excess of 0.022 gr/dscf.

(4) No person shall cause, suffer, allow or permit to be emitted from any cupola top gases which contain particulate matter in excess of 0.022 gr/dscf.

(5) No person shall cause, suffer, allow or permit to be emitted from any metal melting plant any gases which exceed twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period.

(6) This Rule 26.12 shall not apply to any metal melting plant with a melting capacity of forty (40) tons per day, or ten thousand (10,000) tons per year metal melted, or less.

Rule 26.13. Pharmaceutical plants. No person shall cause, suffer, allow or permit to be emitted from any pharmaceutical plant operation any gases which:

(1) Contain particulate matter in excess of 0.020 gr/dscf.

(2) Exceed twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one (1) hour, or more than twenty (20) minutes in any twenty-four (24) hour period.

Rule 26.14. Portland cement plants.

(1) No person shall cause, suffer, allow or permit to be emitted from any Portland cement plant operation any gases which contain particulate matter in excess of:

a. The applicable emission limitation established under Rule 10 from any cement kiln or clinker cooler; provided, however, that process weight for any cement kiln shall be calculated using the dry feed basis;

b. 0.020 gr/dscf from any stack or vent serving any raw or finish mill system, raw mill dryer, raw materials storage, conveyor transfer point bagging, bulk loading or unloading system.

(2) No person shall cause, suffer, allow or permit to be emitted from any stack or vent serving any transfer point, drop point or dust disturbance point any particulate matter in excess of 0.020 gr/dscf.

(3) No person shall cause, suffer, allow or permit to be emitted from any Portland cement plant operation specified in Rule 26.14 (1) and (2), any gases which exceed twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period. For the purpose of this Rule 26.14(3), the provisions of Rule 26.11 shall not apply to material handling sources located at any Portland cement plant operation.

(4) The owner or operator of any source of particulate matter emissions subject to the limitations in this Rule 26.14 proposing to install and operate a control device or replacement process equipment, or proposing to modify existing process equipment or control device, shall adhere to the increments of progress contained in the following schedule:

a. Final plans for the installation or modification must be submitted before January 1, 1982.

b. Contracts for the control device or process equipment must be awarded or orders must be issued for purchase of component parts before February 1, 1982.

c. Initiation of on-site construction or modification of the control device or process equipment before March 1, 1982.

d. On-site construction, installation of modification completed and final compliance shall be determined before December 31, 1982. Final compliance shall be determined in accordance with methods specified by the director.

(5) Any owner or operator subject to the compliance schedule contained in Rule 26.14(4) shall certify to the director, within thirty (30) days after the deadline for each increment of progress, whether the required increment of progress has been met.

(6) The provisions of Rules 26.21 and 26.22 shall not apply to any owner or operator of any Portland cement plant subject to this Rule 26.14.

Rule 26.15. Rare earth plants.

(1) No person shall cause, suffer, allow or permit to be emitted from any earth plant operation any gases which:

a. Contain particulate matter in excess of 0.100 gr/dscf;

b. Exceed twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period.

(2) No person shall cause, suffer, allow or permit to be emitted from any transfer point, drop point or dust disturbance point, particulate matter in excess of 0.020 gr/dscf.

Rule 26.16. Rock crushing and quarry operation.

(1) No person shall cause, suffer, allow or permit to be emitted from any rock crushing or quarry operation any particulate matter in excess of:

a. 0.075 pounds per ton of rock crushed from any primary or secondary crushing or primary or secondary crushing or primary or secondary screening equipment;

b. 0.300 pounds per ton of rock crushed from any tertiary crushing or tertiary screening equipment, or any fines mill equipment;

c. 0.250 pounds per ton of rock crushed from any recrusher or recrusher screening equipment;

d. 0.100 pounds per ton of rock crushed from any sand and gravel screening, conveying or handling equipment.

(2) No person shall cause, suffer, allow or permit to be emitted from any rock crushing or quarry operation any particulate matter which exceeds ten percent (10%) opacity for an aggregate of more than fifteen (15) minutes in any one (1) hour or more than sixty (60) minutes in any twenty-four (24) hour period.

Rule 26.17. Synthetic yarn plants.

(1) No person shall cause to be emitted from any synthetic yarn plant any particulate matter in excess of:

a. 1.0 pounds per hour from any spinning machines;

b. 1.2 pounds per hour from any evaporator;

c. 1.0 pounds per hour from any autoclave;

d. 1.5 pounds per hour from any continuous polymerization line.

(2) No person shall cause, suffer, allow or permit to be emitted from any synthetic yarn plant any gases which exceed twenty percent (20%) opacity for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period.

Rule 26.18. Woodworking plants.

(1) No person shall cause, suffer, allow or permit to be emitted from any woodworking operation any gases which contain particulate matter in excess of:

a. 0.030 gr/dscf from any woodworking operation except sanding;

b. 0.050 gr/dscf from any sanding operation.

(2) No person shall cause, suffer, allow or permit to be emitted from any transfer point, drop point or dust disturbance point any particulate matter in excess of 0.020 gr/dscf.

Rule 26.19. Dumping of material from control equipment.

(1) a. No material from air pollution control equipment shall be dumped on the ground or in the open unless it is thoroughly wet (at least ten percent (10%) average moisture), chemically treated or adequately shielded from the wind to minimize the generation of fugitive dust to an equal level as would be reached by thoroughly wetting. Even wet materials, if dumped in the open, must either be covered over or chemically treated to prevent wind erosion before the material has had opportunity to dry out. For sources not meeting these requirements, a compliance plan for achieving the requirement of this rule must be submitted by January 31, 1981, and purchase orders for any new equipment issued by March 31, 1981. These requirements must be achieved at all plants by July 31, 1981.

b. The director may approve the use of an alternate method of control as a condition of the certificate of operation if it will result in an equivalent emission reduction or a greater reduction on a twenty-four (24) hour basis and an annual basis.

(2) All presently existing accumulations of materials from control equipment must be eliminated, covered or treated so as to prevent wind erosion no later than June 30, 1981. For sources not presently meeting these requirements, a compliance plan for achieving the requirements of this rule must be submitted to the director by November 30, 1980, and purchase orders for any new equipment issued by January 15, 1981.

Rule 26.20. Visible emissions from buildings. No person shall cause, suffer, allow or permit visible emissions from buildings at a plant subject to this Rule 26, other than gases or particulate matter emitted through a stack or flue, with an opacity in excess of five percent (5%) for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period.

Rule 26.21. (Reserved)

Rule 26.22. (Reserved)

Rule 27. Particulate Matter Controls for New Sources and New Modifications After August 29, 1995.

Rule 27.1. Particulate Matter Best Available Control Technology. Any new source or modification, alteration or reconstruction the installation of which commences after August 29, 1995, that emits or can potentially emit, prior to being controlled, fifteen (15) tons per year or more of PM_{10} emissions, or that emits or can potentially emit, prior to being controlled, twenty-five (25) tons per year or more of particulate matter shall utilize "particulate matter best available control technology" (particulate BACT) as defined in Rule 27.2. If test results at a source subject to Rule 27.1 show more than 15.0 tons per year actual emissions of particulate matter, such source shall forward such test results to the Director. In addition, within sixty (60) days after receiving such test results, such source shall complete PM_{10} emissions testing and forward the results of the PM_{10} emissions testing to the Director.

Rule 27.2. For the purposes of Rule 27, "particulate matter best available control technology" means an emissions limitation (including a visible emissions limitation) based on the maximum degree of reduction for particulate matter which would be emitted from any proposed stationary source or modification, alteration, ore reconstruction which the director, on a case-by-case basis, taking into account energy, environmental, and economic impacts and other costs, determines is achievable for such source or modification through such application of production processes or available methods, systems and techniques, including fuel cleaning or treatment or innovative fuel combination techniques for control of each such pollutant. In no event shall the application of particulate matter best available control technology result in emissions of particulate matter which would exceed the emissions allowed by any applicable limitation established under Rules 15 and 16. If a source demonstrates to the director that technological or economic limitations on the application of measurement methodology to a particular emissions unit would make the imposition of an emissions limitation infeasible, a design, equipment, work practice, operations standard or combination thereof, submitted by the source and approved by the director, may be prescribed instead to satisfy the requirement for the application of particulate matter best available control technology. Such a standard shall, to the degree possible, set forth the emissions reduction achievable by implementation of such design, equipment, work practice or operations standard and shall provide for compliance by means which achieve equivalent results.

Rule 27.3. Reasonable and Proper Emission Limitations. Any new source or modification, alteration or reconstruction the installation of which commences after August 29, 1995, that emits or has the potential to emit at its maximum, prior to being controlled, less than fifteen (15) tons per year of PM_{10} emissions and less than twenty-five (25) tons per year of particulate matter shall achieve "reasonable and proper emission limitations" as defined in Rule 27.4.

Rule 27.4. For the purposes of Rule 27, "reasonable and proper emission limitations" means an emissions limitation (including a visible emission standard) which the director, on a case-by-case basis, determines is reasonably achievable and cost-effective for such new source or modification, alteration or reconstruction through the application of production processes or through available methods, systems, and techniques (including fuel cleaning or treatment or innovative fuel combustion techniques) for control of emissions of particulate matter taking into account the following factors:

(1) The necessity of requiring emissions reductions in order to attain or maintain ambient air quality standards; and

(2) The technology available, the costs, energy and other environmental impacts, and any control equipment in use at the source.

If the director determines that technological or economic limitations on the application of control technology to a particular emissions unit would make the imposition of a quantitative emissions limitation infeasible, a design, equipment, work practice, operational standard, or combination thereof, may be prescribed instead to satisfy the requirement for reasonable and proper emissions reductions.

Rule 28. General Provisions and Applicability for Sulfuric Acid Plants and Oleum Manufacturing Plants.

Rule 28.1. Purpose. The purpose of this Rule 28 is to establish emission standards and other requirements for sulfuric acid plants and for oleum manufacturing plants.

Rule 28.2. Definitions. Words or terms defined in Rule 28 are for the purpose of this rule only and will not affect the definitions of Section 4-2. Unless specifically defined in this Rule 28, the definitions from Section 4-2 will apply:

(1) *Acid mist* means sulfuric acid mist, as measured by EPA Method 8 in Title 40 *Code of Federal Regulations* Part 60, Appendix A, which has been incorporated by reference in Chapter 4, or an equivalent or alternative method, as provided in Title 40 *Code of Federal Regulations* Part 60, Subpart H, which has been incorporated by reference in Chapter 4.

(2) *Deluge system* means a system to overflow an area of a release with an extinguishing agent.

(3) *Oleum manufacturing plant* means any facility producing oleum.

(4) *Sulfuric acid plant* means any facility producing sulfuric acid by the contact process by burning elemental sulfur, alkylation acid, hydrogen sulfide, organic sulfides and mercaptans, or acid sludge or by any other method.

Rule 28.3. Standards.

(1) *Best Available Control Technology.* Any sulfuric acid plant or oleum manufacturing plant or the modification, alteration or reconstruction of a sulfuric acid plant or oleum manufacturing plant shall utilize "best available control technology" for the control of sulfur dioxide emissions and for the control of acid mist emissions during start-up, normal operations and shut-down. For the purposes of this Rule 28, "best available control technology" shall have the same definition as for "Best available control technology (BACT) for Section 4-8(e) and Section 4-41, Rule 25."

(2) *Normal operations.*

a. In no case shall "best available control technology" be less stringent than the requirements of the Standards of Performance for Sulfuric Acid Plants, Title 40 *Code of Federal Regulations* Part 60, Subpart H, which has been incorporated by reference in Chapter 4. Except during startup, no emissions containing sulfuric acid mist shall be discharged from the facility with an opacity in excess of five percent (5%) for an aggregate of more than five (5) minutes in any one (1) hour or more than twenty (20) minutes in any twenty-four (24) hour period.

b. The process equipment and material handling shall be operated in accordance with the facility's leak detection and repair (LDAR) procedures, which shall be submitted to the Director for written approval prior to the issuance of any installation permit, certificate of operation, or Part 70 operating permit. Written approval must be received from the Director prior to the initial start-up of the plant.

(3) *Plant start-up operations.*

a. Acid mist emissions, including fugitive emissions, shall not exceed fifteen-hundredths (0.15) pounds of acid mist emissions per ton of one hundred percent (100%)sulfuric acid produced.

b. Sulfur dioxide emissions shall not exceed one thousand two hundred (1,200) parts per million by volume, averaged over the three (3) consecutive hours immediately following the initiation of sulfur burning.

c. No emissions containing sulfuric acid mist shall be discharged from the facility with an opacity in excess of twenty percent (20%) for an aggregate of more than five (5) minutes in any one (1) hour during startup.

d. A continuous monitoring system for the measurement of sulfur dioxide emissions during start-up shall be installed, calibrated, maintained, and operated by the owner or operator during start-up. The pollutant gas used to prepare calibration gas mixtures for calibration checks shall be sulfur dioxide. EPA Method 8 in Title 40 *Code of Federal Regulations* Part 60, Appendix A, which has been incorporated by reference in Chapter 4, shall be used for conducting monitoring system performance evaluations except that only the sulfur dioxide portion of the Method 8 results shall be used. The span value shall be set at two thousand (2,000) ppm of sulfur dioxide.

e. Plant start-up shall be at the lowest practicable production rate, not to exceed seventy percent (70%) of the maximum production rate, until the sulfur dioxide continuous emissions monitor required under Rule 28.3(3)d. indicates compliance with the best available control technology sulfur dioxide emissions limitations provided in Rule 28.3(1). If a more appropriate indicator (such as blower pressure, furnace temperature, gas strength, blower speed, number of sulfur guns operating, or equivalent operating parameter) can be documented, tested and validated, the Director may accept this in lieu of directly documenting the production rate.

f. If the sulfur dioxide continuous emissions monitor required under Rule 28.3(3)d. indicates that the plant is not in compliance with the sulfur dioxide emissions limitations of Rule 28.3(1) by the end of the third hour after start-up initiation, the plant shall be shut down within the fourth hour after start-up initiation. Restart may occur as soon as practicable following any needed repairs or adjustments, provided that corrective action has been taken, logged, and initialed prior to restart.

g. Plant start-up procedures which minimize sulfur dioxide emissions and acid mist emissions during start-up shall be developed, documented, and submitted to the Director for written approval prior to issuance of any installation permit, certificate of operation, or Part 70 operating permit. Written approval must be received from the Director prior to the initial start-up of the plant. These procedures shall include recording the inlet and outlet temperatures of each catalyst mass; and the concentration, temperature, and flow of circulating acid in each absorbing tower on a written operator log. The plant shall operate in accordance with the approved start-up procedures.

h. Plant start-up shall not commence unless meteorological conditions clearly demonstrate that inversion and/or air stagnation conditions do not exist in the vicinity of the plant.

1. The owner or operator shall develop, document, and implement procedures to be followed during start-up which clearly demonstrate that inversion and/or air stagnation conditions do not exist at the plant at the time of start-up. These procedures shall be submitted to the Director for written approval prior to the issuance of any installation permit, certificate of operation, or Part 70 operating permit. Written approval must be received from the Director prior to the initial start-up of the plant. Any modifications to these procedures shall require the written approval of the Director. Written approval must be received from the Director prior to implementation of the modifications.

2. A record of the meteorological conditions present during each start-up shall be recorded on a written operator log.

(4) *Storage tanks.* Storage tanks used to store concentrated sulfuric acid or oleum at ambient temperature shall meet the design, fabrication, and inspection requirements of the National Association of Corrosion Engineers (NACE) Standard RP0294-94, "Recommended Practice Design, Fabrication, and Inspection of Tanks for Storage of Concentrated Sulfuric Acid and Oleum at Ambient Temperatures," which has been incorporated by reference in Chapter 4.

(5) *Deluge system.* The owner or operator of an oleum manufacturing plant or a sulfuric acid plant where oleum is a product or by-product shall install and maintain a deluge system, which shall be operated in the event of an oleum release.

Rule 29. General Provisions and Applicability for Oleum Transfer Operations.

Rule 29.1. Purpose. The purpose of this Rule 29 is to prevent releases of oleum from oleum transfer facilities.

Rule 29.2. Definitions. Words or terms defined in Rule 29 are for the purpose of this rule only and will not affect the definitions of Section 4-2. Unless specifically defined in this Rule 29, the definitions from Section 4-2 will apply:

(1) *Deluge system* means a system to overflow an area of a release with an extinguishing agent.

(2) *Failure event* means any release of oleum into the ambient air which may expose the public to sulfuric acid and sulfur trioxide (combined) in excess of 0.01 grams per cubic meter or two (2) parts per million calculated as sulfuric acid averaged over any ten (10) consecutive minutes, or any release of oleum of any amount into the ambient air that causes or contributes to cause any of the following health effects: irritated eyes, skin or mucous membranes; headaches; burning sensation in the nose or throat; nausea; difficulty breathing; inflammation of the upper respiratory tract; chronic bronchitis; lung damage; loss of consciousness; or chemical pneumonitis.

(3) *Oleum* means sulfuric acid (H_2SO_4) with any dissolved sulfur trioxide (SO_3).

(4) *Oleum transfer facility* means a facility or operation that loads or unloads oleum into or out of containers.

Rule 29.3. Standards. Any owner or operator of an oleum transfer facility shall meet all of the following requirements:

(1) No owner or operator of an oleum transfer facility shall cause, suffer, allow or permit any oleum release into the ambient air which may expose the public to sulfuric acid and sulfur trioxide (combined) in excess of 0.01 grams per cubic meter or two (2) parts per million calculated as sulfuric acid averaged over any ten (10) consecutive minutes, or any release of oleum of any amount into the ambient air that causes or contributes to cause any of the following health effects: irritated eyes, skin or mucous membranes; headaches; burning sensation in the nose or throat; nausea; difficulty breathing; inflammation of the upper respiratory tract; chronic bronchitis; lung damage; loss of consciousness; or chemical pneumonitis.

(2) All oleum transfers shall be continuously conducted, attended, and monitored by a qualified operator. A qualified operator is a person who is trained under the facility's oleum transfer procedures to conduct an oleum transfer.

(3) All oleum transfers shall be conducted in strict accordance with the facility's written oleum transfer procedures. The oleum transfer procedures shall meet the following requirements:

a. The procedures shall be submitted for written approval by the Director that the requirements of Rule 29.3(3)b. through (3)f. have been met prior to the issuance of an installation permit, certificate of operation, or Part 70 permit. Written approval must be received from the Director prior to the initial start-up of the facility. The Director shall provide a thirty (30) day public comment period followed by a public hearing prior to the initial start-up of the facility and will consider all comments received during the public comment period and the public hearing prior to approval of the procedures.

b. The procedures shall explicitly establish and thoroughly describe a qualified operator training program; an equipment inspection and maintenance plan; and monitoring and warning systems to avoid a failure event as defined in Rule 29.2.

c. The procedures shall detail the steps that must be taken by the qualified operator during the oleum transfer and shall include a written oleum transfer checklist. The checklist must provide for a method that will verify completion of each step in the transfer procedure.

d. The procedures shall detail the approval process that must be followed to change the oleum transfer procedures or the oleum transfer checklist. Any change in procedures must be submitted for advance written approval by the Director;

e. The procedures must be approved and signed by a responsible manager. A responsible manager is a person who is an employee of the facility and who is responsible for the management of the facility.

f. The owner or operator, using a process hazards analysis as described in Title 40 *Code of Federal Regulations* Part 68, Subpart D, Section 68.67, which has been incorporated by reference in Chapter 4, shall predict failure events; identify and evaluate hazards involved in the process; plan, implement, and document at least three (3) consecutive prevention measures for every predicted failure event. A process hazards analysis is a systematic method for reducing the likelihood for an oleum release, and for identifying conditions, component failure, and human activities that may result in emissions to the ambient air. The procedures must contain the written predictions, plans, and prevention measures.

1. Prevention measures include, but are not limited to, flow, level and pressure indicators with interlocks; deadman switches; monitoring systems; documented and verified routine inspection and maintenance programs specified in detail by the oleum transfer procedure; and secondary containment and control equipment.

2. Operator training and documented and verified routine inspection and maintenance programs specified in detail by the oleum transfer procedure, collectively, may count as only one (1) of the three (3) required prevention measures.

3. A component, system or program with an unacceptable probability for failure shall not be considered a prevention measure.

4. As part of the process hazards analysis, methods for reducing the likelihood for a release include an inherent safety review of the operation, which considers process modifications and which minimizes the number of oleum transfers.

g. So that appropriate protective measures, such as shelter in place or evacuation plans, may be instituted, the owner or operator will develop, document, and implement notification procedures to immediately notify the public in the event of an oleum release which may result in a failure event as defined in Rule 29.2. The written notification procedures shall be included in the oleum transfer procedures.

(4) At the time of each transfer, an oleum transfer checklist shall be completed by the qualified operator who attends and conducts the transfer. Immediately following the completion of the transfer, the qualified operator shall sign the completed checklist, which shall include the date and the time of the transfer.

(5) The owner or operator of an oleum transfer facility shall vent all pressure relief devices to a secondary containment system, which is a system designed to contain and control a release of oleum in order to avoid a failure event as defined in Rule 29.2. In lieu of controlling any pressure relief device on a tank truck or railroad tankcar, an additional pressure relief device may be installed on the stationary vent line to the tank truck or railroad tankcar. This additional pressure

relief device shall be vented to a secondary containment system and shall be designed to relieve at less than eighty percent (80%) of the set point of the tank truck or railroad tankcar pressure relief device.

(6) Oleum transfer checklists for each transfer shall be retained for at least two (2) years following the date of the transfer and shall be available for inspection by the Director or his designated representatives during normal business hours.

(7) In the event of an oleum release, the owner or operator of an oleum transfer facility shall immediately report the release to the Director and to the local emergency services. This shall mean an immediate telephone report to the Director and to the local emergency services, followed up by a written report submitted to the Director within seven (7) days after the release.

(8) The owner or operator of an oleum transfer facility shall install and maintain a deluge system, which shall be operated in the event of an oleum release to prevent a failure event as defined in Rule 29.2.

(Code 1986, § 4-41; Ord. No. 9171, §§ 6-8, 10—13, 5-30-89; Ord. No. 9652, § 1, 12-17-91; Ord. No. 9846, §§ 3—8, 3-9-93; Ord. No. 10269, §§ 1—3, 7-25-95; Ord. No. 10277, §§ 15—26, 28, 8-15-95; Ord. No. 10785, §§ 1—4, 10-27-98; Ord. No. 10786, §§ 31—50, 62, 10-27-98; Ord. No. 10923, § 1, 11-2-99; Ord. No. 10968, §§ 5, 6, 2-8-00; Ord. No. 11539, § 1, 3-30-04; Ord. No. 11650, § 1, 11-23-04; Ord. No. 12053, §§ 1—3, 12-11-07; Ord. No. 12054, §§ 8—29, 12-11-07; Ord. No. 13221, §§ 13—15, 9-19-17; Ord. No. 13452, § 1, 4-16-19; Ord. No. 13998, §§ 24—76, 6-27-23; Ord. No. 14165, §§ 6—16, 10-29-24; Ord. No. 14324, §§ 7-10, 2-17-26)

Secs. 4-42—4-49. Reserved.

ARTICLE III. PART 70 SOURCE REGULATION AND PERMITS

Sec. 4-50. Part 70 sources.

The provisions, requirements, limitations, exceptions and other terms of this ordinance apply to all Part 70 sources and emissions units located at all Part 70 sources, as are hereinafter defined, which are now existing or hereafter may be constructed or modified so as to become or to have the potential to become a Part 70 source (or an emissions unit at a Part 70 source) and does not apply to other sources. Part 70 sources are not subject to the procedural permitting requirements of Section 4-8 of the Chattanooga Air Pollution Control Ordinance except that Part 70 sources (and emissions units located thereat or thereon) will be required to apply for installation permits in accordance with section 4-8(a) of the Chattanooga Air Pollution Control Ordinance if modifications to or new construction of a Part 70 source are subject to the following:

(a) Section 4-41, Rule 18 of the Chattanooga Air Pollution Control Ordinance;

(b) Section 4-41, Rule 25.3 of the Chattanooga Air Pollution Control Ordinance;

(c) Section 4-41, Rule 23 or Rule 27 of the Chattanooga Air Pollution Control Ordinance;

(d) Any standard or other requirement pursuant to regulations promulgated under Section 111 of the Act [42 U.S.C. § 7411] in Title 40 CFR Part 60, which has been incorporated by reference in Chapter 4; or

(e) Case-by-case determinations made pursuant to sections 112(g) and (j) of the Act [42 U.S.C. § 7412(g) and (j)] as set forth at section 4-53 "Applicable requirement" (4) of this ordinance.

All other sources that are not Part 70 sources remain subject to the Chattanooga Air Pollution Control Ordinance but without regard to this enactment. The other (non-Part 70) sources are exempt from the terms

hereof, until such later time as by amendment hereof they are brought within the scope hereof. Nothing herein shall be construed to use the authority of the permitting agency to modify acid rain program requirements.
(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10786, § 51, 10-27-98; Ord. No. 13998, § 77, 6-27-23)

Sec. 4-51. Permitting authority.

The permitting authority, as is hereinafter defined, has authority to issue, terminate, modify, revoke and reissue permits in accordance with the provisions hereof and to enforce the requirements, conditions and elements of a Part 70 permit and also to enforce the requirements for obtaining a permit and to collect the permit fees provided for herein and to enforce, in all ways permissible under law, the requirements and provisions of this ordinance. No Part 70 source or emissions unit at a Part 70 source may operate without the permit required herein, unless specifically excepted or exempted by this ordinance.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-52. Program overview.

(a) The regulations and requirements of this ordinance provide for the establishment of a comprehensive air quality permitting system consistent with the requirements of Title V of the Clean Air Act (Act) (42 U.S.C. § 7401, et seq.) and 40 CFR Part 70. This ordinance and these regulations and requirements define the procedures and elements required by the ordinance for operating permits.

(b) All sources subject to these regulations must have a permit to operate that assures compliance by the source with all applicable requirements and with the requirements of this ordinance.

(c) In the case of Federal intervention in the permit process, the Administrator of EPA has reserved the right to implement this operating permit program, in whole or in part, or the Federal program contained in regulations promulgated under Title V of the Act.

(d) The requirements of Title 40 Code of Federal Regulations Part 70 "State Operating Permit Programs" (Revised as of July 1, 2023), which are incorporated herein by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121, including provisions regarding schedules for submission and approval or disapproval of permit applications, shall apply to the permitting of affected sources under the acid rain program, except as provided herein or modified in regulations promulgated under Title IV of the Act (acid rain program) in Title 40 Code of Federal Regulations Part 72 "Permits Regulation," Part 75 "Continuous Emission Monitoring," and Part 76 "Acid Rain Nitrogen Oxides Emission Reduction Program" (Revised as of July 1, 2023), which are also incorporated herein by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121. If the provisions or requirements of Title 40 CFR Part 72 conflict with or are not included in this ordinance, the Part 72 provisions and requirements shall apply and take precedence.

(e) The actions of the permitting authority shall not be used to modify any acid rain program requirements.
(Ord. No. 10114, § 2, 9-27-94; Ord. No. 13998, § 78, 6-27-23; Ord. No. 14165, § 17, 10-29-24)

Sec. 4-53. Definitions.

The following definitions apply to this part of the Chattanooga Air Pollution Control Ordinance. Except as specifically provided in this section, terms used in this part retain the meaning accorded them under the applicable requirements of the Act. In the event that there are conflicts in the definition or contextual use of a term in this ordinance and the definition of that term in the Chattanooga Air Pollution Control

Ordinance, the definition here shall apply in this Part 70 program and the definition in other parts shall apply there. Unless a word or phrase is specifically defined in section 4-53, the definitions from Section 4-2 will apply.

"Act" means the Clean Air Act, as amended, 42 U.S.C. § 7401, et seq.

"Actual emissions" means the actual rate of emissions in tons per year of any regulated pollutant (for presumptive fee calculation) emitted from a Part 70 source over the preceding calendar year or any other period determined by the permitting authority to be representative of normal source operation and consistent with the fee schedule approved pursuant to this section. Actual emissions shall be calculated using the unit's actual operating hours, production rates, and in-place control equipment, types of materials processed, stored, or combusted during the preceding calendar year or such other time period established by the permitting authority pursuant to the preceding sentence. [See section 4-60(b)(2)(iii)]

"Administrative permit amendment" means a permit revision that:

(1) Corrects typographical errors;

(2) Identifies a change in the name, address, or phone number of any person identified in the permit, or provides a similar minor administrative change at the source;

(3) Requires more frequent monitoring or reporting by the permittee;

(4) Allows for a change in ownership or operational control of a source where the permitting authority determines that no other change in the permit is necessary, provided that a written agreement containing a specific date for transfer of permit responsibility, coverage, and liability between the current and new permittee has been submitted to the permitting authority;

(5) Incorporates into the Part 70 permit the requirements from preconstruction review permits authorized under an EPA-approved program, provided that such a program meets procedural requirements substantially equivalent to the requirements of 40 CFR §§ 70.7 and 70.8 that would be applicable to the change if it were subject to review as a permit modification, and compliance requirements substantially equivalent to those contained in 40 CFR § 70.6; or

(6) Incorporates any other type of change which the Administrator has determined as part of the approved Part 70 program to be similar to those in paragraphs (1) through (4) of this definition, provided that such "other type of change" has been identified in this ordinance by amendment subsequent to the action of the Administrator.

"Administrator" means the Administrator of the United States Environmental Protection Agency.

"Affected source" shall have the meaning given to it under Title IV of the Act which is a source that includes one (1) or more affected units.

"Affected States" are all States:

(1) Whose air quality may be affected and that are contiguous to the State of Tennessee; or

(2) That are within fifty (50) miles of the permitted source.

"Affected unit" shall have the meaning given to it under Title IV of the Act which is a unit that is subject to emission reduction requirements or limitations under Title IV of the Act.

"Applicable requirements" mean all of the following requirements in the Act, as they apply to emissions units in a Part 70 source (including requirements that have been promulgated or approved by EPA through rulemaking at the time of issuance but have future-effective compliance dates) which are specifically as follows:

(1) Any standard or other requirement provided for in the applicable implementation plan approved or promulgated by EPA through rulemaking under Title I of the Act that implements the relevant requirements of the Act, including any revisions to that plan promulgated in 40 CFR Part 52 where the same have been legally adopted by ordinance in Chattanooga, Tennessee;

(2) Any term or condition of any preconstruction permits issued pursuant to regulations promulgated under Title I, including parts C and D, of the Act in Title 40 CFR Part 51, Subpart I, or Title 40 CFR Part 60, which have been incorporated by reference in Chapter 4;

(3) Any standard or other requirement pursuant to regulations promulgated under Section 111 of the Act [42 U.S.C. § 7411] in Title 40 CFR Part 60, which has been incorporated by reference in Chapter 4;

(4) Any standard or other requirement promulgated under section 112 of the Act [42 U.S.C. Section 7412], including any requirement concerning accident prevention under section 112(r)(7) of the Act [42 U.S.C. Section 7412(r)(7)] in 40 CFR Part 61; 40 CFR Part 63; and 40 CFR Part 68, which have been incorporated herein by reference in Chapter 4 pursuant to the provisions of T.C.A. 68-201-115. No owner or operator may install or modify a Part 70 source that is a major source of hazardous air pollutants [as defined in section 112(b) of the Act (42 U.S.C. § 7412] unless the maximum achievable control technology emission limitation promulgated under section 112 of the Act and incorporated by reference at Section 4-53 as an applicable requirement will be met, and provided further that the maximum achievable control technology emission limitation determination shall be made by the permitting authority on a case-by-case basis as an interim measure pending such promulgation where such promulgation has not yet occurred pursuant to Section 4-41, Rule 16.10. If a major source of hazardous air pollutants has executed an enforceable agreement with the Administrator pursuant to the Title 42 U.S. C. Section 7412(i)(5) Early Reductions Program that contains more stringent requirements or more stringent emissions limitations than would otherwise be applicable under this ordinance or the Chattanooga Air Pollution Control Ordinance, the Part 70 permit issued to it shall include the requirements and emissions limitations contained in that agreement, unless the major source is subsequently released from said enforceable agreement and such release is confirmed in a writing signed by the Administrator, or designee, and submitted to the director;

(5) Any standard or other requirement of the acid rain program promulgated under Title IV of the Act and which are incorporated by reference at Section 4-52(d) of this ordinance;

(6) Any standard or other requirement governing solid waste incineration promulgated under Section 129 of the Act [42 U.S.C. § 7429], including Title 40 CFR Part 60, Subpart Ea "Standards of Performance for Municipal Waste Combustors for Which Construction is Commenced After December 20, 1989 and On or Before September 20, 1994," which have been incorporated by reference in Chapter 4, and standards or other requirements that have been identified in this ordinance by amendment subsequent to the action of the Administrator;

(7) Any standard or other requirement for consumer and commercial products, under section 183(e) of the Act [42 U.S.C. § 7511b.(e)] provided that these standards or other requirements have been identified in this ordinance by amendment subsequent to the action of the Administrator;

(8) Any standard or other requirement for tank vessels, under section 183(f) of the Act [42 U.S.C. § 7511b.(f)] provided that these standards or other requirements have been identified in this ordinance by amendment subsequent to the action of the Administrator;

(9) Any standard or other requirement of the regulations promulgated to protect stratospheric ozone under Title VI of the Act in Title 40 Code of Federal Regulations Part 82 "Protection of Stratospheric Ozone" (Revised as of July 1, 2023), which are incorporated herein by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7- 121, unless the Administrator has determined that such requirements need not be contained in a Part 70 permit;

(10) Any national ambient air quality standard or increment or visibility requirement under part C of Title I of the Act, but only as it would apply to temporary sources permitted pursuant to section 504(e) of the Act [42 U.S.C. § 7661c.(e)];

(11) All requirements of Title 40 CFR Part 70, which have been incorporated by reference at Section 4-52(d) of this ordinance;

(12) Any standard or requirement set forth in Section 4-41 of the Chattanooga Air Pollution Control Ordinance. If a federal regulation is promulgated that does have, or would have, application to a Part 70 source or emissions unit, the Board shall cause the Bureau to prepare within sixty (60) days a draft ordinance for consideration at a public hearing and the Board shall within one hundred twenty (120) days make a recommendation to the City concerning a proposed ordinance. During the interim period following such federal promulgation but preceding local adoption and enforceability of such a standard, each Part 70 permit issued to a source that is subject to such a federal applicable requirement shall include a statement that such source is subject to such federal applicable requirement, followed by the appropriate legal citation for such requirement; and

(13) Any standard or other requirement for compliance assurance monitoring in Title 40 CFR Part 64 promulgated at 62 FR 54940-54947; October 22, 1997, which has been incorporated by reference in Chapter 4.

"Board" means the Chattanooga-Hamilton County Air Pollution Control Board.

"Bureau" means the Chattanooga-Hamilton County Air Pollution Control Bureau.

"Certification" shall mean a notarized attested statement under oath by a responsible official of the truth, accuracy, and completeness that, based on information and belief formed after reasonable inquiry the statements and information in the document or submittal are true, accurate and complete. It shall constitute a certification under T.C.A. 68-201-112, as amended in 1994.

"Designated representative" shall have the meaning given to it in section 402(26) of the Act [42 U.S.C. § 7651a.(26)] which is a responsible person or official authorized by the owner or operator of a unit to represent the owner or operator in matters pertaining to the holding, transfer, or disposition of allowances allocated to a unit, and the submission of and compliance with permits, permit applications, and compliance plans for the unit.

"Director" means the director of the Chattanooga-Hamilton County Air Pollution Control Bureau.

"Draft permit" means the version of a permit for which the permitting authority offers public participation under Section 4-58(h) of this ordinance or affected State review under Section 4-59 of this ordinance.

"Emissions allowable under the permit" means a legally enforceable permit term or condition determined at issuance to be required by an applicable requirement that establishes an emissions limit (including a work practice standard) or an enforceable emissions cap that the source has assumed to avoid an applicable requirement to which the source would otherwise be subject.

"Emissions unit" means any part or activity of a stationary source that emits or has the potential to emit any regulated air pollutant or any pollutant listed under section 112(b) of the Act [42 U.S.C. § 7412(b)]. This term is not meant to alter or affect the definition of the term "unit" for purposes of any other part of the local ordinance.

The "EPA" or the "Administrator" means the Administrator of the EPA or his/her designee.

"Final permit" means the version of a Part 70 permit issued by the permitting authority that has completed all review procedures required by this ordinance and by federal law.

"Fugitive emissions" are those emissions which could not reasonably pass through a stack, chimney, vent, or other functionally-equivalent opening.

"General permit" means a Part 70 permit that has been issued pursuant to and meets the requirements of Section 4-57(d) of this ordinance.

"Local governments" means Hamilton County, Tennessee, and all included municipalities.

"Local program" (for this part of the ordinance) means Part 70 program as hereinafter defined.

"Major source" means any stationary source [or any group of stationary sources that are located on one (1) or more contiguous or adjacent properties, and are under common control of the same person (or persons under common control)], belonging to a single major industrial grouping and that are described in paragraphs (1), (2), or (3) of this definition. For the purposes of defining "major source," a stationary source or group of stationary sources shall be considered part of a single industrial grouping if all of the pollutant emitting activities at such source or group of sources on contiguous or adjacent properties belong to the same Major Group (i.e., all have the same two (2) digit code) as described in the Standard Industrial Classification Manual, 1987.

(1) A major source under section 112 of the Act [42 U.S.C. § 7412], which is defined as:

(i) For pollutants other than radionuclides, any stationary source or group of stationary sources located within a contiguous area and under common control that emits or has the potential to emit, in the aggregate, ten (10) tons per year (tpy) or more of any hazardous air pollutant which has been listed pursuant to section 112(b) of the Act [42 U.S.C. § 7412(b)], twenty-five (25) tpy or more of any combination of such hazardous air pollutants, or such lesser quantity as the Administrator may establish by rule. Notwithstanding the preceding sentences, emissions from any oil or gas exploration or production well (with its associated equipment) and emissions from any pipeline compressor or pump station shall not be aggregated with emissions from other similar units, whether or not such units are in a contiguous area or under common control, to determine whether such units or stations are major sources; or

(ii) For radionuclides, "major source" shall have the meaning identified in this ordinance by amendment subsequent to the action of the Administrator.

(2) A major stationary source of air pollutants, as defined in section 302 of the Act [42 U.S.C. § 7602(j)], that directly emits or has the potential to emit, one hundred (100) tpy or more of any air pollutant (including any major source of fugitive emissions of any such pollutant, as determined by rule by the Administrator). The fugitive emissions of a stationary source shall not be considered in determining whether it is a major stationary source for the purposes of section 302(j) of the Act [42 U.S.C. § 7602(j)], unless the source belongs to one (1) of the following categories of stationary source:

(i) Coal cleaning plants (with thermal dryers);

(ii) Kraft pulp mills;

(iii) Portland cement plants;

(iv) Primary zinc smelters;

(v) Iron and steel mills;

(vi) Primary aluminum ore reduction plants;

(vii) Primary copper smelters;

(viii) Municipal incinerators capable of charging more than fifty (50) tons of refuse per day;

(ix) Hydrofluoric, sulfuric, or nitric acid plants;

(x) Petroleum refineries;

(xi) Lime plants;

(xii) Phosphate rock processing plants;

(xiii) Coke oven batteries;

(xiv) Sulfur recovery plants;

(xv) Carbon black plants (furnace process);

(xvi) Primary lead smelters;

(xvii) Fuel conversion plant;

(xviii) Sintering plants;

(xix) Secondary metal production plants;

(xx) Chemical process plants;

(xxi) Fossil-fuel boilers (or combination thereof) totaling more than two hundred fifty million (250,000,000) British thermal units per hour heat input;

(xxii) Petroleum storage and transfer units with a total storage capacity exceeding three hundred thousand (300,000) barrels;

(xxiii) Taconite ore processing plants;

(xxiv) Glass fiber processing plants;

(xxv) Charcoal production plants;

(xxvi) Fossil-fuel-fired steam electric plants of more than two hundred fifty million (250,000,000) British thermal units per hour heat input; or

(xxvii) Any other stationary source category, which as of August 7, 1980, is being regulated under Section 111 or 112 of the federal Clean Air Act.

(xxviii) Any other stationary source category, which as of August 7, 1980, is being regulated under Section 111 or 112 of the federal Clean Air Act.

(3) A major stationary source as defined in part D of Title I of the Act, including:

(i) For ozone nonattainment areas, sources with the potential to emit one hundred (100) tpy or more of volatile organic compounds or oxides of nitrogen in areas classified as "marginal" or "moderate," fifty (50) tpy or more in areas classified as "serious," twenty-five (25) tpy or more in areas classified as "severe," and ten (10) tpy or more in areas classified as "extreme"; except that the references in this paragraph to one hundred (100), fifty (50), twenty-five (25), and ten (10) tpy of nitrogen oxides shall not apply with respect to any source for which the Administrator has made a finding, under section 182(f)(1) or (2) of the Act [42 U.S.C. § 7511a.(f)(1) or (2)], that requirements under section 182(f) of the Act [42 U.S.C. § 7511a.(f)] do not apply;

(ii) For ozone transport regions established pursuant to section 184 of the Act [42 U.S.C. § 7511c], sources with the potential to emit fifty (50) tpy or more of volatile organic compounds;

(iii) For carbon monoxide nonattainment areas (1) that are classified as "serious," and (2) in which stationary sources contribute significantly to carbon monoxide levels as determined under rules issued by the Administrator, sources with the potential to emit fifty (50) tpy or more of carbon monoxide; and

(iv) For particulate matter (PM-10) nonattainment areas classified as "serious," sources with the potential to emit seventy (70) tpy or more of PM-10.

"Modification" means any physical change in, or change in the method of operation of, a regulated air pollutant source which increases the actual emissions of any regulated air pollutant emitted by such source or increases its potential to emit any regulated air pollutant or which results in the emission of any regulated air pollutant not previously emitted by it.

"Owner or operator" means any person who owns, leases, operates, controls, or supervises a source.

"Part 70 application" means an application which fully complies with the requirements of Section 4-56 of this ordinance.

"Part 70 general permit" means a Part 70 permit issued under Section 4-57(d) of this ordinance.

"Part 70 permit" or "permit" (unless the context suggests otherwise) means any permit or group of permits covering a Part 70 source that is issued, renewed, amended, or revised pursuant to this ordinance.

"Part 70 program" or "Local program" means the program, established by ordinance, approved by the Administrator under 40 CFR Part 70.

"Part 70 source" means any source subject to the permitting requirements of this ordinance and as required in 40 CFR §§ 70.3(a) and 70.3(b) and as set forth in Section 4-54 of this ordinance.

"Permit modification" means a revision to a Part 70 permit that meets the requirements of 40 CFR § 70.7(e) and Section 4-58(e) of this ordinance.

"Permit program costs" means all reasonable (direct and indirect) costs required to develop and administer a permit program, as set forth in 40 CFR § 70.9(b) and Section 4-60(b) of this ordinance (whether such costs are incurred by the permitting authority or other agencies that do not issue permits directly, but that support permit issuance or administration).

"Permit revision" means any permit modification or administrative permit amendment.

"Permitting authority" means either of the following:

(1) The Administrator, in the case of EPA-implemented programs; or

(2) The director of the Chattanooga-Hamilton County Air Pollution Control Bureau, acting under delegation of authority from the Board. Upon appeal of a permit issuance, denial, condition, failure to act or other permit action (or any other time that the Chairman of the Board asserts the primacy of the Board), the permitting authority is the Chattanooga-Hamilton County Air Pollution Control Board.

"Potential to emit" means the maximum capacity of a stationary source to emit any air pollutant under its physical and operational design. Any physical or operational limitation on the capacity of a source to emit an air pollutant, including air pollution control equipment and restrictions on hours of operation or on the type or amount of material combusted, stored, or processed, shall be treated as part of its design if the limitation is enforceable under this ordinance and by the Administrator. This term does not alter or affect

the use of this term for any other purposes under any other sections of this ordinance or under the Act, or the term "capacity factor" as used in Title IV of the Act or the regulations promulgated thereunder at 40 CFR Part 72 adopted by reference in Section 4-52(d) of this ordinance.

"Proposed permit" means the version of a permit that the permitting authority proposes to issue and forwards to the Administrator for review in compliance with 40 CFR § 70.8.

"Regulated air pollutant" means the following:

(1) Nitrogen oxides or any volatile organic compounds;

(2) Any pollutant for which a national ambient air quality standard has been promulgated in Title 40 Code of Federal Regulations Part 50 "National Primary and Secondary Ambient Air Quality Standards" (Revised as of July 1, 2023), the requirements of which are incorporated herein by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201- 115 and § 10-7-121;

(3) Any pollutant that is subject to any standard that has been promulgated under Section 111 of the Act [42 U.S.C. § 7411] in Title 40 CFR Part 60, which has been incorporated by reference in Chapter 4, or Section 4-41, Rule 15 of this ordinance;

(4) Any Class I or II substance subject to a standard promulgated under or established by Title VI of the Act [42 U.S.C. § 7411] in Title 40 CFR Part 82, which has been incorporated by reference at Section 4-53 "Applicable requirements" (9) of this ordinance;

(5) Any pollutant subject to a standard that has been promulgated under Section 112 of the Act [42 U.S.C. § 7412] in Title 40 CFR Part 61 or Title 40 CFR Part 63, which have been incorporated by reference in Chapter 4, or Title 40 Code of Federal Regulations Part 68 "Chemical Accident Prevention Provisions" (Revised as of July 1, 2023), the requirements of which are incorporated herein by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121, including the following:

(i) Any pollutant subject to requirements under section 112(j) of the Act [42 U.S.C. § 7412(j)]. If the Administrator fails to promulgate a standard by the date established pursuant to section 112(e) of the Act [42 U.S.C. § 7412(e)], any pollutant for which a subject source would be a major shall be considered to be regulated on the date eighteen (18) months after the applicable date established pursuant to section 112(e) of the Act [42 U.S.C. § 7412(e)]; and

(ii) Any pollutant for which the requirements of section 112(g)(2) of the Act [42 U.S.C. § 7412(g)(2)] have been met, but only with respect to the individual source subject to section 112(g)(2) of the Act [42 U.S.C. § 7412(g)(2)] requirements.

"Regulated pollutant (for presumptive fee calculation)," which is used only for purposes of Section 4-60 of this ordinance, means any "regulated air pollutant" except the following:

(1) Carbon monoxide;

(2) Any pollutant for which a national ambient air quality standard has been promulgated in Title 40 Code of Federal Regulations Part 50 "National Primary and Secondary Ambient Air Quality Standards" (Revised as of July 1, 2021), the requirements of which are incorporated herein by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. ? 68-201-115 and ? 10-7-121;

(3) Any pollutant that is a regulated air pollutant solely because it is subject to a standard or regulation under section 112(r) of the Act [42 U.S.C. § 7412(r)] which is incorporated herein by reference pursuant to the provisions of T.C.A. § 68-201-115.

(4) Any pollutant resulting from any insignificant activity listed at Section 4-56(c)(11) and Section 4-56(c)(12) of this ordinance.

"Renewal" means the process by which a permit is reissued at the end of its term.

"Research and development facility" means any stationary source whose primary purpose is to conduct research and development into new processes and products, where such source is operated under the close supervision of technically trained personnel and is not engaged in the manufacture of products for commercial sale in commerce, except where such sales do not exceed two percent (2%) of the gross receipts of the source for which it is conducting the research and development.

"Responsible official" means one (1) of the following:

(1) For a corporation: a president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function. For corporations qualifying under the criteria below, a "responsible official" may be any other person who performs similar policy or decision-making functions for the corporation, or a duly authorized representative of such person if the representative is responsible for the overall operation of one (1) or more manufacturing, production, or operating facilities applying for or subject to a permit and either:

(i) the facilities employ more than two hundred fifty (250) persons or have gross annual sales or expenditures exceeding twenty-five million dollars ($25,000,000.00) (in second quarter 1980 dollars); or

(ii) the delegation of authority to such representative is approved in advance by the permitting authority;

(2) For a partnership or sole proprietorship: a general partner or the proprietor, respectively;

(3) For a municipality, State, Federal, or other public agency: either a principal executive officer or ranking elected official. For the purposes of this part, a principal executive officer of a Federal agency includes the chief executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., a Regional Administrator of EPA); or

(4) For affected sources:

(i) The designated representative in so far as actions, standards, requirements, or prohibitions are concerned under Title IV of the Act or any applicable requirement promulgated thereunder which are adopted by reference at Section 4-52(d) of this ordinance; and

(ii) The designated representative for any other purposes under 40 CFR Part 70.

"Section 502(b)(10) changes" are changes that contravene an express permit term. Such changes do not include changes that would violate applicable requirements or contravene federally enforceable permit terms and conditions that are monitoring (including test methods), recordkeeping, reporting, or compliance certification requirements.

"Significant change" shall have the meaning set forth in Section 4-58(e)(3)(i) of this ordinance.

"State" means any non-Federal permitting authority, including any local agency, interstate association, or statewide program. Where such meaning is clear from the context, "State" shall have its conventional meaning. For purposes of the acid rain program, the term "State" shall be limited to authorities within the 48 contiguous States and the District of Columbia as provided in section 402(14) of the Act [42 U.S.C. § 7651a.(14)].

"State Implementation Plan," "Implementation Plan" or "SIP" means the Chattanooga portion of the Tennessee State Implementation Plan.

"Stationary source" means any building, structure, facility, or installation that emits or may emit any regulated air pollutant or any pollutant listed under section 112(b) of the Act [42 U.S.C. § 7412(b)].

"Synthetic minor source" means a source that would otherwise be considered a Part 70 source, due to its potential to emit, if it were not for a mutually agreed upon, more restrictive, federally enforceable limitation, contained in an installation permit, or certificate of operation issued pursuant to Section 4-8 of the Chattanooga Air Pollution Control Ordinance upon the potential to emit of that source under its physical and operational design. All emissions limitations, controls, and other requirements imposed by such permit or certificate of operation shall be at least as stringent as any other applicable limitations and requirements contained in the Chattanooga Air Pollution Control Ordinance and enforceable thereunder.

"Temporary locations" means the locations that conform to Section 4-57(e) of this ordinance.
(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10297, §§ 2, 3, 10-3-95; Ord. No. 10786, §§ 52, 59, 10-27-98; Ord. No. 12054, § 30, 12-11-07; Ord. No. 13998, §§ 79—89, 6-27-23; Ord. No. 14165, §§ 18—20, 10-29-24)

Sec. 4-54. Applicability.

(a) Part 70 sources. This ordinance applies to emissions units at Part 70 sources and to Part 70 sources which are defined to be:

(1) Any major source;

(2) Any source, including an area source, subject to a standard, limitation, or other requirement under section 111 of the Act [42 U.S.C. § 7411];

(3) Any source, including an area source, subject to a standard or other requirement under section 112 of the Act, except that a source is not required to obtain a permit solely because it is subject to regulations or requirements under section 112(r) of the Act [42 U.S.C. § 7412(r)];

(4) Any affected source; and

(5) Any source in a source category designated by the Administrator pursuant to 40 CFR § 70.3 and which, in the event of such designation, shall be included into local law by amendment to the ordinance.

(b) Source category exemptions.

(1) The following sources listed in paragraph (a) of this section that are not major sources, affected sources, or solid waste incineration units required to obtain a permit pursuant to section 129(e) of the Act [42 U.S.C. § 7429], are not Part 70 sources and are exempted from the obligation to obtain a Part 70 permit until such time as specified below:

a. Perchloroethylene Dry Cleaning Facilities. Pursuant to Title 40 CFR Part 63, § 63.320 of Subpart M—National Perchloroethylene Air Emission Standards for Dry Cleaning Facilities, as amended at 61 FR 27788 on June 3, 1996, a source subject to Subpart M that is neither a 'major source', as defined in Section 4-2, nor a source located at a major source, is deferred from Part 70 source operating permit program requirements until December 9, 1999. Each source subject to this deferral shall submit its Part 70 permit application not later than December 9, 2000. Each source subject to this deferral shall meet the compliance schedule as stated in Title 40 CFR Part 63, § 63.320, which has been incorporated by reference in Chapter 4.

(2) In the case of non-major sources subject to a standard or other requirement promulgated under either section 111 or section 112 of the Act [42 U.S.C. § 7411 or 7412] after July 21, 1992, the

Administrator has reserved the right to determine whether to exempt any or all such applicable sources from the requirement to obtain a Part 70 permit and such determination will be incorporated thereafter by amendment of this ordinance.

(3) Any source listed in paragraph (a) of this section which has been declared exempt from the requirement to obtain a permit under this section may opt to apply for a permit under a Part 70 program.

(4) The following source categories are exempted from the obligation to obtain a Part 70 permit:

(i) All sources and source categories that would be required to obtain a permit solely because they are subject to 40 CFR Part 60, Subpart AAA — Standards of Performance for New Residential Wood Heaters; and

(ii) All sources and source categories that would be required to obtain a permit solely because they are subject to 40 CFR Part 61, Subpart M — National Emission Standard for Hazardous Air Pollutants for Asbestos, § 6l.145, Standard for Demolition and Renovation.

(5) Research and development facilities and operations (R & D operations) are not exempt sources or exempt emissions units, but R & D operations are entitled to special treatment. The permitting authority will treat an R & D facility as separate from the manufacturing facility with which it is co-located. The R & D facility will be treated as though it were a separate source and is required to have a Part 70 permit only if the R & D facility itself is a major source.

(c) Emissions units and Part 70 sources.

(1) For major sources, the permitting authority shall include in the permit all applicable requirements for all relevant emissions units in the major source.

(2) For any non-major source subject to the Part 70 program under paragraphs (a) or (b) of this section, the permitting authority shall include in the permit all applicable requirements applicable to emissions units that cause the source to be subject to the Part 70 program.

(d) Fugitive emissions. Fugitive emissions from a Part 70 source shall be included in the Part 70 permit application and the Part 70 permit in the same manner as stack emissions, regardless of whether the source category in question is included in the list of sources contained in the definition of major source.

(e) Synthetic minor sources. A Part 70 source may choose to request federally enforceable physical or operational limitations on its potential to emit in order to avoid applicability of this ordinance. Such source must:

(1) Comply with all requirements of Section 4-8 of the Chattanooga Air Pollution Control Ordinance;

(2) Undergo public participation requirements. This requires that notice of a draft initial certificate(s) of operation for a synthetic minor source shall be given to the general public at least thirty (30) days in advance of a public hearing on the draft initial certificate(s) of operation and shall provide at least thirty (30) days for public comment. Such notice shall be given by publication as an electronic notice (e-notice) on the Bureau website for the duration of the public comment period and by other means designated by the Director, if necessary. In addition, a copy of the draft certificate(s) of operation for a synthetic minor source shall be delivered to the U.S. Environmental Protection Agency at least thirty (30) days in advance of a public hearing on the draft certificate(s) of operation. Such advance notice must be given and a public hearing must be held prior to issuance of any certificate of operation to a synthetic minor source. Any certificate of operation issued to a synthetic minor source shall contain a statement of basis comparing the source's potential to emit with the synthetic limit to emit and a description of the procedures to be followed that will insure that the limit on which the Director bases a determination that a source is a synthetic minor source and not a "major source," as defined in this ordinance, is not exceeded;

(3) Submit a written request to the permitting authority within twelve (12) months of becoming subject to this ordinance seeking synthetic minor source status. This request must contain the proposed physical and operational limitations on potential to emit; and

(4) Be granted synthetic minor source status and maintain the operational and other criteria by which it gained that designation.

(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10786, § 53, 10-27-98; Ord. No. 13998, § 90, 6-27-23)

Sec. 4-55. Local program submittals and transition.

(a) The permitting authority shall develop and the Board shall adopt by Resolution, the following:

(1) A complete program description describing how the municipality through the permitting authority intends to carry out its responsibilities under 40 CFR Part 70.

(2) (i) Copies of the permit form(s), application form(s), and reporting form(s) that the permitting authority intends to employ in its program; and

(ii) Relevant guidance issued by the permitting authority to assist in the implementation of its permitting program, including criteria for monitoring source compliance (e.g., inspection strategies).

(3) A demonstration, consistent with Section 4-60(c) of this ordinance and with 40 CFR § 70.9, that the permit fees required by the program are sufficient to cover permit program costs.

(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-56. Permit applications.

(a) *Duty to apply.* For each Part 70 source, the owner or operator shall submit to the permitting authority a timely and complete permit application in accordance with the requirements of 40 CFR Part 70 and the requirements of this ordinance.

(1) *Timely application.*

(i) A timely application for a source applying for a Part 70 permit for the first time is one (1) that is submitted within twelve (12) months after the source becomes subject to this ordinance.

(ii) Part 70 sources or emissions units at Part 70 sources required to meet the requirements under section 112(g) of the Act [42 U.S.C. § 7412], or to have a permit under the preconstruction review program approved into the applicable implementation plan under part C or D of Title I of the Act, shall file a complete application to obtain the Part 70 permit or permit revision within twelve (12) months after commencing operation or on or before such earlier date as the permitting authority may establish. Any operation prior to obtaining a fully approved Part 70 permit shall be subject to any applicable requirements of the provisions of this ordinance. Where an existing Part 70 permit would prohibit such construction or change in operation, the source must obtain a permit revision before commencing operation.

(iii) For purposes of permit renewal, a timely application is one (1) that is submitted at least six (6) months prior to the date of permit expiration.

(iv) Applications for initial phase II acid rain permits shall be submitted to the permitting authority by January 1, 1996 for sulfur dioxide, and by January 1, 1998 for nitrogen oxides.

(2) *Complete application.* To be deemed complete, an application must provide all information required pursuant to paragraph (c) of this section, except that applications for permit revision need supply such information only if it is related to the proposed change. Information required under

paragraph (c) of this section must be sufficient to evaluate the subject source and its application and to determine all applicable requirements. The application shall require that a responsible official certify the submitted information consistent with paragraph (d) of this section. Unless the permitting authority determines that an application is not complete within sixty (60) days of receipt of the application, such application shall be deemed to be complete, except as otherwise provided in Section 4-58(a)(4) of this ordinance. If, while processing an application that has been determined or deemed to be complete, the permitting authority determines that additional information is necessary to evaluate or take final action on that application, it may request such information in writing and set a reasonable deadline for a response. The source shall furnish the required information. The source's ability to operate without a Part 70 permit, as set forth in Section 4-58(b) of this ordinance, shall be in effect from the date the application is determined or deemed to be complete until the final permit is issued, provided that the applicant submits any requested additional information by the deadline specified by the permitting authority. Any terms and conditions effective in the most recently issued installation permits and certificates of operation issued to a Part 70 source in accordance with Section 4-8 of the Chattanooga Air Pollution Control Ordinance prior to the effective date of its initial issued Part 70 permit shall continue in full force and effect pending final action on the application. A completeness determination shall be made within sixty (60) days of receipt of the application.

(3) *Confidential information.* In the case where a source has submitted information to the permitting authority under a claim of confidentiality, the permitting authority may also require the source to submit a copy of such information directly to the Administrator.

(b) *Duty to supplement or correct application.* Any applicant who fails to submit any relevant facts or who has submitted incorrect information in a permit application shall, upon becoming aware of such failure or incorrect submittal, promptly submit such supplementary facts or corrected information. In addition, an applicant shall provide additional information as necessary to address any requirements that become applicable to the source after the date it filed a complete application but prior to release of a draft permit.

(c) *Standard application form and required information.* The permitting authority shall provide for a standard application form or forms. Information as described below for each emissions unit at a Part 70 source shall be included in the application. The Administrator has reserved the overriding authority under 40 CFR § 70.5(c) to approve or disapprove a list of insignificant activities and emissions levels. Subject to the approval of the Administrator and effective only after such approval, the activities listed at Section 4-56(c)(11) of this ordinance are deemed to be insignificant activities that need not be included in the permit application. Subject to the approval of the Administrator and effective only after such approval, the activities listed at Section 4-56(c)(12) of this ordinance are deemed to be insignificant activities because of size or production rate that must be included in the permit application in accordance with the permit forms as approved by the board pursuant to Section 4-55(a)(2) of this ordinance. The activities listed at Section 4-56(c)(12) need not comply with the requirements of Section 4-56(c)(1) through (c)(9) of this ordinance. An application may not omit information needed to determine the applicability of, or to impose, any applicable requirement, or to evaluate the fee amount required under the schedule approved pursuant to 40 CFR § 70.9. The forms and attachments chosen, however, shall include the elements specified below:

(1) Identifying information, including company name and address (or plant name and address if different from the company name), owner's name and agent, and telephone number and names of plant site manager/contact.

(2) A description of the source's processes and products (by Standard Industrial Classification Code) including any associated with each alternate scenario identified by the source.

(3) The following emissions-related information:

(i) All emissions of pollutants for which the source is major, and all emissions of regulated air pollutants. A permit application shall describe all emissions of regulated air pollutants emitted from any emissions unit, except where such units are exempted under this paragraph (c). The permitting authority shall require additional information related to the emissions of air pollutants sufficient to verify which requirements are applicable to the source, and other information necessary to collect any permit fees owed under the fee schedule approved pursuant to Section 4-60(b) of this ordinance.

(ii) Identification and description of all points of emissions described in paragraph (c)(3)(i) of this section in sufficient detail to establish the basis for fees and applicability of requirements of the Act.

(iii) Emissions rates in tons per year (tpy) and in such terms as are necessary to establish compliance consistent with the applicable standard reference test method.

(iv) The following information to the extent it is needed to determine or regulate emissions: fuels, fuel use, raw materials, production rates, and operating schedules.

(v) Identification and description of air pollution control equipment and compliance monitoring devices or activities.

(vi) Limitations on source operation affecting emissions or any work practice standards, where applicable, for all regulated pollutants at the Part 70 source.

(vii) Other information required by any applicable requirement (including information related to stack height limitations developed pursuant to section 123 of the Act [42 U.S.C. § 7423]).

(viii) Calculations on which the information in items (i) through (vii) above is based.

(4) The following air pollution control requirements:

(i) Citation and description of all applicable requirements, and

(ii) Description of or reference to any applicable test method for determining compliance with each applicable requirement.

(5) Other specific information that may be necessary to implement and enforce other applicable requirements of the Act or of this part or to determine the applicability of such requirements.

(6) An explanation of any proposed exemptions from otherwise applicable requirements.

(7) Additional information as determined to be necessary by the permitting authority to define alternative operating scenarios identified by the source pursuant to Section 4-57(a)(9) of this ordinance or to define permit terms and conditions implementing Section 4-58(i) or Section 4-57(a)(10) of this ordinance.

(8) A compliance plan for all Part 70 sources that contains all the following:

(i) A description of the compliance status of the source with respect to all applicable requirements.

(ii) A description as follows:

(A) For applicable requirements with which the source is in compliance, a statement that the source will continue to comply with such requirements.

(B) For applicable requirements that will become effective during the permit term, a statement that the source will meet such requirements on a timely basis.

(C) For requirements for which the source is not in compliance at the time of permit issuance, a narrative description of how the source will achieve compliance with such requirements.

(iii) A compliance schedule as follows:

(A) For applicable requirements with which the source is in compliance, a statement that the source will continue to comply with such requirements.

(B) For applicable requirements that will become effective during the permit term, a statement that the source will meet such requirements on a timely basis. A statement that the source will meet in a timely manner applicable requirements that become effective during the permit term shall satisfy this provision, unless a more detailed schedule is expressly required by the applicable requirement.

(C) A schedule of compliance for sources that are not in compliance with all applicable requirements at the time of permit issuance. Such a schedule shall include a schedule of remedial measures, including an enforceable sequence of actions with milestones, leading to compliance with any applicable requirements for which the source will be in noncompliance at the time of permit issuance. This compliance schedule shall resemble and be at least as stringent as that contained in any judicial consent decree or administrative order to which the source is subject. Any such schedule of compliance shall be supplemental to, and shall not sanction noncompliance with, the applicable requirements on which it is based.

(iv) A schedule for submission of certified progress reports no less frequently than every six (6) months for sources required to have a schedule of compliance to remedy a violation.

(v) The compliance plan content requirements specified in this paragraph shall apply and be included in the acid rain portion of a compliance plan for an affected source, except as specifically superseded by regulations promulgated under Title IV of the Act which are incorporated by reference in Section 4-52(d) of this ordinance with regard to the schedule and method(s) the source will use to achieve compliance with the acid rain emissions limitations.

(9) Requirements for compliance certification, including the following:

(i) A certification of compliance with all applicable requirements by a responsible official consistent with paragraph (d) of this section and section 114(a)(3) of the Act [42 U.S.C. § 7414];

(ii) A statement of methods to be used for determining compliance, including a description of monitoring, recordkeeping, and reporting requirements and test methods;

(iii) A schedule for submission of compliance certifications during the permit term, to be submitted no less frequently than annually, or more frequently if specified by the underlying applicable requirement or by the permitting authority; and

(iv) A statement indicating the source's compliance status with any applicable enhanced monitoring and compliance certification requirements of the Act provided that these requirements have been identified in this ordinance by amendment subsequent to the action of the Administrator.

(10) The use of nationally-standardized forms for acid rain portions of permit applications and compliance plans, as required by regulations promulgated under Title IV of the Act.

(11) The following activities, due to de minimis emissions levels, are deemed to be insignificant activities that need not be included in the permit application provided that potential emissions of each criteria pollutant from an activity listed in § 4-56(c)(11) by a Part 70 source are less than five

(5) tons per year; and provided that potential emissions of any single hazardous air pollutant from an activity listed in § 4-56(c)(11) by a Part 70 source are less than one thousand (1,000) pounds per year; and provided that the activity involves no potential emissions of any Class I substance or Class II substance as defined in Title 42 U.S.C. 7671; and further provided that the activity listed in § 4-56(c)(11) is not subject to an applicable requirement, as that term is defined in § 4-53. Potential emissions of any air pollutant that is both a criteria pollutant and a hazardous air pollutant shall be subject to the more stringent threshold of one thousand (1,000) pounds per year for the purposes of § 4-56(c)(11).

(i) Mobile sources such as: automobiles, trucks, buses, locomotives, planes, boats, and ships. This exemption only applies to the emissions from the internal combustion engines used exclusively to propel such vehicles;

(ii) Equipment used on farms for soil preparation, tending or harvesting of crops, or for preparation of feed to be used on the farm where prepared, except if subject to Title 40 CFR Part 60, Subpart DD, incorporated by reference in § 4-41, Rule 15;

(iii) Barbecue pits and cookers; if the products are edible (intended for human consumption), and are sold on site, or at one (1) location;

(iv) Any air emission or air emission unit at a domestic residence for domestic use except where open burning requires permit issuance or is expressly prohibited;

(v) Wood smoking operations to cure tobacco in barns;

(vi) Operations exempted under Section 4-41, Rule 6 of the Chattanooga Air Pollution Control Ordinance;

(vii) Natural gas mixing and treatment operations including sampling and testing, except if subject to Title 40 CFR Part 60, Subparts KKK or LLL, incorporated by reference in § 4-41, Rule 15;

(viii) Wire drawing including drawing coolants and lubricants provided that they are water based;

(ix) Open air drying of wood;

(x) Exterior washing of trucks and vehicles, except with cleaners containing volatile organic compounds;

(xi) Sealing or cutting plastic film or foam with heat or hot wires, except processes that emit chlorofluorocarbons;

(xii) Combustion units designed and used exclusively for comfort heating purposes employing liquid petroleum gas, or natural gas as fuel;

(xiii) Comfort air conditioning systems or comfort ventilating systems which are not used to remove air contaminants generated by or released from specific units of equipment, except any activity subject to an applicable requirement promulgated under Title VI of the Act in Title 40 CFR Part 82;

(xiv) Water cooling towers (except for those at nuclear power plants), water treatment systems for process cooling water or boiler feedwater, and water tanks, reservoirs, or other water containers designed to cool, store, or otherwise handle water (including rainwater) that has not been in contact with gases or liquids containing carbon compounds, sulfur compounds, halogens or halogen compounds, cyanide compounds, inorganic acids, or acid gases, except for those using chromium-based water treatment chemicals;

(xv) Equipment used for hydraulic, or hydrostatic testing;

(xvi) Equipment used exclusively to store or hold dry natural gas, except if subject to Title 40 CFR Part 60, Subparts KKK or LLL, incorporated by reference in § 4-41, Rule 15;

(xvii) Gasoline, diesel fuel, and fuel oil handling facilities, equipment, and storage tanks, except those subject to Section 4-53 "Applicable Requirements" (3) of this chapter and Section 4-41, Rule 25.7, Rule 25.8, Rule 25.9, and Rule 25.10 of this chapter.

(xviii) Blast cleaning equipment using a suspension of abrasives in water;

(xix) Laboratory equipment used exclusively for chemical and physical analyses, including ventilating and exhaust systems for laboratory hoods used for air contaminants other than radioactive air contaminants;

(xx) Reserved;

(xxi) Equipment used for inspection of metal products;

(xxii) Brazing, soldering or welding operations which do not release hexavalent chromium compounds or hazardous air pollutants subject to regulations promulgated pursuant to Section 112 of the Act;

(xxiii) Laundry dryers, extractors, or tumblers used for fabrics cleaned with water solutions of bleach or detergents;

(xxiv) Foundry sand mold forming equipment producing molds to which no heat is applied and from which no organics are emitted;

(xxv) Reserved;

(xxvi) Mixers, blenders, roll mills, or calenders for rubber or plastics where no materials in powder form are added and in which no organic solvents, dilutents, or thinners are used;

(xxvii) Vacuum cleaning systems used exclusively for industrial, commercial, or residential housekeeping purposes, except those systems used to collect hazardous air contaminants subject to Section 4-53 "Applicable Requirement" (3) of this ordinance;

(xxviii) Reserved;

(xxix) Repairs or general maintenance not involving structural changes where no new or permanent facilities are installed, not conducted as part of a manufacturing process, not related to the source's primary business activity, not otherwise triggering a permit modification or permanent increase in emissions, and not subject to control requirements for volatile organic compounds or hazardous air pollutants;

(xxx) Alkaline/phosphate washers and associated burners;

(xxxi) Outdoor heaters fueled by kerosene;

(xxxii) Livestock and poultry feedlots;

(xxxiii) Reserved;

(xxxiv) Blueprint copiers and photocopying;

(xxxv) Reserved;

(xxxvi) Reserved;

(xxxvii) Funeral homes, excluding crematoriums;

(xxxviii) Gas flares or flares used solely to indicate danger to the public;

(xxxix) Firefighting equipment and the equipment used to train firefighters;

(xl) Equipment used for cooking food for immediate human consumption;

(xli) Blacksmith forges;

(xlii) Clean steam condensate and steam relief vents;

(xliii) Boiler water treatment operations, excluding cooling towers;

(xliv) Reserved;

(xlv) Herbicide and pesticide dilution and application activities for on site use;

(xlvi) Routine building maintenance, lawn maintenance, house-keeping, and administrative activities, such as painting buildings, roofing, sandblasting, paving parking lots, lawn care activities, all clerical activities, and all janitorial activities;

(xlvii) Miscellaneous activities and equipment, such as: cafeteria vents, bathroom vents, locker room vents, copying, blue print machines, decommissioned equipment, dumpsters, fire training, refrigerators, and space heaters;

(xlviii) Cold storage refrigerator equipment, excluding equipment that uses a Class I substance or a Class II substance as defined in Title 42 U.S.C. 7671;

(xlix) Equipment used for portable steam cleaning;

(l) Non-routine clean out of tanks and equipment for the purposes of worker entry or in preparation for maintenance or decommissions;

(li) Sampling connections used exclusively to withdraw materials for testing and analysis, including air contaminant detectors and vent lines;

(lii) Laboratories in primary and secondary schools and in schools of higher education used for instructional purposes;

(liii) Equipment used exclusively for rolling, forging, pressing, stamping, spinning, drawing, or extruding either hot or cold metals unless their emissions exceed any applicable regulated amount;

(liv) Reserved;

(lv) Grain, metal or mineral extrusion process;

(lvi) Equipment used exclusively for mixing and blending water-based adhesives and coatings at ambient temperatures and from which no organics are released;

(lvii) Reserved;

(lviii) Steam heated wood drying kilns, not used for chemically treated wood;

(lix) Unpaved roadways and parking areas not regularly used for traffic unless permits have specific conditions limiting fugitive emissions;

(lx) Warehouse activities, including the storage of packaged raw materials and finished goods, excluding activities that emit hazardous air pollutants or volatile organic compounds;

(lxi) Electric stations, including transformers, battery charging and substations, excluding activities that emit polychlorinated biphenyls (PCBs);

(lxii) Compressors and vacuum producing equipment not fueled by gasoline or diesel;

(lxiii) Groundwater monitoring wells;

(lxiv) Reserved;

(lxv) Use of materials for marking and grading of lumber, and the storage of lumber;

(lxvi) Reserved;

(lxvii) Reserved;

(lxviii) Equipment used in the production of aqueous inks in which no organic solvents, dilutents, or thinners are used;

(lxix) Equipment used to transport or store process wastewater streams to a wastewater treatment facility (i.e. floor drains, sumps, drain headers, manhole covers);

(lxx) Vacuum seal pot and vacuum pumps;

(lxxi) Presses used exclusively for extruding metals, minerals, plastics, rubber, or wood except where halogenated carbon compounds or hydrocarbon organic solvents are used as foaming agents. Presses used for extruding scrap materials or reclaiming scrap materials are not insignificant activities;

(lxxii) Tank trucks, railcars, barges, and trailers, excluding transfer and loading operations that are subject to an applicable requirement, as defined in § 4-53 of this chapter, and excluding internal cleaning operations that emit hazardous air pollutants or volatile organic compounds;

(lxxiii) Dumpsters;

(lxxiv) Environmental field sampling activities;

(lxxv) Cleaning, polishing, and other housekeeping activities associated with custodial duties;

(lxxvi) Instrument air dryers and distribution;

(lxxvii) Automatic oiling operations (e.g., oiler on chains);

(lxxviii) Machine blowdown with air for cleanup;

(lxxix) Architectural, structural, and maintenance coating operations in which the articles being coated are coated in place, excluding activities that are part of a manufacturing process or that are part of the source's primary business activity;

(lxxx) Sand blasting operations in which the operations are conducted on articles which are fixed in place, excluding activities that are part of a manufacturing process or that are part of the source's primary business activity;

(lxxxi) Welding operations for maintenance or field fabrication in which the articles being welded are fixed in place;

(lxxxii) Sanitary sewer systems;

(lxxxiii) Reserved;

(lxxxiv) Use of office equipment and supplies;

(lxxxv) Treatment systems for potable water; and

(lxxxvi) Industrial-Commercial-Institutional Steam Generating Insignificant Activities are as follows:

Bunker room exhaust;

Coal sampling and weighing operations;

Vents from ash transport systems not operating at positive pressure (e.g. ash hoppers);

Coal combustion by-product disposal (except for dry stacking and intermittent ash hauling and disposal);

Building ventilation other than boiler room, coal handling, and ash loading (e.g. turbine room, battery room);

Lubrication of equipment except vents from oil vapor extractors;

Hydrogen vents;

Steam vents;

Air compressor and distribution systems;

Fugitive dust from operation of a passenger automobile, station wagon, pickup truck, or van;

Pressure relief valves;

Test gases and bottled gases;

Emissions from a laboratory (If a facility manufactures or produces products for profit in any quantity, it may not be considered to be a laboratory under this item);

Safety devices such as fire extinguishers;

Equipment used for hydraulic or hydrostatic testing;

Food preparation for onsite consumption;

Boiler room ventilation; and

Oil vapor extractor (e.g. turbine seal oil, turbine lube oil).

(lxxxvii) Reserved;

(12) The following activities, due to size and production rate, are deemed to be insignificant activities that must be included in the permit application in accordance with § 4-56 of this chapter provided that potential emissions of each criteria pollutant from an activity listed in § 4-56(c)(12) by a Part 70 source are less than five (5) tons per year; and provided that potential emissions of any single hazardous air pollutant from an activity listed in § 4-56(c)(12) by a Part 70 source are less than one thousand (1,000) pounds per year; and provided that the activity involves no potential emissions of any Class I substance or Class II substance as defined in Title 42 U.S.C. 7671; and further provided that the activity listed in § 4-56(c)(12) is not subject to an applicable requirement, as that term is defined in § 4-53. Potential emissions of any air pollutant that is both a criteria pollutant and a hazardous air pollutant shall be subject to the more stringent threshold of one thousand (1,000) pounds per year for the purposes of § 4-56(c)(12).

(i) Fuel burning equipment of less than five hundred thousand (500,000) Btu per hour capacity. This exemption shall not apply where the total capacity of all fuel burning equipment operated at a fuel burning installation exceeds two million (2,000,000) Btu per hour;

(ii) A single stack of an air contaminant source that emits no regulated gaseous pollutants or any pollutants defined at Section 4-53 "Regulated Air Pollutant" (5) of this ordinance and which does not have potential emissions, prior to being controlled, of more than 0.50 pound per hour of particulate matter, provided that the total of such emissions at an air contaminant source to which this insignificant activity designation is being applied amounts to less than 2.00 pounds per hour. For the purpose of this subparagraph, an air contaminant source includes all sources located within a contiguous area and under common control. This insignificant activity designation does not apply to incinerators or sources emitting lead or lead compounds.

(iii) Natural gas or propane-fired stationary internal combustion engines or gas turbines with less than five million (5,000,000) BTU/hour heat input.

(iv) Processes used for the curing of rubber products and plastic products, except when emitting more than 1 pound per hour of volatile organic compounds. If applicable, associated heat input using natural gas, #2 fuel oil, or propane shall not exceed five million (5,000,000) BTU per hour.

(v) Surface coating and degreasing operations which do not exceed a combined total usage of more than sixty (60) gallons/month of coatings, thinners, clean-up solvents, and degreasing solvents, at any one (1) location.

(vi) Fuel burning sources that are either gas fired or #2 oil fired with a heat input rate under five million (5,000,000) BTU/hour, where the combined total heat input rate at each location does not exceed five million (5,000,000) BTU/hour. This exemption does not apply to gas fired turbines greater than five million (5,000,000) BTU/hour.

(vii) Machining of metals where total solvent usage does not exceed more than sixty (60) gallons/month at any one (1) location.

(viii) Non-continuous solvent recycling units with less than sixty (60) gallons capacity.

(ix) Hand-held sprayer and airbrush graphic arts operations in which total organic solvent emissions from such operations at a facility do not exceed fifteen (15) pounds per day.

(x) Emission units not otherwise exempt under this paragraph with uncontrolled emissions of one hundred (100) pounds per year or less of any Class I or Class II substance subject to a standard promulgated under or established by Title VI of the Act concerning stratospheric ozone protection.

(xi) Any change in the activity or level of operation of an air emissions unit that has the potential to increase emissions of any regulated air pollutant by less than five (5) tons per year unless the change in the activity or level of operation increases the air emissions unit's potential to emit any regulated air pollutant to above five (5) tons per year or if the change in the activity or level of operation is subject to Section 4-53 "Applicable Requirements" (3) and (4) of this ordinance.

(xii) Industrial wastewater treatment facilities which do not use air stripping or air sparging and do not release more than one-half (0.5) tons/year of any regulated pollutant.

(xiii) Process equipment burning natural gas or #2 fuel oil with a heat input rate under five million (5,000,000) BTU/hour where the combined total heat input rate at each facility does not exceed five million (5,000,000) BTU/hour. Only the fuel burning emissions from these sources are considered insignificant activities.

(xiv) All storage tanks with a capacity of no more than one thousand (1,000) gallons (including fifty-five (55) gallon drums used only for storage) except those emitting any hazardous air pollutant as set forth at Section 4-53 "Applicable Requirements" (4) of this ordinance.

(xv) All process tanks with a capacity of no more than one thousand (1,000) gallons where the combined total emissions from such tanks are less than one-half (0.5) tons of any regulated air pollutant combined.

(xvi) Equipment used for compression molding and injection molding of plastics, excluding processes that involve the use of acrylics, polystyrene and related copolymers, and plasticizer, and limited to the blowing agents oxygen, nitrogen, carbon dioxide, air that is a mixture of gases with a composition of approximately seventy-eight percent (78%) nitrogen and twenty-one percent (21%) oxygen by volume, or inert gas.

(xvii) All gas fired, #2 oil fired, infrared, and electric ovens with a heat input of no more than five million (5,000,000) BTU/hour which have no emissions other than products of fuel combustion, unless they are associated with a source subject to § 4-53 "Applicable requirement" (3) of this chapter.

(xviii) Powder coating operations.

(xix) An "emergency generator" which is used when loss of primary electrical power occurs for reasons beyond the control of the source. In no event shall an "emergency generator" be operated for a period of time longer than five (5) consecutive days or more than a total of twenty (20) days in any calendar year, unless a source demonstrates to the director with clear and convincing evidence that reasonably unforeseeable events beyond the control of

the source require use of the "emergency generator" for an additional period of time. The source shall maintain a written record of each loss of primary electrical power, including a record of the loss.

(xx) Equipment used exclusively for rolling, forging, pressing, stamping, spinning or extruding either hot or cold plastics that do not emit hazardous air pollutants.

(xxi) Lubricants and waxes used for machinery lubrication.

(xxii) Surface coating operations using hand-held, non-refillable aerosol containers.

(d) Any application form, report, or compliance certification submitted pursuant to these regulations shall contain a certification by a responsible official of truth, accuracy, and completeness. This certification and any other certification required under this ordinance shall state that, based on information and belief formed after reasonable inquiry, the statements and information in the document are true, accurate, and complete.

(e) Transition plan. It is required that:

(1) Submittal of permit applications by all Part 70 sources shall occur within one (1) year after the date of approval of the permit program by the Administrator.

(2) Final action shall be taken on at least one-third (1/3) of such applications each year over a period not to exceed three (3) years after the date of approval of the permit program by the Administrator. Complete permit applications shall be processed in the order received with the first third of the Part 70 permits issued within one (1) year after the applications are submitted to the first third received; the second third within two (2) years after the applications are submitted to remaining sources as determined by a random lottery; and the third issued within three (3) years after the applications are submitted to the remaining sources. Initial issuance of Part 70 permits may be for three (3), four (4) or five (5) year permit terms at the discretion of the director.

(3) Any complete permit application containing an early reduction demonstration under section 112(i)(5) of the Act [42 U.S.C. § 7412] shall be acted on within 9 months of receipt of the complete application; and

(4) Submittal of permit applications and the permitting of affected sources shall occur in accordance with the deadlines in Title IV of the Act and set forth at Section 4-56(a)(1)(iv) of this ordinance and the applicable requirements promulgated under Title IV of the Act and incorporated by reference in this ordinance at Section 4-52(d).

(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10297, § 4, 10-3-95; Ord. No. 10378, §§ 1—6, 2-20-96; Ord. No. 10786, § 54, 10-27-98; Ord. No. 12054, § 31, 12-11-07; Ord. No. 13998, §§ 91—97, 6-27-23)

Sec. 4-57. Permit content.

The permitting authority shall issue and enforce permits in this municipality which conform with these provisions and shall require compliance therewith:

(a) *Standard permit requirements.* Each permit issued under this part shall include the following elements:

(1) Emission limitations and standards, including those operational requirements and limitations that assure compliance with all applicable requirements at the time of permit issuance and all requirements of 40 CFR Part 70 that apply to the emissions units and to the source.

(i) The permit shall specify and reference the origin of and authority for each term or condition, and identify any difference in form as compared to the applicable requirement upon which the term or condition is based.

(ii) The permit shall state that, where an applicable requirement of the Act is more stringent than an applicable requirement of regulations promulgated under Title IV of the Act and incorporated by reference in this ordinance at Section 4-52(d), both provisions shall be incorporated into the permit and shall be legally enforceable.

(iii) Because the Chattanooga Air Pollution Control Ordinance allows a determination of an alternative emission limit at a source, equivalent to that contained in Section 4-41 of the Chattanooga Air Pollution Control Ordinance, to be made in the permit issuance, renewal, or significant modification process, if the permitting authority elects to use such process, any permit containing such equivalency determination shall contain provisions to ensure that any resulting emissions limit has been demonstrated to be quantifiable, accountable, enforceable, and based on replicable procedures.

(2) *Permit duration.* The permitting authority shall issue permits for a fixed term of five (5) years in the case of affected sources, and for a term not to exceed five (5) years in the case of all other Part 70 sources. Notwithstanding this requirement, the permitting authority shall issue permits for solid waste incineration units combusting municipal waste subject to standards under section 129(e) of the Act [42 U.S.C. § 7429(e)] for a period not to exceed twelve (12) years and shall review such permits at least every five (5) years. Any permit issued for a term of more than three (3) years shall contain a condition that if EPA promulgates regulations or requirements which would be applicable to the source or any emissions unit of the source, then the permit will be reopened by agreement and the applicable requirement incorporated into the permit. Acceptance of the permit by the source constitutes consent to the agreement.

(3) *Monitoring and related recordkeeping and reporting requirements.*

(i) Each permit shall contain the following requirements with respect to monitoring:

(A) All monitoring and analysis procedures or test methods required under applicable monitoring and testing requirements, including 40 CFR Part 64, which has been incorporated by reference in Chapter 4, and any other procedures and methods promulgated pursuant to sections 504(b) [42 U.S.C. § 7661c.(b)] or 114(a)(3) [42 U.S.C. § 7414(a)(3)] of the Act provided that these methods and procedures have been identified in this ordinance by amendment subsequent to the action of the Administrator. If more than one (1) monitoring or testing requirement applies, the permit may specify a streamlined set of monitoring or testing provisions provided the specified monitoring or testing is adequate to assure compliance at least to the same extent as the monitoring or testing applicable requirements that are not included in the permit as a result of such streamlining;

(B) Where the applicable requirement does not require periodic testing or instrumental or noninstrumental monitoring (which may consist of recordkeeping designed to serve as monitoring), periodic monitoring sufficient to yield reliable data from the relevant time period that are representative of the source's compliance with the permit, as reported pursuant to paragraph (a)(3)(iii) of this section. Such monitoring requirements shall assure use of terms, test methods, units, averaging periods, and other statistical conventions consistent with the applicable requirement. The permitting authority shall determine whether and in what cases recordkeeping provisions are sufficient to meet the requirements of this paragraph (a)(3)(i)(B); and

(C) As necessary, requirements concerning the use, maintenance, and, where appropriate, installation of monitoring equipment or methods.

(ii) With respect to recordkeeping, the permit shall incorporate all applicable recordkeeping requirements and require, where applicable, the following:

(A) Records of required monitoring information that include the following:

(1) The date, place as defined in the permit, and time of sampling or measurements;

(2) The date(s) analyses were performed;

(3) The company or entity that performed the analyses;

(4) The analytical techniques or methods used;

(5) The results of such analyses; and

(6) The operating conditions as existing at the time of sampling or measurement;

(B) Retention of records of all required monitoring data and support information for a period of at least five (5) years from the date of the monitoring sample, measurement, report, or application. Support information includes all calibration and maintenance records and all original strip-chart recordings for continuous monitoring instrumentation, and copies of all reports required by the permit.

(iii) With respect to reporting, the permit shall incorporate all applicable reporting requirements and require the following:

(A) Submittal of reports of any required monitoring at least every six (6) months. All instances of deviations from permit requirements must be clearly identified in such reports. All required reports must be certified by a responsible official consistent with Section 4-56(d) of this ordinance.

(B) Prompt reporting of deviations from permit requirements, including those attributable to upset conditions as defined in the permit, the probable cause of such deviations, and any corrective actions or preventive measures taken. The permitting authority shall define "prompt" in the permit in relation to the degree and type of deviation likely to occur and the applicable requirements.

(4) A permit condition prohibiting emissions exceeding any allowances that the source lawfully holds under Title IV of the Act or the regulations promulgated thereunder and incorporated by reference in this ordinance at Section 4-52(d).

(i) No permit revision shall be required for increases in emissions that are authorized by allowances acquired pursuant to the acid rain program, provided that such increases do not require a permit revision under any other applicable requirement.

(ii) No limit shall be placed on the number of allowances held by the source. The source may not, however, use allowances as a defense to noncompliance with any other applicable requirement.

(iii) Any such allowance shall be accounted for according to the procedures established in regulations promulgated under Title IV of the Act and incorporated by reference in this ordinance at Section 4-52(d).

(5) A severability clause to ensure the continued validity of the various permit requirements in the event of a challenge to any portions of the permit.

(6) Provisions stating the following:

(i) The permittee must comply with all conditions of the Part 70 permit. Any permit noncompliance constitutes a violation of both the ordinance and the federal Act and is grounds for joint or several enforcement action; for permit termination, revocation and reissuance, or modification; or for denial of a permit renewal application.

(ii) It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit.

(iii) The permit may be modified, revoked, reopened, and reissued, or terminated for cause. The filing of a request by the permittee for a permit modification, revocation and reissuance, or termination, or of a notification of planned changes or anticipated noncompliance does not stay any permit condition.

(iv) The permit does not convey any property rights of any sort, or any exclusive privilege.

(v) The permittee shall furnish to the permitting authority, within a reasonable time, any information that the permitting authority may request in writing to determine whether cause exists for modifying, revoking and reissuing, or terminating the permit or to determine compliance with the permit. Upon request, the permittee shall also furnish to the permitting authority copies of records required to be kept by the permit or, for information claimed to be confidential, the permittee may furnish such records directly to the Administrator along with a claim of confidentiality.

(7) A provision to ensure that a Part 70 source pays fees to the permitting authority consistent with the fee schedule approved pursuant to 40 CFR § 70.9 and set forth in Section 4-60 of this ordinance.

(8) *Emissions trading.* A provision stating that no permit revision shall be required, under any economic incentives, marketable permits, emissions trading and other similar programs or processes which have been approved by the permitting authority for changes that are provided for in the permit, but only when and where emissions trading is allowable and has been approved.

(9) Terms and conditions for reasonably anticipated operating scenarios identified by the source in its application as approved by the permitting authority. Such terms and conditions:

(i) Shall require the source, contemporaneously with making a change from one (1) operating scenario to another, to record in a log at the permitted facility a record of the scenario under which it is operating;

(ii) May extend the permit shield described in paragraph (f) of this section to all terms and conditions under each such operating scenario; and

(iii) Must ensure that the terms and conditions of each such alternative scenario meet all applicable requirements and all the requirements of this ordinance.

(10) Terms and conditions, if the permit applicant requests them, for the trading of emissions increases and decreases in the permitted facility, to the extent that the applicable requirements set forth in Section 4-53 of this ordinance provide for trading such increases and decreases without a case-by-case approval of each emissions trade. Such terms and conditions:

(i) Shall include all terms required under Sections 4-57(a) and (c) of this ordinance to determine compliance;

(ii) May extend the permit shield described in paragraph (f) of this section to all terms and conditions that allow such increases and decreases in emissions; and

(iii) Must meet all applicable requirements and requirements of this ordinance.

(b) *Federally-enforceable requirements.*

(1) All terms and conditions in a Part 70 permit, including any provisions designed to limit a source's potential to emit, are enforceable by the Administrator and citizens under the Act.

(2) Notwithstanding paragraph (b)(1) of this section, the permitting authority shall specifically designate as not being federally enforceable under the Act any terms and conditions included in the permit that are not required under the Act or under any of its applicable requirements.

(c) *Compliance requirements.* All Part 70 permits shall contain the following elements with respect to compliance:

(1) Consistent with paragraph (a)(3) of this section, compliance certification, testing, monitoring, reporting, and recordkeeping requirements sufficient to assure compliance with the terms and conditions of the permit. Any document (including reports) required by a Part 70 permit shall contain a certification by a responsible official that meets the requirements of Section 4-56(d) of this ordinance.

(2) Inspection and entry requirements that require that, upon presentation of credentials and other documents as may be required by law, the permittee shall allow the permitting authority or an authorized representative to perform the following:

(i) Enter upon the permittee's premises where a Part 70 source is located or emissions-related activity is conducted, or where records must be kept under the conditions of the permit;

(ii) Have access to and copy, at reasonable times, any records that must be kept under the conditions of the permit;

(iii) Inspect at reasonable times any facilities, equipment (including monitoring and air pollution control equipment), practices, or operations regulated or required under the permit; and

(iv) As authorized by the Act or by this ordinance, sample or monitor at reasonable times substances or parameters for the purpose of assuring compliance with the permit or applicable requirements.

(v) For purposes of (ii), (iii), and (iv) above, reasonable times shall be considered to be customary business hours, unless reasonable cause exists to suspect noncompliance with the Chattanooga Air Pollution Control Ordinance or any "Applicable requirement," as defined in Section 4-53 of this ordinance or with any permit issued by the permitting authority and the director specifically authorizes a designee to inspect a facility at any other time.

(3) A schedule of compliance consistent with Section 4-56(c)(8) of this ordinance.

(4) Progress reports consistent with an applicable schedule of compliance and Section 4-56(c)(8) of this ordinance to be submitted at least semiannually, or at a more frequent period if specified in the applicable requirement or by the permitting authority. Such progress reports shall contain the following:

(i) Dates for achieving the activities, milestones, or compliance required in the schedule of compliance, and dates when such activities, milestones or compliance were achieved; and

(ii) An explanation of why any dates in the schedule of compliance were not or will not be met, and any preventive or corrective measures adopted.

(5) Requirements for compliance certification with terms and conditions contained in the permit, including emission limitations, standards, or work practices. Permits shall include each of the following:

(i) The frequency (not less than annually or such more frequent periods as specified in the applicable requirement or by the permitting authority) of submissions of compliance certifications;

(ii) In accordance with Section 4-57(a)(3) of this ordinance, a means for monitoring the compliance of the source with its emissions limitations, standards, and work practices;

(iii) A requirement that the compliance certification include all of the following (provided that the identification of applicable information may cross-reference the permit or previous reports, as applicable):

(A) The identification of each term or condition of the permit that is the basis of the certification;

(B) The identification of the method(s) or other means used by the owner or operator for determining the compliance status with each term and condition during the certification period, and whether such methods or other means provide continuous or intermittent data. Such methods and other means shall include, at a minimum, the methods and means required under Section 4-57(a)(3). If necessary, the owner or operator shall also identify any other material information that must be included in the certification to comply with Section 113(c)(2) of the Act, which prohibits knowingly making a false certification or omitting material information;

(C) The status of compliance with the terms and conditions of the permit for the period covered by the certification, based on the method or means designated in Section 4-57(c)(5)(iii)(B). The certification shall identify each deviation and take it into account in the compliance certification. The certification shall also identify as possible exceptions to compliance any periods during which compliance is required and in which an excursion or exceedance as defined under Title 40 CFR Part 64 occurred; and

(D) Such other facts as the permitting authority may require to determine the compliance status of the source.

(iv) A requirement that all compliance certifications be submitted to the Administrator as well as to the permitting authority; and

(v) Such additional requirements as may be required under sections 114(a)(3) and 504(b) of the Act [42 U.S.C. § 7661c.(b) and § 7414(a)(3)].

(6) Such other provisions as the permitting authority may require.

(d) *Part 70 general permits.*

(1) The permitting authority may, after notice and opportunity for public participation provided under Section 4-58(h) of this ordinance, issue a general permit covering numerous similar sources. Any such general permit shall comply with all requirements applicable to other Part 70 permits and shall identify criteria by which sources may qualify for the Part 70 general permit. To sources that qualify, the permitting authority shall grant the conditions and terms of the Part 70 general permit. Notwithstanding the shield provisions of paragraph (f) of this section, the source shall be subject to enforcement action for operation without a Part 70 permit if the source is later determined not to qualify for the conditions and terms of the Part 70 general permit. Part 70 general permits shall not be authorized for affected sources under the acid rain program unless otherwise provided in regulations promulgated under Title IV of the Act which are incorporated by reference in Section 4-52(d) of this ordinance nor for non-Part 70 sources.

(2) Part 70 sources that would qualify for a general permit must apply to the permitting authority for coverage under the terms of the general permit or must apply for a Part 70 permit consistent with Section 4-56 of this ordinance. The permitting authority may, in the

general permit, provide for applications which deviate from the requirements of Section 4-56 of this ordinance, provided that such applications meet the requirements of Title V of the Act, and include all information necessary to determine qualification for, and to assure compliance with, the general permit. Without repeating the public participation procedures required under Section 4-58(h) of this ordinance, the permitting authority may grant a source's request for authorization to operate under a general permit, but such a grant shall not be a final permit action for purposes of judicial review.

(e) *Temporary sources.* The permitting authority may issue a single permit authorizing emissions from similar operations by the same source owner or operator at multiple temporary locations. The operation must be temporary and involve at least one (1) change of location during the term of the permit. No affected source shall be permitted as a temporary source. Permits for temporary sources shall include the following:

(1) Conditions that will assure compliance with all applicable requirements at all authorized locations;

(2) Requirements that the owner or operator notify the permitting authority at least ten (10) days in advance of each change in location; and

(3) Conditions that assure compliance with all other provisions of this section.

(f) *Permit shield.*

(1) Except as provided in this ordinance, the permitting authority shall, upon request by the responsible official who submits an application, expressly include in a Part 70 permit a provision stating that compliance with the conditions of the permit shall be deemed compliance with any applicable requirements as of the date of permit issuance, provided that:

(i) Such applicable requirements are included and are specifically identified in the permit; or

(ii) The permitting authority, in acting on the permit application or revision, determines in writing that other requirements specifically identified are not applicable to the source, and the permit includes the determination or a concise summary thereof.

(2) A Part 70 permit that does not expressly state that a permit shield exists shall be presumed not to provide such a shield.

(3) Nothing in this paragraph or in any Part 70 permit shall alter or affect the following:

(i) The provisions of section 303 of the Act [42 U.S.C. § 7603] (emergency orders), including the authority of the Administrator or the permitting authority under that section;

(ii) The liability of an owner or operator of a source for any violation of applicable requirements prior to or at the time of permit issuance;

(iii) The applicable requirements of the acid rain program, consistent with section 408(a) of the Act [42 U.S.C. § 7651g.(a)]; or

(iv) The ability of EPA to obtain information from a source pursuant to section 114 of the Act [42 U.S.C. § 7414] or of the permitting authority to obtain information from a source pursuant to this ordinance.

(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10786, §§ 55, 56, 60, 10-27-98; Ord. No. 12054, § 32, 12-11-07; Ord. No. 14165, § 21, 10-29-24)

Sec. 4-58. Permit issuance, renewal, reopenings, and revisions.

(a) *Action on application.*

(1) A permit, permit modification, or renewal may be issued only if all of the following conditions have been met:

(i) The permitting authority has received a complete application for a permit, permit modification, or permit renewal, except that a complete application need not be received before issuance of a general permit under Section 4-57(d) of this ordinance;

(ii) Except for modifications qualifying for minor permit modification procedures under Section 4-58(e)(1) and (2) of this ordinance, the permitting authority has complied with the requirements for public participation under paragraph (h) of this section 4-58;

(iii) The permitting authority has complied with the requirements for notifying and responding to affected States under Section 4-59(b) of this ordinance;

(iv) The conditions of the permit provide for compliance with all applicable requirements and the requirements of this ordinance; and

(v) The Administrator has received a copy of the proposed permit and any notices required under 40 CFR §§ 70.8(a) and 70.8(b), and has not objected to issuance of the permit under 40 CFR § 70.8(c) within the time period specified therein.

(vi) No permit for a solid waste incineration unit may be issued by an agency, instrumentality or person that is also responsible, in whole or in part, for the design and construction or operation of the unit.

(2) Except as provided under the initial transition plan provided for under Section 4-56(e) of this ordinance or under Title IV or Title V of the Act for the permitting of affected sources under the acid rain program, the permitting authority takes final action on each permit application (including a request for permit modification or renewal) within eighteen (18) months, or such lesser time established by the permitting authority, after receiving a complete application.

(3) Priority shall be given to taking action on applications for construction or modification under Title I, parts C and D of the Act.

(4) The permitting authority shall promptly provide notice to the applicant of whether the application is complete. Unless the permitting authority requests additional information or otherwise notifies the applicant of incompleteness within sixty (60) days of receipt of an application, the application shall be deemed complete. For modifications processed through minor permit modification procedures, such as those in paragraphs (e)(1) and (2) of this section, a completeness determination is not required.

(5) The permitting authority shall provide a statement that sets forth the legal and factual basis for the draft permit conditions (including references to the applicable statutory or regulatory provisions). The permitting authority shall send this statement to EPA and to any other person who requests it.

(6) The submittal of a complete application shall not affect the requirement that any source or emissions unit at a Part 70 source have a preconstruction permit under Title I of the Act.

(b) *Requirement for a permit.* Except as provided in the following sentence, Section 4-58(i)(1) of this ordinance, and paragraphs Section 4-58(e)(1)(v) and (2)(v) of this ordinance, no Part 70 source may operate after the time that it is required to submit a timely and complete application under this ordinance after its approval by EPA, except in compliance with a permit issued under a Part 70 program. If a Part 70 source submits a timely and complete application for permit issuance (including for renewal), the source's failure to have a Part 70 permit is not a violation of this ordinance until the permitting authority takes final

action on the permit application, except as noted in this section. This protection shall cease to apply if, subsequent to the completeness determination made pursuant to paragraph (a)(4) of this section, and as required by Section 4-56(a)(2) of this ordinance, the applicant fails to submit by the deadline specified in writing by the permitting authority any additional information identified as being needed to process the application.

(c) *Permit renewal and expiration.*

(1) (i) Permits being renewed are subject to the same procedural requirements, including those for public participation, affected State and EPA review, that apply to initial permit issuance; and

(ii) Permit expiration terminates the source's right to operate unless a timely and complete renewal application has been submitted consistent with paragraph (b) of this section and Section 4-56(a)(1)(iii) of this ordinance.

(2) If the permitting authority fails to act in a timely way on a permit renewal, EPA may override the permitting authority to terminate or revoke and reissue the permit.

(3) If a timely and complete application for a permit renewal is submitted, consistent with Section 4-56(a)(2) of this ordinance, but the permitting authority has failed to issue or deny the renewal permit before the end of the term of the previous permit, then:

(i) The permit shall not expire until the renewal permit has been issued or denied and any permit shield that may be granted pursuant to Section 4-57(f) of this ordinance may extend beyond the original permit term until renewal; or

(ii) All the terms and conditions of the permit including any permit shield that may have been granted under this ordinance or pursuant to Section 4-57(f) of this ordinance shall remain in effect until the renewal permit has been issued or denied.

(4) Consistent with the requirements of this ordinance and 40 CFR Part 70, the permitting authority is authorized to terminate, modify, or revoke and reissue permits for cause.

(5) The permitting authority shall make available to the public for inspection any permit application, compliance plan, permit, and monitoring and compliance certification report pursuant to section 503(e) of the Act [42 U.S.C. § 7661b.(e)], except for information entitled to confidential treatment pursuant to section 114(c) of the Act [42 U.S.C. § 7414]. The contents of a Part 70 permit shall not be entitled to protection under section 114(c) of the Act [42 U.S.C. § 7414].

(d) *Administrative permit amendments.*

(1) An "administrative permit amendment" is a permit revision that:

(i) Corrects typographical errors;

(ii) Identifies a change in the name, address, or phone number of any person identified in the permit, or provides a similar minor administrative change at the source;

(iii) Requires more frequent monitoring or reporting by the permittee;

(iv) Allows for a change in ownership or operational control of a source where the permitting authority determines that no other change in the permit is necessary, provided that a written agreement containing a specific date for transfer of permit responsibility, coverage, and liability between the current and new permittee has been submitted to the permitting authority;

(v) Incorporates into the Part 70 permit the requirements from preconstruction review permits authorized under an EPA-approved program, provided that such a program meets procedural requirements substantially equivalent to the requirements of Section 4-58 and Section 4-59

of this ordinance that would be applicable to the change if it were subject to review as a permit modification, and compliance requirements substantially equivalent to those contained in Section 4-57 of this ordinance; or

(vi) Incorporates any other type of change which the Administrator has determined as part of the approved Part 70 program to be similar to those in paragraphs (d)(1)(i) through (iv) of this section provided that such "other type of change" has been identified in this ordinance by amendment subsequent to the action of the Administrator.

(2) Administrative permit amendments for purposes of the acid rain portion of the permit shall be governed by regulations promulgated under Title IV of the Act which are incorporated by reference in this ordinance at Section 4-52(d).

(3) Administrative permit amendment procedures. An administrative permit amendment may be made by the permitting authority consistent with the following:

(i) The permitting authority shall take no more than sixty (60) days from receipt of a request for an administrative permit amendment to take final action on such request, and may incorporate such changes without providing notice to the public or affected States provided that it designates any such permit revisions as having been made pursuant to this section of this ordinance.

(ii) The permitting authority shall submit a copy of the revised permit to the Administrator.

(iii) The source may implement the changes addressed in the request for an administrative amendment immediately upon submittal of the request.

(4) The permitting authority may, upon taking final action granting a request for an administrative permit amendment, allow coverage by the permit shield in Section 4-57(f) of this ordinance for administrative permit amendments made pursuant to paragraph (d)(1)(v) of this section which meet the relevant requirements of Sections 4-57, 4-58, and 4-59 of this ordinance for significant permit modifications.

(e) *Permit modification.* A permit modification is any revision to a Part 70 permit that cannot be accomplished under the program's provisions for administrative permit amendments under paragraph (d) of this section. A permit modification for purposes of the acid rain portion of the permit shall be governed by regulations promulgated under Title IV of the Act which are incorporated by reference in this ordinance at Section 4-52(d).

(1) *Minor permit modification procedures.*

(i) *Criteria.*

(A) Minor permit modification procedures may be used only for those permit modifications that:

(1) Do not violate any applicable requirement;

(2) Do not involve significant changes to existing monitoring, reporting, or recordkeeping requirements in the permit;

(3) Do not require or change a case-by-case determination of an emission limitation or other standard, or a source-specific determination for temporary sources of ambient impacts, or a visibility or increment analysis;

(4) Do not seek to establish or change a permit term or condition for which there is no corresponding underlying applicable requirement and that the source has assumed to avoid an applicable requirement to which the source would otherwise be subject. Such terms and conditions include:

(A) A federally enforceable emissions cap assumed to avoid classification as a modification under any provision of Title I of the Act; and

(B) An alternative emissions limit approved pursuant to regulations promulgated under section 112(i)(5) of the Act [42 U.S.C. § 7412(i)(5)];

(5) Are not modifications under any provision of Title I of the Act; and

(6) Are not required by this ordinance to be processed as a significant modification.

(B) Notwithstanding paragraphs (e)(1)(i)(A) and (e)(2)(i) of this section, minor permit modification procedures may be used for permit modifications involving the use of economic incentives, marketable permits, emissions trading, and other similar approaches, to the extent that such minor permit modification procedures are explicitly provided for in an applicable implementation plan or in applicable requirements promulgated by EPA.

(ii) *Application.* An application requesting the use of minor permit modification procedures shall meet the requirements of Section 4-56(c) of this ordinance and shall include the following:

(A) A description of the change, the emissions resulting from the change, and any new applicable requirements that will apply if the change occurs;

(B) The source's suggested draft permit;

(C) Certification by a responsible official, consistent with Section 4-56(d) of this ordinance, that the proposed modification meets the criteria for use of minor permit modification procedures and a request that such procedures be used; and

(D) Completed forms for the permitting authority to use to notify the Administrator and affected States as required under 40 CFR § 70.8.

(iii) *EPA and affected State notification.* Within 5 working days of receipt of a complete permit modification application, the permitting authority shall meet its obligation under Section 4-59(a)(1) and (b)(1) of this ordinance to notify the Administrator and affected States of the requested permit modification. The permitting authority promptly shall send any notice required under Section 4-59(b)(2) of this ordinance to the Administrator.

(iv) *Timetable for issuance.* The permitting authority may not issue a final Part 70 permit modification until after EPA's forty-five (45) day review period or until EPA has notified the permitting authority that EPA will not object to issuance of the permit modification, whichever is first, although the permitting authority can approve the permit modification prior to that time. In the event of an objection by the Administrator, the director shall follow the procedures set forth at Section 4-59(c) of this ordinance. Within ninety (90) days of the permitting authority's receipt of an application under minor permit modification procedures or fifteen (15) days after the end of the Administrator's forty-five (45) day review period under Section 4-59(c) of this ordinance, whichever is later, the permitting authority shall:

(A) Issue the permit modification as proposed;

(B) Deny the permit modification application;

(C) Determine that the requested modification does not meet the minor permit modification criteria and should be reviewed under the significant modification procedures; or

(D) Revise the draft permit modification and transmit to the Administrator the new proposed permit modification as required by 40 CFR § 70.8(a).

(v) *Source's ability to make change.* The source is allowed to make the change proposed in its minor permit modification application immediately after it files such application. After the source makes the change allowed by the preceding sentence, and until the permitting authority takes any of the actions specified in paragraphs (e)(1)(iv)(A) through (C) of this section, the source must comply with both the applicable requirements governing the change and the proposed permit terms and conditions. During this time period, the source need not comply with the existing permit terms and conditions it seeks to modify. However, if the source fails to comply with its proposed permit terms and conditions during this time period, the existing permit terms and conditions it seeks to modify may be enforced against it.

(vi) *Permit shield.* The permit shield under Section 4-57(f) of this ordinance may not extend to minor permit modifications.

(2) *Group processing of minor permit modifications.* Consistent with this paragraph, the permitting authority may modify the procedure outlined in paragraph (e)(1) of this section to process groups of a source's applications for certain modifications eligible for minor permit modification processing.

(i) *Criteria.* Group processing of modifications may be used only for those permit modifications:

(A) That meet the criteria for minor permit modification procedures under paragraph (e)(1)(i)(A) of this section; and

(B) That collectively are below the threshold level approved by the Administrator as part of the approved program. This threshold shall be ten percent (10%) of the emissions allowed by the permit for the emissions unit for which the change is requested, twenty percent (20%) of the applicable definition of major source in Section 4-53 of this ordinance, or five (5) tons per year, whichever is least.

(ii) *Application.* An application requesting the use of group processing procedures shall meet the requirements of Section 4-56(c) of this ordinance and shall include the following:

(A) A description of the change, the emissions resulting from the change, and any new applicable requirements that will apply if the change occurs.

(B) The source's suggested draft permit.

(C) Certification by a responsible official, consistent with Section 4-56(d) of this ordinance, that the proposed modification meets the criteria for use of group processing procedures and a request that such procedures be used.

(D) A list of the source's other pending applications awaiting group processing, and a determination of whether the requested modification, aggregated with these other applications, equals or exceeds the threshold set under paragraph (e)(2)(i)(B) of this section.

(E) Certification, consistent with Section 4-56(d) of this ordinance, that the source has notified EPA of the proposed modification. Such notification need only contain a brief description of the requested modification.

(F) Completed forms for the permitting authority to use to notify the Administrator and affected States as required under Section 4-59 of this ordinance.

(iii) *EPA and affected State notification.* On a quarterly basis or within five (5) business days of receipt of an application demonstrating that the aggregate of a source's pending applications

equals or exceeds the threshold level set under paragraph (e)(2)(i)(B) of this section, whichever is earlier, the permitting authority promptly shall meet its obligation under Section 4-59(a)(1) and (b)(1) of this ordinance to notify the Administrator and affected States of the requested permit modifications. The permitting authority shall send any notice required under Section 4-59(b)(2) of this ordinance to the Administrator.

(iv) *Timetable for issuance.* The provisions of paragraph (e)(1)(iv) of this section shall apply to modifications eligible for group processing, except that the permitting authority shall take one (1) of the actions specified in paragraphs (e)(1)(iv)(A) through (D) of this section within one hundred eighty (180) days of receipt of the application or fifteen (15) days after the end of the Administrator's forty-five (45) day review period under Section 4-59(c) of this ordinance, whichever is later.

(v) *Source's ability to make change.* The provisions of paragraph (e)(1)(v) of this section shall apply to modifications eligible for group processing.

(vi) *Permit shield.* The provisions of paragraph (e)(1)(vi) of this section shall also apply to modifications eligible for group processing.

(3) *Significant modification procedures.*

(i) *Criteria.* Significant modification procedures shall be used for applications requesting permit modifications that do not qualify as minor permit modifications or as administrative amendments. The permitting authority shall follow these criteria in determining whether a change is significant: Any change in existing monitoring permit terms or conditions and every relaxation of reporting or recordkeeping permit terms or conditions shall be considered significant. Nothing herein shall be construed to preclude the permittee from making changes consistent with this part that would render existing permit compliance terms and conditions irrelevant.

(ii) Significant permit modifications shall meet all requirements of this ordinance, including those for applications, public participation, review by affected States, and review by EPA, as they apply to permit issuance and permit renewal. The permitting authority shall design and implement this review process to complete review on the majority of significant permit modifications within nine (9) months after receipt of a complete application.

(f) *Reopening for cause.*

(1) Each issued permit shall include provisions specifying the conditions under which the permit will be reopened prior to the expiration of the permit. A permit shall be reopened and revised under any of the following circumstances:

(i) Additional applicable requirements under the Act become applicable by ordinance amendment to a major Part 70 source with a remaining permit term of three (3) or more years. Such a reopening shall be completed not later than eighteen (18) months after promulgation of the applicable requirement. No such reopening is required if the effective date of the requirement is later than the date on which the permit is due to expire, unless the original permit or any of its terms and conditions has been extended pursuant to Section 4-58(c)(3) of this ordinance.

(ii) Additional requirements (including excess emissions requirements) become applicable to an affected source under the acid rain program. Upon approval by the Administrator and amendment of this ordinance, excess emissions offset plans shall be incorporated into the permit by the permitting authority.

(iii) The permitting authority or EPA determines that the permit contains a material mistake or that inaccurate statements were made in establishing the emissions standards or other terms or conditions of the permit.

(iv) The Administrator or the permitting authority determines that the permit must be revised or revoked to assure compliance with the applicable requirements.

(2) Proceedings to reopen and issue a permit shall follow the same procedures as apply to initial permit issuance and shall affect only those parts of the permit for which cause to reopen exists. Such reopening shall be made as expeditiously as practicable.

(3) Reopenings under paragraph (f)(1) of this section shall not be initiated before a notice of such intent is provided to the Part 70 source by the permitting authority at least thirty (30) days in advance of the date that the permit is to be reopened, except that the permitting authority may provide a shorter time period in the case of an emergency.

(g) *Reopenings for cause by EPA.*

(1) If the Administrator finds that cause exists to terminate, modify, or revoke and reissue a permit pursuant to paragraph (f) of this section, the Administrator is required by federal law to notify the permitting authority and the permittee of such finding in writing.

(2) The permitting authority shall, within ninety (90) days after receipt of such notification, forward to EPA a proposed determination of termination, modification, or revocation and reissuance, as appropriate. The Administrator may extend this ninety (90) day period for an additional ninety (90) days if he finds that a new or revised permit application is necessary or that the permitting authority must require the permittee to submit additional information.

(3) The Administrator is required by federal regulations to review the proposed determination from the permitting authority within ninety (90) days of receipt.

(4) The permitting authority shall have ninety (90) days from receipt of an EPA objection to follow the procedures set forth at Section 4-59(c) of this ordinance in an effort to resolve any objection that EPA makes.

(5) If the permitting authority fails to submit a proposed determination pursuant to paragraph (g)(2) of this section or fails to resolve any objection pursuant to paragraph (g)(4) of this section, the Administrator is required by federal law to exercise override authority and to terminate, modify, or revoke and reissue the permit after taking the following actions:

(i) Providing at least thirty (30) days' notice to the permittee in writing of the reasons for any such action. This notice may be given during the procedures in paragraphs (g)(1) through (4) of this section.

(ii) Providing the permittee an opportunity for comment on the Administrator's proposed action and an opportunity for a hearing.

(h) *Public participation.* Except for modifications qualifying for minor permit modification procedures, all permit proceedings, including initial permit issuance, significant modifications, and renewals, shall provide adequate procedures for public notice including offering an opportunity for public comment and a hearing on the draft permit. These procedures include the following:

(1) Notice shall be given: by publication as an electronic notice (e-notice) on the Bureau website, along with a copy of the draft permit, for the duration of the public comment period; to persons on a mailing list developed by the Bureau, including those who request in writing to be on the list; and by other means designated by the Director, if necessary, to assure adequate notice to the affected public;

(2) The notice shall identify the affected facility; the name and address of the permittee; the name and address of the permitting authority processing the permit; the activity or activities involved in the permit action; the emissions change involved in any permit modification; the name, address, and telephone number of a person from whom interested persons may obtain additional information, including copies of the permit draft, the application, all relevant supporting materials, including the compliance plan, and monitoring and compliance certification report pursuant to section 503(e) of the Act, except for information entitled to confidential treatment pursuant to Section 114(c) of the Act [the contents of a Part 70 permit shall not be entitled to confidential treatment under section 114(c) of the Act.], and all other materials available to the permitting authority that are relevant to the permit decision; a brief description of the comment procedures required by this part; and the time and place of any hearing that may be held, including a statement of procedures to request a hearing (unless a hearing has already been scheduled);

(3) The permitting authority shall provide such notice and opportunity for participation by affected States as is provided for by Section 4-59 of this ordinance;

(4) *Timing.* The permitting authority shall provide at least thirty (30) days for public comment and shall give notice of any public hearing at least thirty (30) days in advance of the hearing.

(5) The permitting authority shall keep a record of the commentors and also of the issues raised during the public participation process so that the Administrator may fulfill his obligation under section 505(b)(2) of the Act [42 U.S.C. § 7661d.(b)(2)] to determine whether a citizen petition may be granted, and such records shall be available to the public. [40 CFR § 70.7]

(i) *Operational Flexibility.* Consistent with paragraphs (i)(1) through (3) of this section changes within a permitted facility are allowed without requiring a permit revision, if the changes are not modifications under any provision of Title I of the Act and the changes do not exceed the emissions allowable under the permit (whether expressed therein as a rate of emissions or in terms of total emissions): Provided that the facility provides the Administrator and the permitting authority with written notification as required below in advance of the proposed changes, which shall be a minimum of seven (7) days, unless the permitting authority provides a different time frame for emergencies. The source, permitting authority, and EPA shall attach each such notice to their copy of the relevant permit. The following provisions implement this requirement:

(1) The source shall be allowed to make section 502(b)(10) of the Act [42 U.S.C. § 7661a.(b)(10)] changes without requiring a permit revision, if the changes are not modifications under any provision of Title I of the Act and the changes do not exceed the emissions allowable under the permit (whether expressed therein as a rate of emissions or in terms of total emissions).

(i) For each such change, the written notification required above shall include a brief description of the change within the permitted facility, the date on which the change will occur, any change in emissions, and any permit term or condition that is no longer applicable as a result of the change.

(ii) The permit shield described in 40 CFR § 70.6(f) and Section 4-57(f) of this ordinance shall not apply to any change made pursuant to this paragraph 4-58(i)(1).

(2) If the applicant in possession of a certificate of alternate control (issued pursuant to section 4-13 of the Chattanooga Air Pollution Control Ordinance) for an operating permit requests them, the permitting authority shall include terms and conditions for the trading of emissions increases and decreases in the permitted source, to the extent that the applicable requirements in the certificate of alternate control provide for trading such increases and decreases without a case-by-case approval of each emissions trade.

(i) Such terms and conditions:

(A) Shall include all terms required under this ordinance and the Chattanooga Air Pollution Control Ordinance to determine compliance; and

(B) Must meet all applicable requirements in the Chattanooga Air Pollution Control Ordinance that are not altered by the certificate of alternate control.

(ii) Under this paragraph (i)(2)(ii), a seven (7) day advance written notification is required and shall include the following information: when the proposed change will occur, a description of each such change, any change in emissions, the permit requirements with which the source will comply using the emissions trading provisions of the applicable implementation plan, and the pollutants emitted subject to the emissions trade. The notice shall also refer to the provisions with which the source will comply in the applicable certificate of alternate control and that provide for the emissions trade.

(iii) The permit shield described in 40 CFR § 70.6(f) and in Section 4-57(f) of this ordinance shall not extend to any change made under this paragraph (i)(2). Compliance with the permit requirements that the source will meet using the emissions trade shall be determined only to the extent that requirements of an applicable certificate of alternate control authorize the emissions trade.

(3) The permitting authority shall, if a permit applicant requests it, issue permits that contain terms and conditions, including all terms required under Section 4-57(a) and (c) of this ordinance to determine compliance, allowing for the trading of emissions increases and decreases in the permitted facility solely for the purpose of complying with a federally-enforceable emissions cap that is established in the permit independent of otherwise applicable requirements. The permit applicant shall include in its application proposed replicable procedures and permit terms that ensure the emissions trades are quantifiable and enforceable. The permitting authority shall not be required to include in the emissions trading provisions any emissions units for which emissions are not quantifiable or for which there are no replicable procedures to enforce the emissions trades. The permit shall also require compliance with all applicable requirements.

(i) Under this paragraph (i)(3), the written notification required above shall state when the change will occur and shall describe the changes in emissions that will result and how these increases and decreases in emissions will comply with the terms and conditions of the permit.

(ii) The permit shield described in 40 CFR § 70.6(f) and Section 4-57(f) of this ordinance may extend to terms and conditions that allow such increases and decreases in emissions.

(j) *Off permit changes.* The source may make changes that are not addressed or prohibited by the permit, other than those described in paragraph (k) of this section, to be made without a permit revision, only after the source meets the requirements of (1) through (3) of this paragraph.

(1) Each such change shall meet all applicable requirements and shall not violate any existing permit term or condition.

(2) Sources must provide contemporaneous written notice to the permitting authority and EPA of each such change, except for changes that qualify as insignificant under the provisions adopted pursuant to 40 CFR § 70.5(c) or Sections 4-56(c)(11) and (c)(12) of this ordinance. Such written notice shall describe each such change, including the date, any change in emissions, pollutants emitted, and any applicable requirement that would apply as a result of the change.

(3) The change shall not qualify for the shield under 40 CFR § 70.6(f) or Section 4-57(f) of this ordinance.

(4) The permittee shall keep a record describing changes made at the source that result in emissions of a regulated air pollutant subject to an applicable requirement, but not otherwise regulated under the permit, and the emissions resulting from those changes. The records shall be retained until the changes are incorporated into subsequently issued permits.

(k) No source shall make, without a permit revision, changes that are not addressed or prohibited by the Part 70 permit, if such changes are subject to any requirements under Title IV of the Act or are modifications under any provision of Title I of the Act.

(l) *Sharing of information.* Any information obtained or used in the administration of this Part 70 program shall be available to EPA upon request without restriction and in a form specified by the Administrator, including computer-readable files to the extent practicable. If the information has been submitted to the permitting authority under a claim of confidentiality, the permitting authority may require the source to submit this information to the Administrator directly. Where the permitting authority submits information to the Administrator under a claim of confidentiality, the permitting authority shall submit that claim to EPA when providing information to EPA under this section. Any information obtained from a permitting authority or Part 70 source accompanied by a claim of confidentiality will be treated in accordance with the applicable regulations.
(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10786, § 61, 10-27-98; Ord. No. 13998, § 98, 6-27-23)

Sec. 4-59. Permit review by EPA and affected States.

(a) *Transmission of information to the Administrator.*

(1) The permitting authority shall provide to the Administrator a copy of each permit application (including any application for permit modification), each proposed permit, and each final Part 70 permit. The applicant may be required by the permitting authority to provide a copy of the permit application (including the compliance plan) directly to the Administrator. Upon agreement with the Administrator, the permitting authority may submit to the Administrator a permit application summary form and any relevant portion of the permit application and compliance plan, in place of the complete permit application and compliance plan. To the extent practicable, the preceding information shall be provided in computer-readable format compatible with EPA's national database management system.

(2) If the Administrator waives the requirements of paragraphs (a)(1) and (b)(1) of this section for any category of sources (including any class, type, or size within such category) other than major sources those requirements need not be complied with.

(3) The permitting authority shall keep for five (5) years such records and submit to the Administrator such information as the Administrator may reasonably require to ascertain whether the local program complies with the requirements of the Act or of 40 CFR Part 70.

(b) *Review by affected States.*

(1) The permitting authority shall give notice of each draft permit to any affected State on or before the time that the permitting authority provides this notice to the public under 40 CFR § 70.7(h), except to the extent 40 CFR § 70.7(e)(2) or (3) requires the timing of the notice to be different.

(2) The permitting authority, as part of the submittal of the proposed permit to the Administrator [or as soon as possible after the submittal for minor permit modification procedures allowed under 40 CFR § 70.7(e)(2) or (3)], shall notify the Administrator and any affected State in writing of any refusal by the permitting authority to accept all recommendations for the proposed permit that the affected State submitted during the public or affected State review period. The notice shall include the permitting authority's reasons for not accepting any such recommendation.

(c) *EPA objection.*

(1) If the Administrator, pursuant to Title 40 CFR 70.8(c), objects to the issuance of an operating permit for which an application must be transmitted to the U.S. EPA Administrator pursuant to Title 40 CFR 70.8(a), in writing within forty-five (35) days after receipt of the proposed operating

permit and all necessary supporting information, then the director shall not issue the operating permit and shall review the objection, including the statement of the Administrator's reasons for objection and description of the terms and conditions that the operating permit must include to respond to the objection.

(i) If the director, upon such review, agrees with the Administrator and finds that the cause for the objection requires permit revision, then the director shall revise the proposed permit to include those terms and conditions that the Administrator describes as necessary to respond to the objection.

(ii) If, however, upon such review the director does not agree with the Administrator and finds that no cause exists to include the terms and conditions suggested by the Administrator in the permit, the director shall forthwith take the following action:

(A) Offer the permittee the opportunity to voluntarily incorporate into the permit or delete from the permit the terms and conditions necessary to accommodate the concerns and resolve the objection of the Administrator. If the permittee agrees to the terms and conditions described by the Administrator, then the permit shall be issued so as to be acceptable to the Administrator, all of which shall be accomplished in a timely manner under schedules agreeable to the Administrator.

(B) If the permittee declines to voluntarily agree to adopt and incorporate into the permit the requirements necessary to accommodate the concerns of the Administrator and to resolve all objections of the Administrator pursuant to Title 40 CFR 70.8(c), then the director shall notify the permittee that the permit as issued has no federal force and effect; that it is merely a local government permit; that the permit does not qualify as a federal operating permit under Title V of the Clean Air Act Amendments of 1990 or Title 40 CFR Part 70; and that the permit, as a non-federal permit may not afford a shield to the permittee against federal civil or criminal enforcement action.

(2) Failure of the permitting authority to do any of the following also shall constitute grounds for an objection by the Administrator:

(i) Comply with paragraphs (a) or (b) of this section;

(ii) Submit to the Administrator any information necessary to review adequately the proposed permit; or

(iii) Process the permit under the procedures approved to meet Section 4-58(h) of this ordinance except for administrative permit modifications, operating changes that do not require permit revision, or minor permit modifications.

(3) Under 40 CFR 70.8 (c)(4) the Administrator has retained overriding authority to issue or deny permits in accordance with the requirements of the Federal program promulgated Title V of the Act.

(4) If the permitting authority fails, within ninety (90) days after the date of an objection under paragraph (c)(1) of this section, to revise and submit a proposed permit in response to the objection, the Administrator has the authority to issue or deny the permit in accordance with the requirements of the Federal program promulgated under Title V of the Act.

(d) *EPA objection after permit issuance.* If the permitting authority has issued a permit prior to receipt of an EPA objection under this paragraph, the Administrator retains authority to modify, terminate, or revoke such permit, and may do so consistent with the procedures in 40 CFR § 70.7. If the director agrees that the Administrator's objection is well taken, the director will issue a revised permit that satisfies EPA's

objection. If the director does not agree that the Administrator's objection is well taken, then the director shall follow the procedures hereinabove set forth at (c)(1) through (c)(3). In any case, the source will not be in violation of the requirement to have submitted a timely and complete application.

(e) *Public petitions to the Administrator.* If the Administrator does not object in writing under paragraph (c) or (d) of this section, any person may petition the Administrator within sixty (60) days after the expiration of the Administrator's forty-five (45) day review period to make such objection. Any such petition shall be based only on objections to the permit that were raised with reasonable specificity during the public comment period provided for in Section 4-58(h) of this ordinance, unless the petitioner demonstrates that it was impracticable to raise such objections within such period, or unless the grounds for such objection arose after such period. If the Administrator objects to the permit as a result of a petition filed under this paragraph, the permitting authority shall not issue the permit until EPA's objection has been resolved, except that a petition for review does not stay the effectiveness of a permit or its requirements if the permit was issued after the end of the forty-five (45) day review period and prior to an EPA objection. If the director agrees that the Administrator's objection is well taken, the director will issue a revised permit that satisfies EPA's objection. If the director does not agree that the Administrator's objection is well taken, then the director shall follow the procedures hereinabove set forth at (c)(1) through (c)(3).

(f) *Prohibition on default issuance.* Consistent with 40 CFR § 70.4(b)(3)(ix), for the purposes of Federal law and Title V of the Act, a Part 70 permit (including a permit renewal or modification) will not issue until affected States and EPA have had an opportunity to review the proposed permit as required under this section.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-60. Fee determination and certification.

(a) *Fee Requirement.* The owners or operators of Part 70 sources shall pay annual fees, or the equivalent over some other period, that are sufficient to cover the Part 70 permit program costs and any fee required by this section will be used solely for Part 70 permit program costs.

(b) *Fee schedule adequacy.*

(1) Overriding federal law requires that there be a fee schedule that results in the collection and retention of revenues sufficient to cover the Part 70 permit program costs. These costs are required to include, but are not limited to, the costs of the following activities as they relate to the Part 70 operating permit program for stationary sources:

(i) Preparing generally applicable regulations or guidance regarding the Part 70 permit program or its implementation or enforcement;

(ii) Reviewing and acting on any application for a Part 70 permit, permit revision, or permit renewal, including the development of an applicable requirement as part of the processing of a Part 70 permit, or permit revision or renewal;

(iii) General administrative costs of running the Part 70 permit program, including the supporting and tracking of permit applications, compliance certification, and related data entry;

(iv) Implementing and enforcing the terms of any Part 70 permit (not including any court costs or other costs associated with an enforcement action), including adequate resources to determine which sources are subject to the program;

(v) Emissions and ambient monitoring;

(vi) Modeling, analyses, or demonstrations;

(vii) Preparing inventories and tracking emissions; and

(viii) Providing direct and indirect support to sources under the Small Business Stationary Source Technical and Environmental Compliance Assistance Program contained in section 507 of the Act [42 U.S.C. § 7661(f)] in determining and meeting their obligations under the Act.

(2) (i) The fee schedule may be presumed to meet the requirements of paragraph (b)(1) of this section if it would result in the collection and retention of an amount not less than twenty-five dollars ($25.00) per year (as adjusted pursuant to the criteria set forth in paragraph (b)(2)(iv) of this section) times the total tons of the actual emissions of each regulated pollutant (for presumptive fee calculation) emitted from Part 70 sources.

(ii) There may be excluded from such calculation:

(A) The actual emissions of sources for which no fee is required under paragraph (b)(4) of this section;

(B) The amount of a Part 70 source's actual emissions of each regulated pollutant (for presumptive fee calculation) that the source emits in excess of four thousand (4,000) tpy;

(C) A Part 70 source's actual emissions of any regulated pollutant (for presumptive fee calculation), the emissions of which are already included in the minimum fees calculation; or

(D) The insignificant quantities of actual emissions not required in a permit application pursuant to Section 4-56(c) of this ordinance relative to approved insignificant activities.

(iii) "Actual emissions" means the actual rate of emissions in tons per year of any regulated pollutant (for presumptive fee calculation) emitted from a Part 70 source over the preceding calendar year or any other period determined by the permitting authority to be representative of normal source operation and consistent with the fee schedule approved pursuant to this section. Actual emissions shall be calculated using the unit's actual operating hours, production rates, and in-place control equipment, types of materials processed, stored, or combusted during the preceding calendar year or such other time period established by the permitting authority pursuant to the preceding sentence.

(iv) The $25 per ton per year used to calculate the presumptive minimum amount to be collected under a fee schedule, as described in paragraph (b)(2)(i) of this section, shall be increased each year by the percentage, if any, by which the Consumer Price Index for the most recent calendar year ending before the beginning of such year exceeds the Consumer Price Index for the calendar year 1989. Such calculation shall be made in accordance with the provisions of Section 4-60(e)(4) of this ordinance.

(A) The Consumer Price Index for any calendar year is the average of the Consumer Price Index for all-urban consumers published by the Department of Labor, as of the close of the twelve (12) month period ending on August 31 of each calendar year.

(B) The revision of the Consumer Price Index which is most consistent with the Consumer Price Index for the calendar year 1989 shall be used.

(3) The fee schedule herein established may include emissions fees, application fees, service-based fees or other types of fees, or any combination thereof, to meet the requirements of paragraph (b)(1) or (b)(2) of this section. Nothing in the provisions of this section shall require the permitting authority to calculate fees on any particular basis or in the same manner for all Part 70 sources, all classes or categories of Part 70 sources, or all regulated air pollutants, provided that the permitting authority collects a total amount of fees sufficient to meet the program support requirements of paragraph (b)(1) of this section. Where there is more than one allowable method of calculating the annual fee, the owner (or operator) may select the method.

(4) Notwithstanding any other provision of this section, during the years 1995 through 1999 inclusive, no fee for purposes of the Part 70 program shall be required to be paid with respect to emissions from any affected unit under section 404 of the Act.

(5) The permitting authority shall provide a detailed accounting that the fee schedule meets the requirements of paragraph (b)(1) of this section if:

(i) The fee schedule that would result in the collection and retention of an amount less than that presumed to be adequate under paragraph (b)(2) of this section; or

(ii) The Administrator determines, based on comments rebutting the presumption in paragraph (b)(2) of this section or on his/her own initiative, that there are serious questions regarding whether the fee schedule is sufficient to cover the permit program costs.

(c) *Fee demonstration.* The permitting authority shall provide a demonstration that the fee schedule selected will result in the collection and retention of fees in an amount sufficient to meet the requirements of this section.

(d) *Use of required fee revenue.* The demonstration shall contain an initial accounting (and periodic updates as required) of how required fee revenues are used solely to cover the costs of meeting the various functions of the Part 70 permitting program.

(e) The initial fee schedule is as follows:

(1) The owner or operator or the "responsible official" of a Part 70 source shall pay an annual emission fee to the Bureau based on "regulated pollutant (for presumptive fee calculation)" as those terms are defined in Section 4-53 of this chapter. The minimum annual emission fee charged to a Part 70 source will be eight thousand dollars ($8,000.00).

(2) The annual emission fee for any Part 70 source shall be based on its allowable emissions until the end of the first annual accounting period following issuance of its initial Part 70 operating permit. No later than twelve (12) months after issuance of its initial Part 70 operating permit, the owner or operator or responsible official of the Part 70 source shall notify the director in writing of its choice to base its annual emissions fee for the remainder of its initial operating permit term, as elected by the source, on either its allowable emissions or its actual emissions.

(3) The annual emissions fees described in subsection 4-60(e)(6) of this ordinance shall apply after the enactment date of this ordinance and approval by the Administrator. A source subject to this ordinance shall be required to pay the required fee prior to issuance of its Part 70 operating permit. Said fees shall be collected by the bureau and remitted to the treasurer of the City of Chattanooga as the fiscal agent of the board. (See 40 CFR 70.9(b)(2)(iii) and (iv))

(4) If the owner or operator or responsible official chooses actual emissions as its fee basis, the magnitude of the source's emissions must be proven to the satisfaction of the Director. The procedure for quantifying actual emission rates shall be specified in the operating permit. The costs of proving the actual emission rates on an annualized basis shall be borne by the Part 70 source. The required payment shall be based upon the actual emissions documentation submitted by the source and subject to correction by the Bureau after inspection of the source.

(i) Once the choice of a fee basis has been declared, it may be altered by written request to the director only during the following periods of eligibility: (1) at least one hundred eighty (180) days prior to expiration of the initial Part 70 operating permit or (2) at least one hundred eighty (180) days prior to renewal of an expiring Part 70 operating permit.

(5) The due date for Part 70 source annual emission fees is November 1st of each calendar year beginning November 1, 1995. Part 70 sources with annual emission fees in excess of fifty thousand dollars ($50,000.00) may elect to make four (4) equal payments according to the following schedule:

1st Payment November 1st

2nd Payment February 1st

3rd Payment May 1st

4th Payment August 1st

(6) The rate at which annual emission fees are assessed shall be the "Part 70 presumptive minimum fee rate" of sixty-five dollars and thirty-eight cents ($65.38) per ton as adjusted for each annual accounting period by the percentage, if any, by which the Consumer Price Index for All Urban Consumers (CPI-U) for the most recent completed twelve (12)-calendar month period of September through August exceeds the CPI-U for the twelve-(12) calendar month period of September 2024 through August 2025. This adjusted Part 70 presumptive minimum fee rate is calculated annually by the U.S. Environmental Protection Agency using the preceding criteria. The CPI-U is compiled by the Bureau of Labor Statistics of the U.S. Department of Labor.

(7) An emission cap of four thousand (4,000) tons per year per "regulated pollutant (for presumptive fee calculation)" for a Part 70 source per Part 70 source SIC code shall apply to actual or allowable-based emission fees. An emission fee will not be charged for emissions in excess of the cap(s) or for carbon monoxide.

(8) In the case where a Part 70 source is shutdown such that it has operated only during a portion of the annual accounting period and permits are forfeited to the director, the appropriate fee shall be calculated on a prorated basis over the period of time that the permits were active in the annual accounting period. A Part 70 source that is shutdown, but wishes to retain its operating permit, shall pay a maintenance fee equivalent to forty percent (40%) of the fee that would be charged had it chosen the allowable emission based annual emission fee. If the source chooses this option in the midst of an annual accounting period, the fee will be prorated according to the number of months that the source was in the maintenance fee status.

(9) Part 70 sources choosing an allowable based annual emission fee must conform to the following requirements:

(i) If the Part 70 source wishes to restructure its allowable emissions for the purposes of lowering its annual emission fees, a mutually agreed upon, more restrictive regulatory requirement may be established to reduce its allowable emissions and thus its annual emission fee. The more restrictive requirement must be specified in the permit, and must specify the method used to determine compliance with the limitation. The documentation procedure to be followed by the Part 70 source must also be included to insure that the limit is not exceeded. Restructuring the allowable emissions is permissible only at the expiration of the initial operating permit or at the renewal of an expiring operating permit, and only if a written request for restructuring is filed with the director at least one hundred twenty (120) days prior to the beginning of the annual accounting period for which the change is requested.

(ii) Beginning November 1, 1995, and each November 1st thereafter, any Part 70 source paying annual emission fees based on allowable emissions shall file an allowable emissions analysis with the director which summarizes its allowable emissions of all "regulated

pollutants (for presumptive fee calculation)" at the Part 70 source. Based upon its allowable emissions analysis, the Part 70 source shall pay a minimum annual emission fee calculated at sixty percent (60%) of the current annual emission fee rate.

(iii) Beginning November 1, 1997, and each November 1st thereafter, a Part 70 source subject to annual emission fees based on actual emissions shall file an actual emissions analysis with the director which (1) specifies the method(s) used to quantify its emissions at each emission point and as fugitive emissions and (2) which summarizes its actual emissions of all regulated pollutants.

(iv) The bureau will compile a report of all actual based and allowable based annual emission fees that it receives for the annual accounting period and reconcile the report to the bureau's operating budget for the corresponding fiscal year. If insufficient revenues were received for the budgeted direct and indirect costs of the bureau's regulatory activities pertaining to Part 70 sources, supplemental fees for the sources choosing to pay a fraction of the annual emission fee rate on an allowable tonnage basis will be required. The supplemental fees for those Part 70 sources choosing allowable emissions shall be calculated and presented to the board at its January meeting following the fiscal year under consideration. Upon board approval, supplemental fees shall be assessed against all Part 70 sources choosing allowable based annual emission fees. However, no Part 70 source shall be charged an annual emission fee based on a dollar per ton rate greater than the current emission fee for actual based emission fees. The supplemental fee assessment will be sent to the Part 70 source via certified mail and is due within thirty (30) days after receipt of the assessment. The director may extend this due date an additional ninety (90) days where the director finds that the Part 70 source owner or operator's supplemental fee notice was mailed by the bureau to an incorrect mailing address. If a Part 70 source owner or operator is aggrieved by a supplemental fee, the bureau will explain the procedures used to calculate the fee. If a dispute continues after the explanation, the matter may be appealed to the board as a contested case hearing provided that the dispute is not based upon:

(A) The quantity of "regulated pollutants (for presumptive fee calculation)" allowable emission tonnages that were reported by the Part 70 source in its allowable emissions analysis for the period in dispute and/or;

(B) The supplemental allowable emission annual emission fee rate set by the board pursuant to subection 4-60(b)(10)(iv) of this ordinance for the period in dispute.

Exceedance of a restructured allowable emission limitation shall be viewed by the board as circumvention of the required annual emission fee and a matter for which enforcement action must be pursued.

(10) A newly constructed Part 70 source, or an existing source modifying operations such that it becomes a Part 70 source in the midst of the standard November 1st through October 31st annual accounting period, shall pay allowable based annual emissions fees for the fractional remainder of the annual accounting period commencing upon start-up. At the beginning of the next annual accounting period, the Part 70 source's owner or operator or "responsible official" may choose to pay annual emission fees based on actual or allowable emissions.

(11) An additional fee of 5.0 percent of the outstanding amount, compounded monthly, shall be assessed for any Part 70 permit fee that has not been paid by thirty (30) days after the due date that is indicated on the corresponding invoice. Said fee shall be collected by the Bureau and remitted to the City of Chattanooga finance officer as fiscal agent for the Board who shall accumulate such fees in an account dedicated to the Board for air pollution control activities.

(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10297, § 5, 10-3-95; Ord. No. 10786, § 57, 10-27-98; Ord. No. 10924, § 16, 11-2-99; Ord. No. 12054, §§ 33, 34, 12-11-07; Ord. No. 13221, §§ 16, 17, 9-19-17; Ord. No. 14324, §§ 11-13, 2-17-26)

Sec. 4-61. Judicial Review—Failure to Take Final Action.

Solely for the purposes of obtaining judicial review in State court for failure to take final action, "final permit action" shall include the failure of the permitting authority to take final action on an application for a permit, permit renewal or permit revision within the time specified in this ordinance or such lesser time as may be established by the Board.

If sources are permitted to make changes subject to post hoc review under subsection 4-58(e)(1) of this ordinance the failure of the permitting authority to take final action within ninety (90) days of receipt of an application requesting minor permit modification procedures shall be deemed to be final action subject to judicial review. If a source is permitted to make changes subject to post hoc review under subsection 4-58(e)(2) of this ordinance the failure of the permitting authority to take final action within one hundred eighty (180) days of receipt of an application requesting modifications subject to group processing requirements shall be deemed to be final action subject to judicial review.

Except as provided under the initial transition plan provided for under subsection 4-56(e) of this ordinance or under Title IV of the Act, final action shall be taken on each permit within the time prescribed by, or established under, subsection 4-58(a)(2) of this ordinance.

The failure of the permitting authority to take final action within the time herein prescribed constitutes an action upon which the source (or other person with "standing") may seek a writ of mandamus (T.C.A. 29-25-101 et seq.) or a writ of certiorari (T.C.A. 27-9-101 et seq.) whichever is applicable. If a writ of mandamus is sought it shall require the permitting authority to issue or deny the permit, and shall not attempt to establish the terms, conditions, requirements or elements of the permit.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-62. Final action—Administrative and Judicial Review.

Except as provided under the initial transition plan provided for under subsection 4-56(e) of this ordinance or under Title IV of the Act final action shall be taken on each permit within the time prescribed by subsection 4-58(a)(2) of this ordinance.

The failure of the permitting authority to take action within the time hereinabove prescribed constitutes an action upon which the source (or other person with "standing") may seek a writ of mandamus (T.C.A. 29-25-101 et seq.) or writ of certiorari (T.C.A. 27-9-101 et seq.) whichever is appropriate in the circumstances of the case. If a writ of mandamus is sought it shall require the permitting authority to either issue or deny the permit, but not attempt to establish the terms or conditions of the permit.

If review of final permit action is sought on grounds of contest arising after the time prescribed by T.C.A. 27-9-101 et seq., the grounds must be brought initially to the attention of the Board by petition with a request for special hearing setting forth the time constraints. Certiorari under T.C.A. 27-9-101 et seq. will be from the action of the Board on that petition, provided that the application for certiorari under T.C.A. 27-9-101 et seq. must in any event be filed prior to the 91st day after the new grounds arose.

If the final permit action being challenged is the failure of the Board to take action, upon a petition for final permit action by the board after failure of the director to take action, the contestant may file for the appropriate writ in State Court at any time following the expiration of the time allowances hereinabove provided and before the Board denies the permit or issues the final permit.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-63. Judicial Review of Terms and Conditions of Permit.

The exclusive means for obtaining judicial review of the terms and conditions of permits shall be by certiorari under T.C.A. 27-9-101 et seq. but only after all administrative remedies have been exhausted.

In those cases where certiorari is appropriate under T.C.A. 27-9-101 et seq. the source shall, at such time as the source deems timely, petition the Board to exercise its own authority to override the Director and take appropriate final permit action so as to permit the source to meet the prescribed time constraints in obtaining judicial review. Such petition to the Board shall be filed in sufficient time to allow the Chairperson (or Vice-Chairperson, in the absence of the Chairperson) to call a special meeting of the Board and to allow the Board to hold a hearing, to deliberate and to take appropriate action within the time limits prescribed in this ordinance for final permit action.

Such administrative and judicial review on permit actions shall be available to the applicant, to any person who participated in the hearing process provided pursuant to subsection 4-58(h) of this ordinance and to any other person who, under the law of Tennessee, has "standing" to obtain judicial review of such action. The application for such judicial review is required to be prior to the 91st day following final permit action. The person seeking judicial review under this provision must exhaust administrative remedies and is required to appeal to the Board from any action of the director and in a contested case final permit action is the action of the board following a hearing, or opportunity for hearing, by the contestant or contestants. The petition for certiorari for judicial review under T.C.A. § 27-9-101 et seq. must be for review of action of the Board and not from action of the director. It must be filed within the time specified in that Statute and in no event more than ninety (90) days after the final permit action by the board.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-64. Hearings and Review.

Except as hereinabove provided all other enforcement proceedings, adjudicatory hearings, administrative review, administrative remedies, appeals to the Board, petitions to the Board and all judicial review of Board actions shall be governed and controlled by the provisions of section 4-17 and section 4-18 of the Chattanooga Air Pollution Control Ordinance of Chapter 4 of the Chattanooga City Code.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-65. Enforcement.

(a) Whenever the permitting authority has reason to believe that a violation of any provision of this ordinance has occurred, the board or director may cause written notice to be served upon the alleged violator or violators. The notice shall specify the provision of this ordinance or permit alleged to be violated and the date, time, place and general nature of the alleged violation or violations thereof and may include an order that necessary action be taken within a reasonable time. The notice provided for in this subsection may be served by the sheriff or a deputy sheriff of the county; or by a police officer of this city; or by a special police officer of this city; or by a special deputy sheriff; or may be served in any other manner prescribed for the service of a writ of summons by the statutes of the state or by the Tennessee Rules of Civil Procedure. Any such order shall become final unless, no later than thirty (30) days after the date the notice and order are served, the person or persons named therein request in writing a hearing before the board and file a notice of appeal and a bond pursuant to subsection 4-18(e) of the Chattanooga Air Pollution Control Ordinance. Upon such request, the board shall hold a hearing. In lieu of an order, the board may require that the alleged violator or violators appear before the board for a hearing at a time and place specified in the notice and answer the charges complained of, or the board may initiate action pursuant to any applicable provisions of this ordinance, or the statutes of the state, or the acts of Congress of the United States, or the board may initiate action pursuant to any provisions or doctrines of the law of this state.

(b) The Board may issue cease and desist orders after a hearing or opportunity for hearing before the Board.

(c) The Board may file suit in the name of the Board in state or federal court for judicial aid in enforcement of any administrative order.

(d) The permitting authority may terminate, modify, or revoke and reissue permits for cause.

(e) *Enforcement.* The permitting authority shall have the enforcement authority established in section 4-51 of this ordinance and shall have the following enforcement authority to address violations of this ordinance by part 70 sources including those that submit a written request for treatment as a synthetic minor source, (or emissions units thereat or thereon) or violations of permit requirements or conditions:

(1) To restrain or enjoin immediately and effectively any person by administrative order or by suit in court from engaging in any activity in violation of a permit that is presenting an imminent and substantial endangerment to the public health or welfare, or the environment;

(2) To seek injunctive relief in court to enjoin any violation of any program requirement, including permit conditions, without the necessity of a prior revocation of the permit; and

(3) To assess civil penalties and sue in court to recover same and to seek criminal remedies, including fines, according to the following:

(i) Civil penalties shall be recoverable for the violation of any applicable requirement as that term is defined in this ordinance; any permit term or condition; any fee or filing requirement; any duty to allow or carry out inspection, entry or monitoring activities, or any regulation or orders issued by the permitting authority; operation of a part 70 source or of an emissions unit at a part 70 source without a part 70 permit at any time that the part 70 source is required to have an issued part 70 permit, except as otherwise provided in this ordinance; and operation of a source that submits a written request for treatment as a synthetic minor source that is denied such treatment that operates without a part 70 permit at any time that the source or an emissions unit at the source is required to have an issued part 70 permit, except as otherwise provided in this ordinance. Each day of operation without an issued part 70 permit as described in this paragraph constitutes a separate violation. These penalties shall be recoverable in a maximum amount of not less than $25,000 per day per violation. Mental state shall not be an element of proof for civil violations.

(ii) To bring civil actions to collect permit fees when necessary and to bring action to require compliance with the permit requirements of this ordinance.

(iii) Criminal fines shall be recoverable against any person who knowingly violates any applicable requirement; any permit condition; or any fee or filing requirement. These fines shall be coverable in a maximum amount of not less than twenty-five thousand dollars ($25,000.00) per day per violation.

(iv) Criminal fines shall be recoverable against any person who knowingly makes any false material statement, representation or certification in any form, in any notice or report required by a permit, or who knowingly renders inaccurate any required monitoring device or method. These fines shall be recoverable in a maximum amount of not less than twenty-five thousand dollars ($25,000.00) per day per violation.

(v) For the prosecution of criminal action under (e)(3)(iii) or (e)(3)(iv) above the permitting authority shall follow and comply with the provisions of T.C.A. 68-201-112 and shall notify the District Attorney General of the violation.

(f) *Burden of proof.* The burden of proof and degree of knowledge or intent required under State law for establishing violations under paragraph (e)(3) of this section shall be no greater than the burden of proof or degree of knowledge or intent required under the Act.

(g) *Appropriateness of penalties and fines.* A civil penalty or criminal fine assessed, sought, or agreed upon by the permitting authority under paragraph (e)(3) of this section shall be appropriate to the violation. The Board may consider emergency circumstances in mitigation or reduction in assessing a penalty, and shall consider those factors enumerated in § 113(e)(1) [42 U.S.C. 7413(e)(1)] of the Act and those factors enumerated in T.C.A. 68-201-106, as well as those factors set forth at Section 4-4(e) of this ordinance. An emergency means any situation arising from sudden and reasonably unforeseeable events beyond the control of the source, including acts of God, which situation requires immediate corrective action to restore normal operation, and that causes the source to exceed a technology-based emission limitation under the permit, due to unavoidable increases in emissions attributable to the emergency. An emergency shall not include noncompliance to the extent caused by improperly designed equipment, lack of preventative maintenance, careless or improper operation, or operator error.
(Ord. No. 10114, § 2, 9-27-94; Ord. No. 10297, § 6, 10-3-95; Ord. No. 13221, § 18, 9-19-17; Ord. No. 14165, § 22, 10-29-24)

Sec. 4-66. Severability.

If any section, part of a section, sentence, clause or phrase of this Ordinance is for any reason declared to be unconstitutional or otherwise invalid by any court of competent jurisdiction, such decision shall not affect the validity of any other portion of this ordinance, and only such invalid portion shall be elided from this ordinance.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-67. Titles.

The titles appearing as headings within this ordinance are for convenience only and shall not be deemed to be an aid to the construction of this ordinance.
(Ord. No. 10114, § 2, 9-27-94)

Sec. 4-68. Incorporation of documents by reference.

The following documents are hereby incorporated by reference in Chapter 4 as requirements of this municipality pursuant to the provisions of T.C.A. § 68-201-115 and § 10-7-121:

(a) The following appendices of Title 40 Code of Federal Regulations Part 50 (Revised as of July 1, 2023):

(1) Appendix A-1 "Reference Measurement Principle and Calibration Procedure for the Measurement of Sulfur Dioxide in the Atmosphere (Ultraviolet Fluorescence Method),"

(2) Appendix A-2 "Reference Method for the Determination of Sulfur Dioxide in the Atmosphere (Pararosaniline Method),"

(3) Appendix B "Reference Method for the Determination of Suspended Particulate Matter in the Atmosphere (High-Volume Method),"

(4) Appendix C "Measurement Principle and Calibration Procedure for the Measurement of Carbon Monoxide in the Atmosphere (Non-Dispersive Infrared Photometry),"

(5) Appendix D "Reference Measurement Principle and Calibration Procedure for the Measurement of Ozone in the Atmosphere (Chemiluminescence Method),"

(6) Appendix F "Measurement Principle and Calibration Procedure for the Measurement of Nitrogen Dioxide in the Atmosphere (Gas Phase Chemiluminescence),"

(7) Appendix G "Reference Method for the Determination of Lead in Total Suspended Particulate Matter,"

(8) Appendix H "Interpretation of the 1-Hour Primary and Secondary National Ambient Air Quality Standards for Ozone,"

(9) Appendix I "Interpretation of the 8-Hour Primary and Secondary National Ambient Air Quality Standards for Ozone,"

(10) Appendix J "Reference Method for the Determination of Particulate Matter as PM10 in the Atmosphere,"

(11) Appendix K "Interpretation of the National Ambient Air Quality Standards for Particulate Matter,"

(12) Appendix L "Reference Method for the Determination of Fine Particulate Matter as PM2.5 in the Atmosphere,"

(13) Appendix N "Interpretation of the National Ambient Air Quality Standards for PM2.5,"

(14) Appendix O "Reference Method for the Determination of Coarse Particulate Matter as PM10-2.5 in the Atmosphere,"

(15) Appendix P "Interpretation of the Primary and Secondary National Ambient Air Quality Standards for Ozone,"

(16) Appendix Q "Reference Method for the Determination of Lead in Particulate Matter as PM10 Collected From Ambient Air,"

(17) Appendix R "Interpretation of the National Ambient Air Quality Standards for Lead,"

(18) Appendix S "Interpretation of the Primary National Ambient Air Quality Standards for Oxides of Nitrogen (Nitrogen Dioxide),"

(19) Appendix T "Interpretation of the Primary National Ambient Air Quality Standards for Oxides of Sulfur (Sulfur Dioxide)," and

(20) Appendix U "Interpretation of the Primary and Secondary National Ambient Air Quality Standards for Ozone";

(b) Title 40 Code of Federal Regulations Part 51, Subpart I "Review of New Sources and Modifications" (Revised as of July 1, 2023);

(c) The following appendices of Title 40 Code of Federal Regulations Part 51 (Revised as of July 1, 2023):

(1) Appendix M "Recommended Test Methods for State Implementation Plans,"

(2) Appendix P "Minimum Emission Monitoring Requirements,"

(3) Appendix S "Emission Offset Interpretative Ruling," Section IV "Sources That Would Locate in a Designated Nonattainment Area," and

(4) Appendix W "Guideline on Air Quality Models";

(d) Title 40 Code of Federal Regulations Part 58 "Ambient Air Quality Surveillance" and its Appendix B "Quality Assurance Requirements for Prevention of Significant Deterioration (PSD) Air Monitoring" (Revised as of July 1, 2023);

(e) Title 40 Code of Federal Regulations Part 64 "Compliance Assurance Monitoring" (Revised as of July 1, 2023);

(f) Title 40 Code of Federal Regulations § 70.4(b)(3)(viii) (Revised as of July 1, 2023);

(g) The following appendices of Title 40 Code of Federal Regulations Part 75 (Revised as of July 1, 2023):

(1) Appendix A "Specifications and Test Procedures,"

(2) Appendix B "Quality Assurance and Quality Control Procedures,"

(3) Appendix C "Missing Data Estimation Procedures,"

(4) Appendix D "Optional SO2 Emissions Data Protocol for Gas-Fired and Oil-Fired Units,"

(5) Appendix E "Optional NO^x Emissions Estimation Protocol for Gas-Fired Peaking Units and Oil-Fired Peaking Units,"

(6) Appendix F "Conversion Procedures," and

(7) Appendix G "Determination of CO2 Emissions";

(h) Title 40 Code of Federal Regulations Part 257, Subpart A "Classification of Solid Waste Disposal Facilities and Practices," § 257.2 "Definitions" (Revised as of July 1, 2023);

(i) The following sections of Title 40 Code of Federal Regulations Part 258 "Criteria for Municipal Solid Waste Landfills" (Revised as of July 1, 2023):

(1) Subpart D "Design Criteria," § 258.40 "Design criteria," and

(2) Subpart F "Closure and Post-Closure Care," § 258.60 "Closure criteria";

(j) American Society for Testing and Materials (ASTM) Designation D 3266-91, Standard Test Method for Automated Separation and Collection of Particulate and Acidic Gaseous Fluoride in the Atmosphere (Double Paper Tape Sampler Method), 1994 Annual Book of ASTM Standards Volume 11.03;

(k) American Society for Testing and Materials (ASTM) Designation D 323-94, Standard Test Method for Vapor Pressure of Petroleum Products (Reid Method), 1994 Annual Book of ASTM Standards Volume 5.01;

(l) American Petroleum Institute (API) Bulletin 2517 "Evaporative Loss from External Floating-Roof Tanks" Third Edition with addendum May 1994;

(m) Tennessee Visible Emissions Evaluation Method 1—Visual Determination of Opacity of Emissions from Nontraditional Sources (Roads and Parking Areas), Visible Emissions Evaluation Instruction Manual, August 1988 Revised 1995, issued by the Tennessee Department of Health & Environment, Division of Air Pollution Control; and

(n) National Association of Corrosion Engineers (NACE) Standard RP0294-94 "Recommended Practice Design, Fabrication, and Inspection of Tanks for Storage of Concentrated Sulfuric Acid and Oleum at Ambient Temperatures."

(Ord. No. 10269, § 4, 7-25-95; Ord. No. 10785, §§ 5, 6, 10-27-98; Ord. No. 10967, § 1, 2-8-00; Ord. No. 12053, § 4, 12-11-07; Ord. No. 13998, § 99, 6-27-23; Ord. No. 14165, § 23, 10-29-24)

Chapter 5

ALCOHOLIC BEVERAGES*

Article I. In General

Secs. 5-1—5-15. Reserved.

Article II. Beer Board

Sec. 5-16. Established.
Sec. 5-17. Definitions.
Sec. 5-18. Term; filling vacancies; chairman and secretary.
Sec. 5-19. Time, place of meetings.
Sec. 5-20. Inspectors to be appointed.
Sec. 5-21. Authority to grant or deny permits.
Sec. 5-22. When beer permit denied, waiting period; nonconforming use location.
Sec. 5-23. Authority over violations of beer code.
Sec. 5-24. Violations to be reported; other officers to cooperate.
Sec. 5-25. No surrender of permit.
Sec. 5-26. Finality of decisions and right to appeal.
Sec. 5-27. Penalty.

Article III. Beer (as Defined at T.C.A. § 57-5-101(b), and Amendments Thereto)

Division 2. Permits

Sec. 5-28. Dealing is permitted subject to law.
Sec. 5-29. Not transferable.
Sec. 5-30. To be posted.
Sec. 5-31. Maximum quantity to be possessed without permit.
Sec. 5-32. Same—Required for liquor by the drink establishments.
Sec. 5-33. Retailers to purchase from a wholesaler who has a permit.
Sec. 5-34. Solicitations of home delivery service prohibited.
Sec. 5-35. Reports required of permittees.
Sec. 5-36. Hours regulated.
Sec. 5-37. Privilege tax required.
Sec. 5-38. Application fee required.
Sec. 5-39. Application requirements.
Sec. 5-40. Location of premises to be designated.
Sec. 5-41. Applicant to have certificate or registration and bond required by state law.

***Editor's note—**Ord. No. 14090, § 1, 3-12-24, repealed the former Ch. 5., §§ 5-1—5-188, and enacted a new Ch. 5 as set out herein. The former Ch. 5 pertained to similar subject matter and derived from Ord. No. 9261, § 1, adopted Nov. 14, 89; Ord. No. 9502, § 1, adopted Jan. 8, 91; Ord. No. 9592, §§ 1, 2, adopted Aug. 6, 91; Ord. No. 9654, §§ 13, 2, 65—68, adopted Jan. 6, 92; Ord. No. 9824, § 1, adopted Jan. 5, 93; and Ord. No. 9969, §§ 1, 2, 3, adopted Oct. 26, 93.

Cross references—Businesses, trades and occupations, Ch. 11; required notice to police by secondhand dealers of intended purchase from intoxicated or known habitual drunkard, § 11-223; driver education course for drinking drivers, § 16-54.

Sec. 5-42. Temporary beer permits.
Sec. 5-43. Submission of application.
Sec. 5-44. Presentation of application by beer inspector; approval or denial by the beer board.
Sec. 5-45. When to be refused.
Sec. 5-46. Hearing before the beer board.
Sec. 5-47. When the treasurer may issue.
Sec. 5-48. Renewal of the beer permit
Sec. 5-49. Operating without a beer permit.
Sec. 5-50. Grounds for revocation or suspension of permit.
Sec. 5-51. Telephone and reports of disorders.
Sec. 5-52. Offenses involving minors; loitering; gambling.
Sec. 5-53. Unauthorized use or consumption of beverages on premises.
Sec. 5-54. Sales to incapacitated or incompetent persons prohibited.
Sec. 5-55. Use of premises not authorized by permit.
Sec. 5-56. Possession of federal license without city permit.
Sec. 5-57. Training.
Sec. 5-58. Caterers.
Sec. 5-59. Notification to Tennessee Alcoholic Beverage Commission of beer board suspension or revocation of a beer permit of an establishment that holds a license issued by the Tennessee Alcoholic Beverage Commission.
Sec. 5-60. Beer board action upon notification by Tennessee Alcoholic Beverage Commission of suspension or revocation of license.
Sec. 5-61. Employment of former violators.
Sec. 5-62. Employment of minors.
Sec. 5-63. Notification of employment.
Sec. 5-64. Prohibited acts on premises.
Sec. 5-65. Hotels, clubs, lodges, poolrooms, theaters.
Sec. 5-66. To be posted.
Sec. 5-67. Regulation of outdoor advertising.
Sec. 5-68. Consumption of alcoholic beverages and beer prohibited in certain places; open containers of alcoholic beverages and beer prohibited in certain places.
Sec. 5-69. Consumption of alcoholic beverages and beer in parklet cafés open containers of alcoholic beverages and beer in parklet cafés.
Secs. 5-70—5-100. Reserved.

Article IV. Liquor (as Defined at T.C.A. § 57-5-101(a)(1), and Amendments Thereto)

Division 1. Generally

Sec. 5-101. Scope of article.
Sec. 5-102. Dealing in beverages declared lawful.
Sec. 5-103. Powers and duties of inspectors.
Sec. 5-104. Violations to be reported; request for revocation of license.
Sec. 5-105. Drinking in public or prohibited places.
Sec. 5-106. Prohibited acts on premises.
Sec. 5-107. State regulations for purchase and sale of intoxicating liquors adopted by reference.
Sec. 5-108. Location and signs for liquor stores.
Sec. 5-109. Site plans to be submitted.
Sec. 5-110. Distilleries.
Secs. 5-111—5-120. Reserved.

Division 2. License

Sec. 5-121. Required.
Sec. 5-122. Application for certificate; contents.
Sec. 5-123. Applicant to agree to comply with laws.
Sec. 5-124. Applicant to appear before city council; duty to give information.
Sec. 5-125. Action on application.
Sec. 5-126. Number limited.
Secs. 5-127—5-140. Reserved.

Division 3. Inspection Fee on Retail Sales; Privilege Tax for Consumption on Premises

Sec. 5-141. Definition.
Sec. 5-142. Inspection fee—Levied; amount; collection.
Sec. 5-143. Same—To be remitted to treasurer by wholesalers; sales on credit; reports by wholesalers.
Sec. 5-144. Same—Compensation of wholesalers.
Sec. 5-145. Consumption on premises; privilege tax levied.
Secs. 5-146—5-160. Reserved.

Article V. Bottle Clubs (Brown Bagging)

Division 1. Generally

Sec. 5-161. Scope of article.
Sec. 5-162. Definitions.
Sec. 5-163. Beer board and beer inspectors to enforce article.
Sec. 5-164. Hours regulated.
Sec. 5-165. Sales to incapacitated or incompetent persons prohibited.
Sec. 5-166. Employment of minors.
Sec. 5-167. Immoral acts prohibited at premises.
Sec. 5-168. Telephone and reports of disorders.
Secs. 5-169—5-180. Reserved.

Division 2. Permit

Sec. 5-181. Required.
Sec. 5-182. Application; fee.
Sec. 5-183. Location to be designated.
Sec. 5-184. Grounds for refusal.
Sec. 5-185. When treasurer may issue.
Sec. 5-186. To be posted.
Sec. 5-187. Not transferable.
Sec. 5-188. Grounds for revocation or suspension.

Article VI. Hearing Officer

Sec. 5-190. Purpose.
Sec. 5-191. Hearing officer.
Sec. 5-192. Selection of hearing officer.
Sec. 5-193. Compensation for hearing officer.

Sec. 5-194. Removal of hearing officer.
Sec. 5-195. Clerk of beer board.
Sec. 5-196. Procedure.
Sec. 5-197. Answer.
Sec. 5-198. Default.
Sec. 5-199. Scheduling of hearing.
Sec. 5-200. Conduct of hearing.
Sec. 5-201. Pre-hearing conference.
Sec. 5-202. Subpoenas.
Sec. 5-203. Transcripts and evidence.
Sec. 5-204. Appeals.
Sec. 5-205. Fines utilized to pay hearing expenses.
Sec. 5-206. Reserved.

ARTICLE I. IN GENERAL

Secs. 5-1—5-15. Reserved.

ARTICLE II. BEER BOARD*

Sec. 5-16. Established.

There is hereby established a board of nine (9) members, to be known as the "Beer Board of Chattanooga." The wrecker board established in section 35-149 of this code shall be separated from the beer board, effective March 5, 2024.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-17. Definitions.

Applicant means any person or entity who submits or is seeking to submit an application for a beer permit pursuant to this section.

Beer means beer, ale, or other malt beverages, or any other beverages having alcoholic content of not more than eight percent (8%) by weight, except wine as defined in Tenn Code section 57-3-101; provided, however, that no more than forty-nine percent (49%) of the overall alcoholic content of such beverage may be derived from the addition of flavors or other nonbeverage ingredients containing alcohol.

Caterer is a person engaged in offering food and beverage service for a fee at various locations that: (a) operates a permanent catering hall or restaurant; (b) has a complete and adequate commercial kitchen; and (c) is a licensed as a caterer by the state department of health or whose catering hall is licensed as a restaurant by the state department of health.

Establishment means a building or business for which a permit is issued.

Owner shall mean the owner of a business to which a permit is issued, whether a person, firm, corporation, joint-stock company, syndicate, or association. If the owner is a corporation, a change in ownership shall occur when control of at least fifty (50%) percent of the stock of the corporation is transferred to a new owner.

Permittee means the holder of a beer permit issued pursuant to this section.

Retail sale means a sale to a consumer or to any person for any purpose other than for resale.

Wholesale shall mean a sale to any person for purposes of resale.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-18. Term; filling vacancies; chairman and secretary.

(a) The members of the beer board shall be appointed by the mayor, subject to confirmation by the city council. Full time employees of the city shall not be eligible for appointment to the beer board.

(b) The members of the beer board shall be appointed so that they shall hold office for staggered terms. The members appointed from districts 6, 8, and 9 shall be initially appointed for one (1) year terms. The members appointed from districts 3, 4, and 5 shall be initially appointed for two (2) year terms. The members appointed from districts 1, 2, and 7 shall be initially appointed for three (3) year terms.

***State law reference—**Authority to provide for board before which beer license applications are made, T.C.A § 57-5-106.

(c) After the initial appointments, terms of all members shall be for three (3) years. All members shall continue to serve until their successors are appointed.

(d) In the event of a vacancy on the beer board, the mayor, subject to confirmation by the city council, shall fill the same for the remainder of the term and each new appointee shall be a resident of the district of the vacant seat.

(e) The beer board shall organize and select its own chairperson, vice-chairperson, and secretary. Officers of the board shall be elected annually, but no officer may serve more than two (2) consecutive terms in the same office.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-19. Time, place of meetings.

The beer board shall meet on the first and third Thursday of each month at 9:00 a.m. in the assembly room at the city hall. The board may call special meetings as required with sufficient notice.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-20. Inspectors to be appointed.

The Chief of Police shall designate beer inspectors and assign them to the regulatory unit for the purpose of enforcing the laws, ordinances, and rules regulating the distribution, possession, storage, or sale of beer at wholesale or retail. Such inspectors shall have all the powers and authority of regular police officers.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-21. Authority to grant or deny permits.

(a) All applications for the issuance or renewal of beer permits shall be made to the regulatory unit.

(b) The regulatory unit may approve any new beer permits (temporary or permanent) that meet the requirements of the applications.

(c) The regulatory unit may defer an application to the beer board for approval.

(d) If an applicant is denied a permit, the applicant shall be able to appeal to the beer board for a final determination of permit approval. The appeal shall be heard by the beer board who will review the application and decide to affirm or reverse the decision of the regulatory unit.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-22. When beer permit denied, waiting period; nonconforming use location.

When an application for a beer permit is denied for reasons relating to the location of the premises, no other application or reapplication shall be filed by any person for a beer permit at such location during a twelve (12) month period after such denial by the beer board. All beer permits currently issued to locations that constitute a nonconforming use under the zoning ordinances may be renewed, but no new permit shall be granted for the sale of beer at a location that now or hereafter constitutes a nonconforming use.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-23. Authority over violations of beer code.

(a) The regulatory unit shall have authority to investigate suspected violations by permit holders and issue citations to the beer board for violation of any law regulating the sale, storage, and transportation of alcoholic beverages or for any violation of any provision of this Code.

(b) The hearing officer shall conduct a public hearing in accordance with Article VI of this Chapter.

(c) The beer board, after receiving a decision from the Hearing Officer, shall have the authority to revoke or suspend any permits issued by it under this division.

(d) The beer board may offer a permit holder the alternative of paying a civil penalty not to exceed two thousand five hundred dollars ($2,500) for each offense of making or permitting any sales to minors or a civil penalty not to exceed one thousand dollars ($1,000) for any other offense. If a civil penalty is offered as an alternative to revocation or suspension, the holder shall have seven (7) days within which to pay the civil penalty before the revocation or suspension shall be imposed. If the civil penalty is paid within that time, the revocation or suspension shall be deemed withdrawn, and any right to appeal is deemed waived by the permit holder.

(e) In addition, the beer board shall have the power to require additional training in the case of violation of this section or any other section of the beer code.

(f) The beer board shall follow the requirements of the "Tennessee Responsible Vendor Act of 2006" T.C.A. §57-5-108(a) as they pertain to any responsible vendor as certified by the State of Tennessee Alcoholic Beverage Commission. The burden shall be on the permit holder to establish that it is a responsible vendor.

(g) Nothing in this Chapter shall be construed as interfering with the enforcement of any law or ordinance by another duly authorized agency.

(h) Nothing in this Chapter shall be construed as interfering with the enforcement of any contractual or legal right against a permittee by a third party.

(i) Beer permits shall be revoked in any manner inconsistent T.C.A. §57-5-108.
(Ord. No. 14090, § 1, 3-12-24; Ord. No. 14167(7), § 1, 11-5-24)

Sec. 5-24. Violations to be reported; other officers to cooperate.

The regulatory unit shall issue citations under this chapter. Police officers and inspectors shall report suspected violations by a licensee for investigation by the regulatory unit. All police officers and inspectors and the city treasurer or their assistants shall cooperate with and furnish all information requested by the beer board and the administrative hearing officer.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-25. No surrender of permit.

No beer permit shall be surrendered after the holder thereof has been cited before the beer board for an alleged violation and while any charges or citations are still pending.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-26. Finality of decisions and right to appeal.

The decisions of the beer board are final, and any party aggrieved thereby may appeal the outcome in accordance with Tennessee Code Annotated §57-5-108.

Sec. 5-27. Penalty.

Violation of this article shall constitute grounds for the revocation of the license, or for a suspension in the discretion of the beer board.
(Ord. No. 14090, § 1, 3-12-24)

ARTICLE III. BEER (AS DEFINED AT T.C.A. § 57-5-101(b), AND AMENDMENTS THERETO)

DIVISION 2. PERMITS

Sec. 5-28. Dealing is permitted subject to law.

The manufacture, distribution, sale, transportation, storage, and possession of beer is governed by the Tennessee Code Annotated, this Code, and permit requirements of this chapter. (Code 1986, § 5-41; Ord. No. 13127 , § 1, 12-13-16)
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-29. Not transferable.

No permit issued by the beer board or regulatory unit under the provisions of this division shall be transferred from one (1) person to another.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-30. To be posted.

(a) The permit issued under this division shall be posted in a conspicuous place on the premises of the permittee.

(b) Vendors shall post signs informing customers of the vendor's policy against selling beer to underage persons. The signs shall not be less than eight and one-half inches by five and one-half inches (8 ½ x 5 ½), and shall contain the following language: IF YOU ARE UNDER 21 YEARS OF AGE AND ARE IN POSSESSION OF BEER, YOU COULD LOSE YOUR DRIVER'S LICENSE.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-31. Maximum quantity to be possessed without permit.

(a) Possession of more than three (3) cases of beer requires a permit as a:

(i) Wholesale distributor; or

(ii) Retail dealer; or

(iii) Nonrecurring social function, signed by the chief of police specifying the amount to be purchased and the time within which such purchase shall be made. The distributor making such sale return or mail the permit authorizing the sale to the chief of police by 12:00 noon of the next succeeding business day after such sale.

(b) A retail dealer in beer shall not sell or deliver to any person more than three (3) cases of such beverages on any one (1) day.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-32. Same- required for liquor by the drink establishments.

Any person holding a liquor-by-the-drink license must also have a beer permit to sell beer for consumption on the premises.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-33. Retailers to purchase from a wholesaler who has a permit.

It shall be unlawful for any person holding a permit for the sale at retail of beer or other beverages of like alcoholic content to purchase beer or such other beverages from anyone other than a brewer, wholesaler or distributor who has been issued a permit to carry on business in the city.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-34. Solicitations of home delivery service prohibited.

Any person who is engaged in accepting orders and making deliveries of beer in the city shall be known and considered as operating a home delivery service of beer, and it shall be unlawful for any person engaged in the business of home delivery to solicit, either in person or by telephone, the sale or delivery of beer, or to make sales or deliveries except on voluntary calls or orders from customers.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-35. Reports required of permittees.

(a) *Wholesalers.* Each wholesaler or wholesale distributor of beer or other beverages of like alcoholic content in the city shall file with the city treasurer the name of the brewer such wholesaler or wholesale distributor represents, together with the name of the beer sold at wholesale or distributed in the city. In the event of a change of breweries, such wholesaler or distributor shall immediately furnish the city treasurer with the name of any additional brewery represented. Any wholesaler or wholesale distributor making sales of beer or other beverages of like alcoholic content from the platform, or from an established place of business or other place, shall make a report in writing of such sales, giving the name and address of the purchaser and the quantity of beverages purchased. Such report shall be delivered or mailed to the chief of police by 12:00 noon of the following business day.

(b) *Operators of vehicles.* Any person operating a vehicle, either for himself or a distributor, who sells beer or other beverages of like alcoholic content to any person other than a retailer who has been issued a permit shall make a report in writing of such sale, giving the name and address of the person to whom the sale was made, which shall be delivered or mailed to the chief of police by 12:00 noon of the following business day.

(c) *Retailers.* Any retail permittee selling or delivering one (1) or more cases of beer shall make a report in writing of such sale or delivery, giving the name and address of the person to whom the sale was made. Such report shall be delivered or mailed to the chief of police by 12:00 noon of the following business day.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-36. Hours regulated.

(a) No permittee under this article may sell or give away alcoholic beverages or malt beverages on the licensed premises between the hours of 3:00 a.m. and 8:00 a.m. on Monday through Saturday or between the hours of 3:00 a.m. and 10:00 a.m. on Sundays.

(b) In addition to the requirements set forth in subsection (a) above, no permittee under this article with an on premise permit may permit alcoholic beverages or malt beverages to be consumed on the licensed premises between the hours of 3:00 a.m. and 8:00 a.m. on Monday through Saturday or between the hours of 3:00 a.m. and 10:00 a.m. on Sundays. All alcoholic beverages or malt beverages and all alcoholic beverages or malt beverages glasses and containers must be clear off tables at the end of serving hours. This subsection shall not apply to off premise permits.

(c) No permittee whose permit authorizes sale for on premise consumption shall be open for business except during hours authorized by this section for consumption of alcoholic beverages or malt beverages on the licensed premises. However, this section shall not apply to an on premise consumption permittee

having a dining room seating capacity of at least fifty (50) people at tables whose annual sales of food prepared in a fully functioning and sanitary kitchen, non-alcoholic beverages, non-malt beverages, and other commodities sold upon the premises comprise more than fifty percent (50%) of the permittee's annual gross sales and where the sale of malt beverages and alcoholic beverages is merely incidental to the business or to a theater as defined at Tenn. Code Ann. § 57-4-102(37). The burden of proof shall be on the permit holder to establish their percentage of sales of food, non-alcoholic beverages, non-malt beverages, and other commodities.

(d) No person who holds a beer permit for premise consumption shall allow any person under the age of twenty-one (21) to be in, frequent or loiter about the premises of the licensee unless such underage person is accompanied by their parent or their legal guardian after 6:00 o'clock p.m. However, this section shall not apply to an on premise consumption permittee having a dining room seating capacity of at least fifty (50) people at tables whose annual sales of food prepared in a fully functioning and sanitary kitchen, non-alcoholic beverages, and other commodities upon the premises comprise more than fifty percent (50%) of the permittee's annual gross sales and where the sale of beer and alcoholic beverages is merely incidental to the business or to a theater as defined at Tenn. Code Ann. § 57-4-102(37). The burden of proof shall be on the permit holder to establish their percentage of sales of food, non-alcoholic beverages, and other commodities. Any establishment violating this provision shall, after the first offense, be required by the Beer Board to present a plan as to how the establishment will ensure there will be no further violations. Any violation may result in the permittee's license being suspended and, once a plan is submitted, three (3) subsequent violations within any twelve (12) month period, calculated from the date of the first subsequent violation, shall result in the revocation of the beer permit. The provisions of this subsection shall not apply to a temporary permit.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-37. Privilege tax required.

Permanent Beer Permit Holders shall pay an annual privilege tax of one hundred dollars ($100.00). New permits shall pay this tax on a prorated basis.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-38. Application fee required.

(a) Any applicant for a permanent beer permit must pay an application fee of two hundred fifty dollars ($250.00) to the city treasurer. This fee is non-refundable and non-transferable and shall be in addition to any other fees or taxes specified herein.

(b) Any applicant for a temporary beer permit must pay to the city treasurer an application fee of one hundred dollars ($100.00)for a one-day permit plus fifty dollars ($50.00) for each additional day of the temporary beer permit, providing, however, that the maximum fee for a temporary thirty (30) day beer permit is two hundred fifty dollars ($250.00). This fee is non-refundable and non-transferable and shall be in addition to any other fees or taxes specified herein.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-39. Application requirements.

(a) The application for a permanent beer permit shall contain the following information:

(i) The name of the applicant;

(ii) Name of the applicant's business;

(iii) Applicant's Social Security Number or Federal Tax ID;

(iv) Address of business or location of premises permitted;

(v) At least one (1) phone number of record that a business will use to Name and address of persons, firms, corporations, joint-stock companies, syndicates, or associations having at least a five percent (5%) ownership interest in the applicant;

(vi) Selection of permit type: on-premises consumption, off premises consumption or both;

(vii) Sworn and notarized statement that all facts included in the application are true, correct, and applicant has read and understood the Chattanooga beer code; and

(viii) Statement of whether the applicant will have security at their event or on the premises. The statement should indicate that should the applicant have security, said security is properly licensed and complies with all applicable Tennessee statutes.

(b) The applicant must also submit the following documents with the application:

(i) Two (2) forms of identification, one of which must be a photo ID;

(ii) A Nationwide fingerprint background check for each person having at least a five percent (5%) ownership interest in the applicant's business showing no convictions for any violation of these laws against possession, sale, manufacture or transportation of beer or other alcoholic beverages or any crime involving moral turpitude within the past ten (10) years;

(iii) Certificate of occupancy as issued by the fire inspector;

(iv) Certificate of health inspection from:

(1) Hamilton County Health Department for on-premise permits or;

(2) Tennessee Department of Agriculture for off- premise permits

(v) Use letter from Land Development Office (if a temporary beer permit)
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-40. Location of premises to be designated.

The location of the premises at which the business of a permittee under this division will be conducted shall be designated in his permit and in the application therefor.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-41. Applicant to have certificate or registration and bond required by state law.

Before any permit required by this division is issued by the city treasurer, the applicant shall submit satisfactory evidence that he has registered and received from the commissioner of the department of revenue of the state a certificate showing such registration, and has filed with the clerk of the county court a bond, conditioned as provided by law.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-42. Temporary beer permits.

(a) Temporary beer permits are not to exceed thirty (30) days. Temporary beer permits may be issued upon the same conditions governing permanent permits with the exception of the certificate of health inspection. A certificate of health inspection is required only if it is required by the Hamilton County Health Department. The temporary permit shall specify with reasonable particularity the premises on which the permit shall be valid and the time or times during which the permit shall be valid.

(b) A temporary permit authorizing the sale of beer on public property may be issued following subject to the approval of the appropriate governmental authority charged with the management of such publicly owned property:

(i) A bona fide charitable or non profit or political organization as defined in T.C.A. §57-4-102;

(ii) An Applicant for a Festival License issued by the Tennessee Alcoholic Beverage Commission pursuant to T. C.A. §57-4-102(16), provided that the temporary beer permit shall be effective only for the dates and times of the Festival License issued by the Tennessee Alcoholic Beverage Commission.

(iii) The regulatory unit may approve all temporary/special event beer permits, provided they meet all requirements under state law and City Code. The Regulatory Unit shall provide notice of approvals of beer permits at its next regularly scheduled meeting after the approval of the permits.

(iv) The regulatory unit, at their discretion may defer the approval of a permit application to the beer board for approval.

(c) For temporary beer permits, each permittee is required to make available nonalcoholic beverage options other than water. Said number of nonalcoholic beverages required shall be at least ten percent (10%) of the total offered beverages for consumption at the event.
(Ord. No. 14090, § 1, 3-12-24; Ord. No. 14167(5), § 1, 11-5-24; Ord. No. 14167(6), § 1, 11-5-24)

Sec. 5-43. Submission of application.

(a) Applications must be submitted in complete form before being placed on the agenda.

(b) Applications ten (10) days before a meeting (by close of business on the Monday before a meeting) will be placed on the agenda for the next meeting.

(c) The application must be completed within six (6) months of receipt of the sworn and notarized statement is submitted to the Regulatory Unit. An application is considered completed when all required and requested documentation has been submitted.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-44. Presentation of application by beer inspector; approval or denial by the beer board.

(a) The beer inspector shall present the applications that have not been administratively approved by the regulatory unit on the agenda to the beer board, and;

(b) Shall also present any evidence that the issuance of a beer permit would cause congestion of traffic, interfere with schools or churches, interfere with the public health and safety, or violate any law or ordinance.

(c) The beer board shall consider each application that has been deferred or appealed to it for a permit under this division and shall grant the permit to a qualified applicant if there is no evidence of threat presented. The action of the beer board in granting or refusing a permit shall be final, except as it may be subject to review at law.

(d) Tabled applications may be tabled once but must be heard within three (3) months from completion of their application.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-45. When to be refused.

(a) No permit required by this division shall be issued where the operation of the business conducted thereunder may cause congestion of traffic, interfere with schools, churches, parks, or other places of public assembly, or otherwise interfere with the public health, safety, and morals, or where this article or any other law would be violated, including, but not limited to, the zoning laws.

(b) (1) The sale of beer or other beverages of like alcoholic content for consumption on the premises within five hundred (500) feet, or two hundred fifty (250) feet for consumption off the premises, as measured from any doorway entrance to the building of the applicant regularly used for public ingress or egress to the nearest doorway entrance to the school, church, adult-oriented establishment as defined in Chattanooga City Code, § 11-422(a), or other place of public gathering regularly used for public ingress or egress, specifically including day care centers for eight (8) or more children under seventeen (17) years of age for group care as defined in the Chattanooga Zoning Ordinance, shall be prohibited; provided however, this prohibition shall not apply to any proposed permit location within the area zoned C-3 Central Business District or UGC Urban General Commercial Zone or zoned pursuant to the Downtown Form-Based Code (City Code Chapter 38, Article XVI) or to any proposed permit location within five hundred (500') feet of Coolidge Park, Ross's Landing Park and Plaza, Miller Park and Plaza, Sanctuary Skate Park at Finley Stadium, East Brainerd Park, or the Walnut Street Bridge; provided, further, that this distance proximity prohibition shall not apply to any location that has heretofore been issued a valid permit to sell, store or manufacture beer or other beverages of like alcoholic content under previous distance proximity restrictions but if any such permittee shall cease or discontinue the sale of beer for six (6) months, then the distance proximity prohibition contained in this section shall thereafter apply to such locations.

(2) The distance requirement for the on premise consumption of beer brewed on the premises does not apply within the area zoned M-1 Manufacturing Zone to any brewery that has as its principal purpose the wholesale production of beer for consumption off the premises.

(3) For zones C-N, C-NT, C-TMU, C-C, C-R, C-MU1, C-MU2, I-L, I-H, I-X, I-MU, OS, the distance requirements set forth in Sec-5-45(b)(1) shall be reduced to three hundred (300) feet for consumption on the premises and two hundred (200) feet for consumption off the premises, as measured from any doorway entrance to the building of the applicant regularly used for public ingress or egress to the nearest doorway entrance to the school, church, adult-oriented establishment, or other place of public gathering regularly used for public ingress or egress, specifically including day care centers for eight (8) or more children under seventeen (17) years of age for group care.

(c) All applicants for a beer permit shall be required in their application to list and identify all schools, churches, or other places of public gathering, specifically including day care centers for eight (8) or more children under seventeen (17) years of age for group care as defined in the Chattanooga Zoning Ordinance, which are believed to be within the distance specified in paragraph (b).

(d) The beer board may, in its discretion, require any applicant for a beer permit to submit as a part of his application a survey by a duly licensed surveyor when a school, church, or other place of public assembly is in close proximity to the applicant's premises; and when, because of limiting conditions such as topography, the accuracy of other methods of measurement is deemed to be inadequate and survey is deemed reasonably necessary to establish an accurate distance relative to the applicant's entitlement to a permit under the provisions of this section.

(e) To the extent that it shall be called to the attention of the beer board that it may hereafter have issued any beer permit to a location not qualified under the provision of this section or that a nonconforming permittee within the prohibited distance provision has ceased to sell beer for more than six (6) months, then it shall be the duty of the beer board, upon notice to the permittee and an opportunity for the permittee to be heard, to revoke any permits which have been issued in violation of this section.

(f) No permit required by this division shall be issued where a person, firm, corporation, joint stock company, syndicate, or association having at least a five percent (5%) ownership interest in the applicant has been convicted of any violation of the laws against possession, sale, manufacture or transportation of beer or other alcoholic beverages or any crime involving moral turpitude within the past ten (10) years, or has had a permit under this chapter revoked within one (1) year or is currently under suspension. The Board, in its discretion, may determine that issuance of a license or permit before the expiration of one (1) year from the date of revocation becomes final is appropriate, if the individual applying for such issuance is not the original holder of the license or any family member who could inherit from such individual under the statute of intestate succession.

(g) No permit required by this division shall be issued to any applicant whose business operation is located less than three hundred (300) feet away from the nearest property line of any business establishment licensed as a "teen social club" pursuant to the provisions of Chapter 11, Article XV of the Chattanooga City Code.
(Ord. No. 14090, § 1, 3-12-24; Ord. No. 14167(4), § 1, 11-5-24)

Sec. 5-46. Hearing before the beer board.

No beer permit of any kind shall be issued to any applicant unless the applicant or a specified agent or employee is designated on the application as being charged with overall responsibility for the beer business which is conducted on the premises. If the applicant is not a resident of the county, the applicant shall designate a person residing within the county who shall be authorized to accept service of process and to receive notice of any actions of the city or the beer board respecting the applicant or the premises. The permit holder shall be responsible for providing any change of address information for their address or the address of their registered agent to the regulatory unit. Failure to comply with the requirements set out in this section will cause any permit previously issued to be revoked by the beer board or administrative hearing officer.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-47. When the treasurer may issue.

(a) The City treasurer shall issue permit only after the applicant has registered with the state department of revenue and filed a bond with the clerk of the county court; and

(b) The beer board or regulatory unit has submitted a request in writing to issue the permit.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-48. Renewal of the beer permit

Each beer permit is required to be renewed each year. If a permit is not renewed within thirty (30) days of expiration of the permit, then a permittee shall have to submit another application through the regulatory unit.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-49. Operating without a beer permit.

If the owner of an establishment operates an establishment without a beer permit and has not previously obtained a beer permit, that owner shall be subject to civil penalty not to exceed one thousand dollars ($1,000.00).
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-50. Grounds for revocation or suspension of permit.

(a) The beer board shall have the authority to revoke or suspend any permits issued by it under this division, upon notice to the permittee and a hearing thereon under the administrative hearing officer, who shall make recommendations to the beer board, for any violation of any provision of federal or state law regulating the sale, storage, and transportation of alcoholic beverages or for any violation of any provision of this Code, including a failure to comply with requirements set out herein.

(b) It is a violation of this chapter for any beer permit holder to:

(i) Deny access to any portion of the premises to any police or inspector;

(ii) Sell or furnish alcoholic beverages to a person under the age of twenty-one (21) or to allow such a minor to possess or drink an alcoholic beverage on the permit holder's premises. The burden of ascertaining the age of persons who may not lawfully possess beer shall be on the permit holder and his agent or employee.

(iii) Sell or allow the sale of alcoholic beverage any sale to any intoxicated or otherwise mentally incapacitated person; nor allow any such person to loiter on or about the premises.

(iv) Allow any gambling or gambling devices on the premises.

(v) Allow litter or debris to accumulate in or around the premises, including the sidewalks and streets adjacent thereto; or fail to provide and maintain adequate solid waste containers.

(vi) Allows anyone to leave the permitted premises with an open container not within the Entertainment district.

(vii) Employ a person in the manufacture, sale, transportation, or storage of beer who has been convicted within the preceding ten (10) years of any violation of the laws of the state against the sale, manufacture, possession, consumption of intoxicating liquors, or of any crime involving moral turpitude.

(viii) Purchase beer from a brewer, wholesaler or distributor who has not been issued a permit to carry on business in the city.

(ix) Permit a person under the age of eighteen (18) years to transport, possess, sell, or dispense alcoholic beverages, wine, or beer in the course of his or her employment.

(x) Sell, give away or allow consumption of alcoholic beverages on the licensed premises between the house of 3:00 a.m. and 8:00 a.m. on Monday through Saturday or between the hours of 3:00 a.m. and 10:00 a.m. on Sundays. All alcoholic beverages and their serving containers must be cleared off tables at the end of serving hours.

(xi) Engage in or allow on the premises any sexual or pornographic conduct as described in T.C.A. §57-4-204.

(xii) Has been convicted by final judgment of any court of competent jurisdiction of any crime or misdemeanor involving the sale or consumption of beer or alcoholic beverages.

(xiii) Obtained the permit by false statements made in the application for a beer permit therefore and shall not issue another permit to such permittee for a period of ten (10) years.

(xiv) Allow overcrowding of their establishment. For the purposes of this section, overcrowding shall mean continuing to allow patrons on the premises after the occupancy limit has been reached. Premises shall be defined as the owner

(xv) Allow their establishment to be operated in a disorderly manner. It shall be prima facie evidence that a permittee's establishment is being operated in a disorderly manner if disorderly conduct (as defined in T.C.A. §39-17-305), chronically occurs on the premises, if there is any breach of the

peace, or unusual disturbance on the premises, or if there is evidence that any violation of law has occurred on the premises. Executive orders issued by the governor, executive orders issued by the mayor, resolutions and regulations issued by the county board of health, or orders issued by the county health director or the county health officer have the force of law, and for purposes of tis subjection, these orders, resolutions, and regulations, are considered to be "laws" that must be complied with by beer permittees. Failure to comply with the requirements set forth in any such law may be cause for a beer permit to be revoked or suspended.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-51. Telephone and reports of disorders.

(a) All permittees must maintain a telephone in good working order and update their phone number with the Chattanooga Police Department immediately upon any change to the phone number.

(b) All permittees shall report all fights and other public disorders (as defined herein) occurring on such premises immediately to the Chattanooga Police Department by calling 9-1-1 or the non-emergency line as appropriate.

(c) Nothing in this section requires a permittee to notify police of an incident if police are already present to investigate that incident at the time it becomes known to the permittee.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-52. Offenses involving minors; loitering; gambling.

(a) No sale of beer or other alcoholic beverages shall be made to any person under the age of twenty-one (21) years; nor, shall any person under the age of twenty-one (21) consume any alcoholic beverages; nor shall any person purchase or otherwise obtain any such beverage for any person under the age of twenty-one (21), except as set forth hereinbelow.

(b) No permittee shall allow any person under the age of twenty-one (21) years to loiter about his place of business, the burden of ascertaining the age of such customer shall be upon the owner or operator of such place of business; provided, that nothing herein shall be deemed to prohibit the employment of persons aged eighteen (18) years of age or over. This section shall not apply to a theater as defined at T.C.A. § 57-4-102(37).

(c) No permittee shall allow any gambling or gambling devices on his premises.

(d) No permanent permittee shall allow any person on its premises to purchase, hand over or pass off an alcoholic beverage to a person under the age of twenty-one (21) on the permit holder's premises. It shall be a violation of the provisions of this Section for a permanent permit holder to allow any person under the age of twenty-one (21) to possess, control, hold, receive, or drink an alcoholic beverage on the permit holder's premises. The burden of ascertaining the age of persons who may not lawfully possess beer shall be on the permanent permit holder and his agent or employee.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-53. Unauthorized use or consumption of beverages on premises.

(a) No permittee under this article whose permit authorizes sale for consumption off the premises only shall sell for consumption on the premise, nor shall he permit any consumption to take place on the premises.

(b) No sale for consumption on the premises shall be made by any permittee except where meals or lunches are regularly served, unless otherwise authorized by his permit.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-54. Sales to incapacitated or incompetent persons prohibited.

No permittee under this article shall make or allow any sale to any intoxicated person or to any feeble-minded, insane, or otherwise mentally incapacitated person; nor allow any such person to loiter on or about the premises.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-55. Use of premises not authorized by permit.

No beer or other beverages of like alcoholic content shall be manufactured, stored, or sold except at the premises designated in the permit therefor.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-56. Possession of federal license without city permit.

The possession by any person of any federal license to sell alcoholic beverages without the corresponding city permit required by this division shall be prima facie evidence in all cases that the holder of such federal license is selling beer or other beverages of like alcoholic content in violation of the provisions of this article.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-57. Training.

(a) Anyone who sells or serves beer must possess either a server permit from the Tennessee Alcoholic Beverage Commission or a certificate of training from a trainer approved by the Beer Board. Such permit or certificate must be on the person of such employee or on the premises of the permitted establishment and is subject to inspection by the City or any law enforcement agency.

(b) Applicants for new beer permits must comply with subsection (a) within (60) days of being issued a beer permit or, in the case of temporary permits before the event begins.

(c) This section shall not apply to any entity that possesses a license from the Tennessee Alcoholic Beverage Commission or is certified as a responsible Vendor by the Tennessee Alcoholic Beverage Commission.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-58. Caterers.

(a) A caterer licensed to operate in the City of Chattanooga shall obtain a beer permit as contemplated by this Chapter.

(i) All caterers with a beer permit shall give advance notice to the Regulatory Board of each site or locations where beer will be sold and consumed. Such notice shall include, but not be limited to the date, time, and location of the event five (5) days prior to the date of the scheduled event.

(ii) A beer permit issued to a caterer shall not be valid for the sale and consumption of beer on any premises for which a retailer's "on-sale" permit has been revoked within the past twelve month period, nor shall a caterer use a beer permit for the sale and consumption of beer on any premises owned or leased by a person, firm, or corporation, joint-stock company, syndicate, or association having at least a five percent (5%) ownership interest in the establishment that has had a retailer's "on-sale" permit revoked within the past twelve (12) month period.

(b) The distance requirements in this Chapter shall not be applicable to a catered event by the holder of a valid caterer's permit.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-59. Notification to Tennessee Alcoholic Beverage Commission of beer board suspension or revocation of a beer permit of an establishment that holds a license issued by the Tennessee Alcoholic Beverage Commission.

(a) Whenever the beer board suspends or revokes a permit, the beer board shall notify the alcoholic beverage commission by certified mail, return receipt requested, of the action taken by the beer board. Such notice shall include the record of evidence and the determination made by the beer board in suspending or revoking the permit.

(b) Any decision of the beer board is final, and any aggrieved thereby may appeal the decision of the beer board in accordance with Tennessee Code Annotated, Title 57, Chapter 5.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-60. Beer board action upon notification by Tennessee Alcoholic Beverage Commission of suspension or revocation of license.

(a) If, pursuant to T.C.A.§57-4-202(c), the alcoholic beverage commission sends a certified letter, return receipt requested to the beer board providing notice that the commission has suspended or revoked the license of an establishment for a violation of Tennessee Code Annotated, Title 57, Chapter 4, upon receipt of the certified letter, the beer board shall:

(i) Notify by certified mail, the individual or business entity that their beer license shall be suspended or revoked on the same terms as decided by the commission unless the licensee can show by a preponderance of the evidence that no violation occurred at a hearing at the next regularly scheduled beer board meeting that occurs later than two (2) weeks after the individual or entity is notified.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-61. Employment of former violators.

No person shall be employed in the manufacture, sale, transportation or storage of beer or other beverages of like alcoholic content who has been convicted within the preceding ten (10) years of any violation of the laws of the state against the sale, manufacture, possession, consumption, or transportation of intoxicating liquors, or of any crime involving moral turpitude, be so employed.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-62. Employment of minors.

No person under the age of eighteen (18) years shall be permitted to transport, possess, sell, or dispense alcoholic beverages, wine, or beer in the course of his employment.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-63. Notification of employment.

Within three (3) days of the employment of any person who will dispense, serve, or sell beer or other beverages of like alcoholic content for consumption on the premises of any establishment granted a permit under this article, the permit holder must notify the Beer Inspector in writing of such employee's full name, current address, date of birth, race, and Social Security number. The permit holder must also notify the Beer Inspector in writing within seven (7) days of any such employee leaving the employment of a permit holder. This section shall not apply to employees with a server permit issued by the Tennessee Alcoholic Beverage Commission.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-64. Prohibited acts on premises.

(a) No operator, entertainer, or employee of any establishment licensed under this chapter shall permit to be performed, offer to perform, perform, or allow customers, employees, or entertainers to perform sexual intercourse or oral or anal copulation or other contact stimulation of the genitalia on the premises.

(b) No operator, entertainer, or employee shall encourage or permit any person upon the premises to touch, caress, or fondle the breasts, buttocks, anus, or genitals of any other person.

(c) No operator, entertainer, employee, or customer shall be unclothed or in such attire, costume, or clothing so as to expose to view any portion of the sex organs, breasts, or buttocks of said operator, entertainer, or employee with the intent to arouse or gratify the sexual desires of the operator, entertainer, employee, or customer.

(d) No entertainer, employee, or customer shall be permitted to have any physical contact with any other entertainer, employee, or customer on the premises during any performance and all performances shall only occur upon a stage at least eighteen (18) inches above the immediate floor level and removed at least six (6) feet from the nearest entertainer, employee and/or customer.

(e) Any display of any films or pictures depicting any live performance of acts which are prohibited by subparagraphs (a) through (d) of this section is prohibited upon the premises.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-65. Hotels, clubs, lodges, poolrooms, theaters.

(a) *Hotels.* Permits may be issued under this division to hotels for sale and consumption on the premises in rooms where meals or lunches are served and in guests' rooms.

(b) *Clubs and lodges.* Permits may be issued under this division to clubs or lodges which are regularly incorporated, operating under a charter and bylaws, whose members must pay a substantial initiation fee. and which are organized and exist for purposes other than the sale of beverages under such permits.

(c) *Motion picture theaters.* Permits may be issued under this division to theaters as defined at T.C.A. § 57-4-102(37).
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-66. To be posted.

The permit issued under this division shall be posted in a conspicuous place on the premises of the permittee.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-67. Regulation of outdoor advertising.

Pursuant to Tennessee Code Annotated, Section 57-5-304, outdoor advertising signs that advertise beer are regulated as follows:

(a) No outdoor sign, advertisement or display that advertises beer may be erected or maintained on the property on which a retail beer establishment is located other than one (1) sign, advertisement or display which makes reference to the fact that the establishment sells beer but does not use brand names, pictures, numbers, prices, or diagrams relating to beer.

(b) This Act shall not apply to any sign, advertisement or display erected or maintained by or at the request of a temporary beer permittee or to any sports arena, stadium, or entertainment complex.

(c) Any sign, advertisement or display prohibited by this Act which is painted on or before the effective date of this Act onto an exterior wall of a building in which a retail beer establishment

is located shall be removed no later than January 1, 1991. Any other sign, advertisement or display erected on or before the effective date of this Act and prohibited by this Act shall be removed no later than January 1, 1989.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-68. Consumption of alcoholic beverages and beer prohibited in certain places; open containers of alcoholic beverages and beer prohibited in certain places.

(a) For the purposes of this section, "open container," means any drinking or pouring vessel, including any open or unsealed bottle, jar, can, cup, or container without a lid or with a lid but with a straw protruding therefrom or with only a partial lid, with the contents being capable of immediate consumption.

(b) It shall be unlawful for any person to drink or consume any alcoholic beverage or beer or have an open container of alcoholic beverage or beer in or on any of the following places:

(1) Public street, alley, avenue, highway;

(2) Public sidewalk;

(3) Public park;

(4) Public school ground;

(5) Any other public place;

(6) Teen social clubs, as defined in Chapter 11 of this Code; and

(7) Any parking lot held open to use by the public.

(c) It shall be unlawful for any person to consume any alcoholic beverage or beer upon the private business premises of another without permission of the owner or person in control of such premises.

(d) All teen social clubs, as defined in Chapter 11 of this Code, shall post signs in visible locations prohibiting consumption of beer and alcoholic beverages on the premises as follows: "No consumption of or open containers of beer or alcoholic beverages permitted on these premises." Such signs shall be located (1) at the entrance to the establishment, (2) inside the establishment near all exits, and (3) in the parking lot or parking lots of such establishments.

(e) This section shall not prohibit the sale or consumption of beer or alcoholic beverages permitted pursuant to a temporary beer permit issued by the Beer Board of the City or pursuant to a special occasion license issued by the Tennessee Alcoholic Beverage Commission provided that (1) the location of such sale or consumption has been designated in the temporary beer permit issued by the Beer Board of the City or in the special occasion license issued by the Alcoholic Beverage Commission, (2) the activities at such location conform to the requirements of the Chattanooga City Code and the Alcoholic Beverage Commission, and (3) such sale and consumption is confined to the location designated in the temporary beer permit or special occasion license.

(f) This section shall not prohibit the consumption of beer as defined at T.C.A. § 57-5-101(b), and amendments thereto, by weight on a pedal carriage as defined in City Code § 35-241 provided that the pedal carriage is operated in compliance with City Code § 35-252(h).

(g) This section shall not prohibit the consumption of beer or alcoholic beverages on Station Street located between Market Street and Rossville Avenue during times that the following conditions are met:

(1) All beer and alcoholic beverages on the premises are sold and served only by a business located within or adjacent to Station Street;

(2) All beverages, whether alcoholic or not, are dispensed in paper or plastic cups that are clearly labeled with the words "Station Street" and/or "STST" and/or a Station Street logo and that all businesses located within or adjacent to Station Street utilize cups with a uniform design;

(3) Signs are erected at exits from Station Street giving conspicuous notice to pedestrians that beer and alcoholic beverages may not be removed from Station Street; and,

(4) No beer or alcoholic beverages may be sold at any location defined in subsection (b) of this section.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-69. Consumption of alcoholic beverages and beer in parklet cafés open containers of alcoholic beverages and beer in parklet cafés.

(a) A parklet café shall mean an expansion of a restaurant or bar (the, "establishment") creating an outdoor dining and/or drinking area on part of the public street right-of-way that immediately adjoins the premises for the purpose of consuming food or beverage prepared at the establishment adjacent thereto. A parklet café must obtain a temporary use permit from the Transportation Department.

(b) Sections 5-87 and 5-105 of this Code shall not apply to a parklet café if the establishment complies with the following provisions:

i. The area of the parklet café shall be clearly defined with a forty-two (42") inch high (measured from the street asphalt) sturdy barrier such as freestanding sectional fencing, rope, or chain erected on all four (4) sides.

ii. The area of the parklet café shall have one (1) clear entrance opening to the sidewalk. The entrance to the parklet café shall be at least forty-eight (48") inches wide to accommodate a wheelchair but may not be more than sixty (60") inches wide.

iii. Beer and/or alcoholic beverages may be sold and served in the parklet café only if the beer permit and/or alcohol license of the establishment includes the area of the parklet café as part of the establishment's premises.

iv. Beer and/or alcoholic beverages may be sold and served only by employees of the establishment and sold or served only to patrons seated in the parklet café.

v. No beer or alcoholic beverage may be served or consumed on the sidewalk between the establishment's premises and the parklet café nor may an open container of beer or alcoholic beverage be in the possession of anyone while on the sidewalk between the establishment's premises and the parklet café other than an open container in the possession of an employee of the establishment while in the process of serving the beer or alcoholic beverage to a patron in the parklet café or while in the process of removing the beer or alcoholic beverage from the parklet café.

vi. The establishment shall not allow patrons of the parklet café to bring beer or alcoholic beverages into the parklet café, nor to carry open containers of beer or alcoholic beverages about the parklet café area, nor to carry open containers of beer or alcoholic beverages served in the parklet café outside the parklet café area.

vii. The area of the establishment from which the beer and alcoholic beverages are dispensed shall be located indoors and shall not be located in the parklet café area.

viii. At times of closing or during times when consumption of beer or alcoholic beverages is prohibited, the establishment shall remove from the parklet café all containers used for or containing beer or alcoholic beverages.

(Ord. No. 14090, § 1, 3-12-24)

Secs. 5-70—5-100. Reserved.

ARTICLE IV. LIQUOR (AS DEFINED AT T.C.A. § 57-5-101(a)(1), AND AMENDMENTS THERETO)

DIVISION 1. GENERALLY

Sec. 5-101. Scope of article.

The provisions of this article shall apply to all alcohol beverages as defined by Tennessee Code Annotated, Section 57-3-101, and amendments thereto. It shall not apply to beer as defined at T.C.A. § 57-5-101(b), and amendments thereto, regulated under the provisions of article III of this chapter.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-102. Dealing in beverages declared lawful.

It shall be lawful to manufacture, store, transport, sell, possess, distribute, and receive alcoholic beverages in the city, subject to the provisions of this article.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-103. Powers and duties of inspectors.

The inspectors employed by the city shall examine the records of wholesale and retail dealers in the city and shall enforce in the city the state laws and city ordinances and rules and regulations promulgated by the alcoholic beverage commission of the state with reference to the sale, possession, storage, delivery, and distribution of alcoholic beverages. Such inspectors shall have the powers and authority of police officers.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-104. Violations to be reported; request for revocation of license.

Each inspector shall report to the chief of police any violations of state law and rules and regulations promulgated by the alcoholic beverage commission of the state or any other law or regulation relating to the possession, sale, or delivery of alcoholic beverages. The chief of police shall, when he deems it warranted, report any such violations to the mayor or city council, and the mayor or a majority of the city council may in turn certify such facts to the alcoholic beverage commission of the state when deemed appropriate with the request that the license of such violator be revoked.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-105. Drinking in public or prohibited places.

It shall be unlawful for any person to publicly drink alcoholic beverages on any public street, public sidewalk or in any public park.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-106. Prohibited acts on premises.

(a) It shall be unlawful for any person owning or operating a premises having a permit for consumption of alcoholic beverages on the premises to knowingly permit or allow any person to perform therein any of the following acts or conduct:

(1) The performance of acts or simulated acts of sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation, or any sexual acts which are prohibited by law;

(2) The actual or simulated touching, caressing, or fondling of the breasts, buttocks, anus, or genitals in public; or

(3) The actual or simulated public display of the pubic hair, anus, vulva, or genitals.

(b) It shall be unlawful for any female in any place where a permit has been issued for the consumption of alcoholic beverages on the premises so costumed or dressed that one or both breasts are wholly or substantially exposed to public view, and it shall be unlawful for the owner or operator of such premises to knowingly permit or allow any such person to appear on the premises owned or operated by him. "Wholly or substantially exposed to public view" as it pertains to breasts shall mean the showing of the female breast with less than a fully opaque covering of any portion of the breast below the top of the nipple. (Ord. No. 14090, § 1, 3-12-24)

Sec. 5-107. State regulations for purchase and sale of intoxicating liquors adopted by reference.

Tennessee Code Annotated, Sections 57-3-404, 57-3-405 and 57-3-406 as may be amended from time to time, are hereby incorporated herein by reference and made a part hereof.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-108. Location and signs for liquor stores.

(a) No lot proposed for a liquor store site may be located within two hundred (200') feet from the nearest property line of a site which is used for the purpose of a recreational park (ornamental parks are not to be considered in this requirement), place of worship, school (an academic learning center whether public or private, from the level of nursery through twelfth grade), day care center or other liquor store. Measurement shall be made from the nearest property line of the applicant's premises to the nearest property line of the above mentioned uses. Measurements for leased premises shall be measured from the property line of the applicant to the nearest property line of the above mentioned uses measured on a straight line basis. For purposes of this subsection, the applicants' property line on leased premises shall be construed to be the nearest point of a leasehold line.

(b) The distance prohibition set forth in Subsection (a) shall not apply to a retail license or permit for the sale of wine and/or high alcohol content beer as defined by T.C.A. § 57-3-101 within the area zoned C-3 Central Business District or within the area zoned pursuant to the Downtown Form-Based Code (City Code Chapter 38, Article XVI).

(c) (1) The distance prohibition set forth in Subsection (a) shall not apply to a retail license or permit within the areas zoned C-3 Central Business District or within the Downtown Core and Urban Form-Based Code Context Areas for liquor stores that have gross sales of distilled beverages (defined as: "alcoholic beverages other than wine and beer (both high alcohol content beer as defined by T.C.A. § 57-3-101 and beer as defined by T.C.A. § 57-5-101)" that is thirty-three (33) percent or less than the total gross sales of the liquor store.

(2) In order to qualify for the provisions of Subsection (c)(1), a liquor store located within the areas zoned C-3 Central Business District or within the Downtown Core and Urban Form-Based Code Context Areas must comply with the following:

(i) Each calendar year (by no later than February 15 of each year), the liquor store must file with the Land Development Office, or its successor, a sales report for the preceding year stating the liquor store's total gross sales and the liquor store's gross sales of distilled beverages. The report shall be certified by a Tennessee Certified Public Accountant.

(ii) Should the gross sales of distilled beverages exceed thirty-three (33%) percent of the total gross sales of the liquor store for a calendar year, the liquor store's right to sell distilled beverages shall be suspended for one (1) year.

(iii) Should a liquor store fail to file the report required in Subsection (i) by February 15, the liquor store's right to sell distilled beverages shall be immediately suspended and the right to sell distilled beverages will not resume until the liquor store has complied with Subsection (i) and demonstrated that the gross sales of distilled beverages did not exceed thirty-three (33%) percent of the total gross sales of the liquor store for the preceding calendar year.

(d) Signs on liquor stores and on lots containing liquor stores shall conform to the following regulations:

(1) As used in this subsection (b), the following words and phrases shall be deemed to have the same definitions set forth in Chapter 3 of this Code: attached sign, banner, detached sign, facade, free-standing sign, incidental sign, premises, projecting sign, roof sign, sign, and sign area.

(2) Each premises upon which a liquor store is located and upon which no other business or establishment is located shall be allowed one (1) free-standing sign which shall conform to the following restrictions:

a. Such sign shall not have more than two (2) sign faces, and the sign area of each face shall not exceed thirty (30) square feet.

b. Each face of such sign shall spell out the word "liquor," and no other letters, words, phrases, or designs shall be allowed on the sign.

c. Such sign shall have a white background and red letters, and no other colors shall be permitted on the sign face.

d. The top edge of such sign shall not exceed twenty (20) feet above the ground upon which the sign is located.

e. No such free-standing sign shall be located closer than ten (10) feet to the closest point of the nearest public right-of-way, and no such sign shall be located closer than forty (40) feet to two (2) or more public rights-of-way.

(3) A liquor store located on premises upon which any other business or establishment is located shall be allowed one (1) free-standing sign, provided, however, that such free-standing sign shall not be in addition to any detached sign(s) permitted by Chapter 3 of this Code. Such free-standing sign shall conform to the provisions of subsection (b)(2) above or, in the alternative, if and only if a free-standing sign is maintained on the premises which lists or designates two (2) or more of the other businesses or establishments on the premises, shall conform to the following restrictions:

a. Such liquor store sign shall be a part of the free-standing sign listing or designating the other businesses or establishments on the premises.

b. Each sign face of such liquor store sign shall have maximum dimensions of ten (10) feet horizontally and three (3) vertically.

c. Such liquor store sign shall have not more than two (2) sign faces, and the sign area of each face shall not exceed thirty (30) square feet.

d. Each face of such sign shall state only the following: "(NAME GIVEN TO LIQUOR STORE, AT OPTION OF OWNER) PACKAGE (or LIQUOR) STORE."

e. No such liquor store sign shall be added to or placed upon any free-standing sign which does not conform with the provisions of Chapter 3 of this Code.

(4) In addition to the free-standing sign permitted above, each premises upon which a liquor store is located shall be allowed one (1) attached sign, not in excess of one hundred twenty (120) square feet in sign area, on each facade of the liquor store which faces a public right-of-way immediately

adjacent to the premises. Such sign(s) shall state only the following: "(NAME GIVEN TO LIQUOR STORE, AT OPTION OF OWNER) PACKAGE (OR LIQUOR) STORE." Such attached sign shall be placed only upon an exterior wall of the area occupied by the liquor store and shall not be placed upon an exterior wall of the space occupied by any other business or establishment on the premises.

(5) In addition to the free-standing and attached signs permitted above, the owner or occupant of a liquor store shall be allowed one (1) on-premise banner not in excess of forty (40) square feet in sign area. Any such banner shall be mounted flush with the facade to which it is attached and shall be securely fastened on all four (1)corners.

(6) No free-standing sign or attached sign allowed pursuant to subsections (b)(2) and (b)(3) above shall be erected or installed without a sign permit which shall be issued in conformance with the provisions of sections 3-6, 3-7, 3-8 and 3-9(a) of this code. No sign permit for such signs shall be issued unless all other existing liquor store signs on the premises are in compliance with the provisions of this subsection (b). Each free-standing liquor store sign shall be subject to the annual safety inspection fee set forth in section 3-8 of this code and, upon failure to pay same, shall be subject to removal as provided in Chapter 3, Article I of this code.

(7) No roof sign shall be permitted for any liquor store. Incidental signs shall be allowed on liquor stores without the necessity of obtaining a sign permit.

(8) Liquor stores are permitted on-premise window signs within the interior of the building. These signs are to state only the following: "(NAME GIVEN TO LIQUOR STORE, AT THE OPTION OF THE OWNER) PACKAGE (OR LIQUOR) STORE."

(9) No off-premise sign referring to a liquor store can be located within five hundred (500) feet of the premises upon which there is a proposed or existing liquor store.

(10) All signs as described above, if illuminated, shall have internal illumination, and shall not have blinking, flashing, or pulsating lights or moving parts.

(11) Any violation of the provisions of this article by any person is declared to be a public nuisance and shall be abated as set out hereinafter. Every sign to which the prior provisions of this article applied that was erected prior to June 17, 1975, and was in use on such date, but which violates any of the present or prior provisions of this article, shall not be subject to removal until or unless the location ceases to be used as a retail liquor store; then and thereafter such location shall fully comply with all the provisions of this article. Every sign to which the provisions of this article shall apply that was legally erected prior to the effective date of this section and was in use on such date, but which violates any of the provisions of this article, shall not be subject to removal until or unless the location ceases to be used as a retail liquor store; then and thereafter such location shall fully comply with all the provisions of this article.

(12) Upon ascertaining a violation of the provisions of this article, the building inspector shall cause to be served upon both the offender or his agent and upon the owner or his agent or the occupant(s) of the premises a written notice to abate which shall (1) describe the conditions constituting a nuisance under the subparagraph (b)(11) of this section, and (2) state that the nuisance may be abated by the City at the expense of the offender or the owner or the occupant of the premises at the expiration of not less than fifteen (15) days nor more than sixty (60) days from the date of such notice if such condition is not corrected by the offender or the owner or the occupant or the person in control of the premises.

(13) If at the expiration of the time given in such notice to abate the condition constituting a nuisance has not been corrected, then such conditions shall be corrected and the nuisance abated by the City at the expense of the offender or the owner or the occupant of the premises under the direction of

the building inspector, and the City shall have a lien on the property to secure the amount expended by the abatement of such nuisance which shall be superior to all other contractual liens.

(14) An appeal in writing may be taken within five (5) days from any adverse decision of the building inspector and shall be filed with the city council, whose decisions after notice and hearing shall be final.

(Ord. No. 14090, § 1, 3-12-24; Ord. No. 14167(1), § 1, 11-5-24)

Sec. 5-109. Site plans to be submitted.

(a) The applicant for a license under division 2 of this article must submit a site plan to the executive director of the Chattanooga-Hamilton County regional planning commission for the proposed liquor store drawn at a minimum scale of one (1) inch equals one hundred (100) feet, and the site plan shall:

(1) Define the location, size, accessibility, and existing zoning of the proposed site;

(2) Indicate the surrounding type of development and land use within six hundred (600) feet of the property lines;

(3) Detail the location of all structures and parking areas which are to be utilized by the liquor store owner or tenant;

(4) In addition to the above, the executive director of the regional planning commission or the city council may require such other additional information as may be determined necessary to adequately review the proposed site.

(b) The planning staff of the Chattanooga-Hamilton County regional planning commission shall conduct an analysis of the proposed liquor store site which will include, but shall not be limited to, the following:

(1) A land use survey of the surrounding development;

(2) Off-street parking and loading facilities;

(3) Proposed points of access and ease of ingress and egress;

(4) The lot, yard, and open space requirements; and

(5) Whether a traffic hazard will be created.

(c) The executive director shall submit the findings of the staff of the Chattanooga-Hamilton County regional planning commission to the city council for consideration and action. This report is to include, but is not limited to, the following areas of concern:

(1) The probable effect on the property adjacent to the site under consideration.

(2) The consistency of the proposal with the intent and purpose of this article to promote public health, safety, morals, and general welfare.

(3) Additional requirements which are needed in order to make the development more compatible with the surrounding land use.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-110. Distilleries.

Distilleries, as defined at T.C.A. § 57-3-101, are allowed only on property zoned C-2 Convenience Commercial, C-3 Central Business, UGC Urban General Commercial, M-1 Manufacturing Zones, and the D-CX, D-SH, U-CX, U-SH, U-IX, U-CC, U-IN, E-CX, E-SH, E-IX, and E-IN zones of the Downtown Chattanooga Form-Based Code and must comply with the following:

(a) For the C-2 Convenience Commercial, UGC Urban General Commercial, and M-1 Manufacturing Zones:

(1) Consumption of alcoholic beverages not manufactured on the premises by the distiller shall be prohibited;

(2) Processing and bottling of products not produced by the distiller shall be prohibited in C-2 Convenience Commercial and UGC Urban General Commercial Zones; and,

(3) The following activities are permitted with this use:

A. Growing, harvesting and other products suitable for processing and bottling products produced on the premises;

B. Sale of alcohol manufactured on the premises by the distiller for off premise consumption;

C. Sale of merchandise related to alcohol or the distillery;

D. Tastings involving serving to the public for the purpose of sampling the alcohol manufactured or distilled at the premises by the distiller; and,

E. Special events such as weddings, dances, and other social occasions associated with the distillery.

(4) Notwithstanding the prohibition in Subsection (a)(1), alcoholic beverages not manufactured on the premises by the distiller may be consumed on the site provided the alcoholic beverages are provided by a caterer holding an appropriate license from the Tennessee Alcoholic Beverage Commission and/or permit from the Beer Board of Chattanooga as required by law.

(b) For the C-3 Central Business Zone and the D-CX, D-SH, U-CX, U-SH, U-IX, U-CC, U-IN, E-CX, E-SH, E-IX, and E-IN zones of the Downtown Chattanooga Form-Based Code:

(1) Consumption of alcoholic beverages not manufactured on the premises by the distiller shall be prohibited;

(2) Processing and bottling of products not produced by the distiller shall be prohibited; and,

(3) Three (3) of the following activities shall be required with this use:

A. Growing, harvesting and other products suitable for processing and bottling products produced on the premises;

B. Sale of alcohol manufactured on the premises by the distiller for off premise consumption;

C. Sale of merchandise related to alcohol or the distillery;

D. Tastings involving serving to the public for the purpose of sampling the alcohol manufactured or distilled at the premises by the distiller; and,

E. Special events such as weddings, dances, and other social occasions associated with the distillery.

(4) Notwithstanding the prohibition in Subsection (b)(1), alcoholic beverages not manufactured on the premises by the distiller may be consumed on the site provided that the alcoholic

beverage is provided by a caterer holding an appropriate license from the Tennessee Alcoholic Beverage Commission and/or permit from the Beer Board of Chattanooga as required by law.

(Ord. No. 14090, § 1, 3-12-24)

Secs. 5-111—5-120. Reserved.

DIVISION 2. LICENSE

Sec. 5-121. Required.

Before any person in the city shall engage in the manufacture or sale at wholesale or retail of alcoholic beverages, to include beverages for consumption on the premises, he shall obtain a license or permit therefor as provided by Title 57, Tennessee Code Annotated, and shall have paid to the city treasurer, any and all privilege taxes or inspection fees, including interest and penalties thereon, which the city may be authorized by law to collect.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-122. Application for certificate; contents.

(a) Before any certificate as required by Tennessee Code Annotated, section 57-3-208 shall be signed by the mayor or any member of the city council, an application in writing shall be filed with the city treasurer on a form to be provided by the city giving the following information:

(1) Name, age, and address of the applicant.

(2) Number of years resident in the city.

(3) Occupation or business and length of time engaged in such occupation or business.

(4) Whether or not the applicant has been convicted of the violation of any state or federal law or of the violation of this Code or any city ordinance, and, if so, the date and offense for which such person was convicted, and whether it constituted a felony, misdemeanor, or ordinance violation.

(5) If employed, the name and address of employer.

(6) If in business, the kind of business and location thereof.

(7) The location of the proposed store for the sale of alcoholic beverages.

(8) The name and address of the owner and the amount of rent to be paid.

(9) The amount of money invested or to be invested and the source of the funds to be used and, if borrowed, the name of the person from whom borrowed, and the name of the bank with which applicant does business, and the name of any person who is aiding the venture financially, either by loan or endorsement.

(10) The name of any person who will be interested directly or indirectly in the business with applicant, and if the applicant owns an interest directly or indirectly in any other retail liquor store.

(11) If the applicant is a partnership, the name, age and address of each partner and his occupation, business, or employer.

(12) If the applicant is a corporation, the application shall contain sufficient information to verify that the corporation is qualified for a license under the provisions of Tennessee Code Annotated, section 57-3-202, 57-3-203 or 57-3-204, as applicable.

(13) Whether the applicant or any member of his family, whether blood kin or by marriage, has any interest directly or indirectly in any other retail or wholesale liquor business by way of stock ownership, loan, partner's interest or otherwise which is prohibited by Tennessee Code Annotated, section 57-3-406(a).

(14) The present zoning of the site of the proposed liquor store.

(b) The application required herein shall be verified by the oath of the applicant; if the applicant is a partnership, it shall be verified by the oath of each partner; and, if the applicant is a corporation, it shall be verified by the oath of its president.

(c) The original and five (5) copies of the application shall be filed with the office of the city treasurer.

(1) One (1) copy shall be returned to the applicant showing the date and time when the application was filed with the city treasurer.

(2) One (1) copy shall be promptly forwarded to the traffic engineer, who shall make a report in writing to the mayor and city council and the city treasurer within thirty (30) days giving a recommendation as to whether the proposed site is suitable from the standpoint of satisfactory traffic flow.

(3) One (1) copy shall be promptly forwarded to the chief of police, who shall cause an investigation of the applicant to be made relative to his or her character, prior criminal record, if any, and any other pertinent information together with a recommendation as to whether the applicant is of good moral character and shall report in writing the findings and a recommendation to the mayor and city council and the city treasurer within thirty (30) days.

(4) One (1) copy shall be promptly forwarded to the executive director of the Chattanooga-Hamilton County regional planning commission, who shall cause his staff to determine whether the proposed site of the liquor store complies with all applicable ordinances and shall report the findings and a recommendation in writing within thirty (30) days to the mayor and city council and the city treasurer.

(5) One (1) copy shall be promptly forwarded to the office of the city attorney.

(d) Within sixty days (60) days from the date when the application is filed, the city council shall require the applicant to appear for a hearing as provided in section 5-124 and after which the city council shall by motion either grant or deny the application. If granted, a majority of the city council shall then sign the certificate as provided by Tennessee Code Annotated, section 57-3-208.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-123. Applicant to agree to comply with laws.

The applicant for a certificate for a license under this division shall agree to comply with the state and federal laws and ordinances of the city and rules and regulations of the alcoholic beverage commission of the state with reference to the sale of alcoholic beverages.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-124. Applicant to appear before city council; duty to give information.

An applicant for a certificate for a license under this division, a renewal of a license or a transfer of a license, whether to a new owner or a different location, shall be required to appear in person before the city council for such examination as may be desired by the city council. He shall furnish such information as

may be required, and shall agree to the examination of his bank account, books, records, or other accounts by any member of the council or by any person designated by the council to make such investigation and examination.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-125. Action on application.

The action of the city council on an application for a certificate for a license under this division shall be noted thereon, and such application shall be forwarded to the alcoholic beverage commission by the city treasurer.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-126. Number limited.

The number of retail liquor stores in the area of the City of Chattanooga shall be limited to one per three thousand (3,000) inhabitants of the entire City of Chattanooga area according to the most recent federal decennial census, beginning with 2020.
(Ord. No. 14090, § 1, 3-12-24; Ord. No. 14167(3), § 1, 11-5-24)

Secs. 5-127—5-140. Reserved.

DIVISION 3. INSPECTION FEE ON RETAIL SALES; PRIVILEGE TAX FOR CONSUMPTION ON PREMISES

Sec. 5-141. Definition.

The term "alcoholic beverages," for the purpose of this article, shall mean and include whiskey, wine, rum, gin, and all other alcoholic beverages, as defined by the provisions of Tennessee Code Annotated, section 57-3-101.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-142. Inspection fee—levied; amount; collection.

There is hereby levied upon licensed retailers of alcoholic beverages in the city an inspection fee to be measured by the wholesale price of the alcoholic beverage purchased by the retailer. The inspection fee shall be five percent (5%) of the wholesale price of alcoholic beverages supplied by a wholesaler. The inspection fee shall be added by the wholesaler to each invoice for alcoholic beverages sold to each retailer within the city and shall be collected by such wholesaler from such retailer and remitted to the city treasurer as provided in this division.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-143. Same—to be remitted to treasurer by wholesalers; sales on credit; reports by wholesalers.

The inspection fee provided for in this division shall be remitted by all wholesalers who sell alcoholic beverages within the city to the city treasurer not later than the twentieth day of each month for the preceding month. The wholesaler is hereby required to collect the inspection fee from the retailer at the time of delivery of all alcoholic beverages on which the inspection fee is levied, and if credit is granted by the wholesalers to the retailers, then the obligation to the city for the inspection fee shall be that of the wholesaler. Every wholesaler who makes sales to retainers within the city shall make a monthly report to

the city treasurer upon such form as may be prescribed by the city treasurer. The city treasurer shall have the authority to audit the records of wholesalers reporting to him in order to determine the accuracy of such reports.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-144. Same—compensation of wholesalers.

Every wholesaler of alcoholic beverages, in reporting and paying the inspection fee imposed by this division, shall be entitled to deduct, and retain from the inspection fee collected as compensation or reimbursement for his services in collecting the inspection fee five percent (5%) of the inspection fee collected and remitted. Failure to collect and timely report and/or pay the inspection fee collected shall result in a penalty of ten (10) percent of the fee due the city.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-145. Consumption on premises; privilege tax levied.

(a) It is hereby declared that every person is exercising a taxable privilege who engages in the business of selling at retail in this city alcoholic beverages for consumption on the premises. For the exercise of such privilege, the following taxes are levied for city purposes to be paid annually:

(1) Private club - $300.00

(2) Hotel and motel - $1,000.00

(3) Convention center - $500.00

(4) Premiere type tourist resort - $1,500.00

(5) Restaurant, according to seating capacity, on licensed premises:

a. 75—125 seats - $600.00

b. 126—175 seats - $750.00

c. 176—225 seats - $800.00

d. 226—275 seats - $900.00

e. 276 seats and over - $1,000.00

(6) Limited Service Restaurants based on the gross sales of prepared food:

a. at least 30% but not more than 50% of gross - $2,000.00

b. at least 20% but not more than 30% of gross - $3,000.00

c. at least 15% but not more than 20% of gross - $4,000.00

(7) Commercial passenger boat company - $750.00

(b) The privilege tax levied by this section shall be remitted annually to the city treasurer no later than December 31st of each year.
(Ord. No. 14090, § 1, 3-12-24)

Secs. 5-146—5-160. Reserved.

ARTICLE V. BOTTLE CLUBS (BROWN BAGGING)

DIVISION 1. GENERALLY

Sec. 5-161. Scope of article.

The provisions of this article shall apply to all persons who operate an establishment selling setups for mixed drinks, and who permit brown bagging. It shall not apply to those persons or businesses licensed or permitted under the provisions of article II of this chapter or having a permit for the sale of alcoholic beverages for consumption on the premises issued by the alcoholic beverage commission of the state under the provisions of T.C.A. section 57-4-201.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-162. Definitions.

As used in this article, the following definitions shall apply:

Brown bag or *brown bagging* shall mean the practice of patrons, customers or guests bringing beer or other alcoholic beverages upon the premises of any person selling setups for mixed drinks.

Person selling setups for mixed drinks shall mean and include any person deriving receipts from the sale of setups for mixed drinks consumed on the premises and shall include any country club, nightclub, or private club in the nature of any social, dinner, athletic or sporting club or organization, and any fraternal society, order, or association making sales and charges for any of these items. The term shall not include sales of setups by cafes, cafeterias, and restaurants which are merely incidental to the principal business, and where no bar, lounge, or separate facility is maintained for the purpose of serving or selling setups for mixed drinks.

Setups for mixed drinks shall mean and include sales of water, soft drinks, fruit juices, or any item capable of being used to prepare a mixed drink at such establishment.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-163. Beer board and beer inspectors to enforce article.

(a) The city beer board, created and operating under the provisions of article II of this chapter, shall issue permits, and revoke or suspend licenses, except where such action would be inconsistent with any specific provision of this article.

(b) The beer inspector appointed and acting under the provisions of section 5-43 and other applicable ordinances shall enforce all laws, ordinances and rules regulating establishments selling setups for mixed drinks or permitting brown bagging.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-164. Hours regulated.

No permittee under division 2 of this article shall sell any setup for purposes of mixing with alcoholic beverages or permit any alcoholic beverages to be consumed on the premises between the hours of 3:00 a.m. and 8:00 a.m. on weekdays or between the hours of 3:00 a.m. and 12:00 noon on Sundays. The permittee shall not permit or suffer the presence of any alcoholic beverages on the premises during such hours.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-165. Sales to incapacitated or incompetent persons prohibited.

No permittee under division 2 of this article shall permit or allow any intoxicated person to be on the premises.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-166. Employment of minors.

No person under the age of eighteen (18) years shall be permitted to dispense, serve, or sell setups in any establishment which has been issued a permit under division 2 of this article.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-167. Immoral acts prohibited at premises.

It shall be unlawful for any person to appear or be on the premises of a permittee under division 2 of this article so costumed or dressed that one (1) or both breasts are wholly or substantially exposed to public view, and it shall be unlawful for any permittee to permit or allow any such person to appear or be in or on the premises. Further, it shall be unlawful to perform, or for the permittee to allow to be performed, on the premises any of the following acts or kinds of conduct:

(1) The performance of acts, or simulated acts, of sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation, or any sexual acts which are prohibited by law;

(2) The actual or simulated touching, caressing, or fondling of the breasts, buttocks, anus, or genitals;

(3) The actual or simulated displaying of the pubic hair, anus, vulva, or genitals;

(4) The permitting by a permittee of any person to remain in or upon the licensed premises who exposes to public view any portion of his or her genitals or anus; or

(5) The displaying of films or pictures depicting acts, a live performance of which is prohibited by the sections quoted above.

(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-168. Telephone and reports of disorders.

All permittees are required to maintain a telephone in good working order on the premises and to report all fights and other public disorders occurring on such premises immediately, whether or not participants in any such disorder have left the premises.
(Ord. No. 14090, § 1, 3-12-24)

Secs. 5-169—5-180. Reserved.

DIVISION 2. PERMIT

Sec. 5-181. Required.

No person shall engage in the business of operating establishments selling setups for mixed drinks or permitting brown bagging without having been issued a permit therefor. Such permit shall be obtained upon application and payment of fees as hereinafter provided. A duly issued permit shall allow such establishments to permit its patrons, customers, or guests to bring alcoholic beverages upon its premises for purposes of personal consumption or to otherwise permit brown bagging.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-182. Application; fee.

(a) All applications for a permit to sell setups for mixed drinks or to permit brown bagging shall be filed with the beer inspector. The beer inspector shall make an investigation of the applicant and determine whether or not the location meets all the requirements of this article, and report his findings to the beer board. The beer board shall make such other and further investigation it deems advisable and shall issue or deny a permit in its discretion.

(b) The application shall be accompanied by a fee of one hundred dollars ($100.00) for use in offsetting the expense of investigating the applicant.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-183. Location to be designated.

The location of the premises at which the business of the permittee will be conducted shall be designated in his permit and in the application therefor.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-184. Grounds for refusal.

(a) No permit shall be issued where the operation of the business conducted thereunder may cause congestion of traffic, interfere with schools, churches, parks, or other places of public assembly, or otherwise interfere with the public health, safety, and morals, or where this article or any other law would be violated, including, but not limited to, the zoning laws. No permit shall be issued to any person or premises wherein a permit to sell beer or other alcoholic beverages or a permit under this article has been revoked within one (1) year or is under suspension.

(b) No such establishment shall be located within five hundred (500) feet, as measured from any doorway entrance of the applicant regularly used for public ingress and egress to the nearest doorway entrance to the school, church, or other place of public gathering to the nearest corner of the licensed establishment; provided, however, this prohibition shall not apply to any location within the area zoned C-3 Central Business District; provided, further, that, this distance proximity prohibition shall not apply to any location that had a preexisting business as of the effective date of Ordinance No. 8272, but if such location is without a permit for more than one hundred twenty (120) consecutive days, then the distance proximity prohibition contained in this section shall thereafter apply to such location.

(c) All applicants for a permit shall be required in their application to list and identify all schools, churches, or other places of public gathering which are believed to be within the distance specified in paragraph (b) of this section.

(d) The beer board may, in its discretion, require any applicant for a permit to submit as a part of his application a survey by a duly licensed surveyor when a school, church, or other place of public assembly is in close proximity to the applicant's premises; and when, because of limiting conditions such as topography, the accuracy of other methods of measurement is deemed to be inadequate and a survey is deemed reasonably necessary to establish an accurate distance relative to the applicant's entitlement to a permit under the provisions of this section.

(e) To the extent that it shall be called to the attention of the beer board that it may have issued any permit to a location not qualified under the provision of this section, then it shall be the duty of the beer board, upon notice to the permittee and an opportunity for the permittee to be heard, to revoke any permits which have been issued in violation of this section.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-185. When treasurer may issue.

The city treasurer shall issue no permit until the application therefor has been approved by the beer board and he has been notified by the beer board in writing to issue the same.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-186. To be posted.

The permit issued under this article shall be posted in a conspicuous place on the premises of the permittee.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-187. Not transferable.

No permit issued by the beer board under the provisions of this article shall be transferred from one (1) person to another.
(Ord. No. 14090, § 1, 3-12-24)

Sec. 5-188. Grounds for revocation or suspension.

(a) The beer board shall have the power to revoke or suspend, and shall be charged with the duty of revoking or suspending, any permits issued by it, upon notice to the permittee and a hearing thereon, for any violation of any provisions of this article or any other ordinance, state law or regulation or federal law or regulation governing the operation of such establishments or when the permittee:

(1) Operates a disorderly place; or

(2) Allows gambling on the premises; or

(3) Allows fighting or boisterous or disorderly conduct on the premises; or

(4) Has been convicted by final judgment of a court of competent jurisdiction of a crime involving moral turpitude; or

(5) Allows minors to congregate about the premises; or

(6) Sells or transfers the equipment or assets of the business authorized by his permit to another for the purpose of conducting the business at the same location; or

(7) Has made a false statement of a material fact in any application or notice to the board; or

(8) Sells, furnishes, disposes of or gives, or causes to be sold, furnished, disposed of or given, any setup to any person under the age of twenty-one (21) years when it reasonably appears that such person under the age of twenty-one (21) years will use the setup for purposes of mixing a drink with any alcoholic beverages; provided that, members of the armed forces of the United States on active duty upon showing of proper identification any purchase a setup notwithstanding they are less than the age of twenty-one (21) years; and provided further, that for the period from August 1, 1985, through July 31, 1986, this minimum age provision shall not apply to any person born before August 1, 1965, or for those nineteen (19) or twenty (20) years of age when accompanied by a parent or legal guardian; or

(9) Denies access to any portion of the premises wherein the use of setups for mixing alcoholic beverages is permitted, whether or not that portion of the premises issued specifically for the sale of setups; or

(10) Has been convicted by final judgment of any court of competent jurisdiction of any crime or misdemeanor involving the sale or consumption of beer or alcoholic beverages; or

(11) Allows any violation of any provision of this article to occur on the licensed premises; or

(12) Allows any violations of the rules and regulations of the health department; or

(13) Consumes or permits any employee to consume any alcoholic beverages while on the premises, or to be intoxicated while on the premises; or

(14) Allows litter or debris to accumulate in or around the premises, including the sidewalks and streets adjacent thereto; and/or fails to provide and maintain adequate solid waste containers.

(b) The beer board may also, in its discretion, revoke a permit for due cause not specified herein.
(Ord. No. 14090, § 1, 3-12-24)

ARTICLE VI. HEARING OFFICER

Sec. 5-190. Purpose.

The purpose of this article is to provide for the efficient, effective, and just resolution of claims arising out of offenses committed by holders of beer permits issued pursuant to the provisions of this chapter, through the creation of the position of a beer board hearing officer and rules of procedure by which to govern hearings before said officer.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-191. Hearing officer.

There shall be created the office of beer board hearing officer (hereinafter referred to as "hearing officer") for the purpose of the judicial administration of hearings to adjudicate issues relating to the suspension or revocation of beer permits and/or the issuance of fines pursuant to this chapter. Any provisions of this chapter which provide for the suspension or revocation of any beer permit, for the imposition of fines or other disciplinary action resulting from improper conduct of a business which holds a beer permit and which authorize the beer board to take such disciplinary action shall be construed to authorize the beer board to take such action by and through a properly qualified hearing officer duly appointed pursuant to the provisions of this part.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-192. Selection of hearing officer.

The Mayor shall establish a list of no more than five (5) hearing officers to conduct hearings pursuant to this article. All such hearing officers shall be persons licensed to practice law in the State of Tennessee and shall have experience in the area of litigation. They shall be subject to a confirmation vote by City Council.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-193. Compensation for hearing officer.

Hearing officers appointed under this article shall be compensated at a rate established by the Mayor and City Council, subject to biennial review.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-194. Removal of hearing officer.

Hearing officers shall be appointed for two-year terms, and appointments may be renewed by Mayor and confirmed by City Council. A hearing officer may resign at any time by providing written notice to the

Regulatory Unit and the City Attorney's office at least thirty (30) days prior to the date of resignation. In the event a hearing officer resigns, the Mayor shall, within thirty (30) days, appoint a new hearing officer to fill the vacancy.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-195. Clerk of beer board.

The Regulatory unit Admin Support Specialist, other support staff, or designee shall serve as clerk of the beer board. The duties of the clerk of the beer board shall include:

(1) The preparation of an application form for Hearing Officers;

(2) Receipt and maintenance of all records or files pertaining to any cases arising under this Article;

(3) Coordination of places and times for hearings pursuant to this article;

(4) Provide appropriate published notice to the public of the time and place for hearings to be conducted pursuant to this part; and

(5) Any other duties which may assist in the just, efficient, and effective enforcement of this Article.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-196. Procedure.

Proceedings pursuant to this section may be initiated in the following manner:

(1) The Regulatory Unit shall review citations issued by the Police Department for Beer Code violations;

(2) Following the receipt of the citations, the clerk of the beer board shall refer the matter to the next scheduled hearing officer for further proceedings consistent with this division. A copy of the citation also shall be forwarded by the clerk to each member of the beer board.

(3) All hearings conducted by a hearing officer pursuant to this part shall be open to the public. No fewer than five (5) days in advance of the initial hearing, the clerk of the beer board shall cause to be published in a newspaper of daily general distribution within the city, notice of the time of the hearing and the location where it is to be held.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-197. Answer.

Permittees served with notice pursuant to this part shall file with the clerk of the beer board, at the Regulatory Unit of the Chattanooga Police Department, a written answer to the allegations alleged in the complaint within fifteen (15) days of receipt of the notice. At the same time, permittees also shall transmit a duplicate copy of the written answer to the city law department.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-198. Default.

Failure of the permittee to file a written answer with the clerk of the beer board within the fifteen (15) day period shall constitute default. Upon default, the hearing officer shall be authorized to take any action the officer would be authorized to take upon a finding of noncompliance. Before a default judgment may be entered revoking or suspending a permit, there shall be evidence in the record establishing that the permit holder was served with notice as provided herein.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-199. Scheduling of hearing.

The clerk of the beer board and the duly selected hearing officer, in cooperation with the City Attorney's Office and the permittee or the permittee's representative, if known, shall set the time for the hearing, said time to be within sixty (60) days but not less than thirty (30) days after the receipt of notice by the permittee.

Upon the selection of a date for the hearing, it shall be the responsibility of the clerk of the beer board to forward a written notice of hearing to all parties. This notice shall contain the time, date, and place of hearing. The notice also shall contain notification to the permittee of the right to be represented by counsel.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-200. Conduct of hearing.

The burden shall be on the city to show by a preponderance of the evidence that the permittee is guilty of a noncompliance offense. If all evidence examined by the hearing officer leads the hearing officer to conclude that it is more likely than not that the permittee is guilty of a noncompliance offense, such proof shall constitute cause thereby justifying suspension, revocation, a monetary penalty, or such other sanctions as the hearing officer deems appropriate, consistent with the provisions of this chapter. The hearing officer will make findings of fact and recommendations for sanctions to the beer board.

Neither the Tennessee Rules of Evidence nor the Tennessee Rules of Civil Procedure shall be applicable to these hearings but the hearing officer is instructed to make every effort to conduct the hearing so as to provide a fair hearing and reasonable due process to both parties.

The hearing officer is empowered to exercise such reasonable discretion intended to result in the fair, expedient, and economical resolution of all cases brought pursuant to this article. The scope of that discretion includes, but is not limited to, the authority to amend the answer and citation, to grant or deny continuances and establish the length of time for such continuances, to grant rehearings, and to modify or rescind any recommendation.

The hearing officer shall render a decision at the conclusion of the hearing or within twenty-four (24) hours thereof.

A written report, stating the basis for the decision, shall be issued by the hearing officer within fifteen (15) days of the actual hearing date. Said report shall state the hearing officer's rationale, conclusions, and decision. The original of the report shall be filed with the clerk of the beer board with copies provided to the parties or counsel of record for the parties and to the chairperson of the beer board.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-201. Pre-hearing conference.

The written report shall be presented to the beer board at the next scheduled meeting after being received by the Regulatory Unit. At that meeting, the beer board shall vote to affirm or reject the findings of the Hearing Officer. If the board rejects the findings of the Hearing Officer, the board must state their rationale on the record and impose alternate sanctions or dismissal of the citation.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-202. Subpoenas.

At least ten (10) working days prior to the date of the hearing, all parties shall provide the clerk of the beer board with a list of the individuals they wish to have subpoenaed to appear at the hearing. The clerk

of the beer board has the discretion to determine whether any subpoenas not timely requested under this provision shall issue. It shall not be a basis for requesting a continuance that a witness subject to a subpoena requested in an untimely manner failed to appear at the hearing.

The subpoena request list must be typed and include the name, address, and phone number (business and home, if possible) of the individuals to be subpoenaed. If a subpoena duces tecum is requested, the nature of the documents or information sought by the party requesting the subpoena duces tecum must be set out on the subpoena request list.

The subpoenas may be served by a police officer of the city or by any officer authorized to serve subpoenas in state court. It shall be the responsibility of the requesting party to ensure that service is proper and complete.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-203. Transcripts and evidence.

All tape recordings shall be labeled and placed in the custody of the clerk of the beer board, unless and until said recordings are actually transcribed. The tape recordings shall be retained by the clerk of the beer board until all rights to an appeal of the hearing officer's decision are exhausted. A copy of any transcript prepared shall be retained permanently by the clerk of the beer board.

The clerk of the beer board shall not be required to obtain a transcript of any proceeding until the clerk has received a copy of a petition for judicial review of the matter in question.

Upon receipt of a copy of a petition for judicial review, it shall be the responsibility of the clerk of the beer board to have prepared a transcript of the proceedings. The clerk of the beer board shall send the original or a certified copy of the entire record of the proceeding under review to the reviewing court pursuant to Tennessee state law; unless a longer period of time is granted by the court.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-204. Appeals.

A final decision of the beer board may be appealed pursuant to T.C.A. § 57-5-108.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-205. Fines utilized to pay hearing expenses.

The funds derived from fines assessed against holders of beer permits shall be placed in a separate fund which shall be utilized: (1) to defray the costs and expenses associated with providing hearings pursuant to this part (such costs and expenses shall include, but not be limited to, equipment and supplies utilized by the clerk of the beer board with respect to such hearings regardless of whether such equipment and supplies are utilized for other purposes in addition to beer board uses); and (2) to the extent that the monies in this separate fund exceed fifty thousand dollars ($50,000.00), the excess may be designated to fund one-time projects related to underage drinking and/or alcohol abuse, upon approval of such projects by city council.
(Ord. No. 14167(2), § 1, 11-5-24)

Sec. 5-206. Reserved.

Chapter 6

AMUSEMENTS*

Article I. In General

Sec. 6-1. License required for carnivals, fairs.
Sec. 6-2. Carnivals which may be licensed.
Sec. 6-3. Signs, pictures, advertisements in front of places of amusement.
Sec. 6-4. Repealed.
Sec. 6-5. Repealed.
Sec. 6-6. Reserved.
Sec. 6-7. Reserved.
Secs. 6-8—6-20. Reserved.

Article II. Drive-In Theaters

Sec. 6-21. Permit required; application, approval.
Sec. 6-22. Location of screen towers.
Sec. 6-23. Entrance and exit roadways.
Secs. 6-24—6-40. Reserved.

Article III. Billiard Rooms or Pool

Sec. 6-41. Definitions.
Sec. 6-42. Permit—Required.
Sec. 6-43. Same—Application.
Sec. 6-44. Same—Fees and renewals.
Sec. 6-45. Same—Display.
Sec. 6-46. Same—Transferability; change of business location.
Sec. 6-47. Same—Revocation.
Sec. 6-48. Gambling.
Sec. 6-49. Permitting minor top lay billiards or pool without permission.
Secs. 6-50—6-60. Reserved.

Article IV. Reserved

Article V. Reserved

***Charter reference—**Authority to license and regulate theatrical and other exhibitions, § 2.1(17).

Cross references—Businesses, trades and occupations, Ch. 11; parks and playgrounds, Ch. 26; use of streets for carnivals, fairs and exhibitions, § 32-31.

ARTICLE I. IN GENERAL

Sec. 6-1. License required for carnivals, fairs.

It shall be unlawful for any person to operate a carnival or fair in the city without first obtaining a license from the city treasurer.
(Code 1986, § 6-1)

Sec. 6-2. Carnivals which may be licensed.

The city treasurer shall issue no license for the conduct of a carnival or fair, whether on private grounds or on property owned by the city, except when such carnival or fair is held in conjunction with a county, state or tri-state fair.
(Code 1986, § 6-2)

Sec. 6-3. Signs, pictures, advertisements in front of places of amusement.

No person shall place or maintain in front of or in connection with any place of public amusement or entertainment, any sign, picture or advertisement which misstates or misrepresents the pictures or other amusements or entertainments which are being shown on such place.
(Code 1986, § 6-3)

Sec. 6-4. Repealed.

(Ord. No. 11548, § 2, 5-4-04)

Editor's note—The repealed section dealt with Sunday entertainment—Authorized.

Sec. 6-5. Repealed.

(Ord. No. 11548, § 2, 5-4-04)

Editor's note—The repealed section dealt with Sunday entertainment—Work week of employees.

Sec. 6-6. Reserved.

Editor's note—Ord. No. 13386, § 3, adopted Oct. 23, 2018, repealed § 6-6, which pertained to human endurance contests and derived from Code 1986, § 6-6.

Sec. 6-7. Reserved.

Editor's note—Ord. No. 13386, § 3, adopted Oct. 23, 2018, repealed § 6-6, which pertained to hats not to be worn during performances and derived from Code 1986, § 6-7.

Secs. 6-8—6-20. Reserved.

ARTICLE II. DRIVE-IN THEATERS

Sec. 6-21. Permit required; application, approval.

Before any person shall construct, operate or maintain an open air drive-in theater, an application for a permit therefor shall be made to the city engineer, which application shall be accompanied by plans and specifications, including plot plan showing the entrance and exit roadways, which plans shall be approved by the city engineer before the application is submitted to the mayor.
(Code 1986, § 6-21; Ord. No. 9654, § 13, 1-6-92)

Sec. 6-22. Location of screen towers.

The screen tower of a drive-in theater shall be so placed and constructed that it cannot be seen from any street or highway by persons in any parked vehicle.
(Code 1986, § 6-22)

Sec. 6-23. Entrance and exit roadways.

All exit roadways shall take exit traffic being discharged from an open air or drive-in theater into a street of minor importance where vehicular traffic is at all times light. The plans shall show the exact proposed turn-outs from the streets or highways to the entrance roadway, which entrance roadway shall have sufficient radius to permit vehicles to turn into the entrance without undue slowing of traffic on the highway. The entrance and exit connections shall be so located that site distance standards which have been or may hereafter be set up by the city or state shall be met.
(Code 1986, § 6-23)

Secs. 6-24—6-40. Reserved.

ARTICLE III. BILLIARD ROOMS OR POOL*

Sec. 6-41. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Billiards or pool shall mean any of several games played on an oblong table surrounded by an elastic edge or cushions, with balls impelled by cue.

Billiard or pool table shall mean a table of any kind whatsoever used for the playing of billiards or pool which is kept, used, or operated for profit by any person. The term "billiard or pool table" shall not be deemed to include such a table kept or maintained solely for display and sale by a dealer.
(Code 1986, § 6-41)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 6-42. Permit—Required.

It shall be unlawful for any person to keep, use, or maintain any billiards table or pool table in the city without first obtaining a permit therefor from the city treasurer. No person under the age of eighteen (18) years shall be eligible to obtain a permit.
(Code 1986, § 6-42)

Sec. 6-43. Same—Application.

Before any person shall be granted a permit to operate a billiards or pool table, an application in writing shall be made to the city treasurer, giving the name of the applicant, the age of the applicant, and the proposed location of the billiard or pool table.
(Code 1986, § 6-43)

***Charter reference—**Authority to license and regulate poolrooms, § 2.1(15).

Sec. 6-44. Same—Fees and renewals.

The permit fee for the operation of a billiard or pool table shall be twenty-five dollars ($25.00) per annum for each billiard or pool table. A renewal of a permit may be issued on application to the city treasurer, as provided in section 6-43.
(Code 1986, § 6-44)

Sec. 6-45. Same—Display.

Each permit issued under this article shall be posted permanently and conspicuously at the location of the pool or billiards table on the premises where the table is to be maintained for operation.
(Code 1986, § 6-45)

Sec. 6-46. Same—Transferability; change of business location.

(a) The permit required under this chapter may be transferred from one (1) billiards or pool table to another, similar billiards or pool table, but not more than one (1) billiard or pool table shall be operated under one (1) permit at the same time.

(b) If a permittee moves his place of business to another location within the city, the permit may be transferred to such new location upon application to the city treasurer, giving the address of the new location.
(Code 1986, § 6-46)

Sec. 6-47. Same—Revocation.

(a) The mayor may, in his discretion, revoke any permit for a billiard or pool table for violation of any provision of this article or other applicable ordinances or laws.

(b) Before such revocation, the mayor shall give written notice to the owner or operator of his intention to revoke, specifying the violation with which he is charged, and shall fix a time, no sooner than five (5) days following such notice, for such owner or operator to appear for a public hearing to show cause why such permit should not be revoked.

(c) Upon the revocation of a permit, no further permit shall be issued to the applicant for a period of one (1) year following such revocation.
(Code 1986, § 6-47; Ord. No. 9654, §§ 13, 69, 1-6-92)

Sec. 6-48. Gambling.

It shall be unlawful for any person to exchange wagers on any aspect of the playing of the game of billiards or pool. It shall further be unlawful for the owner or operator of any premises where a billiard or pool table is located to knowingly permit such wagers or gambling on the premises.
(Code 1986, § 6-48)

Sec. 6-49. Permitting minor top lay billiards or pool without permission.

It shall be unlawful for any person operating a billiard or poolroom, their employees, agents, servants, or other persons for them knowingly to permit any person under the age of eighteen (18) years to play on tables at any game of billiards or pool, without first having obtained the written consent of the father and mother of such minor, if living; if the father is dead, then the mother, guardian or other person having legal control of such minor; or if the minor is in attendance as a student at some literary institution, then the written consent of the principal or person in charge of such school; provided that, this section shall not

apply to use of billiards or pool tables kept by private persons and used in private families. Such written consent shall be valid and remain in force until revoked in writing by the minor's father, mother, guardian, or other person having legal control of such minor.
(Code 1986, § 6-49)

Secs. 6-50—6-60. Reserved.

ARTICLE IV. RESERVED*

ARTICLE V. RESERVED†

***Editor's note—**Ord. No. 13369, § 1, adopted Sept. 18, 2018, repealed Art. IV, §§ 6-61—6-70, which pertained to coin-operated devices and derived from Code 1986, §§ 6-61—6-70; Ord. No. 9654, §§ 13, 69, 1-6-92.

†**Editor's note—**Ord. No. 13369, § 1, adopted Sept. 18, 2018, repealed Art. V, §§ 6-81—6-89, which pertained to family amusement centers and derived from Code 1986, §§ 6-81—6-89; Ord. No. 9654, § 13, 1-6-92.

Chapter 7

ANIMALS AND FOWL*

Article I. In General

Sec. 7-1. The Animal Center; duties; powers.
Sec. 7-2. Definitions.
Sec. 7-3. Animal Services Officer.
Sec. 7-4. Enforcement of chapter.
Sec. 7-5. Interference with enforcement of chapter.
Sec. 7-6. Care of animals while in custody.
Sec. 7-7. Setting humane animal traps; authority to receive trapped animals.
Sec. 7-8. Inspections.
Sec. 7-9. Authority to go upon private property.
Sec. 7-10. Exemption from chapter.
Secs. 7-11—7-16. Reserved.

Article II. Licensing, Inoculation and Permitting of Dogs and Cats

Sec. 7-17. City license required; exceptions.
Sec. 7-18. License fees; exemption for seniors; convenience fees for veterinarians; fees for potentially dangerous dog and dangerous dog tags.
Sec. 7-19. Licenses and fees for multiple pets.
Sec. 7-20. Rabies inoculation required.
Sec. 7-21. Inoculation records required; tags.
Sec. 7-22. Detention when rabies suspected.
Sec. 7-23. Requirements for sales of dogs and cats.
Sec. 7-24. Postage.
Secs. 7-25—7-31. Reserved.

Article III. Offenses

Sec. 7-32. Failure to provide adequate care; neglect.
Sec. 7-33. Cruelty to animals.
Sec. 7-34. Authority to prevent acts of cruelty; unlawful interference.
Sec. 7-35. Abandonment of animal.
Sec. 7-36. Animals at large.
Sec. 7-37. Tethering dogs and other animals.
Sec. 7-38. Animals present in prohibited areas.
Sec. 7-39. Transporting animal in inhumane manner.
Sec. 7-40. Unattended animal in motor vehicle.
Sec. 7-41. Animal causing unsanitary conditions.

***Editor's note—**Chapter 7 was repealed and replaced almost in its entirety by Ordinance No. 12343, 1-26-10.

Charter reference—Authority to license and regulate animals and fowl, § 2.1(24).

Cross references—Health and sanitation, Ch. 20; pasturing, driving animals on park property restricted, § 26-6; Animals in parks, § 26-7.

State law reference—Animals generally, T.C.A. §§ 44-17-101 et seq.

Sec. 7-42. Animal creating nuisance.
Sec. 7-43. Selling, breeding diseased animals.
Sec. 7-44. Curbside sales.
Sec. 7-45. Sale, barter or giving away of baby fowl or baby rabbits.
Sec. 7-46. Unlawful use of an animal.
Secs. 7-47—7-54. Reserved.

Article IV. Barking Dogs

Sec. 7-55. Definition.
Sec. 7-56. Barking dogs generally.
Sec. 7-57. Citation for barking dog.
Secs. 7-58—7-62. Reserved.

Article V. Potentially Dangerous and Dangerous Dogs

Sec. 7-63. Findings.
Sec. 7-64. Citation, hearing, designation, and imposition of conditions for Potentially Dangerous Dog or Dangerous Dog; no change of ownership pending hearing.
Sec. 7-65. Notice of designation.
Sec. 7-66. Impoundment and disposition of Potentially Dangerous Dog or Dangerous Dog.
Sec. 7-67. Possession unlawful without proper restraint; failure to comply with restrictions.
Sec. 7-68. Requirements and restrictions on Potentially Dangerous Dogs.
Sec. 7-69. Requirements and restrictions on Dangerous Dogs.
Sec. 7-70. Removal of designation of Potentially Dangerous Dog.
Sec. 7-71. Change of ownership, custody or location of dog; death of dog.
Sec. 7-72. Escape, death of Potentially Dangerous Dog or Dangerous Dog.
Sec. 7-73. Dogs designated outside City as potentially dangerous or dangerous.
Secs. 7-74—7-79. Reserved.

Article VI. Impoundment, Redemption and Disposition of Animals

Sec. 7-80. Impoundment, destruction of violating animals authorized.
Sec. 7-81. Seizure of at-large animals upon return to property.
Sec. 7-82. Notification of impoundment.
Sec. 7-83. Redemption of impounded animals by owner; fees.
Sec. 7-84. Disposition of unclaimed dogs or cats.
Sec. 7-85. Requirements for redeeming or adopting animals.
Sec. 7-86. Keeping stray animals; failure to surrender stray animal.
Sec. 7-87. Immediate placement for adoption or destruction of animal surrendered by owner.
Sec. 7-88. Destruction of dangerous, diseased or injured animals.
Secs. 7-89—7-95. Reserved.

Article VII. Trapping Animals

Sec. 7-96. Definition.
Sec. 7-97. Poisoning or trapping animals.
Sec. 7-98. Exception.
Secs. 7-99—7-104. Reserved.

Article VIII. Large Animals

Sec. 7-105. Record to be kept.
Sec. 7-106. Impoundment and disposition of large animals or fowl.
Sec. 7-107. Keeping or possessing swine, goats or fowl.
Sec. 7-108. Livestock and fowl at large prohibited.
Sec. 7-109. Horses, mules prohibited on sidewalks.
Secs. 7-110—7-114. Reserved.

Article IX. Exotic Animals

Sec. 7-115. Keeping of exotic animals prohibited.
Sec. 7-116. Notice required at place of sale.
Sec. 7-117. Exceptions to exotic animal prohibition.
Secs. 7-118—7-123. Reserved.

Article X. Dead Animals

Sec. 7-124. Disposal of small animals.
Sec. 7-125. Disposal of large animals in the City.
Secs. 7-126—7-130. Reserved.

Article XI. Guard Dogs

Sec. 7-131. Registration of guard dogs.
Sec. 7-132. Requirements of guard dog owners.
Sec. 7-133. Inspections.
Sec. 7-134. Limitations.
Secs. 7-135—7-140. Reserved.

Article XII. Miscellaneous

Sec. 7-141. City declared wild bird sanctuary; acts prohibited.
Sec. 7-142. Penalty for violations.
Sec. 7-143. Severability.
Sec. 7-144. Other laws not affected.
Sec. 7-145. Urban chickens.
Secs. 7-146—7-152. Reserved.

Article XIII. Animal Control Board

Sec. 7-153. Establishment of Animal Control Board; responsibilities.
Sec. 7-154. Terms; filling vacancies; officers.
Sec. 7-155. Removal from office.
Sec. 7-156. Time, place of meetings.
Sec. 7-157. Legal counsel.
Secs. 7-158—7-299. Reserved.

Article XIV. General Provisions For Permits

Sec. 7-300. General applicability.

Sec. 7-301. Permit fees.
Sec. 7-302. Validity and duration of Permit; compliance with all laws; permits not available to violators of certain animal laws.
Sec. 7-303. Application process for new Permit; grant or denial of Permit.
Sec. 7-304. Permit renewal process; grant or denial of renewal.
Sec. 7-305. Inspections.
Sec. 7-306. Violation found during inspection.
Sec. 7-307. Impoundment of animal.
Sec. 7-308. Hearings; notice.
Sec. 7-309. Grounds for suspension or revocation of Permit.
Sec. 7-310. Reapplying for a Permit.
Sec. 7-311. Penalties for violations.
Sec. 7-312. Finality of decisions.
Sec. 7-313. Appeal of adverse action by animal control board.
Secs. 7-314—7-339. Reserved.

Article XV. Dealer Permits

Sec. 7-340. Purpose.
Sec. 7-341. Dealer Permit required; Permit to be on display.
Sec. 7-342. Permit fee.
Sec. 7-343. Standards and requirements for a Dealer Permit.
Secs. 7-344—7-379. Reserved.

Article XVI. Kennel Permits

Sec. 7-380. Purpose.
Sec. 7-381. Kennel Permit required; must be displayed.
Sec. 7-382. Permit fee; exemption for certain nonprofit organizations; hobby breeders excluded.
Sec. 7-383. Standards and requirements for a Kennel Permit.
Secs. 7-384—7-419. Reserved.

Article XVII. Animal Performance Permits

Sec. 7-420. Purpose.
Sec. 7-421. Animal Performance Permit required.
Sec. 7-422. Permit fees based on categories; duration of Permit; not renewable.
Sec. 7-423. Duty to report Animal Performances.
Sec. 7-424. Other provisions apply; this article controls.
Sec. 7-425. Application process.
Sec. 7-426. Standards and Requirements for an Animal Performance Permit.
Sec. 7-427. Nonprofits exempt from Permit fees; no Permit required for certain equine activities and judging of animals.
Sec. 7-428. Animal rides for compensation.
Sec. 7-429. Inspections.
Sec. 7-430. Denial of Permit; further legal action; Show Cause hearing; factor in future decisions.
Sec. 7-431. Surrender of Permit fee.
Secs. 7-432—7-459. Reserved.

Article XVIII. Animal Rescuer Permits

Sec. 7-460. Purpose.
Sec. 7-461. Permit required, available for viewing.
Sec. 7-462. No Permit fee.
Sec. 7-463. Standards and Requirements for an Animal Rescuer Permit.
Sec. 7-464. City license required after one (1) year.
Secs. 7-465—7-489. Reserved.

Article XIX. Dogs in Outdoor Dining Areas Permits

Sec. 7-490. Purpose.
Sec. 7-491. Permit required; applies to pet dogs only.
Sec. 7-492. Permit fee.
Sec. 7-493. Application process; notarized certification required.
Sec. 7-494. Standards and Requirements for a Dogs in Outdoor Dining Areas Permit.
Sec. 7-495. Inspections.
Sec. 7-496. Compliance with other laws; cooperation with government bodies.
Sec. 7-497. Advertising as "pet-friendly."
Sec. 7-498. Enforcement; violations.
Secs. 7-499—7-539. Reserved.

ARTICLE I. IN GENERAL

Sec. 7-1. The Animal Center; duties; powers.

(a) The Animal Center ("Animal Center") shall provide animal services for the City of Chattanooga.

(b) These services shall include the following:

(1) Providing essential animal services to the residents of Chattanooga through the enforcement of animal-related laws as stated in the Tennessee Code and the City Code;

(2) Licensing of animals;

(3) Providing animal safety and educational programs;

(4) Attempting to resolve animal-related problems by education or advice;

(5) Providing emergency and rescue services for animals;

(6) Cooperating with the Health Director and assisting in the enforcement of City and state laws with regard to companion animals and particularly with regard to the vaccination of dogs and cats against rabies and the confinement or leashing of vicious animals;

(7) Investigating cruelty to or neglect or abuse of companion animals; and

(8) Maintaining an animal shelter in accordance with the provisions of this Chapter that includes, but is not limited to, sheltering of animals impounded under this Chapter; licensing of animals; quarantine of rabies-suspect animals; reduction of stray and unwanted animals through spay and neuter programs; community education regarding pet overpopulation; methods of ownership identification; and disposition of impounded animals by adoption, redemption, or humane euthanasia.

(c) Any Animal Services Officer or law enforcement officer of the City shall have the power and duty to protect animals taken into custody, whether in transit or at the Animal Center. Any Animal Services Officer or law enforcement officer shall have the authority and duty to rescue any animal that appears to be suffering from a serious medical emergency or to be physically unable to remove itself from a situation that restricts its movement or endangers the animal.
(Ord. No. 12880, §§ 1, 2, 11-18-14)

Editor's note—Ord. No. 12880, § 2, adopted November 18, 2014, amended the title of § 7-1 to read as set out herein. Previously § 7-1 was titled Animal Care Trust, d/b/a McKamey Animal Care and Adoption Center, Inc.; duties; powers.

Sec. 7-2. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Abandon: Forsake, desert or absolutely give up an animal previously under the custody or possession of a person without having secured another owner or custodian or by failing to provide one (1) or more of the elements of adequate care for a period of twenty-four (24) or more consecutive hours.

Adequate care: The reasonable practice of good animal husbandry, handling, production, management, confinement, feeding, watering, protection, shelter, transportation, treatment and, when necessary, euthanasia, appropriate for the age, species, condition, size and type of the animal and the provision of veterinary care when needed to prevent suffering, disease, or the impairment of health. "*Adequate care*" includes adequate feed, adequate water, adequate exercise, adequate shelter, adequate space and adequate veterinary care, as those terms are defined in this article.

Adequate exercise: The opportunity for the animal to move sufficiently to maintain normal muscle tone and mass for the age, species, condition and size of the animal.

Adequate feed: The provision of and access to food that is (i) of sufficient quantity and nutritive value to maintain each animal in good health; (ii) accessible to each animal without duress or competition; (iii) prepared so as to permit ease of consumption for the age, species, condition, size and type of each animal; (iv) provided in a clean and sanitary manner; (v) placed so as to minimize contamination by excrement and pests; and (vi) provided at suitable intervals for the species, age, and condition of the animal, but at least once daily, except as prescribed by a veterinarian or as dictated by naturally occurring states of hibernation or fasting normal for the species.

Adequate shelter: The provision of and access to shelter that (i) is suitable for the species, age, condition, size, and type of each animal; (ii) provides adequate space for each animal; (iii) is safe and protects each animal from injury, rain, sleet, snow, hail, direct sunlight, the adverse effects of heat or cold, physical suffering, and impairment of health; (iv) is properly lighted; (v) is properly cleaned; (vi) enables each animal to be clean and dry, except when detrimental to the species; and (vii) for dogs and cats, provides a solid surface, resting platform, pad, floor mat, or similar device that is large enough for the animal to lie on in a normal manner and can be maintained in a sanitary manner. A shelter whose wire, grid, or slat floors sag under the animal's weight, permit the animal's feet to pass through the openings, or otherwise do not protect the animal's feet or toes from injury is not adequate shelter.

With respect to outdoor facilities for dogs or cats, "*adequate shelter*" means the provision of one (1) or more shelter structures that are accessible to each animal in each outdoor facility and that are large enough to allow each animal in the shelter structure to sit, stand, and lie in a normal manner and to turn about freely. In addition to the shelter structures, one (1) or more separate outside areas of shade must be provided, large enough to contain all the animals at one (1) time and protect them from the direct rays of the sun. Shelters in outdoor facilities for dogs or cats must (i) contain a roof, four sides, and a floor; (ii) provide the dogs and cats with adequate protection and shelter from the cold and heat, provided that no animal may be maintained in any outdoor location where the ambient temperature is under thirty-five degrees (35°) Fahrenheit or higher than one hundred degrees (100°) Fahrenheit or any indoor location where the ambient temperature is under forty-five degrees (45°) Fahrenheit or exceeds eighty-five degrees (85°) Fahrenheit; (ii) be provided with a wind break and rain break at the entrance; and (iii) contain clean, dry bedding material, with additional clean, dry bedding provided in any unheated shelter when the outside temperature is thirty-five degrees (35°) Fahrenheit or lower.

Building surfaces in contact with animals in outdoor housing facilities must be impervious to moisture. Metal barrels, cars, refrigerators or freezers, and the like must not be used as shelter structures. The floors of outdoor housing facilities may be of compacted earth, absorbent bedding, sand, gravel, or grass, and must be replaced if there are any prevalent odors, diseases, insects, pests, or vermin. All surfaces must be maintained on a regular basis. Surfaces of outdoor housing facilities including houses, dens, etc. that cannot be readily cleaned and sanitized must be replaced when worn or soiled.

Adequate space: Sufficient space to allow each animal (i) to easily stand, sit, lie, turn about and make all other normal body movement in a comfortable, normal position for the animal and (ii) to interact safely with other animals in the enclosure. Outside runs must be a least ten (10) feet long and thirty-six (36) inches wide for dogs weighing up to forty-five (45) pounds, and at least ten (10) feet long and forty-eight (45) inches wide for dogs weighing forty-five (45) pounds or more. When an animal is tethered, "*adequate space*" means a tether that permits the above actions and is (i) appropriate to the age and size of the animal; (ii) attached to the animal by a properly fitted collar, halter, or harness configured so as to protect the animal from injury and to prevent the animal or tether from becoming entangled with other objects or animals or from extending over an object or edge that could result in the strangulation or injury of the animal; and (iii) at least three (3) times the length of the animal, as measured from the tip of the nose to the base of the tail, except when

the animal is being walked on a leash or is attached by a tether to a lead line. When freedom of movement would endanger the animal, temporarily and appropriately restricting movement of the animal according to accepted veterinary standards for the species is considered provision of adequate space, provided, however, that no animal shall be tethered for more than a reasonable period.

Adequate veterinary care: Provision of medical care to alleviate suffering, prevent disease transmission and maintain health as well as provision of available care to prevent diseases through accepted practice by the American Veterinary Medical Association for the age, species, condition, size, and type of each animal.

Adequate water: The provision of and access to clean, fresh, potable water of a drinkable temperature which is provided in a suitable manner, in sufficient volume, and at suitable intervals, but at least once every eight (8) hours, to maintain normal hydration for the age, species, condition, size, and type of each animal, except as prescribed by a veterinarian or as dictated by naturally occurring states of hibernation or fasting normal for the species. Such water shall be provided in clean, durable receptacles that are accessible to each animal and placed so as to minimize contamination of the water by excrement or pests. Alternatively, provision of an alternate source of hydration consistent with generally accepted husbandry practices may be provided.

Adoption: The transfer of ownership of a dog or cat from a releasing agency to an individual.

Altered: A surgical procedure performed by a licensed veterinarian that renders a dog or cat permanently incapable of reproducing.

Ambient temperature: The temperature surrounding the animal.

*Animal:*A living organism characterized by voluntary movement except human beings and plants; see also the definitions of "*animal*" in T.C.A. §§ 38-1-401, 39-14-201, and 63-12-03.

Animal hoarder: A person who possesses a large number of animals and who (i) keeps animals in severely overcrowded conditions where they are unable to be in a state of good health; (ii) displays the inability to recognize or understand the nature of, or has reckless disregard for, the conditions of the animals; or (iii) lives in unsanitary, unhealthful or potentially dangerous conditions and fails to or is unable to provide the animals with adequate care as defined in this chapter.

Animal Performance: Any performance, show, exhibition, display or act where an animal participates for the amusement or entertainment of an audience. Animal Performance does not include the display of animals for strictly educational purposes by non-profit organizations or Persons. This definition shall specifically exclude "Companion Animal Events."

Animal Rescuer: Any Person that, not acting for profit, accepts in a calendar year (i) more than ten (10) animals or (ii) more than five (5) animals and more than two (2) unweaned litters of animals for the purpose of finding permanent adoptive homes for the animals. Animal Rescuer does not include a facility operated by or under contract with a governmental agency or a Foster Care Provider.

Animal Services Officer: A person who is legally sworn and authorized by the City to carry out the duties imposed by this chapter and state law.

Animal shelter: A humane shelter for animals.

At large: An animal that is not (i) contained behind an adequate fence; (ii) confined within an adequate enclosure; (iii) under the control of a person physically capable of restraining the animal; or (iv) controlled by a leash or tether no more than six (6) feet in length and appropriate for the size, age and weight of the animal.

Attack: Acts by an animal off its owner's property in a vicious, terrorizing or threatening manner or in an apparent attitude of aggression. "*Attack*" does not include any actions by an animal in defense of itself, its owner or another person or against aggression by any person or animal.

Board: As used in this Chapter, the Board is the Animal Control Board for the City of Chattanooga, as established in Article XIII of this Chapter.

Boarding: Housing and caring for a companion animal temporarily, usually for a fee, by someone other than the animal's regular caretaker and at a location other than where the animal normally resides.

Collar: A well-fitted device that (i) encircles an animal's neck in such a way as to avert trauma or injury to the animal; (ii) allows two (2) fingers to be inserted between the neck and the collar; (iii) is appropriate to the age and size of the animal; and (iv) is constructed of nylon, leather or similar material.

Community Cat: Any cat that (i) is altered; (ii) has been lost or abandoned by its owner; and (iii) has community caregivers providing adequate care.

Companion animal: Any domestic or feral dog, domestic or feral cat, guinea pig, small domesticated mammal, rabbit not raised for human food or fiber, miniature pig, potbellied pig, aquatic animal, amphibian, reptile or bird. Livestock, game species, exotic animals as defined in Article IX, or any animals regulated under federal law as research animals shall not be considered companion animals for the purposes of this chapter.

Companion Animal Daycare: Any establishment that provides boarding for a companion animal during the day for a fee.

Companion Animal Events: Companion Animal Events include Companion Animal conformation shows or other similar events involving animals being judged, Companion Animal Performance events such as Obedience Trials, Agility Trials, Herding and Field Trials, and other similar events, and Companion Animal Athletic events such as Flyball Tournaments, Weight Pulls, Disc Dog competitions and other similar events.

*Cruelty:*Any act, omission, or neglect whereby unjustifiable physical pain, suffering, or death of an animal is caused or permitted.

Curbside sale: Any attempt to sell, barter, trade or adopt any companion animal on a public or private street, parking lot, or location.

Dangerous Dog: Any dog that has been so designated pursuant to Article V of this chapter.

Dealer: Any Person who engages in the business of selling, buying, brokering the sale of, or bartering animals in any manner, including through the Internet. A Dealer does not include:

(i) An Animal Shelter or an employee, agent or volunteer thereof acting on behalf of said shelter, or

(ii) Any Person whose primary business is to transport companion animals as a common carrier in the regular course of business, or

(iii) A Hobby Breeder.

Director: The Executive Director of the Animal Center.

Dog: Any member of the animal species *Canis familiaris* or any animal which is a crossbreed of any animal that is a member of the *Canis familiaris* species, not including wolf/dog crossbreeds and wolf hybrids.

Domestic animal: Any animal that may be legally possessed by a person and is commonly kept in or around a residence, outbuildings or business.

Euthanasia: The humane destruction of an animal accomplished by a method that involves instantaneous unconsciousness and immediate death or by a method that involves anesthesia, produced by an agent that causes painless loss of consciousness, and death during such loss of consciousness.

Exotic animal: All animals classified as Class I animals under T.C.A. § 70-4-403, as amended, and any relevant state regulations propagated thereunder, as well as any wolf-hybrid and the following species of non-venomous snakes when such snakes reach six (6) feet in length: (i) reticulated python (*Python reticulatus*); (ii) Burmese python (*Python molurus bivittatus*); (iii) African rock python (*Python sebae*); (iv) common boa (*Boa constrictor*); and (v) green anaconda (*Eunectes murinus*).

Feral cat: Any cat that is a descendant of a domesticated cat that has returned to the wild.

Foster Care Provider: Any Person who provides care or rehabilitation for animals through an affiliation with a facility operated by or under contract with a governmental agency.

Foster home: A private residential dwelling and its surrounding grounds where care and/or rehabilitation are provided to companion animals through an affiliation with the Animal Center or a releasing agency.

Fowl: Any of various birds of the order *galliformes*, including chickens, roosters, ducks, geese, turkeys, and pheasants, or any bird that is used for food or hunted as game.

Grooming: Bathing, cleaning, clipping, trimming, brushing, plucking, treating for external parasites, or providing any similar services to a companion animal for a fee.

Guard dog: Any member of the dog family (*canidae*) that has been trained or represented as a dog trained to protect commercial property or placed on commercial property for the purpose of protecting such property or persons on such property.

Guard dog owner: Any person, firm or corporation that owns, keeps or employs a guard dog to protect commercial property from unauthorized intrusion. "*Guard dog owner*" includes the legal owner of a guard dog as well as any person, firm or corporation that, through arrangement or contract, has secured the use of a guard dog to protect commercial property from unauthorized intrusion.

Health Director: The Hamilton County Health Director, as established in T.C.A. § 68-2-603.

Hobby Breeder: A Person that is an active member of a recognized national, state or local breed organization and that houses or breeds dogs or cats at or adjoining a private residence for the purpose of improving the breed or exhibiting dogs or cats at shows operated by a recognized national, state, or local breeder organization. A Hobby Breeder may sell puppies or kittens from no more than two (2) litters per household per year. A Hobby Breeder that sells puppies or kittens from more than two (2) litters per household per year shall be deemed a Dealer. Upon request by an Animal Services Officer or the Animal Control Board, a Hobby Breeder must provide records demonstrating that they have not exceeded the sales limit set forth herein.

Impound: The taking into custody of an animal by the Animal Center.

Kennel: Any building, structure, facility, premises or property wherein any Person engages in the business of boarding, breeding, grooming, training for a fee or hunting with a companion animal; maintaining a Companion Animal Daycare; or providing any similar service for or with a companion animal. A Kennel does not include an Animal Rescuer, a Hobby Breeder or a facility operated by or under contract with a governmental agency.

Kennel Operator: Any Person engaged in the business of owning, operating or managing a kennel.

Licensed veterinarian: A person licensed by a state agency or board to practice veterinary medicine.

Livestock: All equines as well as animals which are customarily raised primarily for use as food or fiber for human utilization or consumption, including but not limited to bovine, sheep, goats, swine (except miniature or potbellied pigs), and fowl. "*Livestock*" also includes animals of the genus *camilidae*, ratites, and any other individual animal specifically raised for food or fiber, excluding companion animals.

The Animal Center: The Animal Care Trust, d/b/a the Animal Center, the organization designated by the City to provide animal care services for the City.

Menacing fashion: Any action by an animal that would cause an individual to reasonably believe that the animal is likely to cause physical injury.

*Microchip:*A passive electronic device that is injected into an animal by means of a pre-packaged sterilized implanting device for purposes of identification and recovery of animals by their owners.

Microchipping: The implanting of a microchip.

Neglect: Occurs when the owner or keeper of an animal does any of the following:

(a) Fails to provide an animal with adequate care as defined in this chapter;

(b) Fails to sufficiently and properly care for an animal to the extent that the animal's health is jeopardized;

(c) Keeps any animal under conditions which increase the probability of the transmission of disease;

(d) Allows any animal, including one who is aged, diseased, maimed, hopelessly sick, disabled, or not ambulatory, to suffer unnecessary pain; or

(e) Meets the definition of an animal hoarder as defined in this chapter.

Owner: Any person, group of persons, corporation, organization or association (excluding the Animal Center, any non-profit releasing agency, feral cat caretaker, or veterinarian) that:

(a) Has a property right in an animal;

(b) Keeps or harbors an animal;

(c) Has an animal in his or her care or acts as a custodian of an animal for ten (10) or more consecutive days when the true owner of the animal is unknown to such person; or

(d) Has an animal in his or her care or acts as a caretaker or custodian of an animal by agreement with or with permission of the true owner of the animal.

Permit: As used in this Chapter, any of the animal-related permits authorized under Chapter 7 of the City Code.

Person: Any individual, partnership, corporation, firm, organization, trade or professional association, limited liability company, joint venture, association, trust, estate, or any other legal entity, and any officer, member, or shareholder thereof.

Pet dog: A dog other than a service animal as defined in this chapter.

Pet solid waste: Excrement from the bowels of a pet.

Place of Business: Any building, structure, facility, premises or property where a Person conducts business or engages in activities or conduct that requires a Permit under this Chapter. Place of Business includes, but is not limited to, a store where animals are bought, sold, exchanged, or offered for sale to the public or any building, structure, facility, premises or property upon which a Person houses or maintains animals as part of the business or keeps equipment, supplies, records, books, documents or other items

related to the business. If a Person houses or maintains animals at his or her residence in connection with the business, activities or conduct that requires a Permit, then the Place of Business includes any part of the residence in which the animals are housed, kept or allowed.

Potentially Dangerous Dog: Any dog that has been so designated pursuant to Article V of this chapter.

Proof of ownership: Documentation in support of a property right in an animal that includes, but is not limited to, veterinary records, rabies inoculation certificates, licenses, photographs, bills of sale, breed registries, written transfers of ownership, and verbal or written third-party verifications.

Properly cleaned: An animal's primary enclosure is (i) cleared of carcasses, debris, food waste and excrement with sufficient frequency to minimize the animal's contact with those contaminants; (ii) sanitized with sufficient frequency to minimize odors and the hazard of disease; and (iii) cleaned so as to prevent the animals confined therein from being directly or indirectly sprayed with a stream of water or exposed to hazardous chemicals or disinfectants.

Proper disposal: Placed in a designated waste receptacle, refuse container or other suitable container that is regularly emptied by the City or some other refuse collector, or placed into a system designed to convey domestic sewage for proper treatment and disposal.

Proper enclosure: A place in which a companion animal is securely confined indoors or in a securely enclosed and locked pen or structure suitable to prevent the entry of children under the age of twelve (12) and designed to prevent the companion animal from escaping. Such enclosure shall have secure sides and a secure top to prevent the companion animal from escaping and shall also provide protection for the companion animal from the elements. The enclosure shall be of suitable size for the companion animal.

Properly restrained: An animal that is (i) kept within a proper enclosure; (ii) controlled by a competent person by means of a chain, leash, or other like device not to exceed six (6) feet in length; or (iii) secured within or upon a vehicle being driven or parked. "*Properly restrained*" within or upon a vehicle does not include restraint or confinement that would allow an animal to fall from or otherwise escape the confines of a vehicle or that would allow an animal to have access to persons outside the vehicle.

Provoke: To goad, inflame, instigate or stimulate an aggressive or defensive response by an animal, but does not include any reasonable actions by an individual that are intended to defend against the animal.

Public nuisance: Any animal or group of animals that, by way of example and not of limitation, habitually:

(a) Damages, soils or defiles community or neighborhood private property or public property;

(b) Turns over garbage containers or damages flower or vegetable gardens;

(c) Causes unsanitary or offensive conditions;

(d) Impedes the safety of pedestrians, bicyclists, or motorists;

(e) Is allowed to remain an unaltered free-roaming cat; or

(f) Meets the requirements of a "barking dog" as specified in Article IV of this chapter.

Reasonable period: A period of time not to exceed twelve (12) hours in a twenty-four (24) hour period.

Regular Business Hours: The time periods in which the Permit holder or applicant is open for business, as posted on the Person's property or on the Internet, or if said Person has no posted business hours, then between the hours of 9:00 a.m. and 5:00 p.m. Monday through Friday.

Releasing agency: An animal shelter, humane society, animal welfare organization, society for the prevention of cruelty to animals, or other similar entity that releases companion animals for adoption.

Relinquish: Giving up all rights to an animal, thereby making it the property of the Animal Center.

Sanitary conditions: Space free from health hazards, including excessive animal waste, overcrowding of animals, or other conditions that endanger the animal's health. This definition does not include any condition resulting from a customary and reasonable practice pursuant to farming or animal husbandry.

Seizure: See "*Impound.*"

Service animal: A service animal as defined by the United States Department of Justice in 28 C.F.R. § 36.104.

Severe injury: Any injury in which the victim suffers pain as a result of an attack by an animal and which includes any broken bone, bleeding, disfiguring lacerations requiring multiple sutures or cosmetic surgery, or death on the part of the victim.

Stray: Any animal (i) that is at large; (ii) that appears to be lost, unwanted or abandoned; and (iii) whose owner is unknown or not readily available. Feral Cats and Community Cats shall not be considered Stray animals for purposes of this chapter.

State of good health: Freedom from disease and illness and in a condition of proper body weight and temperature for the age and species of the animal, unless the animal is undergoing appropriate treatment.

Tether: The restraint and confinement of a dog by use of a restraint device.

Under control: An animal that is (i) securely confined in a fenced enclosure on the property of the owner or keeper of the animal such that the enclosure prevents the animal from leaving the property; (ii) located on the property of the owner or keeper of the animal and secured by means of a leash or tether which prevents the animal from leaving the property; or (iii) secured by means of a leash held by a person of suitable age and discretion.
(Ord. No. 12880, §§ 1, 3, 11-18-14)

Sec. 7-3. Animal Services Officer.

Upon written request by the Director of the Animal Center and upon background investigation by the Chattanooga Police Department, the City Council may, by resolution, designate employees of the Animal Center as special police officers of the City to enforce the provisions of this chapter. After being sworn by a City Court judge, the holders of such commissions shall have, possess and exercise every power granted by such commissions but such special police officers shall not be regular police officers of the City nor shall they be entitled to any benefits afforded regular police officers of the City.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-4. Enforcement of chapter.

Commissioned employees of the Animal Center and law enforcement officers shall enforce the provisions of this chapter and shall have the power to issue citations for violations thereof.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-5. Interference with enforcement of chapter.

It shall be unlawful for any person to interfere with, prevent or hinder anyone in the performance of any duty required by this chapter, including but not limited to removing or attempting to remove an animal from an Animal Services Officer's custody, tampering with or removing an animal from an animal trap set by an Animal Services Officer, tampering with or destroying signs and/or other City property, interfering with the lawful execution of the duties of an Animal Services Officer, or interfering with the lawful impoundment of an animal.

Sec. 7-6. Care of animals while in custody.

All animal care facilities, including the Animal Center, shall take adequate care at all times of all animals held in their custody. Such facilities shall provide clean, comfortable and sanitary quarters for all dogs and cats, keeping in separate kennels or cages all intact males, intact females and vicious dogs.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-7. Setting humane animal traps; authority to receive trapped animals.

The Animal Center is authorized to place, upon request, live-capture animal traps on public property or on private property with the owner's permission for the purpose of trapping and removing stray, at large, abandoned, or nuisance animals. It is unlawful for any person other than an Animal Services Officer or the officer's designee to remove any animal from the trap or to damage, destroy, move or tamper with the trap. The Animal Center is authorized to receive and impound companion animals that are trapped by other agencies or persons.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-8. Inspections.

Whenever it is necessary to make an inspection to enforce any of the provisions of or perform any duty imposed by this chapter or other applicable law, or whenever there is reasonable cause to believe that there exists in any building or upon any premises any violation of the provisions of this chapter or other applicable law, an Animal Services Officer or law enforcement officer is hereby empowered to enter such property at any reasonable time and to inspect the property and perform any duty imposed by this chapter or other applicable law, but only if the consent of the occupant or owner of the property is freely given or a search warrant is obtained, as follows:

(a) If such property is occupied, the officer shall first present proper credentials to the occupant and request permission to enter, explaining the reasons therefore;

(b) If such property is unoccupied, the officer shall first make a reasonable effort to locate the owner or other persons having charge or control of the property, present proper credentials and request permission to enter, explaining the reasons therefore; and

(c) If such entry is refused or cannot be obtained because the owner or other person having charge or control of the property cannot be found after due diligence, the Animal Services Officer shall seek a warrant to search the property.

Sec. 7-9. Authority to go upon private property.

An Animal Services Officer may pursue any animal over open property or open fields for the purpose of enforcing the provisions of this chapter, unless requested to leave by any owner of the property. An Animal Services Officer, law enforcement officer, or other employee of the City under the control and supervision of the aforementioned persons shall have the right to go on unfenced or unposted private property within the City for the purpose of enforcing the provisions of this chapter, provided it is necessary or expedient for such purpose.

Sec. 7-10. Exemption from chapter.

This chapter does not apply to certified and trained dogs owned and utilized by any law enforcement agency during work-related activities.

Secs. 7-11—7-16. Reserved.

ARTICLE II. LICENSING, INOCULATION AND PERMITTING OF DOGS AND CATS

Sec. 7-17. City license required; exceptions.

(a) The owner of every dog or cat in the City over the age of three (3) months shall obtain a City license for such dog or cat from the Animal Center or participating licensed veterinarians by the last day of the month in which the dog or cat receives its rabies vaccination. Such license shall be effective for twelve months or until the last day of the month in which the current rabies vaccination expires, whichever comes first. In the case of a three-year rabies vaccination, the license must be renewed yearly while the vaccination remains valid. The license or renewal thereof shall state the sex, breed, age, color and name of the dog or cat, together with its markings, if any, the name and address of the owner and the date of registration. Owners of dogs or cats who have failed to obtain a license for their animals or who have failed to renew the license of their animals within thirty (30) days of the date of license expiration shall be deemed delinquent and shall be subject to an additional late fee of twenty dollars ($20.00) per dog or cat in addition to the regular license fee and in addition to any fines imposed upon such owners by a court of competent jurisdiction.

(b) The Animal Center shall issue a metal license tag for each dog or cat licensed as provided herein, marked "[Year], City of Chattanooga, TN, No. —." Such tag shall be fastened to the dog's or cat's collar and worn by the dog or cat at all times. Breakaway collars are recommended when tags are affixed to collars worn by cats. It shall be unlawful for any person to use a tag on a dog or cat for which such tag was not issued.

(c) The provisions of this section shall not apply to (i) nonresidents of the City who are traveling through the City or temporarily sojourning therein for a period of less than thirty (30) days or (ii) persons bringing dogs or cats into the City exclusively for show or exhibition purposes.
(Ord. No. 12880, § 1, 11-18-14; Ord. No. 13022, § 1, 1-19-16)

Sec. 7-18. License fees; exemption for seniors; convenience fees for veterinarians; fees for potentially dangerous dog and dangerous dog tags.

(a) The license fee for dogs and cats shall be ten dollars ($10.00) each, provided that a surcharge of an additional forty dollars ($40.00) annually shall be levied against each dog or cat that is not altered. Licenses for up to three (3) animals that are spayed or neutered and owned by senior citizens over the age of sixty-five (65) shall be free as long as the animals are current on rabies inoculations. The Animal Center is authorized to charge a fee of five dollars ($5.00) for each lost tag replaced. The Animal Center is authorized to charge a fee for implantation of microchips for the purpose of identification, registration and return of impounded pets to owners.

(b) Licenses will be provided to participating licensed veterinarians by the Animal Center for resale to clients. Licensed veterinarians may add an additional two dollar ($2.00) convenience fee to each license fee. The convenience fee will be retained by the participating veterinarian. The veterinarian will be required to submit a monthly report to the Animal Center before the fifth day of each month stating the disposition of the licenses sold to clients during the preceding month. The veterinarian will be required to submit a yearly report to the Animal Center by January 31, providing an accounting of all unsold licenses from the previous year.

(c) Any dog that is designated by a court of competent jurisdiction as a Potentially Dangerous Dog or a Dangerous Dog is required to wear an additional tag that must be obtained from the Animal Center. The fee for a Potentially Dangerous Dog tag is one hundred dollars ($100.00). The fee for a Dangerous Dog tag is two hundred dollars ($200.00). A tag for a Potentially Dangerous Dog or a Dangerous Dog must be

obtained within one (1) week of the animal's designation as such and is valid for a period of eighteen (18) months. Potentially Dangerous Dog tags and Dangerous Dog tags under this chapter shall be of a distinctive color different from regular license tags and different from each other.
(Ord. No. 12880, § 1, 11-18-14; Ord. No. 13022, § 1, 1-19-16)

Sec. 7-19. Licenses and fees for multiple pets.

(a) Owners must provide adequate care for their animals. The City has an interest in promoting responsible pet ownership and holding individuals accountable if they choose to own or keep an excessive number of animals. Therefore, in the interest of protecting the health, welfare and safety of animals and the community, the City shall require individuals to obtain licenses to own multiple pets.

(b) All persons owning, keeping or maintaining more than seven (7) dogs, seven (7) cats, or a combined total of seven (7) dogs and cats shall be required to obtain a multiple-pet license and pay an additional fee for each dog or cat in excess of seven (7), at the following rates:

(1) Fifty dollars ($50.00) for each dog or cat in excess of seven (7) and up to and including ten (10) dogs or cats;

(2) One hundred dollars ($100.00) for each dog or cat in excess of ten (10) and up to and including twenty (20) dogs or cats; and

(3) Two hundred dollars ($200.00) for each dog or cat in excess of twenty (20) dogs or cats.

(c) A multiple-pet license shall be valid from January 1 to December 31 of the year in which it is purchased. The license must be renewed and the fees paid annually.

(d) Any fees for multiple pets are in addition to any other license, permit or other fees imposed by any other provisions in this chapter.

(e) The provisions of this section apply if more than seven (7) dogs and/or cats reside at one (1) location, address or property, regardless of who owns the dogs and/or cats.

(f) All animals covered under a multiple-pet license must be altered. If any of the animals is not altered, then the owner of the animals shall be subject to all zoning requirements and restrictions on breeders established in the Chattanooga City Code.

(g) Any person who is required to have a multiple-pet license under this section but who fails to obtain said license or fails to renew said license within thirty (30) days of the expiration of a prior license shall be deemed delinquent and may be subject to additional late fees of twenty dollars ($20.00) per license in addition to the regular license fees and/or any additional fines imposed by the City Court.

Sec. 7-20. Rabies inoculation required.

(a) Any person who owns, keeps or harbors a dog or cat within the City shall have such dog or cat properly inoculated or immunized against rabies, provided that dogs and cats need not be inoculated before reaching the age of three (3) months.

(b) Regardless of the type of licensed vaccine used or the age of the animal at the time of the first (primary) inoculation, the animal shall be reinoculated one (1) year later. Following the first two (2) inoculations, booster inoculations will be due at either one (1) year or three (3) year intervals in accordance with the approved duration of immunity of the specific vaccine used and the species inoculated. The required due date for reinoculation shall be placed on the certificate by the veterinarian administering the vaccine. A dog or cat shall be considered currently inoculated only if a valid certificate signed by a licensed veterinarian exists, and the reinoculation date on the certificate has not been reached.

(c) No person shall bring a dog or cat into the City from another state for sale, exchange, offer for adoption, or giving away, unless such dog or cat, being at least three (3) months of age, has been inoculated by a veterinarian of the state in which the owner, caretaker or responsible person lives and the owner, caretaker or responsible person of such dog or cat has in his/her possession a valid, current certificate of the inoculation.

Sec. 7-21. Inoculation records required; tags.

Any veterinarian who inoculates or re-inoculates a dog or cat against rabies shall keep a record of such inoculation or re-inoculation and shall provide the owner of the dog or cat with an approved tag, which shall have thereon, indelible or engraved, the year of inoculation and a number which shall correspond with the number on the record kept by the person inoculating or re-inoculating such dog or cat. Such tag shall be securely fastened to the collar worn by the dog or cat.

Sec. 7-22. Detention when rabies suspected.

Every companion animal determined by the Health Director to pose a risk of rabies and every companion animal that has bitten a human, has been exposed to rabies, or is suspected of having rabies shall, at the direction of the Health Director, be quarantined for a minimum period of ten (10) days at the owner's home or at the Animal Center. During such confinement, the dog or cat shall be under the observation and supervision of the Health Director or his designee. After the termination of the observation period, said animal shall be released or, if the animal is determined by a veterinarian or the Health Director or his designee to have rabies, it shall be humanely destroyed according to instructions from the Health Director. The Health Director may order the Animal Center to destroy such dog or cat at any time during the period of observation if evidence is such as to convince the Health Director that the dog or cat has rabies. The owner of such dog or cat shall be liable for board fees in the amount of ten dollars ($10.00) per day if such dog or cat is confined at the Animal Center. Such costs as well as all veterinary costs and/or other costs incurred as a result of the impound shall be the responsibility of the owner and shall be required to be paid in full whether the animal is reclaimed, relinquished to the Animal Center, or ordered by the Health Director to be destroyed.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-23. Requirements for sales of dogs and cats.

(a) Before a dog is offered for sale, barter, trade, giveaway or exchange, the dog shall receive, and the purchaser or consumer thereof shall receive documentation of, vaccines and anthelmintics against the following diseases and internal parasites:

(1) Rabies, if the dog is three (3) months of age or older;

(2) Canine distemper;

(3) Parainfluenza;

(4) Hepatitis;

(5) Canine parvo;

(6) Roundworm;

(7) Hookworm; and

(8) Whipworm.

(b) Each dog over six (6) months of age shall be tested for heartworm before being offered for sale.

(c) Before a cat is offered for sale, barter, trade, giveaway or exchange, the cat shall receive, and the purchaser or consumer thereof shall receive documentation of, vaccines and anthelmintics against the following diseases and internal parasites:

(1) Rabies, if the cat is three (3) months of age or older;

(2) Panleukopenia;

(3) Feline viral rhinotracheitis;

(4) Calici virus;

(5) Hookworm; and

(6) Roundworm.

(d) Any of the specific requirements in subsection (a) or (c) above may be waived for a particular dog or cat if the seller of said animal obtains written documentation from a veterinarian licensed by the State of Tennessee stating that the administration of that particular vaccination or anthelmintic will jeopardize the health or welfare of the animal.

(e) All dogs and cats sold for profit in the City shall have a microchip implanted prior to sale. The seller shall register the microchip with the national registry associated with the microchip within forty-eight (48) hours of the sale of the dog or cat, providing all information about the new owner that is required to effectuate the registration.

(f) No Person may sell or transfer any dog or cat that is less than eight (8) weeks of age.
(Ord. No. 12880, § 4, 11-18-14)

Editor's note—Ord. No. 12880, §§ 1, 4, adopted November 18, 2014, amended the title of § 7-23 to read as set out herein. Previously § 7-23 was titled permit authorizing pet dogs in outdoor dining areas of restaurants.

Sec. 7-24. Postage.

For any licenses, registrations or permits sent by U.S. mail, a charge of one dollar ($1.00) may be imposed to cover the cost of postage and handling.

Secs. 7-25—7-31. Reserved.

ARTICLE III. OFFENSES

Sec. 7-32. Failure to provide adequate care; neglect.

(a) It shall be unlawful for any person who keeps or houses any animal in any residence, business, shelter or other place in the City to fail to supply adequate care to such animal.

(b) It shall be unlawful for any person to neglect an animal as neglect is defined in this chapter.
State law reference—T.C.A. § 39-14-207(a).

Sec. 7-33. Cruelty to animals.

It shall be unlawful for any person to engage in cruelty to any animal as cruelty is defined in this chapter.

Sec. 7-34. Authority to prevent acts of cruelty; unlawful interference.

Any Animal Services Officer or law enforcement officer may lawfully interfere to prevent the perpetration of any act of cruelty upon any animal in his or her presence. It shall be unlawful for any person to interfere with or obstruct any such officer in the discharge of such duty.

Sec. 7-35. Abandonment of animal.

It shall be unlawful for any person owning or having possession, charge, custody or control of an animal to abandon that animal on a street, road, highway, public place, the Animal Center, or private property. Each animal abandoned in violation of this section shall be considered a separate violation.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-36. Animals at large.

(a) It shall be unlawful for any person to allow any animal belonging to him, under his care, or habitually found on premises occupied by him or immediately under his control to go unrestrained or be allowed to be not directly under control. This section shall not apply to any Community Cats or Feral Cats in the City. Any animal found running at large in violation of this section is declared to be a nuisance and liable to seizure and disposal as provided in this chapter.

(b) Any animal found at large more than once in any twelve (12) month period shall be subject to impoundment. Such animal shall not be redeemed by any person until such animal is both microchipped and spayed or neutered. The owner or keeper of such animal shall be responsible for the expense of such microchipping and spaying or neutering. Microchipping, spaying or neutering requirements will be waived upon a showing of (i) proof of microchipping, spaying or neutering from a licensed veterinarian or (ii) a written statement from a licensed veterinarian stating that the microchipping, spaying or neutering procedure would be harmful to the animal.

(c) *Estrous period.* It shall be unlawful for any person having ownership, possession, charge, custody or control of a female dog or female cat to allow that animal to be at large during its estrous period or when in heat. During this period, the owner or person having possession of the animal must restrain the animal in a secure, roofed enclosure in such a manner that will prevent the animal from coming in contact with a male of its species. Any such dog or cat not so confined may be impounded. If the animal is in heat at the time of impound as determined by a licensed veterinarian, such animal shall not be redeemed by any person until such animal is both microchipped and spayed or neutered. This section shall not be construed to prohibit the intentional breeding of animals on the premises of the owners or keepers of the animals involved.

Sec. 7-37. Tethering dogs and other animals.

(a) It shall be unlawful for any person to tie or tether a dog or other animal to a stationary object for more than a reasonable period of time or in a location so as to create an unhealthy situation for the animal or a potentially dangerous situation for a pedestrian as determined by an Animal Services Officer.

(b) The terms "unhealthy situation" and "potentially dangerous situation" shall include, but not be limited to, the following:

(1) Tether, fasten, chain, tie, or restrain an animal, or cause an animal to be tethered, fastened, chained, tied, or restrained, to a dog house, tree, fence, or any other stationary object for longer than a reasonable time;

(2) Tether any animal in such a manner as to permit the animal to leave the owner's property;

(3) Tether any animal in an area that is not properly fenced so as to prevent any person or child from entering the area occupied by said animal;

(4) Tether any animal in a manner or location whereby the animal is subject to harassment or numerous stings or bites from outdoor insects or to attacks by other animals;

(5) Fail to remove waste from the tethered area on a daily basis;

(6) Allow more than one (1) animal to be tethered to each running cable or trolley line;

(7) Use a tether that weighs more than one-fifth (1/5) of the animal's body weight;

(8) Tether, chain, or attach to a running cable line or trolley system any animal at any time between the hours of 10:00 p.m. and 6:00 a.m.;

(9) Use a running cable line or trolley system that is made of a substance which can be chewed by the animal;

(10) Use a tether from the running cable line or trolley system to the animal's collar that prohibits access to food, water, and shelter as well as access to the maximum available area for adequate exercise;

(11) Tether an animal in any manner other than by using a properly fitted harness or collar. Said harness or collar shall not be the same one used for the display of current rabies and/or license tags; and

(12) Tether an animal in a manner or location that would allow for (i) the tangling of the cable or tether; (ii) the extension of the cable or tether over an object or an edge that could result in injury or strangulation of the animal; or (iii) access by the animal to a fence.

(c) A person may do any of the following, provided the dog does not become a nuisance to neighbors:

(1) Attach a dog to a running line, pulley, or trolley system, provided that the dog is not attached by means of a choke collar or pinch collar or for longer than a reasonable period;

(2) Tether, fasten, chain, tie, or otherwise restrain a dog pursuant to the requirements of a recreational area;

(3) Tether, fasten, chain, or tie a dog no longer than is necessary for the person to complete a temporary task that requires the dog to be restrained for a reasonable time; or

(4) Tether, fasten, chain, or tie a dog while engaged in, or actively training for, an activity that is conducted pursuant to a valid license issued by the State of Tennessee if the activity for which the license is issued is associated with the use or presence of a dog. Nothing in this section shall be construed to prohibit a person from restraining a dog while participating in said activity or using accommodations that are reasonably associated with the licensed activity.

Sec. 7-38. Animals present in prohibited areas.

It shall be unlawful for any person to permit his or her animal, or an animal in such person's care, in any public park or recreation area, including pedestrian walkways and bridges, if there is posted in such park or recreation area a sign prohibiting such animals. Any animal found in a public park or recreation area in violation of this section is declared to be a nuisance and liable to seizure and disposal as provided in this chapter.

State law reference—T.C.A. §§ 44-8-401 et seq.

Sec. 7-39. Transporting animal in inhumane manner.

(a) It shall be unlawful for any person in the City to carry or cause to be carried in or upon any vehicle or other conveyance any animal in a cruel or inhumane manner or to transport an animal in such manner that it is subjected to excessive heat.

(b) No person shall transport any animal in or on the back of any open truck or other open vehicle while traveling on any City road, street, highway, lane or alley except as otherwise provided by this section. This subsection shall not apply to any person while engaged in agricultural livestock activities.

(c) This section shall not apply to any person who transports an animal in any open truck or other open vehicle which is sufficiently enclosed by stakes or racks or is equipped with other devices which prevent the animal from falling, hanging, or escaping from the vehicle.

Sec. 7-40. Unattended animal in motor vehicle.

(a) It shall be unlawful for any person to leave an animal unattended in a standing or parked motor vehicle in a manner that endangers the health or safety of the animal.

(b) A person may use reasonable force to remove from a motor vehicle an animal left in the vehicle in violation of subsection (a) if the person is:

(1) An animal control officer under the jurisdiction of the City or the State of Tennessee;

(2) A law enforcement officer;

(3) A public safety employee of the State of Tennessee or of a local government; or

(4) A professional or volunteer member of a fire and/or rescue service.

(c) Any person removing such an animal shall do so at his own risk, but removal of such an endangered animal shall be considered to be acting within the scope and course of employment of an Animal Services Officer or a City of Chattanooga police officer or fire fighter.

Sec. 7-41. Animal causing unsanitary conditions.

(a) It shall be unlawful for any person to allow an animal to cause unsanitary conditions in the City. This serves to require the proper disposal of pet solid waste in the City, so as to protect public health, safety and welfare, and to prescribe penalties for failure to comply.

(b) All owners and keepers of animals are required to immediately and properly dispose of pet solid waste deposited by their animal on any property, public or private, not owned or possessed by that person.

(c) Any owner or keeper who requires the use of a service animal shall be exempt from the provisions of this section while such animal is being used for that purpose if the disability makes compliance difficult.

Sec. 7-42. Animal creating nuisance.

It shall be unlawful for any person to allow any animal under his or her care or control to become a public nuisance as defined in this chapter.

Sec. 7-43. Selling, breeding diseased animals.

(a) It shall be unlawful for a person owning or having possession, charge, custody or control of an animal with a disease or parasite contagious to other animals or human beings to sell or offer for sale within the City such animal to any other person.

(b) It shall be unlawful for a person owning or having possession, charge, custody or control of an animal with a disease or parasite contagious to other animals or human beings to breed or allow the reproduction of that animal in the City. If such animal reproduces, each offspring shall be considered a separate violation.

State law reference—T.C.A. §§ 44-17-701 et seq.

Sec. 7-44. Curbside sales.

It shall be unlawful for a person to sell, barter, trade or adopt, or to attempt to sell, barter, trade or adopt, any animal at a curbside sale within the City.

Sec. 7-45. Sale, barter or giving away of baby fowl or baby rabbits.

It shall be unlawful for any person to (i) sell, offer for sale, barter or give away any fowl under three (3) weeks of age ("baby fowl") or rabbits under two (2) months of age ("baby rabbits") as pets, toys, premiums or novelties; (ii) color, dye, stain or otherwise change the natural color of baby fowl or baby rabbits; or (iii)

bring or transport baby fowl or baby rabbits into the City, provided that this shall not be construed to prohibit the sale or display of baby fowl or baby rabbits in proper facilities by breeders or stores engaged in the business of selling for the purpose of breeding or raising.

Sec. 7-46. Unlawful use of an animal.

Any animal that is used in the commission or furtherance of any criminal activity shall be subject to seizure by an Animal Services Officer or law enforcement officer and processed in accordance with the provisions of this article or any other applicable law.

Secs. 7-47—7-54. Reserved.

ARTICLE IV. BARKING DOGS

Sec. 7-55. Definition.

(a) As used in this article, "barking dog" means any dog which, by causing frequent or long, continued noise for an extended period of time, disturbs the comfort or repose of any person in a residence, hotel, motel or hospital or creates any other noise that a reasonable person would find distressing or disruptive, regardless whether the dog is physically situated in or upon private property. An "extended period of time" means that in a twenty-four (24) hour period, the dog either:

(1) Barks incessantly for fifteen (15) minutes or more; or

(2) Barks intermittently for thirty (30) minutes or more.

(b) A dog shall not be deemed a "barking dog" for purposes of this chapter if, at any time the dog is barking, a person is trespassing or threatening to trespass upon private property in or upon which the dog is situated, or when the dog is being teased or provoked or is responding to an emergency.

Sec. 7-56. Barking dogs generally.

(a) It shall be unlawful for a barking dog, as defined by this article, to exist in the City.

(b) For purposes of this article, a violation occurs when:

(1) A person allows a barking dog violation to exist, whether through willful action, failure to act, or failure to exercise proper control over a barking dog;

(2) A person whose agent, employee, or independent contractor allows a barking dog violation to exist, whether through willful action, failure to act, or failure to exercise proper control over a barking dog; or

(3) A person who is the owner of, or a person who is a lessee or sub-lessee with the current right of possession of, real property allows a barking dog violation to exist in or upon said property.

(c) For purposes of this section, there may be more than one (1) person responsible for a barking dog violation.

Sec. 7-57. Citation for barking dog.

(a) Animal Services Officers or law enforcement officers have the authority to issue a citation to any person responsible for a barking dog violation if probable cause exists based upon the officer's investigation.

(b) For the first violation, the person responsible for a barking dog shall be given a ten (10) day warning period within which to correct the problem before a citation for a barking dog is issued.

(c) Each day a barking dog violation exists shall be a separate violation, with the person responsible for the barking dog violation subject to a separate citation and fine for each such violation. A barking dog citation may include a violation for one (1) or more days on which a violation exists and for violation of one (1) or more Code sections.

Secs. 7-58—7-62. Reserved.

ARTICLE V. POTENTIALLY DANGEROUS AND DANGEROUS DOGS*

Sec. 7-63. Findings.

(a) Dangerous dogs have become a serious and widespread threat to the safety and welfare of citizens and companion animals of this City. In recent years, dogs have assaulted without provocation and seriously injured numerous individuals, particularly children, and have killed other animals. Many of those attacks have occurred in public places.

(b) Such attacks are often attributable to the failure of owners to confine and properly control dangerous and potentially dangerous dogs.

(c) Issues related to dangerous and potentially dangerous dogs necessitate the citywide regulation and control of such dogs.

Sec. 7-64. Citation, hearing, designation, and imposition of conditions for Potentially Dangerous Dog or Dangerous Dog; no change of ownership pending hearing.

(a) If an Animal Services Officer or a law enforcement officer has investigated and determined that there is probable cause to believe that a dog is potentially dangerous or dangerous, a citation shall be issued for the owner to appear in City Court for the purpose of determining whether the dog in question should be designated as a Potentially Dangerous Dog or Dangerous Dog. Except by agreement of the dog's owner and counsel for the City, a hearing shall be held not less than five (5) nor more than fifteen (15) days after service of the citation upon the owner or keeper of the dog.

(b) The Court may designate a dog as a "Potentially Dangerous Dog" if the Court finds, by a preponderance of the evidence, that the dog:

(1) Has, without provocation, chased or approached a person in either a menacing fashion or an apparent attitude of attack while the dog was off the property of its owner;

(2) Has attempted to attack or has attacked a person or domestic animal while on or off the property of its owner;

(3) Has, while off the property of its owner, engaged in any behavior when unprovoked that reasonably would have required a person to take defensive action to prevent bodily injury;

(4) Has, without provocation, bitten a person or a domestic animal causing an injury while on or off the property of its owner; or

(5) Has engaged in other comparable conduct.

***Note—**Formerly Article VIII. (Ord. No. 12343, 1-26-10)

(c) The Court may designate a dog as a "Dangerous Dog" if the Court finds, by a preponderance of the evidence, that the dog:

(1) Has, without provocation, chased or approached a person in either a menacing fashion or an apparent attitude of attack on two (2) or more occasions within the prior eighteen (18) month period while the dog was off the property of its owner;

(2) Has attacked or attempted to attack a person or domestic animal on two (2) or more occasions within the prior eighteen (18) month period while the dog was on or off the property of its owner;

(3) Has, without provocation, bitten a person or a domestic animal causing a severe injury while on or off the property of its owner;

(4) Has been owned, possessed, kept, used or trained in violation of Tennessee Code Annotated § 39-14-203;

(5) Is currently designated a Potentially Dangerous Dog but has not been kept in compliance with the restrictions that a court of competent jurisdiction has placed on the owner of the dog, and such dog has engaged in the conduct described in subsections (b) and (c) of this section that could result in a Potentially Dangerous Dog or Dangerous Dog designation; or

(6) Has engaged in other comparable conduct.

(d) No dog may be declared potentially dangerous or dangerous if:

(1) At the time of the injury or damage, the victim of the injury or damage was (i) committing a willful trespass or other tort upon premises occupied by the owner or keeper of the dog; (ii) teasing, tormenting, abusing or assaulting the dog; or (iii) committing or attempting to commit a crime;

(2) The dog was protecting or defending a person within the immediate vicinity of the dog from an unjustified attack;

(3) Injury or damage was sustained by a domestic animal that, at the time of the injury or damage, was tormenting, abusing or assaulting the dog;

(4) Injury or damage was sustained by a domestic animal while the dog was working as a hunting dog, herding dog or predator control dog on the property of, or under the control of, its owner or keeper, and the damage or injury was appropriate to the work of the dog; or

(5) Injury to a person or domestic animal occurs while the dog is being used by a law enforcement officer to carry out the officer's official duties.

(e) Upon designating a dog as a Potentially Dangerous Dog or a Dangerous Dog, the City Court is authorized to impose on the owner of such dog the restrictions set forth in this article and to impose such additional restrictions on said owner as are appropriate under the circumstances of the case. The Court shall reduce such restrictions to writing and provide a copy to the owner.

(f) It shall be unlawful for any person who is subject to any such restrictions to fail to comply with such restrictions.

(g) It shall be unlawful for any person who has been served with a citation to appear in City Court for the purpose of determining whether such person's dog should be designated as a Potentially Dangerous Dog or Dangerous Dog to transfer ownership of such dog until after the City Court has issued a ruling on such a citation.

(h) It shall be unlawful for any person whose dog has been designated as a Potentially Dangerous Dog or Dangerous Dog to transfer ownership of such dog to another person without (i) having advised such other person that the dog has been designated as a Potentially Dangerous Dog or Dangerous Dog and (ii) having advised such other person in writing of the restrictions that have been placed upon such dog.

Sec. 7-65. Notice of designation.

Within ten (10) working days after a hearing conducted pursuant to this article, the owner or keeper of the dog, if absent from the hearing, shall be notified by the City Court in writing, by first-class mail, postage prepaid, of the decision of the Court and of any requirements and/or restrictions imposed upon that person. If a dog is declared to be a Potentially Dangerous Dog or a Dangerous Dog, the owner or keeper shall comply with all restrictions imposed by this article and by the City Court.

Sec. 7-66. Impoundment and disposition of Potentially Dangerous Dog or Dangerous Dog.

(a) If upon investigation an Animal Services Officer or law enforcement officer determines that probable cause exists to believe that a dog poses an immediate threat to public safety, then the Animal Services Officer or law enforcement officer may immediately seize and impound the dog pending a hearing to be held pursuant to this article. At the time of the impoundment or as soon as practicable thereafter, the officer shall serve upon the owner or custodian of the dog a notice stating the time and location that a hearing will be held to determine whether to declare the dog potentially dangerous or dangerous.

(b) An Animal Services Officer or law enforcement officer may impound any Potentially Dangerous Dog or Dangerous Dog if the officer has reasonable cause to believe that any of the requirements or restrictions upon such dog are not being followed and that such failure to follow the requirements or restrictions would likely result in a threat to public safety. The owner or custodian of such Potentially Dangerous Dog or Dangerous Dog shall surrender the dog to an Animal Services Officer or law enforcement officer upon demand, and the officer shall promptly serve a citation upon the owner of such dog for violation of the provisions of this chapter and notify the owner of a hearing date before a City Court judge to contest the charges.

(c) No dog that has been designated by the Court as a Potentially Dangerous Dog or Dangerous Dog may be released by the Animal Center until the owner has paid to the Animal Center all fees and costs that are normally charged to an owner prior to redemption of an animal. If the owner fails to pay such fees and costs and to take possession of the dog within ten (10) days of the owner's receipt of notice of the dog's designation as a Potentially Dangerous Dog or Dangerous Dog, the dog shall be deemed to have been abandoned and may be disposed of by the Animal Center. Euthanasia or surrender to the Animal Center of such a dog does not free the owner of responsibility for all costs incurred up to and including the date of the euthanasia or surrender.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-67. Possession unlawful without proper restraint; failure to comply with restrictions.

(a) It shall be unlawful for a person to have custody of, own, or possess a Potentially Dangerous Dog or a Dangerous Dog that is not properly restrained.

(b) It shall be unlawful for a person to have custody of, own, or possess a Potentially Dangerous Dog or a Dangerous Dog unless such person is in full compliance with all restrictions placed upon such person by the Court that has designated such dog as a Potentially Dangerous Dog or a Dangerous Dog.

Sec. 7-68. Requirements and restrictions on Potentially Dangerous Dogs.

(a) Once a City Court judge designates a dog as a Potentially Dangerous Dog, the judge may impose any or all of the following restrictions upon the owner or custodian of the dog:

(1) The dog must be kept indoors or confined on the owner's or keeper's property by a fence (other than an electronic fence) capable of confining the dog or by a proper enclosure;

(2) The owner must allow inspection of the dog and its enclosure by the Animal Center and must produce, upon demand, proof of compliance with all Court-imposed requirements and restrictions;

(3) The dog shall wear a collar and/or tag that visually identifies the dog as being potentially dangerous (purchased through the Animal Center, as set forth in Section 7-18(c));

(4) The owner and dog must attend and complete a course on commonly accepted dog obedience methods approved by the Animal Center;

(5) The owner and dog must attend and successfully complete an American Kennel Club Canine Good Citizen course and test within a time specified by the Court;

(6) The dog must be spayed or neutered at the owner's expense; and

(7) An identification microchip must be implanted in the dog, with the serial number of the microchip supplied to the Animal Center.

(8) Any other requirement or restriction that the Court deems necessary.

(b) The cost of all requirements and restrictions must be paid by the owner.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-69. Requirements and restrictions on Dangerous Dogs.

(a) Once a City Court judge designates a dog as a Dangerous Dog, the judge may impose any or all of the following restrictions upon the owner or custodian of the dog:

(1) The dog must be kept in a proper enclosure if the dog is maintained unattended out-of-doors. Such proper enclosure must be enclosed within an outer fence, and the outer perimeter of the proper enclosure must be no less than five (5) feet from the outer fence;

(2) The owner must allow inspection of the dog and its enclosure by the Animal Center and must produce, upon demand, proof of compliance with all Court-imposed requirements and restrictions;

(3) The dog shall wear a collar and/or tag that visually identifies the dog as being dangerous (purchased through the Animal Center, as set forth in Section 7-18(c));

(4) The owner and dog must attend and complete a training class and/or behavior modification course approved by the Animal Center that is designed to teach the owner how to deal with, correct, manage and/or alter the problem behavior;

(5) A sign having reflective letters and backing, with letters measuring at least one and one-half (1.5) inches in width and one and one-half (1.5) inches in height and reading "Beware of Dangerous Dog" shall be posted in a conspicuous place at all entrances to the premises on or within which such dog is kept. The cost of such signs, available exclusively from the Animal Center, shall be included in the annual fee for a Dangerous Dog;

(6) A Dangerous Dog shall not be permitted to leave the premises of the owner unless such dog is properly restrained and humanely muzzled for protection of persons and other animals;

(7) A Dangerous Dog may never, even with the owner present, be allowed to be unrestrained on property that allows the dog direct access to the public;

(8) The owner of a Dangerous Dog shall not permit the dog to be chained, tethered or otherwise tied to any inanimate object such as a tree, post or building, inside or outside of its own separate enclosure;

(9) The dog shall be photographed by the Animal Center for future identification purposes;

(10) The dog must be spayed or neutered at the owner's expense;

(11) An identification microchip must be implanted in the dog, with the serial number of the microchip supplied to the Animal Center;

(12) The owner of the dog or owner of the premises on which the dog is kept shall be required to obtain and maintain liability insurance in the amount of one hundred thousand dollars ($100,000.00) and to furnish a certificate of insurance to the Animal Center;

(13) The owner of the dog shall maintain and update annually a record with the Animal Center that contains:

(i) Contact information for the dog's owner(s) or agent, emergency contact persons, veterinarian, and landlord and/or property owner;

(ii) Information about property/liability insurance;

(iii) The dog's inoculation records and license numbers;

(iv) A photo of the animal; and

(v) Any other information deemed necessary by the Animal Center.

(14) Samples preserved for possible DNA identification must be delivered to the Animal Center;

(15) The owner shall notify the Animal Center in writing of the location of the dog's residence, temporary or permanent, and shall notify the Animal Center in writing in advance of plans to move the dog to another residence within the City or outside the City and/or to transfer ownership of the dog; and

(16) Any other requirement or restriction that the Court deems necessary.

(b) The cost of all requirements and restrictions must be paid by the owner.

(c) The designation of Dangerous Dog and the requirements and restrictions imposed on such dog remain in effect for the life of the dog. A Dangerous Dog designation shall not be removed.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-70. Removal of designation of Potentially Dangerous Dog.

If there are no additional instances of the behavior described in Section 7-59(b) within eighteen (18) months of the date of designation as a Potentially Dangerous Dog, the dog shall automatically be removed from the list of Potentially Dangerous Dogs. The dog may be, but is not required to be, removed from the list of Potentially Dangerous Dogs prior to the expiration of the eighteen (18) month period if: (i) the owner or keeper of the dog demonstrates to the Animal Center, and the Animal Center confirms, that changes in circumstances or measures taken by the owner or keeper, such as training of the dog or confinement, have mitigated the risk to public safety; and (ii) the owner or the Animal Center petitions the City Court to remove such designation, and the Court agrees to do so.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-71. Change of ownership, custody or location of dog; death of dog.

(a) The owner or custodian of a Potentially Dangerous Dog or Dangerous Dog who moves or sells the dog, or otherwise transfers the ownership, custody or location of the dog, shall, at least fifteen (15) days prior to the actual transfer or removal of the dog, notify the Animal Center in writing of the name, address and telephone number of the proposed new owner or custodian, the proposed new location of the dog, and the name and description of the dog.

(b) In addition to the requirements in subsection (a) above, the owner or custodian shall notify any new owner or custodian of a Potentially Dangerous Dog or Dangerous Dog in writing regarding the details of the dog's record and the requirements and restrictions imposed by the Court. The transferring owner or

custodian shall also provide the Animal Center with a copy of the notification given to the new owner or custodian and proof that the new owner or custodian received the notification and agreed to accept and abide by the requirements and restrictions placed on the dog.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-72. Escape, death of Potentially Dangerous Dog or Dangerous Dog.

(a) If a Potentially Dangerous Dog or Dangerous Dog escapes, the owner or custodian shall immediately notify the Animal Center and make every reasonable effort to recapture the escaped dog to prevent injury and/or death to humans or domestic animals.

(b) If a Potentially Dangerous Dog or Dangerous Dog dies, the owner or custodian shall notify the Animal Center no later than twenty-four (24) hours thereafter and, upon request from the Animal Center, shall produce the animal for verification or evidence of the dog's death that is satisfactory to the Animal Center.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-73. Dogs designated outside City as potentially dangerous or dangerous.

(a) The owner of a dog designated as a Potentially Dangerous Dog, a Dangerous Dog, or any similar designation is subject to the restrictions set forth in this chapter while said dog is located within the city limits of Chattanooga.

(b) The following persons must notify the Animal Center when relocating a dog to Chattanooga, even on a temporary basis:

(1) The owner of a Potentially Dangerous Dog or Dangerous Dog that has been designated as such by another lawful body other than the City of Chattanooga; and

(2) The owner of a dog that has had special restrictions placed on it by any humane society or governmental entity or agency other than the City of Chattanooga based upon the behavior of the dog.

(c) No such designation as a Potentially Dangerous Dog or Dangerous Dog or any similar such designation shall be recognized by the City of Chattanooga if such designation is based solely on the breed of the dog.
(Ord. No. 12880, § 1, 11-18-14)

Secs. 7-74—7-79. Reserved.

ARTICLE VI. IMPOUNDMENT, REDEMPTION AND DISPOSITION OF ANIMALS

Sec. 7-80. Impoundment, destruction of violating animals authorized.

(a) The Animal Center is authorized to seize and impound any animal found running at large and/or in violation of this chapter.

(b) If, in the attempt to seize an animal, it becomes impossible to do so with the hands, any Animal Services Officer or law enforcement officer, being convinced that seizure of the animal is necessary to public welfare by reason of its viciousness or infection with rabies, may, at his or her discretion, tranquilize the animal, or a law enforcement officer may dispose of the animal by shooting it. If any animal so impounded is found to be neonatal, suffering in pain, sick, injured, contagious, carrying a zoonotic disease or vicious, the animal may be immediately destroyed in a humane manner as provided in Section 7-80.

(c) The animal's owner shall be responsible for all expenses incurred during the animal's impoundment. (Ord. No. 12880, § 1, 11-18-14)

Sec. 7-81. Seizure of at-large animals upon return to property.

(a) An Animal Services Officer or law enforcement officer may, upon viewing an animal at large, return the animal to its owner's property or impound such animal for safe keeping if, in the opinion of the officer:

(1) There is no way to ensure the animal's confinement to the property if the officer were to leave it there to await the owner's return;

(2) It could present a danger to the public, traffic or other animals if left until the owner returns; or

(3) The animal is not considered to be under control at the time of impoundment.

(b) This section does not authorize the entry into any building or enclosure on the property, nor the removal, without a search warrant or the tenant's or property owner's written permission, of any animal from any building or enclosure on the property.

Sec. 7-82. Notification of impoundment.

(a) Upon impounding an animal, the Animal Center or its designee shall give notice of such seizure by one (1) of the following methods:

(1) By delivering a notice of impoundment to a person believed to be residing at the property where the animal is believed to reside within twenty-four (24) hours of the time the animal was seized;

(2) By posting a copy of the notice of impoundment on the front door or entrance of the animal owner's property or in a place on the owner's property that is visible from the public right-of-way or at the property location at which an Animal Services Officer reasonably believes the animal may reside; or

(3) By letter sent by certified mail via the United States Postal Service to the address of the owner, if known, within two (2) days after the seizure of such animal.

(b) The notice or letter shall inform the owner of the conditions whereby the animal may be redeemed, including, if applicable, the court date for contesting the impoundment. Notice shall not be required for animals that have been abandoned or relinquished by their owner.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-83. Redemption of impounded animals by owner; fees.

(a) The owner of any animal confined in the Animal Center may, before the expiration of the legal holding period, redeem the animal upon payment of the assessed fees and production of proof of ownership, as described herein, unless said owner has been directed to appear in City Court for a violation involving said animal.

(b) If allowed to reclaim an impounded animal, the owner of a dog or cat impounded for the first time may claim and redeem it upon payment of the license fee required by this chapter and an impound fee of twenty dollars ($20.00) plus board for each day the dog or cat has been kept at the Animal Center at the rate of ten dollars ($10.00) per day. Each subsequent time said dog or cat is impounded, the impound fee shall be fifty dollars ($50.00) in addition to the board of ten dollars ($10.00) per day and the license fee, if applicable. All veterinary costs and other costs incurred as a result of impound shall be the responsibility of the owner and shall be required to be paid in full whether the animal is reclaimed or relinquished to the Animal Center.

(c) If allowed to reclaim impounded livestock, the owner of said livestock may claim and redeem such animal by paying the Animal Center an impound fee of fifty dollars ($50.00) and board for each day at the rate of ten dollars ($10.00) per day plus the cost of transporting the animal to the shelter. Such costs, as well as all veterinary costs and other costs incurred as a result of the impound, shall be the responsibility of the owner and shall be required to be paid in full whether the animal is reclaimed or relinquished to the Animal Center.

(d) To redeem or adopt an animal, a person must be at least eighteen (18) years of age, provide photo identification, and provide a recent utility bill or other proof of legitimate residency.

(e) If the owner of an impounded animal is not allowed to reclaim the animal before a court hearing, said owner shall be entitled to a hearing before the City Court within fourteen (14) days of the impoundment of the animal to contest the impoundment.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-84. Disposition of unclaimed dogs or cats.

(a) Any dog or cat with a current tag, registered microchip, or other identification that has been impounded shall be kept for a period of ten (10) days after certified notice is mailed to the owner, and if not redeemed within such period, may be humanely destroyed or otherwise disposed of as provided by law.

(b) Any dog or cat without a current tag, registered microchip, or other identification that has been impounded shall be kept for a period of five (5) days and, if not claimed or redeemed within such period, shall be humanely destroyed or otherwise disposed of as provided by law.

(c) Litters of puppies or kittens estimated to be less than six (6) months of age, as determined by the emergence of adult canine teeth, without an actively nursing mother shall have no required holding period for disposition. For this section, a "litter" shall be considered two (2) or more animals of apparently the same age and breed/mix.

(d) All dogs and cats that are so unsocialized as to pose a threat to the safety and welfare of the Animal Center employees or the public shall be expeditiously and humanely euthanized.

(e) The Animal Center shall not be required to shelter or care for any feral, wild or exotic animals.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-85. Requirements for redeeming or adopting animals.

(a) No person shall adopt a dog or cat from a releasing agency, including the Animal Center or private organization operating a shelter from which animals are adopted or reclaimed, unless the dog or cat has first been spayed or neutered.

(b) The releasing agency may require the new owner to pay a fee for the spaying or neutering of the animal. The provisions of this section shall not apply to persons selling or giving away animals from a residence, business or retail pet facility.

(c) Except for dogs and cats for which the owner can provide proof of inoculation, all dogs and cats redeemed from the Animal Center shall be inoculated against rabies prior to redemption, provided that if the dog or cat is less than three (3) months old, a deposit of not less than ten dollars ($10.00) shall be collected from the person redeeming the animal, which shall be refunded upon presentation of proof of rabies inoculation within fifteen (15) days of the animal reaching four (4) months of age. In the alternative, a person

adopting a dog or cat may prepay the cost of such inoculation at the Animal Center; such person must obtain the inoculation within fifteen (15) days of the adoption of such dog or cat if the animal is over three (3) months of age or within fifteen (15) days of the dog or cat reaching three (3) months of age.
(Ord. No. 12880, § 1, 11-18-14)

State law reference—T.C.A. § 44-17-502.

Sec. 7-86. Keeping stray animals; failure to surrender stray animal.

It shall be unlawful for any person in the City to knowingly and intentionally harbor or keep in possession by confinement or otherwise any animal that does not belong to such person without permission of the owner. Any person within twenty-four (24) hours from the time such animal came into his or her possession must surrender the animal to the Animal Center. Upon receiving said animal, an Animal Services Officer shall take such animal and place it in the Animal Center for a required legal stray hold period of five (5) days. If such animal is not reclaimed after five (5) days, the person who possessed and surrendered the animal may apply through normal process and fees to become the adoptive owner of the animal. The expense of sheltering fees, license fee and rabies inoculation must be assumed by the owner if the animal is reclaimed prior to the end of the five (5) days. No person harboring such an animal shall refuse to relinquish such animal to its legal owner prior to the expiration of said five (5) days.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-87. Immediate placement for adoption or destruction of animal surrendered by owner.

An animal surrendered by its owner to the Animal Center may be immediately placed for adoption or humanely destroyed in the discretion of the Director or the Director's designee when the owner:

(a) Affirmatively represents by affidavit that he or she is in fact the legal owner of said animal;

(b) Agrees to hold the Animal Center and its officials and employees harmless from any liability, claims, or damages that may be sustained by reason of the adoption or destruction of said animal; and

(c) Transfers ownership of said animal to the Animal Center.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-88. Destruction of dangerous, diseased or injured animals.

(a) It shall be the duty of the Director to order the humane destruction of any animal lawfully in the custody of the Animal Center if it is deemed more humane to euthanize such animal than to hold it for the required holding period if it is diseased, significantly injured, suffering, neonatal, feral, highly aggressive, or so unsocialized as to cause a danger to the Animal Center employees or the public, and due to such condition is an improbable candidate for adoption. Such determination shall be made by the Director, a licensed veterinarian or two (2) reputable, experienced employees in the animal welfare field by viewing the animal and giving written certification of the animal's condition. The Director may order euthanasia of the animal either by written authorization or by verbal authorization followed by written confirmation.

(b) If the determination is made under subsection (a) to euthanize the animal, and the animal's owner can be identified, such as through a registered microchip, tattoo or collar with identification, a reasonable attempt shall be made to notify the owner before the animal is euthanized, provided, however, that if the animal is in critical condition and the owner cannot be reached within a reasonable time, the animal may be euthanized for humane reasons.

(c) If the determination is made under subsection (a) to euthanize the animal, and the animal has no detectable identification, the animal may be euthanized immediately. In no event shall the disposition of the animal be delayed beyond forty-eight (48) hours after it is determined that said animal should, for humane reasons, be destroyed by humane euthanasia.
(Ord. No. 12880, § 1, 11-18-14)

State law reference—T.C.A. §§ 44-17-302 et seq.

Secs. 7-89—7-95. Reserved.

ARTICLE VII. TRAPPING ANIMALS*

Sec. 7-96. Definition.

As used in this article, "trapping" means taking, killing or capturing wildlife by the use of any trap, snare, deadfall or other device commonly used to capture wildlife, and the shooting or killing of wildlife lawfully trapped, and includes all lesser acts such as placing, setting or staking such traps, snares, deadfalls or other devices, whether or not such acts result in the taking of wildlife, and every attempt to take and every act of assistance to any other person in taking or attempting to take wildlife with traps, snares, deadfalls or other devices.

State law reference—T.C.A. §§ 70-4-120, 70-4-113.

Sec. 7-97. Poisoning or trapping animals.

It shall be unlawful to trap animals within the City unless a humane trap is used and the animal is humanely destroyed or relocated as is allowed by this chapter. This shall not be deemed to apply to setting traps for vermin in any house or other building or to apply to any licensed trapper removing nuisance or destructive wildlife. It shall be unlawful for any person to poison or trap any animal or to aid, abet or assist in the poisoning or trapping of any animal or the putting out or placing of poison or a trap at any place outside of buildings within the City where companion animals may secure or encounter the poison or trap; provided, however, that in instances where any animal by reason of damage to property, danger to life, or threat to public health becomes a nuisance, a live, humane trapping method may be used. This provision shall not be construed to prohibit or conflict with the trapping of wildlife in accordance with State law.

Sec. 7-98. Exception.

This article shall not apply to animal traps set by the Animal Center pursuant to Section 7-7.
(Ord. No. 12880, § 1, 11-18-14)

Secs. 7-99—7-104. Reserved.

ARTICLE VIII. LARGE ANIMALS†

Sec. 7-105. Record to be kept.

Whenever any livestock or large animal of any kind is found which is required to be impounded, an Animal Services Officer shall take such animal to the Animal Center or other adequate holding facility and

---

***Note—**Formerly Article VIII. (Ord. No. 12343, 1-26-10)

†**Note—**Formerly Article VII, Miscellaneous. (Ord. No. 12343, 1-26-10)

shall maintain a careful description of the animal, the precise date and time of day at which it was found, and the location where it was found. The records of such large animals shall be open for inspection by the public under the supervision of the Animal Center.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-106. Impoundment and disposition of large animals or fowl.

Any livestock, other large animals or fowl found running at large or otherwise being kept in violation of this chapter may be impounded by an Animal Services Officer or a law enforcement officer and confined at the Animal Center or other adequate holding facility. Immediately upon impounding such animal, the Animal Center or its designee shall give notice in the manner provided in Section 7-74. If the owner is not known, a notice describing the impounded animal or fowl will be posted on the website of the Animal Center and provided to the Office of the City Attorney for the City of Chattanooga and to the Chattanooga Police Department. The notice shall state that the impounded animal or fowl must be claimed within three (3) days or it will be adopted, auctioned or humanely destroyed. Any person claiming an impounded animal shall be required to show satisfactory proof of ownership and to pay the costs of impounding and maintaining the animal.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-107. Keeping or possessing swine, goats or fowl.

(a) It shall be unlawful for any person to keep or possess swine, goats or fowl within the City on property other than agriculturally zoned land, unless such animals are kept on a tract of land containing five (5) or more contiguous acres. Any such animals must be kept or maintained in a manner which does not constitute a nuisance, including foul or offensive odors. Any person keeping chickens and/or roosters on a tract of land containing two (2) or more contiguous acres prior to December 1, 2005, shall be permitted to continue, provided that such use is not discontinued for thirty (30) or more continuous days.

(b) This section shall not apply to swine, goats or fowl that are in the City solely to be transported through the City or to be offered for sale at regularly operated stockyards or slaughterhouses. This section also shall not apply to miniature pigs or potbellied pigs kept as house pets.

(c) This section shall not apply to urban chickens kept pursuant to the regulations contained within Chattanooga City Code Section 7-145.
(Ord. No. 14257, § 1, 7-29-25)

Sec. 7-108. Livestock and fowl at large prohibited.

It shall be unlawful for any person owning or controlling any livestock or fowl to allow such animals to run at large in the streets or on any public or private property in the City without the permission of the owner of such land.

State law reference—T.C.A. § 44-8-401.

Sec. 7-109. Horses, mules prohibited on sidewalks.

It shall be unlawful for any person to permit any horse or mule in his or her custody to go upon any sidewalk in the City. This section shall not apply to law enforcement officers in the official performance of their duties.

Secs. 7-110—7-114. Reserved.

ARTICLE IX. EXOTIC ANIMALS

Sec. 7-115. Keeping of exotic animals prohibited.

No person shall have, keep or permit to be kept on his or her premises within the City any exotic animal as defined in this chapter.

Sec. 7-116. Notice required at place of sale.

Any person who offers for sale an exotic animal as defined in this chapter shall post conspicuously at the place of sale or display the following notice:

"No person may lawfully have, keep or permit to be kept within the corporate limits of the City of Chattanooga, Tennessee, any exotic animal, as defined in chapter 7 of the Chattanooga City Code. An exotic animal includes any animal that would ordinarily be confined to a zoo, or one (1) which would ordinarily be found in the wilderness of this or any other country, or one (1) which otherwise causes a reasonable person to be fearful of bodily harm or significant destruction of property. By way of example, such animals include, but are not limited to, any live monkey (non-human primate); raccoon; skunk; wolf; squirrel; fox; leopard; panther; tiger; lion; lynx; bear; deer; elephants; ostriches; sharks; any poisonous animal, fish or reptile; or any other warm-blooded animal, poisonous snake or tarantula which can normally be found in the wild state; or any other member of the crocodilian species, including, but not limited to, alligators, crocodiles, caimans, and gavials."

Sec. 7-117. Exceptions to exotic animal prohibition.

The prohibition of Section 7-101 shall not apply to the following:

(a) A zoological park accredited by the American Association of Zoological Parks;

(b) Any veterinary establishment licensed by the state;

(c) Any laboratory facilities owned and maintained by licensed veterinary hospitals; or

(d) Appropriately accredited colleges, universities or other institutions of higher learning which own, keep or maintain any such animals for educational or scientific purposes.

Secs. 7-118—7-123. Reserved.

ARTICLE X. DEAD ANIMALS

Sec. 7-124. Disposal of small animals.

All small dead animals shall be placed and kept in cans provided for the removal of garbage until collected by the City. Animals may also be presented for euthanasia and cremation at the Animal Center for a fee.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-125. Disposal of large animals in the City.

It shall be unlawful for any person to bury any large dead animal in the City or to deposit same upon the surface of the ground or throw it into any river, creek or other stream or any well, cistern, cellar or other excavation or to hide it in any culvert or other place or in any way to leave or dispose of it in the City. The owner or occupant of any premises in the City upon which any large animal dies or is found dead shall

remove such animal, or cause the same to be removed, within six (6) hours from the time such animal dies or is found dead, unless it dies or is found dead after 6:00 p.m., in which case it shall be removed before noon of the following day. Such animals may be disposed of at the City landfill for a fee.

Secs. 7-126—7-130. Reserved.

ARTICLE XI. GUARD DOGS

Sec. 7-131. Registration of guard dogs.

(a) All persons using dogs as guard dogs, as defined in this chapter, shall register said dogs with the Animal Center and obtain a license by filing a registration form with the Animal Center that includes the following information:

(1) A legal description or the business address of the premises at which the guard dog owner desires to keep or employ the registered guard dog to prevent unauthorized intrusion;

(2) A statement concerning whether the guard dog owner owns or rents the premises to be guarded. If the individual rents the property, he or she must submit a written statement from the property owner giving permission for a guard dog to be kept on the property to prevent unauthorized intrusion for the duration of the registration period;

(3) A description of the guard dog for purposes of identification;

(4) An acknowledgment by the guard dog owner regarding whether the dog has been trained as a guard dog to exhibit hostile propensities;

(5) An acknowledgment by the guard dog owner that the property to be guarded has devices such as fencing to prevent general access by the public to the guard dog when the dog is being used to guard the premises;

(6) An acknowledgement by the guard dog owner that the property is properly signed, as specified in Section 7-115(c), to forewarn the public of the dog's presence on the property; and

(7) An acknowledgement by the guard dog owner that the dog will be maintained in such a manner as to insure the safety of the public and the welfare of the animal.

(b) The fee for registering a guard dog shall be seventy-five dollars ($75.00) per year.

(c) The registration shall be valid for one (1) year.

(d) A guard dog owner must comply with all requirements of this article before the Animal Center issues a guard dog license and tag.

[e] A guard dog owner must renew the registration of the guard dog annually while the dog is kept or employed as a guard dog on the property.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-132. Requirements of guard dog owners.

(a) All registered guard dogs shall wear a special tag to identify them as guard dogs. Such tags are available only from the Animal Center.

(b) All registered guard dogs shall be implanted with an identification microchip, and the serial number of the microchip shall be supplied to the Animal Center.

(c) The guard dog owner shall post signs in conspicuous places at all entrances to the property at which the guard dog is employed. The signs shall have reflective letters that are a minimum of two (2) inches and a maximum of ten (10) inches in height stating, "Beware of Guard Dog on the Property." Such a sign shall also have a telephone number for law enforcement officers or firefighting personnel to call in an emergency situation or other situation in which the guard dog owner's presence is required.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-133. Inspections.

(a) Before issuing a license and tag for a guard dog, the Director of the Animal Center or an authorized representative shall inspect the property that is stated on the registration form as the location where the guard dog will be kept or employed.

(b) The Director or an authorized representative of the Animal Center shall perform an inspection of the premises each year prior to the renewal of a guard dog license and tag.

(c) The Director or an authorized representative of the Animal Center periodically may make routine inspections of the premises where the dog is located for the purpose of enforcing the provisions of this article.

[d] Inspections under this section shall include verification by the Animal Center that the guard dog owner is taking adequate measures to protect the health, welfare and safety of the general public and to ensure the humane treatment of the guard dog. If the property is deemed inadequate during the inspection, the guard dog owner will be informed of the changes that must be made before the license can be issued.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-134. Limitations.

The provisions of this article shall not apply to any facility possessing or maintaining guard dogs that is owned, operated or maintained by any city, county, state or the federal government.

Secs. 7-135—7-140. Reserved.

ARTICLE XII. MISCELLANEOUS*

Sec. 7-141. City declared wild bird sanctuary; acts prohibited.

The entire area embraced within the City is hereby designated as a sanctuary for wild birds. It shall be unlawful to trap, hunt, shoot or attempt to shoot or molest in any manner any wild bird or to rob any bird's nest. When any species of wild bird is found to be congregating in such numbers in a particular locality that they constitute a nuisance or menace to health or property, and if such are declared by qualified authorities to be creating a public nuisance and the Mayor is so informed, appropriate action may be taken by duly constituted officials after a thorough investigation. Trapping or killing of such birds shall not be resorted to unless Audubon societies, bird clubs, humane societies, or the Animal Center are unable to find a satisfactory alternative. Legally permitted hunting through the State of Tennessee is expressly exempted from this provision.
(Ord. No. 12880, § 1, 11-18-14)

***Note—**Formerly Article X. (Ord. No. 12343, 1-26-10)

Sec. 7-142. Penalty for violations.

Any person violating the provisions of this chapter may be subject to a civil penalty or fine of up to fifty dollars ($50.00) for each violation.

Sec. 7-143. Severability.

If any provision of this chapter or the application thereof to any person or circumstance is held invalid, that invalidity shall not affect other provisions or applications of the chapter which can be given effect without the invalid provision or application, and to this end the provisions of this chapter are severable.

Sec. 7-144. Other laws not affected.

Nothing in this chapter shall affect the authority of any law enforcement officer to respond appropriately to any situation in which there is an imminent threat by an animal to the safety of any person. This chapter shall not prohibit the seizure or impoundment of dogs as evidence, as provided for under any other provision of law, nor shall any other laws, whether local or state, be affected by this chapter.

Sec. 7-145. Urban chickens.

(a) *Purpose.* The purpose of this provision is to provide standards for the keeping of urban chickens. It is intended to enable city residents to keep a small number of female chickens (hereinafter "laying hens") on a noncommercial basis while limiting the potential adverse impacts on the surrounding neighborhood. The city recognizes that adverse neighborhood impacts may result from the keeping of urban chickens as a result of noise, odor, unsanitary animal living conditions, unsanitary waste storage and removal, the attraction of predators, rodents, insects, parasites, and non-confined animals leaving the owner's property. This section is intended to create standards and requirements on a trial basis to determine that urban chickens do not adversely impact the neighborhood surrounding the property on which urban chickens are kept.

(b) *Number and type of chickens allowed in all residential zones.*

1) Only female chickens (hereinafter "laying hens") are allowed. No roosters shall be allowed to be kept in any zone other than an A-1 agricultural zone. There is no restriction on urban chicken breeds of the species gallus domesticus. However, it shall be unlawful for any person to keep ducks, geese or other fowl and poultry, other than laying hens which are allowed subject to the limitations of this section;

2) Up to eight (8) laying hens are allowed on any single family residential lot or other residential zones with designated rear yards for dwellings. Up to twenty (20) laying hens per acre are allowed within the A-1 Agricultural Zone subject to the provisions of this Ordinance. In the case of multifamily residential zones, without individually owned rear yards, the maximum number of laying hens allowed for all residential units is ten (10) per complex to be maintained on common property;

3) Chicken enclosures shall only be kept as an accessory use to a residence and subject to the distance setbacks for other accessory structures from adjoining properties. Enclosures shall not be permitted on vacant lots;

4) For the purposes of this section, juvenile chicks shall be counted against the limits of the number of permitted laying hens in subsection (b)(1) hereinabove; and

5) Incubation and hatching of chicks shall not be permitted in any zone other than an A-1 agricultural zone.

(c) *Noncommercial use only.* Laying hens shall be kept for personal use only; no person shall sell eggs or engage in chicken breeding or fertilizer production for commercial purposes pursuant to this ordinance. No laying hens shall be used or trained for the purpose of fighting for amusement, sport, or financial gain.

(d) *Fenced enclosures and henhouses.*

1) Laying hens must be kept in a fenced enclosure in the rear yard at all times. The fenced enclosure must be either: (i) covered or (ii) at least forty-two (42) inches high, in which case, all hens must be wing-clipped to prevent escape. Laying hens shall be secured within the henhouse during non-daylight hours;

2) In addition to the fenced enclosure, laying hens shall be provided with a covered, predator-resistant henhouse;

3) A minimum of two (2) square feet per hen shall be provided for henhouses and six (6) square feet per bird for fenced enclosures;

4) Fenced enclosures and henhouses must be properly ventilated, clean, dry, and odor-free, kept in a neat and sanitary condition at all times, in a manner that will not disturb the use or enjoyment of neighboring properties due to noise, odor or other adverse impact;

5) The henhouse and fenced enclosure must provide adequate ventilation and adequate sun and shade, and must be constructed in a manner to resist access by rodents, wild birds, and predators, including dogs and cats;

6) Henhouses shall be enclosed on all sides and shall have a roof and doors. Access doors must be able to be shut and locked at night. Opening windows and vents must be covered with predator- and bird resistant wire of less than one (1) inch openings;

7) The henhouse shall be well-maintained and there shall be no outside slaughtering of any laying hens in the City;

8) Henhouses shall be located in compliance with the setback restrictions for accessory structures in the City of Chattanooga Zoning Regulations;

9) Neither the henhouse nor the fenced enclosure may be located less than five (5) feet from any abutting property line and must be at least fifty (50) feet from any stream or running surface water;

10) Any laying hens must be kept in a secure enclosure at all times;

11) Henhouses and enclosures shall not be permitted in front or side yards;

12) The materials used in making the enclosure shall be uniform for each element of the structure within the city such that the walls are made of the same materials, the roof has the same shingles or other covering, and any windows or openings are constructed using the same materials. The use of scrap, waste board, sheet metal, or similar materials to construct the enclosure is prohibited. Enclosures shall be maintained in good, neat, and serviceable condition;

13) There shall be no more than one such enclosure per lot and no such enclosure shall exceed eight feet in height measured from the highest point on the roof to ground level; and

14) Mobile henhouses and enclosures shall be permitted so long as they meet all other requirements of the ordinance and are only moved within the setback requirements in the rear yard.

(e) *Food storage and removal.* All stored food for the laying hens must be kept either indoors or in a weather-resistant container designed to prevent access by animals. Uneaten food shall be removed daily.

(f) *Waste storage and removal.* Provision must be made for the storage and removal of chicken manure. All manure for composting or fertilizing shall be contained in a well-aerated garden compost pile setback from adjoining properties. All other manure not used for composting or fertilizing shall be removed. In addition, the henhouse and surrounding area of any enclosure must be kept free from trash and accumulated droppings.

(g) *All other rules of this code apply.* In addition to the standards set forth in this ordinance, all individuals keeping urban chickens must follow all other applicable rules for the keeping of animals included in this chapter subject to inspection by Land Development officers.

(h) *Private Property Restrictions.* No property owner or occupant shall be entitled to keep laying hens as otherwise provided for herein in contravention of any established private subdivision restrictive covenants and/or Homeowner Association limitations applicable to the property.

(i) *Penalty.* In addition to any other enforcement action which the city may take, violation of any provision of this section shall be a civil penalty which may be imposed by an Administrative Hearing Officer. Each day that a violation continues will be treated as a separate offense.

(j) *Enforcement.* Enforcement of this ordinance shall be administered through the City's contracted Animal Services provider. This ordinance may also be enforced by the Land Development Office as needed. Violations and civil penalties shall be enforced through the Administrative Hearing Officer. This ordinance shall be reviewed on an annual date on or before one (1) year after it takes effect to determine whether this ordinance has not adversely impacted neighborhoods surrounding the property on which urban chickens are kept.

(k) *Severability.* In the event that any portion of this section shall be declared by any competent court to be invalid for any reason, such decision shall not be deemed to affect the validity of any other portion of this section.
(Ord. No. 14257, § 2, 7-29-25)

Secs. 7-146—7-152. Reserved.

ARTICLE XIII. ANIMAL CONTROL BOARD

Sec. 7-153. Establishment of Animal Control Board; responsibilities.

(a) There is hereby established a board of nine (9) members, to be known as the "Animal Control Board" (hereinafter also referred to as "the board").

(b) The Animal Control Board shall be responsible for studying the types of animal-related permits that the City should require and recommending to the City Council standards for obtaining and maintaining such permits. Toward that end, the board shall develop and recommend proposed ordinance changes to the City Council.

(c) The Animal Control Board shall have the authority to grant, suspend or revoke animal-related permits following a hearing, pursuant to ordinances adopted by the City Council.

Sec. 7-154. Terms; filling vacancies; officers.

(a) Each member of the City Council shall appoint one (1) resident of the City to be a member of the Animal Control Board, subject to approval by the majority of the City Council. Each Animal Control Board member shall serve without salary. Employees of the City and employees or board members of the Animal Center shall not be eligible for appointment to the Animal Control Board.

(b) The members of the Animal Control Board shall be appointed so as to hold office for staggered terms. Council members from districts 1, 4 and 7 initially shall appoint board members for one (1) year terms. Council members from districts 2, 5 and 8 initially shall appoint board members for two (2) year terms. Council members from districts 3, 6 and 9 initially shall appoint board members for three (3) year terms.

(c) After the initial appointments, terms of all board members shall be for three (3) years or until their successors are appointed and approved.

(d) In the event of a vacancy on the Animal Control Board, the City Council member in whose district the vacancy occurs shall fill that vacancy by appointing another resident of the City to serve the remainder of the term, subject to approval by the majority of the City Council.

(e) The Animal Control Board shall select its own chairperson and vice-chairperson from among the board members. Those officers shall be elected annually. No officer may serve consecutive terms in the same office.
(Ord. No. 12880, § 1, 11-18-14)

Sec. 7-155. Removal from office.

(a) Any member of the Animal Control Board who fails to attend three (3) board meetings without medical excuse or other exigent circumstances is subject to removal from the board. The board chairperson shall notify the Council chairperson of said member's absences, and the Council may remove said member for cause.

(b) Upon the recommendation of the majority of the Animal Control Board or upon a Council member's own volition, a majority of the Council may remove any member of the board for official misconduct, incompetency, willful neglect of duty or other just cause.

Sec. 7-156. Time, place of meetings.

The Animal Control Board shall meet as often as necessary to conduct business, but not less than annually. The board shall determine the dates and times of its meetings.

Sec. 7-157. Legal counsel.

The City Attorney's Office shall serve as legal counsel to the Animal Control Board. Upon the request of the chairman of the board, an attorney with the City Attorney's Office shall be present at any meeting of the board.

Secs. 7-158—7-299. Reserved.

ARTICLE XIV. GENERAL PROVISIONS FOR PERMITS

Sec. 7-300. General applicability.

This Article applies to all Permits issued pursuant to Chapter 7 of the City Code, unless otherwise specified.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-301. Permit fees.

(a) Permit fees are due upon submission of a completed application for a Permit or the renewal thereof.

(b) Once submitted, a Permit fee is nonrefundable, regardless whether a Permit application is withdrawn or a Permit is granted, denied, suspended or revoked.

(c) All Permit fees shall be paid to the Animal Center. The Animal Center shall remit Permit fees to the City Treasurer not more than thirty (30) days after the fee is collected or as otherwise agreed to in writing by and between the City and the Animal Center.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-302. Validity and duration of Permit; compliance with all laws; permits not available to violators of certain animal laws.

(a) Each Permit shall be valid for one (1) year from the date of approval, whether by the Animal Center or the Animal Control Board.

(b) A Permit is not transferable and is not valid at a location other than the one (1) for which it was issued.

(c) A Permit required by this Chapter is in addition to any other licenses or permits required by local, state or federal laws. In addition to complying with the requirements set forth in this Chapter, a Permit applicant or holder also must comply with all zoning and other applicable laws and regulations.

(d) A Permit is valid unless revoked, suspended, voluntarily relinquished, or expired.

(e) A Permit that is invalid for any reason other than because it is expired shall be surrendered promptly to the Animal Center. Said Permit shall be returned in person or by certified mail, return receipt requested, to the Animal Center.

(f) Any Person found by a court of law or a regulatory body to have violated any law involving neglect of or cruelty toward any animal shall not be allowed to hold a Permit under this Chapter for a period of five (5) years from the date of such finding.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-303. Application process for new Permit; grant or denial of Permit.

(a) Any Person seeking a Permit under this Chapter must complete a Permit application in full, including a listing of all Places of Business used or intended to be used in connection with the business, activity or conduct for which the Permit is sought.

(b) The Permit application and fee must be submitted to the Animal Center. The Permit fee is due when the completed application is submitted. Applications will not be processed until the Permit fee is paid in full.

(c) After submission of the Permit application and fee, an Animal Services Officer shall conduct an inspection as provided herein to determine whether the applicant complies with all Standards and Requirements for a Permit provided in this Chapter as well as all other relevant conditions and provisions pertaining to said Permit. If the applicant so complies, the Permit shall be granted.

(d) The Director of the Animal Center, or an agent acting on the Director's behalf, shall promptly notify the applicant in writing whether the Permit is granted or denied.

(e) The Director of the Animal Center, or an agent acting on the Director's behalf, shall provide to the Animal Control Board, at its next regularly scheduled meeting, a list of all applicants who have applied for a Permit since the Board's last regular meeting, the submission date of the completed application and fee, and the status of the application (*i.e.*, approved, denied or pending). The Animal Control Board shall vote whether to approve or disapprove the Animal Center's grant or denial of each Permit. The Animal Center shall have available at the meeting copies of inspection reports for all Permits under consideration by the Board.

(f) If the Animal Control Board does not approve a Permit, the applicant may file a written appeal to the Board within twenty (20) days of the denial.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-304. Permit renewal process; grant or denial of renewal.

(a) With the exception of an Animal Performance Permit, a Permit issued under this Chapter must be renewed each year that a Person continues to engage in the business, activity or conduct for which such Permit is required. The renewed Permit shall be valid for one (1) year from the expiration date of the current Permit.

(b) Any Permit holder seeking renewal of a Permit must complete a Permit renewal application in full, including a listing of all Places of Business used or intended to be used in connection with the business, activity or conduct for which the Permit is sought.

(c) The Permit renewal application and fee must be submitted to the Animal Center. The Permit fee is due when the completed renewal application is submitted. Renewal applications will not be processed until the Permit fee is paid in full.

(d) The Permit renewal application and fee must be submitted at least thirty (30) days prior to the expiration date of the current Permit. Any renewal applications submitted less than thirty (30) days before the expiration date of the current Permit shall be subject to a late fee of fifty dollars ($50.00).

(e) If a Permit lapses due to a Permit holder's failure to apply for a renewal Permit or to pay the renewal Permit fee in a timely manner and said Person engages, without a valid Permit, in business, activity, or conduct for which a Permit is required, said Person is in violation of this Chapter and may be subject to a hearing before the Animal Control Board, which shall consider such conduct in deciding whether to grant, deny, suspend or revoke a Permit.

(f) After submission of the Permit renewal application and fee, an Animal Services Officer shall conduct an inspection as provided herein to determine whether the applicant complies with all Standards and Requirements for a Permit provided in this Chapter as well as all other relevant conditions and provisions pertaining to said Permit. If the applicant so complies, the Permit shall be granted.

(g) The Director of the Animal Center, or an agent acting on the Director's behalf, will promptly notify the applicant in writing whether the Permit renewal is granted or denied.

(h) The Director of the Animal Center, or an agent acting on the Director's behalf, shall provide to the Animal Control Board, at its next regularly scheduled meeting, a list of all applicants who have applied for a Permit renewal since the Board's last regular meeting, the submission date of the completed renewal application and fee, and the status of the application (*i.e.*, approved, denied or pending). The Animal Control Board shall vote whether to approve or disapprove the Animal Center's grant or denial of each Permit renewal. The Animal Center shall have available at the meeting copies of inspection reports for all Permit renewals under consideration by the Board.

(i) If the Animal Control Board does not approve a Permit renewal, the applicant may file a written appeal to the Board within twenty (20) days of the denial.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-305. Inspections.

(a) To enforce the provisions of this Chapter regarding Permits, the City has the right to conduct inspections as provided herein of any Place of Business of a Permit holder or applicant. Such inspections shall be conducted by an Animal Services Officer during Regular Business Hours. When applicable, an inspection may be conducted at any other time that is mutually agreeable to the Permit holder or applicant and the Animal Services Officer.

(b) By submitting an application for a Permit or the renewal thereof, a Person agrees and hereby consents to allow and enable the inspections described herein.

(c) A Permit holder or applicant has a duty to ensure that an Animal Services Officer conducting an inspection has free and unimpeded access to the entire Place of Business. Permit holders are not entitled to refuse an inspection. The refusal of an inspection may result in a hearing before the Animal Control Board and shall be considered grounds for the denial, suspension or revocation of a Permit.

(d) Unless otherwise specified, each Place of Business shall be inspected at least once per year, upon submission of an application for a Permit or the renewal thereof and the Permit fee.

(e) Animal Services Officers have the right to conduct reasonable random inspections of a Permit holder's Place of Business.

(f) During an inspection, an Animal Services Officer will determine whether the Permit holder or applicant is in compliance with all Standards and Requirements for the Permit as well as all other relevant conditions and provisions related to said Permit, as provided in this Chapter.

(g) An Animal Services Officer conducting an inspection has the right to inspect the Place of Business and all animals therein. Such inspection may include, but is not limited to, the following:

(1) Examining and making copies of any records, computer data, licenses or other documents that are related to the Permit or required under this Chapter or under local, state or federal laws. The Permit holder or applicant is required to produce upon request all said documents and materials;

(2) Inspecting and taking photographs and/or video recordings of the facility, property, and animals to ascertain compliance with or to document any violations of any relevant provisions of the City Code or other applicable laws; and

(3) Questioning the owners, managers, employees or other animal care providers, as well as customers, patrons, visitors or others, at the Place of Business regarding the handling, care, treatment, health, safety, condition of and/or practices related to the animals.

(h) Upon completion of the inspection, the Animal Services Officer shall provide the Permit holder or applicant with a copy of the completed inspection report.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-306. Violation found during inspection.

(a) Any violation found during an inspection will be documented on the inspection report completed by the Animal Services Officer. The completed inspection report will constitute written notice of the violation.

(b) A violation of the Standards and Requirements for a Permit provided in this Chapter shall be grounds for the denial of a Permit or the renewal thereof if such application is currently pending.

(c) If a current Permit holder violates the Standards and Requirements for a Permit provided in this Chapter, the Animal Control Board shall be notified of the violation and provided a copy of the completed inspection report. The Permit holder has the right to have a hearing before the Animal Control Board before action is taken on the Permit.

(d) If the violation pertains to the health, safety or welfare of an animal, an Animal Services Officer may return to the Place of Business with a veterinarian currently licensed in the state of Tennessee to inspect the animals. The Permit holder or applicant has a duty to ensure that the Animal Services Officer and the veterinarian have free and unimpeded access to the animal. The veterinarian may take any samples from the animal that are deemed medically necessary to diagnose the animal.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-307. Impoundment of animal.

If an Animal Services Officer determines, while conducting an inspection, that an animal is in imminent danger of death or serious bodily harm, the officer may impound said animal, as provided in Article VI of the City Code.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-308. Hearings; notice.

(a) A hearing by the Animal Control Board shall be held for the following:

(1) Any Person who is denied a Permit or the renewal thereof and has timely appealed the denial.

(2) Any Person who faces suspension or revocation of a Permit.

(b) A Permit holder or applicant who is subject to a hearing will be notified in writing of the date, time and place of the hearing. Notice of a hearing is properly served when it is delivered in person to the Permit holder or applicant or when it is sent by certified mail, return receipt requested, to the last known address of the Permit holder or applicant. A copy of the notice shall be filed in the records of the Animal Control Board.

(c) The hearing will be held at the Animal Control Board's next regularly scheduled meeting if the completed inspection report is issued at least seven (7) business days before said meeting. If the completed inspection report is issued less than seven (7) business days before said meeting, then the Board may, in its discretion, hear the matter at its next subsequent regularly scheduled meeting or convene a special meeting to hear the matter prior to said meeting.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-309. Grounds for suspension or revocation of Permit.

(a) The Animal Control Board has the power to deny, suspend or revoke Permits issued under this Chapter, upon notice to the Permit holder and a hearing thereon, for a violation of any provision of Chapter 7 of the City Code within its jurisdiction or when the Permit holder or applicant:

(1) Fails to provide Adequate Care to any animal;

(2) Provides false information on an application for a Permit or the renewal thereof;

(3) Fails or refuses to allow an inspection or impedes or obstructs an Animal Services Officer during an inspection authorized under this Chapter;

(4) Does not comply with the Standards and Requirements for the Permit or any other relevant conditions or provisions related to the Permit, as provided in this Chapter;

(5) Commits serious or repeated violations of any provisions of the Code related to the Permit;

(6) Violates any applicable local, state or federal laws or regulations;

(7) For due cause not specified herein.

(b) Violations must be established by a preponderance of the evidence before the Animal Control Board may suspend or revoke a Permit.

(c) No Permit shall be required to be surrendered while charges are pending before the Animal Control Board, until the Board has rendered a final decision.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-310. Reapplying for a Permit.

(a) If, after a hearing, the Board upholds the Animal Center's denial of a Permit or the renewal thereof, the applicant may reapply for a Permit by starting the application process again, including submitting a new Permit fee.

(b) If, after a hearing, the Board revokes a Permit, the Person whose Permit was revoked may not reapply for that type of Permit for a minimum of one (1) year from the date of the decision to revoke. After that period, the Person may reapply for a Permit by starting the application process again, including submitting a new Permit fee.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-311. Penalties for violations.

(a) If the Animal Control Board determines after a hearing that a Permit holder has violated a provision of this Article, the Board may, in its discretion, revoke the Permit or suspend the Permit for a specific period of time determined by the Board.

(b) The Board's suspension or revocation of a Permit does not preclude a Permit holder or applicant from being cited to City Court for violations of other provisions of this Chapter or from being charged with violations of other local, state or federal laws.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-312. Finality of decisions.

A decision of the Animal Control Board as to whether to grant or deny a Permit or the renewal thereof or to suspend or revoke a Permit shall be final, except as it may be subject to review at law.
(Ord. No. 12880, § 5, 11-18-14)

Sec. 7-313. Appeal of adverse action by animal control board.

A final decision of the Animal Control Board may be appealed to the Circuit Court or the Chancery Court for Hamilton County, Tennessee, as provided by law.
(Ord. No. 12880, § 5, 11-18-14)

Secs. 7-314—7-339. Reserved.

ARTICLE XV. DEALER PERMITS

Sec. 7-340. Purpose.

The purpose of requiring a Dealer Permit is to protect the health, safety and welfare of the public by establishing standards of care that will aid consumers in receiving animals in a safe and healthy condition.
(Ord. No. 12880, § 6, 11-18-14)

Sec. 7-341. Dealer Permit required; Permit to be on display.

(a) A Dealer must have a valid Dealer Permit for each of its stores or Places of Business located within the City. Every individual store operating as part of a chain of stores must have its own individual Permit.

(b) The Permit shall be on display at all times and easily visible to members of the public.

(c) Any Person who meets the definition of "Dealer" under Tennessee Code Annotated § 44-17-102(4) and who possesses a state dealer license shall be regulated under applicable state law provisions, including Tennessee Code Annotated §§ 44-17-101 *et seq.*
(Ord. No. 12880, § 6, 11-18-14)

Sec. 7-342. Permit fee.

The annual fee for a Dealer Permit is three hundred dollars ($300.00).
(Ord. No. 12880, § 6, 11-18-14)

Sec. 7-343. Standards and requirements for a Dealer Permit.

(a) Any Person seeking to obtain or renew a Dealer Permit must comply with the standards and requirements set forth in this Section. Such Person must:

(1) Provide Adequate Care to each animal owned, maintained or otherwise kept in the regular course of business;

(2) Comply with all relevant provisions of the City Code and all applicable state and federal laws and regulations;

(3) Comply with all provisions regarding inspections set forth in this Chapter;

(4) Maintain an adequate isolation area for sick or injured animals; and

(5) Provide, with respect to each animal sold or otherwise transferred, the following information, in writing, to the purchaser or consumer of said animal:

(i) The name, address, and USDA license number of the breeder and any broker who has had possession of the animal; the date of the animal's birth; the date the Dealer received the animal; the breed, sex, color and identifying marks of the animal; a record of surgical sterilization, if applicable; and a record of veterinary care, tests, deworming treatments, medications and vaccinations (including, if available, the manufacturer's name and the serial number of the vaccination used) received by the animal;

(ii) The animal's requirements for adequate feeding, housing and healthcare;

(iii) A statement signed by the Dealer stating either that the animal has no known health problems or disclosing any known health problems and any necessary treatment; and

(iv) The City's licensing and vaccination requirements for the animal.
(Ord. No. 12880, § 6, 11-18-14)

Secs. 7-344—7-379. Reserved.

ARTICLE XVI. KENNEL PERMITS

Sec. 7-380. Purpose.

The purpose of requiring a Kennel Permit is to protect the health, safety and welfare of the public and companion animals and to preserve the right of all property owners to the quiet enjoyment of their property through the effective regulation of Kennels.
(Ord. No. 12880, § 7, 11-18-14)

Sec. 7-381. Kennel Permit required; must be displayed.

(a) A Kennel Operator must have a valid Kennel Permit for each location within the City at which animals are kept or maintained as part of the operation of the Kennel.

(b) The Permit shall be on display at all times and easily visible to members of the public.
(Ord. No. 12880, § 7, 11-18-14)

Sec. 7-382. Permit fee; exemption for certain nonprofit organizations; hobby breeders excluded.

(a) The annual fee for a Kennel Permit is three hundred dollars ($300.00).

(b) A nonprofit organization that trains service animals is required to have a Kennel Permit but is exempt from paying the Permit fee.

(c) A Hobby Breeder, as defined in Section 7-2, is not required to have a Kennel Permit.
(Ord. No. 12880, § 7, 11-18-14)

Sec. 7-383. Standards and requirements for a Kennel Permit.

(a) Any Person seeking to obtain or renew a Kennel Permit must comply with the standards and requirements set forth in this Section. Such Person must:

(1) Provide Adequate Care to each animal owned, maintained or otherwise kept in the regular course of business;

(2) Establish a Kennel only in zones where Kennels are allowed under Chapter 38 ("Zoning") of the City Code;

(3) Comply with all relevant provisions of the City Code and all applicable state and federal laws and regulations;

(4) Comply with all provisions regarding inspections set forth in this Chapter;

(5) Maintain an adequate isolation area for sick or injured animals; and

(6) Provide, with respect to each animal sold or otherwise transferred in the regular course of business, the following information, in writing, to the purchaser or consumer of said animal:

(i) The name, address, and USDA license number of the breeder and any broker who has had possession of the animal; the date of the animal's birth; the date the Kennel Operator received the animal, if applicable; the breed, sex, color and identifying marks of the animal; a record of surgical sterilization, if applicable; and a record of veterinary care, tests, deworming treatments, medications and vaccinations (including, if available, the manufacturer's name and the serial number of the vaccination used) received by the animal;

(ii) The animal's requirements for adequate feeding, housing and healthcare;

(iii) A statement signed by the Kennel Operator stating either that the animal has no known health problems or disclosing any known health problems and any necessary treatment; and

(iv) The City's licensing and vaccination requirements for the animal.
(Ord. No. 12880, § 7, 11-18-14)

Secs. 7-384—7-419. Reserved.

ARTICLE XVII. ANIMAL PERFORMANCE PERMITS

Sec. 7-420. Purpose.

The purpose of requiring an Animal Performance Permit is to protect the health, safety and welfare of the public by requiring any Person conducting a performance, show, exhibition or other entertainment involving an animal to notify proper authorities in advance and to aid in protecting the welfare of said animal.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-421. Animal Performance Permit required.

(a) Any Person intending to hold an Animal Performance in the City is required to obtain an Animal Performance Permit in advance.

(b) An Animal Performance Permit issued under this Chapter is required in addition to any other licenses or permits required by local, state or federal laws.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-422. Permit fees based on categories; duration of Permit; not renewable.

(a) There are four (4) categories of Animal Performance Permits, each of which is based on the number of animals owned, kept or maintained for use in the Animal Performance as well as the number of days on which Animal Performances are to be held. Those categories and the Permit fee for each are as follows:

(1) Category I: No more than five (5) animals, with Animal Performances on one (1) day only: one hundred dollars ($100.00);

(2) Category II: More than five (5) animals, with Animal Performances on one (1) day only: two hundred dollars ($200.00);

(3) Category III: No more than five (5) animals, with Animal Performances on more than one (1) day: three hundred dollars ($300.00);

(4) Category IV: More than five (5) animals, with Animal Performances on more than one (1) day: two hundred dollars ($200.00) per day for each day that an Animal Performance occurs.

(b) An Animal Performance Permit shall state the dates for which it is valid. It will expire at 11:59 p.m. on the final date for which it is valid.

(c) With the exception of Permits issued pursuant to Section 7-428, Animal Performance Permits are not renewable. A new application must be submitted for each separate Animal Performance that is not covered by an existing Permit.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-423. Duty to report Animal Performances.

(a) The owner, manager or agent of any auditorium, theater or other facility open to the public in which any Person intends to have an Animal Performance has a duty to:

(1) Notify the Animal Center at least thirty (30) calendar days in advance of such performance. Said notification shall include the name of the Person responsible for the Animal Performance, a telephone number to contact said Person, and the date(s) and time(s) of the Animal Performance; and

(2) Allow and enable Animal Services Officers to conduct at any reasonable time any inspections authorized under this Chapter.

(b) Failure to report an Animal Performance or to allow or enable inspections as provided in this Section may result in a citation to City Court and, upon conviction, a fine of not more than fifty dollars ($50.00) per citation.

(c) The duty to report Animal Performances imposed by this Section is separate and distinct from the requirements on an Animal Performance Permit holder or applicant.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-424. Other provisions apply; this article controls.

The provisions of Article XIV establishing General Provisions for Permits apply to Animal Performance Permits, except as otherwise specified herein or where the provisions are in conflict. In the event of a conflict between provisions in Article XIV and this Article, the provisions in this Article control. Variations from the General Provisions for Permits are necessary due to the nature of Animal Performances and the limited time in which an animal may be in the City for purposes of an Animal Performance.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-425. Application process.

(a) Any Person seeking an Animal Performance Permit must complete a Permit application in full and submit the Permit fee as provided in Section 7-303. The applicant must list in the application each building, structure, facility, premises or property where each animal that may be used or may participate in the Animal Performance is being or will be kept, taken or maintained while in the City for purposes of the Animal Performance as well as the dates and times of all Animal Performances to be held in the City.

(b) The Permit application must be submitted to the Animal Center at least thirty (30) days in advance of the Animal Performance. When the application is submitted to the Animal Center, the applicant also must submit either the Permit fee or a request for an exemption from paying the Permit fee based on one (1) of the specified exemptions provided in Section 7-427. Applications will not be processed without the Permit fee or a request for an exemption made in good faith.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-426. Standards and Requirements for an Animal Performance Permit.

(a) Any Person seeking to obtain an Animal Performance Permit must comply with the standards and requirements set forth in this Section. Such Person must:

(1) Provide Adequate Care to each animal owned, maintained, used or otherwise kept for purposes of the Animal Performance;

(2) Maintain all facilities or premises where animals are maintained, used or kept for purposes of an Animal Performance in a clean, healthy and sanitary condition;

(3) Allow an Animal Services Officer to inspect, at any reasonable time, all animals maintained, used or kept for purposes of the Animal Performance as well as the facility or premises where the Animal Performance is to be held, if within said Person's control;

(4) Comply with all relevant provisions of the City Code and all applicable state and federal laws and regulations.

(5) Comply with all provisions regarding inspections set forth in this Chapter.

(b) An applicant for an Animal Performance Permit must allow one (1) or more Animal Services Officers to be present at each Animal Performance and for the arrival and departure of each animal to ensure compliance with the provisions of this Chapter. However, the Animal Center may, in its discretion, elect not to attend such Animal Performances, or the arrival or departure thereto.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-427. Nonprofits exempt from Permit fees; no Permit required for certain equine activities and judging of animals.

(a) All Persons required to have an Animal Performance Permit must apply for said Permit in accordance with the provisions of this Chapter. Notwithstanding, churches, schools, and civic, fraternal, veterans or nonprofit charitable organizations are exempt from paying the Permit fee. The exemption is limited to the payment of fees and does not exempt said organizations from any other requirements set forth in this Article or Chapter 7 of the City Code.

In the event of a discrepancy as to whether an organization qualifies for an exemption under this Section, the Animal Control Board shall make the determination regarding whether the exemption applies. If the determination cannot be made in advance of the Animal Performance, the applicant must pay the Permit fee before issuance of the Permit, and the payment will be refunded if the Animal Control Board later determines that the organization is exempt under this Section.

(b) This Article does not apply to Persons engaged in the business of keeping, maintaining and using equine for riding, riding lessons, therapy, training or similar activities at a fixed location.

(c) This Article does not apply to Companion Animal Events, dog shows, cat shows or other similar events involving animals being judged.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-428. Animal rides for compensation.

(a) Persons engaged in the business of offering horse, pony, camel, llama, elephant or other similar rides for compensation at organized events within the City must apply for the category of Animal Performance Permit based on more than one (1) day and the number of animals owned, maintained, used or kept for said rides. However, the Animal Performance Permit will be valid for one (1) year from the date of issuance and will cover all events in which the Permit holder offers such animal rides within the City during that one-year period.

(b) Permits issued under this Section may be renewed by following the renewal process provided in Section 7-304.

(c) Permits issued under this Section are subject to inspections as provided in Section 7-305.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-429. Inspections.

(a) In addition to the provisions in Section 7-305, the provisions set forth in this Section apply to inspections for Animal Performance Permits.

(b) An Animal Services Officer may inspect the following:

(1) Each animal that is kept, used or maintained for purposes of the Animal Performance;

(2) The building, structure, facility, premises or property where the Animal Performance will occur; and

(3) Each building, structure, facility, premises or property where the animals are being or will be kept, used or maintained for purposes of the Animal Performance.

(c) In the course of an inspection, an Animal Services Officer is authorized to inspect, at any reasonable time, the following with respect to each animal that is kept, used or maintained for purposes of the Animal Performance:

(1) Each animal is receiving Adequate Care;

(2) All records related to the care, treatment, husbandry, training, and trainers of each animal;

(3) The animal is safely and properly contained;

(4) Records of current rabies vaccinations, if applicable; and

(5) The animal has a current City license, if the animal resides within the City.

(d) If an Animal Services Officer conducting an inspection has a reasonable concern about the health, safety or welfare of an animal, the Animal Services Officer may seek the assistance of a veterinarian currently licensed in the State of Tennessee to inspect the animals. The Permit holder or applicant has a duty to ensure that the Animal Services Officer and the veterinarian have free and unimpeded access to the animal. The veterinarian may take any samples from the animal that are deemed medically necessary to diagnose the animal.

(e) Upon completion of the inspection, an Animal Services Officer shall provide the Permit applicant with a copy of the completed inspection report.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-430. Denial of Permit; further legal action; Show Cause hearing; factor in future decisions.

(a) If, prior to the first Animal Performance, the applicant does not or cannot remedy deficiencies found during the inspection so as to comply with the Standards and Requirements for an Animal Performance Permit and all other conditions for said Permit provided in this Article, then the Permit shall be denied.

(1) The Director of the Animal Center, or an agent acting on the Director's behalf, shall promptly notify the City Attorney's Office and the Chairman of the Animal Control Board of such denial.

(2) The Animal Control Board and the Office of the City Attorney may take any action as provided by law.

(b) If the Animal Performance is held despite the denial of the Permit, the Animal Control Board shall hold a hearing to allow the applicant to show cause why the Permit should not have been denied.

(c) The Board's determination at the Show Cause hearing is a factor that may be considered if the applicant or any other Person involved in the Animal Performance at issue applies for an Animal Performance Permit in the future.
(Ord. No. 12880, § 8, 11-18-14)

Sec. 7-431. Surrender of Permit fee.

Any fees submitted to obtain an Animal Performance Permit shall be deemed surrendered, regardless whether the Permit is denied, the Animal Performance does not occur or fewer performances than anticipated occur.
(Ord. No. 12880, § 8, 11-18-14)

Secs. 7-432—7-459. Reserved.

ARTICLE XVIII. ANIMAL RESCUER PERMITS

Sec. 7-460. Purpose.

The purpose of requiring an Animal Rescuer Permit is to protect the health, safety and welfare of the public and animals by establishing guidelines for Persons engaged in the practice of rescuing animals and placing them in permanent homes.
(Ord. No. 12880, § 9, 11-18-14)

Sec. 7-461. Permit required, available for viewing.

(a) An Animal Rescuer must have a valid Permit for each location within the City at which it accepts, keeps or maintains animals as part of its rescue operations. Each location must have its own individual Permit.

(b) The Permit must be available for viewing upon request.
(Ord. No. 12880, § 9, 11-18-14)

Sec. 7-462. No Permit fee.

There shall be no Permit fee to obtain or renew an Animal Rescuer Permit.
(Ord. No. 12880, § 9, 11-18-14)

Sec. 7-463. Standards and Requirements for an Animal Rescuer Permit.

(a) Any Person seeking to obtain or renew an Animal Rescuer Permit must comply with the standards and requirements set forth in this Section. Such Person must:

(1) Provide Adequate Care to each animal;

(2) Have each animal spayed or neutered before it is adopted, pursuant to Section 7-85 of the City Code;

(3) Comply with all relevant provisions of the City Code and all applicable state and federal laws and regulations;

(4) Comply with all provisions regarding inspections set forth in this Chapter;

(5) Maintain an adequate isolation area for sick or injured animals; and

(6) Provide, with respect to each animal placed for adoption or otherwise transferred, the following information, in writing, to the adopter of said animal:

(i) The name and address of the Animal Rescuer and, if applicable, the federal tax ID number; the date the Animal Rescuer received the animal; the breed, sex, color and identifying marks of the animal; a record of surgical sterilization; microchip number if applicable; and a record of veterinary care, tests, deworming treatments, medications and vaccinations (including, if available, the manufacturer's name and the serial number of the vaccination used) received by the animal;

(ii) A statement signed by the Animal Rescuer stating either that the animal has no known health problems or disclosing any known health problems and any necessary treatment; and

(iii) The City's licensing and vaccination requirements for the animal.

(7) Retain sales and medical records for a minimum of three (3) years in accordance with state law and provide such records upon the request of an Animal Services Officer or the Animal Control Board.

(b) It shall be unlawful for an Animal Rescuer Permit holder to knowingly place for adoption any animal with a disease or parasite contagious to other animals or human beings.
(Ord. No. 12880, § 9, 11-18-14)

Sec. 7-464. City license required after one (1) year.

An animal may remain within the care, custody or control of an Animal Rescuer Permit holder for up to one (1) year without a City license. Any animal still under the care, custody or control of an Animal Rescuer Permit holder after one (1) year is required to have a City license.
(Ord. No. 12880, § 9, 11-18-14)

Secs. 7-465—7-489. Reserved.

ARTICLE XIX. DOGS IN OUTDOOR DINING AREAS PERMITS

Sec. 7-490. Purpose.

The purpose of this Article is to implement Tennessee Code Annotated Section 6-54-135 by providing a permitting process to authorize individual restaurants to allow dogs in outdoor dining areas while providing adequate controls to ensure compliance with health, safety and other relevant statutes.
(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-491. Permit required; applies to pet dogs only.

(a) A Dogs in Outdoor Dining Areas Permit is required before a restaurant may allow a pet dog in its outdoor dining area.

(b) For purposes of this Article, "pet dog" means a dog other than a guide dog or service animal as defined in Section 7-2, including dogs in training to be service animals that are under the control of a credentialed service animal trainer.
(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-492. Permit fee.

The annual fee for a Dogs in Outdoor Dining Areas Permit is fifty dollars ($50.00).
(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-493. Application process; notarized certification required.

(a) The owner of any restaurant that maintains an outdoor dining area, or an agent acting on the owner's behalf, may apply for a Permit authorizing pet dogs to be present in the restaurant's outdoor dining area by following the process provided in Article XIV.

(b) An application for a Dogs in Outdoor Dining Areas Permit or the renewal thereof must include the following:

(1) The name and contact information of at least one (1) person responsible for management of the business during all hours when the business is open to the public;

(2) A notarized certification signed by the applicant stating that said applicant:

(i) Is aware of and will abide by all laws, ordinances, rules and regulations pertaining to permitting dogs in outdoor dining areas;

(ii) Complies with all Standards and Requirements set forth in Section 7-494; and

(iii) Has trained or will train all restaurant employees who work or will work in the restaurant's outdoor dining area, prior to their working in said area, on the Standards and Requirements set forth in Section 7-494.

(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-494. Standards and Requirements for a Dogs in Outdoor Dining Areas Permit.

A Dogs in Outdoor Dining Areas Permit is subject to the following standards and requirements:

(a) All pet dogs brought into a restaurant's outdoor dining area must have affixed to the dog's collar a current rabies vaccination tag and, for those dogs that reside within City limits, a current City license tag.

(b) No pet dog shall be present in the interior of any restaurant or in any area where food is prepared.

(c) Pet dogs shall not be permitted to travel through indoor or non-designated portions of the restaurant. Ingress and egress to the designated outdoor portions of the restaurant shall not require entrance into or passage through any indoor area of the restaurant.

(d) The restaurant shall have the right to refuse to serve the owner of a pet dog if the owner fails to exercise reasonable control over the pet dog or the pet dog otherwise is behaving in a manner which compromises or threatens to compromise the health or safety of any person present in the restaurant.

(e) All restaurant employees must wash their hands promptly after touching, petting or otherwise handling a pet dog. Employees shall be prohibited from touching, petting or otherwise handling pet dogs while serving food or beverages or handling tableware or before entering other parts of the restaurant.

(f) Employees and patrons shall be instructed that they shall not allow pet dogs to come into contact with serving dishes, utensils, tableware, linens, paper products or any other items involved in food service operations.

(g) Patrons shall keep their pet dogs on a non-retractable leash no longer than six (6) feet and appropriate for the size, age, and weight of the dog and shall keep their pet dogs under reasonable control at all times.

(h) Pet dogs shall not be allowed on chairs, tables or other furnishings.

(i) Accidents involving pet dog waste shall be cleaned immediately by the person who brought the pet dog upon the premises and the area sanitized with an appropriate product. A kit with the appropriate materials to accomplish this purpose shall be furnished by the restaurant and kept in or near the designated outdoor dining area.

(j) A sign reminding employees and patrons of the applicable rules must be posted in a visible location in the outdoor dining area.

(k) The restaurant's owner or agent must inform all restaurant employees about the Standards and Requirements of the Permit and provide adequate training and supervision to ensure that employees follow said Standards and Requirements.

(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-495. Inspections.

(a) An applicant for a Dogs in Outdoor Dining Areas Permit is not subject to an inspection of the premises before the Permit is issued or renewed, provided that the proper certifications required by Section 7-493 are submitted with the application for the Permit or the renewal thereof.

(b) Any premises that has a Dogs in Outdoor Dining Areas Permit is subject to random inspections of the premises, as provided in this Chapter.

(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-496. Compliance with other laws; cooperation with government bodies.

A Dogs in Outdoor Dining Areas Permit holder must comply with all applicable statutes, ordinances, rules and regulations and must cooperate fully with any governmental entity having responsibility for enforcement of the Tennessee Food, Drug, and Cosmetic Act, compiled in Title 53, Chapter 1 of the Tennessee Code, and any other applicable statutes and ordinances.

(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-497. Advertising as "pet-friendly."

Only restaurants that have a valid Dogs in Outdoor Dining Areas Permit may advertise or promote themselves as being "pet-friendly" or otherwise state or suggest that animals (excluding service animals) are allowed on the premises.
(Ord. No. 12880, § 10, 11-18-14)

Sec. 7-498. Enforcement; violations.

(a) Obligations imposed by this Chapter on the restaurant or the employees thereof shall be enforced against the owner(s), agent(s) and/or employee(s) responsible for the violation.

(b) Obligations imposed by this Chapter on the owner of or person responsible for a pet dog shall be enforced against the owner of or the person responsible for the dog.

(c) Obligations that may reasonably be construed as being imposed against either the owner of or person responsible for a pet dog or the owner(s), agent(s) and/or employee(s) of the restaurant may be enforced against the owner of or person responsible for the pet dog or the owner(s), agent(s) and/or employee(s) responsible for the violation or both.

(d) A violation of this Article by the holder of the Permit may result in a hearing before the Animal Control Board and, upon proof by a preponderance of the evidence, the suspension or revocation of the Dogs in Outdoor Dining Areas Permit. In addition, a violation of this Chapter may result in a citation to City Court and, upon conviction, a fine not to exceed fifty dollars ($50.00) for each offense.
(Ord. No. 12880, § 10, 11-18-14)

State law reference—T.C.A. § 6-54-135.

Secs. 7-499—7-539. Reserved.

Chapter 8

AVIATION*

Article I. General

Sec. 8-1. Short title.
Sec. 8-2. Definitions.
Sec. 8-3. Applicability.

Article II. Overlay Zones

Sec. 8-4. Identification of zones.
Sec. 8-5. Height limits.
Sec. 8-6. Uses permitted by right within the airport use district.
Sec. 8-7. Use restrictions.
Sec. 8-8. Setbacks.
Sec. 8-9. Metropolitan authority designee.
Sec. 8-10. Non-conforming uses.
Sec. 8-11. Variances to chapter 8.
Sec. 8-12. Special permits.
Sec. 8-13. Hazard marking and lighting.
Sec. 8-14. Appeals; board authority.
Sec. 8-15. Penalties.

Article III. Development on the Direct Airport Property

Sec. 8-16. Landscaping.
Sec. 8-17. Stormwater requirements.

***Editor's note—**Ord. No. 13218, § 1, adopted Sept. 19, 2017, amended Ch. 8 in its entirety to read as herein set out. Former Ch. 8, §§ 8-1—8-15, pertained to aviation, and derived from Code 1986, §§ 8-91—8-105; Ord. No. 9654, § 76, 1-6-92; Code 1995, App. B, Art. IX, § 109, 110, 11; Ord. No. 10692, 4-21-98; Ord. No. 10749, 8-25-98; Ord. No. 10789, 11-10-98.

Cross reference—Dropping litter from aircraft, § 18-156.

State law reference—Aeronautics generally, T.C.A. § 42-1-101 et seq.

Case law annotation—Jurisdiction of city over airport operated by city outside city limits sustained, Silverman v. Chattanooga, 165 (Tenn. (1 Beeler) 642, 57 S.W.2d 552 (1933).

ARTICLE I. GENERAL*

Sec. 8-1. Short title.

This article shall be known, and may be cited as the "Airport Zoning Ordinance of the City of Chattanooga."
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-2. Definitions.

As used in this article, unless the context otherwise requires:

Airport means the Chattanooga Metropolitan Airport.

Airport Hazard means any structure, or tree, or use of land which obstructs the air space for the flight of aircraft in landing or taking off at the airport, or is otherwise hazardous to such landing or taking off of aircraft.

Airport Use District means that portion of property including the Direct Airport Property and the property located in the areas immediately surrounding the Direct Airport Property, which is indicated as the "Airport Use District" on the "Airport Use District" Map.

AOD Map means the Map, maintained by the City, included on the Hamilton County Geographical Information System (GIS) website, and attached as Appendix A to this Chapter 8. The City shall have the authority to update the AOD Map on the GIS website from time to time to reflect changes to the AOD based on FAA Regulations.

Airport Use District Map means the Map, maintained by the City and attached as Appendix B to this Chapter 8, showing the Airport Use District and the Direct Airport Property as of the date of adoption of this revised Chapter 8.

Authority means the Chattanooga Metropolitan Airport Authority.

Authority Designee means the person designated by the Mayor to handle all matters related to a metropolitan authority or property impacting the operation of a metropolitan authority, as further described in Section 8-9.

Direct Airport Property means the real property owned by the Authority and contiguous to the Airport as of the date of adoption of this revised Chapter 8, and shown on the Airport Use District Map.

FAA means the Federal Aviation Administration.

FAA Aviation Overlay District or AOD means that portion of the area indicated as the "FAA Aviation Overlay District" on the AOD Map, which is located within the jurisdictional limits of the City of Chattanooga.

FAA Regulation or Regulations, as applicable, means any regulation or other binding requirement of the FAA.

Hazard to Air Navigation means an obstruction determined to have a substantial adverse effect on the safe and efficient utilization of the navigable airspace.

Landing Area means the area of the airport used for the landing, take-off, or taxiing of aircraft.

Non-conforming Use means any structure, tree or use of land which does not conform to a regulation prescribed in this article or an amendment thereto, as of the effective date of such regulations.

***Cross reference—**Zoning regulations generally, Ch. 38.

Person means any individual, firm, partnership, corporation, company, association, joint stock association or body politic, and includes any trustee, receiver, assignee, or other similar representative thereof.

Structure means any object constructed or installed by man, including, but without limitation, building, towers, smoke-stacks and overhead transmission lines.

Tree means any object of natural growth.

Zoning Ordinance means Chapter 38 of the City Code.
(Ord. No. 13218, § 1, 9-19-17)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 8-3. Applicability.

(a) *General.* Properties subject to the provisions of this Chapter 8 shall be referenced on the AOD Map and Airport Use District Map.

(b) *Construction with Zoning Ordinance.* This Chapter 8 is intended to govern the properties within the AOD that fall within the jurisdictional limits of the City for purposes of addressing certain requirements unique to properties in the AOD. Only to the extent this Chapter 8 does not address certain requirements or procedures, the requirements or procedures of the underlying base zone, as described in the Zoning Ordinance, shall apply; however to the extent there is a conflict between this Chapter and the Zoning Ordinance as to any properties that lie within the AOD, the provisions of this Chapter shall prevail. In the event of a discrepancy about the applicability of other portions of the City Code, the Authority Designee shall determine the appropriate application of the Code.

(c) *Purpose.* The aviation industry is unique among transportation industries, and therefore regulation of real property used for aviation purposes is unique, because the aviation industry's operations are almost wholly within federal, rather than state or local, jurisdiction. For this reason, many items related to use of real property, which are normally regulated by the City Code, are preempted by federal law when the real property in question is an airport or land adjacent to an airport, which may impact the safety of aviation operations at the airport. Therefore, this Chapter 8 (i) provides certain regulation of property that is not preempted by federal law, and (ii) makes property owners' compliance with applicable federal law a condition of the City's issuance of certain approvals or permits.

(d) *No Conflict with FAA Regulation or Other Federal Law.* Nothing in this Chapter 8 shall be deemed to in any manner waive or modify the requirements of any FAA Regulation or other federal law. Where the application of any requirement set forth in this Chapter 8 to a particular scenario would result in non-compliance with an FAA Regulation or other federal law, the City shall grant a variance from such requirement in accordance with section 8-11.
(Ord. No. 13218, § 1, 9-19-17)

ARTICLE II. OVERLAY ZONES

Sec. 8-4. Identification of zones.

(a) *FAA Aviation Overlay District and AOD Map.* The land lying within the AOD is governed by certain federal requirements implemented by the FAA. The AOD Map designates the land within the AOD. This Chapter 8 does not add any City regulation to the AOD, but notes the FAA Regulations applicable to such land.

(b) *Airport use district and airport use district map.* The Airport Use District is identified on the Airport Use District Map. The Airport Use District provides an overlay zone, applicable only to the Authority's use of land, as described in section 8-6. The Airport Use District is a portion of property within the AOD.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-5. Height limits.

FAA Regulations may restrict the height of all structures and trees within the AOD. All property owners must comply with the FAA Regulations, and the City shall have no authority to grant permits or otherwise approve structures if the same are restricted by the FAA. Within the AOD, the maximum permitted height of structures shall be as prescribed by this Chapter 8, or the applicable standard of the base zone district or land use, whichever is less.

No structure may be erected within the AOD that will exceed thirty-five feet (35') in height from ground level at the site, unless the property owner or developer first obtains a special permit from the Board of Appeals for Variances and Special Permits in accordance with this section 8-5 and section 8-12.

Any proposed structures within the AOD that would exceed thirty-five feet (35') in height from ground level at the site requires submission of a Notice of Proposed Construction or Alteration, via FAA Form 7460-1 (as such form may be in the future amended or altered by the FAA) ("FAA 7460"). Property owners may determine whether such notice is required, using the "Notice Criteria Tool" on the FAA website.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-6. Uses permitted by right within the airport use district.

(a) *Airport uses allowed.* Except as provided in subsection (b), below, the Authority may, by right, use any Authority-owned property located within the Airport Use District for any use related to operation of the Airport, such as terminal operations, maintenance or storage of aircraft, parking, other facilities used for aeronautical activities, or office space related to any of the same ("Airport Use"); provided, however, that the property on which the Airport Use exists must be contiguous to the Direct Airport Property. Properties owned by a Person other than the Authority, and properties owned by the Authority but not used for an Airport Use, shall be used in accordance with the base zone of the property, as described in the Zoning Ordinance.

(b) *Limitations on airport uses within airport use district.* Within the Airport Use District, there shall be a setback of five hundred feet (500'), measured from the edge of the roadway along Airport Road and Lee Highway toward the interior of the property (the "Airport Structure Setback"). Within the Airport Structure Setback, there shall be erected no structures intended for Airport Use (provided that parking lots and other improvements that do not constitute "structures" are permitted).
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-7. Use restrictions.

(a) *General use restrictions.* Notwithstanding any other provisions of this Chapter 8, no use may be made of land within the AOD in such a manner as to create electrical interference with radio communication between the airport and aircraft, create smoke, fumes, make it difficult for flyers to distinguish between airport lights and other lights, result in glare in the eyes of flyers using the airport, impairing visibility in the vicinity of the airport, or otherwise constitute a hazard to air navigation or endanger the landing, taking-off or maneuvering of aircraft.

(b) *Restrictions based on FAA Guidance.* Notwithstanding any other provisions of this Chapter 8, no use may be made of land within the AOD, which use is prohibited by, or the restriction of which is recommended by, the FAA in Title 14 of the Code of Federal Regulations or an Advisory Circular issued by the FAA.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-8. Setbacks.

Any property within the AOD that is used for an Airport Use and that abuts property used for residential purposes shall have a setback of at least twenty-five (25) feet on all lot lines abutting the residential property.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-9. Metropolitan authority designee.

From time to time, as he or she determines necessary, the Mayor, with the advice of the City Attorney's office, shall designate a City staff person to be the City representative for all municipal authorities, created by statute (for example, the Airport Authority and the Hospital Authority) (the "Authority Designee"). The Authority Designee shall be the representative of the City for all matters related to property owned by or affecting the operation of authorized business on property owned by a municipal authority. The Authority Designee shall work with the Land Development Office to uniformly apply the requirements of this Chapter 8 to properties within the AOD. The Authority Designee shall also have the authority to create, and delegate power and responsibilities to, a committee to assist the Authority Designee with its responsibilities under this Chapter 8.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-10. Non-conforming uses.

(a) *Regulations not retroactive.* The regulation prescribed in this Chapter 8 shall not be construed to require the removal, lowering, or other change or alteration of any structure or tree which did not conform to the regulations as of the effective date of Ordinance No. _____, or otherwise interfere with the continuance of any Non-conforming Use. Nothing herein contained shall require any change in the construction, alteration, or intended use of any structure the construction or alteration of which was begun prior to the effective date of Ordinance No. _____, and which was diligently prosecuted and completed within two (2) years thereof.

(b) *Nonconforming uses abandoned.* Whenever the Chief Building Official determines that a nonconforming tree or structure has been (i) abandoned or not used for more than one hundred (100) days, or (ii) more than eighty (80) destroyed, deteriorated, or decayed, no permit shall be granted that would allow such structure or tree to exceed the applicable height limit or otherwise deviate from the regulations of this Chapter.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-11. Variances to chapter 8.

(a) *Variances.* Any person desiring to use property within the AOD, not in accordance with the regulations prescribed in this Chapter 8, may apply for a variance therefrom from the Board of Appeals for Variances and Special Permits in accordance with the procedure prescribed in Article VIII of the Zoning Ordinance. Notwithstanding the generality of the foregoing, the City is not authorized to grant a variance to the height requirements set forth in this Chapter 8 and determined by FAA Regulations, nor is the City authorized to grant a variance from any other requirement of federal law.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-12. Special permits.

(a) *Future uses.* No structure or tree shall be erected, altered, planted or otherwise established above a height of thirty-five feet (35') in the AOD unless a permit therefor shall have been applied for and granted. Each such application shall indicate the purpose for which the permit is desired, with sufficient particularity to permit it to be determined whether the resulting use, structure, or tree would conform to the regulations herein prescribed. If such determination is in the affirmative, the permit applied for shall be granted. The application for permit shall be accompanied by a determination from the FAA, in response to the property owner's submission of an FAA 7460, as described in section 8-5, as to the effect of the proposal on the operation of air navigation facilities and the safe, efficient use of navigable airspace. The City will grant permits for structures or trees in accordance with the height and other requirements or conditions approved by the FAA.

(b) *Existing uses.* Before any existing use, structure or tree within the AOD may be replaced, substantially altered, repaired, rebuilt, or allowed to grow higher, a special permit must be secured from the Board of Appeals for Variances and Special Permits authorizing such replacement, change, growth or repair, as described in subsection (a) above.

(c) *Procedure for permitting.* Any person seeking a permit in accordance with this Chapter 8 shall submit an application for permit to the Land Development Office for approval or denial. The Land Development Office shall then approve or deny the application in accordance with its standard procedures and the requirements of this Chapter 8.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-13. Hazard marking and lighting.

Any permit granted under section 8-12 may, if the Authority deems advisable, based on FAA notice or requirements, to effectuate the purposes of this article, and reasonable in the circumstances, be so conditioned as to require the owner of the structure or tree in question to permit the Authority, at its own expense, to install, operate and maintain thereon such markers and lights as may be necessary to indicate to flyers the presence of a Hazard to Air Navigation.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-14. Appeals; board authority.

(a) Any person aggrieved, or taxpayer affected by any decision of the Land Development Office or Board of Variances and Special Permits made in their administration of this article, who believes that a decision of the building official or Board of was an improper application of this Chapter 8, may appeal such decision to a Court of appropriate jurisdiction.

(b) All appeals taken under this section must be taken within thirty (30) days after the issuance of the denial or other decision, by filing with the Court of appropriate jurisdiction a notice of appeal, specifying the grounds for the appeal. The building official or Board of Variances and Special Permits shall forthwith transmit to the Court of appropriate jurisdiction all the papers constituting the record upon which the action appealed from was taken.
(Ord. No. 13218, § 1, 9-19-17)

Sec. 8-15. Penalties.

Each violation of this article or of any regulation, order or ruling promulgated hereunder shall be punishable by a fine of no more than fifty dollars ($50.00).
(Ord. No. 13218, § 1, 9-19-17)

ARTICLE III. DEVELOPMENT ON THE DIRECT AIRPORT PROPERTY

Sec. 8-16. Landscaping.

The requirements of this Chapter 8 expressly supersede the requirements of the Zoning Ordinance that relate to landscaping, specifically including section 38-591 et. seq. No permit or other approval to the Authority for a project within the Direct Airport Property shall be denied on the basis of landscaping requirements set forth in the Zoning Ordinance, and the following requirements shall be the only landscaping requirements applicable to the Direct Airport Property.

(a) *Purpose.* Landscaping creates a unique safety and security hazard for airports; in many cases, it also creates a violation of FAA Regulations and Department of Homeland Security ("DHS") regulations applicable to the Authority and the Direct Airport Property. Additionally, when considering proposed developments, the Authority and the City must take into account whether proposed requirements, such as landscaping, will increase wildlife hazards, as land-use practices that attract or sustain hazardous wildlife populations on or near airports can significantly increase safety and security hazards. Therefore, the landscaping requirements set forth below in this section 8-16 are intended to (i) meet the intent and purpose of the landscaping requirements reflected in the Zoning Ordinance, and (ii) protect the public health, safety and welfare, while also omitting any requirements that potentially create a safety or security hazard, or are preempted by federal law.

(b) *Applicability.* The requirements of this section shall apply to the landscaped areas surrounding any new development on the Direct Airport Property. The requirements of this section shall apply only to real property owned by the Authority, and all other property owners within the AOD shall refer to the landscaping requirements set forth in the Zoning Ordinance.

(c) *Landscape plan submittal.* Proposed developments, subject to the provisions of this section, shall file for a land disturbing permit and submit a landscape site plan to the Building Inspections Office. This plan may be incorporated into a parking/paving plan, provided the scale is not less than one (1) inch equals forty (40) feet. The following elements shall be shown on the landscape site plan:

(i) Zoning of site and adjoining properties;

(ii) Existing and proposed contours at five (5) feet intervals or less;

(iii) Boundary lines and lot dimensions;

(iv) Date, graphic scale, north arrow, titles and name of owner, and the phone number of the person or firm responsible for the landscape plan;

(v) Location of all proposed structures and storage areas;

(vi) Drainage features and one-hundred (100) year floodplain, if applicable;

(vii) Parking lot layout including parking stalls, bays, and driving lanes;

(viii) Existing and proposed utility lines, and easements; and

(ix) All paved surfaces and curbs;

(x) Existing trees or natural areas to be retained (if any); and

(xi) The location of all required landscaped areas (Street Yard, Landscaped Peninsulas, Landscaped Islands, and Screening Buffers).

(d) *Plant installation plan.* Prior to receiving a Certificate of Occupancy, a Plant Installation Plan prepared by a registered landscape architect or architect shall be submitted and approved containing the following information:

Location, installation size, quantity, and scientific and common names of landscaping to be installed.

The applicant has the option of submitting both the Landscape Plan and Plant Installation Plan at the same time.

(e) *Hardships.* Where any hardship for compliance under this section 8-16 exists, the Authority may apply for a variance from the requirement of this section 8-16 in accordance with the procedure described in section 8-11.

(f) *Street yard requirements.*

(i) Intent. The intent of this section is to add quality and definition to the street by planting Approved Plants within a landscaped area along the edges of any right-of-way.

(ii) Dimensions.

1) Except for points of access, a street yard shall be provided where the proposed development site adjoins the public street right-of-way. Alleys are exempt from this requirement.

2) The street yard shall have a minimum depth of eight (8) feet as measured from the edge of the public right-of-way towards the interior of the property. The yard shall consist of sod grass or other natural living ground cover material. No impervious surfaces are permitted in the street yard area.

(iii) Plantings. Street yard areas shall be densely planted with plant material that constitutes an Approved Plant for full-coverage within three (3) years from the date of planting.

(iv) Existing Plants. Existing Approved Plants along the street right-of-way frontage can be substituted for the street yard requirements subject to the following:

1) Existing Approved Plants to be set aside shall have a minimum depth of twenty-five (25) feet as measured from the public street right-of-way;

2) No impervious surfaces are permitted within the protected Approved Plants area except for approved access points to the site; and

3) No cutting/filling activities or storage of materials/equipment are permitted within the Approved Plants area.

(v) Exemptions/Special Situations.

1) Properties adjoining rights-of-way that encroach into established parking areas more than twenty (20) feet have the following street yard options:

a) Plant Approved Plants within the right-of-way provided written permission is obtained from the owner of the public right-of-way;

b) If permission cannot be obtained to plant in the right-of-way, no street yard will be required.

2) Existing plantings within the right-of-way (not including the center median or opposite side of the street) and approved by the City Urban Forester can be used to meet the street yard requirements.

3) Stormwater facilities may be located within the street yard subject to the following conditions:

a) No riprap, crushed stone, concrete, or other impervious materials are exposed; and

b) Approved Plants and other living organic materials can be planted along the stormwater facility.

4) With the written approval of the right-of-way owner, portions of the public right-of-way may be used to meet the street yard requirements.

5) No trees shall be located within the sight triangle as defined by the Zoning Ordinance.

(g) *Parking lot requirements.*

(i) Intent. The intent of this section is to break up the expanse of asphalt, and to reduce the glare from parked cars and loading docks.

(ii) Design Criteria.

1) No parking space can be more than sixty (60) feet from an Approved Plant.

2) A landscaped island or peninsula shall border ends of interior parking bays that contain a minimum of ten (10) contiguous parking spaces.

3) A landscaped peninsula shall border ends of perimeter bays.

a) Dimensions/Planting Criteria.

i) Landscaped islands and peninsulas used to meet the landscaping requirements shall have a minimum width of eight (8) feet and a minimum landscaped area of two hundred (200) square feet.

ii) Landscaped islands and peninsulas used to meet the landscaping requirements shall be planted with at least one (1) Approved Plant.

iii) All landscaped islands and peninsulas shall be bordered by a curb or a wheel stop.

(h) *Screening requirements.*

(i) Intent. To provide transition between the Airport and other property uses outside of the Direct Airport Property, screening and buffering (as described in this section 8-16) will be required. The purpose of the screen is to provide a year-round visual obstruction without obstructing the view of the Airport security fence, providing an object that could be used to scale the fence, or otherwise creating safety or security hazards to the Airport or violating any federal law. The buffer provides transition between the airport uses on Direct Airport Property and adjacent land uses outside of the Direct Airport Property by requiring a landscape yard of a minimum specified depth along the shared property line.

(ii) Procedure. Refer to the matrix below to determine any screening requirements for the proposed development, depending on each adjoining property. If a screen is required, a capital letter will indicate the type of screen to be applied. A description of the screen type is provided herein.

SCREEN MATRIX

Adjoining Use	*Screening Requirement*
Manufacturing/Warehousing	None
Commercial	None
Office	None

Adjoining Use	*Screening Requirement*
Residential (High or Low Density)	B

1) Screening Type B: Provide a twenty (20) feet deep (as measured towards the interior of the property) landscape yard along the shared property line, planted with Approved Plants.

2) Plantings: Landscape yard areas shall be densely planted with plant material that constitutes an Approved Plant for full-coverage within three (3) years from the date of planting.

(i) *Plant installation specifications.*

(i) Intent. All landscaping material shall be installed in a professional manner, according to accepted planting procedures specified in the American Standard for Nursery Stock manual, available from the City Forester, and in accordance with the FAA Regulations and requirements and guidelines of the DHS.

(ii) Approved Plants. All planting and screening requirements may be met with Approved Plants, as defined in this section 8-16.

(j) *Utility easement policy.*

(i) Any planting used to meet the requirements of this section 8-16 shall not be located within proposed or existing utility easements unless written permission has been obtained from the holder of the utility easement.

(ii) If written permission is not granted, the following options shall be considered in order of priority:

1) Priority #1: Plant the Approved Plant as close to the easement as possible.

2) Priority #2: For highly visible areas (street yards, parking lots in front) plant the Approved Plant in the same general area where it can be seen from the street or parking lot.

(iii) Utility easements can be used to meet the landscape yard requirements. The applicant is responsible for identifying existing and proposed utility easements within the property on the landscape site plan.

(k) *Maintenance.*

(i) The Authority shall be responsible for the maintenance of all landscaping provided. All landscaped areas must present a healthy, neat and orderly appearance and shall be kept free from refuse and weeds. Any dead or diseased plant material shall be replaced by the Authority with new plantings that meet the requirements of this section 8-16.

(l) *Certificate of occupancy/bonding.*

(i) If the landscaping has not been installed and inspected for proper installation prior to receiving a Certificate of Occupancy, a Certificate of Occupancy may be granted provided the following conditions are met:

1) The Authority posts a performance bond or irrevocable letter of credit with the City Treasurer;

2) The amount of the bond or letter of credit shall be based on material and installation costs of the uninstalled landscape material, including a ten percent (10%) contingency cost, as shown on the submitted landscape plan;

3) The costs of the landscaping shall be certified by a licensed contractor or determined using a general formula established by the landscape site reviewer (option of applicant).

a) After receiving the Certificate of Occupancy, the remaining landscape material shall be installed within six (6) months. The bond or letter of credit shall be called if the required landscaping has not been installed by the end of the six (6) month period and the funds applied to complete the landscaping work.

(m) *Appeals.*

(i) Any person aggrieved by the administration, interpretation, or enforcement of this section 8-16 may appeal to the Board of Zoning Appeals within sixty (60) days of the decision. Decisions of the Board of Appeals may be appealed to a court of competent jurisdiction.

(ii) Should any court of competent jurisdiction find any portion of this section 8-16 unlawful or unconstitutional, such finding shall not affect this section 8-16 as a whole or any portion of it not found invalid.

(n) *Definitions.*

(i) Approved Plant — plants that may be planted or installed to comply with the requirements of this section 8-16 are those that (a) meet the wildlife hazard management requirements of Title 14 CFR Part 139 (as may be amended from time to time), (b) are under four feet (4') in height, and (c) specifically excluding trees and plants prohibited by the Tennessee Invasive Plant Council. Approved Plants also must not be a wildlife attractant or hazard to aviation in this geographic area, and must be drought tolerant and require minimal maintenance, as required in an aviation environment.

(ii) Impervious Surfaces — includes concrete, asphalt, brick, metal, or any other material constructed or erected on landscaped or natural buffer areas that impede the percolation of water into the ground.

(iii) Interior Parking Bays — all parking bays that do not qualify as a perimeter bay.

(iv) Landscape Area/Landscaped Yard — an area to be planted with trees, grass, shrubs, or other natural living ground cover material. No impervious surfaces are permitted in these areas.

(v) Landscaped Island — a landscaped area defined by a curb and surrounded by paving on all sides.

(vi) Landscaped Peninsula — a landscaped area defined by a curb and surrounded by paving on three (3) sides.

(vii) Landscaped Median — a landscaped area bordering two (2) adjoining parking bays.

(viii) Natural Buffer — an area of land set aside for preservation in its natural vegetative state. No removal of plants is permitted with the exception of poisonous or non-native plant species. In addition, no fill/cutting activities or storage of materials is permitted in these areas. No impervious surfaces are permitted.

(ix) Parking Space/Parking Bay — includes spaces and areas for all vehicles except tractor trailers.

(x) Perimeter Bay — all parking bays that are adjacent to the perimeter of a development.

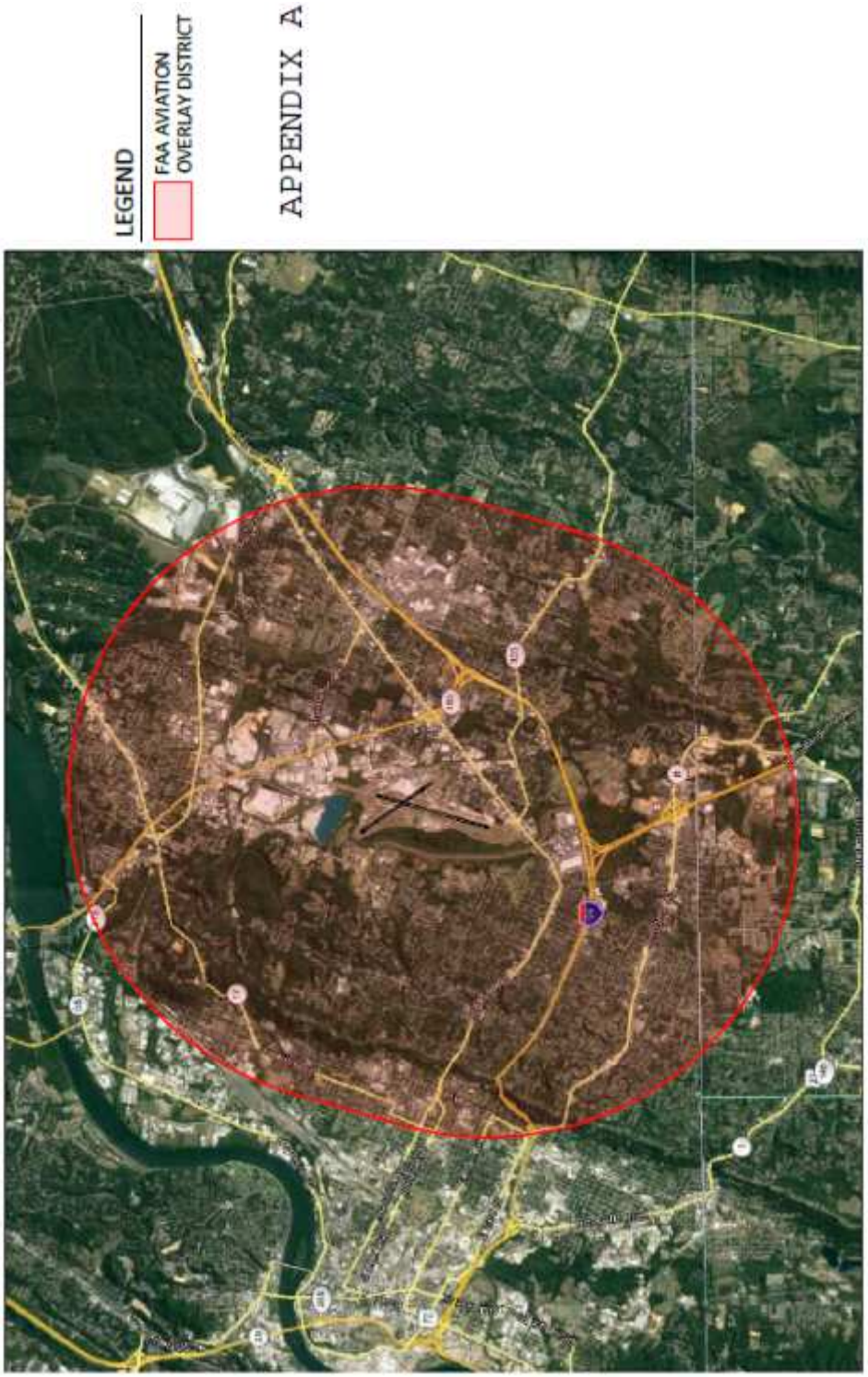
(xi) Street Yard — a designated landscaped area where private property abuts the public street right-of-way for the planting of grass, trees, and shrubs.

(Ord. No. 13218, § 1, 9-19-17)

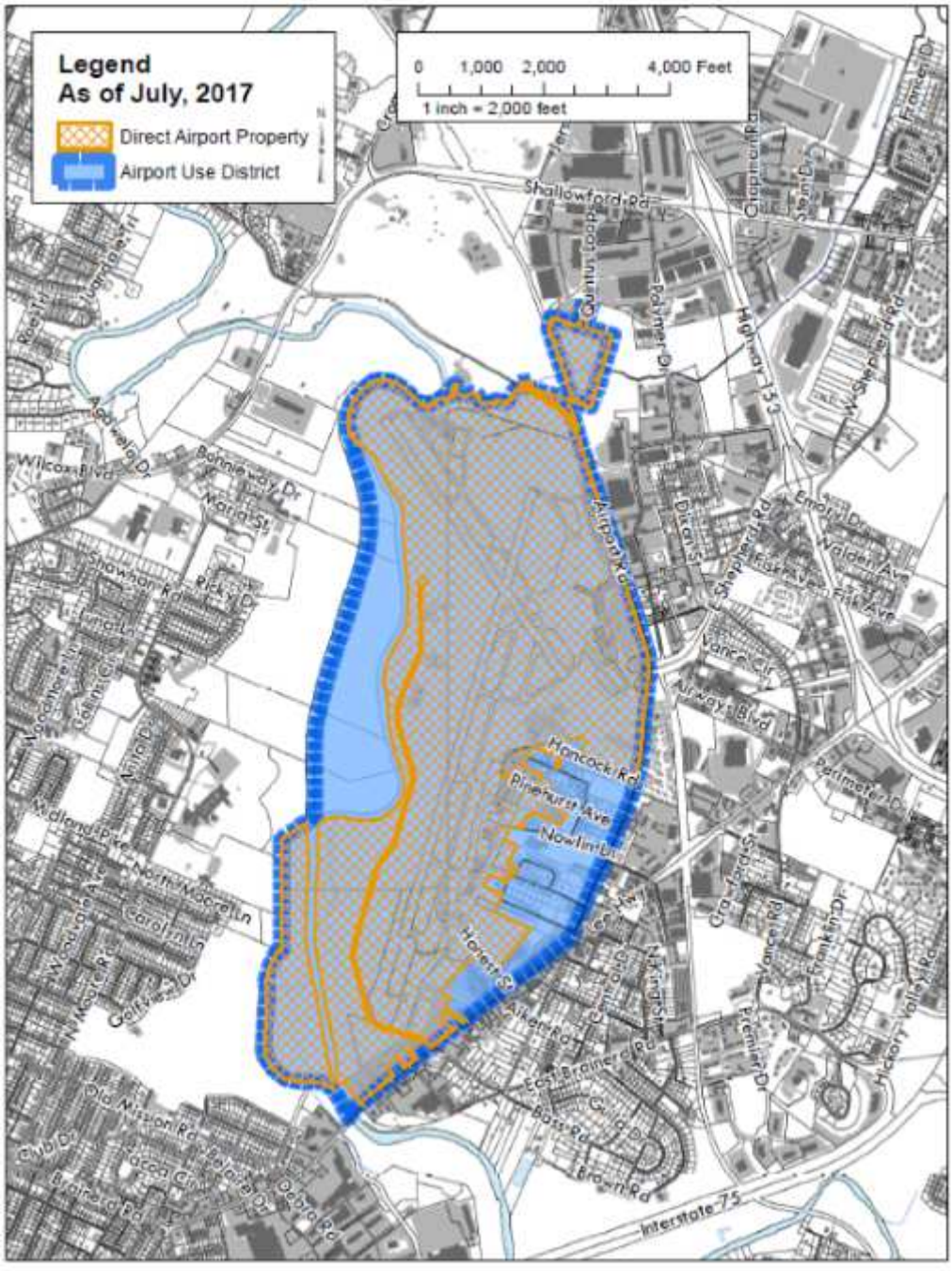
Sec. 8-17. Stormwater requirements.

When construction on the Direct Airport Property necessitates a Stormwater Maintenance Agreement, the City shall accept a revised Stormwater Maintenance Agreement, as necessary for the Authority to comply with FAA Regulations and other federal law. In connection with the Stormwater Maintenance Agreement, the City shall accept the Authority's long term maintenance plan, as approved by the Tennessee Department of Environment and Conservation ("TDEC"), as the Authority's Long Term Maintenance Plan for purposes of the Stormwater Maintenance Agreement between the Authority and the City. The City acknowledges that any maintenance plan and other documentation, which TDEC has approved and that has not expired or otherwise become inapplicable, shall be sufficient to satisfy any City requirements for the same type of document.
(Ord. No. 13218, § 1, 9-19-17)

APPENDIX A



(Ord. No. 13218, § 1, 9-19-17)



APPENDIX B

(Ord. No. 13218, § 1, 9-19-17)

Chapter 9

BEAUTIFICATION*

Article I. In General

Division 1. Public Art Commission

Sec. 9-1. Established.
Sec. 9-2. Membership and term of office.
Sec. 9-3. Purpose of the commission.
Sec. 9-4. Duties of the commission.
Sec. 9-5. Financing.
Sec. 9-6. Public art program staff.
Secs. 9-7—9-15. Reserved.

Article II. Commission

Sec. 9-16. Established.
Sec. 9-17. Composition.
Sec. 9-18. Terms of members.
Sec. 9-19. Chairman.
Sec. 9-20. Powers, duties.
Sec. 9-21. Financing.
Sec. 9-22. Agreement ratified.
Sec. 9-23. Powers of executive committee.

***Cross references—**Housing, Ch. 21; parks and playgrounds, Ch. 26.

ARTICLE I. IN GENERAL

DIVISION 1. PUBLIC ART COMMISSION

Sec. 9-1. Established.

There is created and established a Commission to be legally known as the "Chattanooga Public Art Commission," referred to in this chapter as "Commission."
(Ord. No. 13276, § 1, 2-6-18)

Sec. 9-2. Membership and term of office.

The Commission shall be composed of no fewer than nine (9) and no more than thirteen (13) members ("Members") to be appointed by the Mayor and to serve without compensation. All members of the Commission shall be confirmed by Chattanooga City Council. Members should have considerable knowledge and experience in public art, the visual arts, architecture and/or urban design and must live or work in Chattanooga.

The term of the members shall be as follows:

Visual artist members shall serve a one (1) year term and can be reappointed for up to six (6) consecutive terms. Other Members shall serve a three (3) year term and can be reappointed for one (1) consecutive three (3) year term, with each member serving no more than six (6) consecutive years. The Commission shall be comprised of the following:

1. At least two (2) practicing visual artists;
2. At least two (2) design professionals such as architects, landscape architects, or urban planners;
3. At least one (1) representative from a local arts and culture organization; and
4. Individuals with either a specific professional expertise or significant advocacy or leadership experience in public art, the visual arts or urban design.

(Ord. No. 13276, § 1, 2-6-18; Ord. No. 13858, § 1, 7-19-22)

Sec. 9-3. Purpose of the commission.

The purpose of the Commission shall be as follows:

1. To promote and advocate for the inclusion of art in public spaces;
2. To cooperate with and assist public, private and governmental entities in realizing public spaces as a place where the visual arts are an essential component of enhancing community identity and connection;
3. To provide information and recommendations to the Public Art Division, the Chattanooga City Council and the Mayor of Chattanooga with respect to art, architectural design and the aesthetics of public places and property;
4. To advise on the selection, placement, maintenance, relocation, and deaccessioning of artwork acquired by the City of Chattanooga through the public art program; and
5. To support the efforts of the City Public Art Division and its staff whose responsibilities are outlined in Sec. 9-6.

(Ord. No. 13276, § 1, 2-6-18)

Sec. 9-4. Duties of the commission.

The Commission shall:

1. Adopt public art guidelines, which shall include criteria for accepting donations or gifts, (both cash and tangible art), deaccession of artwork, proposals for memorials and monuments on city-owned property, methods for the artist selection for public art projects;
2. Establish and approve the Public Art Program mission, programmatic goals, and policies;
3. Develop an annual Public Artwork Plan charting current and future public art projects, determining resources, and funding priorities;
4. Advise on the development of an entrepreneurial financial structure that provides for professional consulting fees for services and projects outside of the Public Artwork Plan;
5. Acting through the Public Art Division, provide a summary of procurement procedure completion and award recommendation to the Department of Finance and Purchasing Division, in order to provide the basis for a Purchase Order Contract;
6. Serve as the key advocacy body for the Public Art Program and participate in community outreach activities and events;
7. Promulgate rules and regulations consistent with this ordinance to facilitate the implementation of the Commission's responsibilities hereunder;
8. In order to carry out and facilitate the Commission's general purposes, it shall have authority to:
    a. Elect a chairman and such other officers as it may deem necessary to carry out the functions and duties of the Commission;
    b. Promulgate and maintain its own regulations and bylaws;
    c. Approve advisory committees or panels of experts as necessary to assist in the discharge of its duties;
    d. Recommend expenditure of any money allocated to the Commission by the City for public art projects;
    e. Review and accept any donations to the City of public artworks or funds for public art projects;
    f. Review and accept the deaccession of artwork;
    g. Review and accept proposals for memorials and monuments on city-owned property;
    h. Recognize individuals, institutions and organizations who exemplify excellence in public art endeavors by bestowing upon such individuals, institutions, and organizations such awards and commendations as the Commission from time to time deems appropriate; and
    i. Expend funds for the acquisition of a public art project in accordance with public art guidelines and City procurement policies.

(Ord. No. 13276, § 1, 2-6-18; Ord. No. 13858, § 2, 7-19-22)

Sec. 9-5. Financing.

1. City funds designated for public art projects many only be used for the planning, design and/or implementation and administration of a public art project, including the acquisition, commission, planning, design, installation, production, presentation, performance, maintenance, and insurance of Public Art.

If designated funds are insufficient to fund a public art project, proceeds deposited may, in conformance with state and federal law, accumulate until they are sufficient to fund a public art project.

2. In addition to City capital funds, donations from private persons or entities and state or federal monies may be expended on public art projects in accordance with Public Art guidelines and City procurement policies.

3. The percentage of the funds for any commissioned or donated public art project set aside for maintenance, as determined by Public Art guidelines, shall be maintained in a separate public art maintenance fund for the sole purpose of ongoing care and maintenance of the City public art collection. (Ord. No. 13276, § 1, 2-6-18; Ord. No. 13858, § 3, 7-19-22)

Sec. 9-6. Public art program staff.

The Commission shall support the efforts of the City Public Art Division and its staff. Public Art Division Staff shall be employees of the City of Chattanooga and funded through the City's operational budget or approved use of public art capital project funds.

The Staff's responsibilities include the following:

1. Manage the City's public art program and facilitate communication among the Commission, selection panels and other City departments, City Council and various panels, private developers, peer professionals, community members, and others;
2. Oversee the percent for art budget, including regular meetings with the Capital Planner to assess project eligibility for current and projected Capital Improvement Program projects;
3. Administer the City's artist and artwork selection and approval processes;
4. Manage the design, fabrication, and installation of public artwork only on City-owned or leased property funded by the Public Art Fund, including Percent for Art in new Capital Improvement Program projects;
5. Oversee the documentation, care, and maintenance of the City of Chattanooga's public art collection in coordination with the appropriate City division and/or third-party conservator in coordination with the appropriate City division who is responsible for the site of the artwork;
6. Administer the donation program for artwork gifts and memorials to the City of Chattanooga from foundations, private individuals, collectors, artists, foreign cities, or countries;
7. Administer the public art funds and accounts; and
8. Direct the public relations, community outreach, and general education of the public art program.

(Ord. No. 13276, § 1, 2-6-18; Ord. No. 13858, § 4, 7-19-22)

Secs. 9-7—9-15. Reserved.

ARTICLE II. COMMISSION

Sec. 9-16. Established.

Pursuant to a cooperative agreement entered into by the county and the city, with the understanding that the following cities can become a part of this agreement at a later date by so requesting: the Towns of East Ridge, Lookout Mountain, Signal Mountain; the City of Red Bank-White Oak; and the City of Ridgeside;

there is hereby established a Scenic Cities Beautiful Commission, to act as a regional beautification commission throughout the county, including the territory in all this city and other named municipalities when, and if, they so request.
(Code 1986, § 9-16)

Sec. 9-17. Composition.

The commission established by this article shall consist of the county executive, the chairman of the county commission and three (3) citizens of the county outside any of the municipalities, such citizens to be appointed by the county executive and approved by the county commission, the mayor and chairman of the city council and three (3) citizens of the city appointed by the mayor and approved by the city council, and when and if other municipalities join: the Town of Lookout Mountain, Town of Signal Mountain, Town of East Ridge, City of Red Bank, and the City of Ridgeside, one (1) member of each, to be appointed by the mayor, each of which may be an official or citizen.
(Code 1986, § 9-17; Ord. No. 9654, § 77, 1-6-92)

Sec. 9-18. Terms of members.

The terms of the appointed members of the commission established by this article shall be for three (3) years, from the city. Each member shall continue to serve until the expiration of their respective terms, and until such time as a successor is appointed.
(Code 1986, § 9-18)

Sec. 9-19. Chairman.

The members of the commission established by this article shall elect one (1) of its appointed members as chairman.
(Code 1986, § 9-19)

Sec. 9-20. Powers, duties.

It shall be the duties and powers of the commission established by this article to study, investigate, develop and carry out plans for improving the health, sanitation, safety and cleanliness of the county and city by beautifying the streets, highways, alleys, lots, yards, ravines, lakes, waterways and other similar places; and to aid in the prevention of fires, diseases and other casualties by the removal and elimination of trash and other debris from the streets, highways, alleys, lots, yards, plots and other similar places; to encourage the placing, planting and preservation of trees, flowers, plants, shrubbery and other objects of ornamentation in the city and county; advise with and recommend plans to other agencies of the city and county for the beautification of the area and otherwise promote public interest in the general improvement of the appearance of the entire community.
(Code 1986, § 9-20)

Sec. 9-21. Financing.

Pursuant to the agreement between the county and the city, the city treasurer will disburse the funds which have been and may be hereafter appropriated by the city and county for the operation of the commission established by this article, the disbursements to be made upon vouchers signed by the chairman and countersigned by the mayor or his designee. The county and municipality have agreed to make such provision and to appropriate funds for the operation of such commission each year when their respective budgets are made.
(Code 1986, § 9-21)

Sec. 9-22. Agreement ratified.

The agreement between the county and this city for the appropriation of funds when budgets are made for the operation of the commission established by this article are hereby ratified.
(Code 1986, § 9-22)

Sec. 9-23. Powers of executive committee.

The executive committee composed of chairman, county executive and mayor, shall be empowered to establish a budget providing for the expenditure of funds appropriated by the governmental units, to employ and dismiss personnel and recommend to the city council and county commission a salary schedule and classification of the commission's employees.
(Code 1986, § 9-23; Ord. No. 9654, § 79, 1-6-92)

Chapter 10

BUILDINGS*

Article I. Building Code

Sec. 10-1. Building Code adopted.
Sec. 10-2. Appendices to code adopted.
Sec. 10-3. Amendments to Code adopted.
Sec. 10-4. Correction of defects.
Sec. 10-5. Fire districts described.
Sec. 10-6. Installation of metal gates or barriers within the downtown area of the city—Prohibited.
Sec. 10-7. Handicap and Accessibility Code adopted.
Sec. 10-8. Tie-down, skirting, landing and porch requirements of manufactured homes.
Sec. 10-9. Roof pitch, emergency egress, site location and completion requirements of manufactured homes.

Article II. Historic Zoning

Sec. 10-10. Purposes of historic zoning.
Sec. 10-11. Reserved.
Sec. 10-12. Definitions.
Sec. 10-13. Creation of Chattanooga Historic Zoning Commission.
Sec. 10-14. Creation of Local Historic Districts and Local Historic Landmarks.
Sec. 10-15. Certificates of Appropriateness.
Sec. 10-16. Certificate of Economic Hardship.
Sec. 10-17. Appeals.
Sec. 10-18. Validity of certificates.
Sec. 10-19. Enforcement, violations and penalties.
Sec. 10-20. Validity.
Sec. 10-21. Moratorium for proposed LHDs or LHLs.
Sec. 10-22. Right of entry upon land.
Secs. 10-23—10-30. Reserved.

Article III. Other Fees

Sec. 10-31. Technology and Credit Card Fees.
Sec. 10-32. Engineering plans review and fees.
Sec. 10-33. Energy Code Adopted.
Secs. 10-34—10-49. Reserved.

***Editor's note—**This chapter has been divided into two separate articles at the discretion of the editor to provide clarity for the addition of the Historic Zoning Ordinance (Article II hereof) pursuant to Ord. No. 9112, adopted January 24, 1989.

Cross references—Electricity, Ch. 14; fire prevention, Ch. 17; gas, Ch. 19; housing, Ch. 21; plumbing, Ch. 27; zoning regulations, Ch. 38.

Article IV. Commercial Property Assessed Clean Energy and Resiliency (C-PACER) Program

Sec. 10-50. Establishment.
Sec. 10-51. Definitions.
Sec. 10-52. Territory.
Sec. 10-53. Program administration.
Sec. 10-54. C-PACER Financing.
Sec. 10-55. C-PACER Lien.
Sec. 10-56. Application and review.
Sec. 10-57. Program guidebook.
Sec. 10-58. Collection and enforcement.
Sec. 10-59. Fees.
Sec. 10-60. Enactment.
Sec. 10-61. No liability.

ARTICLE I. BUILDING CODE

Sec. 10-1. Building Code adopted.

The International Building Code, 2018 Edition, and the International Residential Code, 2018 Edition, one (1) copy of each which are, and have been on file in the Office of the City Council Clerk for more than fifteen (15) days, are hereby adopted as the Official Building Codes of the City.
(Code 1986, § 10-1; Ord. No. 9233, § 1, 9-12-89; Ord. No. 9654, § 10, 1-6-92; Ord. No. 10176, § 1, 3-7-95; Ord. No. 10676, § 1, 3-10-98; Ord. No. 11041, § 1, 7-25-00; Ord. No. 11721, § 1, 7-26-05; Ord. No. 12271, § 1; Ord No. 12600, § 1, 5-29-12; Ord. No. 13921, § 1, 12-6-22)

Sec. 10-2. Appendices to code adopted.

The following appendices to the International Building Code, 2018 Edition, and the International Residential Code, 2018 Edition, and as further amended in this chapter, are hereby adopted as part of the official Building Codes of the City:

a. International Building Code

Appendix A — Employee Qualifications, as amended

Appendix C — Agricultural Buildings

Appendix D — Fire District, as amended

Appendix F — Rodent Proofing

Appendix I — Patio Covers

Appendix J — Grading, as amended

Appendix K — Administration Provisions

b. International Residential Code

Appendix A — Sizing and Capacities of Gas Piping

Appendix B — Sizing of Venting Systems

Appendix C — Exit Terminals of Mechanical Draft

Appendix J — Existing Buildings and Structures

(Code 1986, § 10-2; Ord. No. 9233, § 2, 9-12-89; Ord. No. 10176, § 2, 3-7-95; Ord. No. 10676, § 2, 3-10-98; Ord. No. 11041, § 2, 7-25-00; Ord. No. 11721, § 2, 7-26-05; Ord. No. 12121, § 1, 5-6-08; Ord. No. 12600, § 2, 5-29-12; Ord. No. 13921, § 2, 12-6-22)

Sec. 10-3. Amendments to Code adopted.

The following sections and appendices of the International Building Code, 2018 edition, are hereby amended, as hereinafter provided:

a. Section 105.5 is deleted in its entirety and the following is substituted in lieu thereof:

105.5. Expiration. Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within thirty (30) days from the date of issuance. Work authorized by that permit shall be completed within the timeframe set forth in the following paragraphs 105.5.1, 105.5.2, 105.5.3 and 105.5.4 as follows:

For Building Permits in the Amount of:	
105.5.1	$0.01 — $250,000.00 — twelve (12) months
105.5.2	$250,000.01 — $500,000.00 — eighteen (18) months

105.5.3	$500,000.01 — $1,000,000.00 — twenty-four (24) months
105.5.4	$1,000,000.01 and up — thirty-six (36) months

b. Section 105.6 is deleted in its entirety and the following is substituted in lieu thereof:

105.6. Extension. Extensions of time may be granted by the Building Official; however, the extension must be requested in writing and justifiable cause demonstrated. The building official is authorized to grant, in writing, one or more extensions of time. Each extension shall be for a period of time not to exceed 180 days. A fee of one percent (1%) of the Contract Value, as listed on the original permit application, shall be charged to cover administrative expenses.

c. Section 105.7 is deleted in its entirety and the following substituted in lieu thereof:

105.7. Fee for Completion. After a permit has become void, if the Owner wishes to commence construction to complete the structure for which the original permit was issued, the Owner shall reapply for a new building permit for the completion of the construction. When a new building permit is issued, the permit fee for the completion of the construction shall be equal to the permit fee that was paid when the original permit was issued.

d. A new Section 105.8 is added as follows:

105.8. Completion. Construction shall be considered complete when a Certificate of Occupancy has been issued by the Building Official or his designee.

e. A new Section 105.9 is added as follows:

105.9. Suspension or revocation. The Building Official is authorized to suspend or revoke a permit issued under the provisions of this code where the permit is issued in error or on the basis of incorrect, inaccurate, or incomplete information, or in violation of any ordinance or regulation of any of the provisions of this code.

f. A new Section 105.10 is added as follows:

105.10. Placement of Permit. The building permit or copy shall be kept on the site of the work until the completion of the project.

g. A new Section 105.11 is added as follows:

105.11. Standard Operating Procedures.

1. Should a structure become abandoned in accordance with the above revised sections of the International Building Code, or if the structure or equipment shall be deemed unsafe in accordance with Section 115 of the International Building Code, the Building Official shall notify the Department of Neighborhood Services. Neighborhood Services shall take action, as it is legally authorized, and shall move to commence demolition or other appropriate action.
2. If, in the opinion of the Building Official or his authorized representative, the construction site has become unsafe because of clutter or construction debris, the Owner shall be notified and given seven (7) days to rectify the unsafe condition. Should the Owner not rectify the unsafe condition, the Building Official shall take action as required. The cost of the site clean up shall be borne by the Owner.

h. Section 107.2 is amended by adding a new Subsection 107.2.3, 107.2.6, 107.2.8, 107.2.9 and 107.2.10 which shall read as follows:

107.2.3 Requirements. When required by the building official, two or more copies of specifications, and of drawings drawn to scale with sufficient clarity and detail to indicate the nature and character of the work, shall accompany the application for a permit. Such drawings and specifications shall contain information, in the form of notes or otherwise, as to the quality of

materials, where quality is essential to conformity with the technical codes. Such information shall be specific, and the technical codes shall not be cited as a whole or in part, nor shall the term "legal" or its equivalent be used as a substitute for specific information. All information, drawings, specifications and accompanying data shall bear the name and signature of the person responsible for the design.

107.2.6 Additional data. The building official may require details, computations, stress diagrams, and other data necessary to describe the construction or installation and the basis of calculations. All drawings, specifications and accompanying data required by the building official to be prepared by an architect or engineer shall be affixed with their official seal.

107.2.8 Design professional. The design professional shall be an architect or engineer legally registered under the laws of this state regulating the practice of architecture or engineering and shall affix his official seal to said drawings, specifications and accompanying data, for the following:

1. All Group A, E, and I occupancies.
2. Buildings and structures two stories or more high.
3. Buildings and structures 5,000 sq ft (465 m 2) or more in area.

For all other buildings and structures, the submittal shall bear the certification of the applicant that some specific state law exception permits its preparation by a person not so registered.

Exception: Group R3 buildings, regardless of size, shall require neither a registered architect or engineer, unless construction method or material type is such that the building official deems a design professional necessary for a structurally stable building.

107.2.9 Structural and fire resistance integrity. Plans for all buildings shall indicate how required structural and fire resistance integrity will be maintained where a penetration of a required fire resistant wall, floor or partition will be made for electrical, gas, mechanical, plumbing and communication conduits, pipes, and systems. Such plans shall also indicate in sufficient detail how the fire integrity will be maintained where required fire resistant floors intersect the exterior walls and where joints occur in required fire resistant construction assemblies.

107.2.10 Affidavits. The building official may accept a sworn affidavit from a registered architect or engineer stating that the plans submitted conform to the technical codes. For buildings and structures, the affidavit shall state that the plans conform to the laws as to egress, type of construction and general arrangement and, if accompanied by drawings, show the structural design and that the plans and design conform to the requirements of the technical codes as to strength, stresses, strains, loads and stability. The building official may without any examination or inspection accept such affidavit, provided the architect or engineer who made such affidavit agrees to submit to the building official copies of inspection reports as inspections are performed and upon completion of the structure, electrical, gas, mechanical, or plumbing systems a certification that the structure, electrical, gas, mechanical or plumbing system has been erected in accordance with the requirements of the technical codes. Where the building official relies upon such affidavit, the architect or engineer shall assume full responsibility for the compliance with all provisions of the technical codes and other pertinent laws or ordinances. Affidavits will only be accepted by the Building Official where emergency or extraordinary circumstances are established. If sufficient evidence of emergency or extraordinary circumstances are shown, the Building Official shall have discretion to issue permits based upon affidavits without stamped drawings.

i. Section 109.2 is amended by adopting a non-refundable fee schedule for all building permits which shall be as follows:

109.2 NON-REFUNDABLE PERMIT FEES

Total Valuation	*Fee*
$1,000.00 and less	No fee, unless inspection is required, in which case a $40.00 fee for each inspection shall be charged.
$1,001.00 to $50,000.00	$25.00 for the first $1,000.00 plus $5.75 for each additional thousand or fraction thereof, to and including $50,000.00
$50,001.00 to $100,000.00	$295.00 for the first $50,000.00 plus $4.75 for each additional thousand or fraction thereof, to and including $100,000.00
$100,000.00 to $500,000.00	$525.00 for the first $100,000.00 plus $3.75 for each additional thousand or fraction thereof, to and including $500,000.00
$500,001.00 and up	$1,925.00 for the first $500,000.00 plus $2.75 for each additional thousand or fraction thereof

109.2.1 MOVING FEE

For the moving of any building or structure, the fee shall be $150.00.

109.2.2 DEMOLITION FEES

For the demolition of any building or structure, the fee shall be:

Residential Structures (Maximum of 4 Units)	$200.00
Non-Residential Structures up to 35 Feet in Height and Less Than 10,000 Square Feet, and Apartments up to 3 Stories	$350.00
Non-Residential Structures More Than 10,000 Square Feet	$500.00

109.2.3 PENALTIES

Where work for which a permit is required by this Code is started or proceeded with prior to obtaining said permit, the fees herein specified shall be doubled, but the payment of such double fee shall not relieve any persons or entities from fully complying with the requirements of this Code in the execution of the work or from any other penalties prescribed herein.

109.2.4 OTHER FEES

All of the fees in 109.2.4 shall be non-refundable unless in the determination of the Building Official, the Land Development Office has not completed sufficient review to justify the entire fees for Phased Construction Plans Review or Cell Tower Technical Location Requirement Review due to the withdrawal of an application prior to review. In such incidents, any proportional refund shall be in the sole discretion of the Building Official for the Land Development Office.

Fee Description	*Fee*
Board of Sign Appeals	$150.00
Board of Zoning Appeals	$150.00
Certificates of Occupancy (New Facility)	$15.00
Certificates of Occupancy (Conditional)	$50.00
Certificates of Occupancy (Existing Facility)	$75.00
Certificates of Occupancy (Beverage License)	$125.00
Certificates of Completion	$25.00

Fee Description	*Fee*
Chattanooga Historic Zoning Commission—Demolition Application	$250.00
Chattanooga Historic Zoning Commission—All Other Applications	$150.00
Fee for Sewer Verification Letter	$75.00
Fee for Zoning Letter	$155.00
Fee for Code Compliance Letter (Basic)	$75.00
Fee for Code Compliance Letter (detailed)	$150.00+* {*$.05/per sq. ft.}
Fee for Code Compliance Letter (warehouse/industrial)	$500.00+* {*$.02/sq. ft. for each add'l sq. ft. above 10,000}
Fee for Re-inspections (Bldg., Plumbing, Gas, Mechanical, Electrical, Fire and Signs)	$50.00
Fee for Permit Transfer	$50.00
Fee for Modular Home Site Investigation	$100.00
Fee for Fire & Life Safety Inspection and Plans Review	20% of Building Permit Fee
Cell Tower Site Review Fee	$100.00
Cell Tower Technical Location Requirements Review Fee	$1,500.00
Construction Board of Appeals:	
Fee for 1-2 Family Structure Appeals	$150.00
Fee for all other appeals	$150.00
Fee for Variance Request to Board of Zoning Appeals	$150.00
Fee for any construction on a structure in any Historic Zone	$25.00
Fee for any construction on a structure which requires the issuance of a Certificate of Appropriateness (COA) or Certificate of Extreme Hardship (CEH)	$25.00
Fee for Appeal to the Board of Sign Appeals	$150.00
Fee for Floodplain Variance Request	$200.00
Fee for Fire District Removal Request	$200.00
Form Based Code Committee - Major Modifications	$150.00
Form Based Code Committee - Minor Modifications	$25.00
Plan Checking Fee	30% of Building Permit Fee
Phased Construction Plans Review Fee	50% of Building Permit Fee
Staff Plans Review Fee for Submission of Building Plans Inside of Form Based Code	$25.00
Building Permit Plan Revision Fee	5% of Plan Review Fee

j. Section 109.4. Work commencing before permit issuance shall be amended by adding a new sentence at the end of that subsection which shall state as follows:

Any person who commences work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to a penalty of 100% of the usual permit fee in addition to the required permit fees.

k. Section 113. Board of Appeals is amended by deleting said section in its entirety and substituting in lieu thereof the following:

The Construction Board of Appeals for the Building, Electrical, Fire, Fuel Gas, Life Safety, Mechanical and Plumbing codes of the Chattanooga City Code as established by Section 2-625, shall act as the Board of Appeals for appeals from any decision of the Building Official or his designee and to consider variances of the technical codes as provided in this Code.

l. Section 3107, Signs, is amended by adding a new Section 3107.1.1 which shall state as follows:

3107.1.1 Conflicting Provisions.

To the extent that any provision in this chapter is in conflict with the provisions of the Chattanooga City Code § 3-1 et. seq., the provisions of Chapter 3 of the Chattanooga City Code shall control.

m. Section 101.4.7 Existing buildings is amended by adding the following:

101.4.7.1 Existing buildings or structures. Alterations, repairs or rehabilitation work may be made to any existing structure, building, electrical, gas, mechanical or plumbing system without requiring the structure, building, electrical, gas, mechanical or plumbing system to comply with all the requirements of the technical codes, provided that the alteration, repair, or rehabilitation work conforms to the requirements of the technical codes for new construction. The building official shall determine the extent to which the existing system shall be made to conform to the requirements of the technical codes for new construction by applying the following standards:

(1) If, within any twelve (12) month period, alterations or repairs costing in excess of thirty percent (30%) of the replacement value of the entire building are made to an existing building, such building shall be made to conform to the requirements of this code for new buildings.

(2) If an existing building is damaged by fire or otherwise in excess of thirty percent (30%) of its replacement value before such damage is repaired, the entire building shall be made to conform to the requirements of this code for new buildings.

(3) For purposes of this section, the building official shall use the latest edition of R.S. Means Square Foot Costs Data, one copy of which is, and has been on file in the Office of the City Council Clerk, to determine the replacement cost of an existing building. The building official may require the replacement cost of an existing building to be determined by a registered architect, engineer, licensed general contractor or other professional. Any such review shall be approved by the building official, and all costs associated with such review shall be paid by the party asserting that the alterations and repairs are less than thirty percent (30%) of the replacement cost of the building at the time they are made.

101.4.7.2 Moving of buildings.

(1) Any owner, agent or contractor who desires to move any building through or across any sidewalk, street, alley, or highway within the corporate limits of the City from one location to another or cause same to be moved from one location to another on the same property shall first make application to the Building Inspection Department and obtain a permit therefor.

(2) Each application for permit, with the required fee therefor, shall be filed with the Building Inspection Department on a form furnished by that department showing the location of the building as it exists and a site plan showing the location of the building which is proposed on the new lot. Before the Building Inspection Department may issue a permit for the moving of a building from one location to another, a building inspector shall make an inspection of the building and of the lot onto which such building is to be moved and determine whether or not the building, after its relocation, will be substandard or cause the area into which it is being moved to be a blighted area.

(3) All buildings being moved shall be situated on the recipient lot in such a way as to assure the front door of any moved building shall face the City street. Any surface holes, irregularities, wells, septic tanks, basements, cellars, sidewalk vaults, or coal chutes remaining on any property from which a building is removed shall be filled with material as approved by the Building Official within thirty (30) days from the date any building is moved and shall be graded in such manner that will provide effective surface drainage.

(4) The property owner of any lot to which a structure is being moved shall post said lot with a red sign not less than ten (10) days prior to the removal to said lot, which notice shall give the Building Inspector's telephone number and list the address of the Building Inspector's Office where the site plan can be seen and the present location of the building so that the structure itself may be seen prior to removal. If violations of this Code are found, the Building Inspector may issue a stop work order on the new location that the building has been moved to until such violations on the property from which the building was moved have been completed by the permittee.

(5) In the event, after an inspection by the building inspector, it is determined that the building, after removal and renovation, will meet the applicable Building Code standards and will not cause blight or dilapidation of the area into which such building is moved, the building inspector may issue a permit for such removal and relocation; provided, the application shall first be approved by the City Traffic Engineer, who shall fix the time such building is to be moved and the route over which such movement is to be made. Any determination of blight or dilapidation shall be made in consideration of the standards set out in T.C.A. § 13-20-201. No building shall be moved over any street, other than the one approved, within the hours fixed by the City Traffic Engineer.

(6) No permit shall be issued under this ordinance for the moving of any building until the applicant has paid a fee of One Hundred ($100.00) Dollars to pay the expense of the necessary investigations by the Building Inspection Department and the Traffic Engineering Department.

(7) The applicant for a permit for the moving of a building within the corporate limits of the City shall file with the Building Inspection Department:

A certificate of insurance (or provide other proof in form and substance to be approved by the City Attorney) indicating that the applicant is insured and where the City of Chattanooga, Tennessee is named as an additional insured, issued by a casualty company authorized to do business in the State of Tennessee, in an amount of not less than $300,000.00 for injury to one and $700,000.00 for an injury to more than one in any one accident and $100,000.00 property damage, conditioned that the building removal will conform to all regulations and ordinances of the City in reference to the moving of buildings along or over any street, alley or public way of the City.

(8) Improvements on moved buildings. The owner, agent, or contractor of any house, building or structure which is moved to a new location shall make all necessary improvements required in order for said house, building or structure to comply with all requirements of the

Official Building Codes adopted by the City within 180 days from the date of the issuance of the moving permit. Extensions of such time as deemed reasonable may be granted by the building official upon a showing of delay caused by matters beyond the control of the owner or house mover. In the event that all exterior renovations are not completed at the new location within 120 days or any reasonable extension by the Building Official, the owner shall be cited to City Court for noncompliance with this section and each day of continuing violation shall constitute a separate offense.

(9) The application for the moving permit shall be accompanied by an application for a building permit, accompanied by complete plans and specifications showing the changes or conditions of said house, building, or structure as the same is proposed to be when moving, and all contemplated improvements, signed by the owner or the owner's agent.

n. Appendix A is amended by deleting said Appendix in its entirety and substituting in lieu thereof the following:

APPENDIX A
EMPLOYEE QUALIFICATIONS

(1) **Building official.** The building official shall have at least ten (10) years' experience or equivalent as an architect, engineer, inspector, contractor or superintendent of construction, or any combination of these, five years of which shall have been supervisory experience. The building official shall be certified as a building official through a recognized certification program. The building official shall be appointed or hired by the applicable governing authority.

(2) **Chief Inspector.** The building official can designate supervisors to administer the provisions of the International Building, Residential, Mechanical and Plumbing Codes, International Fuel Gas Code, and the National Electric Code (NFPA 70). Each supervisor shall have at least ten (10) years' experience or equivalent as an architect, engineer, inspector, contractor or superintendent of construction, or any combination of these, five years of which shall have been in a supervisory capacity. They shall be certified through a recognized certification program for the appropriate trade.

(3) **Inspector and plan examiner.** The building official shall appoint or hire such number of officers, inspectors, assistants, and other employees as shall be authorized by the jurisdiction. A person shall not be appointed or hired as an inspector of construction or plans examiner who has not had at least five (5) years' experience as a contractor, engineer, architect, or as a superintendent, foreman or competent mechanic in charge of construction. The inspector or plan examiner shall be certified through a recognized certification program for the appropriate trade.

(4) **Termination of employment.** Employees in the position of building official, chief inspector or inspector shall not be removed from office except for cause after full opportunity has been given to be heard on specific charges before such applicable governing authority.

o. By adopting Appendix D in its entirety with the exception of D101.2, D101.2.1, D101.2.2, and D101.2.3, which sections are deleted in their entirety and the following language is substituted in lieu thereof:

D101.2 Establishment of Area. The fire district of the City of Chattanooga is fully described at Chattanooga City Code § 10-5.

p. By deleting Appendix J in its entirety with the exceptions of J103, J104 and J110 which sections are deleted in their entirety.

2018 International Residential Code Amendments.

a. Section R105.2 is amended by deleting subsection 1 in its entirety and substituting in lieu thereof the following:

(1) One story detached accessory structures used as tool and storage sheds, playhouses, and similar uses provided the floor area does not exceed 120 square feet (11.15m 2).

b. Section R105.5 is deleted in its entirety and the following is substituted in lieu thereof:

105.5. Expiration. Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within thirty (30) days from the date of issuance. Work authorized by that permit shall be completed within the time frame set forth in the following paragraphs 105.5.1, 105.5.2, 105.5.3, and 105.5.4 as follows:

	For Building Permits in the Amount of:
105.5.1	$0.01 — $250,000.00 — twelve (12) months
105.5.2	$250,000.01 — $500,000.00 — eighteen (18) months
105.5.3	$500,000.01 — $1,000,000.00 — twenty-four (24) months
105.5.4	$1,000,000.01 and up — thirty-six (36) months

105.5.6 Extension. Extensions of time may be granted by the Building Official; however, the extension must be requested in writing and justifiable cause demonstrated. The building official is authorized to grant, in writing, one or more extensions of time. Each extension shall be for a period of time not to exceed 180 days. A fee of one percent (1%) of the Contract Value, as listed on the original permit application, shall be charged to cover administrative expenses.

105.5.7 Fee for Completion. After a permit has become void, if the Owner wishes to commence construction to complete the structure for which the original permit was issued, the Owner shall reapply for a new building permit for the completion of the construction. When a new building permit is issued, the permit fee for the completion of the construction shall be equal to the permit fee that was paid when the original permit was issued.

105.5.8 Completion. Construction shall be considered complete when a Certificate of Occupancy has been issued by the Building Official or his designee.

105.5.9 Standard Operating Procedures.

1. Should a structure become abandoned in accordance with the above revised sections of the International Building Code, or if the structure or equipment shall be deemed unsafe in accordance with Section 115 of the International Building Code, the Building Official shall notify the Department of Neighborhood Services. Neighborhood Services shall take action, as it is legally authorized, and shall move to commence demolition or other appropriate action.
2. If, in the opinion of the Building Official or his authorized representative, the construction site has become unsafe because of clutter or construction debris, the Owner shall be notified and given seven (7) days to rectify the unsafe condition. Should the Owner not rectify the unsafe condition, the Building Official shall take action as required. The cost of the site clean-up shall be borne by the Owner.

c. Section R108.2. Schedule of fees is deleted in its entirety and the following language shall be substituted in lieu thereof:

All fees approved by the City under § 109.2 of the International Building Code, as amended, shall be collected in the same manner under this section.

d. Section R112 is amended by deleting such section in its entirety and substituting in lieu thereof the following language:

Section R112. Board of Appeals.

The Construction Board of Appeals for the Building, Residential, Electrical, Fire, Fuel Gas, Life Safety, Mechanical and Plumbing codes of the Chattanooga City Code as established by Section 2-625, shall act as the Board of Appeals for appeals from any decision of the Building Official or his designee and to consider variances of the technical codes as provided in this Code.

e. R311.2. Exit doors required. Dwellings with a footprint of more than 700 square feet shall have not less than two exit doors conforming to this section shall be provided for each dwelling unit. The required exit doors shall provide for direct access from the habitable portions of the dwelling to the exterior without requiring travel through a garage. Access to habitable levels not having an exit in accordance with this section shall be by a ramp in accordance with Section R311.8 or a stairway in accordance with Section R311.7.

Exception: Travel through a garage is allowed when the exterior wall of the garage has an exit door meeting the requirements of Section R311.4.2.

R311.2.1. Door type and size. The required exit door shall be a side-hinged door not less than 3 feet (914 millimeters) in width and 6 feet 8 inches (2032 millimeters) in height. Other doors shall not be required to comply with these minimum dimensions.

Exception: The second means of egress exit door shall be a side-hinged door or a side sliding door not less than 2 feet 8 inches (812 millimeters) in width and 6 feet 8 inches (2032 millimeters) in height.

f. Section R313.1 Automatic Fire Sprinkler Systems for Townhouses is deleted in its entirety. Where units are separated by 2 hour rated construction.

Section R313.2. One and Two Family Dwelling Automatic Fire Systems is deleted in its entirety.

Section R313 Automatic Fire Sprinkler Systems for Three-Family Dwellings and Four-Family Dwellings—No sprinklers shall be mandatory in certain three-family dwellings and four-family dwellings in accordance with these standards. The state fire marshal and local building officials shall not mandate automatic fire sprinkler systems for three-family dwellings and four-family dwellings where structures are under five thousand (5,000) square feet in area and less than three (3) stories in height and where two-hour fire-resistance-rating for wall, floor, and ceiling separation assemblies is met

g. Section R322. Flood Resistant Construction is deleted in its entirety and the following language shall be substituted in lieu thereof:

The appropriate Flood Hazard Regulations of the Chattanooga Zoning Ordinance and the Federal Regulations referenced therein shall constitute the official regulations of the City of Chattanooga with regard to any construction within the Flood Hazard Zone.

h. Section R403.1.1 Minimum Size. is amended to include: The minimum footing thickness shall be 8 inches and the minimum footing width shall be 16 inches and include 2, # 4, grade 40 continuous reinforcements runs, unless designed by an engineer properly registered in the State of Tennessee.

i. Any reference to the International Sewage Disposal Code, and/or the International Electrical Code shall be deleted from the reference standards in Chapter 44 of the International Residential Code and all such references within the International Residential Code shall be construed to reference the appropriate official codes adopted by the City of Chattanooga.

j. **Chapter 11 entitled Energy Efficiency** of the 2018 International Residential Code is deleted in its entirety. See section 10-33 for energy Code requirements.

(q) Section 1006.3.3 of the 2018 Edition of the International Building Code is hereby amended by adding a new condition 6 as follows:

6. Not more than five (5) stories of Group R-2 occupancy are permitted to be served by a single exit under the following conditions:

   (i) The building has not more than five (5) stories above grade plane;

   (ii) The building does not contain more than four (4) dwelling units on any floor;

   (iii) The building shall be of not less than one hour fire-resistive construction and shall also be equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 Residential-type sprinklers shall be used in all habitable spaces in each dwelling unit;

   (iv) An interior exit stairway shall be provided. The interior exit stairway shall be of noncombustible materials. The interior exit stairway, including any related exit passageway, shall be pressurized in accordance with Section 909.20. Doors in the stairway shall swing into the interior exit stairway regardless of the occupant load served;

   (v) A corridor shall separate each dwelling unit entry/exit door from the door to an interior exit stairway, including any related exit passageway on each floor. Dwelling unit doors shall not open directly into an interior exit stairway;

   (vi) There shall be no more than twenty feet (20') of travel to the exit stairway from the entry/exit door of any dwelling unit;

   (vii) Travel distance measured in accordance with Section 1017.3, shall not exceed one hundred twenty-five feet (125');

   (viii) Other occupancies are permitted in the same building provided they comply with all the requirements of this code. Other occupancies shall not communicate with the Group R-2 occupancy portion of the building or with the single-exit stairway. Exception: parking garages and occupied roofs accessory to the Group R-2 occupancy are permitted to communicate with the exit stairway;

   (ix) The exit serving the Group R-2 occupancy shall not discharge through any other occupancy, including an accessory parking garage;

   (x) There shall be no openings within ten feet (10') of unprotected openings into the stairway other than required exit doors having a one-hour, fire-resistive rating; and

   (xi) There shall be no more than one single exit stairway condition on the same property.

(r) Section 423, Storm Shelters, is deleted in its entirety and is not adopted as part of this code.

(Code 1986, § 3; Ord. No. 9233, § 3, 9-12-89; Ord. No. 10176, § 3, 3-7-95; Ord. No. 10384, § 1, 2-27-96; Ord. No. 10676, § 3, 3-10-98; Ord. No. 10736, § 1, 8-18-98; Ord. No. 11041, § 3, 7-25-00; Ord. No. 11175, § 21, 9-11-01; Ord. No. 11721, §§ 3, 4, 7-26-05; Ord. No. 12121, § 2, 5-6-08; Ord. No 12123, §§ 1, 2, 5-6-08; Ord. No. 12363, § 1, 3-2-10; Ord. No. 12600, §§ 3, 4, 5-29-12; Ord. No. 12638, §§ 1, 2, 8-21-12; Ord. No. 12963, § 1, 6-16-15; Ord. No. 13195, § 1, 7-18-17; Ord. No. 13376, § 1, 10-16-18; Ord. No. 13921, § 3, 12-6-22; Ord. No. 13929, § 1, 12-20-22; Ord. No. 14135, § 1, 7-16-24; Ord. No. 14254, § 1, 7-22-25; Ord. No. 14373, § 1, 6-16-26)

Sec. 10-4. Correction of defects.

Any person who shall fail to correct any defect in his work within a reasonable time after having been duly notified of such defects by the chief building inspector or his assistants, shall not receive any further permit until such defect or defects have been corrected. Immediately after the correction of such defect or defects the chief building inspector shall be notified of such corrections. One (1) inspection will be made after notice of correction at no charge; if, however, the defects or violations have not been corrected in accordance with this chapter and/or code there will be a charge of fifty dollars ($50.00) for each additional inspection required caused by noncompliance. If the building inspection department is not notified within ten (10) days after notice by the inspector to correct the defect then there will be a penalty of five dollars ($5.00) and each additional day over ten (10) days, shall constitute a separate offense.
(Code 1986, § 10-4; Ord. No. 12363, § 2, 3-2-10)

Sec. 10-5. Fire districts described.

(a) The fire districts of the City of Chattanooga shall include the areas described as follows:

Downtown Fire District: Beginning at the intersection of the south bank of Tennessee River and the west right-of-way of the Walnut Street Bridge; thence downstream in a westerly direction along the river bank a distance of approximately twenty-eight hundred fifty (2,850) feet to a point, said point being approximately four hundred fifty (450) feet west of the west right-of-way line of the I-124 controlled access highway; thence in a southerly direction a distance of three hundred fifty (350) feet to a point in the south right-of-way line of Riverfront Parkway; thence in a westerly and southerly direction along the south and east right-of-way line of Riverfront Parkway to a point in the north right-of-way line of West Main Street; thence crossing Main Street in a southerly direction to a point at the intersection of the south right-of-way line of Main Street and the east right-of-way line of Grove Street; thence in a southerly direction along the east right-of-way line of Grove Street, crossing West 19th Street, to a point in the south right-of-way line of West 19th Street; thence in an easterly direction along the south right-of-way line of West 19th Street to a point in the east right-of-way line of Interstate Highway No. I-124; thence in a southeasterly direction along the east right-of-way line of Interstate Highway No. I-124 to a point in the west right-of-way line of Chestnut Street; thence in a southerly direction along the west right-of-way line of Chestnut Street to a point in the south right-of-way line of West 26th Street; thence in an easterly direction along West 26th Street to a point in the west right-of-way line of Sidney Street; thence in a southerly direction along the west right-of-way line of Sidney Street to a point in the north right-of-way of 28th Street; thence in an easterly direction along the north right-of-way line of 28th Street, crossing Broad Street, and continuing along the north right-of-way line of the new 28th Street, crossing Market Street, to a point one hundred forty (140) feet east of the east right-of-way line of Market Street; thence in a northerly direction along a line one hundred forty (140) feet east of and parallel to the east right-of-way line of Market Street to a point one hundred forty (140) feet south of 20th Street; thence in an easterly direction along a line one hundred forty (140) feet south of and parallel to the south right-of-way line of 20th Street, crossing Washington Street, to a point one hundred forty (140) feet east of the east right-of-way line of Washington Street; thence in a northerly direction along a line one hundred forty (140) feet east of the parallel to the east right-of-way line of Washington Street to a point in the south right-of-way line of Rossville Avenue; thence in a northerly direction, crossing Rossville Avenue at an angle, to the left, to a point at the intersection of the north right-of-way line of Rossville Avenue and the west right-of-way line of Washington Street; thence continuing in a northerly direction along the west right-of-way line of Washington Street to a point one hundred forty (140) feet south of Main Street; thence in an easterly direction along a line one hundred forty (140) feet south of and parallel to the south right-of-way line of Main Street, a distance of approximately three hundred (300) feet, to a point in the west right-of-way line of Southern Railway System; thence in a northerly direction, crossing Main Street, along the west right-of-way line of the Southern Railway System a distance of approximately four hundred sixty (460)

feet to a point; thence leaving the aforesaid right-of-way lines and continuing in a northerly direction, crossing all railroad tracks of the Southern Railway System and the Louisville and Nashville Railroad Company, a distance of approximately nine hundred twenty-five (925) feet to a point at the intersection of the west right-of-way line of Peebles Street, and the north right-of-way line of the Louisville and Nashville Railroad; thence in a northerly direction along the west right-of-way line of Peebles Street, crossing 12th Street, 11th Street, and 10th Street to a point in the north right-of-way line of 10th Street; thence in a westerly direction along the north right-of-way line of 10th Street to a point in the west right-of-way line of the Southern Railway System; thence in a northeasterly and northerly direction along the aforesaid right-of-way line, crossing 9th Street, 8th Street, McCallie Avenue, Oak Street, and Vine Street to a point in the south right-of-way line of 5th Street; thence in a westerly direction along the south right-of-way line of 5th Street to a point one hundred forty (140) feet east of Douglas Street; thence in a southerly direction along a line one hundred forty (140) feet east of and parallel to the east right-of-way line of Douglas Street to a point one hundred forty (140) feet north of the north right-of-way line of Vine Street; thence in a westerly direction along a line one hundred forty (140) feet north of and parallel to the north right-of-way line of Vine Street to a point one hundred forty (140) feet east of Lindsey Street; thence in a northerly direction along a line one hundred forty (140) feet east of and parallel to the east right-of-way line of Lindsey Street to a point one hundred forty (140) feet north of the north right-of-way line of East 5th Street; thence in a westerly direction along a line one hundred forty (140) feet north of and parallel to the north right-of-way line of East 5th Street to a point in the west right-of-way line of Georgia Avenue; thence in a northerly direction along the west right-of-way line of Georgia Avenue to a point one hundred forty (140) feet north of the north right-of-way line of East 4th Street; thence in a westerly direction along a line one hundred forty (140) feet north of and parallel to the north right-of-way line of East 4th Street to a point in the west right-of-way line of Walnut Street; thence in a northerly direction along the west right-of-way line of Walnut Street to a point on the south bank of the Tennessee River, which is the point of beginning:

There is hereby excluded from the Downtown Fire District areas described as follows:

Area No. 1: Beginning at a point in the west line of Gateway Avenue, said point being approximately two hundred thirty (230) feet from the point of intersection of the west line of West Sixth Street and the north line of West Ninth Street; thence westwardly along a line approximately two hundred thirty (230) feet north and parallel to West Ninth Street and with the foot of Cameron Hill a distance of approximately six hundred fifty (650) feet to a point in the foot of Cameron Hill; thence northwestwardly with the foot of Cameron Hill a distance of approximately three hundred fifty (350) feet to a point in the foot of Cameron Hill; thence northwardly with the foot of Cameron Hill a distance of approximately four hundred (400) feet to a point in the foot of Cameron Hill; thence westwardly with the foot of Cameron Hill a distance of approximately two hundred (200) feet to a point in the east line of Riverfront Parkway; thence northwardly and eastwardly with the east and south line of Riverfront Parkway a distance of approximately two thousand (2,000) feet to a point of intersection with the south line of Riverfront Parkway and the west line of Interstate 124; thence southwardly with the west line of Interstate 124 a distance of approximately sixty (60) feet to a point in the west line of Interstate 124; thence westwardly a distance of approximately one hundred thirty (130) feet to a point in the west line of Interstate 124; thence southwardly with the west line of Interstate 124 a distance of approximately four hundred twenty (420) feet to a point in the west line of Interstate 124; thence westwardly and southwardly with the west line of property conveyed to the First Baptist Church of Chattanooga a distance of approximately four hundred eighty (480) feet to a point in the west line of Cameron Circle; thence with the west line of Cameron Circle a distance of approximately one thousand (1,000) feet to the point of intersection of the west line of Cameron Circle and the west line of West Sixth Street; thence with the west line of West Sixth Street a distance of approximately six hundred twenty-five (625) feet to the point of beginning.

Area No. 2: Beginning at a point three hundred (300) feet south of the south line of West Ninth Street and approximately three hundred (300) feet east of the east line of Riverfront Parkway; thence southwardly a distance of one thousand seven hundred fifty (1,750) feet to a point in the east line of Riverfront Parkway; thence southeastwardly with the east line of Riverfront Parkway a distance of approximately three hundred fifty (350) feet to a point in the east line of Riverfront Parkway: thence northeastwardly a distance of approximately four hundred (400) feet to a point in the east line of Boynton Drive; thence northeastwardly along a line approximately two hundred (200) feet west of and parallel to Grove Street a distance of approximately three hundred fifty (350) feet to a point; thence eastwardly a distance of approximately two hundred (200) feet to a point in the west line of Grove Street; thence with the west line of Grove Street a distance of approximately four hundred (400) feet to a point in the west line of Grove Street: thence southeastwardly across Grove Street and along the north line of West 12th Street a distance of approximately three hundred (300) feet to a point in the north line of West 12th Street; thence northeastwardly and perpendicular from the north line of West 12th Street a distance of approximately five hundred eighty (580) feet to a point; thence northwestwardly with a line three hundred (300) feet south of and parallel to West Ninth Street a distance of approximately five hundred fifty (550) feet to a point; thence southwestwardly with a line approximately two hundred eighty (280) feet east of and parallel to West Sixth Street a distance of approximately three hundred (300) feet to a point; thence northwestwardly a distance of approximately two hundred eighty (280) feet to a point in the east line of West Sixth Street; thence northeastwardly with the east line of West Sixth Street a distance of approximately three hundred (300) feet to a point in the east line of West Sixth Street; thence northwestwardly with a line three hundred (300) feet south of and parallel to West Ninth Street and across West Sixth Street and Boynton Drive a distance of eight hundred twenty (820) feet to the point of beginning.

Area No. 3: Beginning at the Southeast corner of 25th Street and Cowart Street, Thence South along the East right-of-way of Cowart Street continuing across 26th Street, extending South along the East right-of-way of Cowart Street crossing 27th Street to the Northeast corner of 28th Street as now constructed, Thence East along the North right-of-way of 28th Street crossing Williams Street continuing East crossing Long Street, Thence along the remaining portion of Lot 63, Vaughn's Addition on a curve bearing to left to the East line of Lot 63, thence North along the East line of Lots 63, 62, 61 and 60, Vaughn's Addition to the South right-of-way of 27th Street, Thence East on the South right-of-way of 27th Street to the East right-of-way line of Carr Street, Thence North along the East right-of-way of Carr Street to the Southwest corner of Lot 67, Hughes Subdivision, Thence East along the South line of Lot 67 to the Southeast corner thereof, thence North along the East line of Lot 67, thru Lot 55, Hughes Subdivision to the Northeast corner thereof, Thence West along Lot 55, continuing across Carr Street in a straight line to West right-of-way line of Carr Street, Thence North along the West right-of-way line of Carr Street, continuing North across 26th Street to the Southwest corner of 25th Street, Thence West along the South right-of-way line of 25th Street, continuing across Long Street, extending West crossing Williams Street to the East right-of-way line of Cowart Street, being the point of beginning.

Area No. 4: Beginning at the Southeast corner of 16th Street and Carr Street, Thence South along the East right-of-way line of Carr Street to the North right-of-way line of East 17th Street as now constructed, Thence East along the North right-of-way line of East 17th Street to a point located one hundred thirty-two (132) feet West of Mitchell Ave., Thence South crossing 17th Street, continuing South along the West line, Lots 123 thru 111, Fort Negley Addition to the North right-of-way line of East 19th Street, Thence East along the North right-of-way line of East 19th Street crossing Mitchell Ave., continuing to the Northwest corner of Read Ave. and Mitchell Ave., Thence crossing Read Ave. on a diagonal to the Northeast corner of Read Ave. and East 19th Street, Thence East along the North right-of-way line of East 19th Street to the West right-of-way

line of Baldwin Street, Thence North along the West right-of-way line of Baldwin Street crossing East 17th Street, continuing North intersecting the West line of an alley and a point in the East line of Lot 43, Fort Negley Addition, Thence Northwardly along the West line of an alley to the Northeast corner of Lot 40, Fort Negley Addition and South right of an alley and the North line of Lot 40, Fort Negley Addition, Thence West along Lot 40, continuing in a straight line crossing Read Ave. to the West right-of-way line thereof, Thence North along the West right-of-way line of Read Ave. to the Northeast corner of Lot 83, Fort Negley Addition and South right-of-way line of an alley, Thence West along the North line of Lot 83, Fort Negley Addition, continuing across an alley to a point in the East line of Lot 86, Fort Negley Addition, Thence North along the West right-of-way line of the alley to the Northeast corner of Lot 84, Fort Negley addition, Thence West along the North line of Lot 84, Fort Negley Addition to the East right-of-way line of Mitchell Ave., Thence South along the right-of-way line of Mitchell Ave. to a point in the Southwest corner of Lot 90, Fort Negley Addition, Thence West across Mitchell Ave. continuing along the South right-of-way line of East 16th Street to the East right-of-way line of Carr Street, being the point of beginning.

Area No. 5: Located in the First Civil District of Chattanooga, Hamilton County, Tennessee, being all of Lots 4, 5, and 6, Glass Addition, nonrecorded plat, as shown by Chadwick Atlas 1928 edition.

Beginning at the south right-of-way line of West 17th Street and the east right-of-way of Cowart Street, thence eastwardly along the south line of West 17th Street a distance of two hundred eighty (280) feet to the west right-of-way of Williams Street, thence southwardly along west line of Williams Street two hundred ninety (290) feet, more or less, to the north right-of-way of West 18th Street, thence westward along the north right-of-way of West 18th Street a distance of two hundred eighty (280) feet to the east right-of-way line of Cowart Street, thence northwardly along the east right-of-way of Cowart Street a distance of two hundred ninety (290) feet, more or less, to the point of beginning.

Area No. 6: Begin at the intersection of the Southeast line of Broad Street with the Northeast Line of W. 18th Street, thence Northeast two hundred eighty (280) feet with Broad Street to the Southwest line of W. 17th Street, thence SE one hundred twenty (120) feet with W. 17th Street, thence Northeast fifty (50) feet, crossing W. 17th Street to the Southeast line of a ten (10) foot wide alley, thence continuing Northeast two hundred eighty (280) feet with said alley to the Southwest line of W. 16th Street, thence Southeast ten (10) feet with W. 16th Street, thence Northeast fifty (50) feet crossing W. 16th Street to the Southeast line of a twenty (20) foot wide alley, then continuing Northeast one hundred (100) feet with said alley to the Southwest line of another twenty (20) foot wide alley, thence Southeast thirty (30) feet, with said alley to the Southwest line of another twenty (20) foot wide alley, thence Southeast thirty (30) feet, with said alley, thence Northeast ten (10) feet tot he centerline of said alley, thence Southeast one hundred (100) feet, with said centerline extended to the Northwest line of Cowart Street, thence diagonally across Cowart Street, Southeast some fifty (50) feet to the Northeast line of a twenty (20) foot wide alley, thence Southeast one hundred forty-six (146) feet with said alley to the Northwest line of a twenty (20) foot wide alley, thence Northeast twenty (20) feet, with said alley to the end thereof, thence Southeast seventy-three (73) feet, thence Northeast sixty (60) feet, thence Southeast sixty (60) feet to the Northwest line of Williams Street, thence Southwest seventy (70) feet, with Williams Street, thence Southeast fifty (50) feet, crossing Williams Street to the Southwest line of a ten (10) foot wide alley, thence continuing one hundred sixty (160) feet with said alley, thence Northeast five (5) feet, to the centerline of said alley, thence Southeast one hundred twenty (120) feet with said centerline extended to the Northwest line of Long Street, thence Southwest five hundred fifteen (515) feet with Long Street to the Southwest line of West 17th Street, thence Southeast fifty (50) feet with West 17th Street to the Southeast line of Long

Street, thence Northeast twenty (20) feet with Long Street to the Southwest line of West 17th Street, thence Southeast one hundred twenty-four (124) feet, with W. 17th Street to the Northwest line of a twelve (12) foot wide alley, thence Southeast six (6) feet to the centerline of said alley, thence Southwest three hundred forty-five (345) feet with said centerline extended to the Northeast line of W. 19th Street, thence Southeast five (5) feet with W. 19th Street, thence Southwest some forty (40) feet to the Southwest line of W. 19th Street, thence Southeast one hundred seventy-five (175) feet with W. 19th Street to the Northwest line of Carr Street, thence Southwest one hundred twenty-nine (129) feet with Carr Street, to the Northeast line of a ten (10) foot wide alley, thence Northwest 375 feet, with said alley to the Southeast line of Long Street, thence diagonally across Long Street Northwest some fifty (50) feet, to the Northwest line of Long Street, thence Northwest two hundred eighty (280) feet to the Southeast line of Williams Street, thence diagonally across Williams Street, Northwest some fifty (50) feet to the Northwest line of Williams Street, thence Northwest two hundred eighty (280) feet to the Southeast line of Cowart Street, thence Northeast one hundred sixty-eight (168) feet with Cowart Street to the Southwest line of W. 19th Street, thence Northwest fifty (50) feet with W. 19th Street to the Northwest line of Cowart Street, thence Northeast fifty (50) feet, with Cowart Street to the Northeast line of W. 19th Street, thence Northwest 135 feet with W. 19th Street to the Southeast line of a ten (10) foot wide alley, thence Northeast three hundred thirty (330) feet with the Southeast line of said alley, and said line extended to the Southwest line of W. 18th Street, thence Northwest one hundred twenty (120) feet with W. 18th Street to the Southeast line of Broad Street, the point of beginning.

Area No. 7: Begin at the intersection of the Southeast line of Washington Street with the Northeast line of E. 17th Street, thence Northeast four hundred sixty-nine and eight-tenths (469.8) feet with Washington Street to the centerline of an abandoned twelve (12) foot wide alley, thence Southeast two hundred fifty-eight (258) feet with the centerline of said abandoned alley to the Northwest line of the Central of Georgia Railroad right-of-way, thence Southwest four hundred sixty-nine and eight-tenths (469.8) feet with said railroad right-of-way to the Northeast line of E. 17th Street, thence Northwest two hundred sixty and six-tenths (260.6) feet with E. 17th Street to the Southeast line of Washington Street, the point of beginning.

Area No. 8: Begin at the intersection of the Southwest line of E. Main Street, with the Southeast line of Madison Street, thence Southeast one hundred ten (110) feet with E. Main Street to the Northwest line of the Alabama Great Southern Railroad right-of-way, thence with said railroad right-of-way Southwest four hundred forty-one and thirty-six-hundredths (441.36) feet, Southeast 11.5 feet, Southwest three hundred thirty-nine and four-tenths (339.4) feet, Southwest two hundred twenty-six (226) feet, Southwest two hundred ten and one-half (210.5) feet, Southeast thirty (30) feet, and Southwest one hundred eighty-three and seven-tenths (183.7) feet to the Northeast line of E. 19th Street, thence Northwest some two hundred fifty-seven (257) feet. With E. 19th Street to a point opposite the Northeast corner of lot 5, block 8, Boyer Amended Addition No. 2, plat boot 5, page 10, ROHE, thence Southwest, crossing E. 19th Street, and continuing with the Southeast line of said lot five thousand two hundred (5,200) feet to the centerline of an abandoned ten (10) foot wide alley, thence Northwest twenty (20) feet, with said centerline to the Southeast line of lot A, Youngblood Tract, not recorded, thence Northeast eighteen (18) feet, with the Southeast line of said Lot A to the Northeast corner thereof, thence Northwest thirty-five (35) feet with the Northeast line of Lot A to the centerline of said abandoned alley, thence Northwest two hundred thirty-two (232) feet with rear property line of Lots 6, 7, 8, 9, 10 to the Southeast line of Jefferson Street, to the Northeast line of E. 18th Street (unopened), thence crossing Jefferson Street Northwest some one hundred sixty-seven (167) feet with the Northeast line of E. 18th Street, and the extension thereof, to the Southeast corner of lot 37, block 6, Montague Addition No. 1, plat book 2, page 34, ROHE, thence Northeast one hundred twenty-six (126) feet, with the

Southeast line of said lot 37, and said line extended, to the Northeast line of a twelve (12) foot wide alley, thence Northwest two hundred fifty-four (254) feet with said alley to the Southeast line of Adams Street, thence Northeast six hundred forty-eight (648) feet with Adams Street to the Southwest line of a twelve (12) foot wide alley, thence Southeast three hundred ninety-four (394) feet with the Southwest line of said alley, and said line extended, crossing Jefferson Street to the Southeast line thereof, thence Northeast 12 feet with Jefferson Street to the Northeast line of a twelve (12) foot wide alley, thence Southeast four hundred sixty-six and sixty-six-hundredths (466.66) feet with the Northeast line of said alley, and said line extended, crossing Madison Street to the Southeast line thereof, thence Northeast one hundred forty (140) feet with Madison Street to the Southwest line of E. Main Street, to the point of beginning.

Area No. 9: Commencing at an iron pin on the eastern right-of-way of U.S. Highway 27 and the south right-of-way of Southern Railroad, Thence south sixty one degrees (61°) thirty-four (34) minutes twenty-eight (28) seconds east with the Southern Railroad right-of-way a distance of two hundred ninety-eight and sixty-three-hundredths (298.63) feet to a point, Thence south twenty-two degrees (22°) thirty-seven (37) minutes forty-nine (49) seconds west a distance of three hundred sixteen and eighteen-hundredths (316.18) feet to a point, Thence north sixty-seven degrees (67°) twenty-two (22) minutes eleven (11) seconds west a distance of two hundred seventy-four and fifty-two-hundredths (274.52) feet to a point in the right-of-way of U.S. 27, Thence north nine degrees (9°) eighteen (18) minutes two (2) seconds east a distance of one hundred six and sixty-nine-hundredths (106.69) feet to an iron pin, Thence North twenty-three degrees (23°) six (6) minutes twenty-nine (29) seconds east a distance of two hundred forty-two and fifty-two-hundredths (242.52) feet to the point of beginning.

Area No. 10: All that property located in the City of Chattanooga, Tennessee described as the city block bounded by Eighth (8th) Street on the north, University Street on the east, Douglas Street on the west and the alley located between Martin Luther King Drive and Eighth Street on the south. This property located in the City of Chattanooga, Tennessee is more particularly described by starting at the intersection of the south right of way of Eighth Street and the east right of way of Douglas Street thence proceeding S66°48'45"E a distance of four hundred (400) lf; thence S22°51'54"W a distance of 350 lf; thence N66°48'45"W a distance of 400 lf; thence N22°51'54"E a distance of three hundred fifty (350) lf to the Point of Beginning.

Area No. 11: All that property located in the City of Chattanooga, Tennessee described as a portion of the city block bounded by Eighth (8th) Street on the north, Douglas Street on the east and the alley located between Martin Luther King Street and Eighth Street on the south and Mable Street on the west. This property located in the City of Chattanooga, Tennessee is more particularly described by starting at the intersection of the south right of way of Eighth Street and the west right of way of Douglas Street thence proceeding south on the west right of way of Douglas Street a distance of two hundred five (205) lf to the Point of Beginning; thence S22°51'54"W a distance of one hundred forty-five (145.00) lf; thence N66°48'45"W a distance of three hundred and eighty-six-hundredths (300.86) lf; thence S22°51'54"W a distance of fifty (50.00) lf; thence N66°48'45"W a distance of 100 lf; thence N22°51'54"E a distance of one hundred ninety and eighty-seven-hundredths (190.87) lf; thence S67°24'10"E a distance of four hundred and eighty-six-hundredths (400.86) lf to the Point of Beginning.

Area No. 12: 1428 Riverside Drive, Chattanooga, Hamilton County, Tennessee, located in the City of Chattanooga, Hamilton county, Tennessee. Beginning at an Iron Rod (Found) in the southeastern right-of-way line of Riverside Drive, said Iron Rod (Found) being the most northeastern corner of tract herein described, and recorded in Deed Book 9130 Page 432, Hamilton County Register of Deeds; Thence leaving the southeastern right-of-way line of Riverside Drive South 22 degrees 57 minutes 47 seconds East for a distance of 270.00' to an Iron Rod (Found); Thence North 67 degrees 03 minutes 28 seconds East for a distance of 500.39' to an

Iron Rod (Found); Thence South 23 degrees 02 minutes 32 seconds East for a distance of 419.33' to the centerline of Citico Creek; Thence with the centerline of Citico Creek the following chord bearings and distances: North 85 degrees 19 minutes 25 seconds West for a distance of 113.98'; South 75 degrees 31 minutes 48 seconds West for a distance of 101.11'; South 69 degrees 25 minutes 40 seconds West for a distance of 100.09'; South 73 degrees 46 minutes 14 seconds West for a distance of 100.69'; South 57 degrees 40 minutes 27 seconds West for a distance of 101.35'; South 33 degrees 55 minutes 11 seconds West for a distance of 77 .07'; South 68 degrees 12 minutes 22 seconds West for a distance of 79.66'; South 80 degrees 56 minutes 45 seconds West for a distance of 104.64'; North 89 degrees 02 minutes 46 seconds West for a distance of 235.28'; North 82 degrees 06 minutes 32 seconds West for a distance of 193.49'; North 86 degrees 30 minutes 01 seconds West for a distance of 145.68'; South 78 degrees 16 minutes 58 seconds West for a distance of 127.40'; South 67 degrees 54 minutes 31 seconds West for a distance of 115.19'; South 83 degrees 25 minutes 03 seconds West for a distance of 95.88'; Thence leaving the centerline of Citico Creek, and with the right-of-way of Riverside Drive North 43 degrees 13 minutes 36 seconds East for a distance of 277.15' to an Iron Rod (Found); Thence North 72 degrees 55 minutes 34 seconds East for a distance of 80.96' to an Iron Rod (Found); Thence North 13 degrees 51 minutes 19 seconds East for a distance of 80.70' to an Iron Rod (Found); Thence South 42 degrees 49 minutes 20 seconds East for a distance of 30.00' to an Iron Rod (Found); Thence North 47 degrees 10 minutes 40 seconds East for a distance of 33.53' to a point; Thence with a curve to the right, with an arc length of 225.13', a radius of 635.96', a chord bearing of North 57 degrees 19 minutes 09 seconds East, and a chord length of 223.96' to a point; Thence North 67 degrees 02 minutes 13 seconds East for a distance of 38.00' to an Iron Rod (Found); Thence North 22 degrees 57 minutes 47 seconds West for a distance of 30.00' to a Concrete Monument (Found); Thence North 67 degrees 02 minutes 13 seconds East for a distance of 162.34' to an Iron Rod (Found), and the point of beginning containing 586,034 square feet, more or less, OR 13.45 acres, more or less.

Other fire districts are described as follows:

Access Road: One hundred forty (140) feet on the south side of Access Road from Hixson Pike in an easterly direction to the city limits;

Alton Park Boulevard: One hundred forty (140) feet on both sides of Alton Park Boulevard in a southerly direction from Shipp Avenue to West 40th Street;

Amnicola Highway: One hundred forty (140) feet on both sides of Amnicola Highway from its intersection with Riverside Drive in an easterly direction to the city limits;

Ashland Terrace: One hundred forty (140) feet on both sides of Ashland Terrace from Hixson Pike in a westerly direction to Highland Road;

Brainerd Road: One hundred forty (140) feet on both sides of Brainerd Road from the east end of McCallie Avenue tunnel, in an easterly direction, to the east right-of-way line of Spring Creek Road; one hundred forty (140) feet on the northwest side of Brainerd Road from the east right-of-way line of Spring Creek Road to East Brainerd Road; on the southeast side of Brainerd Road as follows: Beginning at the intersection of the southeast right-of-way line of Brainerd Road and the east right-of-way line of Spring Creek Road; thence in a southerly direction along the east right-of-way line of Spring Creek Road a distance of approximately two hundred fifty (250) feet to a point, said point being the southwest corner of Lot No. 3 of the Spring Creek Addition; thence leaving the east right-of-way line of Spring Creek Road and turning an angle to the left and running in an easterly direction along the south line of Lot No. 3, Spring Creek Addition a distance of approximately eight hundred (800) feet to a point in the west right-of-way line of Osborn Enterprises Property; thence in a southerly direction along the west right-of-way line of the Osborn Enterprises Property a distance of approximately fourteen hundred forty

(1440) feet to a point in the north right-of-way line of the Interstate Highway I-75; thence in an easterly direction along the north right-of-way line of Interstate Highway I-75 approximately four thousand four hundred fifty (4,450) feet to a point on the west bank of South Chickamauga Creek; thence in a northerly direction downstream along the west bank of South Chickamauga Creek approximately five thousand one hundred (5,100) feet to a point in the southeast right-of-way line of Brainerd Road; thence in a southwesterly direction along the southeast right-of-way line of Brainerd Road to the point of beginning; one hundred forty (140) feet on the southeast side of Brainerd Road from the west bank of South Chickamauga Creek to East Brainerd Road;

There is hereby excluded from the Brainerd Road Fire District an area located at 481 Shurlock Road and described as follows:

> Located in the city of Chattanooga of Hamilton County, Tennessee, and being described as Lot Four (4), Revised Plat of Lots 4 and 5, East Ridge Development Company, Inc., as shown by plat of record in Plat Book 85, Page 46, in the Register's Office of Hamilton County, Tennessee. Metes and Bounds Description:
>
> Beginning at a PK nail with washer located at the intersection of the southerly line of Shurlock Rd. (50' Wide) with the westerly side of Greenway View Dr. (R/W Varies):
>
> Thence along the westerly side of Greenway View Dr., S 15º56'07" E a distance of 310.69' to a point;
>
> Thence along the northerly line of the now or former Tennessee Valley Credit Union, as described in Deed Book 8286, Page 0590, S 75º57'53" W a distance of 211.31' to a Capped Iron Rod;
>
> Thence N 15º56'07" W a distance of 55.20' to a Crimped Iron Pipe;
>
> Thence along the northerly line of the now or former OBC Properties Delaware, LLC, as described in Deed Book 10497, Page 0262, S 75º57'53" W a distance of 339.99' to a Capped Iron Rod;
>
> Thence N 15º56'07" W a distance of 236.50' to a PK Nail with washer found on the southerly side of Shurlock Road;
>
> Thence along the southerly side of Shurlock Road, N 73º59'27" E a distance of 551.00' to the POINT OF BEGINNING.
>
> Containing in Area, 3.379 acres, more or less.

Broad Street: One hundred forty (140) feet on both sides of South Broad Street from 28th Street in a southerly direction to 37th Street;

Central Avenue: One hundred forty (140) feet on both sides of Central Avenue from Rossville Avenue northwardly to McCallie Avenue;

There is hereby excluded from the Central Avenue Fire District an area located at 1900 Central Avenue and described as follows:

> All that tract or parcel of land lying and being in the City of Chattanooga, Hamilton County, Tennessee, being Lot One (1), Noland Company Subdivision on Central Avenue, as shown by plat recorded in Plat Book 48, Page 296, in the Register's Office of Hamilton County, Tennessee.
>
> Being a part of that property conveyed by deed recorded in Book 2575, Page 513, in the Register's Office of Hamilton County, Tennessee.

North Chamberlain Avenue: One hundred forty (140) feet on both sides of North Chamberlain Avenue from Latta Street northwardly to Fairleigh Street;

Cherokee Boulevard: One hundred forty (140) feet on both sides of Cherokee Boulevard from North Market Street in a northwesterly direction to the city limits;

Dodds Avenue: One hundred forty (140) feet on both sides of Dodds Avenue from 14th Street in a southerly direction to 16th Street; one hundred forty (140) feet on both sides of Dodds Avenue from East 29th Street southwardly to East 37th Street;

Dodson Avenue: One hundred forty (140) feet on both sides of Dodson Avenue from 3rd Street northwardly to a point one hundred (100) feet north of Blackford Street; one hundred forty (140) feet on both sides from Bragg Street northwardly to Daisy Street; one hundred forty (140) feet on both sides from Stuart Street northwardly to Elmendorf Street;

There is hereby excluded from the Dodson Avenue Fire District an area located at 457 Dodson Avenue and described as follows:

> Commencing at the point of intersection of the southern right-of-way of Blackford Street with the northern right-of-way of Dodson Avenue; thence along the northern right-of-way of Dodson Avenue and being the tangent distance of a curve with a 15 feet radius, South 24° 22' 05" West, fourteen and ninety-two-hundredths (14.92) feet to a point, said point being the Point of Beginning. Thence from said Point of Beginning South 24° 22' 05" West, four hundred forty-eight and five-hundredths (448.05) feet along the right-of-way of Dodson Avenue to a point; Thence leaving said right-of-way North 65° 43' 13" West, one hundred forty (140) feet to a point; Thence North 24° 22' 05" East, four hundred sixty-three and sixty-four-hundredths (463.64) feet to a point in the southern right-of-way of Blackford Street; Thence along said right-of-way South 65° 27' 27" East, one hundred twenty-five and eight-hundredths (125.08) feet to a point; Thence with a curve to the right having a radius of fifteen (15) feet, a length of twenty-three and forty-eight-hundredths (23.48) feet and a chord South 20° 29' 49" East, twenty-one and fifteen-hundredths (21.15) feet to the point of beginning and containing one and forty-eight-hundredths (1.48) acres, more or less.

East Brainerd Road: One hundred forty (140) feet on both sides of East Brainerd Road from Osborn Drive eastwardly to the Louisville Railroad overpass;

Frazier Avenue: One hundred forty (140) feet on both sides of Frazier Avenue from North Market Street eastwardly to Barton Avenue;

Glass Street: One hundred forty (140) feet on both sides of Glass Street from Dodson Avenue northeastwardly to North Chamberlain Avenue;

Hixson Pike: One hundred forty (140) feet on both sides of Hixson Pike from Black Oak Circle on the west side and Carter Drive on the east side northeastwardly to the city limits; one hundred forty (140) feet on both sides of Hixson Pike from the north right-of-way line of Worthington Street, in a northerly direction, to the north right-of-way line of Dartmouth Street;

Lee Highway: One hundred forty (140) feet on both sides of Lee Highway from East Brainerd Road northeastwardly to the city limits;

McCallie Avenue: One hundred forty (140) feet on both sides of McCallie Avenue from a point in the west right-of-way line of the Southern Railway System, between Baldwin and Palmetto Streets, in an easterly direction to the west end of the McCallie Avenue Tunnels;

East Main Street: One hundred forty (140) feet on both sides of East Main Street from a point in the west right-of-way line of the Southern Railway System, immediately west of Adams Street, in an easterly direction to Dodds Avenue;

South Market Street: One hundred forty (140) feet on both sides of South Market Street from 28th Street southwardly to Shipp Avenue;

North Market Street: One hundred forty (140) feet on both sides of North Market Street from the north bank of the Tennessee River in a northerly direction to Bush Street;

Riverside Drive: One hundred forty (140) feet on both sides of Riverside Drive from Baldwin Street in a northeasterly direction to the intersection of Riverside Drive and Amnicola Highway;

Rossville Avenue: One hundred forty (140) feet on both sides of Rossville Avenue from Washington Street, in a southeasterly direction, to 23rd Street;

There is hereby excluded from the Rossville Avenue Fire District an area located at 2133 Rossville Avenue and described as follows:

> Beginning at the Northeast corner of Lot Number Three (3) of the J.M. Dobbs Estate, as shown by plat of record in Plat Book 5, page 14, in the Register's Office of Hamilton County, Tennessee, on the Southwest corner of Rossville Avenue and East End Avenue (now Central Avenue); thence Southwardly along the West line of Central Avenue, which is supposed to be the section line of South twenty-two degrees (22°) forty-nine (49) minutes thirty-one (31) seconds West one hundred forty-nine and forty-two-hundredths (149.42) feet to an iron pipe; thence along the line of the property conveyed to T. Frank Sparks to O.B. Andrews Company and A.B. Andrews by Deed dated February 14, 1911 and registered March 31, 1911, in Book S, Volume 10, page 295, in the Register's Office of Hamilton County, Tennessee, thence North thirty-five degrees (35°) four (04) minutes three (03) seconds West one hundred thirty-seven and thirty-four-hundredths (137.34) feet to a stake in the line of the property conveyed by O.B. Andrews Company to the Chattanooga Manufacturing Company's property, North fifty-four degrees (54°) twelve (12) minutes East one hundred twenty-five and six-tenths (125.6) feet to a spike in the Southwest line of Rossville Avenue; thence South thirty-six degrees (36°) seventeen (17) minutes East with Rossville Avenue, fifty-nine and fifty-four-hundredths (59.54) feet to the point of beginning. Being shown on survey by Samuel W. Clemons, Sr., dated September 20, 1995, Drawing #HT-155D-B-2-1.

Rossville Boulevard: One hundred forty (140) feet on both sides of Rossville Boulevard from 23rd Street in a southerly direction to the city limits, which is also the Georgia State line;

St. Elmo Avenue: One hundred forty (140) feet on both sides of St. Elmo Avenue from 40th Street northwardly to the south right-of-way line of the Southern Railway System;

Shallowford Road: One hundred forty (140) feet on the north side of Shallowford Road from Haymore Street in an easterly direction to Gillespie Street; one hundred forty (140) feet on the south side of Shallowford Road from a point two hundred thirty (230) feet west of Tunnel Boulevard, in an easterly direction, to Germantown Road; one hundred forty (140) feet on both sides of Shallowford Road from its intersection with Wilcox Boulevard, in a northeasterly direction, to the south end of the South Chickamauga Creek Bridge;

Tennessee Avenue: One hundred forty (140) feet on both sides of Tennessee Avenue from 40th Street northwardly to Wauhatchie Pike;

East Third Street: One hundred forty (140) feet on both sides of East 3rd Street from Baldwin Street, in an easterly direction, to Dodson Avenue;

East Twenty-Third Street: One hundred forty (140) feet on both sides of East 23rd Street from Rossville Boulevard eastwardly to Dodds Avenue;

Tunnel Boulevard: One hundred forty (140) feet on both sides of Tunnel Boulevard from the south right-of-way line of May Street to Shallowford Road;

Wauhatchie Pike: One hundred forty (140) feet on both sides of Wauhatchie Pike from its intersection with South Broad Street, in a westerly direction, to the Southern Railway System overpass;

Wilcox Boulevard: One hundred forty (140) feet on both sides of Wilcox Boulevard from Greenwood Road, in an easterly direction to Parkway Drive; one hundred forty (140) feet on both sides of Wilcox Boulevard from Talley Place in an easterly direction to Shallowford Road.

(b) The Building Official and/or his or her designee shall be authorized to charge a non-refundable fee in the amount of One Hundred Dollars ($100.00) for any Fire District removal request.
(Code 1986, § 10-5; Ord. No. 10550, § 1, 3-18-97; Ord. No. 10659, § 1, 1-20-98; Ord. No. 10937, § 1, 11-16-99; Ord. No. 11039, § 1, 7-18-00; Ord. No. 11074, § 1, 10-3-00; Ord. No. 11175, § 22, 9-11-01; Ord. No. 11263, 4-9-02; Ord. No. 13974, § 1, 5-9-23; Ord. No. 14069, § 1, 12-19-23)

Sec. 10-6. Installation of metal gates or barriers within the downtown area of the city—Prohibited.

(a) In the interest of public safety and in the interest of the safety of city employees responding to fire calls within the Downtown Area as hereinafter defined, movable metal gates or movable metal barriers which may be locked during any portion of the day or night upon the entrances, exits and windows of any business within any Downtown Area of the City of Chattanooga is expressly prohibited.

(b) "Movable metal gates" or "metal barriers" shall be defined to include the following:

i) Roll down security doors,

ii) Metal security doors on hinges composed of bars, metal screen, or interlocking metal pieces, or

iii) Any permanent metal security barrier which is constructed on the exterior or interior of the entrance, exit or window of any structure located within the Downtown Area of the city for the purpose of preventing access into any structure and which is capable of being locked from the interior or exterior of the structure during any portion of the day or night.

(c) This section shall not be construed to prevent any tenant or owner within the Downtown Area from installing doors and windows upon any structure which are determined by the Building Official and the Fire Marshall to fully comply with the Building Code and Fire Safety Codes adopted by the City of Chattanooga other than movable metal gates or metal barriers.

(d) For the purposes of this ordinance, the "Downtown Area" is defined to be the area bounded by the centerline of Martin Luther King, Jr. Boulevard on the south, a line twenty (20) feet west of the city right-of-way on Chestnut Street (extended) on the west, the Tennessee River on the north, and a line twenty (20) feet east of the city right-of-way on Cherry Street (extended) on the east.
(Ord. No. 9928, § 1, 7-27-93)

Sec. 10-7. Handicap and Accessibility Code adopted.

American National Standard. Accessible and Usable Buildings and Facilities (ICC/ANSI A117.1-2009), one (1) copy of which is, and has been on file for more than fifteen (15) days, with the Clerk of the City Council, is hereby adopted as the Official Handicap and Accessibility Code of the City.
(Ord. No. 10176, § 4, 3-7-95; Ord. No. 10676, § 4, 3-10-98; Ord. No. 11721, § 6, 7-26-05; Ord. No. 12271, § 5; Ord. No. 12600, § 6, 5-29-12)

Sec. 10-8. Tie-down, skirting, landing and porch requirements of manufactured homes.

The following requirements set forth in this code section shall apply to all new and used manufactured homes installed within the City of Chattanooga following the effective date of this ordinance*:

(a) No manufactured home may be installed on any lot in the City of Chattanooga unless it complies with all provisions of the National Manufactured Home Construction and Safety Standards Act of 1974 (42 U.S.C. Section 5401, *et seq.*); the Uniform Standards Code for Manufactured Homes and Recreational Vehicles as set forth at T.C.A. Section 68-126-201, *et seq.*; the Tennessee

***Note—**Ord. No. 10660, § 1, enacted Sec. 10-8 by its adoption on January 20, 1998.

Modular Building Act, at T.C.A. Section 68-126-301; the Tennessee Manufactured Home Anchoring Act at T.C.A. Section 68-126-401; and the minimum housing standards set forth at Chattanooga City Code, Section 21-1, *et seq.*

(b) For purposes of this code, a "manufactured home" shall be defined as a structure, transportable in one (1) or more sections, which is eight (8) body feet (two and four-tenths (2.4) meters) or more in width and is thirty-two (32) body feet (nine and seventy-five-hundredths (9.75) meters) or more in length and which is built on a permanent chassis, and designed to be used as a dwelling with or without permanent foundation, and connected to the required utilities, and includes plumbing, heating, air conditioning, and electrical systems contained therein.

(c) All manufactured home units are required to bear the label or seal of compliance with Federal Manufactured Home Construction and Safety Standards issued by an agency approved by the Secretary of the Department of Housing and Urban Development and a certificate, seal or other evidence of compliance with State uniform standards for manufactured homes required by T.C.A. Section 68-126-207.

(d) All manufactured homes are required to have diagonal ties to restrict the unit from being pushed from its piers. These diagonal ties are required to be installed to restrict overturning. Additional over-the-top tie downs to restrict overturning may also be required by some manufactured home installation instructions.

(1) Piers or load-bearing supports or devices shall be designed and constructed to evenly distribute the loads. Piers shall be securely attached to the frame of the manufactured home or shall extend at least six (6) inches (one hundred fifty-two (152) millimeters) from the centerline of the frame member. Manufactured load-bearing supports or devices shall be listed or approved for the use intended, or piers shall be constructed as follows:

(i) Except for corner piers, piers less than forty (40) inches (one thousand sixteen (1,016) millimeters) high shall be constructed of masonry units, placed with cores or cells vertically. Piers shall be installed with their long dimensions perpendicular to the main (I-beam) frame member for supports and shall have a minimum cross-sectional area of one hundred nineteen (119) square inches (0.077 m squared). Piers shall be capped with a minimum two (2) inch (fifty-one (51) millimeters) solid masonry unit or concrete cap, or equivalent.

(ii) Piers between forty (40) and eighty (80) inches (one thousand sixteen (1,016) and two thousand thirty-two (2,032) millimeters) high and all corner piers over twenty-four (24) inches (six hundred ten (610) millimeters) shall be at least sixteen (16) by sixteen (16) inches (four hundred six (406) by four hundred six (406) millimeters) consisting of interlocking masonry units and shall be fully capped with a minimum four (4) inch (one hundred two (102) millimeters) solid masonry unit or equivalent.

(iii) Piers over eighty (80) inches (two thousand thirty-two (2,032) millimeters) high shall be constructed in accordance with the provisions of paragraph (ii) above, provided the piers shall be filled solid with grout and reinforced with four (4) continuous No. 5 bars. One (1) bar shall be placed in each corner cell of hollow masonry unit piers, or in each corner of the grouted space of piers constructed of solid masonry units.

(iv) Cast-in-place concrete piers meeting the same size and height limitations of paragraphs (i), (ii) and (iii) above may be substituted for piers constructed of masonry units.

(v) All piers shall be constructed on footings of solid concrete not less than sixteen (16) inches wide by eight (8) inches in thickness (sixteen (16) inches by eight (8) inches) and continuous between all piers installed perpendicular to the main (I-beam) frame members.

(e) Piers shall be located in accordance with the manufactured home installation instructions. If the manufactured home installation instructions are not available for a used home, piers for single section homes are to be placed under each longitudinal main frame member not to exceed eight (8) feet (two thousand four hundred thirty-eight (2,438) millimeters) on-center for homes that are not over fourteen (14) feet (four thousand two hundred sixty-seven (4,267) millimeters) wide or less and six (6) feet (one thousand eight hundred twenty-nine (1,829) millimeters) on-center for homes that are not over fourteen (14) feet (four thousand two hundred sixty-seven (4,267) millimeters) wide. Piers for multi-section homes are to be placed under each longitudinal main frame member not to exceed six (6) feet (one thousand eight hundred twenty-nine (1,829) millimeters) on-center spacing. For used multi-section homes, piers are to be placed under the center marriage line within one (1) foot at each end, under ridge beam support columns, and under both side of openings at the marriage line greater than twelve (12) feet (three thousand six hundred fifty-seven (3,657) millimeters). For all homes, exterior doors shall have piers directly under both sides of the door openings. Where practical for all homes, end piers shall be placed within one (1) foot (three hundred five (305) millimeters) of the ends of the main frame. When the location and spacing of wheels and axles or other structural members of home frames or undercarriages prevent spacing of piers on eight (8) or six (6) feet (two thousand four hundred thirty-eight (2,438) or one thousand eight hundred twenty-nine (1,829) millimeters) centers, the spacing shall be as near eight (8) or six (6) feet (two thousand four hundred thirty-eight (2,438) or one thousand eight hundred twenty-nine (1,829) millimeters) maximum spacing as practicable in the area of the obstruction. Piers shall be placed under other concentrated loads such as porch posts, bay window overhangs, and masonry-faced fireplaces on floor overhangs. Units that exceed sixteen (16) feet (four thousand eight hundred seventy-seven (4,877) millimeters) in width shall have perimeter piers under the sidewalls every six (6) feet (one thousand eight hundred twenty-nine (1,829) millimeters) and at each intersection of a perimeter joist and a transverse joist or shall be under a four (4) by four (4) inch (one hundred two (102) by one hundred two (102) millimeters) brace that supports at least two (2) floor joists.

(f) The City of Chattanooga further adopts by reference all manufactured home tie-down standards set forth in the currently adopted edition of the Building Code except where such provisions are contrary to the express language of this ordinance. Such provisions are incorporated by reference and shall be inspected by the Building Inspector.

(g) All manufactured homes installed after the effective date of this ordinance shall be required to have masonry skirting covering all open space between the ground and the exterior wall on the perimeter of the manufactured home, not less than six (6) inches wide or in such other width as may be required by the Standard Building Code based upon the heights and widths of the masonry skirting. All masonry skirting shall be constructed on footings of poured in place concrete not less than sixteen (16) inches wide by four (4) inches in thickness (sixteen (16) inches by x four (4) inches) or as otherwise required by the Standard Building Code based upon the height and width of the masonry skirting.

(h) All manufactured homes shall further be required to be situated on any lot so that the front entrance to the manufactured home faces a City street. The owner or installer of a manufactured home shall be required to designate the front entrance to the Building Official before any installation may be approved.

(i) All manufactured homes shall further be required to have a minimum landing at every entrance of at least four (4) feet by four (4) feet, with a covered porch over the front entrance. All landings shall be constructed and approved by the Building Official in accordance with all standards set forth in the 1999 Standard Building Code (as amended). The covered porch over the front entrance shall be constructed with a roof line of at least the same pitch as the remainder of the manufactured home.

(Ord. No. 10660, § 1, 1-20-98; Ord. No. 10802, § 1, 11-17-98; Ord. No. 11041, § 4, 7-25-00)

Sec. 10-9. Roof pitch, emergency egress, site location and completion requirements of manufactured homes.

The following requirements set forth in this code section shall apply to all new and used manufactured homes installed within existing subdivisions within the City of Chattanooga containing structures other than manufactured homes following the effective date of this ordinance:

(a) Any manufactured home which is desired to be placed within an existing residential subdivision within the City of Chattanooga containing structures other than manufactured homes must have a roof pitch with at least four to twelve (4:12) pitch (measured as the ratio of the roof's rise to its horizontal run); the home must have a width greater than sixteen (16) feet; the roof must be finished with roofing materials common to residential construction within the subdivision or neighborhood; the exterior siding must be similar to common residential construction within the subdivision or neighborhood; and the area underneath the home must be enclosed by masonry skirting of a type set forth within Section 10-8 of the Chattanooga City Code.

(b) Windows within any manufactured home installed in a residential subdivision containing structures other than manufactured homes shall be similar in appearance to existing homes in the subdivision or neighborhood. All sleeping room emergency egress windows shall be at least five (5.0) square feet in size and shall comply with the minimum standards set forth in Section 1005.4.4 of the 1999 Standard Building Code (and all subsequent Building Code provisions legally adopted by the City Council of the City of Chattanooga).

(c) Any manufactured home sought to be installed within an existing subdivision containing structures other than manufactured homes shall be installed upon a lot of sufficient width to allow the manufactured home to be installed with its longest side facing the street and containing a covered landing and porch of a type set forth within Section 10-8 facing a street;

(1) Setback and orientation of the home shall conform with that of other homes in the subdivision or neighborhood.

(2) The manufactured home shall provide a driveway similar in length and location to the home similar to other existing homes in the subdivision or neighborhood.

(3) An attached carport or parking garage shall be provided if the predominance of other homes in the subdivision or neighborhood have these features.

(d) Any contractor installing a manufactured home within an existing residential subdivision containing structures other than manufactured homes shall first obtain a permit from the office of the Building Official and shall complete all site work and building installation requirements pursuant to this section and Chattanooga City Code, Section 10-8, within ninety (90) days after site preparation begins. The failure to obtain a building permit in a timely manner and to complete work within a timely manner may result in the revocation of this permit and/or the imposition of any applicable civil penalties authorized within the Chattanooga City Code.

(Ord. No. 10802, § 2, 11-17-98)

ARTICLE II. HISTORIC ZONING

Sec. 10-10. Purposes of historic zoning.

The purpose of historic zoning is to preserve and protect the historical and/or architectural value and cultural heritage of buildings, landmarks and historic districts; to regulate exterior design, arrangement, texture and materials proposed to be used within the historic district to ensure compatibility; to create an aesthetic appearance which complements the historic buildings or other structures; to stabilize and improve property values; to strengthen the local economy; to promote the use of local historic districts for the education, pleasure and welfare of present and future citizens; to promote neighborhood pride in and awareness of the beauty and significant accomplishments of the past; to protect and enhance the city's attraction to residents, tourists and visitors and serve as a support and stimulus to business and industry; to foster and encourage preservation, restoration and rehabilitation of structures, areas and neighborhoods, thereby preventing future urban blight and preserving existing housing stock; to prevent intrusions of newly-developed structures into the district that would be incompatible with the established character of the neighborhood or district.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-11. Reserved.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 9250, § 1, 10-10-89; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-12. Definitions.

Unless specifically defined below, words or phrases in this ordinance shall be interpreted as having the same meaning as they have in common usage.

(a) *Alteration.* Any act or process that changes one (1) or more of the exterior architectural features of the structure, including, but not limited to, the erection, construction, reconstruction or removal of any structure.

(b) *Appurtenance.* A structure or a landscaping element which is accessory or auxiliary to the main structure on a property. Examples of appurtenances include, but are not limited to: fences, gazebos, signs, billboards, walls, sporting apparatus and equipment, radio and television antennae, swimming pools, bath houses, steps, sidewalks, out buildings, garages, street lights and statues.

(c) *Area.* A specific geographic division of the city.

(d) *Baseline Photographs.* Current photographs of all sides of each structure visible from public thoroughfares to be taken following approval of a historic district or landmark.

(e) *Certificate of Appropriateness (COA).* A certificate issued by the Chattanooga Historic Zoning Commission (hereinafter referred to as CHZC or the "Commission") indicating its approval of plans for alteration, construction, removal, or demolition of a structure or appurtenance within a local historic district.

(f) *Certificate of Economic Hardship (CEH).* A certificate issued by the Commission authorizing an alteration, construction, removal, or demolition of a structure within a local historic district. A CEH can be issued by the Commission to an applicant who shows that complying with the standards of the COA would present an unreasonable economic burden.

(g) *Construction.* The act of adding an addition to an existing structure or the erection of a new principal or appurtenant structure on a lot or property.

(h) *Demolition.* Any act or process that destroys in part or in whole a structure within a local historic district.

(i) *Design Guideline.* A standard of appropriate activity that will preserve the historic and architectural character of a structure or area.

(j) *Exterior Architectural Appearance.* The architectural character and general composition of the exterior of a structure, including but not limited to the kind, color, and texture of the building material and the type, design, and character of all windows, doors, light fixtures, signs, and appurtenant elements.

(k) *Local Historic District (LHD).* An area, designated by the Chattanooga City Council which possesses a significant concentration or continuity of sites or buildings which are significant historically, architecturally, or aesthetically, and which meets one (1) or more of the following criteria:

(1) Is associated with an event which has made a significant contribution to local, state, or national history;

(2) Includes structures associated with the lives of persons significant in local, state, or national history;

(3) Contains structures or groups of structures which embody the distinctive characteristics of a type, period, or method of construction, or that represent the work of a master, or that possess high artistic values, or that represent a significant and distinguishable entity whose components may lack individual distinction;

(4) Has yielded or may be likely to yield archaeological information important in history or prehistory; or

(5) Is listed in the National or Tennessee Register of Historic Places. [Acts 1982 (Adj.S.), ch. 814, 1.]

(l) *Local Historic Landmark (LHL).* A single property or structure, designated by the Chattanooga City Council, which is significant historically, architecturally, or aesthetically, and which meets one (1) or more of the following criteria:

(1) Is associated with an event which has made a significant contribution to local, state, or national history;

(2) Is associated with the lives of persons significant in local, state, or national history;

(3) Embodies the distinctive characteristics of a type, period, or method of construction, or that represent the work of a master, or that possess high artistic values, or that represent a significant and distinguishable entity whose components may lack individual distinction;

(4) Has yielded or may be likely to yield archaeological information important in history or prehistory; or

(5) Is listed in the National or Tennessee Register of Historic Places. [Acts 1982 (Adj.S.), ch. 814, 1.]

(m) *National Register of Historic Places.* A federal listing of districts, sites, buildings, structures, and objects significant in American history, architecture, archeology, and culture. National Register listing provides protection from impairment by federally funded projects and qualifies the property for federal grants and tax advantages, but imposes no restrictions on use, alteration or disposal of such properties.

(n) *Owner of Record.* The person, corporation, or other legal entity listed as owner on the records of the County Register of Deeds.

(o) *Removal.* Any relocation of a structure on its site to another site.

(p) *Repair.* Any change that is not construction, removal, or alteration.

(q) *Structure.* Anything constructed or erected, the use of which requires permanent or temporary location on or in the ground.

(Ord. No. 9112, § 1, 1-24-89; Ord. No. 9250, § 2, 10-10-89; Ord. No. 9544, § 1, 4-30-91; Ord. No. 9654, § 2, 1-6-92; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-13. Creation of Chattanooga Historic Zoning Commission.

(a) *Composition and qualification of members.* There is hereby established a Chattanooga Historic Zoning Commission (hereinafter referred to as "CHZC" or "Commission") of nine (9) members, which shall consist of a representative of a local historical organization, an architect, four (4) residents of the Local Historic Districts and three (3) members of the general public.

(b) *Appointment, terms and compensation.* The terms of the Commissioners shall be five (5) years. Members of the CHZC may be removed from office for just cause by the City Council upon written charges and after a public hearing. Vacancies shall be filled by appointment of the Mayor with the approval of the City Council. All members shall serve without compensation.

(c) *Conflict of interest.* Any member of the CHZC who shall have a direct or indirect financial interest in any property which is the subject matter of, or affected by, a decision of said Commission shall be disqualified from participating in the discussion, decision or proceedings of the CHZC in connection therewith.

(d) *Powers and duties:*

(1) The CHZC shall review applications for the nomination of LHD and LHL. The review of such applications shall be in accordance with all provisions of this Ordinance. The CHZC shall furnish to the City Council, in writing, its recommendations regarding the nomination of [LHD or LHL]. The City Council shall review the recommendations of the CHZC prior to the establishment of a LHD or LHL.

(2) Simultaneous, with adoption of a LHD or LHL, the Commission shall adopt for each such proposed District or Landmark, a set of District Specific Review Guidelines, which it will apply in ruling upon the granting or denial of COAs as provided for in this Ordinance. Such review guidelines shall be consistent with the purposes of this Ordinance and be applicable to the construction, alteration, relocation, or demolition of any building, structure, appurtenance, or other improvement situated within the LHD or which applies directly to any LHL. Reasonable public notice and opportunity for public comment by public hearing as specified in this Ordinance shall be required before the adoption of any such review guidelines.

(3) It shall be the duty of the CHZC to make the following determinations, and grant or deny a COA or a Certificate of Economic Hardship (CEH) with respect to the LHD or LHL when applicable:

a. Appropriateness of altering or demolishing any building or structure within the LHD or LHL. The Commission may require exterior photographs, architectural measured drawings of the exterior, elevations, site plan, materials list, or other notations of architectural features to be used for historical documentation as a condition of any permission to demolish a building or structure. Such photographs, drawings, etc. shall be at the expense of the applicant.

b. Appropriateness of exterior architectural features, including signs and other exterior fixtures, of any new buildings and structures to be constructed within the LHD or of a LHL.

c. Appropriateness of front yards, side yards, rear yards, off-street parking spaces, location of entrance drives into the property, sidewalks along the public right-of-way, which might affect the character of a LHL or of any building, structure, or appurtenance within a LHD.

d. For a LHD, the appropriateness of the exterior design, arrangement, texture, or material of the structure(s) in question, and the relation of such factors to similar features of structures in the immediate surroundings and entire district. However, the CHZC shall not consider interior arrangement or design.

e. That all work to be undertaken on a LHL or in the LHD complies with the applicable district or landmark specific review guidelines, with primary consideration to be given to:

1. Historical or architectural value of the present structure(s);

2. The relationship of the exterior architectural features of such structure(s) to the rest of the structures, to the surrounding area, and to the character of the District;

3. The general compatibility of exterior design, arrangement, texture, and materials proposed to be used; and

4. To any other factor, including aesthetic, which is reasonably related to the purpose of this Ordinance.

(4) The Commission shall cause a record of all proceedings to be available to the public at the City of Chattanooga's Public Works: Land Development Office (PWLDO).

(5) The Commission shall provide reports of the status of approved COAs and CEHs to the Building Inspection Division. Such status reports shall be made available to the public at the City of Chattanooga's (PWLDO).

(d) *Staff Support.* Staff support shall be provided to the Commission by regular staff members of the City of Chattanooga's PWLDO as budgeted by the City Council. Such staff shall be responsible for carrying out the directives of the Commission, assisting the public in applying this Ordinance, and providing records of commission actions. Funding for such staff support shall be derived from the operating budgets of the PWLDO.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 9250, § 3, 10-10-89; Ord. No. 9544, § 3, 4-30-91; Ord. No. 9654, §§ 2, 80, 1-6-92; Ord. No. 12656, § 1, 10-9-12; Ord. No. 12984, § 1, 9-1-15)

Sec. 10-14. Creation of Local Historic Districts and Local Historic Landmarks.

(a) *Nomination of a Local Historic District (LHD) or a Local Historic Landmark (LHL).* Nomination shall be made to the Commission. Nomination applications may be prepared and submitted by any of the following groups or persons:

(1) City Council.

(2) Neighborhood Association.

(3) Property Owner within the proposed District or of the Landmark.

(4) Historic, Civic or Professional Society or Group.

(b) *Application.* When applying for nomination as a LHD or LHL, the applicant shall supply documents or other evidence showing that the property(s) or structure(s) under consideration meets one (1) or more of the criteria defining LHDs or LHLs. An application fee based on the current annual costs as determined by the Commission to manage historic zoning shall accompany each application.

(1) All applications for LHD designation shall be accompanied by the following materials, in addition to any other materials deemed significant by the applicant, or the Commission:

a. An application form which shall be supplied by the Land Development Office, which details the applicant's name, address, interest in or ownership of property(s), the property address(es) in question, description of property(s) and structure(s), construction date of existing structure(s).

b. A map of the area proposed for nomination: the map should clearly show streets, alleys, public buildings and boundaries of the proposed district.

c. Records or reports which detail the historic significance of the proposed district.

d. Sufficient pictorial documentation of streetscapes and buildings which establish the historic character of the area.

e. A draft of the district specific design guidelines which detail criteria that applicants for COAs must meet. Such criteria for structures shall include: height, scale, massing, directional expression, setbacks, platforms, roof shape and slope, rhythm of openings, entrances, porches and building spaces, materials, and textures. District specific design guidelines shall address new construction, alterations and additions to the existing structures, demolition, and removal and relocation.

f. A legal description of the proposed district or landmark to be included.

(2) All applications for LHL designation shall be accompanied by the following materials, in addition to any other materials deemed significant by the applicant or the Commission:

a. An application form, supplied by the Land Development Office, which details the applicant's name, address, interest in or ownership of the property, the property address, description of the property and structures, and the construction date of all existing structures.

b. Records or reports which detail the historic significance of the proposed landmark.

c. Current photographs of the landmark.

d. A draft of the Landmark Specific Design Guidelines which detail criteria that applicants for Certificates of Appropriateness (COA) must meet. Landmark Specific Design Guidelines shall address additions and alterations, new construction on the landmark property, removal and relocation, and demolition.

(c) *Criteria for Nomination as LHD or LHL.* When considering whether to recommend approval or denial of nomination for a LHD or LHL, the Commission shall consider the character of the area with respect to the following criteria:

(1) Its character, interest or value as part of the development, heritage, or cultural characteristics of the community, county, state or country;

(2) Its location as a site of a significant local, county, state or national event;

(3) Its identification with a person or persons who significantly contributed to the development of the community, county, state or country;

(4) Its embodiment of distinguishing characteristics of an architectural style valuable for the study of a period, type, method of construction, or use of indigenous materials;

(5) Its identification as the work of a master builder, designer, architect or landscape architect whose individual work has influenced the development of the community, county, state or country;

(6) Its embodiment of elements of design, detailing, materials or craftsmanship that render it architecturally significant;

(7) Its embodiment of design elements that make it structurally or architecturally innovative;

(8) Its character as a particularly fine or unique example of a utilitarian structure, including, but not limited to, farmhouses, gas stations or other commercial structures, with a high level of integrity or architectural significance;

(9) Its suitability for preservation or restoration; and/or

(10) That it is listed on the National Register of Historic Places.

(d) *Proceedings.*

(1) Historic Districts. Upon receipt of an application for nomination as a LHD, the Commission shall hold a minimum of one (1) public meeting in or near the proposed district at which members of the public shall be allowed to hear the proposal, view maps and other materials, ask questions of the Commissioners or applicant, and express support or opposition to the application. Such meeting shall be held in a school, church or other public or semi-public facility, in or near the proposed district. Such meeting shall be advertised in a local, city-wide newspaper.

Following the meeting in the neighborhood, a final meeting shall be held at City Hall or Annex thereto during which the CHZC shall make a resolution recommending that the City Council accept or deny the application for nomination as a LHD. Such meeting shall be advertised in a local, city-wide newspaper.

The resolution shall be accompanied by a report to the City Council containing the following information:

a. Explanation of the significance or lack of significance of the nominated LHD as it relates to the criteria for designation.

b. Explanation of the integrity or lack of integrity of the nominated LHD.

c. Proposed design guidelines for applying the criteria for review of COA to the nominated LHD.

d. A map showing the location of the nominated LHD.

Upon receipt of a recommendation for nomination as a LHD from the CHZC, the City Council shall conduct a hearing on the resolution using the same administrative procedure with which they decide zoning cases except that there shall be no referral to the City of Chattanooga's PWLDO during which they shall either grant or deny status as a LHD.

Upon City Council approval of the LHD, current photographs or a video of all sides visible from the public thoroughfares of all structures in the District shall be taken to serve as baseline documentation for future proceedings.

The recommendations and report of the CHZC shall be available to the public.

(2) Historic Landmarks. Upon receipt of an application for nomination as a LHL, the Commission shall hold a minimum of one (1) public meeting in the Chattanooga City Hall or any Annex thereto at which members of the public shall be allowed to hear the proposal, view maps and other materials, ask questions of the Commissioners or applicant, and express support or opposition to the application. Such meeting shall be advertised prior to the meeting through a local, city-wide newspaper.

Following the landmark meeting(s), a final meeting shall be held at City Hall or any Annex thereto during which the CHZC shall make a Resolution recommending that the City Council accept or deny the application for nomination as a LHL. Such meeting shall be advertised prior to the meeting through a local, city-wide newspaper.

The Resolution shall be accompanied by a report to the City Council containing the following information:

a. Explanation of the significance or lack of significance of the nominated LHL as it relates to the criteria for designation;

b. Explanation of the integrity or lack of integrity of the nominated landmark;

c. In the case of a nominated landmark found to meet the criteria for designation;
   (i) The types of significant exterior architectural features of the landmark that should be protected.
   (ii) The types of alterations that should be reviewed for COAs.
   (iii) Proposed design guidelines for reviewing applications for COAs.
d. A map showing the location of the nominated LHL.

The recommendations and report of the CHZC shall be available to the public.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 9250, § 4, 10-10-89; Ord. No. 9544, §§ 4, 5, 4-30-91; Ord. No. 9654, § 2, 1-6-92; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-15. Certificates of Appropriateness.

(a) *Reviewable Actions for COAs.* All applications for permits for construction, alteration, rehabilitation, relocation, or demolition of any building, structure, or other improvement to real estate situated within a LHD shall require a COA. Any construction, alteration, rehabilitation, relocation or demolition of any building, structure or other improvements on real property, whether privately or publicly owned, which is situated within a LHD and for which a permit is not required, shall require a COA. Any alteration, rehabilitation, relocation, or demolition of a LHL, whether privately or publicly owned, shall require a COA.

(b) *Applications for COAs.* Application for a COA shall be made on a form prepared by the Commission and available at the City of Chattanooga's PWLDO. Any application for a demolition permit or a building permit within a LHD or a LHL shall be forwarded by the Building Inspection Division to the CHZC within seven (7) days following receipt of the application. The Chief Building Official shall not issue the building or demolition permit until a COA or a CEH has been issued by the CHZC. Any applicant applying for a COA shall pay the fees authorized in the Chattanooga City Code Sec. 10-3(f).

(c) *Application Requirements.* Applicants for COAs must submit the following documents, in triplicate, to the Commission staff, along with the application form and a fee based on the current annual cost as determined by the Chattanooga City Council by ordinance to manage historic zoning. All maps, plats, drawings and plans must be signed by the architect or draftsperson. Draftspersons need not be licensed, and may be the applicant or the applicant's agent. The City of Chattanooga's PWLDO shall make all submitted materials available to the CHZC.

(1) Alterations or Additions to Existing Structures.
   a. Current photographs of all sides of the structure(s) under consideration. Such photographs shall accurately represent all colors and textures of the various materials of adjacent improvements. All photographs shall be labeled to indicate the date taken, location of structure, and direction of the view.
   b. Current color photographs of all adjoining or neighboring structures. Such photographs shall accurately represent all colors and textures of the various materials of adjacent structures. All photographs shall be labeled to indicate the date taken and direction of the view.
   c. A site plan or map of the structure(s) under consideration clearly showing the building's location and relation to neighboring structures, the building's and proposed building's setback(s), public or private streets or drives, and access and utility rights-of-way.
   d. Drawings which clearly show the existing structure(s) and the proposed addition(s) and alteration(s). Such drawings shall include plans and elevations or exterior perspectives drawn to a scale sufficient to show the proposed height; scale; orientation, space, and site

coverage; facade proportions and rhythm; size, shape, and proportions of entrances and porch projections; materials, textures and colors; architectural details; roof shape and slope; directional expression; landscaping, walls, and fences; and general visual effect. Such plans or plats shall show all improvements to structures or appurtenances which affect the exterior architectural appearance of any structures on the property. Plats or plans are required for all exterior additions, alterations or changes proposed to be made to any structure face.

e. A listing of all materials to be used, including all possible substitutes. The list shall include all substances, components, materials, apparatus, equipment, fixtures, or devices to be constructed, installed, attached or built. Listing shall describe clearly the size, composition, color, catalog order number, and specie of all listed components.

(2) New Structures.

a. Current color photographs of all sides of the property(s) under consideration. All photographs shall be labeled to indicate the date taken, location of structure, and the direction of the view.

b. Current color photographs of all adjoining or neighboring structures. Such photographs shall accurately represent all colors and textures of the various materials of adjacent improvements. All photographs shall be labeled to indicate the date taken and direction of the view.

c. A site plan of the structure under consideration clearly showing the building's location and relation to neighboring structures, the proposed setbacks, public or private streets or drives, and access and utility rights-of-way.

d. Drawings which clearly show all existing and proposed structure(s). Such drawings shall include plans and elevations or exterior perspectives drawn to a scale sufficient to show the proposed height; scale; orientation, spacing, and site coverage; facade proportions and rhythm size, shape, and proportions of entrances and porch projections; materials, textures and colors; architectural details; roof shape and slope; directional expression; landscaping, walls, and fences; and general visual effect. Such plans or plats shall show all improvements to structures or appurtenances which affect the exterior architectural appearance of all structures on the property. Plats or plans are required for all exterior additions, alterations or changes proposed to be made to any structure face or any yard.

e. A listing of all materials to be used, including all possible substitutes, in the addition or alteration. The list shall include all substances, components, materials, apparatus, equipment, fixtures, or devises to be constructed, installed, attached or built. Listing shall describe clearly the size, composition, color, catalog order number, and specie of all listed components.

(3) Removal or Relocation.

a. Current color photographs of all sides of the structure(s) under consideration. Such photographs shall accurately represent all colors and textures of the various materials of the structure. All photographs shall be labeled to indicate the date taken and direction of the view.

b. Current color photographs of all adjoining or neighboring structures. Such photographs shall accurately represent all colors and textures of the various materials of adjacent structures. All photographs shall be labeled to indicate the date taken, location of structure, and direction of the view.

c. Current color photographs of the location to which the structure is being moved and all adjoining or neighboring structures, if within the boundaries of a LHD of the City of

Chattanooga. Such photographs shall accurately represent all colors and textures of the various materials of all structures. All photographs shall be labeled to indicate the date taken, location of structure and direction of the view.

d. A site plan or map of the new location of the structure under consideration clearly showing the building's location and relation to neighboring structures, the proposed setback, public or private streets or drives, and access and utility rights-of-way.

(4) Demolition.

a. Current color photographs of all sides of the structure(s) under consideration. Such photographs shall accurately represent all colors and textures of the various materials of the structure. All photographs shall be labeled to indicate the date taken, location of structure, and direction of the view.

b. Current color photographs of all adjoining or neighboring structures. Such photographs shall accurately represent all colors and textures of the various materials of adjacent structures. All photographs shall be labeled to indicate the date taken, location of structure, and direction of the view.

c. Proof that the applicant has advertised, in a local paper of wide-spread distribution, the sale of the structure(s) for removal or the sale of the property and structures combined. Such advertisement shall have been circulated not more than one (1) year, nor less than fifteen (15) days prior to the hearing date. Such advertisement, and payment for same, shall be the responsibility of the applicant. This provision is intended to discourage thoughtless and needless destruction of historical buildings by providing interested buyers and/or civic groups with at least the opportunity to negotiate with the owner before they go through with their demolition plans. The sale of the property shall be entirely at the discretion of the owner.

(d) *Hearing and Determination.*

(1) Administrative Review. Staff approval may be provided for work that meets the design guidelines and is not one (1) of the following: New construction of primary structures, outbuildings, or garages; additions, demolition; parking lots.

(2) CHZC Review. The CHZC must review all applications for new construction of primary structures, outbuildings, garages, additions; demolition and parking lots as well as any applications that the staff refers to the CHZC.

(e) *Standards for Review.* In considering an application for a COA, the CHZC shall be guided by the following general standards in addition to any district specific design guidelines in this ordinance.

(1) The distinguishable original qualities or character of a building, structure or site shall not be destroyed. The removal or alteration of any historic material or distinctive architectural feature shall be avoided when possible.

(2) All buildings, structures and sites shall be recognized as products of their own time. Alterations that have no historical basis and that seek to create an earlier appearance shall be discouraged.

(3) Changes that may have taken place in the course of time are evidence of the history and development of a building, structure or site and its environment. These changes may have acquired significance in their own right, and this significance shall be recognized and respected.

(4) Distinctive stylistic features or examples of skilled craftsmanship that characterize a building, structure or site shall be treated with sensitivity.

(5) Deteriorated architectural features shall be repaired rather than replaced, whenever possible. In the event replacement is necessary, the new material should match the material being replaced in composition, design, color, texture and other visual qualities. Repair or replacement of missing architectural features should be based on accurate duplication of features, substantiated by historical, physical, or pictorial evidence, rather than on conjectural designs or the availability of different architectural elements from other buildings or structures.

(6) The surface cleaning of structures shall be undertaken with the gentlest means possible. Sandblasting and other cleaning methods that will damage the historic building materials shall not be undertaken.

(7) Every reasonable effort shall be made to protect and preserve archaeological resources affected by, or adjacent to, any project.

(8) Contemporary design for alterations and additions to existing properties shall not be discouraged when such alterations and additions do not destroy significant historical, architectural or cultural material, and such design is compatible with the size, scale, color, material and character of the property, neighborhood or environment.

(f) *Approval or Denial.* Following proper review of sufficient data, including a public hearing, the Commission shall approve or deny the COA within thirty (30) days. The COA may be issued with modification by CHZC. Written notice of the approval or denial of the application for a COA shall be provided to the applicant and to the Building Inspection Division if a building or demolition permit is needed. The CHZC shall state in the written notice any required modifications to the application, and conditions to which the certificate is subject, or reasons for the denial of the application.

The applicant may resubmit an amended application for a COA which takes into consideration the recommendations of the CHZC. The applicant may also apply for a CEH if they feel the decision of the CHZC has denied them a reasonable economic return or use of the property.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 9250, § 5; 10-10-89; Ord. No. 9544, §§ 6, 7, 4-30-91; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-16. Certificate of Economic Hardship.

If a COA has been denied to a property owner within a LHD or of a LHL, then the property owner has the right to present evidence to the Commission that such denial has deprived the owner of reasonable use or economic return, of the property.

(a) *Application for CEH.* Application for a CEH shall be made on a form available from the City of Chattanooga's PWLDO. The following information shall be submitted with an application for CEH:

(1) A statement detailing the condition(s) leading to economic hardship. The application should discuss the circumstances under which denial of a COA has led or will lead to deprivation of reasonable use, or economic return of the property. The standards which the Commission shall go by to determine economic hardship include the following:

a. That by reason of the exceptional deterioration of the structures or by reason of the particular economics of the proposed project, the strict application of the district specific design guidelines would result in peculiar and practical difficulties or undue economic hardships upon the owner to develop the property in accordance with the district specific design guidelines.

b. That the relief of the peculiar hardships would not establish substantial detriment to the public good or substantially impair the intent and purpose of the Historic Zoning Ordinance.

c. That the peculiar hardship would apply to the particular land or building regardless of the owner.

d. That the peculiar hardship is not created as the result of an act upon the part of the applicant.

(2) Estimate of the cost of the proposed construction, alteration, demolition; removal and an estimate of any additional cost that would be incurred to comply with the recommendations of the Commission for modifications necessary for the issuance of a COA.

(3) Estimated market value from a licensed real estate appraiser or the County Tax Assessor of the property in its current condition; after completion of the proposed construction, alteration, demolition, or removal; after any changes recommended by the Commission; and, in the case of a proposed demolition, after renovation of the existing property for continued use.

(4) In the case of a proposed demolition, an estimate from an architect, developer, real estate consultant, appraiser, or other real estate professional experienced in rehabilitation of historic structures as to the structural soundness of the structure and the economic feasibility of rehabilitation or reuse of the existing structure on the property.

(5) If the property is income-producing, the annual gross income from the property for the previous two (2) years; itemized operating and maintenance expenses for the previous two (2) years; and depreciation deduction and annual cash flow before and after debt service, if any, during the same period.

(6) All appraisals obtained within the previous two (2) years by the owner or applicant in connection with the purchase, financing, or ownership of the property.

(7) Any listing of the property for sale or rent, price asked and offers received, if any, within the previous two (2) years.

(8) Real estate taxes for the previous two (2) years.

(9) Form of ownership or operation of the property, whether sole proprietorship, for-profit or not-for-profit corporations, limited partnership, joint venture, or other.

(b) *Hearing and Determination.*

(1) The Commission shall review the application for CEH and schedule a public hearing in the same manner it would for a COA. Any person may testify at the hearing concerning the economic hardship of the property. Furthermore, the CHZC may solicit expert testimony or require that the applicant or the applicant's agent make additional submissions concerning the reasonable use or economic return of the property.

(2) Following proper review by the Commission and prior to the close of the public hearing, the CHZC shall issue or deny the CEH. Written notice of the approval or denial of the application for a CEH shall be provided to the applicant and to the Building Inspection Division if a building permit is needed. The CHZC shall state in written notice, all specific guidelines, requirements, and conditions to which the certificate is subject, or reasons for the denial of the application. The applicant may resubmit an amended application or reapply for a CEH that takes into consideration the recommendations of the CHZC.

(Ord. No. 9112, § 1, 1-24-89; Ord. No. 9250, § 6, 10-10-89; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-17. Appeals.

Anyone who may be aggrieved by any final order or judgment of the CHZC may have such order or judgment reviewed by the courts by the procedure of statutory review of Boards and Commissions, as provided in Chapter 9 of Title 27.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-18. Validity of certificates.

In the case where a COA or a CEH is issued and the Chief Building Inspector denies the building permit, the certificate shall be invalid. If any changes are made to the plans or any related materials of the application, the applicant must reapply for a certificate before work is begun.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-19. Enforcement, violations and penalties.

The Director of the Land Development Office or Designee is hereby designated and authorized to enforce this ordinance. Any person, firm or corporation who violates, disobeys, omits, neglects or refuses to comply with or who resists the enforcement of any of the provisions of this ordinance shall be fined not more than Fifty Dollars ($50.00) for each offense. Each day a violation exists shall constitute a separate offense.

The Chattanooga City Council may establish fees by ordinance for the filing of an Application for Nomination of a LHD, COA and CEH to cover administrative costs.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-20. Validity.

Should any section, subsection, phrase, clause or provision of this Ordinance be declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of the ordinance as a whole or any part thereof, other than the part so declared to be invalid.
(Ord. No. 9112, § 1, 1-24-89; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-21. Moratorium for proposed LHDs or LHLs.

When an application for an LHD or LHL is submitted to the CHZC, pursuant to Section 10-14 of this Code, a moratorium shall occur on the granting of permits to demolish, construct, reconstruct, renovate, grade, or in any way alter any structures or land recommended for designation as a LHD or LHL pursuant to this article. The moratorium shall end unless the CHCZ determines that it should approve a resolution recommending that the City Council accept the application for nomination as a LHD or LHL at its next meeting following the filing of the application. The moratorium shall not be lifted until the City Council either grants or denies status as a LHD or LHL.
(Ord. No. 9544, § 9, 4-30-91; Ord. No. 12656, § 1, 10-9-12)

Sec. 10-22. Right of entry upon land.

The Commission, its members and employees of the PWLDO, in the performance of its work, may enter upon any land within its jurisdiction and make examinations and surveys and place or remove public notices as required by this Ordinance, but there shall be no right of entry into any building without the consent of the owner.
(Ord. No. 9544, § 9, 4-30-91; Ord. No. 12656, § 1, 10-9-12)

Secs. 10-23—10-30. Reserved.
(Ord. No. 12656, § 1, 10-9-12)

ARTICLE III. OTHER FEES

Sec. 10-31. Technology and Credit Card Fees.

(a) The Land Development Office is authorized to charge a non-refundable supplemental technology fee of ten dollars ($10.00) per application for the following permits:

1. Sign permits issued under Chapter 3 of this code;
2. Building permits issued under Chapter 10 of this code;
3. Electrical permits issued under Chapter 14 of this code;
4. Gas Permits issued under Chapter 19 of this code;
5. Mechanical permits issued under Chapter 22.5 of this code;
6. Plumbing Permits issued under Chapter 27 of this code;
7. Land disturbing permits issued under Chapter 31 of this code; and
8. Excavation or temporary use permits issued under Chapter 32 of this code.
9. The Land Development Office is authorized to charge a non-refundable fee for the following services:

Subdivision review fee for ten (10) lots or less	125.00
Subdivision review for eleven (11) to fifty (50) lots (additional fee per each lot above ten (10))	10.00
Subdivision review for fifty-one (51) lots or above (additional fee per each lot above fifty (50))	5.00

10. Tire Business Permits as required by Chapter 11.
11. Tire Hauler Permits as required by Chapter 11.
12. Short Term Vacation Rental Certificates as required by Chapter 11.

(b) The Land Development Office is authorized to charge a non-refundable supplemental technology fee of ten dollars ($10.00) per application for the following licenses:

1. Electrician and electrical contractor licenses issued under Chapter 14 of this code;
2. Gas fitter and installer licenses issued under Chapter 19 of this code;
3. Mechanical or environmental control system licenses issue under Chapter 22.5 of this code; and
4. Master or journeyman plumber licenses issued under Chapter 27 of this code.

(c) The Land Development Office is authorized to charge a non-refundable supplemental technology fee of ten dollars ($10.00) per application for review of subdivision plans.

(d) The Land Development Office is authorized to accept credit card payment for any permit or license referenced herein and the supplemental technology fee provided the processing fee charged by the credit card processor is added to the amount of the fees payable to the City.

(e) The technology fees collected pursuant to this section shall be accounted for in a special fund and restricted to the purchase and maintenance of computer hardware and software and payments of related personnel costs and overhead to provide for on-line application and processing of these permits and licenses.
(Ord. No. 11580, § 1, 6-29-04; Ord. No. 12966, § 3, 6-30-15; Ord. No. 13376, § 2, 10-16-18)

Sec. 10-32. Engineering plans review and fees.

The City is authorized to charge a non-refundable fee for services provided as follows:

Subdivision Review Fee for Ten (10) Lots or Less. 175.00

Subdivision Review Fee - Additional Fee Per Each Lot Above Ten (10) Lots 10.00
(Ord. No. 11434, § 16, 7-15-03; Ord. No. 11450, § 1, 9-2-03; Ord. No. 11580, § 1, 6-29-04; Ord. No. 12363, § 3, 3-2-10; Ord. No. 12966, § 3, 6-30-15; Ord. No. 13929, § 2, 12-20-22)

Sec. 10-33. Energy Code Adopted.

The International Energy Conservation Code, 2018 edition, one (1) copy of which is and has been on file in the Office of the Clerk of the City Council for more than fifteen (15) days, is hereby adopted as the official energy code of the City, with the flowing amendment.

Delete Table 402.1.2 and Table 402.1.4 in their entirety and replace with;

Table 402.1.1 Insulation and Fenestration Requirements by Component and Table 402.1.3 Equivalent U-Factors, 2009 IECC.

(The amendments to the IECC are allowed with the state amendments per rule making Chapter 0780-2-23)
(Ord. No. 12600, § 5, 5-29-12; Ord. No. 12683, § 1, 1-15-13; Ord. No. 13394, § 1, 11-20-18; Ord. No. 13921, § 3, 12-6-22)

Secs. 10-34—10-49. Reserved.

ARTICLE IV. COMMERCIAL PROPERTY ASSESSED CLEAN ENERGY AND RESILIENCY (C-PACER) PROGRAM

Sec. 10-50. Establishment.

There is hereby established within the boundaries of the City of Chattanooga (the "City") a Commercial Property Assessed Clean Energy and Resiliency ("C-PACER") program (the "Program") in accordance with Tenn. Code Ann. §§ 68-205-101 (the "C-PACER Act"). The City finds that financing of qualified projects through special assessments is a valid public purpose. The City finds that it is convenient and advantageous to establish the Program, at no net cost to the City, in order to finance Qualified Projects (as hereinafter defined), repaid by voluntary annual assessment installment payments on the property benefited by such Qualified Projects, and that the Program is in the public interest, providing for the safety, health, and environmental public benefit, and provides for economic development of the community. Therefore, the City of Chattanooga intends to authorize direct financing between property owners and capital providers as the means of financing qualified projects. It also intends to authorize special assessments, entered into voluntarily by a property owner with the City of Chattanooga by means of written assessment contract, as a means to repay the financing for qualified projects available to property

owners. Thus, the Program shall allow financing for the full range of Qualified Improvements on all Eligible Properties, as authorized by the C-PACER Act, and shall abide by and operate according to the C-PACER Act.
(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-51. Definitions.

The definitions in this section apply throughout this Article of the Chattanooga City Code unless the context clearly requires otherwise:

1. *Application checklist.* The list of items in a Program Application required by the C-PACER Act, this article, the Program Guidebook, and the corresponding documentation that the City accepts or may request in order to show the requirements of the C-PACER Act have been met.

2. *Assessment.* The voluntary agreement of a Property Owner pursuant to an Assessment Agreement to allow the City to require the payment of annual Assessment Installments on their property in an amount sufficient to re-pay C-PACER financing, together with interest, penalties, fees and charges related thereto.

3. *Assessment Agreement.* An agreement among the City, Program Administrator, and a Property Owner whereby the City agrees to place an Assessment to re-pay C-PACER financing and C-PACER Lien on the property to secure the obligation to repay the C-PACER Financing and that the Property Owner will make payments to the Capital Provider.

4. *Assessment Installment.* Annual payments as provided for in the Assessment Agreement to be made by or on behalf of the Property Owner to repay the C-PACER Financing.

5. *Capital Provider.* Any private entity, its designee, successor, and assignees that makes or funds C-PACER Financing under this article.

6. *Commercial property.* Privately owned commercial, industrial, or agricultural real property; privately owned residential real property consisting of five (5) or more dwelling units including property owned by nonprofit, charitable, or religious organizations; or property owned by this state or a local government entity, but leased to a privately owned entity, including: industrial development corporations; housing authorities; or health, educational and housing facility boards.

7. *C-PACER Financing.* An investment from a Capital Provider to a Property Owner to finance or refinance a Qualified Project as described under this article. The proposed C-PACER Financing for a Qualified Improvement may authorize the Property Owner to:

    a. purchase directly the related equipment and materials for the installation or modification of a Qualified Improvement; and

    b. contract directly, including through lease or other service contract, for the installation or modification of a Qualified Improvement.

8. *C-PACER Lien.* The lien recorded at the Hamilton County Register of Deeds on the Eligible Property to secure the C-PACER Financing, which remains on the property until the C-PACER Financing is paid in full.

9. *Eligible Property.* Privately owned commercial, industrial, or agricultural real property or multifamily residential real property with five (5) or more dwelling units. Eligible Property may be owned by any type of business, corporation, individual, or nonprofit organization permitted by state law. Eligible Property may include ground leases.

10. *Financing.* Financing and refinancing for qualified projects under this chapter.

11. *Financing Agreement.* The contract under which a Property Owner agrees to repay a Capital Provider through Assessment Installments for the C-PACER Financing including, but not limited to, details of any finance charges, fees, debt servicing, accrual of interest and penalties, and any terms relating to treatment of prepayment and partial payment of the C-PACER Financing.

12. *Local Government.* The governing body, any department, or any office within the government of the City of Chattanooga.

13. *Program.* The C-PACER program established under this article.

14. *Program Administrator.* The entity designated by a local government to administer a C-PACER program, including: (1) department or individual within a local government; (2) a quasi-governmental organization such as an industrial development corporation, housing authority, or health, educational, and housing facility board; (3) a Capital Provider; or (4) another private and independent third party designated by the local government.

15. *Program Guidebook.* A comprehensive document that illustrates the applicable program and establishes appropriate guidelines, specifications, underwriting and approval criteria, and standard application forms consistent with the administration of a program and not detailed in this chapter, including: a form assessment contract between the local government and the property owner specifying the terms of assessment under the program, financing provided by a third party, and remedies for default or foreclosure; a form local government Notice of Assessment and C-PACER lien; or a form Notice of Assignment of Assessment and C-PACER lien between a local government and a Capital Provider.

16. *Program Application.* The application submitted to demonstrate that a proposed project qualifies for C-PACER Financing and for a C-PACER assessment and lien.

17. *Property Owner.* The owner or owners on title, duly recorded, of a commercial property or in the case of a ground lease, owner of an estate for years.

18. *Qualified Improvement.* A permanent improvement affixed to real property and intended to:

    a. Decrease energy consumption or demand through the use of efficiency technologies, products, or activities that reduce or support the reduction of energy consumption, allow for the reduction in demand; or

    b. Support the production of clean, renewable energy, including through the use of a product, device, or interacting group of products or devices on the customer's side of the meter that generates electricity, provides thermal energy, or regulates temperature; or

    c. Decrease water consumption or demand and address safe drinking water through the use of efficiency technologies, products, or activities that reduce or support the reduction of water consumption;

    d. Allow for the reduction or elimination of lead from water that may be used for drinking or cooking; or

    e. Increase water or waste water resilience, including through storm retrofits, flood mitigation, and stormwater management, or wind resistance, energy storage, microgrids, and other resilience projects approved by the local government; or

    f. Conform to seismic requirements of the most recent version of the International Building Code adopted by the Local Government.

19. *Qualified Project.* A project approved by the Program Administrator, involving the installation or modification of a Qualified Improvement, including new construction or the adaptive reuse of Eligible Property with a Qualified Improvement, including Qualified Improvements installed no more than two (2) years prior to the date of application. Together, Qualified Improvements,

inclusive of all related and eligible costs pursuant to the C-PACER Act that are to be financed as described in a Program Application and approved by the Program Administrator, are a Qualified Project.

(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-52. Territory.

The Program shall be available to all Eligible Property within the boundaries of the City of Chattanooga, in accordance with the C-PACER Act.

(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-53. Program administration.

Pursuant to the C-PACER Act and in accordance with Tenn. Code Ann. § 68-205- 105(a)(1)(i), the City designates the Director of Sustainability as the Program Administrator. The Program Administrator shall review and approve the Program Applications submitted in accordance with the Program Guidebook, provide notice of approval or disapproval of Project Applications to relevant stakeholders, and collect any fees.

(Ord. No. 13972, § 1, 4-18-23; Ord. No. 14065, § 1, 12-5-23)

Sec. 10-54. C-PACER Financing.

1. C-PACER Financing, under the C-PACER Act, is to be provided by Capital Providers through a Financing Agreement entered into with the Property Owner of an Eligible Property to fund a Qualified Project.

2. The C-PACER Financing may include:

a. The cost of materials and labor necessary for installation or modification of a Qualified Improvement;

b. Permit fees;

c. Inspection fees;

d. Lender fees, such as financing or origination fees;

e. Program application and administrative fees;

f. Project development and engineering fees;

g. Third-party review fees, including verification review fees;

h. Capitalized interest, in an amount determined by the owner of the commercial property and the third party providing financing under this section;

i. Interest reserves; or

j. Other fees or costs incurred by the property owner incident to the installation,

modification, or improvement on a specific or pro rata basis, as determined by the local government.

3. Assessment amount:

a. The amount of the assessment, plus existing indebtedness on the property, must not exceed ninety percent (90%) of the fair market value of the property as determined by a qualified appraiser, with the exception that properties qualified under the federal low income housing tax credit program set forth in 26 U.S.C. § 42 are exempt from this requirement; and

b. The amount of the assessment must not exceed twenty-five percent (25%) of the fair market value of the property as determined by a qualified appraiser;

4. Prior to entering into the written assessment contract, the property owner shall obtain and furnish to the local government a written statement, executed by each holder of a mortgage or deed of trust on the property securing indebtedness, in the sole and absolute discretion of each holder of a mortgage or deed of trust on the property, that consents to the assessment and indicates that the assessment does not constitute an event of default under the mortgage or deed of trust.

5. The maximum term of an assessment may not exceed the useful life of the Qualified Improvement or weighted average life if more than one (1) Qualified Improvement is included in the Qualified Project.
(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-55. C-PACER Lien.

1. Following approval of an application to the Program by the Program Administrator, the Property Owner shall execute an Assessment Agreement consenting to the Assessment and C-PACER Lien being placed against the Eligible Property.

2. The C-PACER Lien amount, plus any interest, penalties, fees and charges accrued or accruing on the C-PACER Lien:

a. Takes precedence over all other liens or encumbrances except a lien for taxes imposed by the state, a local government, or a junior taxing district on Eligible Property, which liens for taxes shall have priority over such C-PACER Lien, provided existing mortgage holders, if any, have provided written consent described in Section 10-54 (4); and

b. Is a first and prior lien, equal to the lien for taxes imposed by the state, a local government, or a junior taxing district against the Eligible Property on which the C-PACER Lien is imposed, from the date on which the notice of the C-PACER Lien is recorded until the C-PACER Lien, interest, penalties, fees and charges accrued or accruing are paid in full.

3. The C-PACER Lien runs with the land, and that portion of the C-PACER Lien that has not yet become due is not accelerated or eliminated by enforcement of the C-PACER Lien by tax sale or any lien for taxes imposed by the state, a local government, or junior taxing district against the real property on which the C-PACER Lien is imposed.

4. Delinquent Assessment Installments incur interest and penalties as specified in the Financing Agreement.

5. After the C-PACER Lien is recorded as provided in this Article, the Assessment, C-PACER Financing and the C-PACER Lien may not be contested on the basis that the improvement is not a Qualified Improvement or that the project is not a Qualified Project.
(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-56. Application and review.

1. A Property Owner and Capital Provider shall complete a Program Application and submit it to the Program Administrator for review.

2. The Program Application shall require:

a. An attestation by the Property Owner that the project consists of one or more "Qualified Improvement" as defined by 10-51 (18).

b. For an existing building seeking improvements:

i. Where energy or water usage improvements are proposed a certification by a licensed engineering firm, engineer, or other qualified professional listed in the Program Guidebook stating that the proposed Qualified Improvements will either result in more efficient use or conservation of energy or water, the reduction of greenhouse gas emissions, or the addition of renewable sources of energy or water;

ii. Where safe drinking water measures are proposed, a certification by a licensed professional engineer stating that the Qualified Improvements will result in the reduction of lead in potable water; or

iii. Where resilience improvements are proposed, a certification by a licensed professional engineer stating that the Qualified Improvements will result in improved resilience.

c. For new construction, a certification by a licensed professional engineer stating that the proposed Qualified Improvements, individually, or acting as a whole, will enable the project to exceed the current building code requirements for:

i. energy efficiency,

ii. water efficiency,

iii. renewable energy,

iv. renewable water,

v. or resilience requirements of the current building code of the City.

3. The Program Administrator shall review the Program Application according to the Application Checklist solely to determine whether (i) it is complete, (ii) proposes a "Qualified Improvement," (iii) contains no errors on its face, and (iv) that all information is provided in the substance and form required by the Application Checklist. If so, the Program Administrator shall sign the Application Checklist indicating that the Program Application is deemed approved and the project is a Qualified Project. If a Program Application is incomplete and/or does not conform to the requirements of the Application Checklist, the Program Administrator shall inform the applicant as soon as practicable that the Program Application is denied, the reasons for the denial, and any corrections that could make the Program Application acceptable. If feasible, the applicant shall have an opportunity to correct the Program Application.

4. The application review process is confined to confirming that an application is complete, that all attachments conform to the Program Guidelines, and that the Capital Provider and Property Owner are found to sufficiently meet the Program's criteria. The Program Administrator's approval shall not constitute endorsement of any representations that may be made with regard to the operation and any savings associated with the Qualified Improvements.

5. An application may be conditionally approved if the application is complete but the attachment regarding lender consent of the C-PACER Lien is not yet available per requirements outlined in the Program Guidelines.

6. The Program Administrator may coordinate with Capital Providers and appropriate City departments, including the Assessor of Property, and other stakeholders to ensure that the C-PACER voluntary special assessment is correctly billed, collected, and disbursed per the financing agreement.

7. Upon approval of a Program Application, a Property Owner or Capital Provider shall provide the completed (1) Assessment Agreement, (2) the Notice of Assessment Interest and C-PACER Lien to the Mayor for execution at least five (5) days prior to close of the C-PACER transaction. Upon execution, the

City will provide and execute a Notice of Assignment of Assessment and C-PACER Lien to the Capital Provider. These executed documents will be held in escrow and will be provided to the Capital Provider at closing for recording.

8. The Capital Provider shall record (1) the Assessment Agreement, (2) the Notice of Assessment Interest and C-PACER Lien, and (3) Notice of Assignment of Assessment and C-PACER lien to the Capital Provider with the Hamilton County Register of Deeds.

9. For a Property Owner and Capital Provider whose Program Application is denied by the Program Administrator, either party, or both, may request an adjudicative proceeding before the City's adjudicative body, consistent with the City's rules and subject to the applicable provisions of Tennessee's Administrative Procedures Act, Tenn. Code Ann. §§ 4-5-101 et seq.
(Ord. No. 13972, § 1, 4-18-23; Ord. No. 14065, § 2, 12-5-23)

Sec. 10-57. Program guidebook.

1. The C-PACER Program shall be administered in accordance with the requirements contained in the Program Guidebook established by the Program Administrator from time to time.

2. The Program Guidebook and forms may be amended by the Program Administrator without approval by the Chattanooga Mayor and City Council, provided that such amendments comply with the C-PACER Act and other applicable law.
(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-58. Collection and enforcement.

1. The City hereby designates the Capital Provider to collect Assessment Installments and enforce C-PACER Liens due to delinquent Assessment Installments.

2. Collection of Assessment Installments and enforcement of C-PACER Liens due to delinquent Assessment Installments shall be enforced in the same manner that a deed of trust is enforced by the Capital Provider.

3. City of Chattanooga funds are prohibited from being utilized to fund or repay loans related to C-PACER financing. C-PACER loans would be secured with government lien against the property and would run with the land until the loan is paid in full. The lien would have the same priority status as a lien for property taxes and cannot be accelerated or eliminated by foreclosure of a property tax lien.
(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-59. Fees.

The Program Administrator is authorized to collect an application fee. The amount of the fee shall be determined by the Program Administrator. Pursuant to the Program Guidebook, the Program Administrator shall establish an approved application servicing fee that makes the costs of the C-PACER program cost-neutral to the City and Program Administrator provided, however that the fees application plus the servicing fee for any Assessment may not exceed 1% of the applicable C-PACER Financing and shall not in any case exceed $50,000. The approved application servicing fee shall be collected at the close of a C-PACER financing transaction.
(Ord. No. 13972, § 1, 4-18-23; Ord. No. 14065, § 3, 12-5-23)

Sec. 10-60. Enactment.

The provisions of this article are hereby declared to be severable and if any section, phrase, or provision shall for any reason be declared by a court of competent jurisdiction to be invalid or unenforceable, such

declaration shall not affect the validity or enforceability of the remainder of the sections, phrases and provisions hereof. All ordinances, orders, resolutions, and parts thereof in conflict herewith are to the extent of such conflict hereby repealed upon the effectiveness of this article. No provision of the Chattanooga City Code or violation of any provision of the Code shall be deemed to impair the validity of this article or the instruments authorized by this article or to impair the security for or payment of the instruments authorized by this article; provided further, however, that the foregoing shall not be deemed to affect the availability of any other remedy or penalty for any violation of any provision of the Code. In the event and to the extent of a conflict between this article and the C-PACER Act, the C-PACER Act shall govern.
(Ord. No. 13972, § 1, 4-18-23)

Sec. 10-61. No liability.

Except for a right of action to enforce the terms of this article, this article does not confer any right of action nor property interest upon any party to a C-PACER transaction against the City, Industrial Development Board of the City of Chattanooga, Tennessee or other related boards, or the Program Administrator, and, so long as the City, Industrial Development Board of the City of Chattanooga, Tennessee or other related boards, or the Program Administrator complies in good faith with the terms of the C-PACER Act and this article, the City, Industrial Development Board of the City of Chattanooga, Tennessee or other related boards, or the Program Administrator shall incur no liability for enacting this Program, nor shall the City, Industrial Development Board of the City of Chattanooga, Tennessee, or other related boards, its governing body, executives, or employees, or the Program Administrator be personally liable as a result of exercising any rights or responsibilities granted under this article.
(Ord. No. 13972, § 1, 4-18-23)

Chapter 11

BUSINESSES, TRADES AND OCCUPATIONS*

Article I. In General

Sec. 11-1. Sales tax limits.
Secs. 11-2—11-15. Reserved.

Article II. Auctions and Auctioneers

Division 1. Generally

Sec. 11-16. Sales excepted from chapter.
Sec. 11-17. Fraudulent bidding.

***Editor's note—**Art. III, div. 2, §§ 11-76—11-100, and art. III, div. 3, §§ 11-101—11-130, were repealed by Ord. No. 9589, § 1, adopted July 30, 1991.

Editor's note—Sections 11-266—11-280 (former Article IX, "Soil Erosion Control") were repealed by Ord. No. 9942, § 2, adopted 8-31-93, and certain provisions thereof incorporated in Chapter 31, Article VIII, "Storm Water Management."

Cross references—City treasurer to issue all licenses and permits unless otherwise provided, § 2-108; permit required to erect and maintain billboards and signboards, § 3-6 et seq.; installation, permit for fuel and refuse burning equipment, § 4-8; beer permits generally, § 5-71 et seq.; liquor licenses, § 5-121 et seq.; permits required for brown bagging establishments, § 5-181 et seq.; permit required for drive-in theaters, § 6-21; permit required for billiards or pool tables, § 6-42; license required for coin-operated amusement devices, § 6-62; license for family amusement centers, § 6-82 et seq.; pound fees, § 7-21; license for dogs and cats, § 7-31; lease with city required for fixed base operators at municipal airport, § 8-65; fixed base operators' activity fees levied, § 8-68; permits required for installation of electrical wiring, § 14-12; examination, licensing and certification of electricians, § 14-75 et seq.; permit required for operation of high frequency radio receiver, § 16-72; permit required for private security police agencies, § 16-92 et seq.; fees for firearm permits, § 16-100; private garbage collection permit, § 18-66; location permits for collection of garbage from particular location or premises, § 18-68; fees for use of refuse transfer stations, § 18-123; examination and certification of gasfitters and installers, § 19-86 et seq.; licenses required for gasfitters and installers, § 19-121 et seq.; rat control in business buildings, § 20-86 et seq.; housing referral agency, § 21-76 et seq.; fair housing regulations, § 21-81 et seq. metropolitan transit authority, Ch. 23; vehicle licenses, § 24-391 et seq.; soliciting in business buildings restricted, § 25-21; permit required for public meetings and gatherings in parks, § 26-13 et seq.; permit for interment in citizens' cemetery required, § 26-38; permit required for meetings, etc., in Miller Park, § 26-59 et seq.; certification of competency of plumbers, § 27-56 et seq.; tuition for nonresident pupils in city schools, § 30-3; permit required to make sewer connections, § 31-6; sewer service charges, § 31-31 et seq.; industrial wastes charges and fees, § 31-41 et seq.; permit and inspection fees required for septic tank installations, § 31-246; license required to make excavations, build or repair sidewalks or occupy streets or sidewalks, § 32-13 et seq.; permit required to obstruct gutter, § 32-41; excavation permit required for excavations and streets generally, § 32-62 et seq.; permit required for encroachments on streets or sidewalks; § 32-86; permit required for excavations on sidewalks, etc., § 32-88; sidewalk gratings and openings for which permits may be issued, § 32-127; permits required for driveways and curb cuts, § 32-146; permit required to erect poles, § 32-216 et seq.; permit required for public swimming pools, § 33-22 et seq.; permits for trailer camps, § 34-51 et seq.; permit required for wrecking and towing services, § 35-150; water service by companies, § 36-16 et seq.

Sec. 11-18. Sales on streets, public landings.
Secs. 11-19—11-30. Reserved.

Division 2. Jewelry Auctions

Sec. 11-31. Definitions.
Sec. 11-32. License—Required; fee.
Sec. 11-33. Same—Application; referral, investigation.
Sec. 11-34. Same—Bond prerequisite to issuance.
Sec. 11-35. Same—Display.
Sec. 11-36. Same—Nontransferable; revocation and suspension.
Sec. 11-37. Permits—Required.
Sec. 11-38. Same—Application.
Sec. 11-39. Same—Bond to accompany application.
Sec. 11-40. Same—Issuance, duration.
Sec. 11-41. Written description required on merchandise.
Sec. 11-42. Acts prohibited.
Secs. 11-43—11-55. Reserved.

Article III. Barbershops

Division 1. Generally

Sec. 11-56. Definition.
Sec. 11-57. Reserved.
Sec. 11-58. Reserved.
Sec. 11-59. Compliance with state laws, regulations.
Sec. 11-60. Interior view to be unobstructed.
Sec. 11-61. Use of prohibited rooms.
Sec. 11-62. Repealed.
Secs. 11-63—11-130. Reserved.

Article IV. Coal and Coke Dealers

Sec. 11-131. Reserved.
Sec. 11-132. Reserved.
Sec. 11-133. Deliveries over streets to be weighed.
Sec. 11-134. Local dealers to have scales.
Sec. 11-135. How dealers outside city may have scales certified.
Sec. 11-136. Weighing required before delivery; ticket to accompany load.
Sec. 11-137. Delivery ticket to be produced on demand; verification of weight of load.
Sec. 11-138. Inspection fee on vehicles; certificate to be issued and carried.
Sec. 11-139. Weighing fees.
Sec. 11-140. No discrimination to be shown by retail dealers.
Secs. 11-141—11-155. Reserved.

Article V. Filling Stations

Sec. 11-156. Compliance with article.
Sec. 11-157. Application for permit for construction or alteration—Required.

Sec. 11-158. Same—Plans required.

Sec. 11-159. Same—Denial; grounds.
Sec. 11-160. Prohibited locations.
Sec. 11-161. Pipelines prohibited under streets or sidewalks.
Sec. 11-162. Building to conform to technical ordinances.
Sec. 11-163. Number of driveways allowed; safety aisles.
Sec. 11-164. Maximum width of driveways.
Sec. 11-165. Concrete to be used for driveways.
Sec. 11-166. Curbing.
Sec. 11-167. Location of equipment in relation to street line.
Sec. 11-168. Alteration of sidewalk grade.
Sec. 11-169. When sidewalks to be constructed.
Sec. 11-170. Alterations in street drainage system.
Secs. 11-171—11-185. Reserved.

Article VI. Hotels and Rooming Houses

Sec. 11-186. Definition.
Sec. 11-187. Permit—Required.
Sec. 11-188. Same—Application; preliminary investigation, recommendation.
Sec. 11-189. Same—Fee.
Sec. 11-190. Same—Display.
Sec. 11-191. Same—Not transferable.
Sec. 11-192. Same—Revocation.
Sec. 11-193. Same—Duration.
Sec. 11-194. Using hotel for purpose of prostitution.
Sec. 11-195. Register required; availability for inspection.
Sec. 11-196. Rooms to be numbered.
Sec. 11-197. Right of city law enforcement officers to enter.
Sec. 11-198. Liability of manager for violations.
Sec. 11-199. Privilege tax levied; use.
Secs. 11-200—11-215. Reserved.

Article VII. Junk and Secondhand Dealers

Sec. 11-216. Definitions.
Sec. 11-217. Exception for secondhand furniture.
Sec. 11-218. Records of purchases required.
Sec. 11-219. Daily report to police.
Sec. 11-220. Police may inspect records, articles purchased.
Sec. 11-221. Identification of person from whom purchases made.
Sec. 11-222. Business hours of secondhand dealers.
Sec. 11-223. Notice to police of intended purchase from minor, drinker, thief or ex-convict.
Sec. 11-224. Permit for sale or exchange of metallic fixtures or junk—Required.
Sec. 11-225. Same—Exhibition at time of delivery; records of dealer.
Sec. 11-226. Same—Issuance.
Sec. 11-227. Certificate of occupancy required for junkyard or shop.
Sec. 11-228. Junkyards, shops to be fenced in.
Secs. 11-229—11-240. Reserved.

Article VIII. Pawnbrokers

Sec. 11-241. Definitions.

Sec. 11-242. License required.
Sec. 11-243. Signs.
Sec. 11-244. Prohibited acts.
Sec. 11-245. Suppliers' names.
Sec. 11-246. Records and record inspection by police.
Sec. 11-247. Newly acquired goods to be kept separate; pawn ticket or other identification to be kept with pawned item until sold or disposed of.
Sec. 11-248. How long articles must be kept before disposal.
Sec. 11-249. Return of stolen property.
Sec. 11-250. Business hours.
Secs. 11-251—11-280. Reserved.

Article IX. Transient Merchants

Sec. 11-281. Definition.
Sec. 11-282. Exceptions.
Sec. 11-283. License required.
Sec. 11-284. License application required.
Sec. 11-285. False statements on applications.
Sec. 11-286. License fee, issuance.
Sec. 11-287. Supplementary license.
Sec. 11-288. License prerequisite to advertisement of sale.
Sec. 11-289. License revocation.
Sec. 11-290. When bond required to secure payment of license.
Sec. 11-291. Vehicles.
Secs. 11-292—11-305. Reserved.

Article X. Massage Technicians and Parlors

Sec. 11-306. Definitions.
Sec. 11-307. Massage parlor permit—Required.
Sec. 11-308. Same—Application; renewals; fees.
Sec. 11-309. Same—Investigation of applicant; grounds for denial of application.
Sec. 11-310. Same—Investigation of premises and issuance.
Sec. 11-311. Display.
Sec. 11-312. Same—Revocation; grounds; notice to permittee.
Sec. 11-313. Massage parlor technician permit—Required.
Sec. 11-314. Same—Application; renewal; fees.
Sec. 11-315. Same—Investigation of applicant; grounds for denial of application.
Sec. 11-316. Same—Display.
Sec. 11-317. Same—Revocation; grounds; notice to permittee.
Sec. 11-318. Suspension of permits; reinstatement.
Sec. 11-319. Appeals from permit denials, suspensions or revocations.
Sec. 11-320. Public health card required for a massage technician.
Sec. 11-321. Examination of massage technicians; issuance of public health card.
Sec. 11-322. Right of entry.
Sec. 11-323. Minimum standards for parlors.
Sec. 11-324. Individual health requirements for technicians.
Sec. 11-325. Unlawful acts.
Sec. 11-326. Penalty.

Sec. 11-327—11-340. Reserved.

Article XI. Professional Fund Solicitors

Sec. 11-341. Short title; applicability of article; compliance.
Sec. 11-342. Definitions.
Sec. 11-343. Permit application fee; permit approval or denial; notice of denial; appeals.
Sec. 11-344. Revocation of permit; hearing.
Sec. 11-345. Authority of mayor or his designee.
Sec. 11-346. Misrepresentation by professional fund solicitors.
Sec. 11-347. Proper identification by professional fund solicitors.
Sec. 11-348. Notices to mayor or his designee.
Sec. 11-349. Final reports to mayor or his designee.
Sec. 11-350. Professional solicitation by means of coin or currency boxes or receptacles prohibited; exceptions.
Sec. 11-351. Penalties.
Secs. 11-352—11-370. Reserved.

Article XII. Sidewalk Vendors

Sec. 11-371. Definitions.
Sec. 11-372. Permit—Required.
Sec. 11-373. Same—Application.
Sec. 11-374. Same—Fee, issuance.
Sec. 11-375. Same—Validity.
Sec. 11-376. Same—Display of and signs.
Sec. 11-377. Prohibited conduct.
Sec. 11-378. Size requirement for push-carts.
Sec. 11-379. Compliance with state and local regulations.
Sec. 11-380. Exceptions.
Secs. 11-381. Vending on public park property.
Secs. 11-382—11-395. Reserved.

Article XIII. Special Sales

Sec. 11-396. Statutes adopted.
Sec. 11-397. Definitions.
Sec. 11-398. Exemptions.
Sec. 11-399. Treasurer may make regulations.
Sec. 11-400. Violation declared nuisance; enforcement.
Sec. 11-401. License—Required.
Sec. 11-402. General duties of treasurer.
Sec. 11-403. Investigation of application; issuance; duration.
Sec. 11-404. Fee to accompany application.
Sec. 11-405. Application of regulations.
Sec. 11-406. Duties of licensee.
Sec. 11-407. Contents of advertising.
Sec. 11-408. Purchase of goods for sale hereunder.
Sec. 11-409. Manner of listing goods on inventory.
Sec. 11-410. Suspension and/or revocation.

Sec. 11-411. Penalties.
Secs. 11-412—11-420. Reserved.

Article XIV. Adult-Oriented Establishments

Sec. 11-421. Findings and purpose.
Sec. 11-422. Definitions.
Sec. 11-423. License required.
Sec. 11-424. Application for license.
Sec. 11-425. Standards for issuance of license.
Sec. 11-426. Permit required.
Sec. 11-427. Application for permit.
Sec. 11-428. Standards for issuance of permit.
Sec. 11-429. Fees.
Sec. 11-430. Display of license or permit.
Sec. 11-431. Renewal of license or permit.
Sec. 11-432. Revocation of license or permit.
Sec. 11-433. Hours of operation.
Sec. 11-434. Responsibilities of the operator.
Sec. 11-435. Prohibitions and unlawful sexual acts.
Sec. 11-436. Penalties and prosecution.
Sec. 11-437. Invalidity of part.
Sec. 11-438. Denial of applications or renewals.
Secs. 11-439—11-449. Reserved.

Article XV. Teen Social Clubs

Sec. 11-450. Definitions.
Sec. 11-451. Location restrictions.
Sec. 11-452. License Application.
Sec. 11-453. Revocation of License or Permit.
Sec. 11-454. Hours of operation; Inspection by Police Department.
Sec. 11-455. Responsibilities of operators; exemptions; identification of minors.

Article XVI. Small Business Incentive Grant Program

Sec. 11-456. Definitions.

Article XVII. Small Business Construction Mitigation Grants

Sec. 11-457. Definitions.
Sec. 11-458. Small Business Construction Mitigation Grants.
Secs. 11-459—11-476. Reserved.

Article XVIII. Innovation District Grants

Sec. 11-477. Definitions.
Sec. 11-478. Innovation District business economic development incentive grants.
Secs. 11-479—11-489. Reserved.

Article XIX. Waste Tire Haulers

Sec. 11-490. Purpose and intent.
Sec. 11-491. Definitions.
Sec. 11-492. Tire business permits.
Sec. 11-493. Tire hauler permit.
Sec. 11-494. Denial of permit or renewal; suspension or revocation of permit.
Sec. 11-495. Destruction of tires.
Sec. 11-496. Storage of tires.
Sec. 11-497. Place for disposal of tires.
Sec. 11-498. Disposal records/transmittal manifest.
Sec. 11-499. Administration/enforcement.
Sec. 11-500. Violations and penalties.
Sec. 11-501. Injunctive relief.
Secs. 11-502—11-509. Reserved.

Article XX. Reserved

Article XXI. Downtown Central Business Improvement District (Downtown CBID)

Sec. 11-525. District created; boundary.
Sec. 11-526. Purposes and mission.
Sec. 11-527. Liberal construction.
Sec. 11-528. Definitions.
Sec. 11-529. District management corporation.
Sec. 11-530. District management corporation powers.
Sec. 11-531. Estimated costs and rate of levy; special assessment procedure.
Sec. 11-532. Annual budget.
Sec. 11-533. PILOT.
Sec. 11-534. Term.

ARTICLE I. IN GENERAL

Sec. 11-1. Sales tax limits.

The maximum tax limit on the sale or use of any single article of personal property under the local option sales or use tax is hereby removed and from and after July 1, 1985, the sales or use tax levied pursuant to T.C.A. section 67-6-702 shall be applied to the maximum base set by *Tennessee Code Annotated, Section 67-6-702(a)* on the sale or use of any single article of personal property.
(Code 1986, § 11-1; Ord. No. 10465, § 14, 9-3-96)

Secs. 11-2—11-15. Reserved.

ARTICLE II. AUCTIONS AND AUCTIONEERS*

DIVISION 1. GENERALLY

Sec. 11-16. Sales excepted from chapter.

The provisions of this chapter shall not extend or apply to judicial sales, sales under executions or to executors' or administrators' sales.
(Code 1986, § 11-16)

Sec. 11-17. Fraudulent bidding.

It shall be unlawful for any person to act, or employ another to act as a by-bidder or what is commonly known as a "capper" or "booster" at any auction sale, or to make or accept any false or misleading bid, or to pretend to buy or sell any articles sold or offered for sale at any auction.
(Code 1986, § 11-17)

Sec. 11-18. Sales on streets, public landings.

It shall be unlawful for any person to sell at auction any livestock, vehicles, furniture, goods, wares or merchandise upon the streets of the city or upon any public landing.
(Code 1986, § 11-18)

Cross reference—Streets and sidewalks, Ch. 32.

Secs. 11-19—11-30. Reserved.

DIVISION 2. JEWELRY AUCTIONS

Sec. 11-31. Definitions.

For the purposes of this division, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Auction sale. Any sale where jewelry or other similar articles, as described in this article, are sold or offered at public outcry to the highest or best bidder, and shall include the selling of such property by the method known as "down hill selling."

***Charter reference—**Authority to license and to regulate auctioneers generally, § 2.1(15).

State law reference—Auctions generally, T.C.A. § 47-2-328.

Down hill selling. The first offering of an article at a higher price and then offering the same at successive lower prices until a bidder is secured, including the offering of an article at a fixed price and crying it for sale until that price is offered.
(Code 1986, § 11-31)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-32. License—Required; fee.

No person shall conduct an auction sale of diamonds and other precious or semiprecious stones or imitations thereof, watches, clocks, jewelry, gold, silver or plated ware, china or glassware at public auction in the city without having first secured a license therefor and paid to the city a license fee in the sum of two hundred and fifty dollars ($250.00).
(Code 1986, § 11-32)

Sec. 11-33. Same—Application; referral, investigation.

(a) No person shall conduct such auction sale, as described in section 11-32 in the city without having first made application to the mayor for permission to carry on such auction.

(b) When so filed, the application shall be referred to the same committee which passes on the application of beer licenses, who shall cause the applicant to come before them and who shall examine the applicant concerning his character, the location of the proposed auction and any other facts pertinent to whether or not such license should be granted in view of the fact that auction sales are susceptible of being carried on with fraud.

(c) After the committee has made their examination, they shall report to the mayor their opinion as to whether or not the license should be issued and the license may be granted or refused by the mayor, irrespective of the decision of the committee.

(d) Any person desiring to act as auctioneer of such items in the city shall file with the above committee his application in writing, giving the following information therein:

(1) His name, age, address, occupation and place of business.

(2) His experience in the sale of goods by auction.

(3) All places where he has conducted auctions, for whom conducted and the nature of merchandise sold.

(4) What license, as auctioneer, he has obtained from any other state or municipality, whether any license so obtained has been revoked or challenged, or whether any application for license has been refused.

(5) Whether he has ever been convicted or accused of any crime involving moral turpitude.

(6) Where and for whom he expects to auction in the city.
(Code 1986, § 11-33; Ord. No. 9654, § 81, 1-6-92)

Sec. 11-34. Same—Bond prerequisite to issuance.

Each application for a license under this division shall be accompanied by a bond in the penal sum of five thousand dollars ($5,000.00), made by a surety company licensed to do business in the state, in substantially the following form:

STATE OF TENNESSEE:
COUNTY OF HAMILTON:

KNOW ALL MEN BY THESE PRESENTS, that we, _____, as principal, and _____ as surety, are held and firmly bound unto the City of Chattanooga,

for its own use, in the penal sum of Five Thousand Dollars for the payment whereof well and truly to be made, we bind ourselves respectively and our heirs and administrators. The condition of this bond is such, that whereas the Code of Ordinances of the City of Chattanooga provides for the creating of an Auction Licensing Committee and provides for the application of auctioneers and regulates the business of auctioning in the City of Chattanooga, provides for the regulation of the business of auctioneering and requires each auctioneer to give bond in the penalty of Five Thousand Dollars, and whereas, the above bonded _____ has made application for a license as an auctioneer in the City of Chattanooga under such provisions of the Code of Ordinances.

NOW THEREFORE, If the said _____ shall well and truly perform and fulfill all his duties as an auctioneer and shall well and truly comply with all of the terms and conditions of the Code of Ordinances, then this obligation shall be void, otherwise to remain in full force and effect for the period of one year from date of this bond.

It is expressly understood that this bond is payable to and recoverable by the City of Chattanooga for its own use, and for the use of all persons suffering loss or damage by reason of violation of the Code of Ordinances by the above named principal, and to compel the principal herein to perform the obligation herein undertaken.

Witness the hands of the parties, this day of _____ 19___.

_____

Principal

_____

Surety

Approved

_____

City Attorney

(Code 1986, § 11-34)

Sec. 11-35. Same—Display.

Each person licensed under this division shall display such license at the place where any auction sale is conducted, continuously during such sale.
(Code 1986, § 11-35)

Sec. 11-36. Same—Nontransferable; revocation and suspension.

No license issued by the mayor pursuant to this division shall be assignable or transferable. Any license so issued may be suspended, recalled or revoked by the mayor for any violation of the terms of this division or any ordinances governing the conduct of auction sales; provided that, charges shall be preferred in writing by the mayor and served upon the licensee or upon the person in charge of the auction who shall be given the right to be heard as to why such license should not be revoked or suspended.
(Code 1986, § 11-36; Ord. No. 9654, § 13, 1-6-92)

Sec. 11-37. Permits—Required.

It shall be unlawful for any person, directly or indirectly, through agents or otherwise, to sell or offer for sale at public auction in the city any items regulated by this division, except sales by an administrator or executor of the estate of a deceased person and sales made by virtue of a bona fide mortgage or court order, without first having obtained a permit for conducting the same through a regularly licensed auctioneer.
(Code 1986, § 11-37)

Sec. 11-38. Same—Application.

Any person desiring to conduct an auction sale of any items regulated by this division shall first file written application for a permit therefor, with the auction licensing committee created hereby, stating:

(1) The name, address and occupation or business of the person desiring to conduct such auction.

(2) The name, address and occupation or business of the person for whom the auction is to be conducted, if other than the applicant.

(3) The name and address of the owner of the merchandise to be offered at such auction, with a true, complete, itemized and sworn inventory of such property, showing the cost price thereof and the source of the title thereto.

(4) The place and hour of such auction, with an estimate of the duration thereof.

(5) A statement showing dates, places and nature of merchandise sold at all other auction sales by the applicant or the owner of the property to be auctioned, within two (2) years next preceding the date of the application.

(6) Whether or not additional merchandise, other than the inventory filed, or what is called "fill-in" stock, will be offered at such auction and, if so, the general nature and previous ownership of such additional or fill-in stock, with a sworn itemized inventory thereof.

(7) Whether or not the applicant was ever convicted of any crime involving moral turpitude or has a police record. This question refers to and includes the owner, or each of the owners, if applicant is a partnership, and each officer of the applicant if the applicant is a corporation.

(8) A copy of any proposed advertisement to be made to such auction or an agreement by the applicant that the quality, quantity or history of the merchandise will not be misrepresented in any advertisement thereof.

(9) Whether or not any other application for a permit by him or the owner of the goods has been refused and whether any such permit has been revoked or challenged after its issuance.

(10) The name and address of the auctioneer who will call or cry the auction.

(11) The necessity or reasons for the conducting of such auction.

(Code 1986, § 11-38)

Sec. 11-39. Same—Bond to accompany application.

The applicant for an auction permit under this division shall also file with the committee a bond in the same form and penalty as required from the auctioneer under sections 11-33 and 11-34.

(Code 1986, § 11-39)

Sec. 11-40. Same—Issuance, duration.

Upon the filing of a permit application and bond under this division, the committee may require the applicant, the owner and other witnesses to appear in person before it, to answer further with reference to such application. If it then appears from the whole record, including the application, that the auction is for legitimate business purposes and not as a fraud upon the public, and that the auction is to be conducted at a suitable and proper place, considering the traffic on the street, the congestion on the sidewalk, the usual place of business of the applicant and the business surrounding the proposed place of the auction; that the proposed advertisement of the auction fairly represents the merchandise to the public and that the applicant, owner and auctioneer are of good character and have not violated theretofore the provisions of this article or similar ordinances, and the sureties on his bond are solvent, upon production of receipt showing payment

of all taxes for conducting the type of business for which the auction is being conducted, the mayor shall issue a permit for such period as shall be shown necessary to dispose of the property described, but in no event for a longer period than thirty (30) days from the date of issuance.
(Code 1986, § 11-40)

Sec. 11-41. Written description required on merchandise.

No person shall offer for sale or sell at public auction any diamonds or other precious or semiprecious stones, or imitations thereof, or any watches, clocks, jewelry or glassware, unless there is securely attached to each of such articles a tag or label upon which shall be plainly written or printed in English a true and correct statement of the kind and quality of the metal of which such article is made or composed, and the percentage of purity or karat of such metal. In case such articles are plated or overlaid, such tag or label shall contain a true statement of the kind of material or metal covered. When precious or semiprecious stones are offered for sale or sold, such written statement shall set forth the true name, weight, quality and fineness of such stones, and imitations shall be described as such. When watches or clocks are sold, the true names of the manufacturers shall be stated in writing and no part of the movement or mechanism thereof shall be substituted or contain false and misleading names or trademarks, nor shall secondhand or old movements be offered for sale in new cases without a true statement to that effect. Such tag or label shall be treated as a true and correct description of the article sold and are representation or warranty thereof, and shall remain securely attached thereto until the article is delivered to the purchaser.
(Code 1986, § 11-41)

Sec. 11-42. Acts prohibited.

It shall be unlawful and a misdemeanor:

(1) For any auctioneer to knowingly or negligently misrepresent the quality or value of any article at any auction sale.

(2) For any auctioneer to make any false representation or statement as to the ownership, character or circumstances of the owner or pretended owner of such property for the purpose of inducing the sale thereof.

(3) For any auctioneer or person conducting the sale or owning the property to be sold to falsely advertise, state or represent that such goods, wares and merchandise are in whole or in part a bankrupt or insolvent stock, damaged goods or goods saved from fire or to make any false statement, representation or advertisement as to the purchase, history or character of such goods, wares or merchandise.

(4) For any auctioneer or person conducting an auction to represent or sell as new or unused merchandise any secondhand or used merchandise.

(5) To offer for sale any merchandise other than the original stock inventory when "going out of business" or "closing out" sale has been advertised.

(6) For any auctioneer or person conducting the sale to substitute any article in lieu of that described and offered to and purchased by the bidder.

(7) To conduct or advertise to the public as conducting any auction sale between the hours of 6:00 p.m. and 8:00 a.m. of any day.

(8) For any person licensed under this division to alter, transfer, lend, sell or rent out his license certificate or to use any license not his own.

(9) For any person to falsely represent himself to be licensed under this division or to wrongfully use a license issued hereunder.

(10) To conduct an auction sale covered by this division without a license or after the expiration of the license issued or after the revocation or suspension of such license.

(11) For any auctioneer or person conducting the sale to sell or offer for sale at such auction any article not specifically listed in its inventory filed with the licensing board.

(12) For any auctioneer or person conducting the sale to act or employ another to act as a "by-bidder" or what is commonly known as a "capper" or "booster" at any auction sale, or to make or accept any false or misleading bid or to pretend to buy or sell any property offered for sale in the auction.

(Code 1986, § 11-42)

Secs. 11-43—11-55. Reserved.

ARTICLE III. BARBERSHOPS*

DIVISION 1. GENERALLY

Sec. 11-56. Definition.

Any one (1) or any combination of the following practices, when done for payment, directly or indirectly, or without payment, for the public generally, shall constitute the practice of "barbering."

(1) Shaving or trimming the beard;

(2) Cutting or styling the hair;

(3) Giving facial and scalp massages or treatments with oils, creams, lotions, or other preparations either by hand or mechanical appliances;

(4) Singeing, curling, shampooing, coloring, bleaching, or straightening the hair or applying hair tonics;

(5) Cutting, fitting, measuring, and forming head caps for wigs or hair pieces; or

(6) Hair weaving, excluding medical or surgical procedures.

(Code 1986, § 11-56)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Similar provisions, T.C.A. § 62-3-105.

Sec. 11-57. Reserved.

Editor's note—Ord. No. 13386, § 4, adopted Oct. 23, 2018, repealed § 11-57, which pertained to enforcement of article and derived from Code 1986, § 11-57.

Sec. 11-58. Reserved.

Editor's note—Ord. No. 13386, § 4, adopted Oct. 23, 2018, repealed § 11-58, which pertained to employment of inspector; duties and derived from Code 1986, § 11-58; Ord. No. 9654, § 2, 1-6-92.

***Editor's note—**Art. III, div. 2, §§ 11-76—11-100, and art. III, div. 3, §§ 11-101—11-130, were repealed by Ord. No. 9589, § 1, adopted July 30, 1991.

Charter reference—Authority to regulate barbering, § 2.1(56).

Cross reference—Streets and sidewalks, Ch. 32.

State law references—Barbers regulated, T.C.A. §§ 62-3-101—62-3-133; cosmetologists regulated, T.C.A. §§ 62-4-101—62-4-134.

Sec. 11-59. Compliance with state laws, regulations.

Every person in the city who practices barbering or those services commonly performed by beauty culturists, cosmeticians, cosmetologists or hairdressers shall comply with the provisions of state law applicable to such practice, and shall obey all the sanitary rules promulgated pursuant to state law in connection therewith.
(Code 1986, § 11-59)

Sec. 11-60. Interior view to be unobstructed.

The interior view of every room in which the practice of barbering is carried on shall be clear and unobstructed by any screen, nontransparent glass, shade, blind, door or shutter or by merchandise or other article.
(Code 1986, § 11-60)

Sec. 11-61. Use of prohibited rooms.

No room shall be used for the practice of barbering which is not permitted by law to be so used.
(Code 1986, § 11-61)

Sec. 11-62. Repealed.
(Ord. No. 11548, § 3, 5-4-04)
Editor's note—The repealed section dealt with barbering on Sunday.

Secs. 11-63—11-130. Reserved.

ARTICLE IV. COAL AND COKE DEALERS

Sec. 11-131. Reserved.

Editor's note—Ord. No. 13386, § 4, adopted Oct. 23, 2018, repealed § 11-131, which pertained to scope of article and derived from Code 1986, § 11-131.

Sec. 11-132. Reserved.

Editor's note—Ord. No. 13386, § 4, adopted Oct. 23, 2018, repealed § 11-132, which pertained to privilege tax to be paid and derived from Code 1986, § 11-132.

Sec. 11-133. Deliveries over streets to be weighed.

Except as provided herein, it shall be unlawful for any person in the city who does not have scales certified by the sealer of weights and measures to haul coal or coke over any street in the city for the purpose of delivery in the city unless the same has been weighed on the public scales of the city or on scales designated by the city as soon as the vehicles used for transporting such coal or coke could be driven to such scales after entering the corporate limits. Interstate shipments of coal or coke shall not be required to be so weighed if such coal or coke has been weighed on scales certified by an incorporated town or city of the state from which such coal or coke was transported and the certificate furnished by such town or city showing that it has been weighed on such certified scales accompanies such shipment; provided that, the sealer of weights and measures or his deputies, and police officers, either on complaint of an interested citizen or at their own discretion, may require such interstate or intrastate shipments to be weighed, as provided in section 11-138 of this Code.
(Code 1986, § 11-133)

Sec. 11-134. Local dealers to have scales.

Every solid fuel dealer located in the city shall have at each of his yards a scale of at least five (5) tons' capacity, conforming to this Code and other ordinances of the city and laws of the state relating to weights and measures.
(Code 1986, § 11-134)

Sec. 11-135. How dealers outside city may have scales certified.

Dealers owning coal mines or yards located outside the corporate limits of the city, who have paid the city the privilege tax required by section 11-132 of this Code, and the inspection fee for each truck provided in section 11-138 of this Code, in order to sell coal in the city, may, in lieu of weighing their coal on the public scales of the city or on scales designated by the city, upon written notice to the city and payment to the city of an inspection fee of five dollars ($5.00) for each inspection, plus the expense of transportation incident to such inspection, have their scales inspected by the sealer of weights and measures. The sealer of weights and measures shall inspect such scales at least once in each six (6) months, and more frequently if such course appears necessary. If such scales are found to be correct or are corrected so as properly to show the weight of coal weighed thereon, a certificate of such inspection shall be issued and delivered to the owner by the sealer of weights and measures and a duplicate shall be retained by the city. Such certificate shall be effective for six (6) months, subject to the right of revocation by the city for cause. During the life of such certificate, weights made after the issuance thereof shall be accepted as a compliance with the requirement of section 11-133 of this Code that coal be weighed on the public scales of the city or on scales designated by the city within the city limits.
(Code 1986, § 11-135)

Sec. 11-136. Weighing required before delivery; ticket to accompany load.

Every solid fuel dealer or distributor delivering coal or coke in the city shall correctly weigh such coal or coke, and shall furnish to the person in charge of and accompanying the load so weighed for delivery a bill of lading, or, as custom knows it, a delivery ticket, showing the name and address of the delivering dealer or distributor, the name and address of the consignee, the gross, tare and net weight and the kind and size of fuel to be transported over the streets of the city. The requirement as to the kind and size of fuel shall be satisfied by stating the trade name, if there is a trade name of such fuel generally known to the trade, and if not, the seam from which the coal is mined may be stated. Such ticket shall bear the name or initials of the weigher for the delivering dealer or distributor, or, in case of delivery by a dealer or distributor from a point originating beyond the corporate limits of the city, who does not have scales certified as provided in section 11-135 of this Code, a ticket or weigh bill shall accompany each load as provided herein, and shall

bear the name of the public weigher, or, if weighed on scales designated by the city, shall bear the name of the owner of such scales and the name or initials of the weigher. This section shall not apply to interstate shipments accompanied by certificates as provided in section 11-133 of this Code.
(Code 1986, § 11-136)

Sec. 11-137. Delivery ticket to be produced on demand; verification of weight of load.

When any person has sold, or agreed to deliver coal or coke in the city, if while such coal or coke is being delivered the sealer of weights and measures or his deputy or any police officer, either on complaint by an interested citizen or at his own discretion, demands the production of the bill of lading or delivery ticket accompanying the load, the agent or employee in charge of such vehicle shall immediately produce, exhibit and allow inspection of such bill of lading or delivery ticket. When any such officer of the city demands that the weight of coal or coke being delivered as shown on such bill of lading or delivery ticket be verified, the delivering party or his agent or employee in control of such load shall convey the same immediately to the public scales where gross weight may be obtained thereon, and on delivery of such load the vehicle be returned direct to the public scales and the tare weight of such conveyance ascertained by the net weight man on duty who shall then determine the net weight of the coal or coke so delivered; provided that, the transporting agent in charge of such conveyance shall be permitted to communicate with his principal if he so desires and the principal's presence shall be permitted at the weighing of the load and the conveyance on the public scales when verification of weights are made if the principal so desires; and provided further, that there shall be no charge for use of the public scales for verification of weights as provided in this section.
(Code 1986, § 11-137)

Sec. 11-138. Inspection fee on vehicles; certificate to be issued and carried.

There is hereby levied an annual inspection fee of twelve dollars and fifty cents ($12.50) on each vehicle using the streets of the city for the delivery of coal or coke, which shall be paid in advance by the owner of such vehicle. Such fee shall be paid to the city finance officer, who shall issue a receipt therefor and a certificate giving the name of the owner, the make of the vehicle and the license number thereof. Such certificate shall at all times be carried in the cab of such vehicle or on the person in charge of such vehicle when the same is using the streets of the city.
(Code 1986, § 11-138; Ord. No. 9654, § 8, 1-6-92)

Sec. 11-139. Weighing fees.

A minimum fee of twenty-five cents ($0.25) shall be charged on all vehicles weighed on the public scales of the city, except in cases where such weighing is ordered for verification as provided in section 11-137 of this Code.
(Code 1986, § 11-139)

Sec. 11-140. No discrimination to be shown by retail dealers.

Any person licensed as a retail coal dealer in the city shall supply without discrimination and to the extent of his supply of coal any persons applying for coal and tendering payment therefor in cash.
(Code 1986, § 11-140)

Secs. 11-141—11-155. Reserved.

ARTICLE V. FILLING STATIONS*

Sec. 11-156. Compliance with article.

No gasoline filling station in the city shall be constructed nor existing filling stations reconstructed or structurally altered without complying with the provisions of this article.
(Code 1986, § 11-156)

Sec. 11-157. Application for permit for construction or alteration—Required.

No permit for the construction, reconstruction or alteration of gasoline filling stations shall be granted until an application has been filed in writing with the building inspector. The application shall contain the name of the applicant, the interest of the applicant in the land on which the erection, reconstruction or alteration is contemplated, and the location of the property upon which it is proposed to erect, reconstruct or alter the contemplated gasoline filling station.
(Code 1986, § 11-157)

Sec. 11-158. Same—Plans required.

The application required by section 11-157 of this Code shall be accompanied by a complete set of plans, drawn accurately to a scale of not less than one-quarter (1/4) inch to one (1) foot. On such plans there shall be drawn an accurate outline of the property, showing the location of existing sidewalks and curbs and the relative elevations of the gutter, top of curb and the sidewalk adjacent to the property. All existing fire hydrants, water shut-off boxes, storm sewer inlets or any other structures existing in the street adjacent to the property shall be shown accurately on such plans. The proposed location of pumps, tanks and their depth below the sidewalk, buildings, wash racks, oiling pits, air hose, valves, gasoline lines from tanks to pumps, and any other equipment that the applicant proposes to install on the property shall be accurately shown and the exact distances from such structures and equipment to the street line shall be written on the plans. The location, width and materials of construction of the driveways which the applicant proposes to build from the curb line to the property and a profile showing their relation in elevation to the existing or proposed sidewalks and gutters, shall also be shown on the plans.
(Code 1986, § 11-158)

Sec. 11-159. Same—Denial; grounds.

A permit to build a gasoline filling station may be withheld where the plans accompanying the application show a variance from the requirements of sections 11-162 through 11-170.
(Code 1986, § 11-159)

Sec. 11-160. Prohibited locations.

No permit shall be issued for construction of a gasoline filling station within one hundred (100) feet of the entrance of any church, school, hospital or theater.
(Code 1986, § 11-160)

Sec. 11-161. Pipelines prohibited under streets or sidewalks.

No permit shall be issued to place any pipeline under the streets and sidewalks of the city for the purpose of transferring gasoline from one (1) point to another.
(Code 1986, § 11-161)

***Charter reference—**Authority to regulate gasoline filling stations, § 2.1(55).

Cross reference—Vehicles using sidewalks adjacent to filling stations, § 32-5.

Sec. 11-162. Building to conform to technical ordinances.

The main building of each gasoline filling station shall be construed in accordance with this Code and other ordinances of the city relating to the construction and alteration of buildings and under the supervision of the building inspector.
(Code 1986, § 11-162)

Cross references—Building regulations, Ch. 10; electrical regulations, Ch. 14; fire prevention regulations, Ch. 17; gas regulations, Ch. 19; housing, Ch. 21; plumbing, Ch. 27; sewers, mains and drainage, Ch. 31; subdivision regulations, App. A; zoning regulations, Ch. 38.

Sec. 11-163. Number of driveways allowed; safety aisles.

Two (2) driveways only shall be allowed for each gasoline filling station, which shall be reviewed by the traffic engineer and city engineer before issuing a permit. In specific instances, additional driveways may be recommended to the mayor by the traffic engineer and city engineer for the approval of the city council. Where there are two (2) or more driveways, there shall be a safety aisle between each not less than ten (10) feet in length and built up to the normal curb grade.
(Code 1986, § 11-163; Ord. No. 9654, § 82, 1-6-92)

Sec. 11-164. Maximum width of driveways.

The maximum width of any driveway shall not exceed sixty (60) feet from face to face of curb.
(Code 1986, § 11-164)

Sec. 11-165. Concrete to be used for driveways.

Concrete shall be required for the paving of all driveways.
(Code 1986, § 11-165)

Sec. 11-166. Curbing.

Driveways shall be bounded on each side by a curb with a perpendicular face varying in height from no inches at the outside of the sidewalk to six (6) inches or the height of the existing city curb, if the existing curb is more or less than six (6) inches at the curb line. At corners, the circular curb shall remain at normal curb grade, and in no event shall the curb be lowered and sidewalk ramped for a driveway. If no curb exists adjacent to the property, a curb may be built, but only on a line and grade and of the cross section and materials designated by the city engineer.
(Code 1986, § 11-166)

Sec. 11-167. Location of equipment in relation to street line.

Pumps, oil pits, air hose, wash racks and any other equipment used in the servicing of cars, if set parallel to the street line, shall not be located nearer than ten (10) feet from the street line. If this equipment is set at an angle to the street line, it shall not be located nearer than thirteen (13) feet from the street line. The established street lines shall be presumed to be properly located and shall be used as the line to which distances are measured.
(Code 1986, § 11-167)

Sec. 11-168. Alteration of sidewalk grade.

The grade of existing sidewalks may be changed only when such change is not disadvantageous to adjoining sidewalks and property, and then only upon the permission of and at a grade set by the city engineer.
(Code 1986, § 11-168)

Sec. 11-169. When sidewalks to be constructed.

If sidewalks do not exist adjacent to the property, sidewalks on the line and grade set by the city engineer may be required to be included in the construction of a station.
(Code 1986, § 11-169)

Sec. 11-170. Alterations in street drainage system.

Where driveways interfere with the street drainage system, necessitating the moving or removal of catch basins, such change shall be made only with the approval of and according to plans prepared or approved by the city engineer.
(Code 1986, § 11-170)

Secs. 11-171—11-185. Reserved.

ARTICLE VI. HOTELS AND ROOMING HOUSES*

Sec. 11-186. Definition.

As used in this article, unless the context otherwise requires:

(1) "Consideration" means the consideration charged, whether or not received, for the occupancy in a hotel valued in money, whether to be received in money, goods, labor or otherwise, including all receipts, cash, credits, property and services of any kind or nature without any deduction therefrom whatsoever. Nothing in this definition shall be construed to imply that consideration is charged when the space provided to the person is complimentary from the operator and no consideration is charged to or received from any person;

(2) "Hotel" means any structure or space, or any portion thereof, which is occupied or intended or designed for occupancy by transients for dwelling, lodging or sleeping purposes, and includes any hotel, inn, tourist camp, tourist court, tourist cabin, motel, bed and breakfast, or any place in which rooms, lodgings or accommodations are furnished to transients for a consideration, in addition to short-term rental property as defined in Chattanooga City Code Section 38-36, and short-term rental unit as defined in Tennessee Code Annotated, Title 67, Chapter 4;

(3) "Occupancy" means the use or possession, or the right to the use or possession, of any room, lodgings, or accommodations in any hotel;

(4) "Operator" means the person operating the hotel whether as owner, lessee or otherwise;

(5) "Person" means any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate or any other group or combination acting as a unit; and

(6) "Transient" means any person who exercises occupancy or is entitled to occupancy of any rooms, lodgings, or accommodations in a hotel for a period of less than thirty (30) continuous days.

(Ord. No. 11303, § 1, 8-6-02; Ord. No. 12620, § 1, 6-26-12; Ord. No. 13194, § 4, 7-11-17; Ord. No. 13842, §1, 6-14-22)

***Charter reference—**Authority to license and regulate hotels and rooming houses, § 2.1(47).
Cross reference—Lighted materials prohibited in beds of hotels, etc., § 17-2.
State law reference—Hotels and places of accommodation generally, T.C.A., §§ 62-7-101—62-7-112.

Sec. 11-187. Permit—Required.

No person shall conduct, keep, manage, operate or cause to be conducted, kept, managed or operated, either as owner, lessor, lessee, agent or attorney, any hotel or rooming house at any business location in the city without having an annual inspection by the Fire Marshal and obtained a permit from the City Treasurer to operate an establishment.
(Code 1986, § 11-187; Ord. No. 9654, § 8, 1-6-92; Ord. No. 12620, § 1, 6-26-12)

Sec. 11-188. Same—Application; preliminary investigation, recommendation.

Any applicant for a permit to operate any hotel as defined by Section 11-186 shall be required to pay the fees for such permit annually or on or before December 31st of each year of operation to the City Treasurer. The Fire Marshal shall inspect and approve or disapprove any hotel or rooming house for continuing operations pursuant to the Fire Codes adopted by the City of Chattanooga within sixty (60) days following the date of any renewal of such permit by the City Treasurer. In the event that the Fire Marshal is required to conduct additional inspections of any applicant during a permit year, additional Fire Marshal inspection fees shall be paid by the applicant and collected by the City Treasurer. A permittee may operate after renewal of this permit during the time the Fire Marshal conducts required inspections. Any violation of any City Code provision or State law concerning fire codes or prostitution may be grounds for revocation of this permit by the Mayor.
(Code 1986, § 11-188; Ord. No. 9654, § 83, 1-6-92; Ord. No. 12620, § 1, 6-26-12)

Sec. 11-189. Same—Fee.

The fee for each hotel permit shall be fifty-five dollars ($55.00). There shall be a charge of fifty dollars ($50.00) each for any re-inspections performed by Fire Marshal.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-190. Same—Display.

Every person to whom a permit is issued under this article shall display such permit in a conspicuous place in the office of the hotel operated thereunder.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-191. Same—Not transferable.

No permit issued under this article shall be transferred or assigned.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-192. Same—Revocation.

The mayor may revoke any permit issued under this article for violation of any provision hereof or for good cause shown. Before any permit is revoked, the holder thereof shall be notified and shall have a hearing before the mayor if he so desires.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-193. Same—Duration.

Hotel permits shall be issued annually and shall expire on the last day of December of each year.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-194. Using hotel for purpose of prostitution.

No person to whom a permit is issued under this article shall suffer or permit the hotel or rooming house operated thereunder to be used as a house of ill fame, brothel, bawdy house or disorderly house, for the purpose of prostitution.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-195. Register required; availability for inspection.

Every person to whom a permit is issued under this article shall at all times keep a standard hotel register, in which shall be inscribed the names of guests renting or occupying rooms in his hotel. Such register shall be signed in every case by the person renting a room or by someone under his direction, and after registration is made and the name of a guest is inscribed as herein provided, the manager of the hotel or his agent shall write the number of the room which such guest is to occupy, together with the time such room is rented, before such person is permitted to occupy such room. The register shall be open to inspection at all times by any guest of the hotel and by any executive or law enforcement officer of the city or state.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-196. Rooms to be numbered.

Each sleeping room and apartment in every hotel in the city shall be numbered in a plain and conspicuous manner. The number of each room shall be placed on the outside of the door of such room, and no two (2) doors shall bear the same number.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-197. Right of city law enforcement officers to enter.

Any officer of the city, including the Fire Marshal and/or assistants, may enter into and upon the premises of any hotel in the city, for the purpose of inspection, at any reasonable hour.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-198. Liability of manager for violations.

Where a permit has been issued to any co-partnership, corporation or association to operate a hotel in the city, any person having charge, management or control of such hotel shall be liable to prosecution for any violation of this chapter. For the purpose of determining the liability of any person to prosecution for such violations, it shall be sufficient to show that such person was, at the time of the act of violation complained of, the person in actual charge, management or control of the hotel in which such act is alleged to have been committed.
(Ord. No. 12620, § 3, 6-26-12)

Sec. 11-199. Privilege tax levied; use.

(a) The rate of the levy shall be four percent (4%) of the consideration charged by the operator. This privilege tax shall be collected pursuant to and subject to the provisions of these statutory provisions. The City Treasurer is designated as the authorized collector to administer and enforce this ordinance and these statutory provisions.

(b) The proceeds received from this tax shall be designated for the promotion of tourism and tourism development within the City of Chattanooga. Amounts necessary to cover debt obligations related to the 21st Century Waterfront must be so designated before funds can be used for other tourism promotion or development. The privilege taxes collected shall be placed in a special account to be used only for these purposes.
(Ord. No. 12620, § 3, 6-26-12; Ord. No. 13842, § 2, 6-14-22)

Secs. 11-200—11-215. Reserved.
(Ord. No. 12620, § 3, 6-26-12)

ARTICLE VII. JUNK AND SECONDHAND DEALERS*

Sec. 11-216. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Junk dealer. Any person engaged in, conducting, managing or carrying on the business of buying, selling or otherwise dealing in rags, paper, scrap iron, brass or secondhand metals of any sort or any other substance or material or article, which, from its worn condition, is rendered practically useless for the purpose for which it was made and which is commonly classed as junk.

Junkyard or junk shop. Any building, structure, yard or place which is used for keeping, storing or piling in commercial quantities, whether temporarily or continuously, or for buying or selling, at retail or wholesale, or dealing in the articles, substances and materials enumerated in the preceding paragraph.

Secondhand dealer. Any person engaged in, conducting, managing or carrying on the business of buying, selling or otherwise dealing in secondhand jewelry, typewriters, adding machines and other like articles, wearing apparel and other secondhand goods, wares or merchandise.

Secondhand motor vehicle dealer. Any person engaged in, conducting, managing or carrying on the business of buying, selling or otherwise dealing in secondhand motor vehicles.
(Code 1986, § 11-216)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-217. Exception for secondhand furniture.

The provisions of this article shall not apply to the purchase of secondhand household furniture.
(Code 1986, § 11-217)

Sec. 11-218. Records of purchases required.

(a) Every secondhand dealer, secondhand motor vehicle dealer and junk dealer shall keep and carefully preserve a book or register, in which shall be legibly written in ink or typed in the English language at the time of each purchase or receipt of secondhand articles, substances or materials, an accurate account and description of the article, substance or material purchased or received, the amount paid therefor, the date and time (both day and hour) of such purchase or receipt, and the name, residence and description of the person selling or delivering such article.

***Cross reference—**Garbage and refuse, Ch. 18.

State law references—Junk dealers regulated, T.C.A. §§ 62-9-101—62-9-106; secondhand dealers in automobile tires and accessories, T.C.A. §§ 55-14-101—55-14-107.

(b) Secondhand motor vehicle dealers shall give an accurate account and description of the vehicle purchased or received, including the motor, serial and manufacturer's number.

(c) No entry made in such book or register shall be erased, obliterated or defaced.
(Code 1986, § 11-218)

Sec. 11-219. Daily report to police.

(a) Each secondhand dealer and secondhand motor vehicle dealer shall deliver to the chief of police daily, except on Sunday, before the hour of 10:00 a.m., a correct copy of all entries made in the book or register kept by him during the preceding business day.

(b) Any person purchasing vehicle hubcaps, mirrors, fenders, skirts, ornaments, tires or other parts or vehicle accessories from individuals not engaged in the lawful business of selling auto parts and equipment shall make daily reports of all such purchases to the chief of police before the hour of 10:00 a.m., except on Sunday, giving the name, age and address of the seller and any proof of ownership furnished to the purchaser by the seller.
(Code 1986, § 11-219)

Cross reference—Fire department generally, § 16-26 et seq.

Sec. 11-220. Police may inspect records, articles purchased.

The book or register kept by every secondhand dealer, secondhand motor vehicle dealer and junk dealer, as well as the articles, substances or materials purchased, shall, at all reasonable times, be open to the inspection of any police officer.
(Code 1986, § 11-220)

Cross reference—Police department, § 16-41 et seq.

Sec. 11-221. Identification of person from whom purchases made.

If a secondhand dealer or secondhand motor vehicle dealer does not know the person offering to sell or deliver any article or vehicle, he shall make inquiry to learn the true identity of such person, and shall require the production of his draft registration card, if any, and his social security card, if any, and shall note in his book or register the draft board with which such person is registered, his address and social security number, and any other information he obtained as to the identity of such person. This information shall be kept in addition to the description required by the provisions of section 11-218.
(Code 1986, § 11-221)

Sec. 11-222. Business hours of secondhand dealers.

No secondhand dealer shall keep open his place of business before 7:00 a.m. or after 6:00 p.m. of any day during the year; provided that, on Saturday of each week and the last fifteen (15) days of December of each year it shall be lawful for secondhand dealers to keep open until 9:00 p.m.
(Code 1986, § 11-222)

Sec. 11-223. Notice to police of intended purchase from minor, drinker, thief or ex-convict.

No secondhand dealer or secondhand motor vehicle dealer shall purchase any article or vehicle from any person under sixteen (16) years of age or from any person appearing to be intoxicated or known as an habitual drunkard, or to be a thief, or to have been convicted of larceny, burglary, robbery or housebreaking, without first notifying a police officer.
(Code 1986, § 11-223)

Cross reference—Alcoholic beverages, Ch. 5.

Sec. 11-224. Permit for sale or exchange of metallic fixtures or junk—Required.

It shall be unlawful for any person, except licensed junk dealers, to sell, barter or exchange any plumbing fixtures, electrical fixtures, mechanical fixtures or water or gas fixtures made of brass or other metallic material or any junk consisting of any metal to any junk dealer, without having procured from the city treasurer a permit in writing authorizing such transaction.
(Code 1986, § 11-224)

Sec. 11-225. Same—Exhibition at time of delivery; records of dealer.

It shall be unlawful for any junk dealer to purchase or receive from any person any of the materials enumerated in section 11-224 without requesting and having exhibited to him the permit required by such section, signed by the city treasurer and authorizing the person selling such materials to make the specific sale thereof at that time. The junk dealer shall record in his book or register the date of the permit. Such information shall be kept in addition to the information required by section 11-218 of this chapter.
(Code 1986, § 11-225)

Sec. 11-226. Same—Issuance.

It shall be the duty of the city treasurer to issue, upon application of any person, a permit free of charge for the purpose of making a specific sale of metallic junk, provided the application of such person is approved in writing by the chief of police. No such permit shall be construed to authorize its holder to engage in junk dealing without paying the privilege tax and securing the license therefor.
(Code 1986, § 11-226)

Sec. 11-227. Certificate of occupancy required for junkyard or shop.

No junkyard or junk shop shall be established or opened on any lot or yard or in any building in the city without a certificate of occupancy. Application for such certificate shall be made to the building inspector, who shall not issue any such certificate until such application has been presented to the city council at a regular meeting, and the issuance of such certificate has been authorized by a majority vote of the city council. The action of the city council shall be noted on its minutes.
(Code 1986, § 11-227; Ord. No. 9654, § 2, 1-6-92)

Sec. 11-228. Junkyards, shops to be fenced in.

Every junkyard or shop shall be enclosed by a substantial board fence not less than eight (8) feet in height which shall be kept well painted by the owner of such establishment. Such fence shall be so constructed and set back as not to interfere with traffic or obstruct the view of persons using the street on which they are located, and shall comply with the provisions of section 32-34 of this Code.
(Code 1986, § 11-228)

Secs. 11-229—11-240. Reserved.

ARTICLE VIII. PAWNBROKERS

Sec. 11-241. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Detailed description" means a written description of an item giving the weight in grams, carats or druid weight as applicable, shape, size in inches or millimeters, any inscription on the item, type (including color) of metal, and type of precious stone if applicable.

"Pawn" or *"Pawn Transaction"* means either of the following transactions:

(a) *"Buy-Sell Agreement"* means any Agreement whereby a pawnbroker agrees to hold a property (Pledged Goods) for a specified period of time not to be less than sixty (60) days to allow the Seller the exclusive right to repurchase the property. A Buy-Sell Agreement is not a loan of money, but shall still meet all recording procedures to law enforcement officers as with a Pawn Transaction; or

(b) A *"Loan of Money"* transaction means any loan on the security of Pledged Goods and being a written bailment of Pledged Goods as a security lien for such loan, for the cash advanced, interest and fees authorized by this Act, redeemable on certain terms and with the implied power of sale on default.

"Pawnbroker" means any person, partnership or corporation engaged in the business of lending money on the security of Pledged Goods; or engaged in the business of purchasing tangible personal property on condition that it may be redeemed and repurchased by the Seller for a fixed price within a fixed period of time; or engaged in the business of advancing money to a customer in consideration for the customer surrendering possession of tangible personal property on an agreement by which the property may be returned to the customer's possession on repayment of the money advanced; and engaged in the business of selling new and used tangible personal property, whether unredeemed tangible personal property resulting from a Pawn Transaction, or acquired by a purchase of tangible personal property not acquired in a Pawn Transaction, or purchased merchandise for resale from dealers and traders.

"Pawnshop" means the location at which or premises in which a pawnbroker regularly conducts business.

"Pledged Goods" means tangible personal property, other than chooses in action, securities, printed evidences of indebtedness, or title documents, which tangible personal property is purchased by, deposited with, or otherwise actually delivered into the possession of a Pawnbroker in connection with a Pawn Transaction, and shall include the term "Pawn" or "Pledged Property" or similar words.

"Pledgor" means the pawn loan customer of the Pawnbroker, entering into a pawn Transaction with the Pawnbroker.
(Ord. No. 10912, § 1, 9-28-99)

Sec. 11-242. License required.

It shall be unlawful for any person to engage in business as a pawnbroker, to operate a pawnshop or to engage in any activity subject to regulation by this article without first obtaining a valid license from the State of Tennessee. All persons engaged in activities subject to regulation by this article shall have their license clearly displayed and open for inspection by the Chattanooga Police Department.
(Ord. No. 10912, § 1, 9-28-99)

Sec. 11-243. Signs.

Each pawnbroker shall cause the words "Licensed Pawnbroker" to be printed or painted in large, legible characters and placed over the outside of the entrance for customers to such pawnbroker's shop, office or place of business. The pawnshop may also be called by a business name other than the name of the licensee.
(Ord. No. 10912, § 1, 9-28-99)

Sec. 11-244. Prohibited acts.

A pawnbroker shall not:

(1) Accept a pledge or purchase property from a person under eighteen (18) years of age, nor accept a pledge from anyone who appears intoxicated, nor from any person known to such pawnbroker to be a thief, or to have been convicted of larceny, burglary or robbery, without first notifying a police officer;

(2) Make any agreement requiring the personal liability of a pledgor in connection with a pawn transaction;

(3) Accept any waiver, in writing or otherwise, of any right or protection accorded a pledgor under this part;

(4) Fail to exercise reasonable care to protect pledged goods from loss or damage;

(5) Fail to return pledged goods to a pledgor upon payment of the full amount due the pawnbroker on the pawn transaction. In the event such pledged goods are lost or damaged while in the possession of the pawnbroker, it shall be the responsibility of the pawnbroker to replace the lost or damaged goods with like kind(s) of merchandise. In the event the pledgor and pawnbroker cannot agree as to replacement with the like kind(s), the pawnbroker shall reimburse the pledgor for the agreed upon value of the article as recited under T.C.A. § 45-6-209(b)(4);

(6) Purchase property in a pawn transaction for such pawnbroker's own personal use;

(7) Take any article in pawn, pledge, or as security or under a buy-sell agreement from any person, which article is known to such pawnbroker to be stolen;

(8) Sell, exchange, barter, or remove from their place of business, or permit to be redeemed any goods pledged, pawned, or disposed of by them for a period of forty-eight (48) hours after making the report as provided in T.C.A. § 45-6-209;

(9) Keep more than one (1) house, shop, or place for such business of pawnbroker under one (1) license; provided, that such person may remove from one (1) place of business to another, as provided in T.C.A. § 45-6-208;

(10) Enter into any pawn transaction which has a maturity date less than thirty (30) days after the date of the pawn transaction;

(11) Make a pawn or loan on precious metal without providing a detailed description of the type and weight of precious metal such as gold or silver that is, pawned; or

(12) Make a pawn or purchase of an item with an apparently altered or removed serial number.

(Ord. No. 10912, § 1, 9-28-99)

Sec. 11-245. Suppliers' names.

Upon request from any law enforcement agency, whether city, county, or state, a pawnbroker shall furnish the names of all suppliers from whom the pawnbroker has purchased merchandise for resale. This information is not to be recorded nor sent to any law enforcement agency but shall be maintained at the pawnshop for a period of at least one (1) year from the date of purchase.

(Ord. No. 10912, § 1, 9-28-99)

Sec. 11-246. Records and record inspection by police.

(a) Every pawnbroker shall keep a consecutively numbered record of each and every pawn transaction which shall correspond in all essential particulars to the detachable pawn ticket attached. The consecutive numbering process for pawnbroker transactions dealing with over-the-counter purchases, described above, shall be numbered and identified independently from a buy-sell agreement and/or a loan of money transaction.

(b) The pawnbroker shall, at the time of making the pawn transaction and/or buy-sell transaction, enter upon the pawnshop copy of the records as well as on the pawn ticket, and/or buy-sell ticket, the following information, which shall be typed or written in ink and in the English language:

(1) A clear and accurate description of the property, including serial numbers if pledged articles shall bear such;

(2) The date of the pawn transaction;

(3) The amount of cash loan advanced on the pawn transaction;

(4) The exact value of the property as stated by pledgor who pledges same;

(5) The maturity date of the pawn transaction, which date shall not be less than thirty (30) days after the date of the pawn transaction; and

(6) The name, race, sex, height, weight, date of birth, residence address of the person making the pawn. A pawnbroker shall require the person making the pawn to produce identification before the pawn transaction is completed. The pawnbroker shall record the numbers from any item or items used as identification by a pledgor. The following items may be used as identification:

(A) A state-issued driver's license;

(B) A state-issued identification card;

(C) A passport;

(D) A valid military identification;

(E) A non-resident alien border crossing card;

(F) A resident alien border crossing card; or

(G) A United States immigration and naturalization service identification.

(c) The pledgor shall sign the stub providing the pledgor's residence address and shall receive the detached pawn ticket; the stub shall also be signed by the pawnbroker or the pawnbroker's agent.

(d) A pawnbroker shall obtain and record the name, race, sex, height, date of birth, residence address and numbers from the items used as identification. The acceptable items of identification set forth above are acceptable for the purposes of this part.

(e) If the person retrieving a pawned item is different than the original pledgor, a pawnbroker shall obtain and record the name, race, sex, height, date of birth and residence address of the person retrieving the pawned item(s). Any person retrieving a pawned item shall be required to produce identification that conforms to the requirements of subsection (b)(6) above.

(f) These records shall be delivered to the Police Department by mail or in person, within forty-eight (48) hours following the day of such transactions. Delivery by mail shall be deemed made when deposited in the United States mail, postage prepaid. Further, these records shall be made available for inspection each business day, except Sunday, by the Police Department.

(g) These records shall be a correct copy of the entries made of the pawn transactions and/or buy-sell transactions and shall be carefully preserved without alteration and shall be available during regular business hours for inspection by the Police Department.
(Code 1986, § 11-243; Ord. No. 10912, § 1, 9-28-99)

Sec. 11-247. Newly acquired goods to be kept separate; pawn ticket or other identification to be kept with pawned item until sold or disposed of.

A pawnbroker shall keep any article pawned or sold separate and apart from other goods or articles for a period of forty-eight (48) hours after receipt of same. Until a pawned item is sold or otherwise disposed of by the pawnbroker, a pawnbroker shall keep with each item pawned the pawnbroker's copy of the pawn ticket or some other identification which will enable any police officer to match a pawned item for sale in the pawnshop to the pawn ticket associated with the pawn transaction pursuant to which the pawnbroker acquired such pawned item.
(Code 1986, § 11-245; Ord. No. 10912, § 1, 9-28-99)

Sec. 11-248. How long articles must be kept before disposal.

(a) It shall be unlawful for any pawnbroker to deliver to the person who pawned, pledged, sold or delivered the same, any goods, article or thing, or to deliver the same to any other person or to sell or otherwise dispose of the same, for a period of forty-eight (48) hours from making the report required by this article, or for an additional period of forty-eight (48) hours if requested by a police officer to retain the same.

(b) Any pawnbroker who makes an over-the-counter purchase of goods that the seller does not intend to buy back as contemplated by 11-246(a)(7) shall hold said goods for a period of not less than twenty (20) days before offering the merchandise for sale.
(Code 1986, § 11-246; Ord. No. 10912, § 1, 9-28-99)

Sec. 11-249. Return of stolen property.

(a) Any person asserting ownership of any property, which the person alleges is stolen and which is in the possession of a pawnbroker, may recover such property by making a report to any law enforcement agency of the location of such property and providing the law enforcement agency with proof of ownership of the property, provided, that a report of the theft of the property was made to the proper authorities within thirty (30) days after obtaining knowledge of the theft or loss; and, provided further, that the person asserting ownership will assist in the prosecution of the party pawning such item. Upon the receipt of such proof of ownership, any law enforcement officer is authorized to recover the property from the pawnbroker, without expense to the rightful owner thereof, unless the pawnbroker presents evidence of having received proof of ownership of such property by the person who sold same to pawnbroker or pledged the property as security for a loan. Any property recovered from a pawnbroker, pursuant to this section, shall be returned to the rightful owner thereof, subject to evidence in any criminal proceeding. All pawnbrokers shall keep in their records for a period not less than one (1) year a tracking number assigned by the Police Department for each item of stolen property recovered from the pawnbroker; the pawnbroker shall write said tracking number on the pawn ticket for said transaction or shall otherwise keep the tracking number with readily available records of the pawn transaction.

(b) The Police Department shall furnish to the pawnbroker from whom stolen property has been recovered the complaint number assigned to the case.
(Code 1986, § 11-248; Ord. No. 10912, § 1, 9-28-99)

Sec. 11-250. Business hours.

Pawnshops shall not open for business before 8:00 a.m. or after 6:00 p.m. of any day during the year except for the period from November 25 through December 24 of each year during which time pawnshops may open at 8:00 a.m. and may remain open until 9:00 p.m. Pawnshops shall be closed all day on Sunday throughout the year provided that on Sundays from November 25 through December 24 each year

pawnshops may open at 12:01 p.m. and may remain open until 9:00 p.m., provided further that such Sunday business shall be for the purpose of retail sales only and no pawn transactions may be entered into or completed.
(Code 1986, § 11-250; Ord. No. 10912, § 1, 9-28-99)

Secs. 11-251—11-280. Reserved.

ARTICLE IX. TRANSIENT MERCHANTS

Sec. 11-281. Definition.

A "transient merchant," within the meaning of this article, is defined as one who engages temporarily in the vending or sale of merchandise at any place in the city and who does not intend to become and does not become a permanent merchant at such place, and who, for the purpose of carrying on such business, hires, leases or occupies, either in whole or in part, a room, building or other structure for the exhibition and sale of such goods, wares and merchandise.
(Code 1986, § 11-281)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-282. Exceptions.

The provisions of this article shall not apply to any sale, act or thing the regulation or licensing of which would constitute regulation or licensing of interstate commerce, nor shall the provisions of this article apply to any sale, act or thing legally regulated by the constitution or any law of the United States.
(Code 1986, § 11-282)

Sec. 11-283. License required.

Every transient merchant, whether principal or agent, before beginning business in the city shall take out a city license in the manner provided in this article. No such merchant shall expose for sale or sell at public or private sale any goods, wares or merchandise in the city until he has secured the license required in this section.
(Code 1986, § 11-283)

Sec. 11-284. License application required.

Any person desiring a transient merchant's license shall make written application to the city treasurer therefor, stating the nature of his business and how long he may be engaged therein in the city.
(Code 1986, § 11-284)

Sec. 11-285. False statements on applications.

No transient merchant or applicant for a transient merchant's license shall file any application, original or supplementary, which contains any false statement.
(Code 1986, § 11-285)

Sec. 11-286. License fee, issuance.

Upon the payment of a fee of twenty dollars ($20.00) per day for each day he may be engaged in carrying on his business in the city, the city treasurer shall issue to the applicant a transient merchant's license authorizing him to do business in the city for the length of time stated in his application.
(Code 1986, § 11-286)

Sec. 11-287. Supplementary license.

Every transient merchant desiring to carry on his business for a longer time than that stated in the license issued to him by the city treasurer shall make a supplementary application and payment as provided in this article before continuing to carry on his business and the city finance officer shall issue to him a supplementary license in accordance with the terms of his application.
(Code 1986, § 11-287)

Sec. 11-288. License prerequisite to advertisement of sale.

No person shall advertise any sale by a transient merchant in the city, whether by circular, handbill or newspaper, or in any other manner, until the license required in this article has been issued to such merchant.
(Code 1986, § 11-288)

Sec. 11-289. License revocation.

Any license issued under this article may be revoked by the city treasurer upon the conviction of the licensee of any fraud or false representation, misrepresentation or imposition in the sale of goods, wares or merchandise, or the sale of any adulterated food, drink or drug, or the sale of any food deleterious to health. The filing with the city treasurer of a certified copy of the final judgment of conviction of a licensee of any such offense by the court in which the licensee was tried shall be sufficient authority for the revocation of such license.
(Code 1986, § 11-289)

Sec. 11-290. When bond required to secure payment of license.

If complaint is made to the mayor that any person doing business in the city is a transient merchant, and the person complained of claims to be a permanent merchant, such person may be required, as a condition of transacting business in the city without securing the license and paying the fees provided in this chapter, to give a bond payable to the city to secure the payment of such fees and the fees for the license required by state law if such person fails to become a permanent merchant of the city, in a penal sum not to exceed one thousand dollars ($1,000.00) with sureties to be approved by the city treasurer. Such bond shall be enforced, in the event of a breach thereof, by the city attorney, and upon collection thereof, the amount of the state license fee shall be paid to the state treasurer, and the remainder shall be paid into the city treasury.
(Code 1986, § 11-290)

Sec. 11-291. Vehicles.

The use of a large truck(s), trailer(s), or other motor vehicle(s) having three or more axles or with a gross vehicle weight rate (G.V.W.R.) greater than fourteen thousand nine hundred (14,900) pounds in a residential district on either a street right-of-way or on private property for use by licensed transient merchants during the normal course of business shall be prohibited. For exceptions, definitions and/or conditions see City Code Chapter 24 section 305 (24-305).
(Ord. No. 12104, § 1, 4-1-08)

Secs. 11-292—11-305. Reserved.

ARTICLE X. MASSAGE TECHNICIANS AND PARLORS*

Sec. 11-306. Definitions.

For purposes of this article the following phrases and words shall have the meaning assigned below, except in those instances where the context clearly indicates a different meaning:

Massage. The administering by any person by any method of exerting or applying pressure, friction, moisture, heat or cold to the human body, and/or the rubbing, stroking, kneading, pounding, tapping, or otherwise manipulating a part or the whole of the human body or the muscles or joints thereof, by any physical or mechanical means. Massage shall also mean the giving, receiving, or administering of a bath to any person, or the application of body paint or other colorant to any person.

Massage parlors. Any premises, place of business, or membership club where there is conducted the business or activity of furnishing, providing or giving for a fee, or any other form of consideration, a massage, bath, body painting, or similar massage service or procedure. This definition shall not be construed to include a hospital, nursing home, medical clinic, or the office of a duly licensed physician, surgeon, physical therapist, chiropractor or osteopath. Nor shall this definition be construed to include a barbershop or beauty salon operated by a duly licensed barber or cosmetologist, so long as any massage administered therein is limited to the head and neck.

Massage technician. Any person who administers a massage to another at a massage parlor.
(Code 1986, § 11-306)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-307. Massage parlor permit—Required.

It shall be unlawful for any person to establish, maintain or operate a massage parlor in the city without a valid permit issued pursuant to this article or any prior ordinance.
(Code 1986, § 11-307)

Sec. 11-308. Same—Application; renewals; fees.

(a) Any person desiring a massage parlor permit to establish, maintain or operate a massage parlor in the city shall make application to the city treasurer. Each massage parlor permit application shall be accompanied by an investigation fee of fifty dollars ($50.00), payable to the city treasurer. Each massage parlor permit shall expire one (1) year from the date of issuance. Each renewal application shall be accompanied by an investigation fee of twenty-five dollars ($25.00). Each such application shall contain the name, address and telephone number of the place where the applicant proposes to operate, maintain or establish a massage parlor in the city.

(b) In addition, such application shall include a sworn statement as to whether or not the applicant (if the applicant is a partnership or association, any partner or member thereof, or if the applicant is a corporation, any officer, director or manager thereof, or any shareholder) has been convicted, pleaded nolo contendere, or suffered a forfeiture on a charge of violating any law relating to sexual offenses, prostitution, obscenity, etc., or any provision of this article, or on a charge of violating a similar law or ordinance in any other jurisdiction.

(c) The application shall state thereon that: "It is unlawful for any person to make a false statement on this application, and discovery of a false statement shall constitute grounds for denial of an application or revocation of a permit."

***Cross reference—**Using hotel for purpose of prostitution prohibited, § 11-195.

(d) Each applicant shall have his fingerprints taken, which fingerprints shall constitute part of the application.

(e) A photograph of the applicant taken within sixty (60) days immediately prior to the date of application, which picture shall be not less than two (2) inches by two (2) inches showing the head and shoulders of the applicant in a clear and distinguishable manner, shall be filed with the application.
(Code 1986, § 11-308)

Sec. 11-309. Same—Investigation of applicant; grounds for denial of application.

(a) Upon receipt of the application and fee as provided for in section 11-308 of this Code, the city treasurer shall request the chief of police to make or cause to be made a thorough investigation of the criminal record of the applicant (if the applicant is a partnership or association, all partners or members thereof, or if the applicant is a corporation, all officers, directors and managers thereof, and all shareholders). The result of this investigation shall be submitted to the city treasurer within thirty (30) days of the request.

(b) The city treasurer shall deny any application for a massage parlor permit under this article after notice and hearing if the city treasurer finds that the applicant (if the applicant is a partnership or association, any partner or member thereof, or if the applicant is a corporation, any officer, director, or manager thereof, or shareholder) has within a period of two (2) years prior to application been convicted, pleaded nolo contendere, or suffered a forfeiture on a charge of violating any law relating to sexual offenses, prostitution, obscenity, etc., or any provision of this article, or on a charge of violating a similar law or ordinance in this or any other jurisdiction. The making of a false statement on the application shall also be grounds for denial of this application. Notice of the hearing before the city treasurer for denial of this application shall be given in writing, setting forth the grounds of the complaint and the time and place of hearing. Such notice shall be mailed by certified mail to the applicant's last known address at least five (5) days prior to the date set for hearing.
(Code 1986, § 11-309)

Sec. 11-310. Same—Investigation of premises and issuance.

The city treasurer, before issuing any massage parlor permit, shall cause an investigation to be made of the premises named and described in the application for a massage parlor permit under this article for the purpose of determining whether the massage parlor complies with the provisions of this article, the zoning ordinances, all building, fire, plumbing and electrical codes, and, for this purpose, a copy of the application shall immediately be referred to the building official to make or cause to be made a thorough investigation of the premises and the result of this investigation and whether such premises comply with the zoning, building, fire, plumbing and electrical codes, shall be submitted to the city treasurer within thirty (30) days of the request.
(Code 1986, § 11-310)

Sec. 11-311. Display.

Every person to whom a massage parlor permit shall have been granted shall display such massage parlor permit in a conspicuous place in the massage parlor or establishment so that it may be readily seen by persons entering the premises.
(Code 1986, § 11-311)

Sec. 11-312. Same—Revocation; grounds; notice to permittee.

(a) *Power generally.* The city treasurer shall have the power to revoke or suspend for any period of time up to two (2) years, and shall be charged with the duty of revoking or suspending, any massage parlor permit after notice to permittee and hearing upon any grounds set forth in this section.

(b) *Grounds.* The following shall be deemed good and sufficient grounds for revocation or suspension of massage parlor permit:

(1) Upon evidence presented that the permittee (if the permittee is a partnership or association, any partner or member thereof; or if the permittee is a corporation, any officer, director, or manager thereof, or shareholder) has within a period of two (2) years been convicted, pleaded nolo contendere or suffered a forfeiture on a charge of violating any law relating to sexual offenses, prostitution, obscenity, etc., or any provisions of this article or on a charge of violating a similar law or ordinance of this or any other jurisdiction.

(2) Discovery by the city treasurer of a false statement on the application.

(3) Upon evidence presented before the city treasurer that the permittee (if the permittee is a partnership or association, any partner or member thereof; or if the permittee is a corporation, any officer, director or manager thereof, or shareholder) has within a period of one (1) year violated any provisions of this article or any other ordinance of the city or laws of the state relating to sexual offenses, prostitution, obscenity, or other similar offenses.

(4) Upon evidence presented before the city treasurer establishing that within a period of one (1) year any massage technician or other agent or person under the control or supervision of the permittee has violated any provisions of this article or violated any other ordinance of the city or laws of the state relating to sexual offenses, prostitution, obscenity or similar offenses.

(c) *Notice of hearing.* Notice of hearing before the city treasurer for revocation of the permit shall be given in writing, setting forth the grounds of the complaint and the time and place of the hearing. Such notice shall be mailed by certified mail to the applicant's last known address at least five (5) days prior to the date set for hearing.
(Code 1986, § 11-312)

Sec. 11-313. Massage parlor technician permit—Required.

It shall be unlawful for any person to perform the services of massage technician at a massage parlor in the city without a valid permit issued pursuant to this article or any prior ordinance.
(Code 1986, § 11-313)

Sec. 11-314. Same—Application; renewal; fees.

(a) Any person desiring a permit to perform the services of a massage technician at a massage parlor in the city shall make application in triplicate form to the city treasurer, who shall immediately refer one (1) copy of same to the chief of police. Each such application shall state under oath the name, address, telephone number, last previous address, date of birth, place of birth, height, weight, and current and last previous employment of the applicant. In addition, such application shall include a sworn statement as to whether or not the applicant has been convicted, pleaded nolo contendere, or suffered a forfeiture on a charge of violating any law relating to sexual offenses, prostitution, obscenity, etc., or any provision of this article, or on a charge of violating a similar law or ordinance in any other jurisdiction.

(b) The application shall state thereon that: "It is unlawful for any person to make a false statement on this application, and discovery of a false statement shall constitute grounds for denial of an application or revocation of a permit."

(c) Each applicant shall have his fingerprints taken, which fingerprints shall constitute part of the application.

(d) A photograph of the applicant taken within sixty (60) days immediately prior to the date of application, which picture shall be not less than two (2) inches by two (2) inches showing the head and shoulders of the applicant in a clear and distinguishable manner, shall be filed with the application.

(e) Each massage technician permit shall expire one (1) year from the date of issuance. Each renewal application shall be accompanied by an investigation fee of ten dollars ($10.00).
(Code 1986, § 11-314)

Sec. 11-315. Same—Investigation of applicant; grounds for denial of application.

(a) Upon receipt of the application and fee as provided for in section 11-314 of this Code, the city treasurer shall request the chief of police to make or cause to be made a thorough investigation of the criminal record of the applicant. The result of this investigation shall be submitted to the city treasurer within thirty (30) days of the request.

(b) The city treasurer shall deny any application for a massage technician permit under this article after notice and hearing, if the city treasurer finds that the applicant has within a period of two (2) years prior to his application been convicted, pleaded nolo contendere, or suffered a forfeiture on a charge of violating any law relating to sexual offenses, prostitution, obscenity, etc., or any provision of this article, or on a charge of violating a similar law or ordinance in this or any other jurisdiction. The making of a false statement on the application shall also be grounds for denial of this application. Notice of the hearing before the city treasurer for denial of this application shall be given in writing, setting forth the grounds of the complaint and the time and place of hearing. Such notice shall be mailed by certified mail to the applicant's last known address at least five (5) days prior to the date set for hearing.
(Code 1986, § 11-315)

Sec. 11-316. Same—Display.

Every person to whom a massage technician permit shall have been granted shall, while in a massage parlor, carry on his or her person or display in a conspicuous place in the massage parlor or establishment, such massage technician permit.
(Code 1986, § 11-316)

Sec. 11-317. Same—Revocation; grounds; notice to permittee.

Any massage technician permit granted under this article shall be revoked by the city treasurer after notice and hearing if the permittee has within a period of two (2) years been convicted, pleaded nolo contendere or suffered a forfeiture on a charge of violating any law relating to sexual offenses, prostitution, obscenity, etc., or any provision of this article, or on a charge of violating a similar law or ordinance in this or any other jurisdiction. Discovery of a false statement on the application shall also be grounds for revocation of the permit. Notice of the hearing before the city treasurer for revocation of the permit shall be given in writing, setting forth the grounds of the complaint and the time and place of hearing. Such notice shall be mailed by certified mail to the applicant's last known address at least five (5) days prior to the date set for hearing.
(Code 1986, § 11-317)

Sec. 11-318. Suspension of permits; reinstatement.

If the chief of police or the city treasurer, or their duly authorized representatives, find that a massage parlor or a massage technician is not in compliance with the requirements set forth in this article, or the permittee has refused the chief of police, the city treasurer, or their duly authorized representatives the right to enter the premises to enforce the provisions of this article, upon report to the city treasurer he may enter an order for the immediate suspension of the massage parlor permit or massage technician permit, as the case

may be, until such time as he finds that the reason for such suspension no longer exists. A copy of the order shall be sent to the massage parlor and/or the massage technician at his or her place of business by certified mail, which order shall set forth the reasons for such suspension. No person shall operate a massage parlor or perform the services of a massage technician at a massage parlor when subject to an order of suspension. The city treasurer shall reinstate a suspended permit when he has been satisfied that the massage parlor or massage technician complies with the applicable provisions of this article.
(Code 1986, § 11-318)

Sec. 11-319. Appeals from permit denials, suspensions or revocations.

Any applicant or permittee aggrieved by the actions of the city treasurer in the denial of an application for a massage parlor permit or massage technician permit, or by the decision of the city treasurer with reference to the revocation or suspension of a massage establishment permit or massage technician permit, shall have the right of appeal to the city council. Such appeal shall be taken by filing with the city treasurer, within ten (10) days after the action complained of has been taken, a written statement setting forth fully the grounds for appeal. The city treasurer shall forthwith notify the city council, which shall schedule a public hearing and shall give notice of such hearing to the appellant. The city council may reverse or affirm or may modify any decision of the city treasurer, and may make such decisions or impose such conditions as the facts may warrant; and it may order that a permit be granted, suspended or revoked. The decision and order of the city council on such appeal shall be final and conclusive.
(Code 1986, § 11-319; Ord. No. 9654, § 2, 1-6-92)

Sec. 11-320. Public health card required for a massage technician.

It shall be unlawful for any person to perform the services of massage technician at a massage parlor in the city without a valid public health card issued pursuant to this article or any prior ordinance.
(Code 1986, § 11-320)

Sec. 11-321. Examination of massage technicians; issuance of public health card.

(a) All persons who desire to perform the services of massage technician at a massage parlor shall first undergo a physical examination for contagious and communicable diseases, which shall include a recognized blood test for syphilis, a culture for gonorrhea, a chest X-ray which is to be made and interpreted by a trained radiologist, and shall furnish a certificate based upon and issued within thirty (30) days of such examination by the Chattanooga-Hamilton County health department and stating that the person examined is either free from any contagious or communicable disease or incapable of communicating any of such diseases to others. Such persons shall undergo the physical examination referred to above and submit to the city treasurer the certificate required herein within five (5) days of the commencement of their employment and at least once every six (6) months thereafter.

(b) When there is cause to believe that the massage technician is capable of communicating any contagious disease to others, the city treasurer may at any time require an immediate physical examination of any such person.

(c) The employer of any such person shall require all such persons to undergo the examination and obtain the certificate provided by this section, shall register at the place of employment the name and date of employment of each employee, and shall have the health cards and registration of all employees available for the chief of police, or the city treasurer, or their duly authorized representative at all reasonable times.
(Code 1986, § 11-321)

Sec. 11-322. Right of entry.

The chief of police or the city treasurer or their duly authorized representatives are hereby authorized to enter, examine and survey any premises in the city for which a massage parlor permit has been issued pursuant to this article to enforce the provisions of this article, and for no other purpose. Should the authority to inspect premises be delegated to another person, such person shall be provided with written delegation of authority to be shown to the permittee upon request at the time of inspection. If such inspection reveals conditions which in the opinion of the inspector warrants a more thorough inspection by the building official, the Chattanooga-Hamilton County health department, the bureau of fire prevention, or similar person or agency charged with responsibility for the enforcement of particular health and safety ordinances or laws of the city or the state, he shall report such condition to such person or agency and request that such premises be examined and any findings be reported to the chief of police and the city treasurer. This section shall not be deemed to restrict or to limit the right of entry otherwise vested in any law enforcement officers or other employees of the city or the state charged with the enforcement of health and safety or criminal laws wherein such right of entry is vested by other ordinances or laws.
(Code 1986, § 11-322)

Sec. 11-323. Minimum standards for parlors.

No massage parlor shall be operated, established or maintained in the city that does not comply with the following minimum standards:

(1) The premises shall have adequate equipment for disinfecting and sterilizing nondisposable instruments and materials used in administering massages. Such nondisposable instruments and materials shall be disinfected after use on each patron.

(2) Closed cabinets shall be provided and used for the storage of clean linen, towels and other materials used in connection with administering massages. All soiled linens, towels and other materials shall be kept in properly covered containers or cabinets, which containers or cabinets shall be kept separate from the clean storage areas.

(3) Clean linen and towels shall be provided for each massage patron. No common use of towels or linens shall be permitted.

(4) All massage tables, bathtubs, shower stalls, steam or bath areas and floors shall have surfaces which may be readily disinfected.

(5) Oils, creams, lots or other preparations used in administering massages shall be kept in clean, closed containers or cabinets.

(6) Adequate bathing, dressing, locker and toilet facilities shall be provided for the patrons to be served at any given time. Separate bathing, dressing, locker and toilet facilities shall be provided for male and female patrons.

(7) All walls, ceilings, floors, pools, showers, bathtubs, steam rooms and all other physical facilities shall be in good repair and maintained in a clean and sanitary condition. Wet and dry heat rooms, steam or vapor rooms, or steam or vapor cabinets, shower compartments and toilet rooms shall be thoroughly cleaned each day the business is in operation. Bathtubs shall be thoroughly cleaned after each use. When carpeting is used on the floors, it shall be kept dry.

(8) The premises shall be equipped with a service sink for custodial services.

(9) Eating in the massage work areas shall not be permitted.

(10) Animals, except for Seeing Eye dogs, shall not be permitted in the massage work areas.

(11) No massage parlor shall employ a massage technician who does not comply with the provisions of this article.

(Code 1986, § 11-323)

Sec. 11-324. Individual health requirements for technicians.

No massage technician shall administer massage at a massage parlor who does not comply with the following individual health requirements:

(1) No massage technician shall administer a massage if such massage technician knows or should know that he or she is not free of any contagious or communicable disease.

(2) No massage technician shall administer a massage to a patron exhibiting any skin fungus, skin infection, skin inflammation, or skin eruption; provided that a physician duly licensed by the state may certify that such person may be safely massaged, and prescribing the conditions thereof.

(3) Each massage technician shall wash his or her hands in hot running water, using a proper soap or disinfectant before administering a massage to each patron.

(Code 1986, § 11-324)

Sec. 11-325. Unlawful acts.

(a) It shall be unlawful for any person in a massage parlor to place his or her hand or hands upon or to touch with any part of his or her body, or to fondle in any manner, or to massage, a sexual or genital part of any other person.

(b) It shall be unlawful for any person in a massage parlor to expose his or her sexual or genital parts, or any portion thereof, to any other person of the opposite sex.

(c) It shall be unlawful for any person while in the presence of any other person of the opposite sex in a massage parlor to fail to conceal with a fully opaque covering the sexual or genital parts of his or her body.

(d) It shall be unlawful for any person owning, operating or managing a massage parlor knowingly to cause, allow or permit in or about such massage parlor any agent, employee, or any other person under his control or supervision to perform such acts prohibited in this article.

(e) Sexual or genital parts shall include the genitals, pubic area, buttocks, anus, or perineum of any person, or the vulva or breast of a female.

(f) Every person owning, operating or managing a massage parlor shall post a copy of this article in a conspicuous place in the massage parlor so that it may be readily seen by persons entering the premises.

(g) It shall be unlawful for any massage parlor to provide massage services at any time between the hours of 9:00 p.m. to 7:00 a.m. and on Sundays; however, it shall be lawful for such establishments to remain open for the transaction of other lawful business.

(h) The administering of massages shall not be conducted in private rooms or areas, but shall be conducted in separate general areas for males and females, or if the same general area is used by both male and female customers, then different times for such separate use shall be designated and posted.

(i) It shall be unlawful for any person in a massage parlor to administer a massage to a person of the opposite sex.

(Code 1986, § 11-325)

Sec. 11-326. Penalty.

Any person violating any of the provisions of this article, upon conviction by the court, shall be imprisoned for not less than fifteen (15) days nor more than thirty (30) days, and shall be fined not less than twenty-five dollars ($25.00) nor more than fifty dollars ($50.00), for each violation, and each day of violation of any provision of this article shall constitute a separate offense.
(Code 1986, § 11-326)

Sec. 11-327—11-340. Reserved.

ARTICLE XI. PROFESSIONAL FUND SOLICITORS*

Sec. 11-341. Short title; applicability of article; compliance.

(a) This article shall be known as the "professional solicitation ordinance" and shall apply to all fund-raising campaigns in which solicitations are made in the city or from its residents by professional fund solicitors (as defined herein) who are acting or purporting to act on behalf of charitable, nonprofit, religious, patriotic, educational or philanthropic organizations, or for such purposes.

(b) It shall be unlawful for any person to solicit contributions in any public or private place within the city for a professional solicitation campaign governed by this article unless the sponsoring individual, group or organization has been issued a permit under the provisions of this article to conduct such a professional solicitation campaign, and it shall be further unlawful for any person to solicit for any contribution following the expiration or the revocation by the mayor or his designee of such permit.
(Code 1986, § 11-341; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-342. Definitions.

As used in this article, the following terms shall have the meanings hereinafter set forth:

Mayor. As used in this article, "mayor" shall mean the mayor or his designee.

Professional fund solicitor. As used in this article, the term "professional fund solicitor" shall be any person, group or organization holding itself or themselves out for employment or employees specifically for the solicitation of funds from other persons, groups or organizations, or to advise upon, organize or direct such a campaign, for monetary remuneration, whether said remuneration be in the form of salaries, commissions, a percentage of funds collected, or subsistence for food and shelter, travel expense, or any combination of these, or otherwise. This term shall also include purveyors of goods or services for monetary remuneration (whether as salaries, commissions or profits) and purportedly acting on behalf of charitable, nonprofit, religious, patriotic, educational or philanthropic groups or organizations.

Professional solicitation campaign. As used in this article, the term "professional solicitation campaign" shall refer to any campaign or drive to solicit funds (whether through the solicitation of outright contributions or through the sale of goods, sale of advertisements, sale of services, lotteries, or any combination of solicitation methods) which is intended to, or does in fact, in any way depend upon the services of professional fund solicitors specifically engaged by the sponsoring individual, group or organization for the purpose of making solicitations or the sale of goods or services, or of changes in connection with said campaign or to advise upon, organize or direct such a campaign to any extent whatever. Involvement by administrative staff personnel, even though salaried, in fund-raising drives for charitable,

---

***Editor's note—**Ord. No. 8661, enacted July 1, 1986, did not specifically amend this Code; hence, codification of provisions designated therein as §§ 12-244—12-254 as §§ 11-341—11-351 of this Code was at the discretion of the editor.

nonprofit, religious, patriotic, educational or philanthropic organizations of which said personnel are otherwise generally employed shall not, in and of itself, cause a fund-raising drive by such an organization to fall within the definition of a "professional solicitation campaign" as provided by this article, nor shall said salaried administrative personnel be deemed professional fund solicitors hereunder.
(Code 1986, § 11-342; Ord. No. 9654, §§ 85, 86, 1-6-92)

Sec. 11-343. Permit application fee; permit approval or denial; notice of denial; appeals.

(a) Every application or a permit to conduct a professional solicitation campaign shall be accompanied by a nonrefundable permit application fee of fifty dollars ($50.00); the mayor or his designee shall not examine any application for a permit until the required permit application fee has been paid.

(b) The mayor or his designee shall examine each application for a permit within a period of seven (7) days following the receipt thereof, and if the mayor or his designee finds it to be in conformity with the requirements of this article and all other relevant law or ordinances, he shall approve the application and shall issue a permit to the applicant; provided, however, that the mayor or his designee may deny an application upon reasonable cause to believe that the application is incomplete, or that the proposed campaign will be conducted in violation of the provisions of this article or other applicable law or ordinance. The mayor or his designee shall approve or deny each application for a permit within a period of seven (7) days following the receipt thereof along with the required permit application fee.

(c) If the mayor or his designee shall deny any application to conduct a professional solicitation campaign, he shall immediately provide written notice to the applicant by certified mail, [and] shall advise the applicant of the reasons for the denial of the permit.

(d) Any applicant aggrieved by a decision of the mayor or his designee denying the permit shall have the right to appeal any action or decision of the mayor or his designee to a court of competent jurisdiction.
(Code 1986, § 11-343; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-344. Revocation of permit; hearing.

The mayor or his designee may, in his discretion, revoke any permit issued after due notice and hearing upon a determination that the professional solicitation campaign is being conducted in violation of any provision of this article or of any other law or ordinance. No hearing shall be held on any such proposed revocation unless and until the permittee shall have been given at least ten (10) days' notice in writing of the date, time, place and purpose of such hearing, including the nature of the alleged violation.
(Code 1986, § 11-344; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-345. Authority of mayor or his designee.

The mayor or his designee shall have authority as follows:

(1) To receive and maintain filings of notices and reports in accordance with the provisions hereof.

(2) To receive, investigate and issue notices and subpoenas, to compel attendance of witnesses and the production of documents, to administer oaths, and to conduct hearings upon complaints filed by any person, group or organization related to the conduct of professional solicitation campaigns and professional fund solicitors as defined herein and for the determination of such other issues as the mayor or his designee is authorized to hear under the provisions hereof.

(3) To publish any and all documents filed with the mayor or his designee and any findings of fact which the mayor or his designee might make with respect to any issue arising from the provisions of this article.

(4) To seek relief from any court of competent jurisdiction for violations of this article including, without limitation, the filing of complaints in appropriate civil courts seeking the issuance of restraining orders or injunctions against alleged offenders and requiring alleged offenders to account for and pay into court any and all proceeds of professional solicitation campaigns alleged to be in violation hereof, and to pursue any criminal actions or remedies permitted by law.

(5) To investigate and make findings of fact with regard to any and all issues which might arise hereunder; to require the filing of such additional reports and/or notices by any person, group or organization involved in a professional solicitation campaign as the mayor or his designee may deem appropriate at any time during his investigation of such campaign.

(6) To consider appeals from sponsoring individuals, groups and organizations whose application for a permit to conduct a proposed campaign for the solicitation of funds and/or sale of material in a public place has been denied by the mayor or his designee; to make such investigation of said applicants and their proposals and to conduct such hearings thereupon as are appropriate; and to grant or deny such application in accordance with his findings.

(Code 1986, § 11-345; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-346. Misrepresentation by professional fund solicitors.

It shall be unlawful for any person, group or organization falling within the definition of "professional fund solicitor" as set forth herein and engaged in a professional solicitation campaign within the purview of this article to falsely identify himself, herself or itself as a member of any organization or group sponsoring said fund drive or to use a false name or to knowingly make any misrepresentation of fact or facts to any person or persons in the course of the solicitation.

(Code 1986, § 11-346)

Sec. 11-347. Proper identification by professional fund solicitors.

Any person who falls within the definition of "professional fund solicitor" and is engaged in a professional solicitation campaign within the purview of this article shall identify himself or herself by correct name, domiciliary address, and as a paid employee for fund solicitation on behalf of the sponsoring organization to any prospective contributor before soliciting a contribution from said prospective contributor. Provided, further, that it shall be unlawful for any such person to solicit in a public or private place without wearing an identification card which shall be issued by the department of fire and police and which shall be no smaller than three (3) inches by five (5) inches in size, contain the name and domiciliary address of the solicitor printed or typed with letters no smaller than pica type, identify the solicitor as a "professional fund solicitor," bear a photograph of the solicitor, and contain the name of said sponsoring organization printed with letters no smaller than one-quarter (¼) inch by one-quarter (¼) inch; the format of said identification card for professional fund solicitors shall be prescribed by the mayor or his designee; each solicitor obtaining an identification card from the department of fire and police shall pay for the cost of the printing of said identification card in advance of its issuance.

(Code 1986, § 11-347; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-348. Notices to mayor or his designee.

No professional solicitation campaign shall be commenced by any individual, group or organization within the city limits until and unless the sponsoring individual, group or organization shall have filed an application for permit with the mayor or his designee not less than seven (7) days in advance thereof identifying the proposed professional solicitation campaign, the name and domiciliary address of every individual, group and organization who are to be used as professional fund solicitors in connection

therewith, and the intention of both the sponsor and of all professional solicitors named therein of complying with the provisions of this article. Said application shall likewise furnish the following additional information:

(1) The full name of the organization applying for a permit to solicit and the address of the headquarters.

(2) The names and addresses of all officers and directors or trustees of the organization.

(3) The purpose or purposes for which the gross receipts derived from such solicitations or other activities are to be used.

(4) The name and address of the person or persons by whom the receipts of such solicitation shall be disbursed and the name, address and phone number of the person(s) authorized to sign checks disbursing the funds collected during the professional solicitation campaign.

(5) The name, address, local address and local phone number of the person or persons who will be in charge of conducting the professional solicitation campaign.

(6) An outline of the method or methods to be used in conducting the professional solicitation campaign.

(7) The period within which such professional solicitation campaign shall be conducted, including the proposed dates for the beginning and ending of such campaign.

(8) The total amount of funds proposed to be raised.

(9) The amount of total salaries, wages, fees, commissions, expenses and costs to be expended or paid to anyone in connection with such campaign, and the maximum percentage of funds collected which are to be used to pay such expenses of solicitation and collection.

(10) A full and complete copy of the registration of the charitable organization which has been filed with the Tennessee Secretary of State, and a full and complete copy of the certificate of registration of such charitable organization, if applicable.

(11) A full and complete copy of the application for registration with the Tennessee Secretary of State filed by the professional fund solicitor, and a full and complete copy of said certificate of registration issued by the Tennessee Secretary of State.

(12) A copy of the identification card required by section 11-347 of this Code.

(13) A full and complete copy of any contract between the professional fund solicitor and the organization for which funds are being solicited.

(14) A full and complete copy of the speech, talk or other solicitation to be used during the course of the professional solicitation campaign.

(Code 1986, § 11-348; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-349. Final reports to mayor or his designee.

Within sixty (60) days after the conclusion of any professional solicitation campaign, or within sixty (60) days after the conclusion of the period as set forth as the duration for said campaign in any application filed with the mayor or his designee pursuant to the provisions hereof, whichever date comes earlier, the individual, group or organization sponsoring a professional solicitation campaign shall file with the mayor

or his designee a copy of an audit, performed in accordance with professional accounting standards, for all funds received and disbursed in connection therewith. The said report shall also contain the following information:

(1) Any amendments to the information contained in any notice or application previously filed with the mayor or his designee under the provisions hereof.

(2) A complete list of the names and domiciliary addresses of any and all persons, groups or organizations having participated as professional fund solicitors in said campaign.

(3) A complete statement of the names and purposes for which disbursements of all proceeds of said campaign have been made through the date of the filing of said report, and a detailed statement of anticipated disbursements of all funds received or to be received therefrom.

(Code 1986, § 11-349; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-350. Professional solicitation by means of coin or currency boxes or receptacles prohibited; exceptions.

In the course of a professional solicitation campaign within the city, solicitation by means of coin or currency boxes or receptacles is prohibited except as follows:

(a) When each box or receptacle is serially numbered and the mayor or his designee is advised of the number and location of each;

(b) When each box or receptacle is the responsibility of a bona fide member, agent, or solicitor of the soliciting organization;

(c) When such responsible person is required to pick up each box or receptacle at the end of the solicitation period;

(d) When the use of such boxes and receptacles in the solicitation is expressly authorized by the permit granted pursuant to this article; and

(e) When such responsible person has no more than a reasonable number of boxes or receptacles for which he must account.

(Code 1986, § 11-350; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-351. Penalties.

Any person, association or corporation who violates any of the provisions of this article shall be fined not less than twenty-five dollars ($25.00) nor more than fifty dollars ($50.00). Separate violations by the same person, association or corporation, even during the course of a single fund solicitation, or even when the same violations are repeated upon separate days, may be prosecuted as separate offenses and shall be punishable accordingly; each day any violation of this article continues shall constitute a separate violation. (Code 1986, § 11-351)

Secs. 11-352—11-370. Reserved.

ARTICLE XII. SIDEWALK VENDORS*

Sec. 11-371. Definitions.

For purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Push-cart. Any wheeled vehicle or device, other than a motor vehicle on trailer, which may be moved with or without the assistance of a motor; which is not required to be licensed or registered by the state department of revenue, and which is used for displaying, storing, or transporting articles offered for sale by a vendor.

Vendor. Any person holding a sidewalk vendor permit and who is engaged in the selling or offering for sale, of food, beverages, fruit or like consumable products, or flowers, from a push-cart.
(Code 1986, § 11-371)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-372. Permit—Required.

No person shall sell, or offer for sale, any food, beverage, fruit, or like consumable products, or flowers on any sidewalk or other public pedestrian right-of-way unless:

(1) Such person obtains a sidewalk vendor permit from the city treasurer in accordance with the provisions of this article.

(2) Such sales are made from a push-cart under the control of a sidewalk vendor.
(Code 1986, § 11-372)

Sec. 11-373. Same—Application.

Any person desiring a sidewalk vendor permit shall make written application to the city treasurer stating:

(1) Name, home address, business address, and telephone number of the applicant and the name, address, and telephone number of the owner of the push-cart, if other than the applicant, to be used in the operation of the vendor's business.

(2) A description of the type of food, beverage, or other permissible merchandise to be sold.

(3) Proof of an insurance policy, issued by an insurance company licensed to do business in the state, with the city as a named insured, protecting the applicant and the city from all claims or suits for damages to property or bodily injury, including death, which may arise from operations under or in connection with the permit. Minimum liability limits for such insurance policy shall be not less than the minimum limits specified by Tennessee Code Annotated section 29-20-403. Such insurance shall show paid-up premiums for a minimum of one (1) year and shall provide that the policy will not terminate or be canceled prior to the expiration date without thirty (30) days' advance written notice to the mayor or his designee.

(4) A description and photograph of the vendor's push-cart.
(Code 1986, § 11-373; Ord. No. 9654, § 85, 1-6-92)

Sec. 11-374. Same—Fee, issuance.

Upon compliance with the provisions of section 11-373, the city treasurer shall issue to the applicant a sidewalk vendor's permit authorizing him to do business upon payment of a permit fee of twenty-five dollars

---

***Cross references—**Persons standing or soliciting in the streets, § 24-176; news vendors' stands, § 32-33.

($25.00); provided, the applicant complies with the other provisions of this article. The twenty-five dollar ($25.00) fee shall be used to help defray the cost of administering and enforcing the provisions of this article.
(Code 1986, § 11-374)

Sec. 11-375. Same—Validity.

A permit issued under this article shall be valid for one (1) year from the date of issuance and may be renewed annually upon proper application and payment of a permit fee. Each permit shall be valid for only one (1) push-cart. Each applicant shall file an additional application and pay an additional permit fee for each additional push-cart. Failure to keep liability insurance in force and effect for the duration of the permit shall result in revocation of the permit.
(Code 1986, § 11-375)

Sec. 11-376. Same—Display of and signs.

All permits issued under this article shall be displayed at all times during the operation of the vending business. The vendor shall have posted on the push-cart the current prices charged for each type of article sold. No other advertisement, sign, placard, or poster shall be allowed on the push-cart.
(Code 1986, § 11-376)

Sec. 11-377. Prohibited conduct.

(a) No vendor shall:

(1) Vend anywhere in the city without a satisfactory health permit which shall be affixed to the push-cart so as to be plainly visible to the public.

(2) Leave any location without first picking up, removing, and disposing of all trash, refuse, and litter surrounding his location.

(3) Solicit or conduct business with persons in motor vehicles unless such motor vehicles are parked in a parking area.

(4) Vend on any sidewalk that is not over ten (10) feet in width.

(5) Vend within ten (10) feet of any driveway entrance.

(6) Vend within twenty-five (25) feet of a crosswalk at any intersection measured from the nearest edge of a crosswalk.

(7) Conduct his business in such a way as would restrict or interfere with pedestrian traffic or the ingress or egress of the abutting property owner or tenant, or create or become a public nuisance, increase traffic congestion or delay, or constitute a hazard to traffic, life or property, or an obstruction to adequate access to fire, police or sanitation vehicles.

(8) Vend on any public right-of-way, including but not limited to the sidewalk area, on the city block which surrounds the Ross's Landing Plaza, more particularly described as that block which is bounded by Riverfront Parkway on the north, Chestnut Street on the west, 2nd Street on the south, and Market Street on the east.

(9) Vend on any public right-of-way, including but not limited to the sidewalk area in the area which surrounds BellSouth Stadium, more particularly described as that area which is bounded by the eastern edge of the right-of-way of Power Alley Extended on the East, I-124 on the West, 4th Street on the South, and Riverfront Parkway on the North.

(10) Vend on any public park property, sidewalk or public right-of-way between the hours of 12:00 a.m. and 5:00 a.m.

(11) Vend on any public park without a permit from the Administrator of Public Works.

(Code 1986, § 11-377; Ord. No. 9704, § 1, 4-28-92; Ord. No. 10977, § 1, 3-7-00; Ord. No. 11812, § 1, 3-28-06; Ord. No. 11878, § 1, 8-29-06; Ord. No. 12643, § 1, 9-11-12; Ord. No. 12736, § 5, 7-2-13)

Sec. 11-378. Size requirement for push-carts.

No push-cart shall exceed four (4) feet in width, five (5) feet in height, and six (6) feet in length.

(Code 1986, § 11-378)

Sec. 11-379. Compliance with state and local regulations.

Before any permit is issued by the city treasurer under this article, the applicant must submit satisfactory evidence that he has complied with the state business tax act and all state statutes and regulations controlling health and dispensing of food. Nothing herein shall excuse any applicant/vendor from complying with all applicable state statutes and city ordinances controlling health standards and requirements and the operation of businesses.

(Code 1986, § 11-379)

Sec. 11-380. Exceptions.

The provisions of this article shall not apply to festivals, community-wide projects, and other community-sponsored sales which may occur on a periodic basis and which are submitted to and approved by the mayor. The provisions of this article shall not apply to any sale, act or thing, the regulation or licensing of which would constitute regulation or licensing of interstate commerce, nor shall the provisions of this article apply to any sale, act or thing legally regulated by the Constitution or any law of the United States or of the state.

(Code 1986, § 11-380; Ord. No. 9654, § 13, 1-6-92)

Secs. 11-381. Vending on public park property.

(a) Other than vending from authorized Mobile Food Units within valid MFU Zones in the City, no person shall vend on any public park property without a permit issued by the Director of Open Spaces, in the 21st Century Waterfront Area along Riverfront Parkway between Market Street Bridge and Olgiati Bridge; on First Street; along the sidewalk connections between Walnut Street and Market Street adjacent to First Street Steps; on the Walnut Street Bridge and its approaches on the north and south between Frazier Avenue and Second Street; on the Holmberg Bridge; and on the city owned property adjacent to the Hunter Museum, except at the following seven (7) locations as generally shown on the map attached hereto and incorporated herein by reference:

(1) The approach to the Walnut Street Bridge south of Frazier Avenue;

(2) The approach to the Walnut Street Bridge along the east side of Walnut Street;

(3) The approach to the Walnut Street Bridge along the south side of Walnut Street;

(4) The approach to the First Street Steps to the east of Market Street;

(5) An area to the west of "The Passage";

(6) An area of Ross's Landing Park north of the Chestnut Street intersection with Riverside Drive;

(7) An area north of Riverside Drive near the steps going down to the Riverboat dock.

(b) The Director of Open Spaces shall from time to time advertise for and accept proposals from persons who require permits pursuant to Subsection (a) and who desire to provide vending in the areas identified in Subsection (a). At a minimum the persons desiring to vend in the identified areas shall include within their proposals the following:

(1) Submit that they have or shall acquire before beginning to vend all legally required licenses and permits;

(2) Submit with the response to a request for proposals a picture and written description of the vending cart and equipment it proposes to use;

(3) Submit with the response a complete listing of products it proposes to provide for sale;

(4) Submit with the application the proposed prices of items to be vended; and

(5) Submit a financial proposal to pay the City for the privilege of vending on property owned by the City.

(c) The Director of Open Spaces shall review the responses to the requests for proposals and in addition to verifying the requirements set forth in subsection 11 shall evaluate the responses upon the following factors:

(1) The appropriateness of the items for the locale, the uniqueness of items sold, and the reasonableness of the proposed prices, and;

(2) Customer service experience with the vendor or the vendor's reputation for customer service;

(3) Years the vendor has been in business;

(4) The appearance of equipment;

(5) The quality of merchandise;

(6) The availability of the proposer's preferred site or alternate sites;

(7) The proposed hours of operation; and

(8) Such other factors as the Director of Open Spaces shall deem advisable to maintain the unique character of this area and to protect the public health, safety and welfare.

(d) The Director of Open Spaces may grant or deny a permit in his discretion. The Director may revoke a permit previously granted if the vendor fails to maintain all required licenses and permits; fails to properly pay the City; changes equipment, products or prices without approval of the Director; fails to maintain reasonable hours of operation; or becomes subject to citizen complaints about the operation of the business.
(Ord. No. 12644, § 1, 9-18-12; Ord. No. 13348, § 1, 8-14-18)

Secs. 11-382—11-395. Reserved.

ARTICLE XIII. SPECIAL SALES

Sec. 11-396. Statutes adopted.

The provisions of sections 6-55-401 to 6-55-413, both inclusive, of the Tennessee Code Annotated are hereby adopted by the city, as authorized by section 6-55-413, as herein modified, and such sections so adopted and modified, as applied to the city, shall be as set out in this article.
(Code 1986, § 11-396)

Sec. 11-397. Definitions.

The following terms wherever used or referred to in this article, shall have the following meaning unless a different meaning appears from the context:

Inspector shall mean an inspector employed by the department of finance of the city.

License shall mean a license issued pursuant to this article.

Licensee shall mean any person to whom a license has been issued pursuant to this article.

Person shall mean one (1) or more individuals, partnerships, associations, corporations, business trusts, legal representative, or any organized group of persons conducting a sale within the definition of this chapter.

Publish, publishing, advertisement, advertising shall include any and all means of every kind of conveying to the public notice of sale or notice of intention to conduct a sale, whether by word of mouth, by newspaper advertising, by magazine advertisement, by handbill, by written notice, by printed notice, by printed display, by billboard display, by poster, by radio announcement and by any and all means including oral, written or printed.

Sale for purposes of this chapter shall mean the sale or any offer to sell to the public, goods, wares and merchandise of any and all kinds and descriptions on hand and in stock in connection with a declared purpose, as set forth by advertising, on the part of the seller that such sale is anticipatory to the termination, closing, liquidation, revision, wind up, discontinuance, conclusion, or abandonment of the business in connection with such sale. The definition of "sale" within this chapter shall include any sale advertised to the public in such a manner as to reasonably cause the public to believe that upon the disposition of the stock of goods on hand the business will cease and be discontinued which shall include but not be limited to any sale advertised as "adjuster's sale"; "adjustment sale"; "alteration sale"; "assignee's sale"; "benefit of creditors sale"; "benefit of trustee's sale"; "liquidation sale"; "reorganization sale"; "final days sale"; "forced out of business sale"; "lease expires sale"; "loss of lease sale"; "mortgage sale"; "quitting business sale"; "receiver's sale"; "removal sale"; and any and all other sales advertised in such a manner as to reasonably convey to the public that upon disposal of the stock of goods on hand the business will cease and be discontinued.

Treasurer shall mean the treasurer of the city.

(Code 1986, § 11-397; Ord. No. 9807, §§ 1, 2, 11-2-92)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-398. Exemptions.

The provisions of this chapter shall not apply to or affect the following persons:

(1) Persons acting pursuant to an order of process of a court of competent jurisdiction;

(2) Persons acting in accordance with their powers and duties as public officers, such as sheriffs and marshals;

(3) Duly licensed auctioneers, selling at auction.

(Code 1986, § 11-398)

Sec. 11-399. Treasurer may make regulations.

The treasurer is further empowered to make such rules and regulations for the conduct and advertisement of such sale or special sale as in his opinion will serve to prevent deception and to protect the public.

(Code 1986, § 11-399)

Sec. 11-400. Violation declared nuisance; enforcement.

To conduct any sale herein defined without obtaining the license required by this chapter or to violate any other provisions of this chapter is hereby declared to be a misdemeanor and a public nuisance, and, for the purpose of the enforcement of this chapter, the treasurer is hereby authorized fully to exercise all powers of collection, as authorized to be extended and granted to county court clerks or municipal officers, or collectors by and in as full a manner as provided by Tennessee Code sections 67-4-210(a) and (b) and 67-4-213(b). In addition to the other requirements providing for the collection of the license fee herein imposed and for the enforcement of this chapter, the treasurer is authorized to certify to the city attorney the failure of any person to obtain a license as herein required and to pay the fee therefor or the violation of any other provisions hereof. Thereupon, the city attorney shall forthwith file a bill in a court of proper jurisdiction to enjoin such person from continuing to conduct such sale, which injunction shall remain in force so long as such person is in default. Upon the payment of such a license fee as may be due, and upon compliance with the other provisions of this chapter, the city attorney shall be authorized to dismiss such bill upon the payment of costs by the defendant and all expenses incurred with the institution of such suit.
(Code 1986, § 11-400)

Sec. 11-401. License—Required.

No person shall hereafter publish or conduct any sale of the type defined in section 11-397 without a license therefor.
(Code 1986, § 11-401)

Sec. 11-402. General duties of treasurer.

The treasurer is hereby authorized and empowered to supervise and regulate sales or special sales as defined in section 11-397 of this Code and to issue any appropriate license or licenses therefor. Any special sale licensed within this chapter shall be issued in the discretion of the treasurer upon written application submitted by any person desiring to obtain a license for a sale to be held in accordance with this chapter. The treasurer shall approve a written application form which shall be completed by any person, or by an authorized officer of any corporation which intends to conduct a sale governed by the provisions of this chapter. Any application prepared by the treasurer shall contain:

(1) A description of the place where such sale is to be held;

(2) The nature of the occupancy of the person desiring to conduct such a sale, whether by lease or sublease;

(3) The effective date of the termination of such occupancy;

(4) The means to be employed in advertising or publishing such a sale;

(5) The address and position of the person who shall conduct the sale for the licensee, if different from the licensee.

Such application shall further require any person desiring a license to submit with the application an itemized list of all goods, wares and merchandise to be offered for sale at that location including

(a) The place where such stock was purchased or acquired; and

(b) If not purchased, the manner of such acquisition by the person desiring to obtain a special sales license under this chapter; and

(c) Other information as may be required pursuant to 11-409.

The treasurer may further include on the application form any additional information which may be required by the provisions of Tennessee law at T.C.A. §§ 6-55-401 to 6-55-413 as amended.
(Code 1986, § 11-402; Ord. No. 9807, § 3, 11-2-92)

Sec. 11-403. Investigation of application; issuance; duration.

Upon receipt of an application for a special sale under this chapter which shall include the original business license in effect for that location as set forth within Section 11-402 and the payment of the fee hereinafter established in Section 11-404, the treasurer shall examine and investigate the qualifications of the person requesting a license and shall issue a license for a special sale in accordance with this chapter permitting the advertising, publication, and conduct of such sale if all requirements of this chapter are met. Any license issued by the treasurer shall not be renewable and shall be for the express period necessary to complete any termination, closing, liquidation, revision, wind up, discontinuance, conclusion or abandonment of any business at a specific location in connection with such sale. Any license issued by the treasurer shall not exceed ninety (90) days.
(Code 1986, § 11-403; Ord. No. 9807, § 4, 11-2-92)

Sec. 11-404. Fee to accompany application.

Upon filing an original application for a license to advertise and conduct a sale or special sale, as defined in this chapter the applicant shall pay to the treasurer a fee in the sum of one hundred dollars ($100.00). If any application is disapproved, such payment shall be forfeited to the treasurer as and for the cost of investigating the statements contained in such application.
(Code 1986, § 11-405; Ord. No. 9807, § 5, 11-2-92)

Sec. 11-405. Application of regulations.

(a) *Provisions Supplement General Business.* The provisions of this chapter are intended to augment and be in addition to the applicable laws of the State of Tennessee. Where this ordinance imposes a greater restriction upon persons, premises, business, or practices than is imposed by the laws of the State of Tennessee, this ordinance shall control.

(b) *Interval between sales.* Any person who has held a sale, as regulated hereunder, at the location stated in the application under the same or some other business name within one (1) year from the date of such prior application shall not be granted a license to conduct a sale within the provisions of this chapter.

(c) Where a person applying for a license hereunder operates more than one (1) place of business the license shall only apply to the store location specified in the application and no other store or branch shall advertise or represent that it is cooperating or in any way participating in a licensed sale, nor shall the store location or branch conducting a licensed sale advertise or represent that any other store or branch is cooperating with it or participating in any way in the licensed sale.
(Ord. No. 9807, § 5, 11-2-92)

Sec. 11-406. Duties of licensee.

(a) A licensee hereunder shall:

(1) *Adhere to inventory.* Make no additions whatsoever during the period of licensed sale, to the stock of goods set forth in the inventory which is attached to the application for license.

(2) *Truth in advertising.* Refrain from employing any untrue, deceptive or misleading advertising.

(3) *Adhere to advertising.* Conduct the licensed sale in strict conformity with any advertising or holding out incident thereto.

(4) *Keep duplicate inventory.* Keep available at the place of sale a duplicate copy of the inventory submitted with the application and shall present such duplicate to any inspecting official upon request.

(5) *Segregate non-inventoried goods.* Keep any other goods separate and apart from the goods listed in the filed inventory as being objects of sale and shall make such distinction clear to the public by placing tags on all inventoried goods in and about the place of sale apprising the public of the status of such goods.

(6) *Display of license.* The special sale license issued by the treasurer pursuant to this chapter shall be prominently displayed near the entrance of the premises and a duplicate of the original application and stock list pursuant to which the license was issued, shall at all times be available to any inspector.

(7) *Access of inspectors.* The licensee shall permit any City inspector to examine all merchandise in the premises for comparison with the stock list at all times and at the close of each business day the stock list attached to the application shall be revised and those items disposed of during each such day shall be marked thereon.

(8) *Surrender of business tax license.* After the conclusion of any sale under this chapter which shall in no event exceed ninety (90) days, the licensee shall surrender any business tax license issued by the City of Chattanooga to the treasurer.

(Code 1986, § 11-406; Ord. No. 9807, § 5, 11-2-92)

Sec. 11-407. Contents of advertising.

All advertisements or advertising and the language contained therein shall be in accordance with the purpose of the sale as stated in the application pursuant to which such a license was issued. The wording of any advertisement shall not vary from the wording indicated in the application. Such advertising shall contain a statement in these words and no others:

"Sale held pursuant to license number _____ of the Department of Finance of the City of Chattanooga, granted on the _____ day of _____, 19___."

And in such blank spaces shall be indicated the license number and the requisite date.

(Code 1986, § 11-408; Ord. No. 9807, § 5, 11-2-92)

Sec. 11-408. Purchase of goods for sale hereunder.

In order to carry out the purposes of this chapter it shall be unlawful for the applicant to add, permit or permit to be added to, or included in the itemized list of goods, wares, or merchandise to be offered for sale as required by Section 11-402 of this chapter, goods ordered in contemplation of conducting a sale regulated under this article and any unusual order, purchase or addition to the stock of goods of the business hereby affected within thirty (30) days before the filing of such an itemized list of goods shall be deemed to be prima facie evidence of an intent to violate this provision.

(Code 1986, § 11-409; Ord. No. 9807, § 5, 11-2-92)

Sec. 11-409. Manner of listing goods on inventory.

To further carry out the purpose of this article, the itemized list of goods, wares and merchandise to be sold, which is required to be filed along with the application for a license and the business license as provided in Section 11-402, shall be sufficient if such goods, wares or merchandise are listed separately with the dealer cost and date of acquisition of any item to be sold under this chapter.

(Code 1986, § 11-410; Ord. No. 9807, § 5, 11-2-92)

Sec. 11-410. Suspension and/or revocation.

The treasurer shall have power to suspend or revoke at any time any license granted in accordance with this article.
(Code 1986, § 11-407; Ord. No. 9807, § 5, 11-2-92)

Sec. 11-411. Penalties.

Any individual violating the provisions of this chapter shall be subject to a penalty up to and including five hundred dollars ($500.00) for each offense and a suspension or revocation of any license issued under this chapter. Each day of violation shall constitute a separate offense.
(Ord. No. 9807, § 5, 11-2-92)

Secs. 11-412—11-420. Reserved.

ARTICLE XIV. ADULT-ORIENTED ESTABLISHMENTS*

Sec. 11-421. Findings and purpose.

(a) The city council of the City of Chattanooga, Tennessee, finds:

(1) That homogeneous and heterogeneous masturbatory acts and other sexual acts, including oral sex acts, are being done in adult-oriented establishments in the City of Chattanooga.

(2) That offering and providing such space, areas, and rooms where such activities may take place creates conditions that generate prostitution and other crimes.

(3) That several days and nights of the week such adult-oriented establishments, particularly adult book stores containing mini-motion picture facilities, are overcrowded and contain more persons than such structures can safely accommodate resulting in a definite fire hazard since in the event of fire such persons would not be able to safely leave all the cubicles, booths and rooms of such establishments.

(4) That male prostitutes, particularly teenage males, frequent said establishments for the purpose of providing, within the premises of such establishments, sex-for-hire.

(5) That the continued unregulated operation of adult-oriented establishments would be detrimental to the general welfare, health, and safety of the citizens of the City of Chattanooga.

(b) It is the purpose of this article to promote and secure the general welfare, health, and safety of the citizens of the City of Chattanooga.
(Code 1986, § 11-421; Ord. No. 9654, § 2, 1-6-92)

***Editor's note—**The substantive provisions of Ord. No. 8601, enacted March 4, 1986, are codified herein at the request of the city; designation of such provisions as Art. XIV, §§ 11-421—11-437 was at the discretion of the editors.

Cross reference—Variances and special exceptions for adult-oriented establishments in C-1, C-2, C-3 and M-1 zones, Ch. 38, Art. VIII.

Sec. 11-422. Definitions.

For the purpose of this article, the words and phrases used herein shall have the following meanings, unless otherwise clearly indicated by the context:

(a) *Adult-oriented establishment* includes, but is not limited to sexually explicit establishments which cater to an exclusively or predominantly adult clientele and offer adult entertainment for business purposes such as: adult bookstores, adult motion picture theaters, adult cabarets, escort agencies, sexual encounter centers, massage parlors, adult saunas, adult video stores, and other enterprises which regularly feature materials, acts or displays involving complete nudity or exposure of the "Specified Anatomical Areas" herein below defined and/or sexual excitement or enticement. Adult-oriented Establishment further includes, without being limited to, any adult entertainment studio or any premises that is physically arranged and used as such, whether advertised or represented as an adult entertainment studio, exotic dance studio, encounter studio, sensitivity studio, model studio, escort service, lingerie studio or any other term of like import which regularly feature materials, acts or displays involving complete nudity or exposure of the "Specified Anatomical Areas" herein below defined for sexual excitement or enticement as a business purpose.

(b) *Adult bookstore* means a commercial establishment which, as one (1) of its principal business purposes, offers for sale or rental for any form of consideration any one (1) of the following: books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, sexual devices, video cassettes, compact discs, digital video discs, slides, or other visual representations of sexual conduct which are characterized by their emphasis on the display of "Specified Sexual Activities" or "Specified Anatomical Areas" (as defined below) and in conjunction therewith have facilities for the presentation of adult entertainment, as defined below, and including adult-oriented films, movies, or live entertainment, for observation by patrons therein. A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(c) *Adult cabaret* Any restaurant, bar, dance hall, nightclub or other such public place which as one (1) of its principal business purposes regularly features entertainment of an erotic nature, including exotic dancers, go-go dancers, strippers, male or female impersonators or similar entertainers, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering

"adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way. A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(d) *Adult mini-motion picture theater* means an enclosed building with a capacity of less than fifty (50) persons regularly used for its principal business purposes to present material distinguished or characterized by an emphasis on matter depicting, describing or relating to "Sexual Conduct," "Specified Sexual Activities" or "Specified Anatomical Areas," as defined below, for observation by patrons therein. A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(e) *Adult motion picture theater* means any public place, whether open or enclosed, which is used as one (1) of its principal business purposes for presenting material distinguished or characterized by an emphasis on matter depicting, describing, or relating to "Sexual Conduct," "Specified Sexual Activities" or "Specified Anatomical Areas" (as defined below) for observation by patrons therein. A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(f) *Adult Video Store* means a commercial establishment which, as one (1) of its principal business purposes, offers for sale or rental for any form of consideration any one (1) of the following: photographs, films, motion pictures, sexual devices, video cassettes, compact discs, digital video discs, slides, or other visual representations which are characterized by their emphasis on the display of "Sexual Conduct," "Specified Sexual Activities" or "Specified Anatomical Areas" (as defined below). A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(g) *City Council* means the City Council of the City of Chattanooga, Tennessee.

(h) *Employee* means any and all persons, including independent contractors, who work in or at or render any services directly related to the operation of an adult-oriented establishment.

(i) *Entertainer* means any person who provides entertainment within an adult-oriented establishment as defined in this section, whether or not a fee is charged or accepted for entertainment and whether or not entertainment is provided as an employee or an independent contractor.

(j) *Adult-entertainment* means any exhibition of any adult-oriented motion picture, live performance, display or dance of any type that has as a principal portion of such performance, any actual or simulated performance of specified sexual activities or sexual conduct exhibition and viewing of any specified anatomical areas, removal of articles of clothing or appearing unclothed, including pantomime, modeling, or any other personal service offered customers involving exhibition and viewing of specified anatomical areas.

(k) *Operator* means any person, partnership, or corporation operating, conducting or maintaining an adult-oriented establishment.

(l) *Principal Portion* means at least thirty-three and one-third percent (33⅓%) of the thing so described whenever such term is used in this ordinance.

(m) *Sauna* means an establishment or place which as one (1) of its principal business purposes is in the business of providing:

(i) A steam bath; or

(ii) Massage services.

A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(n) *School* — An academic learning center, whether public or private, from the level of nursery through twelfth grade and including secondary education centers, not limited to, but including, community colleges and universities.

(o) *Sexual Conduct* means the engaging in or the commission of an act of sexual intercourse, oral-genital contact, or the touching of the sexual organs, pubic region, buttocks or female breast of a person for the purpose of arousing or gratifying the sexual desire of another person.

(p) *Sexual Device* means any three-dimensional object primarily designed and marketed for the stimulation of the male or female human genital organs or anus, and shall include three-dimensional reproductions or representations of the human genital organs or anus. Nothing in this definition shall be construed to include devices primarily intended for protection against sexually transmitted diseases or for prevention of pregnancy.

(q) *Sexual Device Shop* means a commercial establishment that regularly features sexual devices or offers for sale sexual devices as a principal portion of it business purpose. Nothing in this definition shall be construed to include any pharmacy, drug store, medical clinic, or any establishment primarily dedicated to providing medical or healthcare products or services, nor shall this definition be construed to include commercial establishments which do not restrict access to any portion of their premises to minors by reason of age. A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(r) *Sexual Encounter Center* means a business or commercial enterprise that, as one (1) of its principal business purposes, offers for any form of consideration:

(i) Physical contact in the form of wrestling or tumbling between persons of the opposite sex;

(ii) Physical contact between male and female persons or persons of the same sex when one (1) or more of the persons exposes to view of the persons within such establishment, at any time, the bare female breast below a point immediately above the top of the areola, human genitals, pubic region, or buttocks, even if partially covered by opaque material or completely covered by translucent material.

A business purpose for purposes of these definitions shall be a principal business purpose if any one (1) or more of the following criteria applies:

(1) A principal portion of the business's displayed merchandise consists of the foregoing enumerated items; or

(2) A principal portion of the wholesale value of the business's displayed merchandise consists of the foregoing enumerated items; or

(3) A principal portion of the retail value of the business's displayed merchandise consists of the foregoing enumerated items; or

(4) A principal portion of the business's revenues derive from the sale or rental for any form of consideration, of the foregoing enumerated items; or

(5) A principal portion of the business's interior business space is used for the display, sale, or rental of the forgoing enumerated items; or

(6) The business regularly features the foregoing enumerated items, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "xxx" or "x-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage visible from a public right of way.

(s) *Specified sexual activities* means:

(i) Human genitals in a state of sexual stimulation or arousal;

(ii) Acts of human masturbation, sexual intercourse or sodomy;

(iii) Fondling or erotic touching of human genitals, pubic region, buttock or female breasts.

(t) *Specified anatomical areas* means:

(1) Less than completely and opaquely covered:

(i) Human genitals,

(ii) pubic region;

(iii) Buttocks;

(iv) Female breasts below a point immediately above the top of the areola; and

(2) Human male genitals in a discernibly turgid state, even if completely opaquely covered.
(Code 1986, § 11-422; Ord. No. 9654, § 87, 1-6-92; Ord. No. 9982, § 2, 12-14-93; Ord. No. 10178, § 1, 3-7-95; Ord. No. 11772, § 1, 12-20-05)

Sec. 11-423. License required.

(a) Except as provided in subsection (e) below, from and after the effective date of this article, no adult-oriented establishment shall be operated or maintained in the City of Chattanooga without first obtaining a license to operate issued by the City of Chattanooga.

(b) A license may be issued only for one (1) adult-oriented establishment located at a fixed and certain place. Any person, partnership, or corporation which desires to operate more than one (1) adult-oriented establishment must have a license for each.

(c) No license or interest in a license may be transferred to any person, partnership or corporation.

(d) It shall be unlawful for any entertainer, employee or operator to knowingly work in or about, or to knowingly perform any service directly related to the operation of any unlicensed adult-oriented establishment.

(e) All existing adult-oriented establishments at the time of the passage of this article must submit an application for a license within one hundred twenty (120) days of the passage of this article on third and final reading. If a license is not issued within said one-hundred-twenty (120) day period, then such existing adult-oriented establishment shall cease operations.
(Code 1986, § 11-423)

Sec. 11-424. Application for license.

(a) Any person, partnership, or corporation desiring to secure a license shall make application to the city treasurer. The application shall be filed in triplicate with and dated by the city treasurer. A copy of the application shall be distributed promptly by the city treasurer to the Chattanooga Police Department and to the applicant.

(b) The application for a license shall be upon a form provided by the city treasurer. An applicant for a license shall furnish the following information under oath:

(1) Name and address, including all aliases.

(2) Written proof that the individual is at least eighteen (18) years of age.

(3) All residential addresses of the applicant for the past three (3) years.

(4) The applicant's height, weight, color of eyes and hair.

(5) The business, occupation or employment of the applicant for five (5) years immediately preceding the date of the application.

(6) Whether the applicant previously operated in this or any other county, city or state under an adult-oriented establishment license or similar business license: whether the applicant has ever had such a license revoked or suspended. the reason therefor, and the business entity or trade name under which the applicant operated that was subject to the suspension or revocation.

(7) All criminal statutes, whether federal or state, or city ordinance violation convictions, forfeiture of bond and pleadings of nolo contendere on all charges, except minor traffic violations.

(8) Fingerprints and two (2) portrait photographs at least two (2) inches by two (2) inches of the applicant.

(9) The address of the adult-oriented establishment to be operated by the applicant.

(10) The names and addresses of all persons, partnerships, or corporations holding any beneficial interest in the real estate upon which such adult-oriented establishment is to be operated, including but not limited to, contract purchasers or sellers, beneficiaries of land trust or lessees subletting to applicant.

(11) If the premises are leased or being purchased under contract, a copy of such lease or contract shall accompany the application.

(12) The length of time the applicant has been a resident of the City of Chattanooga, or its environs, immediately preceding the date of the application.

(13) If the applicant is a corporation, the application shall specify the name, address and telephone number of the corporation, the date and state of incorporation, the name and address of the registered agent for service of process of the corporation, the names and addresses of the officers and directors of the corporation, and the names and addresses of any persons holding fifty percent (50%) or more of the stock of the corporation; if the applicant is a partnership, the application shall specify the name and address of the partnership, the name and address of all general partners of the partnership; if the partnership is a limited partnership, the application shall specify the name and address of all general partners who have a controlling interest in the partnership.

(14) A statement by the applicant that he or she is familiar with the provisions of this article and is in compliance with them.

(15) All inventory, equipment, or supplies which are to be leased, purchased, held in consignment or in any other fashion kept on the premises or any part or portion thereof for storage, display, any other use therein, or in connection with the operation of said establishment, or for resale, shall be identified in writing accompanying the application specifically designating the distributor business name, address, phone number, and representative's name.

(c) Within ten (10) days of receiving the results of the investigation conducted by the Chattanooga Police Department, the city treasurer shall notify the applicant that his application is granted, denied or held for further investigation. Such additional investigation shall not exceed an additional thirty (30) days unless otherwise agreed to by the applicant. Upon conclusion of such additional investigation, the city treasurer shall advise the applicant in writing whether the application is granted or denied.

(d) Failure or refusal of the applicant to give any information relevant to the investigation of the application, or his or her refusal or failure to appear at any reasonable time and place for examination under oath regarding said application or his or her refusal to submit to or cooperate with any investigation required by this article, shall constitute an admission by the applicant that he or she is ineligible for such license and shall be grounds for denial thereof by the city treasurer.
(Code 1986, § 11-424; Ord. No. 9654, § 2, 1-6-92; Ord. No. 9980, § 1, 11-23-93; Ord. No. 10270, §§ 1, 2, 4, 8-1-95)

Sec. 11-425. Standards for issuance of license.

(a) To receive a license to operate an adult-oriented establishment, an applicant must meet the following standards:

(1) If the applicant is an individual:

(i) The applicant shall be at least eighteen (18) years of age.

(ii) The applicant shall not have been convicted of or pleaded nolo contendere to a felony or any crime involving moral turpitude, prostitution, obscenity, or other crime of a sexual nature in any jurisdiction within five (5) years immediately preceding the date of the application.

(iii) The applicant shall not have been found to have previously violated this article within five (5) years immediately preceding the date of the application.

(2) If the applicant is a corporation:

(i) All officers, directors and stockholders required to be named under section 11-424(b) shall be at least eighteen (18) years of age.

(ii) No officer, director or stockholder required to be named under section 11-424(b) shall have been convicted of or pleaded nolo contendere to a felony or any crime involving moral turpitude, prostitution, obscenity or other crime of a sexual nature in any jurisdiction within five (5) years immediately preceding the date of the application;

(iii) No officer, director, or stockholder required to be named under section 11-424(b) shall have been found to have previously violated this article within five (5) years immediately preceding the date of the application.

(3) If the applicant is a partnership, joint venture, or any other type of organization where two (2) or more persons have a financial interest:

(i) All persons having a financial interest in the partnership, joint venture or other type of organization shall be at least eighteen (18) years of age.

(ii) No persons having a financial interest in the partnership, joint venture or other type of organization shall have been convicted of or pleaded nolo contendere to a felony or any crime involving moral turpitude, prostitution, obscenity or other crime of a sexual nature in any jurisdiction within five (5) years immediately preceding the date of the application.

(iii) No persons having a financial interest in the partnership, joint venture or other type of organization shall have been found to have previously violated this article within five (5) years immediately preceding the date of the application.

(b) No license shall be issued unless the Chattanooga Police Department has investigated the applicant's qualifications to be licensed. The results of that investigation shall be filed in writing with the city treasurer no later than twenty (20) days after the date of the application.
(Code 1986, § 11-425)

Sec. 11-426. Permit required.

In addition to the license requirements previously set forth for owners and operators of "adult-oriented establishments," no person shall be an employee or entertainer in an adult-oriented establishment without first obtaining a valid permit issued by the city treasurer.
(Code 1986, § 11-426; Ord. No. 10178, § 2, 3-7-95)

Sec. 11-427. Application for permit.

(a) Any person desiring to secure a permit shall make application to the city treasurer. The application shall be filed in triplicate with and dated by the city treasurer. A copy of the application shall be distributed promptly by the city treasurer to the Chattanooga Police Department and to the applicant.

(b) The application for a permit shall be upon a form provided by the city treasurer. An applicant for a permit shall furnish the following information under oath:

(1) Name and address, including all aliases.

(2) Written proof that the individual is at least eighteen (18) years of age.

(3) All residential addresses of the applicant for the past three (3) years.

(4) The applicant's height, weight, color of eyes, and hair.

(5) The business, occupation or employment of the applicant for five (5) years immediately preceding the date of the application.

(6) Whether the applicant, while previously operating in this or any other city or state under an adult-oriented establishment permit or similar business for whom applicant was employed or associated at the time, has ever had such a permit revoked or suspended, the reason therefor, and the business entity or trade name for whom the applicant was employed or associated at the time of such suspension or revocation.

(7) All criminal statutes, whether federal, state or city ordinance violation, convictions, forfeiture of bond and pleadings of nolo contendere on all charges, except minor traffic violations.

(8) Fingerprints and two (2) portrait photographs at least two (2) inches by two (2) inches of the applicant.

(9) The length of time the applicant has been a resident of the City of Chattanooga, or its environs immediately preceding the date of the application.

(10) A statement by the applicant that he or she is familiar with the provisions of this article and is in compliance with them.

(c) Within ten (10) days of receiving the results of the investigation conducted by the Chattanooga Police Department, the city treasurer shall notify the applicant that his application is granted, denied, or held for further investigation. Such additional investigation shall not exceed an additional thirty (30) days unless otherwise agreed to by the applicant. Upon the conclusion of such additional investigations, the city treasurer shall advise the applicant in writing whether the application is granted or denied.

(d) Failure or refusal of the applicant to give any information relevant to the investigation of the application, or his or her refusal or failure to appear at any reasonable time and place for examination under oath regarding said application or his or her refusal to submit to or cooperate with any investigation required by this article, shall constitute an admission by the applicant that he or she is ineligible for such permit and shall be grounds for denial thereof by the board.
(Code 1986, § 11-427; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10270, § 5, 8-1-95)

Sec. 11-428. Standards for issuance of permit.

(a) To receive a permit as an employee, an applicant must meet the following standards:

(1) The applicant shall be at least eighteen (18) years of age.

(2) The applicant shall not have been convicted of or pleaded no contest to a felony or any crime involving moral turpitude or prostitution, obscenity or other crime of a sexual nature in any jurisdiction within five (5) years immediately preceding the date of the application.

(3) The applicant shall not have been found to violate any provision of this article within five (5) years immediately preceding the date of the application.

(b) No permit shall be issued until the Chattanooga Police Department has investigated the applicant's qualifications to receive a permit. The results of that investigation shall be filed in writing with the city treasurer not later than twenty (20) days after the date of the application.
(Code 1986, § 11-428)

Sec. 11-429. Fees.

(a) A license fee of one thousand dollars ($1,000.00) shall be submitted with the application for a license. If the application is denied, one-half (½) of the fee shall be returned.

(b) A permit fee of one hundred dollars ($100.00) shall be submitted with the application for a permit. If the application is denied, one-half (½) of the fee shall be returned.
(Code 1986, § 11-429; Ord. No. 12354, § 2, 3-2-10)

Sec. 11-430. Display of license or permit.

(a) The license shall be displayed in a conspicuous public place in the adult-oriented establishment.

(b) The permit shall be carried by an employee upon his or her person and shall be displayed upon request of a customer, any member of the Chattanooga Police Department, or any person designated by the city council.
(Code 1986, § 11-430; Ord. No. 9654, § 87, 1-6-92)

Sec. 11-431. Renewal of license or permit.

(a) Every license issued pursuant to this article will terminate at the expiration of one (1) year from the date of issuance, unless sooner revoked, and must be renewed before operation is allowed in the following year. Any operator desiring to renew a license shall make application to the city treasurer. The application for renewal must be filed not later than sixty days (60) days before the license expires. The application for renewal shall be filed in triplicate with and dated by the city treasurer. A copy of the application for renewal shall be filed in triplicate with and dated by the city treasurer. A copy of the application for renewal shall be distributed promptly by the city treasurer to the Chattanooga Police Department and to the operator. The application for renewal shall be upon a form provided by the city treasurer and shall contain such information and data, given under oath or affirmation, as may be required by the city council.

(b) A license renewal fee of one thousand dollars ($1,000.00) shall be submitted with the application for renewal. In addition to the renewal fee, a late penalty of one hundred dollars ($100.00) shall be assessed against the applicant who files for a renewal less than sixty (60) days before the license expires. If the application is denied, one-half (½) of the total fees collected shall be returned.

(c) If the Chattanooga Police Department is aware of any information bearing on the operator's qualifications, that information shall be filed in writing with the city treasurer.

(d) Every permit issued pursuant to this article will terminate at the expiration of one (1) year from the date of issuance unless sooner revoked, and must be renewed before an employee is allowed to continue employment in an adult-oriented establishment in the following calendar year. Any employee desiring to renew a permit shall make application to the city treasurer. The application for renewal must be filed not later than sixty (60) days before the permit expires. The application for renewal shall be filed in triplicate with and dated by the city treasurer. A copy of the application for renewal shall be distributed promptly by the city treasurer to the Chattanooga Police Department and to the employee. The application for renewal shall be upon a form provided by the city treasurer and shall contain such information and data, given under oath or affirmation, as may be required by the city treasurer.

(e) A permit renewal fee of one hundred dollars ($100.00) shall be submitted with the application for renewal. In addition to said renewal fee, a late penalty of fifty dollars ($50.00) shall be assessed against the applicant who files for renewal less than sixty (60) days before the license expires. If the application is denied, one-half (½) of the fee shall be returned.

(f) If the Chattanooga Police Department is aware of any information bearing on the employee's qualifications, that information shall be filed in writing with the city treasurer.

(g) Notwithstanding anything herein to the contrary, any application for renewal of a license or for renewal for a permit shall be handled, investigated and approved or denied within the same time periods as those established in this Article for original license applications and permit applications. In the event a license renewal application or permit renewal application is denied, the applicant shall have all rights of appeal to the City Council as set forth in § 11-438 of this Article.
(Code 1986, § 11-431; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10270, § 6, 8-1-95; Ord. No. 12354, § 2, 3-2-10)

Sec. 11-432. Revocation of license or permit.

(a) The mayor shall revoke a license or permit for any of the following reasons:

(1) Discovery that false or misleading information or data was given on any application or material facts were omitted from any application.

(2) The operator, entertainer, or any employee of the operator, violates any provision of this article or any rule or regulation adopted by the city council pursuant to this article; provided, however, that in the case of a first offense by an operator where the conduct was solely that of an employee, the penalty shall not exceed a suspension of thirty (30) days if the city council shall find that the operator had no actual or constructive knowledge of such violation and could not by the exercise of due diligence have had such actual or constructive knowledge.

(3) The operator or employee becomes ineligible to obtain a license or permit.

(4) Any cost or fee required to be paid by this article is not paid.

(5) An operator employs an employee who does not have a permit or provides space on the premises, whether by lease or otherwise, to an independent contractor who performs or works as an entertainer without a permit.

(6) Any intoxicating liquor, cereal malt beverage, narcotic or controlled substance is allowed to be sold or consumed on the licensed premises.

(7) Any operator, employee or entertainer sells, furnishes, gives or displays, or causes to be sold, furnished, given or displayed to any minor any adult-oriented entertainment or adult-oriented material.

(8) Any operator, employee or entertainer denies access of law enforcement personnel to any portion of the licensed premises wherein adult-oriented entertainment is permitted or to any portion of the licensed premises wherein adult-oriented material is displayed or sold.

(9) Any operator allows continuing violations of the rules and regulations of the Chattanooga-Hamilton County Health Department.

(10) Any operator fails to maintain the licensed premises in a clean, sanitary and safe condition.

(b) Notwithstanding anything herein to the contrary, before revoking or suspending any license or permit, the Mayor shall give the license holder or permit holder not less than ten (10) nor more than twenty (20) days' written notice of the charges against such license holder or permit holder and of the revocation of such license or permit, or of the period of time such license or permit is to be suspended; such notice shall also advise the license holder or permit holder of the license holder's or permit holder's right to request a hearing before the City Council. In the event the license holder or permit holder does not request in writing a hearing before the City Council within the time set forth in such notice, the suspension or revocation shall be effective beginning the date set forth in such notice.

If the license holder or permit holder desires to request a hearing before the City Council to contest the suspension or revocation, such request shall be made in writing to the Clerk of the City Council within ten (10) days of the license holder's or permit holder's receipt of the notification from the Mayor. If the license

holder or permit holder timely requests such a hearing, the effective date of a suspension or hearing shall be stayed pending the final outcome of judicial proceedings to determine whether such license or permit has been properly revoked or suspended under the law.

If the license holder or permit holder timely requests such a hearing, a public hearing shall be held within fifteen (15) days of the Clerk's receipt of such request before the City Council at which time the license holder or permit holder may present evidence as to why the suspension or revocation is improper or contrary to the provisions of this Article. The City Council shall hear evidence concerning the basis for such suspension or revocation and shall affirm or reverse the suspension or revocation at the conclusion of said hearing; any such hearing shall be concluded no later than twenty-two (22) days after the license holder's or permit holder's receipt of notification of the suspension or revocation, unless an extension beyond such time period is requested by the license holder or permit holder and granted by the City Council.

(c) If the City Council affirms the suspension or revocation, the Office of the City Attorney shall institute suit for declaratory judgment in a court of record in Hamilton County, Tennessee, within five (5) days of the date of any such affirmation seeking an immediate judicial determination of whether such license or permit has been properly revoked or suspended under the law.

(d) Any operator or employee whose license or permit is revoked shall not be eligible to receive a license or permit for five (5) years from the date of revocation. No location or premises for which a license has been issued shall be used as an adult-oriented establishment for two (2) years from the date of revocation of the license.
(Code 1986, § 11-432; Ord. No. 9654, §§ 2, 13, 88, 1-6-92; Ord. No. 10270, § 7, 8-1-95)

Sec. 11-433. Hours of operation.

(a) No adult-oriented establishment shall be open between the hours of 3:00 a.m. and 8:00 a.m. on weekdays or between the hours of 3:00 a.m. and 12:00 noon on Sundays.

(b) All adult-oriented establishments shall be open to inspection at all reasonable times by the Chattanooga Police Department or such other persons as the city council may designate.
(Code 1986, § 11-433; Ord. No. 9654, § 2, 1-6-92)

Sec. 11-434. Responsibilities of the operator.

(a) The operator shall maintain a register of all employees, showing the name, and aliases used by the employee, home address, age, birthdate, sex, height, weight, color of hair and eyes, phone numbers, social security number, date of employment and termination, and duties of each employee and such other information as may be required by the city council. The above information on each employee shall be maintained in the register on the premises for a period of three (3) years following termination.

(b) The operator shall make the register of employees available immediately for inspection by police upon demand of a member of the Chattanooga Police Department at all reasonable times.

(c) Every act or omission by an employee constituting a violation of the provisions of this article shall be deemed the act or omission of the operator if such act or omission occurs either with the authorization, knowledge, or approval of the operator, or as a result of the operator's negligent failure to supervise the employee's conduct, and the operator shall be punishable for such act or omission in the same manner as if the operator committed the act or caused the omission.

(d) An operator shall be responsible for the conduct of all employees while on the licensed premises and any act or omission of any employee constituting a violation of the provisions of this article shall be deemed the act or omission of the operator for purposes of determining whether the operator's license shall be revoked, suspended or renewed.

(e) There shall be posted and conspicuously displayed in the common areas of each adult-oriented establishment a list of any and all entertainment provided on the premises. Such list shall further indicate the specific fee or charge in dollar amounts for each entertainment listed. Viewing adult-oriented motion pictures shall be considered as entertainment. The operator shall make the list available immediately upon demand of the Chattanooga Police Department at all reasonable times.

(f) No employee of an adult-oriented establishment shall allow any minor to loiter around or to frequent an adult-oriented establishment or to allow any minor to view adult entertainment as defined herein.

(g) Every adult-oriented establishment shall be physically arranged in such a manner that the entire interior portion of the booths, cubicles, rooms or stalls, wherein adult entertainment is provided, shall be visible from the common area of the premises. Visibility shall not be blocked or obscured by doors, curtains, partitions, drapes, or any other obstruction whatsoever. It shall be unlawful to install booths, cubicles, rooms or stalls within adult-oriented establishments for whatever purpose, but especially for the purpose of secluded viewing of adult-oriented motion pictures or other types of adult entertainment.

(h) The operator shall be responsible for and shall provide that any room or area used for the purpose of viewing adult-oriented motion pictures or other types of live adult entertainment shall be readily accessible at all times and shall be continuously opened to view in its entirety.

(i) No operator, entertainer, or employee of an adult-oriented establishment shall demand or collect all or any portion of a fee for entertainment before its completion.

(j) A sign shall be conspicuously displayed in the common area of the premises, and shall read as follows:

This Adult-Oriented Establishment is Regulated by Chattanooga City Code, Part II [Chapter 11], Article XV, Section[s] 11-421 through 11-437. Entertainers Are:

1. *Not permitted to engage in any type of sexual conduct;*
2. *Not permitted to expose their sex organs;*
3. *Not permitted to demand or collect all or any portion of a fee for entertainment before its completion.*

(Code 1986, § 11-434; Ord. No. 9654, § 2, 1-6-92)

Sec. 11-435. Prohibitions and unlawful sexual acts.

(a) No operator, entertainer, or employee of an adult-oriented establishment shall permit to be performed, offer to perform, perform or allow customers, employees or entertainers to perform sexual intercourse or oral or anal copulation or other contact stimulation of the genitalia.

(b) No operator, entertainer, or employee shall encourage or permit any person upon the premises to touch, caress, or fondle the breasts, buttocks, anus or genitals of any other person.

(c) No operator, entertainer, employee, or customer shall be unclothed or in such attire, costume, or clothing so as to expose to view any portion of the sex organs, breasts or buttocks of said operator, entertainer, or employee with the intent to arouse or gratify the sexual desires of the operator, entertainer, employee, or customer.

(d) No entertainer, employee or customer shall be permitted to have any physical contact with any other on the premises during any performance and all performances shall only occur upon a stage at least eighteen (18) inches above the immediate floor level and removed at least six (6) feet from the nearest entertainer, employee and/or customer.

(Code 1986, § 11-435; Ord. No. 10178, §§ 3, 4, 3-7-95)

Sec. 11-436. Penalties and prosecution.

(a) Any person, partnership, or corporation who is found to have violated this article shall be fined a definite sum not exceeding fifty dollars ($50.00) and shall result in the suspension or revocation of any permit or license.

(b) Each violation of this article shall be considered a separate offense, and any violation continuing more than one (1) hour of time shall be considered a separate offense for each hour of violation.
(Code 1986, § 11-436)

Sec. 11-437. Invalidity of part.

Should any court of competent jurisdiction declare any section, clause, or provision of this article to be unconstitutional, such decision shall affect only such section, clause, or provision so declared unconstitutional, and shall not affect any other section, clause or provision of this article.
(Code 1986, § 11-437)

Sec. 11-438. Denial of applications or renewals.

(a) As used in this section, "application" shall mean (i) an application for a license, (ii) an application for a permit, (iii) an application for a license renewal, and (iv) an application for a permit renewal.

(b) Whenever an application is denied, the City Treasurer shall notify the applicant in writing of the reasons for such action; such notice shall also advise the applicant of the applicant's right to request a hearing before the City Council. If the applicant desires to request a hearing before the City Council to contest the denial of an application, such request shall be made in writing to the Clerk of the City Council within ten (10) days of the applicant's receipt of the notification of the denial of the application. If the applicant timely requests such a hearing, a public hearing shall be held within fifteen (15) days of the Clerk's receipt of such request before the City Council at which time the applicant may present evidence as to why the application should not be denied. The City Council shall hear evidence concerning the basis for denial of the application and shall affirm or reverse the denial of an application at the conclusion of said hearing; any such hearing shall be concluded no later than twenty-two (22) days after the applicant's receipt of notification of denial of an application, unless an extension beyond such time period is requested by the applicant and granted by the City Council.

(c) If the City Council affirms the denial of an application, the Office of the City Attorney shall institute suit for declaratory judgment in a court of record in Hamilton County, Tennessee, within five (5) days of the date of any such denial seeking an immediate judicial determination of whether such application has been properly denied under the law.
(Ord. No. 10270, § 3, 8-1-95)

Secs. 11-439—11-449. Reserved.

ARTICLE XV. TEEN SOCIAL CLUBS

Sec. 11-450. Definitions.

For purposes of this Article, the words and phrases used herein shall have the following meanings, unless otherwise clearly indicated by the context:

(a) "Teen social club" shall mean any business establishment which advertises itself, holds itself out to the public as, or is operated primarily as a "Teen Club," "Teen Dance Club," and/or any business establishment which provides entertainment or social activities primarily to teenagers of the ages

restricted by the Curfew Ordinance of the City of Chattanooga regardless of whether such establishment is conducted, operated or maintained for a profit; "teen social club" does not include movie theaters, amusement parks or a sporting event or facility.

(b) "Advertise" shall mean promotional signs on the premises, off-premise signs and any written, live, videotaped or audiotaped promotional presentations for the business establishment which feature or promote the attendance of teenagers.

(c) "Alcoholic beverages" shall mean beer or other beverages of like alcoholic content regulated by Chattanooga City Code, Chapter 5, and any establishment selling or serving liquor or wine regulated by the provisions of T.C.A. § 57-1-101, et seq.

(d) "Curfew Ordinance" shall mean Chattanooga City Code, Chapter 25, Sections 25-2 through 25-5.

(e) "Entertainment and social activities" shall mean activities at establishments which feature live music for attendance by teenagers, activities at establishments which feature recorded music activities attended by teenagers, and activities at establishments which provide dancing activities for teenagers.

(f) "Licensed premises" shall include the building or facility in which the teen social club is located and any parking area provided by the establishment for its patrons.

(g) "Teenager" shall mean a person age thirteen (13) up to age eighteen (18).

(Ord. No. 10164, § 1, 1-24-95; Ord. No. 11007, § 1, 5-9-00)

Sec. 11-451. Location restrictions.

No part of the licensed premises of a teen social club operating within the City of Chattanooga shall be located within five hundred (500) feet of the nearest property line of any property on which alcoholic beverages are served or sold or within five hundred (500) feet of the nearest property line of any property on which is located an adult oriented establishment as defined in § 11-422 of this Code.

(Ord. No. 10164, § 1, 1-24-95; Ord. No. 11007, § 1, 5-9-00)

Sec. 11-452. License Application.

Any teen social club located within the City of Chattanooga shall obtain a license for continued business operation from the city treasurer which shall be displayed in a conspicuous public place in the teen social club. Any operator of a teen social club desiring to obtain a license shall make application to the city treasurer and shall pay an annual license fee to the City of fifty dollars ($50.00). The failure to obtain a license pursuant to this section shall constitute a violation of this section and is subject to the civil penalties authorized by Chattanooga City Code § 1-8.

(Ord. No. 10164, § 1, 1-24-95)

Sec. 11-453. Revocation of license or permit.

(a) The city treasurer shall revoke a license granted to any teen social club for any of the following reasons:

(1) The operator, or any employee of the operator, violates any provision of this Article, provided, however, that in the case of a first offense by an operator where the conduct was solely that of an employee, the penalty shall not exceed a suspension of thirty (30) days if the city treasurer shall find that the operator had no actual or constructive notice of such violation and could not, by the exercise of due diligence, have had such actual or constructive knowledge.

(2) Any intoxicating liquor, cereal malt beverage, narcotic or controlled substance is allowed to be sold or consumed on the licensed premises.

(3) Any operator allows continuing violations of the rules and regulations of the Chattanooga-Hamilton County Health Department.

(4) More than five (5) violations of the Curfew Ordinance occur on the licensed premises in a twelve (12) month period.

(b) Before revoking or suspending the license of any teen social club, the city treasurer shall give written notice to the person or company in whose name such license is issued notifying such license holder of the charges against the teen social club and setting a hearing date not less than five (5) business days in advance in which the licensee may appear and be heard. The decision of the city treasurer shall be final.
(Ord. No. 10164, § 1, 1-24-95; Ord. No. 11007, § 2, 5-9-00)

Sec. 11-454. Hours of operation; Inspection by Police Department.

(a) Teen social clubs shall be closed between the hours of 11:00 p.m. to 6:00 a.m. provided that on Friday and Saturday nights such clubs may remain open until 12:00 midnight, and provided further that on Sunday mornings such clubs shall be closed until 12:00 noon.

(b) Teen social clubs shall be open to inspection at all reasonable times by any officer of the Chattanooga Police Department.
(Ord. No. 10164, § 1, 1-24-95; Ord. No. 11007, § 2, 5-9-00)

Sec. 11-455. Responsibilities of operators; exemptions; identification of minors.

(a) No teen social club within the City of Chattanooga shall allow a teenager under the age of sixteen (16) years to enter the licensed premises during any hours in violation of the Curfew Ordinance.

(b) No teen social club within the City of Chattanooga shall allow any teenager under the age of sixteen (16) years to remain on the licensed premises during any hours in violation of the Curfew Ordinance.

(c) All teen social clubs shall post in a visible location at the entrance and inside the establishment upon signage approved by the Chief of Police the applicable curfew hours for teenagers as specified by the Curfew Ordinance.

(d) All operators of teen social clubs shall be personally responsible and vicariously liable without proof of intent for any violations of the Curfew Ordinance occurring during any hours of operation during which teenagers would be prohibited from being present on the licensed premises under the provisions of the Curfew Ordinance.

(e) The following are exceptions to the operation of the Curfew Ordinance:

(1) At any time if a minor is accompanied by such minor's parent or legal guardian;

(2) When accompanied by a person age eighteen (18) or over authorized by a parent or guardian of such minor to take such parent or guardian's place in accompanying the minor for a designated period of time and purpose within a specified area;

(3) If the minor is legally employed for the period from forty-five (45) minutes before to forty-five (45) minutes after work while going directly between the minor's home and place of employment. This exception shall also apply if the minor is in a public place during curfew hours in a course of the minor's employment. To come within this exception, the minor must be carrying written evidence of employment which is issued by the employer;

(4) When returning home by direct route from and within thirty (30) minutes of the termination of a school activity or an activity of a religious organization or a place of entertainment open to the public at large such as a movie, play or sporting event. This exception shall not apply beyond 1:00 a.m.

(5) In the case of reasonable necessity, but only after such minor's parent has previously communicated to law enforcement personnel the facts establishing such reasonable necessity relating to specified streets at a designated time for a described purpose, including place or origin and destination. A copy of such communication, or the record thereof, an appropriate notation of the time it was received and of the names and addresses of such parent or guardian and minor constitute evidence of qualification under this exception;

(6) When exercising freedom of religion or freedom of speech, provided that the minor shall have shown evidence of the good faith of such exercise and provided notice to the City by previously delivering to the Chief of Police a written communication signed by such minor with the minor's home address and telephone number, specifying when, where and in what manner the minor will be on the streets at night during hours when the curfew is still otherwise applicable to the minor in the exercise of the minor's rights specified in such communication.

(f) Each teen social club operator shall be required at all times to identify by wristband any individuals on the licensed premises under the age of sixteen (16) years. Photo identification shall be required of all minors under the age of sixteen (16) years admitted into a teen social club and an entry log shall be kept of the information contained within the photo identification, including the name, age and birth date of all patrons under the age of sixteen (16) years. Such log shall be provided to any officer of the Chattanooga Police Department upon request.
(Ord. No. 11007, § 3, 5-9-00)

ARTICLE XVI. SMALL BUSINESS INCENTIVE GRANT PROGRAM

Sec. 11-456. Definitions.

"**Board**" means the Industrial Development Board of the City of Chattanooga, Tennessee.

"**City**" means the City of Chattanooga, Tennessee.

"**Clerk**" means Clerk of the City Council for the City of Chattanooga, Tennessee.

"**ECD**" means the City's Department of Economic and Community Development.

"**Full-time job**" means a job provided by a Qualified Small Business at a Qualified Project Site at which the person employed in such job is compensated for working at least thirty (30) hours per week at the Qualified Project Site.

"**Fund**" means funds appropriated by the City to the Board for the purposes set out in this chapter or such other funds as from time to time may become available to the Board.

"**City Council**" means the duly elected Council of the City of Chattanooga, Tennessee.

"**Prohibited Business**" means those businesses whose primary source of revenue at the Qualified Project Site is derived from the sale or delivery of services directly to consumers in the adult entertainment, financial services, nightclubs, tattoo parlors, body piercing shops, cash advance branch banking, check cashing, title loan, pawnshops, tobacco paraphernalia, and businesses operating from residential property.

"**Qualified Project**" means property located within the boundaries of the City occupied by a Qualified Small Business.

"**Qualified Project Site**" means a singular physical location at which a Qualified Small Business operates a non-prohibited business.

"Qualified Small Business" means an entity, including subsidiaries and parent organizations of the same that meets all of the following criteria at the time of application for a Small Business Economic Development Incentive grant under this chapter:

1. Is engaged in a for-profit service or manufacturing industry business enterprise that is not a Prohibited Business as defined herein;
2. Creates a minimum of five (5) new full-time jobs at a Qualified Project Site within a contiguous eighteen (18) month period; and
3. Employs fewer than one hundred (100) persons, regardless of the locale, who are compensated for working at least thirty (30) hours per week.

A. Small business economic development incentive grants:

1. The City may at its discretion make grants to the Board for the small business economic development incentive grant program created by this chapter. The small business economic development incentive grants are intended to encourage economic development by small business enterprises within the boundaries of the City and to encourage and incentivize these small business enterprises as set out below.
2. The Board shall make small business economic development incentive grants to Qualified Small Businesses consistent with this chapter and the rules and regulations of the IDB subject to the availability of funding approved for the program by the City through the City's operating budget ordinance or from such other sources of funds as from time to time may become available to the Board.
3. The Board shall only authorize the use of the Fund to reimburse a Qualified Small Business for all or part of its documented expenditures related to the acquisition, preparation or occupancy of office space and other facilities with the City, costs of moving to or relocating within or to the City, costs associated with initial or on-going training of employees located at the Qualified Project Site, or other such costs or expenses that are consistent with the rules and regulations of the IDB or as are approved by the Board from time to time.
4. The total amount awarded by the IDB to Qualified Small Businesses under this Chapter shall not exceed the total amounts in the Fund.
5. The small business economic development incentive grant awarded to a Qualified Small Business during any given year shall be determined by multiplying the number of new full-time jobs created at the Qualified Project Site during the preceding eighteen (18) month period by the amount of one thousand dollars ($1,000.00). This amount will be multiplied at a rate equal to the percentage of the average wage as compared to one hundred percent (100%) of the average wage of the Chattanooga Hamilton County metropolitan statistical area as last published by the US Department of Labor, Bureau of Labor Statistics. The IDB may also make an additional award per each new full-time job created at the Qualified Project Site during preceding eighteen (18) month period based on criteria created and established by the rules and regulations of the IDB. This additional award shall be used by the IDB to encourage and incentivize these small business enterprises related to various polices and initiatives of the City and City Council as determined by the Board. [In addition, authorized expenditures or equipment will be reimbursed.]
6. The maximum annual payment to any Qualified Small Business in any given year shall be ten thousand dollars ($10,000.00), unless otherwise determined by the Board with assistance from the ECD.

7. Any grant made in accordance with the provisions of this section will be memorialized by written agreement between the Board and the Qualified Small Business.

B. In conjunction with the Board, the ECD shall be responsible for administering the small business economic development incentive grant program. The Board, with assistance from the ECD and its discretion based upon the totality of circumstances to award or not award, shall adopt rules consistent with this chapter for the administration of the program created by this chapter. Upon adoption, such rules shall be filed with the Clerk.

C. The ECD shall provide written notice to the Chattanooga City Council within thirty (30) days of each small business economic development incentive grant made pursuant to this chapter.

(Ord. 12853, § 1, 9-23-14; Ord. No. 13349, §§ 1, 2, 8-21-18; Ord. No. 14223, § 1, 4-22-25)

ARTICLE XVII. SMALL BUSINESS CONSTRUCTION MITIGATION GRANTS

Sec. 11-457. Definitions.

The City Council and the Mayor recognize the importance of obtaining Small Business Construction Mitigation Grants which are considered useful for the Economic and Community Development of the City. It is established that these Grants shall be awarded by the Industrial Development Board for the City from funds allocated to the Department of Economic and Community Development under specific circumstances set forth in this Article utilizing the following definitions:

Definitions:.

Board means the Industrial Development Board of the City of Chattanooga, Tennessee.

City means the City of Chattanooga, Tennessee.

Clerk means Clerk of the City Council for the City of Chattanooga, Tennessee.

Construction Mitigation Zone means the impacted geographic area as defined by the City of Chattanooga Department overseeing the construction project.

ECD means the City's Department of Economic and Community Development.

Fund means funds appropriated by the City to the Board for the purposes set out in this Article or such other funds as from time to time may become available to the Board.

City Council means the duly elected Council of the City of Chattanooga, Tennessee.

Prohibited Business means those businesses whose primary source of revenue at the Qualified Project Site is derived from the sale or delivery of services directly to consumers in the adult entertainment, financial services, nightclubs, tattoo parlors, body piercing shops, cash advance branch banking, check cashing, title loan, pawnshops, and businesses operating from residential property.

Qualified Project means property located within the boundaries of the City occupied by a Qualified Business.

Qualified Project Site means a singular physical location at which a Qualified Business operates a non-prohibited business.

Qualified Business means an entity, including subsidiaries and parent organizations of the same that meets all of the following criteria at the time of application for a Small Business Construction Mitigation Grant under this Article:

1. Is engaged in a for-profit service or manufacturing industry business enterprise that is not a Prohibited Business as defined herein; and

2. Employs fewer than one hundred (100) persons, regardless of the locale, who are compensated for working at least thirty (30) hours per week; and

3. Is located in a designated construction mitigation zone.

(Ord. No. 13025, § 1, 2-16-16; Ord. No. 13297, § 1, 4-17-18)

Sec. 11-458. Small Business Construction Mitigation Grants.

A. The City Council may at its discretion make grants to the ECD which shall be distributed by the Board for Small Business Construction Mitigation Grant program created by this Article. The Small Business Construction Mitigation Grants are intended to encourage economic development by business enterprises within the boundaries of the City and to encourage and support these business enterprises as set out below.

B. The Board shall make the Small Business Construction Mitigation Grants to Qualified Businesses consistent with this article and the rules and regulations of the IDB subject to the availability of funding approved for the program by the City through the City's operating budget ordinance or from such other sources of funds as from time to time may become available to the Board.

C. The Board shall only authorize the use of the Fund to reimburse a Qualified Business for all or part of its documented expenditures related to maintaining and growing a business impacted by a construction project, or other such costs or expenses that are consistent with the rules and regulations of the IDB or as are approved by the Board from time to time.

D. The total amount awarded by the IDB to Qualified Businesses under this Chapter shall not exceed the total amounts in the Fund.

E. The Small Business Construction Mitigation Grants awarded to a Qualified Business during any given year shall not exceed the amount of one thousand dollars ($1,000.00), unless otherwise determined by the Board with assistance from the ECD.

F. Any grant made in accordance with the provisions of this section will be memorialized by written agreement between the Board and the Qualified Business.

G. In conjunction with the Board, the ECD shall be responsible for administering the Small Business Construction Mitigation Grant program. The Board, with assistance from the ECD and its discretion based upon the totality of circumstances to award or not award, shall adopt rules consistent with this chapter for the administration of the program created by this Article. Upon adoption, such rules shall be filed with the Clerk.

H. The ECD shall provide written notice to the Chattanooga City Council within thirty (30) days of each Small Business Construction Mitigation Grant made pursuant to this chapter.

(Ord. No. 13025, § 1, 2-16-16; Ord. No. 13297, § 1, 4-17-18)

Secs. 11-459—11-476. Reserved.

ARTICLE XVIII. INNOVATION DISTRICT GRANTS*

Sec. 11-477. Definitions.

Board means the Industrial Development Board of the City of Chattanooga, Tennessee.

***Editor's note—**Ord. No. 13027, § 1, adopted March 1, 2016, set out provisions intended for use as Art. XVII, §§ 11-457, 11-458. For purposes of classification and to prevent duplicate article and section numbers, and at the editor's discretion, these provisions have been included as Art. XVIII, §§ 11-477, 11-478.

City means the City of Chattanooga, Tennessee.

City Council means the duly elected Council of the City of Chattanooga, Tennessee.

Clerk means Clerk of the City Council for the City of Chattanooga, Tennessee.

ECD means the City's Department of Economic and Community Development.

Full-time job means a job provided by a Qualified Business at a Qualified Project Site at which the person employed in such job is compensated for working at least thirty (30) hours per week at the Qualified Project Site.

Fund means funds appropriated by the City to the Board for the purposes set out in this chapter or such other funds as from time to time may become available to the Board, e.g. Technology Workforce Development Fund.

Prohibited Business means those businesses whose primary source of revenue at the Qualified Project Site is derived from the sale or delivery of services directly to consumers in the adult entertainment, financial services, nightclubs, tattoo parlors, body piercing shops, cash advance branch banking, check cashing, title loan, pawnshops, tobacco paraphernalia, and businesses operating from residential property.

Qualified Project means property located within the boundaries of the City occupied by a Qualified Small Business.

Qualified Project Site means a singular physical location at which a Qualified Small Business operates a non-prohibited business.

Qualified Business means an entity, including subsidiaries and parent organizations of the same that meets all of the following criteria at the time of application for an Innovation District Business Economic Development Incentive grant under this chapter:

1. Is engaged in a for-profit service or manufacturing industry business enterprise that is not a Prohibited Business as defined herein; and

2. Creates a minimum of ten (10) jobs new full-time jobs at a Qualified Project Site in an eighteen (18) month period.

3. Employs persons who are compensated for working at least thirty (30) hours per week.

(Ord. No. 13027, § 1, 3-1-16; Ord. No. 13350, §§ 1—3, 8-21-18)

Sec. 11-478. Innovation District business economic development incentive grants.

1. The City may at its discretion make grants to the Board for the Innovation District economic development incentive grant program created by this chapter. The Innovation District economic development incentive grants are intended to encourage economic development by business enterprises within the boundaries of the Innovation District within the City and to encourage and incentivize these business enterprises as set out below.

2. The Board shall make Innovation District economic development incentive grants to Qualified Businesses consistent with this chapter and the rules and regulations of the IDB subject to the availability of funding approved for the program by the City through the City's operating budget ordinance or from such other sources of funds as from time to time may become available to the Board.

3. The Board shall only authorize the use of the Fund to reimburse a Qualified Business for all or part of its documented expenditures related to the acquisition, preparation or occupancy of office space and other facilities with the Innovation District of the City, costs of moving to or relocating within or to the

Innovation District of the City, costs associated with initial or on-going training of employees located at the Qualified Project Site, or other such costs or expenses that are consistent with the rules and regulations of the IDB or as are approved by the Board from time to time.

4. The total amount awarded by the IDB to Qualified Businesses under this Chapter shall not exceed the total amounts in the Fund.

5. The Innovation District economic development incentive grant awarded to a Qualified Small Business during any given year shall be determined by multiplying the number of new full-time jobs created at the Qualified Project Site during the preceding eighteen (18) month period by the amount of one thousand dollars ($1,000.00). The IDB may also make an additional award per each new full-time job created at the Qualified Project Site during the preceding eighteen (18) month period based on criteria created and established by the rules and regulations of the IDB. This additional award shall be used by the IDB to encourage and incentivize these business enterprises related to various polices and initiatives of the City and City Council as determined by the Board.

6. Any grant made in accordance with the provisions of this section will be memorialized by written agreement between the Board and the Qualified Business.

In conjunction with the Board, the ECD shall be responsible for administering the Innovation District economic development incentive grant program. The Board, with assistance from the ECD and its discretion based upon the totality of circumstances to award or not award, shall adopt rules consistent with this chapter for the administration of the program created by this chapter. Upon adoption, such rules shall be filed with the Clerk.

The ECD shall provide written notice to the Chattanooga City Council within thirty (30) days of each Innovation District economic development incentive grant made pursuant to this chapter.
(Ord. No. 13027, § 1, 3-1-16; Ord. No. 13350, §§ 1—3, 8-21-18; Ord. No. 13350, §§ 1—3, 8-21-18)

Secs. 11-479—11-489. Reserved.

ARTICLE XIX. WASTE TIRE HAULERS*

Sec. 11-490. Purpose and intent.

It is declared to be the purpose and intent of the City to protect the public health, safety, and welfare of its citizens, prevent the spread of disease and creation of nuisances, and to protect and enhance the quality of its environment. The purpose of this Article is to institute and maintain a comprehensive city-wide program for tire disposal which will ensure that the storage, transportation, collection, processing, and disposal of tires does not adversely affect the health, safety, and well-being of the public and does not degrade the quality of the environment.
(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-491. Definitions.

As used in this Article, the following words and phrases shall have the meaning ascribed to them herein:

A. *"Dump"* shall mean to throw, discard, place, deposit, discharge, bury or dispose of.

***Editor's note—**Ord. No. 13047, § 1, adopted May 5, 2016, amended the Code by adding provisions designated as Art. XVII. Inasmuch as there were already provisions so designated, the provisions have been redesinated as Art. XIX, at the discretion of the editor.

B. *"Manifest"* shall mean a form or document used for identifying the quantity and the origin, routing, and destination of tires during transportation from the point of generation, through any intermediate points, to an end user, processor or disposer.

C. *"Person"* shall mean any and all persons, natural or artificial, including any individual, firm or association.

D. *"Tire"* shall mean a continuous solid or pneumatic rubber covering encircling the wheel of a bicycle, motorcycle, automobile, truck, trailer, tractor or other vehicle.

E. *"Tire Business"* shall mean and include any place or establishment engaged in the business of selling tires or that generates waste tires and is occupied, used or maintained for the purpose of offering, transporting, repairing, processing, storing, utilizing, and disposing of any and all types of such tires.

F. *"Tire Recycling Facility"* shall mean a facility, mandated and licensed pursuant to the Tennessee Solid Waste Management Act, which recycles or properly disposes of tires.

G. *"Waste tire"* shall mean a tire that is no longer suitable for its original intended purpose because of wear, damage or defect. Waste tire also includes any tire that is destined for a tire disposer or reprocessor (*i.e.*, recapper).

H. *"Waste tire hauler"* shall mean any person engaged in the business of picking up or transporting waste tires for the purpose of removal to a tire recycling facility, waste tire disposer, processor, end user, or disposal facility.

I. *"Waste tire disposer"* shall mean any person who is approved by the Tennessee Department of Environment and Conservation ("TDEC") to receive waste tires from waste tire generators or waste tire haulers for the purpose of waste tire processing, shredding or otherwise facilitating recycling or resource recovery techniques for waste tires.

J. *"Waste tire generator"* shall mean any person or entity that generates waste tires. Generators may include, but are not limited to, retail tire dealers, retreaders, waste tire disposers not approved by TDEC, automobile dealers, private company vehicle maintenance shops, garages, service stations.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-492. Tire business permits.

All tire businesses located within the City limits engaging in the resale of tires or the generation of waste tires shall be issued a permit annually by the City of Chattanooga, by and through its Land Development Office ("LDO") for a non-refundable fee of twenty-five dollars ($25.00). Tire businesses with multiple locations must purchase a permit for each location. Tire businesses which utilize their own trucks to transport waste tires will receive one decal included with the permit fee. A separate decal must be purchased by such business for any additional truck utilized by the tire business to transport waste tires at a cost of fifteen dollars ($15.00) per decal. The City will conduct random inspections of such tire businesses for the sake of monitoring compliance with the foregoing requirement.

A. Application.

Each person, firm or corporation obligated to comply with the permit requirement set forth herein shall make written application to the City. The application shall be made on a form obtained from the LDO setting forth, among other things, the following:

1. Name, physical address, telephone, and fax number of the applicant;

2. Tax identification number or taxpayer identification number;

3. Proof of current City Business License, issued to the applicant at the proposed business address;
4. City Code Enforcement Use and Occupancy Certificate;
5. Name, mailing address, telephone, and fax number of the owner of the tire business (if different from number 1 above);
6. The estimated number of tires that will be stored on site;
7. The current physical address of the site;
8. A statement setting forth and describing the available space for properly accommodating and protecting all tires;
9. Proof of insurance required in accordance with the Tennessee Financial Responsibility laws; and
10. Such other and further information as the LDO may require.

B. Annual Fees.

1. All permit and decal fees are due annually by July 1st, of each calendar year at the City of Chattanooga LDO. These annual fees shall be paid in advance of the issuance of such permit and decal and shall be prorated as necessary.
2. A current valid permit or decal may be replaced by the LDO for a fee of fifteen dollars ($15.00).

C. Issuance. The LDO shall issue a permit and decal to a tire business which submits the required and completed application, pays to the City the fee as required in this Article, and has demonstrated compliance with this Article and all applicable city ordinances. Each tire business registered in accordance with the provisions of this Article shall immediately post such permit and decal in a prominent manner, or cause such permit to be posted in a conspicuous place within the premises where such tire business is thereby authorized to be established, maintained or operated. The decal shall be conspicuously displayed on each vehicle owned by such tire business that is utilized to transport used or waste tires. Any permit or decal issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred without approval by the LDO and shall expire upon termination of the existence of the tire business or revocation of such business' permit.

D. Effective Period. The permit shall be effective beginning on July first until the next ensuing thirtieth day of June, on and after which date it shall be null and void.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-493. Tire hauler permit.

All tire haulers, not affiliated with a tire business that is properly permitted as required herein, transporting used or waste tires within the City limits shall be issued a permit and decal annually by the City of Chattanooga, by and through its LDO for a non-refundable fee of twenty-five dollars ($25.00). Tire haulers with multiple locations must purchase a permit for each location. Tire haulers will receive one decal included with the permit fee. A separate decal must be purchased by such hauler for any additional vehicles utilized by the hauler to transport waste tires at a cost of fifteen dollars ($15.00) per decal.

A. Application. Every person, firm or corporation obligated to comply with the permit and decal requirement set forth herein shall make written application to the City. The application shall be made on a form obtained from the City of Chattanooga LDO setting forth, among other things, the following:

1. Name, physical address, telephone, and fax number of the applicant;

2. Tax identification number or taxpayer identification number;

3. Proof of current City Business License, issued to the applicant at the proposed business address;

4. Proof of insurance required in accordance with the Tennessee Financial Responsibility laws; and

5. Such other and further information as the LDO may require.

B. Annual Fees.

1. All permit and decal fees are due annually by July 1st, of each calendar year at the City of Chattanooga LDO. These annual fees shall be paid in advance of the issuance of such permit, such fee shall be prorated as necessary.

2. A current valid permit or decal may be replaced by the LDO for a fee of fifteen dollars ($15.00).

C. Issuance. The LDO shall issue a permit and decal to a tire hauler who submits the required and completed application, pays to the City the fee as required in this Article, and has demonstrated compliance with this Article and all applicable city ordinances. Each waste tire hauler registered in accordance with the provisions of this Article shall conspicuously post and maintain such decal in his/her vehicle which is used for transporting tires, at all times. Any permit or decal issued hereunder shall not be sold, assigned, mortgaged or otherwise transferred without approval by the LDO and shall expire upon termination of the existence of the tire hauler's business or revocation of such hauler's permit.

D. Effective Period. The permit shall be effective beginning on July first until the next ensuing thirtieth day of June, on and after which date it shall be null and void.

E. Permit Exemptions. The following persons are exempt from the tire hauler permit requirements set forth herein:

1. A tire hauler who is regulated or licensed by, and is currently in compliance with, state or federal agencies such as the Department of Transportation; or

2. A private individual transporting the individual's own waste tires to an approved tire disposal or tire recycling facility.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-494. Denial of permit or renewal; suspension or revocation of permit.

In addition to the penalties set forth in Section 11-467, the LDO may refuse to issue or renew a tire business or tire hauler permit or may suspend or revoke such permit if:

A. The applicant or permit holder refuses to allow entry into the tire business by the authorized representatives of the City or otherwise willfully obstructs the inspection of the tire business; or

B. There are repeated or a serious violation(s) of any city ordinance by the tire business or tire hauler; or

C. The tire business or tire hauler fails to comply with any provisions of this Article and/or any other applicable city ordinance(s); or

D. The tire business or tire hauler fails to comply with any applicable state or federal law, rule or regulation;

E. The tire business knowingly authorizes a tire hauler who is not properly permitted as required in Section 11-460 to transport tires on behalf of such business.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-495. Destruction of tires.

Any tire that is no longer suitable for its original intended purpose or deemed unfit for resale by a tire business shall be rendered unusable and properly disposed of at an authorized tire disposal or recycling facility. Each tire business shall have six (6) months from the effective date of this ordinance to comply with this provision. Failure to comply with this requirement shall be grounds for revocation of the permit holder's permit in accordance with Section 11-461 as set forth above.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-496. Storage of tires.

Tire Businesses shall properly store tires at each facility in accordance with local, state, and federal law to present. Each tire business shall at all times during storage:

A. Store all tires intended for resale in such a manner so as to prevent potential nuisances of litter, insect breeding, fire hazards, standing water, and other health risks;

B. Store tires not intended for resale in covered or enclosed areas, or under an impermeable cover, in accordance with applicable health and safety laws, including but not limited to the City's fire prevention code, to prevent the accumulation of water;

C. Accumulate all tires in piles in accordance with the City's fire prevention code;

D. Isolate all tires from other stored materials that may create hazardous products if there is a fire, including, but not limited to, lead acid batteries, fuel tanks, solvent barrels, and pesticide containers.

E. Store no more than one hundred (100) tires in each bay or one hundred (100) tires per one thousand five hundred (1,500) square feet of inside storage space.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-497. Place for disposal of tires.

A. It shall be unlawful for any person or tire business to cause, suffer or allow the dumping of tires at any place in the City of Chattanooga including, without limitation, in or on any public highway, road, street, alley or thoroughfare, including any portion of the right of way thereof, any public or private property in the City or any waters in the City. Notwithstanding the foregoing, residential property owners within the City may properly discard up to four rimless used or waste tires at a tire recycling facility designated by the City.

B. It shall be unlawful for any person or tire business to cause, suffer or allow the disposal of whole tires in a landfill.

C. Tires shall be properly disposed of in accordance with Section 11-462 by the delivery and manifesting of tires to an authorized tire disposal or tire recycling facility designated by the City. Tire Businesses contracting with a tire hauler(s) for the proper disposal of tires generated by such business shall require such hauler(s) utilize a transmittal manifest documenting the pick-up and delivery of the tires to an authorized tire disposal or tire recycling facility.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-498. Disposal records/transmittal manifest.

A. Tire Businesses shall keep disposal records in the form of a transmittal manifest, as prescribed by the City, at each business location for a minimum of three years and make such records readily available upon request at reasonable hours for inspection by representatives of the City. The manifest must be maintained and signed off in quadruplicate and clearly state the following:

1. Name, address, telephone number, permit number and authorized signature of the tire hauler; and
2. Name, address, telephone number, and authorized signature of the tire business who is contracting for the removal of the tires along with the permit number for such business; and
3. Date of removal/transport and the number of tires being transported; and
4. Name, address, and telephone number of the location where the tires are to be delivered; and
5. Upon delivery, the name and signature of the person accepting the tires, including the date of acceptance.

B. The manifest required by this section shall at all times accompany tires while in transit. Any tire business directly delivering waste or used tires generated at its business location to a tire disposal or tire recycling facility must also utilize the transmittal manifest and make such manifest available for production or inspection by representatives of the City, upon request. The original manifest shall be maintained by the tire business evidencing all information and signatures required herein, notwithstanding the use of a tire hauler or direct delivery by the tire business. A tire hauler contracted to deliver tires to a recycling facility or disposal facility must maintain a duplicate copy of the manifest reflecting the delivery of such tires for proper disposal. The tire recycling or tire disposal facility shall sign the manifest upon acceptance of the tires and also maintain a copy of the manifest for the facility's records. The tire hauler shall cause a duplicate of the manifest signed by the tire recycling or tire disposal facility accepting such tires to be returned to the tire business for its records.
(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-499. Administration/enforcement.

A. Administration and enforcement of this Article shall be the responsibility of the City of Chattanooga LDO, Chattanooga Police Department and Public Works Department. The City, by and through its authorized representatives, is hereby authorized to enter any property regulated by this ordinance, at reasonable or necessary times in order to properly inspect for violations.

B. The LDO is hereby authorized to promulgate all such rules and regulations considered necessary and proper to effectuate the implementation and enforcement of this Article.
(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-500. Violations and penalties.

In addition to the penalties set forth in Section 11-461, any tire business or tire hauler violating or failing to comply with any provision of this ordinance shall be guilty of a misdemeanor, subject to a civil penalty of fifty dollars ($50.00) for each offense as determined by a division of the City Court. Each day of continued violation shall constitute a separate offense.

A. The improper storage of one or more tires shall constitute a separate offense per tire and be punishable by a fine of fifty dollars ($50.00) for each improperly stored tire on the location of the tire business. Each day of continued violation of this subsection constitutes a separate offense.

B. The transport of one (1) or more tires without the required permit and decal shall constitute a separate offense per tire and be punishable by a fine of fifty dollars ($50.00) for each tire being transported in violation of this Article. Each day of continued violation of this subsection constitutes a separate offense.

C. The improper dumping of a tire shall constitute a separate offense per tire and be punishable by a fine of fifty dollars ($50.00) for each tire found improperly dumped that is related back to a specific tire business. Each day of continued violation of this subsection constitutes a separate offense.

(Ord. No. 13047, § 1, 5-3-16)

Sec. 11-501. Injunctive relief.

In addition to, and cumulative of, all other penalties herein provided, the City shall have the right to seek injunctive relief, for any violation(s) of this Article.
(Ord. No. 13047, § 1, 5-3-16)

Secs. 11-501—11-509. Reserved.

ARTICLE XX. Reserved*

ARTICLE XXI. DOWNTOWN CENTRAL BUSINESS IMPROVEMENT DISTRICT (DOWNTOWN CBID)

Sec. 11-525. District created; boundary.

There is established and created the Chattanooga Downtown Central Business Improvement District, pursuant to the Central Business Improvement District Act of 1990, under T.C.A., Title 7, Chapter 84, Part 5, which shall include all properties within that area of the city bounded and generally described as follows:

A portion of Downtown Chattanooga bounded roughly by the Tennessee River to the North, US-27 to the West, 11th Street to the South, and primarily Cherry Street and Georgia Avenue to the East. The boundary shall extend through the centerline of 11th Street, Cherry Street, Georgia Avenue, and any other thoroughfare along its exterior boundaries as illustrated on the Map set out at the end of this Section.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-526. Purposes and mission.

(a) The City Council hereby finds and declares that the establishment of the Downtown CBID will promote the successful and continued revitalization of Downtown Chattanooga, thereby furthering the health, safety, and general economic welfare of Downtown Chattanooga.

***Editor's note—**Ord. No. 13981, § 1, adopted May 16, 2023, repealed the former Ch. 11, Art XX., §§ 11-510—11-519, and enacted a new Ch. 38, Art. V, Div. 27, §§ 38-431—38-441 as set out herein. The former Art. X pertained to similar subject matter and derived from Ord. No. 13194, § 5, adopted July 11, 2019; Ord. No. 13286, § 1, adopted March 6, 2018; Ord. No. 13515, § 2, adopted Dec. 17, 2019; Ord. No. 13795, § 1, adopted April 5, 2022; Ord. No. 13931, § 1, Dec. 20, 2022.

(b) The purpose and mission of the Downtown CBID is hereby declared to be: To undertake and provide an enhanced level of programs and services, not currently provided by the City government of Chattanooga, which will help maintain the Downtown CBID area as a clean, safe and vibrant place to work, live, shop, play and invest.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-527. Liberal construction.

This ordinance, being necessary to secure and preserve the public health, safety, convenience and welfare, shall be liberally construed to effectuate its purposes.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-528. Definitions.

As used in this ordinance, unless a contrary meaning clearly appears:

"Assessed value" means value as assessed for municipal tax purposes.

"CBID Board" or *"Board"* means the board created herein to serve as the District Management Corporation.

"City" means the City of Chattanooga, Tennessee.

"Commercial Property" means any commercial property, multi-family residences, apartments, or property owned by an institutional non-profit entity located in the District.

"County" means Hamilton County, Tennessee.

"District" or *"Downtown Central Business Improvement District"* or *"Downtown CBID"* means the central business improvement district created by this article.

"District Management Corporation" means the board or organization created or the organization appointed to act as an advisory board for the purpose of making and carrying out recommendations for the use of special assessment revenues, and for the purpose of administering activities within and for the District and the provision of services and projects within and for the District.

"Initiating petition" means the petition filed in the Office of the City Clerk requesting the establishment of the Downtown CBID.

"Owner" means the record owner of real property in fee or a representative of such owner duly authorized to act for and on behalf of said owner.

"Residential Condominium" means an estate in real property, created under the Tennessee Horizontal Property Act or the Tennessee Condominium Act of 2008, consisting of ownership of a fractional undivided fee interest in common with other unit owners in common elements, together a separate fee interest in a unit and all appurtenant rights, title, and interests.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-529. District management corporation.

(a) There is hereby authorized and established a CBID Board to serve as the District Management Corporation for the purpose of administering the special assessment revenues and the activities within and for the Downtown CBID, the making of improvements within and for the Downtown CBID, and the provision of services and projects within and for the Downtown CBID.

(b) The CBID Board shall consist of at least nine (9) but no more than fifteen (15) members. Three (3) members shall be appointed as provided in Subsections (c) and (d) below. The CBID Board shall select members to serve staggered, three-year terms, limited to serving two (2) consecutive full terms. These CBID Board members shall be Owners or Lessees of Commercial Property within the district. At least two (2) of these CBID Board members shall be large property Owners (an Owner of a major hotel property or commercial office building in the district) and at least two (2) shall be small property Owners (an Owner of commercial property other than major hotel or office buildings in the District). At least two (2) members shall be commercial tenants (defined as any lessee of commercial property within the district) and at least one (1) member shall be a Residential Condominium Owner in the District. At least one (1) CBID Board member must own property North of 4th Street, and at least one (1) CBID Board member shall own property South of 4th Street. The seats shall be filled at an annual meeting upon nomination by the outgoing CBID Board members.

(c) The Speaker of the Senate of the State of Tennessee shall appoint the Senator whose senate district includes the majority of the area contained within the Downtown CBID to serve as an ex officio member, and the Speaker of the House of Representatives of the State of Tennessee shall appoint the representative whose house district includes the majority of the area contained within the Downtown CBID as an ex officio member. The ex officio members shall serve for the term for which they are elected and shall not be counted in determining the presence of a quorum.

(d) The member of City Council whose council district represents the majority of the CBID area, and/or his/her designee, shall serve as a member of the CBID Board for the term for which they are elected.

(e) Vacancies on the CBID Board for elected members shall be filled by the remaining Board members present and voting to fill the vacancy.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-530. District management corporation powers.

(a) In furtherance and not in limitation of the general powers conferred upon a central business improvement district by Chapter 84 of Title 7 of the Tennessee Code Annotated, and in keeping with the purposes of the Downtown CBID set forth herein, it is expressly provided that the District Management Corporation shall have the following powers as follows:

(1) Maintenance and cleaning services;

(2) Hospitality services;

(3) Streetscape and landscape programs;

(4) Communications and marketing, district advocacy and management;

(5) To provide services for the improvement and operation of the Downtown CBID and to supplement those provided by the City Government, as follows:

a. Promoting and marketing;

b. Advertising;

c. Health and sanitation;

d. Public safety;

e. Elimination of problems related to traffic and parking;

f. Security services;

g. Recreation;

h. Cultural enhancements;

i. Activities in support of business or residential recruitment, retention and management development;

j. Aesthetic improvements, including the decoration, restoration or renovation of any public space or of building facades and exteriors in public view which confer a public benefit;

k. Professional management, planning and promotion of the district;

l. Furnishing of music in any public place;

m. Design assistance;

n. Consulting with respect to planning, management, and development activities; and

o. Such other services as are authorized by Tennessee Code Annotated § 7-84-520.

(6) To enter into contracts and agreements with other persons or entities.

(7) To hire employees or retain agents, engineers, architects, planners, consultants, attorneys and accountants.

(8) To acquire, construct, install and operate public improvements contemplated by this ordinance and all property rights or interests incidental or appurtenant thereto, and to dispose of real and personal property and any interest therein including leases and easements in connection therewith.

(9) To manage, control, and supervise:

a. All the business and affairs of the Downtown CBID;

b. The acquisition, construction, and installation and operation of public improvements within the Downtown CBID; and

c. The operation of the Downtown CBID services therein.

(10) To construct and install improvements across and along any public street, alley, highway, stream of water or water course in accordance with state and local laws, rules, and regulations.

(11) To exercise all rights and powers necessary or incidental to or implied from the specific powers granted in this section.

(12) Other proposed uses of special assessment revenue within the Downtown CBID including employing persons to perform or contracting for the performance of such services as office administration, bookkeeping, engineering and architectural services, urban planning, legal services, accounting and auditing services and other similar services.

(b) All services to the Downtown CBID listed above shall be provided by the District Management Corporation as a service to and in support of the City or County government and such services are to be paid for out of revenues from the special assessment. In carrying out these responsibilities, the District Management Corporation must comply with all applicable provisions of laws, including Chapter 84 of Title 7 of Tennessee Code Annotated, all City resolutions and ordinances and all regulations lawfully imposed by the state auditor or other state agencies.

(c) The special assessment shall be used to supplement and not to pay for the same level of services provided by the City or County government within the Downtown CBID. In no event will the level of governmental services provided to the Downtown CBID be decreased as a result of the enhanced level of services provided through the special assessment revenues. The City shall produce an annual report documenting the baseline services provided by the City in the Downtown CBID area, which report shall be delivered to the CBID Board and made publicly available.

(d) Penalty and interest in the amount permitted by state law are authorized to be added to any such assessment or installment thereof not paid on or before the date prescribed by the District Management Corporation.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-531. Estimated costs and rate of levy; special assessment procedure.

(a) The estimated cost of the initially proposed improvements, service projects and other permitted uses of special assessment revenues is One Million and No/100 Dollars ($1,000,000.00).

(b) A special assessment shall be collected from all real property within the Downtown CBID in accordance with this Section exclusively for the Downtown CBID, and not for the general tax coffers of the City or County. Notwithstanding the foregoing, or anything contained herein to the contrary, all property owned directly by the City and County or non-profit organizations under T.C.A. § 67-5-212 determined to be exempt by the CBID Board shall be exempt from the special assessment in accordance with Tennessee Code Annotated Section 7-84-523. This Downtown CBID will utilize the special assessments which distinguish between (i) Commercial Property and (ii) Residential Condominiums. Commercial Property shall be assessed under the following formula: $0.09 per square foot of the greater of (i) lot square footage or (ii) building square footage PLUS $4.95 per linear foot of Lot Frontage on roadways as these values are listed on the Hamilton County Geographic Information Systems and by the Hamilton County Assessor's Office.

The formula for a Commercial Property is thus: $0.09 (A) + $4.95 (B) = Total BID Assessment.

In the first year of the BID, the estimated annual assessments for properties will be as follows:

Total Commercial Property Rate	$0.09 per square foot of the greater of lot or building square footage PLUS $4.95 per linear foot of Lot Frontage on roadways
Residential Condominium (Flat Rate; per unit)	$150.00

(c) "Frontage" refers to parcel frontage on all adjoining roadways. All parcel sides that front a street which is serviced by the Downtown CBID are covered, including those located along the exterior boundaries of the Downtown CBID.

(d) The Downtown BID assessment for a Commercial Property in a mixed-use building shall be calculated by multiplying $0.09 by the greater of lot or building square footage. The lot square footage for Commercial Property in a mixed-use building shall be calculated by multiplying the total lot square footage by a fraction, the numerator of which shall be the Commercial Property Owner's share of the building square footage, and the denominator which shall be the total building square footage. This will be added to the Owner's Frontage calculation, which shall be calculated by multiplying $4.95 by the Owner's share of the Frontage. The Owner's share of the Frontage is calculated by multiplying the total Frontage by a fraction, the numerator of which shall be the Commercial Property Owner's building square footage, and the denominator of which shall be the total building square footage. In the event only one Commercial Property Owner borders a roadway in a mixed-use building, that Commercial Property Owner shall be responsible for all Frontage along such roadway.

The formula for a Commercial Property in a mixed-use building is thus:

$0.09 (greater of Owner's share of lot or building square footage) + $4.95 (Owner's share of Frontage) = BID Property Assessment for Commercial Properties in mixed-use buildings.

(e) Parking garages shall be assessed based on Frontage and lot size, rather than building size. In the event a parcel is improved by a building and a parking garage, the square footage of the parking garage shall be deducted from the square footage of the building for the purposes of the building's special assessment.

(f) Non-profit organizations that own real property located within the Downtown CBID may seek reductions and/or waivers of the special assessment on a case-by-case basis each year provided that: (i) the Owner is an institutional nonprofit organization registered under Section 501(c)(3) of the US Internal Revenue Code, (ii) the property is exempt from property taxes as a religious, charitable, scientific, or educational institution under T.C.A. § 67-5-212, and (iii) the Owner demonstrates substantial financial and/or economic hardship to the CBID Board, as determined by the CBID Board in its sole discretion. The CBID Board has determined under this subsection that Saint Paul's Episcopal Church at 305 W. 7th Street and Second Presbyterian Church at 700 Pine Street are permanently approved for this exemption and waiver of the special assessment.

(g) The CBID Board may determine annual adjustments in the special assessment rates at its sole discretion consistent with increases in program services and costs; however, in no event shall annual assessments increase by more than five percent (5%) per annum. A change in the rate of levy of such special assessment may be initiated only by a resolution from the CBID Board. Special assessments shall be imposed and collected annually as set forth hereinabove. Changes in the rate or additions to the rate of the special assessment, upon approval by the CBID Board, may be made only on an annual basis and through a public hearing before the City Council in accordance with T.C.A. § 7-84-522(f).

(h) Beginning in 2019, special assessments shall be levied against all real property within the Downtown CBID pursuant to a special assessment roll of all Owners within the District as shown in the records of the Assessor of Property for the City Government of Chattanooga and Hamilton County.

(i) Notice of the special assessment for the District shall be issued simultaneously with tax notices for regular Hamilton County and City of Chattanooga real property taxes, and revenues from the special assessment shall be collected by the City Treasurer to the extent the Treasurer is empowered by this ordinance to collect this assessment. All collections of assessments by any government official other than the City Treasurer shall be reviewed and approved by subsequent amendments to this article. The authority of the City Treasurer to collect the assessment will be reviewed in one (1) year for continuance. Additionally, the City will collect no less than a two (2%) percent fee for collections. Also, the City will take zero (0%) percent enforcement actions against non-fee payers.

(j) All CBID Board meetings during the term of this article shall comply with the Open Meeting requirements of Tennessee Code Annotated Section 8-44-107.

(k) The CBID shall be subject to audits pursuant to Ordinance Section 2-510 or other applicable ordinances of the City of Chattanooga every year during the term of this article before the annual City budget is approved.
(Ord. No. 13487, § 1, 7-30-19; Ord. No. 13498, § 1, 9-10-19; Ord. No. 13893, § 1, 9-6-22)

Sec. 11-532. Annual budget.

The CBID Board shall annually submit to the City Council a financial report and a written report of its activities for the preceding year together with a proposed budget for the next year. The annual budget shall include a projection of revenues from the special assessment and a projection of expenditures for projects, services and activities of the CBID Board and shall be reviewed and approved by the City Council, or if not approved shall be returned to the CBID Board for revision and resubmission until the City Council shall approve the annual budget.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-533. PILOT.

During the term of a payment in lieu of ad valorem taxes (PILOT) or tax increment financing (TIF) agreement for real property in the Downtown CBID, the CBID Board may, by resolution, abate the special assessment such that the assessment is based on the assessed value prior to redevelopment of the real property. At the request of the Mayor, the CBID Board shall place the assessment abatement on its agenda and shall consider the assessment abatement at its next regularly scheduled meeting. Failure of the CBID Board to make a decision on the assessment abatement within thirty (30) days of the abatement first appearing on the CBID Board's agenda shall constitute an approval. After the CBID Board makes its decision, any review shall be provided by a court of competent jurisdiction pursuant to T.C.A. § 27-8-101 et seq., T.C.A. § 27-9-101 et seq., or T.C.A. § 29-14-101, et seq.
(Ord. No. 13487, § 1, 7-30-19)

Sec. 11-534. Term.

(a) On the fifth (5th) anniversary of the formation of the Downtown CBID, the CBID Board will complete formal evaluation to determine whether the services and assessment methods are consistent with the needs of the District. Pursuant to T.C.A. § 7-84-529, the Downtown CBID may be dissolved upon written petition of the Owners holding seventy-five percent (75%) of the assessed value and fifty percent (50%) of the Owners of record.

(b) On the tenth (10th) anniversary of the formation of the Downtown CBID the CBID Board will determine if the Downtown CBID should continue in existence or pursue dissolution in accordance with T.C.A. § 7-84-529.
(Ord. No. 13487, § 1, 7-30-19)

Chapter 12

CITY COURT*

Article I. In General

Sec. 12-1. Issuance of process.
Sec. 12-2. Prompt trial required.
Sec. 12-3. Witnesses to be subpoenaed.
Sec. 12-4. Failure or refusal of witness to appear.
Sec. 12-5. Reserved.
Sec. 12-6. Judgment to be endorsed on warrant; where papers filed.
Sec. 12-7. Forfeiture of bond when defendant fails to appear.
Sec. 12-8. Acceptance of security for fine.
Sec. 12-9. Abstracts of bonds securing fines.
Sec. 12-10. Bonds to be delivered to city finance officer; collection.
Sec. 12-11. Trial docket.
Sec. 12-12. Appeal docket.
Sec. 12-13. Reserved.
Sec. 12-14. Reserved.
Sec. 12-15. Professional bondsmen.
Sec. 12-16. By whom process to be sued out.
Sec. 12-17. Final settlement for uncollected fines and costs.
Sec. 12-18. Clerk authorized to establish checking account; purpose; authorized users; required audits, accounting.
Sec. 12-19. Court officers.
Sec. 12-20. Local litigation tax.
Sec. 12-21. Court costs.
Sec. 12-22. Failure to appear.
Secs. 12-23—12-35. Reserved.

Article II. Clerk

Sec. 12-36. Supervision; duties, access of finance officer to records, etc.
Sec. 12-37. Irregularities in records.
Sec. 12-38. Prerequisites to confirmation.
Sec. 12-39. Personnel.
Sec. 12-40. Bond.
Sec. 12-41—12-49. Reserved.

Article III. City Judges

Sec. 12-50. City Judges—Rate of pay.

***Charter references—**Court, fines and imprisonment, Title 4; election of city judges, Title 5, Ch. 3.

Cross references—Commitment of persons required for nonpayment of fines and costs, § 1-9; administration generally, Ch. 2; city attorney, § 2-41 et seq.; police department, § 16-41 et seq.; police officers not to receive witness fees, § 16-49; motor vehicles and traffic, Ch. 24; offenses and miscellaneous provisions, Ch. 25.

State law reference—City courts in home-rule municipalities, T.C.A. § 16-17-101 et seq.

ARTICLE I. IN GENERAL

Sec. 12-1. Issuance of process.

The city judge shall issue process on the complaint of any person when it appears to the city judge that any provision of this Code or other ordinance of the city or law of the state has been violated. He shall try no case until process has been regularly issued out and served and returned.
(Code 1986, § 12-1)

Sec. 12-2. Prompt trial required.

The city judge shall try and determine all cases which may be brought before him within twenty-four (24) hours after arrest, unless Sunday intervenes.
(Code 1986, § 12-2)

Sec. 12-3. Witnesses to be subpoenaed.

Whenever any person is arrested and brought before the city judge for trial, the city judge shall issue a subpoena for any person in the city who may be requested as a witness in the case.
(Code 1986, § 12-3)

Sec. 12-4. Failure or refusal of witness to appear.

It shall be unlawful for any person in the city, after being duly served with a subpoena, to fail or refuse to appear in the city court and give testimony in a case, unless good cause is shown for such nonattendance.
(Code 1986, § 12-4)

Sec. 12-5. Reserved.

Editor's note—Ord. No. 13386, § 5, adopted Oct. 23, 2018, repealed § 12-5, which pertained to imposition of fine and costs; commitment to workhouse and derived from Code 1986, § 12-5.

Sec. 12-6. Judgment to be endorsed on warrant; where papers filed.

The city judge shall in all cases personally endorse his judgment and all orders made by him in a case upon the warrant sued out as provided in section 12-1 of this Code. Such warrant shall then be filed in the office of the clerk of the city court and shall constitute a public record of the city except in cases of appeals, when the city judge shall return the warrant and all subpoenas, affidavits and other papers in the case to the clerk of the county criminal court, as required by law.
(Code 1986, § 12-6)

Sec. 12-7. Forfeiture of bond when defendant fails to appear.

In case of the failure of a defendant who has been bonded for his appearance to appear for trial, on the judgment of the city judge his bond shall be declared forfeited to the city and the amount thereof shall be collected by scire facias, judgment and execution.
(Code 1986, § 12-7)

Sec. 12-8. Acceptance of security for fine.

The city judge shall determine the sufficiency and kind of security offered to secure any fine imposed by him and he shall be the sole authority to accept such security.
(Code 1986, § 12-8)

Sec. 12-9. Abstracts of bonds securing fines.

The city judge shall keep a suitable book, in which he shall enter abstracts of all bonds taken by him to secure fines assessed by him. Each abstract shall show the number and style of the case, the date of the judgment, the amount of the fine secured, the date of the bond, and the name of the security thereon.
(Code 1986, § 12-9)

Sec. 12-10. Bonds to be delivered to city finance officer; collection.

The city judge, on the first day of January of each year, and every sixty (60) days thereafter, shall turn over to the city finance officer all bonds and securities of whatever kind, then more than sixty (60) days old, taken by him as security for fines assessed by him for violations of city ordinances, and the city finance officer shall make a complete record thereof and deliver such bonds and securities to the city attorney, who shall enforce collection thereon as speedily as possible.
(Code 1986, § 12-10; Ord. No. 9654, § 8, 1-6-92)

Sec. 12-11. Trial docket.

The city judge shall keep a docket, on which he shall enter and preserve the name of every person brought before him and accused of any offense against this Code or any other ordinances of the city or laws of the state. He shall enter on such docket his judgment in every case tried before him in accordance with his endorsement on the warrant issued in such case, the amount of the fine, if any, and the number of days' commitment to the workhouse for nonpayment of the fine, if any.
(Code 1986, § 12-11)

Sec. 12-12. Appeal docket.

The city judge shall keep an appeal docket, on which he shall enter all cases appealed from his court to the county criminal court. Such docket shall show the number and style of each appealed case, the amount of the fine assessed by the city judge, the date of the appeal, the name of the surety on the appeal bond and the names of any material witnesses for the city.
(Code 1986, § 12-12)

Sec. 12-13. Reserved.

Editor's note—Ord. No. 13386, § 5, adopted Oct. 23, 2018, repealed § 12-13, which pertained to monthly report by judge and derived from Code 1986, § 12-13; Ord. No. 9654, § 2, 1-6-92.

Sec. 12-14. Reserved.

Editor's note—Ord. No. 13386, § 5, adopted Oct. 23, 2018, repealed § 12-14, which pertained to bail for offenses against city and derived from Code 1986, § 12-14.

Sec. 12-15. Professional bondsmen.

(a) The sergeant or other person in charge at police headquarters shall call or permit any person detained therein who is entitled to bail or is in condition to be released to call any person of his choice to make bond for such person. Such sergeant or other person in charge shall not recommend to any person detained any person engaged in the business of making bonds, but shall let each person determine for himself whom he wants to call or have called for the purpose of arranging bond for him.

(b) It shall be unlawful for any person engaged in the business of making bonds to loiter in or about police headquarters or to solicit any person who is detained by the police department or request any person who is detained to permit such bondsman to make his bond or to solicit any person who is visiting police

headquarters to permit him to make bond for anyone who may be detained there. All persons engaged in the business of making appearance bonds shall have a place of business other than in police headquarters or on the premises around such station. Any person engaged in the business of making appearance bonds may leave his card, together with his telephone number, with the sergeant.
(Code 1986, § 12-15)

Sec. 12-16. By whom process to be sued out.

The officer making an arrest, in the event that no other person appears as complainant, shall sue out process against the person arrested and serve the same upon such person before the case is entered upon the city judge's docket for trial.
(Code 1986, § 12-16)

Sec. 12-17. Final settlement for uncollected fines and costs.

At the expiration of his term, the city judge shall furnish the city finance officer with a full list of all unsettled fines and costs remaining unpaid for which bonds and other securities have been taken, and turn over such bonds and securities to the city attorney, to whom they shall be charged, and if found good and collectable, credit shall be given the outgoing city judge therefor. The city attorney shall proceed to collect the same as required by law, remit the proceeds and give a report in detail thereof to the city finance officer.
(Code 1986, § 12-17; Ord. No. 9654, § 8, 1-6-92)

Sec. 12-18. Clerk authorized to establish checking account; purpose; authorized users; required audits, accounting.

(a) The city court clerk is authorized to establish a checking account with a bank qualified to receive deposits of city funds, such account to be used exclusively for the receipt and disbursement of cash appearance bonds received in city court.

(b) All appearance bonds received by the City Court Clerk, his deputies, the police sergeant on duty, or any other officer authorized to receive appearance bonds for city court, shall be credited to and deposited in the checking account herein authorized. Whenever an individual who has posted an appearance bond in city court is entitled to the return of such bond, a city court judge, city court clerk, or any deputy clerk so authorized by the City Court Clerk, shall be authorized to draw a check against the checking account for the reimbursement of the bond.

(c) The checking account herein authorized shall be audited at least once per month by the office of the city finance officer, and the city court clerk shall keep accounts of all bonds received, deposits made, and disbursements drawn against the account.
(Code 1986, § 12-18; Ord. No. 9654, § 8, 1-6-92; Ord. No. 13719, § 2, 10-5-21)

Sec. 12-19. Court officers.

(a) A city judge is authorized to appoint or employ one (1) or more court officers subject to confirmation by the City Council and upon such terms and conditions as may be required by the City Council within annual budgetary limits for the City Court. A court officer so approved by the City Council shall likewise be appointed as a special policeman pursuant to Section 13.3 of the Charter Compilation. A court officer who is in attendance while court is in session shall be under the supervision of the presiding city judge and while court is in session all members of the police and fire department attending court shall be subordinate to and obey the instructions of the court officer. When court is not in session, or at times when a court officer is not needed for duty in the courtroom, or when not performing duties under the direction of a city judge all court officers shall then be engaged in serving warrants or other court process.

The number of warrants or other court process served by a court officer shall be reported each week by the City Court Clerk to the City Judge, the Mayor, and the City Finance Officer. A court officer shall be an employee of the office of the City Court.

(b) A court officer may be discharged, suspended or otherwise disciplined by a City Judge.
(Code 1986, § 12-19; Ord. No. 9654, §§ 2, 8, 1-6-92; Ord. No. 13719, § 3, 10-5-21)

Sec. 12-20. Local litigation tax.

(a) *Imposed; exemption.* As authorized by Tennessee Code Annotated, sections 67-4-401, 67-4-501 and 67-4-601 and 67-4-606 there is levied in all criminal cases instituted in the city court a local litigation tax of five dollars and twenty-five cents ($5.25). This tax shall be in addition to all other taxes and fees collected by the city court clerk in all criminal cases; provided, this tax shall not apply to any violation relative to the use of a metered parking space, including the forfeiture of an appearance bond or the payment of the penalty or fine prior to the arrest for such violation.

(b) *Collection.* The city court clerk shall collect such litigation tax from all defendants in any criminal case instituted in the city court upon a finding of guilt, plea of guilty, or submission to fine by the city court judge and in the same manner as the city court clerk collects the state litigation tax. The city court clerk shall be liable for the tax imposed by this section.

(c) *Disbursement.* The city court clerk shall disburse all collections under this section for the local litigation tax to the city treasurer for deposit in the general fund of the city.

Sec. 12-21. Court costs.

(a) In all cases tried in the City Court of Chattanooga for the violation of ordinances of said City, costs shall be taxed as follows:

Clerk's Fee	$37.75
Affidavit	4.00
Docketing Fee	2.00
Judgment Fee	5.00
Taxing	1.00
State Privilege Tax	14.75
Fire/Police Fee	5.00

Microfilming	2.00
Data Processing	3.50
Technology Fee	3.00
Officer's cost, arrest	1.00

(b) *Electronic citation regulations and fees.*

(i) As used in this subsection, "electronic citation" means a written citation or an electronic citation prepared by a law enforcement officer on paper or on an electronic data device with the intent the citation shall be filed, electronically or otherwise, with a court having jurisdiction over the alleged offense.

(ii) Pursuant to and in accordance with state statutory requirements found in T.C.A. § 55-10-207(e), each court shall charge and collect an electronic citation fee of five dollars ($5.00) for each citation which results in a conviction.

(iii) (1) The City Court Clerk shall charge and collect an electronic traffic citation fee of five dollars ($5.00) for each traffic citation resulting in a conviction. Such fee shall be assessable as court costs and paid by the defendant for any offense cited in a traffic citation delivered that results in a plea of guilty or nolo contendere, or a judgment of guilty. This fee shall be in addition to all other fees, taxes and charges. One dollar ($1.00) of such fee shall be retained by the City Court Clerk. The remaining four dollars ($4.00) of the fee shall be transmitted monthly by the City Court Clerk to the law enforcement agency that prepared the traffic citation that resulted in a plea of guilty or nolo contendere, or a judgment of guilty.

(2) All funds derived from the electronic traffic citation fee that are transmitted to the law enforcement agency that prepared the traffic citation pursuant to subdivision (b)(iii)(1) shall be accounted for in a special revenue fund of such law enforcement agency and may only be used for the following purposes:

(A) Electronic citation system and program related expenditures; and

(B) Related expenditures by such local law enforcement agency for technology, equipment, repairs, replacement and training to maintain electronic citation programs.

(3) All funds derived from the electronic citation fee set aside for the City Court Clerk pursuant to subdivision (b)(iii)(1) shall be used for computer hardware purchases, usual and necessary computer related expenses, or replacement. Such funds shall be preserved for those purposes and shall not revert to the general fund at the end of a budget year if unexpended.

(c) The following costs shall be taxed as applicable:

Photocopy	$1.00
Facsimile	2.00
Local Litigation (criminal)	5.25
Processing of Release forms	5.00
Service of Process	5.00
Continuance	0.25
Recognizance Bond	0.50
Appeal Bond	0.75
Issuing subpoena for a single witness	0.50

Issuing subpoena for each additional witness	0.10
Mittimus to workhouse	0.25
For each witness summoned	0.50
Continuance requiring officer's attendance	1.00
Foreign Language Translator's Fee	35.00

(d) The Clerk's fee in the amount of thirty-seven dollars and seventy-five cents ($37.75) shall be reduced to twenty-seven dollars and seventy-five cents ($27.75) for all violations paid prior to court.

(e) The City is authorized to enter into a written agreement with a collection agency or other third party for assistance with collection of outstanding judgments, fines and costs for a fee in an amount not exceeding forty percent (40%) of the sums collected as consideration for collecting the fines and costs. The collection agency fee shall not be deemed a portion of the judgment entered against a defendant, however, the City is authorized to recover from the Defendant any costs associated with collecting any judgment, fines, and costs.
(Code 1986, § 12-20; Ord. No. 10573, § 1, 5-27-97; Ord. No. 11175, § 24, 9-11-01; Ord. No. 11434, § 17, 7-14-03; Ord. No. 12135, § 1, 6-3-08; Ord. No. 12390, § 1, 4-27-10; Ord. No. 12799, § 1, 2-4-14; Ord. No. 13225, §§ 1, 2, 10-3-17)

State law reference—Rights of local governments to levy litigation tax, T.C.A. § 67-4-601.

Sec. 12-22. Failure to appear.

Failure of an offender to appear for trial in the City Court after the proper issuance of an ordinance summons shall cause the Court having jurisdiction thereof to issue a warrant against the offender.
(Ord. No. 11665, § 1, 1-25-05)

State law reference—Failure of offender to appear for trial, T.C.A., § 7- 3-105, 7-63-204.

Secs. 12-23—12-35. Reserved.

ARTICLE II. CLERK

Sec. 12-36. Supervision; duties, access of finance officer to records, etc.

The clerk of the city court and all other subordinate personnel shall be under the general supervision of the city finance officer relative to the proper keeping and maintaining of records including, but not limited to, docket books, books of account, receipt books, warrants and citations, the handling of money, and the proper method and manner for dealing with the public. The city finance officer or his representative, including the internal audit division, shall have full and complete access at any time to any and all records, papers, documents and files of the office of the city court clerk.
(Code 1986, § 12-36; Ord. No. 9654, § 8, 1-6-92)

Sec. 12-37. Irregularities in records.

If the city finance officer has reason to believe that there exist any irregularities in the records of the city court clerk, he shall forthwith report the same to each of the two (2) city judges, the mayor, and the city attorney; and the city finance officer may for cause suspend or discharge any subordinate personnel of the city court clerk, but he shall report same to the mayor and city council at its next regular meeting.
(Code 1986, § 12-37; Ord. No. 9654, §§ 8, 38, 1-6-92)

Sec. 12-38. Prerequisites to confirmation.

No person appointed city court clerk by the judge of the first division shall be confirmed by the city council unless the judge of the second division concurs in such appointment, and unless it appears that such person has the ability to manage, supervise and operate the office of the city court clerk.
(Code 1986, § 12-38; Ord. No. 9654, § 2, 1-6-92)

Sec. 12-39. Personnel.

The city court clerk shall have the duty of employing subordinate personnel, subject to the approval of the city council; and, he shall likewise have the duty of suspending or discharging any subordinate personnel, but he shall report same to the city council at its next regular meeting.
(Code 1986, § 12-39; Ord. No. 9654, § 2, 1-6-92)

Sec. 12-40. Bond.

The city court clerk shall make and file with the city finance officer a corporate fidelity bond in the penal amount of fifty thousand dollars ($50,000.00) prior to assuming any of his duties. The bond shall not be made or filed until approved as to form and content by the city attorney.
(Code 1986, § 12-40; Ord. No. 9654, § 8, 1-6-92)

Sec. 12-41—12-49. Reserved.

ARTICLE III. CITY JUDGES

Sec. 12-50. City Judges—Rate of pay.

The City Judge(s) of the City of Chattanooga shall be paid the same salary as General Sessions Judges of Hamilton County, Tennessee, except that their pensions shall be computed in accordance with the General Pension Plan of the City rather than whatever plan participated in by said General Sessions Judges.
(Ord. No. 10150, § 1, 12-20-94)

Editor's note—Ord. No. 10150, § 2, 12-20-94, reads "...That this ordinance shall be operative, as distinguished from its effective date, on and after April 17, 1995."

Chapter 13

CIVIL DEFENSE*

Sec. 13-1. Joint organization—Created.
Sec. 13-2. Same—Authority.
Sec. 13-3. Same—Responsibilities.
Sec. 13-4. Director—Office created.
Sec. 13-5. Same—May request or make declaration of emergency.
Sec. 13-6. Same—Responsibility for planning, recruitment, training.
Sec. 13-7. Same—Delegation of responsibility, authority.
Sec. 13-8. Same—Responsible to mayor, county judge.
Sec. 13-9. Civil defense corps.
Sec. 13-10. Loyalty oath required of workers.
Sec. 13-11. Obedience to official orders.
Sec. 13-12. Unauthorized use of warning or all-clear signals.
Sec. 13-13. Designation, right-of-way of vehicles.
Sec. 13-14. Financing and expenditures.
Sec. 13-15. Civil emergencies.
Sec. 13-16. Effect on liabilities.

***Cross references—**Administration generally, Ch. 2; city engineer, § 2-81 et seq.; air pollution, Ch. 4; aviation, Ch. 8; fire and police departments, Ch. 16; fire prevention, Ch. 17; health and sanitation, Ch. 20; metropolitan transit authority, Ch. 23; motor vehicles and traffic, Ch. 24; offenses and miscellaneous provisions, Ch. 25; sewers, mains and drainage, Ch. 31; streets and sidewalks, Ch. 32; water, Ch. 36; zoning regulations, Ch. 38.

Sec. 13-1. Joint organization—Created.

There is hereby created the Chattanooga-Hamilton County civil defense organization, which shall be a joint operation by the city and the county, for the purpose or organizing and directing civil defense for the citizens of the entire county. All other civil defense agencies within the corporate limits of the county shall be considered as a total part of the countywide civil defense emergency resources and when such agencies operate out of its corporate limits it shall be at the direction of, subordinate to, and as a part of the Chattanooga-Hamilton County civil defense organization.
(Code 1986, § 13-1)

Sec. 13-2. Same—Authority.

In accordance with federal and state enactments of law, the civil defense organization created by this chapter is hereby authorized to assist the regular government of the county and governments of all political subdivisions therein, as may be necessary due to enemy caused emergency or natural disasters, including but not limited to: Storms, floods, fires, explosions, tornadoes, hurricanes, drought, or peacetime man-made disasters, including, but not limited to, airplane crashes, bus wrecks, train wrecks, and other disasters which might occur affecting the lives, health, safety, welfare and property of the citizens of the county. The civil defense organization created by this chapter is hereby authorized to perform such duties and functions as may be necessary on account of such disasters. Such civil defense organization is hereby designated the official agency to assist regular government forces in time of such emergencies.
(Code 1986, § 13-2)

Sec. 13-3. Same—Responsibilities.

The civil defense organization created by this chapter shall be responsible for preparation and readiness against enemy caused and all other emergencies arising in this county, to establish and coordinate emergency plans, forces, means, and resources, and is hereby designated the official agency to establish such emergency plans.
(Code 1986, § 13-3)

Sec. 13-4. Director—Office created.

The office of director of civil defense is hereby created.
(Code 1986, § 13-4)

Sec. 13-5. Same—May request or make declaration of emergency.

The director shall have the authority to request the declaration of the existence of an emergency by the mayor and county judge, or either, or by higher authority as appropriate. If the director deems such action necessary without delay, and if unable to readily obtain such declaration by the mayor of the city and county judge, or either of them, or higher authority if applicable, the director may immediately upon his own responsibility, declare the existence of an emergency; but, such action shall be subject to confirmation by the mayor and judge; however, the declaration of an emergency by the director shall continue for a period of twelve (12) hours unless rescinded by the director.
(Code 1986, § 13-5)

Sec. 13-6. Same—Responsibility for planning, recruitment, training.

The director shall have overall responsibility for the preparation of all plans, recruitment and training of personnel.
(Code 1986, § 13-6)

Sec. 13-7. Same—Delegation of responsibility, authority.

(a) The director is hereby given the authority to delegate such responsibility and authority as is necessary to carry out the purposes of this chapter, subject to the approval of the judge and mayor, as hereinafter outlined.

(b) Such delegated authority may be given, but shall not be restricted, to the following incumbent staff positions and to such other positions of command or administration as shall hereafter be determined.

(1) The deputy director shall execute administrative plans, policies, and procedures for the director, and shall act for the director in his absence.

(2) The operations officer shall execute operational plans, policies, and procedures, shall coordinate such plans, policies and procedures with other government agencies, and shall direct civil defense emergency operations.

(3) The deputy director, operations officer, and such other appointees of the director, are hereby given the authority to perform such duties and functions as may be necessary to the responsibilities of their offices.

(Code 1986, § 13-7)

Sec. 13-8. Same—Responsible to mayor, county judge.

The director shall be responsible to the judge and the mayor for the execution of the authorities, duties and responsibilities of the civil defense organization created by this chapter, for the preparation of all plans and administrative regulations and for recruitment and training of personnel.

(Code 1986, § 13-8)

Sec. 13-9. Civil defense corps.

The Chattanooga-Hamilton County civil defense corps is hereby created. The corps shall be under the direction of the director of civil defense and his staff members with delegated authority; it shall consist of designated regular government employees, and volunteer workers. Duties and responsibilities of the corps members shall be outlined in the civil defense emergency plan to be prepared under the direction of the director of civil defense.

(Code 1986, § 13-9)

Sec. 13-10. Loyalty oath required of workers.

Each person serving as a member of the civil defense organization created by this chapter as an officer, employee, or volunteer shall, prior to assuming their duties be required to take an oath which shall be as follows:

OATH OF LOYALTY

I, _____ do solemnly swear (or affirm) that I will support and defend the Constitution of the United States and the Constitution of the State of Tennessee against all enemies, both foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties upon which I am about to enter. I do further swear (or affirm) that I do not advocate, nor am I a member of any political party or organization that advocates the overthrow of the government of the United States or of the State of Tennessee by force or violence; and that during such time as I am

a member of the Chattanooga-Hamilton County Civil Defense I will not advocate nor become a member of any political party or organization that advocates the overthrow of the government of the United States or the State of Tennessee by force or violence.

(Code 1986, § 13-10)

Sec. 13-11. Obedience to official orders.

In time of emergency officially declared by the governor or other higher authority, the mayor, county judge or director of civil defense, all persons shall obey the official orders of lawfully assigned and acting personnel of the civil defense corps. Refusal or disobedience thereto is hereby declared a misdemeanor, punishable upon conviction as hereinbefore provided.

(Code 1986, § 13-11)

Sec. 13-12. Unauthorized use of warning or all-clear signals.

Any unauthorized person who shall operate a siren or other device so as to simulate an air raid, or the termination an air raid, shall be guilty of a misdemeanor.

(Code 1986, § 13-12)

Sec. 13-13. Designation, right-of-way of vehicles.

When summoned by proper authorities in time of emergency civil defense vehicles are declared to be emergency vehicles and are hereby granted right-of-way over other traffic upon sounding of a proper warning signal or display of lights as prescribed by the Tennessee Code Annotated. All such vehicles will be identified by special license plates and/or civil defense (CD) insignia.

(Code 1986, § 13-13)

Sec. 13-14. Financing and expenditures.

(a) No person shall have the right to expend any public funds of the city or county in carrying out any civil defense activities authorized by this chapter without prior approval by the city council, the county council or both; nor shall any person have any right to bind the city or county by contract, agreement or otherwise without prior and specific approval by the city council, county council, or both.

(b) The county shall pay its proportionate share of the cost of operation of the civil defense organization over to the city treasurer.

(c) The civil defense director shall have control of and is responsible for the disbursement of such monies as may be provided annually by appropriation of the city and county for the operation of the civil defense organization. He shall be responsible for the preparation and submission of a budget with recommendations as to its adoption by the city and county.

(d) All funds shall be disbursed upon vouchers properly executed by the director of civil defense, or a lawfully authorized and appointed assistant or deputy, to the city finance officer.

(e) The civil defense director is hereby authorized to accept federal contributions in money, equipment or otherwise, when available, or state contributions, and is further authorized to accept contributions to the civil defense organization from individuals and other organizations.

(Code 1986, § 13-14; Ord. No. 9654, §§ 2, 8, 1-6-92)

Sec. 13-15. Civil emergencies.

(a) *Proclamation.* Pursuant to the terms and authorities of section 38-9-101 et seq.; Tennessee Code Annotated, the following officials are hereby authorized to proclaim a civil emergency in the city:

(1) The mayor.

(2) In the absence of the mayor, the chairman of the council.

(3) In the absence of the mayor and chairman of the council, any available member of the city council of the city.

(4) In the absence of all of the foregoing officials, the chief of police of the city.

(5) In the absence of the chief of police, the deputy chief of police; if he is absent, the chief of detectives.

A proclamation by any of the foregoing officials under the terms hereinbefore set out of a civil emergency shall be conclusive as to the necessity thereof.

(b) *Violations.* When a civil emergency, as defined in section 38-9-101 et seq., Tennessee Code Annotated, shall have been declared and proclaimed by any of the persons hereinbefore authorized under any of the terms and conditions enumerated in such statute, any person violating any provision of the proclamation or orders issued by the mayor, or any official hereinbefore authorized to proclaim a civil emergency, shall be guilty of a misdemeanor.
(Code 1986, § 13-15; Ord. No. 9654, § 89, 1-6-92)

Sec. 13-16. Effect on liabilities.

The duties prescribed by this chapter are an exercise by the city and county of its governmental functions for the protection of the public peace, health and safety and neither the city nor the county, the agents and representatives of such city and county nor any individual, receiver, firm, partnership, corporation, association or trustee, nor any of the agents thereof, in good faith carrying out, complying with or attempting to comply with, any order, rule or regulation promulgated pursuant to the provision of this chapter shall be liable for any damage sustained to person or property as the result of such activity. Any person owning or controlling real estate or other premises for the purpose of sheltering persons during an actual, impending or practice enemy attack. shall together with his successors in interest. if any, not be civilly liable for the death of, or injury to, any person on or about such real estate or premises under such license, privilege or other permission of for loss of, or damage to, the property of such person.
(Code 1986, § 13-16)

CODE OF ORDINANCES

CITY OF

CHATTANOOGA, TENNESSEE

VOLUME II

As Republished 2015

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

TABLE OF CONTENTS

VOLUME I

Page

Preface vii

Checklist of Up-to-Date Pages . . . . . [1]

Supplement History Table SH:1

CODE OF ORDINANCES

PART I

CHARTER COMPILATION

Charter Prologue CHT:1

1. Incorporation CHT1:1

2. Corporate Powers and Prohibitions Generally CHT2:1

3. City Officers and Employees CHT3:1
   - Ch. I. In General CHT3:3
   - Ch. II. Recall CHT3:4
   - Ch. III. Pensions and Death Benefits CHT3:4
     - Art. 1. Generally CHT3:4
     - Art. 2. General Pension Plan CHT3:5
   - Ch. IV. City Attorney CHT3:5
   - Ch. V. Subordinate Officers, Employees and Laborers CHT3:6
     - Art. 1. Generally CHT3:6
     - Art. 2. City Finance Officer CHT3:7
     - Art. 3. City Treasurer CHT3:7
     - Art. 4. Office of Internal Audit, Audit Committee, and City Auditor CHT3:8

4. Courts, Fines and Imprisonments CHT4:1
   - Ch. I. In General CHT4:3
   - Ch. II. City Judge CHT4:4
   - Ch. III. Clerk of City Court CHT4:6
   - Ch. IV. Fines, Penalties and Forfeitures CHT4:6

5. Elections of Mayor, Council Members and City Judges CHT5:1
   - Ch. I. In General CHT5:3
   - Ch. II. Mayor and Council Elections CHT5:3
   - Ch. III. City Judge CHT5:6
   - Ch. IV. Election Offenses CHT5:6

6. Finance and Taxation CHT6:1
   - Ch. I. In General CHT6:3
   - Ch. II. City Taxes CHT6:3
     - Art. 1. Generally CHT6:3

Title		Page
	Art. 2. Delinquent Taxes	CHT6:4
	Art. 3. Privilege Taxes	CHT6:8
	Div. I. Generally	CHT6:8
	Art. 4. Property Taxes	CHT6:8
	Ch. III. Budget	CHT6:8
	Ch. IV. Appropriations	CHT6:9
	Ch. V. Borrowing Power of City	CHT6:10
	Art. 1. Generally	CHT6:10
	Ch. VI. Aid to Railroads	CHT6:10
	Ch. VII. Legal Liability Fund	CHT6:11
7.	Franchises	CHT7:1
8.	Distribution of Powers	CHT8:1
	Ch. I. Legislative	CHT8:3
	Ch. II. Executive	CHT8:5
	Ch. III. Generally	CHT8:8
9.	Municipal Boards and Commissions	CHT9:1
	Ch. I. In General	CHT9:3
	Ch. II. Reserved	CHT9:3
	Ch. III. Reserved	CHT9:3
10.	Municipal Electrical System	CHT10:1
	Ch. I. In General	CHT10:3
	Ch. II. Electric Power Board of Chattanooga	CHT10:7
11.	Ordinances and Resolutions	CHT11:1
	Ch. I. In General	CHT11:3
	Ch. II. Initiative and Referendum	CHT11:5
12.	Planning, Zoning and Development	CHT12:1
	Ch. I. Planning	CHT12:3
	Ch. II. Zoning	CHT12:3
	Ch. III. Plats and Subdivisions	CHT12:5
13.	Police and Fire	CHT13:1
	Ch. I. In General	CHT13:3
	Ch. II. Salaries	CHT13:5
	Ch. III. Tenure	CHT13:5
	Ch. IV. Fire and Police Pension	CHT13:7
14.	Public Utilities	CHT14:1
15.	Public Works, Streets, Sewers and Airports	CHT15:1
	Ch. I. In General	CHT15:3
	Ch. II. Sewerage System	CHT15:4
	Ch. III. Removal, Relocation and Installation of Utilities in Connection with Public Improvements	CHT15:6
	Ch. IV. Gas, Water, Sewer and Other Connections By City	CHT15:8
	Ch. V. Abutting Property Law of 1907 Relative to Streets and Sidewalks	CHT15:8
	Ch. VI. Sidewalk Improvement Act of 1915	CHT15:8

Title		Page
	Ch. VII. Metropolitan Improvement Act of 1927	CHT15:8
	Ch. VIII. Improvement Act of 1931	CHT15:9
16.	Railroads	CHT16:1
17.	Reserved	CHT17:1
18.	Reserved	CHT18:1
	Charter Appendices	CHTA:1
	App. No. 1 Judgment	CHTA:3
	App. No. 2 Agreed Order	CHTA:12
	App. No. 3 Order	CHTA:14
	App. No. 4 Charter Comparative Tables	CHTA:18

PART II

CITY CODE

1.	General Provisions	CD1:1
2.	Administration	CD2:1
	Art. I. In General	CD2:11
	Art. II. Officers	CD2:13
	Div. 1. Generally	CD2:13
	Div. 2. City Attorney	CD2:13
	Div. 3. City Finance Officer	CD2:15
	Div. 4. Engineer	CD2:17
	Div. 5. Treasurer	CD2:18
	Art. III. Human Resources—Miscellaneous	CD2:21
	Div. 1. Other Post-Employment Benefits Program	CD2:21
	Div. 2. Social Security Generally	CD2:28
	Div. 3. Social Security for Educational Personnel	CD2:29
	Div. 4. General Pension Plan	CD2:30
	Div. 5. Fire and Police Pension Fund	CD2:48.1
	Art. IV. Finance	CD2:66
	Art. V. Purchases, Contracts and Property Disposition	CD2:117
	Art. VI. Reserved	CD2:127
	Art. VII. Municipal Planning Commission	CD2:127
	Art. VIII. Inspection Department	CD2:128
	Art. IX. Chattanooga Department of Early Learning	CD2:132
	Art. X. Supplemental Pension Benefits	CD2:134
	Art. XI. Suspension and Debarment of Contractors	CD2:137
	Art. XII. Department of Equity and Community	CD2:140
	Art. XIII. Code of Ethics	CD2:142
	Art. XIV. Audit Committee	CD2:149
	Art. XV. Whistle Blower Protection	CD2:150
	Art. XVI. Chattanooga Department of Community Development	CD2:152
3.	Advertising	CD3:1
	Ch. 3A. Off-Premise Advertising	CD3:7
	Art. I. Administration and Enforcement	CD3:7

Chapter Page

Art. II. General Off-Premise Sign Regulations CD3:17
Art. III. Controlled Access Facility Sign Regulation CD3:19
Art. IV. Major Advertising Zone Sign Regulation CD3:20
Art. V. Scenic Areas and Scenic Corridors CD3:21
Art. VI. Reserved CD3:23
Art. VII. Reserved CD3:23
Art. VIII. Reserved CD3:23
Art. IX. Reserved CD3:23
Art. X. Variances and Special Permits CD3:23
Art. XI. Veterans Bridge Sign-Control District CD3:26
Art. XII. Reserved CD3:27
Art. XIII. Reserved CD3:27
Ch. 3B. On-Premise Advertising CD3:27
Art. XIV. Purpose and Applicability CD3:27
Art. XV. Definitions, Rules of Measurement, and Sign Types . CD3:29
Div. 1. Rules of Interpretation and General Abbreviations CD3:29
Div. 2. Definitions CD3:30
Div. 3. Sign Types CD3:34
Div. 4. Lighting Types CD3:39
Div. 5. Rules of Measurement CD3:40
Art. XVI. Prohibited Signs CD3:44
Art. XVII. Exempt and Temporary Signs CD3:45
Div. 1. Exempt Signs CD3:45
Div. 2. Temporary On-Premises Signs CD3:46
Art. XVIII. Sign Lighting CD3:48
Div. 1. Illumination Standards CD3:48
Div. 2. Digital Signs CD3:48
Art. XIX. Regulations Character Areas CD3:50
Div. 1. Overview Map CD3:50
Div. 2. Brainerd Overlay CD3:51
Div. 3. General Character Area CD3:53
Div. 4. Highway Commercial Corridors (Billboards) CD3:54
Div. 5. Lovell Field Gateway Overlay CD3:55
Div. 6. Residential CD3:57
Div. 7. Scenic Areas and Corridors CD3:57
Div. 8. Veterans Bridge CD3:61
Art. XX. On-Premises Permitted Sign Regulations CD3:62
Div. 1. Overview CD3:62
Div. 2. Attached Signs CD3:63
Div. 3. Detached Signs CD3:71
Div. 4. Special Purpose Signs CD3:76
Art. XXI. Administrative Provisions, Variances, and Appeals . CD3:77
Div. 1. Administrative Provisions CD3:77
Div. 2. Notices CD3:85
Art. XXII. Enforcement CD3:86
Div. 1. Enforcement and Penalties CD3:86
Art XXIII. Non-Conforming Signs CD3:87

4. Air Pollution CD4:1
Art. I. In General CD4:3

Chapter		Page
	Art. II. Rules, Regulations, Criteria, Standards	CD4:62
	Art. III. Part 70 Source Regulation and Permits	CD4:232
5.	Alcoholic Beverages	CD5:1
	Art. I. In General	CD5:5
	Art. II. Beer Board	CD5:5
	Art. III. Beer (as Defined at T.C.A. § 57-5-101(b), and Amendments Thereto)	CD5:8
	Div. 2. Permits	CD5:8
	Art. IV. Liquor (as Defined at T.C.A. § 57-5-101(a)(1), and Amendments Thereto)	CD5:22
	Div. 1. Generally	CD5:22
	Div. 2. License	CD5:28
	Div. 3. Inspection Fee on Retail Sales; Privilege Tax for Consumption on Premises	CD5:30
	Art. V. Bottle Clubs (Brown Bagging)	CD5:32
	Div. 1. Generally	CD5:32
	Div. 2. Permit	CD5:33
	Art. VI. Hearing Officer	CD5:36
6.	Amusements	CD6:1
	Art. I. In General	CD6:3
	Art. II. Drive-In Theaters	CD6:4
	Art. III. Billiard Rooms or Pool	CD6:4
	Art. IV. Reserved	CD6:6
	Art. V. Reserved	CD6:6
7.	Animals and Fowl	CD7:1
	Art. I. In General	CD7:7
	Art. II. Licensing, Inoculation and Permitting of Dogs and Cats	CD7:16
	Art. III. Offenses	CD7:18.1
	Art. IV. Barking Dogs	CD7:20
	Art. V. Potentially Dangerous and Dangerous Dogs	CD7:21
	Art. VI. Impoundment, Redemption and Disposition of Animals	CD7:26
	Art. VII. Trapping Animals	CD7:30
	Art. VIII. Large Animals	CD7:30
	Art. IX. Exotic Animals	CD7:32
	Art. X. Dead Animals	CD7:32
	Art. XI. Guard Dogs	CD7:33
	Art. XII. Miscellaneous	CD7:34
	Art. XIII. Animal Control Board	CD7:36.1
	Art. XIV. General Provisions For Permits	CD7:36.2
	Art. XV. Dealer Permits	CD7:41
	Art. XVI. Kennel Permits	CD7:42
	Art. XVII. Animal Performance Permits	CD7:43
	Art. XVIII. Animal Rescuer Permits	CD7:47
	Art. XIX. Dogs in Outdoor Dining Areas Permits	CD7:49
8.	Aviation	CD8:1
	Art. I. In General	CD8:3

Chapter		Page
	Art. II. Overlay Zones	CD8:4
	Art. III. Development on the Direct Airport Property	CD8:8
9.	Beautification	CD9:1
	Art. I. In General	CD9:3
	Div. 1. Public Art Commission	CD9:3
	Art. II. Commission	CD9:5
10.	Buildings	CD10:1
	Art. I. Building Code	CD10:3
	Art. II. Historic Zoning	CD10:27
	Art. III. Other Fees	CD10:39
	Art. IV. Commercial Property Assessed Clean Energy and Resiliency (C-PACER) Program	CD10:40
11.	Businesses, Trades and Occupations	CD11:1
	Art. I. In General	CD11:3
	Art. II. Auctions and Auctioneers	CD11:3
	Div. 1. Generally	CD11:3
	Div. 2. Jewelry Auctions	CD11:3
	Art. III. Barbershops	CD11:12
	Div. 1. Generally	CD11:12
	Art. IV. Coal and Coke Dealers	CD11:13
	Art. V. Filling Stations	CD11:16
	Art. VI. Hotels and Rooming Houses	CD11:18
	Art. VII. Junk and Secondhand Dealers	CD11:21
	Art. VIII. Pawnbrokers	CD11:23
	Art. IX. Transient Merchants	CD11:28
	Art. X. Massage Technicians and Parlors	CD11:30
	Art. XI. Professional Fund Solicitors	CD11:37
	Art. XII. Sidewalk Vendors	CD11:42
	Art. XIII. Special Sales	CD11:45
	Art. XIV. Adult-Oriented Establishments	CD11:50
	Art. XV. Teen Social Clubs	CD11:64
	Art. XVI. Small Business Incentive Grant Program	CD11:67
	Art. XVII. Small Business Construction Mitigation Grants	CD11:69
	Art. XVIII. Innovation District Grants	CD11:70.1
	Art. XIX. Waste Tire Haulers	CD11:72
	Art. XX. Reserved	CD11:78
	Art. XXI. Downtown Central Business Improvement District (Downtown CBD)	CD11:84
12.	City Court	CD12:1
	Art. I. In General	CD12:3
	Art. II. Clerk	CD12:8
	Art. III. City Judges	CD12:9
13.	Civil Defense	CD13:1

VOLUME II

14.	Electricity	CD14:1
	Art. I. In General	CD14:3

Chapter		Page
	Art. II. Electricians	CD14:7
	Div. 1. Generally	CD14:7
	Div. 2. Board of Examiners	CD14:8
	Div. 3. Examinations, Licenses and Certificates	CD14:10
15.	Energy	CD15:1
	Art. I. In General	CD15:3
	Art. II. Energy Curtailment	CD15:3
	Div. 1. Generally	CD15:3
	Div. 2. Electric	CD15:3
	Div. 3. Petroleum Product Usage	CD15:5
16.	Fire and Police Departments	CD16:1
	Art. I. In General	CD16:5
	Art. II. Fire Department	CD16:6.2
	Art. III. Police Department	CD16:7
	Art. IV. Police Advisory and Review Committee	CD16:11
	Art. V. Interception of Police Radio Signals	CD16:14.3
	Art. VI. Private Security Police	CD16:14.4
	Art. VII. Pension Benefits	CD16:14.6
17.	Fire Prevention	CD17:1
	Art. I. In General	CD17:3
	Art. II. Bureau of Fire Prevention	CD17:4
18.	Garbage and Refuse	CD18:1
	Art. I. In General	CD18:5
	Art. II. Containers	CD18:9
	Art. III. Municipal Collection and Disposal	CD18:11
	Art. IV. Private Collections, Permits, Etc.	CD18:14
	Art. V. Leaves, Grass, Rubbish, Etc.	CD18:16
	Art. VI. Sanitary Landfills	CD18:19
	Art. VII. Refuse Transfer Station	CD18:20
	Art. VIII. Anti-Litter Code	CD18:21
	Art. IX. Reserved	CD18:26
	Art. X. Public Dumpster Service	CD18:26
	Art. XI. Donation Bins	CD18:26
19.	Gas	CD19:1
	Art. I. In General	CD19:3
	Art. II. Permits and Inspections	CD19:5
	Art. III. Gas Fitters and Installers	CD19:7
	Div. 1. Generally	CD19:7
	Div. 2. Board of Examiners	CD19:7
	Div. 3. Examinations and Certificates of Competency	CD19:9
	Div. 4. Licenses	CD19:15
20.	Health and Sanitation	CD20:1
	Art. I. In General	CD20:3
	Art. II. Health Nuisances	CD20:3
	Art. III. Contagious Diseases	CD20:5
	Art. IV. Mosquito Control	CD20:6

Chapter		Page
	Art. V. Rat Control in Business Buildings	CD20:8
	Art. VI. Lead Substances Control	CD20:10
	Art. VII. Food Service Establishments	CD20:12
	Div. 1. Generally	CD20:12
	Div. 2. Examination of Employees	CD20:12
	Div. 3. Mobile Food Units	CD20:14
21.	Property Maintenance	CD21:1
	Art. I. Scope, Application and Definitions	CD21:5
	Div. 1. Scope and Application	CD21:5
	Div. 2. Definitions	CD21:6
	Art. II. Administration	CD21:11
	Art. III. Enforcement	CD21:13
	Div. 1. Violations and Prosecution Thereof; Liens	CD21:13
	Div. 2. Condemnation	CD21:16
	Div. 3. Demolition	CD21:22
	Art. IV. Exterior Requirements	CD21:25
	Div. 1. General Requirements	CD21:25
	Div. 2. Exterior of Structure	CD21:26
	Div. 3. Swimming Pools and Other Accessory Structures	CD21:29
	Div. 4. Litter and Overgrowth	CD21:29
	Div. 5. Abandoned and Inoperable Vehicles	CD21:31
	Art. V. Interior Requirements	CD21:33
	Div. 1. General Requirements	CD21:33
	Div. 2. Component Serviceability	CD21:35
	Div. 3. Light, Ventilation and Space for Occupancy	CD21:36
	Div. 4. Plumbing	CD21:39
	Div. 5. Mechanical and Electrical Systems	CD21:41
	Div. 6. Fire Safety	CD21:44
	Art. VI. Office of Administrative Hearing Officer	CD21:46
22.	Libraries	CD22:1
22.5.	Mechanical	CD22.5:1
	Art. I. In General	CD22.5:3
	Art. II. Mechanical Journeymen and Contractors	CD22.5:6
	Div. 1. Generally	CD22.5:6
	Div. 2. Board of Mechanical Examiners	CD22.5:7
	Div. 3. Examinations, Licenses and Certificates	CD22.5:8
23.	Metropolitan Transit Authority	CD23:1
24.	Motor Vehicles and Traffic	CD24:1
	Art. I. In General	CD24:9
	Art. II. Traffic Administration	CD24:30
	Div. 1. Generally	CD24:30
	Div. 2. Citations for Violations	CD24:30.1
	Div. 3. Transportation Department	CD24:32
	Div. 4. Traffic Division	CD24:35
	Div. 5. Reserved	CD24:36
	Art. III. Accidents	CD24:36

Chapter		Page
	Art. IV. Pedestrians	CD24:36
	Art. V. One-Way Streets and Alleys	CD24:39
	Art. VI. Right-of-Way	CD24:40
	Art. VII. Turning Movements and Stopping	CD24:41
	Art. VIII. Speed Regulations	CD24:43
	Art. IX. Traffic-Control Devices	CD24:44.1
	Art. X. Stopping, Standing and Parking	CD24:51
	Div. 1. Generally	CD24:51
	Div. 2. Establishment of Parking Authority	CD24:58
	Div. 3. Parking Meters	CD24:60
	Div. 4. Parking Citation Enforcement and Review	CD24:63
	Div. 5. Abandoned and Discarded Vehicles	CD24:67
	Div. 6. Special Stops	CD24:70
	Div. 7. Snow or Ice Emergency	CD24:72
	Div. 8. Neighborhood Parking	CD24:73
	Div. 9. Valet Parking	CD24:76
	Div. 10. Immobilization of Vehicles	CD24:78
	Art. XI. Vehicle Licenses	CD24:85
	Art. XII. Vehicle Equipment	CD24:87
	Art. XIII. Bicycles	CD24:99
	Art. XIV. Schedules	CD24:101
	Art. XV. Dockless Electric Scooters and Bicycles	CD24:117
25.	Offenses and Miscellaneous Provisions	CD25:1
	Art. I. In General	CD25:5
	Art. II. Special Gathering Permit	CD25:14.4
	Art. III. Noises	CD25:18
	Art. IV. Offenses Against Morals	CD25:29
	Div. 1. Generally	CD25:29
	Div. 2. Prostitution and Related Offenses	CD25:29
26.	Parks and Playgrounds	CD26:1
	Art. I. In General	CD26:3
	Art. II. Cemetery Park	CD26:18
	Art. III. Miller Park	CD26:19
	Div. 1. Generally	CD26:19
	Art. IV. Municipal Golf Courses	CD26:20
	Art. V. Parks and Outdoors Advisory Committee	CD26:22
27.	Plumbing	CD27:1
	Art. I. In General	CD27:3
	Art. II. Plumbers	CD27:6
	Div. 1. Generally	CD27:6
	Div. 2. Board of Examiners	CD27:7
	Div. 3. Certificates of Competency	CD27:8
28.	Reserved	CD28:1
29.	Railroads	CD29:1
30.	Schools	CD30:1

Chapter		Page
31.	Sewers, Mains and Drainage	CD31:1
	Art. I. In General	CD31:7
	Art. II. Sewer Service Charges	CD31:14
	Art. III. Industrial Waste	CD31:22
	Div. 1. Generally	CD31:22
	Div. 2. Pretreatment Standards	CD31:29
	Div. 3. Permits and Administration	CD31:44
	Div. 4. Wastewater Regulations Board	CD31:56
	Div. 5. Director	CD31:57
	Div. 6. Pretreatment Enforcement	CD31:60
	Art. IV. Disposal of Excreta	CD31:64.1
	Art. V. Water and Gas Mains	CD31:64.2
	Art. VI. Sewer Agreements with Chattanooga Area Regional Council Members	CD31:64.3
	Art. VII. Other Enforcement and Appeal Procedures	CD31:64.4
	Art. VIII. Stormwater Management	CD31:65
	Div. 1. Generally	CD31:65
	Div. 2. New Development and Redevelopment Requirements	CD31:74
	Div. 3. Land Disturbing Activity and Erosion and Sedimentation Control	CD31:79
	Div. 4. General Requirements Applicable to All Permits Issued Under this Article	CD31:97
	Div. 5. Monitoring and Inspection	CD31:98
	Div. 6. Enforcement and Abatement	CD31:99
	Div. 7. Fees	CD31:103
	Div. 8. Stormwater Regulations Board	CD31:111
	Art. IX. Water and Wastewater Authority	CD31:114
32.	Streets and Sidewalks	CD32:1
	Art. I. In General	CD32:7
	Art. II. Obstructions	CD32:10
	Art. III. Excavations and Restoration of Paving	CD32:13
	Art. IV. Encroachments and Excavations on State and Federal Highways	CD32:18.2
	Art. V. Curb and Sidewalk Construction and Maintenance	CD32:18.3
	Art. VI. Sidewalk Openings and Gratings	CD32:20
	Art. VII. Driveways and Curb Cuts	CD32:21
	Art. VIII. Address Numbering System	CD32:22
	Art. IX. Street Names	CD32:26
	Art. X. Poles and Wires	CD32:28
	Art. XI. Telecommunications Services; Franchises for Telecommunications Services	CD32:29
	Art. XII. Street Construction	CD32:46
	Art. XIII. Chattanooga Tree Ordinance	CD32:55
	Div. 1. General	CD32:55
	Div. 2. Public Property Tree Maintenance, Protection, and Planting	CD32:60
	Div. 3. Private Property Tree Protection and Responsibilities	CD32:69

Chapter		Page
	Div. 4. Enforcement	CD32:72
	Art. XIV. Complete Streets	CD32:73
33.	Swimming Pools	CD33:1
	Art. I. In General	CD33:3
	Art. II. Public Pools	CD33:3
	Div. 1. Generally	CD33:3
	Div. 2. Minimum Standards	CD33:7
34.	Trailers and Trailer Camps	CD34:1
	Art. I. In General	CD34:3
	Art. II. Trailer Camps	CD34:3
	Div. 1. Generally	CD34:3
	Div. 2. Permit	CD34:7
35.	Vehicles for Hire	CD35:1
	Art. I. In General	CD35:7
	Art. II. Taxicabs, Limousines, Shuttles, and Motor Vehicles Transporting Passengers for Hire	CD35:7
	Div. 1. Passenger Vehicle for Hire Board	CD35:7
	Art. III. Regulation of Taxicabs, Limousines, Shuttles, and Motor Vehicles Transporting Passengers for Hire	CD35:8
	Div. 1. Generally	CD35:8
	Div. 2. Certificate of Public Convenience and Necessity	CD35:20
	Div. 3. Drivers' Permits	CD35:23
	Div. 4. Vehicle for Hire Privilege	CD35:27
	Art. IV. Traffic Incident Management Service	CD35:30
	Art. V. Ambulances	CD35:56
	Art. VI. Horse-Drawn Carriages	CD35:57
	Div. 1. In General	CD35:57
	Div. 2. Certificate of Public Convenience and Necessity	CD35:58
	Div. 3. Horse-Drawn Carriage Drivers	CD35:63
	Div. 4. Horses, Carriages and Equipment	CD35:66
	Art. VII. Pedal Carriages and Rickshaws	CD35:71
	Div. 1. In General	CD35:71
	Div. 2. Pedal Carriage or Pedicab Business Permit	CD35:73
	Div. 3. Electric Personal Assistive Mobility Devices (Segways)	CD35:82
	Art. VIII. Reserved	CD35:86
36.	Water	CD36:1
	Art. I. In General	CD36:3
	Art. II. Service by Companies	CD36:3
	Art. III. Wells	CD36:5
37.	Reserved	CD37:1
38.	Zoning	CD38:1
	Art. I. Title, Purpose, & Applicability	CD38:5
	Art. II. Definitions & Rules of Measurement	CD38:8
	Art. III. Zones & Zoning Map	CD38:36
	Art. IV. Residential Zones	CD38:39

Chapter		Page
	Art. V. Mixed-Use & Commercial Zones	CD38:50
	Art. VI. Downtown Form-Based Code	CD38:59
	Art. VII. Industrial Zones	CD38:59
	Art. VIII. Special Purpose Zones	CD38:64
	Art. IX. Uses	CD38:115
	Art. X. General Development Standards	CD38:169
	Art. XI. Accessory Structures	CD38:177
	Art. XII. Off-Street Parking & Loading	CD38:183
	Art. XIII. Landscape	CD38:198
	Art. XIV. Administrators	CD38:208
	Art. XV. Application Process	CD38:209
	Art. XVI. Zoning Approvals	CD38:216
	Art. XVII. Short-Term Vacation Rentals	CD38:232
	Art. XVIII. Nonconformities	CD38:239
	Art. XIX. Voluntary Incentives Program	CD38:244
	Art. XX. Enforcement	CD38:250
App. A.	City Boundaries	CDA:1
Code Comparative Table		CCT:1

Chapter 14

ELECTRICITY*

Article I. In General

Sec. 14-1. Liabilities not affected.
Sec. 14-2. Electrical code adopted.
Sec. 14-3. Amendments to the electrical code adopted.
Sec. 14-4. General duties of inspector.
Sec. 14-5. Inspector's right of entry.
Sec. 14-6. General duty to make inspections.
Sec. 14-7. Covering uninspected work.
Sec. 14-8. Duty to inspect, test wiring.
Sec. 14-9. Reinspecting existing wiring.
Sec. 14-10. Condemning defective wiring.
Sec. 14-11. Temporary permission to use current.
Sec. 14-12. Permits—Required.
Sec. 14-13. Same—Application required.
Sec. 14-14. Same—Issuance to certain persons prohibited.
Sec. 14-15. Same—Fees.
Sec. 14-16. Same—Commencing work without; double fee.
Sec. 14-17. Notice when work ready for inspector; inspection, approval.
Sec. 14-18. Correction of defects, reinspections.
Sec. 14-19. Violations, penalty.
Secs. 14-20—14-30. Reserved.

Article II. Electricians

Division 1. Generally

Sec. 14-31. Purpose of regulations.
Sec. 14-32. Liabilities not affected.
Sec. 14-33. Notices.
Sec. 14-34. Licensee to Supervise Work Under License; Duties Specified.
Secs. 14-35—14-45. Reserved.

Division 2. Board of Examiners

Sec. 14-46. Established.
Sec. 14-47. Composition; appointment.
Sec. 14-48. Terms of members.
Sec. 14-49. Qualifications of members.

***Editor's note—**The Building Official shall have discretion to accept drawings and designs based upon the 2005 National Electrical Code and the amendments of that Code adopted by the City Council upon a showing of significant financial effect upon existing projects up to and including January 1, 2011.

Cross references—Buildings, Ch. 10; energy, Ch. 15; fire prevention regulations, Ch. 17; gas regulations, Ch. 19; housing, Ch. 21; plumbing, Ch. 27.

State law reference—Authority to regulate electricians and electrical work, T.C.A. § 6-54-104.

Sec. 14-50. Chairman.
Sec. 14-51. Secretary.
Sec. 14-52. Removal of members; compensation; quorum.
Sec. 14-53. Regular meetings.
Sec. 14-54. Appeals from.
Sec. 14-55. Special meetings.
Sec. 14-56. Records to be open to inspection.
Sec. 14-57. Regulations authorized; printing.
Secs. 14-58—14-74. Reserved.

Division 3. Examinations, Licenses and Certificates

Sec. 14-75. Application for examination required; contents; qualifications.
Sec. 14-76. Examinations to be written; records required.
Sec. 14-77. Passing examination; issuance of license.
Sec. 14-78. Examination fee established.
Sec. 14-79. License fee established.
Sec. 14-80. Disposition of fees.
Sec. 14-81. Licenses and certificates required.
Sec. 14-82. Classes of license; limitations.
Sec. 14-83. Appropriate license and certificate prerequisite to doing work; exceptions.
Sec. 14-84. Expiration, renewal of license.
Sec. 14-85. Review of renewal applications: statement required.
Sec. 14-86. License to be displayed; marking of vehicles.
Sec. 14-87. Licenses, certificates not transferable.
Sec. 14-88. Suspension, revocation of certificates, denial of renewal.
Sec. 14-89. Certain persons exempted from written examination.
Sec. 14-90. Temporary certificate.
Sec. 14-91. Worker's compensation insurance required.
Sec. 14-92. Low voltage—Power limited contractors.
Sec. 14-93. Assignment or transfer of license or LV-PL registration; allowing use by another; suspension or revocation.

ARTICLE I. IN GENERAL

Sec. 14-1. Liabilities not affected.

This article shall not be construed to relieve from or lessen the responsibility or liability of any party owning, operating, controlling or installing any electrical wiring, devices, appliances or equipment for damage to persons or property caused by any defect therein, nor shall the city be held as assuming any liability by reason of the examination authorized herein or the license and certificate issued as herein provided.
(Code 1986, § 14-1)

Sec. 14-2. Electrical code adopted.

The National Electrical Code, 2023 edition (NFPA 70: National Electrical Code, International Electrical Code Series) is hereby adopted as the official electrical code of the City. Such Code is adopted by reference pursuant to the provisions of T.C.A. § 6-54-501 through § 654-506. The tables and examples included in Annexes A-E of the National Electrical Code of 2023 are not adopted by the City of Chattanooga. The provisions of the National Electrical Code of 2023 shall be in full force and effect to the same extent as if such provisions were copied verbatim herein except as amended by Section 14-3. One (1) original of the National Electrical Code, 2023 edition, is now on file and has been on file in the office of the Clerk of the City Council for more than fifteen (15) days and is available for public inspection.
(Code 1986, § 14-2; Ord. No. 9575, § 1, 7-9-91; Ord. No. 9968, § 1, 10-26-93; Ord. No. 10385, § 1, 3-12-96; Ord. No. 10839, § 1, 3-23-99; Ord. No. 11261, 4-2-02; Ord. No. 11742, § 1, 9-20-05; Ord. No. 12392, § 1, 5-11-10; Ord. No. 12601, § 1, 5-29-12; Ord. No. 13395, § 1, 11-20-18; Ord. No. 14204, § 1, 3-11-25)

Cross references—Building code adopted, § 10-1; National Fire Prevention Association's fire prevention code adopted, § 17-1; gas code adopted, § 19-1; plumbing code adopted, § 27-1.

State law reference—Adoption of technical codes, T.C.A. § 6-54-501 et seq.

Sec. 14-3. Amendments to the electrical code adopted.

The following sections of the National Electrical Code, 2023 edition, are hereby amended as follows:

1. Section 110.24(B), Available Fault Current shall be optional.
2. Section 210.8(A) is amended to make the 250-volt receptacles for garages, kitchens, and laundry, plus refrigerators further than six (6') feet from sinks optional.
3. Section 210.12 is amended so as to make Arc Fault Circuit Interrupters ("AFCIs") optional for laundry areas and for branch circuits dedicated to supplying refrigeration equipment.
4. Section 210.19(C) is amended to delete said section in its entirety and substitute in lieu of the requirement that all range taps shall be on separate wired circuits.

(Ord. No. 10385, § 2, 3-12-96; Ord. No. 10839, § 2, 3-23-99; Ord. No. 11742, § 2, 9-20-05; Ord. No. 12392, § 2, 5-11-10; Ord. No. 12601, § 2, 5-29-12; Ord. No. 13395, § 2, 11-20-18; Ord. No. 14204, § 1, 3-11-25)

Sec. 14-4. General duties of inspector.

The chief electrical inspector is hereby authorized, empowered and directed to regulate and determine the placing of electric light and power wires in and on buildings in said city; so as to prevent fires, accidents or injuries to persons or property, and to cause all electrical appliances to be so placed, constructed and guarded so as not to cause fires or accidents or endanger life or property, and wherever, in

the judgment of the chief electrical inspector, any electric wires or appliances shall be defective by reason of improper or insufficient insulation, or for any other cause, the electrical inspector shall at once cause the immediate removal of such defect.
(Code 1986, § 14-4)

Sec. 14-5. Inspector's right of entry.

The city chief electrical inspector or his assistant shall have the right to enter any building, manhole or subway, at any reasonable hour, (8:00 a.m. to 6:00 p.m.), or any hour in case of emergency, in the discharge of his or their official duty, or for the purpose of making any tests of the electrical apparatus or appliance therein contained, and for that purpose he shall be given prompt access to all buildings, public and private, and to all manholes and subways, on application to the company or individual owning or in charge or control of the same.
(Code 1986, § 14-5)

Sec. 14-6. General duty to make inspections.

The chief electrical inspector shall, during the installation of an electric wiring system, make or cause inspections to be made to insure compliance with this article and the rules.
(Code 1986, § 14-6)

Sec. 14-7. Covering uninspected work.

No work in connection with an electrical wiring system shall be covered or concealed until it has been inspected as prescribed in this article and permission to do so has been given by the electrical inspector.
(Code 1986, § 14-7)

Sec. 14-8. Duty to inspect, test wiring.

The chief electrical inspector shall, within a reasonable time after notice of completion of electrical wiring, for which a permit is required by this article, make or cause to be made an inspection of such work and such tests as may be necessary to determine that it conforms with this article and the rules.
(Code 1986, § 14-8)

Sec. 14-9. Reinspecting existing wiring.

The chief electrical inspector shall make or cause to be made a reinspection of an existing electric wiring installation whenever he deems it necessary in the interest of public safety.
(Code 1986, § 14-9)

Sec. 14-10. Condemning defective wiring.

If an electric wiring system upon reinspection is found to be defective and unsafe, the chief electrical inspector shall revoke all certificates in effect at that time relating to such system, and the use of such system shall be discontinued until it has been made to conform to this article and the rules and a new certificate has been issued by the chief electrical inspector.
(Code 1986, § 14-10)

Sec. 14-11. Temporary permission to use current.

(a) *By chief electrical inspector.* The chief electrical inspector may, in his discretion, give temporary permission, for a reasonable time, to supply and use current in part of an electrical installation before such installation has been fully completed and the certificate issued.

(b) *By chief of fire prevention bureau.* The chief of the fire prevention bureau or his deputy may, in his discretion, grant permission for supply and use of temporary current without approval of the electrical inspection department. Such temporary current shall be provided under the control of a licensed electrical contractor, Class 1, who shall at the first reasonable opportunity cause the temporary installation to be inspected by the electrical inspection department and obtain a permit therefor.
(Code 1986, § 14-11)

Sec. 14-12. Permits—Required.

No alteration or change shall be made in the wiring of any building or premises, nor shall any building or premises be wired for the placing of electric lights, motors, signs or devices without first securing from the chief electrical inspector, or competent person delegated, a permit therefor. A copy of such permit shall be displayed in a conspicuous place at the job site at all times from the time of issuance until the final inspection. No change shall be made in the electric plant after inspection without notifying the chief electrical inspector and securing a permit therefor.
(Code 1986, § 14-12)

Cross reference—Businesses, trades and occupations, Ch. 11.

Sec. 14-13. Same—Application required.

Permits shall be issued only upon written applications made therefor to the department of public works. All applications for permits shall be made by and in the name of the licensed electrical contractor undertaking to do the work proposed and also in the name of the firm or corporation with whom or by whom the contractor is associated or employed.
(Code 1986, § 14-13)

Sec. 14-14. Same—Issuance to certain persons prohibited.

No application shall be received from or permit issued to any person, unless such person is legally authorized by law to engage in the business of or to hold themselves out to the public as engaging in the business of installing, erecting or repairing, or contracting to install, erect or repair, electric wires or conductors to be used for the transmission of electric current for electric light, heat or power purposes, or to install, erect or repair electric motors, heating devices or other electrical apparatus or appliances, for the doing of which a permit is required by this article.
(Code 1986, § 14-14)

Sec. 14-15. Same—Fees.

Before any electrical contractor obtains a permit for installation or alterations, services, feeders, branch circuits or signs, he shall pay a non-refundable fee for such permit based upon the following schedule. For any electrical permit, fees shall be as follows:

(1)	For issuing permit	$40.00
(2)	Fees for work on electrical services:	
	600 volts or less	$20.00*
	*plus per 100 amps	$4.00

	Over 600 volts, per KVA ($400.00 min.)	$0.40
(3)	Temporary Service, Complete	
	100 amps or less	$35.00
	Greater than 100 amps	$35.00*
	*plus per 100 amps	$8.00
(4)	Fees for work on feeder and branch circuits (new or alterations to existing):	
	0—30 amp	$4.00
	31—100 amp	$8.00
	Larger, per 100 amp	$16.00
(5)	Fee for Transformers, Total	
	a. 100 KVA or less	$25.00
	b. Over 100 KVA	$25.00*
	*plus per KVA over 100	$0.10
(6)	Fees for internally wired signs:	
	25 sq. ft. or less	$40.00
	Over 25 square feet	$40.00*
	*plus per square foot over 25 sq. ft.	$0.40
(7)	Neon transformers (enclosed or separate)	$40.00*
	*per transformer	
(8)	Fees for approval of non-listed or non-labeled equipment	$25.00*
	*per engineer letter	
(9)	Fee for approval of signs and showcases	$25.00*
	*per sign or showcase	
(10)	Re-inspection fee	$50.00
(11)	Double Fee	
	a. Minimum	$70.00
	b. Maximum	$500.00
(12)	Low-voltage and power limited systems	
	Single tenant	15.00 per system per floor
	Multiple tenant	15.00 per system per floor for each tenant space

(Code 1986, § 14-15; Ord. No. 9525, § 1, 3-19-91; Ord. No. 10757, § 1, 9-1-98; Ord. No. 11175, § 25, 9-11-01; Ord. No. 11742, § 3, 9-20-05; Ord. No. 11742, § 3, 9-20-05; Ord. No. 12355, § 1, 3-2-10; Ord. No. 12825, § 6, 4-1-14; Ord. No. 13927, § 1, 12-20-22)

Sec. 14-16. Same—Commencing work without; double fee.

Where any electrical work requiring a permit is commenced before a permit is obtained, the permit fees shall be doubled; provided, however, that, in no case shall the additional fee be less than twenty dollars

($20.00) nor more than two hundred dollars ($200.00); and, provided, further, that, in case of emergency, repair work may be done, and the necessary permits obtained the next working day; however, the chief electrical inspector may, upon request, permit work to be commenced prior to the issuance of a permit therefor without imposition of the penalty provided.
(Code 1986, § 14-16; Ord. No. 11175, § 26, 9-11-01)

Sec. 14-17. Notice when work ready for inspector; inspection, approval.

Upon completion of the wiring of any building, and of the wiring of signs, before installation, it shall be the duty of the company, firm or individual doing the same to notify the electrical inspector, who shall at once inspect the same, and if approved by him, shall issue a certificate of satisfactory inspection, which shall contain the date of such inspection. Such approval for sign is to be shown on the approved city sign label, but no such certificate or label shall be issued unless the electric light, power, sign, or heating installation and all apparatus, wires, etc., connected with it shall be in strict conformity with the rules and regulations set forth in this chapter; nor shall current be turned on such installations until such certificate or label is issued.
(Code 1986, § 14-17)

Sec. 14-18. Correction of defects, reinspections.

Any person who shall fail to correct any defect in his work within ten (10) days after having been duly notified of such defect by the electrical inspector, shall not receive any further permit until such defect have been corrected. Immediately after the correction of such defect the inspector shall be notified of such correction. One (1) inspection will be made after the notice of correction at no charge; if, however, the defect or violation has not been corrected in accordance with this article and/or code hereby adopted, there will be a charge of twenty-five dollars ($25.00) for the first additional reinspection and a fee of fifty dollars ($50.00) for each additional reinspection thereafter until the defect or violation is corrected.
(Code 1986, § 14-18; Ord. No. 11175, § 27, 9-11-01)

Sec. 14-19. Violations, penalty.

Any person who shall violate any of the provisions of this article, or fail, neglect or refuse to comply with the rules or regulations therein and thereby promulgated or adopted, or shall fail, neglect or refuse to comply with any lawful and authorized order or request of the chief electrical inspector or other competent person designated, shall be deemed guilty of a misdemeanor, and each and every day's violation shall constitute a separate offense.
(Code 1986, § 14-19)

Secs. 14-20—14-30. Reserved.

ARTICLE II. ELECTRICIANS*

DIVISION 1. GENERALLY

Sec. 14-31. Purpose of regulations.

In the interests of the public health, safety and welfare, the following provisions establishing the board of electrical examiners for the licensing and regulation of those engaged in electrical work are adopted.
(Code 1986, § 14-31)

***Cross references—**Gas fitters and installers, § 19-51 et seq.; plumbers, § 27-21 et seq.

Sec. 14-32. Liabilities not affected.

This article shall not be construed to relieve from or lessen the responsibility or liability of any party owning, operating, controlling or installing any electrical wiring, devices, appliances or equipment for damage to persons or property caused by any defect therein, nor shall the city be held as assuming liability by reason of the examination authorized herein or the license and certificate issued as herein provided.
(Code 1986, § 14-32)

Sec. 14-33. Notices.

Notices shall be considered sufficient when either delivered personally to the person to whom such notice is directed or when mailed to the last known address of the applicant as shown in the records of the board.
(Code 1986, § 14-33)

Sec. 14-34. Licensee to supervise work under license; duties specified.

Class I, class II and class III licenses issued in accordance with the provisions of this article shall specify the name of the person who passed the examination, who shall be known as the holder of the license and as supervisor of all work done under the license. Supervision of work shall mean:

(1) The license holder shall be available during normal working hours at the holder's place of business located in the general metropolitan area of the city.

(2) The business in which the holder is associated shall have a local office in the general metropolitan area of the city and a local phone listed under the name of the firm with whom he is associated.

(3) The board of electrical examiners and the chief electrical inspector shall be notified in writing of the name of the firm with whom the holder is associated.

(4) Any holder who applied as and was licensed as a representative of a corporation, firm or association, and who ceases to be a representative of such corporation, firm or association for whatever reason, shall immediately notify the board in writing of such termination. The board shall immediately contact the corporation, firm or association by which the holder was employed and ascertain the current status of the bids, contracts, permits, etc., of such corporation, firm or association covering work being or to be performed in the city, and the board may, in its discretion, relieve any hardships and permit such work on a temporary basis as they deem advisable.

(5) The license holder shall be a full-time employee of the corporation, firm, association, or individual which he represents, during the normal working hours of said business represented. The license holder shall not obtain permits for any other corporation, firm, association, or individual. Further, the license holder shall neither represent nor obtain permits for more than one (1) corporation, firm, association, or individual at any one (1) time.

(Code 1986, § 14-34; Ord. No. 9277, § 1, 12-12-89)

Secs. 14-35—14-45. Reserved.

DIVISION 2. BOARD OF EXAMINERS

Sec. 14-46. Established.

There is hereby created and established a board of electrical examiners of the city.
(Code 1986, § 14-46)

Sec. 14-47. Composition; appointment.

The board of electrical examiners shall consist of seven (7) members to be appointed by the mayor and confirmed by the city council.
(Code 1986, § 14-47; Ord. No. 9654, § 2, 1-6-92)

Sec. 14-48. Terms of members.

Members of the board of electrical examiners shall hold office for a term of four (4) years and until their successors are elected.
(Code 1986, § 14-48)

Sec. 14-49. Qualifications of members.

The members of the board of electrical examiners shall consist of:

(1) An electrical engineer holding a degree from a recognized college and licensed as an engineer by the state;

(2) An educator or teacher;

(3) A member of the electrical contracting industry;

(4) A journeyman electrician with at least ten (10) years' experience;

(5) An employee of the Chattanooga Electric Power Board, with at least ten (10) years' experience in the electrical field;

(6) A representative of the general public not connected with the electrical industry;

(7) A member appointed as provided in section 14-50.

(Code 1986, § 14-49)

Sec. 14-50. Chairman.

The seventh member appointed shall be designated by the mayor as chairman of the board, which appointment as chairman shall be subject to the approval of the city council. Such member shall serve as chairman for his full term on the board or until his successor is elected.
(Code 1986, § 14-50; Ord. No. 9654, § 2, 1-6-92)

Sec. 14-51. Secretary.

The board shall select from its membership one (1) member to serve as secretary for at least one (1) year and until a successor is elected by the board unless that position is provided by staff of the building inspection office.
(Code 1986, § 14-51; Ord. No. 12590, § 1, 5-1-12)

Sec. 14-52. Removal of members; compensation; quorum.

Any members of the board of electrical examiners may be removed for cause at any time by the mayor after ten (10) days' written notice. Such board shall serve without compensation. Four (4) members shall constitute a quorum for the transaction of business.
(Code 1986, § 14-52; Ord. No. 9654, § 13, 1-6-92)

Sec. 14-53. Regular meetings.

The board of electrical examiners shall hold meetings semi-annually for the purpose of conducting examinations of applicants to determine their knowledge of the rules and regulations for the installation of

electrical wiring, devices, appliances and equipment as set forth in the statutes of the state, this Code and other ordinances of the city and the National Electrical Code; to issue licenses and certificates therefore; to determine the general qualifications and fitness of each applicant for executing the class of work covered by the license applied for and for the transaction of other business. Special meetings of the board of electrical examiners may be called by the chairman with the approval of a majority of the board.
(Code 1986, § 14-53; Ord. No. 12590, § 2, 5-1-12)

Sec. 14-54. Appeals from.

Any person aggrieved by any action or decision of the board of electrical examiners shall have the right of appeal to the board of adjustments and appeals by requesting an appeal in writing and by lodging such request with the Chief Building Official of the city within ten (10) days after such action or decision.
(Code 1986, § 14-54; Ord. No. 12590, § 3, 5-1-12)

Sec. 14-55. Special meetings.

Special meetings of the board of electrical examiners may be called by the chairman with the approval of a majority of the board.
(Code 1986, § 14-55)

Sec. 14-56. Records to be open to inspection.

Records of the meetings of the board of electrical examiners, including the names of all licensees, shall be on file by the Board in compliance with the Records Retention Manual adopted by the City Council pursuant to T.C.A. 10-7-702, and shall be open for inspection by the public at all reasonable times.
(Code 1986, § 14-56; Ord. No. 12590, § 4, 5-1-12)

Sec. 14-57. Regulations authorized; printing.

The board of electrical examiners may promulgate rules and regulations not inconsistent with this article, and in such event shall have such rules and regulations printed for distribution.
(Code 1986, § 14-57)

Secs. 14-58—14-74. Reserved.

DIVISION 3. EXAMINATIONS, LICENSES AND CERTIFICATES*

Sec. 14-75. Application for examination required; contents; qualifications.

(a) *Application for examination.* All persons now or hereafter desiring to engage in electrical wiring and/or contracting in the city, with the exception of City of Chattanooga's Intelligent Transportation Systems technicians, either as class I, electrical contractor, a class II, residential electrical contractor, a class III, electrical sign contractor, a residential electrician, a plant electrician, a plant master electrician, a journeyman electrician, or a sign electrician shall apply in writing to the secretary of the board for an application to take the respective examination, as specified in this article. Such application must be completed fully and returned to the secretary of the board with a check or money order for the proper examination fee no later than thirty (30) days prior to the examination date. Upon approval of the application by the board, the applicant shall appear before such board for examination for the particular license applied for. The examinations for class I electrical contractors, class II residential electrical

***Cross references—**Businesses, trades and occupations generally, Ch. 11; examination and certification of gas fitters and installers, § 19-86 et seq.

contractors, class III electrical sign contractors, residential electricians, plant electricians, plant master electricians, journeyman electricians, and sign electricians shall be different, reasonable and especially thorough, so as to obtain from the applicant an understanding of the extent of his knowledge of the subjects upon which he is questioned.

(b) *Qualifications of residential electricians and journeyman electricians.* Any person shall be eligible for examination as a residential electrician, journeyman electrician or sign electrician who:

(1) Has three (3) or more years' practicable experience as a registered apprentice electrician in the metropolitan area of the city. (One (1) year shall be equivalent to minimum of two thousand (2,000) hours actual experience in electrical installations); or

(2) Has previously held an unrevoked journeyman electrician license in the city or any other governmental agency licensing electricians; or

(3) Has satisfactorily completed a recognized apprentice training program; or

(4) Has had such experience in electrical wiring as shall be acceptable to the board.

(c) *Qualifications of class I electrical contractors and plant master electricians.* Any person shall be eligible for the examination as a class I electrical contractor or plant master electrician who:

(1) Has three (3) or more years' practicable experience as a journeyman electrician or plant electrician in a metropolitan area of the city; or

(2) Has had three (3) or more years' experience as a class II residential electrical contractor in a metropolitan area of the city; or

(3) Has held an unrevoked class I electrical contractor's license in the city; or

(4) Has a professional license to practice engineering in the state; or

(5) Has had such education and experience in electrical wiring and design in commercial, industrial or residential installations and shall be acceptable by the board.

(d) *Qualifications for class II residential electrical contractors.* Any person shall be eligible for the examination as a class II residential electrical contractor who:

(1) Has had three (3) or more years' experience as a licensed journeyman electrician or residential electrician in the metropolitan area of the city; or

(2) Has held an unrevoked class II residential electrical contractor's license in the city; or

(3) Has a degree from an accredited school of electrical engineering or technology; or

(4) Has such experience in residential electrical wiring as shall be acceptable to the board.

(e) *Qualifications for a class Ill electrical sign contractor.* Any person shall be eligible for the examination as a class III electrical sign contractor who:

(1) Is an owner, manager or supervisor of an electrical sign company; and

(2) Knows and will conform to the rules and regulations of this article and other ordinances regarding installing and erecting of electrical signs.

(f) *Qualifications for the traffic signal and traffic signal electronic technicians.* Individuals shall obtain Certifications issued by the International Municipal Signal Association (IMSA) and managed through the Chattanooga Department of Transportation.

(1) Level 1 - May work on the CDOT infrastructure under the supervision of a Level 2 or 3.

(2) Level 2 - May work independently on the CDOT infrastructure under minimal supervision of a Level 3.

(3) Level 3 - May be assigned as the foreman for any CDOT project.

(g) *Proof of qualifications.* The board shall require written proof of any of the above qualifications, and it shall be the responsibility of the applicant to provide such definite proof with his application.
(Code 1986, § 14-75; Ord. No. 10757, § 2, 9-1-98; Ord. No. 12590, § 5, 5-1-12; Ord. No. 13687, § 1, 7-6-21)

Sec. 14-76. Examinations to be written; records required.

Examinations for class I, class II, class III, residential electricians, plant electricians, plant master electricians, and journeyman's license given by the board shall be written and a complete record of every examination shall be kept on file by the board for a period of three (3) years after the date of the examination.
(Code 1986, § 14-76)

Sec. 14-77. Passing examination; issuance of license.

Any applicant making a grade of seventy percent (70%) or more on each section of the written examination shall be considered qualified for, and the board shall issue to the applicant, the particular license which was applied for upon payment of the required fees and the furnishing of any required information. All such licenses shall be signed by the chairman and the secretary of the board. All applicants who have passed the written examination shall purchase the license within one (1) year of notice by the Board of Electrical Examiners.
(Code 1986, § 14-77; Ord. No. 12888, § 1, 1-6-15)

Sec. 14-78. Examination fee established.

The examination fee shall be one hundred dollars ($100.00) for all written examinations given by the Board of Electrical Examiners.
(Ord. No. 11444, § 1, 8-12-03; Ord. No. 12590, § 6, 5-1-12; Ord. No. 12888, § 2, 1-6-15)

Sec. 14-79. License fee established.

Beginning on the date of passage of the ordinance from which this section is derived, all licenses issued by the Board shall be effective and renewed pursuant to section 14-84 following the date of issuance of the license. License fees for all licenses by the Board are as follows:

Journeyman electrician	$40.00/2 years
Journeyman sign electrician	40.00/2 years
Class 1 electrical contractor	400.00/2 years
Class 2 residential electrical contractor	200.00/2 years
Class 3 electrical sign contractor	100.00/2 years
Residential electrician	20.00/2 years

Plant master electrician	200.00/2 years
Temporary journeyman electrician	20.00
Special license	200.00/2 years
Plant electrical license:	
(a) 1—5 electrical maintenance employees	$400.00/2 years
(b) 6—14 electrical maintenance employees	800.00/2 years
(c) 15 or more electrical maintenance employees	1,200.00/2 years

(Code 1986, § 14-79; Ord. No. 9525, § 3, 3-19-91; Ord. No. 12590, § 7, 5-1-12; Ord. No. 12888, § 3, 1-6-15)

Sec. 14-80. Disposition of fees.

Fees required by this article shall be collected by the secretary of the board of electrical examiners and paid over to the city treasurer. All expenses incurred by such board shall be paid by the city treasurer from the fees collected. Any balance left in such fund shall be held by the city treasurer subject to the order of the mayor, and in no event shall the board incur a greater expense than the amount collected in fees.

LV-PL Registration	$100.00

(Code 1986, § 14-80; Ord. No. 9654, § 13, 1-6-92; Ord. No. 12825, § 2, 4-1-14)

Sec. 14-81. Licenses and certificates required.

With the exception of the City of Chattanooga Traffic Signal and Intelligent Transportation Systems (ITS), no person shall engage in or hold himself (or herself) out as being in the business of installing, maintaining, altering or repairing any electrical wiring, devices, signs, appliances or equipment in the city unless such person has received an electrical license of the appropriate class and a certificate therefor as defined in Sec. 14-75; or in the case of a firm or corporation, unless it is owned or operated by, or has in its regular employment, a person who has received an electrical license of the appropriate class and a certificate therefor.

For the City of Chattanooga Traffic Signal and Intelligent Transportation Systems no person shall engage in or hold himself (or herself) out as being in the business of installing, maintaining, altering or repairing any signal/ITS wiring, devices, signs, appliances or equipment in the city unless such person has received an IMSA certification of the appropriate level and a certificate therefor as defined in section 14-75(f); or in the case of a firm or corporation, unless it is owned or operated by, or has in its regular employment, a person who has received an IMSA certification of the appropriate level and a certificate therefor.

(Code 1986, § 14-81; Ord. No. 13687, § 1, 7-6-21)

Sec. 14-82. Classes of license; limitations.

(a) Nine (9) Classes of licenses shall be issued by the Board of Electrical Examiners.

(b) A journeyman electrician license shall entitle the holder thereof to perform the installation, alteration and repair of any electrical wiring, devices, appliances or equipment under the supervision of a holder of a class I, class II, or a class III license. The holder of a journeyman electrician's license may

supervise other licensed journeymen or registered apprentice electricians but may not be issued permits for electrical work. A journeyman's license shall entitle the holder thereof to be named as a designee on a plant electrical license and to perform and supervise full-time employees of the firm holding the plant electrical license in performing electrical work with an existing building owned or used by that firm subject to the conditions in paragraph (h) of this section. The work done is to be limited to the maintenance, repair, replacement, relocation and altering existing electrical circuits and to the installation of new circuits of sixty (60) amps or less capacity in or on existing buildings.

(c) A class I electrical contractor's license shall entitle the holder thereof to engage in the business of and to secure permits for the installation, alteration and repair of any electrical wiring, devices, appliances or equipment. A valid class I electrical contractor's license shall allow the holder of such license to obtain a journeyman or residential electrician license upon payment of both license fees.

(d) A class II residential electrical contractor's license shall entitle the holder thereof to engage in the business of and to secure permits for the installation, alteration and repair of any electrical wiring, devices, appliances, or equipment in one- and two-family residential dwellings only. A valid class II electrical contractor's license shall allow the holder of such license to obtain a journeyman or residential electrician license upon payment of both license fees.

(e) A class III electrical sign contractor's license shall entitle the holder thereof to employ and supervise licensed journeyman electricians and to take out permits to install such electrical wiring and accessories within the sign as may be necessary for the illumination and mechanization of such sign under the supervision of the chief electrical inspector who shall issue city labels of approval before signs are installed. It also permits the licensed sign contractor to secure permits for installing electric signs and making connections to adequate existing electrical circuit only, provided the existing circuit is not more than four (4) feet from the sign to be installed. A class III electrical sign contractor who also is the holder of valid class II residential electrical contractor's license shall be permitted to build and wire the service entrance, meter center and service equipment for an individual sign which will be served directly from the electric utility lines. A class III electrical contractor's license shall further entitle the holder thereof to install neon, gas filled tube, decorative lighting.

(f) The board of electrical examiners may also issue special restricted licenses to such persons as it determined qualified.

(g) The holder of either of the licenses specified in paragraphs (c), (d), (e), or (f) above, shall supervise licensed journeyman electricians and registered apprentice electricians.

(h) Upon application, the board of electrical examiners shall issue a plant electrical license to a manufacturing firm or a non-profit organization as the holder of the license to undertake the work of maintaining, repairing, replacing, relocating, altering, extending or installing electrical systems within buildings occupied by the license holder as owner or lessee subject to the following limitations and conditions:

(1) A holder of a plant license, through its qualified representative, is held responsible for all work done under its license and is subject to the penalties provided for in the applicable codes and statutes.

(2) The person named on the license application as the holder's designee shall be responsible for the electrical work being done. The work is to be done by full-time employees of the firm.

(3) The designee shall be a full-time employee of the license holder and hold a valid city plant electrician's license or a plant master electrician's license or, for a period not to exceed six (6) months, a temporary journeyman's license issued in accordance with other sections in this article.

In the absence of a qualified full-time employee, an outside class I electrical contractor may be named as a designee, but all work must be done by employees of the contractor who are properly licensed in accordance with other sections of this article.

(4) If the designee should terminate his employment with the license holder, such firm shall immediately provide the name of a replacement, who meets the qualifications in paragraph (2) above, to the board of electrical examiners. If no licensed person is available, an individual having a minimum of five (5) years' experience as an electrician or who is a graduate electrical engineer or equivalent may serve temporarily in this position until he has the opportunity to take the examination at its next offering.

(5) A plant electrical license shall entitle its holder to maintain, repair, replace, relocate and alter existing electrical circuits and to install new circuits within existing buildings with the exception that a license holder with a plant electrician as the designee will be limited to the installation of new circuits of sixty (60) amps or less capacity within existing buildings. If the designee holds a plant master electrician's license, employees of the manufacturing firm also may make electrical installations in excess of sixty (60) amps capacity on existing buildings and on new buildings, additions and new structures.

(6) Electrical permits are not required for work within existing buildings. Work performed, other than that exempted in section 14-83, under the plant license is subject to inspections made annually, at a time arranged with the designee, covering that work performed during the previous year. Permits shall be obtained for electrical work in or on new buildings, additions and structures and inspections made in accordance with other sections in this chapter. It will be the responsibility of the designee to call for inspections at the rough-in and final stages on work for which permits are obtained. Inspections may be made at other times for cause.

(7) Application for a plant electrical license shall be made by the owner, officer of a corporation or other responsible person having authority to attest to the firm's acceptance of responsibility for all

work done under its license, and acknowledge it is subject to the penalties and liabilities provided in this and other applicable codes. The license is subject to suspension or revocation at any time in accordance with the provisions in this article.

(8) All work under this section will be done in accordance with the National Electrical Code as adopted by this chapter.

(i) A residential electrician's license shall entitle the holder thereof to perform the installation, alteration and repair of any electrical wiring, devices, appliances or equipment in any one- and two-family dwellings and multi-family dwellings, not exceeding three (3) floors above grade only under the supervision of a holder of a class I or class II electrical contractor's license. The holder of a residential electrician's license may supervise other residential electricians or registered apprentice electricians but may not be issued permits for electrical work.

(j) A plant electrician's license shall entitle the holder thereof to be named as a designee on a plant electrical license and to perform and supervise full-time employees of the firm holding the plant electrical license in performing electrical work with an existing building owned or used by that firm subject to the conditions in paragraph (h) of this section. The work done is to be limited to the maintenance, repair, replacement, relocation and altering existing electrical circuits and to the installation of new circuits of sixty (60) amps or less capacity in or on existing buildings.

(k) A plant master electrician's license shall entitle the holder thereof to be named as a designee in a plant electrical license and to supervise full-time employees of the firm holding the plant electrician license in the maintenance, repair, replacement, relocation and altering existing electrical circuits in or on existing buildings owned or used by that firm subject to the conditions in paragraph (h) above.

(l) A sign journeyman electrician license shall entitle the holder thereof to install, repair, alter, add to or change any electrical wires, apparatus, raceways, conduit or any part thereof on electrical signs under the direct supervision of a Class III electrical sign contractor; provided, however, that no work or connections by a sign journeyman electrician shall be performed on existing electrical circuits more than four (4) feet from the sign to be installed or altered.

(m) Licenses and LV-PL registrations will be issued on a two (2) year calendar year basis and may be renewed upon application and payment of the renewal fee. Failure to renew prior to February 1 following the expiration date shall subject such person to a double fee if renewed between the period of February 1 and June 30. After July 1, the licensee or registrant will be required to successfully pass the appropriate written examination prior to being issued a new license. Exceptions will be made for holders of city electrical licenses or LV-PL registrations who are prevented from engaging in electrical construction by the City by reason of their contractual arrangement with the state or employment with the City as an electrical inspector and have held their licenses on an inactive basis. On the occasion of the termination of their contract with the state or employment with the City, as the case may be, their licenses will be reactivated upon written request within ninety (90) days of their aforesaid termination and payment of the appropriate annual fee.

(Code 1986, § 14-82; Ord. No. 9525, §§ 4, 5, 3-19-91; Ord. No. 9694, § 1, 4-7-92; Ord. No. 10757, § 3, 9-1-98; Ord. No. 12590, § 8, 5-1-12; Ord. No. 12825, § 3, 4-1-14; Ord. No. 12888, § 4, 1-6-15)

Sec. 14-83. Appropriate license and certificate prerequisite to doing work; exceptions.

(a) Where any electrical work covered by the National Electrical Code is being done, it shall be done by a licensed journeyman electrician or a licensed residential electrician employed by and supervised by the holder of a class I electrical contractor's license, class II residential license, class III electrical sign contractor's license or special license, and no person shall, in any manner, undertake to execute any work of installing, maintaining, altering or repairing any electrical wiring, devices, signs, appliances, or equipment unless such person has received either a class I electrical contractor's license and a certificate

therefor, a class II residential electrical contractor's license and a certificate therefor, or a class III electrical sign contractor's license and certificate therefor, except for work in existing plants by firms holding a plant electrical license in accordance with provisions and limitations set out in section 14-82(h) of this article; provided that, no license shall be required in order to execute any of the following classes of work:

(1) Minor repair work such as replacement of fuses or sockets, replacement of lamps. and the connection of portable devices to suitable receptacles which have been permanently installed.

(2) The installation, alteration or repair of wiring, devices, appliances, or equipment for the operation of signals or the transmission of intelligence, where such wiring, devices, signs, appliances or equipment operate at a potential not exceeding fifty (50) volts between conductors and do not include generating or transforming equipment capable of supplying more than fifty (50) watts of energy.

(3) Any work involved in the manufacture, test or repair of electrical materials, devices, appliances or apparatus.

(4) The assembly, erection and connection of electrical apparatus and equipment by the manufacturer of such apparatus and equipment, but not including any electric wiring other than that involved in making electrical connections on the apparatus or equipment itself or between two (2) or more parts of such apparatus or equipment.

(5) The maintenance and repair of electrical equipment by manufacturing concerns through regular employees.

Provided, however, that such exception shall not apply to the manufacture, test, repair, assembly, erection and/or connection of electrical signs.

(b) It shall be unlawful for a class I, II, III or special license holder to allow any person who is not licensed as a journeyman electrician, a residential electrician, an apprentice electrician or helper working under the supervision of a class I, II, or III contractor or special license holder to do any electrical work, except for work in existing plants by full-time employees of firms holding a plant electrical license in accordance with the provisions and limitations set out in section 14-82(h) of this article.

(c) It is understood that any work listed in the Chattanooga City Code to be done by residential electrician can be performed by journeyman electricians and any responsibilities of a plant master electrician or a class II or class III electrical contractor can be performed by a class I electrical contractor.

(d) No permit shall be required for the installation, maintenance, or alteration of electrical wiring systems in: (1) one- or two-family dwellings; (2) two-conductor bell wiring; (3) thermostat wiring; or (4) low-voltage and power limited wiring installed outdoors or underground.
(Code 1986, § 14-83; Ord. No. 10087, § 1, 8-23-94; Ord. No. 12590, § 9, 5-1-12; Ord. No. 12825, § 5, 4-1-14)

Sec. 14-84. Expiration, renewal of license.

Class I, class II, class III, plant electrical and plant master electrician's licenses shall expire on the 31st of December and shall be renewed every two (2) years in the even numbered years. Each journeyman, and residential electrician license shall expire on the thirtieth (30th) day of June in even numbered years. All licenses shall be renewable upon application of the holder, upon payment of the fee set out in Section 14-79 as required by the board in this article. If any licensee makes an application for renewal between the expiration date of the license and the third year following the expiration date, the applicant shall be required to pay all delinquent fees before any renewal will be approved by the Board. Any licensee who fails to make application and pay the required fee within the third year following the expiration date of the license shall be required to take another written examination; provided that, if any licensee enters active service in the

armed forces of the United States, he shall be granted a renewal license upon his application after discharge from such service, if such application is presented to the board within six (6) months following the date of his discharge or such license has been placed on inactive status as set forth in Section 14-82(m).
(Code 1986, § 14-84; Ord. No. 12590, § 10, 5-1-12; Ord. No. 12637, § 1, 8-21-12; Ord. No. 12714, § 1, 4-2-13; Ord. No. 12888, § 4, 1-6-15)

Sec. 14-85. Review of renewal applications: statement required.

It shall be the duty of the board of electrical examiners to review all applications for the renewal of any license, and the board shall require that each applicant for renewal shall file a statement signed by the applicant that he has not misused his license and that he has abided by this Code and the ordinances of the city pertaining to electrical contractors and the installing of any electrical wiring, devices, appliances or equipment. If an applicant for renewal cannot honestly file such a statement, a full explanation of the reasons must accompany the renewal application in lieu of all or part of the required statement.
(Code 1986, § 14-85)

Sec. 14-86. License to be displayed; marking of vehicles.

(a) Every holder of a class I, class II, or class III license shall keep his certificate and license displayed in a conspicuous place in his principal place of business, and every class I, II or III license holder shall identify any vehicles used in the installation of electrical wiring and devices with his certificate number and his name or the name of the company with which he is associated in letters and numerals not less than three (3) inches high on each side of such vehicles.

(b) Every holder of any license issued under this article will also be issued a license card annually with his license renewal which he shall carry with him at all times while engaged in any electrical work and shall show when requested to do so by any electrical inspector or other duly authorized person having responsibility for enforcing these articles.
(Code 1986, § 14-86)

Sec. 14-87. Licenses, certificates not transferable.

No license and certificate issued in accordance with the provisions of this article shall be assignable or transferable.
(Code 1986, § 14-87)

Sec. 14-88. Suspension, revocation of certificates, denial of renewal.

(a) The board of electrical examiners shall revoke or suspend a certificate issued to any electrician or electrical contractor upon positive proof that such person:

(1) Knowingly violated the provisions of this chapter or the rules and regulations of the board.

(2) Practiced fraud or deception in making application for or obtaining such certificate or registration.

(3) Is incompetent to perform a service to the public as certified.

(4) Permitted his certificate of registration to be used, directly or indirectly, by another to obtain or perform electrical work or services.

(5) Is guilty of such other unprofessional or dishonorable conduct of such nature as to deceive or defraud the public.

(6) Has done electrical work in excess of that permitted by the license held.

(7) Failed to comply with this chapter of this Code, the requirements of the electrical code, or repeatedly failed to obtain permits required before commencing work.

(8) Has obtained a permit directly or indirectly for another unless the license holder shall be the supervisor of all work covered by the permit.

(9) Has received from another any compensation wherein the sole consideration thereof is the obtaining of a permit.

(b) The board may disapprove any renewal of a certificate when the applicant has misused his license, has made any intentional misstatement on such application, or has been guilty of any act or conduct which would constitute grounds for revocation or suspension of a certificate as herein provided; provided, however, the board shall not disapprove any renewal until after the application has been accorded an opportunity to be heard after five (5) days' notice by registered mail or personal service of such a notice.

(c) No action of the board to suspend or revoke a certificate of competency or registration shall become final until the alleged offender has been given an opportunity to appear before the board to show cause as to why such action should not be taken.

(d) Notice, in writing, of the proposed action of the board to revoke or suspend a certificate shall be given to the holder of such certificate, stating the specific charges upon which such action is based. The notice shall stipulate that a hearing will be scheduled at a time and place set by the board for the party to show cause why such action should not be made final. Such hearing shall not be held less than five (5) days following notice to the party. Failure to appear before the board to answer the specific charges set forth in the notice shall be deemed just cause for final revocation or suspension of a certificate.
(Code 1986, § 14-88)

Sec. 14-89. Certain persons exempted from written examination.

(a) *Existing business.*

(1) All persons holding class I electrical contractor's license and class III electrical sign contractor's license at the time of adoption of this article [April 18, 1972] will be exempt from taking the examination required by this article. All other persons desiring such licenses shall be required to conform to the requirements of this article.

(2) Any person who shall be otherwise qualified as a journeyman electrician as hereinbefore set out in section 14-75(b), whose principal occupation has been installing, maintaining, altering and repairing any electrical wiring, devices, appliances or equipment for three (3) or more years next preceding the effective date of this subsection [January 23, 1973] or is the holder of the former class II electrical maintenance license shall be exempted from taking the written examination for journeyman electrician's license as required by this article. The board of electrical examiners is hereby authorized to issue a journeyman electrician's license to such persons upon written application for such license, accompanied by sufficient proof of the aforesaid qualifications and the payment of the license fee set out in this article, provided that such application for such license and payment therefor was made within three (3) months after the effective date of this subsection [January 23, 1973].

(b) *Newly annexed territory.*

(1) Electrical contractors who have had an established place of business located in newly annexed territory and whose principal business has been in such territory and whose principal business has been electrical contracting and who have maintained such place of business for three (3) or more years next preceding the date of the annexation of such territory shall be exempted from taking the written examination required by this article. The board of electrical examiners is hereby authorized in its discretion to issue class I, II, III, or special electrical licenses to such persons as it deems

qualified upon written application for such license, the submission of adequate written proof of the above requirements and the payment of fees set out in this article, provided that such application and payment is made within six (6) months after the date of annexation of such territory.

(2) Journeyman electricians who are qualified under section 14-75(b) of this article and whose legal place of residence has been in the newly annexed area for the three (3) years next preceding the annexation of such territory or who are currently employed by a class I, II or III contractor whose principal place of business is in the newly annexed area and whose principal occupation is journeyman electrician shall be exempted from taking the examinations required by this article. The board of electrical examiners is hereby authorized to issue journeyman electrician's licenses to such persons upon written application for said license, the submission of adequate written proof of the above requirements and the payment of fees set out in this article, provided that such application and payment is made within six (6) months after the date of annexation of said territory.

(Code 1986, § 14-89)

Sec. 14-90. Temporary certificate.

Anything here and above to the contrary notwithstanding, however, it shall be lawful for the board of electrical examiners through the office of the chief electrical inspector of the city, to issue a temporary journeyman, sign journeyman, or residential electrician's license to any applicant who presents evidence of qualification as a journeyman, sign journeyman or residential electrician and pays the prescribed fee. The chief electrical inspector shall determine the qualification of the applicant and may at his discretion restrict the limits of the use of the temporary license. The temporary license shall be valid for one (1) year from the date of issue and may be renewed for not more than one (1) additional year, at the discretion of the chief electrical inspector. The intent of this limit of renewal is to restrict one (1) individual to no more than two (2) years of operation under a temporary license. The board of electrical examiners may revoke for just cause the said temporary license permit at any time.

(Code 1986, § 14-90; Ord. No. 9525, § 6, 3-19-91)

Sec. 14-91. Worker's compensation insurance required.

All license holders will comply with all workers compensation provisions for any employees which are required by the State of Tennessee at the time any work is performed and submit any evidence of workers compensation insurance that is required by the State of Tennessee before any license is issued.

(Code 1986, § 14-91; Ord. No. 12590, § 11, 5-1-12)

Sec. 14-92. Low voltage—Power limited contractors.

The installation, alteration or repair of wiring, devices, appliances or equipment for the operation of signals or the transmission of intelligence where such wiring, devices, appliances or equipment operate at a voltage not exceeding fifty (50) volts between conductors and do not include generating or transforming equipment capable of supplying more than fifty (50) watts of energy, provided, however, that installers are currently registered as low-voltage, power limited ("LV-PL") contractors with the City.

(Ord. No. 12825, § 1, 4-1-14)

Sec. 14-93. Assignment or transfer of license or LV-PL registration; allowing use by another; suspension or revocation.

(a) It shall be unlawful for any person holding a license or LV-PL registration issued hereunder to allow the use of the same directly or indirectly by any other person for the purpose of obtaining a permit to do any electrical work in the city. For good cause shown, the board shall have the right to require the

license-holder or LV-PL registrant to submit any and all relative business and payroll documents. In addition, suspected violations involving class 5 license holders shall be reported in writing to the state board for licensing contractors.

(b) The board may reprimand, suspend or revoke any license or LV-PL registration, or require an examination of the holder thereof, if the person holding such license or LV-PL registration willfully, or by reason of incompetency, repeatedly violates any state statute or ordinances, rule, or regulation in the maintenance, alteration or repair of electrical wiring, devices, appliances, and equipment.

(c) The board shall provide the license holder or LV-PL registrant with a written statement of the charges and notice of the hearing at least five (5) days prior to the board hearing.
(Ord. No. 12825, § 4, 4-1-14)

Chapter 15

ENERGY*

Article I. In General

Secs. 15-1—15-15. Reserved.

Article II. Energy Curtailment

Division 1. Generally

Secs. 15-16—15-25. Reserved.

Division 2. Electric

Sec. 15-26. Definitions.
Sec. 15-27. Notice of energy emergency; proclamation by mayor of energy emergency.
Sec. 15-28. Measures.
Sec. 15-29. Exceptions.
Sec. 15-30. Substitution officers for mayor.
Secs. 15-31—15-40. Reserved.

Division 3. Petroleum Product Usage

Sec. 15-41. Definitions.
Sec. 15-42. Notice of energy emergency; proclamation by mayor of energy emergency.
Sec. 15-43. Measures.
Sec. 15-44. Exceptions.
Sec. 15-45. Substitution officers for mayor.
Sec. 15-46. Penalty.

***Cross references—**Filling stations, § 11-156, et seq.; electricity, Ch. 14.

ARTICLE I. IN GENERAL

Secs. 15-1—15-15. Reserved.

ARTICLE II. ENERGY CURTAILMENT

DIVISION 1. GENERALLY

Secs. 15-16—15-25. Reserved.

DIVISION 2. ELECTRIC

Sec. 15-26. Definitions.

As used in this division:

Customer means every person, partnership, company, firm, corporation, unincorporated association, or any other legal entity using or receiving any form of energy resource from the electric power board of the city.

Energy emergency means a condition of danger to the health, safety, welfare or economic well-being of the citizens of the city, arising out of a present or threatened shortage or reduction of usable energy resources; also, any condition of substantial danger resulting from the operation of any electrical power generating facility, or the transport of any energy resource by any means whatsoever.

Energy resource means all forms of energy or power, including, without limitation, oil, gasoline and other petroleum products; natural or synthetic gas; electricity in all forms and from all sources; and other fuels of any description.

Mayor means the mayor of the city.

Occupied space means a space then occupied by human beings for business or living.

Substitute officer means an official who shall act in the absence or inability to act of the mayor, as provided in this chapter and article, in case of energy emergencies.
(Code 1986, § 15-26)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 15-27. Notice of energy emergency; proclamation by mayor of energy emergency.

The electric power board shall advise the mayor when, in its opinion, an energy emergency, for whatever reason, exists in the city. When, in the judgment of the mayor, an energy emergency, as defined herein, is determined to exist, he shall forthwith proclaim the existence of same, the original of which proclamation shall be filed with the city finance officer.
(Code 1986, § 15-27; Ord. No. 9654, § 8, 1-6-92)

Sec. 15-28. Measures.

(a) After proclamation of an energy emergency, the mayor may, at his discretion, in the interest of the public health, safety and welfare, order the implementation of any or all of the following energy curtailment steps:

(1) Prohibit any customer from making, causing or permitting any use of an energy resource from the electric power board for exterior floodlighting and motorized devices for decorative use, with the exception that commercial customers may operate window display lighting and one (1) outdoor sign for business identification purposes.

(2) Reduce the amount of electric energy usage for lighting billboards and other outdoor advertising signs under contract by the same percentage of kilowatt hours that the Tennessee Valley Authority reduces the total supply of kilowatt hours available to the electric power board. This reduction shall not apply to the amount of energy used in connection with lighting the one (1) outdoor sign for business identification permitted under subparagraph (a)(l) of this section.

(3) Prohibit any customer from making, causing or permitting any use of an energy resource from the electric power board for outdoor gas lights, swimming pool heaters, outdoor barbecue grills or similar nonessential uses.

(4) Prohibit any customer from making, causing or permitting any use of an energy resource from the electric power board for the purpose of:

a. Heating or cooling an unoccupied space beyond the temperature limit set by order of the mayor; or

b. Heating or cooling an unoccupied space at a temperature in excess of that required to prevent loss of perishable goods, animals or damage to piping or equipment.

(5) Prohibit any customer from making, causing or permitting any use of an energy resource from, the electric power board for exterior lighting during daylight hours.

(6) Prohibit any customer from making, causing or permitting any use of an energy resource from the electric power board for interior lighting within commercial and industrial buildings when they are closed for business.

(7) Prohibit any customer from making, causing or permitting any use of an energy resource from the electric power board for noncommercial recreational use after 10:00 p.m., and such use before 10:00 p.m. shall not be in excess of fifty percent (50%) of the amount of that energy resource used in the billing period for the same month one (1) year earlier.

(8) Declare and set the maximum number of hours and the maximum number of days that commercial customers may be open for the conduct of trade or business in any seven (7) consecutive day period. Such declaration or restriction shall not be in conflict with any restrictions that may be imposed by the state or the federal government.

(9) Declare certain businesses as nonessential to the maintenance of the public health, welfare and safety. Such businesses shall be subject to having their energy resource supply from the electric power board restricted or eliminated upon order of the mayor.

(10) Prohibit or restrict such other activities as he reasonably believes are necessary to help maintain life, health or property within the city.

(b) In imposing the restrictions provided by this section, the mayor may impose them for such times, upon such conditions, with such exceptions and in such areas of the city as he, from time to time, deems necessary.

(c) Whenever the restrictions imposed hereunder are more restrictive than are required by any other statute, local ordinance or regulation, the provisions of the restriction imposed hereunder shall govern.

(d) Whenever the restrictions of any other statute, local ordinance or regulation are more restrictive than the restriction imposed hereunder, the provisions of such statute, local ordinance or regulations shall govern.
(Code 1986, § 15-28)

Sec. 15-29. Exceptions.

Exceptions to the foregoing provisions may be made where necessary for the maintenance of the public health, welfare and safety, or where required by law. Such exceptions shall include, but not necessarily be limited to, police, fire and other essential governmental services; the room rental services of hotels, motels or other similar establishments; funeral homes and mortuaries; hospitals, medical clinics, sanitariums, rest homes and the prescription drug services of business establishments. The mayor shall determine such approved exceptions as are necessary for the maintenance of the public health, welfare and safety, and include a listing of the same in such proclamations as may be issued by him invoking the provisions of section 15-28, and shall file such proclamations with the office of the city finance officer.
(Code 1986, § 15-29)

Sec. 15-30. Substitution officers for mayor.

If the mayor is absent from the city, or is disabled, incapacitated or otherwise unable to act or function as mayor, then the powers vested in the mayor by this division shall vest in the following officials in the order named, depending on whether such officials are present in the city and are not disabled, incapacitated, or otherwise unable to act or function as such official:

(1) Chairperson of the City Council;

(2) Vice-chairperson of the City Council;

(3) Head of the police department.
(Code 1986, § 15-30; Ord. No. 9654, § 90, 1-6-92)

Secs. 15-31—15-40. Reserved.

DIVISION 3. PETROLEUM PRODUCT USAGE

Sec. 15-41. Definitions.

As used in this division:

Customer shall mean every person, partnership, company, firm, corporation, unincorporated association or any other legal entity using or receiving any form of petroleum energy resource from any form of petroleum energy resource from any distributor of same with the city.

Energy advisory board shall mean that group of private citizens appointed by the various governmental authorities in and within the Chattanooga, Hamilton County, Tennessee, area. The board shall consist of five (5) members appointed by the mayor of the city; three (3) members appointed by the county executive, and one (1) member for each of the other local governments participating.

Motor vehicles shall mean any and all types of vehicles that are propelled by an internal combustion engine which uses a petroleum distillant of some form as its energy source, except commercial and industrial vehicles.

Petroleum energy alert shall mean that a present shortage has occurred or that a threatened shortage is about to occur and the public shall be notified by the mayor of the degree or severity of the alert as follows:

(1) *Blue alert.* Supply is ample, but at the conservation point where voluntary conservation must be observed and all users must be conscious of their needs and usages.

(2) *Yellow alert.* A slight shortfall; the supply is below the conservation point and all users of petroleum energy products are urged to use mass transportation and car pools. Retail customers are urged not to top off tanks and to purchase supplies on a weekly basis.

(3) *Red alert.* Requires mandatory conservation as supply is extremely short, ten (10) percent below the conservation point. Minimum purchases of petroleum energy products shall be allowed from the retail distributors. Sales of petroleum products for non-motor vehicle use to be curtailed.

(4) *Mandatory alert.* Supply curtailed to point where federal department of energy institutes rationing.

Petroleum energy emergency shall mean a condition of danger to the health, safety, welfare or economic well being of the citizens of the city, arising out of a present or threatened shortage or reduction of usable petroleum energy products within the city and in and about the surrounding communities.

Petroleum energy products shall mean all forms of petroleum energy in its various refined states that is used as an energy source or used in motor vehicles of all types.

Resale retail distributor of petroleum energy products shall mean any resale retail distributor who makes direct sales of the petroleum energy products to the user of same for and as an energy fuel source for motor vehicles of any and all types.

Substitute officer shall mean an officer who shall act in the absence or incapacity of the officer designated to act.

(Code 1986, § 15-41)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 15-42. Notice of energy emergency; proclamation by mayor of energy emergency.

The energy advisory board shall advise the mayor when, in its opinion, after reviewing the supply data of the local petroleum energy distributors, a petroleum energy emergency exists in the city and at what alert stage the emergency exists. The mayor shall further proclaim the existence of same, the original of which proclamation(s) and any modifications, amendments, or recessions, shall be filed with the city finance officer.

(Code 1986, § 15-42; Ord. No. 9654, § 8, 1-6-92)

Sec. 15-43. Measures.

(a) After proclamation of a petroleum energy emergency and a designation of the type and degree of alert that exists, the mayor may, at his discretion, in the interest of the public health, safety and welfare, order the implementation of any or all of the following petroleum energy curtailment steps as set out by degree of petroleum energy alert in progress (which order shall be filed with the city finance officer).

(1) *Blue alert.*

a. Request voluntary curtailment of use by the public and private sectors of the community.

b. Notify local media of the existence of a potential shortage to encourage the public to conserve.

(2) *Yellow alert.*

a. Request the increased usage of car pools and mass transit by the local residents.

b. Request that customers only make weekly purchases of petroleum energy products and request that customers not "top off" their tanks.

(3) *Red alert.*

a. Require sales of petroleum energy products in the maximum quantity of ten (10) gallons (forty-two and twenty-eight-hundredths (42.28) liters) per customer with a minimum purchase of five dollars ($5.00) required, with certified van and car pool vehicles to be exempt from the maximum purchase limit.

b. Require the institution of an odd/even purchase system, using the last two (2) digits of the vehicle license, and establish days when odd-numbered vehicles may purchase and days when even-numbered vehicles may purchase.

c. Require local area businesses and industry to certify to the city those people using car pools and/or van pools and to establish specific days and/or times for the purchase of petroleum energy products for use in car and/or van pools and to allow purchases in excess of the ten (10) gallon limit for such usages.

d. Prohibit or restrict such other activities as he reasonably believes are necessary to help maintain life, health or property within the city.

e. In imposing the restrictions provided by this section, the mayor may impose them for such times, upon such conditions, with such exceptions and in such areas of the city as he, from time to time, deems necessary.

f. Whenever the restrictions imposed hereunder are more restrictive than are required by any other statute, local ordinance or regulation, the provisions of the restriction imposed hereunder shall govern.

g. Whenever the restrictions of any other statute, local ordinance or regulation are more restrictive then the restriction imposed hereunder, the provisions of such statute, local ordinance or regulation shall govern.

(Code 1986, § 15-43)

Sec. 15-44. Exceptions.

Exceptions to the foregoing provisions may be made where necessary for the maintenance of the public health, welfare and safety, or where required by law. Such exceptions shall include, but not necessarily be limited to, police, fire and other essential governmental services; funeral homes and mortuaries; hospitals, medical clinics, sanitariums, rest homes and the prescription drug services of business establishments. The mayor shall determine such approved exceptions as are necessary for the maintenance of the public health, welfare and safety, and include a listing of the same in such proclamations as may be issued by him invoking the provisions of section 15-43, and he shall file such proclamations with the office of the city finance officer.
(Code 1986, § 15-44; Ord. No. 9654, § 8, 1-6-92)

Sec. 15-45. Substitution officers for mayor.

If the mayor is absent from the city, or is disabled, incapacitated or otherwise unable to act or function as mayor, then the powers vested in the mayor by this division shall vest in the following officials in the order named, depending on whether such officials are present in the city and are not disabled, incapacitated or otherwise unable to act or function as such official: (1) chairperson of the city council; (2) such other official as may be designated by the city council.
(Code 1986, § 15-45; Ord. No. 9654, § 91, 1-6-92)

Sec. 15-46. Penalty.

It shall be unlawful for any person to violate an order of the mayor issued and promulgated pursuant to a proclamation issued under the authority of this division. Each hour of violation, or part of an hour, shall be deemed a separate offense. Any person convicted of violating any order of the mayor as aforesaid shall be subject to punishment as provided in section 1-8 of this Code for each separate offense.
(Code 1986, § 15-46)

Chapter 16

FIRE AND POLICE DEPARTMENTS*

Article I. In General

Sec. 16-1. Qualifications of employees generally.
Sec. 16-2. Other Qualifications; Transfers.
Sec. 16-3. Person promoted to chief entitled to return to previous rank upon removal for reasons other than cause.
Sec. 16-4. Physical examination of applicants for positions.
Sec. 16-5. Treatment for injuries on duty.
Sec. 16-6. Medical expenses.
Sec. 16-7. Hospitalization insurance.
Sec. 16-8. City contribution rate for firemen's and policemen's insurance and pension fund; rate conditioned on establishment of employee rate.
Sec. 16-8.1. Increase of pension benefits.
Secs. 16-9—16-10. Reserved.
Sec. 16-11. Reserved.
Sec. 16-12. Award of badge and service revolver upon retirement.
Sec. 16-13. Retirement age for firefighters.
Sec. 16-14. Award of firefighter helmet to firefighters upon disability or retirement.
Secs. 16-15—16-25. Reserved.

Article II. Fire Department

Sec. 16-26. False alarms.
Sec. 16-27. Tampering with fireplug; unauthorized use.
Sec. 16-28. Obstacles around fire hydrants.
Sec. 16-29. Fees for services rendered by Fire Department.
Sec. 16-30. Emergency powers.
Sec. 16-31. Authority to order demolition of structures beyond repair.
Sec. 16-32. Appeal of order to demolish.
Sec. 16-33. Failure to comply with order to demolish.
Sec. 16-34. Failure to repay demolition expenses.
Secs. 16-35—16-40. Reserved.

Article III. Police Department

Sec. 16-41. Bond, oath of chief.
Sec. 16-42. Bonds, oaths of members of department.
Sec. 16-43. Departmental rules and regulations.
Sec. 16-44. Resisting arrest.
Sec. 16-45. Repealed.
Sec. 16-46. Renumbered.
Sec. 16-47. Repealed.

***Charter references—**Police and firemen, Title 13; authority to provide for police and fire department, § 2.1(41).

Cross reference—Administration generally, Ch. 2.

Sec. 16-48. Repealed.
Sec. 16-49. Officers not to receive witness fees.
Sec. 16-50. Reports by physicians.
Sec. 16-51. University of Tennessee at Chattanooga police officers.
Sec. 16-52. Tennessee Valley Authority—Public Safety Service.
Sec. 16-53. Erlanger Hospital security police.
Sec. 16-54. Driver education course for drinking drivers; registration fee.
Sec. 16-55. Alarm systems; false alarms.
Sec. 16-56. Emergency cash fund for chief of police.
Sec. 16-57. Charges for fingerprints and record checks.
Sec. 16-58. Chattanooga Housing Authority—Public safety officers.

Article IV. Police Advisory and Review Committee

Sec. 16-59. Title and authority.
Sec. 16-60. Purpose.
Sec. 16-61. Members of the committee.
Sec. 16-62. Committee staff.
Sec. 16-63. Powers and duties of the chair.
Sec. 16-64. Powers and duties of the committee.
Sec. 16-65. Procedure.
Sec. 16-66. Limitations.
Secs. 16-67—16-70. Reserved.

Article V. Interception of Police Radio Signals

Sec. 16-71. Definition.
Sec. 16-72. Permit for operation of high frequency receiver required.
Sec. 16-73. Application for permit.
Sec. 16-74. Permit issuance; fee; renewal.
Sec. 16-75. Permit nontransferable; notice of change in license number of vehicle.
Sec. 16-76. Permit revocation.
Sec. 16-77—16-90. Reserved.

Article VI. Private Security Police

Sec. 16-91. Definitions.
Sec. 16-92. Permit—Required.
Sec. 16-93. Same—Qualifications.
Sec. 16-94. Training course.
Sec. 16-95. Weapon specification.
Sec. 16-96. Bond or insurance policy required; exceptions.
Sec. 16-97. Powers and employee status.
Sec. 16-98. Wearing of official police uniform restricted.
Sec. 16-99. Private patrol or security guard system uniforms restricted.
Sec. 16-100. Fees for firearms permit and firearms permit renewals.
Secs. 16-101—16-162. Reserved.

Article VII. Pension Benefits

Sec. 16-163. Purpose.

Secs. 16-164—16-173. Reserved.
Sec. 16-174. Increased disability benefits from causes not resulting from performance of duties.
Secs. 16-175—16-181. Reserved.
Sec. 16-182. Optional retirement benefits.
Sec. 16-183. Definitions.

ARTICLE I. IN GENERAL

Sec. 16-1. Qualifications of employees generally.

Any person employed as a member of the police or fire department must either be registered to vote in the State of Tennessee or eligible to vote in the State of Tennessee except that those employees currently employed and living outside of the State of Tennessee shall be exempted from this provision. He must be of sound health and pass a physical examination designated by the head of the department(s) of fire and police.
(Code 1986, § 16-1; Ord. No. 9654, § 92, 1-6-92)

Sec. 16-2. Other Qualifications; Transfers.

(1) Any applicant for a sworn position in the Police Department and the Fire Department must, at a minimum, meet the following qualifications:

(a) Police Department applicants must be at least twenty-one (21) years of age and less than forty (40) years of age to be eligible for full membership in the Firemen's and Policemen's Insurance and Pension Fund. Applicants for a sworn position in the Fire Department may be at least eighteen (18) years of age and less than forty (40) years of age to be eligible for full membership in the Firemen's and Policemen's Insurance and Pension Fund as of October 15, 2024. These age limitations shall not apply to transfers as set out in subparagraph (2) of this section or to the positions of fire chief and police chief who are appointed to terms concurrent with the Mayor pursuant to the City Charter;

(b) Pass a psychological examination designated by the head of the department(s) of fire and police;

(c) Have received an honorable discharge from a military service as stipulated on a DD214, if applicable;

(d) Have or be eligible to obtain a valid Tennessee driver's license and maintain a good driving record;

(e) Must not have any guilty pleas or felony convictions which are prohibited by TCA § 68-102-308 for firefighters or TCA § 38-8-106 for police officers. This qualification applies to violations of any federal/state laws relating to force, theft, dishonesty, gambling, liquor, or controlled substances where applicable; and

(f) The Chief of Police and Fire Chief may augment these qualifications as they deem necessary for the effective functioning of these departments as required for the safety of the residents of the City of Chattanooga.

(2) A person is eligible to transfer to the Police Department from the Fire Department or transfer to the Fire Department from the Police Department, provided that such employee meets the qualifications in subparagraph (1), however, any such person being so transferred must have been previously a member of the Firemen's and Policemen's Insurance and Pension Fund.
(Code 1986, § 16-2; Ord. No. 10841, § 1, 4-13-99; Ord. No. 10848, § 1, 5-11-99; Ord. No. 11524, § 1, 3-2-04; Ord. No. 12087, § 1, 2-19-08; Ord. No. 12675, § 1, 12-11-12; Ord. No. 12828, § 1, 4-15-14; Ord. No. 14154, § 1, 10-1-24)

Sec. 16-3. Person promoted to chief entitled to return to previous rank upon removal for reasons other than cause.

Whenever a tenured fireman or tenured policeman is appointed to the office of fire chief or chief of police and is thereafter removed from the office for reasons other than cause, such person shall be entitled to return to the same rank held at the time of appointment to the office of chief.
(Code 1986, § 16-3)

Sec. 16-4. Physical examination of applicants for positions.

The city physician shall make a physical examination of all applicants for positions on the police force and report the result of the examination to the department head of the fire department. At the request of the chief of the fire department, he shall make a similar examination of applicants for positions in the fire department, and report the result of such examination to the department head of the fire department.
(Code 1986, § 16-4; Ord. No. 9654, § 93, 1-6-92)

Sec. 16-5. Treatment for injuries on duty.

The city physician, when requested by any policeman or employee of the fire department injured in the discharge of his duties as such policeman or employee, shall attend upon him as physician and surgeon.
(Code 1986, § 16-5)

Sec. 16-6. Medical expenses.

(a) The city may pay the hospital and physician's and surgeon's bills when a member of the police department or fire department is injured in line of duty; provided that, such payment shall not be made when such member has been or is to be reimbursed otherwise on account of such injuries; and provided, further, that, such injured members shall be removed to Erlanger Hospital for treatment as soon as their condition permits.

(b) If such injuries arise out of an accident caused by or contributed to by the negligence of a third party, no payment of salary, medical expenses or other related expenses shall be made by the city until such fireman or policeman shall execute a subrogation and assignment agreement, to be approved by the city attorney as to form, assigning to the city any and all claims or causes of action which the fireman or policeman may have to recover against such third person(s) to the extent of any or all such payment(s) as are made by the city.
(Code 1986, § 16-6; Ord. No. 9654, § 94, 1-6-92)

Sec. 16-7. Hospitalization insurance.

The mayor may pay out of the budget of his department a hospitalization insurance premium for each member of the fire and police departments.
(Code 1986, § 16-7; Ord. No. 9654, § 95, 1-6-92)

Sec. 16-8. City contribution rate for firemen's and policemen's insurance and pension fund; rate conditioned on establishment of employee rate.

(a) The city contribution rate for the firemen's and policemen's insurance and pension fund shall be set at twelve (12) percent of the salaries of the covered participants.

(b) The city contribution rate established in this section shall be conditioned upon the establishment by the board of directors of the firemen's and policemen's insurance and pension fund of an employee's contribution rate of six percent (6%) of the salaries of the covered participants.
(Code 1986, § 16-8)

Sec. 16-8.1. Increase of pension benefits.

Ordinance No. 8688, section 1(10), now codified as section 13.75 of the Chattanooga City Charter, provides that the city council of the City of Chattanooga, in its discretion, after a recommendation has been received by the board of directors of the firemen's and policemen's insurance and pension fund, may, by ordinance passed on three (3) separate readings, increase such pension benefits in this section or any section of the Private Acts of 1949, Chapter 165, as amended; therefore, the pension benefits provided by

Ordinance No. 8688 are hereby increased by providing that in the event the maximum pension benefits is increased in the calendar year the employee has reached age fifty-five (55) and completed thirty (30) years of service, the employee's maximum pension benefit shall be adjusted to reflect any such increase, provided that the aforesaid increase shall be paid retroactively and shall be applied to all members of said fund.
(Code 1986, § 16-8.1)

Secs. 16-9—16-10. Reserved.

Sec. 16-11. Reserved.

Editor's note—Ord. No. 13386, § 6, adopted Oct. 23, 2018, repealed § 16-11, which pertained to maintenance of electric wiring and apparatus of city and derived from Code 1986, § 16-11; Ord. No. 9654, § 95, 1-6-92.

Sec. 16-12. Award of badge and service revolver upon retirement.

Upon the retirement from service of any police officer or detective employed in the department of fire and police, the mayor may award such officer or detective his police badge and/or police revolver; provided, however that said officer or detective shall not act or use such revolver in any manner inconsistent with any law, nor have any implied or express authority to act on or in behalf of any department of the city in any capacity.
(Code 1986, § 16-12; Ord. No. 9654, § 95, 1-6-92)

Sec. 16-13. Retirement age for firefighters.

All firefighters shall retire on or before their sixty-fifth (65th) birthday. Any firefighter currently employed who is age sixty-five (65) or older shall be retired on or before July 2, 1998.
(Ord. No. 10673, § 1, 3-10-98)

Editor's note—Section § 16-13, created by Ordinance No. 10673, adopted March 10, 1998, became operative, as opposed to effective, as of July 1, 1999.

Sec. 16-14. Award of firefighter helmet to firefighters upon disability or retirement.

Upon the retirement from service of any firefighter with at least twenty-five (25) years of active service with the Chattanooga Fire Department and/or retirement due to disability from injury received during active service, the Fire Chief may award such firefighter his or her helmet last used in active service; provided, however, that such firefighter shall not act or use such equipment in any manner inconsistent with any law, nor have any implied or express authority to act on or in behalf of any department of the City in any capacity following retirement.
(Ord. No. 11068, § 1, 9-19-00)

Secs. 16-15—16-25. Reserved.

ARTICLE II. FIRE DEPARTMENT*

Sec. 16-26. False alarms.

It shall be unlawful for any person in the city willfully to give or make a false alarm of fire, either by telephone, alarm box or otherwise. Any person who detects a person committing a violation of this section shall report the same to the chief of the fire department or chief of police, and shall be entitled, upon conviction of the offender, to receive the fine imposed and collected as his reward.
(Code 1986, § 16-26)

Sec. 16-27. Tampering with fireplug; unauthorized use.

It shall be unlawful for any unauthorized person to open or shut or in any way to damage or interfere with any fireplug in the city, to draw any water therefrom or cause any water to flow therefrom for any purpose other than the extinguishment of fires. It shall be unlawful for any unauthorized person to do any of the acts prohibited herein for any unauthorized purpose.
(Code 1986, § 16-27)

Sec. 16-28. Obstacles around fire hydrants.

No person shall place or keep any fence, growth, trash or other material near any fire hydrant that would prevent such hydrant from being immediately discernible or in any other manner hinder the Fire Department from gaining immediate access to a fire hydrant.
(Ord. No. 11089, § 1, 11-14-00)

Sec. 16-29. Fees for services rendered by Fire Department.

The Fire Chief is authorized to charge a non-refundable fee for services as set forth below.

Fire Report	$0.15 per page
Blasting Permit	50.00
Bonfire Permit	50.00
Indoor/Outdoor Pyrotechnics Inspections	50.00

All charges for re-inspections shall be the same rate set forth above and shall be collected by the Fire Marshal's office.
(Ord. No. 12356, § 1, 3-2-10; Ord. No. 13195, § 2, 7-18-17)

Sec. 16-30. Emergency powers.

When the Chattanooga Fire Department is requested to respond to a fire, hazardous materials incident, natural disaster, service call, or other emergency, it may, regardless of where the emergency exists, proceed to the emergency site by the most direct route at the maximum speed consistent with safety. While responding to, operating at, or returning from such emergency, the Fire Chief, Fire Marshal, or Command Officer at the incident scene, or any member serving in capacity of fire officer-in-charge, shall also have the authority to:

(1) Control and direct the activities at the scene of the emergency;

***Cross references—**General duty of persons using airport to guard against fire, § 8-43; fire prevention and protection generally, Ch. 17; following and parking near fire apparatus restricted, § 24-14; vehicles crossing fire hoses restricted, § 24-15.

(2) Order any person or persons to leave any building or place in the vicinity of such scene for the purpose of protecting such person or persons from injury;

(3) Blockade any public highway, street or private right-of-way temporarily while at such scene;

(4) Trespass at any time of the day or night without liability while at such scene;

(5) Enter any building or premises, including private dwellings, where a fire is in progress, or where there is reasonable cause to believe a fire is in progress, for the purpose of extinguishing the fire;

(6) Enter any building or premises, including private dwellings, near the scene of the fire for the purpose of protecting the building or premises, or for the purpose of extinguishing the fire that is in progress in another building or premises;

(7) Inspect for preplanning all buildings, structures, or other places in the chief's fire district, except the interior of a private dwelling, where any combustible material, including waste paper, rags, shavings, waste, leather, rubber, crates, boxes, barrels, rubbish, or other combustible material that is or may become dangerous as a fire menace to such buildings, structures, or other places has been allowed to accumulate, or where such chief or the chief's designated representative has reason to believe that such combustible material has accumulated or is likely to accumulate;

(8) Direct without liability the removal or destruction of any fence, house, motor vehicle, building, structures, or other things, if such person deems such action necessary to prevent the further spread of the fire;

(9) Request and be furnished with additional materials or special equipment at the expense of the owner of the property on which the emergency occurs, if deemed necessary to prevent the further spread of the fire or hazardous condition; and

(10) Order disengagement or discouplement of any convoy, caravan, or train of vehicles, craft, or railway cars, if deemed necessary in the interest of safety of persons or property.

(Ord. No. 14224, § 1, 4-29-25)

Sec. 16-31. Authority to order demolition of structures beyond repair.

Whenever the Fire Chief or designee determines, in the course of an investigation of a building or other structure that has been destroyed or damaged by fire, that such building or other structure has been damaged so extensively that repair is not a feasible alternative, the Fire Chief or Fire Marshal shall order the remains of the building or structure demolished, materials removed, and all dangerous conditions remedied. The order shall be delivered with written notice to the owner and/or person responsible for the building or structure and shall state that the person must comply with the order within thirty (30) days or, if an insurance claim is pending on such building or structure, then the person must comply with the order within thirty (30) days after settlement of such claim.

(Ord. No. 14224, § 1, 4-29-25)

Sec. 16-32. Appeal of order to demolish.

(a) The person responsible for the building or structure that the Fire Chief or designee has ordered to be demolished pursuant to Sec. 16-31 above may, within twenty-four (24) hours of the date the order is signed, appeal the order to demolish the building or structure to the Commissioner of the Tennessee Department of Commerce and Insurance (the "Commissioner"). Unless the Commissioner revokes or modifies the demolition order, the order shall remain in full force and be complied with within the time fixed in the order or decision of the Commissioner.

(b) Any owner or occupant who feels aggrieved by the order to demolish or affirmed order to demolish may, within five (5) days after the making or affirming of the order by the Commissioner, file a petition with the Hamilton County Circuit Court. In case the owner or occupant is not satisfied with the order or judgment of the Hamilton County Circuit Court, the owner or occupant may file a petition in the appellate court to review the order or judgment.
(Ord. No. 14224, § 1, 4-29-25)

Sec. 16-33. Failure to comply with order to demolish.

If the owner of or person responsible for the building or structure fails to comply with the order to demolish, or with the modified order if applicable, the Fire Chief or designee in Public Works and/or Code Enforcement shall cause the building or structure to be demolished, materials removed and all dangerous conditions remedied, the expense to be borne by the owner of or person responsible for the building or structure.
(Ord. No. 14224, § 1, 4-29-25)

Sec. 16-34. Failure to repay demolition expenses.

Should the owner of or person responsible for the building or structure fail or neglect to repay the expenses within thirty (30) days after all dangerous conditions are so remedied, the Fire Chief or designee in Public Works and/or Code Enforcement may immediately place a lien upon the property for the expenses incurred from the demolition, together with a twenty-five (25%) percent penalty pursuant to T.C.A. § 68-102-125. The lien shall be a lien on the building or structure, including the real estate on which the building or structure is located, and the lien shall be superior and prior to all other liens on the property, except a lien for taxes assessed and due the state, county and city in which the property is located, and vendors' liens. The order and lien filed in the Register's Office of Hamilton County shall be notice to all parties.
(Ord. No. 14224, § 1, 4-29-25)

Secs. 16-35—16-40. Reserved.

ARTICLE III. POLICE DEPARTMENT*

Sec. 16-41. Bond, oath of chief.

Before entering upon the duties of his office, the chief of police shall give bond with security in the sum of five thousand dollars ($5,000.00) for the faithful discharge of such duties, conditioned as are other officers' bonds, and shall take the oath of office.
(Code 1986, § 16-41)

Sec. 16-42. Bonds, oaths of members of department.

The officers and subordinates of the police department shall give bond with good and sufficient security, in such amounts as shall be prescribed by the city council, conditioned upon the faithful performance of their duties. They shall take the oath of office before entering upon their respective duties.
(Code 1986, § 16-42; Ord. No. 9654, § 2, 1-6-92)

Sec. 16-43. Departmental rules and regulations.

The government and discipline of the police department shall be such as the mayor may prescribe from time to time by rules and regulations. Such rules and regulations shall be ratified and adopted by the city council.
(Code 1986, § 16-43; Ord. No. 9654, §§ 2, 95, 1-6-92)

Cross reference—Personnel rules and regulations, § 2-136 et seq.

Sec. 16-44. Resisting arrest.

It shall be unlawful for any person to resist any officer in making an arrest or in detaining any person after arrest or trial, whether the offender is the person whom the officer is seeking to arrest or detain or another person.
(Code 1986, § 16-44; Repealed by Ord. No. 11849, § 1, 7-11-06; Code 1986, § 16-46, renumbered by Ord. No. 11849, § 1, 7-11-06)

Sec. 16-45. Repealed.

(Code 1986, § 16-45; Repealed by Ord. No. 11849, § 1, 7-11-06)

Sec. 16-46. Renumbered.

(Code 1986, § 16-46; Renumbered as 16-44 by Ord. No. 11849, § 1, 7-11-06)

Sec. 16-47. Repealed.

(Code 1986, § 16-47; Repealed by Ord. No. 11849, § 1, 7-11-06)

Sec. 16-48. Repealed.

(Code 1986, § 16-48; Ord. No. 9654, § 95, 1-6-92; Repealed by Ord. No. 11849, § 1, 7-11-06)

Sec. 16-49. Officers not to receive witness fees.

No police officer shall be paid witness fees for his attendance as a witness in any court.
(Code 1986, § 16-49)

Cross reference—City court, Ch. 12.

***Cross references—**Authority of police to inspect records of secondhand dealers and junk dealers, § 11-220; traffic division, § 24-111 et seq.; taxicab inspectors, § 35-20.

Sec. 16-50. Reports by physicians.

All physicians shall immediately report to the chief of police all cases of shooting, cutting or other injuries which may constitute a murder or an attempt to murder, which they may be called upon to handle either at the place of the injury or the residence of the injured, or at any hospital, giving in such report the number of the residence and the names of the injured persons. It shall also be the duty of all physicians to report to the chief of police all patients injured in automobile accidents to whom they may be called for professional services.

(Code 1986, § 16-50)

Cross reference—Ambulance drivers to report injuries constituting a murder or an attempt to murder, § 35-185.

Sec. 16-51. University of Tennessee at Chattanooga police officers.

Upon written request by the chancellor or a vice chancellor of the University of Tennessee at Chattanooga, the mayor may, with the approval of the city council, issue to members of the security forces of such university named in such request commissions as police officers of the city. Such police officers shall furnish the same bond as is required of regular police officers of the city, and which shall be filed with the city finance officer. Such commissions when issued shall bear the endorsement: "University of Tennessee at Chattanooga police officer with all the powers and authority granted to police officers of the City of Chattanooga, Tennessee." The holders of such commissions shall have, possess and exercise every power granted by the statutes of the state or the charter of the city to regular police officers of the city necessary in the performance of their duties, including the right to execute search warrants as provided by law, but such special policemen shall not be employees of the city nor shall they be entitled to any benefits afforded regular police officers of the city.

(Code 1986, § 16-51; Ord. No. 9654, § 96, 1-6-92)

Charter reference—Authority to appoint special policemen, § 13.3.

Sec. 16-52. Tennessee Valley Authority—Public Safety Service.

Upon written request of the supervisor of Tennessee Valley Authority-Public Safety Section at Knoxville, Tennessee, the mayor may, with the approval of the city council, issue to the members of such public safety service named in such request commissions as police officers of the city. Such police officers shall furnish the same bond as is required of regular police officers of the city, which shall be filed with the city finance officer. Such commissions when issued shall bear the enforcement: "Tennessee Valley Authority-Public Safety Officer with all the powers and authority granted to police officers of the City of Chattanooga, Tennessee." The holders of such commissions shall have, possess and exercise every power granted by the statutes of the state or the charter of the city to regular police officers of the city necessary in the performance of their duties, including the right to execute search warrants as provided by law, but such special policemen shall not be employees of the city nor shall they be entitled to any benefits afforded regular police officers of the city.

(Code 1986, § 16-52; Ord. No. 9654, § 96, 1-6-92)

Charter reference—Authority to appoint special policemen, § 13.3.

Sec. 16-53. Erlanger Hospital security police.

Upon written request of the supervisor of Erlanger Hospital security police in Chattanooga, Tennessee, the mayor may, with the approval of the city council, issue to the members of the Erlanger Hospital security police named in such request, commissions as police officers of the city. Such police officers shall furnish the same bond as is required of regular police officers of the city, which shall be filed with the city finance officer. Such commissions when issued shall bear the endorsement: "Erlanger Hospital Security Police Officer, with all the powers and authority granted to police officers of the City of Chattanooga,

Tennessee." The holders of such commissions shall have, possess and exercise every power granted by the statutes of the state or the charter of the city to regular police officers of the city necessary in the performance of their duties, including the right to execute search warrants as provided by law, but such special policemen shall not be employees of the city nor shall they be entitled to any benefits afforded regular police officers of the city.
(Code 1986, § 16-53; Ord. No. 9654, § 96, 1-6-92)

Charter reference—Authority to appoint special policemen, § 13.3.

Sec. 16-54. Driver education course for drinking drivers; registration fee.

The mayor may establish a driver education course for drinking drivers and shall collect a registration fee of forty dollars ($40.00) from each participant therein to cover the cost of its administration.
(Code 1986, § 16-54; Ord. No. 9654, § 95, 1-6-92)

Cross reference—Alcoholic beverages, Ch. 5.

Sec. 16-55. Alarm systems; false alarms.

(a) *Definitions.* For purposes of this section, the following words and phrases shall have the meaning given herein:

Alarm system means any mechanical or electrical device, which is designed to signal the occurrence of an illegal entry or other activity or event requiring urgent attention and to which the Department is expected to respond with emergency personnel or equipment. The term shall include automatic and manual hold-up alarm systems, burglar alarm systems, direct-dial telephone devices, audible alarms and proprietor alarms.

Department means the Chattanooga Police Department.

False alarm means an alarm signal to which the Department responds with any emergency service personnel or equipment when a situation requiring a response by the Department does not in fact exist, regardless of whether the signal is caused by the inadvertence, negligence or intentional act or omission of an alarm company or alarm user or by a malfunction of the alarm. *False alarm* also means an alarm that emits a siren or other signal that is audible off the premises on which the alarm system is located that indicates an emergency situation or break-in when such emergency situation or break-in has not in fact occurred, regardless of whether the signal is caused by the inadvertence, negligence or intentional act or omission of an alarm company or alarm user or by a malfunction of the alarm. The following shall not be considered false alarms:

(1) Alarms caused by the testing, repair or malfunction of telephone equipment or lines, provided the owner, user or operator first gives notice to the Communications Division of the Department prior to testing and repairing such equipment or lines;

(2) Alarms caused by earthquakes, floods, windstorms, thunder or lightning;

(3) Alarms caused by an attempted illegal entry of which there is visible evidence or which the Department determines to be the result of an intrusion attempt or alarm tampering; and

(4) Alarms caused by the testing, repair or malfunction of electrical utility equipment or lines.

Location means the property, building, residence or business from which any alarm signal originates.

(b) *Police Department to receive information about person responsible for cutting off alarm systems prior to installation; failure to turn off false alarm.* It shall be unlawful to install, repair or operate an alarm system without first giving written notice to the Regulatory Bureau of the Police Department of the name, address and telephone number of the person who shall be responsible for cutting off the alarm system when advised to do so by the Department. It shall likewise be unlawful for the owner or operator of an alarm

system not to keep such information current and correct relative to the telephone number and name of the person who is responsible for cutting off the alarm system. It shall be unlawful for the owner or operator of the alarm system not to provide the names and telephone numbers of persons who will be available to cut off the alarm on a twenty-four (24) hour basis every day of the year. It shall be unlawful for any owner, user or operator of an alarm system to refuse or fail to turn off or cause to be turned off an alarm system which is currently causing a false alarm within thirty (30) minutes after being notified to so do by the Department regardless of whether such owner or operator has given the written notice required by this subsection.

(c) *False alarms unlawful.* It shall be unlawful for the owner, user or operator of an alarm system to allow such alarm system to generate a false alarm from any location within the City. Each false alarm shall be considered a separate violation.

(d) *Exemption.* The provisions of subsection (c) above shall not take effect as to any owner, user or operator of an alarm system for thirty (30) days after completion of a system installation to allow for equipment failure, adjustment, subscriber education and possible environmental problems that cannot be detected prior to installation.

(e) *Penalty for violation.* The penalty for a first violation of the provisions of subsection (c) above may, in the discretion of the judge, be limited to a requirement to complete a False Alarm Reduction Course administered by the Police Department; such course must be completed, in the discretion of the judge, by the owner of the alarm system or the manager of a business location at which a false alarm has occurred. The penalty for a second or subsequent violation of the provisions of subsection (c) above shall be limited to the maximum penalty allowed by state law for such violation, but such limitation shall not apply to a violation of any other provision of this section unless otherwise provided by state law.

(f) *Issuance of citations.* Any officer assigned to the Regulatory Bureau of the Police Department may issue a citation for a violation of this section, provided that such officer shall also subpoena to court any officer or other witness necessary to establish such violation. Notwithstanding the foregoing, no citation for a false alarm may be issued until not less than two (2) warning notices have been given to or served upon the owner or operator of an alarm system or a not less than two (2) warning notices have previously been posted on the property on which such alarm system is located; said notices shall notify the owner or occupant that an officer has responded to a false alarm at the property and that the owner or operator of the alarm system will be subject to a citation for future false alarms.
(Code 1986, § 16-55; Ord. No. 10933, § 1, 11-16-99; Ord. No. 11434, § 18, 7-15-03)

Sec. 16-56. Emergency cash fund for chief of police.

The chief of police is authorized to maintain an emergency cash fund not to exceed one thousand dollars ($1,000.00) from which police emergency payments and/or purchases may be made. Receipts for such expenditures from such emergency cash fund shall be attached to the warrant voucher replenishing or reimbursing such emergency cash fund. The office of the city finance officer may inspect or audit such fund at any time but at least every six (6) months and a report of his findings shall be made to the mayor and the city attorney.
(Code 1986, § 16-56; Ord. No. 9654, § 97, 1-6-92)

Sec. 16-57. Charges for fingerprints and record checks.

The Chattanooga Police Department is authorized and directed to charge the following fees for the following records and services:

Accident reports	$7.00
Incident reports (except to victim)	7.00

Background checks	5.00
Fingerprinting:	
First Card	9.00
Second and subsequent cards	2.00
Arrest reports	7.00

(Ord. No. 9113, § 1, 1-31-89; Ord. No. 11175, § 28, 9-11-01)

Sec. 16-58. Chattanooga Housing Authority—Public safety officers.

Upon written request of the director of the Chattanooga Housing Authority, the mayor may, with the approval of city council, issue to the public safety officers of the Chattanooga Housing Authority named in such request, commissions as police officers of the city. Such police officers shall furnish the same bond as required of regular police officers of the city, which shall be filed with the city finance officer. Such commissions, when issued, shall bear the enforcement: "Chattanooga Housing Authority Public Safety Officer, with all the powers and authority granted to police officers of the City of Chattanooga, Tennessee." The holders of such commissions shall have, possess and exercise every power granted by the statutes of the state or the charter of the city to regular police officers of the city necessary in the performance of their duties, including the right to execute search warrants as provided by law, but such special policemen shall not be employees of the city nor shall they be entitled to any benefits afforded regular police officers of the city.
(Ord. No. 13389, § 1, 10-30-18)

ARTICLE IV. POLICE ADVISORY AND REVIEW COMMITTEE*

Sec. 16-59. Title and authority.

(a) There is hereby created the Police Advisory and Review Committee for the City of Chattanooga.

(b) The Police Advisory and Review Committee is established pursuant to Council's authority under Sections 13.44 and 13.49 of the Charter of the City of Chattanooga and Section 16-43 of the Chattanooga City Code. This Committee shall further have all powers of a Community Oversight Board consistent with Tennessee state law.
(Ord. No. 13584, § 1, 7-21-20)

Sec. 16-60. Purpose.

The purpose of the Police Advisory and Review Committee is to strengthen the relationship between the citizens of the City of Chattanooga and the Chattanooga Police Department, to assure timely, fair, and objective review of complaints against sworn officers while protecting the individual rights of sworn police officers, and to make recommendations concerning said complaints to the Chief of Police, the Mayor, and to the Council.
(Ord. No. 13584, § 1, 7-21-20; Ord. No. 13882, § 1, 8-16-22)

***Editor's note—**Ord. No. 13584, § 1, adopted July 21, 2020, repealed the former Art. IV, §§ 16-59—16-66, and enacted a new Art. IV as set out herein. The former Art. IV pertained to similar subject matter and derived from Ord. No. 13458, § 1, 5-14-19.

Sec. 16-61. Members of the committee.

(a) The Committee shall consist of nine (9) members, who shall meet all requirements set forth under Tennessee law for members of a Community Oversight Board and shall:

1. Have a background indicating fairness, integrity and responsibility including an active interest in public affairs and service for the citizens of Chattanooga for at least ten (10) years;
2. Must be a registered voter as defined by Tenn. Code Ann. § 2-1-104(a)(24), in Chattanooga, Tennessee; and
3. Be qualified for membership as set forth under Tennessee law for members of a Community Oversight Board.

(b) All Committee members shall be appointed in the discretion of each City Council member within or outside each council district and committee members shall be confirmed by a majority vote of the City Council. Initial appointments to the Committee shall be made for a starting date of August 1, 2020.

1. Three (3) members of the Committee shall be appointed for one (1) year terms;
2. Three (3) members of the Committee shall be appointed for two (2) year terms; and
3. Three (3) members of the Committee shall be appointed for three (3) year terms.

Initial Appointments for Committee members beginning August 1, 2020.

All subsequent appointments, except to fill vacancies, shall be for four (4) year terms. Vacancies occurring other than through the expiration of terms shall be filled for the remainder of the term of the member being replaced. No member appointed pursuant to this Article may serve more than two (2) consecutive terms. Upon making the initial appointments to the Committee, the Council shall designate one (1) member of the Committee to convene the first regular meeting of the Committee. At its first regular meeting, the Committee shall elect one (1) of its members to serve as Chair. The Chair shall serve a term of one (1) year or until a successor is elected. The members shall elect any other officers as deemed appropriate pursuant to Robert Rules of Order for terms of one (1) year.

(c) Upon the recommendation of the majority of the Committee or upon its own volition at any time, the City Council may remove any member of the Committee for official misconduct or neglect of duty, including but not limited to, neglect of any duty or violation of confidentiality specifically enumerated in subsection (f) below. In addition, members who fail to attend three (3) consecutive regular meetings or exhibit a pattern of failing to attend 75% of all meetings within a twelve (12) month period may be considered to have vacated their positions and may be replaced at the request of the police chief and approval of the Council member, as provided for herein. Members who cease to have the qualifications provided in subsection (a) of this Section shall be deemed to have forfeited their positions.

(d) No member of the Committee shall receive compensation for services performed. All newly appointed Committee members should attend Committee meetings as soon as they are approved by City Council. Committee members may only vote after they have completed required training.

(e) Each new member who is appointed to the Committee shall have completed the Citizen's Police Academy course offered by the Chattanooga Police Department and such other training as may be deemed appropriate by the Police Chief as soon as possible after appointment before they can become a voting member. The Council Office will maintain a list of all persons who have completed the Citizens Police Academy within the past two (2) years. The Council may choose appointments to the Committee from any persons on the list who have completed the Citizens Police Academy within two (2) years of the date of appointment or the Council may choose other members not on the list who may only vote as members of the Committee after completion of all training by new members to be determined by the Police Chief.

(f) Members of the Committee shall at all times:

1. Obey all laws regarding an individual's right to privacy and confidentiality of records;
2. Maintain the integrity of Internal Affairs Unit files, personnel files or other files, records or tapes received as a result of the work of the Committee;
3. Excuse themselves from participating in a review of any complaint in which they have a personal, professional or financial conflict of interest;
4. Conduct themselves at all times in a manner that will maintain public confidence in the fairness, impartiality and integrity of the Committee, and refrain from making any inappropriate or prejudicial comments regarding any matter being reviewed by the Committee or which may be reasonably be expected to be reviewed by the Committee;
5. Comply with all rules and regulations applicable to other employees and volunteer board or committee members of the City of Chattanooga, including the Ethics Ordinance;
6. Any Committee member shall provide any officer complaints they receive from any members of the public to the Chair within three (3) working days.

(Ord. No. 13584, § 1, 7-21-20; Ord. No. 13882, § 2, 8-16-22)

Sec. 16-62. Committee staff.

(a) The Committee shall be led by the Chair after the Chair is elected by the Committee pursuant to Section 16-61.

(b) The Chair shall at all times:

1. Obey all laws regarding an individual's right to privacy and confidentiality of records;
2. Maintain the integrity of Internal Affairs Unit files, personnel files or other files, records or tapes received as a result of the work of the Committee;
3. Excuse himself or herself from participating in the review of any complaint in which he or she has a personal, professional or financial conflict of interest;
4. Conduct himself or herself at all times in a manner that will maintain public confidence in the fairness, impartiality and integrity of the Committee, and refrain from making any inappropriate or prejudicial comments regarding any matter being reviewed by the Committee or which may be reasonably expected to be reviewed by the Committee.

(Ord. No. 13584, § 1, 7-21-20)

Sec. 16-63. Powers and duties of the chair.

(a) The Chair shall accept written, sworn complaints from members of the public regarding misconduct of police officers and shall forward these complaints to the commander of the Internal Affairs Unit of the Chattanooga Police Department ("IA") within three (3) working days. Upon receipt of any such complaint, IA shall immediately undertake an investigation of major allegations as defined by the Manual Orders of the Chattanooga Police Department.

(b) The Chair, in his or her discretion, may request legal services and advice from the City Attorney's Office. Where, in the judgment of the City Attorney, the provisions of the legal services and advice would constitute a conflict of interest with the City Attorney's duties to the City of Chattanooga or any department thereof, the City Attorney shall so advise the Chair, who may then request the City Attorney to contract with outside counsel to the Chair for a specific incident based on funding designated annually by the City Council.

(c) The Chair shall ensure the proper recording of the minutes of the Committee, shall be responsible for the maintenance of proper records and files pertaining to Committee business, and shall receive and record all exhibits, petitions, documents, or other materials presented to the Committee in support of or in opposition to any question before the Committee to the extent required by Tennessee law. All files shall be stored as Open Records, onsite or offsite, as a part of the annual budget of the City and the Records Retention Policies of the City to the extent required by Tennessee law. All Committee members shall maintain confidentiality of records as required under the Ethics Code adopted by the City Council and for any document that is determined to be confidential under Tennessee law or Federal law by the City Attorney.

(d) The Chair shall be responsible for complying with all statutes of the State of Tennessee and City of Chattanooga ordinances to the extent required by Tennessee law at the conclusion of process by the Committee. The Chair shall be responsible for providing complainants with information regarding the complaint process.

(e) The Chair shall compile information concerning complaints of police misconduct and any information relevant thereto, whether such complaints are received by IA or by the Chair, and shall include such information in an annual report to the Mayor, the Police Chief and the City Council or any other agency or official as required by Tennessee law of the Committee's activities.
(Ord. No. 13584, § 1, 7-21-20; Ord. No. 13882, § 3, 8-16-22)

Sec. 16-64. Powers and duties of the committee.

(a) The Committee shall review all reports of the Chair submitted in accordance with the provisions of Section 16-63(b) above; and

(b) As it deems necessary to conduct its affairs in furtherance of its mandate, the Committee shall have access to all public records of the City of Chattanooga, which are not determined to be confidential under Tennessee law, including those of the Chattanooga Police Department. Such records may include, but are not necessarily limited to, complaints and supporting documents provided by complainants, offense, incident and arrest reports, incident-related documents such as schedules, dispatch notes, dispatch tapes and transcriptions (CAD tapes and reports), citations, photographs, body-worn cameras, ICVAR, and records of interviews with complainants, employees, and witnesses. The Committee shall not have access to any non-public or confidential records of the City of Chattanooga, including employee medical records, or any records that are otherwise exempt from disclosure, including records of open pending criminal investigations which are determined to be confidential under Tennessee law and all committee members shall comply with confidentiality requirements of all records as required by the Ethics Code adopted by the City Council and Tennessee law for any documents that are determined to be confidential by the City Attorney.

(c) The Committee may make recommendations for enhanced training for police department sworn officers, committee members, and Council members to include training on racial equity, implicit bias, gender identity and mental health challenges. The Committee may recommend policy changes for consideration by the police chief.

(d) Based upon any specific findings and conclusions of the Committee, the Committee shall have the authority to make recommendations to the Police Chief designed to improve police policies and activities and to benefit the community. The Committee shall meet with the Police Chief as needed to discuss recommendations on policy review and potential policy changes. The Police Chief or his or her designee shall attend all requested meetings of the Committee to provide information and advice to the Committee and to accept the recommendations of the Committee, if any.

(e) The Committee shall, at least quarterly, compile a comprehensive report on all activities and policy recommendations which have been considered by the Committee during the previous quarter. The report shall contain statistics and summaries of citizen complaints, including a comparison of the Committee's findings and conclusions with those of IA, along with the actions taken by the Police Chief. The Committee shall also prepare an annual report which shall be submitted to the Chair for inclusion in his or her annual report to the Police Chief, Mayor and City Council, and any other locations required under Tennessee law.

(f) The Committee, in its discretion, may request legal services and advice from the City Attorney's Office. Where, in the judgment of the City Attorney, the provisions of legal services and advice would constitute a conflict of interest with the City Attorney's duties to the City of Chattanooga or any department thereof, the City Attorney shall so advise the Committee. The Committee may then request the City Attorney to provide outside counsel to the Committee on a case-by-case incident based upon funding designated annually by the City Council. In addition, where the Chair excuses himself or herself from participating in the review of a complaint pursuant to Section 16-61(f)(3) above, the Committee may petition the City Council to appoint a temporary assistant to perform the duties of the Chair.

(g) The Committee will review complaints after Internal Affairs or Chain of Command findings have been completed and submitted to the Committee for review and recommendation. After its review, the Committee, by a majority vote of its members, shall:

1) Recommend a final disposition in accordance with Section 16-66(b) to the Police Chief; or

2) If the Committee determines that an investigation is not complete, request that the Police Chief conduct a further investigation of the incident specifying additional information needed. The Police Chief shall acknowledge the request for additional investigation within thirty (30) days. After a review of the Police Chief's response, the Committee will recommend a final disposition in accordance with Section 16-66(b) to the Police Chief;

3) Upon receiving the recommendation from the Committee, the Police Chief shall consider the recommendation and make a final decision on officer discipline.

(Ord. No. 13584, § 1, 7-21-20; Ord. No. 13882, § 4, 8-16-22)

Sec. 16-65. Procedure.

(a) The Committee shall adopt written rules of procedure for the transaction of Committee business not inconsistent with the letter and intent of this Article.

(b) Five (5) members of the Committee shall constitute a quorum. No meeting of the Committee shall commence or continue in the absence of a quorum, and a majority vote of the members of the Committee (five (5) votes) shall be required for any action by the Committee except where otherwise specified in this Article.

(c) Regular meetings of the Committee shall be held no less than monthly on the first Thursday of each month, or as the Committee may otherwise elect. Any scheduled meeting may be rescheduled at the preceding regular meeting. The Chair and/or any three (3) members of the Committee may call a special meeting of the Committee upon at least seven (7) days' notice subject to availability of a quorum.

(d) Committee meetings and records shall be confidential to the public to the full extent required by Tennessee law as determined by the City Attorney. The Committee shall adopt rules regarding public comment as to any investigation being reviewed by the Committee.

(e) The City Council shall subpoena witnesses, if necessary, pursuant to its Charter and to the extent authorized by Tennessee law, to IA, or to the Police Advisory and Review Committee and may utilize such power only when necessary to compel witnesses to provide statements in furtherance of an investigation as authorized by Tennessee law.

(f) Each case reviewed by the Police Advisory and Review Committee can have multiple allegations (ex: improper conduct, improper procedure, and public relations). It can also have multiple officers listed in the case. Each officer who is listed could be considered for one (1) allegation listed in the complaint, or multiple allegations. The data should be broken out by the number of allegations listed in complaints (Allegations) and the number of allegations assigned to officers (Total Allegations). Firearms cases shall be separated from other allegations.
(Ord. No. 13584, § 1, 7-21-20)

Sec. 16-66. Limitations.

(a) The Committee shall not review any investigation:

1. Concerning any incident occurring prior to the effective date of this Ordinance;
2. Prior to the closure of any pending IA or criminal investigation; and
3. Where the complainant has initiated, threatened, or given notice of the intent to initiate civil litigation against the City of Chattanooga or any of its employees.

(b) Five (5) possible recommendations by the Committee for consideration by the Chief:

1. Unfounded: Allegation is false or not factual;
2. Exonerated: Incident complained of occurred, but was lawful and proper;
3. Not Sustained: Insufficient evidence either to prove or disprove the allegation;
4. Sustained: The allegation is supported by sufficient evidence; and
5. No action: The matter(s) alleged is(are) outside the scope of our authorized review.

(c) The Committee shall have no authority to direct the Police Chief to alter or to impose any disciplinary action against any employee of the Chattanooga Police Department. In all cases, the Police Chief will be the final authority on case dispositions and discipline of police officers.
(Ord. No. 13584, § 1, 7-21-20; Ord. No. 13882, § 5, 8-16-22)

Secs. 16-67—16-70. Reserved.

ARTICLE V. INTERCEPTION OF POLICE RADIO SIGNALS*

Sec. 16-71. Definition.

A "high frequency police radio receiving set" shall be defined as any radio receiving set capable of receiving any message sent out by any police radio station.
(Code 1986, § 16-71)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 16-72. Permit for operation of high frequency receiver required.

It shall be unlawful for any person to equip or operate, inside the city, any motor vehicle with a high frequency police radio receiving set, unless such motor vehicle is being used by the federal, state, city or county government or a peace officer, or unless a permit for the use of the same shall have been granted as provided in this article.
(Code 1986, § 16-72)

Cross reference—Businesses, trades and occupations, Ch. 11.

Sec. 16-73. Application for permit.

Any person desiring a permit from the city to install and operate a high frequency police radio receiving set in a motor vehicle inside the city shall file an application with the police chief, in writing, stating the name of the applicant, the license number, motor number, model and make of the motor vehicle in which it is desired to install such set, and shall furnish a photograph of the applicant and his fingerprints. The application shall also state the reason why it is desired to install the set. If the police chief, after an investigation. finds that the application shows a need for the set, that the set will be used for a lawful purpose and that the public interest will be served by the granting of the application, he shall recommend to the mayor the approval of such application.
(Code 1986, § 16-73; Ord. No. 9654, §§ 13, 98, 1-6-92)

Sec. 16-74. Permit issuance; fee; renewal.

Upon approval by the mayor of an application for a permit under this article, the city treasurer shall issue to such applicant a permit for installation and use of the set, upon payment by the applicant of a license fee of twenty-five dollars ($25.00) per year. Application must be filed and a new permit secured for each year a high frequency police radio receiving set is used.
(Code 1986, § 16-74; Ord. No. 9654, § 133, 1-6-92)

Sec. 16-75. Permit nontransferable; notice of change in license number of vehicle.

Any permit issued under the provisions of section 16-55 of this Code shall not be transferable to any other person. Any high frequency police radio receiving set authorized to be installed and used by any such permit shall not be placed in any other motor vehicle than the one (1) described in the application for the permit without first obtaining a permit from the police chief for the removal of the set to the other motor vehicle. No fee shall be charged for such removal permit. In the event of a change in license number of any motor vehicle in which a high frequency police radio receiving set has been permitted to be installed under this article, the owner of such vehicle shall notify the police chief of such change within five (5) days after the change is made.
(Code 1986, § 16-75; Ord. No. 9654, § 98, 1-6-92)

***Editor's note—**Formerly Art. IV. See editor's note under Art. IV.

Sec. 16-76. Permit revocation.

If any person who has been issued a permit to install and operate a high frequency police radio receiving set violates any of the provisions of this article or uses such set for an unlawful purpose, where the public interest requires, the permit may be revoked upon giving the holder of such permit five (5) days' notice of the time and place to appear before the mayor to show cause why such permit should not be revoked.
(Code 1986, § 16-76; Ord. No. 9654, § 133, 1-6-92)

Sec. 16-77—16-90. Reserved.

ARTICLE VI. PRIVATE SECURITY POLICE*

Sec. 16-91. Definitions.

As used in this article, the following definitions shall apply;

Private security police officer shall mean any person, firm, partnership, corporation, or association, who, for any consideration whatsoever, agree to furnish or serve as watchmen, guards or patrolmen to protect persons or property or to prevent theft or other criminal activities; provided, however, this definition shall not apply to regularly sworn police officers of the United States, state, county, or the city; provided, further, for purpose of sections 16-92 through 16-97, inclusive, this definition shall not apply to security officers working solely on the premises of their employer who do not carry any weapon.

Weapon shall mean any type of hand gun, shotgun, pistol, or revolver.
(Code 1986, § 16-91)

Sec. 16-92. Permit—Required.

(a) No person shall engage in the business of operating a private security police agency, or of serving as a private security police officer unless such person has been duly certified and issued a private security police officer permit by the chief of police in accordance with the provisions of this article, and appointed by resolution of the city council as a special policeman.

(b) Such private security police officer permit shall expire two (2) years after its issuance or upon the expiration date of any bond or insurance policy filed with the city finance officer under the provisions of section 16-96, whichever shall come first. Such permits may be renewed upon application, payment of fees and proof of financial responsibility as provided herein.
(Code 1986, § 16-92; Ord. No. 9654, §§ 2, 8, 1-6-92)

Cross reference—Businesses, trades and occupations, Ch. 11.

Sec. 16-93. Same—Qualifications.

Private security police officer permits shall be issued only to applicants who meet the following qualifications. If the applicant is a firm, partnership, corporation or association, all members thereof shall be listed upon the application and shall meet the following qualifications:

(1) Each applicant must be at least twenty-one (21) years of age.

(2) Each applicant must be a citizen of the United States.

(3) Each applicant must not have been convicted by a final judgment of a court of competent jurisdiction any crime involving moral turpitude.

(Code 1986, § 16-93)

***Editor's note—**Formerly Art. V. See editor's note under Art. IV.

Sec. 16-94. Training course.

(a) No private security police officer shall use any weapon in the course of his duties without first having satisfactorily passed a training course approved by the chief of police and administered by a certified firearms instructor of the city's police department training division.

(b) Each private security police officer firearms permit holder shall be required to undergo and satisfactorily pass a recertification every two (2) years.

(c) Each person taking the training course provided herein shall pay an initial fee of forty dollars ($40.00) for the initial one hundred (100) rounds of ammunition and other associated training costs, plus five dollars ($5.00) for each additional fifty (50) rounds of ammunition, as fee for such training course; such fee shall be paid each time an individual takes the training course.
(Code 1986, § 16-94)

Sec. 16-95. Weapon specification.

No person serving as a private security police officer shall use any weapon during the course of his duties other than a .38 special revolver or a .357 magnum revolver of a United States manufacturer.
(Code 1986, § 16-95)

Sec. 16-96. Bond or insurance policy required; exceptions.

No person serving as a private security police officer shall be permitted to carry a weapon unless he or she proves his or her financial responsibility by filing with the city treasurer a corporate surety bond in favor of the city in an amount not less than fifty thousand dollars ($50,000.00), conditioned upon such private security officer during the period of his commission shall well, truly, and faithfully discharge his duties or in lieu of a bond by filing with the city treasurer a liability insurance policy of the individual or his employer naming the city as an additional insured, providing minimal coverage of fifty thousand dollars ($50,000.00) for each person injured or property damage from any one (1) accident or occurrence and one hundred thousand dollars ($100,000.00) for all injuries and property damage resulting from any one (1) accident or occurrence. Such bond or insurance policy shall be in a form satisfactory to the city attorney; provided, however, that, neither a bond nor an insurance policy shall be required for security police officers employed by the city or other federal, state, or local government agency, including the Chattanooga-Hamilton County Auxiliary Police.
(Code 1986, § 16-96)

Sec. 16-97. Powers and employee status.

Subject to the appointment by the city council as a special policeman, the holders of private security police officer permits shall have, possess, and exercise every power granted by the statutes of the state or the charter of the city to regular sworn police officers of the city necessary in the performance of their duties, but such private security police officers shall not be employees of the city nor shall they be entitled to any benefits afforded regular sworn police officers of the city.
(Code 1986, § 16-97; Ord. No. 9654, § 134, 1-6-92)

Sec. 16-98. Wearing of official police uniform restricted.

It shall be unlawful for any unauthorized person to wear any badge, uniform or other insignia or any like or colorable imitation of the officially adopted police uniform of the city, county or the state highway patrol.
(Code 1986, § 16-98)

Sec. 16-99. Private patrol or security guard system uniforms restricted.

(a) Operators and employees of private security police services or guard systems shall wear uniforms of a design that are clearly distinguishable form officially adopted uniforms of the city, county and the state highway patrol.

(b) Operators and employees of private patrol or guard systems wearing uniforms shall be required to wear uniforms which are brown, grey or light blue in color or, in the alternative, to wear pants and skirts of such color with white shirts or blouses.
(Code 1986, § 16-99)

Sec. 16-100. Fees for firearms permit and firearms permit renewals.

Each private security police officer applying for a firearms permit shall pay an initial processing fee of ten dollars ($10.00), as fee for processing such firearms permit. Each private security police officer applying for a renewal of a previously issued firearms permit shall pay a fee of five dollars ($5.00) as fee for processing such renewal.
(Code 1986, § 16-100)

Cross reference—Businesses, trades and occupations, Ch. 11.

Secs. 16-101—16-162. Reserved.

ARTICLE VII. PENSION BENEFITS*

Sec. 16-163. Purpose.

The purpose of this article is to set forth increases in benefits to the Firemen's and Policemen's Insurance and Pension Fund enacted by ordinance pursuant to the provisions of Section 13.75(d) of Chattanooga City Code, Part I. The numbers of this article will correspond to but will be one hundred (100) higher than the section numbers of the Firemen's and Policemen's Insurance and Pension Fund as codified in Part I of this Code.
(Ord. No. 10642, § 1, 11-18-97)

***Editor's note—**Formerly Art. VI. See editor's note under Art. IV.

Secs. 16-164—16-173. Reserved.
(Ord. No. 10642, § 1, 11-18-97)

Sec. 16-174. Increased disability benefits from causes not resulting from performance of duties.

Notwithstanding the provisions of Chattanooga City Code, Part I, Section 13.74(a), the following benefits are provided in lieu thereof:

(a) Any member with not less than three (3) years nor more than ten (10) years of active service in the Fire and Police Department who shall become disabled from causes arising outside of the course of his or her employment with the Fire or Police Department shall so long as they remain disabled be paid a monthly sum equal to thirty percent (30%) of the average base salary of such member, but not to exceed the maximum salary in the salary range and step of sergeant in the Police Department classification as set forth in the classification of positions in the Police Department during the three (3) years of the member's service which yield the highest average; plus two percent (2%) of said defined average base salary for each year of active service in the Fire and Police Department over ten (10) years, but not to exceed sixty percent (60%) of the above defined average base salary. Payment under this section shall commence after the member's sick days, annual leave days or personal leave days have been exhausted.

Any member with less than three (3) years of service, who shall become disabled from causes arising outside of the course of his or her employment with the Fire and Police Department, shall be refunded his or her contributions under the provisions of Section 13.77. In the event of death of any member with less than three (3) years of service, the ten thousand dollars ($10,000.00) death benefit shall be paid to his or her beneficiary and his or her contributions shall be refunded to his or her estate.

A member will not be eligible for disability benefits nor their spouse eligible for periodic death benefits under this section if disability or death is a result of any of the following:

(1) Excessive and habitual use by the plan member of drugs, intoxicating liquors and narcotics unless such member is actively and continuously undergoing treatment at an approved clinic or treatment center for drug addicts and alcoholics.

(2) Injury or disease sustained by the plan member while willfully and illegally participating in acts of violence, riots, civil insurrections, or while committing an unlawful act.

(3) Injury or disease sustained by the plan member while serving in any Armed Forces or as the result of warfare.

(4) Injury or disease sustained by the plan member after his employment has been terminated.

(5) Intentional, self-inflicted injury.

If a member is not qualified for benefits under this Section, he or she may receive a refund of his or her contributions. In the event of the death of a member, when the death is a direct result of any of the above stipulations, his or her contributions shall be refunded to his or her estate.

Before approving any disability retirement request, the Board may request proof of disability or the verification by one (1) or more competent physicians selected by the Board that the member has become disabled in accordance with the Pension Fund provisions. The Board may further require continued medical examinations of the disabled member from time to time and at its discretion. No member shall be given disability benefits under this Section if the Board finds that said disability can probably be successfully corrected by competent medical treatment, and said member fails or refuses to be so treated.

The term "disabled" or "disability" in this Section shall mean a medically determinable impairment which in the opinion of the Board prevents such member from meeting the normal and reasonable demands of his or her regularly assigned job or any other job in City government which the City may offer said member for which he or she is reasonably qualified by experience, training, or education.

(b) (1) If any member with less than ten (10) years of active service dies before retirement from any cause not growing out of and not in consequence of his or her duty in the Fire and Police Department, there shall be paid to their beneficiary the death benefit of ten thousand dollars ($10,000.00) and to the surviving spouse a benefit equal to Option D, Section 13.82 or the sum of $300.00 per month until death, whichever is greater, subject to the conditions of Section "(a)" of this Section. If a member dies after retirement under this Section, the ten thousand dollars ($10,000.00) benefit shall be paid to their beneficiary, and to the surviving spouse that benefit selected by the member under Section 13.82 of this Fund.

(2) If a member has more than ten (10) years of active service but less than the time required for a Service Retirement Pension and dies before retirement from any cause not growing out of and not in consequence of his or her duty in the Fire and Police Department, there shall be paid to their beneficiary a death benefit of ten thousand dollars ($10,000.00) and to the surviving spouse the benefit which said spouse would have been entitled to receive under Option D, Section 13.82 of this Fund, subject to the conditions of Section "(a)" of this Section. If a member dies after retirement under this Section, the ten thousand dollars ($10,000.00) death benefit will be paid to their beneficiary, and to the surviving spouse that benefit selected by the member under Section 13.82 of this Fund.

(3) If any member dies before retirement and has reached the conditions for a Service Retirement Pension, there shall be paid to said member's beneficiary a death benefit of ten thousand dollars ($10,000.00), and if said member was an employee on November 3, 1992, the sum of three hundred dollars ($300.00) per month shall be paid to the surviving spouse until death or remarriage if said member has not designated the spouse as a beneficiary under one (1) of the options listed in Section 13.82. If there is no election, the surviving spouse shall receive the benefit paid under Option D, Section 13.82.

If a member who is employed after November 3, 1992, shall die before retirement and has reached the conditions for a Service Retirement Pension, there shall be paid to the beneficiary of said member a death benefit of ten thousand dollars ($10,000.00) and the benefits elected under Section 13.82.

(c) If there is no surviving spouse or if the surviving spouse becomes disqualified, then the dependent's minor child or children, shall each receive $100.00 per month during their minority, provided that the total amount payable to all of such children shall not exceed the maximum pension. If such deceased member is not survived by spouse or minor children, but is survived by two (2) parents solely dependent upon said member, each parent, so long as he or she has not other means of support, shall receive one-half (½) of the benefits to which a surviving spouse would receive under this Section. If there is only one (1) parent dependent upon such member for support, such parent shall be paid the same benefits which a surviving spouse would receive under this Section.

(Ord. No. 10642, § 1, 11-18-97)

Secs. 16-175—16-181. Reserved.

(Ord. No. 10642, § 1, 11-18-97)

Sec. 16-182. Optional retirement benefits.

Notwithstanding the provisions of Chattanooga City Code, Part I, Section 13.82, the following benefits are provided in lieu thereof:

(1) When a member reaches the conditions for retirement benefits under Chattanooga City Code, Part I, Sections 13.75, 13.76, 13.74, or is eligible to commence receiving retirement benefits under Section 13.79, he or she may elect to have the pension benefits under said Sections converted into an optional retirement benefit which is the actuarial equivalent of such benefit based upon mortality basis approved from time to time by the Board, and the age of the member and of the beneficiary as of the date the member becomes eligible to exercise the election.

The optional retirement benefits may take one (1) of the forms listed below and for members who become employed after November 3, 1992, there shall be paid to the beneficiary or the option selected by such member under this Section; but for a member who was an employee on November 3, 1992, the surviving spouse shall receive the sum of three hundred dollars ($300.00) per month for life or until remarriage, if the said member has not designated the spouse as a beneficiary under one (1) of the option forms listed below:

OPTION A: 120 Payments Certain and Life Option

A decreased retirement benefit payable for life with the first one hundred twenty (120) payments guaranteed. Any guaranteed payments due after the death of the retired participant shall be payable to the designated beneficiary, if any who survives the retired participant, or the estate of the retired participant if there is no surviving designated beneficiary.

OPTION B: Joint and Survivor Option

A decreased retirement benefit payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at one hundred percent (100%) of that payable to the retired participant.

OPTION C: Modified Joint and Survivor Option

A decreased retirement benefit payable to the retired participant for life which shall continue after his or her death to their surviving beneficiary at seventy-five percent (75%) of that payable to the retired participant.

OPTION D: Modified Joint and Survivor Option

A decreased retirement benefit payable to the retired participant for life which shall continue after his or her death to their surviving beneficiary at fifty percent (50%) of that payable to the retired participant.

OPTION E: Modification of Option B

A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at one hundred percent (100%) of that payable to the retired participant provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit which would have been payable had the member not elected an option.

OPTION F: Modification of Option C

A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at seventy-five percent (75%) of that payable to the retired participant provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit which would have been payable had the member not elected an option.

OPTION G: Modification of Option D

A decreased retirement benefit, subject to an actuarial reduction, payable to the retired participant for life shall continue after his or her death to their surviving beneficiary at fifty percent (50%) of that payable to the retired participant provided, that if such designated beneficiary shall predecease the retired participant, the retirement benefit payable to the participant after death of the designated beneficiary, shall be equal to the retirement benefit which would have been payable had the member not elected an option.

(2) Application for any optional retirement benefit shall be in writing, duly executed, and filed with the Board. Such application shall contain all information required by the Board, including such proofs of age as are deemed necessary by the Board. A retirement option selection at the time of eligibility may only be changed by written notice of the new election filed with or prior to his or her application for retirement and subject to such requirement as the Board may require.

(3) If an active member dies after he or she has reached the aforesaid conditions for retirement benefits, any option they may have elected, in lieu of their otherwise retirement benefit, shall be payable as though he or she had been entitled to have such optional benefit commence on their date of death.

(Ord. No. 10642, § 1, 11-18-97)

Sec. 16-183. Definitions.

Notwithstanding the provisions of Chattanooga City Code, Part I, Section 13.83(4), the following benefits are provided in lieu thereof:

4. The term "Maximum Pension" shall mean a pension equal to sixty percent (60%) of the average base salary of a member of the Chattanooga Police Department who receives the maximum salary in the salary range and step to Sergeant in the police department classification as set forth in the classification of positions in the police department during the three (3) years of the member's service which yield the highest average. In the event of change of the name of said classification of Sergeant in the Police Department, it shall mean that position by whatever name it may hereafter be called.

(Ord. No. 10642, § 1, 11-18-97)

Chapter 17

FIRE PREVENTION*

Article I. In General

Sec. 17-1. Fire Code and Life Safety Code adopted.
Sec. 17-2. Appendices to Code adopted.
Sec. 17-3. Amendments to Code adopted.
Secs. 17-4—17-15. Reserved.

Article II. Bureau of Fire Prevention

Sec. 17-16. Established.
Sec. 17-17. Designation of chief.
Sec. 17-18. Members of fire department designated as inspectors.
Sec. 17-19. Employment of technical inspectors.
Sec. 17-20. Duties of officers of bureau.
Sec. 17-21. Right of entry for inspection or investigation.
Sec. 17-22. Inspection of hazardous manufacturing processes and storage, etc., of explosives and inflammables.
Sec. 17-23. Inspection of places of assembly.
Sec. 17-24. Inspection of buildings and premises.
Sec. 17-25. Issuance of order to remedy dangerous condition.
Sec. 17-26. Service of orders.
Sec. 17-27. Appeals from orders.
Sec. 17-28. Powers of chief of bureau when order not complied with.
Sec. 17-29. Investigation of causes for fires.
Sec. 17-30. Fires to be reported; information to be given.
Sec. 17-31. City attorney and police to assist in investigation.
Sec. 17-32. Records and statistics of fires.
Sec. 17-33. Annual report of bureau.
Sec. 17-34. Fire drills in schools.
Sec. 17-35. Permits—Nature and scope.
Sec. 17-36. Same—Duration; to be kept on premises.
Sec. 17-37. Same—Where applications filed; form.
Sec. 17-38. Same—When one (1) only required.
Sec. 17-39. Same—Preliminary inspection to be made.
Sec. 17-40. Same—Appeal from refusal.
Sec. 17-41. Same—When to be required for new materials, processes or occupancies, or trades.
Sec. 17-42. Penalties regarding lighted materials in beds of hotels, etc.
Sec. 17-43. Requiring structures to have a key lock box installed on the exterior of the structure for fire safety purposes.

***Cross references—**General duty of persons using airport to guard against fire, § 8-43; buildings and building regulations, Ch. 10; civil defense, Ch. 13; electricity, Ch. 14; fire department, § 16-26 et seq.; gas regulations, Ch. 19; housing, Ch. 21; plumbing, Ch. 27; following and parking near fire apparatus restricted, § 24-14; vehicles crossing fire hoses restricted, § 24-15; plumbing, Ch. 27; fire protection in trailer camps, § 34-35.

ARTICLE I. IN GENERAL

Sec. 17-1. Fire Code and Life Safety Code adopted.*

The 2018 edition of the International Fire Code published by the International Code Council ("2018 International Fire Code"), including all referenced standards and publications specified therein at Chapter 80, as amended in this chapter, is hereby adopted as the official fire code of the City of Chattanooga ("Fire Code"). In addition, for state buildings, educational occupancies, and any other occupancy requiring an inspection by the State Fire Marshal for initial licensure, the 2018 edition of the NFPA 101 Life Safety Code published by the National Fire Protection Association ("2018 NFPA 101 Life Safety Code") is hereby adopted. One (1) copy each of the 2018 International Fire Code and the 2018 NFPA 101 Life Safety Code are on file, and have been on file for more than fifteen (15) days, in the Office of the City Council Clerk.
(Code 1986, § 17-1; Ord. No. 9234, § 1, 9-12-89; Ord. No. 9654, § 99, 1-6-92; Ord. No. 10172, § 1, 3-7-95; Ord. No. 10690, § 1, 4-14-98; Ord. No. 11720, § 1, 7-26-05; Ord. No. 12273, § 1, 8-4-09; Ord. No. 12504, § 1, 4-26-11; Ord. No. 12618, § 1, 6-26-12; Ord. No. 12764, § 1, 9-10-13; Ord. No. 13191, § 1, 6-27-17; Ord. No. 13930, § 1, 12-20-22)

Sec. 17-2. Appendices to Code adopted.

The following appendices to the 2018 International Fire Code, as amended in this chapter, are hereby adopted as part of the City's Fire Code:

Appendix B — Fire-Flow Requirements for Buildings

Appendix C — Fire Hydrant Locations and Distribution

Appendix D — Fire Apparatus Access Roads

Appendix E — Hazard Categories

Appendix F — Hazard Ranking

Appendix G — Cryogenic Fluids—Weight and Volume Equivalents

Appendix H — Hazardous Materials Management Plan (HMMP) and Hazardous Materials Inventory Statement (HMIS)

Appendix I — Fire Protection Systems—Noncompliant Conditions
(Ord. No. 11720, § 2, 7-26-05; Ord. No. 12273, § 2, 8-4-09; Ord. No. 12504, § 2, 4-26-11; Ord. No. 12618, § 2, 6-26-12; Ord. No. 13930, § 2, 12-20-22)

***Editor's note—**The Fire Marshal shall have discretion to accept drawings and designs based upon the International Fire Code, 2003 Edition, and the amendments to that Code adopted by the City Council upon a showing of significant financial effect on existing projects up to and including November 1, 2009.
(Ord. No. 12273, § 4, 8-4-09)

Any provisions for sprinkler requirements for existing structures covered by the 2006 NFPA 101 Life Safety Code at Section 13.3.5 shall be operable on or before December 31, 2013, in the discretion of the Fire Marshal based upon demonstrated concerns for the public health and safety of citizens in this City in existing structures.
(Ord. No. 12504, § 3, 4-26-11; Ord. No. 12618, § 3, 6-26-12; Ord. No. 12764, § 1, 9-10-13)

Sec. 17-3. Amendments to Code adopted.

The following provisions of the 2018 International Fire Code are hereby amended as follows and made a part of the City's Fire Code:

(1) Sections 109.1, 109.2, and 109.3 are amended by deleting said sections in their entirety and substituting in lieu thereof the following:

109.1 Construction Board of Adjustment and Appeals. The Construction Board of Adjustment and Appeals for all of the adopted building codes of the City of Chattanooga, as established by Chattanooga City Code, Part II, Section 2-625, shall act as the board to hear appeals from any decision of the Fire Marshal or their designee and to consider variances to the Fire Codes as adopted by the City.

(2) Section 1103.5.1 is amended by deleting said section in its entirety.

(3) Appendix D, Section D103.6.1 is amended by deleting said section in its entirety and substituting in lieu thereof the following:

D103.6.1 Roads 22 feet to 26 feet in width. All fire access roads shall be at least 22 feet in width with wider areas for hydrants and designated parking areas which shall be approved by the City Engineer. Designated pulloffs of 8 feet in width shall be approved by the City Engineer on any streets less than 24 feet in width. Fire access roads 22 feet to 26 feet in width shall be posted on both sides as a fire lane.

(4) Appendix D, Sections D106 and D107 are amended by deleting said sections in their entirety and substituting in lieu thereof the following:

D106- Developments requiring more than one access road. All residential or multiple-family residential developments shall be provided with at least two (2) separate and approved fire access roads that meet the International Fire Code, 2018 Edition D107.2 Remoteness requirement, whenever any development project has more than 199 dwelling units, regardless of whether the dwelling units are equipped with an approved automatic sprinkler system.

(5) The City of Chattanooga requires locking FDC caps on all fire department connections (Intake & Discharge) for all water-based fire protection systems. Every new fire department connection for water-based fire protection systems shall be provided with a locking plug or cap of the type approved by the Fire Chief. On all new construction, these caps and/or plugs must be installed before the issuance of a Certificate of Occupancy.

(Ord. No. 11720, § 2, 7-26-05; Ord. No. 12273, § 3, 8-4-09; Ord. No. 12504, § 3, 4-26-11; Ord. No. 12618, § 3, 6-26-12; Ord. No. 13930, § 3, 12-20-22; Ord. No. 13986, § 2, 6-13-23)

Secs. 17-4—17-15. Reserved.

ARTICLE II. BUREAU OF FIRE PREVENTION

Sec. 17-16. Established.

A bureau of fire prevention is hereby established in the fire department.
(Code 1986, § 17-16; Ord. No. 9654, § 100, 1-6-92)

Sec. 17-17. Designation of chief.

The mayor shall designate an officer or member of the fire department as chief of the bureau of fire prevention, who shall hold his office at the pleasure of the mayor.
(Code 1986, § 17-17; Ord. No. 9654, § 101, 1-6-92)

Sec. 17-18. Members of fire department designated as inspectors.

The chief of the fire department and chief of the bureau of fire prevention may designate such members of the fire department as inspectors as shall from time to time be authorized by the mayor.
(Code 1986, § 17-18; Ord. No. 9654, § 101, 1-6-92)

Sec. 17-19. Employment of technical inspectors.

The chief of the fire department and chief of the bureau of fire prevention shall recommend to the mayor the employment of technical inspectors, who, when authorization therefor is made, shall be selected through an examination to determine their fitness for the position. The examination shall be open to members and nonmembers of the fire department and appointments made after examination shall be for an indefinite term, with removal only for cause.
(Code 1986, § 17-19; Ord. No. 9654, § 101, 1-6-92)

Sec. 17-20. Duties of officers of bureau.

(a) The officers of the bureau of fire prevention shall enforce all laws and ordinances covering the following:

(1) The prevention of fires.

(2) The storage and use of explosives and inflammables.

(3) The installation and maintenance of automatic and other fire alarm systems and fire extinguishing equipment.

(4) The maintenance and regulation of fire escapes.

(5) The maintenance of protection and the elimination of hazards in buildings and structures, including those under construction.

(6) The means and adequacy of exit in case of fire from factories, schools, hotels, lodging-houses, asylums, hospitals, churches, halls, theaters, amphitheaters and all other places in which numbers of persons work, live or congregate, from time to time, for any purpose.

(7) The investigation of the cause, origin and circumstances of fires.

(b) They shall have such other powers and perform such other duties as are set forth in other sections of this chapter, and as may be conferred and imposed from time to time by law.
(Code 1986, § 17-20)

Sec. 17-21. Right of entry for inspection or investigation.

The chief of the fire department, chief of the bureau of fire prevention or any other inspector may, at any reasonable hour, enter any building or premises in the city for the purposes of making any inspection or investigation which, under the provisions of this chapter, he may deem necessary to be made.
(Code 1986, § 17-21)

Sec. 17-22. Inspection of hazardous manufacturing processes and storage, etc., of explosives and inflammables.

The chief of the fire department or chief of the bureau of fire prevention shall inspect, or cause to be inspected by the bureau of fire prevention or the officers and members of the fire department, as often as they deem necessary, all especially hazardous manufacturing processes, storage or installations of gases, chemicals, oils, explosives and flammable materials, all interior fire alarms and automatic sprinkler systems, and such other hazards or appliances as they shall designate, and shall make such orders as may be necessary for the enforcement of the law and ordinances governing the same and for safeguarding life and property from fire.
(Code 1986, § 17-22)

Sec. 17-23. Inspection of places of assembly.

The chief of the fire department and the chief of the bureau of fire prevention shall inspect, or cause to be inspected by the bureau of fire prevention, or by the officers and members of the fire department each place of assembly at such times, including times of occupancy and use, as to insure compliance with all laws, regulations and orders dealing with overcrowding, use of decorations and maintenance of exitways, exits and fire appliances in such places of assembly.
(Code 1986, § 17-23)

Sec. 17-24. Inspection of buildings and premises.

The chief of the fire department and chief of the bureau of fire prevention shall inspect, or cause to be inspected by the bureau of fire prevention or the officers and members of the fire department, as often as they deem necessary, all buildings and premises, except the interiors of private dwellings, for the purpose of ascertaining and causing to be corrected any conditions liable to cause fire or violative of the provisions or intent of this chapter. The chief of the fire department, chief of the bureau of fire prevention or any inspector, upon the complaint of any person or whenever he deems it necessary, shall inspect any building or premises in the city.
(Code 1986, § 17-24)

Sec. 17-25. Issuance of order to remedy dangerous condition.

(a) Whenever any person making inspection, as provided herein, finds any building or other structure which for want of repairs, lack of sufficient fire escapes, automatic or other fire alarm apparatus, fire alarm boxes or fire extinguishing equipment, or by reason of age or dilapidation or from any other cause, is especially hazardous or liable to fire, and which is so situated as to endanger other property or the occupants of any premises, he shall order such dangerous condition to be remedied in such manner as may be specified by the chief of the bureau of fire prevention.

(b) Whenever any person making inspection, as provided herein, finds in any building combustive or explosive matter or dangerous accumulations of rubbish or unnecessary accumulations of waste paper, boxes, shavings or highly flammable material, so situated as to endanger property or the occupants of premises, or finds obstructions to or on fire escapes, stairs, passageways, doors or windows, liable to interfere with the operations of the fire department or the egress of occupants in case of fire, he shall order the same to be removed or remedied; provided that, if any substance or material is found on premises in violation of the provisions of this chapter relating to the storage and possession of such substance or material it may be confiscated immediately.
(Code 1986, § 17-25)

Sec. 17-26. Service of orders.

The service of any order issued pursuant to sections 17-22 and 17-25 of this Code may be made upon the occupant of the premises to which such order relates, either by delivering a copy of it to such occupant personally or by delivering the same to and leaving it with any person in charge of the premises, or in case no such person is found upon the premises, by affixing a copy thereof in a conspicuous place on the entrance door of the premises. Whenever it may be necessary to serve an order upon the owner of premises, such order may be served either by delivering to and leaving with such owner a copy of the order, or if he is absent from the city, by mailing such copy by registered mail to his last known post office address. If buildings or other premises are owned by one (1) person and occupied by another under lease or otherwise, the orders issued in connection with the enforcement of this chapter shall apply to the occupant, except where the orders require the making of additions to or changes in the premises themselves, such as would immediately become real estate and be the property of the owner of the premises. In such cases the orders shall affect the owner and not the occupant unless it is otherwise agreed between the owner and the occupant.
(Code 1986, § 17-26)

Sec. 17-27. Appeals from orders.

If no appeal is taken as provided herein, any order issued pursuant to sections 17-22 and 17-25 of this Code shall be complied with forthwith by the owner or occupant whose duty it is to comply. Such person may, within twenty-four (24) hours after the service of such an order, appeal to the mayor or his designee, who shall, within five (5) days, review such order and file his decision affirming, modifying or revoking the same. Unless revoked by him, such order shall be complied with according to his decision within the time fixed by him; provided that, any such owner or occupant may, within five (5) days after the decision of the mayor or his designee, file his petition with the city council, praying a review of such decision. The city council shall hold a hearing thereon within not less than five (5) days nor more than ten (10) days from the time the petition is filed, and shall make such order on the premises as right and justice may require and such decision shall be final. Parties appealing to the city council shall file with the city council within two (2) days a bond approved by it in an amount fixed by it, conditioned to pay all costs of such appeal in case the appellant fails to sustain his appeal or the same is dismissed for any cause. At such hearing the chief of the bureau of fire prevention or chief of the fire department shall present the facts concerning the conditions to be corrected, and the owner of the premises may present evidence and shall be entitled to be represented by counsel if he so desires.
(Code 1986, § 17-27; Ord. No. 9654, § 102, 1-6-92)

Sec. 17-28. Powers of chief of bureau when order not complied with.

If the owner or occupant of any premises, after confirmation of an order by the city council or by the mayor or his designee, if no appeal is taken to the city council, within twenty-four (24) hours after the service of such order, if no appeal is taken to the mayor or his designee, fails or refuses to comply with the terms of such order, the chief of the bureau of fire prevention may, in his discretion, order any building

especially hazardous or liable to fire, which threatens other property or the safety of the occupants, repaired or demolished, as necessity may require, by the city at the expense of the owner, and may, in his discretion, confiscate any combustible or explosive matter or other material creating a fire hazard which was ordered removed.
(Code 1986, § 17-28; Ord. No. 9654, § 102, 1-6-92)

Sec. 17-29. Investigation of causes for fires.

The bureau of fire prevention shall investigate the cause, origin and circumstances of every fire occurring in the city by which property has been destroyed or damaged and, as far as possible, shall determine whether the fire is the result of carelessness or design. Such investigations shall be begun immediately upon occurrence of a fire by the inspector in whose district the fire occurs, and if it appears to the officer making such investigation that such fire is of suspicious origin, the chief of the fire department shall immediately be notified of the facts, shall immediately take charge of the physical evidence, shall notify the proper authorities designated by law to pursue the investigation of such matters, and shall further cooperate with the authorities in the collection of evidence and in the prosecution of the case.
(Code 1986, § 17-29)

Sec. 17-30. Fires to be reported; information to be given.

Every fire shall be reported in writing to the bureau of fire prevention within two (2) days after the occurrence of the same by the officer in whose jurisdiction such fire has occurred. Such report shall be in such form as shall be prescribed by the chief of the fire department and shall contain a statement of all facts relating to the cause, origin and circumstances of such fire, the extent of the damage thereof, the insurance upon such property and such other information as may be required.
(Code 1986, § 17-30)

Sec. 17-31. City attorney and police to assist in investigation.

The city attorney and police department upon the request of the chief of the bureau of fire prevention, shall assist the inspectors in the investigation of any fire which is, in their opinion, of a suspicious origin.
(Code 1986, § 17-31)

Cross reference—City attorney, § 2-41 et seq.

Sec. 17-32. Records and statistics of fires.

The chief of the fire department shall keep, in the office of the bureau of fire prevention, a record of all fires occurring in the city and of all the facts concerning the same, including statistics as to the extent of such fires and the damage caused thereby and whether such losses were covered by insurance, and if so, in what amount. Such record shall be made dally from the reports made by the inspectors under the provisions of this chapter. All such records shall be public.
(Code 1986, § 17-32)

Sec. 17-33. Annual report of bureau.

The annual report of the bureau of fire prevention shall be made on or before the first day of February and transmitted to the mayor. Such report shall contain all proceedings under this chapter, with such statistics as the chief of the fire department may wish to include therein. The chief of the fire department and chief of the bureau of fire prevention shall also recommend therein any amendments to this chapter which, in their judgment, will be desirable.
(Code 1986, § 17-33; Ord. No. 9654, § 95, 1-6-92)

Sec. 17-34. Fire drills in schools.

The chief of the fire department and chief of the bureau of fire prevention shall require the principals or persons in charge of public, private or parochial schools and other educational institutions in the city to have two (2) fire drills each month, and to keep all doors and exits unlocked during school hours.
(Code 1986, § 17-34)

Sec. 17-35. Permits—Nature and scope.

A permit shall constitute written permission to establish, maintain, store or handle materials, or to conduct processes, which produce conditions hazardous to life or property. Such permit shall not take the place of any other permit or license required by law or by this Code. No permit shall be transferable, and any change in use or occupancy of premises shall require a new permit.
(Code 1986, § 17-35)

Sec. 17-36. Same—Duration; to be kept on premises.

Every permit granted under the provisions of this chapter shall be for such period as the issuing officer may determine, but in no event for a period longer than one (1) year from the date of its issuance. Such permit shall at all times be kept on the premises designated therein and shall at all times be subject to inspection by any officer of the fire or police departments or the bureau of fire prevention.
(Code 1986, § 17-36)

Sec. 17-37. Same—Where applications filed; form.

Applications for permits required by this chapter shall be made to the bureau of fire prevention, if issued by the chief of the bureau, and to the city inspection department, if issued by the building inspector. Applications shall be made in such form and detail as the issuing officer may prescribe.
(Code 1986, § 17-37)

Sec. 17-38. Same—When one (1) only required.

One (1) permit only shall be required for retail establishments dealing in, or manufacturing plants using, two (2) or more flammable, combustible or explosive materials to be kept in the establishment at the same time, but each of the materials shall be listed in the permit.
(Code 1986, § 17-38)

Sec. 17-39. Same—Preliminary inspection to be made.

Before any permit is issued, the issuing officer or his assistants shall inspect and approve the receptacles, vehicles, buildings or storage places to be used under such permit.
(Code 1986, § 17-39)

Sec. 17-40. Same—Appeal from refusal.

Whenever the issuing officer shall reject or refuse to grant an application for a permit, or when it is claimed that provisions of this chapter or any ordinance relating thereto do not apply, or when it is claimed that the true intent and meaning of this chapter or any regulations made hereunder have been misconstrued or wrongly interpreted, the person aggrieved may appeal from the decision of the issuing officer in writing as provided in section 17-27 of this Code.
(Code 1986, § 17-40)

Sec. 17-41. Same—When to be required for new materials, processes or occupancies, or trades.

The chief of the fire department, chief of the bureau of fire prevention and building inspector shall act as a committee to determine and specify any new materials, processes or occupancies, and trades for which a permit shall be required in addition to those required by this chapter. The chief of the bureau of fire prevention shall post a list of any permits so required in a conspicuous place in his office, and shall also maintain in his office detailed and descriptive drawings and specifications showing approved and acceptable methods of storing, handling or protecting such new materials and conducting such processes and trades.
(Code 1986, § 17-41)

Sec. 17-42. Penalties regarding lighted materials in beds of hotels, etc.

It shall be unlawful for any person to ignite any match or flammable material, or to smoke any cigar, cigarette or pipe while in or on a bed in any hotel, or while in or on a bed in any house or building where rooms are rented for sleeping purposes. Anyone convicted of violating this section shall be fined not less than ten dollars ($10.00) nor more than fifty dollars ($50.00) for each offense in the discretion of the city court.
(Ord. No. 11720, § 3, 7-26-05)

Sec. 17-43. Requiring structures to have a key lock box installed on the exterior of the structure for fire safety purposes.

Key Lock Box System.

(a) The following structures shall be equipped with a key lock box at or near the main entrance or such other location required by the Fire Chief:

(1) All newly constructed commercial or industrial structures and places of assembly protected by an automatic suppression system, or such structures that are secured in a manner that restricts access during an emergency;

(2) All newly constructed multi-family residential structures that have restricted access through locked doors and have a common corridor for access to the living units;

(3) All newly constructed nursing care facilities;

(4) All new construction with sprinkler/standpipe connections to use FDC locking caps; and

(5) All existing structures undertaking additions, alterations, or repairs which shall cause the same to conform with the then current provisions of any of the building or property maintenance codes adopted by the City.

(b) All newly constructed structures subject to this section shall have the key lock box installed and operational prior to the issuance of an occupancy permit.

(c) The Fire Chief shall designate the type of key lock box system to be implemented within the City and shall have the authority to require all structures, including existing problematic occupancies to install a lock box, and to use the designated system.

(d) The owner or operator of a structure required to have a key lock box shall, at all times, keep a key in the lock box that will allow for access to the structure.

(e) The Fire Chief shall be authorized to implement rules and regulations for the use of the lock box system.

(f) Any person who owns or operates a structure subject to this section shall be subject to the penalties set forth in Section 1-8 of this code for any violation of this section, provided that the minimum fine for a conviction for a violation of this section shall be fifty dollars ($50.00.)
(Ord. No. 13986, § 2, 6-13-23)

Chapter 18

GARBAGE AND REFUSE*

Article I. In General

Sec. 18-1. Purpose.
Sec. 18-2. Definitions.
Sec. 18-3. Jurisdiction of Director.
Sec. 18-4. Rules and regulations to implement articles.
Sec. 18-5. Authority of Director.
Sec. 18-6. General rules and regulations.
Sec. 18-7. Premises to be kept clean.
Sec. 18-8. Penalty for violations.
Sec. 18-9. Interfering with inspections and abatement.
Secs. 18-10—18-30. Reserved.

Article II. Containers

Sec. 18-31. Duty to have.
Sec. 18-32. Residential; storage and requirements.
Sec. 18-33. Location.
Sec. 18-34. Disturbing.
Secs. 18-35—18-45. Reserved.

Article III. Municipal Collection and Disposal

Sec. 18-46. Authorized residential refuse collection.
Sec. 18-47. Exclusive collection.
Sec. 18-48. Frequency of collections.
Sec. 18-49. Service fees for collection, removal, and disposal.
Sec. 18-50. Billing.
Sec. 18-51. Special collection services.
Sec. 18-52. Recyclables.
Secs. 18-53—18-65. Reserved.

Article IV. Private Collections, Permits, Etc.

Sec. 18-66. Private collection permit.

***Editor's note—**Ord. No. 13385, § 1, adopted Oct. 16, 2018, amended Ch. 18 in its entirety to read as herein set out. Former Ch. 18, §§ 18-1—18-19, 18-31—18-34, 18-46—18-52, 18-66—18-68, 18-86, 18-87, 18-101—18-106, 18-141—18-170, 18-181—18-183, 18-211—18-214, pertained to similar subject matter, and derived from substantive provisions of Ch. 18 of the 1986 Code and from ordinances listed in the Code Comparative Table. See the Code Comparative Table for a complete derivation of these former provisions.

Cross references—Air pollution, Ch. 4; animals and fowl, Ch. 7; junk and secondhand dealers, § 11-216 et seq.; health and sanitation, Ch. 20; sewer service charges, § 31-31 et seq.; industrial waste, § 31-50 et seq.; disposal of excreta, § 31-241 et seq.; sewer agreements with Chattanooga Area Regional Council Members, § 31-286; waste containers at public swimming pools, § 33-40; receptacles for garbage and rubbish in trailer camps, § 34-34; wreckers and towing services, § 35-146 et seq.

Sec. 18-67. Rules and regulations for identification of collectors.
Sec. 18-68. Location permits.
Secs. 18-69—18-85. Reserved.

Article V. Leaves, Grass, Rubbish, Etc.

Sec. 18-86. Special services, rules and regulations.
Sec. 18-87. Exceptions.
Secs. 18-88—18-100. Reserved.

Article VI. Sanitary Landfills

Sec. 18-101. Disposal sites; rules and regulations; fees.
Sec. 18-102. Ownership, etc., of sanitary landfills.
Sec. 18-103. Control of access.
Sec. 18-104. Handling of special waste.
Sec. 18-105. Fees.
Sec. 18-106. Wood recycling and compost facility.
Secs. 18-107—18-120. Reserved.

Article VII. Refuse Transfer Station

Secs. 18-121—18-140. Repealed.

Article VIII. Anti-Litter Code

Sec. 18-141. Short title.
Sec. 18-142. Definitions.
Sec. 18-143. Depositing litter in public places.
Sec. 18-144. Placement of litter in receptacles to be so as to prevent scattering.
Sec. 18-145. Sweeping into gutters prohibited; duty to clean sidewalk.
Sec. 18-146. Merchants to keep sidewalk free of litter.
Sec. 18-147. Throwing litter from vehicles.
Sec. 18-148. Vehicles, loads causing litter.
Sec. 18-149. Litter in parks.
Sec. 18-150. Litter in watercourses, lakes, fountains.
Sec. 18-151. Throwing, distributing handbills in public places.
Sec. 18-152. Placing handbills on vehicles.
Sec. 18-153. Depositing handbills on uninhabited or vacant premises.
Sec. 18-154. Distribution of handbills prohibited where property posted.
Sec. 18-155. Distribution of handbills at inhabited private premises.
Sec. 18-156. Dropping litter from aircraft.
Sec. 18-157. Posting notices prohibited.
Sec. 18-158. Reserved.
Sec. 18-159. Reserved.
Sec. 18-160. Reserved.
Sec. 18-161. Reserved.
Sec. 18-162. Reserved.
Sec. 18-163. Reserved.
Sec. 18-164. Reserved.

Sec. 18-165. Reserved.
Sec. 18-166. Reserved.
Sec. 18-167. Reserved.
Sec. 18-168. Reserved.
Sec. 18-169. Reserved.
Sec. 18-170. Reserved.
Secs. 18-171—18-180. Reserved.

Article IX. Reserved

Secs. 18-181—18-190. Repealed.

Article X. Public Dumpster Service

Secs. 18-191—18-196. Repealed.
Secs. 18-197—18-210. Repealed.

Article XI. Donation Bins

Sec. 18-211. Definitions.
Sec. 18-212. Donation bins; permit required.
Sec. 18-213. Application for donation bin permit.
Sec. 18-214. Donation bins compliance procedures; duties of housing code officials.

ARTICLE I. IN GENERAL

Sec. 18-1. Purpose.

Articles I through VII of this chapter are determined and declared to be a sanitary measure for the protection and promotion of the health, safety and welfare of the people of the city.
(Code 1986, § 18-1; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-2. Definitions.

As used in articles I through VII of this chapter, the following terms shall have the meaning indicated in this section:

Authorized residential container shall mean all residential (can type) containers, to be made of galvanized, plastic or similar material and approved plastic bags. Individual (can type) containers shall not be larger than twenty-five (25) inches in diameter and thirty (30) inches in height nor smaller than fourteen (14) inches in diameter and sixteen (16) inches in height (commonly known as thirty (30) gallon and twenty (20) gallon containers) and shall not weigh more than fifty (50) pounds; provided that, for routes selected by the Director, residents shall use ninety-six (96) gallon or sixty-four (64) gallon containers suitable for mechanical pick-up.

Condominium shall include any individually owned single units of a multiple structure or structures with common elements (including, but not limited to, the land, foundations, main, wells, roofs, halls, lobbies, stairways, entrances and exits, basements, yards and gardens).

Daily average tonnage shall mean the total monthly tonnage deposited divided by the number of landfill operating days during the month. Mondays through Fridays shall be counted as one (1) day, Saturdays shall be counted as one-half (½) day, and Sundays, holidays and other days that the landfill is closed shall be counted as zero (0) days.

Demolition - construction waste shall mean wastes, other than special wastes, resulting from construction, remodeling, repair and demolition of structures and from road building. Such wastes shall include bricks, roofing materials, masonry materials, soil, rock and lumber, road spoils, paving material, dry wall, plaster, and demolition concrete where all protruding rebar ends have been cut for which a building or demolition permit has been properly issued if so required by any applicable resolutions, ordinances, codes or laws; and said construction or demolition site is located within the boundaries of Hamilton County, Tennessee. Such wastes shall exclude carpeting, loose paper or cardboard, paint containers, white goods, metals, vinyl or asbestos containing floor covering. Any loads deemed to contain any of the excluded items shall not be deemed to be demolition or construction waste.

Director shall mean the Director of City Wide Services, the employee in charge of the city yards, department of public works, of the city.

Garbage shall include every accumulation of both animal and vegetable matter, liquid or otherwise, that attend the preparation, use, cooking, dealing in or storage of meat, fish, fowl, fruits or vegetables, tin cans or other containers originally used for foodstuffs.

Hazardous refuse means any chemical, compound, mixture, substance or article which may constitute a hazard to health or may cause damage to property by reason of being explosive, flammable, poisonous, corrosive, unstable, irritating, radioactive or otherwise harmful.

Industrial solid waste shall mean all such wastes peculiar to industrial, manufacturing or processing plants.

Mobile home park shall include where a majority of mobile homes are occupant-owned mobile homes (not rented mobile homes, travel campers, recreational vehicles or trailers).

Nonresidential service is hereby defined as service to all service areas in the city, (such service areas as defined by the Director) except those locations specified under "residential service." Non-residential service shall be divided into the following categories:

(1) Commercial, which shall include restaurants, motels, hotels, retail and wholesale business establishments and offices where a product is not manufactured.

(2) Industrial, which shall include all manufacturing and fabricating businesses.

(3) Governmental, which shall include local, state and federal governmental agencies.

(4) Educational facilities, which shall include all public schools and universities.

(5) Religious, which shall include all churches, synagogues, church-operated or affiliated agencies.

(6) Fraternal, social and professional clubs and organizations, which shall include lodges, social clubs, labor unions.

(7) Medical, which shall include all hospitals, doctors' offices and clinics, animal hospitals and clinics, but shall not include public hospitals.

(8) Private educational facilities, which shall include all nonpublic schools, colleges and universities.

(9) Apartment complexes, which shall include all apartment complexes of eight (8) or more units.

Classification as a non-residential service location shall normally preclude classification as a residential service location.

Refuse shall mean and include all garbage and rubbish, as those terms are defined below, except that dead animals and fowls and body wastes are expressly excluded therefrom and shall not be stored therewith.

Residential service shall include single or multiple family dwelling units up to and including apartment complexes of seven (7) units or less, public housing developments, condominiums and mobile home parks unless rolloff/dumpster containers are available for exclusive collection as defined in section 18-47.

Rubbish includes all non-putrescible solid waste consisting of both combustible and non-combustible waste such as paper, cardboard, glass, crockery, excelsior, cloth and similar materials. It shall not include bulky refuse meaning stoves, refrigerators, water tanks, washing machines, broken furniture or similar bulky materials having a weight greater than fifty (50) pounds and/or a volume greater than thirty (30) gallons.

Service location shall mean a unit on a property or parcel which is eligible to receive curbside refuse collection services. Each service location must have a separate power meter.

Special container shall mean and include a ninety-six (96) gallon or other city-issued container compatible with a mechanical collection system. Special containers shall include both city garbage containers and city recycle containers.

(Code 1986, § 18-2; Ord. No. 10189, §§ 1, 2, 3-28-95; Ord. No. 10340, § 1, 11-28-95; Ord. No. 10421, §§ 1, 2, 5-28-96; Ord. No. 10450, § 1, 8-13-96; Ord. No. 12260, § 1, 6-16-09; Ord. No. 12687, §§ 1, 2, 2-5-13; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 18-3. Jurisdiction of Director.

The removal and disposition of garbage and rubbish from premises in the city shall be under the jurisdiction of the Director.
(Code 1986, § 18-3; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-4. Rules and regulations to implement articles.

The Director, subject to the approval of the mayor, may make such necessary or desirable rules and regulations as are not inconsistent with the provisions of this chapter in order to aid in its administration and in order to insure compliance and enforcement.
(Code 1986, § 18-4; Ord. No. 9654, § 103, 1-6-92; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Personnel rules and regulations, § 2-136 et seq.

Sec. 18-5. Authority of Director.

The Director shall, with the approval of the mayor, establish rules and regulations governing the operation and maintenance of the refuse removal system and which may be necessary to carry out the intent and purposes of this chapter. Such rules and regulations shall become effective fourteen (14) days after being approved by the city council and any violation of such rules and regulations shall be punished as a violation of this chapter. Such rules and regulations shall be kept on file, open to the public, at the office of the Director.
(Code 1986, § 18-5; Ord. No. 9654, §§ 103, 134, 1-6-92; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-6. General rules and regulations.

(a) *Deposit in vacant lots, streets, streams and ponds.*

(1) It shall be unlawful for any person to throw or deposit or to cause to be thrown or deposited, any rubbish or waste matter, except bricks, brick bats, cement, plaster, stones, gravel and cinders (and these only under permit from the city) in or upon any vacant lot or in any backyard, or on or upon any street or other public place in the city.

(2) It shall be unlawful for any person to throw, discard, deposit, dispose of, or allow any trash, garbage, waste, scraps of food, vegetables, fruits, meat, industrial or processed waste or the like into, about, around or near any stream or body of water, regardless of size, within the confines of the city.

(3) It shall be unlawful for any person to place any straw, dirt, chips, shells, swill, nails, iron, fruit peelings and rinds, garbage or refuse of any kind in any street or sidewalk in the city.

(4) This section shall not be construed to prohibit people from feeding ducks, swans, fish and like aquatic creatures within reasonable bounds as the need may require.

(b) *Duty of owner, operator, etc., to maintain and load vehicle to prevent escape of contents.* The owner, lessee or operator of every vehicle engaged in hauling any sand, gravel, dirt, stone, rock, brick, coal, limestone, limestone dust, asphalt, garbage, paper, trash, or any material which may, as a result of such vehicle's movement, be likely to blow, fall or be scattered onto the public thoroughfares of the city, shall maintain such vehicle in such secure condition, and shall direct and supervise the loading of said vehicle in such a manner as to prevent any portion of such materials, products or substances from falling, blowing or being scattered on such thoroughfares.

(c) *Ashes from manufacturing plants.* It shall be the duty of every person occupying, operating or controlling any building or portion thereof in the city used as a manufacturing plant in or about which combustibles are used or ashes produced, to keep in or about such building, in a fireproof container, all ashes and other waste arising from and produced therein, and to remove the same or cause it to be removed from said premises at his own expense.

(d) *Burning in street or on city's dumping grounds, landfill area, etc.* It shall be unlawful for any person to burn or cause to be burned rubbish on any street in the city. It shall be unlawful for any person to set fire to, or burn any papers, trash or garbage deposited within the city limits upon the dumping grounds, landfill area, or other disposal site used by the city for the depositing or dumping of such trash or garbage collected by the city refuse removal system without the permission of the Director and express authority granted by local or state enactments regulating air pollution control.

(e) *Method of disposal by city and its contractor.* The city or its contractor shall dispose of refuse only by the methods approved by the city council.

(f) *Scattering paper on streets, etc.* It shall be unlawful for any person to scatter or cause to be scattered in or upon the streets or public places of the city, or in any office, store or other place of business, or in or upon any yard or porch of any residence within the corporate limits, any paper or scrap of paper of any character, and every person violating the provisions of this section shall be guilty of a misdemeanor. This, however, is not intended to prohibit the distribution of bills, announcements or other printed matter when delivered personally by hand and under the direction of parties residing or doing business within the city.

(g) *Persons engaged in business of trimming, repairing, etc., of trees.*

(1) No person shall perform any service for profit wherein trees are cut, trimmed or altered, and wherein an accumulation of brush, wood, debris or other refuse is the result of such work or service without being equipped with a truck or other vehicle capable of removing said brush, wood, debris, or other refuse, as required, to a dumping area previously designated as such by the Director.

(2) Any person, association or corporation, except departments of municipal or governmental agencies, engaged in the business of removing trees, trimming trees, or repairing trees in any manner whatsoever, shall, before engaging in any of the aforementioned activities, maintain a current business license and a bond sufficient to cover any clean-up operations that may result from such work.

(h) *Open burning of garbage prohibited.* It is hereby declared to be a misdemeanor for any person to start or maintain, or cause to be started or maintained, any open ground fire or any fire in an open can, barrel or other open container for the purpose of burning or consuming refuse or garbage, upon any property, either public or private, within the city, except as provided in the fire prevention code of the city, and permitted under local and state air pollution control regulations.
(Code 1986, § 18-6; Ord. No. 9654, § 134, 1-6-92; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Case law annotation—In an action for personal injuries, the fact that a property owner permitted grease to accumulate upon the sidewalk in violation of section 19-3 of the City's 1960 Code (now codified in this section as subparagraph (a)(3)) established his negligence. Rose v. Abeel Bros., 4 Tenn. App. 431 (Tenn. Ct. App. 1927).

Sec. 18-7. Premises to be kept clean.

All persons within the city are required to keep their premises in a clean and sanitary condition, free from accumulations of refuse except when stored as provided in this chapter.
(Code 1986, § 18-7; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-8. Penalty for violations.

Any person violating the provisions of this chapter shall be guilty of a misdemeanor and punishable by a fine of not less than ten dollars ($10.00) nor more than fifty dollars ($50.00).
(Code 1986, § 18-8; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-9. Interfering with inspections and abatement.

It shall be unlawful for any person to interfere with the Director or his designees, including refuse inspectors and assistants, in enforcement of this chapter.
(Ord. No. 12260, § 2, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Secs. 18-10—18-30. Reserved.

ARTICLE II. CONTAINERS

Sec. 18-31. Duty to have.

a) It shall be the duty of every person or entity owning any residential premises where garbage is created or accumulated at all times to keep or cause to be kept City garbage containers, specified herein, for the deposit of garbage generated on the premises.

b) The Director shall determine the appropriate type and/or quantity of City garbage containers for refuse collection from properties and require property owners to adhere to requirements to ensure safe and healthy disposal of refuse.

c) It shall be the duty of every property owner on routes selected by the Director to maintain a City garbage container suitable for safe and sanitary collection of refuse.

d) *Residential service locations.* The city shall provide one (1) City garbage container to each residential service location when that location is first added to the mechanical collection system. Restrictions are as follows:

1) No more than two (2) City garbage containers shall be serviced, kept, or maintained at any single-family or multiple-family dwelling service location.

2) No more than seven (7) City garbage containers shall be serviced, kept, or maintained on any residential property or parcel.

e) *Non-Residential service locations.* Properties eligible for non-residential service may lease one (1) City garbage container. Restrictions are as follows:

1) No more than one (1) City garbage container may be serviced, kept, or maintained on any non-residential property or parcel.

2) Non-residential service locations, properties, or parcels maintaining a commercial container of any type or size shall not maintain a City garbage container and are not eligible for refuse collection services.

f) Only refuse placed inside the issued City garbage containers shall be collected.

g) It shall be the duty of the property owner where garbage is created or accumulated to replace at their expense any lost, stolen, vandalized, burned, or defaced City garbage containers. This includes any person who subsequently comes into possession of a location or property which had previously been issued a garbage container. City garbage containers damaged during the collection process will be repaired or replaced by the City.

h) City garbage containers may be replaced or leased to eligible properties for a fee of seventy-five dollars ($75.00). All City garbage containers are and remain the property of the City of Chattanooga even if a fee has been paid to the City for the use of such container.
(Code 1986, § 18-31; Ord. No. 10421, § 3, 5-28-96; Ord. No. 12260, § 3, 6-16-09; Ord. No. 12687, § 3, 2-5-13; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-32. Residential; storage and requirements.

(a) *Requirements.* Containers shall be as defined in section 18-2's definition of "authorized residential container." Lids or covers of such containers shall be kept tightly closed and watertight at all times other than when garbage is being deposited therein or removed therefrom. Containers used for the deposit of garbage for collection by the city shall be in such good condition that collection thereof shall not injure the person collecting the contents. Containers having ragged or sharp edges or other defects must be promptly repaired or replaced.

(b) *Fifty-five (55) gallon drums prohibited.* Fifty-five (55) gallon drums are specifically prohibited from use as containers for garbage or other refuse.

(c) *Leaves, etc.* Small amounts of leaves, less than two (2) feet wide by two (2) feet long by one (1) foot tall including grass clippings and other rubbish, shall be stored in approved containers or plastic bags with the plastic bags placed inside an approved container on the curbside for collection.

(d) *Removal after emptying.* After the garbage, brush, limbs or other refuse has been emptied out of a receptacle by the department of public works, streets and airports, the person owning such receptacle shall remove same from the street or sidewalk at once.

(e) *Bag garbage.* To eliminate odor and insects, reduce spillage and litter, and discourage animals from getting into garbage containers, all residential waste should be placed in plastic or paper bags which must be tightly secured. Collection crews will not pick up spills resulting from loose garbage.
(Code 1986, § 18-32; Ord. No. 12260, § 4, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-33. Location.

(a) It shall be incumbent upon tenants, lessees, occupants or owners of premises to provide a safe and convenient entrance to and through the premises for the purpose of collecting garbage. A container for refuse and garbage which is to be collected shall be placed at a convenient and accessible point in the yard within five (5) feet of a driveway accessible to a collection vehicle or within five (5) feet of a street in such a position as not to intrude upon the traveled portion of the street or alley. Containers shall be placed where collectors may pick up and empty same without attack from animals in the possession of the occupant. The Director may by regulations provide further for the location of containers. (For example, the Director may provide for special locations for those persons who are aged or handicapped in such a manner as would otherwise create an unusual hardship.) City garbage collectors shall not enter houses, garages or stores for the collection of garbage or rubbish. Garbage and refuse shall not be stored in close proximity to other personal effects which are not desired to be collected, but shall be reasonably separated in order that the collector can clearly distinguish between what is to be collected and what is not to be collected. Personal effects stored or placed within ten (10) feet of a container shall be *prima facie* presumed to be garbage or refuse. This section is not to be construed as requiring all users to place containers in a location for "curbside pick-up." Further, this section does not require those persons who own home compactor units to place the bags in which the compacted garbage has been deposited inside the garbage container so long as the aforementioned bags are constructed in such a sturdy fashion as to prevent its being ripped open by animals and its contents scattered. All material shall be placed for pick-up on the day scheduled for pick-up in the particular area. No material shall be placed for pick-up before the day scheduled.

(b) Special containers for the mechanical pick-up system shall be placed in a location suitable for mechanical pick-up. Generally, this shall be within two (2) feet of the curb or edge of pavement, at least three (3) feet from obstructions such as mail boxes, fences, utility poles, and other garbage containers, and at least twenty (20) feet from any vehicle parked along the street. The Director or his designee may designate specific locations for such containers when reasonably necessary to facilitate mechanical pick-up.
(Code 1986, § 18-33; Ord. No. 10421, § 4, 5-28-96; Ord. No. 12260, §§ 1, 5, 6-16-09Ord. No. 13385, § 1, 10-16-18)

Sec. 18-34. Disturbing.

No unauthorized person shall uncover, rifle, pilfer, dig into, turn over, or in any other manner disturb or use any refuse container belonging to another. This section shall not be construed to prohibit the use of public anti-litter cans for the deposit of refuse commonly recognized as litter.
(Code 1986, § 18-34; Ord. No. 13385, § 1, 10-16-18)

Secs. 18-35—18-45. Reserved.

ARTICLE III. MUNICIPAL COLLECTION AND DISPOSAL

Sec. 18-46. Authorized residential refuse collection.

This Article sets forth the conditions for lawful disposal of refuse.

(a) Refuse is waste generated in the normal occupation and use of a residential property. Residential refuse is defined as excluding any waste generated by contractors in the construction, remodeling or repair of houses. Residential refuse is defined as excluding any waste generated by tree trimmers or other persons for hire who cut or trim trees with material larger than 18-inches in diameter or more than one tree on a single property or adjadecnt property within thirty (30) days.

(b) Only non-hazardous garbage, refuse, and ashes generated on-site are eligible for residential collection. It is unlawful to place or attempt to dispose of hazardous waste through residential collection. It is unlawful to place for residential collection any residential waste that was not generated on the premises.

(c) Residential waste shall be set out for collection in special containers where mechanical collection equipment is utilized. Special containers shall not be packed so tightly as to interfere with emptying them utilizing the mechanical equipment. If the collection route is not mechanized, residential waste shall be set out for collection in authorized residential containers weighing less than fifty (50) pounds.

(d) Residential bulky trash and residential yard trash shall only be disposed of as provided in Section 18-86.

(e) It shall be unlawful to co-mingle residential waste with residential bulky trash or residential yard trash or to co-mingle residential bulky trash with residential yard trash except such small quantities as defined herein which may be placed for regular residential collection in a special container or in an authorized residential container. The placement in containers shall be limited to the lesser of than thirty (30) gallons in quantity or fifty (50) pounds in weight.

(f) It is unlawful for any person to dispose of, setout for collection, or to maintain or place any garbage or refuse on streets, sidewalks, or private property except as authorized by this Article. Without limitation, any owner or resident who knowingly permits or suffers any violation of this

Article to exist upon property owned or occupied by them shall be guilty of a violation. Without limitation, any contractor or other person for hire who places any waste upon any property in violation of this Article shall be guilty of a violation.

(Code 1986, § 18-46; Ord. No. 11195, § 1, 10-23-01; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-47. Exclusive collection.

It shall be unlawful for any person other than the city or its authorized contractor to engage in the business of collecting, removing, and disposing of garbage and rubbish in the city except those private collectors specifically authorized by a business license and required permits.

(Code 1986, § 18-47; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-48. Frequency of collections.

a) Residential garbage service shall be provided on a weekly basis. Curbside recycling service shall also be provided on a biweekly basis. Both residential garbage and recyclables must be placed at the curbside by 7:00 a.m. on the day of collection.

b) The Director may increase the frequency of garbage service or recycling service at a service location in order to ensure safe and healthy disposal of refuse and recyclables.

c) The City shall collect refuse from the Central Business District ("CBD") or comparable areas as determined by the Director on a regular schedule as established by the Director or his/her designee. The CBD is generally defined as the core business area of downtown Chattanooga. Specific boundaries shall be established by the Director on an annual basis. All garbage set out for collection in the CBD must be in plastic bags placed in City-issued containers. CBD customers must provide space to place containers or take garbage and recyclables to containers in a location designated by the Director or his/her designee.

(Code 1986, § 18-48; Ord. No. 9319, § 2, 2-20-90; Ord. No. 9686, § 1, 3-17-92; Ord. No. 11894, § 1, 10-10-06; Ord. No. 12260, § 6, 6-16-09; Ord. No. 12687, § 4, 2-5-13; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-49. Service fees for collection, removal, and disposal.

(a) There shall be no charge or fee for residential service rendered by the city refuse removal system, except as provided in section 18-51.

(b) There shall be no charge for non-residential pick-up within the city.

(c) The city may establish sanitary landfills or other places of disposal as may be necessary, and no persons shall use or be permitted to use any sanitary landfill or any other place of disposal except with the approval of the Director and in accordance with the rules and regulations promulgated in this chapter.

(d) Monday through Friday service for the collection of garbage and dead animals will be provided once a day to veterinary clinics for a flat fee of thirty-two dollars and fifty cents ($32.50) per week. Any additional collection will be at a charge of fifteen dollars ($15.00) per call. Dead animals weighing more than thirty (30) pounds must be placed in a bag alone.

(e) Alternatively, twice weekly service for the collection of garbage and dead animals will be provided to veterinary clinics for a flat fee of thirteen dollars ($13.00) per week. Any additional collection will be at a charge of fifteen dollars ($15.00) per call. Dead animals weighing more than thirty (30) pounds must be placed in a bag alone.

(Ord. No. 11175, § 29, 9-11-01; Ord. No. 11332, 10-15-02; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-50. Billing.

(a) All applicable fees and charges shall be billed monthly by the city, and such account shall be due and payable before the tenth day of the month in which the bill is rendered. The account shall be payable to the city.

(b) Failure to pay any service charge within ten (10) days after due date shall be grounds for terminating service by the city.
(Code 1986, § 18-50; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-51. Special collection services.

The Director may provide for the collection and the removal of garbage and rubbish from any place or premises at times in addition to those when regular collection service is provided or in a manner different from the prescribed method of collection. If the Director establishes such special service, the method of special service and the fee therefor shall be submitted to the Department Head for approval. Any billing resulting therefrom shall be processed by the Director.
(Code 1986, § 18-51; Ord. No. 9654, § 133, 1-6-92; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-52. Recyclables.

(a) Curbside recycle collection shall be collected only at service locations where a City garbage container is serviced, kept, and maintained.

(b) Recyclables will be collected only on scheduled recycle collection service days.

(c) Recyclables placed out for collection must be placed inside City-issued recycle containers secured with a lid.

(d) Only City-issued recycle containers will be serviced on recycle collection routes.

(e) The City will only collect eligible curbside recyclable materials. Recyclable materials shall be collected as described in this section:

1. Eligible curbside recyclable materials include all clean aluminum cans, cardboard, paper products, plastics stamped one (1) through seven (7), tin cans, and food packaging.
2. It is unlawful to place contaminates that are not recyclable in a City recycle container or a privately owned receptacle marked 'Recycle.' Contaminates include but are not limited to: bathroom waste, glass bottles or containers, bulky items, children's toys, construction and demolition debris, household garbage, kitchen waste, liquid, yard trash, or other non-recyclable materials.
3. Residents may be cited or recycling service revoked for storing or disposing of contaminates in a recycling container.

(f) Municipal garbage collection service locations are eligible to receive up to two (2) recycle containers at no cost.

1. No service location may maintain more than two (2) City recycle containers.
2. Property owners must notify the Department of Public Works if a City recycle container is transferred to another property within the City.
3. All City recycle containers are and remain the property of the City of Chattanooga even if a fee has been paid to the City for such containers.

4. Property owners are responsible to replace at their expense any lost, stolen, vandalized, burned, or defaced City recycle containers. This includes any person who subsequently comes into possession of a location or property which had been previously issued a recycle container. City recycle containers damaged in the collection process may be repaired or replaced by the City. The City is not liable for privately owned receptacles damaged during collection.

(Ord. No. 12687, § 5, 2-5-13; Ord. No. 12837, § 2, 7-08-14; Ord. No. 12932, § 1, 4-7-15; Ord. No. 13385, § 1, 10-16-18)

Secs. 18-53—18-65. Reserved.

ARTICLE IV. PRIVATE COLLECTIONS, PERMITS, ETC.

Sec. 18-66. Private collection permit.

(a) *Application*. Any person desiring to secure a permit for the private collection of garbage, rubbish or industrial waste as a private collector shall submit an application therefor to the Director. The application shall contain the following information:

(1) Private collector's name, house address, business address, and telephone numbers. This includes information as to persons doing business under fictitious names, members of partnerships, and offices of corporations or associations.

(2) A list of equipment intended to be used by the private collector within the city, including a full description thereof.

(3) The rates or charges to be imposed for private collection.

(4) The date upon which the applicant desires the permit to be issued.

(5) Proof of vehicular liability insurance issued by a company authorized to do business in the state in the minimum amounts of one hundred thousand ($100,000.00) for death or injury to any one person in one accident, three hundred thousand dollars ($300,000.00) for death or injury to more than one (1) person in any one (1) accident and fifty thousand dollars ($50,000.00) for property damage.

(6) Such other and further information as the Director may require.

(b) *Investigation and issuance*. The Director shall cause such investigation to be made of the facts stated in the application and, if verified, shall without delay issue the private collector's permit upon payment of the requisite fee.

(c) *Effective period, fee*. The private garbage collection permit shall be effective for the fiscal year beginning on July first until the next ensuing thirtieth day of June, on and after which date it shall be null and void. The licensed private collector shall pay an annual fee of two hundred forty dollars ($240.00), which fee shall be prorated if necessary, and paid in advance to the city. The fee for a special permit issued to a private collector whose sole collection is a location owned by the private collector shall be twenty-four dollars ($24.00) per annum, prorated if necessary, and payable annually in advance to the city.

(d) *Conditions of issuing*. The Director may impose conditions upon the issuing of a permit which are reasonably calculated to eliminate excessive noise, scattering of dust and dirt, scattering of materials, and similar nuisances, and to prevent obstruction of public streets and interference with traffic.

(e) *No vested right or property interest acquired; suspension, revocation; notice hearings.*

(1) No vested right or property interest is acquired by the issuance to a private collector of an annual permit or a permit issued to a licensed collector whose sole collection is a location owned by the

private collector. Nor is there any vested right or property interest acquired by the issuance of a location permit to a particular location to be served by a private collector; and the annual permit or location permit may be suspended or revoked when it shall appear:

a. That any of the conditions thereof are being violated;

b. That the permit is being exercised in violation of this chapter or any ordinance or statute;

c. That the permit is being used for a purpose detrimental to public health, morals, peace and order, or is being used for a purpose foreign to that for which the permit was issued;

d. That the annual permit fee has not been paid;

e. That the application contains falsehoods;

f. That the equipment being used by the private collector for collection or the containers used fail to meet the health and safety standards established by the city, state or federal government;

g. That all refuse, garbage and trash shall be deposited in approved landfill sites.

(2) Ten (10) days' written notice of suspension or revocation shall be given by the Director. Within such period of time the collector may ask for a hearing before the Director. If no request for a hearing is made, the suspension for the period listed or the revocation shall be final. Hearings before the Director shall be conducted informally, may be continued, and his decision shall be rendered within five (5) days after the close of such hearing; the decision of the Director in regard to the issuance, suspension or revocation of private garbage collection permits shall be appealable to the city council by filing a written notice of appeal with the city finance officer, and such city council shall set a hearing thereon.

(f) *Payment bond*. The city shall require of each private collector a bond to secure the payment of permit fees, inspection fees and sanitary landfill or dump fees. Such bond shall be in the amount determined by the Director, to be the average amount due from the private collector of such fees for a three (3) month period, and shall be based upon the Director's estimate of such fees from the location permits submitted by the private collector and approved by the Director. The Director is authorized to increase or decrease the bond from time to time in his discretion as the number of location permits increase or decrease by the private collectors.

(Code 1986, § 18-66; Ord. No. 9654, §§ 2, 8, 1-6-92; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 18-67. Rules and regulations for identification of collectors.

The Director may make rules and regulations for the identification of private garbage collectors and their equipment. Every private garbage collector shall keep such records, receipts, invoices, and other pertinent papers in such form as the Director may require, which shall be open to inspection by the city.

(Code 1986, § 18-67; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Personnel rules and regulations, § 2-136 et seq.

Sec. 18-68. Location permits.

(a) *Application*. Any private garbage collector who has secured a permit for the private collection of garbage, rubbish or industrial waste and who desires to secure a permit for the collection from any particular location or premises within the city shall submit an application for such collection to the Director for each location to be so collected. The application shall include the following information:

(1) The private collector's name and permit number.

(2) The address of the location where the materials will be collected and the nature of the activity thereon.

(3) The written approval of the request for a location permit by the operator or owner of the activity on the premises at the location for which collection will be made.

(4) The character and description of the materials to be collected.

(5) The proposed date the private collection is to begin.

(6) The number of collections anticipated per week or month.

(7) Equipment to be used.

(8) Such other further information as the Director may require.

At the time of making application for a private collector's permit, the applicant may apply for location permits and the private collection and location permits may be issued simultaneously.

(b) *Investigation, notice of refusal*. The application shall be forwarded to the Director who shall cause an investigation to be made of the facts stated in the application and shall authorize the issuance of the location permit within ten (10) days of the filing thereof, provided he makes the findings required of this section. Whenever the Director refuses the location permit, he shall immediately notify the applicant in writing of this refusal.

(c) *Renewals*. The location permit shall remain effective without express renewal until such time as the conditions under which the application was approved have changed to such an extent as to render the permit invalid with respect to the requirements of this section and any other applicable section. When such location permits are determined by the Director to be invalid the Director shall immediately notify the applicant in writing.

(Code 1986, § 18-68; Ord. No. 12260, § 1, 6-16-09; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Secs. 18-69—18-85. Reserved.

ARTICLE V. LEAVES, GRASS, RUBBISH, ETC.

Sec. 18-86. Special services, rules and regulations.

(a) *Residential bulky trash.* "Residential bulky trash" shall include household appliances, discarded furniture, or similar bulky materials having a weight greater than fifty (50) pounds and/or a volume greater than thirty (30) gallons. Residents who place such bulky trash at the curb for disposal must notify the City of Chattanooga to arrange for a scheduled pick up. No bulky trash may be lawfully set out for collection more than twenty-four (24) hours before such scheduled pick up subject to the following conditions:

(1) Such refuse shall be placed adjacent to and back of the curb, or adjacent to and back of the drainage ditch or catch basin, alley or street line if there is no curb, without blocking the roadway, any sidewalk, drainage ditch, or catch basin. Items must be placed at least three (3) feet from any other objects and as near as practicable to a public street for ease of collection.

(2) In order to qualify for residential collection, the location must satisfy the definition of "Residential Service" in Section 18-2 and must be occupied at the time of service.

(3) No garbage or yard trash items maybe co-mingled with bulky items scheduled for collection, which shall otherwise be disposed of in the manner provided in this Article.

(4) No liquids, building materials, automotive parts, dirt, rock, brick, block, tires, lumber, glass, or any materials which may be hazardous to collection employees, collection equipment, or the public shall be placed out for collection.

(5) Bulky Trash collections will be limited to twelve (12) at one single property within any consecutive twelve (12) month period. The Director may develop additional conditions to include frequency of pickup to insure no entity or individual abuses the residential bulky trash service.

(b) *Residential yard trash*. "Residential yard trash" shall include brush, bagged leaves, tree trimmings, branches and limbs, grass cuttings and garden trimmings, weeds, and roots from which all dirt has been removed. Residents who place such residential yard trash at the curb for disposal must notify the City of Chattanooga to arrange for a scheduled pick up. No residential yard trash may be lawfully set out for collection more than forty-eight (48) hours before such scheduled pick up. Residential yard trash scheduled for residential collection shall be collected as designated by the Director; subject to the following conditions:

(1) In order to qualify for residential collection, the location must satisfy the definition of "Residential Service" in Section 18-2.

(2) No garbage, refuse, bulky trash or demolition materials may be co-mingled or stacked upon leaves, brush or branches to be collected, which shall otherwise be disposed of in the manner provided in this Article.

(3) All authorized brush, leaves, or branches shall be placed as near as practicable to a public street in front of the residence without blocking the roadway, any sidewalk, drainage ditch, or catch basin in an appropriate authorized placed for ease of collection.

(4) Residential yard trash scheduled for collection must be assembled at only one (1) location adjacent to or on the property in which the residential yard trash originated.

(5) No item of residential yard trash placed for city collection shall be larger than eight (8) feet in length or eighteen (18) inches in diameter. Owners or residents shall at their own expense dispose of brush in excess of these dimensions.

(6) Licensed contractors who shall cut trees larger than eighteen (18) inches in diameter for hire shall remove the resulting debris from the premises and provide for lawful disposal of the debris within twenty-four (24) hours. It shall be unlawful for any such person to place such debris for residential collection.

(7) Yard Trash collections will be limited to twelve (12) at one single property within any consecutive twelve (12) month period. The Director may develop additional conditions to include frequency of pickup to insure no entity or individual abuses the residential yard trash service as well.

(c) *Building materials*. "Building materials" such as scrap lumber, plaster, roofing, concrete, brickbats, and sanding dust resulting from construction, repair, remodeling or demolition of any building or appurtenances or private property will not be removed by the department of public works and the owner must cause such materials and waste to be privately removed; further, trees, brush and other debris cleared as a result of or during construction work on property within the city shall be removed by the contractor and/or owner; the department of public works will not remove such materials and debris.

(d) *Industrial and hazardous waste*. "Industrial and hazardous waste" shall be disposed of by the industry, manufacturer or processing plant generating such waste under such methods and conditions as shall be approved by the Director. Such industries may apply for a special permit as a private collector or may dispose of industrial waste by other private collectors. Garbage and rubbish not consisting of industrial waste and hazardous refuse may be collected by the city and charges made therefor; provided,

however, that, if the person in disposing of his industrial and hazardous waste also desires to dispose of his garbage and rubbish generated on his premises, the city shall allow him to do so as a private collector for his own premises or through other private collectors if he desires.

(e) *Pathogenic and radioactive waste*. All pathogenic and radioactive waste shall be disposed of by the institution generating such waste under such conditions as shall be approved by the Director. If the Director approves the treatment of such waste so that it may be disposed of by collection by the city, or if the institution is eligible due to classification by volume, then such waste may be disposed of by the institution as a private collector or through other private collectors. Garbage and rubbish not consisting of pathogenic and radioactive waste may be collected by the city and charges made therefor; provided, however, that, if the person disposing of this pathogenic or radioactive waste also desires to dispose of his garbage and rubbish generated on the premises, the city shall allow him to do so by granting a special permit to the institution, if so classified by volume, for itself as a private collector or through use of another private collector. All pathogenic waste from medical clinics, clinics, blood banks and medical laboratories, shall be separate from normal waste, placed in durable disposable bags that can be tied and sealed when full. The bags shall be stored in metal containers with tight fitting lids while in the process of being filled. Containers shall be kept in places restricted from access by the public. Needles shall be separated from disposable syringes by breaking them off at the hub immediately after use. Fluids may be flushed down the toilet. These materials shall only be placed at the collection point on the day that they are to be collected. Storage, collection and disposal of pathogenic waste shall be in accordance with all applicable health regulations.

(f) It shall be unlawful for any person to place or to maintain any waste described in this section on any portion of the right-of-way of any street or highway in any manner not in conformity with this section.

(g) Any person who shall place or maintain any waste described in this section in any manner not in conformity with the conditions stated herein shall be deemed to have created a nuisance. Upon notification that a nuisance exists, the Department of Public Works shall take such action as reasonably necessary to abate the nuisance at the expense of any person who is responsible therefore. Such costs of abatement shall include but will not be limited to the costs of inspection, employee work time, equipment use and such other expenses as may be reasonably incurred. Such costs of abatement will be subject to collection as provided for in Section 18-169.

(h) Any person who shall violate the provisions of this Article may be cited to City Court and subject to the maximum fines and civil penalties authorized by law. Each day of violation shall constitute a separate offense.

(Code 1986, § 18-86; Ord. No. 9224, § 1, 8-22-89; Ord. No. 11195, § 2, 10-23-01; Ord. No. 12260, §§ 1, 7, 6-16-09; Ord. No. 12492, 3-22-11; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-87. Exceptions.

Nothing in articles I through VII of this chapter shall prevent:

(1) Any refuse producer from collecting, removing, and disposing of his own refuse, provided he does so in such a manner as not to create a nuisance and provided further he is in full compliance with articles I through VII of this chapter.

(2) Persons from engaging in collecting and purchasing for resale paper, cardboard, rags, glass, and scrap metals, for reclamation purposes.

(Code 1986, § 18-87; Ord. No. 13385, § 1, 10-16-18)

Secs. 18-88—18-100. Reserved.

ARTICLE VI. SANITARY LANDFILLS

Sec. 18-101. Disposal sites; rules and regulations; fees.

It shall be unlawful for any person to dispose of refuse at any place other than a refuse disposal site designated by the Director. Refuse disposal sites shall be available for use subject to reasonable rules and regulations and disposal fees recommended by the Director and approved by the mayor, and all billing shall be processed in accordance with section 18-50.
(Code 1986, § 18-101; Ord. No. 9654, § 133, 1-6-92; Ord. No. 12260, § 1, 6-16-09; Ord. No. 12727, § 1, 6-4-13; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-102. Ownership, etc., of sanitary landfills.

(a) The city shall own, operate, and maintain sanitary landfills in such a manner as to satisfy all local, state, and federal requirements.

(b) It shall be unlawful for any person to work in, assort or disturb in any manner, or to carry away any article or substance of any kind deposited in the City's sanitary landfill.
(Code 1986, § 18-102; Ord. No. 12727, § 1, 6-4-13; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-103. Control of access.

Access to the Landfill will be denied by locking the entrance gate. The hours of operation will be determined by the Director. The Landfill will be closed on holidays as specified by the Director. The public shall use the stations provided at the landfill entrances.
(Code 1986, § 18-103; Ord. No. 12260, § 1, 6-16-09; Ord. No. 12727, § 1, 6-4-13; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-104. Handling of special waste.

Dead animals, sewage solids or liquids, or other materials which are either hazardous or difficult to manage shall be disposed of in the landfills only when special provisions are made for such disposal and are approved by the State. Hazardous materials include, but are not limited to, materials such as sewage solids, radioactive waste, pathogenic waste, explosive materials, and toxic chemicals.
(Code 1986, § 18-104; Ord. No. 12727, § 1, 6-4-13; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-105. Fees.

(a) Residents of the City delivering eligible municipal solid waste, excluding construction and demolition waste, and bulky waste, originating from their primary residence in passenger automobiles, standard size pick-up trucks, and single-axle trailers shall be charged no fee for dumping at the sanitary landfill.

(b) All non-residents, private collectors, municipalities, government agencies, contractors or others depositing waste shall be charged a market rate per ton as determined by the Director based on the customers estimated volume and composition of waste.

(c) In addition to any and all other landfill fees provided herein regardless of waived tipping fees, there shall be imposed a surcharge of one dollar and fifty cents ($1.50) per ton for each ton of municipal solid waste received at the Landfill.

(d) Private non-profit corporations that are generating municipal solid waste through their thrift store operations may be allowed to dispose of thusly generated waste free of charge; provided the waste desired to be disposed of is delivered in a vehicle owned by the non-profit and not through a waste disposal service

provider and provided that each entity has been individually approved by action of the City Council. Any waste generated through normal business operations of a non-profit outside the thrift store operations shall be subject to the tipping fees in effect at the time of disposal.

(e) Non-residents delivering bagged refuse shall be charged at the rate of two dollars ($2.00) per bag of waste. Bagged construction or demolition or bulky waste shall not be accepted under this provision and must be disposed of in a properly approved construction and/or demolition landfill.
(Code 1986, § 18-105; Ord. No. 9446, § 1, 9-18-90; Ord. No. 9569, § 1, 7-2-91; Ord. No. 12727, § 1, 6-4-13; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-106. Wood recycling and compost facility.

(a) Wood products and leaves may be disposed of at no charge to City residents if the debris was generated from residential property owned or leased by the City resident.

(b) Non-city residents, contractors, persons-for-hire, or others with debris generated from a non-residential property may dispose of brush and leaves at a rate of twenty dollars ($20.00) per ton. The minimum charge for disposal of brush and leaves shall be twenty dollars ($20.00).

(c) Wood chips and leaf compost will be available during regular operating hours and subject to availability and reasonable operating restrictions that may be established by the Director.

(d) City residents shall be entitled to wood chips at no charge so long as the wood chips are utilized at a property owned or leased by the resident.

(e) A valid state identification indicating residency in the City of Chattanooga is required to receive eligible services or materials at no charge pursuant to this section.

(f) The Director may authorize the sale of wood chips or leaves in bulk quantities of more than five (5) tons at market rates if available.

(g) So long as there is a surplus of composting leaves and wood products, the Director may make them available to the public for pick up at no charge.

(h) The Director is authorized to enter into written agreements with local governmental entities to allow those governmental entities to dispose of residential yard trash for a fee payable to the City. During the effective period of said agreements, the Director will make available to the residents of a local governmental entity with a written agreement with the City compositing leaves and wood products for use on their private residential properties at no cost. Any resident of these governmental entities desiring such material(s) must present a Tennessee driver's license with an address within the corporate limits or county of a local governmental entity. Mulch provided pursuant to this section shall not be used for a commercial purpose.
(Ord. No. 12862, § 1, 10-07-14; Ord. No. 13385, § 1, 10-16-18)

Secs. 18-107—18-120. Reserved.

ARTICLE VII. REFUSE TRANSFER STATION

Secs. 18-121—18-140. Repealed.
(Ord. No. 12727, § 2, 6-4-13)

ARTICLE VIII. ANTI-LITTER CODE*

Sec. 18-141. Short title.

This article may be known and may be cited as "The Anti-Litter Code" of the city.
(Code 1986, § 18-141; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-142. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Aircraft. Any contrivance now known or hereafter invented, used or designated for navigation or for flight in the air. The word "aircraft" shall include helicopters and lighter-than-air dirigibles and balloons.

Authorized private receptacle. A litter storage and collection receptacle as required and authorized in the city.

Commercial handbill. Any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet or any other printed or otherwise reproduced original or copies of any matter of literature:

(1) Which advertises for sale any merchandise, product, commodity or thing; or

(2) Which directs attention to any business or mercantile or commercial establishment or other activity, for the purpose of either directly or indirectly promoting the interest thereof by sales; or

(3) Which directs attention to or advertises any meeting, theatrical performance, exhibition or event of any kind, for which an admission fee is charged for the purpose of private gain or profit; but the terms of this clause shall not apply where an admission fee is charged or a collection is taken up for the purpose of defraying the expenses incidental to such meeting, theatrical performance, exhibition or event of any kind, when either of the same is held, given or takes place in connection with the dissemination of information which is not restricted under the ordinary rules of decency, good morals, public peace, safety and good order; provided, that nothing contained in this clause shall be deemed to authorize the holding, giving or taking place of any meeting, theatrical performance, exhibition or event of any kind without a license where such license is or may be required by any law of this state or under this Code or any other ordinance of this city; or

(4) Which, while containing reading matter other than advertising matter, is predominantly and essentially an advertisement and is distributed or circulated for advertising purposes or for the private benefit and gain of any person so engaged as advertiser or distributor.

Litter. "Garbage," "refuse" and "rubbish," as defined in this section, and all other waste material which, if thrown or deposited as herein prohibited, tends to create a danger to public health, safety and welfare.

Newspaper. Any newspaper of general circulation, as defined by general law, any newspaper duly entered with the post-office department of the United States, in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer, as provided by general law; and, in addition thereto, such term shall mean and include any periodical or current magazine regularly published with not less than four (4) issues each year and sold to the public.

***Cross references—**Motor vehicles and traffic, Ch. 24; parks and playgrounds, Ch. 26; streets and sidewalks, Ch. 32.

Noncommercial handbill. Any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper booklet or any other printed or otherwise reproduced original or copies of any matter of literature not included in the definitions of a commercial handbill or newspaper as set out in this section.

Park. A park, reservation, playground, beach, recreation center or any other public area in the city, owned or used by the city and devoted to active or passive recreation.

Private premises. Any dwelling, house, building or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building or other structure.

Public place. Any and all streets, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, spaces, grounds and buildings.

Refuse. All putrescible and non-putrescible solid wastes (except body wastes), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles and solid market and industrial wastes.

Vehicle. Every device in, upon or by which any person or property is or may be transported or drawn upon a highway, including devices used exclusively upon stationary rails or tracks.
(Code 1986, § 18-142; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 18-143. Depositing litter in public places.

No person shall throw or deposit litter in or upon any street, sidewalk or other public place within the city, except in public receptacles, in authorized private receptacles for collection or in official city dumps.
(Code 1986, § 18-143; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-144. Placement of litter in receptacles to be so as to prevent scattering.

Persons placing litter in public receptacles or in authorized private receptacles shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.
(Code 1986, § 18-144; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-145. Sweeping into gutters prohibited; duty to clean sidewalk.

No person shall sweep into or deposit in any gutter, street or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying property shall keep the sidewalk in front of their premises free of litter.
(Code 1986, § 18-145; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-146. Merchants to keep sidewalk free of litter.

No person owning or occupying a place of business shall sweep into or deposit in any gutter, street or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk or driveway. Persons owning or occupying places of business within the city shall keep the sidewalk in front of their business premises free of litter.
(Code 1986, § 18-146; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-147. Throwing litter from vehicles.

No person, while a driver or passenger in a vehicle, shall throw or deposit litter upon any street or other public place within the city or upon private property.
(Code 1986, § 18-147; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-148. Vehicles, loads causing litter.

No person shall drive or move any truck or other vehicle within the city unless such vehicle is so constructed or loaded as to prevent any load, contents or litter from being blown or deposited upon any street, alley or other public place. Nor shall any person drive or move any vehicle or truck within the city, the wheels or tires of which carry onto or deposit in any street, alley or other public place mud, dirt, sticky substances, litter or foreign matter of any kind.
(Code 1986, § 18-148; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-149. Litter in parks.

No person shall throw or deposit litter in any park within the city except in public receptacles and in such a manner that the litter will be prevented from being carried or deposited by the elements upon any part of the park or upon any street or other public place. Where public receptacles are not provided, all such litter shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere as provided herein.
(Code 1986, § 18-149; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Parks and playgrounds, Ch. 26.

Sec. 18-150. Litter in watercourses, lakes, fountains.

No person shall throw or deposit litter in any fountain, pond, lake, stream, bay or any other body of water in a park or elsewhere within the city.
(Code 1986, § 18-150; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-151. Throwing, distributing handbills in public places.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any sidewalk, street or other public place within the city. Nor shall any person hand out or distribute or sell any commercial handbill in any public place; provided, however, that it shall not be unlawful on any sidewalk, street or other public place within the city for any person to hand out or distribute, without charge to the receiver thereof, any noncommercial handbill to any person willing to accept it.
(Code 1986, § 18-151; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-152. Placing handbills on vehicles.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any vehicle; provided, however, that it shall not be unlawful in any public place for a person to hand out or distribute, without charge to the receiver thereof, a noncommercial handbill to any occupant of a vehicle who is willing to accept it.
(Code 1986, § 18-152; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-153. Depositing handbills on uninhabited or vacant premises.

No person shall throw or deposit any commercial or noncommercial handbill in or upon any private premises which are temporarily or continuously uninhabited or vacant.
(Code 1986, § 18-153; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-154. Distribution of handbills prohibited where property posted.

No person shall throw, deposit or distribute any commercial or noncommercial handbill upon any private premises, if requested by anyone thereon not to do so, or if there is placed on such premises in a conspicuous position near the entrance thereof a sign bearing the words: "NO TRESPASSING", "NO PEDDLERS OR AGENTS", "NO ADVERTISEMENT" or any similar notice, indicating in any manner that the occupants of such premises do not desire to be molested or have their right of privacy disturbed or to have any such handbills left upon such premises.
(Code 1986, § 18-154; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-155. Distribution of handbills at inhabited private premises.

(a) No person shall throw, deposit or distribute any commercial or noncommercial handbill in or upon private premises which are inhabited, except by handling or transmitting any such handbill directly to the owner, occupant, or other person in or upon such private premises; provided, however, that in case of inhabited private premises which are not posted, as provided in this article, such person, unless requested by anyone upon such premises not to do so, may place or deposit any such handbill in or upon such inhabited private premises, if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such premises or sidewalks, streets or other public places and except that mailboxes may not be so used when so prohibited by federal postal law or regulations.

(b) The provisions of this section shall not apply to the distribution of mail by the United States, nor to newspapers (as defined in this article) except that newspapers shall be placed on private property in such a manner as to prevent their being carried or deposited by the elements upon any street, sidewalk or other public place or upon private property.
(Code 1986, § 18-155; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-156. Dropping litter from aircraft.

No person in an aircraft shall throw out, drop or deposit within the city any litter, handbill or any other object.
(Code 1986, § 18-156; Ord. No. 13385, § 1, 10-16-18)

Cross reference—Aviation generally, Ch. 8.

Sec. 18-157. Posting notices prohibited.

No person shall post or affix any notice, poster or other paper or device, calculated to attract the attention of the public, to any lamppost, public utility pole or shade tree or upon any public structure or building, except as may be authorized or required by law.
(Code 1986, § 18-157; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-158. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-158, which pertained to litter on occupied private property and derived from Code 1986, § 18-158; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-159. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-159, which pertained to owner to maintain premises free of litter and derived from Code 1986, § 18-159; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-160. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-160, which pertained to litter on vacant lots and derived from Code 1986, § 18-160; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-161. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-161, which pertained to littered and/or overgrown property declared nuisances and derived from Code 1986, § 18-161; Ord. No. 9369, § 1, 5-15-90; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-162. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-162, which pertained to litter and overgrown conditions defined and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-163. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-163, which pertained to penalties for littered and/or overgrown lots and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-164. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-164, which pertained to posting of notice declaring nuisance and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 10975, § 1, 2-29-00; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-165. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-165, which pertained to notice to abate required; posting and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 12289, § 1, 9-29-09; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-166. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-166, which pertained to service of notice on owner or occupant and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-167. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-167, which pertained to hearing on notice and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-168. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-168, which pertained to abatement by City and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-169. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-169, which pertained to collection of expense of abatement; lien and derived from Ord. No. 9369, § 2, 5-15-90; Ord. No. 13385, § 1, 10-16-18.

Sec. 18-170. Reserved.

Editor's note—Ord. No. 13442, § 2, adopted March 12, 2019, repealed § 18-170, which pertained to penalty for violation and derived from Ord. No. 9706, § 1, 4-28-92; Ord. No. 13385, § 1, 10-16-18.

Secs. 18-171—18-180. Reserved.

ARTICLE IX. RESERVED*

Secs. 18-181—18-190. Repealed.

ARTICLE X. PUBLIC DUMPSTER SERVICE

Secs. 18-191—18-196. Repealed.
(Ord. No. 11434, § 20, 7-15-03)

Editor's note—The repealed section dealt with public dumpster service.
(Ord. No. 9319, § 1, 2-20-90)

Secs. 18-197—18-210. Repealed.

ARTICLE XI. DONATION BINS

Sec. 18-211. Definitions.

Donation bin or *box* means an unattended container or receptacle held out to the public as a place for people to donate household materials, clothes, shoes, books, and other similar property and to store them until taken away for donation or resale by the entity that owns, operates, or maintains the bin. Donation bins are also known as donation collection bins/boxes, charity bins/boxes, clothing bins/boxes, clothing donation containers, drop off donation center or any combination thereof.

Premises means a lot, plot or parcel of land including structures on the property.

Property owner means a person, association, corporation, partnership or other legal entity having a legal or equitable title or ownership interest in real property.
(Ord. No. 12899, § 1, 1-27-15; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-212. Donation bins; permit required.

It is unlawful for any person to locate a donation bin on the exterior of property areas of any public or private property premises without the property owners' written consent and a donation bin permit issued pursuant to this Article.
(Ord. No. 12899, § 1, 1-27-15; Ord. No. 13385, § 1, 10-16-18)

***Editor's note—**Ord. No. 13386, § 7, adopted Oct. 23, 2018, repealed Art. IX, §§ 18-181—18-183, which pertained to litter patroller and derived from Code 1986, §§ 18-181—18-183; Ord. No. 13385, § 1, 10-16-18).

Sec. 18-213. Application for donation bin permit.

Any person requesting a donation bin permit shall submit an application to the City Treasurer's Office setting forth the following information:

(1) Name, addresses including email if applicable, telephone and fax numbers, contact person, of the organization who owns and services the donation bin;

(2) The name of the owner of the real property where the donation bin will be located including the address on file for the property owner as submitted to the Hamilton County Tax Assessor's Office;

(3) A statement that the donation bin permit holder consents to removal of the donation bin if it is determined by Code enforcement officials to be out of compliance with this Article;

(4) A statement that the donation bin permit holder consents to removal of the donation bin by the property owner;

(5) A site plan showing where the donation bin will be placed on the premises;

(6) A statement or declaration of whether the donation bin is "for profit" or "not for profit";

(7) If "for profit," must include proof of a Business License for the City of Chattanooga;

(8) If "not for profit," must include proof of the organization's 50l(c)(3) designation;

(9) A donation bin permit shall be renewed annually;

(10) The registration fee for a donation bin permit shall be two hundred fifty dollars ($250.00).

(11) Donation bins shall be labeled on the exterior to provide notice to citizens of the following:

  (a) The name of the organization that owns, operates, and collects the donations in bold letters on face and sides of the donation bin;

  (b) The names of recipients of any donations or funds raised from the sale of the donations;

  (c) If For-Profit, the donation bin shall be labeled "For Profit" and "Not Tax Deductible";

  (d) Lettering shall not be smaller than three (3) inches tall and must be in contrasting color with the background;

(12) Donation bins must be placed on the premises in accordance with all other applicable codes (i.e. not interfere with line of sight or sight triangle, on site circulation, required setbacks, landscaping, parking, etc). Donations shall not be placed on the premises in a manner that prevents off-street parking, circulation or unloading/loading areas or required yard or landscaping areas;

(13) Donation bins must be kept maintained and kept in good repair. The donation bin area shall be maintained in a safe, orderly condition. Donation bins shall have no rust, peeling paint or graffiti. The areas around a donation bin must be kept clean and free of garbage and debris on the premises where the donation bin is located on the premises. Property donated through a donation bin shall be placed in the donation bin. Goods or property shall be regularly removed to avoid overflow outside of a donation bin. All debris on the exterior of a donation bin shall be removed;

(14) Donation bins must be secured to prevent removal of donated property. Donation bins shall have a locked door for accessibility and servicing. Donation bins shall be designed in such a way as to prevent child or adult access into the bin and to {when it is locked} avoid an attractive nuisance;

(15) In the event a holder of donation bin permit fails to comply with a notice of violation or order of a Code Official and fails to timely appeal the notice of violation or order, the Code Official is authorized to impound and remove the donation bin that is subject to a notice of violation or order.

Any appeal filed under this Article shall be heard by the Public Officer. Any final order by a Code Official or Public Officer may be appealed to a court of competent jurisdiction as allowed by law.

(Ord. No. 12899, § 1, 1-27-15; Ord. No. 13385, § 1, 10-16-18)

Sec. 18-214. Donation bins compliance procedures; duties of housing code officials.

General. The Code Official shall enforce the provisions of this Article.

(1) Rule-making authority. The Code Official shall have authority as necessary in the interest of public health, safety and general welfare, to adopt and promulgate rules and procedures; to interpret and implement the provisions of this Article; to secure the intent thereof; and to designate requirements applicable because of local climate or other conditions. Such rules shall not have the effect of waiving structural or fire performance requirements specifically provided for in this Code, or of violating engineering methods involving public safety.

(2) Right of entry. The code official is authorized to enter property to inspect a donation bin that has been issued a donation bin permit pursuant to this Article at reasonable times to inspect subject to constitutional restrictions on unreasonable searches and seizures. If entry is refused or not obtained, the code official is authorized to pursue recourse as provided by law.

(3) It shall be a violation of this ordinance if any owner, occupant or other person in charge of a donation bin subject to the provisions of this Code refuses, impedes, inhibits, interferes with, restricts, or obstructs entry and free access to any part of the donation bin where inspection authorized by this Code is sought, the administrative authority may seek, in a court of competent jurisdiction, an order that such owner, occupant or other person in charge cease and desist with such interference.

(4) Code officials shall inspect any donation bin about which complaints are filed by any person to the effect that a donation bin is, or may be, existing in violation of this article.

(5) Code officials shall inspect any donation bin reported by the fire or police department, department of health or municipal judge as probably existing in violation of the provisions of this article.

(6) The Code Official shall notify, in writing the holder of a donation bin permit and the property owner identified in the application for a donation bin.

(7) The owner of the donation bin shall repair or remove a donation bin such in accordance with the terms of the notice of this article.

(8) Failure to remove or repair a donation bin as required by this Article shall result in the removal of the donation bin.

(9) The Code Official shall appear at hearings or in any court of competent jurisdiction to testify as to the condition of any donation bin.

(10) The powers and duties conferred upon the Code Official by this article shall be in addition and supplemental to the powers conferred upon the Code Official or inspectors by any other ordinance or code provision of the City.

(Ord. No. 12899, § 1, 1-27-15; Ord. No. 13385, § 1, 10-16-18)

Chapter 19

GAS*

Article I. In General

Sec. 19-1. Gas Code adopted.
Sec. 19-2. Appendices to the Code adopted.
Sec. 19-3. Amendments to Code adopted.
Sec. 19-4. Violations of code a misdemeanor; penalty.
Sec. 19-5. Liabilities not affected.
Sec. 19-6. Purpose, scope; compliance with code.
Secs. 19-7—19-10. Reserved.
Sec. 19-11. Unlawfully turning gas on or reconnecting.
Sec. 19-12. Responsibility for violations due to changed conditions.
Secs. 19-13—19-25. Reserved.

Article II. Permits and Inspections

Sec. 19-26—19-32. Reserved.
Sec. 19-33. Reinspecting existing piping and equipment.
Sec. 19-34. Condemnation of defective piping and equipment.
Sec. 19-35. Certificates of approval.
Sec. 19-36. Fees.
Secs. 19-37—19-50. Reserved.

Article III. Gas Fitters and Installers

Division 1. Generally

Sec. 19-51. Purpose of regulations.
Sec. 19-52. Liabilities not affected.
Sec. 19-53. Violations, penalty.
Secs. 19-54—19-65. Reserved.

Division 2. Board of Examiners

Sec. 19-66. Established.
Sec. 19-67. Composition; appointment; oath.
Sec. 19-68. Terms of members.
Sec. 19-69. Qualifications of members.
Sec. 19-70. Officers.
Sec. 19-71. Removal of members; compensation; quorum.
Sec. 19-72. Regular meetings.
Sec. 19-73. Appeals from.
Sec. 19-74. Special meetings.

***Charter reference—**General authority to provide for health and the abatement of nuisances, § 2.1(4).

Cross references—Building regulations, Ch. 10; civil defense, Ch. 13; electricity, Ch. 14; energy, Ch. 15; fire and police departments, Ch. 16; fire prevention, Ch. 17; plumbing, Ch. 27; water and gas mains, § 31-266 et seq.

Sec. 19-75. Records to be open to inspection.
Sec. 19-76. Regulations authorized; printing.
Secs. 19-77—19-85. Reserved.

Division 3. Examinations and Certificates of Competency

Sec. 19-86. Application, examination required; nature of application.
Sec. 19-87. Holding of examinations.
Sec. 19-88. Examination to be written, records required.
Sec. 19-89. Passing examination; issuance of certificate.
Sec. 19-90. Examination fees established.
Sec. 19-91. Certification fees established.
Sec. 19-92. Disposition of fees.
Sec. 19-93. Expiration of certificates; renewal authorized.
Sec. 19-94. Review of renewal applications; statement required.
Sec. 19-95. Disapproval of renewal.
Sec. 19-96. Misuse of certificate.
Sec. 19-97. Holder of certificate to supervise work under certificate; duties specified.
Sec. 19-98. Certificate to be displayed; marking of vehicles.
Sec. 19-99. Certificates not transferable.
Sec. 19-100. Suspension, revocation of certificate.
Sec. 19-101. Worker's compensation insurance required.
Sec. 19-102. Unlawful to do work without certificate.
Sec. 19-103. Application, examination required; exceptions.
Sec. 19-104. Temporary certificates.
Sec. 19-105. Apprentice, registration.
Secs. 19-106—19-120. Reserved.

Division 4. Licenses

Sec. 19-121. License required.
Sec. 19-122. Revocation of license for violation.

ARTICLE I. IN GENERAL

Sec. 19-1. Gas Code adopted.

The International Fuel Gas Code, 2018 edition, one (1) copy of which is, and has been on file in the Office of the City Council Clerk for more than fifteen (15) days, is hereby adopted as the official Gas Code of the City.
(Code 1986, § 19-1; Ord. No. 9362, § 1, 5-8-90; Ord. No. 9654, § 105, 1-6-92; Ord. No. 10173, § 1, 3-7-95; Ord. No. 10675, § 1, 3-10-98; Ord. No. 11722, § 1, 7-26-05; Ord. No. 12274, § 1, 8-4-09; Ord. No. 12603, § 1, 5-29-12; Ord. No. 13922, § 1, 12-6-22)

Sec. 19-2. Appendices to the Code adopted.

The following appendices to the International Fuel Gas Code, 2018 edition, and as further amended in this chapter, are hereby adopted as part of the official Gas Code of the City.

Appendix A — Sizing and capacities of gas piping.

Appendix B — Sizing of venting systems.

Appendix C — Exit Terminals, et al.
(Ord. No. 9362, § 2, 5-8-90; Ord. No. 10173, § 2, 3-7-95; Ord. No. 10675, § 2, 3-10-98; Ord. No. 11722, § 7-26-05; Ord. No. 12274, § 1, 8-4-09; Ord. No. 12603, § 2, 5-29-12; Ord. No. 13922, § 2, 12-6-22)

Sec. 19-3. Amendments to Code adopted.

The following sections and appendices of the International Fuel Gas Code, 2018 edition, are hereby amended, as hereinafter provided:

1) Section 101.1 and 101.2 are deleted in their entirety and the following language is substituted in lieu thereof:

   Section 101.1 Title. These regulations shall be known as the International Fuel Gas Code hereinafter referred to as "this code."

   Section 101.2 Scope. This code shall apply to the installation of fuel-gas piping systems, fuel-gas utilization equipment and related accessories in accordance with Sections 101.2.1 through 101.2.5.

   Exceptions: Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three stories high with separate means of egress and their accessory structures shall comply with the International Residential Code.

2) Section 106.3 is deleted in its entirety and the following language is substituted in lieu thereof:

   Section 106.3 Application for permit. Each application for a permit, with the required fee, shall be filed with the code official on a form furnished for that purpose and shall contain a general description of the proposed work and its location. The application shall be signed by the properly licensed contractor. The application shall indicate the proposed occupancy of all parts of the building and of that portion of the site or lot, if any, not covered by the building or structure and shall contain such other information required by the code official.

3) Sections 106.5.3 and 106.5.4 are deleted in their entirety and the following is substituted in lieu thereof:

   Section 106.5.3 Expiration. Every permit issued by the code official under the provisions of this code shall expire by limitation and become null and void if the work authorized by such permit is

not commenced within 180 days from the date of such permit, or if the work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 days. Before such work can be recommenced, a new permit shall be first obtained.

Section 106.5.4 Extensions. Any permittee holding an unexpired permit shall have the right to apply for an extension of the time within which the permittee will commence work under that permit when work is unable to commenced within the time required by this section for good and satisfactory reasons. The code official shall extend the time for action by the permittee for a period not exceeding 180 days if there is reasonable cause. No permit shall be extended more than once.

4) Section 106.6.2 is deleted in its entirety and the following language is substituted in lieu thereof:

Section 106.6.2 Fees. All fees are set forth in § 19-36 of the Chattanooga City Code and shall be non-refundable.

5) Section 106.6.3 is deleted in its entirety.

6) Sections 108.4 and 108.5 are amended by deleted said sections in their entirety and substituting in lieu thereof the following:

108.4 Violation penalties. Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair plumbing work in violation of the approved construction documents or directive of the code official, or of a permit or certificate issued under the provisions of this code, shall be guilty of a municipal offense subject to a fine assessed as a general penalty under Chattanooga City Code § 1-8. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

108.5 Stop work orders. Upon notice from the code official, work on any plumbing system that is being done contrary to the provisions of this code or in a dangerous or unsafe manner shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property, or to the owner's agent, or to the person doing the work. The notice shall state the conditions under which work is authorized to resume. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work. Any person who shall continue any work in or about the structure after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to a find assessed as a general penalty under Chattanooga City Code § 1-8.

7) Section 109. Means of Appeal, is amended by deleting said Section in its entirety, and substituting in lieu thereof the following:

Section 109. Board of Adjustments & Appeals.

The Construction Board of Appeals for the Building, Electrical, Fire, Fuel Gas, Life Safety, Mechanical and Plumbing Codes of the City of Chattanooga as established by Section 2-625, Part II, Chattanooga City Code, shall act as the Board of Adjustments and Appeals for appeals from any decision of the Building Official or his designee and consider variances of the technical codes as provided in this Code.

8) Section 310. Electrical Bonding 1B amended by deleting said section in its entirety and substituting in lieu thereof the following:

Section 310.1.1 CSST. Corrugated stainless steel tubing (CSST) gas piping systems shall be bonded to the electrical service grounding electrode system. The bonding jumper shall connect to a metallic pipe or fitting between the point of delivery and the first downstream CSST fitting. The bonding jumper shall not be smaller than 4 AWG cooper wire or equivalent. Gas piping systems that contain one or more segments of CSST shall be bonded in accordance with this section.

(Code 1986, § 19-2; Ord. No. 9362, § 3, 5-8-90; Ord. No. 10173, § 3, 3-7-95; Ord. No. 10675, § 3, 3-10-98; Ord. No. 11722, § 3, § 7, 7-26-05; Ord. No. 12603, § 3, 5-29-12; Ord. No. 13922, § 3, 12-6-22)

Sec. 19-4. Violations of code a misdemeanor; penalty.

Any person violating the provisions of the code adopted by this chapter, or any revisions thereof or any amendments thereto, or failing to comply with its provisions or doing anything prohibited by its provisions shall be guilty of a misdemeanor, punishable as provided in section 1-8 of this Code for each offense. Each violation shall constitute a separate offense.
(Code 1986, § 19-3)

Sec. 19-5. Liabilities not affected.

This chapter shall not be construed as imposing upon the city any liability or responsibility for damages to any person injured by any defect in any gas piping or appliance mentioned herein, or by installation thereof, nor shall the inspector, the department of public works, or any official, employee or authorized assistants thereof, be held as assuming any such liability or responsibility by reason of the inspection authorized hereunder, or the certificate of an approval issued by the inspector.
(Code 1986, § 19-4)

Sec. 19-6. Purpose, scope; compliance with code.

The purpose of this chapter is to provide minimum standard provisions and requirements for safe installation of consumers' gas piping and gas appliances. All such gas piping and gas appliances installed, replaced, maintained, or repaired within the corporate limits of the city shall conform to the requirements of this chapter and to the specifications, rules and regulations of the gas code adopted by section 19-1 of this chapter, exclusive of the jurisdiction of the fire prevention bureau.
(Code 1986, § 19-5; Ord. No. 10675, § 4, 3-10-98)

Secs. 19-7—19-10. Reserved.
(Code 1986, §§ 19-6—19-9; Ord. No. 10675, § 4, 3-10-98)

Sec. 19-11. Unlawfully turning gas on or reconnecting.

It shall be unlawful for any person except an authorized agent or employee or a person engaged in the business of furnishing or supplying gas, and whose pipes supply or connect with the particular premises, to turn on or reconnect gas service in or on any premises when and where gas service is not at the time being rendered. It shall be also unlawful to turn on or connect gas on or in any premises unless the proper inspection has been made as provided for in this chapter.
(Code 1986, § 19-10)

Sec. 19-12. Responsibility for violations due to changed conditions.

Should any change in operating conditions be made following the installation, the owner shall be responsible for any violations of this chapter or other ordinances that may result therefrom.
(Code 1986, § 19-11)

Secs. 19-13—19-25. Reserved.

ARTICLE II. PERMITS AND INSPECTIONS*

Sec. 19-26—19-32. Reserved.
(Code 1986, §§ 19-26—19-32; Ord. No. 10675, § 5, 3-10-98)

***Cross reference—**Businesses, trades and occupations, Ch. 11.

Sec. 19-33. Reinspecting existing piping and equipment.

The gas inspector shall make or cause to be made a reinspection of an existing gas piping installation and equipment whenever he deems it necessary in the interest of the public safety.
(Code 1986, § 19-33)

Sec. 19-34. Condemnation of defective piping and equipment.

If a gas piping system or any equipment or appliance upon reinspection is found to be defective and/or unsafe, the gas inspector shall revoke all permits or certificates of approval in effect at the time relating to such system, and the use of the system or the particular equipment shall be discontinued until the defect or defects therein have been corrected and made to conform to this article.
(Code 1986, § 19-34)

Sec. 19-35. Certificates of approval.

The gas inspector shall attach to the system a certificate of approval at the completion of the work for which a permit under this article has been issued, if after inspection it is found that such work complies with the provisions of this Code.
(Code 1986, § 19-35)

Sec. 19-36. Fees.

(a) For the examination of an application for a permit for any construction, reconstruction, installation, reinstallation or alteration or repair covered by this chapter, the inspection division shall collect, at the time of issuing such permit, for the use of the city, fees as follows, based on B.T.U. input:

For Issuing Permit	$40.00
Less than 125,000 B.T.U. per hour, each object	$10.00
125,000-less than 250,000 B.T.U. per hour each object	$10.00
250,000-less than 400,000 B.T.U. per hour each object	$20.00
400,000-less than 1,000,000 B.T.U. per hour each object	$25.00
1,000,000-less than 5,000,000 B.T.U. per hour each object	$30.00
Over 5,000,000 B.T.U. per hour each object	$35.00

In cases where more than five (5) objects in any category above are to be installed on one (1) installation, the first five (5) objects will be at the maximum base cost for each. Additional objects will be at the rate of five dollars ($5.00) each.

(b) Reference to more than one (1) object covers the installation of furnaces or boilers and gas burners together or more than one (1) unit or combination in a given overall installation.

(c) These fees apply to all installation of circulators, boilers, gas burners, conversion gas burners, furnaces, combination of boilers and gas burners and stacks, or any other gas burning equipment except as hereinbefore excluded. The permit fees shall be paid to the inspection division prior to the approval of plans for such installations by the inspector or his representatives.

(d) Where installation of gas piping or appliances is commenced before a permit is obtained, the permit fees shall be doubled; provided, however, that, in case of emergency repair, work may be done; provided, further, that the necessary permits therefor must be obtained the following work day.
(Code 1986, § 19-36; Ord. No. 12357, § 1, 3-2-10; Ord. No. 13927, § 2, 12-20-22)

Secs. 19-37—19-50. Reserved.

ARTICLE III. GAS FITTERS AND INSTALLERS*

DIVISION 1. GENERALLY

Sec. 19-51. Purpose of regulations.

In the interests of the public health, safety and welfare the following provisions for the licensing and regulation of those engaged in gas fitting and installation are adopted.
(Code 1986, § 19-51)

Sec. 19-52. Liabilities not affected.

This article shall not be construed to relieve from or lessen the responsibility or liability of any party owning, operating, controlling or installing any gas piping, devices, appliances or equipment for damage to persons or property caused by any defect therein, nor shall the city be held as assuming liability by reason of the examination authorized herein or the license and certificate issued as herein provided.
(Code 1986, § 19-52)

Sec. 19-53. Violations, penalty.

Any person who violates any of the provisions of this article shall upon conviction be subject to punishment as provided in section 1-8 of this Code.
(Code 1986, § 19-53)

Secs. 19-54—19-65. Reserved.

DIVISION 2. BOARD OF EXAMINERS†

Sec. 19-66. Established.

There is hereby created and established a board of gas fitters examiners of the city.
(Code 1986, § 19-66)

Sec. 19-67. Composition; appointment; oath.

The board created by this division shall consist of seven (7) members to be appointed by the mayor and confirmed by the city council. Before entering upon their duties each member of such board shall take and subscribe to an oath to faithfully and fairly discharge his duty, without fear, favor or partiality, and to the best of his ability.
(Code 1986, § 19-67; Ord. No. 9654, § 2, 1-6-92; Ord. No. 12588, § 1, 5-1-12)

***Cross references—**Electricians, § 14-31 et seq.; plumbers, § 27-21 et seq.

†**Cross references—**Board of examiners of electricians, § 14-46 et seq.; board of examiners of plumbers, § 27-36 et seq.

Sec. 19-68. Terms of members.

Members of the board created by this division shall hold office for a term of four (4) years and until their successors are elected. However, should a member of the board not be reappointed at the time his term expires, he shall continue to serve as a board member until he is re-appointed or until his successor is appointed by the mayor and city council.
(Code 1986, § 19-68; Ord. No. 9654, § 2, 1-6-92)

Sec. 19-69. Qualifications of members.

The seven (7) members of the board created by this division shall consist of:

(1) A mechanical engineer holding a degree from a recognized college and licensed as an engineer by the state.

(2) A member of the mechanical contracting industry.

(3) A journeyman gas fitter with at least five (5) years of experience.

(4) An employee of the Chattanooga Gas Company with at least five (5) years' experience in the design and supervision of gas fitting and installations.

(5) A representative of the general public not connected with the gas industry.

(6) An educator or teacher, with related technical background.

(7) A representative of the general public that is connected with the gas or plumbing industry.
(Code 1986, § 19-69; Ord. No. 12588, § 2, 5-1-12)

Sec. 19-70. Officers.

As soon as practical after the appointment and qualification of the members of the board created by this division, they shall meet and organize by selecting one (1) of their members to be the chairman of the board, one (1) vice-chairman, and one (1) secretary unless that position is provided by staff of the building inspection office.
(Code 1986, § 19-70; Ord. No. 12588, § 3, 5-1-12)

Sec. 19-71. Removal of members; compensation; quorum.

Any member of the board created by this division may be removed for cause at any time by the city council after ten (10) days' written notice. Such board shall serve without compensation. Four (4) members shall constitute a quorum for the transaction of business.
(Code 1986, § 19-71; Ord. No. 9654, § 2, 1-6-92)

Sec. 19-72. Regular meetings.

The board created by this division shall hold meetings semi-annually in March and September, for the examination of applicants to determine their knowledge of the rules and regulations for the installation of gas piping devices, appliances and equipment as set forth in the statutes of the state, this code and other ordinances of the city and the International Gas Code; to issue licenses and certificates therefore; to determine the general qualifications and fitness of each applicant for executing the class of work covered by the license applied for and for the transaction of other business.
(Code 1986, § 19-72; Ord. No. 11722, § 4, 7-26-05; Ord. No. 12588, § 4, 5-1-12)

Sec. 19-73. Appeals from.

Any person aggrieved by any action or decision of the board created by this division shall have the right of appeal to the board of adjustments and appeals by requesting an appeal in writing and by lodging such request with the Chief Building Official of the city within ten (10) days after such action or decision.
(Code 1986, § 19-73; Ord. No. 12588, § 5, 5-1-12)

Sec. 19-74. Special meetings.

Special meetings of the board created by this division may be called by the chairman upon forty-eight (48) hours' written notice to each member.
(Code 1986, § 19-74)

Sec. 19-75. Records to be open to inspection.

Records of the meetings of the board created by this division, including the names of all licensees, shall be open for inspection by the public at all reasonable times and a complete record of the results of every examination shall be kept on file by the Board in compliance with the Records Retention Manual adopted by the City Council pursuant to T.C.A. 10-7-702.
(Code 1986, § 19-75; Ord. No. 12588, § 6, 5-1-12)

Sec. 19-76. Regulations authorized; printing.

The board created by this division may promulgate rules and regulations not inconsistent with this article, and in such event shall have such rules and regulations printed for distribution.
(Code 1986, § 19-76)

Secs. 19-77—19-85. Reserved.

DIVISION 3. EXAMINATIONS AND CERTIFICATES OF COMPETENCY*

Sec. 19-86. Application, examination required; nature of application.

(a) *Application:* All persons now or hereafter desiring to engage in gas fitting and installation in the city, either as a master gas fitter or as a journeyman gas fitter, shall apply, in writing, to the secretary of the board created by division 2 of this article for a certificate of competency and shall appear in person before

***Cross references—**Businesses, trades and occupations generally, Ch. 11; examination, licensing and certification of electricians, § 14-75 et seq.; certification of plumbers, § 27-56 et seq.

such board and submit to an examination relative to their qualifications as a master gas fitter or a journeyman gas fitter. The examinations for master gas fitter shall be different from that for journeyman gas fitter. Such examinations shall be reasonable and especially thorough so as to obtain from the applicant an understanding of the extent of his knowledge of the subjects upon which he is questioned.

(b) *Qualifications of journeyman gas fitter:* Any person shall be eligible for examination as a journeyman gas fitter who:

(1) Has had three (3) years practical experience under the supervision of a master gas fitter; or

(2) Has previously held an unrevoked journeyman gas fitter's certificate of competency in the city; or

(3) Has a degree from an accredited school of engineering; or

(4) Has had such experience in the construction and design of commercial, industrial or residential gas construction as shall be acceptable to the board.

Such applicant shall be examined by written examination upon the fundamentals of gas installation and construction, and the ability of the applicant to do practical gas installation and construction.

(c) *Qualifications of master gas fitters:* Any person shall be eligible for examination as a master gas fitter who:

(1) Has had two (2) years' practical experience as a journeyman gas fitter in the city; or

(2) Has held an unrevoked certificate of competency as a master gas fitter in the city; or

(3) Has a professional engineer's license to practice mechanical or related engineering in the state; or

(4) Has had such experience in the construction and design of commercial, industrial or residential gas construction as shall be acceptable to the board.

Such applicant for a master's certificate shall be examined, as an applicant for a journeyman's certificate is examined, and, also, upon his knowledge, training and ability in the planning, laying out and supervision of gas installation and construction work.
(Code 1986, § 19-86; Ord. No. 13506, § 1, 10-22-19)

Sec. 19-87. Holding of examinations.

The city shall provide proper and adequate quarters for the meetings of the board created by division 2 of this article for the purpose of holding examinations. The city shall furnish an adequate file that can be locked for all books and records relating to the business of such board. No member shall open such file except in the presence of another board member.
(Code 1986, § 19-87)

Sec. 19-88. Examination to be written, records required.

Examinations given by the board created under division 2 of this article shall be written and a complete record of every examination, including the score of the applicant shall be kept on file by the board in compliance with the Records Retention Manual adopted by the City Council pursuant to T.C.A. 10-7-702.
(Code 1986, § 19-88; Ord. No. 12588, § 7, 5-1-12)

Sec. 19-89. Passing examination; issuance of certificate.

Any applicant answering correctly seventy percent (70%) of the questions asked in the examination shall be considered qualified and the board created under division 2 of this article shall issue to the applicant a

certificate of competency, either as a master gas fitter or as a journeyman gas fitter, whichever the applicant may have applied for upon payment of the required fees. Such certificate of competency shall be signed by the chairman and secretary of the board.
(Code 1986, § 19-89)

Sec. 19-90. Examination fees established.

An application for a journeyman gas fitter's certificate shall be accompanied by an examination fee of one hundred dollars ($100.00) and an application for a master gas fitter's certificate shall be accompanied by an examination fee of one hundred dollars ($100.00).
(Code 1986, § 19-90; Ord. No. 11722, § 5, 7-26-05)

Sec. 19-91. Certification fees established.

Any person who has passed the examination by the board created under division 2 of this article and is otherwise qualified to engage in work as a master gas fitter or a journeyman gas fitter shall be issued a certificate of competency by the board upon payment of the following fee:

(1)	Master gas fitter (per year or any part thereof)	$100.00
(2)	Journeyman gas fitter (per year or any part thereof)	10.00
(3)	Retired or inactive Master gas fitter	25.00/year
(4)	Apprentice gas fitter.	No Charge

(Code 1986, § 19-91; Ord. No. 12588, § 8, 5-1-12)

Sec. 19-92. Disposition of fees.

The secretary of the board created under division 2 of this article shall make a report to the city treasurer of the amount of fees collected pursuant to section 19-90 or section 19-91 hereof, and shall pay the same into the city treasury within three (3) days after the collection thereof. All expenses incurred by such board shall be paid by the city treasurer from the fees collected. Any balance left in such fund shall be held by the city treasurer subject to the order of the city council, and in no event shall the board incur a greater expense than the amount collected in fees.
(Code 1986, § 19-92; Ord. No. 9654, § 2, 1-6-92; Ord. No. 12588, § 9, 5-1-12)

Sec. 19-93. Expiration of certificates; renewal authorized.

Beginning on the date of passage of this Ordinance, all licenses issued by the Board shall be effective and renewed on a two (2) year scheduled basis with the license expiring on the 30th day of June in odd numbered years following its date of issuance. Those whose license expires on June 30, 2012, shall be renewed for one (1) year. Beginning with the renewal due on June 30, 2013, all licenses issued by the Board shall renew every two (2) years in the odd numbered years. Each certificate of competency shall be renewable without further examination upon application of the holder within sixty (60) days after notice of the expiration date, and the payment of the two (2) year fee set out above. Any applicant for a renewal who fails to make application and pay the required fee within sixty (60) days of notice may be required to take another examination by the board of examiners unless such applicant shows good and sufficient cause for the failure to make such application; provided that, if any licensee enters active service in the armed forces of the United States, the applicant shall be granted a renewal license upon an application after discharge from such

service if such application is presented to the board within six (6) months following the date of discharge. The failure to renew any license before June 30th of the third year following expiration of a license will result in retesting.
(Code 1986, § 19-93; Ord. No. 12588, § 10, 5-1-12)

Sec. 19-94. Review of renewal applications; statement required.

It shall be the duty of the board created under division 2 of this article to review all applications for the renewal of any certificate of competency and such board shall require that each applicant for renewal shall file a statement signed by the applicant that he has not misused his certificate and that he has abided by this Code and the ordinances of the city pertaining to the installing of any gas piping devices, appliances or equipment. If an applicant for renewal cannot honestly file such a statement, a full explanation of the reasons must accompany the renewal application in lieu of all or part of the required statement.
(Code 1986, § 19-94)

Sec. 19-95. Disapproval of renewal.

The board created under division 2 of this article may disapprove any renewal of a certificate of competency when the applicant has misused his certificate or has made any intentional misstatement in such application; provided, however, that, such board shall not disapprove any renewal until after the applicant has been accorded an opportunity to be heard after five (5) days' notice by registered mail or personal service of such a notice.
(Code 1986, § 19-95)

Sec. 19-96. Misuse of certificate.

It shall be as misuse of his certificate of competency for any holder thereof:

(1) To obtain a permit directly or indirectly for another unless the certificate holder shall be the supervisor of all work covered by the permit; provided, however, that, supervisors of work as herein used, shall have the same meaning as set out in section 19-97 of this Code.

(2) To receive from another any compensation wherein the sole consideration thereof is the obtaining of a permit.

(Code 1986, § 19-96)

Sec. 19-97. Holder of certificate to supervise work under certificate; duties specified.

Each certificate of competency issued in accordance with the provisions of this article shall specify the name of the person who passed the examination, who shall be known as the holder of the certificate, and as supervisor of all work done under the certificate. "Supervision of work" shall mean:

(1) The certificate holder shall be available at least three (3) days per week during normal working hours at the holder's place of business located in the general metropolitan area of the city.

(2) The business in which the holder is associated shall have a local office in the general metropolitan area of the city and a local phone listed under the name of the firm with whom he is associated.

(3) The board created under division 2 of this article and the chief gas inspector shall be notified in writing of the name of the firm with whom the holder is associated.

(Code 1986, § 19-97)

Sec. 19-98. Certificate to be displayed; marking of vehicles.

Every holder shall keep his certificate of competency displayed in a conspicuous place in his principal place of business and shall identify any vehicles regularly used in the installation of gas piping and devices with his certificate number and his name or the name of the company with whom he is associated in letters and numerals not less than three (3) inches high on each side of such vehicles; any other vehicle used in the installation of gas piping, devices, appliances and equipment shall be likewise identified while being so used.
(Code 1986, § 19-98)

Sec. 19-99. Certificates not transferable.

No certificate issued in accordance with the provisions of this article shall be assignable or transferable.
(Code 1986, § 19-99)

Sec. 19-100. Suspension, revocation of certificate.

Any certificate issued under this article may, after hearing, be suspended or revoked by the board of gas fitters examiners if the person holding the certificate willfully, or by reason of incompetence, violates any provision of state law, of this article or any ordinance relating to the installation, maintenance, alteration or repair of gas piping, devices, appliances and equipment; provided, however, the board shall not suspend or revoke any certificate until after the holder has been accorded an opportunity to be heard after five (5) days' notice by registered mail or personal service of such notice.
(Code 1986, § 19-100)

Sec. 19-101. Worker's compensation insurance required.

All license holders will comply with all workers compensation provisions for any employees which are required by the State of Tennessee at the time any work is performed and submit any evidence of workers compensation insurance that is required by the State of Tennessee before any license is issued.
(Code 1986, § 19-101; Ord. No. 12588, § 11, 5-1-12)

Sec. 19-102. Unlawful to do work without certificate.

It shall be unlawful for any person other than a holder of a certificate of competency as a master or journeyman gas fitter or a holder of a certificate of registration as an apprentice gas fitter to do any gas installation, repair, alteration or construction work in the city, or for any holder of a certificate of competency to employ as an assistant in any such work any person other than a holder of a certificate of competency, or the holder of a certificate of registration as an apprentice gas fitter, or for any holder of a certificate of competency to require a registered apprentice gas fitter to do any such installation, repair, alteration or construction work otherwise than under his direct supervision, or for any registered apprentice gas fitter to do any such installation, repair, alteration or construction work otherwise than while under the direct supervision of the holder of a certificate of competency, except for gas work done by persons engaged by any public service company in the laying, maintenance and operation of its service mains or lines, and the installation, alteration, adjustment, repair, removal and renovation of all types of appurtenances of the utility company's side of the meter.
(Code 1986, § 19-102)

Sec. 19-103. Application, examination required; exceptions.

(a) Persons engaging in the business of gas fitting and installation in territory annexed to the city as a master gas fitter whose principal business is gas fitting and installation and whose principal place of business has been located and maintained in the annexed territory for three (3) or more years next preceding the

annexation of such territory may be exempted from taking the written examination required by this chapter. The board created under division 2 of this article is authorized to issue certificates of competency as master gas fitters to such persons who evidence a satisfactory knowledge of the fundamentals of gas fitting and installation, particularly with respect to the design, construction, installation, maintenance and repair of commercial, industrial and residential gas systems, and who shall also evidence a satisfactory knowledge of the laws pertaining to gas and gas fitting as regulated by this Code and the ordinances of the city governing same. Persons desiring issuance of certificates of competency as a master gas fitter under this section shall make application therefor to the board along with payment of the fees set out in this Code, within six (6) months after the date of the annexation of the territory within which their principal place of business is located.

(b) Persons engaging in the gas fitting and installation business in territory annexed to the city as a journeyman gas fitter who have been employed by a master gas fitter whose principal business is gas fitting and installations and whose principal place of business has been located and maintained in the annexed territory may be exempted from taking the written examination required by this chapter. The board created under division 2 of this article is authorized to issue certificates of competency as a journeyman gas fitter to such persons who evidence three (3) years' actual work experience as a gas fitter and who give satisfactory evidence of construction, design, installation, maintenance and repair of commercial, industrial and residential gas systems and the laws pertaining thereto as regulated by this code and the ordinances of the city governing the same and who shall also evidence a satisfactory knowledge of the fundamentals of gas fitting and practical knowledge of the installation, maintenance and repair of commercial, industrial and residential gas systems. Persons desiring issuance of a certificate of competency as a journeyman gas fitter under this section shall make application therefor to the board, along with payment of the required fees set out in this Code within six (6) months after the date of annexation of the territory within which their employer's place of business is located.
(Code 1986, § 19-103)

Sec. 19-104. Temporary certificates.

Anything in this article to the contrary notwithstanding, however, it shall be lawful for the board created under division 2 of this article to issue a temporary journeyman's certificate of competency to any applicant who shall have paid to the treasurer of such board an application fee of ten dollars ($10.00), and holds a valid unrevoked journeyman's card issued by another municipality with similar journeyman gas fitter's requirements as this city, or who, in the opinion of such board, has the necessary qualifications of a journeyman. The temporary journeyman gas fitter's certificate of competency shall be valid only until the day the next journeyman gas fitter's examination is to be given. Furthermore, such board may revoke such temporary journeyman's certificate at any time and no more than one (1) temporary journeyman's certificate can be issued to any one (1) person.
(Code 1986, § 19-104)

Sec. 19-105. Apprentice, registration.

Any person who shall apply for registration as an apprentice gas fitter upon a form provided for that purpose by the city, shall be registered as such by the board created under division 2 of this article without examination and without charge, and a certificate of registration as an apprentice gas fitter shall be issued to such applicant, without charge.
(Code 1986, § 19-105)

Secs. 19-106—19-120. Reserved.

DIVISION 4. LICENSES*

Sec. 19-121. License required.

In order to protect the public safety, no permit shall be issued for the installation of any gas appliance except to a Master gas fitter licensed by the City of Chattanooga who has paid the privilege taxes required by the laws of the state, the county, and the city, is in good standing with the Board of Gas Examiners for the City, and other applicable ordinances of this City.
(Code 1986, § 19-121; Ord. No. 9654, § 2, 1-6-92; Ord. No. 10675, § 6, 3-10-98; Ord. No. 11722, § 6, 7-26-05)

Sec. 19-122. Revocation of license for violation.

In addition to being guilty of a misdemeanor, any person who violates or fails to comply with this chapter may have his license revoked.
(Code 1986, § 19-122)

***Cross reference—**Businesses, trades and occupations generally, Ch. 11.

Chapter 20

HEALTH AND SANITATION*

Article I. In General

Sec. 20-1. Sanitary inspections to be made.
Sec. 20-2. Right of entry of health officer, assistants.
Sec. 20-3. Interfering with inspecting officer.
Secs. 20-4—20-20. Reserved.

Article II. Health Nuisances

Sec. 20-21. Defined.
Sec. 20-22. Maintenance prohibited.
Sec. 20-23. Notice to abate required; posting.
Sec. 20-24. Service of notice on owner or occupant.
Sec. 20-25. Hearing on notice.
Sec. 20-26. Abatement by city.
Sec. 20-27. Collection of expense of abatement; lien.
Sec. 20-28. Weeds and noxious growths.
Secs. 20-29—20-40. Reserved.

Article III. Contagious Diseases

Sec. 20-41. Regulatory powers of county director or health.
Sec. 20-42. Duties of police.
Sec. 20-43. Failure to comply with regulations, orders; obstructing officers.
Sec. 20-44. Examinations for tuberculosis; detention of infected persons.
Sec. 20-45. Reserved.
Sec. 20-46. Typhoid fever—Immunization of schoolchildren required.
Sec. 20-47. Same—Proof of immunization of schoolchildren.
Sec. 20-48. Same—Liability of parent or guardian.
Sec. 20-49. Vaccination of schoolchildren and teachers for smallpox—Required.
Sec. 20-50. Same—Liability of parent or guardian.
Secs. 20-51—20-65. Reserved.

Article IV. Mosquito Control

Sec. 20-66. Collections of water in which mosquitoes breed to be treated.
Sec. 20-67. Larvae evidence of breeding.
Sec. 20-68. Approved methods of water treatment.
Sec. 20-69. Responsibility for condition of premises.
Sec. 20-70. Abatement of condition as nuisance.
Secs. 20-71—20-85. Reserved.

***Cross references—**Occupational safety and health program for city employees generally, § 2-271 et seq.; air pollution, Ch. 4; alcoholic beverages, Ch. 5; animals and fowl, Ch. 7; garbage and refuse, Ch. 18; traffic accidents, § 24-151 et seq.; sewers, mains and drainage, Ch. 31; swimming pools, Ch. 33; water, Ch. 36.

State law reference—Municipal maintenance of county health departments, T.C.A. § 68-2-605.

Article V. Rat Control in Business Buildings

Sec. 20-86. Definitions.
Sec. 20-87. Business buildings to be ratproof, ratfree.
Sec. 20-88. Duty to ratproof buildings notice; appeals; city may do work when owner fails to do so.
Sec. 20-89. Notice of infestation; duty of occupant to institute eradication measures; city may do work.
Sec. 20-90. Ratproofed buildings to be maintained in ratproof condition.
Sec. 20-91. Inspections; notice to abate improper conditions.
Sec. 20-92. When cement floors to be laid or harborage corrected.
Sec. 20-93. Removal, restoration of ratproofing.
Sec. 20-94. Storage of animal feed.
Sec. 20-95. Accumulations of lumber, boxes, barrels, etc.
Secs. 20-96—20-110. Reserved.

Article VI. Lead Substances Control

Sec. 20-111. Title.
Sec. 20-112. Definitions.
Sec. 20-113. Prohibited use of lead paint.
Sec. 20-114. Prohibited distribution of toys, furniture, food containers, utensils and tableware.
Sec. 20-115. Labeling of substances having lead content.
Sec. 20-116. Hazardous condition and notice for abatement.
Sec. 20-117. Prohibition of eviction of occupants.
Sec. 20-118. Reports.
Sec. 20-119. Penalties.
Secs. 20-120—20-130. Reserved.

Article VII. Food Service Establishments

Division 1. Generally

Secs. 20-131—20-140. Reserved.

Division 2. Examination of Employees

Sec. 20-141. Applicability.
Sec. 20-142. Definitions.
Sec. 20-143. Health certificate required.
Sec. 20-144. Health certificates to be maintained at the food service establishment.
Sec. 20-145. Health department examination fees.

Division 3. Mobile Food Units

Sec. 20-146. Definitions.
Sec. 20-147. Mobile Food Units.
Sec. 20-148. Permit Requirements.
Sec. 20-149. Operational Requirements.
Sec. 20-150. Compliance with health regulations.
Sec. 20-151. Compliance with fire safety regulations.
Sec. 20-152. Insurance.

Sec. 20-153. Failure to obtain permit; penalties.

ARTICLE I. IN GENERAL

Sec. 20-1. Sanitary inspections to be made.

The sanitary inspectors of the county department of health may enter and make thorough inspections of all premises in the city as often as such inspections are deemed necessary by the county director of health, and may enter and inspect any premises in the city at other times if such premises are reported to the director to be or are believed by him to be in a condition prejudicial to health.
(Code 1986, § 20-1)

Cross reference—Municipal inspection department, § 2-421 et seq.

Sec. 20-2. Right of entry of health officer, assistants.

For the purpose of enforcing the provisions of this chapter, the county director of health or his assistants may at all reasonable times enter in and upon any premises in the city.
(Code 1986, § 20-2)

Sec. 20-3. Interfering with inspecting officer.

It shall be unlawful for any person to interfere with the county director of health or his assistants in inspections made by them to preserve the public health and safety.
(Code 1986, § 20-3)

Secs. 20-4—20-20. Reserved.

ARTICLE II. HEALTH NUISANCES*

Sec. 20-21. Defined.

Whenever any premises in the city are not maintained in a sanitary condition as provided by the laws of the state, this Code and other ordinances of the city relating to sanitation, and, in the opinion of the county director of health, have become a menace to the public health, such premises shall be declared to be nuisances.
(Code 1986, § 20-21)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 20-22. Maintenance prohibited.

It shall be unlawful for any person owning or occupying premises in the city, or in control thereof, to permit such premises to be maintained in a condition which constitutes a nuisance, as defined in section 20-21 of this Code.
(Code 1986, § 20-22)

Sec. 20-23. Notice to abate required; posting.

The county director of health shall post a notice or cause the same to be posted in a conspicuous place on premises that are being maintained in a condition which constitutes a nuisance. Such notice shall not be less than eight and one-half (8½) inches by eleven (11) inches in size. It shall call attention to the part of

*Cross reference—Mosquito control, § 20-66 et seq.

the premises on which the nuisance exists, and shall state that the condition constituting a nuisance shall be abated at the expense of the owner at the expiration of fifteen (15) days from the date of such notice, if such condition is not sooner corrected by the owner, occupant, or person in control of such premises.
(Code 1986, § 20-23)

Sec. 20-24. Service of notice on owner or occupant.

A copy of the notice required by section 20-23 of this Code shall be served upon the owner of the premises or his agent, and in the event that neither the owner nor his agent can be found, the notice shall be served by leaving it with the occupant of the premises, if any.
(Code 1986, § 20-24)

Sec. 20-25. Hearing on notice.

Any owner aggrieved by the determination of the county director of health that a nuisance is maintained on his premises may, within five (5) days from the date of the service of such notice, appear before the city council at a time and place to be specified in such notice and be heard. At the hearing the county director of health shall present the facts concerning the condition of the premises, and the owner thereof may present evidence and shall be entitled to be represented by counsel if he so desires. At such hearing the city council shall either confirm, modify or set aside the determination of the county director of health.
(Code 1986, § 20-25; Ord. No. 9654, § 134, 1-6-92)

Sec. 20-26. Abatement by city.

If, at the expiration of the time given an owner to abate a nuisance in the notice to abate, such owner has failed or refused to correct the condition complained of, such condition shall be corrected and the nuisance abated at the expense of the owner under the direction of the county director of health.
(Code 1986, § 20-26)

Sec. 20-27. Collection of expense of abatement; lien.

When any nuisance has been abated by the city as provided herein, the county director of health shall certify the amount of the expense incurred in abating the same to the mayor, who shall direct the city attorney to bring suit by attachment or otherwise to collect the same, and the city shall have a lien on the property to secure the amount expended by it in abating such nuisance which shall be superior to all other contractual liens.
(Code 1986, § 20-27)

Sec. 20-28. Weeds and noxious growths.

Any growth of weeds to a height of over ten (10) inches and any rank vegetable growth which harbors mosquitoes or emits unpleasant and noxious odors on any premises in the city is hereby declared to be a nuisance within the meaning of section 20-21 of this Code, and subject to the provisions of this article.
(Code 1986, § 20-28)

Secs. 20-29—20-40. Reserved.

ARTICLE III. CONTAGIOUS DISEASES*

Sec. 20-41. Regulatory powers of county director or health.

The county director of health may establish and enforce the observance by the inhabitants of the city of such sanitary regulations as he may deem best calculated to guard against epidemics of infectious, contagious or malignant diseases, and prevent or check their extension.
(Code 1986, § 20-41)

Sec. 20-42. Duties of police.

The police department shall enforce a strict observance of the laws of the state and any sanitary regulations promulgated by the state board of health or by the county director of health for the prevention or control of infectious, contagious or malignant diseases.
(Code 1986, § 20-42)

Sec. 20-43. Failure to comply with regulations, orders; obstructing officers.

It shall be unlawful for any person to neglect or refuse to obey any regulation or order of the county director of health authorized under section 20-41 of this Code, or to interfere with or obstruct such officer or his assistants in the performance of their duties in relation thereto. Any person guilty of a violation of any such regulation or order may, in addition to any other penalty provided by law, be placed in detention on the order of the director for a period of at least twenty (20) days.
(Code 1986, § 20-43)

Sec. 20-44. Examinations for tuberculosis; detention of infected persons.

The county director of health shall make or cause to be made such examinations of any person whom he may reasonably suspect of having tuberculosis in the infectious stage as may be necessary to determine the condition of such person, and shall quarantine or isolate any person who, upon examination, is found to have tuberculosis in the infectious stage, in such institution, home or other place as he may select.
(Code 1986, § 20-44)

Sec. 20-45. Reserved.

Editor's note—Ord. No. 13386, § 8, adopted Oct. 23, 2018, repealed § 20-45, which pertained to places of detention for persons with venereal diseases designated and derived from Code 1986, § 20-45.

Sec. 20-46. Typhoid fever—Immunization of schoolchildren required.

All children of school age, before entering any school in the city, shall be immune to typhoid fever. No child shall be considered immune unless he has been given three (3) injections of typhoid vaccine within a period of thirty (30) days, or unless such child has been immunized by another method recognized and approved by the county director of health. Such immunization shall be given by or under the direction of a licensed physician, or by or under the direction of the county director of health. Such immunization shall be repeated at intervals of not more than three (3) years.
(Code 1986, § 20-46)

***Charter references—**For authority to regulate and prevent contagious diseases, see § 2.1(5); for authority to prevent spread of venereal diseases, see § 2.1(58).

State law references—Prevention of diseases, T.C.A. § 68-5-101 et seq.; control of venereal diseases, T.C.A. § 68-10-101 et seq.

Sec. 20-47. Same—Proof of immunization of schoolchildren.

No child shall be considered immune to typhoid fever unless he or his parent or guardian furnishes the county director of health with satisfactory proof of such immunization. A written certificate from any licensed physician showing the date of immunization shall be considered sufficient proof thereof.
(Code 1986, § 20-47)

Sec. 20-48. Same—Liability of parent or guardian.

It shall be unlawful for the parent or guardian of any child to fail to have such child immunized as provided herein before entering such child in any school in the city.
(Code 1986, § 20-48)

Sec. 20-49. Vaccination of schoolchildren and teachers for smallpox—Required.

Every teacher and pupil shall, before entering any school in the city, furnish a certificate from a reputable physician certifying that such teacher or pupil has been successfully vaccinated or is immune to smallpox because of having had the disease or a previous successful vaccination, or entitled to exemption by reason of peculiar physical condition or who, in the opinion of the director of health, would be injuriously affected because of physical condition by vaccination. Such vaccination shall be under the direction of a licensed physician or by order under the direction of the county director of health.
(Code 1986, § 20-49)

Sec. 20-50. Same—Liability of parent or guardian.

It shall be unlawful for the parent or guardian of any child to fail to have such child vaccinated as provided in the preceding section before entering such child in any school in the city.
(Code 1986, § 20-50)

Secs. 20-51—20-65. Reserved.

ARTICLE IV. MOSQUITO CONTROL*

Sec. 20-66. Collections of water in which mosquitoes breed to be treated.

(a) It shall be unlawful for any person in the city to have, keep, maintain, cause or permit any collection of standing or flowing water in which mosquitoes breed or are likely to breed, unless such collection of water is treated so as effectually to prevent such breeding.

(b) Collections of water in which mosquitoes breed or are likely to breed are those contained in ditches, ponds, pools, excavations, holes, depressions, fountains, cisterns, tanks, shallow wells, barrels, troughs, urns, cans, boxes, bottles, tubs, buckets, defective house roof gutters or other similar water containers.
(Code 1986, § 20-66)

***Cross reference—**Health nuisances generally, § 20-21 et seq.

Sec. 20-67. Larvae evidence of breeding.

The natural presence of mosquito larvae in standing or running water shall be evidence that mosquitoes are breeding there.
(Code 1986, § 20-67)

Sec. 20-68. Approved methods of water treatment.

Collections of water in which mosquitoes breed or are likely to breed shall be treated by such one (1) or more of the following methods as shall be approved by the county director of health:

(1) Screening with wire netting of at least sixteen (16) mesh to the inch each way, or any other material which will effectually prevent the ingress or egress of mosquitoes.

(2) Complete emptying every seven (7) days of unscreened containers, together with their thorough drying or cleaning.

(3) Use of a larvicide approved and applied under the direction of the county director of health.

(4) Covering completely the surface of the water with kerosene, petroleum or paraffin oil once every seven (7) days.

(5) Cleaning and keeping sufficiently free of vegetable growth and other obstructions, and stocking with mosquito-destroying fish.

(6) Filling or draining to the satisfaction of the county director of health.

(7) Proper disposal, by removal or destruction, of tin cans, tin boxes, broken or empty bottles, and similar articles likely to hold water.

(Code 1986, § 20-68)

Sec. 20-69. Responsibility for condition of premises.

For the purposes of this article, the person responsible for the condition of any premises on which there is a collection of water in which mosquitoes breed or are likely to breed is the person using or occupying such premises; or in case no person is using or occupying the premises, the person who by law is entitled to the immediate possession of the same; or, in case the premises are used and occupied by two (2) or more tenants of a common landlord, or from grounds appurtenant to a house occupied by two (2) or more tenants of a common landlord, then the landlord. Each tenant, however, shall be responsible for that part of the premises which he occupies to the exclusion of other tenants; provided that, in case the premises are occupied by a tenant under a yearly or monthly tenancy, or under a lease for not more than a year, or under any lease whereby the lessor is expressly or impliedly obligated to keep the premises in repair, and the collection of standing or flowing water in which mosquitoes breed or are likely to breed is owing to the disrepair of the building or to any natural quality of the premises, or to any condition that existed at the time when the tenant entered into possession, or to anything done on the premises by the landlord during the existence of the tenancy or lease, then the landlord is the person responsible; provided, further, that, any person who has caused to exist on any premises of which he is not the owner, landlord, occupant or tenant any collection of water in which mosquitoes breed or are likely to breed shall be responsible, as well as the owner, landlord, tenant or occupant, as the case may be.
(Code 1986, § 20-69)

Sec. 20-70. Abatement of condition as nuisance.

If the person responsible for the condition of premises on which mosquitoes breed or are likely to breed fails or refuses to take necessary measures to prevent their breeding after notice in writing has been posted,

as provided in section 20-23 of this Code, within such time after such notice as may be specified in the notice, such person shall be guilty of a violation of this Code and such condition may be abated by the city as provided in article II of this chapter.
(Code 1986, § 20-70)

Secs. 20-71—20-85. Reserved.

ARTICLE V. RAT CONTROL IN BUSINESS BUILDINGS*

Sec. 20-86. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Business building. Any structure, whether public or private, that is adapted for occupancy for transaction of business, for rendering of professional service, for amusement, for the display, sale or storage of goods, wares or merchandise, or for the performance of work or labor, including hotels, apartment buildings, tenement houses, office buildings, public buildings, stores, theaters, markets, restaurants, grain elevators, abattoirs, warehouses, factories and all outhouses, sheds, barns, and other structures on premises used for business purposes.

Health officer. The county director of health or any duly authorized person who may represent him.

Occupant. The person who has the use of or occupies any business building or a part or fraction thereof, whether the actual owner or tenant. In the case of vacant business buildings or any vacant portion thereof, the owner, agent or other person having custody of such buildings shall have the responsibility of an occupant of a building.

Owner. The actual owner of the business building or the agent or other person having custody of the building or to whom rent is paid therefor.

Rat harborage. Any condition which provides shelter or protection for rats, thus favoring their multiplication and continued existence in, under or outside of a structure of any kind.

Rat stoppage or ratproofing. Such terms shall apply to a form of ratproofing to prevent the ingress of rats into business buildings from the exterior or from one business building to another. It consists essentially in rendering all actual or potential openings in the exterior walls, ground or first floors, basement, roofs and foundations, that may be reached by rats from the ground by climbing or by burrowing, secure with material impervious to rat gnawing.
(Code 1986, § 20-86)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 20-87. Business buildings to be ratproof, ratfree.

All business buildings in the city shall be ratproofed, freed of rats and maintained in a ratproof and ratfree condition under the direction and supervision of the health officer.
(Code 1986, § 20-87)

Sec. 20-88. Duty to ratproof buildings notice; appeals; city may do work when owner fails to do so.

Upon receipt of a written notice or written order from the health officer, the owner of any business building specified therein shall take immediate measures for ratproofing the building. If the owner of such

***Cross reference—**Businesses, trades and occupations generally, Ch. 11.

building does not deem it necessary that the building be ratproofed or that it is already ratproofed in its existing condition, he may, within ten (10) days after the giving of the written notice or order, appeal to the city council and present evidence as to the condition of the building. The city council shall determine whether or not the building specified in the notice or order is a ratproof building, and if not shall order the owner to take immediate steps for ratproofing the building. The city council may give such owner not to exceed ten (10) days to begin the necessary work for the ratproofing of such building. If the owner fails or refuses to take the necessary steps and do the work necessary for ratproofing the building within the time allowed, the city may do or cause to be done the work necessary to ratproof such building and charge the cost and expense thereof against the owner, which charge and expense shall be a lien on the property, which lien shall be superior to all other liens, except liens for state, county and city taxes and special improvement assessments, which lien may be enforced by the city in any court of competent jurisdiction. The owner of such building shall also be guilty of a misdemeanor.
(Code 1986, § 20-88; Ord. No. 9654, § 2, 1-6-92)

Sec. 20-89. Notice of infestation; duty of occupant to institute eradication measures; city may do work.

Whenever the health officer notifies the occupant of a business building that there is evidence of rat infestation of the building, such occupant shall immediately institute appropriate measures for freeing the premises of all rats. Unless such measures are instituted within three (3) days after receipt of notice and continuously maintained thereafter in a satisfactory manner until the building is free of rats, the health officer shall free the building of rats at the expense of the owner thereof. The health officer shall submit bills for the cost thereof to the owner or occupant of the building, and if the same are not paid within sixty (60) days from the completion of such work, he shall certify the amount due from the owner or occupant to the city attorney, who shall bring suit to collect the same.
(Code 1986, § 20-89)

Sec. 20-90. Ratproofed buildings to be maintained in ratproof condition.

The occupants of all ratproofed buildings shall maintain the premises in a ratproof condition and shall repair all breaks or leaks that may occur in the ratproofing unless such breaks or leaks develop as the result of natural deterioration of the building.
(Code 1986, § 20-90)

Sec. 20-91. Inspections; notice to abate improper conditions.

The health officer may make such unannounced inspections of the interior and exterior of business buildings as in his opinion may be necessary to assure full compliance with this chapter. The health officer shall make periodic inspections at intervals of not more than forty-five (45) days of all rat-stopped buildings for evidence or rat infestation and the existence of new breaks or leaks in the ratproofing thereof, and when any evidence is found indicating the presence of rats or openings through which rats may again enter business buildings, the health officer shall serve the owners or occupants thereof with notice to abate the conditions found.
(Code 1986, § 20-91)

Sec. 20-92. When cement floors to be laid or harborage corrected.

Whenever conditions inside or under business buildings provide such extensive harborage of rats that the health officer deems it necessary to eliminate such harborage, he may require the owner to install suitable

cement floors in basements or to replace wooden first or ground floors or require the owner or occupant to correct such interior rat harborage as may be necessary in order to facilitate the eradication of rats in a reasonable time.
(Code 1986, § 20-92)

Sec. 20-93. Removal, restoration of ratproofing.

It shall be unlawful for the occupant or owner or any contractor, public service corporation or other person to fail to restore in a satisfactory condition any ratproofing removed by him or it or to make any new openings that are not closed or sealed against the entrance of rats.
(Code 1986, § 20-93)

Sec. 20-94. Storage of animal feed.

All food and feed kept within the city for feeding chickens, cows, pigs, horses and other animals shall be kept and stored in ratfree and ratproof containers, compartments or rooms, unless such food and feed is kept in a ratproof building.
(Code 1986, § 20-94)

Sec. 20-95. Accumulations of lumber, boxes, barrels, etc.

It shall be unlawful for any person to permit to accumulate and remain on any premises in the city, improved or vacant, owned or occupied by him, or on any public or private street, any lumber. boxes, barrels, bricks, stones or similar materials, unless the same is placed on open racks that are elevated not less than eighteen (18) inches above the ground, and evenly piled or stacked so that such materials will not afford harborage for rats.
(Code 1986, § 20-95)

Secs. 20-96—20-110. Reserved.

ARTICLE VI. LEAD SUBSTANCES CONTROL

Sec. 20-111. Title.

This article shall be known and may be cited and referred to as the "Lead Poisoning Ordinance."
(Code 1986, § 20-111)

Sec. 20-112. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Approval. Satisfactory compliance as determined by the director, department of public health, or the housing inspector.

Director. That person who heads the public health department, or his designated representative.

Dwelling, dwelling unit, rooming house, and rooming unit. A building or structure which is wholly or partly used or intended to be used for living, sleeping, cooking or recreation, by human occupants.

Extractable or leachable lead. A quantity of lead in solution form as applied to food containers, cooking, eating or drinking utensils or tablewares which exceeds seven (7.0) micrograms per milliliter.

Facility. Any building or structure and equipment therein.

Lead paint. Any pigmented, liquid substance applied to surfaces by brush, roller, spray or other means in which the total nonvolatile ingredients contain more than one-half percent (½%) of lead by weight, calculated as lead metal either as a liquid or as dried film already applied.

Premises. A lot, plot or parcel of land including all facilities thereon.

Substance. Shall include, but not be limited to, lead bearing putty, ceramics, plumbing, sealers, paint and similar items.

Surfaces. Shall include, but not be limited to, such areas as window sills, window frames, doors, door frames, walls, ceilings, porches, stairs, handrails, toys, furniture, food utensils and other appurtenances.
(Code 1986, § 20-112)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 20-113. Prohibited use of lead paint.

It shall be unlawful for any person in the city to use or apply, or cause to be used or applied, lead paint, as defined in this article, or any substance containing lead in excess of one-half percent (½%) by weight to interior surfaces and to those exterior surfaces accessible to children of any premises, dwelling, dwelling unit, rooming house, rooming unit or facility occupied or used by children.
(Code 1986, § 20-113)

Sec. 20-114. Prohibited distribution of toys, furniture, food containers, utensils and tableware.

(a) It shall be unlawful for any person to sell, transfer, disperse, give or deliver toys or furniture to which lead paint has been applied.

(b) It shall be unlawful for any person to sell, transfer, disperse, give or deliver any container containing substances designed for oral use or ingestion, cooking, eating, or drinking utensils or tableware have extractable or leachable lead on it or in it.

(c) It shall be unlawful for any person to sell or offer to sell or distribute any foodstuff or articles contaminated with lead that will endanger the health, safety and welfare of a person using same.
(Code 1986, § 20-114)

Sec. 20-115. Labeling of substances having lead content.

Containers in which substances having lead content are stored, sold, transferred or added for wholesale or retail purposes shall be labeled in conformance with sate and federal laws and regulations and recommended standards of the Federal Hazardous Substance Labeling Act.
(Code 1986, § 20-115)

Sec. 20-116. Hazardous condition and notice for abatement.

(a) When the director of public health or the housing inspector determines that the presence of lead paint or lead bearing substances upon any premises creates a health hazard to children or other persons he shall issue a ten (10) day notice to the owner or occupant to eliminate the hazard; however, at the discretion of the director of public health or of the housing inspector, additional time may be granted to remove, abate, or remedy such condition, not to exceed thirty (30) days. Lead paint shall be completely removed from any source which can be chewed or eaten by children; loose, cracked, chipped, blistered, peeling lead paint or other accessible lead bearing substances shall be completely removed. In lieu of removal of the lead paint, the accessible features may be covered with an approved, durable, protective material.

(b) The methods used for the removal of lead paint shall not present a hazard to health from fumes, dust or vapors by inhalation or absorption through the skin and mucous membranes and shall be in accordance with all applicable laws, ordinances, regulations and safety standards and practices of the city and of state and federal agencies.
(Code 1986, § 20-116)

Sec. 20-117. Prohibition of eviction of occupants.

It shall be illegal for any owner or landlord found to be in violation of this article to evict, or cause to be evicted, occupants or tenants for the purpose of avoiding a corrective maintenance order by the director of public health, housing inspector, court or other appropriate authority to eliminate hazardous lead exposures.
(Code 1986, § 20-117)

Sec. 20-118. Reports.

Every public health official, physician, or director of a laboratory, hospital or other treatment facility who diagnoses or suspects the existence of lead poisoning in any person shall immediately notify, in writing, the director of public health of such fact. Notification shall include name and age of the individual, name of parents (or employer if person is an adult), and present address.
(Code 1986, § 20-118)

Sec. 20-119. Penalties.

In addition to any other sanction or remedial procedure, any owner, landlord, occupant or other person who shall violate any provision of this article, upon conviction thereof, shall be fined not less than ten dollars ($10.00) nor more than fifty dollars ($50.00). Each day's continuance of a violation shall constitute a separate offense, and in the case of an illegal eviction under section 20-117, each day the illegal eviction continues to exist shall constitute a separate offense.
(Code 1986, § 20-119)

Secs. 20-120—20-130. Reserved.

ARTICLE VII. FOOD SERVICE ESTABLISHMENTS

DIVISION 1. GENERALLY

Secs. 20-131—20-140. Reserved.

DIVISION 2. EXAMINATION OF EMPLOYEES

Sec. 20-141. Applicability.

The provisions of this division shall be applicable to all employees working in a food service establishment.
(Code 1986, § 20-141)

Sec. 20-142. Definitions.

For purposes of this article, unless otherwise specifically provided in this Code or in a code or ordinance adopted by this Code, or otherwise provided by law, the following word and phrases shall have the meanings respectively ascribed to them by this section:

Employee. Any person working in a food service establishment who transports food or food containers, who engages in food preparation or service, who comes in contact with any food utensils or equipment.

Food service establishment. Any fixed or mobile restaurant, coffee shop, cafeteria, short-order cafe, luncheonette, grill, tea room, sandwich shop, soda fountain, tavern, bar, cocktail lounge, night club, roadside stand, industrial-feeding establishment, private, public, or nonprofit organization or institution routinely serving food, catering kitchen, commissary or similar place in which food or drink is prepared for sale or for service on the premises or elsewhere; and any other eating or drinking establishment or operation where food is served or provided for the public with or without charge.
(Code 1986, § 20-142)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 20-143. Health certificate required.

Every employee working in a food service establishment shall have a certificate issued by the Chattanooga-Hamilton County Health Department or by another public health department or licensed physician in the state, stating that such person has been examined and found free of tuberculosis or other obvious communicable diseases. The health department or physician shall issue to all such persons examined and found to be free of tuberculosis or other obvious communicable diseases a certificate that shall be good for a period of twelve (12) months from the date of its issue. Each such employee at or prior to the expiration of the twelve (12) months shall present himself for reexamination and obtain a new certificate.
(Code 1986, § 20-143)

Sec. 20-144. Health certificates to be maintained at the food service establishment.

Every employee shall present a copy of the health certificate required in this article to the owner or operator of the food service establishment where he is employed, and such health certificate shall be kept and maintained by the owner or operator at the food service establishment and subject to inspection by any lawful agent of the state or its political subdivisions.
(Code 1986, § 20-144)

Sec. 20-145. Health department examination fees.

The Chattanooga-Hamilton County Health Department shall charge an examination fee of five dollars ($5.00) for each health certificate issued under this article, which fee shall be applied to the expense of such examination.
(Code 1986, § 20-145)

DIVISION 3. MOBILE FOOD UNITS*

Sec. 20-146. Definitions.

For the purposes of this Chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Commissary" means any State of Tennessee licensed stationary food establishment that serves mobile food dispensers, mobile food facilities, vending machines or other food dispensing operations where (i) food, containers, or supplies are stored; (ii) food is prepared or prepackaged for sale or service at other locations; (iii) utensils are cleaned; or (iv) liquid and solid wastes are disposed of or potable water is obtained.

"Mobile food unit" means any motorized vehicle or trailer that exceeds four (4') feet in width, five (5') feet in height, or six (6') feet in length that includes a self-contained kitchen in which food is prepared or processed and from which food is sold or dispensed to the ultimate consumer. Mobile food units must be mobile and on wheels at all times during operation. Mobile food units must be removed from authorized operating locations in permitted zones when not in use. This definition does not include vehicles operating under a special event permit or waterfront concession agreement.

"Operator" means any person holding a mobile food unit permit or any person who is engaged in the selling or offering for sale, of food, beverages, fruit or like consumable products from a mobile food unit.

"Sidewalk clear zone" means that portion of the right-of-way that is intended for pedestrian traffic along the sidewalk. The minimum width and location of the clear zone shall be determined by the paved area of any sidewalk within the right-of-way, however, in all instances it must be a minimum of forty-eight (48") inches of width and otherwise compliant with the Americans with Disabilities Act (ADA) for public sidewalk accessibility. In areas of congested pedestrian activity in the Form Based Code District, a wider minimum portion of the sidewalk may be required. The location of the clear zone shall be consistent for the entire block, and in most instances it shall be required to be located immediately adjacent to the facade of adjoining properties. The clear zone must at all times be free from any items, obstacles, or barriers so as to allow clear movement for pedestrians along the public right-of-way.
(Ord. No. 13348, § 2, 8-14-18)

Sec. 20-147. Mobile Food Units.

Mobile food units shall meet all applicable requirements of this Article in addition to the requirements as follows:

(a) No person shall engage in the business of a mobile food unit within the City of Chattanooga without first having obtained all required business licenses, a mobile food unit permit as required by Section 20-148 of the Chattanooga City Code, and any permits, licenses and/or certifications required by Hamilton County, the Hamilton County Department of Health, and/or the State of Tennessee.

(b) A mobile food unit permit, as authorized by the State of Tennessee and the Chattanooga City Code, will not be issued to a person unless the following conditions are met:

(1) The vehicle must be specially designed as a mobile food unit and be in compliance with all applicable health regulations for Hamilton County and the State of Tennessee.

***Editor's note—**Ord. No. 13348, § 2, adopted Aug. 14, 2018, repealed the former Div. 3, §§ 20-146—20-150, and enacted a new Div. 3 as set out herein. The former Div. 3 pertained to similar subject matter and derived from Ord. No. 12575, § 1, 3-20-12; Ord. No. 12710, § 1, 3-26-13.

(2) The driver of the vehicle must have a current valid driver's license, current vehicle insurance (including liability insurance) and current vehicle registration as required by Tennessee law and enforced by law enforcement authorities.

(3) The vehicle may only operate in locations where the operation of mobile food units are permitted under this Division and local zoning ordinances. Violations will be enforced by local zoning inspectors.

(4) All current permits must be posted in a conspicuous manner in such a manner that they can be viewed from the outside.

(c) The provisions of Article VII, Division 3 shall not apply to festivals, community-wide projects, and other community-sponsored sales which may occur on a periodic basis and which are submitted to and approved by appropriate authorities.

(Ord. No. 13348, § 2, 8-14-18)

Sec. 20-148. Permit Requirements.

(a) The title of this permit shall be the "Mobile Food Unit Permit."

(b) No person shall sell, or offer for sale, any food, beverage, fruit, or like consumable product from any mobile food unit unless:

(1) Such person obtains a mobile food unit permit from the city treasurer in accordance with the provisions of this Division;

(2) Such sales are made from a mobile food unit under the control of a mobile food unit operator; and

(3) The mobile food unit operator has obtained written permission from the owner or lessee of the private property on which the mobile food unit is located to operate on mobile food unit from the property or has otherwise complied with this Division for mobile food unit operations on public property and right-of-way.

(c) Any person desiring a mobile food unit permit shall make written application to the city treasurer stating:

(1) Name, home address, business address, and telephone number of the applicant and the name, address, and telephone number of the owner of the mobile food unit, if other than the applicant, to be used in the operator's business;

(2) A description of the type of food, beverage, fruit, or like consumable product to be sold; and

(3) The VIN#, a brief description including make and model, and at least two (2) photographs of the mobile food unit.

(d) Before any permit is issued by the city treasurer under this Division, the applicant must submit satisfactory evidence that he has complied with the state business tax act, all state statutes and regulations controlling health and dispensing of food, and the fire safety regulations set forth in Section 20-151 of the Chattanooga City Code. Nothing herein shall excuse any applicant/operator from complying with all applicable state statutes and city ordinances controlling health standards and requirements and the operation of businesses.

(e) Upon compliance with the provisions of this section, the city treasurer shall issue to the applicant a mobile food unit permit authorizing the operator to do business upon payment of a permit fee of fifty dollars ($50.00); provided, the applicant complies with the other provisions of this article. The permit fee shall be used to help defray the cost of administering and enforcing the provisions of this article.

(f) A permit issued under this article shall be valid for one (1) year from the date of issuance and shall be renewed on an annual basis (concurrent with the renewal and issuance of business licenses) upon proper application and payment of the permit fee. Each permit shall be valid for only one (1) mobile food unit. Each operator and/or applicant shall file an additional application and pay an additional permit fee for each additional mobile food unit.

(g) All permits issued under this article shall be displayed inside the mobile food unit at all times during the operation of the mobile food unit. The permit shall be displayed in such a manner that it can be viewed from the outside.

(h) The Mobile Food Unit Permit number shall be prominently displayed on the outside of the mobile food unit.

(i) The operator shall have posted the current price per unit or measure for each type of item sold. (Ord. No. 13348, § 2, 8-14-18)

Sec. 20-149. Operational Requirements.

(a) Mobile food units are prohibited from operating upon city streets, sidewalks or public property within the Chattanooga city limits, except in Mobile Food Unit (MFU) Zones as approved by the Chattanooga Department of Transportation and in compliance with rules and regulations established by the mayor or his designated representative. Also, in city Parks or Youth and Family Development Center property located in the area of the city designated by the shaded area shown on the attached map which is incorporated herein as Exhibit A to this Section, mobile food units may operate in city Parks with the approval of the Director of Open Spaces or his/her designated representative and in a city Youth and Family Development Center facility with the approval of the Director of Youth and Family Development or his/her designated representative.

(1) Within MFU Zones the proposed locations of operation must be designated and no mobile food unit operations may occur within one hundred (100') feet of the nearest property zoned R-1, R-2, R-3, or R-4.

(2) MFU Zones may be established by applying to the Chattanooga Department of Transportation. A one hundred ten dollars ($110.00) fee to help defray the cost of administering and enforcing the provisions of this article must accompany each application for the establishment of a MFU Zone.

(3) An applicant for the establishment of a MFU Zone shall notify the Council Member for the Council District within which the proposed MFU Zone is to be located of the application and submit proof of said notification to the Chattanooga Department of Transportation.

(b) Mobile food units are prohibited from operating on private property, except with prior written permission from the owner or lessee of the private property on which the mobile food unit is to be located.

(c) Mobile food units operating on property outside City right-of-way may only operate on privately owned properties not zoned R-1, R-2, R-3, or R-4, or in city Parks or Youth and Family Development Centers.

(d) Mobile food units located on private property must not be parked within ten (10) feet of a City right-of-way.

(e) Mobile food units located on private or public property may not sell or dispense anything during hours as defined by city code or between the hours of 3:00 a.m. and 6:00 a.m. and must be removed from the property during those times.

(f) No mobile food unit shall be equipped with any external electronic sound-amplifying device. No operator shall shout, make any noise or use any device for the purpose of attracting attention to the mobile food unit or the items it offers for sale.

(g) Mobile food units shall be limited to the sale of food and non-alcoholic drinks. The sale of other merchandise or services will not be permitted.

(h) Cooking must not be conducted while the vehicle is in motion.

(i) When not in use as allowed by Section 20-149(e), a mobile food unit shall be en route to or parked at its commissary or other location approved by the Hamilton County Health Department that does not violate an applicable City ordinance.

(j) Signs which are permanently affixed to the mobile food unit shall extend no more than six (6") inches from the vehicle. All signs shall be attached to or painted on the mobile food unit. Electronic signs are prohibited, as are signs that flash, cause interference with radio, telephone, television or other communication transmissions; produce or reflect motion pictures; emit visible smoke, vapor, particles, or odor; are animated or produce any rotation, motion or movement. Signs may be indirectly illuminated, but no sign shall utilize any exposed incandescent lamp with wattage of more than forty (40) watts.

(k) The operator must provide for the sanitary collection of all refuse, litter and garbage within twenty-five (25') feet of the mobile food unit which is generated by the mobile food unit operation or the patrons using that service and shall remove all such waste materials from the location before the vehicle departs. This includes a responsibility to physically inspect the general area for such items prior to the vehicle's departure.

(l) The food production and transaction operation of the mobile food unit is limited to the interior of the unit. Other accessory items that are portable (i.e., folding tables and chairs) may be used on private property as allowed by the owner/lessee of the property, applicable zoning and other laws or on city right-of-way in locations approved by the Chattanooga Department of Transportation. Sidewalk clear zones may not be obstructed.

(m) The mayor or his designated representative is hereby authorized to make and promulgate rules and regulations for the purpose of carrying out the administration and enforcement of the rights and duties of vendors and the public.
(Ord. No. 13348, § 2, 8-14-18)

Sec. 20-150. Compliance with health regulations.

(a) Operators of mobile food units shall comply with all regulations and laws governing mobile food service establishments and food service establishments adopted by the department of public health for Hamilton County and enacted by the State of Tennessee.

(b) Operators of mobile food units shall obtain all necessary health certificates and permits.

(c) Operators of mobile food units shall comply with the requirements for the examination of employees as required by Division 2 of this Article.
(Ord. No. 13348, § 2, 8-14-18)

Sec. 20-151. Compliance with fire safety regulations.

(a) The Chattanooga Fire Department shall inspect any mobile food vehicle using propane or compressed natural gas with a Type I or Type II exhaust hood or fire suppression system.

(b) *Cooking Equipment.* All cooking appliances must be listed by Underwriters Laboratories or NSF International for mobile applications for the appropriate fuel and be clearly marked with the appropriate rating sticker. All fat fryers must have a lid over the oil vat that can be secured in order to prevent the spillage of cooking oil during transit. This lid should be secured at all times when the vehicle is in motion.

(c) *Propane and Natural Gas Usage.* Propane and natural gas tanks shall be shut off while mobile food vehicle is in motion unless the tank is equipped with an impact detection shut off device approved by the U.S. DOT. Propane and natural gas tanks must always be shut off while the vehicle is unattended and/or in overnight storage.

(d) *Automatic and Manual Shutoffs.* Each gas-fired appliance shall be equipped with an automatic device designed to shut off the flow of gas to the main burner and pilot in the event the pilot flame is extinguished (Modified from NFPA 58—5.20.7A). The main system shutoff valves located on or closest to the fuel tanks and sufficient to stop the supply of fuel from all fuel tanks must be clearly marked with the words "PROPANE AND NATURAL GAS SHUTOFF VALVE" permanently affixed to the outside of the vehicle in reflective decal material with letters 2" high at minimum. Installed height of the Automatic and Manual Shutoff shall be no less than 20" above the top of the bumper. Piping shall meet the requirements of part 12 of this document.

(e) *Fire Suppression System and Extinguishers.* All mobile food vehicles must be equipped with a working Ansul R-102 or K Class automatic fire suppression system according to NFPA 96—10.2.1 and 10.2.2, which is regularly maintained according to NFPA 96—11.2.1 for the lifetime of the vehicle. All vehicles must also be equipped with no less than one 10 BC-rated fire extinguisher, or if a deep fryer is present in the vehicle, a Class K fire extinguisher. Extinguishers must have current annual inspection tags as outlined by NFPA 10.

(f) *Kitchen Exhaust Hood.* Each mobile food vehicle that uses propane or natural gas for cooking must be equipped with a Type I or Type II commercial kitchen exhaust hood as defined by the 2012 International Mechanical Code. Exhaust hoods must be inspected semi-annually by a licensed HVAC professional to ensure continuing maintenance and upkeep.

(g) *Ventilation System.* The truck must also be equipped with a working ventilation system that meets the requirements of NFPA 96, Chapter 5. This ventilation system must be in operation at all times when the cooking equipment of the truck is being used. All fan systems in the cooking area of the truck must have a minimum combined cubic feet per minute rating equal to twice the volume of the interior of the truck as measured in cubic feet.

(h) All mobile food vehicles must be equipped with a working carbon monoxide detector that meets standards set forth in NFPA 1192—6.4.6.

(i) *Piping.* All propane and natural gas piping must be constructed and installed in accordance with NFPA 58—6.23.5. All propane and natural gas pipes and fixtures must be made of steel, copper or brass. No plastic or rubber piping of any kind will be permitted in the truck for any purpose.

(j) *Electrical Appliances and Generators.* All electrical equipment and appliances must be installed in accordance with NFPA 70.

(k) *List of Required Warning Labels, Placards and Tags.* The following placards and tags, some mentioned elsewhere in these specifications, must be prominent and visible on the interior or exterior of the mobile food vehicle as appropriate. All signs must conform to U.S. Department of Transportation guidelines as outlined in the North American Emergency Response Guide or successor publication, or specific organizational requirements outlined here.

(1) OSHA-approved propane or natural gas 3-in-1 hazard sign placed on the outside of the vehicle as close to the tank as possible, which should include no-smoking warnings.

(2) Shutoff valve markers as outlined in Part 7.

(3) Current annual inspection date tags on fire extinguishers.

(4) UL or NSF International certification sticker for mobile applications and proper fuel source on every cooking appliance.

(Ord. No. 13348, § 2, 8-14-18)

Sec. 20-152. Insurance.

Operators of mobile food units that operate on public property or right-of-way shall provide with their application and annual renewal application proof of an insurance policy, issued by an insurance company licensed to do business in the state, with the city as a named insured, protecting the operator and the city from all claims or suits for damages to property or bodily injury, including death, which may arise from operations under or in connection with the permit. Minimum liability limits for such insurance policy shall be not less than the minimum limits specified by Tennessee Code Annotated Section 29-20-403. Such insurance shall show paid-up premiums for a minimum of one (1) year and shall provide that the policy will not terminate or be canceled prior to the expiration date without thirty (30) days' advance written notice to the mayor or his designee.

(Ord. No. 13348, § 2, 8-14-18)

Sec. 20-153. Failure to obtain permit; penalties.

Any violation of this Ordinance or relating to failure to obtain a Mobile Food Unit Permit shall be punishable by a fine of not more than fifty dollars ($50.00) per violation. Each occurrence of a violation shall be a separate offense and after three (3) violations, will result in revocation of the Mobile Food Unit Permit. An opportunity shall be given for a written rebuttal for the Mobile Food Unit operator after the third violation in order to express its views to re-activate its Mobile Food Unit Permit.

(Ord. No. 13348, § 2, 8-14-18)

Chapter 21

PROPERTY MAINTENANCE*

Article I. Scope, Application and Definitions

Division 1. Scope and Application

Sec. 21-1. Scope; intent.
Sec. 21-2. Adoption of International Property Maintenance Code; application of this chapter and other codes.
Sec. 21-3. Conflicts with other laws or code provisions.
Sec. 21-4. Fair housing requirements.
Sec. 21-5. Requirements not covered by the Property Maintenance Code.
Sec. 21-6. Maintenance of equipment and systems.
Sec. 21-7. Repairs.
Sec. 21-8. Workmanship.
Sec. 21-9. Historic structures.
Secs. 21-10—21-20. Reserved.

Division 2. Definitions

Sec. 21-21. General.
Sec. 21-22. Definitions.
Secs. 21-23—21-30. Reserved.

Article II. Administration

Sec. 21-31. Authority to administer and enforce chapter.
Sec. 21-32. Duties and powers of the Code Official; interpretation of provisions.
Sec. 21-33. Code Enforcement Inspectors.
Sec. 21-34. Inspections.
Sec. 21-35. Right of entry.
Sec. 21-36. Identification.
Sec. 21-37. Interference with enforcement.
Sec. 21-38. Fees.
Sec. 21-39. Official records.
Secs. 21-40—21-55. Reserved.

***Editor's note—**Ord. No. 13442, § 1, adopted March 12, 2019, repealed the former Ch. 21, §§ 21-1—21-19, 21-26—21-30, 21-35—21-46, 21-55—21-67, 21-76—21-78, 21-81—21-92, 21-101—21-109, 21-121—21-127, 21-150—21-167, and enacted a new Ch. 21 as set out herein. The former Ch. 21 pertained to housing. See the Code Comarative Table for a complete derivation of these former provisions.

Cross references—Building regulations, Ch. 10; electricity, Ch. 14; fire prevention, Ch. 17; garbage and refuse, Ch. 18; gas regulations, Ch. 19; health and sanitation, Ch. 20; plumbing, Ch. 27; sewers, mains and drainage, Ch. 31; swimming pools, Ch. 33; trailers and trailer camps, Ch. 34; water, Ch. 36; zoning regulations, Ch. 38.

Article III. Enforcement

Division 1. Violations and Prosecution Thereof; Liens

Sec. 21-56. Approval by the Code Official.
Sec. 21-57. Violations generally; prosecution, penalties and appeals.
Sec. 21-58. Notices and orders; form; method of service.
Sec. 21-59. Unauthorized tampering with City documents or signs.
Sec. 21-60. Owner responsible for violations on owner's property.
Sec. 21-61. Transfer of ownership of property under violation notice.
Sec. 21-62. Municipal lien for costs; collection of liens.
Secs. 21-63—21-75. Reserved.

Division 2. Condemnation

Sec. 21-76. Unsafe structure defined.
Sec. 21-77. Condemnation of unsafe structures.
Sec. 21-78. Emergency order to comply; failure to comply.
Sec. 21-79. Request for hearing on condemnation.
Sec. 21-80. Occupancy of condemned structure prohibited.
Sec. 21-81. Placard of condemnation; unauthorized removal of placard prohibited.
Sec. 21-82. Certificate of occupancy required before re-occupancy.
Sec. 21-83. Renting unsafe or condemned structures prohibited.
Sec. 21-84. Repair or demolition of unsafe structures.
Sec. 21-85. Authority to disconnect service utilities.
Sec. 21-86. Condemnation of vacant unsafe structures; duty to secure; liens.
Sec. 21-87. Closing of vacant structures.
Sec. 21-88. Emergency measures.
Sec. 21-89. Stop work order.
Secs. 21-90—21-100. Reserved.

Division 3. Demolition

Sec. 21-101. Purpose.
Sec. 21-102. Appointment of Public Officer.
Sec. 21-103. Powers of the Public Officer.
Sec. 21-104. Cases referred to Public Officer; criteria to be applied.
Sec. 21-105. Notice, evidence and orders related to demolition hearings.
Sec. 21-106. Service of notices and orders.
Sec. 21-107. Authorization for City to demolish structure; salvage materials.
Sec. 21-108. Enjoining enforcement of order.
Secs. 21-109—21-125. Reserved.

Article IV. Exterior Requirements

Division 1. General Requirements

Sec. 21-126. General exterior requirements.
Sec. 21-127. Exterior property areas.

Division 2. Exterior of Structure

Sec. 21-128. Exterior of structure.
Sec. 21-129. Unsafe conditions.

Division 3. Swimming Pools And Other Accessory Structures

Sec. 21-130. Accessory structures.
Sec. 21-131. Swimming pools, spas and hot tubs.

Division 4. Litter and Overgrowth

Sec. 21-132. Accumulation of litter prohibited, deemed nuisance.
Sec. 21-133. Litter on occupied or vacant property.
Sec. 21-134. Appliances not allowed on exterior premises.
Sec. 21-135. No indoor furniture allowed on exterior premises.
Sec. 21-136. Overgrowth.
Sec. 21-137. Abatement by City and lien for costs thereof; notice; hearing; appeal.
Secs. 21-138—21-150. Reserved.

Division 5. Abandoned and Inoperable Vehicles

Sec. 21-151. Abandoned vehicles prohibited; towing authorized.
Sec. 21-152. Inoperable vehicles on private property prohibited; permission for removal; citation to City Court; towing authorized.
Sec. 21-153. Automotive repair.
Sec. 21-154. Removal, storage and disposition of vehicles by City; collection of costs.
Sec. 21-155. Court's authority to issue orders and warrants.
Secs. 21-156—21-170. Reserved.

Article V. Interior Requirements

Division 1. General Requirements

Sec. 21-171. General requirements for interior of structure.
Sec. 21-172. Unsafe conditions.
Sec. 21-173. Pest elimination.
Sec. 21-174. Handrails and guardrails.

Division 2. Component Serviceability

Sec. 21-175. Component serviceability.

Division 3. Light, Ventilation And Space For Occupancy

Sec. 21-176. General requirements for light, ventilation and space for occupying a structure.
Sec. 21-177. Light.
Sec. 21-178. Ventilation.
Sec. 21-179. Occupancy limitations.

Division 4. Plumbing

Sec. 21-180. General requirements for plumbing facilities and fixtures.
Sec. 21-181. Required facilities.
Sec. 21-182. Toilet rooms.
Sec. 21-183. Plumbing systems and fixtures.
Sec. 21-184. Water system.
Sec. 21-185. Sanitary drainage system.
Sec. 21-186. Storm drainage.

Division 5. Mechanical and Electrical Systems

Sec. 21-187. Mechanical and electrical requirements.
Sec. 21-188. Heating facilities.
Sec. 21-189. Mechanical equipment.
Sec. 21-190. Electrical facilities.
Sec. 21-191. Electrical equipment.
Sec. 21-192. Elevators, escalators and dumbwaiters.
Sec. 21-193. Duct systems.

Division 6. Fire Safety

Sec. 21-194. General fire safety requirements.
Sec. 21-195. Means of egress.
Sec. 21-196. Fire-resistance ratings.
Sec. 21-197. Fire protection systems.
Secs. 21-198—21-230. Reserved.

Article VI. Office of Administrative Hearing Officer

Sec. 21-231. Creation of Office of Administrative Hearing Officer; number of officers; compensation; interlocal agreements.
Sec. 21-232. Jurisdiction of Office of Administrative Hearing Officer; restrictions on authority.
Sec. 21-233. Communications by administrative hearing officer and parties.
Sec. 21-234. Appearance by parties; representation by counsel.
Sec. 21-235. Prehearing conferences and orders.
Sec. 21-236. Appointment of Administrative Hearing Officer; use of Administrative Law Judge.
Sec. 21-237. Training and continuing education.
Sec. 21-238. Citations for violations; written notice.
Sec. 21-239. Review of citation; levy of fines.
Sec. 21-240. Party in default.
Sec. 21-241. Petitions for intervention.
Sec. 21-242. Regulating course of proceedings; full disclosure; hearing open to public.
Sec. 21-243. Evidence and affidavits; notice.
Sec. 21-244. Rendering of final order; findings of fact; submission of proposed findings.
Sec. 21-245. Final order effective date.
Sec. 21-246. Collection of fines, judgments and debts.
Sec. 21-247. Judicial review of final order.
Sec. 21-248. Appeal to court of appeals.
Secs. 21-249—21-260. Reserved.

ARTICLE I. SCOPE, APPLICATION AND DEFINITIONS

DIVISION 1. SCOPE AND APPLICATION

Sec. 21-1. Scope; intent.

This chapter shall be known as the Property Maintenance Code. The provisions of this chapter shall apply to all existing residential structures and all existing premises and shall constitute minimum requirements and standards for (1) premises, structures, equipment, and facilities for light, ventilation, space, heating, sanitation, protection from the elements, life safety, safety from fire and other hazards, and safe and sanitary maintenance; (2) the responsibility of owners, operators and occupants; (3) the occupancy of existing structures and premises; and (4) administration, enforcement and penalties.

This Property Maintenance Code shall be construed to secure its expressed intent, which is to ensure public health, safety and welfare insofar as they are affected by the continued maintenance of structures and premises. Existing structures and premises that are in violation of this chapter must be brought into compliance as required herein to provide a minimum level of health and safety.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-2. Adoption of International Property Maintenance Code; application of this chapter and other codes.

Repairs, additions or alterations to a structure, or changes of occupancy, shall be done in accordance with the procedures and provisions of this chapter. To the extent that this chapter is silent on any relevant aspect, the International Property Maintenance Code, 2015 Edition, including Appendix A, as prepared and adopted by the International Code Council, is hereby adopted, with the modifications, additions, insertions and deletions set forth in this chapter. One (1) copy of the International Property Maintenance Code, 2015 Edition, is on file in the Office of the Clerk of the Chattanooga City Council and has been on file for more than fifteen (15) days.

If the Chattanooga City Code ("City Code") and the International Property Maintenance Code, 2015 Edition, are silent on a particular aspect, repairs, additions or alterations to a structure, or changes of occupancy, shall be done in accordance with the procedures and provisions of the International Building Code, International Energy Conservation Code, International Fire Code, International Fuel Gas Code, International Mechanical Code, International Plumbing Code, International Residential Code, and NFPA 70: National Electrical Code ("NFPA 70") as adopted in the City Code. Nothing in this chapter shall be construed to cancel, modify or set aside any provision of the International Zoning Code.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-3. Conflicts with other laws or code provisions.

Where a conflict exists between a provision of this chapter and a provision of the International Property Maintenance Code, the stricter provision shall apply, as determined by the Code Official. Where a conflict exists between a general requirement and a specific requirement in this chapter, the specific requirement shall govern. Where, in a specific case, different sections of this chapter specify different requirements, the most restrictive shall govern.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-4. Fair housing requirements.

It shall be a violation for any person to engage in any conduct proscribed by T.C.A. §§ 4-21-601 *et seq.* or 42 U.S.C. §§ 3601 *et seq.*
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-5. Requirements not covered by the Property Maintenance Code.

Requirements necessary for the strength, stability or proper operation of an existing fixture, structure or equipment or for the public safety, health and general welfare, not specifically covered by this chapter, shall be determined by the Code Official.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-6. Maintenance of equipment and systems.

Equipment, systems, devices and safeguards required by this chapter or a previous regulation or code under which the structure or premises was constructed, altered or repaired shall be maintained in good working order. No owner, operator, or occupant shall cause any service, facility, equipment or utility which is required under this section to be removed from or shut off from or discontinued for any occupied structure, except for such temporary interruption as necessary while repairs or alterations are in progress. The requirements of this chapter are not intended to provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structures. Except as otherwise specified herein, the owner or the owner's authorized agent shall be responsible for the maintenance of structures and premises.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-7. Repairs.

Repairs to existing mechanical, plumbing and electrical systems shall not make the structure less conforming than it was before the repair was undertaken.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-8. Workmanship.

Repairs, maintenance work, Alterations or installations which are covered by this chapter or caused directly or indirectly by the enforcement of this chapter shall be executed and installed in a workmanlike manner and installed in accordance with the manufacturer's instructions.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-9. Historic structures.

The provisions of this chapter shall not be mandatory for existing structures designated as historic structures pursuant to federal, state or local laws or regulations when such structures are judged by the Code Official to be safe and in the public interest of health, safety and welfare.
(Ord. No. 13442, § 1, 3-12-19)

Secs. 21-10—21-20. Reserved.

DIVISION 2. DEFINITIONS

Sec. 21-21. General.

(a) Where terms are not defined in this Chapter and are defined in the Building Code, such terms shall have the meanings ascribed to them as stated in the Building Code. Where terms are not defined in this chapter or the Building Code and are defined in the International Building Code, International Energy

Conservation Code, International Fire Code, International Fuel Gas Code, International Mechanical Code, International Plumbing Code, International Residential Code, International Zoning Code or NFPA 70, such terms shall have the meanings ascribed to them as stated in those codes.

(b) Whenever the words "structure," "premises," "story," "dwelling," "dwelling unit," "rooming house," "rooming unit," "housekeeping unit" or "sleeping unit" are stated in this chapter, they shall be construed as though they were followed by the words "or any portion or part thereof."
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-22. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purposes of this chapter, have the meanings shown in this section.

Abandoned Vehicle: A Vehicle or part thereof that is left unattended on public property for more than ten (10) days.

Abate: To correct, remove or terminate.

Accessory Structure: All structures on the premises other than the primary structure, including detached garages, storage buildings, swimming pools, hot tubs, fences, walls, gates and other similar type structures.

Accessory Use: A use conducted on the same lot as the primary use of the structure to which it is related and that is clearly incidental to, and customarily found in connection with, such primary use.

Alter or *Alteration*: Change or modification in construction or occupancy.

Anchored: Secured in a manner that provides positive connection.

Apartment House: A residential structure designed or used for three (3) or more dwelling units.

Approved: Acceptable to the Code Official, in accordance with the standards provided in Section 21-56.

Basement: That portion of a structure that is partly or completely below grade.

Bathroom: A room containing plumbing fixtures including a bathtub or shower.

Bedroom: Any room or space used or intended to be used for sleeping purposes in either a dwelling or sleeping unit.

Building Code: The building code officially adopted in the City Code or such other code as may be officially designated by the Chattanooga City Council ("City Council") for the regulation of construction, alteration, repair, removal, demolition, use, location, occupancy and maintenance of structures.

Building Official: The City employee who is certified under T.C.A. § 68-120-133 and charged with the administration and enforcement of the Building Code, or said employee's duly authorized representative.

Certificate of Occupancy: A document issued by the City's building department certifying a structure's compliance with the Building Code and other applicable laws, thereby indicating the structure is in a livable condition and suitable for occupancy.

Code Official: The Administrator of the Department of Public Works or Chief Building Official for the City of Chattanooga, who is charged with the administration and enforcement of this chapter, or said employee's duly authorized representative.

Condemn or *Condemnation*: To adjudge unfit for occupancy or use.

Condemned Structure: Any unsafe structure, within the terms of this Code, that has been condemned pursuant to this chapter.

Condominium: Any individually owned single units of a multiple structure or structures with common elements, including, but not limited to, the land, foundations, main, wells, roofs, halls, lobbies, stairways, entrances and exits, basements, yards and gardens.

Detached: When a structural element is physically disconnected from another and that connection is necessary to provide a positive connection.

Deteriorate or *Deterioration*: To weaken, disintegrate, corrode, rust or decay and lose effectiveness.

Dwelling: Any structure used and occupied for human habitation, or intended to be so used, and including any accessory structure, outhouse or appurtenances belonging thereto or usually enjoyed therewith. "Dwelling" includes the following:

- *Dwelling Unit*: A single unit providing complete, independent living facilities for one (1) or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation.
- *Multiple Dwelling*: A structure or portion thereof designed for occupancy by three (3) or more families living independently in which they may or may not share common entrances and/or other spaces. Individual dwelling units may be owned as condominiums or offered for rent.
- *Single Family Dwelling*: A Detached dwelling unit with kitchen and sleeping facilities, designed for occupancy by one (1) family.
- *Two Family Dwelling*: A Structure designed or arranged to be occupied by two (2) families living independently, with the structure having only two (2) dwelling units.

Easement: That portion of land or property reserved for present or future use by a person or agency other than the legal fee owner(s) of the property. The easement shall be permitted to be for use under, on or above a said lot or lots.

Guard: A building component or a system of building components located at or near the open sides of elevated walking surfaces that minimizes the possibility of a fall from the walking surface to a lower level.

Habitable Space: Space in a structure for living, sleeping, cooking or eating. Bathrooms, toilet rooms, closets, halls, storage or utility spaces, and similar areas are not considered habitable spaces.

Housekeeping Unit: A room or group of rooms forming a single habitable space equipped and intended to be used for living, sleeping, cooking and eating which does not contain, within such a unit, a toilet, lavatory and bathtub or shower.

Imminent Danger: A condition that could cause serious or life-threatening injury or death at any time.

Infestation: The presence, within or contiguous to a structure or premises, of insects, rats, vermin or other pests.

Inoperable Vehicle: A vehicle or part thereof that meets one (1) or more of the following conditions:

(1) Is incapable of moving under its own power;

(2) Is in an obvious state of disrepair;

(3) Lacks major or essential mechanical or body parts;

(4) Is junked or partially dismantled;

(5) Is without one (1) or more wheels or fully inflated tires;

(6) Has been burned or flooded throughout;

(7) Has one (1) or more broken windows; or

(8) Cannot be driven legally on public streets under state or local laws.

Inspector: A Code Enforcement Inspector for the City. Synonymous with Code Enforcement Officer.

Labeled: Equipment, materials or products to which have been affixed a label, seal, symbol or other identifying mark of a nationally recognized testing laboratory, approved agency or other organization concerned with product evaluation that maintains periodic inspection of the production of the above-labeled items and whose labeling indicates either that the equipment, material or product meets identified standards or has been tested and found suitable for a specified purpose.

Let For Occupancy or *Let*: To permit, provide or offer possession or occupancy of a structure or premises by a person who is or is not the legal owner of record thereof, pursuant to a written or unwritten lease, agreement or license, or pursuant to a recorded or unrecorded agreement or contract for the sale of land.

Litter: Combustible and noncombustible waste materials, including household garbage, paper, rags, cartons, boxes, wood, rubber, leather, tin cans, metals, glass, crockery, dust, building materials not in use, tree branches, fallen trees and limbs, Yard trimmings and other similar materials.

Neglect: The lack of proper maintenance for a structure or premises.

Nuisance: Any condition that is dangerous to human life or is detrimental to the health, safety or welfare of the public, as determined by the Code Official, including, but not limited to, the following:

(1) Any public nuisance known at common law or in equity jurisprudence;

(2) Any attractive nuisance, which may prove detrimental to children whether in a structure, on the premises of a structure, or upon an unoccupied lot. This includes any abandoned wells, shafts, basements or excavations; abandoned refrigerators and motor vehicles; any structurally unsound fences or structures; or any lumber, trash, debris or vegetation which may prove a hazard for inquisitive minors;

(3) Any Unsafe Structure, as defined in this Chapter;

(4) Insufficient Ventilation or illumination;

(5) Inadequate or unsanitary sewage or plumbing facilities;

(6) Uncleanliness, as determined by the Code Official in accordance with this chapter;

(7) Whatever renders air, food or drink unwholesome or detrimental to the health of human beings; or

(8) Inoperable Vehicles and Abandoned Vehicles.

Occupant: Any individual living or sleeping in a structure or having possession of a space within a structure.

Openable Area: That part of a window, skylight or door which is available for unobstructed ventilation and which opens directly to the outdoors.

Operator: Any person who has charge, care or control of a structure or premises that is offered or let for occupancy.

Owner: Any person holding title to the property, as stated in the records of the Hamilton County Property Assessor's Office.

Parties In Interest: All persons who have an interest of record.

Person: An individual, corporation, partnership, organization or any other group acting as a unit.

Pest Elimination: The control and elimination of insects, rodents or other pests by eliminating their harborage places, by removing or making inaccessible materials that serve as their food or water and/or by other approved methods of eliminating pests.

Plumbing: The practice, materials and fixtures used in the installation, maintenance, extension and alteration of all piping, fixtures, appliances and appurtenances in connection with any of the following: sanitary drainage or storm drainage facilities, the venting system and the public or private water supply systems, within or adjacent to any structure or conveyance. "Plumbing" also includes the practice of and materials used in the installation, maintenance, extension or alteration of stormwater, liquid waste, or sewerage and water supply systems, or their connection with any point of public disposal or other acceptable terminal.

Premises: A lot, plot or parcel of land, easement or public way, including any structures thereon.

Public Area: An unoccupied open space adjoining a structure and on the same property that is permanently maintained accessible to the fire department and free of all encumbrances that might interfere with its use by the fire department.

Public Way: Any street, alley or similar parcel of land essentially unobstructed from the ground to the sky, which is deeded, dedicated or otherwise permanently appropriated to the public for public use.

Repair: The replacement of existing work with an approved material similar to that used in the existing work, not including additional work that would change the structural safety of the structure, that would affect or change required exit facilities, a vital element of an elevator, plumbing, gas piping, wiring or heating installation, or that would be in violation of a provision of law or ordinance. The terms "repair" and "repairs" shall not apply to any change of construction.

Rooming House: A Structure arranged or occupied for lodging, with or without meals, for compensation and not occupied as a single family dwelling or a two family dwelling.

Rooming Unit: Any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living, but not for cooking purposes.

Sleeping Unit: A room or space in which people sleep, which can also include permanent provisions for living, eating and either sanitation or kitchen facilities, but not both. Such rooms and spaces that are also part of a dwelling unit are not sleeping units.

Structure: That which is built or constructed or a portion thereof.

Tenant: A person, whether or not the legal owner of record, occupying a structure or portion thereof as a unit.

Toilet Room: A room containing a water closet or urinal but not a bathtub or shower.

Ultimate Deformation: The deformation at which failure occurs and which shall be deemed to occur if the sustainable load reduces to eighty (80) percent or less of the maximum strength.

Vehicle: A machine that is propelled by power other than muscular power and that is designed to travel along the ground by use of wheels, treads, runners or slides and to transport persons or property or to pull machinery, and shall include, without limitation, automobiles, trucks, trailers, travel trailers, motorcycles, tractors, buggies and wagons.

Ventilation: The natural or mechanical process of supplying conditioned or unconditioned air to, or removing such air from, any space.

Workmanlike: Executed in a skilled manner, such as generally plumb, level, square, in line, undamaged and without marring adjacent work.

Yard: An open space on the same lot with a structure.
(Ord. No. 13442, § 1, 3-12-19; Ord. No. 14248, § 1, 7-8-25)

Secs. 21-23—21-30. Reserved.

ARTICLE II. ADMINISTRATION

Sec. 21-31. Authority to administer and enforce chapter.

The authority for the administration and enforcement of this chapter shall rest with the Code Enforcement Office of the Department of Public Works or Chief Building Official ("Public Works Department").
(Ord. No. 13442, § 1, 3-12-19; Ord. No. 14248, § 2, 7-8-25)

Sec. 21-32. Duties and powers of the Code Official; interpretation of provisions.

The Code Official is authorized and directed to enforce the provisions of this chapter. The Code Official shall have the authority to render interpretations of this chapter and to adopt policies and procedures to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this chapter and shall not have the effect of waiving requirements specifically provided for in this chapter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-33. Code Enforcement Inspectors.

(a) City employees designated as Code Enforcement Inspectors shall assist the Code Official in the enforcement of the provisions of this Chapter, in accordance with the prescribed policies and procedures of the City. Inspectors shall have the powers delegated by the Code Official, consistent with the provisions and intent of this chapter.

(b) Inspectors shall be appointed as special police officers of the City only after written request by the Code Official, successful completion of a background investigation, and approval by resolution of the City Council. After being sworn by a judge of the Chattanooga City Court ("City Court"), the holders of such special police commissions shall have, possess and exercise every power granted by such commissions, but such special police officers shall not be treated or classified as regular police officers of the City.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-34. Inspections.

The Code Official shall make all required inspections and may accept reports of inspection by approved agencies or individuals, provided that such reports are in writing and certified by a responsible officer of such approved agency or by the responsible individual. The Code Official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

The Code Official shall inspect any structure, accessory structure or premises about which complaints are filed by any person to the effect that said item is or may be existing in violation of this chapter.

The Code Official shall inspect any structure, accessory structure or premises reported by the fire or police department, department of health or municipal judge as probably existing in violation of the provisions of this chapter.

The Code Official shall inspect any structure, accessory structure or premises that the Code Official has reasonable cause to believe is in violation of this chapter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-35. Right of entry.

Where it is necessary to make an inspection to enforce the provisions of this chapter, or whenever the Code Official has reasonable cause to believe that there exists in or on a structure or upon a premises a condition in violation of this chapter, the Code Official is authorized to enter the structure or premises at reasonable times to inspect or perform the duties imposed by this chapter, provided that if such structure or premises is occupied, the Code Official shall present credentials to the occupant and request entry. If such structure or premises is unoccupied and secured, the Code Official shall first make a reasonable effort to locate the owner, owner's authorized agent or other person having charge or control of the structure or premises and request entry. If entry is refused, the Code Official shall have recourse to the remedies provided by law to secure entry, including seeking an Administrative Inspection Warrant in accordance with T.C.A. § 68-120-117. If such structure or premises is unoccupied and unsecured, the Code Official is authorized to enter the structure or premises to enforce the provisions of this chapter without seeking permission from or attempting to locate the owner or owner's authorized agent.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-36. Identification.

The Code Official and Inspectors shall carry proper identification when inspecting structures or premises in the performance of duties under this chapter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-37. Interference with enforcement.

It is a violation if any owner, occupant or other person refuses, impedes, inhibits, interferes with, restricts, or obstructs entry and free access to any part of the structure or premises where inspection authorized by this Code is sought. The Code Official may issue a citation to City Court for violation of this section or may seek, in a court of competent jurisdiction, an order that such owner, occupant or other person cease and desist with such interference.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-38. Fees.

The fees for activities and services performed by the Code Enforcement Office shall be in accordance with the fee schedule duly adopted by the City Council.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-39. Official records.

The Code Official shall keep official records of all business and activities of the Code Enforcement Office related to the enforcement of this chapter. Such records shall be retained in the official records for the period required by law for retention of public records.
(Ord. No. 13442, § 1, 3-12-19)

Secs. 21-40—21-55. Reserved.

ARTICLE III. ENFORCEMENT

DIVISION 1. VIOLATIONS AND PROSECUTION THEREOF; LIENS

Sec. 21-56. Approval by the Code Official.

The Code Official shall apply the following standards in determining whether to grant approval, for purposes of this chapter:

(a) *Modifications*. Whenever there are practical difficulties involved in carrying out the provisions of this chapter, the Code Official shall have the authority to grant modifications for individual cases upon application of the owner or owner's authorized agent, provided the Code Official shall first find that special individual reason makes the strict letter of this chapter impractical and that the modification is in compliance with the intent and purpose of this chapter and does not lessen health, life and fire safety requirements. The details of action granting modifications shall be recorded and entered in the Code Enforcement Office files.

(b) *Alternative materials, design and methods of construction and equipment.* The provisions of this chapter are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this chapter, provided that any such alternative has been approved. An alternative material, design or method of construction shall be Approved where the Code Official finds that the proposed design is satisfactory and complies with the intent of the provisions of this chapter and that the material, method or work offered is, for the purpose intended, not less than the equivalent of that prescribed in this chapter in quality, strength, effectiveness, fire resistance, durability and safety. Where the alternative material, design or method of construction is not approved, the Code Official shall respond in writing, stating the reasons why the alternative was not approved.

(c) *Required testing.* Whenever there is insufficient evidence of compliance with the provisions of this chapter, or evidence that a material or method does not conform to the requirements of this chapter, or in order to substantiate claims for alternative materials or methods, the Code Official shall have the authority to require tests to be made as evidence of compliance at no expense to the City.

(1) *Test methods.* Test methods shall be as specified in this chapter or by other recognized test standards. In the absence of recognized and accepted test methods, the Code Official shall be permitted to approve appropriate testing procedures performed by an Approved agency.

(2) *Test reports.* Reports of tests shall be retained by the Code Official for the period required by law for retention of public records.

(d) *Used material and equipment.* The use of used materials which meet the requirements of this chapter for new materials is permitted. Materials, equipment and devices shall not be reused unless such elements are in good repair or have been reconditioned and tested where necessary, placed in good and proper working condition and approved by the Code Official.

(e) *Approved materials and equipment.* Materials, equipment and devices approved by the Code Official shall be constructed and installed in accordance with such approval.

(f) *Research reports.* Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this Chapter, shall consist of valid research reports from approved sources.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-57. Violations generally; prosecution, penalties and appeals.

(a) *Unlawful acts.* It shall be unlawful for any Person to be in conflict with or in violation of any of the provisions of this chapter.

(b) *Notice regarding a violation.* In the event of a violation of this chapter, the Code Official shall send a notice or summons describing the violation.

(c) *Prosecution of violation.* Any Person who violates a provision of this chapter or fails to comply with any of the requirements thereof shall be prosecuted within the limits provided by state or local laws. Such violations may result in being referred to:

(1) City Court;

(2) An Administrative Hearing Officer; or

(3) The Public Officer for demolition of a Structure.

(d) *Violation penalties.* Violations of this Chapter may result in the following penalties:

(1) For matters referred to City Court, each violation may result in a fine not to exceed fifty dollars ($50.00), plus court costs. Each day that a violation continues after due notice has been provided shall be deemed a separate offense, subject to an additional fine and court costs.

(2) Penalties for violations referred to the Administrative Hearing Officer are provided in Article VI.

(3) Cases referred to the Public Officer may result in demolition of the structure.

(e) *Abatement of violation.* The imposition of penalties for violations shall not preclude the City from instituting appropriate action to abate a violation, to prevent illegal occupancy of a structure or premises, or to stop an illegal act, conduct, business or utilization of a structure or premises.

(f) *Means of Appeal.* Appeal of a City Court judgment shall be to the Hamilton County Circuit Court within ten (10) days thereafter, Sundays exclusive, as provided by law.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-58. Notices and orders; form; method of service.

(a) *Notice to Owner and/or Person responsible*. Whenever the Code Official determines that there has been a violation of this chapter or has grounds to believe that a violation has occurred, notice shall be given in the manner prescribed in this section to the owner and/or person responsible for the violation.

(b) *Form*. Notice shall be in accordance with the following:

(1) Be in writing;

(2) Include a description of the real property sufficient for identification;

(3) Include a statement of the violation or violations and a deadline allowing a reasonable time to make the repairs and improvements required to bring the structure or premises into compliance with the provisions of this chapter; and

(4) Include a statement of the City's right to file a lien if the City abates the violation.

(c) *Method of service*. Such notice shall be deemed to be properly served if a copy thereof is:

(1) Delivered personally;

(2) Sent by certified or first-class mail addressed to the owner and/or person responsible for the violation; or

(3) Posted in a conspicuous place on the real property affected by such notice.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-59. Unauthorized tampering with City documents or signs.

Signs or placards posted or affixed by the Code Official shall not be mutilated, destroyed, tampered with or removed without authorization from the Code Official. It is a violation to engage in such conduct.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-60. Owner responsible for violations on owner's property.

Although a person responsible for a violation may be notified of and/or cited for a violation, the owner of the real property where the violation exists is ultimately responsible for ensuring that the structure and premises are maintained in compliance with the provisions of this chapter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-61. Transfer of ownership of property under violation notice.

It shall be unlawful for the owner of any structure or premises who has received a violation notice to sell, transfer, mortgage, lease or otherwise dispose of such structure or premises to another until all violations have been corrected or until such owner or the owner's authorized agent shall first furnish the grantee, transferee, mortgagee or lessee a true copy of each violation notice issued by the Code Official and shall furnish to the Code Official a signed and notarized statement from the grantee, transferee, mortgagee or lessee acknowledging the receipt of such violation notice and fully accepting the responsibility, without condition, for making the corrections or repairs required by such violation notice. For purposes of this section, a violation notice includes a notice of violation, a summons, an emergency order to comply or a demolition order. If the owner refuses, neglects or fails to comply with the provisions of this section, the owner may be referred to City Court or the Administrative Hearing Officer for a hearing on the matter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-62. Municipal lien for costs; collection of liens.

(a) Pursuant to the authority granted under T.C.A. §§ 13-21-101 et seq., the amount of the cost of repairs, alterations or improvements, or of vacating and closing, or of demolishing and removing a structure, as well as administrative fees, shall be assessed against the owner and shall be a lien on the property in favor of the municipality, second only to liens of the state, county and municipality for taxes, any lien of the municipality for special assessments, and any valid lien, right or interest in such property duly recorded or duly perfected by filing prior to the filing of such notice. These costs shall be collected by the municipal tax collector or county trustee at the same time and in the same manner as property taxes are collected.

(b) If the Owner fails to pay the costs and administrative fees, they may be collected at the same time and in the same manner as delinquent property taxes are collected and shall be subject to the same penalty and interest as delinquent property taxes as set forth in T.C.A. §§ 67-5-2010 and 67-5-2410.

(c) In addition, the municipality may collect the costs assessed against the owner through an action for debt filed in any court of competent jurisdiction. The municipality may bring one (1) action for debt against more than one (1) or all of the Owners of properties against whom the costs have been assessed, and the fact that multiple owners have been joined in one (1) action shall not be considered by the court as a misjoinder of parties.

(d) Any lien placed on a property pursuant to this Section shall be memorialized in a written lien document. Such lien document shall be signed by the City's Chief Code Enforcement Inspector, or her or his designee, and shall be recorded with the Hamilton County Register of Deeds.

(e) In the event a lien placed on a property pursuant to this Section is paid in full, or in the event the City determines, in its sole discretion, that a lien should be released, a written release document shall be prepared, signed by the City's Chief Code Enforcement Inspector, or her or his designee, and shall be recorded with the Hamilton County Register of Deeds in the normal course of business.
(Ord. No. 13442, § 1, 3-12-19; Ord. No. 14038, § 1, 10-3-23)

Secs. 21-63—21-75. Reserved.

DIVISION 2. CONDEMNATION

Sec. 21-76. Unsafe structure defined.

For purposes of this chapter, the term "unsafe structure" shall include any of the following:

(a) *Unsound Structure.* An unsound Structure is one that is found to be dangerous to the life, health, property or safety of the public or occupants of the structure because it does not provide minimum safeguards to protect or warn occupants in the event of fire or is so damaged, decayed, dilapidated, structurally unsafe or of such faulty construction or unstable foundation that partial or complete collapse is possible.

(b) *Unsafe equipment.* Unsafe equipment includes any boiler, heating equipment, elevator, moving stairway, electrical wiring or device, flammable liquid containers or other equipment on the premises or within the structure which is in such disrepair or condition that such equipment is a hazard to life, health, property or safety of the occupants of the structure or premises or to the public.

(c) *Structure unfit for human occupancy.* A Structure is unfit for human occupancy when, because of the degree to which it is in disrepair or lacks maintenance, such structure is unsanitary, vermin- or rat-infested, contains filth and contamination, or lacks ventilation, illumination, sanitary or heating facilities, or other essential equipment required by this chapter or because the location of the structure constitutes a hazard to the occupants of the structure or to the public.

(d) *Unlawful Structure.* An unlawful Structure is one found in whole or in part to be occupied by more persons than permitted under this chapter or that was erected, altered or occupied contrary to law.

(e) *Dangerous Structure or Premises.* For the purposes of this chapter, any structure or premises that has any of the conditions or defects described below shall be considered dangerous:

(1) Any door, aisle, passageway, stairway, exit or other means of egress that does not conform to the Building Code or the City's fire codes as related to the requirements for existing buildings.

(2) The walking surface of any aisle, passageway, stairway, exit or other means of egress is so warped, worn loose, torn or otherwise unsafe as to not provide safe and adequate means of egress.

(3) Any portion of a Structure that has been damaged by fire, earthquake, wind, flood, deterioration, neglect, abandonment, vandalism or by any other cause to such an extent that it is likely to partially or completely collapse or to become detached or dislodged.

(4) Any portion of a Structure that is not of sufficient strength or stability or is not so anchored, attached or fastened in place so as to be capable of resisting natural or artificial loads of one and one-half (1½) the original designed value.

(5) The Structure, because of dilapidation, Deterioration, decay, faulty construction, the removal or movement of some portion of the ground necessary for support or for any other reason, is likely to partially or completely collapse or some portion of the foundation or underpinning of the structure is likely to fail or give way.

(6) The Structure is clearly unsafe for its use and occupancy.

(7) The Structure is neglected, damaged, dilapidated, unsecured or abandoned so as to become an attractive nuisance to children who might play in the structure to their danger or become a harbor for persons to commit a nuisance or an unlawful act.

(8) Any Structure has been constructed, exists or is maintained in violation of any specific requirement or prohibition of the Building Code or the City's fire codes or of any law or ordinance to such an extent as to present either a substantial risk of fire, building collapse or any other threat to life or safety.

(9) A Structure, used or intended to be used for dwelling purposes, because of inadequate maintenance, dilapidation, decay, damage, faulty construction or arrangement, inadequate light, ventilation, mechanical or plumbing system, or otherwise, is determined by the Code Official to be unsanitary, unfit for human habitation or in such a condition that is likely to cause sickness or disease.

(10) Any Structure, because of a lack of sufficient or proper fire-resistance-rated construction, fire protection systems, electrical system, fuel connections, mechanical system, plumbing system or other cause, is determined by the Code Official to be a threat to life or health.

(11) A Structure, used or intended to be used for dwelling purposes, which does not have an installed kitchen sink in each dwelling unit properly connected to the hot and cold potable water supply pipes and the sewer system.

(12) A Structure, used or intended to be used for dwelling purposes, which does not have an installed tub or shower and lavatory properly connected to the water pipes and sewer system.

(13) A Structure which does not have a flush-type water closet located in a room affording privacy and properly connected to the water pipes and sewer system.

(14) A Structure which does not have installed electric lighting facilities consisting of at least two (2) separate wall type convenience outlets or one (1) ceiling type fixture and one (1) wall type outlet for every habitable room, to be installed in accordance with the City's electrical code.

(15) A Structure wherein heat is not furnished from a central heating plant does not have fireproof chimney flues so that habitable rooms can be heated. Heating equipment must be permanently installed, properly vented and maintained in good order and repair.

(16) A Structure whose walls or other vertical members list, lean or buckle to such an extent that a plumb line suspended from the top edge of such a member falls outside of a distance of its base equal to one-third (1/3) the thickness of such member.

(17) A Structure which, exclusive of the foundation, has support members which have deteriorated to such an extent as to be unable to safely support the applied loads or which have forty (40) percent damage or Deterioration of the non-supporting enclosing or outside walls or covering.

(18) A Structure which has improperly distributed loads upon the floors or roofs or in which the same are overloaded or which have insufficient strength to be reasonably safe for the purpose used.

(19) A Structure which has parts thereof which are so attached that they may fall and injure persons or property.

(20) A Structure which does not have an unobstructed means of egress leading to an open space at ground level.

(21) A Structure which does not have the window area for each habitable room equal to at least eight (8) percent of the total floor area of such room.

(22) A Structure which does not have Ventilation provided by windows equal to a minimum of forty-five (45) percent of the openable window area size of each room, except where there is supplied some device affording adequate ventilation and approved by the Code Official.

(23) Any portion of a Structure remains on a site after the demolition or destruction of the structure or whenever any structure is abandoned so as to constitute an attractive nuisance or hazard to the public.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-77. Condemnation of unsafe structures.

All unsafe structures within the terms of this division are deemed public nuisances and are subject to condemnation pursuant to the provisions of this division. For purposes of this chapter, such unsafe structures that have been condemned may be referred to herein as "condemned structures."
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-78. Emergency order to comply; failure to comply.

(a) Within one (1) business day of condemning a structure, the Code Official shall issue an emergency order to comply to the owner, owner's authorized agent or person responsible for the condemned structure stating the nature of the violation and the date by which the structure must be brought into compliance.

(b) Failure to comply with the Emergency Order to Comply may result in the owner's being issued a citation to City Court.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-79. Request for hearing on condemnation.

The owner of a condemned structure may, within fifteen (15) days of said structure being condemned, seek a hearing in City Court to contest the condemnation by directing a request for a hearing to the Code Official. The Code Official shall schedule a hearing, to be held within a reasonable time, with the City Court.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-80. Occupancy of condemned structure prohibited.

(a) Upon being Condemned, an occupied Structure shall be vacated immediately.

(b) Any Person who occupies a Condemned Structure or Premises or operates placarded equipment, and any owner or person responsible for a structure or premises who allows anyone to occupy a condemned structure or premises or to operate placarded equipment, shall be in violation of this chapter. Such conduct also may constitute a Class B misdemeanor under T.C.A. § 13-21-110.

(c) No Person shall keep, harbor, maintain or allow any companion animal, as defined in Chapter 7 of the City Code, within or upon a condemned structure or premises.

(d) A Person may enter a Condemned Structure only during daylight hours and solely for the purpose of removing their possessions, securing the structure, making the required repairs, removing the hazardous condition or demolishing the structure.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-81. Placard of condemnation; unauthorized removal of placard prohibited.

(a) Whenever the Code Official has Condemned a Structure or Premises, the Code Official shall post, in a conspicuous place on or about said structure or premises, a placard bearing the word "condemned" and a statement of the penalties provided for occupying the structure or premises or removing the placard. The posting of said placard is in addition to issuance of an emergency order to comply.

(b) The Code Official shall remove the Condemnation placard, or authorize the removal of said placard, whenever the defects upon which the condemnation action were based have been eliminated and the owner of the condemned structure fully complies with Section 21-82.

(c) Any Person who defaces, destroys or removes a Condemnation placard without the authorization of the Code Official is in violation of this chapter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-82. Certificate of occupancy required before re-occupancy.

(a) Prior to the reoccupation of a Condemned Structure, the Owner shall correct all code violations, bring the structure and premises into compliance with this chapter and, where relevant, the Building Code, and obtain a certificate of occupancy from the City's building department.

(b) Notwithstanding Subsection (a), if a Structure is Condemned for a violation that may legally be repaired without a permit from the City's building department, then the Code Official may lift the condemnation without the owner first obtaining a certificate of occupancy.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-83. Renting unsafe or condemned structures prohibited.

It shall be unlawful for any person to rent or offer for rent any unsafe structure or condemned structure. A certificate of occupancy shall be obtained before any such structure is rented, leased or let for occupancy.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-84. Repair or demolition of unsafe structures.

(a) All Condemned Structures shall be Repaired or demolished as provided in this chapter. The following criteria shall be used by the Code Official in ordering repair or demolition:

(1) A Condemned Structure shall be ordered Repaired if it can reasonably be repaired so that it will no longer exist in violation of this chapter or other provisions of the City Code.

(2) A Condemned Structure shall be ordered demolished if the Code Official finds that one (1) or more of the following conditions exists with respect to said structure:

(i) It is fifty (50) percent or more damaged, decayed or deteriorated;

(ii) It cannot be Repaired so as to comply with the terms of this chapter;

(iii) It is a fire hazard; or

(iv) It exists or was erected in violation of the provisions of this chapter or any provision of the City Code or state statute.

(b) Work to repair or demolish the condemned structure shall commence within a reasonable time, not to exceed thirty (30) days, after issuance of the emergency order to comply and shall be completed within a reasonable time, not to exceed the time provided in the emergency order to comply.

(c) In all cases of demolition, each structure is to be completely demolished, and debris removed from the site, including footings, basement walls and floors at or below ground level (unless otherwise specified) with all areas below ground level to be completely filled in a manner to insure proper drainage across the filled and unfilled areas. All wells, cisterns, septic tanks and cesspools shall be properly filled to grade with the existing terrain in a manner that will insure proper drainage across same without causing erosion. Vegetation, with the exception of trees (unless otherwise specified), will be cut to a height of no more than three (3) inches and the premises raked clean.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-85. Authority to disconnect service utilities.

The Code Official shall have the authority to authorize disconnection of utility service to a structure or system regulated by this chapter in case of emergency where necessary to eliminate an immediate hazard to life or property or when such utility connection has been made without approval. The Code Official shall notify the serving utility and, whenever possible, the owner and occupant of the structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection, the owner or occupant of the structure or service system shall be notified in writing as soon as practical thereafter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-86. Condemnation of vacant unsafe structures; duty to secure; liens.

(a) *Condemnation*. If an Unsafe Structure is vacant and is not in danger of structural collapse, the Code Official is authorized to post a placard of condemnation on the structure or premises and to order the structure closed up as provided in this division so as not to be an attractive nuisance.

(b) *Duty to secure; lien*. Upon failure of the owner or the owner's authorized agent to close up the vacant condemned structure or premises within the time specified in the order, the Code Official shall cause the structure and/or premises to be closed and secured through any available public agency or by contract or arrangement by private persons, and the cost thereof, plus administrative fees, shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-87. Closing of vacant structures.

(a) *Duty to remove waste and secure Structure*. Every Person owning or responsible for any vacant structure shall remove all combustible waste from the structure, then lock, barricade or otherwise secure all windows, doors and openings in the structure to prohibit entry by unauthorized persons.

(b) *Boarding procedures*. Initial boarding of a vacant structure may follow boarding guidelines as described below in either Subsection (1) or (2). If a Structure becomes open and unsecured after the initial boarding, the structure shall be secured in accordance with the boarding requirements in Subsection (2). Additional details may be found in Appendix A of the International Property Maintenance Code, 2015 Edition.

(1) An unsecured vacant Structure that is barricaded pursuant to this Subsection (1) shall be barricaded by using one-half (1/2) inch plywood board or performance-rated OSB secured with screws at least three (3) inches (3) long that have a security star pattern drive head requiring a Torx security star drive screwdriver. Any board placed on an unsecured vacant structure shall be painted a color that is consistent with the color of the structure and shall be cut to fit into any windows, doors or other openings on such unsecured vacant structure.

(2) An unsecured vacant Structure that is barricaded pursuant to this Subsection (2) shall be barricaded by using plywood that is no less than one-half (1/2) inch thick or performance-rated OSB and boarding framing material that is a minimum nominal two (2) inch by four (4) inch solid

sawn lumber. Interior boarding fasteners are required to be a minimum of three-eighths (3/8) inch diameter carriage bolts of such a length as required to penetrate the assembly and as required to adequately attach the washers and nuts. Fasteners attached from the exterior and used to close the access door should be a minimum of three-eighths (3/8) inches in diameter and have a security star pattern drive head requiring a Torx security star drive screwdriver and be a minimum of three (3) inches long. Any board placed on an unsecured vacant structure shall be painted a color that is consistent with the color of the structure and shall be cut to fit into any windows, doors or other openings on such unsecured vacant structure.

(c) *Continued maintenance.* Boarding and cleaning of a structure shall not relieve the owner of the responsibility to repair and maintain the property in conformity with provisions of this chapter, the Building Code and the City Code.

(d) *Boarding not to exceed one (1) year.* No structure shall remain boarded for a period of more than one (1) year. If a structure remains boarded in excess of one (1) year without work starting and proceeding in a timely manner to bring the property into compliance and return it to habitable condition, the owner shall be required to demolish the structure. If the owner does not demolish the structure, the City may demolish the structure and place a lien against the property for the cost of demolition as provided by this chapter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-88. Emergency measures.

(a) *Imminent Danger.* When, in the opinion of the Code Official, there is imminent danger of failure or collapse of a structure which endangers life, or when any structure or part of a structure has fallen and life is endangered by the occupation of the structure, or when there is actual or potential danger to the occupants or those in the proximity of any structure because of explosives, explosive fumes or vapors or the presence of toxic fumes, gases or materials, or operation of defective or dangerous equipment, the Code Official is hereby authorized and empowered to condemn the structure and to order and require the occupants to vacate the premises forthwith. The Code Official shall order the necessary work to be done, including the boarding up of openings, to render such structure temporarily safe whether or not the legal procedure herein described has been instituted and shall cause such other action to be taken as the Code Official deems necessary to meet such emergency.

(b) *Closing streets.* When necessary for public safety, the Code Official shall temporarily close structures and close, or order the authority having jurisdiction to close, sidewalks, streets, public ways and places adjacent to unsafe structures and prohibit the same from being utilized.

(c) *Emergency Repairs or demolition and costs thereof.* When a structure is condemned due to imminent danger, the Code Official or the Building Official shall cause the immediate repair or demolition of such structure as reasonably necessary.

(1) If emergency Repairs are to be made, the Code Official shall employ the necessary labor and materials to perform the required work as expeditiously as possible. Costs incurred in the performance of emergency work shall be paid by the jurisdiction. The legal counsel of the jurisdiction shall institute appropriate action against the owner of the structure and/or premises or the owner's authorized agent for the recovery of such costs.

(2) If the Structure is to be demolished, the cost of demolition by the City shall be a lien on the real property. (Code 1986, § 21-15; Ord. No. 9808, § 1, 11-12-92; Ord. No. 11345, § 2, 11-12-02)

(d) *Hearing*. Any Person ordered to take emergency measures pursuant to this section shall comply with such order forthwith. Said person shall thereafter, upon petition directed to the Code Official within three (3) days of said order, be afforded a hearing on the matter in City Court.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-89. Stop work order.

(a) *Authority*. Whenever the Code Official finds any work regulated by this chapter being performed in a manner contrary to the provisions of this chapter or in a dangerous, unsafe or unlawful manner, the Code Official is authorized to issue a stop work order.

(b) *Issuance*. A Stop Work Order shall be in writing and shall be given to the owner of the property, to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work is authorized to resume.

(c) *Emergencies*. Where an emergency exists, the Code Official shall not be required to give a written notice prior to stopping the work.

(d) *Failure to comply*. Any Person who continues any work after having been given a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, may be cited to City Court and liable for a fine not to exceed fifty dollars ($50.00) for each day that the violation continues.
(Ord. No. 13442, § 1, 3-12-19)

Secs. 21-90—21-100. Reserved.

DIVISION 3. DEMOLITION

Sec. 21-101. Purpose.

The City finds that there exists, within its limits, structures which are unfit for human occupation or use due to dilapidation, defects increasing the hazards of fire, accident or other calamities, lack of ventilation, light or sanitary facilities, or due to other conditions rendering such structures unsafe or unsanitary, or dangerous or detrimental to the health, safety or morals, or otherwise inimical to the welfare of the residents of the City. Therefore, the City exercises its police powers pursuant to T.C.A. §§ 13-21-101 *et seq.* to repair, close or demolish the aforementioned Structures in the manner herein provided.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-102. Appointment of Public Officer.

The Mayor of the City ("Mayor") shall designate a Public Officer to exercise the powers prescribed in this division.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-103. Powers of the Public Officer.

The Public Officer shall have authority to hear and decide demolition cases. To that end, the Public Officer is authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the purposes and provisions of this division, including the power to:

(a) Administer oaths and affirmations, conduct hearings, examine witnesses and receive evidence;

(b) Decide whether a Structure shall be demolished in accordance with this division and issue findings of fact and conclusions of law explaining the basis for the decision; and

(c) Enter upon Premises for the purpose of making examinations where necessary, provided that such entries shall be made in such manner as to cause the least possible inconvenience to the person in lawful possession thereof.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-104. Cases referred to Public Officer; criteria to be applied.

(a) The Code Official shall refer to the Public Officer cases involving unsafe structures that the Code Official deems appropriate for demolition under this chapter.

(b) The Public Officer shall apply the following criteria in determining whether a structure shall be repaired or demolished:

(1) If Repair, Alteration or improvement of the Structure can be made at a reasonable cost which is less than fifty percent (50%) of the value of the structure, then the owner shall be required, within a reasonable time established by the public officer, to repair, alter or improve the structure so that it complies with the provisions of this chapter.

(2) If Repair, Alteration or improvement of the Structure cannot be made at a reasonable cost which is less than fifty percent (50%) of the value of the structure, then the owner shall be required, within a reasonable time established by the Public Officer, to remove or demolish such structure.

(c) For the purposes of this Division, the value of the Structure shall be assumed to be that established by the Hamilton County Property Assessor's Office.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-105. Notice, evidence and orders related to demolition hearings.

(a) *Notice*. The Code Official shall provide written notice of the demolition hearing to the owner of and parties in interest of the Structure proposed for demolition, stating the date, time and location of the hearing. Such notice shall be issued not less than ten (10) days before said hearing.

(b) *Hearing*. The Public Officer shall preside over the demolition hearing. At said hearing, the Public Officer shall:

(1) Hear testimony by the Code Official explaining the basis for the City's request for an order to demolish the structure;

(2) Hear testimony, if any, from the Owner and Parties in Interest relative to the structure;

(3) Exercise the Public Officer's discretion to decide whether to hear testimony from any other persons relative to the structure.

(4) Weigh the evidence presented. However, the rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the Public Officer.

(c) *Written order*. If, after notice and hearing, the Public Officer determines that the structure under consideration meets the demolition criteria set forth in this division, the Public Officer shall state in writing the Public Officer's findings of fact in support of such determination and shall issue and cause to be served upon the owner thereof an order requiring the owner, within the time specified in the order:

(1) To Repair, Alter or improve the Structure so that it complies with the provisions of this chapter; or

(2) To demolish and remove the Structure in accordance with the provisions of this chapter.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-106. Service of notices and orders.

Notices and orders issued pursuant to this division shall be served upon persons either personally or by registered mail. However, if the whereabouts of such persons are unknown and the same cannot be ascertained in the exercise of reasonable diligence, then the serving of such notice or order upon such persons may be made by publishing the same once each week for two (2) consecutive weeks in a newspaper printed and published in the City, or in the absence of such newspaper, in one printed and published in Hamilton County and circulating in the City. A copy of such notice or order also shall be posted in a conspicuous place on the structure or premises affected by the notice or order.

A copy of the Public Officer's written order to demolish a structure also shall be filed for record in the Hamilton County Register of Deeds Office, and such filing shall have the same force and effect as other *lis pendens* notices provided by law.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-107. Authorization for City to demolish structure; salvage materials.

(a) If the Owner or the Owner's authorized agent fails to comply with an order by the Public Officer to remove or demolish the structure within the time specified in the order, the Code Official shall cause the structure to be demolished and removed, either through an available public agency or by contract or arrangement with private persons. The costs of the demolition and removal shall be charged against the real estate upon which the Structure is located and shall be a lien upon such real estate.

(b) If the Structure is removed or demolished by order of the Public Officer, the governing body or other designated officer under said contract or arrangement aforesaid shall have the right to sell the salvage and valuable materials, with the proceeds of such sale credited against the cost of the removal or demolition.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-108. Enjoining enforcement of order.

(a) Any Owner or Party in Interest affected by an order issued by the Public Officer may file a bill in the chancery court for an injunction restraining the City from carrying out the provisions of the order, and the court may, upon the filing of such bill, issue a temporary injunction restraining the City pending the final disposition of the cause; provided, that within sixty (60) days after the posting and service of the order of the Public Officer, such person shall file such bill in the court, as set forth in T.C.A. § 13-21-106.

(b) The chancery court shall hear and determine the issues raised and shall enter such final order or decree as law and justice may require. In all such proceedings, the findings of the Public Officer as to facts, if supported by evidence, shall be conclusive. Costs shall be in the discretion of the court. The remedies herein provided shall be exclusive remedies, and no person affected by an order of the Public Officer shall be entitled to recover any damages for action taken pursuant to any order of the Public Officer, or because of noncompliance by such person with any order of the Public Officer.
(Ord. No. 13442, § 1, 3-12-19)

Secs. 21-109—21-125. Reserved.

ARTICLE IV. EXTERIOR REQUIREMENTS

DIVISION 1. GENERAL REQUIREMENTS

Sec. 21-126. General exterior requirements.

(a) *Scope*. The provisions of this Article shall govern the minimum conditions and requirements for maintenance of the exterior of structures and the premises.

(b) *Responsibility*. The Owner of a Structure or Premises shall maintain the structure, including its exterior, and the premises in compliance with these requirements, except as otherwise provided for in this chapter. A person shall not occupy as owner-occupant, or permit another person to occupy, structures or premises which are not in a sanitary and safe condition and which do not comply with the requirements of this chapter. Occupants of a dwelling unit, rooming unit or housekeeping unit are responsible for keeping in a clean, sanitary and safe condition that part of the dwelling unit, rooming unit, housekeeping unit or premises which they occupy and control.

(c) *Vacant structures and land*. All vacant Structures and premises thereof or vacant land shall be maintained in a clean, safe, secure and sanitary condition so as not to cause a blighting problem or adversely affect public health, safety or welfare.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-127. Exterior property areas.

(a) *Sanitary condition*. All exterior property and Premises shall be maintained in a clean, safe and sanitary condition. The occupant shall keep that part of the exterior property which such occupant occupies or controls in a clean and sanitary condition.

(b) *Grading and drainage*. All Premises shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon or within any structure located thereon. Approved retention areas and reservoirs are exempt from this requirement.

(c) *Sidewalks and driveways*. All sidewalks, walkways, stairs, driveways, parking spaces and similar areas shall be kept in a proper state of repair and maintained free from hazardous conditions.

(d) *Exhaust vents*. Pipes, ducts, conductors, fans or blowers shall not discharge gases, steam, vapor, hot air, grease, smoke, odors or other gaseous or particulate wastes directly upon abutting or adjacent public or private property or that of another tenant.

(e) *Defacement of property*. All exterior surfaces of any structure on any private or public property shall be free from any marking, carving or graffiti. It shall be the responsibility of the owner to restore said surface to an approved state of maintenance and repair.

(f) *Rodent harborage*. All Structures and exterior property shall be kept free from rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by approved processes which are not injurious to human health. After pest elimination, proper precautions shall be taken to eliminate rodent harborage and prevent reinfestation.
(Ord. No. 13442, § 1, 3-12-19)

DIVISION 2. EXTERIOR OF STRUCTURE

Sec. 21-128. Exterior of structure.

(a) *General*. The exterior of a Structure shall be maintained in good repair, structurally sound and sanitary so as not to pose a threat to the public health, safety or welfare.

(b) *Basements and crawl spaces*. Every basement and/or crawl space access way shall be so constructed and maintained as to prevent the entrance of rodents, rain and surface drainage water into the structure. Basements and crawl spaces shall be maintained reasonably free from dampness to prevent conditions conducive to decay or deterioration of the structure.

(c) *Chimneys and towers*. All chimneys, cooling towers, smoke stacks and similar appurtenances shall be maintained structurally safe and sound and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.

(d) *Decorative features*. All cornices, belt courses, corbels, terra cotta trim, wall facings and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.

(e) *Exterior walls*. All exterior walls shall be free from holes, breaks, and loose or rotting materials and shall be maintained weatherproof and properly surface coated where required to prevent deterioration.

(f) *Foundation walls*. All foundation walls shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests.

(g) *Handrails and guards*. Every handrail and Guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

(h) *Overhang extensions*. All overhang extensions, including, but not limited to, canopies, marquees, signs, metal awnings, fire escapes, standpipes and exhaust ducts, shall be maintained in good repair and be properly anchored so as to be kept in a sound condition. When required, all exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.

(i) *Piers*. Piers shall not be leaning or buckling out of plumb from top to bottom more than one-third (1/3) the thickness of the wall. Piers should be free of large cracks that weaken their bearing capacity. Loose or missing masonry units and mortar shall be properly replaced.

(j) *Premises identification*. Structures shall have Approved address numbers placed in a position to be plainly legible and visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of four (4) inches in height with a minimum stroke width of one-half (0.5) inch.

(k) *Protective treatment*. All exterior surfaces, including, but not limited to, doors, door and window frames, cornices, porches, trim, balconies, decks and fences, shall be maintained in good condition. Exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment. Peeling, flaking or chipped paint shall be eliminated, and surfaces repainted. All siding and masonry joints, as well as those between the structure envelope and the perimeter of windows, doors and skylights, shall be maintained weather-resistant and watertight. All metal surfaces subject to rust or corrosion shall be coated to inhibit such rust and corrosion, and all surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. Surfaces designed for stabilization by oxidation are exempt from this requirement.

(l) *Roofs and drainage*. The roof and flashing shall be sound, tight and not have defects that admit rain. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters and downspouts shall be maintained in good repair and free from obstructions. Roof water shall not be discharged in a manner that creates a nuisance.

(m) *Stairways, decks, porches and balconies*. Every exterior stairway, deck, porch and balcony, and all appurtenances attached thereto, shall be maintained structurally sound, in good repair, with proper anchorage and capable of supporting the imposed loads.

(n) *Structural members*. All structural members shall be maintained free from deterioration and shall be capable of safely supporting the imposed dead and live loads.

(o) *Structure security*. Doors, windows and hatchways for dwelling units, rooming units or housekeeping units shall be provided with devices designed to provide security for the occupants and property within.

(1) *Doors*. Doors providing access to a dwelling unit, rooming unit or housekeeping unit that is rented, leased or let shall be equipped with a deadbolt lock designed to be readily openable from the side from which egress is to be made without the need for keys, special knowledge or effort and shall have a minimum lock throw of one (1) inch. Such deadbolt locks shall be installed according to the manufacturer's specifications and maintained in good working order. For purposes of this section, a sliding bolt shall not be considered an acceptable deadbolt lock.

(2) *Windows*. Operable windows located in whole or in part within six (6) feet above ground level or a walking surface below that provide access to a dwelling unit, rooming unit or housekeeping unit that is rented, leased or let shall be equipped with a window sash locking device.

(3) *Basement hatchways*. Basement hatchways that provide access to a dwelling unit, rooming unit or housekeeping unit that is rented, leased or let shall be equipped with devices that secure the units from unauthorized entry.

(p) *Windows, doors and screens.*

(1) Every window, skylight, exterior door, and basement or cellar door and hatchway shall be substantially watertight and rodent-proof and shall be kept in sound working condition. Window panes or an approved substitute shall be maintained without cracks or holes. The window sash shall be properly fitted and weathertight within the window frame.

(2) Every window required for light and Ventilation for habitable rooms shall be capable of being easily opened and secured in any position by the window hardware. Every exterior door shall be provided with proper hardware, be maintained in good condition, and fit reasonably well within its frame so as to substantially exclude rain and wind from entering the structure. All windows and doors shall be provided with acceptable, standard and operable locking devices.

(3) Every structure, dwelling unit, rooming unit and housekeeping unit shall have an unobstructed means of egress leading to an open space at ground level.

(4) Every dwelling unit shall have screens to effectively cover all openable windows and doors. Every door opening to an outdoor space shall have screens and a self-closing device. Every window opening to an outdoor space, used or intended to be used for ventilation, shall have screens. Structures containing central heating furnaces and air conditioning equipment for mechanical ventilation year-round are not required to have screens. Window-type air conditioning units are not included in this exception. Screens shall be fastened to removable frames and have a mesh with a maximum gauge of fourteen (14) by eighteen (18).

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-129. Unsafe conditions.

(a) The following conditions shall be deemed unsafe and shall be Repaired or replaced to comply with the Building Code as required for existing buildings:

(1) The nominal strength of any structural member is exceeded by nominal loads, the load effects or the required strength;

(2) The anchorage of the floor or roof to walls or columns, and of walls and columns to foundations, is not capable of resisting all nominal loads or load effects;

(3) Structures or components thereof that have reached their limit state;

(4) Siding and masonry joints, including joints between the building envelope and the perimeter of windows, doors and skylights, are not maintained, weather-resistant or watertight;

(5) Structural members that have evidence of Deterioration or that are not capable of safely supporting all nominal loads and load effects;

(6) Foundation systems that are not firmly supported by footings, are not plumb and free from open cracks and breaks, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects;

(7) Exterior walls that are not Anchored to supporting and supported elements, are not plumb and free of holes, cracks or breaks and loose or rotting materials, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects;

(8) Roofing or roofing components that have defects that admit rain, roof surfaces with inadequate drainage, or any portion of the roof framing that is not in good repair with signs of deterioration, fatigue or without proper anchorage and incapable of supporting all nominal loads and resisting all load effects;

(9) Flooring and flooring components with defects that affect serviceability or flooring components that show signs of deterioration or fatigue, are not properly anchored or are incapable of supporting all nominal loads and resisting all load effects;

(10) Veneer, cornices, belt courses, corbels, trim, wall facings and similar decorative features not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects;

(11) Overhang extensions or projections, including, but not limited to, trash chutes, canopies, marquees, signs, awnings, fire escapes, standpipes and exhaust ducts, not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects;

(12) Exterior stairs, decks, porches, balconies and all similar appurtenances attached thereto, including guards and handrails, that are not structurally sound, not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects; or

(13) Chimneys, cooling towers, smokestacks and similar appurtenances not structurally sound or not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects.

(Ord. No. 13442, § 1, 3-12-19)

DIVISION 3. SWIMMING POOLS AND OTHER ACCESSORY STRUCTURES

Sec. 21-130. Accessory structures.

All accessory structures shall be maintained structurally sound and in good repair.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-131. Swimming pools, spas and hot tubs.

(a) Swimming pools shall be maintained in a clean and sanitary condition and in good repair.

(b) Private swimming pools, hot tubs and spas, containing water more than twenty-four (24) inches in depth, shall be completely surrounded by a fence or barrier at least forty-eight (48) inches in height above the finished ground level measured on the side of the barrier away from the pool. Gates and doors in such barriers shall be self-closing and self-latching. Where the self-latching device is a minimum of fifty-four (54) inches above the bottom of the gate, the release mechanism shall be located on the pool side of the gate. Self-closing and self-latching gates shall be maintained such that the gate will positively close and latch when released from an open position of six (6) inches from the gatepost. No existing pool enclosure shall be removed, replaced or changed in a manner that reduces its effectiveness as a safety barrier. Spas or hot tubs with a safety cover that complies with ASTM F 1346 shall be exempt from the provisions of this section.
(Ord. No. 13442, § 1, 3-12-19)

DIVISION 4. LITTER AND OVERGROWTH

Sec. 21-132. Accumulation of litter prohibited, deemed nuisance.

(a) All exterior property and Premises, and the interior of every structure, shall be free from any accumulation of litter or garbage.

(b) Every Occupant of a Structure shall dispose of all Litter and garbage in a clean and sanitary manner by placing such matter in an appropriate receptacle.

(c) The maintenance of any real property in a littered condition by any owner or person responsible for such property is hereby declared to be a nuisance.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-133. Litter on occupied or vacant property.

(a) No Person shall throw or deposit Litter on any occupied real property within the City, whether owned by such person or not, except that the owner or person responsible for said property may maintain appropriate receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.

(b) No Person shall throw or deposit Litter on any open or vacant real property within the City, whether owned by such person or not.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-134. Appliances not allowed on exterior premises.

Appliances and similar equipment, whether operable or not, shall not be used, discarded or stored on the exterior premises.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-135. No indoor furniture allowed on exterior premises.

No indoor furniture shall be stored, abandoned or used on the exterior premises.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-136. Overgrowth.

(a) All Premises and exterior property shall be maintained free from grass, weeds or underbrush in excess of ten (10) inches. All noxious weeds shall be prohibited. Bushes, shrubs, vines, groundcover and decorative landscaping shall be properly maintained.

(b) The Owner or Person responsible for the Premises who allows an overgrowth violation to occur may be subject to prosecution. In addition, the City, acting through authorized employees or a contractor hired by the City, shall be authorized to enter upon the property and cut and remove the overgrowth growing thereon, with the costs of abating the violation, plus administrative fees, assessed against the owner.

(c) Any citation for a violation of this Ordinance shall not be issued during the period of a declared natural disaster emergency issued by the Mayor in the location of such emergency.

(d) City approved RainSmart Yards and projects approved through the RainSmart Rewards program that adhere to the program's maintenance requirements shall be exempt from the provisions of this ordinance.
(Ord. No. 13442, § 1, 3-12-19; Ord. No. 13639, § 1, 1-12-21; Ord. No. 14232, § 1, 5-13-25)

Sec. 21-137. Abatement by City and lien for costs thereof; notice; hearing; appeal.

(a) *Notice to correct violation*: If it is determined by the Code Official that any owner of real property has created, maintained or permitted to be maintained on such property the growth of weeds, vines, grass or underbrush or the accumulation of debris, trash, litter or garbage, or any combination of the preceding elements, so as to endanger the health, safety or welfare of other citizens or to encourage the infestation of rats and other harmful animals, the Code Official shall provide notice to the owner to remedy the condition immediately. No notice to correct a violation under this Ordinance shall be issued during any period of a declared emergency issued by the Mayor.

(b) *Form of notice*: The notice shall include the following elements:

(1) A brief statement of this Section, which shall contain the consequences of failing to remedy the noted condition;

(2) The person, office, address and telephone number of the department or person giving notice;

(3) A cost estimate for remedying the noted condition; and

(4) A statement that the Owner is entitled to a hearing and the method for requesting said hearing.

(c) *Service of notice:* The notice shall be sent by United States mail, addressed to the last known address of the owner, and posted to the property.

(d) *Abatement and costs*: If the Owner fails or refuses to remedy the condition within ten (10) days after receiving the notice, the Code Official shall immediately cause the condition to be abated or removed and the cost thereof assessed against the owner. Any abatement costs for a violation of this Ordinance shall not be issued during any period of a declared emergency issued by the Mayor during the term of such emergency. Under the authority granted in T.C.A. § 6-54-113, the municipality may collect the costs assessed against the owner through an action for debt filed in any court of competent jurisdiction. The municipality may bring one (1) action for debt against more than one (1) or all of the Owners against whom such costs have been assessed, and the fact that multiple owners have been joined in one (1) action shall

not be considered by the court as a misjoinder of parties. Upon the filing of the notice with the Hamilton County Register of Deeds Office, the costs shall be a lien on the property in favor of the municipality, second only to liens of the state, county and municipality for taxes, any lien of the municipality for special assessments, and any valid lien, right or interest in such property duly recorded or duly perfected by filing, prior to the filing of such notice. These costs shall be collected by the municipal tax collector or county trustee at the same time and in the same manner as property taxes are collected. If the owner fails to pay the costs, they may be collected at the same time and in the same manner as delinquent property taxes are collected and shall be subject to the same penalty and interest as delinquent property taxes.

(e) *Owner-occupied property*: When the Owner of an owner-occupied residential property fails or refuses to remedy the condition within ten (10) days after receiving the notice, the Code Official shall immediately cause the condition to be abated or removed, with the costs to be assessed against the owner. Any abatement costs for a violation of this Ordinance shall not be issued during any period of a declared emergency issued by the Mayor during the term of such emergency. Subsection (d) shall apply to the collection of costs against the owner of an owner-occupied residential property, except that the municipality shall wait until cumulative charges for remediation equal or exceed five hundred dollars ($500.00) before filing the notice with the Hamilton County Register of Deeds Office and the charges becoming a lien on the property. After this threshold has been met and the lien attaches, charges for costs for which the lien attached are collectible as provided in Subsection (d) for these charges.

(f) *Hearing and appeal*: A Person aggrieved by the determination made in Subsection (a) may request a hearing within ten (10) days following the receipt of the notice. Failure to make the request within this time shall without exception constitute a waiver of the right to a hearing. A request for a hearing shall be directed to the Code Official, who shall schedule a hearing in City Court within a reasonable time. Any person aggrieved by an order of the City Court may seek judicial review in Hamilton County Circuit Court of said order within ten (10) days, excluding Sundays. The time period established in Subsection (d) shall be stayed during the pendency of a hearing.
(Ord. No. 13442, § 1, 3-12-19; Ord. No. 13639, § 1, 1-12-21; Ord. No. 13985, § 1, 6-13-23)

Secs. 21-138—21-150. Reserved.

DIVISION 5. ABANDONED AND INOPERABLE VEHICLES

Sec. 21-151. Abandoned vehicles prohibited; towing authorized.

(a) No Person shall park, store or leave, or permit the parking, storing or leaving of, within the city an abandoned vehicle or any vehicle for such time and under such circumstances so as to reasonably appear to have been abandoned.

(b) Whenever it appears that a violation of this Section has occurred, the Code Official shall provide written notice of the violation to the owner of the vehicle. The notice shall include a statement that the vehicle must be moved to a place of lawful storage within ten (10) days. Notice may be provided by leaving a copy of such notice on the vehicle.

(c) If the owner of the vehicle fails, neglects or refuses to move the vehicle in accordance with the notice given pursuant to this section, the owner shall be in violation and may be subject to penalties as provided by law. In addition, the Code Official may seek an order from the City Court authorizing the towing of said vehicle at the expense of the owner of the vehicle.
(Ord. No. 13442, § 1, 3-12-19; Ord. No. 13985, § 1, 6-13-23)

Sec. 21-152. Inoperable vehicles on private property prohibited; permission for removal; citation to City Court; towing authorized.

(a) No Person shall park, store or leave, or permit the parking, storing or leaving of, an inoperable vehicle on any private premises within the city.

(b) Whenever it appears that a violation of this Section has occurred, the Code Official shall provide written notice of the violation to the owner and/or occupant of the premises where the violation is occurring, to the owner of the vehicle, and/or to the person responsible for the violation. The notice shall include a statement that the vehicle must be brought into compliance or moved to a place of lawful storage within ten (10) days. Notice may be provided by leaving a copy of such notice in a conspicuous place on the premises.

(c) Within ten (10) days of the Code Official's providing notice of the violation, the owner or occupant of the premises upon which the violation exists may give written permission to the Code Official for removal of an inoperable vehicle from the premises at the expense of said owner or occupant. The giving of such permission shall be considered compliance with the provisions of this section.

(d) If the Owner and/or Occupant of the Premises and/or the Person responsible for the violation fails, neglects or refuses to bring the vehicle into compliance or to move the vehicle in accordance with the notice given pursuant to this section, said person shall be in violation and may be issued a citation to City Court and, upon conviction, subject to a fine not to exceed fifty dollars ($50.00) for each violation. Each day of continuing violation constitutes a separate offense. In addition, the Code Official may seek an order from the City Court authorizing the removal of said vehicle and entry onto the premises for that purpose. The removal of the vehicle shall be at the expense of the owner of the vehicle and/or premises.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-153. Automotive repair.

(a) It is unlawful for any person to engage in, or permit others to engage in, repair or maintenance of a vehicle in any residential areas under any of the following circumstances:

(1) Using tools not normally found in a residence;

(2) Conducted on vehicles registered to persons not currently residing on the premises; or

(3) Conducted outside a fully enclosed garage and resulting in any vehicle being inoperable for a period in excess of twenty-four (24) hours.

(b) Whenever it appears that a violation of this Section has occurred, the Code Official shall provide written notice of the violation to the owner and/or occupant of the premises where the violation is occurring and/or to the person responsible for the violation. The notice shall include a statement that the vehicle at issue must be brought into compliance or moved to a place of lawful storage within ten (10) days. Notice may be provided by leaving a copy of such notice in a conspicuous place on the premises.

(c) If the Owner and/or Occupant of the Premises and/or the Person responsible for the violation fails, neglects or refuses to stop the unlawful conduct and to move or cause the removal of the vehicle in accordance with the notice given pursuant to this section, said person shall be in violation and may be issued a citation to City Court and, upon conviction, subject to a fine not to exceed fifty dollars ($50.00) for each violation. Each day of continuing violation constitutes a separate offense for each vehicle. In addition, the Code Official may seek an order from the City Court authorizing the removal of said vehicle and entry onto the premises for that purpose.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-154. Removal, storage and disposition of vehicles by City; collection of costs.

(a) Nothing in this Division shall affect the City's power to permit the immediate removal of a vehicle left on public property that constitutes an obstruction to traffic.

(b) Any Inoperable Vehicle or Abandoned Vehicle that is removed by the Code Official shall be stored and/or disposed of in accordance with state law and City laws, policies and procedures.

(c) When the City Abates any nuisance as provided in this Division, the Administrator of the ECD Department or a duly authorized representative shall certify the amount of the expense incurred to abate the nuisance to the Office of the City Attorney, who shall bring suit by attachment or otherwise take action to collect the same, and the City shall have a lien on the property to secure the amount expended to abate such nuisance, which shall be superior to all other contractual liens.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-155. Court's authority to issue orders and warrants.

The City Court shall have the authority to issue all orders and warrants necessary to enforce this division.
(Ord. No. 13442, § 1, 3-12-19)

Secs. 21-156—21-170. Reserved.

ARTICLE V. INTERIOR REQUIREMENTS

DIVISION 1. GENERAL REQUIREMENTS

Sec. 21-171. General requirements for interior of structure.

(a) *General*. The interior of a Structure and equipment therein shall be maintained in good repair, structurally sound and in a sanitary condition. Occupants shall keep that part of the structure which they occupy or control in a clean and sanitary condition. Every owner of a structure containing a rooming house, housekeeping unit, hotel, dormitory, two (2) or more dwelling units or two (2) or more nonresidential occupancies shall maintain, in a clean and sanitary condition, the shared areas or public areas of the structure and exterior property.

(b) *Structural members*. All structural members shall be maintained structurally sound and be capable of supporting the imposed loads.

(c) *Interior surfaces*. All interior surfaces, including windows and doors, shall be maintained in good repair and clean and sanitary condition. Peeling, chipping, flaking or abraded paint shall be repaired, removed or covered. Cracked or loose plaster, decayed wood and other defective surface conditions shall be corrected.

(d) *Stairs and walking surfaces*. Every stair, ramp, landing, balcony, porch, deck or other walking surface shall be maintained in sound condition and good repair.

(e) *Handrails and Guards*. Every handrail and Guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

(f) *Interior doors*. Every interior door shall fit reasonably well within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers or tracks as intended by the manufacturer of the attachment hardware.

(g) *License Requirements*. No corporation, limited liability company or other entity holding five (5) or more dwelling units for rent or lease shall offer same without obtaining a valid business license from the City.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-172. Unsafe conditions.

(a) The following conditions shall be deemed unsafe and shall be repaired or replaced to comply with the Building Code:

(1) The nominal strength of any structural member is exceeded by nominal loads, the load effects or the required strength;

(2) The anchorage of the floor or roof to walls or columns, and of walls and columns to foundations, is not capable of resisting all nominal loads or load effects;

(3) Structures or components thereof have reached their limit state;

(4) Structural members are incapable of supporting nominal loads and load effects;

(5) Stairs, landings, balconies and all similar walking surfaces, including guards and handrails, are not structurally sound, not properly anchored or are anchored with connections not capable of supporting all nominal loads and resisting all load effects;

(6) Foundation systems are not firmly supported by footings, are not plumb and free from open cracks and breaks, are not properly Anchored or are not capable of supporting all nominal loads and resisting all load effects.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-173. Pest elimination.

(a) *Infestation*. All Structures shall be kept free from insect and rodent infestation. All Structures in which insects or rodents are found shall be promptly exterminated by approved processes that are not injurious to human health. After pest elimination, proper precautions shall be taken to prevent reinfestation.

(b) *Owner*. The owner of any structure shall be responsible for pest elimination within the structure prior to renting or leasing the structure.

(c) *Single family dwelling*. The occupant of a single family dwelling or of a single-tenant nonresidential structure shall be responsible for pest elimination on the premises, unless a lease or other agreement between the parties specifies otherwise.

(d) *Multiple occupancy dwelling*. The owner of a structure containing two (2) or more dwelling units, a multiple occupancy, a rooming house or a nonresidential structure shall be responsible for pest elimination in the public or shared areas of the structure and exterior property. If infestation is caused by failure of an occupant to prevent such infestation in the area occupied, the occupant shall be responsible for pest elimination.

(e) *Exception for defects in structure*. Despite the assignment of responsibility set forth in this section, where the infestation is caused by defects in the structure, the owner shall be responsible for pest elimination.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-174. Handrails and guardrails.

(a) Every exterior and interior flight of stairs having more than four (4) risers shall have a handrail on one (1) side of the stair, and every open portion of a stair, landing, balcony, porch, deck, ramp or other walking surface which is more than thirty (30) inches above the floor or grade below shall have guards. Handrails shall not be less than thirty (30) inches in height or more than forty-two (42) inches in height measured vertically above the nosing of the tread or above the finished floor of the landing or walking surfaces. Guards shall not be less than thirty (30) inches in height above the floor of the landing, balcony, porch, deck, or ramp or other walking surface. Guards shall not be required where exempted by the Building Code.

(b) Every stair, porch, fire escape, balcony and all appurtenances attached thereto shall be so constructed as to be safe to use and capable of supporting the anticipated loads and shall be maintained in sound condition and good repair. Every stair, porch and fire escape shall be maintained free of hazardous conditions.
(Ord. No. 13442, § 1, 3-12-19)

DIVISION 2. COMPONENT SERVICEABILITY

Sec. 21-175. Component serviceability.

(a) *General*. The components of a Structure and equipment therein shall be maintained in good repair, structurally sound and in a sanitary condition.

(b) *Unsafe conditions*. Where any of the following conditions cause the component or system to be beyond its limit state, the component or system shall be determined as unsafe and shall be repaired or replaced to comply with the Building Code as required for existing buildings:

(1) Soils that have been subjected to any of the following conditions:
   (i) Collapse of footing or foundation system;
   (ii) Damage to footing, foundation, concrete or other structural element due to soil expansion;
   (iii) Adverse effects to the design strength of footing, foundation, concrete or other structural element due to a chemical reaction from the soil;
   (iv) Inadequate soil as determined by a geotechnical investigation;
   (v) Where the allowable bearing capacity of the soil is in doubt; or
   (vi) Adverse effects to the footing, foundation, concrete or other structural element due to the ground water table.

(2) Concrete that has been subjected to any of the following conditions:
   (i) Deterioration;
   (ii) Ultimate Deformation;
   (iii) Fractures;
   (iv) Fissures;
   (v) Spalling;
   (vi) Exposed reinforcement; or
   (vii) Detached, dislodged or failing connections.

(3) Aluminum that has been subjected to any of the following conditions:
   (i) Deterioration;

(ii) Corrosion;

(iii) Elastic deformation;

(iv) Ultimate Deformation;

(v) Stress or strain cracks;

(vi) Joint fatigue; or

(vii) Detached, dislodged or failing connections.

(4) Masonry that has been subjected to any of the following conditions:

(i) Deterioration;

(ii) Ultimate Deformation;

(iii) Fractures in masonry or mortar joints;

(iv) Fissures in masonry or mortar joints;

(v) Spalling;

(vi) Exposed reinforcement; or

(vii) Detached, dislodged or failing connections.

(5) Steel that has been subjected to any of the following conditions:

(i) Deterioration;

(ii) Elastic deformation;

(iii) Ultimate Deformation;

(iv) Metal fatigue; or

(v) Detached, dislodged or failing connections.

(6) Wood that has been subjected to any of the following conditions:

(i) Ultimate Deformation;

(ii) Deterioration;

(iii) Damage from insects, rodents or other vermin;

(iv) Fire damage beyond charring;

(v) Significant splits and checks;

(vi) Horizontal shear cracks;

(vii) Vertical shear cracks;

(viii) Inadequate support;

(ix) Detached, dislodged or failing connections; or

(x) Excessive cutting and notching.

(Ord. No. 13442, § 1, 3-12-19)

DIVISION 3. LIGHT, VENTILATION AND SPACE FOR OCCUPANCY

Sec. 21-176. General requirements for light, ventilation and space for occupying a structure.

(a) *Scope*. The provisions of this Division shall govern the minimum conditions and standards for light, ventilation and space for occupying a structure.

(b) *Responsibility*. The owner of the structure shall provide and maintain light, ventilation and space conditions in compliance with these requirements. A Person shall not occupy as owner-occupant, or permit another person to occupy, any premises that do not comply with the requirements of this division.

(c) *Alternative devices*. In lieu of the means for natural light and ventilation herein prescribed, artificial light or mechanical ventilation complying with the Building Code shall be permitted.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-177. Light.

(a) *Habitable spaces*. Every Habitable Space shall have at least one (1) window of approved size facing directly to the outdoors or to a court. The minimum total glazed area for every habitable space shall be eight percent (8%) of the floor area of such room. Wherever walls or other portions of a structure face a window of any room and such obstructions are located less than three (3) feet from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors nor to a court and shall not be included as contributing to the required minimum total window area for the room.

Exception: Where natural light for rooms or spaces without exterior glazing areas is provided through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent (8%) of the floor area of the interior room or space, but a minimum of twenty-five (25) square feet. The exterior glazing area shall be based on the total floor area being served.

(b) *Common halls and stairways*. Every common hall and stairway in residential occupancies, other than in one- and two-family dwellings, shall be lighted at all times with at least a 60-watt standard incandescent light bulb for each two hundred (200) square feet of floor area or equivalent illumination, provided that the spacing between lights shall not be greater than thirty (30) feet. For egress purposes, in other than residential occupancies, all stairways shall be illuminated at all times the structure is occupied. The minimum lighting requirement is one (1) footcandle (11 lux) at floors, landings and treads.

(c) *Other spaces*. All other spaces shall be provided with natural or artificial light sufficient to permit the maintenance of sanitary conditions and the safe occupancy of the space and utilization of the appliances, equipment and fixtures.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-178. Ventilation.

(a) *Habitable Spaces*. Every Habitable Space shall have at least one (1) openable window. The total openable area of the window in every room shall be equal to at least forty-five percent (45%) of the minimum glazed area required.

Exception: Where rooms and spaces without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent (8%) of the floor area of the interior room or space, but a minimum of twenty-five (25) square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

(b) *Bathrooms and toilet rooms*. Every bathroom and toilet room shall comply with the ventilation requirements for habitable spaces, except that a window shall not be required in such spaces equipped with a mechanical ventilation system. Air exhausted by a mechanical ventilation system from a bathroom or toilet room shall discharge to the outdoors and shall not be recirculated.

(c) *Cooking facilities*. Unless approved through the certificate of occupancy, cooking shall not be permitted in any rooming unit or dormitory unit, and a cooking facility or appliance shall not be permitted to be present in the rooming unit or dormitory unit. Devices such as coffee pots and microwave ovens shall not be considered cooking appliances. The requirements set forth in this subsection shall not apply where specifically approved in writing by the Code Official.

(d) *Process ventilation*. Where injurious, toxic, irritating or noxious fumes, gases, dusts or mists are generated, a local exhaust ventilation system shall be provided to remove the contaminating agent at the source. Air shall be exhausted to the exterior and not be recirculated to any space.

(e) *Clothes dryer exhaust*. Clothes dryer exhaust systems shall be independent of all other systems and shall be exhausted outside the Structure in accordance with the manufacturer's instructions.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-179. Occupancy limitations.

(a) *Privacy*. Dwelling units, hotel units, housekeeping units, rooming units and dormitory units shall be arranged to provide privacy and be separate from other adjoining spaces.

(b) *Minimum room widths*. A habitable room other than a kitchen shall be a minimum of seven (7) feet in any plan dimension. Kitchens shall have a minimum clear passageway of three (3) feet between counterfronts and appliances or counterfronts and walls.

(c) Minimum ceiling heights. Habitable Spaces, hallways, corridors, laundry areas, bathrooms, toilet rooms and habitable basement areas shall have a minimum clear ceiling height of seven (7) feet.

Exceptions: The following exceptions shall apply to the requirements for minimum ceiling heights set forth in this subsection:

(1) In single-family dwellings and two-family dwellings, beams or girders spaced a minimum of four (4) feet on center and projecting a maximum of six (6) inches below the required ceiling height.

(2) Basement rooms in one- and two-family dwellings occupied exclusively for laundry, study or recreation purposes, having a minimum ceiling height of six (6) feet eight (8) inches with a minimum clear height of six (6) feet four (4) inches under beams, girders, ducts and similar obstructions.

(3) Rooms occupied exclusively for sleeping, study or similar purposes and having a sloped ceiling over all or part of the room, with a minimum clear ceiling height of seven (7) feet over a minimum of one-third (1/3) of the required minimum floor area. In calculating the floor area of such rooms, only those portions of the floor area with a minimum clear ceiling height of five (5) feet shall be included.

(d) *Bedroom and living room requirements*. Every Bedroom and living room shall comply with the following requirements:

(1) *Room area*. Every living room shall contain at least one hundred twenty (120) square feet and every bedroom shall contain a minimum of seventy (70) square feet and every bedroom occupied by more than one (1) person shall contain a minimum of fifty (50) square feet of floor area for each occupant thereof.

(2) *Access from bedrooms*. Bedrooms shall not constitute the only means of access to other bedrooms or habitable spaces and shall not serve as the only means of egress from other habitable spaces. An exception to this requirement is for units that contain fewer than two (2) bedrooms.

(3) *Water closet accessibility*. Every bedroom shall have access to at least one (1) water closet and one (1) lavatory without passing through another bedroom. Every bedroom in a dwelling unit shall have access to at least one (1) water closet and lavatory located in the same story as the bedroom or an adjacent story.

(4) *Prohibited occupancy*. Kitchens and nonhabitable spaces shall not be used for sleeping purposes.

(5) *Other requirements*. Bedrooms shall comply with the applicable provisions of this chapter, including, but not limited to, the light, ventilation, room area, ceiling height and room width requirements; the plumbing facilities and water-heating facilities requirements; the heating facilities and electrical receptacle requirements; and the smoke detector and emergency escape requirements.

(e) *Efficiency unit*. Nothing in this section shall prohibit an efficiency living unit from meeting the following requirements:

(1) A unit occupied by not more than one Occupant shall have a minimum clear floor area of one hundred twenty (120) square feet. A unit occupied by not more than two (2) Occupants shall have a minimum clear floor area of two hundred twenty (220) square feet. A unit occupied by three (3) occupants shall have a minimum clear floor area of three hundred twenty (320) square feet. These required areas shall be exclusive of the areas required by Items 2 and 3 of this subsection.

(2) The unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a minimum clear working space of thirty (30) inches in front. Light and ventilation conforming to this chapter shall be provided.

(3) The unit shall be provided with a separate Bathroom containing a water closet, lavatory and bathtub or shower.

(4) The maximum number of Occupants shall be three (3).

(f) *Food preparation*. All spaces to be occupied for food preparation purposes shall contain suitable space and equipment to store, prepare and serve foods in a sanitary manner. There shall be adequate facilities and services for the sanitary disposal of food wastes and other litter, including facilities for temporary storage.
(Ord. No. 13442, § 1, 3-12-19)

DIVISION 4. PLUMBING

Sec. 21-180. General requirements for plumbing facilities and fixtures.

(a) *Scope*. The provisions of this division shall govern the minimum plumbing systems, facilities and plumbing fixtures to be provided.

(b) *Responsibility*. The owner of the structure shall provide and maintain such plumbing facilities and plumbing fixtures in compliance with these requirements. A person shall not occupy as owner-occupant or permit another person to occupy any structure or premises that does not comply with the requirements of this division.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-181. Required facilities.

(a) *Dwelling units*. Every dwelling unit shall contain its own bathtub or shower, lavatory, water closet and kitchen sink, all of which shall be maintained in a sanitary, safe working condition. The lavatory shall be placed in the same room as the water closet or located in close proximity to the door leading directly into the room in which such water closet is located. A kitchen sink shall not be used as a substitute for the required lavatory.

(b) *Rooming houses*. At least one (1) water closet, lavatory and bathtub or shower shall be supplied for each four (4) rooming units.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-182. Toilet rooms.

(a) *Privacy*. Bathrooms and toilet rooms shall provide privacy and shall not constitute the only passageway to a hall or other space or to the exterior. A door and interior locking device shall be provided for all common or shared bathrooms and toilet rooms in a multiple dwelling.

(b) *Location*. Bathrooms and toilet rooms serving hotel units, rooming units or dormitory units or housekeeping units shall be accessible from a common hall or passageway and by traversing a maximum of one (1) flight of stairs.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-183. Plumbing systems and fixtures.

(a) *General*. All plumbing fixtures shall be properly installed, maintained in working order, kept free from obstructions, leaks and defects, and be capable of performing the function for which such plumbing fixtures are designed. All plumbing fixtures shall be maintained in a safe, sanitary and functional condition.

(b) *Fixture clearances*. Plumbing fixtures shall have adequate clearances for usage and cleaning.

(c) *Plumbing system hazards*. Where it is found that a plumbing system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, inadequate venting, cross connection, backsiphonage, improper installation, deterioration or damage or for similar reasons, the Code Official shall require the defects to be corrected to eliminate the hazard.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-184. Water system.

(a) *General*. Every sink, lavatory, bathtub or shower, drinking fountain, water closet or other plumbing fixture shall be properly connected to either a public water system or to an approved private water system. All kitchen sinks, lavatories, laundry facilities, bathtubs and showers shall be supplied with hot or tempered and cold running water in accordance with the City's plumbing code.

(b) *Contamination*. The water supply shall be maintained free from contamination, and all water inlets for plumbing fixtures shall be located above the flood-level rim of the fixture. Shampoo basin faucets, janitor sink faucets and other hose bibs or faucets to which hoses are attached and left in place shall be protected by an approved atmospheric-type vacuum breaker or an approved permanently attached hose connection vacuum breaker.

(c) *Supply*. The water supply system shall be installed and maintained to provide a supply of water to plumbing fixtures, devices and appurtenances in sufficient volume and at pressures adequate to enable the fixtures to function properly, safely, and free from defects and leaks.

(d) *Water heating facilities*. Water heating facilities shall be properly installed, maintained and capable of providing an adequate amount of water to be drawn at every required sink, lavatory, bathtub, shower and laundry facility at a minimum temperature of 110°F (43°C). A gas-burning water heater shall not be located in any bathroom, toilet room, bedroom or other occupied room normally kept closed, unless adequate combustion air is provided. An approved combination temperature and pressure-relief valve and relief valve discharge pipe shall be properly installed and maintained on water heaters.

(e) *Nonpotable water reuse systems*. Nonpotable water reuse systems and rainwater collection and conveyance systems shall be maintained in a safe and sanitary condition. Where such systems are not properly maintained, the systems shall be repaired to provide for safe and sanitary conditions, or the system shall be abandoned in accordance with this section.

(1) *Abandonment of systems*. Where a nonpotable water reuse system or a rainwater collection and distribution system is not maintained or the owner ceases use of the system, the system shall be abandoned in accordance with the City's plumbing code, or if silent, with the International Plumbing Code.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-185. Sanitary drainage system.

(a) *General*. All plumbing fixtures shall be properly connected to either a public sewer system or to an approved private sewage disposal system.

(b) *Maintenance*. Every plumbing stack, vent, waste and sewer line shall function properly and be kept free from obstructions, leaks and defects.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-186. Storm drainage.

Drainage of roofs, paved areas, yards, courts and other open areas on the premises shall not be discharged in a manner that creates a public nuisance.

(Ord. No. 13442, § 1, 3-12-19)

DIVISION 5. MECHANICAL AND ELECTRICAL SYSTEMS

Sec. 21-187. Mechanical and electrical requirements.

(a) *Scope*. The provisions of this Division shall govern the minimum mechanical and electrical facilities and equipment to be provided.

(b) *Responsibility*. The owner of the structure shall provide and maintain mechanical and electrical facilities and equipment in compliance with these requirements. A person shall not occupy as owner-occupant or permit another person to occupy any premises which does not comply with the requirements of this division.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-188. Heating facilities.

(a) *Facilities required*. Heating facilities shall be provided in structures as required by this division.

(b) *Residential occupancies*. Dwellings shall be provided with heating facilities capable of maintaining a room temperature of 68°F (20°C) in all habitable rooms, bathrooms and toilet rooms based on the winter outdoor design temperature. Cooking appliances shall not be used, nor shall portable unvented fuel-burning space heaters be used, as a means to provide required heating. In areas where the average monthly temperature is above 30°F (-1°C), a minimum temperature of 65°F (18°C) shall be maintained.

(c) *Heat supply*. Every owner and operator of any structure who rents, leases or lets one (1) or more dwelling units or sleeping units shall supply heat to the occupants to maintain a minimum temperature of 68°F (20°C) in all habitable rooms, bathrooms and toilet rooms.

Exceptions: The following exceptions apply to this subsection:

(1) When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required, provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the locality shall be as indicated in the City's Plumbing Code.

(2) In areas where the average monthly temperature is above 30°F (-1°C), a minimum temperature of 65°F (18°C) shall be maintained.

(e) *Room temperature measurement*. The required room temperatures shall be measured three (3) feet above the floor near the center of the room.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-189. Mechanical equipment.

(a) *Mechanical equipment and appliances*. Mechanical equipment, appliances, fireplaces, solid fuel-burning appliances, cooking appliances and water heating appliances shall be properly installed and maintained in a safe working condition and shall be capable of performing the intended function.

(b) *Removal of combustion products*. All fuel-burning equipment and appliances shall be connected to an approved chimney or vent. However, fuel-burning equipment and appliances which are labeled for unvented operation are exempt from this requirement.

(c) *Clearances*. All required clearances to combustible materials shall be maintained.

(d) *Safety controls*. All safety controls for fuel-burning equipment shall be maintained in effective operation.

(e) *Combustion air*. A supply of air for complete combustion of the fuel and for ventilation of the space containing the fuel-burning equipment shall be provided.

(f) *Energy conservation devices*. Devices intended to reduce fuel consumption by attachment to a fuel-burning appliance, to the fuel supply line thereto, or to the vent outlet or vent piping therefrom shall not be installed unless labeled for such purpose and the installation is specifically approved.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-190. Electrical facilities.

(a) *Facilities required*. Every occupied Structure shall be provided with an electrical system in compliance with the requirements of this division.

(b) *Service*. The size and usage of appliances and equipment shall serve as a basis for determining the need for additional facilities in accordance with NFPA 70. Dwelling Units shall be served by a three (3) wire, 120/240 volt, single-phase electrical service having a minimum rating of sixty (60) amperes.

(c) *Electrical system hazards*. Where it is found that the electrical system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, improper fusing, insufficient receptacle and lighting outlets, improper wiring or installation, deterioration or damage or for similar reasons, the Code Official shall require the defects to be corrected to eliminate the hazard.

(d) *Abatement of electrical hazards associated with water exposure*. The provisions of this section shall govern the repair and replacement of electrical systems and equipment that have been exposed to water.

(1) *Electrical equipment*. Electrical distribution equipment, motor circuits, power equipment, transformers, wire, cable, flexible cords, wiring devices, ground fault circuit interrupters, surge protectors, molded case circuit breakers, low-voltage fuses, luminaires, ballasts, motors, and electronic control, signaling and communication equipment that have been exposed to water shall be replaced in accordance with the provisions of the Building Code.

(2) Exception: The following equipment shall be allowed to be repaired where an inspection report from the equipment manufacturer or approved manufacturer's representative indicates that the equipment has not sustained damage that requires replacement:

(i) Enclosed switches rated a maximum of six hundred (600) volts or less;

(ii) Busway rated a maximum of six hundred (600) volts;

(iii) Panelboards rated a maximum of six hundred (600) volts;

(iv) Switchboards rated a maximum of six hundred (600) volts;

(v) Fire pump controllers rated a maximum of six hundred (600) volts;

(vi) Manual and magnetic motor controllers;

(vii) Motor control centers;

(viii) Alternating current high-voltage circuit breakers;

(ix) Low-voltage power circuit breakers;

(x) Protective relays, meters and current transformers;

(xi) Low- and medium-voltage switchgear;

(xii) Liquid-filled transformers;

(xiii) Cast-resin transformers;

(xiv) Wire or cable that is suitable for wet locations and whose ends have not been exposed to water;

(xv) Wire or cable, not containing fillers, that is suitable for wet locations and whose ends have not been exposed to water;

(xvi) Luminaires that are listed as submersible;

(xvii) Motors; and

(xviii) Electronic control, signaling and communication equipment.

(e) *Abatement of electrical hazards associated with fire exposure.* The provisions of this section shall govern the repair and replacement of electrical systems and equipment that have been exposed to fire.

(1) Electrical equipment. Electrical switches, receptacles and fixtures, including furnace, water heating, security system and power distribution circuits, that have been exposed to fire shall be replaced in accordance with the provisions of the Building Code.

(2) Exception: Electrical switches, receptacles and fixtures shall be allowed to be repaired where an inspection report from the equipment manufacturer or approved manufacturer's representative indicates that the equipment has not sustained damage that requires replacement.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-191. Electrical equipment.

(a) *Installation*. All electrical equipment, wiring and appliances shall be properly installed and maintained in a safe and approved manner.

(b) *Receptacles*. Every habitable space in a dwelling shall contain at least two (2) separate and remote receptacle outlets. Every laundry area shall contain at least one (1) grounded-type receptacle or a receptacle with a ground fault circuit interrupter. Every bathroom shall contain at least one (1) receptacle. Any new bathroom receptacle outlet shall have ground fault circuit interrupter protection. All receptacle outlets shall have the appropriate faceplate cover for the location.

(c) *Luminaires*. Every public hall, interior stairway, bathroom, toilet room, kitchen, laundry room, boiler room and furnace room shall contain at least one (1) electric luminaire. Pool and spa luminaries over 15 V shall have ground fault circuit interrupter protection.

(d) *Wiring*. Flexible cords shall not be used for permanent wiring, or for running through doors, windows, or cabinets, or concealed within walls, floors, or ceilings.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-192. Elevators, escalators and dumbwaiters.

(a) *General*. Elevators, escalators and dumbwaiters shall be maintained in compliance with ASME A 17.1. The most current certificate of inspection shall be on display at all times within the elevator or attached to the escalator or dumbwaiter, be available for public inspection in the office of the Structure Operator or be posted in a publicly conspicuous location approved by the Code Official. The inspection and tests shall be performed at not less than the periodic intervals as required.

(b) *Elevators*. In Structures equipped with passenger elevators, at least one (1) elevator shall be maintained in operation at all times when the structure is occupied. However, structures equipped with only one (1) elevator shall be permitted to have the elevator temporarily out of service for testing or servicing.

(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-193. Duct systems.

Duct systems shall be maintained free of obstructions and shall be capable of performing the required function.

(Ord. No. 13442, § 1, 3-12-19)

DIVISION 6. FIRE SAFETY

Sec. 21-194. General fire safety requirements.

(a) *Scope*. The provisions of this division shall govern the minimum conditions and standards for fire safety relating to structures and exterior premises, including fire safety facilities and equipment to be provided.

(b) *Responsibility*. The owner of the premises shall provide and maintain such fire safety facilities and equipment in compliance with these requirements. A person shall not occupy as owner-occupant or permit another person to occupy any premises that do not comply with the requirements of this division.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-195. Means of egress.

(a) *General*. A safe, continuous and unobstructed path of travel shall be provided from any point in a structure to the public way. Means of egress shall comply with the City's fire code.

(b) *Aisles*. The required width of aisles in accordance with the City's fire code shall be unobstructed.

(c) *Locked doors*. All means of egress doors shall be readily openable from the side from which egress is to be made without the need for keys, special knowledge or effort, except where the door hardware conforms to that permitted by the Building Code.

(d) *Emergency escape openings*. Required emergency escape and rescue openings shall be operational from the inside of the room without the use of keys or tools. Bars, grilles, grates or similar devices are permitted to be placed over emergency escape and rescue openings provided the minimum net clear opening size complies with the Building Code that was in effect at the time of construction and such devices shall be releasable or removable from the inside without the use of a key, tool or force greater than that which is required for normal operation of the escape and rescue opening.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-196. Fire-resistance ratings.

(a) *Fire-resistance-rated assemblies*. The required fire-resistance rating of fire-resistance-rated walls, fire stops, shaft enclosures, partitions and floors shall be maintained.

(b) *Opening protectives*. Required opening protectives shall be maintained in an operative condition. All fire and smokestop doors shall be maintained in operable condition. Fire doors and smoke barrier doors shall not be blocked or obstructed or otherwise made inoperable.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-197. Fire protection systems.

(a) *General*. All systems, devices and equipment to detect a fire, actuate an alarm, or suppress or control a fire or any combination thereof shall be maintained in an operable condition at all times in accordance with the City's fire code.

(b) *Sprinkler systems*. Inspection, testing and maintenance of automatic sprinkler systems shall be in accordance with NFPA 25.

(c) *Smoke alarms*. Single- or multiple-station smoke alarms shall be installed and maintained in dwellings at each of the following locations:

(1) On the ceiling or wall outside of each separate sleeping area in the immediate vicinity of bedrooms.

(2) In each room used for sleeping purposes.

(3) In each story within a dwelling unit, including basements and cellars but not including crawl spaces and uninhabitable attics. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower level is less than one (1) full story below the upper level.

(d) *Power source*. Single-station smoke alarms shall receive their primary power from the structure wiring provided that such wiring is served from a commercial source and shall be equipped with a battery backup. Smoke alarms shall emit a signal when the batteries are low. Wiring shall be permanent and without a disconnecting switch other than as required for overcurrent protection.

Exception: Smoke alarms are permitted to be solely battery operated in structures where no construction is taking place, structures that are not served from a commercial power source and in existing areas of structures undergoing alterations or repairs that do not result in the removal of interior wall or ceiling finishes exposing the structure, unless there is an attic, crawl space or basement available which could provide access for structure wiring without the removal of interior finishes.

(e) *Interconnection*. Where more than one (1) smoke alarm is required to be installed within a dwelling, the smoke alarms shall be interconnected in such a manner that the activation of one (1) alarm will activate all of the alarms in the individual unit. The alarm shall be clearly audible in all bedrooms over background noise levels with all intervening doors closed.

Exceptions: The following exceptions shall apply to this requirement:

(1) Interconnection is not required in Structures which are not undergoing alterations, repairs or construction of any kind.

(2) Smoke alarms in existing areas are not required to be interconnected where alterations or repairs do not result in the removal of interior wall or ceiling finishes exposing the structure, unless there is an attic, crawl space or basement available which could provide access for interconnection without the removal of interior finishes.

(Ord. No. 13442, § 1, 3-12-19)

Secs. 21-198—21-230. Reserved.

ARTICLE VI. OFFICE OF ADMINISTRATIVE HEARING OFFICER

Sec. 21-231. Creation of Office of Administrative Hearing Officer; number of officers; compensation; interlocal agreements.

(a) Pursuant to Tennessee Code Annotated, Title 6, Chapter 54, Part 10, there is hereby created the Office of Administrative Hearing Officer to hear violations of building and property maintenance codes as provided herein. The administrative hearing officer shall perform all of the duties and abide by all of the requirements provided in T.C.A. §§ 6-54-1001 *et seq.*

(b) The City may appoint up to two (2) administrative hearing officers.

(c) The amount of compensation for the administrative hearing officers shall be approved by the City Council.

(d) Clerical and administrative support for the Office of Administrative Hearing Officer shall be provided as determined by the Mayor or the Mayor's designee.

(e) The City may enter into an interlocal agreement with one (1) or more other municipalities to employ administrative hearing officers in accordance with T.C.A. § 6-54-1001.

(f) The utilization of the administrative hearing officer shall be at the discretion of the Code Official and shall be an alternative to other enforcement mechanisms included in the City Code.

(g) No provision in this Article diminishes or terminates any existing municipal power or authority.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-232. Jurisdiction of Office of Administrative Hearing Officer; restrictions on authority.

(a) The Office of the Administrative Hearing Officer has jurisdiction to hear cases involving violations of municipal ordinances regulating building and property maintenance, including:

(1) Locally adopted building codes;

(2) Locally adopted residential codes;

(3) Locally adopted plumbing codes;

(4) Locally adopted electrical codes;

(5) Locally adopted gas codes;

(6) Locally adopted mechanical codes;

(7) Locally adopted energy codes;

(8) Locally adopted property maintenance codes, including litter and overgrowth violations as set forth in Sections 21-132 through 21-137;

(9) Locally adopted zoning codes;

(10) Short term vacation rental violations under Chapter 11, up to and including revocation as set forth in Section 11-517; and

(11) Ordinances regulating any subject matter commonly found in the City building, property maintenance, and Short Term Vacation Rental codes mentioned in Subsections (a)(1)-(10).

(12) The Tree Code found in Chapter 32, Article XIII of this Code.

(b) Administrative hearing officers are not authorized to hear violations of codes adopted by the state fire marshal pursuant to T.C.A. § 68-120-101(a) enforced by a deputy building inspector pursuant to T.C.A. § 68-120-101(f).
(Ord. No. 13442, § 1, 3-12-19; Ord. No. 13951, § 1, 2-21-23; Ord. No. 14217, § 2, 4-8-25)

Sec. 21-233. Communications by administrative hearing officer and parties.

(a) Unless required for the disposition of ex parte matters specifically authorized by statute, an administrative hearing officer presiding over a contested case proceeding may not communicate, directly or indirectly, regarding any issue in the proceeding, while the proceeding is pending, with any person without notice and opportunity for all parties to participate in the communication.

(b) Notwithstanding Subsection (a), an administrative hearing officer may communicate with municipal employees or officials regarding a matter pending before the administrative body or may receive aid from staff assistants, members of the staff of the city attorney or a licensed attorney, if such persons do not receive ex parte communications of a type that the administrative hearing officer would be prohibited from receiving, and do not furnish, augment, diminish or modify the evidence in the record.

(c) Unless required for the disposition of ex parte matters specifically authorized by statute, no party to a contested case, and no other person may communicate, directly or indirectly, in connection with any issue in that proceeding, while the proceeding is pending, with any person serving as an administrative hearing officer without notice and opportunity for all parties to participate in the communication.

(d) If, before serving as an administrative hearing officer in a contested case, a person receives an ex parte communication of a type that may not properly be received while serving, the person, promptly after starting to serve, shall disclose the communication in the manner prescribed in Subsection (e).

(e) An administrative hearing officer who receives an ex parte communication in violation of this Section shall place on the record of the pending matter all written communications received, all written responses to the communications, and a memorandum stating the substance of all oral communications received, all responses made, and the identity of each person from whom the person received an ex parte communication, and shall advise all parties that these matters have been placed on the record. Any party desiring to rebut the ex parte communication shall be allowed to do so, upon requesting the opportunity for rebuttal within ten (10) business days after notice of the communication.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-234. Appearance by parties; representation by counsel.

(a) Any party may participate in the hearing in person or, if the party is a corporation or other artificial person, by a duly authorized representative.

(b) Whether or not participating in person, any party may be advised and represented at the party's own expense by counsel or, unless prohibited by any provision of law, other representative.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-235. Prehearing conferences and orders.

(a) (1) In any action set for hearing, the Administrative Hearing Officer, upon the Administrative Hearing Officer's own motion, or upon motion of one (1) of the parties or such party's qualified representatives, may direct the parties or the attorneys for the parties, or both, to appear before the Administrative Hearing Officer for a conference to consider:

(i) The simplification of issues;

(ii) The possibility of obtaining admissions of fact and of documents that will avoid unnecessary proof;

(iii) The limitation of the number of witnesses; and

(iv) Such other matters as may aid in the disposition of the action.

(2) The Administrative Hearing Officer shall make an order that recites the action taken at the conference, and the agreements made by the parties as to any of the matters considered, and that limits the issues for hearing to those not disposed of by admissions or agreements of the parties. Such order when entered controls the subsequent course of the action, unless modified at the hearing to prevent manifest injustice.

(b) Upon reasonable notice to all parties, the Administrative Hearing Officer may convene a hearing or convert a prehearing conference to a hearing, to be conducted by the Administrative Hearing Officer sitting alone, to consider argument or evidence, or both, on any question of law.

(c) In the discretion of the Administrative Hearing Officer, all or part of the prehearing conference may be conducted by telephone, television or other electronic means, if each participant in the conference has an opportunity to participate in, to hear, and, if technically feasible, to see the entire proceeding while it is taking place.

(d) If a prehearing conference is not held, the Administrative Hearing Officer may issue a prehearing order, based on the pleadings, to regulate the conduct of the proceedings.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-236. Appointment of Administrative Hearing Officer; use of Administrative Law Judge.

(a) Each Administrative Hearing Officer shall be appointed by the City Council for a four (4) year term and shall serve at the pleasure of the City Council. Such Administrative Hearing Officer may be reappointed.

(b) An Administrative Hearing Officer shall be one (1) of the following:

(1) Licensed building inspector;

(2) Licensed plumbing inspector;

(3) Licensed electrical inspector;

(4) Licensed attorney;

(5) Licensed architect; or

(6) Licensed engineer.

(c) The City may also contract with the Administrative Procedures Division of the Office of the Tennessee Secretary of State to employ an administrative law judge on a temporary basis to serve as an administrative hearing officer. Such administrative law judge shall not be subject to the requirements of Subsections (a) and (b).
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-237. Training and continuing education.

(a) Each person appointed to serve as an Administrative Hearing Officer shall, within the six-month period immediately following the date of such appointment, participate in a program of training conducted by the University of Tennessee's Municipal Technical Advisory Service ("MTAS"). MTAS shall issue a certificate of participation to each person whose attendance is satisfactory.

(b) Each person actively serving as an administrative hearing officer shall complete six (6) hours of continuing education every calendar year. The education required by this section shall be in addition to any other continuing education requirements required for other professional licenses held by the administrative hearing officer. No continuing education hours from one (1) calendar year may be carried over to a subsequent calendar year.

(c) The City shall bear the cost of the fees for the training and continuing education requirements set forth in this section for each administrative hearing officer serving the City.

(d) Costs pursuant to this Section shall be offset by fees enacted.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-238. Citations for violations; written notice.

(a) Upon the issuance of a citation for a violation of a building or property maintenance code referenced in this article, the issuing officer shall provide written notice of:

(1) A short and plain statement of the matters asserted. If the issuing officer is unable to state the matters in detail at the time the citation is served, the initial notice may be limited to a statement of the issues involved and the ordinance violations alleged. Thereafter, upon timely, written application a more definite and detailed statement shall be furnished ten (10) business days prior to the time set for the hearing;

(2) A short and plain description of the administrative hearing process including references to state and local statutory authority;

(3) Contact information for the Office of the Administrative Hearing Officer; and

(4) Time frame in which the administrative hearing officer will review the citation and determine the fine and remedial period, if any.

(b) Citations issued for a violation of a building or property maintenance code referenced in this article shall be signed by the alleged violator at the time of issuance. If an alleged violator refuses to sign, the issuing officer shall note the refusal and attest to the alleged violator's receipt of the citation. An alleged violator's signature on a citation is not admission of guilt.

(c) Citations issued upon absentee property owners may be served via certified mail sent to the last known address of the recorded owner of the property.

(d) Citations issued for a violation of a building or property maintenance code referenced in this article shall be transmitted to an administrative hearing officer within two (2) business days of issuance.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-239. Review of citation; levy of fines.

(a) Upon receipt of a citation issued pursuant to this Article, an administrative hearing officer shall, within seven (7) business days of receipt, review the appropriateness of an alleged violation. Upon determining that a violation does exist, the administrative hearing officer has the authority to levy a fine upon the alleged violator in accordance with this section. Any fine levied by an administrative hearing officer must be reasonable based upon the totality of the circumstances.

(1) For violations occurring upon residential property, an administrative hearing officer has the authority to levy a fine upon the violator not to exceed five hundred dollars ($500.00) per violation. For purposes of this part, "residential property" means a single family dwelling principally used as the property owner's primary residence and the real property upon which it sits.

(2) For violations occurring upon nonresidential property, an administrative hearing officer has the authority to levy a fine upon the violator not to exceed five hundred dollars ($500.00) per violation per day. For purposes of this part, "nonresidential property" means all real property, structures, buildings and dwellings that are not residential property.

(b) If a fine is levied pursuant to Subsection (a), the administrative hearing officer shall set a reasonable period of time to allow the alleged violator to remedy the violation alleged in the citation before the fine is imposed. The remedial period shall be no less than ten (10) nor greater than one hundred twenty (120) calendar days, except where failure to remedy the alleged violation in less than ten (10) calendar days would pose an imminent threat to the health, safety or welfare of persons or property in the adjacent area.

(c) Upon the levy of a fine pursuant to Subsection (a), the administrative hearing officer shall within seven (7) business days provide via certified mail notice to the alleged violator of:

(1) The fine and remedial period established pursuant to Subsections (a) and (b);

(2) A statement of the time, place, nature of the hearing, and the right to be represented by counsel; and

(3) A statement of the legal authority and jurisdiction under which the hearing is to be held, including a reference to the particular sections of the statutes and rules involved.

(d) The date of the hearing shall be no less than thirty (30) calendar days following the issuance of the citation. To confirm the hearing, the alleged violator must make a written request for the hearing to the administrative hearing officer within seven (7) business days of receipt of the notice required in Subsection (c).

(e) If an alleged violator demonstrates to the issuing officer's satisfaction that the allegations contained in the citation have been remedied to the issuing officer's satisfaction, the fine levied pursuant to Subsection (a) shall not be imposed or if already imposed cease; and the hearing date, if the hearing has not yet occurred, shall be cancelled.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-240. Party in default.

(a) If a party fails to attend or participate in a prehearing conference, hearing or other stage of a contested case, the Administrative Hearing Officer may hold the party in default and either adjourn the proceedings or conduct them without the participation of that party, having due regard for the interest of justice and the orderly and prompt conduct of the proceedings.

(b) If the proceedings are conducted without the participation of the party in default, the Administrative Hearing Officer shall include in the final order a written notice of default and a written statement of the grounds for the default.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-241. Petitions for intervention.

(a) The Administrative Hearing Officer shall grant one (1) or more petitions for intervention if:

(1) The petition is submitted in writing to the Administrative Hearing Officer, with copies mailed to all parties named in the notice of the hearing, at least seven (7) business days before the hearing;

(2) The petition states facts demonstrating that the petitioner's legal rights, duties, privileges, immunities or other legal interest may be determined in the proceeding or that the petitioner qualifies as an intervenor under any provision of law; and

(3) The Administrative Hearing Officer determines that the interests of justice and the orderly and prompt conduct of the proceedings shall not be impaired by allowing the intervention.

(b) If a petitioner qualifies for intervention, the Administrative Hearing Officer may impose conditions upon the intervenor's participation in the proceedings, either at the time that intervention is granted or at any subsequent time. Conditions may include:

(1) Limiting the intervenor's participation to designated issues in which the intervenor has a particular interest demonstrated by the petition;

(2) Limiting the intervenor's participation so as to promote the orderly and prompt conduct of the proceedings; and

(3) Requiring two (2) or more intervenors to combine their participation in the proceedings.

(c) The Administrative Hearing Officer, at least twenty-four (24) hours before the hearing, shall render an order granting or denying each pending petition for intervention, specifying any conditions, and briefly stating the reasons for the order. The Administrative Hearing Officer may modify the order at any time, stating the reasons for the modification. The Administrative Hearing Officer shall promptly give notice of an order granting, denying or modifying intervention to the petitioner for intervention and to all parties.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-242. Regulating course of proceedings; full disclosure; hearing open to public.

(a) The Administrative Hearing Officer shall regulate the course of the proceedings, in conformity with the prehearing order, if any.

(b) To the extent necessary for full disclosure of all relevant facts and issues, the Administrative Hearing Officer shall afford to all parties the opportunity to respond, present evidence and argument, conduct cross-examination, and submit rebuttal evidence, except as restricted by a limited grant of intervention or by the prehearing order.

(c) In the discretion of the Administrative Hearing Officer and by agreement of the parties, all or part of the hearing may be conducted by telephone, television or other electronic means, if each participant in the hearing has an opportunity to participate in, to hear, and, if technically feasible, to see the entire proceedings while taking place.

(d) The hearing shall be open to public observation pursuant to Tennessee Code Annotated, Title 8, Chapter 44, unless otherwise provided by state or federal law. To the extent that a hearing is conducted by telephone, television or other electronic means, the availability of public observation shall be satisfied by giving members of the public an opportunity, at reasonable times, to hear the tape recording and to inspect any transcript produced, if any.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-243. Evidence and affidavits; notice.

(a) In administrative hearings:

(1) The Administrative Hearing Officer shall admit and give probative effect to evidence admissible in a court, and when necessary to ascertain facts not reasonably susceptible to proof under the rules of court, evidence not admissible thereunder may be admitted if it is of a type commonly relied upon by reasonably prudent persons in the conduct of their affairs. The Administrative Hearing Officer shall give effect to the rules of privilege recognized by law and to statutes protecting the confidentiality of certain records, and shall exclude evidence which in his or her judgment is irrelevant, immaterial or unduly repetitious;

(2) At any time not less than ten (10) business days prior to a hearing or a continued hearing, any party shall deliver to the opposing party a copy of any affidavit such party proposes to introduce in evidence, together with a notice in the form provided in Subsection (b). Unless the opposing party, within seven (7) business days after delivery, delivers to the proponent a request to cross-examine an affiant, the opposing party's right to cross-examination of such affiant is waived and the affidavit, if introduced in evidence, shall be given the same effect as if the affiant had testified orally. If an opportunity to cross-examine an affiant is not afforded after a proper request is made as provided in this Subsection, the affidavit shall not be admitted into evidence. "Delivery," for purposes of this Section, means actual receipt;

(3) The Administrative Hearing Officer may admit affidavits not submitted in accordance with this Section where necessary to prevent injustice;

(4) Documentary evidence otherwise admissible may be received in the form of copies or excerpts, or by incorporation by reference to material already on file with the City. Upon request, parties shall be given an opportunity to compare the copy with the original, if reasonably available; and

(5) (i) Official notice may be taken of:

(A) Any fact that could be judicially noticed in the courts of this state;

(B) The record of other proceedings before the agency; or

(C) Technical or scientific matters within the Administrative Hearing Officer's specialized knowledge; and

(ii) Parties must be notified before or during the hearing, or before the issuance of any final order that is based in whole or in part on facts or material noticed, of the specific facts or material noticed and the source thereof, including any staff memoranda and data, and be afforded an opportunity to contest and rebut the facts or material so noticed.

(b) The notice referred to in Subsection (a) shall contain the following information and be substantially in the following form:

The accompanying affidavit of _____ (here insert name of affiant) will be introduced as evidence at the hearing in _____ (here insert title of proceeding). _____ (here insert name of affiant) will not be called to testify orally and you will not be entitled to question such affiant unless you notify _____ (here insert name of the proponent or the proponent's attorney) at _____ (here insert address) that you wish to cross-examine such affiant. To be effective, your request must be mailed or delivered to _____ (here insert name of proponent or the proponent's attorney) on or before _____ (here insert a date seven (7) business days after the date of mailing or delivering the affidavit to the opposing party).
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-244. Rendering of final order; findings of fact; submission of proposed findings.

(a) An Administrative Hearing Officer shall render a final order in all cases brought before said officer.

(b) A final order shall include conclusions of law, the policy reasons therefor, and findings of fact for all aspects of the order, including the remedy prescribed. Findings of fact, if set forth in language that is no more than mere repetition or paraphrase of the relevant provision of law, shall be accompanied by a concise and explicit statement of the underlying facts of record to support the findings. The final order must also include a statement of the available procedures and time limits for seeking reconsideration or other administrative relief and the time limits for seeking judicial review of the final order.

(c) Findings of fact shall be based exclusively upon the evidence of record in the adjudicative proceeding and on matters officially noticed in that proceeding. The Administrative Hearing Officer's experience, technical competence and specialized knowledge may be utilized in the evaluation of evidence.

(d) If an individual serving or designated to serve as an Administrative Hearing Officer becomes unavailable, for any reason, before rendition of the final order, a qualified substitute shall be appointed. The substitute shall use any existing record and may conduct any further proceedings as is appropriate in the interest of justice.

(e) The Administrative Hearing Officer may allow the parties a designated amount of time after conclusion of the hearing for the submission of proposed findings.

(f) A final order rendered pursuant to Subsection (a) shall be rendered in writing within seven (7) business days after conclusion of the hearing or after submission of proposed findings unless such period is waived or extended with the written consent of all parties or for good cause shown.

(g) The Administrative Hearing Officer shall cause copies of the final order under Subsection (a) to be delivered to each party.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-245. Final order effective date.

(a) All final orders shall state when the order is entered and effective.

(b) A party may not be required to comply with a final order unless the final order has been mailed to the last known address of the party or unless the party has actual knowledge of the final order.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-246. Collection of fines, judgments and debts.

The City may collect a fine levied pursuant to this Article by any legal means available to a municipality to collect any other fine, judgment or debt.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-247. Judicial review of final order.

(a) A person who is aggrieved by a final decision in a contested case is entitled to judicial review as provided in T.C.A. § 6-54-1017, which shall be the only available method of judicial review.

(b) Proceedings for judicial review of a final order are instituted by filing a petition for review in the chancery court for Hamilton County. Such petition must be filed within sixty (60) calendar days after the entry of the final order that is the subject of the review.

(c) The filing of the petition for review does not itself stay enforcement of the final order. The reviewing court may order a stay on appropriate terms, but if it is shown to the satisfaction of the reviewing court, in a hearing that shall be held within ten (10) business days of a request for hearing by either party, that any party or the public at large may suffer injury by reason of the granting of a stay, then no stay shall be granted until a good and sufficient bond, in an amount fixed and approved by the court, shall be given by the petitioner conditioned to indemnify the other persons who might be so injured and if no bond amount is sufficient, the stay shall be denied.

(d) Within forty-five (45) calendar days after service of the petition, or within further time allowed by the court, the Administrative Hearing Officer shall transmit to the reviewing court the original or a certified copy of the entire record of the proceeding under review. By stipulation of all the parties of the review proceedings, the record may be shortened. A party unreasonably refusing to stipulate to limit the record may be taxed by the court for the additional cost. The court may require or permit subsequent corrections or additions to the record.

(e) If, before the date set for hearing, application is made to the court for leave to present additional evidence, and it is shown to the satisfaction of the court that the additional evidence is material and that there were good reasons for failure to present it in the administrative proceeding, the court may order that the additional evidence be taken before the Administrative Hearing Officer upon conditions determined by the court. The Administrative Hearing Officer may modify its findings and decision by reason of the additional evidence and shall file that evidence and any modifications, new findings or decisions with the reviewing court.

(f) The procedure ordinarily followed in the reviewing court will be followed in the review of contested cases decided by the Administrative Hearing Officer, except as otherwise provided in this article. The Administrative Hearing Officer that issued the decision to be reviewed is not required to file a responsive pleading.

(g) The review shall be conducted by the court without a jury and shall be confined to the record. In cases of alleged irregularities in procedure before the Administrative Hearing Officer, not shown in the record, proof thereon may be taken in the court.

(h) The court may affirm the decision of the Administrative Hearing Officer or remand the case for further proceedings. The court may reverse or modify the decision if the rights of the petitioner have been prejudiced because the administrative findings, inferences, conclusions or decisions are:

(1) In violation of constitutional or statutory provisions;

(2) In excess of the statutory authority of the Administrative Hearing Officer;

(3) Made upon unlawful procedure;

(4) Arbitrary or capricious or characterized by abuse of discretion or clearly unwarranted exercise of discretion; or

(5) Unsupported by evidence that is both substantial and material in the light of the entire record. In determining the substantiality of evidence, the court shall take into account whatever in the record fairly detracts from its weight, but the court shall not substitute its judgment for that of the Administrative Hearing Officer as to the weight of the evidence on questions of fact.

(i) No administrative hearing decision pursuant to a hearing shall be reversed, remanded or modified by the reviewing court unless for errors that affect the merits of such decision.

(j) The reviewing court shall reduce its findings of fact and conclusions of law to writing and make them parts of the record.
(Ord. No. 13442, § 1, 3-12-19)

Sec. 21-248. Appeal to court of appeals.

(a) An aggrieved party may obtain a review of any final judgment of the chancery court by appeal to the court of appeals of Tennessee.

(b) The record certified to the chancery court and the record in the chancery court shall constitute the record in an appeal. Evidence taken in court pursuant to Title 24 shall become a part of the record.

(c) The procedure on appeal shall be governed by the Tennessee Rules of Appellate Procedure.
(Ord. No. 13442, § 1, 3-12-19)

Secs. 21-249—21-260. Reserved.

Chapter 22

LIBRARIES*

Sec. 22-1. Recreated; management.
Sec. 22-2. Appointment of library board; terms of board members.
Sec. 22-3. Authority and responsibilities of library board.
Sec. 22-4. Tax funds; holding and disbursements; account audits.
Sec. 22-5. Use of library.
Sec. 22-6. Rules governing loss, injury to books.
Sec. 22-7. Property and donations.
Sec. 22-8. Free public library fund created; duties of city finance officer.
Sec. 22-9. Borrowing for buildings and equipment.

***Editor's note—**The former Chapter 22 was repealed and a new Chapter 22 was recreated and reestablished on August 16, 2011 by Ordinance No. 12537.

Cross reference—Administration, Ch. 2.

State law reference—Libraries in counties, cities and towns, T.C.A. § 10-3-101 et seq.

Sec. 22-1. Recreated; management.

There is hereby recreated and reestablished an independent free library to be known and designated as the Chattanooga Public Library, which shall be managed and governed by a board of directors of eleven (11) members (hereinafter known as "Library Board"). Not more than one (1) city official shall serve on the Library Board. The Library Board shall be vested with such powers and have such duties as set forth in this chapter.
(Ord. No. 12537, 8-16-11; Ord. No. 12636, § 1, 8-7-12)

Sec. 22-2. Appointment of library board; terms of board members.

The members of the reestablished Library Board shall serve without salary, four (4) for one (1) year, four (4) for two years, and three (3) for three (3) years, and their successors for terms of three (3) years. Board members may serve two (2) consecutive terms and may be reappointed after a minimum three-year break in service. The members of the Library Board shall be nominated and confirmed by a majority of the members of the City Council. At the expiration of a Library Board member's term, the member shall hold over until the City Council nominates and confirms a new member for that position. Notwithstanding the foregoing, the provisions of this Section shall remain in compliance with T.C.A. §§ 10-3-101, et seq., which may be amended from time to time.
(Ord. No. 12537, 8-16-11; Ord. No. 12636, § 1, 8-7-12: Ord. No. 13257, § 1, 12-19-17)

Sec. 22-3. Authority and responsibilities of library board.

The members of the Library Board shall initially organize by electing officers and adopting bylaws and regulations consistent with this chapter. The Library Board shall have the power to direct all the affairs of the library, including appointment of a library administrator, who shall direct the internal affairs of the library, including the hiring and directing of such assistants or employees as may be necessary. The Library Board may make and enforce rules and regulations and establish branches of service at its discretion, subject to available funding. The Library Board may expend funds for the special training and formal education of library personnel; provided, that such personnel shall agree to work in the library for at least two (2) years after completion of such training and education. The Library Board may receive donations, devises and bequests to be used by it directly for library purposes. It may hold and convey realty and personal property and negotiate leases for and on behalf of such library. The Library Board shall furnish to the state library agency such statistics and information as may be required. The Board should endeavor to comply with all state requirements to qualify for available funds.

The Library Board shall furnish to the City Council at its first meeting of each fiscal year, an annual financial report setting forth its current year actual and upcoming year capital and operations requirements during the City's annual budgeting process. The Board shall be required to operate within the operating budget approved by the City Council without utilizing reserve funds unless that use is approved by the City Council. Notwithstanding the foregoing, the provisions of this Section shall remain in compliance with T.C.A. §§ 10-3-101, et seq., which may be amended from time to time.
(Ord. No. 12537, 8-16-11; Ord. No. 13257, § 2, 12-19-17)

Sec. 22-4. Tax funds; holding and disbursements; account audits.

A separate fund shall be established to account for all financial transactions, regardless of funding source, whether raised by bonds, donations, bequests, or City general fund. All funds shall be reported in accordance with generally accepted accounting principles and the terms of respective funding source. Such

funds may be disbursed in accordance with policies of the Library Board, the City of Chattanooga Purchasing Policy, and Tennessee State requirements. All library accounts of every character shall be audited annually as part of the City's annual audit.
(Ord. No. 12537, 8-16-11)

Sec. 22-5. Use of library.

The Chattanooga Public Library shall be free to the inhabitants of the city; however, the Library Board may, in its discretion, extend the privileges and facilities of the library to persons residing outside the city upon such terms as it may deem proper.
(Ord. No. 12537, 8-16-11)

Sec. 22-6. Rules governing loss, injury to books.

The Library Board shall have the power to make and enforce rules providing penalties for loss of or injury to library property. Nothing in this chapter shall be construed to prohibit the Library Board from charging library users a reasonable fine for late-returned library materials and charging for special services including, but not limited to, the loan of equipment and the use of photocopiers.
(Ord. No. 12537, 8-16-11)

Sec. 22-7. Property and donations.

The title to all property acquired by the Library Board, operating under this Chapter shall be taken in the name of the City of Chattanooga for the use and benefit of the Library and the proceeds from all activities conducted by the Library Board or from any disposition of its assets shall be taken in the name of the City of Chattanooga for the use and benefit of the Library. Notwithstanding the foregoing, the provisions of this Section shall remain in compliance with T.C.A. §§ 10-3-101, et seq., which may be amended from time to time.
(Ord. No. 13257, § 3, 12-19-17)

Sec. 22-8. Free public library fund created; duties of city finance officer.

(a) There is hereby created and reestablished a special fund known as the "Chattanooga Public Library Fund" to be maintained by the city finance officer as a special and separate fund, and which shall be kept separate and apart from all other funds. Charitable contributions, funds from other governmental entities, tax funds, whether raised by bonds or taxation, governmental grants, or otherwise shall be deposited to such special fund for the use and benefit of the Chattanooga Public Library to be hereafter established, created, constructed, maintained and supported pursuant to Tennessee Code Annotated, section 10-3-101 et seq. The city finance officer is authorized to direct the investment of such funds in the same manner as surplus funds of the city are now being invested.

(b) The city finance officer is authorized to sell stock that is contributed for a free public library and deposit the proceeds therefrom to the Chattanooga Public Library Fund established herein.

(c) The proceeds from the sale of surplus books by the library may be credited to such special fund in the discretion of the Library Board.
(Ord. No. 12537, 8-16-11; Ord. No. 13257, § 4, 12-19-17)

Sec. 22-9. Borrowing for buildings and equipment.

The City Council has the power to borrow money for the purchase of realty and the erection or purchase of suitable buildings for the library and its branches, and for the equipment of the library. The title to such

property may be vested in trust in the Library Board and its successors, which shall be responsible for disbursing bond proceeds as provided herein in section 22-4 and in the Tennessee Code Annotated, section 10-3-106.
(Ord. No. 12537, 8-16-11; Ord. No. 13257, § 4, 12-19-17)

Chapter 22.5

MECHANICAL*

Article I. In General

Sec. 22.5-1. Mechanical code adopted.
Sec. 22.5-2. Appendices to code adopted.
Sec. 22.5-3. Amendments to code adopted.
Sec. 22.5-4. Same—Violations; penalty.
Secs. 22.5-5—22.5-20. Reserved.

Article II. Mechanical Journeymen and Contractors

Division 1. Generally

Sec. 22.5-21. Purpose.
Sec. 22.5-22. Liabilities not affected.
Sec. 22.5-23. Notices.
Secs. 22.5-24—22.5-30. Reserved.

Division 2. Board of Mechanical Examiners

Sec. 22.5-31. Established.
Sec. 22.5-32. Composition; appointment.
Sec. 22.5-33. Terms of members.
Sec. 22.5-34. Qualifications of members.
Sec. 22.5-35. Officers.
Sec. 22.5-36. Removal of members; compensation; quorum.
Sec. 22.5-37. Meetings.
Sec. 22.5-38. Records to be open to inspection.
Sec. 22.5-39. Appeals.
Sec. 22.5-40. Regulations authorized; printing.
Secs. 22.5-41—22.5-50. Reserved.

Division 3. Examinations, Licenses and Certificates

Sec. 22.5-51. Application for examination required; contents; qualifications.
Sec. 22.5-52. Examinations to be written; records required.
Sec. 22.5-53. Passing examination; issuance of license.
Sec. 22.5-54. Examination fee established.
Sec. 22.5-55. License fee established.
Sec. 22.5-56. Disposition of fees.
Sec. 22.5-57. Licenses and certificates required.

***Editor's note—**Ord. No. 8795, enacted May 26, 1987, amended the Code by adding thereto a new Ch. 22.5, to read substantially as herein set forth. Section numbering in accord with established Code format was at the discretion of the editor.

Cross references—Buildings generally, Ch. 10; building code adopted, § 10-1; building code amendments, § 10-3; businesses, trades, etc., Ch. 11; electricity, Ch. 14; energy, Ch. 15; gas, Ch. 19; plumbing, Ch. 27.

Sec. 22.5-58. Classes of license; limitations.
Sec. 22.5-59. Appropriate license and certificate prerequisite to doing work; exceptions.
Sec. 22.5-60. Expiration, renewal of license.
Sec. 22.5-61. Review of renewal applications; statement required.
Sec. 22.5-62. Specific responsibilities of license holders of mechanical business.
Sec. 22.5-63. Licenses; certificates not transferable.
Sec. 22.5-64. Suspension; revocation of certificates; denials of renewal.
Sec. 22.5-65. Certain persons exempted from written examinations.
Sec. 22.5-66. Temporary certificates.
Sec. 22.5-67. Helper registration.

ARTICLE I. IN GENERAL

Sec. 22.5-1. Mechanical code adopted.

The International Mechanical Code, 2018 edition, one (1) copy of which is, and has been on file in the Office of the City Council Clerk for more than fifteen (15) days, is hereby adopted as the official Mechanical Code of the City.
(Code 1986, § 22.5-1; Ord. No. 9361, § 1, 5-8-90; Ord. No. 9654, § 106, 1-6-92; Ord. No. 10174, § 1, 3-7-95; Ord. No. 10677, § 1, 3-10-98; Ord. No. 11723, § 1, 7-26-05; Ord. No. 12275, § 1, 8-4-09; Ord. No. 12603, § 1, 5-29-12; Ord. No. 13923, § 1, 12-6-22)

Sec. 22.5-2. Appendices to code adopted.

The following appendices to the International Mechanical Code, 2018 edition, and as further amended in this chapter, are hereby adopted as part of the official Mechanical Code of the City.

Appendix A — Chimney Connection Pass-Through.
(Ord. No. 9361, § 2, 5-8-90; Ord. No. 10174, § 2, 3-7-95; Ord. No. 10677, § 2, 3-10-98; Ord. No. 11723, § 2, 7-26-05; Ord. No. 12275, § 2, 8-4-09; Ord. No. 12603, § 2, 5-29-12; Ord. No. 13923, § 2, 12-6-22)

Sec. 22.5-3. Amendments to code adopted.

The following sections and appendices of the International Mechanical Code, 2018 edition, are hereby amended, as hereinafter provided:

a. Section 101.1 is amended as follows:

Section 101.1 Title. These regulations shall be known as the International Mechanical Code hereinafter referred to as "this code."

b. Section 101.2 is amended as follows:

Section 101.2 Scope. This code shall regulate the design, installation, maintenance, alteration, and inspection of mechanical systems that are permanently installed and utilized to provide control of environmental conditions and related processes within buildings. This code shall also regulate those mechanical systems, system components, equipment and appliances specifically addressed herein. The installation of fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems shall be regulated by the International Fuel Gas Code.

Exceptions: Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three stories high with separate means of egress and their accessory structures shall comply with the International Residential Code.

c. Section 106.1 is amended as follows:

106.1 When required. Any properly licensed contractor who desires to erect, install, enlarge, alter, repair, remove, convert, or replace a mechanical system, the installation of which is regulated by this code, or to cause such work to be done, shall first make application to the code official and obtain the required permit for the work.

Exception: Where equipment and appliance replacements or repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day of the department or mechanical inspection.

d. Section 106.3 is amended as follows:

Section 106.3 Application for permit. Each application for a permit, with the required fee, shall be filed with the code official on a form furnished for that purpose and shall contain a general description of the proposed work and its location. The application shall be signed by the properly licensed contractor. The application shall indicate the proposed occupancy of all parts of the building and of that portion of the site or lot, if any, not covered by the building or structure and shall contain such other information required by the code official.

e. Section 106.4.3 and 106.4.4 are deleted in their entirety and the following language is substituted in lieu thereof:

Section 106.4.3 Expiration. Every permit issued by the code official under the provisions of this code shall expire by limitation and become null and void if the work authorized by such permit is not commenced within 180 days from the date of such permit, or if the work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 days. Before such work can be recommenced, a new permit shall be first obtained.

f. Section 106.5.2 is amended as follows:

Section 106.5.2 Fee Schedule. The fees for all mechanical work shall be as indicated in the following schedule:

PERMIT FEES

Initial Fee

For issuing each permit $40.00

Additional Fees

Fee for Inspecting heating, ventilating, ductwork, air conditioning, and refrigeration systems shall be $20.00 for the first $1,000.00, or fraction thereof, of valuation of the installation plus $7.00 for each additional $1,000.00 or fraction thereof

Fee for inspecting repairs, alterations, and additions to existing system shall be $10.00 plus $5.00 for each $1,000.00 or fraction thereof

Fee for inspecting boilers (based upon Btu input):

33,000 Btu (1 BHp) to 165,000 (5 BHp)	$10.00
165,001 Btu (5 BHp) to 330,000 (10 BHp)	$20.00
330,001 Btu (10 BHp) to 1,165,000 (52 BHp)	$30.00
1,165,001 Btu (52 BHp) to 3,300,000 (98 BHp)	$50.00
over 3,300,000 Btu (98 BHp)	$70.00

Note: 1 KJ = 1.055 BTU, 1 BHp = 33,475 Btuh

Fee for Reinspection

In case it becomes necessary to make a reinspection of a heating, ventilation, air conditioning or refrigeration system, or boiler installation, the installer of such equipment shall pay a reinspection fee of $50.00.

Temporary Operation Inspection Fee

When preliminary inspection is requested for purposes of permitting temporary operation of a heating, ventilating, refrigeration, or air conditioning system, or portion thereof, a fee of $25.00

shall be paid by the contractor requesting such preliminary inspection. If the system is not approved for temporary operation on the first preliminary inspection, the usual reinspection fee shall be charged for each subsequent preliminary inspection for such purpose.

Self-Contained units less than two tons

In all buildings, except one and two family dwellings, where self-contained air conditioning units of less than two tons are to be installed, the fee charged shall be that for the total cost of all units combined as listed under Additional Fees above.

All of the fees under Section 106.5.2 shall be nonrefundable. Any refund of fees shall be in the sole discretion of the director of Development Review and Permitting.

g. Section 106.5.3 is deleted in its entirety.

h. Sections 108.4 and 108.5 are amended as follows:

108.4 Violation penalties. Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair plumbing work in violation of the approved construction documents or directive of the code official, or of a permit or certificate issued under the provisions of this code, shall be guilty of a municipal offense subject to a fine assessed as a general penalty under Chattanooga City Code § 1-8. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

108.5 Stop work orders. Upon notice from the code official, work on any plumbing system that is being done contrary to the provisions of this code or in a dangerous or unsafe manner shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property, or to the owner's agent, or to the person doing the work. The notice shall state the conditions under which work is authorized to resume. Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work. Any person who shall continue any work in or about the structure after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to a find assessed as a general penalty under Chattanooga City Code § 1-8.

i. Section 109. Means of Appeal, is amended by deleting said Section in its entirety, and substituting in lieu thereof the following:

Section 109. Board of Adjustments & Appeals.

The Construction Board of Adjustments and Appeals for the Building, Electrical, Fire, Fuel Gas, Life Safety, Mechanical and Plumbing Codes of the City of Chattanooga as established by Section 2-625, Part II, Chattanooga City Code, shall act as the Board of Adjustments and Appeals for appeals from any decision of the Building Official or his designee and consider variances of the technical codes as provided in this Code.

Any reference to the International Sewage Disposal Code, and/or the International Electrical Code shall be deleted from the reference standards in Chapter 15 of the International Mechanical Code and all such references shall be construed to reference the appropriate official codes adopted by the City of Chattanooga.

(Code 1986, § 22.5-3; Ord. No. 9361, § 3, 5-8-90; Ord. No. 10174, § 3, 3-7-95; Ord. No. 10677, § 3, 3-10-98; Ord. No. 11723, §§ 3, 4, 7-26-05; Ord. No. 12275, §§ 3, 4, 8-4-09; Ord. No. 12358, § 2, 3-2-10; Ord. No. 12603, § 3, 5-29-12; Ord. No. 13923, § 3, 12-6-22; Ord. No. 13927, § 3, 12-20-22)

Sec. 22.5-4. Same—Violations; penalty.

Any person, firm, corporation or agent who shall violate any provision of this code, or fail to comply therewith, or with any of the requirements thereof or who shall install, construct, alter, repair, replace or move any mechanical system, or has installed, altered, repaired, removed or replaced a mechanical system

in violation of a detailed statement or drawing submitted to the chief building official and permitted thereunder, shall be guilty of a misdemeanor, punishable by a fine of not more than fifty dollars ($50.00) for each offense. Each such person shall be deemed guilty of a separate offense for each and every day's violation and during which [day] any violation of any provision of this code is permitted or continued, punishable by a fine of not more than fifty dollars ($50.00) per day for each offense.
(Code 1986, § 22.5-4)

Secs. 22.5-5—22.5-20. Reserved.

ARTICLE II. MECHANICAL JOURNEYMEN AND CONTRACTORS

DIVISION 1. GENERALLY

Sec. 22.5-21. Purpose.

In the interests of the public health, safety and welfare, the following provisions establishing the board of mechanical examiners for the licensing and regulation of those engaged in mechanical heating, ventilation and air conditioning equipment installation are adopted.
(Code 1986, § 22.5-21)

Sec. 22.5-22. Liabilities not affected.

This article shall not be construed to relieve from or lessen the responsibility or liability of any party owning, operating, controlling or installing any mechanical heating, ventilation and air conditioning equipment, devices, or appliances for damage to persons or property caused by any defect therein, nor shall the city be held as assuming liability by reason of the examination authorized herein or the license and certificate issued as herein provided.
(Code 1986, § 22.5-22)

Sec. 22.5-23. Notices.

Notices shall be considered sufficient when either delivered personally to the person to whom such notice is directed or when mailed to the last known address of the applicant as shown in the records of the board.
(Code 1986, § 22.5-23)

Secs. 22.5-24—22.5-30. Reserved.

DIVISION 2. BOARD OF MECHANICAL EXAMINERS

Sec. 22.5-31. Established.

There is hereby created and established a board of mechanical examiners of the city.
(Code 1986, § 22.5-31)

Sec. 22.5-32. Composition; appointment.

The board of mechanical examiners shall consist of seven (7) members to be appointed by the mayor and confirmed by the city council.
(Code 1986, § 22.5-32; Ord. No. 9654, § 2, 1-6-92)

Sec. 22.5-33. Terms of members.

Members of the board of mechanical examiners shall hold office for a term of four (4) years and until their successors are elected.
(Code 1986, § 22.5-33)

Sec. 22.5-34. Qualifications of members.

Members of the board of mechanical examiners shall consist of:

(1) A mechanical engineer holding a degree from a recognized college and licensed as an engineer by the state;

(2) An educator or teacher;

(3) A member of the mechanical, heating, ventilation and air conditioning industry without union affiliation;

(4) A member of the mechanical, heating, ventilation and air conditioning contracting industry who is affiliated with a union;

(5) A mechanical journeyman with at least five (5) years' experience;

(6) A factory representative and/or supplier of mechanical, heating, ventilation and air conditioning equipment; and

(7) A representative of the general public not connected with the mechanical industry.
(Code 1986, § 22.5-34)

Sec. 22.5-35. Officers.

(a) *Chairman.* One (1) member of the board of mechanical examiners shall be designated by the mayor as chairman of the board, which appointment as chairman shall be subject to the approval of the city council. Such member shall serve as chairman for his full term on the board or until his successor is elected.

(b) *Secretary.* The board shall select from its membership one (1) member to serve as secretary for at least one (1) year and until his successor is elected by the board unless that position is provided by staff of the building inspection office.
(Code 1986, § 22.5-35; Ord. No. 9654, § 2, 1-6-92; Ord. No. 12587, § 1, 5-1-12)

Sec. 22.5-36. Removal of members; compensation; quorum.

Any member of the board of mechanical examiners may be removed for cause at any time by the mayor after ten (10) days' written notice. Such board shall serve without compensation. Four (4) members shall constitute a quorum for the transaction of business.
(Code 1986, § 22.5-36; Ord. No. 9654, § 13, 1-6-92)

Sec. 22.5-37. Meetings.

(a) *Regular meetings.* The board of mechanical examiners shall hold meetings semiannually in March and September for the purpose of conducting examinations of applicants to determine their knowledge of the rules and regulations for the installation of mechanical, heating, ventilation, and air conditioning devices, appliances and equipment as set forth in the statutes of this state, this Code and other ordinances of the city and the International Mechanical Code; to issue licenses and certificates therefore; to determine the general qualifications and fitness of each applicant for executing the class of work covered by the license applied for and for the transaction of other business.

(b) *Special meetings.* Special meetings of the board of mechanical examiners may be called by the chairman with the approval of a majority of the board.
(Code 1986, § 22.5-37; Ord. No. 12587, § 2, 5-1-12)

Sec. 22.5-38. Records to be open to inspection.

Records of the meetings of the Board of Mechanical Examiners, including the names of all licensees, shall be open for inspection by the public at all reasonable times.
(Code 1986, § 22.5-38)

Sec. 22.5-39. Appeals.

Any person aggrieved by any action or decision of the board of mechanical examiners shall have the right of appeal to the board of adjustments and appeals by requesting an appeal in writing and by lodging such request with the Chief Building Official of the city within ten (10) days after such action or decision.
(Code 1986, § 22.5-39; Ord. No. 12587, § 3, 5-1-12)

Sec. 22.5-40. Regulations authorized; printing.

The board of mechanical examiners may promulgate rules and regulations not inconsistent with this article, and in such event shall have such rules and regulations printed for distribution.
(Code 1986, § 22.5-40)

Secs. 22.5-41—22.5-50. Reserved.

DIVISION 3. EXAMINATIONS, LICENSES AND CERTIFICATES

Sec. 22.5-51. Application for examination required; contents; qualifications.

(a) *Application for Examination.* All persons now or hereafter desiring to engage in the installation, servicing and/or repairing of mechanical or environmental control systems, including alterations, repairs, replacement of equipment, appliances, fixtures, fittings and/or appurtenances, and including ventilating, heating, cooling, air conditioning and refrigeration

systems, incinerators and other energy related systems, either as a Master Mechanical contractor or a journeyman mechanic, shall apply in writing to the secretary of the Board for an application to take the respective examination, as specified in this division. Such application must be completed fully and returned to the secretary of the Board with a check or money order for the proper examination fee no later than thirty (30) days prior to the examination date. Upon approval of the application by the Board, the applicant shall appear before the Board for examination for the particular license applied for.

The examinations for Master Mechanical contractor and journeyman mechanics, shall be different, reasonable and especially thorough, so as to obtain from the applicant an understanding of the extent of knowledge and the subject matter upon which the applicant is questioned. "To engage in business" as defined in this Chapter shall mean "to hold or be held out to the public for hire" in the mechanical business.

(b) *Qualifications of Master Mechanical contractors.* Any person shall be eligible for the examination as a Master Mechanical contractor who:

(1) Has three (3) or more years' practicable experience as a Journeyman Mechanic Class 1 or Class 2 HVAC and/or sheet metal mechanic in a metropolitan area of the city; or

(2) Has held an unrevoked Master Mechanical Contractor, Class 1 or Class 2 HVAC or sheet metal contractor's license in the city; or any other governmental agency licensing HVAC and sheet metal contractors; or

(3) Has a professional license to practice engineering in the state; and/or

(4) Has had such education and experience in heating, ventilation and air conditioning systems and/or sheet metal installation and design in commercial, industrial or residential installations as shall be acceptable to the Board.

(c) *Qualifications of Journeyman* Mechanics. Any person shall be eligible for examination as a Journeyman Mechanic who:

(1) Has three (3) or more years' practicable experience as a registered Journeyman or HVAC/sheet metal helper in the metropolitan area of the city. One (1) year shall be equivalent to a minimum of two thousand (2,000) hours' actual experience in HVAC/sheet metal installations; or

(2) Has previously held an unrevoked Journeyman Mechanic, HVAC mechanic or sheet metal mechanic license in the city or any other governmental agency licensing HVAC and sheet metal mechanics; and/or

(3) Has had such experience in heating, ventilation and air conditioning work or sheet metal work as shall be acceptable to the Board.

(d) *Proof of Qualifications*. The Board shall require written proof of any of the above qualifications, and it is the responsibility of the applicant to provide such definite proof with his application.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 1, 7-26-05)

Sec. 22.5-52. Examinations to be written; records required.

Examinations for Master Mechanical Contractors and Journeyman mechanics given by the Board shall be written and a complete record of the results of every examination including the score of the applicant shall be kept on file by the Board in compliance with the Records Retention Manual adopted by the City Council pursuant to T.C.A. 10-7-702.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 2, 7-26-05; Ord. No. 12587, § 4, 5-1-12)

Sec. 22.5-53. Passing examination; issuance of license.

Any applicant making a grade of seventy percent (70%) or more on each section of the written examination shall be considered qualified for, and the Board shall issue to the applicant, the particular license which was applied for upon payment of the required fees and the furnishing of all other required information specified within this chapter. All such licenses shall be signed by the Chairman and secretary of the Board.
(Ord. No. 9046, § 1, 10-18-88)

Sec. 22.5-54. Examination fee established.

Examination fees in the following amount shall accompany the application for examination:

Master Mechanical Contractor	$100.00
Journeyman Mechanics	100.00

These fees shall cover all costs to the City of Chattanooga for the costs of written examinations and proctoring fees in connection with these examinations.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 3, 7-26-05)

Sec. 22.5-55. License fee established.

Beginning on the date of passage of this Ordinance, all licenses issued by the Board shall be effective and renewed on a two (2) year scheduled basis with the license expiring on the thirty-first (31st) day of October in odd numbered years following its date of issuance. Those whose licenses expire on October 31, 2012 shall be renewed for one (1) year. Beginning with the renewal due on October 31, 2013, all journeyman mechanics and Master Mechanical Contractors licenses shall be renewed every two (2) years in the odd numbered years. Each certificate of competency shall be renewable without further examination upon application of the holder within sixty (60) days after notice of the expiration date, and the payment of the two (2) year fee set out above. Any applicant for a renewal who fails to make application and pay the required fee within sixty (60) days of notice may be required to take another examination by the board of examiners unless such applicant shows good and sufficient cause for the failure to make such application; provided that, if any licensee enters active service in the armed forces of the United States, the applicant shall be granted a renewal license upon an application after discharge from such service if such application is presented to the board within six (6) months following the date of discharge. as follows:

Master Mechanical Contractor	$200.00
Journeyman Mechanic or temporary	20.00
Registered Helper	No Charge

(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 4, 7-26-05; Ord. No. 12587, § 5, 5-1-12)

Sec. 22.5-56. Disposition of fees.

Fees required by this article shall be collected by the secretary of the Board of Mechanical Examiners and paid over to the city treasurer. All expenses incurred by such Board shall be paid by the city treasurer from the fees collected. Any balance left in such funds shall be held by the city treasurer subject to the order of the city council, and in no event shall the Board incur a greater expense than the amount collected in fees.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 9654, § 134, 1-6-92)

Sec. 22.5-57. Licenses and certificates required.

No person shall engage in or hold himself out as being in the business of installing, servicing, maintaining or repairing environmental-control systems, pipefitting and structural layout or in the fabrication, assembly and/or installation of duct work, chassis parts for heating, ventilation and air conditioning systems in the city unless such person has received a mechanical license of the appropriate class and a certificate therefor; or in the case of a firm or corporation, unless it is owned or operated by, or has in its regular employment, a person who has received a mechanical license of the appropriate class and a certificate therefor.
(Ord. No. 9046, § 1, 10-18-88)

Sec. 22.5-58. Classes of license; limitations.

(a) The following classes of licenses shall be issued by the Board of Mechanical Examiners.

(b) A Master Mechanical contractor license shall entitle the holder thereof to perform the installation, servicing, maintenance and repairing of heating, ventilation and air conditioning environmental control systems with no input restrictions upon the amount of tonnage or cooling or BTU restriction upon heating. A Master Mechanical contractor's license shall entitle the holder thereof to engage in the business of and secure permits for any work covered by the International Mechanical Code, subject to any limitation in effect for such contractor's license.

(c) A Journeyman mechanic license shall entitle the holder thereof to perform the installation, alteration and repair of any environmental/control system within the city utilizing knowledge of heating and refrigeration and/or control theories, pipefitting, or structural layouts, under the supervision of a holder of a Master Mechanical contractor license. The holder of a Journeyman Mechanic's license may supervise other licensed mechanics or registered helpers but may not be issued permits for any work covered by the International Mechanical Code.

(d) The Board of Mechanical Examiners may also issue special restricted licenses to persons as it determines qualified.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 5, 7-26-05)

Sec. 22.5-59. Appropriate license and certificate prerequisite to doing work; exceptions.

(a) Where any mechanical work is being done, involving the installation, alteration and repair of heating, ventilation and air conditioning environmental control systems in the city, it shall be done by a licensed Journeyman mechanic. No person shall, in any manner, engage in the business of or secure permits for installing, maintaining, altering or repairing any heating, ventilation and air conditioning environmental control system within the city unless such person has received a Master Mechanical contractor's license and certificate therefore; provided that, no permit shall be required in order to execute any of the following classes of work:

(1) Ordinary minor repairs for which permits are not required as specified within Section 106.2 of the International Mechanical Code.

(2) Any work involved in the manufacture, test or repair of mechanical materials, devices, appliances or apparatus so long as such manufacture, test or repair is not performed at the location of installation of heating, ventilation and air conditioning environmental control system in the city.

(3) Any work not specifically covered by the International Mechanical Code.

(4) Any mechanical work done by a registered helper under the direct supervision of a licensed Journeyman mechanic in accordance with Section 22.5-57.

(b) It shall be unlawful for a Master Mechanical contractor to allow any person who is not licensed as a Journeyman mechanic to directly supervise any mechanical worker.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 6, 7-26-05)

Sec. 22.5-60. Expiration, renewal of license.

Beginning on the date of passage of this Ordinance, all licenses issued by the Board shall be effective and renewed on a two (2) year scheduled basis with the license expiring on the thirty-first (31st) day of October in odd numbered years following its date of issuance. Each certificate of competency shall be renewable without further examination upon application of the holder within sixty (60) days after notice of the expiration date, and the payment of the two (2) year fee set out above. Any applicant for a renewal who fails to make application and pay the required fee within sixty (60) days of notice may be required to take another examination by the board of examiners unless such applicant shows good and sufficient cause for the failure to make such application; provided that, if any licensee enters active service in the armed forces of the United States, the applicant shall be granted a renewal license upon an application after discharge from such service if such application is presented to the board within six (6) months following the date of discharge. The failure to renew any license before October 31 of the third year following expiration of a license will result in retesting.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 9625, § 1, 10-15-91; Ord. No. 12587, § 6, 5-1-12)

Sec. 22.5-61. Review of renewal applications; statement required.

It shall be the duty of the Board of Mechanical Examiners to review all applications for the renewal of any license, and the Board shall require that each applicant for renewal shall file a statement signed by the applicant that he has not misused his license and that he has abided by this Code and the ordinances of the City pertaining to mechanical contractors and the installation, alteration and repair of any heating, ventilation and air conditioning environmental control systems, including duct work or chassis parts. If an applicant for renewal cannot honestly file such a statement, a full explanation of the reasons must accompany the renewal application in lieu of all or part of the required statement.
(Ord. No. 9046, § 1, 10-18-88)

Sec. 22.5-62. Specific responsibilities of license holders of mechanical business.

(a) Every holder of a Master Mechanical contractor's license shall keep his certificate and license displayed in a conspicuous place at his principal place of business and shall identify any vehicles used in the installation, servicing and repair of heating, ventilation and air conditioning environmental control systems, including duct work or chassis parts, with his certificate number and his name of the company with which he is associated in letters and numerals not less than three (3) inches high on each side of said vehicles. Any individual identifying vehicles for installation servicing and repair of heating, ventilation and air conditioning environmental control systems, including duct work or chassis parts, shall be required to obtain a license under this Chapter.

(b) Every holder of any license issued under this article will also be issued a license card annually with his license renewal which he shall carry with him at all times while engaged in any mechanical work and shall show when requested to do so by any mechanical inspector or other duly authorized person having responsibility for enforcing these articles.

(c) The Board of Mechanical Examiners and the Chief Mechanical Inspector shall be notified in writing of the name of the firm with whom the holder is associated.

(d) The license holder shall be a full-time employee of the corporation, partnership, sole proprietorship or other business entity which he represents, during the normal working hours of said business represented. The license holder shall not obtain permits for any other corporation, firm, association, or other individual. Further, the license holder shall neither represent nor obtain permits for more than one (1) corporation, firm, association, or individual at any one (1) time.

(e) Any license holder who applied as and was licensed as a representative of a corporation, partnership, sole proprietorship or other business entity and who ceases to be a representative of such corporation, partnership, sole proprietorship or other business entity for whatever reason, shall immediately notify the Board in writing of such termination. The Board shall immediately contact the corporation, partnership, sole proprietorship or other business entity by which the holder was employed and ascertain the status of current bids, contracts, permits, etc. covering work being or to be performed in the City, and the Board may, in its discretion, relieve any hardships and permit such work on a temporary basis as it deems advisable.

(f) If the Board becomes aware of the death or incompetency of any license holder, the Board shall contact the corporation, partnership, sole proprietorship or other business entity with whom the license holder was associated regarding the status of all ongoing work. The Board shall require any ongoing business to obtain a licensed contractor who shall be responsible for any ongoing work after the death or incompetency of the license holder associated with the business. Any license holder assisting in the operation of an ongoing business previously operated by a deceased or mentally or physically incompetent license holder shall not be in violation of subsection (d) above provided, however, that such license holder cannot continue operating more than one (1) business entity for a period of more than two (2) years after the date of death or onset of physical or mental incompetency.

(g) The license holder shall have ultimate responsibility for all work performed under his license and shall require all work to be performed in accordance with the Mechanical Codes and ordinances lawfully adopted by the City of Chattanooga.

(h) All license holders will comply with all workers compensation provisions for any employees which are required by the State of Tennessee at the time any work is performed and submit any evidence of workers compensation insurance that is required by the State of Tennessee before any license is issued.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 9625, § 3, 10-15-91; Ord. No. 11724, § 7, 7-26-05; Ord. No. 12587, § 7, 5-1-12)

Sec. 22.5-63. Licenses; certificates not transferable.

No license and certificates issued in accordance with the provisions of this article shall be assignable or transferable.
(Ord. No. 9046, § 1, 10-18-88)

Sec. 22.5-64. Suspension; revocation of certificates; denials of renewal.

(a) The Board of Mechanical Examiners shall revoke or suspend a certificate issued to any contractor or mechanic upon positive proof that such person:

(1) Knowingly violated the provisions of this chapter or the rules and regulations of the Board.

(2) Practiced fraud or deception in making application for or obtaining such certificate for registration.

(3) Is incompetent to perform a service to the public as certified.

(4) Permitted his certificate of registration to be used, directly or indirectly, by another to obtain or perform mechanical work or services.

(5) Is guilty of such other unprofessional or dishonorable conduct of such nature as to deceive or defraud the public.

(6) Has done mechanical work in excess of that permitted by the license held.

(7) Failed to comply with this chapter of this Code, the requirements of the Mechanical Code, repeatedly failed to obtain permits required before commencing work.

(8) Has obtained a permit directly or indirectly for another unless the license holder shall be the supervisor of all work covered by the permit.

(9) Has received from another any compensation wherein the sole consideration thereof is obtaining of a permit.

(b) The Board may refuse to issue or renew a certificate of license to any applicant who has misused his license due to lack of expertise; or to any applicant who has demonstrated a lack of financial responsibility during the term of his license; or to any applicant who has submitted false evidence with regard to an application for license or renewal; or to any applicant who has been guilty of any act or conduct which would constitute grounds for revocation or suspension of a certificate as herein provided; provided, however, the Board shall not disapprove any renewal until after the applicant has been accorded an opportunity to be heard after five (5) days' notice by registered mail or personal service of such a notice.

(c) No action of the Board to suspend or revoke a certificate of competency or registration shall become final until the alleged offender has been given an opportunity to appear before the Board to show cause as to why such action should not be taken.

(d) Notice, in writing, of the proposed action of the Board to revoke or suspend a certificate shall be given to the holder of such certificate, stating the specific charges upon which such action is based. The notice shall stipulate that a hearing will be scheduled at a time and place set by the Board for the party to show cause why such action should not be made final. Such hearing shall not be held less than five (5) days following notice to the party. Failure to appear before the Board to answer the specific charges set forth in the notice shall be deemed just cause for final revocation or suspension of a certificate.
(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 8, 7-26-05)

Sec. 22.5-65. Certain persons exempted from written examinations.

(a) *Existing Business.* All persons holding Class 1 and Class 2 HVAC contractor's licenses, Class 1 and Class 2 HVAC mechanic license and Class 1 and Class 2 sheet metal mechanic licenses in accordance with Section 22.5-65 will be exempted from taking the examination by this article. The Board of Mechanical Examiners is hereby authorized to issue Master Mechanical contractor licenses to any holder of a Class 1 or Class 2 HVAC or Class 1 or Class 2 Sheet Metal or Plant Master and Plant Mechanical License; provided such licenses are current on the effective date of this ordinance. The Board of Mechanical Examiners is further authorized to issue Journeyman mechanics licenses to any holder of a Class 1 or Class 2 HVAC mechanic or Class 1 or Class 2 sheet metal mechanic provided such licenses are current on the effective date of this ordinance. All other persons desiring such licenses shall be required to conform to the requirements of this Chapter and take the necessary examination.

(b) *Newly-Annexed Territory.*

(1) All Mechanical contractors who have had an established place of business located in newly-annexed territory and whose principal business has been in such territory and whose principal business has been mechanical contracting and who have maintained such place of business for three (3) or more years next preceding the date of the annexation of such territory shall be exempted from taking the written examination required by this article. The Board of Mechanical Examiners is hereby authorized in its discretion to issue Master Mechanical contractor licenses to such persons as it deems qualified upon written application for such license, the submission of adequate written proof of the above requirements and the payment of fees set out in this article, provided that such application and payment is made within one (1) year after the date of annexation of such territory.

(2) Journeyman mechanics who are qualified under 22.5-51(b) of this article and whose legal place of residence has been in the newly-annexed area for the three (3) years next preceding the annexation of such territory or who are currently employed by a Master Mechanical contractor whose principal place of business is in the newly-annexed area shall be exempted from taking the examinations required by this article. The Board of Mechanical Examiners is hereby authorized to issue journeyman mechanic licenses to such persons upon written application for said license, the submission of adequate written proof of the above requirements and the payment of fees set out in this article, provided that such application and payment is made within one (1) year after the date of annexation of said territory.

(Ord. No. 9046, § 1, 10-18-88; Ord. No. 11724, § 9, 7-26-05)

Sec. 22.5-66. Temporary certificates.

Anything hereinabove to the contrary notwithstanding, however, it shall be lawful for the Board of Mechanical Examiners through the Office of the Chief Mechanical Inspector of the city, to issue a temporary journeyman mechanic's license to any applicant who presents evidence of qualifications as a journeyman mechanic and pays the prescribed fee. The Chief Mechanical Inspector shall determine the qualifications of the applicant and may at his discretion restrict the limits of the use of the temporary license. The temporary journeyman mechanic's license shall be valid for one (1) year from the date of issue and may be renewed for no more than one (1) additional year, at the discretion of the Chief Mechanical Inspector. The intent of this limitation of renewal is to limit one (1) individual to no more than two (2) years of operation under temporary license. The Board of Mechanical Examiners may revoke for just cause the said temporary journeyman mechanic's license permit at any time.

(Ord. No. 9046, § 1, 10-18-88; Ord. No. 9625, § 2, 10-15-91; Ord. No. 11724, § 10, 7-26-05)

Sec. 22.5-67. Helper registration.

Any person who shall apply for registration as a helper upon a written form provided for that purpose by the city shall be registered by the Board of Mechanical Examiners without examination and without charge. A certificate of registration as a helper shall be issued to such applicant, without charge, and such certificate of registration shall be permanent and not renewed annually. Any helper shall only do mechanical work under the direct supervision of a licensed journeyman mechanic.

(Ord. No. 9046, § 1, 10-18-88; Ord. No. 9625, § 2, 10-15-91; Ord. No. 11724, § 11, 7-26-05)

Chapter 23

METROPOLITAN TRANSIT AUTHORITY*

Sec. 23-1. Created; basic powers and authority granted.
Sec. 23-2. Composition; appointment, tenure of members; vacancies.
Sec. 23-3. Election and tenure of officers; meetings; quorum; compensation of members; general powers and duties of members; duties of vice-chairman in absence of chairman.
Sec. 23-4. Power to hire and fix salaries of general manager, comptroller and attorneys; general duties, bonds of such officers.
Sec. 23-5. General manager authorized to employ personnel; tenure of personnel.
Sec. 23-6. Removal of members from office.
Sec. 23-7. Right to use public ways.
Sec. 23-8. Power to establish, maintain transportation system and accomplish purposes of article; power to acquire, dispose of property and various rights; grants and loans; investments; promulgate rules, regulations for authority.
Sec. 23-9. Contracts for insurance and indemnity against loss.
Sec. 23-10. Contracts with employees through representatives.
Sec. 23-11. Borrowing, repaying money.
Sec. 23-12. Power to incur indebtedness and issue and sell bonds or notes.
Sec. 23-13. Expenditures.
Sec. 23-14. Final authority to make rate, fare, toll and operating schedules.
Sec. 23-15. Power to promulgate and enforce rules and regulations governing transportation system; various powers conferred by general or private acts.
Sec. 23-16. Power to contract for operation of transportation system.
Sec. 23-17. Chapter declared interlocal governmental agreement.
Sec. 23-18. Duty to license and regulate all public transportation and fix rates.
Sec. 23-19. Power to contract with governmental entities to extend services.
Sec. 23-20. Liability of participating governmental entities.

***Cross references—**Administration generally, Ch. 2; air pollution, Ch. 4; civil defense, Ch. 13; energy, Ch. 15; motor vehicles and traffic, Ch. 24; streets and sidewalks, Ch. 32; vehicles for hire, Ch. 35.

Sec. 23-1. Created; basic powers and authority granted.

There is hereby created pursuant to the terms of Tennessee Code Annotated, sections 7-56-101 through 7-56-109, as amended, a metropolitan transit authority for the city and county. Such authority, to be called the Chattanooga Area Regional Transportation Authority (hereinafter called the authority), is hereby granted full power and authority to acquire, purchase, construct, extend, improve, maintain, own and operate a system of street railroads, and/or electric coaches, and/or motor buses, and/or any other suitable or convenient vehicles primarily for the transportation for hire of passengers and incidental activities, including without limitations, street railroads, street cars, electric coaches, motor buses, automobiles, and other vehicles however propelled, car barns, terminals, garages, repair shops, lines, poles, conduits, underground and overhead wires, cables, engines, generators, switchboards, storage tanks, pumps, fixtures, accessory apparatus, buildings and lands, rights-of-way, and easements, and all other appurtenances necessary, usual, or proper to such a system for the transportation for hire of passengers upon any or all streets in the city and upon any or all highways in Hamilton, Catoosa, Dade and Walker Counties and the municipalities within such counties and in other counties and municipalities in this and other states, upon compliance with their laws.
(Code 1986, § 23-1)

Sec. 23-2. Composition; appointment, tenure of members; vacancies.

(a) The authority created by this chapter shall consist of members and such subordinate officers and employees as may be selected by the authority as hereinafter provided.

(b) The board of the authority shall consist of: one (1) member appointed by each governmental entity that participates in such authority, other than the City of Chattanooga, plus additional members appointed by the City equal to no less than seven (7) total. Each member's term shall be for a period of three (3) years, or until the member's successor is duly appointed and qualified. Members may serve up to two (2) consecutive terms, but may be reappointed after a minimum three (3) year break.

(c) In case of the death, disability, removal or resignation of any member, or for any reason a member's position becomes vacant, such position shall be filled for the remainder of the member's term by appointment of the body which appointed that member.

(d) Each appointment of a member to the board of the authority by the City shall be made by the Mayor as Chief Executive Officer of the City, with subsequent confirmation of such appointment to be given by the City Council.
(Code 1986, § 23-2; Ord. No. 10554, § 1, 4-15-97; Ord. No. 14160, § 1, 10-15-24)

Sec. 23-3. Election and tenure of officers; meetings; quorum; compensation of members; general powers and duties of members; duties of vice-chairman in absence of chairman.

(a) Immediately upon the qualification of the members of the Metropolitan Transit Authority, the members shall elect one (1) of the members of such authority as Chair, and one (1) of its members as Vice-Chair, one (1) of its members as Secretary, and one (1) of its members as Treasurer; and the Chair, Vice-Chair, Secretary and Treasurer shall hold office as such during the terms for which they are elected as members of the authority.

(b) The authority shall hold regular meetings at least six (6) times per calendar year, at a definite time to be fixed by resolution of the authority, and such special meetings as may be necessary for the transaction of the business of the authority. A majority of the members shall constitute a quorum for the transaction of business at any regular or special meeting. Notice of any special meeting may be waived, either before or

after the holding thereof; personal attendance at any special meeting shall constitute a waiver of notice by the members present; and absence of any member from this county shall dispense with the necessity of giving such member any notice of any special meeting.

(c) The Chair and the other members of such authority shall devote a substantial amount of their time and attention to their office and shall have general supervision in accordance with sound business management principles over the operation of the transit system and of all executives and employees of such system. The members of the authority shall keep themselves advised as to the general operating and financial condition of such system and shall cause to be furnished a monthly report to the local member governments with regard to the operation, maintenance, and financial condition of such system, and from time to time shall furnish such other information as the member governments may request.

(d) In the event of the death, resignation, removal, disability, or absence of the Chair, the Vice-Chair shall perform all the duties of the Chair, and may perform such other duties as may be prescribed by the board of the authority.
(Code 1986, § 23-3; Ord. No. 14160, § 2, 10-15-24)

Sec. 23-4. Power to hire and fix salaries of general manager, comptroller and attorneys; general duties, bonds of such officers.

If the metropolitan transit authority shall determine to operate the system, then it shall have authority to hire and fix the salary of the following officers:

(1) A general manager, who shall devote his entire time and attention to the duties of the office, and shall not engage in any business or profession not directly connected therewith, and shall be subject to the supervision and direction of the board of the authority and shall perform such duties and render such services as may be required of him by the board of the authority. He shall make and file a bond in such sum as may be fixed by the board of the authority and shall take the same oath required of members of the metropolitan transit authority.

(2) A comptroller, who shall have charge and custody of all books, papers, documents and accounts of the authority, and under whose supervision all necessary accounting records shall be kept, and all checks and vouchers prepared. The authority shall by resolution designate the persons who shall sign checks, which shall be countersigned by one (1) of such authority. Such comptroller shall be required to attend in person or by one (1) of his clerks, all of the meetings of the authority, and keep a correct record of all the proceedings of that body, and perform such other duties as may be imposed upon him by the authority. He shall have such clerical assistance in his work as the authority shall deem necessary for the work to be properly performed. He shall make and file a bond in such sum as may be fixed by the authority and shall take the same oath required of members of the authority.

(3) One (1) or more attorneys, who shall be practicing attorneys at law, who shall make and file bonds in such sum as may be fixed by the authority, and take the same oaths required of members of the authority, and who shall act as general counsel for the authority and advise the authority and other officers of the authority in all matters of law which may arise; and who shall prosecute and defend all suits brought by or against the authority and all suits to which the authority shall be a party.

(Code 1986, § 23-4)

Sec. 23-5. General manager authorized to employ personnel; tenure of personnel.

The general manager shall be authorized to employ such other superintendents, engineers, assistants, consultants and other subordinate officers and employees as may be necessary for the efficient operation of the metropolitan transit authority, and who shall hold office at the will and pleasure of the general manager.
(Code 1986, § 23-5)

Sec. 23-6. Removal of members from office.

The members of the metropolitan transit authority shall be removable from office when the governmental bodies or persons causing their election to membership decides that such member's or members' continuance in office not in the best interest of such bodies or persons; such decisions by such bodies or persons shall be final.
(Code 1986, § 23-6)

Sec. 23-7. Right to use public ways.

The metropolitan transit authority shall have the right, but not exclusive of the public right, to use any public road, street or other public way within its jurisdiction for transportation of passengers.
(Code 1986, § 23-7)

Sec. 23-8. Power to establish, maintain transportation system and accomplish purposes of article; power to acquire, dispose of property and various rights; grants and loans; investments; promulgate rules, regulations for authority.

(a) The metropolitan transit authority shall have power to acquire, construct, own, operate and maintain for public service a transportation system within its jurisdiction, and all the powers necessary or convenient to accomplish the purposes of this chapter, including, without limiting the generality of the foregoing, the specific powers enumerated herein.

(b) The authority shall have power to acquire by purchase, lease, gift or otherwise, all or any part of the plant, equipment, property, rights in property, reserve funds, employees' pension or retirement funds, special funds, franchises, licenses, patents, permits and papers, documents and records belonging to any private company or corporation operating a transportation system within its jurisdiction, as herein defined. The authority shall have the power to acquire by purchase, lease, grant, gift or otherwise any property and rights useful for its purposes, and to sell, lease, transfer or convey any property or rights.

(c) The authority shall have power to apply for and accept grants and loans from the federal government or any agency or instrumentality thereof, to be used for any of the purposes of the authority, and to enter into any agreement with the federal government, in relation to such grants or loans.

(d) The authority shall have the power to invest and reinvest any fund held in reserve or sinking funds not required for immediate disbursements in bonds or notes of the United States, bonds of the state, or bonds of any county or city of the state, or federally insured securities or accounts.

(e) The authority shall have the power to promulgate by resolution rules and regulations deemed necessary to carry out the duties of such authority.
(Code 1986, § 23-8)

Sec. 23-9. Contracts for insurance and indemnity against loss.

The Metropolitan Transit Authority shall have power to procure and enter into contracts for any type of insurance and indemnity against loss or damage to property from any cause, including loss of use and occupancy, against death or injury of any person or persons, against employer's liability, against any act of any member, officer, or employee of the authority, or of a member of the authority in the performance of the duties of their office or employment, or any other insurable risk.
(Code 1986, § 23-9; Ord. No. 14160, § 3, 10-15-24)

Sec. 23-10. Contracts with employees through representatives.

The metropolitan transit authority may deal with and enter into written contracts with the employees through accredited representatives of such employees or representatives of any labor organization authorized to act for such employees, concerning wages, salaries, hours, working conditions, pension or retirement provisions. No contract or agreement shall be made with any labor organization, association, group or individual for the employment of members of such organization, association, group or individual, for the construction, improvement, maintenance, operation or administration of any property, plant or facilities under the jurisdiction of the authority, where such organization, association, group or individual denies on the grounds of race, creed or color, membership and equal opportunities for employment to any citizen.
(Code 1986, § 23-10)

Sec. 23-11. Borrowing, repaying money.

The metropolitan transit authority shall have the continuing power to borrow money for the purpose of acquiring any transportation system, for acquiring necessary cash for working funds, or for acquiring, constructing, extending or improving its transportation system. For the purpose of evidencing the obligation of the authority to repay any money borrowed as aforesaid, the authority, pursuant to resolution adopted by the authority, may, from time to time, issue, sell and dispose of its interest-bearing revenue bonds, short-term notes or obligations. All such bonds, notes and obligations shall be payable from the revenues or income to be derived from the transportation system. No lien upon any physical property of the authority shall be created thereby.
(Code 1986, § 23-11)

Sec. 23-12. Power to incur indebtedness and issue and sell bonds or notes.

The member governments, whenever requested by the metropolitan transit authority, shall have the authority to incur indebtedness and issue and sell general obligation or revenue bonds or notes on behalf of the authority to such extent and in such manner as may now or hereafter be authorized by any applicable private or public act or general law of the state, including, but without being limited to section 7-36-101 et seq., Tennessee Code Annotated.
(Code 1986, § 23-12)

Sec. 23-13. Expenditures.

The revenue received each year by the metropolitan transit authority from the operation of the transportation system, before being used for any other purpose, shall be used for the following purposes, in the order named:

(1) The payment of all operating expenses of the transportation system for the year;

(2) For interest accruals and sinking fund accruals on bonds and mortgages issued for the benefit of the transportation system;

(3) For cash payments to a working capital reserve, a renewals and replacements reserve, and a casualties reserve, for the benefit of the transportation system, such cash payments to such reserves to be in such amounts as the authority thinks proper and by resolution may elect to set up from time to time.

(Code 1986, § 23-13)

Sec. 23-14. Final authority to make rate, fare, toll and operating schedules.

The metropolitan transit authority shall have the final authority to make a schedule of rates, fares, tolls and operating schedules for its transportation services within its jurisdiction.
(Code 1986, § 23-14)

Sec. 23-15. Power to promulgate and enforce rules and regulations governing transportation system; various powers conferred by general or private acts.

The metropolitan transit authority shall have the power and authority to promulgate and enforce such rules and regulations governing such system as it may deem proper in the operation of such transportation system. Such authority shall also have every power, expressed or implied, in Tennessee Code Annotated, sections 7-56-101 through 7-56-109, as amended, and any other applicable general or private act including the right of eminent domain, and the power to issue all licenses, permits or franchises for the carriage of passengers within its jurisdiction.
(Code 1986, § 23-15)

Sec. 23-16. Power to contract for operation of transportation system.

The metropolitan transit authority shall, in addition to the rights granted in this chapter to operate the transportation system, have the power to contract with such groups as corporations or other public bodies to operate the system in accordance with principles enumerated in this chapter.
(Code 1986, § 23-16)

Sec. 23-17. Chapter declared interlocal governmental agreement.

This chapter shall be an interlocal governmental agreement pursuant to section 50-8-34 et seq., Office Code of Georgia Annotated.
(Code 1986, § 23-17)

Sec. 23-18. Duty to license and regulate all public transportation and fix rates.

The Metropolitan Transit Authority shall license and regulate all forms of public transportation including local carriers of passengers for hire; provided, however, the foregoing shall not include Passenger Vehicles for Hire under Chapter 35 nor any other transportation service separately regulated under the City Code or state authority. Such authority shall fix rates of fares for persons and baggage, routes, and all other services, and shall have the final authority to issue or deny licenses, and to revoke or suspend for cause licenses previously issued.
(Code 1986, § 23-18; Ord. No. 14160, § 4, 10-15-24)

Sec. 23-19. Power to contract with governmental entities to extend services.

The metropolitan transit authority shall have the power to make any all contracts with other governmental entities, who are not members of such authority, to extend service to such entities, on either an intrastate or interstate basis.
(Code 1986, § 23-19)

Sec. 23-20. Liability of participating governmental entities.

By participating in the metropolitan transit authority no governmental entity, including the city, assumes any responsibility for the debts, operating expenses, obligations or other liabilities of the authority unless and when an individual governmental entity may, from time to time, specifically agree to do so by action of its governing body.
(Code 1986, § 23-20)

Chapter 24

MOTOR VEHICLES AND TRAFFIC*

Article I. In General

Sec. 24-1. Definitions.
Sec. 24-2. Police jurisdiction over interstate highways.
Sec. 24-3. Enforcement of regulations.
Sec. 24-4. Authority to direct traffic.
Sec. 24-5. Firemen may direct traffic.
Sec. 24-6. Obedience to chapter.
Sec. 24-7. Obedience to police and fire officials.
Sec. 24-8. Obedience by persons propelling pushcarts or riding, driving animals.
Sec. 24-9. Obedience by public employees.
Sec. 24-10. Use of coasters, roller skates, toy vehicles.
Sec. 24-11. Authorized emergency vehicles—Operation generally.
Sec. 24-12. Emergency vehicles; right of way; penalty.
Sec. 24-13. Reckless driving.
Sec. 24-14. Following, parking near fire apparatus.
Sec. 24-15. Crossing fire hose.
Sec. 24-16. Manner of driving in processions.
Sec. 24-17. Traffic operation during funeral processions.
Sec. 24-18. Driving other vehicles through funeral processions.
Sec. 24-19. Identification of processions.
Sec. 24-20. Driving on sidewalks.
Sec. 24-21. Slow poke law.
Sec. 24-22. Limitations on backing.
Sec. 24-23. Motorcycle and Motor-Driven Cycles; required equipment; operating; riding.
Sec. 24-24. Clinging to vehicles.
Sec. 24-25. Obstruction of driver's view.
Sec. 24-26. Emerging from vehicle.
Sec. 24-27. Clearance and width, signs at railroad underpasses.
Sec. 24-28. Reports to police of vehicles left in garages, parking lots, etc., thirty (30) days or more.
Sec. 24-29. Repealed.
Sec. 24-30. Driving on laned roadways.
Sec. 24-31. Vehicles to be driven on right side of roadway; exceptions.
Sec. 24-32. Meeting vehicles proceeding in opposite directions.
Sec. 24-33. Overtaking vehicles proceeding in same direction.
Sec. 24-34. When passing on right permitted.
Sec. 24-35. Limitations on passing on the left.
Sec. 24-36. Limitations on driving to left of center of roadway.
Sec. 24-37. Establishment of no-passing zones.
Sec. 24-38. Following too closely.

***Cross references—**City engineer, § 2-81 et seq.; signs near controlled access highways, § 3-31 et seq.; alcoholic beverages, Ch. 5; movement of vehicles on airport property restricted, § 8-41; civil defense, Ch. 13; energy, Ch. 15; police department, § 16-41 et seq.; anti-litter regulations, § 18-141 et seq.; metropolitan transit authority, Ch. 23; operation of vehicles in parks, § 26-3; streets and sidewalks, Ch. 32; trailers and trailer camps, Ch. 34; vehicles for hire, Ch. 35; zoning regulations, Ch. 38.

Sec. 24-39. Driving on divided highways.
Sec. 24-40. Use of controlled-access highways by nonmotorized traffic, motor-driven cycles.
Sec. 24-41. Entering through highway or stop intersection.
Sec. 24-42. Reserved.
Sec. 24-43. Driver's license required for operation of a motor vehicle.
Sec. 24-44. Automobile registration required.
Sec. 24-45. Display of registration plates.
Sec. 24-46. Safety belts, use; exceptions.
Sec. 24-47. Compliance with financial responsibility law required.
Sec. 24-48. Destructive or injurious materials.
Sec. 24-49. Prohibited uses of mobile telephone or personal digital assistant to transmit or read written message while driving.
Sec. 24-50. Reserved.
Sec. 24-51. Reserved.
Secs. 24-52—24-60. Reserved.

Article II. Traffic Administration

Division 1. Generally

Sec. 24-61. Records of violations required.
Sec. 24-62. Files on drivers.
Sec. 24-63. Emergency and experimental regulations; testing of devices.
Secs. 24-64—24-75. Reserved.

Division 2. Citations for Violations

Sec. 24-76. Forms and records.
Sec. 24-77. Issuance of citations.
Sec. 24-78. Disposition of citations; records of same.
Sec. 24-79. Illegal cancellation of citations.
Sec. 24-80. Audit of records and reports.
Sec. 24-81. Failure to answer citation.
Sec. 24-82. Placing citations on illegally-parked vehicles.
Sec. 24-83. Warrants to be issued for persons failing to appear.
Sec. 24-84. Witness citations.
Sec. 24-85. Deposit of chauffeur's or operator's license in lieu of bail; receipt; failure to appear; alternate procedure.
Sec. 24-86. Collection of fines for nonmoving traffic violations; service by mail.
Secs. 24-87—24-95. Reserved.

Division 3. Transportation Department

Sec. 24-96. Duties generally.
Sec. 24-97. Reserved.
Sec. 24-98. Reserved.
Sec. 24-99. Reserved.
Sec. 24-100. Issuance of special events permits.
Sec. 24-101. Application for special events permits.
Sec. 24-102. Review of plans for special events and authority of Transportation Department.

Sec. 24-103. Provision of police officers for special events.
Sec. 24-104. Fees for special events permit.
Sec. 24-105. Issuance of special events permit.
Secs. 24-106—24-110. Reserved.

Division 4. Traffic Division

Sec. 24-111. Traffic Unit Established.
Sec. 24-112. Duties Generally.
Sec. 24-113. Investigation of accidents.
Sec. 24-114. Cooperation with Transportation Department in Accident Studies.
Sec. 24-115. Maintenance of Accident Report Files.
Sec. 24-116. Annual Report Required.
Secs. 24-117—24-130. Reserved.

Division 5. Reserved

Sec. 24-131—24-150. Reserved.

Article III. Accidents

Sec. 24-151. Immediate notice to police required.
Secs. 24-152—24-165. Reserved.

Article IV. Pedestrians

Sec. 24-166. Designation of crosswalks, safety zones.
Sec. 24-167. Pedestrians subject to traffic regulations.
Sec. 24-168. Right-of-way in crosswalks.
Sec. 24-169. Crossing at other than crosswalks.
Sec. 24-170. Crossing roadway of bridges.
Sec. 24-171. Drivers to exercise due care.
Sec. 24-172. Pedestrians to use right half of crosswalks.
Sec. 24-173. Walking on roadways.
Sec. 24-174. Solicitation of rides or business; guarding vehicle.
Sec. 24-175. Obstructing sidewalks, crosswalks.
Sec. 24-176. Persons standing or soliciting in streets.
Sec. 24-177. Blind persons; deaf persons.
Secs. 24-178—24-190. Reserved.

Article V. One-Way Streets and Alleys

Sec. 24-191. Signs required; establishment and regulation.
Sec. 24-192. Designation; obedience.
Sec. 24-193. Restriction of direction of movement on streets during certain periods.
Secs. 24-194—24-205. Reserved.

Article VI. Right-of-Way

Sec. 24-206. Vehicles approaching or entering intersections.
Sec. 24-207. Designation of through streets.

Sec. 24-208. Vehicles turning left at intersections.
Sec. 24-209. Movement of traffic at yield intersections.
Secs. 24-210—24-220. Reserved.

Article VII. Turning Movements and Stopping

Sec. 24-221. Generally.
Sec. 24-222. Required position and method of turning at intersection.
Sec. 24-223. Turning markers, signs, etc., indicating course of travel.
Sec. 24-224. Restricted turn signs.
Sec. 24-225. Limitations on U-turns.
Sec. 24-226. Turning on curve or crest of hill prohibited.
Sec. 24-227. Signals.
Sec. 24-228. Signal lamps or mechanical signal devices required on certain vehicles.
Secs. 24-229—24-240. Reserved.

Article VIII. Speed Regulations

Sec. 24-241. Limits generally.
Sec. 24-242. Specific limits.
Sec. 24-243. Speed of motor-driven cycles.
Sec. 24-244. Speed of vehicles with solid rubber or cushion tires.
Sec. 24-245. Regulation of speed by traffic signals.
Sec. 24-246. Regulation of speed in road construction work zones.
Secs. 24-247—24-260. Reserved.

Article IX. Traffic-Control Devices

Sec. 24-261. Manual on Uniform Traffic Control Devices adopted by reference; severability; violation.
Sec. 24-262. Transportation Department to determine and establish.
Sec. 24-263. Obedience required.
Sec. 24-264. Devices to be in place before certain regulations enforced.
Sec. 24-265. Traffic-control signal legend.
Sec. 24-266. Pedestrian control signals.
Sec. 24-267. Flashing signals.
Sec. 24-268. Display of unauthorized devices.
Sec. 24-269. Interference with devices, railroad signals.
Sec. 24-270. Traffic lanes.
Sec. 24-271. Restriction on operation of trucks with three (3) or more axles.
Sec. 24-272. Uniform Vehicle Code, adopted by reference.
Sec. 24-273. Automated enforcement.
Secs. 24-274—24-285. Reserved.

Article X. Stopping, Standing and Parking

Division 1. Generally

Sec. 24-286. Prohibited in certain specified places.
Sec. 24-287. Parking in violation of signs.

Sec. 24-288. Reserved.
Sec. 24-289. Manner of parking on roadways.
Sec. 24-290. Angle parking.
Sec. 24-291. Reserved.
Sec. 24-292. Parking for display of vehicles for sale or repair.
Sec. 24-293. Curb loading zones—Designation.
Sec. 24-294. Same—Standing in passenger zone.
Sec. 24-295. Same—Standing in freight zone.
Sec. 24-296. Designation of public carrier stops and stands.
Sec. 24-297. Stopping, standing, parking of buses.
Sec. 24-298. Vehicles other than buses using bus stops.
Sec. 24-299. Duties when leaving vehicle unattended.
Sec. 24-300. Designation of curb parking spaces for the handicapped.
Sec. 24-301. Off-street parking required for persons parked transacting business from vehicles and carts in certain zones; such businesses prohibited in certain zones; exceptions.
Sec. 24-302. Enforcement and Civil Penalties.
Sec. 24-303. Removal of illegally parked vehicles.
Sec. 24-304—24-310. Reserved.

Division 2. Establishment of Parking Authority

Sec. 24-311. Creation of Parking Authority as Expansion of Duties of Metropolitan Transit Authority.
Sec. 24-312. Powers.
Secs. 24-313—24-315. Reserved.

Division 3. Parking Meters

Sec. 24-316. Definitions.
Sec. 24-317. Authorization to install parking meters.
Sec. 24-318. Parking space markings.
Sec. 24-319. Multi-Space Meters.
Sec. 24-320. Time limitations; Failure to Purchase Time or Confirm Purchase.
Sec. 24-321. Parking fees; depositing slugs; tampering.
Sec. 24-322. Proceeds from meter operation.
Sec. 24-323. Temporary covering of meters authorized.
Sec. 24-324. Hours of Operation; Days of Operation; Rates for Parking Meters; and Designation of Streets Where Parking Meters May be Located.
Sec. 24-325. Enforcement of Parking Regulations.
Sec. 24-326. Penalties for Violation.
Secs. 24-327—24-328. Reserved.

Division 4. Parking Citation Enforcement and Review

Sec. 24-329. Title.
Sec. 24-330. Establishment of hearing board.
Sec. 24-331. Alternative Procedures for Resolution of Parking Citation Disputes.
Sec. 24-332. Citation procedure.
Sec. 24-333. Information to be included in notice of parking violation.
Sec. 24-334. Responsibilities of person who receives notice; liability of vehicle owner.
Sec. 24-335. Hearing.
Sec. 24-336. City Court Adjudication.

Sec. 24-337. Immobilization and Impoundment of vehicles.
Sec. 24-338. Hearing to challenge validity of impoundment.
Sec. 24-339. Appeal of impoundment determination.
Sec. 24-340. Unclaimed vehicles to be deemed abandoned.

Division 5. Abandoned and Discarded Vehicles

Sec. 24-341. Definitions.
Sec. 24-342. Abandoning prohibited.
Sec. 24-343. Leaving nonoperating junked vehicle on street prohibited.
Sec. 24-344. Location or presence of discarded or abandoned vehicles within city deemed public nuisance; exceptions.
Sec. 24-345. Abatement or removal order; contents; service.
Sec. 24-346. Removal with permission of owner or occupant.
Sec. 24-347. Removal without permission of owner or occupant.
Sec. 24-348. Immediate removal authorized, when.
Sec. 24-348.1. Collection of expense of abatement; lien.
Sec. 24-349. Violations, penalty.
Secs. 24-350—24-355. Reserved.

Division 6. Special Stops

Sec. 24-356. Obedience to signals indicating approach of train.
Sec. 24-357. Avoiding crossing gates or barriers at railroad crossings.
Sec. 24-358. Certain vehicles to stop at all railroad grade crossings.
Sec. 24-359. Effect of preceding sections as to right of recovery.
Sec. 24-360. Moving heavy equipment at railroad grade crossings.
Sec. 24-361. Reserved.
Sec. 24-362. Requirements for stop signs; obedience.
Sec. 24-363. Stop signs at other than through streets.
Sec. 24-364. Stops required of vehicles emerging from alleys, driveways, buildings.
Sec. 24-365. Stopped vehicles not to block intersections or crosswalks.
Secs. 24-366—24-375. Reserved.

Division 7. Snow or Ice Emergency

Sec. 24-376. Proclamation.
Sec. 24-377. Special parking restrictions.
Secs. 24-378—24-379. Reserved.

Division 8. Neighborhood Parking

Sec. 24-380. Definitions.
Sec. 24-381. Designation generally; compliance.
Sec. 24-382. Designation of restricted on-street parking areas.
Sec. 24-383. Eligibility and criteria for establishment.
Sec. 24-384. Issuance of special parking permits upon application; terms, etc.
Sec. 24-385. Privileges and restrictions on parking permits.
Sec. 24-386. Unauthorized use of parking permit.
Sec. 24-387. Revocation of parking permit.

Division 9. Valet Parking

Sec. 24-388. On-street valet parking services permits, terms, etc.
Sec. 24-389. Privileges and restrictions on valet parking permits.
Sec. 24-390. Revocation and suspension of valet parking permit.
Sec. 24-390.1. Insurance requirements.

Division 10. Immobilization of Vehicles

Sec. 24-390.2. Title.
Sec. 24-390.3. Purpose.
Sec. 24-390.4. Definitions.
Sec. 24-390.5. Booting.
Sec. 24-390.6. License application.
Sec. 24-390.7. Parking fees.
Sec. 24-390.8. Penalties.
Sec. 24-390.9. Conditional release and payment plan for immobilized vehicles.

Article XI. Vehicle Licenses

Sec. 24-391. Applicability and exemptions.
Sec. 24-392. Fees levied.
Sec. 24-393. When fees payable; collection; issuance of license.
Sec. 24-394. When payment delinquent; collection.
Sec. 24-395. Repealed.
Sec. 24-396. Registration required.
Sec. 24-397. License to be displayed; transferability.
Sec. 24-398. Use of funds.
Sec. 24-399. Conversion to new system.
Secs. 24-400—24-435. Reserved.

Article XII. Vehicle Equipment

Sec. 24-436. Steering mechanism; alignment of wheels; suspension system.
Sec. 24-437. Horn.
Sec. 24-438. Mufflers and approved engine compression braking devices; definitions; noise test and signage.
Sec. 24-439. Brakes required.
Sec. 24-440. Performance ability of brakes; maintenance of brake system.
Sec. 24-441. Windshield must be equipped with wipers.
Sec. 24-442. Lights, etc., required—Vehicles other than motor vehicles.
Sec. 24-443. Lights required on motor vehicles; exceptions; regulations as to color, type and visibility distance.
Sec. 24-444. Same—Motorcycles.
Sec. 24-445. Same—Vehicles having width in excess of eighty (80) inches, truck tractors and trailers.
Sec. 24-446. Performance ability of lights.
Sec. 24-447. Emergency accessories for certain vehicles.
Sec. 24-448. Vehicles injuring pavement not to be used on streets.
Sec. 24-449. Mudguards required on certain vehicles.
Sec. 24-450. Television, moving picture screens prohibited.
Sec. 24-451. Tires; wheel assemblies.

Sec. 24-452. Rearview mirrors.
Sec. 24-453. Glass not to be defective.
Sec. 24-454. Operation of motor vehicle without adequate energy absorption system prohibited; alteration of altitude from ground level of passenger car prohibited; exceptions; enforcement; penalties.
Sec. 24-455. Windshield or safety goggles for the protection of operators and passengers.
Sec. 24-456. Rearview mirror, footrests and handlebars on motorcycles and motor-driven cycles.
Sec. 24-457. Operation of improper vehicles.
Secs. 24-458—24-470. Reserved.

Article XIII. Bicycles

Sec. 24-471. Responsibility of parents for children's violations.
Sec. 24-472. Applicability of regulations.
Sec. 24-473. Riders subject to vehicle regulations.
Sec. 24-474. Riders to ride on permanent seats.
Sec. 24-475. Number of passengers.
Sec. 24-476. Duty to keep to right, exercise care.
Sec. 24-477. Riding abreast.
Sec. 24-478. Reserved.
Sec. 24-479. Carrying articles on bicycles.
Sec. 24-480. Lights and reflectors.
Sec. 24-481. Bell or other warning device required.
Sec. 24-482. Brakes.
Sec. 24-483. Overtaking and Passing Bicycles.
Secs. 24-484—24-500. Reserved.

Article XIV. Schedules

Sec. 24-501. Schedule I—Through streets designated.
Sec. 24-502. Schedule II—Speed on through streets.
Sec. 24-503. Schedule III—Interstate highway maximum and minimum speed limits.
Sec. 24-504. Schedule IV—One-way streets.
Sec. 24-505. Schedule V—Parking Meter Zones and Parking Area Maps.
Sec. 24-506. Schedule VI—Speed on residential streets within public housing projects.
Sec. 24-507. Schedule VII—Restricted on-street parking area.
Secs. 24-508—24-510. Reserved.

Article XV. Dockless Electric Scooters and Bicycles

Sec. 24-511. Moratorium relating to the operation of dockless electric scooters and bicycles.

ARTICLE I. IN GENERAL

Sec. 24-1. Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Alley. A narrow street between two (2) property lines, one (1) or both of which lines are ordinarily at the rear of properties fronting on streets having a greater width.

Arterial street. Any United States or state numbered route, controlled access highway, or other major radial or circumferential street or highway designed by local authorities within their respective jurisdictions as part of a major arterial system of streets or highways;

Authorized emergency vehicle. Vehicles of the fire department, fire patrol, police vehicles or bicycles and such emergency vehicles as are designated or authorized by the commissioner or the chief of police of an incorporated city, and vehicles operated by commissioned members of the Tennessee bureau of investigation when on official business. Authorized emergency vehicle automatically includes the following:

(1) Every ambulance and emergency medical vehicle operated by any emergency medical service licensed by the department of health pursuant to state law.

(2) Every rescue vehicle or emergency response vehicle owned and operated by a state-chartered rescue squad, emergency lifesaving crew or active member unit of the Tennessee Association of Rescue Squads and no special authorization, approval or filing shall be required for such vehicle pursuant to this chapter by the commissioner of safety;

Autocycle. An enclosed motorcycle that is equipped with safety belts, rollbar, windshield, wipers, steering wheel, and equipment otherwise required on a motorcycle, and which has not more than three (3) wheels in contact with the roadway at any one (1) time.

Bicycle. Every device propelled by human power upon which any person may ride, having two (2) tandem wheels either of which is more than twenty (20) inches in diameter.

Bus. Every motor vehicle designed for carrying more than ten (10) passengers and used for the transportation of persons, and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

Business district. The territory contiguous to and including a street when, within any six hundred (600) feet along such street, there are buildings in use for business or industrial purposes, including, but not limited to, hotels, banks or office buildings, railroad stations and public buildings which occupy at least three hundred (300) feet of frontage on one (1) side or three hundred (300) feet collectively on both sides of the street.

Certified police cyclist. Any full time, sworn law enforcement officer who is certified by the International Police Mountain Bike Association or has otherwise been certified by the Tennessee peace officer standards and training commission as having received and successfully completed appropriate bicycle training in the performance of law enforcement functions.

Chauffeur. Every person who is employed by another for the principal purpose of driving a motor vehicle and every person who drives a school bus transporting school children or any motor vehicle when in use for the transportation of persons or property for compensation.

Commercial vehicle. Every vehicle designed, maintained or used primarily for the transportation of property.

Controlled-access highway. Every highway, street or roadway in respect to which owners or occupants of abutting property or lands and other persons having no legal right of access to or from the same, except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

Crosswalk.

(1) That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs, or, in the absence of curbs, from the edges of the traversable roadway.

(2) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Curb loading zone. A space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

Driver. Every person who drives or is in actual physical control of a vehicle.

Essential parts. All integral and body parts of a vehicle of a type required to be registered, the removal, alteration or substitution of which would tend to conceal the identity of the vehicle or substantially alter its appearance, model, type or mode of operation.

Explosives. Any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities or packing that an ignition by fire, by friction, by concussion, by percussion or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or of destroying life or limb.

Farm tractor. Every motor vehicle designed and used primarily as a farm implement for drawing plows, mowing machines and other implements of husbandry.

Flammable liquid. Any liquid which has a flash point of seventy degrees (70°) Fahrenheit, or less, as determined by a tagliabue or equivalent closed-cup test device.

Freight curb loading zone. A space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight or passengers.

Highway. The entire width between the boundary lines of every way when any part thereto is open to the use of the public for purposes of vehicular travel.

Implement of husbandry. Every vehicle which is designed for agricultural purposes and exclusively used by the owner thereof in the conduct of the owner's agricultural operations.

Intelligent transportation systems is the advanced application and integration of sensing, analysis, control and communications technologies, usually related, but not necessarily limited, to signalized traffic control systems, which aims to provide innovative services relating to different modes of transport and traffic management.

Intersection:

(1) The area embraced within the prolongation or connection of the lateral curb lines, or, if none, then the lateral boundary lines of the roadways of two (2) highways which join one (1) another at, or approximately at, right angles, or the areas within which vehicles traveling upon different highways joining at any other angle may come in conflict; or

(2) Where a highway includes two (2) roadways thirty (30) feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes two (2) roadways thirty (30) feet or more apart, then every crossing of two (2) roadways of such highways shall be regarded as a separate intersection.

Laned roadway. A roadway which is divided into two (2) or more clearly marked lanes for vehicular traffic.

Motorcycle. Every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three (3) wheels in contact with the ground, including a vehicle that is fully enclosed, has three (3) wheels in contact with the ground, weighs less than one thousand five hundred (1,500) pounds, and has the capacity to maintain posted highway speed limits, excluding a tractor or motorized bicycle.

Motor-driven cycle. Every motorcycle, including every motor scooter, with a motor which produces not to exceed five (5) brake horsepower, or with a motor with a cylinder capacity not exceeding one hundred twenty-five (125) cubic centimeters.

Motorized bicycle. A vehicle with two (2) or three (3) wheels, an automatic transmission, and a motor with a cylinder capacity not exceeding fifty (50) cubic centimeters which produces no more than two (2) brake horsepower and is capable of propelling the vehicle at a maximum design speed of no more than thirty (30) miles per hour on level ground. The operator of a motorized bicycle must be in possession of a valid operator's or chauffeur's license, and shall be subject to all applicable and practical rules of the road. A motorized bicycle may not be operated on a highway of the interstate and defense highway system, any similar limited access multilane divided highway, or upon sidewalks.

Motor vehicle. Every vehicle, including a low speed vehicle as defined in this section, that is self-propelled excluding motorized bicycles and every vehicle, including a low speed vehicle as defined in this section, that is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

Office traffic-control devices. All signs, signals, markings and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

Operator. Every person, other than a chauffeur, who drives or is in actual physical control of a motor vehicle upon a highway or who is exercising control over or steering a vehicle being towed by a motor vehicle.

Owner. A person who holds the legal title of a vehicle, or in the event a vehicle is the subject of an agreement for the conditional sale or lease thereof, with the right of purchase upon performance of the conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee, or in the event a mortgagor of a vehicle is entitled to possession, then such conditional vendee or lessee or mortgagor shall be deemed the owner for the purpose of this chapter.

Park. When prohibited means the standing of a vehicle whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading.

Passenger curb loading zone. A place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers.

Pedestrian. Any person afoot.

Police officer. Every officer of the police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic violations.

Private road or driveway. Every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Railroad. A carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

Railroad sign or signal. Any sign, signal or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

Railroad train. A steam engine, electric or other motor, with or without cars coupled thereto, operated upon rails, except streetcars.

Residential district. The territory contiguous to and including a street not comprising a business district when the property on such street for a distance of three hundred (300) feet or more is in the main improved with residence.

Right-of-way. The privilege of the immediate use of the roadway.

Roadway. That portion of a street or highway improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder In the event a highway includes two (2) or more separate roadways, the term "roadway" shall refer to any such roadway separately, but not to all such roadways collectively.

Safety zone. The area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

School bus. Every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school or privately owned and operated for compensation for the transportation of children to or from school;

Semitrailer. Every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Sidewalk. That portion of a street between the curb lines, or the lateral lines of a roadway, and the adjacent property lines, intended for the use of pedestrians.

Stop. When required, such term means complete cessation from movement.

Stop, stopping or standing. When prohibited means any stopping or standing of a vehicle whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Street. The entire width between boundary lines of every way when any part thereof is open to the use of the public for purposes of vehicular travel.

Through highway. Every street or highway or portion thereof at the entrances to which vehicular traffic from intersecting streets or highways is required by law to stop before entering or crossing the same and when stop signs are erected, as provided in this chapter.

Tractor. Any self-propelled vehicle designed or used as a traveling power plant or for drawing other vehicles, but having no provision for carrying loads independently.

Traffic. Pedestrians, ridden or herded animals, vehicles and other conveyances, either singly or together, while using any street for purposes of travel.

Traffic-control signal. Any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and proceed.

Traffic division. The traffic division of the police department of this city.

Trailer. Every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle.

Vehicle. Every device in, upon or by which any person or property is or may be transported or drawn upon a highway, except devices used exclusively upon stationary rails or racks.
(Code 1986, § 24-1; Ord. No. 12055, § 1, 2-18-07; Ord. No. 13687, § 2, 7-6-21)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—For similar provisions, see T.C.A., § 55-8-101.

Sec. 24-2. Police jurisdiction over interstate highways.

There are hereby designated as city streets those portions of interstate highways I-24, I-75, I-124 and any other interstate highways which lie within the corporate boundaries of the city, for the purpose of exercising police jurisdiction and law enforcement functions only upon said highways.
(Code 1986, § 24-2; Ord. No. 13466, § 1, 6-4-19)

Sec. 24-3. Enforcement of regulations.

It shall be the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all street traffic laws of this city and all of the state vehicle laws applicable to street traffic in this city.
(Code 1986, § 24-3)

Sec. 24-4. Authority to direct traffic.

(a) Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand or signal in conformance with traffic laws; provided that, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions require, notwithstanding the provisions of the traffic laws.

(b) Members of the school patrol assigned by the chief of police to safeguard school children crossing streets are hereby authorized to direct all traffic by voice, hand or signal in conformance with traffic laws. Members of the school patrol are authorized to enforce violations of motor vehicle and traffic ordinances or state laws occurring in their assigned school zone or in the immediate vicinity. Before entering upon their duties, members of the school patrol shall take an oath of office.
(Code 1986, § 24-4)

Sec. 24-5. Firemen may direct traffic.

Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Code 1986, § 24-5)

Sec. 24-6. Obedience to chapter.

It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter.
(Code 1986, § 24-6)

State law reference—Similar provisions, T.C.A., § 55-8-103.

Sec. 24-7. Obedience to police and fire officials.

No person shall willfully fail or refuse to comply with any lawful order or direction of a police officer or fire department official.
(Code 1986, § 24-7)

State law reference—Obedience to police officers, T.C.A., § 55-8-104.

Sec. 24-8. Obedience by persons propelling pushcarts or riding, driving animals.

Every person propelling any pushcart or riding an animal upon a roadway and every person driving any animal-drawn vehicle shall be subject to the provisions of this chapter applicable to the driver of any vehicle, except those provisions of this chapter which by their very nature can have no application.
(Code 1986, § 24-8)

State law reference—Obedience by persons riding or driving animals, T.C.A., § 55-8-105.

Sec. 24-9. Obedience by public employees.

The provisions of this chapter applicable to drivers of vehicles upon the highways shall apply to the driver of any vehicle owned by or used in the service of the United States Government, this state, or any county, city, town, district or any other political subdivision of the state subject to such specified exceptions as are set forth in this chapter or in state law.
(Code 1986, § 24-9)

State law reference—Similar provisions, T.C.A., § 55-8-106.

Sec. 24-10. Use of coasters, roller skates, toy vehicles.

No person upon roller skates or riding in or by means of any coaster, toy vehicle or similar device shall go upon any roadway, except while crossing a street on a crosswalk. When so crossing, such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians. This section shall not apply upon any street while set aside as a play street, as authorized by this Code.
(Code 1986, § 24-10).

Sec. 24-11. Authorized emergency vehicles—Operation generally.

(a) The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

(b) The driver of an authorized emergency vehicle may:

(1) Park or stand such vehicle, irrespective of the provisions of this chapter.

(2) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation.

(3) Exceed the prima facie speed limits, so long as he does not endanger life or property.

(4) Disregard regulations governing direction of movement or turning in specified directions.

(c) The exemption herein granted to an authorized emergency vehicle shall apply only when such vehicle is making use of audible or visual signals meeting the requirements of the applicable laws of this state, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from in front of the vehicle.

(d) The foregoing provisions shall not relieve the driver of a authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.
(Code 1986, § 24-11)

Cross reference—Ambulances, § 35-181 et seq.

State law reference—Similar provisions, T.C.A., § 55-8-108.

Sec. 24-12. Emergency vehicles; right of way; penalty.

(a) Upon the immediate approach of an authorized emergency vehicle making use of audible and visual signals meeting the requirements of the applicable laws of this state, or of a police vehicle properly and lawfully making use of an audible signal only:

(1) The driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the right-hand edge or curb of the roadway clear of any intersection, and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer; and

(2) Upon the approach of an authorized emergency vehicle, as above stated, the operator of every streetcar shall immediately stop such car clear of any intersection and keep it in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(b) Upon approaching a stationary authorized emergency vehicle, when such vehicle is giving a signal by use of flashing lights, a person who drives an approaching vehicle shall:

(1) Proceeding with due caution, yield the right-of-way by making a lane change into a lane not adjacent to that of the authorized emergency vehicle, if possible with due regard to safety and traffic conditions, if on a highway having at least four (4) lanes with not less than two (2) lanes proceeding in the same direction as the approaching vehicle; or

(2) Proceeding with due caution, reduce the speed of the vehicle, maintaining a safe speed for road conditions, if changing lanes would be impossible or unsafe.

(c) Upon approaching a stationary recovery vehicle or a highway maintenance vehicle, when such vehicle is giving a signal by use of authorized flashing lights, a person who drives an approaching vehicle shall:

(1) Proceeding with due caution, yield the right-of-way by making a lane change into a lane not adjacent to the stationary recovery vehicle or the highway maintenance vehicle, if possible with due regard to safety and traffic conditions, if on a highway having at least four (4) lanes with not less than two (2) lanes proceeding in the same direction as the approaching vehicle; or

(2) Proceeding with due caution, reduce the speed of the vehicle, maintaining a safe speed for road conditions, if changing lanes would be impossible or unsafe.

(d) For the purpose of this section unless the context otherwise requires:

(1) "Highway maintenance vehicle" means a vehicle used for the maintenance of highways and roadways in this state and is:

(A) Owned or operated by the department of transportation, a county, a municipality or other political subdivision of this state; or,

(B) Owned or operated by a contractor under contract with the department of transportation, a county, a municipality or other political subdivision of this state;

(2) "Recovery vehicle" means a truck that is specifically designed for towing a disabled vehicle or a combination of vehicles.

(e) A violation of this section is punishable by a fine of not less than fifty dollars ($50.00).

(f) This section shall not operate to relieve the driver of an authorized emergency vehicle, a recovery vehicle or a highway maintenance vehicle from the duty to operate such vehicle with due regard for the safety of all persons using the highway.
(Code 1986, § 24-12; Ord. No. 12055, § 2, 12-18-07)

State law reference—Similar provisions, T.C.A., § 55-8-132.

Sec. 24-13. Reckless driving.

(a) Any person who drives any vehicle in willful or wanton disregard for the safety of persons or property is guilty of reckless driving.

(b) Every person convicted of reckless driving shall be punished upon the first conviction by a fine of not less than five dollars ($5.00), on a second conviction by a fine of not less than ten dollars ($10.00), on a third conviction by a fine of not less than twenty-five dollars ($25.00) and on all subsequent convictions by a fine of not less than fifty dollars ($50.00).
(Code 1986, § 24-13)

State law reference—Similar provisions, T.C.A., § 55-10-205.

Sec. 24-14. Following, parking near fire apparatus.

The driver of any vehicle other than one (1) on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than five hundred (500) feet or drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm.
(Code 1986, § 24-14)

Cross references—Fire department generally, § 16-26 et seq.; fire prevention, Ch. 17.

State law reference—Similar provisions, T.C.A., § 55-8-168.

Sec. 24-15. Crossing fire hose.

No vehicle shall be driven over any unprotected hose of a fire department when laid down on any street, private driveway or track to be used at any fire or alarm of fire without the consent of the fire department official in command.
(Code 1986, § 24-15)

Cross references—Fire department, § 16-26 et seq.; fire prevention generally, Ch. 17.

State law reference—Similar provisions, T.C.A. § 55-8-169.

Sec. 24-16. Manner of driving in processions.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practicable and shall follow the vehicle ahead as close as is practical and safe.
(Code 1986, § 24-16)

Sec. 24-17. Traffic operation during funeral processions.

Funeral processions properly identified by a flashing amber light on the lead vehicle or led by a properly identified escort shall have the right-of-way on any street, highway, or road through which they may pass, subject to the following provisions:

(a) The operator of the leading vehicle in a funeral procession shall comply with stop signs and traffic-control signals, but when the leading vehicle has progressed across an intersection in

accordance with such signal or after stopping as required by the stop sign, all vehicles of such procession may proceed without stopping regardless of the sign or signal when each of such vehicles has its headlights lighted;

(b) Vehicles in a funeral procession shall drive on the right-hand side of the roadway and shall follow the vehicle ahead as close as is practical and safe;

(c) Operators of vehicles in a funeral procession shall yield the right-of-way to an authorized emergency vehicle giving audible signal by siren and shall yield the right-of-way when directed to do so by a traffic officer;

(d) On public highways and interstates, vehicles in a funeral procession shall proceed at a minimum speed of forty-five (45) miles per hour; and otherwise, on streets and roads at a speed not to exceed five (5) miles per hour below the posted speed;

(e) Oncoming traffic is hereby instructed to proceed as normal when meeting a funeral procession;

(f) Vehicles following a funeral procession on a two (2) lane highway may not attempt to pass such procession; and

(g) No operator of a vehicle shall drive between vehicles in a properly identified funeral procession except when directed to do so by a traffic officer.

(Code 1986, § 24-17; Ord. No. 9950, § 2, 9-14-93)

Sec. 24-18. Driving other vehicles through funeral processions.

No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required in this chapter. This provision shall not apply at intersections where traffic is controlled by traffic-control signals or police officers.

(Code 1986, § 24-18)

Sec. 24-19. Identification of processions.

A funeral composed of a procession of vehicles shall be identified as such by the display upon the outside of each vehicle of a pennant or other identifying insignia or by such other method as may be determined and designated by the traffic division.

(Code 1986, § 24-19)

Sec. 24-20. Driving on sidewalks.

The driver of a vehicle shall not drive within any sidewalk area except at a permanent or temporary driveway.

(Code 1986, § 24-20)

Cross references—Sidewalk vendors, § 11-371 et seq.; curb and sidewalk construction and maintenance regulations, § 32-101 et seq.; sidewalk openings and gratings, § 32-126 et seq.

Sec. 24-21. Slow poke law.

(a) On interstate and multi-lane divided highways that are three (3) or more lanes in each direction, a person shall not operate a vehicle in the passing lane, except when overtaking or passing a vehicle that is in a non-passing lane.

(b) This section shall not apply:

(1) When the volume of traffic does not permit the vehicle to safely merge into a non-passing lane;

(2) When inclement weather or an official traffic control device makes it necessary to drive in the passing lane;

(3) When obstructions or hazards exist in a non-passing lane;

(4) When avoiding traffic moving onto the highway from an acceleration or merging lane;

(5) When highway design makes it necessary to drive in the passing lane to exit or turn left;

(6) To authorized emergency vehicles engaged in official duties; or

(7) To vehicles engaged in highway maintenance and construction operations.

(c) As used in this section:

(1) "Non-passing lane" means any lane that is to the right of the passing lane; and

(2) "Passing lane" means:

(A) The furthermost left lane; or

(B) The lane immediately to the right of the furthermost left lane, during the specified hours of specified days of the week when the furthermost left lane is reserved for the exclusive use of high occupancy vehicles pursuant to Tennessee Code Section 55-8-188.

(Ord. No. 13466, § 2, 6-4-19)

Sec. 24-22. Limitations on backing.

The driver of a vehicle shall not back the same unless such movement can be made with reasonable safety and without interfering with other traffic.

(Code 1986, § 24-22)

State law reference—Similar provisions, T.C.A. § 55-8-163.

Sec. 24-23. Motorcycle and Motor-Driven Cycles; required equipment; operating; riding.

(a) The driver of a motorcycle, motorized bicycle, as defined in chapter 8 of this title, or motor-driven cycle, and any passenger on any of these, shall be required to wear either a crash helmet meeting federal standards contained in 49 CFR 571.218, or, if such driver or passenger is twenty-one (21) years of age or older, a helmet meeting the following requirements:

(1) Except as provided in subdivisions (a)(2)—(4), the helmet shall meet federal motor vehicle safety standards specified in 49 CFR 571.218;

(2) Notwithstanding any provision in 49 CFR 571.218 relative to helmet penetration standards, ventilation airways may penetrate through the entire shell of the helmet; provided, that no ventilation airway shall exceed one and one-half (1½) inches in diameter;

(3) Notwithstanding any provision in 49 CFR 571.218, the protective surface shall not be required to be a continuous contour; and

(4) Notwithstanding any provision in 49 CFR 571.218 to the contrary, a label on the helmet shall be affixed signifying that such helmet complies with the requirements of the American Society for Testing Materials (ASTM), the Consumer Product Safety Commission (CPSC), the Southern Impact Research Center (SIRC), or the Snell Foundation

(b) This section does not apply to persons riding:

(1) Within an enclosed cab;

(2) Motorcycles that are fully enclosed, have three (3) wheels in contact with the ground, weigh less than one thousand five hundred (1,500) pounds and have the capacity to maintain posted highway speed limits;

(3) Golf carts; or

(4) In a parade, at a speed not to exceed thirty (30) miles per hour, if the person is eighteen (18) years or older.

(5) Autocycles.

(c) No person shall ride as a passenger upon a motorcycle or motor-driven cycle unless a proper seat for a passenger is installed thereon.

(d) No parent or guardian shall knowingly permit a minor to operate a motorcycle or motor-driven cycle in violation of this part.

(e) Every motorcycle or motor-driven cycle operated upon any highway or public road of this state shall be equipped with a windshield, or, in the alternative, the operator and any passenger on any such motorcycle or motor-driven cycle shall be required to wear safety goggles, face shields, or glasses containing impact resistant lenses.

(f) All motorcycles and motor-driven cycles operated upon any highway or public road of this state shall be equipped with a rearview mirror and securely attached footrests for the operators and passengers on all motorcycles and motor-driven cycles.

(g) A violation of this shall be punishable by a fine not to exceed Fifty Dollars ($50.00).

(Code 1986, § 24-23; Ord. No. 9654, § 107, 1-6-92; Ord. No. 12055, § 3, 12-18-07)

State law reference—T.C.A. §§ 55-9-301 through 55-9-308.

Sec. 24-24. Clinging to vehicles.

No person riding upon any bicycle, roller skates, sled or toy vehicle shall attach the same or himself to any vehicle upon a roadway.
(Code 1986, § 24-24)

State law reference—Similar provisions, T.C.A. § 55-8-174.

Sec. 24-25. Obstruction of driver's view.

(a) No person shall drive a vehicle when it is so loaded, or when there are in the front seat such a number of persons, exceeding four (4), as to obstruct the view of the driver to the front or sidewalk of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.

(b) No passenger in a vehicle shall ride in such position as to interfere with the driver's view ahead or to the sides or to interfere with his control over the driving mechanism of the vehicle.
(Code 1986, § 24-25)

State law reference—Similar provisions, T.C.A. § 55-8-165.

Sec. 24-26. Emerging from vehicle.

No person shall open the door of or enter or emerge from any vehicle into the path of any approaching vehicle.
(Code 1986, § 24-26)

Sec. 24-27. Clearance and width, signs at railroad underpasses.

(a) Every railroad company owning or using tracks across an overpass or underpass through or under which there is a street or highway at its expense and with the approval of the Transportation Department, shall cause to be placed in full view beside the approaching street or highway or on the exterior of each entrance legible signs or other adequate notice, giving the clearance and width thereunder for motor vehicles and such other information as will better enable safe travel thereunder by motor vehicles and pedestrians.

(b) Any railroad company violating this section shall be guilty of a misdemeanor and each day of violation shall be deemed a separate offense and punishable as such. In addition thereto, any violation shall render a railroad company liable to reimburse the city for any and all expense it may have incurred by reason thereof.
(Code 1986, § 24-27; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-28. Reports to police of vehicles left in garages, parking lots, etc., thirty (30) days or more.

(a) Whenever a motor vehicle has been stored, parked or left in a garage, trailer park or any type of storage or parking lot for a period of more than thirty (30) consecutive days, the owner of such garage, trailer park or lot shall report in writing the make, motor number, vehicle identification number and serial number of such motor vehicle to the chief of police; provided, that nothing in this section shall apply where the owner of the motor vehicle so parked or stored is personally known to the owner or operator of the garage, trailer park, storage or parking lot and where such motor vehicle owner has made arrangements for the parking or storing of such motor vehicle for a longer period of time than thirty (30) days.

(b) Any person who fails to submit the report required by this section within ten (10) days after the termination of the thirty (30) day period shall be guilty of a misdemeanor for each offense, and each day's failure to make such report shall be deemed a separate offense and punishable as such.
(Code 1986, § 24-28)

Sec. 24-29. Repealed.

(Ord. No. 11379, 2-11-03)

Editor's note—The repealed section dealt with horse drawn vehicles on Market Street. Please see Chapter 35, Article VI, Sections 35-186 through 35-225, relative to regulation of horse drawn carriages adopted by Ord. No. 11378, 2-11-03.

Sec. 24-30. Driving on laned roadways.

(a) The following definitions shall apply to this section:

Access controlled highway. A highway or street especially designed for through traffic, with grade-separated interchanges rather than at-grade intersections, and to which owners or occupants of abutting land or other persons have no legal right or easement of access from abutting land.

Eligible highways. Highways on the Interstate Highway System and access controlled, multilane divided highways on the state highway system that have three (3) or more lanes in each direction of travel.

Semi trailer. Every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Truck tractor. Every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.

(b) Whenever any roadway has been divided into two (2) or more clearly marked lanes for traffic the following rules in addition to all others consistent therewith shall apply:

(1) A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(2) Upon a roadway which is divided into three (3) lanes, a vehicle shall not be driven in the center lane, except when overtaking and passing another vehicle, where the roadway is clearly visible and such center lane is clear of traffic within a safe distance, or in preparation for a left turn, or where such center line is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted to give notice of such allocation.

(3) The city Administrator of the Transportation Department may determine the need for signs directing slow moving traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway. Drivers of vehicles shall obey the directions of every such sign.

(4) Where passing is unsafe because of traffic in the opposite direction or other conditions, a slow-moving vehicle, including a passenger vehicle, behind which five (5) or more vehicles are formed in line, shall turn or pull off the roadway wherever sufficient area exists to do so safely, in order to permit vehicles following it to proceed. As used in this subdivision (4), a slow-moving vehicle is one (1) which is proceeding at a rate of speed which is ten (10) miles per hour or more below the lawful maximum speed for that particular roadway at that time. This subsection shall not apply to funeral processions or school buses.

(5) Except as otherwise provided in these rules, truck tractors and semi trailers shall be restricted to the right two (2) lanes of travel in designated areas of eligible highways where appropriate signage has been posted. This subsection shall not apply to buses.

(6) Truck lane restrictions shall not apply when truck tractors and semi trailers are passing other motor vehicles. The passing maneuver shall be safely completed in as short a time period as feasible. The passing maneuver shall consist of passing one (1) motor vehicle at a time. This subsection shall not apply to buses.

(c) The restrictions set forth in this section shall not apply during lane closures authorized by law enforcement officers, firefighters, the Tennessee Department of Transportation or other authorized officials.
(Code 1986, § 24-30; Ord. No. 12055, § 4, 12-18-07; Ord. No. 12736, § 3, 7-2-13)

State law reference—Similar provisions, T.C.A. § 55-8-123.

Sec. 24-31. Vehicles to be driven on right side of roadway; exceptions.

(a) Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:

(1) When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement.

(2) When the right half of a roadway is closed to traffic under construction or repair.

(3) Upon a roadway divided into three (3) marked lanes for traffic under the rules applicable thereon.

(4) Upon a roadway designated and signposted for one-way traffic.

(b) Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.
(Code 1986, § 24-31)

State law reference—Similar provisions, T.C.A. § 55-8-115.

Sec. 24-32. Meeting vehicles proceeding in opposite directions.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right. Upon roadways having width for not more than one (1) line of traffic in each direction, each driver shall give to the other at least one-half (1/2) of the main traveled portion of the roadway as nearly as possible.
(Code 1986, § 24-32)

State law reference—Similar provisions, T.C.A. § 55-8-116.

Sec. 24-33. Overtaking vehicles proceeding in same direction.

The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to those limitations, exceptions and special rules hereinafter stated:

(1) The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

(2) Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(Code 1986, § 24-33)

State law reference—Similar provisions, T.C.A. § 55-8-117.

Sec. 24-34. When passing on right permitted.

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(1) When the vehicle overtaken is making or about to make a left turn.

(2) Upon a street or highway with unobstructed pavement not occupied by parked vehicles of sufficient width for two (2) or more lines of moving vehicles in each direction.

(3) Upon a one-way street or upon any roadway on which traffic is restricted to one (1) direction of movement, where the roadway is free from obstructions and of sufficient width for two (2) or more lines of moving vehicles.

(b) The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main traveled portion of the roadway.
(Code 1986, § 24-34)

State law reference—Similar provisions, T.C.A. § 55-8-118.

Sec. 24-35. Limitations on passing on the left.

No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless such left side is clearly visible and is free from oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to the right-hand side of the roadway before coming within one hundred (100) feet of any vehicle approaching from the opposite direction.
(Code 1986, § 24-35)

State law reference—Similar provisions, T.C.A. § 55-8-119.

Sec. 24-36. Limitations on driving to left of center of roadway.

(a) No vehicle shall at any time be driven to the left side of the roadway under the following conditions:

(1) When approaching the crest of a grade or upon a curve in the highway where the driver's view is obstructed within three hundred (300) feet or such distance as to create a hazard in the event another vehicle might approach from the opposite directions.

(2) When approaching within one hundred (100) feet of or traversing any intersection or railroad grade crossing.

(3) When the view is obstructed upon approaching within one hundred (100) feet of any bridge, viaduct or tunnel.

(b) The foregoing limitations shall not apply upon a one-way roadway.
(Code 1986, § 24-36)

State law reference—Similar provisions, T.C.A. § 55-8-120.

Sec. 24-37. Establishment of no-passing zones.

The city Administrator of the Transportation Department is hereby authorized to determine those portions of any street where overtaking and passing or driving to the left of the roadway would be especially

hazardous and may by appropriate signs or markings on the roadway indicate the beginning and end of such zones and when such signs or markings are in place and clearly visible to an ordinarily observant person every driver of a vehicle shall obey the directions thereof.
(Code 1986, § 24-37; Ord. No. 12736, § 3, 7-2-13)

State law reference—Similar provisions, T.C.A. § 55-8-121.

Sec. 24-38. Following too closely.

The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the highway.
(Code 1986, § 24-38)

State law reference—Similar provisions, T.C.A. § 55-8-124(a).

Sec. 24-39. Driving on divided highways.

Whenever any highway has been divided into two (2) roadways by leaving an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway. No vehicle shall be driven over, across or within any such dividing space, barrier or section, except through an opening in such physical barrier or dividing section or space or at a crossover or intersection established by public authority.
(Code 1986, § 24-39)

State law reference—Similar provisions, T.C.A. § 55-8-125.

Sec. 24-40. Use of controlled-access highways by nonmotorized traffic, motor-driven cycles.

(a) The use of any controlled-access highway or roadway located within the city by pedestrians, bicycles or other nonmotorized traffic or by any persons operating a motor-driven cycle (which shall be defined as every motor scooter with a motor which produces not to exceed five (5) horsepower and every bicycle with motor attached) is prohibited except as may be necessary in order to leave controlled-access highway due to an emergency arising after entry thereon in a lawful manner or except as may be necessary in order to police, maintain or clean a controlled-access highway and its appurtenances.

(b) This section shall not be enforced against an alleged violator if at the time and place of the alleged violation, an official sign is not in proper position on the controlled-access highway or roadway and sufficiently legible to be seen by an ordinarily observant person.
(Code 1986, § 24-40)

State law reference—Authority to restrict use of controlled-access highways, T.C.A. § 55-8-127.

Sec. 24-41. Entering through highway or stop intersection.

(a) The driver of a vehicle shall stop as required by section 24-363 of this Code at the entrance to a through highway and shall yield the right-of-way to other vehicles which have entered the intersection from such through highway or which are approaching so closely on such through highway as to constitute an immediate hazard, but the driver having so yielded may proceed and the drivers of all other vehicles approaching the intersection on such highway shall yield the right-of-way to the vehicle so proceeding into or across the through highway.

(b) The driver of a vehicle shall likewise stop in obedience to a stop sign, as required herein, at an intersection where a stop sign is erected at one (1) or more entrances thereto, although not a part of a through highway, and shall proceed cautiously, yielding to vehicles not so obliged to stop which are within the intersection or approaching so closely as to constitute an immediate hazard, but may then proceed.
(Code 1986, § 24-41)

State law reference—Similar provisions, T.C.A. § 55-8-130.

Sec. 24-42. Reserved.

Sec. 24-43. Driver's license required for operation of a motor vehicle.

(a) No person may operate a motor vehicle of any kind on any street, road, highway, or public thoroughfare within the city unless such person has a valid driver's license.

(b) No person while within the passenger compartment of any motor vehicle shall steer or exercise any degree of physical control of a vehicle towed by a motor vehicle upon a street, highway or public thoroughfare within the city unless such person has a valid state driver's license.
(Ord. No. 9898, § 1, 7-13-93)

Sec. 24-44. Automobile registration required.

No vehicle may be operated upon the streets, highways, or public thoroughfares of the city unless such vehicle has been properly registered as required by state law.
(Ord. No. 9899, § 1, 7-13-93)

Sec. 24-45. Display of registration plates.

(a) All motor vehicles operated within the city shall display registration plates issued by a state government.

(b) The registration plate issued for passenger motor vehicles shall be attached on the rear of the vehicle. The registration plate issued for those trucks with a manufacturer's ton rating not exceeding three-quarter (3/4) ton and having a panel or pickup body style, and also those issued for all motor homes, regardless of ton rating or body style thereof, shall be attached to the rear of the vehicle. The registration plate issued for all other trucks and truck tractors shall be attached to the front of the vehicle. All dealers' plates, as provided in § 55-4-221, and those registration plates issued for motorcycles, trailers or semitrailers shall be attached to the rear of the vehicle.

(c) Every registration plate shall at all times be securely fastened in a horizontal position to the vehicle for which it is issued so to prevent the plate from swinging and at a height of not less than twelve (12) inches from the ground, measuring from the bottom of such plate, in a place and position to be clearly visible and shall be maintained free from foreign materials and in a condition to be clearly legible. No tinted materials may be placed over a license plate even if the information upon such license plate is not concealed.

(d) A person charged with a violation of this section may, in lieu of appearance in court, submit a fine of ten dollars ($10.00) for a first violation, and twenty dollars ($20.00) on second and subsequent violations to the clerk of the court which has jurisdiction of such offense within the county in which the offense charged is alleged to have been committed.
(Ord. No. 9900, § 1, 7-13-93; Ord. No. 12055, § 5, 12-18-07)

Sec. 24-46. Safety belts, use; exceptions.

(a) "Passenger car" or "passenger motor vehicle" means a motor vehicle with a manufacturer's gross vehicle weight of eight thousand five hundred (8,500) pounds or less that is not used as a public or commercial motor vehicle for conveyance of passengers for hire.

(b) (1) No person shall operate a passenger motor vehicle on any highway or street in this City, as defined in this Chapter, within the corporate limits of this City unless such person and all passengers four (4) years of age or older are restrained by a safety belt at all times the vehicle is in forward motion.

(2) No person four (4) years of age or older shall be a passenger in a passenger motor vehicle on any highway or street in this state, unless such person is restrained by a safety belt at all times the vehicle is in forward motion.

(c) (1) The provisions of this section shall apply only to the operator and all passengers occupying the front seat of a passenger motor vehicle.

(2) If the vehicle is equipped with a rear seat which is capable of folding, the provisions of this section shall only apply to front seat passengers and the operator if the back seat is in the fold down position.

(d) As used in this section, unless specified otherwise, "passenger car" or "passenger motor vehicle" means any motor vehicle with a manufacturer's gross vehicle weight rating of eight thousand five hundred (8,500) pounds or less, that is not used as a public or livery conveyance for passengers. "Passenger car" or "passenger motor vehicle" does not apply to motor vehicles which are not required by federal law to be equipped with safety belts.

(e) In no event shall a violation of this section be assigned a point value for suspension or revocation of a license by the department of safety, nor shall such violation be construed as any other offense under the provisions of this title.

(f) This section does not apply to:

(1) A passenger or operator with a physically disabling condition whose physical disability would prevent appropriate restraint in such safety seat or safety belt; provided, that such condition is duly certified in writing by a physician who shall state the nature of the handicap, as well as the reason such restraint is inappropriate;

(2) A passenger motor vehicle operated by a rural letter carrier of the United States postal service while performing the duties of a rural letter carrier;

(3) Salespersons or mechanics employed by an automobile dealer who, in the course of their employment, test-drive a motor vehicle, if such dealership customarily test-drives fifty (50) or more motor vehicles a day, and if such test-drives occur within one (1) mile of the location of the dealership;

(4) Utility workers, water, gas and electric meter readers in the course of their employment;

(5) A newspaper delivery motor carrier service while performing the duties of a newspaper delivery motor carrier service; provided, that this exemption shall only apply from the time of the actual first delivery to the customer until the last actual delivery to the customer;

(6) A vehicle in use in a parade if operated at less than fifteen (15) miles per hour;

(7) A vehicle in use in a hayride if operated at less than fifteen (15) miles per hour; or

(8) A vehicle crossing a highway from one (1) field to another if operated at less than fifteen (15) miles per hour.

(g) (1) Notwithstanding any provision of this section to the contrary, no person between sixteen (16) years of age and up to and through the age of seventeen (17) years of age, shall operate a passenger motor vehicle, or be a passenger therein, unless such person is restrained by a safety belt at all times the vehicle is in forward motion.

(2) Notwithstanding subdivision (b)(1), the provisions of this subsection (i) shall apply to all occupants between sixteen (16) years of age and eighteen (18) years of age occupying any seat in a passenger motor vehicle.

(3) Notwithstanding subdivision (f)(1), a law enforcement officer observing a violation of this subsection (i) shall issue a citation to the violator, but shall not arrest or take into custody any person solely for a violation of this subsection (i).

(h) Notwithstanding the provisions of subsection (b), no person with a learner permit or an intermediate driver license shall operate a passenger motor vehicle in this state unless such person and all passengers between the ages of four (4) and seventeen (17) years of age are restrained by a safety belt at all times the vehicle is in forward motion.

(i) The department of safety shall file a report by March 1 of each year to the 104th, 105th, and 106th general assembly on data collected for the prior five (5) years by the department relating to violations of this section. Such data shall include the number of persons cited for violations of this section, their race, ethnicity, sex, age, and any other information the department deems relevant.

(1) Any person transporting any child, under one (1) year of age, or any child, weighing twenty (20) pounds or less, in a motor vehicle upon a road, street or highway of Tennessee is responsible for the protection of the child and properly using a child passenger restraint system in a rear facing position, meeting federal motor vehicle safety standards in the rear seat if available or according to the child safety restraint system or vehicle manufacturer's instructions.

(2) Notwithstanding the provisions of § 55-9-603, any person transporting any child, one (1) through three (3) years of age weighing greater than twenty (20) pounds, in a motor vehicle upon a road, street or highway of Tennessee is responsible for the protection of the child and properly using a child passenger restraint system in a forward facing position, meeting federal motor vehicle safety standards in the rear seat if available or according to the child safety restraint system or vehicle manufacturer's instructions.

(3) Notwithstanding the provisions of § 55-9-603, any person transporting any child, four (4) through eight (8) years of age and measuring less than four (4) feet, nine (9) inches in height, in a passenger motor vehicle upon a road, street or highway of Tennessee is responsible for the protection of the child and properly using a belt positioning booster seat system, meeting federal motor vehicle safety standards in the rear seat if available or according to the child safety restraint system or vehicle manufacturer's instructions.

(4) (A) If a child is not capable of being safely transported in a conventional child passenger restraint system as provided for in this subsection (a), a specially modified, professionally manufactured restraint system meeting the intent of this subsection (a) shall be in use; provided, however, that the provisions of this subdivision (a)(4) shall not be satisfied by use of the vehicle's standard lap or shoulder safety belts independent of any other child passenger restraint system. A motor vehicle operator who is transporting a child in a specially modified, professionally manufactured child passenger restraint system shall possess a copy of the physician's signed prescription that authorizes the professional manufacture of the specially modified child passenger restraint system.

(B) A person shall not be charged with a violation of this subsection (a) if such person presents a copy of the physician's prescription in compliance with the provisions of this subdivision (a)(4) to the arresting officer at the time of the alleged violation.

(C) A person charged with a violation of this subsection (a) may, on or before the court date, submit a copy of the physician's prescription and evidence of possession of a specially modified, professionally manufactured child passenger restraint system to the court. If the court is satisfied that compliance was in effect at the time of the violation, the charge for violating the provisions of this subsection (a) may be dismissed.

(j) All passenger vehicle rental agencies doing business in the state of Tennessee shall make available at a reasonable rate to those renting such vehicles an approved restraint as described in subsection (a).

(k) Persons found guilty of a first offense of violating this section may be required to attend a court approved offenders' class designed to educate offenders on the hazards of not properly transporting children in motor vehicles. A fee may be charged for such classes sufficient to defray all costs of providing such classes.

(Ord. No. 9901, § 1, 7-13-93; Ord. No. 12055, § 6, 12-18-07)

State law reference—Similar provisions T.C.A. §§ 55-9-602 and 603.

Sec. 24-47. Compliance with financial responsibility law required.

(a) Every motor vehicle within the corporate limits must be in compliance with the Tennessee Financial Responsibility Law of 1977, as amended.

(b) At the time the driver of a motor vehicle is charged with any moving violation under this title, chapters 8 and 10, parts 1—5, chapter 50, any provision of this municipal code regulating traffic, or at the time of an accident for which notice is required under T.C.A. § 55-10-106, the officer shall request evidence of financial responsibility as required by this section. In case of an accident for which notice is required under T.C.A. § 55-10-106, the officer shall request such evidence from all drivers involved in the accident, without regard to apparent or actual fault.

(c) For the purposes of this section, "financial responsibility" means:

(1) Documentation, such as the declaration page of an insurance policy, an insurance binder, or an insurance card from an insurance company authorized to do business in Tennessee, stating that a policy of insurance meeting the requirements of the Tennessee Financial Responsibility Law of 1977, as amended, compiled in title 55, chapter 12 of Tennessee Code Annotated, has been issued;

(2) A certificate, valid for one (1) year, issued by the Tennessee Commissioner of Safety, stating that a cash deposit or bond in the amount required by the Tennessee Financial Responsibility Law of 1977, compiled in title 55, chapter 12 of Tennessee Code Annotated, has been paid or filed with the Commissioner, or has qualified as a self-insurer under T.C.A. § 55-12-111; or

(3) The motor vehicle being operated at the time of the violation was owned by a carrier subject to the jurisdiction of the Department of Safety or the Interstate Commerce Commission or was owned by the United States, this state or any political subdivision thereof, and that such motor vehicle was being operated with the owner's consent.

(d) It is an offense to fail to provide evidence of financial responsibility pursuant to this section. Any violation is punishable only by a fine of not more than fifty dollars ($50.00).

(e) On or before the court date, the person so charged may submit evidence of compliance with this section at the time of the violation. If the court is satisfied that compliance was in effect at the time of the violation, the charge of failure to provide evidence of financial responsibility may be dismissed.

(Ord. No. 11880, § 1, 8-29-06)

Sec. 24-48. Destructive or injurious materials.

(a) No person shall throw or deposit upon any highway any glass bottle, glass, nails, tacks, wire, cans or any other substance likely to injure any person, animal or vehicle upon such highway.

(b) Any person who drops, or permits to be dropped or thrown, upon any highway any destructive or injurious material shall immediately remove the same or cause it to be removed.

(c) Any person removing a wrecked or damaged vehicle from a highway shall remove any glass or other injurious substance dropped upon the highway from such vehicle.
(Ord. No. 12055, § 7, 12-18-07)

State law reference—Similar provisions — T.C.A. § 55-8-170

Sec. 24-49. Prohibited uses of mobile telephone or personal digital assistant to transmit or read written message while driving.

(a) As used in this section:

(1) "Stand-alone electronic device" means a portable device other than a wireless telecommunications device that stores audio or video data files to be retrieved on demand by a user;

(2) "Utility services" means electric, natural gas, water, waste-water, cable, telephone, or telecommunications services or the repair, location, relocation, improvement, or maintenance of utility poles, transmission structures, pipes, wires, fibers, cables, easements, rights of way, or associated infrastructure; and

(3) "Wireless telecommunications device" means a cellular telephone, a portable telephone, a text-messaging device, a personal digital assistant, a stand-alone computer, a global positioning system receiver, or substantially similar portable wireless device that is used to initiate or receive communication, information, or data. "Wireless telecommunications device" does not include a radio, citizens band radio, citizens band radio hybrid, commercial two-way radio communication device or its functional equivalent, subscription-based emergency communication device, prescribed medical device, amateur or ham radio device, or in-vehicle security, navigation, autonomous technology, or remote diagnostics system.

(b) (1) A person, while operating a motor vehicle on any road or highway in this city, shall not:

(A) Physically hold or support, with any part of the person's body, a:

(i) Wireless telecommunications device. This subdivision (b)(1)(A)(i) does not prohibit a person eighteen (18) years of age or older from:

(a) Using an earpiece, headphone device, or device worn on a wrist to conduct a voice-based communication; or

(b) Using only one (1) button on a wireless telecommunications device to initiate or terminate a voice communication; or

(ii) Stand-alone electronic device;

(B) Write, send, or read any text-based communication, including, but not limited to, a text message, instant message, email, or internet data on a wireless telecommunications device or stand-alone electronic device. This subdivision (b)(1)(B) does not apply to any person eighteen (18) years of age or older who uses such devices:

(i) To automatically convert a voice-based communication to be sent as a message in a written form; or

(ii) For navigation of the motor vehicle through use of a device's global positioning system;

(C) Reach for a wireless telecommunications device or stand-alone electronic device in a manner that requires the driver to no longer be:

(i) In a seated driving position; or

(ii) Properly restrained by a safety belt;

(D) Watch a video or movie on a wireless telecommunications device or stand-alone electronic device other than viewing data related to the navigation of the motor vehicle; or

(E) Record or broadcast video on a wireless telecommunications device or stand-alone electronic device. This subdivision (b)(1) does not apply to electronic devices used for the sole purpose of continuously recording or broadcasting video within or outside of the motor vehicle.

(2) Notwithstanding subdivisions (b)(1)(A) and (B), and in addition to the exceptions described in those subdivisions, a function or feature of a wireless telecommunications device or stand-alone electronic device may be activated or deactivated in a manner requiring the physical use of the driver's hand while the driver is operating a motor vehicle if:

(A) The wireless telecommunications device or stand-alone electronic device is mounted on the vehicle's windshield, dashboard, or center console in a manner that does not hinder the driver's view of the road; and

(B) The driver's hand is used to activate or deactivate a feature or function of the wireless telecommunications device or stand-alone electronic device with the motion of one (1) swipe or tap of the driver's finger, and does not activate camera, video, or gaming features or functions for viewing, recording, amusement, or other non-navigational functions, other than features or functions related to the transportation of persons or property for compensation or payment of a fee.

(c) (1) A violation of this section is punishable by a fine not to exceed fifty dollars ($50.00). Any person violating this section is subject to the imposition of court costs not to exceed ten dollars ($10.00), including, but not limited to, any statutory fees of officers. State and local litigation taxes are not applicable to a case prosecuted under this section.

(2) In lieu of any fine imposed under subdivision (c)(1), a person who violates this section as a first offense may attend and complete a driver education course pursuant to Tennessee Code Section 55-10-301.

(3) Each violation of this section constitutes a separate offense.

(d) This section does not apply to the following persons:

(1) Officers of this state or of any county, city, or town charged with the enforcement of the laws of this state, or federal law enforcement officers when in the actual discharge of their official duties;

(2) Campus police officers and public safety officers, as defined by Tennessee Code Section 49-7-118, when in the actual discharge of their official duties;

(3) Emergency medical technicians, emergency medical technician-paramedics, and firefighters, both volunteer and career, when in the actual discharge of their official duties;

(4) Emergency management agency officers of this state or of any county, city, or town, when in the actual discharge of their official duties;

(5) Persons using a wireless telecommunications device to communicate with law enforcement agencies, medical providers, fire departments, or other emergency service agencies while driving a motor vehicle, if the use is necessitated by a bona fide emergency, including a natural or human occurrence that threatens human health, life, or property;

(6) Employees or contractors of utility services providers acting within the scope of their employment; and

(7) Persons who are lawfully stopped or parked in their motor vehicles or who lawfully leave standing their motor vehicles.

(e) A traffic citation that is based solely upon a violation of this section is considered a moving traffic violation.
(Ord. No. 12546, 10-4-11; Ord. No. 13503, § 1, 9-24-19)

Sec. 24-50. Reserved.

Editor's note—Ord. No. 13503, § 2, adopted Sept. 24, 2019, repealed § 24-50, which pertained to prohibited use of hand-held mobile telephone in marked school zone and derived from Ord. No. 13392, § 1, 11-6-18.

Sec. 24-51. Reserved.

Editor's note—Ord. No. 13503, § 3, adopted Sept. 24, 2019, repealed § 24-51, which pertained to prohibited use of mobile telephone with hands-free device by persons under 18 and derived from Ord. No. 13393, § 1, 11-6-18.

Secs. 24-52—24-60. Reserved.

ARTICLE II. TRAFFIC ADMINISTRATION

DIVISION 1. GENERALLY

Sec. 24-61. Records of violations required.

(a) The police department or the traffic division thereof shall keep a record of all violations of this chapter or other traffic ordinances of this city or of the state vehicle laws of which any person has been charged, together with a record of the final disposition of all such alleged offenses. Such record shall be maintained so as to show all types of violations and the total of each. Such record shall accumulate during at least a five (5) year period and from that time on the record shall be maintained complete for at least the most recent five (5) year period.

(b) All forms for records of violations and notices of violations shall be serially numbered. For each month and year, a written record shall be kept available to the public showing the disposal of all such forms.

(c) All such records and reports shall be public records.
(Code 1986, § 24-61)

Sec. 24-62. Files on drivers.

(a) The police department or the traffic division thereof shall maintain a suitable record of all traffic accidents, warnings, arrests, convictions and complaints reported for each driver, which shall be filed alphabetically under the name of the driver concerned.

(b) The division shall study the cases of all drivers charged with frequent or serious violations of the traffic laws or involved in frequent traffic accidents or any serious accident, shall attempt to discover the reasons therefor and shall take whatever steps are lawful and reasonable to prevent the same or to have the licenses of such persons suspended or revoked.

(c) Such records shall accumulate during at least a five (5) year period and from that time on such records shall be maintained complete for at least the most recent five (5) year period.
(Code 1986, § 24-62)

Sec. 24-63. Emergency and experimental regulations; testing of devices.

(a) The chief of police, by and with the approval of the city Administrator of the Transportation Department, is hereby empowered to make regulations necessary to make effective the provisions of this chapter and other traffic ordinances of this city and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulation shall remain in effect for more than ninety (90) days.

(b) The city Administrator of the Transportation Department may test traffic-control devices under actual conditions of traffic.
(Code 1986, § 24-63)

Secs. 24-64—24-75. Reserved.

DIVISION 2. CITATIONS FOR VIOLATIONS*

Sec. 24-76. Forms and records.

(a) The city finance officer shall provide books to include citation forms for notifying alleged violators to appear and answer charges of violating traffic laws and ordinances in the city court. Such books shall include serially numbered sets of citations in quadruplicate.

(b) The city finance officer shall issue such books to the chief of police or his duly authorized agent and shall maintain a record of every book so issued and shall require a written receipt for every such book.

(c) The chief of police shall be responsible for the issuance of such books to individual members of the police department. The chief of police shall require a written receipt for every book so issued and shall maintain a record of every such book and each set of citations contained therein.
(Code 1986, § 24-76; Ord. No. 9654, § 8, 1-6-92)

Sec. 24-77. Issuance of citations.

A police officer who halts a person for the violation of any traffic law other than for the purpose of giving him a warning or warning notice and does not take such person into custody under arrest shall take the name, address and operator's license number of such person, the registered number of the motor vehicle involved and such other pertinent information as may be necessary, and shall issue to him, in writing, on a form provided by the city finance officer, a traffic citation, containing a notice to answer to the charge against him in the city court at a time to be specified in the citation.
(Code 1986, § 24-77)

***Cross reference—**General penalty for code violations, § 1-8.

Sec. 24-78. Disposition of citations; records of same.

(a) Every police officer, upon issuing a traffic citation to an alleged violator of any provision of the motor vehicle laws of this state or of any provisions of this chapter or other traffic ordinance of the city shall deposit the original and duplicate copy of the citation with his immediate superior officer who shall cause the original to be delivered to the city court. One (1) duplicate copy of the citation shall be retained in the traffic citation book and shall be delivered by such superior officer to the city finance officer, together with such book, when all traffic citations herein have been used.

(b) Upon the filing of such original citation in the city court, the citation may be disposed of only by trial in city court or by other official action by a judge of the court, including forfeiture of bail or by payment of a fine.

(c) The chief of police shall require the return to him of each traffic citation and all copies thereof, except that copy required to be retained in the book, which has been soiled or upon which any entry has been made and has not been issued to an alleged violator.

(d) The chief of police shall also maintain or cause to be maintained in connection with every traffic citation issued by a member of the police department a record of the disposition of the charge by the city court.

(e) The chief of police shall also maintain or cause to be maintained a record of all warrants issued by the city court on traffic violation charges and which are delivered to the police department for service, and of the final disposition of all such warrants.

(f) It shall be unlawful and official misconduct for any member of the police department or other officer or public employee to dispose of, alter or deface a traffic citation or any copy thereof or the record of the issuance or disposition of any traffic citation, complaint or warrant in a manner other than as required by this article.

(g) The city finance officer shall require each police officer to whom traffic citations are issued to account for each such citation. If any police officer shall fail to account for any citation, the city finance officer shall deduct from such police officer's next salary check the sum of ten dollars ($10.00) for each such citation not accounted for.
(Code 1986, § 24-78; Ord. No. 9654, § 8, 1-6-92)

Sec. 24-79. Illegal cancellation of citations.

It shall be unlawful for any person to cancel or solicit the cancellation of any traffic citation in any manner other than as provided by this article.
(Code 1986, § 24-79)

Sec. 24-80. Audit of records and reports.

(a) Every record of traffic citations, complaints thereon and warrants issued therefor shall be audited by the city finance officer and internal auditors at the same time and to the same extent as other officers and accounts are audited.

(b) For the purpose of this article, the city finance officer or his authorized representative shall have access, at all times, to all necessary records, files and papers of the city court and the police department.
(Code 1986, § 24-80; Ord. No. 9654, § 8, 1-6-92)

Sec. 24-81. Failure to answer citation.

It shall be unlawful for any person to fail to answer a traffic citation issued to him.
(Code 1986, § 24-81)

Sec. 24-82. Placing citations on illegally-parked vehicles.

Whenever any motor vehicle without a driver is found parked or stopped in violation of any of the restrictions imposed by this Code or other ordinance of this city or by state law or unlawfully parked in a parking meter zone, the officer finding such vehicle shall take its registration number and may take any other information displayed on the vehicle which may identify its user, and shall conspicuously affix to such vehicle a traffic citation, on a form provided by the city finance officer, for the driver to answer to the charge against him within seven (7) days during the hours and at a place specified in the citation or otherwise comply with the directions of such citation.
(Code 1986, § 24-82; Ord. No. 9654, § 8, 1-6-92; Ord. No. 11460, § 1, 9-16-03)

Sec. 24-83. Warrants to be issued for persons failing to appear.

In the event any person fails to comply with a traffic citation given to such person or attached to a vehicle or fails to make appearance pursuant to a citation directing an appearance in the city court, the clerk of the city court shall issue a warrant for his arrest.
(Code 1986, § 24-83)

Sec. 24-84. Witness citations.

Any police officer investigating the violation of any provision of the motor vehicle laws of the state or of the city is hereby authorized to serve upon any witness at the scene of the accident a citation requiring

such witness to appear and testify in any proceeding in the city court. Such citation to such witness shall have the force and effect of a subpoena and shall compel the attendance of such witness at the original hearing or any continuance thereof. Any failure so to attend without reasonable cause shall be deemed a violation of this section and shall be punishable under the contempt powers of the city judge or by a fine of not less than five dollars ($5.00) nor more than fifty dollars ($50.00).
(Code 1986, § 24-84)

Sec. 24-85. Deposit of chauffeur's or operator's license in lieu of bail; receipt; failure to appear; alternate procedure.

(a) Whenever any person lawfully possessed of a chauffeur's or operator's license issued to him by the state department of safety, or under the driver licensing laws of any other state or territory of the District of Columbia, is issued a citation or arrested and charged with the violation of any municipal ordinance or state statute regulating traffic, except those statutes the violation of which require the mandatory revocation of an operator's or chauffeur's license for any period of time, the clerk or judge of the city court or any duly commissioned police officer shall allow such person the option of depositing his chauffeur's or operator's license with the officer or court demanding bail in lieu of any other security required for his appearance in city court to answer to such charges before the court.

(b) Whenever any person deposits his chauffeur's or operator's license as provided herein, either the officer or the court demanding bail as hereinabove described shall issue such person a receipt for such license upon a form approved or provided by the department of safety, and thereafter such person shall be permitted to operate a motor vehicle upon the public highways of this state during the pendency of the case in which the license was deposited, as is provided in sections 55-7-401 through 55-7-404, Tennessee Code Annotated.

(c) The clerk or judge of the court accepting the license shall thereafter forward to the department of safety the license of a driver deposited in lieu of bail if the driver fails to appear in answer to the charge filed against him as is provided for in sections 55-7-401 through 55-7-404, Tennessee Code Annotated.

(d) The provisions of this section are in addition to the provisions of section 24-76 through section 24-83, inclusive, and any other sections of the Code in conflict herewith.
(Code 1986, § 24-85)

Sec. 24-86. Collection of fines for nonmoving traffic violations; service by mail.

The clerk of city court may effect service of process for the collection of fines for nonmoving traffic violations through the use of registered or certified mail, addressee only, return receipt requested, upon any person, corporation or other entity, in lieu of personal service of process.
(Ord. No. 9989, § 1, 12-21-93)

Secs. 24-87—24-95. Reserved.

DIVISION 3. TRANSPORTATION DEPARTMENT*

Sec. 24-96. Duties generally.

It shall be the general duty of the Transportation Department to plan, design and construct transportation facilities, to create and maintain standards related to transportation, to review development projects in

---

***Cross references—**City engineer generally, § 2-81 et seq.; Transportation Department to place traffic control signs, signals, and devices, §§ 24-30(a)(3), 24-166, 24-191, 24-193, 24-223, 24-224, 24-245, 24-262; Transportation Department to mark traffic lanes, § 24-270; Transportation Department to determine loading zones, § 24-294; Transportation Department to establish handicapped parking spaces, § 24-301(a), parking spaces generally, § 24-318; control of parking meters, § 24-320; authority of Transportation Department to determine placement of stop signs, § 24-361; Transportation Department authorized to erect stop signs at other than through streets, § 24-363.

regards to transportation issues, to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analysis of traffic accidents and to devise remedial measures, to conduct engineering investigation of traffic conditions, to plan the operation of traffic on the streets and highways of this city, to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by this chapter and other ordinances of this city. It shall be the further duty of the Transportation Department to determine the location of signs prohibiting vehicles transporting hazardous materials from driving upon certain sections of air-tight structure roadways.
(Code 1986, § 24-98; Ord. No. 12821, § 3, 3-25-14)

Sec. 24-97. Reserved.
(Code 1986, § 24-97; Ord. No. 9654, §§ 2, 104, 1-6-92; Ord. No. 12821, § 2, 3-25-14)

Sec. 24-98. Reserved.
(Code 1986, § 24-98; Ord. No. 12821, § 2, 3-25-14)

Sec. 24-99. Reserved.
(Code 1986, § 24-99; Ord. No. 12821, § 2, 3-25-14)

Sec. 24-100. Issuance of special events permits.

No individual in the City of Chattanooga shall conduct any march, parade, athletic event, block party, festival or motorcade within the City of Chattanooga which shall restrict the flow of traffic on city streets unless the organizer for such event first obtains a special events permit which shall be issued by the Transportation Department. For purposes of this ordinance, "special events" shall include but not be limited to:

(a) Marches and parades by pedestrians along city streets;

(b) Athletic events, such as runs, bike races, and walks, which are conducted within the city streets;

(c) Block parties or festivals which require closure of city streets; and

(d) Motorcades, including vehicle parades, which restrict the flow of traffic along city streets in certain lanes.

(Ord. No. 9950, § 3, 9-14-93; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-101. Application for special events permits.

Any individual desiring to obtain a permit for special events requiring temporary closure of city streets shall provide to the Transportation Department for the City of Chattanooga at least thirty (30) days prior to the requested date of any such special event the following information:

(a) The name, address and phone number of the person or organization applying for the special event permit;

(b) The name, address and phone number of the person or agent for the organization applying for the special event permit who shall provide for installation and removal of any necessary traffic control devices for the special event. The applicant shall further execute a written agreement holding the applicant financially responsible for repair or loss of any traffic control devices if such devices are provided by the City of Chattanooga for the special event. The applicant shall be responsible for providing all traffic control devices in conformity with the requirements established by the Transportation Department.

(c) The applicant shall provide a written, diagrammed traffic plan setting forth the route to be utilized by the special event.

(d) The applicant shall provide the Transportation Department with the requested date and times sought for the special event.

(e) The applicant shall provide a statement indicating the number of individuals reasonably expected to participate in the special event.

(f) The Transportation Department may, in his discretion, waive the thirty (30) day requirement set forth above for block parties and street festivals for which adequate plans can be made to protect the public safety in less than thirty (30) days, provided, however that any such application for a special permit shall be filed not less than seven (7) days prior to the event.

(Ord. No. 9950, § 3, 9-14-93; Ord. No. 10462, § 1, 8-20-96; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-102. Review of plans for special events and authority of Transportation Department.

Upon receipt of the requested information set forth in section 24-103, the Transportation Department shall review, modify and approve the traffic control plan with the goal of keeping necessary traffic arteries open during peak traffic hours and so as not to overload streets reasonably usable as detour routes. The Transportation Department shall further regulate any back-out parking and through-street parking in connection with such special events. The Transportation Department shall have the authority to resolve multiple requests for special events on the same dates on a first-come first-serve basis and there shall be no more than three (3) special events requiring temporary street closures which may be allowed by the Transportation Department within the City of Chattanooga on any given day. In the event that multiple events are requested, the Transportation Department shall have the authority to grant alternative dates within a reasonable time period for utilization of city streets at appropriate times in the interest of public safety. The Transportation Department shall have the authority to regulate the beginning and ending points of any parade or march to require that they are begun and ended outside of residential neighborhoods or upon some location where adequate off-street parking is available to handle the number of participants expected to participate in the special event.

(Ord. No. 9950, § 3, 9-14-93; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-103. Provision of police officers for special events.

The Transportation Department shall confer with the traffic division of the Chattanooga Police Department concerning all special events requests so that routes may be established which may effectively minimize the number of police officers required to resolve traffic problems at intersections and crowd control problems during special events.

(Ord. No. 9950, § 3, 9-14-93; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-104. Fees for special events permit.

In order to compensate for the review process of traffic control plans and to justify the temporary closure of city streets, applicants for a special events permit for small events, such as neighborhood block parties or other small street closures requiring no city resources, shall pay a processing fee of twenty-five dollars ($25.00). Applicants for a special events permit for major events, such as multi-day festivals, parades, runs, bike races, or other events requiring multiple street closures and/or significant traffic re-routings, shall pay a processing fee of one hundred dollars ($100.00). Determination of whether an event is a small or major event shall be made by the Transportation Department. The applicant shall further provide sufficient proof that at least fifty (50) people shall participate in any special event before any temporary closure or partial closure of a city street shall be authorized by the Transportation Department.

(Ord. No. 9950, § 3, 9-14-93; Ord. No. 12359, § 1, 3-2-10; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-105. Issuance of special events permit.

The completion of all of the above requested information by the Transportation Department and the payment of the minimum usage fee shall result in the issuance of a special events permit to the applicant subject to any specific changes in the time, location or beginning and ending points of the special event, within ten (10) days after such application is received by the Transportation Department. In the event that there is a denial or change of this special events permit, which shall only be for public safety reasons, the Transportation Department shall state the reason for denial or change in writing to the applicant within such time period. If no agreement is reached with any applicant, the city attorney shall then institute suit for declaratory judgment in the Chancery Court of Hamilton County, Tennessee within five (5) days of the date of any such denial or change and shall seek an immediate hearing to determine whether such permit may be properly denied or changed based upon the public safety concerns of the Transportation Department.
(Ord. No. 9950, § 3, 9-14-93; Ord. No. 12821, § 1, 3-25-14)

Secs. 24-106—24-110. Reserved.

DIVISION 4. TRAFFIC DIVISION*

Sec. 24-111. Traffic Unit Established.

There is hereby established in the Police Department of this City a Traffic Unit which shall be under the control of a supervisor appointed by the Chief of Police or his designee.
(Ord. No. 11330, 10-8-02)

Sec. 24-112. Duties Generally.

It shall be the duty of the Traffic Unit with such aid as may be rendered by other personnel of the Police Department to enforce the street traffic regulations of this City and all of the state vehicle laws applicable to street traffic in this City, to make arrests for traffic violations, to investigate traffic accidents and to cooperate with the Transportation Department and other officers of the City in the administration of the traffic laws and in developing ways and means to improve traffic conditions and to carry out those duties specially imposed upon the Traffic Unit by this chapter and any other traffic ordinances of this City.
(Ord. No. 11330, 10-8-02; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-113. Investigation of accidents.

It shall be the duty of the Traffic Unit and other personnel of the Police Department to investigate traffic accidents as directed by the Chief of Police and, when appropriate, to cite or arrest and to assist in the prosecution of those persons charged with violations of law causing or contributing to such accidents. Any traffic accident in which damage to the property of any one (1) person is not in excess of four hundred dollars ($400.00) may be investigated by such personnel in the Police Department and in such manner as the Chief of Police may direct, including accident reporting by telephone for such minor accidents.
(Ord. No. 11330, 10-8-02)

Sec. 24-114. Cooperation with Transportation Department in Accident Studies.

Whenever traffic accidents at any particular location become numerous, the Traffic Unit shall cooperate with the Transportation Department in conducting studies of such accidents and determining remedial measures.
(Ord. No. 11330, 10-8-02; Ord. No. 12821, § 1, 3-25-14)

***Cross reference—**Police department generally, § 16-41, et seq.

Sec. 24-115. Maintenance of Accident Report Files.

The Police Department shall maintain a suitable system of filing traffic accident reports. Such reports shall be available for the use and information of the Transportation Department.
(Ord. No. 11330, 10-8-02; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-116. Annual Report Required.

The Traffic Unit shall annually prepare a traffic report which shall be filed with the Mayor and City Council. Such report shall contain information on traffic matters in this City as follows:

(1) The number of traffic accidents, the number of persons killed, the number of persons injured and other pertinent traffic accident information.

(2) The number of traffic accidents investigated and other pertinent data on the safety activities of the Police.

(3) The plans and recommendations of the Unit for future traffic safety activities.
(Ord. No. 11330, 10-8-02)

Secs. 24-117—24-130. Reserved.

DIVISION 5. RESERVED*

Sec. 24-131—24-150. Reserved.

ARTICLE III. ACCIDENTS†

Sec. 24-151. Immediate notice to police required.

The driver of a vehicle involved in an accident resulting in injury to or death of any person or property damage to an apparent extent of fifty dollars ($50.00) or more shall immediately by the quickest means of communication give notice of such accident to the police department.
(Code 1986, § 24-151)

State law reference—Similar provisions, T.C.A. § 55-10-106.

Secs. 24-152—24-165. Reserved.

ARTICLE IV. PEDESTRIANS‡

Sec. 24-166. Designation of crosswalks, safety zones.

(1) To designate and regulate, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections, where there is particular danger to pedestrians crossing the roadway, and at such other places as necessary.

***Editor's note—**Ord. No. 12626, § 7, adopted July 10, 2012, repealed div. 5, §§ 24-131—24-138, in its entirety. Former div. 5 pertained to traffic commission.

†**Cross reference—**Health and sanitation, Ch. 20.

‡**State law reference—**Right-of-way of pedestrians led by guide dog or carrying identifying cane, T.C.A. § 55-8-180.

(2) To establish safety zones of such kind and character and at such places as necessary for the protection of pedestrians.
(Code 1986, § 24-166; Ord. No. 9654, § 133, 1-6-92; Ord. No. 12821, §§ 1, 3, 3-25-14)

Sec. 24-167. Pedestrians subject to traffic regulations.

Pedestrians shall be subject to traffic-control signals at intersections, as provided in section 24-262 of this Code, and at all other places pedestrians shall be accorded the privileges and shall be subject to the restrictions stated in this chapter.
(Code 1986, § 24-167)

State law reference—Similar provisions, T.C.A. § 55-8-133.

Sec. 24-168. Right-of-way in crosswalks.

(a) When traffic control signals are not in place or not in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is traveling or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.

(b) No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

(c) Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.
(Code 1986, § 24-168)

State law reference—Similar provisions, T.C.A., § 55-8-134.

Sec. 24-169. Crossing at other than crosswalks.

(a) Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

(b) Between adjacent intersections at which traffic control signals are in operation, pedestrians shall not cross at any place except in a marked crosswalk.

(c) No pedestrian shall cross a roadway other than in a crosswalk in any business district.

(d) Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.
(Code 1986, § 24-169)

State law reference—Similar provisions, T.C.A., § 55-8-135.

Sec. 24-170. Crossing roadway of bridges.

No pedestrian shall cross from the sidewalk on one (1) side of a bridge to the other side thereof.
(Code 1986, § 24-170)

Sec. 24-171. Drivers to exercise due care.

(a) Notwithstanding any other provisions of this chapter, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.

(b) Notwithstanding any speed limit or zone in effect at the time, or right-of-way rules that may be applicable, every driver of a vehicle shall exercise due care by operating the vehicle at a safe speed, by maintaining a safe lookout, by keeping the vehicle under proper control and by devoting full time and attention to operating the vehicle, under the existing circumstances as necessary in order to be able to see and to avoid endangering life, limb or property and to see and avoid colliding with any other vehicle or person, or any road sign, guard rail or any fixed object either legally using or legally parked or legally placed, upon any roadway, within or beside the roadway right-of-way including, but not limited to, any adjacent sidewalk, bicycle lane, shoulder or berm.
(Code 1986, § 24-171; Ord. No. 12592, § 1, 5-8-2012)

State law reference—Similar provisions, T.C.A., § 55-8-136.

Sec. 24-172. Pedestrians to use right half of crosswalks.

Pedestrians shall move, whenever practicable, upon the right half of the crosswalks.
(Code 1986, § 24-172)

State law reference—Similar provisions, T.C.A., § 55-8-137.

Sec. 24-173. Walking on roadways.

(a) When sidewalks are provided, it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.

(b) Where sidewalks are not provided, any pedestrian walking along and upon a highway shall, when practicable, walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction.
(Code 1986, § 24-173)

State law reference—Similar provisions, T.C.A., § 55-8-138.

Sec. 24-174. Solicitation of rides or business; guarding vehicle.

(a) No person shall stand in a roadway for the purpose of soliciting a ride or employment from the occupant of any vehicle.

(b) No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway.
(Code 1986, § 24-174)

State law reference—Similar provisions, T.C.A., § 55-8-139.

Sec. 24-175. Obstructing sidewalks, crosswalks.

When two (2) or more pedestrians are walking together, they shall proceed not more than two (2) abreast, and shall not loiter or stand upon the sidewalks or crosswalks so as to interrupt or obstruct the free passage of other persons. If they half, they shall stand singly, so near to the curb or inner line as to leave abundant room for others to pass without turning in or out.
(Code 1986, § 24-175)

Sec. 24-176. Persons standing or soliciting in streets.

No person shall stand on or in proximity to a street or roadway for the purpose of slowing or stopping any vehicle to solicit or to accept contributions, charitable or otherwise, from the occupant thereof, nor for the purpose of soliciting or accepting contributions for charitable or other purposes from the occupant(s) of any vehicle already slowed or stopped.
(Code 1986, § 24-176)

Cross reference—Sidewalk vendors, § 11-371 et seq.

Sec. 24-177. Blind persons; deaf persons.

(a) No person, unless totally or partially blind or otherwise incapacitated, while on any public street or thoroughfare shall carry in any raised or extended position any cane or similar walking stick colored white or white tipped with red.

(b) No person, unless totally or partially deaf, shall carry, hold, or use on any street, highway, or in any other public place, a leash blaze orange in color on any dog accompanying such person.

State law reference—Similar provisions T.C.A. § 55-8-179.

(c) Whenever any pedestrian guided by a guide dog or dog on a blaze orange leash, or carrying in any raised or extended position a cane or similar stick white in color or white tipped with red, shall undertake to cross any public street or thoroughfare in this state, the driver of each and every vehicle approaching such pedestrian carrying such cane or stick or conducted by such dog shall bring such vehicle to a complete stop and before proceeding shall take all precautions necessary to avoid injuring such pedestrian; provided, that nothing herein shall be construed as making any person totally or partially blind or otherwise incapacitated guilty of contributory negligence in undertaking to cross any street or thoroughfare without being guided by a trained dog or carrying a cane or stick of the type above mentioned.

(Ord. No. 12055, § 8, 12-18-07)

State law reference—Similar provisions T.C.A. § 55-8-180.

Secs. 24-178—24-190. Reserved.

ARTICLE V. ONE-WAY STREETS AND ALLEYS*

Sec. 24-191. Signs required; establishment and regulation.

Whenever this Code or any ordinance of this city designates any one-way street or alley, the Transportation Department shall designate the location of signs giving notice thereof. No such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.

(Code 1986, § 24-191; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-192. Designation; obedience.

Upon those streets and parts of streets and in those alleys described in section 24-504 of this Code, Schedule II, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited.

(Code 1986, § 24-192)

Sec. 24-193. Restriction of direction of movement on streets during certain periods.

(a) The Transportation Department is hereby authorized to determine and designate streets, parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one (1) direction during one (1) period and the opposite direction during another period of the day and shall determine and regulate appropriate markings, signs, barriers, or other devices to give notice thereof. The Transportation Department shall determine signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the center line of the roadway.

***State law reference—**One-way roads and rotary traffic islands, T.C.A., § 55-8-122.

(b) It shall be unlawful for any person to operate any vehicle in violation of such markings, signs, barriers or other devices so placed in accordance with this section.
(Code 1986, § 24-193; Ord. No. 12821, § 1, 3-25-14)

Secs. 24-194—24-205. Reserved.

ARTICLE VI. RIGHT-OF-WAY

Sec. 24-206. Vehicles approaching or entering intersections.

(a) The driver of a vehicle approaching an intersection shall yield the right-of-way to a vehicle which has entered the intersection from a different highway.

(b) When two (2) vehicles enter an intersection from different highways at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(c) The right-of-way rules declared in paragraphs (a) and (b) of this section are modified at through highways and otherwise as stated in this chapter.
(Code 1986, § 24-206)

State law reference—Similar provisions, T.C.A., § 55-8-128.

Sec. 24-207. Designation of through streets.

Those streets and parts of streets described in section 24-501 of this Code, Schedule I, are hereby declared to be through streets.
(Code 1986, § 24-207)

Sec. 24-208. Vehicles turning left at intersections.

The driver of a vehicle within an intersection intending to turn to the left shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard, but such driver, having so yielded and having given a signal when and as required by this chapter, may make such left turn, and the drivers of all other vehicles approaching the intersection from the opposite direction shall yield the right-of-way to the vehicle making the left turn.
(Code 1986, § 24-208)

State law reference—Similar provisions, T.C.A., § 55-8-129.

Sec. 24-209. Movement of traffic at yield intersections.

The driver of a vehicle who is faced with a yield sign at the entrance to a through highway or other public roadway is not necessarily required to stop, but is required to exercise caution in entering the highway or other roadway and to yield the right-of-way to other vehicles which have entered the intersection from the highway or other roadway, or which are approaching so closely to the highway or other roadway as to constitute an immediate hazard, and the driver having so yielded may proceed when the way is clear.

Where there is provided more than one (1) lane for vehicular traffic entering through highway or other public roadway, if one (1) or more lanes at such entrance is designated a yield lane by an appropriate marker, this section shall control the movement of traffic in any lane so marked with a yield sign, even though traffic in other lanes may be controlled by an electrical signal device or other signs, signals, markings or controls.
(Code 1986, § 24-209)

Secs. 24-210—24-220. Reserved.

ARTICLE VII. TURNING MOVEMENTS AND STOPPING

Sec. 24-221. Generally.

(a) No person shall turn a vehicle at an intersection unless the vehicle is in proper position upon the roadway, as required in section 24-222 of this Code, or turn a vehicle to enter a private road or driveway, or otherwise turn a vehicle from a direct course or move right or left upon a roadway unless and until such movement can be made with reasonable safety. No person shall so turn any vehicle without giving an appropriate signal in the manner provided in section 24-227 of this Code in the event any other traffic may be affected by such movement.

(b) No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

(Code 1986, § 24-221)

State law reference—Similar provisions, T.C.A., § 55-8-142.

Sec. 24-222. Required position and method of turning at intersection.

The driver of a vehicle intending to turn at an intersection shall do so as follows:

(1) *Right turns.* Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

(2) *Left turns on two-way roadways.* At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line thereof and bypassing to the right of such center line where it enters the intersection and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered. Whenever practicable, the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

(3) *Left turns on other than two-way roadways.* At any intersection where traffic is restricted to one (1) direction on one (1) or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and after entering the intersection the left turn shall be made so as to leave the intersection, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

(Code 1986, § 24-222)

State law reference—Similar provisions, T.C.A., § 55-8-140(1)-(3).

Sec. 24-223. Turning markers, signs, etc., indicating course of travel.

(a) The Transportation Department is authorized to designate appropriate markers, buttons, or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections, and such course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinance.

(b) When authorized markers, buttons or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications.

(Code 1986, § 24-223; Ord. No. 12821, § 1, 3-25-14)

State law reference—Local authority to place turn markers, etc., T.C.A. § 55-8-140(4).

Sec. 24-224. Restricted turn signs.

(a) The Transportation Department is hereby authorized to determine those intersections at which drivers of vehicles shall not make a right, left, or "U" turn and shall determine the location of proper signs at such intersections. The making of such turns may be prohibited during certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted.

(b) Whenever authorized signs are erected indicating that no right, left or "U" turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.
(Code 1986, § 24-224; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-225. Limitations on U-turns.

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic.
(Code 1986, § 24-225)

Sec. 24-226. Turning on curve or crest of hill prohibited.

No vehicle shall be turned so as to proceed in the opposite direction upon any curve or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within five hundred (500) feet.
(Code 1986, § 24-226)

State law reference—Similar provisions, T.C.A. § 55-8-141.

Sec. 24-227. Signals.

(a) Every driver who intends to start, stop, turn or partly turn from a direct line shall first see that such movement can be made in safety and whenever the operation of any other vehicle may be affected by such movement shall give a signal required in this section, plainly visible to the driver of such other vehicle of his intention to make such movement.

(b) The signal herein required shall be given by means of the hand and arm or by some mechanical or electrical device approved by the department of safety, in the manner herein specified. Whenever the signal is given by means of the hand and arm, the driver shall indicate his intention to start, stop, turn or partly turn by extending the hand and arm and beyond the left side of the vehicle, in the following manner:

(1) For left turns or to pull to the left, the arm shall be extended in a horizontal position straight from and level with the shoulder.

(2) For a right turn or pull to the right, the arm shall be extended upward.

(3) For slowing down or to stop, the arm shall be extended downward.

(c) Such signals shall be given continuously for a distance of at least fifty (50) feet before stopping, turning, partly turning or materially altering the course of the vehicle.

(d) Drivers having once given a hand, electrical or mechanical device signal must continue the course thus indicated, unless they alter the original signal and take care that drivers of vehicles and pedestrians have seen and are aware of the change.

(e) Drivers receiving a signal from another driver shall keep their vehicles under complete control and shall be able to avoid an accident resulting from a misunderstanding of such signal.

(f) Drivers of vehicles standing or stopped at the curb or edge of the roadway, before moving such vehicles, shall give signals of their intention to move into traffic, as hereinbefore provided, before turning in the direction the vehicle shall proceed from the curb.
(Code 1986, § 24-227)

State law reference—Similar provisions, T.C.A. § 55-8-143.

Sec. 24-228. Signal lamps or mechanical signal devices required on certain vehicles.

Any motor vehicle in use on a highway shall be equipped with and required signals shall be given by signal lamps or a mechanical signal device approved by the department when the distance from the center of the top of the steering post to the left outside limit of the body, cab or load of such motor vehicle exceeds twenty-four (24) inches or when the distance from the center of the top of the steering post to the rear limit of the body or load thereof exceeds fourteen (14) feet. The latter measurement shall apply to any single vehicle; also to any combination of vehicles.
(Code 1986, § 24-228)

State law reference—Similar provisions, T.C.A. § 55-8-144.

Secs. 24-229—24-240. Reserved.

ARTICLE VIII. SPEED REGULATIONS*

Sec. 24-241. Limits generally.

Any person driving a vehicle on a street in this city shall drive the same at a careful speed not greater nor less than is reasonable and proper, having due regard to the traffic, surface and width of the street and of any other condition then existing. It shall be unlawful for any person to drive any vehicle upon any street at such a speed as to endanger the life, limb or property of any person or so as unnecessarily to block, hinder or retard the orderly and safe use of the street by those following or so as to cause congestion of the street except when reduced speed is necessary for safe operation or in compliance with the law.
(Code 1986, § 24-241)

Sec. 24-242. Specific limits.

Any person who drives at a speed exceeding the speed set out in this section shall be prima facie guilty of speeding. Every person convicted of speeding shall be punished upon the first conviction by a fine of not less than five ($5.00), or a second conviction by a fine of not less than ten dollars ($10.00), on a third conviction by a fine of not less than twenty-five dollars ($25.00), and on all subsequent convictions by a fine of not less than fifty dollars ($50.00).

(1) Fifteen (15) miles an hour when passing a school during recess or while children are going to or leaving school during its opening and closing hours.

(2) Fifteen (15) miles an hour when passing a church during the fifteen (15) minutes before the church service commences and during the fifteen (15) minutes after the church service is completed; provided, however, that an official sign is in a proper position, in full view, and sufficiently legible to be seen by an ordinarily observant person.

(3) Twenty-five (25) miles an hour in a residential district; provided that on streets and parts of streets within public housing projects where it has been determined upon the basis of an engineering and traffic investigation that the speed therein above provided is more than is necessary for safe

---

***Cross references—**Reckless speed in parks, § 26-4; railroad speed regulations, § 29-5.

State law reference—Speed regulations generally, T.C.A., §§ 55-8-152—55-8-157.

operation of vehicles thereon by reason of closely spaced intersections, sharp horizontal or vertical curvature, extensive on-street or back-out parking, etc. and it is hereby declared that the *prima facie* speed limit upon those streets or portions thereof described in Section 24-506 of this Code, Schedule VI, shall be therein stated, which speeds so declared shall be effective at the time specified therein when signs are erected giving notice thereof.

(4) Thirty (30) miles an hour in a business district; provided, that on streets and parts of streets where it has been determined upon the basis of an engineering and traffic investigation that the speed hereinabove provided is greater or less than is necessary for safe operation of vehicles thereon by reason of the designation and sign posting of such streets as through highways, by reason of widely spaced intersections, or by reason of high pedestrian or bicyclist activity, and it is hereby declared that the prima facie speed limit upon those streets or portions thereof described in section 24-502 of this Code, Schedule II, shall be as therein stated, which speeds so declared shall be effective at the time specified therein when signs are erected giving notice thereof.

(5) Fifty-five (55) miles an hour on an interstate highway or state route, and it is hereby declared that the *prima facie* speed limit upon those highways or portions thereof described in section 24-503 of this Code, Schedule III, shall be as therein stated, which speeds so declared shall be effective at the time specified therein when signs are erected giving notice thereof.

(Code 1986, § 24-242; Ord. No. 9114, § 1, 1-31-89; Ord. No. 10604, § 1, 8-12-97; Ord. No. 13038, § 1, 4-12-16)

Sec. 24-243. Speed of motor-driven cycles.

No person shall operate any motor driven cycle at any time at a speed greater than thirty-five (35) miles per hour, unless such motor-driven cycle is equipped with a head lamp or lamps which are adequate to reveal a person or vehicles at a distance of three hundred (300) feet ahead.
(Code 1986, § 24-243)

Sec. 24-244. Speed of vehicles with solid rubber or cushion tires.

No person shall drive any vehicle equipped with solid rubber or cushion tires at a speed greater than a maximum of ten (10) miles per hour.
(Code 1986, § 24-244)

Sec. 24-245. Regulation of speed by traffic signals.

The Transportation Department is authorized to regulate the timing of traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections and shall determine appropriate signs giving notice thereof.
(Code 1986, § 24-245; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-246. Regulation of speed in road construction work zones.

The Transportation Department is empowered to temporarily lower the speed limit prescribed by this Article or the schedules of speed set forth in Article XIV for road construction work zones when upon the basis of an engineering and traffic investigation it determines that public safety requires a lower speed limit. Road construction speed limits shall be effective when construction workers are present and signs with flashing amber lights are erected giving notice thereof.
(Ord. No. 11987, § 1, 6-26-07; Ord. No. 12821 § 3, 3-25-14)

Secs. 24-247—24-260. Reserved.

ARTICLE IX. TRAFFIC-CONTROL DEVICES

Sec. 24-261. Manual on Uniform Traffic Control Devices adopted by reference; severability; violation.

(a) The Manual on Uniform Traffic Control Devices, 2009 Edition, is hereby adopted as an official standard for all streets and public ways of the City. Such Manual is adopted by reference pursuant to the provisions of sections 6-54-501 through 6-54-507, *Tennessee Code Annotated.* One (1) copy of such Manual

on Uniform Traffic Control Devices is now on file and has been on file in the office of the clerk of the city council for more than fifteen (15) days, subject to public inspection. Such Manual on Uniform Traffic Control Devices shall be cumulative to and in addition to the provisions of this chapter.

(b) If any section, sentence, clause or paragraph of said manual should be held to be invalid by a court of competent jurisdiction, such holding shall not affect the remaining provisions of said manual.

(c) The violation of any provision of this chapter, or the doing of any act or thing prohibited by such manual, or the failure to do or perform any act required by the provisions of such manual, shall constitute a misdemeanor, punishable as provided in section 1-8 of this Code.
(Code 1986, § 24-261; Ord. No. 9302, § 1, 1-2-90; Ord. No. 9654, § 10, 1-6-92; Ord. No. 11116, § 1, 2-13-01; Ord. No. 12821, § 3, 3-25-14)

Sec. 24-262. Transportation Department to determine and establish.

The Transportation Department is authorized to determine the location and character of traffic control signs, signals and devices when and as required under this Code and other traffic ordinances of this city to make effective the provisions of such Code and ordinances, and may determine and establish such additional traffic-control devices as it may deem necessary to regulate traffic under this Code and other traffic ordinances of this city or under state law or to guide or warn traffic.
(Code 1986, § 24-262; Ord. No. 12821, § 3, 3-25-14)

Cross reference—Transportation Department, generally, § 24-96 et seq.

Sec. 24-263. Obedience required.

The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with this Code and other traffic ordinances of this city, unless otherwise directed by a police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this chapter.
(Code 1986, § 24-263)

State law reference—Similar provisions, T.C.A., § 55-8-109(a).

Sec. 24-264. Devices to be in place before certain regulations enforced.

No provisions of this chapter for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person; provided, however, that any alleged violator may nevertheless be guilty of reckless driving or in violation of some other section of this chapter which does not state that signs are required. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.
(Code 1986, § 24-264)

State law reference—Similar provisions, T.C.A., § 55-8-109(b).

Sec. 24-265. Traffic-control signal legend.

Whenever traffic is controlled by traffic-control signals exhibiting the words "Go", "Caution" or "Stop" or exhibiting different colored lights successively one (1) at a time or with arrows, the following colors only shall be used and such terms and lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) *Green alone or "Go."*

a. Vehicular traffic facing the signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

b. Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk.

(2) *Yellow alone or "Caution" when shown following the green or "Go" signal.*

a. Vehicular traffic facing the signal is thereby warned that the red or "Stop" signal will be exhibited immediately thereafter and such vehicular traffic shall not enter or cross the intersection when the red or "Stop" signal is exhibited.

b. Pedestrians facing such signal are thereby advised that there is insufficient time to cross the roadway, and any pedestrian then starting to cross shall yield the right-of-way to all vehicles.

(3) *Red alone or "Stop."*

a. Vehicular traffic facing the signal shall stop before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection and shall remain standing until green or "Go" is shown alone; provided, however, that, a right turn on a red signal shall be permitted at all intersections within the city, provided that the prospective turning car comes to a full and complete stop before turning and that the turning car yields the right-of-way to pedestrians and cross traffic traveling in accordance with their traffic signal. However, said turn will not endanger other traffic lawfully using such intersection. A right turn on red shall be permitted at all intersections except those clearly marked by a "No Turns On Red" sign, which may be erected by the city government at intersections which they decide require no right turns on red in the interest of traffic safety.

b. No pedestrian facing such signal shall enter the roadway unless he can do so safely and without interfering with any vehicular traffic.

c. A left turn on a red or stop signal may be permitted at all intersections within the city where a one-way street intersects with another one-way street moving in the same direction into which the left turn would be made from the original one-way street. Before making such a turn, the prospective turning car shall come to a full and complete stop and shall yield right-of-way to pedestrians and cross traffic traveling in accordance with the traffic signal so as not to endanger traffic lawfully using the intersection. The city government may erect signs permitting such turns at any applicable intersection where it believes such turns would be safe. Unless such signs are erected, left turns on red are prohibited.

(4) *Red with green arrow.*

a. Vehicular traffic facing such signal may cautiously enter the intersection only to make the movement indicated by such arrow but shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other traffic lawfully using the intersection.

b. No pedestrian facing such signal shall enter the roadway unless he can do so safely and without interfering with any vehicular traffic.

(5) *Other than at intersections.* In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application.

(6) *Place for stop.* Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.

(Code 1986, § 24-265)

State law reference—Similar provisions, T.C.A., § 55-8-110.

Sec. 24-266. Pedestrian control signals.

Whenever special pedestrian-control signals exhibiting the words "Walk" or "Wait" or "Don't Walk" are in place, such signals shall indicate as follows:

(1) *Walk.* Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

(2) *Wait or Don't Walk.* No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the walk signal shall proceed to a sidewalk or safety zone while the wait signal is showing.

(Code 1986, § 24-266)

State law reference—Similar provisions, T.C.A., § 55-8-111.

Sec. 24-267. Flashing signals.

(a) Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal it shall require obedience by vehicular traffic as follows:

(1) *Flashing red (stop signal).* When a red lens is illuminated with rapid intermittent flashes, and such light is clearly visible for a sufficient distance ahead to permit such stopping, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or, if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing yellow (caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

(b) This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossing shall be governed by the rules as set forth in section 24-358 of this Code.

(Code 1986, § 24-267)

Sec. 24-268. Display of unauthorized devices.

(a) No person shall place, maintain or display upon or in view of any public right-of-way any unauthorized sign, signal, flag, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal. In the area bordered on the north by the north bank of the Tennessee River, on the west by Highway 27, on the south by Fourth Street and on the east by Georgia Avenue, no person shall place, maintain, use or display upon any public right-of-way, including sidewalks, any unauthorized sign, signal, flag, whistle, marking or device which impedes the normal flow of traffic or results in any impediment to the normal flow of traffic on the public streets. This subsection shall not apply to newspaper vending machines.

(b) No person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising.

(c) This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(d) Every such prohibited sign, signal or marking is hereby declared to be a public nuisance and the authority having jurisdiction over the highway is hereby empowered to remove the same or cause it to be removed without notice.

(Code 1986, § 24-268; Ord. No. 10407, § 1, 4-30-96)

Sec. 24-269. Interference with devices, railroad signals.

No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down or remove any official traffic-control device or any railroad sign or signal or any inscription, shield or insignia thereon or any other part thereof.
(Code 1986, § 24-269)

Cross reference—Railroads generally, Ch. 29.

State law reference—Similar provisions, T.C.A. § 55-8-114.

Sec. 24-270. Traffic lanes.

(a) The Transportation Department is hereby authorized to designate traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

(b) Where such traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane, except when lawfully passing another vehicle or preparatory to making a lawful turning movement.

(c) Where traffic cones have been placed on any marked traffic lane or whenever such cones are placed upon any highway, street or roadway, it shall be unlawful for the driver of any vehicle to pass over or cross such lane or line of cones, to drive against, run over or strike such cones or fail or refuse to keep such vehicle within the boundaries of any such lane or line of cones.
(Code 1986, § 24-270; Ord. No. 12821, § 1, 3-25-14)

Cross reference—Transportation Department generally, § 24-96 et seq.

Sec. 24-271. Restriction on operation of trucks with three (3) or more axles.

(a) The Transportation Department is hereby authorized to direct the posting of official traffic control devices on any street, alley, or other public way or portion thereof to prohibit through traffic of trucks with three (3) or more axles to restrict such traffic on residential streets or upon any street which an inadequate base or foundation to withstand heavy truck traffic. Nothing herein shall be deemed to prohibit the operation of trucks with three (3) or more axles on such streets with the sole purpose of making a single pick-up or delivery which would entail traveling over the restricted portion of the street without unreasonable interference with the efficient movement of traffic. If the efficient movement of traffic is hindered by a truck with three (3) or more axles on any posted street, the operator and owner of such vehicle shall be cited to the City Court.

(b) For truck operations which would require multiple trips on any restricted street, the truck operator shall make application with the CDOT for a permit to use the restricted street. The operator shall be required to post a bond with the city to cover the costs to repair any damage to the road foundations, surfaces, or structures which the CDOT determines may result from truck operations.
(Ord. No. 11347, 11-19-02; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-272. Uniform Vehicle Code, adopted by reference.

(a) Chapter 15 of the Uniform Vehicle Code (2000 Edition), is hereby adopted as additional powers of State and local authorities for the regulation of streets and public ways of the City.

(b) Pursuant to Section 15-116 of the Uniform Vehicle Code, which is expressly adopted by reference, no person shall install or maintain in any area of private property used by the public any sign, signal, marking or other device intended to regulate, warn, or guide traffic unless it conforms with the Manual on Uniform Traffic Control Devices, 2009 Edition, and/or the most recent edition of the Manual on Uniform Traffic Control Devices for Streets and Highways and other standards issued or endorsed by the Federal Highway Administration or the National Association of City Transportation Officials.

(c) Provisions of the Uniform Vehicle Code, adopted pursuant to Subsection (a), shall have the force and effect of law.

(d) Violations of any provision of this Chapter, or the doing of any act or thing prohibited by the Uniform Vehicle Code or the Manual on Uniform Traffic Control Devices, or the failure to do or perform any act required by the provisions of such manuals, shall constitute a violation of this Ordinance, punishable as provided in Section 1-8 of this Code.

(e) Businesses having fewer than twenty-five (25) parking spaces shall be exempt from the provisions of this section.

(f) The Transportation Department is authorized to enforce the provisions of this section.
(Ord. No. 11408, 4-8-03; Ord. No. 12821, §§ 1, 3, 3-25-14)

Sec. 24-273. Automated enforcement.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning.

Citations and warning notices shall include:

(1) The name and address of the registered owner of the vehicle;

(2) The registration plate number of the motor vehicle involved in the violation;

(3) The violation charged;

(4) The location of the violation;

(5) The date and time of the violation;

(6) A copy of the recorded image;

(7) The amount of the civil penalty imposed and the date by which the civil penalty should be paid;

(8) A signed statement by a member of the police department that, based on inspection of recorded images, the motor vehicle was being operated in violation of section 24-273; and

(9) Information advising the person alleged to be liable under this section:

a. Of the manner and time in which liability alleged in the citation occurred and that the citation may be contested in the city court; and

b. Warning that failure to contest in the manner and time provided shall be deemed an admission of liability and that a default judgment may be entered thereon.

In operation means operating in good working condition.

Recording images means images recorded by a traffic control photographic system on:

1. On:

A. A photograph;

B. A microphotograph;

C. An electronic image;

D. Videotape; or

E. Any other medium; and

2. At least one (1) image or portion of tape, clearly identifying the registration plate number of the motor vehicle.

System location is the approach to an intersection toward which a photographic, video or electronic camera is directed and is in operation.

Traffic control photographic system is an electronic system consisting of a photographic, video or electronic camera and a vehicle sensor installed to work in conjunction with an official traffic control sign, signal or device, and to automatically produce photographs, video or digital images of each vehicle violating a standard traffic control sign, signal or device.

Vehicle owner is the person identified by the Tennessee Department of Safety as the registered owner of a vehicle.

(b) *General.*

(1) The Chief of Police or his designee in coordination with the Transportation Department and the CDOT shall administer the traffic control photographic systems and shall maintain a list of system locations where traffic control photographic systems are installed.

(2) The Chief of Police shall adopt procedures for the issuance of citations and warnings under this section. A citation or warning alleging that the violation of section 24-273 of this article occurred, sworn to or affirmed by officials or agents of the city, based on inspection of recorded images produced by a traffic control photographic system, shall be evidence of the facts contained therein and shall be admissible in any proceeding alleging a violation under this section. The citation or warning shall be forwarded by first-class mail to the owner's address as given on the motor vehicle registration. Personal service of process on the owner shall not be required.

(3) Signs to indicate the use of traffic control photographic systems shall be clearly posted.

(c) *Offense.*

(1) It shall be unlawful for a vehicle to cross the stop line at a system location per subsection 24-265(2)a., or for a vehicle to drive at a speed exceeding the speed set out in section 24-242, or for a vehicle to violate any other traffic regulation specified in Chapter 24 (Motor Vehicles and Traffic) of the Chattanooga City Code.

(2) A person who receives a citation under subsection (b) may:

a. Pay the civil penalty, in accordance with instructions on the citation, directly to the city court; or

b. Elect to contest the citation for the alleged violation in a hearing before a City Judge, in accordance with instructions on the citation.

(3) The owner of a vehicle shall be responsible for a violation under this section, except when he can provide evidence that the vehicle was in the care, custody, or control of another person at the time of the violation, as described in subsection (c)(4) of this section.

(4) Notwithstanding subsection (c)(3) of this section, the owner of the vehicle shall not be responsible for the violation if, on or before the designated court date, he furnishes on the forms provided that are to be issued with the citation:

a. The name and address of the person or entity who leased, rented, or otherwise had the care, custody, and control of the vehicle at the time of the violation; or

b. An affidavit or statement under penalty of perjury by him stating that, at the time of the violation, the vehicle involved was stolen or as in the care, custody, or control of some person who did not have his permission to use the vehicle.

(5) In the event the owner of the vehicle as provided in subsection (c)(4) provides the name and address of the person or entity who leased, rented or otherwise had the care, custody, and control of the vehicle at the time of the violation, the Chief of Police or his designee shall issue a citation or warning to the person or entity so identified pursuant to the provisions of subsection (b)(2).

(d) *Penalty.*

(1) Any violation of subsection 24-273(a)—(c) shall be deemed a non-criminal violation for which a civil penalty of Fifty Dollars ($50.00) shall be assessed.

(2) A failure to pay the civil penalty, to provide the information requested required by subsection (c)(4), or to appear in court to contest the citation on the designated date shall be deemed to be an acknowledgement of an indebtedness to the City of Fifty Dollars ($50.00) and the same may be collected in the same manner as any other debt to the City.

(3) A failure to pay the civil penalty, to provide the information requested required by subsection (c)(4), or to appear in court to contest the citation on the designated date shall also constitute a separate violation of the provisions of this section authorizing the issuance of a citation or show cause order directing the owner of the vehicle to appear in Court and defend the initial violation of subsection (c)(1) and the separate offense for violation of the provisions of subsections (c)(2)—(4).

(4) Revenues generated from the civil penalties generated pursuant to 24-273 (a)—(c) shall be applied to the costs incurred in administering the automated enforcement provisions of the section and costs associated with public safety, traffic and safety education, engineering, and enforcement programs.

(5) A violation for which a civil penalty is imposed under this section shall not be considered a moving violation and may not be recorded by the police department or the state department of safety on the driving record of the owner or driver of the vehicle and may not be considered in the provision of motor vehicle insurance coverage.

(Ord. No. 11886, § 1, 9-12-06; Ord. No. 12287, § 1, 9-22-09; Ord. No. 12821, § 1, 3-25-14)

Secs. 24-274—24-285. Reserved.

ARTICLE X. STOPPING, STANDING AND PARKING

DIVISION 1. GENERALLY

Sec. 24-286. Prohibited in certain specified places.

(a) No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a police officer or traffic-control device, in any of the following places:

(1) On a sidewalk, provided, however, a bicycle may be parked on a sidewalk if it does not impede the normal and reasonable movement of pedestrian or other traffic, or such parking is not prohibited by ordinance;

(2) In front of a public or private driveway;

(3) Within an intersection;

(4) Within fifteen (15) feet of a fire hydrant;

(5) On a crosswalk;

(6) Within twenty (20) feet of a crosswalk at an intersection;

(7) Within thirty (30) feet upon the approach to any flashing beacon, stop sign or traffic-control signal located at the side of a roadway;

(8) Between a safety zone and the adjacent curb or within thirty (30) feet of points on the curb immediately opposite the ends of a safety zone, unless a different length is indicated by official signs or markings;

(9) Within fifty (50) feet of the nearest rail of a railroad crossing;

(10) Within twenty (20) feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five (75) feet of such entrance, when properly signposted;

(11) Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic;

(12) On the roadway side of any vehicle stopped or parked at the edge of a curb of a street (double parking);

(13) Upon any bridge or other elevated structure upon a highway or within a highway tunnel, unless parking is specifically approved;

(14) Adjacent to a yellow curb;

(15) At any place where official signs prohibit stopping; or

(16) In a parking space clearly identified by an official sign as being reserved for the physically handicapped, unless, however, the person driving the vehicle is physically handicapped, or parking such vehicle for the benefit of a physically handicapped person. A vehicle parking in such a space shall display a certificate of identification issued as set forth in paragraph (e) of this section.

(b) No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such distance as is unlawful.

(c) The provisions of this section shall not apply to the driver of any vehicle which is disabled while on paved or improved or main traveled portion of a street or highway in such manner and to such extent that it is impossible to avoid stopping and temporarily leaving such vehicle in such position; provided, however, that such vehicle may be removed as provided in section 24-303 when it is found to constitute a hazard to safety or an obstruction to traffic.

(d) The provisions of this section shall not apply to the driver of any vehicle operating as a carrier of passengers for hire under a franchise or permit from the city authorizing the operation of any vehicle upon the streets and highways in the city while taking passengers on such vehicle or discharging passengers therefrom or to any vehicle operating as a carrier of passengers for hire and holding a certificate of convenience and necessity or interstate permit issued by the state or federal government authorizing the operation of such vehicle upon the roads, streets or highways in this state, while taking passengers on such vehicle, or discharging passengers therefrom, provided, the vehicle is stopped so that a clear view of such vehicle shall be obtained from a distance of two hundred (200) feet in each direction, upon such roads, streets or highways.

(e) It shall be unlawful for any person to park or store a recreational vehicle, camper, trailer or non-motorized vehicle, or for the owner of a recreational vehicle, camper, trailer or non-motorized vehicle to allow any other person to park or store such recreational vehicle, camper, trailer or non-motorized vehicle, within a City right-of-way between the hours of 9:00 a.m. and 7:00 p.m. in any residential zone or residential area within the City.

(f) No person shall stand or park a truck, trailer, or other motor vehicle having three (3) or more axles or with a gross vehicle weight rate (G.V.W.R.) greater than fourteen thousand nine hundred (14,900) pounds in a residential district on either a street right-of-way or on private property except during the loading or unloading of passengers or material. As it relates to trailers: (1) the fourteen thousand nine hundred (14,900) lb. GVWR shall apply to the combined weight of the trailer and vehicle used to tow it; and (2) the axles of the vehicle used to tow the trailer shall be counted as well as those of the trailer. Provided that this section shall not apply to private property which is properly zoned for commercial or industrial use or which is a lawful non-conforming commercial or industrial use and where the standing or parking of a truck or other motor vehicle would be a proper accessory use of the main building or use pursuant to applicable zoning ordinances and laws.

(Code 1986, § 24-286; Ord. No. 9556, § 1, 5-21-91; Ord. No. 10280, § 1, 8-22-95; Ord. No. 10615, § 1, 9-16-97; Ord. No. 11701, § 1, 7-5-05; Ord. No. 11813, § 1, 3-28-06; Ord. No. 11846, § 1, 6-27-06; Ord. No. 12626, § 1, 7-10-12; Ord. No. 12654, § 3, 10-2-12)

State law reference—Similar provisions, T.C.A., § 55-8-160.

Sec. 24-287. Parking in violation of signs.

No person shall park a vehicle on any property of the city where "no parking" signs have been placed; nor shall any person park any vehicle on such property or on any street for a longer time than is permitted by signs placed on such property or streets.

(Code 1986, § 24-287; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-288. Reserved.

(Code 1986, § 24-288; Ord. No. 12626, § 1, 7-10-12)

State law reference—Similar provisions, T.C.A., § 55-8-159.

Sec. 24-289. Manner of parking on roadways.

(a) Except where angled street parking is allowed under section 24-290, and except where otherwise authorized in this chapter, no person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of lawful traffic movement and with the right-hand wheels of the vehicle within eighteen (18) inches of the curb or edge of the roadway.

(b) Where parking spaces have been lawfully designated, vehicles may be parked on the left-hand side of one-way streets or next to the center strip of streets divided by a median strip. In such instances, the left-hand wheels of the vehicle must be within eighteen (18) inches of the curb or edge of the roadway.

(Code 1986, § 24-289; Ord. No. 12626, § 1, 7-10-12)

State law reference—Similar provisions, T.C.A., § 55-8-161(a).

Sec. 24-290. Angle parking.

The Transportation Department shall designate streets upon which angle parking will be permitted, except that angle parking shall not be permitted on any federal aid or state highway unless allowed by the state department of transportation.

(Code 1986, § 24-290; Ord. No. 12626, § 1, 7-10-12; Ord. No. 12821, § 3, 3-25-14)

State law reference—Authority to permit angle parking, T.C.A., § 55-8-161(c).

Sec. 24-291. Reserved.

(Code 1986, § 24-291; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-292. Parking for display of vehicles for sale or repair.

No person shall park a vehicle upon any street for the principal purpose of:

(1) Displaying such vehicle for sale.

(2) Washing, maintaining or repairing such vehicle, except repairs necessitated by an emergency.
(Code 1986, § 24-292; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-293. Curb loading zones—Designation.

The city traffic engineer is hereby authorized to determine the location of passenger and freight curb loading zones and shall determine the location of appropriate signs indicating the same and stating the hours during which these provisions are applicable. The Parking Authority may recommend such zones to the City traffic engineer.
(Code 1986, § 24-294; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-294. Same—Standing in passenger zone.

No person shall stop, stand or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger curb loading zone during hours when the regulations applicable to such curb loading zone are effective, and then only for a period not to exceed three (3) minutes.
(Code 1986, § 24-295; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-295. Same—Standing in freight zone.

No person shall stop, stand or park a vehicle for any purpose or length of time, other than for the expeditious unloading and delivery or pickup and loading of materials in any place marked as a freight curb loading zone during hours when the provisions applicable to such zones are in effect. In no case shall the stop for loading and unloading of materials exceed thirty (30) minutes.
(Code 1986, § 24-296; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-296. Designation of public carrier stops and stands.

The Transportation Department, is hereby authorized to establish bus stops, bus stands, taxicab stands and stands for other passenger common-carrier motor vehicles on such public streets in such places and in such number as he shall determine to be of the greatest benefit and convenience to the public. Every such bus stop, bus stand, taxicab stand or other stand shall be designated by appropriate signs. The Parking Authority may recommend such stops and stands to the city.
(Code 1986, § 24-297; Ord. No. 12626, § 1, 7-10-12; Ord. No. 12821, § 3, 3-25-14)

Sec. 24-297. Stopping, standing, parking of buses.

(a) The operator of a bus shall not stand or park such vehicle upon any street at any place other than at a bus stand so designated, as provided herein.

(b) The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand or passenger loading zone so designated, as provided herein, except in case of an emergency.

(c) The operator of a bus shall enter a bus stop, bus stand or passenger loading zone on a public street in such a manner that the bus, when stopped to load or unload passengers or baggage, shall be in a position with the right front wheel of such vehicle not farther than eighteen (18) inches from the curb and the bus approximately parallel to the curb, so as not to unduly impede the movement of other vehicular traffic.
(Code 1986, § 24-298; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-298. Vehicles other than buses using bus stops.

No person shall stop, stand or park a vehicle other than a bus in a bus stop when any such stop has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus waiting to enter or about to enter such zone.
(Code 1986, § 24-299; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-299. Duties when leaving vehicle unattended.

No person driving or in charge of a motor vehicle shall permit it to stand on any street unattended without first stopping the engine, locking the ignition and effectively setting the brake thereon, and, when standing upon any grade, turning the front wheels of such vehicle to the curb or side of the street.
(Code 1986, § 24-300; Ord. No. 12626, § 1, 7-10-12)

State law reference—Similar provisions, T.C.A., § 55-8-162(a).

Sec. 24-300. Designation of curb parking spaces for the handicapped.

(a) The Transportation Department is hereby authorized to establish the location of curb parking spaces for the handicapped and shall determine appropriate signs designating the same. Any business, firm or other person transacting business with the public from a permanent location may provide specially marked parking spaces for the exclusive use of persons qualifying for the rights and privileges extended by this section. Each such parking space marked by such business, firm or other person shall be marked and maintained with the stylized wheelchair symbol designated by Tennessee Code Annotated, Section 55-21-104. The Parking Authority may recommend designation of handicap spaces.

(b) For the purposes of this section a "handicapped driver" is one (1) who qualifies pursuant to the provisions of sections 55-21-101 through 55-21-108, Tennessee Code Annotated, and has been issued distinctive design license plates or a distinguishing placard properly displayed as described in the Tennessee Code.

(c) It shall be unlawful to cause, allow, permit or suffer any vehicle registered in the name of or operated by any person to stop, stand or park for any purpose or length of time in any place marked as a parking space for the handicapped, other than:

(1) A handicapped driver to whom the distinctive license plates were issued and driving a vehicle displaying the distinctive license plates, or

(2) A handicapped driver of a vehicle properly displaying the distinguishing placard on the dashboard of the vehicle on the driver's side, or

(3) A qualified vehicle operator acting under the express direction of a handicapped driver or handicapped passenger, in his presence, and driving a vehicle displaying the distinctive license plates or the distinguishing placard.

(d) A vehicle which does not display a disabled license plate or placard, and which is parked in any parking space designated with the wheelchair disabled sign, is subject to being ticketed, immobilized, or impounded, all in accordance with the remedies established in this Chapter.
(Code 1986, § 24-301; Ord. No. 10808, § 1, 12-8-98; Ord. No. 12626, § 1, 7-10-12; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-301. Off-street parking required for persons parked transacting business from vehicles and carts in certain zones; such businesses prohibited in certain zones; exceptions.

(a) Except as provided in paragraph (c) of this section and Article XIII of chapter 11 of this Code, it shall be unlawful for any person to sell, give away, or purchase merchandise from a parked motor vehicle, trailer, mobile home, push cart, motorized cart, bicycle-propelled cart, animal-drawn wagon or cart, table, crate, carton, rack, or other similar device on public streets, sidewalks, or rights-of-way abutting any property in the City.

(b) Except as provided in paragraph (c) of this section and in Article XIII of chapter 11 of this Code, it shall be unlawful for any person to sell, give away or purchase merchandise from a parked motor vehicle, trailer, mobile home, push-cart, motorized-cart, bicycle-propelled cart, animal-drawn wagon or cart, table, crate, carton, rack, or other similar device in any parking space on public streets or right-of-way in the city that is controlled by a parking meter or which is located in a parking meter zone.

(c) This section shall not apply to vendors or delivery trucks, automobiles, or vans which temporarily stop at any one (1) location on a public street or right-of-way for fifteen (15) minutes or less in the ordinary course of door-to-door sales or deliveries, or for fifteen (15) minutes or less in the ordinary course of sales to pedestrian traffic.
(Code 1986, § 24-302; Ord. No. 12448, § 1, 11-23-10; Ord. No. 12626, § 1, 7-10-12)

Sec. 24-302. Enforcement and Civil Penalties.

(a) The provisions of this Division 1 may be enforced either by the City of Chattanooga, or by the Parking Authority created under Division 2 of this Article X within those areas of the City where the Parking Authority is granted the right for parking enforcement under Section 24-317.

(b) The penalties for violating this Division 1 shall be as follows:

(1) Any person parking in violation of a no parking sign or in a designated loading zone shall pay a civil penalty of Forty-Five and No/100 Dollars ($45.00).

(2) Any person parking in violation of any of the following shall pay a civil penalty of Fifty and No/100 Dollars ($50.00):

A. Designated bus zone;

B. A designated fire lane;

C. Within fifteen (15') feet of a fire hydrant;

D. Blocking an alley;

E. A no parking zone during the hours of 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.; and

F. In a parking space clearly identified by an official sign as a disabled person parking space.

(3) Any person who parks in violation of a thirty (30) minute restricted zone between the hours of 2:00 a.m. and 5:00 p.m. shall pay a civil penalty of twenty dollars ($20.00).

(4) Unless otherwise specified, any person who parks in violation of any other provision of this Division 1 of Article X shall pay a civil penalty of Forty-Five and No/100 Dollars ($45.00). This provision shall not be construed to include Parking Meters, which are governed by Divisions 2, 3, and 4 of Article X.

(c) Any person cited by the City of Chattanooga for a violation as set out in paragraphs (b)(1), (b)(2), or (b)(4) of this section shall pay the specified civil penalty within ten (10) days to the city court clerk's office, either by mail or in person. If such civil penalty is not paid within ten (10) days, a warrant may issue and the violator shall be subject to an additional civil penalty of not less than Thirty-Five Dollars ($35.00) nor more than Fifty Dollars ($50.00), plus court costs, which court costs shall not exceed thirty dollars and fifty cents ($30.50) if both are paid before the court date.

(d) Any person cited by the City of Chattanooga for a violation as set out in paragraph (b)(3) of this section shall pay the specified civil penalty within ten (10) days to the city court clerk's office, either by mail or in person. If such civil penalty is not paid within ten (10) days, a warrant may issue and the violator shall be subject to an additional civil penalty of not less than Twenty Dollars ($20.00) nor more than Fifty Dollars ($50.00), plus court costs, which court costs shall not exceed thirty dollars and fifty cents ($30.50) if both are paid before the court date.

(e) Any person cited by the Parking Authority for a violation as set out in paragraphs (b)(1), (b)(2), or (b)(4) of this section within an area where the Parking Authority is granted parking enforcement authority under this Ordinance shall either pay such civil penalty within ten (10) days to the Parking Authority, either by mail or in person, or may choose to pursue the alternative resolution process established in Division 4 below by requesting a hearing pursuant to the provisions of Section 24-334. If such civil penalty is not paid within ten (10) days and no hearing is requested under Section 24-334, the violator will be subject to an additional civil penalty of not less than Thirty dollars and fifty cents ($30.50) nor more than Fifty Dollars ($50.00), and the Parking Authority may pursue the remedies otherwise established in Divisions 3 and Division 4 below.

(f) Any person cited by the Parking Authority for a violation as set out in paragraph (b)(3) of this section shall pay the specified civil penalty within ten (10) days to the Parking Authority's office, either by mail or in person, or may choose to pursue the alternative resolution process established in Division 4 below by requesting a hearing pursuant to the provisions of Section 24-334. If such civil penalty is not paid within ten (10) days and no hearing is requested under Section 24-334, the violator will be subject to an additional civil penalty of not less than Twenty Dollars ($20.00) nor more than Fifty Dollars ($50.00), plus court costs, and the Parking Authority may pursue the remedies otherwise established in Divisions 3 and Division 4 below.
(Code 1986, § 24-304; Ord. No. 9444, § 1, 9-4-90; Ord. No. 11434, § 19, 7-15-03; Ord. No. 11460, § 2, 9-16-03; Ord. No. 12360, § 1, 3-2-10; Ord. No. 12626, § 1, 7-10-12; Ord. No. 12654, § 4, 10-2-12; Ord. No. 14157, § 1, 10-15-24)

Sec. 24-303. Removal of illegally parked vehicles.

(a) Whenever any police officer finds a vehicle standing upon a street or highway in violation of any of the provisions of this chapter (other than parking meter violations addressed under section 24-326), such officer shall remove or cause to be removed such vehicle unlawfully parked or found to constitute a hazard to safety where the owner or person in charge of such vehicle cannot be found or is unable to act or refuses to act, and, if necessary for such purpose, may use such force as may be necessary to enter such vehicle and cause the same to be placed in condition to be removed, and may employ any reputable person engaged in the business of towing or storing vehicles for such purposes; provided, that the nearest available garage performing such service shall be called for the removal of such vehicle if available. The owner or driver of such vehicle shall pay the cost of removing the vehicle from the street and all charges which may have

accrued for the removal and storage of such vehicle. The owner of the garage or storage place shall, upon presentation by the owner or driver of a release by the police department of such vehicle, release such vehicle to the owner or person in charge of the vehicle upon the payment of the cost of removal and all labor and storage charges.

(b) Whenever any police officer finds a vehicle unattended upon any bridge, causeway, tunnel or street where such vehicle constitutes an obstruction to traffic, such officer is hereby authorized to provide for the removal of such vehicle to the nearest garage or other place of safety at the expense of the owner.
(Code 1986, § 24-288; Ord. No. 12626, § 1, 7-10-12)

State law reference—Similar provisions, T.C.A., § 55-8-159.

Sec. 24-304—24-310. Reserved.
(Code 1986, § 24-288; Ord. No. 12626, § 1, 7-10-12)

DIVISION 2. ESTABLISHMENT OF PARKING AUTHORITY

Sec. 24-311. Creation of parking authority as expansion of duties of metropolitan transit authority

The Chattanooga Area Regional Transportation Authority ("CARTA"), as authorized under § 7-56-101 through 7-56-109 of the Tennessee Code and established under Chapter 23 of the Chattanooga City Code, is hereby created to serve as the City of Chattanooga Parking Authority, hereinafter referred to as the "Parking Authority." The Parking Authority shall constitute a public body, corporate and politic, and shall act as an agency, instrumentality and constituted authority of the City of Chattanooga for the provision, maintenance and operation of adequate and reasonably priced public parking facilities, structures, and meters along with the enforcement of parking violations in the parking meter zones approved by the City Council to protect and promote the safety, comfort, convenience and welfare of the people of Chattanooga. The board of CARTA shall have its duties expanded to include all the duties of the Parking Authority as herein enumerated. The composition, appointment and tenure of the board of CARTA is not otherwise changed by this Article creating the Parking Authority. The Parking Authority shall exercise this responsibility in such streets on areas that may be designated by the City Council.
(Ord. No. 12626, § 2, 7-10-12)

Sec. 24-312. Powers.

The Parking Authority shall have the following powers, in addition to those granted by T.C.A. § 7-56-101 through 7-56-109; Chapter 23 of the Chattanooga City Code; and other applicable statutes:

(a) To install, lease, construct, maintain, manage, operate, repair, acquire, own, finance and control new and existing parking facilities and structures;

(b) To plan, design and locate parking facilities and structures;

(c) To make and execute contracts and other instruments necessary or convenient to the exercise of its powers;

(d) To hire and maintain such staff personnel as may be required;

(e) Subject to all applicable state laws and regulations:

1) To purchase, lease, obtain an option upon, acquire by gift, grant, bequest, devise or otherwise any real or personal property including air space, and any interest therein, together with any improvements thereon; to demolish buildings and clear improvements from any of its real property and dispose of any personal property resulting therefrom; to

dispose of any real or personal property at fair value; to rent, lease, construct, maintain, manage, operate, repair parking facilities and structures and other real property located within or within reasonable proximity to the parking districts;

2) To contract with any suitable and qualified person, firm or corporation for construction, operation and/or management of any parking facility or structure as is found to be in the public interest;

3) To borrow from and to accept loans and grants from the federal, state, city government or any agency thereof, or from any sources, public or private, and to pledge such security as may be required;

4) To finance or refinance any of its purposes or operations, including the acquisition, construction, installation, equipping, repair, maintenance, renovation, or improvement of parking facilities and structures, or to refund any obligations previously issued by the Parking Authority or any other governmental agency for any such purpose;

5) To install, lease, construct, maintain, manage, operate, repair, acquire, own, finance and control all parking meters in the city;

(f) To enforce all non-moving traffic violations connected with such meters or parking facilities and structures which the parking authority maintains, operates, owns or manages;

(g) To enforce all other non-moving traffic violations identified in Division 1 of this Article X which are not related exclusively to parking meter violations;

(h) To fix, set, and prescribe reasonable rates, charges, and expenses for parking at meters on public streets which the Parking Authority maintains, operates, owns, or manages, subject to a maximum rate not to exceed One Dollar ($1.00) per half hour;

(i) To create differing parking districts with differing rules, rates, and regulations, in order to best serve areas which may require differing parking management because of differing needs for parking in residential, commercial, industrial, recreational, and mixed use areas within the city;

(j) To undertake such studies and strategic planning initiatives as may be needed from time to time to plan for and provide effective long-term public parking for the City of Chattanooga, including public streets and roads, public garages, special parking districts, integration with public transportation, and any other such topics pertaining to the creation, operation, and management of adequate and safe public parking opportunities;

(k) To promulgate such rules and regulations as are necessary to carry out this ordinance;

(l) Notwithstanding any of the powers enumerated in this section, the Parking Authority shall have no power to incur indebtedness or otherwise create any financial liability which is an obligation of the City of Chattanooga unless expressly approved by the City Council.

(Ord. No. 12626, § 2, 7-10-12)

Secs. 24-313—24-315. Reserved.

(Ord. No. 12626, § 2, 7-10-12)

DIVISION 3. PARKING METERS*

Sec. 24-316. Definitions.

(a) *"Parking meter(s)"* shall mean any mechanical or electronic device used, placed, installed or erected at or near the curb adjacent to the street area, or otherwise on property which is owned, operated, leased or maintained by the City of Chattanooga or by the Parking Authority, which device is designated to register, or issue printed and/or electronic confirmation of, the purchase and duration of the parking time and limit thereof, upon payment by U.S. coin, payment card or any other alternative payment capability.

(b) Each parking meter shall be so set as to display a signal, print out, and/or to electronically confirm the legal purchase of a temporary parking right, upon the deposit or other payment of the appropriate legal tender, for the period of time prescribed by this chapter. Each device shall be so arranged that will indicate by a proper visible signal, printed receipt or electronic confirmation indicating when the lawful parking period has expired, and in such cases the right of such vehicle to occupy such space shall cease and the operator, owner, possessor or manager thereof shall be subject to the penalties provided by section 24-326 of this Code.
(Ord. No. 12626, § 3, 7-10-12)

Sec. 24-317. Authorization to install parking meters.

(a) After approval by the Transportation Department, the Parking Authority is hereby authorized to install parking meters on any street, or portion thereof:

(i) Designated by the City Council as a parking meter area and specifically listed in section 24-505(a) of Article XIV of the Chattanooga City Code; or

(ii) Included within the boundaries of the map set forth at section 24-505(b) of the Chattanooga City Code.

(b) The streets (or portions thereof) upon which parking meters may be placed, together with a listing of meter rates, time limits, and other applicable rules and regulations, shall be made available for public information by the Parking Authority both through printed copies of such rules and regulations, and by a publicly-available internet site.
(Ord. No. 12626, § 3, 7-10-12; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-318. Parking space markings.

The Department of Public Works shall place and maintain painted lines or marks on the street or adjoining curb to designate the parking space(s) for which meter is to be used, and each vehicle parked within the parking space(s) served by such parking meter shall park within the lines or marks so established. It shall be unlawful to park any vehicle across any such line(s) or mark(s) or to park any vehicle in such a way that the same shall not be within the area so designated by the lines or marks. Lines or marks shall not be required for multi-space metered areas.
(Ord. No. 12626, § 3, 7-10-12; Ord. No. 12821, § 1, 3-25-14)

***Editor's note—**Ord. No. 12626, § 3, adopted July 10, 2012, renumbered art. X, div. 3 as art. X, div. 5; and enacted a new art. X, div. 3 to read as set out herein. Former art. X, div. 3 pertained to abandoned and discarded vehicles.

Charter reference—Authority to provide for parking meters, § 2.5.

Sec. 24-319. Multi-Space Meters.

The Parking Authority may utilize parking meters covering more than one (1) space.
(Ord. No. 12626, § 3, 7-10-12)

Sec. 24-320. Time limitations; Failure to Purchase Time or Confirm Purchase.

(a) No vehicle shall remain parked in a lawful, designated parking space longer than the maximum amount of time allowed for parking in such parking space, as indicated by appropriate markings of signs, printed receipts, or electronic messages, or as indicated by such parking meters. The provisions of this section shall apply during such hours and on such dates as established from time to time by the Parking Authority.

(b) It is unlawful to "feed the meter" or otherwise to attempt to avoid detection for parking longer than the maximum amount of parking time designated for that space.

(c) Failure to purchase parking time or failure to otherwise follow procedures required for confirming the purchase of time shall be considered a violation of this ordinance.
(Ord. No. 12626, § 3, 7-10-12)

Sec. 24-321. Parking fees; depositing slugs; tampering.

(a) The fees for parking vehicles in the spaces adjacent to parking meters shall be established by the Parking Authority from time to time and shall be made available by the Parking Authority and regulations, and by a publicly-available Parking Authority internet site.

(b) The person driving a vehicle shall upon occupying a public parking space which payment is required immediately render the proper method of payment to such parking meter, and the parking space may then be used by such vehicle for a period of time not exceeding the limit indicated by the parking meter. If the vehicle shall remain parked within such parking space for a period of time longer than for which payment is made, such vehicle shall be considered as parking overtime; and either police officers of the city or parking citation officers of the Parking Authority shall issue in writing a notice to answer to the charge of overtime parking.

(c) It shall be unlawful to deposit or cause to be deposited in any parking meter any defaced or bent coin, or any slug, device or metallic, magnetic, or electronic, substitute for any coin of the United States, or to otherwise use any card or other device in a parking meter in lieu of a card or device lawful and appropriate to an alternative payment process at such parking meter.

(d) It shall be unlawful for any person to deface, injure, tamper with, open or willfully break or destroy or impair the usefulness of any parking meter so installed.
(Ord. No. 12626, § 3, 7-10-12)

Sec. 24-322. Proceeds from meter operation.

(a) It shall be the duty of employees designated by the Parking Authority to make collections of the money deposited in the parking meters or otherwise paid for parking privileges granted hereunder.

(b) It shall be the duty of such persons so designated to remove from the parking meters the currency deposited in such meters, and to otherwise collect proceeds, and to deliver such revenue to the Parking Authority as soon as practicable thereafter. It shall be the duty of the Parking Authority to count the funds

and deposit such funds in the Parking Authority's accounts, keeping strict account thereof. Any and all such money deposited in such accounts shall be used exclusively by the Parking Authority for the following purposes:

(1) For the purpose of rental, acquisition, establishment, erection, maintenance, replacement and operation of all parking meters, parking garages and lots, and other parking facilities provided by the Parking Authority, and for discharging the obligations placed upon the Parking Authority under this Ordinance.

(2) For the purpose of making the parking system safe and effective.

(3) For the expenses incurred by and through the Parking Authority in the regulation of vehicular parking and enforcement of these ordinances.

(4) For providing downtown shuttle service.

(c) Any sums remaining after expenditures for the foregoing purposes shall be remitted to the general fund of the City of Chattanooga pursuant to Section 2.5 of the Charter of the City of Chattanooga.
(Ord. No. 12626, § 3, 7-10-12)

Sec. 24-323. Temporary covering of meters authorized.

(a) Upon the authorization by the Parking Authority, bags shall be issued for the purpose of covering designated parking meters for specified periods during construction projects, lengthy loading and unloading by moving companies, and other planned activities which will of necessity require use of parking meter spaces in order to avoid impeding traffic flow on adjacent streets.

(b) Such bags shall be imprinted "Reserved Parking by Order of the Parking Authority - Tow Zone," or other such messages as may be required by the Parking Authority, and a fee to be established by the Parking Authority from time to time shall be paid per bag per day to the Parking Authority by the individual or entity requesting the bags.

(c) Notwithstanding the provisions of this section, the City of Chattanooga Police Department and the Transportation Department shall also be empowered to cover parking meters with appropriate bags events such as festivals, parades, large funerals, emergencies, construction projects, and similar situations where the public safety and convenience require that the parking meter spaces be reserved.

(d) Any vehicle parked at a meter or other designated paid parking space, bagged or posted as restricted parking pursuant to this section may be immediately ticketed and/or towed. Any vehicle parked at a meter or other designated paid parking space that is bagged or posted as restricted parking subsequent to the vehicle being parked at the meter or other designated paid parking space may be towed four (4) hours after the bagging of the meter or posting of a notice restricted parking.
(Ord. No. 12626, § 3, 7-10-12; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-324. Hours of Operation; Days of Operation; Rates for Parking Meters; and Designation of Streets Where Parking Meters May be Located.

The Parking Authority shall have the power to establish the hours and days of operation for parking meters; and the rates for purchase of parking privileges (subject to the maximum rate limitation in section 24-312 above). The days and hours of operation may be different for areas that require different treatment to provide for safe and orderly parking. All information regarding hours, rates, locations, and other requirements shall be published by the Parking Authority before such rules and regulations are enforceable. Such publication shall be in printed format and by publication on an internet site made available to the public by the Parking Authority.
(Ord. No. 12626, § 3, 7-10-12)

Sec. 24-325. Enforcement of Parking Regulations.

It shall be the duty of the Parking Authority, through its parking citation officers, to enforce the provisions of this division. Before entering upon their duties, parking citation officer shall be nominated by the Parking Authority, approved by the Chief of Police authorized by the City Council, and take an oath of office. Members of the Chattanooga Police Department may also enforce the provisions of this ordinance.
(Ord. No. 12626, § 3, 7-10-12)

Sec. 24-326. Penalties for Violation.

If any vehicle shall remain parked in any designated public parking space beyond the parking time limit set for such parking space, then such vehicle shall be considered as parking overtime and beyond the period of legal parking time, and such parking shall be deemed a violation of this chapter. Any person violating this section shall pay a civil penalty in an amount determined by the timing of the payment. If payment is remitted within forty-eight (48) hours, the civil penalty shall be Sixteen and No/100 Dollars ($16.00) (including the tax required under T.C.A. § 16-18-305(b), which may be remitted to the Parking Authority by mail in an envelope furnished by the Parking Authority and placed on the vehicle, or such civil penalty may be remitted to the Parking Authority at its office or permitted via electronic payment. If not paid within such forty-eight (48) hour period, but before ten (10) days, the civil penalty shall increase to Twenty and No/100 Dollars ($20.00). If not paid within ten (10) days, but paid before the expiration of thirty (30) days, the civil penalty shall be an additional Thirty and 50/100 Dollars ($30.50). If not paid within thirty (30) days, the civil penalty shall be a total of Fifty and No/100 Dollars ($50.00), together with lawful collection costs and applicable taxes and fees. Nothing herein shall preclude citing the violator to City Court or filing a complaint against the violator in any court of appropriate jurisdiction.
(Ord. No. 12626, § 3, 7-10-12; Ord. No. 12654, § 5, 10-2-12; Ord. No. 14158, § 1, 10-15-24)

Secs. 24-327—24-328. Reserved.
(Ord. No. 12626, § 3, 7-10-12)

DIVISION 4. PARKING CITATION ENFORCEMENT AND REVIEW*

Sec. 24-329. Title.

This Article may be cited as the "Chattanooga Parking Citation Enforcement Ordinance."
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-330. Establishment of hearing board.

There is hereby established the Chattanooga Parking Citation Enforcement Hearing Board; said board shall be composed of one (1) or more persons who shall serve a term of one (1) year and shall be appointed by a majority of the Board of the Parking Authority. Such person(s) shall not be a member of the Board or an employee of the Parking Authority.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-331. Alternative Procedures for Resolution of Parking Citation Disputes.

(a) The City of Chattanooga hereby elects to establish an alternative procedure for review of any disputes arising from parking violations for all citations issued by the Parking Authority, in order to facilitate a prompt and efficient method of addressing parking needs and enforcement disputes which might arise.

***Editor's note—**Ord. No. 12626, § 4, adopted July 10, 2012, renumbered art. X, div. 4 as art. X, div. 6; and enacted a new art. X, div. 4 to read as set out herein. Former art. X, div. 4 pertained to special stops.

(b) The parking ordinances for the City of Chattanooga in those areas where enforcement authority is established in the Parking Authority shall be enforced as provided in this Division 4.

(c) Any person cited by the Parking Authority for a violation of Article X who believes that such citation has been issued in error shall have the right to contest the validity of the citation by submitting the issue for consideration by the Chattanooga Parking Citation Enforcement Hearing Board as established herein. A person desiring to challenge the validity of a parking citation shall advise the Parking Authority in writing of such person's decision to pursue this alternative within ten (10) days of issuance of the citation.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-332. Citation procedure.

(a) If any motor vehicle is found parked, standing, or stopped in violation of the parking ordinances enacted by the City government or rules promulgated by the Parking Authority, the motor vehicle may be cited by the Parking Authority for the appropriate parking violation. The citing police officer or parking citation officer shall note the vehicle's registration number or VIN number and any other information concerning the vehicle which will identify it and, if the driver is not present, shall conspicuously affix to the motor vehicle a notice of the parking violation.

(b) "Parking ordinance" includes all provisions of Article X.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-333. Information to be included in notice of parking violation.

(a) The form of the notice of the parking violation shall be designated by the Parking Authority, but shall contain in substance the following information:

(1) A statement that the notice represents a determination that a parking violation has been committed by the owner or operator of the vehicle and that the determination shall be final unless contested as provided herein;

(2) A statement that a parking violation may result in impoundment or immobilization of the vehicle for which the owner may be liable for a fine and towing, handling and storage charges or fees;

(3) A statement of the specific parking violation for which the citation was issued;

(4) A statement of the monetary civil penalty established for the parking violation; and

(5) A statement of the options provided herein for responding to the notice and the procedures necessary to exercise these options.

(b) The notice of parking violation represents a determination that a parking violation has been committed, and such determination shall be final unless contested as provided herein.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-334. Responsibilities of person who receives notice; liability of vehicle owner.

(a) Any person who receives notice of a parking violation shall respond to such notice as provided in this section within ten (10) days of the date of the notice, by either paying the civil penalty set forth in the notice, or requesting a hearing pursuant to these procedures before the Chattanooga Parking Citation Enforcement Hearing Board.

(b) If the owner of a vehicle cited for a parking violation has not responded to the notice within ten (10) days as provided in this section, the violator shall be subject to the additional penalties as established in Section 24-326.

(c) The registered owner of a vehicle at the time the violation occurred shall be liable for all civil penalties which he has refused to pay.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-335. Hearing.

(a) Except as otherwise set forth in sections 24-337 and 24-338 below regarding impoundment of vehicles, any person cited by the Parking Authority for a parking violation may contest the determination that a violation occurred by requesting in writing a hearing before the Chattanooga Parking Citation Enforcement Hearing Board. Such hearing shall be held no later than thirty (30) days from the date of receipt of the request, unless prior to the hearing the person requesting such a hearing requests an extension of time not to exceed fourteen (14) days. No less than seven (7) days prior to the date set for the hearing, the Chattanooga Parking Citation Enforcement Hearing Board shall notify the registered owner of the vehicle of the date, time and place of the hearing. Any person requesting a hearing who fails to appear at the time and place set for the hearing shall be deemed to have refused to pay the fine levied by the citation.

(b) The Chattanooga Parking Citation Enforcement Hearing Board may consider the parking citation and any other written report by the police officer or parking citation officer who issued the citation in lieu of the police officer's or parking citation officer's personal appearance at the hearing.

(c) At the hearing, after consideration of the evidence, the Chattanooga Parking Citation Enforcement Hearing Board shall determine whether a violation was committed. Where it has not been established that the violation was committed, an order dismissing the citation shall be entered. Where it has been established that a violation was committed, the Chattanooga Parking Citation Enforcement Hearing Board shall uphold the citation and order the owner to pay the citation within seven (7) days. A copy of such order shall be issued to the owner. Any person ordered to pay the civil penalty who fails to do so within seven (7) days shall be deemed to have refused to pay the civil penalty levied by the citation, and shall also be liable for the payment of the additional civil penalties set forth in 24-326.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-336. City Court Adjudication.

Any person not satisfied with the alternate procedures provided herein or the decision of the Chattanooga Parking Citation Enforcement Hearing Board may by written request provided to the Parking Authority within ten (10) days of the Board's decision require that their citation be referred to the Chattanooga City Court for adjudication.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-337. Immobilization and Impoundment of vehicles.

(a) If a vehicle has a record of three (3) or more currently delinquent parking citations which have been outstanding for more than sixty (60) days and that are not under appeal to any court above the Chattanooga City Court, and if the Parking Authority is in compliance with the procedural requirements of this Section and of Part II, Chapter 24, Sections 24-311 through 24-312, the Parking Authority may immobilize or impound a motor vehicle parked, stopped or standing upon a street, public way, parking lot, garage or other areas where the Parking Authority has been granted enforcement authority.

(b) The Parking Authority may only undertake the immobilization or impoundment of a motor vehicle upon satisfaction of all of the following conditions precedent:

(i) At least three (3) citations for parking violations must be outstanding and must be delinquent for more than sixty (60) days with respect to the vehicle for which immobilization or impoundment is imposed;

(ii) The Parking Authority shall have delivered written notice to the owner of such vehicle at the last indicated address in records maintained by appropriate state authorities, or by notification of proposed impoundment in a letter placed on the windshield of the car proposed for immobilization or impoundment;

(iii) At least ten (10) days have passed since the notification by the Parking Authority under subparagraph (ii) above;

(iv) The owner of a vehicle proposed for impoundment or immobilization has not advised the Parking Authority in writing the owner's belief that impoundment is unwarranted; and

(v) The owner has not requested a hearing to challenge the validity of the impoundment under the provisions of Section 24-338 below.

(c) The Parking Authority, in addition to the civil penalties levied for parking or traffic offenses, may impose reasonable towing, handling and storage charges upon the owner of such impounded vehicle.

(d) The Parking Authority may condition the release of an immobilization or impounded vehicle upon the payment of all outstanding fines and late fees levied for parking or traffic offenses and the immobilization, towing, handling and storage charges imposed thereon, unless the owner or other person entitled to possession challenges the validity of the impoundment pursuant to section 24-338 below or in

a court of competent jurisdiction. A vehicle may be released to the owner or other person entitled to possession only upon proof of ownership or right to possession. The Parking Authority may require reasonable security, bond or other assurances of indemnification from a person who is not the registered owner of the vehicle prior to releasing the vehicle to such person.

(e) For purposes of this section 24-339, "impoundment" shall mean either removal to a secure location or immobilization of the vehicle at the site of the violation by a device attached to the vehicle.
(Ord. No. 12626, § 4, 7-10-12; Ord. No. 14347, § 1, 4-14-26)

Sec. 24-338. Hearing to challenge validity of impoundment.

(a) The owner of a motor vehicle which has been impounded for parking violations pursuant to this chapter, or other person entitled to possession, may challenge the validity of such impoundment and request in writing a hearing before the Chattanooga Parking Citation Enforcement Hearing Board. The hearing shall be conducted within ten (10) business days of the date of the request, unless the owner or other person entitled to possession waives the limitation or the Parking Authority shows good cause for such delay. The Parking Authority shall retain possession of the vehicle pending the hearing, unless the owner or other person claiming right of possession posts a bond in an amount equal to the civil penalties and fees accrued as of the date of the hearing request. If the owner or person claiming possession of the vehicle is unable to pay the amount of the bond, the hearing shall be held within seventy-two (72) hours of the date the request for hearing is received, unless such person requests or agrees to a continuance.

(b) No less than five (5) days prior to the date set for the hearing, the Parking Authority shall notify the person requesting the hearing of the date, time and place of the hearing. In the case of a hearing required to be held within seventy-two (72) hours of the date of the request as provided in this section, the person requesting the hearing shall be informed at the time of his request, or as soon thereafter as practicable, of the date, time and place of the hearing.

(c) Any person who refuses or, except for good cause, fails to appear at the time and place set for the hearing shall be deemed to have conceded on his and the owner's behalf the validity of the impoundment.

(d) At the hearing, after consideration of the evidence, the Chattanooga Parking Citation Enforcement Hearing Board shall determine whether the impoundment was valid and reasonable. Where it has not been established that the impoundment was justified, an order releasing the vehicle shall be entered. All fines and fees paid or amounts posted as bond because of the impoundment of the vehicle shall be returned. Where it has been established that the impoundment was justified, the board shall uphold the impoundment and condition the release of the vehicle upon payment of all civil penalties and fees accruing thereto. If bond has been posted as security for release of the vehicle, said bond shall be forfeited to the Parking Authority. Any fines or fees in excess of the amount of the bond posted shall be ordered to be paid by the owner of the vehicle to the Parking Authority. The Chattanooga Parking Citation Enforcement Hearing Board shall furnish the owner or person appearing on the owner's behalf with a copy of its order.

(e) The Chattanooga Parking Citation Enforcement Hearing Board may consider a parking citation and any other written report made under oath by the issuing officer in lieu of the officer's personal appearance at the hearing.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-339. Appeal of impoundment determination.

An appeal from the Chattanooga Parking Citation Enforcement Hearing Board's determination may be made to a court of competent jurisdiction as provided by law. If the court finds that the impoundment was not justified, the Parking Authority shall release the vehicle, and if applicable, return all civil penalties and fees paid as a result of the impoundment.
(Ord. No. 12626, § 4, 7-10-12)

Sec. 24-340. Unclaimed vehicles to be deemed abandoned.

If within three (3) business days of impoundment a motor vehicle impounded by the Parking Authority has not been claimed, or a hearing has not been requested pursuant to these procedures, the vehicle shall be deemed to have been abandoned and the procedures of T.C.A. 55-16-105 shall be followed.
(Ord. No. 12626, § 4, 7-10-12)

DIVISION 5. ABANDONED AND DISCARDED VEHICLES*

Sec. 24-341. Definitions.

The following definitions shall apply in the interpretation and enforcement of this division:

(a) *Property* shall mean any property within the city which is not a street, highway or public right-of-way.

(b) *Vehicle* shall mean a machine propelled by power other than human power designed to travel along the ground by use of wheels, treads, runners or slides and transport persons or property or pull machinery, and shall include, without limitation, automobiles, trucks, trailers, motorcycles, tractors, buggies and wagons.

(c) *Discarded vehicle* shall mean any vehicle or part thereof which: is inoperative, wrecked, dismantled, partially dismantled or discarded for a period of more then ten (10) days.

(d) *Abandoned vehicle* shall mean any vehicle or part thereof which is left unattended on public or private property for more than ten (10) days, or a vehicle that has remained illegally on public property for a period of more than forty-eight (48) hours, or a vehicle that has remained on private property without the consent of the owner or person in control of the property for more than forty-eight (48) hours.

(Code 1986, § 24-341; Ord. No. 10510, § 1, 12-3-96; Ord. No. 11345, § 10, 11-12-02)

Sec. 24-342. Abandoning prohibited.

No person shall abandon any vehicle within the city, and no person shall leave any vehicle at any place within the city, for such time and under such circumstances as to cause such vehicle reasonably to appear to have been abandoned.
(Code 1986, § 24-342)

Sec. 24-343. Leaving nonoperating junked vehicle on street prohibited.

No person shall leave any partially dismantled, nonoperating, wrecked or junked vehicle on any street, alley or highway within the city, or on any public right-of-way.
(Code 1986, § 24-343)

Sec. 24-344. Location or presence of discarded or abandoned vehicles within city deemed public nuisance; exceptions.

The location or presence of any discarded or abandoned vehicle or discarded or abandoned vehicles on any lot, tract, parcel of land or portion thereof, occupied or unoccupied, improved or unimproved, within the city shall be deemed a public nuisance and it shall be unlawful for any person or persons to cause or maintain such public nuisance by wrecking, dismantling, rendering inoperable, abandoning or discarding

---

***Editor's note—**Ord. No. 12626, § 3, adopted July 10, 2012, renumbered art. X, div. 3 as art. X, div. 5. See editor's note at art. X, div. 3 for more information.

State law reference—Unclaimed or abandoned vehicles, T.C.A. §§ 55-16-101—55-16-112.

his or their vehicle or vehicles on the property of another or to suffer, permit or allow the same to be placed, located, maintained or to exist upon his or their own real property; provided that this section shall not apply to:

(1) A vehicle or part thereof which is completely enclosed within a building in a lawful manner where it is not visible from the street or other public or private property;

(2) A vehicle or part thereof which is stored or parked in a lawful manner on private property in connection with the business of a licensed vehicle dealer or other business enterprise operated in a lawful place and manner when necessary to the operation of such business enterprise;

(3) A vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the city or other governmental authority; or

(4) Unlicensed inoperable vehicles stored on private property provided, however, that the vehicles and outdoor storage areas are maintained in such a manner that they do not constitute a health hazard and are screened from ordinary public view by means of a fence, rapidly growing trees, shrubbery, or other appropriate means.

(Code 1986, § 24-344)

Sec. 24-345. Abatement or removal order; contents; service.

(a) Whenever such public nuisance exists in the city in violation hereof, the chief of the police department, or any member of his department designated by him, or the head of the public works department, or any member of his department designated by him, who shall administer this division, shall give not less than ten (10) days' written notice to the owner of the real property and/or the occupant, if any, of the premises whereon such public nuisance exists to abate or remove the same, stating the nature of the public nuisance on private property and that it must be removed and abated within ten (10) days and further that a request for a hearing must be made before expiration of said ten (10) day period by the aggrieved person, such notice to be mailed, by certified or registered mail, with a five (5) day return receipt requested, to the owner or the occupant of the private premises whereupon such public nuisance exists. If the notice is returned undelivered by the United States Post Office, official action to abate said nuisance shall be continued to a date not less than ten (10) days from the date of such return.

(b) Whenever such public nuisance exists in the city in violation hereof, the chief of the police department, or any member of his department designated by him, or the head of the public works department, or any member of his department designated by him, shall give not less than ten (10) days' notice stating the nature of the public nuisance on the private property or on a public right-of-way and that it must be removed and abated within ten (10) days and further that a request for a hearing must be made before expiration of said ten (10) day period, such notice to be mailed, by certified or registered mail with a five (5) day return receipt requested, to the owner or the occupant of the public premises or to the owner or the occupant of the premises adjacent to the public right-of-way whereupon such public nuisance exists. If the notice is returned undelivered by the United States Post Office, official action to abate said nuisance shall be continued to a date not less than ten (10) days from the date of such return.

(c) A public hearing prior to the removal of the vehicle or part thereof as a public nuisance shall be held before the Public Officer of the Department of Neighborhood Services of the City when such a hearing is requested by the owner or occupant of the public or private premises or by the owner or occupant of the premises adjacent to the public right-of-way on which said vehicle is located, within ten (10) days after service of notice to abate the nuisance. During such hearing evidence will be considered to determine whether a public nuisance exists in violation of this division and an order or resolution will be issued if a nuisance is found to exist providing for the abatement of such nuisance by the City or the owner or

occupant of the premises. Any resolution or order requiring the removal of a vehicle or part thereof shall include a description of the vehicle, and the correct identification number and license number of the vehicle, if available at the site.
(Code 1986, § 24-345; Ord. No. 9067, § 1, 11-22-88; Ord. No. 9654, § 110, 1-6-92; Ord. No. 11198, § 1, 10-30-01; Ord. No. 11345, § 11, 11-12-02)

Sec. 24-346. Removal with permission of owner or occupant.

If within ten (10) days after receipt of notice from the chief of police or the head of the public works department, or any member of their respective departments designated by them, to abate the nuisance, as herein provided, the owner or occupant of the premises may give his or her written permission to the chief of the police department, or any member of his department designated by him, or the head of the public works department, or any member of his department designated by him, or their duly authorized agent, for removal of a discarded or abandoned vehicle from the premises at the expense of the owner and/or occupant. The giving of such permission shall be considered compliance with the provisions of section 24-345.
(Code 1986, § 24-346; Ord. No. 9654, § 110, 1-6-92)

Sec. 24-347. Removal without permission of owner or occupant.

(a) If such public nuisance is not abated by any person in charge or control of any property within the city, whether as owner, tenant, occupant, lessee or otherwise, and a discarded vehicle remains upon public or private property following the ten (10) days notice period specified within section 24-344 [24-345], and if no hearing is requested by the owner or occupant of the public or private premises or by the owner or occupant of the premises adjacent to the public right-of-way on which said vehicle is located, official action shall be taken by the city to abate such nuisance at the expense of the person in charge or control of the property, if any.

(b) Prior to entry upon private property for the purposes specified in this division, the chief of the police department, or any member of his department designated by him, or the head of the public works department, or any member of his department designated by him, shall apply to the Chattanooga City Court or any court of competent jurisdiction for any warrant or order necessary for the entry onto private property to examine vehicles or parts thereof, obtain information as to the identity of vehicles and to remove or cause the removal of a vehicle or parts thereof declared to be a nuisance pursuant to this division. The Chattanooga City Court shall have the authority to issue all orders and warrants necessary to enforce this division.

(c) The chief of the police department, or any member of his department designated by him, or the head of the public works department, or any member of his department designated by him, or their duly authorized agent, may enter upon private property for the purposes specified in this division to examine vehicles or parts thereof, obtain information as to the identity of vehicles, and to remove or cause the removal of a vehicle or parts thereof declared to be a nuisance pursuant to this division. Any such discarded vehicle shall be impounded at the cost of the owner until lawfully claimed or disposed of in accordance with sections 2-344 through 2-346 of the Chattanooga City Code.
(Code 1986, § 24-347; Ord. No. 9654, § 110, 1-6-92)

Sec. 24-348. Immediate removal authorized, when.

Nothing in this division shall affect the power of the city to permit immediate removal of a vehicle left on public property which is abandoned and constitutes an obstruction to traffic.
(Code 1986, § 24-348)

Sec. 24-348.1. Collection of expense of abatement; lien.

When any nuisance has been abated as provided in this division, the head of the public works department, or his duly authorized representative, shall certify the amount of the expense incurred in abating same to the mayor who shall direct the city attorney to bring suit by attachment or otherwise to collect the same and the city shall have a lien on the property to secure the amount expended by it in abating such nuisance which shall be superior to all other contractual liens.
(Code 1986, § 24-348.1; Ord. No. 9654, §§ 13, 110, 1-6-92)

Editor's note—Ord. No. 9654, §§ 13, 110, adopted January 6, 1992, set out provisions intended for use as § 24-348. For purposes of classification, and at the editor's discretion, these provisions have been included as § 24-348.1.

Sec. 24-349. Violations, penalty.

Any person violating any of the provisions of this division shall be punished by a fine of not more than fifty dollars ($50.00) for each offense and each day of continuing violation shall constitute a separate offense.
(Code 1986, § 24-349)

Secs. 24-350—24-355. Reserved.

DIVISION 6. SPECIAL STOPS*

Sec. 24-356. Obedience to signals indicating approach of train.

Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad, and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

(1) A clearly visible electric or mechanical device gives warning of the immediate approach of a railroad train.

(2) A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train.

(3) A railroad train approaching within approximately one thousand five hundred (1,500) feet of the highway crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard.

(4) An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.
(Code 1986, § 24-356)

Cross reference—Railroads generally, Ch. 29.

State law reference—Similar provisions, T.C.A., § 55-8-145(a).

Sec. 24-357. Avoiding crossing gates or barriers at railroad crossings.

No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.
(Code 1986, § 24-357)

***Editor's note—**Ord. No. 12626, § 4, adopted July 10, 2012, renumbered art. X, div. 4 as art. X, div. 6; and § 6, renumbered art. X, div. 6 as art. X, div. 8. Former art. X, div. 6 pertained to neighborhood parking. See editor's note at art. X, div. 4 for more information.

Cross reference—Railroads generally, Ch. 29.
State law reference—Similar provisions, T.C.A., § 55-8-145(b).

Sec. 24-358. Certain vehicles to stop at all railroad grade crossings.

(a) The driver of any motor vehicle carrying passengers for hire or of any school bus carrying any school child or of any vehicle carrying explosive substances or flammable liquids as a cargo or part of a cargo, before crossing at grade any track or tracks of a railroad, shall stop such vehicle within fifty (50) feet but not less than fifteen (15) feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train and for signals indicating the approach of a train, except as hereinafter provided, and shall not proceed until he can do so safely. After stopping as required herein and upon proceeding when it is safe to do so, the driver of any such vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing and the driver shall not shift gears while crossing the tracks.

(b) No stop need be made at any such crossing where a police officer or a traffic-control signal directs traffic to proceed.
(Code 1986, § 24-358)
Cross reference—Railroads generally, Ch. 29.
State law reference—Similar provisions, T.C.A., § 55-8-147(a),(b).

Sec. 24-359. Effect of preceding sections as to right of recovery.

None of the provisions of sections 24-356 to 24-358 of this Code shall be construed as abridging or in any way affecting the common law right of recovery of litigants in damage suits that may be pending or brought against any railroad company or other common carrier.
(Code 1986, § 24-359)

Sec. 24-360. Moving heavy equipment at railroad grade crossings.

(a) No person shall operate or move any crawler-type tractor, steam shovel, derrick, roller or any equipment or structure having a normal operating speed of ten (10) or less miles per hour or a vertical body or load clearance of less than one-half (1/2) inch per foot of the distance between any two (2) adjacent axles or in any event of less than nine (9) inches, measured above the level surface of a roadway, upon or across any tracks at a railroad grade crossing without first complying with this section.

(b) Before making any such crossing, the person operating or moving any such vehicle or equipment shall first stop the same not less than fifteen (15) feet nor more than fifty (50) feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train, and shall not proceed until the crossing can be made safely.

(c) No such crossing shall be made when warning is given by automatic signal or crossing gates or a flagman or otherwise of the immediate approach of a railroad train or car. If a flagman is provided by the railroad, movement over the crossing shall be made under his direction.
(Code 1986, § 24-360)
Cross reference—Railroads generally, Ch. 29.
State law reference—Similar provisions, T.C.A., § 55-8-148.

Sec. 24-361. Reserved.
(Code 1986, § 24-361; Ord. No. 12821, § 2, 3-25-14)

Sec. 24-362. Requirements for stop signs; obedience.

(a) Every stop sign shall bear the word "Stop" in letters not less than eight (8) inches in height. Such sign shall, at nighttime, be rendered luminous by steady or flashing internal illumination, by a fixed floodlight projected on the face of the sign or by efficient reflecting elements on the face of the sign.

(b) Every stop sign shall be erected as near as practicable to the nearest line of the crosswalk on the near side of the intersection, or, if there is no crosswalk, then as close as practicable to the nearest line of the roadway.

(c) Every driver of a vehicle approaching a stop sign shall stop before entering the crosswalk at the near side of the intersection, or, in the event there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection, except when directed to proceed by a police officer or traffic-control signal.
(Code 1986, § 24-362)

State law reference—Similar provisions, T.C.A., § 55-8-149.

Sec. 24-363. Stop signs at other than through streets.

The Transportation Department is authorized to determine and designate intersections where particular hazard exists upon intersecting streets and to determine whether vehicles shall stop at one (1) or more entrances to any such intersection, and shall erect a stop sign at every such place where a stop is required.
(Code 1986, § 24-363; Ord. No. 12821, § 3, 3-25-14)

Cross reference—Transportation Department generally, § 24-96 et seq.

Sec. 24-364. Stops required of vehicles emerging from alleys, driveways, buildings.

The driver of a vehicle within a business or residence district emerging from an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway or driveway, and shall yield the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway.
(Code 1986, § 24-364)

State law reference—Similar provisions, T.C.A., § 55-8-150.

Sec. 24-365. Stopped vehicles not to block intersections or crosswalks.

No driver shall enter an intersection or marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.
(Code 1986, § 24-365)

Secs. 24-366—24-375. Reserved.

DIVISION 7. SNOW OR ICE EMERGENCY

Sec. 24-376. Proclamation.

(a) Upon receiving information that a condition of snowfall, snow and/or ice accumulation is creating or is likely to create hazardous street conditions endangering or impeding or likely to endanger or impede the movement of fire, police, emergency or other vehicular traffic or to otherwise endanger the safety, health or welfare of the public, the mayor shall forthwith proclaim the existence of a snow or ice emergency, the original of which proclamation shall be filed with the clerk of the city council.

(b) After the proclamation of a snow or ice emergency, the mayor shall forthwith notify the county department of emergency preparedness. This department shall notify the news media of the proclamation of a snow and ice emergency.

(c) If the mayor is absent from the city, or is disabled, incapacitated or otherwise unable to act or function as mayor, then the powers vested in the mayor by this section shall vest in the following officials in the order named, depending upon whether such officials are present in the city, and are not disabled, incapacitated or otherwise unable to act or function as such official:

(1) Chairman of the council;

(2) Vice-chairman of the council; and

(3) Chief of police.

(Code 1986, § 24-376; Ord. No. 9654, §§ 10, 111, 1-6-92)

Sec. 24-377. Special parking restrictions.

(a) "Emergency snow route" no parking signs shall be posted at appropriate locations along the streets or portions thereof identified in paragraph (c) of this section.

(b) No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the direction of a police officer along any street which is posted as a "snow emergency route" no parking location during such time as a proclamation of snow or ice emergency is effective. For purposes of this section a snow or ice emergency shall be effective one (1) hour after the issuance of a proclamation of a snow or ice emergency and shall remain in effect for forty-eight (48) hours; provided that, the effective period of snow or ice emergency may be extended or shortened by the proclamation of the mayor.

(c) "Emergency snow route" no parking signs shall be posted along the following streets or portions thereof:

Brainerd Road, north side, between West Brow Terrace and Missionary Ridge Tunnel;

Brainerd Road, south side, between Missionary Ridge Tunnel and Rosemont Drive;

Cherokee Boulevard, east side, between Black Street and Stringers Ridge Tunnel;

Cherokee Boulevard, west side, between Stringers Ridge Tunnel and Gurley Street;

Glenwood Drive, east side, between Third Street and Parkwood Avenue;

Glenwood Drive, west side, between Citico Avenue and North Chamberlain Avenue;

Glenwood Drive, west side, between North Chamberlain Avenue and Citico Avenue.

(Code 1986, § 24-377)

Secs. 24-378—24-379. Reserved.

DIVISION 8. NEIGHBORHOOD PARKING*

Sec. 24-380. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

"*Commuter vehicle*" means a motor vehicle parked in a residential area by a person who is not a resident property owner, tenant or lessee of any such area and who has not obtained a parking permit for the particular motor vehicle that is so parked.

***Editor's note—**Ord. No. 12626, § 6, adopted July 10, 2012, renumbered art. X, div. 6 as art. X, div. 8. See editor's note at art. X, div. 6 for more information.

"*Restricted on-street parking area*" means a contiguous or nearly contiguous area containing streets or parts thereof primarily abutted by property which is zoned R-1, R-2, R-3, R-3MD, RZ-1, RT-1 or R-4 designation on the official zoning map records and designated for restricted parking by the Transportation Department pursuant to criteria and procedures established in this division.

"*Fiscal year*" means the period beginning July 1 and ending June 30 of the following year.

"*Residential parking permit*" means a special permit issued hereunder for the privilege of parking on a street designated as a restricted on-street parking area for a time limit determined by the Transportation Department.
(Ord. No. 10148, § 1, 12-20-94; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-381. Designation generally; compliance.

(a) Upon approval of the City Council and after following the procedures set out in this division, the Transportation Department is hereby authorized to designate "restricted on-street parking areas" by appropriate signs and recording thereof on the official traffic records in which the parking of vehicles may be restricted on public streets beyond a designated time period at certain times during the day and on designated weekdays, only to vehicles bearing a valid residential parking permit issued pursuant to this section. This authority shall be in addition to any other authority the Transportation Department may have to regulate the times and conditions of motor vehicle parking on public streets.

(b) In order to determine whether a particular area should be designated as a restricted on-street parking area, the Transportation Department may conduct, upon its own initiative or upon a petition of a majority of the property owners in such proposed area, addressed to the Mayor, a study to determine if the proposed area meets the criteria set forth above. Following the study, and upon approval of the Mayor, the Transportation Department shall determine whether to designate the proposed area under consideration as a restricted on-street parking area or to remove the designation in the case of a previously established restricted on-street parking area. Following the approval by the City Council of the designation of a restricted on-street parking area, the Transportation Department shall cause the regulation to be recorded upon the official traffic records and retained permanently in the office of the Transportation Department. In addition, the Transportation Department shall cause parking signs to be erected upon public streets in the area, indicating the times, locations and conditions upon which parking shall be by permit only.
(Ord. No. 10148, § 1, 12-20-94; Ord. No. 12821, §§ 1, 3, 3-25-14)

Sec. 24-382. Designation of restricted on-street parking areas.

Areas, streets or portions of streets named in Section 24-506 of this Code, Schedule VI, and such other areas, streets or portions of streets as may hereafter be included in Schedule VI, lying within the City shall constitute a restricted on-street parking area.
(Ord. No. 10148, § 1, 12-20-94)

Sec. 24-383. Eligibility and criteria for establishment.

(a) An R-1, R-2, R-3, R-3MD, RZ, RZ-1, RT-1 or R-4 zoned area shall be deemed eligible for designation as a restricted on-street parking area for residential permit parking if, based on objective criteria established in this section, parking therein is impacted by commuter vehicles between 7:00 a.m. and 6:00 p.m., weekdays, except official city holidays.

(b) The following objective criteria shall be used in evaluating the need for restricted parking in a residentially zoned area in accordance with this section. For an area, however big or small, to be eligible for residential permit parking, that area must meet the following criteria:

(1) During any period between the hours of 7:00 a.m. and 6:00 p.m., weekdays, except official city holidays, the number of vehicles parked (or standing), legally or illegally, on the streets in the area is equal to seventy percent (70%) or more of the legal on-street parking capacity of the area. For purpose of this criterion, a legal parking space shall be twenty (20) linear feet.

(2) During the same period as in paragraph (1), twenty-five percent (25%) or more of the vehicles parked (or standing) on the streets in the area are not registered in the name of a person residing in this area.

(3) Prior to an area being designated as a permit parking area, the following factors shall be considered:

a. The possibility of a reduction in vehicle miles traveled.

b. The likelihood of alleviating traffic congestion, illegal parking, and related health and safety hazards.

c. The proximity of public transportation.

d. The desire and need of the area property owners for residential permit parking.

e. The need for parking for periods in excess of the designated time limit for business establishments and the general public for health or commercial business purposes.

f. Such other factors as may be required according to the Manual on Uniform Traffic Control Devices or Tennessee Code Annotated.

(Ord. No. 10148, § 1, 12-20-94)

Sec. 24-384. Issuance of special parking permits upon application; terms, etc.

(a) Following the official designation of a restricted on-street parking area, the Transportation Department or his designee shall issue appropriate residential parking permits. Upon application a permit shall be issued only to the owner or operator of a motor vehicle who resides in a restricted on-street parking area.

(b) The application for a permit shall contain the name of the owner or operator of the motor vehicle, residential address, the motor vehicle's make, model, registration number and the number of the applicant's operator's permit. In the absence of this information, a current lease agreement will be required.

(c) It shall constitute a violation of this article for any person to falsely represent himself as eligible for a parking permit or to furnish any false information in an application to the chief of police in order to obtain a parking permit.

(d) The Transportation Department or his designated representative shall issue permits to qualifying applicants for a fee of twenty-five dollars ($25.00) annually. Any permit issued hereunder is nontransferable to another person or another vehicle.

(e) The Transportation Department may make provisions for the issuance of temporary parking permits at no charge to bona fide visitors of a designated restricted on-street parking area.

(Ord. No. 10148, § 1, 12-20-94; Ord. No. 12359, § 3, 3-2-10; Ord. No. 12821, § 1, 3-25-14)

Sec. 24-385. Privileges and restrictions on parking permits.

(a) The holder of a parking permit shall be permitted to stand or park a motor vehicle displaying the permit and operated by him in any designated restricted on-street parking area during such times and places as the parking of motor vehicles therein is permitted. While a vehicle for which a parking permit has been issued is so parked, such permit shall be displayed on the left inside of the rear window of the vehicle. A parking permit shall not guarantee or reserve to the holder a parking space within a designated restricted on-street parking area.

(b) A parking permit shall not authorize the holder thereof to stand or park a motor vehicle in such places or during such times as the stopping, standing or parking of a motor vehicle is prohibited or set aside for specified types of vehicles, nor exempt the holder from the observance of any traffic regulation other than the designated parking time limit within the restricted on-street parking area.
(Ord. No. 10148, § 1, 12-20-94)

Sec. 24-386. Unauthorized use of parking permit.

No person other than the permittee named thereon shall use the parking permit or display it on a vehicle operated or parked, and any such use or display by a person other than the permittee shall constitute a violation of this article by the permittee and by the person who so used or displayed such parking permit.
(Ord. No. 10148, § 1, 12-20-94)

Sec. 24-387. Revocation of parking permit.

The City Court of Chattanooga may revoke the parking permit of any permittee found to be in violation of this division and, upon written notification thereof, the permittee shall surrender such permit to the Transportation Department. Failure, when so requested, to surrender a parking permit so revoked shall constitute a violation of this division.
(Ord. No. 10148, § 1, 12-20-94; Ord. No. 12821, § 1, 3-25-14)

DIVISION 9. VALET PARKING*

Sec. 24-388. On-street valet parking services permits, terms, etc.

(a) The Transportation Department or its designee may issue valet parking permits for businesses citywide to reserve on-street parking space(s) for the purpose of providing valet parking services to their customers.

(b) The application for a valet parking permit shall contain the name, address, and telephone number of the owner of the business for which the valet services will be provided; the name, address, and telephone number of a point of contact during which time the valet services will be provided; the name, address, and phone number of the valet service provider; the address of the off-street parking lot or garage where vehicles will be parked; and the street address and parking meter number(s) for each space requested and the date(s) the space(s) are needed.

(c) Valet parking service stands shall be located on the property of businesses citywide. When private space is not available, the valet stands and personnel shall be positioned to keep clear a minimum of five foot (5') pedestrian passage on a city sidewalk or right-of-way.

***Editor's note—**Ord. No. 12599, § 1, adopted May 29, 2012, set out provisions for use herein as §§ 24-337—24-340. For the purposes of clarity and classification, those provisions were included herein as §§ 24-388—24-390.1.

(d) In order to compensate for the review process and marking of valet parking zones, applicants for a valet parking permit shall pay a processing fee of twenty-five dollars ($25.00).

(e) Upon approval of an application for a valet parking permit, the applicant shall remit a fee in the amount to be determined by the Transportation Department, according to the following guidelines:

1. Regardless of the time of day in which the spaces will be used, the permit holder shall pay a minimum fixed fee of three dollars ($3.00) per day to be assessed for each valet parking loading space used.

2. During the times and days of valet operation, when otherwise the spaces are unavailable to the general public, the permit-holder shall pay a fee equivalent to standard meter fees that would be assessed to the general public to lawfully pay the meter during those times.

3. For all permit-holders, regardless of the amount of time the parking spaces are unavailable to the general public, the maximum fee shall be fifteen dollars ($15.00) per day.

4. Redevelopment and new construction projects may request a waiver of fees for up to a maximum of five (5) years. The Transportation Department will base consideration for waivers on new on-street parking or significant, voluntary investment in the Right-of-Way. Requests for waivers may only occur at the time of valet parking permit application and will be considered at the sole discretion of the Transportation Department.

(f) The Transportation Department or its designee may at their discretion limit the number of spaces and the duration of the permit. The Transportation Department or its designee shall not issue any valet parking permit if, in the Transportation Department's opinion, the use of such requested parking space(s) would interfere with any work in the right-of-way or with any event to be held in the right-of-way.

(g) Upon approval of such permit, the Transportation Department or its designee shall designate the parking spaces to be used by placing a bag over the meter(s) or signing and using pavement markings to define the space(s) reserved by the permit.
(Ord. No. 12599, § 1, 5-29-12; Ord. No. 12986, § 1, 9-8-15; Ord. No. 13220, §§ 1, 2, 9-19-17)

Sec. 24-389. Privileges and restrictions on valet parking permits.

The holder of a valid valet parking permit shall be permitted to temporarily stand or park a motor vehicle in the designated space(s) during such times as authorized by the permit. Valet parking operators may only park cars in on-street metered parking spaces for which it has a permit and legal off-street sites listed on the permit. Any such use of the designated parking space(s) by a person other than the permittee shall constitute a violation of this article. The valet must be staffed sufficiently to prevent queuing traffic, and valeted vehicles must be moved to off-street lots or garages. A copy of the valid permit must be on hand at the valet station during operation.
(Ord. No. 12599, § 1, 5-29-12; Ord. No. 12986, § 1, 9-8-15)

Sec. 24-390. Revocation and suspension of valet parking permit.

(a) The Transportation Department or its designee may revoke the valet parking permit of any permittee found to be in violation of this Chapter or in violation of any of the conditions placed upon the use of such permit. Upon written notification of such revocation, the permittee shall surrender such permit to the Transportation Department or its designee. Failure to surrender a revoked valet parking permit shall constitute a violation of this Code.

(b) At any time the Transportation Department or its designee determines that the continued use of any such valet parking permit may constitute a danger to the public health or safety, the Transportation Department or its designee shall suspend further use of such permit until such time as the Transportation Department or its designee shall determine that the further use of such permit shall no longer constitute a danger to the public health or safety.

(c) The use of a revoked or suspended valet parking permit shall constitute a violation of this Code.
(Ord. No. 12599, § 1, 5-29-12; Ord. No. 12986, § 1, 9-8-15)

Sec. 24-390.1. Insurance requirements.

No valet parking permit shall be issued pursuant to this section unless there is in full force and effect a liability insurance policy covering the valet parking operator in the minimum amounts of three hundred thousand dollars ($300,000.00) for bodily injury for each person, seven hundred thousand dollars ($700,000.00) for each accident, and one hundred thousand dollars ($100,000.00) for property damages. Such liability insurance policy shall be with an insurance company authorized to do business in Tennessee and approved by the City Attorney. The liability insurance policies required in this section shall name the City of Chattanooga as an additional insured.
(Ord. No. 12599, § 1, 5-29-12; Ord. No. 12986, § 1, 9-8-15)

DIVISION 10. IMMOBILIZATION OF VEHICLES*

Sec. 24-390.2. Title.

The City of Chattanooga hereby elects to adopt an ordinance pursuant to the Tenn. Code Ann. § 55-31-101 et seq., commonly known as the Motion Act, and specifically in compliance with Tenn. Code Ann. § 55-31-201(c) of the Motion Act. In addition to the powers granted in Part II Chapter, Chapter 24, Division 2, the Parking Authority, as a public body, corporate and politic, and constituted authority of the City of Chattanooga, shall be and is hereby vested with the powers and obligations described in this part.
(Ord. No. 14347, § 2, 4-14-26)

Sec. 24-390.3. Purpose.

It is declared to be the purpose and intent of this chapter that all Contracted Property, Commercial Property, and Commercial Parking lot owners in the City of Chattanooga would be engaged in booting be licensed and bonded and meet the minimum requirements as set forth in this chapter for the protection and welfare of the public. The provisions of this chapter shall regulate the use of boots and booting within the city but shall not apply to commercial lot owners who do not engage in booting.
(Ord. No. 14347, § 2, 4-14-26)

Sec. 24-390.4. Definitions.

As used in this chapter, the following definitions shall apply:

(1) "Boot" or "Booting" means the act of installing a vehicle immobilization device on a parked motor vehicle;

---

*Ord. No. 14347, § 2, adopted April 14, 2026, set out provisions for use herein as §§ 24-511—24-518. For the purposes of clarity and classification, those provisions were included herein as §§ 24-390.2—24-390.9.

(2) "Commercial Parking Lot" means:

(A) A privately owned parking lot or parking garage used for the temporary storage of motor vehicles, either for a fee or for use by customers of the owner of the parking lot or parking garage; and

(B) Does not include:

(i) A public street;

(ii) A public right-of-way;

(iii) A publicly owned parking lot or parking garage;

(iv) A motor vehicle storage facility; or

(v) An establishment for the servicing, repair, or maintenance of motor vehicles;

(3) "Commercial Parking Lot Owner" means the owner or operator of a Commercial Parking Lot as defined in Tenn. Code Ann.§ 55-31-102;

(4) "Contracted Property" means private or public property, including but not limited to, a Commercial Parking Lot or property owned by a public institution of higher education within the City, and for which the owner or lessee of the property has entered into a contract with a Licensed Parking Enforcement Vendor for the enforcement of parking rules or restrictions on the property or a designated portion of the property;

(5) "Employee" means a natural person who is required to file a federal form W-2, wage and tax statement, with the federal internal revenue service for the compensation the natural person receives for work performed;

(6) "Law Enforcement Agency" means:

(A) The Tennessee highway patrol;

(B) The sheriff's department of Hamilton County;

(C) The Chattanooga Police Department; or

(D) Any department, board, or commission designated by the legislative body of any county with a metropolitan form of government to perform the duties of a law enforcement agency specified in this chapter;

(7) "Licensed Booting Operator" means a natural person who:

(A) Is an employee of a Licensed Parking Enforcement Vendor;

(B) Holds a valid license issued by the Parking Authority pursuant to this ordinance, and whose license has not expired, been suspended, or revoked; and

(C) Is employed to enforce parking rules or restrictions on Contracted Property;

(8) "Licensed Parking Enforcement Vendor" means a Person, including other than a natural person, who:

(A) Holds a valid license issued by the Parking Authority pursuant to this ordinance, and whose license has not expired, been suspended, or revoked;

(B) Is contracted to engage in parking enforcement activities on Contracted Property; and

(C) Has recorded the required surety bond with the Register of Deeds in Hamilton County, Tennessee;

(9) "Motor vehicle" has the same meaning as defined in Tenn. Code Ann. § 55-8-101 and includes a tractor or trailer as those terms are defined in Tenn. Code Ann. § 55-8-101;

(10) "Motor vehicle portal" means the electronic database or online platform established by the department of revenue pursuant to Tenn. Code Ann. § 55-31-104;

(11) "Person" includes a natural person, firm, association, corporation, or partnership;

(12) "Self-releasing device" means a vehicle immobilization device that:

(A) Allows the vehicle owner or vehicle operator to remove the device without third-party assistance;

(B) Is equipped with an automated or electronic release mechanism that enables removal of the device immediately upon payment of the fees described in 201(b)(5) of the Motion Act;

(C) Permits the electronic processing of payment of the fees listed in 201(b)(5) of the Motion Act by credit card or debit card;

(D) Provides clear, written, and visual instructions for how to make payment of fees and for device removal; and

(E) Ensures the device can be safely removed by the vehicle owner or vehicle operator without damaging the vehicle or presenting a hazard;

(13) "Third-party service provider" means an entity that is approved by the department of revenue to create and implement the motor vehicle portal in compliance with Section 104 of the Motion Act;

(14) "Vehicle immobilization device" means a device that is designed or adapted to be attached to a parked motor vehicle to prohibit the motor vehicle's usual manner of movement or operation.

(Ord. No. 14347, § 2, 4-14-26)

Sec. 24-390.5. Booting.

(1) No person shall engage in booting motor vehicles within the City of Chattanooga without first obtaining and keeping in force a license from the Parking Authority pursuant to this chapter.

(2) It is an offense for any Person to Boot a motor vehicle, including, but not limited to, a tractor or trailer, if the motor vehicle is clearly identifiable by:

(A) A United States department of transportation (USDOT) number issued by the federal motor carrier safety administration (FMCSA);

(B) A registration plate issued and attached to the motor vehicle described in Tenn. Code Ann. § 55-4-113(a)(2); or

(C) A registration plate issued and attached to a trailer described in Tenn. Code Ann. § 55-4-113(a)(5).

(3) It is an offense for any Person to Boot any other motor vehicle not described above unless:

(A) The vehicle immobilization device is a self-releasing device;

(B) The motor vehicle is located on a Commercial Parking Lot or on Contracted Property;

(C) The person attaching the vehicle immobilization device is an employee of a Commercial Parking Lot Owner or is a Licensed Booting Operator;

(D) The Commercial Parking Lot or Contracted Property posts signage in conspicuous locations on the Commercial Parking Lot or Contracted Property bearing notice that:

(i) Any motor vehicle not authorized to park on the lot or property is subject to Booting;

(ii) Is designed and placed in a manner that ensures clear visibility and readability by consumers parking on the lot or property;

(iii) Is located at each designated entrance and exit of the lot or property;

(iv) Contains:

a. The phone number that a consumer can call for support with removing the vehicle immobilization device and that is monitored by a natural person twenty-four (24) hours per day, seven (7) days per week; and

b. The license number issued by the Parking Authority to the Licensed Parking Enforcement Vendor contracted to Boot on the lot or property, if any; and

c. This chapter protects consumers from Booting violations and that violations may be reported to the attorney general and reporter;

(E) The cost to remove the vehicle immobilization device is not greater than the actual cost of the delinquent parking fees owed by the vehicle owner that led to the attachment of the vehicle immobilization device, if any, plus a vehicle immobilization device removal fee of not greater than seventy-five dollars ($75.00); and

(F) A fee is not charged to remove a vehicle immobilization device to any person who had paid to park and who was improperly Booted.

(4) Licensed Booting Operators and Licensed Parking Enforcement Vendors shall be required to renew their license annually by the Parking Authority;

(5) Licensed Booting Operators shall ensure that a person attaching a vehicle immobilization device to motor vehicles can be clearly identified as licensed pursuant to this ordinance;

(6) Each Licensed Booting Operator and each Licensed Parking Enforcement Vendor shall have their own unique license number issued by the Parking Authority;

(7) Consumers may file and track complaints against a Licensed Booting Operator or Licensed Parking Enforcement vendor by contacting the Parking Authority at 1362 Market Street, Chattanooga, TN 37402, or calling (423) 629-1411;

(8) Any license granted under this chapter may be revoked or suspended by the Parking Authority for good cause following a hearing, including, but not limited to, a violation of this chapter;

(9) The Parking Authority shall timely investigate consumer complaints and provide quarterly reports of all such complaints to the Chattanooga City Council;

(10) The Parking Authority shall ensure that each Commercial Parking Lot or Contracted Property complies with the signage requirements of Section (3)(D)(i)-(iv) above;

(11) Any suspected violation of this chapter by any licensee shall be referred to the attorney general and reporter, a Law Enforcement Agency, or both.

(12) The Parking Authority shall maintain a publicly accessible registry of all Licensed Booting Operators and Licensed Parking Enforcement Vendors, including license number, license status, and contact information.

(13) The Parking Authority is hereby authorized to establish program requirements for the purpose of licensing Licensed Parking Enforcement Vendor and Licensed Booting Operator for public benefit. As a condition of licensure, each Licensed Parking Enforcement Vendor and Licensed Booting Operator must:

(A) file a surety bond in an amount of no less than two hundred fifty thousand dollars ($250,000.00) with the Treasurer's Office of the City of Chattanooga, which must be recorded with the Office of the Register of Deeds of Hamilton County, Tennessee;

(B) provide and maintain a contact phone number that with 24/7 answering services to assist parking customers, which phone number shall be visible on all parking citations;

(C) clearly describe the appeal procedure on all parking citations; and

(D) comply with other such licensing requirements adopted from time to time by the Parking Authority for public benefit.

(14) Notwithstanding anything contained herein to the contrary, if a vehicle owner or operator intentionally damages a vehicle immobilization device or fails to return the vehicle immobilization device to a clearly designated on-site storage location, the vehicle owner or operator may be subject to an additional fee not to exceed one hundred dollars ($100.00).

(15) If an employee of a Commercial Parking Lot Owner or a Licensed Booting Operator removes or causes the removal of a vehicle immobilization device from a vehicle that has been immobilized on the Commercial Parking Lot or Contracted Property for the purpose of having the motor vehicle towed from the Commercial Parking Lot or Contracted Property, then the motor vehicle owner or operator will not be assessed the vehicle immobilization device removal fee permitted in Section 24-390.5 (E).

(16) A person injured as a result of any violation of this section by a Licensed Booting Operator or Licensed Parking Enforcement Vendor may file a claim against the surety bond required hereunder to recover actual damages incurred as a result of the violation. The surety must be liable up to the amount of the bond for any damages shown to have been caused by a licensee's unlawful or negligent conduct while acting within the scope of parking enforcement activities on a Commercial Parking Lot or Contracted Property.
(Ord. No. 14347, § 2, 4-14-26)

Sec. 24-390.6. License Application.

(1) Applications—Conditions.

(2) Any Person desiring to engage in Licensed Booting Operator or Licensed Parking Enforcement Vendor services within the City of Chattanooga shall make application to the Parking Authority, which application shall be upon forms to be adopted and provided by the Parking Authority. The completed application must contain all the information required by such form and must be verified under oath.

(3) The application form to be adopted and provided by the Parking Authority shall require such information as the Parking Authority determines to be necessary and proper, including, but not limited to, the following:

(4) The full name and address of the Commercial Parking Lot Owner or Contracted Property Owner desiring to obtain a license and full name of a natural Person to serve as the agent for such entity;

(5) The location and description of the place and premises from which the applicant requests the right to Boot;

(6) The parking rates, citation rates, and escalation rates for the intended Commercial Parking Lot(s) and/or Contracted Property(ies).

(7) That the applicant is of good moral character and is ready, willing and able to comply with all the laws of the City of Chattanooga, the State of Tennessee, and the United States;

(8) The full name and address of the agent for the applicant, if an entity, or a sworn statement that the applicant, if a natural Person, will be at least twenty-one (21) years of age.

(9) A sworn statement that the applicant provides proof that it has filed the required surety bond with the Register's Office of Hamilton County, Tennessee.

(10) The applicant agrees to promptly respond to and assist with any investigation conducted by the Parking Authority in response to any complaint filed against the Commercial Parking Lot Owner or Contracted Property Owner.

(11) Upon denial of an application for a license for the failure to meet the conditions of this section, no new application shall be considered by the Parking Authority for a period of three (3) months.
(Ord. No. 14347, § 2, 4-14-26)

Sec. 24-390.7. Parking Fees.

The following provisions shall apply to all Licensed Commercial Parking Lot Owners. The following provisions shall not apply to the Parking Authority, which is separately governed by Section 24-321 and 24-325.

(1) A Commercial Parking Lot Owner shall not charge a penalty for nonpayment of parking fees unless:

(A) The Commercial Parking Lot Owner posts signage that:

(i) Is designed and placed in a manner that ensures clear visibility and readability by consumers parking in the Commercial Parking Lot;

(ii) Provides notice that motor vehicle owners who leave the Commercial Parking Lot without paying parking fees will be subject to a penalty if the parking fees are not paid within seventy-two (72) hours from the time of the Commercial Parking Lot Owner's discovery of the nonpayment of parking fees; and

(iii) Is located at each designated entrance and exit of the Commercial Parking Lot;

(2) The actual cost of parking fees owed remains unpaid after seventy-two (72) hours from the time of the Commercial Parking Lot Owner's discovery of the nonpayment of parking fees; and

(3) (A) If the actual cost of parking fees owed remains unpaid for thirty (30) days or less from the date of the Commercial Parking Lot Owner's discovery of the nonpayment of parking fees, the fee is not greater than fifty dollars ($50.00); or

(B) If the actual cost of parking fees owed remains unpaid for greater than thirty (30) days from the date of the Commercial Parking Lot Owner's discovery of the nonpayment of parking fees, the fee is not greater than seventy-five dollars ($75.00).

(4) If an entity requires on-site payment from a consumer for the parking of a motor vehicle on the entity's property, and the entity only accepts payment by use of a quick response (QR) code or a credit or debit card machine, then, in the event the QR code or the credit or debit card machine fails to operate correctly to process the payment transaction, the entity must:

(A) (i) Accept payment from the consumer by cash or check, or through a system that allows the consumer to provide the consumer's credit or debit card information over the phone; or

(ii) Allow the consumer to leave the property without providing payment at the time; and

(B) Not charge a penalty or late fee for nonpayment until at least seven (7) business days have passed from the date that the QR machine failed to operate and the individual left the property without paying.

(C) (i) The entity may provide information to a consumer enabling the consumer to mail payment to the entity, or provide the consumer's credit or debit card information over the phone for payment of the services at a later date.

(ii) If the entity does not provide the information described herein, then the consumer is not required to provide payment at a later date for the service.

(D) For a Commercial Parking Lot that is temporarily or continuously unattended, the Entity shall provide notice of the alternative forms of payment accepted on a prominent sign located at each site on the Entity's property where payment is taken.

(E) As used in this section:

(i) "Entity" includes a Person, Commercial Parking Lot Owner, and this state or a political subdivision of this state; and

(ii) "On-site" means on an Entity's property where parking services are provided.

(Ord. No. 14347, § 2, 4-14-26)

Sec. 24-390.8. Penalties.

(A) Except as otherwise provided herein, any person injured as a result of a violation of this chapter is entitled to maintain a private right of action for injunctive relief and to recover actual damages, compensatory damages, punitive damages, and reasonable attorneys' fees against a Licensed Booting Operator or Licensed Parking Enforcement Vendor for an alleged violation.

(B) The violation of any of any licensing requirements or requirements of this chapter or the Act, as determined by the Parking Authority it its commercially reasonable discretion, could result in the immediate revocation of a Booting Operator or Parking Enforcement Vendor license.

(Ord. No. 14347, § 2, 4-14-26)

Sec. 24-390.9. Conditional Release and Payment Plan for Immobilized Vehicles.

(A) **Purpose.**

It is the intent of this section to promote fair and equitable enforcement of parking regulations while providing reasonable opportunities for individuals to regain access to their vehicles without undue financial hardship, while also improving the City's ability to collect outstanding fines.

(B) **Eligibility for Conditional Release.**

Notwithstanding any provision to the contrary, a motor vehicle that has been immobilized due to delinquent parking citations may be released upon partial payment if the total outstanding balance of delinquent parking citations exceeds two hundred fifty dollars ($250.00).

(C) **Required Initial Payment.**

To secure the release of an immobilized vehicle under this section, the vehicle owner or operator shall:

1. Pay the applicable vehicle immobilization (boot) removal fee; and
2. Pay an initial amount equal to not less than twenty-five percent (25%) of the total outstanding balance of delinquent parking citations.

(D) **Payment Plan Requirement.**

Upon release of the vehicle, the remaining balance shall be placed on a structured payment plan administered by the Parking Authority, subject to the following:

1. Payment plans shall be reasonable in duration and installment amounts based on the total balance owed;
2. The Parking Authority shall provide clear written terms, including due dates and default provisions;
3. The vehicle owner or operator must remain current on all scheduled payments to remain in good standing; and

4. No additional immobilization shall occur solely for the existing delinquent citations while the individual remains in good standing on the payment plan.

(E) **Default and Subsequent Immobilization.**

1. If the vehicle owner or operator fails to comply with the terms of the payment plan, the full outstanding balance shall become immediately due;

2. If a vehicle owner or operator who is currently enrolled in a payment plan under this section is subsequently immobilized for any reason, including but not limited to new or continued violations, that individual shall be deemed ineligible for continued participation in the conditional release program;

3. In such cases, release of the immobilized vehicle may require payment in full of all outstanding delinquent parking citations, in addition to any applicable immobilization fees;

4. The Parking Authority may deny re-enrollment in the program for a period of up to twelve (12) months following default or subsequent immobilization.

(F) **Administrative Authority.**

The Parking Authority is authorized to promulgate rules and procedures necessary to implement this section, including verification, payment processing, hardship considerations, and enforcement of program eligibility, provided such rules are consistent with the minimum standards set forth herein.

(G) **Consumer Protection Notice.**

All notices issued in connection with vehicle immobilization shall clearly state the availability of partial payment and payment plan options under this section, including the consequences of default and subsequent immobilization.

(Ord. No. 14347, § 2, 4-14-26)

ARTICLE XI. VEHICLE LICENSES*

Sec. 24-391. Applicability and exemptions.

The provisions of this article shall apply to all motor vehicles for which a certificate of registration and registration plates have been issued by the State of Tennessee to an address within the City of Chattanooga including, without limitation, passenger automobiles, trucks, buses, straight vans, window vans, sports vans, pickup trucks, taxicabs and all other motor vehicles, except buses operated by the Chattanooga Area Regional Transportation Authority and interstate trucks or carriers licensed by the Interstate Commerce Commission. The provisions of this article shall not apply to motor vehicles registered to a governmental entity or to two (2) wheel motor driven vehicles.

(Code 1986, § 24-391)

***Editor's note—**Ord. No. 8972, § 1, enacted June 28, 1988, deleted Article XI, Vehicle Licenses, in its entirety, and added a new Article XI in lieu thereof as herein set out. Former Article XI consisted of §§ 24-391—24-398 and derived from Code 1968, §§ 24-299—24-306.

Case law annotations—This article is a valid regulatory measure within the police powers of the city; the required license is not a tax and does not offend the interstate commerce clause of the U.S. Constitution; City of Chattanooga v. Veatch, 202 Tenn. 338, 304 S.W.2d 326.

Sec. 24-392. Fees levied.

There is hereby levied an annual license fee in the amount of five dollars ($5.00) on each motor vehicle subject to the provisions of this article.
(Code 1986, § 24-392; Ord. No. 12368, § 1, 3-16-10)

Sec. 24-393. When fees payable; collection; issuance of license.

(a) All owners or operators of motor vehicles shall pay the license fee levied in Section 24-392 annually to the city treasurer or his duly appointed representative. Such license fee shall be due and payable within thirty (30) days of initial registration or the annual renewal of registration and registration plates issued by the state for such vehicle.

(b) The Hamilton County Clerk is hereby authorized to accept license fees and to issue to the owners or operators of vehicles in the city such tags, stickers or other devices as are provided for in section 24-397 of this Code.
(Code 1986, § 24-393; Ord. No. 12368, § 1, 3-16-10)

Sec. 24-394. When payment delinquent; collection.

The license fee levied under this article shall become delinquent on the thirty-first (31st) day following initial registration with the state or renewal of registration with the state of a motor vehicle. The city treasurer shall issue distress warrants against the owners of motor vehicles who have failed to pay such fee by such date and shall have such warrants levied as provided by law. The cost of such levy shall be paid by the owner of the vehicle in which such tax is delinquent.
(Code 1986, § 24-394)

Sec. 24-395. Repealed.
(Code 1986, § 24-395, Ord. No. 12368, § 2, 3-16-10)

Sec. 24-396. Registration required.

All owners or operators of motor vehicles shall register such vehicles with the city treasurer annually within thirty (30) days of the registration or renewal of registration of such vehicle with the state and shall pay the license fee levied by this article.
(Code 1986, § 24-396)

Sec. 24-397. License to be displayed; transferability.

Upon payment of the license fee required by section 24-392 of this Code, the city treasurer shall issue to the owner or operator of each motor vehicle a tag, sticker or other device which shall bear a serial number. Such tag, sticker or other device shall be firmly attached to the lower left corner of the registration plate issued by the state. Such tag, sticker or other device shall not be transferable from one (1) owner to another or from one (1) vehicle to another.
(Code 1986, § 24-397)

Sec. 24-398. Use of funds.

The revenue from the license fees collected under this article shall be used in paying the costs of administration of this article, the enforcement of its provisions, for the promotion of traffic safety and installation of signs, signals, markings and other safety devices and for regulating traffic on the streets of the city.
(Code 1986, § 24-398)

Sec. 24-399. Conversion to new system.

Notwithstanding any other provision in this article to the contrary, any owner or operator of a motor vehicle shall pay the license fee levied by this article within thirty (30) days of the registration or renewal of registration of such vehicle during calendar year 1989, except that owners or operators of motor vehicles other than private passenger motor vehicles shall pay said license fee on or before April 30, 1989; the city treasurer shall issue the tag, sticker or other device provided for in section 24-397 of this Code which shall be displayed as provided in said section. Such tag, sticker or other device shall be valid until the owner or operator of a motor vehicle renews the registration of his or her vehicle with the state during calendar year 1990. At any time during calendar year 1989 or thereafter an owner or operator of a motor vehicle registers such vehicle with the state for the first time in his or her name, the license fee shall be due and payable in accordance with section 24-393 of this Code.
(Code 1986, § 24-399)

Secs. 24-400—24-435. Reserved.

ARTICLE XII. VEHICLE EQUIPMENT*

Sec. 24-436. Steering mechanism; alignment of wheels; suspension system.

(a) No motor vehicle shall be driven upon the streets of the city when the lash or free play in the steering system is in excess of two (2) inches. The steering wheel shall turn freely through the limit of travel in both directions. The steering arms, tie rod, drag link or other mechanism by which the vehicle is steered, and associated parts, shall be free from excessive play or wear and in no event shall the free play in the steering linkage exceed one-quarter (1/4) of an inch.

(b) The front and rear wheels shall be in good alignment and the toe-in and toe-out measurements shall not exceed thirty (30) foot slip per mile for the front wheels as measured by a bar-type scuff gauge or other toe-in measuring device; provided, further, that, in no event shall toe-in or toe-out measurement for any set of wheels be greater than one and five-tenths (1.5) times the values listed in the vehicle manufacturer's service specifications for alignment settings.

(c) Structural parts shall not be bent or damaged. Stabilizer bars shall be connected. Springs shall not be broken. Shock absorber mountings, shackles and U-bolts shall be securely attached. Rubber bushings shall not extrude out from or be missing from suspension joints. Radius rods shall not be missing or damaged.
(Code 1986, § 24-436)

Sec. 24-437. Horn.

(a) Every vehicle when operated upon any street in the city shall be equipped with a horn in good working order capable of emitting sound audible under normal conditions from a distance of not less than two hundred (200) feet. It shall be unlawful, except as otherwise provided in this section, for any vehicle to be equipped with or for any person to use upon a vehicle any siren, exhaust, compression or spark plug whistle, or for any person at any time to use a horn otherwise than as a reasonable warning or to make any unnecessary or unreasonably loud or harsh sound by means of a horn or other warning device.

***State law reference—**Vehicle equipment generally, T.C.A., § 55-9-201.

(b) Every authorized emergency vehicle and emergency repair vehicle of public service companies used for emergency calls shall be equipped with a bell, siren or exhaust whistle of a type approved by the mayor, chief of police or fire chief.
(Code 1986, § 24-437; Ord. No. 9654, § 113, 1-6-92)

State law reference—Similar provisions, T.C.A., § 55-9-201.

Sec. 24-438. Mufflers and approved engine compression braking devices; definitions; noise test and signage.

(a) No person shall drive a motor vehicle on any street in the city unless such motor vehicle is equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise and annoying smoke.

(b) It shall be unlawful to use a "muffler cutout" on any motor vehicle upon any road, street or highway.

(c) Trucks, tractors, and semitrailers, as defined in T.C.A. § 55-8-101, shall not use an engine compression braking device unless the engine compression braking device is equipped with an operational approved muffler to prevent excessive or unusual noise. In this section, "approved muffler" shall mean any muffler that complies with the Federal Motor Carrier Safety Regulations on noise emissions found at 49 CFR 325, et. seq.

(d) The Transportation Department is authorized and directed to conduct an engineering and traffic investigation to determine areas of the City which are subject to excessive or unusual noise and to place signage on such city streets which are necessary to limit excessive roadway noise to adjoining property owners. Excessive or unusual noise shall be considered in conformance with the provisions described in sections 25-66 through 25-74 of the Chattanooga City Code as well as this section.

(e) "Excessive or unusual noise" shall include, but not be limited to, any sound made by a motor vehicle at any time under any condition of grade, speed, acceleration, or de-acceleration which exceeds ninety (90) decibels with reference to .0002 microbar.

(f) Any test made by a mechanical instrument shall have the A Scale weighing network and fast meter response specified in American Standards Association specifications numbered S1.4-1961. Tests shall be conducted with the microphone located four and one-half (4½) feet above ground level at a distance of ten (10) feet from the left rear of the vehicle while said vehicle is on asphalt or concrete. The testing machine shall be as above specified and shall have an internal calibrating feature, for field calibration by an operator, with a color scale indicating when ninety (90) decibels is exceeded.
(Code 1986, § 24-438; Ord. No. 12186, § 1, 11-25-08)

State law reference—Similar provisions, T.C.A., §§ 55-7-117 and 55-9202.

Sec. 24-439. Brakes required.

(a) Every motor vehicle, other than a motorcycle, when operated on any street in the city, shall be equipped with brakes adequate to control the movement of and to stop and hold such vehicle, including two (2) separate means of applying the brakes, each of which shall be effective to apply the brakes to at least two (2) wheels. If these two (2) separate means of applying brakes are connected in any way, they shall be constructed so that failure of any one part of the operating mechanism shall not leave the motor vehicle without brakes on at least two (2) wheels.

(b) Every motorcycle and bicycle with motor attached, when operated upon any street in the city, shall be equipped with at least one (1) brake, which may be operated by hand or foot.

(c) Every trailer or semitrailer of a gross weight of three thousand (3,000) pounds or more, when operated on any street in the city, shall be equipped with brakes adequate to control the movement of and to stop and to hold such vehicle and designed so as to be applied by the driver of the towing motor vehicle from its cab. Such brakes shall be so designed and connected that in case of an accidental breakaway of the towed vehicle the brakes shall be automatically applied.

(d) Every new motor vehicle, trailer or semi-trailer sold in the city and operated on the streets shall be equipped with service brakes upon all wheels of every such vehicle, except trucks and truck tractors having three (3) or more axles need not have brakes on the front wheels, unless such vehicles are equipped with at least two (2) steerable axles, the wheels of one (1) such axle need not be equipped with brakes, except any motorcycle, and except that any semi-trailer of less than one thousand five hundred (1,500) pounds gross weight need not be equipped with brakes.
(Code 1986, § 24-439)

State law reference—Similar provisions, T.C.A., § 55-9-204.

Sec. 24-440. Performance ability of brakes; maintenance of brake system.

(a) The service brakes upon any motor vehicle or combination of vehicles shall be adequate to stop such vehicles when traveling twenty (20) miles per hour within a distance of twenty-five (25) feet when upon dry asphalt or concrete pavement surface free from loose material where the grade does not exceed one percent (1%), without leaving a twelve (12) foot wide lane.

(b) Under the above conditions, the hand brake shall be adequate to stop such vehicle or vehicles within a distance of fifty-five (55) feet and such hand brake shall be adequate to hold such vehicle or vehicles stationary on any grade upon which operated.

(c) Under the above conditions, the service brakes upon a motor vehicle equipped with two (2) wheel brakes only, and when permitted hereunder, shall be adequate to stop the vehicle within a distance of forty (40) feet and the hand brake adequate to stop the vehicle within a distance of fifty-five (55) feet.

(d) All braking distances specified in this section shall apply to all vehicles mentioned, whether or not such vehicles are loaded to the maximum capacity permitted under state law.

(e) All brakes shall be maintained in good working order and shall be so adjusted as to operate as equally as practicable with respect to the wheels on opposite sides so the vehicle. The force applied by the service brakes on a front wheel or rear wheel shall not differ by more than twenty percent (20%) from the force applied by the brake on the other front wheel or rear wheel, respectively.

(f) The brake system failure indicator lamp, if part of a vehicle's original equipment, shall be operable. The brake system shall demonstrate integrity as indicated by no illumination of the brake system failure indicator light under operating conditions.

(g) The brake system shall withstand the application of force to the pedal without failure of any line or other part.
(Code 1986, § 24-440)

State law reference—Similar provisions, T.C.A., § 55-9-205.

Sec. 24-441. Windshield must be equipped with wipers.

Every motor vehicle having a windshield shall be equipped with two (2) windshield wipers for cleaning rain, snow or other moisture from the windshield in order to provide clear vision for the driver, unless one (1) windshield wiper cleans to within one (1) inch of each side of the windshield.
(Code 1986, § 24-441)

State law reference—Similar provisions, T.C.A., § 55-9-203.

Sec. 24-442. Lights, etc., required—Vehicles other than motor vehicles.

Every vehicle other than a motor vehicle, when traveling upon any street in the city, shall be equipped with a light attached to and on the upper left side of such vehicle, capable of displaying a light visible five hundred (500) feet to the front and five hundred (500) feet to the rear of such vehicle under ordinary atmospheric conditions. Such light shall be displayed during the period from one-half (1/2) hour after sunset to one-half (1/2) hour before sunrise, and at all other times when there is not sufficient light to render clearly discernible any person on the road or highway at a distance of two hundred (200) feet ahead of such vehicle.

(Code 1986, § 24-442)

State law reference—Similar provisions, T.C.A., § 55-9-401.

Sec. 24-443. Lights required on motor vehicles; exceptions; regulations as to color, type and visibility distance.

(a) (1) Every motor vehicle other than a motorcycle, road roller, road machinery or farm tractor shall be equipped with at least two (2) and not more than four (4) headlights, with at least one (1) on each side of the front of the motor vehicle. No nonemergency vehicle shall operate or install emergency flashing light systems, such as strobe, wig-wag, or other flashing lights within the headlight assembly or grill area of the vehicle; provided, however, that a school bus may operate a flashing, wig-wag lighting system within the headlight assembly of the vehicle when the vehicle's visual stop signs are actuated for receiving or discharging school children.

(2) Auxiliary road lighting lamps may be used, but not more than two (2) of the lamps shall be lighted at any one (1) time in addition to the two (2) required headlights.

(3) No spotlight or auxiliary lamp shall be so aimed upon approaching another vehicle that any part of the high intensity portion of the beam therefrom is directed beyond the left side of the motor vehicle upon which the spotlight or auxiliary lamp is mounted, nor more than one hundred feet (100') ahead of the motor vehicle.

(b) (1) Every motor vehicle shall be equipped with two (2) red tail lamps and two (2) red stoplights on the rear of the vehicle, and one (1) tail lamp and one (1) stoplight shall be on each side, except that passenger cars manufactured or assembled prior to January 1, 1939, trucks manufactured or assembled prior to January 1, 1968, and motorcycles and motor-driven cycles shall have at least one (1) red tail lamp and one (1) red stoplight. No nonemergency vehicle shall operate or install emergency flashing light systems such as strobe, wig-wag, or other flashing lights in tail light lamp, stoplight area, or factory installed emergency flasher and backup light area; provided, however, that the foregoing prohibition shall not apply to the utilization of a continuously flashing light system. For the purposes of this part, "continuously flashing light system" means a brake light system in which the brake lamp pulses rapidly for no more than five (5) seconds when the brake is applied, and then converts to a continuous light as a normal brake lamp until the time that the brake is released.

(2) The stoplight shall be so arranged as to be actuated by the application of the service or foot brake and shall be capable of being seen and distinguished from a distance of one hundred feet (100') to the rear of a motor vehicle in normal daylight, but shall not project a glaring or dazzling light.

(3) The stoplight may be incorporated with the tail lamp.

(4) Motor vehicle tail light lamps may operate as following:

(A) A white backup light operates when the motor vehicle is in reverse;

(B) When the driver is in a panic stop condition going forward, the backup lamp pulses or flashes red; and

(C) Upon normal stops of the motor vehicle, there is no action by the backup light.

(c) Each lamp and stoplight required in this section shall be in good condition and operational.

(d) (1) No vehicle operated in this city shall be equipped with any flashing lights in any color or combination of colors that display to the front of the vehicle, other than factory installed emergency flashers, except as provided in this section and for the following vehicles:

(A) Motorcycle escorts of properly identified funeral processions authorized by T.C.A. § 55-8-183 to display green strobe flashing lights;

(B) Vehicles owned by or leased to licensed public or private security services but not personally owned vehicles of security guards may display flashing lights in any color other than red, white, or blue, or in any combination of colors other than red, white, or blue; provided, that the flashing lights authorized by this subdivision (d)(1)(B) for security services vehicles shall not be operated or illuminated while the vehicle is on a public road, in motion or stationary, and shall only be illuminated when patrolling a shopping center or mall parking lot or other private premises or if stopped in a hazardous location for the purposes of warning;

(C) A highway maintenance or utility vehicle or recovery vehicle may display flashing white or amber lights or any combination of flashing white and amber lights pursuant to subsection (e);

(D) A motor vehicle operated for purposes of an emergency equipment company pursuant to subsection (g) may display flashing red, white, blue, or amber lights or any combination of flashing red, white, blue, and amber lights; provided, that emergency equipment company vehicles shall not display or illuminate the lights authorized by this section while the vehicle is on a public road, whether in motion or stationary;

(E) A passenger motor vehicle operated by an organ procurement organization or a person under an agreement with an organ procurement organization may display flashing white or amber lights or flashing white and amber lights in combination when transporting an organ for human transplantation;

(F) A school bus, a passenger motor vehicle operated by a rural mail carrier of the United States Postal Service while performing the duties of a rural mail carrier, or an emergency vehicle used in firefighting, including ambulances, emergency vehicles used in firefighting that are owned or operated by the division of forestry, firefighting vehicles, rescue vehicles, privately owned vehicles of regular or volunteer firefighters certified in T.C.A. § 55-9-201(c), or other emergency vehicles used in firefighting owned, operated, or subsidized by the governing body of any county or municipality, may display flashing red or white lights or flashing red and white lights in combination; and

(G) Authorized law enforcement vehicles and other vehicles authorized by T.C.A. § 55-9-414 to display flashing red, white, and blue lights in combination.

(2) Any emergency rescue vehicle owned, titled and operated by a state chartered rescue squad, a member of the Tennessee Association of Rescue Squads, privately owned vehicles of regular or volunteer firefighters certified in T.C.A. § 55-9-201(c), and marked with lettering at least three inches (3") in size and displayed on the left and right sides of the vehicle designating it an "Emergency Rescue Vehicle," any authorized civil defense emergency vehicle displaying the appropriate civil defense agency markings of at least three inches (3"), any ambulance or vehicle equipped to provide emergency medical services properly licensed as required in the state and displaying the proper markings, and any motor vehicle operated for purposes of an emergency equipment company pursuant to subsection (g); provided, that lights authorized by this

subdivision (d)(2) for such emergency equipment company vehicle shall not be operated or illuminated while the vehicle is on a public road, whether in motion or stationary, shall also be authorized to be lighted in one (1) or more of the following manners:

(A) A red or red/white visibar type with public address system;

(B) A red or red/white oscillating type light; and

(C) Blinking red or red/white lights, front and rear.

(3) No vehicle operated in this city shall be equipped with any steady-burning lights that display to the front of the vehicle in any color other than white or amber or in any combination of colors other than white and amber, except for the following vehicles:

(A) A vehicle equipped with headlamps, daytime running lamps, or other similar devices in any color or combination of colors between white and amber authorized by the Federal Motor Vehicle Safety Standard No. 108, as adopted by the National Highway Traffic Safety Administration and compiled in 49 C.F.R. § 571.108;

(B) A motor vehicle operated for purposes of an emergency equipment company may display steady-burning red, white, blue, or amber lights, or any combination of steady-burning red, white, blue, and amber lights pursuant to subsection (g); provided, that emergency equipment company vehicles shall not display or illuminate the lights authorized by this section while the vehicle is on a public road, whether in motion or stationary;

(C) A school bus, a passenger motor vehicle operated by a rural mail carrier of the United States Postal Service while performing the duties of a rural mail carrier, or an emergency vehicle used in firefighting, including ambulances, emergency vehicles used in firefighting that are owned or operated by the division of forestry, firefighting vehicles, rescue vehicles, privately owned vehicles of regular or volunteer firefighters certified in T.C.A. § 55-9-201(c), or other emergency vehicles used in firefighting owned, operated, or subsidized by the governing body of any county or municipality, may display steady-burning red lights; and

(D) Authorized law enforcement vehicles and other vehicles listed in T.C.A. § 55-9-414 may display steady-burning red, white, and blue lights in combination.

(e) (1)

(A) Notwithstanding any law to the contrary, nothing in this section shall prohibit a highway maintenance or utility vehicle, or any other type vehicle or equipment participating, in any fashion, with highway or utility construction, maintenance, or inspection, from operating a white, amber, or white and amber light system on any location on the vehicle or equipment while the vehicle or equipment is parked upon, entering or leaving any highway or utility construction, maintenance, repair or inspection site.

(B) Notwithstanding any law to the contrary, a recovery vehicle designed for towing a disabled vehicle, as defined in T.C.A. § 55-8-132, while in the performance of duties involved with towing an abandoned, immobile, disabled or unattended motor vehicle is authorized to display an amber light that is a strobe, flashing, oscillating or revolving system or any combination of white and amber lights. Such authorized light or lights may be displayed on any location on the vehicle or equipment, other than within the headlight assembly or grill area of the vehicle, in the tail light lamp or stoplight area, or factory installed emergency flasher and backup light area.

(C) Notwithstanding any law to the contrary, an implement of husbandry, as defined in T.C.A. § 55-1-108, and a vehicle used to escort an implement of husbandry is authorized to display

a white, amber, or white and amber light system on any location on the implement of husbandry or escort vehicle while the implement or vehicle is on a public road, whether in motion or stationary.

(2) As used in this subsection (e), "utility" means any person, municipality, county, metropolitan government, cooperative, board, commission, district, or any entity created or authorized by public act, private act, or general law to provide electricity, natural gas, water, waste water services, telephone service, or any combination thereof, for sale to consumers in any particular service area.

(3) As used in subdivision (e)(2), "cooperative" means any cooperative providing utility services including, but not limited to, electric or telephone services, or both.

(4) Nothing in this subsection (e) imposes any duty or obligation to install or utilize the lighting systems allowed in this section.

(f) Notwithstanding any law to the contrary, nothing in this section shall prohibit a motor vehicle used for the driver education and training course for Class D vehicles as provided by T.C.A. § 55-50-322(f) from operating an amber light-emitting diode (LED) light system on the front and rear of such vehicle other than in the taillight lamp, stoplight area, or factory-installed emergency flasher and backup light area. The amber light-emitting diode light system shall not be placed in the driver's line of sight. Nothing in this subsection (f) imposes any duty or obligation to install or utilize the lighting system allowed in this subsection (f).

(g) (1) The prohibitions in subdivisions (a)(1) and (b)(1), and subsection (d) do not apply to any privately-owned motor vehicle that is primarily operated for business purposes by any salesperson, service representative, employee, lessee, or duly authorized agent of an emergency equipment company; provided, that the vehicle is marked with the lettering required by subdivision (g)(3).

(2) Any person operating a motor vehicle pursuant to this subsection (g) shall carry a copy of the company's business license or the person's or owner of the company's professional or occupational license, certification or registration issued by the state and appropriate identification issued by the owner of the company.

(3) Lettering shall be displayed on the left and right sides of the vehicle identifying the name of the company for which the vehicle is operated and on the front and rear of the vehicle designating it a "Demonstration Vehicle." The lettering shall be painted or affixed on, or attached to, the vehicle in a permanent manner, and shall be at least three inches (3") in size.

(4) Nothing in this subsection (g) imposes any duty or obligation on a manufacturer of motor vehicles used by or sold to emergency equipment companies to install, maintain or exhibit the lighting system allowed in this subsection (g) at the time of manufacture or sale.

(5) Nothing in this subsection (g) shall be construed to permit the operator of an emergency equipment company vehicle from operating any lighting equipment authorized by this subsection (g) while the vehicle is on a public road, whether in motion or stationary.

(6) As used in this section, "emergency equipment company" or "company" means any entity licensed as required by this state to sell or repair lighting equipment designed for use on motor vehicles that are operated for authorized law enforcement, emergency response, or other public safety activities.

(h) A violation of this section shall be deemed a noncriminal violation subject to a fine not to exceed fifty dollars ($50.00) for each offense.

(i) This ordinance adopts the provisions of T.C.A. § 55-9-402 as it exists now and as it may be amended in the future.
(Ord. No. 13390, § 1, 10-30-18)

State law reference—Similar provisions, T.C.A., § 55-9-402.

Sec. 24-444. Same—Motorcycles.

Every motorcycle shall be equipped with at least one (1) and not more than two (2) head lamps.
(Code 1986, § 24-444)

State law reference—Similar provisions, T.C.A., § 55-9-403.

Sec. 24-445. Same—Vehicles having width in excess of eighty (80) inches, truck tractors and trailers.

(a) Every motor vehicle other than any passenger car, any road roller, road machinery or farm tractor having a width of eighty (80) inches or more shall be equipped with at least the following lighting devices and reflectors:

(1) On the front, at least two (2) headlamps, an equal number at each side; two (2) turn signals, one (1) at each side; two (2) clearance lamps, one at each side; three (3) identification lamps, mounted on the vertical center line of the vehicle, or the vertical center line of the cab where different from the center line of the vehicle, except that where the cab is not more than forty-two (42) inches wide at the front roofline, a single lamp at the center of the cab shall be deemed to comply with the requirements for identification lamps. No part of the identification lamps or their mountings may extend below the top of the vehicle windshield;

(2) On the rear, two (2) tail lamps, one at each side; two (2) stop lamps, one (1) at each side; two (2) turn signals, one at each side; two (2) clearance lamps, one (1) at each side; two (2) reflectors, one at each side; three (3) identification lamps, mounted on the vertical center line of the vehicle, provided that the identification lamps need not be lighted if obscured by a vehicle towed by the truck.

(3) On each side, one (1) side-marker lamp at or near the front, one (1) side marker lamp at or near the rear; one (1) reflector at or near the front, and one (1) reflector at or near the rear.

(b) Every truck tractor shall be equipped as follows:

(1) On the front, at least two (2) headlamps, an equal number at each side; two (2) turn signals, one (1) at each side; two (2) clearance lamps, one at each side; three (3) identification lamps, mounted on the vertical center line of the vehicle, or the center line of the cab where different from the center line of the vehicle, except that where the cab is not more than forty-two (42) inches wide at the front roofline, a single lamp at the center of the cab shall be deemed to comply with the requirements for identification lamps. No part of the identification lamps or their mountings may extend below the top of the vehicle windshield;

(2) On the rear, one (1) tail lamp, one (1) stop lamp; two (2) reflectors, one (1) at each side; and, unless the turn signals on the front are so constructed (double faced) and located as to be visible to passing drivers, two (2) turn signals on the rear of the cab, one (1) at each side.

(c) Every semitrailer or full trailer eighty (80) inches or more in overall width, except converter dollies, shall be equipped as follows:

(1) On the front, two (2) clearance lamps, one (1) at each side;

(2) On the rear, two (2) tail lamps, one (1) at each side; two (2) stop lamps one (1) at each side; two (2) turn signals, one (1) at each side; two (2) clearance lamps, one (1) at each side; two (2)

reflectors, one (1) at each side; three (3) identification lamps, mounted on the vertical center line of the vehicle, provided that the identification lamps need not be lighted if obscured by another vehicle in the same combination;

(3) On each side, one (1) side-marker lamp at or near the front; one (1) side marker lamp at or near the rear; one (1) reflector at or near the front; one (1) reflector at or near the rear; and, in case of semitrailers and full trailers thirty (30) feet or more in length, at least one (1) additional side-marker lamp at optional height and at least one (1) additional reflector, the additional side-marker lamp (or lamps) and reflector (or reflectors) to be at or near the center or at approximately uniform spacing in the length of the vehicle;

(4) For the purposes of these regulations, a converter dolly is a motor vehicle with a fifth wheel lower half or equivalent mechanism, the attachment of which vehicle converts a semitrailer to a full trailer. Each dolly, when towed singly by another vehicle, and not as part of a full trailer, shall be equipped with one (1) stop lamp, one (1) tail lamp, and two (2) reflectors on the rear. No lighting devices or reflectors are required on the front or side of any dolly.

(d) During the time when lights are required to be displayed, there shall be attached to the rearmost extremity of any load which projects four (4) feet or more beyond the rear of the body of the motor vehicle, or at any tailboard or tailgate so projecting, or to the rearmost extremity of any load, carried on a pole trailer, at least one (1) red lamp, securely fastened thereto, which shall be visible from a distance of five hundred (500) feet to the sides and rear under normal atmospheric conditions. At all other times, a red flag of cloth, synthetic or man-made material shall be so displayed.
(Code 1986, § 24-445)

State law reference—Similar provisions, T.C.A., § 55-9-405.

Sec. 24-446. Performance ability of lights.

(a) The headlights of every motor vehicle shall be so constructed, equipped, arranged, focused, aimed and adjusted that they will at all times mentioned in section 24-338(a) of this Code, and under normal atmospheric conditions and on a level road produce a driving light sufficient to render clearly discernible a person two hundred (200) feet ahead, but shall not project a glaring or dazzling light to persons in front of such headlights.

(b) Operation of headlights during periods of rain, as required in this section, shall be made during any time when rain, mist, or other precipitation, including snow, necessitates the constant use of windshield wipers by motorists. Notwithstanding any provision of the law to the contrary, any person who is arrested or receives a traffic citation for violation of the provisions of this paragraph of this section upon conviction shall not be fined more than the maximum fine nor less than the minimum fine as provided by law for such violation nor shall any cost be imposed or assessed against him. Such conviction shall not be reported to the department of safety under the provisions of sections 55-10-306 and 55-12-155, Tennessee Code Annotated. Notwithstanding any provision of the law to the contrary, any person who is convicted of a violation of the provisions of this subsection shall be punished by a fine of two dollars ($2.00).

(c) Whenever the road lighting equipment on a motor vehicle is so arranged that the driver may select at will between two (2) or more distributors of lights from headlights or lamps or auxiliary road lighting lamps or lights or combinations thereof, directed to different elevation, the following requirements shall apply while driving during the times when lights are required:

(1) When there is no oncoming vehicle within five hundred (500) feet, the driver shall use an upper distribution of light; provided, however, that, a lower distribution of light may be used when fog, dust, or other atmospheric conditions make it desirable for reasons of safety, and where there is sufficient light to render clearly discernible persons and vehicles on the highway at a distance of five hundred (500) feet ahead and when following another vehicle within five hundred (500) feet.

(2) When within five hundred (500) feet of an oncoming vehicle, a driver shall use a distribution of light so aimed that the glaring rays therefrom are not directed into the eyes of the oncoming driver.

(d) Whenever the motor vehicle is equipped with directional signal lights, they shall be operable.
(Code 1986, § 24-446)

State law reference—Similar provisions, T.C.A., §§ 55-9-406, 55-9-407.

Sec. 24-447. Emergency accessories for certain vehicles.

Every motor vehicle according to its type or character of operation as listed below, shall carry at all times the following emergency parts and accessories, which shall be in proper and effective working order and available for immediate use: On every bus, truck or truck tractor, except pickup trucks, at least one (1) fire extinguisher, of a type inspected and labeled by Underwriters' Laboratories, Incorporated, under classification B, and utilizing an extinguishing agent which does not need protection from freezing (minimum size, two (2) pound dry chemical type); one (1) red lantern, when projecting loads are carried; and one (1) red cloth flag, not less than twelve (12) inches square, when projecting loads are carried.
(Code 1986, § 24-447)

State law reference—Similar provisions, T.C.A., § 55-9-102.

Sec. 24-448. Vehicles injuring pavement not to be used on streets.

No vehicle, truck, engine or tractor of any kind, whether propelled by steam, gasoline or otherwise, shall be permitted to operate upon any street in the city which, either by reason of its weight or the character of its wheels, will materially injure the surface or foundation of such street, unless the owner or operator of such vehicle has complied with the rules and regulations prescribed by the state highway department relating to the use of highways by such vehicles.
(Code 1986, § 24-448)

Sec. 24-449. Mudguards required on certain vehicles.

(a) No person shall operate upon a public highway or street any motor vehicle, including a separate truck tractor (normally used in a tractor-trailer combination) or combination of vehicles having a carrying capacity in excess of three thousand (3,000) pounds, which motor vehicle or combination of vehicles is not equipped with rear fenders, mud flaps or mudguards which shall be of such size as will substantially prevent the projection of rocks, dirt, water or other substances to the rear. Such fenders, flaps or guards shall be of a type approved by the state commissioner of safety.

(b) This section shall have no application to farm vehicles or vehicles used by farmers to haul produce from farm to market, nor shall it apply to vehicles used exclusively for hauling logs.
(Code 1986, § 24-449)

State law reference—Similar provisions, T.C.A., § 55-9-212.

Sec. 24-450. Television, moving picture screens prohibited.

No television screen or other device of a similar nature shall be installed in a motor vehicle or used in any position or location where it may be visible to the driver or where it may in any other manner interfere with the safe operation and control of the vehicle. It shall be unlawful for any person to install or cause to be installed, a television screen or other device of a similar nature in violation of the provisions of this section or to operate upon the public highways or sell within this city any motor vehicle which has a television screen or other device of a similar nature installed or located in violation of the provisions of this section.
(Code 1986, § 24-450)

State law reference—Similar provisions, T.C.A., § 55-9-105.

Sec. 24-451. Tires; wheel assemblies.

Every motor vehicle shall be equipped with tires having a tread depth of not less than one-sixteenth (1/16) of an inch deep. The vehicle shall be equipped with tires on the same axle that are matched in nominal tire size designation, construction and profile. Tires shall be free from chunking, bumps, knots or bulges evidencing cord, ply or tread separation from the casting or other adjacent materials. Tire cords or belting materials shall not be exposed, either to the naked eye or when cuts or abrasions on the tire are probed. A fire rim, wheel disc, or spider shall have no visible cracks, elongated bolt holes, or indication of repair by welding. The lateral and radial runout of each rim bead area shall not exceed three-thirty-seconds (3/32) of an inch total runout.
(Code 1986, § 24-451)

Sec. 24-452. Rearview mirrors.

All motor vehicles shall be equipped with rearview mirrors that present a clear field of vision to the rear.
(Code 1986, § 24-452)

State law reference—Rearview mirrors required for trucks, T.C.A., § 55-9-206.

Sec. 24-453. Glass not to be defective.

No motor vehicle shall be equipped with windshield or door glass that is broken, cracked, discolored, or in any manner so defective as to obstruct or distort clear driver vision to the front, rear and sides.
(Code 1986, § 24-453)

Sec. 24-454. Operation of motor vehicle without adequate energy absorption system prohibited; alteration of altitude from ground level of passenger car prohibited; exceptions; enforcement; penalties.

(a) No person shall operate a motor vehicle on any road, street, or highway unless the vehicle is equipped with a bumper or other energy absorption system with an analogous function.

(b) No person shall operate a passenger vehicle, except a four-wheel drive recreational vehicle, of a type required to be registered under the laws of this state upon a public highway or street modified by reason of alteration of its altitude from the ground if its bumpers, measured to any point on a load-bearing member on the horizontal bumper bar, are not within the range of fourteen (14) inches to twenty-two (22) inches above the ground, except that no vehicle shall be modified to cause the vehicle body or chassis to come in contact with the ground or expose the fuel tank to damage from collision or cause the wheels to come in contact with the body under normal operation and that no part of the original suspension system shall be disconnected to defeat the safe operation of the suspension system; provided that, nothing contained in this section shall prevent the installation of heavy duty equipment to include shock absorbers and overload springs; and provided, further, that, nothing contained in this section shall prevent a person from operating a motor vehicle on a public highway with normal wear of the suspension system if normal wear does not affect the control of the vehicle. No person shall operate a four-wheel drive recreational vehicle of a type required to be registered under the laws of this state upon a public highway or street modified by reason of alteration of its altitude from the ground if its bumpers, measured to any point on a load-bearing member on the horizontal bumper bar, are not within the range of fourteen (14) inches to thirty-one (31) inches above the ground, except that no vehicle shall be modified to cause the vehicle body or chassis to come in contact with the ground or expose the fuel tank to damage from collision or cause the wheels to come in contact with the body under normal operation and that no part of the original suspension system shall be disconnected to defeat the safe operation of the suspension system; provided that, nothing contained in this section shall prevent the installation of heavy duty equipment to include shock absorbers and overload springs; and provided, further, that, nothing contained in this section shall prevent a person

from operating a motor vehicle on a public highway with normal wear of the suspension system if normal wear does not affect the control of the vehicle. In the case of a four-wheel drive vehicle where the thirty-one (31) inches limitation is exceeded, the vehicle will comply with this section if the vehicle is equipped with a drop bumper. Such a drop bumper must be bolted and welded to the frame of the vehicle and be made of a strength equal to a stock bumper.

(c) This section shall not apply to freight motor vehicles and/or other vehicles which have designs which would intrinsically preclude conformity with this provision. This section also shall not apply to any vehicle which has an unaltered and undamaged stock bumper or energy absorption system as supplied by the manufacturer of the vehicle.

(d) Any law enforcement officer charged with the enforcement of traffic laws and regulations may stop and inspect motor vehicles which appear to be operated in violation of this section. If, upon inspection, the vehicle is found to be in violation of this section, the operator shall be issued a citation stating the particulars of the violation and, in general, the repairs necessary to bring the vehicle into compliance with this section. The citation shall also state a time and place for appearance in a court of competent traffic jurisdiction, not less than fourteen (14) days from the date of the issuance of the citation.

(e) If, upon reinspection at such an appearance, the defect is found to have been corrected, or the vehicle is found to be in compliance with this section, no further penalties shall be assessed. If, however, the vehicle is found not to be in compliance with this section, the operator shall be fined not less than ten dollars ($10.00) nor more than twenty-five dollars ($25.00). Upon conviction of a second or subsequent offense involving the same vehicle shall be suspended until the defect has been corrected. The vehicle may, however, be operated for the purpose of traveling to and from an establishment or location where repairs are to be performed.

(f) Nothing in this section shall be construed to establish standards higher than those formulated by the United States department of transportation for bumpers on passenger motor vehicles sold within the United States.

(Code 1986, § 24-454)

State law reference—Similar provisions, T.C.A., § 55-9-215.

Sec. 24-455. Windshield or safety goggles for the protection of operators and passengers.

Every motorcycle or motor-driven cycle operated upon any street of the city shall be equipped with a windshield of a type approved by the state commissioner of safety or, in the alternative, the operator and any passenger on any such motorcycle or motor-driven cycle shall be required to wear safety goggles of a type approved by the state commissioner of safety for the purpose of preventing any flying object from striking the operator or any passenger in the eyes.

(Code 1986, § 24-455)

State law reference—Similar provisions, T.C.A., § 55-9-304.

Sec. 24-456. Rearview mirror, footrests and handlebars on motorcycles and motor-driven cycles.

(a) All motorcycles and motor-driven cycles operated upon the streets of this city shall be equipped with a rearview mirror and securely attached footrests for the operators and passengers.

(b) No person shall operate any motorcycle with handlebars more than fifteen (15) inches in height above that portion of the seat occupied by the operator.

(Code 1986, § 24-456)

Sec. 24-457. Operation of improper vehicles.

No vehicle, truck, engine, or tractor of any kind, whether such vehicle be propelled by steam, gasoline, or otherwise, shall be permitted to operate upon any street, road, highway, or other public thoroughfare within the city which, either by reason of its weight or the character of its wheels, will materially injure the surface or foundation of such street, road, highway, public thoroughfare, including the bridges thereon, unless otherwise authorized by permit or approval from the Transportation Department.
(Ord. No. 9902, § 1, 7-13-93)

Secs. 24-458—24-470. Reserved.

ARTICLE XIII. BICYCLES*

Sec. 24-471. Responsibility of parents for children's violations.

The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this article.
(Code 1986, § 24-471)

State law reference—Similar provisions, T.C.A., § 55-8-171(b).

Sec. 24-472. Applicability of regulations.

These regulations applicable to bicycles shall apply whenever a bicycle is operated upon any path set aside for the exclusive use of bicycles, subject to those exemptions stated in this chapter.
(Code 1986, § 24-472)

State law reference—Similar provisions, T.C.A., § 55-8-171(c).

Sec. 24-473. Riders subject to vehicle regulations.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this chapter, except as to special regulations in this article and except as to those provisions of this chapter which, by their nature, can have no application.
(Code 1986, § 24-473)

State law reference—For similar provisions, see T.C.A., § 55-8-172.

Sec. 24-474. Riders to ride on permanent seats.

A person propelling a bicycle shall not ride other than upon or astride a permanent and regular seat attached thereto, except for a certified police cyclist who is performing duties that require riding in a side dismounting position.
(Code 1986, § 24-474; Ord. No. 12281, § 1, 9-1-09)

State law reference—For similar provisions, see T.C.A., § 55-8-173(a).

Sec. 24-475. Number of passengers.

No bicycle shall be used to carry more persons at one (1) time than the number for which it is designed and equipped.
(Code 1986, § 24-475)

State law reference—Similar provisions, T.C.A., § 55-8-173(b).

***State law reference—**Bicycles generally, T.C.A., §§ 55-8-171—55-8-177.

Sec. 24-476. Duty to keep to right, exercise care.

Any person operating a bicycle upon a roadway at less than the normal speed of traffic at the time and place and under the conditions then existing shall ride as close as practicable to the right-hand curb or edge of the roadway, except under any of the following situations:

(a) When overtaking and passing another vehicle proceeding in the same direction;

(b) When preparing for a left turn at an intersection or into a private road or driveway; or

(c) When reasonably necessary to avoid conditions including, but not limited to, fixed or moving objects, parked or moving vehicles, pedestrians, animals, surface hazards, or substandard width lanes that make it unsafe to continue along the right-hand curb or edge. For purposes of this section, "substandard width lane" means a lane that is too narrow for a bicycle and another vehicle to travel safely side by side within the lane.

This Section does not apply to a certified police cyclist engaged in the lawful performance of duty relating to traffic control.
(Code 1986, § 24-476; Ord. No. 12281, § 2, 9-1-09)

State law reference—Similar provisions, T.C.A., § 55-8-175(a).

Sec. 24-477. Riding abreast.

Persons riding bicycles upon a roadway shall not ride more than two (2) abreast except on paths or parts of roadways set aside for the exclusive use of bicycles. Persons riding two (2) abreast shall not impede the normal and reasonable movement of traffic and, on a laned roadway, shall ride within a single lane. This Section does not apply to a certified police cyclist engaged in the lawful performance of duty relating to traffic control or in pursuit of an actual or suspected violator of the law.
(Code 1986, § 24-477; Ord. No. 12281, § 3, 9-1-09)

State law reference—Similar provisions, T.C.A., § 55-8-175(b).

Sec. 24-478. Reserved.
(Code 1986, § 24-478; Ord. No. 12821, § 2, 3-25-14)

Sec. 24-479. Carrying articles on bicycles.

No person operating a bicycle shall carry any package, bundle or article which prevents the driver from keeping at least one (1) hand upon the handlebars.
(Code 1986, § 24-479)

State law reference—Similar provisions, T.C.A., § 55-8-176.

Sec. 24-480. Lights and reflectors.

Every bicycle, when in use at nighttime, shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred (500) feet to the front and with a red reflector on the rear, of a type approved by the department, which shall be visible from all distances from fifty (50) feet to three hundred (300) feet to the rear when directly in front of lawful upper beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred (500) feet to the rear may be used in addition to the red reflector.
(Code 1986, § 24-480)

State law reference—Similar provisions, T.C.A., § 55-8-177(a).

Sec. 24-481. Bell or other warning device required.

No person shall operate a bicycle unless it is equipped with a bell or other device capable of giving a signal audible for a distance of at least one hundred (100) feet, except that a bicycle shall not be equipped with nor shall any person use upon a bicycle any siren or whistle.
(Code 1986, § 24-481)

Sec. 24-482. Brakes.

Every bicycle shall be equipped with a brake or brakes which will enable the its driver to stop the bicycle within twenty-five (25) feet from a speed of ten (10) miles per hour on dry, level, clean pavement.
(Code 1986, § 24-482; Ord. No. 12281, § 4, 9-1-09)

State law reference—Similar provisions, T.C.A., § 55-8-177(b).

Sec. 24-483. Overtaking and Passing Bicycles.

The operator of a motor vehicle, when overtaking and passing a bicycle proceeding in the same direction on the roadway, shall leave a safe distance between the motor vehicle and the bicycle of not less than three (3) feet and shall maintain the clearance until safely past the overtaken bicycle.
(Ord. No. 12281, § 5, 9-1-09)

State law reference—Similar provisions, T.C.A., § 55-8-175(c).

Secs. 24-484—24-500. Reserved.

ARTICLE XIV. SCHEDULES

Sec. 24-501. Schedule I—Through streets designated.

In accordance with the provisions of section 24-207 of this Code, the following streets and parts of streets are hereby designated as through streets:

Access Road, from Hixson Pike to State Route 153.

Adams Road, from Hixson Pike to approximately fifteen hundred (1,500) feet north of Crescent Club Road.

Addison Road, from Harrison Pike to Bonny Oaks Drive.

Airport Connector, from Airport Road to Shepherd Road.

Airport Road, from Lee Highway to Shallowford Road.

Alton Park Boulevard, from South Market Street to Fortieth Street.

Amnicola Highway, from Riverside Drive to State Route 153.

Ashland Terrace, from Hixson Pike to the city limits.

Bailey Avenue, from Central Avenue to Dodds Avenue.

Barton Avenue, from Hixson Pike to Veteran's Bridge.

Bonny Oaks Drive, from New York Avenue to Interstate 75.

Bonny Oaks Drive, from the city limits to Lee Highway.

Boy Scout Road, from Dayton Boulevard to the Southern Railroad.

Brainerd Road, from McCallie Avenue Tunnel to its intersection with East Brainerd Road.

Broad Street, from Main Street to Cummings Highway.

Brown's Ferry Road, from Cummings Highway to Boydston Road.

Campbell Street, from Glass Street to New York Avenue.

Cassandra Smith Road, from Hamill Road to Hixson Pike.

Central Avenue, from East Third Street to Rossville Boulevard.

Chamberlain Avenue, north, from Citico Avenue to Glass Street.

Champion Road, from Highway 58 to the city limits.

Cherokee Boulevard, from North Market Street to the city limits.

Cromwell Road, from Shallowford Road to Jersey Pike.

Cummings Highway, from Broad Street to the city limits.

Cummings Highway, from Lookout Creek to the city limits.

Dallas Road, from Market Street North to Mississippi Avenue West.

Dayton Boulevard, from Gadd Road to Boy Scout Road.

Derby Street, from Third Street to Citico Avenue.

Dodds Avenue, from McCallie Avenue to Thirty-Seventh Street.

Dodson Avenue, from Third Street to Glass Street.

Dodson Avenue, from Wilder Street to Harrison Pike.

Dupont Parkway, from State Route 153 to the intersection with Amnicola Highway.

East Brainerd Road, from Brainerd Road to the city limits.

East Martin Luther King Jr. Boulevard, from Market Street to Central Avenue.

Elder Mountain Road, from Brown's Ferry Road to the city limits.

Fairview Road, from Gann Store Road to the city limits.

Gadd Road, from Delashmitt Road to School Drive.

Glenwood Drive, from Third Street to McCallie Avenue.

Gray Road, from Igou Gap Road to Jenkins Road.

Graysville Road, from East Brainerd Road to the city limits.

Grubb Road, from State Route 153 to School Drive.

Gunbarrel Road, from Brainerd Road to Standifer Gap Road (North Leg).

Hamill Road, from Hixson Pike to Cassandra Smith Road.

Hamilton Place Boulevard-Napier Drive, from Shallowford Road to Franks Road.

Harrison Pike, from Dodson Avenue to Addison Road.

Hickory Valley Road, from East Brainerd Road to the city limits.

Highway 58, from Bonny Oaks Drive to the city limits.

Hixson Pike, from Dartmouth Street the city limits.

Holtzclaw Avenue, from Wilcox Boulevard to Twenty-Third Street.

Igou Gap Road, from Gunbarrel Road to Gray Road.

Igou Gap Road, from Jenkins Road to Morris Hill Road.

Jenkins Road, from East Brainerd Road to Standifer Gap Road.

Jersey Pike, from Oakwood Drive to Highway 58.

Jersey Pike, from Shallowford Road to Hancock Road.

Lake Resort Drive, from Access Road to Gann Store Road.

Lee Highway, from East Brainerd Road to the Interstate 75 off ramp.

Lower Mill Road, from Grubb Road to Middle Valley Road.

McCallie Avenue, from Central Avenue to McCallie Avenue Tunnel.

Main Street, from Broad Street to Dodds Avenue.

Manufacturers Road, from Cherokee Boulevard to U.S. Highway 27.

Manufacturers Road, from State Route 27 Spur to Moccasin Bend Road.

Market Street North, from Manning Street to Dallas Road.

Market Street South, from Main Street to Alton Park Boulevard.

Middle Valley Road, from Hixson Pike to the city limits.

Midland Pike, between Moore Road and Talley Road.

Moccasin Bend Road, from Riverside Avenue (South Leg) to Moccasin Bend Psychiatric Hospital.

Moccasin Bend Road, from Manufacturers Road to Old Moccasin Bend Road.

Morris Hill Road, from Shallowford Road to East Brainerd Road.

Mountain Creek Road, from Signal Mountain Boulevard to Reeds Lake Road.

New York Avenue, from Bonny Oaks Drive to Amnicola Highway.

Norcross Road, from Ashland Terrace to Gadd Road.

North Concord Road, from East Brainerd Road to relocated Igou Gap Road.

North Moore Road, from Brainerd Road to Shallowford Road.

North Terrace, from Spring Creek Road to Germantown Road.

Ochs Highway, from Guild Trail to the City limits.

Old Lee Highway, from Interstate 75 to the city limits.

Pineville Road, from Riverside Avenue (South Leg) to the city limits.

Riverfront Parkway, from Broad Street to Interstate 24 (east of Superspun Avenue).

Riverside Drive, from Wilder Street to Broad Street.

Rossville Avenue, from Main Street to Central Avenue.

Rossville Boulevard, from Central Avenue to Forty-Seventh Street.

Shallowford Road, from Wilcox Boulevard to Morris Hill Road.

Shepherd Road, from Airport Connector to State Route 153.

Shepherd Road, from Shallowford Road to West Shepherd Road.

Shepherd Road West, from Shepherd Road on the north end to Shepherd Road on the south end.

Signal Mountain Boulevard, from Glendale Drive to the city limits of the City of Chattanooga and Signal Mountain.

Signal Mountain Road, from the city limits of the City of Chattanooga and Red Bank to Glendale Drive.

South Access Road, from Bonny Oaks Drive to Amnicola Highway.

South Moore Road, from Brainerd Road to South Terrace.

South Terrace, from Germantown Road to Spring Creek Road.

St. Elmo Avenue, from Ochs Highway to the city limits.

Standifer Gap Road, from Gunbarrel Road to the city limits.

Standifer Gap Road, from Shallowford Road to Gunbarrel Road.

State Route 153, from Interstate 75 to Dayton Boulevard.

Suck Creek Road, from Signal Mountain Road to the city limits.

Third Street, from Central Avenue to Glenwood Drive.

Thirty-Eighth Street, from Alton Park Boulevard to Thirty-Seventh Street.

Thirty-Seventh Street, from Rossville Boulevard to Thirty-Eighth Street.

Tunnel Boulevard, from Wilcox Boulevard to New York Avenue.

Twentieth Street, from Washington Street to Interstate 124 (east of Superspun Avenue).

Twenty-Third Street, from Washington Street to Dodds Avenue.

Tyner Road, from Hickory Valley Road to Lee Highway.

U.S. Route 11, from Cummings Highway to the city limits.

Veteran's Bridge, from Barton Avenue to 4th Street.

Walker Road, from Lee Highway to Standifer Gap Road.

Washington Street, from Rossville Boulevard to Twenty-Third Street.

Wauhatchie Pike, from Cummings Highway to the city limits.

West Martin Luther King Jr. Boulevard, from Riverfront Parkway to Market Street.

Westside Drive, from Dodds Avenue to Bachman Tunnel.

Wilcox Boulevard, from Wilcox Tunnel eastwardly to Shallowford Road.

Wilcox Boulevard, from Wilcox Tunnel westwardly to Riverside Drive.

Wilhoit Street, from Rossville Boulevard to Main Street.

(Ord. No. 5965, § 1, 10-29-68; Ord. No. 6004, § 1, 2-4-69; Ord. No. 6126, § 1, 1-27-70; Ord. No. 6219, § 1, 9-22-70; Ord. No. 6312, § 1, 7-6-71; Ord. No. 6404, § 1, 2-8-72; Ord. No. 6495, § 1, 9-19-72; Ord. No. 6536, § 1, 12-12-72; Ord. No. 6642, § 2, 7-24-73; Ord. No. 6841, § 1, 1-21-75; Ord. No. 7050, § 2, 6-8-76; Ord. No. 7141, § 2, 2-8-77; Ord. No. 7277, § 1, 10-4-77; Ord. No. 7425, § 1, 9-12-78; Ord. No. 7846, § 1, 5-26-81; Ord. No. 7957, § 1, 3-2-82; Ord. No. 8120, § 1, 3-29-83; Ord. No. 8181, § 1, 8-9-83; Ord. No. 8549, § 1, 10-29-85; Code 1986, § 24-501; Ord. No. 8812, § 3, 7-21-87; Ord. No. 9313, § 1,

1-23-90; Ord. No. 9818, § 1, 12-15-92; Ord. No. 9878, § 1, 5-11-93; Ord. No. 10081, § 1, 8-9-94; Ord. No. 10154, § 1, 1-3-95; Ord. No. 10168, § 1, 2-21-95; Ord. No. 10910, § 1, 9-21-99; Ord. No. 13038, § 2, 4-12-16; Ord. No. 13532, § 1, 2-4-20)

Editor's note—Ordinances listed in the history note at the end of § 24-501 are those which either affected the entire schedule, added entries which were subsequently repealed, or repealed entries which no longer appear in the schedule.

Sec. 24-502. Schedule II—Speed on through streets.

In accordance with the provisions of sections 24-241 through 24-245 of this Code, the maximum speed on the through streets designated by Schedule I is as follows:

Access Road, Forty (40) miles per hour from Hixson Pike to Memphis Drive.

Access Road, Fifty (50) miles per hour from Memphis Drive to State Route 153.

Adams Road, Forty (40) miles per hour from Hixson Pike to approximately one thousand five hundred (1,500) feet north of Crescent Club Road.

Addison Road, Thirty-five (35) miles per hour from Harrison Pike to Bonny Oaks Drive.

Airport Connector, Thirty-five (35) miles per hour from Airport Road to Shepherd Road.

Airport Road, Thirty-five (35) miles per hour from Lee Highway to Airport Connector.

Airport Road, Forty (40) miles per hour from Airport Connector to two thousand one hundred fifty (2,150) feet north of Chickamauga Loop (North Leg).

Airport Road, Forty-five (45) miles per hour from approximately two thousand one hundred fifty (2,150) feet north of Chickamauga Loop (North Leg) to Shallowford Road.

Alton Park Boulevard, Thirty-five (35) miles per hour from the intersection of South Market Street and Alton Park Boulevard to Fortieth Street.

Amnicola Highway, Forty-five (45) miles per hour from State Route 153 to two thousand five hundred (2,500) feet south of South Access Road.

Amnicola Highway, Fifty (50) miles per hour from two thousand five hundred (2,500) feet south of South Access Road to Riverside Drive.

Ashland Terrace, Forty (40) miles per hour from Hixson Pike to the city limits.

Bailey Avenue, Thirty (30) miles per hour from Central Avenue to Dodds Avenue.

Barton Avenue, Thirty-five (35) miles per hour from Veteran's Bridge to Hixson Pike.

Bonny Oaks Drive, Forty-five (45) miles per hour from Parkway Drive to State Route 153.

Bonny Oaks Drive, Fifty (50) miles per hour from the city limits to Lee Highway.

Bonny Oaks Drive, Forty-five (45) miles per hour from Parkway drive to Boriss Drive.

Bonny Oaks Drive, Fifty (50) miles per hour from Boriss Drive to four hundred (400) feet west of Silverdale Road.

Bonny Oaks Drive, Forty-five (45) miles per hour from four hundred (400) feet west of Silverdale to Old Lee Highway.

Bonny Oaks Drive, Thirty-five (35) from New York Avenue to Parkway Drive.

Boy Scout Road, Thirty-five (35) miles per hour from Dayton Boulevard to the Southern Railroad.

Brainerd Road, Thirty-five (35) miles per hour from McCallie Avenue Tunnel to Belvoir Avenue, and forty (40) miles per hour from Belvoir Avenue to its intersection with East Brainerd Road.

Brainerd Road, Thirty (30) miles per hour from McCallie Avenue Tunnel to North Germantown Road, thirty-five (35) miles per hour from North Germantown Road to Belvoir Avenue, and forty (40) miles per hour from Belvoir Avenue to its intersection with East Brainerd Road.

Broad Street South, Thirty-five (35) miles per hour from Main Street to Cummings Highway.

Brown's Ferry Road, Forty (40) miles per hour from Cummings Highway to Boydston Road.

Campbell Street, Thirty-five (35) from Glass Street to New York Avenue.

Cassandra Smith Road, Thirty-five (35) miles per hour from Hamill Road to Hixson Pike.

Central Avenue, Thirty-five (35) miles per hour from East Eleventh Street to Rossville Boulevard.

Champion Road, Forty (40) miles per hour from Highway 58 to the city limits.

Cherokee Boulevard, Thirty-five (35) miles per hour from North Market Street to the City limits.

Cromwell Road, Forty (40) miles per hour from Shallowford Road to Jersey Pike.

Cummings Highway, Thirty-five (35) miles per hour from Broad Street South to the city limits.

Cummings Highway, Forty-five (45) miles per hour from Lookout Creek to the city limits.

Dallas Road, Thirty-five (35) miles per hour from Market Street North to Mississippi Avenue West.

Dayton Boulevard, Forty-five (45) miles per hour from Gadd Road to LaPorte Drive.

Dayton Boulevard, Fifty (50) miles per hour from LaPorte Drive to Boy Scout Road.

Discovery Drive, Forty-five (45) miles per hour from Hickory Valley Road to Volkswagen Drive.

Dodds Avenue, Thirty-five (35) miles per hour from McCallie Avenue to Thirty-Seventh Street.

Dupont Parkway, Fifty (50) miles per hour from State Route 153 to the south end of the C. B. Robinson Bridge.

Dupont Parkway, Forty (40) miles per hour from the south end of the C. B. Robinson Bridge to the intersection with Amnicola Highway.

East Brainerd Road, Thirty-five (35) miles per hour from Brainerd Road to Central Drive.

East Brainerd Road, Forty (40) miles per hour from Central Drive to Jenkins Road.

East Brainerd Road, Forty (40) miles per hour from Gray Drive to the city limits.

East Brainerd Road, Thirty-five (35) miles per hour from Jenkins Road to Gray Drive.

East Martin Luther King Jr. Boulevard, Twenty-five (25) miles per hour from Georgia Avenue to Central Avenue.

Elder Mountain Road, Thirty-five (35) miles per hour from Brown's Ferry Road to Isbill Road.

Elder Mountain Road, Forty (40) miles per hour from Isbill Road to the city limits.

Fairview Road, Thirty-five (35) miles per hour from Hamill Road to the city limits.

Gadd Road, Forty (40) miles per hour from Delashmitt Road to State Route 153.

Gadd Road, Thirty-five (35) miles per hour from State Route 153 to School Drive.

Glenwood Drive, Thirty (30) miles per hour from Third Street to McCallie Avenue.

Gray Road, Thirty-five (35) miles per hour from Igou Gap Road to Jenkins Road.

Graysville Road, Thirty (30) miles per hour from the Tennessee state line to the intersection of Graysville Road and East Brainerd Road.

Grubb Road, Thirty-five (35) miles per hour from State Route 153 to School Drive.

Gunbarrel Road, Thirty-five (35) miles per hour from Shallowford Road to Standifer Gap Road. (North Leg).

Gunbarrel Road, Forty (40) miles per hour from East Brainerd Road to Shallowford Road.

Hamill Road, Thirty-five (35) miles per hour from Hixson Pike to Cassandra Smith Road.

Hamilton Place Boulevard-Napier Drive, Thirty-five (35) miles per hour from Shallowford Road to Franks Road.

Harrison Pike, Thirty-five (35) miles per hour from Dodson Avenue to Addison Road.

Hickory Valley Road, Thirty-five (35) miles per hour from Tyner Road to the city limits.

Hickory Valley Road, Forty-five (45) miles per hour East Brainerd Road to Lee Highway.

Highway 58, Forty (40) miles per hour from Bonny Oaks Drive to Oakwood Drive.

Highway 58, Forty-five (45) miles per hour from Oakwood Drive to Eller Road.

Highway 58, Fifty-five (55) miles per hour from Eller Road to the city limits.

Hixson Pike, Thirty-five (35) miles per hour from Barton Avenue to Dartmouth Street.

Hixson Pike, Forty-five (45) miles per hour from Adams Road to city limits.

Hixson Pike, Forty (40) miles per hour from Dartmouth Street to Adams Road.

Hixon Pike, Thirty-five (35), miles per hour from Barton Avenue to Lupton Drive and forty (40) miles per hour from Lupton Dive to Adams Road.

Holtzclaw Avenue, Forty-five (45) miles per hour from Wilcox Boulevard to Third Street.

Holtzclaw Avenue, Forty (40) miles per hour from Third Street to Twenty-Third Street.

Igou Gap Road, Thirty-five (35) miles per hour from Gunbarrel Road to Gray Road.

Igou Gap Road, Thirty-five (35) miles per hour from Jenkins Road to Morris Hill Road.

Jenkins Road, Thirty-five (35) miles per hour from East Brainerd Road to Standifer Gap Road.

Jersey Pike, Thirty-five (35) miles per hour from Shallowford Road to Bonny Lake Lane.

Lake Resort Drive, Forty-five (45) miles per hour from Access Road to Gann Store Road.

Lee Highway, Forty (40) miles per hour from East Brainerd Road to McCutcheon Road.

Lee Highway, Forty-five (45) miles per hour from Bonny Oaks Drive to the Interstate 75 off ramp.

Lee Highway, Forty-five (45) miles per hour from McCutcheon Road to Bonny Oaks Drive.

Lower Mill Road, Thirty-five (35) miles per hour from Grubb Road to Middle Valley Road.

Lupton Drive, Thirty-five (35) miles per hour from Hixson Pike to the city limits.

Manufacturers Road, Thirty (30) miles per hour from Cherokee Boulevard to U.S. Highway 27.

Manufacturers Road, Forty (40) miles per hour from State Route 27 to Moccasin Bend Road.

Main Street, Thirty (30) miles per hour from Broad Street to Central Avenue.

Main Street, Thirty-five (35) miles per hour from Central Avenue to Dodds Avenue.

Market Street South, Thirty-five (35) miles per hour from Main Street to Alton Park Boulevard.

McCallie Avenue, Twenty-five (25) miles per hour from Central Avenue to Georgia Avenue and thirty-five (35) miles per hour from the eastern side of McCallie Avenue Tunnel to Central Avenue.

McCallie Avenue, Thirty (30) miles per hour from Dodds Avenue Overpass to Brainerd Road.

Middle Valley Road, Forty (40) miles per hour from Hixson Pike to the city limits.

Midland Pike, Thirty (30) miles per hour between Moore Road and Talley Road.

Moccasin Bend Road, Forty-five (45) miles per hour from Riverside Avenue (South Leg) to a point approximately 2100 feet north of Moccasin Bend Psychiatric Hospital.

Moccasin Bend Road, Thirty-five (35) miles per hour from a point approximately two thousand one hundred (2,100) feet north of Moccasin Bend Psychiatric Hospital to Moccasin Bend Psychiatric Hospital.

Moccasin Bend Road, Forty-five (45) miles per hour from Manufacturers Road to Old Moccasin Bend Road.

Morris Hill Road, Forty (40) miles per hour from Shallowford Road to East Brainerd Road.

Mountain Creek Road, Thirty-five (35) miles per hour from Signal Mountain Boulevard to Morrison Springs Road.

Mountain Creek Road, Forty (40) miles per hour from Morrison Springs Road to Reeds Lake Road.

New York Avenue, Thirty-five (35) miles per hour from Tunnel Boulevard to Bonny Oaks Drive.

Norcross Road, Thirty-Five (35) miles per hour from Ashland Terrace to Gadd Road.

North Concord Road, Thirty-five (35) miles per hour from East Brainerd Road to relocated Igou Gap Road.

North Market Street, Thirty-five (35) miles per hour from Manning Street to Dallas Road.

North Moore Road, Thirty-five (35) miles per hour from Brainerd Road to Shallowford Road.

North Terrace, Forty-five (45) miles per hour from Spring Creek Road to Germantown Road.

Ochs Highway, Thirty-five (35) miles per hour from Guild Trail to the City limits.

Old Lee Highway, Forty-five (45) miles per hour from Lee Highway to the city limits.

Pineville Road, Thirty-five (35) miles per hour from Riverside Avenue (South Leg) to the city limits.

Riverfront Parkway, Forty (40) miles per hour from the Olgiati Bridge to Highway 27 (East of Superspun Avenue).

Riverside Drive, Thirty-five (35) miles per hour from Wilder Street to Amnicola Highway.

Riverside Drive, Fifty (50) miles per hour from Amnicola Highway to the Mabel Street overpass.

Riverside Drive, Forty (40) miles per hour from the Mabel Street overpass to the Walnut Street Bridge.

Riverside Drive, Forty (40) miles per hour from the Mabel Street overpass to the Veterans Bridge overpass.

Riverside Drive, Thirty-five (35) miles per hour from the Veterans Bridge overpass to Aquarium Way.

Riverside Drive/Riverfront Parkway, Forty (40) miles per hour from the Walnut Street Bridge to the Olgiati Bridge except when yellow lights are flashing, at which time it shall be thirty (30) miles per hour.

Riverside Drive/Riverfront Parkway, Thirty (30) miles per hour from the Aquarium Way to the Olgiati Bridge.

Rossville Boulevard, Forty (40) miles per hour from Central Avenue to Forty-Seventh Street.

Shallowford Road, Twenty (20) miles per hour from a point five hundred forty (540) feet west of the center line of North Crest Road to a point three hundred sixty-five (365) feet east of the center line of North Crest Road.

Shallowford Road, Forty (40) miles per hour from Lee Highway to Morris Hill Road.

Shallowford Road, Forty (40) miles per hour from Wilcox Boulevard to South Chickamauga Creek.

Shallowford Road, Forty-five (45) miles per hour from Chickamauga Creek to Lee Highway.

Shepherd Road, Thirty-five (35) miles per hour from Shallowford Road to West Shepherd Road.

Shepherd Road, Forty (40) miles per hour from Airport Connector to State Route 153.

Shepherd Road, Thirty-five (35) miles per hour from Airport Connector to Shaw Avenue.

Signal Mountain Boulevard, Forty (40) miles per hour from Glendale Drive to the city limits of the City of Chattanooga and Signal Mountain.

Signal Mountain Road, Forty-five (45) miles per hour from the city limits of the City of Chattanooga and Red Bank to Suck Creek Road.

Signal Mountain Road, Forty (40) miles per hour from Suck Creek Road to Glendale Drive.

South Access Road, Forty (40) miles per hour from Bonny Oaks Drive to Amnicola Highway.

South Moore Road, Thirty-five (35) miles per hour from Brainerd Road to South Terrace.

South Terrace, Forty-five (45) miles per hour from Germantown Road to Spring Creek Road.

St. Elmo Avenue, Thirty (30) miles per hour from Ochs Highway to the city limits.

St. Elmo Avenue, Twenty-five (25) miles per hour from W 40th Street to the city limits.

Standifer Gap Road, Thirty-five (35) miles per hour from Gunbarrel Road to the city limits.

Standifer Gap Road, Thirty-five (35) miles per hour from Shallowford Road to Gunbarrel Road.

State Route 153, Fifty-five (55) miles per hour from Interstate 75 to Dupont Parkway.

State Route 153, Forty-five (45) miles per hour from Dupont Parkway to Grubb Road.

State Route 153, Fifty (50) miles per hour from Grubb Road to Dodson Road.

State Route 153, Fifty-five (55) miles per hour from Dodson Road to Dayton Boulevard.

Suck Creek Road, Forty-five (45) miles per hour from Signal Mountain Road to the city limits.

Tennessee Avenue, Twenty-five (25) miles per hour from St. Elmo Avenue to West Thirty-Seventh Street.

Third Street, Thirty-five (35) miles per hour from Central Avenue to Glenwood Drive.

Thirty-Seventh Street, Thirty-five (35) miles per hour from Rossville Boulevard to Thirty-Eighth Street.

Twentieth Street, Forty (40) miles per hour from Washington Street to Interstate 124 (East of Superspun Avenue).

Twenty-Third Street, Thirty-five (35) miles per hour from Fourth Avenue-Kelly Street to Dodds Avenue.

Twenty-Third Street, Forty (40) miles per hour from Washington Street to Fourth Avenue-Kelly Street.

Tyner Road, Thirty-five (35) miles per hour from Hickory Valley Road to Lee Highway.

U.S. Route 11, Fifty (50) miles per hour from Cummings Highway to the city limits.

Veteran's Bridge, Forty (40) miles per hour from five hundred (500) feet north of 4th Street to Barton Avenue.

Volkswagen Drive, Forty-five (45) miles per hour from Bonny Oaks Drive to 1 mile north of Discovery Drive.

Volkswagen Drive, Fifty (50) miles per hour from one (1) mile north of Discovery Drive to Interstate 75.

Walker Road, Thirty-five (35) miles per hour from Lee Highway to Standifer Gap Road.

Washington Street, Forty (40) miles per hour from 20th Street to Twenty-Third Street.

Wauhatchie Pike, Forty-five (45) miles per hour from Cummings Highway to the city limits.

Westside Drive, Thirty-five (35) miles per hour from Dodds Avenue to Bachman Tunnel.

Wilcox Boulevard, Forty (40) miles per hour from Wilcox Tunnel eastwardly to Shallowford Road.

Wilcox Boulevard, Thirty-five (35) miles per hour from Wilcox Tunnel westwardly to Riverside Drive.

Workman Road, Forty (40) miles per hour between Rossville Boulevard and Central Avenue.

(Ord. No. 5966, § 1, 10-29-68; Ord. No. 6004, § 2, 2-4-69; Ord. No. 6219, § 2, 9-22-70; Ord. No. 6125, § 1, 1-27-70; Ord. No. 6312, § 2, 7-6-71; Ord. No. 6374, § 1, 1-25-72; Ord. No. 6405, § 1, 2-8-72; Ord. No. 6495, § 1, 9-19-72; Ord. No. 6496, § 1, 9-19-72; Ord. No. 6532, § 1, 12-5-72; Ord. No. 6535, § 1, 12-12-72; Ord. No. 6669, § 1, 10-9-73; Ord. No. 6841, § 2, 1-21-75; Ord. No. 6851, § 1, 2-11-75; Ord. No. 7050, § 4, 6-8-76; Ord. No. 7141, § 4, 2-8-77; Ord. No. 7277, § 2, 10-4-77; Ord. No. 7425, § 2, 9-12-78; Ord. No. 7846, § 2, 5-26-81; Ord. No. 7957, § 2, 3-2-82; Ord. No. 8181, § 2, 8-9-83; Ord. No. 8120, § 2, 3-29-83; Ord. No. 8327, § 1, 7-17-84; Ord. No. 8374, §§ 1, 2, 10-23-84; Ord. No. 8549, § 2, 10-29-85; Code 1986, § 24-502; Ord. No. 8812, §§ 1, 3, 7-21-87; Ord. No. 9278, § 1, 12-12-89; Ord. No. 9313, §§ 2, 3, 1-23-90; Ord. No. 9710, § 1, 5-5-92; Ord. No. 9818, § 2, 12-15-92; Ord. No. 9878, § 2, 5-11-93; Ord. No. 10081, § 2, 8-9-94; Ord. No. 10154, § 2, 1-3-95; Ord. No. 10168, § 2, 2-21-95; Ord. No. 10207, § 1, 4-18-95; Ord. No. 10509, § 1, 12-3-96; Ord. No. 10910, § 2, 9-21-99; Ord. No. 11986, § 1, 6-26-07; Ord. No. 12450, § 1, 11-20-10; Ord. No. 12474, § 1, 2-8-11; Ord. No. 12572, § 1, 3-13-12; Ord. No. 12690, § 1, 2-12-13; Ord. No. 12752, § 1, 8-20-13; Ord. No. 13038, § 3, 4-12-16; Ord. No. 13443, § 1, 3-12-19; Ord. No. 13532, § 2, 2-4-20; Ord. No. 13658, § 1, 3-30-21; Ord. No. 13702, § 1, 8-17-21; Ord. No. 14228, § 1, 5-6-25; Ord. No. 14312, § 1, 1-13-26; Ord. No. 14333, § 1, 3-10-26)

Editor's note—Ordinances listed in the history note at the end of § 24-502 are those which either affected the entire schedule, added entries which were subsequently repealed, or repealed entries which no longer appear in the schedule.

Sec. 24-503. Schedule III—Interstate highway maximum and minimum speed limits.

(a) *Interstate Highway I-24—eastbound:* No person shall operate any motor-driven vehicle at a speed greater than fifty-five (55) miles per hour nor less than forty-five (45) miles per hour upon Interstate Highway I-24 from a point two-tenths (0.2) mile west of its junction with Interstate Highway I-25 eastwardly to a point five hundred (500) feet east of and parallel to the east line of South Crest Road, the city limits; provided that trucks may be operated at a speed less than forty-five (45) miles per hour from a point beginning with the entrance ramp from State Highway 8 to such I-24 eastwardly to a point five hundred (500) feet east of and parallel to the east line of South Crest Road, the city limits, in the extreme right-hand lane of such I-24.

(b) *Interstate Highway I-24—westbound:* No person shall operate any motor-driven vehicle at a speed greater than fifty-five (55) miles per hour nor less than forty-five (45) miles per hour upon Interstate Highway I-24 from a point two-tenths (0.2) mile east of the bridge carrying such interstate highway across Germantown Road westwardly to the city limits, the center line of such Germantown Road, and from the city limits on the east, a point five hundred (500) feet east of and parallel to the east line of South Crest

Road, westwardly to a point on Interstate Highway I-24, one-tenth (0.1) of a mile west of its junction Interstate Highway I-124; provided that trucks may be operated at a speed less than forty-five (45) miles per hour from the eastern city limits to a point five hundred (500) feet east of and parallel to the east line of South Crest Road to the crest of Missionary Ridge on Interstate Highway I-24 in the extreme right-hand lane of such highway.

(c) *Interstate Highway I-124 and State Route 27 Spur—northbound:* No person shall operate any motor-driven vehicle at a speed greater than fifty-five (55) miles per hour nor less than forty-five (45) miles per hour upon Interstate Highway I-124 from its junction with Interstate Highway I-24 to the south end of the Olgiati Bridge and thereafter on State Route 27 Spur, beginning at the south end of the Olgiati Bridge and extending northwardly to the city limits.

(d) *Interstate Highway I-124 and State Route 27 Spur—southbound:* No person shall operate any motor-driven vehicle at a speed greater than fifty-five (55) miles per hour nor less than forty-five (45) miles per hour from the northern city limits on State Route 27 Spur to the south end of the Olgiati Bridge, north thereafter on Interstate Highway I-124 from the south end of the Olgiati Bridge southwardly to its junction with Interstate Highway I-24.
(Code 1986, § 24-503)

Sec. 24-504. Schedule IV—One-way streets.

In accordance with the provisions of section 24-192 of this Code and when properly signposted, traffic shall move only in the direction indicated upon the following streets and parts of streets:

Baker Street, westwardly and thence northwardly from Dalton Street to Jarnagin Avenue.

Baldwin Street to Passenger Street.

Battery Place, westwardly from Douglas Street to Mable Street.

Buckley Street, northwardly from Bailey Avenue to Bailey Avenue/McCallie Avenue Connector Road.

Carr Street, northwardly from Market Street to Sixteenth Street.

Cheviot Drive, westwardly from Midland Pike to Phoenix Avenue.

Club Drive, northeastwardly from Brainerd Road to North Lovell Avenue.

Custom Street, westwardly from Lindsay Street to Columbia Street.

Dixie Circle, from a point four hundred fifty (450) feet east of Mercer Street northeastwardly and thence continuing generally southwestwardly to a point one hundred (100) feet east of Mercer Street.

Donna Lane, south bound from Buena Vista Drive to Clearview Avenue.

Douglas Street, southwardly from First Street to Battery Place.

Eighth Street, eastwardly from Broad Street to Houston Street.

English Avenue, northwardly from Forty-Eighth Street to Forty-Seventh Street.

English Avenue, southwardly from Forty-Eighth Street to Forty-Ninth Street.

Everett Street, northwardly from Ochs Highway to Fairoak Place.

Fairoak Place, northwardly from Everett Street to Fortieth Street.

Fifth Street, westwardly from Houston Street to Lindsay Street.

First Street, eastwardly from Mabel Street to Douglas Street.

Fourth Street, eastwardly from Mabel Street to Riverside Drive.

Frazier Avenue, westwardly from Stivers Street to Barton Avenue.

Frederick Street, southwardly from Thirty-Seventh Street to Thirty-Eighth Street.

Frost Street, northwardly from Lockwood Avenue to Campbell Street.

Georgia Avenue, northwardly from Market Street to Tenth Street.

Grubb Road, northwardly from Old Hixson Pike to Hixson Junior High School Ballfield Drive.

Hamilton Avenue, northwardly from Bell Avenue to Ruth Street.

Hardy Street, westerly and southerly from Roanoke Street to Heaton Street.

Heaton Street, southerly and eastwardly from Hardy Street to Roanoke Street.

Hemlock Circle, north bound from Rose Circle to Myrtle Avenue.

Houston Street, northwardly from Lindsay Street to East 11th Street and from McCallie Avenue to Riverside Drive.

Jadie Lane, an alley extending southwardly from Colville Street to East Manning Street.

Johnson Street, westerly from Passenger Street to Rossville Avenue.

Lindsay Street, southwardly from Riverside Drive to McCallie Avenue and from East 11th Street to Houston Street.

Long Street, northwardly from Twenty-Sixth Street to Twentieth Street.

Manning Street, northeastwardly from Tucker Street to Jadie Lane.

Manning Street, eastwardly from Market Street to Woodland Avenue.

Midland Pike, eastwardly from Phoenix Avenue to Chevoit Drive.

Mount Vernon Circle, from its intersection with Mount Vernon Avenue southwardly, and eastwardly and thence northwardly to its intersection again with Mount Vernon Avenue.

National Avenue, southwardly from McCallie Avenue to Duncan Avenue.

Northrop Street, from its intersection with Crompton northeastwardly to its intersection again with Crompton.

North Terrace, westwardly from Spring Creek Road to Germantown Road.

Rosewood Avenue, southwardly from Elinor Street to Colby Street.

Seventeenth Street East, westbound from the intersection of Old Ringgold Road to a point approximately one hundred fifty (150) feet west of the intersection.

Seventh Street, westwardly from Georgia Avenue to Pine Street.

Sixth Street, eastwardly from Chestnut Street to Lookout Street.

South Terrace, eastwardly from Germantown Road to Spring Creek Road.

Tampa Street, north bound from Frazier Avenue to two hundred fifty (250) feet north of Frazier Avenue.

Third Street, westwardly from Siskin Drive to Mabel Street.

Tucker Street, northwardly from Oliver Street to Manning Street.

Twenty-First Street, westwardly from Market Street to Broad Street.

Vine Street, from Palmetto Street to Central Avenue.

Virginia Avenue, southwardly from Forty-Seventh to Fifty-fifth Street.

Walnut Street, southwardly from Fourth Street to Georgia Avenue.

Watkins Street, southwardly from Chamberlain Avenue to Bailey Avenue.

West Thirty-Eighth Street Place, eastwardly from Pennsylvania Avenue to St. Elmo Avenue.

West Crewdson Street, northwardly from its southern intersection with Crewdson Street to its northern intersection with Crewdson Street.

Williams Street, southwardly from Twentieth Street to Twenty-Sixth Street.

(Ord. No. 5967, § 1, 10-29-68; Ord. No. 6109, § 1, 11-18-69; Ord. No. 6135, § 1, 2-24-70; Ord. No. 6188, § 1, 7-14-70; Ord. No. 6604, § 1, 5-1-73; Ord. No. 6634, § 1, 7-17-73; Ord. No. 6583, §§ 1, 2, 2-27-73; Ord. No. 6621, § 1, 6-25-73; Ord. No. 6652, § 1, 8-21-73; Ord. No. 6583, §§ 1, 2, 2-27-73; Ord. No. 7050, § 1, 6-8-76; Ord. No. 7141, § 5, 2-8-77; Ord. No. 7583, § 2, 12-18-79; Ord. No. 7641, § 2, 4-8-80; Ord. No. 7987, § 1, 5-4-82; Ord. No. 8181, § 3, 8-9-83; Ord. No. 8327, § 2, 7-17-84; Ord. No. 8389, § 1, 11-27-84; Ord. No. 8562, § 1, 11-26-85; Code 1986, § 24-504; Ord. No. 8812, § 2, 7-21-87; Ord. No. 9447, § 1, 9-18-90; Ord. No. 9573, § 1, 7-2-91; Ord. No. 9705, § 1, 4-28-92; Ord. No. 9708, § 1, 5-5-92; Ord. No. 9732, § 1, 6-9-92; Ord. No. 9752, § 1, 7-7-92; Ord. No. 9840, § 1, 2-9-93; Ord. No. 10082, § 1, 8-9-94; Ord. No. 10102, § 1, 9-20-94; Ord. No. 10423, § 1, 6-4-96; Ord. No. 10480, § 1, 9-24-96; Ord. No. 10964, § 1, 2-1-00; Ord. No. 11102, § 1, 11-28-00; Ord. No. 11494, §§ 1, 3, 12-02-03; Ord. No. 11526, § 1, 03-16-04; Ord. No. 12113, §§ 1, 3, 4-22-08; Ord. No. 12598, § 1, 5-22-12; Ord. No. 12763, § 1, 9-10-13; Ord. No. 12987, § 1, 9-1-15; Ord. No. 13455, § 1, 4-16-19)

Editor's note—Ordinances listed in the history note at the end of § 24-504 are those which either affected the entire schedule, added entries which were subsequently repealed, or repealed entries which no longer appear in the schedule.

Editor's note—The following were deleted in accordance with Ordinance No. 11494, § 2, 12-2-03: Cowart Street, southwestwardly from Market Street to Thirtieth Street; Lookout Street, northwardly from Sixth Street to Fourth Street; Lookout Street, southwardly from Second Street to Third Street; Mabel Street, northwardly from Battery Place to First Street; Fourth Street, eastwardly from Broad Street to Georgia Avenue; Ninth Street, eastwardly from Georgia Avenue to Central Avenue and McCallie Avenue, westwardly from the eastern side of McCallie Avenue Tunnel to Georgia Avenue.

Editor's note—The following were deleted in accordance with Ordinance No. 11526, § 2, 03-16-04: Bailey Avenue, eastwardly from Bailey Avenue at McCallie ramp to Dodds Avenue; Georgia Avenue, northwardly from Eleventh Street to Tenth Street; and Georgia Avenue, southwardly from Martin Luther King Boulevard to 10th Street.

Sec. 24-505. Schedule V—Parking Meter Zones and Parking Area Maps.

(a) In accordance with the provisions of section 24-317 of this Code, the following areas are hereby designated as parking meter zones, and the Parking Authority may place parking meters from time to time on such streets in such areas.

Airport Parking Lot, at such points or places as designated by the Transportation Department within the confines of the parking area at the municipal airport of the city as presently exists and as said area may be from time to time enlarged.

Broad Street, from the Tennessee River to Wauhatchie Pike.

Carter Street, from Ninth Street to Main Street.

Cherry Street, from Fourth Street to Ninth Street.

Cherokee Boulevard, from Spears Avenue to W. Manning Street.

Chestnut Street, from Eleventh Street to Main Street.

Chestnut Street, from the Tennessee River to Ninth Street.

Columbia Street, from Tenth Street to Eleventh Street.

Cowart Street, from Market Street to Thirteenth Street.

Custom Street, from Columbia Street to Lindsay Street.

Dodds Avenue, from McCallie Avenue to East Twenty-Third Street.

Douglas Street, from Fifth Street to McCallie Avenue.

Eighth Street, from Georgia Avenue to Houston Street.

Eleventh Street, from Carter Street to Central Avenue.

Fifth Street East, from Douglas Street to Palmetto Street.

Fifth Street East, from Georgia Avenue to Lindsay Street.

Forest Avenue, from the north right-of-way of Frazier Avenue to the line identified by the south boundary of the lot located at 108 Forest Avenue.

Fourteenth Street East, from Market Street to Rossville Street.

Frazier Avenue, from its intersection with the eastern right-of-way of Market Street to the western right-of-way of Fehn Street.

Gateway Avenue, from Interstate Highway 124 to Ninth Street.

Georgia Avenue, from Fourth Street to Market Street.

High Street, from Fourth Street to Georgia Avenue.

Houston Street, from Lindsay Street to Fifth Street.

Lindsay Street, from Houston Street to Fourth Street.

Lookout Street, from Georgia Avenue to Fourth Street.

McCallie Avenue, from Georgia Avenue to Central Avenue.

Mabel Street, from Fourth Street to Fifth Street.

Main Street, Carter Street to Dodds Avenue.

Market Street, from the Tennessee River to East Twenty-Third Street.

M. L. King Boulevard, from Broad Street to Georgia Avenue, to allow meters at the new Broad Street and M. L. King Boulevard streetscape.

M. L. King Boulevard, from Georgia Avenue to Central Avenue.

Newby Street, from Tenth Street to Market Street.

Oak Street, from Georgia Avenue to Douglas Street.

Patten Parkway, from Georgia Avenue to Lindsay Street.

Pine Street, from Second Street to Ninth Street.

River Street, from the western right-of-way of Fehn Street to the eastern right-of-way of Market Street/Market Street bridge.

Riverside Drive/Riverfront Parkway, from the north right-of-way line of South River Street to the north right-of-way line of East 2nd Street.

Rossville Avenue, from Wilhoit Street to Central Avenue.

Rossville Boulevard, from Central Avenue to the Tennessee-Georgia state line.

Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Streets, from Pine Street to Georgia Avenue.

Sixth Street, from Pine Street to Interstate Highway 124.

Spears Avenue, from Cherokee Boulevard to W. Kent Street.

Tampa Street, from the north right-of-way of River Street to the south right-of-way of Frazier Avenue.

Tenth Street, from Central Avenue to Carter Street.

Thirteenth Street West, from Cowart Street to Carter Street, to allow meters at the new streetscape around The Chattanoogan.

Thirteenth Street West, from Market Street to Cowart Street.

Twelfth Street, from Market Street to Chestnut Street, to allow meters at the new streetscape around The Chattanoogan.

Velma Street, from Cherokee Boulevard to W. Kent Street.

Vine Street, from Georgia Avenue to Palmetto Street.

Walnut Street, from Fourth Street to Georgia Avenue.

Woodland Avenue, from the north right-of-way of Frazier Avenue to the line identified by the south boundary of the lot located at 118 Woodland Avenue.

(b) In addition to those streets specifically designated in the foregoing section (a), the Parking Authority shall have the right, after approval of the Transportation Department, to expand the installation and operation of parking meters into any streets located within the borders of the area delineated on the map included within this subsection (b). Any streets, or sections of streets, which are from time to time added by the Parking Authority and approved by the Transportation Department as parking meter zones, in addition to those streets separately listed in subsection (a) above, shall be published by the Parking Authority and made available in printed copy and on a publically-available internet site. (This map shall be available for review in the City Council office and/or the Parking Authority website, but shall not be codified.)

(Code 1986, § 24-505; Ord. No. 6052, § 1, 5-20-69; Ord. No. 7101, §§ 3, 4, 10-26-76; Ord. No. 7846, § 3, 5-26-81; Ord. No. 7997, § 1, 5-25-82; Ord. No. 8047, § 1, 9-28-82; Ord. No. 8388, § 1, 11-27-84; Code 1986, § 24-505; Ord. No. 11167, §§ 1, 2, 8-21-01; Ord. No. 12027, §§ 1, 2, 10-16-07; Ord. No. 12473, § 1, 2-8-11; Ord. No. 12626, § 5, 7-10-12; Ord. No. 12821, § 1, 3-25-14; Ord. No. 14159, § 1, 10-15-24)

Sec. 24-506. Schedule VI—Speed on residential streets within public housing projects.

Boone Hysinger Courts

Hardy Street - Heaton Street. Twenty-five (25) miles per hour from Roanoke Avenue to Roanoke Avenue.

Scholar Avenue - Hawthorne Street. Twenty-five (25) miles per hour from Southern Street to Heaton Street.

North Hickory Street. Twenty-five (25) miles per hour from Southern Street to Heaton Street.

North Hickory Street. Twenty-five (25) miles per hour from Heaton Street to Hardy Street.

East Lake Courts

6th Avenue. Fifteen (15) miles per hour from 28th Street to end of road.

All Unnamed Service Drives. Fifteen (15) miles per hour.

College Hill Courts

All Unnamed Service Drives. Fifteen (15) miles per hour.

Cromwell Hills

Juniper Street. Fifteen (15) miles per hour from Camellia Drive to end of road.

Jasmine Street. Fifteen (15) miles per hour from Camellia Drive to end of road.

Dahlia Street. Fifteen (15) miles per hour from Camellia Drive to end of road.

Zinnia Street. Fifteen (15) miles per hour from Marigold Drive to end of road.

Emma Wheeler Homes

Woodland View Circle. Twenty-five (25) miles per hour from 49th Street to Hooker Road.

Jeffery Lane. Twenty-five (25) miles per hour from 48th Street to Woodland View Circle.

Angela Drive. Twenty-five (25) miles per hour from 49th Street to Woodland View Circle.

Edingburg Drive. Twenty-five (25) miles per hour from Hooker Road to Woodland View Circle.

48th Street. Twenty-five (25) miles per hour from Wilson Road to Edingburg Drive.

49th Street. Twenty-five (25) miles per hour from Wilson Road to Edingburg Drive.

51st Street. Twenty-five (25) miles per hour from Wilson Road to Woodland View Circle.

Poss Homes

East 25th Street. Twenty-five (25) miles per hour from Market Street to Washington Street.

Poss Drive. Twenty-five (25) miles per hour from Read Avenue to end of road.

Read Avenue. Twenty-five (25) miles per hour from East 25th Street to Poss Drive.

Baldwin Street. Twenty-five (25) miles per hour from East 25th Street to Poss Drive.

Washington Street. Twenty-five (25) miles per hour from East 25th Street to Poss Drive.

Spencer McCallie Homes

West 37th Street. Twenty (20) miles per hour from West 38th Street to Chandler Place.

Huffaker Street. Twenty (20) miles per hour from West 37th Street to West 34th Street.

Kirkland Avenue — West 35th Street. Twenty (20) miles per hour from West 37th Street to Chandler Place.

Highland Avenue. Twenty (20) miles per hour from West 37th Street to West 34th Street.

West 34th Street. Twenty (20) miles per hour from Highland Avenue to Huffaker Street.

West 34th Street Circle. Twenty (20) miles per hour from West 34th Street to West 34th Street.
(Ord. No. 9114, § 2, 1-31-89)

Sec. 24-507. Schedule VII—Restricted on-street parking area.

In accordance with Section 24-382 of this Code, the following area is designated as a restricted on-street parking area:

The Fort Wood Historic District; specifically, the 800 and 900 blocks of Oak Street, Vine Street, Fort Wood Street, Clark Street, and the 500 block of Fort Wood Place. The City shall post no signs to the contrary.

The Fort Negley Neighborhood; specifically, Mitchell Avenue from E. 16th Street to E. 19th Street, Read Avenue from Rossville Avenue to E. 19th Street, E. 16th Street from Underwood Street to Mitchell Avenue, and E. 17th from Underwood Street to Cappella Street.

Battery Place; specifically, Battery Place from Mabel Street west to dead end.
(Ord. No. 10148, § 2, 12-20-94; Ord. No. 12642, § 1, 9-4-12; Ord. No. 12951, § 1, 5-19-15; Ord. No. 13476, § 1, 6-25-19)

Secs. 24-508—24-510. Reserved.

ARTICLE XV. DOCKLESS ELECTRIC SCOOTERS AND BICYCLES

Sec. 24-511. Moratorium relating to the operation of dockless electric scooters and bicycles.

(a) *Definitions*. For the purposes of this section, the following words and phrases shall have the meanings set forth below, unless the context clearly requires otherwise:

"Dockless Small Vehicle System" or *"System"* means a system which provides bicycles, scooters, electric bicycles, electric scooters, or other small vehicles for short-term rentals for point-to-point trips and which may be locked and unlocked without the requirement of a bicycle rack or other docking station.

"Dockless Small Vehicle" means a bicycle, scooter, electric bicycle, electric scooter, and other small, wheeled vehicle designed specifically for shared use utilizing GPS technology and can be deployed as part of a Dockless Small Vehicle System.

(b) *Moratorium*. The following is in effect indefinitely until otherwise changed by ordinance:

(i) It is unlawful to provide or offer for use a Dockless Small Vehicle anywhere within the City.

(ii) It is unlawful to park, leave standing, leave lying, abandon, or otherwise place a Dockless Small Vehicle in a public right-of-way or on public property anywhere within the City.

(iii) It is unlawful to operate a Dockless Small Vehicle in a public right-of-way or on public property anywhere within the City.

(c) *Violations; Impoundment.*

(i) A violation of subsection (b) is punishable by a fine not to exceed Fifty Dollars ($50.00) for each offense.

(ii) Dockless Small Vehicles operated in violation of this section shall be considered a traffic and pedestrian hazard and shall immediately be removed from right-of-way and impounded. A Dockless Small Vehicle shall be impounded by the City, its designee, or its contractors, with an initial impoundment fee of Fifty Dollars ($50.00) and a daily storage fee after the first twenty-four (24) hours of storage of Five Dollars ($5.00) per twenty-four (24) hours of storage or part thereof. The owner of the Dockless Small Vehicle shall be responsible for all fees.
(Ord. No. 13479, § 1, 7-9-19; Ord. No. 13533, § 1, 2-4-20)

Chapter 25

OFFENSES AND MISCELLANEOUS PROVISIONS*

Article I. In General

Sec. 25-1. Obstruction of streets and street corners.
Sec. 25-2. Curfew established—Exceptions—Duties of apprehending authority.
Sec. 25-3. Same—Arrest of minor for violation.
Sec. 25-4. Same—Proceedings pursuant to arrest.
Sec. 25-5. Same—Violations to be punished in juvenile court.
Sec. 25-6. Target or practice shooting.
Sec. 25-7. Disorderly conduct.
Sec. 25-8. Reserved.
Sec. 25-9. Reserved.
Sec. 25-10. Interference with use of public places.
Sec. 25-11. Cruising in motor vehicles on shopping center parking areas and roadways.
Sec. 25-12. Reserved.
Sec. 25-13. Slugs and fraudulent tokens—Unlawful use.
Sec. 25-14. Same—Manufacture and disposal.
Sec. 25-15. Smoking on public conveyances.
Sec. 25-16. Soliciting—In business buildings.
Sec. 25-17. Same—Employment in connection with tort claims.
Sec. 25-18. Spitting.
Sec. 25-19. Structures, obstructions on public property.
Sec. 25-20. Repealed.
Sec. 25-21. Throwing missiles at houses or through windows.
Sec. 25-22. Throwing water or other substances from windows.
Sec. 25-23. Trespass on and injuries to property.
Sec. 25-24. Disturbing or interfering with school activities at or near public facilities; penalty.
Sec. 25-25. Use of public school property and buildings for private profit.
Sec. 25-26. False alarms and false reports to police.
Sec. 25-27. Prohibition of containers in the Memorial Auditorium and Tivoli Theater.
Sec. 25-28. Prohibition of skateboards and aggressive skates on downtown streets and sidewalks.
Sec. 25-29. Prohibition of smoking in public buildings.
Sec. 25-30. Dissemination of smoking materials to minors.
Sec. 25-31. Evading arrest.
Sec. 25-32. Resisting stop, frisk, halt, search.
Sec. 25-33. Use of false identification.
Sec. 25-34. Criminal impersonation.
Sec. 25-35. Theft of property.
Sec. 25-36. Tampering with construction signs and barricades; travel on closed roads.
Sec. 25-37. Disrupting a meeting or procession.
Sec. 25-38. Obstructing highways, passageways, sidewalks and other thoroughfares (and places where the public gathers).
Sec. 25-39. Panhandling.
Sec. 25-40. Threats of mass violence on city owned property or at city property related activities.

***Cross references—**General penalty for code violations, § 1-8; city court, Ch. 12; police department, § 16-41 et seq.; police to arrest and commit offenders, § 16-45.

Secs. 25-41—25-45. Reserved.

Article II. Special Gathering Permit

Sec. 25-46. Definitions.
Sec. 25-47. Permit Required.
Sec. 25-48. Application for Special Gathering Permit.
Sec. 25-49. Action on Special Gathering Applications.
Sec. 25-50. Permit Not Transferable.
Sec. 25-51. Hours Regulated.
Sec. 25-52. Minors.
Sec. 25-53. Telephone and Reports of Disorders.
Sec. 25-54. Failure to Obtain Permit.
Sec. 25-55. Revocation of Permit.
Sec. 25-56. Additional Violations and Grounds for Revocation of Permit.
Sec. 25-57. Parties in Violation.
Sec. 25-58. Beer Board Hearing.
Sec. 25-59. Penalty.
Sec. 25-60. Display of Permit.
Sec. 25-61. Invalidity of Part.
Secs. 25-62—25-65. Reserved.

Article III. Noises

Sec. 25-66. Generally.
Sec. 25-67. Definitions and noise measurement procedures.
Sec. 25-68. Enumeration of prohibited acts.
Sec. 25-69. Loudspeakers, amplifiers and sound-amplifying devices.
Sec. 25-70. Warnings prior to citation.
Sec. 25-71. Permits for additional amplification.
Sec. 25-72. Motor vehicles.
Sec. 25-73. Off-road vehicles.
Sec. 25-74. Enforcement and penalties.
Sec. 25-75. Regulation of crowds and noise on business lots.
Sec. 25-76. Downtown Amplified Music District Permit application process.
Sec. 25-77. Board of Downtown Amplified Music District Permit Appeals.
Sec. 25-78. One (1) Year Review.
Sec. 25-79. Enumeration of prohibited noises in all residential zones outside the downtown amplified music district.
Sec. 25-80. Reserved.

Article IV. Offenses Against Morals

Division 1. Generally

Sec. 25-81. Reserved.
Sec. 25-82. Unlawful sale or storage of alcoholic beverages.
Secs. 25-83—25-95. Reserved.

Division 2. Prostitution and Related Offenses

Sec. 25-96. Definitions.
Sec. 25-97. Prohibited acts.

ARTICLE I. IN GENERAL

Sec. 25-1. Obstruction of streets and street corners.

It shall be unlawful for persons to congregate upon any of the streets or street corners in the city so as to obstruct traffic. The officers of the police department shall disperse all such gatherings on the streets and keep the streets open.
(Code 1986, § 25-1)

Sec. 25-2. Curfew established—Exceptions—Duties of apprehending authority.

(a) It is unlawful for any minor between seventeen (17) and eighteen (18) years of age to remain in or upon any public street, highway, park, vacant lot, establishment or other public place within the county during the following time frames:

(1) Monday through Thursday between the hours of eleven o'clock p.m. (11:00 p.m.) to six o'clock a.m. (6:00 a.m.); and

(2) Friday through Sunday between the hours of twelve o'clock (12:00) midnight to six o'clock a.m. (6:00 a.m.).

(b) It is unlawful for any minor sixteen (16) years of age and under to remain in or upon any public street, highway, park, vacant lot, establishment or other public place within the county during the following time frames:

(1) Monday through Thursday between the hours of ten o'clock p.m. (10:00 p.m.) to six o'clock a.m. (6:00 a.m.); and

(2) Friday through Sunday between the hours of eleven o'clock p.m. (11:00 p.m.) to six o'clock a.m. (6:00 a.m.).

(c) It is unlawful for a parent or guardian of a minor to knowingly permit or by inefficient control to allow the minor to be or remain upon any street or establishment under circumstances not constituting an exception to, or otherwise beyond the scope of subsections (a) and (b). The term "knowingly" includes knowledge that a parent or guardian should reasonably be expected to have concerning the whereabouts of a minor in that parent's legal custody. The term "knowingly" is intended to continue to keep neglectful or careless parents up to a reasonable community standard of parental responsibility through an objective test. It is not a defense that a parent was completely indifferent to the activities or conduct or whereabouts of the minor child.

(d) (1) The following are valid exceptions to the operation of the curfew:

(A) At any time, if a minor is accompanied by the minor's parent or guardian;

(B) When accompanied by an adult authorized by a parent or guardian of the minor to take the parent or guardian's place in accompanying the minor for a designated period of time and purpose within a specified area;

(C) Until the hour of twelve-thirty a.m. (12:30 a.m.), if the minor is on an errand as directed by the minor's parent;

(D) While engaged in a lawful employment activity, or while going directly to or returning directly from the minor's home and place of lawful employment. This exception shall also apply if the minor is in a public place during the curfew hours in the course of the minor's lawful employment. To come within this exception, the minor must be carrying written evidence of employment that is issued by the employer;

(E) Until the hour of twelve-thirty a.m. (12:30 a.m.) if the minor is on the property of or the sidewalk directly adjacent to the place where the minor resides or the place immediately adjacent to the place where the minor resides, if the owner of the adjacent building does not communicate an objection to the minor and the law enforcement officer;

(F) When returning home by a direct route from (and within thirty (30) minutes of the termination of) a school activity or an activity of a religious or other voluntary association, or a place of public entertainment, such as a movie, play or sporting event. This exception does not apply beyond one o'clock a.m. (1:00 a.m.);

(G) In the case of reasonable necessity, but only after the minor's parent has communicated to law enforcement personnel the facts establishing the reasonable necessity relating to specified streets at a designated time for a described purpose including place or origin and destination. A copy of the communication, or the record of the communication, an appropriate notation of the time it was received and of the names and addresses of the parent or guardian and minor constitute evidence of qualification under this exception;

(H) When exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech and the right of assembly. A minor shall show evidence of the good faith of the exercise and provide notice to the city officials by first delivering to the appropriate law enforcement authority a written communication, signed by the minor, with the minor's home address and telephone number, addressed to the mayor of the county specifying when, where and in what manner the minor will be on the streets at night during hours when the curfew is still otherwise applicable to the minor in the exercise of a First Amendment right specified in the communication; and

(I) When a minor is, with parental consent, in a motor vehicle engaged in good faith interstate travel.

(2) Each of the exceptions contained in subdivision (d)(1), and the limitations are severable.

(e) When any child is in violation of this section, the apprehending officer shall act in one (1) of the following ways:

(1) In the case of a first violation, and if in the opinion of the officer the action would be effective, take the child to the child's home and warn and counsel the parents or guardians;

(2) Take the minor into custody and transport the minor to a designated curfew center;

(3) Issue a summons to the child or parents or guardians to appear at the juvenile court; or

(4) Bring the child into the custody of the juvenile court for disposition.

(f) (1) A minor violating this section shall commit an unruly act disposition of which shall be governed pursuant to Title 37 by the Hamilton County Juvenile Court.

(2) Any parent, guardian, or other person having the care, custody and control of a minor violating this section commits a violation of this ordinance which may be heard by the Chattanooga City Court and the parent, guardian, or other such person who is above the age of majority shall be fined no more than fifty dollars ($50.00) for each offense by the City Court Judge. Each violation of this section shall constitute a separate offense.

(Code 1986, § 25-2; Ord. No. 9587, § 1, 7-30-91; Ord. No. 13720, § 1, 10-19-21)

Sec. 25-3. Same—Arrest of minor for violation.

Any police officer, while on duty, may arrest without warrant any minor willfully violating the provisions of section 25-2 of this chapter and detain him for a reasonable length of time, in which complaint can be made and a warrant issued and served; provided that, no minor so arrested shall be placed

in confinement until he has first been taken home to ascertain his parents' or guardians' wishes and the parents or guardians have refused to be held responsible for the observance of section 25-2 of this chapter by such minor.
(Code 1986, § 25-3)

Sec. 25-4. Same—Proceedings pursuant to arrest.

Upon the arrest of any minor where the parents or guardians have refused to become responsible for such minor for violation of the provisions of section 25-2, the city judge shall inquire into the facts of the arrest and the condition and circumstances of such minor, and if it appears that such minor, for want of proper parental care, is growing up in mendicancy or vagrancy, or is incorrigible, he shall cause the proceedings provided by law in such case to be taken.
(Code 1986, § 25-4)

Sec. 25-5. Same—Violations to be punished in juvenile court.

Any violation of the provisions of section 25-2 by a minor shall be punishable according to law in the juvenile court.
(Code 1986, § 25-5)

State law reference—Juvenile courts, T.C.A., §§ 37-1-101—37-1-506.

Sec. 25-6. Target or practice shooting.

(a) It shall be unlawful to target practice with a firearm without the express written consent of the owner of the property, either public or private, where such target practice occurs. Such written consent shall be on the person of the shooter while shooting. It shall further be unlawful to discharge a firearm on any property, public or private, with or without consent, wherein such discharge endangers adjacent or neighboring property, either public or private, or the owners or tenants thereof. It shall further be unlawful to discharge a firearm on any property, public or private, with or without such written consent, wherein such discharge disturbs nearby residents or businesses.

(b) For the purposes of this section, the term "firearm" shall mean any weapon from which a shot is discharged by force of an explosive or a weapon which acts by force of gunpowder, and shall also include all weapons which expel a projectile by means of the expansion of compressed air and/or carbon dioxide; the term "disturbs" shall mean to create a loud or obnoxious noise; the term "endangers" shall mean to discharge a firearm in a manner that shot or projectiles cross or fall on other properties; and the term "nearby" shall mean any property within six hundred (600) feet of the point of firearm discharge.
(Code 1986, § 25-6)

Sec. 25-7. Disorderly conduct.

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof:

(1) He acts in a violent or tumultuous manner toward another whereby any person is placed in danger of safety of his life, limb or health; or

(2) He acts in a violent or tumultuous manner toward another whereby the property of any person is placed in danger of being destroyed or damaged; or

(3) He causes, provokes or engages in any fight, brawl or riotous conduct so as to endanger the life, limb, health or property of another; or

(4) In a public place, he uses fighting words. "Fighting words," for the purposes of this subparagraph (4), are those words which by their very utterance inflict injury or are likely to provoke the average person to commit an immediate, retaliatory breach of the peace; or

(5) Without lawful authority, he disturbs any lawful assembly or meeting of persons with intent to disrupt and deprive others of their right to attend or participate; or

(6) He obstructs vehicular or pedestrian traffic; or

(7) He congregates with another or others in a public place depriving others of the lawful use and refusing to comply with a lawful order of the police to disperse; or

(8) By acts of violence interferes with another's pursuit of a lawful occupation or activity.

(Code 1986, § 25-7)

Sec. 25-8. Reserved.

Sec. 25-9. Reserved.

Editor's note—Ord. No. 13386, § 10, adopted Oct. 23, 2018, repealed § 25-9, which pertained to fortunetelling and derived from Code 1986, § 25-13.

Sec. 25-10. Interference with use of public places.

No person shall so conduct oneself, individually or in concert with others, in the use of or upon or in any of the following places so as to interfere with the free and uninterrupted use of such places by others lawfully there, or to fail or refuse to leave the premises upon the lawful request of the owner or person in charge of the premises of any of the following places which are privately owned:

(1) Any street, alley, highway or park within the city.

(2) Any public building, railroad or bus station, airport, poolroom, bowling alley or theater.

(3) Any restaurant, cafe, lunchstand, drive-in, tavern, hotel, motel, tourist court or trailer camp or on the premises used in the operation of any such places.

(Code 1986, § 25-14)

Sec. 25-11. Cruising in motor vehicles on shopping center parking areas and roadways.

(a) Owners and operators of shopping centers in the city are hereby authorized to post signs on and about the parking areas and private roadways on their properties giving notice that cruising on the property is prohibited.

(b) The term "cruising," as used in this section, is defined as the continual, repeated and aimless operation of a motor vehicle back and forth, through, around or within the parking areas and private roadways of a shopping center after 9:00 p.m. until the following sunrise other than for the purpose of entering or leaving a parking space where the vehicle has been parked while the driver or passenger(s) is or was visiting the shopping center or business.

(c) It shall be a violation of this section and a trespass for any person to cruise on any shopping center parking area and/or private roadways that have been posted by the owner or operator as authorized in paragraph (a) of this section.

(Code 1986, § 25-15)

Sec. 25-12. Reserved.

Editor's note—Ord. No. 13386, § 10, adopted Oct. 23, 2018, repealed § 25-12, which pertained to playing games near improved premises and derived from Code 1986, § 25-16.

Sec. 25-13. Slugs and fraudulent tokens—Unlawful use.

It shall be unlawful for any person to operate, or cause to be operated or to attempt to operate any automatic vending machine, slot machine, coin box telephone, gas meter or other receptacle designed to receive lawful coin of the United States of America in connection with the sale, use or enjoyment of property or service by means of a slug, or any false, counterfeit, mutilated, sweated or foreign coin, or by any means, method, trick or device whatsoever, not lawfully authorized by the owner, lessee or licensee of such machine, coin box telephone, meter or receptacle, or to take, obtain or receive from, or in connection with, any such machine, coin box telephone, meter or other receptacle, any goods, wares, merchandise, gas, electric current, or article of value, or the use or enjoyment of any facilities or service, or other property, without the depositing in and surrendering to such machine, coin box telephone, meter or receptacle, lawful coin of the United States to the amount required therefor by the owner, lessee or licensee thereof.
(Code 1986, § 25-18)

Sec. 25-14. Same—Manufacture and disposal.

It shall be unlawful for any person, who, with intent to cheat or defraud the owner, lessee, licensee or any other person entitled to the contents of any automatic vending machine, slot machine, coin box telephone, gas meter or other receptacle, designed to receive lawful coin in connection with the sale, use or enjoyment of property or service, or who, knowing that the same is intended for unlawful use, shall manufacture for sale, or sell or give away, any slug or device whatsoever intended or calculated to be placed or deposited in any such machine, coin box telephone, meter or other receptacle.
(Code 1986, § 25-19)

Sec. 25-15. Smoking on public conveyances.

It shall be unlawful for any person in any bus or other public conveyance to smoke any pipe, cigar or cigarette. The owner or operator of every bus or other public conveyance in the city shall display signs therein stating, in substance, that it is unlawful to smoke in such conveyance. The provisions hereof shall not apply to taxicabs and other vehicles for hire regulated under chapter 35, article II of this Code.
(Code 1986, § 25-20)

Sec. 25-16. Soliciting—In business buildings.

It shall be unlawful for any person knowingly to enter into or remain for the purpose of soliciting anything whatsoever in any privately owned building containing one (1) or more professional or business offices after such person has been previously notified by the owner or other person in charge thereof to keep out of such building.
(Code 1986, § 25-21)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 25-17. Same—Employment in connection with tort claims.

It shall be unlawful for any person to solicit employment for himself or for any other person, either directly or through another person acting on his behalf, to prosecute, collect, settle, compromise or negotiate for the settlement, compromise or collection of any tort claim, on behalf of any tort claimant, in which he himself has no pecuniary interest arising from such tort.
(Code 1986, § 25-22)

Sec. 25-18. Spitting.

It shall be unlawful for any person to spit upon any sidewalk or in any public conveyance or in any school, church or other building where the public assemble in the city.
(Code 1986, § 25-23)

Sec. 25-19. Structures, obstructions on public property.

It shall be unlawful for any person to place or cause to be placed any buildings, erections, depositories or other obstructions with any sort of permanency, for private use, benefit or profit, upon any part or portion of the public grounds or streets of the city.
(Code 1986, § 25-24)

Sec. 25-20. Repealed.
(Ord. No. 11548, § 1, 5-4-04)

Editor's note—The repealed section dealt with Sunday business. When repealed, this section was numbered 25-25.

Sec. 25-21. Throwing missiles at houses or through windows.

It shall be unlawful for any person to throw or fling any stone or other missile against any house or other building in the city, or against or through the window of any building, public or private.
(Code 1986, § 25-26)

Sec. 25-22. Throwing water or other substances from windows.

It shall be unlawful for any person to throw water or other substances from the windows of any building in the city into the streets or public places or upon the premises of others.
(Code 1986, § 25-27)

Sec. 25-23. Trespass on and injuries to property.

It shall be unlawful for any person to trespass on any property, public or private, in the city, by entering the premises without the consent of the owner or custodian thereof when such property is not occupied or in use, or to injure or disfigure any public or private building or fixture attached thereto, or to injure any shade tree, shrub or equipment on private premises in the city.
(Code 1986, § 25-28)

Sec. 25-24. Disturbing or interfering with school activities at or near public facilities; penalty.

It shall be unlawful for any person to come upon the premises of, or in proximity to, the campus or buildings or any public school or any public facility where school functions are taking place, in such a manner as to disturb or interfere with the normal, orderly, peaceful or efficient conduct of the activities of such school or facility. This prohibition shall include, but not be limited to disturbance or interference with activities by the use of symbols, signs, gestures or excessive noise. Upon conviction of a violation of this section, such person shall be fined not less than ten dollars ($10.00) nor more than fifty dollars ($50.00) and the commission of each separate act shall constitute a separate offense.
(Code 1986, § 25-29)

Sec. 25-25. Use of public school property and buildings for private profit.

(a) It shall be unlawful for any person to enter upon any property on which a public school is located or into public school buildings at any time and to use such property or buildings for private profit.

(b) It shall be unlawful for any food vendor to sell or offer for sale any candy, ice cream, fruit or other food on any street right-of-way in the city in a block in which a public school is located, or on any street right-of-way within one thousand (1,000) feet of said school property, during a period starting one (1) hour before school is in session and until one (1) hour after school is out on any school day.
(Code 1986, § 25-30)

Sec. 25-26. False alarms and false reports to police.

It shall be unlawful for any person or persons to:

(1) Intentionally make, transmit, or give an untrue report or a false alarm of need for police, fire department, or ambulance assistance, or aid or abet in the commission of such act; or

(2) Intentionally make or file with the department of fire and police or any officer thereof any false, misleading, or unfounded statement or report concerning the commission or alleged commission of any offense against the ordinances of the city or laws of the state;

(3) Anyone found guilty of violating this section shall be fined not less than fifty dollars ($50.00).
(Code 1986, § 25-31)

Sec. 25-27. Prohibition of containers in the Memorial Auditorium and Tivoli Theater.

It shall be unlawful for any person attending an event at either the Memorial Auditorium or Tivoli Theater to bring into or possess within either of these facilities a bottle or can.
(Code 1986, § 25-32)

Sec. 25-28. Prohibition of skateboards and aggressive skates on downtown streets and sidewalks.

It shall be unlawful for any person or persons to skate on skateboards or aggressive skates on public streets and sidewalks, in the downtown area, which is more particularly described as follows:

LEGAL DESCRIPTION (map attached)*

BEGINNING at a point in the southeast bank of the Tennessee River, said point being the southwest corner of Parcel 4, Group B, Map 145-B, currently owned by ADM Holding, Inc.; **thence** running with the property of ADM Holdings in a southeasterly direction and crossing the Southern Railway right-of-way to a point in the east right-of-way line of Southern Railroad; **thence** running with the north right-of-way line of the Southern Railway and crossing Riverfront Parkway to a point in the east right-of-way line of Riverfront Parkway; **thence** running with the east right-of-way line of Riverfront Parkway in a northeasterly direction to the southeast corner of Main Street; **thence** in a southeasterly direction with the south right-of-way line of Main Street to the southeast corner of Central Avenue; **thence** running in a northeasterly direction to the southeast corner of 11th Street (extended); **thence** northwesterly with the south right-of-way of 11th street to southeast corner of Magnolia Street; **thence** northeasterly with the east right-of-way line of Magnolia Street to a point on the north side of McCallie Avenue; **thence** northwesterly with the north right-of-way of McCallie to southeast corner of Palmetto Street; **thence** with east right-of-way of Palmetto Street in a northeasterly direction to a point on the north right-of-way of 3rd Street; **thence** with the north right-of-way of 3rd Street in a northwesterly direction to the west right-of-way of Southern Railway; **thence** with the northwesterly right-of-way of Southern Railway in a northeasterly direction to the corner of Parcel 1, Group D, Map 136-P; **thence** with the line of said Parcel 1 in a northwesterly direction to the south right-of-way of Riverfront Parkway; **thence** in an easterly direction with the south right-of-way of Riverfront Parkway to the center

---

***Note—**Map is attached to Ordinance No. 11028, adopted June 27, 2,000, and is filed with the City Council Clerk's Office.

of Citico Creek; thence with Citico Creek in a northwesterly direction to the south bank of the Tennessee River; **thence** running in a westerly direction with the south bank of the Tennessee River to a point at the intersection of east right-of-way of Georgia Avenue at the Veterans Bridge; **thence** with the east right-of-way of Veterans Bridge in a northeasterly direction crossing the Tennessee River to the north right-of-way of Frazier Avenue (extended); **thence** with the north right-of-way of Frazier Avenue in a northwesterly direction to the northwest corner of Market Street; **thence** in a southwesterly direction across the Tennessee River to a point in the south bank of the Tennessee River; **thence** in a southwesterly direction along the southeast bank of the Tennessee River to the point of **BEGINNING**.
(Ord. No. 11028, § 1, 6-27-00)

Sec. 25-29. Prohibition of smoking in public buildings.

(a) It shall be unlawful for any person to smoke tobacco or use tobacco or tobacco products in any form in the following public buildings:

(1) City Hall;

(2) City Hall Annex;

(3) Chattanooga Metropolitan Airport Authority Passenger Terminal Facility; and

(4) Chattanooga-Hamilton County Courts Building.

(b) Every owner or person in charge of a public place where smoking is prohibited shall post one (1) or more signs in the area heretofore described which reads, "Smoking Prohibited by City Ordinance" in letters at least one (1) inch in height. Such signs shall be prominently displayed and located so as to be clearly visible to the public.

(c) The owner or person in charge of any public place where a specific area or areas are designated as areas where smoking is permitted shall post one (1) or more signs which read: "Smoking Permitted In This Area."

(d) Anyone found guilty of violating this Section shall be fined not less than ten dollars ($10.00) nor more than fifty dollars ($50.00).
(Ord. No. 9656, § 1, 1-6-92; Ord. No. 9695, § 1, 4-14-92; Ord. No. 9723, § 1, 5-19-92)

Sec. 25-30. Dissemination of smoking materials to minors.

(a) *Definitions.*

(1) *"Disseminate"* means to sell, offer to sell, give or otherwise transfer to a minor.

(2) *"Minor"* means any unemancipated person under eighteen (18) years of age.

(3) *"Purchase"* means to buy, attempt to buy or offer to buy.

(4) *"Smokeless tobacco product"* means chewing tobacco, snuff, or any other tobacco product, the consumption of which does not require the ignition thereof.

(5) *"Smoking paraphernalia"* means a cigarette holder, cigarette papers, smoking pipe, water pipe or other item that is designated primarily to hold smoking material while the smoking material is being smoked.

(b) It shall be unlawful for any person to disseminate smoking material, smoking paraphernalia or any smokeless tobacco product to a minor within the city.
(Ord. No. 9903, § 1, 7-13-93)

Sec. 25-31. Evading arrest.

It shall be unlawful for any person in the city to intentionally flee from a person known to be a law enforcement officer and the person knows that the officer is attempting to arrest the person, or has been arrested by a law enforcement officer.
(Ord. No. 9904, § 1, 7-13-93)

Sec. 25-32. Resisting stop, frisk, halt, search.

It shall be unlawful for any person in the city to intentionally prevent or obstruct anyone known to the person to be a law enforcement officer, or anyone acting in the law enforcement officer's presence and at such officer's direction, from effecting a stop, frisk, halt, arrest or search of any person, including the defendant by using force against the law enforcement officer or another.
(Ord. No. 9905, § 1, 7-13-93)

Sec. 25-33. Use of false identification.

It shall be unlawful for any person to exhibit false, fake or forged identification or credentials belonging to another, for the purpose of obtaining any goods or services with a value of less than five hundred dollars ($500.00) which such person would not otherwise be entitled to receive.
(Ord. No. 9907, § 1, 7-13-93)

Sec. 25-34. Criminal impersonation.

It shall be unlawful for any person, with the intent to injure or defraud another person, to assume a false identity, pretend to be a representative of some person or organization, pretend to be an officer or employee of the government, or pretend to have a handicap or disability.
(Ord. No. 9908, § 1, 7-13-93)

Sec. 25-35. Theft of property.

It shall be unlawful for any person to commit theft of property, for the purposes of this ordinance, if the value of the property is under five hundred dollars ($500.00). A person commits theft of property if, with the intent to deprive the owner of property, the person knowingly obtains or exercises control over the property without the owner's effective consent.
(Ord. No. 9909, § 1, 7-13-93)

Sec. 25-36. Tampering with construction signs and barricades; travel on closed roads.

(a) *Definitions:*

(1) *"Barricade"* means a barrier for obstructing the passage of motor vehicle traffic.

(2) *"Detour sign"* means any sign placed across or on a public road of the state, the county or a municipal authority, or by their contractors, indicating that such road is closed or partially closed, which sign also indicates the direction of an alternate route to be followed to give access to certain points.

(3) *"Fence"* means a barrier to prevent the intrusion of motor vehicle traffic.

(4) *"Officially closed"* means a highway or road that has been officially closed by a governmental unit, the Department of Transportation, or the city governmental unit, including the county.

(5) *"Warning sign"* means a sign indicating construction work in the area.

(b) It shall be unlawful for any person in the city to intentionally:

(1) Destroy, knock down, remove, deface or alter any lighting flasher letter or figures on a detour or warning sign set upon a highway or road in the City of Chattanooga.

(2) Knock down, remove, rearrange, destroy, deface or alter any letter or figures on a barricade or fence erected on any highway or road located in the city.

(3) Drive around or through any barricade or fence on any officially closed highway or road located in the city.

(4) To drive around such detour sign or barricade or fence or ignore or disregard a warning sign before such road has been officially opened to public traffic by the Tennessee Department of Transportation or by the county or by a municipal officer of the agency, division, department or officer responsible for constructing or maintaining such roads.

(Ord. No. 9910, § 1, 7-13-93)

Sec. 25-37. Disrupting a meeting or procession.

It shall be unlawful for any person to intentionally prevent or disrupt a lawful meeting, procession, or gathering, if the person substantially obstructs or interferes with the meeting, procession, or gathering by physical action or verbal utterance.

(Ord. No. 9911, § 1, 7-13-93)

Sec. 25-38. Obstructing highways, passageways, sidewalks and other thoroughfares (and places where the public gathers).

(a) It shall be unlawful for any person, without legal authority or privilege, to intentionally, knowingly or recklessly obstruct a highway, street, sidewalk, railway, waterway, elevator, isle or hallway to which the public, or a substantial portion of the public, has access or any other place used for the passage of persons, vehicles or conveyances, whether the obstruction arises from the person's acts alone or from the person's acts and the acts of others.

(b) It shall be unlawful for any person to disobey a reasonable request or order to move issued by a person known to be a law enforcement officer, a fireman, or a person with authority to control the use of premises to prevent obstruction of a highway or passageway, maintain public safety by disbursing those gathered in dangerous proximity to a fire, riot or other hazard.

(c) "*Obstruction*" means to render passage unreasonably inconvenient, dangerous, and/or potentially injurious to person or property.

(Ord. No. 9912, § 1, 7-13-93)

Sec. 25-39. Panhandling.

I. Definitions.

(a) "*Aggressive begging, panhandling, or solicitation for donations*" includes the following forms of conduct:

i. Confronting someone in a way that would cause a reasonable person to fear bodily harm;

ii. Accosting an individual by approaching or speaking to the individual or individuals in such a manner as would cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon his or her person, or upon property in his or her immediate possession;

iii. Touching someone without his or her consent;

iv. Using obscene or abusive language toward someone while attempting to panhandle or solicit him or her;

v. Forcing oneself upon the company of another by engaging in any of the following conduct:

(1) Continuing to solicit in close proximity to the individual addressed after the person to whom the solicitation is directed has made a negative response, either verbally, by physical sign, by attempting to leave the presence of the person soliciting, or by other negative indication;

(2) Blocking the passage of the individual solicited; or

(3) Otherwise engaging in conduct that could reasonably be construed as intending to compel or force a person to accede to solicitation.

vi. Acting with the intent to intimidate someone into giving money, or

vii. Other conduct that a reasonable person being solicited would regard as threatening or intimidating in order to solicit a contribution or donation.

(b) "Areas with heightened personal security concerns" include the following locations:

i. Areas within, or within 20 feet of, a public parking garage, between dusk and dawn, when a reasonable individual would have a justified, reasonable concern for his or her safety, security and welfare;

ii. Areas within 20 feet of a public bus stop or public transit entrance where a reasonable individual would have a reasonable, justified concern for his or her personal security due to congestion and close proximity to others;

iii. Areas within 20 feet of access to building entrances, public event venues, public accommodations or commercial businesses where a reasonable individual would have a reasonable, justified concern for his or her personal security due to congestion and close proximity to others;

iv. Areas within a designated commercial or historic district in which a high volume of pedestrian traffic or narrow sidewalks and streets give a reasonable person a justified, reasonable concern about his or her personal security due to congestion and close proximity to others; or

v. Other areas in which congestion could give a reasonable person a reasonable, justified concern for his or her own personal security due to congestion and close proximity to others.

(c) "Areas with heightened personal privacy concerns" include the following:

i. Locations within twenty (20) feet of an automated teller machine, or financial institution in which an automated teller machine is located, where "financial institution" means any bank, industrial bank, credit union, or savings and loan.

ii. Locations within twenty (20) feet of a sidewalk café during operating hours unless the solicitor's presence is authorized by the proprietor;

iii. Other locations in which a reasonable person would have a reasonable and justified concern about whether congestion and close proximity to others would compromise his or her interests in privacy.

(d) "Areas with heightened public safety concerns" include the following:

i. Streets or highways;

ii. Traffic medians where such medians provide less than eight (8) square feet of flat space for standing; and

iii. Traffic medians of whatever size within designated high traffic or high-speed roadways or entry or exit ramps of such roadways referenced in subsection (f).

(e) "Begging, and panhandling" includes the following activities; actions that are conducted in the furtherance of the purpose of immediately collecting contributions for the use of one's self or others. As used in this ordinance, the word "solicit" and its forms, includes requests for funding arising from begging, or passive panhandling. "Begging, and panhandling" includes both "aggressive" and "passive" forms of begging and panhandling, but these forms are regulated separately under this ordinance.

(f) All high traffic roadways and exit ramps from controlled access highways including the following: Interstate 24-entry and exit ramps, Interstate 75-entry and exit ramps, Highway 27 (Corridor J)-entry and exit ramps, Highway 153-entry and exit ramps, all highway bridges across the Tennessee River with high speed traffic postings of 35 MPH or greater; all through streets in the City which have posted speed limits at 35 MPH or greater with or without center traffic medians.

(g) High speed roadways include the following: All controlled access highways and any City or State route where the speed limits are posted at thirty-five (35) MPH or greater.

(h) All posted regulated traffic medians and city streets which include areas that meet the following definitions:

i. Areas with "medians" situated between traffic lanes running in opposite directions where such medians have less than eight (8) square feet of flat area between traffic lanes; or

ii. Areas with "medians" that are otherwise designated as unsafe for activities by pedestrians, due to associated high-volume or high-speed traffic.

(i) "Passive panhandling, or begging", includes conduct that falls within the definition in part (e) of this section, but only such conduct that involves requests for contributions presented in writing without speaking, oral requests for contributions that do not constitute "aggressive panhandling, or begging," or other activities that do not fall within the definition of "aggressive panhandling, begging or solicitation" as defined in subsection (a) of this section.

II. Passive Begging, or Panhandling, When Regulated

Passive panhandling, begging, is permitted in all areas of the City except where expressly prohibited in parts V and VI of this Ordinance.

Passive panhandling, or begging, as defined in Section I (i) of this Ordinance should be treated as speech protected under the First Amendment unless other well-grounded governmental concerns are implicated. Accordingly, passive panhandling, or begging, is permitted throughout the jurisdiction and shall not be subject to citation for a municipal violation except as prohibited in parts V and VI of this Ordinance or otherwise as prohibited by State law.

III. Aggressive Panhandling, Begging Prohibited

(a) Aggressive panhandling is prohibited in all locations within the City. No person shall engage in aggressive panhandling as defined in this section of this ordinance at anytime, anywhere in this jurisdiction.

IV. Regulation of Panhandling and Begging in Areas with Specific Personal Safety and Privacy Concerns

(a) Regulated locations. Both "passive" and "aggressive" panhandling and begging are further regulated in the following areas that give rise to specific personal safety and privacy concerns as defined in Section I of this ordinance.

i. Areas with heightened personal security concerns as previously defined in subsection I (b); and

ii. Areas with heightened privacy considerations as previously defined in subsection I (c).

(b) Prohibition. Neither "aggressive" nor "passive" panhandling or begging shall be conducted in areas defined as involving heightened personal security or heightened privacy considerations.

V. Panhandling, and Begging, Protection of Public Access and Vehicular Safety in Public Streets and Highways and on Traffic Medians and on High Volume and High Speed Highways.

(a) Areas regulated:

i. Areas regulated by this section include those defined as "areas with heightened public safety concerns" as defined in Section I (d) of this ordinance.

(b) Prohibitions

i. Generally. Both passive and aggressive panhandling, begging, charitable and political solicitation shall be restricted in "areas with heightened public safety concerns" as defined in subsection I (d).

VI. Penalties

If any fine for municipal code violations shall be provided by a municipal citation pursuant to T.C.A. §§ 40-7-118 or 7-63-101, et seq., to be determined by the City Court Judge, it shall not exceed fifty dollars ($50.00) per day. The City Judge shall also have authority to contact and require a person cited for this municipal violation with a referral to a social services agency or a representative from the Chattanooga Interagency Council for Homelessness. If there are continuing violations that constitute a public nuisance for panhandling, the City Attorney is authorized to file a complaint against any person for public nuisance in order to obtain specific injunctive relief available under Tennessee law in any court of competent jurisdiction.
(Ord. No. 11352, § 1, 11-26-02; Ord. No. 11536, 3-23-04; Ord. No. 11962, § 1, 5-8-07; Ord. No. 13295, § 1,4-10-18)

Sec. 25-40. Threats of mass violence on city owned property or at city property related activities.

(a) As used in this section:

(1) "Mass violence" means any act which a reasonable person would conclude could lead to the serious bodily injury, as defined under Tennessee law, or the death of two (2) or more persons;

(2) "Means of communication" means direct and indirect verbal, written, or electronic communications, including graffiti, pictures, diagrams, telephone calls, voice over internet protocol calls, video messages, voice mails, electronic mail, social media posts, instant messages, chat group posts, text messages, and any other recognized means of conveying information; and

(3) "City owned properties" means any City building or bus, community center campus, grounds, recreational area, athletic field, or other property owned, used, or operated by the City for the administration of any community activities.

(b) A person who recklessly, by any means of communication, threatens to commit an act of mass violence on any city building or property or at a city community activity shall be banned from attending further city property events for a period of time by the Mayor or the Administrator after an opportunity to attend a due process hearing and such person may be subject to civil penalties as may be imposed by the City Court Judge and/or the Juvenile Court Judge, in the event that the person is a minor.

(c) (1) Any person who has knowledge of a threat of mass violence on city owned property or at a city property related activity shall report the threat immediately to emergency personnel with jurisdiction in the City.

(2) The report must include, to the extent known by the reporter, the nature of the threat of mass violence, the name and address of the person making the threat, the facts requiring the report, and any other pertinent information.

(3) Any person who has knowledge of the threat of mass violence on city owned property or at a city property related activity and knowingly fails to report the threat shall be in violation of Tennessee law and this Ordinance, subject to civil penalties imposed by the City Court Judge and/or the Juvenile Court Judge, in the event that the person is a minor, and adjudicated delinquent.

(d) In addition to any other civil penalties authorized by law, the City Court Judge and/or the Juvenile Court Judge may order a person in violation under subsection (b) to pay restitution, including costs and damages resulting from the disruption of the normal activity that would have otherwise occurred on the city owned property or at the city property related activity, but for the threat to commit an act of mass violence.

(e) If a juvenile is adjudicated delinquent for a violation of subsection (b) pursuant to Tennessee law at title 37, chapter 1, part 1, then the disposition of the juvenile court may include, in addition to any other disposition authorized by law, the suspension of the juvenile's driving privileges or ability to obtain a driver license for a period of one (1) year in accordance with the procedure set out in title 55, chapter 10, part 7.

(f) City departments shall develop policies and procedures to report and resolve violence and credible threats to employee safety on city owned properties and each department head shall designate employees responsible for reporting incidents involving violent threats to law enforcement and to the Mayor. Such policies and procedures adopted by each city department shall be reviewed annually by Human Resources and reported to the Council.
(Ord. No. 14183, § 1, 1-14-25)

Secs. 25-41—25-45. Reserved.

ARTICLE II. SPECIAL GATHERING PERMIT*

Sec. 25-46. Definitions.

(1) "*Adequate Security*" means the provision of Security Personnel according to a detailed security plan certified in writing by a Tennessee licensed security company in order to ensure safety for a Special Gathering.

(2) *"Event Organizer"* means any person or entity that conducts, manages, promotes, organizes, aids, or solicits attendance at a Special Gathering.

(3) "*Fee*" means anything of value given by person(s) attending the Special Gathering in exchange for any good, service, or privilege associated with the Special Gathering. A Fee includes, but is not limited to, donations resulting in the provision of any good, service, or privilege.

(4) *"Gathering"* means any group of persons together in one (1) place for a common purpose, including but not limited to any assembly, conference, social group, crowd, audience, or meeting.

(5) *"Operator"* means any person or entity that operates or manages the factory or Premises the facility or location where a Special Gathering is held. The Owner and the Operator may be the same person or entity.

***Editor's note—**Article II, Beggars' Permits, Sections 25-46 through 25-50 were repealed by Ord. No. 11536, 3-23-04. Replaced with Special Gather Permit, Sections 25-46 through 25-53 (renumbered to reserve sections for expansion in Article III), by Ordinance No. 12406, § 1, 6-08-10.

(6) *"Owner"* means any person or entity that owns the property or Premises where a Special Gathering is held.

(7) *"Premises"* means:

(a) If the Special Gathering is to be held at a structure: any or all of the property that constitutes the facility where the Special Gathering is to be held, including all decks, parking areas, patios, and other outdoor areas that are contiguous to the exterior of the structure to the boundaries of surrounding parcels of real estate; or

(b) If the Special Gathering is to be held outdoors: the location designated in the Special Events Application where the Special Gathering is to be held and contiguous areas to the boundaries of surrounding parcels of real estate.

(8) *"Security Personnel"* means any sworn, Tennessee accredited police officer or any Tennessee security guard registered pursuant to T.C.A. § 62-35-115 employed by a security company that is charged with responsibility for the orderly conduct of individuals attending gatherings.

(9) "*Special Gathering"* means a Gathering held for either commercial or noncommercial purposes that does the following: (1) continues after 12:00 midnight, (2) has a Fee collected, (3) has beer or other alcoholic beverages present or consumed on the Premises for which a City beer permit or State liquor license is not held or obtained, and (4) either (a) consists of fifty (50) or more persons, or (b) takes place in a facility with an occupancy capacity of fifty (50) or more persons.

(10) *"Special Gathering Permit"* means a permit properly issued under this Article.
(Ord. No. 12406, § 1, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Sec. 25-47. Permit Required.

No person or entity shall stage, promote, advertise, hold, or rent a facility for any Special Gathering, unless a Special Gathering Permit has been first obtained from the City of Chattanooga Police Department Regulatory Bureau. The Owner, Operator, and Event Organizer shall be jointly responsible for obtaining a Special Gathering Permit.
(Ord. No. 12406, § 2, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Sec. 25-48. Application for Special Gathering Permit.

Written application for a Special Gathering Permit shall be made to the City of Chattanooga Police Department Regulatory Bureau. The applicant for a permit for a Special Gathering shall pay to the City an application fee of thirty dollars ($30.00), for each time and location that a Special Gathering Permit is sought. This fee is non-refundable and shall be in addition to any other fees or taxes specified in this Article. The application shall be submitted at least five (5) business days prior to the date upon which the Special Gathering takes place. Such application shall be on forms provided by the City and shall contain the following information:

(a) The name, address, and phone number of the person applying for the Special Gathering Permit;

(b) The name, address, and phone number of the location where the Special Gathering is to be held;

(c) The name, address, and phone number of the Owner and Operator of the location where the Special Gathering is to be held and of their chief officers;

(d) The name, address, and phone number of the Event Organizer of the Special Gathering and of its chief officer;

(e) A certification that the Event Organizer, when acting as applicant, has not within the previous one (1) year period violated this Article, or any provision of a City ordinance or federal or state law regulating the sale, consumption, storage, and/or transportation of beer or other alcoholic beverages;

(f) A detailed plan for Adequate Security for the Special Gathering;

(g) A written statement specifying that the Owner, Operator, and Event Organizer have reviewed and agree to comply with Chattanooga City Code Sections 25-66 through 25-80 as amended regarding noise and that noise resulting from the Gathering shall not be unreasonably audible beyond the Special Gathering's Premises;

(h) The location, date, and hours during which the Special Gathering is to occur and the expected number of individuals who will be in attendance at the Special Gathering;

(i) The occupancy limits as established by the Chattanooga Fire Marshall or his or her designee for any building or gathering venue and confirmation that there are procedures in place to ensure that the Special Gathering complies with occupancy limits;

(j) A certification that there is at the site of the Special Gathering a telephone in compliance with Section 25-53;

(k) An acknowledgment that all portions of the Premises are available for inspection by any City policeman or inspector; and

(l) A certification by either the Owner or Operator that the Premises of the Special Gathering has not, within the preceding one (1) year period, been the site of two (2) or more violations of this Article, or any provision of a City ordinance or federal or state law regulating the sale, consumption, storage, and/or transportation of beer or other alcoholic beverages.

(Ord. No. 12406, § 3, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Sec. 25-49. Action on Special Gathering Applications.

Upon receipt of a completed application for a Special Gathering Permit, the City of Chattanooga Police Department Regulatory Bureau shall approve or deny the application within three (3) business days and give such applicant written notice of the decision. No permit shall be denied if the application meets the requirements of Section 25-48 unless the following has occurred:

(1) There has been within the previous one (1) year period a violation of this Article, or any provision of a City ordinance or federal or state law regulating the sale, consumption, storage, and/or transportation of beer or other alcoholic beverages by the Event Organizer or Operator; or

(2) There has been within the preceding one (1) year period two (2) or more violations of this Article, or any provision of a City ordinance or federal or state law regulating the sale, consumption, storage, and/or transportation of beer or other alcoholic beverages at the Premises where the Special Gathering is to be held.

No Special Gathering Permit may be issued for a Special Gathering involving an Event Organizer subject to subsection (1) above until one (1) year has passed from the date of the last violation. No Special Gathering Permit may be issued for a Special Gathering taking place on a Premises subject to subsection (2) above until one (1) year has passed from the date of the last violation. If denied, the reasons for such denial shall be so stated in writing. In the event that an application for a Special Gathering Permit is denied, the applicant shall be entitled to a hearing before the Beer Board of Chattanooga at the next regularly scheduled meeting to challenge the denial of the application. The decision of the Beer Board is final, and any party aggrieved thereby may appeal the decision in accordance with Tennessee Code Annotated, Title 57, Chapter 5.
(Ord. No. 12406, § 4, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Sec. 25-50. Permit Not Transferable.

No permit issued under the provisions of this chapter shall be transferrable.
(Ord. No. 12406, § 5, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Sec. 25-51. Hours Regulated.

A Special Gathering Permit expires at 3:00 a.m. The Owner, Operator, and Event Organizer shall provide for the prompt orderly dispersal of those in attendance at the Special Gathering by that time. Any Special Gathering that continues to allow attendance of patrons after 3:00 a.m. shall be subject to immediate closure and dispersal by sworn police officers who respond to any calls to a Special Gathering Premises in the same manner as authorized by Section 25-54. Failure to ensure adherence to this Section 25-51 shall subject the Owner, Operator, and Event Organizer to a violation of this Article.
(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-52. Minors.

No beer or other alcoholic beverage may be given away to, consumed by, or possessed by any person under the age of twenty-one (21) years on the Special Gathering Premises.
(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-53. Telephone and Reports of Disorders.

(a) Owner, Operator, and Event Organizer must ensure that the location where the Special Gathering is held maintains a telephone in good working order that provides direct access to the City's emergency communication telephone line, or 9-1-1, and provides the street address for the Special Gathering location. A cellular or wireless telephone or other communication medium shall not be used as the primary telephone service at the Special Gathering location unless it provides direct access to 9-1-1.

(b) The Owner, Operator, and Event Organizer are required to report all fights and other public disorders occurring at the Premises immediately to the Chattanooga Police Department, whether or not participants in any such disorder have left the Premises.
(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-54. Failure to Obtain Permit.

The occurrence of any Special Gathering held without a permit as required by this Chapter is a violation of the Chapter by the Owner, Operator, and Event Organizer and shall be grounds for any sworn law enforcement officer of the City of Chattanooga to immediately terminate the Special Gathering. The Owner, Operator, and Event Organizer shall provide for the orderly dispersal of those in attendance. In the event that a Special Gathering is terminated because of the failure to obtain a permit as required by this Article, the Owner, Operator, and/or Event Organizer shall be entitled to a hearing before the Beer Board of Chattanooga at the next regularly scheduled meeting to challenge the denial of the application. The decision of the Beer Board is final and any party aggrieved thereby may appeal the decision in accordance with Tennessee Code Annotated, Title 57, Chapter 5.
(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-55. Revocation of Permit.

Any violation of one (1) or more of the requirements of this Article, Chapter 5 of this Code or any violation of one (1) or more terms, conditions, or requirements of the Special Gathering Permit issued hereunder shall be grounds for immediate revocation of the Special Gathering Permit by any sworn law enforcement officer of the City of Chattanooga. Upon revocation of the Special Gathering Permit by any law enforcement officer of the City of Chattanooga, the Owner, Operator, and Event Organizer shall immediately terminate the event and provide for orderly dispersal of those in attendance. Following the revocation of the Special Gathering Permit by a law enforcement officer, the Owner, Operator, and Event Organizer shall be entitled to a hearing before the Beer Board of Chattanooga at the next regularly scheduled meeting to challenge the revocation of the Special Gathering Permit. In the event that the revocation is affirmed by the Beer Board, any party aggrieved thereby may appeal the decision in accordance with Tennessee Code Annotated, Title 57, Chapter 5.
(Ord. No. 12406, § 6, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Sec. 25-56. Additional Violations and Grounds for Revocation of Permit.

It is a violation of this Article and additional grounds for the revocation of a Special Gathering Permit when the Owner, Operator, or Event Organizer:

(a) Operates a disorderly place; or

(b) Allows gambling on the Premises; or

(c) Allows fighting or boisterous or disorderly conduct on the Premises; or

(d) Allows minors to congregate about the Premises; or

(e) Furnishes, dispenses, or allows to be used or consumed, any beer or other alcoholic beverages to any person under the age of twenty-one (21) years; or

(f) Denies access to any portion of the Special Gathering Premises to any policeman or inspector;

(g) Allows any violations of the rules and regulations of the health department;

(h) Allows litter or debris to accumulate in or around the Special Gathering Premises, including the sidewalks and streets adjacent thereto; and or fails to provide and maintain adequate solid waste containers;

(i) Allows anyone to leave the Premises with an open container (as defined in Section 5-87(a) of this Code) of beer or other alcoholic beverage;

(j) Consumes or permits an employee to consume any beer or any other alcoholic beverage while on the Premises, or to be intoxicated while on the Premises;

(k) Allows any violation of any provision of this Article to occur on the Premises; or

(l) Does not ensure that the Owner, Operator, or Event Organizer is on the Premises during the duration of the Special Gathering.

(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-57. Parties in Violation.

Any violation of this Article shall result in a citation against the Owner, Operator, and Event Organizer associated with the Special Gathering and/or the Premises for the violation.
(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-58. Beer Board Hearing.

The Owner, Operator, and Event Organizer who have been cited for the violation of this Article shall be entitled to a hearing before the Beer Board of Chattanooga at the next regularly scheduled meeting to challenge said violation. In the event that the violation is affirmed by the Beer Board, any party aggrieved thereby may appeal the decision in accordance with Tennessee Code Annotated, Title 57, Chapter 5.
(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-59. Penalty.

Any violation of this Article shall be punishable by a fine of not less than twenty five dollars ($25.00) nor more than fifty dollars ($50.00).
(Ord. No. 12762, § 1, 9-3-13)

Sec. 25-60. Display of Permit.

The Special Gathering Permit shall be available for inspection during the Special Gathering upon request by any customer, any member of the Chattanooga Police Department, or any person designated by the Mayor or the City Council.
(Ord. No. 12406, § 7, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Sec. 25-61. Invalidity of Part.

Should any court of competent jurisdiction declare any section, clause, or provision of this Article to be unconstitutional, such decision shall affect only such section, clause, or provision so declared unconstitutional, and shall not affect any other section, clause or provision of this Article.
(Ord. No. 12406, § 8, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

Secs. 25-62—25-65. Reserved.
(Ord. No. 11536, 3-23-04; Ord. No. 12406, 6-8-10; Ord. No. 12762, § 1, 9-3-13)

ARTICLE III. NOISES

Sec. 25-66. Generally.

The creation of any unreasonably loud, disturbing or unnecessary noise in the city or noise of such kind, intensity or duration as to be detrimental to the life or health of any individual or disturb the public peace or welfare of the city shall be unlawful.
(Code 1986, § 25-66)

Sec. 25-67. Definitions and noise measurement procedures.

(a) All terms used in this Article shall, for the purpose of this Article, have the meanings hereinafter ascribed to them.

"Ambient Noise" shall mean background noise.

"A' Weighted Sound Level" is the electronic filtering in sound level meters that models human hearing frequency sensitivity and shall mean the sound pressure level as measured with the sound level meter using the "A" weighing network. The standard unit notation is dB(A).

"C' Weighted Sound Level" is the electronic filtering in sound level meters that minimally attenuates very low frequencies and shall mean the sound pressure level as measured with the sound level meter using the "C" weighing network. The standard unit notation is dB(C).

"dB(A)" shall mean the composite abbreviation for A-weighted sound level in decibels.

"dB(C)" shall mean the composite abbreviation for C- weighted sound level in decibels.

"Decibel" shall mean a logarithmic unit of measure of ten (10) used in measuring magnitudes of sound. The symbol is dB.

"Downtown Amplified Music District" or "AMD" shall mean the following geographic areas:

(1) Main Street beginning at the intersection of West Main Street and Broad Street and continuing to the railroad tracks west of Adams Street.

(2) Martin Luther King Boulevard beginning at the intersection of West Martin Luther King Boulevard and Broad Street and continuing to the intersection of East Martin Luther King Boulevard and University Street.

(3) Market Street beginning at the intersection of Market Street and West Main Street and continuing to the intersection of Market Street and West 7th Street.

(4) Broad Street beginning at the intersection of Broad Street and West Main Street and continuing to the intersection of Broad Street and West 7th Street.

(5) Georgia Avenue from the intersection of Georgia Avenue and East Martin Luther King Boulevard and continuing to the intersection of Georgia Avenue and Patten Parkway, Patten Parkway, Lindsay Street beginning at the intersection of Lindsay Street and Patten Parkway and continuing to the intersection of Lindsay Street and East Martin Luther King Boulevard.

"Downtown Amplified Music District Permit" or "AMD Permit" means a permit granted by the Land Development Officer pursuant to Code Sec. 25-75 or, after an appeal, by the Board of Downtown Amplified Music District Permit Appeals. The AMD Permit shall be issued for a one (1) year term and shall be renewed yearly before the anniversary date of the initial issuance.

"Motorcycle" shall mean any motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three (3) wheels, but excluding a tractor.

"Motor Driven Cycle" shall mean every motorcycle and every motor scooter with a motor which does not exceed five (5) brake horsepower, including every bicycle with a motor attached.

"Motor Vehicle" shall mean any self-propelled vehicle.

"Muffler" shall mean an apparatus consisting of a series of chambers or baffle plates designed for the purpose of transmitting gases while reducing sound emanating from such apparatus.

"Noise" shall mean any sound which annoys or disturbs humans or which causes or tends to cause an adverse psychological or physiological effect on humans.

"Off-road vehicle" means any off-road motorcycle, all-terrain vehicle, utility vehicle or dune buggy.

"Public Premise" shall also mean any private property generally available for public use including private streets, drives and parking lots or parking spaces provided for any public use at any individual, commercial, institutional or multi-family residential or other property use where parking spaces are required.

"Residential Property" shall mean any premise where single or multiple dwelling units exist and shall include schools, churches, hospitals, nursing homes and similar institutional facilities.

"Sound Amplification Device" shall mean any radio, tape player, compact disc player, loudspeaker or other electronic device used for the amplification of sound.

"Sound Level" shall mean a measure of the level of a sound with a weighing network in the measurement chain.

"Sound Level Meter" shall mean an apparatus or instrument including a microphone, amplifier, attenuator, output meter and frequency weighing networks for the measurement of sound levels.

"Vehicle" shall mean any device in, upon, or by which any person or property is or may be transported or drawn, except devices moved by human power or used exclusively upon stationary rails or tracks.

(b) For the purpose of determining dB(A)'s and dB(C)'s as referred to in this article, the noise shall be measured on the A-weighting scale and C-weighting scale set to slow meter response on a sound level meter of standard design and quality having characteristics established by the American National Standards Institute.

(c) Measurement procedure. The sound level meter shall be operated in accordance with the instrument manufacturer's instructions as follows:

(1) Microphone Orientation. The microphone shall be pointed towards the allegedly offensive noise source, unless the instrument manufacturer's instructions specifically indicate otherwise.

(2) Calibration. The meter shall be calibrated in accordance with manufacturer's instructions.

(3) Meter Readings. The recorded reading shall be the highest sound level obtained with the allegedly offensive noise source in operation, disregarding unrelated peaks due to extraneous ambient noises.

(4) Ambient Conditions. Measurements shall be made only when the A-weighted ambient sound level, including wind effects and all sources other than the noise source being measured, is at least ten (10) dB(A) lower than the sound level of the of the noise source being measured.

(Ord. No. 11273, 5-7-02; Ord. No. 12850, § 1, 8-26-14; Ord. No. 13211, § 1, 8-22-17)

Sec. 25-68. Enumeration of prohibited acts.

(a) The following acts, among others, are declared to be loud, disturbing and unnecessary noises in violation of this article, but this enumeration shall not be deemed to be exclusive:

(1) *Horns or other signal devices on vehicles.* The sounding of any horn or signal device on any automobile, motorcycle, bus or other vehicle, while not in motion, except as a danger signal if another vehicle is approaching apparently out of control, or while in motion only as a danger signal after or as brakes are being applied and deceleration of the vehicle is intended; the creation by means of such signal device of any unreasonably loud or harsh sound, and the sounding of such device for any unnecessary and unreasonable period of time.

(2) *Musical instruments.* The playing of any radio, phonograph or any musical instrument in such a manner or with such volume, particularly during the hours between 11:00 p.m. and 7:00 a.m., so as to annoy or disturb the quiet, comfort or repose of persons in any hospital or in any dwelling, hotel or other type of residence or of any persons in the vicinity.

(3) *Yelling, hawking, etc., in streets.* Yelling, hawking, shouting, hooting, whistling or singing on the streets or sidewalks or in public places, particularly between the hours of 11:00 p.m. and 7:00 a.m., in a manner which disturbs the quiet, comfort or repose of persons in any hospital, dwelling, hotel or other type of residence.

(4) *Dogs.* The keeping of any dog(s) which, by causing frequent or long, continued noise, disturbs the comfort or repose of any person in a residence, hotel, motel or hospital. For the purposes of this subsection, "frequent or long, continued noise" shall include, but shall not be limited to, barking at an average rate of ten (10) or more barks per minute over a period of five (5) minutes which can be heard from a distance of one hundred (100) feet or more, but shall not include the barking of any dog(s) responding to an emergency or to a trespasser on the property of the owner of such dog(s).

(5) *Operation of vehicles.* The use of any automobile, motorcycle or other vehicle so out of repair or loaded in such manner as to create loud and unnecessary grating, grinding, rattling or other noise.

(6) *Steam whistles.* The blowing of any steam whistle attached to any stationary boiler, except to give notice of the time to begin or stop work or as a warning of fire or danger.

(7) *Exhausts without mufflers.* The discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine or boat engine except through a muffler or other device which will effectively prevent loud or explosive noises therefrom.

(8) *Construction work.* The erection (including excavation), demolition, alteration or repair of any building in any residential district or section, and the excavation of streets in any residential district or section, other than between the hours of 7:00 a.m. and 8:00 p.m., except in cases of urgent necessity in the interest of the public health and safety, and then only with a permit from the building inspector, which may be granted for a period not to exceed thirty (30) days while such emergency continues. If the building inspector determines that the public health and safety will not be impaired by the erection, demolition, alteration or repair of any building or the excavation of a street within the hours of 8:00 p.m. and 7:00 a.m., and further determines that loss or inconvenience would result to any party in interest through delay, he may grant permission for such work to be done within the hours of 8:00 p.m. and 7:00 a.m. upon application made at the time the permit for such work is awarded or during the progress of the work.

(9) *Noise near schools, courts, churches or hospitals.* The creation of any excessive noise on any street adjacent to any school, institution of learning, church or court, while the same is in session, or adjacent to any hospital, which unreasonably interferes with the working or sessions thereof.

(10) *Loading and unloading; opening bales, etc.* The creation of loud and excessive noise in connection with the loading or unloading of any vehicle or the opening bales, boxes, crates and containers.

(11) *Refuse collection.* Operate a mechanical loader for refuse collection between the hours of 9:00 p.m. and 7:00 a.m. within or adjacent to any residential zone.

(12) *Lawnmowers, leaf blowers, weed-eaters, chain saws, etc.* Operate lawn mowers, leaf blowers, weed-eaters, chain saws or other domestic tools out-of-doors between the hours of 9:00 p.m. and 7:00 a.m.

(13) *Fireworks.* It shall be unlawful to set off fireworks after the hour of 11:30 p.m., except on New Year's Eve when the hours prohibited shall be 12:30 a.m. until 800 a.m.

(14) No person shall operate or permit the operation of any sound amplification system, including, but not limited to, any radio, tape player, compact disc player, loud speaker, or any other electrical device used for the amplification of sound so that the sound is plainly audible at a distance of one hundred (100) or more feet and on someone else's property located in a Residential Zone. This section shall not apply to events attended by more than one thousand (1,000) people, athletic events, nor to sound emanating from a C-3 Zone.

(b) The provisions of this section shall not apply to any vehicle of the city or other governmental entity while engaged upon necessary public business, to excavations or repairs of bridges or streets by or on behalf of the city during the night hours, where the public welfare and convenience renders it necessary to perform the work at night.

(Code 1986, § 25-67; Ord. No. 10157, §§ 1, 2, 1-10-95; Ord. No. 10273, § 1, 8-8-95; Ord. No. 11163, § 1, 7-31-01; Ord. No. 11273, 5-7-02; Ord. No. 11693, § 1, 6-7-05; Ord. No. 11752, § 1, 10-11-05)

Cross references—Amusements, Ch. 6; animals and fowl, Ch. 7; building regulations, Ch. 10; businesses, trades and occupations, Ch. 11; motor vehicles and traffic, Ch. 24.

Sec. 25-69. Loudspeakers, amplifiers and sound-amplifying devices.

(a) Except for entities possessing a Downtown Amplified Music District Permit in the designated Downtown Amplified Music District, it shall be unlawful to:

(1) Operate or allow the operation of any sound amplification equipment so as to create sounds registering fifty-five (55) dB(A) between 9:00 a.m. and 9:00 p.m. or fifty (50) dB(A) between 9:00 p.m. and 9:00 a.m., as measured anywhere within the boundary line of the nearest residentially occupied property, hospital, school in session or nursing home, except in accordance with a permit obtained from the chief building official.

(2) As to multifamily structures including apartments, condominiums or other residential arrangements where boundary lines can not readily be determined, it shall be unlawful to operate or allow the operation of any sound amplification equipment so as to create sounds registering fifty-five (55) dB(A) between 9:00 a.m. and 9:00 p.m. or fifty (50) dB(A) between 9:00 p.m. and 9:00 a.m., as measured from any point within the interior of another residential unit in the same complex or within the boundary line of the nearest residentially occupied property, except in accordance with a permit obtained from the chief building official.

(3) As to places of public entertainment having a capacity of one thousand (1,000) or more persons, operate or allow the operation of any sound amplification equipment so as to create sounds registering more than sixty-five (65) dB(A) between 9:00 a.m. and 9:00 p.m., or fifty (50) dB(A) between 9:00 p.m. and 9:00 a.m., as measured anywhere within the boundary line of the nearest residentially occupied property, except in accordance with a permit obtained from the chief building official.

(4) Operate or allow the operation of any sound amplification equipment for advertising purposes or otherwise to attract customers so as to cast sounds which are unreasonably loud and disturbing or which register more than sixty (60) dB(A) at or on the boundary of the nearest public right-of-way or park.

(5) Operate or allow the operation for personal use of any sound amplification equipment on the public right-of-way, including streets or sidewalks, or in the public parks so as to produce sounds registering more than sixty (60) dB(A) fifty (50) feet or more from any electromechanical speaker between the hours of 9:00 a.m. and 9:00 p.m., or fifty (50) dB(A) fifty (50) feet or more from any electromechanical speaker between the hours of 9:00 p.m. and 9:00 a.m.

(b) (1) For entities possessing a Downtown Amplified Music District Permit in the designated Downtown Amplified Music District, it shall be unlawful to emit sound in excess of the following limits as measured at the property line of the business producing the sound averaged over one (1) minute:

Time (Monday — Thursday)	*Sound Level Limit dB(A)*	*Sound Level Limit dB(C)*
3:00 a.m. — 11:00 a.m.	55	70
11:00 a.m. — 11:00 p.m.	80	90
11:00 p.m. — 3:00 a.m.	65	80

Time (Friday — Sunday)	*Sound Level Limit dB(A)*	*Sound Level Limit dB(C)*
3:00 a.m. — 11:00 a.m.	55	70
11:00 a.m. — 12:00 a.m.	80	90
12:00 a.m. — 3:00 a.m.	65	80

(2) For entities possessing a AMD Permit in the designated Downtown Amplified Music District, it shall be unlawful to violate any terms, conditions, and requirements of the AMD Permit.

(c) No person operating or occupying a motor vehicle on any street, highway, alley, parking lot or driveway, either public or private property, shall operate or permit the operation of any sound amplification system, including, but not limited to, any radio, tape player, compact disc player, loud speaker, or any other electrical device used for the amplification of sound from within the motor vehicle so that the sound is plainly audible at a distance of fifty (50) or more feet from the vehicle or, in the case of a motor vehicle on private property, beyond the property line. For the purpose of this section, "plainly audible" means any sound which clearly can be heard, by unimpaired auditory senses based on a direct line of sight of fifty (50) or more feet, however, words or phrases need not be discernible and such sound shall include bass reverberation.

(d) The foregoing limitations on the operation of sound amplification equipment shall not apply to the operation of horns, sirens or other emergency warning devices actually being used in emergency circumstances.

(Ord. No. 10157, § 3, 1-10-95; Ord. No. 11273, 5-7-02; Ord. No. 11613, 09-07-04; Ord. No. 12850, § 2, 8-26-14)

Sec. 25-70. Warnings prior to citation.

(a) If conduct that would otherwise violate this article consists of speech or other communication, of gathering with others to hear or observe such speech or communication, or of gathering with others to picket or otherwise express in a nonviolent manner a position on social, economic, political or religious questions, the person must be ordered to move, disperse or otherwise remedy the violation prior to his or her citation or arrest.

(b) The order required by section may be given by a peace officer, a person with authority to control the use of the premises, or any person directly affected by the violation.

(c) It is a defense to an offense under the article that:

(1) In circumstances in which this section requires an order, no order was given;

(2) An order, if given, was manifestly unreasonable in scope;

(3) An order, if given, was promptly obeyed;

(4) The device was operated within an enclosed motor vehicle and was not audible outside the vehicle in which it was operated;

(5) The device is one (1) required by any law, ordinance or regulation of the state, federal or municipal government and operated in accordance with applicable law; or

(6) The device is operated as a part of any parade or other activity for which a permit (other than a business permit) has been obtained from any governmental entity.

(Ord. No. 10157, § 3, 1-10-95; Ord. No. 11273, 5-7-02)

Sec. 25-71. Permits for additional amplification.

(a) *Application.* The application for a permit for additional amplification under section 25-69 shall be submitted to the chief building official at least fifteen (15) working days in advance of the planned use except in case of emergency. The application shall designate an individual person or persons who shall be in control of the sound amplification equipment and assure that its use complies with the terms of the permit.

(b) *Notice of tentative approval.* Upon tentative approval, the applicant for a permit shall be responsible for mailing or otherwise delivering to the occupants of each property within a one thousand (1,000) foot radius of the facility for which the permit has been granted, as shown on the tax maps of the county, a notice stating the date and hours of the event. The notice shall be delivered at least seventy-two (72) hours in advance of the event. The permit shall not be actually granted and issued until the applicant submits an affidavit to the chief building official that such notices have been actually mailed or otherwise delivered.

(c) *Number of hours.* No permits shall be issued which shall have the effect of allowing more than twenty (20) hours of excess amplification per year at any place of public entertainment having a capacity of one thousand (1,000) or more persons or ten (10) hours of excess amplification at any other location. Permits shall be tentatively approved and subsequently granted by the chief building official in the order of receipt unless permits for twenty (20) or more hours have previously been issued for the same or other locations within a one thousand (1,000) foot radius of the facility in the same calendar year, in which event the applicant shall elect whether to limit his request so as to keep the year's accumulated hours of excess amplification in that location below twenty (20) hours or select another location.

(d) *Not permitted in residentially occupied boundaries.* In no event shall a permit be granted which allows the creation of sounds registering more than seventy (70) db(A) anywhere within the boundary line of the nearest residentially occupied property.

(e) *Denial; exceptional permit.* If an applicant has been denied a permit under this section and believes the denial is illegal by virtue of applicable state or federal law, he shall promptly submit a copy of the denied permit application together with a short statement of the reasons he believes he is entitled to a permit to the mayor. The mayor shall have the discretion to grant an exceptional permit waiving locational, time and/or db(A) requirements, upon his determination that the applicant has made a substantial showing of legal entitlement. Any such exceptional permit shall be promptly reported to city council.

(Ord. 11273, 5-7-02)

Sec. 25-72. Motor vehicles.

Sound Levels by Vehicle Type. No person shall operate a motor vehicle upon any public premise, or be permitted to operate a motor vehicle upon any public premise at any time or under any conditions of

roadway grade, load, acceleration or deceleration in such a manner as to generate a sound level in excess of the following limit for the category of motor vehicle and applicable speed under measurement procedures established herein.

Speed Limit Zone Thirty-Five (35) Miles Per Hour or Less:

(a)	Motorcycles and motor driven cycles:	82 dB(A)
(b)	Vehicles with gross weight over ten thousand (10,000) pounds or over:	86 dB(A)
(c)	Vehicles with gross weight under ten thousand (10,000) pounds:	80 dB(A)

Speed Limit Zone Over Thirty-Five (35) Miles Per Hour:

(a)	Motorcycles and motor driven cycles:	86 dB(A)
(b)	Vehicles with gross weight over ten thousand (10,000) pounds or over:	90 dB(A)
(c)	Vehicles with gross weight under ten thousand (10,000) pounds:	84 dB(A)

Standing Motor Vehicles. No person shall operate or permit the operation of any motor vehicle with a gross weight rating (GVWR) in excess of (10,000) pounds, or any auxiliary equipment attached to such a vehicle, for a period longer than 10 minutes in any hour while the vehicle is stationary, for reasons other than traffic congestion, within one hundred fifty (150) feet (forty-six (46) meters) of a residential area, between the hours of 10:00 p.m. and 7:00 a.m. the following day.
(Ord. No. 11273, 5-7-02)

Sec. 25-73. Off-road vehicles.

No person shall operate or allow anyone else to operate an off-road vehicle that generates a sound level in excess of seventy (70) dB(A) for a sustained period of thirty (30) seconds which is measured to the boundary line of any adjoining residentially zoned property.

The Police Department is directed to monitor the impact of this ordinance on the quiet enjoyment of its residents located within the City. The Police Department will report to the City Council on the impact of this ordinance in approximately one (1) year after the effective date of the ordinance.
(Ord. No. 13211, § 3, 8-22-17)

Sec. 25-74. Enforcement and penalties.

(a) Where there is a violation of any provision of this article, the city court, in its discretion, may take one (1) or more of the following actions.

(1) A citation fine of fifty dollars ($50.00) for each violation.

(2) A civil penalty not to exceed five hundred dollars ($500.00) for each violation of this article may be adjudged to recover administrative expenses incurred in enforcing this article. A detailed and individualized statement of administration costs incurred by the city shall be submitted to the court for consideration if a civil penalty is sought.

(3) A conditional civil penalty not to exceed five hundred dollars ($500.00) for each separate violation of this article may be assessed by the city judge in the event of an intentional violation of this article conditioned upon the violator purging himself or herself of the civil penalty by not committing another violation of this article for one (1) year following imposition of the conditional civil penalty.

Provided that no combination of fines and civil penalties may exceed five hundred dollars ($500.00) for each violation

(b) In addition to any fine or penalty assessed by city court, violators of this Article will be referred to the appropriate city regulatory board. The board may assess additional penalties, including, but not limited to, suspension or revocation of permits administered by the board. In the case of an entity holding an AMD Permit, more than three (3) violations of this Article in a ninety (90) day period shall result in either the suspension or revocation of the AMD Permit by the Land Development Officer. The action of the Land Development Officer shall be final, subject however to such remedy as any aggrieved party might have at law or in equity.

(c) In the event that a citation is issued because of a venue's violation of any provision of this article and the venue fails to reduce the sound levels to a level not in violation of this article, the venue shall be closed until the next usual opening time for the venue.

(Ord. 11273, 5-7-02; Ord. No. 12850, § 3, 8-26-14; Ord. No. 13211, § 2, 8-22-17)

Editor's note—Formerly § 25-73.

Sec. 25-75. Regulation of crowds and noise on business lots.

(a) It be and is hereby declared to be a nuisance, punishable by a fine of fifty dollars ($50.00) for an owner of commercial property to permit said property to be used in such a way that it is permitted that more than thirty (30) people are gathered on said property outside of any building between the hours of 12:00 a.m. and 5:00 a.m. within two hundred (200) feet of any residence if no owner, employer, or representative of the owner is present to control the adverse effects of the gathering.

(b) It shall be illegal to be a member of a crowd of thirty (30) or more people on an unsupervised business property located within two hundred (200) feet of a residence during the hours of 12:00 a.m. to 5:00 am.

(c) It shall be a complete defense for a business owner that the property is posted with "no loitering" and "no cruising" signs.

(Ord. No. 11761, § 1, 10-25-05; Ord. No. 13211, § 2, 8-22-17)

Editor's note—Formerly § 25-74.

Sec. 25-76. Downtown Amplified Music District Permit application process.

(a) The Land Development Officer may issue AMD Permits to a person who submits an application meeting the requirements of the provisions of this section. The Land Development Officer may adopt rules to implement the requirements of this Article.

(b) Persons desiring a Downtown Amplified Music District Permit shall apply to the Land Development Office and shall supply such information as the Land Development Office may require to identify the land and to determine whether the permit should be granted.

(c) The application shall set forth all actions taken to comply with the noise level limits set forth in Code subsection 25-69(a), the reasons why compliance cannot be feasibly achieved, the reasons for such determination, the actions that have been taken to comply with the noise level limits set forth in Code subsection 25-69(a), a proposed method for complying as nearly as is feasible, and a proposed time schedule for its accomplishment. The application shall be accompanied by a fee in payment of the costs of staff time to process the applications, the costs of staff and outside acoustical consultant time to review the application, and the costs of mailing notices. A separate application shall be filed for each noise source.

(d) A notice of the filing of an application shall be sent by regular U.S. mail to each of the property owners within a minimum of three hundred (300) feet of each property for which an entertainments are permit has been requested. The notice shall state that a copy of the application is available for review at the prior to any action on the application by the Land Development Officer. Said notice will be mailed at least fourteen (14) days prior to any action on the application by the Land Development Officer. The most

recently updated tax rolls for the City of Chattanooga will be the source of ownership information for notice purposes. A notice shall also be published in a daily paper at least fourteen (14) days prior to any action on the application by the Land Development Officer.

(e) Persons objecting to the relief sought by the applicant or interested in the review or determination made by the Land Development Officer may likewise set forth their views and actual evidence in writing, signed by the objectors, and filed with the Land Development Office. The application and objections shall be considered by the Land Development Officer in the review of the application.

(f) In reviewing an application, the Land Development Officer Land Development Officer will consider the following criteria:

(i) proximity of the venue emitting the sound to existing land uses;

(ii) the size and capacity of the venue emitting the sound;

(iii) sound mitigation actions that have been taken to comply with the noise level limits set forth in Code subsection 25-69(a), including, but limited to, building design, landscaping, and buffering;

(iv) the history of noise complaints or violations by either the applicant or the venue emitting the sound, of this Article as verified by the Chattanooga Police Department.

(g) The Land Development Officer may grant a Downtown Amplified Music District Permit if the Land Development Officer finds, after full consideration of all of the facts and the criteria set forth Code subsection 25-75(f) that strict compliance with the noise level limits set forth in Code subsection 25-69(a) will cause practical difficulties for the applicant.

A Downtown Amplified Music District Permit may be subject to any terms, conditions, and requirements as the Land Development Officer deems reasonable to achieve maximum compliance with the provisions of this Article. The terms, conditions and requirements may include, but shall not be limited to, limitations on noise levels and operating hours.

(h) Each Downtown Amplified Music District Permit shall set forth the approved method of achieving maximum compliance and a time schedule for its accomplishment. The Land Development Officer shall consider the magnitude of nuisance caused by the offensive noise, the uses of property within the area of impingement by the noise, the time factors related to study, design, financing and construction of remedial work, the economic factors related to age and useful life of equipment and the general public interest and welfare.

(i) Applications for an annual renewal of a Downtown Amplified Music District Permit shall be granted upon the finding that the applicant has complied with this Article, complied with the time schedule for complying with this Article as nearly as is feasible as set forth in the initial application, and has complied with any terms, conditions, and requirements as the Land Development Officer and/or the Board of Downtown Amplified Music District Permit Appeals deemed reasonable to achieve maximum compliance with the provisions of this Article.

(j) Decisions of the Land Development Officer may be appealed within ten (10) days to the Board of Downtown Amplified Music District Permit Appeals by filing a notice of appeal with the Land Development Office.

(Ord. No. 12850, § 4, 8-26-14; Ord. No. 12864, § 1, 10-14-14; Ord. No. 13211, § 2, 8-22-17)

Editor's note—Formerly § 25-75.

Sec. 25-77. Board of Downtown Amplified Music District Permit Appeals.

(a) There is hereby established a board of three (3) members, to be known as the "Board of Downtown Amplified Music District Appeals."

(b) One (1) member of the board shall reside in City Council District 7, one (1) member of the board shall reside in City Council District 8, and one member shall reside in the City at-large. The Chairperson of the City Council shall appoint the City-at-large board member; the Council Member representing City Council District 7 shall appoint the District 7 board member; and, the Council Member representing City Council District 8 shall appoint the District 8 board member.

(c) The term of all member of the board shall be for one (1) year. Members shall continue to serve until their successors are appointed.

(d) The board shall select its own chairman.

(e) The board shall establish rules and regulations for its own procedure not inconsistent with the provisions of this code. The board shall meet within thirty (30) calendar days after notice of appeal has been received on a date to be determined by the chairman.

(f) The board shall, in every case, reach a decision without unreasonable or unnecessary delay. Each decision of the board shall also include the reasons for the decision. The board shall consider the factors set forth in section 25-75 and the written submissions to the Land Development Officer. The board may affirm, reverse or modify the decision of Land Development Officer. Every decision shall be promptly filed in writing in the Land Development Office. Every decision of the board shall be final, subject however to such remedy as any aggrieved party might have at law or in equity.
(Ord. No. 12850, § 5, 8-26-14; Ord. No. 13211, § 2, 8-22-17)

Editor's note—Formerly § 25-76.

Sec. 25-78. One (1) Year Review.

The Land Development Office is directed to monitor the impact of this ordinance on the quiet enjoyment of residents located within the AMD. Such review shall also include an assessment of the permitting process and shall include, review times, cost of public notice, and any complaints received from business operators and residents. The Land Development Officer shall report to City Council on the impact of this ordinance approximately one (1) year after the effective date of the ordinance.
(Ord. No. 12850, § 6, 8-26-14; Ord. No. 13211, § 2, 8-22-17)

Editor's note—Formerly § 25-77.

Sec. 25-79. Enumeration of prohibited noises in all residential zones outside the downtown amplified music district.

(a) The following acts, among others, are declared to be loud, disturbing, and unnecessary noises in all residential zones outside the Downtown Amplified Music District and shall be considered a violation of this article, but this enumeration shall not be deemed to be exclusive:

(1) **Horns or other signal devices on vehicles.** The sounding of any horn or signal device on any automobile, motorcycle, bus or other vehicle, while not in motion, except as a danger signal if another vehicle is approaching apparently out of control, or while in motion only as a danger signal after or as brakes are being applied and deceleration of the vehicle is intended; the creation by means of such signal device of any unreasonably loud or harsh sound, and the sounding of such device for any unnecessary and unreasonable period of time.

(2) **Amplified music in residential zones.** The playing of any radio, phonograph, or any amplified music in such a manner or with such volume, particularly during the hours between 8:30 p.m. and 10:00 a.m., so as to annoy or disturb the quiet, comfort or repose of persons in any dwelling, or other type of residence or of any persons in the vicinity. This regulation shall not apply to special events permits issued by the City pursuant to City Code Section 24-100 for block parties, festivals, and park reservations, etc.

(3) **Yelling, hawking, etc., in streets**. Yelling, hawking, shouting, hooting, whistling, or singing on the streets or sidewalks or in any residential neighborhoods, during the hours between 8:30 p.m. to 7:00 a.m., in a manner which disturbs the quiet, comfort or repose of persons in any dwelling, or other type of residence.

(4) **Dogs.** The keeping of any dog(s) which, by causing frequent or long, continued noise, disturbs the comfort or repose of any person in any residence. For the purposes of this subsection, "frequent or long, continued noise" shall include, but shall not be limited to, barking at an average rate of ten (10) or more barks per minute over a period of five (5) minutes which can be heard from a distance of one hundred (100) feet or more, but shall not include the barking of any dog(s) responding to an emergency or to a trespasser on the property of the owner of such dog(s).

(5) **Operation of vehicles.** The operation of any automobile, motorcycle, or other vehicle so out of repair or loaded in such manner as to create loud and unnecessary grating, grinding, rattling or other noise in any residential community or parks, during the hours between 8:30 p.m. to 7:00 a.m.

(6) **Construction work.** The erection (including excavation), demolition, alteration or repair of any building in any residential neighborhood, and the excavation of streets in any residential district or section, other than between the hours of 7:00 a.m. and 8:00 p.m., except in cases of urgent necessity in the interest of the public health and safety, and then only with a permit from the building inspector, which may be granted for a period not to exceed thirty (30) days while such emergency continues. If the building inspector determines that the public health and safety will not be impaired by the erection, demolition, alteration or repair of any building or the excavation of a street within the hours of 8:00 p.m. and 7:00 a.m., and further determines that loss or inconvenience would result to any party in interest through delay, the inspector may grant permission for such work to be done within the hours of 8:00 p.m. and 7:00 a.m. upon application made at the time the permit for such work is awarded or during the progress of the work.

(7) **Excessive noise in residential communities.** The creation of any excessive noise on any street in residential neighborhood outside of the Downtown Amplified Music District adjacent to any residence, which disturbs the quiet, comfort or repose of persons in any dwelling, or other type of residence unless otherwise stipulated in this section.

(8) **Refuse collection in residential communities.** Operate a mechanical loader for refuse collection between the hours of 9:00 p.m. and 7:00 a.m. within or adjacent to any residential communities.

(9) **Lawnmowers, leaf blowers, weed-eaters, chain saws, etc.** Operate lawn mowers, leaf blowers, weed-eaters, chain saws or other domestic tools out-of-doors between the hours of 8:30 p.m. and 7:00 a.m. without the express consent of adjoining residential property owners.

(10) **Fireworks.** It shall be unlawful to set off fireworks after the hour of 11:30 p.m., except on Juneteenth, July 4th, and New Year's Eve when the hours prohibited shall be 12:30 a.m. until 8:00 a.m.

(11) No person shall operate or permit the operation of any sound amplification system, including, but not limited to, any radio, tape player, compact disc player, loud speaker, or any other electrical device used for the amplification of sound so that the sound is plainly audible at a distance of one hundred (100) feet or more and on someone else's property located in a Residential neighborhood outside of the Downtown Amplified Music District. This section shall not apply to events attended by more than one thousand (1,000) people, athletic events, nor to sounds emanating from a Downtown Amplified Music District outside of the residential neighborhood.

(b) The provisions of this section shall not apply to any vehicle of the city or other governmental entity while engaged upon necessary public business, to excavations or repairs of bridges or streets by or on behalf of the city during the night hours, where the public welfare and convenience renders it necessary to perform the work at night.
(Ord. No. 13967, § 1, 4-18-23)

Sec. 25-80. Reserved.

Editor's note—Sections formerly reserved as §§ 25-72—25-80 were repealed by implementation of Ordinance No. 11273, adopted 5-7-02 and former §§ 25-82 through 25-85 were repealed to comply with the Municipal Court Reform Act of 2004, T.C.A. §§ 16-18-301[, 16-18-]312 by Ordinance No. 12056, adopted on 12-18-07 and the remaining section in Division 1 was renumbered.
(Ord. 11273, 5-7-02; Ord. No. 11761, § 1, 10-25-05)

ARTICLE IV. OFFENSES AGAINST MORALS*

DIVISION 1. GENERALLY

Sec. 25-81. Reserved.

Sec. 25-82. Unlawful sale or storage of alcoholic beverages.

(a) It shall be unlawful for any person to sell wine, beer, ale or any other alcoholic beverage or mixed drink containing alcohol in any establishment unless the establishment is operating in compliance with all laws governing the sale of alcoholic beverages in such establishments.

(b) It shall be unlawful for any person in the city to possess or transport, with the intent to re-distribute or re-sell any alcoholic or intoxicating liquor which does not have a proper State of Tennessee revenue stamp affixed thereto.

(c) It shall be unlawful for any person in the city, unless authorized by law to do so, to have or keep in stock, in any warehouse or place of business or other place, any alcoholic or intoxicating liquors, including wine, ale or beer, intended for present or future sale of the beverage, either wholesale or retail, and whether intended to be sold for delivery at the place of sale or to be shipped or otherwise transported for delivery at another place.
(Ord. No. 9914, § 1, 7-13-93)

Secs. 25-83—25-95. Reserved.

DIVISION 2. PROSTITUTION AND RELATED OFFENSES†

Sec. 25-96. Definitions.

As used in this division, the following words and terms shall have the following meanings:

Assignation shall be construed to include the making of any appointment or engagement for prostitution or for the purpose of fellatio or cunnilingus, or any act in furtherance of such appointment or engagement.

***Cross references—**Alcoholic beverage offenses involving minors, loitering and gambling, § 5-48; immoral acts prohibited at alcoholic beverage premises, § 5-54; immoral acts prohibited at brown bagging clubs, § 5-167; gambling prohibited on playing of billiards or pool, § 6-48; dangerous dogs; § 7-81 et seq.

†**Cross references—**Using hotel for purposes of prostitution prohibited, § 11-195; massage technicians and parlors, § 11-306 et seq.

Patronizing shall be construed to include the solicitation or hiring of another person with the intent that the other person engage in prostitution, entering or remaining in a house of prostitution for the purpose of engaging in sexual activity.

Promoting prostitution shall be construed to include:

(1) Owning, controlling, managing, supervising or in anyway keeping, alone or in association with others, a business for the purpose of engaging in prostitution, or a house of prostitution;

(2) Encouraging, inducing, or otherwise purposely causing another to become a prostitute;

(3) Soliciting a person to patronize a prostitute;

(4) Procuring a prostitute for a patron; and/or

(5) Paying, receiving, or agreeing to receive any benefit for engaging in any of the activities defined as the unlawful act of promoting prostitution.

Prostitution shall be construed to include the giving or receiving of the body for sexual intercourse for hire (or for licentious sexual intercourse without hire).
(Code 1986, § 25-96; Ord. No. 9915, § 1, 7-13-93)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 25-97. Prohibited acts.

No person in the city shall:

(1) Engage in prostitution.

(2) Aid or abet prostitution.

(3) Procure or solicit for purposes of prostitution.

(4) Keep or set up a house of ill fame, brothel or bawdy house.

(5) Receive any person for purposes of assignation or prostitution into any vehicle, conveyance, place, structure or building.

(6) Permit any person to remain for the purpose of assignation or prostitution in any vehicle, conveyance, place, structure or building.

(7) Lease or rent, or contract to lease or rent, any vehicle, conveyance, place, structure or building or part thereof, knowing or with good reason to know that it is intended to be used for any of the purposes herein prohibited.

(8) Attempt to do any of the acts prohibited by this section.

(Code 1986, § 25-97)

State law reference—Prostitution, T.C.A., §§ 39-13-512—9-13-516.

Chapter 26

PARKS AND PLAYGROUNDS*

Article I. In General

Sec. 26-1. Jurisdiction of mayor; controlled access.
Sec. 26-2. Disturbing posted regulations and notices.
Sec. 26-3. Operation of vehicles in parks.
Sec. 26-4. Reckless speed.
Sec. 26-5. Certain vehicles prohibited.
Sec. 26-6. Pasturing, driving animals on park property; trespasses by stock.
Sec. 26-7. Animals in parks.
Sec. 26-8. Where walking, standing, sitting prohibited; forcing entry or exit.
Sec. 26-9. Use of seats and swings, other facilities.
Sec. 26-10. Injuries to plants, property.
Sec. 26-11. Molesting birds, animals, etc.
Sec. 26-12. Erecting of signs and other structures; posting advertising.
Sec. 26-13. Permit—Required; permit fee.
Sec. 26-14. Same—Application procedure; grounds for denial; other charges.
Sec. 26-15. Reserved.
Sec. 26-16. Use of toilet facilities.
Sec. 26-17. Other acts prohibited.
Sec. 26-18. Use of Coolidge Park by minors.
Sec. 26-19. Curfew; unlawful to be on park lands after curfew; exceptions.
Sec. 26-20. Admission fees for aerobic and/or similar exercise programs.
Sec. 26-21. Petty cash fund for softball activities.
Sec. 26-22. Non-motorized watercraft public launch access.
Sec. 26-23. Rental Rates for Municipal Parks.
Sec. 26-24. Community center rentals.
Sec. 26-25. Swimming pools.
Sec. 26-26. Day camps.
Sec. 26-27. Sports Programs and Field Charges.
Sec. 26-28. Softball Field Rentals.
Sec. 26-29. Skate Park.
Sec. 26-30. Champion's Club.
Sec. 26-31. Fitness Center.
Sec. 26-32. Therapeutic Recreation.
Sec. 26-33. Outdoor.
Sec. 26-34. Arts and Civic Center Rentals.
Sec. 26-35. Van use by city departments.

Article II. Cemetery Park

Sec. 26-36. Established; control.
Sec. 26-37. Regulations authorized.
Sec. 26-38. Permit for interment required.

***Cross references—**Amusements, Ch. 6; beautification, Ch. 9; littering in parks § 18-149; anti litter code, § 18-141 et seq.; playing games near improved premises restriction, § 25-16.

Sec. 26-39. Who may be interred; transfer of lots.
Sec. 26-40. Use of potter's field prohibited.
Sec. 26-41. Lot regulations.
Secs. 26-42—26-55. Reserved.

Article III. Miller Park

Division 1. Generally

Sec. 26-56. Definition.
Sec. 26-57. Rules and regulations.
Sec. 26-58. Rental rates and fees for Miller Park.
Secs. 26-59—26-90. Reserved.

Article IV. Municipal Golf Courses

Sec. 26-91. Fee schedule—Municipal golf courses.
Secs. 26-92, 26-93. Reserved.
Secs. 26-94—26-149. Reserved.

Article V. Parks and Outdoors Advisory Committee

Sec. 26-150. Definitions.
Sec. 26-151. Board Created; Members.
Sec. 26-152. Term; Officers.
Sec. 26-153. Compensation.
Sec. 26-154. Powers and Duties.

ARTICLE I. IN GENERAL

Sec. 26-1. Jurisdiction of mayor; controlled access.

(a) The mayor shall have charge and general supervision over all parks, playgrounds, public squares and zoological exhibits belonging to the city.

(b) The mayor shall have the authority to regulate the use of city recreational facilities so as to give priority to city residents and their guests for first access to those facilities during those hours when the demand for use of such facilities exceeds the availability or supply of such facilities. This subsection (b) shall be enforced only as to adults over eighteen (18) years of age and nothing in this subsection shall affect the right of minors under eighteen (18) years of age to access to city recreational facilities.
(Code 1986, § 26-1; Ord. No. 9654, § 115, 1-6-92)

Charter reference—Departments of city government, jurisdiction thereof, § 8.4.

Sec. 26-2. Disturbing posted regulations and notices.

It shall be unlawful for any person to deface or tear down any regulations or notices posted in parks and playgrounds by the mayor or his designee.
(Code 1986, § 26-2; Ord. No. 9654, § 116, 1-6-92)

Sec. 26-3. Operation of vehicles in parks.

It shall be unlawful for any person to drive or propel any vehicle, or drive any horse or other animal in, over or through any park in the city, except along and upon park drives, parkways and park boulevards, or for any person to ride any bicycle, tricycle or toy vehicle through any park, except along and upon the park drives, parkways, park boulevards and upon paths set apart and designated as "bicycle paths."
(Code 1986, § 26-3)

Cross references—Motor vehicles and traffic, Ch. 24; vehicles for hire, Ch. 35.

Sec. 26-4. Reckless speed.

It shall be unlawful for any person to drive or propel any vehicle, to ride or drive any horse or other animal or to ride any bicycle or tricycle at a careless, indifferent or reckless speed through any park or playground in the city.
(Code 1986, § 26-4)

Cross reference—Motor vehicles speed regulations generally, § 24-241 et seq.

Sec. 26-5. Certain vehicles prohibited.

It shall be unlawful for any person in the city to drive or propel along or over any park drive, parkway or park boulevard any heavily laden vehicle, or any vehicle carrying or ordinarily used in carrying merchandise, goods, tools, material or rubbish, or any market wagon, farm wagon, milk wagon, dirt cart, moving van, dray or truck, or, except in Citizens' Cemetery Park, any hearse or any vehicle carrying the body of a deceased person or any carriage or other vehicle being a part of a funeral procession, going to or returning from a cemetery.
(Code 1986, § 26-5)

Sec. 26-6. Pasturing, driving animals on park property; trespasses by stock.

It shall be unlawful for any person to pasture any horse or other animal on park property or to drive stock of any kind through or upon park property or to permit stock of any kind to trespass upon or damage park property.
(Code 1986, § 26-6)

Cross reference—Animals and fowl, Ch. 7.

Sec. 26-7. Animals in parks.

(a) Running at Large. It shall be unlawful for any owner or custodian to allow or permit any animal to run at large in any park or to enter any of the lakes, ponds, fountains or streams therein, excluding any animal parks.

(b) Unsanitary Conditions. The owner or custodian of any animal shall be responsible for the removal of solid waste deposited by said animal within City greenways and parks. Enforcement of this provision shall be by enforcement action taken by City Police Officers, Animal Control Officers, or Parks Department Special-Commissioned Officers. This subsection shall not apply to guide dogs and other service animals.

(c) Posting. Notwithstanding the provisions of subsections (a) and (b) above, the Administrator of the Department of Public Works may post some parks or areas within parks prohibiting such animals.
(Ord. No. 12045, § 1, 11-6-07; Ord. No. 12736, § 5, 7-2-13)

Cross reference—Animals and fowl, Ch. 7.

Sec. 26-8. Where walking, standing, sitting prohibited; forcing entry or exit.

It shall be unlawful for any person to walk, stand or sit on any border, flower bed, monument, vase, fountain, railing or fence in any park or playground in the city or to enter or leave a park or playground by climbing over or forcing a way through any fence or gate therein.
(Code 1986, § 26-8)

Sec. 26-9. Use of seats and swings, other facilities.

It shall be unlawful to sleep upon, lie upon or overturn any seat or swing or other appliance of any park or playground. It shall be unlawful for men to occupy any seat or location designated or set apart for women and children.
(Code 1986, § 26-9)

Sec. 26-10. Injuries to plants, property.

It shall be unlawful for any person to remove, destroy, mutilate or deface any structure, monument, statue, vase, fountain, wall, fence, vehicle, bench, tree, shrub, fern, plant, flower or other property in any park or playground in the city.
(Code 1986, § 26-10)

Sec. 26-11. Molesting birds, animals, etc.

It shall be unlawful in any park or playground in the city to take or molest any bird, fish or frog or any live animal or bird egg, or in any way to interfere with bird nests, or with any cage, box, place or enclosure for the protection of any bird, fish of any live animal.
(Code 1986, § 26-11)

Sec. 26-12. Erecting of signs and other structures; posting advertising.

It shall be unlawful for any person to place or erect any structure, sign, bulletin board or advertising device of any kind whatever in any park or playground in the city or to attach any notice, bill, poster, sign, wire, rod or cord to any tree, shrub, fence, railing, post or structure belonging to any park or playground; provided that, the mayor or his designee may permit the erection of temporary decorations on occasions of public celebrations or holidays.
(Code 1986, § 26-12; Ord. No. 9654, § 116, 1-6-92)

Cross reference—Advertising generally, Ch. 3.

Sec. 26-13. Permit—Required; permit fee.

(a) It shall be unlawful for any person to hold any planned and organized public assembly to include such events as parades, meetings, weddings, rallies, special events, shows, races, or other events involving more than fifteen (15) individuals in any park in the city except by a permit issued by the Administrator of Public Works.

(b) No event for which a permit is required shall exceed three (3) hours in duration or end later than 10:00 p.m.

(c) No permit application shall be considered unless the applicant shall have paid at the time for filing a permit application the required application fee of twenty-five dollars ($25.00).
(Code 1986, § 26-13; Ord. No. 9654, § 116, 1-6-92; Ord. No. 12039, § 1, 10-23-07; Ord. No. 12736, § 5, 7-2-13)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 26-14. Same—Application procedure; grounds for denial; other charges.

(a) Applications for permits required by section 26-13 shall be submitted to the Administrator of Public Works, in writing on a form provided by the Administrator of Public Works so as to be received at least ten (10) but not more than thirty (30) days (exclusive of Saturdays, Sundays and holidays) in advance of any proposed event. Permit applications shall be received only during the hours of 8:00 a.m. to 4:00 p.m., Monday through Friday, holidays excepted. All applications shall be deemed granted unless denied by the mayor or his designee in writing within five (5) days (exclusive of Saturdays, Sundays and holidays) of receipt for one (1) of the reasons set forth in paragraph (b), which shall be stated in the notice of denial.

(b) Permit applications for events shall be processed in order of receipt, and the use of the park shall be allocated in order of receipt of fully executed applications; provided that, a permit may be denied in writing by the mayor or his designee upon any of the following grounds:

(1) An event has been initiated and previously scheduled by the program coordinator for the same date and time prior to receipt of the permit application.

(2) A fully executed prior application for the same date and time has been received and a permit has been or will be granted authorizing the program.

(3) The proposed event is of such a nature or duration that it cannot reasonably be accommodated at the place, date or time applied for.

(4) It reasonably appears from all known circumstances that the proposed meeting or special event will present an immediate clear and present danger of physical harm to persons or property in or adjacent to the park.

(5) The permit applicant has not complied or cannot comply with applicable licensure requirements, ordinances or regulations of the city concerning the sale or offering for sale of any goods or services.

(6) The application proposes activities contrary to any of the provisions of this section or any ordinance of the city, or statute of the United States or the state.

(7) The permit application is not fully completed and executed.

(8) The applicant has not tendered the required application fee with the application or has not tendered the required user fee, indemnification agreement, insurance certificate, or security deposit, if required.

(9) The permit application contains a material falsehood or misrepresentation.

(10) The applicant is legally incompetent to contract or to sue or be sued.

(11) The applicant or the person on whose behalf the application for permit was made has on prior occasions damaged or littered city park property and has not paid in full for such damage or has other outstanding and unpaid debt to the city.

(c) In the event a permit is denied under paragraph (b)(1), (2) or (3), the mayor or his designee shall propose to the applicant an alternative site under the management and control of the department of public utilities, grounds and buildings, if available, for the proposed program.

(d) The permit application required by this paragraph shall contain the following provisions as a minimum:

(1) Name and address of person, persons and organizations sponsoring the proposal program;

(2) Date and time desired;

(3) Brief description of the nature of the program, including the names of all persons expected to speak if a meeting, as defined in section 26-57, is proposed;

(4) The facilities, and/or equipment desired to be used;

(5) An estimation of the number of persons expected to attend the program;

(6) An agreement of the applicant or other responsible person or persons to defend and indemnify the city for claims arising out of the program and/or to provide proof of public liability insurance for the program if deemed desirable by the mayor or his designee with respect to the particular program proposed.

(7) An agreement waiving liability on the part of the city for losses or injuries to the person or property of the applicant and/or sponsoring organizations;

(8) An agreement that no fee or charge for attendance shall be made, advertised or solicited during the program by any person under the auspices or control of the applicant or sponsoring organization;

(9) An agreement to provide at the expense of the applicant or sponsoring organization such additional policemen and laborers as may be deemed necessary for the program in the discretion of the mayor or his designee.

(e) The applicant shall pay, in advance, in cash, by cashier's check, or by credit card, a nonrefundable user charge to the city for the use of special equipment at the event and any rental fee for the specific area set forth in this Chapter.

(Code 1986, § 26-14; Ord. No. 9654, §§ 2, 116, 1-6-92; Ord. No. 12039, § 2, 10-23-07; Ord. No. 12736, § 5, 7-2-13)

Sec. 26-15. Reserved.

Editor's note—Ord. No. 13386, § 11, adopted Oct. 23, 2018, repealed § 26-15, which pertained to playing of games and derived from Code 1986, § 26-15; Ord. No. 9654, § 117, 1-6-92.

Sec. 26-16. Use of toilet facilities.

It shall be unlawful for any person to void excrement or urine in any park or playground except in facilities specifically provided for such purpose, or to use or enter any such facility established exclusively for persons of the opposite sex.
(Code 1986, § 26-16)

Sec. 26-17. Other acts prohibited.

It shall be unlawful in any park or playground for any person to:

(1) Carry firearms;

(2) Make any fire;

(3) Have any alcoholic beverage without the approval of the Administrator of the Department of Public Works;

(4) Sell, offer or expose for sale any goods or wares, except under a written permit from the Administrator of the Department of Public Works;

(5) Post or display any sign, placard, flag or advertising device without such permit;

(6) Solicit any subscription or contribution;

(7) Bathe or fish, with the exception of East Lake Park where fishing is allowed;

(8) Follow a person in or about a public place; or

(9) Engage in a course of conduct or repeatedly commit an act that alarms or seriously annoys another person and that serves no legitimate purpose.

(Code 1986, § 26-17; Ord. No. 10911, § 1, 9-21-99; Ord. No. 12930, §§ 2, 3, 3-24-15; Ord. No. 13585, § 2, 7-28-20)

Sec. 26-18. Use of Coolidge Park by minors.

(a) It shall be unlawful for any person under the age of eighteen (18) to use Coolidge Park between the hours of 6:00 p.m. and 6:00 a.m.; provided, that the provisions of this section shall not apply when a minor is accompanied by his or her parent, guardian or other adult person over the age of twenty-one (21) having the lawful care and custody of the minor;

(b) It shall be unlawful for any person having the legal care and custody of any person under the age of eighteen (18) years of age to allow or permit such minor to be in Coolidge Park in violation of this Section except in circumstances set out in this Section.
(Ord. No. 12493, 3-29-11)

Sec. 26-19. Curfew; unlawful to be on park lands after curfew; exceptions.

It shall be unlawful for any person to remain upon any public park in the city at night after the hour of 10:30 p.m. prevailing time, unless such person is attending an organized athletic or social event in areas

which are lighted for such purposes and which events have been previously scheduled through the park director of that park, or through the head of the recreation department, and which events are supervised by such park director or a designated employee of such department.
(Code 1986, § 26-19; Ord. No. 9654, § 117, 1-6-92)

Sec. 26-20. Admission fees for aerobic and/or similar exercise programs.

In order to defray the necessary cost and expense of operating aerobic and/or similar exercise programs at facilities operated by the City of Chattanooga, the city council may from time to time establish by resolution such admission fees as it deems necessary for aerobic and/or similar exercise programs offered to the public.
(Ord. No. 9478, 11-6-90)

Sec. 26-21. Petty cash fund for softball activities.

A petty cash fund may be maintained only during the softball season, entitled "Softball Program Account," for the Department of Youth and Family Development in an amount not to exceed Three Thousand Dollars ($3,000.00). At the conclusion of each season, any amounts remaining in such account shall be returned to the General Fund.
(Ord. No. 11008, § 1, 5-9-00; Ord. No. 12930, § 4, 3-24-15)

Sec. 26-22. Non-motorized watercraft public launch access.

(a) *Launch access permit.*

(1) It shall be unlawful for anyone to operate a business for non-motorized watercraft (canoes, kayaks or paddle boards and related accessories) services for use at public boat launch points without having secured a permit ("Launch Access Permit"). An approved Launch Access Permit shall grant to the business the nonexclusive right to provide launch access for water-based activities at the following designated public boat launch locations.

a. Coolidge Park - Market Street Bridge/TN River

b. Coolidge Park - Tremont Street/TN River

c Rivermont Park boat ramp/TN River

d. Sterchi Farm paddle launch/South Chickamauga Creek

e. Greenway Farm North/North Chickamauga Creek

f. Greenway Farm South/North Chickamauga Creek

g. Hixson - Longview Drive/North Chickamauga Creek

(collectively, the "Launch Access Points").

(2) A Launch Access Permit for use at the Launch Access Points shall not be granted until an application and submission of required documents and payment is completed. Applications shall be made available by the Open Spaces Division.

(3) A completed application for a Launch Access Permit shall include an equipment maintenance plan, monitoring plan (for current water level, other river conditions and inclement weather), rescue plan for assisting and rescuing people who are unable to safely return and commitment to require a mandatory release of liability waiver signed by all participants.

(b) *Fee*.

(1) Each non-motorized watercraft business shall pay to the Open Spaces Division a non-refundable flat fee of two hundred fifty dollars ($250.00) annually for the period between January 01 through December 31, as compensation for the Launch Access Permit and for the privilege of providing services at the Launch Access Points.

(2) The Launch Access Permit fee should be submitted to the Director of the Open Spaces Division.

(3) The fee for Launch Access Permits may be changed by the Chattanooga City Council as deemed necessary.

(c) *Operations and maintenance generally.*

(1) Each business shall continuously have on file with the City a statement fully disclosing those natural persons owning, leasing or having an ownership or leasehold interest in the business operation, and those natural persons who shall be principally responsible for its operation or who in any manner assist with the business operation.

(2) All equipment shall be maintained so as to promote an attractive appearance and to ensure safety of operation and quality of services.

(3) During the term of the Launch Access Permit, businesses shall be allowed access to the Launch Access Points during normal park hours.

(4) No business shall alter or deter normal use of water access to other individuals, groups, programs, tours or events. The Launch Access Points shall remain publicly open facilities at all times.

(5) All businesses and their designated employees shall be required to obtain a CPR certification or water safety certification recognized by the American Red Cross. Proof of certification must be provided with the permit application and upon request.

(6) There shall be no storage of equipment or materials at the Launch Access Points.

(7) The sale or rental of equipment related to water-based activities shall not be permitted on City property or at the Launch Access Points.

(d) *Insurance*. On or before the date of execution of the Launch Access Permit, the business, at its own cost and expense, shall provide the Director of the Open Spaces Division with the evidence of insurance that complies with the insurance provisions contained in the City's Standard Terms and Conditions.

(e) *Permit Suspension and Revocation*. A Launch Access Permit issued under the provisions of this section may be revoked or suspended by the Director of the Open Spaces Division if the permittee thereof:

(1) Violates any of the provisions of this section; or

(2) Changes its address, company name, officers, ownership or otherwise makes any material change in the company or its identity from that set forth upon the initial application for a Launch Access Permit.

(f) *Civil Penalty*. A civil penalty of fifty dollars ($50.00) per violation shall be imposed for a violation of this section. Operating without a permit may incur a penalty of up to fifty dollars ($50.00) per violation.

(g) *Passenger Vehicle for Hire Board*. The Passenger Vehicle For Hire Board ("PVH Board") is hereby designated to hear and decide all appeals from the Director of the Open Spaces Division related to the suspension, revocation or denial of a Launch Access Permit. The PVH Board shall hear such appeals at the time and place fixed by the PVH Board for its regular monthly meeting or at such other meetings as may be called by the Chairman or established by the PVH Board. The City Attorney or his/her designated

representative shall be present at each meeting. The PVH Board membership, jurisdictional power and board procedures are set forth in City Code Section 35-17 and adopted herein by reference, which shall be supplemented by the authority to review applications for Launch Access Permits in this Section.
(Ord. No. 13457, § 1, 5-7-19)

Sec. 26-23. Rental Rates for Municipal Parks.

City sponsored events require the approval of the Mayor or Department of Parks & Outdoors Administrator or his designee. The following rental rates and fee schedule shall apply to events in these designated municipal parks:

Signature Park Event Reservations:

- Must secure a License Agreement through Parks & Outdoors Special Events Division.
- Refundable damage deposit will be required for all events.
- Rental fees and rates are detailed below.
- Event duration is a maximum of three (3) consecutive days without express written approval by the Department of Parks & Outdoors Administrator or his designee.

Category 1: Events with 15 — 500 attendees.

Category 2: Events with 501 or more attendees and/or alcohol will be served or sold and/or planned activities are expected to damage park grounds.

	Category 1	Category 1	Category 2	Category 2
Venue	**Deposit**	**Daily Rental**	**Deposit**	**Daily Rental**
Coolidge Park	$500.00	$500.00	$1,000.00	$1,000.00
Miller Park *(Includes EPB Community Stage and full lawn access)*	$500.00	$500.00	$1,000.00	$1,000.00
Miller Park Pavilion Projector and Screen Rental	N/A	$50.00	N/A	$50.00
Renaissance Park	$500.00	$500.00	$1,000.00	$1,000.00
Ross's Landing *(Includes city pier, space west of Olgiati Bridge, Ross's Landing, and River Terrace)* *(Parking lot and metered space usage must be coordinated through Republic Parking and CARTA)*	$500.00	$500.00	$1,000.00	$1,000.00
Chattanooga Green	$500.00	$500.00	$1,000.00	$1,000.00
Walnut Street Bridge *(bridge must remain open to the public)*	$500.00	$500.00	$1,000.00	$1,000.00
Event Setup/Teardown *(for available days before and after event)*	N/A	50% Rate	N/A	50% Rate

Signature Park Additional Event Reservations:

- Deposits are refundable with return of undamaged and clean facility.
- Renter may have to provide a certificate of insurance naming the City of Chattanooga as additionally insured and off-duty police officers if required.
- Facility Use Agreement must be completed and submitted to the Special Events Division.

Venue	Deposit	Minimum Rental	Per Hour	Daily Rental
Chattanooga Green Race/Walk Registration Only (No more than one hundred (100) square feet occupied)	$100.00	N/A	N/A	$100.00

Coolidge Park Carousel Party Room (includes up to 50 free carousel ride tickets)	$100.00	$150.00	$75.00	N/A
Coolidge Park Walker Pavilion	$100.00	$150.00	$75.00	$600.00
Coolidge Park Race/Walk Registration Only (No more than one hundred (100) square feet occupied)	$100.00	N/A	N/A	$100.00
Miller Park Pavilion Hourly	$100.00	$300.00	$150.00	N/A
Renaissance Park Race/Walk Registration Only (No more than one hundred (100) square feet occupied)	$100.00	N/A	N/A	$100.00
Renaissance Park Small Park Grounds	$100.00	$100.00	$50.00	N/A
Renaissance Park Pavilion	$100.00	$100.00	$50.00	$250.00
Ross's Landing Race/Walk Registration Only (No more than one hundred (100) square feet occupied)	$100.00	N/A	N/A	$100.00
Event Services and Activities	**Daily**	**Per Hour**	**Per Person**	
Carousel Ride Fee (children under 2 years of age free with paying adult)	N/A	N/A	$1.00	
Event Setup/Teardown (for available days before and after event)	50% Rate	N/A	N/A	

Specialty Park Event Reservations:

• Deposits are refundable with return of undamaged and clean facility.

• Renter may have to provide a certificate of insurance naming the City of Chattanooga as additionally insured and off-duty police officers if required.

• Facility Use Agreement must be completed and submitted to the Special Events Division.

Category 1: Events with 15 - 500 attendees.

Category 2: Events with 501 or more attendees and/or alcohol will be served or sold and/or planned activities are expected to damage park grounds.

	Category 1	*Category 1*	*Category 2*	*Category 2*
Venue	**Deposit**	**Daily Rental**	**Deposit**	**Daily Rental**
Blue Goose Hollow Grounds	$250.00	$250.00	$500.00	$500.00
East Lake Park Grounds	$250.00	$250.00	$500.00	$500.00
Greenway Farm Park Grounds	$250.00	$250.00	$500.00	$500.00
Greenway Farm Conference Center Only	$100.00	$450.00	$200.00	$750.00
Heritage Park Grounds	$250.00	$250.00	$500.00	$500.00
Martin Amphitheatre	$250.00	$250.00	$500.00	$500.00
Riverview Park Grounds	$250.00	$250.00	$500.00	$500.00
All Specialty Park Locations (not including Greenway Conference Center) - Race/Walk Registration Only	$100.00	$100.00	N/A	N/A
Specialty Park Other Fees	**Deposit**	**Per Hour**	**Minimum**	**Per Year**
Greenway Farm Conference Center Only - Hourly	$100.00	$75.00	$150.00	N/A

	Category 1	*Category 1*	*Category 2*	*Category 2*
Community Garden Large Plot	$100.00	N/A	$70.00	$70.00
Community Garden Small Plot	$100.00	N/A	$50.00	$50.00

Neighborhood Park Reservations:

- Rates apply to park grounds or outdoor pavilions separately.
- Deposits are refundable with return of undamaged and clean facility.
- Renter may have to provide a certificate of insurance and off-duty police officers if required.
- Facility Use Agreement must be completed and submitted to the Special Events Division.

Venue	**Deposit**	**Daily Rental**
All locations not listed as signature or specialty park - less than 150 participants	N/A	$25.00
All locations not listed as signature or specialty park - 150 or more participants	$100.00	$150.00

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13871, § 1, 7-19-22; Ord. No. 13928, § 1, 12-20-22; Ord. No. 14101, § 1, 4-9-24)

Editor's note—Ord. No. 12930, § 5, adopted March 24, 2015, amended the title of § 26-23 to read as set out herein. Previously § 26-23 was titled fee schedule—waterfront area.

Sec. 26-24. Community center rentals.

The following rental rates and fee schedule shall apply to events and instructional classes held in community centers.

Instructional class and special event fees will vary by class/event type and must be approved by the Department of Community Development Administrator or his designee.

Community Center Rentals	**Per Hour**	**Flat Fee**
Multi-Purpose Room (During Operating Hours - Schedule Permitting) (2 Hours)	N/A	$100.00
Multi-Purpose Room (During Operating Hours - Schedule Permitting) (Additional Hours)	$50.00	N/A
Multi-Purpose Room (After Operating Hours) (2 Hours)	N/A	$130.00
Multi-Purpose Room (After Operating Hours) (Additional Hours)	$65.00	N/A
Gymnasiums (2 hours)	N/A	$200.00
Gymnasiums (Additional Hours)	$100.00	N/A
Community Center/ Senior Center Instructional Classes	**Per Class**	**Per Event**
Fee-Based Classes (Varies by Class Type)	$0.00 — $500.00	N/A
Special Events (Varies by Event Type)	N/A	$0.00 — $500.00

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13928, § 1, 12-20-22)

Editor's note—Ord. No. 12930, § 5, adopted March 24, 2015, set out provisions for use herein as § 26-24. Prior to the adoption of those provisions § 26-24 was renumbered by Ord. No. 12889, § 1, adopted January 6, 2015, as § 26-91.

Sec. 26-25. Swimming pools.

The following rates shall apply to usage of city swimming pools:

Swimming Pool Rentals	Flat	Per Hour
Outdoor Pool Rental (2 Hours) (Maximum 50 Guests)	$300.00	N/A
Outdoor Pool Recurring Summer Rental Group Rate per Contract	N/A	$50.00
Outdoor Pool Swim Team Summer Rental	$2,000.00 — $2,500.00	N/A
Outdoor Pool Swim Meet Daily Rental Fee	$500.00 — $750.00	N/A
Indoor Pool Rental (2 Hours) (Maximum 25 Guests)	$100.00	N/A
Indoor Pool Rental (Additional Hours)	N/A	$50.00
Spray Park Rental (Operating Hours) (2 Hours) (Max 25 Guests)	$100.00	N/A
Spray Park Rental (Non-Operating Hours) (2 Hours) (Max 50 Guests)	$300.00	N/A
Swimming Pool Usage Fees	**Rate**	
Indoor/Outdoor Open Swim for City Residents (Adults and Children)	Free	
Warner Park Pool & Spray Park Entry Fee (Under Age 2 Free)	$3.00	
Water Fitness Classes (Per Person, Per Class)	$2.00	
Swim Lessons (Per Person, Per Session)	$35.00	
Swim Team (Per Person, Per Month)	$35.00	
Swim Team Clinic (Per Person, Per Week)	$10.00	

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13184, 5-30-17; Ord. No. 13928, § 1, 12-20-22)

Sec. 26-26. Day camps.

The following rates shall apply to day camps held at city facilities.

Scholarships are available to children who qualify for free or reduced lunch through Hamilton County Schools. A scholarship fee applies.

Day Camps	Early Fee	Regular Fee
Summer Camp (8 Weeks) (Fee Includes Lunch)	$250.00	$300.00
Summer Camp (Scholarship Fee)	N/A	$40.00
Summer Camp (Fee Per 2 Week Session)	N/A	$75.00
School Break Camps (Fall Break, Spring Break, Winter Break)	N/A	$75.00
Art Camps	N/A	$75.00
Parks & Outdoors Camps	N/A	Free

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13184, 5-30-17; Ord. No. 13319, § 1, 6-12-18; Ord. No. 13928, § 1, 12-20-22)

Sec. 26-27. Sports Programs and Field Charges.

The following rental rates and fee schedule shall apply to city sports programs and use of fields:

Sports Programs	Fee
Adult Leagues (Per Team) (Varies by Sport)	$50.00 — $500.00
Washington Hills Football Field Rentals	
Semi-Professional Games	$500.00
High School Games	$350.00
Middle School Games	$350.00
Youth League Games	$150.00
Tyner, Boulevard, & Montague Parks Field Rentals	

Tournaments and Special Events	$500.00
Practice Session (2 Hours) (Per Field)	$50.00
Practice Session (Each Additional Hour) (Per Field)	$25.00

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13319, § 1, 6-12-18; Ord. No. 13928, § 1, 12-20-22)

Sec. 26-28. Softball Field Rentals.

The following rental rates and fee schedule shall apply to usage of city softball field facilities:

	Fee
Warner Park (Excluding Frost Stadium)	
DEPOSIT - Per softball complex whether you book 1 or 5 of the fields at the same complex. (Refundable) (All Criteria MUST be met for refund)	$250.00
MULTI COMPLEX DEPOSIT - If you book fields at more than 1 complex you qualify for a multi complex Deposit- (Refundable) (All Criteria MUST be met for refund)	$500.00
Middle School and High School Field Rental (Per Day)	$100.00
Single Day Field Rental (Turf Fields) (per field/per day)	$175.00
Single Day Field Rental (Natural Fields) (per field/per day)	$150.00
Tournament Fee (Turf Fields) (Per Day, Per Field) (Subject to Contract Stipulations)	$250.00
Tournament Fee (Natural Fields) (Per Day, Per Field) (Subject to Contract Stipulations)	$200.00
Parking (Fee Set with Prior Written Approval from Director)	$1.00—$25.00
Painting Fields with Robot (per field)	$500.00
Bleacher Rental (Per Set, Per Event) (Guest Pickup)	$200.00
Scoreboard Operator (per game, per field)	$25.00
Scoreboard Operator (per day, per field)	$100.00
National Scope Tournament Subject to contract stipulations, per field, per day) (includes field maintenance)	$0.00
-NOTE: A National Scope Tournament is defined as a tournament registering 40 (forty) or more teams with home fields more than 80 miles from Recreation Admin Office in Chattanooga, TN.	
Frost Stadium	
DEPOSIT - Per softball complex whether you book 1 or 5 of the fields at the same complex. (Refundable) (All Criteria MUST be met for refund)	$250.00
MULTI COMPLEX DEPOSIT - If you book fields at more than 1 complex you qualify for a multi complex Deposit- (Refundable) (All Criteria MUST be met for refund)	$500.00
Daily Rental (Per Day)	$500.00
Scoreboard Operator (per game)	$25.00
Scoreboard Operator (per day)	$100.00
Paint Fields with Robot	$500.00
The Summit Ball Field Complex	

	Fee
DEPOSIT - Per softball complex whether you book 1 or 5 of the fields at the same complex. (Refundable) (All Criteria MUST be met for refund)	$250.00
MULTI COMPLEX DEPOSIT - If you book fields at more than 1 complex you qualify for a multi complex Deposit- (Refundable) (All Criteria MUST be met for refund)	$500.00
High School and Middle School Field Rental (Per Day)	$100.00
Single Day Field Rental (Natural Fields) (Per Day)	$150.00
Tournament Fee (Natural Fields) (Per Day, Per Field) (Subject to Contract Stipulations)	$200.00
Bleacher Rental (Per Set, Per Event) (Guest Pickup)	$200.00
Hospitality Room Rental (Non-Exclusive Use) (2 Hours)	$50.00
Hospitality Room Rental (Exclusive Use) (4 Hours)	$100.00
Gate Admission (Fee Set with Prior Written Approval from Director)	$1.00 - $25.00
Parking (Fee Set with Prior Written Approval from Director)	$1.00 - $25.00
Painting Fields with Robot (per field)	$500.00
Scoreboard Operator (per game, per field)	$25.00
Scoreboard Operator (per day, per field)	$100.00
National Scope Tournament Subject to contract stipulations, per field, per day) (includes field maintenance)	$0.00
-NOTE: A National Scope Tournament is defined as a tournament registering 40 (forty) or more teams with home fields more than 80 miles from Recreation Admin Office in Chattanooga, TN.	
City Departments and Employees may play in leagues for free	

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13928, § 1, 12-20-22; Ord. No. 14101, § 2, 4-9-24)

Sec. 26-29. Skate Park.

The following fees shall apply to usage of city skate park facilities and equipment:

Skate Park	**Fee**
Entry/User Fee	Free

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13928, § 1, 12-20-22)

Sec. 26-30. Champion's Club.

The following rates shall apply to usage of the city Champion's Club facilities.

- Champion's Club employees are allowed to participate in tennis leagues free of charge.
- Rental deposits are refundable with return of undamaged and clean facilities.

Champion's Club	*Per Hour*	*Per Class*	*Flat*
Walk Up Entry/User Fee (per person) (per hour and half)(One Court based on Availability)(CANNOT RESERVE in ADVANCE)	FREE	N/A	N/A

Champion's Club	*Per Hour*	*Per Class*	*Flat*
Walk Up Entry/User Fee (per person) (per hour and half)(Before 4pm)(Multiple Courts/ Group Rentals based on Availability)(CANNOT RESERVE in ADVANCE)	$2.00	N/A	
Walk Up Entry/User Fee (per person)(per hour and half)(after 4pm)(Multiple Courts/Group Rentals based on Availability)(CANNOT RESERVE in ADVANCE)	$4.00	N/A	
Entry/User Fee Before 4:00pm (per person-)(Per hour and half) (One court based on Availability	$2.00	N/A	
Entry/User Fee After 4:00pm (per person)(Per hour and half) (One court based on Availability	$4.00	N/a	
Leagues, Tournaments, School Matches (per person)(Based on Contract Stipulations)	N/A	N/A	$1.00 - $50.00
Champion's Tennis Leagues (per person)*	N/A	N/A	$40.00
*Full Time City of Chattanooga employees are allowed to participate for free			
Programs/Classes (Per Class)(Per person-)(Varies by Program/Class)	N/A	$1.00 - $80.00	
Event Rental Fee- Exclusive use (during hours)	N/A	N/A	$1,500.00
Event Rental Fee- Exclusive use (after hours)	N/A	N/A	$2,500.00
Rental (Maximum 4 Hours)	$175.00	N/A	N/A
Rental Deposit* - Weekdays	N/A	N/A	$175.00
Rental Deposit* - Weekends	N/A	N/A	$200.00

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13928, § 1, 12-20-22; Ord. No. 14101, § 3, 4-9-24)

Sec. 26-31. Fitness Center.

The following fees shall apply to usage of city fitness center facilities:

- Any fees collected when a program/class provided by a third party contractor or outside provided are subject to contract stipulations, including fee sharing with the city.

Fitness Center	**Fee**
Entry/User Fee	Free
Programs/Classes (Varies by Program/Class)	$0.00 — $50.00

(Ord. No. 12930, § 5, 3-24-15; Ord. No. 13928, § 1, 12-20-22)

Sec. 26-32. Therapeutic Recreation.

The following fees shall apply to therapeutic recreation:

- Scholarships may be applied with appropriate documentation and when approved in writing by the Director of Therapeutic Recreation.

Therapeutic Recreation	Fee
Programs/Classes (Varies by Program/Class)	$0.00 — $75.00

(Ord. No. 13928, § 1, 12-20-22)

Sec. 26-33. Outdoor Chattanooga.

The following fees shall apply to Outdoor Chattanooga:

Outdoor Chattanooga Activities	Per Person	Maximum
Flat Water Kayaking (1/2 Day)	$35.00	N/A
Flat Water Kayaking (Full Day)	$45.00	N/A
Flat Water Kayaking (Overnight/Camp)	$50.00 — $200.00	N/A
Whitewater Kayaking (Instructional First Time Free)	Free	N/A
Whitewater Kayaking (Annual Instructional Membership) (Individual)	$75.00	N/A
Whitewater Kayaking (Annual Instructional Membership) (Family)	$125.00	$150.00
Whitewater Kayaking (Non-Member Instructional Drop In)	$20.00	N/A
Whitewater Kayaking (Full Day River Instruction) (Member)	$35.00	N/A
Whitewater Kayaking (Full Day River Instruction) (Non-Member)	$45.00	N/A
Canoeing (2 Hours or Less)	$10.00	N/A
Canoeing (Full Day > 3 Hours) (Minimum per Person, Maximum per Canoe)	$20.00	$40.00
Canoeing (Child Under 8, Non-Paddler on Floor)	Free	N/A
Canoe Rental (Per Person or Per Canoe)	N/A	$25.00
Biking (Learn to Ride a Bike)	Free	N/A
Biking (Guided/Instructional Tour/Program)	$10.00	N/A
Biking (Mountain Trail 3-5 Hours)	$25.00	N/A
Biking (Mountain to Town, Shuttled)	$25.00	N/A
Rock Climbing (Walnut Wall Open Hours)	$0.00 — $10.00	N/A
Rock Climbing (Learn to Belay Class)	$10.00	N/A
Rock Climbing (Full Day Crag)	$40.00	N/A
Camping/Backpacking (Varies by Program)	$10.00 — $400.00	N/A
Workshop/Play Day (Educational)	Free	N/A
Group Retreats (1 — 15 Participants)	N/A	$100.00
Group Retreats (16 — 20 Participants)	N/A	$150.00
Group Retreats (21 — 30 participants)	N/A	$250.00

(Ord. No. 13092, § 1, 8-2-16; Ord. No. 13928, § 1, 12-20-22)

Sec. 26-34. Civic Center Rentals.

The following rental rates and fee schedule shall apply to events held in City civic centers.

- Deposits are refundable with return of undamaged and cleaned facility.
- Minimum 4 hours required for all rentals on Friday, Saturday, and Sunday; and any rentals Monday through Thursday after 6:00 p.m.
- Discount Available: 25% off hourly rate for recurring meetings of 6 or more meetings within 12 months.

Civic Center Rentals	Deposit	Per Hour	Daily
Heritage House (City Residents)	$150.00	$50.00	$500.00
Heritage House (Non-City Residents)	$150.00	$75.00	$750.00
Heritage House Weekday Meeting Rental (2 hour minimum)	N/A	$50.00	N/A
North River Civic Center Meeting Room Rental (Per Room) (2 Hour Minimum)	N/A	$50.00	N/A
Civic Center Services	**Deposit**	**Flat Fee**	
North River Civic Center Special Events (4 Hours)	$150.00	$300.00	
Heritage House Neighborhood Association Meetings (Available 1st Tuesday, 1st Thursday, and Every Friday Each Month)	N/A	Free	
North River Civic Center Neighborhood Association Meetings (During Operating Hours)	N/A	Free	
Eastgate Senior Center Fee-Based Classes (Varies by Class)	N/A	$0.00 — $500.00	

(Ord. No. 12040, § 13, 10-23-07; Ord. No. 12495, § 13, 4-12-11; Ord. No. 12569, § 13, 2-14-12; Ord. No. 12715, § 1, 4-2-13; Ord. No. 12930, § 5, 3-24-15; Ord. No. 13319, § 1, 6-12-18; Ord. No. 13928, § 1, 12-20-22)

Sec. 26-35. Van use by city departments.

There is a one hundred dollars ($100.00) per day van use fee for each department. The Department requesting a driver must pay for driver.
(Ord. No. 13319, § 2, 6-12-18)

ARTICLE II. CEMETERY PARK*

Sec. 26-36. Established; control.

The parcel of land in the city formerly known as the Citizens' Cemetery shall have the status of a public park under the name of Citizens' Cemetery Park, and shall be under the jurisdiction of the mayor or his designee.
(Code 1986, § 26-36; Ord. No. 9654, § 116, 1-6-92)

Sec. 26-37. Regulations authorized.

All burials, funerals and disinterments in Citizens' Cemetery shall be subject to rules and regulations promulgated by the mayor or his designee. It shall be unlawful to violate any such rule or regulation.
(Code 1986, § 26-37)

Sec. 26-38. Permit for interment required.

No interments shall be permitted in Citizens' Cemetery except in lots owned by private persons, and such interments shall only be made after securing a written permit from the mayor or his designee. No application for such permit shall be considered by the mayor or his designee unless he is furnished with proof of ownership of the burial lot and a certificate giving the name of the nearest relative of the deceased, and the time, place and cause of death.
(Code 1986, § 26-38; Ord. No. 9654, § 116, 1-6-92)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

***State law reference—**Cemeteries generally, T.C.A., § 46-1-101 et seq.

Sec. 26-39. Who may be interred; transfer of lots.

No owner of a lot in Citizens' Cemetery may allow the interment of any person, except members of his immediate family, to be made in his lot, nor shall any transfer of any interest in any lot be made except with the written consent of the mayor or his designee, which shall be endorsed on the instrument of transfer or assignment.
(Code 1986, § 26-39; Ord. No. 9654, § 116, 1-6-92)

Sec. 26-40. Use of potter's field prohibited.

No interments may be made in that part of Citizens' Cemetery designated as the pauper burying grounds and potter's field.
(Code 1986, § 26-40)

Sec. 26-41. Lot regulations.

(a) In Citizens' Cemetery, no enclosure of lots, such as fences, hedges, coping or ditches shall be permitted, nor shall any lot be raised above the established grade or contour of the ground, nor shall grave mounds be allowed or such articles as shells, glass, vases, stones or ornaments on graves.

(b) No trees, shrubs or plants shall be planted, pruned or removed without the consent of the mayor or his designee.

(c) Only one (1) stone or marker shall be allowed for each grave, to be placed at the head of the grave in line with the contour of the ground.

(d) Monuments of granite not more than four (4) feet high shall be permitted on lots covering three hundred and eighty (380) square feet or more, but only one (1) such monument shall be placed on a lot. All monuments shall be subject to approval by the mayor or his designee. Excavations for monuments shall be not less than five (5) feet deep and shall be made by employees of the department of parks and recreation at the expense of the person having the monument erected. Such person shall be responsible for any damage to the grounds and for the prompt removal of all debris, litter, etc., after the monument's erection. No stone work shall be commenced on Saturday that cannot be completed on that day, and no heavy hauling shall be allowed in wet weather.
(Code 1986, § 26-41; Ord. No. 9654, § 116, 1-6-92)

Secs. 26-42—26-55. Reserved.

ARTICLE III. MILLER PARK*

DIVISION 1. GENERALLY

Sec. 26-56. Definition.

As used in this chapter, Miller Park shall mean the downtown park bounded by the sidewalks adjacent to East Martin Luther King Boulevard, Georgia Avenue, East 10th Street, and Market Street.
(Ord. No. 13363, § 1, 9-11-18)

***Editor's note—**Ord. No. 13363, § 1, adopted Sept. 11, 2018, amended Art. III in its entirety to read as herein set out. Former Art. III, §§ 26-56, 26-57, pertained to similar subject matter, and derived from Code 1986, § 26-56, 26-57; Ord. No. 9654, § 118, 1-6-92; Ord. No. 12051, § 1, 11-27-07.

Sec. 26-57. Rules and regulations.

The rules and regulations set out in this article shall govern the use of the pavilion, stage area, raised terrace and rock outcropping, lawn, and/or audio/visual equipment in Miller Park.

(a) The following are prohibited within Miller Park:

- Alcoholic beverages unless a temporary permit has been obtained from the Chattanooga Beer Board
- Entrance to closed areas
- Fires
- Littering and dumping
- Motorized vehicles except wheelchairs
- Skateboarding or rollerblading
- Pets not on a leash
- Plant removal or destruction
- Smoking or vaping
- The placement of stakes or posts in lawn
- Panhandling as prohibited by Chapter 25, Article I, Sec. 25-39 of the Chattanooga City Code
- Use of chalk and graffiti
- Vending without a permit

(b) Pets must be properly leashed, licensed, and vaccinated. Owners must remove their pet's waste. All droppings must be bagged before depositing in provided receptacles.

(Ord. No. 13363, § 1, 9-11-18)

Sec. 26-58. Reserved.

Editor's note—Ord. No. 13928, § 1, adopted Dec. 20, 2022, repealed § 26-58, which pertained to rental rates and fees for Miller Park and derived from Ord. No. 13363, § 1, 9-11-18.

Secs. 26-59—26-90. Reserved.

ARTICLE IV. MUNICIPAL GOLF COURSES*

Sec. 26-91. Fee schedule—Municipal golf courses.

The Administrator of the Department of Parks & Outdoors is responsible for oversight of municipal golf courses.

There is hereby established the following fee schedule for municipal golf courses:

- City residents are entitled to a two dollar ($2.00) discount on eighteen (18) hole green fees.
- City employees are entitled to the same discount as city residents when they present their employee ID badge.
- Discount does not apply to nine (9) hole green fees or junior fee.

***Editor's note—**Ord. No. 12889, § 1, adopted March 24, 2015, amended the title of art. IV to read as set out herein. Previously art. IV was titled Brainerd Golf Course.

- All golfers pay the same rate on weekends and holidays.
- The Golf Manager may adjust green fees a maximum of twenty five percent (25%) due to course and/or market conditions and may offer special discounts and play incentives to increase use of municipal golf courses and may offer special incentives to large groups.
- City residents and city employees are entitled to a fifteen percent (15%) discount from the rates for annual passes.
- Half price pass entitles the pass holder to half price green fees and half price cart rentals at either golf course on non-holiday weekdays only.
- The following rates are effective January 1, 2023.

Daily Rate Schedule	**Rate**	
18-Hole Green Fee - Weekdays	$25.00	
18-Hole Green Fee - Weekends/Holidays	$30.00	
18-Hole Green Fee — Senior (Ages 60 and Up) — Weekdays	$18.00	
18-Hole Green Fee — Junior (Ages 17 and Under) — Weekdays	$5.00	
9-Hole Green Fee — Weekdays	$12.50	
9-Hole Green Fee — Weekends/Holidays	$15.00	
9-Hole Green Fee — Senior (Ages 60 and Up) — Weekdays	$12.00	
9-Hole Green Fee — Junior (Ages 17 and Under) — Weekdays	$5.00	
Cart Rental — 18 Holes	$15.00	
Cart Rental — 9 Holes	$7.50	
Annual Passes	**Single Course**	**Dual Courses**
Single	$1,260.00	$1,410.00
Family	$1,425.00	$1,575.00
Senior (Age 60 and Up)	$980.00	$1,130.00
Senior Couple	$1,175.00	$1,325.00
Junior (Age 17 and Under)	$315.00	$465.00
Half Price Pass	N/A	$500.00

(Ord. No. 12889, § 1, 1-6-15; Ord. No. 13585, § 1, 7-28-20; Ord. No. 13928, § 1, 12-20-22)

Editor's note—Ord. No. 12889, § 2, adopted January 6, 2015, repealed § 26-91; and § 1 renumbered § 26-24 as § 26-91. Former § 26-91 pertained to board of directors—created; composition and was derived from Code 1986, § 26-91 and Ord. No. 9654, § 116, adopted January 6, 1992.

Secs. 26-92, 26-93. Reserved.

Editor's note—Ord. No. 12889, § 2, adopted January 6, 2015, repealed, §§ 26-92, 26-93, in their entirety. Former §§ 26-92, 26-93, pertained to same—appointment, term of office and same—powers, duties, respectively, and were derived from Code 1986, § 26-92 and Ord. No. 9654, §§ 2, 13, 116, adopted January 6, 1992.

Secs. 26-94—26-149. Reserved.

ARTICLE V. PARKS AND OUTDOORS ADVISORY COMMITTEE*

Sec. 26-150. Definitions.

For purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them in this section:

Administrator means the Administrator of the Chattanooga Parks & Outdoors Department or his/her/their designee.

Committee means the City of Chattanooga Parks and Outdoors Advisory Committee.

Council means the Chattanooga City Council.

Department means the Chattanooga Department of Parks & Outdoors.

Park means any and all lands, buildings, facilities, reserves and open space, sports complexes, swimming pool grounds, golf courses, game fields, cemeteries, urban ecology preserves, playgrounds, skateboard parks, outdoor recreation facilities, gardens, trails and other general or special use outdoor places, including the Riverwalk and 21st Century Waterfront Parks System, that are owned, operated or maintained by the City of Chattanooga or specifically included in the inventory of park properties identified in the City's Inventory of Public Properties.
(Ord. No. 14028, § 4, 10-3-23)

Sec. 26-151. Board created; members.

(a) There is hereby created a Chattanooga Parks and Outdoors Advisory Committee, composed of a maximum of fifteen (15) members. Members must be residents of the City of Chattanooga.

(b) Six (6) members shall be appointed by the Mayor. Council shall confirm Committee members for the terms of office provided in this article. At least one (1) member shall be age twenty-one (21) years or younger at the time of appointment.

(c) Nine (9) members shall be appointed by City Council consisting of one representative from each Council district. The member must reside in the district they represent. Each Council member shall recommend members from their respective districts for appointment and confirmation by the full Council for the terms of office provided in this article.

(d) A majority of the Committee shall constitute a quorum for the transaction of any business of the Committee.

(e) Meetings shall occur once a month, twelve (12) times per year, at a specified day, time, and location, and additional called meetings may be at the discretion of the Committee. The Committee reserves the ability to appoint working committees and ad-hoc teams comprised of members for specific tasks as needed.
(Ord. No. 14028, § 5, 10-3-23)

Sec. 26-152. Term; officers.

(a) All appointments and terms of office after the initial appointment of the Committee shall be for a term of three (3) years. Appointments to fill a vacancy, or to complete an unexpired term, shall be for the remainder of the unexpired term only. For the initial appointments, two of the Mayor-appointed members

---

***Editor's note—**Ord. No. 14028, §§ 4—7, adopted Oct. 3, 2023, repealed the former Art. V., §§ 26-150—26-154, and enacted a new Art. V, §§ 26-150—26-154 as set out herein. The former Art. V pertained to Greenway Advisory Committee and derived from Ord. No. 10564, § 1, adopted May 13, 1997.

and the members representing Council Districts 1, 4, and 7 shall serve a one-year term; two of the Mayor-appointed members and the members representing Council Districts 2, 5, and 8 shall serve a two-year term; and two of the Mayor-appointed members and the members representing Council Districts 3, 6, and 9 shall serve a three-year term

(b) The officers of the Committee shall consist of a Chair and a Vice Chair to be selected by the Committee from among its members, to serve as such officers for one year; provided, that the Chair of the Committee shall be ineligible to succeed himself for consecutive terms of office. The Committee shall also designate a Secretary who need not be a member of the Committee. Legal counsel shall be provided by the City Attorney's Office representative.
(Ord. No. 14028, § 6, 10-3-23)

Sec. 26-153. Compensation.

All members of the Committee and the officers thereof shall serve without salary or compensation, but their actual and necessary expenses shall be allowed by the City. The City shall provide the necessary and suitable equipment and supplies to enable the Committee to properly transact and attend to its business.
(Ord. No. 14028, § 7, 10-3-23)

Sec. 26-154. Powers and duties.

The Committee shall have the following powers and duties:

(a) To propose plans, recommendations, and suggestions for the purpose of planning for future growth and development of parks, and whether to be purchased, leased, devised, or bequeathed to the City for park, connectivity, conservation, and recreation purposes;

(b) To study the economic and physical conditions and issues in connection with the maintenance, operation, regulation, and use of parks, and to make recommendations regarding the same to Mayor and Council;

(c) To propose rules and regulations to the Mayor and Council for the regulation and programming of parks and the maintenance and operation necessary or convenient for the proper orderly and efficient administration, operation, and superintendence of parks;

(d) To promote public interest and recommend the development, use, and expansion of needed, and required parks; and

(e) To recommend to the Mayor and Council rules and regulations for governing fees and charges for the use of parks including, but not limited to fees and charges for all recreational or other programs and team sports sponsored by the department or in which the department is the primary sponsoring entity.

(Ord. No. 14028, § 8, 10-3-23)

Chapter 27

PLUMBING*

Article I. In General

Sec. 27-1. Plumbing Code adopted.
Sec. 27-2. Appendices to code adopted.
Sec. 27-3. Amendments to code adopted.
Sec. 27-4. References to other codes.
Secs. 27-5—27-20. Reserved.

Article II. Plumbers

Division 1. Generally

Sec. 27-21. Liabilities not affected.
Sec. 27-22. Identification of vehicles.
Sec. 27-23. Masters to carry worker's compensation insurance.
Secs. 27-24—27-35. Reserved.

Division 2. Board of Examiners

Sec. 27-36. Created; appointment, qualifications.
Sec. 27-37. Terms; oath; removal.
Sec. 27-38. Organization; officers.
Sec. 27-39. Meetings.
Sec. 27-40. Compensation.
Sec. 27-41. Regulations authorized; printing required.
Sec. 27-42. City to furnish quarters, file for board; opening of file.
Sec. 27-43. Records to be open to inspection.
Secs. 27-44—27-55. Reserved.

Division 3. Certificates of Competency

Sec. 27-56. Required.
Sec. 27-57. Application, examination required; nature of examinations.
Sec. 27-58. Applicants from newly annexed areas.
Sec. 27-59. Passing examination; issuance.
Sec. 27-60. Examination fees established.
Sec. 27-61. License fee established.
Sec. 27-62. Disposition of fees.
Sec. 27-63. Expiration; renewal authorized.
Sec. 27-64. Examination of renewal application; required.
Sec. 27-65. Scope; display required.

***Cross references—**Water and gas mains, § 31-266 et seq.; type and maintenance of plumbing facilities of public swimming pools, § 33-37.

Sec. 27-66. Master's to show name of holder; duties of master.
Sec. 27-67. Doing work without proper certificate.
Sec. 27-68. Licenses, certificates not transferable.
Sec. 27-69. Suspension, revocation; denial of renewal.
Sec. 27-70. Appeals from board.
Sec. 27-71. Temporary certificates.

ARTICLE I. IN GENERAL

Sec. 27-1. Plumbing Code adopted.

The 2018 edition of the International Plumbing Code ("2018 International Plumbing Code"), as amended in this chapter, is hereby adopted as the official Plumbing Code of the City of Chattanooga ("Plumbing Code"). One (1) copy of the 2018 International Plumbing Code is on file, and has been on file for more than fifteen (15) days, in the Office of the City Council Clerk.
(Code 1986, § 27-1; Ord. No. 9360, § 1, 5-8-90; Ord. No. 9654, § 10, 1-6-92; Ord. No. 10175, § 1, 3-7-95; Ord. No. 10678, § 1, 3-10-98; Ord. No. 11725, § 1, 7-26-05; Ord. No. 12605, § 1, 5-29-12; Ord. No. 13924, § 1, 12-6-22)

Cross references—Building code adopted, § 10-1; electrical code adopted, § 14-2; National Fire Protection Association's fire prevention code adopted § 17-1; Gas code adopted, § 19-1.

State law reference—Adoption of codes by reference authorized, T.C.A., § 6-54-502.

Sec. 27-2. Appendices to code adopted.

The following appendices to the 2018 International Plumbing Code, as amended in this chapter, are hereby adopted as part of the City's Plumbing Code:

Appendix B — Rates of Rainfall for Various Cities

Appendix C — Structural Safety

Appendix D — Degree Day and Design Temperatures

Appendix E — Sizing of Water Piping System
(Code 1986, § 27-2; Ord. No. 9360, § 2, 5-8-90; Ord. No. 10175, § 2, 3-7-95; Ord. No. 10678, § 2, 3-10-98; Ord. No. 11725, § 2, 7-26-05; Ord. No. 12605, § 2, 5-29-12; Ord. No. 13924, § 2, 12-6-22)

Sec. 27-3. Amendments to code adopted.

The following provisions of the 2018 International Plumbing Code are hereby amended as follows and made a part of the Plumbing Code:

a. Section 101.1 is deleted in its entirety and the following language is substituted in lieu thereof:

101.1 Title. These regulations shall be known as the Plumbing Code of the City of Chattanooga, hereinafter referred to as "this code."

b. Section 106.1 and all its subsections are deleted in their entirety and the following language is substituted in lieu thereof:

106.1 Where required. Any properly licensed contractor who desires to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any plumbing system, the installation of which is regulated by this code, or to cause any such work to be performed, shall first make application to the code official and obtain the required permit for the work.

c. Sections 106.5.3 and 106.5.4 are deleted in their entirety and the following language is substituted in lieu thereof:

106.5.3 Expiration. Every permit issued by the code official under the provisions of this code shall expire by limitation and become null and void if the work authorized by such permit is not commenced within 180 days from the date of such permit, or if the work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 days. Before such work can be recommenced, a new permit shall be first obtained.

106.5.4 Extensions. Any permittee holding an unexpired permit shall have the right to apply for an extension of the time within which the permittee will commence work under that permit when work is unable to be commenced within the time required by this section for good and satisfactory reasons. The code official shall extend the time for action by the permittee for a period not exceeding 180 days if there is reasonable cause. No permit shall be extended more than once.

d. Section 106.6.2. Fee Schedule.

The fees for all plumbing work shall be as indicated in the following schedule:

Permit Fees

- For issuing each permit $40.00
- Plus the following when provided:
  - For each Plumbing Fixture, Floor Drain or Trap (including Water and Drainage Piping). $6.00
  - For each Roof Drain. $5.00
  - For each Building sewer $20.00
  - For each Building Sewer having to be replaced or repaired $20.00
  - For each Water Heater and/or Vent $6.00
  - For each installation, alteration or repair of water Piping and/or water treating equipment $10.00
  - For each repair or alteration of Drainage or Vent Piping. $10.00
  - For each Pressure Reducing Device and each Check Valve Assembly—One to Five $6.00
  - For each Vacuum Breaker or backflow protective device installed subsequent to the installation of the Piping or equipment served $10.00
  - For each Sand, Grease, or Oil Interceptor:
    - Underground $35.00
    - Above Ground. $10.00
  - For each Other Miscellaneous Item. $5.00
  - For each Sanitary Sewer Connection $70.00
  - For each Lateral Sewer Connection provided. $800.00
  - For each Manhole. $100.00
  - For each Re-inspection. $50.00

All of the fees in this section shall be non-refundable unless in the determination of the Director of Public Works, the department has not completed sufficient review to justify the entire fees for Lateral Sewer Connection provided due to inaccurate information on the location of the Lateral Sewer. In such incidents any proportional refund shall be in the sole discretion of the Director of Public Works.

e. Section 106.6.3 regarding fee refunds is deleted in its entirety.

f. Section 109 - Means of Appeal is amended by deleting said section in its entirety and substituting in lieu thereof the following:

109.1 Construction Board of Adjustment and Appeals.

The Construction Board of Adjustment and Appeals for all of the adopted building codes of the City of Chattanooga, as established by Chattanooga City Code, Part II, Section 2-625, shall act as the board to hear appeals from any decision of the Building Official or their designee and to consider variances to the building codes as adopted by the City.

g. Section 305.4.1. is amended by deleting said section in its entirety and substituting in lieu thereof the following:

305.4.1 Sewer depth. Building sewers that connect to private sewage disposal systems shall be installed not less than twelve (12) inches below finished grade at the point of septic tank connection. Building sewers shall be installed not less than twelve (12) inches below grade.

h. Section 306.2.1 is amended by deleting said section in its entirety and substituting in lieu thereof the following:

306.2.1 Overexcavation. Where trenches are excavated below the installation level of the pipe such that the bottom of the trench does not form the bed for the pipe, the trench shall be backfilled to the installation level of the bottom of the pipe with a minimum of six (6) inches of #57 gravel and such backfill shall be compacted after each placement.

i. Section 504.6 is amended as follows:

504.6 Requirements for discharge piping is amended at no. 5 by deleting the following language: "to the pan serving the water heater or storage tank."

j. Sections 605.13.7, 605.14.4, and 605.16.3 are amended by deleting said sections in their entirety.

k. A new Section 717 is added at the end of Chapter 7 - Sanitary Drainage as follows:

Section 717 - Lining of Sewers, Drains and Vents

717.1 Lining. All sanitary sewers, building sewers, building drains, waste, and vent piping to be lined must meet the requirements of ASTM F1216-09. Lining shall be continuous and not stop at fittings.

717.2 Lining video. A video of the interior of existing piping to be lined must be submitted to the Chief Plumbing Inspector of the Inspection Division, Land Development Office, prior to a permit being issued and work beginning. A video of the lining after installation is also required prior to any final inspections.

717.3 Permitting for lining. A properly licensed master plumber is required to obtain a permit prior to beginning any lining of sanitary sewers, building sewers, building drains, waste, and vents on the interior of a building or structure.

l. Section 903.1 is deleted in its entirety and the following language is substituted in lieu thereof:

903.1 Roof Extension. Open vent pipes that extend through a roof shall be terminated not less than six (6) inches above the roof. Where a roof is to be used for assembly or as a promenade, observation deck, sunbathing deck or similar purposes, open vent pipes shall terminate not less than seven (7) feet (2134 mm) above the roof.

m. Section 918 is amended as follows:

Section 918 - Air Admittance Valves is amended by adding to the end of said section a new Section 918.9, which shall read as follows:

918.9 Valves for venting plumbing fixtures. Any use of air admittance valves on fixture branches is subject to the discretion and approval of the Chief Plumbing Official. The use of air admittance valves is prohibited on all new construction.

n. Section 919 - Engineered Vent Systems is amended by deleting said section and all of its subsections in their entirety.

(Code 1986, § 27-3; Ord. No. 9360, § 3, 5-8-90; Ord. No. 10175, § 3, 3-7-95; Ord. No. 10678, § 3, 3-10-98; Ord. No. 11175, § 31, 9-11-01; Ord. No. 11725, § 3, 7-26-05; Ord. No. 12361, §§ 1, 2, 3-2-10; Ord. No. 12605, § 3, 5-29-12; Ord. No. 13924, § 3, 12-6-22; Ord. No. 13927, § 4, 12-20-22)

Sec. 27-4. References to other codes.

(a) Any reference in the International Plumbing Code, 2003 edition, to the International Fire Code shall be construed to reference the appropriate sections set forth in the National Fire Code (NFPA) which is the official fire code of the City of Chattanooga.

(b) Any reference to the International Existing Building Code, the International Sewage Disposal Code, and/or the International Electrical Code shall be deleted from the reference standards in Chapter 13 of the International Plumbing Code and all such references shall be construed to reference the appropriate official codes adopted by the City of Chattanooga.

(Ord. No. 11725, §§ 8, 9, 7-26-05)

Secs. 27-5—27-20. Reserved.

ARTICLE II. PLUMBERS*

DIVISION 1. GENERALLY

Sec. 27-21. Liabilities not affected.

This article shall not be construed to relieve from or lessen the responsibility or liability of any party owning, operating, controlling or installing any plumbing, devices, appliances, equipment, or sewer for damage to persons or property caused by any defect therein, nor shall the city be held as assuming any liability by reason of the examination authorized herein or the license and certificate issued as herein provided.

(Code 1986, § 27-21)

***Cross references—**Electricians, § 14-31 et seq.; gas fitters and installers, § 19-51 et seq.

Sec. 27-22. Identification of vehicles.

Every licensed master plumber shall identify any vehicles regularly used in the installation of plumbing with his certificate number and his name or the name of the company with whom he is associated in letters and numerals not less than three (3) inches high on each side of such vehicles; any other vehicle used by a master plumber in the installation of plumbing shall be likewise identified while being so used.
(Code 1986, § 27-22)

Sec. 27-23. Masters to carry worker's compensation insurance.

Master plumbers shall also be required to maintain worker's compensation insurance as required by the laws of the state.
(Code 1986, § 27-23; Ord. No. 11725, § 4, 7-26-05)

Secs. 27-24—27-35. Reserved.

DIVISION 2. BOARD OF EXAMINERS*

Sec. 27-36. Created; appointment, qualifications.

There is hereby created a board of plumbing examiners for the city to be composed of seven (7) persons, all of whom shall be appointed by the mayor, subject to the approval of the city council; three (3) of whom shall be master employer plumbers with not less than five (5) years' practical experience, with at least one (1) being a union employer and one (1) being a nonunion employer and three (3) of whom shall be journeyman plumbers with not less than five (5) years practical experience, with at least one (1) being a union plumber and one (1) being a nonunion plumber, and the seventh member of the board shall be member of the general public and representing the public.
(Code 1986, § 27-36; Ord. No. 9654, § 1, 1-6-92; Ord. No. 12589, § 1, 5-1-12)

Sec. 27-37. Terms; oath; removal.

All members of the board created under this division shall hold office for two (2) years and until their successors are appointed and qualified. Before entering upon their duties each member of such board shall take and subscribe to an oath to faithfully and fairly discharge his duty, without fear, favor or partiality, and to the best of his ability. The mayor may, subject to the approval of a majority of the city council, discharge any member of such board at any time for good cause, and appoint a successor.
(Code 1986, § 27-37; Ord. No. 9654, § 1, 1-6-92)

Sec. 27-38. Organization; officers.

As soon as practical after the appointment and qualification of the members of the board created under this division, they shall meet and organize by selecting one (1) of their members to be the chairman of the board, one (1) vice-chairman, and one (1) secretary unless that position is provided by staff of the building inspection office.
(Code 1986, § 27-38; Ord. No. 12589, § 2, 5-1-12)

Sec. 27-39. Meetings.

The board created by this division shall hold meetings semi-annually for the examination of applicants to determine their knowledge of the rules and regulations for the installation of plumbing devices, appliances and equipment as set forth in the statutes of the state, this code and other ordinances of the city and the

***Cross reference—**Board of examiners of gas fitters and installers, § 19-66 et seq.

International Plumbing Code; to issue licenses and certificates therefore; to determine the general qualifications and fitness of each applicant for executing the class of work covered by the license applied for and for the transaction of other business. A special meeting may be called by the chairman with the approval of a majority of the board, at a time and place designated.
(Code 1986, § 27-39; Ord. No. 12589, § 3, 5-1-12)

Sec. 27-40. Compensation.

The members of the board shall serve without compensation.
(Code 1986, § 27-40)

Sec. 27-41. Regulations authorized; printing required.

The board created under this division may promulgate rules and regulations not inconsistent with this article, and in such event shall have such rules and regulations printed for distribution.
(Code 1986, § 27-41)

Sec. 27-42. City to furnish quarters, file for board; opening of file.

The city shall provide proper and adequate quarters for the meetings of the board created under this division and for the purpose of holding examinations. The city shall furnish an adequate file that can be locked for all books and records relating to the business of such board.
(Code 1986, § 27-42)

Sec. 27-43. Records to be open to inspection.

Records of the meetings of the board created by this division, including the names of all licensees, shall be open for inspection by the public at all reasonable times and a complete record of the results of every examination shall be kept on file by the Board in compliance with the Records Retention Manual adopted by the City Council pursuant to T.C.A. § 10-7-702.
(Ord. No. 12589, § 4, 5-1-12)

Secs. 27-44—27-55. Reserved.

DIVISION 3. CERTIFICATES OF COMPETENCY*

Sec. 27-56. Required.

In the interest of public health, sanitation, and safety, it shall be unlawful for any person to engage in the business of plumbing, to do or perform any plumbing work or to make any plumbing installation for which a permit is required as a master plumber or journeyman plumber without first having been examined, certified and obtained a certificate of competency as such by the board created under division 2 of this article, or without having registered as an apprentice plumber as hereinafter provided in this article. "To engage in business" as used in this article shall mean "to hold or be held out to the public for hire" in the plumbing business.
(Code 1986, § 27-56)

***Cross references—**Businesses, trades and occupations generally, Ch. 11; examination and certification of gas fitters and installers, § 19-86 et seq.

Sec. 27-57. Application, examination required; nature of examinations.

(a) All persons now or hereafter desiring to engage in the plumbing business in the city, either as a master employer plumber or as a journeyman plumber, shall apply, in writing, to the secretary of the board created under division 2 of this article, for a certificate of competency and shall appear in person before said board and submit to an examination relative to their qualifications as a master employer plumber or a journeyman plumber, and the examinations for master plumber shall be different from that for journeyman plumber. Such examinations shall be reasonable and especially thorough so as to obtain from the applicant an understanding of the extent of his knowledge of the subjects upon which he is questioned.

(b) The applicant for a master plumber's certificate of competency must show, upon due examination, that the applicant presenting himself is of good moral character and has a satisfactory knowledge of plumbing and the laws pertaining thereto as regulated by this Code and the ordinances of the city governing the same, and he shall have a satisfactory knowledge of the fundamentals of plumbing and particularly with respect to the use and function of fixtures, soil pipes, vent pipes, drainage systems, water systems, plumbing ventilation and plumbing sanitation. The applicant shall show evidence of five (5) years actual work in the plumbing trade.

(c) The applicant for a journeyman's certificate of competency must show, upon due examination, that the applicant presenting himself is of good moral character and has a satisfactory knowledge of plumbing and the laws pertaining thereto as regulated by this Code and the ordinances of the city governing the same, and he shall have a satisfactory knowledge of the fundamentals of plumbing and must show his qualifications to install plumbing fixtures and drainage systems in a sanitary manner; and such applicant for journeyman's certificate of competency shall further show, upon examination, that he has practical knowledge of house drainage, plumbing ventilation and water systems and shall show evidence of four (4) years' actual work experience in the plumbing trade.

(d) Any person who shall apply for registration as an apprentice plumber upon forms provided for that purpose by the city shall be registered as such by the board created under division 2 of this article without examination and without charge, and a certificate of registration as an apprentice plumber shall be issued to such applicant, without charge.

(e) The board created under division 2 of this article may authorize issuance of a temporary journeyman plumber's certificate of competency to any applicant who shall have paid to the treasurer of the board an application fee of ten dollars ($10.00), and who holds a valid, unrevoked journeyman's license issued by any other municipality similar to the requirements of the city for journeyman plumbers, or who, in the opinion of the board has the necessary qualifications of a journeyman. The temporary journeyman plumber's certificate of competency shall be valid only until the day the next journeyman plumber's examination is to be given. Such temporary journeyman's certificate may be revoked at any time by the board upon notice to the holder thereof; provided, further, that not more than one (1) temporary journeyman's certificate may be issued to any one (1) person.

(f) The board created under division 2 of this article may waive the examination requirements of this article and renew an expired certificate of competency of a master or journeyman plumber, other than a temporary journeyman plumber's certificate; provided that, such certificate must be renewed within three (3) years of the date of its original issuance or last renewal; and, provided further, that, the applicant for such renewal has not engaged in any activities which would require the type of certificate for which application is made within such period.
(Code 1986, § 27-57; Ord. No. 11725, § 5, 7-26-05; Ord. No. 13507, § 1, 10-22-19)

Sec. 27-58. Applicants from newly annexed areas.

(a) Persons engaging in the plumbing business in territory annexed to the city, as a master employer plumber whose principal business is plumbing, whose principal place of business has been located and maintained in the annexed territory for three (3) or more years next preceding the annexation of such

territory, may be exempt from taking the written examination required by this chapter. The board created under division 2 of this article is authorized to issue certificates of competency as master employer plumbers to such persons who evidence a satisfactory knowledge of the fundamentals of plumbing, particularly with respect to the use and function of fixtures, soil pipes, vent pipes, drainage systems, water systems, plumbing ventilation and plumbing sanitation and who shall also evidence a satisfactory knowledge of the laws pertaining to plumbing as regulated by this Code and the ordinances of the city governing same. Persons desiring issuance of certificates of competency as a mater employer plumber under this section shall make application therefor to the board, along with payment of the fees set out in this code, within six (6) months after the date of the annexation of the territory within which their principal place of business is located.

(b) Persons engaging in the plumbing business in territory annexed to the city, as a journeyman who have been employed by a master employer plumber whose principal place of business has been located and maintained in the annexed territory for three (3) or more years next preceding the annexation of such territory, may be exempt from taking the written examination required by this chapter. The board of plumbing examiners is authorized to issue certificates of competency as journeyman plumber to such persons who evidence five (5) years' actual work experience in the plumbing trade and who give satisfactory evidence of their knowledge of the fundamentals of plumbing and the laws pertaining thereto as regulated by this Code and the ordinances of the city governing same and who shall also evidence a satisfactory practical knowledge of the installation of plumbing fixtures, drainage systems, plumbing ventilation and water systems. Persons desiring issuance of a certificate of competency as a journeyman plumber under this section shall make application therefor to the board of plumbing examiners, along with payment of the required fees set out in this code, within six (6) months after the date of annexation of the territory within which their employer's place of business is located.
(Code 1986, § 27-58)

Sec. 27-59. Passing examination; issuance.

Any applicant answering correctly seventy (70) per cent of the questions asked in the examination shall be considered qualified to pass the examination, and the board created under division 2 of this article shall issue to the applicant a certificate of competency, either as a master plumber or as a journeyman plumber, whichever the applicant may have applied for, upon payment of the required fees within sixty (60) days after notice by the Board. Examinations given by the board created under division 2 of this article shall be written and a complete record of every examination, including the score of the applicant shall be kept on file by the board in compliance with the Records Retention Manual adopted by the City Council pursuant to T.C.A. § 10-7-702. Such certificate of competency shall be signed by the chairman and secretary of such board.
(Code 1986, § 27-59; Ord. No. 12589, § 5, 5-1-12)

Sec. 27-60. Examination fees established.

An application fee for a journeyman workman's certificate shall be accomplished by an examination fee of one hundred dollars ($100.00) and an application for a master employer's certificate shall be accompanied by an examination fee of one hundred dollars ($100.00).
(Code 1986, § 27-60; Ord. No. 11725, § 6, 7-26-05)

Sec. 27-61. License fee established.

Any person who has passed the examination by the board created under division 2 of this article and is otherwise qualified to engage in work as a master plumber or a journeyman plumber shall be issued a certificate of competency by the board upon payment of the following fee:

(1) Master employer plumber, per year or any part thereof $100.00

(2) Journeyman plumber, per year or any part thereof 10.00

(3) Temporary journeyman workman plumber. 10.00

(4) Retired or inactive plumber, per year or any part thereof. 25.00

(Code 1986, § 27-61; Ord. No. 12098, § 1, 3-25-08; Ord. No. 12589, § 6, 5-1-12)

Sec. 27-62. Disposition of fees.

The secretary of the board created under division 2 of this article shall make a report to the city treasurer of the amount of fees collected pursuant to sections 27-57, 27-60 and 27-61 of this chapter, and shall pay the same into the city treasury within three (3) days after the collection thereof. All expenses incurred by such board shall be paid by the city treasurer from the fees collected. Any balance left in said fund shall be held by the city treasurer subject to the order of the mayor, and in no event shall the board created under division 2 of this article incur a greater expense than that collected by it in fees.

(Code 1986, § 27-62; Ord. No. 9654, § 13, 1-6-92; Ord. No. 12589, § 7, 5-1-12)

Sec. 27-63. Expiration; renewal authorized.

Beginning on the date of passage of this Ordinance, all licenses issued by the Board shall be effective and renewed on a two (2) year scheduled basis with the license expiring on the 30th day of June in odd numbered years following its date of issuance. Those whose license expires on June 30, 2012, shall be renewed for one (1) year. Beginning with the renewal due on June 30, 2013, all licenses issued by the Board shall renew every two (2) years in the odd numbered years. Each certificate of competency shall expire on the thirtieth (30th) day of June following the date of its issuance and shall be renewable without further examination upon application of the holder within sixty (60) days after notice of the expiration date, and the payment of the two-year fee set out above. Any applicant for a renewal who fails to make application and pay the required fee within sixty (60) days of notice may be required to take another examination by the Board of Examiners unless such applicant shows good and sufficient cause for the failure to make such application; provided that, if any licensee enters active service in the armed forces of the United States, the applicant shall be granted a renewal license upon his application after discharge from such service if such application is presented to the board within six (6) months following the date of his discharge. The failure to renew any license before June 30th of the third year following expiration of a license will result in retesting.

(Code 1986, § 27-63; Ord. No. 12589, § 8, 5-1-12)

Sec. 27-64. Examination of renewal application; required.

It shall be the duty of the board created under division 2 of this article to review all applications for the renewal of any certificate, and the board shall require that each applicant for renewal shall file a statement signed by the applicant that he has not misused his license and that he has abided by this Code and the ordinances of the city pertaining to plumbing, sewers and street cut-ins. If an applicant for renewal cannot honestly file such a statement, a full explanation of these reasons must accompany the renewal application in lieu of all or part of the required statement. The board may disapprove any renewal of a certificate of competency when the applicant has misused his certificate or has made any intentional misstatement in such application, provided, however, that such board shall not disapprove any renewal until after the application has been accorded an opportunity to be heard after five (5) days' notice by registered mail or personal service of such a notice.

(Code 1986, § 27-64; Ord. No. 12589, § 9, 5-1-12)

Sec. 27-65. Scope; display required.

(a) *Journeyman.* The issuance to any applicant of a certificate of competency as a journeyman workman plumber shall entitle the holder thereof only to work as a journeyman plumber and shall not entitle him to exercise the functions of or carry on the business of a master employer plumber. The holder of a certificate of competency as a journeyman workman plumber, or a temporary journeyman certificate, shall carry such certificate with him at all times when he is engaged in plumbing work.

(b) *Master.* A certificate of competency as a master employer plumber shall entitle the holder thereof to secure permits and perform the duties of a master plumber in the City. All master plumbers shall be assigned a permanent license number by the plumbing board. It shall be the duty of a master plumber to frame and display this license in a conspicuous business location.

(c) *Apprentice.* Apprentice plumbers may do any and all things done by journeyman plumbers; provided that, such work may only be done under the supervision of and in the presence of a properly certified or licensed journeyman plumber.
(Code 1986, § 27-65; Ord. No. 11725, § 7, 7-26-05)

Sec. 27-66. Master's to show name of holder; duties of master.

(a) Each certificated for a master plumber's license issued in accordance with the provisions of this article shall specify the name of the person who passed the examination, who shall be known as the holder of the certificate and as supervisor of all work done under the license.

(b) "Supervision of work" shall mean:

(1) The license holder shall be available at least three (3) days per week during normal working hours at the holder's place of business located in the general metropolitan area of the city.

(2) The business in which the holder is associated shall have a local office in the general metropolitan area and a local phone listed under the name of the firm with which he is associated.

(c) The board of plumbing examiners and the chief plumbing inspector shall be notified in writing the name of the firm with which the holder is associated.

(d) Any holder who applied as, and was licensed as, a representative of a corporation, firm or association, and who ceases to be a representative of such corporation, firm or association for whatever reason, shall immediately notify the board of such termination. The board shall immediately contact the corporation, firm or association by which the holder was employed and ascertain the current status of the bids, contracts, permits, etc., of such corporation, firm or association covering work being or to be performed within the city, and the board may, in its discretion, relieve any hardships and permit such work on a temporary basis as they deem advisable.

(e) The license holder shall have an employee to answer to telephone calls or a telephone-answering device at his place of business during normal business hours, and the license holder shall be capable of returning such calls within twenty-four (24) hours of the time they are made.

(f) All license holders will comply with all workers compensation provisions for any employees which are required by the State of Tennessee at the time any work is performed and submit any evidence of workers compensation insurance that is required by the State of Tennessee before any license is issued.
(Code 1986, § 27-66; Ord. No. 12589, § 10, 5-1-12)

Sec. 27-67. Doing work without proper certificate.

(a) No person certified as a master plumber shall be entitled to perform the duties of a journeyman workman plumber unless he also holds a certificate of competency as a journeyman plumber, but no person holding himself out to the public for hire shall do any kind of plumbing work for the public, whether the same is being done by himself or whether he is merely assisting another plumber doing plumbing work, unless he shall have issued to him a certificate of competency as provided for in this article; provided, however, that every qualified journeyman plumber who holds a certificate of competency may have working together with him an apprentice who must be registered under the provisions of this article. Helpers digging ditches or trenches will not be required to comply with the provisions of this article when working for a licensed master plumber.

(b) It shall be unlawful for a master plumber to allow any person who is not licensed as a journeyman plumber or registered as an apprentice plumber to do any plumbing work.
(Code 1986, § 27-67)

Sec. 27-68. Licenses, certificates not transferable.

No license and certificate issued in accordance with the provisions of this article shall be assignable or transferable.
(Code 1986, § 27-68)

Sec. 27-69. Suspension, revocation; denial of renewal.

(a) The board created under division 2 of this article shall revoke or suspend a certificate issued to any master plumber, journeyman or apprentice plumber upon positive proof that such person:

(1) Knowingly violated the provisions of this chapter or the rules and regulations of such board.

(2) Practiced fraud or deception in making application for or obtaining certificate or registration required hereunder or any renewal thereof.

(3) Is incompetent to perform a service to the public as a certified plumber.

(4) Permitted his certificate or registration to be used, directly or indirectly, by another to obtain or perform plumbing work or services.

(5) Is guilty of such other unprofessional or dishonorable conduct of such nature as to deceive or defraud the public.

(6) Failed to comply with the sections of this chapter of this Code, the requirements of the plumbing code, or repeatedly failed to obtain permits required before commencing work.

(7) Obtained a permit, directly or indirectly, for another unless the license holder shall be the supervisor of all work covered by the permit; provided, however, that, supervisors of work, as herein used, shall have the same meaning as set out in section 27-66 of this chapter.

(8) Received from another any compensation wherein the sole consideration therefor is the obtaining of a permit for plumbing work.

(b) The board may disapprove any renewal of a certificate when the applicant has misused his license, has made any intentional misstatement on such application, or has been guilty of any act or conduct which would constitute grounds for revocation or suspension of a certificate as herein provided; provided, however, the board shall not disapprove any renewal until after the applicant has been accorded an opportunity to be heard after five (5) days' notice by registered mail or personal service of such a notice.

(c) No action of the board to suspend or revoke a certificate of competency or registration shall become final until the alleged offender has been given an opportunity to appear before the board to show cause as to why such action should not be taken.

(d) Notice, in writing, of the proposed action of the board to revoke or suspend a certificate shall be given to the holder of such certificate, stating the specific charges upon which such action is based. The notice shall stipulate that a hearing will be scheduled at a time and place set by the board for the aggrieved party to show cause why such action should not be made final. Such hearing shall not be held less than five (5) days following notice to the aggrieved party. Failure to appear before the board to answer the specific charges set forth in the notice shall be deemed just cause for final revocation or suspension of a certificate.
(Code 1986, § 27-69)

Sec. 27-70. Appeals from board.

Any person aggrieved by any action or decision of the board created under division 2 of this article shall have the right of appeal to the board of adjustment and appeals by requesting an appeal in writing and by lodging such request with the chief plumbing inspector of the city within ten (10) days after said action or decision.
(Code 1986, § 27-70)

Sec. 27-71. Temporary certificates.

Anything in this article to the contrary notwithstanding, however, it shall be lawful for the board created under the division 2 of this article to issue a temporary journeyman's certificate of competency to any applicant who shall have paid to the treasurer of such board an application fee of ten dollars ($10.00), and holds a valid unrevoked journeyman's card issued by another municipality with similar journeyman plumber requirements as this city, or who, in the opinion of such board, has the necessary qualifications of a journeyman. The temporary journeyman plumber certificate of competency shall be valid only until the day the next journeyman plumber examination is to be given. Furthermore, such board may revoke such temporary journeyman's certificate at any time and no more than one (1) temporary journeyman's certificate can be issued to any one (1) person.
(Ord. No. 12589, § 11, 5-1-12)

Chapter 28

RESERVED*

***Editor's note—**Ord. No. 13386, § 12, adopted Oct. 23, 2018, repealed Ch. 28, §§ 28-1—28-6, which pertained to prisoners and derived from Code 1986, §§ 28-1—28-6; Ord. No. 9654, § 122, 1-6-92.

Chapter 29

RAILROADS*

Sec. 29-1. Construction, maintenance of crossings.
Sec. 29-2. Signals required at crossings equipped with gates; operation of gates.
Sec. 29-3. Crossing regulations.
Sec. 29-4. Obstruction of traffic on streets.
Sec. 29-5. Speed.
Sec. 29-6. Company orders in violation of speed limit.
Sec. 29-7. Powers, duties of flagmen.
Sec. 29-8. Whistles and bells.
Sec. 29-9. Children not to loiter or play near tracks.

***Cross references—**Metropolitan transit authority, Ch. 23; motor vehicles and traffic, Ch. 24; flashing traffic signs and signals regulations not to apply at railroad grade crossings, § 24-267(b); interference with railroad signals, § 24-269; obedience to signals indicating the approach of trains, § 24-356; avoiding crossing gates or barriers at railroad crossings prohibited, § 24-357; certain vehicles required to stop at all railroad grade crossings, § 24-358; moving heavy equipment across railroad grade crossing restricted, § 24-360; streets and sidewalks, Ch. 32; vehicles for hire, Ch. 35.

State law reference—Railroads generally, T.C.A., Title 65.

Sec. 29-1. Construction, maintenance of crossings.

All railroad companies operating trains across the streets of the city shall lay and keep in good repair the pavement at all such street crossings as provided herein. The surface of such pavement at all such street crossings shall be on a level with the top of the rails of the tracks, and shall be laid between the rails and for a width of one (1) foot on the outside rail of such tracks. The whole shall be so laid as to make a smooth and even surface, and when two (2) or more tracks are closer together than twenty (20) feet, pavement shall be laid in the space between each track. Failure on the part of any railroad company to comply with this section shall be a violation of this Code.
(Code 1986, § 29-1)

Sec. 29-2. Signals required at crossings equipped with gates; operation of gates.

Wherever gates or barriers are used by railroad companies at their crossings over any street in the city, such gates or barriers shall be equipped with electric gongs or warning signals, which shall sound simultaneously with the lowering of such gates or barriers. Such gongs shall be of a type to be plainly audible at a distance of at least one hundred fifty (150) feet from the crossing when sounding. Such gates or barriers shall be raised immediately after the passage of a train, allowing the passage of traffic across such crossing before the repassage of the same train or the passage of another train.
(Code 1986, § 29-2)

Sec. 29-3. Crossing regulations.

All railroad companies operating trains across any of the streets of the city shall conform to the following restrictions and regulations:

(1) Not more than one (1) train of any kind shall be moved in any direction over a street crossing at one (1) time, except scheduled passenger and freight trains in operation as through trains.

(2) All switching and irregular trains, going back or forth over street crossings, shall clear the crossing.

(3) When a train has made a crossing in any direction, it shall remain standing, before recrossing, until the crossing is cleared of traffic.

(4) No trains of any kind shall be allowed to stop upon any street crossing, except in case of accident or clear necessity.

(Code 1986, § 29-3)

Case law annotation—Travelers upon a crossing have the right to rely on subparagraph (3) of this section, which was passed for their protection, *Pollard v. Beene*, 20 Tenn. App. 83, 95 S.W. 2d 942 (1935).

Sec. 29-4. Obstruction of traffic on streets.

It shall be unlawful for any conductor, engineer, or other employee of any railroad company which maintains tracks across any street in the city to obstruct the streets or prevent the free passage of traffic for longer than three (3) minutes at any one (1) time while operating a railroad engine or train; provided, however, that, no member of a railroad train crew shall be held personally guilty of violating this section on proof that his action was necessary to comply with the orders or instructions of his employer or its officers; provided that nothing in this section shall relieve the employer or railway from any responsibility placed upon it by this section.
(Code 1986, § 29-4)

Sec. 29-5. Speed.

Railroad engines and trains may be operated across Broad Street, Market Street, Main Street, King Street, Cowart Street, Thirteenth Street, Rossville Boulevard, McCallie Avenue, Bailey Avenue, Third Street, Alton

Park Boulevard, Forty-Fifth Street, west of Central Avenue, Thirty-Eighth Street between Alton Park Boulevard and Rossville Boulevard, Central Avenue between Forty-Fifth and Thirty-Eighth Streets and Glass Street at a rate of speed not greater than eight (8) miles per hour; provided, either, that signals approved by the traffic engineer to warn traffic on such streets shall be used or all such engines and trains shall be flagged across such streets to warn traffic thereon. Otherwise, all such engines and trains at such streets shall come to a full stop at such crossings before proceeding over them, and shall be preceded across such crossings by a flagman. After such engine, with or without cars attached, or the front of any train has cleared any such crossing, it may increase its speed to a rate not exceeding twenty (20) miles per hour.
(Code 1986, § 29-5)

Cross reference—Vehicle speed regulations generally, § 24-241, et seq.

Sec. 29-6. Company orders in violation of speed limit.

It shall be unlawful for any railroad official to issue or cause to be issued any order providing for the passing of railroad engines or trains through the city at a greater rate of speed than those provided in section 29-5.
(Code 1986, § 29-6)

Sec. 29-7. Powers, duties of flagmen.

Each flagman stationed at any railroad crossing in the city shall flag each passing train as it approaches and leaves the crossing at his station. All such flagmen shall have the powers of police officers for the purpose of arresting persons violating the provisions of this chapter. They shall arrest any person who endeavors to cross ahead of passing trains in a reckless manner and shall prefer charges against such person.
(Code 1986, § 29-7)

Sec. 29-8. Whistles and bells.

(a) It shall be unlawful for any person operating any railroad engine or train to blow the whistle thereof in the city, except to prevent an accident.

(b) It shall be unlawful for any engineer or other person to ring the bell or blow the whistle on any railroad engine or train in the city by means of any device by which such bell may be made to continue to ring or such whistle to blow automatically or without action on the part of the engineer or other person.

(c) It shall be unlawful for any locomotive used regularly in the city for switching cars to be equipped with any mechanical or automatic device by which the bell of such locomotive may be rung or the whistle thereof blown.
(Code 1986, § 29-8)

Sec. 29-9. Children not to loiter or play near tracks.

It shall be unlawful for persons under age to play and loiter about and upon railroad tracks in the city. Any minor doing so may be ordered away by a special policeman or other policeman of the city, and if he refuses to leave, may be arrested.
(Code 1986, § 29-9)

Chapter 30

SCHOOLS*

Sec. 30-1. Minimum pension for teachers with twenty-five (25) years' service.
Sec. 30-2. Pension for personnel for whom city receives reimbursement.
Sec. 30-3. Tuition for nonresident pupils in city schools.
Sec. 30-4. Public schools foundation fund.

***State law reference—**Authority for cities operating schools under charter provisions to continue such operation, T.C.A. § 49-2-404.

Sec. 30-1. Minimum pension for teachers with twenty-five (25) years' service.

There is hereby authorized and established a minimum pension of one hundred fifty dollars ($100.00) per month for teachers in the local system who have a minimum of twenty-five (25) years' service and whose years of service added to age at the time of their retirement totals at least eighty (80) years.
(Code 1986, § 30-1)

Sec. 30-2. Pension for personnel for whom city receives reimbursement.

There is hereby authorized the payment of one hundred fifty dollars ($150.00) per month minimum pension to retired school personnel for whom the city receives reimbursement from the Tennessee Teachers Retirement System; provided, however, that, the amount of the pension shall not be less than the amount received by the city from the Tennessee Teachers Retirement System for the individual pensioner.
(Code 1986, § 30-2)

Sec. 30-3. Tuition for nonresident pupils in city schools.

The board of education shall, on or before the last Monday in August of each year, ascertain the cost per pupil attending the public high schools and grammar schools, respectively, in the city, during the preceding scholastic year, and the respective amounts thus ascertained shall be the charges established as tuition in such schools for the current year for pupils nonresident of the city. Such tuition shall be collected under the direction of the superintendent of schools, who shall make detailed monthly reports of his collections to the mayor and city council. All sums so collected for tuition shall be turned in to the city treasury.
(Code 1986, § 30-3; Ord. No. 9654, § 108, 1-6-92)

Sec. 30-4. Public schools foundation fund.

(a) There is hereby created a special fund to be known as the "Chattanooga Public Schools Foundation Fund" which shall be kept separate from all other funds or accounts of the city in a separate and special bank account. The mayor on behalf of the fund may receive private donations or contributions which shall be added to the corpus of the fund.

(b) Pursuant to section 6.1, Part I, Chattanooga City Code (the Charter of the city), the mayor, city finance officer and city treasurer shall select a bank, or banks, or banking institutions in the city to deposit such foundation funds which will give the highest rate of interest or return, and a bond shall be furnished conditioned upon the safekeeping and prompt payment of said funds or any part thereof when demanded by the city treasurer.

(c) The mayor, city finance officer and city treasurer may also invest in those types and kinds of securities or investments set forth in section 6-56-106, Tennessee Code Annotated, as it may from time to time be amended, upon obtaining the prior approval of the state director of local finance where required by statute.

(d) The earnings, not the principal, from the investment of the fund may be appropriated by the city council for various purposes that enrich and enhance one (1) or more of the programs of the department of education.
(Code 1986, § 30-4; Ord. No. 9654, § 124, 1-6-92)

Editor's note—Inclusion of § 1 of the nonamendatory Ordinance No. 8878, enacted December 8, 1987, as § 30-4 was at the discretion of the editor.

Chapter 31

SEWERS, MAINS AND DRAINAGE*

Article I. In General

Sec. 31-1. General provisions.
Sec. 31-2. Connection with city sanitary sewer required.
Sec. 31-3. Adequate and minimum fixtures, water heaters.
Sec. 31-4. Installation, maintenance, repair of sewer service lines; charge; exception.
Sec. 31-5. Service lines to enter sanitary sewers at junction; exception.
Sec. 31-6. Permit required to make connection.
Sec. 31-7. Reserved.
Sec. 31-8. Sewer construction; acceptance of work.
Sec. 31-9. Right to enter, inspect connection.
Sec. 31-10. Demolished buildings.
Sec. 31-11. Limitations on point of discharge; temporary facilities.
Sec. 31-12. Vehicle wash racks.
Sec. 31-13. Grease traps, grit traps, oil traps and lint traps.
Sec. 31-14. Private communal sanitary sewer systems.
Sec. 31-15. Prohibitions on storm drainage, ground water, unpolluted water, and contaminated stormwater.
Sec. 31-16. Limitations on the use of garbage grinders.
Sec. 31-17. Hospital or pathological waste.
Sec. 31-18. Obstruction of or damage to sewer lines.
Sec. 31-19. Assessment of damages to users.
Sec. 31-20. Violations, discontinuance of water service.
Secs. 31-21—31-30. Reserved.

Article II. Sewer Service Charges

Sec. 31-31. Levied.
Sec. 31-32. Abutting property owners, to pay charges.
Sec. 31-33. Disposal of sewage authorized; charges.
Sec. 31-34. Charge to be based on water consumption.
Sec. 31-35. Billing procedure.
Sec. 31-36. Schedule.
Sec. 31-37. Minimum service charges.
Sec. 31-38. Designation of water accounts to be charged.
Sec. 31-39. Charges where water usage not metered.
Sec. 31-40. Consumers not to be charged sewer user charges for water used for industrial, commercial purposes not discharged into city sewers.
Sec. 31-41. Industrial user sewer surcharge.
Sec. 31-42. Appeals.
Sec. 31-43. Miscellaneous fees.

***Charter references—**Sewage system, § 15.19 et seq.; removal, relocation and installation of utilities in connection with public improvements § 15.44 et seq.; sewer connections by city, § 15.61 et seq.

Cross references—Garbage and refuse, Ch. 18; health and sanitation, Ch. 20; plumbing, Ch. 27.

State law reference—Authority to require connections, T.C.A., § 7-35-201(1).

Secs. 31-44—31-49. Reserved.

Article III. Industrial Waste

Division 1. Generally

Sec. 31-50. General provisions.
Sec. 31-51.01. Fats, Oils and Grease (FOG) Management Program.
Sec. 31-51.02. FOG Program violations and penalties.

Division 2. Pretreatment Standards

Sec. 31-51. Prohibitions and limitations on discharge into the Publicly Owned treatment works.
Sec. 31-52. Exception to wastewater strength standard.

Division 3. Permits and Administration

Sec. 31-53. Wastewater discharge permit; discharge reports; and administration.
Sec. 31-54. Inspections, monitoring, entry, and confidentiality.
Sec. 31-55. Dangerous discharge notification requirements.
Sec. 31-56. Reserved.

Division 4. Wastewater Regulations Board

Sec. 31-57. Wastewater Regulations and Appeals Board.

Division 5. Director

Sec. 31-58. Director.

Division 6. Pretreatment Enforcement

Sec. 31-59. Pretreatment enforcement; procedure; complaints; orders.
Sec. 31-60. Pretreatment enforcement; hearings.
Sec. 31-61. Pretreatment enforcement; violations; civil penalty.
Sec. 31-62. Pretreatment enforcement; assessment for noncompliance with program permits or orders.
Sec. 31-63. Pretreatment enforcement; judicial proceedings and relief.
Sec. 31-64. Administrative enforcement remedies.
Sec. 31-65. Disposition of damage payments and penalties; special fund.
Secs. 31-66—31-240. Reserved.

Article IV. Disposal of Excreta

Sec. 31-241. Definitions.
Sec. 31-242. Disposal prohibited except in water closets.
Sec. 31-243. Where water closet required.
Sec. 31-244. Liability of property owner.
Sec. 31-245. Connection with septic tank required.
Sec. 31-246. Permit and inspection fees required for septic tank installations.
Sec. 31-247. Privies declared a nuisance; abatement.
Sec. 31-248. Cesspools prohibited.

Secs. 31-249—31-265. Reserved.

Article V. Water and Gas Mains

Sec. 31-266. Location; notice of required improvements; variances.
Sec. 31-267. Depth.
Sec. 31-268. Location of pipes laid parallel to mains.
Sec. 31-269. Service connections.
Secs. 31-270—31-285. Reserved.

Article VI. Sewer Agreements with Chattanooga Area Regional Council Members

Sec. 31-286. Agreements for wheelage and treatment of wastewater discharges authorized.
Sec. 31-287. Sewer charges for wheelage and treatment of wastewater discharges established.
Sec. 31-288. Areas where rates applicable.
Sec. 31-289. Methods of calculating sewer charges.
Sec. 31-290. Estimated charges; increased charges.
Sec. 31-291. Connection to interceptor sewer system; agreements authorized.
Secs. 31-292—31-294. Reserved.

Article VII. Other Enforcement and Appeal Procedures

Sec. 31-295. Applicability; procedure.
Sec. 31-296. Injunctive relief.
Secs. 31-297—31-300. Reserved.

Article VIII. Stormwater Management

Division 1. Generally

Sec. 31-301. Purpose.
Sec. 31-302. Definitions.
Sec. 31-303. Same—Abbreviations.
Secs. 31-304—31-312. Reserved.

Division 2. New Development and Redevelopment Requirements

Sec. 31-313. New development and redevelopment requirements.
Sec. 31-314. Private property responsibility.
Secs. 31-315—31-319. Reserved.

Division 3. Land Disturbing Activity and Erosion and Sedimentation Control

Sec. 31-320. Land disturbing activity.
Sec. 31-321. Land disturbing activity regulated.
Sec. 31-322. Land disturbing permit required.
Sec. 31-323. Data required in land disturbing permit application.
Sec. 31-323.1. EPSC Plan and SWPPP preparation.
Sec. 31-323.2. Construction stream buffer zone requirements.
Sec. 31-324. General requirements.
Sec. 31-324.1. Erosion prevention and sediment controls inspections.

Sec. 31-324.2. Water Quality Buffer.
Sec. 31-324.3. Vegetative planting requirements when steep slopes are disturbed.
Sec. 31-324.4. Steep slope vegetation policy and planting requirements.
Sec. 31-324.5. Incentives for preservation of existing trees.
Sec. 31-325. Landfilling requirements in certain residential areas.
Sec. 31-325.1. Timber Removal Requirements—Applicability.
Sec. 31-325.2. Timber Removal Requirements—Exemptions.
Sec. 31-325.3. Removal—Definitions.
Sec. 31-325.4. Permit.
Sec. 31-325.5. Re-Vegetation Management Plan.
Sec. 31-325.6. Provisions.
Sec. 31-325.7. Bond.
Sec. 31-325.8. Violations.
Sec. 31-325.9. Conflict.

Division 4. General Requirements Applicable to All Permits Issued Under This Article

Sec. 31-326. Maintenance and submittal of records.
Sec. 31-327. Transfer of permit.
Sec. 31-328. Signatory requirements.
Sec. 31-329. Reserved.

Division 5. Monitoring and Inspection

Sec. 31-330. Monitoring.
Sec. 31-331. Detection of illicit connections and improper disposal.
Sec. 31-332. Inspections.
Secs. 31-333—31-339. Reserved.

Division 6. Enforcement and Abatement

Sec. 31-340. Unauthorized discharge a public nuisance.
Sec. 31-341. Illicit discharge and illegal dumping.
Sec. 31-342. Prohibition of pollutant discharge not covered by the NPDES Program.
Sec. 31-343. Accidental discharges.
Sec. 31-344. Administrative enforcement remedies.
Sec. 31-345. Unlawful acts, misdemeanor.
Sec. 31-346. Civil penalty.
Sec. 31-347. Judicial proceedings and relief.
Sec. 31-348. Disposition of damage payments and penalties; special fund.
Sec. 31-349. Reserved.

Division 7. Fees

Sec. 31-350. Levied.
Sec. 31-351. Property owners to pay charges.
Sec. 31-352. Rate Structure.
Sec. 31-353. Billing procedure.
Sec. 31-354. Schedule of Fees.
Sec. 31-355. Correction of erroneous billing.
Sec. 31-356. Water Quality Credits and Incentives.

Sec. 31-356.1. Adjustments to Water Quality Fee.
Sec. 31-356.2. Credit Coupons.
Sec. 31-356.3. Offsite Mitigation and Mitigation Fees.
Sec. 31-357. Water Quality Only Accounts.
Sec. 31-358. Reserved.
Sec. 31-359. Reports to Chattanooga City Council.

Division 8. Stormwater Regulations Board

Sec. 31-360. Established.
Sec. 31-361. Composition; terms; filling vacancies.
Sec. 31-362. General duties of the board.
Sec. 31-363. Variances.
Sec. 31-364. Meetings; quorum.
Sec. 31-365. Hearing procedure; judicial review.

Article IX. Water and Wastewater Authority

Sec. 31-366. Created; basic powers and authority granted.
Sec. 31-367. Composition; appointment, tenure of members; vacancies.
Sec. 31-368. Election and tenure of officers; bylaws; and meetings
Sec. 31-369. Right to use public ways.
Sec. 31-370. Liability of participating governmental entities.

ARTICLE I. IN GENERAL

Sec. 31-1. General provisions.

(a) The purpose of this article is to establish uniform requirements for the disposal of wastewater and to regulate wastewater discharged into the City of Chattanooga's (hereinafter "city") sewer system. This article establishes conditions for connection to the sanitary sewer system and requires a permit. Certain acts which may be detrimental to the sewer system are prohibited, and the article provides measures for enforcement of its provisions and abatement of violations thereof.

(b) The director (hereinafter "director") shall exercise administrative management, control and jurisdiction over sanitary and storm sewers, sewage treatment and disposal facilities, mains and drainage, including their location, design, construction, operation, maintenance, repair and rehabilitation.

(c) The Wastewater Regulations and Appeals Board (hereinafter "board"), established pursuant to Section 31-57, shall hold hearings upon appeals from orders or actions of the director as may be provided under any provision of this chapter.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-2. Connection with city sanitary sewer required.

(a) *Sewer connection required.* Every building having plumbing fixtures installed and intended for human habitation, occupancy, or use on premises abutting a street, alley, or easement in which segment there is a sanitary sewer which is within one hundred (100) feet of the property line of the parcel containing the building shall be considered as being served by the city's sanitary sewer system.

All new buildings hereafter constructed which may be served by the city's sewer system shall not be occupied until the connection has been made. The owner or occupant of each lot or parcel of land which is now served or which may hereafter be served by the city's sewer system shall cease to use any other method for the disposal of sewage except as approved for direct discharge by the Tennessee Department of Health and Environment or by discharge to a properly functioning and approved septic tank. Septic tanks shall not be used where sewers are available. The director shall make any decision as to the availability of sewers. Notwithstanding the above exceptions, all premises served by the city sanitary sewer are subject to sewer user charges as described in Article II of this chapter.

(b) *Unconnected sewer service lines a nuisance where connection is available.* Except for discharge to a properly functioning septic tank system approved by the Chattanooga-Hamilton County Health Department or discharges permitted by a national discharge elimination system permit (hereinafter "NPDES") issued by the State of Tennessee Department of Health and Environment, the discharge of sewage into places other than the city's sewer system is declared a nuisance. All permanently moored boats, floating houses or floating restaurants which are not intended to be used as a means of transportation, are likewise required to discharge sanitary sewage into the city sewer system. If the owner of any property which requires a sewer connection fails or refuses to connect to the city's system, a notice shall be given to the Public Officer of the Department of Neighborhood Services and Community Development for such action as may be proper under Chapter 21 of this code. The director may take such other action to abate the nuisance as may be warranted under the circumstances.

(c) *Insufficient capacity, connection moratorium.* In those parts of the city sewer system where there is no additional capacity, and a sewer moratorium has been established pursuant to orders of the Tennessee Department of Health and Environment, no new or additional sewer connections shall be permitted.

Permits issued prior to the date of the moratorium may be completed. No new plumbing permits shall be issued for new buildings in a moratorium area after the effective date of the moratorium. A moratorium shall continue in effect until the capacity restriction has been corrected.
(Ord. No. 9409, § 1, 6-5-90; Ord No. 11345, § 12, 11-12-02; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-3. Adequate and minimum fixtures, water heaters.

(a) *Minimum number of fixtures.* A dwelling shall have at least one (1) commode, one (1) bathtub or shower, one (1) lavatory, one (1) kitchen-type sink, and an adequate source of hot water for each family unit to meet minimum basic requirements for health, sanitation and personal hygiene. All other buildings, structures, or premises intended for human occupancy or use shall be provided with adequate sanitary facilities as may be required by any other law or regulation, but not less than one (1) commode and one (1) hand-washing lavatory.

(b) *Adequate water for disposal of waste required.* It shall be unlawful for any person in possession of premises into which a pipe or other connection with the city sanitary sewers and drains have been laid to permit the same to remain without adequate fixtures attached to allow a sufficient quantity of water to be so applied as properly to carry off all waste matter and keep the same unobstructed.

(c) *Water heaters.* Water heating facilities shall be accessible for emergency maintenance without entering any individual apartment or living unit, except that water heaters may be located within an apartment or living unit when supplying hot water to that unit only.
(Ord. No. 9409, § 1, 6-5-90)

Sec. 31-4. Installation, maintenance, repair of sewer service lines; charge; exception.

(a) *Definition.* A "standard sanitary sewer service line" is a four (4) inch or six (6) inch pipe extending from the sewer main or trunk location in a street, alley, or easement to the property served by the main or trunk.

(b) *Installation of sewer service lines.* Four (4) inch building sewers shall be laid on a grade of at least one percent (1.0%). Larger building sewers shall be laid on a grade that will produce a velocity when flowing full of at least two (2) feet per second. Slope and alignment of all building sewers shall be neat and regular.

Building sewers shall be constructed only of Schedule 40 solid core polyvinylchloride ("PVC") pipe with solvent-welded or rubber compression joints of approved type or such other materials of equal or superior quality as may be approved by the director. Under no circumstances shall cement mortar joints be used. Each connection to the sewer system must be made at a wye, or service line stubbed out, or in the absence of any other provision, by means of a saddle of a type approved by the city, attached to the sewer. No connection may be made by breaking into an existing sewer and inserting the service line.

Where a sanitary service line crosses from private property onto the public right-of-way, a bi-directional cleanout must be provided at the property owner's expense.

The building sewer may be brought into the building below the basement floor when gravity flow from the building to the sewer is at a grade of one percent (1.0%) or more if possible. In cases where basement or floor levels are lower than the ground elevation at the point of connection to the sewer, adequate precautions through the installation of check valves or other backflow prevention devices, to protect against flooding shall be provided by the owner. In all buildings in which any building drain is too low to permit gravity flow to the sewer, wastes carried by such building drain shall be lifted by an approved means and discharged into the city sewer. All costs associated with such lifting devices shall be the responsibility of the property owner.

(c) *Standard Sewer Stubouts.* Hereafter, as a part of sanitary sewer projects in the city, the city shall install, or cause to be installed, standard sanitary sewer service lines from mains or trunks located in a street, alley, or easement to the property line of each lot or residence on the street being sewered. In the case of sewers being constructed in undeveloped subdivisions located within a designated sewer project, the standard sanitary sewer service lines may be constructed to each lot as shown on the plat of the subdivision by the developer as filed in the Register's Office of Hamilton County, Tennessee. Sewer service lines may not be constructed by the city in a street where the property is unsubdivided and undeveloped. A fee shall be charged upon connection to the sewer line as provided in paragraph (d) of this section.

(d) *Fee.* There shall be no fee charged for connection to four (4) inch sewer service lateral lines. There is hereby levied and imposed a sewer service line charge of eight hundred dollars ($800.00) for every six (6) inch or larger sanitary sewer service line installed where a lateral sewer connection has been provided for use by the applicant. The service line charge shall be paid by property owners at the time that application is made to the city for permission to tie onto the sanitary sewer service line. The collection of such payments shall be the responsibility of the Development Review and Permitting Division of the Department of Public Works. This eight hundred dollar ($800.00) charge shall be in addition to any required fee for a plumbing permit, street cuts, or other fees; provided that, such sewer service line charge shall not apply if the lateral sewer connection was constructed by and the cost of same borne by the developer of a subdivision incidental to the construction of a collector sewer system for the subdivision or there has been no lateral sewer connection provided; and the applicant shall be required to show that he is entitled to this exception.

(e) *Title and maintenance.* All rights, title, and interest in the sanitary sewer service line installed by the City pursuant to paragraph (c) of this section are conveyed to the property owner upon connection to said line. Thereafter, all repairs and maintenance of the sanitary sewer service line for all sanitary sewer service lines on private property shall be the responsibility of either the property owner, user of the sewer, or the developer, as the owner, and user and developer shall agree by separate contract between themselves. Sanitary sewer service lines of four (4) inches or smaller within the right-of-way of a dedicated and accepted public street shall be the responsibility of the City. Blockages of these lines caused by root balls, grease clogs, or other obstructions that can be removed by cleaning are the responsibility of the property owner, user, or developer. City responsibility shall only cover repair or replacement of the structural pipes, fittings, and connection to the sewer main, including proper backfill and repair of any pavement or other surface features within the ROW, excluding private landscaping which shall be the property owner's responsibility.

In the event a property owner encounters a problem with a sanitary sewer service line that they believe is the responsibility of the City as described in the preceding paragraph, property owners are required to:

1. Have a bi-directional sewer cleanout installed at the City right-of-way line if one does not already exist; and
2. Have a licensed plumber attempt to clear any blockage in the line before contacting the City; and
3. Have a licensed plumber survey the service line using a camera to verify that required sewer maintenance is within the area of City responsibility; and
4. All video footage shall be recorded and submitted to the City detailing the approximate location needing repair within the righty-of-way.

(f) *Location of sewer stubout.* The plumbing contractor is responsible for locating the sewer stubout. City personnel will provide whatever information is available for this purpose. If no "wye" or "tee" exists within three (3) feet of either side of the location shown in the city's records, then a tap will be provided by the city when the sewer main is uncovered. If a manhole needed for locating a service line has been lost, then the city shall be responsible for locating the manhole.

(g) *Taps on city sewers.* All taps directly made unto the city's sewer lines shall be made by city sewer maintenance personnel. The request for the tap shall be made by the plumbing inspector. The plumbing contractor shall excavate to the city's sewer and expose the pipe in preparation for the tap. Only one (1) service line shall be allowed to be installed in a trench. New taps shall be made using a "wye" type connection.

(h) *Manhole required.* A new manhole will be required whenever a sewer service line larger than six (6) inches is needed to tie unto the city's sewer. The plumbing contractor shall excavate to the city's sewer and sufficiently expose the pipe for installation of a manhole. The city's sewer maintenance personnel shall install the manhole after a request is made by the plumbing inspector. The cost of the manhole, including labor and materials, shall be charged to the owner after construction is completed.

(i) *Maintenance of sewer service lines.* All repairs and maintenance of the sanitary sewer service line shall be the responsibility of the property owner or user of the sewer, excepting those portions of four (4) inch or smaller service lines that are eligible for the City's Sewer Lateral Maintenance program. Correction of excessive inflow or infiltration in sanitary service lines shall remain the responsibility of the property owner when the excessive inflow or infiltration occurs on private property. The city shall be responsible for the maintenance of collector lines and interceptor lines only up to the point where the owner's sewer service line connects to the city's lines.

(j) *Exceptions for state highways and railroads.* When the installation of sanitary sewer service lines is required for sewers constructed in highways or streets owned by the State of Tennessee for which boring rather than open cutting is required by regulation of the State of Tennessee, installation shall be at the expense of the property owner, and the provisions of paragraph (c) shall not be applicable, and the developer shall construct sanitary sewer service line at the developer's expense. Maintenance of sanitary sewer service lines within state or railroad rights-of-way shall be the responsibility of the City. Installation of sanitary sewer service lines in state highways or streets must additionally be approved by the Tennessee Department of Transportation and, in railroad rights-of-way, by the railroad.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 11175, § 32, 9-11-01; Ord. No. 12962, § 4, 6-16-15; Ord. No. 13091, § 1, 10-11-22; Ord. No. 13925, § 1, 12-6-22)

Sec. 31-5. Service lines to enter sanitary sewers at junction; exception.

No service lines shall enter a sanitary sewer at any point except where a junction has been made and left therefor, unless by special permission of the director, which authority he may delegate to the chief plumbing inspector. In all cases where such permission is given, the work shall be done under the inspection of the chief plumbing inspector and at the risk and expense of the party making the connection.
(Ord. No. 9409, § 1, 1-6-92; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-6. Permit required to make connection.

(a) Before the owner of any property within or beyond the corporate limits of the city connects such property to the city sewer, he or his agent shall make application to the building official for, and have issued to him, a permit so to do. Such work shall only be performed by a licensed master plumber who must sign the permit. The permit application shall be a form prescribed by the chief plumbing inspector. All connections shall be inspected and approved by a city inspector before being used.

(b) Connections made without an approved application may be cut off by order of the director or chief plumbing inspector. Such unapproved connection may be allowed to remain active if inspected and accepted, however, the owner shall be required to pay a fee in lieu of a permit application fee that is double the regular permit fee then in effect.

(c) No permit for a connection which may be used for discharge of industrial process wastes or other non-domestic wastes regulated by article III of this chapter shall be issued except upon separate application to the director and approval of the discharge under the provisions of Article III of this chapter.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-7. Reserved.

Sec. 31-8. Sewer construction; acceptance of work.

All sewer construction involving interceptor sewer lines, pump stations, metering stations and appurtenances which shall become a part of the city's sewer system shall not be constructed without the plans therefore having first been approved and the construction inspected and approved by the director. Any construction work where city sewers are opened, uncovered, or undercut shall have been previously approved by the director or the city engineer.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-9. Right to enter, inspect connection.

The director, the building inspector or other designated employees of the city shall have free and unobstructed access to any part of the premises where house drains or other drains connected with or draining into the city sewers are laid, for the purpose of examining the construction, condition and method of use of the same, upon cause or reasonable suspicion that there may be inadequate facilities, the facilities present may not be properly functioning, there is an improper discharge, or upon a periodic systematic inspection of a particular drainage basin or other large segment of the system through those facilities at any time of the day between the hours of 7:00 a.m. and 6:00 p.m. or any other time in the event of an emergency. If such entry is refused, the sewer service may be disconnected upon reasonable notice and an opportunity for a hearing. The service may be suspended immediately in the event of an emergency if there is reasonable cause to suspect that the discharge will endanger the public health or the environment, shall have the potential to interrupt the treatment process, or shall damage the city's lines or facilities, and a hearing shall thereafter be afforded the user as soon as possible.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-10. Demolished buildings.

When a building is demolished, it shall be the responsibility of the owner to have the sewer service line plugged securely so that extraneous water will not enter the sewer. The owner of the premises or his agent shall notify the building inspector of such a plug, and allow same to be inspected prior to covering of any work. If such line is to be reused, it must first undergo inspection by the building inspector and be in conformity with then-existing standards.
(Ord. No. 9409, § 1, 6-5-90)

Sec. 31-11. Limitations on point of discharge; temporary facilities.

No person shall discharge any substance directly into a manhole or other opening in a city sanitary sewer other than through an approved building sewer, unless he shall have been issued a temporary permit by the director. A temporary permit may be issued in the discretion of the director to provide for discharges from portable sanitary facilities for festivals or public shows or for other reasonable purposes. The director shall incorporate in such a temporary permit such conditions as he deems reasonably necessary to insure compliance with the provisions of this chapter. The user shall be required to pay reasonable charges and

fees for the permit and service in an amount not less than the charges and fees for normal discharges. Any discharge other than through an approved building sewer or upon a permit issued by the director shall be unlawful.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-12. Vehicle wash racks.

All filling stations, garages, self-service automobile washers and other public wash racks where automobiles or other vehicles are washed shall install catch basins in conformity with the plumbing code upon a permit obtained from the building official. In the event any existing premises shall not have a catch basin and the sewer line servicing the facility shall stop up due to grit or slime in the sewer lines, then the owner or operator of such premises shall be required to modify their facilities to construct a catch basin as a condition of continuing to use the system. If such users are industrial users as defined in Article III of this chapter, they are required to obtain a permit as specified therein.
(Ord. No. 9409, § 1, 6-5-90)

Sec. 31-13. Grease traps, grit traps, oil traps and lint traps.

Restaurants, laundries, wash racks, vehicle service stations, private multi-user systems, engine or machinery repair shops and other facilities that produce grease, grit, oil, lint or other materials which accumulate and cause or threaten to cause stoppages or impair the efficiency of the city's sewers or threaten the safety of its employees, shall install and maintain a grease trap, grit trap, lint trap, oil interceptor, or other appropriate device of standard design and construction to prevent excess discharges of such materials. The design and construction of any such device shall be subject to prior approval of the director, and constructed in accord with applicable building codes.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-14. Private communal sanitary sewer systems.

(a) Excluding industrial waste facilities issued a permit pursuant to Article III, any owner, operator, or user of a private communal sanitary sewer system such as, but not limited to, multi-tenant buildings, building complexes, or shopping malls shall be responsible for the quality of wastewater discharged at the point of connection to the city's sanitary sewer system, and shall be responsible for any violations of the provisions of this chapter, including liability for the damage or injury caused to the city's system as a result of any discharge through the private system.

(b) In the event that any portion of a private communal sanitary sewer line which is serving single-family residences is shown to be defective, it shall be the responsibility of the owners whose properties are being served by the defective communal line to separate from said line and create their own discrete connection to the city's sewer system; the City shall provide a lateral connection at the ROW line. If any property owner of a defective communal line fails or refuses to connect to the city's system, a notice shall be given to the public officer of the Department of Community Development for such action as may be proper under Chapter 21 of this Code. The Director or his designee may take such other action to abate the nuisance as may be warranted under the circumstances.

(c) A property owner required to connect directly to the city's sewer system pursuant to subsection (b) who cannot financially afford to make said connection may apply for assistance through the city's Sewer Lateral Assistance Program ("SLAP").

(d) In the event a property owner who is required to connect directly to the city's sewer system pursuant to subsection (b) but is not eligible for SLAP funding and the cost of connection to the city's sewer system is proved to be a hardship for the property owner, the property owner may make application to have the city connect the owner to the city's sewer system. The determination of what is considered a hardship and other

eligibility requirements shall be set by the administrator of public works. Upon meeting said requirements, the property owner must submit an authorization to commence work and agreement to repay the city for such work. The city shall bill the property owner monthly at an amount not to exceed $100 per month. Additionally, the property owner authorizes the City to place a municipal lien on the property for the repair work completed.

(e) Subsections (c) and (d) shall only be applicable to owner-occupied properties.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12999, § 1, 10-20-15; Ord. No. 13091, § 2, 10-11-22)

Sec. 31-15. Prohibitions on storm drainage, ground water, unpolluted water, and contaminated stormwater.

(a) No stormwater, ground water, rain water, street drainage, rooftop drainage, basement drainage, subsurface drainage, foundation drainage, yard drainage, cooling water, process water drainage, or other unpolluted water shall be discharged to the city's sanitary sewer system unless no other reasonable alternative is available, and then no such water shall be discharged to the city's sanitary sewer system except upon permission by the director upon such reasonable conditions as he may prescribe and upon payment of a sewer service charge based upon the quantity of water discharged as measured by a flow meter or a reasonable estimate accepted by the director. All users shall be required to maintain their private sewer lines so as to prevent infiltration of ground or stormwater as a condition of use of the system and shall immediately repair or replace any leaking or damaged lines.

(b) The city will accept the discharge of contaminated stormwater if the following criteria are met: 1) all known and available technology will not prevent contamination or treat contaminated water to meet state standards for discharge to receiving waters or will cause unreasonable financial burden; 2) the contaminated stormwater meets the city's discharge limits and all state and federal pretreatment requirements; and 3) volume of the discharge will not exceed the hydraulic loading in the collection system or the treatment plant.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12023, § 4, 10-2-07; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-16. Limitations on the use of garbage grinders.

(a) No waste from garbage grinders shall be discharged into the city's sewers except for private garbage grinders used in a single-family dwelling. Provided, further, that such grinders shall shred the waste sufficiently that it can be carried freely under normal flow conditions prevailing in the city's sewer lines. It shall be unlawful for any person to use a garbage grinder connected to the sewer system for the purpose of grinding and discharging plastic, paper products, inert materials or anything other than the waste products from normal food preparation and consumption.

(b) The director may issue a permit for a garbage grinder where no other alternative exists for solid waste collection and then only where applicable fees therefore are paid.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15; Ord. No. 13172, § 1, 4-18-17)

Sec. 31-17. Hospital or pathological waste.

It shall be unlawful for any person to dispose of pathological waste, surgical operating room waste or delivery room waste by discharging same to the city's sewer system.
(Ord. No. 9409, § 1, 6-5-90)

Sec. 31-18. Obstruction of or damage to sewer lines.

It shall be unlawful for any person to deposit or cause to be deposited any waste of any character whatsoever which may obstruct or damage storm or sanitary sewer lines or which may inhibit, disrupt, or damage either system, including the sewer treatment process and operations. This prohibition shall include any and all substances, whether liquid, solid, gaseous or radioactive and whether associated with human habitation, of human or animal origin, or from any producing, manufacturing or processing. It shall be unlawful to block or obstruct any catch basin, sewer line, or other appurtenance, or to break, injure or remove any portion from any part of a sewer, drain or catch basin including plates covering manholes.
(Ord. No. 9409, § 1, 6-5-90)

Sec. 31-19. Assessment of damages to users.

When the discharge of waste or any other act or omission causes an obstruction, damage, or any other impairment to the city's facilities, causing an expense or damages of whatever character or nature to the city, the director shall assess the expenses and damages incurred by the city to clear the obstruction, repair damage to the facility, and otherwise rectify any impairment, and bill the person responsible for the damage for reimbursement of all expenses and damages suffered by the city. If the person responsible refuses to pay, then the director shall forward a copy of the statement and documentation of all expenses to the city attorney who shall be authorized to take such legal action as shall be appropriate.
(Ord. No. 9409, § 1, 6-5-90)

Sec. 31-20. Violations, discontinuance of water service.

(a) *Penalties for violations of article.* Anyone violating a provision of this article shall be guilty of a misdemeanor, and upon conviction, is punishable as provided in section 1-8 of this code.

(b) *Violations deemed separate offenses.* Separate violations shall constitute separate offenses and, upon conviction, each day of violation shall constitute a separate offense.

(c) *Other remedies.* In addition to other remedies provided herein, the director may issue a show cause notice to any user who appears to be violating any provisions of this article or chapter to show cause why sewer service should not be discontinued. The notice shall include the nature of the violation with sufficient specificity as to the character of the violation, and the date(s) on which such violation(s) occurred to enable the user to prepare a defense. Such notice shall be mailed to the user by certified mail, return receipt requested, or shall be personally delivered to the user at least twenty (20) days prior to the proposed action except in the event of an emergency. At the show cause hearing, the user may present any defense he may have to such charges, either in person or through submission of written or documentary proof. Following such hearing or opportunity for a hearing, the director may in his discretion order the termination of sewer service if satisfied from all the proof available that the violation was willful and the termination is necessary to abate the offending condition, or to prevent future violations. The director may terminate service for a period not to exceed one (1) year for a willful violation and may terminate service indefinitely to abate offending conditions or prevent future violations, subject to the correction of such conditions or violations by the user.

(d) *Emergency termination of service.* If in the opinion of the director it appears that such violation presents or may present an emergency situation endangering the public health, the environment, sewer system personnel, or the operation of the system, he may take immediate action to abate the condition and terminate service. In the event such emergency action adversely affects the user, the director shall provide the user an opportunity for a hearing as soon as practicable thereafter to consider restoration of service upon abatement of the condition or other reasonable conditions. Following the hearing, the director may take any such action authorized by paragraph (c) above should the proof warrant such action.

(e) *Water service.* Any violation of provisions of Article I which is not concerned or abated following a notice and opportunity for a hearing shall be grounds for the termination of water service and/or plugging the sewer line.
(Ord. No. 9409, § 1, 6-5-90; Ord. No. 12962, § 4, 6-16-15; Ord. No. 13186, § 1, 6-6-17)

Secs. 31-21—31-30. Reserved.

ARTICLE II. SEWER SERVICE CHARGES*

Sec. 31-31. Levied.

For the purpose of paying the interest on and principal of revenue bonds issued by the city for the payment of the cost and expenses appurtenant, incident or necessary thereto for the construction and acquisition of additions, extensions and improvements to the sewer system, consisting of sanitary sewers, intercepting and outfall sewers, pumping facilities, treatment and disposal plants and other facilities for the collection, treatment and disposal of sewage and industrial waste and the operation and maintenance of the sewers and sewerage system and sewage disposal facilities of the city, there hereby is imposed sewer service charges upon the owner or occupant of all property now served or which may hereafter be served by the city's sewer system at the rates set forth in this article.
(Code 1986, § 31-31)

Sec. 31-32. Abutting property owners, to pay charges.

The owner or occupant of each lot or parcel of land which abuts upon a street or other public way containing a sanitary sewer upon which lot or parcel a building has been or may hereafter be constructed for residential, commercial or industrial use shall pay the sewer service charges as provided in this article. The director or his designee shall make the determination whether or not a lot or parcel abuts upon a segment of street, alley, easement or other public way in which there is a sewer for the purposes of levying services charges; provided that he or she may waive the collection of such charges where the connection is infeasible based upon engineering or hydraulic principles, the connection would not comport with applicable plumbing or building codes, or the connection would not comport with other applicable codes, laws or regulations.
(Code 1986, § 31-32; Ord. No. 9384, § 1, 5-29-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-33. Disposal of sewage authorized; charges.

The mayor or his/her designee may enter into contracts with any municipality, county, incorporated district or person for the treatment and disposal of sewage collected and pumped or delivered to some part of the sewer system; provided, however, that the charges to be paid for the treatment and disposal of such sewage shall not be less than an amount which is fair and equitable, taking into account the cost to the city

***Cross reference—**Businesses, trades and occupations generally, Ch. 11.

of such treatment and disposal and the cost of the sewage disposal system. All revenues received pursuant to such contract shall be deemed to be revenues of the sewer system, and shall be applied and accounted for in the same manner as other revenues derived from the operation of such system.
(Code 1986, § 31-33; Ord. No. 9384, § 2, 5-29-90; Ord. No. 12962, § 4, 6-16-15; Ord. No. 13186, § 2, 6-6-17)

Sec. 31-34. Charge to be based on water consumption.

The sewer service charges imposed by this article shall be based upon the water consumption of the owner or occupant of the properties served, as measured by the meters of the water company or meters installed by the owner or occupant of property, as provided in this article.
(Code 1986, § 31-34; Ord. No. 9384, § 12, 5-29-90)

Sec. 31-35. Billing procedure.

The sewer service charges shall become effective on water company services rendered at the rates hereinafter imposed and shall be billed as follows:

(1) Tennessee American Water customers will be billed by an entity designated by the City of Chattanooga and bill shall be due and payable by the due date specified on the statement or the next business day following the due date, if the due date falls on a Saturday or Sunday.

(2) All other customers will be billed by the water company at the same time it bills the owner or occupant for water services charges, and bills shall be due and payable at the same time as are the water service charges. Sewer service charges shall be billed by the water company as a separate designated item on its water bill.

(Code 1986, § 31-35; Ord. No. 9384, § 12, 5-29-90; Ord. No. 13186, § 3, 6-6-17)

Sec. 31-36. Schedule.

(a) Enumeration of charges; quantity of water used. Sewer service charges shall be based upon the quantity of water used as shown by water meter readings and shall be the dollar amount derived by applying the total charge in dollars per one thousand (1,000) gallons for the quantities of water shown in the following table:

User Class (gallons)	*FY26 Total Charges ($/1,000 gallons)*
First 100,000	$16.05
Next 650,000	11.95
Next 1,250,000	9.71
Next 30,000,000	8.19
Over 32,000,000	7.97

In addition, the total charges derived from the above chart for residential users will be multiplied by ninety (90) percent to compensate for water use not going to the sewer such as lawn and garden watering. Any residential location where a separate water meter has been installed for the purpose of lawn and garden watering shall not be entitled to have the multiplier applied to any water consumed through the primary water meter. Each residence or apartment unit shall have a maximum monthly sewer service charge for a volume of no more than 12,000 gallons water used; unless the minimum charge due to water meter size exceeds the 12,000 gallon limit, and then the monthly sewer service charge shall be at least the minimum for that particular size water meter.

(b) Regional service charge rates (wheelage and treatment). The regional sewer service use charge (wheelage and treatment) shall be collected from regional users of the system including Collegedale, Tennessee; Hamilton County, Tennessee; Walker County, Georgia; Catoosa County, Georgia; Lookout Mountain, Georgia; Dade County, Georgia; Rossville, Georgia; Ringgold, Georgia and Fort Oglethorpe, Georgia, and shall be determined either under the "billable flow" methods based upon the quantity of water used as shown by applicable water company meter readings or the "total flow" method based upon flow meter measured flow according to the applicable contract with the regional user pursuant to subparagraphs (c) and (d).

(c) *Billable flow.* The amount due from the regional user shall be the dollar amount derived by applying the total charge shown in the table below per one thousand (1,000) gallons of water sold.

	Regional Operation & Maintenance Charge ($/1,000 gallons)	*Regional Debt Charge ($/1,000 gallons)*	*Total Regional Charge (Wheelage and Treatment) ($/1,000 gallons)*
Wheelage and Treatment	$5.1371	$0.4710	$5.6081

If regional customers are billed directly through the water company, the rate to be charged shall be five dollars and thirty cents ($5.30) per one thousand (1,000) gallons.

(d) *Total flow.* The amount due from the regional user shall be the dollar amount derived by applying the total charge shown in the table below applied to the quantity of water measured by a flow meter installed and maintained at or near the point of connection between the system of the regional user and the Chattanooga system. In the event of any malfunction of said meters, flow shall be estimated, interpolated and/or projected in the most equitable manner possible. Such estimates, along with available readings for periods where there was no malfunction, shall be the basis for billing.

	Regional Operation & Maintenance Charge ($/1,000 gallons)	*Regional Debt Charge ($/1,000 gallons)*	*Total Regional Charge (Wheelage and Treatment) ($/1,000 gallons)*
Wheelage and Treatment	$2.4740	$0.7420	$3.2160

(e) Sewer service charges that remain unpaid after the due date on the statement shall be subject to a ten (10) percent late fee.

(f) Sewer charges which have not been paid within fifteen (15) days of the date on the sewer bill shall be subject to a ten (10) percent late fee. This late fee only applies to the most recent month's sewer charges and shall not be applied to any other outstanding balances. This late fee shall not apply to sewer charges which are billed directly by a water supplier on the City's behalf.

(g) In the event of a disconnection and/or reconnection of a user's water due to unpaid sewer charges, the user will reimburse the City for any fee paid by the City to the water company for the disconnection and/or reconnection of water service.

(Code 1986, § 31-36; Ord. No. 9187, §§ 1—3, 7-5-89; Ord. No. 9384, §§ 3-5, 5-29-90; Ord. No. 9631, §§ 1—3, 10-22-91; Ord. No. 9761, §§ 1—3, 7-28-92; Ord. No. 9963, §§ 1—3, 10-19-93; Ord. No. 10094, §§ 1—3, 8-30-94; Ord. No. 10285, §§ 1—3, 9-12-95; Ord. No. 10495, §§ 1—3, 11-12-96; Ord. No. 10632, §§ 1—3, 10-28-97; Ord. No. 10769, §§ 1—3, 10-6-98; Ord. No. 10935, §§ 1—3, 11-16-99; Ord. No. 11070, §§ 1—3, 9-19-00; Ord. No. 11221, §§ 1—3, 12-18-01; Ord. No. 11344, §§ 1, 3, 5, 11-05-02; Ord. No. 11473, § 2, 10-21-03; Ord. No. 11581, §§ 17-18, 07-06-04; Ord. No. 12023, §§ 5-8, 10-2-07; Ord. No. 12166, §§ 4, 5, 6, 9-23-08; Ord. No. 12327, §§ 4, 5, 6, 11-24-09; Ord. No. 12410, §§ 19—21, 7-6-10; Ord. No. 12523, §§ 21—23, 6-28-11; Ord. No. 12664, § 1, 11-20-12; Ord. No. 12835, §§ 20—22, 6-24-14; Ord. No. 12953, §§ 20—22, 6-16-15; Ord. No. 13072, §§ 20—22, 6-28-16; Ord. No. 13186, § 4, 6-6-17; Ord.

No. 13213, §§ 23—25, 9-12-17; Ord. No. 13334, §§ 22—24, 7-3-18; Ord. No. 13473, §§ 22—24, 6-25-19; Ord. No. 13558, §§ 22—24, 6-23-20; Ord. No. 13710, §§ 22—24, 9-28-21; Ord. No. 13840, §§ 22—24, 6-14-22; Ord. No. 14118, §§ 21—23, 6-18-24; Ord. No. 14239, §§ 21—23, 6-10-25)

Sec. 31-37. Minimum service charges.

(a) Minimum sewer service charges based upon water meter connection size shall be as follows:

Monthly Minimum Sewer Service Charges

FY25 10/1/2024

Meter Size (inches)	Charge per Month
5/8	31.10
3/4	110.95
1	193.84
1-1/2	433.84
2	768.16
3	1,800.62
4	3,327.58
6	7,925.77
8	14,019.24

The minimum sewer service charge for residential users with various meter sizes shall be multiplied by ninety (90) percent to compensate for water use not going to the sewer such as lawn and garden watering. Any residential location where a separate water meter has been installed for the purpose of lawn and garden watering shall not be entitled to have the multiplier applied to any water consumed through the primary water meter.

(b) The minimum sewer service charge for residential users with combined residential and fire service installed prior to [effective date of ordinance], shall be charged at the 5/8-inch meter minimum rate, and their meter size shall be considered 5/8-inch for purposes of calculating maximum monthly service charges per Section 31-36.

(Code 1986, § 31-37; Ord. No. 9187, § 4, 7-5-89; Ord. No. 9384, § 6, 5-29-90; Ord. No. 9631, § 4, 10-22-91; Ord. No. 9761, § 4, 7-28-92; Ord. No. 9963, § 4, 10-19-93; Ord. No. 10094, § 4, 8-30-94; Ord. No. 10935, § 4, 11-16-99; Ord. No. 11344, § 2, 11-05-02; Ord. No. 12023, § 9, 10-2-07; Ord. No. 12166, § 7, 9-23-08; Ord. No. 12327, § 7, 11-24-09; Ord. No. 12410, § 22, 7-6-10; Ord. No. 12523, § 24, 6-28-11; Ord. No. 12716, § 1, 4-2-13; Ord. No. 12835, § 23, 6-24-14; Ord. No. 12962, §§ 4, 23, 6-16-15; Ord. No. 13072, § 23, 6-28-16; Ord. No. 13186, § 4, 6-6-17; Ord. No. 13213, § 26, 9-12-17; Ord. No. 13334, § 25, 7-3-18; Ord. No. 13473, § 25, 6-25-19; Ord. No. 13558, § 25, 6-23-20; Ord. No. 13710, § 25, 9-28-21; Ord. No. 13840, § 25, 6-14-22; Ord. No. 14118, § 24, 6-18-24; Ord. No. 14239, § 24, 6-10-25; Ord. No. 14233, § 1, 5-13-25)

Sec. 31-38. Designation of water accounts to be charged.

The director shall designate and report to the water company the water service accounts which shall be billed for sewer service charges, and shall furnish the water company serving the user with the rates as they may be changed from time to time to be charged for sewer services. This designation and report shall

include all properties for which sewer service has been provided by the city. In event of the extension of the city's sewer system to any property now served by sewers, the director shall immediately notify the water company serving the user of the additional accounts to be billed for sewer service.
(Code 1986, § 31-38; Ord. No. 9384, § 7, 5-29-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-39. Charges where water usage not metered.

(a) *Generally.* The owners or occupants of property obtaining water from a source or sources other than through a meter of the city water company which is discharged into the city's sewers shall install, without cost to the city, a meter to measure the quantity of water received from such source, and shall pay the same rates as provided in sections 31-36 and 31-37 of this Code. No meter shall be installed or used for such purpose without the approval of the Director of Waste Resources or his designee. If the owner of such property fails to install an approved meter or meters, the Director of Waste Resources or his designee shall make an estimate of the quantity of such water used by such property owner and discharged into the city's sewers from the property and the owner or occupant of the property shall be liable to the city for the sewer service charges due, which may be collected by suit in any court of competent jurisdiction.

(b) *Multi-unit complexes.* To provide more equality between single-family and multi-unit dwellings (with just one (1) or less number of water meters than the total number dwelling units in complex), sewer service charges to multi-unit apartment complexes served by master meters or any combination of meters totaling less than the number of units served shall be charged as follows:

(1) By multiplying the total water consumption by the residential rate for either an account with a separate lawn and garden meter or an account without a separate meter for lawn and garden meter.

(2) The total sewer service charge shall not exceed the per unit usage of twelve thousand (12,000) gallons per unit per month multiplied by the appropriate residential rate unless the meter size volumetric allowance is larger than this allowance shall be multiplied by the appropriate residential rate.

(3) The minimum sewer service charge for different meter sizes shall be calculated by multiplying the particular meter size volumetric allowance by the applicable residential rate.

(Code 1986, § 31-39; Ord. No. 12410, § 25, 7-6-10)

Sec. 31-40. Consumers not to be charged sewer user charges for water used for industrial, commercial purposes not discharged into city sewers.

(a) *Secondary metering.* Whenever a property upon which a sewer user charge is imposed under this article uses water for an industrial or commercial purpose, which water so used is not discharged into the sewerage system of the city, the quantity of water so used and not discharged into the city's sewers shall be excluded in determining the sewer user charge of the owner or occupant; provided that, the quantity of water so used and not discharged into the city sewers is measured by a device or meter (called a secondary meter) approved by the director and installed by the owner or occupant without cost to the city. The sewer user charge based upon the consumption of water to be paid by the owner or occupant of such property shall be computed at the rates provided in this article less the quantity not discharged into the city's sewers. The city reserves the right to require calibration of secondary meters when appropriate. A secondary meter shall meet the following requirements:

(1) Meters should read in hundred (100) cubic feet.

(2) Meters must be located either in an outdoor meter box or vault, or inside the customer's building or structure in a clean, dry, safe place not subject to wide temperature variations so that the meter can be easily examined, read or removed.

(3) The customer shall, at its expense, provide suitable pipe connections and shut-off valves, one (1) each at the inlet and outlet sides of the meter.

(4) The meter box or vault may be constructed to protect the meter from freezing and damage by vehicular traffic, and its location and design shall prevent, as far as possible, the inflow of surface water.

(5) Any changes in location of secondary meters, malfunctions, replacements or any other changes in the approved secondary meter installation must be reported to the director in writing. Also a copy must be forwarded to the water company containing all pertinent information regarding that particular meter.

(6) No retroactive credits will be issued, if the holder of the secondary meter permit fails to comply with the rules and regulations in force at any particular time.

(7) If any water exempted from the sewer service charge is returned to the sewer system at any time or point, a metering device shall be installed. Any flow registered through such a meter shall be charged for sewer service.

(8) Any secondary meter must be easily accessible by the water company. If this is not possible, remote read meters shall be installed and be protected from any magnetic interference. It is the responsibility of the permit holder to assure the accuracy of the remote read to the installed meter.

(9) All meters must be calibrated and certified for accuracy once every eighteen (18) months. The certification of the inspection or a copy thereof has to be forwarded to the Moccasin Bend Treatment Plant.

(b) *Other sewer user charge credits.* User charge credits may also be given by the director for the following purposes:

(1) Hidden or underground leaks except for accounts identified as residential.

(2) Catastrophic leaks where water does not enter the sewer line except for accounts identified as residential.

(3) Where secondary meters are installed for lawn or garden watering, sprinkling systems, and other processes where water is used but not returned to the sewer.

No sewer user may receive a credit for an amount which would reduce the resultant sewer bill below the minimum charge required by section 32-31 of this article. To be considered for credit, leaks must be reported to the water company, and corrected by the owner or occupant without cost to the city. The sewer user charge based upon the consumption of water to be paid by the owner or occupant of such property shall be computed at the rates provided in this article less the quantity not discharged into the city's sewers. (Code 1986, § 31-40; Ord. No. 9384, § 8, 5-29-90; Ord. No. 12023, § 10, 10-2-07; Ord. No. 12410, § 26, 7-6-10; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-41. Industrial user sewer surcharge.

(a) *Levy.* There shall be and is hereby levied upon industrial users which discharge wastewater in concentrations in excess of "normal wastewater" a surcharge as set forth in this section.

(b) *Charge formula.* The industrial user surcharge is based upon the increased operation and maintenance cost and other increased expenses incurred in the handling of such wastewater as determined by the following formula:

$$Cs = [(Bc \times B) + (Sc \times S) + (Pc \times P)] Vu \times 8.34$$

Cs = Surcharge for wastewaters exceeding the strength of "normal wastewater" expressed in dollars per billing period.

Bc = Operation and maintenance (O & M) cost for treatment of a unit of BOD_5 expressed in dollars per pound.

B = Concentration of BOD_5 from a user above the base level of 300 mg/l expressed in mg/l.

Sc = Operation and maintenance (O & M) cost for treatment of a unit of total suspended solids expressed in dollars per pound.

S = Concentration of total suspended solids from a user above the base level of 400 mg/l, expressed in mg/l.

Pc = Operation and maintenance (O & M) cost for treatment of a unit of any pollutant which the city is committed to treat by virtue of its NPDES permit or other regulatory requirement expressed in dollars per pound.

P = Concentration of any pollutant from a user above the base level. Base levels for pollutants subject to surcharge as may be hereafter established by the city expressed in mg/l.

Vu = Volume contribution of a user per billing period. Expressed in million gallons.

8.34 = Conversion factor to make units cancel. Expressed as (pounds/million gallons)/mg/l.

(c) *Rates.* Based upon the current cost of treating wastewater containing constituents with concentrations in excess of "normal wastewater," numerical rates are hereby established for Bc and Sc as follows:

Bc = $0.1381 per pound of BOD for concentrations in excess of three hundred (300) milligrams per liter.

Sc = $0.0957 per pound of total suspended solids for concentrations in excess of four hundred (400) milligrams per liter.

(d) *Billing.* The director shall notify and in conjunction with a normal bill charge each industrial user within sixty (60) days following the semi-annual periods ending on December 31st and June 30th, and such surcharges shall be payable no later than April first and October first respectively. The director, at his discretion, may enter into an agreement with the industrial user to bill and collect such fees on a monthly basis. Each user shall be notified at least annually in conjunction with a regular bill of the rate and that portion of the user charges which are attributable to wastewater treatment services.

(e) *Data concerning concentration.* The concentrations of any pollutant of an industrial user and the volume contribution of that user shall be calculated from discharge monitoring reports which shall be submitted by the industrial user following the semi-annual periods ending on December 31st and June 30 by January 31st and July 30th respectively and being subject to verification by inspection and monitoring undertaken by the director pursuant to Division 9 of this article, from records maintained by the industrial user pursuant to Division 8 of this article, and from reliable information obtained from any other source.

(f) *User charge and surcharge studies.* The director shall, based upon a documented study, recommend to the mayor and city council no less frequently than biennially an equitable rate structure for purposes of establishing a basic user charge computed on the basis of "normal wastewater" and a surcharge for industrial users which discharge effluent in concentrations in excess of "normal wastewater". The director shall consider in his report the amount of revenue needed for the purposes specified in section 31-31, consistent with 40 CFR part 35 and all other applicable federal and state laws and regulations. Such recommendation shall be based upon the premises that each user or user class pays his proportionate share of the operation and maintenance including replacement costs of the treatment works, based upon the user's proportionate contribution to the total wastewater loading from all users or user classes. The director shall also recommend as warranted that surcharges be placed upon specific wastewater constituents,

including a surcharge for all users which discharge any toxic pollutant which causes an increase in the cost of managing the effluent or the sludge of the city's treatment works, so as to recover such increased costs. In making his recommendation relative to changes in user charges or surcharges, the director may recommend that any excess revenues or any deficiency in revenues collected from a class of users in the preceding period be applied to the operation and maintenance cost attributed to that class for the next period and that the rate for that class of users be adjusted accordingly.

(g) *Appeal.* An industrial user may contest the accuracy of a user sewer surcharge bill by paying such bill under protest and within thirty (30) days following the date of the bill lodging with the director a notice of appeal to the wastewater regulation board. No particular form of notice of appeal is required, but it shall set forth with particularity the nature of any errors allegedly committed in the computation of such bill. Unless the director shall agree to correct any error or enter into a reasonable compromise concerning same, he shall notify the board at its next regularly scheduled meeting of the pendency of an appeal. The board shall, upon notice to the industrial users, schedule a hearing to receive evidence relating to the matter, and shall render such determinations and issue such orders as the law and facts of the case may require.
(Code 1986, § 31-136; Ord. No. 9187, § 5, 7-5-89; Ord. No. 9384, § 9, 5-29-90; Ord. No. 9631, § 5, 10-22-91; Ord. No. 9654, § 108, 1-6-92; Ord. No. 9761, § 5, 7-28-92; Ord. No. 9963, § 5, 10-19-93; Ord. No. 10094, § 5, 8-30-94; Ord. No. 10285, § 4, 9-12-95; Ord. No. 10495, § 4, 11-12-96; Ord. No. 10632, § 4, 10-28-97; Ord. No. 10769, § 4, 10-6-98; Ord. No. 10935, § 5, 11-16-99; Ord. No. 11070, § 4, 9-19-00; Ord. No. 11221, § 4, 12-18-01; Ord. No. 11344, § 5, 11-05-02; Ord. No. 11473, § 3, 10-21-03; Ord. No. 11581, § 19, 07-06-04; Ord. No. 12023, § 11, 10-2-07; Ord. No. 12166, § 8, 9-23-08; Ord. No. 12327, § 8, 11-24-09; Ord. No. 12410, § 23, 7-6-10; Ord. No. 12523, § 25, 6-28-11; Ord. No. 12835, § 24, 6-24-14; Ord. No. 12962, § 4, 24, 6-16-15; Ord. No. 13072, § 24, 6-28-16; Ord. No. 13213, § 27, 9-12-17; Ord. No. 13334, § 26, 7-3-18; Ord. No. 13473, § 26, 6-25-19; Ord. No. 13558, § 26, 6-23-20; Ord. No. 13710, § 26, 9-28-21; Ord. No. 13840, § 26, 6-14-22; Ord. No. 14118, § 25, 6-18-24; Ord. No. 14239, § 25, 6-10-25)

Sec. 31-42. Appeals.

A user may contest a credit or billing determination by the director by paying said bill under protest and within thirty (30) days following the due date of said bill lodging with the director a notice of appeal with the Wastewater Regulations and Appeals Board. The appeal shall follow the procedures in section 31-295. (Ord. No. 9384, § 10, 5-29-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-43. Miscellaneous fees.

(a) *Applicability.* There shall be and is hereby levied miscellaneous fees to be collected by the director for various purposes relating to this chapter as set forth in this section.

(b) *Fees for garbage grinders*. Any user of a garbage grinder, except users in a premise used exclusively for an individual residence, shall be charged at a rate of four hundred ninety five dollars ($495.00) per month. The superintendent shall bill users on a quarterly basis and the bills shall be due and payable within fifteen (15) days following the last day of the billing period.

(c) *Monitoring requested by user.* The director shall charge and collect from any user requesting the collection of effluent samples and the analysis of same a sum of money sufficient to pay for the personnel, equipment, and materials needed to collect and analyze same. He shall publish no less frequently than yearly a schedule of such fees, and shall charge all persons uniformly according to said schedule of charges. No such monitoring requested by user shall be performed unless the user shall agree in advance to payment of charges according to said schedule. The director shall bill for such monitoring reports within one (1) week following the completion thereof, said bills to be payable within thirty (30) days following the date of the bill. The director shall not perform for a user routine self-monitoring required under the provisions of an industrial discharge permit.

(d) *Permit fee.* All significant industrial users as defined in article III of this chapter shall be charged an annual permit fee of five hundred dollars ($500.00) per year. The director shall bill significant industrial users annually and the bills shall be due and payable within thirty (30) days.

(e) *Truck discharge operation fee.* The director shall charge and collect the sum of one hundred dollars ($100.00) per truck per year for a truck discharge operation permit as authorized pursuant to division 6 of this article. The holders of such permits shall also be charged a fee set forth in paragraphs (d) and (e) of this section. Such additional fees shall be collected by the director at the time of the discharge or, in his discretion, he may enter into an agreement with the holder of such a permit to bill and collect the fees on a monthly basis.

(f) *Fees for septic tank discharge*. All persons discharging concentrated, domestic septic tank sewage waste from a truck under the provisions of Article III of this Chapter shall be charged at the rate of one hundred ninety one dollars ($191.00) per one thousand (1,000) gallons of such waste. The minimum charge for septic tank discharges shall be one half (1/2) of the rate for one thousand (1,000) gallons of the rate in effect at the time of such discharge.

(g) *Fees for holding tank wastes*. All persons discharging any holding tank waste authorized pursuant to division 6 of this article shall be charged at the rate of sixteen dollars and five cents ($16.05) per one thousand (1,000) gallons of such discharge, plus any surcharge rate authorized by Article III of this chapter for concentrations of pollutants in excess of normal waste water without regard to the definition of the industrial user or other limitations set forth in such section. The Plant Manager may also require a chemical analysis of such waste and charge therefore.

(h) Late fees of 10% (ten percent) shall be applied to all amounts billed but not received by the due date indicated on the invoice.

(i) An applicable disconnect fee may be assessed for delinquent accounts.

(j) The City may disconnect water service due to any unpaid charges or fees.
(Ord. No. 9384, § 11, 5-29-90; Ord. No. 9631, §§ 6, 8, 10-22-91; Ord. No. 9761, §§ 6, 7, 7-28-92; Ord. No. 9963, §§ 6, 7, 10-19-93; Ord. No. 10094, §§ 6, 8, 8-30-94; Ord. No. 10632, §§ 5, 6, 10-28-97; Ord. No. 10769, §§ 5, 6, 10-6-98; Ord. No. 10935, §§ 6, 7, 11-16-99; Ord. No. 11070, §§ 5, 6, 9-19-00; Ord. No. 11221, §§ 5, 6, 12-18-01; Ord. No. 11344, §§ 6, 8, 11-05-02; Ord. 12023, § 12, 10-2-07; Ord. No. 12166, § 9, 9-23-08; Ord. No. 12327, § 9, 11-24-09; Ord. No. 12410, § 24, 7-6-10; Ord. No. 12523, § 26, 6-28-11; Ord. No. 12835, § 25, 6-24-14; Ord. No. 12962, § 4, 25, 6-16-15; Ord. No. 13072, § 25, 6-28-16; Ord. No. 13186, § 5, 6-6-17; Ord. No. 13213, § 28, 9-12-17; Ord. No. 13334, § 27, 7-3-18; Ord. No. 13473, § 27, 6-25-19; Ord. No. 13558, § 27, 6-23-20; Ord. No. 13710, § 27, 9-28-21; Ord. No. 13840, § 27, 6-14-22; Ord. No. 14118, § 26, 6-18-24; Ord. No. 14239, § 26, 6-10-25)

Secs. 31-44—31-49. Reserved.

ARTICLE III. INDUSTRIAL WASTE

DIVISION 1. GENERALLY

Sec. 31-50. General provisions.

(a) *Purpose and policy.* The purpose of this article is to set uniform requirements for users of the city's wastewater collection system and treatment works to enable the city to comply with the provisions of the Clean Water Act and other applicable federal and state law and regulations, and to provide for the public health and welfare by regulating the quality of wastewater discharged into the city's wastewater collection

system and treatment works. This article provides a means for determining wastewater volumes, constituents and characteristics, the setting of charges and fees, and the issuance of permits to certain users. This article establishes effluent limitations and other discharge criteria and provides that certain users shall pretreat waste to prevent the introduction of pollutants into the publicly owned treatment works (hereinafter referred to as POTW) which will interfere with the operation of the POTW, may cause environmental damage, interfere with the use or disposal of sewage sludge; and to prevent the introduction of pollutants into the POTW which will pass through the treatment works into the receiving waters or the atmosphere, or otherwise be incompatible with the treatment works; and to improve the opportunities to recycle and reclaim wastewaters and the sludges resulting from wastewater treatment. This article provides measures for the enforcement of its provisions and abatement of violations thereof. This ordinance establishes a "Wastewater Regulations and Appeals Board" and establishes its duties and establishes the duties of the director to insure that the provisions of this ordinance are administered fairly and equitably to all users.

(b) *Definitions.* For purposes of this article the following phrases and words shall have the meaning assigned below, except in those instances where the content clearly indicates a different meaning:

(1) **Act or "the Act" or the "CWA".** The Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. 1251, et seq.

(2) **"Approved POTW Pretreatment Program" or "Program" or "POTW Pretreatment Program".** This means a program administered by a POTW that meets the criteria established in 40 CFR (§ 403.8 and 403.9) and which has been approved by a regional administrator or state director in accordance with § 403.11 of Chapter 40 of the Code of Federal Regulations.

(3) **Average limit.** The maximum allowable arithmetic average of daily discharges of a pollutant measured over a reporting period, calculated as the sum of all daily discharges divided by the number of daily discharges measured during the period.

(4) **Best Management Practices (BMPs).** Schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in Section 31-53(b) of this ordinance. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge waste disposal, or drainage from raw materials storage. BMPs also include alternative means (i.e., management plans) of complying with, or in place of, certain established categorical pretreatment standards and effluent limits.

(5) **Building Sewer.** A sewer conveying wastewater from the premises of a user to a community sanitary sewer.

(6) **Board.** Wastewater Regulations and Appeals Board.

(7) **Categorical Standards.** National Pretreatment Standards, established by EPA for specific industrial user SIC (Standard Industrial classification) code categories.

(8) **Best Management Practices (BMPs).** The widely accepted means and methods of preventing or reducing FOG from entering the WCTS are referred to as Best Management Practices, including, but not limited to, schedules of activities, prohibitions of practices, maintenance procedures, and other management practices used to implement the prohibitions listed in Section 31-53(b) of this ordinance.

(9) **City.** The City of Chattanooga, Tennessee and its Department of Public Works, the Waste Resources Division, and the Interceptor Sewer System.

(10) **Combined sewer.** A sewer which has been designed to carry both sanitary sewage and stormwater runoff.

(11) **Community sewer.** Any sewer containing wastewater from more than one (1) premise.

(12) **Conventional pollutant.** Biochemical oxygen demand, total suspended solids, pH, fecal coliform bacteria, and oil and grease.

(13) **Daily maximum limit.** The maximum allowable discharge of a pollutant during a calendar day. Where expressed in terms of mass, the daily discharge is the total mass discharged over the course of the day. Where expressed in terms of concentration, the daily discharge is the arithmetic average concentration of the pollutant derived from all measurements taken that day.

(14) **Direct Discharge.** The discharge of treated or untreated wastewater directly to the waters of the State of Tennessee.

(15) **Discharge Monitoring Report.** A report submitted by an industrial user to the director pursuant to this article containing information relating to the nature and concentration of pollutants and flow characteristics of a discharge from the industrial user to the POTW, using standard methods approved by the director.

(16) **Environmental Protection Agency or "EPA".** The Environmental Protection Agency, an agency of the United States, or where appropriate the term may also be used as a designation for the administrator or other duly authorized official of said agency.

(17) **Grab Sample.** An individual sample collected over a period of time not exceeding fifteen (15) minutes.

(18) **Holding tank waste.** Any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump tank trucks. This specifically includes wastewaters from industrial users, which wastewaters are conveyed to the POTW by any means other than by a standard connection to a sanitary or combined sewer.

(19) **Indirect Discharge.** The discharge or the introduction of pollutants from any source regulated under Section 307(b), (c), or (d) of the Act, (33 U.S.C. 1317), into the POTW (including holding tank waste discharged into the system) for treatment before direct discharge to the waters of the state.

(20) **Industrial User.** A source of indirect discharge which does not constitute a "discharge of pollutants" under regulations issued pursuant to Section 402 of the Act. For the purposes of this article, an industrial user is a source of non-domestic wastes from industrial processes.

(21) **Instantaneous limit.** The maximum concentration of a pollutant allowed to be discharged at any time, determined by analysis of any discrete or composited sample, independent of the flow rate or duration of the sampling event.

(22) **Interceptor Sewer System or "ISS".** Any portion of or all of the City of Chattanooga's wastewater collection system, treatment works, pump stations, and other appurtenances.

(23) **Interference.** The term "interference" means a discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

(A) inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; or exceeds the design capacity of the treatment works or collection system.; and

(B) therefore is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent State or local regulations), Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including Title

II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including State regulations contained in any State sludge management plan prepared pursuant to Subtitle D of the SWDA), the Clean Air Act, the Toxic Substances Control Act, and the Marine Protection, Research and Sanctuaries Act.

(24) **Mass emission rate.** The weight of material discharged to the community sewer system during a given time interval. Unless otherwise specified, the mass emission rate shall mean pounds per day of the particular constituent or combination of constituents.

(25) **Maximum concentration.** The maximum amount of a specified pollutant in a volume of water or wastewater.

(26) **National Pretreatment Standard.** Any regulations containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act (33 U.S.C. 1347) which applies to industrial users. These terms also include prohibited discharges promulgated in 40 CFR 403.5, and local limits adopted as part of the City's Approved Pretreatment Program.

(27) **New Source.**

(A) The term "new source" means any building, structure, facility or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that Section, provided that:

(i) The building, structure, facility or installation is constructed at a site at which no other source is located; or

(ii) The building, structure, facility or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

(iii) The production or wastewater generated processes of the building, structure, facility or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.

(B) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility or installation meeting the criteria of paragraphs (A)(ii) or (iii) of this subsection but otherwise alters, replaces, or adds to existing process or production equipment.

(C) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

(i) Begun, or caused to begin as part of a continuous onsite construction program:

a. Any placement, assembly, or installation of facilities or equipment; or

b. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly or installation of new source facilities or equipment; or

(ii) Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph.

(28) **National Pollutant Discharge Elimination System or NPDES permit.** A permit issued pursuant to Section 402 of the Act (33 U.S.C. 1342).

(29) **Normal Wastewater.** Effluent which contains constituents and characteristics similar to effluent from a domestic premise and specifically for the purposes of this article does not contain biochemical oxygen demand (BOD), or total suspended solids (TSS) in concentrations in excess of the following:

BOD — 300 milligrams per liter

TSS — 400 milligrams per liter

(30) **Pass Through.** The term "pass through" means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation). In the case of POTW receiving discharges from CWTs as defined above, pass through also means the failure of the CWT and the POTW to reduce pollutant discharges from the POTW to the degree which would be required under Section 301(b)(2) of the CWA if the CWT discharged directly to surface waters.

(31) **Person.** Any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. The masculine gender shall include the feminine, the singular shall include the plural where indicated by the context.

(32) **Pollution.** The man-made or man-induced alteration of the chemical, physical, biological, and radiological integrity of water.

(33) **Premises.** A parcel of real estate or portion thereof including any improvements thereon which is determined by the director to be a single user for purposes of receiving, using, and paying for services.

(34) **Pretreatment.** The term "pretreatment" means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration may be obtained by physical, chemical or biological processes, process changes or by other means, except as prohibited by 40 CFR § 403.6(d). Appropriate pretreatment technology includes control equipment, such as equalization tanks or facilities, for protection against surges or slug loadings that might interfere with or otherwise be incompatible with the POTW. However, where wastewater from a regulated process is mixed in an equalization facility with unregulated wastewater or with wastewater from another regulated process, the effluent from the equalization facility must meet an adjusted pretreatment limit calculated in accordance with 40 CFR § 403.6(e).

(35) **Pretreatment Requirements.** Any substantive or procedural requirement related to pretreatment, other than a national pretreatment standard imposed on an industrial user.

(36) **Pretreatment standard or standards.** Prohibited discharge standards, categorical pretreatment standards, or local limits.

(37) **Publicly owned treatment works or POTW.** A treatment works as defined by Section 212 of the Act, (33 U.S.C. 1292). This definition includes any sewers that convey wastewater to such a treatment works, and any devices and systems used in the storage, treatment, recycling and

reclamation of municipal sewage or liquid industrial waste owned by a state or municipality but does not include pipes, sewers or other conveyances not connected to a facility providing treatment.

The term in some contexts also means the City of Chattanooga, a municipality, as defined in Section 502(4) of the Act, (33 U.S.C. 1362) which has jurisdiction over the indirect discharges and the discharges from such a treatment works.

(38) **Reclaimed water.** Water which, as a result of treatment of waste, is suitable for direct beneficial uses or a controlled use that would not occur otherwise.

(39) **Significant Industrial User.** This term shall mean:

(A) All dischargers subject to categorical pretreatment standards under 40 CFR 403.6 and 40 CFR Chapter 1, subchapter N; or

(B) All noncategorical dischargers that contribute more than ten thousand three hundred seventy-one (10,371) pounds per day of BOD, or more than ten thousand six hundred fifty-six (10,656) pounds per day of total suspended solids, or more than seven hundred (700) pounds per day of ammonia nitrogen, or more than twenty-five thousand (25,000) gallons per day of process wastewater to the POTW; or

(C) All noncategorical dischargers that, in the opinion of the director, have a reasonable potential to adversely affect the POTW's operation or violate any pretreatment standard requirements. This shall include but shall not be limited to all centralized waste treatment discharges, all tank and drum cleaning facilities, and all paint manufacturing facilities; or

(D) All noncategorical discharges that contain more than one hundred (100) pounds per day of combined BOD and total suspended solids load above that level found in "normal wastewater", or that contain more than one thousand (1,000) pounds in a month of combined BOD and total suspended solids load above that level found in normal wastewater.

(40) **Slug loading or slug discharge.** Any discharge at a flow rate or concentration which could cause a violation of the prohibited discharge standards in Section 31-51(b) of this article. A slug discharge is any discharge of a nonroutine, episodic nature, including but not limited to, an accidental spill or a noncustomary batch discharge, which has a reasonable potential to cause or pass-through, or in any other way violate the POTW's local limits or permit conditions.

(41) **Standard industrial classification.** A classification pursuant to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, 1972.

(42) **Director.** The person designated by the city to supervise the operation of the publicly owned treatment works and the interceptor sewer system and who is charged with certain duties and responsibilities by this article, or his duly authorized representative, or in his absence or inability to act the person then in actual charge of said system.

(43) **Toxic pollutant.** Any pollutant or combination of pollutants listed as toxic in 40 CFR Part 401 promulgated by the Administrator of the Environmental Protection Agency under the provisions of 33 U.S.C. 1317.

(44) **Wastewater Collection and Transmission System (WCTS):** The WCTS is the wastewater collection, retention, and transmission systems, including all gravity sewer lines, force mains, pump stations, manholes, and other related appurtenances designed to collect and convey domestic, commercial, industrial wastewaters and combined sewer to the Waste Water Treatment Plant or Combined Sewer Overflow Treatment Facilities.

(45) **Twenty-four (24) hour, flow proportional composite sample.** A sample consisting of several effluent portions collected during a twenty-four (24) hour period in which the portions of sample are proportionate to the flow and combined to form a representative sample.

(46) **Unpolluted water.** Water to which no constituent has been added, either intentionally or accidentally, which would render such water unacceptable to the State of Tennessee or the Environmental Protection Agency having jurisdiction thereof for disposal to storm or natural drainage, or directly to surface waters.

(47) **User.** Any person, firm, corporation or governmental entity that discharges, causes or permits the discharge of wastewater into a community sewer, whether intentional or unintentional, and whether direct or indirect.

(48) **Waste.** Includes sewage and any and all other waste substances, liquid, solid, gaseous or radioactive, associated with human habitation, or of human or animal origin, or from any producing, manufacturing or processing operation of whatever nature, including such waste placed within containers of whatever nature prior to, and for purposes of, disposal.

(49) **Wastewater.** Waste and water, whether treated or untreated, discharged into or permitted to enter a community sewer.

(50) **Wastewater constituents and characteristics.** The individual chemical,, physical, bacteriological and radiological parameters, including toxicity, volume and flow rate and such other parameters that serve to define, classify or measure the contents, quality, quantity and strength of wastewater.

(51) **Waters of the State of Tennessee.** Any water, surface or underground, within the boundaries of the state.

(c) *Abbreviations.* The following abbreviations shall have the following meanings:

(1) BAT — Best Available Technology.

(2) BPT — Best Practical Technology.

(3) BPJ — Best Professional Judgment.

A) BOD — Biochemical oxygen demand.

B) BOD5 — Biochemical oxygen demand (5 day).

(4) CFR — Code of Federal Regulations.

(5) CWA — Clean Water Act.

(6) CWT — Centralized Waste Treatment Facility.

(7) EPA — Environmental Protection Agency.

(8) GMP — Good Management Practices.

(9) ISS — Interceptor Sewer System.

(10) L — Liter.

(11) MBAS — Methylene-blue-active substances.

(12) mg — Milligrams.

(13) mg/l — Milligrams per liter.

(14) NPDES — National Pollutant Discharge Elimination System.

(15) POTW - Publicly Owned Treatment Works.

(16) RCRA — Resource Conservation and Recovery Act.

(17) SIC — Standard Industrial Classification.

(18) SWDA — Solid Waste Disposal Act, 42 U.S.C. 6901, et seq.

(19) TSS — Total Suspended Non-filterable Solids.

(20) USC — United States Code.

(21) BMP — Best Management Practices.

(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12428, § 1, 8-31-10; Ord. No. 12962, §§ 1, 4, 6-16-15; Ord. No. 13172, §§ 2, 3, 4-18-17)

DIVISION 2. PRETREATMENT STANDARDS

Sec. 31-51. Prohibitions and limitations on discharge into the Publicly Owned treatment works.

(a) *Purpose and policy.* This section establishes limitations and prohibitions on the quantity and quality of wastewater which may be lawfully discharged into the publicly owned treatment works. Pretreatment of some wastewater discharges will be required to achieve the goals established by this article and the Clean Water Act. The specific limitations set forth in Paragraph (i) hereof, and other prohibitions and limitations of this article, are subject to change as necessary to enable the city to provide efficient wastewater treatment, to protect the public health and the environment, and to enable the city to meet requirements contained in its NPDES permit. The director shall review said limitations from time to time to insure that they are sufficient to protect the operation of the treatment works, the health and safety of ISS personnel, to enable the treatment works to comply with its NPDES permit, to provide for a cost effective means of operating the treatment works, and to protect the public health and the environment. The director shall recommend changes or modifications as necessary.

(b) *Prohibited pollutants.* No person shall introduce into the publicly owned treatment works any pollutant(s) which cause pass through or interference. Additionally, the following specific prohibitions apply:

(1) Pollutants which create a fire or explosion hazard in the POTW,, including, but not limited to, pollutants with a closed cup flashpoint of less than 140 degrees Fahrenheit (sixty degrees (60°) Centigrade), as determined by a Pensky-Martens Closed Cup Tester, using the test method specified in the American Society for Testing and Materials (ASTM) standard D-93-79 or D-93-80k or a Setaflash Closed Cup Tester, using the test method specified in ASTM Standard D-3278-78 and pollutants which cause an exceedance of ten percent (10%) of the lower explosive limit (LEL) at any point within the POTW;

(2) Pollutants which cause corrosive structural damage to the POTW, but in no case discharges with a pH lower than five (5.0) or higher than ten and one-half (10.5);

(3) Solid or viscous pollutants in amounts which cause obstruction to the flow of the sewers, or other interference with the operation of or which cause injury to the POTW; including waxy or other materials which tend to coat and clog a sewer line or other appurtenances thereto;

(4) Any pollutant, including oxygen demanding pollutants (BOD, etc.), released in a discharge (slug) of such volume or strength as to cause interference in the POTW or individual unit operations or cause adverse effects on its workers or the environment;

(5) Heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the treatment works influent exceed forty degrees (40°) Centigrade (one hundred four degrees (104°) Fahrenheit). Unless a higher

temperature is allowed in the user's wastewater discharge permit, no user shall discharge into any sewer line or other appurtenance of the POTW wastewater with a temperature exceeding sixty-three and one-half degrees (63.50°) Centigrade (one hundred fifty degrees (150°) Fahrenheit).

(6) Petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.

(7) Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker's health and safety problems.

(8) Any trucked or hauled pollutants, except at discharge points designated by the POTW.

(9) Noxious or malodorous liquids, gases, solids, or other wastewater which, either singly or by interaction with other wastes, is sufficient to create a public nuisance or a hazard to life, or to prevent entry into the sewers for maintenance or repair.

(10) Wastewater which imparts color that cannot be removed by the treatment process, such as dye wastes and tanning solutions, and consequently imparts color to the treatment plant's effluent, thereby violating the City's NPDES permit.

(11) Stormwater, surface water, ground water, roof runoff, subsurface drainage, condensate, noncontact cooling water, and unpolluted wastewater, unless specifically authorized by the director.

(12) Sludges, screenings, or other residues from the pretreatment of industrial wastes.

(13) Medical wastes, unless specifically authorized by the director.

(14) Wastewater which, alone or in conjunction with other wastes, causes the treatment plant's effluent to fail toxicity testing.

(15) Detergents, surface active agents, or other substances that cause excessive foaming at the POTW.

(c) *Affirmative Defenses.* A user shall have an affirmative defense in any action brought against it alleging a violation of the general prohibitions established in paragraph (b) of this section and the specific prohibitions in paragraphs (b)(3), (4), and (5) of this section where the user can demonstrate that:

(1) It did not know or have reason to know that its discharge, alone or in conjunction with a discharge or discharges from other sources, would cause pass through or interference; and

(2) (A) A local limit designed to prevent pass through and/or interference, as the case may be, was developed pursuant to Section 31-51(i) and (j) for each pollutant in the user's discharge that caused pass through or interference, and the user was in compliance with each such local limit directly prior to and during the pass through or interference; or

(B) If a local limit designed to prevent pass through and/or interference, as the case may be, has not been developed for the pollutant(s) that caused the pass through or interference, and the user's discharge directly prior to and during the pass through or interference did not change substantially in nature of constituents from the user's prior discharge activity when the POTW was regularly in compliance with the POTW's NPDES permit requirements and, in the case of interference, applicable requirements for sewage sludge use or disposal.

(d) *Wastewater Constituent Evaluation.* The wastewater of every industrial user shall be evaluated using the following criteria:

(1) Wastewater containing any element or compound which is not adequately removed by the treatment works which is known to be an environmental hazard;

(2) Wastewater causing a pass through, discoloration, foam, floating oil or grease, or any other condition in the quality of the city's treatment works' effluent such that receiving water quality requirements established by law cannot be met;

(3) Wastewater causing conditions at or near the city's treatment works which violate any statute, any rule, or regulation, of any public agency of this state or the United States;

(4) Wastewater containing any element or compound known to act as a lacrimator, known to cause nausea, or known to cause odors constituting a public nuisance;

(5) Wastewater causing interference with the effluent or any other product of the treatment process, residues, sludges, or scums causing them to be unsuitable for reclamation, reuse, causing interference with the reclamation process, or causing them to be unsuitable for disposal;

(6) Wastewater discharged at a point in the collection system that is upstream of any overflow, bypass, or combined sewer overflow and which may thereby cause special environmental problems or specific discharge limitations;

(7) Wastewater having constituents and concentrations in excess of those listed in section 31-51(i), or cause a violation of the limits in section 31-51(j).

(8) The capacity of existing sewer lines to carry the anticipated wastewater flow, particularly with respect to any problems, overflows, or overloads caused by heavy rain infiltration.

(9) The toxicity of each wastewater shall be evaluated by an appropriate biomonitoring technique to determine if a specific discharge may significantly affect the overall toxic level of the POTW influent.

The director or the Board, as applicable, shall establish reasonable limitations or prohibitions or monitoring requirements in addition to the limits established pursuant to Section 31-51(e) and (i) in the wastewater discharge permit of any industrial user that discharges wastewater violating any of the above criteria or that has processes that generate wastewater that could violate any of the above criteria prior to pretreatment as shall be reasonably necessary to achieve the purpose and policy of this article.

(e) *National Pretreatment Standards.* Certain industrial users are now or hereafter shall become subject to National Pretreatment Standards promulgated by the Environmental Protection Agency specifying quantities or concentrations of pollutants or pollutant properties which may be discharged into the POTW. All industrial users subject to a National Pretreatment Standard shall comply with all requirements of such standard, and shall also comply with any additional or more stringent limitations contained in this article. Compliance with National Pretreatment Standards for existing sources subject to such standards or for existing sources which hereafter become subject to such standards shall be within three (3) years following promulgation of the standards unless a shorter compliance time is specified in the standard. Compliance with National Pretreatment Standards for new sources shall be required upon promulgation of the standard. New sources shall install and have in operating condition, and shall "start-up" all pollution control equipment required to meet applicable pretreatment standards before beginning to discharge. Within the shortest feasible time (not to exceed ninety (90) days), new sources must meet all applicable pretreatment standards. Except where expressly authorized by an applicable National Pretreatment Standard, no industrial user shall increase the use of process water or in any way attempt to dilute a discharge as a partial or complete substitution for adequate treatment to achieve compliance with such standard.

(f) *Limitation on Radioactive Waste.* No person shall discharge or permit to be discharged any radioactive waste into a community sewer except:

(1) When the person is authorized to use radioactive materials by the Tennessee Department of Health and Environment or the Nuclear Regulatory Commission;

(2) When the waste is discharged in strict conformity with applicable laws and regulations of the aforementioned agencies, or any other agency having jurisdiction; and

(3) When a copy of permits received from said regulatory agencies have been filed with the director.

(g) *Septic Tank Pumping, Hauling, and Discharge.* No person owning vacuum or "cess pool" pump trucks or other liquid waste transport trucks shall discharge directly or indirectly such sewage into the POTW, unless such person shall first have applied for and received a truck discharge operation permit from the director for each vehicle used in this manner. All applicants for a truck discharge operation permit shall complete such forms as required by the director, pay appropriate fees, and agree in writing to abide by the provisions of this chapter and any special conditions or regulations established by the director.

(1) The owners of such vehicles shall affix and display the permit number in four (4) inch block figures on the side of each vehicle used for such purposes.

(2) Such permit shall be valid for a period of one (1) year from date of issuance; provided that such permit shall be subject to suspension or revocation by the director for violation of any provisions of this code, regulations as established by the director, or any other applicable law or regulations. A revocation or suspension of such a permit shall be for a period of time not to exceed five (5) years. Such revocation or suspension shall bind the permittee, any member of the immediate family of the permittee, or any person who has purchased the business or a substantial amount of the assets of the permittee who paid less than fair market value for such business or assets. Users found operating in violation of a permit issued under this subsection and whose permit is therefore revoked by the director, shall be notified by certified mailing or notice shall personally be delivered to the user.

(3) Truck discharge operation permits are not automatically renewed. Application for renewal must be made to the director.

(4) Such permits shall be limited to the discharge of domestic sewage waste containing no industrial waste. All other hauled wastes shall be governed by paragraph (h) of this section. Any user transporting, collecting, or discharging non-domestic industrial process wastewaters, or a mixture of such wastewaters with domestic wastewater shall obtain a holding tank discharge permit in accordance with paragraph (h).

(5) The director shall designate the locations and times where such trucks may be discharged, and may refuse to accept any truckload of waste in his absolute discretion where it appears that the waste could interfere with the effective operation of the treatment works or any sewer line or appurtenance thereto, or where it appears that a truckload of waste contains industrial process waste or a mixture of domestic sewage and industrial process waste.

(6) The director shall have authority to investigate the source of any hauled waste and to require testing of the waste at the expense of the discharger prior to discharge.

(h) *Other Holding Tank Waste.* No user shall discharge any other holding tank wastes including hauled industrial waste into the POTW unless he shall have applied for and have been issued a 'holding tank discharge permit' by the director. Unless otherwise allowed under the terms and conditions of the permit, a separate permit must be secured for each separate discharge. All applicants for a holding tank discharge permit shall complete such forms as required by the director, pay appropriate fees, and agree in writing to abide by the provisions of this chapter and any special conditions or regulations established by the director. All such dischargers and transporters must show that they have complied with federal manifests and other regulations under RCRA. The permit shall state the specific location of the discharge, the time of day the discharge is to occur, the volume of the discharge, the source and character of such waste, and shall limit the wastewater constituents and characteristics of the discharge. Such user shall pay any applicable charges or fees therefore, and shall comply with the conditions of the permit issued by the director; provided, however, the director may waive in his discretion the completion of an application and for the payment of fees for the requirement for discharge of domestic waste from a recreational vehicle holding tank.

(i) *Limitations on Wastewater Strength (Local Limits).* A table containing numeric pollutant concentrations (referred to as local limits) shall be developed by the director for approval and adoption by the Wastewater Regulations and Appeals Board to regulate the discharge of pollutants to the sewer system. This table may be revised from time to time as necessary to implement the plant protection criteria set forth in Section 31-51(j). No user shall discharge wastewater with pollutant concentrations in excess of the concentration set forth in said table unless:

(1) An exception has been granted the user under the provisions of Section 31-52; or

(2) The wastewater discharge permit of the user provides as a special permit condition a higher interim concentration level in conjunction with a requirement that the user construct a pretreatment facility or institute changes in operation and maintenance procedures to reduce the concentration of pollutants to levels not exceeding the standards set forth in the table within a fixed period of time.

Maximum Concentration mg/l (24 Hour Flow Proportional Pollutant	*Maximum Instantaneous Concentration mg/l Composite Sample)*	*(Grab Sample)*
Cadmium (Cd)	1.0	2.0
Chromium (Cr)	5.0	10.0
Copper (Cu)	5.0	10.0
Cyanide (CN)	2.0	4.0
Lead (Pb)	1.5	3.0
Mercury (Hg)	0.1	0.2
Nickel (Ni)	5.0	10.0
Silver (Ag - free ionic)	1.0	2.0
Zinc (Zn)	5.0	10.0
pH		5—10.5 Standard units

NOTE: All measurements for the above-listed pollutants are in the total form except for silver.

(j) *Criteria to Protect the Treatment Plant Influent.* A table containing numeric pollutant concentrations (referred to as plant protection criteria) shall be developed by the director for approval and adoption by the Wastewater Regulations and Appeals Board to protect the treatment plant from pass-through of pollutants, to protect the quality of the sludge produced by the treatment plant, and to prevent inhibition of treatment plant processes. This table may be revised from time to time as necessary to accomplish these objectives. The director shall monitor the treatment works influent for each pollutant in said table. Industrial users shall be subject to the reporting and monitoring requirements set forth in Section 31-53 and Section 31-54 as to these pollutants. In the event that the influent at the treatment works reaches or exceeds the levels established by said table, the director shall initiate technical studies to determine the cause of the influent violation, and shall recommend such remedial measures as are necessary, including but not limited to recommending the establishment of new or revised pretreatment levels for these pollutants. The director shall also recommend changes to any of these criteria in the event the POTW effluent standards are changed, there are changes in any applicable law or regulation affecting same, or when changes are needed for more effective operation of the POTW.

Monthly Average Pollutant	Maximum Concentration (mg/l)
Copper (Cu)	0.40
Chromium (Cr)	0.47

Nickel (Ni)	0.35
Cadmium (Cd)	0.01
Lead (Pb)	0.10
Mercury (Hg)	0.015
Silver (Ag-free ionic)	0.036
Zinc (Zn)	0.80
Cyanide (CN)	0.05
Toluene	0.115
Benzene	0.015
1,1,1-Trichloroethane	0.167
Ethylbenzene	0.031
Carbon tetrachloride	0.015
Chloroform	0.193
Tetrachloroethylene	0.278
Trichloroethylene	0.077
1,2 Transdichloroethylene	0.150
Methylene chloride	0.111
Phenols	0.555
Naphthalene	0.011
Bis (2-ethyl hexyl) phthalate	0.064
Butyl benzyl phthalate	
Di-n-butyl phthalate	
Diethyl phthalate	
Chromium - Hexavalent (Cr+6)	0.02
Iron (Fe)	6.7
Manganese (Mn)	0.33
Total Kjeldahl Nitrogen (TKN)	30.0
Oil & Grease	*
MBAS	*
Total Dissolved Solids	2,500
BOD	207,420 lb/day
Suspended Solids	213,137 lb/day
Ammonia Nitrogen	14,000 lb/day
Ph	6—9 standard units
Lower Explosion Limit	10%

NOTE: All measurements for these pollutants are for the total form except as noted.

*No limit established for plant protection, however monitoring will be required to provide numerical correlation with NPDES conditions.

(k) *Pretreatment Requirements.* Industrial users of the POTW shall design, construct, operate, and maintain wastewater pretreatment facilities whenever necessary to reduce or modify the user's wastewater composition to achieve compliance with the limitations in wastewater strength set forth in paragraph (i) of this section, to meet applicable National Pretreatment Standards, to prevent slug discharge or to meet any other wastewater condition or limitation contained in the industrial user's wastewater discharge permit.

(l) *Plans and Specifications.* Plans and specifications for such wastewater pretreatment facilities shall be prepared, signed, dated, and sealed by a professional engineer licensed in the State where the work is to be permitted, and shall be submitted to the director for review in accordance with accepted engineering practices. The director shall review said plans within forty-five (45) days and shall recommend to the industrial user any appropriate changes. Prior to beginning construction of said pretreatment facility, the user shall submit a set of construction plans and specifications to be maintained by the director. Prior to beginning construction the industrial user shall also secure such building, plumbing, or other permits that may be required by other parts of this code. The industrial user shall construct said pretreatment facility within the time provided in the industrial user's wastewater discharge permit. Following completion of construction the industrial user shall provide the director with "as built" drawings to be maintained by the director.

(m) *Prevention of Accidental Discharges.* All users shall provide such facilities and institute such procedures as are reasonably necessary to prevent or minimize the potential for accidental discharge into the POTW of waste regulated by this article from liquid or raw material storage areas, from truck and rail car loading and unloading areas, from inplant transfer or processing and materials handling areas, and from diked areas or holding ponds of any waste regulated by this article. The wastewater discharge permit of any industrial user who has a history of significant leaks, spills or other accidental discharge of waste regulated by this article shall be subject on a case-by-case basis to a special permit condition or requirement for the construction of facilities or establishment of procedures which will prevent or minimize the potential for such accidental discharge. Plans,, specifications, and operating procedures for such special permit conditions shall be developed by the user and submitted to the director for review under the provisions of paragraph (k) and (l) of this section.

(n) Reserved.

(o) *Slug Discharge Control Program.*

(1) Each industrial user shall provide protection from slug loadings and slug discharges, as defined in Section 31-50(b)(46) of this Ordinance. The director will evaluate each Significant Industrial User (SIU) for the need to prepare a plan to control slug discharges within twelve (12) months of commencing discharge, or for existing Significant Industrial Users, at least once by October 14, 2006. No user who commences discharge to the sewerage system after July 1, 1990 shall be permitted to introduce pollutants into the system until the need for slug discharge control plans or procedures has been evaluated by the director.

(2) Certain users will be required to prepare Slug Discharge Prevention and Contingency Plans (SDPC) showing facilities and operating procedures to provide this protection. These plans shall be submitted to the director for review and approval. All existing users required to have SDPC Plans shall submit such a plan within three (3) months after notification from the director and complete implementation within six (6) months. Review and approval of such plans and operating procedures shall not relieve the user from the responsibility to modify the user's facility as necessary to meet the requirements of this article.

An SDPC Plan shall address, as a minimum, the following:

(A) Description of discharge practices, including non-routine batch discharges;

(B) Description of stored chemicals;

(C) Procedures for immediately notifying the director of any accidental or slug discharge, as required by subparagraph (o)(3) of this section.; and

(D) If necessary, procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations,

control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

(3) In the case of a slug discharge, it is the responsibility of the user to immediately by telephone or in person notify the POTW of the incident. The notification shall include location of discharge, type of waste, concentration and volume, and corrective action.

Within five (5) days following a slug discharge, the user shall submit a detailed written report describing the cause of the discharge and the measures being taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the sewerage system, fish kills, or any other damage to person or property, nor shall notification relieve the user of any fines, civil penalties, or other liability which may be imposed by the article or other applicable law.

(4) A notice shall be permanently posted on the user's premises advising employees who to call in the event of a slug discharge. The user shall ensure that all employees who may cause, or allow such slug discharge to occur, are advised of the emergency notification procedure.

(5) Each Significant Industrial User shall immediately notify the director of any changes at its facility affecting the potential for a slug discharge.

(p) *Centralized Waste Treatment Facilities.* The director shall establish effluent limits for centralized waste treatment facilities to ensure that the level of pollution discharged from the CWT through the POTW to the environment will not exceed the level that would be allowed if the CWT discharged directly to surface waters under Section 301(b)(2) of the Act (33 U.S.C. § 1311). Additionally, centralized waste treatment facilities shall maintain records and submit reports as directed by the director regarding the SIC codes of their customers, and the frequency, characteristics, and volume of wastes from the various categories.

(q) *Dilution.* No user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. The director may impose mass limitations on users which are using dilution to meet applicable pretreatment standards or requirements or in other cases when the imposition of mass limits is appropriate.

(r) *Net/Gross Calculation.* Categorical pretreatment standards may be adjusted to reflect the presence of pollutants in the industrial user's intake water in accordance with this section. Any industrial user wishing to obtain credit for intake pollutants must make application to the City. Upon request of the industrial user, the applicable standard will be calculated on a "net" basis (i.e., adjusted to reflect credit for pollutants in the intake water) if the following criteria are met:

(1) Either:

(A) The applicable categorical pretreatment standards contained in 40 CFR Subchapter N specifically provide that they will be applied on a new basis; or

(B) The industrial user demonstrates that the control system it proposes or uses to meet applicable categorical pretreatment standards would, if properly installed and operated, meet the standards in the absence of pollutants in the intake waters.

(2) Credit for generic pollutants such as biochemical oxygen demand (BOD), total suspended solids (TSS), and oil and grease will not be granted unless the industrial user demonstrates that the constituents measured in the user's effluent are substantially similar to the constituents in the intake water or unless appropriate additional limits are placed on the process water pollutants either at the outfall or elsewhere.

(3) Credit will be granted only to the extent necessary to meet the applicable categorical pretreatment standards, up to a maximum value equal to the influent value. Additional monitoring may be necessary to determine eligibility for credits and compliance with standards adjusted under this section.

(4) Credit will be granted only if the user demonstrates that the intake water is drawn from the same body of water as that into which the POTW discharges. The City may waive this requirement if he/she finds that no environmental degradation will result.

(s) *Combined waste stream formula.* Where process wastewater subject to a categorical pretreatment standard is mixed with wastewaters other than those generated by the regulated process, alternative discharge limits shall be derived by the City, or by the industrial user with the consent of the City. The alternative limits shall be applied to the mixed effluent. When deriving alternative categorical limits, the City or industrial user shall calculate both an alternative daily maximum value using the maximum value(s) specified in the appropriate categorical pretreatment standard(s) and an alternative consecutive sampling day average value using the monthly average value(s) specified in the appropriate categorical pretreatment standard(s). The industrial user shall comply with the alternative daily maximum and monthly average limits fixed by the City until the City modifies the limits or approves an industrial user's modification request. Modification is authorized whenever there is a material or significant change in the values used in the calculation to fix alternative limits for the regulated pollutant. An industrial user must immediately report any such material or significant change to the director.

(1) Alternative limit calculation. Alternative limits shall be calculated using the formula and instructions in 40 CFR 403.6(e).

(2) Alternative limits below detection limit. An alternative pretreatment limit may not be used if the alternative limit is below the analytical detection limit of any regulated pollutants.

(3) Choice of monitoring location. Where a regulated process waste stream is combined prior to treatment with wastewaters other than those generated by the regulated process, the industrial user may monitor either the segregated process waste stream or the combined waste stream for the purpose of determining compliance with the applicable pretreatment standards. If the industrial user chooses to monitor the segregated process waste stream, it shall apply the applicable categorical pretreatment standard. If the user chooses to monitor the combined waste stream, it shall apply the alternative discharge limit calculated using the combined waste stream formula as described in this section. The industrial user may change monitoring locations only after receiving prior approval from the City. The industrial user may not use dilution as a substitute for adequate treatment to achieve compliance with applicable standards.

(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12428, § 2, 8-31-10; Ord. No. 12962, §§ 2, 4, 6-16-15; Ord. No. 13172, §§ 4, 5, 4-18-17)

Sec. 31-51.01. Fats, Oils and Grease (FOG) Management Program.

Fats, Oils and Grease (FOG) Management Program. Disposal of "oil" by discharge to the sewer system is not permitted. Oils include automotive lubricating oils, transmission and brake fluid, other industrial oils and vegetable oils used in a restaurant or food processing facility.

(1) The Fats, Oils and Grease (FOG) Management Program is hereby adopted as the official management program for FOGs pursuant to the April 24, 2013 Consent Decree signed by Judge Curtis Collier, United States Federal Court for the Eastern District of Tennessee, Southern Division. The provisions of such FOG Management Program shall be in full force and effect to the same extent as if such provisions were copied verbatim herein.

(2) The following appendices to the FOG Management Program are hereby adopted as part of the official FOG Management Program:

A. Waste Resources Division Organization Charts.

B. FOG Management Standard Operating Procedures.

C. Food Service Establishment Grease Control Inspection Form.

D. Grease Control Noncompliance Notification Form.

E. City of Chattanooga's Fats, Oils & Grease (FOG) Management Enforcement Response Guide.

F. City of Chattanooga Specifications for Grease Interceptors.

G. City of Chattanooga Specifications for Grease Traps.

H. FSE Good Cleaning Practices Posters.

I. FOG Brochure.

(Ord. No. 12962, § 2, 6-16-15)

Sec. 31-51.02. FOG Program violations and penalties.

a. Definitions.

(1) **Administrative Penalties.** An administrative penalty is a monetary penalty assessed by the Director or his designee for violations of pretreatment standards and requirements. Administrative penalties are to be used as an escalated enforcement action and are punitive in nature and are not related to a specific cost born by the Director or his designee. Instead, the amount of the penalty should recapture any economic benefit gained by noncompliance and/or deter future violations. An Administrative Order is to be used to assess an administrative penalty.

(2) **Administrative Orders (AO).** Administrative Orders are to be issued by the Director or the Director's designee. Administrative Orders are enforcement documents that direct users to undertake and/or to cease specified activities. Administrative Orders are to be used as the first formal response to significant noncompliance, and may incorporate compliance schedules, administrative penalties, assessments for costs incurred during investigation and/or enforcement, attorney's fees, assessments for damages and termination of service. The Department has adopted four (4) general types of AOs: Compliance Orders, Show Cause Orders, Cease and Desist Orders, and Agreed Orders:

(a) **Compliance Order.** A Compliance Order directs the User to achieve or restore compliance by a specified date and is the primary means of assessing penalties and costs. The Compliance Order will document the noncompliance and state required actions to be accomplished by specific dates and is issued by the Director or his designee.

(b) **Show Cause Order.** An Order to Show Cause directs the User to appear before the Director or his designee, explain its noncompliance, and show cause why more severe enforcement action should not be pursued. The Order to Show Cause shall include the nature of the violation with sufficient specificity as to the character of the violation, and the date(s) on which such violation(s) occurred to enable the user to prepare a defense. Such Order to Show Cause shall be mailed to the user by certified mail, return receipt requested, or shall be personally delivered to the user at least twenty (20) days prior to the proposed action except in the event of an emergency. At the show cause hearing, the user may present any defense he may have to such charges, either in person or through submission of written or documentary proof. The hearing is open to the public and may be formal (i.e. conducted according to the rules of evidence, with verbatim transcripts and cross examination of

witnesses) or informal. The results of all hearings, along with any data and testimony (recorded by tape machine or stenographer) submitted as evidence, are available to the public and may serve as evidentiary support for future enforcement actions.

(c) **Cease and Desist Order.** A Cease and Desist Order directs the noncompliant User to cease illegal or unauthorized discharge immediately or to terminate discharge altogether. To preserve the usefulness of this order in emergency situations, penalties should not be assessed in this document. A Cease and Desist Order will be used in situations where the discharge is causing interference, pass through, environmental harm, or otherwise creating an emergency situation. The order may be issued immediately upon discovery of an emergency situation or following a hearing. In an emergency, the order to cease and desist may be given by telephone with a subsequent written order to be served by the Director or his designee before the close of business on the next working day. If the User fails to comply with the order, the Director or his designee may take independent action to halt the discharge.

(d) **Agreed Order.** The Agreed Order is an agreement between the Department and the User. The Agreed Order normally contains three elements: (1) compliance schedules with specific milestone dates; (2) stipulated penalties, damages, and/or remedial actions; and (3) signature by the Director and the User representative. An Agreed Order is appropriate when the User assumes the responsibility for its noncompliance and is willing (in good faith) to correct the causes.

(3) **Noncompliance Notification (NCN).** The Noncompliance Notification (NCN) is a notification to the user that a practice, an action, or wastewater discharge is noncompliant with Department regulations or policies. A NCN informs the user that an action is required of the user within a specified time period designated by the Director, or their designee, or the noncompliance will require the Director to escalate enforcement action against the user.

(4) **Notice of Violation (NOV).** The Notice of Violation (NOV) is an official communication from the Director to the noncompliant user that informs the user that the pretreatment violation has occurred. The NOV is issued for relatively minor or infrequent violations of pretreatment standards and requirements and should be issued within five (5) working days of the identification of a violation. A NOV does not contain assessment of penalties or cost recovery. The NOV provides the user with an opportunity to correct the noncompliance on its own initiative rather than according to a

schedule of actions determined by the Director. The NOV documents the initial attempts of the Department to resolve the noncompliance. Authenticated copies of NOV's may serve as evidence in judicial proceedings.

(5) **Schedule of Compliance.** A Schedule of Compliance is a detailed list of steps to be taken by a noncompliant user whereby compliance with all pretreatment regulations will be achieved. This schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the User to meet the applicable Pretreatment Standards (e.g. hiring an engineer, completing preliminary plans, executing contracts for components, commencing construction, etc.).

(6) **Significant Noncompliance.** Violations that meet one (1) or more of the following criteria:

(a) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all of measurements taken during a six (6) month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter;

(b) Technical Review Criteria (TRC) violations, defined here as those in which thirty three (33) percent or more of all of the measurements for each pollutant parameter taken during a six (6) month period equal or exceed the product of the daily average maximum limit, or the average limit multiplied by the applicable TRC (TRC = 1.4 for Biochemical Oxygen Demand 5 (BOD5), Total Suspended Solids (TSS), and Fats, Oil, and Grease (FOG), and 1.2 for all other pollutants except pH). The following compatible pollutants are exempt from TRC consideration if they exceed the surcharge level but do not exceed upper ceiling: BOD, TSS, and/or FOG;

(c) Any other violations of a pretreatment effluent limit (daily maximum or long term average) that the Control Authority determines has caused, alone or in combination with other discharges, interference or pass through (including endangered the health of Publicly Owned Treatment Works (POTW) personnel or the general public);

(d) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority to halt or prevent such a discharge;

(e) Failure to meet within ninety (90) days after the schedule date compliance schedule milestones contained in a local control mechanism or enforcement order for starting construction, completing construction, and attaining final compliance;

(f) Failure to provide, within thirty (30) days after the due date, required reports, such as baseline monitoring reports, ninety (90) day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(g) Failure to accurately report noncompliance; and

(h) Any other violation or group of violations that the Control Authority determines will adversely affect the operation or implementation of the local pretreatment program.

b. Penalty Assessment. The City of Chattanooga has categorized the various types of violations, and assigned a penalty range to each category. Penalty categories are determined by using the Enforcement Response Guide. All penalty assessments will be approved and signed by the Director or the Director's designee. Penalty amounts determined are considered to be an economic deterrent to the noncompliance being addressed. Penalty ranges have been designed to recover any economic benefit gained by the violation through noncompliance.

CATEGORY 0	=	NO PENALTY
CATEGORY 1	=	$200.00 TO $500.00
CATEGORY 2	=	$500.00 TO $1,000.00
CATEGORY 3	=	$1,000.00 TO $10,000.00
CATEGORY 4	=	DIRECT LEGAL ACTION*

Any penalties and/or costs at the maximum penalty allowable by.

Assessments for damages or destruction of the facilities of the POTW, and any penalties, costs, and attorney's fees incurred by the pretreatment agency as the result of the illegal activity, as well as the expenses involved in enforcement, are not part of this penalty assessment procedure.

City of Chattanooga's Food Service Establishment Enforcement Response Guide

Incident	Category Level	Action Taken
1. Grease Interceptor structural failure (baffle wall collapsed, walls deteriorated, tank leaking, infiltration/ inflow in tank).		
A. Initial Notification.	0	NCN detailing violation and requiring correction within 30 days.
B. Second Notification — Failure to comply with NCN.	2	NOV requiring compliance within 30 additional days. Penalties may be assessed.
C. Third Notification — Failure to comply with NOV.	3	Significant Noncompliance. May be subject to daily penalties.
2. Failure to install Grease Control Equipment		
A. Initial Notification — Notification in writing by POTW of no treatment system.	0	NCN detailing violation and requiring correction within 30 days.
B. Second Notification — Failure to comply with NCN.	2	NOV requiring compliance within 30 additional days. Penalties may be assessed.
C. Third Notification — Failure to comply with NOV.	3	Significant Noncompliance. May be subject to daily penalties.
3. Failure of new facility, or an existing facility that upgrades their facility, to notify City, or submit *Grease Control Equipment Inquiry* Information.	0	Issue NCN and require GCE Inquiry Information.
4. Failure to install influent and/or effluent "T" on interceptor within 30 days after notification.	1	Significant Noncompliance. May be subject to penalties.

City of Chattanooga's Food Service Establishment Enforcement Response Guide

Incident	Category Level	Action Taken
5. Grease Control Equipment not maintained (pumped or cleaned) as required.		
A. 1 incident within 24 month period	0	NCN detailing noncompliance and requiring correction within 30 days
B. 2 incidents within 24 month period	1	NOV requiring compliance within 30 additional days. Penalties may be assessed.
C. 3 incidents within 24 month period	2	2nd NOV requiring compliance within 30 additional days. Penalties may be assessed.
D. 4 incidents within 24 month period	3	Significant Noncompliance. Penalties may be assessed.
6. Failure to respond to any notification letter within 30 days.		Escalation of Enforcement
7. No record of grease control equipment maintenance or cleaning at facility.		
A. 1 incident within 24 month period	0	NCN detailing noncompliance and requiring correction within 30 days.
B. 2 incidents within 24 month period	1	NOV requiring compliance within 30 additional days. Penalties may be assessed.
C. 3 incidents within 24 month period	2	2nd NOV requiring compliance within 30 additional days. Penalties may be assessed.
D. 4 incidents within 24 month period	3	Significant Noncompliance; Penalties may be assessed.
8. Failure to allow access for City personnel to adequately assess grease control equipment.		Significant Noncompliance; Penalties may be assessed.
9. Safety hazard at grease control equipment area (i.e. missing manhole cover, manhole cover damaged or not made of material of suitable strength).		Requires immediate correction.

City of Chattanooga's Food Service Establishment Enforcement Response Guide

Incident	Category Level	Action Taken
10. Facility using additives or chemicals that emulsify or otherwise cause FOG to be discharged to City of Chattanooga sewer system.		Significant Noncompliance.

Abbreviations:

AO:	Administrative Order
FOG:	Fats, Oils and Grease
FSE:	Food Service Establishment
GCE:	Grease Control Equipment
NCN:	Noncompliance Notification
NOV:	Notice of Violation
POTW:	Publicly Owned Treatment Works

c. Any person aggrieved by an order or determination of the Director or his designee may appeal to the Wastewater Regulations and Appeals Board pursuant to the requirements set forth in Sec. 31-295. A written notice of appeal must be filed with the Wastewater Regulations and Appeals Board within fifteen (15) days of the Director's order or determination.
(Ord. No. 12962, § 2, 6-16-15)

Sec. 31-52. Exception to wastewater strength standard.

(a) *Applicability.* This section provides a method for industrial users subject to the limitation on wastewater strength pollutants listed in section 31-51(i) to apply for and receive a temporary exception to the discharge level for one (1) or more pollutants or parameters.

(b) *Time of Application.* Applicants for a temporary exception shall apply for same at the time they are required to apply for a wastewater discharge permit or renewal thereof; provided, however, that the director shall allow applications at any time unless the applicant shall have submitted the same or substantially similar application within the preceding year and the same shall have been denied by the board.

(c) *Written Applications.* All applications for an exception shall be in writing, and shall contain sufficient information for evaluation of each of the factors to be considered by the director pursuant to paragraph (d) hereof.

(d) *Review by Director.* All applications for an exception shall be reviewed by the director. If the application does not contain sufficient information for complete evaluation, the director shall notify the applicant of the deficiencies and request additional information. The applicant shall have thirty (30) days following notification by the director to correct such deficiencies. This thirty (30) day period may be extended by the director upon application and for just cause shown. Upon receipt of a complete application the director shall evaluate same within thirty (30) days and shall approve or deny the application based upon the following factors:

(1) The director shall consider whether or not the applicant is subject to a national pretreatment standard containing discharge limitations more stringent than those in section 31-51 and grant an exception only if such exception may be granted within limitations of applicable federal regulations;

(2) The director shall consider whether or not the exception would apply to discharge of a substance classified as a toxic substance under regulations promulgated by the Environmental Protection Agency under the provisions of section 307(a) of the Act (33 U.S.C. 1317), or similar state regulation, and then grant an exception only if such exception may be granted with the limitations of applicable federal or state regulations;

(3) The director shall consider whether or not the granting of an exception would create conditions or be a hazard to city personnel that would reduce the effectiveness of the treatment works taking into consideration the concentration of said pollutant in the treatment works' influent and the design capability of the treatment works;

(4) The director shall consider whether or not the granting of an exception might cause the treatment works to violate the limitations in its NPDES permit;

(5) The director shall consider whether or not the granting of an exception would cause elements or compounds to be present in the sludge of the treatment works which would prevent sludge use or disposal by the city or which would cause the city to violate any regulation promulgated by EPA under the provisions of section 405 of the Act (33 U.S.C. 1345) or similar state regulatory measure;

(6) The director may consider the cost of pretreatment or other types of control techniques which would be necessary for the user to achieve effluent reduction, but prohibitive cost alone shall not be the basis for granting an exception;

(7) The director may consider the age of equipment and industrial facilities involved to the extent that such factors affect the quality or quantity of wastewater discharge;

(8) The director may consider the process employed by the user and process changes available which would affect the quality or quantity of wastewater discharge;

(9) The director may consider the engineering aspects of various types of pretreatment or other control techniques available to the user to improve the quality or quantity of wastewater discharge;

(10) The director may consider an application for exception based upon the fact that water conservation measures instituted by the user or proposed by the user result in a higher concentration of particular pollutants in the wastewater discharge of the user without increasing the amount of mass of pollutants discharged. To be eligible for an exception under this subparagraph, the applicant must show that except for water conservation measures, the applicant's discharge has been or would be in compliance with the limitations on wastewater strength set forth in section 31-51. Provided however, no such exception shall be granted if the increased concentration of pollutants in the applicant's wastewater would have significant adverse impact upon the operation of the POTW.

(e) *Review by Wastewater Regulations and Appeals Board.* The board shall review any appeal from a denial by the director of an application for an exception and shall take into account the same factors considered by the director. At such hearing, the applicant and the director shall have the right to present relevant proof by oral or documentary evidence. The procedure set forth in section 31-295 hereof shall be applicable to such a hearing. The applicant shall bear the burden of proof in such hearing.

(f) *Good Management Practices Required.* The director or the board shall not grant an exception unless the applicant shall demonstrate to the board that he is utilizing "good management practices" (GMP) to prevent or reduce his contribution of pollutants to the POTW. GMP's include but are not limited to preventative operating and maintenance procedures, schedule of activities, process changes, prohibiting activities, and other management practices to reduce the quality or quantity of effluent discharged and to control plant site runoff, spillage, leaks, and drainage from raw material storage.

(g) *Variance from Categorical Pretreatment Standards.* Industrial users subject to a categorical pretreatment standard may request a variance from the standard for fundamentally different factors from EPA or from the state director in accordance with 40 CFR 403.13.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12428, § 3, 8-31-10; Ord. No. 12962, § 4, 6-16-15)

DIVISION 3. PERMITS AND ADMINISTRATION

Sec. 31-53. Wastewater discharge permit; discharge reports; and administration.

(a) *Applicability.* The provisions of this section are applicable to all industrial users of the POTW. The City of Chattanooga has an "Approved POTW Pretreatment Program" as that term is defined in 40 CFR Section 403.3(d), and any permits issued hereunder to industrial users who are subject to or who become subject to a "National Categorical Pretreatment Standard" as that term is defined in 40 CFR 403.3(j) shall be conditioned upon the industrial user also complying with all applicable substantive and procedural requirements promulgated by the Environmental Protection Agency or the State of Tennessee in regard to such "Categorical Standards" unless an exception for the city's program or for specific industrial categories has been authorized.

(b) *Application and Permit Requirements for Industrial Users.* All significant industrial users of the POTW prior to discharging non-domestic waste into the POTW shall apply for and obtain a wastewater discharge permit in the manner hereinafter set forth. Prior to discharge of non-domestic wastewater into the POTW, an industrial user shall request the director to determine if the proposed discharge is significant as defined in Section 31-50(b). If the discharge is determined not to be significant, then the director may still establish appropriate discharge conditions for the user. Any non-categorical industrial user designated as significant may petition the director to be deleted from the list of significant industrial users on the grounds that it has no potential for adversely affecting the POTW's operation or violating any pretreatment standard or requirement. All significant industrial users shall obtain an industrial wastewater discharge permit and shall complete such forms as required by the director, pay appropriate fees, and agree to abide by the provisions of this article and any specific conditions or regulations established by the director. All original applications shall be accompanied by a report containing the information specified in subparagraph (c) hereof. All original applications shall also include a site plan, floor plan, mechanical and plumbing plans with sufficient detail to show all sewers and appurtenances in the user's premises by size, location, and elevation; and the industrial user shall submit to the director revised plans whenever alterations or additions to the user's premises affect said plans.

(c) *Report Requirement.* The report required by paragraph (b) above or other provisions of this article for all significant industrial users shall contain, in units and terms appropriate for evaluation, the information listed in subparagraphs (1) through (5) below. Industrial users subject to national pretreatment standards shall submit to the director a report which contains the information listed in subparagraphs (1) through (6) below within one hundred and eighty (180) days after the promulgation by the Environmental Protection Agency of a National Pretreatment Standard under Section 307(b) or (c) (33 U.S.C. 1317 (b) or (c)) of the Act. This report is called the "Baseline Monitoring Report" or BMR. Industrial users who are unable to achieve a discharge limit set forth in section 31-51 hereof without improved operation and maintenance procedures or pretreatment shall submit a report which contains the information listed in subparagraph (1) through (7) of this paragraph.

As specified hereinabove, the report shall contain all or applicable portions of the following:

(1) *Identifying Information.* The name and address of the industrial user; and the name(s) of the owner and operator, including contract information;

(2) *Permits.* A list of any environmental control permits held by the user;

(3) *Description of operations.*

(A) A brief description of the nature, average rate of production and standard industrial classification of the operation(s) carried out by such industrial user. The description should include a schematic process diagram which indicates points of discharge to the POTW;

(B) The types of wastes generated and a list of chemicals used and materials stored at the facility which could be accidentally discharged to the POTW;

(C) Number of employees, hours of operation, and actual or proposed hours of discharge to the POTW;

(D) Type and amount of raw materials processed (average and maximum per day), and type and amount of products produced (rate of production);

(E) Site plans, floor plans, and plumbing plans to show all sewers, floor drains, and appurtenances by size, location, and elevation, and all points of discharge.

(4) Proposed location for monitoring for all wastes covered by the permit;

(5) *Flow measurement.* The measured average and maximum flow of the discharge from such industrial user to the POTW, in gallons per day;

(6) *Measurement of pollutants.*The nature and concentration of pollutants in the discharge from each regulated process from such industrial user and identification of any applicable pretreatment standards and requirements. The concentration shall be reported as a maximum or average level as provided for in the applicable pretreatment standard and as determined by standard methods approved by the director. If an alternate or equivalent concentration limit has been calculated in accordance with any pretreatment standard, this adjusted concentration limit shall also be submitted to the director for approval. Wastewater sample(s) shall be representative of daily operations. Sampling and analysis shall comply with the requirements of Section 31-53(h)(7).Whenever pH information is required in the initial report or in regular periodic self-monitoring reports, it shall be collected in the form of a chart from a continuous pH recorder;. In cases where the standard requires compliance with a BMP or pollution prevention alternative, the user shall submit documentation as required to determine compliance with the standard.

(7) Proposed pretreatment systems or equipment and/or operation and maintenance procedures necessary to meet applicable pretreatment standards and requirements.

(8) Any request for a monitoring waiver for a pollutant neither present nor expected to be present in the discharge.

(9) Any other information as may be deemed necessary by the director to evaluate the permit application.

(10) *Certification.* A statement, reviewed by an authorized representative of the industrial user (as defined in paragraph (h)(11) below) and certified by a professional engineer indicating whether pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance procedures or additional pretreatment is required for the industrial user to meet the pretreatment standards and requirements; and

(11) *Compliance schedule.* If additional pretreatment or operation and maintenance procedure will be required to meet the pretreatment standards, then the report shall contain the shortest schedule by which the industrial user will provide such additional pretreatment. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. If a pretreatment standard has been modified or adjusted, the information in paragraphs (h)(6) and (h)(7) shall apply to the modified or adjusted limits.

All permit applications must be signed and certified in accordance with Section 31-53(h)(11).

For purposes of this paragraph when the context so indicates the phrase "pretreatment standard" shall include either a national pretreatment standard or a pretreatment standard imposed as a result of the industrial user's discharging any incompatible pollutant regulated by Section 31-51 hereof. For purposes of this paragraph the term "pollutant" shall include any pollutant identified in a national pretreatment standard or any incompatible pollutant identified in Section 31-51 hereof.

(d) *Incomplete Applications.* The director will act only on applications that are accompanied by a report which contains all the information required in paragraph (c) above. Industrial users who have filed incomplete applications will be notified by the director that the application is deficient and the nature of such deficiency and will be given thirty (30) days to correct the deficiency. If the deficiency is not corrected within thirty (30) days or with such extended period as allowed by the director, the director shall deny the application and notify the applicant in writing of such action.

(e) *Evaluation of Application Permit Conditions.* Upon receipt of complete applications, the director shall review and evaluate the applications and shall propose such special permit conditions as he deems advisable. All wastewater discharge permits shall be expressly subject to all the provisions of this article and all other applicable ordinances, laws, and regulations. All wastewater discharge permits shall contain the following:

(1) Statement of duration (no more than five (5) years) and effective date;

(2) Statement of non-transferability without, at a minimum, prior notification of the director and provision of a copy of the ordinance to the new owner or operator;

(3) Effluent limits, including BMPs (if appropriate), based on applicable general pretreatment standards, categorical pretreatment standards, local limits, and state and local law;

(4) Self-monitoring, sampling, reporting, notification, and recordkeeping requirements, including identification of the pollutants (or BMPs) to be monitored, sampling frequency, and sample type, based on applicable general pretreatment standards, categorical pretreatment standards, local limits, and state and local law;

(5) A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend time for compliance beyond that required by applicable federal, state, or local law; and

(6) Requirements to control slug discharges, if determined by the director to be necessary.

The director may also propose that the wastewater discharge permit be subject to one (1) or more special conditions in regard to any of the following:

(7) Pretreatment requirements;

(8) Limits on rate and time of discharge of requirements for flow regulations and equalization;

(9) Requirements for installation of inspection and sampling facilities; including flow measurement devices;

(10) Development and implementation of waste minimization or pollution prevention plans to reduce the amount of pollutants discharged to the POTW;

(11) Other conditions as deemed appropriate by the director to insure compliance with this article or other applicable ordinance, law or regulation;

(12) Requirements for the installation of facilities to prevent and control accidental discharge or "spills" at the user's premises; and

(13) The unit charge or schedule of charges and fees for the wastewater to be discharged to a community sewer.

(f) *Applicant to be Notified of Proposed Permit Conditions; Right to Object.*

(1) Upon completion of his evaluation, the director shall notify the applicant of any special permit conditions which he proposed be included in the wastewater discharge permit;

(2) The applicant shall have forty-five (45) days from and after the date of the director's recommendations for special permit conditions to review same and file written objections with the director in regard to any special permit conditions recommended by the director.

The director may, but shall not be required, to schedule a meeting with applicant's authorized representative within fifteen (15) days following receipt of the applicant's objections, and attempt to resolve disputed issues concerning special permit conditions;

(3) If applicant files no objection to special permit conditions proposed by the director, or a subsequent agreement is reached concerning same, the director shall issue a wastewater discharge permit to applicant with such special conditions incorporated therein. Otherwise, the director shall submit the disputed matters to the board for resolution as hereinafter provided.

(g) *Board to Establish Permit Conditions; Hearing.*

(1) In the event the director cannot issue a wastewater discharge permit pursuant to paragraph (f) above, the director shall submit to the board his proposed permit conditions and the applicant's written objections thereto at the next regularly scheduled meeting of the board or a specially called meeting;

(2) The board shall schedule a hearing within ninety (90) days following the meeting referred to hereinabove unless such time be extended for just cause shown to resolve any disputed matters relevant to such permit;

(3) The director shall notify the applicant of the date, time, place, and purpose of the hearing scheduled by the board. The applicant and the director shall have the right to participate in such hearing and present any relevant evidence to the board concerning proposed special permit conditions or other matters being considered by the board;

(4) Following such hearing or such additional hearings as shall be deemed necessary and advisable by the board, the board shall establish such special permit conditions as it deems advisable to insure the applicant's compliance with this article or other applicable law or regulation and direct the director to issue a wastewater discharge permit to the applicant accordingly.

(h) *Compliance Schedule and Reporting Requirements.* The following conditions shall apply to the schedules and reports required by paragraphs (c), (e), or (g) of this section:

(1) Schedule components. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment requirements for the industrial user to meet the applicable pretreatment standards (e.g. hiring an engineer, completing the engineering report, completing final plans, executing contracts for major components, commencing construction, completing construction, etc.)

(2) Schedule intervals. No increment referred to in subparagraph (h)(1) shall exceed nine (9) months.

(3) Compliance schedule progress reports. No later than fourteen (14) days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the director including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress,

the reason for the delay, and steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine (9) months elapse between such progress reports to the director.

(4) 90-Day compliance. Within ninety (90) days following the date for final compliance with applicable pretreatment standards or, in the case of a new source, following commencement of the introduction of wastewater into the POTW, any industrial user subject to pretreatment standards and requirements shall submit to the director a report containing the information described in Section 31-53(c)(4)-(6). For users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with Section 31-53(h)(11) of this ordinance. All sampling shall be performed in accordance with Section 31-53(h)(7).

(5) Compliance Monitoring Reports.

(A) All significant industrial users shall submit to the director during the months of June and December, unless required more frequently in the pretreatment standard or by the director, a report indicating the nature and concentration, of pollutants in the effluent which are limited by their permit. In addition, this report shall include a record of average and maximum daily flows. In cases where the pretreatment standard requires compliance with a BMP or pollution prevention alternative, the user must submit documentation necessary to determine the compliance status of the user. At the discretion of the director, and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the director may agree to alter the months during which the above reports are to be submitted.

(B) In cases where the director or a pretreatment standard has imposed mass limitations, the report required by subparagraph (i) of this paragraph shall indicate the mass of pollutants regulated by pretreatment standards in the effluent of the industrial user.

(C) Reporting requirements for industrial users not subject to categorical pretreatment standards. In cases where the permit requires compliance with a BMP or pollution prevention alternative, the user must submit documentation as required by the city to determine the compliance status of the user. These reports must be based on sampling and analysis in the period covered by the report, and in accordance with the techniques described in 40 CFR Part 136.

(D) All monitoring and compliance reports must be certified and signed in accordance with the requirements of Section 31-53(h)(11).

(6) *Accidental and Slug Discharge Reporting and Notification.*The industrial user shall notify the POTW immediately by telephone in the event of an accidental discharge, slug loading, or slug discharge, as defined in Section 31-50(46) of this ordinance. The notification shall include the location of the discharge, type of waste, concentration and volume (if known), and corrective action taken by user. Each significant industrial user shall also immediately notify the director of any changes at the facility affecting the potential for a slug discharge.

(7) The reports required in this section shall contain the results of sampling and analysis of the discharge, including the flow and the nature and concentration, or production rates and mass limits where requested by the director, as applicable, of pollutants contained therein which are limited by the applicable pretreatment standards or industrial permit. For industrial users subject to equivalent mass or concentration limits established by the director as alternative standards, the report required by paragraph (h)(5) shall contain a reasonable measure of the user's long term production rate. For all other industrial users subject to categorical pretreatment standards expressed only in terms of allowable pollutant discharge per unit of production (or other measure of operation), the report

required by paragraph (h)(5) shall include the user's actual average production rate for the reporting period. The frequency of monitoring shall be prescribed in the applicable treatment standard. All analyses shall be performed in accordance with procedures established by the Environmental Protection Agency under the provisions of Section 304(h) of the Act (33 U.S.C. 1314 (h)) and contained in 40 C.F.R. Part 136 and amendments thereto or with any other test procedures approved by the Environmental Protection Agency or the director. Sampling shall be performed in accordance with the techniques approved by the Environmental Protection Agency, or the director. All wastewater samples must be representative of the user's actual discharge.

(A) Except as indicated in Subparagraphs (B) and (C) below, the user must collect wastewater samples using twenty-four (24) hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the director. Where time-proportional composite sampling or grab sampling is authorized, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a twenty-four (24) hour period may be composited prior to analysis as follows: for cyanide, total phenols, and sulfides, the samples may be composited in a laboratory or in a field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the director, as appropriate. In addition, grab samples may be required to show compliance with instantaneous limits.

(B) Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

(C) For sampling required in support of baseline monitoring and ninety (90) day compliance reports required in Sections 31-53(c) and (h)(4) and 40 CFR 503.12(b) and (d), a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfides, and volatile organic compounds for facilities for which historical sampling data do not exist. For facilities with historical sampling data available, the director may authorize a lower minimum. For reports required by Section 31- 53(h)(5) and 40 CFR 403.12(e) and (h), the industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards.

(D) The director shall inspect and sample the effluent from each significant industrial user at least once every twelve (12) months.

(8) Notification of the discharge of hazardous wastes.

(A) The industrial user shall notify, as soon as practicable, the POTW, the EPA Regional Waste Management Division Director, and the State hazardous waste authorities of any discharge into the POTW of a substance which is a listed or characteristic waste under section 3001 of RCRA (42 USCA § 6921). Such notification must include a description of any such wastes discharged, specifying the volume and concentration of such wastes and the type of discharge (continuous, batch, or other), identifying the hazardous constituents contained in the listed wastes, and estimating the volume of hazardous wastes expected to be discharged during the following twelve (12) months. The notification must take place within one hundred eight (180) days after notification by the director. This requirement shall not apply to pollutants already reported under the self-monitoring requirements of Section 31-53.

(B) Dischargers are exempt from the requirements of this paragraph during a calendar month in which they discharge no more than fifteen (15) kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e). Discharge of more than fifteen (15) kilograms of non-acute hazardous wastes in any calendar month, or

any quantity of acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e). Discharge of more than fifteen (15) kilograms of non-acute hazardous wastes in any calendar month, or any quantity of acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e), requires a one (1) time notification. Subsequent months during which the industrial user discharges more than such quantities of hazardous waste do not require additional notification, except for the acute hazardous wastes.

(C) In the case of new regulations under Section 3001 of RCRA (42 USCA 56921) identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the industrial user must notify the POTW of the discharge of such substance within ninety (90) days of the effective date of such regulations, except for the exemption in paragraph (B) of this subsection.

(D) In the case of any notification made under this paragraph, the industrial user shall certify that it has a program in place to reduce the volume and toxicity of wastes generated to the degree it has determined to be economically practicable and that it has selected the method of treatment, storage, or disposal currently available which minimizes the present and future threat to human health and the environment.

(E) This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this ordinance, a permit issued thereunder, or any applicable federal or state law.

(9) Notification of Changed Discharge. All industrial users shall promptly notify the POTW in advance of any substantial change in the volume or character of pollutants in their discharge, including the listed or characteristic hazardous wastes for which the industrial user has submitted initial notification under paragraph (8) above.

(10) Provisions Governing Fraud and False Statements. The reports required to be submitted under this section shall be subject to the provisions of 18 U.S.C. § 1001 relating to fraud and false statements and the provisions of Sections 309(c)(4) and (6) of the Act (33 USCA § 1311), as amended, governing false statements, representation or certifications in reports required under the Act.

(11) Signatory requirements for permit applications, user reports, and initial monitoring waiver. The following certification statement must be signed and submitted by users submitting permit applications and monitoring and compliance reports.

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

The applications and reports shall be signed as follows:

(A) By a responsible corporate officer, if the industrial user submitting the reports required by this section is a corporation. For the purpose of this paragraph, a responsible corporate officer means:

(i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation, or

(ii) The manager of one (1) or more manufacturing production, or operating facilities; provided that the manager is authorized to make management decisions

which govern the operation of the regulated facility, including having the explicit duty of making major capital investment recommendations and to initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations, can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements, and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(B) By a general partner or proprietor if the industrial user submitting the reports required by this section is a partnership or sole proprietorship respectively.

(C) By a duly authorized representative of the individual designated in subparagraph (A) or (B) of this section if:

(i) The authorization is made in writing by the individual described in subparagraph (A) or (B);

(ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager, operator of a well, or well field director, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and

(iii) The written authorization is submitted to the director.

(D) If an authorization under subparagraph (C) of this section is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of subparagraph (C) of this section must be submitted to the director prior to or together with any reports to be signed by an authorized representative.

(12) Reporting of Violation. If sampling performed by an industrial user indicates a violation, the user shall notify the director within twenty-four (24) hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the director within thirty (30) days after becoming aware of the violation, except the industrial user is not required to resample if:

(A) The city performs sampling at the industrial user at a frequency of at least once per month, or

(B) The city performs sampling at the user between the time when the user performs its initial sampling and the time when the user receives the results of this sampling, or

(C) The city has performed the sampling and analysis in lieu of the industrial user. If the city has performed the sampling and analysis in lieu of the industrial user, the city must repeat the sampling and analysis unless it notifies the user of the violation and requires the user to perform the repeat sampling and analysis.

(13) If an industrial user subject to the reporting requirement in paragraph (e) of this section monitors any pollutant more frequently than required by the director, using approved procedures prescribed in this section, the results of this monitoring shall be included in the report.

(i) *Bypass.*

(1) Definitions.

(A) "Bypass" means the intentional division of waste streams from any portion of an industrial user's treatment facility.

(B) "Severe property damage" means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

(2) Bypass not violating applicable Pretreatment Standards or Requirements. An industrial user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of paragraphs (3) and (4) of this section.

(3) Notice.

(A) If an industrial user knows in advance of the need for a bypass, if shall submit prior notice to the director, if possible at least ten (10) days before the date of the bypass.

(B) An industrial user shall submit oral notice of an unanticipated bypass that exceeds applicable pretreatment standards to the director within twenty-four (24) hours from the time the industrial user becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the industrial user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The director may waive the written report on a case-by-case basis if the oral report has been received within twenty-four (24) hours.

(4) Prohibition of Bypass.

(A) Except as allowed in subparagraph (2) above, bypass is prohibited, and the director may take enforcement action against an industrial user for a bypass, unless:

(i) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

(ii) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and

(iii) The industrial user submitted notices as required under subparagraph (3) of this section.

(B) The director may approve an anticipated bypass, after considering its adverse effect, if the director determines that it will meet the three (3) conditions listed in subparagraph (4)(A) of this section.

(j) *Maintenance of Records.* Any industrial user subject to the reporting requirements established in this section shall maintain records of all information resulting from any monitoring activities required by this section. Such records shall include for all samples:

(1) The date, exact place, method, and time of sampling and the names of the persons taking the samples;

(2) The dates analyses were performed;

(3) Who performed the analyses;

(4) The analytical techniques/methods; and

(5) The results of such analyses.

(k) *Retention Period.* Any industrial user subject to the reporting requirement established in this section shall be required to retain for a minimum of three (3) years any records of monitoring activities and results (whether or not such monitoring activities are required by this section) and shall make such records available for inspection and copying by the director, Director of the Division of Water Pollution Control Tennessee Department of Health and Environment, or the Environmental Protection Agency. This period of retention shall be extended during the course of any unresolved litigation regarding the industrial user or when requested by the director, the Director, Tennessee, Department of Environment and Conservation (TDEC) or the Environmental Protection Agency (EPA). This requirement shall also apply to documentation associated with any BMPs established in connection with a pretreatment standard.

(l) *Duration of Permit.* Wastewater discharge permits normally are issued for a period of three (3) years. Permits may be issued for a period of less than three (3) years for the administrative convenience of the director so as to stagger the renewal dates of the permits. Provided further that permits issued to industrial users granted an exception pursuant to Section 31-52 shall be issued for a period of one (1) year. Notwithstanding the foregoing, industrial users becoming subject to a national pretreatment standard shall apply for new permits on the effective date of such national pretreatment standards. The director shall notify in writing any industrial user whom he has cause to believe is subject to a national pretreatment standard of the promulgation of such federal regulations, but any failure of the director in this regard shall not relieve the industrial user of the duty of complying with such national pretreatment standards. An industrial user must apply in writing for a renewal permit within the period of time not more than ninety (90) days and not less than thirty (30) days prior to expiration of the current permit. Provided further that limitations or conditions of a permit are subject to modification in accordance with Section 31-53(o), industrial users shall be notified of any proposed changes in their permit by the director at least thirty (30) days prior to the effective date of the change. Any change or new condition in a permit shall include a provision for a reasonable time schedule for compliance. The industrial user may appeal the decision of the director in regard to any changed permit conditions as otherwise provided in this article. Wastewater discharge permits are voidable upon nonuse, cessation of operations, or transfer of business ownership. All wastewater discharge permits are void upon the issuance of a new wastewater discharge permit.

(m) *Transfer of a Permit.* Wastewater discharge permits are issued to a specific industrial user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user, or for different premises, or a new or changed operation, without the prior approval of the director. The new owner or operator must state to the director that it plans no change to the facility's operations and processes must provide the specific date on which the transfer is to occur, and agree that the new owner/user shall assume responsibility for all Wastewater Discharge Permit requirements. Upon approval of a permit transfer, the director will provide the new owner or operator with a copy of the wastewater discharge permit.

(n) *Revocation of Permit.* Any permit issued under the provisions of this article is subject to be modified, suspended, or revoked in whole or in part during its term for cause including but not limited to, the following:

(1) Violation of any terms or conditions of the wastewater discharge permit or other applicable law or regulation;

(2) Obtaining of a permit by misrepresentation or failure to disclose fully all relevant facts; or

(3) A change in any condition that requires either a temporary or permanent reduction or elimination of the permitted discharge.

(4) Refusal of reasonable access to the user's premise for the purpose of inspection or monitoring.

(5) Failure to notify the director of significant changes to the wastewater prior to changed discharge;

(6) Falsifying self-monitoring reports and certification statements;

(7) Tampering with monitoring equipment;

(8) Failure to comply with the requirements of an enforcement notice or order;

(9) Operating with an expired wastewater discharge permit (unless timely application for renewal has been submitted); or

(10) Failure to provide advance notice of the transfer of business ownership.

(o) *Modification of Permit.* The director may modify an individual wastewater discharge permit for good cause, including but not limited to, the following:

(1) To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

(2) To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of the individual wastewater discharge permit issuance;

(3) A change in the POTW that requires either a temporary or a permanent reduction of the authorized discharge;

(4) Information indicating that the permitted discharge poses a threat to the POTW, City personnel, or the receiving waters;

(5) Violation of the terms or conditions of the wastewater discharge permit;

(6) Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in required reporting;

(7) Revision or a grant of a variance from categorical pretreatment standards;

(8) To correct typographical or other errors in the wastewater discharge permit; or

(9) To reflect transfer of facility ownership or operation to a new owner or operator.

(p) *Electronic Reporting.* Electronic reporting, if allowed by the director shall comply with the requirements of 40 CFR Part 3.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12428, § 4, 8-31-10; Ord. No. 12962, § 4, 6-16-15; Ord. No. 13172, §§ 6, 7, 4-18-17)

Sec. 31-54. Inspections, monitoring, entry, and confidentiality.

(a) Whenever required to carry out the objective of this article, including but not limited to: 1) developing or assisting in the development of any effluent limitation, or other limitation, prohibition, or effluent standard, pretreatment standard, standard of performance, or permit condition under this article; 2) determining whether any person is in violation of any such effluent limitation, or other limitation, prohibition or effluent standard, pretreatment standard, standard of performance, or permit condition; 3) any requirement established under this section:

(1) The director shall require any industrial user to:

A) Establish and maintain such record;

B) Make such reports;

C) Install, use, and maintain such monitoring equipment or methods, including where appropriate, biological monitoring methods;

D) Sample such effluents in accordance with such methods, at such locations, at such intervals, and in such manner as the director shall prescribe; and

E) Provide such other information as he may reasonably require.

(2) The director or his authorized representative, upon presentation of his credentials:

A) Shall have a right of entry to, upon, or through any user's premises in which an effluent source is located or in which any records required to be maintained under this subsection are located, and

B) May at reasonable times have access to and copy any records, inspect any monitoring equipment or method required under clause (a)(1), and sample any effluents which the owner or operator of such source is required to sample under such clause.

(b) Any records, reports, or information obtained under this section 1) shall, in the case of effluent data, be related to any applicable effluent limitations, toxic, pretreatment, or permit condition, and 2) shall be available to the public to the extent provided by 40 CFR Part 2.302 except that upon a showing satisfactory to the director by any person that records, reports, or information, or particular part thereof (other than effluent data), to which the director has access under this section, if made public would divulge methods or processes entitled to protection as trade secrets of such person, the director shall consider such record, report, or information, or particular portion thereof confidential in accordance with the purposes of this article, except that such record, report or information may be disclosed to officers, employee, or authorized representatives of the State of Tennessee or the United States concerning with carrying out the provisions of the Clean Water Act or when relevant in any proceeding under this article or other applicable laws.

(c) Specific requirements under the provisions of paragraph (a)(1) of this section shall be established by the director, or the board as applicable, for each industrial user and such requirements shall be included as a condition of the industrial user's wastewater discharge permit. The nature of degree of any requirement under this provision shall depend upon the nature of the user's discharge, the impact of the discharge on the POTW, the volume of water discharged, and the technical feasibility of an economic reasonableness of any such requirement imposed.

(d) The industrial user shall be required to design any necessary facility, and to submit according to the permit compliance schedule, an engineering report, including detailed design plans and operating procedures to the director for review in accordance with accepted engineering practices. The director shall review said plans and other documents within 45 days and shall recommend to the industrial user any change he deems appropriate.

(e) Upon approval of plans and other documents as specified in paragraph (d) of this section, the industrial user shall secure such building, electrical, plumbing or other permits as may be required by this code and proceed to construct any necessary facility and establish such operating procedures as are required within the time provided in the industrial user's wastewater discharge permit.

(f) All significant industrial users shall install a monitoring station of a standard design or be designed in a manner that is satisfactory to the director. Monitoring stations and flow measurement facilities must be properly operated, kept clean, safely accessible and maintained in good working order at all times. The monitoring stations shall not contain noxious or malodorous gases/odors in concentrations that could create a public nuisance or a health and safety concern, or to prevent entry into the monitoring stations. The failure of a user to keep its monitoring station in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

(g) In the event any industrial user denies the director or his authorized representative the right of entry, to or upon the user's premises, for purposes of inspection, sampling effluents, inspecting and copying records, or verifying that a user is not discharging industrial wastes and is not subject to section 31-51, or performing such other duties as shall be imposed upon him by this article, the director shall seek a warrant or use such other legal procedures as shall be advisable and reasonably necessary to discharge his duties under this section.

(h) Any industrial user failing or refusing to discharge any duty imposed upon him under the provisions of this section, or who denies the director or his authorized representative the right to enter upon the industrial user's premises for purposes of inspection, sampling effluents, inspecting and copying records, or such other duties as may be imposed upon him by this section, shall be deemed to have violated the conditions of his wastewater discharge permit and such permit shall be subject to modification, suspension, or revocation under the procedures established in this article. A user who does not have an industrial waste discharge permit and denies the director or his authorized representative the right to inspect as described in section 31-9 or 31-54(g) is subject to having the sewer service in question terminated by the director.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12428, § 5, 8-31-10; Ord. No. 12962, § 4, 6-16-15; Ord. No. 13172, § 8, 4-18-17)

Sec. 31-55. Dangerous discharge notification requirements.

(a) *Telephone Notification.* Any person or user causing or suffering any discharge whether accidental or not, which presents or may present an imminent or substantial endangerment to the health and welfare of persons, to the environment, or which is likely to cause interference with the POTW, shall notify the director immediately by telephone. In the absence of the director, notification shall be given to the city employee then in charge of the treatment works.

(b) *Written Report.* Within five (5) days following such occurrence, the user shall provide the director with a detailed written report describing the cause of the dangerous discharge and measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, fish kills, or any other damage to person or property; nor shall such notification relieve the user of any fines, civil penalties, or other liability which may be imposed by this article or other applicable law.

(c) *Notice to Employees.* A notice shall be permanently posted on the user's bulletin board or other prominent place advising employers whom to call in the event of a dangerous discharge. Employers shall insure that all employees who may cause or suffer such a dangerous discharge to occur are advised of the emergency notification procedure.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-56. Reserved.

DIVISION 4. WASTEWATER REGULATIONS BOARD

Sec. 31-57. Wastewater regulations and appeals board.

(a) *Established.* There is hereby established a Board of nine (9) members to be known as the "Wastewater Regulations and Appeal Board".

(b) *Composition: Terms: Filling Vacancies.* The nine (9) members of this board shall be appointed by the mayor, subject to the approval of the city council. The mayor shall appoint one (1) member each with the following qualifications: one (1) environmental engineer or environmental scientist; one (1) attorney, one (1) person employed or retired from an industrial or commercial establishment regulated by this article; and one (1) person who is experienced in the science or practice of finance. One (1) person shall be nominated by the Greater Chattanooga Hospitality Association with restaurant experience, but subject to approval by the mayor and confirmation by the city council. One (1) member shall be nominated by a regional user located in the State of Georgia and one (1) member nominated by a regional user located in the State of Tennessee, but subject to approval by the mayor and confirmation by the city council. The remaining two (2) members shall not have any qualification other than being an adult citizen of the area served by the regional system. The seven (7) members of the board appointed before this reconstitution of

the board shall continue to serve until their terms expire. The two (2) new members of the board and all future members of the board shall be appointed for four (4) years. All members shall serve until their successor is appointed, and all members shall serve at the pleasure of the mayor and the city council. In the event of a vacancy, the mayor shall appoint a member to fill the unexpired term subject to approval by the city council. The board shall organize and select its own chairman, vice chairman, and secretary without compensation, but shall receive their actual expenses incurred in attending meetings of the board and the performance of any duties as members of the board.

(c) *General duties of the board.* In addition to any other duty or responsibility otherwise conferred upon the board by this chapter, the board shall have the duty and power as follows:

(1) To recommend from time to time to the city council that it amend or modify the provisions of this chapter;

(2) To grant exceptions pursuant to the provisions of section 31-52 hereof, and to determine such issues of law and fact as are necessary to perform this duty;

(3) To hold hearings upon appeals from orders or actions of the director as may be provided under any provision of this chapter;

(4) To hold hearings relating to the suspension, revocation, or modification of a wastewater discharge permit and issue appropriate orders relating thereto;

(5) To hold such other hearings as may be required in the administration of this chapter and to make such determinations and issue such orders as may be necessary to effectuate the purposes of this article;

(6) To request assistance from any officer, agent, or employee of the city or the Chattanooga-Hamilton County Regional Planning Commission and to obtain such information or other assistance as the board might need;

(7) The board acting through its chairman shall have the power to issue subpoenas requiring attendance and testimony of witnesses and the production of documentary evidence relevant to any matter properly heard by the board;

(8) The chairman, vice chairman or chairman pro tem shall be authorized to administer oaths to those persons giving testimony before the board;

(9) The board shall hold regular annual meetings and such special meetings as the board may find necessary.

(10) To approve and adopt tables containing limitations on wastewater strength (local limits) and plant protection criteria as recommended by the director.

(d) *Quorum.* Five (5) members of the board shall constitute a quorum, but a lesser number may adjourn a meeting from day to day. Any action of the board, other than adjournment, shall require a majority of the quorum.

(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12962, § 4, 6-16-15; Ord. No. 13105, § 1, 9-13-16; Ord. No. 13172, § 9, 4-18-17)

DIVISION 5. DIRECTOR*

Sec. 31-58. Director.

(a) *Director and staff.* The director and his staff shall be responsible for the administration of all sections of this chapter.

***Editor's note—**Ord. No. 12962, § 4, adopted June 16, 2015, amended the title of div. 5 to read as set out herein. Previously div. 5 was titled Superintendent.

(b) *Authority of director.* The director shall have the authority to enforce all sections of this chapter. He shall be responsible and have the authority to maintain and operate the various treatment works, sewer lines, pump stations, and other appurtenances. He shall be responsible for the preparation of operating budgets subject to the normal budgetary processes of the city.

(c) *Records.* The director shall keep in this office or at an appropriate storage facility all applications required under this chapter, a complete record thereof, including a record of all wastewater discharge permits. He shall also maintain the minutes and other records of the wastewater regulations and appeals board.

(d) *Director to assist board.* The director shall attend all meetings of the wastewater regulations and appeals board, or whenever it is necessary for him to be absent he shall send a designated representative, and shall make such reports to and assist said board in the administration of this article.

(e) *Notice of national pretreatment standard.* The director shall notify industrial users identified in 40 CFR 403.8(f)(2) of any applicable pretreatment standards or other applicable requirements promulgated by the Environmental Protection Agency under the provisions of Section 204(b) of the Act (33 U.S.C. 1284), Section 405 of the Act (33 U.S.C. 1345), or under the provisions of Sections 3001 (42 U.S.C. 6921), 3004 (42 U.S.C. 6924) or 4004 (42 U.S.C. 6944) of the Solid Waste Disposal Act. Failure of the director to so notify industrial users shall not relieve said users from the responsibility of complying with said requirements.

(f) *Public participation notice.* The director shall comply with the public participation requirements of 40 CFR Part 25 in the enforcement of national pretreatment standards. The director shall at least annually provide meaningful public notification, in a newspaper of general circulation within the jurisdictions served by the POTW of any industrial users which, during the previous 12 months, were in significant noncompliance with applicable pretreatment standards or other pretreatment requirements. For the purposes of this provision, a significant industrial user (or any other user that violates subparagraphs (3), (4), or (8)) is in significant noncompliance if its violations meet one (1) or more of the following criteria:

(1) Chronic violations of wastewater discharge limits, defined here as those in which 66% or more of all of the measurements taken for the same pollutant during a six-month period exceed (by any magnitude) the daily maximum limit (including an instantaneous limit) or the average limit for the same pollutant parameter;

(2) Technical review criteria (TRC) violations, defined here as those in which 33% or more of all of the measurements taken for the same pollutant during a six (6) month period equal or exceed the product of the daily average maximum limit (including an instantaneous limit) or the average limit times the applicable TRC (TRC = 1.4 for BOD, TSS, and oil and grease, and [TRC = 1.2 for all other pollutants except pH];

(3) Any other violation of a pretreatment effluent limit (daily maximum or longer-term average) that the director believes has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public);

(4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment and has resulted in the POTW's exercise of its emergency authority to halt or prevent such a discharge;

(5) Violation, by 90 days or more after the schedule date, of a compliance schedule milestone contained in a permit or enforcement order, for starting construction, completing construction, or attaining final compliance;

(6) Failure to provide required reports such as baseline monitoring reports, ninety (90) day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules within thirty (30) days of the due date;

(7) Failure to accurately report noncompliance; or

(8) Any other violation or group of violations, which may include a violation of a BMP, which the director determines may adversely affect the operation or implementation of the local pretreatment program.

(g) *Regulations and Standards Authorized.* The director may promulgate rules, regulations and design criteria not inconsistent with this chapter and have them printed for distribution. These rules may include requirements for performing wastewater characterizations, analysis and other measurements by standard methods approved by the director. Such rules and regulations shall be ratified and adopted by the city council.

(h) *Certification of Wastewater Laboratories.* On and after July 1, 1991, all wastewater monitoring and preparation of reports required in Sections 31-53 or 31-54 shall be done by laboratories approved and certified by the director. Laboratories aspiring to be approved for purposes of submitting such monitoring reports shall submit to an inspection by the director or his representative, and to annual re-inspections thereafter. Such laboratories shall for a period of one (1) year maintain records of all monitoring activities for users of the city's sewer system containing the information specified in Section 31-53. Such laboratories shall agree with and shall utilize the analytical test procedures described in Section 31-53 and shall implement and maintain a reasonable quality control-quality assurance program. As a further condition of certification, such laboratories shall agree to and shall participate in a program of blind cross-check analyses with the city's laboratory at no cost to the City of Chattanooga.

(i) *Sewer Credits.* Approves secondary meters and determines other kinds of sewer user charge credits.

(j) *Approves New Construction.* Gives approval in acceptance of newly constructed sanitary sewer lines, pump stations, and other appurtenances.

(k) *Regulation of Wastewater Received from Other Jurisdictions.* If another municipality or governmental entity with a satellite sewer collection system contributes wastewater to the POTW, the director or authorized representative of the board shall enter into an intergovernmental agreement with the contributing municipality or governmental entity.

(1) Prior to entering into such an agreement, the director shall request the following information from the contributing municipality or entity;

(A) A description of the quality and quantity of wastewater discharged to the POTW by the contributing municipality or entity;

(B) An inventory of all industrial users located within the contributing municipality or entity that are discharging to the POTW; and

(C) Such other information as the director may deem necessary.

(2) The intergovernmental agreement as required herein shall contain, at a minimum, the following conditions;

(A) A requirement for the contributing municipality or entity to adopt a sewer use ordinance which is at least as stringent as this ordinance and local limits which are at least as stringent as those set out in this ordinance. The requirement must specify that such ordinance and limits must be revised as necessary to reflect changes made to this ordinance or local limits;

(B) A requirement for the contributing municipality or entity to submit a revised user inventory, at least on an annual basis;

(C) A provision specifying which pretreatment program implementation activities, if any, including individual wastewater discharge permit issuance, inspection, sampling, and enforcement, will be conducted by the contributing municipality or entity;

(D) A requirement for the contributing municipality or entity to provide the director with access to all information that the contributing municipality or entity obtains as part of its pretreatment activities;

(E) Limits on the nature, quality, and volume of the wastewater from the contributing municipality or entity at the point at which it discharges into the POTW;

(F) Requirements for monitoring the contributing municipality's or entity's discharge;

(G) A provision ensuring the director access to the facilities of industrial users located within the contributing municipality's or entity's jurisdictional boundaries for the purpose of inspection, sampling, and any other duties deemed necessary by the director; and

(H) A provision specifying remedies available for breach of the terms of the intergovernmental agreement.

(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12428, § 6, 8-31-10; Ord. No. 12962, §§ 3, 4, 6-16-15)

Editor's note—Ord. No. 12962, § 4, adopted June 16, 2015, amended the title of § 31-58 to read as set out herein. Previously § 31-58 was titled Superintendent.

DIVISION 6. PRETREATMENT ENFORCEMENT

Sec. 31-59. Pretreatment enforcement; procedure; complaints; orders.

(a) *Complaints and Orders.*

(1) Whenever the director has reason to believe that a violation of any provision of the pretreatment program of the city or orders of the Wastewater Regulations and Appeals Board issued pursuant thereto has occurred, is occurring, or is about to occur, the director may cause a written complaint to be served upon the alleged violator or violators.

(2) The complaint shall specify the provision or provisions of the pretreatment program or order alleged to be violated or about to be violated, the facts alleged to constitute a violation thereof, may order that necessary corrective action be taken within a reasonable time to be prescribed in such order, and shall inform the violators of the opportunity for a hearing before the Wastewater Regulations and Appeals Board.

(3) Any such order shall become final and not subject to review unless the person or persons named therein request by written petition a hearing before the local hearing authority as provided in section 31-60, no later than thirty (30) days after the date such order is served; provided, however, that the Wastewater Regulations and Appeals Board may review such final order on the same grounds upon which a court of the state may review default judgments.

(b) *Emergency Suspensions.*

(1) Whenever the director finds that an emergency exists imperatively requiring immediate action to protect the public health, safety or welfare, the health of animals, fish or aquatic life, a public water supply, or the facilities of the publicly owned treatment works of the pretreatment agency, the director may, without prior notice, issue an order reciting the existence of such an emergency and requiring that such action be taken as the director deems necessary to meet the emergency.

(2) If the violator fails to respond or is unable to respond to the director's order, the director may take such emergency action as he deems necessary, or contract with a qualified person or persons to carry out the emergency measures. The director may assess the person or persons responsible for the emergency condition for actual costs incurred by the director in meeting the emergency.

(c) *Service.* Except as otherwise expressly provided, any notice, complaint, order or other instrument issued by or under authority of this chapter may be served on any person affected thereby personally, by the director or any person designated by him, or such service may be made in accordance with Tennessee statutes authorizing service of process in civil actions. Proof of service shall be filed in the office of the director.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-60. Pretreatment enforcement; hearings.

(a) Any hearing or rehearing brought before the Wastewater Regulations and Appeals Board shall be conducted in accordance with the following:

(1) Upon receipt of a written petition from the alleged violator pursuant to this section, the director shall give the petitioner thirty (30) days' written notice of the time and place of the hearing, but in no case shall such hearing be held more than sixty (60) days from the receipt of the written petition, unless the director and the petitioner agree to a postponement;

(2) The hearing herein provided may be conducted by the Wastewater Regulations and Appeals Board at a regular or special meeting. A quorum of the Wastewater Regulations and Appeals Board must be present at the regular or special meeting in order to conduct the hearing herein provided;

(3) A verbatim record of the proceedings of such hearings shall be taken and filed with the Wastewater Regulations and Appeals Board, together with the findings of fact and conclusions of law made pursuant to subdivision (6) of this section. The transcript so recorded shall be made available to the petitioner or any party to a hearing upon payment of a charge set by the director to cover the costs of preparation;

(4) In connection with the hearing, the chairman shall issue subpoenas in response to any reasonable request by any party to the hearing requiring the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in the hearing. In case of contumacy or refusal to obey a notice of hearing or subpoena issued under this section, the Chancery Court of Hamilton County shall have jurisdiction upon the application of the Wastewater Regulations and Appeals Board or the director to issue an order requiring such person to appear and testify or produce evidence as the case may require and any failure to obey such order of the court may be punished by such court as contempt thereof;

(5) Any member of the Wastewater Regulations and Appeals Board may administer oaths and examine witnesses;

(6) On the basis of the evidence produced at the hearing, the Wastewater Regulations and Appeals Board shall make findings of fact and conclusions of law and enter such decisions and orders as in its opinion will best further the purposes of the pretreatment program and shall give written notice of such decisions and orders to the alleged violator. The order issued under this subsection shall be issued no later than thirty (30) days following the close of the hearing by the person or persons designated by the chairman;

(7) The decision of the Wastewater Regulations and Appeals Board shall become final and binding on all parties unless appealed to the courts as provided in subsection (b); and

(8) Any person to whom an emergency order is directed pursuant to section 31-59 shall comply therewith immediately but on petition to the Wastewater Regulations and Appeals Board shall be afforded a hearing as soon as possible, but in no case shall such hearing be held later than three (3) days from the receipt of such petition by the Wastewater Regulations and Appeals Board.

(b) An appeal may be taken from any final order or other final determination of the director or the City of Chattanooga by any party, including the Wastewater Regulations and Appeals Board, who is or may be adversely affected thereby, to the chancery court pursuant to the common law writ of certiorari set out in T.C.A. § 27-8-101, within sixty (60) days from the date such order or determination is made.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-61. Pretreatment enforcement; violations; civil penalty.

(a) (1) Any person including, but not limited to industrial users, who does any of the following acts or omissions shall be subject to a civil penalty of up to ten thousand dollars ($10,000.00) per day for each day during which the act or omission continues or occurs:

(A) Violates an effluent standard or limitation imposed by a pretreatment program;

(B) Violates the terms or conditions of a permit issued pursuant to a pretreatment program;

(C) Fails to complete a filing requirement of a pretreatment program;

(D) Fails to allow or perform an entry, inspection, monitoring or reporting requirement of a pretreatment program;

(E) Fails to pay user or cost recovery charges imposed by a pretreatment program; or

(F) Violates a final determination or order of the Wastewater Regulations and Appeals Board.

(2) Any civil penalty shall be assessed in the following manner:

(A) The director may issue an assessment against any person or industrial user responsible for the violation;

(B) Any person or industrial user against whom an assessment has been issued may secure a review of such assessment by filing with the director a written petition setting forth the grounds and reasons for his objections and asking for a hearing in the matter involved before the Wastewater Regulations and Appeals Board and if a petition for review of the assessment is not filed within thirty (30) days after the date the assessment is served, the violator shall be deemed to have consented to the assessment and it shall become final;

(C) Whenever any assessment has become final because of a person's failure to appeal the director's assessment, the director may apply to the appropriate court for a judgment and seek execution of such judgment and the court, in such proceedings, shall treat a failure to appeal such assessment as a confession of judgment in the amount of the assessment;

(D) In assessing the civil penalty the director may consider the following factors:

(i) Whether the civil penalty imposed will be a substantial economic deterrent to the illegal activity;

(ii) Damages to the city, including compensation for the damage or destruction of the facilities of the publicly owned treatment works, and also including any penalties, costs and attorneys' fees incurred by the city as the result of the illegal activity, as well as the expenses involved in enforcing this section and the costs involved in rectifying any damages;

(iii) Cause of the discharge or violation;

(iv) The severity of the discharge and its effect upon the facilities of the publicly owned treatment works and upon the quality and quantity of the receiving waters;

(v) Effectiveness of action taken by the violator to cease the violation;

(vi) The technical and economic reasonableness of reducing or eliminating the discharge; and

(vii) The economic benefit gained by the violator.

(E) The director may institute proceedings for assessment in the chancery court of the county in which all or part of the pollution or violation occurred, in the name of the City of Chattanooga.

(3) The Wastewater Regulations and Appeals Board may establish by regulation a schedule of the amount of civil penalty which can be assessed by the director for certain specific violations or categories of violations.

(b) Any civil penalty assessed to a violator pursuant to this section may be in addition to any civil penalty assessed by the Commissioner of Health and Environment for violations of T.C.A. § 69-3-115(a)(1)(F). Provided, however, the sum of penalties imposed by this section and by § 69-3-115(a) shall not exceed ten thousand dollars ($10,000.00) per day for each day during which the act or omission continues or occurs.

(c) Criminal Penalties. In addition to Civil Penalties imposed by the director and the State of Tennessee, any person who willfully and negligently violates permit conditions is subject to criminal penalties imposed by the State of Tennessee and the United States.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12428, § 7, 8-31-10; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-62. Pretreatment enforcement; assessment for noncompliance with program permits or orders.

(a) The director may assess the liability of any polluter or violator for damages to the pretreatment agency resulting from any person's or industrial user's pollution or violation, failure, or neglect in complying with any permits or orders issued pursuant to the provisions of the pretreatment program, T.C.A. §§ 69-3-123, 69-3-124, or 69-3-125, or Sections 31-59, 31-60, or 31-61.

(b) If an appeal from such assessment is not made to the Wastewater Regulations and Appeals Board by the polluter or violator within thirty (30) days of notification of such assessment, he shall be deemed to have consented to such assessment and it shall become final.

(c) Damages may include any expenses incurred in investigating and enforcing the pretreatment program or T.C.A. §§ 69-3-123—69-3-129, or Sections 31-61 through 31-65, in removing, correcting, and terminating any pollution, and also compensation for any actual damages caused by the pollution or violation.

(d) Whenever any assessment has become final because of a person's failure to appeal within the time provided, the director may apply to the appropriate court for a judgment, and seek execution on such judgment. The court, in such proceedings, shall treat the failure to appeal such assessment as a confession of judgment in the amount of the assessment.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-63. Pretreatment enforcement; judicial proceedings and relief.

The director may initiate proceedings in the chancery court of the county in which the activities occurred against any person or industrial user who is alleged to have violated or is about to violate the pretreatment

program, T.C.A. §§ 69-3-123—69-3-129, Sections 31-61 through 31-65, or orders of the Wastewater Regulations and Appeals Board or the director. In such action, the director may seek, and the court may grant, injunctive relief and any other relief available in law or equity.
(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-64. Administrative enforcement remedies.

(a) *Notification of Violation.* Whenever the director finds that any industrial user has violated or is violating this article, or a wastewater permit or order issued hereunder, the director or his agent may serve upon said user written notice of the violation. Within ten (10) days of the receipt date of this notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted to the director. Submission of this plan in no way relieves the user of liability for any violations occurring before or after receipt of the notice of violation.

(b) *Consent Orders.* The director is hereby empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with the industrial user responsible for the noncompliance. Such orders will include specific action to be taken by the industrial user to correct the noncompliance within a time period also specified by the order. Consent orders shall have the same force and effect as administrative orders issued pursuant to paragraph (d) below.

(c) *Show Cause Hearing.* The director may order any industrial user which causes or contributes to violation of this article or wastewater permit or order issued hereunder, to show cause why a proposed enforcement action should not be taken. Notice shall be served on the user specifying the time and place for the meeting, the proposed enforcement action and the reasons for such action, and a request that the user show cause why this proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least ten (10) days prior to the hearing. Such notice may be served on any principal executive, general partner or corporate officer. Whether or not a duly notified industrial user appears as noticed, immediate enforcement action may be pursued.

(d) *Compliance Order.* When the director finds that an industrial user has violated or continues to violate this article or a permit or order issued thereunder, he may issue an order to the industrial user responsible for the discharge directing that, following a specified time period, sewer service shall be discontinued unless adequate treatment facilities, devices, or other related appurtenances have been installed and are properly operated. Orders may also contain such other requirements as might be reasonably necessary and appropriate to address the noncompliance, including the installation of pretreatment technology, additional self-monitoring, and management practices.

(e) *Cease and Desist Orders.* When the director finds that an industrial user has violated or continues to violate this ordinance or any permit or order issued hereunder, the director may issue an order to cease and desist all such violations and direct those persons in noncompliance to:

(1) Comply forthwith; or

(2) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and terminating the discharge.

(Ord. No. 9409, § 2, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-65. Disposition of damage payments and penalties; special fund.

All damages and/or penalties assessed and collected under the provisions of sections 31-59 through 31-64 shall be placed in a special fund by the city and allocated and appropriated to the sewer system for the administration of its pretreatment program.
(Ord. No. 9409, § 2, 6-5-90)

Secs. 31-66—31-240. Reserved.

ARTICLE IV. DISPOSAL OF EXCRETA

Sec. 31-241. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Cesspool. An underground cavity without watertight walls, in which human excreta is placed.

Human excreta. The bowel and kidney discharges of human beings.

Sanitary water closet. Any flush-type toilet which is properly connected to a city sewer or to a septic tank of approved construction.

Septic tank. An underground cavity with watertight walls into which the effluent of a sanitary water closet flows, and from which the effluent does not come to the surface of the ground.
(Code 1986, § 31-241)

Sec. 31-242. Disposal prohibited except in water closets.

It shall be unlawful for any person to dispose of any human excreta in the city except in a sanitary water closet.
(Code 1986, § 31-242)

Sec. 31-243. Where water closet required.

Every residence and building in the city in which human beings reside, are employed or congregated shall have, for the disposal of human excreta, a sanitary water closet.
(Code 1986, § 31-243)

Sec. 31-244. Liability of property owner.

It shall be unlawful for any person owning, leasing or renting property in the city to permit the disposal of human excreta on any property owned, leased or rented by such person or his agent, except in a sanitary water closet.
(Code 1986, § 31-244)

Sec. 31-245. Connection with septic tank required.

Any building in the city in which toilet facilities are required, which is not located within an area required for connection with a sewer, as provided in section 31-1 of this Code, shall have such toilet facilities connected with a septic tank.
(Code 1986, § 31-245)

Sec. 31-246. Permit and inspection fees required for septic tank installations.

No septic tank shall be constructed in the city without a permit having first been obtained from the county health department. An inspection fee of fifteen dollars ($15.00) shall be charged for each septic tank permit issued and for which a receipt shall be given. No permit shall be issued before payment is received therefor. The funds received from the collection of such fees shall be used by the department for the enforcement of the provisions of this article.
(Code 1986, § 31-246)

Sec. 31-247. Privies declared a nuisance; abatement.

All privies in the city are declared to be a nuisance, dangerous to the public health, and shall be condemned and abated as provided in Article II of Chapter 20 of this Code.
(Code 1986, § 31-247)

Sec. 31-248. Cesspools prohibited.

No cesspools shall be built or maintained in the city.
(Code 1986, § 31-248)

Secs. 31-249—31-265. Reserved.

ARTICLE V. WATER AND GAS MAINS*

Sec. 31-266. Location; notice of required improvements; variances.

(a) All water companies shall lay their water mains on streets running east and west in the city on the south side of the center of the street, and on streets running north and south in the city on the west side of the center of the street.

(b) All gas companies shall lay their gas mains on streets running east and west in the city on the north side of the center of the street, and on all streets running north and south in the city on the east side of the center of the street.

(c) When any street is widened, reconstructed, repaved, or otherwise improved, the city engineer may designate the part of the street in which utility facilities shall be placed. The city engineer shall give the utility companies and abutting landowners notice of the improvements and require the utility companies and the abutting landowners to provide for service connections from the mains in the street to the abutting owners' property line.

(d) Nothing in this section shall be deemed to prohibit the Tennessee-American Water Company from installing a water main on the east side of Amnicola Highway from a point beginning at Citico Creek and extending northwardly and eastwardly to its intersection with Riverside Drive in the City of Chattanooga.

(e) Nothing in this section shall be deemed to prohibit the Chattanooga Gas Company from installing a four (4) inch gas main on the west side of Dorris Street, beginning at Hooker Road and extending a distance of three hundred fifty (350) feet northward along Dorris Street.
(Code 1986, § 31-266)

Sec. 31-267. Depth.

All water or gas companies shall lay their mains not less than three (3) feet in depth below the established curb grade.
(Code 1986, § 31-267)

Sec. 31-268. Location of pipes laid parallel to mains.

All water mains or gas companies laying pipes alongside of or parallel to water or gas mains previously laid shall lay such pipes on the outside of such mains, between the mains and the center of the street, and not less than three (3) feet from such mains.
(Code 1986, § 31-268)

***Cross reference—**Plumbing generally, Ch. 27.

Sec. 31-269. Service connections.

All water and gas companies or persons doing the work shall make service pipe connections on the sides of mains and conduct the same to the inside of the curbstone at a depth not less than three (3) feet below the curb grade.
(Code 1986, § 31-269)

Secs. 31-270—31-285. Reserved.

ARTICLE VI. SEWER AGREEMENTS WITH CHATTANOOGA AREA REGIONAL COUNCIL MEMBERS

Sec. 31-286. Agreements for wheelage and treatment of wastewater discharges authorized.

The mayor of the city is hereby authorized to execute a contract with individual members of the Chattanooga Area Regional Council of Governments for sewer charges for wheelage and treatment of wastewater discharged into the city's interceptor sewer system and to execute any and all documents in connection therewith.
(Code 1986, § 31-286)

Sec. 31-287. Sewer charges for wheelage and treatment of wastewater discharges established.

For the purpose of providing wheelage and treatment of wastewater discharged into the city's interceptor sewer system by a member of the Chattanooga Area Regional Council of Governments, sewer charges are hereby established which shall be designated "Sewer Charges for Wheelage and Treatment of Wastewater Discharged into the Chattanooga Interceptor Sewer System."
(Code 1986, § 31-287)

Sec. 31-288. Areas where rates applicable.

The rates established for sewer charges for wheelage and treatment shall apply only to a municipality or other eligible local governmental unit which has constructed and shall operate and maintain its own complete sewerage collection system including necessary lift stations, trunk and outfall sewers to the point of connection with one (1) or more available city interceptors, outfall or trunk sewers which have ample capacity to handle the expected flows to be discharged into the city's system, and sewage flow meter at each such connection, provided such municipal or other sewerage system has been constructed in accordance with policies and standards of design and construction required by the city.
(Code 1986, § 31-288)

Sec. 31-289. Methods of calculating sewer charges.

The sewer charge for wheelage and treatment may be based upon either a "billable flow" method which is based upon the gross quantity of water sold as determined by water company meter readings or a "total flow" method as based upon flow meter readings as either method may be required or allowed according to the applicable contract with the user or applicable law or regulations.
(Code 1986, § 31-289; Ord. No. 13172, § 10, 4-18-17)

Sec. 31-290. Estimated charges; increased charges.

In the event a water meter or flow meter is inoperative or is malfunctioning, the engineering management consultant shall estimate, interpolate and/or project in the most equitable manner possible quantities of flow for such connection. Such projection along with available readings shall be used by the

engineering consultant in calculating monthly charges and shall be for certifying such estimates for billing purposes. Sewer service charges for residents of the city be the same percentage of increase may be applied to the above rate.
(Code 1986, § 31-290)

Sec. 31-291. Connection to interceptor sewer system; agreements authorized.

The mayor or his/her designee is authorized to execute on behalf of the city an agreement with any member of the Chattanooga Area Regional Council of Governments for such member to connect to the City's interceptor sewer system provided the aforementioned provisions are contained in such agreement.
(Code 1986, § 31-291; Ord. No. 13186, § 5, 6-6-17)

Secs. 31-292—31-294. Reserved.

ARTICLE VII. OTHER ENFORCEMENT AND APPEAL PROCEDURES

Sec. 31-295. Applicability; procedure.

(a) The Wastewater Regulations and Appeals Board shall schedule adjudicatory hearings to resolve disputed questions of law and fact whenever provided by a provision of this chapter or whenever a due process hearing is constitutionally required, excluding pretreatment enforcement provided for by Sections 31-59 to 31-65.

(b) Any person aggrieved by any order or determination of the director where an appeal is not otherwise provided by this chapter may appeal said order or determination to be reviewed by the board under the provisions of this section. A written notice of appeal shall be filed with the director and with the chairman, and said notice shall set forth with particularity the action or inaction of the director complained of and the relief being sought by the person filing said appeal. A special meeting of the board may be called by the chairman upon the filing of such appeal, and the board may in its discretion suspend the operation of the order or determination of the director appealed from until such time as the board has acted upon the appeal.

(c) The chairman may issue subpoenas requiring the attendance of witnesses or the production of evidence, or both. Upon endorsement by the chairman, they may be served in accordance with Tennessee statutes authorizing service of subpoenas.

(d) The party at such hearing bearing the affirmative burden of proof shall first call witnesses, to be followed by witnesses called by other party. Rebuttal witnesses shall be called in the same order. The chairman shall rule on any evidentiary questions arising during such hearing, and shall make such other rulings as shall be necessary or advisable to facilitate an orderly hearing subject to approval of the board. The board, the director, or his representative, and all parties shall have the right to examine any witness. The board shall not be bound by or limited to rules of evidence applicable to legal proceedings.

(e) The vice-chairman or the chairman pro tem shall possess all the authority delegated to the chairman by this section when acting in his absence or in his stead.

(f) Any person aggrieved by any final order of determination of the board hereunder shall have judicial review by common law writ of certiorari.
(Ord. No. 9409, § 3, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Sec. 31-296. Injunctive relief.

Upon approval of the mayor, the director shall in the name of the city file in circuit or chancery court of the county, or such other courts as may have jurisdiction, a suit seeking the issuance of an injunction, damages or other appropriate relief to enforce the provisions of this chapter or other applicable law or regulation. Suit may be brought to recover any and all damages suffered by the city as a result of any action or inaction of any user or other person who causes or suffers damage to occur to the POTW or for any other expense, loss or damage of any kind or nature suffered by the city.
(Ord. No. 9409, § 3, 6-5-90; Ord. No. 12962, § 4, 6-16-15)

Secs. 31-297—31-300. Reserved.

ARTICLE VIII. STORMWATER MANAGEMENT

DIVISION 1. GENERALLY*

Sec. 31-301. Purpose.

1. It is the purpose of this article to protect, maintain, and enhance the environment of the City of Chattanooga and public health, safety, and general welfare of the citizens of Chattanooga by controlling discharges of pollutants to the Chattanooga Stormwater System and to maintain and improve the quality of the community waters into which the stormwater outfalls flow, including without limitation, the lakes, rivers, streams, ponds, wetlands, sinkholes, and groundwater of Chattanooga.

2. It is further the purpose of this article to enable Chattanooga to comply with the National Pollution Discharge Elimination System permit (NPDES) and applicable regulations (40 CFR §122.26) for stormwater discharges.

3. It is the further purpose of this article to promote public health, safety and welfare through integrated site and landscape development to achieve effective stormwater management and the environmental, economic and social benefits of landscape, trees and their preservation.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-302. Definitions.

For the purpose of this article the following terms, phrases and words and their derivatives, shall have the meaning given herein:

"Abatement" means any action taken to remedy, correct, or eliminate a condition within, associated with, or impacting a drainage system.

"Accidental Discharge" means a discharge prohibited by this article into the "Community Waters" or to the "Waters of the State" which occurs by chance and without planning or consideration prior to occurrence.

"Agricultural Structures" that are also used for other uses, subject to this article, are not exempt.

***Editor's note—**Ord. No. 12900, § 1, adopted February 3, 2015, amended div. 1, §§ 31-301—31-303, in its entirety. Former div. 1 pertained to similar subject matter and was derived from Ord. No. 9942, § 1, adopted August 31, 1993; Ord. No. 12294, § 2, adopted October 6, 2009; Ord. No. 12377, § 1, adopted April 20, 2010; Ord. No. 12721, § 1, adopted May 21, 2013 and Ord. No. 12881, § 1, adopted November 25, 2014.

"Adjustment" means a modification in a non-residential customer's water quality service fee for certain activities that impact water quality runoff or impacts the City's costs of providing water quality management.

"Approved Applicant" is that person who signs land disturbance permit applications or applications related to the administration of the Credits and Incentive Manual (CIM). The approved applicant may or may not be the property owner, user, or developer of a property.

"Authorized Agent (approved applicant) Affidavit" is a signed and notarized affidavit that an individual has received approval from a property owner or property owner's representative to act on his/her behalf. The City will require submittal of an executed and notarized affidavit prior to accepting or issuing Stay on Volume credit coupons.

"As Built Plans" means drawings depicting structures, facilities, systems, landscaping, and site conditions as they were actually installed and constructed.

"Best Management Practices" or "BMPs" means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of stormwater runoff. BMPs also include treatment requirements, operating procedures, and practices to control site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage.

"Bioretention" system is a stormwater management practice to manage and treat stormwater runoff using temporary ponding, conditioned soils, organic and mulch layers, stone and plants. Stormwater runoff is treated through the processes of filtration, evapotranspiration, adsorption, nutrient uptake, and other physical and biological processes.

"Brownfield" as defined by the Tennessee Department of Environment Conservation ("TDEC"), is real property, the expansion, redevelopment, or reuse of which may be complicated by the presence or potential presence of a hazardous substances, pollutants, or contaminants.

"Buffer" see "Water Quality Buffer"

"Clean Water Act" means the Federal Water Pollution Control Act, as amended, codified at 33 U.S.C. §1251, et seq.

"Code" means the Chattanooga Municipal Code.

"Commercial" land use means property devoted in whole or in part to the commerce, that is, the exchange and buying and selling of commodities or services.

"Community Waters" means any and all rivers, streams, creeks, branches, lakes, reservoirs, ponds, drainage systems, springs, wetlands, wells and other bodies of surface or subsurface water, natural or artificial, lying within or forming a part of the boundaries of the City of Chattanooga and the waters into which the Chattanooga Stormwater System outfalls flow.

"Condominium Property" is defined as a lot or a parcel of real estate in which individuals own their units and share joint ownership in common elements with other unit owners. Water Quality fees are assessed according to the following:

- Condominium dwelling units with separate/individual parcels are treated as "Residential" properties;
- Condominium dwelling units without separate/individual parcels, which are part of another parcel or share the same parcel with other units, are treated as "Non - Residential" properties.

"Credit Coupon" is a coupon issued by the City of Chattanooga to approved applicants for exceeding the Stay on Volume requirement on new and redevelopments, retrofit or offsite mitigation sites. With certain restrictions, it can be applied to meet the onsite Stay on Volume requirement of another site or be traded or sold in an open market. Credit coupons are given in cubic feet and have no monetary face value.

- In contrast, credit coupons can always be applied, citywide and without percentage restrictions, to meet Stay on Volume obligations in the presence of documented site infeasibilities.
- Total suspended solids treatment is still required on the primary site for any uninstalled Stay on Volume even when credit coupons are applied.

"Critical Areas" contain sensitive resources such as protected wetlands, aquifer recharge areas, fish and wildlife habitat conservation areas, frequently flooded areas, geologically hazardous areas, 303d listed streams, high quality streams, sinkholes, previously contaminated sites, and critical habitat areas for endangered species.

"CSO" — A Combined Sewer Overflow is the inadvertent discharge from a Combined Sewer System that occurs prior to its confluence with the Publicly Owned Treatment Works.

"CSS" — A Combined Sewer System conveys both sanitary wastewaters (domestic, commercial and industrial wastewaters) and stormwater through a single or connected pipe system to a Publicly Owned Treatment Works.

"Detention" is described as the temporary storage of stormwater runoff in a basin, pond, or other structure to control the peak discharge rate by holding the stormwater for a lengthened period of time.

"Detention Facility" means an area or facility designed to temporarily store excess stormwater.

"Design Storm Event" means a hypothetical constant intensity storm event, of a given frequency interval and duration, used in the analysis and design of a stormwater facility.

"Discount" see "Water Quality Fee Discount"

"Easement" means an acquired privilege or right of use that a person, party, firm, corporation, city or other legal entity has in the land of another.

"Equivalent Residential Unit (ERU)" is equal to the average amount of impervious area of residential properties within the City of Chattanooga based on statistical sampling. Each ERU shall have the value assigned by this Article.

"Erosion Prevention and Sediment Control Plan" or "EPSC Plan" means a written plan, including drawings or other graphic representations, for the control of soil erosion and sedimentation resulting from a land disturbing activity.

"Exceptional Tennessee Waters" are surface Waters of the State of Tennessee that satisfy the characteristics as listed in Rule 1200-4-3-.06 of the official compilation — rules and regulations of the State of Tennessee. Characteristics include waters designated by the Water Quality Control Board as Outstanding National Resource Waters (ONRW); waters that provide habitat for ecologically significant populations of certain aquatic or semi-aquatic plants or animals; waters that provide specialized recreational opportunities; waters that possess outstanding scenic or geologic values; or waters where existing conditions are better than water quality standards.

"Facilities" means any man-made or natural conveyance for stormwater, including but not limited to, streets, curbs, gutters, catch basins, inlets, pipes, culverts, ditches, gulleys, canals, flumes, siphons, and stormwater detention facilities that are owned by or maintained in whole or in part by the City of Chattanooga and used for purposes of collecting, transporting, detaining, pumping, treating or disposing of

stormwater. "Facilities" shall also mean dams, flood walls, levies, pumping stations and other structures owned by or maintained in whole or in part by the City for flood control. Facilities shall not include road or highway bridges designed for spanning a navigable river or creek.

"Forestry Roads" that are used to access other land uses, subject to this article, are not exempt.

"Grandfather Clause" is a provision in which previous rules, ordinances or regulations may continue to apply to some existing situations, while new rules will apply to all future cases. Those exempt from the new rule are said to have grandfather or acquired rights. As later defined in this Chapter, the exemption is limited and it may be lost under certain circumstances. The City may use this provision as a compromise out of practicality, to effect new rules without unduly upsetting or burdening the development of land that fully complies with previously established regulations.

"Hardship" is a City accepted site limitation to the full application of the Stay on Volume as described in TNS068063 and in the Rainwater Management Guide. See "Infeasibility Criteria" for additional information.

"Hot Area" means an area where land use or activities generate highly contaminated runoff, with concentrations of pollutants in excess of those typically found in stormwater. Examples might include operations producing concrete or asphalt, auto repair shops, auto supply shops, large commercial parking areas, gas fueling stations and restaurants.

"Impaired Waters" means any segment of surface waters that has been identified by the TDEC as failing to support classified uses. TDEC periodically compiles a list of such waters known as the 303(d) List.

"Industrial" means a business engaged in industrial production or service, that is a business characterized by manufacturing or productive enterprise or a related service business. This term shall include, by way of example but not of limitation, the following: apparel and fabric finishers, blast furnace, blueprint and related shops, boiler works, cold storage plants, contractors plants and storage facilities, foundries, furniture and household good manufacturing, forge plants, foundries, greenhouses, junk yards, manufacturing plants, metal fabricating shops, ore reduction facilities, planning mills, rock crushers, rolling mills, saw mills, smelting operations, stockyards, stone mills or quarries, textile production, utility transmission or storage facilities, warehousing, and wholesaling facilities.

"Infeasibility Criteria" means documenting that a new or redevelopment site is eligible to implement some combination of minimum 80% TSS controls, mitigation or credit coupon redemption. Documentation of an infeasibility must include multiple criteria that would rule out an adequate combination of infiltration, evapotranspiration and reuse. Limitation to the use of these practices is defined in Permit number TNS068063 or the Rainwater Management Guide ("RMG"). The determination of infeasibility cannot be based solely on the difficulty or cost of implementing measures.

"Infiltration" is defined as a complex process of allowing runoff to penetrate the ground surface and flow through the upper soil surface. Water infiltrating during a rainfall event is removed from the direct runoff and usually does not contribute to a stream or other tributary's peak flood flow rate.

"Impervious" means not allowing the passage of water through the surface of the ground or ground covering or a substantial reduction in the capacity for water to pass through the surface of the ground or ground covering.

"Institutional" means an established organization, especially of a public or eleemosynary character. This term shall include, by way of example but not of limitation, the following: churches, community buildings, colleges, day care facilities, dormitories, drug or alcohol rehabilitation facilities, fire halls, fraternal organizations, golf courses and driving ranges, government buildings, hospitals, libraries, kindergartens or preschools, nursing homes, mortuaries, schools, social agencies, synagogues, parks and playgrounds.

"Land Disturbing Activity" means any land change which may result in soil erosion from water and wind and the movement of sediments into Waters of the State, Community Waters or onto lands and roadways within the community, including, but not limited to, clearing, dredging, grading, excavating, transporting and filling of land.

"Leadership in Energy and Environmental Design" (LEED). A Green Building Rating System, developed by the U.S. Green Building Council for residential and commercial buildings. LEED provides benchmarks for the design, construction and operation of property and covers site makeup, building materials, water and energy efficiency, as well as indoor environmental quality.

"Long Term Maintenance Plan" is a specific site's stormwater facility maintenance plan. It shall include required maintenance activities, frequency and schedule of inspections, and records keeping practices to document compliance. It must identify the stormwater, vegetation, and/or water quality components located on, or associated with a property to be maintained.

"Low-Impact Development" or "LID" are stormwater management and design strategies, integrated into the planning and design of a development. LID developments strive to conserve natural features, minimize or eliminate pollutants in stormwater through natural processes, and maintain pre-development hydrologic characteristics such as natural flow patterns, surface retention, non-erosive discharge rates and recharge rates.

"Manager" means the person designated by the City to supervise the operation of the stormwater management system and who is charged with certain duties and responsibilities by this article, or his or her duly authorized representative.

"Mobile Home Property" is defined as a lot or a parcel of real estate in which individuals own their units and share joint ownership in common elements with other unit owners. Water Quality fees are assessed according to the following:

- Mobile Home dwelling units with separate/individual parcels are treated as "Residential" properties;
- Mobile Home dwelling units without separate/individual parcels, which are part of another parcel or share the same parcel with other units, are treated as "Non - Residential" properties.

"Multi-Family Residential" means an apartment building or other residential structure built for three (3) or more family units, mobile home parks with three (3) or more units or lots under common ownership, and condominiums of three (3) or more units.

"National Pollution Discharge Elimination System" or "NPDES" permit means a permit issued pursuant to Section 402 of the Act (33 U.S.C. §1342).

"Non-Residential Properties" means all properties not encompassed by the definition of "Residential Property." Non-residential properties include:

- Apartment properties;

- Condominium dwelling units without separate/individual parcels;
- Mobile home parks with rented spaces (parcel not owned);
- Commercial property;
- Industrial property;
- Institutional property;
- Governmental property;
- Churches;
- Schools;
- Federal, state, and local properties; and
- Any other property not mentioned in this or the list of residential properties below.

"Notice of Coverage" or "NOC" is a notice from the NPDES permitting authority to the primary permittee authorizing the discharge of stormwater associated with construction activity under the NPDES program.

"Notice of Intent" or "NOI" is the mechanism used to "register" for coverage under a NPDES Construction General Permit.

"Notice of Termination" or "NOT" is the request by the primary permittee to terminate coverage under the NPDES Construction General Permit. It constitutes notice that the party identified in the "NOT" is no longer authorized to discharge stormwater associated with construction activity under the NPDES program.

"Person" means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representatives, agents or assigns. The masculine gender shall include the feminine, the singular shall include the plural where indicated by the context.

"Permeable" see "Pervious."

"Pervious" defines a natural or engineered surface, material or ground cover that allows for the passage of water into underlying soil layers or media for the purpose of stormwater volume reduction and/or water quality treatment.

"Private Maintenance Responsibility" means that the inspection, maintenance, repair and reconstruction of stormwater control measures and conveyances not located on City right-of-way shall be the responsibility of:

i) The owner of the property where structures are located;

ii) Any person or entity that has legally agreed to take responsibility; and

iii) The non-City properties served by the structures or conveyances, as determined by reference to site plans, plats, and construction drawings submitted and approved during the development review process.

"Public Stormwater Project Fund" is an account or fund set aside by the City to collect mitigation fee-in-lieu deposits made by owner/applicants. The account will be a subset of the Water Quality Program's existing capital expenditures account. The revenues generated by the mitigation fees will be deposited and periodically used, by the City of Chattanooga, to partially or wholly fund the design, related land acquisition, construction, installation, permitting and perpetual maintenance of publicly owned stormwater best management practices. Such facilities would be constructed offsite, in lieu of onsite privately owned

practices that could not be constructed or installed as a result of physical site limitations on the owner/applicant's primary site. Public stormwater project funds may also be used to fund reforestation, riparian restoration or other projects with a direct runoff reduction or water quality benefit at the discretion of the City Engineer. To allow for sufficient funds, the City may pool fees, collected from multiple sites, and install practices upon collection of sufficient funds to initiate desired projects. Public stormwater projects are deemed by the City of Chattanooga as those that have a public benefit for water resources protection or enhancement, stormwater treatment, and/or ecological restoration, and that may have other community benefits.

"Redevelopment" means the alteration of developed land that result in land disturbance. The term is not intended to include such activities as exterior remodeling, which would not be expected to cause adverse stormwater quality impacts.

"Residential Property" means all single-family, condominium dwelling units with separate/individual parcels, mobile home units with separate/individual parcels and separate City tax billing accounts, two-family duplex properties, and all agricultural parcels within the City of Chattanooga.

"Retention Facility" or "Retention Pond" means a facility, which provides storage of stormwater runoff and is, designed to eliminate subsequent surface discharges.

"Retrofit" is the voluntary expansion, modification, or other upgrading of existing stormwater management strategies to increase groundwater recharge, promote stormwater reuse, promote runoff reduction, and/or improve water quality. Approved applicants may earn credit coupons and/or water quality fee discounts, for the property owner, upon the installation of stay-on-volume retrofits. Since there is no recognized benefit, fee reduction nor SOV avoidance, from applying credit coupons to voluntary retrofit sites, it is not allowed.

"Significant Spills" includes, but is not limited to releases of oil or hazardous substances in excess of reportable quantities under section 311 of the Clean Water Act (see 40 CFR 110.10 and CFR 117.21) or section 102 of CERCLA (see 40 CFR 302.4).

"Significant Redevelopment" means the alteration of developed land that results in land disturbances and may result in other site requirements.

"Small Site Controls" - Applicable to new and redevelopments disturbing between five thousand (5,000) square feet and one (1) acre of land. Not applicable in CSS Areas nor to existing Single Family platted lots on existing streets provided the number of platted lots remains unchanged.

"Square Footage of Impervious Area" means, for the purpose of assigning an appropriate number of ERUs to a parcel of real property, the square footage of all impervious area using the outside boundary dimensions of the impervious area to include the total enclosed square footage, without regard for topographic features of the enclosed surface.

"Stay on Volume" or "SOV" is the volume of stormwater runoff, from impervious surfaces, measured in cubic feet, that must be captured and managed onsite as required by the City's stormwater regulations with no discharge to surface waters or City storm sewers, as calculated by an approved methodology set forth in this Article.

"Storm Sewer" means a sewer, piping or natural structure, which carries stormwater, surface runoff, street runoff, and drainage, but which excludes sanitary sewage and industrial wastes, other than unpolluted cooling water.

"Stormwater" means stormwater runoff, snow melt runoff, and surface runoff and drainage.

"Stormwater Control Measures" or "SCMs" are permanent practices and measures designed to reduce the discharge of pollutants from New Development Projects.

"Stormwater Management" means the collection, conveyance, storage, treatment and disposal of stormwater runoff in a manner to meet the objectives of this article and its terms, including, but not limited to measures that control the increased volume and rate of stormwater runoff and water quality impacts caused by manmade changes to the land.

"Stormwater Management Facilities" are the integrated site systems designed to collect, infiltrate, harvest, evapotranspire, convey, pump, treat or reuse stormwater runoff.

"Stormwater Pollution Prevention Plan" or "SWPPP" is a written plan that includes site map(s), an identification of construction/contractor activities that could cause pollutants in the stormwater, and a description of measures or practices to control these pollutants. It must be prepared and approved before construction begins. The SWPPP shall be prepared in accordance with the Tennessee Erosion & Sediment Control Handbook.

"Stormwater Pollutants" include nutrients (nitrogen and phosphorus), bacteria, total suspended solids, and any other substances that can be transported via stormwater and that are identified in this article or by TDEC as requiring regulation.

"Stormwater System" means all facilities owned or maintained by the City for collecting, detaining, conveying, reusing, infiltrating or treating stormwater from any parcel or place upstream or up gradient of any point of discharge to a river or creek not maintained by the City for conveyance of stormwater or flood control. Stormwater system shall also mean all facilities owned by or maintained by the City for purposes of flood control.

"Stream" means a surface water that is not a Wet Weather Conveyance. [Rule 1200-4-3-.04(20)]

"Stream Determinations" are made by qualified hydrologic professionals, in good standing, using TDEC's hydrologic determination methodology. The developer and his/her qualified professional will bear the burden of proof for a determination that a conveyance is not a stream. If the developer is unsure about the designation of waters of the state, TDEC staff can make the determination. The final approval of this determination of waters-of-the-state will be made by the City. Wetland and stream determination may also include determinations from the United States Army Corps of Engineers.

"Toxic Pollutant" means any pollutant or combination of pollutants listed as toxic in 40 CFR Part 401 promulgated by the Administrator of the Environmental Protection Agency under the provisions of 33 U.S.C. §1317.

"TSS Controls" — BMPs designed to remove at least eighty percent (80%) of the Total Suspended Solids from the WQv;

"Unavailable Parameters Waters" means any stream segment that has been identified by the division as failing to support classified uses. This term was previously referred to as Impaired Waters. The division periodically compiles a list of such waters known as the 303(d) List.

"Variance" means the modification of the minimum stormwater management requirements contained in this article and the EPSC plan or SWPPP for specific circumstances where strict adherence of the requirements would result in unnecessary hardship and not fulfill the intent of this article.

"Water Quality Buffer(s)" New development and significant redevelopment sites are required to preserve and maintain both sides of the streams or other waters located on their site. Water quality buffers shall be clearly marked on construction sites, grading permit applications, and on all phases of stormwater management plans before any clearing or grading can begin.

"Water Quality" means those characteristics of stormwater runoff that relate to the physical, chemical, biological, or radiological integrity of water.

"Water Quality Fee" is defined as a fee assessed to users and contributors of flow to the City's stormwater collection, impounding and transportation system.

"Water Quality Fee Discount" is a percent reduction to the annual water quality fee, available to non-residential property owners by application. Discounts are awarded for approved controls and practices resulting in an exceedance of the applicable baseline stay-on-volume. Discounts are subject to approval by the City.

"Water Quality Volume" or "WQv" is defined in the Rainwater Management Guide. It is the site specific runoff resulting from the specified rainfall event based on the selected SCM(s).

"Water Quantity" means those characteristics of stormwater runoff that relate to the discharge rate and volume of the stormwater runoff.

"Waters of the State" or simply "Waters" is defined in the Tennessee Water Quality Control Act and means any and all water, public or private, on or beneath the surface of the ground, which are contained within, flow through or border upon Tennessee or any portion thereof except those bodies of water confined to and retained within the limits of private property in single ownership which do not combine to effect a junction with natural surface or underground waters.

"Wet Weather Conveyance" means, notwithstanding any other law or rule to the contrary, man-made or natural watercourses, including natural watercourses that have been modified by channelization:

- That flow only in direct response to precipitation runoff in their immediate locality;
- Whose channels are at all times above the groundwater table;
- That are not suitable for drinking water supplies; and
- In which hydrological and biological analyses indicate that, under normal weather conditions, due to naturally occurring ephemeral or low flow there is not sufficient water to support fish, or multiple populations of obligate lotic aquatic organisms whose life cycle includes an aquatic phase of at least two (2) months. [Rule 1200- 4-3-.04(25)]

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 12985, § 1, 9-1-15; Ord. No. 13251, § 1, 11-28-17; Ord. No. 13486, § 4, 7-23-19)

Sec. 31-303. Abbreviations.

"CFR" means Code of Federal Regulations.

"CGP" means Construction General Permit.

"NPDES" means National Pollutant Discharge Elimination System.

"TDEC" means Tennessee Department of Environment and Conservation.

"T.C.A." means Tennessee Code Annotated.

"U.S.C." means United States Code.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Secs. 31-304—31-312. Reserved.

DIVISION 2. NEW DEVELOPMENT AND REDEVELOPMENT REQUIREMENTS*

Sec. 31-313. New Development and Redevelopment Requirements.

Permanent Best Management Practices Manual

1. Adoption. The City adopts the following publications, which are incorporated by reference in this ordinance as if fully set out herein: The City of Chattanooga Rainwater Management Guide ("RMG") and Landscape requirements, most current editions; and Tennessee Permanent Stormwater Management and Design Guidance Manual-1st Edition.

2. The City's RMG includes a list of acceptable SCMs including the specific design performance criteria, operation and maintenance requirements for each stormwater practice and requirements to comply with the goals of the NPDES MS4 permit. In addition, the RMG includes acceptable methods of determining what constitutes "infeasibility" or "hardships" that would allow options to the SOV. Such acceptable methods will allow a developer to employ soil feasibility practices designed by the engineer to mimic nature as far as possible. This methodology will allow perc testing at the natural points of discharge as a general practice. If permeability is determined to be 0.5 inch/hour or less in the natural points of discharge where the RMG is to be achieved, then the developer may request that the site be determined to be impermeable, and, therefore, infiltration methods are infeasible in these areas of the property. The RMG includes City approved SCMs for permanent stormwater management including green infrastructure and water reuse SCMs.

3. The City's RMG may be updated and expanded from time to time, upon the recommendation of the City Engineer, based on improvements in engineering, science, monitoring results and local maintenance experience, or changes in federal or state law or regulations. Stormwater facilities that are designed, constructed and maintained in accordance with these RMG criteria will be presumed to meet the minimum water quality performance standards.

4 General design performance criteria for permanent stormwater management:

   The following performance criteria shall be addressed for permanent stormwater management at all development sites:

   A. The City's stormwater management program, as described in the RMG, imposes requirements for new and redevelopment projects to manage stormwater runoff for volume management, water quality treatment, and peak rate control. LID, practices and strategies such as conservation, preservation, restoration, and green infrastructure measures are recommended to be used to meet stormwater management requirements.

   B. The calculations for determining peak rate flows shall be used, at a minimum, for sizing all stormwater facilities.

   C. The Small Site Control Method is applicable to non-CSS area, new and redevelopment projects disturbing between five thousand (5,000) square feet and one (1.0) acre.

      i. Applicable projects proposing no increase to impervious surface are required to implement either volume or flow based TSS controls.

      ii. Projects proposing to increase net impervious surface may implement one (1.0) inch baseline SOV, recognizing ten percent (10%) additive SOV deductions defined in NPDES permit TNS068063, if applicable, OR implement TSS treatment plus two (2) year through twenty-five (25) year frequency peak rate attenuation.

***Editor's note—**Ord. No. 12900, § 1, adopted February 3, 2015, amended div. 2, § 31-313, in its entirety. Former div. 2 pertained to similar subject matter and was derived from Ord. No. 12881, § 1, adopted November 25, 2014.

iii. TSS and SOV controls shall be designed and installed for the proposed impervious area(s). Peak rate attenuation (Q 2 through Q 25) is to mitigate any proposed net increases to impervious surface or discharge rates.

D. For projects greater than one (1) acre of disturbance or part of a larger plan of common development that will exceed one (1) acre of disturbance, all new developments and all redevelopment projects, in combination or alone, are required to incorporate runoff reduction measures designed, constructed and maintained, to manage (infiltrate, evapotranspire, harvest and/or use), at a minimum, the first one (1.0) inch of every rainfall event preceded by seventy-two (72) hours of no measurable precipitation, with no discharge from the project site to surface waters. This first inch of rainfall must be one hundred percent (100%) managed with no discharge to surface waters. The required volume to be managed is referred to as the "SOV" as calculated by the method set forth in the RMG.

i. All Redevelopment Projects shall be eligible for ten percent (10%) deduction from the one (1.0) inch SOV for each of the following criteria. Deductions are additive up to fifty percent (50%) maximum deduction.

1. Redevelopment;
2. Brownfield redevelopment;
3. Density greater than seven (7) units per acre;
4. Vertical density resulting in Floor to Area Ratio (FAR) of two (2) or alternately resulting in greater than eighteen (18) units per acre;
5. Mixed Use and Transit Oriented Development within one- half (½) mile of an established transit route;

ii. The deductions in this paragraph shall not apply to New Development Projects.

E. Whenever the SOV from an applicable project area cannot be managed or achieved onsite, per City requirements, the applicant/owner shall provide appropriate documentation to the City, using approved methodology and in acceptable detail, why the SOV cannot be managed. See definitions for "infeasibility" and "hardships."

F. Where SOV is infeasible, one of the following options would be allowed, at the choice of the applicant:

- Option 1: Pay mitigation fee for unmet SOV (either credit coupons, fee in lieu or off-site mitigation), or
- Option 2: Filter 2.1" rainfall through Modified Green Infrastructure SCM devices to remove a minimum of eighty percent (80%) TSS. With documented SOV infeasibilities, this option satisfies requirements without mitigation, i.e. no offsite SOV installation and/or fees in lieu; or
- Option 3: Filter 3.1", one-year storm using approved SCMs to remove a minimum of 80% TSS such as various combinations of: extended detention pond (sized based on the runoff from the 3.1", one-year storm for 24-72 hour retention) and/or NJCAT verified proprietary TSS controls. With documented SOV infeasibilities, this option satisfies requirements without mitigation, i.e. no offsite SOV installation and/or fees in lieu.

G. Applicable primary development sites must demonstrate compliance with flood control (peak attenuation) at all site outfalls AND secondary water quality requirements (TSS treatment) for those areas where it has been proven to be infeasible to achieve full SOV compliance.

H. The application of previously earned or acquired credit coupons on a primary site DOES NOT satisfy, equate to, or in any way reduce the site's TSS or peak attenuation requirements.

I. Projects that effectively manage the SOV from one hundred percent (100%) of the impervious area, through on-site installation, are assumed to have met all water quality (pollutant removal) requirements.

J. Guidance regarding infiltration testing methods, procedures, and design guidelines is provided by the City and the RMG.

5. Limitations to the installation of runoff reduction measures include, but are not limited to physical site infeasibilities such as:

A. Where a potential for introducing pollutants into the groundwater exists, unless pretreatment is provided;

B. Where pre-existing soil contamination is present in areas subject to contact with infiltrated runoff;

C. Presence of sinkholes or other karst features;

D. Pre-development infiltrative capacity of soils must be taken into account in selection of runoff reduction measures.

E. High permanent groundwater table;

6. Peak Flow Rate and Flood Control Standards

Applicable projects proposing land disturbances must implement measures to mitigate the post-development peak runoff rates to no greater than the existing development peak runoff rates for the two (2), five (5), ten (10), and twenty-five (25) year twenty- four (24) hour storm events. In addition to peak rate attenuation, one hundred (100) year storm event peak flow rates and maximum water surface elevations must be calculated per the RMG.

A. CSS stormwater controls are based on whether the proposed development results in increases to either impervious surface or to stormwater discharge rates at all significant analysis points where site runoff leaves the property and negatively impacts other uses or properties. A site with an overall "net" impervious surface or discharge decrease may still be responsible for peak attenuation depending on the severity of discharges at individual analysis points.

The CSS control method requires attenuation of post-development peak stormwater runoff rates to no greater than existing conditions. This is required for the two (2), five (5), ten (10), and twenty-five (25) year twenty-four (24) hour storm events.

Stormwater runoff entering CSS systems already receives primary treatment. Therefore, there are no additional on-site post-development (permanent) water quality treatment requirements, neither TSS nor SOV, for drainage areas discharging into CSS systems. Therefore, installing SOV in CSS areas, as another site's offsite mitigation location or to earn credit coupons is NOT recognized.

B. Although SOV is not required in CSS areas, green infrastructure and SOV practices can directly reduce a site's peak runoff rates. CSS projects may utilize these practices, and quantify the benefits for flood control, per the RMG.

C. Detention or retention ponds, and other SCMs used for peak rate control only, shall be designed in accordance with the current edition of the Chattanooga Hamilton County BMP Manual and the RMG requirements on peak attenuation.

D. Projects on unmapped watercourses draining fifty (50) acres or more shall be investigated by a professional engineer. The elevation of the one hundred (100) year event flood level, as well as the elevations of proposed structures adjacent to setbacks (setbacks measured from the centerline of the unmapped watercourse) shall be determined and included in the final design. All flood investigations, on mapped and unmapped water courses, shall comply with the Federal Emergency Management Agency's (FEMA) design methodologies and must prohibit adverse flooding impacts to other properties.

7. To protect stream channels from degradation, specific channel protection criteria shall be provided as prescribed in the RMG.

8. Stormwater discharges to Critical Areas (see definition) with sensitive resources may be subject to additional performance criteria, or permitting requirements by state or federal agencies, such as TWRA, TVA, and USF&W, etc.

9. Stormwater discharges from Hot Areas may require the application of specific structural SCMs, pollution prevention practices and or pre-treatment devices. Stormwater from Hot Areas land uses should not be directly infiltrated without pre-treatment.

10. Easements.

A. Storm drainage easements shall be required where the conveyance, storage, or treatment of stormwater is identified on the stormwater management design plan, or where access is needed to structural or non- structural stormwater measures.

B. Easement widths shall be based on the type of drainage system component, size, and depth.

11. As-Built Plans.

All applicants are required to submit as-built plans for permanent stormwater management facilities located on-site after final construction is completed.

A. As Built Plans must show the final design specifications, meet the criteria per City requirements, and be sealed by a registered professional engineer, registered land surveyor, or registered landscape architect licensed in Tennessee.

B. A final inspection by the City is required before any performance bond or guarantee will be released. If the As Built Plans indicate deviation from design, then a professional engineer or landscape architect must prove performance of the SCM as installed.

C. The City shall have the discretion to adopt provisions for a partial pro-rata release of the performance security or bond on the completion of various stages of development. In addition, the certificate of occupancy shall not be granted until corrections to all SCMs have been made and accepted by the City.

12. Grandfathering.

Projects issued Land Disturbing Permits for New Construction, Addition, Alteration, or Repair/Replacement to the City's Land Development Office before the close of business day November 30, 2014 and/or projects having a preliminary plat with approved construction documents submitted to the City's Land Development Office before the close of business day November 30, 2014, shall, be eligible for grandfathering under the City of Chattanooga's prior stormwater management regulations.

A. Applicable out parcels served by previously permitted on-site, shared, or regional stormwater management facilities must comply with the requirements in effect at the time the master plan development was originally submitted and/or approved.

B. The applicant may not be able to rely solely on the information contained in any remaining City records. The burden of proof as to whether applicable outparcels are adequately served by existing controls is on the applicant.

C. After December 1, 2014, any proposed additional impervious surface, exceeding what was detailed in the original plans or study shall be considered significant redevelopment and managed using the runoff reduction standards in the RMG.

D. New runoff reduction standards are preferable. Therefore, no part of the grandfathering clause shall preclude the permittee from voluntarily constructing stormwater controls to the more beneficial, new standard.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 12985, § 2, 9-1-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-314. Private property responsibility.

A. The owner/operator of any Stormwater Control Measures (SCMs) is responsible for ensuring the proper operation and full functionality per design of each SCM on their property. The owner/operator is solely responsible for the cost of inspecting and maintaining said SCMs.

B. The owner/operator shall perform quarterly inspections, at a minimum, of all SCMs on the site. At least one of the quarterly inspections performed within a year must be performed by an individual certified in post-construction SCM inspection.

i. Inspection reports shall be submitted annually to the Water Quality Manager.

ii. Inspection documentation shall be maintained by the owner/operator for a minimum of three (3) years.

C. The owner/operator shall have comprehensive inspections conducted of all SCMs at least once every five (5) years. Such inspections must be conducted by a licensed professional engineer or landscape architect practicing within their range of competency. A comprehensive inspection report shall at least include:

i. SCM type(s);

ii. Inspection date;

iii. Map showing location of each SCM;

iv. SCM owner information (e.g., name, address, phone number, email);

v. SCM condition and functionality descriptions along with specific maintenance items/violations to be corrected in order to return SCM to designed functionality; and

vi. Photographic documentation of SCMs.

D. The City Engineer, or his/her designee, shall have the authority to inspect private drainage systems, including SCMs, within the City, and to order such corrective action(s) to said systems, as are necessary to properly maintain the major and minor drainage systems within the City.

E. All new developments, redevelopments, and retrofit sites installing Stormwater Control Measures (SCMs) shall be required to execute an Inspection and Maintenance Agreement for Private Stormwater Management Facilities (the "Agreement"). The Agreement must designate the owner/operator as the responsible party and must grant the City the right to inspect the SCMs. If the owner/operator fails to

perform maintenance, after being given appropriate written notice, the Agreement shall grant authority to the City to perform the required maintenance and bill the owner/operator double the amount of the City's cost of maintenance and enforcement.

i. Before the Agreement is approved by the City, the owner/operator must demonstrate that a stormwater inspection and maintenance contract has been secured with a certified company. Contracts must be for at least two (2) years. The contract shall contain a detailed scope of the inspection and maintenance to be performed for each SCM, as stated in the Agreement.

F. Single Family Residential Pond Program.

i. The City may perform functional maintenance for privately owned single family residential stormwater ponds or other SCMs.

ii. Functional maintenance shall be defined as significant activities needed to repair/maintain the designed flood control and/or water quality treatment. The Water Quality Manager shall be ultimately responsible for making functional maintenance determinations on a case-by-case basis.

iii. The property owner must submit an application for their SCMs to be considered in the SFR Pond Program.

iv. In order for the SCM to be accepted into the program; a Temporary Construction Easement Agreement and an Inspection and Maintenance Agreement (IMA) must be legally recorded for the property.

v. The private property owner shall remain responsible for all routine and general maintenance as stated in the IMA to ensure the SCM provides the designed flood control and/or water quality treatment.

(Ord. No. 13251, § 1, 11-28-17; Ord. No. 13486, § 1, 7-23-19; Ord. No. 13591, § 1, 8-25-20; Ord. No. 14231, § 1, 5-13-25; Ord. No. 14336, § 1, 3-10-26)

Secs. 31-315—31-319. Reserved.

DIVISION 3. LAND DISTURBING ACTIVITY AND EROSION AND SEDIMENTATION CONTROL*

Sec. 31-320. Land disturbing activity.

All land disturbing activities shall be in compliance with and permitted under this Division 3. If non-exempt land disturbing activities are planned, the property owner shall apply to the City for a Land Disturbance Permit. If one (1) acre or more of total land area is disturbed, the property owner shall also apply for a Land Disturbance Permit under the "State of Tennessee's General NPDES Permit for

***Editor's note—**Ord. No. 12900, § 1, adopted February 3, 2015, amended div. 3, §§ 31-320—31-325.9, in its entirety. Former div. 3 pertained to similar subject matter and was derived from Ord. No. 9942, § 1, adopted August 31, 1993; Ord. No. 11470, § 1, adopted October 14, 2003; Ord. No. 11639, § 2, adopted November 9, 2004; Ord. No. 12721, §§ 3—5, adopted May 21, 2013 and Ord. No. 12881, § 1, adopted November 25, 2014.

Stormwater Discharges Associated with Construction Activity." If a Tennessee General NPDES Permit is applied for, a copy of the NOI shall be sent to the City. To seek coverage under the TDEC General Permit, the NOI shall be submitted to the following:

TDEC address:

Tennessee Dept. of Environment and Conservation Chattanooga Environmental Field Office
1301 Riverfront Parkway, Suite 206
Chattanooga, TN 37402

City of Chattanooga address:

City of Chattanooga
Land Development Office Plans Review Services
1250 Market Street, Suite 1000
Chattanooga, TN 37402

Applicability

Division 3 of this article shall be applicable to all land development, including, but not limited to, building permits, site plan applications, subdivision applications, and grading applications. These provisions apply to any new development or redevelopment site within the jurisdiction of the City.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-321. Land disturbing activity regulated.

1. It shall be unlawful for any person to conduct or allow any Land Disturbing Activity upon land owned or controlled by them (including, but not limited to, clearing, dredging, grading, excavating, transporting and filling of land), whether temporary or permanent, within the City of Chattanooga until a Land Disturbance Permit has been issued by the City. The issuance of said permit will allow such activity pursuant to the provisions of this article and in accordance with the General NPDES Permit for Stormwater Discharges from Construction Activities issued by TDEC. The property owner shall apply for the permit.

Below is a list of site practices that are exceptions to the term Land Disturbing Activity:

A. "Surface mining" as the same is defined in Tennessee Code Annotated Section 59-8-202;

B. Such minor land disturbing activities as home gardens and individual home landscaping, home repairs, home maintenance work, and other related activities which result in negligible soil erosion;

C. The construction of single-family residences when built separately on subdivision lots which have been issued a permit as part of a larger common plan of development under this Article and have been approved and recorded in the office of the Hamilton County Register; provided that excavation is limited to foundation trenches, basements, service and sewer connections, and minor grading for driveways, yard areas and sidewalks. The construction of single-family residences on individual lots, which are not part of a permitted subdivision under this article, is not exempt;

D. Additions or modifications to existing detached single-family dwellings; this exception may not be applied for contiguous properties that may have been subdivided.

E. Individual service and sewer connections for single or two-family residences;

F. Agricultural practices involving the establishment, cultivation or harvesting of products of the field or orchard, preparing and planting of pasture land, farm ponds, dairy operations, and livestock and poultry management practices, and the construction of farm buildings;

G. Installation, maintenance and repair of any underground public utility lines when such activity occurs on an existing hard-surface road, street or sidewalk, provided the activity is confined to the area of the road, street or sidewalk which is hard-surfaced and a street, curb, gutter or sidewalk permit has been obtained;

H. Construction, repair or rebuilding of tracks or other related facilities of a railroad company;

I. Maintenance and repair to any stormwater BMP deemed necessary by the City.

J. Any emergency project that is immediately necessary for the protection of life, property, or natural resources as determined by the City. These activities may be undertaken without a permit; however, the persons conducting these excluded activities shall remain responsible for otherwise conducting those activities in accordance with the provisions of this article and other applicable law including responsibility for controlling erosion and sedimentation.

2. Stormwater Design Manuals—Adoption.

The City adopts the most current edition of TDEC's Tennessee Erosion & Sediment Control Handbook (the "Handbook") as minimum standards for controlling erosion and sedimentation from land disturbing activities.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-322. Land disturbing permit required.

No Land Disturbing Activity or associated activity in this Article, whether temporary or permanent, shall be conducted within the City of Chattanooga until a land disturbing permit has been issued by the City. Such permit shall be available for inspection by the City on the job site at all times during which land disturbing activities are in progress. Such permit shall be required in addition to any building permit or other permit required upon the site.

Each application for the issuance of a land disturbing permit under this article shall be accompanied by a nonrefundable permit fee subject to the following fee schedule:

Permit	*Fee*
Simple residential	$250 min. (up to 1 acre disturbed area)
Complex	$250 per acre or part thereof
Revision after second review (each)	$1,000
Post-issued revision (each)	$1,000
Variance or Infeasibility Request	$1,375
Bonds/Letter of credit (each)	$675
Driveway Tile/Culvert Sized by City (each)	$500
As-Built Survey/Certification Review (each)	$675
Grading only	$250 per acre or part thereof
Timber Removal Permit	$250 per acre or part thereof
Tree Ordinance (each)	$500

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17; Ord. No. 13334, § 30, 7-3-18; Ord. No. 13473, § 30, 6-25-19; Ord. No. 13558, § 30, 6-23-20; Ord. No. 13710, § 30, 9-28-21; Ord. No. 13840, § 30, 6-14-22Ord. No. 14118, § 29, 6-18-24; Ord. No. 14239, § 29, 6-10-25)

Sec. 31-323. Data required in land disturbing permit application.

1. Any application for the issuance of a land disturbing permit under this article shall include, at a minimum, the following:

A. Site or project name;

B. Property street address or location; tax map, lot number, subdivision name, zip code;

C. Site activity description;

D. Site owner/property owner/applicant or Agent name, mailing address, phone, email, company name (see Section 31-320);

E. Engineer/Contractor: name, mailing address, phone, email, company name, state/county/city license numbers;

F. Type of work;

G. Property occupied/used as zoned;

H. Size of project;

I. Starting and completion estimated dates;

J. Other information as required by the City.

2. Each application for a Land Disturbance Permit shall be accompanied by an EPSC Plan or SWPPP, as appropriate. It shall accurately describe the potential for soil erosion and sedimentation problems resulting from the Land Disturbing Activity. It shall explain and illustrate the required measures to control these problems. The length and complexity of the plan is to be commensurate with the size of the project, severity of the site condition, and potential for offsite damage. The plan shall contain descriptions of the existing site conditions, adjacent topographical features, area soil types and characteristics, potential problems of soil erosion and sedimentation, stabilization specifications, stormwater management considerations, and time schedules for completion. It shall describe the continued maintenance of the land disturbing activity, clearing and grading limits, and all other information needed to accurately depict solutions to potential soil erosion and sedimentation problems.

3. It is the applicant's responsibility to track the status of the review and make required corrections.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-323.1. EPSC Plan and SWPPP preparation.

Any project that consists of a total land disturbance, at and above one (1) acre, also requires a SWPPP and NPDES permit.

Permittees and Approved Applicants are required implement a set of requirements to establish, protect and maintain a construction and permanent Water Quality Buffer during and after construction as defined in this Article.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-323.2. Construction stream buffer zone requirements.

1. Construction stream buffer zones shall be designated on the plans and marked off with high visibility safety fencing before land disturbance or construction commences.

2. The construction stream buffer is required to protect Waters of the State located within or immediately adjacent to boundaries of the project as identified using methodology from Standard Operating Procedures for Hydrologic Determinations (see rules to implement a certification program for Qualified Hydrologic Professionals, TN Rules Chapter 0400 -40-17).

3. A thirty (30) foot natural riparian construction stream buffer zone shall be left undisturbed adjacent to all streams, to the maximum extent practicable, during construction activities at the site.

4. Construction stream buffer zones are not primary sediment control measures and should not be relied on as such. Rehabilitation and enhancement of a natural buffer zone is allowed, if necessary, for improvement of its effectiveness of protection of the Waters of the State. The buffer zone requirement only applies to new construction sites. The riparian buffer zone should be preserved between the top of stream bank and the disturbed construction area. Nothing contained in this paragraph shall be construed to reduce the requirements of the permanent Water Quality Buffer required elsewhere in this Article.

5. For sites that contain and/or are adjacent to a receiving stream designated as having unavailable parameters or Exceptional Tennessee waters, a sixty (60) foot natural riparian construction stream buffer zone adjacent to the receiving stream shall be preserved. The buffer zone should be established between the top of stream bank and the disturbed construction area. The buffer width can be averaged, as long as the minimum width is at least thirty (30) feet at any measured location. If the construction site encompasses both sides of a stream, buffer averaging can be applied to both sides, but must be applied independently.

6. Rehabilitation and enhancement of a natural buffer zone is allowed, if necessary, for improvement of its effectiveness of protection of the Waters of the State.

7. The buffer zone requirement applies to all construction sites. No construction activities or Land Disturbing Activities (including but not limited to: parking, movement of vehicles, storage of materials, clearing, applying gravel, concrete washouts, etc.) shall take place within the buffer zones.

8. Equivalent Buffer Zone BMPs:

A. A justification for use and design of equivalent construction stream buffer zone BMPs shall be included in the EPSC Plan or SWPPP. Such equivalent BMPs are expected to be routinely used for installations that typically must be located adjacent to surface waters. These may include, but are not limited to: water distribution and sewer line installations, roadway construction, utility line or equipment installation, greenway construction, construction of a permanent outfall or a velocity dissipating structure, etc. This will be approved by the City on case by case basis.

B. This requirement does not apply to any valid ARAP, or equivalent permits issued by federal authorities. Additional buffer zone requirements may be required on a case by case basis depending on slope, land use or other variable.

C. Delineate the buffer zones, of thirty (30) or sixty (60) foot, with a single row of high visibility safety construction fencing in addition to any silt fencing that may be required to be installed.

D. Buffer zone exemption based on existing uses.

E. Buffer zones shall not be required where certain land uses exist and are to remain in place according to the following:

i. A use shall be considered existing if it was present within the buffer zone and properly permitted, as applicable, as of the date of the NOI for coverage under the CGP. Existing uses shall include, but not be limited to, buildings, parking lots, roadways, utility lines and on-site sanitary sewage systems. Only the portion of the buffer zone that contains the footprint of the existing land use is exempt from buffer zone development restrictions. Activities necessary to maintain uses are allowed provided that no additional vegetation is removed from the buffer zone.

ii. If an area with an existing land use is proposed to be converted to another use or the impervious surfaces located within the buffer area are being removed, then the buffer zone requirements shall apply.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-324. General requirements.

No Land Disturbing Activity shall be conducted within the City except in such a manner that:

1. Stripping of vegetation, re-grading, and other development activities shall be conducted so as to minimize erosion. Clearing and grubbing must be held to the minimum necessary for grading and equipment operation. Pre-construction vegetative ground cover shall not be destroyed, removed or disturbed more than fifteen (15) calendar days prior to grading or earth moving. Construction must be sequenced to minimize the exposure time of cleared surface area.

2. Property owners shall be responsible upon completion of Land Disturbing Activities to stabilize slopes so that they will not erode. BMPs should be employed as described in the Handbook. The objective will be to leave the site as erosion-free and maintenance-free as practicable.

3. Natural vegetation shall be retained, protected, and supplemented, where practicable.

4. After final grading is reached on any portion of a site, permanent soil stabilization shall be installed as soon as practicable. This is accomplished with perennial vegetation (using native herbaceous and woody plants where practicable) or other permanently stable, non-eroding surface. Unpacked gravel containing fines (silt and clay sized particles) or crusher runs are not considered a non-eroding surface. Soil stabilization refers to measures which protect soil from the erosive forces of wind, raindrop impact and flowing water. It includes the growing of grass or sod, application of straw, mulch, fabric mats, and the early application of gravel base on areas to be paved.

5. A permanent vegetative cover shall be established on disturbed areas not otherwise permanently stabilized. Use of native vegetation is encouraged.

6. Neighboring persons and property shall be protected from damage or loss resulting from excessive stormwater runoff, soil erosion or deposition upon private property or public streets of water transported silt and debris. Adjacent property owners shall be protected from land devaluation due to exposed bare banks.

7. Erosion and sediment control measures must be in place and functional before earth moving operations begin. They must be constructed and maintained until permanent stabilization occurs. Temporary measures may be removed at the beginning of the work day, but must be replaced at the end of the work day or before any precipitation event that could cause erosion and/or deposition of sediments off-site.

8. Structural controls shall be designed and maintained as required to prevent pollution. All surface water flowing toward the construction area shall to the extent practicable be diverted by using berms, channels, or sediment traps as necessary. Erosion and sediment control measures shall be designed according to the size and slope of disturbed or drainage areas, to detain runoff and trap sediment. Muddy water to be pumped from excavation and work areas must be held in settling basins or treated by filtration or coagulation prior to its discharge. Discharges from sediment/settling basins and traps must be discharged through a pipe or lined channel so that the discharge does not cause erosion and sedimentation.

9. There shall be no distinctly visible floating scum, oil or other matter contained in the stormwater discharge. The stormwater discharge must not cause an objectionable color contrast in the

receiving water. The stormwater discharge must result in no materials in concentrations sufficient to be hazardous or otherwise detrimental to humans, livestock, wildlife, plant life, or fish and aquatic life in the receiving stream.

10. When the land disturbing activity is finished and stable perennial vegetation has been established on all remaining exposed soil, the developer shall notify the City of these facts and request termination of the permit issued under this section. The City shall then inspect the site after receipt of such notice. The City may require ongoing or additional measures to stabilize the soil and prevent erosion. If such requirements are given by the City, the owner or developer shall continue to be covered by the provisions of this section, until a NOT of the permit has been accepted by the City.

11. Stabilization measures shall be initiated as soon as possible in portions of the site where construction activities have temporarily or permanently ceased. Temporary or permanent soil stabilization must be completed no later than fourteen (14) days after the construction activity in that portion of the site has temporarily or permanently ceased. In the following situations, temporary stabilization measures are not required:

    A. where the initiation of stabilization measures is precluded by snow cover or frozen ground conditions or adverse soggy ground conditions, stabilization measures shall be initiated as soon as practicable; or

    B. where construction activity on a portion of the site is temporarily ceased, and earth disturbing activities will be resumed within fourteen (14) days. Steep slopes shall be temporarily stabilized not later than seven (7) days after construction activity on the slope has temporarily or permanently ceased.

12. Stabilization of disturbed areas must, at a minimum, be initiated immediately whenever any clearing, grading, excavating or other earth disturbing activities have temporarily or permanently ceased on any portion of the site, and will not resume for a period exceeding fourteen (14) calendar days. Soil stabilization (temporary or permanent) of those disturbed areas must be completed as soon as possible, but not later than fourteen (14) days after the construction activity in that portion of the site has temporarily or permanently ceased. In arid, semiarid, and drought-stricken areas where initiating vegetative stabilization measures immediately are infeasible, alternative stabilization measures (such as, but not limited to: properly anchored mulch, soil binders, matting) must be employed.

13. Dewatering: Discharges from dewatering activities, including dewatering of trenches and excavations, are prohibited unless managed by appropriate controls. Appropriate controls include, but are not limited to: weir tank, dewatering tank, gravity bag filter, sand media particulate filter, pressurized bag filter, cartridge filter, coagulation or other control units providing the level of treatment necessary to comply with permit requirements.

14. Prevent off-site vehicle tracking of sediments and the generation of dust. A stabilized construction access (a point of entrance/exit to a construction site) shall be described and implemented, as needed, to prevent the tracking of mud and dirt onto public roads by construction vehicles.

15. If permanent or temporary vegetation is to be used as a control measure, then the timing of the planting of the vegetation cover must be included in the SWPPP.

16. Litter, construction debris, and construction chemicals exposed to stormwater shall be picked up prior to anticipated storm events or before being carried off site by wind (e.g., forecasted by local weather reports), or otherwise prevented from becoming a pollutant source for stormwater

discharges (e.g., screening outfalls, daily pick-up, etc.). After use, materials used for erosion prevention and sediment control (such as silt fence) should be removed or otherwise prevented from becoming a pollutant source for stormwater discharges.

17. Construction Phasing: See CGP for requirements.

18. Construction Staging: See Handbook and CGP for requirements.

19. Sediment Basins: See Handbook for requirements.

20. The City may require stricter land use and/or erosion and sediment control requirements for projects discharging into waters having unavailable parameters or Exceptional Tennessee Waters.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-324.1. Erosion prevention and sediment controls inspections.

Erosion prevention and sediment controls inspections shall be done according to the Handbook.

1. All active construction sites shall be inspected by permittee or his designee twice weekly (performed at least seventy-two (72) hours apart), in accordance with the requirements of the CGP by a person that has an active certification completing the "Fundamentals of Erosion and Sediment Control Level I" course.

2. Inspections are performed to ensure erosion prevention and that sediment controls are not damaged and remain effective. It is not the City's intent to penalize proper maintenance and mitigation of failed management practices, but rather to ensure that potential and actual failures are promptly recognized and addressed expeditiously and effectively. During prolonged rainfall, daily checking and repairing is necessary. The permittee shall maintain records of such checks and repairs.

3. A specific person, that has an active certification completing the "Fundamentals of Erosion and Sediment Control Level I" course, shall be designated by owner to be responsible for erosion and sediment controls on each site.

4. Routine inspections are required. Inspection records and rainfall data shall be maintained on or near the construction site and be accessible. Copies of the written reports must be kept with the EPSC Plan or SWPPP. They must provide enough information that a regulator is given a full picture of the management techniques employed onsite, including problems, maintenance needs, and corrective actions taken. These reports need to clearly note the dates when:

   A. problems or maintenance needs were identified

   B. these activities were addressed

   C. major grading activities occurred

   D. construction activities temporarily or permanently ceased on a portion of the site

   E. stabilization measures were initiated

5. Based on inspection results, any control measures that are inadequate or in disrepair shall be replaced or modified, or repaired as necessary, before the next rain event, but in no case more than seven (7) days after the need is identified. Such modifications shall provide for timely implementation (site description identified and Erosion prevention and sediment control measures) of any changes to the SWPPP but in no case later than fourteen (14) days following the inspection.

6. Falsifying inspection records or other documentation or failure to complete inspection documentation shall result in an enforcement action.

7. A construction site rainfall gauge is required. It should be read at least daily at approximately the same time to obtain a twenty-four (24) hour rainfall depth total. In addition, when a rain event occurs, the approximate beginning and ending time should be documented to provide its duration. The rainfall depth and duration together can be used to determine the storm frequency and related back to the permit and design requirements. Rainfall data should be kept with the field EPSC Plan or SWPPP.

8. Erosion prevention and sediment controls shall be designed to minimize erosion and sediment transport resulting from a two (2) year, twenty-four (24) hour storm at a minimum (or five (5) year twenty-four (24) hour storm associated with waters having unavailable parameters or Exceptional Tennessee Waters), either from total rainfall in the designated period or the equivalent intensity. The performance of construction site assessments will provide quality assurances of erosion prevention and sediment controls. Within one (1) month of the commencement of construction, at each portion of the site that drains developed acreage, the site assessment shall be conducted, at each outfall, when drainages total ten (10) or more acres or five (5) or more acres if draining to waters having unavailable parameters or Exceptional Tennessee Waters. The site assessment shall be performed per requirements in the current State CGP. It shall be performed by individuals with the following qualifications:

   - A licensed professional engineer or landscape architect;
   - A CPESC; or
   - A person that successfully completed the "Level II Design Principles for Erosion Prevention and Sediment Control for Construction Sites" course.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-324.2. Water Quality Buffer.

1. A Water Quality Buffer zone is a strip of undisturbed native (indigenous) vegetation and soil that includes trees, shrubs and herbaceous vegetation either original or re-established that borders waters of the state.

2. A Water Quality Buffer shall be applied to 'waters of the state' including but not limited to streams, rivers, jurisdictional wetlands, springs, reservoirs or lakes and ponds with hydrologic connectivity (streams leading into and out of the pond or spring input) and sinkholes, adjacent to new development or significant redevelopments. The buffer regulations shall require protection and maintenance of existing buffers, including soils and vegetation, on all existing properties, as determined by the city.

3. Water Quality Buffers zones are most effective when stormwater runoff flows into and through them as shallow sheet flow, rather than in concentrated form such as in pipes, channels, gullies, splays, or wet weather conveyances. Therefore, whenever possible, designs should include management practices, to the maximum extent practical, that result in shallow, non-erosive sheet flow through buffers. When this is not possible, every effort shall be made to minimize detrimental effects to the water quality buffer.

4. Water Quality Buffer zones protect the physical and ecological integrity of water bodies from surrounding upland activities in the following ways:

A. Filter excess sediment, organic material, nutrients, and other chemicals;

B. Reduce storm runoff velocities;

C. Provide flood protection;

D. Protect channel bank areas from scour and erosion;

E. Shade and cool adjacent water allowing it to hold adequate levels of dissolved oxygen;

F. Provide leaf litter and large woody debris important to aquatic organisms; and

G. Improve stream bank habitat for aquatic organisms.

5. A Water Quality Buffer shall consist of native vegetation along both sides of a stream or around other applicable water resources or waters of the state. The buffer is measured perpendicular from top of bank determined by the break in the slope. The top of bank is the uppermost limit of the active channel, typically indicated by a change in bank slope from steep to gentle. If the top of bank cannot be determined from the above indicator or if there is a dispute in the determination, it can be determined by submitting approved engineering calculations that determine the width of the stream resulting from the two (2) year frequency storm. The city shall make final determinations of buffer delineations, top of bank, areas where the Water Quality Buffer shall apply and buffer widths, based on the applicant's submitted data.

6. The city may approve alternate Water Quality Buffer widths for special circumstances (e.g., existing land cover or existing physical conditions) that preclude the above requirements.

7. Specifically prohibited uses include, but are not limited to: pavements, structures, parking lots, dumpster storage, material storage, grease-bin storage, vehicle storage/maintenance, animal lots or kennels, or other uses known to contribute runoff or pollutants to waterways.

8. Buffer Widths:

Buffer widths shall be measured from the edge of the water resource to be protected as defined below.

A. Streams:

i. For drainage basins less than one (1) square mile:

a. The permanent Water Quality Buffer shall be thirty (30) feet measured perpendicular from the top of bank on both sides with no averaging.

b. For sites that contain and/or are adjacent to a receiving stream designated as waters having unavailable parameters or Exceptional Tennessee waters, a sixty (60) foot natural riparian construction stream buffer zone adjacent to the receiving stream shall be preserved during construction. The buffer zone shall be established between the top of stream bank and the disturbed construction area. The sixty (60) foot criterion can be established on an average width basis as long as the minimum buffer width is at least thirty (30) feet at any measured location.

ii. For drainage basins greater than one (1) square mile, the permanent Water Quality Buffer shall be sixty (60) feet from top of bank on both sides. It can be averaged as long as the minimum is no less than thirty (30) linear feet measured perpendicular from the top of bank on both sides. When the average width method is used, applicant must provide CAD files allowing the measurements to be verified.

iii. In accordance with the NPDES permit TNS068063, the Site Development Manager shall develop and apply criteria for determining the circumstances under which averaging may occur. A determination that standards cannot be met may not be based solely on the difficulty or cost associated with implementation.

B. Lakes and ponds with hydrologic connectivity:

The Water Quality Buffer shall be thirty (30) feet from normal pool. If a flood zone study exists or is prepared, elevations of proposed structures adjacent to the lake or pond setback shall be determined and included in the final design.

C. Wetlands:

The Water Quality Buffer shall be thirty (30) feet with no disturbance. If the wetland is associated with or within the water quality buffer or other protected waters, then the buffer shall be measured according to the Water Quality Special Buffer Widths defined in this Article.

9. Permanent buffers shall be preserved during development and perpetually afterwards.

A. During development, buffers shall be clearly marked, on plans and on site, and protected from construction activities.

B. The Water Quality Buffer shall be retained in its natural vegetative state or enhanced. No unapproved clearing of existing native vegetation in the streamside buffer or BMPs/SCMs shall be allowed. The target vegetation is undisturbed mature forest.

10. Water Quality Buffer Allowable Uses:

A. Buffer crossings for utilities and infrastructure: To the extent practical, the number and width of water body crossings shall be limited. Whenever feasible, crossings shall occur at right angles. Developments should coordinate infrastructure, utility and road crossings to attempt to have them occur at the same location.

B. Passive recreation and footpaths to approach the river without constructed improvements. A plan must be approved by the City.

C. A sidewalk, greenway or other paved trail may be considered, if constructed of pervious concrete or other pervious materials, excluding asphalt, approved by the city, and established on a stable stream area no closer than twenty (20) feet from the top of the bank. No equipment larger than a mini-Bobcat or other similarly sized equipment (specifically tasked with pervious material installation) may enter the buffer. Trees over six (6) inches dbh cannot be disturbed in the buffer area, during construction. The width of the pervious sidewalk, and any clearing as a result of construction, shall be added to the width of the water quality buffer. Protection of the existing vegetation is of prime importance.

D. Stormwater channels, as approved by city: vegetated channels and use of dissipating and sheet flow arrangements where appropriate to prevent channelization and erosion in the buffer from stormwater runoff adjacent to the buffer from SCMs or any other aspect of the site.

E. Landscaping or other related re-vegetation using native vegetation to address erosion, damaged vegetation, restoration, remove exotic species, or other problems; Landscaping, bank stabilization, or other developer proposed restorations to restore a natural stream corridor habitat shall be submitted as a Landscape Management Plan to the city as a supplement to the Land Disturbance Permit. Developers must obtain any related local, state, TVA or federal permits. The City must approve the specific requirements of such plan prior to the issuance of a Land Disturbance Permit and before any work or proposed restoration on the buffer takes place.

F. Removal of individual trees that are in danger of falling, causing damage to dwellings or other structures, or blocking the stream;

11. Water Quality Buffers shall be placed in open space easements and recorded with the deed for the property before Certificate of Occupancy is issued.

12. Water Quality Special Buffer Widths. Water Quality Buffer widths shall vary depending on the presence of certain water pollution hazards. The following special buffer widths shall apply:

A. Solid waste landfills, outdoor recycling or processing facilities require one hundred fifty (150) feet.

B. Salvage yards or automobile recyclers require one hundred fifty (150) feet.

C. When wetlands, sinkholes or other water resources are wholly or partially located within a stream or the streamside buffer edge, the streamside buffer width shall be extended by the width of the water resource.

D. If more than one (1) of the aforementioned is applicable, the greater width adjustment shall apply.

E. Onsite, private septic system drain fields should not automatically be located at the outer edge of property lines adjacent to undisturbed buffers. To the maximum extent possible, drain fields should be located to increase their separation from protected stream side areas.

13. Water Quality Buffer Width Reductions, Clearing Activities, and Crossings.

A. Special Buffer Widths may be reduced in conjunction with targeted restoration plans that make comparable improvements to water quality. Restoration plans may include stream bank restoration, re-vegetation, habitat improvements, or other bioengineering methods. The City shall consider such requests upon receipt of a Landscape Management Plan detailing comparable improvements. Special buffer reductions will only be considered for specific areas of an overall development.

B. View Corridor: Limited clearing and pruning to establish a view corridor may be permitted with an approved Landscape Management Plan stamped by a registered Landscape Architect. The Plan must leave adequate vegetation in the view corridor to maintain the buffer's function.

i. Preferential practices for view enhancement are crown raising, crown lowering, or crown thinning in lieu of tree removal. Any removal of trees shall be in accordance with the City of Chattanooga Municipal Code. The SWPPP or EPSC plan shall demonstrate both effective erosion prevention and sediment control and forestry practices.

ii. Removed trees must be replaced. Replacement by shrubs or small trees may be allowed if native plants, approved on the Landscape Management Plan, are used.

iii. A Notice of Violation and/or Civil Penalty, as set forth in Section 31-346 shall be issued if clearing exceeds approved Plans. The landowner shall re-plant that segment of the cleared buffer at his/her own expense.

C. The City may allow new driveways, road crossings or other access through or across water quality buffer zones on a case-by-case basis. The necessity of buffer access must be demonstrated. Additionally, it must be shown that the buffer zone will not be excessively impacted. Driveway or road crossing shall be constructed perpendicular to the stream or buffer with careful detail to protecting trees and vegetation and minimizing site grades.

D. Roadways and lots shall be designed and aligned so streams are either to the rear or to the side of individual lots, and not along the front. Such stream crossings may require federal, state, and/or local permits.

14. Development Plan and Construction Activity Requirements.

A. The parameters and boundaries of the Water Quality Buffer shall be delineated by the applicant and clearly indicated on all three (3) phases of project development plans, on landscape management plans, preliminary plats, final plats, permits and official maps as follows:

i. Show the extent of any Water Quality Buffer on the subject property and clearly label as "water quality buffer" including required width.

ii. Provide a note to reference the water quality buffer, labeled as:

" There shall be no clearing, grading, construction, storage, or disturbance of vegetation except as permitted in writing by the City of Chattanooga's Site Development Manager. "

iii. Provide a note to reference protective covenants governing all water quality buffer areas, labeled as: "Any Water Quality Buffer is subject to protective covenants recorded in the Register of Deeds (Hamilton County). Disturbance and use of these areas are restricted. Severe penalties apply."

15. Water Quality Buffer areas shall be protected during all development activities. Construction layout surveys shall include approved fencing and labeling. To insure adequate visibility, a combination of fencing and flagging is required. Signs shall persist before and throughout construction to prevent entry of equipment, materials storage and stockpiling.

16. All Water Quality Buffers shall be placed in recorded easements and be maintained at the property owner's expense.

17. Variance Procedures.

A. The applicant shall submit a written request to the Site Development Manager conveying specific reasons and hardships necessitating the variance. It must offer mitigation for the variance relief if granted, and include any other information necessary to evaluate the request. The City may require an alternative analysis.

B. The City shall have the authority to grant appeals provided they are consistent with the objectives and policies identified in this Article.

C. Variance requests shall be reviewed and may be granted using the following criteria:

i. Projects or activities where it can be demonstrated that strict compliance with the ordinance would result in practical difficulty; Each of the following criteria must be satisfied to show practical difficulty:

(a) The problem is not self-created.

(b) The plight of the landowner is due to the property's unique physical conditions.

(c) Compliance will unreasonably prevent use of the property for a permitted purpose or would render conformity with such restrictions unnecessarily burdensome.

(d) Project is to repair and maintain public improvements. Avoidance and minimization of adverse impacts to wetlands and associated aquatic ecosystems has been addressed.

(e) Those projects or activities serving a public need and/or deemed to be of economic importance to the City, specifically associated with the Tennessee River or associated with or contiguous to the City's Greenway Master Plan, to where no feasible alternative is available. Development along the Tennessee riverfront and the City's greenway system generate economic, social, and cultural benefits that improve the economy and quality of life for an entire region. The intent of this variance is to recognize that Chattanooga's riverfront is one (1) of the greatest assets within the City. Thoughtful alternate measures will ensure that enhancements to the riverfront will protect its unique ecosystem, enhance urban redevelopment, and expand recreational opportunities.

(f) Riverfront buffer variances that accommodate economic development along the areas identified in this Section will be considered. Alternate measures might include urban design principles that are respectful of the river by sustaining public access, maintaining view corridors, regulating height and bulk of structures, and permitting a diversity of uses.

(g) Development submittals that propose such improvements to areas identified in this Section and increase their value to Chattanooga's citizens and visitors will be encouraged. Successful riverfront development variances will be complementary to

and compatible with other successful development projects in Chattanooga. Variances will ensure that our riverfront continues to be a vital and valued component of downtown Chattanooga's urban landscape.

ii. The Site Development Manager may also consider the following:

(a) The relationship between the proposed use and the comprehensive Land Use Plan;

(b) The safety of access to the property in times of flood for ordinary and emergency vehicles; and

(c) The costs of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, water systems, and streets and bridges.

iii. Whether issuance of a variance is the minimum necessary so as not to destroy the character and design of an historic building or feature.

iv. The decisions of the Site Development Manager are final and conclusive, but may be reviewed by the City Engineer.

18. Other Requirements:

A. For new and redevelopments, the project shall be evaluated for stream and stream bank conditions. The project shall address the following to ensure the preservation and propagation of the buffer area:

i. Stream bank stabilization and/or restoration;

ii. Additional water quality protection;

iii. Channel erosion;

iv. Stream pollution;

v. Habitat degradation; and

vi. The enhancement of the successional process such as active reforestation and removal of invasive exotic plants, trash and debris.

19. Conflict with Other Regulations:

Where the standards and management requirements of the Water Quality Buffer are in conflict with other laws, regulations, and policies regarding streams, steep slopes, erodible soils, wetlands, floodplains, timber harvesting, land disturbance activities, or other environmental protective measures, the more restrictive requirements, as determined by the City, shall apply.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-324.3. Vegetative planting requirements when steep slopes are disturbed.

A) Steep slopes shall be defined as being slopes of thirty (30) percent or more. Slopes that have been cleared and graded with thirty (30) percent or higher slope may have to be compacted, and may require a certified engineer design to ensure slope stability which may require analysis of vegetative planting.

B) All residentially zoned properties containing steep slopes shall adhere to following vegetative replanting requirements for areas with disturbed steep slopes as indicated below. A diverse, multiple canopy planted area provides the maximum stormwater mitigation and it is recommended that all steep slopes provide a simple ratio as outlined in the following charts that includes required numbers of trees, shrubs, evergreen trees, all underplanted with a herbaceous ground surface layer. These regulations apply to lots where the proposed land disturbing activity is disturbed based upon the following lot sizes:

Detached Building Development Requirements
(Single-Family Homes)

Lot Size	*Max. Area of Steep Slope w/o Mitigation*	*Req'd Plant Coverage Based Upon Area*
3,000—5,000 ft^2	1,000 SF	Min. 1,200 SF/Coverage Values
5001—7,500 ft^2	2,000 SF	Min. 1,200 SF/Coverage Values
7,501—10,000 ft^2	2,500 SF	Min. 1,200 SF/Coverage Values
10,001—25,000 ft^2	4,000 SF	Min. 1,200 SF/Coverage Values
25,001—35,000 ft^2	7,000 SF	Min. 1,200 SF/Coverage Values
35,001 ft^2—1.00 acres	12,000 SF	Min. 1,200 SF/Coverage Values
1.00 acres—Greater	20% or greater	Min. 1,200 SF/Coverage Values

Attached Building Development Requirements
(Duplexes, Townhomes, Apartments)

Lot Size	*Max. Area of Steep Slope w/o Mitigation*	*Req'd Plant Coverage Based upon Area*
3,000—7,500 ft^2	2,000 SF	Min. 1,000 SF/Coverage Values
7,501—10,000 ft^2	3,000 SF	Min. 1,000 SF/Coverage Values
10,001—25,000 ft^2	5,000 SF	Min. 1,000 SF/Coverage Values
25,001—35,000 ft^2	10,000 SF	Min. 1,000 SF/Coverage Values
35,001 ft^2—1.00 acres	15,000 SF	Min. 1,000 SF/Coverage Values
1.01 acres—Greater	20% or greater of lot	Min. 1,000 SF/Coverage Values

These regulations shall adhere to all R-1, R-2, R-3, R3MD, R-4, R5, RTZ, RZ1, and RT1 zoned properties.
(Ord. No. 13660, § 1, 4-6-21)

Sec. 31-324.4. Steep slope vegetation policy and planting requirements.

The following tree planting requirements shall apply in all areas where steep slopes as defined in Section 38-603 are disturbed.

Class I Shade Trees: These trees are used to meet the tree planting requirements for large canopy trees. Evergreen trees can be treated as Class I shade trees provided, they meet the minimum maturity height and canopy spread criteria.

Class II Shade Trees: These trees are intended to be used for planting as under story canopy and ornamental type trees. Only Class II trees shall be planted under overhead power lines.

Evergreen Screening Trees: Screening trees are used for Screening, Evergreen accents, Anchors, and Framing in the landscape.

Shrubs: Shrubs shall be installed at a minimum size of one (1) gallon. Shrubs are used for foundation plantings, accents, mass plantings, hedging, screening, groundcover, ornamental, and habitat. Shrubs will vary in height and spread and shall be spaced accordingly. No shrub plantings shall be planted in overcrowded masses in a single location to meet this ordinance.

Groundcovers/Perennials (excludes all turf areas):

Groundcovers/Perennials shall be installed at a minimum size of four (4) inch pots and up. Groundcover/Perennials shall achieve a mature height of four (4) to eighteen (18) inches with a mature

spread one (1) to four (4) foot diameter. Groundcovers/Perennials are used for groundcover, mass plantings, erosion control, flowering accents, and habitat. Groundcovers/Perennials will vary in height and spread and shall be spaced accordingly.

Replacement Trees/Plantings and coverage values:

Trees replacement plantings installed in any areas where steep slopes are disturbed shall consist of Class I, Class II Shade Trees and Evergreen Screening Trees, Shrubs and Groundcover/ Perennials with sufficient minimum canopy to meet this requirement. No single tree species shall constitute more than fifty (50) percent of total trees required. The following coverage values shall be maintained in all replacement plantings where steep slopes have been disturbed.

Class I Tree with 20—30' diameter minimum canopy	=	500 SF coverage values
Class II Tree with 10—20' diameter minimum canopy	=	200 SF coverage values
Evergreen Screening Tree with 8' mature spread	=	50 SF coverage values
Shrub with 3—6' mature height and spread	=	20 SF coverage values
Groundcover/Perennials with 1—4' mature spread	=	1 SF coverage values

*Evergreen Screening Trees, Shrubs, and Groundcover/Perennials may be used for meeting the required tree replacement plantings up to 25%.

(Ord. No. 13660, § 2, 4-6-21)

Sec. 31-324.5. Incentives for preservation of existing trees.

The following tree planting requirements and credits for preservation of existing trees shall apply in all areas where steep slopes as defined in Section 38-603 are disturbed.

For lots twenty-five thousand (25,000) sq. ft. to 1.00 acres developers may receive up to seventy (70) percent credit for the required tree plantings for all existing tree(s) preserved on slopes equal to or greater than thirty (30) percent. During land disturbance and construction any trees eligible for credit shall be protected, shall be in good health, and shall be at least four (4) inch (DBH) or greater.

For lots 1.01 acres developers may receive up to seventy (70) percent credit for the required tree plantings for all existing tree(s) preserved on slopes equal to or greater than thirty (30) percent. During land disturbance and construction any trees eligible for credit shall be protected, shall be in good health, and shall be at least four (4) inch (DBH) or greater.

- Any tree plantings as required with Article IX of the Landscape Provisions for a development shall count towards meeting these requirements, but such plantings shall not exceed ten (10) percent of the required coverage required.
- A ten (10) percent credit of the required replacement tree plantings will be allowed for using native plant species.
- All credits utilized for plantings using native species or credits utilized for those trees as would normally be required for meeting the current landscape ordinance shall not cumulatively exceed a twenty (20%) percent reduction towards meeting the coverage requirements.

Key Objectives of the Steep Slope Vegetation Policy:

1. Encourages a "stay away from steep slopes" mentality by placing additional vegetation replacement program.
2. Encourages preservation of existing established trees.
3. Offers property owner a menu of items allowing an array of vegetation types while encouraging the use of native species.

4. Defines anything above a thirty (30) percent grade officially as a Steep Slope with a distance of at least one hundred (100) linear feet.

5. Allows for the possibility of a credit program for maintaining placement of mature trees and the protection of native trees.

6. Vegetation program allows for covering more ground per sq. ft. vs. number of trees methodology.

7. Policy creates a formula to provide flexibility and choice while maintaining a sq. ft. focus and tree conservation.

8. Allows the Land Development Office to review Landscape Plan submittals prior to the issuance of a Land Disturbing permit to review Steep Slope development plans before vegetation is removed to retain placement of mature trees, the protection of native trees, and the planting of new trees, which are considered for any credit on a Steep Slope as part of the Land Disturbance permit application process.

(Ord. No. 13660, § 3, 4-6-21)

Sec. 31-325. Landfilling requirements in certain residential areas.

1. It shall be unlawful for any person to fill any land in any property which is within one hundred (100) feet of any R-1 Residential Zone, RT-1 Residential Townhouse Zone, RZ-1 Zero Lot Line Residential Zone, R-T/Z Residential Townhouse/Zero Lot Line Zone or R-2 Residential Zone or which is itself zoned in one (1) of these categories without first obtaining a land disturbing activity permit.

For the purposes of this subsection, the act of filling shall be any site where raising the elevation shall require seventy-five percent (75%) or more of the materials used for filling the land to be hauled over surface roads from non-contiguous parcels of land.

2. A land disturbing activity permit for properties zoned in these categories shall be subject to the following additional restrictions:

A. Fill material must be comprised only of suitable materials such as dirt, bricks, concrete without exposed rebar and/or wire, stones or similar inert materials; provided that no organic or contaminated materials are allowed;

B. Maximum height of fill shall be two (2) feet above roads or one hundred (100) year flood elevation;

C. Fill must not interfere with the free drainage of adjoining properties; any fill placed within five (5) feet of a property line requires submission of a drainage plan;

D. All fill placed within any area that may be used for construction of a building under the applicable zone must be properly placed and compacted in accordance with the current building codes adopted by the City of Chattanooga;

3. Fill slopes shall be required to adhere to the following:

A. Fill slopes three horizontal to one vertical [3:1 (H:V)] or flatter may be placed no closer than two (2) feet to the adjoining property line and/or easement;

B. Slopes steeper than three horizontal to one vertical [3:1 (H:V)] must be designed by a professional soils engineer registered to practice in the State of Tennessee and shall be placed no closer than five (5) feet to the adjoining property line and/or easement;

C. Where slopes utilize retaining walls, the face of the retaining wall may be placed no closer than one (1) foot to the adjoining property line and/or easement;

D. Any combination of retaining wall height plus the slope height which exceeds the building code requirements for a non-engineered wall shall be designed by a professional engineer registered to practice in the State of Tennessee; and

E. All retaining walls shall be engineered in accordance with the current building code as adopted by the City of Chattanooga.

4. Except where existing stormwater conveyances are adequate for any increase in drainage, appropriately sized on-site retention facilities shall be provided; and

5. Filling of the property must be completed, including capping the fill with a minimum of four (4) inches of topsoil and stable perennial vegetation, within one (1) year of the permit issue date, at which time the permit shall become null and void unless a valid extension is granted in writing by the Site Development Manager, or his designee.

A. Applications for extension must be made in writing to the Site Development Manager.

B. The Site Development Manager may consider any history of complaints and the frequency of such complaints relative to the existing permit when determining if an extension is warranted.

C. The Site Development Manager will be final authority in determining whether to issue an extension.

6. For lots with a width or depth greater than five hundred (500) feet the above restriction shall only apply to the area within one hundred fifty (150) feet of the property line.

7. Each application for permit, with the required fee therefor, shall be filed with the Site Development Manager and in addition to the requirements of Section 31-321, shall contain the following information:

A. Written approval of the request for a permit from the owners of the property;

B. The character and description of the fill materials to be deposited;

C. The rate at which the fill materials are expected to be deposited on a weekly or monthly basis;

D. Equipment to be used; and

E. The date upon which the applicant desires the permit to be issued.

8. The Site Development Manager may impose conditions upon the issuance of a permit which are reasonably calculated to eliminate excessive noise, scattering of dust or dirt, scattering of materials, to prevent nuisances and to prevent obstruction of public streets or interference with traffic.

9. A second land disturbing activity permit application will only be considered in conjunction with a building permit on the property.

10. An additional twenty-five dollar ($25.00) fee shall be charged for any application for a permit to fill property.

11. If any filling work, for which a permit is required, starts prior to obtaining said permit, the fee herein specified shall be doubled. The payment of such double fee shall not relieve any person from fully complying with the requirements of this Code in the execution of the work nor from any other penalties prescribed herein.

12. Any person filling property at the time of the enactment of this provision shall to the extent practical comply with all provisions in this section.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.1. Timber Removal Requirements—Applicability.

The intent is to prevent detrimental impacts of stormwater runoff on nearby property. Site clearing for any use other than forestry without approved plans and/or land disturbing permits is not allowed. It is the further intent to appropriately document timber removal for the purpose of forest harvest operations.

These Timber Removal Requirements apply to the removal of timber from a site such that:

1. Sites will not be developed within the subsequent three (3) years after such timber removal; and

2. Requirements are applicable to sites one (1) acre in size or larger and where five thousand (5,000) square feet or more of the tree canopy is going to be harvested, cut, or removed within a one (1) year period; or

3. Site is having timber harvested, cut, or removed for the purpose of conducting Forestry Land Management Practices.

These Timber Removal Requirements are not to be construed as eliminating other permit requirements in this Chapter for land development
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.2. Timber Removal Requirements—Exemptions.

1. Special exceptions may be granted if undue hardship can be proven.

2. Such application for exception shall be made to the Municipal Forester and shall show:

A. The special conditions peculiar to the property that would cause the undue hardship;

B. How enforcement of these rules will deprive the landowner of rights commonly enjoyed by others in similar areas;

C. That the granting of the modification will not confer on the landowner a special privilege that would be denied to other applicants;

D. That the modification request is not based on conditions or circumstances that are the result of actions by the applicant;

E. That the request does not arise from a condition relating to land or building use, either permitted or legally nonconforming, on a neighboring property; and

F. That the granting of a modification will not adversely affect water quality.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.3. Removal—Definitions.

DBH (Diameter at Breast Height) shall mean the total cross sectional diameter in inches of a tree measured at a height of four and one-half (4½) feet above ground level.

Forestry Land Management Practices shall mean the practice of controlling forest establishment, composition and growth, as set forth by the Tennessee Department of Agriculture's Division of Forestry's, "Forestry Best Management Practices."

Municipal Forester means an employee of the City of Chattanooga who manages the City's Urban Forestry Program.

Re-Vegetation Management Plan shall mean a site plan drawn to scale that shows in graphic and text form all the necessary re-planting and/or re-growth requirements.

Slash shall mean unutilized wood debris.

Steep Slope shall mean any parcel or group of contiguous parcels with one (1) acre or more of a minimum thirty percent (30%) slope.

Timber means a tree of a size greater than a four (4) inch diameter at a height of five (5) feet from ground level.

Tree Canopy shall mean the effective radial circumference area of a mature tree's vegetative cover, including all branches and leaves. The canopy can be conveyed in values of percentage area of total land space being assessed or by numerical measurement.

Timber Removal means the cutting of timber and/or removal of forest products including logs, pulpwood, or chips.

Tree Protection Area (TPA) shall mean the area set aside for the express purpose of removing no trees.

Tree Removal Area shall mean the location indicated on a site plan and physically marked on the ground designating an area set aside for the express purpose of removing trees.

Watercourse shall mean any natural or artificial stream, river, creek, ditch, channel, canal, conduit, culvert, drain, waterway, gully, ravine, or wash in which water flows in a definite direction or course, either continuously or intermittently, and has a definite channel, bed, and banks and includes any area adjacent thereto subject to inundation by reason of overflow or floodwater.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.4. Permit.

1. For sites pursuant to Section 31-325.1, a Timber Removal Permit is required prior to any timber removal.

2. The Timber Removal Permit is effective for one hundred eighty (180) days for the cutting, removal or harvesting of timber and the permit is effective for an additional twelve (12) months for the exclusive purpose of re-vegetation. If the timber removal activity is not completed during the one hundred eighty (180) days, a new Timber Removal Permit must be applied for. One (1) permit extension of up to ninety (90) days may be granted at the discretion of the Municipal Forester.

3. Each application for the issuance of a timber removal permit under this article shall be accompanied by a non-refundable permit fee of thirty dollars ($30.00) per acre affected or a minimum fee of fifty dollars ($50.00).

4. The Timber Removal Permit Application will include information which includes, but is not limited to:

A. Applicant's name, address and contact information.

B. Names and addresses of the owner of the subject parcel and the contractor/subcontractors who shall perform the timber removal activity.

C. Address and location of subject parcel.

D. A statement setting forth the nature, extent and purpose of the timber removal activity, including the size of the area for which the permit shall be applicable and a schedule for the starting and completion of the timber removal activity.

E. Type of removal method to be used (i.e. clear-cut, shelterwood, selective cut).

F. The proposed method of disposal of all slash/unutilized wood debris, which will provide for either chipping or burning (provided such burning is approved by the Air Pollution Control Board).

G. Ingress and egress locations.

H. Additional information as may be required by the City.

5. The Re-vegetation Management Plan, as defined in Sec. 31-325.4, must be submitted and approved before a Timber Removal Permit and a Timber Removal Notice Sign is issued.

6. A Timber Removal Notice Sign must be posted twenty-one (21) days prior to approval of tree removal activity.

7. No development that would require approval, such as the issuance of a land disturbance permit, a building permit of the subject parcel shall be permitted per Section 31-325.1.1. The non-development period shall begin after the permitted timber removal is completed.

8. All required permits must be in place before harvesting or tree removal begins.

9. An Inspection and Management Plan shall be developed, executed and recorded with the Hamilton County Deeds Office, designating the time period that the site cannot be developed (issued a land disturbance permit or building permit) per Section 31-325.1.1.

10. The executed Inspection and Management Plan shall be recorded before the Timber Removal Permit will be issued.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.5. Re-Vegetation Management Plan.

The Re-Vegetation Management Plan shall identify and demonstrate the following:

1. The location of the mandated undisturbed buffer around the perimeter and any other tree protection areas, including types of existing vegetation and trees.

2. Location of tree removal areas.

3. Location of re-vegetation areas and types of trees/ vegetation to be planted. Re- vegetation with trees is to have a density of ten (10) feet by ten (10) feet for pine, white pine, other softwoods and all hardwoods.

4. Additional information as may be required by the City.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.6. Provisions.

1. The Forestry Best Management Practices as established by the Tennessee Division of Forestry must be utilized.

2. The use of a Master Logger is strongly encouraged.

3. At completion of the required re-vegetation, a final inspection must be requested.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.7. Bond.

No person shall be issued a permit for or engage in timber removal as set out in this chapter without first posting a surety bond not to exceed one hundred dollars ($100.00) per acre of land to be cut/cleared.

Upon the satisfactory final inspection at the completion of the required re-vegetation, the amount of surety posted shall be returned/released.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.8. Violations.

If the City determines that violations of these requirements have occurred, the Timber Removal Permit may be revoked and/or citations issued as otherwise authorized by City Code. Each day a violation continues is a separate violation.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-325.9. Conflict.

Where the standards and management requirements of this ordinance are in conflict with other city, state or federal laws, regulations, and policies regarding streams, steep slopes, erodible soils, wetlands, floodplains, timber removal, or other environmental protective measures, the more restrictive shall apply.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

DIVISION 4. GENERAL REQUIREMENTS APPLICABLE TO ALL PERMITS ISSUED UNDER THIS ARTICLE*

Sec. 31-326. Maintenance and submittal of records.

Appropriate proof and records of compliance with the provisions of the Chattanooga Land Disturbing Permit will be maintained in the office of the designated contact person and be made available for review at any time by the Manager. A copy of the records of compliance will be sent yearly on the anniversary date of the permit to the Manager.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-327. Transfer of permit.

A Chattanooga Land Disturbing Permit may be transferred only upon the filing of an amendment to the permit application or an amended or restated application containing all changes from the original application providing there are no changes in the operation of the facility which may affect the quantity or quality of the stormwater runoff. If there are to be any changes in the operation of the facility which may affect the quantity or quality of stormwater runoff, then the new owner or operator shall re-apply for a Chattanooga Land Disturbing Permit prior to the beginning of operation of the facility. The filing of an amended or restated application shall be treated as an interim permit allowing the continued operation of the facility pending review of the application by the Manager, which shall remain in force until the application shall be approved or denied by the Manager.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-328. Signatory requirements.

1. All applications and reports required by this article to be submitted to the Manager shall be signed as follows:

A. Corporation: a president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation.

B. Partnership or sole proprietorship: by a general partner or the proprietor.

C. Municipality, State, Federal, or other public facility: by either a principal executive officer or the chief executive officer of the agency, or a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency.

2. Any person signing any document above shall make the following certification:

"I certify under the penalty of law that I have personally examined and am familiar with the information submitted in the attached document; and based on my inquiry of those individuals immediately responsible for obtaining the information. I believe the submitted information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and civil penalty."
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-329. Reserved.

***Editor's note—**Ord. No. 12900, § 1, adopted February 3, 2015, amended div. 4, §§ 31-326—31-328, in its entirety. Former div. 4 pertained to similar subject matter and was derived from Ord. No. 9942, § 1, adopted August 31, 1993 and Ord. No. 12881, § 1, adopted November 25, 2014.

DIVISION 5. MONITORING AND INSPECTION*

Sec. 31-330. Monitoring.

The Manager shall periodically monitor the quantity of, and the concentration of pollutants in stormwater discharges from the areas and locations designated in the Chattanooga Stormwater Management Plan.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-331. Detection of illicit connections and improper disposal.

1. The Manager shall take appropriate steps to detect and eliminate illicit connections to the Chattanooga Stormwater System, including the adoption of a program to screen illicit discharges and identify their source or sources.

2. The Manager shall take appropriate steps to detect and eliminate improper discharges, including programs to screen for improper disposal and programs to provide for public education, public information, and other appropriate activities to facilitate the proper management and disposal of used oil, toxic materials and household hazardous waste.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-332. Inspections.

1. The Manager or his designee, bearing proper credentials and identification, may enter and inspect all properties for regular periodic inspections, investigations, monitoring, observation, measurement, enforcement, sampling and testing, to effectuate the provisions of this article and the stormwater management program. The Manager or his designee shall duly notify the owner of said property or the representative on site and the inspection shall be conducted at reasonable times.

2. Upon refusal by any property owner to permit an inspector to enter or continue an inspection, the inspector shall terminate the inspection or confine the inspection to areas concerning which no objection is raised. The inspector shall immediately report the refusal and the grounds to the Manager. The Manager may seek appropriate compulsory process.

3. In the event the Manager or his designee reasonably believes that discharges from the property into the Chattanooga Stormwater System may cause an imminent and substantial threat to human health or the environment, the inspection may take place at any time and without notice to the owner of the property or a representative on site. The inspector shall present proper credentials upon reasonable request by the owner or representative.

4. At any time during the conduct of an inspection or at such other times as the Manager or his designee may request information from an owner or representative, the owner or representative may identify areas of its facility or establishment, material or processes which contains or which might reveal a trade secret. If the Manager or his designee has no clear and convincing reason to question such identification, the inspection report shall note that trade secret information has been omitted. To the extent practicable, the Manager shall protect all information which is designated as a trade secret by the owner or their representative.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Secs. 31-333—31-339. Reserved.

***Editor's note—**Ord. No. 12900, § 1, adopted February 3, 2015, amended div. 5, §§ 31-330—31-332, in its entirety. Former div. 5 pertained to similar subject matter and was derived from Ord. No. 9942, § 1, adopted August 31, 1993 and Ord. No. 12881, § 1, adopted November 25, 2014.

DIVISION 6. ENFORCEMENT AND ABATEMENT*

Sec. 31-340. Unauthorized discharge a public nuisance.

Discharge of stormwater in any manner in violation of this article or of any condition of a permit issued pursuant to this article or a stormwater discharge permit issued by the State of Tennessee is hereby declared a public nuisance and shall be corrected or abated.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-341. Illicit discharge and illegal dumping.

The following direct or indirect discharges into "Community Waters" or "Waters of the State" are prohibited and shall be unlawful:

1. Sewage dumping or dumping of sewage sludge;
2. Chlorinated swimming pool discharge;
3. Discharge of any polluted household wastewater, such as but not limited to laundry washwater and dishwater, except to a sanitary sewer or septic system;
4. Leaking sanitary sewers and connections, which shall have remained uncorrected for seven (7) days or more;
5. Leaking water lines shall have remained uncorrected for seven (7) days or more;
6. Commercial, industrial or public vehicle wash discharge;
7. Garbage or sanitary waste disposal;
8. No dead animals or animal fecal waste shall be directly discharged or discarded into the "Community Waters";
9. No non-stormwater discharges shall be discharged into the "Community Waters," except pursuant to a permit issued by the State of Tennessee or the City of Chattanooga;
10. No dredged or spoil material shall be directly or indirectly discharged or discarded into "Community Waters";
11. No solid waste shall be directly or indirectly discharged or discarded into "Community Waters";
12. No chemical waste shall be directly or indirectly discharged or discarded into "Community Waters";
13. No wrecked or discarded vehicles or equipment shall be discharged or discarded into "Community Waters."

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-342. Prohibition of pollutant discharge not covered by the NPDES Program.

1. A permit is a license to conduct an activity which is regulated by the Clean Water Act, the Water Pollution Control Act (T.C.A. § 69-3-101, et seq.) or this article.

2. Every person who is or who is planning to carry out any of the activities requiring a permit shall obtain such a permit prior to carrying out such activities.

***Editor's note—**Ord. No. 12900, § 1, adopted February 3, 2015, amended div. 6, §§ 31-340—31-348, in its entirety. Former div. 6 pertained to similar subject matter and was derived from Ord. No. 9942, § 1, adopted August 31, 1993 and Ord. No. 12881, § 1, adopted November 25, 2014.

3. It shall be unlawful for any person to carry out any of the following activities, except in accordance with the conditions of a valid permit:

A. The alteration of the physical, chemical, radiological, biological, or bacteriological properties of any waters of the state or community waters;

B. The construction, installation, modification, or operation of any treatment works or part thereof, or any extension or addition thereto;

C. The increase in volume or strength of any wastes in excess of permissive discharges specified under any existing permit;

D. The development of a natural resource or the construction, installation, or operation of any establishment or any extension or modification thereof or addition thereto; the operation of which will or is likely to cause an increase in the discharge of wastes into the waters of the waters of the state or would otherwise alter the physical, chemical, radiological, biological or bacteriological properties of any waters of the state in any manner not already lawfully authorized;

E. The construction or use of any new outlet for the discharge of any wastes into the waters of the state;

F. The discharge of sewage, industrial wastes or other wastes into waters, or a location from which it is likely that the discharged substance will move into waters;

G. The discharge of sewage, industrial wastes, or other wastes into a well or a location that is likely that the discharged substance will move into a well, or the underground placement of fluids and other substances which do or may affect the waters of the state.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-343. Accidental discharges.

1. In the event of any discharge or a hazardous substance in amounts which could cause a threat to public drinking supplies, a "significant spill," or any other discharge which could constitute a threat to human health or the environment, the owner or operator of the facility shall give notice to the City's Water Quality Manager by calling 3-1-land the field office of Tennessee Department of Environment and Conservation as soon as practicable, but in no event later than the close of business on the day following the accidental discharge or the discharger becomes aware of the circumstances. If an emergency response by governmental agencies is needed, the owner or operator should also call 911 immediately to report the discharge. A written report must be provided within five (5) days of the time the discharger becomes aware of the circumstances, unless this requirement is waived by the Manager for good cause shown on a case-by-case basis, containing the following particulars:

A. A description of the discharge;

B. The exact dates and times of discharge, and

C. Steps being taken to eliminate and prevent recurrence of the discharge.

2. The discharger shall take all reasonable steps to minimize any adverse impact to the "Community Waters" or the "Waters of Tennessee," including such accelerated or additional monitoring as necessary to determine the nature and impact of the discharge. It shall not be a defense for the discharger in an enforcement action that it would have been necessary to halt or reduce the business or activity of the facility in order to maintain water quality and minimize any adverse impact that the discharge may cause.

3. It shall be unlawful for any person to fail to comply with the provisions of this section.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-344. Administrative enforcement remedies.

1. Notification of Violation. Whenever the Manager finds that any permittee or any person discharging stormwater has violated or is violating this article, or a Stormwater permit or order issued hereunder, the Manager or his agent may serve upon said user written notice of the violation. Within ten (10) days of the receipt date of this notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted to the Manager. Submission of this plan in no way relieves the discharger of liability for any violations occurring before or after receipt of the notice of violation.

2. Consent Orders. The Manager is hereby empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with the person responsible for the noncompliance. Such orders will include specific action to be taken by the industrial user to correct the noncompliance within a time period also specified by the order. Consent orders shall have the same force and effect as administrative orders issued pursuant to paragraph (4) below.

3. Show Cause Hearing. The Manager may order any person who causes or contributes to violation of this article or Stormwater permit or order issued hereunder, to show cause why a proposed enforcement action should not be taken. Notice shall be served on the person specifying the time and place for the meeting, the proposed enforcement action and the reasons for such action, and a request that the violator show cause why this proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least ten (10) days prior to the hearing. Such notice may be served on any principal executive, general partner or corporate officer.

4. Compliance Order. When the Manager finds that any person has violated or continues to violate this article or a permit or order issued thereunder, he may issue an order to the violator directing that, following a specified time period, adequate structures, devices, be installed or procedures implemented and properly operated. Orders may also contain such other requirements as might be reasonably necessary and appropriate to address the noncompliance, including the construction of appropriate structures, installation of devices, self-monitoring, and management practices.

5. Cease and Desist Orders. When the Manager finds that any person has violated or continues to violate this article or any permit or order issued hereunder, the Manager may issue an order to cease and desist all such violations and direct those persons in noncompliance to:

A. Comply forthwith; or

B. Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and terminating the discharge.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-345. Unlawful acts, misdemeanor.

It shall be unlawful for any person to:

1. Violate any provision of this article;

2. Violate the provisions of any permit issued pursuant to this article;

3. Fail or refuse to comply with any lawful notice to abate issued by the Manager, which has not been timely appealed to Stormwater Regulations Board, within the time specified by such notice; or

4. Violate any lawful order of the Stormwater Regulations Board within the time allowed by such order shall be guilty of a misdemeanor; and each day of such violation or failure or refusal to

comply shall be deemed a separate offense and punishable accordingly. Any person found to be in violation of the provisions of this article shall be punished by a fine of not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00) for each offense.

(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-346. Civil penalty.

1. Any person who does any of the following acts or omissions shall be subject to a civil penalty of up to five thousand dollars ($5,000.00) per day for each day during which the act or omission continues or occurs:

A. Who fails to obtain any permit required;

B. Violates the terms or conditions of a permit issued pursuant to a pretreatment program;

C. Violates a final determination or order of the Stormwater Regulations Board; or

D. Violates any provisions of this article.

2. Any civil penalty shall be assessed in the following manner:

A. The Manager may issue an assessment against any person or permittee responsible for the violation;

B. Any person against whom an assessment has been issued may secure a review of such assessment by filing with the Manager a written petition setting forth the grounds and reasons for his objections and asking for a hearing in the matter involved before the Stormwater Regulations Board and if a petition for review of the assessment is not filed within thirty (30) days after the date the assessment is served, the violator shall be deemed to have consented to the assessment and it shall become final;

C. Whenever any assessment has become final because of a person's failure to appeal the Manager's assessment, the Manager may apply to the appropriate court for a judgment and seek execution of such judgment and the court, in such proceedings, shall treat a failure to appeal such assessment as a confession of judgment in the amount of the assessment;

D. In assessing the civil penalty the Manager may consider the following factors:

i. Whether the civil penalty imposed will be a substantial economic deterrent to the illegal activity;

ii. Damages to the city, including compensation for the damage or destruction of public stormwater facilities, and also including any penalties, costs and attorneys' fees incurred by the city as the result of the illegal activity, as well as the expenses involved in enforcing this article and the costs involved in rectifying any damages;

iii. Cause of the discharge or violation;

iv. The severity of the discharge and its effect upon public stormwater facilities and upon the quality and quantity of the receiving waters;

v. Effectiveness of action taken by the violator to cease the violation;

vi. The technical and economic reasonableness of reducing or eliminating the discharge; and

vii. The economic benefit gained by the violator.

3. The Stormwater Regulations Board may establish by regulation a schedule of the amount of civil penalty which can be assessed by the Manager for certain specific violations or categories of violations.

4. Any civil penalty assessed to a violator pursuant to this section may be in addition to any civil penalty assessed by the Commissioner of Environment and Conservation for violations of T.C.A. § 69-3-115; however, the sum of penalties imposed by this section and by § 69-3-115 shall not exceed ten thousand dollars ($10,000.00) per day for each day during which the act or omission continues or occurs.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-347. Judicial proceedings and relief.

1. The Manager may initiate proceedings in any court of competent jurisdiction against any person who has or is about to:

A. Violate the provisions of this article;

B. Violate the provisions of any permit issued pursuant to this article;

C. Fail or refuse to comply with any lawful order issued by the Manager, which has not been timely appealed to the Stormwater Regulations Board, within the time allowed by this article;

D. Violates any lawful order of the Stormwater Regulations Board within the time allowed by such order.

2. Any person who shall commit any act or fail to perform any act declared unlawful under this article shall be guilty of a misdemeanor, and each day of such violation or failure shall be deemed a separate offense and punishable accordingly.

3. The Manager with consent of the Mayor may also initiate civil proceedings in any court of competent jurisdiction seeking monetary damages for any damages caused to publicly owned stormwater facilities by any person, and to seek injunctive or other equitable relief to enforce compliance with the provisions of this article or to enforce compliance with any lawful orders of the Manager or the Stormwater Regulations Board.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-348. Disposition of damage payments and penalties; special fund.

All damages collected under the provisions of sections 31-346 and civil penalties collected under section 31-347, following adjustment for the expenses incurred in making such collections, shall be allocated and appropriated to the stormwater system for the administration of its program.
(Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-349. Reserved.

DIVISION 7. FEES

Sec. 31-350. Levied.

For the purpose of operating the stormwater program of the City and the payment of the costs and expenses appurtenant, incident or necessary thereto for the construction, extension, enlargement, or acquisition of necessary stormwater facilities or flood control improvement, including replacement thereof, and for the operation and maintenance thereof, there hereby is imposed a water quality fee upon the owner of property now served directl y or indirectly by the city's storm sewer system at the rates set forth in this division.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-351. Property owners to pay charges.

The owner of each lot or parcel which directly or indirectly uses the stormwater system maintained by the City shall pay the water quality fees and charges as provided in this division. The owner of record as determined by the records of the Assessor of Property for Hamilton County as of October 1 shall be liable for payment of the water quality fees for that calendar year; providing nothing herein shall preclude the proration of fees between property owners.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 10670, § 1, 2-24-98; Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-352. Rate Structure.

1. A water quality fee shall be assessed to the owner of each and every lot and parcel of land within the corporate City limits which directly or indirectly uses the stormwater system of the City and that contains impervious area. This fee is not related to the drinking water and/or sewer service and does not rely on occupancy of the premises to be in effect and is hereinbefore provided, and in the amount determinable as follows:

2. For any such property, lot, parcel of land, building or premises that directly or indirectly uses the stormwater system of the City, such fee shall be based upon the size of impervious area situated thereon.

3. All properties having impervious area within the City of Chattanooga will be assigned an Equivalent Residential Unit (ERU) or a multiple thereof, with all properties of having impervious area receiving at least one (1) ERU.

4. Residential properties. All residential properties will be assigned one (1) ERU. A flat rate fee will apply to all residential properties.

5. Non-residential properties. Non-residential properties will be assigned an ERU multiple based upon the properties' individually measured impervious area (in square feet) divided by three thousand two hundred (3,200) square feet (one (1) ERU). This division will be calculated to the first decimal place and rounded according to mathematical convention.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 12294, § 3, 10-6-09; Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-353. Billing procedure.

1. The water quality fees shall become effective at the rates hereinafter imposed, shall be billed annually by the City Treasurer at the same time that the city's real property taxes are mailed, and shall be due and payable at the same time as property taxes, October 1 of each year.

2. The water quality fee shall be designated as a separate item on the property tax bill.

3. The water quality fee shall be paid in person or by mail at the City Treasurer's Office and shall become delinquent as of the next February 1 following the billing. Any unpaid water quality fee shall bear interest at the legal rate if it remains unpaid after March 1.

4. Pursuant to section 13, Public Chapter Number 257, T.C.A. §68-221-1112, each bill that shall contain water quality fees shall contain the following statement in bold-faced type:

" THIS FEE HAS BEEN MANDATED BY CONGRESS "
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 12366, 3-9-10; Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-354. Schedule of Fees.

The current annual City of Chattanooga Water Quality fee is as follows:

Residential Properties — $183.54 per ERU

Non-residential Properties: — $183.54 per ERU

(Ord. No. 9942, § 1, 8-31-93; Ord. No. 10111, § 4, 9-20-94; Ord. No. 12294, § 3, 10-6-09; Ord. No. 12377, § 2, 4-20-10; Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 12953, § 27, 6-16-15; Ord. No. 13213, § 30, 9-12-17; Ord. No. 13251, § 1, 11-28-17; Ord. No. 13334, § 29, 7-3-18; Ord. No. 13473, § 29, 6-25-19; Ord. No. 13558, § 29, 6-23-20; Ord. No. 13710, § 29, 9-28-21; Ord. No. 13840, § 29, 6-14-22; Ord. No. 14239, § 28, 6-10-25)

Sec. 31-355. Correction of erroneous billing.

1. Any owner or duly authorized agent may contest the accuracy of the water quality fees imposed by this article by lodging a protest with the Manager of the Water Quality Division of the Department of Public Works without payment of the water quality fee on or before December 31 in the year for which billing is received. The Manager shall develop and maintain appropriate forms for the lodging of such protest, but any written protest shall be sufficient provided that it sets forth with particularity the nature of any errors allegedly committed in the computation of such bill. A protest may be filed after December 31, but it must be preceded by or accompanied by payment of the water quality fees as billed which will be considered a payment under protest. Interest on any delinquent portion of the fees as adjudicated by that Board shall accrue from the date of the Manager's written decision.

2. The Manager shall duly consider all notices of protest as soon as practicable, and when he or she shall agree with all or any portion of the protest shall adjust the billing in accordance with such factors as are in this article. The Manager shall refund any erroneous billing for the year involved in the protest and when the conditions in the previous years also warrant an agreement, the Manager shall adjust the previous two (2) years' fees for a total of three (3) years of adjustment of erroneous fees.

3. If the Manager disapproves the protest in whole or in part, he or she shall notify the owner or duly authorized agent as soon as practicable. In no event shall there be more than a ninety (90) day delay in resolving any protest. In the event more than ninety (90) days elapses following the filing of the protest without a decision having been rendered by the Manager, the protest shall be deemed to have been denied.

4. If the owner disagrees with the administrative ruling of the Manager concerning a protest which was timely filed, the owner may within thirty (30) days following the date of the decision of the Manager appeal the bill and the Manager's administrative determination to the Stormwater Regulations Board by filing a notice of appeal to said board in care of the Administrator of the Department of Public Works, Development Resource Center, 1250 Market Street, Suite 2100, Chattanooga, Tennessee, 37402, with a copy of said notice provided to the Manager. The Manager shall develop and maintain forms appropriate for filing the notice of appeal, but no particular form for such an appeal shall be required providing that the appeal sets forth with particularity the nature of the owner's complaint.

5. If a notice of appeal to the Stormwater Regulations Board is timely filed, the board shall schedule a time and place within which to consider the appeal. The hearing on such appeals shall be informal, but the owner and Manager will each be given the opportunity to present documentary evidence in support of their position and will be given the opportunity to address the board. The board shall receive such evidence relating to the matter as may be necessary to resolve the dispute, and shall render such determinations and issue such orders as the law and facts of the case may require.

(Ord. No. 9942, § 1, 8-31-93; Ord. No. 10670, § 2, 2-24-98; Ord. No. 12336, § 3, 12-15-09; Ord. No. 12347, 2-9-10; Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-356. Water Quality Credits and Incentives.

The following sections describe the components of the city's credits and incentives program. the credits and incentives program is to be administered under the provisions of the credits and incentives manual in conjunction with the RMG. Discounts approved for properties under the prior system of provisions as enacted October 9, 2009 may continue to receive discounts until December 31, 2039 pursuant to the requirement of this Section.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 12294, § 3, 10-6-09; Ord. No. 12377, § 3, 4-20-10; Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-356.1. Adjustments to Water Quality Fee.

1. A property owner's addition of impervious areas or failure to maintain previously earned fee reductions will increase water quality fees on non-single-family residential service charges. Decreases to non-single-family fees occur via removal of impervious areas, or through installation of approved on-site runoff reduction SCMs that exceed the site's required stay-on-volume. The application of credit coupons will not reduce water quality fees.

A. Properties that comply with regulatory requirements, such as capping contaminated soil with impermeable liners, may receive a reduction in their annual water quality fee for those portions of the property that are subject to such regulatory requirements and remain as unused open space, as long as the following conditions are completed:

   i. The property owner must submit a fee appeal and attach the regulatory requirement of the application;

   ii. The property owner must continuously adhere to the regulatory requirements of the property;

   iii. The property owner must fence and maintain the requested unused* open space portion of the property (*The property owner shall not use the unused open space in any manner, including, but not limited to material storage, parking, drive lanes, property access, staging, etc.); and,

   iv. The property owner must provide annual reporting (narrative and photographic) on or before June 30th of each year to the City to substantiate non-usage of that portion of the property.

2. Upon application by any approved applicant adequately supported by documentation, the applicant shall be entitled to a discount as provided in this section and further described in the City's Credit and Incentive Manual.

A. Discounts are only offered to single-family residential properties through the My Tennessee program. All other water quality fee discounts described are for non-single family residential properties.

   i. My Tennessee participants are eligible for a twenty-five (25%) percent, fifty (50%) percent, or seventy-five (75%) percent annual water fee discount for bronze, silver, and gold level approved applicants, respectively.

B. Discounts for new and redevelopments correspond to each one percent (1%) exceedance of the applicable stay-on-volume up to a maximum recognized fee discount.

C. Discounts for retrofits correspond to each one-tenth (0.1) inch exceedance of the applicable stay-on-volume up to a maximum recognized fee discount.

D. The minimum recognized discount is ten percent (10%).

E. The maximum discount is determined by the applicable development category under which the SOV was installed.

i. Forty percent (40%) for new development.

ii Sixty percent (60%) for redevelopment.

iii. Seventy percent (70%) for retrofit.

3. Properties that submit a complete application for a discount prior to the close of business on November 30, 2015, may continue to be eligible for discounts under the prior system of provisions. These discounts may continue until December 31, 2039 provided no unapproved changes are made to the practices or SCMs that are the basis for the discount, all applicable forms are submitted on time, and the practices or SCMs maintain compliance with City standards.

A. Sites receiving a discount for the installation of a LID retrofit under the prior system of provisions are exempt from the December 31, 2039 sunset date and may continue to receive a discount under the prior system of provisions provided they continue to meet all maintenance and submittal requirements.

B. If properties participating in the prior system of provisions choose to apply under the provisions of this ordinance, then they will be treated like retrofit sites in regard to the SOV baseline, maximum discounts, and potential mitigation credits.

4. Proper SCM Maintenance is required to receive the discounts provided in this Section. Maintenance shall be performed according to the City's RMG and the site specific Long Term Maintenance Plan. Annually, the property owner must submit approved inspection and maintenance reports with related pictures of the SCMs to verify that the SCMs have been properly maintained and serviced. Failure to provide this documentation by June 30 will result in the suspension of the discount for that year. The fee discount may be reinstated the following year if the inspection and maintenance forms are submitted on time and the property passes a City stormwater compliance inspection. Failure to submit forms for a second year in a row and/or failure of the compliance inspection will result in the forfeiture of the discount. Once a fee discount is forfeited, the property owner may reapply the following year for a fee discount as allowed by the most current ordinance.

5. Any property owner applying or reapplying for discounts must have a recorded Inspection and Maintenance Agreement for Private Stormwater Management Facilities designating the party or parties responsible for maintenance and granting the City the right to inspect said facilities. An inspection and maintenance plan specific to the site must be recorded with the Register of Deeds along with this Agreement.

6. Reserved.

7. The approved applicant shall apply for discounts pursuant to this section.

A. Applications shall be accompanied by proper documentation demonstrating the accuracy of the claim. To the extent that the City is satisfied that discounts are warranted by the circumstances, the bill shall be reduced as provided herein. If the fees shall have been previously paid, the City can refund or credit future billings to the extent warranted by the discount.

B. Applications must be approved by the City by March 1 in order to be applied to the previous year's fee.

C. The City shall act upon discount applications within ninety (90) days of the receipt thereof. In the event the application is not acted upon within this time, the application shall be deemed to have been denied.

(Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 12933, § 1, 4-7-15; Ord. No. 13251, § 1, 11-28-17; Ord. No. 13384, § 1, 10-16-18; Ord. No. 13486, § 2, 7-23-19; Ord. No. 13675, § 1, 5-18-21)

Sec. 31-356.2. Credit Coupons.

1. An approved applicant shall be entitled to a credit coupon, upon application and documentation that adequately supports a case for credit to be issued as provided in this section and further described in the Credits and Incentives Manual.

A. Credit coupons are earned in units of cubic feet of SOV for exceeding the applicable SOV standard on new and redevelopments, retrofits, or offsite mitigation sites.

B. Earned credits are issued after certified As Built Plans are approved.

C. Credits are issued to the approved applicant as a paper credit coupon.

D. The maximum credit that can be earned is the difference between the applicable SOV standard and the volume resulting from a two and one- tenth (2.1) inch rainfall event. A two and one-tenth (2.1) inch rainfall event is the specified water quality volume identified in the RMG.

2. Subject to certain stipulations, credit coupons may be sold, transferred, or applied in the amount of the coupons individually or in any combination.

A. Credit coupons have no monetary face value.

B. Earned and unapplied coupons do not have an expiration date.

C. The City will not replace or re-issue lost credit coupons. The coupon holder assumes all risk of theft, fire and every form of loss.

D. The City will track credit coupons issued and redeemed for the purpose of NPDES compliance reporting.

E. The City will split credit coupons to facilitate the sale and transfer of credit coupons. Original credit coupons must be surrendered to the City.

F. The City will not track ownership changes as a result of the sale or transfer of credit coupons.

G. The City will not coordinate, assist, or negotiate the transaction for the transfer of coupons between a willing seller and a potential buyer.

3. The application of acquired or earned credit coupons is subject to the following rules and stipulations:

A. Without demonstrating hardship, the application of credit coupons is limited to fifty percent (50%) of the required SOV.

B. Credit Coupons are applied at a one-to-one (1:1) ratio anywhere in the City, outside of Combined Sewer System areas, to meet another site's SOV obligation.

C. Reserved.

D. Credit coupons cannot be applied or used to meet the SOV requirement for offsite mitigation projects.

E. Retrofitting existing sites for SOV is voluntary so that applicants may earn credit coupons and/or reduce the property owner's water quality fee. The application of coupons at retrofit sites would accomplish neither, and is therefore not allowed.

F. The request for use of credit coupons is incumbent on the applicant and must be submitted with the project's preliminary plan submittal.

G. Reserved.

H. The city-wide use and application of credit coupons is subject to periodic review and adjustment.

I. The owner or transferee surrenders the applied credit coupon(s) with final As Built Plan certification. The City retires the used coupon(s) and issues a new coupon for any residual SOV not applied.

4. When using or applying credit coupons, peak rate controls and water quality treatment (TSS) must still be met on site.

5. All credits shall be subject to any changes in federal or state law and regulation, or changes to the City's National Pollutant Discharge Elimination System (NPDES) Permit that increase restrictions on stormwater discharges.

(Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17; Ord. No. 13486, § 3, 7-23-19)

Sec. 31-356.3. Offsite Mitigation and Mitigation Fees.

The City will consider the following alternatives for sites that have proven to be technically infeasible to achieve the stay-on-volume performance standard according to the RMG. Economic hardship, site program density (lack of space for SCMs), and other similar conditions imposed solely by the site design

are not presumed to be a basis for site infeasibility. Acceptable reasons for qualifying for offsite mitigation and/or mitigation fees are defined in this Article, in the City's RMG and in the Credits and Incentives Manual.

1. Offsite Mitigation.

   A. Approved applicants may elect to perform offsite mitigation.

      i. The intent of the applicant must be made at the concept plan review and confirmed at the preliminary plan submission.

      ii. The selection and acquisition of the property to be used for offsite mitigation are the responsibility of the applicant.

         (a) Offsite mitigation may be performed or installed on redevelopment and/or retrofit sites.

         (b) These sites may have their own SOV requirement plus have to accommodate any offsite mitigation volumes. Installed volumes exceeding the two and one-tenth (2.1) inch design standard will not earn offsite mitigation volumes, fee reductions or credit coupons.

         (c) Offsite mitigation SOV cannot be installed at new- development sites.

         (d) Offsite mitigation is permitted only within the same City-defined watershed as the primary site.

         (e) The City, at its discretion, may offer an available City-owned or managed site, within the same watershed, for offsite mitigation subject to mutually agreeable terms and conditions. The approved applicant is under no obligation to utilize any site offered or recommended by the City.

         (f) Offsite mitigation that is designed and constructed in accordance with approved plans and specifications to the satisfaction of the Site Development Manager may be considered to comply with this requirement.

      iii. Preliminary and final plans for both the primary and the mitigation site are required concurrently unless bonding at $45/cubic foot is provided at the time the primary site is permitted.

      iv. The offsite mitigation location must achieve one hundred fifty percent (150%) of the primary site's SOV not achieved through either on-site installation or credit coupon application.

      v. Offsite mitigation projects may receive credit coupons for volumes that exceed the prescribed SOV up to two and one-tenth (2.1) inch total. These property owners may apply for water quality fee discounts subject to the rules of these sections.

      vi. Offsite mitigation must be completed within three (3) years of project approval.

   B. The applicant is required to post a surety bond in an amount equal to the equivalent mitigation fee, based on the value per cubic foot defined in this Article multiplied by the primary development site's unachieved SOV.

      i. The bond will be required before final plans are approved.

      ii. Once the As Built Plan is approved, the bond will be released if all required SOV has been installed. The bond will be called for payment for that portion of SOV that was not met.

2. Mitigation Fees.

   A. Approved applicants may request to pay an in-lieu-fee into a City-managed fund. If accepted, the City can utilize funds to acquire related property, plan, design, construct and maintain public stormwater projects. Use of a mitigation fee is subject to the stipulations provided in this section and further described in the Credits & Incentives Manual.

   B. The mitigation fee may be paid on applicable new and redevelopments for the required or prescribed SOV not achieved onsite.

      i. Applicants/owners must obtain City approval for payment of a mitigation fee in lieu of managing the SOV onsite. The City may agree to receipt of mitigation fees if stormwater management cannot be more fully implemented on a site.

      ii. Mitigation fees are assessed at a rate of forty-five dollars ($45.00) per cubic foot. This rate is one and one-half (1.5) times the average construction cost of thirty dollars ($30.00) per cubic foot, based on research by the City. This methodology is stipulated in the City's MS4 permit issued by TDEC. This rate is subject to periodic review and adjustment.

      iii. Final mitigation fees are determined after approval of the final plans. Fifty percent (50%) is due and payable to the City prior to the issuance of a Land Disturbing Permit. The balance is due and payable with receipt of the certified As Built plan prior to issuance of a Certificate of Occupancy.

(Ord. No. 12881, § 1, 11-25-14; Ord. No. 12900, § 1, 2-3-15; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-357. Water Quality Only Accounts.

Water Quality accounts are parcels that may not have other services (drinking water and/or sanitary sewer) but do contain impervious area or hard surface so a water quality charge would apply. New and additional water quality accounts will be determined by the Water Quality Manager or his designee of the Department of Public Works office.

(Ord. No. 10111, § 1, 9-20-94; Ord. No. 12294, § 3, 10-6-09; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-358. Reserved.

Editor's note—Ord. No. 13859, § 1, adopted July 19, 2022, repealed § 31-358, which pertained to elderly low-income or disabled homeowner exemption from fees and derived from Ord. No. 12294, § 3, 10-6-09; Ord. No. 13251, § 1, 11-28-17.

Sec. 31-359. Reports to Chattanooga City Council.

The Administrator of the Department of Public Works, or such Administrator's designated representative, shall report semi-annually to the Chattanooga City Council on the City's Stormwater Management Program. Such report shall include, at a minimum, the following:

(1) The status of the Stormwater Management Program;

(2) The adequacy of the fee structure imposed to fund the Stormwater Management Program;

(3) Any plans for capital improvements necessary for the Stormwater Management Program;

(4) The status of any projects to control Stormwater run-off; and

(5) The status concerning compliance with the provisions of the NPDES permit.

(Ord. No. 12377, § 4, 4-20-10; Ord. No. 13251, § 1, 11-28-17)

DIVISION 8. STORMWATER REGULATIONS BOARD

Sec. 31-360. Established.

There is hereby established a Board of nine (9) members to be known as the "Stormwater Regulations Board."
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 11496, § 1, 12-2-03; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-361. Composition; terms; filling vacancies.

1. The nine (9) members of the Board shall initially be appointed by the Mayor for staggered terms of one (1) to three (3) years, subject to the approval of the City Council, with terms, after the initial appointments being for three (3) years. Members shall serve until replaced, reappointed, or resign. The Mayor shall appoint members with the following qualifications: environmental engineer or environmental scientist or educator; a representative of an industrial or commercial establishment that is regulated by this Article; two (2) representatives of neighborhood groups; a representative of the development community; a representative of an environmental interest or environmental organization; and a representative of the contractor community. The remaining two (2) members shall not have any particular qualifications, but to the extent practical, shall be selected to maintain diversity on the Board. All members shall serve at the pleasure of the Mayor and the City Council. In the event of a vacancy, the Mayor shall appoint a member to fill the unexpired term, subject to approval by the City Council.

2. The Board shall select its own Chairman, Vice-Chairman, and Secretary. All officers other than the Chairman shall serve for terms of one (1) year.

3. If any member of the Board misses two (2) regular meetings during a calendar year without an adequate justification, they shall be notified by the Chairman they are being placed on probation. They must attend the next two (2) regularly scheduled meetings to be released from probation. If they shall fail to satisfactorily complete a probation or if they are placed on probation for a second time during a term of office, the Chairman of the Stormwater Regulations Board shall request the Mayor to dismiss the Board member and to appoint a new member approved by the City Council. If the Chairman of the Stormwater Regulations Board shall be absent from two (2) regular meetings in one (1) year without an adequate justification, the Vice-Chairman shall request the Mayor to dismiss the Chairman of the Stormwater Regulations Board and select a new Chairman to perform the duties.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 10111, § 5, 9-20-94; Ord. No. 11496, § 2, 12-2-03; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-362. General duties of the board.

In addition to any other duty or responsibility otherwise conferred upon the board by this chapter, the board shall have the duty and power as follows:

1. To recommend from time to time to the city council that it amend or modify the provisions of this article;

2. To hold hearings upon appeals from orders or actions of the Manager as may be provided under any provision of this chapter;

3. To hold hearings relating to the suspension, revocation, or modification of a stormwater discharge permit and issue appropriate orders relating thereto;

4. To hold hearings relating to an appeal from a user concerning the accuracy of any fees imposed upon the user by this article;

5. To hold such other hearings as may be required in the administration of this chapter and to make such determinations and issue such orders as may be necessary to effectuate the purposes of this article;

6. To request assistance from any officer, agent, or employee of the city or the Chattanooga-Hamilton County Regional Planning Commission and to obtain such information or other assistance as the board might need;

7. The board acting through its chairman shall have the power to issue subpoenas requiring attendance and testimony of witnesses and the production of documentary evidence relevant to any matter properly heard by the board; and

8. The chairman, vice chairman or chairman pro tem shall be authorized to administer oaths to those persons giving testimony before the board.

9. To prepare, with the assistance of the stormwater management staff, a stormwater program mission, goals, and objectives for a five (5) year time frame to plan for the existing NPDES permit and to plan for at least one (1) year subsequent to the anticipated renewal of a permit. The goals and objectives shall be reviewed on an annual basis and with the assistance of the staff an annual report shall be prepared in a timely manner for consideration in the annual capital budget submissions by the stormwater staff.

10. The Board shall consider the proposed capital budget submission and recommend to the Mayor and Council any suggestion to change those priorities.

11. To review at least on a bi-annual basis the stormwater rates and to recommend to the Mayor and City Council any changes to make them fairer and to insure that they adequately fund the stormwater program.

12. To review and provide constructive comments to the stormwater management staff relative to the development and implementation of a level of stormwater service acceptable to the rate payers.

13. To respond to citizen complaints and petitions and to recommend an appropriate remedial action when appropriate.

14. To provide a report to the Mayor and City Council on an annual basis addressing such matters as programmatic direction, project review, and effectiveness of the stormwater program.

(Ord. No. 9942, § 1, 8-31-93; Ord. No. 11496, § 3, 12-2-03; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-363. Variances.

1. The board may grant a variance from the requirements of this article providing to do so would not result in the violation of any state or federal law or regulation and if exceptional circumstances applicable to the site exist such that strict adherence to the provisions of this article will result in unnecessary hardship and will not result in a condition contrary to the intent of the ordinance.

2. A written petition for a variance shall be required and shall state the specific variance sought and the reasons, with supporting data, why a variance should be granted. The request shall include all information necessary to evaluate the proposed variance. The petition shall be filed with the Site Development Manager.

3. The Manager shall conduct a review of the request for a variance within ten (10) working days after receipt and may either support the petition or may object to the petition. The manager may elect to receive advice of the City Attorney or designee prior to rendering a decision and may defer to the advice of the City Attorney on legal issues. If the Site Development Manager objects to the variance, he shall state the reasons therefore.

4. Once the Site Development Manager's review is complete or the ten (10) days for review have expired, the petition shall be subject to board action at the next regularly scheduled meeting or at a special meeting called in the discretion of the chair.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 11496, § 4, 12-2-03; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-364. Meetings; quorum.

1. The board shall hold regular quarterly meetings and such special meetings as the board may find necessary.

2. Five (5) members of the board shall constitute a quorum, but a lesser number may adjourn a meeting from day to day. Any substantive action of the board shall require five (5) votes, but a majority of the quorum may decide any procedural matter.

3. In the event the Stormwater Regulations Board fails to convene a quorum for two consecutive meetings, the above duties and responsibilities may be administered by City Council and or the Mayor.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 11496, § 5, 12-2-03; Ord. No. 13251, § 1, 11-28-17)

Sec. 31-365. Hearing procedure; judicial review.

1. When to be held. The stormwater regulations board shall schedule an adjudicatory hearing to resolve disputed questions of fact and law whenever provided by any provision of this article.

2. Record of hearing. At any such hearing, all testimony presented shall be under oath or upon solemn affirmation in lieu of oath. The board shall make a record of such hearing, but the same need not be a verbatim record. Any party coming before the board shall have the right to have such hearing recorded steno graphically, but in such event the record need not be transcribed unless any party seeks judicial review of the order or action of the board by common law writ of certiorari, and in such event the parties seeking such judicial review shall pay for the transcription and provide the board with the original of the transcript so that it may be certified to the court.

3. Subpoenas. The chairman may issue subpoenas requiring attendance and testimony of witnesses or the production of evidence, or both. A request for issuance of a subpoena shall be made by lodging with the chairman at least ten (10) days prior to the scheduled hearing date a written request for a subpoena setting forth the name and address of the party to be subpoenaed and identifying any evidence to be produced. Upon endorsement of a subpoena by the chairman, the same shall be delivered to the chief of police for service by any police officer of the city, if the witness resides within the city. If the witness does not reside in the city, the chairman shall issue a written request that the witness attend the hearing.

4. Depositions. Upon agreement of all parties, the testimony of any person may be taken by deposition or written interrogatories. Unless otherwise agreed, the deposition shall be taken in a manner consistent with Rules 26 through 33 of the Tennessee Rules of Civil Procedure, with the chairman to rule on such matters as would require a ruling by the court under such rules.

5. Hearing procedure. The party at such hearing bearing the affirmative burden of proof shall first call his witnesses, to be followed by witnesses called by other parties, to be followed by any witnesses which the board may desire to call. Rebuttal witnesses shall be called in the same order. The chairman shall rule on any evidentiary questions arising during such hearing and shall make such other rulings as may be necessary or advisable to facilitate an orderly hearing subject to approval of the board. The board, the Manager, or his representative, and all parties shall have the right to examine any witness. The board shall not be bound by or limited to rules of evidence applicable to legal proceedings. Any civil penalties which are unpaid following any administrative ruling by the board shall be required to be paid by the permit holder before any additional stormwater permits may be issued by the City for other land disturbance projects by the permit holder.

6. Appeal to board of manager's order. Any person aggrieved by any order or determination of the Manager may appeal said order or determination to the board and have such order or determination reviewed by the board under the provisions of this section. A written notice of appeal shall be filed with the Manager and with the chairman, and such notice shall set forth with particularity the action or inaction the Manager complained of and the relief sought by the person filing said appeal. A special meeting of the board may be called by the chairman upon the filing of such appeal, and the board may in its discretion suspend the operation of the order or determination of the Manager appeals from until such time as the board has acted upon the appeal. If the board conducts a hearing to review the determination of the Manager it may approve, approve with limitations, or reject any civil penalties assessed in the Manager's order as to the party appealing the order. Any civil penalties which are unpaid following any ruling by the board shall be required to be paid by the permit holder before any additional stormwater permits may be issued by the City for other projects by the permit holder.

7. Absence of chairman. The vice-chairman or the chairman pro tem shall possess all the authority delegated to the chairman by this section when acting in his absence or in his stead.

8. Review of board's decision. Any person aggrieved by any final order of determination by the board hereunder shall have judicial review by common law writ of certiorari.
(Ord. No. 9942, § 1, 8-31-93; Ord. No. 13251, § 1, 11-28-17; Ord. No. 13661, § 1, 4-6-21)

ARTICLE IX. WATER AND WASTEWATER AUTHORITY

Sec. 31-366. Created; basic powers and authority granted.

There is hereby created pursuant to the terms of the Regional Water and Wastewater Treatment Authority Act, Tennessee Code Annotated, sections 68-221-1301 through 638-221-1319, as amended, (hereafter "Authority Act") a water and wastewater treatment authority for the city and any participating governmental entity that may elect to join. This authority shall be named the Chattanooga Area Water and Wastewater Authority (hereinafter called "the authority"). The authority shall have all the powers and authority set forth in the Authority Act.

Sec. 31-367. Composition; appointment, tenure of members; vacancies.

(a) The authority created by this chapter shall consist of members, the executive director, and such subordinate officers and employees as may be selected by the authority as authorized pursuant to the Authority Act.

(b) The initial board of commissioners of the authority shall consist of: one (1) member nominated by the Chattanooga Chamber of Commerce, one (1) member nominated by the Chattanooga Manufacturer's Association, one (1) member nominated by X, one (1) member nominated by Y, and one (1) member nominated by the Mayor of Chattanooga. All initial members shall be subject to approval by the Chattanooga City Council.

(c) The initial terms of the member nominated by the Chamber of Commerce shall be five (5) years, the initial term of the member nominated by the Manufacturer's Association shall be four (4) years, the initial term of the member nominated by X shall be three (3) years, and the initial term of the member nominated by Y shall be two (2) years, and the term of the member nominated by the Mayor shall be one (1) years. Thereafter the terms of members shall be five (5) years.

(d) Any vacancy by reason of nonresidence, incapacity, resignation or death shall be filled in like manner for the unexpired term.

(e) A commissioner's term shall continue until the appointment and qualification of that commissioner's tenure.

(f) A commissioner may be removed from office as provided in T.C.A. § 68-221-1304.

(g) When other governmental entities elect to participate in the authority, the manner of selection of members of the authority may change and the terms of office of directors may be changed to facilitate participation by other entities.

Sec. 31-368. Election and tenure of officers; bylaws; and meetings

(a) Immediately upon the qualification of the members of the authority, they shall elect one (1) of the members of such authority as chairman, and one (1) of its members as vice-chairman, one (1) of its members as secretary. The authority shall as soon as practical develop bylaws for the operation of the board of commissioners.

(b) The authority shall hold regular meetings at least once monthly, at a definite time to be fixed by resolution of the authority, and such special meetings as may be necessary for the transaction of the business of the authority.

Sec. 31-369. Right to use public ways.

The authority shall have the right, but not exclusive of the public right, to use any public road, street, or other public way and easement granted for such purposes for installation and maintenance of any treatment work. The use of such public way shall be subject to reasonable restriction by the governmental entity.

Sec. 31-370. Liability of participating governmental entities.

By participating in the authority no governmental entity, including the City of Chattanooga, assumes any responsibility for the debts, operating expenses, obligations or other liabilities of the authority unless and when an individual governmental entity may, from time to time, specifically agree to do so by action of its governing body.

Chapter 32

STREETS AND SIDEWALKS*

Article I. In General

Sec. 32-1. Streets to be designated by signs at corners.
Sec. 32-2. Datum plane adopted.
Sec. 32-3. Maintenance, removal of equipment installed in streets under franchise.
Sec. 32-4. Harmful materials, substances in streets.
Sec. 32-5. Vehicles using sidewalks adjacent to filling stations.
Sec. 32-6. Washing vehicles on streets, sidewalks.
Sec. 32-7. Signs, pillars, posts, columns on sidewalks.
Sec. 32-8. Projections over sidewalks.
Sec. 32-9. Nonconforming permits, encroachments and projections.
Sec. 32-10. Supervision of trees and shrubs; cutting, trimming, removal.
Sec. 32-11. Injuring trees, shrubs, plants.
Sec. 32-12. Parking, driving on area between sidewalk and curb.
Sec. 32-13. License to make excavations, build or repair sidewalks, occupy streets or sidewalks—Required.
Sec. 32-14. Reserved.
Sec. 32-15. Same—Bond required of licensee.
Sec. 32-16. Definitions.
Secs. 32-17—32-30. Reserved.

Article II. Obstructions

Sec. 32-31. Use of streets for carnivals, fairs, exhibitions.
Sec. 32-32. Boxes, barrels, merchandise, other articles.
Sec. 32-33. News vendors' stands.
Sec. 32-34. Obstructions to visibility at intersections.
Sec. 32-35. Leaving wood, lumber on sidewalks.
Sec. 32-36. Dumping earth, building debris on streets.
Sec. 32-37. Building materials on streets.
Sec. 32-38. Protection of streets, sidewalks on which deposits made.
Sec. 32-39. To be lighted at night.
Sec. 32-40. Liability for failure to light.
Sec. 32-41. Permit required to obstruct gutter; issuance.
Sec. 32-42. Gutter obstruction to be removed when permit expires.

***Charter references—**General authority over streets and sidewalks, § 2.1(7); public works, streets, sewers and airports, § 15.1.

Cross references—Signs or banners over streets and sidewalks, § 3-17; restrictions on signs near controlled access highways, § 3-31 et seq.; beautification, Ch. 9; buildings, Ch. 10; auction sales on streets or public landings prohibited, § 11-18; filling stations, § 11-156 et seq.; sidewalk vendors, § 11-371 et seq.; police department, § 16-41 et seq.; anti-litter code, § 18-141 et seq.; Metropolitan Transit Authority, Ch. 23; motor vehicles and traffic, Ch. 24; parks and playgrounds, Ch. 26; sewers, mains and drainage, Ch 31; trailers and trailer camps, Ch. 34; vehicles for hire, Ch. 35; subdivision regulations, Appendix A; zoning regulations, Ch. 38.

State law reference—Streets and other public improvements, T.C.A., § 7-31-101, et seq.

Sec. 32-43. Removal of unauthorized gutter obstructions.
Sec. 32-44. Temporary use permit.
Secs. 32-45—32-60. Reserved.

Article III. Excavations and Restoration of Paving

Secs. 32-61. Reserved.
Sec. 32-62. Permit required.
Sec. 32-63. Applications.
Sec. 32-64. Application fee.
Sec. 32-65. Manner of excavating; barricades and lights.
Sec. 32-66. Bond required.
Sec. 32-67. Manner of excavating street.
Sec. 32-68. Liability and responsibility for repair.
Sec. 32-69. Inspection.
Sec. 32-70. Specification.
Sec. 32-71. Insurance.
Sec. 32-72. Supervision.
Secs. 32-73—32-85. Reserved.

Article IV. Encroachments and Excavations on State and Federal Highways

Sec. 32-86. Permit required for encroachments; approval.
Sec. 32-87. Removal of violating encroachments.
Sec. 32-88. Permit required for excavations; approval.
Secs. 32-89—32-100. Reserved.

Article V. Curb and Sidewalk Construction and Maintenance

Sec. 32-101. Abutting owners, occupants to keep sidewalks clean and unobstructed.
Sec. 32-102. Duty of abutting owners, occupants to construct.
Sec. 32-103. When owner, occupant to construct or repair sidewalk.
Sec. 32-104. Specifications for construction and repair; permit required.
Sec. 32-105. Failure to construct or repair; notice authorized.
Sec. 32-106. Notice where owner unavailable, no agent and property deserted.
Sec. 32-107. Failure to comply with notice.
Sec. 32-108. Failure to complete work.
Sec. 32-109. Liability of abutting owner for injuries to persons.
Sec. 32-110. Action over by city for judgments against it.
Secs. 32-111—32-125. Reserved.

Article VI. Sidewalk Openings and Gratings

Sec. 32-126. Open gratings prohibited.
Sec. 32-127. Gratings and openings for which permits may be issued.
Sec. 32-128. Construction requirements for use of space under sidewalk.
Sec. 32-129. Leaving sidewalk openings uncovered or out of repair.
Secs. 32-130—32-145. Reserved.

Article VII. Driveways and Curb Cuts

Sec. 32-146. Permits required.
Sec. 32-147. Location approval prerequisite to building permit.
Sec. 32-148. Plot plan required.
Sec. 32-149. When permits not to issue.
Sec. 32-150. Maximum width.
Sec. 32-151. Safety aisle between driveways.
Sec. 32-152. Curbs and gutters required.
Secs. 32-153—32-165. Reserved.

Article VIII. Address Numbering System

Sec. 32-166. System established.
Sec. 32-167. Division of blocks into numbering spaces.
Sec. 32-168. Base lines.
Sec. 32-169. Numbering streets not terminating on base lines.
Sec. 32-170. Odd and even numbers.
Sec. 32-171. Each block to begin with the first number of its sequence.
Sec. 32-172. Property owner to install correct address number.
Sec. 32-173. When address numbers to be affixed to new buildings.
Sec. 32-174. Obliterated, indistinct numbers to be replaced.
Sec. 32-175. When address renumbering required.
Sec. 32-176. Size of numbers generally; style, location to be approved.
Sec. 32-177. Information to be furnished by City Engineer.
Sec. 32-178. Standard Street Numbering and Addressing Policy.
Secs. 32-179—32-195. Reserved.

Article IX. Street Names

Sec. 32-196. Establishment.
Sec. 32-197. Method of procedure to change street and right-of-way names.
Sec. 32-198. Continuation of streets.
Sec. 32-199. Duplication of street names.
Sec. 32-200. Alteration and damage to street signs and street poles.
Secs. 32-201—32-215. Reserved.

Article X. Poles and Wires

Sec. 32-216. Permit to erect poles—Required; how issued; conditions.
Sec. 32-217. Same—Grounds for refusal.
Sec. 32-218. Use of poles for wires of other corporations.
Sec. 32-219. Notice to permit use of poles.
Sec. 32-220. Bond for use of poles by other than owner.
Sec. 32-221. City may use top of pole.
Sec. 32-222. Maintenance of equipment.
Sec. 32-223. Unused equipment to be removed.
Sec. 32-224. Sidewalk Clear Zone.
Secs. 32-225—32-230. Reserved.

Article XI. Telecommunications Services; Franchises for Telecommunications Services

Sec. 32-231. Definitions.
Sec. 32-232. Services prohibited without franchise or without authorization from State of Tennessee.
Sec. 32-233. Provider's Compliance with Law and Maintenance of Clear Zone.
Sec. 32-234. Application for Telecommunications Franchise; application fee.
Sec. 32-235. General provisions for Telecommunications Services.
Sec. 32-236. Engineering designs for Provider's System; "as built" drawings for System.
Sec. 32-237. No adverse effect upon adjacent properties.
Sec. 32-238. No adverse effect upon other utilities.
Sec. 32-239. Restoration of Rights-of-Way.
Sec. 32-240. Standards for maintenance of Telecommunications Services and right to inspect.
Sec. 32-241. Notification of execution of any security agreement or similar agreement concerning Provider's System.
Sec. 32-242. Indemnification of City by Providers.
Sec. 32-243. Insurance and bonds to be maintained by Providers.
Sec. 32-244. Removal or relocation of systems; and emergency removal or relocation.
Sec. 32-245. Assignment of franchise; lease or sale of capacity.
Sec. 32-246. Removal of Telecommunications Facilities.
Sec. 32-247. No cost to City arising out of franchise.
Sec. 32-248. Telecommunications Franchise Fee from Providers; Franchise Fee Statement; no accord and satisfaction.
Sec. 32-249. Default of Providers.
Sec. 32-250. Notices.
Sec. 32-251. Nondiscrimination by Providers.
Sec. 32-252. No grant of use of other property.
Sec. 32-253. Severance clause.
Sec. 32-254. Liabilities; penalties and other rights and remedies.
Sec. 32-255. Compliance with applicable laws and ordinances.
Sec. 32-256. Joint planning and construction; coordination of planned excavations.
Sec. 32-257. Wireless telecommunication advancement exception.
Sec. 32-258. Protection of trees.
Secs. 32-259—32-270. Reserved.

Article XII. Street Construction

Sec. 32-271. Purpose.
Sec. 32-272. Conformity to official plans.
Sec. 32-273. Street design and construction standards.
Sec. 32-274. Grading.
Sec. 32-275. Utility construction.
Sec. 32-276. Subgrade.
Sec. 32-277. Fill and embankments.
Sec. 32-278. Base.
Sec. 32-279. Prime.
Sec. 32-280. Binder.
Sec. 32-281. Backfill curbs.
Sec. 32-282. Tack coat.
Sec. 32-283. Surface.
Sec. 32-284. Seasonal limitations of asphalt.
Sec. 32-285. "As built" drawings.

Sec. 32-286. Geotextiles.
Sec. 32-287. Optional rigid pavements.
Sec. 32-288. Plan review and preconstruction conference.
Secs. 32-289—32-299. Reserved.

Article XIII. Chattanooga Tree Ordinance

Division 1. General

Sec. 32-300. Title.
Sec. 32-301. Purpose.
Sec. 32-302. Definitions.
Sec. 32-303. Establishment of a Tree Commission.
Sec. 32-304. Establishment of the position of City Forester.
Sec. 32-305. Interference with City Forester.
Sec. 32-306. Right to appeal decision of City Forester.
Sec. 32-307. Legality of article and parts thereof.
Sec. 32-308, 32-309. Reserved.

Division 2. Public Property Tree Maintenance, Protection, and Planting

Sec. 32-310. Public Property Tree care.
Sec. 32-311. Obstructions—Minimum clearances.
Sec. 32-312. Permits required.
Sec. 32-313. Enforcement of Public Property Tree Protection

Division 3. Private Property Tree Protection and Responsibilities

Sec. 32-314. Utility responsibility on private property.
Sec. 32-315. Dead or diseased tree removal on private property.
Sec. 32-316. Removal, protection, and provisioning of trees.
Sec. 32-317. Protection of trees of historical or botanical importance.
Sec. 32-318. Tree maintenance and registry.

Division 4. Enforcement

Sec. 32-319. Violations declared nuisances.
Sec. 32-320. Notice requiring abatement of violations; abatement by City; lien for costs.
Sec. 32-321. Violation; Civil penalty.
Sec. 32-322. Reviews
Secs. 32-323—32-340. Reserved.

Article XIV. Complete Streets

Sec. 32-340. Definition of Complete Streets.
Sec. 32-341. Complete Streets Policy.
Sec. 32-342. Scope of Complete Streets Applicability.
Sec. 32-343. Exceptions.
Sec. 32-344. Design Standards.
Sec. 32-345. Performance Measures.
Sec. 32-346. Implementation and Reporting.

ARTICLE I. IN GENERAL

Sec. 32-1. Streets to be designated by signs at corners.

All streets in the city shall be designated at the corners thereof by signs bearing the name of the intersecting streets in legible characters. Such signboards shall be erected in such a manner as the Transportation Department shall direct.
(Code 1986, § 32-1; Ord. No. 12823, § 1, 3-25-14)

Cross reference—Advertising, Ch. 3.

Sec. 32-2. Datum plane adopted.

The datum plane of the city level shall be the low-water mark of the Tennessee River, as indicated by the zero of the river gauge of the United States Government.
(Code 1986, § 32-2)

Sec. 32-3. Maintenance, removal of equipment installed in streets under franchise.

It shall be unlawful for any person occupying any part of any street in the city under franchise rights, either beneath the surface thereof, on the surface or above the same, to allow pipes, poles, wires, tracks or other apparatus or appliances which have been placed on, over or under such streets under such franchise to become and remain so out of repair as to obstruct the surface, damage the paving or endanger the use of such streets; or to neglect to remove or replace such pipes, poles, wires, tracks or other apparatus or appliances upon notice from the Transportation Department that the same is necessary. Any such person, upon receiving notice in writing from the head of the Transportation Department to repair the defective condition of any such pipes, wires, poles, tracks or other apparatus or appliances, or to remove or replace the same shall, within not more than forty-eight (48) hours thereafter, unless the time limit is extended by the head of the Transportation Department, begin work upon such repair or removal, and shall continue such work to completion.
(Code 1986, § 32-3; Ord. No. 9654, § 110, 1-6-92)

Sec. 32-4. Harmful materials, substances in streets.

No person shall place or cause to be placed or left upon any street in the city any tacks, ashes, bottles, pieces of glass, crockery, nails, barbed wire, wire or any other instrument, material or substance calculated to in any way pierce, puncture or otherwise injure or damage the tire of any vehicle which may be used or operated thereon.
(Code 1986, § 32-4)

Sec. 32-5. Vehicles using sidewalks adjacent to filling stations.

No vehicle shall stand on the sidewalk while being serviced in any gasoline filling station, and no vehicle shall be driven over any portion of the sidewalk not included in the regular driveway of such filling station.
(Code 1986, § 32-5)

Cross reference—Filling stations generally, § 11-156, *et seq.*

Sec. 32-6. Washing vehicles on streets, sidewalks.

It shall be unlawful for any person to wash or cause to be washed any vehicle on any street or sidewalk in the city.
(Code 1986, § 32-6)

Sec. 32-7. Signs, pillars, posts, columns on sidewalks.

It shall be unlawful for any person to erect any sign, pillar, post or column upon any sidewalk in the city without a permit from the Transportation Department. Except as provided in article X of this chapter, no such permit shall be issued for any sign, pillar, post or column to be erected on the curb or anywhere on the pavement of a sidewalk.
(Code 1986, § 32-7; Ord. No. 12823, § 1, 3-25-14)

Sec. 32-8. Projections over sidewalks.

(a) No person shall erect any awning, gallery or other projection from a building over any sidewalk in the city without a permit so to do from the Transportation Department. No permit shall be issued for any stationary awning or other projection that is immovable, except cornicing; provided that, any hospital or funeral home in the city may be issued a permit to erect stationary awnings over the sidewalk in front of such establishment if the posts or columns supporting such stationary awnings are more than nine (9) feet in height; and provided, further, that, movable drop awnings attached to buildings may extend over the sidewalk, but not nearer than eighteen (18) inches to the curb line, and when let down to their full extent they shall not be less than eight (8) feet above the sidewalk at all points.

(b) Applications for permits for projections over sidewalks, as authorized by this section, shall be submitted to the Transportation Department and receive its recommendation before issuing such permit.
(Code 1986, § 32-8; Ord. No. 12823, § 1, 3-25-14; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-9. Nonconforming permits, encroachments and projections.

Any permit issued by the Transportation Department which is not in accordance with the provisions of sections 32-7 and 32-8 shall be void, and any sign, pillar, post or projection erected under a void permit, that does not meet the requirements of such section shall be removed on order of the city judge.
(Code 1986, § 32-9)

Sec. 32-10. Supervision of trees and shrubs; cutting, trimming, removal.

The municipal forester shall have charge of and general supervision over all shade and ornamental trees and all shrubs on the streets and sidewalks of the city. No such trees or shrubs shall be cut, pruned or trimmed except on order of the municipal forester and under his supervision. The municipal forester may remove or cut and trim the boughs and branches of all trees and shrubs growing on or overhanging the streets and sidewalks, when necessary, in his judgment, to permit the free and unimpeded passage of traffic thereon.
(Code 1986, § 32-10; Ord. No. 9654, § 125, 1-6-92)

Cross reference—Beautification generally, Ch. 9.

Sec. 32-11. Injuring trees, shrubs, plants.

It shall be unlawful for any unauthorized person to remove, destroy or mutilate any tree, shrub, fern, plant or flower on any street, grassplot or public square in the city.
(Code 1986, § 32-11)

Sec. 32-12. Parking, driving on area between sidewalk and curb.

It shall be unlawful for any person to drive or park on any sidewalk or curb or on any landscape area between the sidewalk and curb on any street in the city.
(Code 1986, § 32-12; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-13. License to make excavations, build or repair sidewalks, occupy streets or sidewalks—Required.

No permit shall be issued authorizing any person to build or repair any sidewalk, or to make openings or excavations in any street or sidewalk, or to occupy any part of any street or sidewalk in connection with building operations, except upon condition that the work shall be done by a person holding a Contractors license from the State of Tennessee (in a classification in accordance with their project scope and monetary limits) of BC, BC-A, BC-B, BC-C, MU, MU-B, CMC, CMC-A, CMC-C, CMC-D, or a City of Chattanooga Plumbing License, or an appropriate TDOT Prequalification; provided that, such a permit may be issued to a contractor without one of the above Contractors licenses if the City Transportation Engineer is furnished satisfactory evidence that the proposed work will be properly and carefully done and the applicant for such permit gives bond in the penalty of not less than twenty-five thousand dollars ($25,000.00), of like tenor with the bond required in Section 32-15 of this Code of applicants for a license. (Code 1986, § 32-13; Ord. No. 12736, § 4, 7-2-13; Ord. No. 14094, § 1, 3-12-24)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 32-14. Reserved.

Editor's note—Ord. No. 14094, § 2, adopted March 12, 2024, repealed § 32-14, which pertained to Same—Issuance; conditions; revocation and derived from Ord. No. 9654, § 110, adopted Jan. 6, 1992; Ord. No. 12736, § 4, adopted July 2, 2013.

Sec. 32-15. Same—Bond required of licensee.

No permit shall be issued under Section 32-13 until the applicant has entered into an annual bond payable to the city in the penalty of twenty-five thousand dollars ($25,000.00), conditioned to restore any street or sidewalk in which any such work shall be done to the state in which it was before such work was done, and also conditioned to indemnify and save harmless the city for any liability to any person for damages occasioned by or resulting from any such work done by or under the direction of the licensee. (Code 1986, § 32-15; Ord. No. 14094, § 3, 3-12-24)

Sec. 32-16. Definitions.

Building Official — The person who is authorized to make or require inspections of any construction work to ascertain compliance with the provisions of the adopted building codes and other laws that are enforced by the Land Development Office.

City Traffic Engineer — The person overseeing the installation and proper maintenance of traffic control devices, signage and pavement markings for the Transportation Department.

City Transportation Engineer — The person serving to coordinate transportation design, review, standards, and project implementation for the Transportation Department.

City Engineer — The person serving to coordinate utility and stormwater design, review, standards, and project implementation for the Public Works Department.

City Inspector — A person employed by the City to physically inspect any excavation for conformity with the permit and other provisions of this Article.

Emergency — A sudden or unexpected occurrence or condition calling for immediate action. The repair of a broken or malfunctioning utility line or services shall be deemed an emergency if a repair is reasonably warranted under existing circumstances prior to the next working day.

Excavation — Any excavation or tunneling of any public street right-of-way including, but not limited to, excavation in, cutting of, or tunneling of any street, sidewalk or curb for purposes of constructing or maintaining pipes, lines, driveways, private streets, poles, guy wires, signs, or other utilities, private structures, or facilities.

Street segment — The roadway length defined by the City's micropaver software for a subset of an entire street. Roads may have one (1) or more street segments, averaging six hundred (600) feet long.

Work — Any excavation or tunneling of any Right-of Way, as defined under Chattanooga City Code Section 32-231, as amended, or City property, including but not limited to excavation in, cutting of, or tunneling of any street, sidewalk, or curb for purposes of constructing or maintaining pipes, lines, driveways, private streets, poles, guy wires, signs, or other utilities, or private structures for erecting public access, within Rights-of-Way, public property, or publicly owned buildings.

Work zone — Any area within which the general public does not have full access for a temporary period of time because of Work or other related construction activities.

Working Day — Any day when City offices are open for the transaction of normal business.
(Ord. No. 12337, 1-5-10; Ord. No. 12824, § 1, 3-15-14; Ord. No. 13267, § 2, 1-30-18)

Secs. 32-17—32-30. Reserved.

ARTICLE II. OBSTRUCTIONS

Sec. 32-31. Use of streets for carnivals, fairs, exhibitions.

It shall be unlawful for any person who operates or gives an exhibition, fair or carnival of any kind to occupy any portion of any street in the city, unless with the consent of the city council. It shall be unlawful for any person to exhibit any tricks of legerdemain or other devices of like kind or to give any similar performances upon any streets or public squares.
(Code 1986, § 32-31; Ord. No. 9654, § 2, 1-6-92)

Cross reference—Amusements generally, Ch. 6.

Sec. 32-32. Boxes, barrels, merchandise, other articles.

It shall be unlawful for any person to obstruct the streets or sidewalks with boxes, barrels, machinery, agricultural implements, etc., except when receiving and forwarding goods, wares and merchandise, and then only for a reasonable time.
(Code 1986, § 32-32)

Sec. 32-33. News vendors' stands.

Persons selling newspapers and periodicals exclusively from movable outfits may be permitted to maintain stands in the streets at such places, to be designated by the CDOT, as will not interfere with traffic and as will promote the convenience of the public.
(Code 1986, § 32-33; Ord. No. 12966, § 4, 6-30-15)

Cross reference—Sidewalk vendors generally, § 11-371, *et seq.*

Sec. 32-34. Obstructions to visibility at intersections.

It shall be unlawful for the owner or occupant of any lot at any street intersection in the city to maintain any hedge, fence, shrubbery or other obstruction more than three (3) feet in height for a distance of twenty-five (25) feet back from the curb line or edge of pavement if there is no curb at such street

intersection or at such distance required by the Transportation Department using adopted street design standards, and any owner or occupant of a lot at such an intersection having a fence, hedge, shrubbery or other obstruction more than three (3) feet in height shall remove the same or reduce the height thereof to not more than three (3) feet for a distance of twenty-five (25) feet back from the curb line or edge of pavement if there is no curb or at such distance required by the Transportation Department using adopted street design standards; provided that, the provisions of this section shall not apply to or affect buildings constructed on lots at street intersections.
(Code 1986, § 32-34; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-35. Leaving wood, lumber on sidewalks.

It shall be unlawful for any person to throw and leave, or permit to be thrown and left, for more than an hour, wood or lumber of any kind on any sidewalk in the city.
(Code 1986, § 32-35)

Sec. 32-36. Dumping earth, building debris on streets.

It shall be unlawful for any person to dump or deposit upon any paved street in the city, or cause the same to be done, any earth, mortar or builders' rubbish of any kind intended to be conveyed from the street, until means of transportation have been procured for the removal of the same, and in no case shall it be allowed to remain upon the pavement for a longer period than five (5) hours.
(Code 1986, § 32-36)

Sec. 32-37. Building materials on streets.

(a) The portion of any street in the city which may be occupied by the material necessary for a building in course of construction, alteration or repair shall not exceed the dimensions of the front of the premises being built upon, and twelve and one-half (12½) feet in addition on each side and shall not exceed one-third (⅓) of the street in breadth. Such occupation of a street shall not be prolonged beyond the duration stipulated in the permit to occupy the street. All brick shall be properly stacked when deposited in the street and sufficient way shall be left unencumbered at all times between such building material and the curbstone on the side of the street opposite the building for the passage of vehicles.

(b) No material shall be placed within ten (10) feet of the track of any railroad or of any fire cistern, fireplug, pump or manhole for any sewer or conduit system or crossing, or within twelve (12) inches of any curbstone unless provision is made for the free passage of water in the gutters. A sufficient unobstructed passageway for traffic shall be maintained at all times along the street. Where it is possible so to do, as soon as any building is up to the sidewalk grade the sidewalk shall immediately be constructed and a sufficient passageway kept open at all times over the same.

(c) If existing pedestrian facilities are disrupted, closed, or relocated due to work in a construction zone, a temporary alternate route shall be provided that is detectable to and accessible by persons with disabilities.
(Code 1986, § 32-37; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-38. Protection of streets, sidewalks on which deposits made.

Any person, before depositing upon the paving of any street or sidewalk any earth, mortar or other material calculated to injure the structure or appearance of the pavement in any way, shall first lay upon the pavement such covering as may be required by the Transportation Department, of such dimensions as may be necessary to protect the surface without unnecessarily blocking the roadway or otherwise interfering with traffic.
(Code 1986, § 32-38; Ord. No. 12823, § 1, 3-25-14)

Sec. 32-39. To be lighted at night.

(a) It shall be unlawful for any person to place or leave material or obstruction of any kind on the streets or sidewalks of the city at night without placing thereon a sufficient number of red lights or flares to warn all persons before reaching such obstruction that there is danger and that the street is obstructed.

(b) This section shall be construed to apply to all kinds and types of materials for constructing buildings and other structures, railroads and tracks and to rails, boxes, poles, wires, bricks, mortar, plank, sand and any other thing that prevents the street or sidewalk from being clear and free from obstructions.

(c) All persons so obstructing the street or sidewalk, including any contractor or his employee in charge of the obstruction shall see to it that this section is fully complied with, and that such red lights or flares are placed on such obstruction at twilight each night and kept burning until daylight.
(Code 1986, § 32-39)

Sec. 32-40. Liability for failure to light.

When any person neglects to comply with section 32-39 and an accident results by reason of such negligence causing damage, the person whose negligence caused the accident shall be held responsible therefor, and if the city is required to pay out any money as damages therefor, the city attorney shall prosecute the offender and bring an action against him to recover any damages that the city may have sustained by reason of his failure to comply.
(Code 1986, § 32-40; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-41. Permit required to obstruct gutter; issuance.

It shall be unlawful for any person to obstruct the gutter of any street in the city by placing therein any timber or other material, or by constructing or placing over such gutter any bridge or covering which may constitute an obstruction thereof, except for temporary use and for a specific period to be set forth in a permit issued therefor by the head of the Transportation Department. The issuance of such permit shall be at the discretion of the head of the Transportation Department, who may impose such restrictions and requirements, as a condition precedent to the issuance of such permit, as the interest of the public may, in his opinion, require.
(Code 1986, § 32-41)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 32-42. Gutter obstruction to be removed when permit expires.

Any person to whom a permit has been issued as provided in section 32-41 shall remove such timber, material, bridge or other covering from within or over such gutter on or before the expiration of the period stated in such permit.
(Code 1986, § 32-42)

Sec. 32-43. Removal of unauthorized gutter obstructions.

The head of the Transportation Department streets and airports may remove, without notice to the person responsible therefor, any unauthorized obstructions referred to in section 32-41 of this Code, or obstructions which may have been left after the expiration of the time limit fixed in the permit therefor.
(Code 1986, § 32-43)

Sec. 32-44. Temporary use permit.

It shall be unlawful for any person to place an obstruction on or over any City right-of-way, property, or dedicated right-of-way on any recorded plat unless such person has obtained a temporary use permit from the City. Applications for such permits shall be made to the Transportation Department along with a non-refundable application fee of One Hundred Ten Dollars ($110.00).
(Ord. No. 11175, § 33, 9-11-01; Ord. No. 12824, § 1, 3-25-14; Ord. No. 13444, § 5, 3-12-19)

Secs. 32-45—32-60. Reserved.

ARTICLE III. EXCAVATIONS AND RESTORATION OF PAVING*

Secs. 32-61. Reserved.
(Ord. No. 12337, 1-5-10; Ord. No. 12824, § 2, 3-25-14; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-62. Permit required.

It shall be unlawful for any person to make any excavation in or to tunnel under any street, curb, alley, other improvement, or right-of-way as defined under Chattanooga City Code Section 32-231, as amended, in the City without first having obtained a street cut permit, holding all required licenses to perform the necessary work, and complying with the provisions of this Article. It shall be unlawful to violate or to vary from the terms of any such permit; provided, however, any person maintaining pipes, lines, driveways, or other facilities including private structures for erecting public access in or under the surface of any right-of-way may proceed with an excavation without a permit when emergency circumstances demand the work to be done immediately, and provided further that the person shall apply for a permit on the next working day.
(Ord. No. 12337, 1-5-10; Ord. No. 13267, § 3, 1-30-18; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-63. Applications.

Applications for such permits shall be made to the Land Development Office and shall state thereon the location of the intended excavation or tunnel, the size thereof, the purpose thereof, the name of the person doing the actual excavating, and the name of the person for whom the work is being done. The applicant shall disclose any foreseeable lane or sidewalk closures or detours during excavation. Cuts into roadways that are owned by the State of Tennessee shall be coordinated and permitted with the Tennessee Department of Transportation concurrently with the City street cut permit application. As a condition of issuing a permit, all applicants must agree in writing as part of the application to comply with all ordinances and laws relating to the Work to be done. The Building Official or his designee shall consider each application for a permit filed under this Article, under all facts and circumstances, once all documents are received by the City, shall grant or refuse the permit within ten (10) working days and shall endorse his action on the application. The Building Official shall refer such application to the Transportation Division for review and comment when a professional opinion on the propriety of issuing a permit or conditions to attach thereto is needed. The action of the Building Official in granting or refusing a permit shall be final, except as it may be subject to review at law. A permit may be refused for the following reasons:

(a) The proposed work should be redesigned to mitigate a potential safety hazard;

(b) The proposed work should be redesigned to mitigate damage within the right-of-way;

(c) The proposed work cannot be safely made in the Right-of-Way;

***Cross references—**Plumbing, Ch. 27; encroachments and excavations on state and federal highways, § 32-86, et seq.

(d) The proposed restoration plan does not meet the minimum City standards for restoration;

(e) The applicant has willfully failed to comply with conditions of prior permits issued to the applicant; provided that such disqualification shall be removed upon correction of any such defects; or

(f) For other good cause in the discretion of the Building Official.

(g) A street cut permit is not a substitute for a Land Disturbing Permit and any work within the right-of-way that meets the criteria for obtaining a Land Disturbing Permit shall be required to follow the review and approval processes for obtaining all necessary permits. Similarly, a Land Disturbing Permit and/or a Building Permit does not substitute the need for a Street Cut Permit and/or a Work Zone Permit.

Provided that as to an excavation done in emergency circumstances the application shall be completed on the next working day; and the Building Official shall review the actual work completed for conformity with the requirements hereof.
(Ord. No. 12337, 1-5-10; Ord. No. 12823, § 1, 3-25-14; Ord. No. 13267, § 3, 1-30-18; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-64. Application fee.

Each application shall be accompanied by a fee as follows:

(a) A permit fee of Three Hundred Dollars ($300.00) for all permits shall apply to no more than one cut or Work of the following type:

(1) Transverse cut in the roadway pavement;

(2) Longitudinal cut in the roadway pavement of up to three hundred (300) feet in length;

(3) Within an intersection;

(4) Concrete curb or concrete gutter; or

(5) Concrete sidewalk;

(6) Microtrench within right-of-way;

(7) Installation of additional lane(s) and/or concrete curb and gutter against existing roadway;

(8) Jack and bore beneath City street.

(b) In addition to the fixed permit fee for all permits, applicants are responsible for additional fees as follows:

(1) One Hundred Dollars ($100.00) each for each additional transverse roadway cut in a roadway segment

(2) One Hundred Dollars ($100.00) each for each additional cut in the concrete sidewalk or concrete curb or gutter; and in a block segment; and

(3) One dollar ($1.00) for each additional foot of longitudinal cut in the roadway pavement beyond three hundred (300) feet.

(c) Planned cuts into the street shall be coordinated with the City's annual resurfacing work, a schedule of which is available online at the Public Works website or by calling the Transportation

Division. For non-emergency street cuts, a recovery fee of 30% of the topping material cost to restore the asphalt street segment impacted by street cut shall be assessed to cuts within streets resurfaced within the previous three (3) years based on the following calculation:

(1) Impact areas, sq.ft. = (Street segment length, ft) x (Total width of lanes impacted by street cut, ft)

(2) Impact area, sq.yd = (Impact area, sq.ft) x (1/9)

(3) Asphalt needed for impact area, tons = [(Impact area, sq.yd.) x 165] / 2000

(4) Total Cost Segment Resurfacing = (Current City contract price for topping, $/ton) x (Asphalt needed for impact area, tons)

(5) Recovery Fee amount = 0.30* Total Cost Segment Resurfacing

(d) Written notification of intent to work in a right-of-way must be received at least forty-eight (48) hours prior to beginning work, even if a permit is not required, except in emergencies. E-mail is considered a written notice. All applicants for any permits which require street or sidewalk closure should be submitted with enough written notice to comply with road closure policies administered by the Transportation Division.

(e) Additionally, work zone permits are required for Work that limits public access to the full right-of-way, such as those requiring closure of a street, open public alley, or sidewalk or the temporary use of a curb-side parking space. Additional work zone permit fees may apply based on impact to the general public. Time is of the essence in completion of the work to restore the right-of-way. Where such work within the right-of-way is required, such that it blocks a lane of traffic, open public alley or sidewalk, for more than one week, then a fee of $100 per day for each lane of traffic, or sidewalk, will be assessed for the work zone permit. The fee is not a penalty, but considered damages suffered by the City for each day of delay in the restoration of the right-of-way. Fees for lengthy projects may be reviewed at the discretion of the City Transportation Engineer.

Traffic control plans in compliance with the MUTCD may be submitted to the City with the application for the work zone permit. If a compliant traffic control plan is not included with the application, a fee of $150 will be assessed for the work zone permit for the City to draw and provide the necessary traffic control plan. The City reserves the right to deny the work zone permit without an included traffic control plan at its discretion.

(f) Permits for relocation or installation of fire hydrants will be required when requested by the City, but no fee (including administrative fees) will be required.

(g) No more than five (5) multiple cuts, each not exceeding twenty-five (25) square feet in area, when required in a single block or within a work zone distance of two hundred fifty (250) feet as part of a single project, are considered as one (1) cut. Permit and fee will be required for a single cut under these conditions. Pavement restoration extents shall be completed as shown on the published City Standard Drawings available on the Public Works website. If the cut exceeds two hundred fifty (250) feet, or multiple cuts within a block or a work zone greater than two hundred fifty (250) feet, or the number of cuts within two hundred fifty (250) exceeds five (5), then all lanes that are disturbed by construction shall be repaved from intersection to intersection.

(1) Cuts within any intersection of a City street requires repavement of the entire intersection including marked crosswalks. For stamped or concrete crosswalks, replacement of the crosswalk is not required unless the cut includes the pavement of the crosswalk itself.

(2) Any cut that includes a concrete ADA curb ramp requires full replacement of the ramp in compliance with current laws and codes.

(h) Neither permits nor fees will be required when work in the right-of-way is conducted as part of a City street improvement project, including resurfacing, where the utility is required to move their facilities as a result of the City project.

(i) Except as otherwise stated in this Chapter, fees shall not be waived under any other conditions.

(j) When it is determined that non-emergency work in the City right-of-way has proceeded without the purchase of a permit, the contractor or utility shall immediately purchase a street cut permit, and the fee for the permit shall be double the standard fee; and, no further permits shall be issued to the contractor or utility until such time as the improper work is removed and replaced in accordance with this Code.

(k) Where work in the City right-of-way is self-performed by one (1) of the following entities, or by one (1) of the entity's approved contractors, the fee for each permit shall be invoiced monthly:

(1) Electric Power Board of Chattanooga;

(2) Tennessee-American Water Company;

(3) Chattanooga Gas Company;

(4) AT&T;

(5) Comcast Cable Company;

(6) Hixson Utility District; and

(7) Eastside Utility District.

(l) Fees set forth within this Section may be revised by the City in connection with the annual budget adopted each fiscal year.

(Ord. No. 12337, 1-5-10; Ord. No. 12824, § 1, 3-25-14; Ord. No. 13267, § 3, 1-30-18; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-65. Manner of excavating; barricades and lights.

Any person making any excavation shall do so according to the specifications and standards issued by the Transportation Division. In accordance with the Manual on Uniform Traffic Control Devices (MUTCD), sufficient and proper barricades, lights and other traffic control devices shall be maintained to prevent accidents and injury to persons or property. If any sidewalk is blocked, a temporary sidewalk shall be provided which shall be safe for travel and accessible for all users. No work installing or maintaining such safety measures and/or temporary sidewalks shall be done which deviates from the approved plans and until a change of plans has been secured in writing from the Building Official. All expenses of such safety measures and temporary sidewalk shall be borne by the applicant or owner.

Traffic control plans in compliance with the MUTCD may be submitted to the City with the application for the work zone permit. See the previous section (32-64) concerning fees for traffic control plans and work zone permits.

Where difficult or potentially hazardous conditions exist, the permittee shall provide competent flaggers to effect a safe and orderly movement of traffic. Where insufficient traffic lanes exist because of street openings, adequate bridging shall be supplied and maintained by the permittee. When traffic congestion occurs in spite of all precautions, the permittee shall be responsible for providing a flagger. In the event the Building Official or Transportation Division shall discover any hazardous or unwarranted

traffic congestion where flaggers have not been provided, it shall direct the permittee to immediately post flaggers. A failure to post flaggers following a directive shall be a violation of this Article, and shall subject the permittee to penalties and/or rescission of the permit
(Ord. No. 12337, 1-5-10; Ord. No. 12823, § 1, 3-25-14; Ord. No. 12824, § 1, 3-25-14; Ord. No. 13267, § 3, 1-30-18; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-66. Bond required.

When permits are required to excavate or in any way obstruct any street in the City, the Building Official shall require from such applicant, before granting a permit, a bond with good and sufficient sureties, conditioned to secure the City against all loss, damage or injury of any kind which may result to the City by reason of such excavation or obstruction; provided, that persons engaged in the business of contracting shall be allowed to give an annual bond, instead of a bond for each obstruction such annual bond in every instance to be renewed at least once every twelve (12) months.
(Ord. No. 12337, 1-5-10; Ord. No. 13267, § 3, 1-30-18; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-67. Manner of excavating street.

(a) The street cut permit number provided by the City with an approved street cut permit shall be marked and maintained at each street cut site in white marking paint or sign posting adjacent to the limits of the street cut so that inspectors can readily identify the permit number when arriving on site for inspections.

(b) In excavating any street, all material for paving or ballasting must be removed with the least possible injury or loss of the same, and together with the excavated materials from the trenches, must be placed where they will cause the least possible inconvenience to the public. All pavement where trench excavations are to be made shall be saw cut. All edges shall be made clean and square. No other method of demolition is acceptable.

(c) The permittee shall carry on the Work as authorized by the permit in such manner as to cause a minimum interference with traffic. The permittee shall provide adequate warning signs and devices to warn and guide traffic, and shall place the signs and warning devices in a position of maximum effectiveness. The latest editions of the Manual on Uniform Traffic Control Devices, copies of which are on file in the Transportation Division Office, and are generally available online, may be used as a guideline for proper positioning of signs and devices.

(d) Any steel plate(s) placed within lanes of traffic shall be clearly labeled with the name of the owner of the plate and a 24-emergency contact phone number and shall respond to the site within 2 hours of notification from a City official.

(e) On main thoroughfares and in congested districts, sufficient traffic lanes shall be kept open at all times to permit substantially normal traffic flow. However, if this requirement is not possible, then Work shall be done only during the period between 9:00 a.m. and 4:00 p.m. or between 7:00 p.m. and 6:00 a.m., as the Transportation Division may designate.

(f) For backfill in roadway areas;

(1) No material excavated from the streetcut shall be returned to the trench.

(2) The contractor shall provide six (6) inches of graded aggregate base above the utility's main line top of pipe.

(3) From top of graded aggregate base backfill to within four (4) feet of the street surface, the contractor shall provide fine aggregate (crushed limestone dust no larger than one-sixteenth (1/16)

inch.) Each eight (8) inch lift of the fine aggregate base shall be moistened and compacted by means of a mechanical tamp. Flowable fill that meets the specifications below may be used in lieu of fine aggregate.

(4) The contractor shall complete the backfill up to the bottom of the paving with flowable fill with a compressive strength of two hundred (200) to two hundred fifty (250) psi in forty-eight (48) hours.

(5) Flowable fill shall be placed a minimum of forty-eight (48) hours prior to the placing of the asphalt or concrete topping.

(6) Steel plate(s) shall be pinned in place in the roadway and shall not stay in the roadway longer than 5 days from the placement of the flowable fill.

(7) Flowable fill surface shall not be exposed to traffic following removal of steel plate(s). If final resurfacing work of the street cut cannot be immediately executed following removal of the steel plate, an interim asphalt material (hot mix asphalt or cold patch mix) shall be placed neatly and cleanly on top of the flowable fill until final milling and resurfacing can be performed. This interim measure is allowed to remain in place no longer than 90 days from placement of flowable fill.

(8) Where it is impractical to use flowable fill because of terrain, slope, width of trench, or other situations, the material for the backfill in the roadway areas may be approved for cement treated aggregate base, placed in eight (8) inch thick layers, at the sole discretion of the Division of Transportation. Each eight (8) inch layer of backfill shall be thoroughly compacted by means of a mechanical tamp.

(g) Backfill for trenches within the sidewalk areas shall be compacted graded aggregate base instead of loose washed stone. Each eight (8) inch layer of graded aggregate base shall be thoroughly compacted by means of mechanical tamp.

(h) Any perpendicular cut in a roadway must be repaved no less than the full width of the travel lane(s) to the existing longitudinal joint that it cuts, and a minimum of ten (10) feet on each side of the centerline of the excavation. Any longitudinal cut must be repaved no less than the full width of the travel lane(s) that it cuts extended no less than ten (10) feet beyond the beginning and end of the cuts being made.

(i) The proposed restoration plan shall require that permanent repairs or restoration of street cuts shall be made to match existing surfaces.

(j) Surface elevation of the permanent repair shall not vary more than one-quarter (¼) inch for asphalt roadways or one-eighth (⅛) inch for concrete roadways when checked with a straight edge ten (10) feet long to ensure smooth surface across street cut restoration and existing roadway surface.
(Ord. No. 12337, 1-5-10; Ord. No. 12391, 4-27-10; Ord. No. 12823, § 1, 3-25-14; Ord. No. 12824, § 1, 3-25-14; Ord. No. 13267, § 3, 1-30-18; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-68. Liability and responsibility for repair.

(a) Subject to the provisions set forth within this Section, any person who shall properly make any excavation or other change to the right-of-way, and shall have same inspected by the Building Official or his designee, shall be relieved from any liability for any defects due to inadequate workmanship or defective materials provided the excavation shall remain free from defects for three (3) years following installation.

(b) Said repaving specified in this Section shall be completed to the standards approved by the Transportation Division and shall be performed under the supervision and control and at the direction of the City. The contractor, utility, or other entity shall bear the entire cost of such repaving. The contractor,

utility or other entity shall be prohibited from acquiring any permits for additional excavations in any City right-of-way until such time as the repaving required by this street segment section is completed and approved by the Transportation Division.

(c) If a contractor, utility, or other entity damages any traffic control device, then said contractor, utility, or other entity shall immediately replace the device(s) per the standard of the Transportation Division. Damaged signal detection loops or sensors shall be replaced including connection to the signal cabinet with oversight by the Intelligent Cities Division of the Department of technology Services. Damaged pavement markings (stop bar, crosswalk, lane line, turn arrow, bike symbol, colored pavement, or other) shall be replaced in ninety (90) mil thermoplastic.
(Ord. No. 12337, 1-5-10; Ord. No. 12823, § 1, 3-25-14; Ord. No. 12824, § 1, 3-25-14; Ord. No. 13267, § 3, 1-30-18; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-69. Inspection.

It shall be the responsibility of any person granted a permit to schedule, with a minimum of forty-eight (48) hours notice, an inspection of the permitted work by the City's Inspector upon such conditions as may be specified in the permit. Said work may not commence until the City's inspector arrives at the site or otherwise gives permission to proceed. The utility or contractor making any changes to a City right-of-way, shall, at a minimum, have the following inspections performed by the City's Inspector:

(a) After the repairs or installation of the new conduit or piping and before the graded aggregate base fill over the pipe has been placed;

(b) During the placement of the flowable fill or other approved fill in the sole discretion of the Transportation Division; and

(c) Final completion.

(d) Three months prior to the end of the three (3) year warranty period.

(e) Should inspections be required after normal working hours or on weekends, the contractor or utility making the changes to the City right-of-way, shall reimburse the City for the inspector's time at a rate to be determined in accordance with the personnel policies in effect at the time the repairs are performed.

When it is determined that improper work has been performed in the City's right of way, the contractor or utility responsible for the work shall remove improper work and reinstall the work in accordance with the City Standards. If a permit was not obtained, the contractor or utility shall purchase a permit and the fee shall be double the normal fee. No future permits will be issued to the violating contractor or utility until the improper work has been corrected.
(Ord. No. 12337, 1-5-10; Ord. No. 12823, § 1, 3-25-14; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-70. Specification.

Upon issuance of each permit, the Building Official shall specify minimum restoration standards applicable to the permit. The Transportation Division shall prepare and provide standard specifications for routine circumstances, which may be specifically referenced in the permit. Provided that where the work involved is greater in scope than provided for by standard specifications as determined by the Land Development Office or Transportation Division , the permittee shall be required to submit suitable plans of installation and street restoration for approval prior to issuance of a permit.
(Ord. No. 12337, 1-5-10; Ord. No. 12823, § 1, 3-25-14; Ord. No. 12824, § 1, 3-25-14; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-71. Insurance.

Each person applying for a permit shall file a certificate of insurance (or provide other proof in form and substance to be approved by the City Attorney) indicating that he is insured, or the applicant shall provide an indemnity agreement with security satisfactory to the City Attorney, against claims of personal injury or property damage which may arise from or out of the performance of the work, whether such performance be by the applicant, a contractor or subcontractor, or anyone employed by him. Such insurance or indemnity agreement shall cover collapse, explosive hazards, and underground work by equipment on the street, and shall include protection against liability arising from completed operations. The minimum amount of the liability insurance for bodily injury shall not be in an amount less than three hundred thousand ($300,000.00) for each person and seven hundred thousand dollars ($700,000.00) for each accident and for property damages in an amount not less than one hundred thousand dollars ($100,000.00), unless other limits are established by the Tennessee Governmental Tort Liability Act.
(Ord. No. 12337, 1-5-10; Ord. No. 14092, § 1, 3-12-24)

Sec. 32-72. Supervision.

The Building Official, or his designee, shall from time to time inspect all excavations and see to the enforcement of the provisions of this ordinance. The permittee shall give notice to the Building Official, or his designee, before refilling any such excavation or tunnel and said work may not commence until the Inspector arrives at the site or otherwise gives permission to proceed.
(Ord. No. 12337, 1-5-10; Ord. No. 14092, § 1, 3-12-24)

Secs. 32-73—32-85. Reserved.

ARTICLE IV. ENCROACHMENTS AND EXCAVATIONS ON STATE AND FEDERAL HIGHWAYS

Sec. 32-86. Permit required for encroachments; approval.

It shall be unlawful for any person to erect or maintain any utility facility or other encroachment upon, over, or under any street or sidewalk in the city which has been, or may hereafter be constructed, extended or widened where the cost and expense of acquiring the rights-of-way therefor and improvement thereof is paid, in whole or in part, by the state department of transportation and the appropriate federal department or agency without first filing an application for and obtaining a permit from the Transportation Department, which application shall be accompanied by the written approval of the state department of transportation for the erection of such utility facility or encroachment.
(Code 1986, § 32-86; Ord. No. 12823, § 1, 3-25-14)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 32-87. Removal of violating encroachments.

When the building inspector learns of any utility facility or encroachment on, over, or under any street or sidewalk as defined in section 32-86 hereof, he shall give written notice to the owner or occupant of the premises maintaining such utility facility or encroachment to remove same within ten (10) days, and if such owner or occupant refuses or fails to comply with such notice within the time specified he shall be deemed guilty of the violation of the provisions of this Code.
(Code 1986, § 32-87)

Sec. 32-88. Permit required for excavations; approval.

It shall be unlawful for any person to make any excavation or cut in the pavements, curbs, gutters or sidewalks of any street or highway within the city which has been, or may hereafter be, constructed, extended, or widened, the cost of which is paid, in whole or in part, by the state department of transportation and the appropriate federal department or agency, without first filing an application for and obtaining a permit from the Transportation Department, which application shall be accompanied by the written permission of the state department of transportation for the making of the proposed excavation or cut.

(Code 1986, § 32-88; Ord. No. 12823, § 1, 3-25-14)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Secs. 32-89—32-100. Reserved.

ARTICLE V. CURB AND SIDEWALK CONSTRUCTION AND MAINTENANCE

Sec. 32-101. Abutting owners, occupants to keep sidewalks clean and unobstructed.

Every owner or occupant of property in the city, in front of or along which there is a sidewalk, shall keep such sidewalk clean and unobstructed, except for such obstructions as are permitted by this Code or other city ordinances. Each such owner or occupant shall cause the removal at once of all accumulations of mud, filth, snow and ice and every other substance or thing which may constitute an obstruction or impediment to pedestrians, and every thing in the nature of a nuisance.

(Code 1986, § 32-101)

Sec. 32-102. Duty of abutting owners, occupants to construct.

Every owner or occupant of or agent for any lot of property abutting or adjacent to a street shall cause a sidewalk and curb to be constructed along the whole of such lot when required by notice, as provided in this article.
(Code 1986, § 32-102)

Sec. 32-103. When owner, occupant to construct or repair sidewalk.

When any street has been brought to an established or adopted grade, or when any sidewalk becomes out of repair or in any manner defective, whether in the bed or pavement or curbing thereof, or if such sidewalk does not conform to the provisions of the specifications of the city therefor, the owner, occupant or agent shall cause such sidewalk to be constructed, reconstructed or put in good repair according to such specifications.
(Code 1986, § 32-103)

Sec. 32-104. Specifications for construction and repair; permit required.

The type of new sidewalk to be laid or repairs to existing sidewalks shall be such as may be prescribed and approved by the Transportation Department. The owner, occupant or agent in charge of the property where such work is to be done shall apply to the Transportation Department for specifications and instructions setting forth the manner in which the work shall be performed and a permit authorizing such work, and in doing such work shall conform to such specifications and instructions.
(Code 1986, § 32-104; Ord. No. 9654, § 126, 1-6-92; Ord. No. 12823, § 1, 3-25-14)

Case law annotation—The ordinance from which this section is derived was designed to furnish the city a means of discharging its duty to keep the sidewalk in repair through appropriate action under the ordinance against the offending abutting property owner. The property owner would not be liable to a person sustaining injury as a result of the city's omission safely to maintain the sidewalk. Harbin v. Smith, 168 Tenn. (4 Beeler) 112, 76 S.W. 2d 107 (1934).

Sec. 32-105. Failure to construct or repair; notice authorized.

If the owner, occupant or agent fails or refuses to construct, reconstruct or repair any required sidewalk or curbing, the Transportation Department may cause the same to be done at the expense of the property owner.
(Code 1986, § 32-105; Ord. No. 12823, § 1, 3-25-14; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-106. Notice where owner unavailable, no agent and property deserted.

If the owner is a nonresident, unknown or cannot be located and there is no known agent therefor and the property is not occupied, the notice provided for in section 32-105 shall be posted for at least five (5) days on such lot or property.
(Code 1986, § 32-106)

Sec. 32-107. Failure to comply with notice.

Failure or refusal by the owner, or the occupant or agent, if the owner cannot be notified, to commence such necessary work within ten (10) days of receipt or posting of a notice as provided for in section 32-105 shall be unlawful, and each day thereafter shall constitute a separate violation.
(Code 1986, § 32-107)

Sec. 32-108. Failure to complete work.

Failure or refusal to complete work as required by the notice provided for in section 32-105 of this Code according to specifications and instructions, after it has once been commenced, shall be unlawful.
(Code 1986, § 32-108)

Sec. 32-109. Liability of abutting owner for injuries to persons.

In all instances of injury to persons resulting from the absence of any sidewalk or the negligently unsafe and defective condition thereof, the construction of which, or the repair of which, the abutting property owner, or his agent, has been notified to effectuate in the manner provided in this article, more than five (5) days before the happening of such injury, the abutting property owner shall be liable in damages.
(Code 1986, § 32-109)

Sec. 32-110. Action over by city for judgments against it.

If any judgment is obtained against the city as a result of the absence of any sidewalk or the negligently defective condition thereof, owing to personal injuries received by any person more than five (5) days after the service of a notice as provided in section 32-105 of this Code, the city attorney shall institute proper legal proceedings against such property owner for the recovery over of the amount of any such judgment.
(Code 1986, § 32-110)

Secs. 32-111—32-125. Reserved.

ARTICLE VI. SIDEWALK OPENINGS AND GRATINGS

Sec. 32-126. Open gratings prohibited.

All gratings or openings of any type in sidewalks through which filth, water or expectoration may fall or be thrown, are declared to be a nuisance, and are prohibited.
(Code 1986, § 32-126)

Sec. 32-127. Gratings and openings for which permits may be issued.

No permit shall issue for placing any grating or opening in any sidewalk except upon condition that such opening shall be covered with a solid surface which will prevent filth, water or expectoration from falling or being thrown through it. This section shall not be construed so as to prohibit the installation of underground vaults or chambers in connection with the operation of underground electric systems, which may require ventilation for the equipment to be placed therein, if the grating or other covering to be placed over such electric vault is of a type as is standard for such purposes.
(Code 1986, § 32-127)

Sec. 32-128. Construction requirements for use of space under sidewalk.

In the use of space under any sidewalk a sufficient retaining wall to sustain the roadway or street shall be constructed, and all end and division walls shall extend from the wall of the building to the curb line, and be of sufficient strength to sustain the sidewalk or roadway. The sidewalk in such cases shall be entirely of incombustible material. All openings in such sidewalk shall be covered with illuminating tile in iron frames, or with iron covers with rough surfaces. No plain surface of glass greater than six (6) inches square shall be allowed in any sidewalk.
(Code 1986, § 32-128)

Sec. 32-129. Leaving sidewalk openings uncovered or out of repair.

It shall be unlawful for any person to leave open any cellar or vault door or grating on any sidewalk in front of premises in the city or to allow any such structure to become or continue so defective as to endanger life or limb.
(Code 1986, § 32-129)

Secs. 32-130—32-145. Reserved.

ARTICLE VII. DRIVEWAYS AND CURB CUTS

Sec. 32-146. Permits required.

No person shall construct a driveway across any sidewalk or cut or drop any curb within the city without first obtaining a permit from the Land Development Office.
(Code 1986, § 32-146; Ord. No. 12824, § 1, 3-25-14)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 32-147. Location approval prerequisite to building permit.

The location of all curb cuts, points of ingress and egress from all streets, parking and loading areas for all uses shall be approved by the Transportation Department before a building permit shall be issued.
(Code 1986, § 32-147; Ord. No. 12823, § 1, 3-25-14)

Sec. 32-148. Plot plan required.

All applications for permits required by this article shall include a plot plan, drawn to scale and fully dimensioned, showing the location and design of all curb cuts, points of ingress and egress and parking and loading facilities.
(Code 1986, § 32-148)

Sec. 32-149. When permits not to issue.

Permits shall not be issued for any curb cut for the purpose of ingress or egress from any through street as designated by section 24-207 and section 24-501 of this Code unless the applicant shall provide adequate space and proper driveways or other such facilities for a vehicle to be turned around totally within the property to be served by the curb cut so that it will not be necessary to either back the vehicle onto the property for purposes of parking, loading or unloading, or to back a vehicle from the property into the public street; provided that, this restriction shall not apply to property used for single-family or two-family dwellings.
(Code 1986, § 32-149; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-150. Maximum width.

The maximum width of any driveway or curb cut shall not exceed forty (40) feet from face to face of curb.
(Code 1986, § 32-150; Ord. No. 12824, § 1, 3-25-14)

Sec. 32-151. Safety aisle between driveways.

Where there are two (2) or more driveways, there shall be a safety aisle between each of not less than ten (10) feet in length and built up to the normal curb grade.
(Code 1986, § 32-151)

Sec. 32-152. Curbs and gutters required.

(a) All new construction or alteration of curb cuts, points of ingress and egress from all streets, parking and loading areas for all uses except single and two (2) family residences shall be required to construct curbs and gutters.

(b) Where the existing grade is not that of the permanent street grade, temporary delineation may be used in lieu of curb and gutter. This construction shall be composed of grass plots and chain fences or other temporary construction as approved by the Transportation Department. When permanent grades are established curbs and gutters will be installed by the property owners.
(Code 1986, § 32-152; Ord. No. 12823, § 1, 3-25-14)

Secs. 32-153—32-165. Reserved.

ARTICLE VIII. ADDRESS NUMBERING SYSTEM

Sec. 32-166. System established.

An address numbering system of the city shall be developed by the City Engineer and the Hamilton County GIS Office in conformity with the provisions of this article. It is the intent of this section to develop uniform address numbering for all locations within the City of Chattanooga in order to facilitate finding address locations in the event the need for emergency services occurs; and to assist police, fire and other City employees to provide necessary services to all citizens of the City of Chattanooga whenever such services are needed.
(Code 1986, § 32-166; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08; Ord. No. 12966, § 4, 6-30-15; Ord. No. 13000, § 1, 11-10-15)

Sec. 32-167. Division of blocks into numbering spaces.

Every city block shall be measured for the purpose of address numbering into frontage and spaces. Such measurement shall be made under the direction of the City Engineer and the Hamilton County GIS Office.
(Code 1986, § 32-167; Ord. No. 10600, § 1, 8-5-97; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08; Ord. No. 12966, § 4, 6-30-15; Ord. No. 13000, § 1, 11-10-15)

Sec. 32-168. Base lines.

For the purpose of ascertaining street numbers, the frontage of all streets in the city shall be measured by a uniform method from common base lines. The currently established baselines are as follows:

2.4.1. Eastern brow (top cliff line) of Lookout Mountain; generally coincides with the city limits of the City of Lookout Mountain, Tennessee.

2.4.2. Scenic Highway from the Georgia State Line to its intersection at Cummings Highway to the western Hamilton County Line.

2.4.3. McCallie Avenue and its continuation as Brainerd Road from Holtzclaw Avenue to its end at Lee Highway, then along East Brainerd Road to the Western & Atlantic Railroad crossing.

2.4.4. Dayton Boulevard, and its continuation as Dayton Pike, from Stringer's Ridge Tunnel to the northern county line.

2.4.5. North Market Street from the Tennessee River bridge to the northern end of North Market Street and its projection to Matlock Street.

2.4.6. Central Avenue and its projection from the Georgia-Tennessee state line north to the CSX Railway crossing, then west along the railroad to Alton Park Boulevard (near 33rd Street), then north along Alton Park Boulevard to Market Street, then north along Market Street to the Tennessee River bridge.

2.4.7. Tennessee River east and west of Market Street Bridge.
(Code 1986, § 32-168; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08)

Sec. 32-169. Numbering streets not terminating on base lines.

All streets not terminating upon the base lines specified in the preceding section shall be numbered in the same manner as contiguous streets, beginning at the northern termination of the street, if running north and south, and at the eastern termination if running east and west and lying west of Market or Cowart Streets, and at the western termination if lying east of such streets.
(Code 1986, § 32-169; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08)

Sec. 32-170. Odd and even numbers.

On streets running north and south the odd numbers shall be assigned to the western side and the even numbers to the eastern side. On streets running east and west the odd numbers shall be assigned to the northern side and the even numbers to the southern side on all streets running in regular sequence from the point in each block nearest the base line.
(Code 1986, § 32-170; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08)

Sec. 32-171. Each block to begin with the first number of its sequence.

If the spaces of any one (1) block are not sufficient to exhaust the series of one hundred (100) numbers thereto belonging, the next block shall nevertheless begin with the first of the succeeding sequence of one hundred (100) numbers, continuing in regular sequence until all the spaces on such block are numbered.
(Code 1986, § 32-171; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08)

Sec. 32-172. Property owner to install correct address number.

(a) Any street number placed on property within the City shall correspond with the number assigned to the street location upon which every structure stands as ascertained and designated by the City Engineer. Any property owner who fails to accurately number a structure in the manner provided by this chapter within thirty (30) days after receiving legal notice so to do from the City Engineer, the Chief Building Official or their respective designees shall be guilty of a violation of this chapter.

(b) The provisions of this subsection shall apply to owners of single-family and two-family residences. Every property owner shall place the address number in a conspicuous position near the front property line of each street address or, if a parcel is not adjacent to a public right-of-way, in a conspicuous place near the primary means of ingress and egress to such address. Whenever possible, address numbers shall be placed on the same side of the primary means of ingress and egress as the main structure on the property. Such address numbers shall be posted (i) on the structure within five (5) feet of the front door, provided that the front door is clearly visible from the street in front of the residence, (ii) on the mailbox of the residence, (iii) on a metal rod in close proximity to the mailbox or to the primary means of ingress and egress to the property, or (iv) directly on the street curb in a uniform manner and color approved by the City Engineer. In no case shall the address numbers be placed more than ten (10) feet from the edge of the street. If there is more than one (1) driveway entrance and the driveway entrances serve different units, the street address and unit designation shall be placed near each such driveway entrance or on the mailbox near each such driveway entrance. Whether posted on the mailbox or on a metal rod, all address numbers shall be not less than two and one-half (2½) inches in height and shall be made of reflective material.

(c) The provisions of this subsection shall apply to owners of multi-family residences other than two-family residences. Any multi-family residential development with a sign or signs designating the name of the development shall have the address numbers placed on all such signs. Any multi-family residential development without a sign designating the name of the development and any multi-family residential development with such a sign or signs with a setback of more than twenty-five (25) feet from the closest edge of the street shall have the address numbers placed in a conspicuous position near the front property line or, if the property is not adjacent to a public right-of-way, in a conspicuous place near each entrance to such property. Such address numbers shall be posted either (i) on each mailbox on the property if the mailbox is directly in front of the unit for which the mailbox is designated or (ii) on a metal rod in close proximity to the mailbox or to the primary means of ingress and egress to the property, but in no case shall the address numbers be placed more than ten (10) feet from the edge of the street. Whether posted on the mailbox or on a metal rod, each number shall be not less than two and one-half (2½) inches in height and shall be made of reflective material. Whenever possible, such address numbers shall be placed on the same side of the primary means of ingress and egress as the main structure or structures on the property. In addition to posting the address numbering as set forth in this subsection, the owner of any multi-family residence shall place address numbering upon each individual unit in the development on or near the front door of each such unit. The owner of any multi-family residence in which the primary means of ingress and egress to the units is into an interior hallway shall also place address numbering upon the building itself on or near the entrance from the outside into the building.

(d) All commercial and manufacturing property within the City shall be posted with address numbering located at the street near the principal entrances for such structures in a manner approved by the City Engineer as provided in § 32-176.

(Code 1986, § 32-172; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08; Ord. No. 12966, § 4, 6-30-15; Ord. No. 13000, § 1, 11-10-15)

Sec. 32-173. When address numbers to be affixed to new buildings.

Each property owner or authorized representative of a property owner shall install the address number upon such building prior to the issuance of a certificate of occupancy by the Building Official.

(Code 1986, § 32-173; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08)

Sec. 32-174. Obliterated, indistinct numbers to be replaced.

Whenever an address number becomes obliterated or indistinct, the property owner of every such building shall procure and place thereon the correct number, within thirty (30) days after receiving written notice to do so from the Building Official, an Inspector of the Department of Neighborhood Services, the Police Chief or the Fire Chief.

(Code 1986, § 32-174; Ord. No. 10847, § 1, 5-4-99; Ord. No. 11345, § 13, 11-12-02; Ord. No. 12127, § 1, 5-20-08)

Sec. 32-175. When address renumbering required.

All owners of buildings on streets or parts of streets, the names or numbers of which have been changed shall, within thirty (30) days of the passage of the resolution effecting such name change, or in cases where readdressing without name change is required, be notified by the City Engineer or his designee of the effective date of the new address, and within thirty (30) days of said effective date, ascertain the proper numbers of their buildings on such newly named or numbered streets and affix new address numbers in compliance with this Article.

(Code 1986, § 32-175; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08; Ord. No. 12966, § 4, 6-30-15; Ord. No. 13000, § 1, 11-10-15)

Sec. 32-176. Size of numbers generally; style, location to be approved.

In all instances the figures used for address numbers on residences, multi-family residences, commercial, and manufacturing buildings in the City of Chattanooga shall be of sufficient size to be readily seen from the middle of the street, not less than two and one-half (2½) inches high in any case and made of reflective material. Except as otherwise provided in § 2-172, such numbering shall be installed in at least one (1) of the following approved locations:

(1) Address numbering on structure within five (5) feet of the front door;

(2) Curb numbers painted directly onto the street curb in front of the building in a uniform manner and color approved by the City Engineer;

(3) Marked with a reflective address numbering stake installed in open view no more than ten (10) feet from the right front property corner when viewed from the street;

(4) On the mailbox, as long as it is on the property standing alone, with numbers at least two and one-half (2½) inches in height;

(5) Any awning over the front doorway of a commercial or manufacturing building shall contain address numbering; or

(6) Any alternative methods authorized and approved in the sole discretion of the City Engineer.

Reflective street numbers shall be furnished and placed on the curb or in front of the building at the expense of the property owners of such buildings. The style of the numbers and the manner of placing them, including their location upon the building, shall be subject to the approval of the City Engineer. Whenever multiple buildings are located on property designated with a single street address, each building shall be uniquely identified by numbering and/or signage approved by the City Engineer.
(Code 1986, § 32-176; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08; Ord. No. 12966, § 4, 6-30-15; Ord. No. 13000, § 1, 11-10-15)

Sec. 32-177. Information to be furnished by City Engineer.

The City Engineer shall inform all owners or occupants of any buildings who may apply to that office, with the aid of the data in that office or within the knowledge of that office, as to the proper number of their respective buildings, without any charge for the information. The City Engineer will provide assistance in locating address numbers at a street location in conformity with § 32-176.
(Code 1986, § 32-177; Ord. No. 10847, § 1, 5-4-99; Ord. No. 12127, § 1, 5-20-08; Ord. No. 12966, § 4, 6-30-15; Ord. No. 13000, § 1, 11-10-15)

Sec. 32-178. Standard Street Numbering and Addressing Policy.

The City Council may from time to time adopt by resolution and/or ordinance any necessary amendments for clarification and practicality to assist in the development of an accurate and consistent street addressing system for the benefit of the community law enforcement, fire, rescue, postal delivery and other service agencies. All address numbering will be developed after submission to the Chattanooga-Hamilton County Regional Planning Commission and consideration of its recommendations in accordance with T.C.A. § 13-4-104. Street addressing changes shall be recommended by the City Engineer and considered by the City Council only one (1) time annually unless there is sufficient evidence presented to the Council that if an address is not immediately changed it will constitute an imminent danger to the public health, safety and welfare of the citizens.
(Ord. No. 12330, § 1, 12-8-09; Ord. No. 12966, § 4, 6-30-15; Ord. No. 13000, § 1, 11-10-15)

Secs. 32-179—32-195. Reserved.
(Ord. No. 12330, § 1, 12-8-09)

ARTICLE IX. STREET NAMES

Sec. 32-196. Establishment.

The official name of any dedicated street or right-of-way within the city shall be that name assigned to it and recorded on the last records on file at the county register's office or in the City Council Clerk's office. The City Council shall have the sole authority to amend, supplement or change the name of any dedicated street or street right-of-way, subject to the provisions of this article and subject to Article VIII of this Chapter. Street names may be changed individually or by adoption of a complete list that includes multiple changes.
(Ord. No. 12330, § 2, 12-8-09)

Sec. 32-197. Method of procedure to change street and right-of-way names.

(a) A proposed change of any name of any dedicated street or right-of-way shall be by resolution and, other than those originated by the city's governing body, Mayor, or the City Engineer, shall originate by a petition signed by two-thirds (2/3) of the parties owning a fee or holding a leasehold interest in real property, buildings, or fixtures abutting or fronting the subject street or right-of-way. For purposes of this section, the signature of any one (1) owner of undivided interest in property owned as tenants by the entirety or tenants in common, and the signature of an authorized representative of any corporation or partnership, shall be sufficient to satisfy this requirement. Such petition shall be filed with the City Engineer along with a completed application form and payment of the application fee in the amount of three hundred fifty dollars ($350.00).

(b) The City Engineer, or his designee, shall check the proposed street name against the current street database listing for appropriateness according to the provisions of this article and make a recommendation to City Council. If the request for change is not due to a petition, governing body request or a request from the Mayor as outlined in the preceding paragraph, but rather is necessary for public safety, the City Engineer shall notify the affected residents of the need for a change and poll them for a street name that meets the provisions of City Code and the Regional Addressing Policy as amended and adopted by City Council.

(c) No change, amendment, or supplement to any name of any dedicated street or right-of-way shall be effective unless approved in a resolution which receives the favorable vote of a majority of the entire membership of the city council. No name changes to any existing street shall be recommended by the City Engineer unless there is a sufficient showing to the City Council that some imminent danger to the public health, safety and welfare of the citizens will occur unless an existing street name is changed. Upon approval of a resolution which provides for any change, amendment, or supplement to any name of a dedicated street or right-of-way, the City Engineer shall notify all utilities, the United States Post Office, and Hamilton County Emergency Services (9-1-1) of such action by certified mail, return receipt requested.
(Ord. No. 12330, § 2, 12-8-09)

Sec. 32-198. Continuation of streets.

Any street or right-of-way dedicated after the effective date of Ordinance No. 7881 that is, or essentially is, an extension of an existing street shall be given the name of the existing street. However, any new streets crossing the base line (zero grid line) must be assigned a different name as set forth in the Street Numbering and Addressing Policy adopted by Resolution No. 21472.
(Ord. No. 12330, § 2, 12-8-09)

Sec. 32-199. Duplication of street names.

No new names for any new streets or dedicated right-of-ways shall be issued any name by the City Engineer using any street name which would duplicate or approximate, by means of spelling, pronunciation, or by use of alternate suffixes or prefixes (such as East, West, North, South, New, Old, Lane, Way, Drive, Court, Avenue, or Street) any existing or platted street name in the county.

(a) When duplicate street names are known to cause any emergency response or service response problems on existing streets within the City by the City Engineer, the street segment with the earliest date of plat recording within the City of Chattanooga shall be given preference whenever possible. Any suggestions for street name changes will be presented to the City Council and shall be evaluated in conjunction with renumbering of addresses in order to affect the fewest number of residents or businesses and after consideration of any other site specific criteria which may be identified by the City Engineer. Street names for existing streets having prefixes (such as East, West, North, South, New, or Old) shall not be changed unless there is sufficient evidence presented to the City Council that if an address is not changed it will constitute an imminent danger to the public health, safety and welfare of the citizens affected. The viability of readdressing or renumbering duplicate street names or phonetically similar street names will be considered by the City Engineer before suggesting any existing street name changes. Vacant properties shall not be considered when counting the number of affected parcels. The City Engineer shall have sole discretion in selecting the segments of any existing roads to be renamed, notwithstanding any other provision of this section.

(b) When duplicate street names are found to be within a local, state, or national historic district or would necessitate readdressing of properties found on the National Register of Historic Places, preference shall be given to the historic street name whenever possible.

(c) If a duplicate street name occurs in more than one (1) local, state, or national historic districts or is used by more than one (1) property found on the National Register of Historic Places, preference shall be given to the oldest instance of said street name whenever possible.

(d) Nothing contained in this section shall be construed to allow duplicate street names within the same local, state, or national historic district. Duplicate street names within the same local, state, or national historic district should be changed to reflect the historic significance of the local, state, or national historic district without duplicating existing street names.

(Ord. No. 12330, § 2, 12-8-09)

Sec. 32-200. Alteration and damage to street signs and street poles.

It shall be unlawful for any person to alter, mutilate, deface, damage, or destroy any street sign or sign pole; and it shall further be unlawful to post or affix any notice, poster, bill, bumper sticker, or other paper or device, calculated to attract the attention of the public to any street sign or sign pole.
(Ord. No. 12330, § 2, 12-8-09)

Secs. 32-201—32-215. Reserved.
(Ord. No. 12330, § 2, 12-8-09)

ARTICLE X. POLES AND WIRES

Sec. 32-216. Permit to erect poles—Required; how issued; conditions.

No pole shall be erected by any public service corporation on any street in the city without a permit to do so. Such permits shall be issued by the department of public works and the city engineer jointly, and shall be countersigned by the commissioner of public works, streets and airports. They shall be issued upon such conditions as to the erection and use of such poles as may be determined by the commissioner.
(Code 1986, § 32-216)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 32-217. Same—Grounds for refusal.

When any public service corporation applies to the Transportation Department for a permit to erect poles in any street where another public service corporation has already erected poles, the commissioner of public works, streets and airports shall refuse to issue a permit for poles to be erected at any places in such street where, in his opinion, the erection of additional poles will unreasonably interfere with the public safety or convenience and where another public service corporation already has poles which are reasonably sufficient to carry the wires of both corporations without material damage to either.
(Code 1986, § 32-217)

Sec. 32-218. Use of poles for wires of other corporations.

When necessary to avoid unreasonable inconvenience or danger to the public, all public service corporations maintaining poles in the streets of the city for wires shall be required to permit the wires of other public service corporations to be placed on such poles.
(Code 1986, § 32-218)

Sec. 32-219. Notice to permit use of poles.

Whenever the commissioner of public works, streets and airports declines to permit the erection of any additional poles, as provided in the preceding section, he shall notify the corporation whose poles have already been erected to permit the corporation applying for additional poles to use its poles upon reasonable compensation. It shall be unlawful for a corporation whose poles have already been erected to refuse to comply with such notice.
(Code 1986, § 32-219)

Sec. 32-220. Bond for use of poles by other than owner.

When any public service corporation has been notified to permit the use of its poles by another corporation, if the two (2) corporations are unable to agree upon the terms of compensation upon which such use shall be permitted, the corporation requesting the use of the poles may proceed to place its wires upon the poles of the corporation which owns them, upon delivering to such corporation a solvent bond in an amount double the cost of purchasing and erecting the poles sought to be used, conditioned to pay reasonable compensation for the use of such poles.
(Code 1986, § 32-220)

Sec. 32-221. City may use top of pole.

The city may use the top of all poles erected in the streets by public service corporations for fire alarm wires, if the necessity arises, subject to such restrictions as to the manner of putting up such wires as the corporation may make, but without paying compensation for such use.
(Code 1986, § 32-221)

Sec. 32-222. Maintenance of equipment.

All poles, cross arms, etc., in use shall be kept in good order and condition.
(Code 1986, § 32-222)

Sec. 32-223. Unused equipment to be removed.

Poles and wires of public service corporations on the streets of the city which remain unused for a period of thirty (30) days shall be taken down by the corporation owning them upon order from the mayor. The Transportation Department may remove any unused poles and wires so ordered removed at the expense of the corporation owning them.
(Code 1986, § 32-223)

Sec. 32-224. Sidewalk Clear Zone.

It is required that a clear zone, as defined under Chattanooga City Code Section 38-568 (16) or as amended, be maintained for passage on the sidewalk surface of all City rights-of-ways, and that all sidewalk surface areas of all City rights-of-ways shall otherwise remain compliant with the Americans with Disabilities Act (ADA) and the zoning requirements applicable to any specific use or Historic Districts in the City.
(Ord. No. 12824, § 1, 3-25-14; Ord. No. 13267, § 4, 1-30-18)

Secs. 32-225—32-230. Reserved.

ARTICLE XI. TELECOMMUNICATIONS SERVICES; FRANCHISES FOR TELECOMMUNICATIONS SERVICES*

Sec. 32-231. Definitions.

For the purposes of this Article, all definitions set forth in Chattanooga City Code Section 38-568 (16) or as such terms may be amended within that section after the enactment of this Article shall apply regarding advanced wireless research program participant, alternative structure, antenna, base station, breakpoint technology, collocation, cellular on wheels, distributed antenna system, eligible facilities request, eligible support structure, personal wireless service facility (PWSF), qualified collocation request, smart pole, small cell facility, small cell network, stealth design, substantial change, support structure, tower, and transmission equipment, including the following new definitions which are referenced below:

"City of Chattanooga" and "City" shall mean the City of Chattanooga, Tennessee, but shall not include the Electric Power Board of the City of Chattanooga unless specifically so stated to the contrary.

"Clear zone" shall mean that portion of the right-of-way that is intended for pedestrian traffic along the sidewalk. The minimum width and location of the clear zone shall be determined by the paved area of any sidewalk within the right-of-way, however, in all instances it must be a minimum of forty-eight (48) inches of width and otherwise compliant with the Americans with Disabilities Act (ADA) for public sidewalk accessibility. In areas of congested pedestrian activity in the Form Based Code District, a wider minimum portion of the sidewalk may be required. The location of the clear zone shall be consistent for the entire

---

***Editor's note—**Ord. No. 13267, § 5, adopted Jan. 30, 2018, repealed the former Art. XI, §§ 32-231—32-253, and enacted a new Art. XI as set out herein. The former Art. XI pertained to similar subject matter and derived from Code 1986, § 32-150; Ord. No. 10377, § 1, 2-6-96; Ord. No. 12824, § 1, 3-25-14.

block, and in most instances it shall be required to be located immediately adjacent to the facade of adjoining properties. The clear zone must at all times be free from any items, obstacles, or barriers so as to allow clear movement for pedestrians along the public right-of-way.

"FCC" means the Federal Communications Commission of the United States of America or any successor thereto.

"Franchisee" means the party subject to a Telecommunications Franchise, or its successors, assigns, or transferees.

"Franchise fee" means the Telecommunications Franchise Fee unless the context clearly indicates otherwise.

"Provider" shall mean any person, other than an Advanced Wireless Research Program Participant, who owns, leases, operates, installs, purchases capacity in or maintains any network or equipment within the City of Chattanooga for Telecommunications Services containing communication cables, wires, lines, towers, waveguides, fiber, microwave, laser beams or conduit and any associated converters, equipment or facilities designed and constructed for the purpose of producing, receiving, amplifying or distributing, by audio, video or other forms of electronic signals to or from subscribers or locations within the City of Chattanooga, (hereinafter collectively referred to as "Provider's System" or "system") in, on, under or over the public rights-of-way of the City of Chattanooga, or its successors, assigns, or transferees. The term Provider does not include a cable service provider providing "Cable service" or "Video service" as those terms are defined under the Competitive Cable and Video Services Act, T.C.A. §§ 7-59-301, et seq., as amended, that has been granted a franchise by the City to provide Cable Service or Video Service or has been granted a state-issued certificate of franchise authority by the State of Tennessee for a service area that includes the City.

"Rights-of-way" means the surface and space on, above and below every street, alley, road, highway, lane or other public right-of-way dedicated or commonly used now or hereafter for utility purposes and facilities thereon, including, but not limited to, overhead lighting facilities. Rights-of-way shall not include public property owned or leased by City and not intended for rights-of-way use, including, but not limited to, parks or public works facilities. Rights-of-way does not include federally granted railroad rights-of-way or easements granted to third parties (which may be reflected in a real property deed, subdivision plat, or other real property record) with respect to which the City holds no property interest.

"Telecommunications" means the transmission via the facilities, in whole or in part, between or among points specified by the user, of information of the user's choosing (e.g., data, video, voice), without change in the form or content of the information as sent and received, regardless of the statutory or regulatory scheme to which such transmissions may be subject, but does not include "cable service" or "video service" as defined under the Competitive Cable and Video Services Act, T.C.A. §§ 7-59-201, et seq., as amended, as such services shall be subject to separate franchising requirements and applications.

"Telecommunications facility" means one or more antenna, utility structures currently hosting either fiber, cable or wire, tower, base station, mechanical and/or electronic equipment, conduit, cable, fiber, wire, and associated structures, enclosures, assemblages, devices and supporting elements that generate, transmit or produce a signal used for communication that is proposed by an entity other than the City Government, including but not limited to radio/tv/satellite and broadcast towers, telephone service, including new microwave or cellular Towers, Personal Wireless Service Facilities (PWSF), Distributed Antenna System (DAS), small cell facilities and Cellular on Wheels (COW), or as such defined terms may be amended in Chattanooga City Code Section 38-568 (16).

"Telecommunications franchise" means a franchise for use of the rights-of-way for communications services as authorized herein and executed by City and Franchisee.

"Telecommunications franchise fee" means the fee imposed by City on franchisee for use of the rights-of-way pursuant to a Telecommunications Franchise granted under this Article.

"Telecommunications Service" means the transmission via facilities, in whole or in part, of any writings, signs, signals, pictures, sounds or other forms of intelligence through wire, wireless or other means, including, but not limited to, any "telecommunications service," "enhanced service," "information service," or "internet service," as such terms are now, or may in the future be, defined under federal law, and including all instrumentality, facilities, conduit, apparatus ("Telecommunications Facilities"), and services (among other things, the receipt, forwarding, and delivery of telecommunications) incidental to or designed to directly or indirectly facilitate or accept such transmission. This term does not include Telecommunications Service provided by a cable service provider providing "cable service" or "video service" as defined under the Competitive Cable and Video Services Act, T.C.A. §§ 7-59-301, et seq., as amended, as the rights of Providers of cable service or video service to use the public rights-of-way of the City shall be subject to separate franchising requirements and applications. Along with the similar exclusion in the additional paragraph below defining, "Provider," this term does not include over-the-air radio or television broadcasts to the public at large licensed by the FCC.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-232. Services prohibited without franchise or without authorization from State of Tennessee.

No Provider shall use the public rights-of-way in the City for Telecommunications Services, including wireless transmission via a Telecommunications Facility, without first having received a Communications Franchise from the governing body of the City. No person shall use the public rights-of-way of the City to provide services directly regulated by the Tennessee Public Utility Commission ("TPUC") (or any successor agency) under Tennessee law unless so authorized by the TPUC, if such authorization is required.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-233. Provider's Compliance with Law and Maintenance of Clear Zone.

(a) Provider shall construct and maintain Provider's System in accordance with all applicable federal, state and local laws, including all City's permit requirements, Telecommunications Franchise Fee payment, cost, and fee obligations, and all other City codes and ordinances, including but not limited to applicable zoning laws and restrictions to adjoining or adjacent properties, and the terms and conditions set forth within Chattanooga City Code Section 38-568, in effect as of the date of the award of its franchise, or thereafter adopted or amended. Provider's compliance with any applicable provisions of the zoning laws and restrictions to adjoining or adjacent properties, and the terms and conditions set forth within Chattanooga City Code Section 38-568, as may be amended from time to time, shall be deemed a condition of any Telecommunications Franchise.

(b) *Maintenance of Clear Zone.* It is required that a clear zone, defined in Section 32-231(16), as amended, be maintained for passage on the sidewalk surface of the rights-of-way, and that all installations are otherwise compliant with the Americans with Disabilities Act (ADA) and any zoning requirements applicable to any specific use or Historic Districts in the City, unless a variance is approved by the Board of Appeals for Variances and Special Permits. No Provider shall block or restrict the clear zone or block ingress/egress to any property, including but not limited to any driveway, crosswalk, bus stop or in any manner that conflicts with the Americans with Disabilities Act.

(c) Any Telecommunications Franchise granted pursuant to this Article shall be subject to any present and future legislation or resolution, which may be enacted by the Chattanooga City Council or legislation or regulation by the State of Tennessee.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-234. Application for Telecommunications Franchise; application fee.

(a) Any entity desiring to construct, own, operate, replace, lease, maintain, or purchase capacity (for resale) in a system within the rights-of-way of the City shall apply to the office of Land Development for a Telecommunications Franchise from the City on the form provided by the Building Official. The application shall be accompanied by a non-refundable application fee of two thousand five hundred dollars ($2,500.00). Said application fee defrays in whole or in part City's reasonable costs to process an application filed hereunder and negotiate, award and administer a franchise. Said application fee shall not be considered franchise fee payments.

(b) Applicants shall fully complete the franchise application process and submit all requested information. The application and information submitted must be certified as true and accurate by the applicant. Applicant shall be responsible to certify to City any material changes to the information provided in the completed application during the term of any franchise. City reserves the right to require such supplementary, additional or other information that it deems reasonably necessary for its determination, and reserves the right to waive all formalities and/or technicalities, where the best interest of City may be served.

(c) All Telecommunications Franchises located within the rights-of-way are subject to the following conditions and approval by the Land Development Office and the Chattanooga Department of Transportation:

(1) All requests for a Telecommunications Franchise which will be located within the right-of-way shall submit a completed and verified application, which shall contain:

a) The applicant's name, address, telephone number, and email address;

b) The applicant's affiliates, if any, operating or having operated within the State of Tennessee;

c) Information demonstrating the applicant's financial ability to comply with the requirements of this Article;

d) A statement of whether the applicant, or any affiliate, has had a franchise application suspended, revoked or terminated in any other jurisdiction and the details surrounding such suspension, revocation or termination;

e) A statement of whether the applicant or any director, principal officers have been charged or convicted of a crime involving fraud, misrepresentation, falsification of records, and/or improper business transactions or reporting.

f) A statement of whether the applicant, or any affiliate, has filed suit or administrative proceedings involving applicant's franchise or attempt to obtain a franchise, or applicant's access to the public rights-of-way in another jurisdiction;

g) A copy of the applicant's FCC license or registration, if any;

h) A copy of Tennessee Regulatory Authority authorization to conduct business as proposed, if any;

i) The names, addresses, telephone numbers, and email addresses of all consultants, if any, acting on behalf of the applicant with respect to the filing of the application;

j) A general description of the proposed Telecommunications Services that are or will be offered or provided by the applicant over and through its Telecommunication Facilities, and the purposes and intent of the Telecommunications Franchise;

k) Any other information which may be requested by the City; and

l) All applications for permits filed pursuant to this Chapter shall be on a form, paper or electronic, provided by the City.

(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-235. General provisions for Telecommunications Services.

Provider shall comply with any conditions and/or requirements of the office of the City Engineer, Building Official in the office of Land Development and the Administrator of the Transportation Department with respect to the specific location and installation of Provider's System and with respect to any other matters which affect the construction, installation, repair, operation and maintenance of Provider's System. To the maximum extent technically feasible, Provider's System shall be installed underground within existing rights-of-way or property controlled by the Provider, provided that Provider's System may be installed above ground where either telephone, cable, or electric utility facilities are above ground at the time of installation, and as provided within Chattanooga City Code Section 38-568 (16). To the extent that any Provider installs its System in underground ducts, Provider shall, unless waived in writing by City, simultaneously install one (1) additional four (4) inch conduit for the use and benefit of the City. City shall reimburse Provider by way of future rent or fee abatement for any marginal or additional costs incurred by Provider in connection with installation of City conduit.

City conduit shall be installed in accordance with City's specifications and consistent with sound engineering practice. No franchise fee shall apply to any City conduit or fiber.

Provider, with the prior written approval of the City Building Official and the Transportation Department, may make minor deviations from the Provider's System as shown in the map attached to Provider's franchise agreement in the event unforeseen problems necessitate the rerouting of said Provider's System. Provider shall comply with all applicable City ordinances and state laws, including but not limited to obtaining building permits, street cut permits and any other permits required by applicable law.

(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-236. Engineering designs for Provider's System; "as built" drawings for System.

Engineering designs for Provider's System will be prepared by a competent engineering group which shall be licensed by the state if required by state law and installation will be performed by a competent contractor which shall be licensed by the state if required by state law, and Provider will furnish said engineering designs to the Building Official not less than thirty (30) days prior to commencement of construction. Provider will provide to the Building Official and the Transportation Department "as built" drawings of its System within one hundred twenty (120) days of completion of said System; Provider shall update said drawings within one hundred twenty (120) days of the completion of any material change to Provider's System; said "as built" drawings shall include, at a minimum, the routing of Provider's System and the location of all amplifiers, power supplies and system monitor test points, provided that if Provider already has its System, or a portion thereof, in place as of the effective date of this Section, Provider shall provide such "as built" drawings to the Building Official within the time provided in such Provider's Franchise Agreement. City will protect and maintain all such documentation submitted by Provider to the extent required by State law.

(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-237. No adverse effect upon adjacent properties.

Under no conditions shall the installation of Provider's System adversely affect any properties adjacent to the public rights-of-way without the prior express written permission of the owner of such properties. (Ord. No. 13267, § 5, 1-30-18)

Sec. 32-238. No adverse effect upon other utilities.

Under no conditions shall the installation of Provider's System adversely affect any existing utilities without the prior express written permission of such utilities. Provider's system shall not physically interrupt or interfere with the facilities in the public rights-of-way of the Chattanooga Gas Company, BellSouth now known as AT&T, the Electric Power Board of Chattanooga, the water utility in whose area Provider's System is located, Comcast Cable TV Company, or any other utilities or companies holding a franchise in any right-of-way in which Provider's System is to be located. Provider is solely responsible for ensuring compliance with this Section.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-239. Restoration of Rights-of-Way.

Provider shall promptly restore to its original condition, in accordance with the City's standard specifications for, streets and sidewalks any street pavement, sidewalks or other portions of the right-of-way disrupted by construction of Provider's System. By acceptance of any franchise from the City to provide Telecommunications Services, Provider warrants the restoration of any disturbed right-of-way or part thereof. Provider shall, to the maximum extent possible, coordinate all System installation, repairs and maintenance with other utilities and Franchisees so as to minimize the number of street cuts and interruption of traffic within the City.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-240. Standards for maintenance of Telecommunications Services and right to inspect.

Any work required or performed pursuant to this Article shall be done in accordance with federal, state and local law, including NFPA 70, the National Electrical Code, National Electrical Safety Code or such other applicable codes and standards covering regulated utility installation activities which are regulated under governmental laws or regulations including state regulatory commissions, the Federal Energy Regulatory Commission, and the Federal Communications Commission. In the event that any Provider leases space on the poles or in the conduits of an electric or other utility, Provider shall abide by the construction and other requirements of said utility, and the granting of a franchise by City hereunder shall not be construed or interpreted in any way to alleviate Provider's responsibilities and obligations to the pole or conduit owner.

Provider, its contractors, subcontractors and anyone directly or indirectly employed by Provider, shall conduct such operations so as to promote and preserve the public health, safety and general welfare of the citizens of Chattanooga. All construction, installation and maintenance by Provider shall be completed with diligence and with respect to all property, contracts, person's, rights and the interests and rights of the public. During any phase of construction, installation, maintenance, and repair of Provider's System, Provider shall use materials of good and durable quality and all such work shall be performed in a safe, thorough, and reliable manner.

Provider's System shall at all times be kept and maintained in good condition, order, and repair by qualified maintenance and construction personnel, so that the same shall not menace or endanger the life or property of any person.

Provider shall promptly remove any graffiti on its Telecommunications Facilities at Provider's sole expense.

The City is authorized to make requests and to issue orders regarding Telecommunications Facilities in the rights-of-way and further is authorized and shall have the right to inspect the construction, installation, maintenance, repair and operation of Telecommunications Systems to: 1) ensure continued compliance with this Article and with all permits received; and 2) protect the health, safety and welfare of the public. The City is also authorized to conduct visual and external inspections of Telecommunications Facilities in the rights-of-way at any time and shall make efforts to coordinate with the Provider responsible for a Telecommunications Facility for any internal inspection of the relevant structure or equipment. Should such periodic inspection reveal the need for a formal inspection program, the City retains the right to implement an annual inspections program, with costs to be borne by Providers.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-241. Notification of execution of any security agreement or similar agreement concerning Provider's System.

Provider shall notify the City within ten (10) business days of the execution of any security agreement or similar agreement concerning Provider's System or any of the Telecommunications Facilities and property, real or personal, of the Provider located in the City of Chattanooga and will, upon three (3) business days' notice, allow the City to inspect any such agreements in Chattanooga, Tennessee.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-242. Indemnification of City by Providers.

Provider shall, at its sole cost and expense, indemnify, hold harmless and defend the City, its elected and appointed officials, officers, boards, commissions, commissioners, agents and employees, against any and all claims, suits, causes of action, proceedings, and judgments for damages or equitable relief arising out of or related to Provider's operation, installation or maintenance of Provider's System. The indemnity provisions of this section shall include, but are not limited to, the City's reasonable and necessary attorneys' fees incurred in defending against any claims, suits, actions or proceedings arising out of or related to the operation, installation or maintenance of Provider's System and these indemnity provisions shall survive the term of any Franchise granted to Provider for any acts committed by Provider for any claims, suits, actions or proceedings arising out of or related to Provider's operation, installation or maintenance of Provider's System during the term of a franchise.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-243. Insurance and bonds to be maintained by Providers.

(a) During the term of any franchise, Provider shall obtain and maintain at its sole expense, all insurance and bonds required by this Article. Nothing contained in this Article shall limit a Provider's liability to City to the limits of insurance certified or carried or the amount of any bond.

(1) Upon being awarded a franchise, Provider shall immediately obtain and maintain, for the benefit of and filed with the City Attorney's Office, two (2) corporate surety bonds, each written with a surety company authorized to do business in the State of Tennessee and found acceptable by the City Attorney, in an amount to be determined by the Land Development Office depending upon

the nature of the work to be performed and the permit fee. In no event shall the amount required by the Land Development Office exceed the reasonable costs of repairing the rights-of-way and any structures damaged by the installation in the event of nonperformance by the Provider.

a) *Construction Bond.* The first corporate surety bond, as described in subsection (1) above, shall guarantee the timely and safe construction of the Provider's network routes (the "Construction Bond").

i. The Construction Bond shall provide for the faithful performance of construction and installation of Provider's System. One year after demonstration of the completion of the construction of Provider's System to the Building Official, and approval by the City, City shall release the performance bond in writing. The City may reserve the right to reevaluate the bond amount after the first year of the initial term and to adjust the bond requirement or bond amount, if deemed necessary or prudent by the City Attorney.

ii. The Construction Bond shall provide, but shall not be limited to, the following condition: there shall be recoverable by the City, jointly and severally, from the principal and surety, any and all damages, losses or costs, including attorneys' fees, suffered by the City arising out of the failure of Provider to faithfully perform and satisfactorily complete construction of Provider's System in accordance with this Article, and to complete its applicable work within eighteen (18) months after the commencement of construction, unless the failure is due to conditions outside the reasonable control of Provider.

b) License Agreement Bond. The second corporate surety bond, as described in subsection (1) above, shall secure Provider's performance of its obligations and faithful adherence to all requirements of this Agreement (the "License Agreement Bond").

i. Said License Agreement Bond shall not exceed the amount of seventy-five thousand dollars ($75,000.00) and shall be maintained throughout the term of this Agreement.

ii. The initial License Agreement Bond shall be written to run concurrently with the Master Franchise Agreement's initial term.

iii. Additional extensions to the term of the Agreement shall be bonded with a continuation certificate to the original License Agreement Bond (or on a subsequent original License Agreement Bond written by a different surety company, acceptable to the City Attorney, if necessary), executed by the surety company and by Provider.

iv. The License Agreement Bond shall provide, but shall not be limited to, the following conditions: there shall be recoverable by the City, jointly and severally, from the principal and surety, any and all damages, losses or costs, including attorneys' fees, suffered by the City resulting from Provider's installation, operation or maintenance of its Telecommunications Facilities, or from its breach of the terms any agreements related to the work with the City.

(2) Provider shall provide both of these corporate surety bonds at or before execution of the Franchise Agreement.

(3) Any extension to the prescribed time limit in subsection 32-243(1)(a)(2) for completion of the applicable work within eighteen (18) months due to causes beyond the reasonable control of Provider shall be authorized by the City Attorney, and the City Attorney's authorization may not be unreasonably withheld, conditioned, or delayed.

(4) The rights reserved to City with respect to the performance and franchise bonds required hereunder are in addition to all other rights of City, whether reserved by this Article or authorized by law, and no action, proceeding or exercise of a right with respect to such performance or franchise bonds shall affect any other rights City may have.

(5) The Construction Bond and License Agreement Bond shall not expire or be materially altered without thirty (30) days' prior written notice to City and without securing and delivering to City a substitute, renewal and replacement bond in conformance with this Article. In the event City does draw monies against the cobonds required hereunder, within ten (10) days thereafter, Provider shall pay such funds to the bonding company as necessary to bring said bonds back to the applicable principal, where it shall continue to be maintained. The Construction Bond and the License Agreement Bond shall contain the following endorsement: "It is hereby understood and agreed that this bond will not be cancelled or non-renewed by the surety until sixty (60) days after receipt by the City Attorney, by registered mail, of written notice of intent to cancel or not to renew the bond."

(6) The failure of Provider to comply with its obligations under this Article or the franchise agreement, including but not limited to, the cost of removal of Provider's System from the public rights-of-way in the event Provider's franchise is terminated or abandoned and the cost of repairing any damage to the City rights-of-way in the event Provider fails to repair same, as determined by Chattanooga City Council, shall entitle City to draw against either or both of Provider's corporate surety bonds.

(b) Immediately upon the effective date of the resolution or ordinance granting a franchise under this Article, Provider shall file with the Office of the City Attorney the following proof of insurance issued by a company(ies) authorized to do business in Tennessee with an AM Best Rating of A- or better:

(1) Commercial General and Umbrella Liability Insurance; occurrence version commercial general liability insurance, and if necessary umbrella liability insurance, with a limit of not less than two million dollars ($2,000,000.00) each occurrence for bodily injury, personal injury, property damage, and including, products, completed operations, contractual liability, independent contractor's protective liability and personal injury liability protection. If such insurance contains a general aggregate limit, it shall apply separately to the work/location or be no less than three million dollars ($3,000,000.00).

a) Such insurance shall:

i. Contain or be endorsed to contain a provision that includes the City, its officials, officers, employees, and volunteers as additional insureds with respect to liability arising out of work or operations performed by or on behalf of Provider including materials, parts, or equipment furnished in connection with such work or operations. The coverage shall contain no special limitations on the scope of protection afforded to the additional insureds. Proof of additional insured status up to and including copies of endorsements and/or policy wording will be required.

ii. For any claims related to this project, Provider's insurance coverage shall be primary with respect to the City, its officers, officials, employees, and volunteers. Any insurance or self-insurance programs covering the City, its officials, officers, employees, and volunteers shall be excess of Provider's insurance and shall not contribute with it.

iii. This policy must cover City for damages resulting from the transmission of any Telecommunications Services over the Provider's System.

iv. The City reserves the right to make reasonable increases in the required amount of insurance coverage herein at any time. Nothing herein is intended as a limitation on the extent of any legal liability of the Provider.

(2) Automobile Liability Insurance; including vehicles owned, hired, and non-owned, with a combined single limit of not less than one million dollars ($1,000,000.00) each accident. Such insurance shall include coverage for loading and unloading hazards. Insurance shall contain or be endorsed to contain a provision that includes the City, its officials, officers, employees, and volunteers as additional insureds with respect to liability arising out of automobiles owned, leased, hired, or borrowed by or on behalf of Provider.

(3) *Workers' Compensation Insurance.* Provider shall maintain workers' compensation insurance with statutory limits as required by the State of Tennessee or other applicable laws and employers' liability insurance with limits of not less than five thousand dollars ($500,000.00). Provider shall require each of its subcontractors to provide Workers' Compensation for all of the latter's employees to be engaged in such work unless such employees are covered by Provider's workers' compensation insurance coverage.

(4) *Environmental Impairment Liability.* Provider shall maintain environmental impairment liability insurance with limits of not less than one million dollars ($1,000,000.00) per occurrence.

(5) *Pollution Liability Insurance.* Provider shall procure pollution liability coverage, ISO CG 0039, or equivalent. If the coverage is written on a claims-made form:

a) The "Retro Date" must be shown and must be before the date of the contract or the beginning of contract work.

b) Insurance must be maintained and evidence of insurance must be provided for at least five (5) years after completion of the contract work and acceptance by the City.

c) If coverage is cancelled or non-renewed and not replaced with another claims-made policy form with a "Retro Date" prior to the contract effective date, Provider must purchase "extended reporting" coverage for a minimum of five (5) years after completion of contract work.

d) A copy of the claims reporting requirements must be submitted to the City for review.

(6) *Excess Liability Insurance.* Provider shall maintain excess liability insurance in addition to the insurance specified above, excluding environmental and pollution liability, with a limit of not less than ten million dollars ($10,000,000.00) each occurrence. This coverage shall be on a follow form basis, or be at least as comprehensive as the underlying insurance.

(7) *Other Insurance Requirements.* Provider shall:

a) Prior to commencement of services, furnish the City with original certificates and amendatory endorsements effecting coverage required by this section. The Provider must provide written notice of cancellation by its insurer for any reason other than non-payment of premium to the City of Chattanooga, Office of the City Attorney, 100 East 11th Street, Suite 200, Chattanooga, Tennessee 37402 within thirty (30) days after the cancellation.

b) Upon the City's written request, provide copies of endorsements in lieu of, or in addition to, certificates of insurance. Franchisee will make copies of the policies available at its most proximate place of business upon the City's written request. Copies of policies will only be requested when contracts are deemed to be extremely or uniquely hazardous, include a dollar amount that is significant to the overall budget of the City or a City Department, or the coverage(s) may not follow standard insurance forms. A policy will only be requested

after the City's Risk Manager has reviewed the contract and proof of coverage has been provided. Should the certificate of insurance refer to specific coverage wording or endorsement(s), proof of such policy wording or endorsement(s) will be required.

c) Replace certificates and endorsements for any such insurance expiring prior to completion of services.

d) Maintain such insurance from the time services commence until services are completed. Failure to maintain or renew coverage or to provide evidence of renewal may be treated by the City as a material breach of contract.

e) If Provider cannot procure insurance through an insurer having an A.M. Best rating of A-VIII, Provider may, in the alternative, place such insurance with insurer licensed to do business in Tennessee and having A.M. Best Company ratings of no less than A. Modification of this standard may be considered only upon appeal to the City Attorney.

(8) Any deductibles and/or self-insured retentions greater than two hundred fifty thousand dollars ($250,000.00) must be disclosed to and approved by the City Attorney's Office prior to the commencement of services. Use of large deductibles and/or self-insured retentions will require proof of financial ability as set forth in subsection (c) below.

(9) The insurer shall agree to waive all rights of subrogation against the City, its officers, officials, and employees for losses arising from work performed by Provider for or with regard to the City. Proof of waiver of subrogation up to and including copies of endorsements and/or policy wording will be required.

(10) All general liability policies must be written on an occurrence basis unless the City Attorney determines that a claims-made basis is reasonable in the specific circumstance. Use of policies written on a claims-made basis must be approved by the City Attorney and retroactive dates and/or continuation dates must be provided to the City prior to commencement of any work performed. Professional Liability and Environmental Liability (Pollution Coverage) are most commonly written on a claims made basis and are generally acceptable in that form.

(11) Failure to maintain adequate insurance as required under this section shall be grounds to terminate the franchise.

(c) Notwithstanding the foregoing requirements for bonds required in (a) and general liability insurance policies in (b) above, a Provider may be allowed to provide a valid Certificate of Self-Insurance showing that it is self-insured in an amount equal to the bond and insurance coverage amounts required in (a) and (b) above, supplying proof of its most recent public financial report or statement, and confirming that any breach of the franchise shall require payment in full to the City upon demand to the fullest extent of any bond and insurance coverage amount required in (a) and (b) above, which shall be secured by real and/or personal property located within the City and sufficient to cover the required bonds and insurance amounts herein. Certificates of Self-Insurance, and accompanying documentation, shall be submitted initially, and annually thereafter, to the satisfaction of the City Attorney.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-244. Removal or relocation of systems; and emergency removal or relocation.

In the event the City determines it to be necessary, appropriate or useful to protect the health, safety and welfare of the public; or if it shall need the right-of-way for the purpose of providing public improvements either to the street or the public right-of-way; or for the best interest of the public; or in the event the City abandons a public right-of-way and does not reserve an easement for Provider, and Provider's System or any part thereof should need to be relocated or removed, such relocation or removal shall be done at the sole expense of the Provider. In the event Provider fails or refuses to complete such relocation or removal

after one hundred eighty (180) days' prior written notice from the City, the City shall have the right to perform such relocation or removal, and Provider shall promptly reimburse the City for all costs incurred in such relocation or removal.

The City retains the right and privilege to cut or move any Telecommunications Facility located within the right-of-way of the City, as the City may determine to be necessary, appropriate or useful in response to any public health or safety emergency. If circumstances permit, the City shall notify the Provider affording Provider an opportunity to move its own facilities prior to cutting or removing a facility and shall notify the Provider after cutting or removing a Telecommunications Facility.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-245. Assignment of franchise; lease or sale of capacity.

No Provider shall assign or transfer any Telecommunications Franchise (or any of the rights or privileges granted by such franchise) from the City without the prior approval of the Chattanooga City Council by ordinance or resolution, which approval shall not be unreasonably withheld if the entity would have qualified for an original franchise had it applied and if the entity demonstrates it has the same insurance policies and bonds in place as is required of the original Provider.

A mortgage, lien, deed to secure debt, deed of trust, security interest or other encumbrance of Provider's Telecommunications Franchise as a part of acquiring, constructing, equipping or maintaining Provider's System shall not be considered a violation of this section; any such creditor shall be entitled to all the rights and remedies granted to same in any documents relating to any such transaction, provided that any sale or transfer of Provider's System or any portion thereof following a foreclosure sale shall be subject to the prior approval of the Chattanooga City Council by ordinance or resolution, which approval shall not be unreasonably withheld.

Nothing in any approval by the Chattanooga City Council of any transfer pursuant to this section shall be construed to waive, release or delegate any rights or powers of City to hold the original Provider liable for any violation of its Telecommunications Franchise.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-246. Removal of Telecommunications Facilities.

When Provider opens a trench, accesses a conduit or boring, or is working on aerial locations, or when Provider becomes aware either by notice from the City or otherwise that any other Telecommunications Franchisee or public utility is opening a trench, accessing a conduit or boring, or is working on aerial locations with access to Provider's System, whether pursuant to Chattanooga City Code Section 32-256, as amended, or otherwise, Provider shall remove all of its obsolete communication cables, wires, lines, towers, waveguides, fiber, microwave, laser beams, conduit and all of its obsolete associated converters, equipment or facilities while they are open without interfering with the efficient operation of other public utilities. In the event Provider's Telecommunications Franchise is terminated, forfeited or abandoned, the City may require Provider to remove Provider's System or any portion thereof from the public right-of-way within a reasonable period of time, not to exceed ninety (90) days. In the event Provider fails to do so the City may, at its option, remove Provider's System or any portion thereof from the public Right-of-Way and seek reimbursement therefor from Provider or from any bond posted by Provider in favor of the City. Notwithstanding the foregoing, the City may allow Provider's System or any portion thereof to be left in place when the City determines that it is not practical or desirable to require removal. It shall be the duty of the Provider immediately upon such removal to restore the rights-of-way from which Provider's System or any portion thereof is removed to as good condition as the same was before the removal was effected and as required by City.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-247. No cost to City arising out of franchise.

The City shall incur no costs or expenses as a result of granting any Telecommunications Franchise to Provider or as a result of connecting to Provider's System (other than usual and customary fees for the use of Provider's System in the event the City utilizes same).
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-248. Telecommunications Franchise Fee from Providers; Franchise Fee Statement; no accord and satisfaction.

Provider shall pay on an annual basis to the City as compensation for the use of rights-of-way an annual Telecommunications Franchise Fee for use of rights-of-way in or on which its System is placed or over which it is suspended. The Telecommunications Franchise Fee shall be in an amount established by the annual budget ordinance adopted in each fiscal year by the City. The Telecommunications Franchise Fee shall be subject to the City Council's ability to revisit this amount, pending a further analysis of the costs to the City for use of its public rights-of-way. Telecommunications Franchise Fees shall be due and payable on or before the fifteenth day of January of each year during the term of the Franchise. City shall dedicate and use all franchise fees received under this section for maintenance of the rights-of-way.

In the event any franchise fee payment due under this section is paid late, Provider shall also pay interest thereon at the rate of eighteen percent (18%) per annum, or the maximum percentage rate allowed by State law, for any period such payment is late. No portion of the franchise fee shall be noted separately on bills to customers except as required by law.

The annual Telecommunications Franchise Fee payment shall be accompanied by a statement ("Franchise Fee Statement") showing the manner in which the franchise fee was calculated. At the same time the annual Telecommunications Franchise Fee is paid to the City, Provider shall submit a Franchise Fee Statement, certified as true and accurate, setting forth the amount of linear feet for the facilities provided, however, that in the event that a Provider ceases to provide service for any reason (including as a result of a transfer), such Provider shall provide such a statement within thirty (30) days after the date on which its operations in Chattanooga cease. In addition to the Franchise Fee Statement, Provider shall provide City with a description of any material changes to the types of Telecommunications Services offered in the City during the prior year, certified as true and accurate.

In addition to the Telecommunications Franchise Fee charged pursuant to this Chapter, Franchisee and all Providers shall pay all use or other attachment fees on any City-owned property as may be established pursuant to the annual budget ordinance adopted in each fiscal year by the City.

No acceptance by City of any Telecommunications Franchise Fee or any other payment shall be construed as an accord that the amount paid is in fact the correct amount, nor shall acceptance of any Telecommunications Franchise Fee or any other payment be construed as a release of any claim of City.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-249. Default of Providers.

(a) The occurrence of any one (1) or more of the following events, at the City's discretion, shall constitute an Event of Default by the Provider under any franchise from the City for Telecommunications Services:

(1) The Provider shall fail to pay when due any franchise fee as and when such fee becomes due or any lessee, sublessee or assignee of Provider's System shall fail to pay any franchise fee as and when such fee becomes due as set forth in Section 32-248 above.

(2) The Provider shall fail to observe or perform any other obligation to be observed or performed by it under this Article, the franchise agreement, or any other permits and/or agreements required under this Article.

(3) The Provider shall dissolve or discontinue the Provider's business, or transfer all or substantially all of the property of the Provider without the prior consent of the Chattanooga City Council by ordinance or resolution.

(4) A judgment creditor of the Provider other than the holder of a valid security interest in Provider's System shall obtain possession of any portion of the Provider's System in the public Rights-of-Way of the City by any means.

(5) That Provider fails to begin actual construction on Provider's System within sixty (60) days of the date Provider obtains a Telecommunications Franchise from the City, or Provider has not substantially completed Provider's system as set forth in the franchise from the City to Provider within one (1) year of the date Provider obtains a Telecommunications Franchise from the City.

(b) The terms and conditions of this Article and the franchise agreement, and each of them, are hereby deemed to be substantial and material. Upon the occurrence of an Event of Default specified in this section, the City shall notify Provider in writing of such Event of Default and identify the Event of Default; such notice shall also notify Provider that the Telecommunications Franchise is considered forfeited by Provider and canceled not less than thirty (30) days from the date of receipt of such notice by Provider unless such default, violation, non-compliance or other event causing forfeiture of said franchise specified in the notice has been cured to the sole satisfaction of the City within said thirty (30) days.

(c) Before any Telecommunications Franchise may be terminated and canceled, Provider shall be provided with an opportunity to be heard before the governing body of the City. In the event Provider desires to have a hearing before the City Council, Provider shall, within twenty (20) days of its receipt of the aforementioned notice, notify in writing the Clerk of the City Council of its desire for such a hearing. Upon receipt of such a request for a hearing, the Clerk shall notify the Council at or before its next meeting of such request, and the Council shall schedule a hearing upon such request. The termination of Provider's franchise shall be stayed until the conclusion of such hearing before the City Council. In the event the City Council determines that no Event of Default has occurred or that such default has been timely cured, Provider's franchise shall continue in full force and effect.

(d) In the event the City Council determines that a specific default cannot be cured after a hearing as set forth in provision (c) above and the Provider has timely instituted action necessary to cure such default, Provider shall be permitted to diligently pursue such cure to completion. The City Council may specify a time period within which Provider must cure such default, and in the event Provider fails to cure within such time period, Provider's Telecommunications Franchise shall be considered forfeited and canceled without further hearing of the City Council. The action of the City Council shall be final provided that any appeal of the action of the City Council may be taken to a court of competent jurisdiction within sixty (60) days pursuant to Tennessee Code Annotated 27-9-102.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-250. Notices.

Any notices or communication required in the administration of Provider's Telecommunications Franchise from the City shall be sent by hand delivery or by any method that assures overnight delivery and shall be addressed as follows:

If to the City:	Office of the Mayor Chattanooga City Hall 101 East 11th Street Chattanooga, TN 37402
With a copy to:	Office of the City Attorney 100 East 11th Street, Suite 200 Chattanooga, TN 37402
If to the Provider:	To the address of Provider listed on the franchise ordinance from the City.

(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-251. Nondiscrimination by Providers.

Provider will provide fair and equal opportunity to all qualified individuals based on merit and fitness and will not discriminate against any employee or applicant for employment because of age, sex, race, color, religion, disability, national origin, protected veteran or military status, sexual orientation, gender identity, ethnic origin, political affiliations, genetic information, marital status, or any other protected basis in accordance with applicable City ordinances and resolutions, State and Federal laws except where such category or class constitutes a bona fide occupational qualification. Provider will comply with all applicable City ordinances and resolutions, State and Federal laws regarding treatment of applicants and employees, including, to ensure that applicants are lawfully hired, and that employees are treated during employment, without regard to their age, sex, race, color, religion, disability, national origin, protected veteran or military status, sexual orientation, gender identity, ethnic origin, political affiliations, genetic information, marital status, or any other protected basis in accordance with applicable City ordinances and resolutions, State and Federal laws except where such category or class constitutes a bona fide occupational qualification. Such action shall include employment, upgrading, demotion, transfer, recruitment or recruitment advertising, layoff, termination, rates of pay or other forms of compensation, and selection for training, including apprenticeship. Provider shall post in conspicuous places, available to employees and applicants for employment, required notices under State and Federal laws regarding nondiscrimination in employment.
(Ord. No. 10377, § 1, 2-6-96; Ord. No. 13267, § 5, 1-30-18)

Sec. 32-252. No grant of use of other property.

Nothing in this Article or in a Provider's franchise shall be deemed to grant to any Provider any rights to work in, use or attach to any Alternative Structure, Base Station, Distributed Antenna System, Eligible Support Structure, Personal Wireless Service Facility, Small Cell Facility or Network, Support Structure, Telecommunications Facility, Tower, Transmission Equipment, or other facilities of the City, including Smart Poles, the Electric Power Board of the City of Chattanooga, AT&T formerly known as BellSouth or any other utility or entity occupying space in the public rights-of-way without the prior express written permission of any such entity. Such express written permission may take the form of, and include but not be limited to, a pole attachment agreement and/or a license or use agreement.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-253. Severance clause.

If any material provision of this Article or of any franchise agreement for Telecommunications Services granted pursuant to it is held by a governmental authority of competent jurisdiction to be invalid or unlawful as conflicting with applicable laws now or hereafter in effect, or is held by a court of competent

jurisdiction or competent governmental authority to be modified in any way in order to conform to the requirements of any such applicable laws, such provision shall be considered a separate, distinct, and independent part of this Article or the franchise agreement for Telecommunications Services, and, to the extent possible, such holding shall not affect the validity and enforceability of all other provisions herein or therein.

Notwithstanding the foregoing, should the Telecommunications Franchise Fee in Section 32-248 be declared invalid or unlawful as conflicting with applicable laws now or hereafter in effect, or is held by a court of competent jurisdiction or competent governmental authority to be modified in any way in order to conform to the requirements of any such applicable laws, such holding shall render any franchises for Telecommunications Services void in its entirety and of no further force or effect but shall not affect the validity or enforceability of any other provisions in this Ordinance. Provider and the City thereafter shall undertake to negotiate a new franchise agreement compatible with any order of either a court of competent jurisdiction or a competent governmental authority.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-254. Liabilities; penalties and other rights and remedies.

Except as expressly stated in this Article, the express or implied repeal or amendment by this Article of any ordinance or part thereof shall not affect any liabilities accrued, penalties incurred or proceedings begun prior to the effective date of this Article. Those liabilities and penalties are continued, and penalties shall be imposed and enforced under the repealed or amended ordinance as if this Article had not been adopted. The rights and remedies of City and the Provider as set forth in the franchise agreement, or in this Article, shall be in addition to and not in limitation of, any other rights and remedies provided by law or in equity.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-255. Compliance with applicable laws and ordinances.

Franchisee shall, at all times during the term of its franchise, be subject to the provisions of the present Charter of the City, the present ordinances, resolutions, rules, regulations and laws of the City and the State of Tennessee, and to the provisions of any further charter, ordinance, resolution, rule, regulation or law of the City or of the State of Tennessee, so far as they may be applicable.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-256. Joint planning and construction; coordination of planned excavations.

(a) Excavations in the City's rights-of-way interrupt, impede, and interfere with the public use of those rights-of-way and can damage the pavement and landscaping. The purpose of this Section 32-256 is to reduce this disruption, interference and damage by promoting better coordination among applicants for Telecommunications Franchises and Franchisees under this Article making Excavations in the City rights-of-way and the City. Better coordination will assist in minimizing the number of Excavations being made wherever feasible, and will ensure the Excavations in City rights-of-way are, to the maximum extent possible, performed before, rather than after, the resurfacing of the rights-of-way by the City. Better coordination will also benefit all users of the City's rights-of-way through cost sharing in excavation and restoration activities.

(b) Any Franchisee owning, operating or installing Telecommunications Facilities in the City right-of-way, shall meet annually with the Administrator of Chattanooga Department of Transportation ("Administrator"), at the Administrator's request to discuss Franchisee's master plan. At such meeting, to the extent not already in possession of the City, Franchisee shall submit documentation, in a form required by the Administrator, showing a location of Franchisee's existing Facilities in the City rights-of-way.

Franchisee shall discuss with the City any major Work anticipated in the City and work to prepare a Master Excavation Plan. As used in this subsection, the requirement to identify planned major Work refers to any major work planned to occur in the ensuing three (3) years. Between the annual meetings, Franchisee shall use its best efforts to timely inform the Administrator of any substantial changes in the planned major work discussed at the annual meeting.

(c) The Administrator shall review the Master Excavation Plan and identify conflicts and opportunities for coordination of Excavations. The Administrator shall notify applicants for Telecommunications Franchises under this Article and Franchisees of such conflicts and opportunities to the extent necessary to maximize coordination of Excavation. Each applicant and Franchisee shall coordinate, to the extent practicable, with each potentially affected applicant and Franchisee to minimize disruption in the rights-of-way.

(d) To the extent permissible under State law, the City shall not disclose to the public any confidential information contained in a Master Excavation Plan submitted by an applicant or Franchisee as set forth herein.

(e) The Administrator shall prepare a Repaving Plan showing the rights-of-way resurfacing work planned by the City along with a Sidewalk Improvement Plan for sidewalk Work planned by the City. The Repaving Plan and Sidewalk Plan shall be revised and updated on an annual basis. The Administrator shall make the City's Repaving Plan and Sidewalk Plan available for public inspection. In addition, after determining the City's rights-of-way resurfacing work and sidewalk work that are proposed for each year, the Administrator shall send a notice of the proposed work to all Franchisees and all pending applicants.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-257. Wireless telecommunication advancement exception.

In keeping with the City's desires to continue to be on the forefront of technological advancement, the City may pursue, jointly, research grants and funding opportunities connected with research and the advancement of wireless telecommunication. Solely for purposes of this Chapter 32, the construction, installation, deployment, operation and maintenance of Telecommunications Facilities in the rights-of-way for non-commercial applications in the pursuit of the public good, shall require a combined annual application and franchise fee of only One Dollar ($1.00), notwithstanding the provisions of Sections 32-234 and 32-248.
(Ord. No. 13267, § 5, 1-30-18)

Sec. 32-258. Protection of trees.

Trimming of trees and shrubbery within the public right-of-way to prevent contact with Provider's Telecommunication Facilities shall be done only in accordance with the standards approved by the urban forester in accordance with the ordinances of City. Removal or pruning of any tree or shrub shall only be done upon issuance of a permit by the urban forester. When trees or shrubs in the public right-of-way are damaged as a result of work undertaken by or on behalf of Provider, Provider shall pay the City within thirty (30) days of submission of a statement by the City, the cost of any treatment required to preserve the tree or shrub and/or cost for removal and replacement of the tree or shrub with landscaping of equal value and/or the value of the tree or shrub prior to the damage or removal, as determined by the urban forester or other authorized agent of the City.
(Ord. No. 13267, § 5, 1-30-18)

Secs. 32-259—32-270. Reserved.

ARTICLE XII. STREET CONSTRUCTION

Sec. 32-271. Purpose.

The purpose of this Article is to provide specifications and procedures for acceptance of public streets, sewers, stormwater facilities, and other infrastructure dedicated to the public through subdivision plans or otherwise.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-272. Conformity to official plans.

When a tract of land to be subdivided includes any part of a proposed road or street shown on the General Plan, Land Use Plan, Major Street Plan, or any other plan adopted by the Planning Commission or City Council, such street right-of-way should be platted by the subdivider in the location so designated, and at the width specified in the subdivision regulations.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-273. Street design and construction standards.

(a) Pavement, cul-de-sac and right-of-way widths and radii must be per City of Chattanooga design and construction standards.

(b) The developer shall submit a pavement design prepared by a Tennessee licensed professional engineer for approval of the Transportation Division. For subdivisions that will be constructed in stages, the pavement design shall be based on the number of lots from all stages and on a field evaluation of the subgrade soils conducted by a Geotechnical Engineer.

The Geotechnical Engineer shall complete a field evaluation of the roadway before any roadway construction begins. The Geotechnical Engineer shall conduct a field exploration of the soils along the roadway alignment at a spacing of no greater than five hundred (500) feet and obtain samples of the subgrade soils for laboratory evaluation. A composite soil sample of each soil type shall be obtained and tested for plasticity (Atterberg limits, ASTM D4318) and standard Proctor moisture-density relationship (ASTM D698). California Bearing Ratio (ASTM D1883) tests shall be conducted on a composite sample representative of the soil conditions, as determined by the Geotechnical Engineer. The California Bearing Ratio (CBR) test shall be conducted on soaked samples.

(c) Preliminary or final plat approval by the Planning Commission does not constitute permission to begin any street or utility construction. Street and utility construction plans may be approved as a whole or in part. Construction of approved portions of the work shall not precede issuance of applicable Land Disturbing Activity Permits.

(d) Quality assurance during construction will be required. The developer shall select a Geotechnical Engineering firm from the current Tennessee Department of Transportation ("TDOT") approved list and notify the city of that selection. Geotechnical firms who wish to provide quality assurance, but are not on TDOT approval list, may submit Tennessee DOT Form DT-0330 Parts I and II for approval at the discretion of the Transportation Department. The geotechnical firm shall contract directly with the developer to provide quality assurance on the project. The developer shall be responsible for scheduling the geotechnical firm. Minimum testing requirements are described in this article. Location and scheduling of testing shall be coordinated with the City's representative for assurance of reasonable conformance with the requirements described in this article prior to performing tests to avoid the expense of retesting. Testing milestones shall be established during the Preconstruction Conference required in Section 32-288 (d) of this article. A final report by the geotechnical engineer that the quality assurance tests and inspections have been performed and the construction has been completed in substantial compliance with City of

Chattanooga design and construction standards, specifications, and applicable portions of subdivision regulations will be required before the plat is recorded. The final report shall be compiled in accordance with all applicable ASTM standards for geotechnical reporting. One (1) copy of the final report shall be given to the City.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11737, § 1, 9-6-05; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-274. Grading.

(a) Before grading is started, the roadway construction area shall be cleared of conflicting trees, and all stumps, roots, weeds, logs, heavy vegetation, and other objectionable matter, and shall be grubbed to a depth below the proposed grade in cuts and the natural ground in fills so as to expose suitable subgrade. The cleared material shall be removed from within the right-of-way limits and disposed of in such a manner that it will not become incorporated within the fills, nor in any manner hinder proper operation of the storm drainage system.

(b) Suitable material may be used in the construction of embankments or at any other place needed. If rock is encountered, it shall be removed as determined by the geotechnical engineer. Where boulders are encountered, they should be removed 6 inches below the proposed grade. Onsite materials may be used, provided they are used according to the recommendations of the Geotechnical Engineer. If imported fill is used to construct road embankments, the materials shall meet the following requirements:

(1) Standard Proctor Maximum Dry Density ≥ one hundred (100) pounds per cubic foot within the top two (2) feet of finished subgrade elevation; or ninety-five (95) pounds per cubic foot below the top two (2) feet.

(2) Liquid Limit ≤ 60.

(3) Plasticity Index ≤ 35.

(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 12824, § 1, 3-25-14; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-275. Utility construction.

(a) Prior to any base material being placed, all underground work that is to be within the right-of-way or the right-of-way subgrade shall be completed and backfilled with stone, if necessary. This includes all drainage, sewerage, water, telephone, electrical, gas, cable television, and other utilities to the end that the completed roadway will not be disturbed for the installation of any utility main or service connection for any utility.

(b) Sanitary sewer shall be constructed in accordance with City of Chattanooga Design and Construction standards and Tennessee Department of Environmental Health requirements.

(c) Storm sewers shall be constructed in accordance with Best Management Practices (BMP) and City of Chattanooga design and construction standards.

(d) All underground utility conduits and piping shall be installed prior to proof rolling and placement of base material. Installation and backfill shall be observed by the Geotechnical Engineer. In the event all utility construction is not complete due to circumstances beyond the control of the developer and/or contractor, proof rolling and placement of base material may begin subject to completion of all underground conduits and piping beneath the road and two (2) feet beyond the edge the proposed base material. A City representative will be present for up to two (2) sanitary sewer tests. One (1) test will be performed prior to proof rolling and placement of base material. A second test will be performed after all utility construction within the right-of-way is complete. In the event all utility construction is complete prior to the first test, only one (1) test will be performed.

(e) Utility trenches shall be backfilled with either crushed rock, soil, or flowable fill according to the following requirements:

(1) Bedding: All utility trenches shall be bedded with a six (6) inch layer of either open-graded crushed rock or sand. Bedding shall be placed and compacted using a vibratory compactor. Where necessary, bell holes shall be cut into the bedding at pipe joints locations.

(2) Initial Fill: After the utility line has been placed, the utility trench shall be backfilled with open graded crushed rock or sand to at least twelve (12) inches over the top of the utility. The backfill shall be compacted using a vibratory compactor.

(3) Secondary Fill: From twelve (12) inches over the top of the utility to eighteen (18) inches below the subgrade elevation, the utility trench may be backfilled with either open-graded crushed rock, sand, or soil fill. Sand or soil backfill shall be placed in maximum one (1) foot layers and compacted. Sand or soil backfill shall be compacted to achieve at least ninety-five percent (95%) of the standard Proctor maximum dry density. Density tests shall be conducted for every one (1) foot layer of backfill at a frequency of one (1) test per one hundred (100) feet for utilities running along the longitudinal axis of the road, or one (1) test for utilities crossing the road. Open-graded crushed rock backfill does not require compaction in lifts, but must be consolidated using vibratory compaction equipment. The placement and consolidation must be observed by the geotechnical engineer.

(4) Final Backfill: The final eighteen (18) inches of the utility trench backfill shall be backfilled with dense-graded crushed rock. The backfill shall be compacted to achieve at least ninety-five percent (95%) of the standard Proctor maximum dry density. Density tests shall be conducted at a frequency of one (1) test per fifty (50) feet for utilities running along the longitudinal axis of the road, or two (2) tests for utilities crossing the road.

(5) Flowable fill: Flowable fill may be used as backfill for utility trenches. The material shall be designed to achieve a compressive strength of one hundred fifty (150) to five hundred (500) psi. The material shall meet the requirements of ACI 229R-99, Standard Specifications for Controlled Low Strength Cementitious Materials. Flowable fill may be used instead of the secondary fill and the final backfill. The material supplier shall submit a mix design verified by an independent testing laboratory within the past six (6) months.

(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-276. Subgrade.

(a) All contractors must contact the Geotechnical Engineer prior to beginning subgrade work. This is imperative or the work may not be accepted.

(b) The Subgrade shall be prepared to the lines and grades as designed and staked by the Subdivision Engineer and to correspond to the cross section as indicated on the typical cross section approved by the Transportation Department.

(c) After the subgrade has been graded and shaped, it shall be scarified to a depth of eight (8) inches, then re-compacted to achieve a density of at least ninety-eight percent (98%) of the standard Proctor (ASTM D698) maximum dry density. The moisture content shall be within three percent (3%) of the optimum moisture content. The Geotechnical Engineer will conduct field density tests at a spacing of not more than one hundred (100) feet, staggered right and left of the centerline, with a minimum of three (3) tests. Any areas that do not meet compaction requirements shall be re-compacted and retested.

(d) If an existing subgrade passes both the proof rolling and density tests, then scarifying and re-compacting will not be required. Proof rolling shall be performed using a fully-loaded, dual-tandem dump truck. The subgrade shall be trafficked by parallel passes of the truck starting at one (1) side of the roadway. Each pass shall overlap the preceding pass to ensure complete coverage. Two (2) complete proof rolling coverages are required.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 12823, § 1, 3-25-14; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-277. Fill and embankments.

(a) Any roadway embankment steeper than a three (3) to one (1) slope, shall be specially designed by a geotechnical engineer and then built to design specifications.

(b) The embankment shall be protected from erosion using stormwater Best Management Practices.

(c) Areas requiring two (2) feet or more of fill shall be observed and tested by the Geotechnical Engineer. Fill shall be placed in level lifts, thickness of loose lifts shall not exceed eight (8) inches, and compacted to at least ninety-five percent (95%) of the standard Proctor maximum dry density. The moisture content shall be within three percent (3%) of the optimum moisture content. The Geotechnical Engineer shall conduct field density tests for each one (1) foot layer of fill placed. Testing frequency shall be at least one (1) test per ten thousand (10,000) square feet, or one (1) test every two hundred (200) feet along the roadway centerline, staggered left and right of the centerline. A minimum of three (3) tests is required for each one (1) foot layer. Any areas that do not meet compaction requirements shall be re-compacted and retested.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-278. Base.

(a) All contractors must contact the Geotechnical Engineer prior to beginning the base operation. This is imperative or the work may not be accepted.

(b) Before placing base material, the subgrade shall be proof-rolled in the presence of the Geotechnical Engineer. Proof-rolling shall be performed using a fully-loaded, dual-tandem dump truck. The subgrade shall be trafficked by parallel passes of the truck starting at one (1) side of the roadway. Each pass shall overlap the preceding pass to ensure complete coverage of the roadway cross-section. Two (2) complete proof-rolling coverages are required. Any areas that deflect or yield, in the opinion of the Geotechnical Engineer, shall be corrected before base material is placed.

(c) Base material shall be a dense-graded mineral aggregate base meeting the requirements of the Tennessee Department of Transportation "Standard Specifications for Road and Bridge Construction" section 303, Type A Grade D. The contractor shall provide a letter of certification from the base material supplier that the materials meet these requirements. Other types of base material may be used, if included in a design by a professional engineer and approved by the Geotechnical Engineer and the Transportation Department. The base material shall be compacted to at least ninety-five percent (95%) of the standard Proctor maximum dry density.

(d) The base will be tested for thickness and compaction by the Geotechnical Engineer. Tests will be conducted at a maximum spacing of two hundred (200) feet, staggered right and left of the centerline.

(e) Tolerances for base thickness. The minimum base design thickness shall be in accordance with the City of Chattanooga Standard Drawings. The average of all measurements shall be greater than or equal to the design thickness. Any test that is less than the design thickness, but no more than one-half (0.5) inches

less than the design thickness, may be evaluated by the Geotechnical Engineer for acceptance or for corrective actions. Any test that is more than one-half (0.5) inches below the design thickness will require corrective actions.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 12823, § 1, 3-25-14; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-279. Prime.

(a) After the base course has been thoroughly compacted and worked to the lines and grades as shown on the typical cross section, it shall be dampened if necessary.

(b) TDOT approved Asphalt Emulsion primers may be used. Application shall be in accordance with manufacturers recommendations.

(c) The type and grade of prime material shall depend on the condition of the base course and shall be approved by the Geotechnical Engineer and the City. The prime coat may be eliminated if approved by the Geotechnical Engineer and the City.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-280. Binder.

(a) Contractors must contact the Geotechnical Engineer prior to beginning the binder course installation. This is imperative or the work may not be accepted.

(b) The binder asphalt shall be placed over the prime coat. The binder asphalt shall be compacted to an average density of at least ninety-two percent (92%) of the theoretical maximum density as determined by the Marshall method (fifty (50) blows), with no individual test less than ninety percent (90%). The theoretical maximum density shall be provided by the asphalt binder supplier. The Geotechnical Engineer will test the thickness and compaction by obtaining cores every five hundred (500) feet, or a minimum of three (3) cores. If any area does not meet the minimum thickness or compaction requirements, additional cores will be taken at one hundred (100) foot intervals until two consecutive cores meet the requirements. Areas that do not meet the requirements shall be removed and replaced. As an option, the Geotechnical Engineer can be present during construction to check the laydown thickness and temperature of the asphalt and to conduct nuclear density tests after compaction. In this case, coring will be reduced to three (3) cores or one (1) every two thousand (2,000) feet. In any case, a minimum of three (3) cores will be required.

(c) The binder asphalt shall meet the requirements of TDOT standard specifications section 307. Either 307B, 307BM or 307BM-2 mixes may be used. The minimum binder design thickness shall be in accordance with the City of Chattanooga Standard Drawings. .

(d) Binder thickness tolerances. The average thickness of the binder shall be greater than or equal to the design thickness, with no individual test more than one-quarter (¼) inch less than the design thickness. Areas deficient in thickness shall be evaluated by additional coring at one hundred (100) foot intervals to determine the area of deficient thickness. The deficiency may be corrected by increasing the thickness of the surface asphalt.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-281. Backfill curbs.

Backfill behind curbs shall be completed promptly after the curbs are installed. Until the backfill behind curbs is completed, measures should be taken to minimize infiltration of water to the pavement sub grade.

Careful attention must be given to slope of backfill to prevent water penetration behind curbs. Curbs shall be installed in accordance with standard City specifications as established by the Transportation Department.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 12823, § 1, 3-25-14; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-282. Tack coat.

A tack coat shall be applied over the binder before placing the surface asphalt. The tack coat shall be CRS-2 emulsified asphalt, applied at a rate of five-hundredths (0.05) gallons per square yard of residual bituminous material. Other tack materials may be used or the tack coat may be eliminated, if approved by the Geotechnical Engineer and the City.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-283. Surface.

(a) The surface asphalt shall be placed over the binder asphalt as soon as possible, but no more than ten (10) days after placing the binder, to avoid rainwater infiltration and to prevent damage from truck traffic. The time may be extended at the Transportation Department's discretion to deal with unusual circumstances, so long as the road continues to meet the structural requirements of this regulation. The surface asphalt shall be compacted to an average density of at least ninety-two percent (92%) of the theoretical maximum density as determined by the Marshall method (fifty (50) blows), with no individual test less than ninety percent (90%). The theoretical maximum density shall be provided by the asphalt surface supplier. The Geotechnical Engineer will test the thickness and compaction by obtaining cores every five hundred (500) feet, or a minimum of three (3) cores. Areas that do not meet the requirements shall be removed and replaced. As an option, the Geotechnical Engineer can be present during construction to check the laydown thickness and temperature of the asphalt and to conduct nuclear density tests after compaction. In this case, coring will be reduced to three (3) cores or one (1) every two thousand (2,000) feet. In any case, a minimum of three (3) cores will be required.

(b) The surface asphalt shall meet the requirements of TDOT standard specifications section 411. The minimum design thickness of the surface asphalt shall be in accordance with the City of Chattanooga Standard Drawings.

Asphalt thickness tolerances. The average thickness of the asphalt (binder plus surface) shall be greater than or equal to the design thickness, with no individual test more than one-eight (⅛) inch less than the design thickness. Areas deficient in thickness shall be evaluated by additional coring at one hundred (100) foot intervals to determine the area of deficient thickness. Deficient areas shall be corrected.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 12823, § 1, 3-25-14; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-284. Seasonal limitations of asphalt.

The outside temperature away from artificial heat and in the shade shall be forty degrees (40°) and rising for plant mix.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-285. "As built" drawings.

(a) Upon completion of the construction of the required improvements, and prior to final acceptance by the Transportation Department, the developer will furnish "As Built" drawings of all sanitary sewer and stormwater structures. A registered professional engineer or surveyor will certify that the information furnished is a true and complete representation of the improvements that were constructed by the

developer. The "As Built" drawings shall be furnished in electronic format, and shall be the true and accurate location and elevation of the structures shown, with a positional tolerance of seven-hundredths (0.07) feet horizontal and fourteen-hundredths (0.14) feet vertical. English units and NAD 83 State Plane co-ordinates shall be used. Structures shall be identified by the number shown on the drawing or provided by the engineer. The electronic file, in ASCII format, shall provide the following minimum information for sanitary sewer manholes and drainage structures, including drainage manholes:

(1) Sanitary Sewer Manhole or Drainage Structure Number;

(2) Northing, Easting, and Rim Elevation;

(3) Invert Elevation; and

(4) Size, material, and direction for each pipe entering and leaving the sanitary sewer manhole or drainage structure.

(b) All drainage structures and sanitary sewer manholes shall be located by the center of the structure or the manhole cover when fully seated.

(c) The electronic file, in ASCII format, shall provide the following minimum information for stormwater detention basins when constructed as part of the development;

(1) Detention Basin Number;

(2) Northing, Easting, and Elevation of limits of detention basin;

(3) Northing, Easting, and Elevation of bottom of detention basin;

(4) Northing, Easting, and Elevation of corners of overflow structure; and

(5) Invert Elevation, size, material, and direction for each pipe entering and leaving the detention basin.

Prior to final acceptance by the Transportation Department and/or issuance of any Certificate of Occupancy, all new developments, redevelopments, and/or additions shall submit an inventory of the constructed stormwater drainage system, whether public or private, to the City of Chattanooga in electronic format. Electronic As-Built drawings shall be submitted in AutoCAD and .pdf format and shall show plainly the approved and constructed layout of the stormwater systems at the associated site. The as-built drawing shall include all stormwater features on the development, whether new or existing, including the outfall to the City drainage system (ex: catch basins, conduits, hydrologic features including ponds, streams, culvert inlets and outfalls, and all pervious surfaces, etc.).

Certain engineered water quality conveyances such as engineered swales and grass filter strips have a required slope and cross section to give maximum water quality benefits for the area and will therefore also require as-built cross sections to determine if they are built per designed specifications.

As-Built Drawings shall at a minimum comply with the following items:

• A registered professional engineer or surveyor will certify that the information furnished is a true and complete representation of the improvements that were constructed by the developer.

• The design engineer shall certify that the information reflects the original design or is an approved substitute for the original design by completing the As-Built Detention Facility Engineer's Certification Form (Attached).

• The As-Built drawings shall be furnished in electronic format (both an AutoCAD R13 or greater and a .pdf file shall be required) and shall be the true and accurate location and elevation of the structures shown, with a positional tolerance of seven-hundredths (0.07) feet horizontal and fourteen-hundredths (0.14) feet vertical.

• English units and NAD 83 State Plane co-ordinates shall be used. ASCII format may be used if the table is included in the drawing.

• All drainage structures and manholes shall be located by the center of the structure or the manhole cover when fully seated.

• Drainage features (including drainage manholes) shall at a minimum include the following:

(1) Drainage Structure Number;

(2) Drainage Structure Label (ex: oil skimmer, water quality unit type/model, etc.);

(3) Northing, Easting, and Rim Elevation;

(4) Invert Elevations;

(5) Size, Material, and Direction of flow for each pipe entering and leaving the drainage feature; and

(6) Detail drawings of water quality features including but not limited to profiles, contours, and elevations (ex: bio-retention areas, swales, grass filter strips, etc.).

• Detention systems shall at a minimum include the following:

(1) Detention System Number;

(2) Northing, Easting, and Elevation of the limits, corners, and bottom of detention systems;

(3) Invert Elevation, Size, Material, and Direction of flow for each pipe entering and leaving the detention system;

(4) Detail drawing for all outlet control and emergency overflow structures;

(5) Detail drawing for any other detention systems as necessary (ex: underground detention system); and

(6) Required and provided detention storage volume.

(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 12606, § 1, 5-29-12; Ord. No. 12823, § 1, 3-25-14; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-286. Geotextiles.

Geotextiles may be incorporated into pavement designs if necessary for subgrade soil conditions. Geotextiles shall meet the requirements of AASHTO M288-96 (or more recent editions). Geotextiles shall meet MARV strength values for Class 2 if the subgrade CBR three (3) and Class 1 for CBR ≤ three (3).
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-287. Optional rigid pavements.

The developer may choose to construct (concrete) rigid pavements instead of flexible (asphalt) pavements. Rigid pavement shall be designed and constructed to meet the following requirements:

(a) Grading: The grading requirements shall be the same as Section 32-274, except the requirements for liquid limit and plastic index are not applicable. The soils shall have a minimum CBR of three (3).

(b) Subgrade: The subgrade requirements shall be the same as Section 32-276

(c) Base: The base requirements shall be the same as Section 32-278. The base thickness shall be a minimum of four (4) inches.

(d) Concrete Mix: The concrete mix shall be designed to provide a twenty-eight (28) day compressive strength of four thousand (4,000) pounds per square inch with a four (4) inch (± 1) slump and

maximum water cement ration of forty-five-hundredths (0.45). An air entraining agent shall be added to achieve a five percent (5%) air content. The concrete mix shall have a nominal maximum aggregate size of one and one-half (1½) inches.

(e) Concrete Design: The concrete thickness shall be six (6) inches. Reinforcing is not required. Control joints shall be spaced regularly in a square pattern as per the PCA recommendations. A longitudinal joint shall be constructed along the centerline. Lateral joints shall be spaced the same as the lane width. Joints shall be sealed using an approved joint sealer. The joint sealer shall be submitted to the Geotechnical Engineer for approval before installation.

(f) Concrete Placement: Concrete placement shall be according to ACI 304 Recommended Practice for Measuring, Mixing, Transporting, and Placing Concrete. Concrete shall be placed directly on the base. The ambient temperature at the time of placement shall be at least forty degrees (40°) F, and the forecast temperature in the first twenty-four (24) hours after placement shall be at least thirty-two degrees (32°). No standing water or frozen base shall be present at the time of placement. The concrete mix is expected to arrive at the site at the correct slump. If trucks arrive with a slump more than one (1) inch below the specified slump, then a maximum of twenty (20) gallons of water may be added, with the approval of the concrete supplier, to adjust the concrete slump. No water may be added after placement begins. If trucks arrive with a slump more than one (1) inch above the specified slump, the truckload shall be rejected. Concrete shall be placed within ninety (90) minutes of the batch time.

(g) Concrete Protection and Curing:

(1) Protect freshly placed concrete from premature drying and excessive cold or hot temperatures. Comply with ACI 306.1 for cold-weather protection and with ACI 305R for hot-weather protection.

(2) Curing shall be accomplished in strict compliance with ACI 308.

(h) Finish: The concrete finish shall provide a durable, smooth surface, free of irregularities, but skid-resistant (such as burlap drag or broom finish).

(i) Quality Assurance: An ACI certified representative of the geotechnical engineer shall be present to monitor concrete placement and conduct quality assurance testing. The representative shall keep a record of each truck load of concrete delivered to the site, including the information provided on the batch ticket and the amount of water added at the site. The first load of concrete shall be checked for slump, air content, and unit weight to determine acceptance. Compressive strength samples shall be taken randomly from the first thirty (30) cubic yards, and every fifty (50) cubic yards after that. Compressive strength samples shall include a set of six (6) cylinders. Two (2) cylinders shall be tested at seven (7) days and two (2) at twenty-eight (28) days and two (2) for reserve. The remaining cylinder shall be kept in reserve. Slump and air content tests shall be conducted for each set of compressive strength samples taken, or if visual indications of changes in the slump or other concrete properties are observed.

(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Sec. 32-288. Plan review and preconstruction conference.

(a) Prior to any street or utility construction, five (5) sets of engineering plans for road and utility construction shall be submitted to the Development Office to be stamped with a sign-off block for each department reviewing these five (5) sets of proposed plans.

(b) The design engineer shall make any revisions or changes required by the various reviewers to bring the proposed design into conformance with the City of Chattanooga design and construction standards and the City of Chattanooga Subdivision Regulations. The design engineer should then affix his seal and signature to the five (5) revised plans and return these revised plans to the Development Office for final review and approval.

(c) N.P.D.E.S., A.R.A.P., T.V.A, Corps of Engineers, and other required permits and approvals, if necessary, should accompany these revised plans.

(d) A preconstruction conference shall be held prior to beginning construction on a new subdivision involving street construction work, sanitary sewer, or stormwater facilities. The conference shall be attended by the developer, the contractors, a representative of the City, and the geotechnical engineer.
(Ord. No. 11451, § 1, 9-2-03; Ord. No. 11882, § 1, 9-5-06; Ord. No. 14093, § 1, 3-12-24)

Secs. 32-289—32-299. Reserved.

ARTICLE XIII. CHATTANOOGA TREE ORDINANCE*

DIVISION 1. GENERAL

Sec. 32-300. Title.

This article shall be known and may be cited as the Chattanooga Tree Ordinance.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-301. Purpose.

The purpose of this ordinance is to encourage the planting, preservation, and proper care of trees and tree canopy within the City of Chattanooga because of the unique social, economic and environmental benefits they provide the community such as assisting the natural control of solar heat, improving water quality, soil conservation, stormwater control and flood resiliency, air pollution and noise abatement, providing a haven for community wildlife and in providing residents relief from the increasing complexities of the man-made urban environment. Urban trees are a fragile public resource and may be damaged or destroyed through malicious, careless, or even well-intentioned actions. This public resource may best be improved and protected by a program of comprehensive management and regulation of planting, maintenance, and removal, administered by an office within municipal government. This program shall be known as the "Urban Forestry Program," and shall be housed in the Department of Public Works.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-302. Definitions.

For the purpose of this Article the following terms, phrases, words, and their derivations shall have the meanings given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural include the singular, and words in the singular include the plural. The word "shall" is mandatory and not merely directory.

***Editor's note—**Ord. No. 14217, § 1, adopted April 8, 2025, repealed the former Art. XIII., §§ 32-300—32-319, and enacted a new Art. XIII as set out herein. The former Art. XIII pertained to similar subject matter and derived from Ord. No. 9315, § 1, adopted Jan. 30, 1990; Ord. No. 12619, § 2, adopted June 26, 2012; Ord. No. 12823, § 1, adopted March 25, 2014.

Caliper — trunk diameter measurement for nursery stock, made at six (6) inches above grade.

City — the City of Chattanooga, Tennessee.

City Forester — the City Forester or other qualified designated official of the City of Chattanooga, assigned to carry out the enforcement of this Article.

City Property — all real property which is owned or leased by the City or which is maintained by it, or any part of any public right-of-way.

Critical Root Zone (CRZ) — area around a tree defined by a radius extending from the trunk of the tree a distance twelve times the tree's DBH. This equates to one foot of CRZ radius for every inch of DBH.

Dead, Diseased, or Hazardous (DDH) — describes a tree that is dead, or diseased or injured to the extent that death is imminent within two years, as determined by the City Forester, or is in imminent danger of falling, or is so close to existing or proposed buildings so as to endanger them, or physically interferes with utility services in a manner that cannot be corrected by anything less than destruction or removal of the tree, or creates unsafe vehicular visual clearance, or is otherwise deemed a hazard by the City Forester or designee.

Diameter at Breast Height (DBH) — diameter measurement for existing trees, made at four and one-half (4.5) feet above the ground.

Landscape tree — A tree within a regularly maintained area, including turf, mulched beds, landscaped beds, or other maintained plantings.

Limits of Disturbance (LOD) — Boundary on all construction and development plan submissions including Civil and Landscape plans delineating the full extent of soil disturbance and associated construction activities, including areas of grading, storage, temporary construction parking, and equipment travel. The boundary shall be shown graphically as a thick dashed line and labeled.

Notable tree — Any tree meeting criteria for size and community significance as outlined in section 32-317(b), and which has been nominated to and accepted by the Tree Commission as such.

Offset Payment — fee assessed for Private Property Trees when fewer total caliper inches are provisioned than required. Payment is calculated using the Tree Replacement Fee

On-Site Trees — Trees required by the Landscape Ordinance to be planted on private property adjoining the City of Chattanooga public right-of-way.

Park — shall include all public parks having individual names.

Planting Plan — a scaled drawing depicting all plant materials, specifications, and any other information required by the City Forester for the evaluation of permit applications.

Plant Material Standards - generally accepted standards for plant material size and condition as defined in the current edition of the American Standard for Nursery Stock (ANSI Z60.1).

Prohibited Tree — Any tree listed on the Tennessee Invasive Plant Council's Invasive Plants of Tennessee list.

Property Owner — shall mean the person owning property as shown by the Hamilton County Assessor of Property and/or the Hamilton County Register of Deeds.

Protected Tree — A tree which may not be removed or disturbed without a permit. This category includes most Public Property Trees as specified in this Article, and Notable Trees on private property.

Pruning Standards — generally accepted standards for pruning as defined in the current edition of American National Standards Institute ANSI A-300 and the current ISA Companion booklet: Best Management Practices — Tree Pruning.

Public Property Tree — shall include any tree now or hereafter growing on any City street, park, or other City-owned property. This definition includes Street Trees, Landscape Trees, and trees in Wooded Areas growing on City property.

Private Property Tree — shall include any proposed or existing trees now or hereafter growing on private property used to meet any City of Chattanooga Landscape or Zoning ordinance or condition.

Recompense Payment — fee assessed for permitted removal of or significant disturbance to Public Property Trees, as specified in this Article. Payment is calculated using the Tree Replacement Fee

Right-of-way — land lying between property lines on either side of streets, avenues, or ways within the City.

Right-of-way trees — trees, shrubs, and all other woody vegetation growing with a City right of-way.

Streetscape — City of Chattanooga public right-of-way infrastructure, which may include trees, pedestrian lighting, sidewalks, crosswalks, ADA ramps, and/or curb and gutter. The Department of Public Works may require streetscapes to be improved by adjoining property owners as a condition of redevelopment.

Street Trees — trees growing between the sidewalk and curb, either in a tree well, verge, or planter, or in a tree well surrounded by a sidewalk on three sides.

Structural Root Zone — area within the Critical Root Zone defined by a radius extending from the trunk of the tree a distance three times the tree's DBH.

Topping — the severe and/or indiscriminate cutting back of limbs or trunks within the canopy of a tree so as to remove the normal canopy and disfigure the tree.

Timber Harvesting Plan — A plan submitted to the City that provides information on landowner, timber owner, timber operator, specific management practices and objectives, reforestation techniques, and other supporting information needed to demonstrate that a timber harvest operation will follow best management practices as set forth by the Tennessee Department of Agriculture, Division of Forestry.

Tree — for purposes of this article only, trees shall be considered to be self-supporting plants of woody structure with an anticipated mature height of at least sixteen (16) feet.

Tree Bank — account maintained by the Public Works Land Development Office to collect all Tree Ordinance related fees and fines, to be used for tree planting, maintenance, and other urban forestry-related expenses.

Tree Canopy — the layer of leaves, branches, and stems of trees that cover the ground when viewed from above. Tree Canopy may be estimated from recent orthophotography and determined most accurately from the City of Chattanooga's most recent Tree Canopy Assessment.

Tree Canopy Assessment — GIS measurement of tree canopy within the City of Chattanooga developed from algorithmic classification of satellite imagery, orthophotography, lidar, or a combination of these data sources.

Tree Canopy Line — the outer edge of Tree Canopy as viewed from above using remotely sensed data, or on the ground looking up, and accurately represented on a Tree Survey.

Tree Replacement Fee — fee set by City Council as a specific cost per inch of trunk diameter, approximating the Urban Forestry Program's average costs for tree planting and establishment. See fee table in [31-322].

Tree Protection Fencing — Fencing constructed around the Critical Root Zone of a tree, or the edge of a tree well, during construction, intended to protect the tree from trunk wounds and soil compaction.

Tree Protection Best Management Practices (BMPs) for Contractors and Builders Technical Guide (City of Chattanooga) — a published reference for tree protection, care, and maintenance during construction.

Tree Survey — A scaled plan accurately locating trees and other requirements as specified in this Article, part of development plan submissions.

Tree Well — Sidewalk cutout for street tree planting, with hardscape on at least three sides. Synonymous with: Tree pit, cutout.

Tree Work — The act of planting, pruning, trimming, fertilizing, treating, removing, or any other action upon or affecting a tree.

Urban Forestry Program — a proactive program for managing trees within the City as a public resource, made up of City Forester, professional staff, supervisory staff, and skilled workers.

Verge — that part of a street or highway, not covered by sidewalk or other paving, lying between the property line and that portion of the street or highway usually used for vehicular traffic. Synonymous with: Treelawn, planting, strip, utility strip.

Wooded — describes land covered by a thick growth of trees at least sixteen (16) feet tall and an unmaintained natural ground layer.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-303. Establishment of a Tree Commission.

(a) There shall be created a commission to be known and designated as the "Chattanooga Tree Commission" composed of nine (9) persons, who shall be residents of the City of Chattanooga or of Hamilton County. Said members shall be appointed by the mayor with approval a majority of the City Council and shall have at least five (5) members who are professionally trained in related fields as an Arborist, Landscape Architect, Biologist, Realtor/Developer/Home Builder or General Contractor, and an Engineer/Architect/Surveyor. The City Forester, and other professionals designated by the City Forester shall serve as advisors to the Commission. All members of the Commission shall serve without pay. The members shall be appointed for a term of four (4) years and serve until their successors are duly appointed and approved by the City Council. Successors to those members appointed by the Mayor shall thereafter be appointed for terms of four (4) years. Vacancies caused by death, resignation, or otherwise, shall be filled for the unexpired term in the same manner as original appointments are made.

(b) *Organization.* Within a reasonable time after the appointment of said Commission and approval of the members thereof, upon call of the Mayor, the Commission shall meet and organize by election of a chair, a vice chair and a secretary. The Commission shall then provide adoption of rules and procedures and for holding of regular and special meetings as the Commission shall deem advisable and necessary in order to perform the duties set forth.

(c) *Duties.*

(1) The Commission shall study the problems and determine the needs of the City of Chattanooga in connection with its urban forestry program and report from time to time to the Governing Body

of the City as to desirable legislation concerning the tree program and related activities for the City. The Commission shall also make annual recommendations to City Council regarding changes in tree-related fees and/or changes to this ordinance.

(2) The Commission shall evaluate and recommend to the Administrator of Public Works candidates for the office of City Forester.

(3) The Commission shall assist the properly constituted officials of the City, as well as the Governing Body and citizens of the City, in the dissemination of news and information regarding the selection, planting, and maintenance of trees within the incorporated city limits, whether they be on private or public property.

(4) The Commission shall provide prior notice and maintain minutes of all regular and special meetings pursuant to Tennessee law at which the subject of trees, insofar as it relates to the City, may be discussed by the members of the Commission, officers and personnel of the City and its several divisions, and all others interested in the urban forestry program.

(5) The Commission shall hear and decide appeals from permitting decisions of the City Forester as set forth in Sec. 32-306. Any appeal from the actions of the Commission shall be filed in writing within thirty (30) days of the action of the Tree Commission with the Land Development Office of the City to be considered by the Board of Zoning Appeals.

(6) The Commission shall hear cases regarding alleged violations of this Article and shall make written findings of facts and recommendations for abatement and/or civil penalty for each alleged violation. The alleged violator may voluntarily follow the recommendations of the Commission or may seek to have their case considered by the Administrative Hearing Officer by filing a notice with the City Forester.

(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-304. Establishment of the position of City Forester.

(a) *Appointment.* The City Forester shall be employed by the City of Chattanooga upon recommendation by the Administrator of Public Works. They shall be a person skilled and trained in the arts and sciences of municipal arboriculture, and shall hold a college degree in urban forestry, arboriculture, ornamental or landscape horticulture, or other closely related field. He or she shall have had at least six (6) years' experience in municipal urban forestry work or its equivalent. The office of the City Forester shall be an administrative unit of the Department of Public Works. Should the office of City Forester be vacant, the authority of that office shall be transferred to a designee determined by the Administrator of the Department of Public Works until such time as the City Forester position is filled.

(b) *Duties and Authority.*

(1) *General.* The City Forester shall have the authority and jurisdiction of regulating the planting, maintenance, and removal of trees on streets and other publicly owned property to ensure safety or preserve the aesthetics of such public sites. The City Forester shall promulgate the rules and regulations of the Arboricultural Specifications and Standards of Practice governing the planting, maintenance, removal, fertilization, pruning, and bracing of trees on the streets, parks and other public places in the City, and shall direct, regulate, and control the planting, maintenance and removal of all trees growing now or hereafter in any public area of the City. He or she shall cause the provisions of this Article to be enforced. The City Forester shall coordinate with the Public Works Department officials in matters concerning trees which may be a hazard to traffic safety. The City Forester shall also coordinate with the Public Works Department officials in matters related to streetscape of public right-of-way.

(2) *Permit Authority.* The Land Development Office shall administer the Tree Permit. The City Forester, or their designee, shall have the authority to approve or deny permits for planting, maintenance, and/or removal of Public Property Trees. It shall also be his or her duty to supervise or inspect all work done under a permit issued in accordance with the terms of this Article.

(3) *Urban Forestry Planning.* The urban forester shall have the authority to formulate and amend urban forestry design and management planning documents as needed, conduct and maintain a tree inventory, and create other relevant documents for the urban forestry program with the advice and assistance of the Chattanooga Tree Commission.

(4) The City Forester and designated staff shall be appointed as special police officers of the City only after written request by the City Forester, successful completion of a background investigation, and approval by resolution of the City Council. After being sworn by a judge of the Chattanooga City Court ("City Court"), the holders of such special police commissions shall have, possess and exercise every power granted by such commissions, but such special police officers shall not be treated or classified as regular police officers of the City.

(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-305. Interference with City Forester.

No person shall hinder, prevent, delay, or interfere with the City Forester or any of their assistants while engaged in carrying out the execution or enforcement of this Article; provided, however, that nothing herein shall be construed as an attempt to prohibit the pursuit of any remedy, legal or equitable, in any court of competent jurisdiction for the protection of property rights by the owner of any property within the City.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-306. Right to appeal decision of City Forester.

Any aggrieved party shall have a right to appeal any permitting decision of the City Forester and/or their designee to the Tree Commission. If a party wishes to contest a permitting decision they shall, within ten (10) business days from the date of receipt of such decision, request in writing a hearing before the Tree Commission for a review and/or hearing on said decision. Any permitting decision of the Tree Commission shall be final, subject to an appeal filed in writing within thirty (30) days of the action of the Tree Commission with the secretary of the Board of Zoning Appeals of the City. The Board of Zoning Appeals shall make a final decision on all requests for review of any action taken by the City Forester, designated staff, and the Tree Commission except as otherwise provided by Tennessee law.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-307. Legality of article and parts thereof.

Should any section, clause, or provisions of this Article be declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of the Article as a whole, or parts thereof, other than the part so declared to be invalid.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-308, 32-309. Reserved.

DIVISION 2. PUBLIC PROPERTY TREE MAINTENANCE, PROTECTION, AND PLANTING

Sec. 32-310. Public Property Tree care.

(a) City authority on City-owned streets and properties: The City shall have the right to plant, prune, maintain and remove trees, plants, branches and shrubs within the property lines of all City streets, alleys, avenues, lanes, boulevards, or other City-owned properties, as may be necessary to insure public safety or to preserve or enhance the symmetry and beauty of such public grounds.

(b) Private planting on City owned streets: This section does not prohibit the planting of street trees by adjacent property owners providing that the selection and location of said trees is in accordance with Sections 32-311 and 32-312 of this Article.

(c) Damage: Unless specifically authorized by the City Forester, no person, firm, or city department shall intentionally damage, cut, carve, transplant, or remove any Public Property Tree; attach any rope, wire, nails, advertising posters, or other contrivance to any tree; allow any gaseous, liquid, or solid substance which is harmful to trees to come in contact with any Public Property Tree or the tree's Critical Root Zone.

(d) Topping: It shall be unlawful for any person, firm or city department to top any street tree, park tree, or other tree on public property. Trees severely damaged by storms or other causes, or certain trees under utility wires or other obstructions where other pruning practices are impractical may be exempted from this provision by agreement of the City Forester.

(e) Tree maintenance practices: Any pruning, and other tree maintenance practices performed on a Public Property Tree shall conform to the current edition of American National Standards Institute ANSI A-300 and the current ISA Companion booklet: Best Management Practices — Tree Pruning.

(f) Stumps: All stumps of removed City owned trees shall be removed below the surface of the ground so that the top of the stump shall not project above the surface of the ground.

(g) Construction protection:

(1) Tree protection shall be installed by the Tree Ordinance Permit holder for all Public Street and Landscape trees, and for any other groups of Public Property Trees designated by the City Forester or designee near any excavation or construction of any building, structure, street work, or land disturbance. Tree protection shall also be installed the Land Disturbing Permit holder for all Private Property Trees used to meet any ordinance or zoning condition near any excavation or construction of any building, structure, street work, or land disturbance.

(2) Standard tree protection shall consist of fencing installed at the Critical Root Zone radius, or for Street Trees, at the edge of tree wells if sidewalks are to be undisturbed. Fencing specifications are detailed in the Arboricultural Specifications manual, and may be modified by the City Forester, based on site conditions. No vehicular traffic, equipment or material storage, or other encroachment within tree protection fencing is permitted during construction without approval from the City Forester or designee.

(3) Where construction activities necessitate encroachment within a tree's Critical Root Zone, the details of such activities must be reviewed and approved as part of the Tree Ordinance Permit by the City Forester or designee. Excepting required streetscape improvements, disturbance of greater than 25% of the Critical Root Zone or any excavation within the Structural Root Zone will be treated as tree removal, for the purpose of replanting and recompense, even though the City Forester or designee may elect to retain the trees. Additionally, removal of more than 25% of a tree's live crown or trunk wounds totaling more than 25% of the trunk circumference will be treated as tree removal, for the purpose of replanting and recompense, even though the City Forester or designee may elect to retain the trees.

(h) Street tree planting requirements: during land development, where site conditions meet all applicable Zoning, Land Disturbing, and Transportation standards, the City Forester shall require street tree planting as part of streetscape improvements, specifying tree species, caliper, and planting standards. (Ord. No. 14217, § 1, 4-8-25)

Sec. 32-311. Obstructions—Minimum clearances.

(a) Any person or persons owning or occupying real property where there may be trees, bordering on any street, shall prune such trees in such a manner that they will not obstruct or shade the streetlights, obstruct the passage of pedestrians on sidewalks, obstruct vision of traffic signs, obstruct the view of any street or alley intersection, or otherwise endanger the public.

(b) The minimum clearance of any overhanging portion thereof shall be eight (8) feet over sidewalks, and twelve (12) feet over all streets and vehicular use areas except truck thoroughfares which shall have a minimum clearance of fourteen (14) feet.

(c) No street trees shall be planted closer than ten (10) feet to any fire equipment to include fire hydrants, post indicator valves, and gongs. No street trees shall be planted closer than ten (10) feet to any overhead electrical or telephone wires unless specifically approved by the City Forester or designee as a low growth variety suitable for such location.

(d) Property owners shall remove all dead, diseased or dangerous trees, or broken or decayed limbs which constitute a menace to the safety of the public.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-312. Permits required.

(a) *General.*

(1) Except as provided herein, no person, firm, or city department shall plant, spray, fertilize, preserve, prune, remove, cut above ground, or conduct ground-disturbing activities within the Critical Root Zone of, or otherwise disturb any tree on any street or city owned property without first filing an application and procuring a Tree Ordinance Permit from the Land Development Office. The person receiving the permit shall abide by the Standards of Practice adopted by the City Forester and by other reasonable conditions imposed by the City Forester.

(2) Applications for permits will be available online through the Public Works Land Development Office. The permit must be approved by the City Forester or designee before any approved tree modification or disturbance takes place.

(3) Applications for permits shall be accompanied by a Tree Survey of existing Public Trees as specified in this Article, unless specifically waived by the City Forester or designee. The Tree Survey shall be submitted either as its own sheet within a civil plan set for an associated Land Disturbing Permit or as its own document, combined with a Planting Plan, if applicable, for a standalone Tree Ordinance Permit.

(4) The Land Development Office shall issue the permit provided for herein if, the City Forester or designee certifies that the proposed work and the proposed method and workmanship thereof are in compliance with the provisions of this Article. Any permit granted shall contain a definite date of expiration and the work shall be completed in the time allowed on the permit and in the manner as therein described. Any permit shall be void if its terms are violated.

(5) Notice shall be given by the permit holder to the City Forester or designee for their inspection, within five (5) days of anticipated work completion. Such notice shall include whatever form of identification as may be specified by the City Forester.

(6) A permit requirement may be waived by the City Forester or designee for routine tree maintenance by other City divisions and departments, if such divisions demonstrate, on an annual basis to the City Forester that tree maintenance, removal and replanting practices fall within the bounds of this Ordinance. This waiver does not extend to construction-related tree disturbance.

(7) A permit requirement for removal of Public Property trees may be waived by the City Forester or designee if the applicant demonstrates that proposed impact is to a Wooded area only, where no single stem proposed to be removed is over 24" DBH, and total canopy loss is under 5000 square feet.

(8) Annual permits may be approved for public and private utility companies which shall install overhead and underground utilities (including fiber optic installations and water and sewer installations by or at the direction of the city); provided that pruning, trenching, and tree protection standards have been annually approved by the City Forester and the Chattanooga Tree Commission; provided, however, that removal of any tree shall have been specifically approved in advance by the City Forester or designee, including adherence to the replanting requirements herein. Such annual permits may be revoked upon written notice to the permit holder from the City Forester in the event the permit holder fails to comply with the provisions of this Article or with the conditions of the permit.

(9) The Tree Ordinance Permit application shall record the total number and total trunk diameter of trees proposed to be removed, and the number and total caliper of trees proposed to be planted, as applicable. Based on these totals, the permit application shall calculate the Recompense fee due, if applicable.

(10) The Tree Ordinance Permit fee, given in Sec. 31-322, is tiered according to type and scale of work. These are:

Tier 1: For residents, business owners, or community groups seeking approval for non construction Public Property Tree disturbance or maintenance; for utilities seeking an annual permit; for planting-only permits of any size by any party.

Tier 2: For Public Property Tree removal or disturbance as part of construction permitted under Simple Land Disturbing, or under Building Permits only; for clearing of Wooded areas only within City rights-of-way for projects of any size.

Tier 3: For Public Property Tree removal or disturbance as part of construction permitted under a Complex Land Disturbing Permit; for clearing of Wooded areas on City-owned parcels; for any other Tree Work on City property not otherwise specified in this Article.

Such fee shall be imposed as follows:

Tree Ordinance Permit—Tier 1: $100

Tree Ordinance Permit—Tier 2: $250

Tree Ordinance Permit—Tier 3: $500

Tree Replacement Fee: $200/inch DBH

(b) *Planting.*

(1) *Application Data.* The application required herein shall state the number, size, and type of trees to be planted. Additionally, a Planting Plan, as specified in this Article, shall be required for any planting operation unless specifically waived by the City Forester. The Planting Plan may be combined with landscape sheets as part of a civil plan set for an associated Land Disturbing Permit or combined with the Tree Survey and attached to a standalone Tree Ordinance Permit.

(2) *Improper Planting.* Any tree planted in a manner in conflict with the provisions of this section shall be subject to removal as provided in Division 4 of this Article.

(c) *Maintenance.* The application required herein shall state the number and kinds of trees to be sprayed, fertilized, pruned, or otherwise maintained; the kind of treatment to be administered; the composition of the spray material to be applied; credentials of the applicant or contractor; and such other information as the City Forester shall find reasonably necessary to a fair determination of whether a permit should be issued.

(d) *Removal, replanting and recompense for permitted tree removal.*

(1) Public Street and Public Landscape Trees: Permitted removal of a City-owned tree in either of these categories that is not deemed to be Dead, Diseased, or Hazardous by the City Forester or designee will be required to be replaced on the same City street or City owned property, with trees equal in total caliper to the sum of tree DBH proposed to be removed.

Tree species, size, and layout of replacement trees shall be approved by the City Forester or designee. Should on-site planting not be possible, adjacent public properties, then the nearest suitable public properties will be considered as replanting sites. Should none of these options be possible, the value of deficient DBH shall be made up by a Recompense Payment to the Tree Bank, calculated using the Tree Replacement Fee.

For trees removed under an annual Tree Ordinance Permit for City-approved public utility work, replanting and recompense shall be required on a tree-for-tree basis rather than inch-for-inch, using the standard of three inches of DBH per tree for the purposes of Recompense.

(2) Wooded areas within City rights-of-way: Without any other associated Public Street or Landscape Tree disturbance, tree removal for property access on Wooded rights-of-way shall require a Tier 2 Tree Ordinance Permit, with accompanying Tree Survey. Replanting is not required in such areas but a Recompense Payment at 50% of the Tree Replacement Fee will be required for removal of all trees 24" DBH and larger.

(3) Wooded areas on City-owned parcels: Tree removal shall require a Tier 3 Tree Ordinance Permit, with accompanying Tree Survey. Replanting is not required for tree removal in such areas but a Recompense payment at 50% of the Tree Replacement Fee will be required for removal of all trees 24" DBH and larger. Recompense payments may be waived by the City Forester or designee if tree removal is approved as part of land management practices.

(e) *Tree planting warranty.* All trees planted to meet street frontage requirements under a Land Disturbing Permit or to replace Public Property Trees removed under a Tree Ordinance Permit shall be required to be warranted for a period of one year after the date of acceptance of such trees. Trees which upon inspection have died or are in such poor condition that recovery is impossible due to water stress, pests, disease, injury caused by turf maintenance, herbicide injury, or other cause will be required to be replaced. For trees judged to have died or are beyond recovery, the holder of the relevant Tree Ordinance Permit shall be responsible for replacement of such trees to specifications identical to the trees being replaced, or to specifications otherwise approved by the City Forester or designee, or to make a Recompense Payment to the Tree Bank for an amount calculated from net lost tree caliper. A one-year tree planting warranty shall be required for such trees planted in replacement.

(f) *Performance Bond.* When there exists supply, seasonal, or other barriers to planting trees required under a Land Disturbing Permit before issuance of a Certificate of Occupancy, a builder or developer may post a Performance Bond, to be recovered at a date after required trees are planted and approved. If such trees include Public Property Trees or Private Property Trees planted to meet conditions of this Article, the applicant posting the bond shall be the same as the Tree Ordinance Permit holder. The Performance Bond shall be administered as follows:

1. The applicant shall complete all required provisions related to tree installation prior to issuance of a Certificate of Occupancy. The reviewing City Department may provide a temporary Certificate

of Occupancy, in lieu of completed work, if the applicant posts a bond in the amount of 125% of the estimated cost of the tree installation based on a schedule of fees provided by the reviewing department stipulated as sufficient to secure the satisfactory plant materials, related equipment, installation, and maintenance of such material for three (3) years. Such performance bond shall comply with all statutory requirements and shall be satisfactory to the City Attorney as to form, sufficiency, and manner of execution as set forth in this article.

2. A performance bond shall mean two documents: a Performance Agreement and an accompanying security document.
    a. The Performance Agreement shall stipulate the work to be performed by general categories and the estimated value or cost of each category. The Performance Agreement shall also stipulate a completion date for all of the work to be performed. The Performance Agreement shall only be entered into by the owner(s) of the property.
    b. The security document may be in a form as follows and shall express the value in a total amount equaling the sum of all work categories:
        i. A Surety Bond issued by an insurance company licensed in the State of Tennessee and shall be non-expiring
        ii. An Irrevocable Letter of Credit issued by or confirmed by a financial institution located in Hamilton County, Tennessee, or an adjoining county. Any such letter of credit shall contain an auto-renewal clause.
        iii. Cashier or Certified Check issued by a financial institution located in Hamilton County, Tennessee and shall be non-expiring.
    c. The Surety Bond and Letter of Credit options shall not be available to an applicant whose past performance has resulted in breached or expired bonds.
    d. An entity whose past performance has resulted in non-payment of a bond may be excluded from providing a surety bond for an applicant for a period of one year from the date of breach.
3. All required plant materials, related equipment, installation, and maintenance shall be the responsibility of the applicant at the applicant's expense or cost sharing. Any provisions for reimbursement by the county, or any utility district, shall be by separate agreement with the applicable City Department or other governmental entity.
4. Governmental agencies to which these bonds and contract provisions apply may file, in lieu of said contract or bond, a letter from an agent authorized to act in their behalf agreeing to comply with the provisions of this article
5. In those cases in which a performance bond has been posted and required plant material and related equipment has not been installed within the terms of such performance bond agreement, the reviewing City Department may declare the bond to be in default and require that all the plant material and related equipment be installed regardless of the extent of the building development at the time the bond is declared to be in default. The funds of the bond shall be used to install all required plant materials and related equipment.
6. If the reviewing City Department finds that any of the required plant materials and related equipment have not been installed in accordance with this article, the applicant shall be responsible for completing the plantings to the required standards. Whenever the cost of improvements is covered by a performance bond, the applicant and the bonding company or financial institution shall be liable severally and jointly for completing said plantings according to specifications.

7. The reviewing City Department shall not release a performance bond until all required plant material and related equipment have been installed correctly. There shall be no release of a bond if there are any outstanding administrative penalties or violations related to the bonded site. The performance bond shall only be released by the reviewing department upon successful completion of the installation as indicated by a site inspection.

8. The reviewing City Department, upon proof of extenuating circumstances by the applicant and acknowledged and agreed to by the reviewing City Department, may extend the completion date set forth in such bond and may require an increase in the bonded amount to cover increases in costs.

9. Should the bond lapse or expire for any reason prior to installation of plant material and related equipment, the temporary Use and Occupancy Certificate shall be revoked, and the reviewing City Department shall, through the Office of the City Attorney, take any or all appropriate legal action necessary to assure installation of plant material and related equipment. The bond may be declared in default and the security shall be held by the City. Only after completion of all improvements or posting of a new bond, shall a temporary Use and Occupancy certificate be issued.

10. Funds derived from liquidation of securities, as a result of performance agreement default, shall be used by the applicable City Department to complete the required work. Project administration fees may be charged by the departments or against liquidated funds to offset actual personnel or equipment costs utilized in the accomplishment of required work. Any surplus funds shall be returned to the security provider after all charges and expenses are paid and required work is accepted.

(g) *Tree Survey.*

1) All Tree Permits shall be accompanied by a Tree Survey, to establish the baseline conditions of trees on public property. This document shall be submitted as its own sheet within a civil plan set for associated Land Disturbing Permit, or as its own document attached to a standalone Tree Ordinance Permit. The submitted plan must meet the purpose and intent of this article.

2) Tree Survey shall meet the following requirements:

   A. When submitted as part of an associated civil plan set for a Complex Land Disturbing Permit, prepared by a Tennessee Registered Land Surveyor, with all required items to be survey located.

   B. Show existing site conditions.

   C. Show the Limit of Disturbance (LOD) for the proposed construction.

   D. Show all Street Trees

   E. Show all Public Property Landscape trees

   F. Show the Tree Canopy Line across the entire site, including public and private property

   G. Show every Public Property tree within a Wooded area having a DBH of twenty four (24) inches or greater

   H. Show the Critical Root Zone of every tree meeting the location requirements.

   I. Show the required Tree Protection Fencing.

   J. Show an "X" on trees to be removed.

   K. Number every tree meeting the location requirements adjacent to its symbol on the plan.

L. Provide a table on the plan showing the following for each tree meeting location requirements:

i. Number

ii. Tree species

iii. Size (DBH)

iv. Percentage of impact to CRZ by LOD

v. "To Be Removed", if applicable

vi. Total trunk diameter of Street and Landscape Trees to be removed

vii. Total trunk diameter of Wooded Area Trees (24" and greater DBH) to be removed

(h) *Planting Plan.*

1) All Tree Permits involving tree planting shall be accompanied by a Planting Plan. The Planting Plan may be combined with landscape sheets as part of a civil plan set for an associated Land Disturbing Permit or as its own document attached to a standalone Tree Ordinance Permit.

2) Planting Plan shall meet the following requirements:

A. Show all Public trees located on the Tree Survey which are to be preserved through construction

B. Show all Public trees proposed to be planted, labelled or symbolized by species C. Provide a table specific to Public Trees only, showing the following for trees proposed to be planted:

i. Label or symbol

ii. Tree species

iii. Cultivar, if applicable

iv. Size (caliper)

v. Type of nursery stock

vi Total caliper of all Public Street or Landscape Trees to be planted

(i) *Tree Bank.*

A. *Purpose.* The Tree Bank is established to recover the loss of public goods produced by urban trees removed during development, and to direct that recovered value toward public property tree planting and maintenance.

B. *Application.* Participation in the Tree Bank by property owners or developers is initiated by a selection on the Tree Ordinance Permit application, and reviewed by the City Forester or designee.

C. *Recompense Fee.* Approved participants will pay a one-time Recompense Fee to the Tree Bank equal to the difference in total trunk caliper of Public Property Trees removed and the total caliper of Public Property Trees planted, multiplied by the Tree Replacement Fee. Adjusted fees for removal of Public Property Trees in Wooded areas, as described in this Article, may also be added.

D. *Additional Tree Bank funding.* Tree Ordinance Permit fees and any damage claims collected resulting from City Forester appraisals of unpermitted tree removal or vandalism will also be deposited in the Tree Bank.

E. *Tree Bank administration.* Funds paid into the tree mitigation bank will be used for the purposes of maintaining and expanding urban tree canopy at the direction of the City Forester.

F. *Tree Bank reporting.* The City Forester will provide an annual report to the Chattanooga Tree Commission regarding the operation of the Tree Bank.

(j) *Exemption for Sewer Utility Work.*

(1) Notwithstanding any other provision in this Article, the following activities shall be exempt from the permit requirements, tree protection requirements, replanting requirements, and recompense payments otherwise required by this Article:

(i) Emergency repair of existing underground sewer utilities and service connections;

(ii) Routine maintenance and scheduled repair of existing underground sewer utilities and service connections;

(iii) Clearing of utility easements necessary to access, maintain, or repair existing underground sewer infrastructure.

(2) This exemption applies to work performed by:

(i) The City of Chattanooga Wastewater Department;

(ii) Contractors working on behalf of the City of Chattanooga Wastewater Department;

(3) While exempt from permits and fees, reasonable efforts shall be made to minimize impacts to trees when conducting exempt activities. The Wastewater Department shall coordinate with the Urban Forestry Program on appropriate training for staff on tree protection best practices when conducting exempt activities.

(4) The Wastewater Department shall provide an annual report to the City Forester summarizing the number and general location of emergency repairs that impacted public trees during the previous year.

(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-313. Enforcement of Public Property Tree Protection

a) Any person found to be in violation of this article through the action of removing or damaging a tree on city property (Sec. 32-310c) without a permit shall be responsible for the reimbursement to the city for the value of the appraised loss, as described in the latest published edition of the Guide for Plant Appraisal by The Council Of Tree & Landscape Appraisers, or other nationally accepted plant appraisal standard, and as interpreted by the City Forester. Nothing in this ordinance shall be construed to remove the State statutory liability and award of damages for negligent or intentional tree cutting as set forth in Tenn. Code Ann. § 43-28-312.

b) For unpermitted tree removal or unpermitted damage necessitating tree removal; any person found to be in violation of this article shall additionally be responsible for the actual costs incurred by the City for removing remaining debris and replacing any removed tree. The replacement tree and location for planting shall be approved by the City Forester. Nothing in this ordinance shall be construed to remove the State statutory liability and award of damages for negligent or intentional tree cutting as set forth in Tenn. Code Ann. § 43-28-312.

c) Reimbursement shall be assessed through the city's Risk Management division and deposited in the Tree Bank, as directed in Division 4 of this Article.

d) Reimbursement fees shall be capped at $50,000 per tree and $100,000 per site. Collection of any reimbursement fees shall be enforced by a court of competent jurisdiction. Any violation of this section through the action of removing or damaging a tree on city property without a permit shall be prosecuted through the Office of the City Attorney.

(Ord. No. 14217, § 1, 4-8-25)

DIVISION 3. PRIVATE PROPERTY TREE PROTECTION AND RESPONSIBILITIES

Sec. 32-314. Utility responsibility on private property.

Public and private utilities which install overhead and underground utilities (including fiber optic installations and water and sewer installations by or at the direction of the city Department of Public Works), shall be required to accomplish all work on property subject to this Article in accordance with the company's written pruning and trenching specifications, or as mutually agreeable to the property owner and the utility. Written specifications shall have been first approved by the City Forester and reviewed by the Tree Commission.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-315. Dead or diseased tree removal on private property.

(a) The city shall have the right to order or cause the removal of any trees that are dead or diseased on private property within the city, when such trees constitute a hazard to life and property, or harbor insects or disease which constitute a potential threat to other trees within the city. The City Forester shall determine which tree or trees are to be removed.

(b) Unless such trees pose immediate hazard to public safety, the owner of such trees will be ordered, in writing, to remove said trees, stating the reason for removal and the location of said tree or trees to be removed. Removal shall be done by said owners at the owner's expense within fourteen (14) days after the date of the order to remove. In the event the owner fails to comply with such order to remove, or if public safety considerations require immediate removal, the city shall then proceed to remove said tree or trees, and to charge removal costs to the owner of the property as provided by law in the case of special assessments.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-316. Removal, protection, and provisioning of trees.

(a) *Applicability of article.* This article shall apply to all real property within the city, including all commercial, industrial, business or multifamily and subdivision property, with the following exemptions:

1. It shall not apply to any parcel of land currently being used for a single-unit dwelling or two-unit dwelling. If the use of the parcel changes to any other classification, the other requirements of this article apply.
2. It shall not apply to the approaches (clear zones) to any airports located in the city limits, to the easements or rights-of-way of utility companies, or to federal, state or local governments.
3. It shall not apply to containerized trees or nursery stock trees for resale in commercial nurseries or garden centers.
4. It shall not apply to removal of trees from Certified Tree Farms or from Lots Zoned A-1, with an approved Timber Removal Permit, pursuant to T.C.A §6-54-126 and Sec. 31-325.1- 31-325.9., which carries a three (3) year moratorium on development.
5. It shall not apply to removal of Dead, Declining, or Hazardous trees and vegetation as defined in this Ordinance.
6. It shall not apply to emergencies. In case of emergencies, such as hurricane, tornado, windstorm, flood, ice storm or other disasters, the requirements of these regulations may be waived by the City Forester or other designated official, upon a finding that such waiver is necessary so that public or private work to restore order in the City of Chattanooga will not be impeded.

(b) *Clearing or grading work.* Where a Land Disturbing Permit or Timber Removal Permit has not been issued, the destruction of more than five thousand (5,000) square feet of Tree Canopy, as defined in this Article, on any one (1) parcel of nonexempt land, shall be prohibited.

(c) *Land development and new construction.* Where a Complex Land Disturbing Permit is required, a minimum total tree DBH per acre, as given in Table 32-316, shall be retained on the site unless, because of cut or fill work, such trees cannot be saved. Trees retained shall be protected during construction with Tree Protection Fencing such that less than 25% of CRZ is disturbed. If trees cannot be salvaged, trees shall be provisioned as per section 32-316(d) or offset with a payment to the Tree Bank as per section 32-312(i).

Table 32-316

Zoning Type	*Total DBH per acre to be retained, planted, or offset*
Residential Zones, including R-MH	36"
Mixed Use and Commercial Zones	36"
Industrial Zones	36"
Form-Based Code Zones	No additional requirements
Other Special Purpose Zones not listed	No additional requirements

(d) *Provisioning of trees.* Where trees cannot be retained pursuant to this article, or do not exist on the site, they shall be provided on the site, before construction completion, at the rate provided in Table 32-316, and they shall be watered by an automatic irrigation system or other approved watering protocol. Trees planted to meet Landscape Requirements under Article XIII of Chapter 38 may be counted towards the required total DBH, provided such trees meet the criteria of Large Trees as defined in that Article. Compliance with this requirement may be achieved by one of the following methods.

1. Planting trees prior to Certificate of Occupancy issuance.
2. Planting trees following issuance of a temporary Certificate of Occupancy, under a Performance Bond.
3. If a developer or property owner demonstrates that site conditions prevent planting of additional trees to meet Tree Ordinance requirements, they may pay an Offset Fee to the Tree Bank for an amount calculated from the deficient tree caliper.

(e) *Maintenance and replacement of trees.* All trees retained or provided to meet the requirements of this article shall be properly preserved, planted, and maintained to ensure their survival to meet the purpose and intent of this article. Any tree which fails to survive or dies through maturation shall be replaced by the owner within twelve (12) months of loss, subject to inspection by the City Forester or their designee

(f) *Enforcement*. If land clearing takes place without a permit or exemption as outlined in 32-312, the owner shall be assessed a Recompense Fee calculated from the amount of tree canopy removed, as estimated by the City Forester or designee, using the most recent Tree Canopy Assessment. From this estimated area, rounded to the nearest tenth of an acre, a prorated Recompense Fee will be calculated as the equivalent of planting 75 two (2) inch caliper trees per acre. This fee shall be assessed to the property owner, and upon collection, deposited in the Tree Bank.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-317. Protection of trees of historical or botanical importance.

(a) *Protected designations.* No living tree within the city designated on the State of Tennessee Champion Tree list, designated as a Landmark or Historic Tree by the State of Tennessee or designated organization, or designated as a Notable Tree by the Chattanooga Tree Commission shall be removed or

otherwise substantially altered by pruning, trimming, or otherwise cutting more than twenty-five (25) percent of the woody area or disturbing more than twenty-five (25) percent of the Critical Root Zone of such tree without first obtaining a Tree Ordinance Permit.

(b) *Notable Tree nomination.* Residents may nominate trees meeting the following criteria to the Chattanooga Tree Commission using forms supplied online:

i) Owner consent: Property owner shall either submit the application themself or complete a form attesting to their support of the tree being listed as a Notable Tree. For Public Property Trees, the City Forester's consent is necessary, if the tree is nominated by a resident.

ii) Structural integrity: The tree shall be structurally sound and not topped.

iii) Lack of invasive status: The species shall not be listed as either as an Established or Emerging Threat by the Tennessee Invasive Plant Council.

iv) Community value: The tree provides significant neighborhood, landscape, ecological, or historical value to citizens of Chattanooga, as documented by the applicant.

(c) *Criteria for removal of protected trees.* Permits as noted in subsection (a) of this section shall be issued only upon a satisfactory showing that the tree in question is either Dead, Diseased, or Hazardous.

(d) *Permitting process.* If the urban forester fails to issue a permit as provided in this section within thirty (30) days of the application for the permit, such permit shall be considered to be denied. Any person denied such permit may appeal the denial directly to the Chattanooga Tree Commission through the process described in Sec. 32-308.

(e) *Enforcement.* If trees designated as Champion, Historic, and Landmark Trees by State agencies or as a Notable Tree by the Chattanooga Tree Commission are removed or substantially altered by pruning, trimming, or otherwise cutting more than twenty-five (25) percent of the woody area or disturbing more than twenty-five (25) percent of the Critical Root Zone of such tree without first obtaining a Tree Ordinance permit, the party that caused the action will be assessed a fee equal to the appraised value of the tree in the case of removal, or the appraised loss of value of the tree in the case of damage. Appraisal values shall be determined by the as described in the latest published edition of the Guide for Plant Appraisal by The Council Of Tree & Landscape Appraisers or other nationally accepted plant appraisal standard, and as interpreted by the City Forester. Appraisal fees shall be deposited in the Tree Bank.

(f) *Retraction of Notable Tree status by owner.* An owner of property containing a Notable Tree may remove said tree from the list by notifying the City Forester in writing that they want it to be removed. The tree will then come off the list within thirty (30) days of the City Forester being notified by the owner.

(g) *Double credits for Notable Trees.* Any Notable Tree retained on property that is developed shall receive 2:1 (double) credits toward the required caliper inches in Table 32-316.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-318. Tree maintenance and registry.

(1) *Registry.* All individuals or companies intending to do tree work for hire on any tree over twelve (12) inches DBH within the city, shall register online with the Urban Forestry Program. All registered companies shall be listed publicly.

(2) *Professional License and Business Practice [32-316].* Any commercially licensed business conducting tree work (as described in Sec. 32-302) including but not be limited to Tree Care Companies, Lawn Service Companies, Landscape Companies, Painting, Building and Renovation Companies or any person or firm receiving payment of any type to conduct tree work, must obtain a City of Chattanooga

business license and provide proof of liability insurance in the maximum amount of the applicable limits of liability for governmental entities under the Tennessee Governmental Tort Liability Act at the time such work is performed.

(3) *Public and private property tree protections*. Each said individual or company must sign an acknowledgement that they understand this article in regard to the prohibition of disturbance to or removal of any tree on public property without a permit, and prohibition of removal of more than five thousand (5,000) square feet of Tree Canopy without a permit.

(4) *Wood waste disposal practices*. Each said individual or company must sign an acknowledgement that they understand all other codes that pertain to tree work and the proper disposal of wood waste. It is the responsibility of the tree company to remove the wood waste from the property and properly dispose of the material. Disposal of wood material by placing it at the street/city right-of-way for collection will be considered illegal dumping. See Sections 18-86 (c) and 18-106.

(5) *Enforcement*. Individuals or companies in violation of this registry, Public Property Tree protection requirements, or improperly disposing of wood waste are subject to a stop work order (SWO) and prohibited from doing any work in the city until registration is completed and/or result in fines to the company (not the property owner) as outlined in sections [Reference above Protection of Trees of Historical Importance, Destruction or Removal of Trees, 32-313, and something from Chapter 18 about illegal brush dumping]
(Ord. No. 14217, § 1, 4-8-25)

DIVISION 4. ENFORCEMENT

Sec. 32-319. Violations declared nuisances.

Any tree determined to be a public nuisance by the City Forester to be dangerous to the public safety and shall be abated as set forth in this Article. Said determination of a public nuisance may be considered by an Administrative Hearing Officer subject to an appeal.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-320. Notice requiring abatement of violations; abatement by City; lien for costs.

Upon determination of a public nuisance, the City Forester shall cause to be served upon the property owner a written notice to abate which shall (i) describe the conditions constituting a nuisance under this Article and (ii) state that the nuisance may be abated by the City at the expense of the property owner at the expiration of thirty (30) days from the date of such notice if the condition is not corrected by the property owner. If, at the expiration of thirty (30) days from the date of said notice to abate, the condition constituting a nuisance has not been corrected, then such condition may be corrected for the nuisance abated by the City at the expense of the property owner under the directions of the City Forester. The City shall have a lien on the property upon which such nuisance is located to secure the amount expended for the abatement of such nuisance.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-321. Violation; Civil penalty.

The City Forester and designated staff shall have authority to investigate suspected violations of the Article. Except for violations of Section 32-310(c), which are addressed in 32-313(a), any violation of this Article shall be presented to the Tree Commission, who may make findings of facts and recommendations for abatement and/or civil penalty for each alleged violation. The alleged violator may choose to accept and obey the recommendation of the Tree Commission or, within ten (10) days of receiving the written

findings of facts and recommendations for abatement and/or civil penalty, my file a notice with the City Forester for a de novo hearing before an Administrative Hearing Officer at a duly noticed hearing not less than ten (10) days following the filing of the appeal. Such hearings shall be governed by Article VI of Chapter 21 of this Code, including all appeal rights.

This section shall not be construed to prevent the City from abating a nuisance or other dangerous condition which the City Forester determines requires immediate abatement.
(Ord. No. 14217, § 1, 4-8-25)

Sec. 32-322. Reviews

The City Council shall review this ordinance six months after the initial effective date. Thereafter, the Tree Commission shall conduct annual reviews in perpetuity and make any necessary recommendations to City Council.
(Ord. No. 14217, § 1, 4-8-25)

Secs. 32-323—32-340. Reserved.

ARTICLE XIV. COMPLETE STREETS

Sec. 32-340. Definition of Complete Streets.

"Complete Streets" are streets that are designed, built and operated to enable safe access for all users, in that pedestrians, bicyclists, motorists and public transportation users of all ages and abilities are able to safely move along and across the street right-of-way.

Sec. 32-341. Complete Streets Policy.

The City shall develop a safe, reliable, efficient, integrated and connected multimodal transportation system that will promote access, mobility and health for all users, and will ensure that the safety and convenience of all users of the transportation system are accommodated, including pedestrians, bicyclists, users of mass transit, motorists, emergency responders, freight providers, adjacent land owners, and people of all ages and abilities, including children, youth, families, older adults, and individuals with disabilities.

Sec. 32-342. Scope of Complete Streets Applicability.

(a) All city-owned transportation facilities in the public right-of-way including, but not limited to, streets, bridges and all other connecting pathways shall be designed, constructed, operated, and maintained so that users of all ages and abilities can travel safely and independently.

(b) The City shall approach every transportation improvement project phase with the purpose to create safer, more accessible streets for all users. These phases include, but are not limited to: planning, programming, design, right-of-way acquisition, construction, reconstruction, operation and maintenance. Other changes to transportation facilities on streets and rights-of-way, including capital improvements, re-channelization projects and major maintenance, must also be included.

(c) Privately constructed streets and drives shall adhere to this policy.

(d) The City shall foster partnerships with the State of Tennessee, neighboring communities and counties, and business and school districts to develop facilities and accommodations that further the City's Complete Streets policy.

(e) Transportation projects shall incorporate sustainable water quality management principles where applicable to reduce pollutant, temperature and runoff impacts to local waterbodies.

Sec. 32-343. Exceptions.

Any exception to this policy, including for private projects, must be approved by the Administrator of the Transportation Department. Exceptions may be considered for approval when:

(a) An affected roadway prohibits use by specified users (such as a limited-access highway or a pedestrian mall), in which case a greater effort shall be made to accommodate those specified users elsewhere;

(b) The activities are ordinary maintenance activities designed to keep assets in serviceable condition (e.g. mowing, cleaning, sweeping, spot repair, or other interim measures);

(c) Severe existing topographic, natural resource, or right-of-way constraints exist that preclude construction of bicycle or pedestrian facilities without incurring excessive cost.

Exceptions granted under (a) and (c) must be documented with supporting data that indicates the basis for the decision and posted in quarterly reports on the Transportation Department webpage.

Sec. 32-344. Design Standards.

The most current editions of the following engineering manuals are hereby adopted as design guidelines:

(a) The Street and Bikeway Design Guides published by the National Association of City Transportation Officials (NACTO).

(b) Designing Walkable Urban Thoroughfares, Institute of Transportation Engineers (ITE).

(c) Using these manuals as guidance, the Transportation Department will create and publish Complete Streets Design Standards to govern the design and construction of all transportation elements within the city.

Sec. 32-345. Performance Measures.

The City shall measure the success of this Complete Streets policy using, but not limited to, the following performance measures:

- Total miles of bike lanes (standard, buffered and protected), bike routes, and shared-use pathways
- Total miles of pedestrian accommodation
- Percentage of intersections with ADA accessible curb ramps
- Percentage of transit stops accessible via sidewalks and bicycle facilities
- Rate of crashes, injuries, and fatalities by mode
- Rate of children walking or bicycling to school
- Commute mode share
- Mass transit ridership rates

Unless otherwise noted above, within six (6) months of policy adoption, the City shall create individual numeric benchmarks for each of the performance measures included, as a means of tracking and measuring the annual performance of the policy. Annual reports shall be posted online for each of the above measures.

Sec. 32-346. Implementation and Reporting.

The City of Chattanooga shall view Complete Streets as integral to everyday transportation decision making practices and processes. To this end:

(a) The Transportation Department, the Department of Public Works, the Department of Economic & Community Development, the Chattanooga - Hamilton County Regional Planning Agency, and other relevant departments, agencies, or committees will review and modify current city standards, including but not limited to subdivision regulations, zoning codes and ordinances, to ensure that they effectively implement Complete Streets principles; and such groups shall incorporate Complete Streets principles into all future planning documents, manuals, design standards, checklists, decision-trees, rules, regulations, programs, neighborhood redevelopment projects, and other appropriate endeavors.

(b) When available, the City shall encourage staff professional development and training on multimodal transportation issues through attending conferences, classes, seminars, and workshops.

(c) City staff shall identify all current and potential future sources of funding for street improvements and recommend improvements to the project selection criteria to support Complete Streets projects.

(d) A periodic report (annual or otherwise, as appropriate) will be made to the City Council showing progress made in implementing this policy. The Transportation Department with assistance from the Department of Public Works, the Department of Economic & Community Development, the Chattanooga - Hamilton County Regional Planning Agency, and other relevant departments, agencies, or committees shall report on the annual increase or decrease for each performance measure contained in this policy compared to the previous year(s).

(e) Complete Streets endeavors shall be accompanied by educational elements to ensure that all users of the transportation system understand and can safely utilize project components.

(Ord. 12822, § 1, 4-1-14)

Chapter 33

SWIMMING POOLS

Article I. In General

Sec. 33-1. Building permit required.
Sec. 33-2. Plumbing and electrical requirements.
Sec. 33-3. Final inspection; enclosure.
Secs. 33-4—33-15. Reserved.

Article II. Public Pools

Division 1. Generally

Sec. 33-16. Definitions.
Sec. 33-17. Health officer to enforce.
Sec. 33-18. Health officer to inspect.
Sec. 33-19. Health officer's right of entry; duty to cooperate.
Sec. 33-20. Frequency of inspections; water samples required.
Sec. 33-21. Plans, specifications required.
Sec. 33-22. Permit—Required.
Sec. 33-23. Same—Application required; inspection; action on application.
Sec. 33-24. Same—To be posted; duration.
Sec. 33-25. Operator required; qualifications.
Sec. 33-26. Lifeguard required; qualifications; exception.
Sec. 33-27. Records required.
Sec. 33-28. Test kits required.
Sec. 33-29. Vacuuming equipment required.
Sec. 33-30. Cleanliness, maintenance of walls, bottoms.
Sec. 33-31. Frequency of filter turnover.
Sec. 33-32. Chemical equipment required.
Sec. 33-33. Cleanliness of gutters.
Sec. 33-34. Water level.
Sec. 33-35. Bathers to shower; diseased bathers.
Sec. 33-36. Maintenance of shower, toilet, dressing rooms.
Sec. 33-37. Type, maintenance of plumbing facilities.
Sec. 33-38. Type, maintenance of drinking fountains.
Sec. 33-39. Requirements for drinking water.
Sec. 33-40. Waste containers.
Sec. 33-41. First aid supplies; medical aid.
Sec. 33-42. Violations, penalty.
Secs. 33-43—33-55. Reserved.

Division 2. Minimum Standards

Sec. 33-56. Applicability.
Sec. 33-57. Pools deemed public; pools excepted; pools classified.
Sec. 33-58. Preparation, submission, approval of plans; approval prerequisite to other permits.
Sec. 33-59. Structural stability.

Sec. 33-60. Obstructions in diving area.
Sec. 33-61. Lifeguard chairs.
Sec. 33-62. Life line.
Sec. 33-63. Wall and floor finish.
Sec. 33-64. Depth markers.
Sec. 33-65. Lifesaving equipment.
Sec. 33-66. Ladders and stairs.
Sec. 33-67. Shallow minimum depth.
Sec. 33-68. Slope of floor into shallow area.
Sec. 33-69. Diving area.
Sec. 33-70. Vertical wall depth.
Sec. 33-71. Walks.
Sec. 33-72. Enclosure.
Sec. 33-73. Overflow gutters.
Sec. 33-74. Surface skimmers.
Sec. 33-75. Recirculation and filtration equipment.
Sec. 33-76. Sand filters.
Sec. 33-77. Diatomaceous earth filters.
Sec. 33-78. Compound gauge required.
Sec. 33-79. Strainers.
Sec. 33-80. Rate-of-flow indicator.
Sec. 33-81. Mechanical pool fittings.
Sec. 33-82. Main drain spacing.
Sec. 33-83. Piping.
Sec. 33-84. Pump and motor.
Sec. 33-85. Vacuum cleaner.
Sec. 33-86. Sterilizing agent.
Sec. 33-87. Chlorine compartment.
Sec. 33-88. Testing equipment.
Sec. 33-89. Coagulant feeder and pH adjustment.
Sec. 33-90. Quality of water.
Sec. 33-91. Electrical and lighting requirements.
Sec. 33-92. Number of bathers.
Sec. 33-93. Bathhouses.
Sec. 33-94. Food service.
Sec. 33-95. Wading pools.
Sec. 33-96. Utility connections.
Sec. 33-97. Indoor pool temperature.
Sec. 33-98. Diving towers.
Sec. 33-99. Operating instructions.

ARTICLE I. IN GENERAL*

Sec. 33-1. Building permit required.

No public or private swimming pool installation, alteration, or repair work shall be commenced until a building permit shall first have been obtained from the building official. Construction is to be done in accordance with the Standard Building Code, as adopted by Chapter 10 of this Code, where applicable.
(Code 1986, § 33-1)

Sec. 33-2. Plumbing and electrical requirements.

Plumbing work is to be done in accordance with the codes adopted by Chapter 27 and electrical work in accordance with the code adopted by Chapter 14 of this Code.
(Code 1986, § 33-2)

Sec. 33-3. Final inspection; enclosure.

All public and private swimming pool installations must be complete, completely filled with water and in operation before final inspection. For the safety of others, before final inspection, the pool shall be completely enclosed with a wall, fence or other substantial structure not less than four (4) feet in height and with maximum two (2) inch mesh or two (2) inch vertical openings, or otherwise constructed as to be difficult to climb.
(Code 1986, § 33-3)

Secs. 33-4—33-15. Reserved.

ARTICLE II. PUBLIC POOLS

DIVISION 1. GENERALLY

Sec. 33-16. Definitions.

The following definitions shall apply along with those hereinafter set out in division 2 of this article in the interpretation of this article:

Certified lifeguard means an individual who has successfully completed an American Red Cross Senior Life Saving Course and holds a current certificate of qualification or who has had equivalent training (e.g., graduate of Y.M.C.A. course with competence as senior lifesaver).

Health officer means the person duly appointed to such position having jurisdiction, or any person or persons authorized to act as his agent.
(Code 1986, § 33-16)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 33-17. Health officer to enforce.

It shall be the duty of the health officer to enforce provisions of this article.
(Code 1986, § 33-17)

***Cross references—**Amusements, Ch. 6; building regulations, Ch. 10; electrical regulations, Ch. 14; fire prevention and protection, Ch. 17; gas regulations, Ch. 19; housing, Ch. 21; plumbing, Ch. 27; water, Ch. 36.

Sec. 33-18. Health officer to inspect.

The health officer is hereby authorized and directed to make inspections to determine conditions at all public pools in order that he may perform his duty of safeguarding the health and safety of those individuals using such pools and facilities.
(Code 1986, § 33-18)

Sec. 33-19. Health officer's right of entry; duty to cooperate.

The health officer shall have the power to enter upon any private or public property at reasonable times for the purpose of inspecting and investigating conditions relating to the enforcement of this article, and he shall be given access to any record and shall be furnished such information as required to make his inspection complete.
(Code 1986, § 33-19)

Sec. 33-20. Frequency of inspections; water samples required.

Inspections of public pools shall be made at least once per week during any and all times that such public pools are in actual operation or are open for public use. Water samples shall be taken for bacteriological examination at the time inspections are made.
(Code 1986, § 33-20)

Sec. 33-21. Plans, specifications required.

Plans, specifications, and supporting data shall be prepared and submitted in duplicate to the health officer for approval as outlined in section 33-58 of this Code.
(Code 1986, § 33-21)

Sec. 33-22. Permit—Required.

It shall be unlawful for any public pools to be operated by any person at any time unless he holds a valid permit issued by the health officer in the name of such person for that specific public pool. The health officer is hereby authorized to issue, suspend, or revoke permits in accordance with the provisions of this article; provided that, exceptions may be made for those public pools regulated by the Regulations Governing Organized Camps as authorized by Chapter 65, Public Acts of 1965, being T.C.A. Title 53, Chapter 38.
(Code 1986, § 33-22)

Cross reference—Businesses, trades and occupations generally, Ch. 11.

Sec. 33-23. Same—Application required; inspection; action on application.

(a) *Application.* Application for a permit to operate a public pool shall be made in writing, in the name of the person making application, to the health officer.

(b) *Inspection.* At this time an inspection of the public pool under consideration shall be made by the health officer.

(c) *Issuance.* If he is satisfied that the requirements of this article are met the permit shall be issued.

(d) *Denial.* If deficiencies are found, issuance of the permit shall be denied until said deficiencies are corrected.
(Code 1986, § 33-23)

Sec. 33-24. Same—To be posted; duration.

Permits for operation of public pools shall be conspicuously posted on the public pool premises at all times. Such permits shall be good for one (1) calendar year only unless revoked or suspended by the health officer.
(Code 1986, § 33-24)

Sec. 33-25. Operator required; qualifications.

All public pools shall be operated and maintained by a qualified person, other than a lifeguard on duty, and such person shall be on duty at all times when the public pool is open for use by the public. The operator shall demonstrate to the satisfaction of the health officer that he is competent to conduct the operation of the public pool in accordance with the provisions of this chapter.
(Code 1986, § 33-25)

Sec. 33-26. Lifeguard required; qualifications; exception.

A certified lifeguard shall be provided at all public pools, and he shall be on duty at all times when such pool is being used by the public. The lifeguard shall show and have on file at the pool premises a current certificate or documentary evidence of qualification; provided that, exceptions may be made for Types D and E pools by the health officer if swimming is done under adult supervision.
(Code 1986, § 33-26)

Sec. 33-27. Records required.

Operators of all public pools shall keep a daily record containing at least tests for free chlorine residual or residual of any approved sanitizing agent that may be used, pH and backwash frequency. This information and such additional information as may be required by the health officer shall be recorded on a form and with such frequency as prescribed by the health officer.
(Code 1986, § 33-27)

Sec. 33-28. Test kits required.

Test kits of the type and range as described in section 33-88 shall be provided by the owners or sponsoring agencies of public pools and shall be kept at the public pools for the operator's use.
(Code 1986, § 33-28)

Sec. 33-29. Vacuuming equipment required.

Facilities shall be installed for the operation of a vacuum cleaner and vacuum cleaning equipment which meets the criteria of section 33-85 shall be provided at all public pools.
(Code 1986, § 33-29)

Sec. 33-30. Cleanliness, maintenance of walls, bottoms.

Walls and bottoms of all public pools shall be kept clean at all times. Frequency of vacuuming and scrubbing shall be such as to fulfill the above requirement. Pool walls and bottoms shall be maintained in a state of good repair at all times.
(Code 1986, § 33-30)

Sec. 33-31. Frequency of filter turnover.

Filters shall be operated continuously to provide three (3) to four (4) daily turnovers in filtered water in all public pools.
(Code 1986, § 33-31)

Sec. 33-32. Chemical equipment required.

Equipment for chlorination, hypochlorination, and other chemical treatment meeting the criteria of Division 2 of this article shall be provided at all public pools. Such equipment shall be operated in a manner to maintain a water quality as described in section 33-90 at all times in public pools when they are being used by the public.
(Code 1986, § 33-32)

Sec. 33-33. Cleanliness of gutters.

Overflow gutters shall be kept clean and overflow outlets open at all times.
(Code 1986, § 33-33)

Sec. 33-34. Water level.

The water level in all public pools shall be maintained at the proper operating level at all times.
(Code 1986, § 33-34)

Sec. 33-35. Bathers to shower; diseased bathers.

All persons shall be required to take showers before entering any public pool. Any person having any apparent skin disease, sore or inflamed eyes, cough, cold, nasal or ear discharge, wearing bandages, or having any communicable disease shall be excluded from public pools except on presentation of a current written permit signed by a physician.
(Code 1986, § 33-35)

Sec. 33-36. Maintenance of shower, toilet, dressing rooms.

Walls and floors in shower, toilet and dressing rooms shall be kept clean and in a state of good repair at all times.
(Code 1986, § 33-36)

Sec. 33-37. Type, maintenance of plumbing facilities.

All plumbing facilities shall be of approved construction and design and shall be kept clean and in good repair at all times.
(Code 1986, § 33-37)

Cross reference—Plumbing generally, Ch. 27.

Sec. 33-38. Type, maintenance of drinking fountains.

All drinking fountains shall be of approved construction and design and shall be kept clean and sanitary at all times.
(Code 1986, § 33-38)

Sec. 33-39. Requirements for drinking water.

Drinking water shall be safe, potable, adequate, and under pressure, or otherwise meeting the approval of the health officer.
(Code 1986, § 33-39)

Sec. 33-40. Waste containers.

Waste containers provided in bathhouse facilities shall be of fire resistant construction. Covered containers shall be provided at or near each commode in women's toilet facilities.
(Code 1986, § 33-40)

Cross reference—Garbage and refuse, Ch. 18.

Sec. 33-41. First aid supplies; medical aid.

First aid supplies meeting the approval of the health officer shall be provided at all public pools when said pools are in use. Arrangements should be made with a local physician for prompt medical aid in the event of an emergency.
(Code 1986, § 33-41)

Sec. 33-42. Violations, penalty.

Any person who shall violate any of the provisions of this article or who shall fail or refuse to comply with any notice issued by the health officer with reference to the enforcement of the provisions of this article shall be guilty of a misdemeanor and upon his conviction shall be subjected to a fine of not less than ten dollars ($10.00) nor more than fifty dollars ($50.00) for each offense, and each day that such violation continues shall constitute a separate offense.
(Code 1986, § 33-42)

Secs. 33-43—33-55. Reserved.

DIVISION 2. MINIMUM STANDARDS

Sec. 33-56. Applicability.

The minimum standards set out in this division shall apply to all public or semipublic swimming pools, under all categories of usage, except as specifically noted under subsequent headings.
(Code 1986, § 33-56)

Sec. 33-57. Pools deemed public; pools excepted; pools classified.

(a) *Generally.* All artificially constructed swimming pools other than residential pools, wading pools and spray pools, as herein defined, shall be deemed to be public pools. These latter types of pools shall not be subject to this division but shall be subject to criteria covered in other publications.

(1) *Residential pools* which are excepted herein shall be defined as any privately-owned pools which are built in connection with single family residences, the use of which shall be confined to the family or each householder and his private guests.

(2) *Public swimming pools,* for the purposes of this article, shall be defined as listed in the following categories, based upon specific characteristics of size, usage, and other factors:

a. *Type "A".* Any municipal, community, public school, athletic club or swimming club pool or pool for other similar usage and type.

b. *Type "B".* Institutional pool, such as for Girl Scouts, Boy Scouts, YWCA, YMCA, Campfire Girls, Boys' Camps, Girls' Camps, and for similar type usage.

c. *Type "C".* Country clubs, large hotels and motels of more than one hundred (100) units, with pools having a water surface area in excess of sixteen hundred (1,600) square feet.

d. *Type "D".* Motels and apartments, multiple housing units, small hotels of less than one hundred (100) units, not open to the general public and with pools having a water surface area of less than sixteen hundred (1,600) square feet.

e. *Type "E".* Treatment pools, therapeutic pools, and special pools for water therapy.

f. *Type "F".* Indoor pools.

(b) *Exceptions.* The above categories shall be the basis for certain specific variations from this division for public swimming pools as a whole.
(Code 1986, § 33-57)

Sec. 33-58. Preparation, submission, approval of plans; approval prerequisite to other permits.

Plans and specifications with supporting data shall be prepared by a professional engineer or architect holding registration in the state. Before work is commenced on any new construction or any alteration of any existing pool, plans and specifications, accompanied by such pertinent data as may be required, shall be submitted to the Chattanooga-Hamilton County Health Department for its approval, and no part of the work shall be undertaken until the health department has endorsed upon the plans and specifications its written approval thereof. No department of the city charged with the duty of issuing building permits, plumbing permits, lighting permits, sewer connection permits or any other or like permits, in connection with construction, shall issue such permit in connection with the construction, repair, or remodeling of swimming pools, until after the approval of such health department of the plans and specifications above provided for has been endorsed thereon.
(Code 1986, § 33-58)

Sec. 33-59. Structural stability.

(a) All public pools shall be constructed of an inert and enduring material, designed to withstand all anticipated loading for both pool empty and pool full conditions. Working stresses shall be based upon predetermined ultimate strengths of materials used, with a factor of safety of not less than two and one-half (2½).

(b) Provisions shall be made for the relief of pressures which might occur as a result of unbalanced exterior hydrostatic pressures, or means shall be provided for positive and continuous drainage from under the pool floor or around the pool walls, whether ground water is present or might occur at some future time.

(c) Special provisions shall be made to protect the pool structures from both internal and external stresses which may develop due to freezing in cold climates.
(Code 1986, § 33-59)

Sec. 33-60. Obstructions in diving area.

There shall be no obstruction from the wall or the floor, extending into the clear area of the diving portion of the pool. There shall be a completely unobstructed clear distance of thirteen (13) feet above the diving board.
(Code 1986, § 33-60)

Sec. 33-61. Lifeguard chairs.

Each public swimming pool shall have at least one elevated lifeguard chair. This shall be presumed to be adequate for two thousand (2,000) square feet of pool surface area and one additional lifeguard chair shall be provided for each additional area of two thousand (2,000) square feet or fraction thereof. Where a pool is provided with more than one (1) lifeguard chair and the width is forty (40) feet or more, they shall be located on each side of the pool. In Types D and E pools, lifeguard chairs need not be provided.
(Code 1986, § 33-61)

Sec. 33-62. Life line.

A life line shall be provided at or near the break in grade between the shallow and deep portions of a public swimming pool, with its position marked with colored floats at not greater than five (5) foot spacing. The life line shall be three-quarters (3/4) inch minimum diameter and its terminals shall be securely anchored and of corrosion-resistant material and of type which will be recessed or have no projection which will constitute a hazard.
(Code 1986, § 33-62)

Sec. 33-63. Wall and floor finish.

Wall and floor finish shall be of masonry, tile or other inert and impervious material and shall be reasonably enduring. Finish shall be moderately smooth and of a white or light color. Sand or dirt bottoms are prohibited.
(Code 1986, § 33-63)

Sec. 33-64. Depth markers.

Depth of water shall be plainly marked at or above the water surface on the vertical pool wall and on the edge of the deck or walk next to the pool, at maximum and minimum points and at the points of break between the deep and shallow portions and at intermediate increments of depth, spaced at not more than twenty-five (25) foot intervals. Depth markers shall be in numerals of four (4) inches minimum height and of a color contrasting with the background. Markers shall be on both sides and ends of the pool.
(Code 1986, § 33-64)

Sec. 33-65. Lifesaving equipment.

(a) One (1) unit of lifesaving equipment shall consist of the following: A ring buoy with minimum outside diameter of twenty (20) inches to which shall be attached a length of one-fourth (1/4) inch rope, not less than one and one-half (1 1/2) times the maximum width of the pool; a life pole or shepherd's crook type of pole with minimum length handle of twelve (12) feet; a separate throwing line of one-fourth (1/4) inch rope with length not less than one and one-half (1 1/2) times the maximum width of the pool. Not less than one (1) unit of equipment, as above, shall be provided at every public pool. One unit shall be presumed to be adequate for two thousand (2,000) square feet of pool area, and one (1) additional unit shall be provided for each additional two thousand (2,000) square feet, or major fraction thereof, of pool area.

(b) Lifesaving equipment shall be mounted in conspicuous places, distributed around pool edge, at lifeguard chairs, or elsewhere, ready of access, its function plainly marked, kept in repair and ready condition, and bathers or others shall not be permitted to tamper with it, use it for any purpose other than its intended use, or remove it from its established location.
(Code 1986, § 33-65)

Sec. 33-66. Ladders and stairs.

(a) A minimum of one (1) ladder shall be provided for each seventy-five (75) feet of perimeter and no less than two (2) ladders shall be provided at any pool. Where stairs are provided in a pool, one ladder may be depleted for each set of stairs provided. A side handrail extending up above and returning to the horizontal surface of the pool deck, curb, or coping shall be provided at each side of the ladder.

(b) All stairs entering a public pool shall be recessed. An exception to this may permit the construction of steps directly entering the pool and not recessed into the pool walls, in Types C, D and E.
(Code 1986, § 33-66)

Sec. 33-67. Shallow minimum depth.

Every public swimming pool shall have a minimum depth in the shallow area of the main swimming area of not less than three (3) feet from the overflow level to the floor. Exceptions may be made for Types D and E pools, or in pools built principally for instruction.
(Code 1986, § 33-67)

Sec. 33-68. Slope of floor into shallow area.

In a swimming pool with a diving area, the shallow portion of the pool shall be defined as the portion between the shallow end and the break point between the shallow area and the diving area. The slope of the floor shall be uniform from the break between the diving area and the shallow portion and shall not be greater than one (1) foot of slope in twelve (12) feet, except in small, Type D pools where the pool is less than forty-two (42) feet in overall length, in which case the rate of slope shall not exceed one (1) foot in eight (8) feet.
(Code 1986, § 33-68)

Sec. 33-69. Diving area.

(a) The area of a public swimming pool where diving is permitted shall be, in the case of a rectangular pool, at one (1) end, or may be in a recessed area forming one (1) of the legs of a T, L or Z shaped pool, divorced from the main swimming area by a life line, or may be a wholly separate structure. Exceptions to this may be made in special purpose type pools intended for training and instruction.

(b) Pools of the types wherein diving is permitted shall have adequate area and depth of water for safe diving and the minimum depth and area characteristics for this area shall be as indicated in the accompanying chart.
(Code 1986, § 33-69)

Editor's note—The chart to which references is made in this section is not set out in this Code but is on file in the office of the clerk of city council, along with Ord. No. 5725, from which this article was derived.

Sec. 33-70. Vertical wall depth.

(a) All public pool walls shall be vertical for a minimum depth of two (2) feet, six (6) inches. Exceptions to this requirement may be made in Types C, D and E pools, only when there is a clear understanding that the owner does not intend or desire that such pool may be used for competition in aquatic sports, at any time in the future. In these excepted cases where a departure from vertical walls is permitted, the maximum batter or slope shall not exceed one (1) foot horizontal to five (5) feet vertical or an angle of eleven degrees (11°)—twenty (20) feet from the vertical.

(b) In all types A and B pools or in any other type where it is considered that the conduct of swimming competition may be desirable at any time in the future, the walls at opposite ends of any possible racing course shall be parallel and be vertical for at least two (2) feet six (6) inches of the water surface.
(Code 1986, § 33-70)

Sec. 33-71. Walks.

(a) Walks shall be continuous around the pool with a minimum width of eight (8) feet of unobstructed clear distance including a curb at the pool edge, if such a curb is used. Exceptions may be made in Types B, C, D, E and F as below:

B—Four (4) feet.

C—Four (4) feet.

D—Four (4) feet.

E—No minimum.

F—Four (4) feet.

(b) A minimum of three (3) feet walk width shall be provided on the sides and rear of any piece of diving equipment.

(c) All walks, decks and terraces shall have a minimum slope of one-fourth (¼) inch per foot to drains or points at which the water will have a free unobstructed flow to points of disposal at all times.

(d) The finish texture of walks must be nonslip and such that there will be no discomfort to bare feet.

(e) Hose bibbs shall be provided around the perimeter of the deck area at intervals such that all parts of the swimming pool deck area may be reached with a fifty (50) foot hose.
(Code 1986, § 33-71)

Sec. 33-72. Enclosure.

(a) A wall or other enclosure of four (4) feet minimum height and with a maximum of two (2) inch mesh, two (2) inches wide vertical openings, or otherwise so constructed as to be difficult to climb, shall be provided completely enclosing the pool area, all of which shall be paved.

(b) Exceptions may be made for Types C and D. In Types C and D where the fence is dispensed with, a hedge or other clear demarcation shall be provided, with instructions and posting clearly defining the pool area as for bathers only and from which spectators and others in street clothes are rigidly excluded.

(c) Access to the pool by bathers shall be provided only through the bath house or dressing room facilities, and any other fence opening shall be for service operations only.
(Code 1986, § 33-72)

Sec. 33-73. Overflow gutters.

(a) An overflow gutter shall be installed continuous around all public swimming pools, with the exception that where surface skimmers of acceptable design, and in adequate number, as described in section 33-74, are employed, the overflow gutter may be eliminated in all pools having a surface area of less than five thousand (5,000) square feet.

(b) Overflow gutter shape, wherein the outer edge of the lip is flush with the pool wall above and below the gutter, entirely recessed, shall not be permitted.

(c) The overflow gutter depth below the overflow lip shall be a minimum of two (2) inches at the high points between drains. The drains shall be spaced at a maximum of fifteen (15) feet on centers and a slope provided in the bottom of not less than two and one-half (2½) inches in ten (10) feet. In no sense is this intended to preclude the use of roll-out or deck level type pools where other conditions are met and satisfactory design is provided.

(d) The branch piping to each overflow gutter drain shall not be less than two (2) inches.

(e) Where overflow gutter drains discharge into sanitary sewers, a trap shall be provided in each main before discharge into the sewer.

(f) Overflow gutter mains shall be of adequate size such that, under conditions of maximum flow, there shall be no surcharge or back pressure greater than one (1) foot and in no case greater than one (1) foot less than the difference in elevation between the drain fittings and the flow line of the waste main, in order that there shall at all times be a free flow from all overflow gutter drains.

(g) Where overflow gutters discharge into a sanitary sewer or storm sewer, an air-gap of not less than one (1) foot shall be provided between the point of discharge of the gutter and the drains into the sewer, or a relief manhole shall be provided where surcharge or back pressure will overflow at a point not less than twelve (12) inches below the elevation of the overflow gutter fittings in the gutter.

(h) Overflow gutters will not be connected to recirculation water.
(Code 1986, § 33-73)

Sec. 33-74. Surface skimmers.

Skimmers may be permitted in lieu of overflow gutters on swimming pools of Types B, C, D and E, providing acceptable handhold is installed. At least one (1) skimming device shall be provided for each eight hundred (800) square feet of surface area or fraction thereof. The handhold must be no more than nine (9) inches above the normal waterline. Skimming devices shall be built into the pool wall, shall adequately remove floating oils and waste and shall meet the following general specifications:

(1) Each skimmer shall be designed for a flow-through rate of at least thirty (30) gallons per minute and the total capacity of all skimmers in any pool shall be approximately fifty percent (50%) of the required filter flow of the recirculation system.

(2) They shall be automatically adjustable to variations in water level over a range of at least three (3) inches.

(3) An easily removable and cleanable basket or screen through which all overflow water must pass shall be provided to trap large solids.

(4) The skimmer shall be provided with a device to prevent airlock in the suction line. If an equalizer pipe is used, it shall provide an adequate amount of make up water for pump suction, should the water of the pool drop below the weir level. This pipe shall be at least two (2) inches in diameter and shall be located at least one (1) foot below the lowest overflow level of the skimmer.

(5) An equalizer line shall be provided with a valve that will remain tightly closed under normal operating conditions, but will automatically open at a differential of not more than four (4) inches between the pool level and the level of the overflow tank.

(6) The overflow weir shall be of sufficient length to maintain a rate of flow at least twenty (20) gallons per minute per lineal foot of weir lip.

(7) Skimmer shall be of substantial, enduring and reasonably corrosion-resistant.

(8) One (1) skimmer will be placed at a point in the pool opposite the direction of prevailing summer winds.

(Code 1986, § 33-74)

Sec. 33-75. Recirculation and filtration equipment.

All public swimming pools shall have recirculation and filtration equipment provided for water purification in accordance with criteria in this article. Fill and draw pools are prohibited.

(Code 1986, § 33-75)

Sec. 33-76. Sand filters.

These minimum standards shall apply, where applicable, to either gravity or pressure sand filters.

(1) Filter tanks shall be designed with a factor of safety of four (4) in relation of working pressure to ultimate strength.

(2) The filter bed shall consist of suitable grades of filter sand and a supporting bed of graded gravel or other porous material which shall serve to support the filter bed and distribute both filtered and backwash water uniformly. The supporting bed consisting of graded gravel or other material shall support not less than twenty (20) inches of filter media consisting of silica sand or other durable, inert material with an effective size between four-tenths (0.4) and fifty-five-hundredths (0.55) millimeters, and a uniformity coefficient and not exceeding one and three-quarters (1.75).

(3) The minimum freeboard to the drawoff point of backwash water shall not be less than twelve (12) inches above the normal level of the top of the filter bed. The minimum backwash rate shall be not less than twelve (12) gallons per square foot of filter bed per minute.

(4) Where anthracite coal or other filter media is employed, the freeboard shall be adequate to prevent the media being carried off to waste when the filter bed is backwashed at a rate adequate to carry off foreign material filtered from the water. The freeboard and the rate of backwash shall be the subject of individual design, based upon specific gravity of the media.

(5) The underdrain system shall be such that uniform collection of filtered water and distribution of backwash water shall be provided over the entire bed area.

(6) Ratio of total underdrain orifice area to total area of bed shall not be less than one-quarter (0.25) percent, nor more than four-tenths (0.40) percent.

(7) Orifices or interstices in the underdrain system shall be uniformly distributed over the entire filter bed area, or so designed that the flow of water through the beds shall be at uniform velocity and uniform rate over the whole area for both filtering and backwashing operations, within minimum practicable limits and those established by generally approved and accepted waterworks practice. The underdrain system design shall be one (1) which demonstrably will provide a uniform flow distributed over the entire bed area.

(8) The underdrain system shall be provided of material which is corrosion-resistant and enduring, wherein the orifices shall be so designed and of such material that they will maintain approximately constant area and velocity.

(9) Design rate for sand filters shall be three (3) gallons per minute, per square foot of bed area, at time of maximum head loss, as a minimum standard.

(10) The filter plant shall be provided with influent and effluent pressure gauges, illuminated backwash sight glass and air relief valves.

(11) The filter plant shall be provided with face piping and valving to permit the functions of filtering to pools or backwashing to waste with the battery as a whole or any unit operated singly.

(12) The filter plant shall be provided with means for draining all filter units and piping, so that all parts of the system may be completely drained to prevent damage from freezing.

(Code 1986, § 33-76)

Sec. 33-77. Diatomaceous earth filters.

All diatomite type filters, whether of the vacuum or pressure type, shall comply in all respects with the standards of the National Sanitation Foundation covering such filters. The following requirements are applicable:

(1) Sufficient filter area shall be provided to meet the design pump capacity.

(2) The design rate of filtration shall not be greater than the following:

DESIGN RATE OF FILTRATION
(GPM/Sq.Ft. of effective filtering surface)

Types of Filtration Systems	*Rates*	*Type of Body Feed*
Pressure	2.0	Without continuous body feed.
	2.5	With continuous body feed.
Vacuum	1.5	Without continuous body feed.
	2.0	With continuous body feed.

(3) Where body feed is provided, the device shall be accurate (ten percent (10%)) and dependable, and shall be capable of continually feeding within a calibrated range, adjustable from two (2) to six (6) ppm, at the design capacity of the recirculation pump.

(4) Filter area, where fabric is used, shall be determined on the basis of effective filtering surfaces as created by the septum supports with no allowances for areas of impaired filtration, such as broad supports, folds or portions which may bridge.

(5) The filter and all component parts shall be of such materials, design and construction as to withstand normal continuous use without significant deformation, deterioration, corrosion or wear which could adversely affect filter operation.

(6) The filter shall be so designed and constructed, or provision made, to preclude the introduction of appreciable quantities of filter aid into the pool during pre-coating operations.

(7) The tank containing the filter elements shall be constructed of steel or other suitable material approved by the department. Pressure filters shall be designed for a minimum working pressure of fifty (50) pounds per square inch with a four (4) to one (1) safety factor. Vacuum filters shall be designed to withstand the pressure developed by the weight of the water contained therein and closed vacuum filters shall, in addition, be designed to withstand the crushing pressure developed under a vacuum of twenty-five (25) inches of mercury with a safety factor of one and one-half (1.5) in both instances. The septa or elements which support the filter aid shall be of corrosion-resistant material and shall be provided with openings, as specified in the NSF standard for diatomite type filters. The septa shall be constructed to be resistant to rupture under conditions of the maximum differential pressure between influent and effluent which can be developed by the circulating pump and of adequate strength to resist any additional stresses developed by the cleaning operation.

(8) Where dissimilar metals, which may set up galvanic electric currents, are used in the filters, provision shall be made to resist electrolytic corrosion. The filters shall be designed in such a manner that they may be easily disassembled with allowances made for adequate working space above and around the filters to allow the removal and replacement of any part and for proper maintenance.

(9) The filter plant shall be provided with such pressure, vacuum or compound gauges as are required to indicate the condition of the filter. In vacuum filter installations where the circulating pump is two (2) horsepower or higher, an adjustable high vacuum automatic shutoff shall be provided to prevent damage to the pump by cavitation.

(10) All filters shall be equipped for cleaning by one (1) or more of the following methods: Backwashing, airbump-assist backwashing, spray wash (meticanical or manual), or agitation.

(11) Provision shall be made for completely and rapidly draining the filter.

(12) Each filter unit shall be provided with an access opening of not less than a standard eleven (11) inch by fifteen (15) inch manhole and cover.

(13) Pressure filter tanks shall be supported by jack legs or other supports to give a free movement of air under each tank and to permit access for painting.

(14) Filter turn-over cycle shall be of a capacity to completely filter the entire pool body in not more than eight (8) hours, and preferably six (6) hours.

(Code 1986, § 33-77)

Sec. 33-78. Compound gauge required.

The pump suction header shall be provided with a compound gauge between the pump strainer and the pump, which will indicate both positive and negative head.
(Code 1986, § 33-78)

Sec. 33-79. Strainers.

(a) At all pressure-type filter plants or where the circulating pump is used for vacuum cleaning the pool, a suitable strainer or screen shall be provided to remove solids, debris, hair, lint, etc. Where a wet well is provided, the strainer shall consist of a removable screen through which all water entering the pump shall pass. Where no wet well is provided or where the suction cleaner or any other suction line is piped directly from the pool to the pumps, a pot-type strainer with removable strainer basket shall be provided. The strainer basket shall be of a rigid construction sufficiently strong to prevent collapsing when clogged. One (1) extra strainer basket shall be provided.

(b) Any type of screen or strainer basket shall be fabricated of a corrosion-resistant material or shall have a protecting coating of such material.

(c) Screen or strainer basket shall have maximum openings no greater than seventy-five percent (75%) of the maximum dimensions of the solids which will pass through the pump impeller without clogging and the total clear area of all openings shall be not less than four (4) times the area of the largest sized pipe from the pool to the strainer influent.
(Code 1986, § 33-79)

Sec. 33-80. Rate-of-flow indicator.

(a) Every public swimming pool provided with a recirculation system shall be provided with a rate-of-flow indicator with the activating element installed with adequate clear distance upstream and downstream to obtain a reasonable degree of accuracy.

(b) In filter installations, the rate indicator shall be on the pump discharge line leading to the filters and shall be calibrated for, and provided with, a scale reading in gallons per minute and shall have a range of at least ten percent (10%) below the established filtration rate and ten percent (10%) above the backwash rate established.
(Code 1986, § 33-80)

Sec. 33-81. Mechanical pool fittings.

(a) Where overflow gutters are installed, outlet spacing shall not be greater than fifteen (15) feet on centers.

(b) Overflow gutter branch lines from each drain fitting shall not be less than two (2) inches I.P.S.

(c) Pool inlets and outlets shall be provided and arranged to produce uniform circulation of water and the maintenance of uniform chlorine residual throughout the pool; there shall be at least four (4) inlets for the smallest pool.

(d) Provisions shall be made to adjust the flow through all inlets.

(e) Maximum flow rates (in gpm) through various sized inlet branches shall not be more than as listed below:

Size:	1"	1¼"	1½"	2"
GPM:	10	20	30	50

(f) In pools with surface area greater than one thousand five hundred (1,500) square feet or length in excess of sixty (60) feet, inlets shall be placed around the entire perimeter. In any case, an adequate number of inlets shall be provided, properly spaced and located to accomplish complete recirculation and the assurance of uniform and adequate sterilizing medium at all times.
(Code 1986, § 33-81)

Sec. 33-82. Main drain spacing.

(a) When the outlets to pool pump suction are installed in the pool floor near one (1) end, the spacing shall not be greater than twenty (20) feet on centers and an outlet shall be provided not more than fifteen (15) feet from each side wall. At least one (1) outlet shall be provided at the lowest point of the floor to completely drain the entire floor area.

(b) The outlet grate clear area shall be such that when the maximum flow of water is being pumped through the floor outlet, the velocity through the clear area of the grate shall not be greater than one and one-half (1½) feet per second. Outlet grates shall be slotted and the minimum dimension of lots shall be not more than one-half (½) inch.

(c) Where outlets fittings consist of parallel plates, of so-called antivortex type where the water enters the fittings from the sides, rather than through a grating facing upward, entrance velocities may be increased to six (6) feet per second.

(d) All pool fittings shall be of corrosion-resistant materials.
(Code 1986, § 33-82)

Sec. 33-83. Piping.

(a) The determination of sizes of pipe, fittings and valves on the complete main pump suction line from the swimming pool shall be based upon a rate of friction losses for piping of not more than six (6) feet per one hundred (100) feet of pipe based upon Hazen-Williams formulae for fifteen (15) year old piping.

(b) All piping on the discharge side of the pump for filtration and to the point for discharge of backwash water from the filter plant shall have pipe sizes determined on a basis of friction losses which shall not be more than twelve (12) feet per one hundred (100) feet and the velocity in any pipe shall not exceed ten (10) feet per second and pipe selection shall be made based upon Hazen-Williams formulae for fifteen (15) year old pipe. In the determination of pipe sizes required, the criterion which would call for the largest pipe shall govern.

(c) All pool piping shall be supported by piers or otherwise to preclude against possible settlement which will either provide dirt traps or air pockets and a condition which would result in rupture of the lines.

(d) All pressure and suction lines shall have a uniform slope in one direction of not less than three (3) inches per one hundred (100) feet. Gravity waste lines around the pool six (6) inches or smaller shall have a minimum slope of one-eighth (1/8) inch per foot. Lines larger than six (6) inches and all outfall waste mains shall be designed with a size of pipe and slope to freely carry the maximum flows required and with no surcharge or back pressure in lines. All piping and equipment shall be provided with positive means of completely draining all water to prevent damage from freezing.
(Code 1986, § 33-83)

Sec. 33-84. Pump and motor.

(a) A pump and motor unit shall be provided for recirculation of the pool water which has been selected for performance and will meet the conditions of quantity required for filtering and cleaning the filters with the total dynamic head developed by the complete system. The requirements for filtration shall be based upon the maximum head loss developed immediately prior to washing the filters. The motor shall be nonoverloading in continuous operation for filtration under all conditions but may be overloaded within the service factor for conditions of backwash and for emptying the pool.

(b) Pump performance curve for the unit to be installed shall be provided and submitted to proper authorities for review and approval.
(Code 1986, § 33-84)

Sec. 33-85. Vacuum cleaner.

Where facilities are installed integrally in the pool piping system for the operation of a vacuum cleaner, the piping and hose shall be required to produce not more than fifteen (15) feet total head loss and the pump, while moving four (4) gallons per lineal inch of cleaner head.
(Code 1986, § 33-85)

Sec. 33-86. Sterilizing agent.

Some means of sterilizing the pool water shall be used which provides a residual of sterilizing agent in the pool water. Either chlorine or bromine may be used for this purpose. In either case, adequate feeding equipment and equipment for testing residuals must be employed. Inasmuch as chlorine is almost universally used, minimum standards for the use of chlorine are given below:

(1) Equipment for supplying chlorine or compounds of chlorine shall be of capacity to feed one (1) pound of available chlorine per three thousand (3,000) gallons of pool volume per twenty-four (24) hour period. This may be reduced by fifty percent (50%) for Type E pools.

(2) In all public pools, elementary chlorine shall be supplied by means of a gas chlorinator which controls and regulates the flow of the gas and mixes it in a water solution which in turn is injected into the pool water circulating system ahead of the filters.

(3) An exception to these criteria may be made in all types of pools where bromine may be substituted for chlorine and appropriate equipment of acceptable and approved type supplied for feeding this material.

(4) A further exception to subsection (2) of this section shall permit the use of hypochlorite supplied by a suitable hypochlorinator in all pools having a capacity of not more than seventy-five thousand (75,000) gallons of water.

(5) Any hypochlorinator, to be acceptable for public pool use, shall conform to the following requirements and shall be sold by the manufacturer explicitly to meet these conditions and so warranted:

a. Capacity shall be adequate to supply one (1) pound of free chlorine per three thousand (3,000) gallons of water in the pool per twenty-four (24) hour period.

b. Feed shall be positive under all conditions of pressure in the circulating system, and without construction of the pump suction line whether this line is flooded or under vacuum head.

c. Feed rate shall be adjustable with the pump in operation. Each suction stroke of the pump shall be visible through a sight feed indicator.

d. Regulation shall be provided to ensure constant feed with varying supply or back pressure.

e. Positive features to prevent backflow from circulation system to the solution container and provision for reducing the free line from calcium hypochlorite entering the pool to a minimum.

f. No illegal cross-connection with domestic water supply shall be permitted.

(6) The term "chlorine" shall not be used to refer to any hypochlorite compounds nor to any material except elementary, free chlorine, which occurs at atmospheric pressure and normal summer temperatures as a gas, commercially sold in a compressed form as a liquid. Only equipment used to supply or feed elementary chlorine may be referred to or used to describe a chlorinator. Hypochlorite compounds containing chlorine shall only be known and sold as a "hypochlorite" such as calcium hypochlorite, sodium hypochloride, et al.; and may not be called chlorine. Equipment used to supply or feed a hypochlorite compound shall be known as a chlorinator. Use of either "chlorine" or "chlorinator" improperly, in this manner, represents clear and improper misrepresentation.

(Code 1986, § 33-86)

Sec. 33-87. Chlorine compartment.

(a) Where gaseous equipment is provided below grade in a filter room or in any part of a building which provides housing, the mechanical proportioning device and cylinders of chlorine shall be housed in a reasonably gastight, corrosion-resistant and mechanically vented enclosure. Airtight ducts from the bottom of the enclosure to atmosphere in an unrestricted area and a motor-driven exhaust fan capable of producing at least one (1) air change per minute shall be provided. Automatic louvers of good design near the bottom of the enclosure for admitting fresh air are required. An opening at least eighteen (18) inches square, glazed with clear glass, and artificial illumination shall be provided in an amount such that the essential performance of the equipment may be observed, at all times, without opening the enclosure.

(b) Electrical switches for the control of artificial lighting and ventilation shall be on the outside of the enclosure adjacent to the door. The floor area of the enclosure shall be of adequate size to house the chlorinator, fan, scales and one (1) extra chlorine cylinder. Gas masks approved by the Bureau of Mines for protection against chlorine gas shall be provided, mounted outside the chlorine compartment.

(Code 1986, § 33-87)

Sec. 33-88. Testing equipment.

A test set shall be provided for the determination of free chlorine residual and the pH hydrogen ion content in the pool water, of colorimetric type. A supply of appropriate re-agents for making each type of test shall be provided. Color standards shall be furnished for each of the tests called for below, which shall effect an accurate comparison to sample to be tested, both from the standpoint of color as well as density, and shall be permanent and nonfading. Materials used shall be resistant to corrosion.

Chlorine color standards . . . . . .0.2, 0.4, 0.6, 0.8, 1.0, 1.5 ppm.

pH color standards. 6.8, 7.2, 7.4, 7.6, 8.0, 8.4
(Code 1986, § 33-88)

Sec. 33-89. Coagulant feeder and pH adjustment.

(a) The coagulant feeder shall be an electrically powered, positive-displacement type pump to ensure full delivery of the chemical solution being fed. Feed rate shall be adjustable with the pump in operation. Each suction stroke of the pump shall be visible through a sight feed indicator. The point of application shall be on the suction side of the circulating pump. The feeder shall be capable of delivering sufficient chemical solution to treat the pool water with a dosage of not less than three (3) grains per gallon.

(b) (1) For adjustment for pools of more than seventy-five thousand (75,000) gallons capacity, an electrically powered, positive displacement type pump shall be used. The point of application shall be in the return line between the filters and the pool. The capacity of the feeder shall be such that the pH of the pool will be maintained as set forth in section 33-90(4).

(2) For pools less than seventy-five thousand (75,000) gallons capacity other means of pH control such as pH blocks, etc., will be accepted.

(3) Cast-iron pot-type feeders or any feeder that depends on differential pressures are prohibited.
(Code 1986, § 33-89)

Sec. 33-90. Quality of water.

The equipment, when operated in accordance with the manufacturer's instructions, shall provide water meeting the following standards:

(1) Shall meet the state's department of public health's requirements for bacteriologically potable water.

(2) Shall have a degree of clarity such that a disc two (2) inches in diameter which is divided into quadrants in alternate colors of red and black shall be clearly discernible through fifteen (15) feet of water and the different colors readily distinguishable.

(3) Shall have a minimum free available chlorine residual at any point in the pool of not less than four-tenths (0.4) ppm and not more than one and one-half (1.5) ppm at any time.

(4) The pH or measure of hydrogen ion content at no time shall be below seven and four-tenths (7.4) and shall be maintained between this limit and eight and two-tenths (8.2) on the hydrogen ion scale.
(Code 1986, § 33-90)

Sec. 33-91. Electrical and lighting requirements.

(a) *Submarine lighting.* Where submarine lighting is used, not less than one-half (0.5) watts shall be employed per square foot of pool area.

(b) *Area lighting.* Where submarine lighting is employed, area lights shall be provided for the deck areas and directed toward the deck areas and away from the pool surface insofar as practical in a total capacity of not less than six tenths (0.6) watts per square feet of deck area. Where submarine lighting is not employed and night swimming is permitted, area and pool lighting combined shall be provided in an amount of not less than two-tenths (0.2) watts per square foot of pool area.

(c) *Compliance with code.* All wiring in connection with requirements for a swimming pool for lighting or power shall conform with the National Electrical Code.

(d) *Grounding.* In addition to any other grounding, each submarine light unit shall be individually grounded by means of a screwed or bolted connection to the metal junction box from which the branch circuit to the individual light proceeds.

(e) *Overhead wiring.* No electrical wiring for lights or power shall be permitted to pass overhead within twenty (20) feet of the pool enclosure.
(Code 1986, § 33-91)

Sec. 33-92. Number of bathers.

The maximum number of persons in bathing attire within the pool enclosure or the bathing area shall be limited to one (1) person per twenty (20) square feet of pool and deck area combined.
(Code 1986, § 33-92)

Sec. 33-93. Bathhouses.

(a) Adequate dressing and sanitary plumbing facilities shall be provided for every public swimming pool. An exception to this may be made in Types B, C, D, E and F pools where available facilities are provided in connection with the general development for other purposes, etc., of adequate capacity and number, in close proximity to the pool.

(b) Every bathhouse shall be provided with separate facilities for each sex with no interconnection between the provisions for male and female. The rooms shall be well-lighted, drained, ventilated and of good construction, with impervious materials employed in general, finished in light colors and so developed and planned that good sanitation can be maintained throughout the building at all times.

(1) *Minimum sanitary plumbing facilities.* Minimum sanitary plumbing facilities shall be provided as follows:

a. *Males.*

i. One (1) water closet combination, one (1) lavatory and one (1) urinal shall be presumed to be adequate for the first one hundred (100) bathers. One (1) water closet and one (1) urinal shall be provided for each additional one hundred fifty (150) bathers or major fraction thereof. One (1) lavatory shall be provided for each two hundred (200) additional bathers.

ii. A minimum of three (3) shower heads shall be provided which shall be presumed to be adequate for the first one hundred fifty (150) males and one (1) shower outlet shall be provided for each additional fifty (50) male bathers.

b. *Females.*

i. A minimum of two (2) water closet combinations shall be provided in each bathhouse building and this shall be presumed to be adequate for the first one hundred (100) females.

ii. One (1) additional water closet combination shall be provided for each additional seventy-five (75) females or fraction thereof.

iii. One (1) lavatory shall be provided as a minimum, which shall be considered adequate for the first seventy-five (75) females.

iv. One (1) additional lavatory shall be provided for each additional seventy-five (75) females in attendance, or major fraction thereof.

v. A minimum of two (2) shower heads shall be provided, which shall be presumed to be adequate for the first one hundred (100) females and one (1) shower shall be added for each fifty (50) additional females.

c. *Male/female ratio.* These minimum criteria for bathhouse plumbing facilities shall be based upon the anticipated maximum attendance in bathers. Facilities for either sex shall be based upon a ratio of sixty percent (60%) of the total number of bathers being male and forty percent (40%) being female, excepting where the pool is confined to use by one (1) sex only, wherein one hundred percent (100%) of plumbing facility requirements shall be provided for that sex.

d. *Showers and dressing booths.* Shower and dressing booths shall be provided in female dressing space and dressing booths shall be provided with curtains or other means of seclusion. This condition may be subject to variations for schools and other institutional use where a pool may be open only to one (1) sex at a time.

(2) *Drinking fountain.* Not less than one (1) drinking fountain shall be provided available to bathers both at the pool and in the bathhouse.

(3) *Hose bibbs.* Hose bibbs shall be provided for slushing down the dressing rooms and bathhouse interior.

(4) *Floors.* The floors of the bathhouse shall be of concrete, free of joints or openings and shall be continuous throughout the area with a very slight texture to minimize slipping, but which shall be relatively smooth to ensure complete cleaning. Floor drains shall be provided to ensure positive drainage of all parts of the building with a slope in the floor of not less than one-fourth (1/4) inch per foot, toward drains.

(5) *Hot water.* Tempered water only will be provided at all shower heads. Water heater and thermostatic mixing valve shall be inaccessible to bathers and will be capable of providing two (2) gpm of ninety degrees (90°) Fahrenheit water to each shower head, and no hot or cold water shall be supplied.

(c) No difference in elevation, requiring steps, shall be provided in the interior of male and female dressing areas. No steps shall be permitted between the bathhouse and the pool deck areas adjoining and should it be necessary that the bathhouse floor be at a different elevation from the pool decks, ramps shall be provided at the access doors. Where ramps are used between the bathhouse and pool decks, the slope shall not exceed three (3) inches per foot and shall be positively nonslip.

(d) All partitions between portions of the dressing room areas, screen partitions, shower, toilet and dressing room booths shall be of durable material not subject to damage by water and shall be so designed that a waterway is provided between the partitions and floor to permit thorough cleaning of the floor area with hose and brooms.

(e) Soap dispensers for providing either liquid or powdered soap shall be provided at each lavatory and between each pair of shower heads, and dispensers must be of all-metal or plastic type and no glass permitted in these units.

(f) Mirrors shall be provided over each lavatory and toilet paper holders shall be provided at each water closet.

(g) All water provided for drinking fountains, lavatories and showers shall be potable, meet the requirements and conform with the standards of the United States Public Health Service.
(Code 1986, § 33-93)

Sec. 33-94. Food service.

Where provision is made for serving food and/or beverages at the pool, no containers of glass or other material which might be a hazard to bathers' feet, when broken, shall be used. The area shall be so arranged and posted to prohibit the consumption of food and beverages on the pool decks proper.
(Code 1986, § 33-94)

Sec. 33-95. Wading pools.

(a) By definition, a "wading pool" shall normally be a small pool for non-swimming children only, used only for wading and shall have a maximum depth at the deepest point not greater than twenty-four (24) inches.

(b) Owing to the high degree of pollution likely to be present, a wading pool shall have a maximum turnover cycle of four (4) hours. The supply to the wading pool shall consist of filtered and chlorinated water from the large pool filtration and recirculation system. The circulating outlets from the wading pool may be wasted or may be returned to the circulation system of the large pool at the suction side of the pump for refiltration. There shall also be provided a waste outlet at the deepest point of the wading pool, by means of which it shall be completely emptied to waste.

(c) In general, standards of sanitation in circulation, surface skimming and all other details shall be equal or superior to those for swimming pools. Wading pools, by the nature of their usage, are likely to become polluted and a public hazard. Where installed, they shall be operated very carefully to minimize the danger to the public health. They shall be drained, scrubbed out and disinfected once daily. It is considered to be very desirable to install a spray pool in lieu of a wading pool, wherein no water stands at any time but is drained away freely to sewers as it sprays over the area.
(Code 1986, § 33-95)

Sec. 33-96. Utility connections.

(a) No direct mechanical connection between a source of domestic water supply shall be made to a swimming pool or the piping therefor, thereby eliminating a cross connection to what may become a source of contamination.

(b) The water supply for filling the pool, when derived from a potable supply, shall be by means of an overfall fillspout to the pool, or an overfall supply to a surge tank, wherein the water will freely overflow at deck level or the top of the surge tank, before coming into contact with the water supply outlet.

(c) The disposition of sanitary sewage from the bathhouse shall be into a sanitary sewer, a septic tank or other waste line which meets with the approval of local health authorities.

(d) Whenever any waste from the swimming pool is connected to a sanitary sewer or a storm sewer, an air-gap or a relief manhole shall be provided which will positively preclude against surge or backflow introducing contaminated water into the swimming pool or the water treatment plant as covered elsewhere.
(Code 1986, § 33-96)

Sec. 33-97. Indoor pool temperature.

Temperature of indoor pools shall be maintained between seventy-five degrees (75°) and eighty-five degrees (85°), Fahrenheit, with exceptions made in Type E pools.
(Code 1986, § 33-97)

Sec. 33-98. Diving towers.

Diving towers in excess of three (3) meters in height shall not be considered as acceptable in a public pool without special provisions, controls and definite limitations on their use.
(Code 1986, § 33-98)

Sec. 33-99. Operating instructions.

Upon the completion of any swimming pool, the owner and his operators shall be given complete written and oral instructions in the operation of the pool and all of the equipment, in the maintenance of the equipment. Also, these instructions shall consist of operation of the plant under his observation for a period of not less than three (3) days. All valves shall be permanently tagged and valve operating schedule shall be provided for every operation. Instructions shall be supplied in not less than two (2) copies.
(Code 1986, § 33-99)

Chapter 34

TRAILERS AND TRAILER CAMPS*

Article I. In General

Secs. 34-1—34-15. Reserved.

Article II. Trailer Camps

Division 1. Generally

Sec. 34-16. Definitions.
Sec. 34-17. Scope; compliance required.
Sec. 34-18. Enforcement; right of entry.
Sec. 34-19. Management.
Sec. 34-20. Qualifications of manager.
Sec. 34-21. Business office, records required; availability for inspection.
Sec. 34-22. Register.
Sec. 34-23. Rules of conduct to be established.
Sec. 34-24. Specific duties of manager.
Sec. 34-25. Drainage, grading.
Sec. 34-26. Spaces required; size.
Sec. 34-27. Arrangement of camp cars or trailers; access to street.
Sec. 34-28. Water supply; common cups prohibited.
Sec. 34-29. Water closets.
Sec. 34-30. Drainage from plumbing fixtures.
Sec. 34-31. Showers and shower rooms.
Sec. 34-32. Laundry facilities.
Sec. 34-33. Lighting.
Sec. 34-34. Receptacles for garbage, rubbish.
Sec. 34-35. Fire protection.
Sec. 34-36. Maintenance of grounds and equipment.
Sec. 34-37. Conversion of camp car or trailer into permanent structure.
Sec. 34-38. Dogs at large prohibited.
Sec. 34-39. Additional regulations authorized.

Secs. 34-40—34-50. Reserved.

Division 2. Permit

Sec. 34-51. Required.
Sec. 34-52. Application.
Sec. 34-53. Inspection fee to accompany application.

***Cross references—**Buildings, Ch. 10; housing, Ch. 21; motor vehicles and traffic, Ch. 24; parks and playgrounds, Ch. 26; streets and sidewalks, Ch. 32; swimming pools, Ch. 33; vehicles for hire, Ch. 35; zoning regulations, Ch. 38.

Sec. 34-54. Proposed site to be inspected, approved.
Sec. 34-55. Issuance; expiration; transfer.
Sec. 34-56. Display.
Sec. 34-57. Revocation, suspension.

ARTICLE I. IN GENERAL

Secs. 34-1—34-15. Reserved.

ARTICLE II. TRAILER CAMPS

DIVISION 1. GENERALLY

Sec. 34-16. Definitions.

For the purposes of this article, the following terms shall have the meanings respectively ascribed to them in this section:

Camp car, trailer shall mean any unit used for living or sleeping purposes which is equipped with wheels or similar devices used for the purpose of transporting such unit from place to place, whether by motive power or other means.

Campground shall mean any place, area or tract of land upon which is located any camp car or trailer.

Health officer shall mean the director of health of the city.
(Code 1986, § 34-16)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 34-17. Scope; compliance required.

The provisions of this article shall be applicable to every campground in the city, and every person owning, leasing, renting or operating a campground in the city or living or sleeping in any campground or in any camp car or trailer located therein shall comply with its provisions and the provisions of any rules and regulations formulated by the health officer hereunder.
(Code 1986, § 34-17)

Sec. 34-18. Enforcement; right of entry.

The health officer shall enforce the provisions of this article and for such purpose he or his duly authorized representatives may enter upon the premises of any campground in the city to inspect the same and all accommodations connected therewith.
(Code 1986, § 34-18)

Sec. 34-19. Management.

Each campground shall be under the direct supervision and management of the holder of the permit provided for in Division 2 of this article or his agent or representative, for whose acts he shall be fully responsible. The name of the person entrusted with the immediate management and control of such campground shall be filed for reference with the health department.
(Code 1986, § 34-19)

Sec. 34-20. Qualifications of manager.

The manager of any campground shall be of good reputation and character and shall satisfy the health officer as to his experience, training and capacity to supervise, manage, regulate, control and maintain good order in such campground.
(Code 1986, § 34-20)

Sec. 34-21. Business office, records required; availability for inspection.

Each campground shall be provided with a building to be known as the office, in which shall be kept copies of all records pertaining to the management or supervision of the campground. Such records shall be available for inspection by the health officer or by police officers.
(Code 1986, § 34-21)

Sec. 34-22. Register.

(a) The owner of any campground, or his agent or manager, shall keep a register containing a record of all owners and occupants of camp cars or trailers located in such campground. Such register shall contain the following information:

(1) Name and address of each occupant.

(2) Make, model and year of all automobiles, camp cars and trailers.

(3) License number and owner of each camp car or trailer and automobile by which it is towed.

(4) State issuing such licenses.

(5) Dates of arrival and departure of each camp car or trailer.

(b) The owner or his agent or manager shall keep the register available for inspection at all times by police officers, the health officer and his assistants, and other officials whose duties necessitate acquisition of the information contained in the register. The register records shall not be destroyed for a period of three (3) years following the date of registration.
(Code 1986, § 34-22)

Sec. 34-23. Rules of conduct to be established.

The owner of each campground in the city, his agent or manager, shall prescribe rules and regulations for the management of such campground in conformity with this article, and shall make adequate provision for the enforcement of such rules.
(Code 1986, § 34-23)

Sec. 34-24. Specific duties of manager.

The owner of each campground in the city, his agent or manager, shall provide specifically for the following:

(1) Regular inspection of water and sanitary conveniences.

(2) Collection and removal of garbage or other waste materials.

(3) Prohibition of the placing or storage of unsightly vehicles of any kind.

(4) Regular cleaning, painting, repairing and disinfecting of all buildings.

(5) Causing each dog or other pet animal to be kept penned and under control at all times.

(6) Reports to the health officer of all cases of communicable disease or suspected cases of communicable disease affecting any inmate of the campground.

(7) Reports to the police department of all acts of a disorderly character committed by any person inside the campground.

(Code 1986, § 34-24)

Sec. 34-25. Drainage, grading.

Every campground in the city shall be located on a well drained area and the premises of every such campground shall be properly graded so as to prevent the accumulation of storm or casual waters.
(Code 1986, § 34-25)

Sec. 34-26. Spaces required; size.

Every campground in the city shall be laid out with available unoccupied space of not less than fifteen (15) feet by twenty (20) feet for each camp car or trailer. Such available unoccupied space shall not be construed to mean the space directly under any portion of any camp car or trailer.
(Code 1986, § 34-26)

Sec. 34-27. Arrangement of camp cars or trailers; access to street.

Camp cars or trailers shall be arranged in rows abutting or facing on a driveway or clear unoccupied space of not less than ten (10) feet in width, which shall have unobstructed access to a street.
(Code 1986, § 34-27)

Sec. 34-28. Water supply; common cups prohibited.

An adequate supply of pure water for drinking and domestic purposes shall be supplied to meet the requirements of every campground. Such water supply shall be obtained from faucets only, conveniently located in the campground. No dipping or common cups shall be permitted.
(Code 1986, § 34-28)

Sec. 34-29. Water closets.

There shall be provided in every campground one (1) water closet for each sex. One (1) of such water closets shall be distinctly marked "For Women" and one (1) shall be distinctly marked "For Men." There shall be provided an additional water closet for each sex for every fifteen (15) persons or fractional part of such number, in excess of fifteen (15) such persons living in such campground. Water closets shall comply with the provisions of Article IV of Chapter 31 of this Code and shall be kept in a clean and sanitary condition at all times.
(Code 1986, § 34-29)

Sec. 34-30. Drainage from plumbing fixtures.

It shall be unlawful for any person in a campground to permit the drainage from plumbing fixtures in camp cars or trailers to be deposited upon the surface of the ground. All such fixtures, when in use, shall be connected to the city sewer or the drainage therefrom shall be disposed of in compliance with the provisions of Article IV of Chapter 31 of this Code.
(Code 1986, § 34-30)

Sec. 34-31. Showers and shower rooms.

Public shower nozzles shall be provided for each sex in every campground in the same ratio for men and women as provided herein for water closets, and they shall be distinctly marked "For Women" and "For Men," and shall be supplied at all times with an adequate supply and quantity of hot water. Shower room floors shall be washed and disinfected daily with a solution of two percent (2%) Lysol or one hundred (100)

parts per million chlorine. The drainage therefrom shall be connected with the city sewer system or otherwise disposed of in a manner satisfactory to the health officer. Such showers and shower rooms shall be kept in a clean and sanitary condition at all times.
(Code 1986, § 34-31)

Sec. 34-32. Laundry facilities.

Laundry facilities shall be provided in every campground in the ratio of one (1) double laundry tub and ironing board for every camp car or trailer space provided under section 34-26 of this Code. An electrical outlet supplying current sufficient to operate an iron shall be located conveniently near the ironing board. Drying spaces shall be provided sufficient to accommodate the laundry of the occupants of each camp car or trailer. The service building housing the laundry facilities shall be a permanent structure complying with the ordinances of the city and laws of the state relating to the erection and maintenance of buildings and other structures, plumbing and electrical installations.
(Code 1986, § 34-32)

Sec. 34-33. Lighting.

Every campground shall be provided with means of lighting the same at night. All public water closets and bath units therein shall be provided with adequate lighting facilities which shall be kept lighted during the time from one-half (½) hour after sunset until one-half (½) hour before sunrise.
(Code 1986, § 34-33)

Sec. 34-34. Receptacles for garbage, rubbish.

There shall be provided in every campground such number of tight receptacles with close-fitting metal covers for garbage, refuse, ashes and rubbish may be deemed necessary by the health officer. Such receptacles shall at all times be maintained in a clean and sanitary condition.
(Code 1986, § 35-34)

Cross reference—Garbage and refuse generally, Ch. 18.

Sec. 34-35. Fire protection.

Every campground shall be equipped at all times with one (1) fire extinguisher in good working order for every ten (10) camp car or trailer spaces provided under section 36-28 of this Code located not further than two hundred (200) feet from each such space. No open fires shall be permitted at any place which would endanger life or property. No fires shall be left unattended at any time.
(Code 1986, § 34-35)

Cross reference—Fire prevention generally, Ch. 17.

Sec. 34-36. Maintenance of grounds and equipment.

Every person owning or operating a campground shall maintain such campground and any toilets, baths or other permanent equipment in connection therewith, in a clean and sanitary condition, and shall maintain such equipment in a state of good repair.
(Code 1986, § 34-36)

Sec. 34-37. Conversion of camp car or trailer into permanent structure.

It shall be unlawful for any person owning or operating a camp car or trailer located in a campground to remove or cause to be removed the wheels or any similar transporting device from such camp car or trailer, or otherwise permanently to fix it to the ground in a manner that would prevent the ready removal of such camp car or, trailer, without first obtaining a permit to do so from the building department of the city.

Any such alteration to any camp car or trailer shall be construed as removing it from the requirements of this article and converting it into a dwelling and it shall thereupon be subject to the requirements of the ordinances of the city and laws of the state relating to buildings.
(Code 1986, § 34-37)

Sec. 34-38. Dogs at large prohibited.

Dogs shall not be permitted to run at large in any campground.
(Code 1986, § 34-38)

Cross reference—Dogs generally, § 7-31 et seq.

Sec. 34-39. Additional regulations authorized.

The health officer may, from time to time, formulate and enforce any rules and regulations relating to sanitation or housing that he may deem advisable for the operation of campgrounds or camp cars and trailers. The violation of any such rule or regulation shall be unlawful.
(Code 1986, § 34-39)

Secs. 34-40—34-50. Reserved.

DIVISION 2. PERMIT

Sec. 34-51. Required.

It shall be unlawful for any person to establish, maintain or operate, or to offer for public use in the city any campground without first applying for and receiving from the health officer a permit to do so, issued in the manner provided in this article.
(Code 1986, § 34-51)

Sec. 34-52. Application.

Every person desiring a permit to operate a campground in the city shall file an application in writing with the health department, on a form provided by it, not less than five (5) days nor more than fifteen (15) days before such campground is made ready for use.
(Code 1986, § 34-52)

Sec. 34-53. Inspection fee to accompany application.

The application required by section 34-52 of this Code shall be accompanied by an inspection fee of ten dollars ($10.00), for which the health department shall issue a receipt.
(Code 1986, § 34-53)

Sec. 34-54. Proposed site to be inspected, approved.

Upon the filing of an application for a permit required by this division and payment of the required inspection fee, the health officer or his duly authorized representative shall investigate the premises proposed to be used for a campground and shall determine whether the site selected therefor conforms with the requirements of this article and any rules and regulations of the health department or laws of the state applicable thereto. No permit shall be issued unless the campground or site selected therefor complies with such requirements and meets the approval of the health officer. The health officer may, in his discretion, approve or reject any proposed campground site.
(Code 1986, § 34-54)

Sec. 34-55. Issuance; expiration; transfer.

Upon his approval of the campground or site selected therefor, the health officer shall issue a permit for the operation of such campground, which shall, unless sooner revoked or suspended, continue in effect for one (1) year following the date of its issue. Such permit shall be transferable only upon written application by the holder thereof to the health officer, with his approval.
(Code 1986, § 34-55)

Sec. 34-56. Display.

No person shall establish, maintain or operate any campground in the city unless there is at all times posted in a conspicuous place on such campground the permit required under this division.
(Code 1986, § 34-56)

Sec. 34-57. Revocation, suspension.

Any permit granted under this article shall be subject to revocation or suspension by the health officer in the following manner: A notice shall be served on the person holding such permit specifying wherein he has failed to comply with this article and requiring him to appear before the health officer, at a day and hour specified in such notice, not less than five (5) days after the personal service thereof, and requiring him to show cause at such time and place why his permit should not be revoked or suspended. At the time and place mentioned, the person holding such permit shall have the right to appear in person, or by counsel, and to introduce such evidence as he may desire. The health officer shall confront such permit holder with any charge that may have been made against him. After hearing, the health officer may, if the evidence justifies such action, revoke or suspend the permit.
(Code 1986, § 34-57)

Chapter 35

VEHICLES FOR HIRE*

Article I. In General

Secs. 35-1—35-16. Reserved.

Article II. Taxicabs, Limousines, Shuttles, and Motor Vehicles Transporting Passengers for Hire

Division 1. Passenger Vehicle for Hire Board

Sec. 35-17. Created; membership; term of office and compensation of members; votes required for action of the board.
Sec. 35-18. Secretary; treasurer.
Sec. 35-19. Jurisdiction; appeals.
Sec. 35-20. Passenger Vehicle For Hire Inspector(s).
Sec. 35-21. Duties of chief of police and traffic engineer.

Article III. Regulation of Taxicabs, Limousines, Shuttles, and Motor Vehicles Transporting Passengers for Hire

Division 1. Generally

Sec. 35-22. Definitions.
Sec. 35-23. Equipment and maintenance of vehicles; appeals.
Sec. 35-24. Designation of company name; color scheme and insignia.
Sec. 35-25. Taximeters.
Sec. 35-26. Rates of fare—Schedule.
Sec. 35-27. Same—Filing of changes.
Sec. 35-28. Receipts.
Sec. 35-29. Refusal of passenger to pay legal fare.
Sec. 35-30. Solicitation of passengers by drivers; drivers to remain in or near vehicles.
Sec. 35-31. Prohibited manner of solicitation.
Sec. 35-32. Receipt and discharge of passengers on sidewalk only.
Sec. 35-33. Cruising.
Sec. 35-34. Solicitation of other common-carrier passengers prohibited.
Sec. 35-35. Reserved.
Sec. 35-36. Additional passengers.
Sec. 35-37. Restrictions on number of passengers.
Sec. 35-38. Refusal to carry orderly passengers prohibited.
Sec. 35-39. Taxicab stands—Establishment; use.
Sec. 35-40. Same—Use by other vehicles prohibited.

***Cross references—**Advertising, Ch. 3; metropolitan transient authority, Ch. 23; motor vehicles and traffic, Ch. 24; operation of vehicles in parks, § 26-3; certain commercial vehicles, etc., prohibited in city parks, § 26-5; streets and sidewalks, Ch. 32.

State law references—Motor carriers, T.C.A., § 65-15-101 et seq.; exemption of taxicabs from portion of motor carriers chapter, § 65-15-103(4); municipal authority to regulate jitneys, §§ 65-19-102, 65-19-105; authority to regulate taxicabs, § 7-56-102.

Sec. 35-41. Duty to render service; central place of business required.
Sec. 35-42. Drivers' manifests.
Sec. 35-43. Records and reports by certificate holders.
Sec. 35-44. Duty of Passenger Vehicle For Hire Inspector(s) to enforce ordinance.
Sec. 35-45. Proof of financial responsibility of vehicles for hire required.
Sec. 35-45.1 Immobilization and Impoundment of unauthorized passenger vehicles for hire.

Division 2. Certificate of Public Convenience and Necessity

Sec. 35-46. Required.
Sec. 35-47. Application.
Sec. 35-48. Public hearing.
Sec. 35-49. Issuance.
Sec. 35-50. Proof of financial responsibility required.
Sec. 35-51. Reserved.
Sec. 35-52. Transfer.
Sec. 35-53. Suspension and revocation.

Division 3. Drivers' Permits

Sec. 35-54. Required.
Sec. 35-55. Application.
Sec. 35-56. Public transportation employment; access to criminal conviction histories, police investigation of applicant.
Sec. 35-57. Consideration of application.
Sec. 35-58. Issuance; contents.
Sec. 35-59. Term; renewal fee; temporary medical exception.
Sec. 35-60. Display in vehicle.
Sec. 35-61. Suspension and revocation.

Division 4. Vehicle for Hire Privilege

Sec. 35-62. Required.
Sec. 35-63. Application.
Sec. 35-64. Public Hearing.
Sec. 35-65. Issuance.
Sec. 35-66. Transfer.
Sec. 35-67. Suspension and revocation.
Secs. 35-68—35-145. Reserved.

Article IV. Traffic Incident Management Service

Sec. 35-146. Purpose.
Sec. 35-147. Definitions.
Sec. 35-148. District Wrecker classifications.
Sec. 35-149. Wrecker board.
Sec. 35-150. Permit required; existing permittees.
Sec. 35-151. Same—Application.
Sec. 35-152. Same—Fees; expiration date and renewal.
Sec. 35-153. Same—Investigation of applicant.
Sec. 35-154. Same—Issuance.

Sec. 35-155. Same—Revocation.
Sec. 35-156. Additional required equipment and standards.
Sec. 35-157. Required storage facilities and procedures for district wreckers.
Sec. 35-158. Notification required for vehicles held over thirty (30) days.
Sec. 35-159. Insurance.
Sec. 35-160. Billing and charges for district wreckers.
Sec. 35-161. Districts for district wreckers.
Sec. 35-162. Regulations for district wreckers.
Sec. 35-163. Vehicles to be towed to place designated by owner; coercion at scene of an accident prohibited.
Sec. 35-164. Wreckers to go to scene of accident on call of police only at owner's or operator's request.
Sec. 35-165. Solicitation of towing work by operator, etc., of district wrecker prohibited.
Sec. 35-166. Call and notification procedures for emergency towing and storage.
Sec. 35-167. Fleet Service Contracts.
Sec. 35-168. Severability.
Sec. 35-169. Owner's request.
Sec. 35-170. Penalties for violation of the wrecker board ordinance.
Sec. 35-171. Non-consent towing from private property.
Secs. 35-172—35-180. Reserved.

Article V. Ambulances

Sec. 35-181. Authority to provide service; scope.
Sec. 35-182. Fees; method of determination; availability.
Sec. 35-183. Authority of mayor to negotiate contracts.
Sec. 35-184. Permission required for ambulances to respond to emergency calls.
Sec. 35-185. Reports by drivers.

Article VI. Horse-Drawn Carriages

Division 1. In General

Sec. 35-186. Definitions.
Sec. 35-187. Jurisdiction.

Division 2. Certificate of Public Convenience and Necessity

Sec. 35-188. Required and term.
Sec. 35-189. Application and fees.
Sec. 35-190. Insurance required.
Sec. 35-191. Certificates, generally.
Sec. 35-192. Disciplinary action.
Sec. 35-193. Records and reports.
Sec. 35-194. Temporary permits.
Sec. 35-195. Rates of fare.

Division 3. Horse-Drawn Carriage Drivers

Sec. 35-196. Permit required.
Sec. 35-197. Permit qualifications.
Sec. 35-198. Ineligibility for driver's permit.

Sec. 35-199. Investigation of applicant.
Sec. 35-200. Permit to be posted.
Sec. 35-201. Denial, suspension, revocation and appeal.
Sec. 35-202. Conduct of drivers.

Division 4. Horses, Carriages and Equipment

Sec. 35-203. Requirements for horses in service.
Sec. 35-204. Animal working conditions.
Sec. 35-205. Carriage and equipment.
Sec. 35-206. Enforcement by police department.
Sec. 35-207. Accidents.
Sec. 35-208. Miscellaneous.
Sec. 35-209. Non-transferability.
Sec. 35-210. Exception.
Secs. 35-211—35-239. Reserved.

Article VII. Pedal Carriages and Rickshaws

Division 1. In General

Sec. 35-240. Purpose.
Sec. 35-241. Definitions.
Sec. 35-242. Jurisdiction.

Division 2. Pedal Carriage or Pedicab Business Permit

Sec. 35-243. Pedal carriage or pedicab business license permit—Fee.
Sec. 35-244. Cap on pedal carriage or pedicabs.
Sec. 35-245. Issuance of pedal carriage or pedicab operating permit.
Sec. 35-246. Insurance required; financial responsibility.
Sec. 35-247. Required equipment of pedal carriage or pedicabs.
Sec. 35-248. Pedal carriage or pedicab registration plate.
Sec. 35-249. Records.
Sec. 35-250. Pedal carriage or pedicab driver license.
Sec. 35-251. Display of pedal carriage or pedicab driver's identification.
Sec. 35-252. Restrictions on the operation of pedal carriage or pedicabs.
Sec. 35-253. Rates of pedal carriage or pedicabs.
Sec. 35-254. Denial of license of renewal, suspension and revocation.
Sec. 35-255. Failure to display pedal carriage or pedicab registration or pedal carriage or pedicab driver's license.
Sec. 35-256. Enforcement.
Sec. 35-257. Rules.
Sec. 35-258. Reporting.
Sec. 35-259. Operation of Pedal carriage or pedicabs; Pedal carriage or pedicabs Using Sidewalks or Public Parks.
Sec. 35-260. Manufacturers' Certificate.
Secs. 35-261—35-269. Reserved.

Division 3. Electric Personal Assistive Mobility Devices (Segways)

Sec. 35-270. Definitions.
Sec. 35-271. Regulation of EPAMDs.
Sec. 35-272. Operation.
Sec. 35-273. EPAMDs; Permit required to transport passengers for hire.
Sec. 35-274. Application.
Sec. 35-275. Public hearing.
Sec. 35-276. Issuance.
Sec. 35-277. Proof of financial responsibility required.
Sec. 35-278. Insurance; financial responsibility.
Sec. 35-279. Stoppage system; illumination and visibility
Sec. 35-280. Transfer.
Sec. 35-281. Suspension and revocation.
Sec. 35-282. Restrictions on use.

Article VIII. Reserved

Secs. 35-283—35-294. Reserved.

ARTICLE I. IN GENERAL

Secs. 35-1—35-16. Reserved.

ARTICLE II. TAXICABS, LIMOUSINES, SHUTTLES, AND MOTOR VEHICLES TRANSPORTING PASSENGERS FOR HIRE

DIVISION 1. PASSENGER VEHICLE FOR HIRE BOARD*

Sec. 35-17. Created; membership; term of office and compensation of members; votes required for action of the board.

There is hereby created a Passenger Vehicle For Hire Board (hereafter either "Passenger Vehicle For Hire Board" or "PVH Board." The PVH Board shall consist of seven (7) members: Four (4) to be appointed by the Mayor; One (1) to be appointed by representatives from Districts 1, 2, and 3; One (1) to be appointed by representatives from Districts 4, 5, and 6; and One (1) to be appointed by representatives from Districts 7, 8, and 9. The terms of the members shall be three (3) years as designated at the time of appointment and until their successors are appointed. Whenever a vacancy occurs, the vacancy shall be filled for the unexpired term in the same manner as the original appointment. No person shall serve on the Board for more than two (2) consecutive complete terms. The four (4) current members of the PVH Board with unexpired terms shall continue to serve until their terms expire.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, § 2, 10-6-92; Ord. No. 9940, § 1, 8-24-93; Ord. No. 10268, § 1, 7-25-95; Ord. No. 12092, § 3, 3-18-08; Ord. No. 12239, § 1, 5-12-09; Ord. No. 12712, § 1, 3-26-13; Ord. No. 12891, §§ 1, 2, 1-6-15)

Sec. 35-18. Secretary; treasurer.

(a) The Mayor or Department head shall designate a secretary for the Passenger Vehicle For Hire Board who shall serve as the custodian of its records.

(b) The City Treasurer shall issue permits for those persons, companies, and vehicles approved by the Passenger Vehicle For Hire Board, bearing individual numbers for each taxicab licensed under such permit. Prior to issuing such permits, the City Treasurer shall collect such fees therefor as are authorized by this Article.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 4, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-19. Jurisdiction; appeals.

The Passenger Vehicle For Hire Board shall have exclusive jurisdiction of the licensing and regulation of all vehicles for hire that are subject to this Chapter and shall constitute the sole administrative agency for the administration of all laws and ordinances relating to the licensing and regulation of all vehicles for hire, to issue certificates of convenience and necessity for the operation of vehicles for hire and to determine the number of vehicles for hire needed for the furnishing of transportation to the inhabitants of the city and the public in general. There is hereby imposed upon such Board the authority, power and duty to enforce the provisions of this ordinance, provided that nothing in this Section shall be construed to prohibit any court from imposing penalties provided by this Code for any violation of this Article. The actions of the Passenger Vehicle For Hire Board shall be final, subject to such judicial appeal as may be allowed by law.

***Editor's note—**Ord. No. 12891, § 1, adopted January 6, 2015, amended the title of div. 1, to read as set out herein. Previously div. 1 was titled Transportation Board.

The Passenger Vehicle For Hire Board shall also have exclusive jurisdiction to hear and rule on appeals from the Director of the Open Spaces Division of the Economic and Community Development Department related to the suspension, revocation or denial of a Launch Access Permit as provided for in Chapter 26, Article I, Section 26-22 of the Chattanooga City Code.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 5, 3-18-08; Ord. No. 12891, § 1, 1-6-15; Ord. No. 13463, § 1, 5-28-19)

Sec. 35-20. Passenger Vehicle For Hire Inspector(s).

The Mayor shall appoint one (1) or more persons as Passenger Vehicle For Hire Inspector(s). The Passenger Vehicle For Hire Inspector(s) may have other duties. If the Passenger Vehicle For Hire Inspector(s) is not a regular police officer, he or she shall be appointed as a special police officer authorized to issue citations for violations of this Article.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 6, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Editor's note—Ord. No. 12891, § 1, adopted January 6, 2015, amended the § 35-20 to read as set out herein. Previously § 35-20 was titled transportation inspector.

Sec. 35-21. Duties of chief of police and traffic engineer.

The chief of police and the Transportation Department shall advise the PVH Board when requested concerning those matters of public safety and proper traffic control.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12891, § 3, 1-6-15)

ARTICLE III. REGULATION OF TAXICABS, LIMOUSINES, SHUTTLES, AND MOTOR VEHICLES TRANSPORTING PASSENGERS FOR HIRE

DIVISION 1. GENERALLY

Sec. 35-22. Definitions.

The following words and phrases, when used in this article, shall have the meanings respectively ascribed to them by this section:

Airport limousine: Every vehicle designed and/or constructed to accommodate and transport passengers, not more than twelve (12) in number, exclusive of the driver, having an operating agreement with an airport providing for a fixed passenger fare and a fixed schedule, the principal operations of which airport limousine is confined to areas between the airport and fixed points in municipalities, counties and the suburbs of the same within a forty (40) mile radius of such airport.

Certificate or certificate holder: A certificate of public convenience and necessity issued by the Passenger Vehicle For Hire Board, authorizing the holder thereof to conduct a vehicle for hire business within Chattanooga.

Chauffer: Every person who is employed by another for the principal purpose of driving a motor vehicle and every person who drives a school bus transporting school children or any motor vehicle when in use for the transportation of persons or property for compensation.

Commercial passenger boat company: A company that operates one (1) or more passenger vessels for hire upon navigable waterways.

Commuter van: A motor vehicle, except taxicabs or airport limousines, used primarily for hauling not more than fifteen (15) passengers to and from their regular places of employment.

Contract hauler: Any person, firm or corporation engaged in the transportation for compensation or hire of persons and/or property for a particular person or corporation to or from a particular place or places

under special or individual agreement or agreements, and not operating as a common carrier and not operating exclusively within the corporate limits of an incorporated city or town, or exclusively within the corporate limits of such city or town and the suburban territory adjacent thereto, except "contract hauler" does not exclude those engaged in the transportation of mobile homes for hire or compensation within an incorporated city or town.

Company: A person or entity issued a certificate of public convenience and necessity to operate a vehicle for hire under this Chapter.

Cruising: The driving of a vehicle for hire, except horse drawn carriages or pedicabs, on the streets, alleys or public places of Chattanooga in search of or soliciting prospective passengers for hire.

Department: The City of Chattanooga Police Department unless otherwise indicated or unless the context otherwise requires.

"Dispatch" means to operate a scheduling service in which requests for vehicles for hire are received by phone, in person, by the internet, or by any other voice, data or electronic communication, and vehicles for hire are scheduled or routed by relating information from the service to the vehicle for hire by radio or data device including, but not limited to, a device capable for any voice, data or electronic communication including cell phone, smart phone app, telephone land line, social media, e-mail, text message, radio, and sending a passenger vehicle for hire to transport a passenger by an authorized PVH Driver.

Driver's permit: The permission granted by the Passenger Vehicle For Hire Board to drive or operate a vehicle for hire upon the streets and public highways of the City of Chattanooga.

For-hire motor carrier: A person engaged in the transportation of goods or passengers for compensation.

"Hailing a vehicle for hire" means to signal a request for immediate transportation service by a passenger using a raised hand gesture wanting to be picked up for transportation. No vehicle for hire, other than a taxicab, may service a hailing passenger request. Hailing request for a vehicle for hire does not apply to requests made for transportation by services operating only on pre-approved routes.

Holder: A person to whom a certificate of public convenience and necessity has been issued.

Household goods: Personal belongings transported from one (1) residence to another by a motor carrier.

License to operate a vehicle: Any operator's or chauffeur's license or any other license or permit to operate a motor vehicle to transport passengers for hire under this Chapter.

Limousine: Any motor vehicle except a taxicab or sedan designed or constructed to accommodate and transport passengers for hire, with an extended wheel base and expanded seating capacity designed for the transportation of persons. The vehicle shall have additional rear seating capacity, area, and comforts; and shall be designed to transport not more than fourteen (14) persons, exclusive of the chauffeur/driver, and the principal operation of such vehicle is confined to the area within the corporate limits of cities and suburban territory adjacent thereto.

Manifest: A daily record prepared by a driver or dispatcher of a vehicle for hire of all trips made by such driver, showing time and place of origin, destination, number of passengers and the amount of fare of each trip.

Motor carrier: Any person, firm, partnership, association, joint stock company, corporation, lessee, trustee, or receiver appointed by any court whatsoever, operating any motor vehicle with or without semitrailers attached, upon any public highway for the transportation of persons or property, or both, or for providing or furnishing such transportation service, for hire as a common carrier.

Motor transportation agent: Any person, firm, partnership, association or corporation engaged, as principal or agent, in the selling, offering for sale, negotiation for, soliciting by advertisement or otherwise, arranging as an intermediary or otherwise, or that holds such person or firm out as one (1) who sells, provides, furnishes or arranges for, transportation for any person or persons over the highways of this state upon a share-expense plan or for fixed compensation, either in the private motor vehicles of persons not motor carriers or contract haulers not holding certificates of convenience and necessity, interstate permit, or contract hauler's permit permitting the transportation of passengers over such highways between the points for which such transportation is sold or provided, vehicle for hire does not apply to the transportation of children to and from school or for the Chattanooga Regional Transit Authority.

Motor vehicle: Any automobile, automobile truck, motor bus, for hire motor carrier, private carrier, shuttle, sedan, van, truck bus or any other self-propelled vehicle not operated or driven upon fixed rails or tracks engaged in the business of transporting passengers for hire on the streets, roads and public highways of the City of Chattanooga.

Owner: A person, entity or company authorized to operate a vehicle for hire business under this Article.

Permit: The authority given by the Passenger Vehicle For Hire Board to drive or operate a vehicle for hire upon the streets and public highways of the City of Chattanooga.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

Privilege: The authority given by the Passenger Vehicle For Hire Board to own and operate a vehicle for hire under the umbrella of a valid Certificate Holder upon the streets and public highways of the City of Chattanooga. A Privilege Holder is not required to be a Certificate Holder, but must operate a vehicle for hire under the umbrella of a Certificate Holder.

Private carrier: A person who provides transportation of property or passengers by a commercial motor vehicle and who is not a for-hire motor carrier.

Public highway: Every public street, alley, road, highway, or thoroughfare of every kind in the City of Chattanooga used by the public, whether actually dedicated to the public and accepted by the proper authorities or otherwise.

Rate card: A card issued by the Passenger Vehicle For Hire Inspector(s) for display in each taxicab or vehicle for hire as applicable, which contains the rates of fare then in force.

Rideshare: The traveling of two (2) or more persons by any mode of private passenger vehicle, including, but not limited to, carpooling, vanpooling, or bus pooling to any location incidental to another purpose of the driver for which compensation is neither accepted, collected, encouraged, promoted, or requested, and for which the primary purpose of the driver cannot be profit or revenue based.

Sedan: Any motor vehicle except a limousine or taxicab designed or constructed to accommodate and transport passengers for hire that does not have an extended wheel base or an expanded seating capacity designed for the transportation of persons. The vehicle has no additional rear seating capacity, area or comforts; is designed to transport not more than five (5) passengers, exclusive of the chauffeur/driver, the principal operation of which is confined to the area within the corporate limits of cities and suburban territory adjacent thereto, and is not operated on a fixed route or schedule.

Shuttle: Any motor vehicle designed or constructed to accommodate and transport not more than fifteen (15) passengers for hire, exclusive of the driver, the principal operation of which is confined to the area within the corporate limits of cities and suburban territory adjacent thereto, and is operated on a fixed route or schedule.

Taxicab or taxi: Any motor vehicle, except a limousine, transportation network company vehicle, or motor carrier of passengers, regularly engaged in the business of carrying passengers for hire, having a seating capacity of seven (7) or fewer persons including the driver and not operated on a fixed route or schedule.

Taxicab stand: A place alongside a street, or elsewhere, where the traffic engineer has authorized a holder of certificate of public convenience to park for picking up or discharging passengers.

Taximeter: A meter instrument or device attached to a taxicab which measures mechanically the distance driven and the waiting time upon which the fare is based.

Vehicle for hire: Any person, firm, partnership, association or corporation engaged, as principal or agent, in the selling, offering for sale, negotiation for, soliciting by advertisement or otherwise, arranging as an intermediary or otherwise, or that holds such person or firm out as one (1) who sells, provides, furnishes or arranges for, transportation for any person or persons over the streets, roads and public highways of the City of Chattanooga for a fare, donation, for free, or any fees or any form of remuneration or upon a share-expense plan or for fixed compensation, either in private or for hire motor vehicles or in the private motor vehicles of persons not motor carriers or contract haulers, an operator under an interstate permit or contract hauler's permit permitting the transportation of passengers over such highways between the points for which such transportation is sold or provided. Vehicle for hire does not apply to the transportation of children to and from school, the Chattanooga Area Regional Transit Authority, or courtesy vehicles. Vehicle for hire for purposes of regulation under this Chapter does not include any motor vehicle to the extent that such motor vehicle is regulated in a particular area by the Tennessee Department of Safety. Vehicles for hire include pedal carriages and rickshaws as modes of transportation-for-hire within entertainment, dining, scenic and/or historic areas of the center city and the use of electric personal assistive mobility devices or Segways (EPAMDs) to transport passengers for hire.

Waiting time: The time when a taxicab is not in motion from the time of acceptance of a passenger to the time of discharge, but such term does not include any time that the taxicab is not in motion if due to any cause other than the request, acts or fault of a passenger.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 7, 3-18-08; Ord. No. 12412, §§ 1—3, 7-13-10; Ord. No. 12891, §§ 1, 4, 1-6-15)

Sec. 35-23. Equipment and maintenance of vehicles; appeals.

(a) *Inspection.* Prior to the use and operation of any vehicle under the provisions of this article, such vehicle shall be thoroughly examined and inspected by the Passenger Vehicle For Hire Inspector(s), and found to comply with the following minimum standards:

(1) All tires, where applicable, shall have more than three thirty-seconds (3/32) of an inch of tread.

(2) All vehicles for hire shall have an operable horn; a rear-view mirror; two (2) operable headlights; operable turn signals; and two (2) operable tail lights.

(3) The windshield must be unbroken and must be equipped with operable wipers.

(4) The motor vehicle's exhaust system and muffler must be in proper operating condition.

(5) The brakes and emergency brakes must be in working condition.

(6) There can be no major body damage and body replacement parts must match the original part in color. Any damage in excess of a five hundred dollar ($500.00) repair cost shall be deemed to be major property damage; however, any property damage which affects passenger comfort, convenience, or safety is also considered major property damage. Any major property damage shall be repaired within sixty (60) days of the event giving rise to the damage.

(7) The interior of the vehicle for hire shall be clean, with no torn seats, unpleasant odors, or broken windows.

(8) All doors of the vehicle for hire shall be in working order.

(9) All vehicles for hire shall be equipped with a taximeter and the owner shall certify to such meter being in proper working order unless otherwise authorized by the Board for contract services.

(10) Each vehicle shall be equipped with the same number of seat belts as was installed on the vehicle at the time of its manufacture.

(11) All taxis shall be equipped with two-way radios or cellular phones.

(12) All taxis shall have clear and visible identification numbers of size four (4) inches or larger, not to exceed three (3) digits placed on each side and on the rear of the taxicab.

(13) Reserved.

(14) Subject to applicable ordinances related to advertising and the rules of the Passenger Vehicle For Hire Board, it shall be lawful for any vehicle for hire to permit advertising matter to be affixed to or installed in or on such vehicles for hire. Bumper stickers are prohibited.

(15) Subject to the rules of the Passenger Vehicle For Hire Board, it shall be lawful for any vehicle for hire to permit safety devices, including shields, alarms, cameras or cash boxes in or on such vehicle for hire.

(16) Each vehicle for hire shall be equipped with the same number of operable seat belts as was installed on the vehicle at the time of its manufacture.

(17) All taxis shall pass an annual Hamilton County emissions test and submit verification of the test results to the PVH Inspector or Board.

(b) *Periodic inspections.* Every vehicle operating under this article shall be inspected annually by the Passenger Vehicle For Hire Inspector(s) to insure the continued maintenance of safe operating conditions. A vehicle for hire may be inspected at any time.

(c) *Cleanliness.* Every vehicle operating under this article shall be kept in a clean and sanitary condition, and shall at all times meet the minimum conditions set forth in subsection (a).

(d) *Appeals.* All decisions of the Passenger Vehicle For Hire Inspector(s) shall be appealable to the Passenger Vehicle For Hire Board provided the owner or operator shall file written notice of appeal within thirty (30) days following the action of the Passenger Vehicle For Hire Inspector(s).
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, §§ 3—5, 10-6-92; Ord. No. 12092, §§ 2, 8, 3-18-08; Ord. No. 12891, §§ 1, 5, 1-6-15)

Sec. 35-24. Designation of company name; color scheme and insignia.

(a) Each taxi shall bear on the outside of each front door, in painted letters, decal or other appropriate signage not less than four (4) inches nor more than six (6) inches in height, the name of the company and, in addition, may bear an identifying monogram or insignia. No vehicle covered by the terms of this article shall be licensed whose color scheme, identifying design, monogram or insignia to be used thereon shall in the opinion of the PVH Board conflict with or imitate any color scheme, identifying design, monogram or insignia used by a vehicle already operating under this article in such manner as to be misleading or tend to deceive or defraud the public. If, after a certificate of public convenience and necessity has been issued for a vehicle for hire under this article, the color scheme, identifying design, monogram or insignia thereof is changed so as to be, in the opinion of the PVH Board, in conflict with or imitate any color scheme,

identifying design, monogram or insignia used by any other person, owner or operator, in such manner as to be misleading or tend to deceive the public, the certificate of or certificate covering such taxicabs shall be suspended or revoked.

(b) Taxicabs or other vehicles for hire subject to this chapter currently licensed may continue to operate with existing exterior marking and color schemes up to sixty (60) days from the date of the adoption of this ordinance; but thereafter all vehicles operating from the same taxi stand shall be required to adopt unique color and exterior marking schemes as provided in subsection (a).

(c) Once a vehicle for hire shall cease to be operated as a motor vehicle used to transport passengers for hire and permitted or licensed hereunder, it shall not be operated for any other purpose until such exterior markings identifying the vehicle as a motor vehicle used to transport passengers for hire are obliterated. (Ord. No. 9784, § 9-8-92; Ord. No. 9799, § 6, 10-6-92; Ord. No. 12092, § 9, 3-18-08; Ord. No. 12891, §§ 1, 6, 1-6-15)

Sec. 35-25. Taximeters.

(a) All vehicles for hire operated under the authority of this article as a taxi shall be equipped with taximeters fastened in front of the passengers, visible to them at all times day and night. After sundown, the face of the taximeter shall be illuminated. Taximeters required by this Section shall be operated by a device of standard design and construction, operated either from the transmission or from one (1) of the front wheels by a flexible and permanently attached driving mechanism. Each taximeter shall denote when the vehicle is employed and when it is not employed. It shall be the duty of the driver to activate the taximeter into a recording position at the beginning of each trip and to deactivate such taximeter into a non-recording position at the termination of such trip.

(b) Taximeters shall be subject to inspection from time to time by the PVH Inspector(s). The PVH Inspector or any police officer is hereby authorized, either on complaint of any person or without such complaint, to inspect any meter, and upon discovery of any inaccuracy therein, to notify the person operating such vehicle for hire to cease operation. Thereupon, such vehicle for hire shall be kept off the highways until the taximeter is repaired and in required working condition to the satisfaction of the PVH Inspector and certified by a taximeter company authorized to repair and certify taximeters. The provisions of this section shall not apply to a vehicle for hire that has been approved by the PVH Board to charge a fare or compensation on a contract basis without the use of a taximeter.

(c) Taximeters shall be inspected, tested, certified and sealed annually by a taximeter company authorized to repair and certify taximeters.

(d) It shall be unlawful for an unauthorized person to tamper with a taximeter.

(e) It shall be unlawful to operate a passenger vehicle for hire that requires a taximeter in which the taximeter seal affixed thereto by a licensed taximeter company that has the seal been tampered with, broken or altered in any manner. A driver of a passenger vehicle for hire shall notify the registered owner to the motor vehicle, the holder of the Certificate of Convenience and Necessity and PVH Inspector by telephone immediately by telephone or other media, and in writing within twenty-four (24) hours upon discovery of any of the following with respect to the following equipment:

(1) Any material change to a taximeter in a vehicle for hire operated by the driver since the last inspection by the PVH Inspector; and

(2) Any taximeter seal in the passenger vehicle for hire operated by the driver that has been removed or tampered with.

(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 10, 3-18-08; Ord. No. 12891, §§ 1, 7, 1-6-15)

Sec. 35-26. Rates of fare—Schedule.

(a) No owner or driver of a taxicab shall charge a greater sum for the use of a taxicab than the rates set below:

(1) There is hereby established a minimum rate to be charged for taxicab service. The minimum rate for taxicab charges in the City shall be $10.00 based on a $5.00 base rate/flag pull; and $2.50 per mile and $0.50 per waiting minute which will equal a maximum rate of $30.00 per hour of use. The rate shall be subject to a performance review by the Office of the Mayor.

(2) Nothing contained in this subsection shall prohibit a certificate holder from making a contractual agreement with any passenger, company, agency or organization to furnish transportation for employees, associates, clients, patients, customers or members at a rate that is based on mileage, number of passengers, number of trips, number of passenger hours, weekly or monthly fees, or any other reasonable and calculable basis, irrespective of the mileage charges, minimum charges, and waiting time charges contained in this chapter or the certificate holder's filed rates for ordinary radio dispatch, taxicab stand, personal call or hailed service. Such a contractual agreement that provides for rates that differ from the rates ordinarily charged by the taxicab operator must be recorded upon a written document that is legally executed by all parties and kept on file at the certificate or permit holders place of business subject to inspection at any time by the Passenger Vehicle For Hire Board or Inspector.

(3) All taxicab drivers shall drive the shortest and most direct route in transporting a passenger from the point of pick-up to the point of destination unless requested otherwise by the passenger.

(4) There will be an additional charge for waiting time which shall be up to a maximum of fifty cents ($0.50) for each one (1) minute of waiting.

(5) The Passenger Vehicle For Hire Board may establish one (1) or more "meter zones" where all trips that have their origin and destination in the zone may be charged a flat rate providing the rate shall be less than or substantially equivalent to the rates authorized under paragraph (a) of this Section.

(6) The Passenger Vehicle For Hire Board may establish a single fare structure for all taxi trips beginning or ending at Lovell Field with origin or destination within Chattanooga's corporate limits which fare shall be reasonably related to the cost of providing such services.

(7) The Passenger Vehicle For Hire Inspector(s) shall furnish rate cards to the holders of certificates of public convenience and necessity. Said rate cards shall be displayed conspicuously in each taxicab. Failure to display said rate card in a conspicuous manner shall be grounds for revocation or suspension of the privilege for the taxicab failing to display the rate card.

(8) The Passenger Vehicle For Hire Board may approve temporary emergency rates for sixty (60) days.

(b) No owner, driver or operator of a vehicle for hire without a taximeter shall charge a greater sum for the use of a vehicle for hire than the rates set below:

(1) Fares for contractual services shall be not less than Fifty Dollars ($50.00) per hour. Fares for an airport limousine shall not be higher than a fare authorized by the Chattanooga Airport Authority. A limousine service, an, sedans and vans or other vehicles for hire may not charge fares based upon fractions of an hour except after the second hour of service.

(2) An agreed upon fare with a passenger or passengers that simulates or mirrors a fare charged by an operator of a taxicab.

(c) See below rate schedule:

Minimum Rate - Taxicab Service: $10 (based on $5 base rate/flag pull) $2.50 per mile and $0.50 per waiting minute (max. rate of $30 per hour of use) Additional charge waiting time: Max $0.50 for each one (1) minute of waiting	Fares for contractual services: Not less than $50 per hour Airport limousine not higher than Airport Authority

(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, § 7, 10-6-92; Ord. No. 11934, 2-13-07; Ord. No. 12092, § 11, 3-18-08; Ord. No. 12412, §§ 4, 5, 7-13-10; Ord. No. 12891, §§ 1, 8, 1-6-15; Ord. No. 14372, § 1, 6-16-26)

Sec. 35-27. Same—Filing of changes.

Each vehicle for hire company shall be required to file a list of their rates thirty (30) days prior to change with the Passenger Vehicle For Hire Inspector(s), and there shall not be more than one (1) rate charged by any one (1) vehicle for hire. Rates charged by each vehicle for hire shall be the same as that on file with the Passenger Vehicle For Hire Inspector(s) and shall be posted conspicuously in the motor vehicle. Additional charges for services such as waiting time or baggage handling shall be submitted as a part of the fare structure. Rates may not be changed more often than semi-annually except for extraordinary cause such as but not limited to marked increases in fuel costs caused by shortages, government policy, or other events beyond the control of the owner of the taxicab or vehicle for hire.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 12, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-28. Receipts.

The driver or chauffeur of any vehicle for hire shall upon request by the passenger, provide a receipt for the amount charged, either by a mechanically printed receipt or by a specially prepared receipt on which shall be the name of the owner, the amount of meter reading or charges and date of transaction.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 13, 3-18-08)

Sec. 35-29. Refusal of passenger to pay legal fare.

It shall be unlawful for any person to refuse to pay the legal fare of any vehicle for hire after having hired the same, and it shall be unlawful for any person to hire any vehicle for hire with intent to defraud the person from whom it is hired of the value of such service.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 14, 3-18-08)

Sec. 35-30. Solicitation of passengers by drivers; drivers to remain in or near vehicles.

No driver or chauffeur of a vehicle hire for a vehicle for hire shall solicit passengers for a vehicle for hire, except when sitting in the driver's or chauffeurs' compartment of such motor vehicle for hire or while standing immediately adjacent to the curb side thereof. The driver or chauffer of any vehicle for hire shall remain in the driver's compartment or immediately adjacent to his vehicle at all times when such motor vehicle is upon the public streets or public highways; except, that when necessary, a driver may be absent from his vehicle for not more than ten (10) consecutive minutes when the vehicle for hire is in service; provided further, that nothing herein contained shall be held to prohibit any driver or chauffeur from alighting to the street or sidewalk for the purpose of assisting passengers into or out of such vehicle.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 15, 3-18-08)

Sec. 35-31. Prohibited manner of solicitation.

No driver or chauffeur of a vehicle for hire shall solicit patronage by obstructing the movement of any persons, or by following any person for the purpose of soliciting patronage.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 16, 3-18-08)

Sec. 35-32. Receipt and discharge of passengers on sidewalk only.

Drivers or chauffeurs of a vehicle for hire shall not receive or discharge passengers in the roadway but shall pull to the extreme right-hand side of the road or to the sidewalk and there receive or discharge passengers, except upon one-way streets, where passengers may be discharged at either side of the roadway in the absence of a sidewalk.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 17, 3-18-08)

Sec. 35-33. Cruising.

No driver or chauffeur of a vehicle for hire shall cruise in search of passengers, except in such areas and at such times as shall be designated by the PVH Board or Transportation Department. Such areas and times shall only be designated when the PVH Board finds that a vehicle for hire would not congest traffic or be dangerous to pedestrians and other vehicles.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 18, 3-18-08; Ord. No. 12891, §§ 1, 9, 1-6-15)

Sec. 35-34. Solicitation of other common-carrier passengers prohibited.

No driver, owner or operator of a vehicle for hire shall solicit passengers at an interstate bus station, rail station, airport or at any bus stops along any established route of the Chattanooga Regional Transportation Authority.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 19, 3-18-08)

Sec. 35-35. Reserved.
(Ord. No. 9784, § 1, 9-8-92)

Sec. 35-36. Additional passengers.

No driver or chauffeur of a vehicle for hire shall permit, except as otherwise provided in this article, any other person to occupy or ride in such vehicle for hire unless the person first employing the vehicle for hire shall consent to the acceptance of additional passengers. There is hereby authorized a charge for additional passengers not to exceed five dollars ($5.00) per passenger when such passenger is accompanying the original passenger and proceeding to the same destination. When the additional passenger rides beyond the original passenger's destination he shall be charged only for the additional distance so traveled. This section shall not apply if the vehicle for hire has an agreement to transport multiple passengers.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 20, 3-18-08; Ord. No. 12412, § 6, 7-13-10)

Sec. 35-37. Restrictions on number of passengers.

No driver or chauffeur of a vehicle for hire shall permit more persons to be carried in a vehicle for hire as passengers than the rated seating capacity of his or her vehicle for hire, as stated in the certificate for such vehicle issued by the Passenger Vehicle For Hire Board.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 21, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-38. Refusal to carry orderly passengers prohibited.

No driver or chauffeur of a vehicle for hire shall refuse or neglect to convey any orderly person or persons, upon request, unless previously engaged or unable or forbidden by the provisions of this article to do so.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 22, 3-18-08)

Sec. 35-39. Taxicab stands—Establishment; use.

(a) *Establishment.* The Passenger Vehicle For Hire Board is hereby authorized and empowered to and shall establish taxicab passenger loading zones or stands upon the streets of the City in such places as, in its discretion, it deems proper. The Passenger Vehicle For Hire Board is further authorized to eliminate any taxicab passenger loading zones or stands now in use, or later established. The written approval of the abutting property owners of such places shall be required before the creation of such passenger loading zones or stands. The traffic engineer shall make an investigation of the traffic conditions at such places and shall thereafter file written recommendations with the Passenger Vehicle For Hire Board. The Passenger Vehicle For Hire Board shall abide by these recommendations.

(b) *Open stands.* Any taxicab passenger loading zone or stand established in accordance with subsection (a) of this section, exclusive of those stands previously assigned to the sole use of specific holders shall be public or open passenger loading zones or stands, available to all holders. Any new or additional passenger loading zones or stands established in the immediate vicinity of, adjacent to, in front of or in the rear of previously assigned stands shall be public or open passenger loading zones or stands available to all holders, but such passenger loading zones or stands shall not be available to holders of exclusive stand privileges at such locations. Nothing contained herein shall be construed as denying, or intending to deny any passenger the right to take a cab of his or her choice or preference at any such stand.

(c) *Starters.* Each holder operating a taxicab stand as provided for in this article may be allowed where it would facilitate the convenience of the public, in the discretion of the Passenger Vehicle For Hire Board, to have on duty at such stand a starter or other employee for the purpose of assisting in the loading and unloading of passengers from taxicabs, for receiving calls and dispatching cabs, and for soliciting passengers at such stands. The words "at such stands" shall mean that point of the sidewalk immediately adjacent to and of equal length with such stand. It shall be unlawful for any such starter or other employee to go beyond the area herein designated for the purpose of soliciting passengers or assisting them to board such cabs.

(d) *Obstruction, etc.* It shall be unlawful for any holder to obstruct or interfere with the free use and enjoyment of any public or open taxicab stand by any other holder, or to interfere with, obstruct or otherwise impede the use of any assigned stand by the holder of such stand. Each occurrence affecting such "other holder" shall be deemed a separate offense. Any holder found guilty of three (3) offenses within any twelve (12) months period shall have his certificate suspended for not less than thirty (30) days, or more than ninety (90) days for a first offense. A second offense or subsequent offense within one (1) year shall be subject to a suspension of not less than ninety (90) days or more than one (1) year.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-40. Same—Use by other vehicles prohibited.

(a) Private or other vehicles for hire shall not at any time occupy the space upon the streets that have been established as taxicab stands.

(b) It shall be unlawful for any agent or employee or any entity required to have a City of Chattanooga business license pursuant to the laws and ordinance of the City of Chattanooga to direct passengers to any motor transportation agent that does not have a certificate of public convenience to operate a vehicle for hire issued under this Chapter or for any entity required to have a business license to knowingly permit or allow any of its agents or employees to direct passengers to any to any motor transportation agent that does not have a certificate of public convenience to operate a vehicle for hire under this Chapter.

(c) It shall be unlawful for any agent or employee or any entity required to have a City of Chattanooga business license pursuant to the laws and ordinance of the City of Chattanooga to allow a motor vehicle or motor transportation agent that has not been issued a certificate of public convenience to operate a vehicle for hire issued under this Chapter to stop, park, or otherwise place a vehicle for hire on such entities premises or in the loading or curbside area of such business.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 23, 3-18-08)

Sec. 35-41. Duty to render service; central place of business required.

(a) All persons engaged in the business of operating a passenger vehicle for hire as a taxi under the provisions of this Chapter shall render an overall service to the public desiring to use vehicles for hire. Vehicles for hire shall answer all calls received for service within the corporate limits of the City as soon as they can do so and if such services cannot be rendered within a reasonable time, the vehicle for hire shall notify the prospective passenger(s) how long it will take to before such call can be answered. Any holders

of certificates of public convenience and necessity or privilege authorized by the PVH Board who shall refuse to accept a call for service shall be deemed a violator of the requirements of this Chapter and certificates of public convenience and necessity or privilege may be suspended or revoked.

(b) Holders of certificates of public convenience and necessity shall maintain a central place of business. The central place of business may be used for the purpose of receiving and dispatching calls.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 24, 3-18-08; Ord. No. 12891, §§ 1, 10, 1-6-15)

Sec. 35-42. Drivers' manifests.

Every driver or chauffeur of a vehicle for hire or dispatcher for a vehicle for hire company shall maintain a daily manifest upon which is recorded all trips made each day, showing the time and place of origin and destination of each trip and the amount of fare and number of passengers. All such completed manifests shall be returned to the vehicle for hire owner by the driver or chauffeur at the conclusion of his tour of duty. The forms for each manifest shall be furnished to the driver or chauffeur by the vehicle for hire company or owner and shall be of a character approved by the Passenger Vehicle For Hire Board.

Every vehicle for hire owner or company shall retain and preserve all driver and chauffeur manifests in a safe place for at least the current year and the calendar year next preceding the current calendar year, and such manifests shall be available for inspection by the Passenger Vehicle For Hire Inspector(s) and the Passenger Vehicle For Hire Board.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, § 8, 10-6-92; Ord. No. 12092, §§ 2, 25, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-43. Records and reports by certificate holders.

(a) Every holder of a certificate of public convenience and necessity shall keep accurate records of receipts from operations, operating and other expenses, capital expenditures and such other operating information as may be required by the Passenger Vehicle For Hire Board. Every such holder shall maintain the records containing such information and other data required by this article at a place readily accessible for examination by the Passenger Vehicle For Hire Inspector(s) and the Passenger Vehicle For Hire Board. Except to the extent deemed advisable by either the Passenger Vehicle For Hire Inspector(s) or Passenger Vehicle For Hire Board to administer or enforce the provisions of this article, these records shall not be copied or if copied for administrative purposes retained for periods longer than necessary for such administration.

(b) The owner, driver or chauffeur of a vehicle for hire shall report any accident involving such vehicle for hire to the police department. The company shall notify the Passenger Vehicle For Hire Inspector of such accident by 9:00 a.m. on the next business day.

(c) No vehicle for hire involved in an accident where structural damage has occurred to the vehicle for hire shall be operated again until the vehicle for hire has been inspected by the Passenger Vehicle For Hire Inspector or a police officer and the vehicle for hire has been certified for service in writing by a licensed motor vehicle mechanic. The company shall present such written certification to the Passenger Vehicle For Hire Inspector.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 26, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-44. Duty of Passenger Vehicle For Hire Inspector(s) to enforce ordinance.

The Passenger Vehicle For Hire Inspector(s) is/are hereby authorized and are instructed to watch and observe the conduct of holders of certificates of public convenience and necessity and drivers operating under this article. Upon discovering a violation of the provisions of this article, the Passenger Vehicle For

Hire Inspector(s) shall report the same to the Passenger Vehicle For Hire Board, which will order or take appropriate action. The Passenger Vehicle For Hire Inspector(s) may also cite the violator to City Court for violations of this article or other applicable law or ordinance.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Editor's note—Ord. No. 12891, § 1, adopted January 6, 2015, amended the § 35-44 to read as set out herein. Previously § 35-44 was titled duty of transportation inspector(s) to enforce ordinance.

Sec. 35-45. Proof of financial responsibility of vehicles for hire required.

(a) All vehicle for hire companies shall be required to show proof of liability insurance or a certificate of self-insurance issued pursuant to T.C.A. § 55-12-111 to the PVH Board for each motor vehicle engaged in the business of transporting passengers for hire and operated under their franchise. The holder of a certificate of public convenience and necessity shall immediately notify the PVH Inspector by telephone or other media, and in writing within twenty-four (24) hours if a liability insurance policy is canceled or terminated on a passenger vehicle for hire. A passenger vehicle for hire shall not be operated while the insurance is terminated or cancelled.

(b) The insurance required by this section shall cover each vehicle for hire operated under their certificate of public convenience and necessity.

(c) Failure to maintain the insurance required by this section shall be grounds for revocation of a holder's certificate.

(d) All vehicles for hire must meet the insurance requirement of this section even if the privilege for a vehicle for hire is not in use or has been suspended by this board. If a vehicle for hire becomes inoperable for any reason other than suspension of the privilege and is not being used in the business of transporting passengers for hire, including during the period of a Temporary Medical Exception as set forth in Section 35-59(c), the certificate holder shall notify the PVH Inspector in writing that the vehicle is inoperable and/or not in use and insurance will no longer be required after such written notice is given. The certificate holder shall keep an accurate list of all privileges for vehicles operating under the certificate holder's franchise or umbrella.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 27, 3-18-08; Ord. No. 12412, § 7, 7-13-10; Ord. No. 12639, § 1, 8-21-12; Ord. No. 12891, §§ 1, 11, 1-6-15)

Sec. 35-45.1 Immobilization and Impoundment of unauthorized passenger vehicles for hire.

(a) A motor vehicle that is operated as a passenger vehicle for hire without a privilege or certificate of public convenience and necessity as required by this Chapter is subject to being ticketed, immobilized, or impounded all in accordance with the remedies established in this Chapter.

(b) The PVH Inspector or police officer that orders the impoundment of a motor vehicle based upon its use in violation of this Chapter shall, within three (3) business days of impoundment a motor vehicle, issue notice to the registered owner of the motor vehicle that the motor vehicle has been impounded by the PVH Inspector. The registered owner, or his agent, of the motor vehicle shall have a hearing before the PVH Board or in City Court within to request that the motor vehicle be released. If the registered owner of the motor vehicle waives their right to a hearing in writing within ten (10) days of the issuance of the notice by the PVH Inspector, the motor vehicle shall be deemed abandoned to have been and maybe disposed of as contemplated by law.

(c) At each hearing requested pursuant to this section, the PVH Inspector shall have the burden of proving by a preponderance of the evidence that the impounded motor vehicle was used as a passenger vehicle for hire in violation of this Chapter.

(d) If the determination of the PVH Board or City Court is favorable to the registered owner of the motor vehicle, the PVH Board or City Court shall order the release of the motor vehicle.

(e) If the determination of the PVH Board or City Court is adverse to the registered owner of the motor vehicle, the PVH Board or City Court shall require the PVH Inspector to proceed to dispose of the motor vehicle subject to judicial review.

(f) An appeal from the City Court or PVH Board's determination may be made to a court of competent jurisdiction as provided by law. If the court finds that the impoundment was not justified, the PVH Board and Inspector shall release the motor vehicle to the registered owner or registered owner's authorized representative.
(Ord. No. 12891, §§ 1, 4, 1-6-15)

DIVISION 2. CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

Sec. 35-46. Required.

(a) No person shall operate or permit a vehicle for hire owned or controlled by him and as defined in Section 35-22 of this Code as amended, upon the streets, roads and public highways of Chattanooga without having first obtained a certificate of public convenience and necessity and permits from the Passenger Vehicle For Hire Board.

(b) Any type of motor vehicle for hire authorized to operate under this Chapter through a privilege must be operated under the franchise or umbrella of a valid Certificate of Public Convenience and Necessity approved by the Passenger Vehicle For Hire Board and pursuant to rules and policies set by the Passenger Vehicle For Hire Board. The Passenger Vehicle For Hire Board must approve the number of privileges and any transfer of privileges associated with a Certificate Holder.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 28, 3-18-08; Ord. No. 12149, § 1, 8-5-08; Ord. No. 12412, § 8, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-47. Application.

(a) An application for a certificate of public convenience and necessity shall be filed with the Passenger Vehicle For Hire Board upon forms provided by the Passenger Vehicle For Hire Inspector(s) and upon the payment of a nonrefundable fee of one thousand dollars ($1,000.00), plus fifty dollars ($50.00) per vehicle for hire. A renewal application and a fee of fifty ($50.00), plus ten dollars ($10.00) per vehicle for hire shall be filed on or before the annual renewal date of the certificate of public convenience and necessity. Such application shall be verified under oath and shall furnish the following information:

(1) The name and address of the applicant.

(2) The financial status of the applicant, including the amounts of all unpaid judgments against the applicant and the nature of the transaction or acts giving rise to such judgments.

(3) The experience of the applicant in the transportation of passengers.

(4) Any facts which the applicant believes tend to prove that public convenience and necessity require the granting of the certificate.

(5) The number of vehicles and their make and year models to be operated or controlled by the applicant, the interest that the applicant will have in each of the vehicles, and the location of proposed depots and terminals.

(6) The color scheme and insignia to be used to designate the vehicles of the applicant.

(7) Whether or not the applicant has been convicted of a felony within ten (10) years, or any offense involving driving under the influence of drugs or alcohol. The applicant shall submit a complete Tennessee Bureau of Investigation Tennessee Criminal History of the applicant and any owner of the business having a ten percent (10%) or greater financial interest in the business at the cost of the applicant.

(8) Rules for training drivers.

(9) Rules and procedures for driver appearance and conduct.

(10) Such further information as the Passenger Vehicle For Hire Board may require.

(b) No application for public convenience and necessity to operate a taxicab company shall be accepted for less than five (5) taxicabs, excluding any person or company who has regularly operated a taxi business in Chattanooga prior to the effective date of this Article.

(c) If an application is incomplete, it shall be returned to the applicant for completion prior to being acted upon.

(d) Each application shall be signed by the owner(s) or duly authorized officer of a vehicle for hire company or entity, which shall be deemed to be a certification that the information on the application is accurate. Any material misrepresentation made on an application shall be grounds for revocation of the certificate.

(e) The lawful operation of a taxi or vehicle for hire business in Chattanooga under this Chapter on and prior to January 1, 2008, shall not be affected by this Ordinance.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, § 9, 10-6-92; Ord. No. 12092, §§ 2, 29, 3-18-08; Ord. No. 12412, §§ 9, 10, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-48. Public hearing.

Upon the filing of an application for a certificate of public convenience and necessity and/or a request for additional privileges, the PVH Board shall fix a time and place for a public hearing thereon, to be not less than thirty (30) days after receipt of the application or request. Notice of such hearing shall be given to the applicant and to all persons to whom certificates of public convenience and necessity have been theretofore issued. Due notice shall be given the general public by posting a notice of such hearing in the morning and evening newspapers at least seven (7) days prior to the public hearing. Any person may file with the PVH Board a memorandum in support of or opposition to the issuance of a certificate of public convenience or a request for additional vehicle for hire permits. The PVH Board may call special meetings for the consideration of new certificates of public convenience and necessity and/or applications for new vehicle for hire permits. The PVH Board shall adopt procedures to govern the consideration of such applications.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 11075, § 1, 10-3-00; Ord. No. 12092, §§ 2, 30, 3-18-08; Ord. No. 12412, § 11, 7-13-10; Ord. No. 12891, §§ 1, 12, 1-6-15)

Sec. 35-49. Issuance.

(a) If the PVH Board finds that further vehicle for hire service in Chattanooga is required for the public's convenience and necessity and that the applicant is fit, willing and able to perform such public transportation and to conform to the provisions of this article, the PVH Board shall issue a certificate, stating the name and address of the applicant, the number of vehicles authorized upon such certificate and the date of issuance; otherwise, the application shall be denied. Provided that should the application be incomplete, the PVH Board shall not issue a certificate of public convenience and necessity until any omissions are cured. Any material misrepresentation in the application shall be a basis for denial of a certificate of public convenience and necessity. If the applicant or any owner of the business having a ten

percent (10%) or greater financial interest in the business has been convicted of two (2) or more felonies within ten (10) years of the date of the application, the certificate shall be denied. If the applicant or any owner of the business having a ten percent (10%) or greater financial interest in the business has been convicted of a felony within ten (10) years, the certificate may be denied.

(b) In making the above findings, the PVH Board shall take into consideration the numbers of vehicles for hire already in operation, whether existing transportation is adequate to meet the public need, the probable effect of increased service on local traffic conditions and the character, experience and responsibility of the applicant.

(c) The PVH Board may place a cap on the number of privileges that may be authorized to operate under a Certificate of Public Convenience and Necessity. Permits for a vehicle for hire under this Chapter which are not regularly used shall not be renewed.

(d) A certificate holder shall have thirty (30) days from the date a vehicle for hire is approved to make such vehicle for hire operational. Applicants shall have ninety (90) days following the approval of a certificate of public convenience and necessity to obtain and have inspected all vehicles for hire authorized by the PVH Board. If a vehicle for hire shall not be operated for sixty (60) or more days, the privilege for that vehicle for hire shall be revoked by the PVH Board unless the certificate holder notifies the PVH Board and obtains a replacement vehicle that is inspected and approved by the PVH Board Inspector or the PVH Board approves additional time with adequate justification.

(e) The action of the PVH Board in issuing or denying such a certificate shall be final, except as it may be subject to review at law.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 31, 3-18-08; Ord. No. 12412, §§ 12—15, 7-13-10; Ord. No. 12891, §§ 1, 13, 1-6-15)

Sec. 35-50. Proof of financial responsibility required.

No certificate of public convenience and necessity shall be issued or continued in operation for a vehicle for hire unless there is in full force and effect proof of financial responsibility for each vehicle authorized in an amount in accordance with the minimum limits set by the law of the State of Tennessee for financial responsibility of owners and operators of motor vehicles. Such security shall inure to the benefit of any person who shall be injured or who shall sustain damage to property proximately caused by the negligence of a holder, his servants or agents. Proof of financial responsibility shall be established in accordance with standards set by the law of the State of Tennessee. Proof of financial responsibility shall be filed with the Passenger Vehicle For Hire Inspector(s) and shall have as a surety thereon a surety company authorized to do business in the State of Tennessee or a certificate of self-insurance issued by the Commissioner of Safety as provided by T.C.A. § 55-12-111.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 32, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-51. Reserved.

Sec. 35-52. Transfer.

No certificate of public convenience and necessity may be sold, assigned, mortgaged or otherwise transferred, nor may there be any modification of ownership as to stock transfer, new or additional partners, etc., by a holder of a certificate of public convenience and necessity without the consent of the Passenger Vehicle For Hire Board and payment of a transfer and inspection fee of Fifty Dollars ($50.00).

Provided that in the event of a death of a holder, the certificate may be devised to or inherited by a spouse or child, and they shall be granted a certificate by the Passenger Vehicle For Hire Board providing they are otherwise qualified for the certificate.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, § 11, 10-6-92; Ord. No. 12092, §§ 2, 33, 3-18-08; Ord. No. 12412, § 16, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-53. Suspension and revocation.

(a) A certificate of public convenience and necessity and/or any privileges associated thereto issued under the provisions of this division may be revoked or suspended by the Passenger Vehicle For Hire Board if the holder thereof:

(1) Violates any of the provisions of this article, including failing to maintain financial responsibility.

(2) Allows a vehicle for hire to be operated by a person who does not have a driver's permit issued by the Passenger Vehicle For Hire Board or a chauffeur's license issued by the State of Tennessee.

(3) Fails to maintain the general qualifications applicable to the issuance of a certificate of public convenience and necessity, including, but not limited to operating the number of vehicles for hire that were required for the issuance of a certificate of public convenience and necessity.

(4) Willfully fails to submit a vehicle for hire for inspection.

(5) Fails to report an accident as required by this Chapter.

(6) Changes its address, company name, officers, ownership or otherwise make any material change in the company or its identity from that set forth upon the initial application to operate a vehicle for hire.

(7) Violates any provisions of this Chapter.

(b) Prior to suspension or revocation, the holder shall be given notice of the proposed action to be taken and shall have an opportunity to be heard. The action of the Passenger Vehicle For Hire Board at such hearing shall be final subject to review at law.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 34, 3-18-08; Ord. No. 12412, § 17, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

DIVISION 3. DRIVERS' PERMITS

Sec. 35-54. Required.

(a) All certificate holders and privilege holders are required to maintain a current driver's permit or a chauffeur's license issued by the State of Tennessee. The permit shall be obtained in the manner provided for in this chapter. Any person holding a chauffeurs' license issued by the State of Tennessee shall not be required to apply for a drivers' permit under this division but shall provide a copy of the license to the Passenger Vehicle For Hire Board and inspector(s) and shall be required to produce such chauffeurs' license upon request by a law enforcement officer.

(b) No person shall operate as a vehicle for hire or operate a motor vehicle to transport passengers for hire upon the streets, roads and public highways of Chattanooga, and no person who owns or controls a motor vehicle engaged in the business of transporting passengers for hire shall permit such motor vehicle to be so driven and no motor vehicle licensed by the PVH Board shall be so driven at any time for hire, unless the driver or chauffeur of such motor vehicle shall first obtain and shall have then in force a driver's permit issued under the provisions of this division or a chauffeurs' license.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 35, 3-18-08; Ord. No. 12412, § 18, 7-13-10; Ord. No. 12891, §§ 1, 15, 1-6-15)

Sec. 35-55. Application.

An application for a driver's permit or annual renewal shall be filed with the Passenger Vehicle For Hire Board on forms provided by the Passenger Vehicle For Hire Inspector(s). Such application shall be verified under oath and shall contain the following information:

(a) The name, residential address, telephone number and date of birth of the applicant. No applicant under twenty-one (21) years of age shall be accepted or approved by the Passenger Vehicle For Hire Board. Applicants for a driver's permit who have a chauffeurs' license issued by the State of Tennessee shall be subjected to a background investigation including providing a statement from a licensed physician and federal Department of Transportation drug and alcohol test (hereafter "DOT drug test") as required by City Code § 35-56.

(b) Proof of a license issued by the State of Tennessee with a for-hire "F" endorsement or any other license or endorsement approved by the Passenger Vehicle For Hire Board.

(c) A statement from a licensed physician that certifies that he or she is in good physical condition and is free from epilepsy, vertigo, or any other medical condition that is likely to substantially impair the applicant's ability to safely operate a motor vehicle or that is likely to make the applicant an unsafe or unsatisfactory driver and federal Department of Transportation drug and alcohol test (hereafter "DOT drug test") on a form approved by the Passenger Vehicle For Hire Board or such examination as approved or required by the Passenger Vehicle For Hire Board and has been examined for hearing. The Passenger Vehicle For Hire Board or Passenger Vehicle For Hire Inspector may require an applicant to submit a statement of compliance with this subsection at any time after approval of the initial application.

(d) A statement from a licensed physician or licensed optometrist that certifies that the applicant is free of defective vision, which cannot be corrected by eyeglasses or contact lenses, that is likely to substantially impair the applicant's ability to safely operate a motor vehicle.

(e) At the time the application or renewal is filed, the applicant shall pay to the Passenger Vehicle For Hire Board a fee of ten dollars ($10.00).

(f) The Passenger Vehicle For Hire Inspector may authorize driver to operate a vehicle for hire pending final approval of the Passenger Vehicle For Hire Board for sixty (60) days if the following requirements are met:

(1) The driver has filed an application with the Passenger Vehicle For Hire Inspector's office;

(2) The driver has paid the fees necessary to approve the application;

(3) The driver provides a statement disclosing any felony convictions or any convictions involving driving under the influence of drugs or alcohol or sexually related offenses within ten (10) years of the date of the driver's permit application and provides a complete Tennessee Bureau of Investigation Tennessee Criminal History of the applicant;

(4) The vehicle for hire that the temporary driver will operate has met the financial responsibility requirements of this Chapter;

(5) The Board shall reject any applicant who makes a false statement under this section.

(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, § 12, 10-6-92; Ord. No. 12092, §§ 2, 36, 3-18-08; Ord. No. 12149, § 2, 8-5-08; Ord. No. 12239, § 2, 5-12-09; Ord. No. 12412, § 19, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-56. Public transportation employment; access to criminal conviction histories, police investigation of applicant.

(a) The police department shall conduct an investigation of each applicant for a driver's permit. A report of such investigation and a copy of the traffic and police record of the applicant, if any, shall be attached to the application for the consideration of the Passenger Vehicle For Hire Board.

(b) Upon receipt of an application, the Passenger Vehicle For Hire Inspector(s) shall conduct a criminal conviction record investigation through computer terminals or other means of access to criminal convictions. The applicant shall submit a complete Tennessee Bureau of Investigation Tennessee Criminal History to the Passenger Vehicle For Hire Inspector.

(c) The results of criminal conviction record investigations shall be used for the limited purpose of determining the suitability of the applicant for issuance of the license or permit or the suitability of the person for employment with the municipality.

(d) The costs incurred in conducting such criminal conviction records investigations shall be paid by the applicant for a drivers permit.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 37, 3-18-08; Ord. No. 12149, § 3, 8-5-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-57. Consideration of application.

The Passenger Vehicle For Hire Board shall, upon the consideration of the application and the reports and certificate required to be attached thereto, approve or reject the application. The applicant must appear in person if directed to appear by the Passenger Vehicle For Hire Inspector or Board. The action of the Board approving or denying such application shall be final subject to a review at law.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12149, § 4, 8-5-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-58. Issuance; contents.

Upon final approval of an application or renewal for a driver's permit, the Passenger Vehicle For Hire Board shall issue a permit to the applicant, which shall bear such information as required to personal identification of a driver by such information as the drivers name, address, age, signature, permit number, name of company employed by, state drivers license number and date of expiration or photograph of the applicant as required by the Passenger Vehicle For Hire Board. (Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12149, § 5, 8-5-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-59. Term; renewal fee; temporary medical exception.

(a) Each taxicab driver's permit shall be issued for a period of one (1) year or any part thereof, with all permits issued pursuant to this article expiring on the driver's birth date of each year. A permit for the one (1) year period or any portion thereof shall be issued upon the payment of ten dollars ($10.00) unless the permit for the preceding year has been revoked. A five dollar ($5.00) fee shall be charged for all replacement or temporary taxicab driver permits.

(b) The Passenger Vehicle For Hire Board or Passenger Vehicle For Hire Inspector may require a driver to submit an updated medical exam or DOT drug and alcohol test when a driver applies to renew his drivers permit or upon the expiration of a Temporary Medical Exception as set forth in Section 35-59(c). A driver may appeal a decision of the Passenger Vehicle For Hire Inspector requiring a DOT drug and alcohol test to the Passenger Vehicle For Hire Board or as allowed by law. The Passenger Vehicle For Hire Board shall determine the process and procedures for renewal of driver permits.

(c) Temporary Medical Exception.

(1) Upon receipt of a statement from a licensed physician and/or optometrist that certifies that a driver has a medical condition which temporarily prohibits or impairs the driver's ability to operate a motor vehicle, the Passenger Vehicle For Hire Inspector may grant the driver a Temporary Medical Exception from the financial responsibility requirements contained in Section 35-55. In no event shall the Temporary Medical Exception exceed six (6) months.

(2) During such period that the Temporary Medical Exception is in effect, the driver shall be prohibited from operating a vehicle for hire pursuant to this Chapter.

(3) Upon expiration of the Temporary Medical Exception, the prohibition on operating a vehicle for hire pursuant to this Chapter shall remain in effect until the Passenger Vehicle For Hire Inspector receives proof of financial responsibility and an updated statement from a licensed physician and/or licensed optometrist certifying that the driver satisfies the physical and vision requirements in Section 35-55 of this Chapter. If the driver is unable to provide proof of financial responsibility and the appropriate medical certifications at that time, action may be taken to suspend and/or revoke the driver's permit.

(4) During the period of the Temporary Medical Exception, the driver shall remain responsible for the payment of fees and for complying with all other requirements of this Chapter. Nothing in this Section shall preclude suspension, revocation, or show cause proceedings against a driver for violating any other provision of this Chapter.

(d) Pursuant to state and federal law, all medical records and certifications received by the City pursuant to this Section shall be kept confidential.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 9799, § 13, 10-6-92; Ord. No. 12092, §§ 2, 38, 3-18-08; Ord. No. 12149, § 6, 8-5-08; Ord. No. 12639, § 2, 8-21-12; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-60. Display in vehicle.

Every driver to whom a permit is issued under this division shall post his or her driver's permit in such a place as to be in full view of all passengers while such driver is operating a motor vehicle transporting passengers for hire. A drivers' permit shall be invalid if the drivers state issued license to transport passengers for hire is suspended or revoked.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, § 39, 3-18-08)

Sec. 35-61. Suspension and revocation.

The Passenger Vehicle For Hire Board is hereby authorized to suspend any driver's license issued under this division for a driver's failing or refusing to comply with the provisions of this article. The Passenger Vehicle For Hire Board is also authorized to revoke any driver's permit for failure to comply with the provisions of any other ordinance or law related to the driver's qualifications to operate a vehicle for hire. The Passenger Vehicle For Hire Board may revoke a driver's license for charging a passenger rates in excess of those authorized pursuant to Sections 35-26 and 35-27. However, a permit may not be revoked or suspended unless the driver has received notice and had an opportunity to present evidence in his or her behalf. The Passenger Vehicle For Hire Board shall adopt administrative procedures to govern the conduct of such hearing. The action of the Passenger Vehicle For Hire Board in suspending a license or permit shall be final, subject to a review at law.
(Ord. No. 9784, § 1, 9-8-92; Ord. No. 12092, §§ 2, 40, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

DIVISION 4. VEHICLE FOR HIRE PRIVILEGE

Sec. 35-62. Required.

(a) No person shall operate or permit a vehicle for hire as defined in Section 35-22 of this Code as amended, upon the streets, roads and public highways of Chattanooga without having first obtained a privilege to operate the vehicle from the Passenger Vehicle For Hire Board.

(b) Any type of motor vehicle for hire authorized to operate under this Chapter must be operated under the franchise or umbrella of a Certificate of Public Convenience and Necessity issued by the Passenger Vehicle For Hire Board.
(Ord. No. 12412, § 20, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-63. Application.

(a) An application for a privilege shall be filed with the Passenger Vehicle For Hire Board upon forms provided by the Passenger Vehicle For Hire Inspector(s) and upon the payment of a nonrefundable fee of fifty dollars ($50.00). A renewal application shall be filed upon forms provided by the Passenger Vehicle For Hire Inspector(s) on or before the annual renewal date of the privilege. Such application shall be verified under oath and shall furnish the following information:

(1) The name and address of the applicant;

(2) The experience of the applicant in the transportation of passengers;

(3) The name of the certificate holder with which the privilege holder will be associated or affiliated with for operation of the privilege;

(4) The color scheme and insignia to be used to designate the vehicle to be operated under the privilege;

(5) The ownership interest that the applicant has in the vehicle to be operated under the privilege;

(6) The make, model and year of the vehicle to be operated under the privilege;

(7) Whether the applicant has been convicted of any felony or any convictions involving driving under the influence of drugs or alcohol or sexually related offenses within ten (10) years of the date of the privilege application and provides a complete Tennessee Bureau of Investigation Tennessee Criminal History of the applicant; and

(8) Such further information as the Passenger Vehicle For Hire Board may require.

(b) If an application is incomplete, it shall be returned to the applicant for completion prior to being acted upon.

(c) Each application shall be signed by the certificate holder and the privilege holder, which shall be deemed to be a certification that the information on the application is accurate. Any material misrepresentation made on an application shall be grounds for revocation of the certificate.

(d) The lawful operation of any privileges prior to January 1, 2010 shall not be affected by this Section and shall not be required to complete an initial application but shall be required to complete a renewal application prior to January 1, 2011.
(Ord. No. 12412, § 21, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-64. Public Hearing.

Upon the filing of an application for a privilege, the Passenger Vehicle For Hire Board shall fix a time and place for a public hearing thereon, to be not less than thirty (30) days after receipt of the application or request.
(Ord. No. 12412, § 22, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-65. Issuance.

(a) If the Passenger Vehicle For Hire Board finds that further vehicle for hire services in Chattanooga is required and the applicant is fit, willing and able to perform such public transportation and to conform to the provisions of this Chapter, the Passenger Vehicle For Hire Board shall issue a privilege to the applicant, stating the name and address of the applicant, the certificate with which the privilege is associated or affiliated, the make, model and year of the vehicle and the privilege number assigned to the privilege; otherwise, the application shall be denied.

(b) Applicants shall have ninety (90) days following the approval of a privilege to obtain and have inspected the vehicle for hire authorized by the Passenger Vehicle For Hire Board. If a vehicle for hire shall not be operated for ninety (90) or more consecutive days, the privilege for that vehicle for hire shall be revoked by the Passenger Vehicle For Hire Board unless the certificate holder or the privilege holder notifies the Passenger Vehicle For Hire Board and obtains a replacement vehicle that is inspected and approved by the Passenger Vehicle For Hire Board Inspector or the Passenger Vehicle For Hire Board approves additional time with adequate justification.

(c) The action of the Passenger Vehicle For Hire Board in issuing or denying a privilege shall be final, except as it may be subject to review at law.
(Ord. No. 12412, § 23, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-66. Transfer.

No privilege may be sold, assigned, mortgaged or otherwise transferred by a privilege holder without the consent of the Passenger Vehicle For Hire Board and payment of a transfer and inspection fee of fifty dollars ($50.00).
(Ord. No. 12412, § 24, 7-13-10; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-67. Suspension and revocation.

(a) The PVH inspector may cause immediate suspension or revocation of a license, inspection sticker, or driver's permit issued pursuant to this Article under the following circumstances:

(1) For violation(s) of any federal, state, or local law which would constitute grounds for denial of a driver's permit;

(2) For a driver's failure or refusal to comply with the requirements of this Chapter or related regulations or refusal to cooperate with reasonable requests made by an inspector investigating complaints or conducting the semiannual or periodic random inspections pursuant to the operating procedures of the PVH Board in the performance of his or her duties; or

(3) For serious violations of applicable ordinances or regulations when such action is deemed warranted by the PVH inspector for reasons of public health or safety. At the time of such action, the driver and/or certificate holder and/or privilege against whom such action is being taken shall be notified in writing of the manner in which a hearing on the matter may be requested.

(4) The suspension or revocation notice shall state that the driver may appeal the suspension or revocation to the PVH Board. The PVH Board may affirm, modify or reverse the PVH Inspector's suspension or revocation.

(b) A privilege or certificate to provide ground transportation service may be suspended, revoked, or have an administrative penalty assessed against it for the following:

(1) Failure to provide the accurate and complete information required on the annual or renewal application;

(2) Failure to have in force the state-issued certificate of authorization to operate a ground transportation service in the City;

(3) Failure to have in force the required liability insurance, indemnity bond or plan of self-insurance;

(4) Failure to pay any City tax, license fee, or any other type fee and/or tax required by law;

(5) Failure to satisfy any administrative sanctions or penalties imposed by the PVH Board; or

(6) Substantive or repetitive disregard of any City ordinances and applicable statutes and rules and regulations that specify certificate holders responsibilities and/or obligations.

(c) All administrative orders of revocation, suspension, or administrative penalties shall be imposed and signed by the PVH Inspector.

(d) A driver's permit is the property of the City, and when said permit is suspended or revoked, the driver shall immediately surrender the permit to the PVH Board or Inspector. Upon the request of the PVH Board, the certificate holder shall assist the PVH Board in gaining possession of a suspended or revoked driver's permit.

(e) Point System.

(1) Each violation or penalty is assigned a certain number of points, according to the seriousness of the offense. The purpose of this point system is to establish a criterion whereby the discretion allowed in determining the penalty cannot be exercised arbitrarily, each permit, privilege and/or certificate holder will know or can determine his or her "point" status at any given time.

(2) After notice and a hearing before the PVH Board, points, convictions/violations for federal, state, and local laws suspensions or revocation shall be assessed or invoked based upon convictions and whether the conviction or violation are based on an administrative hearing, court of competent jurisdiction within the State of Tennessee or any other jurisdiction. Information regarding convictions may be secured from any official sources or records available to public or Departmental inspections. Upon the accumulation of twelve (12) points by any driver, privilege or certificate holder within a period of two (2) years, the PVH Board shall suspend the driver's permit or certificate for a period of six (6) months for the first such accumulation of twelve (12) points, one (1) year for the second such accumulation of twelve (12) points, and two (2) years for any subsequent accumulation of twelve (12) points within the two (2) year period.

(3) No person's rights under this Chapter will be suspended without first being given an opportunity to appeal the matter, unless the appeal rights have been voluntarily waived by the driver or certificate holder.

Administrative Warning = One (1) Point

One (1) Day Suspension = Three (3) Points

Two (2) Days Suspension = Six (6) Points

Three (3) Days Suspension = Nine (9) Points

Four (4) Days Suspension = Twelve (12) Points

(4) The PVH Board may suspend or revoke a drivers' permit, privilege to operate a passenger vehicle for hire if the Board finds that it is necessary to protect the health, morals, comfort, safety, convenience or welfare of the inhabitants of the city.

(f) Each day of continued violation shall be considered a separate offense.

(g) Each assessment of points shall expire two (2) years after such assessment. In no event shall points which have expired be used to calculate a driver or certificate holder's total points.
(Ord. No. 12412, § 25, 7-13-10; Ord. No. 12891, §§ 1, 16, 1-6-15)

Secs. 35-68—35-145. Reserved.

ARTICLE IV. TRAFFIC INCIDENT MANAGEMENT SERVICE

Sec. 35-146. Purpose.

The purpose of this article is to establish regulations and procedures to license district wrecker operators who apply to remove wrecked or disabled vehicles at the request or call of the City Police Department or other department of the City and to establish a rotation call list procedure for these operators and to establish a board to administer this article. It is the intent of this Article to provide for the quick clearance of controlled access highway collisions due to the concern for public safety when considering the qualifications of wrecker or towing operators who participate in the clearance of controlled access highway collisions.

Sec. 35-147. Definitions.

For purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

District wrecker. All wrecker or towing operators licensed by the City under this article qualify to be placed on the rotation call list to respond to requests for towing of vehicles made by the City.

Inside storage. The storing of a motor vehicle within an enclosed building being used by the wrecker or towing operator at the operator's place of business.

Normal business hours. The hours are from 8:00 a.m. to 5:00 p.m. except Saturdays, Sundays, and the following holidays: New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, and Christmas Day.

Outside storage. The storing of a motor vehicle within a lot or premises being used by the wrecker or towing operator at the operator's place of business, but not inside storage as described above.

Wrecker board. The Passenger Vehicle for Hire Board created to administer this article.

Wrecker inspector. That officer or employee of the City Police Department designated by the Chief of Police as the person responsible for receiving applications, conducting investigations of proposed wrecker operators, and making recommendations to the Wrecker Board.

Wrecker or towing operator. Any person engaged in the business of, or offering the services of, a wrecker or towing service to remove wrecked or disabled vehicles at the request or call of the City Police Department or other department of the City, whereby motor vehicles are or may be towed or otherwise removed from one (1) place to another by the use of a motor vehicle adapted to and designed for that purpose.
(Ord. No. 12171, § 1, 10-21-08; Ord. No. 14091, § 2, 3-12-24)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 35-148. District Wrecker classifications.

(a) For purposes of this article, District wreckers are classified into four (4) classes, class A, class B, class C, and recovery class, with minimum requirements for each classification as follows:

(1) *Class A.* For towing passenger cars, pick-up trucks, small trailers, etc.

CHASSIS:

A. Minimum GVWR fourteen thousand five hundred (14,500) pounds
B. Dual Rear Wheels
   1. Minimum seven and one-half (7.50) by sixteen (16)
   2. Minimum two hundred twenty-five (225) by sixteen (16)
   3. Minimum Tread eight-thirty-seconds (8/32)
C. Minimum sixty (60) inch cab to axle
D. Present a professional outward appearance, and
E. Fully functional drivers and passenger side mirrors.

WRECKER:

A. Manufactured body, boom, and underlift
B. Minimum sixty (60) inch cab to axle
C. Hydraulic recovery boom
   1. Minimum capacity eight (8) ton retracted
   2. Minimum capacity four thousand (4,000) LD extended
   3. Hydraulic elevation
   4. Hydraulic extension
D. Dual Hydraulic eight thousand (8,000) pound Winches
   1. Direct mount winch motors
   2. Six (6) by nineteen and three-eights (19 3/8) inch cable
   3. One hundred (100) feet minimum of cable from winch
   4. Swidged thimbles (no clamps)
E. Hydraulic Wheel Lift
   1. Hydraulic Elevation
   2. Hydraulic Extension
   3. Three thousand five hundred (3,500) pound Capacity at full extension
   4. Seven thousand five hundred (7,500) pound Tow Rating
   5. Sound and operational tire restraint straps
   6. Safety chains OEM Spec's Or %70 Grade five-sixteenths (5/16) inch
F. Operational Dollies
G. Tow Sling w/J Hooks and chains
   1. Sling straps in sound working condition
   2. J Hooks and Chain in Sound WO
H. Tow Lights w/Cord (Operational)
I. Rotating Light Bar (Fully Operational)
J. Work Lights (Operational)
K. Trailer Ball Attachment

L. Attachment or carrying straps for motorcycle

M. Safety Package

1. Five (5) pound Fire Extinguisher (charged & operational)
2. Shovel
3. Broom
4. Bucket
5. Two and three-eights (2⅜) inch by ten (10) foot recovery chains (Not "J" Hooks sling chains) minimum
6. 5 Lbs oil dry
7. First Aid Kit

N. Class A tow trucks shall have all of the following required equipment:

1. Amber colored lights
2. Bolt Cutters
3. Company Name/Address (three (3) inch letters)
4. Cradle Tow Plate/Sling
5. Fire Extinguisher twenty (20) pounds A.B.C. (UL)
6. Flares/Reflectors
7. Flood lights
8. Fluid Absorption Compound (fifty (50) pounds)
9. Heavy duty push broom
10. Pinchbar, prybar, crowbar
11. Portable light bar
12. Safety chains
13. Tire chains
14. Safety restraint straps
15. Shovel

(2) *Class B.* For towing medium size trucks, trailers, etc.

CHASSIS:

A. Minimum GVWR twenty-five thousand five hundred (25,500) pounds

B. Dual Rear Wheel

1. Eight and one-quarter (8.25) by twenty-two and one-half (22.5)
2. 265R by twenty-two and one-half (22.5)
3. Minimum 8/32 tread all six (6) tires

C. Minimum cab to axle one hundred eight (108) inches

D. Air Brakes

E. Professional Outward Appearance

F. Functional Drivers/Passenger Side Mirrors

WRECKER:

A. Manufactured body, boom, and wheellift

B. Boom Capacity sixteen (16) Ton

C. Hydraulically Powered Boom

1. Hydraulic Elevation

2. Hydraulic Extension

D. Dual sixteen thousand (16,000) pounds Hydraulic Winches
   1. Direct Mount Hydraulic Motor
   2. Six (6) by nineteen and one-half (19½) inch cable
   3. One hundred fifty (150) feet of cable from the winch
   4. Swidged Thimbles (No clamps)

E. Hydraulic Wheellift
   1. Power elevation
   2. Power extension
   3. Eight thousand (8,000) pound capacity full extension
   4. Thirty-two thousand (32,000) pound Tow Rating
   5. One-half (½) inch OEM or T-70 Safety Chain Permanently Attached

F. Medium Duty Truck Hitch with one-half (½) inch chassis

G. Rear Jacks or spades (Wheellift not acceptable)

H. Tow Lights or Bar w/Cord (Operational)
   1. Rotating light bar (Fully Operational)

J. Work Lights
   1. Upper Work Lights
   2. Lower Hook Up Lights
   3. All lights must be operational

K. Tow Ball and/or Attachment

L. Safety Package
   1. 5 Lb. Fire Extinguisher
   2. Shovel
   3. Broom
   4. Pry Bar
   5. Bucket
   6. 5 Lbs. Oil Dry
   7. Pair three-eights (⅜) inch by ten (10) foot Chains minimum
   8. Pair one-half (½) inch by ten (10) foot Chains minimum
   9. First Aid Kit

M. Medium capacity tow trucks shall have all of the following required equipment:
   1. Amber colored lights
   2. Bolt Cutters
   3. Company Name/Address (three (3) inch letters)
   4. Cradle Tow Plate/Sling
   5. Fire Extinguisher twenty (20) pounds A.B.C. (UL)
   6. Flares/Reflectors
   7. Flood lights
   8. Fluid Absorption Compound (fifty (50) pounds)
   9. Heavy duty push broom
   10. Pinchbar, prybar, crowbar

11. Portable light bar
12. Safety chains
13. Tire chains
14. Safety restraint straps
15. Shovel

(3) *Class C. Heavy Duty Wreckers* for towing large trucks, road tractors and trailers where a recovery wrecker is not required.

CHASSIS:

A. Minimum GVWR fifty thousand (50,000) pounds
B. Tandem Axle
   1. Ten (10) by twenty-two and one-half (22.5) Minimum
   2. 285R by twenty-two and one-half (22.5) Minimum
   3. Eight-thirty-seconds (8/32) Tread minimum all ten (10) tires
C. Minimum one hundred fifty-six (156) Inch C.B.
D. Air Brake
E. Air Service Lines
F. Professional Outward Appearance
G. Functional Driver/Passenger Side Minors

WRECKER:

A. Manufactured Body, Boom, and Underlift
B. Boom Capacity of twenty-five (25) Ton
C. Hydraulically Powered Boom
   1. Power Elevation
   2. Power Extension
D. Dual Hydraulic twenty-five thousand (25,000) pound Winches
   1. Direct mount winch motors
   2. Six (6) by nineteen and five-eighths (19 5/8) inch cable minimum
   3. Two hundred (200) foot minimum from winch
   4. Swidged Thimbles (No clamps)
E. Hydraulically Powered Underlift
   1. Power Elevation
   2. Power Extension
   3. Twelve thousand (12,000) pound Capacity Full Extension
   4. Eighty thousand (80,000) pound Tow Rating
   5. Five-eights (5/8) OEM or A-80 Safety Chain
H. Truck Hitches w/chains and/or Underlift Attachment
I. Hydraulic Rear Jacks or Spades
J. Tow Bar w/Cord
K. Rotating Light Bar
L. Air and Service Lines

M. Work Lights
   1. Upper Work Lights
   2. Lower/Hookup Lights
   3. All Lights Operational

N. Tow Ball and Pintal Hook Attachment

O. Safety Package
   1. Five (5) pound Fire Extinguisher
   2. Broom
   3. Shovel
   4. Pry Bar
   5. Bucket
   6. Five (5) pound Oil Dry
   7. Two (2) Pair of T70 by ten (10) foot minimum chain
   8. One (1) Pair of A80 by ten (10) foot' minimum chain
   9. First Aid Kit

P. Heavy Duty Class C Tow Trucks. All Heavy Duty Class C Tow Trucks shall have the following required equipment:

1. Six (6) Sets of forks
2. Two (2) — Eight (8) ton snatch blocks
3. Two (2) — Four (4) feet of three-eights (3/8) inch safety chains
4. Two (2) — Fifteen (15) feet of one-half (1/2) inch recovery chains
5. Two (2) — Sixteen (16) feet of six (6) inch recovery straps with nineteen thousand (19,000) pound lifting basket
6. One (1) — Fifty (50) pound bag of oil dry
7. One (1) — Bolt cutters
8. One (1) — Axe
9. One (1) — Pry bar
10. One (1) — Broom
11. One (1) — Shovel
12. One (1) — Tow bar with cordless and/or sixty (60) foot electronic cord
13. One (1) — Twenty-five (25) foot air hose with fittings for truck air supply
14. The following additional equipment shall be timely brought to the accident site by the company if needed:
    a. One (1) — Air cushion compressor with hoses
    b. Four (4) — Large air bags
    c. Three (3) — Medium air bags
    d. Three (3) — Small air bags
    e. One (1) — Starter bag
    f. One (1) — Forklift five thousand (5,000) pound lifting capacity
    g. One (1) — Pallet jack

h. Four (4) — Rolls shrink wrap

i. One (1) — Sliding wheel trailer forty-five (45) foot length with twenty thousand (20,000) pound winch

(4) *Recovery Class* for towing large trucks, road tractors and trailers, on controlled access highways and ramps when needed for public safety as determined by Emergency Service Providers in charge at the scene for life safety purposes:

A. The Tow Truck chassis shall have:

1. A minimum manufacturer's capacity of not less than, GVWR seven (7) tons/ fifty-four thousand (54,000) pounds and tandem axles:
   a. Eleven (11) by twenty-two and one-half (22.5) Tires minimum
   b. Eleven (11) by 24.5 Tires minimum
   c. 295R by twenty-two and one-half (22.5) or twenty-four and one-half (24.5) Tires Minimum
2. Minimum overall wheelbase three hundred (300) inches measured from the center of the bogey to the front steering axle
3. Air brakes & air service lines

B. Wrecker shall have:

1. Manufactured body minimum one hundred fifty-six (156) inch cab to bogey Boom
2. Manufactured boom capacity fifty (50) ton rotator minimum
3. Fully hydraulic recovery boom
   a. Power elevation
   b. Power extension
4. Dual hydraulic mount fifty thousand (50,000) pound winch motor
   a. Direct mount winch motor
   b. Six (6) by 37 IWRC 3/4 cable with swivel hook and two hundred fifty (250) feet of continuous cable
   c. Swidged cable (no clamps)
5. Hydraulic power underlift
   a. Power elevation
   b. Power extension
   c. Fifteen thousand (15,000) pound lift capacity
   d. Eighty thousand (80,000) pound tow rating
   e. Minimum one hundred five (105) inches of clear reach
6. Heavy duty truck hitch w/chains or underlift attachment
7. Hydraulic power rear jacks and/or spades
8. Rotating light bar strobe
9. Tow light bar w/cord
10. Two (2) Air lines, forty-five (45) feet long, with a three-eights (3/8) inch minimum inside diameter
11. Work lights
    a. Upper set w/ swivel base
    b. Lower set hook up

c. All lights must be operational

12. Towball and pintle hook attachment
13. Safety package with First aid equipment approved by Wrecker Board.

C. Recovery Class permit holders shall have:

1. One (1) licensed recovery class wrecker
2. One (1) licensed Class C wrecker — meeting the current specification for Class C Wrecker
3. One (1) Sliding axle trailer
4. A "congear" system
5. The following air cushions:
   a. Two (2) Starter Cushions: Size thirty-six (36) inch Diameter by thirty-six (36) High seven thousand (7,000) pounds — Vertical Lift (Each) one thousand one hundred (1,100) pounds Float Capacity
   b. Four (4) Heavy Lift Cushions: Size sixty (60) inch Diameter by ninety-six (96) inch High nineteen thousand five hundred (19,500) pounds — Vertical Lift (Each) seven thousand three hundred (7,300) pounds Float Capacity
6. Generator w/additional accident scene lighting
7. Owner and/or first lease holder to fully insure storage lot (insurance issued to operator of tow service only) to hold minimum four (4) complete tractor trailer units
8. Minimum thirty-five thousand (35,000) pound Drag winch with two hundred (200) feet of cable
9. One (1) set of acetylene/oxygen cutting torch with a minimum of fifty (50) feet of hose lines
10. One (1) forty-eight (48) inch wrecking bar
11. One (1) one-half (1/2) inch nylon rope — minimum of fifty (50) feet
12. One (1) truck air brake release kit
13. Two (2) nylon lifting slings twenty-five (25) feet in length, six (6) inches wide
14. One (1) front end loader with minimum of 1-112 cubic yard bucket, or equivalent loading capability
15. One (1) reciprocating electric saw
16. One (1) air impact metal cutter
17. One (1) engine driven air compressor with receiving tank, regulator hose reel and hose, with minimum of 5 hp/11.8 cfm
18. One (1) twelve (12) inch circular saw (electric)
19. One (1) ten (10) foot by twelve (12) foot tarpaulin — canvas or equal
20. One (1) twelve (12) foot by forty (40) foot tarpaulin — canvas or equal
21. One (1) set of thirty-six (36) inch bolt cutters
22. Four (4) three-eights (3/8) inch alloy tow chain — minimum of twenty (20) feet, and brakes
23. Four (4) ~ inch alloy tow chain — minimum of eight (8) feet
24. Sufficient number of binders to secure loads up to fifty thousand and six (50,006) pounds
25. One (1) axe

26. Four (4) snatch block — twelve (12) ton capacity
27. One (1) set of four (4) cribbing beams, three (3) feet long
28. A Recovery Class wrecker shall be required to either own or contract all equipment required in Sections 8.2 through 8.5 of the Georgia Towing and Recovery Incentive Program (TRIP) which equipment is available for response twenty-four (24)/seven (7).
29. All eligible companies for Recovery Class designation shall provide ongoing training to all their employees which satisfy TIME Task Force certifications and endorsements. In addition, each Recovery Class wrecker company shall have towing and recovery professionals employed who have attended at least eight (8) hours of training or continuing education every twelve (12) months. This training may include traffic incident management work shops, MUTCD traffic control flagger training, or advanced towing and recovery practices which are approved by the Wrecker Board.
30. All Recovery Class operators shall be familiar with quick clearance, best practices for incident scene management which shall comply with the practices referenced in the coordinated incident management tool kit for quick clearance by the 1-95 Corridor Coalition found at FS-17 through FS-18.

(b) The Emergency Communications Service Provider within the City of Chattanooga shall maintain a call list for each tow truck class. Notwithstanding the particular specifications for class A, class B, class C or Recovery Class wrecker, the Wrecker Board may grant a permit to a vehicle which is functionally equivalent for a particular class although the vehicle may not meet each and every specification. The applicant shall bear the burden of demonstrating through technical literature or otherwise that the vehicle is functionally equivalent.

(c) A Recovery Class wrecker shall be restricted to controlled access highways and such wreckers shall only be dispatched by the Emergency Communications Service Provider if one (1) or more of the following factors are applicable:

(1) There is major structural damage to a large truck(s), road tractor(s) or trailer(s) so as to result in an unstable situation which might result in more damage or a rupture of tanks or trailers and the potential spillage of contents; or,

(2) There is wreckage in an uncontained state at the site of an accident; or,

(3) Recovery of large truck(s), road tractor(s) or trailer(s) requires multiple pieces of equipment such as wreckers, loaders, cranes or other such equipment to clear affected thoroughfares; or,

(4) As required by Emergency Service Providers in charge at the scene for life safety purposes;

(5) As determined by an appropriate official with Tennessee Department of Transportation (TDOT) or incident management official; or

(6) Specific performance times shall be met by all Recovery Class operators or Class C operators who perform clearance work on controlled access highways.

(7) The failure of any operator to clear vehicles from the traffic lanes on controlled access highways within ninety (90) minutes following an order to proceed from the Emergency Service Provider in charge at the scene shall result in citation to the Wrecker Board for consideration on future participation in the rotation list and/or the dispatch of another wrecker service to provide clearance of traffic lanes in the interest of public safety.

(8) Notwithstanding any other provision of this chapter to the contrary, any Emergency Service Provider in charge at the scene may call for a recovery class wrecker with a rotator boom at the scene of any accident which, in the discretion of the Emergency Service Provider in charge at the

scene will result in potential loss of life or serious injury in the event such equipment is not summoned as quickly as possible to the scene. A report shall be filed with the Police Department indicating the name of the emergency service provider and the reasons for sending a recovery class wrecker with a rotator boom whenever that decision is made.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-149. Wrecker board.

(a) The city Passenger Vehicle for Hire Board established by section 35-17 of this Code is hereby granted the authority and jurisdiction to regulate wreckers, and the Passenger Vehicle for Hire Board may alternatively be referred to in this article as the Wrecker Board.

(b) The Wrecker Board shall meet every first Thursday at 3:30 p.m. in the City Council Assembly Room, and at such other times as it shall deem necessary.

(c) The Wrecker Board shall have the authority to approve, revoke, or suspend district wrecker permits, and otherwise administer the provisions of this article.

(d) The action of the Wrecker Board in granting or refusing a district wrecker permit or in revoking or suspending a district wrecker permit shall be final, except as it may be subject to review by law.
(Ord. No. 12171, § 1, 10-21-08; Ord. No. 14091, § 1, 3-12-24)

Sec. 35-150. Permit required; existing permittees.

No person shall engage in the business of, or offer the services of, a district wrecker; whereby motor vehicles are or may be towed or otherwise moved from one (1) place to another by the use of a motor vehicle adapted for that purpose without having been issued a permit as provided by this article. Permits shall be issued for class A through recovery class wreckers as the vehicles meet the requirements of section 35-148. Additionally, permits shall be granted for "district wreckers" as provided herein.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-151. Same—Application.

(a) Any person desiring to obtain a district wrecker permit shall file with the wrecker inspector an application setting out, among other things, the following:

(1) Name and address of the person desiring the license.

(2) The location and full description of all property to be utilized in connection with the business, including tax parcel numbers and zoning of this property.

(3) The number of wreckers or towing cars owned or available for use by the applicant and a full description of the wreckers sufficient to determine a proper classification under section 35-148.

(4) A statement that all wreckers are properly equipped for the applicable classification set forth in section 35-148 and contain the required equipment set out in 35-156, and that all wreckers meet applicable State and Federal regulations.

(5) A statement that the wrecker or towing operator will accept responsibility for any and all personal property left in towed or stored vehicles.

(6) A statement setting forth and describing available space including inside storage, if available, for properly accommodating and protecting all disabled motor vehicles to be towed or otherwise removed from the place where they had been disabled.

(7) A statement that the applicant will provide twenty-four (24) hour service, including holidays, and that he will have a qualified operator on duty at all times for each district wrecker location licensed hereunder.

(8) A statement that the wrecker or towing operator will not release any vehicles impounded by the city without authorization by the police department, that a file will be maintained on all vehicle release forms and that this file will be made available for police inspection upon request.

(9) Information to show that the applicant has had at least one (1) year's experience as a wrecker operator.

(10) An assurance that the applicant will maintain a minimum of two (2) properly equipped and operable wrecker throughout the year for which application is being made.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-152. Same—Fees; expiration date and renewal.

Any new applicant for a district wrecker permit under this article, except those who have been heretofore licensed under ordinances and procedures of the city in effect on the effective date of Ordinance Number 8415, shall be charged an application and investigation fee of two hundred dollars ($200.00) to cover the expense of investigating the applicant, the place of business, and the wreckers and equipment. The initial applications and permits hereunder for currently licensed wrecker operators shall be without an investigation fee other than the fifty dollar ($50.00) annual fee. If an applicant changes his business location or adds or substitutes a new or different wrecker, there shall be a supplemental investigation fee of one hundred dollars ($100.00). Additionally, there shall be annual license fee of one hundred dollars ($100.00) per wrecker licensed hereunder which shall be collected by the city treasurer upon granting an approved license or renewal license. All licenses shall expire on December 31st and applications for renewal shall be filed by November thirtieth of each year. Late applications for renewal will be considered in due course, but the applicant will not be privileged to operate such wreckers from December 31st until the renewal is approved by the Wrecker Board.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-153. Same—Investigation of applicant.

The wrecker inspector shall investigate or cause to be investigated each applicant for a district wrecker permit under this article to determine whether or not the applicant has the necessary equipment and facilities to qualify as a district wrecker operator, and, if the applicant is qualified. The Wrecker Inspector shall report his findings to the Wrecker Board and make a recommendation regarding the issuance of a district wrecker permit. Applications will be processed weekly by appointment with the Wrecker Inspector. Any applicant who has been convicted of a felony within ten (10) years of the date of the application shall not be permitted to obtain a wrecker or towing license within the City of Chattanooga. The wrecker board shall direct or make such further investigation as it deems proper and grant or refuse a permit.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-154. Same—Issuance.

Every person qualified under this article shall be issued a permit by the city treasurer for each district wrecker approved by the wrecker board, which permit shall at all times be kept with each wrecker. The permit shall bear a notation "district wrecker." Such permit shall have printed thereon the year for which it is valid.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-155. Same—Revocation.

(a) The Wrecker Board shall suspend or revoke the permit of any permittee on the call rotation list maintained by the City on any of the following grounds:

(1) If the permit was procured by fraudulent conduct or false statement of a material fact or a material fact concerning the applicant which was not disclosed at the time of his making application that would have constituted just cause for refusing to issue the license.

(2) Failure of a district wrecker permittee to have an operable and properly equipped wrecker and qualified operator on duty at all times or to promptly respond to police calls.

(3) If the district wrecker permittee has knowingly overcharged or consistently overcharges.

(4) A violation of any provision of this article.

(5) If a district wrecker does not meet all applicable State and Federal regulations.

(6) The wrecker board may suspend or revoke a permit in its discretion for due cause not specified herein.

(7) Specific performance times shall be met by all Recovery Class operators or Class C operators who perform clearance work on controlled access highways. The failure of any operator to clear vehicles from the traffic lanes on controlled access highways within ninety (90) minutes following an order to proceed from the Emergency Service Provider in charge at the scene shall result in citation to the Wrecker Board for consideration on suspension or removal from the rotation list in the interest of public safety.

(b) Such suspension or revocation shall terminate all authority and permission granted by such district wrecker permit to the licensee and the licensee shall be immediately removed from any call rotation list maintained by the City. Any person whose permit has been revoked shall not be eligible to again apply for a district wrecker permit for a period of two (2) years from the date of such revocation.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-156. Additional required equipment and standards.

In addition to the equipment required under the applicable district wrecker classifications set forth in section 35-148, all district wreckers shall also have and maintain additional equipment and standards as follows:

(1) The following additional equipment is required:

A. At least one (1) heavy-duty push broom;

B. Flood lights on hoist to illuminate scene at night;

C. One (1) shovel;

D. A twenty (20) pound Class ABC Underwriter Laboratory approved fire extinguisher, a two and seven-tenths (2.7) pound Halon 1301/1211 fire extinguisher, or equivalent fire extinguisher adequately charged.

(2) The appearance of all district wreckers shall be reasonably good with equipment painted.

(3) All district wreckers shall display the firm's name, address and phone number. Such information shall be painted on or permanently affixed on both sides. Such lettering shall be at least three (3) inches high. Magnetic signs will not be permitted as a substitute.

(4) It is the responsibility of the district wrecker service to have equipment for removing glass and other debris from the highway accident scene and to remove such debris from the highway.

(5) It is the responsibility of the District Wrecker to have a business license issued by the City of Chattanooga.

(6) Each District Wrecker company shall have a physical business office within the District in which it is located.

(7) The phone for each District Office shall be listed in the company name and answered within the District where service is to be provided.

(8) No District Wrecker company shall utilize employees of any other District Wrecker company. Joint use of employees is prohibited.

(Ord. No. 12171, § 1, 10-21-08)

State law reference—Persons removing wrecked or damaged vehicles to remove glass, etc. from highway, T.C.A., § 55-8-170(c).

Sec. 35-157. Required storage facilities and procedures for district wreckers.

District wreckers must provide proper storage facilities and procedures as follows:

(1) The wrecker operator shall provide a properly zoned (or lawful nonconforming use) fenced lot or building for proper and safe storage. Such lot for storage shall be located on the same property as the wrecker service or in close enough proximity to the wrecker service facility to permit the operator to visually observe the storage facility to prevent vandalism or other loss or damage to vehicles and their contents. The fence shall be a minimum of six (6) feet high, constructed of chain-link fencing, lumber, or other material which will serve as a significant deterrent to unauthorized entry. The fencing shall be equipped with lockable gates, which shall be locked at all times when the storage facility is unattended. There shall be room to store at least ten (10) cars within the fenced lot. Class C operators shall additionally have room to store a minimum of one (1) tractor and trailer within the fenced lot.

(2) Records of the vehicles towed and charges of tows from calls received from the city rotation list shall be maintained for at least one (1) year and shall be open for inspection by the city and the owner of any vehicle towed or his agent.

(3) All vehicles towed under the rotation call list provided for by this ordinance shall be stored inside a building or inside the fenced storage facility described above unless an authorization to do otherwise is obtained from the vehicle's owners.

(4) The wrecker service shall notify the registered owners and lienholders, within fifteen (15) days after any vehicle is towed pursuant to a request by any officer or official of the City of Chattanooga, of the location of the stored vehicles and the costs of securing possession of the towed and stored vehicle. Any wrecker service that fails to comply with the notice provisions of this section shall only be entitled to receive the costs of towing the vehicle and the costs for storing the vehicle during the fifteen (15) day notice period. The City of Chattanooga Police Department is hereby authorized to provide, upon written request, to the wrecker service company registration records on stored vehicles for the purposes of issuing the notice required by this section.

(5) The wrecker service shall negotiate a reduced rate annually for storage of vehicles which are established to be stolen vehicles by the Police Department for the City of Chattanooga. The rate for stolen vehicles shall be one-half (1/2) of the normal storage charge for vehicles stored at the wrecker service.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-158. Notification required for vehicles held over thirty (30) days.

The state department of revenue will be notified of all vehicles held over thirty (30) days, except when arrangements for longer storage are made by the owner, as required by Tennessee Code Annotated section 55-16-101.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-159. Insurance.

Before the Wrecker Board shall approve a district wrecker permit under this article including a renewal license, the applicant shall deposit with the wrecker inspector a certificate of an underwriter that the applicant has in force a policy or policies of insurance issued by an insurance company authorized to transact business in the state and has the minimum insurance coverage required by applicable State and Federal regulations and as follows:

(1) A general liability policy covering the operation of applicant's own business, equipment or vehicles for bodily injuries in the amount of three hundred thousand dollars ($300,000.00) for any one (1) person killed or injured, seven hundred thousand dollars ($700,000.00) for more than one (1) person injured or killed in anyone accident and one hundred thousand dollars ($100,000.00) for all damage arising from injury to or destruction of property. All such policies shall include cargo or "on-hook" riders or otherwise protect the operator against such liability. All such policies shall include garage keeper's liability riders or otherwise protect the operator against liability for damage to towed or wrecked cars kept on the premises arising from fire, theft, or other casualty.

(2) All applicants shall provide a copy of such insurance policies with their application and shall. provide copies of all renewals thereof to the Wrecker Inspector. The insurance policy shall be subject to approval by the City Attorney, or his designees, as to the minimum requirements contained herein. A certificate of insurance shall be provided which contains an endorsement providing a minimum of ten (10) working days' notice in the event of a cancellation of the policy or an expiration of a policy without a copy of a renewal being provided to the Wrecker Inspector, any license issued hereunder shall be suspended until a new policy and certificate of insurance are provided.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-160. Billing and charges for district wreckers.

All applicants for a district wrecker permit shall be subject to regulation as to billing and charges for any call from the police department referred to the district wrecker under the call rotation system as follows:

(1) The owner of a wrecker or towing car shall have prepared billheads with his name and the address of his place of business printed thereon. If requested by the owner of the disabled vehicle, the operator of the wrecker before towing a disabled vehicle away shall prepare a bill on his billhead form in duplicate, the original of which shall be given to the owner of the disabled vehicle or his authorized representative. This bill shall contain the following information:

A. Name and address of person engaging towing car.

B. State license number of disabled vehicle.

C. Storage rates per day or part thereof.

D. An estimate of the amount to be charged for towing which may thereafter only be adjusted for good cause. The printing of a schedule of fees on a billhead marked as to services rendered shall be sufficient for this purpose.

(2) The duplicate copy of the bill shall be retained by the wrecker or towing car owner for a period of one (1) year, and shall be subject to inspection by the wrecker inspector or his duly authorized representative.

(3) In the event the bill is for an amount more than the schedule of charges for routine services described in paragraph (4) below, then the bill shall contain an itemization of the number of worker-hours involved in the recovery and towing of the disabled vehicle, an itemization of the vehicle-hours involved, and any other special charges which cause the bill to be higher than the schedule of charges for routine services.

(4) The maximum charges for district wrecker calls shall be up to as follows:

A Class	Daytime tow	$245.00*
	Night/Weekend/Holiday	$273.00*
	Daily Storage (After 8 Hours)	$35.00 per day
	Extra Winching	$100.00/hour flat rate
	Dollies are chargeable only if a wrecker is used for the tow, not in cases where a rollback is used. There should be no extra charge allowed for a rollback tow.	
	Spill Cleanup Labor	$75.00/per incident
	Oil absorbent (oil dry, oil dri) Bags range from 30 pounds to 50 pounds	$10.00/per bag
B Class	Day time	$550.00/hour
	Night/Weekend/Holiday	$550.00/hour
	*Extra Winching (Extra winching if for overturned vehicles and/or Vehicles off roadway and down an embankment).	$300.00/hour
	Daily Storage (After 8 Hrs)	
	A. Tractor	$70.00/day
	B. Trailer	$70.00/day
C Class	Daytime tow	$700.00/hour
	Night/weekend/holiday	$700.00/hour
	Daily Storage (After 8 Hours)	
	A. Tractor	$70.00 per day
	B. Trailer	$70.00 per day
	Air Bags	$1,500.00/hour
For All Classes	Gate Fee - During Business Hours	$50.00
	Gate Fee - After hours or during emergency release	$150.00
	Administration Fee	$75.00

*Provide an annual increase every January based on the annual inflation increase from the prior month's data, to be approved each year by the Wrecker Board.

Any additional charge by Class A, Class B, or Class C wreckers for winching, dollies, wheel lift or rollbacks, or other equipment or services not normally incident to towing wrecked or disabled vehicles shall be allowed only when the additional charge is (1) reasonably necessary to retrieve

a wrecked vehicle which is off of the road or overturned; (2) to protect the wrecked or disabled vehicle from reasonably foreseeable additional damage should the device not be used; or (3) at the request of or permission of the owner or operator. An additional charge can be made for the pneumatic devices used to raise overturned trucks or other equipment not normally used in a tow.

If more than one (1) wrecker is necessary for recovery of the wrecked disabled vehicle the charges shall apply to each vehicle. In all cases involving a combination vehicle of five (5) or more axles or a single vehicle with a gross vehicle weight rating of twenty-six thousand and one (26,001) pounds or more, total charges computed utilizing the previously itemized schedule of hourly rates and equipment charges shall not exceed the total maximum recovery cost that would be applicable using the following schedule of permissible charges by weight for Recovery Class operations. Any dispute over reasonableness of any rates charged under this chapter shall be resolved by the Wrecker Board.

Class C and Recovery Class operations may elect to charge for the following services in lieu of an hourly rate charge provided adequate billing records are maintained and any disputed billing is subject to review by the Wrecker Board:

A.	Contained recovery/winching for all recovery jobs in which there is no clean-up of debris from the vehicle to be recovered and cargo doors remain closed.	10.5¢ per pound
B.	Salvage/debris recovery for picking up debris/parts or loading from one vehicle to another, or a vehicle that breaks apart and needs to be towed from the scene.	12.5¢ per pound
C.	The following charges may be added to the contained recovery/winching or salvage/debris recovery when applicable, and if specified on the billing invoice:	
1.	Inclement Weather: rain, snow, or if the temperature is below 25° F	2.25¢ per pound
2.	Nights, Weekends and Holidays: Includes times after 7:00 p.m. and before 8:00 a.m. and any time on Saturdays, Sundays, and all public holidays	2.25¢ per pound
3.	Wheels higher than roof: If any wheel is higher than any part of the roof	1.5¢ per pound
4.	Embankments or Inclines: If it is necessary to work on an embankment or incline	1.5¢ per pound
5.	Back Door Frame Open: If the back doors cannot be closed or the door frame is tom away and the integrity of the trailer is jeopardized.	1.5¢ per pound
6.	Tractor from under Trailer: If the tractor separates from the trailer in the crash	1.5¢ per pound
7.	Major Suspension Damage: If major suspension damage has an impact on the recovery, e.g., axles have been torn from suspension, but does not include if only the front axle is involved.	7.5¢ per pound
8.	Air Bags:	$1,500.00 per hour

9. Sublet Charges: For tractor trailers, dump trucks, backhoes, containers, roll of containers, traffic control devices and personnel and other equipment necessary for the recovery which is not required equipment to qualify as a recovery class or any other wrecker class under this ordinance. Sublet charges shall be reasonable rates based upon the market rate for renting said equipment in the City of Chattanooga.
10. Exposure to Hazardous and/or Flammable Materials: Charges for personnel being exposed to the risks associated with hazardous materials and/or flammable materials, not including the charges for the clean of said materials. This charge shall be a reasonable charge based upon the market rate in this State. The burden shall be upon the wrecker company to establish the market rate.

All Licensed Class C and Recovery Class operators must keep on file at their location, for a period of one (1) year, video documentation of the scene, and the conditions for which all additional charges are being billed pursuant to this article. Video documentation shall consist of videotape, film, photographs, or other media which accurately depicts the scene and conditions as they actually appeared at the time of recovery.

No storage fee shall be charged by any district wrecker class if the vehicle is reclaimed by the owner within the first eight (8) hours.

For every wrecker class, if more than one (1) owner or employee per wrecker is of necessity assigned to assist in the recovery of the disabled vehicle, the normal hourly wage of the additional employee's adjusted fringe benefits can be made as an additional charge.

(Ord. No. 12171, § 1, 10-21-08; Ord. No. 13920, § 1, 1-10-23; Ord. No. 14091, § 3, 3-12-24; Ord. No. 14334, § 1, 3-10-26)

Sec. 35-161. Districts for district wreckers.

(a) The city shall be divided into six (6) districts for the purpose of administering the wrecker districts. An applicant for a district wrecker permit for a particular zone must have an office and storage facilities within that district. The place of business must be within the city limits unless the wrecker operator was licensed as a district wrecker prior to the effective date of Ordinance Number 8415 (January 22, 1985). A district wrecker company shall apply to be listed in no more than one (1) district for each separate place of business. Police calls will be placed only to operators within the district and will be placed from a separate rotating call list for Class A, Class B, Class C and Recovery Class wreckers. Class B wreckers may be listed on both the "A" and "B" class list upon request. Class C wreckers may be listed on both Class "C" and .Class "B" upon request.

(b) The wrecker board shall have the duty and responsibility to recommend to the mayor from time to time that the wrecker districts established hereunder be changed to more efficiently serve the public interest. Prior to making such recommendations, the wrecker board shall receive reports from the wrecker inspector and the staff of the Chattanooga-Hamilton County Regional Planning Commission as to changes they may recommend.

(c) The city shall be divided into six (6) wrecker districts described as follows:

District 1: This area shall cover North Chattanooga, Suck Creek, and a portion of Mountain Creek. It is bounded on the east, south and west by the northern bank of the Tennessee River. It is bounded on the north by Access Road, thence southwestwardly along Hixson Pike to Ashland Terrace, thence westwardly along Ashland Terrace to the Red Bank corporate boundaries, but not

including said streets. It shall also be bounded on the north by the Red Bank corporate boundaries and in the Mountain Creek area by the intersection of Mountain Creek Road and Morrison Springs Road.

District 2: The area bounded on the west by the corporate boundaries; bounded on the north by the Tennessee River to the west line of Market Street, but excluding said street; southwestwardly along the west line of Market Street to its intersection with 1-24; thence along 1-24 and including 1-24 to the Central Avenue exit; thence along the south line of 124, but excluding said interstate to the Chattanooga-East Ridge corporate boundaries; bounded on the east by the Chattanooga-East Ridge boundaries; and bounded on the south by the corporate boundaries.

District 3: The area bounded on the west by the west line of Market Street, and including said street from and including the Market Street Bridge southwardly along Market Street to the 1-24 overpass; and thence bounded on the south by the north right-of-way line of 124 but excluding said interstate to the Central Avenue exit; thence along the south right-of-way line of said interstate and including said interstate to the Crest Road overpass ("Ridgecut"); bounded on the east by the west line of Crest Road and excluding said road to the intersection of Wilcox Boulevard to where said boulevard, if extended, would cross the Tennessee River; thence along the north bank of the Tennessee River to the point of beginning including Veterans Bridge and the Market Street Bridge.

District 4: The area north of Wilcox Boulevard and Shallowford Road, but excluding said streets, and east of the western boundary of the Tennessee River including the C. B. Robinson Bridge and the Wilkes T. Thrasher Bridge and their approaches northeastwardly to the corporate boundaries. The area is bounded on the south by Districts 3 and 5 and on the west by District 1.

District 5: The area of the corporate boundaries south of the above-described District 4 and east of the above-described District 3. It is bounded on the west by Crest Road and includes said road. It is bounded on the north by Wilcox Boulevard and Shallowford Road and includes said streets.

District 6: This area shall .cover Hixson and the northern Mountain Creek area. It shall be bounded on the east by the Tennessee River, on the south by Access Road, thence southwestwardly along Hixson Pike to Ashland Terrace, thence along Ashland Terrace to the Red Bank corporate boundaries including said streets. It shall cover those areas north of the Red Bank corporate boundaries to the corporate boundaries of Chattanooga and it 20 shall include those areas of Mountain Creek north of the intersection of Morrison Springs Road and Mountain Creek Road.

(d) Class C wrecker permittees shall be on a city-wide rotation list for towing large trucks, road tractors and trailers where a Recovery Class wrecker is not required on controlled access highways and ramps in the determination of the Emergency Service Provider in charge at the scene. If requested, they will be placed in district for purposes of responding to smaller disabled vehicles.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-162. Regulations for district wreckers.

A district wrecker permittee shall follow these procedures:

(1) No district wrecker permittee shall operate his business jointly with any other district wrecker permittee. Joint operation shall include common or joint use of any real or personal property as specified more fully in paragraph (19) below, or joint use of any employees as specified more fully in paragraph (20) below.

(2) No permittee shall directly or indirectly operate more than one (1) district wrecker within the same zone. Indirect operation shall include common or joint use of any real or personal property as specified more fully in paragraph (19) below, or joint use of any employees as specified more fully in paragraph (20) below.

(3) No permittees shall be permitted to operate in more than one (1) zone unless each separate location shall separately meet all of the qualifications for a permit.

(4) All permittees are expected to be familiar and comply with the traffic laws of the city and the state, and abide by all provisions of this article.

(5) Permittees will be familiar with and abide by all provisions of this article.

(6) No permittee shall charge unreasonable rates for services rendered.

(7) Permittees shall be available for twenty-four (24) hour service with vehicles in proper operating condition and a qualified operator on duty.

(8) Operators shall carry vehicles to any destination within the city at the owner's or operator's request when charges therefore have been prepaid.

(9) Permittees shall have a telephone number prominently posted for after-hours release of vehicles. The permittees may make an additional charge not to exceed fifty dollars ($50.00) for releasing a vehicle other than during normal business hours, provided that the location is not otherwise open for business. A permittee shall release a vehicle within two (2) hours after a request by the owner or owner's agent.

(10) The police department may direct that a police impoundment be towed to a city lot at no additional charge.

(11) Amber lights are to be used in the immediate vicinity of a wreck and while towing a vehicle.

(12) All operators shall respond to a wreck within a reasonable time after being called, and except for exigent or unusual circumstances a response must be made within thirty (30) minutes after the dispatch request is made to the wrecker operator. If the wrecker is engaged elsewhere or for any reason the wrecker operator cannot reasonably expect to respond within thirty (30) minutes, it shall be the duty of the wrecker operator to so advise the police department and decline to accept the call whereupon the next wrecker operator on rotation shall be called. Any operator failing to respond timely to a rotation call shall be placed at the bottom of the rotation call list.

(13) No licensee shall refer or delegate police calls to other wrecker companies.

(14) No answering service, paging service or similar service or procedure may be used to forward a call to an owner or employee of the wrecker service during normal business hours. The operator may provide for an after-hours number which shall be provided to the wrecker inspector.

(15) The first wrecker operator at the scene shall tow the vehicle causing the greatest hazard as directed by the investigating police officer.

(16) No repairs or other additional services shall be performed except on request of the owner.

(17) An operator may accept a dispatch of more than one (1) wrecker only if qualified wreckers and operators are available within the time limits specified above.

(18) All district wrecker permittees shall file with the Wrecker Inspector a photocopy of a current operator's license for each employee authorized to operate a wrecker or otherwise employed by the company. The photocopy of any new operator's license shall be filed within ten (10) days following employment or renewal of the operator's license. All employees of any permittee shall be subject to a background investigation by the Chattanooga Police Department to determine

whether they have any felony convictions within ten (10) years of the date of the investigation. Any State of Tennessee background check may be acceptable to the City of Chattanooga if it is performed within six (6) months of the issuance of any permit required by this Ordinance.

(19) No district wrecker permittee shall jointly use any real or personal property with any other district wrecker permittees except as provided herein. Real property shall be considered to be jointly used if it is used in any manner for the use or storage of any wrecker, wrecker equipment, or wrecked and disabled vehicles by two (2) or more permittees. Separate recorded parcels of real property shall be deemed to be one (1) parcel of real property for purposes of this Ordinance if (1) the parcels have any common boundaries; (2) the boundaries of the parcels are separated only by a public street, alley, or private driveway; or (3) a common parcel of property as described above was subdivided, sold, leased, rented, or in any manner divided or conveyed on or after the effective date of the Ordinance by the owner of such property to create separate parcels. No district wrecker permittee shall use any wrecker, equipment or other personal property owned by another district wrecker permittee, excluding bona-fide lease or rental contracts for a term of thirty (30) days or more except upon a written lease or rental agreement supported by fair market consideration. A copy of any such lease or rental contract shall be filed with the Wrecker Inspector within thirty (30) days of the vehicle first being used on district wrecker calls. District wrecker permits issued prior to September 1, 1989, may be renewed without regard to the requirement for separate recorded parcels of real property and operated notwithstanding the provisions of paragraphs 1 and 2 of this section.

(20) Each district wrecker operator shall regularly employ at least two (2) primary operators for each location permitted under this Article who shall be employed forty (40) hours per week during normal working hours or a normal work week if the permittee's normal work week for employees is less than forty (40) hours. A photocopy of the primary operator's chauffeur's license or commercial motor vehicle license shall be submitted to the Wrecker Inspector within ten (10) days following their employment and the operator shall keep the Wrecker Inspector advised of any changes in employment of such operators within ten (10) days. The same person cannot be qualified to act as the primary operator for more than district wrecker permittees. Nothing herein shall prevent a primary operator of one (1) permittee to act as a part time operator for another permittee. The owner(s) may qualify as a primary operator(s) providing that he or she regularly operates the wrecker and responds to wrecks or disabled vehicles personally during normal business hours. At the discretion of the editor, the word "charges" was amended to read "changes" due to an inadvertent clerical error contained in Ord. No. 9246, § 6, adopted 9-19-89.

(Ord. No. 12171, § 1, 10-21-08; Ord. No. 12467, § 1, 1-25-11)

Sec. 35-163. Vehicles to be towed to place designated by owner; coercion at scene of an accident prohibited.

The wrecker operator may tow the wrecked or disabled vehicles to the operator's place of business; provided, if the owner or agent of the wrecked or disabled vehicle pays or secures the towing charges, then the wrecker operator or crane operator shall pull the vehicle to any place within the city designated by such owner or agent. It shall be unlawful for the owner of a district wrecker, his agent, employee or representative at the scene of any accident to high-pressure or otherwise to coerce or insist upon any owner of a wrecked or disabled vehicle to sign a work order or agreement at the scene of the accident for any repairs to be made on such wrecked or disabled vehicle.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-164. Wreckers to go to scene of accident on call of police only at owner's or operator's request.

(a) It shall be unlawful for any district wrecker operator, or his agent or representative, to go to any place where an accident has occurred unless called by the Emergency Services Dispatcher or unless requested by the owner or operator of a vehicle involved in the accident in the manner provided within Section 35-169 of this Article. In either situation, the wrecker shall clear with the police dispatcher before going to the accident scene.

(b) It shall be unlawful for the owner of any district wrecker, or his agent or representative to go to the place of a wreck by reason of information received by shortwave or police radio.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-165. Solicitation of towing work by operator, etc., of district wrecker prohibited.

A district wrecker operator shall not proceed to the scene of a disabled motor vehicle without having been requested or notified to do so, as provided in section 35-164 of this Code. Responding to an accident without being called by the Emergency Services Dispatcher or without the prior written request of the owner or operator of a vehicle involved in the accident shall be considered a violation of this article; provided that, the provisions of this section shall not be operable during periods of snow emergencies proclaimed by the mayor or under the provisions of section 24-376 of this Code.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-166. Call and notification procedures for emergency towing and storage.

(a) Whenever any police officer finds a vehicle standing upon any street or highway which constitutes a hazard to the safe movement of traffic along such street, or when the towing of such vehicle is otherwise permitted by this Code or other applicable law, the officer shall:

(1) Notify the Emergency Services dispatcher, who shall call the district wrecker having the class of wrecker necessary;

(2) The district wrecker shall tow the wrecker or disabled motor vehicle in the manner and procedures as provided in this article; and

(3) The district wrecker shall be entitled to recover any unpaid charges for towing and storage in accordance with title 55, chapter 16, Tennessee Code Annotated, "Unclaimed or Abandoned Vehicles."

(b) Call and Notification Procedures:

(1) When a member of the Chattanooga Police Department is dispatched to a crash, motorist assist, or any other request for assistance, the investigating officer, after determining the need shall contact the dispatcher. The emergency services dispatcher will notify the next scheduled tow truck to respond, provided that the affected parties have not already made contact with a towing company of their choice. No tow truck shall remove a crashed vehicle from the scene without it being investigated by a law enforcement agency.

(2) Tow trucks shall be available for immediate response twenty-four (24) hours a day.

A. Tow truck operators must respond in a reasonable length of time, as determined by the requesting officer, or the next scheduled tow truck will be called and the first one (1) will lose its turn. Continual slow responses shall be noted and addressed by the wrecker inspector and brought to the Wrecker Board for review.

B. If a busy signal is received, the next scheduled tow truck will be called and the first one (1) will lose its turn.

C. If the towing company uses an answering service and the call back is not received in a reasonable length of time, as determined by the requesting officer, the next scheduled tow truck will be called and the first one (1) will lose its turn.

D. Towing companies shall respond "Yes" or "No" when asked if they can respond to a call in a reasonable amount of time.

E. Towing companies cannot refer a call to another towing company or substitute another company's tow truck to avoid losing a turn on the district wrecker rotation call.

F. Operators refusing a call, or failing to respond promptly to a call, may be removed/ suspended from the district wrecker rotation call.

G. Towing companies are restricted to a maximum of two (2) telephone numbers on the district wrecker rotation call list. "Call Waiting" and "Call Forwarding" are recommended; pagers and beepers are not allowed.

H. Tow truck operators who fail to answer a call will lose the call. If two (2) calls are missed on the rotation of the list, an investigation will be made by the wrecker inspector and suspension or removal will be considered by the Wrecker Board.

(3) If tow truck operators desire to be off-duty for any length of time, they shall inform the Chattanooga Police dispatcher to avoid removal from the rotation of the list. Upon returning, the tow truck operator will be placed back on the rotating list.

(4) Only one (1) towing company shall be called to anyone (I)-vehicle crash. If additional equipment or recovery vehicles are needed to adequately complete a tow (i.e.: tractor-trailer, rollover or difficult auto recovery), the severity of the situation and the estimated response time of additional equipment will be weighed by the investigating officer at the scene, who will be the deciding authority. If such request is granted, the investigating officer shall note it on the Tow/No Tow Report.

(5) When multiple vehicles are involved and multiple tow trucks are called:

A. The first tow truck arriving at the scene will tow the car causing the greatest traffic hazard, which will be determined by the member of the Tennessee Department of Safety or the investigating officer in charge at the scene.

B. If a requested tow truck arrives first, the tow truck will help remove vehicles causing traffic hazard from roadway, then pick up the requested tow.

C. If a towing service has two (2) tow trucks, two (2) vehicles may be. towed without loss of turn on the rotation, provided both tow trucks can respond simultaneously and both have passed inspection and been certified.

D. In the event of an extreme emergency, the investigating officer may request 'the nearest available certified tow truck. Should this occur, members will make thorough notations for courses of action taken on the Tow/No Tow Report (SF-0156).

(6) When a tractor-trailer combination is involved in a breakdown and requires a tow, the combination can be towed to the first safe haven, towing facility, or repair facility. If the vehicle is towed beyond these points, if shall be separated and the tractor and trailer will be towed independently of each other. Tractor-trailers involved in crashes shall be separated at the crash scene before being towed.

(7) All certified towing companies shall be prohibited from "chasing" or "running" crashes or "break-downs", without a bona fide call from a Chattanooga police dispatcher or request from the owner. Violations of this provision will be subject to suspension or removal from the district wrecker rotation call list. This includes solicitation by those persons who have a right to be there.

(8) Towing companies are expressly prohibited from calling Chattanooga Police dispatch to determine their place on the call list. Wrecker Inspector will address concerns of position or placement on the call list and bring any violations to the attention of the Wrecker Board.

(9) Except as provided in Sections 35-164 and 35-169 of this Chapter, if a towing service is at the scene of a crash when the investigating officer arrives without being called by the Chattanooga Police Department of person(s) involved; the towing service will be sent back by the investigating officer and lose its turn on the district wrecker rotation call.

(10) The towing of abandoned vehicles is a necessary part of the responsibilities of Chattanooga Police officers and Neighborhood Services employees for the City of Chattanooga. After vehicles have remained abandoned for a period of time specified by law, towing companies will be required to remove these vehicles when requested. In order to provide equitable service, the City department requesting vehicles to be towed shall maintain a separate listing for these vehicles. When a towing company is requested to remove one (1) of these vehicles, IT SHALL NOT AFFECT THE TURN ON THE DISTRICT WRECKER ROTATION CALL LIST FOR OTHER CALLS FOR SERVICE. This shall apply provided that, when called, the towing company responds and does not forfeit or decline the call. If more than two (2) calls for removal on the .Abandoned Vehicle Call List are missed, actions will be taken to place the towing company at the bottom of the Call List for other calls for service.

(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-167. Fleet Service Contracts.

(a) Owners or operators of a fleet of vehicles may apply to the wrecker inspector to have their vehicles listed with the police department for the dispatch of a particular wrecker service in lieu of having the district wrecker respond to a wreck for a disabled vehicle. To defray the cost of establishing and maintaining this system, each applicant shall pay a fee of twenty dollars ($20.00) with the original application and an additional twenty dollar ($20.00) fee for each amendment thereafter. Such applications shall be accepted only from owners or operators having a right to directly control the use of the vehicle, and they shall not be accepted from auto repair facilities or leasing companies other than for vehicles directly used in such businesses.

(b) If an owner or operator of a fleet of vehicles has a request on file to notify a particular wrecker service, and the police officer on the scene is so notified, he shall radio the dispatcher who shall notify the requested wrecker company, if the wrecker company meets the qualifications and response time set forth in this Ordinance to tow the type of vehicle to be towed, and to do so would not interfere with the public's health, safety or welfare. However, if the officer or dispatcher is notified of a particular wrecker service after a district wrecker has been dispatched, then the request for the particular wrecker service shall be denied, notwithstanding the fact that an application has been filed and the twenty-dollar ($20.00) fee paid.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-168. Severability.

If any provision of this article is determined to be unenforceable or invalid, such determination will not affect the validity of the other provisions contained in this article. Failure to enforce any provision of this article does not affect the rights of the parties to enforce such provision in another circumstance, nor does it affect the rights of the parties to enforce any other provision of this article at any time.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-169. Owner's request.

(a) Any business within the City of Chattanooga who desires to authorize one (1) wrecker company to do all towing for that business within the City of Chattanooga shall sign a notarized document which shall be filed with the Wrecker Board, Chattanooga Police Department and 911 Board, authorizing such business arrangement.

(b) Any individual or company requesting a specific wrecker or towing operator to tow their vehicle within A Class or B Class shall sign a document which shall be provided by the investigating officer at the scene.

(c) It shall be a violation of this Ordinance for any individual to recommend a wrecker service. A listing of all licensed wrecker or towing operators shall be made available by the investigating officer for the District of the location of the vehicle collision.

(d) Whenever an investigating officer of the Chattanooga Police Department or the Tennessee Highway Patrol arrives at the scene of any vehicle collision, the responding agency will utilize its respective rotation lists depending on the first unit to arrive at the scene.

(e) Owner's requests for C Class or Recovery Class wreckers shall be submitted in writing to the Chattanooga Police Department and 911 Board with the name of owner and wrecker requested. No tow truck shall be allowed to remove vehicles from any controlled access highway or ramp unless such tow truck is dispatched by the Emergency Communications Provider or unless a written request for owner's request service is on file with the Chattanooga Police Department and 911 Board. No changes in owner's request shall be made unless a written request is filed with the Chattanooga Police Department and 911 Board for at least two (2) business days before the request is made.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-170. Penalties for violation of the wrecker board ordinance.

(a) Any violation of this Ordinance may be brought to the Wrecker Board by the Wrecker Inspector. For the first violation of this Ordinance by a wrecker or towing operator, the District Wrecker shall be subject to a thirty (30) day suspension from the call rotation list on all classes held by the District Wrecker.

(b) For the second violation of this Ordinance by a wrecker or towing operator, the District Wrecker shall be subject to a suspension of six (6) months from the call rotation list on all Classes held by the District Wrecker on all classes held by the District Wrecker. .

(c) For the third infraction of this Ordinance by a wrecker or towing operator, the District Wrecker shall be subject to a three (3) year suspension from the call rotation list on all classes held by the District Wrecker.

(d) Any District Wrecker determined to be in violation of this Ordinance shall not be penalized by earlier violations which are more than three (3) years old at the time of a violation. The Wrecker Board shall not consider any violations which are more than three (3) years old in the application of any call rotation list suspension.
(Ord. No. 12171, § 1, 10-21-08)

Sec. 35-171. Non-consent towing from private property.

(a) It is unlawful for any person, or the person's agent, to move or cause to be moved, any motor vehicle located on private property, from the property, if the owner of the motor vehicle has acquired any interest in the private property by virtue of a lease or any contract, without the express consent of the owner of the motor vehicle; or upon request by the owner or tenant of the property on which the vehicle is located; or unless the person so moving the motor vehicle has acquired an interest in the vehicle by operation of law, a security interest agreement, or is acting pursuant to an order of a court of competent jurisdiction, including a municipal court.

(b) A tow or wrecker operator shall notify the Chattanooga Police Department of any non-consent tow of a motor vehicle from a private property. The Notice required by this subsection shall be sent electronically or telephonically within one (1) hour of making the non-consent tow of a motor vehicle from a private property. A tow or wrecker operator shall send written confirmation of the non-consent tow of a motor vehicle from a private property within two (2) days if the motor vehicle is not claimed by the owner

of record or the owner of record's representative. The written notice required by this subsection shall be waived if the tow or wrecker operator provided timely electronic or telephone notice to the Chattanooga Police Department and the owner or owner's representative has reclaimed the motor vehicle.

(c) Prior to towing a vehicle from private property without the vehicle owner's consent, the wrecker or towing operator must have express written authorization for towing of that vehicle from the owner of the private property or the owner's designated agent. When an individual is designated by a private property owner to act as an agent to authorize towing from the property, such designation must be in writing and signed by the private property owner. There shall be some relationship between the private property owner and the designated agent, and there may be no personal or business relationship between the designated agent and the wrecker or towing operator. No employee of a wrecker or towing operator or designee of a wrecker or towing operator may patrol or otherwise participate in the decision making processes about which vehicles are to be towed, including but not limited to, the placing any sticker, signal or any other form of designation on any vehicle to be towed. Contracts or written agreements between a wrecker or towing operator and private property owners for non-consent towing must be retained by the wrecker or towing operator, and must include the property owner's signature and the signature(s) of any agent(s) designated by the private property owner. The wrecker or towing operator must make these documents available for inspection by the Chattanooga Police Department at any time. Maximum allowable rates for non-consent towing from private property will be as specified in subsections (d) and (e) of this Section.

(d) Any person {all licensees} who engage in the business of towing vehicles from public or private property shall post a notice on each vehicle, in letters not less than two (2) inches high and appearing in a legible manner on the boom or rear of the wrecker as follows:

FEE TO DROP VEHICLE BEFORE DEPARTING:

Two Axle	$75.00
Three or More Axles	$150.00

If the owner or operator of the vehicle is present and removes the vehicle to be towed from the premises before it is connected to the towing vehicle, the owner or operator shall not be charged any fee. If the owner or operator of the vehicle is present after the towing vehicle has been connected to the vehicle to be towed, the vehicle shall not be towed, but the owner or operator of the vehicle shall be liable for a reasonable fee not to exceed Seventy-five Dollars ($75.00) for two (2) axle vehicles and One Hundred Fifty Dollars ($150.00) for three (3) or more axle vehicles in lieu of towing, provided the owner or operator of the vehicle forthwith removes the vehicle from the premises. A vehicle shall be deemed connected if every procedure required to secure the vehicle to the wrecker or wrecker equipment so that the vehicle may be safely towed has been completed at the time the owner or operator arrives, including the attachment of any safety chains.

(e) Rate Schedule for Non-consent Towing from Private Property. Any wrecker or towing operator engaged in the business of non-consent towing shall not charge the owner of any towed vehicle or personal property in excess of the following rates:

Towing:

(1) Two (2) axle vehicles under seven thousand (7,000) pounds GVWR. . .One hundred twenty-five dollars ($125.00), excluding storage fees.

(2) Vehicles over seven thousand (7,000) pounds GVWR:

Length of 26 feet and under	$250.00 (daytime tow); $285.00 (Night/Weekend/Holiday)
Length of 26 feet and over	$425.00 (daytime tow); $500.00 (Night/Weekend/Holiday)

(3) The maximum fee for storage of a vehicle removed from private property (without the owner's consent) shall be twenty dollars ($20.00) per day. No storage fee shall be charged for a vehicle stored for twenty-four (24) hours or less.

(4) In addition to the rates authorized above, tow and wrecker companies are authorized to charge a one (1) time processing fee of Fifteen Dollars ($15.00) for any vehicle remaining in storage on the company lot for more than ten (10) days to offset direct costs for notification to the owner or lienholder as required by state law.

(5) Any vehicle towed under this section shall be released within two (2) hours after a request by the owner or owner's agent. No fee may be charged to comply with this subsection.

(f) The towing fees set forth in this Section shall be all inclusive; no additional fees may be charged, for using dollies, trailers, lifts, slim jims or any other equipment or service, or for mileage.

(g) The towing of any vehicle without the consent of the owner must be reported to the Chattanooga Police Department within one (1) hour of the completion of the towing of the vehicle. The towing operator or wrecker service shall advise the Chattanooga Police Department at that time of the non-consent tow of the location from which the vehicle was towed, vehicle identification number (VIN), license number, make, model and color of the vehicle.

(h) Tows from private property shall conform with the requirements of this Section along with federal and state laws, including T.C.A. § 55-16-112 and T.C.A. § 66-28-518.

(i) It shall be unlawful for a property owner or a property owners' agent, tenant, lessee, occupant or person in possession of premises to authorize a tow for the removal of a vehicle from private property unless the premises are clearly marked with identifiable signage that states unauthorized parking of vehicles on the premises shall result in a vehicle being removed or towed without the vehicle owners' consent for a fee. The signage shall be conspicuously posted and shall also include information as to the location where the vehicle can be recovered, the telephone number for recovery of the vehicle, the cost of said recovery, and information as to the form of payment; provided, however, that the owner of residential private property containing not more than four (4) residential units shall not be required to comply with the posting requirements of this subsection.

(j) Rate notification for Non-consent Towing from Private Property.

(1) Every tow or wrecker operator who makes non-consent tows shall be issued a rate card by the Wrecker Inspector setting forth the maximum authorized rates and charges for non-consent tows permitted by the City of Chattanooga. Such card shall be displayed in such a place as to be in full view of anyone wishing to inspect same.

(2) Every tow or wrecker operator shall use billheads with the name, address, and place of business of the wrecker company printed thereon. The operator of a wrecker towing away a vehicle shall prepare a bill on this billhead form in triplicate; the original copy of which shall be given to the owner of the vehicle or his authorized representative; one (1) copy shall be sent to the Wrecker Inspector on or before the 15th of the month; and the last copy must be retained by the owner of the wrecker company for no less than twenty-four (24) months. This bill shall contain the following information:

a. The name and address of person engaging the wrecker.

b. The state license plate number or the VIN (Vehicle Identification Number) of the towed vehicle.

c. The rate charged in accordance to Section 35-171(e)(1) and (2) and, if applicable, the storage rate per day in accordance to Section 35-171(e)(3) and the processing fee in accordance to Section 35-171(e)(4).

d. The place to where vehicle was towed.

e. The following language:

"The City of Chattanooga Wrecker Inspector may be contacted by calling the City of Chattanooga Police Department at (423) 643-5000."

(Ord. No. 12393, § 1, 5-11-10; Ord. No. 12467, §§ 2—4, 1-25-11; Ord. No. 12941, §§ 1—5, 5-5-15)

Secs. 35-172—35-180. Reserved.

(Ord. No. 12171, § 1, 10-21-08; Ord. No. 12393, § 1, 5-11-10)

ARTICLE V. AMBULANCES*

Sec. 35-181. Authority to provide service; scope.

The mayor is authorized to do all things necessary to provide emergency ambulance service to the citizens of this city, including but not limited to making of contracts, leases and agreements, purchasing and replacing of equipment, and the hiring and training of personnel, all subject to the approval of the mayor.

(Code 1986, § 35-181; Ord. No. 9654, § 127, 1-6-92)

Sec. 35-182. Fees; method of determination; availability.

(a) There is hereby imposed a charge of one hundred dollars ($100.00) for emergency ambulance service by the city to be collected per transport or trip, as hereinafter provided, without regard to the number of persons transported in each trip. Each person transported per trip shall be charged a pro rata share of the fee for such trip; provided that, the emergency ambulance service authorized under this article shall also be available to the indigent citizens of this city.

(b) In addition to the charge imposed under paragraph (a) of this section, there is hereby imposed the following charges for the respective services:

(1) Administration of oxygen, ten dollars ($10.00);

(2) Cardiac monitoring, twenty-five dollars ($25.00);

(3) Intravenous therapy, fifteen dollars ($15.00), plus ten dollars ($10.00) for each additional medication;

(4) Defibrillation, ten dollars ($10.00);

(5) Administration of medical anti-shock trousers, ten dollars ($10.00);

(6) Administering disposable bag mask, twenty-five dollars ($25.00);

(7) Administering endotracheal tubes, five dollars ($5.00);

***Charter reference—**Authority to impose a fee or charge reasonably necessary to the exercise of city powers, § 2.1(2).

Cross reference—Operation of authorized emergency vehicles, § 24-11 et seq.

State law reference—Authority to provide ambulance service as a public service, T.C.A. § 7-61-102.

(8) Administering contamination kit, ten dollars ($10.00);

(9) Administering disposable laryngoscope, five dollars ($5.00);

(10) Administering cervical collars, ten dollars ($10.00);

(11) Administering PtL Airway, twenty-five dollars ($25.00).

(c) If an ambulance is called, but for any reason the response does not result in the transportation of a patient, the basic ambulance response fee for that trip shall be seventy-five dollars ($75.00) instead of the one hundred dollars ($100.00) provided for under paragraph (a) of this section.
(Code 1986, § 35-182; Ord. No. 9205, § 1, 8-1-89)

Sec. 35-183. Authority of mayor to negotiate contracts.

The mayor may negotiate and enter contracts to effect the collection of charges for the emergency ambulance service hereby authorized, such contracts to include procedures, fees to be allowed to the contracting party, and such standards of indigency as may be deemed necessary to effectuate the provisions of section 35-182 of this article.
(Code 1986, § 35-183; Ord. No. 9654, §§ 127, 128, 1-6-92)

Sec. 35-184. Permission required for ambulances to respond to emergency calls.

It shall be unlawful for any person to drive, operate or have driven or operated any ambulance on the streets of the city on any emergency call where the patient was or is to be picked up within the city without having called police headquarters and secured permission to make such emergency call. The sergeant or other person on duty at headquarters shall authorize the first ambulance operator who calls reporting an emergency call to respond to such call, and shall inform all persons who report such call subsequently that it is already being answered.
(Code 1986, § 35-184)

Sec. 35-185. Reports by drivers.

All ambulance drivers shall immediately report to the chief of police all cases of shooting, cutting or other injuries which may constitute a murder or an attempt to murder, which they may be called upon to handle either at the place of the injury or the residence of the injured, giving in such report the number of the residence and the names of the injured persons. It shall also be the duty of all ambulance drivers to report to the chief of police all patients injured in automobile accidents to whom they may be called for professional services.
(Code 1986, § 35-185)

Cross reference—Physicians to report injuries constituting a murder or attempt to murder, § 16-50.

ARTICLE VI. HORSE-DRAWN CARRIAGES

DIVISION 1. IN GENERAL

Sec. 35-186. Definitions.

"Carriage" means any four-wheeled device in, upon or by which any person may be transported and is designed to be drawn by one (1) or more horses.

"Carriage permit" means a permit issued by the Passenger Vehicle For Hire Board for an animal-drawn carriage to transport persons.

"Certificate of public convenience and necessity" (also written as CPCN) as it relates to this article, means a license granted, upon application and approval, by the Passenger Vehicle For Hire Board for the sole purpose of authorizing the certificate holder to provide transportation through an animal-drawn carriage or vehicle and may hold one (1) or more permits as defined under this section.

"Custodian" means a person who has the immediate possession, bailment, custody, use, or control of a horse. For the purposes of this act, the term "custodian" includes a driver.

"Driver" means a person licensed to drive, steer, transport, or operate a carriage or horse used in the horse-drawn carriage trade.

"Driver permit" means a permit issued by the Passenger Vehicle For Hire Board to drive and operate a horse-drawn carriage.

"For hire horse-drawn carriage" means any vehicle pulled by a horse, mule or other equine regularly engaged in the business of carrying passengers for fee, donation, gratuity or gratis.

"Horse" means any animal of the genus equus which is of a type used for the purpose of driving, pulling, or hauling a carriage. Ponies and Thoroughbreds are not allowed.

"Licensed veterinarian" means a person licensed to practice veterinary medicine and who specializes in equine or large animal medicine.

"Passenger Vehicle For Hire Inspector" means the inspector(s) appointed in Section 35-20 of this chapter.

"Passenger Vehicle For Hire Board" means the board established in Section 35-17 of this chapter.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-187. Jurisdiction.

The Passenger Vehicle For Hire Board shall have exclusive jurisdiction of the licensing and regulation of horse-drawn carriages. The Passenger Vehicle For Hire Board has the authority, power and duty to enforce the provisions of this Article, provided that nothing in this Section shall be construed to prohibit any court, including the Municipal Court of the City of Chattanooga, from imposing penalties provided by this Code for any violation of this Article.

The actions of the Passenger Vehicle For Hire Board shall be final, subject to such judicial appeal as may be allowed by law.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

DIVISION 2. CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

Sec. 35-188. Required and term.

No horse-drawn carriage shall be used or operated on a for hire basis by any person in the City of Chattanooga without an owner or operator having first obtained a certificate of public convenience and necessity. Each certificate shall be valid for one (1) year and shall be subject to renewal pursuant to the provisions set forth in this article.
(Ord. No. 11378, § 1, 2-11-03)

Sec. 35-189. Application and fees.

(a) Upon application and the payment of a fee of one hundred dollars ($100.00), a person may be issued an annual CPCN certificate to operate a horse-drawn carriage business subject to the approval of the Passenger Vehicle For Hire Board.

(b) All applications for a CPCN certificate shall set forth:

(1) Name, home address, telephone number, date of birth, and social security number of the applicant(s);

(2) Business name (D/B/A), business address and telephone number if different from above;

(3) A list of current drivers employed by the business, with each driver's permit number indicated;

(4) The form of business of the applicant, i.e. corporation, partnership, sole proprietor. If the business is a corporation or any other form of association, a copy of the documents establishing the business and the name, address, and citizenship of each person with a direct interest in the business;

(5) A description of any past business experience of the applicant, particularly in providing horse-drawn carriage services. Identification and description of any revocation or suspension of operating authority imposed by any government against any license or permit held by the applicant before the date of filing the application and any litigation related to the operation of the business and accidents involving injury to persons or animals;

(6) The number and description of carriages the applicant proposes to use in the operation of the service, including any identifying characteristics such as color, style and other markings;

(7) The number of horses the applicant proposes to use in the operation of the service along with a description and four (4) separate and unobstructed color photographs of each animal (front, each side and rear), and a statement (not more than thirty (30) days old) by a veterinarian certified by the state of Tennessee documenting that the horse has been examined and is approved as serviceable for its use in a carriage rental business and that there has been formulated and implemented a health maintenance plan for each horse. The Passenger Vehicle For Hire Board may by rule require any necessary forms to implement this part;

(8) A description of the proposed service, including routes, rates or fares to be charged, and schedules, where applicable;

(9) The financial ability and responsibility of the applicant as reflected by a financial statement, insurance coverage to be provided, and other pertinent facts which may be required by the Passenger Vehicle For Hire Board. The Passenger Vehicle For Hire Board may by rule designate a specific financial statement to be submitted;

(10) Whether the applicant has been convicted of a felony within five (5) years prior to the date of application or for any offense related to cruelty or neglect of animals.

(11) Any additional information, including business references, strategic plans and similar information, as the applicant desires to include to aid in the determination of whether the requested operating authority should be granted;

(12) Any additional information as the Passenger Vehicle For Hire Board considers necessary to assist or promote the implementation or enforcement of this chapter or the protection of the public safety.

(c) Upon the filing of an application for a certificate of public convenience and necessity and/or a request for additional permits, the Passenger Vehicle For Hire Board shall fix a time and place for a public hearing thereon, as detailed in Section 35-48 of this chapter. Any material misrepresentation in the application shall be a basis for denial of a certificate of public convenience and necessity. If the applicant or any owner of the business having a ten percent (10%) or greater financial interest in the business has been convicted of a felony within five (5) years, the certificate shall be denied.

(d) The Passenger Vehicle For Hire Board shall issue such certificate valid for one (1) year if it finds that the applicant meets all requirements of this article.

(e) If the Passenger Vehicle For Hire Board finds that a certificate should be issued to an applicant, the applicant will be issued a permit for each carriage to be operated.

(f) The action of the Passenger Vehicle For Hire Board in issuing or denying such a certificate shall be final, except as it may be subject to review at law.

(g) An applicant who has been denied a certificate or license by the Passenger Vehicle For Hire Board shall not be allowed to make another application for six (6) months from the date of the denial.

(h) The owner, operator, or custodian of a horse engaged in a horse-drawn carriage service shall have such valid certificate available for immediate inspection by the Passenger Vehicle For Hire Inspector, a police officer, or an Animal Services officer at all times when a horse is on any street or public byway.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-190. Insurance required.

(a) Before any certificate shall be issued by the Passenger Vehicle For Hire Board, or before the renewal of such certificate shall be granted, the applicant shall be required to file an insurance policy and/or certificate of insurance with the Passenger Vehicle For Hire Board evidencing insurance coverage as required in this section.

(b) Insurance coverage as provided in subsection (a) of this section means a policy of public liability insurance issued by an insurance company qualified to do business in the state and naming the City of Chattanooga as an additional insured, with the minimum amount of insurance to be one million dollars ($1,000,000.00) per carriage, known as combined single limit insurance coverage. Such policy shall expressly provide that it may not be canceled, except after thirty (30) days written notice to the Passenger Vehicle For Hire Board.

Any changes in insurance coverage must be reported to the Passenger Vehicle For Hire Board immediately.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-191. Certificates, generally.

(a) A certificate must state on its face that it is for the exclusive purpose of operating a for-hire horse-drawn carriage service within the City of Chattanooga. It may also contain other conditions and limitations deemed necessary by the commission, including, but not limited to:

(1) Number and description of vehicles authorized;

(2) Number and description of horses to be used;

(3) Number of passengers that may be safely transported in each vehicle, based on the size of the vehicle and the type of horse pulling the vehicle;

(4) Places for loading or unloading passengers;

(5) Hours of operation and/or schedules and routes to be followed;

(6) Operating procedures;

(7) The use of special safety equipment;

(8) The use of special sanitary devices and special care procedures;

(9) Special conditions or limitations.

(b) A certificate holder commits an offense if he or she fails to comply with the conditions or limitations placed on the operating authority under which he or she is operating the horse-drawn carriage.

(c) If a certificate holder changes address or telephone number of the service, the certificate holder shall immediately notify the commission director. Failure to do so may result in disciplinary action.

(d) If a carriage that has received a valid certificate under this Article is sold, destroyed, or otherwise taken out of use by the certificate holder, the certificate holder shall have the right to substitute within thirty (30) days after sale, destruction or elimination of the carriage, another carriage of the same or similar type and construction and receive a new carriage identification certificate if the permittee complies with all other requirements of this article, subject to inspection.

Change of ownership of a carriage that has been issued a certificate, will cause such certificate to automatically be revoked and the certificate shall be destroyed or returned to the Passenger Vehicle For Hire Board.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-192. Disciplinary action.

(a) The Passenger Vehicle For Hire Board may place on probation, suspend or revoke a certificate holder if it is determined that the certificate holder, or any driver operating on behalf of the certificate holder, has:

(1) Made a false statement in the application;

(2) Failed to comply with provisions of this chapter;

(3) Operated a service not authorized by the certificate;

(4) Failed to comply with the conditions and limitations of the certificate;

(5) Been convicted of a violation of local, state, or federal law, that indicates a lack of fitness of the permittee to perform a passenger transportation service;

(6) Been convicted of any felony offense while holding the permit;

(7) Engaged in conduct detrimental to the public safety; or

(8) Been convicted of any offense involving driving while intoxicated.

(b) Any certificate holder or applicant convicted of a violation of this chapter or any other local, state or federal law concerning the treatment of animals shall be denied a certificate under this chapter, or such conviction shall form the basis for the suspension or revocation of any certificate granted under this chapter.

(c) A permit or certificate may not be revoked or suspended unless the owner or driver has received notice and had an opportunity to present evidence in his or her behalf. The action of the Passenger Vehicle For Hire Board in suspending a license or permit shall be final, subject to a review at law.

(d) After receipt of notice of suspension, revocation, or denial of certificate renewal, the certificate holder shall, on the date specified in the notice, discontinue driving or operating a horse-drawn carriage for hire inside the City of Chattanooga and shall surrender the written certificate to the Passenger Vehicle For Hire Board.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-193. Records and reports.

(a) Each certificate holder shall maintain at a single location business records of its horse-drawn carriage business. The records must contain the following information:

(1) An identification of the carriage used for each trip;

(2) The number of trips made by each carriage on a daily basis;

(3) An identification of the horse used for each trip and notation of the periods of work and rest for each horse; and

(4) Any other information the Passenger Vehicle For Hire Board determines necessary for monitoring the activities, operations, service, and safety record of the permittee.

(b) A certificate holder shall make its records available for inspection by the Passenger Vehicle For Hire Board, Passenger Vehicle For Hire Inspector, Animal Services officer or designated officials.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-194. Temporary permits.

(a) Special occasion permits must be obtained by carriage owners, who are not already certificate holders, for such events as weddings, parades, etc. Such a permit shall be applied for in advance of the event by submitting a written application to the Passenger Vehicle For Hire Inspector, accompanied by a twenty-five dollars ($25.00) fee. There shall be a limitation of three (3) temporary permits per year per owner.

(b) Carriages authorized by a temporary permit under this section:

(1) May not be used for more than three (3) days, and such permit expires sixty (60) days after it is issued;

(2) Must comply with the vehicle requirements of this chapter;

(3) Must comply with the insurance requirements of this chapter;

(4) Must comply with the requirements for horse care and treatment in this chapter; and

(5) Are subject to inspection by the Passenger Vehicle For Hire Inspector, who may (at any time) order unsafe vehicles or abused/tired/unfit horses to be removed from service.

(c) Any horse-drawn vehicle used in a parade, or like event, must have at least two (2) outwalkers or outriders accompanying it throughout such event.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-195. Rates of fare.

(a) Each certificate holder shall be required to file with the Passenger Vehicle For Hire Board a list of their basic rates thirty (30) days prior to any change. The rate charged by each carriage shall be posted conspicuously within the carriage.

(b) Passengers shall be informed of the rate prior to embarking.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

DIVISION 3. HORSE-DRAWN CARRIAGE DRIVERS

Sec. 35-196. Permit required.

(a) No person shall drive or otherwise operate a carriage engaged in the for-hire horse-drawn carriage service unless he or she has a driver's permit. To qualify for a permit, an applicant must comply with all of the requirements and stipulations of this chapter and any rules and regulations adopted by the Passenger Vehicle For Hire Board.

(b) A person commits an offense if he or she operates a horse-drawn carriage for-hire in the City of Chattanooga without a driver's permit issued by the Passenger Vehicle For Hire Board.

(c) A business commits an offense if it employs or otherwise allows a person to operate a horse-drawn carriage owned, controlled, or operated by the permittee unless the person has a driver's permit issued by the Passenger Vehicle For Hire Board.

(d) Each permit shall be valid for one (1) year and shall be subject to renewal pursuant to the provisions set forth in this article.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-197. Permit qualifications.

(a) An application for a horse-drawn carriage driver permit and payment of a fee of thirty dollars ($30.00) shall be filed with the Passenger Vehicle For Hire Board and shall contain the following information:

(1) The name, residential address, telephone number and date of birth of the applicant. No applicant under eighteen years of age will be approved for a permit;

(2) The names, addresses, telephone numbers, and signatures of four (4) persons, at least one (1) of whom is a resident of the state of Tennessee, who have known the applicant for a period of at least one (1) year and who will provide information regarding the applicant as specified by the Passenger Vehicle For Hire Board;

(3) The applicant's experience in the transportation of passengers;

(4) The applicant's educational background;

(5) The applicant's recent employment history;

(6) The applicant's residential address for the last five (5) years;

(7) Proof of a valid Tennessee driver's license;

(8) State whether he/she has been convicted of a felony in the last five (5) years or ever been convicted of any offense related to cruelty or neglect of animals;

(9) An official driver record issued by the Tennessee Department of Safety, no more than thirty (30) days previous to the date of application;

(10) A statement from company owner stating that individual is adequately trained to operate a carriage of such description, pulled by one (1)/two (2)/four (4) horses, in an urban setting. This training shall include a) a minimum of twenty-four (24) hours of observation riding with an experienced driver (three (3) years minimum experience) and b) an additional sixty-four (64) hours of driver training while accompanied by an experienced driver;

(11) A statement from a licensed physician that certifies that he or she is in good physical condition and is free of defective vision not corrected by eyeglasses or contact lenses, epilepsy, vertigo, or other medical disabilities which may substantially impair his or her ability to operate a horse-drawn carriage or to control a horse; and

(12) Any other information mandated by the Passenger Vehicle For Hire Board by a rule.

(b) The Passenger Vehicle For Hire Board may designate by rule the requirements of a horsemanship course to be completed by applicants.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-198. Ineligibility for driver's permit.

(a) The applicant shall be ineligible to receive a permit if:

(1) The applicant has been convicted, pled guilty, or pled nolo contendre in the last ten (10) years for any of the following offenses involving bodily injury or death or in the last five (5) years for any of the following offenses not involving injury or death:

A. Hit and run,

B. Driving under the influence of an alcoholic beverage or drug,

C. Reckless or careless driving.

(2) No more than four (4) moving violations within the last three (3) years and no more than two (2) moving violations in the last year will be allowed;

(3) The applicant has been convicted, pled guilty, placed on diversion, probation or parole, or pled nolo contendere of any felonies within a period of ten (10) years prior to the date of application.

(4) The applicant has been found by the Passenger Vehicle For Hire Board or the Municipal Court of the City of Chattanooga to be in violation of two (2) or more sections of the Chattanooga City Code or other ordinances governing the operation of vehicles for hire during a period of two (2) years prior to the date of application.

(5) The applicant has been convicted of any local, state or federal law related to cruelty to or neglect of animals.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-199. Investigation of applicant.

The police department shall conduct an investigation of each applicant for a horse-drawn carriage driver's permit. A report of such investigation and a copy of the traffic and police record of the applicant, if any, shall be attached to the application for the consideration of the Passenger Vehicle For Hire Board.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-200. Permit to be posted.

(a) Upon approval of an application for a horse-drawn carriage driver's permit, the Passenger Vehicle For Hire Board shall issue a permit to the applicant, which shall bear the name, address, age, weight and other information deemed appropriate.

(b) Every driver shall at all times conspicuously display a permit either on the clothing of the driver's upper body (including a neck tag) or upon the carriage.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-201. Denial, suspension, revocation and appeal.

(a) The Passenger Vehicle For Hire Board may deny any applicant's license if it determines that the applicant fails to comply with any requirement of this chapter.

(b) The Passenger Vehicle For Hire Board is hereby given authority to suspend or revoke any horse-drawn carriage driver's permit issued under this article for a driver's failure or refusal to comply with the provisions of this article.

(c) The Passenger Vehicle For Hire Board may not suspend or revoke any permit unless the driver has received notice of the charges against him or her and has had the opportunity to present evidence on his or her behalf. The action of the Passenger Vehicle For Hire Board in suspending a license or permit shall be final, subject to a review at law.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-202. Conduct of drivers.

(a) A driver shall at all times:

(1) Act in a reasonable, prudent, and courteous manner;

(2) Maintain a sanitary and well-groomed appearance;

(3) Not permit a person other than another employee or the owner of the horse-drawn carriage service to operate the carriage under the driver's control;

(4) Not permit a person on the back of a carriage horse when the horse is under the driver's control;

(5) Not leave a horse untethered or unattended except when confined to a stable or other enclosure;

(6) Not permit a horse to drop excrement from its diaper;

(7) Keep all carriage stands clean and free of animal excrement;

(8) Not permit the seating capacity rated for his or her carriage to be exceeded;

(9) Travel only those routes designated for horse-drawn carriage travel, including special occasion travel routes as approved by the traffic and parking commission;

(10) Not operate a carriage while under the influence of intoxicating beverages or drugs;

(11) Not permit a passenger to stand or ride on any part of the carriage other than the designated seating area while the carriages is in motion and to advise the passengers that they must be seated except when loading or unloading;

(12) Not drink, eat, smoke or talk on a cellular phone (except in emergencies) while carrying passengers or while carriage is in motion;

(13) Maintain both hands on the reigns and be seated at all times the carriage is in motion and while loading and unloading passengers;

(14) Not permit the speed at which any horse-drawn carriage is driven to exceed a trot;

(15) No person shall unbridle a horse while horse is connected to a carriage; and

(16) Be responsible for the proper and humane care and treatment of each horse under their direct care and supervision.

(b) No person shall drive or operate a horse-drawn carriage on any day or at any time that the Chief of the Chattanooga Police Department makes a specific determination that the horse-drawn carriage trade would be inconsistent with other special events or public safety requirements.
(Ord. No. 11378, § 1, 2-11-03)

DIVISION 4. HORSES, CARRIAGES AND EQUIPMENT

Sec. 35-203. Requirements for horses in service.

(a) To protect the health and safety of the animal and the public, upon a finding that an animal is sick, injured, lame, malnourished, or in any other condition that renders it unfit for drawing a carriage, the Passenger Vehicle For Hire Inspector, an Animal Services officer or a police officer may issue an order that a horse is deemed unfit for work and order it removed from the vehicle and the city streets. To reinstate a horse removed from service, the horse must be examined by a licensed veterinarian and written approval from such veterinarian must be submitted to the Passenger Vehicle For Hire Inspector.

"Geriatric Horse" means a horse that has reached the age of twenty years (20 years)

(b) Before any horse may be used in a horse-drawn carriage business, the certificate holder must furnish the Passenger Vehicle For Hire Board with:

(1) A state certificate of veterinarian inspection identifying the horse by description and with front, rear, right and left photographs and showing that the horse has been examined at least once within the preceding six (6) months by a licensed veterinarian;

(2) Each horse must be examined at least once a year by a licensed veterinarian. The examination shall encompass that which is consistent with maintaining the health and well-being of the animal. Such examinations should include, but not be limited to, leg and hoof exams, dental exams, eyes, internal parasites, lab reports, and cardiovascular health;

(3) Proof that the horse has had tetanus, rabies, Influenza, Rhinopneumonitis, and Eastern-Western encephalitis vaccinations;

(4) A negative Coggins test result; and

(5) The maximum weight or sized carriage that can humanely be pulled by the horse.

(c) A permittee with a horse used in a horse-drawn carriage must adhere to the following regulations and conditions:

(1) Be appropriately shod and trimmed, and shall utilize rubber-coated pad or boots or open steel barium tip shoes, or other shoes approved by a veterinarian;

(2) Inspected and maintained by a farrier at least every thirty (30) days. Records must be kept by the owner of the dates and the name of the farrier who shod the animal and are subject to inspection.

If a horse loses a shoe while working, an "easy" type boot may be used to finish the scheduled workday. After completion of that scheduled workday using an "easy" type boot, the horse shall not be permitted to work until reshod and inspected by a farrier.

(3) Not have any open or bleeding wound, oozing sore, cut below skin level, or bleeding wound;

(4) Not have evidence of lameness;

(5) Have all harnesses properly fitted and in good repair with no deficiencies that create a safety hazard;

(6) Be properly cleaned with no offensive odors or caked dirt or mud;

(7) Wear a special sanitary device for containing animal excrement;

(8) Flies and other insects must be controlled through general sanitation and other necessary means;

(9) Cannot pull a weight greater than that certified by the licensed veterinarian;

(10) Must have a Henneke Body Condition Scale rating of 4-7 ranging from four (moderately thin) to seven (fleshy) and must not exhibit signs of exhaustion;

(11) All harnesses, bridles and bits and any other equipment shall be properly fitted and kept in good repair. Blankets, bridles and bits shall not be used on another horse unless it is first disinfected. Harnesses and bridles shall be kept well oiled and cleaned and in good repair;

(12) Animals requiring veterinary care shall not be moved, ridden or driven, except for the purpose of humane keeping, pasturing or obtaining medical care;

(13) "Free choice" salt shall be available to all horses in the stabling and/or assembly/transfer sites;

(14) (Carriages shall not be pulled by stallions, pregnant mares over one hundred eighty days (180 days) of gestation, or mares that are within one hundred eighty (180) days after foaling.

(15) Mules or other equine used to pull carriages must meet the same requirements as described for horses;

(16) Provisions shall be made to catch or immediately pick up any manure deposited by the carriage horses away from the stable or assembly/ transfer sites. The manure shall be returned to the stable or transfer sites for appropriate disposal;

(17) Horses shall wear properly attached and fitted blinders while pulling carriages;

(18) Owner and handlers shall take immediate measures to prevent shivering of horses;

(19) Owners shall not allow a horse to be worked on a public highway, path or street during adverse weather or other conditions that are a threat to the health or safety of the horse and public. Streets that require the crossing of metal construction plates on the roadway should be avoided; and

(20) No horses shall be permitted to pull a carriage with a loose shoe.

(21) Horses must be no less than four (4) years of age.

(22) A trailer shall be used to transport a horse to a job location that is more than three (3) miles from the location where the horse is stabled;

(23) After each tour that is conducted by the owner or handler, they shall be required to take the body temperature of the horse. If the body temperature of the horse meets or exceeds one hundred and three degrees (103°) Fahrenheit, the horse shall be removed from duty until the horse's body temperature is lowered to one hundred one and a half degrees (101.5°) Fahrenheit or less. If after two hours the horse's body temperature has not been lowered to one hundred one and a half degrees (101.5°) Fahrenheit or less, then the owner or handler shall take the horse to an emergency veterinarian or have an emergency veterinarian arrive on site to render emergency care.

(d) Before a horse may be used to pull a carriage in the City of Chattanooga, the carriage owner must submit a signed statement to the Passenger Vehicle For Hire Board that such horse has been driven with a carriage on urban streets 1) by an experienced carriage driver for a minimum of eighty (80) hours over a two (2) month period without passengers and 2) by an experienced carriage driver for a minimum of sixty (60) hours over a four (4) month period with passengers.

(e) Upon reaching the age of twenty (20) years, horses shall be deemed to be geriatric. No horse shall be permitted to operate as a carriage horse upon reaching the age of twenty-five (25) years, which shall be the forced retirement age of a carriage horse:

(1) Geriatric horses shall be required to undergo examinations by a licensed veterinarian pursuant to Section 35-203(b)(2) every six (6) months instead of annually;

(2) Geriatric horses shall be retired and shall not be permitted to work at pulling carriages upon receiving any diagnosis from a licensed veterinarian that indicates the geriatric horse has a chronic condition that affects and negatively impacts the cardiac system, respiratory system, or the musculoskeletal system;

(3) The ambient temperature maximum limit found in Sec. 35-204(f) shall be lowered from ninety-five degrees (95°) Fahrenheit to a maximum of ninety degrees (90°) Fahrenheit for geriatric horses. The ambient temperature or wind chill factor, whichever is lower, minimum limit found in Sec. 35-204(f) shall be raised from a minimum of twenty degrees (20°) Fahrenheit to a minimum of thirty degrees (30°) Fahrenheit for geriatric horses;

(4) Geriatric horses shall not be permitted to pull a carriage at a speed faster than a walk; and

(5) Geriatric horses shall be identified as such by placing a silver stripe with tape, paint, or other similar method of marking on both sides of the horse's bridle that is at least two (2") inches thick in diameter.

(f) Pregnant mares under one hundred eighty days (180) days of gestation that are permitted to work shall be subject to the same restrictions for geriatric horses found within Section 35-203(e). Pregnant mares shall also be required to undergo an ultrasound from a licensed veterinarian between forty to fifty days (40-50 days) of gestation to confirm the pregnancy.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15; Ord. No. 14309, §§ 1—7, 1-6-26)

Sec. 35-204. Animal working conditions.

(a) No animal shall be worked under any of the following conditions, and any owner allowed to let the conditions exist will be found in violation of this article:

(1) The animal is pulling more people or weight than the limit certified by the licensed veterinarian;

(2) The animal pulling a carriage is moved at a speed faster than a trot;

(3) The animal is worked with equipment causing an impairment of vision other than normal blinders;

(4) The animal is subject to any condition or treatment that will impair the good health and physical condition of the animal;

(5) Water must be available before and after each shift. In addition, water shall be offered while working, when appropriate and will not be injurious to the horse;

(6) Make sure horses are given proper amounts of water before and after working, and have additional water available if needed;

(7) Horses shall not be worked for commercial purposes in extreme temperatures or in adverse weather. When the weather is determined to be adverse, all horses must immediately cease working, be offered shade or shelter when available, be rested and cooled off, and then walked to their stable. All horses so ordered to return to their stable must be unbridled and remain at the stable for at least one (1) hour and until the temperature returns to the appropriate levels;

(8) Be provided with daily food and water, free from contamination. Such food shall be wholesome, palatable, and of sufficient quantity and nutritive value to meet the normal daily requirements for the condition and size of the animal;

(9) Shall not be overridden or driven to overheating or exhaustion and shall be provided with adequate exercise when not working.

(10) Horses shall be housed in an area that is adequate, healthy and humane in size, ventilation and sanitation.

(b) No animal shall work more than seven (7) hours a day. For purposes of this section, an animal is deemed working whenever it is attached to a horse-drawn vehicle.

(c) No animal shall work more than five (5) consecutive days without a rest period of at least one (1) day.

(d) Animal shall be rested for at least fifteen (15) minutes after every two (2) hours of work.

(e) No animal can be "nerved" or subjected to any procedure intended to permanently or temporarily block the animals ability to perceive pain.

(f) No animal shall be worked when the outdoor temperature at the horse's location exceeds ninety-five degrees (95°) Fahrenheit, or when the combined sum of temperature and humidity exceeds one hundred fifty-five (155), or when the temperature or wind chill factor is below twenty degrees (20°) Fahrenheit.

(g) No animal shall be worked during periods of ice, snow, heavy rain, or other slippery conditions. (Ord. No. 11378, § 1, 2-11-03)

Sec. 35-205. Carriage and equipment.

(a) An owner, operator, or custodian of a horse engaged in the horse-drawn carriage shall ensure and certify that the equipment used in the operation of the horse-drawn carriage meets the following standards of this section:

(1) Provide that the carriage used is in good operating condition, the axles are well-greased, and that all operating mechanisms are in good working order;

(2) Provide that the carriage is equipped with hydraulic brakes or band brakes in good working condition;

(3) Provide that the saddle, harness, shoes, bridle, and any other equipment for the horse fits properly, is in good working condition, and shall not cause injury or pain to the horse;

(4) Not use twisted wire, spurs, bucking straps, flank straps, or similar devices. All bits and other equipment must be humane which are not injurious to the horse;

(5) Daily inspect all horses and all equipment at the time of departure from and return to the stable; and

(6) Provide that all horses are equipped with a diaper that is constructed of a sturdy material and is properly fitted to the horse to ensure comfort.

(b) A carriage used in the horse-drawn carriage service shall:

(1) Have a valid permit conspicuously displayed on the carriage at all times;

(2) Be equipped with a slow-moving vehicle emblem attached to the rear of the carriage;

(3) Be maintained in a safe and sanitary condition;

(4) Not drive or transport more than the intended capacity of the carriage;

(5) Display the name and telephone number of the horse-drawn carriage with letters not to exceed three (3) inches or less than one (1) inch in height on the carriage exterior. These signs must be displayed at all times that the carriage is operating for business unless the carriage is being used for a special event, such as a wedding or funeral;

(6) Must be equipped with a chemical to be poured over horse urine by drivers each time a horse urinates, so as to break down and eliminate accumulated agents and odors. Such chemical is to be approved by the City's stormwater department;

(7) Sufficient reflective material must be placed along the shafts of the carriage, or other parts thereof, which normally parallel the body, head or legs of the horse pulling such carriage;

(8) Be equipped with lights which comply with applicable state law;

(9) A fully charged backup battery must be readily available and a carriage cannot operate without proper lights; and

(10) A first aid kit; and

(11) A thermometer and hygrometer for reading temperature and humidity.

(c) If, upon any inspection, a carriage is found to be unsafe, unclean or unsightly, Passenger Vehicle For Hire Inspector or a police officer may direct that the carriage be taken out of service until such condition is corrected.

(d) The Passenger Vehicle For Hire Board may, by rule, establish additional inspection requirements for a carriage and other equipment used in the horse-drawn carriage service.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-206. Enforcement by police department.

Officers of the police department and Animal Services shall assist in the enforcement of this chapter. A police officer or Animal Services officer observing a violation of this chapter, or the regulations established by the Passenger Vehicle For Hire Board, shall take necessary action to insure effective regulation of horse-drawn carriage.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-207. Accidents.

(a) The driver of a horse carriage shall report any accident involving such carriage to the police department. The company shall notify the Passenger Vehicle For Hire Inspector of such accident by 9:00 a.m. on the next business day.

(b) No horse or carriage involved in an accident where structural damage to the carriage or injury to the horse has occurred shall be operated again until the carriage has been inspected by the Passenger Vehicle For Hire Inspector or a police officer and the horse has been certified for service in writing by a veterinarian. The company shall present such certification to the Passenger Vehicle For Hire Inspector.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-208. Miscellaneous.

(a) A person commits an offense by harassing or startling, or attempting to harass or startle, any horse while the horse is pulling a carriage or at rest or otherwise treats a horse inhumanely while it is working in a horse-drawn carriage.

(b) No animal shall be made to perform by means of any prod, stick, electrical shock, physical force, or by causing pain or discomfort. Any whip or riding crop must be used so as not to cause injury to the animal whether in or out of service. Light taps are the only acceptable usage.

(c) The certificate holder shall notify the Passenger Vehicle For Hire Board of any carriage horse that dies within twenty-four (24) hours, or if on the weekend or a legal holiday, during the next business day. The Passenger Vehicle For Hire Board, Passenger Vehicle For Hire Inspector, or the Animal Services

Director may request that a board certified veterinary pathologist shall perform a necropsy at the expense of the certificate holder. A record of the death and/or necropsy finding shall be filed with the Passenger Vehicle For Hire Board.

(d) The Passenger Vehicle For Hire Board is hereby authorized and empowered to and shall establish taxicab passenger loading zones or stands upon the streets of the City in such places as, in its discretion, it deems proper. The Passenger Vehicle For Hire Board is further authorized to eliminate any taxicab passenger loading zones or stands now in use, or later established. The written approval of the abutting property owners of such places shall be required before the creation of such passenger loading zones or stands. The traffic engineer shall make an investigation of the traffic conditions at such places and shall thereafter file written recommendations with the Passenger Vehicle For Hire Board. The Passenger Vehicle For Hire Board shall abide by these recommendations.
(Ord. No. 11378, § 1, 2-11-03; Ord. No. 12092, § 2, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-209. Non-transferability.

A certificate of public convenience and necessity, horse-drawn carriage permit, carriage driver's license, or an identification card is assigned to one (1) person, applicant, carriage or horse, and is not transferable.
(Ord. No. 11378, § 1, 2-11-03)

Sec. 35-210. Exception.

Any person who has submitted application for a driver's permit under this article and is driving a for-hire horse drawn carriage at the time of passage of this ordinance, shall have six (6) months from the passage of this ordinance to conform with the training requirements listed in Sec. 35-197 (a) (10) above.
(Ord. No. 11378, § 1, 2-11-03)

Secs. 35-211—35-239. Reserved.
(Ord. No. 11378, § 1, 2-11-03)

ARTICLE VII. PEDAL CARRIAGES AND RICKSHAWS

DIVISION 1. IN GENERAL

Sec. 35-240. Purpose.

It is the purpose of this Article to regulate and control pedal carriages and rickshaws businesses to protect consumers and to ensure the safety of the public, including passengers and drivers operating pedal carriages and rickshaws. It is also the purpose of this Article to minimize the effect of pedal carriages and rickshaws on traffic and congestion by establishing a maximum number of pedal carriages and rickshaws that can be authorized to operate in the City of Chattanooga (the "City"). It is the purpose of this Article to require the inspection of pedal carriages and rickshaws to ensure that pedal carriages and rickshaws are safely operated on the streets of the City, and to provide a process for their removal if they have not been inspected or operated as required.
(Ord. No. 12979, § 1, 11-18-08)

State law reference—T.C.A. § 55-26-102.

Sec. 35-241. Definitions.

Whenever used in this Article:

Family member shall mean a member of the immediate family, including, but not limited to, a spouse, domestic partner, sibling, child, grandchild, parent or grandparent.

Own, owns or *owned* shall mean possession with good legal title, or possession under a lease, reserve title contract, conditional sales agreement or vendor's agreement or similar agreement.

Pedal carriage (also known as "quadricycle"), means a non-motorized bicycle with four (4) or more wheels operated by one (1) or more persons for the purpose of, or capable of, transporting additional passengers in seats or on a platform made a part of or otherwise attached to the pedal carriage. "Pedal carriage" does not include a bicycle with trainer or beginner wheels affixed thereto, nor shall it include a wheelchair or other vehicle with the purpose of operation by or for the transportation of a disabled person, nor does it include a tricycle built for a child or an adult with a seat for only one (l) operator and no passenger. *Rickshaw* (also known as "pedal carriage or pedicab"), means a non-motorized bicycle with three (3) wheels operated by one (1) person for the purpose of, or capable of, transporting additional passengers in seats or on a platform made a part of or otherwise attached to the rickshaw. "Rickshaw" does not include a bicycle built for two (2) where the operators are seated one (1) behind the other, nor shall it include the operation of a bicycle with trainer or beginner wheels affixed thereto, nor does it include a wheelchair or other vehicle with the purpose of operation by or for the transportation of a disabled person. A pedal carriage may include an electric motor to assist the pedal carriage during emergencies or when necessary to propel uphill having a maximum speed of ten (10) miles per hour when occupied by the driver only, and any pedal carriage so equipped shall comply with the motor vehicle registration laws of the State of Tennessee.

Pedal carriage or pedicab business shall mean a pedal carriage or pedicab owner who operates or authorizes the operation of one (1) or more pedal carriages or pedal carriage or pedicabs in the city of Chattanooga.

Pedal carriage or pedicab permit shall mean a permit issued by the City to engage in or operate a pedal carriage or pedicab business as defined in this Article.

Pedal carriage or pedicab driver shall mean any natural person who propels and operates a pedal carriage or pedicab in the City.

Pedal carriage or pedicab permit shall mean a license issued by the Passenger Vehicle For Hire Board to a pedal carriage or pedicab driver to operate a pedal carriage or pedicab.

Pedal carriage or pedicab owner or *owner* shall mean any person who owns one (1) or more pedal carriage or pedicabs in the City.

Public park shall mean areas that are open to the public for recreational purposes.

Passenger Vehicle For Hire Board means the board established in Section 35-17 of this chapter.

Passenger Vehicle For Hire Inspector means the inspector(s) appointed in Section 35-20 of this chapter. (Ord. No. 12979, § 1, 11-18-08; Ord. No. 12891, § 1, 1-6-15; Ord. No. 13375, § 1, 10-9-18)

Sec. 35-242. Jurisdiction.

(a) The Passenger Vehicle For Hire Board shall have exclusive jurisdiction of the licensing and regulation of pedal carriage or pedicabs. The Passenger Vehicle For Hire Board has the authority, power and duty to enforce the provisions of this Article, provided that nothing in this section shall be construed to prohibit any court, including the Municipal Court of the City, from imposing penalties provided by this Code for any violation of this Article.

(b) The actions of the Passenger Vehicle For Hire Board shall be final, subject to such judicial appeal as may be allowed by law.
(Ord. No. 12979, § 1, 11-18-08; Ord. No. 12891, § 1, 1-6-15)

DIVISION 2. PEDAL CARRIAGE OR PEDICAB BUSINESS PERMIT

Sec. 35-243. Pedal carriage or pedicab business license permit—Fee.

(a) It shall be unlawful for a pedal carriage or pedicab owner to operate a pedal carriage pedicab business unless such pedal carriage or pedicab owner shall have first obtained a pedal carriage or pedicab permit from the City. A pedal carriage or pedicab permit shall be valid for a term of one (1) year and shall be subject to renewal pursuant to the provisions set forth in this article.

(b) Any new applicant for pedal carriage or pedicab permit under this article shall be charged an application and investigation fee of One Hundred Dollars ($100.00) to cover the expense of investigating the applicant, the place of business, and the pedal carriage or pedicabs. There shall be an annual fee for a pedal carriage or pedicab permit in the amount of Fifty Dollars ($50.00) for each pedal carriage or pedicab permit holder, plus Ten Dollars ($10.00) per pedal carriage or pedal carriage or pedicab.

(c) The application for a pedal carriage or pedicab permit application shall be verified under oath and shall furnish the following information:

(1) A list of all pedal carriage or pedicabs owned, leased or controlled by such pedal carriage or pedicab owner for which such owner seeks registration. Each such pedal carriage or pedicab shall be uniquely identified.

(2) Proof that there is in force for the full license term a policy of public liability and property damage insurance that meets the requirements of Section 35-245 of this Chapter for each pedal carriage or pedicab listed.

(3) The applicant must list all parties having a ten percent (10%) or greater financial interest in the business on the initial application.

(4) Such other information as the Passenger Vehicle For Hire Board may require to establish the pedal carriage or pedicab owner's eligibility for a pedal carriage or pedicab business license under this Article.

(d) The Passenger Vehicle For Hire Inspector shall investigate or cause to be investigated each applicant for a pedal carriage or pedicab permit under this article to determine whether or not the applicant has the necessary equipment and facilities to qualify as a pedal carriage or pedicab business, and, if the applicant is qualified. The Passenger Vehicle For Hire Inspector shall report his findings to the Passenger Vehicle For Hire Board and make a recommendation regarding the issuance of a pedal carriage or pedicab permit. The Passenger Vehicle For Hire Board shall direct or make such further investigation as it deems proper to grant or refuse a permit.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-244. Cap on pedal carriage or pedicabs.

(a) Six (6) pedal carriage or pedicabs shall be the cap placed upon the issuance of permits for the first year, which thereafter may be changed by the Passenger Vehicle For Hire Board pending a need assessment analysis developed by the planning office, and traffic study developed by the traffic engineer.

(b) The Passenger Vehicle For Hire Board may prescribe by rule the process by which the number of pedal carriage or pedicabs that each pedal carriage or pedicab business can register is determined, consistent with the caps specified in subsections (a) and (b) of this section, including but not limited to, the

procedures for the initial application and issuance of pedal carriage or pedicab business licenses. Such selection process may consider whether the applicant has, prior to the enactment of this article, owned or operated a pedal carriage or pedicab and give priority to applicants who can provide proof of such previous ownership or operation of a pedal carriage or pedicab.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-245. Issuance of pedal carriage or pedicab operating permit.

(a) A pedal carriage or pedicab permit shall be issued only to a person who meets all the requirements of this article and any rules promulgated by the Passenger Vehicle For Hire Board to effectuate the purposes of this article.

(b) A pedal carriage or pedicab permit shall be valid only for the person in whose name it is issued.

(c) The Passenger Vehicle For Hire Board may refuse to issue to a pedal carriage or pedicab owner a pedal carriage or pedicab permit or to renew a pedal carriage or pedicab permit to a pedal carriage or pedicab owner based upon a determination that such applicant has engaged in conduct that would constitute a basis for the suspension or revocation of the permit.

(d) A pedal carriage or pedicab permit shall not be transferred or sold. The Passenger Vehicle For Hire Board shall promulgate rules as to whether, and the extent to which, a pedal carriage or pedicab permit remains valid after any change in the beneficial ownership of a pedal carriage or pedicab business, including, without limitation, any such change resulting from a direct or indirect, voluntary or involuntary, sale or transfer of a beneficial ownership interest.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12149, § 7, 8-5-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-246. Insurance required; financial responsibility.

(a) Before any pedal carriage or pedicab permit shall be issued by the Passenger Vehicle For Hire Board or before the renewal of such certificate shall be granted, the applicant shall be required to file an insurance policy and/or certificate of insurance with the Passenger Vehicle For Hire Board evidencing insurance coverage as required in this section.

(b) Insurance coverage as provided in subsection (a) of this section mean a policy of public liability insurance issued by an insurance company qualified to do business in the state and naming the City of Chattanooga as an additional insured, with the minimum amount of insurance to be one million dollars ($1,000,000.00) per pedal carriage, known as combined single limit insurance coverage. Such policy shall expressly provide that it may not be canceled, except after thirty (30) days written notice to the Passenger Vehicle For Hire Board. The pedal carriage or pedicab business shall notify the Passenger Vehicle For Hire Board of any modification, amendment, cancellation or substitution of any insurance policy required under this section within fourteen (14) days of the date of the notice to the pedal carriage or pedicab business of such modification, amendment, cancellation or substitution. If the policy of insurance required by this section lapses for any reason the permit issued shall become void for such pedal carriage or pedicab business.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-247. Required equipment of pedal carriage or pedicabs.

(a) Each pedal carriage or pedicab operated in the City shall be equipped with the following features:

(1) Three (3) or more wheels;

(2) A unibody frame for the entire vehicle;

(3) seating for no more than fifteen (15) passengers;

(4) Hydraulic or mechanical disc or drum brakes, which are unaffected by rain or wet conditions;

(5) A secondary or emergency brake system;

(6) Battery-operated headlights capable of projecting a beam of light for a distance of three hundred (300) feet;

(7) Battery-operated taillights which are visible from five hundred (500) feet;

(8) Turn lights;

(9) An audible signaling device;

(10) Reflectors on the spokes of the wheels of the pedal carriage or pedicab;

(11) A timer, of a type approved by the Taxi Inspector, affixed within clear view of passengers, if the rate charged is based on period of use;

(12) A sign attached to the interior of the pedal carriage or pedicab within view of passengers indicating the name and telephone number of the pedal carriage or pedicab business, the pedal carriage or pedicab's registration number and a telephone number that can be used to direct consumer complaints about such pedal carriage or pedicab to the department;

(13) Each pedal carriage or pedicab must be equipped with a regulation size reflective slow moving triangle; and

(14) A sign conspicuously posted on the exterior of the pedal carriage or pedicab indicating the amount to be charged for the use of the pedal carriage or pedicab or the basis for calculating such amount.

(b) The maximum width of a pedal carriage or pedicab shall be fifty-five (55) inches and the maximum length of a pedal carriage or pedicab shall be ten (10) feet, except as authorized by the Passenger Vehicle For Hire Board;

(c) It shall be unlawful for a pedal carriage or pedicab business to operate or authorize the operation of, or for a pedal carriage or pedicab driver to operate, a pedal carriage or pedicab that does not comply with the requirements of this section.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12149, § 8, 8-5-08; Ord. No. 12765, § 1, 9-17-13; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-248. Pedal carriage or pedicab registration plate.

(a) It shall be unlawful for a pedal carriage or pedicab business to operate or authorize the operation of, or for a pedal carriage or pedicab driver to operate, a pedal carriage or pedicab unless:

(1) The pedal carriage or pedicab has been inspected by the Passenger Vehicle For Hire Inspector's Office;

(2) The pedal carriage or pedicab has been issued a registration plate that indicates on such plate, or by a replaceable registration tag or decal, the expiration date of the current registration; and

(3) Such registration is in effect.

(b) The registration shall be valid for a period no longer than one (1) year and the expiration date of such registration plate or replaceable registration tag or decal shall be a date specified by the Passenger Vehicle For Hire Board by rule.

(c) Such registration plate shall be securely affixed by the department to a conspicuous and indispensable part of each pedal carriage or pedicab.

(d) The registration plate and the replaceable registration tag or decal shall be of such material, form, design and dimension and set forth such distinguishing number or other identification marks as the Passenger Vehicle For Hire Board shall prescribe.

(e) A pedal carriage or pedicab business shall pay an additional ten dollars ($10.00) as the re-inspection fee for any pedal carriage or pedicab that is determined upon inspection not to meet the requirements of this section and such business re-applies for a registration plate or replaceable registration tag or decal. (Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-249. Records.

Every pedal carriage or pedicab business shall maintain such records related to the ownership and operation of its pedal carriage or pedicabs as the Passenger Vehicle For Hire Board may prescribe by rule. Such records shall be made available for inspection by the Passenger Vehicle For Hire Board at his or her request at either the offices of the pedal carriage or pedicab business or at the offices of the department. (Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-250. Pedal carriage or pedicab driver license.

(a) It shall be unlawful for a pedal carriage or pedicab driver to operate a pedal carriage or pedicab unless the pedal carriage or pedicab driver shall have first obtained a pedal carriage or pedicab driver license from the Chattanooga Police Department Regulatory Bureau Passenger Vehicle For Hire Inspector's office.

(b) It shall be unlawful for a pedal carriage or pedicab business to permit the operation of any pedal carriage or pedicabs owned by it by a person who does not have a pedal carriage or pedicab driver license and a motor vehicle driver's license in full force and effect.

(c) In order to obtain or renew a pedal carriage or pedicab driver license, a pedal carriage or pedicab driver shall file an application with the Chattanooga Police Department Regulatory Bureau Passenger Vehicle For Hire Inspector's office for such pedal carriage or pedicab driver license. Such application shall be made upon such form as prescribed by the Passenger Vehicle For Hire Board and Inspector and shall contain such information as the Passenger Vehicle For Hire Board or Inspector may require to establish the applicant's eligibility for a pedal carriage or pedicab driver license under this article. An application for a pedal carriage or pedicab driver permit and payment of a fee of Ten Dollars ($10.00) shall be filed with the Passenger Vehicle For Hire Board and shall state or contain the following information:

(1) The applicant is at least eighteen (18) years of age;

(2) The applicant possesses a currently valid motor vehicle driver's license;

(3) The applicant does not have his or her State of Tennessee motor vehicle driver's license suspended or revoked; and

(4) Provide a statement from a licensed medical physician that certifies that he or she is in good physical condition or other medical disabilities which may substantially impair his or her ability to operate a pedal carriage or pedicab.

(d) The Passenger Vehicle For Hire Board may refuse to allow a pedal carriage or pedicab driver license or to renew such a license based upon a determination that such pedal carriage or pedicab driver has engaged in conduct which would constitute a basis for the suspension or revocation of a pedal carriage or pedicab driver license.

(e) The Passenger Vehicle For Hire Inspector shall conduct an investigation of each applicant for a pedal carriage or pedicab driver's license. A report of such investigation and a copy of the traffic and police record of the applicant, if any, shall be attached to the application for consideration of the Passenger Vehicle For Hire Board.

(f) A pedal carriage or pedicab driver license shall be valid for a term of one (1) year. There shall be an annual renewal fee due in the amount of Ten Dollars ($10.00).

(g) Upon approval of an application or renewal for a driver's permit, the Passenger Vehicle For Hire Inspector may issue a driver's permit for a period not to exceed (60) days.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12149, §§ 9, 10, 8-5-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-251. Display of pedal carriage or pedicab driver's identification.

(a) The Passenger Vehicle For Hire Board shall provide a photo identification card to each pedal carriage or pedicab driver who has obtained a pedal carriage or pedicab driver's license. Such photo identification card shall include the license number of such pedal carriage or pedicab driver license and the motor vehicle driver's license number of such pedal carriage or pedicab driver, as well as the issuing state of such motor vehicle driver's license.

(b) The pedal carriage or pedicab driver shall wear such photo identification card or place such photo on the pedal carriage or pedicab so that it is visible to passengers and enforcement officers when such pedal carriage or pedicab is operating a pedal carriage or pedicab.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12149, § 11, 8-5-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-252. Restrictions on the operation of pedal carriage or pedicabs.

(a) A pedal carriage or pedicab driver shall be subject to all provisions of state and local law governing the operation of a bicycle, which include, but are not limited to, provisions of the vehicle and traffic law, the Chattanooga City Code, and rules of the City promulgated by the Chattanooga Police Department Regulatory Bureau Passenger Vehicle For Hire Inspector's office or the department of parks and recreation.

(b) A pedal carriage or pedicab driver shall not:

(1) Operate a pedal carriage or pedicab to transport more than fifteen (15) passengers.

(2) Operate a pedal carriage or pedicab in motion while a passenger is standing in such pedal carriage or pedicab.

(3) Operate a pedal carriage or pedicab on any bridge or in any tunnel or in any bicycle lane.

(4) Permit a pedal carriage or pedicab to be operated simultaneously by anyone in addition to him or herself.

(5) Operate a pedal carriage or pedicab that is designed or constructed to permit propulsion by more than one (1) individual at any one (1) time, except as authorized by the Passenger Vehicle For Hire Board.

(6) Operate a pedal carriage or pedicab while such pedal carriage or pedicab driver's ability to operate such pedal carriage or pedicab is impaired by the consumption of alcohol, the use of any drug or by any other means or while such pedal carriage or pedicab driver is in an intoxicated condition. A pedal carriage or pedicab driver operating a pedal carriage or pedicab which has been involved in an accident or has been operated in violation of this section shall be deemed to have given consent to a breath test and shall, at the request of a police officer, submit to a breath test to be

administered by the police officer. Failure to submit to such breath test shall serve as the basis for an immediate suspension of the pedal carriage or pedicab driver's license, subject to a prompt post-suspension hearing.

(7) Operate a pedal carriage or pedicab without a currently valid motor vehicle driver's license or while such pedal carriage or pedicab driver's State of Tennessee motor vehicle driver's license is suspended or revoked.

(c) Pedal carriage or pedicabs can be operated within any public park or any property under the charge or control of the Department of Parks and Recreation pursuant to the rules of the Department of Parks and Recreation and in accordance with the rules of the Chattanooga Police Department Regulatory Bureau Passenger Vehicle For Hire Inspector's office.

(d) A pedal carriage or pedicab business shall submit to the Passenger Vehicle For Hire Inspector, upon such form prescribed by the Passenger Vehicle For Hire Inspector, a written report of every accident relating to a pedal carriage or pedicab by such pedal carriage or pedicab business within twenty-four (24) hours after the occurrence of such accident. Such form shall be signed by a principal or officer of such pedal carriage or pedicab business as well as by the pedal carriage or pedicab driver involved in such accident with an affirmation of the truth of the contents of the form.

(e) If there are exigent circumstances and a police officer or other authorized officer or employee of any City agency directs a pedal carriage or pedicab driver to move his or her pedal carriage or pedicab from any street, avenue or other location, such pedal carriage or pedicab driver shall not operate his or her pedal carriage or pedicab at such street, avenue or location for the duration of such exigent circumstances. For the purposes of this subsection, exigent circumstances shall include, but not be limited to, unusually heavy pedestrian or vehicular traffic, existence of any obstructions in the public space, an accident, fire or other emergency, a parade, demonstration or other such event at or near such location.

(f) If there are exceptional circumstances, the Passenger Vehicle For Hire Inspector, in consultation with law enforcement official or firefighters', Traffic Engineer's Office or other appropriate officials, shall be authorized, upon notice, to restrict or prohibit any pedal carriage or pedicab driver from operating his or her pedal carriage or pedicab on any street, avenue or other location for a specified period of time. Such specified period of time shall not exceed fourteen (14) days. For the purposes of this section, exceptional circumstances shall include, but not be limited to, unusually heavy pedestrian or vehicular traffic, existence of any obstructions in the public space, a parade, or other such event or occurrence at or near such location.

(g) Every affected community board may, at any time subsequent to enactment of this local law, conduct public hearings hereon and submit written recommendations to the department of consumer affairs, the department of transportation, the police department and the council. Such recommendations may include, but not be limited to, methods to address any impact this law may have on such community with respect to pedestrian and vehicle traffic flow.

(h) No alcoholic beverages except beer as defined at T.C.A. § 57-5-101(b), and amendments thereto, shall be consumed by a pedal carriage passenger nor may alcoholic beverages except beer as defined at T.C.A. § 57-5-101(b), and amendments thereto, be transported on a pedal carriage. Beer as defined at T.C.A. § 57-5-101(b), and amendments thereto, lawfully purchased for consumption may be consumed by a pedal carriage passenger under the following conditions:

(1) No glassware of any kind shall be allowed on a pedal carriage or pedicab including but not limited to bottles, receptacles or drinking glasses.

(2) Alcoholic beverages as defined in this Section may only be consumed from plastic or foam cups.

(3) No music or amplified sound shall be played, nor yelling or conversation be conducted, in such a manner that the sound of which carries to points of habitation or adjacent properties and is audible above the level of conversational speech at a distance of fifty feet (50') or more from the point of origin of the sound.

(4) It is the responsibility of the pedal carriage or pedicab driver to properly dispose of all trash.

(5) Alcoholic beverages as defined in this Section may be consumed only when the pedal carriage passenger is in or on a pedicab.

(6) The pedal carriage operator and driver may not allow consumption of alcoholic beverages by persons under the age of twenty-one (21). If alcoholic beverages as defined in this subsection are present on a pedal carriage, the pedal carriage operator shall not transport persons under the age of twenty-one (21) on the pedal carriage.

(7) If alcoholic beverages as defined in this subsection are allowed to be consumed on a pedal carriage, the pedal carriage operator shall apply for a permit to allow such consumption from the Chattanooga Police Department Regulatory Bureau. The application fee for such permit is twenty-five dollars ($25.00) and the operator of a pedal carriage company shall pay an additional twenty-five dollars ($25.00) for each pedal carriage on which alcohol is being consumed. The driver or operator of pedal carriage shall be in possession of the permit referenced in this subsection at all times alcohol is being consumed on the pedal carriage. Additionally, the registration number issued by the Chattanooga Police Regulatory Bureau shall be conspicuously displayed on the rear of the pedal carriage. If a pedal carriage operator fails to operate a permitted pedal carriage for more than one hundred eighty (180) days, the permit shall expire.

(8) If a permit is granted to the pedal carriage operator, the following notice shall be in full display on the pedal carriage:

(a) When alcohol is present on this pedal carriage, no persons under the age of twenty-one (21) shall be allowed on the pedal carriage;

(b) Each passenger is asked to drink responsibly; and

(c) No passenger is able to take any opened alcoholic beverage container with them when they exit the pedal carriage;

(9) A pedal carriage or pedicab driver shall not operate a pedal carriage or pedicab while under the influence of alcoholic beverages nor shall the driver consume alcoholic beverages while operating the pedal carriage.

(10) Any violations of this Section may be enforced as contemplated by City Code §§ 35-254 and 35-256 which may result in revocation or suspension of the operator's certificate of public convenience and necessity.

(11) Pedal carriages that are subject to this Section shall only be able to operate in the Central Business District as defined by the Chattanooga-Hamilton Regional Planning Agency.

(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12149, § 12, 8-5-08; Ord. No. 12765, § 2, 9-17-13; Ord. No. 12826, § 2, 4-15-14; Ord. No. 12891, § 1, 1-6-15; Ord. No. 13006, § 1, 12-8-15; Ord. No. 13127, § 5, 12-13-16)

Sec. 35-253. Rates of pedal carriage or pedicabs.

(a) The basis for calculating the amount of the charge for the use of a pedal carriage or pedicab shall be displayed on the pedal carriage or pedicab at all times.

(b) It shall be unlawful for a pedal carriage or pedicab driver to charge a passenger more than the amount or rate displayed on the pedal carriage or pedicab. The Passenger Vehicle For Hire Board shall have authority to set the maximum rates for pedal carriages or pedicabs if a pedal carriage or pedicab charges passengers more than the amount or rate displayed on the pedal carriage or pedicab.

(c) The pedal carriage or pedicab driver shall provide passengers with a receipt listing the amount of the charge for the use of the pedal carriage or pedicab, the license number of the pedal carriage or pedicab business and a telephone number of such business to which complaints by consumers shall be directed, the pedal carriage or pedicab driver's license number and the telephone number at the department where complaints by consumers can be reported.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-254. Denial of license of renewal, suspension and revocation.

(a) In addition to any of the powers that may be exercised by the Passenger Vehicle For Hire Board pursuant to this section or any section of this article, after due notice and an opportunity to be heard, may suspend or revoke a pedal carriage or pedicab business license upon the occurrence of any one (1) or more of the following conditions:

(1) The occurrence of fraud, misrepresentation, or false statements contained in the application for such license;

(2) The operation of a pedal carriage or pedicab, owned by the pedal carriage or pedicab business, by a pedal carriage or pedicab driver who does not have in full force and effect a pedal carriage or pedicab driver license and a motor vehicle driver's license;

(3) The operation of a pedal carriage or pedicab, owned by the pedal carriage or pedicab business, that has not been inspected or that does not have affixed to it a registration plate or replaceable registration tag or decal as required; or

(4) Violation by a pedal carriage or pedicab business of any of the provisions of this article, rules promulgated pursuant to this article, or any other law applicable to the operation of a pedal carriage or pedicab business.

(5) The operation of a pedal carriage or pedicab that has not been inspected or that does not have affixed to it a registration plate or replaceable registration tag or decal as required by this chapter; or

(6) The violation by a pedal carriage or pedicab driver of any of the provisions of chapter.

(7) Any pedal carriage or pedicab business that has been found, or pedal carriage or pedicab driver who has been found, to have committed at least three (3) violations of this article within any twelve (12) month period shall have its, his or her license or operational permit suspended by the Taxi Board for a period of not less than three (3) months.

(8) A pedal carriage or pedicab business that, or pedal carriage or pedicab driver who, has had its, his or her license revoked, in accordance with this section may not apply for a new license or operational permit for three (3) years from the date of revocation.

(b) Notwithstanding, upon the occurrence of any of the conditions set forth in subsection (a), if the Passenger Vehicle For Hire Board determines that continued possession by a pedal carriage or pedicab owner of a pedal carriage or pedicab business license would pose an exigent danger to the public, the Passenger Vehicle For Hire Board may suspend or revoke such pedal carriage or pedicab business license or operational permit, subject to a prompt post-suspension or revocation hearing.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12149, § 13, 8-5-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-255. Failure to display pedal carriage or pedicab registration or pedal carriage or pedicab driver's license.

(a) In any civil, criminal or administrative action or proceeding, the failure to display the registration tag or decal on the pedal carriage or pedicab on which it is required to be displayed as provided shall be presumptive evidence that such pedal carriage or pedicab has not been inspected and is not duly registered as required by this subchapter.

(b) In any civil, criminal or administrative action or proceeding, the failure by a pedal carriage or pedicab driver who is required to be licensed and permitted pursuant to the provisions of this article to display or to exhibit on demand such pedal carriage or pedicab driver's license and permit in accordance with the provisions of this article to any officer or employee authorized to enforce the provisions of this article, shall be presumptive evidence that such pedal carriage or pedicab driver is not duly licensed or properly permitted.
(Ord. No. 12092, § 41, 3-18-08)

Sec. 35-256. Enforcement.

The Passenger Vehicle For Hire Inspector and all police officers of the Chattanooga Police Department shall have the power to enforce any provision of this article or any rule or regulation promulgated pursuant to this article.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-257. Rules.

(a) The Passenger Vehicle For Hire Board may make and promulgate such rules and prescribe such forms as are necessary to carry out the provisions of this article.

(b) Any pedal carriage or pedicab must stay at least ten (10) feet from any horse drawn carriage.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-258. Reporting.

Eighteen (18) months after the local law that added this article, the Passenger Vehicle For Hire Board, in consultation with the Passenger Vehicle For Hire Inspector, the Police Department and the Traffic Engineers office, shall submit a report to the Mayor and the Chairman of the Council regarding the effectiveness of these regulations at ensuring the safety of pedal carriage or pedicab consumers and minimizing the effects of pedal carriage or pedicabs on traffic and congestion. Such report shall include, among other things, the number of pedal carriage or pedicab business licenses issued, the number of pedal carriage or pedicabs that have registered, and the number of traffic accidents involving pedal carriage or pedicabs.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-259. Operation of Pedal carriage or pedicabs; Pedal carriage or pedicabs Using Sidewalks or Public Parks.

(a) A pedal carriage or pedicab shall not block, stand or park on any sidewalk at any time.

(b) A pedal carriage or pedicab shall not be driven or operated on or over any portion of any sidewalk except as necessary to proceed through an intersection.

(c) A pedal carriage or pedicab shall not be driven or operated on or in any public park.

(d) It shall be unlawful for any person to wash or cause to be washed any pedal carriage or pedicab on any street or sidewalk in the city.

(e) Pedal carriages and pedicabs shall yield to pedestrians or bicycles when operating on or through any sidewalk or intersection.

(f) It shall not be unlawful for a pedal carriage or pedicab to operate on any designated bicycle route on a public street.

(g) A pedal carriage or pedicab driver may walk a pedal carriage or pedicab on sidewalks for purpose of parking the pedal carriage or pedicab.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12149, §§ 14, 15, 8-5-08)

Sec. 35-260. Manufacturers' Certificate.

The owner of the pedal carriage or pedicab business shall provide the Passenger Vehicle For Hire Board, for each pedal carriage or pedicab that will be used in the business operation, a certificate provided by the manufacturer showing that the pedal carriage or pedicab is designed for commercial use.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Secs. 35-261—35-269. Reserved.

DIVISION 3. ELECTRIC PERSONAL ASSISTIVE MOBILITY DEVICES (SEGWAYS)

Sec. 35-270. Definitions.

Electric personal assistive mobility device or "EPAMD" or Segway means a self-balancing, two (2) non-tandem wheeled device, designed to transport only one (1) person, with an electric propulsion system with average power of seven hundred fifty (750) watts or one (1) horse power, whose maximum speed on a paved level surface, when powered solely by such a propulsion system while ridden by an operator who weighs one hundred seventy (170) pounds, is less than twenty (20) miles per hour. Notwithstanding any other provision of law to the contrary, an EPAMD shall not be considered to be a "vehicle," "motor vehicle," "passenger motor vehicle," "passenger car," "motorcycle," "motorized bicycle," "motor bicycle," "motor-driven cycle," "motor scooter" or "all-terrain vehicle" within the meaning of the laws of this state and no provisions of law relating to vehicles, motor vehicles, passenger motor vehicles, passenger cars, motorcycles, motorized bicycles, motor bicycles, motor-driven cycles, motor scooters or all-terrain vehicles shall apply to EPAMDs unless specified in this chapter, including, but not limited to, any provisions of chapter 12, part 1 of this title and any provisions of law relating to motor vehicle registration, licensing, operation or equipment.

Permit for the purposes of this Division shall mean a permit to operate EPAMDs to transport passengers for hire.
(Ord. No. 12092, § 41, 3-18-08)

Sec. 35-271. Regulation of EPAMDs.

(a) The regulation and operation of EPAMDs shall be governed exclusively by the provisions of this chapter.
(Ord. No. 12092, § 41, 3-18-08)

Sec. 35-272. Operation.

(a) Nothing in this chapter or in any other law of this state shall be construed to limit the operation of an EPAMD on the public highways, sidewalks, bike trails and bicycle routes of this state except as otherwise set forth in this chapter.

(b) A person operating an EPAMD shall obey all speed limits for motor vehicles and shall yield the right-of-way to pedestrians and human powered devices at all times.

(c) Notwithstanding any other provision of this chapter to the contrary, the department of transportation shall have the authority to regulate or prohibit the operation of EPAMDs on any highway within its jurisdiction if it determines that such regulation or prohibition is necessary in the interest of public safety. T.C.A. 55-53-104.
(Ord. No. 12092, § 41, 3-18-08)

Sec. 35-273. EPAMDs; Permit required to transport passengers for hire.

No person shall operate or permit an EPAMD(s) on the streets, roads, public highways, parks or public places of the City of Chattanooga as regulated by this Chapter without having first obtained a certificate of public convenience and necessity from the Passenger Vehicle For Hire Board.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-274. Application.

(a) An application for a certificate of public convenience and necessity to operate a an EPAMD(s) on the streets, roads, public highways, parks or public places of the City of Chattanooga as to transport passengers for hire or business to shall be filed with the Passenger Vehicle For Hire Board upon forms provided by the Passenger Vehicle For Hire Inspector(s) and upon the payment of a nonrefundable fee of one hundred dollars ($100.00) plus fifty dollars ($50.00) per EPAMD. A renewal application and a fee of fifty dollars ($50.00) plus ten dollars ($10.00) for each EPAMD(s) shall be filed on or before the annual renewal date of the certificate of public convenience and necessity. Such application shall be verified under oath and shall furnish the following information:

(1) The name and address of the applicant.

(2) The financial status of the applicant, including the amounts of all unpaid judgments against the applicant and the nature of the transaction or acts giving rise to such judgments.

(3) The experience of the applicant in the transportation of passengers.

(4) Any facts which the applicant believes tend to prove that public convenience and necessity require the granting of the certificate.

(5) The number of EPAMD(s) and their make and year models to be operated or controlled by the applicant and the location of proposed depots and terminals.

(6) Whether or not the applicant has been convicted of a felony within three (3) years.

(7) Such further information as the Passenger Vehicle For Hire Board may require.

(b) The application to operate EPAMD(s) shall state the number of EPAMDs that shall be made available to transport passengers for hire.

(c) If an application is incomplete, it shall be returned to the applicant for completion prior to being acted upon.

(d) Each application shall be signed by the owner(s) or duly authorized officer, which shall be deemed to be a certification that the information on the application is accurate. Any material misrepresentation made on an application shall be grounds for revocation of the certificate.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-275. Public hearing.

Upon the filing of an application for a certificate of public convenience and necessity and/or a request for additional permits to operate EPAMD(s) to transport passengers for hire, the Passenger Vehicle For Hire Board shall fix a time and place for a public hearing thereon, to be not less than thirty (30) days after receipt of the application or request. Notice of such hearing shall be given to the applicant and to all persons to whom certificates of public convenience and necessity have been theretofore issued. Due notice shall be given the general public by posting a notice of such hearing in the morning and evening newspapers at least three (3) days, but not more than five (5) days prior to the public hearing. Any person may file with the Passenger Vehicle For Hire Board a memorandum in support of or opposition to the issuance of a certificate of public convenience or a request for additional permits. The Passenger Vehicle For Hire Board may call special meetings for the consideration of new certificates of public convenience and necessity and/or applications. The Passenger Vehicle For Hire Board shall adopt procedures to govern the consideration of such applications.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-276. Issuance.

(a) If the Passenger Vehicle For Hire Board finds that an applicant is qualified to operate EPAMD(s) to transport passengers for hire, and that the applicant is fit, willing and able to perform such public transportation and to conform to the provisions of this article, the Passenger Vehicle For Hire Board shall issue a certificate, stating the name and address of the applicant, the number of vehicles authorized upon such certificate and the date of issuance; otherwise, the application shall be denied. Provided that should the application be incomplete, the Passenger Vehicle For Hire Board shall not issue a certificate of public convenience and necessity until any omissions are cured. Any material misrepresentation in the application shall be a basis for denial of a certificate of public convenience and necessity. If the applicant or any owner of the business having a ten percent (10%) or greater financial interest in the business has been convicted of a felony within three (3) years, the certificate shall be denied.

(b) The action of the Passenger Vehicle For Hire Board in issuing or denying such a certificate shall be final, except as it may be subject to review at law.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-277. Proof of financial responsibility required.

No certificate of public convenience and necessity shall be issued or continued in operation of EPAMD(s) under this Chapter unless there is in full force and effect proof of financial responsibility for each vehicle authorized in an amount in accordance with the minimum limits set by the law of the State of Tennessee for financial responsibility of owner and operator of EPAMD(s) or as required by the Passenger Vehicle For Hire Board. Such security shall inure to the benefit of any person who shall be injured or who shall sustain damage to property proximately caused by the negligence of a holder, his servants or agents. Proof of financial responsibility shall be established in accordance with standards set by the laws of the State of Tennessee or the Passenger Vehicle For Hire Board. Proof of financial responsibility shall be filed with the Passenger Vehicle For Hire Board and Inspector(s) and shall have as a surety thereon a surety company authorized to do business in the State of Tennessee or a certificate of self-insurance issued by the Commissioner of Safety.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-278. Insurance; financial responsibility.

(a) Before any certificate shall be issued by the Passenger Vehicle For Hire Board or before the renewal of such certificate shall be granted under this Division, the applicant shall be required to file an insurance policy and/or certificate of insurance with the Passenger Vehicle For Hire Board or evidencing insurance

coverage as required in this section. The operator of EPAMD(s) shall notify the Passenger Vehicle For Hire Board of any modification, amendment, cancellation or substitution of any insurance policy required under this section within fourteen (14) days of the date of the notice to the pedal carriage or pedicab business of such modification, amendment, cancellation or substitution. If the policy of insurance required by this section lapses for any reason the permit issued shall become void for such pedal carriage or pedicab business.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-279. Stoppage system; illumination and visibility

An EPAMD shall be equipped with a system that when employed will enable the operator to bring the device to a controlled stop and, if the EPAMD is operated between one-half (1/2) hour after sunset and one-half (1/2) hour before sunrise, front, rear and side reflectors and a lamp emitting a white light which, while the EPAMD is in motion, illuminates the area in front of the operator and is visible from a distance of three hundred (300) feet in front of and from the sides of the EPAMD; provided, however, that the provisions of this section requiring the use of reflectors and a lamp during the period between one-half (1/2) hour after sunset and one-half (1/2) hour before sunrise shall be deemed to be satisfied if the operator of the EPAMD wears a personal headlight and reflectors.
(Ord. No. 12092, § 41, 3-18-08)

State law reference—T.C.A. § 55-53-103.

Sec. 35-280. Transfer.

No certificate of public convenience and necessity to operate EPAMD(s) may be sold, assigned, mortgaged or otherwise transferred, nor there any modification of ownership as to stock transfer, new or additional partners, etc., by a holder of a certificate of public convenience and necessity without the consent of the Passenger Vehicle For Hire Board. Provided that in the event of a death of a permit holder, the certificate may be devised to or inherited by a spouse or child, and they shall be granted a certificate by the Passenger Vehicle For Hire Board providing they are otherwise qualified for the certificate.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-281. Suspension and revocation.

(a) A certificate of public convenience and necessity issued under the provisions of this division may be revoked or suspended by the Passenger Vehicle For Hire Board if the permit holder thereof has:

(1) Violated any of the provisions of this article.

(2) Discontinued operations for more than five (5) days.

(3) Has violated any provision of this Code or other Chattanooga ordinance or the laws of the United States or the State of Tennessee, the violations of which reflect unfavorably on the fitness of the holder to offer public transportation.

(4) Has charged a passenger rates found to be excessive by the Passenger Vehicle For Hire Board.

(b) Prior to suspension or revocation, the holder shall be given notice of the proposed action to be taken and shall have an opportunity to be heard. The actions of the Passenger Vehicle For Hire Board at such hearing shall be final subject to review at law.
(Ord. No. 12092, § 41, 3-18-08; Ord. No. 12891, § 1, 1-6-15)

Sec. 35-282. Restrictions on use.

Notwithstanding any other provisions of this Chapter to the contrary, the Police Chief or Traffic Engineer may restrict, limit or exclude the operation of EPAMDs if necessary in the interest of public safety or in the interest of the preservation of natural areas, public or private property or historic sites to the same extent as bicycles are restricted, limited or excluded.
(Ord. No. 12092, § 41, 3-18-08)

ARTICLE VIII. Reserved*

Secs. 35-283—35-294. Reserved.

***Editor's note—**Ord. No. 13386, § 14, adopted Oct. 23, 2018, repealed Art. VIII, §§ 35-283—35-294, which pertained to transportation networks and derived from Ord. No. 12891, § 17, 1-6-15.

Chapter 36

WATER*

Article I. In General

Secs. 36-1—36-15. Reserved.

Article II. Service by Companies

Sec. 36-16. Company to lay service pipe, make connections at own expense.
Sec. 36-17. Pipe specifications to be determined by company.
Sec. 36-18. Property owner to bear expense of service pipe laid after street paved.
Sec. 36-19. Laying service pipe without contract for water consumption.
Sec. 36-20. Property owner to provide and maintain stopcock and stop box.
Sec. 36-21. Installations to conform to grade.
Sec. 36-22. Care, maintenance of service pipes.
Sec. 36-23. When single service pipe to be employed.
Sec. 36-24. Rates and meter charges for service from single pipe.
Sec. 36-25. Additional pipes not be required.
Sec. 36-26. Cash deposit in advance of service prohibited; advance payment on initial bill.
Sec. 36-27. Refusal to supply service.
Sec. 36-28. No charged to be made for turning service on.
Sec. 36-29. Discontinuance of service.

Secs. 36-30—36-45. Reserved.

Article III. Wells

Sec. 36-46. Report of location, samples to be furnished department of health.
Sec. 36-47. Record required.
Sec. 36-48. Analysis of samples.
Sec. 36-49. Notice when sample found to be unhealthful.
Sec. 36-50. When use to be discontinued.

***Cross reference—**Businesses, trades and occupations generally, Ch. 11.

ARTICLE I. IN GENERAL

Secs. 36-1—36-15. Reserved.

ARTICLE II. SERVICE BY COMPANIES*

Sec. 36-16. Company to lay service pipe, make connections at own expense.

Any water company doing business in the city shall, at its own expense, make the connections and furnish and lay the pipes necessary to make service connections from its mains in any street or public place to the adjacent property line of the person to whom water is to be supplied; provided that, such company shall not be liable for the cost and laying of service pipe to be laid in excess seventy-five (75) feet from such main.
(Code 1986, § 36-16)

Sec. 36-17. Pipe specifications to be determined by company.

The type, material, size and location of service pipe to be laid or relaid shall be determined by the water company, subject to the decision of the department of public works, streets and airports if there is any disagreement between the water company and the property owner.
(Code 1986, § 36-17)

Sec. 36-18. Property owner to bear expense of service pipe laid after street paved.

If the city, through its department of public works, streets and airports, undertakes the permanent paving or reconstruction of any street, and a property owner, after having had reasonable notice of such intention on the part of the city, fails to have the water company install a service pipe, as provided in section 38-1 of this Code, either to vacant or improved property, and it subsequently becomes necessary for such owner to have such service pipe installed, the water company shall install such pipe, but shall have the right to collect from such owner in advance the reasonable cost of running such service pipe to the property line, and the owner shall have no of right to any refund from the water company for such expenditure.
(Code 1986, § 36-18)

Sec. 36-19. Laying service pipe without contract for water consumption.

If a property owner requests a water company to lay a service pipe to the property line of a lot where no satisfactory contract has been entered into for the commencement of consumption of water within a period of ninety (90) days from such request, the water company may collect in advance from such owner the actual expense to be incurred in complying with his request. The amount so collected shall be refunded to the property owner by the water company when an amount of water has been consumed on the premises served, the cost of which, at legal rates, is equal to the expenditure made by the company.
(Code 1986, § 36-19)

Sec. 36-20. Property owner to provide and maintain stopcock and stop box.

The property owner shall install at his own expense just inside and as near to the property line as may be practicable a stopcock and, when pipe is underground, a stop box for his own use, and shall maintain the same in good working order, subject to inspection by the water company.
(Code 1986, § 36-20)

***Cross references—**Air pollution, Ch. 4; health and sanitation, Ch. 20; plumbing, Ch. 27; sewers, mains and drainage, Ch. 31.

State law reference—Authority regarding water systems, T.C.A. § 7-35-101 et seq.

Sec. 36-21. Installations to conform to grade.

The department of public works, streets and airports shall, on application of any water company, furnish such information from the records in the city engineer's office relative to the lines and grades of sidewalks as will assist such company in properly placing the service pipes, meters, stopcocks and stop boxes in the lines thereof. The property owner shall keep the surface around stop boxes on a level with the same, so that they shall not become obstructions due to the wearing and washing away of such surface.
(Code 1986, § 36-21)

Sec. 36-22. Care, maintenance of service pipes.

The water company shall be responsible for the care and maintenance of all service pipes in the city.
(Code 1986, § 36-22)

Sec. 36-23. When single service pipe to be employed.

Not more than one (1) service pipe for supplying water shall be laid by any water company or other person doing such work from a main to a building owned by one (1) person or by tenants in common.
(Code 1986, § 36-23)

Sec. 36-24. Rates and meter charges for service from single pipe.

It shall be unlawful for any water company in the city to charge or attempt to charge, or to collect or attempt to collect, any other or greater amount than the regular rate for water supplied through a single service pipe and a single meter to any one (1) house or any two (2) or more adjacent houses owned by the same person, where such houses were connected with such water mains or pipes by means of a single service pipe with the knowledge and consent of the company. A single regular minimum meter charge may be charged and collected for every month where the entire amount of water passing through any such service pipe and measured by such meter during such month shall be less than three thousand (3,000) gallons.
(Code 1986, § 36-24)

Sec. 36-25. Additional pipes not be required.

It shall be unlawful for any water company in the city to enforce or attempt to enforce any rule requiring any owner, tenant or agent of the owner of any house or houses connected with water mains or pipes by a single service pipe as provided in the preceding section to make any other or additional connection with such water mains or pipes for the purpose of receiving a supply of water for any one (1) or more of such houses or for any part of any one (1) or more of such houses theretofore supplied with water through a single service pipe and meter; provided that, nothing in this section shall be construed to prevent any additional water service connections to any house or houses in the city which may be made by or with the voluntary consent of the owner of such house or houses.
(Code 1986, § 36-25)

Sec. 36-26. Cash deposit in advance of service prohibited; advance payment on initial bill.

It shall be unlawful for any water company in the city to charge or require of persons desiring to become consumers of water through water mains or pipes cash deposits in advance of furnishing water; provided that, any water company may be permitted to charge for water proposed to be furnished to consumers one (1) quarter's rent in advance according to the minimum rate to consumers of water in the city. Where such payment is required, the money paid by the consumer shall be placed to his credit for water to be consumed during the quarter following payment of such deposit and credited on account of water actually consumed.
(Code 1986, § 36-26)

Sec. 36-27. Refusal to supply service.

It shall be unlawful for any water company in the city, or any officer or agent of such company, to refuse to turn on or supply water to any person occupying or intending to occupy, either as owner, lessee, tenant or subtenant, any premises in the city having water connections with the pipes or mains of such water company, when such occupant or intended occupant tenders to such company or its proper agent, for one (1) quarter in advance, the usual minimum price charged by such company for water for a like period; provided that, such service may be refused in any case where the person requesting it and tendering payment therefor justly owes and refuses to pay for water previously supplied to him by such company in the city; provided, further, that, no water meter shall be installed and no service shall be commenced to any premises where no service has previously been rendered until the plumbing inspector has inspected the plumbing system of the premises and has notified the water company of the approval of the system.
(Code 1986, § 36-27)

Sec. 36-28. No charged to be made for turning service on.

It shall be unlawful for any water company in the city to charge or require of consumers or prospective consumers desiring water service any fee for turning on the supply of water, whether such supply has been cut off for nonpayment of charges for water service or otherwise; provided that, consumers shall pay in full any charges in arrears due by them or tender the same in full in cash at the office of the water company before the water company may be required to turn on the supply of water.
(Code 1986, § 36-28)

Sec. 36-29. Discontinuance of service.

In addition to any or all other grounds for discontinuance of service, a water company shall, upon its own initiative or at the direction of the chief plumbing inspector, discontinue service on reasonable notice, not to exceed twenty-four (24) hours, upon the following circumstances:

(1) Violation by a consumer, property owner or occupant, of any code, law, rules or regulations, or ordinance of any government entity or of any rule or regulation of such water company relative to local codes, health violations, cross-connections or interconnections.

(2) Knowledge by such water company that the health authority or plumbing inspectors have ordered a cross-connection or interconnection or other health or plumbing code violation discontinued or abated and that such order has not been complied with.

(Code 1986, § 36-29)

Secs. 36-30—36-45. Reserved.

ARTICLE III. WELLS

Sec. 36-46. Report of location, samples to be furnished department of health.

The owner or person in control of any premises in the city on a well shall report to the department of health the location of any such well, and once during each calendar month thereafter shall furnish such department a sample of water from such well.
(Code 1986, § 36-46)

Sec. 36-47. Record required.

There shall be kept in the department of health a record showing the location of all wells reported.
(Code 1986, § 36-47)

Sec. 36-48. Analysis of samples.

The health officer shall have all samples of water furnished him analyzed by a bacteriologist.
(Code 1986, § 36-48)

Sec. 36-49. Notice when sample found to be unhealthful.

If, upon analysis, any water is found to be infected or deleterious to health, or in such condition as to produce disease, the director shall at once notify the owner or person in control of the premises on which the well is located from which such water has come.
(Code 1986, § 36-49)

Sec. 36-50. When use to be discontinued.

Any person receiving notice from the director of health, as provided in section 36-49, shall immediately cease to use water from the well in question for drinking purposes, and shall, within ten (10) days thereafter, cause such well to be filled or stopped up so that water from it can be used only for other purposes than drinking.
(Code 1986, § 36-50)

Chapter 37

RESERVED*

***Editor's note—**Ord. No. 12623, § 1, adopted June 3, 2012, repealed ch. 37, §§ 37-1—37-9, in its entirety. Former ch. 37 pertained to weights and measures, and was derived from Code 1986 §§ 37-1—37-9 and Ord. No. 9654, § 13, adopted January 6, 1992.

Chapter 38

ZONING*

	Page
ARTICLE I. Title, Purpose, & Applicability	CD38:5
Sec. 38-1. Title	CD38:5
Sec. 38-2. Purpose	CD38:5
Sec. 38-3. Applicability	CD38:5
Sec. 38-4. Transition Rules	CD38:6
Sec. 38-5. Current Versions and Citations	CD38:8
Sec. 38-6. Severability	CD38:8
ARTICLE II. Definitions & Rules of Measurement	CD38:8
Sec. 38-7. Rules of Interpretation	CD38:8
Sec. 38-8. General Abbreviations	CD38:8
Sec. 38-9. General Definitions	CD38:9
Sec. 38-10. Rules of Measurement	CD38:27
ARTICLE III. Zones & Zoning Map	CD38:36
Sec. 38-11. Zones	CD38:36
Sec. 38-12. Zoning Map	CD38:38
Sec. 38-13. Zoning for Newly Annexed Areas	CD38:39
ARTICLE IV. Residential Zones	CD38:39
Sec. 38-14. Purpose	CD38:39
Sec. 38-15. Uses	CD38:41
Sec. 38-16. Residential Zone Dimensional Standards	CD38:42
Sec. 38-17. Additional Standards	CD38:50
ARTICLE V. Mixed-Use & Commercial Zones	CD38:50
Sec. 38-18. Purpose	CD38:50
Sec. 38-19. Uses	CD38:51
Sec. 38-20. Mixed-Use and Commercial Zones Dimensional Standards	CD38:51
Sec. 38-21. Mixed-Use and Commercial Development Standards	CD38:57
Sec. 38-22. Additional Standards	CD38:59
ARTICLE VI. Downtown Form-based Code	CD38:59
ARTICLE VII. Industrial Zones	CD38:59
Sec. 38-23. Purpose	CD38:59
Sec. 38-24. Uses	CD38:59
Sec. 38-25. Industrial Zones Dimensional Standards	CD38:60
Sec. 38-26. I-MU Zone Development Standards	CD38:63
Sec. 38-27. Additional Standards	CD38:64
ARTICLE VIII. Special Purpose Zones	CD38:64
Sec. 38-28. A-1 Urban Agricultural Zone	CD38:64
Sec. 38-29. INST Institutional Zone	CD38:65
Sec. 38-30. OS Open Space Zone	CD38:66
Sec. 38-31. R-MH Manufactured Home Zone	CD38:67
Sec. 38-32. Urban Overlay Zone	CD38:68

***Editor's note—**Ord. No. 14137, § 1, adopted July 23, 2024, repealed the former Ch. 38., §§ 38-1—38-771, and enacted a new Ch. 38, §§ 38-1—38-102 as set out herein. The former Ch. 38 pertained to similar subject matter; see the Code Comparative Table for complete derivation.

Page

Sec. 38-33. TOD Transit-Oriented Development Overlay Zone . . CD38:73
Sec. 38-34. Lovell Field Gateway Overlay Zone CD38:73
Sec. 38-35. Brainerd Overlay Zone Standards CD38:83
Sec. 38-36. FAA Aviation Overlay Zone CD38:96
Sec. 38-37. Airport Use Zone CD38:96
Sec. 38-38. Special Flood Hazard Area CD38:96
Sec. 38-39. Reserved CD38:115
ARTICLE IX. Uses CD38:115
Sec. 38-40. General Use Regulations CD38:115
Sec. 38-41. Use Matrix CD38:115
Sec. 38-42. Principal Use Standards CD38:127
Sec. 38-43. Accessory Use Standards CD38:144
Sec. 38-44. Temporary Use Standards CD38:149
Sec. 38-45. Use Definitions CD38:151
ARTICLE X. General Development Standards CD38:169
Sec. 38-46. General Development Standards Applicable to Zones CD38:169
Sec. 38-47. Exterior Lighting Controls CD38:172
Sec. 38-48. Permitted Encroachments CD38:174
Sec. 38-49. Performance Standards CD38:176
ARTICLE XI. Accessory Structures CD38:177
Sec. 38-50. General Accessory Structure Regulations CD38:177
Sec. 38-51. Specific Accessory Structure Standards CD38:178
ARTICLE XII. Off-Street Parking & Loading CD38:183
Sec. 38-52. General Requirements CD38:183
Sec. 38-53. Required Off-Street Vehicle and Bicycle Parking Spaces CD38:184
Sec. 38-54. Required Parking Flexibilities, Exemptions, and Reductions CD38:190
Sec. 38-55. Electric Vehicle Charging Stations CD38:193
Sec. 38-56. Off-Street Parking Facility Design CD38:193
Sec. 38-57. Bicycle Parking Design CD38:196
Sec. 38-58. Required Off-Street Loading Spaces CD38:197
Sec. 38-59. Commercial Vehicle Storage CD38:198
ARTICLE XIII. Landscape CD38:198
Sec. 38-60. Purpose and Intent CD38:198
Sec. 38-61. Landscape Plan CD38:198
Sec. 38-62. Landscape and Certificate of Occupancy CD38:199
Sec. 38-63. Selection, Installation, and Maintenance CD38:200
Sec. 38-64. Parking Lot Landscape CD38:202
Sec. 38-65. Buffer Yards CD38:204
Sec. 38-66. Required On-Site Trees CD38:207
ARTICLE XIV. Administrators CD38:208
Sec. 38-67. City Council CD38:208
Sec. 38-68. Planning Commission CD38:208
Sec. 38-69. Board of Appeals CD38:208
Sec. 38-70. Director of the Land Development Office CD38:209
ARTICLE XV. Application Process CD38:209
Sec. 38-71. Application CD38:209
Sec. 38-72. Notice CD38:211

Page

Sec. 38-73. Vesting CD38:213
ARTICLE XVI. Zoning Approvals CD38:216
Sec. 38-74. Zoning Text and Map Amendment CD38:216
Sec. 38-75. Special Exceptions CD38:218
Sec. 38-76. Variance CD38:221
Sec. 38-77. Administrative Modifications CD38:222
Sec. 38-78. Plan Review for Permits CD38:224
Sec. 38-79. Planned Unit Development CD38:224
Sec. 38-80. Zoning Interpretation CD38:230
Sec. 38-81. Temporary Use Permit CD38:230
Sec. 38-82. Zoning Appeals CD38:231
ARTICLE XVII. Short-Term Vacation Rentals CD38:232
Sec. 38-83. Intent CD38:232
Sec. 38-84. Permissions CD38:232
Sec. 38-85. Definitions CD38:232
Sec. 38-86. Location and Number CD38:233
Sec. 38-87. Certificate Required CD38:233
Sec. 38-88. Minimum Standards CD38:234
Sec. 38-89. Certificate Application; Action; Approval or Denial; Appeals CD38:234
Sec. 38-90. Certificate Approval, Transferability, Conditions, and Revocation CD38:236
Sec. 38-91. Annual Renewal and Fee CD38:237
Sec. 38-92. Short-Term Vacation Rental Agent CD38:238
Sec. 38-93. Invalidity of Part; Private Agreements and Covenants CD38:238
Sec. 38-94. Annual Review CD38:238
Sec. 38-95. Short-Term Vacation Rental Overlay District Map . . CD38:239
ARTICLE XVIII. Nonconformities CD38:239
Sec. 38-96. General Applicability CD38:239
Sec. 38-97. Nonconforming Use CD38:239
Sec. 38-98. Nonconforming Structure CD38:240
Sec. 38-99. Nonconforming Lot CD38:243
ARTICLE XIX. Voluntary Incentives Program CD38:244
Sec. 38-100. Intent CD38:244
Sec. 38-101. Applicability CD38:244
Sec. 38-102. Vip definitions CD38:244
Sec. 38-103. Qualifying development types CD38:245
Sec. 38-104. Program requirements CD38:245
Sec. 38-105. General requirements CD38:246
Sec. 38-106. Incentives CD38:246
Sec. 38-107. Parking minimum standards CD38:247
Sec. 38-108. Certification process CD38:248
Sec. 38-109. Deed restrictions. CD38:249
Sec. 38-110. Appeals CD38:249
Sec. 38-111. Annual review and fees CD38:249
ARTICLE XX. Enforcement CD38:250
Sec. 38-112. Enforcement Official CD38:250
Sec. 38-113. Application of Penalties. CD38:250
Sec. 38-114. Fines CD38:250

ARTICLE I. TITLE, PURPOSE, & APPLICABILITY

Sec. 38-1. Title

This Zoning Code, which incorporates the Official Zoning Map, is known, cited, and referred to as the "Chattanooga Zoning Code," "Zoning Code," or "Code."
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-2. Purpose

The intent of this Code is to establish land use regulations to serve the City of Chattanooga. The purpose of this Code is to:

(a) Promote the public health, safety, and welfare.

(b) Promote orderly development of the City and implement the plans and policies adopted by the City.

(c) Assign zones to land within the City, according to use of land and structures, bulk of structures, intensity of the use of the lot, or other classification, as deemed best suited to carry out the purposes of this Code and adopted policies.

(d) Preserve and enhance the character of structures and communities that constitute the distinct places within the City.

(e) Provide a diversity of housing choices for all income levels and groups with an emphasis on affordability.

(f) Promote economic development that balances the needs of the current and future economy with a high quality of life standard.

(g) Preserve open space and natural areas, provide opportunities for multi-modal transportation, utilize existing infrastructure and resources, and preserve quality of life.

(h) Provide for preservation, protection, and conservation of natural resources and historic resources.

(i) Promote principles of sustainability and resiliency.

(j) Create a comprehensive and stable pattern of land uses upon which to plan for transportation, water supply, sewerage, schools, parks, public utilities, and other facilities.

(k) Provide for procedures for the administration of the Code and efficient review of development proposals.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-3. Applicability

(a) **Territorial Application**

This Code applies to all land, uses, and structures within the City. The regulations of this Zoning Code apply to private property. The regulations of this Code do not apply to the public right-of-way.

(b) **General Application**

In their interpretation and application, the provisions of this Code are held to be the minimum requirements for the promotion and protection of the public health, safety, and welfare.

(c) **Relation to Private Agreements**

This Code does not nullify any private agreement or covenant. However, where this Code is more restrictive than a private agreement or covenant, this Code controls. The City does not enforce any private agreement.

(d) **Relation to Other Laws and Regulations**

Unless otherwise specifically provided, this Code controls over less restrictive statutes, ordinances, or regulations, and more restrictive statutes, ordinances, or regulations control over the provisions of this Code.

(e) **References to Other Codes and Laws**

Whenever a provision of this Code refers to any other part of the City Code or to any other law, the reference applies to any subsequent amendment of that City Code provision or law.

(f) **Rules Regarding Illustrations and Graphics**

Any illustrations, graphics, and/or photos contained in this Code are intended to assist the user in understanding the Code. If there is any inconsistency between the text of the Code and any such illustration, graphic, and/or photo, the text controls.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-4. Transition Rules

(a) *Existing Uses*

The following rules apply to uses operating as of the effective date of this Code:

Previous Use Categorization (Prior to Code Effective Date)	*Current Use Categorization (As of Code Effective Date)*	*Functional Change*
Permitted use	Permitted use	Remains a permitted use, but is subject to any new use standards required by the Code
Permitted use	Special exception use	Becomes a special exception use; any subsequent addition, enlargement, or expansion requires special exception use approval and is subject to any new use standards required by the Code
Special exception use	Special exception use	Remains a special exception use; any subsequent addition, enlargement, or expansion requires special exception use approval and is subject to any new use standards required by the Code; the use also remains subject to any conditions approved as part of the prior special exception use approval

Previous Use Categorization (Prior to Code Effective Date)	*Current Use Categorization (As of Code Effective Date)*	*Functional Change*
Special exception use	Permitted use	Becomes a permitted use and is no longer subject to any conditions approved as part of special exception use process, but is subject to any new use standards required by the Code
Permitted use	Not allowed	Prohibited in the zoning district; existing use becomes a nonconforming use
Special exception use	Not allowed	Prohibited in the zoning district; existing use becomes a nonconforming use

(b) **Structures Rendered Nonconforming**

Any structure that lawfully existed prior to the effective date of this Code, or any subsequent amendment to this Code, that does not meet all standards for the zoning district where it is located is classified as a nonconforming structure.

(c) **Lots Rendered Nonconforming**

Any lot that was lawfully established prior to the effective date of this Code, or any subsequent amendment to this Code, that does not meet all standards for the zoning district where it is located, is classified as a nonconforming lot. In addition, see Section 18.4 Nonconforming Lots.

(d) **Unlawful Uses, Structures, or Lots**

Any use of land, structure, or lot unlawfully existing prior to the effective date of this Code continues to remain unlawful.

(e) **Previously Granted Variances**

All variance approvals granted prior to the effective date of this Code, or any subsequent amendment to this Code, remain in full force and effect. The recipient of the variance may proceed to develop the property in accordance with the approved plans and all applicable conditions of the variance, including the period of validity for the variance.

(f) **Existing Planned Unit Developments**

Approved planned unit developments (PUD) remain in effect and continue to control the development of land that is subject to the PUD. Any amendments to an existing PUD are subject to the amendment procedures of this Code. Vesting provisions are contained in Section 15.3.

(g) **Existing Conditional Zoning Amendments**

Zoning conditions related to use, dimensions, landscaping, parking, height, or other restrictions may be in place on property. Since 1984, zoning conditions have been added to zoning by Chattanooga Council Ordinance through the rezoning process. Any and all conditions placed by ordinance (unless otherwise amended or lifted) are still effective/active with adoption of the new zoning map on December 18, 2024.

The zoning conditions placed by ordinance prior to the adoption of the new zoning map remain in effect on the new zone adopted as the official zoning map on December 18, 2024.

Vesting provisions are contained in section 38-73, Vesting.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14222, § 1, 4-15-25)

Sec. 38-5. Current Versions and Citations

(a) All references to other regulations, documents, maps, or manuals in this Code refer to the most current version and citation for those regulations, documents, maps, or manuals, unless expressly indicated otherwise.

(b) If the referenced regulations or documents have been repealed and not replaced by other regulations or manuals, Code requirements for compliance are no longer in effect.

(c) Whenever a provision of this Code refers to any other part of the City Code or to any other law, the reference applies to any subsequent amendment of that law.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-6. Severability

Should any section, subsection, phrase, clause, or provision of this Code be declared by a court of competent jurisdiction to be invalid, the same does not affect the validity of the Code as a whole or any part thereof, other than the part so declared to be invalid.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE II. DEFINITIONS & RULES OF MEASUREMENT

Sec. 38-7. Rules of Interpretation

The terms in the text of this Code are interpreted in accordance with the following rules of construction:

(a) The singular number includes the plural, and the plural the singular.

(b) The present tense includes the past and future tenses, and the future tense includes the present.

(c) The terms "must," "shall," and "will" are mandatory.

(d) The terms "may" and "can" are permissive.

(e) The terms "must not," "will not," "cannot," "may not," and "shall not" are prohibiting.

(f) Any gender includes all genders.

(g) Whenever a defined word or term appears in the text of this Code, its meaning must be construed as set forth in the definition. Words not defined must be interpreted in accordance with the definitions considered to be normal dictionary usage.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-8. General Abbreviations

The following abbreviations may be used within this Code:

BTL is an abbreviation for "build-to line."

BTZ is an abbreviation for "build-to zone."

GFA is an abbreviation for "gross floor area."

ft is an abbreviation for "feet."

N/A is an abbreviation for "not applicable."

NR is an abbreviation for "nonresidential."

sf is an abbreviation for "square feet."

SU is an abbreviation for "single-unit."

SU-A is an abbreviation for "single-unit—attached."

2U is an abbreviation for "two- unit."

3U is an abbreviation for "three- unit."

4U is an abbreviation for "four- unit."

5U is an abbreviation for "five-unit."

6U is an abbreviation for "six-unit."

MU is an abbreviation for "multi-unit."

TH is an abbreviation for "townhouse."

MU is an abbreviation for "multi- unit."

DU is an abbreviation for "dwelling unit."
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14181, § 1, 12-17-24)

Sec. 38-9. General Definitions

The following are definitions of general terms used throughout this Code with the exception of Use Definitions, which are defined in Article IX.

Abut. To physically touch or border on, or to share a common lot line but not overlap.

Access. A way or means of approach to provide vehicular or pedestrian physical entrance to a property.

Accessibility Ramp. A ramp or similar structure that provides wheelchair or similar access to a structure.

Accessory Structure. A structure detached from a principal building located on the same lot and customarily incidental and subordinate to the principal building or use.

Accessory Use. A use of land or of a building or portion thereof customarily incidental and subordinate to the principal use of the land or building and located on the same lot with the principal use.

Addition. A structure added to the original structure at some time after the completion of the original or an extension or increase in floor area or height of a building or structure. For the purposes of this section, "at some time after" is usually defined as after the certificate of occupancy has been issued for the original structure.

Addition (to an existing building). Any walled and roofed expansion to the perimeter or height of a building.

Adjacent. A lot or parcel of land that shares all or part of a common lot line with another lot or parcel of land.

Aisle. The traveled way by which cars enter and depart parking spaces. Also called a travel aisle.

Alley. A service roadway providing a secondary means of access to abutting property and not intended for general traffic circulation.

Alteration. Any change or rearrangement in the supporting members of an existing building, such as bearing walls, columns, beams, girders, or interior partitions, as well as any change indoors, windows, or means of ingress or egress; or any enlargement to or diminution of a building or structure, whether horizontally or vertically; or the moving of a building or structure from one location to another.

Amateur (ham) Radio Equipment. An amateur (ham) radio station licensed by the Federal Communications Commission (FCC), including equipment such as, but not limited to, a tower or building-mounted structure supporting a radiating antenna platform and other equipment.

Ancillary. In regard to principal uses, a structure or use that provides support and is integral to a principal use operation.

Apiary. A structure for the keeping of honeybees.

Appeal. A request for a review of an interpretation of any provision of this Ordinance or a request for variance.

Appurtenance. The visible, functional, or ornamental objects accessory to, and part of, buildings or structures.

Area of Shallow Flooding. A designated AO or AH Zone on a community's Flood Insurance Rate Map (FIRM) with one percent or greater annual chance of flooding to an average depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and indeterminate; and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

Area of Special Flood-related Erosion Hazard. The land within a community which is most likely to be subject to severe flood-related erosion losses. The area may be designated as Zone E on the Flood Hazard Boundary Map (FHBM). After the detailed evaluation of the special flood-related erosion hazard area in preparation for publication of the FIRM, Zone E may be further refined.

Architectural Feature. A part or projection that contributes to the aesthetics of a structure, exclusive of signs, that is not necessary for the structural integrity of the structure or to make the structure habitable.

Area of Special Flood Hazard. The land in the flood plain within a community subject to a 1% or greater chance of flooding in any given year (see also High Water Stage).

Articulation. For structures, a change in the depth of the building plane, roofline, or height.

Awning. A roof-like cover projecting from the wall of a building for the purpose of shielding a doorway or window from the elements.

Balcony. A roofed or unroofed platform that projects from the exterior wall of a structure above the ground floor, which is exposed to the open air, has direct access to the interior of the building, and is not supported by posts or columns extending to the ground.

Banner. A temporary sign printed upon flexible material mounted with or without rigid frames on a building.

Base Flood. For purposes of adopted flood regulations, means the flood having a 1% chance of being equaled or exceeded in any given year. This term is also referred to as the 100-year flood or the 1% annual chance flood.

Basement. Any portion of a building having its floor subgrade (below ground level) on all sides.

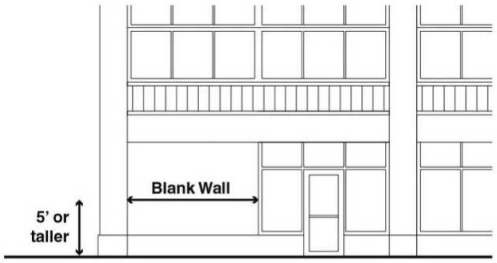
Bay Window. A window that projects outward from the structure, which does not rest on the building foundation or on the ground.

Berm. An earthen mound designed to provide visual interest on a site, fully or partially screen undesirable views, reduce noise, or fulfill similar purposes.

Bike Facility. Improvements to accommodate bicyclists, including bike parking facilities, bike lanes, and facilities for bicyclists such as repair stations and shower facilities.

Blank Wall. The horizontal linear dimension of contiguous building wall that does not contain fenestration, doors, or decorative elements such as banding, medallions, artwork such as murals and mosaics, change in wall plane of at least three inches, or other architectural or material embellishment. Any wall less than eight feet in height is not considered to be a blank wall.

BLANK WALL



Block. Defined in Section 38-10.

Blockface. Defined in Section 38-10.

Blue Roof. A roof designed to store water and discharge rainfall.

Buffer. An area of dimensional separation between land uses, buildings, or structures, which is undeveloped, with installed screening and/or undisturbed and left in a natural condition.

Buffer Yard. An area of land within a property or site, generally adjacent to and parallel with a property line, to allow adequate screening of view, noise, and/or activity taking place within the property or site from adversely affecting an adjoining property, site, or the public right-of-way.

Build-To Line (BTL). Defined in Section 38-10.

Build-To Zone (BTZ). Defined in Section 38-10.

Build-To Percentage. Defined in Section 38-10.

Buildable Area. The portion of a lot, excluding required setbacks, where a structure or building improvements may be erected.

Building. Any structure having a roof supported by columns or walls and intended for the shelter, housing, or enclosure of any individual, animal, process, equipment, goods, or materials of any kind and intended for use in one place.

Building Coverage. Defined in Section 38-10.

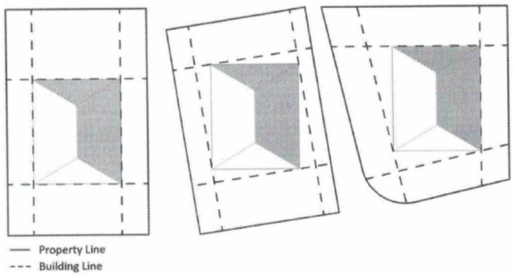
Building Envelope. The three-dimensional space within which a structure is permitted to be built on a lot and which is defined by regulations governing building setbacks, maximum height, and bulk, by other regulations, and/or by any combination thereof.

Building Footprint. The area encompassed by a building's outer wall at ground level.

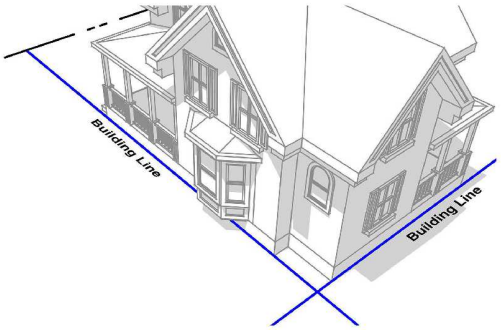
Building Height. Defined in Section 38-10.

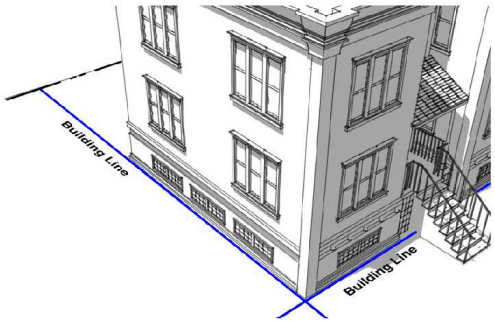
Building Line. A line measured at the building wall of a structure between parallel lot lines. For the purposes of establishing a building line, the building wall does not include permitted encroachments of architectural features, such as bay windows, eaves, and steps and stoops.

BUILDING LINE



BUILDING LINE (3-D VIEW)





Building Permit. A permit issued by the duly designated building official authorizing the erection, construction, reconstruction, alteration, repair, conversion, or maintenance of a building, structure, or portion thereof.

Canopy. A canopy is a roof-like cover designed for protection from the weather or as a decorative embellishment affixed to a building or freestanding, with supports that extend to the ground.

Carport. A roofed structure intended to provide a sheltered parking space for the parking of motor vehicles and enclosed on not more than three sides.

Chicken Coop. A structure where hens are kept.

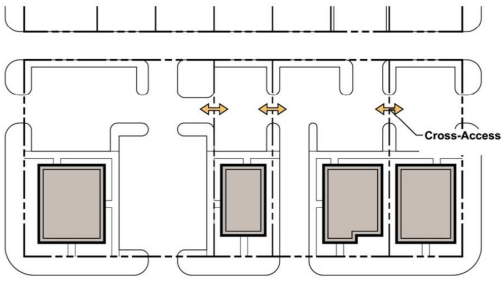
Chimney. A vertical shaft of reinforced concrete, masonry or other approved material enclosing one or more flues, for the purpose of removing products of combustion from solid, liquid, or gaseous fuel.

Coldframe Structure. A temporary unheated outdoor structure consisting of a frame and a top of glass or clear plastic, used for protecting seedlings and plants from the cold.

Co-Location. Placement of equipment from more than one service or service provider on a single tower or site.

Cross-Access. A vehicular and/or pedestrian connection between abutting properties that connects the two sites and allows vehicles and/or pedestrians to travel between sites without the having to exit to the street.

CROSS-ACCESS



Deck, First Floor. A roofless outdoor space built as an aboveground platform projecting from the first floor of a structure and connected by structural supports at grade and/or by the structure.

Deck, Upper Story. A roofless outdoor space built as an aboveground platform projecting from and connecting to an upper story wall of a structure with structural supports that extend to the ground.

Donation Box. An unmanned receptacle designed with a door, slot, or similar opening intended to accept and store donated clothes and household items.

Driveway. A private roadway providing access to a street or highway.

Dwelling. A structure, or portion thereof, designed exclusively for human habitation.

Dwelling Unit. One or more habitable rooms which are occupied, or which are intended or designed to be occupied as a residence by one "family", with facilities for living, sleeping, sanitation, and cooking. "Family" means for purposes of Chapter 38:

(1) An individual; or

(2) Two or more persons related by blood, marriage or law; or

(3) A group of two or more unrelated persons living together in a dwelling unit, not to exceed four persons in a dwelling unit with three or fewer bedrooms, and not to exceed five persons in a dwelling unit with four or more bedrooms. Such group may include a combination of related and unrelated persons.

Easement. A grant of one or more of the property rights by the property owner to and/or for use by the public, a corporation, or another person or entity.

Eave. The projecting lower edges of a roof overhanging the wall of a structure.

Egress. A place or means of exiting a property.

Elevated Building. A non-basement building built to have the lowest floor of the lowest enclosed area elevated above the ground level by means of solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of floodwater, pilings, columns, piers, or shear walls adequately anchored so as not to impair the structural integrity of the building during a base flood event.

Emergency Flood Insurance Program. A program as implemented on an emergency basis in accordance with Section 1336 of the Act. It is intended as a program to provide a first layer amount of insurance on all insurable structures before the effective date of the initial FIRM. Also called Emergency Program.

Encroachment. The extension or placement of any structure, or a component of such, into a required setback or right-of-way.

Enlargement. An increase in the size of an existing structure or use, including the physical size of the property, building, parking, and other improvements.

Endwall. The wall of the end unit of a townhouse development that is not attached to another dwelling unit or party wall.

Entablature. An architectural feature that consists of a horizontal, continuous band of elements supported by and situated above the columns of a building or structure.

Erect. To build, construct, attach, hang, place, suspend, or affix.

Erosion. The process of the gradual wearing away of land masses. This peril is not "per se" covered under the Program.

Exception (in Special Flood Hazard Areas). A waiver from the provisions of the Special Flood Hazard Area section of this Ordinance which relieves the applicant from the requirements of a rule, regulation, order or other determination made or issued pursuant to this Ordinance.

Existing Construction (Floodplain). Any structure for which the "start of construction" commenced before the effective date of the initial floodplain management code or ordinance adopted by the community as a basis for that community's participation in the NFIP.

Existing Use. The use of a property at the time that an application for development or redevelopment is made.

Expansion to an Existing Manufactured Home Park or Subdivision. The preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

External Illumination. Illumination by an artificial source of light not internal to the sign face.

Exterior Lighting. The illumination of an outside area or object by any man-made device that produces light by any means.

Exterior Wall. Any wall that defines the exterior boundaries of a building or structure.

Exterior Stairwell. One or more flights of stairs, and the necessary landings and platforms connecting them, to form a continuous passage from the entryway of a floor or level to another in a structure located on the exterior of a principal building.

Facade. An exterior building wall, from grade to the top of the parapet or eaves. A facade incorporates the full width of a building elevation, including any projections or recesses occurring across an elevation. The front facade is the principal elevation of a building and contains the building's main entrance, the rear facade is the building's rear exterior wall, and the side facades are a building's side exterior walls.

FEMA. Federal Emergency Management Agency.

Fence. An artificially constructed barrier of any permitted material or combination of materials erected to enclose, screen, or separate areas.

(1) Fence—Open. A fence that has, over its entirety, more than 70% of the superficial surface consisting of regularly distributed openings.

(2) Fence—Solid. A fence that has, over its entirety, no distributed openings. A shadowbox design fence is considered a solid fence. A chain link fence with slats is not considered a solid fence.

Fenestration. Windows and other openings on a building facade.

Fill. Any material including but not limited to soil, gravel, sand, rock or similar materials that is placed, deposited, or graded by human activity to raise the ground surface to a desired elevation or grade.

Finished Elevation. The proposed elevation of the land surface of a site after completion of all site preparation work.

First Floor Demarcation Line. The boundary that marks the separation between the first floor (of a building and the floors above it.

Flood or Flooding. A general and temporary condition of partial or complete inundation of normally dry land areas from:

(1) The overflow of inland waters.

(2) The unusual and rapid accumulation or runoff of surface waters from any source.

Flood Elevation Determination. A determination by the Federal Emergency Management Agency (FEMA) of the water surface elevations of the base flood, that is, the flood level that has a one percent or greater chance of occurrence in any given year.

Flood Elevation Study. An examination, evaluation and determination of flood hazards and, if appropriate, corresponding water surface elevations, or an examination, evaluation and determination of mudslide (i.e., mudflow) or flood-related erosion hazards.

Flood Fringe. The portion of the one-percent annual chance floodplain located outside of the floodway.

Flood Hazard Boundary Map (FHBM). An official map of a community on which the Federal Insurance Administration has delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

Flood Hazard Zone. The Flood Hazard Zone includes all areas covered by the Floodway Zone plus all areas of special flood hazard as set forth and identified as such by the Federal Emergency Management Agency in its most recent Floodway Maps and Flood Insurance Rate Maps (FIRM) for the community and all property which is considered to be below the elevation of the "High Water Stage" for the Tennessee River and its tributaries. Changes and additions to the Flood Hazard Zone by Tennessee Valley Authority study are hereby adopted and add to or change the Flood Hazard Zone.

Flood Insurance Rate Map (FIRM). An official map of a community, on which the Federal Emergency Management Agency had delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

Flood Insurance Study. The official report provided by the Federal Emergency Management Agency. The report contains flood profiles, as well as the flood Boundary Floodway Map and the water surface elevation of the base flood.

Floodplain. Any land area susceptible to being inundated by water from any source (see definition of "flooding"). Also called Floodprone Area.

Floodplain Management. The operation of an overall program of corrective and preventive measures for reducing flood damage, including but not limited to emergency preparedness plans, flood control works and floodplain management regulations.

Floodplain Storage. The volume or quantity of stormwater surface runoff temporarily or permanently held within the boundaries of the regulatory floodplain. Net increase of floodplain storage as a result of fill refers to the additional volume or quantity of stormwater surface runoff temporarily or permanently held within the boundaries of the regulatory floodplain that exists as a direct result of the fill materials added to the floodplain that would have otherwise not existed.

Floodproofing. Any combination of structural and nonstructural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures, and their contents.

Flood Protection System. Those physical structural works for which funds have been authorized, appropriated, and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the area within a community subject to a "special flood hazard" and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood modifying works are those constructed in conformance with sound engineering standards.

Flood-related Erosion. The collapse or subsidence of land along the shore of a lake or other body of water as a result of undermining caused by waves or currents of water exceeding anticipated cyclical levels or suddenly caused by an unusually high water level in a natural body of water, accompanied by a severe storm, or by an unanticipated force of nature, such as a flash flood, or by some similarly unusual and unforeseeable event which results in flooding.

Flood-related Erosion Area or Flood-related Erosion Prone Area. A land area adjoining the shore of a lake or other body of water, which due to the composition of the shoreline or bank and high water levels or wind-driven currents, is likely to suffer flood-related erosion damage.

Flood-related Erosion Area Management. The operation of an overall program of corrective and preventive measures for reducing flood-related erosion damage, including but not limited to emergency preparedness plans, flood-related erosion control works and floodplain management regulations.

Floodway. The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without increasing the water surface elevation at the High Water State or the Base Flood. The Floodway Zone of Ninemile Branch, Black Creek, Ryall Springs Branch, Mackey Branch and Friar Branch is identified by the Federal Emergency Management Agency and shown on its Flood Boundary and Floodway Maps dated September 6, 1989. The Floodway Zone for other streams is identified by lines and the notation 'F/W' on the official Zoning Maps. Changes and additions to the Floodway Zone by Tennessee Valley Authority study are hereby adopted and add to or change the Floodway Zone.

Flood Protection System. Those physical structural works for which funds have been authorized, appropriated, and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the area within a community subject to a "special flood hazard" and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood modifying works are those constructed in conformance with sound engineering standards.

Foot-Candle. A unit of measure of illuminance equal to one lumen of light spread over an area of one square foot.

Freeboard. A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. "Freeboard" tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, blockage of bridge or culvert openings, and the hydrological effect of urbanization of the watershed.

Frontage. The boundary line of a lot between a building and the right-of-way or the pavement of a sidewalk.

Functionally Dependent Use. A use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

Garage. An accessory building or portion of a principal building used for the storage of motor vehicles of the occupants of the premises.

Gazebo. A freestanding outdoor accessory structure designed for recreational use and not for habitation.

General Floodplain. Those floodplains designated on the Flood Insurance Rate Maps referenced in Section 3.2, that are not VE or V zones, and that do not have a delineated floodway.

Glare. The effect produced by light from a luminaire with an intensity sufficient to cause annoyance, discomfort, or loss in visual performance and visibility.

Grading. Any stripping, cutting, filling, or stockpiling of earth or land, including the land in its cut or filled condition, to create new grades for development of the lot.

Green Roof. A building roof partially or completely covered with vegetation and a growing medium, planted over a waterproofing membrane. It may also include additional layers such as a root barrier and drainage and irrigation systems.

Gross Floor Area (GFA). Defined in Section 38-10.

Habitable Floor. Any floor usable for living purposes, which includes working, sleeping, eating, cooking or recreation, or a combination thereof. A floor used only for storage purposes is not a Habitable Floor. This definition replaces the definition of Lowest Habitable Floor.

Hardscape. Nonliving components of a landscape design, such as walls, sculpture, paved walkways, patios, stone and gravel areas, benches, fountains, and similar hard-surface areas and objects.

Hedge. A row of bushes or small trees planted close together, especially when demarcating a boundary or forming a barrier.

High Water Stage. The High Water Stage for the Tennessee River (Nickajack Lake) and its tributaries are that elevation determined by the Federal Emergency Management Agency as the one hundred (100) year flood elevation as shown on the flood profiles in its Flood Insurance Study for the City of Chattanooga, Tennessee, dated September 6, 1989, and any other applicable profiles as completed by the Tennessee Valley Authority.

High Water Stage. The 100-year Floodplain Elevation.

Highest Adjacent Grade. The highest natural elevation of the ground surface, prior to construction, adjacent to the proposed walls of a structure.

Historic Structure. Any structure that is:

1. Listed individually in the National Register of Historic Places (a listing maintained by the U.S. Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
2. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
3. Individually listed on the Tennessee inventory of historic places and determined as eligible by states with historic preservation programs which have been approved by the Secretary of the Interior; or
4. Individually listed on the City of Chattanooga, Tennessee inventory of historic places and determined as eligible by communities with historic preservation programs that have been certified either:
    a. By the approved Tennessee program as determined by the Secretary of the Interior or
    b. Directly by the Secretary of the Interior.

Impervious Surface Coverage. Defined in Section 38-10.

Incidental. Subordinate and minor in significance and bearing a reasonable relationship to the primary use.

Infrastructure. Facilities and services needed to sustain land use activities.

Ingress. A place or means of gaining access or entry into a property.

Intensity of Use. Square feet of gross floor area, number of dwelling units, number of employees, or other factor used as a basis for requiring off-street parking or loading facilities.

Letter of Map Change (LOMC). An official FEMA determination, by letter, that amends or revises an effective Flood Insurance Rate Map or Flood Insurance Study. Letters of Map Change include:

Letter of Map Amendment (LOMA). An amendment based on technical data showing that a property was incorrectly included in a designated special flood hazard area. A LOMA amends the current effective Flood Insurance Rate Map and establishes that a specific property or structure is not located in a special flood hazard area.

Conditional Letter of Map Revision Based on Fill (CLOMR-F). A determination that a parcel of land or proposed structure that will be elevated by fill would not be inundated by the base flood if fill is placed on the parcel as proposed or the structure is built as proposed.

Letter of Map Revision Based on Fill (LOMR-F). A determination that a structure or parcel of land has been elevated by fill above the base flood elevation and is, therefore, no longer exposed to flooding associated with the base flood. In order to qualify for this determination, the fill must have been permitted and placed in accordance with the community's floodplain management regulations.

Conditional Letter of Map Revision (CLOMR). A formal review and comment as to whether a proposed flood protection project or other project complies with the minimum NFIP requirements for such projects with respect to delineation of special flood hazard areas. A CLOMR does not revise the effective Flood Insurance Rate Map or Flood Insurance Study; upon submission and approval of certified as-built documentation, a Letter of Map Revision may be issued by FEMA, to revise the effective FIRM.

Letter of Map Revision (LOMR). Letter of Map Revisions are generally based on the implementation of physical measures that affect the hydrologic or hydraulic characteristics of a flooding source and thus result in the modification of the existing regulatory floodway, the effective Base Flood Elevations (BFEs), or the Special Flood Hazard Area (SFHA). The LOMR officially revises the Flood Insurance Rate Map (FIRM) or Flood Boundary and Floodway Map (FBFM), and sometimes the Flood Insurance Study (FIS) report, and when appropriate, includes a description of the modifications. The LOMR is generally accompanied by an annotated copy of the affected portions of the FIRM, FBFM, or FIS report.

Levee. A man-made structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control or divert the flow of water so as to provide protection from temporary flooding.

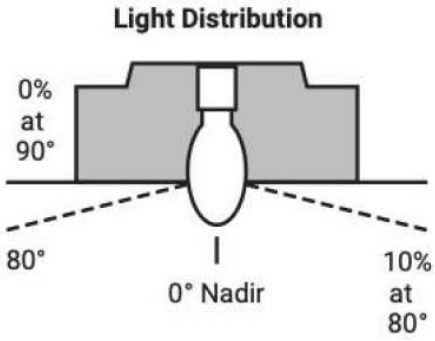
Levee System. A flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.

Light Pole. Pole on which a luminaire is mounted.

Light Trespass. The shining of light produced by a luminaire (light fixture) beyond the boundaries of the property on which it is located.

Lighting, Full Cutoff. A light distribution where the candela value is zero at or above horizontal (90º above nadir) and does not exceed 10% at or above a vertical angle of 80º above nadir.

FULL CUTOFF



Lot. Defined in Section 38-10.

Lot Area. Defined in Section 38-10..

Lot, Corner. Defined in Section 38-10.

Lot Depth. Defined in Section 38-10.

Lot, Interior. Defined in Section 38-10.

Lot of Record. A lot that exists as shown or described on a plat or deed in the records of the local registry of deeds.

Lot Line. Defined in Section 38-10.

Lot Line, Corner. Defined in Section 38-10.

Lot Line, Front. Defined in Section 38-10.

Lot Line, Interior. Defined in Section 38-10.

Lot Line, Rear. Defined in Section 38-10.

Lot Line, Street. Defined in Section 38-10.

Lot, Through. Defined in Section 38-10.

Lot Width. Defined in Section 38-10.

Lowest Floor. For purposes of adopted flood regulations, means the lowest floor of the lowest enclosed area, including a basement. An unfinished or flood resistant enclosure used solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor, provided, that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of applicable flood regulations.

Lumen. A unit of measure of the quantity of light that falls on an area of one square foot, every point of which is one foot from the source of one candela.

Luminaire. A complete lighting unit consisting of a light source, pole, and all mounting brackets, if appropriate, and all necessary mechanical, electrical, and decorative parts.

Manufactured Home Stand. The area of a manufactured home site that has been reserved for the placement of a manufactured home.

Mean Sea Level. The average height of the sea for all stages of the tide.

Mitigation/Mitigate. Methods used to alleviate or lessen the impact of development.

Mixed-Use. A building that contains both non-residential and residential uses.

Mixed-Use Development. The development of a building or tract of land with a variety of complementary and integrated uses permitted in the zone, such as, but not limited to, residential, office, commercial, industrial, public, and recreation, in a compact urban form.

National Geodetic Vertical Datum (NGVD). As corrected in 1929, a vertical control used as a reference for establishing varying elevations within the floodplain.

New Construction. For purposes of adopted flood regulations, means any structure for which the "start of construction" commenced on or after the effective date of the initial floodplain management regulations, and includes any subsequent improvements to such a structure.

New Manufactured Home Park or Subdivision. A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of this ordinance or the effective date of the initial floodplain management ordinance and includes any subsequent improvements to such structure.

Nonresidential Zones. Zones that allow a variety of nonresidential uses such as retail, restaurant, service, and office, where such types of uses are the primary uses allowed, or where a wide range of commercial uses are allowed with residential uses to create mixed-use development.

Nonresidential Use. A structure or land used or intended to be used for nonresidential uses, which includes, but is not limited to, retail, office, entertainment, recreation, public, institutional, and other nonresidential uses. Structures with multi-unit dwellings above ground floor nonresidential uses are considered mixed-use development and considered a nonresidential use for the purposes of this Code.

North American Vertical Datum (NAVD). As corrected in 1988, a vertical control used as a reference for establishing varying elevations within the floodplain.

Off-Street Parking. A space intended for the storage of a motor vehicle on premises other than streets or rights-of-way.

Outlot. An area of land set aside within a retail center for a separate principal building that shares a circulation system and may share common parking with the larger retail center development but is separated from the principal building or buildings, typically located along the property line.

Owner. An individual, firm, association, syndicate, partnership, or corporation having sufficient proprietary interest to seek development of land, such as the owner of the title or a mortgage whose interest is shown of record in the mortgage and conveyance records, a person shown as owner in the records of the tax assessor of the county in which the property is situated, or the agent of any such person and those in possession of a dwelling, dwelling unit, or premises.

Parapet. The extension of a false front or wall above a roofline.

Parking Facility. A parking lot and/or parking structure. Parking facility does not include parking spaces and parking pads for individual dwelling units for single-unit, two-unit, or townhouse dwellings.

Parking Lot. An open, hard-surfaced area, excluding a street or public way, used for the storage of operable vehicles, whether for compensation or at no charge.

Parking Structure. A structure used for the parking or storage of operable vehicles, whether for compensation or at no charge.

Party Wall. A common wall from the foundation and extending continuously through all stories to or above the roof that separates one building from another, but in joint use by each building.

Patio. A hard surface designed and intended for recreational use by people and not used as a parking space.

Pedestrian Access. An entrance providing both ingress and egress, operable to residents at all times and customers during regular business hours, is required to meet the street-facing entrance requirements. Additional entrances off another street, pedestrian area or internal parking area are allowed. The entrance spacing requirements must be met for each building but are not applicable to adjacent or abutting buildings. Entrance spacing is measured from the edge of door to the edge of the next door. An angled entrance may be provided at either corner of a building along the street to meet the street-facing entrance requirements.

Pedestrian Facilities. Sidewalks, shared use paths, and similar facilities intended for pedestrian mobility.

Pergola. An open structure, which may be either freestanding or attached to a structure, that forms a partially shaded pedestrian walkway, passageway, or sitting area, and is constructed of a semi-open roof and vertical posts that support cross-beams and a sturdy open lattice. It may also be used as an extension of a building entryway.

Person. Any individual or group of individuals, corporation, partnership, association, or any other entity, including State and local governments and agencies.

Pervious Paving. A range of sustainable materials and techniques for permeable paving that allow the movement of water through the surface. Gravel and loose rock are not considered pervious paving.

Porch. An architectural feature that projects from the exterior wall of a structure, has direct access to the street level of the building, and is covered by a roof or eaves.

(1) Porch—Unenclosed. A porch that is open on all sides, with the exception of the side attached to the principal building.

(2) Porch—Enclosed. A porch enclosed by walls, screens, lattice or other material. A screened-in porch is an enclosed porch.

Porte Cochere. A permanent structure built over a driveway or entry drive that provides temporary shelter to persons exiting a vehicle, but not serving as the only covered or enclosed vehicle shelter on-site.

Principal Building. A non-accessory structure in which a principal use of the lot on which it is located is conducted.

Principal Building Line. See "building line."

Principal Use. The main use of land or structures as distinguished from an accessory use.

Prominent Entrance. A building entrance that is visually distinctive from the remaining portions of the facade where it is located and is parallel and directly connected to adjacent pedestrian facilities. Entrances that contain at least three of the following are considered a prominent entrance: decorative pedestrian lighting/sconces; architectural details carried through to upper stories; covered porches, canopies, awnings, or sunshades; archways; transom or sidelight windows; terraced or raised planters; common outdoor seating enhanced with specialty details, paving, landscaping, or water features; double doors; stoops or stairs.

Protected Zone: As relates to the Downtown Form-based Code, includes the following zones: A-1, RN-1-3, RN-1-5, RN-1-6, RN-1-7.5, RN-2 and RD.

Reach. A hydraulic engineering term to describe a longitudinal segment of a stream or river influenced by a natural or man-made obstruction. In an urban area, the segment of a stream or river between two consecutive bridge crossings would most typically constitute a reach.

Reasonably Safe from Flooding. Base flood waters will not inundate the land or damage structures to be removed from the Special Flood Hazard Area and that any subsurface waters related to the base flood will not damage existing or proposed structures.

Regulatory Flood Protection Elevation (RFPE). An elevation that is one foot above the elevation of the base flood plus any increases in the water surface elevation caused by encroachments on the floodplain that result from designation of a floodway. These increases in water surface elevations are typically identified in the Floodway Data Tables, found in the Flood Insurance Study.

Repetitive Loss. For purposes of adopted flood regulations, means flood-related damage sustained by a structure on two separate occasions during a ten year period for which the cost of repairs at the time of each such flood event, on the average, equals or exceeds 25% of the market value of the structure before the damage occurred.

Recreational Vehicle. Any vehicle or boat designed for recreational purposes and temporary living quarters while camping and/or travelling and not used as a commercial vehicle including, but not limited to, boat/watercraft, camper trailer, motorized trailer, off-road vehicle, racing car or cycle, travel trailer, and truck camper.

Refuse Container. An exterior waste container designed to be mechanically lifted by and emptied into or carted away by a collection vehicle.

Recycling Containers. A container for the collection of recyclables.

Regulatory Floodway. The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

Residential Zones. Zones where the primary permitted use is residential. Residential zones, within the use structure, may allow very limited compatible nonresidential uses, such as places of worship.

Residential Use. A structure designed and used or intended to be used for residential occupancy by one or more households, such as single-unit, two-unit, townhouse, and multi-unit dwellings. Multi-unit dwellings with ground floor nonresidential uses are considered mixed-use development, and are considered a nonresidential use for the purposes of this Code.

Right-of-Way. A strip of land dedicated for use as a public way. In addition to the roadway, it typically incorporates the curbs, tree lawn, sidewalks, and shoulders.

Riverine. Relating to, formed by, or resembling a river (including tributaries), stream, brook, etc.

Roofline. The top edge of a roof or building parapet, whichever is higher, excluding any cupolas, pylons, chimneys or minor projections.

Satellite Dish Antenna. A dish antenna designed for transmitting signals to a receiver or receiving station or for receiving television, radio, data, communication or other signals from other antennas, satellites or other services.

Setback. Defined in Section 38-10.

Setback, Corner Side. Defined in Section 38-10.

Setback, Front. Defined in Section 38-10.

Setback, Interior Side. Defined in Section 38-10.

Setback, Parking. Defined in Section 38-10.

Setback, Rear. Defined in Section 38-10.

Setback, Street. Defined in Section 38-10.

Shed. An accessory structure, often purchased pre-built or as a kit in pre-fabricated sections, that is not designed to be served by heat or plumbing and does not need to be placed on a permanent foundation. A shed is typically intended to store lawn, garden, or recreational equipment.

Short-Term Vacation Rental. See Article XVII.

Solar Panel. A photovoltaic device capable of collecting and converting solar energy into electricity.

Special Flood Hazard Area. The land in the floodplain within a community which is subject to a one percent or greater chance of flooding in any given year. The area may be designated as Zone A on the FHBM. After detailed ratemaking has been completed in preparation for publication of the FIRM, Zone A usually is refined into Zones A, AO, AH, A1-30, AE or A99.

Special Hazard Area. An area having special flood, mudslide (i.e., mudflow) and/or flood-related erosion hazards, and shown on an FHBM or FIRM as Zone A, AO, A1-30, AE, A99, or AH.

Stacking Space. A space specifically designed and designated as a waiting area for vehicles patronizing a drive-through facility or service bay.

Standpipe. A rigid vertical or horizontal pipe to which fire hoses can be connected, which may be building, ground, or roof mounted.

Start of Construction. The date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement was within 180 days of the permit date. The actual start means either the first placement of permanent construction of a structure (including a manufactured home) on a site, such as the pouring of slabs or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; and includes the placement of a manufactured home on a foundation. Permanent construction does not include initial land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds, not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building. Includes substantial improvements.

State Coordinating Agency. The Tennessee Emergency Management Agency, State NFIP Office, as designated by the Governor of the State of Tennessee at the request of FEMA to assist in the implementation of the NFIP for the State.

Stepback. In building height, a stepback is the required additional distance that upper stories of a structure must be recessed from the facade of the stories below.

Stoop. An exterior floor typically constructed of stone, concrete, and/or masonry, with a finished floor elevation higher than the adjacent ground level, often with steps leading up to it, and utilized primarily as an access platform to a structure. A stoop may be roofed and designed with railings, but cannot be enclosed.

Structural Alteration. Any change, other than incidental repairs, which would prolong the life of supporting members of a structure, such as the addition, removal, or alteration of bearing walls, columns, beams, girders, or foundations.

Structure. A combination of materials that form a construction for use, occupancy, or ornamentation, whether installed on, above, or below the surface of land or water.

Substantial Damage. For purposes of adopted flood regulations, means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50% of the market value of the structure before the damage occurred. Substantial damage also means flood-related damage sustained by a structure on two separate occasions during a ten year period for which the cost of repairs at the time of each flood event, on the average, equals or exceeds 25% of the market value of the structure before the damage occurred.

Substantial Improvement. For purposes of adopted flood regulations, for a building built prior to the enactment of floodplain regulations, any repair, reconstruction, or improvement of a building, the cost of which equals or exceeds 50% of the market value of the building either:

(1) Before the improvement or repair is started; or

(2) If the building has been damaged and is being restored before the damage occurred.

For the purposes of this definition, substantial improvement is considered to occur when the first alteration of any wall, ceiling, floor, or other structural part of the building commences, whether or not that alteration affects the external dimensions of the buildings. The term does not, however, include either:

(1) Any project for improvement of a building to comply with existing state or local health, sanitary, or safety code specifications which are solely necessary to assure safe living conditions.

(2) Any alteration of a building listed on the National Register of Historical Places or a State Inventory of Historic Places.

Substantially Improved Existing Manufactured Home Parks or Subdivisions. Is where the repair, reconstruction, rehabilitation or improvement of the streets, utilities and pads equals or exceeds 50% of the value of the streets, utilities and pads before the repair, reconstruction or improvement began.

Temporary Use. A use established for a limited duration with the intent to discontinue such use upon the expiration of the time period.

Transit-Oriented Development (TOD). The concentration of development nodes, consisting of mixed-use development located along designated public transit corridors and with convenient and easy access to public transit stations.

Transparency. The required amount of window area as a percentage of the specified facade area. Doors are included in ground floor transparency when such doors are designed with glass or other transparent materials. Garage entrances are not included in ground floor transparency.

(1) To qualify as transparent for the calculation, glazing must have a minimum of 60% VLT and no more than 20% VLR. These glazing minimums do not apply to single-unit and two-unit dwellings.

   (i) The following do not meet the ground floor or upper floor transparency requirements and do not count in meeting the standard:

   (ii) Windows with shadowboxes on the interior

   (iii) Glass block

   (iv) Printed window film, regardless of whether it allows views into or out of the building.

   (v) Translucent glass at the ground story.

(2) Visible Light Transmittance (VLT) and Visible Light Reflectance (VLR) are defined as:

(i) Visible Light Reflectance (VLR): The amount of visible light that is reflected out by a glazing system. A high VLR percentage blocks more daylight from passing through the window.

(ii) Visible Light Transmittance (VLT): The amount of light (daylight) that travels through a glazing system. A high VLT percentage allows more daylight to pass through.

(3) Ground story fenestration is measured between two and 12 feet above the abutting sidewalk.

(4) Upper story fenestration is measured from top of the finished floor to the top of the finished floor above. When there is not a floor above, upper story fenestration is measured from the top of the finished floor to the top of the wall plate above.

(5) Transom windows, even if located less than 12 feet above the abutting sidewalk, are not required to meet the ground floor transparency requirement.

Unified Control. The combination of two or more tracts of land wherein each owner has agreed that his tract of land will be developed under the same development approvals.

Use. The purpose or activity for which the land or structure is designed, arranged, or intended, or for which it is occupied or maintained.

Vehicle, Inoperable. A vehicle is classified as inoperable when any of the following applies:

(1) Lacks major or essential mechanical or body parts.

(2) Is junked or partially disassembled.

(3) Has been burned or flooded throughout.

(4) Cannot be driven legally on public streets under State law or City ordinance.

(5) Is otherwise incapable of moving under its own power.

(6) Does not comply with State and City Codes with respect to license and registration.

(7) Has one or more tires missing or not fully inflated.

(8) Is economically impractical to restore to operating condition.

Vehicle, Junk. Any rusted, wrecked, damaged, dismantled, or partially dismantled, inoperative, or abandoned motor vehicle in such a condition that it is economically infeasible to restore the vehicle to an operating condition.

Violation. For purposes of adopted flood regulations, means the failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certification, or other evidence of compliance required in the adopted flood regulations is presumed to be in violation until such time as that documentation is provided.

Watercourse. A channel in which a flow of water occurs either continuously or intermittently in a definitive direction. The term applies to either natural or artificially constructed channels.

Waterfront. Areas adjacent to bodies of water, such as rivers and lakes.

Water Surface Elevation. The height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929, the North American Vertical Datum (NAVD) of 1988, or other datum, where specified, of floods of various magnitudes and frequencies in the floodplains of riverine areas.

White Roof. A roof designed to deliver high solar reflectance, reducing heat transfer to the building and the ability to radiate absorbed, or non-reflected solar energy.

Yard. Defined in Section 38-10.

Yard, Front. Defined in Section 38-10.

Yard, Interior Side. Defined in Section 38-10.

Yard, Corner Side. Defined in Section 38-10.

Yard, Rear. Defined in Section 2.4.

Zoning Lot. A lot or combination of lots within a single block, which is designated by its owner or developer to be used, developed, or built upon as a unit. A zoning lot may coincide with a lot of record or may be comprised of one or more lots of record.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14330, § 1, 2-17-26; Ord. No. 14298, § 1, 12-2-25)

Sec. 38-10. Rules of Measurement

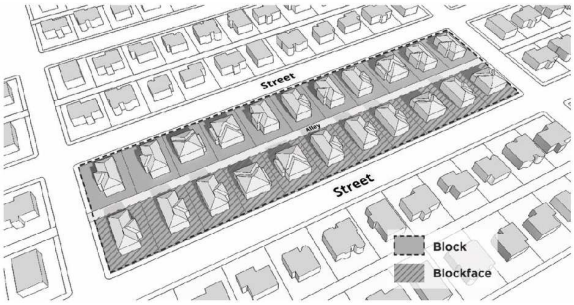
This section provides the rules of measurement for the dimensional standards and locational characteristics within the Code.

(a) **Block and Blockface**

(1) A block is a tract of land bounded by streets, or a combination of streets and railroad rights-of-way or municipal boundary lines.

(2) Blockface is measured as that portion of a block or tract of land facing the same side of a single street and lying between the closest intersecting streets.

BLOCK AND BLOCKFACE



(b) **Build-To Dimensions**

Certain dimensional requirements with the zones require structures to be constructed at a build-to dimension. A build-to requirement is a boundary or alignment, parallel to a lot line, where a structure must be placed. This Code includes the following build-to dimensions:

(1) **Build-To Zone (BTZ)**

A build-to zone (BTZ) is the area on a lot, measured perpendicular from the applicable lot line, where the building must locate within the minimum and maximum range of setback provided. The building facade must be located within the build-to zone.

(2) **Build-Out Percentage (BO%)**

A build-out percentage specifies the percentage of the total lot width that must be occupied by the building facade.

(3) **Build-To Percentage (BT%)**

A build-to percentage specifies the percentage of the building facade that must be located within the build-to zone. Build-to percentage is calculated by building facade, not lot width.

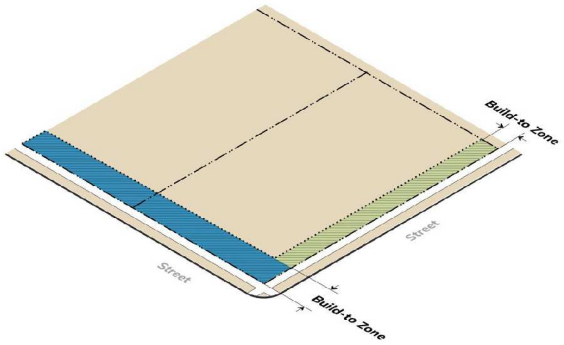
(i) Facade articulation elements, such as window or wall recesses and projections, are included in the calculation of a required build-to percentage.

(ii) Programmed outdoor spaces and outdoor dining areas that are bounded by a building facade parallel to the frontage are included in the calculation of a required build-to percentage.

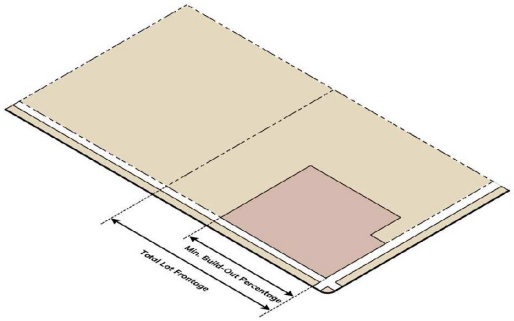
(iii) Open space bounded on three sides by a building, such as courtyards, are included in the calculation of a required build-to percentage.

(iv) On a corner lot, a building facade must be placed within the minimum and maximum setback range for the first 30 feet along the street extending from the block corner, measured from the intersection of the two right-of-way lines.

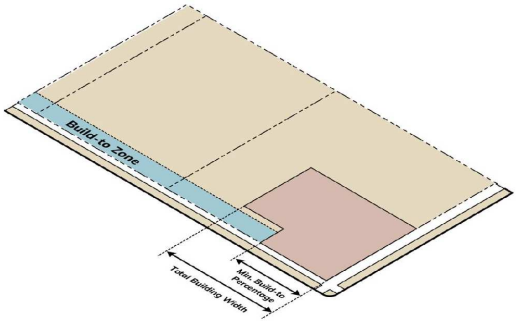
BUILD-TO ZONE (BTZ)



BUILD-OUT PERCENTAGE (BO%)



BUILD-TO PERCENTAGE (BT%)



(c) Building Coverage

Building coverage is the area of a lot covered by roofed buildings and structures measured from the outside of the exterior wall at the ground floor, including covered porches and patios, detached accessory structures, and any projecting structures above ground level.

(1) For covered porches and patios, the entire area under the roof is calculated as building coverage.

(2) Building coverage does not include: uncovered paved parking areas and driveways; uncovered walkways; roof overhangs; swimming pools; uncovered steps, terraces, and decks; and architectural projections.

(d) Building Height

(1) Maximum building height is measured from grade plane to:

(i) The mean height between eaves and ridge for gable and hip roofs.

(ii) The deckline for mansard roofs.

(iii) The midpoint of the highest pitched section of a gambrel roof.

(iv) The highest point of the roof for flat roofs with parapet walls of six feet in height or less. When parapet walls exceed six feet in height, the highest point of the parapet wall.

(2) The following structures or parts thereof are exempt from maximum height limitations, unless otherwise limited by any height restriction imposed by any airport authority, or other similar federal, state, or local authority.

(i) Public utility poles, towers, and wires. Public utilities do not include wireless telecommunications, solar panels, and wind turbines unless operated by a government agency.

(ii) Water and wastewater tanks and standpipes.

(iii) Building appurtenances such as chimneys, parapet walls, skylights, steeples, flag poles, smokestacks, cooling towers, elevator bulkheads, fire towers, monuments, water towers, stacks, stage towers, or scenery lofts, tanks, ornamental towers and spires, rooftop accessory structures, recreational facilities, necessary mechanical appurtenances, or penthouses to house mechanical appurtenances.

BUILDING HEIGHT

(e) Grade Plane

(1) A reference plane representing the average of finished ground level adjoining the building at exterior walls.

(2) Where the finished ground level slopes away from exterior walls, the reference plane is established by the lowest points within the area between the building and the lot line or, when the lot line is more than six feet from the building, between the building and a point six feet from the building.

(f) Gross Floor Area (GFA)

The gross floor area (GFA) of a structure is the sum of the gross horizontal areas of all floors of the structure as measured from the exterior faces of the exterior walls or from the centerline of walls separating two buildings.

(g) Ground Floor Elevation

Ground floor elevation is measured from top of the adjacent curb, or from the crown of the road where no curb exists, to the top of the finished ground floor.

(h) Lot

A lot is the basic development unit for determination of lot area, depth, and other dimensional regulations; or a parcel of land whose boundaries have been established by some legal instrument such as a recorded deed or recorded map and which is recognized as a separate legal entity for purposes of transfer of title. The following describes the types of lot configurations:

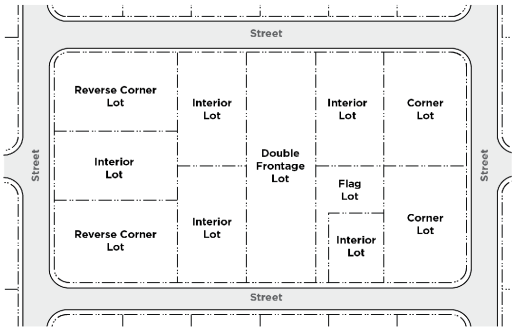
(1) An interior lot is a lot other than a corner or double frontage lot, bounded by two interior side lot lines.

(2) A corner lot is a lot situated at the junction of, and abutting on, two or more intersecting streets.

(3) A double frontage lot is a lot which fronts upon two parallel streets, or which fronts upon two streets which do not intersect at the boundaries of the lot. A double frontage lot is also called a through lot.

(4) A flag lot is platted so that the main building site area (the "flag") is set back from the street on which it fronts and includes an access strip (the "pole") connecting the main building site with the street. No new flag lots, with frontage less than the required minimum, are allowed in the City of Chattanooga.

LOT TYPES



(i) Lot Area

The total area within the boundaries of a lot, excluding any street right-of-way.

(j) Lot Line

A line of record bounding a lot, as indicated on an approved, filed, and recorded subdivision plat, which divides one lot from another lot or from a public or private street or any other public or private space and includes:

(1) A front lot line is the lot line separating a lot from a street right-of-way. The front lot line of a corner lot is the shortest street lot line of a corner lot abutting a street. A front lot line for a double frontage lot is both lot lines that abut a street.

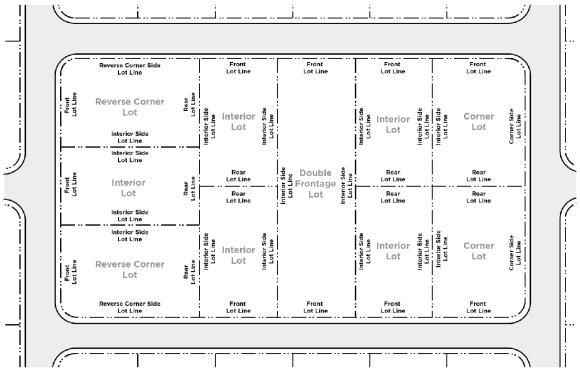
(2) A rear lot line is the lot line opposite and most distant from the front lot line. In the case of triangular or similarly irregularly shaped lots, the rear lot line is a calculated line of ten feet in length entirely within the lot, parallel to and at a maximum distance from the front lot line.

(3) On a corner lot, the corner side lot line and reverse corner side lot line is perpendicular or approximately perpendicular to the front lot line and is the longer street abutting lot line of a corner lot.

(4) On an interior lot, the interior side lot line is perpendicular or approximately perpendicular to the front lot line and abuts an adjacent lot.

(5) A street lot line is any lot line separating a lot from a street right-of-way.

LOT LINES



(k) Lot Width

Lot width is measured at the required front setback of the zone. Where the front setback of the zone is a build-to zone (BTZ), the furthest dimension of the build-to zone is used to measure lot width.

(l) Yards and Setbacks

(1) General Definitions

(i) A yard is the area between the building line of a principal building and the lot line.

(ii) A required setback is the required minimum distance a principal building must be located from a lot line, which is unoccupied and unobstructed by any projections of a principal building, with the exception of permitted encroachments allowed by this Code.

a. A build-to zone is considered a required setback. In the case of a build-to zone, the setback is the defined area (defined by minimum and maximum build-to lines) where the principal building must be located.

(iii) A setback may be equal to or less than a yard.

(iv) A setback is located along the applicable lot line for the minimum depth specified by the zone in which such lot is located.

(2) Front Yard and Front Setback

The front yard and front setback extend the full width of the lot between side lot lines measured perpendicular to the front lot line.

(i) Front Yard: A front yard is the area located between a principal building line and the front lot line.

(ii) Front Setback: A front setback is the required minimum distance per the zone that a principal building must be located from the front lot line.

(iii) For flag lots, the front yard and setback is measured from the rear lot line of the lot that separates the flag portion of the lot from the street.

(iv) Front setback averaging is calculated by averaging the front setback of two adjacent lots on either side of the subject lot. In the case of a lot near or at the end of the block, the total number of lots averaged must equal four lots total along that blockface, beginning with the lot or lots adjacent.

(3) Interior Side Yard and Interior Side Setback

The interior side yard and interior side setback extend along the interior side lot line between the front and rear yard or setback, measured perpendicular to the interior side lot line.

(i) Interior Side Yard: An interior side yard is the area located between a principal building line and the interior side lot line.

(ii) Interior Side Setback: An interior side setback is the required minimum distance per the zone that a principal building must be located from the interior side lot line.

(iii) For single-unit attached dwellings, the interior side yard and interior side setback are only applicable to the side of the unit with no shared wall attachment to another unit. For townhouse developments, the interior side yard and interior side setback are only applicable to end units of the overall townhouse building.

(4) Corner Side Yard and Corner Side Setback

The corner side yard and corner side setback extend along the corner side lot line between the front yard or front setback and the rear lot line, measured perpendicular to the corner side lot line.

(i) Corner Side Yard: A corner side yard is the area located between a principal building line and the corner side lot line.

(ii) Corner Side Setback: A corner side setback is the required minimum distance per the zone that a principal building must be located from the corner side lot line.

(5) Reverse Corner Side Yard and Reverse Corner Side Setback

The reverse corner side yard and reverse corner side setback extend along the corner side lot line between the front yard or front setback and the rear lot line, measured perpendicular to the reverse corner side lot line.

(i) Reverse Corner Side Yard: A reverse corner side yard is the area located between a principal building line and the corner side lot line.

(ii) Reverse Corner Side Setback: A reverse corner side setback is the required minimum distance per the zone that a principal building must be located from the reverse corner side lot line.

(6) Rear Yard and Rear Setback

The rear yard and rear setback extend between interior side lot lines, measured perpendicular to the rear lot line.

(i) Rear Yard: A rear yard is the area located between a principal building line and the rear lot line.

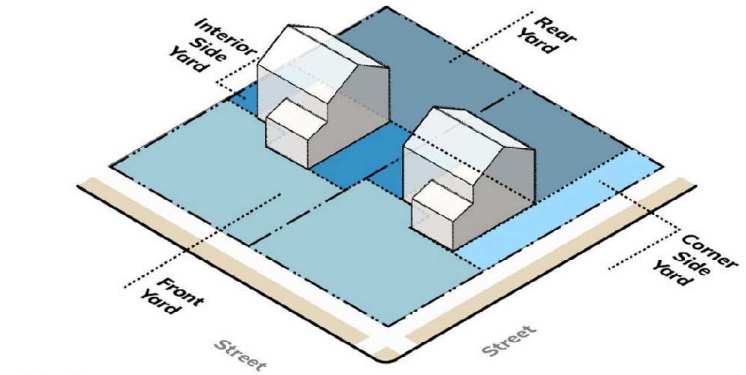
(ii) Rear Setback: A rear setback is the required minimum distance per the zone that a principal building must be located from the rear lot line.

(iii) In the case of a corner lot, the rear yard and rear setback extend between the interior side lot line to the required corner side setback, measured perpendicular to the rear lot line.

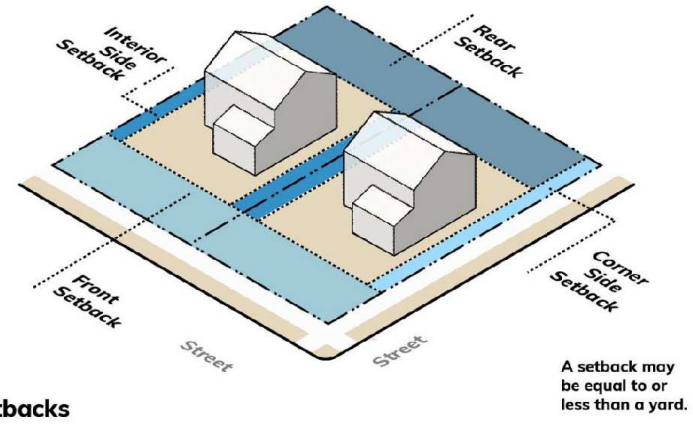
(7) Yard and Setback Requirements for Double-Frontage Lots

For double-frontage lots, both the front and the rear required setbacks must meet the required front setback of the zone. In the case of a double-frontage lot, one of the front setbacks are considered a rear yard for the purposes of applying the accessory structure regulations of this Code; the required dimension of the front setback still applies.

SETBACKS AND YARDS

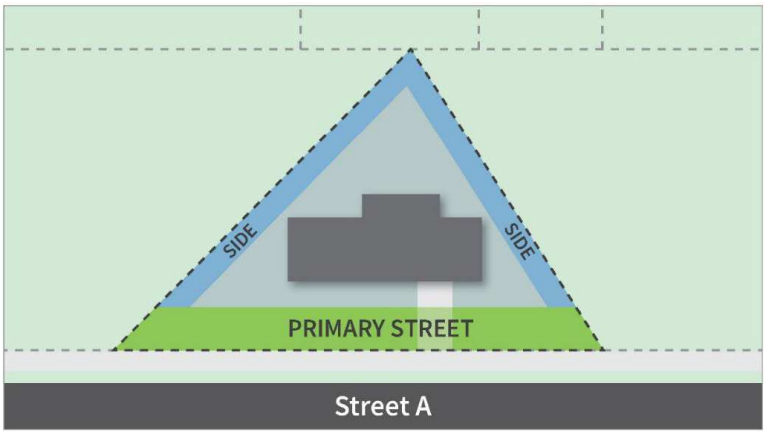


Yards

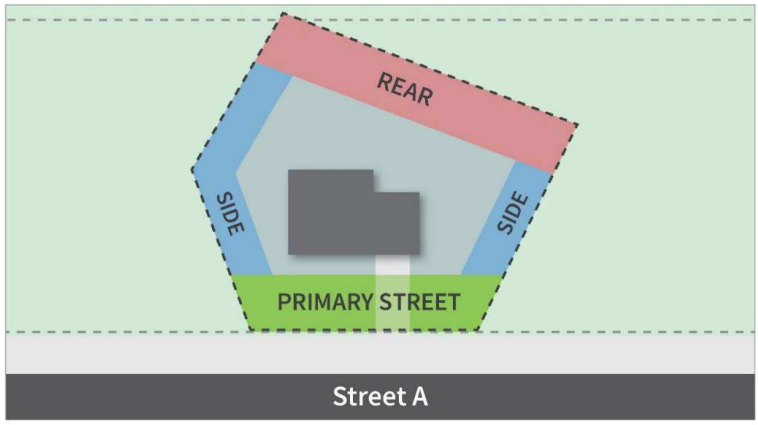


Setbacks

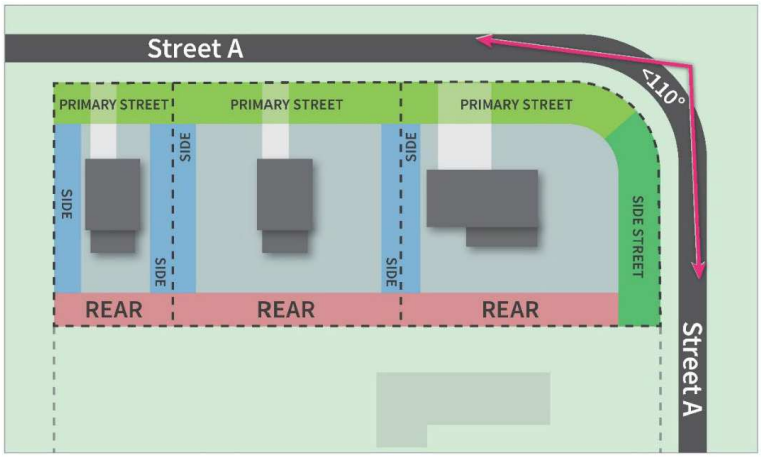
(8) Setbacks for Irregular Shaped Lots.



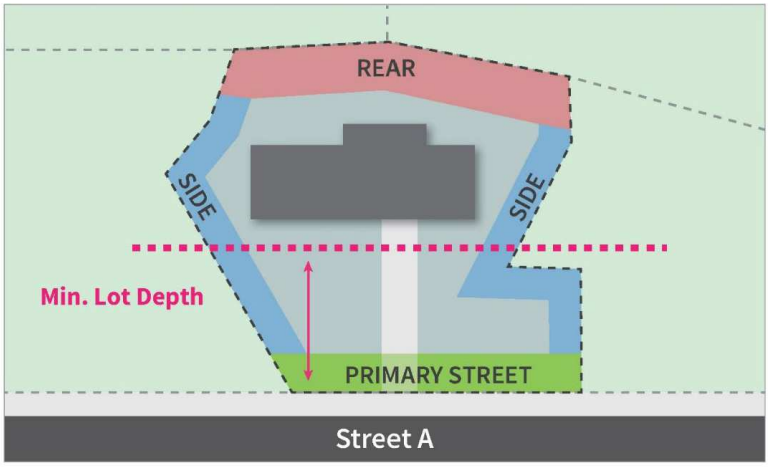
a. In instances where a lot has no definable rear property line (e.g. triangular shaped lot), there is no rear setbacks.



b. On irregularly shaped lots, the rear lot line is opposite or approximately opposite to the front lot line. The side lot lines are perpendicular or approximately perpendicular to the front lot line.



c. In instances where a lot has a curved frontage so that any two adjacent 100-foot chords thereof form an angle of 110 degrees or less, as measured along the centerline of the street, the lot shall be determined to be a corner lot.



d. On irregularly shaped lots, lot lines parallel or opposite the primary street will be considered to be side lot lines when the lot line is closer to the primary street than the minimum depth.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14320, § 1, 1-20-26)

ARTICLE III. ZONES & ZONING MAP

Sec. 38-11. Zones

In order to carry out the purpose and intent of this Code, the City is divided into the following zones:

(a) Residential Zones

RN-1-7.5 Residential Neighborhood Zone

RN-1-6 Residential Neighborhood Zone

RN-1-5 Residential Neighborhood Zone

RN-1-3 Residential Neighborhood Zone

RN-2 Residential Neighborhood Zone

RN-3 Residential Neighborhood Zone

TRN-1 Traditional Residential Neighborhood Zone

TRN-2 Traditional Residential Neighborhood Zone

TRN-3 Traditional Residential Neighborhood Zone

TRN-4 Traditional Residential Neighborhood Zone

(b) Mixed-Use and Commercial Zones

C-NT Neighborhood Transition Commercial Zone

C-N Neighborhood Commercial Zone

C-TMU Transitional Mixed-Use Commercial Zone

C-C Commercial Corridor Zone

C-R Regional Commercial Zone

C-MU1 Commercial Mixed-Use 1 Zone

C-MU2 Commercial Mixed-Use 2 Zone

(c) Form-Based Code Zones

See Article VI

(d) Industrial Zones

I-L Light Industrial Zone

I-H Heavy Industrial Zones

I-X Industrial Extraction Zone

I-MU Industrial Mixed-Use Zone

(e) Special Purpose Zones

A-1 Urban Agricultural Zone

INST Institutional Zone

OS Open Space Zone

R-MH Manufactured Home Zone

TOD Transit-Oriented Development Overlay Zone

Lovell Field Gateway Overlay Zone

FAA Aviation Overlay Zone

Airport Use Zone

F/W Floodway

F/H Flood Hazard
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-12. Zoning Map

(a) Establishment of the Official Zoning Map

(1) The location and boundaries of the zones established by this Code are shown and maintained as part of the Geographic Information System (GIS) of the Chattanooga-Hamilton County Regional Planning Agency (RPA). The RPA also has the responsibility for maintenance of the Official Zoning Map.

(2) The zoning GIS layer constitutes the City of Chattanooga's Official Zoning Map and is incorporated into, and the same is made a part of this Code by reference, and upon its introduction and passage, is an effective and operative part thereof.

(3) The Executive Director of the Regional Planning Agency, or their designee, will revise the Official Zoning Map when amendments are passed by the governing body.

(4) No unauthorized person may alter or modify the Official Zoning Map. Errors in the Official Zoning Map will be corrected as they are discovered, and the corrected information shown on the GIS system.

(b) Interpretation of Boundary Lines

(1) Where a zone boundary line is shown as being within or along a public or private right-of-way, or an extension, or as being within or along a non-navigable stream, the boundary is the centerline of that right-of-way, or extension, or stream.

(2) When a public or private right-of-way is abandoned then the new zone boundary line is the prior centerline of that former right-of-way.

(3) When a public or private right-of-way is abandoned then the new zone boundary line is the prior centerline of that former right-of-way.

(4) Where a zone boundary line is shown as along a lot line, the boundary is that lot line.

(5) Where the location of a zone boundary line is designated by a number of feet, that distance controls.

(6) Where a zone boundary line is shown as being along a railroad right-of-way, the boundary line of that railroad right-of-way controls.

(7) Where a zone boundary line is shown as along a navigable waterway and is not otherwise fixed, the boundary is the centerline of the waterway.

(8) Unless specified otherwise by the amending ordinance, overlay zone boundaries on the Official Zoning Map that approximately follow zone lines are interpreted as being coincident with those zone lines.

(9) Where the application of the interpretation rules leaves a reasonable doubt as to the boundaries between two zones, the regulations of the more restrictive zone govern the entire parcel in question, unless otherwise determined by the Board of Appeals.

(c) Administrative Mapping Errors

Where it is determined that due to an administrative error, the Official Zoning Map zone boundary which encompasses property that was never intended to be included or fails to depict property which was

intended to be included in the zone boundary, and such determination is supported by official documentation, the Executive Director of the Regional Planning Agency, or their designee, may modify the Official Zoning Map to accurately reflect the proper zone boundary.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14297, § 1, 12-2-25; Ord. No. 14297, § 1, 12-2-25)

Sec. 38-13. Zoning for Newly Annexed Areas

Property annexed to the City of Chattanooga shall be temporarily reclassified from its former zoning classification to its most equivalent zone. The temporary classifications shall be and remain in full force and effect during the interim period between the effective date of the annexation and the adoption of an official zoning plan for the area by the City Council, as hereinafter provided, and the building inspector may issue building permits during said interim based upon such temporary zoning.

The Planning Commission, within 90 days of the effective date of annexation, will recommend a zoning plan for newly annexed areas of the City to the City Council. Following the receipt of the Planning Commission recommendation, the City Council, after giving notice as required in Article XV regarding amendments, will adopt a zoning plan as an amendment to the Official Zoning Map for the newly annexed area.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE IV. RESIDENTIAL ZONES

Note: (a) Developments participating in the Voluntary Incentives Program are subject to the lot area standard reductions and maximum height increases as detailed in Article XIX. Voluntary Incentives Program, Sec. 38-106 Incentives.

Sec. 38-14. Purpose

(a) RN-1-7.5 Residential Neighborhood Zone

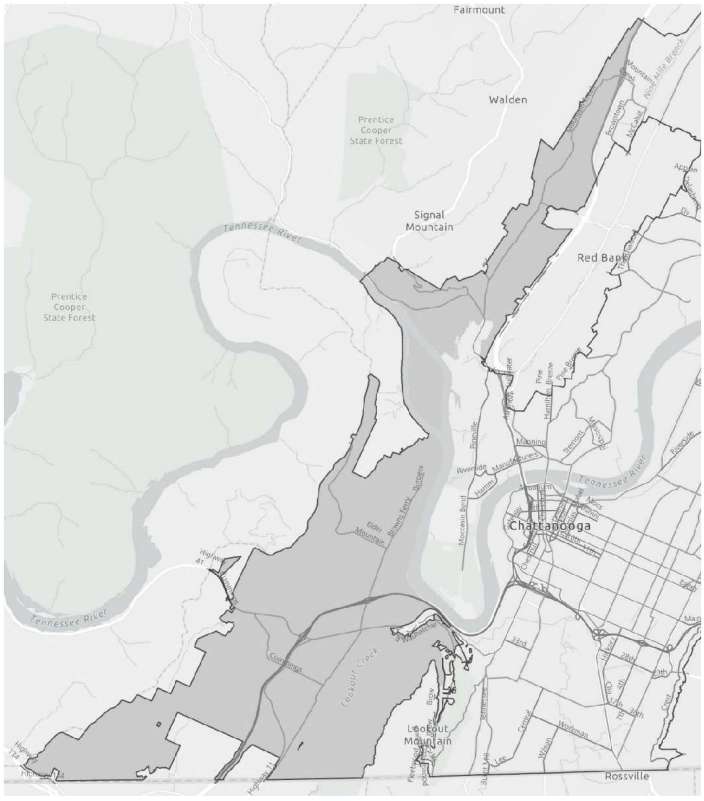
The RN-1-7.5 Residential Neighborhood Zone is intended to accommodate the special nature of the City's valleys, ridges, creeks and the Tennessee River that may limit the defined area's connectivity to the rest of the City's transportation and/or sewer infrastructure network. This zone accommodates those limitations by maintaining the neighborhood environment, which is predominantly characterized by single-unit homes, many of which are or will be developed with septic, on lots of 7,500 square feet or greater.

The area designated for this zone is geographically constrained as follows:

Beginning at the southwesternmost point of the City of Chattanooga boundary, thence continuing eastwardly along said boundary some 125,139 feet to its intersection with the northern side of the of the Incline Railroad Right-of-way; thence some 565 feet east along said right-of-way to a point in the City of Chattanooga boundary; thence following said boundary north some 2,412 feet to its intersection with the western side of the Hardy Trail; thence following said road northwest some 52 feet to its intersection with the western side of Cravens Road; thence continues north along said road some 653 feet to a point in the City of Chattanooga boundary; thence follows said boundary northwest for some 2,880 feet to its intersection with Cravens Road; thence follows said road on its southern side southeast some 810 feet to a point in the City of Chattanooga boundary; thence follows said boundary northwest some 2,670 feet to a point in said boundary; thence continues northeast some 81 feet from said point to its intersection with Cummings Highway; thence follows the southern edge of said road northwest some 435 feet to a point in the City of Chattanooga boundary; thence follows said boundary northwest some 13,041 feet to a point on the boundary; thence continues northeast some 230 feet to the western edge of the Tennessee

River; thence follows northwest along the western edge of said river for some 16,758 feet; thence continues north across the river some 858 feet to the eastern side of Williams Island; thence continues along said island for approximately 6,231 feet; thence continues across the Tennessee River northeast some 786 feet to its intersection with Baylor Lake stream; thence follows along the northern edge of Baylor Lake stream northwest some 612 feet to its intersection with Baylor Lake; thence follows along the northern edge of the Baylor Lake east some 1,628 feet to its intersection with Mountain Creek; thence follows along the northern edge of Mountain Creek some 4,455 feet north to its intersection with Signal Mountain Road; thence follows along the western side of said road some 230 feet south to its intersection with Mundy Street; thence follows the southern side of said street east some 678 feet to its intersection with Runyan Drive; thence follows said road south some 3,886 feet to its intersection with Highway 127; thence follows said road some 749 feet southeast to its intersection with a point in the City of Chattanooga boundary; thence follows along said boundary northwest some 27,957 feet until its intersection with US Highway 27; thence follows said road north along the western edge to its intersection with the City of Chattanooga boundary; thence follows said boundary south until it meets back at the point of origin for the RN-1-7.5 boundary.

The City of Chattanooga boundary is as of 05/30/2024.



(b) RN-1-6 Residential Neighborhood Zone

The RN-1-6 Residential Neighborhood Zone is intended to accommodate a neighborhood environment predominantly characterized by single-unit homes on lots of 6,000 square feet or greater.

(c) RN-1-5 Residential Neighborhood Zone

The RN-1-5 Residential Neighborhood Zone is intended to accommodate a neighborhood environment predominantly characterized by single-unit homes on lots of 5,000 square feet or greater.

(d) RN-1-3 Residential Neighborhood Zone

The RN-1-3 Residential Neighborhood Zone is intended to accommodate single-unit homes on lots of 3,000 square feet or greater.

(e) RN-2 Residential Neighborhood Zone

The RN-2 Residential Neighborhood Zone is intended to accommodate a neighborhood environment characterized by a mixture of single-unit homes—both attached and detached—and two-unit homes and townhouse dwellings.

(f) RN-3 Residential Neighborhood Zone

The RN-3 Residential Neighborhood Zone is intended to accommodate mixed residential neighborhoods consisting of a range of dwelling types that may include single-unit—both attached and detached, two-unit, townhouse, and multi-unit dwellings.

(g) TRN-1 Traditional Residential Neighborhood Zone

The TRN-1 Traditional Residential Neighborhood Zone is intended to accommodate a neighborhood environment with a mixture of dwelling types that may include single-unit—both attached and detached, two-unit, three-unit, and four-unit dwellings.

(h) TRN-2 Traditional Residential Neighborhood Zone

The TRN-2 Traditional Residential Neighborhood Zone is intended to accommodate a neighborhood environment consisting of a mix of dwelling types that may include single-unit—both attached and detached, two-unit, three-unit, four-unit, and townhouse dwellings. Small multi-unit dwellings of no more than six units are also allowed.

(i) TRN-3 Traditional Residential Neighborhood Zone

The TRN-3 Traditional Residential Neighborhood Zone is intended to accommodate a neighborhood environment characterized by a mixture of single-unit—both attached and detached, two-unit, three-unit, four-unit, townhouse, and multi-unit dwellings.

(j) TRN-4 Traditional Residential Neighborhood Zone

The TRN-4 Traditional Residential Neighborhood Zone is intended to accommodate a dense neighborhood environment characterized by a mixture of townhouse and multi-unit dwellings.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-15. Uses

(a) Article IX lists principal, temporary, and accessory uses allowed within the residential zones.

(b) Residential homes for persons with a disability and/or aged persons and compliance with Federal Law.

The City of Chattanooga has entered into a Consent Decree with the United States of America in United States of America v. City of Chattanooga, Case No. 1:23-CV-258, E.D. Tenn. 2023. Pursuant to that Consent Decree, all city housing and zoning provisions shall comply with the following language contained in Section 15 as follows:

(1) Persons with disabilities shall not be denied housing opportunities on the basis of disability, nor shall they be excluded from participation in or denied the benefits of the City's services, programs, or activities, or otherwise be subjected to discrimination through the administration of the City's land development or zoning practices;

(2) Housing providers for persons with disabilities seeking approval for uses allowed by right under Tennessee state law and/or local land use or zoning laws shall not be subjected to needless or unduly burdensome administrative hurdles, including the requirement to obtain unnecessary special use permits or other approvals;

(3) All residences comprised of related or unrelated persons with disabilities shall operate as of right in all residential zoning districts in the City to the same extent and under the same terms and conditions as residences comprised of non-disabled persons;

(4) The provisions required by this section shall protect residences that house persons with disabilities, regardless of whether they operate on a commercial basis or non-profit basis as long as such residences meet the requirements of the number of persons set forth in this section;

(5) Related and/or unrelated persons with disabilities shall be included in the definition of family in the City's Zoning Ordinance to no lesser extent than individuals without disabilities;

(6) The protections afforded to housing for persons with disabilities under Tenn. Code Ann. § 13-24-101 et seq. shall apply to all residences, whether temporary or permanent, including transitional and other forms of supported housing; and

(7) The provisions required by this section shall protect persons with disabilities who have mental illness, subject to the exceptions set forth in Tenn. Code Ann. § 13-24-101, intellectual disabilities, or emotional disabilities to the same extent that it protects persons with disabilities or conditions other than mental illnesses, intellectual disabilities, or emotional disabilities to the extent that they are protected under State and Federal law.

(c) In addition to use standards that may be applicable to allowed principal, temporary, and accessory uses within the residential zones, Article IX contains specific controls on multi-unit and townhouse development as follows.

(1) Section 9.3.M contains limitations on the number of units within a multi-unit development in the TRN-2 Zone.

(2) Section 9.3.M contains limitations on the number of attached units within a townhouse development in the TRN-2 Zones.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-16. Residential Zone Dimensional Standards

(a) Table 38-16.1: Residential Zone Dimensional Standards establishes the dimensional standards for the residential zones. These regulations apply to all uses within each zone unless a different standard is listed for a specific use.

1. Minimum Suburban Infill Lot Frontage for RN-1-7.5: The minimum frontage and for Suburban Infill Lots shall be determined as follows:

Applicability. The Minimum Suburban Infill Lot Frontage Regulations shall apply only to:

a. Lots zoned RN-1-7.5.

b. Proposed lot frontage is less than one hundred twenty (120) feet.

c. Lots fronting an existing public street.

d. Lots served by sewers.

2. Exceptions. This rule shall not apply to:

a. Planned Unit Developments (PUDs).

b. Lots created on a new street.

c. The consolidation of lots.

d. Lots at the terminus of permanent dead-end streets with thirty-five (35) feet of street frontage or more.

e. Lots that are a combination of existing lots where all of the lots are as large or larger than the previous lots and have equal or greater frontage than the previous lots.

3. Compatible Lots. The following properties shall be used to determine the block character for purposes of establishing lot compatibility:

a. Lots with on the same and opposing block face within three hundred (300) feet of the boundary of the boundary of the property proposed to be subdivided.

b. Lots abutting each quadrant of an intersection when the proposal involves a corner lot; and

c. Lots that abut or are directly across a public way, but not to the rear of the property, from the property proposed to be subdivided.

4. Excluded Lots. The following properties shall not be used to determine the block character for purposes of establishing lot compatibility:

a. Properties zoned non-residential or multi-family.

b. Properties zoned from single-family, but used for legal non-residential uses or other legal non-conforming uses.

c. Properties where development continuity cannot be provided due to a natural or man-made barrier, including but not limited to, arterial or collector streets, public land, railroad right-of-way, waterways, or

d. Properties that face a block face within a non-residential zoning district.

e. Interior lots located to the rear of another lot but with a narrow portion extending to the street when that narrow portion is less than the frontage required by the Chattanooga Zoning Ordinance.

5. Lot Frontage Compatibility Calculation. New residential infill lots shall have a minimum lot frontage that is no smaller than the smallest frontage on the same and opposing block face within three hundred (300) feet of the lot to be subdivided.

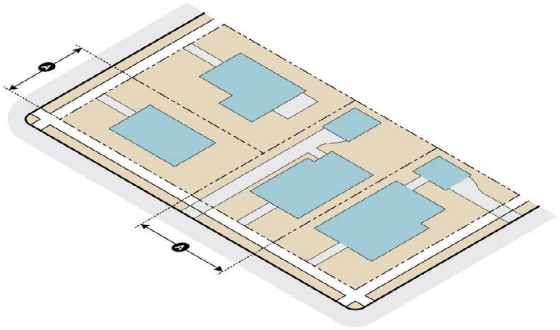
a. The new infill lot frontage is not required to exceed one hundred twenty (120) feet.

b. The new infill lot frontage shall not be less than 60'.

c. Each lot frontage shall be the actual access to the property as well as the legal access (e.g. — no sole access via common easement).

6. Applications for variances to the minimum lot frontage compatibility calculation and minimum Suburban Infill front yard setback, shall be made to the Board of Appeals.

LOT STANDARDS DIAGRAM



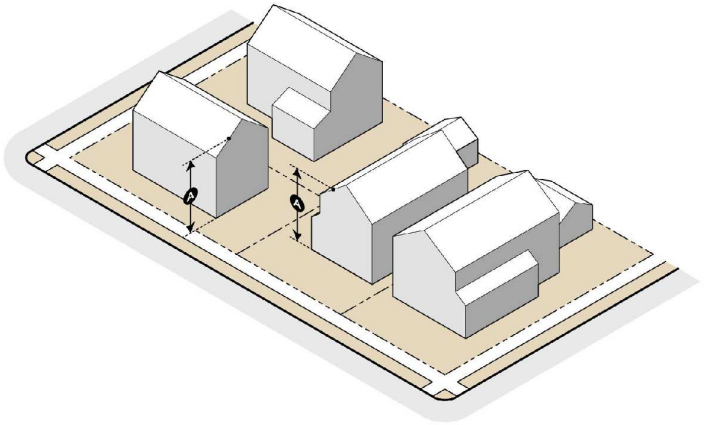
A = Lot Width

Table 38-16.1: Residential Zones Dimensional Standards—Lot Standards						
	RN-1-7.5	*RN-1-6*	*RN-1-5*	*RN-1-3*	*RN-2*	*RN-3*
Minimum Lot Area	7,500sf NR: 10,000sf	6,000sf NR: 10,000sf	5,000sf NR: 10,000sf	3,000sf NR: 10,000sf	SU: 5,000sf SU-A: 2,750sf/unit 2U: 5,500sf TH: 1,100sf/unit NR: 10,000sf	SU: 5,000sf SU-A: 2,750sf/unit 2U: 5,500sf 3U, 4U: 6,500sf TH: 1,100sf/unit MU: 950sf/unit NR: 10,000sf

Table 38-16.1: Residential Zones Dimensional Standards—Lot Standards						
	RN-1-7.5	*RN-1-6*	*RN-1-5*	*RN-1-3*	*RN-2*	*RN-3*
Minimum Lot Width	60' or average of blockface, whichever is less 60' or the Minimum Lot Frontage Required within the Minimum Suburban Infill Lot Frontage Per Section 38-16(a)(1)	55' or average of blockface, whichever is less NR: 75'	50' or average of blockface, whichever is less NR: 75'	25' NR: 75'	SU, 2U: 50' or average of blockface, whichever is less SU-A: 25'/unit TH: 15'/unit NR: 75'	SU, 2U, 3U, 4U: 50' or average of blockface, whichever is less SU-A: 25'/unit TH: 15'/unit MU: 50' NR: 75'
Maximum Building Coverage	60% NR: 50%	60% NR: 50%	60% NR: 50%	60% NR: 50%	60% (TH is exempt from this standard) NR: 50%	60% (TH is exempt from this standard) NR: 50%

Table 38-16.2: Residential Zones Dimensional Standards—Lot Standards				
	TRN-1	*TRN-2*	*TRN-3*	*TRN-4*
Minimum Lot Area	SU: 5,000sf SU-A: 2,750sf/unit 2U: 5,500sf 3U, 4U: 5,500sf NR: 10,000sf	SU: 5,000sf SU-A: 2,750sf/unit 2U, 3U, 4U: 5,500sf 5U, 6U: 6,500sf TH: 1,100/unit NR: 10,000sf	SU: 3,000sf SU-A: 2,750sf/unit 2U: 4,000sf 3U, 4U: 5,500sf TH: 1,100sf/unit MU: 950sf/unit NR: 10,000sf	TH: 1,100sf/unit MU: 950sf/unit NR: 10,000sf
Minimum Lot Width	SU, 2U, 3U, 4U: 40' or average of blockface, whichever is less SU-A: 20'/unit NR: 75ft	SU, 2U, 3U, 4U: 40' or average of blockface, whichever is less SU-A: 20'/unit 5U, 6U: 40'/unit TH: 15'/unit NR: 75'	SU: 25' SU-A: 20'/unit 2U, 3U, 4U: 40' TH: 15'/unit MU: 50' NR: 75'	TH: 15'/unit MU: 50' NR: 75'
Maximum Building Coverage	60% NR: 50%	60% (TH is exempt from this standard) NR: 50%	60% (TH is exempt from this standard) NR: 60%	60% (TH is exempt from this standard) NR: 50%

HEIGHT DIAGRAM

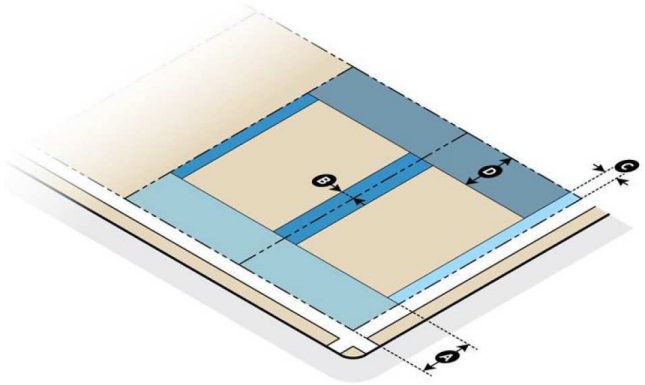


A = Maximum Building Height

Table 38-16.3: Residential Zones Dimensional Standards—Height						
	RN-1-7.5	*RN-1-6*	*RN-1-5*	*RN-1-3*	*RN-2*	*RN-3*
Maximum Building Height1	35'	35'	35'	35'	35'	35'
						MU: 65'[1]
[1] Maximum height of a structure is limited to 35' within 35' of an RN-1-7.5, RN-1-6, RN-1-5, RN-1-3, RN-2, TRN-1, or TRN-2 zone. This limitation applies only to that portion of a structure within the 35' distance.						

Table 38-16.4: Residential Zones Dimensional Standards—Height				
	TRN-1	*TRN-2*	*TRN-3*	*TRN-4*
Maximum Building Height1	35'	35'	35'	35'
			MU: 50'	MU: 65'[1]
[1] Maximum height of a structure is limited to 35' within 35' of an RN-1-6, RN-1-5, RN-2, TRN-1, or TRN-2 zone. This limitation applies only to that portion of a structure within the 35' distance.				

SETBACK STANDARDS DIAGRAM



A = Front Setback

B = Interior Side Setback

C = Corner Side Setback

D = Rear Setback

Table 38-16.5: Residential Zones Dimensional Standards—Setbacks						
	RN-1-7.5	*RN-1-6*	*RN-1-5*	*RN-1-3*	*RN-2*	*RN-3*
Minimum Front Setback[1]	25' or average setback (See Sec. 38-10 (l) (2) (iv)), whichever is less	25' or average setback (38-10 (l) (2) (iv)), whichever is less	15' or average setback (See Sec. 38-10 (l) (2) (iv)), whichever is less	15' or average setback (See Sec. 38-10 (l) (2) (iv)), whichever is less	15' or average setback (See Sec. 38-10 (l) (2) (iv), whichever is less	15' or average setback (See Sec. 38-10 (l) (2) (iv)), whichever is less
	Where adjacent lots are not developed, 25'	Where adjacent lots are not developed, 25'	Where adjacent lots are not developed, 15'	Where adjacent lots are not developed, 15'	Where adjacent lots are not developed, 15'	Where adjacent lots are not developed, 15'
				From any Interior Public Street: Fifteen (15) feet; ten (10) feet if rear parking and loading is provided	From any Interior Public Street: Fifteen (15) feet; ten (10) feet if rear parking and loading is provided	From any Interior Public Street: Fifteen (15) feet; ten (10) feet if rear parking and loading is provided
Minimum Interior Side Setback	5'	5'	5'	5'	5'	Structures 40' or less in height: 5' Structures over 40' in height: 10' plus 1' of additional setback for each 2' of building height over 40'

Table 38-16.5: Residential Zones Dimensional Standards—Setbacks						
	RN-1-7.5	*RN-1-6*	*RN-1-5*	*RN-1-3*	*RN-2*	*RN-3*
Minimum Corner Side Setback	25'	15'	Side/ Corner: alley 5' Side/ Corner: street 10'	Side/ Corner: alley 5' Side/ Corner: street 10'	15'	15'
Minimum Rear Setback	25'	25'	25'	25'	25'	Structures 40' or less in height: 25' Structures over 40' in height: 35'

[1] For purposes of this section, the term "interior street" refers to any street built as part of the development, both sides of which are zoned for the applicable zone.

Table 38-16.6: Residential Zones Dimensional Standards—Setbacks				
	TRN-1	*TRN-2*	*TRN-3*	*TRN-4*
Front Setback	Build-To Zone (BTZ): Average setback of adjacent lots plus or minus 5' However, if average setback is more than 15', then 15' plus or minus 5' Where adjacent lots are not developed, 15' plus or minus 5'	Build-To Zone (BTZ): Average setback of adjacent lots plus or minus 5' However, if average setback is more than 15', then 15' plus or minus 5' Where adjacent lots are not developed, 15' plus or minus 5'	Build-To Zone (BTZ): Average setback of adjacent lots plus or minus 5' However, if average setback is more than 15', then 15' plus or minus 5' Where adjacent lots are not developed, 15' plus or minus 5'	Build-To Zone (BTZ): Average setback of adjacent lots plus or minus 5' However, if average setback is more than 15', then 15' plus or minus 5' Where adjacent lots are not developed, 15' plus or minus 5'
Minimum Interior Side Setback	5'	5'	Structures 40' or less in height: 5' Structures over 40' in height: 8', plus 1' of additional setback for each 2' of building height over 40'	Structures 40' or less in height: 5' Structures over 40' in height: 8', plus 1' of additional setback for each 2' of building height over 40'
Minimum Corner Side Setback	10'	10'	10'	10'

Table 38-16.6: Residential Zones Dimensional Standards—Setbacks				
	TRN-1	*TRN-2*	*TRN-3*	*TRN-4*
Minimum Rear Setback	10' unless abutting an alley, then 5'	10' unless abutting an alley, then 5'	Structures 40' or less in height: 5' Structures over 40' in height abutting an alley: 5' Structures over 40' in height not abutting an alley: 15'	Structures 40' or less in height: 5' Structures over 40' in height abutting an alley: 5' Structures over 40' in height not abutting an alley: 15'

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14202, § 1, 2-18-25; Ord. No. 14238, § 1, 5-20-25; Ord. No. 14253, § 1, 7-15-25)

Sec. 38-17. Additional Standards

(a) General Site Development Standards

See Article X for additional on-site development standards and requirements.

(b) Accessory Structures

See Article XI for accessory structure standards and requirements.

(c) Parking, Loading, and Access

See Article XII for parking, loading, and access standards and requirements.

(d) Landscape

See Article XIII for landscape, buffer, and screening standards and requirements.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE V. MIXED-USE & COMMERCIAL ZONES

Sec. 38-18. Purpose

(a) C-NT Neighborhood Transition Commercial Zone

The C-NT Transition Zone is intended to accommodate low intensity office and service uses as well as single-unit dwellings. The C-NT Zone also accommodates conversions of existing single-unit detached dwellings to commercial uses, creating a unique mixed-use character. The zone serves as a transition between residential neighborhoods and higher intensity commercial areas.

(b) C-N Neighborhood Commercial Zone

The C-N Neighborhood Commercial Zone is intended to accommodate convenience commercial and personal services that serve nearby residential neighborhoods. The C-N Zone is generally located within neighborhoods and maintains pedestrian connections to adjacent residential areas.

(c) C-TMU Transitional Mixed-Use Commercial Zone

The C-TMU Transitional Mixed-Use Commercial Zone accommodates a moderately intense mix of commercial and residential uses, supporting and serving as a transitional area between neighborhoods and more intensely developed commercial or mixed-use areas.

(d) C-C Commercial Corridor Zone

The C-C Commercial Corridor Zone is intended to accommodate commercial development along corridors with a mixture of residential, commercial, service, and institutional uses, that serve the adjacent neighborhoods and the community at large.

(e) C-R Regional Commercial Zone

The C-R Regional Commercial Zone is intended to accommodate more auto-oriented commercial activities, which attract a regional consumer base. The C-R Zone is generally located along major commercial arterials. Townhouse and multi-unit dwellings are allowed in the CR Zone.

(f) C-MU Commercial Mixed-Use Zone

The C-MU Commercial Mixed-Use Zone accommodates traditional urban mixed-use development, with a mix of commercial and residential uses in a predominantly vertically mixed-use form. In order to address the different characteristics of this zone within the City, two C-MU Subzones are established: the C-MU1 Zone and the C-MU2 Zone. The primary distinction between these two subzones is permitted height and the associated development intensity, with the C-MU2 Zone being the most intense.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

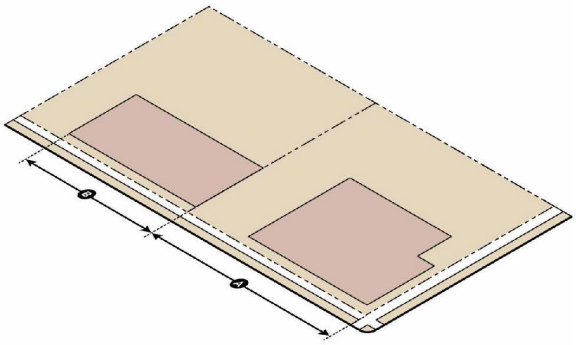
Sec. 38-19. Uses

Article IX lists principal, temporary, and accessory uses allowed within the mixed-use and commercial zones.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-20. Mixed-Use and Commercial Zones Dimensional Standards

Table 38-20.1: Mixed-Use and Commercial Zones Dimensional Standards establishes the dimensional standards for the mixed-use and commercial zones. These regulations apply to all uses within each zone unless a different standard is listed for a specific use. Developments participating in the Voluntary Incentives Program are subject to the lot area standard reductions and maximum height increases as detailed in Article XIX. Voluntary Incentives Program, Sec. 38-106 Incentives.

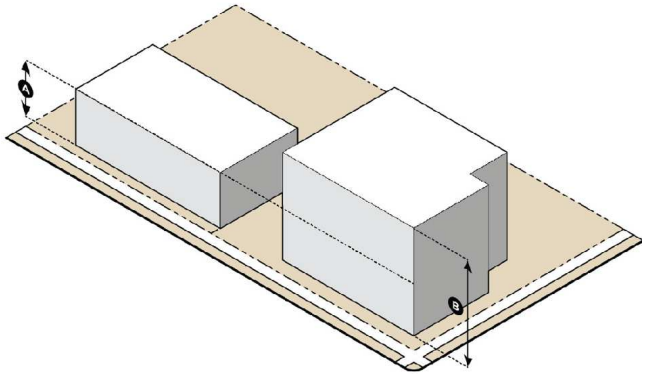
LOT STANDARDS DIAGRAM



A = Lot Width

Table 38-20.1: Mixed-Use and Commercial Zones Dimensional Standards—Lot Standards							
	C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
Minimum Lot Area [1]	5,000sf	None	None	None TH: 1,100sf/du MU:950sf/du	None TH: 1,100sf/du MU:950sf/du	None TH: 1,100sf/du MU:950sf/du	None
Minimum Lot Width	50' or average of blockface, whichever is less	None	None	None TH: 15'/du MU: 50'	None TH: 15'/du MU: 50'	None TH: 15'/du MU: 50'	None
Maximum Gross Floor Area—Commercial Uses Only [2]	3,500sf GFA for each commercial use, either standalone or within a multi-tenant building	3,500sf GFA for each commercial use, either standalone or within a multi-tenant building	N/A	N/A	N/A	N/A	N/A
[1] For hotel/motel uses that have been converted to multi-unit dwellings, the minimum lot area per dwelling unit does not apply. [2] Does not apply to institutional uses such as places of worship, government facilities, and educational facilities.							

HEIGHT DIAGRAM

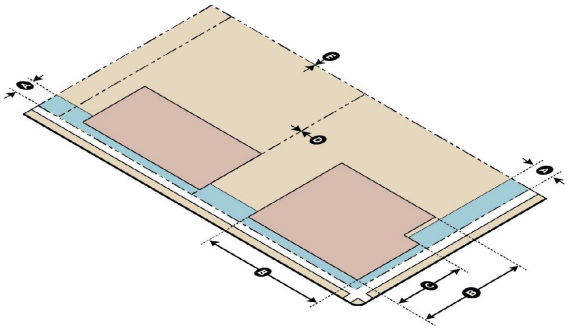


A = Minimum Building Height

B = Maximum Building Height

Table 38-20.2: Mixed-Use and Commercial Zones Dimensional Standards—Height							
	C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
Maximum Building Height	35'	24'	45'	45'	55'	65' 1	85' 1
Minimum Building Height 2	None	None	None	None	None	18'	18'
Minimum First Floor Demarcation Line for Multi-Story Buildings 2 This includes a cornice line, first-floor window height, bottom sill of second story windows, or entablature	None	14'	14'	None	None	14'	14'
1 Maximum height of a structure is limited to 40' within 100' of an RN-1-6, RN-1-5, RN-2, TRN-1, or TRN-2 Zone. This limitation applies only to that portion of a structure within the 100' distance. 2 This standard applies only to new construction as of the effective date of this Code October 21, 2024.							

SETBACKS DIAGRAM



A = Build-To Zone (BTZ)

B = Build-Out Percentage (BO%)

C = Build-To Percentage (BT%)

D = Interior Side Setback

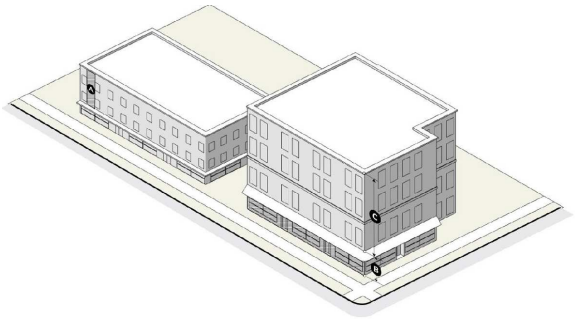
E = Rear Setback

Table 38-20.3: Mixed-Use and Commercial Zones Dimensional Standards—Setbacks

	C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
Front Setback/ Build-To Zone (BTZ)	Build-To Zone (BTZ): Average setback of adjacent lots plus or minus 5' However, if average setback is more than 15', then 15' plus or minus 5' Where adjacent lots are not developed, 15' plus or minus 5'	Build-To Zone (BTZ): 0'—20'	Build-To Zone (BTZ): 0'—15'	10' Minimum	25' Minimum	Build-To Zone (BTZ): 0'—15'	Build-To Zone (BTZ): 0'—10'

Table 38-20.3: Mixed-Use and Commercial Zones Dimensional Standards—Setbacks							
	C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
Minimum Front Build-To Percentage (BTZ only)	None	None	None	N/A	N/A	75%	75%
Minimum Front Build-Out Percentage	None	None	None	N/A	N/A	80%	80%
Minimum Interior Side Setback	5'	None, unless abutting residential zone then 10'	None, unless abutting residenti al zone then 10'	None, unless abutting residential zone then 10'	10'	None, unless abutting residential zone then 10'	None, unless abutting residential zone then 10'
Corner Side Setback/ Build-To Zone (BTZ)	10'	BTZ: 0'—20'	BTZ: 0'—15'	10' Minimum	25' Minimum	BTZ: 0'—15'	BTZ: 0'—10'
Minimum Corner Side Build-To Percentage (BTZ only)	N/A	None	None	N/A	N/A	60%	60%
Minimum Corner Side Build-Out Percentage	N/A	None	None	N/A	N/A	60%	60%
Minimum Rear Setback	10' unless abutting an alley, then 5'	10', unless abutting residential zone then 25'	10', unless abutting residential zone then 25'	10', unless abutting residential zone then 25'	25'	None, unless abutting residential zone then 25'	None, unless abutting residential zone then 25'

BUILDING ARTICULATION DIAGRAM



A = Blank Wall Limitation

B = Ground Floor Transparency

C = Upper Floor Transparency

Table 38-20.4: Mixed-Use and Commercial Zones Dimensional Standards—Building Articulation

	C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
Maximum Blank Wall Area—Nonresidential/Mixed-Use Facing Street or Waterfront	None	25sf	25sf	40sf	40sf	25sf	25sf
Ground Floor Transparency—Nonresidential/Mixed-Use Facing Street or Waterfront (Measured between 2' and 10' from grade)	None	40%	50%	40%	40%	50%	50%

Table 38-20.4: Mixed-Use and Commercial Zones Dimensional Standards—Building Articulation							
	C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
Upper Floor Transparency—Nonresidential/Mixed-Use Facing Street or Waterfront	None	20%	20%	20%	20%	20%	20%

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-21. Mixed-Use and Commercial Development Standards

(a) Applicability

(1) The development standards of this Table 38-21.1: Mixed-Use and Commercial Zone Design Standards apply to nonresidential and mixed-use developments in mixed-use and commercial zones. Residential dwellings are not subject to these design standards but rather subject to the design standards included within the use standards of the dwelling type in Article IX.

(2) Development standards apply to new construction and additions with the following exceptions:

(i) Additions in the C-NT and C-N Zones.

(ii) Conversion of an existing single-unit dwelling to a nonresidential or live/work use in the C-NT Zone.

(3) When standards indicate that they are applicable when facing a street, this includes public and private streets and does not include existing alleys.

(4) Any diagrams of these standards that may be included are for illustrative purposes only.

(b) Development Standards

In Table 38-21.1: Mixed-Use and Commercial Zone Design Standards, a "✓" indicates that the standard is applicable in the zone indicated. The absence of a "✓" indicates that the standard does not apply to the zone.

Table 38-21.1: Mixed-Use and Commercial Zone Development Standards								
		C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
Orientation								
1	For single-tenant developments, a minimum of one prominent entrance on a façade facing a street is required. For multi-tenant developments, a prominent entrance is required for each individual nonresidential tenant facing a street.		✓	✓	✓		✓	✓

Table 38-21.1: Mixed-Use and Commercial Zone Development Standards								
		C-NT	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*
2	All buildings must have one prominent entrance along a façade facing a street. On a corner lot, only one street-facing façade must have a prominent entrance.					✓		
3	Where vehicle parking is accessed from an alley, an entrance to the building must be located and clearly marked on that façade facing an alley unless a pedestrian path is designed and has appropriate signage to direct pedestrians to the front entrance.		✓	✓	✓		✓	✓
Roof Design								
4	Reflective roof surfaces that produce glare are prohibited, except for cool roofs intended to radiate absorbed or non-reflected solar energy and reduce heat transfer to the building.		✓	✓	✓	✓	✓	✓
5	Green roof, blue roof, and white roof designs are permitted.		✓	✓	✓	✓	✓	✓

(c) Building Materials

None of the following building materials, or any combination of the following building materials, shall exceed 25% of any facade. They may also be used as a component of construction when not a surface finish material without limitation.

(1) Plain concrete block

(2) Mirrored glass

(3) Exposed aggregate (rough finish) concrete wall panels

(4) Exterior insulating finish systems (EIFS)

(5) Wood structural panel sheathing (e.g., plywood, OSB, particleboard, etc.)

(6) Plastic, not including light transmitting plastic

(7) Vinyl

(8) Metal panels unless they meet the following requirement: Metal panels (flat, textured, corrugated, batten, box rib, etc.) whether standalone, composite, or part of a layered or insulated panel, are permitted provided they are part of a complete, manufacturer warrantied cladding system, including integral anchorage to structural supports. Steel panels must be minimum US Standard 26 gauge. Metal panels that meet this requirement are permitted as surface finish material without limitation.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24)

Sec. 38-22. Additional Standards

(a) General Site Development Standards

See Article X for additional on-site development standards and requirements.

(b) Accessory Structures

See Article XI for accessory structure standards and requirements.

(c) Parking, Loading, and Access

See Article XII for parking, loading, and access standards and requirements.

(d) Landscape

See Article XIII for landscape, buffer, and screening standards and requirements.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE VI. DOWNTOWN FORM-BASED CODE

[SECTION RESERVED FOR REFERENCE TO FORM-BASED CODE]

ARTICLE VII. INDUSTRIAL ZONES

Sec. 38-23. Purpose

(a) I-L Light Industrial Zone

The I-L Light Industrial Zone is intended to accommodate industrial activities that do not create appreciable nuisance or hazards, or that require a pleasant, hazard-and-nuisance-free environment. The I-L Zone may also accommodate select service or commercial uses.

(b) I-H Heavy Industrial Zone

The I-H Heavy Industrial Zone is intended to accommodate those industrial activities which may produce moderate nuisances or hazards in areas that are incompatible with non-industrial development.

(c) I-X Industrial Extraction Zone

The I-X Industrial Extraction Zone is intended to accommodate mining and associated outdoor extractive uses.

(d) D. I-MU Industrial Mixed-Use Zone

The I-MU Industrial Mixed-Use Zone is intended to accommodate a mix of light industrial uses and compatible commercial uses such as retail and entertainment. This mix is designed to promote the reuse of older, character giving structures that may no longer be suitable for their original industrial purposes, but that can accommodate a variety of alternative types of uses. Residential uses are also permitted in the I-MU Zone.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-24. Uses

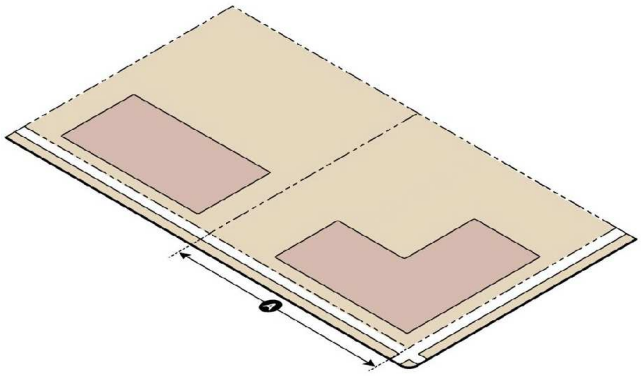
Article IX lists principal, temporary, and accessory uses allowed within the industrial zones.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-25. Industrial Zones Dimensional Standards

(a) Table 38-25.1: Industrial Zones Dimensional Standards establishes the dimensional standards for the industrial zones. These regulations apply to all uses within each zone unless a different standard is listed for a specific use.

(b) In the industrial zones, the maximum building height standard applies to principal buildings. Equipment and accessory structures integral to the operation of the use are permitted to exceed this height when such additional height is required for function.

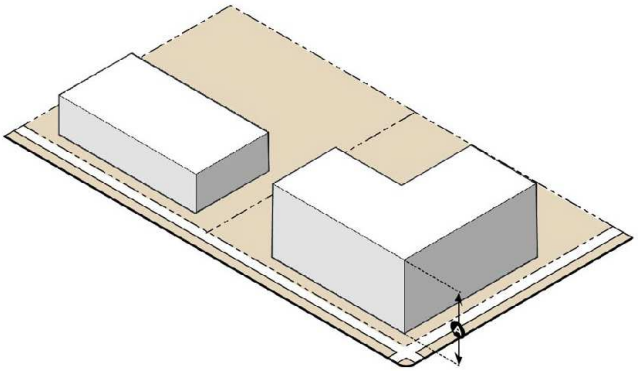
LOT STANDARDS DIAGRAM



A = Lot Width

Table 38-25.1: Industrial Zones Dimensional Standards—Lot Standards				
	I-L	*I-H*	*I-X*	*I-MU*
Minimum Lot Area	None	None	None	None

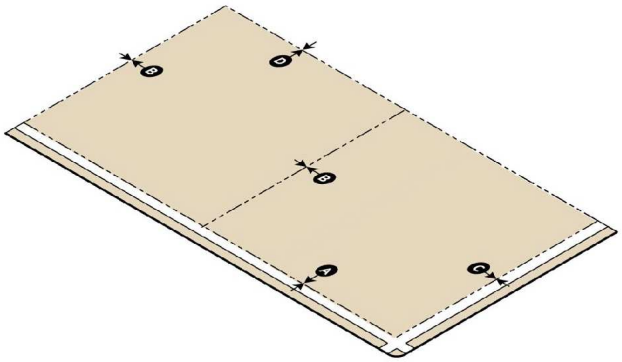
HEIGHT DIAGRAM



A = Maximum Building Height

Table 38-25.2: Industrial Zones Dimensional Standards—Height				
	I-L	*I-H*	*I-X*	*I-MU*
Maximum Building Height	80'	80'	80'	80'

SETBACKS DIAGRAM



A = Front Setback

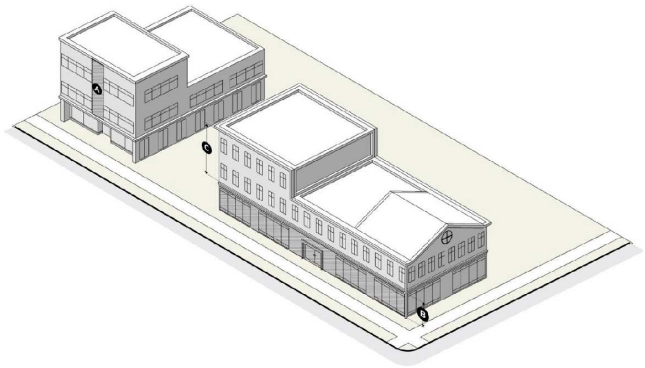
B = Interior Side Setback

C = Corner Side Setback

D = Rear Setback

Table 38-25.3 Industrial Zones Dimensional Standards—Setbacks				
	I-L	*I-H*	*I-X*	*I-MU*
Minimum Front Setback	15'	25'	25'	15'
Minimum Interior Side Setback	None unless abutting residential zone then 15'	None unless abutting residential zone then 40'	25', unless abutting residential zone then 40'	None unless abutting residential zone then 15'
Minimum Corner Side Setback	15'	25'	25'	15'
Minimum Rear Setback	None unless abutting residential zone then 25'	None unless abutting residential zone then 40'	25', unless abutting residential zone then 40'	None unless abutting residential zone then 25'

BUILDING ARTICULATION DIAGRAM



A = Blank Wall Limitation

B = Ground Floor Transparency

C = Upper Floor Transparency

Table 38-25.4: Industrial Zones Dimensional Standards—Building Articulation				
	I-L	*I-H*	*I-X*	*I-MU*
Maximum Blank Wall Length-Nonresidential/ Mixed-Use Facing Street or Waterfront	N/A	N/A	N/A	50'
Ground Floor Transparency—Nonresidential/ Mixed-Use Facing Street or Waterfront	N/A	N/A	N/A	40%
Upper Floor Transparency—Nonresidential/ Mixed-Use Facing Street or Waterfront	N/A	N/A	N/A	20%

(c) Developments participating in the Voluntary Incentives Program are subject to the lot area standard reductions and maximum height increases as detailed in Article XIX. Voluntary Incentives Program, Sec. 38-106 Incentives.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14256, § 1, 7-22-25)

Sec. 38-26. I-MU Zone Development Standards

(a) Applicability

(1) The development standards of this section apply to nonresidential and mixed-use developments in the I-MU Zone only. Residential dwellings, including live/work dwellings, are not subject to these design standards but rather subject to the design standards included within the use standards of the dwelling type in Article IX.

(2) Development standards apply to new construction.

(3) When standards indicate that they are applicable when facing a street, this includes public and private streets and does not include existing alleys.

(4) Any diagrams of these standards that may be included are for illustrative purposes only.

(b) Orientation

(1) All buildings must have one prominent entrance along a facade facing a street. On a corner lot, only one street-facing facade must have a prominent entrance.

(2) Where vehicle parking is accessed from an alley, an entrance to the building must be located and clearly marked on that facade facing an alley unless a pedestrian path is designed and has appropriate signage to direct pedestrians to the front entrance.

(c) Facade Design

(d) Roof Design

(1) Reflective roof surfaces that produce glare are prohibited, except for cool roofs intended to radiate absorbed or non-reflected solar energy and reduce heat transfer to the building.

(2) Green roof, blue roof, and white roof designs are permitted.

(e) Building Materials

The following building materials are limited to 25% of each facade in totality. They may also be used as a component of construction when not a surface finish material without limitation.

(1) Mirrored glass

(2) Exposed aggregate (rough finish) concrete wall panels

(3) Exterior insulating finish systems (EIFS)

(4) Wood structural panel sheathing (e.g., plywood, OSB, particleboard, etc.)

(5) Plastic, not including light transmitting plastic

(6) Vinyl

(7) Metal panels unless they meet the following requirement: Metal panels (flat, textured, corrugated, batten, box rib, etc.) whether standalone, composite, or part of a layered or insulated panel, are permitted provided they are part of a complete, manufacturer warrantied cladding system, including integral anchorage to structural supports. Steel panels must be minimum US Standard 26 gauge. Metal panels that meet this requirement are permitted as surface finish material without limitation.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24)

Sec. 38-27. Additional Standards

(a) A. General Site Development Standards

See Article X for additional on-site development standards and requirements.

(b) Accessory Structures

See Article XI for accessory structure standards and requirements.

(c) Parking, Loading, and Access

See Article XII for parking, loading, and access standards and requirements.

(d) Landscape

See Article XIII for landscape, buffer, and screening standards and requirements.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE VIII. SPECIAL PURPOSE ZONES

Sec. 38-28. A-1 Urban Agricultural Zone

(a) Purpose

The A-1 Urban Agricultural Zone is intended to provide the opportunity for agricultural land and related uses within the City.

(b) Uses

Article IX lists principal, temporary, and accessory uses allowed in the A-1 Zone.

(c) Dimensional Standards

(1) Table 38-28.1: A-1 Zone Dimensional Standards establishes the dimensional standards for the A-1 Zone. These regulations apply to all uses within each zone unless a different standard is listed for a specific use.

Table 38-28.1: A-1 Zone Dimensional Standards	
Minimum Lot Area	5 acres
Maximum Building Height	35'
Minimum Front Setback	25'
Minimum Interior Side Setback	25'
Minimum Corner Side Setback	25'
Minimum Rear Setback	25'

(2) All agricultural structures including, but not limited to, barns, feeding areas, livestock enclosures, and roofed livestock structures, are prohibited within required setbacks and must be located a minimum of 100 feet from any lot line.

(3) Maximum building height does not apply to any structure ancillary to and integral to active agricultural operations, which are not limited in height.

(d) Additional Standards

(1) General Site Development Standards

See Article X for additional on-site development standards and requirements.

(2) Accessory Structures

See Article XI for accessory structure standards and requirements.

(3) Parking, Loading, and Access

See Article XII for parking, loading, and access standards and requirements.

(4) Landscape

See Article XIII for landscape, buffer, and screening standards and requirements.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-29. INST Institutional Zone

(a) Purpose

The INST Institutional Zone is intended to accommodate governmental uses, larger public and private educational campuses, civic and cultural facilities, healthcare campuses, and similar uses located within the City.

(b) Uses

Article IX lists principal, temporary, and accessory uses allowed in the INST Zone.

(c) Dimensional Standards

Table 38-29.1: INST Zone Dimensional Standards establishes the dimensional standards for the INST Zone. These regulations apply to all uses within each zone unless a different standard is listed for a specific use.

Table 38-29.1 INST Institutional Zone Dimensional Standards Outside the Urban Overlay	
Minimum Lot Area	2 acres
Minimum Lot Width	50'
Maximum Building Height	80'
Minimum Front Setback	10'
Minimum Interior Side Setback	10', unless abutting a residential zone, then 20' plus 1' additional setback for each 2' of building height over 45'
Minimum Corner Side Setback	10'
Minimum Rear Setback	10', unless abutting a residential zone, then 20' plus 1' additional setback for each 2' of building height over 45'
Riverfront Buffer Zone	Structures within 100' of the Tennessee River floodway may not exceed 5 stories/60'

(d) Additional Standards

(1) General Site Development Standards

See Article X for additional on-site development standards and requirements.

(2) Accessory Structures

See Article XI for accessory structure standards and requirements.

(3) Parking, Loading, and Access

See Article XII for parking, loading, and access standards and requirements.

(4) Landscape

See Article XIII for landscape, buffer, and screening standards and requirements.

Table 38-29.2: INST Zone Dimensional Standards Inside the Urban Overlay	
Minimum Lot Area	None
Minimum Lot Width	None
Maximum Building Height	Limited to 60' within 60' of an RN-1-7.5, RN-1-6, RN-1-5, RN-1-3, RN-2, TRN-1, or TRN-2 zone. This limitation applies only to that portion of a structure within the 60' distance.
Minimum Front Setback	0'
Maximum Front Setback	15' may be permitted if an intentional public space or pedestrian activity space is provided between the building and right-of-way such as a park, plaza, outdoor dining, or sculpture garden.
Minimum Interior Side Setback	0', unless abutting a residential zone, then 20' plus 1' additional setback for each 2' of building height over 45'
Minimum Corner Side Setback	0', 10' when abutting a residential zone or single unit detached use
Minimum Rear Setback	0', 25' 10' when abutting a residential zone or single unit detached use
Minimum Distance Between Buildings	10'
Minimum Riverfront Setback	100' as measured from the Floodway

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14238, § 1, 5-20-25; Ord. No. 14253, § 1, 7-15-25; Ord. No. 14365, § 1, 5-19-26)

Sec. 38-30. OS Open Space Zone

(a) Purpose

The OS Open Space Zone is intended to accommodate and protect open space and public recreation facilities. Open space resources may include both passive and active recreation areas, as well as related ancillary uses within such open space, such as cultural facilities and performance venues, that are functionally part of the larger open space use.

(b) Uses

Article IX lists principal, temporary, and accessory uses allowed in the OS Zone.

(c) Dimensional Standards

Table 38-30.1: OS Zone Dimensional Standards establishes the dimensional standards for the OS Zone. These regulations apply to all uses within each zone unless a different standard is listed for a specific use.

Table 38-30.1: OS Zone Dimensional Standards	
Minimum Lot Area	None
Maximum Building Height	35'
Minimum Front Setback	20'
Minimum Interior Side Setback	20'
Minimum Corner Side Setback	20'
Minimum Rear Setback	20'
Minimum Setback from Riverfront	100' as measured from the Floodway

(d) Additional Standards

(1) General Site Development Standards

See Article X for additional on-site development standards and requirements.

(2) Accessory Structures

See Article XI for accessory structure standards and requirements.

(3) Parking, Loading, and Access

See Article XII for parking, loading, and access standards and requirements.

(4) Landscape

See Article XIII for landscape, buffer, and screening standards and requirements.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-31. R-MH Manufactured Home Zone

(a) Purpose

The R-MH Manufactured Home Zone preserves appropriate land for the development for manufactured home parks and manufactured home subdivisions. Standards ensure that both manufactured home parks and subdivisions provide open space and recreational areas appropriate for the acreages and number of units provided.

(b) Uses

Article IX lists principal, temporary, and accessory uses allowed within the R-MH Zone.

(c) Manufactured Home Park Dimensional Standards

(1) Dimensional Standards

Table 38-31.1: MH Zone Dimensional Standards establishes the dimensional standards for manufactured home parks.

Table 38-31.1: MH Zone Dimensional Standards	
Park Dimension	*Manufactured Home Park*
Minimum Park Area	3 acres
Height	
Maximum Building Height	35'
Minimum Perimeter Setbacks	
Street Setback	20'
Interior Side Setback	30'

Table 38-31.1: MH Zone Dimensional Standards	
Park Dimension	*Manufactured Home Park*
Rear Setback	30'
Manufactured Home Stands	
Minimum Stand Area	2,000sf
Minimum Stand Width	30'
Maximum Manufactured Homes Per Stand	1 manufactured home
Manufactured Home Stand Setbacks	
Internal Access Drive Setback	20'
Minimum Structure Separation—Broad Side to Broad Side	20'
Minimum Structure Separation—Narrow Side to Narrow Side	10'

(2) Required Recreational Facilities

At least 10% of the total area of a manufactured home park must be devoted to recreational facilities for use by the residents of the park. Examples of such recreational facilities may include community buildings, gardens, outdoor play areas, swimming pools, and ball courts.

(3) Paving, Access, and Off-Street Parking

(i) A minimum width of 22 feet is required for all internal access drives. Internal access drives must be paved and maintained in a smooth hard and dense surface that is well drained.

(ii) Access to the manufactured home park must be from a public right-of-way.

(iii) The park must have a minimum of one access drive to the public right-of-way and emergency access as required per Fire Code.

(iv) Required parking spaces may clustered within the park. No single parking cluster may exceed 20 spaces. Clusters must be spaced 20 feet apart.

(4) Buffering and Screening

The manufactured home park must be screened and buffered along the street, excluding ingress/egress points, and adjacent properties in accordance with a Class C landscape yard per Article XIII.

(5) Manufactured Home Subdivision Standards

(i) A manufactured home subdivision requires a minimum of three acres.

(ii) Manufactured home subdivisions are subject to the standards of the RN-1-5 Zone. The standards are applied to individual lots within the development, whether a single-unit detached dwelling or manufactured home.

(iii) Only single-unit detached dwellings and manufactured homes are permitted within a manufactured home subdivision.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-32. Urban Overlay Zone

(a) Intent

As Downtown Chattanooga and its surrounding neighborhoods have a different development pattern than the rest of the City, the Urban Overlay Zone has been created to maintain the physical layout of this older urban area. This layout generally includes sidewalks, public transit routes, available on-street

parking, and smaller lots. This Urban Overlay Zone, as defined by the attached map and legal description, is generally bounded by Missionary Ridge on the east, North Chattanooga to the north, the base of Lookout Mountain to the west and the state line to the south. An overlay zone is a tool to deal with special requirements and is placed over the existing zoning to alter some of the regulations. The overlay does not change the permitted uses, setbacks, landscaping, and height and access requirements present in the underlying zone.

(b) Applicability

(1) The Urban Overlay Zone contains that area described herein:

BEGINNING at the intersection of the southeast corner of Tax Map 154-015, being The Chickamauga National Military Park, and the Tennessee Georgia State Line, thence following the east line of said parcel northeastwardly and northwestwardly to its intersection with the west line of the 4000 block of Jo Conn Guild Trail, thence some forty (40) feet east to the east line of said Trail, thence northeastwardly and northwestwardly along said east line to the southwest corner of Tax Map 155O-B-007, thence following the west line of parcel 007 to the southwest corner of Tax Map 155J-C-051, thence along the west line of parcel 051 to its north corner thence northeast to the southeast corner of Tax Map 155J-C-038, thence along the south line of parcel 038 to its southwest corner, thence along the west line of parcel 038 to the southwest corner of Tax Map 155J-C-039, thence northeast along the west line of parcel 039 to the northeast corner of Tax Map 155J-C-037, thence northwest to the southeast corner of Tax Map 155J-C-036, thence northeast along the east line of parcel 036 to its northeast corner, thence northwest to the southwest corner of Tax Map 155J-C-009, thence northeast along its west line to the northwest corner of parcel 009 and the south line of the 1800 block of Old Wauhatchie Pike, thence northwest across said pike to the southeast corner of Tax Map 155J-B-004, thence northeast along the east line of parcel 004 to the southeast corner of Tax Map 155J-B-001, thence to the northeast corner of parcel 001 and the south line of the 1900 block of Cummings Highway, thence northeast across said highway to the southwest corner of Tax Map 155G-A-0-14, thence northwest to the north line of Interstate 24 and the south line of the Tennessee River, then following the meanderings of said river northeastwardly to the northeast corner of Tax Map 145O-A-001, thence northwest along the north line of parcel 001 to its northwest corner and the east line of the Tennessee River, thence following the meanderings of the Tennessee River northwestwardly and northeastwardly to the center line of the Unit Block of Highway 27, thence northwestwardly along the center line of said highway to the center line Highway 27 at Whitehall North Bound Off Ramp, thence northeastwardly along said center line to its intersection with the center line of the 900 block of East Frontage Road, thence northeastwardly along said center line to its intersection with the City of Chattanooga/City of Red Bank City Limits Line, thence following said line northeastwardly and southeastwardly to the southeast corner of Tax Map 126E-B-019, thence southwardly to the center line of the 500 block of West Oxford Road, thence continuing southeast along said road to its intersection with the center line of the 1600 block of White Oak Road, thence northeast along the center line of White Oak Road to its intersection with the center line of Auburndale Avenue, thence continuing southeast along White Oak Road to its intersection with the center line of the 700 block of Dallas Road, thence northeast along the center line of Dallas Road to its intersection with the center line of the 1000 block of East Dallas Road, thence southeast along the center line East Dallas Road to its intersection with the 1200 block of Duane Road, thence continuing northeast along the center line of the 1200 block of East Dallas Road to its intersection with the center line of the 1800 block of Hixson Pike, "thence southeast along the center line of Hixson Pike at 1614 Hixson Pike to the northwest corner of Tax Map 127I-F-020, thence following the northern boundary of parcel 020 to its rear property line, thence southerly along the rear property line to its intersection with the side boundary of Tax Map 127I-F-019, thence northeast along the side line of parcel 019 to its rear property line, thence southeast along the rear property lines of parcels 019, 018 and 017, thence in a southwest direction along the side boundary of parcel 017 to the center line of Hixson Pike, thence southeast to 1508 Hixson Pike at the northwest corner of Tax Map

127P-S-014, thence following the northern boundary of said parcel 014 to its rear property line, thence southerly along the rear property lines of parcels 014, 013, 012 and 011, thence in a southwest direction along the southern side boundary of parcel 011 to the center line of Hixson Pike continuing south along said center line to 1422 Hixson Pike to the northwest corner of Tax Map 127P-T-054 and following the northern side boundary of parcel 054 to its rear property line, thence southerly along the rear property line of parcel 054 descending in a southerly direction to parcel 023, thence in a westerly direction approximately 108 feet, thence southerly (Tax Map 127P-T-022 through 054), extending into the center line of Falmouth Road, thence in a westerly direction to" the center line of the 1200 block of Hixson Pike, thence southwest along the center line of said pike to its intersection with the southwest line of the 1300 block of Dorchester Road, thence southeastwardly to the northeast corner of Tax Map 136G-A-001, thence southwest along the north line of parcel 001 to its northwest corner, thence southeast along the west line of said parcel to the southeast corner of Tax Map 136H-M-022, thence southwest along the south line of parcel 022 to the northeast corner of Tax Map 136H-J-038.01, thence southeast along the east line of said parcel to the north line of Tax Map 136H-J-015.10, thence southwest along the north line of parcel 015.10 to the southwest corner of Tax Map 136H-J-015.04, thence northwest to the northeast corner of Tax Map 136H-J-015.14, thence southwest along the north line of said parcel to the northwest corner of said parcel, thence northeast to the northeast corner of Tax Map 135E-N-021, thence northwest along the north line of parcel 021, thence south to the south line of the 200 block of Dickerson Avenue, thence southwestwardly and northwestwardly to its intersection with the east line of the Unit Block of Georgian Avenue, thence southwest along the east line of Georgia Avenue to the south line of the Tennessee River, thence northeast along the south line of said river to the northeast corner of Tax Map 136P-A-001, thence southeast along the east line of parcel 001 to the north line of the 1000 block of Riverside Drive, thence southeast across said drive to the northeast corner of Tax Map 136P-D-001, thence southeast to the south line of the Southern Railway Right-of-way, thence following the south line of said railway right-of-way southeastwardly and northeastwardly to the south line of the 2100 block of Sims Street, thence southeast along the south line of Sims Street to the northeast corner of Tax Map 128P-G-001, thence southwest along the east line of parcel 001 to its southeast corner, thence southeast to the northeast corner of Tax Map 128P-G-002, thence southeast along the east line of parcel 002 to the north line of the 2300 block of Allin Street, thence southeast to the intersection of the center line of the 2300 block of Allin Street with the center line of the 2300 block of Searle Street, thence southeast along the center line of Searle Street to its intersection with the center line of an unnamed right-of-way, thence southeast along said right-of-way to its intersection with the center line of the 3200 block of Wheeler Avenue, thence southwestwardly along said avenue to its intersection with the center line of the 2400 block of Elmendorf Street, thence southeast to the center line of the 3100 block of North Chamberlain Avenue, thence southwest along the center line of said avenue to its intersection with the center line of an unnamed right-of-way, thence southeast along said right-of-way to its intersection with the center line of the 3100 block of Noa Street, thence southeast across said right-of-way to the northwest corner of Tax Map 128P-N-022 thence southeast following the north property lines of Tax Maps 128P-N-022, 128P-N-017 and 128P-N-013 to the west line of the 3100 block of Campbell Street, thence southeastwardly to the center line of Campbell Street, thence following the center line of said street southwestwardly and to its intersection with the 700 block of North Crest Road, thence following southeastwardly and southwestwardly along the center line of said road, thence across said road to the northeast corner of 137H-G-006, thence following the west property lines of Tax Maps 137H-G-006 and 137I-A-042 to the north line of Tax Map 137I-B-008, thence southeast to the west line of the 500 block of North Crest Road, thence southwest across North Crest Road to its intersection with the east line of the 2000 block of Marshall Street, thence southwest along the east line of said street to its intersection with the south line of the 1900 block of Marshall Street, thence southeast along the south line of said street to the northeast corner of Tax Map 137P-A-006, thence following the western property lines of Tax Maps 137P-A-004.01, 137P-A-006, 137P-A-007, 137P-A-007.01, 137P-A-009 thru 137P-A-023, 146D-M-001 thru 146D-M-008, 146E-K-001, 146E-

K-002.01, 146E-K-002.02, 146E-K-003 thru 146E-K-011, 146E-K-013, 146E-K-015 thru 146E-K-017, and 146L-J-001 thru 146L-J-005 to the northwest line of the unit block of Shallowford Road, thence southwest to the northwest corner of Tax Map 146L-H-003, thence southeast to the northwest corner of Tax Map 146L-H-005, thence following the western property lines of Tax Maps 146L-L-005 thru 146L-L-010 and 146L-L-012 thru 146L-L-017 southwestwardly and southeastwardly to intersection of the east line of the 2900 block of Birds Mill Road with the west line of the unit block of North Crest Road, thence continuing southwest along North Crest Road to the northeast corner of Tax Map 146M-D-002, thence northwest along the north line of said parcel to its northwest corner, thence following the western property lines of Tax Maps 146M-D-002 thru 146M-D-009, 146M-D-010.02, 146M-D-011 thru 146M-D-014, 156D-C-002, 156D-C-003, 156D-C-007 thru 156D-C-011, and 156D-C-013 thru 156D-C-019 southwestwardly to the west line of South Crest Road, thence southwest along the west line of said road to the northwest corner of Tax Map 156F-P-009, thence following the western property lines of Tax Maps 156F-P-001 thru 156F-P-009, 156K-H-001, 156K-H-002, 156K-H-003.01, 156K-H-004.01, 156K-H-005 thru 156K-H-007.01, 156K-H-010 thru 156K-H-012, 156K-H-013.01, 156K-H-014.01, 156K-H-015, and 156K-H-016 southwestwardly to the east line of the 2100 block of Old Ringgold Road, thence southwest across said road to the northeast corner of Tax Map 156K-G-011, thence following the eastern property lines of Tax Maps 156K-G-011 thru 13 southwestwardly to the southwest corner of Tax Map 156N-D-001.02, thence southeast along the south line of parcel 001.02 to the northwest corner of 156N-D-002, thence following the eastern property lines of Tax Maps 156N-D-008 thru 156N D 015.01 to the east line of the 2900 block of Westside Drive, thence southeast along said drive to the north corner of Tax Map 168C-C-001, thence southwest following the eastern property lines of Tax Maps 168C C 001, 168C C 001.01, and 168C C 014 thru 168C C 022, thence northeast along the south line of Tax Map 168C-C-014 to the east line of the 3100 block of Westside Drive, thence southwest across said drive to the northeast corner of Tax Map 168C-B-016, thence following the western property lines of Tax Maps 168C-B-016 thru 019 southwestwardly to the northwest corner of Tax Map 168C-B-020, thence southeast to the west line of the 500 block of West Shadowlawn Drive, thence southeast across said drive to the northwest corner of Tax Map 168J-T-014.01, thence southeast to the northwest corner of Tax Map 168J-T-014, thence southwest following the western property lines of Tax Maps 168J-T-014 thru 168J-T-018, 168J-T-020 thru 168J-T-027, and 168J-T-029 to the north line of Tax Map 168J-T-001, thence southeast along the north line of parcel 001 to the northwest corner of Tax Map 168J-T-032, thence southwest following the western property lines of Tax Maps 168J-T-032, 168J-T-034, 168O-N-001 thru 168O-N-005, 168O-N-016 and 168O-N-017, thence southeast to the Tennessee/Georgia State Line, thence following said line southeast to the southeast corner of Tax Map 154-015, being The Chickamauga National Military Park, the point of BEGINNING.

(2) For purposes of any location restrictions set forth herein, unless otherwise specified to the contrary, all measurements must be made from the property line of any property desiring a particular use to the nearest property lines of any properties within a distance restriction.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-33. TOD Transit-Oriented Development Overlay Zone

[RESERVED]
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-34. Lovell Field Gateway Overlay Zone

(a) Purpose

The intent of the Lovell Field Gateway Overlay Zone is to realize the primary objectives of "BRAINERD ... A Vision for Today"—the community's master plan. Adopted by the Chattanooga City Council in 2011, the Plan's goal is to create a vibrant town center along Brainerd Road that is well connected to adjacent neighborhoods. Specific issues and opportunities identified in the community's master plan and in meetings by the Brainerd community include:

(1) Poor visual quality in the corridor attributed to sign clutter, overhead utility poles and electrical lines, lack of street trees, varying building setbacks, and poor quality building designs.

(2) Poor walkability and pedestrian connectivity due to large parking lots and multiple curb cuts, gaps in the sidewalk network, and lack of landscaping along the street and in parking lots.

(3) Unsafe cycling conditions due to multiple car/bicycle conflict points from numerous curb cuts, high traffic speeds, and lack of dedicated bike lanes.

(4) Enhance the corridor as it acts as a gateway into the City.

(b) Applicability

(1) The regulations of this Lovell Field Gateway Overlay Zone supplement the regulations of the underlying zone for all properties within the overlay zone area. However, single-unit dwellings are exempt from the Lovell Field Gateway Overlay Zone.

(2) Where the following overlay zone regulations conflict with a standard set out in Chapter 8 of the City Code, the regulations of Chapter 8 control.

(3) All other City codes, as currently adopted, apply to properties within the Lovell Field Gateway Overlay Zone, except where noted.

(4) The following regulations apply to all properties within the Lovell Field Gateway Overlay Zone. Primary roads within this zone are Airport Road and Shepherd Road/Airport Connector Road.

(5) Properties which choose to pursue dedication of streetscape land to the City must adhere to the following regulations:

(i) Improvements must be installed prior to the start of the property dedication process.

(ii) The City will provide fair market value for property acquisition, if a judge requires this process.

(iii) All discussions for streetscape property dedication to the City must begin with the City of Department of Public Works- Transportation Division.

(6) The overlay zone regulations are divided into two categories: new development and redevelopment. The regulations of this section applies to these two categories as follows:

(i) All new development, both public and private which constitutes one or more of the following situations:

a. Where a building expansion increases the building footprint by more than 50%.

b. Where a parking lot or other pavement expansion of at least ten spaces increases the total number of spaces or paved surface by more than 50%.

(ii) Redevelopment constitutes both public and private projects. For existing buildings and parking facilities, expansion in building footprint or parking spaces will trigger redevelopment regulations based on the Table 38-34.1: Redevelopment—Cumulative Scope of Work as established below.

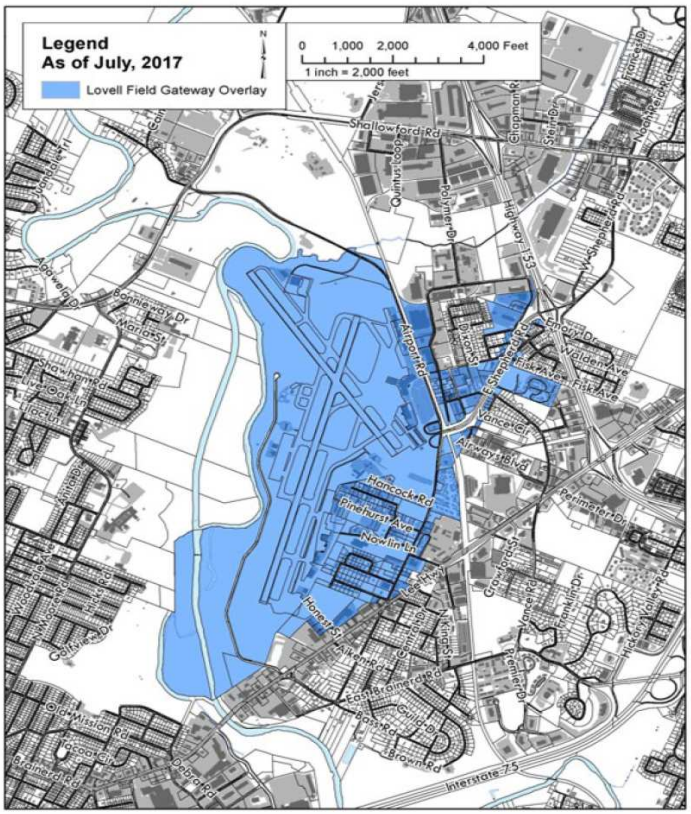
Table 38-34.1: Redevelopment—Cumulative Scope of Work

Building Expansion = Regulations (Cumulative Square Footage)		*Parking Lot Expansion = Regulations (10 Spaces or More)*	
< 10%	= Utility screening	< 10%	= Utility screening
10% to 25%	= Utility Screening + signage update	10% to 25%	= Utility Screening + signage update + all parking additions
>25% to 50%	= Utility screening + signage update + 1/2 of existing parking and all parking additions	>25% to 50%	= Utility screening + signage update + 1/2 of existing parking and all parking additions
> 50%	= All regulations	>50%	= All regulations

(c) Maintenance

Maintenance of the improvements required in the Lovell Field Gateway Overlay Zone are the responsibility of the property owner.

OVERLAY ZONE MAP



(d) Redevelopment

(1) Specific Standards

Redevelopment that fronts Airport Road and Shepherd Road/Airport Connector Road must comply with the following sections:

(i) Building Height

a. There is no maximum building height.

b. The minimum building height for properties fronting Airport Road and Shepherd Road/Airport Connector Road is 18 feet.

(ii) Building Materials

a. Brick, natural and architectural cast stone, architectural pre-cast concrete, glass, glass block, architectural metal panel systems, or concrete masonry units with an architectural coloration or finish on the ground floor of building facades are required to provide interest for the pedestrian. Other materials may be used on the upper floors.

1. Metal siding, aluminum siding, vinyl siding, synthetic rock, EIFS (synthetic stucco), or other similar exterior materials are prohibited for large expanses of facades. They may be used as accents.

2. Hard plastic awnings cannot be used. Awnings, when applied, must consist of flexible canvas, acrylic, or vinyl coated material.

(iii) Signs

a. On-Premise Building Signs

1. Within this Overlay Zone, the following regulations are applicable in addition to the general Advertising Provisions in Chapter 3 of the Chattanooga City Code.
2. A City of Chattanooga Sign Permit is still required.
3. Structural regulations in the Chattanooga Sign Ordinance still apply to the Lovell Field Gateway Overlay Zone.
4. The Lovell Field Gateway Overlay Zone is exempt from all dimensions, location, and type regulations in the Chattanooga Sign Ordinance.

b. On-Premise Monument Signs

1. A monument sign is defined as an advertising or identification device that is ground mounted and constructed so that there is no space between the ground and the bottom of the device.
2. One monument sign is permitted per parcel.
3. Pole-mounted signs are prohibited.
4. Monument signs cannot exceed six feet in height or ten feet in width. Signs cannot exceed 25 square feet per face and total sign area cannot exceed 50 square feet total of all faces. Height is measured from the top of the sign to the lowest point of the ground upon which the proposed sign is to be located.
5. Monument signs cannot be located in the sight distance triangle or otherwise obstruct lines of sight for vehicular or pedestrian traffic.
6. Monument signs cannot be closer than 18 feet to any right-of-way.
7. Materials that match the materials of the associated building must be used.
8. Signs must be illuminated by indirect lighting. Internally illuminated box-type plastic signs are prohibited, but signs composed of illuminated individual letters are permitted.

c. Off-Premise Billboard Signs

Off-premise billboard signs are prohibited.

(iv) Screening of Utilities

a. Completely screen dumpsters, loading areas, mechanical equipment, outdoor storage areas, and other visible utilities with an opaque wall or fence as follows:

b. The height of the screen must be a minimum of six feet or 12 inches taller than the object, whichever is higher, and adequate to completely conceal the dumpster or equipment.

c. Chain link fences or slats are prohibited.

d. Screens must consist of masonry, stucco, stone, wood, or decorative metal.

e. Landscaping, including shrubs, trees, perennials, or green screens, must be added to screening to soften the appearance of screening walls or fences.

(v) Front Setback

Buildings are subject to a build-to zone of 18 feet to 26 feet.

(vi) Curb Cuts

a. A net increase in the number of curb cuts is prohibited along Airport Road and Shepherd Road/Airport Connector Road.

b. Property owners must meet with the Department of Public Works-Transportation Division to discuss consolidating existing driveways and curb cuts.

(vii) Parking Lot Regulations

a. Parking Location

These regulations only apply to new or expanded parking facilities.

1. The Parking Zone is located to the rear of buildings.
2. New parking is not permitted between a building and the Airport Road and Shepherd Road/Airport Connector Road frontage.
3. If all new parking cannot be accommodated to the rear of the building, parking on the side of the building may be allowed if it is screened from the public right-of-way per this section.
4. Garages for new residential dwellings must be located behind the primary building.

b. Parking Space Regulations

1. The base zone parking space requirements apply.
2. The number of spaces provided cannot exceed the minimum required number of spaces by more than 50%.
3. Public Works-Transportation may allow the following discounts for required car parking spaces. Applicants should schedule a consultation with Public Works-Transportation to determine potential parking discounts.

c. Off-Site Parking

1. 40% of required car parking spaces, except required accessible spaces, may be located off-site if the remote parking area is located within 700 feet from the primary entrance of the facility served.
2. On-street parking spaces may be counted as required parking spaces provided the on-street spaces abut the subject property.

DEVELOPMENT PROFILE DIAGRAM

(e) New Development

(1) Front Setback

Buildings are subject to a build-to zone of 18 feet to 26 feet.

(2) Curb Cuts

(i) Only one Airport Road and Shepherd Road/Airport Connector Road curb cut per 150 linear feet of street frontage is permitted.

(ii) Property owners must meet with the Department of Public Works- Transportation Division to discuss consolidating existing driveways and curb cuts.

(3) Elements Not Permitted

The following are not permitted in the front setback:

(i) Parking

(ii) Chain link or slat fence

(iii) Drive lanes

(iv) HVAC equipment

(v) Dumpsters

(4) Front Setback Materials

(i) Front setbacks do not include paved surfaces.

(ii) Front setbacks may include lawn, shrubs, green infrastructure, street trees, bus shelters, road signage, street and pedestrian lighting.

(iii) Green infrastructure (landscaped planters, bioswales, etc.) may be included. All development must adhere to the City's water quality regulations. Refer to City of Chattanooga's Code, Chapter 31, and the City's Rainwater Management Guide for Green Infrastructure applications.

(5) Street Trees

(i) When warranted, dimensions and locations of street trees will be specified by Department of Public Works- Transportation Division.

(ii) The City's Urban Forester must approve all of the following:

a. Selection of all trees.

b. Removal or pruning of street trees.

c. Construction or demolition of any buildings fronting the zone to ensure the protection of existing trees.

(6) Bus Shelters

(i) Public Works-Transportation will determine if a bus shelter is needed, based on a consultation with the Chattanooga Area Regional Transportation Authority (CARTA).

(ii) Coordinate the placement, design, lighting, and construction of bus shelters with the CARTA and Public Works-Transportation.

(7) Lighting

(i) When warranted, pedestrian and street light design, type, spacing and mounting height are determined by the Department of Public Works- Transportation Division and the Electric Power Board.

(ii) New lighting in the front setback must be aligned with the street trees and parallel to the edge of right-of-way.

(iii) Exterior lighting must be equipped with full cut-offs to direct light downward and to minimize glare, shadows, night sky pollution, and excessive light levels.

(8) Storefront/Building Zone

(i) Dimensions/Location

a. Location

The Storefront/Building Zone is located in the build-to zone of 18 feet to 26 feet setbacks fronting Airport Road and Shepherd Road/Airport Connector Road.

b. Width

The Storefront/Building Zone is limited to a maximum of eight feet in width.

c. Elements Not Permitted

The following are not permitted in the Storefront/Building Zone: parking, chain link or slat fence, drive lanes, HVAC equipment, and dumpsters.

(9) b. Building Height

(i) There is no maximum building height.

(ii) The minimum building height for properties fronting Airport Road and Shepherd Road/ Airport Connector Road is 18 feet.

(iii) Building Placement

a. Buildings are subject to a build-to zone of 18 feet to 26 feet fronting Airport Road and Shepherd Road/Airport Connector Road.

b. Primary building entries must be clearly identifiable and visible from the street.

(iv) Building Materials

a. Use brick, natural and architectural cast stone, architectural pre-cast concrete, glass, glass block, architectural metal panel systems, or concrete masonry units with an architectural coloration or finish on the ground floor of building facades to provide interest for the pedestrian.

b. Other materials may be used on the upper floors.

c. Metal siding, aluminum siding, vinyl siding, synthetic rock, EIFS (synthetic stucco), or other similar exterior materials are prohibited for large expanses of facades but may be used as accents.

d. Hard plastic awnings cannot be used. Awnings, when applied, must consist of flexible canvas, acrylic, or vinyl coated material.

(10) Signs

(i) Sign Dimensions

a. Signs on any one side of a building, cannot exceed 1.5 square feet per linear foot of that building side. Awnings and permanent banners used for advertising are considered part of the building signage and square footage calculation.

b. Projecting signs cannot exceed 16 square feet in area.

c. Signs painted on windows cannot cover more than 20% of the total window area.

(ii) b. Sign Locations

a. Projecting signs must be located a minimum of 12 inches below the second story windowsill or top of the building, whichever is lower.

b. Signs must fit within the architectural elements such as in the lintel or sign frieze that separates the ground level from the upper facade, on the upper facade walls, or projecting from the face of the building.

c. Signs cannot obstruct the architectural elements and details of a building.

d. Wall signs must be placed such that they align with other signs on the block.

e. Roof signs are prohibited.

1. For buildings with multiple tenants, signs must be located only on the portions of the building directly outside the area occupied by that tenant or contained within consolidated directories, as defined in the Sign Ordinance.

(iii) Sign Types

a. Signs must be illuminated by indirect lighting. Internally illuminated box-type plastic signs are prohibited, but signs composed of illuminated individual letters are permitted.

b. Temporary signs or banners, regardless of size, are limited to 30 days and require a sign permit, per the Sign Ordinance.

c. Mass produced neon signs are prohibited.

(iv) On-Premise Building Signs

The following regulations are applicable in addition to the general Advertising Provisions in Chapter 3 of the Chattanooga City Code.

a. A sign permit is required.

b. Structural regulations in the Sign Ordinance apply to the Lovell Field Gateway Overlay Zone.

c. The Lovell Field Gateway Overlay Zone is exempt from all dimensions, location, and type regulations in the Sign Ordinance.

(v) On-Premise Monument Signs

a. Monument Sign Permissions

A monument sign is defined as an advertising or identification device that is ground mounted and constructed so that there is no space between the ground and the bottom of the device.

1. One monument sign is permitted per parcel.

2. Pole-mounted signs are prohibited.

b. Monument Sign Dimensions/Location

1. Monument signs cannot exceed six feet in height or ten feet in width. Signs cannot exceed 25 square feet per face and total sign area cannot exceed 50 square feet total of all faces. Height is measured from the top of the sign to the lowest point of the ground upon which the proposed sign is to be located.

2. Monument signs cannot be located in the sight distance triangle or otherwise obstruct lines of sight for vehicular or pedestrian traffic.

3. Monument signs cannot be closer than 18 feet to any right-of-way.

c. Monument Sign Materials

Materials that match the materials of the associated building must be used.

d. Monument Sign Illumination

Signs must be illuminated by indirect lighting. Internally illuminated box-type plastic signs are prohibited, but signs composed of illuminated individual letters are permitted.

(vi) Off-Premise Billboard Signs

Off-premise billboard signs are prohibited.

(11) Parking Zone

PARKING ZONE BEHIND BUILDINGS

(a) Location

(1) The Parking Zone is located to the rear of buildings.

(2) New parking is not permitted between a building and the Airport Road and Shepherd Road/Airport Connector Road frontage.

(3) If all new parking cannot be accommodated to the rear of the building, parking on the side of the building may be allowed if it is screened from the public right-of-way per this section.

(4) Garages for new residential dwellings must be located behind the primary building.

(b) Parking Space Regulations

(1) The base zone parking space requirements apply.

(2) The number of spaces provided cannot exceed the minimum required number of spaces by more than 50%.

(3) Public Works-Transportation may allow the following discounts for required car parking spaces. Applicants should schedule a consultation Public Works-Transportation with Public Works-Transportation to determine potential parking discounts.

(i) One car parking space may be discounted for every bicycle parking space required.

(ii) If the development connects via new or existing sidewalks to an established sidewalk grid that links multiple land uses (i.e., commercial, residential, office), a 10% discount may be applied.

(iii) If the development is located within one-quarter mile of an established transit stop, a 10% discount may be applied.

(iv) Parking space discounts may be applied to developments that share parking with facilities serving other uses according to the following chart:

	Residential	*Lodging*	*Office*	*Retail*	*Institution*
Residential	0%	10%	30%	20%	30%
Lodging	10%	0%	50%	30%	20%
Office	30%	50%	0%	20%	50%
Retail	20%	30%	20%	0%	30%
Institution	30%	20%	50%	30%	0%

a. Shared parking discounts are applied before multi-modal discounts

b. To apply shared parking discounts for facilities on separate parcels, a legal agreement between property owners guaranteeing access to and use of designated parking areas is required.

(c) Off-Site Parking

(i) 40% of required car parking spaces, except required accessible spaces, may be located off-site if the remote parking area is located within 700 feet from the primary entrance of the facility served.

(ii) On-street parking spaces may be counted as required parking spaces provided the on-street spaces abut the subject property.

(d) Parking Lot Lighting

(i) All parking lot lighting must be equipped with full cut-offs to direct light downward and to minimize glare, shadows, night sky pollution, and excessive light levels.

(ii) Light spill on neighboring property is prohibited.

(iii) Maximum mounting height of light fixtures in parking lots is 20 feet.

(e) Green Infrastructure

(i) All development must adhere to the City's water quality regulations. Refer to City of Chattanooga's Code, Chapter 31, and the City's Rainwater Management Guide for Green Infrastructure applications.

(f) Screening of Utilities

Completely screen dumpsters, loading areas, mechanical equipment, outdoor storage areas, and other visible utilities with an opaque wall or fence as follows:

(g) The height of the screen must be a minimum of six feet, or 12 inches taller than the object, whichever is higher, and adequate to completely conceal the dumpster or equipment.

(h) Chain link fences or slats are prohibited.

(i) Screens must consist of masonry, stucco, stone, wood, or decorative metal.

(j) Landscaping, including shrubs, trees, perennials, or green screens, must be added to screening to soften the appearance of screening walls or fences.

NEW DEVELOPMENT PROFILE DIAGRAM

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-35. Brainerd Overlay Zone Standards

(1) Intent. The intent of the Brainerd Road Overlay Zone is to realize the primary objectives of "BRAINERD ... a vision for Today"—the community's master plan. Adopted by the Chattanooga City Council in 2011, the Plan's goal is to create a vibrant town center along Brainerd Road that is well connected to adjacent neighborhoods. Specific issues identified in the community's master plan and in meetings by the Brainerd community include:

(a) Poor visual quality in the corridor attributed to: sign clutter, overhead utility poles and electrical lines, lack of street trees, varying building setbacks, and poor quality building designs.

(b) Poor walkability and pedestrian connectivity due to: large parking lots and multiple curb cuts, gaps in the sidewalk network, and lack of landscaping along the street and in parking lots.

(c) Unsafe cycling conditions due to: multiple car/bicycle conflict points from numerous curb cuts, high traffic speeds, and lack of dedicated bike lanes.

(2) Applicability.

(a) The regulations of this Brainerd Overlay Zone shall supplement the regulations of the underlying zoning for all properties within the Overlay Zone area.

(b) Where the following Overlay Zone regulations conflict with a standard set out in Chapter 8-Aviation, the regulations of Chapter 8 shall prevail.

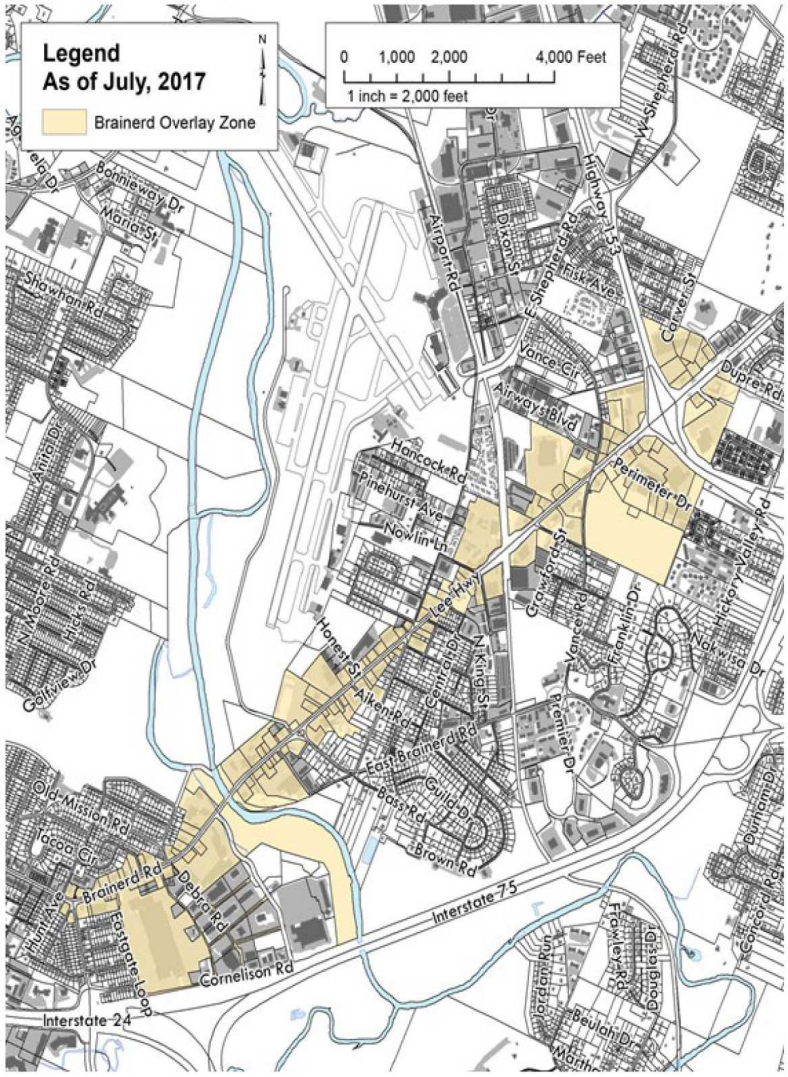
(c) All other City codes, as currently adopted, apply to properties within the Brainerd Overlay Zone, except where noted.

(d) The following development regulations apply to ALL properties within the boundaries of this Overlay Zone of Brainerd Road and Lee Highway from the Spring Creek Road intersection to the TN-153 intersection (see Figure 1. Overlay Zone Map).

Figure 1. Overlay Zone Map

June 27, 2024

Figure 1. Overlay Zone Map



(e) All such properties within the Brainerd Overlay Zone shall be exempt from the street yard regulations of the Chattanooga Landscape Ordinance as applied to development along the Brainerd

(e) All such properties within the Brainerd Overlay Zone shall be exempt from the street yard regulations of the Chattanooga Landscape Ordinance as applied to development along the Brainerd Road and Lee Highway's edge of rights-of-way. The Chattanooga Landscape Ordinance street yard regulations shall only apply to side street frontages within these boundaries.

(f) All such properties may provide voluntary dedication of Street Edge Zone and Bike/Ped Zone right-of-way improvements for those portions outside the current public right-of-way to the City of Chattanooga which will be beneficial to connectivity and public safety for all citizens within the Overlay Zone.

i. Any right-of-way Improvements shall be installed prior to the start of the property dedication process to the City; and

ii. Should there be a need for involuntary dedication for properties without Street Edge zone and/or Bike/Ped connectivity improvements, the City will provide fair market value for any necessary property acquisition beneficial to connectivity and public safety after voluntary dedication has been requested; and

iii. All discussions for dedication of Street Edge Zone and Bike/Ped Zone right-of-way improvements to the City of Chattanooga within this Overlay Zone shall begin with the City of Department of Public Works- Transportation Division before any building permit is issued by the Land Development Office.

(g) The Overlay Zone Regulations are divided into two categories: New Development and Redevelopment. The regulations of this Section shall apply to these two (2) categories as follows:

i. New Development, both public and private, constitutes one (1) or more of the following situations:

a. New Construction of a stand alone building for use as leasable space.

b. Where a building expansion increases the building footprint by more than fifty percent (50%).

c. Where a parking lot or other pavement expansion of at least ten (10) spaces increases the total number of spaces or paved surface by more than fifty percent (50%).

ii. Redevelopment shall constitute both public and private projects. For existing buildings and parking facilities, expansion in building footprint or parking spaces will trigger Redevelopment regulations based on the cumulative scope of work as established below.

(h) Regulations Table (Based on Scope of Work).

Building Expansion = Regulations (Cumulative Square Footage)		*Parking Lot Expansion = Regulations (10 Spaces or More)*	
< 10%	= Utility screening	< 10%	= Utility screening
10% to 25%	= Utility Screening, plus Signage update	10% to 25%	= Utility Screening, plus Signage update, plus All parking additions
>25% to 50%	= Utility screening, plus Signage update, plus 1/2 of Existing parking and all parking additions, plus Entire Street Edge Zone, plus Bike/Pedestrian Zone	>25% to 50%	= Utility screening, plus Signage update, plus 1/2 of Existing parking and all parking additions, plus Entire Street Edge Zone, plus Bike/Pedestrian Zone
> 50%	= Compliance with all of Sec. 38-13	> 50%	= Compliance with all of Sec. 38-13

(i) Building Expansion.

i. Where a building expansion increases building footprint less than ten percent (10%), the entire property shall comply with the Screening of Utilities regulations of this chapter in Section (5)(i).

ii. Where a building expansion increases building footprint at least ten percent (10%) but no more than twenty-five percent (25%):

a. The entire property shall comply with the Screening of Utilities regulations in Section (5)(i), and

b. The entire property shall comply with all Signage regulations per this chapter, Sections (5)(d),(5)(e),(5)(f).

iii. Where a building expansions increases building footprint more than twenty-five percent (25%) but no more than fifty percent (50%):

a. The entire property shall comply with the Screening of Utilities regulations in Section (5)(i);

b. The entire property shall comply with all Signage regulations of this chapter, Sections (5)(d),(5)(e),(5)(f);

c. Fifty percent (50%) of the existing parking lot and all of any expanded portions of the parking lot shall comply with the Parking Lot regulations, Section (4)(d) and (5)(h)(iv); and

d. The entire property shall comply with the New Development Street Edge Zone and Bike/Pedestrian Zone regulations, Sections (5)(a), (5)(b).

iv. Where a building expansion increases building footprint more than fifty percent (50%), the entire property shall comply with all regulations of this Division.

(j) Parking Lot Expansion

i. Where a parking lot expansion of at least ten (10) spaces increases the total number of parking spaces by less than ten percent (10%), the entire property shall comply with the Screening of Utilities regulations Section (5)(i).

ii. Where a parking lot expansion of at least ten (10) spaces increases the total number of parking spaces by at least ten percent (10%) and no more than twenty-five percent (25%):

a. The entire property shall comply with the Screening of Utilities regulations in Section (5)(i);

b. The entire property shall comply with all Signage regulations per this chapter, Sections (5)(d),(5)(e),(5)(f); and

c. The expanded portion of the parking lot shall comply with the Parking Lot regulations, Section (4)(d) and (5)(h)(iv).

iii. Where a parking lot expansion of at least ten (10) spaces increases the total number of parking spaces more than twenty-five percent (25%) but no more than fifty percent (50%):

a. The entire property shall comply with the Screening of Utilities regulations in Section (5)(i);

b. The entire property shall comply with all Sign regulations per this chapter, Sections (5)(d),(5)(e),(5)(f);

c. The expanded portion of the parking lot and fifty percent (50%) of the existing parking lot shall comply with the Parking Lot regulations, Section (4)(d) and (5)(h)(iv); and

d. The entire property shall comply with the New Development Street Edge Zone and Bike/Pedestrian Zone regulations, Sections (5)(a), (5)(b).

iv. Where a parking lot expansion of at least ten (10) spaces increases the total number of parking spaces more than fifty percent (50%), the entire property, including the expanded parking lot portion, shall comply with all regulations of this Division.

(k) All signs shall adhere to all Sign regulations of this chapter, Sections (5)(d),(5)(e),(5)(f), as signs are replaced, repaired, and/or added.

(3) Maintenance. Maintenance of the improvements required in the Brainerd Overlay Zone shall be the responsibility of the property owner.

(4) Redevelopment. See Figure 2. Redevelopment Profile Diagram.

Figure 2. Redevelopment Profile Diagram

(a) Redevelopment that fronts Brainerd Road and Lee Highway shall comply with the following sections:

i. Street Edge Zone as defined in Section (5)(a),

ii. Bike/Pedestrian Zone as defined in Section (5)(b),

iii. Building Height as defined in Section (5)(c)(ii),

iv. Building Materials as defined in Section (5)(c)(v),

v. On-premise Building Signs as defined by Section (5)(d),

vi. On-premise Monument Signs as defined by Section (5)(e), and

vii. Off-premise Billboard Signs. Off-premise billboard signs shall not be permitted.

viii. Screening of Utilities as defined in Section (5)(i).

(b) Front Setback. Buildings shall have a maximum front setback of twenty-six (26) feet.

(c) Curb Cuts.

i. A net increase in the number of curb cuts shall not be permitted along Brainerd Road and Lee Highway.

ii. Property owners shall meet with the Department of Public Works- Transportation Division to discuss consolidating existing driveways and curb cuts.

(d) Parking Lot Regulations.

i. Perimeter Screening of Existing Parking Lots.

a. Location. Screening materials shall be placed parallel to the edge of the Bike/ Pedestrian Zone, accommodating curb cuts and behind the traffic sight triangle at intersections and driveways. See the Chattanooga City Code (Section 32-34) for sight triangle distance regulations. www.chattanooga.gov

b. Dimensions.

1. Screening shall have a minimum height of three (3) feet and a maximum height of four (4) feet above grade, and shall be nearly opaque to screen the parking from view.

2. Height is measured from the grade level of that which is being screened.

3. When landscape is used, the planting area shall have a minimum horizontal depth of four (4) feet.

c. Materials.

1. Perimeter screening of existing parking lots shall consist of perimeter landscape plantings, decorative masonry wall, or a combination of a decorative fence and landscape shrubs, approved by the City Landscape Architect.

2. All shrubs shall be installed at a minimum height of twenty-four (24) inches and spaced to create a complete screen within three (3) years after planting.

3. Landscape shrubs shall be maintained to achieve the minimum height of three (3) feet above grade or one hundred percent (100%) coverage shall be achieved within three (3) years of planting. Seventy-five percent (75%) of the plant material should be evergreen. If coverage is not obtained within three (3) years, supplemental plantings shall be required.

ii. Shade Trees in Parking Lot.

a. In addition to minimum Chattanooga Landscape Ordinance regulations, parking Lot Shade Trees shall be provided at a minimum rate of one (1) two and one-half (2.5) inch caliper tree for every seven (7) parking spaces.

b. If there is insufficient space to provide the required quantity of two and one-half (2.5) inch caliper shade trees due to conflicts with utilities, easements, or existing underground structures, a lesser quantity of larger caliper trees shall be provided. The quantity of larger trees shall be determined by calculating the total caliper inches required. Any combination of larger caliper trees shall be provided to meet that total. (For example, ten (10) two and one-half (2.5) inch caliper trees shall be required for seventy (70) parking spaces, therefore a total of twenty-five (25) caliper inches shall be provided through any combination of larger sized trees.)

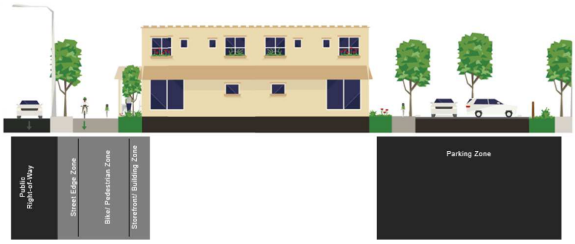
c. A shade tree shall be provided within forty (40) feet of every parking space, to ensure shade coverage throughout the parking lot.

iii. Parking Location. See Section (5)(h)(i). Note that the location regulations only apply to new or expanded parking facilities, not the existing parking lot.

iv. Parking Space Regulations. See Section (5)(h)(ii).

v. Off-Site Parking. See Section (5)(h)(iii).

Figure 3. New Development Profile Diagram



(5) New Development. See Figure 3. New Development Profile Diagram.

(a) Street Edge Zone. See Figure 4. Diagram of Street Edge, Bike/Pedestrian, & Storefront/Building Zones.

i. Dimensions / Location.

a. Location. The Street/Edge Zone is located:

1. Between the edge of the public right-of-way and the Bike/Pedestrian Zone; and

2. Parallel to the edge of the right-of-way.

3. Place trees, shrubs and other elements behind the traffic sight triangle at intersections and driveways. If these elements are necessary within the traffic sight triangle, limit their height to (3) three feet. See the Chattanooga City Code (Section 32-34) for sight distance triangle regulations. www.chattanooga.gov.

b. Length. Twelve (12) feet minimum. For the health of trees located in them, planting strips shall be twelve (12) feet minimum in length.

c. Width. Six (6) feet minimum, extends to the bike/pedestrian zone, excluding the curb dimensions.

d. Clear Path. Any vertical streetscape elements placed in the Street Edge Zone, such as street trees, bus shelters or lighting, shall be placed a minimum of 1.5 feet from the face of curb. The applicant shall refer to AASHTO's Roadside Design Guide for further information and guidance on roadside construction design specifications.

ii. Curb Cuts.

a. Only one (1) Brainerd Road and/or Lee Highway curb cut per one hundred fifty (150) linear feet of street frontage is permitted.

b. Property owners shall meet with the Department of Public Works- Transportation Division to discuss consolidating existing driveways and curb cuts.

iii. Elements Not Permitted. The following shall not be permitted in the Street Edge Zone: parking, chain link or slat fence, drive lanes, HVAC equipment and dumpsters.

iv. Street Edge Zone Materials.

a. Shall include street trees.

b. Shall not include paved surfaces.

c. May include lawn, shrubs, green infrastructure, bus shelters, road signage, street and pedestrian lighting.

d. Green Infrastructure (landscaped planters, bioswales, etc.). All development shall adhere to the City's water quality regulations. Refer to City of Chattanooga's Code, Chapter 31 and the City's Rainwater Management Guide for Green Infrastructure applications.

v. Street Trees.

a. Dimensions/ Location. Trees shall be provided at a rate of one (1) tree per thirty-five (35) linear feet of street frontage. Actual street tree spacing will reflect a twenty-five (25) or thirty (30) foot rhythm as determined by the Department of Public Works-Transportation Division.

b. The City's Urban Forester shall approve all of the following in the Street Edge Zone:

1. Selection of all trees; and

2. Removal or pruning of trees; and

3. Construction or demolition of any buildings fronting the Zone to ensure the protection of existing trees.

vi. Bus Shelters.

a. The Department of Public Works- Transportation Division (CDOT) will determine if a bus shelter is needed, based on a consultation with the Chattanooga Area Regional Transportation Authority (CARTA).

b. Coordinate the placement, design, lighting and construction of bus shelters with the CARTA and Public Works-Transportation.

vii. Lighting.

a. Pedestrian and street light design, type, spacing and mounting height shall be determined by the Department of Public Works- Transportation Division and the Electric Power Board.

1. New lighting in the Street Edge Zone shall be aligned with the street trees and parallel to the edge of right-of-way.

2. Exterior lighting shall be equipped with full cut-offs to direct light downward and to minimize glare, shadows, night sky pollution, and excessive light levels.

Figure 4. Diagram of Street Edge, Bike/Pedestrian, & Storefront/Building

(b) Bike/Pedestrian Zone.

i. Location. The Bike/Pedestrian Zone is located between the Street Edge Zone and the Storefront/Building Zone.

ii. Elements Not Permitted.

a. The following are not permitted in this Zone: parking, chain link or slat fence, drive lanes, HVAC equipment and dumpsters.

b. For safety reasons, building doors shall not open across or onto the Bike/Pedestrian Zone.

iii. Multi-use Path.

a. Width. Twelve (12) feet minimum.

b. Materials. Property owners shall meet with the Department of Public Works-Transportation Division to discuss materials.

c. Continental crosswalk pavement markings. Place a crosswalk at the intersection of the multi-use path and any drive aisles. Continental crosswalks feature a series of closely spaced two-foot wide solid white painted lines (longitudinal lines) paired with a limit (stop) line set back from the crosswalk to reduce vehicular encroachment into the crosswalk.

(c) Storefront/Building Zone.

i. Dimensions/Location.

a. Location. The Storefront/Building Zone is located between the Bike/Pedestrian Zone and all buildings fronting Brainerd Road and Lee Highway.

b. Width. Eight (8) feet maximum.

c. Elements Not Permitted. The following are not permitted in this Zone: parking, chain link or slat fence, drive lanes, HVAC equipment and dumpsters.

ii. Building Height.

a. No maximum building height.

b. The minimum building height for properties fronting Brainerd Road and Lee Highway shall be eighteen (18) feet.

iii. Building Placement.

a. Front Setback. Buildings shall have a maximum front setback of twenty-six (26) feet and a minimum setback of eighteen (18) feet fronting Brainerd Road and Lee Highway.

b. Buildings shall be built to the multi-use path, except in the following circumstance.

1. If an outdoor cafe or landscaped space is provided between the Bike/Pedestrian Zone and the building, then the building may be set back a maximum of eight (8) feet from the Bike/Pedestrian Zone.

2. If the building is set back from the Bike/Pedestrian Zone, a pedestrian walkway shall be provided from the multi-use path to the primary building entrance.

c. Primary building entries shall be clearly identifiable and visible from the street.

iv. Outdoor Cafe/Landscaped Space.

a. Incorporate planters, landscaping, decorative fencing, hedges, low walls, benches or other architectural elements, to frame and define the edge of the landscaped lawns, porches, patios, entry plazas, fountains, outdoor cafes and other man-made spaces.

b. Plant Materials: Plant trees, shrubs, vegetated groundcovers, ornamental grasses, and/or perennials in landscape beds, raised beds, lawns, planters, or tree wells.

v. Building Materials.

a. Use brick, natural and architectural cast stone, architectural pre-cast concrete, glass, glass block, architectural metal panel systems, or concrete masonry units with an architectural coloration or finish on the ground floor of building facades to provide interest for the pedestrian.

b. Other materials may be used on the upper floors.

c. Metal siding, aluminum siding, vinyl siding, synthetic rock, EIFS (synthetic stucco), or other similar exterior materials shall not be used for large expanses of facades. They may be used as accents.

d. Hard plastic awnings shall not be used. Awnings, when applied, shall consist of flexible canvas, acrylic, or vinyl coated material.

(d) On-premise Building Signs.

i. Within this Overlay Zone, the following regulations are applicable in addition to the general Advertising Provisions in Chapter 3 of the Chattanooga City Code.

ii. A City of Chattanooga Sign Permit is still required.

iii. Structural regulations in the Chattanooga Sign Ordinance still apply to the Brainerd Road Overlay Zone.

iv. The Brainerd Road Overlay Zone is exempt from all dimensions, location and type regulations in the Chattanooga Sign Ordinance.

v. Dimensions.

a. Signs on any one (1) side of a building, shall not exceed one and one half (1.5) square feet per linear foot of that building side. Awnings and permanent banners used for advertising are considered part of the building signage and square footage calculation.

b. Projecting signs shall not exceed sixteen (16) square feet in area.

c. Signs painted on windows shall not cover more than twenty percent (20%) of the total window area.

vi. Location.

a. Projecting signs shall be located a minimum of 12 inches below the second story window sill or top of the building, whichever is lower.

b. Signs shall be located to fit within the architectural elements such as in the lintel or sign frieze that separates the ground level from the upper facade, on the upper facade walls, or projecting from the face of the building.

c. Signs shall not obstruct the architectural elements and details of a building.

d. Wall signs shall be placed such that they align with other signs on the block.

e. Roof signs shall not be incorporated.

f. For buildings with multiple tenants, signs shall be located only on the portions of the building directly outside the area occupied by that tenant or contained within consolidated directories, as defined in the City Sign Ordinance.

vii. Type.

a. Signs shall be illuminated by indirect lighting. Internally illuminated box-type plastic signs shall not be permitted, but signs composed of illuminated individual letters shall be permitted.

b. Temporary signs or banners, regardless of size, shall only remain in place for 30 days and require a sign permit, per the Chattanooga Sign Ordinance.

c. Mass produced neon signs shall not be permitted.

(e) On-premise Monument Signs.

i. Monument Sign.

a. A monument sign is defined as an advertising or identification device that is ground mounted and constructed so that there is no space between the ground and the bottom of the device.

b. One monument sign is permitted per parcel.

c. Pole-mounted signs shall not be permitted.

ii. Dimensions/ Location.

a. Monument signs shall not exceed six feet (6') in height or ten feet (10') in width. Signs shall not exceed twenty-five (25) square feet per face and total sign area shall not exceed fifty (50) square feet total of all faces. Height is measured from the top of the sign to the lowest point of the ground upon which the proposed sign is to be located.

b. Monument signs shall not be located in the sight distance triangle or otherwise obstruct lines of sight for vehicular or pedestrian traffic.

c. Monument signs shall not be closer than eighteen (18) feet to any right-of-way, and shall not be located in the Street Edge Zone or Bike/Pedestrian Zone.

iii. Materials. Materials that match the materials of the associated building shall be used.

iv. Illumination.

a. Signs shall be illuminated by indirect lighting. Internally illuminated box-type plastic signs shall not be permitted, but signs composed of illuminated individual letters shall be permitted.

(f) Off-premise Billboard Signs. Off premise billboard signs shall not be permitted.

(g) Bike Racks.

i. Bike Racks are not required, but when provided they shall adhere to the following regulations.

a. Each bicycle parking space shall be at least six feet long by two feet wide; and

b. Shall be located within fifty (50) feet of the building entrance.

c. Bicycle parking racks shall be securely attached to the ground and provide support for a bicycle frame at two points.

(h) Parking Zone.

i. Location.

a. The Parking Zone is located to the rear of buildings.

b. New parking shall not be permitted between a building and the Brainerd Road and/or Lee Highway street frontage.

Figure 5. Parking Zone Behind Buildings

c. If all new parking cannot be accommodated to the rear of the building, parking on the side of the building may be allowed if it is screened from the public right-of-way as described in Section (4)(d).

d. Parking areas shall be connected to parking and access drives of adjacent properties to provide cross-connection. Fences and other barriers shall be removed that prevent interconnection for cars and pedestrians.

e. Garages for new residential dwellings shall be located behind the primary building.

ii. Parking Space Regulations

a. Reference Table 1700 (Article V, Section 38-471) and the underlying Zone for the required number of parking spaces.

b. The number of spaces provided shall not exceed the required number of spaces by more than fifty percent (50%).

c. A minimum of four (4) bicycle parking spaces are required, plus one bicycle parking space for every fifty (50) required car parking spaces.

d. Parking Discounts. Public Works-Transportation may allow the following discounts for required car parking spaces. Applicants should schedule a consultation with Public Works-Transportation to determine potential parking discounts.

1. Bicycle. One (1) car parking space may be discounted for every bicycle parking space required.
2. Pedestrian. If the development connects via new or existing sidewalks to an established sidewalk grid that links multiple land uses (i.e. commercial, residential, office), a ten percent (10%) discount may be applied.
3. Transit. If the development is located within one-quarter (1/4) mile of an established transit stop, a ten percent (10%) discount may be applied.

e. Shared Parking. Parking space discounts may be applied to developments that share parking with facilities serving other uses according to the following chart:

	Residential	*Lodging*	*Office*	*Retail*	*Institution*
Residential	0%	10%	30%	20%	30%
Lodging	10%	0%	50%	30%	20%
Office	30%	50%	0%	20%	50%
Retail	20%	30%	20%	0%	30%
Institution	30%	20%	50%	30%	0%

1. Shared parking discounts are applied before multi-modal discounts
2. To apply shared parking discounts for facilities on separate parcels, a legal agreement between property owners guaranteeing access to and use of designated parking areas is required.

iii. Off-Site Parking.

a. Forty percent (40%) of required car parking spaces, except required accessible spaces, may be located off-site if the remote parking area is located within 700 feet from the primary entrance of the facility served.

b. On-street parking spaces may be counted as required parking spaces provided the on-street spaces abut the subject property.

iv. Parking Lot Lighting.

a. All parking lot lighting shall be equipped with full cut-offs to direct light downward and to minimize glare, shadows, night sky pollution, and excessive light levels.

b. Light spill on neighboring property shall not be permitted.

c. Maximum mounting height of light fixtures in parking lots shall be twenty (20) feet.

v. Shade Trees / Landscape / Green Infrastructure.

a. All development shall adhere to the City's water quality regulations. Refer to City of Chattanooga's Code, Chapter 31 and the City's Rainwater Management Guide for Green Infrastructure applications.

b. See Section (4)(d) for required parking lot shade tree regulations.

(i) Screening of Utilities. Completely screen dumpsters, loading areas, mechanical equipment, outdoor storage areas, and other visible utilities with an opaque wall or fence as follows:

i. The height of the screen shall be a minimum of six (6) feet, or twelve (12) inches taller than the object, whichever is higher, and adequate to completely conceal the dumpster or equipment.

ii. Chain link fences or slats shall not be permitted.

iii. Screens shall consist of masonry, stucco, stone, wood, or decorative metal.

iv. Landscaping, including shrubs, trees, perennials, or green screens, shall be added to screening to soften the appearance of screening walls or fences.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-36. FAA Aviation Overlay Zone

Property within the FAA Aviation Overlay Zone, as defined in Chapter 8 of the Chattanooga City Code and shown on the AOD Map, attached as Appendix A to Chapter 8, are subject to additional requirements described in Chapter 8 in addition to the requirements set forth of this Code.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-37. Airport Use Zone

(a) Property Owned by Chattanooga Metropolitan Airport Authority

Property within the Airport Use Zone, as defined in Chattanooga City Code Chapter 8 and shown on the Airport Use Zone Map, attached as Appendix B to Chattanooga City Code Chapter 8, which is owned by the Chattanooga Metropolitan Airport Authority, is governed by the permitted uses and requirements described in Chattanooga City Code Chapter 8 and the zones of this Zoning Code do not apply.

(b) Property Not Owned by Chattanooga Metropolitan Airport Authority

For all property owners of land within the Airport Use Zone, except for the Chattanooga Metropolitan Airport Authority, the zones and requirements described in this Zoning Code apply and the Airport Use Zone, as described in Chattanooga City Code Chapter 8, has no effect.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-38. Special Flood Hazard Area

(a) Applicability.

This section shall apply to all areas within the incorporated area of the City of Chattanooga, Tennessee.

(i) Statutory Authorization.

(1) The Legislature of the State of Tennessee has in Sections 13-7-201 through 13-7-210, Tennessee Code Annotated delegated the responsibility to local governmental units to adopt regulations designed to promote the public health, safety, and general welfare of its citizenry. Therefore, the City of Chattanooga, Tennessee, Mayor and the Chattanooga City Council, do ordain as follows:

(ii) Finding of Facts.

(1) The City of Chattanooga, Tennessee, Mayor and its City Council wishes to MAINTAIN eligibility in the National Flood Insurance Program (NFIP) and in order to do so must meet the NFIP regulations found in Title 44 of the Code of Federal Regulations (CFR), Ch. 1, Section 60.3.

(2) Areas of the City of Chattanooga, Tennessee are subject to periodic inundation which could result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare.

(3) Flood losses are caused by the cumulative effect of obstructions in floodplains, causing increases in flood heights and velocities; by uses in flood hazard areas which are vulnerable to floods; or construction which is inadequately elevated, floodproofed, or otherwise unprotected from flood damages.

(iii) Purpose.

It is the purpose of this section to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas. This section is designed to:

1. Regulate development in the flood hazard areas of the City of Chattanooga. These flood hazard areas are subject to periodic inundation, which may result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base;
2. Restrict or prohibit uses which are vulnerable to flooding or erosion hazards, or which result in damaging increases in erosion, flood heights, or velocities;
3. Require that uses vulnerable to floods, including community facilities, be protected against flood damage at the time of initial construction;
4. Control the alteration of natural floodplains, stream channels, and natural protective barriers which are involved in the accommodation of floodwaters;
5. Control filling, grading, dredging and other development which may increase flood damage or erosion;
6. Prevent or regulate the construction of flood barriers which will unnaturally divert flood waters or which may increase flood hazards to other lands;
7. Promote sound land use practices - floodplains are a land resource to be developed in a manner which will result in minimum loss of life and threat to health, and reduction of private and public economic loss caused by flooding; and
8. Preserve the natural characteristics and functions of watercourses and floodplains in order to moderate flood and stormwater impacts, improve water quality, reduce soil erosion, protect aquatic and riparian habitat, provide recreational opportunities, provide aesthetic benefits and enhance community and economic development.

(iv) Floodplain Definitions.

For the purposes of this section of the ordinance, the following definitions apply:

Development. Any man-made change to improved or unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavating, drilling operations, or storage of equipment or materials.

Exception. A waiver from the provisions of this Ordinance which relieves the applicant from the requirements of a rule, regulation, order or other determination made or issued pursuant to this Ordinance.

Variance. A grant of relief from the requirements of this Ordinance.

(v) Objectives.

The objectives of this Ordinance are:

(1) To protect human life, health, safety and property;

(2) To minimize expenditure of public funds for costly flood control projects;

(3) To minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

(4) To minimize prolonged business interruptions;

(5) To minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in floodprone areas;

(6) To help maintain a stable tax base by providing for the sound use and development of floodprone areas to minimize blight in flood areas;

(7) To ensure that potential homebuyers are notified that property is in a floodprone area; and

(8) To MAINTAIN eligibility for participation in the NFIP.

(vi) Abrogation and Greater Restrictions.

It is not intended by this ordinance to repeal, abrogate, or impair any existing easements, covenants, or other private agreements. The standards in this ordinance take precedence over any less restrictive, conflicting local laws, ordinances, or codes. However, where this section conflicts or overlaps with another regulatory instrument, whichever imposes the more stringent restrictions shall prevail.

(vii) Interpretation.

In the interpretation and application of these regulations, all provisions must be:

(1) Considered as minimum requirements.

(2) Liberally construed in favor of the governing body.

(3) Deemed neither to limit nor repeal any other powers granted under state statutes.

(viii) Warning and Disclaimer of Liability.

The degree of flood protection required by this section is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by man-made or natural causes.

This section does not imply that land outside the Areas of Special Flood Hazard or uses permitted within such areas will be free from flooding or flood damages. This section shall not create liability on the part of the City of Chattanooga, Tennessee or by any officer or employee thereof for any flood damages that result from reliance on this section or any administrative decision lawfully made hereunder.

(ix) Severability.

If any section, clause, provision, or portion of this section shall be held to be invalid or unconstitutional by any court of competent jurisdiction, such holding shall not affect any other section, clause, provision, or portion of this section which is not of itself invalid or unconstitutional.

(b) Permitted Uses.

Any lawful use permitted in the various zones is also permitted in the portions of such zones underlying the Special Flood Hazard Area subject to all applicable zone standards, off-street parking, and other regulations applicable in such zones. However, in the case of conflict, the provisions of this section for flood hazard reduction control.

(c) Jurisdiction and Districts.

(1) This ordinance applies to all lands within the jurisdiction of the City of Chattanooga within the Special Flood Hazard Areas identified on the Flood Insurance Rate maps. Areas within the SFHA are within one of three districts: the Floodway, Flood Fringe, General Floodplain.

(2) The Areas of Special Flood Hazard identified on the City of Chattanooga, Tennessee, as identified by FEMA, and in its Flood Insurance Study (FIS) and Flood Insurance Rate Map (FIRM), Community Panel Numbers 47065C0214H, 47065C0217H, 47065C0218H, 47065C0219H, 47065C0228H, 47065C0229H, 47065C0236H, 47065C0237H, 47065C0238H, 47065C0239H,

47065C0241H, 47065C0243H, 47065C0245H, 47065C0265H, 47065C0319H, 47065C0326H, 47065C0327H, 47065C0328H, 47065C0329H, 47065C0331H, 47065C0332H, 47065C0333H, 47065C0334H, 47065C0336H, 47065C0337H, 47065C0338H, 47065C0339H, 47065C0341H, 47065C0342H, 47065C0343H, 47065C0344H, 47065C0351H, 47065C0352H, 47065C0353H, 47065C0354H, 47065C0356H, 47065C0357H, 47065C0358H, 47065C0359H, 47065C0361H, 47065C0362H, 47065C0363H, 47065C0364H, 47065C0366H, 47065C0367H, 47065C0368H, 47065C0369H, 47065C0378H, 47065C0379H, 47065C0380H, 47065C0381H, 47065C0383H, 47065C0386H, 47065C0387H, 47065C0388H, 47065C0432H, 47065C0451H, 47065C0452H, 47065C0456H, 47065C0477H, 47065C0481H, 47065C0482H, and 47065CIND0C dated November 28, 2025, along with all supporting technical data, are adopted by reference and declared to be a part of this Ordinance.

(3) In this section, "Map" means the Flood Hazard Boundary Map (FHBM) or the Flood Insurance Rate Map (FIRM) for a community issued by FEMA.

(4) Districts.

(i) Floodway District. Those areas within Zone AE delineated within floodway areas as shown on the Flood Insurance Rate Maps referenced in section (c) (2) and those areas within Zone A determined to be located in the floodway based on the delineation methods in General Floodplain District.

(ii) Flood Fringe District. Those areas within Zone AE located outside of the delineated floodway as shown on the Flood Insurance Rate Maps referenced in section (c) (2), and those areas within Zone A determined to be located in the flood fringe based on the delineation methods in the Zone standards.

General Standards for all Floodplain Districts

(i) General Standards

(1) New construction and substantial improvements shall be anchored to prevent flotation, collapse and lateral movement of the structure;

(2) New construction and substantial improvements shall be constructed with materials and utility equipment resistant to flood damage;

(3) New construction and substantial improvements shall be constructed by methods and practices that minimize flood damage;

(4) Electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities must be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding;

(5) All new and replacement water supply systems must be designed to minimize or eliminate infiltration of flood waters into the system in accordance with regulations of the Tennessee Department of Health;

(6) New and replacement sanitary sewage systems must be designed to minimize or eliminate infiltration of flood waters into the systems and discharges from the systems into flood waters in accordance with regulations of the Tennessee Department of Health. Sewers and manholes constructed below the 100-year elevation must be watertight. All manholes must be constructed so that the manhole covers are not below the High Water Stage;

(7) On-site waste disposal systems are not allowed;

(8) Any alteration, repair, reconstruction, or improvements to a building on which the start of construction was begun after the effective date of these regulations, must meet the requirements of "new construction" as contained in these regulations;

(9) All new construction and substantial improvement proposals shall provide copies of all necessary Federal and State permits, including Section 404 of the Federal Water Pollution Control Act amendments of 1972, 33 U.S.C. 1334;

(10) All subdivision proposals and other proposed new development proposals shall meet the standards of Article V, Section B;

(11) When proposed new construction and substantial improvements are partially located in an area of special flood hazard, the entire structure shall meet the standards for new construction; and

(12) When proposed new construction and substantial improvements are located in multiple flood hazard risk zones or in a flood hazard risk zone with multiple Base Flood Elevations, the entire structure shall meet the standards for the most hazardous flood hazard risk zone and the highest Base Flood Elevation.

(ii) Specific Standards.

In all areas of special flood hazard where base flood elevation data has been determined, the following specific provisions are required as determined by the intended land use in addition to those set forth in sec. 38-38 (d) (i), are required;

(1) Residential Structures.

In AE Zones where Base Flood Elevation data is available, new construction and substantial improvement of any residential building (or manufactured home) shall have the lowest floor, including basement, elevated to no lower than two (2) feet above the Base Flood Elevation if constructed of wood or one (1) foot above base flood elevation if constructed or concrete (slab on grade type of construction). Should solid foundation perimeter walls be used to elevate a structure, openings sufficient to facilitate equalization of flood hydrostatic forces on both sides of exterior walls shall be provided in accordance with the standards of this section: "Enclosures" item (3) below.

Within approximate A Zones where Base Flood Elevations have not been established and where alternative data is not available, the administrator shall require the lowest floor of a building to be elevated to a level of at least three (3) feet above the highest adjacent grade (as defined in Article II). Should solid foundation perimeter walls be used to elevate a structure, openings sufficient to facilitate equalization of flood hydrostatic forces on both sides of exterior walls shall be provided in accordance with the standards of this section: "Enclosures"

(2) Non-Residential Structures.

In AE Zones, where Base Flood Elevation data is available, new construction and substantial improvement of any commercial, industrial, or non-residential building, shall have the lowest floor, including basement, elevated or floodproofed to no lower than one (1) foot above the level of the Base Flood Elevation. Should solid foundation perimeter walls be used to elevate a structure, openings sufficient to facilitate equalization of flood hydrostatic forces on both sides of exterior walls shall be provided in accordance with the standards of this section: "Enclosures" item (3) below.

In approximate A Zones, where Base Flood Elevations have not been established and where alternative data is not available, new construction and substantial improvement of any commercial, industrial, or non-residential building, shall have the lowest floor, including basement, elevated or floodproofed to no lower than three (3) feet above the highest adjacent grade (as defined in Article II). Should solid foundation perimeter walls be used to elevate a structure, openings sufficient to facilitate equalization of flood hydrostatic forces on both sides of exterior walls shall be provided in accordance with the standards of this section: "Enclosures"

Non-Residential buildings located in all A Zones may be floodproofed, in lieu of being elevated, provided that all areas of the building below the required elevation are watertight, with walls substantially impermeable to the passage of water, and are built with structural components having the capability of resisting hydrostatic and hydrodynamic loads and the effects of buoyancy. A Tennessee registered professional engineer or architect shall certify that the design and methods of construction are in accordance with accepted standards of practice for meeting the provisions above, and shall provide such certification to the Administrator as set forth in Article IV, Section B.

A registered professional engineer, architect, or license surveyor must certify that the standards of this subsection are satisfied. Such certification and the specific elevation (in relation to mean sea level) to which such structures are flood proofed must be provided to the Land Development Office.

(3) Enclosures.

All new construction and substantial improvements that include fully enclosed areas formed by foundation and other exterior walls below the lowest floor that are subject to flooding, shall be designed to preclude finished living space and designed to allow for the entry and exit of flood waters to automatically equalize hydrostatic flood forces on exterior walls.

a) Designs for complying with this requirement must either be certified by a Tennessee professional engineer or architect or meet or exceed the following minimum criteria.

i) Provide a minimum of two openings having a total net area of not less than one (1) square inch for every square foot of enclosed area subject to flooding;

ii) The bottom of all openings shall be no higher than one (1) foot above the finished grade; and

iii) Openings may be equipped with screens, louvers, valves or other coverings or devices provided they permit the automatic flow of floodwaters in both directions.

b) The enclosed area shall be the minimum necessary to allow for parking of vehicles, storage or building access.

c) The interior portion of such enclosed area shall not be finished or partitioned into separate rooms in such a way as to impede the movement of floodwaters and all such partitions shall comply with the provisions of Article V, Section B.

(iii) Permit Required.

A floodplain development permit shall be required for all proposed construction or other development, including the placement of manufactured homes, in the areas described in section (c) (2). No person, firm, corporation, or unit of government shall initiate any development or substantial-improvement or cause the same to be done without first obtaining a separate floodplain development permit for each structure or other development.

A permit must be obtained from the Director to verify compliance with all applicable standards outlined in this ordinance prior to the following uses or activities:

(1) The erection, addition, modification, maintenance, rehabilitation, repair, or alteration of any building, structure, or portion thereof. Normal maintenance requires a permit to determine if such work, either separately or in conjunction with other planned work, constitutes a substantial improvement.

(2) The construction of a fence, pool, deck, or placement of anything that may cause a potential obstruction.

a) The change or expansion of a nonconforming use.

b) The repair of a structure that has been damaged by flood, fire, tornado, or any other source.

c) The placement of fill, excavation, utilities, on-site sewage treatment systems, or other service facilities.

d) Relocation or alteration of a watercourse (including stabilization projects or the construction of new or replacement dams, culverts and bridges). A local permit is not required if a public waters work permit has been obtained from the Department of Natural Resources, unless a significant area above the ordinary high water level is also to be disturbed.

e) Any other type of "development," as defined in the definitions section of this ordinance.

(iv) No permit for floodplain development shall be granted for new construction, substantial-improvements, and other improvements, including the placement of manufactured homes, within any numbered or unnumbered A zones and AE zones, unless the conditions of this Section are satisfied.

(v) All areas identified as unnumbered A zones on the FIRM are subject to inundation of the 100-year flood; however, the base flood elevation is not provided. Development within unnumbered A zones is subject to all provisions of this Chapter. If Flood Insurance Study data is not available, the community shall obtain, review, and reasonably utilize any base flood elevation or floodway data currently available from Federal, State, or other sources.

(vi) All new construction, subdivision proposals, substantial-improvements, prefabricated structures, placement of manufactured homes, and other developments shall require:

a. Design or adequate anchorage to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;

b. Construction with materials resistant to flood damage;

c. Utilization of methods and practices that minimize flood damages;

d. All electrical, heating, ventilation, plumbing, air-conditioning equipment, and other service facilities be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding;

e. New or replacement water supply systems and/or sanitary sewage systems be designed to minimize or eliminate infiltration of flood waters into the systems and discharges from the systems into flood waters, and on-site waste disposal systems be located so as to avoid impairment or contamination; and

f. Subdivision proposals and other proposed new development, including manufactured home parks or subdivisions, located within special flood hazard areas are required to assure that:

i. All such proposals are consistent with the need to minimize flood damage;

ii. All public utilities and facilities, such as sewer, gas, electrical, and water systems are located and constructed to minimize or eliminate flood damage;

iii. Adequate drainage is provided so as to reduce exposure to flood hazards; and

iv. All proposals for development, including proposals for manufactured home parks and subdivisions, of five (5) acres or fifty (50) lots, whichever is lesser, include within such proposals Base Flood Elevation data.

(vii) Storage, Material, And Equipment.

The storage or processing of materials within the special flood hazard area that are in time of flooding buoyant, flammable, explosive, or could be injurious to human, animal, or plant life is prohibited.

Storage of other material or equipment may be allowed if not subject to major damage by floods, if firmly anchored to prevent flotation, or if readily removable from the area within the time available after a flood warning.

(viii) Accessory Structures.

For this section of the Section, Accessory Structures shall mean a subordinate structure to the principal structure on the same lot and, for the purpose of this Ordinance, shall conform to the following:

(1) Accessory structures shall only be used for parking of vehicles and storage, not attached to any other structure on the site.

(2) Accessory structures shall be designed to have low flood damage potential.

(3) Accessory structures shall be constructed and placed on the building site so as to offer the minimum resistance to the flow of floodwaters.

(4) Accessory structures shall be firmly anchored to prevent flotation, collapse, and lateral movement, which otherwise may result in damage to other structures.

(5) Utilities and service facilities such as electrical and heating equipment shall be elevated or otherwise protected from intrusion of floodwaters.

(6) Accessory Structures shall be of limited investment value, and not larger than four hundred (400) square feet, may be constructed at-grade and wet-floodproofed provided there is no human habitation or occupancy of the structure; the structure is of single-wall design; a variance has been granted from the standard floodplain management requirements of this Chapter; and a floodplain development permit has been issued.

(ix) Substantial Improvement and Substantial Damage Determinations. Prior to issuing any permits for additions, modifications, rehabilitations, repairs, alterations, or maintenance to nonconforming structures, the Director is required to determine if such work constitutes substantial improvement or repair of a substantially damaged structure. A determination must be made in accordance with the following procedures:

(1) Estimate the market value of the structure. In the case of repairs, the market value of the structure shall be the market value before the damage occurred and before any restoration or repairs are made.

(2) Estimate the cost of the project. The property owner shall accommodate for inspection, and furnish other documentation needed by the Director to evaluate costs.

a) Improvement costs shall be comprised of the market rate of all materials and labor, as well as the costs of all ordinary maintenance and upkeep carried out over the past one year.

b) Costs to repair damages shall be comprised of the market rate of all materials and labor required to restore a building to its pre-damaged condition regardless of the work proposed, as well as associated improvement costs if structure is being restored beyond its pre-damaged condition.

(3) Compare the cost of the improvement, repairs, or combination thereof to the estimated market value of the structure and determine whether the proposed work constitutes substantial improvement or repair of a substantially damaged structure.

a) For the purposes of determining whether the proposed work would constitute substantial improvement, the evaluation shall also include all rehabilitations, additions, or other improvements completed since the community has adopted floodplain standards impacting this structure.

b) If any nonconforming structure experiences a repetitive loss it shall be considered substantially damaged and must not be reconstructed except in conformity with the provisions of this ordinance.

(4) Based on this determination, the Director shall prepare a determination letter and notify the property owner accordingly. Structures determined to be substantially damaged or substantially improved may not be reconstructed except in conformity with the provisions of this ordinance.

(d) Floodway District.

(i) Established

(1) The Floodway District is all parcels on the FIS that are categorized as Floodway.

(ii) The F/W Floodway Zone is established to:

(1) Maintain the capability of the Tennessee River (Nickajack Lake), its tributaries, and their adjacent lands to drain flood waters .....

(2) Protect the river, creek channels, streams, and flood plains from encroachment, so that flood heights and flood damage will not be increased

(3) Provide necessary regulations for the protection of the public health and safety,

(4) Reduce the financial burdens imposed upon the community by floods and the inundation of land

(iii) Permitted Uses in Floodway.

Development allowed in the floodway district is limited to that which has low flood damage potential and will not obstruct flood flows, increase velocities, or increase the water surface elevations of the one-percent annual chance flood.

No structures are allowed in the Floodway District other than water control, public utility facilities, and water-oriented industries which are permitted in or adjacent to water courses for approved operation.

The following uses and activities may be allowed with a permit:

(1) Recreational uses, airport landing strips, water control structures, navigational facilities, as well as public open space uses.

(2) Roads, driveways, railroads, trails, bridges, and culverts.

(3) Public utility facilities and water-oriented industries which must be in or adjacent to watercourses.

(4) Grading, filling, and land alterations as it pertains to shoreline stabilization projects.

(iv) Standards for Permitted Uses in Floodway. In addition to the applicable standards detailed in Section 38-38 (d):

(1) Permit encroachments within the adopted regulatory floodway that would result in an increase in base flood elevations, floodway width or base flood discharge, shall only be allowed if the applicant first has applied for a Conditional Letter of Map Revision (CLOMR) in accordance with 44 CFR § 65.12, and FEMA has issued the CLOMR prior to the start of construction. Upon completion of the project, the applicant shall apply for a Letter of Map Revision (LOMR) from FEMA. Submittal requirements and fees shall be the responsibility of the applicant as established under the provisions of § 65.12.

(2) The applicant must demonstrate that the development will not result in any of the following during the one percent annual chance flood: cause a stage increase of 0.00 feet or greater, obstruct flood flows, or increase velocities. This shall be demonstrated through hydrologic

and hydraulic analysis performed by a professional engineer or using other standard engineering practices (e.g. projects that restore the site to the previous cross-sectional area). This is commonly documented through a "no-rise certification."

(3) Any development resulting in a change to the water surface elevation of the base flood identified in the Flood Insurance Study requires a Letter of Map Revision (LOMR) following the procedure.

(e) Flood Fringe District.

(i) Established. Located within the Special Flood Hazard Areas, where streams exist with base flood data provided but where no floodways have been designated (Zones AE, AH,) and/or there is no established Base Flood Elevations (Zone A, AO, A-99, Unmapped Streams).

(ii) Permitted Uses in Flood Fringe. Any uses or activities allowed in any applicable underlying zoning districts may be allowed with a permit, subject to the standards set forth in Section 38-38 (d) and the standards outlined below.

(iii) Standards for Permitted Uses in Flood Fringe District. Located within the Special Flood Hazard Areas are areas designated as floodways that may be an extremely hazardous area due to the velocity of floodwaters, debris or erosion potential. In addition, the area must remain free of encroachment in order to allow for the discharge of the base flood without increased flood heights and velocities.

Therefore, the following provisions shall apply:

(1) Standards for Special Flood Hazard Areas with Established Base Flood Elevations and With Floodways Designated

a) Require until a regulatory floodway is designated, that no new construction, substantial improvements, or other development, including fill shall be permitted within Zone AE on the community's FIRM, unless it is demonstrated through hydrologic and hydraulic analyses performed that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point within the community.

b) Permit encroachments within the adopted regulatory floodway that would result in an increase in base flood elevations, floodway width or base flood discharge, shall only be allowed if the applicant first has applied for a Conditional Letter of Map Revision (CLOMR) in accordance with 44 CFR § 65.12, and FEMA has issued the CLOMR prior to the start of construction. Upon completion of the project, the applicant shall apply for a Letter of Map Revision (LOMR) from FEMA. Submittal requirements and fees shall be the responsibility of the applicant as established under the provisions of § 65.12.

c) ONLY if Section 38-38 (f) (iii), provisions (1) through (2) are satisfied, then any new construction or substantial improvement shall comply with all other applicable flood hazard reduction provisions of Section 38-38 (d), subsections (i) and (ii).

(2) Standards for Areas of Special Flood Hazard Zones AE with Established Base Flood Elevations but Without Floodways Designated

Located within the Special Flood Hazard Areas where streams exist with base flood data provided but where no floodways have been designated (Zones AE).

Therefore the following provisions apply:

a) Require until a regulatory floodway is designated, that no new construction, substantial improvements, or other development, including fill shall be permitted within Zone AE on the community's FIRM, unless it is demonstrated through hydrologic and hydraulic analyses performed that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point within the community.

b) A community may permit encroachments within Zones AE on the community's FIRM, that would result in an increase in the water surface elevation of the base flood, provided that the applicant first applies for a Conditional Letter of Map Revision (CLOMR) from FEMA prior to the start of construction. Upon completion of the project, the applicant shall apply for a Letter of Map Revision (LOMR) from FEMA. Submittal requirements and fees shall be the responsibility of the applicant as established under the provisions of § 65.12.

c) ONLY if Article V, Section D, provisions (1) through (2) are satisfied, then any new construction or substantial improvement shall comply with all other applicable flood hazard reduction provisions of Article V, Sections A and B.

(3) Standards for Streams without Established Base Flood Elevations and Floodways (A Zones)

Located within the Special Flood Hazard Areas where streams exist, but no base flood data has been provided and where a Floodway has not been delineated,

Therefore the following provisions shall apply:

a) The Administrator shall obtain, review, and reasonably utilize any Base Flood Elevation and floodway data available from any Federal, State, or other sources, including data developed as a result of these regulations (see 2 below), as criteria for requiring that new construction, substantial improvements, or other development in approximate A Zones meet the requirements of Section 38-38(e), Section 38-38(f).

b) Require that all new subdivision proposals and other proposed developments (including proposals for manufactured home parks and subdivisions) greater than 50 lots or 5 acres, whichever is the lesser, include within such proposals Base Flood Elevation data.

c) Within approximate A Zones, where Base Flood Elevations have not been established and where such data is not available from other sources, require the lowest floor of a building to be elevated or floodproofed to a level of at least three (3) feet above the highest adjacent grade. All applicable data including elevations or floodproofing certifications shall be recorded. Openings sufficient to facilitate automatic equalization of hydrostatic flood forces on exterior walls shall be provided in accordance with the standards of Section 38-38(e).

d) Within approximate A Zones, where Base Flood Elevations have not been established and where such data is not available from other sources, no encroachments, including structures or fill material, shall be located within an area equal to the width of the stream or twenty feet (20), whichever is greater, measured from the top of the stream bank, unless certification by a Tennessee registered professional engineer is provided demonstrating that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point within the City of Chattanooga, Tennessee. The engineering certification should be supported by technical data that conforms to standard hydraulic engineering principles.

e) New construction and substantial improvements of buildings, where permitted, shall comply with all applicable flood hazard reduction provisions of Section 38-38 (d), (i) and

(ii). Within approximate A Zones, require that those subsections of Article V Section B dealing with the alteration or relocation of a watercourse, assuring watercourse carrying capacities are maintained and manufactured homes provisions are complied with as required.

(4) Standards For Areas of Shallow Flooding (Zone AO)

Located within the Special Flood Hazard Areas are areas designated as shallow flooding areas having special flood hazards associated with base flood depths of one (1) to three (3) feet where a clearly defined channel does not exist and where the path of flooding is unpredictable and indeterminate. In addition to Section 38-38 (d), (i)and (ii), all new construction and substantial improvements shall meet the following requirements:

a) The lowest floor (including basement) shall be elevated at least as high as the depth number specified on the Flood Insurance Rate Map (FIRM), in feet, plus a freeboard of one (1) foot above the highest adjacent grade; or at least three (3) feet above the highest adjacent grade, if no depth number is specified.

b) Non-residential structures may, in lieu of elevation, be floodproofed to the same level as required in Section 38-38 (f)(iii)(4)(a) so that the structure, together with attendant utility and sanitary facilities, below that level shall be watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. Certification is required by a Tennessee registered professional engineer.

c) Adequate drainage paths shall be provided around structures on slopes, to guide floodwaters around and away from proposed structures.

(5) Standards For Areas of Shallow Flooding (Zone AH).

Located within the Special Flood Hazard Areas are areas designated as shallow flooding areas. These areas are subject to inundation by 1-percent-annual-chance shallow flooding (usually areas of ponding) where average depths are one (1) to three (3) feet. In addition to meeting the requirements of Section 38-38 (d),(1) and (2), all new construction and substantial improvements shall provide adequate drainage paths around structures on slopes, to guide floodwaters around and away from proposed structures.

(6) Standards For Areas Protected by Flood Protection System (A-99 Zones).

Located within the Areas of Special Flood Hazard are areas of the 100-year floodplain protected by a flood protection system but where Base Flood Elevations have not been determined. Within these areas (A-99 Zones) all provisions of Section 38-38 (d) and (i) shall apply.

(7) Standards for Unmapped Streams.

Located within the City of Chattanooga, Tennessee, are unmapped streams where areas of special flood hazard are neither indicated nor identified.

Adjacent to such streams, the following provisions shall apply:

a) No encroachments including fill material or other development including structures shall be located within an area of at least equal to twice the width of the stream, measured from the top of each stream bank, unless certification by a Tennessee registered professional engineer is provided demonstrating that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point within the locality.

b) When a new flood hazard risk zone, and Base Flood Elevation and floodway data is available, new construction and substantial improvements shall meet the standards established in accordance with Section 38-38 (d) and (i).

c) ONLY if Section 38-38 (f)(iii)(7), provisions (a) and (b) are satisfied, then any new construction or substantial improvement shall comply with all other applicable flood reduction provisions of Section 38-38 (d), (i) and (ii).

(f) Standards for Manufactured Homes and Recreational Vehicles.

(i) In this section, "Existing Manufactured Home Park or Subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, final site grading or the pouring of concrete pads) is completed before the effective date of the first floodplain management code or ordinance adopted by the community as a basis for that community's participation in the NFIP.

(ii) In this section, "Expansion to an Existing Manufactured Home Park or Subdivision" means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

(iii) In this section "Recreational Vehicle" means a vehicle which is:

(1) Built on a single chassis;

(2) 400 square feet or less when measured at the largest horizontal projection;

(3) Designed to be self-propelled or permanently towable by a light duty truck;

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

(iv) All manufactured homes placed or substantially improved on individual lots or parcels, in expansions to existing manufactured home parks or subdivisions, or in substantially improved manufactured home parks or subdivisions, must meet all the requirements for new construction, including elevation and anchoring.

(v) All manufactured homes placed or substantially improved in an existing manufactured home park or subdivision must be elevated so that either:

(1) In AE Zones, with Base Flood Elevations, the lowest floor of the manufactured home is elevated on a permanent foundation to no lower than two (2) feet above the level of the Base Flood Elevation or

(2) In approximate A Zones, without Base Flood Elevations, the manufactured home chassis is elevated and supported by reinforced piers (or other foundation elements of at least equivalent strength) that are at least three (3) feet in height above the highest adjacent grade (as defined in Article II).

(vi) In an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as the result of a flood, any manufactured home placed or substantially improved must meet the standards of items i and ii above.

(vii) All manufactured homes must be securely anchored to an adequately anchored foundation system to resist flotation, collapse and lateral movement.

(viii) Manufactured homes shall be installed using methods and practices that minimize flood damage. They must be elevated and anchored to prevent flotation, collapse and lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable State of Tennessee and local anchoring requirements for resisting wind forces.

(ix) All recreational vehicles placed in an identified Special Flood Hazard Area must either:

(1) Be on the site for fewer than 180 consecutive days;

(2) Be fully licensed and ready for highway use (a recreational vehicle is ready for highway use if it is licensed, on its wheels or jacking system, attached to the site only by quick disconnect type utilities and security devices, and has no permanently attached structures or additions); or

(3) The recreational vehicle must meet all the requirements for new construction.

(g) Administration.

(i) Duties. The Director of the Land Development Office must administer and enforce this ordinance.

(1) Duties of the Administrator shall include, but not be limited to, the following:

(2) Review all development permits to assure that the permit requirements of this Ordinance have been satisfied, and that proposed building sites will be reasonably safe from flooding.

(3) Review proposed development to assure that all necessary permits have been received from those governmental agencies from which approval is required by Federal or State law, including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334.

(4) Notify adjacent communities and the Tennessee Emergency Management Agency, State NFIP Office, prior to any alteration or relocation of a watercourse and submit evidence of such notification to FEMA.

(5) For any altered or relocated watercourse, submit engineering data/analysis within six (6) months to FEMA to ensure accuracy of community FIRM's through the Letter of Map Revision process.

(6) Assure that the flood carrying capacity within an altered or relocated portion of any watercourse is maintained.

(7) Record the elevation, in relation to mean sea level or the highest adjacent grade, where applicable, of the lowest floor (including basement) of all new and substantially improved buildings, in accordance with Article IV, Section B.

(8) Record the actual elevation, in relation to mean sea level or the highest adjacent grade, where applicable to which the new and substantially improved buildings have been Enclosed, in accordance with Section 38-38 (i)(ii).

(9) When floodproofing is utilized for a nonresidential structure, obtain certification of design criteria from a Tennessee registered professional engineer or architect, in accordance with Section 38-38 (i)(ii).

(10) Where interpretation is needed as to the exact location of boundaries of the Areas of Special Flood Hazard (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), make the necessary interpretation. Any person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in this Ordinance.

(11) When Base Flood Elevation data and floodway data have not been provided by FEMA, obtain, review, and reasonably utilize any Base Flood Elevation and floodway data available from a Federal, State, or other sources, including data developed as a result of these regulations, as criteria for requiring that new construction, substantial improvements, or other development in Zone A on the City of Chattanooga, Tennessee FIRM meet the requirements of this Ordinance.

(12) Maintain all records pertaining to the provisions of this Ordinance in the office of the Administrator and shall be open for public inspection. Permits issued under the provisions of this Ordinance shall be maintained in a separate file or marked for expedited retrieval within combined files.

(13) A final Finished Construction Elevation Certificate (the latest edition of FEMA Elevation Certificate Form) is required after construction is completed and prior to Certificate of Compliance/Occupancy issuance. It shall be the duty of the permit holder to submit to the Floodplain Administrator a certification of final as-built construction of the elevation of the reference level and all attendant utilities. The Floodplain Administrator shall review the certificate data submitted. Deficiencies detected by such review shall be corrected by the permit holder immediately and prior to Certificate of Compliance/Occupancy issuance. In some instances, another certification may be required to certify corrected as-built construction. Failure to submit the certification or failure to make required corrections shall be cause to withhold the issuance of a Certificate of Compliance/Occupancy. The Finished Construction Elevation Certificate certifier shall provide at least 2 photographs showing the front and rear of the building taken within 90 days from the date of certification. The photographs must be taken with views confirming the building description and diagram number provided in Section A. To the extent possible, these photographs should show the entire building including foundation. If the building has split-level or multi-level areas, provide at least 2 additional photographs showing side views of the building. In addition, when applicable, provide a photograph of the foundation showing a representative example of the flood openings or vents. All photographs must be in color and measure at least 3" × 3". Digital photographs are acceptable.

(ii) Permit Application Requirements.

To obtain a floodplain development permit, the applicant shall first complete an application, furnished for that purpose. Every floodplain development permit application shall:

(1) Describe the land on which the proposed work is to be done by lot, block and tract, house and street address, or similar description that will readily identify and specifically locate the proposed structure or work;

(2) Identify and describe the work to be covered by the floodplain development permit;

(3) Indicate the use or occupancy for which the proposed work is intended;

(4) Indicate the assessed value of the structure and the fair market value of the improvement;

(5) Specify whether development is located in designated flood fringe or floodway;

(6) Identify the existing base flood elevation and the elevation of the proposed development;

(7) Be accompanied by plans drawn to scale and specifications for proposed construction;

(8) Be signed by the permittee or his/her authorized agent who may be required to submit evidence to indicate such authority; and

(9) Submit any other relevant information requested by the Director as necessary to properly evaluate the permit application.

(iii) Recordkeeping. The Director must maintain applicable records in perpetuity documenting:

(1) All certifications for dry floodproofing, alternative elevation methods, and construction in Coastal Districts, where applicable.

(2) Analysis of no-rise in the Floodway District, as detailed in Section 38-39 (e)(ii)(1), and encroachment analysis ensuring no more than one-half foot of rise in the General Floodplain District, as detailed in Section (g)(i)(3)(a) and 7.31.

(3) Final elevations, as applicable, detailing the elevation to which structures and improvements to structures are constructed or floodproofed. Elevations shall be determined by a Tennessee engineer, architect, surveyor or other qualified individual, as approved by the Director. In V Zones, the final elevations must be determined by a professional engineer or architect.

(4) Substantial damage as defined in Section 2.148 and substantial improvement as defined in Section 2.149 determinations, as detailed in Section 13.13, including the cost of improvements, repairs, and market value.

(5) The Director must maintain a record of all variance actions, including justification for their issuance, and must report such variances in an annual or biennial report to the Administrator of the National Flood Insurance Program, or when requested by the Federal Emergency Management Agency.

(iv) Certificate of Zoning Compliance for a New, Altered, or Nonconforming Use. No building, land or structure may be occupied or used in any manner until land use, performance standard or conditional use permit has been issued by the Director stating that the finished fill and building floor elevations or other flood protection measures are in compliance with the requirements of this ordinance.

(v) Notifications for Watercourse Alterations. Before authorizing any alteration or relocation of a river or stream, the Administrator must notify adjacent communities. A copy of the notification must also be submitted to FEMA.

(vi) Notification to FEMA When Physical Changes Increase or Decrease Base Flood Elevations. Where physical changes affecting flooding conditions may increase or decrease the water surface elevation of the base flood, the applicant must notify FEMA of the changes in order to obtain a Letter of Map Revision (LOMR), by submitting a copy of the relevant technical or scientific data as soon as practicable, but no later than six months after the date such supporting information becomes available. Within the General Floodplain District, a map revision is only required if development results in stage increases greater than 0.5 feet.

(h) Procedure.

(i) Application stage.

a) Elevation in relation to mean sea level of the proposed lowest floor, including basement, of all buildings where Base Flood Elevations are available, or to certain height above the highest adjacent grade when applicable under this Ordinance.

b) Elevation in relation to mean sea level to which any non-residential building will be floodproofed where Base Flood Elevations are available, or to certain height above the highest adjacent grade when applicable under this Ordinance.

c) A FEMA Floodproofing Certificate from a Tennessee registered professional engineer or architect that the proposed non-residential floodproofed building will meet the floodproofing criteria in Section 38-38 (d) (i-ii).

d) Description of the extent to which any watercourse will be altered or relocated as a result of proposed development.

e) In order to determine if improvements or damage meet the Substantial Improvement or Substantial Damage criteria, the applicant shall provide to the Floodplain Administrator a detailed cost to repair all damages and/or cost of improvements which includes the complete costs associated with all types of work necessary to completely repair or improve a building. These include the costs of all materials, labor, and other items necessary to perform the proposed work. These must be in the form of:

i) An itemized costs of materials, and labor, or estimates of materials and labor that are prepared by licensed contractors or professional construction cost estimators

ii) Building valuation tables published by building code organizations and cost-estimating manuals and tools available from professional building cost-estimating services.

iii) A qualified estimate of costs that is prepared by the local official using professional judgement and knowledge of local and regional construction costs.

iv) A detailed cost estimate provided and prepared by the building owner. This must include as much supporting documentation as possible (such as pricing information from lumber companies, plumbing and electrical suppliers, etc.). In addition, the estimate must include the value of labor, including the value of the owner's labor.

(ii) Construction Stage.

Within AE Zones, where Base Flood Elevation data is available, any lowest floor certification made relative to mean sea level shall be prepared by or under the direct supervision of, a Tennessee registered land surveyor and certified by same. The Administrator shall record the elevation of the lowest floor on the development permit. When floodproofing is utilized for a non-residential building, said certification shall be prepared by, or under the direct supervision of, a Tennessee registered professional engineer or architect and certified by same.

Within approximate A Zones, where Base Flood Elevation data is not available, the elevation of the lowest floor shall be determined as the measurement of the lowest floor of the building relative to the highest adjacent grade. The Administrator shall record the elevation of the lowest floor on the development permit. When floodproofing is utilized for a non-residential building, said certification shall be prepared by, or under the direct supervision of, a Tennessee registered professional engineer or architect and certified by same.

For all new construction and substantial improvements, the permit holder shall provide to the Administrator an as-built certification of the lowest floor elevation or floodproofing level upon the completion of the lowest floor or floodproofing.

Any work undertaken prior to submission of the certification shall be at the permit holder's risk. The Administrator shall review the above-referenced certification data. Deficiencies detected by such review shall be corrected by the permit holder immediately and prior to further work being allowed to proceed. Failure to submit the certification or failure to make said corrections required hereby, shall be cause to issue a stop-work order for the project.

(iii) Finished Construction Stage.

A finished Constructions Elevation Certificate is required after construction is completed and prior to Certificate of Compliance/Occupancy issuance. It shall be the duty of the permit holder to submit to the Floodplain Administrator a certification of final as-built construction of the elevation of the reference level and all attendant utilities. The Administrator will keep the certificate on file in perpetuity.

(i) Variance.

(i) Authority.

(1) The City of Chattanooga, Tennessee City Council shall hear and decide appeals and requests for variances from the requirements of this section.

(ii) Procedure.

(1) Meetings of the City Council shall be held at such times, as the City Council shall determine. All meetings of the City Council shall be open to the public. The City Council shall adopt rules of procedure and shall keep records of applications and actions thereof, which shall be a public record.

(2) An appeal to the City Council may be taken by any person, firm or corporation aggrieved or by any governmental officer, department, or bureau affected by any decision of the Administrator based in whole or in part upon the provisions of this Section. Such appeal shall be taken by filing with the Land Development Office a notice of appeal, specifying the grounds thereof. The Administrator shall transmit to the City Council all papers constituting the record upon which the appeal action was taken. The City Council shall hear the appeal, give public notice thereof, as well as due notice to parties in interest and decide the same within a reasonable time which shall not be more than 14 days from the date of the hearing. At the hearing, any person or party may appear and be heard in person or by agent or by attorney.

(3) To hear and decide appeals where it is alleged by the applicant that there is error in any order, requirement, permit, decision, determination, or refusal made by the Director of the Land Development Office in carrying out or enforcement of any provisions of Section 38-38.

(4) Any person aggrieved by the decision of the City Council or any taxpayer may appeal such decision to a court of competent jurisdiction.

(5) Variances may be issued for the repair or rehabilitation of historic structures as defined, herein, upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary deviation from the requirements of this Ordinance to preserve the historic character and design of the structure.

(6) In passing upon applications which relate to areas of special flood hazard, the City Council will consider all technical evaluations, all relevant factors, standards specified in other sections of these regulations, and:

a) The danger that materials may be swept onto other lands to the injury of others.

b) The danger of life and property due to flooding or erosion.

c) The susceptibility of the proposed facility and its content flood damage and the effect of such damage on the individual owner.

d) The importance of the services provided by the proposed facility to the community.

e) The necessity to the facility of a waterfront location, in the case of a functionally dependent use.

f) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use.

g) The compatibility of the proposed use with existing and anticipated development.

h) The relationship of the proposed use to the comprehensive plan and flood plain management program for that area.

i) The safety of access to the property in time of flood for ordinary and emergency vehicles.

j) The expected heights, velocity, duration, rate of rise and sediment transport of the flood waters and the effects of wave action, if applicable, expected at the site.

k) The cost of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems, and streets and bridges.

(7) Generally, variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level. As the lot size increases beyond the one-half acre, the technical justification required for issuing the variance increases.

(8) Upon consideration of the factors listed above and the purposes of these regulations, the City Council may attach such conditions to the granting of variances as it deems necessary to further the purposes of these regulations.

(9) Variances will not be issued within the Floodway Zone if any increase in flood levels during the base flood discharge would result.

(iii) Conditions for Variances.

(1) Variances will only be issued upon a determination that the variance is the minimum relief necessary, considering the flood hazard, to afford relief. Variances will only be issued upon:

a) A showing of good and sufficient cause.

b) A determination that failure to grant the variance would result in exceptional hardship to the applicant.

c) A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or regulations.

(2) Any applicant to whom a variance is granted will be given written notice specifying the difference between the base flood elevation and the elevation to which the building is to be built and stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest flood elevation.

(3) The Director of the Land Development Office will maintain the records of all appeal actions and report any variances to the Federal Insurance Administration upon request.

(j) Penalties for Violation.

(i) Any person who violates these regulations or fails to comply with any of these requirements will, upon conviction thereof, be punished as provided in Article XVIII, and in addition pay all costs and expenses involved in the case. Each day such violation continues is considered a separate offense. Nothing prevents the City from taking such other lawful action as is necessary to prevent or remedy any violation.

Editor's note—Ord. No. 14298, § 1, adopted Dec. 2, 2025, repealed the former § 38-38, and enacted a new § 38-38 as set out herein. The former § 38-38 pertained to F/W floodway and derived from Ord. No. 14137, § 1, adopted July 23, 2024; Ord. No. 14138, § 1, adopted July 23, 2024.

Sec. 38-39. Reserved

Editor's note—Ord. No. 14298, § 1, adopted Dec. 2, 2025, repealed § 38-39, which pertained to F/H flood hazard and derived from Ord. No. 14137, § 1, adopted July 23, 2024; Ord. No. 14138, § 1, adopted July 23, 2024.

ARTICLE IX. USES

Sec. 38-40. General Use Regulations

(a) No structure or land may be used or occupied unless allowed as a permitted or special exception use within the zone.

(b) All uses must comply with any applicable federal and state requirements, and any additional federal, state, or city ordinances.

(c) Any use that is not included in the use matrix or is not interpreted as part of a listed use is prohibited in all zones.

(d) A lot may contain more than one principal use, so long as each principal use is allowed in the district. Each principal use is approved separately.

(1) In certain cases, uses are defined to include ancillary uses that provide necessary support or are functionally integrated into the principal use.

(2) More than one principal use on a lot is not permitted in the residential zones.

(e) All uses, whether permitted or special, must comply with the use standards of Section 9.3 for principal uses, Section 9.4 for accessory uses, or Section 9.5 for temporary uses, as applicable.

(f) Short-term vacation rental uses are regulated separately in Article XVII. Short-term vacation rental uses are defined in Article XVII.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-41. Use Matrix

(a) Table 38-41.1: Use Matrix identifies the principal, accessory, and temporary uses allowed within each zone.

(b) The permissions in Table 38-41.1 are indicated as follows:

(1) P indicates that the use is permitted by-right in the zone.

(2) SE indicates that the use is a special exception.

(3) If a cell is blank, the use is not allowed in the zone.

(4) SE-C indicates that the use is a Special Exceptions by City Council.

(5) ** indicates that the use is a Permitted Use in the zone if zoned prior to December 18, 2024.

(c) All uses in Table 38-41.1 are defined in Section 38-45.

TABLE 38-41.J: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1-3	RN-1-6	RN-1-5	RN-1-7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
PRINCIPAL USES																										
Adult-Oriented Establishment																			SE							38-42(a)
Agriculture																							P			
Alternative Correctional Facility																								P		
Amusement Facility—Indoor															P	P	P	P		P[1]		P				
Amusement Facility—Outdoor																SE	SE	SE		P[1]		P				
Animal Care Facility—With Outdoor Area													SE	SE	P	P	P	P	P	P[1]		P				38-42(b)
Animal Care Facility—Fully Indoors													P	P	P	P	P	P	P			P				38-42(b)
Animal Shelter																SE			P	P[1]		P				38-42(b)
Art Gallery												P	P	P	P	P	P	P				P				
Arts and Fitness Studio												P	P	P	P	P	P	P				P				
Bed and Breakfast—With Reception Facilities		SE	SE	SE	SE	SE	SE	SE	SE			SE											P			38-42(c)
Bed and Breakfast—No Reception Facilities		P	P	P	P	P	P	P	P			P											P			38-42(c)

TABLE 38-41.J: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1.3	RN-1.6	RN-1.5	RN-1.7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
Body Modification Establishment														P	P	P	P	P		P[1]		P				
Borrow Pit																				P	P					38-42(d)
Broadcasting Facility—With Antennae																			P	P[1]		P				
Broadcasting Facility—No Antennae															P	P	P	P	P	P[1]		P				
Campground/RV Park																							SE		P	38-42(e)
Campground, Resort																							SE		P	38-42(f)
Car Wash																SE			P	P[1]		SE				
Cemetery																									P	38-42(g)
Children's Home		P	P	P																				P		
Commercial Kitchen															SE	P	SE	SE	P	P[1]		P				
Community Center		P	P	P	P	P	P	P	P	P		P			P		P	P				P		P	P	
Community Garden		P	P	P	P	P	P	P	P	P		P											P	P	P	38-42(h)
Conservation Area																									P	
Cottage Court Development		P	P	P	P	P	P	P	P																	38-42(i)
Crematorium													SE		SE	SE						SE				
Cultural Facility															P	P	P	P				P		P	P	

TABLE 38-41.1: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1.3	*RN-1.6*	*RN-1.5*	*RN-1.7.5*	*RN-2*	*RN-3*	*TRN-1*	*TRN-2*	*TRN-3*	*TRN-4*	*R-MH*	*C-NT*	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*	*I-L*	*I-H*	*I-X*	*I-MU*	*A-1*	*INST*	*OS*	*Use Standards*
Day Care Center												P	P	P	P	P	P	P				P		P		38-42(j)
Day Care Home—8 or Less Children/ Adults		P	P	P	P	P	P	P	P																	38-42(j)
Day Care Home—9 or More Children/ Adults		SE	SE	SE	SE	SE	SE	SE	SE																	38-42(j)
Drug Treatment Clinic																SE						SE		P		38-42(k)
Dwellings																										
Dwelling—Single-Unit Detached	P	P	P	P	P	P	P	P	P			P					**	**					P			38-42(l)
Dwelling—Single-Unit Attached					P	P	P	P	P			P					**	**								38-42(l)
Dwelling—Two-Unit					P	P	P	P	P								**	**								38-42(l)
Dwelling—Three-Unit						P	P	P	P								**	**								38-42(m)
Dwelling—Four-Unit						P	P	P	P								P	**								38-42(m)
Dwelling—Townhouse					P	P		P	P	P					P	P	P	**				P				38-42(m)
Dwelling—Multi-Unit/ Multi-Unit Developments						P		P	P	P					P	P	P	P				P				38-42(m)

TABLE 38-41.J: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1.3	RN-1.6	RN-1.5	RN-1.7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
Dwelling—Above the Ground Floor												P	P	P	P		P	P				P				
Dwelling—Live/Work												P	P									P				38-42(n)
Dwelling—1 Unit Attached or Detached												P	P													
Dwelling—Manufactured Home		SE		SE	SE						P															38-42(o)
Eating and Drinking Establishment													P	P	P	P	P	P	P	SE		P		P		
Educational Facility—College/University														P	P		P	P				P		P		
Educational Facility—Primary or Secondary		P	P	P	P	P	P	P	P													P		P		
Educational Facility—Vocational																P	P	P	P	SE		P		P		
Financial Institution													P	P	P	P	P	P	P			P				
Financial Service, Alternative (AFS)															SE	SE	SE	SE								38-42(p)
Food Bank																SE			P	P		P		P		
Food Pantry															P	P	P	P	P			P		P		

TABLE 38-41.1: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1.3	RN-1.6	RN-1.5	RN-1.7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
Food Truck Park																	P	P	P	P[1]		P				38-42(q)
Fraternity/ Sorority						SE																		P		
Freight Terminal															P	P			P	P						
Funeral Home													SE		SE	SE				P[1]		SE				
Gas Station															P	SE	SE	SE	P	P[1]		P				38-42(r)
Golf Course/ Driving Range																									P	
Government Office/Facility													P	P	P	P	P	P	P	P[1]		P		P		
Group Home: For-profit	SE	SE	SE	SE	SE																			SE		38-42(ff)
Group Home: Non-profit	P	P	P	P	P	P	P	P	P			P											P			38-42(ff)
Halfway House						SE		SE	SE			SE														38-42(s)
Heavy Retail, Rental, and Service															SE	P			P	P[1]		P				
Hospital																								P		
Hotel															P	P	P	P								
House Museum		SE	SE	SE	SE	SE	SE	SE	SE	SE												SE	SE	SE	SE	38-42(t)
Industrial— Artisan/Craft															P	P	P	P	P	P[1]		P				38-42(u)
Industrial— General																				P[1]						
Industrial— Light																			P	P[1]		P				

TABLE 38-41.1: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1.3	*RN-1.6*	*RN-1.5*	*RN-1.7.5*	*RN-2*	*RN-3*	*TRN-1*	*TRN-2*	*TRN-3*	*TRN-4*	*R-MH*	*C-NT*	*C-N*	*C-TMU*	*C-C*	*C-R*	*C-MU1*	*C-MU2*	*I-L*	*I-H*	*I-X*	*I-MU*	*A-1*	*INST*	*OS*	*Use Standards*
Industrial Design												P		P	P	P	P	P	P	P[1]		P				
Junk Yard/ Salvage Yard																				P						38-42(v)
Live Entertainment—Secondary Use															SE	P	P	P		P[1]		P				
Live Performance Venue																P	P	P		P[1]		P				
Liquor Store													SE-C	SE-C	SE-C	P	P	SE-C	SE-C	SE-C	SE-C	SE-C				Sec. 5-109b
Lodge/Private Social Club						SE							P	P	P	P	P	P	P	P		P	P			38-42(w)
Manufactured Home Park											P															Sec. 38-31
Manufactured Home Subdivision											P															Sec. 38-31
Medical/Dental Office/Clinic												SE	P	P	P	P	P	P		P[1]		P		P		
Micro-Production of Alcohol														SE	P	P	P	P	SE	P[1]		P				38-42(x)
Movie Studio																			P	P		P				
Neighborhood Commercial Establishment		SE	SE	SE	SE	SE	SE	SE	SE	SE																38-42(v)
Nightclub															SE	SE	SE	SE				SE				
Office						**						P	P	P	P	P	P	P	P	P[1]		P	P			
Outdoor Market													SE	SE	SE	SE	SE	SE	SE	P[1]		SE				38-42(zz)

TABLE 38-41.J: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1.3	RN-1.6	RN-1.5	RN-1.7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
Outdoor Storage Yard																			P	P						38-42(aa)
Park	P	P	P	P	P	P	P	P	P	P		P	P	P	P	P	P	P				P		P	P	
Parking Lot (Principal Use)															SE	SE	SE	SE	P	P[1]		SE		P	P	Article 12
Parking Structure (Principal Use)															SE	SE	SE	SE	P	P[1]				P	P	Article 12
Passenger Terminal																SE	SE	SE	SE			SE				
Personal Service Establishment												P	P	P	P	P	P	P		P[1]		P				
Place of Worship	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		
Private Recreation Club						SE							P	P	P	P	P	P	P	P		P	P			
Public Safety Facility		P	P	P	P	P	P	P	P	P			P	P	P	P	P	P	P	P[1]		P	P	P		
Public Works Facility																P			P	P		P	P	P		
Quarry/Mining and Extraction																				P	P					38-42(bb)
Reception Facility																P	P	P				P	SE			38-42(cc)
Reception Facility, Estate		SE	SE	SE	SE	SE	SE	SE	SE			SE											SE			38-42(dd)
Reception Facility (Indoor)															SE											

TABLE 38-41.1: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1.3	RN-1.6	RN-1.5	RN-1.7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
Recycling Processing Facility																				P						38-42(ee)
Research and Development																			P	P		P		P		
Residential Care Facility(Residential Home for Persons with Disability and/or Aged Persons for Non-Profit and Commercial; Assisted Living Facilities and Medically Assisted Living Facilities; and Nursing Homes)										SE					SE	SE	SE	SE				SE		P		38-42(ff) 38-75(f)
Residential Addiction Treatment Facility										SE				SE	SE	SE	SE					SE		P		38-42(ff)
Retail Goods Establishment													P	P	P	P	P	P	P	P[1]		P				
Self-Storage Facility: Enclosed															P	SE	SE	P	P			P				38-42(hh)
Self-Storage Facility: Outdoor															SE			P								38-42(hh)
Shelter															SE			SE				SE		P		

TABLE 38-41.1: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1-3	RN-1-6	RN-1-5	RN-1-7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
Shelter, Domestic Violence		P	P	P	P	P	P	P	P					P	P	P						P			P	
Social Service Center													P	P	P	P	P	P				P		P		
Solar Energy System																			P	P[1]			P	P		
Specialty Food Service													P	P	P	P	P	P	P			P				
Utility		P	P	P	P	P	P	P	P	P		P	P	P	P	P	P	P	P	P		P	P	P	P	38-42(ii)
Vehicle Dealership																P				P[1]						
Vehicle Operation Facility																			P	P[1]						
Vehicle Rental															P											
Vehicle Repair/ Service: Major															SE				P	P[1]		P				38-42(ii)
Vehicle Repair/ Service: Minor														P	P	P			P	P[1]		P				38-42(kk)
Warehouse																			P	P		P				
Wholesale																			P							
Wind Energy System																			SE			SE	SE			38-42(ll)
Wireless Telecommunications		P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE		P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	P, SE	38-42(mm)
ACCESSORY USES																										
Drive-Through Facility															SE	P			P	P[1]		SB		P		38-43(a)

TABLE 38-41.J: USE MATRIX
P = Permitted Use SE = Special Exception
SE-C = Special Exceptions City Council

	RN-1-3	RN-1-6	RN-1-5	RN-1-7.5	RN-2	RN-3	TRN-1	TRN-2	TRN-3	TRN-4	R-MH	C-NT	C-N	C-TMU	C-C	C-R	C-MU1	C-MU2	I-L	I-H	I-X	I-MU	A-1	INST	OS	Use Standards
Drive-Through Facility, Standalone															SE	P			P			P				
Accessory Dwelling Unit (ADU)		P	P	P	P	P	P	P	P			P											P			38-43(b)
Farmstand																							P			38-43(c)
Helistop																								SE		38-43(d)
Home Occupation		P	P	P	P	P	P	P	P	P	P	P		P	P	P	P	P				P	P			38-43(e)
Keeping of Livestock/ Equines		P			P																		P			38-43(f)
Outdoor Sales and Display													P	P	P	P	P	P				P				38-43(g)
Outdoor Storage																P			P	P		P	P			38-43(h)
Outdoor Seating/Activity Area													P	P	P	P	P	P	P			P				38-43(i)
TEMPORARY USES																										
Mobile Food Vendor													P	P	P	P	P	P	P	P[1]		P		P		38-44(a)
Mobile Retail Vendor													P	P	P	P	P	P		P[1]		P				38-44(b)
Temporary Outdoor Entertainment and/or Sales Event		P	P	P	P	P	P	P	P	P		P	P	P	P	P	P	P	P	P[1]		P	P	P	P	38-44(c)

[1] Properties zoned M-1 Manufacturing Zoning prior to the effective date of the Official Zoning Map, Adopted 12/17/2024 of the Chattanooga Zoning Ordinance Adopted July 23, 2024, unless zoning conditions were placed on the property at the time of rezoning.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14202, § 1, 2-18-25; Ord. No. 14208, § 1, 3-18-25; Ord. No. 14222, § 1, 4-15-25; Ord. No. 14238, § 1, 5-20-25; Ord. No. 14278, § 1, 9-16-25; Ord. No. 14297, § 1, 12-2-25; Ord. No. 14337, § 1, 3-17-26; Ord. No. 14338, § 1, 3-17-26; Ord. No. 14308, § 1, 12-16-25; Ord. No. 14374, § 1, 6-16-26)

Sec. 38-42. Principal Use Standards

(a) Adult-Oriented Establishment

(1) No adult use may be located within 500 feet of any boundary of a residential zone or within 500 feet of a residential use within any zone.

(2) No adult use may be located within 500 feet from the nearest property line of a site which is used for the purpose of a park, place of worship, educational facility—primary/secondary, day care center, or other adult use.

(3) Measurement is from the nearest lot line of the adult use to the nearest lot line of the uses listed in this section.

(b) Animal Care Facility and Animal Shelter

(1) Animal care facilities and shelters must locate all overnight boarding facilities indoors.

(2) Animal care facilities and shelters must locate any exterior exercise areas to the side or rear of the building. A fence a minimum of six feet and a maximum of eight feet in height is required for all exterior exercise areas.

(3) Exterior exercise areas must provide covered areas as shelter against sun/heat and weather.

(4) All animal quarters and exterior exercise areas must be kept in a clean, dry, and sanitary condition.

(c) Bed and Breakfast

(1) A bed and breakfast must be operated entirely within a single-unit detached dwelling. No part of a bed and breakfast may be operated within an accessory structure.

(2) A bed and breakfast is limited to a maximum of nine bedrooms that may be let out to guests.

(3) A bed and breakfast must be operated by the property owner who also resides on the property

(4) The exterior of a bed and breakfast must maintain its original appearance as a single-unit dwelling. No parking may be located in front of the front building facade.

(5) Cooking equipment is prohibited in individual guestrooms. However, this does not include a mini-refrigerator, coffee maker, and/or a microwave, which are allowed.

(6) Bed and breakfasts with reception facilities are allowed only as specified in Table 38-41.1.

(7) No retail sales are permitted with the exception of accessory retail of related items such as souvenirs, postcards, and snack items.

(8) No bed and breakfast may operate a restaurant. Meals may only be served to registered guests and at private events when allowed.

(9) One sign, either freestanding, window, or wall, is permitted. Such sign may not exceed six square feet in sign area. Freestanding signs are limited to five feet in height and must be a minimum of five feet from any lot line.

(d) Borrow Pit

(1) A lot area of five acres is required.

(2) No excavation or other activities related to the borrow pit may be conducted within 50 feet of the lot line.

(3) The lot must be completely enclosed along all lot lines by a solid fence or wall a minimum of six feet and a maximum of eight feet in height. Locking gates a minimum of six feet and a maximum of eight feet in height must be included at all ingress and egress points.

(e) Campground/Recreational Vehicle (RV) Park

(1) The minimum area for a campground or RV park is five acres.

(2) Campgrounds or RV parks must provide a common recreational area consisting of 100 square feet per campsite or recreational vehicle parking site.

(3) Management headquarters, recreational facilities, coin operated laundry facilities, cabins for staff, and other uses and structures customarily associated with the operation of a campground are permitted.

(4) Storage of equipment must be within enclosed structures.

(5) Within a campground a maximum of 30% of the total campsites may be cabins for use of the guests.

(6) Year-round residency is prohibited. Use of tents or recreational vehicles as a principal residence is prohibited. This excludes any permanent structures erected for an on-site caretaker or manager, which may be a year-round residency.

(7) Individual campsites or recreational vehicle parking sites and any structures must be set back a minimum of 50 feet from all lot lines that adjoin residential uses.

(f) Campground, Resort

(1) The minimum area for a resort campground is five acres.

(2) Resort campgrounds must provide a common recreational area consisting of 100 square feet per cabin.

(3) Management headquarters, recreational facilities, coin operated laundry facilities, cabins for staff, and other uses and structures customarily associated with the operation of a resort campground are permitted.

(4) Storage of equipment must be within enclosed structures.

(5) Year-round residency is prohibited. This excludes any permanent structures erected for an on-site caretaker or manager, which may be a year-round residency.

(6) All structures must be set back a minimum of 50 feet from all lot lines that adjoin residential uses.

(g) Cemetery

(1) For cemeteries of 25 acres or more there must be a 100 foot buffer area. For cemeteries of less than 25 acres, there must be a 25 foot buffer area. The buffer area should be set aside along all lot lines abutting residential zones. The buffer area must be used only for the location of trees, shrubs, fencing, or other site-obscuring ornamentation. The buffer area cannot be used for grave sites, interior drives, parking, or service buildings.

(2) All land intended for grave sites must be above the elevation of the 100 Year Flood.

(h) Community Garden

(1) Community gardens are limited to the cultivation of herbs, fruits, flowers, or vegetables, including the cultivation and tillage of soil and the production, cultivation, growing, and harvesting of any agricultural, floricultural, or horticultural commodity. It may also include community-gathering spaces for active or passive recreation.

(2) The keeping of livestock, chickens or other poultry, and any aquaculture is prohibited. Apiaries are permitted.

(3) Accessory structures such as high tunnels/hoop-houses, coldframes, and similar structures, are permitted to extend the growing season. This includes sheds, gazebos, and pergolas. All accessory structures must be located a minimum of five feet from any lot line.

(4) Farmstands are permitted and are limited to sales of items grown at the site. Farmstands must be removed from the premises during the time of the year when the use is not open to the public. Only one farmstand is permitted per lot.

(i) Cottage Court Development

(1) General Development Standards

(i) Cottage court development may take one of two forms:

a. A development may be designed with individual lots.

b. A development may also be designed as a multi-dwelling development.

(ii) A cottage court development requires the establishment of a homeowners association (HOA), property management company, or other designated managing entity approved by the City in place for the maintenance of all common elements.

(2) Use Limitations

(i) Table 38-42.1: Cottage Court Permitted Dwelling Types indicates the permitted dwelling types within a cottage court development:

Table 38-42.1: Cottage Court Permitted Dwelling Types

Dwelling Type	RN-1-6	RN-1-5	RN-2	RN-3	TRN-1	TRN-2	TRN-3
Dwelling—Single-Unit Detached	P	P	P	P	P	P	P
Dwelling—Single-Unit Attached	P	P	P	P	P	P	P
Dwelling—Two-Unit	P	P	P	P	P	P	P
Dwelling—Townhouse				P		P	P

(ii) Accessory dwelling units are prohibited within a cottage court development.

(3) Development Standards

(i) Cottage court development may be used for any development of four or more buildings and requires a minimum of four structures.

(ii) The maximum number of buildings within a cottage court development is 10.

(iii) The minimum total lot area required for a cottage court is determined by calculating the cumulative lot area required by the base zoning district for the number of buildings to be constructed, and reducing the result by 50%.

(iv) Individual lots or building sites within the cottage court development are exempt from the base zoning district standards for lot area, lot width, setbacks, and building coverage.

However, dwellings oriented toward the common area must provide a five foot minimum setback from the common area. Such setback does not count toward any required common area.

(v) The cottage court development as a whole must meet the following standards:

a. Along the lot lines of the development as a whole, a minimum setback of 15 feet is required. No streets or other vehicle access is permitted within this setback. However, pedestrian paths across this setback to connect to adjacent lots are allowed.

b. The development as a whole is limited to a maximum building coverage of 50%.

c. The development as a whole is limited to a maximum impervious surface coverage of 65%.

(vi) All buildings and lots within the cottage court development must front on a street or a common open space.

(vii) Structures within a cottage court development are subject to the design standards for dwelling type. Where design standards are distinguished with requirements for facades facing a street, those standards are also applicable to facades facing a courtyard.

(viii) Required off-street parking may be provided on individual development sites for each dwelling within the cottage court development, or in a shared parking area serving multiple dwellings on-site. Common parking areas may contain no more than 15 spaces each and must be screened from abutting lots that are not part of the development. Parking may not be located between principal structures and the street, between a common area and a street, or within any required common area.

(4) Common Open Space Design

(i) Central common open space is required and must meet the following standards:

a. The minimum size of the central common open space is 3,000 square feet, or 500 square feet per dwelling unit, whichever is greater.

b. The central common open space must maintain a minimum width of 50 feet, be contiguous and centrally located, and front on a public or private street.

c. A maximum of 25% of the central common open space may be hardscape.

(ii) Once central common open space requirements are met, additional common open space within the development is permitted.

(j) Crematory.

(1) Applicant must have an approved permit from the Hamilton County Air Pollution Control Bureau for said use at location prior to submitting an application for a Special Permit.

(2) All activity related to the dead shall be handled discreetly and screened from public view by a Commercial Buffer, unless a more intense buffer is required by zoning code, including delivery and storage of remains.

(k) Drive-Through Facility, Standalone.

1) All drive-through facilities must provide a minimum of four stacking spaces per lane or bay, unless additional stacking spaces are specifically required by this Code. Further, additional internal queueing and stacking spaces and other access points to prevent disruption of traffic flow on adjacent streets may be required.

2) Stacking spaces provided for drive-through uses must be:

a. A minimum of ten feet in width, as measured from the outermost point of any service window or bay entrance, to the edge of the driveway, and 20 feet in length. In the case of a recessed service window, the measurement is taken from the building wall.

b. Stacking spaces must begin behind the vehicle parked at a final point of service exiting the drive through aisle, such as a service window or car wash bay (this does not include a drive-through sign). Spaces must be placed in a single line behind each lane or bay.

3) All drive-through lanes must be located and designed to ensure that they do not adversely affect traffic circulation on adjoining streets. Drive-through lanes on corner lots must not route exiting traffic into adjacent residential neighborhoods unless required for emergency or traffic safety reasons as determined by the Department of Public Works- Transportation Division and Fire Department.

4) The minimum width for a drive through lane is ten feet.

5) Drive-through facilities require a solid fence or wall a minimum of six feet to a maximum of seven feet in height along the interior side and rear lot lines when such lot lines abut a residential zone, or the C-NT, C-N, or C-TMU Zones. One shrub, a minimum of three feet in height at maturity, is required every three linear feet, along such fence or wall, placed inside the fence toward the interior of the lot.

6) No drive-thru component, such as drive-up windows, lanes, or order box, is allowed within 50 feet of a residential use, excluding mixed-use developments, measured from the residential lot line to the closest point of the drive-thru lane.

(l) Day Care Center and Day Care Home

(1) Each day care center or day care home must comply with all applicable state regulations, including required indoor and outdoor space.

(2) The day care center or day care home operator license must be displayed publicly.

(m) Drug Treatment Clinic

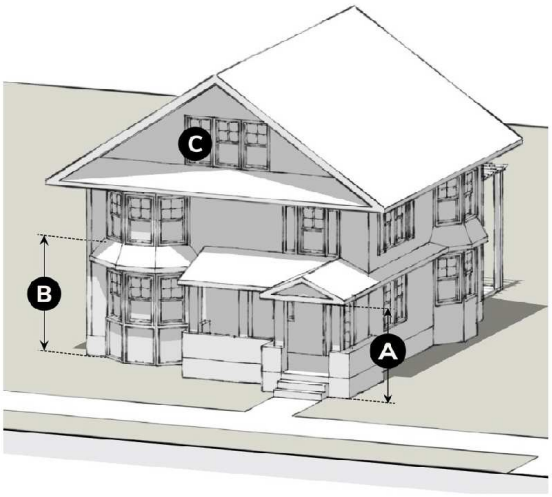
(1) All drug treatment clinics must be separated by a distance of at least 1,000 feet from any residential zone.

(2) All drug treatment clinics must be separated by a distance of at least 1,000 feet from any other drug treatment clinics.

(n) Dwelling: Single-Unit Detached; Single-Unit Attached; Two-Unit

(1) Windows, entrances, porches, or other architectural features are required on all street-facing facades to avoid the appearance of blank walls.

SINGLE-UNIT DETACHED DWELLING



A = Primary Entrance

B = Architectural Features

C = Required Transparency

(o) Dwelling: Three-Unit; Four-Unit; Multi-Unit, Townhouse

(1) Development Standards

i. Multi-unit dwellings in the TRN-2 Zone are limited to a maximum of six units within a multi-unit structure (i.e. each multi-unit structure shall have six or fewer connect multi-unit dwellings)

ii. Townhouses in the RN-2 and TRN-2 Zones are limited to a maximum of six attached units (i.e. a cluster or grouping of townhouse units may not have more than six individual townhouse dwelling units contiguous to one another)

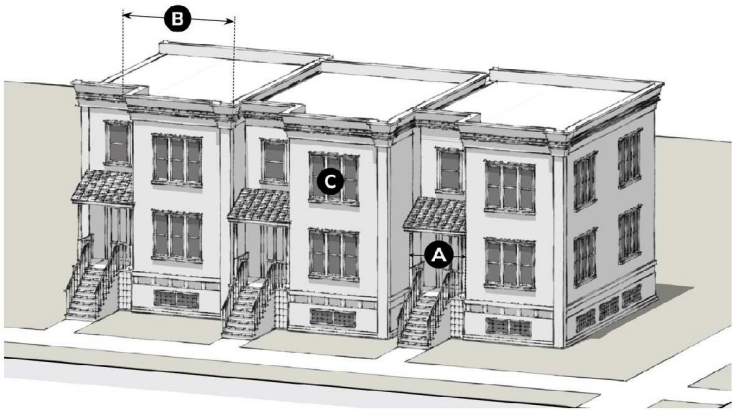
iii. Townhouses outside the Urban Overlay Zone are limited to a maximum of eight (8) attached units (i.e. a cluster or grouping of townhouse units may not have more than eight (8) individual townhouse dwelling units contiguous to one another) except for those properties that were zoned for townhouses prior to the adoption of the 2024 Zoning Ordinance shall be permitted to have a maximum of twelve attached units.

(2) Development Standards

(i) Three-unit, four-unit, and townhouse dwellings must have an entrance from a facade facing the street. The entry must be a dominant feature on the front elevation, using features such as porches, raised steps and stoops, or decorative railings to articulate the facade.

(ii) For multi-unit dwellings, there must be one prominent entrance along a facade facing a street.

TOWNHOUSE DWELLING

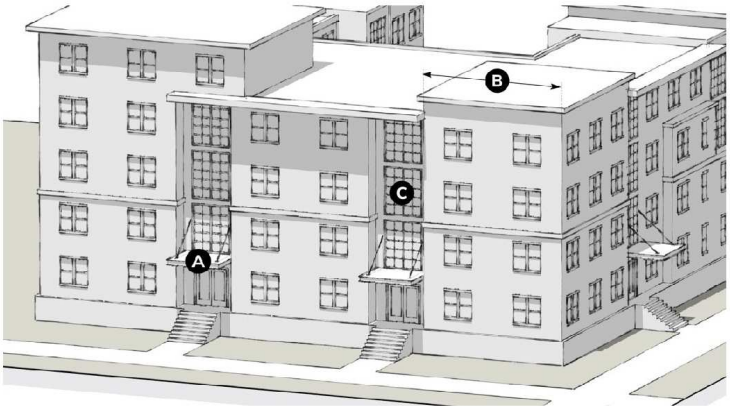


A = Primary Entrance

B = Architectural Features

C = Required Transparency

MULTI-UNIT DWELLING



A = Prominent Entrance

B = Architectural Features

C = Required Transparency

(p) Dwelling—Live/Work

(1) Live/work is permitted in units with street level access only.

(2) A minimum of one person must occupy the live/work unit as their primary residence.

(3) The live/work unit may employ no more than two persons not living on the premises at any one time.

(4) No storage or warehousing of material, supplies, or equipment is permitted outside of the live/work unit.

(5) The nonresidential use of the unit is limited to nonresidential uses allowed in the zone.

(6) No equipment or process may be used in connection with the live/work unit that creates noise, vibration, glare, fumes, odors, or electrical interference detectable to normal senses off the premises.

(q) Dwelling—Manufactured Home

(1) All manufactured home dwellings must meet the following standards.

(i) The area beneath a home must be fully enclosed with durable skirting within 60 days of placement. As a minimum, such skirting must be a product designed and sold for use as skirting or as approved by the Zoning Administrator.

(ii) All wheels, axles, transporting lights, and towing apparatus must be removed.

(2) Manufactured home dwellings located in residential zones, as applicable, or within manufactured home subdivisions must meet the following standards.

(i) Such dwellings have the same general appearance as required for site-built homes.

(ii) A perimeter wall of solid masonry, concrete, or other material approved by the Land Development Office must be installed around the base of the dwelling.

(iii) All roofing, siding, veneers, and other exterior materials are limited to materials permitted for site-built housing.

(iv) The manufactured home must be at least 12 feet in width along the majority of its length.

(r) Financial Services, Alternative (AFS)

(1) No alternative financial service may be located within 1,320 feet of an existing alternative financial service, measured from lot line to lot line.

(2) No alternative financial service may be located within 500 feet of a residential zone, measured from lot line to lot line.

(s) Food Truck Park

(1) A minimum of 20% of the food truck park lot area must be shared common area, not including any food truck sites and vehicle parking spaces. The common area must be designed for customer use, which includes elements such as seating areas, restroom facilities, and lawn and landscaped areas.

(2) Food truck parks may be standalone uses or may be co-located with another principal use. These properties must be designed to be able to accommodate all required development standards for all principal uses.

(3) A commissary for the use of food truck vendors is permitted.

(4) No temporary use permits for individual food truck vendors are required within food truck parks.

(5) The area must be always kept clear of litter and debris. Waste receptacles and/or recycling bins must be provided.

(t) Gas Station

(1) The principal building must meet the setback requirements of the zone in which it is located.

(2) Gasoline pump islands must:

(i) Be located no closer than 15 feet to any street lot line when constructed parallel to the pavement edge.

(ii) Be located no closer than 30 feet to any street lot line when constructed perpendicular to the pavement edge.

(iii) Be set back 15 feet from all lot lines other than a street lot line.

(3) Gas station canopies cannot be constructed closer than 15 feet from any street lot line.

(4) One automated car wash bay is permitted in connection with the principal gas station use.

(u) Halfway House

(1) Each halfway house must identify a manager to act as a 24 hour contact.

(2) Halfway houses are limited to six residents.

(3) The manager contact information must be printed legibly and posted in such a way as to be conspicuous and readable from the exterior of each building to a person at the front entrance of a building. The posting must contain the address of the property, the name of the manager of the property, and the phone number of the manager.

(4) New halfway houses must be separated from an existing halfway house by a distance of 1,000 feet.

(v) House Museum

(1) A house museum is limited to a maximum of six events per year. This includes both indoor and outdoor events and any combination of such.

(2) Any outdoor events or any combination of an indoor and outdoor event require a temporary use permit for a temporary outdoor entertainment and/or sales event

(w) Industrial—Artisan/Craft

(1) Artisan industrial uses are limited to a maximum gross square footage of 10,000 square feet in the following zones: C-C, C-MU1, C-MU2 Zones. There is no limit within other zones where the use is allowed.

(2) Outside storage or display is prohibited. All business, sales, servicing, processing, and storage uses must be located within the structure.

(x) Junk Yard/Salvage Yard

(1) Junk yards/salvage yards must be located at least 1,000 feet from any other abutting zone lot line that is not an I-H or I-X Zone, as measured from the lot lines of the junkyard.

(2) Junk yards/salvage yards storage areas must be located at least 500 feet from the lot line of any other abutting use other than a junk yard/salvage yard.

(3) The storage area must be completely enclosed along all lot lines by a solid fence or wall a minimum of six feet and a maximum of seven feet in height, including ingress and egress

(y) Lodge/Meeting Hall

(1) No more than 30% of the gross floor area may be used as office space for the lodge/meeting hall.

(2) Lodges/meeting halls are permitted to serve meals and alcohol on the premises for members and their guests only or for lessees when leased or used as reception facilities.

(3) Sleeping facilities are prohibited.

(4) Lodges/meeting halls leased or used as reception facilities cannot charge a general admission fee or any other monetary donations (payment at the door to the general public) for entrance, with the exception of fundraisers or events for bona fide non-profit organizations, places of worship, educational facilities, or similar uses.

(z) Micro-Production of Alcohol

(1) All alcohol production must be within completely enclosed structures.

(2) The establishment must include a restaurant, bar, and/or tasting room within the same building. The minimum size of the restaurant, bar, and/or tasting room must be 20% of the total square footage of the use or 1,200 square feet, whichever is less.

(3) Facilities may include retail areas for the purchase of beverages manufactured on-site and related items.

(aa) Neighborhood Commercial Establishment

(1) Neighborhood commercial establishments are only allowed within existing structures that are nonresidential or mixed-use with ground floor nonresidential in their construction and/or use as of (insert the effective date of this Code).

(2) The following nonresidential uses are permitted within a neighborhood commercial establishment. After the approval of the initial special exception use approval for the neighborhood commercial establishment and its initial intended use, as allowed by the list below, a new special exception use approval is required for a change of use. However, a special exception may be granted for multiple uses from the list below which would not require a special exception use for a use change.

(i) Art gallery

(ii) Arts and fitness studio

(iii) Day care center

(iv) Eating and drinking establishment

(v) Office

(vi) Personal service establishment

(vii) Retail goods establishment—no sales of alcohol

(viii) Specialty food service establishment

(3) No additional off-street parking is required. However, any off-street parking currently provided must be maintained.

(4) Drive-through facilities are prohibited.

(5) Outside storage or display is prohibited. All business, sales, servicing, processing, and storage uses must be located within the structure. Outdoor dining is allowed.

(6) Signs are limited to those allowed in the C-N Zone.

(bb) Outdoor Market

(1) A minimum of 10% of the outdoor market lot area must be shared common area designed for customer use, which includes elements such as seating areas, restroom facilities, and lawn and landscaped areas.

(2) The area must be kept clear of litter and debris at all times. Waste receptacles and/or recycling bins must be provided.

(3) Restroom facilities for the use of the public are required.

(4) The days and hours of operation must be clearly posted on-site.

(5) The on-site presence of a manager is required when the market is open to the public.

(cc) Outdoor Storage Yard

(1) The storage area must be completely enclosed along all lot lines by a solid fence or wall a minimum of six feet and a maximum of seven feet in height, including ingress and egress.

(2) Fences or walls along a front or corner side lot line must be set back a minimum of ten feet from the lot line. Within that setback, shrubs must be planted and spaced sufficiently to form a continuous linear hedgerow at plant maturity. Plantings must be placed outside the fence facing the right-of-way.

(3) Storage of any kind is prohibited outside the fence or wall.

(4) No items stored within 25 feet of the fence may exceed the height of the fence or wall.

(dd) Quarry/Mining and Extraction

In addition to all state or federal surface mining regulations, the following additional standards apply:

(1) A copy of a pre-blast survey for all properties located within a one mile radius of the area covered by the mining permit must be filed with the Land Development Office.

(2) A plan of operation must be prepared and submitted to the Land Development Office for approval showing all intended haul routes within the City and evidence that all load limits of bridges used in the operation will be met. No variation from the approved route is permitted except by written permission of the Land Development Office.

(3) The owner or operator of the facility must maintain, during the term of its use, liability insurance and performance bonds as follows. These requirements may be waived if appropriate alternative security is approved by the City Council upon recommendation by the City Attorney.

(i) Evidence of liability insurance in an appropriate amount (to be determined by the City Council upon recommendation of the City Attorney) must be maintained with current certificates of insurance filed with the City's Risk Manager.

(ii) The owner or operator of the facility must maintain a current performance bond in the amount of $2,000.00 per acre to be filed with the City's Risk Manager to assure compliance if state, federal, and local laws and regulations apply relative to reclamation of disturbed land within the City.

(ee) Reception Facility

(1) A general admission fee or any other monetary donations (i.e., payment at the door to the general public) for entrance is prohibited, with the exception of fundraisers or events for bona fide non-profit organizations, places of worship, or educational facilities.

(ff) Reception Facility, Estate

(1) A minimum lot size of one acre is required for an estate reception facility.

(2) A general admission fee or any other monetary donations (i.e., payment at the door to the general public) for entrance is prohibited, with the exception of fundraisers or events for bona fide non-profit organizations, places of worship, or educational facilities.

(3) An estate reception facility must be operated by the property owner who also resides on the property.

(4) Receptions may be held within accessory structures located on the property.

(5) An estate reception facility may also let rooms within the principal building to guests during the reception. Rooms may be let two days before and two days after the reception.

(gg) Recycling Processing Facility

(1) All processing such as compacting, shredding, or bailing must be within an enclosed building.

(2) All outdoor storage must be concealed from view, beyond the limits of the property, by fencing or natural screening.

(3) Any other storage must be within an enclosed building.

(4) No salvaging of parts or dismantling is allowed.

(5) An applicant for a special exception to establish a recycling processing facility must:

(i) Furnish complete plans and method of operation.

(ii) Have present at the hearing an engineering consultant in this particular phase of industry to fully evaluate all areas of control of vibration, dust, noxious odors fumes, nuisance factor, etc.

(hh) Residential Care Facilities and Group Homes Group Homes Operated on a For-profit Basis

(1) No special exceptions permit is necessary for any residential home in which eight (8) or fewer unrelated persons with disabilities reside, and which may include three (3) additional persons acting as support staff or guardians, who need not be related to each other or to any of the persons with disabilities in any residential zone within the City. This ordinance allows nonprofit organizations to operate residential homes meeting the requirements of Tenn. Code Ann. 13-24-101 to remove zoning obstacles which prevent persons with a disability from living in normal residential surroundings in compliance with state and federal law.

(i) Pursuant to this section, persons with disabilities shall not be denied housing opportunities on the basis of disability, nor shall they be excluded from participation in or denied the benefits of the City's services, programs, or activities, or otherwise be subjected to discrimination through the administration of the City's land development or zoning practices;

(ii) Housing providers for persons with disabilities seeking approval for uses allowed by right under Tennessee state law and/or local land use or zoning laws shall not be subjected to needless or unduly burdensome administrative hurdles, including the requirement to obtain unnecessary special use permits or other approvals;

(iii) All residences comprised of related or unrelated persons with disabilities shall operate as of right in all residential zoning districts in the City to the same extent and under the same terms and conditions as residences comprised of non-disabled persons;

(iv) The provisions required by this section shall protect residences that house persons with disabilities, regardless of whether they operate on a commercial basis or non-profit basis as long as such residences meet the requirements of the number of persons set forth in this section;

(v) Related and/or unrelated persons with disabilities shall be included in the definition of family in the City's Zoning Ordinance to no lesser extent than individuals without disabilities;

(vi) The protections afforded to housing for persons with disabilities under Tenn. Code Ann. 13-24-101 et. seq. shall apply to all residences, whether temporary or permanent, including transitional and other forms of supported housing; and

(vii) The provisions required by this section shall protect persons with disabilities who mental illness, subject to the exceptions set forth in Tenn. Code Ann. 13-24-101, intellectual disabilities, or emotional disabilities to the same extent that it protects persons with disabilities or conditions other than mental illnesses, intellectual disabilities, or emotional disabilities to the extent that they are protected under State and Federal law.

(2) This ordinance does not apply to family residences housing greater than eight (8) or more unrelated persons in any single family or other residential zone where such residences are operated on a commercial basis as required by Tenn. Code Ann. 13-24-104, unless Land Development staff is provided adequate information from the State Comptroller's Office with any building permit request establishing the nonprofit status of the entity which will operate the residential home in compliance with Federal and Tennessee state law as a nonprofit entity. All other applicants which do not meet the requirements of Tenn. Code Ann. 13-24-102 must comply with the requirements of subsection (3).

(3) Any application for homes operated on a commercial basis or for a residential facility which is not exempt under Tenn. Code Ann. 13-24-101 et. seq. or as otherwise provided by Tennessee law shall comply with the following requirements:

(i) An applicant must apply for a license for a "Residential Home for the Aged" from the Tennessee Department of Public Health; or shall apply for a license for a "Boarding Home Facility," or a "Large Group Home Facility," to be submitted to the Tennessee Department of Mental Health and Mental Retardation, as the case may be. Prior to operating either of the above, a Special Exceptions Permit from the Board of Zoning Appeals for operation within the proper zone and the State License must be obtained.

(ii) Residential Care Facility and Residential Addiction Treatment Facility

(1) Residential care facilities and residential addiction treatment facilities must comply with all standards for multi-unit dwellings in the zone in which they are located, including the standards for design of multi-unit dwellings in this Article.

(2) For mixed-use developments, where the ground floor and any additional upper floors are designed for nonresidential uses, with such residential facilities above, such facilities must comply with the mixed-use development standards.

(jj) Self-Storage Facility: Enclosed and Outdoor

(1) The minimum lot area for an outdoor facility is two acres. Enclosed self-storage facilities must meet the zone standards for lot size or 10,000 square feet, whichever is less.

(2) For outdoor facilities, a solid fence or wall a minimum of six feet to a maximum of seven feet in height must be provided when the self-service storage facility abuts a residential zone.

(3) Any proposed outdoor storage areas must be shown on a site plan for the facility. In no case may parking areas or driveways be used for storage.

(4) The following uses are prohibited as part of a self-service storage facility operation:

(i) Auctions, wholesale, and retail sales, miscellaneous or garage sales. However, this does not apply to auctions or sales conducted by the property manager of the contents of abandoned storage units.

(ii) The servicing, repair, or fabrication of motor vehicles, boats, trailers, lawn mowers, appliances, or other similar equipment.

(iii) The operation of power tools, spray painting equipment, table saws, lathes, compressors, welding equipment, kilns, or other similar equipment, except for purposes of construction and repair of the self-service storage facility.

(iv) Transfer and storage business.

(v) Any use that is noxious or offensive because of odors, dust, fumes, or vibrations.

(vi) The storage of hazardous materials.

(5) Storage units cannot be used for residential occupancy or to conduct business.

(6) No plumbing connections are permitted in self-storage units, this does not include administrative or staff offices

(7) For self-storage facilities that include both indoor and outdoor facilities, both types of uses must be allowed in the zone.

(8) The following additional standards apply to enclosed self-storage facilities:

(i) All self-storage activities must be contained within a single building and conducted exclusively indoors. Individual storage units may be accessed from inside the building only.

(ii) All facilities must meet the design standards of the district.

(iii) No storage units located on the first floor may be located within the first 20 feet of a facade facing a street. No storage units located on the first floor may be visible from the public right-of-way.

(iv) Access to loading areas must be located to the side or rear of the building.

(9) The following additional permissions apply to outdoor self-storage facilities:

(i) Outdoor self-storage facilities only are allowed to include an area for storage of recreational vehicles. Storage areas for recreational vehicles must be located in the rear yard.

(ii) No storage of recreational vehicles is allowed within ten feet of any rear lot line or interior side lot line that abuts a residential zone. No storage of recreational vehicles is allowed within 25 feet of any front or corner side lot line.

(kk) Utility

(1) Any minimum building height regulations required by the zone do not apply to utility buildings.

(2) Utility equipment located outside must be set back 20 feet from all required setback lines.

(ll) Vehicle Repair Facility: Major

(1) Repair of vehicles is prohibited outdoors. Storage of all merchandise, auto parts, and supplies must be within an enclosed structure.

(2) Major vehicle repair facilities require a solid fence or wall a minimum of six feet to a maximum of eight feet in height along the interior side and rear lot lines. One shrub, a minimum of three feet in height at maturity, is required every three linear feet, along such fence or wall, placed inside the fence toward the interior of the lot. This does not apply in the industrial zones unless such lot lines abut a residential zone.

(3) No partially dismantled, wrecked, junked, or discarded vehicles may be stored outdoors on the premises. This standard does not apply to vehicles under repair.

(4) The sale of new or used vehicles is prohibited unless separately approved.

(5) No motor vehicles may be stored and no repair work may be conducted in the right-of-way.

(mm) Vehicle Repair Facility: Minor

(1) Repair of vehicles is prohibited outdoors. Storage of all merchandise, auto parts, and supplies must be within an enclosed structure.

(2) Minor vehicle repair facilities require a solid fence or wall a minimum of six feet to a maximum of eight feet in height along the interior side and rear lot lines when such lot lines abut a residential zone. One shrub, a minimum of three feet in height at maturity, is required every three linear feet, along such fence or wall, placed inside the fence toward the interior of the lot.

(3) No partially dismantled, wrecked, junked, or discarded vehicles may be stored outdoors on the premises. This standard does not apply to vehicles under repair.

(4) The sale of new or used vehicles is prohibited unless separately approved.

(5) No motor vehicles may be stored and no repair work may be conducted in the right-of-way.

(nn) Wind Energy System

(1) The design of the wind energy system must conform to applicable industry standards as such standards exist as of the date construction is commenced. The facility owner or operator must submit certificates of design compliance obtained by the equipment manufacturers, such as Underwriters Laboratories, Det Norske Veritas, Germanishcer Lloyd Wind Energies, or similar certifying organizations.

(2) Wind turbines must comply with the following design standards:

(i) Wind turbines must be a non-obtrusive and non-reflective color.

(ii) Wind turbines must not display advertising, except for reasonable identification of the turbine manufacturer, or the facility owner and operator.

(iii) Wind turbines must not be artificially lit, except to the extent required by the Federal Aviation Administration or other applicable regulatory authorities.

(iv) On-site transmission and power lines between wind turbines must, to the maximum extent practicable, be placed underground, reach the property line, and be located and constructed in such a way as to minimize disruption to the property's primary purpose as well as to facilitate the interconnection of other commercial wind power generating facilities.

(v) Non-essential appurtenances are prohibited to be affixed to any wind turbine, including, but not limited to, cellular or radio antennae.

(3) The applicant must commission and submit at the time of permit application a wildlife assessment (impact study), conducted by a qualified wildlife expert, indicating possible risks to local wildlife, habitat, and migratory birds.

(4) Wind turbines must not be climbable up to a height of at least 15 feet above ground surface. All access doors to wind turbines and electrical equipment must be locked or fenced, as appropriate, to prevent entry by non-authorized persons.

(5) Wind turbines must be set back from any existing principal building on the lot and adjacent lots, measured at the nearest external wall or walls, and within the buildable area of any adjacent undeveloped lot, no less than the turbine height. The setback distance is measured from the nearest point on the outside edge of a tower to the nearest point on the foundation of the building.

(6) Operation and maintenance building(s) and substations must be located in accordance with zoning district yard requirements. All wind farm structures, except for wind turbines, must comply with the regulations of the zoning district.

(7) All wind turbines must be set back from the nearest public right-of-way a distance of 110% of the turbine height, as measured from the right-of-way line to the nearest point on the outside edge of a tower.

(8) The facility owner or operator must comply with all applicable codes regulating sound generation. A predictive sound study of turbine noise must accompany the application to verify that all code requirements can be met for dBA sound levels. In the event that any sound levels from a wind turbine are found to be in excess of permissible levels per the City Code, the facility owner or operator must take necessary measures to bring sound levels down to a level acceptable.

(9) A shadow flicker study is required and must be submitted with the application. Projects must mitigate shadow flicker on existing structures and shadow flicker must not fall within the buildable area of an adjacent lot, as defined by current setback requirements.

(10) The facility owner and operator must, at their sole expense, complete decommissioning of the wind energy system, or individual wind turbines, once the use of the wind energy system or any individual wind turbines are discontinued. The wind energy system or turbine must be deemed to be at the end of its useful life if it is abandoned for a period of time in excess of 180 days. Decommissioning includes removal of wind turbines and related aboveground equipment.

(oo) Wireless Telecommunications

All wireless telecommunication towers, facilities, and antennas are special exception uses with the exception of antenna stealth design (item 5 below).

(1) Application Requirements

All applications to erect, construct, or modify any part of a wireless telecommunications system require site plan review must include the following items:

(i) A site plan showing:

a. The location, size, screening, and design of all structures, including fences.

b. The location and size of all outdoor equipment.

c. Elevations showing antenna height.

d. If the site plan is for a new wireless telecommunications facility, a landscape plan showing all screening.

e. If the site plan is for a new wireless telecommunications tower, indication of the fall zone as a shaded circle.

(ii) A maintenance plan and any applicable maintenance agreement designed to ensure long-term, continuous maintenance, such as maintenance of landscape, keeping the area free from debris and litter, and immediate removal of any graffiti.

(iii) A disclosure of what is proposed, demonstrating the need for the wireless telecommunications system in the proposed location. This is not required for co-location or stealth design antennas.

(iv) The reason or purpose for the placement, construction, or modification in the proposed location with specific reference to the provider's coverage, capacity, and/or quality needs, goals, and objectives. This is not required if the proposal is does not involve the erection of a new tower.

(v) The service area of the proposed wireless telecommunications system.

(vi) If the proposal is for a new telecommunications tower, then a map showing collocation opportunities within the City and within areas surrounding the borders of the City must be provided and justification for why co-location is not feasible in order to demonstrate the need for a new tower.

(vii) If the proposal is for a new telecommunications tower, certification by a licensed and registered professional engineer regarding the manner in which the proposed structure will fail. The certification may be utilized, along with other criteria such as applicable regulations for the district in question, in determining if additional setback should be required for the structure and other facilities.

(2) Setbacks

(i) All wireless telecommunications towers must be set back from any existing principal building on the lot and adjacent lots, measured at the nearest external wall or walls, and within the buildable area of any adjacent undeveloped lot, as defined by current setback requirements, no less than the tower height. The setback distance is measured from the nearest point on the outside edge of a tower to the nearest point on the foundation of the building.

(ii) All wireless telecommunications facilities must be set back from all property lines in accordance with the minimum setback requirements in the zoning district.

(3) Height

The maximum height of a wireless telecommunications tower is the minimum needed to function satisfactorily. The application for approval of a wireless telecommunications tower must demonstrate the minimum height needed for the tower to function, which will be reviewed and approved as part of site plan review. The City has the ability to hire an independent consultant to assist in review of the proposed height, whose fee will be charged to the applicant. Where a wireless telecommunications tower exceeds the maximum height permitted in the district, the City may require additional setbacks from all lot lines.

(4) Lighting and Marking

Wireless telecommunications systems must not be lit or marked unless required by the Federal Communications Commission (FCC) or the Federal Aviation Administration (FAA).

(5) Specific Standards for Wireless Telecommunications Antennas

Wireless telecommunications antennas are a special exception use in all districts, unless they are stealth design in which case they are a permitted use. Stealth design for wireless antennas is encouraged and is considered a permitted use in all districts, subject to site plan review. All applications for wireless telecommunications antennas must include all information required by this section. In addition to the standards of this section for wireless telecommunications antennas, stealth design must comply with the following regulations:

(i) To qualify as a stealth design, wireless telecommunications antennas must be enclosed, camouflaged, screened, obscured, or otherwise not readily apparent to a casual observer.

(ii) Wireless telecommunication antennas must be mounted at least 30 feet above grade, as measured from grade to the base of the antenna, to qualify as stealth design. Wireless telecommunication antennas mounted lower than 30 feet are considered a special exception use.

(iii) Antennas must be located on or in structures already permitted within zoning districts, such as water towers, clock towers, streetlights, penthouses, parapet walls (must be behind the parapet wall), and steeples, and designed to blend in with the structure.

(iv) Antennas that co-locate on existing wireless telecommunications towers are also considered stealth design. However, such antennas cannot increase the overall height of the existing wireless telecommunications tower.

(v) No antenna may increase the overall height of any structure on which it is mounted by more than 15 feet.

(6) Specific Standards for Wireless Telecommunications Facilities

(i) Any buildings, cabinets, or shelters may house only equipment and supplies for operation of the wireless telecommunication tower. Any equipment not used in direct support of such operation must not be stored on the site.

(ii) Commercial advertising is prohibited. Only signs that are part of the equipment as manufactured or warning signage is permitted.

(7) Specific Standards for Wireless Telecommunications Towers

(i) The use of guyed towers is prohibited. Towers must be monopoles, meaning self-supporting with no wires, cables, or beams.

(ii) Wireless telecommunications towers must be designed to accommodate other telecommunications providers. The area surrounding a tower must be of a sufficient size to accommodate accompanying wireless telecommunications facilities for other telecommunications providers.

(iii) Unless otherwise required by the Federal Communications Commission, the Federal Aviation Administration or the City, towers must have a galvanized silver or gray finish.

(8) Abandonment

Any wireless telecommunications system that is not operated for a period of 180 consecutive days is considered abandoned. The owner must immediately remove the tower or facility, and all aboveground equipment and related debris. The City may ensure and enforce removal by means of its existing regulatory authority.

(9) Nonconformities

(i) Ordinary maintenance, including replacement/upgrading, of antenna equipment may be performed on nonconforming antennas or towers. However, if the proposed alteration intensifies a nonconforming characteristic of the antenna or tower, a variance is required.

(ii) Co-location of an antenna on an existing nonconforming tower is a permitted use, provided that the addition of the antenna and any additional wireless telecommunications facilities do not increase the overall height of the nonconforming tower.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14278, § 1, 9-16-25; Ord. No. 14337, § 1, 3-17-26; Ord. No. 14308, § 1, 12-16-25)

Sec. 38-43. Accessory Use Standards

(a) Drive-Through Facility

(1) All drive-through facilities must provide a minimum of four stacking spaces per lane or bay, unless additional stacking spaces are specifically required by this Code. Further, additional internal queuing and stacking spaces and other access points to prevent disruption of traffic flow on adjacent streets may be required.

(2) Stacking spaces provided for drive-through uses must be:

(i) a. A minimum of ten feet in width, as measured from the outermost point of any service window or bay entrance, to the edge of the driveway, and 20 feet in length. In the case of a recessed service window, the measurement is taken from the building wall.

(ii) b. Stacking spaces must begin behind the vehicle parked at a final point of service exiting the drive through aisle, such as a service window or car wash bay (this does not include a drive-through sign). Spaces must be placed in a single line behind each lane or bay.

(3) All drive-through lanes must be located and designed to ensure that they do not adversely affect traffic circulation on adjoining streets. Drive-through lanes on corner lots must not route exiting traffic into adjacent residential neighborhoods unless required for emergency or traffic safety reasons as determined by the Department of Public Works- Transportation Division and Fire Department.

(4) The minimum width for a drive through lane is ten feet.

(5) Drive-through facilities require a solid fence or wall a minimum of six feet to a maximum of seven feet in height along the interior side and rear lot lines when such lot lines abut a residential zone, or the C-NT,C-N, or C-TMU Zones. One shrub, a minimum of three feet in height at maturity, is required every three linear feet, along such fence or wall, placed inside the fence toward the interior of the lot.

(6) No drive-thru component, such as drive-up windows, lanes, or order box, is allowed within 50 feet of a residential use, excluding mixed-use developments, measured from the residential lot line to the closest point of the drive-thru lane.

(b) Accessory Dwelling Unit (ADU)

(1) ADUs are intended as accessory uses to single-unit detached dwellings. ADUs must be located on the same lot as the principal dwelling unit.

(2) Only one ADU is permitted per lot per single-unit detached dwelling.

(3) The ADU must be owned by the same property owner(s) as the principal dwelling unit and cannot be subdivided or otherwise separated in ownership such that the ADU is located on a different lot than the principal dwelling unit. Under no circumstances may the ADU be converted to a horizontal ownership regime or a fee simple condo.

(4) Maximum height for detached ADUs:

(i) When the height of the principal dwelling unit is more than one-story: Maximum of 24 feet or two stories

(ii) When the height of the principal dwelling unit is one-story: Maximum of 24 feet when measured to the peak of the roof for all roof types

(5) Maximum height for attached ADUs: Limited to the maximum height of the zone and cannot exceed the height of the principal dwelling

(6) Detached ADUs must be located in the rear or interior side yard only. Detached ADUs are not permitted in the front yard.

(7) Attached ADUs must meet the minimum setback requirements as required for the principal structure in the zone.

(8) The maximum size of a detached ADU cannot exceed a gross square footage of 800 square feet. This is measured by the exterior dimensions of the building. Sleeping lofts and interior stairwells that are conditioned are also added into this square footage.

(9) The maximum size of an attached ADU cannot exceed a gross square footage of 800 square feet. This is measured by the exterior dimensions of the building. Sleeping lofts and interior stairwells that are air conditioned are also added into this square footage.

(10) ADU conversions must meet the minimum standards, including 800 square feet in size, if an existing portion of a single-unit dwelling or detached accessory structure is to be converted to an ADU.

(11) Detached ADU minimum setbacks are as follows:

(i) Not permitted in front yard.

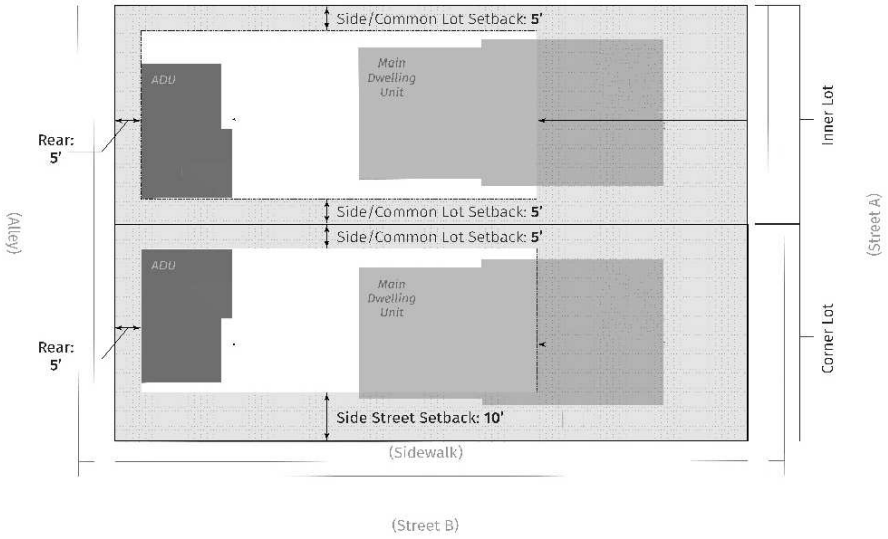
(ii) Corner Side Setback: 10 feet

(iii) Interior Side Setback: 5 feet

(iv) Alley Setback: 5 feet

(v) Functional Rear Yard of a Double-Frontage Lot: Required front setback of zone

(vi) Rear Setback: 5 feet



(12) Attached ADU must maintain the setback requirements of the underlying zone for principal structures.

(13) There is no minimum on-site parking requirement for ADU's. Existing required parking for the principal dwelling unit must be maintained or replaced on-site if parking is lost due to the creation of the ADU.

(14) Home occupations are allowed in the ADU.

(15) The following design standards apply:

(i) Shipping containers and recreational vehicles are prohibited as an ADU.

(ii) The ADU must have a permanent foundation either through digging and pouring a footer or being attached to an existing permanent structure.

(iii) ADUs must follow all design standards applicable to single-unit detached houses.

(iv) For attached ADUs, an exterior staircase used to access an ADU cannot be located on the front facade of the structure.

(v) The ADU must have a separate entrance located on the side yard or rear yard, if the ADU is attached to the primary dwelling. An entrance at the front of the principal dwelling is allowable if it is a single entrance door for both the principal dwelling and the accessory unit. A front entrance solely for the ADU is allowed if the entrance door existed existed prior to May 31, 2022. A separate entrance must lead directly to the outside and cannot be through a garage.

(16) Nonconforming or existing ADUs that that were constructed prior to May 31, 2022 may continue to exist and will be considered legal units if they are brought up to all applicable building, fire, and municipal codes as required by the Land Development Office. This includes any existing ADUs (as of May 31, 2022) within a front yard. Such ADUs may be repaired and rebuilt to the existing footprint. When the principal structure is demolished, this permission is deemed null and void.

(c) Farmstand

(1) Farmstands are limited to sales of items grown at the site or value-added products from items grown at the site. No resale of items is permitted at farmstands.

(2) Only one farmstand is permitted per lot.

(d) Helistop

(1) A helistop must be designed and constructed in accordance with all federal and state regulations.

(e) Home Occupation

(1) Home occupations are permitted in a dwelling unit as an accessory use provided that this use is clearly incidental and secondary to the primary use of the dwelling for residential purposes and does not change the character of the dwelling unit or adversely affect the surrounding residential district of which it is a part.

(2) The home occupation may be conducted within the principal structure or within a detached accessory structure.

(3) Only a full-time resident of the dwelling and no more than two persons employed who is not a resident may be in the home at any given time to work in connection with the home occupation.

(4) No alteration of any structure may be made that changes the residential character of that dwelling. Displays or activities that indicate from the exterior that a structure is being used, in part, for any purpose other than that of a residence or an accessory structure are prohibited.

(5) No commodities can be sold or services rendered that require receipt or delivery of merchandise, goods, or equipment other than by a passenger motor vehicle or by parcel or letter carrier mail services using vehicles typically employed in residential deliveries.

(6) The home occupation and all related activity, including storage, equipment, and display, must be conducted completely within the principal building or accessory structure.

(7) No toxic, explosive, flammable, combustible, corrosive, etiologic, radioactive, or other restricted materials may be used or stored on-site. There must be no perceptible noise, odor, smoke, electrical interference, vibration, or other nuisance emanating from the structure where the home occupation is located in excess of that normally associated with residential use.

(8) The use or storage of tractor trailers, semi-trucks, or heavy equipment, such as construction equipment used in a commercial business, is prohibited.

(9) The home occupation cannot create greater vehicular or pedestrian traffic than is average for a residential area. The home occupation and any related activity must not create any traffic hazards or nuisances in public rights-of-way.

(10) Only one non-illuminated, affixed wall sign no more than 1.5 square feet in area is permitted in association with the home occupation.

(11) Day care homes of any type are not considered a home occupation and are regulated separately by this Ordinance as a principal use.

(12) Repair and service of any vehicles, any type of heavy machinery, or any type of engine is prohibited. Small electronic repair, such as computers, is allowed.

(13) Rental services, where any materials for rent are stored on-site and customers visit the residence to pick-up and return the product, are prohibited

(14) Dispatching services, where workers report to the home for dispatching, are prohibited

(15) The business of firearm transfers is prohibited.

(f) Keeping of Livestock/Equines

(1) A minimum lot size of one acre is required.

(2) All enclosures for livestock and/or equines, including stables, barns, and animal pens, must be located 100 feet from the lot line.

(3) Livestock and equines as defined by Chattanooga City Code Sec. 7-2.—Definitions.

(g) Outdoor Sales and Display (Accessory)

(1) The regulations of this section apply to outdoor sales and display located entirely on the lot and accessory to the principal use of the site. Outdoor sales and display located on the right-of-way is regulated separately by the City Code.

(2) Accessory outdoor sales and display of merchandise must be merchandise that customarily sold on the premises.

(h) Outdoor Storage (Accessory)

(1) The regulations of this section apply only to outdoor storage located entirely on the lot and accessory to the principal use of the site. Outdoor storage as a principal use of the site is regulated as a principal use.

(2) Outdoor storage of material and equipment is associated directly with and accessory to the on-site principal business (input materials, equipment, or outgoing product) use.

(3) Outdoor storage areas occupy no more than 40% of the lot area, excluding the area where buildings are located or the principal building, whichever is less.

(4) Outdoor storage areas require a solid fence or wall a minimum of six feet to a maximum of eight feet in height along the interior side and rear lot lines. One shrub, a minimum of three feet in height at maturity, is required every three linear feet, along such fence or wall, placed inside the fence toward the interior of the lot. This does not apply in the industrial zones unless such lot lines abut a residential zone.

(5) No outdoor storage is permitted in any public right-of-way. No outdoor storage may be located so that it obstructs pedestrian or vehicular traffic.

(i) Outdoor Seating/Activity Area

This section regulates outdoor seating/activity areas that occurs on private property only. Outdoor seating/activity on the right-of-way is regulated within the City Code.

(1) Outdoor seating/activity areas must be established in conjunction the principal use on the site.

(2) No outdoor seating/activity areas may be located within required off-street parking areas including access aisles. The outdoor dining area must not interfere with the circulation of pedestrian or vehicular traffic.

(3) When a structure is required to be constructed at a build-to line, the structure may have up to 50% or 60 linear feet of the applicable facade, whichever is less, designed as a permanent outdoor seating/activity areas, which may be setback up to 30 feet from the required build-to line.

(4) The hours of operation for the outdoor dining area may be no greater than that of the principal use. (Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14365, § 1, 5-19-26)

Sec. 38-44. Temporary Use Standards

These regulations are for temporary uses located on private property. Temporary use permissions are granted to property, not individual temporary use permit applicants or temporary use operators. Where temporary uses are limited in timeframes, such as number of times per year, such timeframes apply to the property, not the permit applicant. Temporary uses require a temporary use permit per Section 17.9 unless specifically cited as exempt.

(a) Mobile Food Vendor

These standards apply to individual mobile food trucks and food trailers that locate on private property as an individual temporary use. When food trucks and trailers are included as part of another temporary use, such as temporary outdoor entertainment event, they are approved as part of that use but are still subject to items 5 through 9 below.

(1) The timeframe of a mobile food vendor, including number of days per week and overall duration of the event, will be determined and approved as part of the temporary use permit.

(2) If the operator is not the owner of the site where the truck or trailer will be located, written permission from the property owner must be submitted as part of the temporary use permit application.

(3) The permit holder must keep the area clear of litter and debris at all times.

(4) All food trucks and food trailers must be properly licensed by the health department.

(5) Outdoor seating may be provided on the site, but no seating may be permanently installed.

(6) A permanent water or wastewater connection is prohibited.

(7) Electrical service may be provided only by temporary service or other connection provided by an electric utility, or an on-board generator.

(8) Drive-through service is prohibited.

(9) Shipping containers cannot be used a mobile food vendor.

(b) Mobile Retail Vendor

These standards apply to individual mobile retail vendors that locate on private property as an individual temporary use. When such vendors are included as part of another temporary use, such as temporary outdoor entertainment event, they are approved as part of that use but are still subject to items 3 through 6 below.

(1) The timeframe of a mobile retail vendor, including number of days per week and overall duration of the event, will be determined and approved as part of the temporary use permit.

(2) If the operator is not the owner of the site where the vendor will be located, written permission from the property owner must be submitted as part of the temporary use permit application.

(3) The permit holder must keep the area clear of litter and debris at all times.

(4) Electrical service may be provided only by temporary service or other connection provided by an electric utility, or an on-board generator.

(5) Drive-through service is prohibited.

(6) Shipping containers cannot be used a mobile retail vendor.

(c) Temporary Entertainment and/or Sales Event

The standards of this section and the use permission in Table 38-41.1 are for temporary entertainment and/or sales event that are located on private property. A special event permit and/or other authorization within the City Code is required for such events located in the right-of-way. However, when an event is authorized to occur in the public right-of-way, adjacent private properties may be included in the area of the event; in such case, an additional temporary use permit for the private property is not required.

(1) The timeframe of a temporary entertainment and/or sales event, including number of days per week and overall duration of the event, will be determined and approved as part of the temporary use permit. The temporary use permit may be issued on a yearly basis.

(2) Temporary entertainment and/or sales events in the residential zones is restricted to those events associated with and conducted by an institutional use within the district, such as a place of worship and educational facility, and must take place entirely on the lot containing the use.

(3) A management plan is required and must be approved as part of the temporary use permit application that demonstrates the following:

(i) An estimate of the daily number of attendees.

(ii) General layout of performance or sales areas, visitor facilities, such as any seating areas and restrooms, parking areas, and all ingress and egress points to the site.

(iii) An established set of operating rules addressing the governance structure of the event, hours of operation, maintenance, and security requirements.

(iv) The on-site presence of a manager during the event.

(v) Provision for waste removal and for recycling.

(vi) The days and hours of operation, including set-up and take-down times.

(vii) A description of crowd control and security measures.

(viii) For outdoor events, a lighting plan describing all temporary lighting to be installed.

(ix) A parking and loading management plan.

(4) Any temporary structures must be removed within three days of conclusion of the event.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-45. Use Definitions

Accessory Dwelling Unit (ADU). An additional dwelling unit associated with and incidental to a principal dwelling on the same lot.

(a) Attached Accessory Dwelling Unit. An additional subordinate dwelling unit located on the same lot as a principal dwelling unit which is joined to another dwelling at one or more sides by a wall and contained entirely within the footprint of the principal dwelling unit. Examples include converted living space, attached garages, basements, or attics, additions, or a combination thereof.

(b) Detached Accessory Dwelling Unit. An additional subordinate dwelling unit located on the same lot as a principal dwelling unit and is a stand-alone, separate structure. This can include an existing garage or other accessory structure detached from the principal dwelling unit that is legally converted (fully or partially) to an accessory dwelling unit.

Adult Use. For the purpose of this use, adult uses include the following:

(a) Adult. Any person who is 18 years of age or older.

(b) Adult Entertainment. Any exhibition of any adult-oriented motion picture, live performance, display, or dance of any type that has as a principal portion of such performance, any actual or simulated performance of specified sexual activities, sexual conduct, or exhibition and viewing of any specified anatomical areas, removal of articles of clothing or appearing unclothed, or any other personal service offered customers involving exhibition and viewing of specified anatomical areas.

(c) Adult-Oriented Establishments. Establishments that include, but are not limited to, sexually explicit establishments which cater to an exclusively or predominantly adult clientele and offer adult entertainment for business purposes such as: adult bookstores, adult motion picture theaters, adult cabarets, escort agencies, sexual encounter centers, adult massage parlors, adult video stores, and other enterprises which regularly feature materials, acts, or displays involving complete nudity or exposure of the specified anatomical areas defined below and/or sexual excitement or enticement. Adult-oriented establishment further includes, without being limited to, any adult entertainment studio or any premises that is physically arranged and used as such, whether advertised or represented as an adult entertainment studio,, exotic dance studio, encounter studio, sensitivity studio, model studio, escort service, lingerie studio, or any other term of like import which regularly feature materials, acts or displays involving complete nudity or exposure of the specified anatomical areas defined below for sexual excitement or enticement as a business purpose.

(d) Adult Bookstore. A commercial establishment which, as one of its principal business purposes, offers for sale or rental for any form of consideration any one of the following: books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, sexual devices, video cassettes, compact discs, digital video discs, slides, or other visual representations which are characterized by their emphasis on the display of sexual conduct, specified sexual activities, or specified anatomical areas. A business purpose for purposes of these definitions is defined below.

(e) Adult Motion Picture Theater. Any public place, whether open or enclosed, which is used as one of its principal business purposes for presenting material distinguished or characterized by an emphasis on matter depicting, describing, or relating to sexual conduct, specified sexual activities, or specified anatomical areas for observation by patrons therein. A business purpose for purposes of these definitions is defined below.

(f) Adult Cabaret. Any restaurant, bar, dance hall, nightclub or other such public place which as one of its principal business purposes regularly features entertainment of an erotic nature, including exotic dancers, strippers, or similar entertainers, and prohibits access by minors, because of age, to the premises,

and/or advertises itself as offering "adult" or "XXX" or "X-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage. A business purpose for purposes of these definitions is defined below.

(g) Adult Video Store. A commercial establishment which, as one of its principal business purposes, offers for sale or rental for any form of consideration any one of the following: photographs, films, motion pictures, sexual devices, video cassettes, compact discs, digital video discs, slides, or other visual representations which are characterized by their emphasis on the display of sexual conduct, specified sexual activities, or specified anatomical areas. A business purpose for purposes of these definitions is defined below.

(h) Adult Massage Parlors. Any premises, public place, place of business or membership club which as one of its principal business purposes includes the business or activity of furnishing, providing or giving for a fee or any other form of consideration a massage, a sauna, a bath, body painting, or similar massage services or procedure, and prohibits access by minors, because of age, to the premises, and/or advertises itself as offering "adult" or "XXX" or "X-rated" or "erotic" or "sexual" or "sensual" or "pornographic" material on signage. This definition is not construed to include a principal business purpose such as a hospital, nursing home, medical clinic, exercise facility, or the office of a duly licensed physician, surgeon, physical therapist, chiropractor, holistic medicine, or osteopath. Nor is this definition be construed to include a barber shop, beauty salon, or spa operated by a duly licensed barber or cosmetologist,. A business purpose for purposes of these definitions is defined below.

(i) Minor. Any person less than 18 years of age.

(j) Portion. At least 33.3% of the thing so described whenever such term is used in this Code.

(k) Business Purpose. A business purpose for purposes of these definitions is a principal business purpose if any one or more of the following criteria applies:

(1) A principal portion of the business' displayed merchandise consists of the foregoing enumerated items.

(2) A principal portion of the wholesale value of the business' displayed merchandise consists of the foregoing enumerated items.

(3) A principal portion of the retail value of the business' displayed merchandise consists of the foregoing enumerated items.

(l) Sexual Conduct. The engaging in or the commission of an act of sexual intercourse, oral-genital contact, or the touching of the sexual organs, pubic region, buttocks, or female breast of a person for the purpose of arousing or gratifying the sexual desire of another person.

(m) Sexual Device. Any three-dimensional object primarily designed and marketed for the stimulation of the male or female human genital organs or anus, and includes three-dimensional reproductions or representations of the human genital organs or anus. Nothing in this definition is construed to include devices primarily intended for medical education, protection against sexually transmitted diseases, or for prevention of pregnancy.

(n) Sexual Device Shop. A commercial establishment that regularly features sexual devices or offers for sale sexual devices as one of its principal business purposes. Nothing in this definition is construed to include any pharmacy, drug store, medical clinic, or any establishment primarily dedicated to providing medical or healthcare products or services, nor is this definition construed to include commercial establishments which do not restrict access to any portion of their premises to minors by reason of age. A business purpose for purposes of these definitions is defined below.

(o) Specified Sexual Activities.

(1) Human genitals in a state of actual or simulated sexual stimulation or arousal.

(2) Acts of actual or simulated human masturbation, sexual intercourse or sodomy.

(3) Actual or simulated fondling or other erotic touching of human genitals, pubic regions, buttocks or female breast.

(p) Specified Anatomical Areas.

(1) Less than completely and opaquely covered human genitals, pubic region, buttocks, and/or female breast below a point immediately above the top of the areola.

(2) Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

Agriculture. Agriculture includes:

(a) The land, buildings and machinery used in the commercial production of farm products and nursery stock.

(b) The activity carried on in connection with the commercial production of farm products and nursery stock.

(c) Recreational and educational activities on land used for the commercial production of farm products and nursery stock.

As used in this definition, the term farm products mean forage and sod crops; grains and feed crops; dairy and dairy products; poultry and poultry products; livestock, including breeding and grazing; fruits; vegetables; flowers; seeds; grasses; forestry products; fish and other aquatic animals used for food; bees; equine; and all other plants and animals that produce food, feed, fiber, or fur. The term nursery stock means all trees, shrubs, or other plants, or parts of trees, shrubs, or other plants, grown or kept for, or capable of, propagation, distribution, or sale on a commercial basis. Agriculture includes a single-unit detached dwelling used as a dwelling for the operators/owners of the farm.

Alternative Correctional Facility. A monitored housing facility for adults or minors that is required by the courts or otherwise available as an alternative to incarceration.

Amusement Facility—Indoor. A facility for spectator and participatory uses conducted within an enclosed building, such as movie theaters, indoor sports arenas, bowling alleys, tumbling centers, skating centers, roller rinks, escape room/physical adventure game facilities, and pool halls. Indoor amusement facilities do not include live performance venues. An indoor amusement facility may include uses such as, but not limited to, concession stands, eating and drinking establishments, and retail sales as ancillary uses.

Amusement Facility—Outdoor. A facility for spectator and participatory uses conducted outdoors or within partially enclosed structures, such as outdoor sports stadiums, batting cages, and miniature golf courses. An outdoor amusement facility may include uses such as, but not limited to, concession stands, eating and drinking establishments, and retail sales as ancillary uses.

Animal Care Facility. An establishment which provides care for animals, excluding livestock, including veterinary offices for the treatment of animals, where animals may be boarded during their convalescence, pet grooming establishments, animal training centers and clubs, and pet boarding facilities, where animals are boarded during the day and/or for short-term stays. Animal care facilities include pet cremation services.

Animal Shelter. A facility used to house or contain stray, homeless, abandoned, and/or unwanted animals.

Art Gallery. An establishment that sells, loans and/or displays paintings, sculpture, photographs, video art, or other works of art. Art gallery does not include a cultural facility, such as a library or museum, which may also display paintings, sculpture, photographs, video art, or other works.

Arts and Fitness Studio. An establishment where an art or activity is taught, studied, or practiced such as dance, martial arts, photography, music, painting, gymnastics, pilates, or yoga. An arts studio also includes private exercise studios for private sessions with trainers and/or private classes; health clubs are not an arts and fitness studio, but a personal service establishment.

Bed and Breakfast. A single-unit dwelling where a resident/owner provides lodging for a daily fee and prepares meals for guests. A bed and breakfast may include dining facilities for the guests. A bed and breakfast may or may not have reception facilities.

Borrow Pit. Land used as an excavation area where materials like soil, sand, gravel, or stone are extracted for construction purposes. Such excavation is a principal use of the land.

Body Modification Establishment. An establishment that offers tattooing services, body piercing, and/or non-medical body modification. Body modification establishment does not include an establishment that offers only ear piercing as an ancillary service.

Broadcasting Facility. A facility engaged in broadcasting and information relay services for radio and television signals, including studio facilities. A broadcasting facility may or may not include antennas to broadcast the signal.

Campground/Recreational Vehicle (RV) Park. Land used for transient occupancy primarily by camping in tents and/or recreational vehicles, such as camp trailers, travel trailers, motor homes, or similar movable temporary sleeping quarters.

Campground, Resort. Land used for transient occupancy by camping primarily in cabins and other shelters such as domes, yurts, and treehouses.

Car Wash. An establishment for the washing and cleaning of vehicles or other light duty equipment, whether automatic, by hand, or self-service. The car wash facility may be within an enclosed structure, an open bay structure, or similar configurations.

Cemetery. Land and structures reserved for the interring of human remains or the interring of animal remains. Cemeteries may include structures for performing religious ceremonies related to the entombment of the deceased, mortuaries, including the sales of items related to the internment of remains, and related accessory structures, such as sheds for the storage of maintenance equipment. Cemeteries may also include crematoriums and embalming facilities.

Children's Home. An institutional residential facility that provides housing for and care to minors who are wards of the state, whose parents or guardians are deceased or otherwise unable or unwilling to care for them. This includes institutions that are located in one or more buildings on contiguous property with one administrative body.

Commercial Kitchen (Standalone). A certified shared commercial kitchen in which individuals or businesses prepare value-added food products and meals, usually paying an hourly or daily rate to lease a space shared by others.

Commercial Parking. Parking areas, lots, or structures, that are used primarily for the parking of vehicles for a fee or compensation, excluding parking required for residential or other non-commercial uses.

Community Center. A facility used as a place of meeting, recreation, or social activity, that is open to the public and is not operated for profit, and offers a variety of educational and community service activities. A community center may serve as a local "food hub" where regionally grown food, including value added food, can be grown and/or brought for distribution and sale.

Community Garden. Fruits, flowers, vegetables, or ornamental plants cultivated by one or more individuals.

Conservation Area. Designated open space that preserves and protects natural features, wildlife, and critical environmental features, as well as undeveloped sites of historical or cultural significance. A conservation area may include opportunities for passive recreation, such as hiking trails and lookout structures, and environmental education.

Cottage Court Development. A small lot residential development in a manner that organizes various dwelling types around a common open space, designed as a cohesive whole and maintained in shared stewardship by residents.

Crematorium. A standalone, enclosed facility where human or companion animal remains are cremated in a cremation retort. A crematorium may be an independent principal use and not associated with a funeral home. If a crematorium is used in association with a funeral home, then it is considered an accessory use to the funeral home.

Cultural Facility. A facility open to the public that provides access to cultural exhibits and activities including, but not limited to, museums, cultural or historical centers, non-commercial galleries, historical societies, and libraries. A cultural facility may include uses such as, but not limited to, retail sales of related items, performance spaces and auditoriums, and eating and drinking establishments as ancillary uses.

Day Care Center. A facility where, for a portion of a 24 hour day, care and supervision is provided for minors, the elderly, and/or functionally-impaired adults in a protective setting.

Day Care Home. A residential dwelling where a permanent occupant of the dwelling provides care for minors, the elderly, and/or functionally-impaired adults from outside households in a protective setting for less than 24 hours per day. A day care home does not include facilities that only receive children from a single household.

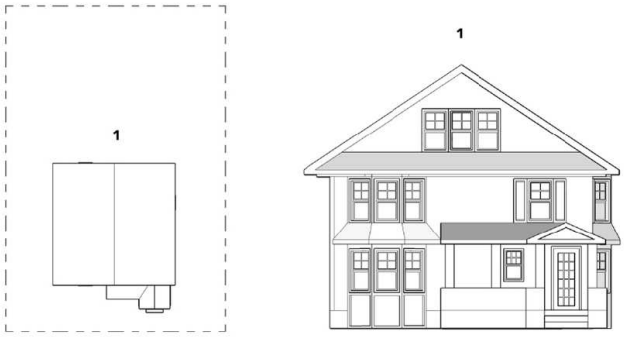
Drive-Through Facility. That portion of a business where transactions occur directly with customers via a service window, kiosk, or other configuration that allows customers to remain in their vehicle.

Drive-Through Facility, Standalone. A business where transactions occur directly with customers via a service window, kiosk, or other configuration that allows customers to remain in their vehicle and that does not provide on-premise consumption on-site. Drive-Through Facility, Standalone are considered the principal use on the property and do not have any other principal uses and buildings. Drive-Through Facility, Standalone uses are not considered Eating and Drinking Establishments.

Drug Treatment Clinic. A licensed facility authorized by the state to administer drugs, such as methadone or suboxone, in the treatment, maintenance, or detoxification of persons.

Dwelling—Single-Unit Detached. A structure containing one dwelling unit located on a single lot.

DWELLING—SINGLE-UNIT DETACHED



Dwelling – Single-Unit Detached.

Dwelling—Single-Unit Attached. A structure containing one single-unit dwelling attached at an interior side lot line by a vertical party wall to another single-unit dwelling. Each single-unit dwelling is located on a separate lot.

DWELLING—SINGLE-UNIT ATTACHED

Dwelling—Two-Unit. A structure containing two dwelling units on one lot.

DWELLING—TWO-UNIT

Dwelling – Two-Unit.

Dwelling—Three-Unit. A structure containing three dwelling units on one lot.

DWELLING—THREE-UNIT

Dwelling – Three-Unit.

Dwelling—Four-Unit. A structure containing four dwelling units on one lot.

DWELLING—FOUR-UNIT

Dwelling – Four-Unit.

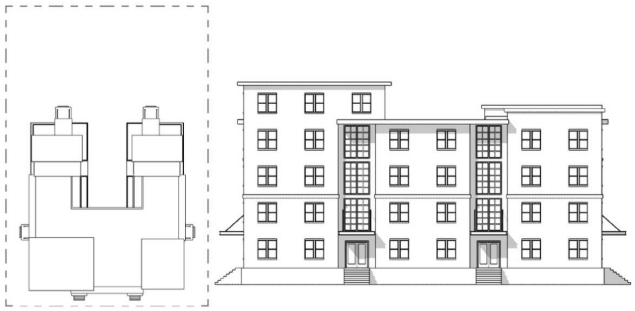
Dwelling—Townhouse. Three or more attached dwellings where each townhouse building in the larger structure is attached to another townhouse building by a vertical party wall and designed so that each townhouse building in the development has a separate exterior entrance to the dwelling unit.

DWELLING—TOWNHOUSE

Dwelling – Townhouse.

Dwelling—Multi-Unit: A Structure containing five or more dwelling units within a singlebuilding where the units are accessed by one or more common entryways. However, ground floor units may be accessed by individual entry ways. See also Multi-Unit Developments.

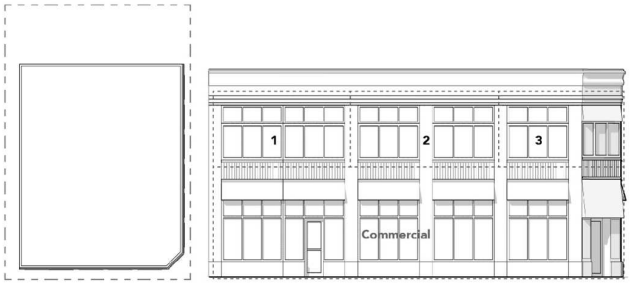
DWELLING—MULTI-UNIT



Dwelling – Multi-Unit.

Dwelling—Above the Ground Floor. Dwelling units located above ground-floor nonresidential uses.

DWELLING—ABOVE THE GROUND FLOOR



Dwelling, Above the Ground Floor

Dwelling—Live/Work. A principal structure that combines a dwelling unit with a commercial use permitted in the zoning district that is used by one or more of the residents. A live/work dwelling may also include the combination of a dwelling unit with arts-related activities, such as painting, photography, sculpture, music, and film, used by one or more of the residents. Live/work dwellings are subject to the standards for the individual uses contained within this Code.

Dwelling—Manufactured Home. A structure, transportable in one or more sections, which in the traveling mode is eight body feet or more in width, or 40 body feet or more in length, or, when erected on site, is 320 or more square feet; and which is built on a permanent chassis and designed to be used as a dwelling, with or without permanent foundation when connected to the required utilities, including the plumbing, heating, air conditioning, and electrical systems contained therein. Manufactured home includes any structure that meets all of the requirements of this subsection except the size requirements and with respect to which the manufacturer voluntarily files a certification required by the Secretary of HUD and complies with the standards established under the Act.

(a) For manufactured homes built before June 15, 1976, manufactured home means a portable manufactured housing unit designed for transportation on its own chassis and placement on a temporary or semi-permanent foundation having a measurement of over 32 feet in length and over eight feet in width.

Manufactured home also means a double-wide manufactured home, which is two or more portable manufactured housing units designed for transportation on their own chassis that connect on site for placement on a temporary or semi-permanent foundation having a measurement of over 32 feet in length and over eight feet in width.

(b) Modular buildings and modular homes are not considered manufactured homes and refer to a method of construction. Modular homes are built in multiple sections, called modules, at a facility and then delivered to the site where the modules are set onto the building's foundation and joined together to make a single building. Modular buildings and modular homes must conform to all zoning requirements for the dwelling type and meet all local building code requirements.

Eating and Drinking Establishment. An establishment where food and/or drinks are prepared and provided to the public for on-premises consumption by seated patrons, carry-out, and/or delivery service. Restaurants and bars are considered eating and drinking establishments.

Educational Facility—College/University. A facility for post-secondary higher learning that grants associate or bachelor degrees. The institution may also have research facilities and/or professional schools that grant master and doctoral degrees. Educational facilities—university or college include ancillary uses such as dormitories, housing for staff and students, fraternities/sororities, cafeterias, eating and drinking establishments, retail sales, indoor or outdoor recreational facilities, and similar uses.

Educational Facility—Primary or Secondary. A public, private, or parochial facility that offers instruction at the elementary, junior high, and/or high school levels. A pre-school may also be included as part of a primary school. Educational facilities—primary or secondary include ancillary uses such as dormitories, housing for staff and students, cafeterias, indoor or outdoor recreational facilities, and similar uses.

Educational Facility—Vocational. A facility that offers instruction in industrial, clerical, computer, managerial, automotive, repair (electrical, plumbing, carpentry, etc.), or commercial skills, or a business conducted as a commercial enterprise, such as a school for general educational development or commercial vehicle driving school. Educational facility—vocational also applies to privately operated schools that do not offer a complete educational curriculum. This does not include primary or secondary educational facilities.

Entertainment Venue. Any establishment (indoors or outdoors) where entertainment, either passive or active, is provided for the pleasure of patrons, either independent or in conjunction with any other use. Such entertainment includes, but is not limited to vocal and instrumental music, dancing, karaoke, comedy, acting, weddings, corporate and charitable events, or other activities using amplified sound. Entertainment venues do not include country clubs, golf courses, or residential neighborhood amenity centers.

Farmstand. A structure used to display and sell products grown on a lot in agricultural use.

Financial Institution. A bank, savings and loan, credit union, or mortgage office.

Financial Institution, Alternative. Alternative financial institution means establishments that are:

(a) Not licensed by an appropriate state or federal agency as a bank, savings and loan association, or credit union, industrial loan and thrift offices, insurance premium finance companies, or mortgage companies.

(b) Regulated by the Tennessee Department of Financial Institutions.

(c) Categorized for purposes of this Code as:

(1) Pawnbrokers as defined at T.C.A. § 45-6-203.

(2) Title pledge lenders as defined at T.C.A. § 45-15-103.

(3) Deferred presentment services as defined at T.C.A. § 45-17-102.

(4) Check cashers as defined at T.C.A, § 45-18-102 except that check cashers do not include check cashers exempt from state regulation pursuant to T.C.A. § 45-18-103.

(5) Flexible credit licensee that offers flex loans pursuant to Chapter 12, Title 45 of the Tennessee Code Annotated.

(6) Any combination of alternative financial services which include, but are not limited to, pawnbrokers, title pledge lenders, deferred presentment services, check cashers, and/or flexible credit licensee.

Entertainment Venue: Any establishment (indoors or outdoors) where entertainment, either passive or active, is provided for the pleasure of patrons, either independent or in conjunction with any other use. Such entertainment includes, but is not limited to vocal and instrumental music, dancing, karaoke, comedy, acting, weddings, corporate and charitable events, or other activities using amplified sound. Entertainment venues do not include country clubs, golf courses, or residential neighborhood amenity centers.

Food Bank. A non-profit or governmental organization that collects and distributes food to hunger relief organizations. Food is not distributed to the public or individuals from a food bank.

Food Pantry. A non-profit or governmental organization that provides food directly to those in need. Food pantries receive, buy, store, and distribute food. Food pantries may also prepare meals to be served at no cost to those who receive them. A food pantry may be an ancillary use of a place of worship, community center, social service center, and/or homeless shelter.

Food Truck Park. The use of land designed to accommodate one or more food truck vendors offering food and/or beverages for sale to the public as the primary use of the property, which may include seating areas for customers.

Fraternity/Sorority. A structure used by a chartered fraternal or sororal membership organization or association, used as a residence or a dining and recreational facility for members of organizations or associations who are students at a university, which permits the organization or association to use its facilities because of the relationship of such organization or association to the body of students enrolled in such institution.

Freight Terminal. A processing node for freight, such as a trucking terminal.

Funeral Home. An establishment where the dead are prepared for burial display and for rituals before burial or cremation, including chapels for the display of the deceased and the conducting of rituals before burial or cremation, and crematoriums.

Gas Station. An establishment where fuel for vehicles is stored and dispersed from fixed equipment into the fuel tanks of motor vehicles. Gas stations may include solar and/or electric charging stations. A gas station may also include ancillary retail.

Golf Course/Driving Range. A tract of land design with at least nine holes for playing a game of golf and improved with tees, greens, fairways, and hazards. A golf course may include a clubhouse, restrooms, snack-bar, and pro-shop as ancillary uses. A driving range may be designed as a standalone facility or included as part of a golf course, which is defined as a tract of land equipped with distance markers, clubs, balls, and tees for practicing the hitting of golf balls.

Government Office/Facility. Offices owned, operated, or occupied by a governmental agency to provide a governmental service to the public, such as City offices and post offices. Government offices do not include public safety or public works facilities.

Group Homes Operated on a Non-profit Basis. For the purposes of any zoning law in Tennessee per Tenn. Code Ann. § 13-24-101, the classification "single family residence" includes any home in which eight (8) or fewer unrelated persons with disabilities reside, and may include three (3) additional persons acting as support staff or guardians, who need not be related to each other or to any of the persons with disabilities residing in the home. "Person with a disability" does not include persons who have a mental illness and, because of such mental illness, pose a likelihood of serious harm as defined in § 33-6-501, or who have been convicted of serious criminal conduct related to such mental illness. This part does not apply to such family residences wherein persons with disabilities reside when such residences are operated on a commercial basis. A group home with eight or fewer residents is considered a single-unit dwelling.

Group Homes Operated on a For-profit Basis. A group care facility, operated on a for-profit basis, in a residential dwelling for: 1) care of persons in need of personal services or assistance essential for activities of daily living; or 2) care of persons in transition or in need of supervision, including drug and alcohol rehabilitation (excluding medical detoxification). Group home does not include persons who are mentally ill and, because of such mental illness, pose a likelihood of serious harm as defined in Tennessee Code Annotated § 33-6-501, or who have been convicted of serious criminal conduct related to such mental illness. A group home with eight or fewer residents operated on a commercial basis is required to have a Special Exceptions Permit.

Halfway House. A residential facility for persons who have been institutionalized for criminal conduct and who either require a group setting to facilitate the transition to society, or have been ordered to such facilities by the court as a condition of parole or probation.

Heavy Retail, Rental, and Service. Retail, rental, and/or service establishments of a heavier and larger-scale commercial character typically requiring permanent outdoor service or storage areas and/or partially enclosed structures. Examples of heavy retail, rental, and service establishments include large-scale home improvement centers with outdoor storage, display, and rental components, lumberyards, recreational vehicle dealerships, boat sales, rental, and service, truck rental establishments, and sales, rental, and repair of heavy equipment. Wholesale establishments that sell to the general public, including those establishments where membership is required, are considered heavy retail, rental, and service establishments.

Helistop. Land or part of a structure used for the landing of helicopters.

Home Occupation. An activity carried out for economic gain by a resident, conducted as an accessory use in the resident's dwelling.

Horizontal Property Act: See Tennessee Code Annotated Title 66, Chapter 27 Horizontal Property Act.

Horizontal Property Regime: See Horizontal Property Act.

Hospital. Facilities for primary health services and medical or surgical care to people, primarily in-patient, and including, as an integral part of the institution, related facilities such as laboratories, outpatient facilities, dormitories and staff housing, or educational facilities, and ancillary uses such as, but not limited to, cafeterias, eating and drinking establishments, retail sales, and similar uses.

Hotel. A commercial facility that provides transient lodging accommodations for a fee and customary lodging services. Related ancillary uses include, but are not be limited to, meeting facilities, eating and drinking establishments, and recreational facilities for the use of guests. Hotel includes motels, hostels, and extended stay hotels. Hotels may be constructed as a series of detached structures.

House Museum. A dwelling converted from its original principal use as a dwelling unit to a permanent, staffed institution dedicated to the collection, preservation, study, display, and educational use of objects,

and which is open to the public on a regular and limited schedule, is owned and operated as a nonprofit organization, and has a board of trustees or directors to oversee its operation and management and to ensure that the institution is true to its purpose.

Indoor Recreation. A commercial facility providing daily or regularly scheduled recreation-oriented activities in an indoor setting. Indoor recreation includes the following:

(a) Amusement center, game/video arcade.

(b) Assembly hall, auditorium, meeting hall.

(c) Billiard, pool hall.

(d) Bowling alley.

(e) Club, athletic or recreational.

(f) Convention center, arena.

(g) Extreme sports facility such as BMX, skateboarding or roller blading.

(h) Ice or roller skating rink.

(i) Inflatable playground/jump house.

(j) Miniature golf facility.

(k) Motor track.

(l) Movie theater or other indoor theater

Industrial—Artisan/Craft. Artisan-related crafts and industrial processes that are more intensive uses, such as small-scale metalworking, glassblowing, furniture making, and small-scale food production that includes preparation, processing, canning, or packaging of food products. Micro-production of alcohol and specialty food production are regulated separately from artisan/craft industrial. An artisan/craft industrial use may also include sales of products created on-site.

Industrial—General. The manufacture, fabrication, processing, reduction, and/or destruction of any article, substance, or commodity, or any other treatment thereof in such a manner as to change the form, character, and/or appearance, and incidental storage, sales, and distribution of such products. General industrial uses may produce noise, vibrations, illumination, or particulate that is perceptible to adjacent land users. These industrial uses typically have outdoor storage areas.

Industrial—Light. Research and development activities, and the manufacture, fabrication, processing, reduction, and/or destruction of any article, substance, or commodity, or any other treatment thereof in such a manner as to change the form, character, and/or appearance, where such activities are conducted wholly within an enclosed building. A light industrial use may also include a showroom, sales of products related to the items manufactured or stored on-site, and/or ancillary outdoor storage.

Industrial Design. An establishment for the research, design, and brand development of products for future production. Industrial design integrates the creative fields of art, science, and/or engineering to determine and define a product's form and features in advance of the physical act of making a product. An industrial design establishment may create prototypes, but may not mass manufacture products from the premises.

Junk Yard/Salvage Yard. A facility used for the abandonment, sale, storage, collection, or baling of scrap metal, other scrap or discarded materials, waste tire processing or collection area, and/or abandoned vehicles or machinery, or parts thereof.

Keeping of Livestock/Equines. The keeping of livestock and/or equines, including the associated structures, such as stables, as an accessory use to a non-agricultural uses, such as a dwelling.

Liquor Store. Retail store selling package liquor.

Live Entertainment—Secondary Use. A live performance, performed live by one or more persons including, but not limited to, musical acts, including disc jockeys (DJs), theatrical plays, performance art, stand-up comedy, and magic, included as part of the operation of an eating and drinking establishment, amusement facility, or similar use. As a secondary use, the other principal use operating on the site is open to public during hours when no performance is scheduled. Live entertainment—secondary use is approved separately as a principal use. Live entertainment—secondary use does not include:

(a) Any adult use.

(b) Live performance venue.

(c) Periodic performances or entertainment at educational facilities, places of worship, cultural facilities, reception facilities, and performances at weddings and similar events.

(d) Incidental entertainment, which is defined as background music provided at an eating and drinking establishment.

Live Performance Venue. A facility for the presentation of live entertainment, including musical acts, including disc jockeys (DJs), theatrical plays, stand-up comedy, and similar performances. Performances are scheduled in advance and tickets are required for admission and available for purchase in advance or may be purchased at the venue on the day of the performance. A live performance venue is only open to the public when a live performance is scheduled. A live performance venue may include classroom space utilized during hours it is not open to the public for a performance. A live performance venue may include concession stands, including sale of alcohol, but only when it is open to the public for a performance. A live performance venue does not include any adult use.

Lodge/Private Social Club. A facility operated by an organization or association for a common purpose, such as, but not limited to, a meeting hall for a fraternal or social organization or a union hall, but not including clubs organized primarily for-profit or to render a service which is customarily carried on as a business.

Lodge/private social club also includes an establishment owned or operated by a corporation, association, or group of private individuals, open to members, their families, and invited guests, organized and operated for pursuit of a common interest, occupation, or activity.

Manufactured Home Park. A parcel of land under single control or unified ownership that has been planned and improved for the placement of manufactured homes for residential use.

Manufactured Home Stand. That part of an individual manufactured home space which has been reserved for the placement of the manufactured home.

Manufactured Home Subdivision. A parcel of land under single control or unified ownership that has been planned and improved for the placement of manufactured homes for residential use and single-unit detached dwellings, where each lot is individually owned.

Marina. Any publicly or privately owned dock, basin or wet boat storage facility built to accommodate more than two boats and providing permanent or temporary docking space.

Medical/Dental Office/Clinic. A facility operated by one or more physicians, dentists, chiropractors, psychiatrists, physiotherapists, or other licensed practitioners of the healing arts for the examination and treatment of persons solely on an outpatient basis. Medical/dental offices also include alternative medicine clinics, such as acupuncture and holistic therapies, and physical therapy offices for physical rehabilitation.

Micro-Production of Alcohol. A facility for the production and packaging of alcoholic beverages, such as beer, wine, spirits, cider, and mead, for distribution and consumption on-premises. Facilities include a tasting room and may include retail areas for the purchase of beverages manufactured on-site and related items.

Mobile Food Vendor. A motor vehicle or food trailer towed by another vehicle, designed, and equipped to sell food and/or beverages directly to consumers. It does not include wholesale food distributors.

Mobile Retail Vendor. A motor vehicle, or trailer towed by another vehicle, designed and equipped to sell goods directly to consumers. It does not include wholesale distributors.

Movie Studio. Facilities for the production of motion pictures and film, including stages, exterior sets, film laboratories, sound recording facilities, construction, repair and storage facilities, caretaker and temporary housing, related commercial vehicles, and accessory fabrication activities.

Multi-Unit Developments: A multi-unit development is a property that has more than one dwelling unit, such as single-unit dwellings, two-unit, three-unit, four-unit, and multi-unit dwellings built on a single lot with no individual lot lines present. A multi-unit development can include various housing options/types on the one lot.

Multi-Use Stadium/Area: An open, partially enclosed facility used or intended to be used primarily for spectator sports, entertainment events and other public gatherings.

Neighborhood Commercial Establishment. A commercial use within a residential neighborhood that is nonresidential in its original construction and/or use. The structure containing a neighborhood commercial establishment may also contain dwelling units.

Nightclub. An establishment that provides entertainment of a participatory nature, including disc jockeys (DJs), by providing a place for dancing designed with an area designated as a dance floor, including any stage area; however portions of the floor area may be set up for alcohol service, including a bar counter, with or without stools, and other seating areas.

Office. An establishment that engages in the processing, manipulation, or application of business information or professional expertise. Such an office may or may not offer services to the public. An office is not materially involved in fabricating, assembling, or warehousing of physical products for the retail or wholesale market, nor engaged in the repair of products or retail services. An office does not include financial institution or industrial design.

Open Activation Related Uses: A commercial or non-commercial use situated in a public or private building or open space that provides temporary activation for an area.

Outdoor Market. An outdoor site, where individual stalls or spaces are provided to vendors to display, buy, sell, exchange, or deal in produce, food, and new or used goods.

Outdoor Recreation. A commercial facility, varying in size, providing daily or regularly scheduled recreation-oriented activities. Activities take place predominately outdoors or within outdoor structures. Outdoor recreation includes the following:

Camp or campground.

Drive-in theater.

Extreme sports facility, such as BMX, skateboarding or roller blading.

Open-air theater.

Outdoor amusements such as batting cage, golf driving range, amusement park, miniature golf facility or water park.

Racetrack.

Stadium, arena.

Outdoor Sales and Display (Accessory). Part of a lot used for outdoor sales and/or display of goods accessory to the principal use.

Outdoor Seating/Activity Area (Accessory). An outdoor seating/activity area as an accessory use is located outside the permanent enclosed area, and is used for seating, for food and/or beverage consumption, and/or participatory activities such as trivia. This includes, but is not limited to, areas such as patios, decks, rooftops, and open areas.

Outdoor Storage (Accessory). The storage of materials, supplies, equipment, vehicles, and similar items outdoors accessory to and used by the principal use of land.

Outdoor Storage Yard. The storage of material outdoors as a principal use of land for more than 24 hours. An outdoor storage yard often functions as a secondary principal use to businesses with outdoor storage of materials, such as storage of materials used in a contracting business where the contractor's office is also on-site.

Park. A facility that serves the recreational needs of residents and visitors. Park includes, but is not limited to, playgrounds, ballfields, athletic fields, basketball courts, tennis courts, dog parks, skateboard parks, passive recreation areas, and gymnasiums. Park may also include non-commercial indoor recreation facilities, and amphitheaters, as well as ancillary uses such as, but not limited to, eating and drinking establishments and retail establishments, and temporary outdoor uses such as festivals and performances.

Parking Lot (Principal Use). An open, hard-surfaced area, excluding a street or public way, used for the storage of operable vehicles, whether for compensation or at no charge.

Parking Structure (Principal Use). A structure used for the parking or storage of operable vehicles, whether for compensation or at no charge.

Passenger Terminal. A facility for the assembly and dispersal of travelling passengers.

Personal Service Establishment. An establishment that provides frequent or recurrent needed services of a personal nature. Typical uses include, but are not limited to, beauty shops, barbershops, tanning salons, electronics repair shops, nail salons, spas, massage parlors, laundromats, health clubs, dry cleaners, tailors and the like.

Place of Worship. A facility where persons regularly assemble for religious purposes and related social events and may include group housing for persons under religious vows or religious orders. Places of worship may also include ancillary uses such as day care and pre-school facilities, meeting rooms, emergency shelters, auditoriums, and/or classrooms for weekly religious instruction.

Private Recreation Club. An establishment owned or operated by a corporation, association, or group of private individuals, open to members, their families, and invited guests organized and operated for social and recreation purposes, and which may include recreation facilities, both indoor and outdoor, restaurants and bars, meeting rooms, and/or similar uses.

Public Safety Facility. A facility operated by and for the use of public safety agencies, such as the fire department, emergency medical services, and the police department, including the dispatch, storage, and maintenance of police and fire vehicles. Public safety facilities include shelter and training facilities for canine and equine units of public safety agencies.

Public Works Facility. A facility operated by the municipal public works departments to provide municipal services, including dispatch, storage, and maintenance of municipal vehicles.

Quarry/Mining and Extraction. An open excavation for obtaining building stone, slate, limestone or other mineral substances. The process of removal can include blasting, crushing, screening, sizing and conveying of the material. The material derived is usually sold on a commercial basis.

Reception Facility. A facility that provides hosting and rental services of a banquet hall or similar facilities for private events including, but not limited to, wedding receptions, holiday parties, and fundraisers, with food and beverages that are prepared and served on-site or by a caterer to invited guests during intermittent dates and hours of operation. Live entertainment may be provided as an ancillary use as part of an event. A reception facility is not operated as an eating and drinking establishment with regular hours of operation.

Reception Facility, Estate. A single-unit dwelling that hosts private events both within the dwelling and on the property including, but not limited to, wedding receptions, holiday parties, and fundraisers, with food and beverages that are prepared and served on-site or by a caterer to invited guests during intermittent dates and hours of operation. Live entertainment may be provided as an ancillary use as part of an event. Private events may also be hosted within accessory structures located on the site.

Reception Facility (Indoor Only). An indoor facility that provides hosting and rental services of a banquet hall or similar facilities for private events including, but not limited to, wedding receptions, holiday parties, and fundraisers, with food and beverages that are prepared and served on-site or by a caterer to invited guests during intermittent dates and hours of operation. Live entertainment may be provided as an ancillary use as part of an event. A reception facility is not operated as an eating and drinking establishment with regular hours of operation. Reception Facility (Indoor) shall have no outdoor gathering places such as decks, balconies, covered areas, and patios. Parking lots shall not be used for outdoor gathering places related to the indoor Reception Facility. There shall be no outdoor use of an amplified sound system.

Recycling Processing Facility. An establishment for construction, demolition, or other materials to be recycled and used in new products.

Research and Development. A facility where research and development is conducted in industries that include, but are not limited to, biotechnology, pharmaceuticals, medical instrumentation or supplies, communication, and information technology, electronics and instrumentation, and computer hardware and software. A research and development establishment may create prototypes of products but may not manufacture products for direct sale and distribution from the premises.

Residential Care Facility. A licensed care facility that provides 24-hour medical and/or non-medical care of persons in need of personal services, supervision, or assistance essential for sustaining the activities of daily living, or for the protection of the individual. A residential care facility includes nursing care, nursing homes, residential home for aged persons, assisted living facilities, adult care home, hospice care, and continuum of care facilities. Continuum of care facilities may also include independent living facilities as part of the continuum. Residential Care Facilities do not include Group Homes as defined Tenn. Code Ann. § 13-24-101.

Residential Addiction Treatment Facility. A licensed care facility that provides 24-hour medical, non-medical, and/or therapeutic care of persons seeking rehabilitation from a drug and/or alcohol addiction. Such facilities include medical detoxification.

Resource Extraction. A facility that extracts minerals and other solids and liquids from land. Resource extraction includes the following:

Borrow pit.

Extraction of phosphate or minerals.

Extraction of sand or gravel, borrow pit.

Metal, sand stone, gravel clay, mining and other related processing.

Stockpiling of sand, gravel.

Retail Goods Establishment. An establishment that provides physical goods, products, or merchandise directly to the consumer, where such goods are typically available for immediate purchase and removal from the premises by the purchaser. Retail goods establishments do not include heavy retail, rental, and service establishments, including whole goods establishments.

Self-Storage Facility. Enclosed. A facility for the storage of personal property where individual renters control and access individual storage spaces located within a fully enclosed building that is climate controlled. Ancillary retail sales of related items, such as moving supplies, and facility offices may also be included.

Self-Storage Facility. Outdoor. A facility for the storage of personal property where individual renters control and access individual storage spaces and where each storage unit has individual access from the outdoors. Ancillary retail sales of related items, such as moving supplies, and facility offices may also be included. Any self-storage facility constructed with multiple buildings for storage are considered outdoor self-storage. Outdoor self-storage also includes structures that are double loaded "strip" buildings where access is from an interior hallway.

Shelter, Domestic Violence. A licensed facility that provides temporary shelter, protection, and support for those escaping domestic violence and intimate partner violence, including victims of human trafficking. A domestic violence shelter also accommodates the minor children of such individuals. The facility may also offer a variety services to help individuals and their children including counseling and legal guidance.

Shelter. Shelter means a facility which provides temporary shelter with overnight sleeping accommodations for persons experiencing homelessness and which does not require occupants to sign leases or occupancy agreements.

Social Service Center. A service establishment that provides assistance for those recovering from chemical or alcohol dependency; survivors of abuse seeking support; those transitioning from homelessness or prior incarceration; and those with health and disability concerns. It does not include in-patient, overnight, or living quarters for recipients of the service or for the staff. Such service does not include medical examinations or procedures, or medical detoxification, dispensing of drugs or medications, or other treatments normally conducted in a medical office.

Solar Energy System. A ground-mounted solar array operated by a public, private, or cooperative company for the generation, transmission, distribution, storage, or processing of solar energy for the purposes of heating and cooling, electricity generation, and/or water heating.

Specialty Food Service. Specialty food service is an establishment where food products are prepared, processed, canned, and/or packaged and all processing is completely enclosed on-site and there are no outside impacts. Such business specializes in the sale of specific food products made on-site, such as a coffee roaster, nut roaster, and cheesemaker, and may offer areas for retail sales and/or eating and drinking areas that serve the products processed on-site. Catering businesses are considered a specialty food service. Specialty food service does not include bakeries, even if products are prepared on-site.

Temporary Entertainment and/or Sales Event. One or a combination of the following events:

(a) Temporary Entertainment Event. A temporary entertainment event, such as the performance of live music, revue, or play within an outdoor space. Temporary entertainment event includes festivals, carnivals/circuses, temporary worship services, and others.

(b) Temporary Sales Event. A temporary sales event where goods are sold, such as consignment auctions, arts and crafts fairs, flea markets, temporary vehicle sales, and holiday sales, such as firework stands, Christmas tree lots, and pumpkin sales lots. This temporary use category does not include garage sales, which are regulated by Section 62-13 of the City Code.

Urban Agriculture: Land or structures used for the cultivation of fruits, vegetables, plants, flowers, or herbs, with the primary purpose of growing food for sale. No farm animals. Use for any fertilizer or pesticides should not present public health hazards or nuisances to adjacent properties.

Utility. Any facility, infrastructure, and/or equipment used for the generation, transmission, storage, or distribution of electric energy, natural or manufactured gas, water, stormwater, cable television, internet, telephone services, or wastewater, between the point of generation and the end user. A utility does not include wireless telecommunications towers, antennas and/or facilities, satellite dish antennas, waste management facilities, recycling collection facilities, or radio, television, or microwave transmission or relay towers. Utility also includes utility operation facilities where all activity occurs indoors. Utility does not include electric vehicle charging stations, solar energy systems or panels, or wind energy systems or private turbines.

Vehicle Dealership. An establishment that sells or leases new or used automobiles, vans, motorcycles, and/or all-terrain vehicles (ATV) vehicles, or other similar motorized transportation vehicles. A motor vehicle dealership may maintain an inventory of the vehicles for sale or lease either on-site or at a nearby location and may provide on-site facilities for the repair and service of the vehicles sold or leased by the dealership. Vehicle dealerships do not include truck, trailer, boat, or heavy equipment sales, which are considered heavy retail, rental, and service.

Vehicle Operation Facility. A facility for the dispatch, storage, and maintenance of emergency medical care vehicles, taxicabs and similar vehicles for hire, school buses, utility vehicles, towing dispatch, and similar vehicles. Vehicle operation facility does not include a public works or public safety facility.

Vehicle Rental. An establishment that rents automobiles and vans, including incidental parking and servicing of rental vehicles. A motor vehicle rental establishment may maintain an inventory of the vehicles for sale or lease either on-site or at a nearby location and may provide on-site facilities for the repair and service of the vehicles sold or leased by the dealership. Vehicle rental does not include truck rental establishments or rental of heavy equipment, which is considered part of heavy retail, rental, and service.

Vehicle Repair Facility: Major. A business that provides services in major reconditioning of worn or damaged motor vehicles, motorcycles, all-terrain vehicles (ATV), recreational vehicles and trailers, towing and collision service, including body, frame, or fender straightening or repair, painting of motor vehicles, interior (e.g., upholstery, dashboard, etc.) reconstruction and/or repairs, and restoration services. A major vehicle repair business may also include services considered minor vehicle repair.

Vehicle Repair Facility: Minor. A business that provides services in minor repairs to motor vehicles and motorcycles, including repair or replacement of cooling, electrical, fuel and exhaust systems, brake adjustments, tire replacement, wheel servicing, alignment, and balancing, realignment, repair and replacement of shock absorbers, and replacement or adjustment of mufflers and tail pipes, hoses, belts, light bulbs, fuses, windshield wipers/wiper blades, grease retainers, and wheel bearings, and similar minor repairs.

Warehouse. An enclosed facility for the storage and distribution of manufactured products or raw materials, supplies, and/or equipment.

Waste-Related Service. A facility that processes and stores waste material. Waste-related service includes the following:

Automobile dismantlers/recyclers, junk yard, wrecking yard, salvage yard.

Hazardous household materials collection center.

Hazardous waste facility.

Landfill.

Recycling processing center.

Scrap metal processor.

Wholesale. A business where goods are sold to either retailers, or to industrial, commercial, institutional, or other professional business users, or to other wholesalers and related subordinated services.

Wind Energy System. An energy system operated by a public, private, or cooperative company for the generation, transmission, distribution, or processing of wind energy.

Wireless Telecommunications. Towers, antennas, and facilities used to transmit and receive signals that facilitate wireless telecommunications. The following definitions describe the wireless telecommunications infrastructure described within the general definition for wireless telecommunications:

(a) Antenna

A specific device, the surface of which is used to transmit and/or receive signals transmitted to or from other antennas. This does not include satellite dish antennae.

(b) Facility

A structure used to house and protect the equipment necessary for processing telecommunications signals, which may include air conditioning equipment and emergency generators. Facility also includes any necessary equipment that facilitates wireless transmission.

(c) Tower

A structure designed and constructed to support one or more wireless telecommunications antennae and including all appurtenant devices attached to it.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14202, § 1, 2-18-25; Ord. No. 14208, § 2, 3-18-25; Ord. No. 14238, § 1, 5-20-25; Ord. No. 14278, § 1, 9-16-25; Ord. No. 14308, § 1, 12-16-25)

ARTICLE X. GENERAL DEVELOPMENT STANDARDS

Sec. 38-46. General Development Standards Applicable to Zones

(a) Applicability of Dimensional Requirements

(1) All structures must meet the dimensional requirements of the zone in which the structure is located. No existing structure may be enlarged, altered, reconstructed, or relocated in a manner that conflicts with the requirements of the zone in which the structure it is located unless a variance is approved.

(2) The location of required setbacks on irregularly shaped lots will be determined by the Director of the Land Development Office. The determination will be based on the spirit and intent of this Code to achieve an appropriate spacing and location of buildings on individual lots.

(b) Development on Individual Well and Septic Tanks

The minimum lot area requirement for development of lots on individual wells and septic tanks is 25,000 square feet. Only single-unit detached dwellings are permitted on lots served by individual wells and septic tanks.

(c) Number of Structures on a Lot

(1) Lots used for single-unit (detached or attached), two-unit, three-unit, or four-unit dwellings are limited to one principal building per lot. An accessory dwelling unit is not considered a principal building.

(2) For all other uses, there may be more than one principal building on a lot, but all buildings must comply with all standards of the zone.

(d) Structures Prohibited in Utility Easements

Permanent structures, including buildings, retaining walls, and decks, and accessory structures, are prohibited within utility easements unless otherwise approved by the authorizing agency.

If any structures are located within a utility easement and repair or replacement of the utility is needed, neither the City nor the utility is responsible for the replacement of any structures that may be damaged.

(e) Sight Visibility

All hedges, fences, shrubs, or other obstructions located at street intersections must comply with the sight visibility requirements of Section 32-34 of the City Code.

(f) Lots to Front on a Street

(1) Residential

(i) Every residential building hereafter erected, reconstructed or structurally altered must be located on a lot fronting a public street, except for any recorded lot that is currently five acres or larger in size and was five acres or larger in size at the time it was annexed into the City and has a recorded access easement that is at least 15 feet wide for each lot it serves but not required to exceed 50 feet. This does not apply to cottage court developments.

(ii) The Board of Appeals may grant a variance to this requirement if the following two conditions are met:

a. The recorded lot was smaller than five acres at the time it was annexed into the City.

b. The recorded lot has a recorded access easement that is at least 15 feet wide for each lot it serves but not required to exceed 50 feet.

(iii) Residential structure or structures meet the definition of a Horizontal Property Regime (HPR) as defined in T.C.A. § 66-27-103. However, the residential structures must comply with the allowed uses within the individual zones.

(2) Nonresidential

Every nonresidential structure erected, reconstructed, or structurally altered must be located on a lot fronting a public or private street or a permanent recorded easement.

(g) Special Exception for Movement of Single-Unit Dwellings

(1) Intent

In order to ensure that the movement of single-unit dwellings is compatible to the area where the residence is to be moved, the following guidelines and criteria listed (pursuant to T.C.A. §§ 13-3-501 through 504) must be followed by the specified body as referred to below.

(i) This applies to single-unit dwellings only and does not apply to manufactured homes.

(ii) "Developed area of single unit residences" (as used in this part) means an area generally referred to as a subdivision as indicated on a plat filed in the Register of Deeds Office.

(2) Requirements

Requirements for moving single-unit dwelling from one foundation to another are as set forth below.

(i) No single-unit dwelling may be moved from an existing foundation to another foundation located within a developed area of single unit residences unless:

a. The dwelling to be moved is consistent with the age, value, size, and appearance of existing dwellings within the developed area of single-unit dwellings to which the single-unit dwelling is to be moved and provided that the value of the dwelling may be greater than that of the existing residences and the size of the house may be larger than that of the existing residences; and

b. Approval for the movement of the single-unit dwelling to a foundation within a developed areas of single-unit dwellings has been given by the following specified body:

1. The homeowners' association of the development where the dwelling is to be moved, if a homeowner's association is in existence.

2. A neighborhood association where the dwelling is to be moved that has been in existence for more than one year prior to the date the dwelling is to be moved, if a neighborhood association is in existence in the area.

3. The Planning Commission by issuance of a special exceptions permit, if (1) or (2) above does not apply.

(3) Age, Value, Size, and Appearance Criteria

The residence to be moved must be consistent with:

(i) The age of existing dwellings within the developed area of single-unit dwellings if the dwelling to be moved is within ten years of the average age of the existing structures within the developed area.

(ii) The value of existing dwellings within the developed area of single-unit dwellings, if the valuation of the dwelling being moved appraised, prior to being moved, at a value that is at least equal to the average appraisal of the existing structures within the developed area; provided that nothing in this subdivision must be construed to prevent such dwelling from exceeding the value of such existing dwellings. In establishing the value of existing dwellings, the value of modular homes located in such developed area cannot be used in arriving at the average appraisal of the existing structures.

If the value of the dwelling, prior to being moved, appraised at a value that is at least equal to the average appraisal of the existing structures within the developed area, then it is presumed that such dwelling will appraise at least at the same or greater value once it is moved.

In obtaining approval from the specified body as proof that the value of the dwelling or appearance of the dwelling is consistent with the value or appearance of such existing dwellings, evidence may be presented that includes photographs of the inside and outside of the residence to be moved as well as the appraised value of such dwelling as determined by

the assessor of property, or the fair market value of such dwelling as determined by an independent appraiser. Such proof must be a rebuttable presumption that the value and appearance of the dwelling is at least equal to the value and appearance of the existing structures within the developed area. Additional documents showing intended improvements may also be presented.

(iii) The size of existing dwellings within the developed area of single-unit dwellings, if the size of the dwelling being moved is at least within 100 square feet of the average size of the existing dwellings within the developed area, provided that nothing in this subdivision must be construed to prevent such dwelling from exceeding such average square footage. In establishing the average size of existing structures, the square footage of a modular home cannot be used in making such calculations.

(iv) The appearance of existing dwellings within the developed area of single-unit dwellings as determined by the specified body giving its approval for the single-unit dwelling to be moved to the developed area.

(4) Enforcement

(i) An approval letter from the specified body, along with documentation of the required criteria, must be submitted to the Land Development Office before the issuance of a building permit for the movement of a single-unit dwelling.

(ii) All structural improvements which will affect the value and appearance of the dwelling moved to the developed area of single-unit dwellings must be made to such dwelling in accordance to applicable codes and ordinances in effect. If improvements have not been completed on the dwelling at least equal to the average standards in the developed area, such dwelling is deemed to be in violation of the local government building codes, and penalties associated with such violations may begin to accrue in accordance with all relevant local building codes and ordinances adopted and in effect in the local jurisdiction where the residence is located.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14222, § 1, 4-15-25)

Sec. 38-47. Exterior Lighting Controls

(a) A. Lighting Plan Required

(1) A lighting plan is required for all nonresidential uses, mixed-use, and multi-unit developments. Other developments are exempt from a required lighting plan but are subject to applicable lighting standards of Item B below.

(2) A lighting plan must include the following:

(i) A plan showing all light pole locations, building-mounted lights, bollard lights, and all other lighting.

(ii) Specifications for luminaires, including certifications of energy efficient lighting, and lamp types, and poles, including photographs or drawings of proposed light fixtures.

(iii) Pole and luminaire details including pole height, height of building-mounted lights, mounting height, and height of the luminaire.

(iv) Elevations of the site including all structures and luminaires sufficient to determine the total cutoff angle of all luminaires and their relationship to abutting parcels.

(v) For developments subject to site plan review, photometric plans that show the footcandle measurement at all lot lines may be required if the lot is adjacent to a residential zone.

(vi) Other information and data reasonably necessary to evaluate the required lighting plan.

(b) Lighting Standards

(1) The maximum allowable footcandle at any lot line is one footcandle.

(2) All luminaires must be full cutoff luminaire design.

(3) The maximum total height of a freestanding luminaire is 20 feet in a nonresidential zone, and 15 feet in a residential zone.

(4) All outdoor luminaires must be located and adequately shielded so that there is no glare onto adjacent lots or onto the public right-of-way. Exterior spot lighting or other illumination of non-residential uses or structures shall be directed away from any residential zones or uses.

(5) Those uses required to submit a lighting plan, per item A above, are also subject to the following:

(i) All public lighting sources must have a correlated color temperature (CCT) at or below 3200ºK. This does not apply to outdoor recreation fields.

(c) Exceptions to Lighting Standards

(1) Luminaires used for public roadway illumination or installed by a utility to light public rights-of-way are exempt from the requirements of this Code.

(2) All temporary emergency lighting required by public safety agencies, other emergency services, or construction are exempt from the requirements of this Code.

(3) Shielded, directional accent lighting, or uplighting is permitted but must be aimed at a building facade, sign, or accent feature, such as landscape, and directed so that glare is not visible from adjacent properties. However, such lighting must not exceed one footcandle at any lot line.

(4) Security lighting installed with a motion vacancy sensor, which extinguishes the lights within 15 minutes after the area is vacated.

(5) Because of their unique requirements for nighttime visibility and limited hours of operation, outdoor recreational fields (public or private) such as, but not limited to, football fields, soccer fields, baseball fields, softball fields, tennis courts, driving ranges, and other similar uses are exempt from the lighting standards of Item B above and subject to the following:

(i) Recreational fields are permitted a total luminaire height of 65 feet in any zone. Luminaires greater than 65 feet in total height may only be approved by conditional use.

(ii) All lighting must be directed onto the field.

(iii) Lighting outside the recreational field, such as for parking areas, must comply with the lighting standards of Item B above

(iv) The recreational field lighting must be extinguished one hour following the end of the event. Lighting outside the recreational field, such as for parking areas, is not subject to this timeframe in order to facilitate patrons leaving the facility, cleanup, nighttime maintenance, and other closing activities.

(6) Temporary holiday and seasonal lighting designs are exempt from the requirements of this Code.

(7) Certain temporary uses may use lighting that does not meet the requirements of this section. When such temporary uses are allowed, approval of the lighting plan is required as part of the temporary use permit.

(d) Prohibited Lighting

(1) Flickering or flashing lights, except that this does not include decorative gas lamps.

(2) Searchlights, laser source lights, or any similar high intensity.

(3) The use of neon or LED lighting to outline doors, windows, architectural features, and building facades. This does not apply to uplighting of architectural features and building facades as permitted above.

(4) Any light fixture that can be confused with or construed as a traffic control device.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-48. Permitted Encroachments

An encroachment is the extension or placement of an architectural feature into a required setback. Permitted encroachments are indicated in Table 38-48.1: Permitted Encroachments into Required Setbacks.

(a) Article XI contains regulations for accessory structures, which may include additional permissions or restrictions on their permitted encroachment into required setbacks. Additional regulations from uses within Article IX may also include additional permissions or restrictions on their permitted encroachment into required setbacks.

(b) When an architectural feature regulated by Table 38-48.1 is allowed within a yard, it is also allowed within the required setback, subject to any additional standards.

(c) When an architectural feature regulated by Table 38-48.1 is prohibited from encroachment into a required setback, it may be allowed within the corresponding yard unless specifically prohibited by the Table.

(d) Unless specifically allowed by the Table, no architectural feature may project into a right-of-way or over a lot line.

(e) All permitted encroachment must comply with the Fire Code, which may further restrict encroachments.

Table 38-48.1: Permitted Encroachments Into Required Setbacks
Y= Permitted // N= Prohibited
Max. = Maximum // Min. = Minimum

	Front Setback	Corner Side Setback	Interior Side Setback	Rear Setback
Accessibility Ramp	Y	Y	Y	Y
Awning (Non-Sign) Max. of 3.5' into setback, except interior side is limited to a max. of 2' Min. vertical clearance of 8'	Y	Y	Y	Y
Balcony Max. of 3.5' into setback, except interior side is limited to a max. of 2' Min. vertical clearance of 8'	N	N	Y	Y

Table 38-48.1: Permitted Encroachments Into Required Setbacks *Y= Permitted // N= Prohibited* *Max. = Maximum // Min. = Minimum*				
Bay Window Max. of 3.5' into setback, except interior side is limited to a max. of 2' Min. vertical clearance of 24"	Y	Y	Y	Y
Canopy (Non-Sign) Max. of 3.5' into setback, except interior side is limited to a max. of 2' Min. vertical clearance of 8'	Y	Y	Y	Y
Chimney Max. of 2' into setback	Y	Y	Y	Y
Decks (Ground Floor) Max. height of first finished floor Min.5' from any lot line, except must be 10' from the rear lot line	N	Y	N	Y
Decks (Upper Floor) Max. of 10' into rear setback Prohibited in front yard	N	N	N	Y
Eaves and Cornices Max. of 3' into setback	Y	Y	Y	Y

Table 38-48.1: Permitted Encroachments Into Required Setbacks *Y= Permitted // N= Prohibited* *Max. = Maximum // Min. = Minimum*				
Exterior Stairwell Max. of 3.5' into setback Prohibited in front yard	N	N	N	Y
Fire Escape Max. of 3.5' into setback, except interior side is limited to a max. of 2'	N	N	Y	Y
Porch—Unenclosed Max. of 5' into front setback Min. 5' from any lot line, except must be 10' from the rear lot line Enclosed porches are considered part of the principal structure	Y	Y	N	Y
Sills and belt courses Max. of 2' into setback	Y	Y	Y	Y
Stoop and Steps Max. of 3.5' into setback, except interior side is limited to a max. of 2'	Y	Y	Y	Y

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-49. Performance Standards

All uses must comply with the performance standards established in this section unless any federal, state, or local law, code, ordinance, or regulation establishes a more restrictive standard, in which case, the more restrictive standard applies.

(a) Noise

All activity must comply with the City's noise ordinance in Chapter 25, Article 3 of the City Code.

(b) Glare and Heat

Any activity or the operation of any use that produces glare or heat must be conducted so that no glare or heat from the activity or operation is detectable at any point off the lot on which the use is located. Flickering or intense sources of light must be controlled or shielded so as not to cause a nuisance across lot lines.

(c) Vibration

No earthborne vibration from the operation of any use may be detectable at any point off the lot on which the use is located.

(d) Dust, Air, and Water Pollution

(1) Dust and other types of air pollution, borne by the wind from sources, such as storage areas, yards, roads, conveying equipment and the like, within lot boundaries, must be kept to a minimum by appropriate landscape, screening, sheltering, paving, fencing, wetting, collecting, or other acceptable means.

(2) Storage of materials must include all proper precautions to protect any surface water or groundwater sources, whether natural or manmade, from contamination.

(e) Discharge and Disposal of Hazardous Waste

The discharge of fluid and the disposal of hazardous waste materials must comply with applicable federal, state, and local laws, and regulations governing such materials or waste. Hazardous material waste must be transported, stored, and used in conformance with all applicable federal, state, and local laws.

(f) Electromagnetic Interference

Electromagnetic interference from any operation of any use must not adversely affect the operation of any equipment located off the lot on which such interference originates.

(g) Odors

Any condition or operation which results in the creation of odors of such intensity and character as to be detrimental to the public health and welfare, or which interferes unreasonably with the comfort of the public, must be removed, stopped, or modified to remove the odor.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24

ARTICLE XI. ACCESSORY STRUCTURES

Sec. 38-50. General Accessory Structure Regulations

Accessory structures are subject to the requirements of this Article and this section. Certain specific accessory structures are regulated in Section 38-51. All accessory structures are subject to the following regulations, unless otherwise permitted or restricted by specific regulations of this section or Code.

(a) No accessory structure may be constructed prior to construction of the principal building to which it is accessory. Where there is no principal structure as part of the use, such as a community garden, no accessory structure may be constructed until the use is approved. The following exception applies:

(1) A detached accessory building for purposes of storage only may be located on a separate, vacant lot abutting a lot on which the main building is located provided that the storage building has no standalone electric service, is not larger than 12 feet by 12 feet, and has a maximum height to the low point of the eaves of six feet.

(b) Detached accessory structures must be setback as follows, unless otherwise permitted or restricted by this Code:

(1) A minimum of five feet from any interior side or rear lot line.

(2) No detached accessory structure may be located in a front or corner side yard unless specifically allowed by this Code.

(3) A minimum of three feet from any principal building unless specifically allowed by this Code.

(c) Certain accessory structures may be prohibited in specific yards. The use of the term "yard" refers to the area between the principal building line and applicable lot line (see definitions in Article II). The distinction is made because certain principal buildings may be built further back than the required zone setback lines, thereby creating a yard larger than the minimum setback dimension of the zone.

(d) The maximum height of any detached accessory structure is 24 feet, unless otherwise permitted or restricted by this Code; however, no accessory structure may exceed the height of the principal building.

(e) The footprint of any single detached accessory structure cannot exceed the footprint of the principal building.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24

Sec. 38-51. Specific Accessory Structure Standards

(a) Amateur (ham) Radio Equipment

(1) Towers that solely support amateur (ham) radio equipment are permitted in the rear yard only, and must be located ten feet from any lot line. Towers are limited to the maximum building height of the applicable zone plus an additional five feet.

(2) If a taller tower is technically necessary to engage successfully in amateur radio communications, the operator must provide evidence that a taller tower and/or antenna is technically necessary to engage successfully in amateur radio communications. In addition, the applicant must provide evidence that the tower and/or antenna will not prove a hazard. Site plan review is required.

(3) Antennas may also be building-mounted and are limited to a maximum height of five feet above the structure, unless a taller antenna is technically necessary to engage successfully in amateur radio communications and conditional use approval is obtained.

(4) Amateur (ham) radio equipment must conform to all applicable performance criteria set forth in Section 10.4.

(b) Apiary

(1) All apiaries must comply with and register as required with the Tennessee Apiary Act of 1995.

(2) Hives are allowed only in rear yards.

(3) Hives must be set back 25 feet from all lot lines.

(4) When the apiary is located within a yard not bounded by a solid wall or solid fence, a flyway of at least six feet in height comprising of a lattice fence, dense hedge, or similar barrier must be established in front of the opening of the hive such that the bees fly upward and away from neighboring properties. The flyway must be located within three feet of the hive opening and extend at least two feet in width on either side of the hive opening.

(5) For any rooftop apiary within 20 feet of doors and/or windows of a principal building on an abutting lot, one of the following conditions must exist:

(i) The hive opening must face away from doors and/or windows of the principal building on the abutting lot.

(ii) A flyway of at least six feet in height comprising of a lattice fence, dense hedge, or similar barrier must be established in front of the opening of the hive such that the bees fly upward and away from neighboring properties. The flyway must be located within three feet of the hive opening and extend at least two feet in width on either side of the hive opening.

(c) Carport (Detached)

(1) A carport may not be erected closer than five feet from any lot line

(2) No carport is permitted in a required front setback or corner side setback.

(3) A carport cannot exceed 24 feet in width, 22 feet in length, and 15 feet in height. If located within the rear yard it may be 24 feet in width.

(4) A carport must be located a minimum of 20 feet from the lot line that provides access to the street.

(d) Fences, Walls, and Retaining Walls

(1) Fences and walls are permitted to be constructed on a lot line.

(2) Fence and wall height are regulated by the Building Code.

(3) Retaining walls are regulated by the Building Code

(e) Garage, Detached

(1) Detached garages are permitted in the rear, corner side, and interior side yards, and must be five feet from any lot line.

(2) Detached garages are not permitted in the front yard and must be located a minimum of five feet behind the front building line.

(i) Existing garages, as of the effective date of this Code (insert date), that are located within the front yard are deemed conforming and may be repaired and rebuilt to the existing footprint. However, once the principal structure is demolished, this deemed conforming provision is null and void and new garages must be constructed per the regulations of this section and Code.

(3) Detached garages in the rear and interior side yards must be set back a minimum of 20 feet from the lot line where access to the garage is taken. This does not apply where garages take access from an alley access. Where detached garages are accessed by the alley, they may be located a minimum of one foot from the rear lot line.

(4) Detached garages in the corner side yard are subject to the following:

(i) Where the garage is located in the corner side yard and takes access from the abutting street, the garage must be set back 20 feet from the corner side lot line.

(ii) Where the garage is located in the corner side yard but does not take access from the abutting street, the garage must be set back five feet from the corner side lot line and must

be set back a minimum of 20 feet from the lot line where access to the garage is taken. This does not apply where garages take access from an alley. Where detached garages are accessed by the alley, they may be located a minimum of one foot from the rear lot line.

(5) The area above vehicle parking spaces in a detached garage may not contain cooking facilities. This does not apply if an accessory dwelling unit use has been approved, in which case those standards control.

(f) Mechanical Equipment

Mechanical equipment includes heating, ventilation, and air conditioning (HVAC) equipment, electrical generators, power storage, pool pumps, and similar equipment.

(1) Ground-Mounted Equipment

(i) Ground-mounted mechanical equipment is permitted in the interior side or rear yard only.

(ii) Ground-mounted mechanical equipment may encroach up to five feet into a required interior side setback.

(iii) Ground-mounted mechanical equipment that is visible from a public street, not including an alley, must be fully screened by landscape or an opaque wall or fence that is compatible with the principal building in terms of texture, quality, material, and color. Screening must be of a height equal to or greater than the height of the mechanical equipment being screened.

(2) Roof-Mounted Equipment

(i) Roof-mounted equipment must be set back at least ten feet from the edge of the roof.

(ii) New buildings must provide a parapet wall or other architectural element that matches the principal building in terms of texture, quality, material, and color that fully screens roof-mounted equipment from ground level view at the public street.

(iii) For buildings with no or low parapet walls, roof-mounted equipment must be screened on all sides by an opaque screen that matches the principal building in terms of texture, quality, material, and color.

(3) Wall-Mounted Equipment

(i) Wall-mounted mechanical equipment is not permitted along the front or corner side facade of the building.

(ii) For multi-unit and nonresidential developments, including mixed-use, wall-mounted mechanical equipment that protrudes more than 18 inches from the outer building wall must be screened from view by structural features that are compatible with the architecture of the subject building.

(iii) Wall-mounted mechanical equipment that protrudes less than 18 inches must be designed to blend with the primary color and architectural design of the subject building.

(iv) These requirements do not apply to:

a. Window air conditioning units

b. Satellite dishes

c. Required public utility meters

d. Any equipment related to public safety, such as fire

e. HVAC mini-split systems for single-unit, two-unit, three-unit, and four-unit dwellings.

(g) Recreational Equipment

Personal recreation game courts are permitted only in the rear yard. Courts must be located ten feet from any lot line.

(h) Refuse and Recycling Containers

These provisions do not apply to standard personal refuse and recycling bins, approximately 96 gallons or less in size.

(1) Refuse and recycling containers must be located to the side or rear of principal buildings.

(2) All refuse and recycling containers must be fully enclosed on three sides by a solid fence, wall, or wall extension of the principal building a minimum of six feet and a maximum of eight feet in height. A wall extension must be constructed as an integral part of the building's architectural design.

(3) The enclosure must be gated. The gate must be solid and a minimum of six feet and a maximum of eight feet in height. This requirement does not apply to refuse containers located adjacent to an alley.

(i) Solar Panels

(1) Solar panels may be building-mounted or freestanding, subject to the regulations of this section.

(2) Solar panels must be placed so that concentrated solar radiation or glare is not directed onto nearby properties or roadways.

(3) A building-mounted system may be mounted on the roof or wall of a principal building or accessory structure.

(i) On pitched roof buildings, the maximum height a roof-mounted solar panel may rise is 18 inches.

(ii) On flat roofed buildings up to 40 feet in height, the roof-mounted solar panel system is limited to a maximum height of six feet above the surface of the roof. On flat roofed buildings over 40 feet in height, the roof-mounted solar panel system is limited to 15 feet above the height of such structure. Roof-mounted solar energy systems are excluded from the calculation of building height.

(iii) Wall-mounted solar panels may project up to four feet from a building facade and must be integrated into the structure as an architectural feature. Wall-mounted panels cannot encroach more than three feet into a required setback.

(4) A freestanding solar energy system is permitted only in the rear yard and must meet the following standards. A freestanding solar energy system may not be the only use on a lot.

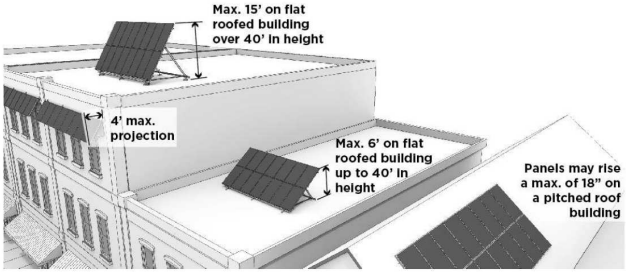
(i) A freestanding solar energy system must be located ten feet from any lot line.

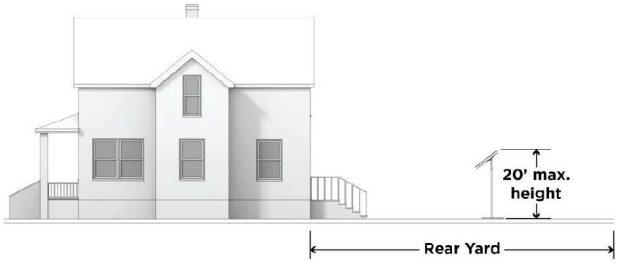
(ii) The system is limited to a maximum of 20 feet in height, measured to the highest point of the structure including the solar panel.

(iii) Freestanding solar panels are excluded from any building coverage and impervious surface coverage calculations.

(5) Solar panels within the historic districts may require a certificate of appropriateness.

SOLAR PANELS





(j) Swimming Pools, Private: Pools Associated with Single-Unit, Two-Unit, Three-Unit, and Four-Unit Dwellings

(1) Private swimming pools must meet the applicable standards of Chapter 33 of the City Code and any other applicable standards within the City Code.

(2) Private swimming pools for single-unit, two-unit, three-unit, and four-unit dwellings are allowed only in the rear or side yard.

(k) Wind Turbines

(1) Wind turbines may be designed as either vertical or horizontal axis turbines or as a design that combine elements of the different types of turbines.

(2) Wind turbines are subject to the following height restrictions:

(i) The maximum height of any ground-mounted wind turbine is the maximum height allowed in the zone or 35 feet, whichever is less.

(ii) The maximum height of any wind turbine mounted upon a structure is 15 feet above the height of such structure.

(iii) Maximum height is the total height of the turbine system as measured from the base of the tower to the top. For horizontal axis turbines, the maximum vertical height of the turbine blades is measured as the length of a prop at maximum vertical rotation.

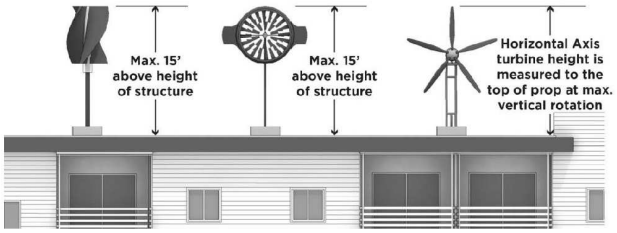
(iv) No portion of exposed turbine blades may be within 20 feet of the ground. Unexposed turbine blades may be within ten feet of the ground.

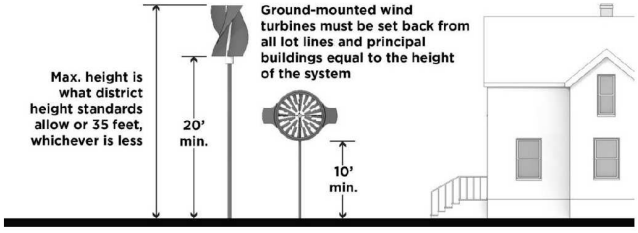
(3) Ground-mounted wind turbines are permitted only in the rear yard. The tower must be set back from all lot lines equal to the height of the system. No principal buildings may be located within this area.

(4) All wind turbines must be equipped with manual (electronic or mechanical) and automatic over speed controls to limit the blade rotation speed to within the design limits of the wind energy system.

(5) Wind turbines within the historic districts may require a certificate of appropriateness.

WIND TURBINES





(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24

ARTICLE XII. OFF-STREET PARKING & LOADING

Sec. 38-52. General Requirements

(a) Existing Parking Facilities

(1) The existing number of off-street parking and loading spaces may not be reduced below the requirements of this Code.

(2) Existing off-street parking and loading areas that do not conform to the requirements of this Code but were in conformance with the requirements of this Code at the time the parking or loading facilities were established, are permitted to continue.

(3) If a building permit for a structure was issued prior to the effective date of this Code, the number of off-street parking and loading spaces must be provided in the amount required at the issuance of the building permit unless the amount required by this Code is less. In such case, only the number required by this Code needs to be installed.

(4) Minimum parking requirements apply to expansions of an existing building, use, or site as follows:

(i) When an existing building, use, or site is increased in gross floor area or improved site area by up to 25% cumulatively, the parking requirements apply only to the additional floor or site area.

(ii) When an existing building, use, or site is increased in gross floor area or improved site area by more than 25% cumulatively, the existing building or site must conform to all parking requirements.

(b) Adaptive Reuse of Existing Structures

(1) As of the effective date of this Code, existing nonresidential and mixed-use structures in the commercial and mixed-use zones, and the I-MU Zone that currently do not provide the required amount of parking on the lot to accommodate parking are exempt from minimum parking requirements regardless of a change in use or intensity of use.

(2) Any existing parking located on the site must be retained or accounted for elsewhere.

(3) Once the principal building is demolished, this exemption is no longer valid. In addition, if the lot area is expanded (e.g., the adjoining lot is purchased or leased), this exemption is no longer valid.

(4) Any right-of-way improvements that may be triggered by a change in use may still apply.

(c) Completion of Off-Street Parking Facilities

All off-street vehicle and bicycle parking and loading facilities for the phase for which a certificate of occupancy is requested must be completed prior to the issuance of the certificate of occupancy.

(d) Use of Parking Facilities

(1) The sale, repair, or dismantling or servicing of any vehicles, equipment, materials, or supplies is prohibited.

(2) The property owner is responsible for ensuring that parking and loading facilities are only used by residents, tenants, employees, visitors, and/or other authorized persons.

(3) Space allocated to any off-street loading space may not be used to satisfy the requirement for any off-street parking space or access aisle or portion thereof. Conversely, the area allocated to any off-street parking space may not be used to satisfy the replacement for any off-street loading space or portion thereof.

(e) Form-Based Code Zones

Parking within the Form-Based Code Zones is addressed in the Downtown Form-based Code.

(f) Voluntary Incentives Program

Developments participating in the Voluntary Incentives Program are subject to the parking reductions as detailed in Article XIX. Voluntary Incentives Program, Sec. 38-107 Parking Minimum Standards.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14256, § 1, 7-22-25)

Sec. 38-53. Required Off-Street Vehicle and Bicycle Parking Spaces

(a) General Applicability

(1) Table 38-53.1: Off-Street Vehicle and Bicycle Parking Requirements states the minimum number of off-street vehicle and bicycle parking spaces to be provided for the designated uses for all zones

except the Form-Based Code Zones (the Form-Based Code Zones parking requirements are found in Article VI). Certain uses listed within the zones do not have parking requirements; these types of uses are not listed within Table 38-53.1.

(2) The total number of required parking spaces is calculated by the principal use of the lot. When more than one use occupies the same lot, the number of required spaces is the sum of the separate requirements for each use, unless such use is a multi-tenant retail center, which has a separate requirement per item B below. The following standards for computation apply:

(i) When calculating the number of required off-street spaces results in a fractional requirement of 0.5 spaces or more, said fraction is rounded up.

(ii) In places of assembly in which patrons or spectators occupy benches, pews, or similar seating facilities, each 24 inches of such seating facility is counted as one seat for the purpose of determining the requirement for off-street parking facilities. Floor area of a prayer hall is counted as one seat per marked prayer mat space or one seat for every six square feet in the prayer hall if prayer mat spaces are not marked.

(3) Section 38-54 includes exemptions and flexibilities for the off-street spaces required by this section.

(4) For new construction as of the effective date of this Code, when the parking requirement in Table 38-53.1 results in a requirement of three or fewer parking spaces for a nonresidential use, such parking spaces do not have to be provided if adequate on-street public parking is available within 300'.

(b) Multi-Tenant Retail Center Parking Standard

(1) Parking for multi-tenant retail centers is calculated as one space required per 300 square feet of gross floor area, rather than by the individual uses. A multi-tenant retail center is defined as a group of three or more commercial establishments that is planned, owned, and/or managed as a single property. The two main configurations of multi-tenant retail centers are large shopping centers and strip retail centers.

(2) Multi-tenant retail centers over 20,000 square feet in gross floor area require one bicycle space per 2,500 square feet of gross floor area.

(c) Vehicle Parking Space Maximums

(1) Required off-street vehicle parking for nonresidential uses is subject to a parking maximum of 200%.except that the required off-street parking maximum for Medical/Dental Office/Clinic uses shall be calculated at a minimum number of parking spaces of 1 per 200 sf GFA.

(2) ADA required spaces are not counted toward the parking maximum. Electric vehicle charging stations are also not counted toward the vehicle maximum.

(3) The following are exempt from the vehicle parking maximums:

(i) Residential dwellings in any zone, including that component of mixed-use development.

(ii) The industrial zones.

(iii) The R-MH, A-1, INST, and OS Zones.

(iv) Multi-story parking structures.

(v) Parking made available for public use, including private parking available for public use after business hours, is exempt from the parking maximum. For parking made available for public use, the property owner must submit a signed affidavit with their permit application certifying the parking to be made publicly available.

(4) Where the number of existing vehicle parking spaces exceeds the maximum number of allowed parking spaces for the proposed use, the additional parking spaces may remain in place, at the applicant's discretion.

(d) Accessible Spaces Required

All parking lots must comply with the "ADA Accessibility Guidelines for Buildings and Facilities" regulations issued by federal agencies under the latest edition of the Americans with Disabilities Act (ADA) and State of Tennessee and local requirements for the amount and design of accessible vehicle parking spaces required in parking lots and structures. The number of required ADA spaces is based upon the minimum parking required before any discounts are applied.

(e) Bicycle Parking Spaces

Certain uses listed within Table 38-53.1 are required to provide bicycle parking spaces. Bicycle parking spaces are required only for new construction as of the effective date of this Code.

(1) In all cases where bicycle parking is required, a minimum of two bicycle spaces is required.

(2) Where bicycle parking space requirements indicate "Over 10,000sf GFA" or other threshold, this means that bicycle spaces are required only for structures over a certain gross floor area. Bicycle parking space requirements are then calculated on the basis of the entire gross floor area.

(3) In no case are more than 25 bicycle parking spaces required to be provided. Additional spaces over 25 may be provided at the property owner's option.

(4) When a use is exempt from a minimum vehicle parking requirement, it is also exempt from the requirement to provide bicycle spaces.

Table 38-53.1: Off-Street Vehicle and Bicycle Parking Requirements—Excludes Form-Based Code Zones

Principal Uses	Minimum Vehicle Spaces Required	Minimum Bicycle Spaces Required
Adult Use	1 per 500sf GFA	
Agriculture		
Alternative Correctional Facility	1 per 500sf GFA of office area	
Amusement Facility—Indoor	1 per 500sf GFA	Over 10,000sf GFA: 1 per 2,500sf GFA
Indoor Stadium	1 per 20 seats	1 per 100 seats
Amusement Facility—Outdoor	1 per 1,000sf GFA	Over 10,000sf GFA: 1 per 2,500sf GFA
Outdoor Stadium	1 per 20 seats	1 per 100 seats
Animal Care Facility	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Animal Shelter	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Art Gallery	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Arts and Fitness Studio	1 per 300sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Bed and Breakfast—With Reception Facilities	2 spaces + 1 per guestroom + 1 per 200sf of indoor or enclosed reception facilities	

Table 38-53.1: Off-Street Vehicle and Bicycle Parking Requirements—Excludes Form-Based Code Zones		
Bed and Breakfast—No Reception Facilities	2 spaces + 1 per guestroom	
Body Modification Establishment	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Broadcasting Facility	1 per 500sf GFA of office + studio area	
Campground/RV Park	1 per site	1 per 5 sites
Campground, Resort	1 per site	1 per 5 sites
Car Wash	1 per car wash bay + 3 stacking spaces per bay	
Cemetery	1 per 300sf of GFA of office and/or chapel/parlor	
Children's Home	1 per 500sf GFA of office area	
Commercial Kitchen	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Community Center	1 per 500sf GFA	1 per 2,500sf GFA
Cottage Court Development	Based on dwelling types included in development	
Crematorium	1 per 500sf GFA	
Cultural Facility	1 per 500sf GFA	1 per 2,500sf GFA
Day Care Center	1 per 750sf GFA	
Drug Treatment Clinic	1 per 300sf GFA	
Dwellings		
Dwelling—Single-Unit Detached	2 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	
Dwelling—Single-Unit Attached	2 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	
Dwelling—Two-Unit	2 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	
Dwelling—Three-Unit	2 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	
Dwelling—Four-Unit	2 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	
Dwelling—Townhouse	2 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	

Table 38-53.1: Off-Street Vehicle and Bicycle Parking Requirements—Excludes Form-Based Code Zones		
Dwelling—Multi-Unit	1.5 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	1 per 4 dwelling units
Dwelling—Above the Ground Floor	1.5 per dwelling unit When located in Urban Overlay Zone (Sec. 8.5): 1 per dwelling unit	1 per 4 dwelling units
Dwelling—Live/Work	1 per dwelling unit	
Dwelling—Manufactured Home	2 per dwelling unit	
Eating and Drinking Establishment	1 per 300sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Educational Facility—College/University	4 per classroom + 2 per office	1 per 5 classrooms
Educational Facility—Primary or Secondary		
Educational Facility—Primary (Elementary and/or Junior High)	3 per each classroom + 3 per office	1 per 10 classrooms
Educational Facility—High School	6 per classroom + 4 per office	1 per 10 classrooms
Educational Facility—Vocational	4 per classroom + 2 per office	1 per 5 classrooms
Financial Institution	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Financial Service, Alternative (AFS)	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Food Bank	1 per 500sf GFA of office area	Over 10,000sf GFA: 1 per 2,500sf GFA
Food Pantry	1 per 500sf GFA of office area	Over 10,000sf GFA: 1 per 2,500sf GFA
Food Truck Park	1 per 1,000sf of lot area	1 per 2,500sf of lot area
Fraternity/Sorority	1 per rooming unit	.25 per rooming unit
Freight Terminal	1 per 500sf GFA of office area	
Funeral Home	1 per 200sf GFA	
Gas Station	2 per pump island + 4 stacking spaces if car wash bay included	
Golf Course/Driving Range	3 per hole and tee + 1 per 500sf GFA of indoor public areas	
Government Office/Facility	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Group Home: Over 8 Residents	1 per 2 rooms	
Halfway House	1 per 500sf GFA of office area	
Heavy Retail, Rental, and Service	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Hospital	1 per 3 beds	1 per 100 beds

Table 38-53.1: Off-Street Vehicle and Bicycle Parking Requirements—Excludes Form-Based Code Zones		
Hotel	1.0 per room	
House Museum	2 spaces	
Industrial—Artisan/Craft	1 per 1,000sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Industrial—General	1 per 1,000sf GFA up to 40,000sf, then 1 per 2,500sf for additional GFA above 40,000sf (excludes outdoor area)	Over 10,000sf GFA: 1 per 2,500sf GFA
Industrial—Light	1 per 1,000sf GFA up to 40,000sf, then 1 per 2,500sf for additional GFA above 40,000sf (excludes outdoor area)	Over 10,000sf GFA: 1 per 2,500sf GFA
Industrial Design	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Junk Yard/Salvage Yard	1 per 300sf GFA of office area	
Live Performance Venue	1 per 1,000sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Lodge/Private Social Club	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Manufactured Home Park	2 per site	1 per 4 sites
Manufactured Home Subdivision	2 per site or dwelling unit	
Medical/Dental Office/Clinic	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Micro-Production of Alcohol	1 per 1,000sf GFA of production facility + 1 per 500sf GFA of public space	Over 5,000sf GFA: 1 per 2,500sf GFA
Movie Studio	1 per 1,000sf GFA up to 40,000sf, then 1 per 2,500sf for additional GFA above 40,000sf (excludes outdoor area)	Over 10,000sf GFA: 1 per 2,500sf GFA
Nightclub	1 per 200sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Office	1 per 300sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Outdoor Market	1 per 1,000sf of site area	1 per 2,500sf GFA
Outdoor Storage Yard	1 per 500sf GFA of office area	
Passenger Terminal	1 per 2,000sf GFA	
Personal Service Establishment	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Place of Worship	1 per 4 seats	1 per 25 seats

Table 38-53.1: Off-Street Vehicle and Bicycle Parking Requirements—Excludes Form-Based Code Zones		
Public Works Facility	1 per 1,000sf GFA up to 40,000sf, then 1 per 2,500sf for additional GFA above 40,000sf (excludes outdoor area)	Over 10,000sf GFA: 1 per 2,500sf GFA
Reception Facility	1 per 200sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Reception Facility, Estate	1 per 200sf GFA	
Research and Development	1 per 300sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Residential Care Facility	To be calculated on the type of facility or combination of facilities provided below:	Over 10,000sf GFA: 1 per 2,500sf GFA
Independent Living Facility	1 per dwelling unit	
Assisted Living Facility	0.75 per dwelling unit or room	
Nursing Home or Hospice	0.5 per patient room	
Residential Addiction Treatment Facility	1 per patient room	Over 10,000sf GFA: 1 per 2,500sf GFA
Retail Goods Establishment	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Self-Storage Facility: Enclosed	1 per 25 storage units	
Self-Storage Facility: Outdoor	1 per 25 storage units	
Social Service Center	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Specialty Food Service	1 per 500sf GFA	Over 5,000sf GFA: 1 per 2,500sf GFA
Vehicle Dealership	1 per 500sf of indoor sales and display area (excluding indoor storage) + 4 per service bay	
Vehicle Operation Facility	1 per 2,500sf of lot area	
Vehicle Rental	1 per 500sf GFA of indoor area (excluding indoor storage)	
Vehicle Repair/Service: Major	4 per service bay	
Vehicle Repair/Service: Minor	4 per service bay	
Warehouse	1 per 500sf of office area + 1 per 30,000sf GFA of warehouse	
Wholesale	1 per 500sf of office area + 1 per 30,000sf GFA of warehouse	

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14253, § 1, 7-15-25; Ord. No. 14278, § 1, 9-16-25)

Sec. 38-54. Required Parking Flexibilities, Exemptions, and Reductions

(a) Zones Exempt from Minimum Parking Requirements

The following zone is exempt from minimum parking requirements:

(1) C-N Neighborhood Commercial Zone

(2) Properties zoned C-3 Central Business Zone prior to the effective date of the Official Zoning Map of the Chattanooga Zoning Ordinance adopted July 23, 2024, unless zoning conditions were placed on the property at the time of rezoning.

(b) Permitted Reductions of Minimum Parking Requirements

(1) Zones

Required minimum parking spaces for nonresidential uses may be reduced by 20% within the following zones:

(i) C-NT Neighborhood Transition Commercial Zone

(ii) C-MU1 Commercial Mixed-Use 1 Zone

(iii) C-MU2 Commercial Mixed-Use 2 Zone

(iv) I-MU Industrial Mixed-Use Zone

(2) Permeable Pavement

Where 50% or more of the total parking area is constructed of engineered permeable pavement, required parking spaces may be reduced by 10%. Permeable pavement includes any materials installed, operated, and maintained to permit the passage of water through the pavement, including, but not limited to, porous concrete, porous asphalt, permeable interlocking concrete pavers, and concrete grid pavers. Such paving must be approved by the City Stormwater Division and Public Works-Transportation.

(3) Transit Corridor Reduction

Minimum parking requirements for nonresidential uses within 500 feet of a transit stop may be reduced by 5%. Proximity is measured from any point along the lot line to the area designated for such transit to pick-up/drop-off.

(4) Public Parking Facility Reduction

Minimum parking requirements for nonresidential uses within 500 feet of a public parking facility may be reduced by 5%. Proximity is measured from any point along the lot line to the closest lot line of the public parking facility.

(c) Use of On-Street Spaces

In the commercial and mixed-use zones, on-street parking spaces located along the front or side lot lines may be counted toward required off-street parking spaces for nonresidential uses. New on-street parking spaces may also be created to count toward required off-street parking but must be accessible 24 hours a day to all the public. On-street parking used for this purpose cannot be reserved for such uses.

(1) Where on-street parking spaces are unmarked, the number of parking spaces is calculated by dividing the length of the on-street parking area located parallel to the lot line of the property under consideration divided by 25, where a fraction of less than one-half is disregarded and a fraction of one-half or more is counted as one space.

(2) Where on-street parking spaces are marked, each marked space counts as one required parking space, including any space where at least 60% of the width is located along the lot line of the property under consideration.

(d) Cross-Access Reduction

(1) Adjacent nonresidential uses that possess dedicated parking areas are encouraged to provide a cross-access drive to allow circulation between sites. If cross-access is provided, a parking reduction of 20% is permitted for each use accessed by the cross-access driveway.

(2) The property owners must provide a copy of the recorded access easement between all users of the cross-access driveway to the Director of the Land Development Office. The agreement must be included in the property deeds and include a joint maintenance agreement defining the maintenance responsibilities of each property owner. The maintenance of any shared space must be described in the easement.

(3) Cross-access driveways must meet the following standards:

(i) A minimum width of 22 feet is required with no adjacent parking to ensure two-way travel aisles to accommodate automobiles, service vehicles, and loading vehicles.

(ii) Bump-outs or other design features may be required to make it visually obvious that the abutting properties are tied together.

(iii) A unified access and circulation plan is required for coordinated or shared parking areas.

(e) Off-Site Parking

(1) Permission

(i) Off-site parking is permitted for nonresidential uses only. Residential uses cannot locate required parking off-site, including residential dwellings within a mixed-use development.

(ii) Off-site spaces must be approved by the Director of the Land Development Office. In addition, shared parking is permitted where one of the uses is off-site per item F below.

(2) Location

(i) Off-site parking spaces must be located within 1,000 feet along an accessible pathway from the use served, measured from the primary entrance of the use served.

(ii) Off-site parking areas must be located in nonresidential zones.

(3) Agreement for Off-Site Parking

A copy of the recorded access easement between properties is required and must be submitted to the Land Development Office and any changes after shall be maintained on file with the Land Development Office.

(f) Collective and Shared Parking

Collective and shared parking arrangements are allowed as described in this section. In the event that a collective or shared parking agreement is terminated, alternative parking arrangements for each use must be provided. In the event that suitable parking cannot be acquired, the applicant of the shared parking agrees to waive any right to contest enforcement by the City of the required parking standards, although the applicant for the shared parking may have recourse against the property owner supplying the off-street shared parking for breach of the shared parking agreement.

(1) Collective Parking

Two or more uses may share a parking facility collectively if the total number of parking spaces in such facilities meets or exceeds the combined total number of minimum spaces required for each use.

(2) Shared Parking

(i) A parking facility may be shared between two uses, provided that use of the parking facility by each user does not occur at the same time. However, an overlap in hours of operation of up to two hours is permitted. Hours of operation are those when the use is open for business.

(ii) The number of parking spaces within the shared facility must meet the requirement for the use with the greater number of required spaces.

(iii) Approval is obtained from the Director of the Land Development Office that confirms that the use of such facility by each user does not take place at the same hours or during the same days of the week.

(iv) The users of the shared parking facility must provide a recorded easement to share parking facilities.

(v) When one of the uses is off-site, the off-site use must meet the following:

a. Off-site parking is permitted for nonresidential uses only. Residential uses cannot locate required parking off-site, including residential dwellings within a mixed-use development.

b. Off-site parking spaces must be located within 1,000 feet along an accessible path from the use served, measured from the primary entrance of the use served.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14222, § 1, 4-15-25; Ord. No. 14278, § 1, 9-16-25)

Sec. 38-55. Electric Vehicle Charging Stations

(a) There are three types of electric vehicle (EV) charging stations:

(1) EV-Capable: Reservation of space in the electrical room for a panel to serve the future EV chargers and continuous raceway from the reserved panel space to the future EV parking space.

(2) EV-Ready: Installation of electrical panel capacity and raceway with conduit to terminate in a junction box or 240-volt outlet accessible to parking space.

(3) EVSE-Installed: EV charging stations capable of providing a minimum of 32amp 7.2 kW.

(b) EV- charging stations are encouraged. As stated below, the minimum parking space reductions are voluntary and do not reduce the vehicle parking space maximums.

(1) Where an EV-Capable space is installed, it is counted as 1.25 required parking spaces.

(2) Where an EV-Ready space is built, it is counted as 1.5 required parking spaces..

(3) Where an EVSE-Installed space is built, it is counted as 2 required parking spaces..

(c) EV charging spaces are counted toward any parking minimums with the reductions shown. Any fractions must be rounded up.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-56. Off-Street Parking Facility Design

(a) *Dimensions.*

Minimum parking space dimensions must meet the current edition of City standard drawing, as amended from time to time.

(b) Access

(1) All required off-street parking facilities must have vehicular access from a street, driveway, alley, or cross-access connection.

(2) All development must provide safe, direct, and convenient pedestrian access connecting public streets and parking lots to primary building entrances, and to all other uses in the development that allow for public access.

(i) Pedestrian access must consist of an accessible, easily discernible, well-lit, and ADA compliant walkway.

(ii) The pedestrian access surface located on private property must be paved with fixed, nonslip semi- pervious or impervious materials.

(iii) Where a pedestrian walkway crosses a drive aisle, the walkway must have a continuous surface treatment (i.e. paint or contrasting materials) across the drive aisle.

(3) All parking facilities must be designed with vehicle egress and ingress points that least interfere with traffic movement. Parking facilities must be designed to allow the driver to proceed forward into traffic, rather than back out; this does not apply to single-unit (detached or attached) and two-unit dwellings.

(4) All curb cuts must comply with the regulations of the City Code.

(5) All driveways must conform to all applicable driveway specifications adopted by the City.

(c) Surfacing

(1) All parking lots must be paved with all-weather materials such as asphalt, concrete, or brick. However, a gravel parking lot is permitted if a paved apron that extends from the lot line into the parking area a minimum of 20 feet in length is provided and parking spaces and drive aisles are delineated in a permanent fashion, for example, wheel stops. In a gravel parking lot, any required ADA spaces and ADA accessible route must be paved.

(2) Permeable pavement is also permitted. Permeable paving includes any materials installed, operated, and maintained to permit the passage of water through the pavement, including, but not limited to, porous concrete, porous asphalt, permeable interlocking concrete pavers, and concrete grid pavers and must be approved by the City Stormwater Division. Signage and striping shall follow MUTCD guidelines as appropriate.

(d) Striping

Off-street parking facilities of five or more spaces must delineate parking spaces with paint or other permanent materials, which must be maintained in clearly visible condition. Gravel parking lots are not required to be striped with the exception of any ADA spaces.

(e) Curbing, Wheel Stops, and Raised Sidewalks

(1) Curbing, wheel stops, or raised sidewalks are required when a parking space abuts required landscape areas, pedestrian walkways, structures, fences, or the edge of the parking lot along a lot line.

Wheel stops must be constructed of permanent materials, a minimum height of four inches above ground level, and permanently affixed to the paved parking area.

(2) Wheel stops within the interior of the parking lot are prohibited.

(f) Lighting

Parking facility lighting must be in accordance with Section 38-47.

(g) Landscape

All parking facilities must be landscaped in accordance with Article XIII.

(h) Location of Surface Parking

(1) Nonresidential Uses

(i) In the following zones, parking spaces must be located to the side or rear of the building and behind the front building line. Parking spaces in the front of the front building line are prohibited: C-N, C-NT, C-MU1, C-MU2, I-MU except that C-N and C-NT property transitioning from a residential use to a nonresidential use may use an existing driveway and paved or gravel parking area located in the front yard.

(ii) In the I-MU Zone, parking may be located in front of the front building line for those structures with existing parking in that location as of the effective date of this Code.

(i) Parking Structure Design

(1) Parking structures must meet all the requirements for a principal structure as specified in each zone.

(2) On facades that front on public streets, facade design and screening must mask the interior ramps.

(3) Parking structures must be designed to minimize blank facades through architectural detail and landscape.

(4) On portions of the ground floor facade where parking spaces are visible, a decorative fence and landscape or a kneewall is required to screen parking spaces. Such fence or kneewall must be a minimum of four feet in height.

(5) Upper stories of structured parking must be screened so that cars are not visible from ground level view from adjacent property or from adjacent public rights-of way (not including alleys) and other public property.

(6) A vehicular clear sight zone must be included at vehicular exit areas as follows:

(i) The facade of vehicular exit areas must be set back from any pedestrian walkway along that facade a minimum of eight feet for the portion of the facade that includes the vehicle exit area and eight feet on each side of the exit opening.

(ii) A sight triangle is defined by drawing a line from the edge of the vehicular exit area to a point on the property line abutting the pedestrian walkway eight feet to the side of the exit lane.

(iii) In the sight triangle (bound by the parking structure wall, pedestrian walkway and vehicular exit lane), groundcover, landscape, or decorative wall must be used to act as a buffer between the exit aisle and the pedestrian walkway. Landscape or a decorative wall must not exceed three feet in height in order to maintain driver sightlines to the pedestrian walkway.

(iv) The upper story facade(s) of the parking structure may overhang the vehicular clear sight zone.

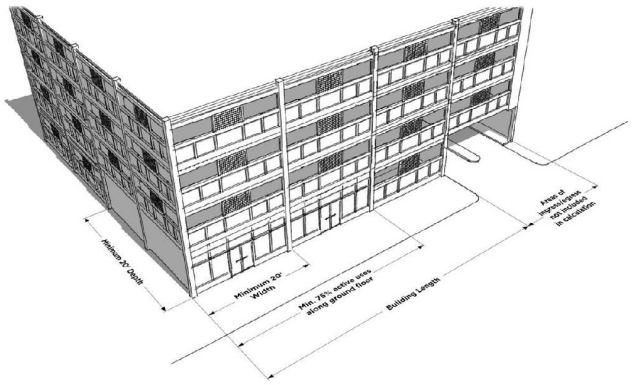
(7) Parking structures in the C-MU1 and C-MU2 Zones must include residential or nonresidential active uses along ground floor designed as follows:

(i) Parking structures must include residential or nonresidential active uses, including civic uses, along 75% of the ground floor building length along any facade abutting a street. This percentage is calculated as a percentage of the facade length after areas of required vehicular and pedestrian egress and mechanical or electrical equipment rooms are discounted from the facade length.

(ii) Nonresidential active use spaces must be a minimum of 20 feet in width and 20 feet in depth.

(iii) Nonresidential active use spaces must meet the design standards of the zone.

INTEGRATED ANCILLARY PARKING STRUCTURES



(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14222, § 1, 4-15-25)

Sec. 38-57. Bicycle Parking Design

(a) Required Bicycle Spaces

Bicycle parking spaces must be provided as indicated in Table 38-53.1.

(b) Location

(1) Bicycle racks must be located on the same zoning lot as the use and located no more than 100 feet from the primary entrance of the building the bicycle parking space is intended to serve.

(2) Bicycle racks must be located such that they are highly visible from the street and/or building entrance with adequate lighting. Bicycle parking must be located in designated areas that minimize pedestrian and vehicular conflicts. Bicycle parking located within an automobile parking area must be clearly designated and located as close to a building entrance as possible.

(3) Required bicycle parking for residential uses may be provided in garages, storage rooms, and other resident-accessible, secure areas. Spaces within dwelling units or on balconies do not count toward satisfying bicycle parking requirements.

(c) Design

(1) Each required bicycle parking space must be at least 1.5 feet by six feet. Where a bicycle can be locked on both sides of a bicycle parking space without conflict, each side can be counted as a required space.

(2) Bicycle parking spaces must be located on paved or pervious, dust-free surface with a slope no greater than 3%. Surfaces cannot be gravel, landscape stone or wood chips. Installation of bicycle racks must also conform to the requirements set forth by the bicycle rack manufacturer.

(3) Bicycle rack must be installed with adequate space beside the parked bicycle so that a bicyclist will be able to reach and operate their locking mechanism.

(4) All bicycle parking spaces must be able to accommodate cable locks and "U" locks, including removing the front wheel and locking it to the rear fork and frame and must be able to support a bicycle in a stable position, giving two points of contact with the bicycle frame.

(d) Shared Bicycle Parking Facilities

Bicycle parking spaces for nonresidential uses may be shared between uses. Bicycle parking spaces must be accessible and clearly visible to from all uses. A 20% reduction in the sum total number of required bicycle spaces is allowed.

(e) City Bicycle Parking Facilities

Where bicycle parking has been provided by the City in the right-of-way, one required bicycle space may be substituted for every bicycle space provided by the City, provided the spaces immediately abut the subject property.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-58. Required Off-Street Loading Spaces

(a) Loading spaces are required as indicated in Table 38-58.1: Off-Street Loading Requirements. The location, design, and layout of all loading spaces must be indicated on required site plans.

(b) A loading space must be a minimum of 12 feet by 35 feet and must have a minimum vertical clearance of 14 feet.

(c) All off-street loading spaces must be improved with a hard surfaced, all-weather dustless material.

(d) No part of a loading area utilized for the access, maneuvering and temporary parking of delivery vehicles may be used for vehicle parking. No part of a loading area may be utilized for the outdoor storage of materials, merchandise, and equipment.

(e) Loading areas must be located to the rear of buildings and no loading areas may be placed between a public street and the associated building. This does not apply in the I-H and I-X Zones.

(f) Outside the Urban Overlay Zone, No loading area is permitted within 50 feet of a residential use, excluding the residential component of mixed-use development, as measured from the residential lot line to the closest point of the loading area.

(g) Off-street loading spaces must be provided in accordance with Table 38-58.1. In the case of multi-tenant buildings or mixed-use developments, required loading spaces are calculated on the basis of each individual tenant (for example, if only one nonresidential use tenant of a multi-tenant building is over 10,000 square feet, only one loading space is required; if all tenants are under 10,000 square feet, no loading is required).

Table 38-58.1: Off-Street Loading Requirements	
Use Type	*Minimum Number of Spaces Required*
Multi-Unit Dwelling	
Total of 50 dwelling units or more	1 loading space
Commercial & Institutional Use	
10,000—100,000sf GFA	1 loading space
100,001—200,000sf GFA	2 loading spaces
200,001sf and above GFA	3 loading spaces
Industrial Use	
10,000—40,000sf GFA	1 loading spaces

Table 38-58.1: Off-Street Loading Requirements	
Use Type	*Minimum Number of Spaces Required*
40,001—100,000sf GFA	2 loading spaces
100,001 and above GFA	3 loading spaces

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14222, § 1, 4-15-25)

Sec. 38-59. Commercial Vehicle Storage

(a) Residential Lots

(1) No commercial vehicle, except as noted in item (i) below, may be parked in a driveway or other parking area located in a front yard on a residential lot with the exception of vehicles engaged in loading or unloading or current work being done to the adjacent premises.

(i) This does not include standard size passenger motor vehicles (including, but not limited to, vans, sports utility vehicles (SUVs), standard passenger size vehicles for hire, and pick-up trucks), which may be stored or parked outdoors overnight on lots in residential zones.

(ii) Permitted standard size passenger commercial vehicles, as described in item (i) above, also include those owned and used for commercial purposes by the occupant of a dwelling or guest, provided that the vehicle is stored or parked in a permitted parking area. Permitted personal commercial vehicles may include the logo of the commercial business painted on or applied to the vehicle.

(2) All other commercial vehicles that exceed standard size passenger vehicles, including, but not limited to, semi-truck tractor units, with or without attached trailers, commercial trailers, flatbed trucks, box trucks, buses, tow trucks, construction heavy equipment and livery vehicles that exceed standard passenger vehicle size, such as limousines, or other large commercial vehicles, are not permitted to be parked outdoors overnight on a residential lot except in the rear yard.

(b) Nonresidential Lots

On nonresidential lots, commercial vehicles with the logo of the commercial business painted on or applied to the vehicle that are being operated and stored in the normal course of business, such as signs located on delivery trucks, promotional vehicles, moving vans, and rental trucks, are permitted to be stored on the lot in areas related to their use as vehicles. All such vehicles must be in operable condition.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14222, § 1, 4-15-25)

ARTICLE XIII. LANDSCAPE

Sec. 38-60. Purpose and Intent

The landscape and screening requirements established by this Article are intended to preserve and enhance the appearance and character of the City, increase the compatibility of adjacent uses and minimize the potential negative impacts to neighboring uses, and create transitional areas between uses or zones of different intensities. The requirements of this Article control landscaping and screening on private property only.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-61. Landscape Plan

(a) Landscape Plan Required

A landscape plan prepared by a State of Tennessee Registered Landscape Architect is required for the following:

(1) any multi-unit dwelling over 6 units; and,

(2) townhouse development over 10 units; and

(3) nonresidential development, including mixed-use development; and,

(4) parking structures and, or parking lot,

(b) Plan must be approved by the Director of the Land Development Office prior to the issuance of a building permit or a land disturbing permit.

(c) Landscape Plan Submittal

The following is required within the landscape plan:

(1) The location and dimensions of all existing and proposed structures, property lines, easements, pavements, curbs, parking spaces and drives, rights-of-way, refuse disposal and recycling areas, pedestrian and bicycle paths, fences, mechanical equipment, overhead utility wires, outdoor use areas, underground and overhead utilities and piping, and drainage facilities.

(2) The location, quantity, size, name both botanical and common, and condition of all trees over 12" DBH indicating plant material to be retained or removed.

(3) The location of all required landscape and the quantity, size, spacing, condition, and name both botanical and common, of all proposed plant material.

(4) The existing and proposed grading of the site indicating contours at one foot intervals. Proposed berming must also be indicated using two foot contour intervals.

(5) Elevations of all proposed fences, stairs, and retaining walls.

(6) Irrigation systems if installed.

(7) The zone of the subject property and the zone of abutting lots.

(8) Any other details as determined necessary by the Director of the Land Development Office.

(d) Changes to Approved Landscape Plans

Changes to the landscape plan that do not result in a reduction in the net amount of required plant material may be approved by the Director of the Land Development Office. Any changes to the approved landscape plans require the submission of revised plans for review.

(e) Voluntary Incentives Program

Developments participating in the Voluntary Incentives Program are subject to the lot area standard reductions and maximum height increases as detailed in Article XIX. Voluntary Incentives Program, Sec. 38-106 Incentives.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14256, § 1, 7-22-25)

Sec. 38-62. Landscape and Certificate of Occupancy

All landscape must be installed before the certificate of occupancy is issued.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-63. Selection, Installation, and Maintenance

(a) Selection and Design

(1) The use of regionally native plants, as currently listed by the USDA Plant Profile for each species, is preferred and encouraged.

(2) Invasive exotic plant species, as currently listed by the Tennessee Invasive Plant Council, are prohibited.

(3) All landscaping must be installed according to sound horticultural practices, including soil volume and consistency, in a manner designed to encourage quick establishment and healthy growth, and per the ANSI A300 Tree Care Standards, most current edition and parts, and American Standard for Nursery Stock, current edition.

(4) Placement of plant material to support site sustainability is encouraged to leverage passive heating and cooling strategies and to reduce the energy consumption needs of the development.

(b) Landscape Plantings

Landscape plantings shall comply with requirements set forth Table 38-63.1 Landscape Plant Materials Standard.

SYM	*Plant Type*	*Class*	*Minimum Installed Size*	*Minimum Mature Size*		*Minimum Linear Spacing Ratio*	*Maximum Horizontal On Center Spacing*
				Height (feet)	*Spread (feet)*		
LT	Large Tree	I	2" caliper	40	20	1 tree per 30 linear feet	30 feet On Center
ST	Small Tree	II	1.5" caliper	20	15	1 tree per 20 linear feet	20 feet On Center
ET	Evergreen Tree	III	5' height	15	10	1 tree per 10 linear feet	10 feet On Center
LS	Large Shrub	IV	24" height or spread	7	7	1 shrub per 7 linear feet	7 feet On Center
SS	Small Shrub	V	18" height or spread	3	3	1 shrub per 3 linear feet	3 feet On Center

*Evergreen trees may only be treated as shade trees if they meet both the minimum maturity height and if their crown meets minimum canopy spread criteria.

(c) Existing Trees and Shrubs

(1) All existing trees and shrubs that are maintained on a site and in good health and are not on the Tennessee Invasive Plant Council Invasive species list may be counted toward any required on-site landscape of this Article.

(2) Existing trees and shrubs to be preserved on the site must be identified on the required landscape plan and protected during construction.

(i) Existing trees and shrubs must be identified on the site by a minimum of a four foot high visibility fence (polyethylene, painted wooden slat, snow fence, etc.). This fence must be located outside of the Critical Root Zone (CRZ) as identified in the Chattanooga Tree Protection document. (Diameter =1.5 feet x tree diameter in inches).

(ii) Construction debris storage/staging areas must be located away from the trees and shrubs to be preserved.

(d) Species Diversity

Diversity among required plant material is required for visual interest and to reduce the risk of losing a large population of plants due to disease. Table 38-63.2: Plant Diversity Requirements indicates the percentage of diversity required based on the total quantity of species being used. (For example, if a development requires 45 trees, no more than 18 trees (40%) can be of one species, and there must be a minimum of seven different species within the 45 trees.) When the calculation of plant diversity requirements results in a fraction, the fraction is rounded up.

Table 38-63.2: Plant Diversity Requirements

Tree Diversity Requirements		
Total # of Trees per Tree Type	Maximum # of One Species	Minimum # of Species
1-5	100%	1
6-10	60%	2
11-25	50%	4
26-50	40%	7
51-100	25%	10
101+	15%	12
Shrub Diversity Requirements		
Total # of Shrubs per Shrub Type	Maximum # of One Species	Minimum # of Species
1-10	100%	1
11-25	60%	2
26-50	50%	4
51-100	40%	6
101+	20%	8

(e) Maintenance

(1) Trees and vegetation, irrigation systems, fences, walls, and other landscape elements are considered elements of a development in the same manner as parking, building materials, and other site details. The applicant, developer, landowner, or successors in interest are jointly and severally responsible for the regular maintenance of all landscaping elements in good condition.

(2) All landscaping must be maintained free from disease, pests, weeds, and litter. All landscape structures such as fences and walls must be repaired and replaced periodically to maintain them in a structurally sound and aesthetically pleasing condition.

(3) Any landscape element that dies, or is otherwise removed or seriously damaged, must be removed and replaced within 30 days of the beginning of the growing season.

(4) Proper organic mulching is required to maintain required trees.

(5) The ANSI A300 Tree Care Standards, most current edition and parts, is the standard for maintenance.

(6) All installed plant material must be fully maintained, including watering, fertilization, and replacement as necessary.

(f) General Landscape Requirement

All portions of a lot not covered by structures or paved or appropriate parking surfaces must be landscaped with lawn grass or trees, shrubs, live groundcover, and other plantings with their proper organic mulching where applicable. Vegetated stormwater control measures (SCMs) or green infrastructure may be used to meet this requirement.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14222, § 1, 4-15-25)

Sec. 38-64. Parking Lot Landscape

(a) Required Parking Lot Landscape

Parking lot landscape is required as follows. Existing paved or gravel lots are not considered a parking lot unless designed as a parking lot in accordance with Article XII.

(1) New construction of a parking lot.

(2) When an existing parking lot is fully reconstructed and/or reconfigured.

(3) When an existing parking lot is expanded by an additional 10% or more spaces (for example, the total number of spaces after expansion is 110% or more of the spaces prior to expansion).

(4) When a gravel lot is designated as a parking lot, then minimum 6 inch high and wide curbs are required between all required landscape areas and the gravel surface.

(b) Parking Lot Perimeter Landscape

(1) A landscape treatment is required along all edges of a parking lot of five or more spaces abutting the street. This does not include alleys. The landscape treatment must run the full length of the street edge, except for points of ingress or egress.

(2) The landscape area for parking lot landscape along a street must be a minimum of eight feet in width. In addition, there must be a minimum linear clear distance of 18 inches between the perimeter landscape area and any wheel stops or curbs to accommodate vehicle bumper overhang.

(3) The perimeter landscape area must be planted as follows:

(i) Shade tree and shrubs must be planted per Table 38-63.1.

(ii) Fences or walls are permitted within this area. Such fences or walls must be constructed of high quality, durable materials such as masonry, stone, brick, iron, or any combination thereof. Chain link is prohibited. If installed, fences must be a minimum of three feet in height to a maximum of four feet in height.

(iii) A minimum of 80% of the landscape area outside of required tree and shrub masses must be planted in live groundcover, perennials, and/or grass. Rain gardens, bioswales, and similar vegetated stormwater management landscape elements meet this requirement.

(4) The following is an accepted alternative to the planting requirements of item 3 above:

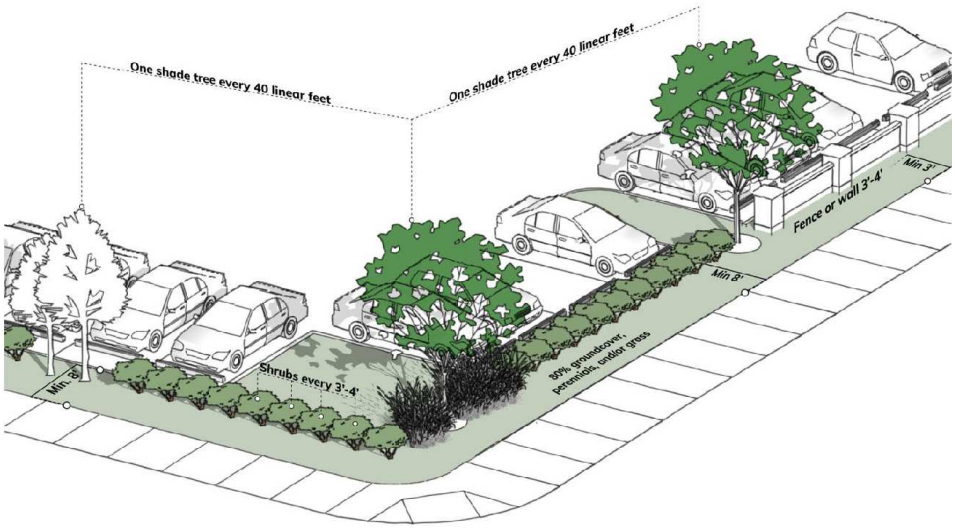
(i) A low pedestrian wall of a minimum of four feet in height to a maximum of 4.5 feet in height constructed of masonry, concrete, or similar permanent material may be installed.

(ii) In this alternative, the parking lot screening area of item 2 above may be reduced to three feet in width.

(iii) Shrubs, groundcover, perennials, ornamental grasses, and other native planting types must be planted in front of such wall along the street, facing toward the street, covering a minimum of 50% of the total screening area.

(iv) Up to 30% of the total length of such wall (item a above) may be designed as a seating wall. Where seating areas are included, the minimum wall height does not apply and plantings are not required in front of that portion of the seating wall.

PARKING LOT PERIMETER LANDSCAPE



(c) Interior Parking Lot Landscape

(1) Any parking lot of ten or more spaces is required to install interior parking lot landscape.

(2) One parking lot island must be provided at a minimum between every ten parking spaces. As part of the landscape plan approval, parking lot island locations may be varied based on specific site requirements or design scheme, but the total number of islands must be no less than the amount required of one island for every ten spaces. In addition, all rows of parking spaces of 20 or more spaces must terminate in a landscape island. Also need one where a stall abuts a drive aisle.

(3) Parking lot islands must be, at minimum, the same dimension as a parking stall. Double rows of parking must provide parking lot islands that are, at minimum, the same dimension as the double row.

(4) A minimum of one shade tree must be provided for every parking lot island. Islands for double rows of parking must provide a minimum of two shade trees.

(5) A minimum of 80% of the landscape area outside of required trees must be planted in live groundcover, perennials, and/or grass. Fully vegetated, non-turf, green infrastructure stormwater control measures also meet this requirement. This percentage may be reduced to 40% if the parking lot island is designed to accommodate pedestrian access.

(6) The use of stormwater management elements, such as sunken islands, perforated curbs, rain gardens and bioswales, is encouraged in landscape areas.

(7) All landscaping in or adjacent to a vehicular use area must be protected from vehicular damage by a raised concrete curb six inches in height or equivalent barrier, however, the barrier need not be continuous.

(8) A maximum of 18 inches of vehicle bumper overhang is permitted within the required landscape area.

INTERIOR PARKING LOT LANDSCAPE

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-65. Buffer Yards

(a) Table 38-65.1: Required Buffer Yard Class indicates when and which class of buffer yard is required. Table 13-3: Buffer Yard Class describes the width and design of each class of buffer yard.

(b) Buffer yards are located within rear and interior side setbacks along the lot lines when indicated in Table 38-65.1. Buffer Yard width maximum is equal to the setback for each zone.

(c) Where a rear setback is located along an alley, the required buffer yard may be reduced to a R Class buffer yard.

(d) Buffer yards must be reserved for planting material and screening as required by this section. No parking spaces, loading spaces, refuse containers, or storage areas are permitted within the required buffer yard.

(e) When a buffer yard is required by this section, and a site does not have a buffer yard or the existing buffer yard on the site does not meet the standards of this section, a buffer yard must be installed when any of the following actions occur:

(1) New construction of a principal building. This includes construction of additional principal buildings within an existing development.

(2) Expansion of a principal building by 25% or more of gross floor area.

(3) When a parking lot is expanded by an additional 10% or more spaces (for example, the total number of spaces after expansion is 110% or more of the spaces prior to expansion).

(4) Expansion of lot area.

(f) Where Table 38-65.1 indicates nonresidential development or development in the zone is required to install a buffer yard, this does not apply to parks or conservation area uses. Parks or conservation areas are not required to install a buffer yard.

(g) Where a lot is zoned with multiple zones, a buffer yard is not required within that same lot. Buffer yards apply only at the lot lines.

Table 38-65.1: Required Buffer Yard Class

Zone of Lot Under Development	*Development Type Required to Install Buffer Yard*	*Buffer Yard Required for Development When*	*Buffer Yard Class Required*
RN-1-7.5, RN-1-6, RN-1-5, RN-2	Nonresidential development—excludes neighborhood commercial establishments	Abutting residential use	R
RN-3	Nonresidential development—excludes neighborhood commercial establishments	Abutting residential use	R
TRN-1, TRN-2, TRN-3, TRN-4	Nonresidential development—excludes neighborhood commercial establishments	Abutting residential use	R
	Multi-Unit Dwellings	Abutting residential use—excludes multi-unit	R
C-NT	Nonresidential development	Abutting residential use	R
C-N, C-TMU C-C	Development in the zone	Abutting residential zone	C
C-R	Development in the zone	Abutting residential zone	C
C-MU1, C-MU2	Development in the zone	Abutting residential zone	C
I-L	Development in the zone	Abutting any other zone except I-L or I-H Zone	C
I-H	Development in the zone	Abutting any other zone except I-L or I-H Zone	M
I-MU	Development in the zone	Abutting residential zone	M
INST	Development in the zone	Abutting residential zone	C

Table 38-65.2: Buffer Yard Class

Standard Buffer Yard Requirements			
Buffer Yard Class	10-R Residential Buffer	20-C Commercial Buffer	30-M Industrial Buffer
Width of Standard Buffer Yard*	10'	20'	30'

Table 38-65.2: Buffer Yard Class			
Standard Buffer Yard Requirements			
Minimum Evergreen Requirements	25% Evergreen	50% Evergreen	One row ET Evergreen Trees OR one double row LS Large Shrubs Plus two rows LT Large Trees
Planting Options	ET Evergreen Trees LS Large Shrubs	ET Evergreen Trees LS Large Shrubs	No additional options for this buffer
	SS Small Shrubs + ST Small Trees	SS Small Shrubs + ST Small Trees	
		SS Small Shrubs + LT Large Trees	
Buffer Yard Class (Fence/Wall Option) Solid/Opaque Fence or Wall	10-RF Residential Buffer	20-CF Commercial Buffer	30-MF Industrial Buffer
Minimum Evergreen Options Require-ments	All Plantings minimum 25% Evergreen	All Plantings minimum 50% Evergreen	One row ET Evergreen Trees OR one double row LS Large Shrubs Plus two rows LT Large Trees
Planting Options	ET Evergreen Trees LS Large Shrubs	ET Evergreen Trees LS Large Shrubs	No additional options for this buffer
	SS Small Shrubs + ST Small Trees	ST Small Trees	
	SS Small Shrubs + LT Large Trees	LT Large Trees	
Fence Height	4' minimum fence height	6' minimum fence height	6' minimum fence height

1. Buffer yard width maximum is equal to the setback for each zone.

2. Buffer yard depth shall be measured from the Property Line.

3. Buffer yard plantings shall cover the entire depth of the buffer at the requisite spacing.

4. See Table 13-1 Landscape Plant Material Standards for the required spacing.

5. Any portion of a Fence or Wall, including the gate, shall be solid and opaque.

Table 38-65.3: Buffer Yard Class			
Urban Buffer Yard Requirements (Within the Urban Overlay)			
Buffer Yard Class	10-R Residential Buffer	20-C Commercial Buffer	30-M Industrial Buffer
Width of Standard Buffer Yard*	5'	10'	15'

Table 38-65.3: Buffer Yard Class			
Urban Buffer Yard Requirements (Within the Urban Overlay)			
Minimum Planting Requirements	All Plantings minimum 25% Evergreen	All Plantings minimum 50% Evergreen	One (1) row 100% evergreen coverage for the entire buffer length
			One row ET Evergreen Trees OR one double row LS Large Shrubs Plus two rows LT Large Trees
Planting Options	ET Evergreen Trees LS Large Shrubs	ET Evergreen Trees LS Large Shrubs	No additional options for this buffer
	SS Small Shrubs + ST Small Trees	SS Small Shrubs + ST Small Trees	
		SS Small Shrubs + LT Large Trees	
Buffer Yard Class (Fence/Wall Option) Solid/Opaque Fence or Wall	5-RF Residential Buffer	10-CF Commercial Buffer	15-MF Industrial Buffer
Minimum Planting Requirements	All Plantings minimum 25% Evergreen	All Plantings minimum 50% Evergreen	One (1) row 100% evergreen coverage for the entire buffer length One row ET Evergreen Trees OR one double row LS Large Shrubs Plus two rows LT Large Trees
Planting Options	ET Evergreen Trees LS Large Shrubs	ET Evergreen Trees LS Large Shrubs	No additional options for this buffer
	ST Small Trees	ST Small Trees	
		LT Large Trees	
Fence Height	4' minimum fence height	6' minimum fence height	6' minimum fence height

1. Buffer yard width maximum is equal to the setback for each zone.

2. Buffer yard depth shall be measured from the Property Line.

3. Buffer yard plantings shall cover the entire depth of the buffer at the requisite spacing.

4. See Table 13-1 Landscape Plant Material Standards for the required spacing.

5. Any portion of a Fence or Wall, including the gate, shall be solid and opaque.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14202, § 1, 2-18-25; Ord. No. 14278, § 1, 9-16-25; Ord. No. 14291, § 1, 10-21-25)

Sec. 38-66. Required On-Site Trees

(a) Intent

The intent of the on-site tree requirement is to add quality and definition to the street by planting trees within a landscaped area abutting the public right-of-way.

(b) Applicability

On-site trees are required for all portions of any property line where no building is present within 15' or more of the front or corner setback. This does not apply to lots used for single-unit or two-unit dwellings.

(c) Required Trees

(1) On-site trees must be planted at the rate outlined in Table 38-63.2.

(2) Trees do not have to be evenly spaced. Up to a 50% deviation, either an increase or decrease, from Horizontal On Center Spacing as identified in Table 38-63.1 is permitted.

(3) Fractions of trees are rounded up to the nearest whole number.

(d) Existing Trees

(1) Existing trees on-site may be counted toward required trees.

(2) Existing trees planted within the right-of-way (excluding the center median and opposite side of the street) may be counted toward required trees, subject to approval by the City Urban Forester

(e) Trees Within Adjoining Right-of-Way

On-site required trees may be planted within the street lawn of the public right-of-way with permission from the City Urban Forester and other City departments.

(f) Tree Replacement or Mitigation

If a required on-site tree is removed or damaged, it must be replaced. Replacement trees must be a comparable native tree that will reach the same size at maturity.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14238, § 1, 5-20-25)

ARTICLE XIV. ADMINISTRATORS

Sec. 38-67. City Council

The City Council has the following powers pursuant to this Code:

(a) To make final decisions on zoning text and map amendment applications.

(b) To make final decisions on planned unit developments.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-68. Planning Commission

The Planning Commission has the following powers pursuant to this Code:

(a) To make recommendations on zoning text and map amendment applications.

(b) To make recommendations on planned unit developments.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-69. Board of Appeals

Membership.

The Board of Appeals, also known as the Board of Zoning Appeals and referred to in this Article as the "Board", shall consist of nine (9) members and shall be appointed by the City Council for three (3) year terms. One member shall be appointed from each City Council District. In the case of a vacancy, a member shall be appointed to serve the unexpired term of the former member creating the vacancy. A member who has served for three (3) years shall continue to serve as an official member of the Board until the member has been reappointed or a new member has been appointed to represent that District. Members of the Board shall serve without compensation.

Officers and Meetings.

A Chairperson and Vice-Chairperson of the Board shall be elected from its own membership. A Secretary of the Board shall be provided by staff. The board shall fix its place of meeting and shall conduct at least one (1) regular meeting a month, provided there are applications to be reviewed by the Board. Other meetings of the Board shall be held upon the call of the Chairperson and at such times as the Board may determine. The presence of five (5) members shall constitute a quorum. In all other matters, the Board shall proceed according to its own rules of order for the conduct of business, such rules being of public record. The City Attorney or their designated representative shall be present at each Board meeting.

Powers.

The Board of Appeals has the following powers pursuant to this Code:

(1) To make final decisions on any special exception request;

(2) To make final decisions on any variance request;

(3) To hear zoning appeals of the Director of the Land Development Office decisions; and

(4) To hear zoning appeals of Sign Code decisions by the Director of the Land Development Office.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14329, § 1, 2-17-26)

Sec. 38-70. Director of the Land Development Office

The Director of the Land Development Office may designate one or more persons to act as their designee; however, a decision may only be rendered once. The Director of the Land Development Office has the following powers pursuant to this Code:

(a) To make final decisions on administrative modifications.

(b) To make final decisions on zoning interpretations, with input from Regional Planning Agency, Office of the City Attorney, and other City departments as needed.

(c) To make final decisions on temporary use permits.

(d) To conduct plan review for zoning compliance.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE XV. APPLICATION PROCESS

Sec. 38-71. Application

(a) Submittal

All zoning applications must be filed as indicated in Table 38-71.1: Submittals. The application must be on forms provided by the City and filed in such quantity and with such submittals as required by the instructions.

Table 38-71.1: Submittals		
Application	Administrator	
	Regional Planning Agency	Land Development Office
Amendment (Text and Map)	•	
Special Exception		•
Variance		•
Administrative Modification		•
Planned Unit Development	•	
Zoning Interpretation		•
Zoning Appeal		•

(b) Pre-Application Conference

Prior to formal submittal of an application, the applicant may, at their option, schedule a pre-application conference with the Regional Planning Agency (RPA). The purpose of a pre-application conference, which does not require a formal application or fees, is to provide informal advice and assistance to the applicant. Any opinions or advice provided are not binding with respect to any official action that may be taken on the formal application. No decision is made on the application.

(c) Completeness

(1) An application must include all information, plans, and data as specified in the application requirements. The Regional Planning Agency or Land Development Office, as applicable, will examine all applications to determine completeness. If the application does not include all the submittal requirements for the application, staff will reject the application and provide the applicant with the reasons for the rejection. No further steps to process the application will be taken until all deficiencies are remedied.

(2) After an application is determined to be complete and before action is taken on the application, any substantive change made by the applicant to the application requires resubmittal of the entire application and a new completeness review. However, such revisions do not require an additional payment of fees. Once the application is under consideration by the appropriate bodies, additional information or revisions are not subject to this provision.

(d) Fees

Each application must be accompanied by the required filing fee, as established and modified, from time to time. The failure to pay such fee when due is grounds for refusing to process the application and renders the application incomplete. If an application is submitted by the City Council or Planning Commission, all fee requirements are considered waived.

(e) Deferral or Withdrawal of Application

(1) To request to defer or to withdraw an application prior to scheduled Planning Commission meeting the applicant must submit a written request to defer or withdraw their application to the Regional Planning Agency using the appropriate form available from the Regional Planning Agency. An applicant may request to defer their request in writing within five business days following the zoning application deadline.

(2) The zoning application deadline is the third Monday of the month. Any request to defer a case after the five business day period following the zoning application deadline must be made at the scheduled Planning Commission meeting. Action to allow deferral of the zoning application will be determined by the Planning Commission.

(3) If the Planning Commission takes official action to defer the request the application cannot be automatically withdrawn without the approval of the Planning Commission.

(4) An applicant may request to withdraw their request in writing no later than 12:00PM Noon the Wednesday before the scheduled Planning Commission meeting. Such requests will be honored. RPA staff will place a "Withdrawn" sticker on the notification sign.

(5) The applicant shall be responsible for removing the notification sign with the withdrawn sticker by no later than the Friday immediately after the public hearing of the Planning Commission date of which the case was scheduled for review.

(6) Withdrawal or deferral requests that do not meet these guidelines must be made verbally at the regularly scheduled meeting of the Planning Commission.

(f) Consideration of Successive Applications

(1) A petition for a map amendment, closure and abandonment, or special permits will not be accepted for a period of one year following denial of a previous petition involving the same property or any part thereof.

(2) The Board of Appeals will not rehear any case upon the same grounds within a minimum period of one year of its previous hearing date.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14202, § 1, 2-18-25)

Sec. 38-72. Notice

(a) Required Notice.

Table 38-72.1: Zoning Approvals Required Notice indicates the types of notice required for zoning applications. If the specific requirements of a zoning approval process contain contradictory information to Table 38-72.1, the specific requirements of the zoning approval control.

Table 38-72.1: Zoning Approvals Required Notice

Zoning Application	Notice Type		
	Published	Mailed	Posted On Property
Zoning Text Amendment Notice for Public Hearing	•		
Zoning Map Amendment Notice for Public Hearing	•	•	•
Special Exception Notice for Public Hearing	•	•	•
Variance Notice for Public Hearing	•	•	•
Zoning Appeals Notice for Public Hearing	•		

(b) Published Notice.

When published notice is required by Table 38-72.1, the City will publish notice in a newspaper of general circulation within the City. The notice must include the date, time, place, and purpose of such hearing/meeting, the name of the applicant, and the address of the subject property.

(1) For the Board of Appeals, notice must be published no less than seven (7) days in advance of the scheduled action.

(2) For the City Council, notice must be published no less than twenty-one (21) days in advance of the scheduled action.

(c) Mailed Notice.

(1) For applications to the Board of Appeals, the Board of Appeals will mail written notice at least seven days in advance of the first scheduled action to all property owners within three hundred (300') feet of the property line of the subject property. The notice must include the date, time, place, and purpose of such action, the name of the applicant, and the address of the subject property.

(2) When a zoning map amendment is proposed by the City, notification must also be mailed to the owner of the subject property.

(3) Mailed notice is not required for comprehensive updates to the Zoning Map, as determined by the Regional Planning Agency in consultation with the Land Development Office and the Office of the City Attorney.

(4) Nothing in this section is intended to prevent the applicant or the City from giving additional notice.

(d) Posted Notice.

(1) A sign furnished by the Regional Planning Agency (RPA), or the Land Development Office must be prominently posted by the applicant on the site of the subject property a minimum of fifteen (15) consecutive days prior to a Planning Commission, Form Based Code or Board of Zoning Appeals meeting. Signs must be posted no earlier than five days after the application has been accepted by the Regional Planning Agency, or the Land Development Office. The applicant must post the sign provided by the Regional Planning Agency or the Land Development Office as follows:

(i) Signs must be posted at the right-of-way of primary street or road on which the property fronts, and any additional areas if required by the RPA or the Land Development Office staff.

(ii) Signs must be mounted on flat hard surface to prevent curling or bending of sign.

(iii) Signs must be nailed or tied to a tree or mounted on stakes and visually free from obstruction to the primary road.

(2) Signs improperly displayed may be ruled as a violation to the process and may result in deferral of the meeting. The applicant is responsible for replacing signs which are damaged or lost.

(3) Signs must be maintained throughout the process until the City Council, Form Based Code Committee, or the Board of Appeals has taken final action on the request.

(4) The applicant is responsible for removing the sign after the final governmental action.

(5) Posted notice is not required for comprehensive updates to the Zoning Map, as determined by the Regional Planning Agency in consultation with the Land Development Office and the Office of the City Attorney.

(e) Additional Notice.

(1) A copy of a Regional Planning Agency (RPA) application must be forwarded to the City Council member that represents the zone where the property is located fifteen (15) days prior to the Planning Commission hearing of the application.

(2) For all applications to the Regional Planning Agency (RPA) that are to be reviewed by the Planning Commission, the RPA staff will notify the Neighborhood Association(s) contact person on file with the RPA and all property owners of properties that abut the area of the request no less than fifteen (15) days prior to the Planning Commission meeting by first class mail. No further notification is required.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14202, § 1, 2-18-25; Ord. No. 14339, § 1, 3-17-26)

Sec. 38-73. Vesting

Unless specifically addressed in this section, all provisions of Tenn. Code Ann. § 13-4-310 are adopted and incorporated by reference.

(a) Subject to item (f), a vested property right is established, with respect to any property upon the submission of a preliminary development plan, a final development plan where no preliminary development plan is required by ordinance or regulation, or a building permit allowing construction of a building where there was no need for prior approval of a preliminary development plan for the property on which that building will be constructed. During the vesting period in item f, the City's development standards in effect on the date of said approval remain the development standards applicable to that property or building during the vesting period in item (f).

A vested property right is not established unless the plan or building permit substantially complies with the requirements of the local development ordinances and regulations.

During the vesting periods, the locally adopted development standards that are in effect on the date of submission or a preliminary development plan or the date of approval of a building permit, as described by this section (a) shall remain the development standards applicable to that property or building during the vesting period.

(b) Development Standards

Development Standards means all locally adopted or enforced standards, regulations or guidelines applicable to the development of property, including, but not limited to, planning; local storm water requirements, layout, design; local construction standards for buildings, streets, alleys, curbs, sidewalks; zoning as provided for in subsection (g); lot size; lot configuration; yard dimensions; and off-site improvements, including public or private infrastructure, in which an applicant may acquire vested rights or vested property rights according to this section; and, does not include standards required by federal or state law; or building construction safety standards which are adopted pursuant to authority granted under Tenn. Code Ann. § 68-120-101.

(c) Submission

For purposes of Sec. 38-73 "submission" means the date on which an applicant submits to the Land Development Office or the Regional Planning Agency, as appropriate, a complete application of a building permit or development plan listed in (e) below.

(d) Substantial Compliance

For purposes of Sec. 38-73 "substantial compliance" means that an application includes all required documents, plans, and forms, and that each submission is complete, accurate, and conforms to the city's

zoning ordinance, subdivision provisions, and all applicable general regulations. The application must demonstrate that the proposed plan meets the intent and substantive requirements of all applicable codes, even if minor, technical, or non-material errors or omissions are present.

To be deemed substantially compliant, an application must:

(1) Include all documents, plans, and forms as required by the city's application checklist and development procedures manual.

(2) Ensure that all submissions are internally consistent, to scale, and legible.

(3) Demonstrate general conformity with:

a. The Zoning Ordinance (e.g., lot size, density, use, setbacks),

b. The Subdivision Regulations (e.g., block length, access, easements),

c. All relevant building codes, engineering standards, utility requirements, and design criteria.

(4) Address any public health, safety, and welfare concerns associated with the proposed development.

(5) Include any supporting studies or documentation (e.g., traffic impact analysis, drainage reports, utility availability letters) as applicable or required.

Substantial compliance does not preclude future minor amendments, but the application must clearly demonstrate intent to fully comply with all mandatory provisions and not contain any material defects that would:

(1) Preclude meaningful review by city staff or approving authorities,

(2) Result in nonconformance with adopted plans or ordinances, or

(3) Compromise the public interest or administrative integrity of the approval process.

(e) A vested property right is established with respect to any property upon the following submission:

(1) Submission of preliminary subdivision plat.

(2) Submission of final subdivision plat.

(3) Submission of a final plat that meets the definition of a staff approved subdivision plat upon the date of the last signature of approval required on the plat for recording.

(4) Submission of a special exception permit required to complete a site or development plan.

(5) Submission of a planned unit development.

(6) Any other submission or issuance specified in Tenn. Code Ann. § 13-4-310.

For Purposes of Sec. 38-73 and Tenn. Code Ann. § 13-4-310 (e) the following submittals are not considered to be a preliminary and final development plan for establishing vesting rights:

1. Site Plans/Conceptual Plan submitted for rezoning applications are not considered to be a preliminary or final development plan and the submission of such as part of a rezoning application does not trigger vested rights.

(f) Per Tenn. Code Ann. § 13-4-310, the applicable vesting periods are as follows.

(1) Building Permit

Unless an extension is granted by the local government, the vesting period applicable to an approved construction project for which a building permit has been issued begins on the date of issuance of the building permit by the local government and remains in effect for the time period

authorized by the approved building permit, including any approved renewal obtained by the applicant prior to the expiration or termination of the permit to be renewed; provided, that the applicant pursues with reasonable diligence site preparation, if applicable, and construction.

(2) Development Plan

(i) The vesting period applicable to a development plan is a period of three years, beginning on the date of the submission of the preliminary development plan, provided that the applicant obtains local government approval of a final development plan, secures any necessary permits, and commences site preparation within the vesting period. If the applicant obtains local government approval of a final development plan, secures any necessary permits, and commences site preparation within the vesting period, then the vesting period may be extended an additional two years to commence construction from the date of the expiration of the three-year period. During this two-year period, the applicant must commence construction and maintain any necessary permits to remain vested.

(ii) If construction commences during the vesting period, the development standards applicable during the vesting period remains in effect until the local government has certified final completion of the development or project, provided the total vesting period for the project cannot exceed ten years from the date of the submission of the preliminary development plan unless the local government grants an extension pursuant to an ordinance or resolution, provided further that the applicant maintains any necessary permits during the ten year period.

(iii) In the case of developments which proceed in two or more sections or phases as described in the development plan, there is a separate vesting period applicable to each section or phase. The development standards which are in effect on the date of approval of the preliminary development plan for the first section or phase of the development remain the development standards applicable to all subsequent sections or phases of the development; provided, that the total vesting period for all phases cannot exceed 15 years from the date of the submission of the preliminary development plan for the first section or phase unless the local government grants an extension pursuant to an ordinance or resolution, provided further that the applicant maintains any necessary permits during the 15 year period.

(g) In accordance with Tenn. Code Ann. § 13-4-310(f), the City may terminate the applicant's vested rights under the following circumstances.

(1) If the City finds in writing that the applicant violated terms and conditions specified in the approved development plan or building permit, the applicant will receive notice and has 90 days from the date of notification to cure all violations.

(2) If the City finds in writing that the applicant violated terms and conditions specified in a City ordinance or resolution, the applicant will receive notice and has 90 days from the date of notification to cure all violations.

(3) If the City finds in writing that the applicant: 1) intentionally supplied inaccurate information or knowingly made misrepresentations material to the issuance of a building permit or the approval of a development plan; or 2) knowingly did not construct the development in accordance with the issued building permit, approved development plan, or approved amendment for the building permit or development plan. In such case, the applicant has no right to cure the violations.

(4) If the City is required to enforce a state or federal law, regulation, rule, policy, corrective action, or other governance that precludes the development as contemplated in the approved

development plan or building permit, the vested rights terminate unless within 90 days the applicant modifies the development plan or building permit in a way that brings the applicant into compliance with the new governance.

(h) A vested right does not preclude the City's enforcement of any development standard in accordance with any circumstances described in Tenn. Code Ann. § 13-4-310(g).

(i) In accordance with Tenn. Code Ann. § 13-4-310(h), any amendment to an approved development plan must first be approved by the City in order for the property rights to remain vested. The City may deny an amendment in accordance with Tenn. Code Ann. § 13-4-310(h) and, if such amendment is denied, the applicant may either proceed with no changes to the prior approved plan with the associated vested property right or, alternatively, may allow the vested property right to terminate and submit a new application in compliance with the development standards in effect at that time.

(j) A local government cannot require an applicant to waive the applicant's vested rights as a condition of approval or as a consideration of approval of a development plan or the issuance of a building permit.

(k) A vested property right attaches to and run with the applicable property and confers upon the applicant the right to undertake and complete the development and use such property under the terms and conditions of a development plan, including any amendments thereto or under the terms and conditions of any building permit that has been issued with respect to the property.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14319, § 1, 1-20-26)

ARTICLE XVI. ZONING APPROVALS

Sec. 38-74. Zoning Text and Map Amendment

(a) Purpose

The regulations imposed by the zoning regulations of this Zoning Code and of the Zoning Map may be amended from time to time in accordance with this section. Amendments are not intended to relieve particular hardships or confer special privileges or rights upon any person or party.

(b) Initiation

(1) Text Amendments

(i) The City Council, Planning Commission, or Regional Planning Association may propose a zoning text amendment.

(ii) Requests to amend the Zoning Code text may also be made as follows:

a. Petitioner discusses the proposed amendments at a regularly scheduled meeting of the Planning Commission under non-agenda items.

b. The Planning Commission may direct Regional Planning Agency staff to explore options/suggestions on the proposed amendment, place it on the Planning Commission's agenda for future action, or take no action.

(2) Map Amendments

The City Council, or a property owner in the City may propose a zoning map amendment.

(c) Authority

The City Council, after receiving a recommendation from the Planning Commission, will take action on requests for zoning text or map amendments.

(d) Procedure

(1) Filing and Notice.

All Applications must be filed per Section 38-71. Once it is determined that the application is complete, staff will schedule the application for consideration by the Planning Commission. Amendments initiated by the City Council or Planning Commission also require an application but are exempt from fees. Notice is required per Section 38-72.

(2) Action by Planning Commission

(i) Upon receipt of a complete application, the Planning Commission will consider the proposed zoning amendment at a public meeting.

(ii) The Planning Commission must evaluate the application based upon the evidence presented, pursuant to the approval standards of this section.

(iii) A petition for rezoning, closure and abandonment, or special permits shall not be accepted for a period of nine (9) months following a denial of a previous petition involving the same property or any part thereof.

(iv) The Planning Commission must make a recommendation within 60 days of the date of the initial public meeting, unless there is mutual agreement between the applicant and the Planning Commission to extend this period of time.

(v) After the close of the meeting, the Planning Commission will forward its recommendation to the City Council.

(3) Action by City Council

(i) The City Council will hold a public hearing on the application following receipt of the Planning Commission recommendation.

(ii) Following the close of the public hearing, the City Council will take action in the form of approval, approval with conditions, or denial. The City Council may also approve another zone classification than that requested by the applicant.

(iii) A petition for rezoning, closure and abandonment, or special permits shall not be accepted for a period of nine (9) months following a denial of a previous petition involving the same property or any part thereof.

(e) Evaluation Criteria

The Planning Commission recommendation and the City Council decision on any zoning text or map amendment is a matter of legislative discretion that is not controlled by any particular criteria. However, in making their recommendation and decision, the Planning Commission and the City Council will consider the following criteria at a minimum. Approval of amendments is based on a balancing of these criteria.

(1) Criteria for Map Amendments

(i) The compatibility with the existing use of the property and zoning of nearby property.

(ii) The extent to which the proposed amendment creates nonconformities.

(iii) The trend of development, if any, in the general area of the property in question.

(iv) The consistency of the proposed amendment with the Comprehensive Plan and any adopted land use policies.

(2) Criteria for Text Amendments

(i) Whether the proposed amendment corrects an error or omission, adds clarification to existing requirements, or reflects a change in policy.

(ii) The extent to which the proposed amendment creates nonconformities.

(iii) The consistency of the proposed amendment with the intent and general regulations of this Code.

(iv) The consistency of the proposed amendment with the Comprehensive Plan and any adopted land use policies.

(f) Conditional Zoning

The City Council may approve a zoning map amendment with conditions (conditional zoning/rezoning) as allowed per Tenn. Code Ann. § 13-7-201(b).
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14202, § 1, 2-18-25)

Sec. 38-75. Special Exceptions

(a) Purpose

This Code is based upon the division of the City into zones. Within each zone, the use of land and structures are considered substantially uniform. It is recognized, however, that there are certain uses which, because of their unique characteristics, cannot be properly classified in a particular zone or zones without consideration of the impact of those uses upon neighboring land and of the public need for the particular use at the particular location.

(b) Initiation

A property owner in the City may file an application to use their land for one or more of the special exceptions authorized within the zone. A property owner may only propose a special exception for property under their control.

(c) Authority

The Board of Appeals will take action on requests for special exceptions.

(d) Procedure

(1) Filing and Notice.

All Applications must be filed per Section 38-71. Once it is determined that the application is complete, staff will schedule the application for consideration by the appropriate body. Notice is required per Section 38-72.

(2) Approval by Board of Appeals

(i) Upon receipt of a complete application, the Board of Appeals will consider the special exception at a public hearing.

(ii) The Board of Appeals will evaluate the application based upon the evidence presented at the public hearing, pursuant to the approval standards of this section.

(iii) The Board of Appeals must either approve, approve with conditions, or deny the special exception.

(iv) The Board of Appeals may impose additional conditions and restrictions upon the establishment, location, construction, maintenance, and operation of the special exception as deemed necessary for the protection of the public health, safety, and welfare.

(v) Provided, however, that where the application for a variance or special exception involves only the addition to or extension of an existing building or structure, the Board may allow such addition or extension when said addition or extension would be no less conforming as to setback distances than the existing structure or structures on the same or adjacent property, provided further, that such addition or extension is not in conflict with the character of the area in which the property is located or the comprehensive zoning plan.

(e) Evaluation Criteria

The listing of a use as a special exception within a zone does not constitute an assurance or presumption that such special exception will be approved. Rather, each special exception must be evaluated on an individual basis, in relation to all applicable standards of this Code. Such evaluation will determine whether approval of the special exception is appropriate at the particular location and in the particular manner proposed. The decision must make findings to support each of the following:

(1) The proposed special exception will not endanger the public health, safety, or welfare.

(2) The proposed special exception is compatible with the general land use of adjacent properties and other property within the immediate vicinity.

(3) The special exception in the specific location proposed is consistent with the spirit and intent of this Code and adopted City land use policies.

(f) Special exceptions permit for a residential home for persons with a disability and/or aged persons for nonprofit family residences and those operated on a commercial basis, Assisted Living Facilities and Medically Assisted Living Facilities, Nursing Homes and Hospitals.

(1) No special exceptions permit is necessary for any residential home in which eight (8) or fewer unrelated persons with disabilities reside, and which may include three (3) additional persons acting as support staff or guardians, who need not be related to each other or to any of the persons with disabilities in any residential zone within the City. This ordinance allows nonprofit organizations to operate residential homes meeting the requirements of Tenn. Code Ann. § 13-24-101 to remove zoning obstacles which prevent persons with a disability from living in normal residential surroundings in compliance with state and federal law.

(2) This ordinance does not apply to family residences housing greater than eight (8) or more unrelated persons in any single family or other residential zone where such residences are operated on a commercial basis as required by Tenn. Code Ann. § 13-24-104 unless Land Development staff is provided adequate information from the State Comptroller's Office with any building permit request establishing the nonprofit status of the entity which will operate the residential home in compliance with Federal and Tennessee state law as a nonprofit entity. All other applicants which do not meet the requirements of Tenn. Code Ann. § 13-24-102 must comply with the requirements of subsection (3).

(3) Any application for homes operated on a commercial basis or for a residential facility which is not exempt under Tenn. Code Ann. § 13-24-101 et seq. or as otherwise provided by Tennessee law shall comply with the following requirements:

(i) An applicant must apply for a license for a "Residential Home for the Aged" from the Tennessee Department of Public Health; or shall apply for a license for a "Boarding Home Facility," or a "Large Group Home Facility," to be submitted to the Tennessee Department of Mental Health and Mental Retardation, as the case may be. Prior to operating either of the above, a Special Exceptions Permit from the City Council or the Board of Zoning Appeals for operation within the proper zone and the State License must be obtained.

(4) Any application to the Board for a special permit to operate any family residence on a commercial basis or for a residential facility which is not exempt under Tenn. Code Ann. 13-24-101 et seq. shall be accompanied by a site plan, drawn to scale, showing the following information:

(i) Size and location, and use of all buildings and structures.

(ii) Parking and loading facilities.

(iii) Points of ingress and egress.

(iv) Surrounding land uses; and

(v) A list showing:

a. Number of residents.

b. Number of employees, visitors and/or volunteers who may reasonably be expected at any one (1) time.

c. State licensure department (if applicable).

d. Type of license and nature of operation; and

e. A statement of whether the facility will be operated on a commercial basis and a copy of any documentation of the nonprofit status of the entity which will operate the residential home in compliance with Federal and Tennessee state law as a nonprofit entity.

(5) The Board shall review documentation unless Tennessee law takes precedence over any provision in the zoning ordinances to the contrary that such uses are appropriate to the zone in which they are proposed to be located. The Board will determine that the proposed use will not conflict with the developed character of the area; that the City Traffic Engineer has approved all plans for the points of ingress and egress, parking and loading facilities; and that the proposed use will not be in conflict with the adopted plans of the community after it determines that the facility is properly allowed with the residential zone pursuant to Tennessee and Federal law.

(6) Prior to operating any of the above uses, both the Special Permit and the State License (where applicable) must be obtained.

(g) Modifications to Approved Special Exception

Any modifications to the conditions of approval for a previously approved special exception must be resubmitted as a new special exception application. Any modifications that meet Code standards are permitted, subject to the regulations of this Code.

(h) Expiration

A special exception approval expires if any one of the following conditions occurs and no request for an extension of the special exception validity is granted or pending. The original approving body may grant an extension for a period of validity, so long as the applicant applies in writing for an extension of time at any time prior to the date of expiration. No public hearing is required for approval of such extension of time.

(1) When an approved special exception is changed to another use.

(2) For special exceptions approved in conjunction with new construction or additions or enlargements to an existing structure, the special exception approval expires within two years of the date of approval if a building permit has not been issued.

(3) For special exceptions approved in conjunction with an existing structure or on lot where no structure is planned, the special exception approval expires within two years of the date of approval if the licenses or permits required for the operation or maintenance of the use have not been obtained.

(i) Rehear of Special Exceptions Applications

The Board shall not rehear any case for a Special Exceptions on the same site or parcel of property within a minimum period of one (1) year of its previous hearing date.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14202, § 1, 2-18-25)

Sec. 38-76. Variance

(a) Purpose.

The purpose of the variance process is to provide a narrowly circumscribed means by which relief may be granted from unforeseen applications of the zoning regulations of this Code that create practical difficulties or particular hardships. Certain types of modifications are eligible for approval under the administrative modification process in Section 38-77. In the Form-Based Code Zones, certain variances are approved by the Form-Based Code Committee in Article VI.

(b) Initiation

A property owner in the City may file an application for a variance. A property owner may only propose a variance for property under their control.

(c) Authority

(1) The Board of Appeals will take formal action on variances on zoning regulations including variances to overlay zoning standards.

(2) Certain types of modifications are eligible for approval under the administrative modification process in Section 38-77.

(3) In the Form-Based Code Zones, certain variances are approved by the Form-Based Code Committee (Article VI).

(d) Procedure

(1) All Applications must be filed per Section 38-71. Once it is determined that the application is complete, staff will schedule the application for consideration by the Board of Appeals. Notice is required per Section 38-72.

(2) Upon receipt of a complete application, the Board of Appeals will consider the variance at a public hearing.

(3) The Board of Appeals must evaluate the application based upon the evidence presented at the public hearing, pursuant to the approval standards of this section. The Board of Appeals will approve, approve with conditions, or deny the variance.

(4) The Board of Appeals may impose such conditions and restrictions upon the variance as may be deemed necessary for the protection of the public health, safety, and welfare.

(5) The Board of Appeals may grant a variance that is less than that requested when it has been decided that the applicant is entitled to some relief of the hardship, but not to the entire relief requested in the variance application.

(6) The Board of Appeals shall not rehear any case upon the same grounds within a minimum period of one (1) year of its previous hearing date.

(e) Criteria

The Board of Zoning Appeals may authorize a variance from the strict application of this Code to relieve such difficulties or hardship only in accordance with the following criteria:

(1) That by reason of exceptional narrowness, shallowness, or shape of a specific piece of property at the time of enactment of the zoning regulations, or by reason of exceptional topographic conditions or other extraordinary and exceptional situation or condition of such piece of property, the strict application of this Code would result in peculiar and practical difficulties or undue hardships upon the owner to develop their property.

(2) That the relief of the peculiar hardships, practical difficulties, or undue hardships granted by the Board would not establish substantial detriment to the public good or substantially impair the intent and purpose of this Code.

(3) That the peculiar hardship, practical difficulties, or undue hardships apply to the particular land or building regardless of the owner.

(4) That the peculiar hardship, practical difficulties, or undue hardship have not been created by the property owner.

(5) That the peculiar hardship, practical difficulties, or undue hardships relate only to the premises for the benefit of which the variance is sought and would not be generally applicable to other premises in the City or the personal conditions of the applicant.

(f) Limitations

(1) No variance may allow a use that is prohibited in the applicable base or overlay zone.

(2) The variance granted is the minimum adjustment necessary for the reasonable use of the land.

(3) The Board cannot vary conditions imposed by the City Council on a zoning change that has been adopted by the City Council by ordinance. Any condition imposed by the City Council can only be lifted or amended by the City Council as a legislative act by that body.

(g) Expiration of Variance

An approved variance will expire two years from the date of approval unless a building permit or land disturbance permit is obtained or applied for within such period. The Board of Appeals may grant an extension for a period of validity so long as the applicant applies in writing for an extension of time at any time prior to the date of expiration. No public hearing is required for approval of such extension of time.

(h) Appeal of Boards Decision.

The action of the Board of Appeals shall be final, provided an appeal from the action of the Board may be taken to Hamilton County Chancery Court by any aggrieved, affected party.

(i) Appeal of Boards Decision.

The action of the Board of Appeals shall be final on Special Exceptions, provided an appeal from the action of the Board may be taken to Hamilton County Chancery Court by any aggrieved, affected party. (Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14202, § 1, 2-18-25)

Sec. 38-77. Administrative Modifications

(a) Purpose

The purpose of the administrative modification is to provide relief from carrying out a requirement of this Code that may cause a minor practical difficulty.

(b) Initiation

A property owner in the City may file an application for an administrative modification. A property owner may only propose an administrative modification for property under their control.

(c) Authority

The Director of the Land Development Office is authorized to grant certain administrative modifications, as defined below. Only those items listed below are eligible for an administrative modification; all other requests for relief are considered variances (Section 16.4).

(d) Eligible Administrative Modifications

Eligible administrative modifications are defined below:

(1) A 10% or less modification to any dimensional standard in this Code.

(2) A 10% or less modification to any design standard in this Code that is established by a set dimension (number).

(3) A reduction of required off-street parking spaces by no more than 10% of that required or two spaces, whichever is greater.

(4) A reduction in required bicycle parking of up to 10%.

(e) Procedure

(1) All applications must be filled per Section 38-71. Application.

(2) The Director of the Land Development Office may decide that an application for an administrative modification, even if it meets the thresholds established in this section, is by its nature a variance to be decided by the Board of Appeals and will resubmit the application to the Board of Appeals as a variance. No additional fees are required.

(3) The Director of the Land Development Office must review and evaluate the complete administrative modification application, pursuant to the standards of this section.

(4) The Director of the Land Development Office must render a decision within 30 days of the date listed on the required notice and either approve, approve with conditions, or deny the application. If the Director of the Land Development Office fails to act within 30 days, the administrative modification will be resubmitted to the Board of Appeals as a variance. No additional fees are required.

(5) The Director of the Land Development Office may impose such conditions and restrictions upon the administrative modification as deemed necessary for the protection of the public health, safety, and welfare.

(6) The Director of the Land Development Office may grant an administrative modification that is less than that requested when it has been decided that the applicant is entitled to some relief of the hardship, but not to the entire relief requested in the application.

(7) If the Administrative Modification is denied, it may be resubmitted as a variance (Section 38-76). If resubmitted as a variance, payment of associated fees is required.

(f) Evaluation Criteria

The decision of the Director of the Land Development Office must make findings to support each of the following criteria:

(1) That by reason of exceptional narrowness, shallowness, or shape of a specific piece of property at the time of enactment of the zoning regulations, or by reason of exceptional topographic conditions or other extraordinary and exceptional situation or condition of such piece of property, the strict application of this Code would result in peculiar and practical difficulties or undue hardships upon the owner to develop their property.

(2) That the relief of the peculiar hardships, practical difficulties, or undue hardships granted by the Board would not establish substantial detriment to the public good or substantially impair the intent and purpose of this Code.

(3) That the peculiar hardship, practical difficulties, or undue hardships apply to the particular land or building regardless of the owner.

(4) That the peculiar hardship, practical difficulties, or undue hardship have not been created by the property owner.

(5) That the peculiar hardship, practical difficulties, or undue hardships relate only to the premises for the benefit of which the variance is sought and would not be generally applicable to other premises in the City or the personal conditions of the applicant.

(g) Expiration

An approved administrative modification will expire two years from the date of approval unless a building permit is obtained. The Director of the Land Development Office may grant an extension for a period of validity, so long as the applicant applies in writing for an extension of time at any time prior to the date of expiration.

(h) Limitations

(1) If an applicant has been denied a variance by the Board of Appeals (Section 16.3), such cannot be resubmitted as an administrative modification for the same dimensional standard or reduction in parking spaces or bicycle spaces for a period of one year.

(2) Such request for an administrative modification for the same dimensional standard or reduction in parking spaces or bicycle spaces may be resubmitted as an administrative modification one year later if it qualifies as such per item D above.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24)

Sec. 38-78. Plan Review for Permits

The Director of the Land Development Office will review plans for compliance with zoning and any conditions imposed. The Director of the Land Development Office may consult with other departments and agencies as part of this review.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-79. Planned Unit Development

(a) Purpose

Planned unit developments (PUD) are intended to encourage and allow more creative and flexible development of land than is possible under zone regulations and should only be applied to further those

applications that provide compensating amenities to the City. The underlying zone dimensional, design, and use regulations apply to a PUD unless specifically modified through the approval process. Through the flexibility of the planned unit development technique, a PUD is intended to:

(1) Encourage flexibility in the development of land and in the design of structures.

(2) Encourage a creative approach to the use of land that results in better development and design than might otherwise be accomplished under the strict application of other sections of this Code.

(3) Allow for the design of developments that are architecturally and environmentally innovative, and that achieve better utilization of land than is possible through strict application of standard zoning controls.

(4) Combine and coordinate architectural styles, building forms, and structural/visual relationships within an environment that allows mixing of different uses in an innovative and functionally efficient manner.

(5) Provide for the efficient use of land to facilitate a more effective arrangement of land uses, structures, circulation patterns, and utilities.

(6) Encourage land development that, to the greatest extent possible, preserves natural vegetation, respects natural topographic and geologic conditions, and refrains from adversely affective flooding, soil, drainage, and other natural ecologic conditions.

(7) Facilitate the implementation of adopted City land use policies, particularly with respect to areas planned for potential redevelopment.

(b) Initiation

The entire property proposed for the planned unit development must be in single ownership or under unified control. All owners of the property must be included as joint applicants on all applications and all approvals will bind all owners.

(c) Authorization

(1) A planned unit development is authorized in all zones with the exception of the Form-Based Code Zones. Planned unit development is not permitted in the Form-Based Code Zones.

(2) A planned unit development must be granted in accordance with the procedures and standards of this section. Unless specifically approved as part of the planned unit development approval, the requirements of the underlying zone apply.

(3) Planned unit development approval is separate from subdivision approval. PUD approval may be granted first, whereby subdivision approval would be granted subsequently in compliance with the approved lot layout design.

(d) Exceptions From Zone Regulations

(1) A planned unit development is subject to the underlying zone dimensional, design, and use regulations unless an exception is specifically granted. The Planning Commission may recommend, and the City Council may grant, exceptions to the zone dimensional, design, and use regulations where a planned unit development is located. A planned unit development may allow uses that are currently not allowed in the zone if such uses enhance the overall concept of the PUD and meet the standards of item 2 below.

(2) Exceptions from zone regulations may be granted for planned unit developments if the exceptions:

(i) Enhance the overall merit of the planned unit development.

(ii) Promote the objectives of both the City and the development.

(iii) Enhance the quality of the design of the structures and the site plan.

(iv) Will not cause excessive adverse impact on neighboring properties.

(v) Are compatible with adopted City land use policies and area plans.

(3) The underlying zone dimensional, design, and use regulations apply, unless an exception is granted as part of the planned unit development approval and meets the standards of item 2 above. To be granted such exceptions, the applicant must demonstrate enhanced design and/or amenities. In no case may an exception to zone regulations be granted unless the applicant demonstrates such enhanced design. The enhanced design and/or amenities must be indicated on the development plan. Design characteristics and amenities to be considered in this determination may include, but are not limited to, the following:

(i) Community gathering spaces and amenities including plazas, public art, formal gardens, places to congregate, and pedestrian and transit facilities.

(ii) Improvement of existing on-site and adjacent, abutting off-site infrastructure.

(iii) Use of sustainable design and energy efficient design concepts, and new building technologies.

(iv) Preservation of existing environmental features.

(v) Preservation of historic features and adaptive reuse of existing buildings.

(vi) New open space and recreational amenities such as recreational open space, including parks and playgrounds, natural water features and conservation areas, jogging trails and fitness courses, dog parks, skate parks, and similar recreational features.

(vii) Provision of bike share facilities.

(viii) Workforce/affordable housing set-asides.

(ix) Senior housing set-asides.

(e) Procedure

The approval of a planned unit development includes a pre-application consultation, optional concept plan review, and development plan approval.

(1) 1. Pre-Application Consultation.

(i) a. Prior to formal submittal of an application, a pre-application conference with the Regional Planning Agency is required.

(ii) b. At a pre-application consultation, the applicant must provide information as to the location of the proposed planned unit development, the proposed uses, proposed improvements, including the enhanced design and amenities, anticipated exceptions to this Code, and any other information necessary to explain the planned unit development.

(iii) c. The purpose of such pre-application consultation is to make advice and assistance available to the applicant before preparation of the concept plan or development plan, so that the applicant may determine whether the proposed planned unit development is in compliance with the provisions of this Code and other applicable regulations, and whether the proposed planned unit development aligns with the adopted land use policies of the City.

(iv) d. The pre-application conference does not require formal application, fee, or filing of a planned unit development application. Any opinions or advice provided by the Regional Planning Agency are in no way binding with respect to any official action that may be taken on the subsequent formal application. No decision will be made on the application.

(2) 2. Optional Concept Plan

Before submitting a formal application for a planned unit development, the applicant may present a concept plan before the Planning Commission, at their option, for the purpose of obtaining information and guidance prior to formal application.

(i) a. The concept plan will be presented at a public meeting and no notice is required. At minimum, the concept plan must consist of the following:

a. i. A map (or maps) in general form containing the proposed land uses, the natural features of the development site, the character and approximate location of all roadways and access drives proposed, the location of all adjacent public streets, public utilities, and schematic drawings showing the size, character, and disposition of buildings on the site.

b. ii. A written statement containing a general explanation of the planned unit development, including a statement of the present ownership of all the land within said development and the expected schedule of construction.

(ii) b. The Planning Commission will review the concept plan and provide such information and guidance it deems appropriate. Any opinions or advice provided by the Planning Commission is in no way binding with respect to any official action the Planning Commission or City Council may take on the subsequent formal application. The review of the concept plan is not a public hearing. No decision will be made on the application.

(3) Development Plan

(i) Filing and Notice

All Applications must be filed per Section 38-71. Once it is determined that the application is complete, staff will schedule the application for consideration by the Planning Commission. Notice is required per Section 38-72.

(ii) Action by Planning Commission

a. Upon receipt of a complete application, the Planning Commission will consider the development plan at a public meeting.

b. The Planning Commission must evaluate the application based upon the evidence presented, pursuant to the approval standards of this section.

c. The Planning Commission will recommend approval, approval with conditions, or denial of the application.

d. After the close of the meeting, the Planning Commission will forward its recommendation to the City Council.

(iii) Action by City Council

a. The City Council will hold a public hearing on the development plan following receipt of the Planning Commission recommendation.

b. Following the close of the public hearing, the City Council will take action in the form of approval, approval with conditions, or denial the planned unit development.

(iv) Conditions

The Planning Commission may recommend, and the City Council may impose such conditions and restrictions upon the establishment, location, construction, maintenance, and operation of the planned unit development as deemed necessary for the protection of the public health, safety, and welfare. Such conditions and restrictions must be reflected in the revised development plan.

(v) Evaluation Criteria

The recommendation of the Planning Commission and decision of the City Council may consider the following criteria:

a. The proposed planned unit development uses and development form is compatible with other property in the vicinity.

b. The proposed planned unit development will not impede the normal and orderly development and improvement of surrounding property.

c. There is provision for adequate utilities and infrastructure, drainage, off-street parking and loading, pedestrian access, and all other necessary facilities.

d. There is provision for adequate vehicular ingress and egress designed to minimize traffic congestion upon public streets. The Planning Commission and/or City Council may require a traffic study to provide evidence that the circulation system is adequate.

e. The location and arrangement of structures, parking areas, walks, landscape, lighting, and other site design elements, are compatible with the surrounding neighborhood and adjacent land uses.

f. The consistency of the proposed amendment with the Comprehensive Plan and any adopted land use policies.

(f) Effect of Approval

After development plan approval, the development plan will constitute the regulations applicable to the subject property. The planned unit development must be developed in accordance with the development plan, rather than the zone regulations otherwise applicable to the property. Violation of any condition is a violation of this Code and constitutes grounds for revocation of all approvals granted for the planned unit development.

(g) Vesting

Planned unit developments are vested in accordance with Article XVI.

(h) Modifications to Approved Development Plans

No adjustments may be made to the approved development plan, except upon application to the City in accordance with the following. An application for a change to an approved development plan must be submitted to the Regional Planning Agency. Applications must include a written description of the proposed change, including the reason for such change, and a notation of the location on the appropriate part of the approved development plan.

(1) Administrative Modifications

The Director of the Land Development Office may approve the following administrative modifications to an approved final plan when it is determined by the Director of the Land Development Office that such changes are in substantial conformance with the approved development plan. Any changes considered a minor or major modification, as defined in this section, cannot be approved as an administrative modification. The Director of the Land Development Office may choose to classify a modification that meets the criteria of this section as a minor modification to be approved by the Planning Commission. No notice is required for an administrative modification.

(i) Changes required during construction when related to final engineering issues such as topography, drainage, underground utilities, structural safety, or vehicular circulation, to be confirmed by the City Engineer.

(ii) Changes in building location of no more than ten feet that continue to meet the requirements of this Code and any conditions of the final plan approval.

(iii) Changes in the location of vehicle access points, rking areas of up to ten feet that continue to meet the requirements of this Code and any conditions of the final plan approval.

(iv) Changes in building design, including building materials, that continue to meet the requirements of this Code and any conditions of the final plan approval.

(v) Modification of existing accessory structures or the addition of new accessory structures when in conformance with the requirements of this Code.

(vi) Modifications to the approved landscape plan that do not result in a reduction of the total amount of plant material required and conform with all landscape requirements of this Code.

(vii) Modification of existing signs or the addition of new signs when in conformance with sign regulations.

(2) Minor Modifications

The Planning Commission may approve the following minor modifications to an approved development plan when it is determined by the Planning Commission that such changes are in general conformance with the approved final plan. Any changes considered a major modification, as defined in this section, cannot be approved as a minor modification. The Planning Commission, at its sole discretion, may choose to classify a modification that meets the criteria of this section as a major modification to be approved by the City Council. No notice is required for a minor modification. When calculating percentages, all fractions are rounded up to the nearest whole number.

(i) An increase in building height of up to 10%.

(ii) An increase in building coverage up to 10%.

(iii) A change of in the location of vehicle access points, parking areas over ten up to 20 feet.

(iv) An increase or decrease in the number of parking spaces of up to 10 parking spaces.

(v) A change to the landscape plan that results in a reduction of plant material but does not violate the landscape requirements of this Code.

(vi) Reductions and/or alterations in the approved enhanced design and/or amenities to be provided.

(3) Major Modifications

(i) The City Council may approve any other changes to an approved development plan that do not qualify as an administrative or minor modification. In addition, all of the following are considered major modifications:

a. Changes to any conditions imposed as part of the approved development plan.

b. Any change to the boundary of the planned unit development. Significant changes to the boundary may constitute a new planned unit development per item c below.

c. Any change to the uses within the planned unit development. Significant changes to the uses within the planned unit development may constitute a new planned unit development per item c below.

(ii) All major modifications to the development plan must be approved by the City Council. The City Council may only approve changes to the development plan if they find such changes are in general conformance with the approved development plan, necessary for the continued successful functioning of the planned unit development, respond to changes in conditions that have occurred since the development plan was approved, and/or respond to changes in adopted City land use policies.

(iii) Major Modifications constitute a new planned unit development and a new application for a PUD must be submitted following the procedure in this Section.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24)

Sec. 38-80. Zoning Interpretation

(a) Purpose

The interpretation authority is intended to recognize that the provisions of this Code, though detailed and extensive, cannot, as a practical matter, address every specific zoning issue. However, this zoning interpretation authority is not intended to add or change the essential content of the Code.

(b) Initiation

The City Council, Planning Commission, or a property owner in the City may initiate a zoning interpretation application. All interpretation requests must be for the purpose of furthering actual development.

(c) Authority

The Director of the Land Development Office will review and make final decisions on written requests for zoning interpretations.

(d) Procedure

(1) All applications for interpretations must be filed per Section 15.1.

(2) The Director of the Land Development Office must review a written request for an interpretation and render the interpretation in writing within 30 days of receipt of a complete application.

(3) The Director of the Land Development Office may request additional information prior to rendering an interpretation. Until such additional material is received, the 30 day period is temporarily suspended until such material is received.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-81. Temporary Use Permit

(a) Purpose

A temporary use permit allows for the short-term use and/or placement of structures on a lot. The temporary use permit regulates temporary uses that occur entirely on and within a lot. Temporary uses located within the public right-of-way are regulated separately by the City Code.

(b) Initiation

A property owner in the City or a person expressly authorized in writing by the property owner may initiate a temporary use permit application.

(c) Authority

The Director of the Land Development Office will review and make final decisions on temporary use permit applications.

(d) Procedure

(1) All applications for temporary use permit must be filed with the Land Development Office.

(2) The Director of the Land Development Office must render a decision on the temporary use permit within 30 days of the date of receipt of a complete application. The Director of the Land Development Office must review and evaluate the application, pursuant to the standards of this section, and approve, approve with conditions, or deny the application.

(e) Approval Standards

All temporary uses must comply with the requirements of this Code, including the temporary use standards of Article X, and the following standards:

(1) Unless otherwise allowed by this Code, the temporary use or structure complies with the dimensional requirements of the zone in which it is located.

(2) The temporary use does not adversely impact the public health, safety, and welfare.

(3) The temporary use is operated in accordance with any restrictions and conditions as the Police Department, Fire Department, and/or other City officials may require.

(4) The temporary use does not conflict with another previously authorized temporary use.

(5) The temporary use provides adequate parking if needed. If located on a lot with an operational principal use, does not impact the parking and site circulation of the principal use.

(f) Expiration

The temporary use permit is valid for the time period granted as part of the approval.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-82. Zoning Appeals

(a) Purpose

This appeals process is intended to provide appropriate checks and balances on the administrative authority of the Director of the Land Development Office.

(b) Initiation

(1) A property owner in the City that is directly affected by a determination of the Director of the Land Development Office may file an appeal of the Director of the Land Development Office decision on an administrative modification, zoning interpretation, temporary use permit, or other administrative zoning decision related to this Code.

(2) A decision of the Director of the Land Development Office may only be appealed if an application is filed within 30 days of the date the decision is made.

(c) Authority

The Board of Appeals will take formal action on zoning appeal applications.

(d) Procedure

All applications must be filed with the Land Development Office. Once it is determined that the application is complete, staff will schedule the application for consideration by the Board of Appeals.

(1) Upon receipt of a complete application, the Board of Appeals will consider the appeal at a public hearing.

(2) The Board of Appeals must evaluate the application based upon the evidence presented at the public hearing.

(3) Following the close of the public hearing, the Board of Appeals must either confirm or overturn the Director of the Land Development Office decision.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE XVII. SHORT-TERM VACATION RENTALS

Sec. 38-83. Intent

(a) New non-owner occupied/absentee properties are only allowed throughout the City in the mixed-use and commercial zones that allow a hotel.

(b) They are also allowed within any parcel of at least 20 acres or more with common ownership that allows for residential uses.

(c) These standards are intended to provide appropriate opportunities for the development of short-term vacation rentals in the City.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-84. Permissions

Unless otherwise identified, owner-occupied, or homestay, are allowed in all zones that residential uses are allowed within the Short-Term Vacation Rental Overlay District Map and in the specified commercial zones listed above in Section 17.1.A.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-85. Definitions

The following terms used in this Article are defined as follows:

Code Compliance Verification Form. A document executed by a short-term vacation owner certifying that the short-term vacation rental unit complies with applicable zoning, building, health, and life safety code provisions. No person may allow occupancy or possession of any short-term vacation rental unit if the premises are in violation of any applicable laws including, but not limited to, zoning, building, health, or life safety code provisions.

Short-Term Vacation Rental Certificate. A certificate issued annually by the City of Chattanooga allowing a person or entity to operate a short-term vacation rental.

Short-Term Vacation Rental. Any or other structure containing no more than five bedrooms within permissible zones which is used, advertised, or held out to the public in part or its entirety to be a place where sleeping accommodations are supplied for pay and such accommodations are provided on a daily or weekly basis for not more than 30 days for overnight stay. For the purposes of this definition, any short-term vacation rental on a site located in the RN-1-7.5, RN-1-6, RN-1-5, RN-2 Zones, must contain no more than five bedrooms and excludes hotels, rooming houses, bed and breakfast, and boarding houses, or other licensed multi-unit dwellings for rent or lease, as defined in Section 21-67 and/or Section 11-186 and/or Section 38-45. STVRs may not exceed twenty-five (25%) percent of the total units in Multi-Unit Dwellings or Multi-Unit Developments.

Short-term vacation rental district: That certain area of the City of Chattanooga as determined by the Chattanooga City Council as the Short-Term Vacation Rental district and incorporated herein as Exhibit A to this Section as amended from time to time.

Editor's note—A copy of the Short-Term Vacation Rental Overlay District Map, referenced above as Exhibit A as amended from time to time, is available for inspection in the offices of the City Council Clerk. The map was amended to add an additional area within City Council District 1 effective June 11, 2024, and was amended to add an additional area with City Council District 5 effective October 21, 2025.

Short-Term Vacation Rental Occupants. Guests, tourists, lessees, vacationers, or any other person who, in exchange for compensation, occupy a short-term vacation rental dwelling unit for lodging for a period of time not to exceed 30 consecutive days.

Short-Term Vacation Rental Occupancy. There are two designations regarding the occupancy status of a short-term vacation rental:

(a) Homestay. A short-term vacation rental property which is the primary residence of the applicant. Primary is defined as the residence of the applicant at least 183 days a year.

(b) Absentee. A short-term vacation rental property which is not the primary residence of the applicant.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14117, § 1, 6-11-24; Ord. No. 14238, § 1, 5-20-25; Ord. No. 14292, § 1, 10-21-25)

Sec. 38-86. Location and Number

(a) A homestay short-term vacation rental may be located in any residential zone within the overlay district set forth in this section and any mixed-use and commercial zone or Form-Based Code Zones that allows any single-unit detached or accessory dwelling units that permits two-unit or multi-unit living.

(b) A short-term vacation rental is not permitted to operate in any capacity on property or within structures that are part of an Affordable Housing PILOT Program.

(c) A short-term vacation rental may include a primary dwelling unit or an accessory dwelling unit but not both structures on one lot.

(d) An absentee short-term vacation rental is only allowed throughout the City in the mixed-use and commercial zones that allow a hotel. If a zoning condition limits the allowable permitted uses of a mixed-use and commercial zone, then an absentee short-term vacation rental is only allowed if a hotel or motel is an allowable use under the zoning conditions. Building Code must be met as required through the permitting process.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-87. Certificate Required

(a) No person or entity may operate a short-term vacation rental unless a short-term vacation rental certificate has been first obtained from the City of Chattanooga Development Review and Permitting Division. To obtain a short-term vacation rental certificate, an eligible applicant must submit an application and a Code compliance verification form in compliance with Section 17.6. If approved, a legible copy of the short-term vacation rental certificate must be posted within the unit. The City of Chattanooga Development Review and Permitting Division will establish the information to be included upon the short-term vacation rental certificate.

(b) Short-term vacation rentals must be properly maintained and regularly inspected by the owner to ensure continued compliance with applicable zoning, building, health, and life safety local and state laws.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-88. Minimum Standards

(a) A short-term vacation rental cannot include uninhabitable structures such as garages, barns, or sheds.

(b) Any dwelling unit for short-term vacation rentals must have functioning smoke detectors as determined by the Fire Marshal and other life safety equipment as required by local, state, and federal law.

(c) The dwelling unit must meet all applicable laws related to zoning, building, health, or life safety.

(d) No on-site signage is permitted except for those vacation rentals that are at least five acres and have a dwelling unit that is not visible from the public right-of-way, can have directional signs placed on the parcel that are at least 50 feet from the public right-of-way. No off-site signage except for any designated city required signage and signage for designated parking spaces to be used by occupants of the short-term vacation rental. Such signs cannot be larger than three square feet.

(e) There must be no more than five bedrooms made available for rental in one dwelling unit. There must be no more than five sleeping rooms made available for a site located in the RN-1-6, RN-1-5, or RN-2 Zones.

(f) The maximum occupancy is determined by the total of:

(1) Two persons per bedroom up to 210 square feet plus an additional two persons.

(2) For bedrooms over 210 square feet the occupant load will be determined by the area of the room divided by 70 square feet plus an additional two persons.

(3) The occupancy maximum must be conspicuously posted within the short-term vacation rental unit.

(g) The short-term vacation rental owner cannot receive any compensation or remuneration to permit occupancy of a short-term vacation rental property for a period of less than 24 hours.

(h) The short-term vacation rental certificate holder is responsible for collecting and remitting all applicable room, occupancy, and sales taxes required by state law and the City Code of the City of Chattanooga.

(i) Adequate on-site parking must be provided, as determined by the City after considering proposed number of guests, frequency of operations, and availability of on-street parking. As a general rule, parking is not allowed on any vegetated area of the premises on which the short-term vacation rental is located.

(j) All occupants must abide by all applicable noise restrictions and all applicable waste management provisions of the City Code of the City of Chattanooga. All occupants must comply with City Code Section 25-69.

(k) The name and telephone number of the owner of the short-term vacation rental or the short-term vacation rental agent must be conspicuously posted within the short-term vacation rental.

(l) The premises on which the short-term vacation rental has not been found to be in violation of any City Code provision by City Court within the six months prior to submitting an application for a short-term vacation rental certificate.

(m) Ownership information and contact information for the short-term vacation rental agent must be posted on a public website or as determined appropriate by the City of Chattanooga.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-89. Certificate Application; Action; Approval or Denial; Appeals

(a) Certificate Application

Any person or entity wishing to operate a short-term vacation rental within the limits of the City is required to submit, under oath, a short-term vacation rental certificate application to the Development Review and Permitting Division for review. The City of Chattanooga Development Review and Permitting Division will establish the information present on the short-term vacation rental certificate application and the Code compliance verification form as well as what information is required for the completion of said application.

(b) Application Fee

(1) The non-refundable application fee for all short-term vacation rentals are as follows in addition to any applicable transaction related fees:

(i) Absentee STVRs

a. Initial application fee: $500.00

b. Renewal fee: $500.00

(ii) b. Homestay STVRs

a. Initial application fee: $250.00

b. Renewal fee: $250.00

(2) This application fee must be paid in full before any application is reviewed by the Development Review and Permitting Division.

(c) Application Review

(1) The City of Chattanooga Development Review and Permitting Division will review all applications for Homestay and Absentee short-term vacation rentals and provide comment where necessary. If additional materials are found to be required, a designated representative of the City may ask for them at any time. Upon completion of application requirements as set forth in this section, and upon tendering of the requisite application fee, the certificate will be issued.

(2) Homestay dwellings applying for a short-term vacation rental certificate:

(i) For homestay dwellings, the applicant/owner must be a natural person or a business entity (i.e., a Tennessee LLC, corporation, partnership etc.) whose business entity applicant lives on premises and can establish proof of ownership annually.

(ii) Residency of all applicants must be proved annually during renewal with driver's license number, business records, or other documentation acceptable to the Development Review and Permitting Division.

(3) Absentee dwellings applying for a short-term vacation rental certificate:

(i) For absentee dwellings, the Development Review and Permitting Division must notify the Fire Marshal and a City Building Inspector and request that inspections be conducted to ensure that the property and any associated structures on the property are in compliance with state and local laws.

(ii) When the application for an absentee short-term vacation rental meets all of the requirements set forth in this article, and passes all inspections required pursuant to this section, the Development Review and Permitting Division will issue to the applicant, a short-term vacation rental certificate.

(iii) The Development Review and Permitting Division does not send notification letters of applications for short-term vacation rentals nor is the applicant required to post a notification sign.

(4) Homestay and absentee for a short-term vacation rental certificate:

(i) If the Development Review and Permitting Division denies an application for a homestay or an absentee short-term vacation rental certificate, the applicant has the right to appeal the denial from the Development Review and Permitting Division to the Board of Zoning Appeals. The applicant also has the right to appeal a denial from the Board of Zoning Appeals to Chancery Court. Any appeal must be made within 60 days of the date of denial or revocation of any permit.

(ii) The applicant must be present at the appeal hearing before the Board of Zoning Appeals, regardless of whether the appeal is initiated by the Development Review and Permitting Division or the applicant. Any applicant not present at the appeal hearing results in an automatic denial of the short-term vacation rental certificate by the Board of Zoning Appeals.

(iii) If the certificate is still denied after the appeal hearing, the applicant must wait 12 months before reapplying for a short-term vacation rental certificate.

(iv) If a property owner or applicant requests to be rezoned to any mixed-use and commercial zone that allows absentee short-term vacation rentals, and if such request is granted, the owner or applicant may not apply for an absentee short-term vacation rental certificate within 18 months of the effective date of the lifting or amending of condition(s).

(d) Application Lifetime

An application is valid for a period of 60 days from the date of application submission. After 60 days, an application that has not received a certificate may be discarded.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-90. Certificate Approval, Transferability, Conditions, and Revocation

(a) Certificate Approval

The Certificate must be issued for the specific site location and/or address of the proposed short-term vacation rental applicant provided in the application. The Development Review and Permitting Division reserves the right to condition the approval to a certain number of rooms, operating days/hours, signage, or other restrictions as may be deemed necessary to address impacts to bordering properties or to ensure safe operation of the property. Said conditions will be based on the recommendation of the Development Review and Permitting Division.

(b) Certificate Number

Upon issuance of a short-term vacation rental certificate, the Development Review and Permitting Division will also issue a certificate number. The certificate number must be displayed on any materials or platforms used to advertise the short-term vacation rental.

(c) Grant or Denial of Application

Review of an application will be conducted in accordance with due process principles and will be granted unless the applicant fails to meet the conditions and requirements of this section, or otherwise fails to demonstrate the ability to comply with local, state, or federal law. Any false statements or information provided in the application are grounds for denial of an application for a short-term vacation rental, revocation or suspension of an existing short-term vacation rental certificate, and/or imposition of penalties, including denial of future applications. After 60 days, an application that has not received a certificate may be discarded, unless delay has been the result of delay of action by the Development Review and Permitting Division or other City department as determined by the Director of the Development Review and Permitting Division.

(d) Transferability

The certificate is non-transferable to another site, property, or location. Any change of ownership for the short-term vacation rental unit is allowed as long as the transferring owner or operator and the prior owners of the unit have not subject to revocation for at least one year prior to the transfer.

(e) Revocation

(1) The City reserves the right to revoke a granted short-term vacation rental certificate at any time upon notice to the owner and the short-term vacation rental certificate Agent and after a public hearing once the property has three documented violations of City Code or State Law as a direct result of the operation of the short-term vacation rental unit and no appeal rights of those violations remain. Such violations are evidenced by a finding of guilt or fault by court or an administrative officer or body designated by the City Council.

(2) A short-term vacation rental certificate which is revoked prevents its certificate holder from applying for a new certificate or short-term vacation rental on the same property or part thereof for a period of one year from the date of revocation. Prior to any revocation, the owner or the short-term vacation rental agent will be cited to the Administrative Hearing Officer, or a body designated by the City Council, for a hearing to establish proof of violations.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-91. Annual Renewal and Fee

(a) A short-term vacation rental certificate must be renewed annually by any applicant to legally operate as a short-term vacation rental within the City of Chattanooga.

(b) A certificate may only be renewed if:

(1) A renewal application is submitted to the Development Review and Permitting Division not less than 30 days prior to the certificate's expiration date;

(2) All information provided in and relating to the original short-term vacation rental application has not changed within the previous certification period; and

(3) The property requesting to be renewed as a short-term vacation rental has not had more than two documented violations of City Code or Tennessee law as a direct result of the operation of the short-term vacation rental within the previous certification period.

(c) If a property requesting to be renewed as a short-term vacation rental has had three or more documented violations of City Code or Tennessee law as a direct result of the operation of the short-term vacation rental during the previous certificate period, the Development Review and Permitting Division will deny the renewal certificate. Certificates denied on this basis may be appealed to the Administrative Hearing Officer.

(d) The Development Review and Permitting Division reserves the right to deny a renewal certificate, within its discretion, even if the property requesting to be renewed as a short-term vacation rental has had only one or two documented violations of City Code or Tennessee law. Certificates denied on this basis may be appealed to the Administrative Hearing Officer.

(e) There is a short-term vacation rental certificate renewal fee to be paid annually to the Development Review and Permitting Division upon renewal, in addition to any applicable transaction related fees and any taxes required by the State of Tennessee related to the operation of a short-term vacation rental. This fee must be remitted to the City Treasurer within 30 days after occupancy occurs within the rental units.

(f) A certification more than 30 days beyond its expiration date cannot be renewed.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-92. Short-Term Vacation Rental Agent

(a) The owner of a short-term vacation rental must designate a short-term vacation rental agent on its application for a certificate for a short-term vacation rental. A property owner or resident of a unit owned by a corporation may serve as the short-term vacation rental agent. Alternatively, the owner may designate a person as his or her agent who is over age 18 and meets all local and state regulatory requirements to fulfill the duties of a short-term vacation rental agent.

(b) The duties of the short-term vacation rental agent are to:

(1) Be available 24 hours a day, seven days a week to respond to telephone calls from law enforcement, first responders, and/or City designees.

(2) Appear on the premises of any short-term vacation rental unit within two hours following notification from the City of issues related to the use or occupancy of the premises. This includes, but is not limited to, notification that occupants of the short-term vacation rental unit have created unreasonable noise or disturbances, engaged in disorderly conduct, or committed violations of the City Code or other applicable law pertaining to noise, disorderly conduct, overcrowding, consumption of alcohol, or use of illegal drugs. Failure of the agent to timely appear to two or more complaints regarding violations may be grounds for penalties as set forth in this section. This is not intended to impose a duty to act as a peace officer or otherwise require the agent to place themselves in a perilous situation.

(3) Receive and accept service of any notice of violation or notice of hearing related to the short-term vacation rental.

(4) Monitor the short-term vacation rental for compliance with laws.

(c) C. An owner may change their designation of a short-term vacation rental agent temporarily or permanently; however there must only be one such agent for a property at any given time. To change the designated agent, the owner must notify the Development Review and Permitting Division in writing of the new agent's identity, together with all information regarding such person as required by the applicable provisions of this section.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-93. Invalidity of Part; Private Agreements and Covenants

Should any court of competent jurisdiction declare any section, clause, or provision of this Article to be unconstitutional, such decision affects only such section, clause, or provision so declared unconstitutional, and does not affect any other section, clause, or provision of this Article. Additionally, this in no way be used to supersede any privately created agreements or covenants by any homeowner associations or developers restricting certain uses.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-94. Annual Review

The Land Development Office will conduct at a minimum an initial annual review of the provisions of this Article. The Board of Zoning Appeals, or its departmental designee, must conduct an annual review of the appeals before that body and suggest any text amendments that may be appropriate to the City Council.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-95. Short-Term Vacation Rental Overlay District Map

A copy of the Short-Term Vacation Rental Overlay District Map is available for inspection in the offices of the City Council Clerk.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

ARTICLE XVIII. NONCONFORMITIES

Sec. 38-96. General Applicability

(a) Authority to Continue

Any use, structure, or lot that existed as a legal nonconformity as of the effective date of this Code, and any use, structure, or lot that has been made nonconforming as of the effective date of this Code, and any subsequent amendments, may continue subject to the provisions of this Article so long as it remains otherwise legal.

(b) Burden on Property Owner

The burden of establishing the legality of a nonconformity under the provisions of this Code is the responsibility of the property owner or operator of the nonconforming use, structure, or lot.

(c) Safety Regulations

All police power regulations enacted to promote public health, safety, and welfare, including, but not limited to, all building, fire, and health codes apply to nonconformities.

(d) Signs.

Article XVIII. Nonconformities does not apply to Signs. See City Code Sec. 3-13. Violations declared nuisances; preexisting violations for nonconforming applicability to signs.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24)

Sec. 38-97. Nonconforming Use

A nonconforming use is the use of a structure or land that at one time was an allowed use within a zone, but because of this Code, or a subsequent amendment to this Code, is no longer allowed. This includes nonconformities created by prior zoning codes or amendments to those codes.

(a) Expansion

A legally established nonconforming use of a structure or land may be expanded, extended, enlarged, or increased, provided there is reasonable space for such expansion or extension that avoids nuisances to adjoining landowners.

(b) Change of Use

A nonconforming use can only be changed to a use allowed within the zone where it is located. When a nonconforming use has been changed, in whole or in part, to an allowed use, the whole or part that conforms cannot be changed back to a use that is not allowed in the zone. A change of use occurs when an existing nonconforming use has been terminated and another use has commenced. Any change in use is deemed an abandonment of the previously existing nonconforming use.

(c) Discontinuation or Abandonment

(1) If a nonconforming nonresidential use is discontinued for a continuous period of one hundred (I 00) consecutive days, the nonconforming use terminates automatically. Any subsequent use of such land or structure must comply with all regulations of the zone in which the structure or land is located.

(2) If a nonconforming use of an on or off premise sign is discontinued for a continuous period of one hundred (100) days, the nonconforming use terminates automatically, regardless of the intent of the landowner to continue or discontinue such nonconforming use. The nonconforming use of an on or off premise sign continues with the owner of the sign structure rather than the landowner or any other tenant of the landowner.

(3) A nonconforming residential use is not subject to any discontinuance or abandonment.

(d) Damage or Destruction

(1) Nonresidential Uses

Nonresidential uses in operation and permitted to operate as nonconforming uses are allowed to destroy present facilities and reconstruct new facilities necessary to the conduct of such nonresidential use provided that no destruction and rebuilding occurs which changes the use classification of the land as classified under any zoning regulations or exceptions in effect.

(2) Residential Uses

For nonconforming residential uses, if any of the following occur, the subsequent residential use must comply with all regulations of the zone in which it is located.

(i) The structure containing the use is purposefully demolished by the owner.

(ii) The structure containing the use is converted to a dwelling type allowed in the zone.

(iii) The structure is damaged or destroyed through no fault of the property owner or tenant to the extent of 50% or more of its replacement value at the time. When such destruction is less than 50% of the replacement value at the time, a building permit must be obtained for such rebuilding, restoration, repair, or reconstruction within one year of the date of damage or destruction.

(e) Specific Standards for Nonconforming Manufactured Homes

Existing nonconforming manufactured homes in any zone may be replaced with a new manufactured home within one year of the date of the removal of the existing manufactured home. The replacement manufactured home may be a larger square footage so long as the manufactured home meets required setbacks. The manufactured home must meet all of the current regulations concerning plumbing, electrical, and other codes applicable to such units.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14169, § 1, 11-19-24; Ord. No. 14181, § 1, 12-17-24; Ord. No. 14278, § 1, 9-16-25)

Sec. 38-98. Nonconforming Structure

A nonconforming structure is a principal or accessory structure that at one time conformed to applicable zoning regulations, but because of this Code, or a subsequent amendment to this Code, does not conform. This includes nonconformities created by prior zoning codes or amendments to those codes.

(a) Maintenance

Normal maintenance and repair may be performed on any nonconforming structure. No repairs or reconstruction are permitted that would create any new nonconformity or increase the degree of the previously existing nonconformity.

(b) Structural Alterations

No structural alterations are permitted on any nonconforming structure, except in the following situations:

(1) When the alteration is required by law or is necessary to restore the structure to a safe condition upon the order of any official charged with protecting public safety.

(2) When the alteration will eliminate the nonconformity.

(3) When the alteration will not create a new nonconformity or will not increase the degree of any existing nonconformity.

(c) Relocation

A nonconforming structure cannot be relocated, in whole or in part, to any other location on the same lot unless such relocation would make the structure conforming. A nonconforming structure may be relocated to another lot only if the structure conforms to all regulations of the zone where it is relocated. However, the movement of single-unit dwellings may be permitted by Section 10.1.G.

(d) Damage or Destruction

(1) If a nonconforming structure is destroyed or damaged, regardless of the percent of damage, it may be rebuilt to its original condition before such casualty or loss if a building permit is obtained within one year of the date of damage or destruction. No reconstruction is permitted that would create any new nonconformity or increase the degree of the previously existing nonconformity.

(2) In the event that the building permit is not obtained within one year, then the structure cannot be restored unless it conforms to all regulations of the zone in which it is located.

(3) As of the effective date of this Code, structures that do not comply with the following standards are deemed conforming in regard to these elements, and are subject to the following:

(i) Required Build-To Zone or Build-To Line

When a structure does not conform to the required build-to zone or build-to line of the applicable zone, the structure is deemed conforming in regard to that standard and may be expanded or altered without having to conform to build-to zone or build-to line of the zone until the structure's building footprint is expanded by 50% or more. If expansions to the structure are incremental, this is calculated as the sum total of all expansions that occur after the effective date of this Code. Once the principal structure is demolished, deemed conforming status is null and void.

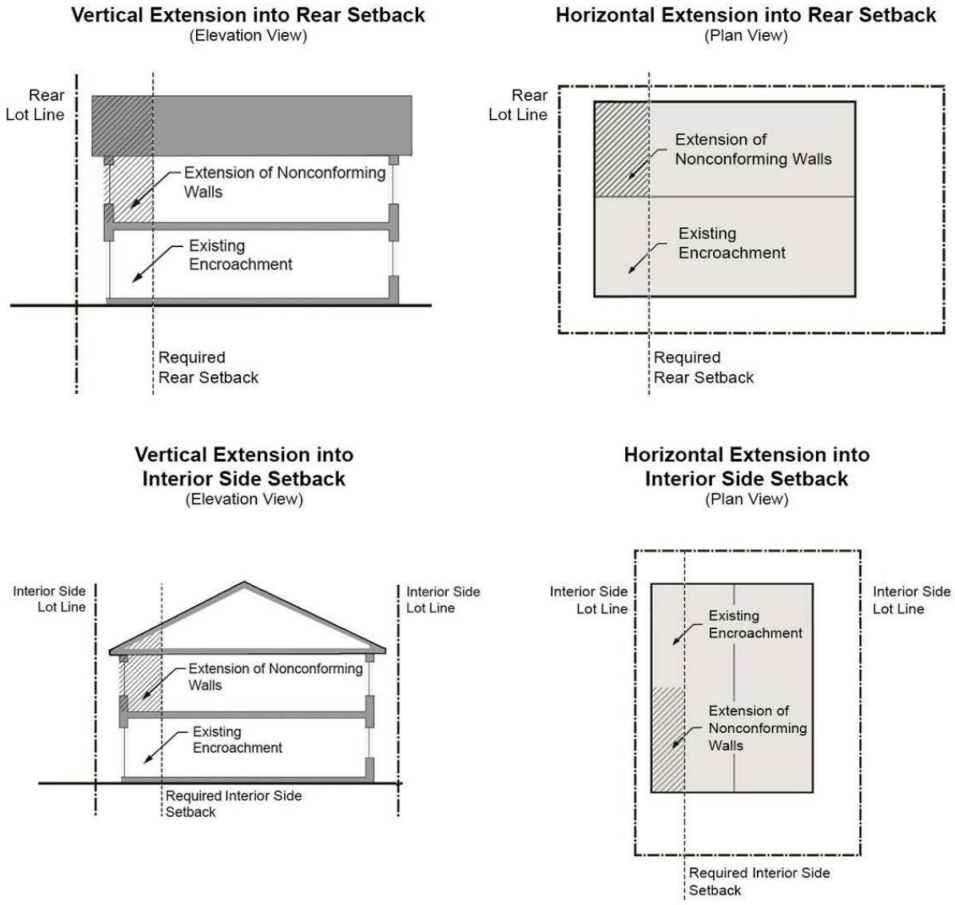
(ii) Surface Parking Lot Location

When a structure does not conform to the required surface parking lot location of the applicable zone, the structure is deemed conforming in regard to that standard and may be expanded or altered without having to conform to parking lot location requirements of the zone until the structure's building footprint is expanded by 50% or more. If expansions to the structure are incremental, this is calculated as the sum total of all expansions that occur after the effective date of this Code. Once the principal structure is demolished, deemed conforming status is null and void.

(e) Extension of Walls for Nonconforming Single-Unit Detached and Two-Unit Dwellings

Where a single-unit detached or two-unit dwelling is deemed nonconforming because a building wall of the principal structure is located within the required rear or interior side setback, the structure may be enlarged or extended horizontally or vertically along the same plane as the existing perimeter building walls, so long as the resulting structure does not violate any other zone regulation.

EXTENSION OF NONCONFORMING WALLS



(f) Fenestration as part of Exterior Modification in a Form-based Code District

A nonconforming structure that does not conform to Sec. 38-698 Measurements and Exceptions, (5) Public Realm, A. Openings shall be allowed to have nonconforming fenestration if the following conditions are met:

•Would not create any new nonconformity or increase the degree of the previously existing nonconformity.

•Meets the intent of the Form-based Code per Sec. 38-692 (5) Intent.

(f) Within the Special Flood Hazard Area Districts.

1. Within the floodway and general floodplain districts, any expansion or enlargement of uses or structures is prohibited.

2. Within all districts, any addition, modification, rehabilitation, repair, or alteration shall be in conformance with the provisions of this ordinance, shall not increase the flood damage potential or increase the degree of obstruction to flood flows, and where applicable, must be protected to the Regulatory Flood Protection Elevation (RFPE).

3. If any nonconforming structure is determined to be substantially damaged or substantially improved on the procedures outlined in the Substantial Damage and Substantial Improvement definitions, it may not be reconstructed except in conformity with the provisions of this ordinance. Any structures located outside the one-percent annual chance floodplain are exempt from this provision.

4. Any alteration, repair, reconstruction or improvements to a building that is not in compliance with the provision of this Ordinance, shall be undertaken only if said non-conformity is not further extended or replaced.

(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14253, § 1, 7-15-25; Ord. No. 14298, § 1, 12-2-25)

Sec. 38-99. Nonconforming Lot

(a) Eligibility

(1) A nonconforming lot of record is a legal lot of record that at one time conformed to the lot dimension requirements of the zone in which it is located, but because of this Code, or a subsequent amendment to this Code, does not conform. This includes nonconformities created by prior zoning codes or amendments to those codes.

(2) A nonconforming lot of record is a legal lot of record as established as follows:

(i) Created by subdivision or plat prior to the effective date of this code (October 20, 2024 Ordinance # 14137).

(ii) Created by deed legally recorded in the Hamilton County Register of Deeds, or any lot legally recorded with the Hamilton County Register of Deeds on or before June 20, 1961.

(b) Use

A nonconforming lot of record may be used for a permitted or special exception use allowed within the zone.

(c) Development

Development of a nonconforming lot of record must meet all applicable dimensional and design regulations of the zone in which it is located with the exception of the lot area and/or width requirement that renders it nonconforming.

(d) Lot Division

No division of a nonconforming lot is permitted that creates a nonconforming lot and/or renders a lot or lots remaining nonconforming.

(e) Lot Consolidation

A nonconforming lot is permitted to consolidate with an adjacent lot, even if such consolidation still does not conform to the lot dimension requirements of the zone in which it is located. Such consolidation is seen as a reduction of the nonconformity.

(f) Common Ownership Limitation

If two or more lots with contiguous street frontage are held in common ownership that have historically been used as a single development site, and one or more of the lots does not meet the requirements for lot width or lot area as established by this Code, the land is considered to be a single zoning lot for the purposes of this Code. No portion of the lots may be used, transferred, or conveyed unless each lot meets the lot width and lot area requirements of this Code.

(g) Building Permits

No building permit will be issued for the use of any lot or portion of a lot, transferred or conveyed in violation of this Article.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24; Ord. No. 14238, § 1, 5-20-25)

ARTICLE XIX. VOLUNTARY INCENTIVES PROGRAM*

Sec. 38-100. Intent

Ordinance No. 14185 created a Voluntary Attainable Housing Incentive Program (VIP) for the purpose of authorizing certain incentives to be provided to property owners who seek to build multi-unit attainable housing pursuant to Tenn. Code Ann. § 13-3-603.

The VIP waives certain zoning and land use requirements for multi-unit developments in exchange for providing rental housing attainable to low- and moderate-income households. This voluntary program is designed to increase the overall number of attainable rental units created in Chattanooga by allowing more efficient permitting and flexible, by-right land use and zoning entitlements for qualifying developments.

The City shall not compel any property owner to participate in the program.

All projects constructed under the Voluntary Incentives Program shall be deed restricted to ensure that the attainable housing continues for a period of 30 years.
(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-101. Applicability

The incentives will apply to any development of five (5) or more attached or semi-attached residential units in any zone permitting development of five (5) or more residential units.

The incentives provided through this program are available to any developer that volunteers to comply with program requirements and provide a certain amount of attainable housing for a period of 30 years.
(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-102. VIP definitions

For the purposes of Article X. Voluntary Incentives Program, the following definitions shall be used:

(a) *Attainable Multi-Unit Housing.* Housing accommodations that are designed principally for residential use and consist of not less than 5 rental units on one site, provided that such units may not be detached, as required by Tennessee State Code, Section 13-3-601.

Attainable housing is defined as income restricted housing providing rents not to exceed one third gross monthly income for a household earning 80% Area Median Income or less. Attainable rents

---

***Editor's note—**Ord. No. 14256, § 1, adopted July 22, 2025, renumbered the former Art. XIX §§ 38-100—38-102 as Art. XX §§ 38-112—38-114 and enacted a new Art. XIX §§ 38-100—38-111 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

will be determined according to the annually updated Department of Housing and Urban Development income and rent limits for the Chattanooga-Hamilton County Metro Statistical Area.

(b) *Area Median Income (AMI).* The Department of Housing and Urban Development (HUD) develops income limits based on Median Family Income estimates at the Metro Statistical Area (MSA) level. The Chattanooga, TN-GA MSA contains the following areas: Catoosa County, GA; Dade County, GA; Walker County, GA; Hamilton County, TN; Marion County, TN; and Sequatchie County, TN.

(c) *Income restricted housing.* Housing units with rents or sales prices set according to a certain AMI level to achieve a certain "level of affordability." Tenants of income-restricted rental units will periodically be required to provide proof of income to demonstrate they qualify for income-restricted housing.

(d) *Program requirement period.* Qualifying developments must remain in compliance with the program requirements for a period of 30 years, following the issuance of a certificate of occupancy.

(e) *Qualifying Development.* Any development of 5 or more attached or semi-attached residential units in Chattanooga City limits within a zone permitting development of 5 or more residential units that have been certified through the process outlined in Sec. 38-108 Certification Process.

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-103. Qualifying Development Types

(a) Type 1—Attainable Multi-Unit Housing - Medium. Any development with 5-9 attached or semi-attached residential units. This may include townhouse developments with 5 or more units.

(b) Type 2—Attainable Multi-Unit Housing - Large. Any development with 10 or more attached or semi-attached residential units.

(c) Type 3—Attainable High Opportunity Development. Any development with 10 or more attached or semi-attached residential units that is located within 500 feet of a CARTA transit stop, AND located within an "A, B, C, or D" market in the most recent Chattanooga Market Value Analysis as designated by the City of Chattanooga Office of Housing and Community Development.

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-104. Program Requirements

To participate in the Voluntary Incentives Program for Attainable Housing, applicants will ensure that they comply with one of the following types of attainable housing criteria and maintain required attainable housing units for a period of 30 years.

(a) Type 1—Attainable Multi-Unit—Medium (5-9 Units)

One (1) or more units must be affordable to households with incomes at or below eighty percent (80%) AMI, according to the most recently available HUD Income Limits. These terms shall be recorded on the deed for the development.

(b) Type 2—Attainable Multi-Unit Housing—Large (10+ Units)

At least ten percent (10%) of all units included on the site must be attainable to households with incomes at or below eighty percent (80%) AMI, according to the most recently available HUD Income Limits. These terms shall be recorded on the deed for the development.

(c) Type 3—Attainable High Opportunity Development (10+ Units)

At least ten percent (10%) of all units included on the site must be attainable to households with incomes at or below eighty percent (80%) AMI, according to the most recently available HUD Income Limits. These terms shall be recorded on the deed for the development.
(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-105. General Requirements

(a) If the number of units required in this section includes less than a whole unit, the unit number is rounded up to the nearest whole unit.

(b) Qualifying developments must remain in compliance with the program requirements for a period of 30 years, following the issuance of a certificate of occupancy.

(c) Tenants residing in attainable units shall be provided equal access to parking and other onsite amenities consistent with what is provided to other tenants.

(d) Income-restricted units shall be comparable to market rate units in quality, size, configuration, and location.

(e) Property owners shall comply with all applicable fair housing laws.

(1) Prior to receiving a certificate of occupancy, applicants must provide documentation of having completed a Fair Housing Training with a nationally certified training organization.

(f) Program participants must verify rents and incomes through a third-party, such as a project management company, affordable housing consultant, or HUD contractor on an annual basis for the first 15 years of the program. See Sec. 38-111 Annual Review and Fees for further information.
(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-106. Incentives

Applicants that have been determined to meet program requirements outlined above through the process outlined in Section 38-104 shall be eligible for the following incentives.

(a) Type 1 Attainable Housing Incentives: Developments that comply with the Type 1 VIP requirements above will be eligible for all of the following incentives:

a. Waiver of off-street Vehicle Parking requirements in Table 12-1: Off-Street Vehicle and Bicycle Parking Requirements and waiver of Off-street Vehicle Parking in the Form Based Code, Sec. 38-741. Vehicle Parking.

i. These waivers shall only apply to non-ADA, residential parking requirements.

ii. Qualifying developments must provide at least .5 parking spaces for every non-ADA housing unit unless less parking is required by the base use or zone.

b. Thirty percent (30%) decrease of minimum lot area standards required for base zoning district.

(b) District Type 2 Attainable Housing Incentives: Developments that comply with the Type 2 VIP requirements above will be eligible for the following incentives:

a. Waiver of off-street Vehicle Parking requirements in Table 12-1: Off-Street Vehicle and Bicycle Parking Requirements and waiver of Off-street Vehicle Parking in the Form Based Code, Sec. 38-741. Vehicle Parking.

i. These waivers shall only apply to non-ADA, residential parking requirements.

ii. Qualifying developments must provide at least .5 parking spaces for every non-ADA housing unit unless parking is required by the base use or zone.

b. Waiver of Interior Parking Lot Landscape Requirements (Section 38-63.C - Parking Lot Landscape).

c. Thirty percent (30%) decrease of minimum lot area standards required for base zoning district.

(c) Type 3 Attainable Housing Incentives: Developments that comply with the Type 3 VIP requirements above will be eligible for the following incentives, including the addition of a height bonus.

a. Waiver of off-street Vehicle Parking requirements in Table 12-1: Off-Street Vehicle and Bicycle Parking Requirements and waiver of Off-street Vehicle Parking in the Form Based Code, Sec. 38-741. Vehicle Parking.

i. These waivers shall only apply to non-ADA, residential parking requirements.

ii. Qualifying developments must provide at least .5 parking spaces for every non-ADA housing unit unless less parking is required by the base use or zone.

b. Waiver of Interior Parking Lot Landscape Requirements (Section 38-63.C - Parking Lot Landscape).

c. Thirty percent (30%) decrease of minimum lot area standards required for base zoning district.

d. Thirty percent (30%) increase of maximum height permitted for base zoning district.

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-107. Parking Minimum Standards.

(a) Applicants shall provide a parking plan as part of their application.

(b) Applicants shall provide the required number of ADA compliant parking spaces, per Section 38-52.d Accessible Spaces Required.

(c) Applicants must provide at least .5 parking spaces for every non-ADA housing unit.

a. This standard shall not apply to permanent supportive housing developments.

b. This standard shall not apply if less parking is required by the base use or zone.

(d) Applicants may utilize one of the following flexible parking options in the zoning code to meet the minimum requirement of .5 non-ADA parking spaces

a. On Street Spaces, per Article 12, Section 3.C, AND/OR

b. Off-site Parking, per Article 12, Section 3.E, AND/OR

c. Collective and Shared Parking per Article 12, Section 3.F

(e) In the Urban Overlay Zone and Form Based Code areas, applicants may also receive one vehicle parking space credit for every two long-term bike parking spaces provided on-site for up to 25% of total required minimum parking. Long-term bicycle parking must be located in an enclosed area providing protection from weather and must be accessible to intended users.

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-108. Certification Process

Per Tennessee State Code, Tenn. Code Ann. § 13-3-603 Applicants are required to provide written notice of interest for consideration under the program to the Office of Housing and Community Investment (HCI) within the Office of Economic Development and to the Regional Planning Agency (RPA). The City shall not compel any property owner to participate in the program.

(a) Upon receipt of a potential applicant's written notice of interest by the planning commission staff, a pre-application conference shall be held between the HCI and the Regional Planning Agency and the potential applicant before a complete application for housing incentives is filed. The purpose of the pre-application conference is to determine whether a potential project satisfies all of the requirements set out in the ordinance created under § 13-4-402 and program requirements within this section of the Zoning Code.

(b) Upon the conclusion of the pre-application conference, the Regional Planning Agency either:

a. Determine the proposed project satisfies the requirements to receive housing incentives as set out in the ordinance established under § 13-4-402, and thereafter prepare a conference summary document that shall include at a minimum

i. the parameters of the project, including the timeframe for completing the project,

ii. the incentives being offered,

iii. a finding that the potential project conforms to the ordinance and state law, and

iv. a recommendation to the planning commission; or

b. Determine that the proposed project does not conform to the ordinance and state law or that the property owner is no longer interested in participation in the Voluntary Incentives Program. When the proposed project is determined to not meet the requirements of the ordinance, the property owner may either request another meeting within 60 days of the pre-application conference or move forward with the proposed project without the requested incentives.

c. Any finding referenced in Sec. 38-108(b)(a) by the Regional Planning Agency is not binding and does not create any vested property rights for the property owner.

(c) Upon receipt of the pre-application conference summary document, the potential applicant may submit a complete application and applicable fee to the Chattanooga-Hamilton County Regional Planning Commission for participation in the Voluntary Incentives Program.

a. Such an application shall include a copy of the pre-application conference summary document and an attestation that the applicant is willingly participating in a voluntary program and will construct and complete the project in a manner outlined and reviewed in the pre-application conference.

b. The applicant must submit a completed application to the planning commission within one hundred twenty (120) days of receiving the pre-application conference summary document for the completed application to be considered.

c. VIP applications before the Regional Planning Commission are not subject to the requirements of Sec. 38-72 Notice. VIP applications shall be individually listed as part of the Regional Planning Commission legal notice.

(d) The Planning Commission shall make the final decision on whether to approve the completed application at the next available public meeting after the completed application is submitted.

a. For the purposes of this Article, "next available public meeting", is the one following the submittal of a completed application, payment of fee(s), and availability to add to a Planning Commission agenda and advertise as such.

b. Planning Commission shall review the completed application to determine if it is compliant with the parameters of the pre-application conference summary document. If the completed application is determined to be within the parameters of the pre-application conference summary document, the completed application shall not be denied based on any provisions set out in the document.

c. Planning Commission may deny the application based upon any legal issue subsequently identified during the review of the completed application.

i. An applicant may correct the legal issue and be placed on a future agenda.

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-109. Deed Restrictions

(a) All multi-family facilities, buildings and structures constructed under the Voluntary Incentives Program shall be deed restricted to ensure that the attainable housing continues for a period of 30 years

(1) Deed restrictions shall be reviewed by Office of Housing and Community Development and approved for recording by that office prior to recording of the deed by the applicant.

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-110. Appeals

(a) Any reduction in landscaping, parking, height or lot size received through the VIP and approved by the Chattanooga-Hamilton County Regional Planning Commission is not subject to additional reduction in the applicable standard from the Board of Zoning Appeals.

(b) The action of the Regional Planning Commission shall be final, provided an appeal from the action of the Commission may be taken to Hamilton County Chancery Court by any aggrieved, affected party.

(Ord. No. 14256, § 1, 7-22-25)

Sec. 38-111. Annual Review and Fees

(a) All qualifying developments shall be deed restricted to ensure that the attainable housing requirements are maintained for a period of 30 years, in accordance with Tenn. Code Ann. § 13-3-603(f).

(b) Housing and Community Investment (HCI) staff will monitor rents and incomes on an annual basis for the first 15 years of the program. After 15 years of operation, HCI will request rent and income verification periodically at a frequency of not less than every 5 years.

(c) Program participants must submit rent and income verification for all units contributing to eligibility for this program. The Housing and Community Investment (HCI) division shall handle ongoing monitoring and compliance for affordability requirements for this program, and communications regarding compliance documentation will be provided by HCI.

(1) In accordance with the City of Chattanooga's Program Compliance Policies and Guidelines, documents verifying incomes and rents for attainable units must be provided through a third party, such as a project management company, affordable housing consultant, or HUD contractor.

(d) Properties found to be out of compliance with committed attainable rents and unit counts will be subject to a penalty fee of $5,000 per non-compliant unit per year of noncompliance, which shall be collected and placed in the Chattanooga Affordable Housing Fund.

Developments participating in the Voluntary Incentives Program are subject to the landscaping reductions as detailed in Article XIX. Voluntary Incentives Program, Sec. 38-106 Incentives.

(Ord. No. 14256, § 1, 7-22-25)

ARTICLE XX. ENFORCEMENT*

Sec. 38-112. Enforcement Official

(a) The Director of the Land Development Office is designated as the enforcement official of this Code and is authorized to enforce this Code.

(b) The Director of the Land Development Office may secure the assistance of the City Attorney to seek an injunction, abatement, or other appropriate actions to enjoin, abate, or stop any violation of this Code. At times, the aid of the Police Department may be sought to enforce this Code. The property owner charged with the violation may be held responsible for any legal expenses incurred by the City.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-113. Application of Penalties

Any person, firm, or corporation who violates, disobeys, omits, neglects, or refuses to comply with, or who resists the enforcement of any of the provisions of this Code, upon conviction, will be fined for each offense. Each day that a violation continues constitutes a separate offense for the purposes of the penalties and remedies available to the City. The accumulation of penalties for violations, but not the obligation for payment for violations already committed, ceases upon correction of the violation.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

Sec. 38-114. Fines

Each violation is subject to a fine. Each individual successive day the violation continues is subject to an additional daily fine.
(Ord. No. 14137, § 1, 7-23-24; Ord. No. 14138, § 1, 7-23-24)

***Editor's note—**See editor's note at Art. XIX.

Appendix A

CITY BOUNDARIES

CITY OF CHATTANOOGA BOUNDARIES COMPOSITE DESCRIPTION OF THE CORPORATE LIMITS OF THE CITY OF CHATTANOOGA, TENN., SEPTEMBER 28th, 1967.

To locate the point of beginning for the latest composite description of the corporate limits of the City of Chattanooga, Hamilton County, Tennessee, as of September 28th, 1967, proceed from a point on the line between Townships 2 and 3, Range 4, west of the Basis Line, Ocoee District, where said line crosses the low water mark on the east side of the Tennessee River at this point, thence proceed down the said river on said low water mark to a point one hundred feet (100') westwardly from the low water mark of Chattanooga Creek. This last designated point in the low water mark of the existing south side of the Tennessee River, is now designated as the point of beginning of this above-named corporate limits description.

Thence, proceed southwardly parallel with the quarter section line to the south side of Lookout Mountain Pike, known as Cummings Highway, or known as Federal Routes #11; #41 and #64. Thence, eastwardly along the south line of said Lookout Mountain Pike, etc., to the point at which said line intersects the northwest boundary line of St. Elmo as set out in Chapter 250 of the Private Acts of 1911; thence with the said St. Elmo line in a southerly direction to the section corner between Sections 8 and 9, 17 and 16; thence southwardly along the section line between the said Sections 16 and 17, 20 and 21, to the state line between Tennessee and Georgia; thence eastwardly with said State Line to the centerline of South Crest Road or Government Boulevard, said point being the western line of the Town of East Ridge; thence northwardly along the centerline of South Crest Road or Government Boulevard, said point being the western line of the Town of East Ridge; thence northwardly along the centerline of South Crest Road to its intersection with a centerline of John Ross Road; thence northeastwardly along the centerline of John Ross Road to the western boundary line of the Town of East Ridge as described in Chapter 569, Private Acts 1921 of General Assembly of the State of Tennessee. Thence northwardly along said western boundary line of the Town of East Ridge to the north line of Sunrise Terrace; thence westwardly along the north line of Sunrise Terrace, said line being the corporate line of the Town of East Ridge, to the west line of Lot 3, to the northwest corner of said lot; thence westwardly along the south corporate line of the Town of East Ridge as described in Chapter 569, Private Acts of 1921, of the General Assembly of the State of Tennessee, to a point in the eastern corporate line of the City of Chattanooga, as described in Chapter 480, Private Acts of 1929, of the General Assembly of the State of Tennessee, and in Ordinance 4333, said line being the eastern boundary line of the 14th Ward.

Thence northwardly along the east corporate line of the City of Chattanooga, said line being east boundary line of the 14th Ward, and said line being five hundred (500) feet east of and parallel to the east line of South Crest Road to a point, said point being the centerline of Navajo Drive extended westwardly; thence eastwardly along said Navajo Drive centerline extended, and eastward along the actual centerline of Navajo Drive, to the centerline of South Germantown Road, said line being the northern boundary line of the Town of East Ridge. Thence southwardly along the centerline of South Germantown Road to its intersection with the centerline of Anderson Avenue; thence eastwardly along centerline of Anderson Avenue, and the centerline of Anderson Avenue extended to the centerline of Spring Creek, said line being the north boundary line of the Town of East Ridge, as described in Chapter 569, Private Acts of 1921 of the General Assembly of the State of Tennessee, thence along said north boundary line of the Town of East Ridge to a point being in the low water mark on the north bank of South Chickamauga Creek, thence northwardly and eastwardly along the north bank of said creek to a point, said point being the western line of Hickory Valley Road extended southwardly; thence northwardly along said western line of Hickory Valley Road extended, and the western line of Hickory Valley Road to a point in the northeast corner of Marimont Subdivision, said point is the north line of the Van Ness Road extended; then westwardly along the north line of Marimont Subdivision and the north line of Van Ness Road extended, and the north line of Van Ness Road extended westwardly to an intersection of the east right-of-way line of the Western and Atlantic Railroad, thence northwardly along the east line of the Western and Atlantic Railroad to a point, said

point being the north property line extended eastwardly of the Chattanooga municipal airport property; thence westwardly along the northern line of the Chattanooga municipal airport property to the northwest corner of said Chattanooga municipal airport, said point being in the south bank of South Chickamauga Creek. Thence northwardly across South Chickamauga Creek to the north bank, thence in a southwestwardly direction along meandering west bank of South Chickamauga Creek to a point, said point being the south line of Shawhan Road, and said line extended, thence westwardly along the south line of Shawhan Road and said line extended to a point 1,205 feet east of the east line of North Moore Road, thence north 23 degrees and 35 minutes east a distance of 367 feet, more or less, to a point; thence to the left and north 66 degrees and 23 minutes west a distance of 108.5 feet, more or less, to a point of intersection with the former and existing corporate limits of Chattanooga, Tennessee. Thence to the right and north 23 degrees and no minutes east along the said former and existing corporate limits of Chattanooga, Tennessee, a distance of four thousand three hundred thirty-six and 58/100ths feet (4,336.58'), more or less, to a point; thence north 67 degrees west (N. 67° W.), six hundred feet (600'), more or less, to a point at the low water mark of the South Chickamauga Creek; thence westwardly along the low water mark of said creek to a point, said point being three hundred feet (300'), west of and perpendicular to the centerline of the new Shallowford Road or (Wilcox Boulevard extended); thence southwardly and westwardly along a line three hundred feet (300') from and parallel to said Shallowford Road to a point, said point being in the east line of Agwela Drive or (Agwela Drive extended, as shown by plat of record, known as Indian Hills, as recorded in the Register's office, Hamilton County, Tennessee, in Plat Book 19, Page 2); thence north-westwardly along the northeast line of said Agwela Drive to the southeast boundary line of said Indian Hills (Wilcox Place Development). Thence north 23° 10' east along the said southeast boundary to the low water mark of South Chickamauga Creek; thence westwardly and northwardly along the low water mark of South Chickamauga Creek to the east boundary line of Mark Twain Hills Subdivision as shown by Plat of Record in Plat Book 17, Page 92, of the Register's office of Hamilton County, Tennessee; thence northwardly along the east boundary of said Mark Twain Hills Subdivision and said line extended to the east right-of-way line of the Tennessee Valley Authority Electric Power Board transmission line, said line being the eastern boundary line of Rollingwood Addition to Hillsboro Heights, a subdivision as recorded in Plat Book 18, Page 86, in the Register's office of Hamilton County, Tennessee, to the northeast corner of said Rollingwood Subdivision to Hillsboro Heights; thence northwardly along the east line of Juandale Trail, said line being the eastern boundary line of Rollingwood Addition and as described in Ordinance 4346 and 5011 (See Plats E-2-145 and E-1-307), north 23° and 15' west, 575' to a point in the northern boundary line of said Rollingwood Addition; thence northwardly 52° west, 983 feet to a point in the said Rollingwood Addition; thence south 22° 46' west, 825 feet along the western boundary line of said Rollingwood Addition to a point, said point being the northwest corner of Rollingwood Addition to Hillsboro Heights, said point being also the northeast corner of Rollingwood Addition to Hillsboro Heights, said point being also the northeast corner of Hemingway Gardens; thence westwardly along the northern boundary line of Hemingway Gardens; thence westwardly along the northern boundary line of Hemingway Gardens, a subdivision recorded in Plat Book 18, Page 91, Register's office, Hamilton County, Tennessee, to a point in the western line of Dogwood Drive; thence southwardly along the west line of Dogwood Drive to northwest corner of Dogwood Drive and Jeanaga Trail, as shown by plat recorded in Plat Book 17, Page 60, Register's office, Hamilton County, Tennessee, said plat being a subdivision of Lot 12, Hillsboro Heights No. 6, Block A; thence westwardly along the north line of Jeanaga Trail and the north line of Lot 1, of said Hillsboro Heights No. 6, to a point; thence south 23° 00' west one hundred ninety-seven feet (197') to a point, said point being the northeast corner of Hillsboro Heights No. 2, and Second Addition to Hillsboro Heights No. 2, as shown by plat of record in Plat Book 14, Page 70, Register's office, Hamilton County, Tennessee; thence westwardly along the north line of said Hillsboro Heights No. 2, and second addition to Hillsboro Heights No. 2 to a point, said point being the southeast corner of Wilcox Woods, thence northwardly and westwardly along the north and east boundary line of Wilcox Woods, to the northeast corner of Lot 15, of the subdivision of a part of R. W. Ward, an unrecorded subdivision; thence westwardly along said Lot 15 of the R. W. Ward property to the eastern right-of-way line of Tunnel Boulevard; thence southwardly along the east line of Tunnel Boulevard to a

point, said point being the northern boundary line of an unrecorded subdivision line extended east to said point; thence westwardly along said northern boundary line of an unrecorded subdivision which is the northern line of Lots 4, 5, 6 and 7, said line being 209', more or less, north of and parallel to the northern right-of-way line of Breit Street, to a point which is the center point of Section 13, T-2, Range 4 West; and is also the northeast corner of the southwest quarter of said Section 13. Thence proceeding westwardly along the north line of the Southwest Quarter Section to a point in the western line of Greenwood Road, said point being in the eastern boundary line of Ridgewood Acres; thence northwardly along the western line of Greenwood Road to the northeast corner of Ridgewood Acres; thence westwardly along the northern boundary line of Ridgewood Acres Subdivision and said line extended to a point in the east boundary line of the 12th Ward, said line being the east corporate limits of the City of Chattanooga. Thence northwardly along the said boundary line of the 12th Ward, and the corporate line of the City of Chattanooga as described in Chapter 480, Private Acts of 1929 (House Bill #965, Page 1284), General Assembly of the State of Tennessee. Thence northwardly along the corporate line, said line being 500' east of the intersection of Campbell Street and Crest Road; thence northwardly along the line parallel with and 500' east of Campbell Street to a point on a line parallel with and 500' south of Cleveland Pike; thence eastwardly along said line parallel with and 500' south of Cleveland Pike to a point 500' south of the intersection of Cleveland Pike and Durand Avenue. Thence northwardly along a section line, being the centerline of Durand Avenue and Durand Avenue extended to the intersection of said line with the south line of 12th Avenue extended; thence westwardly along the said south line of 12th Avenue extended to the intersection of said line with the west boundary line of the right-of-way of the Cincinnati Southern Railway; thence southwardly along the said west boundary line of said right-of-way to the north line of 7th Avenue; thence westwardly along the north line of 7th Avenue to the west line of 2nd Street; thence southwardly along the west line of 2nd Street to the north side of 3rd Avenue; thence west along the south side of 3rd Avenue to the point at which the said line intersects the east line of Riverside Drive; thence southwardly along the east line of Riverside Drive to Citico Creek; thence down Citico Creek to low water mark of the Tennessee River; thence down said Tennessee River at the low water mark to the centerline of Lauderdale Drive extended; thence northwardly along the centerline of Lauderdale Drive extended to the low water mark in the north bank of the Tennessee River. Thence eastwardly, northeastwardly and northwardly along the meandering of the low water mark of the Tennessee River to the northern boundary line of the John A. Patten line; thence westwardly along the north boundary line of the John A. Patten property to the east line of Hixson Road; thence northwestwardly, northwardly and northeastwardly with the east line of Hixson Road to the intersection of said line with the north line of Altamont Road on the Dallas Heights Plat; thence westwardly along the north line of the Altamont Road to its present terminus at or near White Oak Road; thence westwardly in a straight line to the nearest point on a line parallel with and three hundred feet (300') west of White Oak Road; thence southwardly along said line parallel with and three hundred feet (300') from the west line of White Oak Road to the north line of Berkley Hills Subdivision, being the north line of a tract which was annexed to the Town of North Chattanooga in Chapter 418 of the Private Acts of 1927. Thence westwardly with said north line of the Berkley Hills Subdivision to the northwest corner of Lot 12, in Block C of said subdivision; thence southwardly along the west line of said Berkley Hills subdivision to the north line of the Z. W. Wheland Tract, being the north line of the Town of North Chattanooga as fixed by Chapter 383 of the Private Acts of 1925; thence westwardly with said north line of Z. W. Wheland Tract to the west line of Hamilton Avenue; thence southwardly along the west line of Hamilton Avenue about one thousand feet (1,000') to the northeast corner of Lot 31, Spears Addition. Thence westwardly along the south line of George Street about eight hundred fifty feet (850') to the north line of the Smartt Addition; thence westwardly along the north line of Smartt Addition about five hundred fifty feet (550') to the northwest corner of said Smartt Addition; thence southwardly along the west line of said Smartt Addition about two thousand one hundred fifty feet (2,150') to the northeast corner of the S. R. Read 2.8 acre tract; thence westwardly along the north line of said tract to the west side of the Tunnel Road (called Cherokee Boulevard or Bell Avenue); thence southwardly with the west side of the said Cherokee Boulevard to a point opposite the southeast corner of Lot 6 of North Boulevard Circle; thence westwardly along the south line of said Lot 6 to the east side of a road in said North

Boulevard Circle (said road being the west boundary line Lot 6); thence southwardly along the east side of said road to the north line of the Old Stringer Road; thence westwardly with said line to the east side of Euclid Avenue; thence southwardly along the East Side of Euclid Avenue about two thousand five hundred feet (2,500') to the north side of White Hall Subdivision; thence eastwardly along the south line of Manning Street and said street extended to a point one hundred sixty feet (160') west of Riverside Road; thence at right angles southwardly about six hundred feet (600') to the south line of Riverside Road; thence southwestwardly along the south right-of-way line of Riverside Road or Avenue, to an intersection of the present south right-of-way line of Riverside Road or Avenue, with the existing eastward right-of-way line of the present Manufacturers Road; thence to the right and in a northwestwardly direction across and perpendicular to the centerline of the existing Riverside Road or Avenue, to an intersection with the existing northwestward right-of-way line of said Riverside Road or Avenue; thence to the left in a southwestward and westward direction along the existing northward right-of-way line of said Riverside Road or Avenue, and said right-of-way line extended to an intersection with the westward existing right-of-way line of the present Moccasin Bend Road. Thence to the left and in a southwestwardly direction along the existing westward right-of-way line of said Moccasin Bend Road to a point which is the northeast corner of the existing Moccasin Bend treatment plant property, which point is described as being an old iron pipe stake in the western line of the Moccasin Bend Road at the southeastern corner of the property conveyed to Bessie Juanita Kirk on February 24th, 1945. Thence to the right on a bearing of north seventy-seven degrees and thirty-five minutes west (77° 35'), along the southern line of the said Kirk tract, which line is also the existing north property line of the before-mentioned Moccasin Bend treatment plant property conveyed by warranty deed from the Chattanooga Estates Company to the City of Chattanooga, a Municipal Corporation of the State of Tennessee, and as recorded on July 10th, 1953, in Book #1110, Page 641, Register's office of Hamilton County, Chattanooga, Tennessee. Thence proceeding along the above-mentioned northern property line of said Moccasin Bend treatment plant property a distance of twenty-two hundred seventy-four and 6/10ths feet (2,274.6'), to the eastern bank of the Tennessee River at this point, marked by a railroad spike in the then existing root of a twenty inch (20") willow stump, said spike marking the northwest corner of the aforesaid Moccasin Bend treatment plant property; thence extending the aforesaid northern property line to the point of intersection with the low water mark of the east bank of said Tennessee River at this point; thence at this point turn left and in a southwardly direction upstream and along the meanderings of the low water mark of the eastern bank and north bank of said Tennessee River to a point of intersection with the northern extension of the present existing most western corporate limits of the City of Chattanooga, said imaginary line being one hundred feet (100') westwardly from the low water mark of Chattanooga Creek which empties into the south side of said Tennessee River at his point, parallel with the quarter section line running north and southward. Thence to the right and southwardly across the said Tennessee River from the low water mark of its north bank to a point of intersection in the low water mark on the south bank of the Tennessee River, on a line parallel with the aforesaid quarter section line. This point of intersection is the designated point of beginning for this composite description of the corporate limits of the City of Chattanooga, Tennessee, as of this September 28th, 1967.

ANNEXATION ORD. NO. 5839,
ENACTED OCT. 3, 1967

Under the authority conferred by Chapter No. 113, Public Acts of 1955, as amended (Sections 6-308 through 6-319, Tennessee Code Annotated), there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area hereinafter described as follows:

Beginning at a point that is the intersection of the southerly control-of-access line of Interstate 24 and the westerly city limits line of Chattanooga, Tennessee, thence northwesterly and westerly along the control-of-access line of Interstate 24 to a point that is the intersection of the east right-of-way of Brown's Ferry Road and the control-of-access line of Interstate 24; thence across Brown's Ferry Road to a point that is the intersection of the western right-of-way line of Brown's Ferry Road and the southerly control-of-

access line of Interstate 24; thence west along the control-of-access line of Interstate 24 to a point that is the intersection of the control-of-access line and the south-western right-of-way of Parkers Lane; thence north-westerly to a point that is the intersection of the southwestern right-of-way of Parkers Lane and the north control-of-access line of Interstate 24; thence north-easterly along the north control-of-access line of Interstate 24 to a point that is the intersection of the control-of-access line of Interstate 24 and the west right-of-way of Brown's Ferry Road; thence northeasterly along the west right-of-way of Brown's Ferry Road and the control-of-access line of Interstate 24 to a point that is the intersection of the southwestern right-of-way of Browndell Road and the control-of-access line of Interstate 24; thence east to a point that is the intersection of the east right-of-way of Brown's Ferry Road and the north control-of-access line of Interstate 24; thence easterly along the north control-of-access line of Interstate 24 to a point that is the intersection of the west high water line of Lookout Creek and the north control-of-access line of Interstate 24; thence north, crossing the Tennessee River, to the existing city limits of Chattanooga, Tennessee; thence southeasterly and southerly along the existing city limits of Chattanooga, Tennessee, to the point of beginning, containing approximately 61 acres of land area. Said area is shown as "l-A" on Map B-B, Numbers 1294.2 through 1294.7 on file in the office of the city auditor.

ANNEXATION ORD. NO. 5853,
ENACTED DEC. 5, 1967

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (Sec. 6-308 thru 6-319 T.C.A.), there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city the area known as the H. E. DeLay Property in the Second Civil District of Hamilton County, Tennessee, contiguous to the corporate boundaries of said city, which territory is fully described as follows:

BEGINNING at a point of intersection of the south property line of the former Samuel M. Morris and wife Tract #1 and the existing Chattanooga Corporate Limits' line, said point being five hundred thirty feet (530'), more or less, eastward from the existing southwest corner of said former Morris Tract #l. This beginning point is also three hundred sixty-seven feet (367'), more or less, north from the south line of the present Shawhan Drive, and said point is also the original or former point of intersection of the southern corporate limits' line with the eastern corporate limits' line at this point.

Thence proceeding northward along the present eastern corporate limits' line from this described beginning point on a bearing of North 23° 00' east, a distance of three hundred thirty feet (330'), more or less, to a point of intersection with the northern line of the said former Samuel M. Morris and wife Tract #l. This point will be known as the northwest corner of this described "Out of the City Portion" of the said former Morris Tract.

Thence to the right on an angle of about ninety degrees (90°) and on a bearing of South 67° East, a distance of one hundred eight and five-tenths feet (108.5') to a point which will be known as the northeast corner of this described "Out of the City Portion" of former Morris Tract. Thence on an angle of about ninety degrees (90°) to the right, and on a bearing of South 23° 00' West, which is one hundred eight and five-tenths feet (108.5'), more or less, perpendicular from and parallel with the present eastward Chattanooga Corporate Limits at this point, a distance of three hundred thirty feet (330'), more or less, to the point of intersection with the south property line of said former Morris Tract #1, being also the north property line of the former portion of the A. E. Barnett property. This point of intersection will be known as the southeast corner of this described "Out of the City Portion" of said Morris Tract, and is the northeast corner of the present intersection of the existing east and north Chattanooga Corporate Limit lines.

Thence to the right at an angle of about ninety degrees (90°) and on a bearing of North 67° 00') West, +/- along the present North Corporate Limits, being the south property line of this described "Out of the

City Portion" of said former Morris Tract #l, a distance of one hundred eight and five-tenths feet (108.5'), more or less, to a point of intersection with the present Eastern Line of the Chattanooga Corporate Limits, said point being the southwest corner of this described "Out of the City Portion" of said former Samuel M. Morris and wife Tract #1, and is the point of beginning, all as shown on Drawing A-2-80-A, on file in the Office of the City Engineer of Chattanooga, Tennessee.

ANNEXATION ORD. NO. 5878,
ENACTED MARCH 19, 1968

Under the authority conferred by Chapter No. 113, Public Acts of 1955, as amended (Section 6-308 thru 6-319, Tennessee Code Annotated), there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the areas hereinafter described as follows:

Description of area 2A boundaries.

BEGINNING at a point that is the intersection of the south control-of-access line of Interstate 75 and the eastern city limits line of the City of Chattanooga, Tennessee; thence northeasterly along the eastern city limits of Chattanooga, Tennessee, crossing interstate 75 to a point that is the northeast corner of the existing city limits line in the vicinity of Hickory Valley Road; thence northwesterly along the existing city limits line a distance of 1160 feet, more or less, to a point that is the southeast corner of property now or formerly owned by Rachel Shafner; thence northeasterly along the southeastern side of the property now or formerly owned by Rachel Shafner and continuing along the southeastern boundary of the property now or formerly owned by Lewis Conner to the southwest control-of-access line of Tenn. Highway 153 continuing northeast to a point that is the intersection of extension of the previously described line and the northeast control-of-access line of Term. Highway 153; thence southeasterly along the north control-of-access line of Tenn. Highway 153 and north easterly along the north-western control-of-access line of Interstate 75 to a point that is the intersection of the northwest control-of-access line of Interstate 75 and the south right-of-way of McCutcheon Road; thence southeasterly along the south right-of-way of McCutcheon Road extended to a point that is the intersection of the southeast control-of-access line of Interstate 75 and the south right-of-way of McCutcheon Road; thence southwesterly along the southeast control-of-access line of Interstate 75 to a point that is the intersection of the north right-of-way line of East Brainerd Road and the southeast control-of-access line of Interstate 75; thence crossing East Brainerd Road to a point that is the inter-section of the south right-of-way line of Interstate 75; thence southwesterly along the south control-of-access line of Interstate 75 to the point of beginning.

Description of area 2B boundaries.

BEGINNING at a point that is the intersection of the south right-of-way of Chickamauga Loop and the northeastern City Limits of the City of Chattanooga, Tennessee; thence southerly and southwesterly along the northeastern City Limits line of the City of Chattanooga, Tennessee, crossing Lee Highway to a point that is the intersection of the City Limits line and the southwesterly extension of the southeastern property line of property now or formerly owned by Rachel Shafner; thence northeasterly along the southeast property line of property now or formerly owned by Rachel Shafner and the southeast property line of property now or formerly owned by Lewis Conner to the southwest control-of-access line of Tennessee Highway 153, continuing northeast to a point that is the intersection of an extension of the previously described property line and the north control-of-access line of Tenn. Highway 153; thence northwesterly along the northeast control-of-access line of Tenn. Highway 153 to a point that is the intersection of the northeast control-of-access line of Tennessee Highway 153 and the southeast right-of-way line of Lee Highway; thence northwest across Lee Highway to a point that is the intersection of the northwest right-of-way line of Lee Highway and the northeast control-of-access line of Tennessee Highway 153; thence northwesterly along the northeast control-of-access line of Tenn. Highway 153 to a point that is the intersection of the northeastern control-of-access line of Tenn. Highway 153 and the southwest

right-of-way of Fisk Avenue; thence northwesterly along the southwest right-of-way of Fisk Avenue extended to a point that is the intersection of the southwest right-of-way of Fisk Avenue and the southwest control-of-access line of Tenn. Highway 153; thence southerly along the west control-of-access line of Tenn. Highway 153 to a point that is the southeast corner of the property now or formerly owned by John C. Conner; thence northwest along the northeast property line of property now or formerly owned by John C. Conner to the intersection of the southeast right-of-way of Vance Road; thence northwest to the northwest right-of-way of Vance Road, to a point that is the southeast property corner of property now or formerly owned by the City of Chattanooga, Tennessee; thence northwesterly along the southwest property line of property now or formerly owned by the City of Chattanooga, Tennessee, and continuing northwest along the southwest boundary line of the DuPree Subdivision to a point that is the northwest corner of property now or formerly owned by Pryor E. Bacon; thence southwest along the northwest property line of property now or formerly owned by Pryor E. Bacon to a point that is located on the northwest property line of property now or formerly owned by Pryor E. Bacon and is the southeast corner of property now or formerly owned by William Henderson; thence north and northwest along the east and north boundary lines of the property now or formerly owned by William Henderson to a point that is the north corner of the property now or formerly owned by William Henderson and is located on the south right-of-way of Chickamauga Loop; thence southwesterly along the south right-of-way of Chickamauga Loop to the point of beginning.

Description of area 2C boundaries.

BEGINNING at a point that is the intersection of the south right-of-way of Chickamauga Loop and the northeastern City Limits of the City of Chattanooga, Tennessee; thence in a northwesterly direction along the existing City Limits line of the City of Chattanooga, Tennessee, to a point that is the intersection of the existing City Limits line and the west right-of-way of Wilcox Boulevard; thence northeasterly along the west right-of-way of Wilcox Boulevard to a point that is the intersection of the west right-of-way of Wilcox Boulevard and the west right-of-way of Shallowford Road; thence northeast along the west right-of-way of Shallowford Road to a point that is the intersection of the west right-of-way of Shallowford Road and the west right-of-way of Cromwell Road; thence northeast along the west right-of-way of Cromwell Road a distance of 2400 feet; thence easterly along a line that is located 2400 feet north of and parallel to the north right-of-way of Shallowford Road, crossing Jersey Pike and Tenn. Highway 153 to a point that is the inter-section of the aforesaid line and the west property line of property known as Lake Brook Heights Subdivision; thence south along the west property line known as Lake Brook Heights Subdivision to a point that is the northwest corner of property now or formerly owned by C. M. Yarnell; thence south to a point that is the southwest corner of property now or formerly owned by C. M. Yarnell and the northwest corner of property now or formerly owned by J. B. Horn; thence south to a point that is the southwest corner of the property now or formerly owned by J. B. Horn; thence in a southerly direction to a point that is located 900 feet, more or less, west of the west right-of-way of Noah Reid Road as measured along the north right-of-way of Shallowford Road, said point being the northernmost corner of the north right-of-way of Shallowford Road; thence south crossing Shallowford Road to a point that is the northwest corner of the property now or formerly owned by The Title Guaranty and Trust Co.; thence south along the west property line of property now or formerly owned by The Title Guaranty and Trust Co. to a point that is the southwest corner of property now or formerly owned by The Title Guaranty and Trust Co. and continuing in a southerly direction along a line that is located 850 feet west of and parallel to the west right-of-way of Shepherd Road and Shepherd Road west to a point that is the intersection of the aforementioned line and the easterly control-of-access line of Tenn. Highway 153; thence southeasterly along the east control-of-access line of Tenn. Highway 153 to a point that is the intersection of the east control-of-access line of Tenn. Highway 153 and the north right-of-way of Shepherd Road; thence southeast crossing Shepherd Road to a point that is the inter-section of the south right-of-way of Shepherd Road and the east control-of-access line of Tenn. Highway 153; thence southerly along the east control-of-access line of Tenn. Highway 153 to a point that is the intersection of

the northeast control-of-access line of Tennessee Highway 153 and the southwest right-of-way of Fisk Avenue; thence northwesterly along the southwest right-of-way of Fisk Avenue extended to a point that is the intersection of the southwest right-of-way of Fisk Avenue and the southwest control-of-access line of Tenn. Highway 153; thence southerly along the west control-of-access line of Tenn. Highway 153 to a point that is the southeast corner of property now or formerly owned by John C. Conner; thence northwest along the northeast property line of property now or formerly owned by John C. Conner to the intersection of the southeast right-of-way of Vance Road; thence northwest to the northwest right-of-way of Vance Road to a point that is the southeast property corner of property now or formerly owned by the City of Chattanooga, Tennessee; thence northwesterly along the southwest property line of property now or formerly owned by the City of Chattanooga, Tennessee, and continuing northwest along the southwest boundary lines of the DuPree Subdivision to a point that is the northwest corner of property now or formerly owned by Pryor E. Bacon; thence southwest along the northwest property line of property now or formerly owned by Pryor E. Bacon to a point that is located on the northwest property line of property now or formerly owned by Pryor E. Bacon and is the southeast corner of property now or formerly owned by William Henderson; thence north and northwest along the east and north boundary lines of the property now or formerly owned by William Henderson to a point that is the north corner of the property now or formerly owned by William Henderson and is located on the south right-of-way line of Chickamauga Loop; thence southwesterly along the south right-of-way line of Chickamauga Loop to the point of beginning.

Each of the foregoing described areas are shown on Map BB on file in the Office of the City Auditor and is attached to and made a part of this Ordinance by reference.

ANNEXATION ORD. NO. 5879,
ENACTED MARCH 9, 1968

Under the authority conferred by Chapter No 113, Public Acts of 1955, as amended (Section 6-308 thru 6-319, Tennessee Code Annotated), there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the areas hereinafter described as follows:

Description of area 3A boundaries.

BEGINNING at a point which is the intersection of the eastern City Limits line of the City of Chattanooga, Tennessee, and the right hand bank, facing upstream, of the Tennessee River; thence north-easterly along the existing City Limits line of the City of Chattanooga, Tennessee, to a point that is the inter-section of the existing City Limits line of the City of Chattanooga, Tennessee, and the eastern right-of-way line of the Southern Railroad; thence northeast along the eastern right-of-way line of the Southern Railroad to a point that is the intersection of the eastern right-of-way line of the Southern Railroad and the north right-of-way line of North Wilder Street; thence northeast to a point that is the intersection of the eastern right-of-way of the Southern Railroad and the southern right-of-way of Amnicola Highway; thence northerly along the eastern right-of-way line of the Southern Railroad to a point that is the intersection of the eastern right-of-way of the Southern Railroad and the right hand bank facing upstream, of the Tennessee River; thence north along the eastern right-of-way line of the Southern Railroad line extended to a point that is the intersection of the eastern right-of-way line of the Southern Railroad line extended and the centerline of the Tennessee River; thence southerly along the centerline of the Tennessee River to a point that is the intersection of the centerline of the Tennessee River and the eastern City Limits line of the City of Chattanooga, Tennessee; thence south along the existing City Limits line of the City of Chattanooga, Tennessee, to the point of beginning.

Description of area 3B boundaries.

BEGINNING at a point that is the intersection of the northeast City Limits line of the City of Chattanooga, Tennessee and the east City Limits line of the City of Red Bank-White Oak, Tennessee;

thence northeasterly along the City Limits line of the City of Red Bank-White Oak, Tennessee, to a point that is the intersection of the City Limits line of the City of Red Bank-White Oak, Tennessee, and the north right-of-way line of the Cincinnati, New Orleans and Texas Pacific Railroad; thence eastwardly along the north right-of-way line of the Cincinnati, New Orleans and Texas Pacific Railroad and the northern extension of the east property line of property now or formerly owned by Cowron & Company, said point is located 328 feet east from the east right-of-way of Hixson Pike as measured along the north right-of-way of the Cincinnati, New Orleans and Texas Pacific Railroad; thence southwest to a point that is the northeast property corner of property now or formerly owned by Cowron & Company; thence southwest to a point that is the southeast corner of property now or formerly owned by Cowron & Company; thence southwest along a line that is located 310 feet east of and parallel to the east right-of-way of Hixson Pike to a point that is the intersection of the previously described line and the north property line of property now or formerly owned by Hamilton County, Tennessee; thence southeast along the north property line of property now or formerly owned by Hamilton County, Tennessee, to a point that is the northeast corner of said property and is on the southwest property line of property now or formerly owned by the Dixie Mercerizing Company; thence southeast along the southwest property line of property now or formerly owned by the Dixie Mercerizing Company to a point that is the southwest corner of property now or formerly owned by the Dixie Mercerizing Company and is located on the right bank, facing downstream, of the Tennessee River; thence southwesterly along the right bank, facing downstream, of the Tennessee River to a point that is the intersection of the right bank, facing downstream, of the Tennessee River and the eastern City Limits line of the City of Chattanooga, Tennessee; thence northerly and westerly along the City Limits line of the City of Chattanooga, Tennessee, to the point of beginning.

Description of area 3C boundaries.

BEGINNING at a point that is the intersection of the eastern City Limits line of the City of Chattanooga, Tennessee, and the centerline of the Tennessee River; thence northerly along the City Limits line of the City of Chattanooga, Tennessee, and the left bank, facing upstream, of the Tennessee River to a point that is the southwest corner of property now or formerly owned by the Dixie Mercerizing Company; thence northeast along the southwest property line of property now or formerly owned by the Dixie Mercerizing Company to a point that is on the southwest property line of property now or formerly owned by the Dixie Mercerizing Company and is the northeast corner of property now or formerly owned by Hamilton County, Tennessee; thence northwesterly along the north property line of property now or formerly owned by Hamilton County, Tennessee, to a point that is the intersection of the north property line of said property and a line that is located 310 feet east of and parallel to the east right-of-way of Hixson Pike; thence northeast along a line that is located 310 feet east of and parallel to the east right-of-way of Hixson Pike to a point that is the southeast corner of property now or formerly owned by Cowron & Company; thence northeast to a point that is the northeast property corner of property now or formerly owned by Cowron & Company; thence northeast to a point that is the intersection of the north right-of-way line of the Southern Railroad and the northern extension of the east property line of property now or formerly owned by Cowron & Company, said point is located 328 feet east from the east right-of-way of Hixson Pike as measured along the north right-of-way of the Southern Railroad; thence westerly along the north right-of-way of the Southern Railroad to a point that is the intersection of the north right-of-way of the Southern Railroad and the City Limits line of the City of Red Bank-White Oak, Tennessee; thence northeast along the City Limits line of the City of Red Bank-White Oak, Tennessee, crossing Ashland Terrace to a point that is on the City Limits line of the City of Red Bank-White Oak, Tennessee, and is the northwest property corner of property now or formerly owned by Charles S. Pruett; thence easterly along the north property lines of parcels of property now or formerly owned by Charles S. Pruett, J. E. Cunningham and William C. Thomas to a point that is the northeast property corner of property now or formerly owned by William C. Thomas; thence easterly to a point that is the northwest corner of property now or formerly owned by W. C. Mabry; thence easterly to a point that is the northeast corner of property

now or formerly owned by W. C. Mabry; thence easterly to a point that is the northwest corner of property now or formerly owned by Roy Foster, thence easterly to a point that is the northeast corner of property now or formerly owned by Roy Foster; thence southerly to a point that is the northwest corner of property now or formerly owned by Katherine Pangalos, said point is located on the southern property line of property known as Forrest Highland Subdivision; thence easterly along the southern property line of Forrest Highland Subdivision to a point that is the southeast property corner of property now or formerly owned by John R. Perruso; thence northeast to a point that is the southwest property corner of property now or formerly owned by Henry T. Haston; thence easterly to the southeast property corner of property now or formerly owned by Henry T. Haston; thence northerly to a point that is the northwest property corner of property now or formerly owned by David H. Lernire; thence easterly to the northeast property corner of property now or formerly owned by David H. Lernire; thence northeasterly to a point that is the northwest corner of property now or formerly owned by Earl Dixon; thence easterly to a point that is the northeast property corner of property now or formerly owned by Earl Dixon; thence northerly to a point that is the northwest property corner of property now or formerly owned by Barbara Higgins et al; thence easterly to a point that is the northeast corner of property now or formerly owned by Fred Hammond; thence northerly to a point that is the southeast property corner of property now or formerly owned by David L. Boyd; thence easterly to a point that is the southeast property corner of property now or formerly owned by Parmo C. Davis; thence easterly to a point that is the southeast property corner of property now or formerly owner by Parmo C. Davis and is the northwest property corner of property now or formerly owned by Fred E. Fassnacht, Sr.; thence along the north property line of property now or formerly owned by Fred E. Fassnacht, Sr., to a point that is the northeast property corner of property now or formerly owned by Fred E. Fassnacht, Sr.; thence northeast to a point that is the northwest property corner of property now or formerly owned by Fred E. Fassnacht; thence along the north property line of property now or formerly owned by Fred E. Fassnacht to a point that is the northeast property corner of previously described property, said point is on the west right-of-way of Watson Road; thence southerly along the right-of-way of Watson Road to a point that is the northeast property corner of property now or formerly owned by Robert Clark III and James Spaulding; thence easterly to a point that is the northwest property corner of property now or formerly owned by Robert Clark III and James Spaulding; thence southerly to a point that is the southwest property corner of the previously described property; thence easterly to a point that is the southeast property corner of the previously described property; thence easterly to a point that is the northwest corner of property now or formerly owned by Gary L. Anderson said point is the southwest corner of property known as Forrest Plaza Subdivision; thence easterly along the southern boundary of property known as Forrest Plaza Subdivision to a point that is the northeast property corner of property now or formerly owned by R. P. Buquo; thence south to a point that is the northwest corner of property now or formerly owned by T. Keith Wilson; thence easterly to a point that is the northeast corner of property now or formerly owned by Collin D. Martin; thence northerly to a point that is the northwest corner of property now or formerly owned by John I. Foster, Jr.; thence easterly to a point that is the northeast corner of property now or formerly owned by John I. Foster, Jr.; thence southerly to a point that is the southeast corner of property now or formerly owned by John I. Foster, Jr., said point is located on the north right-of-way of Hixson Pike; thence easterly along the north right-of-way of Hixson Pike to a point that is the intersection of the north right-of-way of Hixson Pike and the northern extension of the east property line of property now or formerly owned by Hamilton County Board of Education; thence southeasterly to a point that is the intersection of the east property line and the south right-of-way of Hixson Pike; thence westerly along the south right-of-way of Hixson Pike and the north property line of property now or formerly owned by Hamilton County Board of Education to a point that is the northwest property corner of said property; thence southerly to a point that is the southwest corner of said property and is located on the north right-of-way of North Access Road; thence easterly along the north right-of-way of North Access Road to a point that is the intersection of the north right-of-way of North Access Road and the east right-of-way of the Southern Railroad; thence

southerly along the east right-of-way of the Southern Railroad to a point that is the intersection of the east right-of-way of the Southern Railroad and the centerline of the Tennessee River; thence southwesterly along the center line of the Tennessee River to the point of beginning.

Each of the foregoing described areas are shown on Map BB on file in the Office of the City Auditor and is attached to and made a part of this Ordinance by reference.

ANNEXATION ORD. NO. 5970,
ENACTED NOVEMBER 12, 1968

Under the authority conferred by Chapter No. 113, Public Acts of 1955, as amended (Section 6-308 thru 6-319, Tennessee Code Annotated), there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the area hereinafter described as follows:

Beginning at a point that is the intersection of the northwest control-of-access line of Interstate 75 and the south right-of-way of McCutcheon Road, thence northeasterly along the northwest control-of-access line of Interstate 75 to a point that is the intersection of the northwest control-of-access line of Interstate 75 and the westerly right-of-way of Walker Road extended, thence southerly along the westerly right-of-way of Walker Road extended to a point that is the intersection of the southeast control-of-access line of Interstate 75 and the westerly right-of-way of Walker Road, thence southwesterly along the southeast control-of-access line of Interstate 75 to a point that is the intersection of the southeast control-of-access line of Interstate 75 and the south right-of-way of McCutcheon Road, thence northwesterly along the south right-of-way of McCutcheon Road to the point of beginning, the area consisting of approximately 53.4 acres, all being within the right-of-way of Interstate 75.

Said area is shown as "10-C" on Figure BB, and on Drawings Numbered 1415-A-1 and 1415-A-2, on file in the office of the City Auditor.

ANNEXATION ORD. NO. 5977,
ENACTED NOVEMBER 26, 1968

Under the authority conferred by Chapter No. 113, Public Acts of 1955, as amended (Section 6-308 thru 6-319, Tennessee Code Annotated), there be and is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the area hereinafter described as follows:

Description of area 9-A for annexation boundary:

Beginning at a point that is the intersection of the south control-of-access line of Interstate 75 and the eastern city limits line of the City of Chattanooga, Tennessee; thence northeasterly along the south control-of-access line of Interstate 75 to a point that is the intersection of the south right-of-way line of East Brainerd Road and the south control-of-access line of Interstate 75; thence northerly crossing East Brainerd Road to a point that is the intersection of the north right-of-way line of East Brainerd Road and the southerly control-of-access line of Interstate 75; thence northeasterly along the southeast control-of-access line of Interstate 75 to a point that is the intersection of the southeast control-of-access line of Interstate 75 and the westerly extension of the north property line of property now or formerly owned by Thomas F. Gilliland; thence east to the northwest corner of said property; thence east to the northeast corner of said property; thence north to the northwest corner of property now or formerly owned by Joseph K. Crawford; thence east to the northeast corner of said property; thence east crossing Croy Lane to a point that is the intersection of the extension of the north property line of property now or formerly owned by Joseph K. Crawford and the west property line of property now or formerly owned by R. N. Bradley; thence north crossing that relocated Igou Gap Road to the northwest corner of property now or formerly owned by Arlie Edwin Clabo; thence westwardly to the northwest corner of property now or formerly owned by Ethel Sanders; thence south to the southwest corner of said property; thence east to the southeast corner of said property; thence east to the northeast corner of property now or formerly

owned by Osborne Building Corporation; thence east crossing Bella Vista Drive to the northeast corner of Gleason G. and Jane Avery; thence east crossing property now or formerly owned by Harry T. Morgan to the northwest corner of property now or formerly owned by Eugene M. Pike, Jr.; thence east along a line located 300 feet more or less north of Igou Gap Road and along the north property lines, crossing property now or formerly owned by James L. Deadmond to a point that is the northeast corner of property now or formerly owned by Joseph A. White said point is located on the west right-of-way of Gunbarrel Road; thence east crossing Gunbarrel Road to the southwest corner of property now or formerly owned by Guy L. Chastain; thence east to the southeast corner of said property; thence south along the west right-of-way of a dedicated street to the southeast corner of property now or formerly owned by William K. Corbin; thence southerly crossing Igou Gap Road to the northeast corner of property now or formerly owned by Martin V. Hamby; thence southerly to the southeast corner of said property; thence south along a line that is located 500 feet more or less east of Gunbarrel Road to a point that is the intersection of the afore-mentioned line and the south property line of property now or formerly owned by L. S. Stapp; thence west to the northwest corner of property now or formerly owned by Boyd E. Walker; thence south to the northeast corner of property now or formerly owned by Mildred Hall; thence east to the northeast corner of property now or formerly owned by Herbert L. Allen; thence east crossing Walnut Grove Road to the northwest corner of property now or formerly owned by Carl W. and Sandra Spain; thence east to the northeast corner of property now or formerly owned by Conrad D. Jordan; thence south to the southeast corner of said property; thence south to the south right-of-way Zeigler Road; thence east to the northeast corner of property now or formerly owned by W. M. Williford; thence south to the southeast corner of said property; thence west to the northeast corner of property now or formerly owned by Clarence Walker; thence south to the southeast corner of said property; thence south to the northeast corner of property now or formerly owned by David L. Miller; thence south along the east property lines to the southeast corner of property now or formerly owned by Harry P. Troutman; thence south crossing Clyde Road to the northeast corner of property now or formerly owned by Austin D. Moon; thence south along the east line of a subdivision known as Meadowlark Acres to the southeast corner of property now or formerly owned by Evelyn S. Thompson; thence south to the south right-of-way of East Brainerd Road; thence west to the northeast corner of property now or formerly owned by J. W. Rains, said point is the northwest corner of a subdivision known as East Brainerd Terrace; thence south along the west property lines of said subdivision to the southwest corner of property now or formerly owned by Grandy Jacoway, Jr.; thence south to the southeast corner of property now or formerly owned by Charles S. Brown; thence west to the southwest corner of property now or formerly owned by D. L. Conger, said is the northeast corner of a subdivision known as Audubon Hills; thence south along the east property lines of said subdivision to the northeast corner of property now or formerly owned by Paul K. Brown; thence south to the southeast corner of said property; thence southerly crossing the L & N Railroad and property now or formerly owned by Smith Wooden to the northeast corner of property now or formerly owned by W. T. Walker; thence south along the east property line of said property to the left bank facing downstream of South Chickamauga Creek; thence westerly along the left bank facing downstream of South Chickamauga Creek to the southerly right-of-way of the L & N Railroad to the eastern city limits of the City of Chattanooga, Tennessee; thence northerly along the eastern city limits of the City of Chattanooga, Tennessee to the point of beginning.

Said area is shown as "9-A" on figure B-B, and on Drawings #1415-14.0 through #1415-17.0 on file in the office of the City Auditor.

ANNEXATION ORD. NO. 5978, ENACTED NOVEMBER 26, 1968

Under the authority conferred by Chapter No. 113, Public Acts of 1955, as amended (Sections 6-308—6-319, Tennessee Code Annotated), there be and is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the area hereinafter described as follows:

Description of area 10-A for annexation boundary:

Beginning at a point that is the intersection of the southeast control-of-access line of Interstate 75 and the south right-of-way of McCutcheon Road extended; thence southwesterly along the southeast control-of-access line of Interstate 75 to a point that is the intersection of the southeast control-of-access line of Interstate 75 and the westerly extension of the north property line of property now or formerly owned by Thomas F. Gilliland; thence east to the northwest corner of said property; thence east to the northeast corner of said property; thence north to the northwest corner of property now or formerly owned by Joseph K. Crawford; thence east to the northeast corner of said property; thence east crossing Croy Lane to a point that is the intersection of the extension of the north property line of property now or formerly owned by Joseph K. Crawford and the west property line of property now or formerly owned by R. N. Bradley; thence north crossing the relocated Igou Gap Road to the northwest corner of property now or formerly owned by Arlie Edwin Clabo; thence eastwardly to the northwest corner of property now or formerly owned by Ethel Sanders; thence south to the southwest corner of said property; thence east to the southeast corner of said property; thence east to the northeast corner of property now or formerly owned by Osborne Building Corporation; thence east crossing Bella Vista Drive to the northeast corner of property now or formerly owned by Gleason G. and Jane Avery; thence east crossing property now or formerly owned by Harry T. Morgan to the northwest corner of property now or formerly owned by Eugene M. Pike, Jr.; thence east along a line located 300 feet, more or less, north of Igou Gap Road and along the north property lines crossing property now or formerly owned by James L. Dedmond to a point that is the northeast corner of property now or formerly owned by Joseph A. White, said point is located on the west right-of-way of Gunbarrel Road; thence east crossing Gunbarrel Road to the southwest corner of property now or formerly owned by Guy L. Chastain; thence north along the west right-of-way of a dedicated street to the northwest corner of said street located on the south property line of property now or formerly owned by Flora Talley; thence north along a line that is located 500 feet east of Gunbarrel Road to the intersection with the north property line of said property which is the southeast corner of property now or formerly owned by Nellie White; thence north to the northeast corner of said property; thence north crossing Shallowford Road to the north right-of-way line; thence west to the southeast corner of property now or formerly owned by John C. McKee; thence north to the northeast corner of said property; thence north crossing Preston Circle to the southeast corner of property now or formerly owned by Pryor T. Bacon, Jr.; thence north to the northeast corner of said property; thence east and north along the property line of property now or formerly owned by Pryor T. Bacon, Jr., to the northwest corner of said property; thence north along the west property lines of a subdivision known as Twin Brook to the northwest corner of said subdivision; thence north to the north right-of-way of McCutcheon Road; thence east to the southeast corner of property now or formerly owned by Ernest Scoggins; thence north along the east property lines 680 feet, more or less, east of and parallel to Gunbarrel Road, crossing Min-Tom Road and Pinewood Drive to the southeast corner of property now or formerly owned by James C. Sloan; thence north to the southwest corner of property now or formerly owned by George Walter Wooten; thence north to the northeast corner of said property which is located on the south property line of property now or formerly owned by Pryor Bacon, Jr.; thence north along the extension of the previously described line to a point that is the intersection of the line extended and the southeasterly control-of-access line of Interstate 57; thence southwesterly along the southeasterly control-of-access line to the point of beginning.

Said area is shown as "10-A" on figure B-B and on drawings # 1415-39.1 through 1415-41; on file in the office of the City Auditor.

Description of area 10-B for annexation boundary:

Beginning at a point that is the intersection of the northwest control-of-access line of Interstate 75 and the south right-of-way of McCutcheon Road extended; thence northerly along the northwest control-of-access line of Interstate 75 to a point that is the intersection of the northwest control-of-access line of Interstate 75 and the westerly right-of-way of Walker Road extended; thence northerly along the westerly right-of-way line of Walker Road extended to a point that is the northeast corner of property now or formerly owned by Earl L. Varnell; thence west to the northwest corner of said property; thence south to the northeast corner of property now or formerly owned by Earl L. Varnell; thence west to the northwest corner of said property; thence north to the northeast corner of property now or formerly owned by Grady O. Bell; thence west crossing Lee Highway to a point that is the northeast corner of property now or formerly owned by E. E. Faber; thence west along the north property line to the northwest corner of said property; thence west crossing Gunbarrel Road to the west right-of-way of Gunbarrel Road; thence south to the northeast corner of property now or formerly owned by Grace Houser Flourney; thence west to the northwest corner of said property; thence west to the northeast corner of property now or formerly owned by Harold L. Bailey; thence west to the northwest corner of said property; thence west to the southwest corner of property now or formerly owned by William Bruce Tallent and Andy and Mary Walker; thence north along the east property line of property now or formerly owned by William Theodore Tallent to the southeast corner of property now or formerly owned by Howard Harrison; thence west to the southwest corner of said property; thence south to the northeast corner of property now or formerly owned by Sam Johnson; thence west to the northeast corner of property now or formerly owned by Lila K. Johnson; thence west to the northwest corner of said property; thence west crossing Kirkman Road to the northeast corner of property now or formerly owned by O. C. Kirkman, said point is located on the west right-of-way of Kirkman Road; thence south to the southeast corner of said property; thence west along the south property line of said property to the northwest corner of property now or formerly owned by Leonard R. Schmitt; thence south along the west property line a distance of 80 feet; thence west to the northeast corner of property now or formerly owned by Woodrow W. Gardenhire; thence west to northwest corner of said property; thence west to the northeast corner of property now or formerly owned by Charles D. Brown; thence west to the northwest corner of said property; thence west to the northeast corner of property now or formerly owned by Tyner Methodist Church; thence west to the northwest corner of said property; thence north to the northeast corner of property now or formerly owned by Sam Johnson; thence west to the northeast corner of property now or formerly owned by Hamilton County Board of Education; thence west to the northwest corner of said property; thence south to the northeast corner of property now or formerly owned by Lester D. Crowe; thence west to the northwest corner of said property; thence north to the northeast corner of property now or formerly owned by Lula J. Brown; thence west to the northwest corner of said property; thence west to the northwest corner of property now or formerly owned by Clayton S. Walters; thence west crossing Hickory Valley Road to the west right-of-way of said road; thence north to the northeast corner of property now or formerly owned by Clyde M. Ingle; thence west to the southeast corner of property now or formerly owned by J. T. Knitter; thence north to the northeast corner of said property; thence north to the southeast corner of property now or formerly owned by Robert H. Hundley; thence northerly to the northeast corner of said property; thence northerly crossing Ocoee Street to the southeast corner of property now or formerly owned by Hamilton County; thence northerly to the northeast corner of said property; thence north crossing the Southern Railroad property to the southerly property line of the Volunteer Ordnance Works Military Reservation; thence westerly along the property line of the Volunteer Ordnance Works Military Reservation to the southeast corner of property now or formerly owned by Musa M. Gross, said point is located on the northerly right-of-way of the Southern Railroad; thence westerly along the northerly right-of-way of the Southern Railroad to the easterly right-of-way of Noah Reid Road; thence south along

the easterly right-of-way of Noah Reid Road to the centerline of Friar Branch; thence southerly along the centerline of Friar Branch to a point that is the intersection of the centerline of Friar Branch and a line that is located 2,400 feet north of and parallel to the north right-of-way of Shallowford Road; thence east along said line to a point that is the intersection of the aforementioned line and the west property line of property known as Lake Brook Heights Subdivision; thence south along the west property line of property known as Lake Brook Heights Subdivision to a point that is the northwest corner of property now or formerly owned by C. M. Yarnell; thence south to a point that is the southwest corner of property now or formerly owned by C. M. Yarnel and the northwest corner of property now or formerly owned by J. B. Horn; thence south to a point that is the southwest corner of the property now or formerly owned by J. B. Horn; thence in a southerly direction to a point that is located 900 feet, more or less, west of the west right-of-way of Noah Reid Road as measured along the north right-of-way of Shallowford Road, said point being the northernmost corner of the north right-of-way of Shallowford Road; thence south crossing Shallowford Road to a point that is the northwest corner of property now or formerly owned by The Title Guaranty and Trust Company; thence south along the west property line of property now or formerly owned by The Title Guaranty and Trust Company to a point that is the southwest corner of property now or formerly owned by The Title Guaranty and Trust Co. and continuing in a southerly direction along a line that is located 850 feet west of and parallel to the west right-of-way of Shepherd Road and Shepherd Road west to a point that is the intersection of the aforementioned line and the easterly control-of-access line of Tennessee Highway 153; thence southeasterly along the easterly control-of-access line of Tennessee Highway 153 and continuing northeasterly along the northeast control-of-access line of Interstate 75 to the point of beginning.

Said area is shown as "10-B" on figure B-B and on drawings #1415-38.0—1415-41.1 on file in the office of the City Auditor.

ANNEXATION ORD. NO. 5979,
ENACTED NOVEMBER 26, 1968

Under the authority conferred by Chapter No. 113, Public Acts of 1955, as amended (Section 6-308—Section 6-319, Tennessee Code Annotated), there be and is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the area hereinafter described as follows:

Description of area 11 for annexation boundary:

Beginning at a point that is the northwest corner of the Tennessee Valley Authority Chickamauga reservoir in the vicinity of the Coast Guard Station; thence southerly and westerly along the easterly and southerly boundary of said property crossing Kings Road, Harrison Road, and Kings Point Road to the intersection with the northerly right-of-way of Tennessee Highway 153; said point is also the southwest corner of property now or formerly owned by W. A. Roy; thence south of the southwest corner of said property which is located on the northerly right-of-way of Tennessee Highway 153; thense [thence] south and easterly along the northerly and easterly right-of-way of Tennessee Highway 153 crossing Highway 58, Silverdale Highway and Jersey Pike to a point that is the intersection of the easterly right-of-way of Tennessee Highway 153 and a line that is located 2,400 feet north of and parallel to the north right-of-way of Shallowford Road; thence eastwardly along the aforesaid line to a point that is the intersection of the aforesaid line and the centerline of Friar Branch; thence northwardly along the centerline of Friar Branch to a point that is the intersection of the centerline of Friar Branch and the easterly right-of-way of Noah Reid Road; thence north along the easterly right-of-way of Noah Reid Road to the northerly right-of-way of the Southern Railroad; thence easterly along the northerly right-of-way of the Southern Railroad to the southeast corner of property now or formerly owned by Musa M. Gross, said point is located on the western property line of the Volunteer Ordnance Works; thence northerly along the western property line of said property to the northwest corner which point is located on the south right-of-way of Highway 58;

thence north to the southeast corner of property now or formerly owned by William McKenzie; thence northerly to the northeast corner of said property; thence northerly to the northwest corner of said property; thence northerly to the northwest corner of property now or formerly owned by George Lane; thence west to the northeast corner of property now or formerly owned by James Elaster; thence west to the northwest corner of said property; thence west to the northeast corner of property now or formerly owned by Benjamin Gideon; thence west to the northwest corner of said property located on the northerly right-of-way of Champion Road; thence northerly along the northerly right-of-way of Champion Road to the southwest corner of property now or formerly owned by Ben McCaleb, said point is located on the Booker T. Washington State Park boundary; thence along the Booker T. Washington State Park boundary to which follows the southern side of a peninsula to the southwest corner of said property; thence westerly along a line that extends between the southwest property corner of the Booker T. Washington State Park property located on a peninsula and the center of the Chickamauga Dam, to a point that is the intersection of the aforesaid line and a line that extends north from the northeast corner of the Tennessee Valley Authority's southern Chickamauga Reservation property in the vicinity of the Coast Guard Station; thence south to the northeast corner of said property which is the point of beginning.

Said area is shown as "ll" on figure B-B and on Drawings 1414-56.1 through 1414-61.0 on file in the office of the City Auditor.

ANNEXATION ORD. NO. 6209,
ENACTED AUGUST 18, 1970

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (Sec. 6-308 through 6-319 T. C. A.) that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city the area in the Second Civil District of Hamilton County, Tennessee, contiguous to the corporate boundaries of said city, which territory is fully described as follows:

Beginning at a point on the Eastern side of Greenwood Road and its intersection with the present city limit line, this point being in the north line of the Southwest Quarter Section of Section No. 13, Township 2, Range 4, West; and thence running in a northerly, northwesterly and westerly direction along the east and north right-of-way line of Greenwood Road for a distance of 3,015 feet, more or less, to a point on said right-of-way adjoining the property of Greenwood Cemetery, Hamilton County Tax Parcel No. 3267-2-1, said point being 220 feet, more or less, southeast of the section line between Sections 13 and 14 of Township 2, Range 4, West of Basis Line of Ocoee District; thence south 60 degrees 25 minutes west, 460.3 feet, more or less, to a point; thence south 29 degrees 35 minutes east, 50 feet to a point; thence south 60 degrees 25 minutes west, 412 feet, more or less, to an old iron pipe; thence north 61 degrees 39 minutes west, 146.5 feet, more or less, to an old iron pipe; thence south 32 degrees 16 minutes west, 198.7 feet, more or less, to an old iron pipe; thence south 66 degrees 53 minutes east, 542.78 feet, to a point located on the section line between Sections 13 and 14 of Township 2, Range 4, West of Basis Line of Ocoee District; thence southwardly along the section line between Sections 13 and 14 of Township 2, Range 4, West of Basis Line of Ocoee District, south 20 degrees 19 minutes west, 552.82 feet, more or less, to an old iron pipe, a point in the existing city limits; thence eastwardly along a fence line south 68 degrees 13 minutes east, 1,249.7 feet, more or less, and following the now existing city limit line to an iron pipe on the west right-of-way of Greenwood Road and thence following said right-of-way and the now existing city limit line to a point in the city limit line; thence running in an easterly direction along the now existing city limits line 50 feet, more or less, to the point of beginning, consisting of a total of approximately 35 acres to include the total right-of-way of Greenwood Road.

ANNEXATION ORD. NO. 6235,
ENACTED OCTOBER 27, 1970

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (Sec. 6-308 through 6-319 T. C. A.) that there be and hereby is annexed to the City of Chattanooga, Tennessee,

and included within the corporate boundaries of said city the area in the Second Civil District of Hamilton County, Tennessee, contiguous to the corporate boundaries of said city, which territory is fully described as follows:

Beginning at a point in the existing city limits said point being in the east right-of-way of Tunnel Boulevard and the northwest corner of R. W. Ward Subdivision as amended and recorded in Book 16, Page 42, Hamilton County Register's Office; thence north 65 degrees 32 minutes west, a distance of 50 feet, more or less, to the west right-of-way line of Tunnel Boulevard; thence continuing on a bearing north 65 degrees 32 minutes west, a distance of 645.84 feet to a point; thence north 24 degrees 22 minutes east, a distance of 802.5 feet to a point; thence south 65 degrees 11 minutes east, a distance of 814.81 feet to a point in the east right-of-way line of Tunnel Boulevard; thence south 65 degrees 25 minutes east, a distance of 795.25 feet to a point; thence south 24 degrees 31 minutes west, a distance of 798.45 feet to a point in the section line between Sections 6 and 7; thence north 65 degrees 24 minutes west, a distance of 436.45 feet, more or less, to the northeast corner of Lot 12 of the Wilcox Woods Subdivision, said point being in the existing city limits; thence continuing north 65 degrees 24 minutes west, a distance of 480 feet along the existing city limits following the northern limits of Wilcox Woods Subdivision in the Amended R. W. Ward Subdivision for a total distance of 916.45 feet to a point in the eastern right-of-way line of Tunnel Boulevard, said point being the point of beginning.

ANNEXATION ORD. NO. 6359,
ENACTED NOVEMBER 30, 1971*

Under the authority conferred by Chapter 113, Public Acts of 1955, as amended, (Sec. 6-308 through 6-319, T.C.A.) that there be and is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the following described area in the Third Civil District, to-wit:

Tract No. One (1):

Beginning at a point in the present city limit of the City of Chattanooga 1,000 feet, more or less, from Mountain Creek Road and in the southern line of the property conveyed to R. J. Fisher, III, and Edward M. Fisher by deed of record in Book 1934, Page 598, Register's Office, Hamilton County, Tennessee; thence along the southern line of said Fisher tract, north 84 degrees 26 minutes west, 540 feet more or less, to a stone; thence north 17 degrees 42 minutes east, 3,669.4 feet to an iron; thence south 50 degrees 20 minutes east, 2,848.2 feet to an iron in the northwest line of Mountain Creek Road; thence southwestwardly along the northwest line of Mountain Creek Road, 1,300 feet, more or less, to the present city limit; thence northwestwardly along the present city limit and Read's Cree, 1,000 feet, more or less; thence southwestwardly along the present city limit, 1,940 feet, more or less, to the point of beginning.

Tract No. Two (2):

Beginning at a point on the north line of Read's Lake Road in the east line of the present city limit of the City of Chattanooga and in Mountain Creek; thence northwardly along the east line of said city limit and with Mountain Creek, 680 feet, more or less, to a point; thence north 63 degrees 00 minutes east, 645 feet; thence south 47 degrees 16 minutes east, 738.4 feet; thence south 27 degrees 24 minutes west, 965 feet, more or less, to the present city limit in the north line of Read's Lake Road; thence westwardly along said Read's Lake Road and present city limit, 910 feet, more or less, to the point of beginning.

***Editor's note—**Pursuant to T.C.A. § 6-51-302, Adjustment of Boundaries of Contiguous Municipalities, and an Agreement dated March, 1992, between the City of Chattanooga and the City of Red Bank, the common boundary line along Morrison Springs Road has been adjusted.

**ANNEXATION ORD. NO. 6379,
ENACTED FEBRUARY 2, 1972,
OPERATIVE NOVEMBER 1, 1976**

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 5 and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description for proposed annexed area no. 5:

Beginning at a point in the northeast bank of the Tennessee River at the low water mark and the north bank of Mountain Creek, said point also being in the existing boundary of the City of Chattanooga, Tennessee, being the property now or formerly owned by Baylor School, thence in a generally eastward direction with the boundary line of the City of Chattanooga to the point of intersection of the said city boundary line with the southwest right-of-way line of Signal Mountain Boulevard, said point being in the City of Chattanooga boundary, thence in a northwestward direction with the southwest right-of-way line of Signal Mountain boulevard and the City of Chattanooga boundary to a point in the said southwest right-of-way of Signal Mountain Boulevard at the intersection of the northwest right-of-way of Russell Street if said right-of-way line of Russell Street were extended southwestwardly across Signal Mountain boulevard, thence following the boundary line of the city in a northward and north-eastward direction to the point of intersection of the northeast right-of-way line of School Street and the west right-of-way line of Mountain Creek Road, thence in a northeastward direction along the west right-of-way line of Mountain Creek Road to its intersection with the northeast right-of-way line of the "W" Road, thence in a north-westward direction along the northeast right-of-way line of the "W" Road to the point of intersection of the said right-of-way line of the "W" Road and the north line of the property now or formerly owned by Sam C. Jones if the said property line were extended across the "W" Road, thence in a westward direction along the said north property line and the extension thereof of the Sam C. Jones' tract to a point in the line of Lot No. 3 D.C. Combs Estate, thence in a northeast and northwestward direction along said line of Lot No. 3 D. C. Combs Estate to the most northern corner of Lot 3, thence in a southeastward direction along the northwest lines of Lots 3, 2 and 1 D. C. Combs Estate to the northeast corner of Lot 27, Block F, W. S. Beck Sub-division, thence continuing along the northwest line of Lots 27, 26 and 25, Block F and Block G to the southwest corner of Block G, W. S. Beck Subdivision, said point being in the northeast property line of the property now or formerly owned by Pat St. Charles, thence in a northwest direction along the said northeast property line of the Pat St. Charles' tract to a point in the Town of Signal Mountain corporation boundary line, thence in a generally west and northwest direction to a point in the northwest bank of Shoal Creek in the boundary line between the Town of Signal Mountain and the property now or formerly owned by Buck Redmon, thence along the northwest bank of the said Shoal Creek and running through the said Buck Redmon property in a southwestward direction to a point in the northeast bank of the Tennessee River, said point being the low water mark of the Tennessee River, thence along the said northeast bank of the Tennessee River to the point of beginning.

**ANNEXATION ORD. NO. 6381,
ENACTED FEBRUARY 2, 1972,
OPERATIVE JULY 29, 1974**

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and

made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 6-8A and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description of proposed annexed area no. 6-8A for annexation boundary.

Beginning at a point, said point being in the northwest right-of-way of Ely Road at the southeast corner of the property now or formerly owned by Carl Cecil Clark and being in the existing boundary of the City of Chattanooga, Tennessee, thence with the boundary of the City of Chattanooga being the southwest property line of the said Clark tract in a northwest direction to the common corner of the Clark tract and Lot No. 32 of Crestview Addition No. I being in the City of Red Bank's corporation line, thence following the corporation line in a northeastwardly and southeastwardly direction to a point in the southeast right-of-way line of Ely Road, thence continuing along the said corporation line to the point of intersection of the northwest line of Ely Road and the northwest property line of the property now or formerly owned by C. W. Hassler, Jr., said line being the corporation line, thence along the said corporation line in a northeast direction to a point in the Red Bank corporation line, said point being the northwest corner of the property now or formerly owned by K. R. Millican, thence following the said corporation line in a southeastward, northeastward and southeast-ward direction to a point in the center of Delashmitt Road said point being the corporation line, thence with the corporation line along the center of Delashmitt Road in a northward direction to the intersection of the center line of Delashmitt Road and the center line of Gadd Road also being the northeast corner of the boundary of the Town of Red Bank, thence with the center line of Gadd Road being the Town of Red Bank corporation boundary line in a westward direction to the point of intersection with the extended west right-of-way line of Crestview Drive, thence in a generally northward direction with the west right-of-way line of Crestview Drive to the point of intersection with the north right-of-way line of Troxler Trail if said line were extended across Crestview Drive, thence eastwardly along the north line of Troxler Trail to the point of intersection with the west right-of-way line of Tower Road, thence in a northward direction with the west right-of-way line of said Tower Road and said line extended to the intersection with the north right-of-way line of Dowlen Road, thence with the north right-of-way line of Dowlen Road in an eastwardly direction to the intersection of the said north right-of-way line of Dowlen Road with the northwest right-of-way line of Grubb Road, thence with the northwest right-of-way line of Grubb Road in a northeast direction to the intersection of the northwest right-of-way line of Grubb Road with the west right-of-way line of Tennessee State Route No. 153, thence in a northward direction along the west right-of-way line of Tennessee State Route No. 153 to a point of intersection with the northwest right-of-way line of Gothard Road if said Gothard Road right-of-way line were extended across Tennessee State Route No. 153, thence crossing Tennessee State Route No. 153 and continuing along the northwestern right-of-way line of Gothard Road to a point in the northwest right-of-way of Gothard Road, said point being an extension of the southwest property line of the property now or formerly owned by William D. Scott, trustee, thence along the said southwest property line of the William D. Scott, trustee, tract and the extension thereof to the southeast corner of the property now or formerly owned by Josie Benton, thence in a northeast direction along the southeast property line of the Josie Benton tract and said line extended to a point in the northeast right-of-way line of Boy Scout Road, said point being in the southeast property line of the property now or formerly owned by Jewell Hicks, thence in a southeast direction along the said northeast right-of-way line of Boy Scout Road to the point of intersection of the northeast right-of-way line of Boy Scout Road with the east right-of-way line of Southern Railroad, thence in a southward direction following the said east right-of-way line of Southern Railroad to the point of intersection of the said east right-of-way line of Southern Railroad with the north right-of-way line of Lower Mill Road, thence in a generally eastward direction along the northern right-of-way line of Lower Mill Road to the intersection of the north right-of-way line of Lower Mill Road with the southeast right-of-way line of Middle Valley Road, thence in a southwest direction with the southeast right-of-way line of Middle Valley Road to a

point, said point being the intersection of the southeast right-of-way line of Middle Valley Road, the south right-of-way line of Old Hixson Pike and the east right-of-way line of New Hixson Pike, thence in a south and southwest direction along the east right-of-way line of New Hixson Pike to a point, said point being the intersection of the southeast right-of-way line of Hixson Pike and the existing boundary line of the City of Chattanooga, thence in a generally westward direction with the boundary line of the City of Chattanooga to the point of beginning.

ANNEXATION ORD. NO. 6383,
ENACTED FEBRUARY 2, 1972,
OPERATIVE JULY 29, 1974

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 6-8B and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description for proposed annexed area no. 6-8B:

Beginning at the point of intersection of the southeast line of Hixson Pike and the northeast property line of Hamilton County being the DuPont School property also being in the existing boundary of the City of Chattanooga, thence in a generally northeast direction with the southeast or eastward right-of-way line of Hixson Pike to a point, said point being the intersection of the said right-of-way of Hixson Pike and the east right-of-way line of Middle Valley Road, thence in a north and northeast direction to a point, said point being the intersection of the east right-of-way line of Middle Valley Road and the northeast right-of-way line of Shelby Circle, thence along the northeast right-of-way line of Shelby Circle and said line extended along the northeast property lines of the property now or formerly owned by Opal Card, et al, and the property now or formerly owned by the Fairview Methodist Church to a point in the southeast right-of-way line of Hixson Pike, thence in a southwestward direction along the southeast right-of-way line of Hixson Pike to the point of intersection of the southeast right-of-way line of Hixson Pike with the northeast right-of-way line of Big Ridge Road, thence with the said northeast right-of-way line of Big Ridge Road in a south-eastwardly direction to the point of intersection of the northeast right-of-way line of Big Ridge Road with the east right-of-way line of Fairview Road, thence in a south and southwest direction along the east right-of-way line of Fairview Road to the point of intersection of the east right-of-way line of Fairview Road with the north right-of-way of Gann Store Road, thence along the northeast right-of-way line of Gann Store Road in a southeast direction to the point of intersection of the said north right-of-way line of Gann Store Road with the extended east right-of-way line of Lake Resort Drive, thence in a southward direction along the east right-of-way line of said Lake Resort Drive to a point, said point being the point of intersection of the said east right-of-way line of Lake Resort Drive and the boundary line of the T.V.A. property if said boundary line were extended eastwardly across Lake Resort Drive, thence in a westward direction with the said T.V.A. boundary line to the point of intersection of the said boundary line with the west right-of-way line of the Southern Railroad, thence in a southward direction with the said west right-of-way of the Southern Railroad to the point of intersection of the said west right-of-way of the Southern Railroad and the south right-of-way line of Access Road, said point also being in the existing boundary of the City of Chattanooga, thence in a generally westward direction with the boundary line of the City of Chattanooga to the point of beginning.

ANNEXATION ORD. NO. 6385,
ENACTED FEBRUARY 2, 1972,
OPERATIVE JULY 29, 1974

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and

made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 6-8C and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description for proposed annexed area no. 6-8C.

Beginning at the point of intersection of the southeast right-of-way line of Fairview Road and the northeast right-of-way line of Gann Store Road, thence in a northeast direction along the said right-of-way line of Fairview Road to the point of intersection of the southeast right-of-way line of Fairview Road and the northeast right-of-way line of Big Ridge Road, thence in a south-eastward direction along the northeast right-of-way line of Big Ridge Road to the point of intersection of the northeast line of Big Ridge Road with the east line of a private driveway being in the west property line of the property now or formerly owned by T. Erby Daughtrey, thence with the T. Erby Daughtrey's west property line in a northeast direction to the northwest corner of the said Daughtrey tract, thence in a southeast direction along the northeast property of the said Daughtrey tract to a point in the TVA boundary line; thence in a northeast direction to a corner in the TVA boundary line being the southwest corner of Tract XCR-583 now or formerly owned by Robert S. Lynes, thence in a straight line along the southwest line of the said Lynes tract being the TVA boundary line in a southeast direction said line extended to a point in the east bank of Chickamauga Lake; thence in a southward direction along the east bank of Chickamauga Lake to the point in the existing boundary line of the City of Chattanooga, thence with the boundary line of the City of Chattanooga and said line extended to a point, said point being the intersection of the west right-of-way line of the Southern Railroad and the south right-of-way line of Access Road, thence in a northward direction along the said west right-of-way line of the Southern Railroad crossing Tennessee State Route No. 153 to a point, said point being the intersection of the said west right-of-way line of the Southern Railroad and the extended line of the TVA boundary line if said line were extended across the Southern Railroad right-of-way, thence along the TVA boundary line and said line extended in an east and southeastward direction to the point of intersection of the TVA boundary line with the southeast right-of-way line of Lake Resort Drive, thence in a generally northeast direction along the said southeast right-of-way line of Lake Resort Drive and said line extended to the point of intersection of the said east right-of-way line of Lake Resort Drive and line extended with the northeast right-of-way line of Gann Store Road; thence in a northwest direction along the northeast right-of-way of Gann Store Road to the point of intersection of the northeast right-of-way line of Gann Store Road and the southeast right-of-way line of Fairview Road; said point being the point of beginning.

ANNEXATION ORD. NO. 6387,
ENACTED FEBRUARY 2, 1972

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 7 and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description of proposed area 7 for annexation boundary.

Beginning at a point that is the intersection of the northern city limits line of the City of Chattanooga, Tennessee that is south of the Tennessee River and the western right-of-way line of the Southern Railroad and the northern right-of-way line of Amnicola Highway; thence north along the northern city limits line of the City of Chattanooga to a point that is the intersection of the western right-of-way line of the Southern Railroad extended and the city limit line of the City of Chattanooga and the centerline of the

Tennessee River; thence easterly to the center of Chickamauga Dam; thence easterly, along a line that extends between the center of Chickamauga Dam and a point that is the southwest property corner of the Booker T. Washington State Park property located on a peninsula, to a point that is the intersection of the aforesaid line and the northern corner of the city limits of the City of Chattanooga in the vicinity of the Coast Guard Station; thence south along the northern city limits of the City of Chattanooga in the vicinity of Tennessee Valley Authority southern Chickamauga Reservation property; thence southerly and southeasterly along the city limits of the City of Chattanooga and the eastern right-of-way line of State Highway No. 153 crossing 58 Highway, Silverdale Highway and Jersey Pike to a point that is the intersection of the easterly right-of-way of Tennessee Highway 153 and the city limits of the City of Chattanooga and a line that is located 2,400 feet north, more or less, of and parallel to the north right-of-way of Shallowford Road; thence west along the aforesaid line crossing Tennessee Highway 153 and Jersey Pike to a point that is the intersection with the west right-of-way of Cromwell Road; thence southwest along the west right-of-way of Cromwell Road and the city limits of the City of Chattanooga to a point that is the intersection of the west right-of-way of Cromwell Road and the west right-of-way of Shallowford Road and along the city limits of the City of Chattanooga; thence southwest along the west right-of-way of Shallow-ford Road to a point that is the intersection of the west right-of-way of Shallowford Road and the existing city limits line; thence westerly and northerly along the existing city limits line to the point of beginning.

ANNEXATION ORD. NO. 6389,
ENACTED FEBRUARY 2, 1972,
OPERATIVE JULY 29, 1974

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 9B and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description of proposed annexed area no. 9B for annexation boundary:

Beginning at a point in the northeast right-of-way line of Morris Hill Road said point being 200 feet southeastwardly along said line from the intersection of the northeast right-of-way line of Morris Hill Road and the southeast right-of-way line of Jenkins Road, thence in a southeast direction along the northeast right-of-way line of Morris Hill Road to a point, said point being the common corner of Frances Catherine Duckett and R. A. Cogswell tracts and being in the northeast right-of-way of Morris Hill Road, thence along the property line between the Cogswell and Duckett tracts a distance of 470 feet more or less to the most eastern corner of the above mentioned tracts, thence along the rear property lines of the following tracts, R. A. Cogswell and John J. Headrick to a point in the eastern right-of-way line of Morris Hill Road, thence in a southwardly direction along the east and northeastern right-of-way line of Morris Hill Road crossing Igou Gap Road, to a point in the south right-of-way line of East Brainerd Road, thence in a southeastward direction to the common corner of the property of Town and Country Development, Inc. and Jackson R. Cowan tracts, thence along the east and southeast property lines of the Town and Country Development, Inc. tract the following calls southwestwardly 879 feet, southeastwardly 523 feet, southwardly 1,446 feet, northeastwardly 1,608 feet to a point in the quarter section line of Section 19, Township 15, Range 2, thence southwestwardly along the said quarter section line to a point in the boundary line of the State of Tennessee said point being the most eastern corner of the Lillard Owenby tract, thence in a westward direction along the boundary line of the State of Tennessee to a point in the west bank of the Chickamauga Creek thence following the Chickamauga Creek northwardly, northeastwardly and north-westwardly to a point in the existing boundary of the City of Chattanooga, Tennessee and being

in the northeast property line of L. C. Million and James Million tract, thence in a northeast direction to a point in the southwest right-of-way line of Igou Gap Road, said point being 438 feet southeastwardly from the southeast right-of-way line of Gunbarrel Road, thence running southeastwardly with the southwest right-of-way line of Igou Gap Road to a point, said point being the intersection of the southwest line of Igou Gap Road and the southeast line of Jenkins Road, thence in a northeast direction with the southeast line of Jenkins Road to a point, said point being the intersection of the southeast line of Jenkins Road and the northeast line of Morris Hill Road, thence southeastwardly along the northeast line of Morris Hill Road to a point, said point being 200 feet southeastwardly along the said northeast line of Morris Hill Road from the southeast line of Jenkins Road and being the point of beginning.

ANNEXATION ORD. NO. 6391,
ENACTED FEBRUARY 2, 1972

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 10D and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description of proposed annexed area #10D for annexation boundary:

Beginning at a point in the existing boundary of the City of Chattanooga, said point being in the right-of-way line of the Southern Railroad and the property of the U. S. Government known as Volunteer Ordinance Works being in the Second Civil District of Hamilton County, Tennessee, Section 34, Township 5 and Range 3 west of the basis line of Ocoee District; thence in a northeast direction along the said right-of-way of the Southern Railroad to the west right-of-way line of Ocoee Street, thence southwardly along Ocoee Street 30 feet more or less to a point, thence in a northeast direction along the northwest right-of-way line of the Southern Railroad to the west right-of-way line of Silverdale Highway, thence crossing Silverdale Highway 80 feet more or less to a point in the east right-of-way of said highway, thence continuing along the north right-of-way line of the Southern Railroad crossing Gunbarrel Road to a point in the west line of Interstate Highway No. 75, thence crossing the Interstate Highway No. 75 to the south right-of-way line of said highway and in the north right-of-way of the Southern Railroad, thence in a southwest direction crossing the Southern Railroad to a point, said point being in the right-of-way of Interstate Highway No. 75, thence along the south right-of-way of Interstate Highway [No. 751 in a westward direction to a point in the line between the southeast right-of-way of Inter-state Highway No. 75 and the property of Hamilton County, Tennessee, thence in a southward direction leaving the right-of-way line of said highway, crossing the property of Hamilton County, Tennessee, a distance of 2,000 feet more or less to the most northern corner of the Jefferson Carl Carden property, thence along the northwest property line of the said Carden tract to the most western corner of the said tract, thence southwestwardly along the northeastern property lines of Amos Eugene Sneed, Herbert C. Crockett and Richard 0. Gibbs M.D. to the most eastern corner of the Gibbs tract, thence in a southwest direction along the southeast property line of the said Gibbs tract to a point in the northeast right-of-way line of Standifer Road, thence southeasterly along said right-of-way to a point 135 feet more or less southeastwardly along said line from the intersection of the said northeast right-of-way line of Standifer Road and the southeast right-of-way line of Jenkins Road if said line were extended across Standifer Road, thence southwestwardly cross Standifer Road and running along the rear lot lines of Lots 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11 and 34 Holly Hills Subdivision to a point in the northeast property line of the Mary K. and Winifred House tract, thence along the said northeast property line of the House tract in a southeastward direction a distance of 41.5 feet to a point said point being 200 feet southeastwardly along said property line from the southeast right-of-way of Jenkins Road, thence south-westwardly parallel to

and 200 feet from Jenkins Road to a point in the northeast right-of-way line of Morris Hill Road, said point being 200 feet southeastwardly along said line from the southeast right-of-way line of Jenkins Road, thence northwestwardly 200 feet to the intersection of Morris Hill Road and Jenkins Road, thence south-westwardly along the southeast right-of-way of Jenkins Road to intersection of the southeast line of Jenkins Road with the southwest line of Igou Gap Road, thence along the southwest line of Igou Gap Road to a point in the existing boundary of the City of Chattanooga, Tennessee, said point being 438 feet southeastwardly along the said southwest line of Igou Gap Road from its intersection with the southeast right-of-way line of Gunbarrel Road, thence following the existing city boundary in a northeast direction to the intersection of the existing city boundary, the southwest right-of-way of Walker Road and the southeast right-of-way of Interstate Highway No. 75, thence in a generally north and northwest direction crossing Interstate Highway No. 75, Lee Highway at a point 246 feet northeast of Old Cleveland Pike and continuing in the same direction crossing Hickory Valley Road to the point of beginning.

ANNEXATION ORD. NO. 6393,
ENACTED FEBRUARY 2, 1972,
OPERATIVE JULY 29, 1974

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 12 and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description for proposed annexed area no. 12.

Beginning at a point in the northwest bank of Shoal Creek and in the north bank of the Tennessee River, thence in a westward direction crossing the Tennessee River to the point of intersection of the south bank of the Tennessee River and the northwest property of the now or formerly owned property, of Benjamin L. Cash, Trustee, 57.1 acre tract, thence along said property line of the Cash tract in a westward direction and said line extended to the point of intersection of the said Cash northwest property line and said extension thereof with the boundary line of Hamilton County, Tennessee, thence along the boundary in a generally westward direction to a point in the said boundary line of Hamilton County, Tennessee, said point being the point of intersection of the Hamilton County, Tennessee boundary line with the west property line of the now or formerly owned property of Jamie Elaine Coleman if said west property line were extended across the property now or formerly owned by Paul B. Carter, thence in a southwestward direction along the west property line of the now or formerly owned following tracts and said extension thereof, the said Jamie Elaine Coleman tract, the Jimmy Shields tract, the Jessie J. Hartman tract, the James T. Hartman tract, the R. B. Cooke tract and the J. R. Hicks tract to a point in the southwest right-of-way of Cummings Highway, said point being the northeast corner of the property now or formerly owned by Carl A. Johnson, thence with the southwest right-of-way in a southward direction to a point, said point being the northeast corner of the property now or formerly owned by Stranton B. Ingram, thence along the said Ingram northwest property line in a southwest direction to a corner of the said Ingram tract, thence along the southwest property line of the Ingram tract to a point in the northeast line of the property now or formerly owned by Will Cummings, said point being in the section line dividing Sections 14 and 15, thence southwestwardly along the said section to the southwest corner of Section 14, thence in a southeastward direction along the southwest line of Section 14 to the point of intersection of said Section Line 14 and the northwest right-of-way line of Interstate Highway No. 24, thence continuing along the Section Line 14 to the intersection of said line and the northwest right-of-way line of the Birmingham Highway, thence in a generally southward direction along the said right-of-way of Birmingham Highway to the point of intersection of the said line of Birmingham Highway and the

extended northeast property line of the now or formerly owned property of J. R. Turner, thence along the said northeast property line and extension thereof of the Turner tract to a point in the southeast right-of-way line of Old Birmingham Highway, thence along the said southeast right-of-way line of Old Birmingham Highway to a point in the said right-of-way line, said point being the northeast corner of Lot No. 5, Block A, Levine Subdivision, thence along the northeast line of Lot 5 and the extension thereof to a point in the boundary line of the Chattanooga Lookout Mountain Park, thence in a generally northeast direction with the said Park boundary line to a point, said point being the northeast corner of the property now or formerly owned by Jeff Parker, said point also being the existing boundary of the City of Chattanooga, thence with the boundary of the City of Chattanooga in a south, southwest, north and northeast direction as described in description of Annexation No. 4 to a point in the east bank of the Tennessee River, thence in a north and northeast direction with the east bank of the Tennessee River to the point of beginning.

ANNEXATION ORD. NO. 6395,
ENACTED FEBRUARY 2, 1972,
OPERATIVE JULY 29, 1974

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 13A and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description for proposed annexed area no. 13A *for annexation boundary:*

Beginning at a point, said point being the intersection of the northeast right-of-way line of Reeds Lake Road and the southeast property line now or formerly owned by Hurbert E. Lowe, said point also being the intersection of the City of Red Bank Corporation Line and the boundary line of the City of Chattanooga, thence with the boundary line of the City of Chattanooga in a westward direction to a point, said point being the most northern corner of the boundary of the City of Chattanooga and being 1500 feet more or less westwardly of the west right-of-way line of Mountain Creek Road, thence in a northeast direction on a straight line to a point, said point being the southwest corner of the property now or formerly owned by James L. Pennington, thence northeastwardly along the Pennington northwest property line crossing Courtney Lane to the Pennington's northwest corner, thence along the Pennington's northeast property line to a point, said point being the southwest corner of the property now or formerly owned by Fred W. Combs, thence along the northwest property line to a point, said point being the southwest corner of the property now or formerly owned by Clyde W. Combs, thence along the northwest property line of the said Clyde W. Combs tract and line extended to a point, said point being in the northeast right-of-way line of Godsey Lane, thence along the northeast right-of-way of Godsey Lane in a southeast direction to the point of intersection with the northwest right-of-way line of Browntown Road, thence with the said right-of-way line of Browntown Road in a generally eastern direction to the point of intersection of the said right-of-way line at Browntown Road and line extended to a point in the northeast right-of-way of the old Dayton Pike, said point being a corner of the property now or formerly owned by Ruth Oakes, thence along the said right-of-way in a northwest direction to the point of intersection of the said right-of-way of the old Dayton Pike and the most northern corner of the said Ruth Oakes property, thence in a southeast direction along the northeast property line of the said Ruth Oakes to the southwest corner of the property now or formerly owned by Tennessee Title Company of Chattanooga, Tennessee, Trustee, thence along the northwest property line of the said Tennessee Title Company of Chattanooga, Trustee, tract to the northwest corner of said tract, thence crossing the property now or formerly owned by Ross Yother and the property now or formerly owned by Jack Miller to, the

southwest corner of the property now or formerly owned by Paul F. Gray, Jr., Trustee, thence along the northwest property line of the said Gray tract and the extension thereof to a point in the northeast right-of-way of Boy Scout Road, thence in an eastward and southeastward direction along the said northeast right-of-way of Boy Scout Road crossing the intersection of U.S. Highway No. 27, and Tennessee State Route No. 153 to a point in the said northeast right-of-way of Boy Scout Road, said point being the intersection of the said northeast right-of-way of Boy Scout Road and the southeast property line of the property now or formerly owned by Jewell Hicks, thence in a southwest direction along the said southeast property line of the Jewell Hicks tract and line extended to the southeast corner of the property now or formerly owned by Josie Benton, thence along the southwest property line of the said Benton tract and line extended to the northwest right-of-way line of Gothard Road, thence in a southwest direction along the said northwest right-of-way of Gothard Road and line extended to a point in the west right-of-way line of Tennessee State Route No. 153, thence southward along said right-of-way line of Tennessee State Route No. 153 to the inter-section of said right-of-way line with the northwest right-of-way line of Grubb Road, thence in a southwest direction along the northwest right-of-way of Grubb Road with its intersection with the northwest right-of-way of Dowlen Road, thence in a westward direction along the said northwest right-of-way line of Dowlen Road to its intersection with the west line of Tower Road, thence in a southward direction along the west right-of-way line of Tower Road to the intersection of the said west right-of-way line of Tower Road with the north right-of-way line of Troxler Trail, thence in a westward direction along the said north right-of-way line of Troxler Trail and said line extended to the northwest right-of-way line of Crestview Drive, thence in a generally southward direction along the west line of Crestview Drive to the intersection of the west right-of-way line of Crestview Drive with the center line of Gadd Road being the Red Bank Corporation Line, thence following the corporation line in a generally westwardly direction along the center of Gadd Road to a point in the east right-of-way line of U. S. Highway No. 27, thence crossing said highway in a southwestward direction to the northeast corner of the property now or formerly owned by Chassie Shelton, said property corner being in the west right-of-way line of U. S. Highway No. 27, thence along the northeast property line of the said Shelton tract to the northwest corner of said tract, thence southwardly along the said Shelton's northwest property line to the Shelton's southwest corner, also being the northeast corner of the property now or formerly owned by W. M. Guess, thence following the said Guess southeast property line to the southeast corner of said Guess property, thence along the said Guess southwest property line to a point in said southwest property line, being the center line of McCahill Road, thence in a southwest direction with the center line of McCahill Road to the point of intersection with the center line of Browntown Road, thence in a northwest direction along the center line of Browntown Road to a point in said center line, said point being the intersection of the center line of Browntown Road with the southeast property line of the now or formerly owned property of Ida Brown, thence in a southwestward direction along the said Ida Brown southeast property line to the northeast corner of the now or formerly owned property of Bessie J. Brown, thence along the southeast property line of the said Bessie J. Brown tract to the northeast corner of the now or formerly owned property of The Title Guaranty and Trust Company, Trustees, tract thence along the southeast property line of the said Title Guaranty and Trust Company, Trustee, tract to the point of beginning.

ANNEXATION ORD. NO. 6397,
ENACTED FEBRUARY 2,1972,
OPERATIVE JULY 29, 1974

Under the authority conferred by law, there is hereby annexed to the City of Chattanooga, Tennessee, and include within the corporate boundaries of said city, the area described in Exhibit "A" attached hereto and made a part hereof by reference as fully and completely as though copied herein verbatim. That the territory to be annexed is identified as Area 4 and the boundaries thereof are shown on a plat hereto attached, marked Exhibit "B", and made a part hereof by reference.

EXHIBIT "A"

Description of proposed annexed area no. 4 for annexation boundary:

Beginning at a point that is located on the existing city limits of Chattanooga and the northern right-of-way of the Interstate Highway 24 said point is the northeasterly corner of property now or formerly owned by Will Cummings, thence westerly along the city limits of Chattanooga crossing Browns Ferry Road continuing thence southerly and thence easterly along the city limits line to the point of intersection with the east bank of Lookout Creek, said point is the northwest corner of property of Gulf Oil Corporation, thence southerly 1,000 feet more or less along the west line of property now or formerly owned by Gulf Oil Corporation to the southwest corner of said property, thence southerly a distance of 4,130 feet more or less along the westerly line of property now or formerly owned by J. C. Grant to the southwest corner of said property, thence southerly along the east bank of Lookout Creek crossing Cummings Highway to a point that is the southwest corner of property now or formerly owned by John A. Chambliss, said point is also the northwest corner of the Chattanooga National Military Park boundary, thence southerly along the east bank of Lookout Creek a distance of 11,000 feet more or less to a point that is the intersection of the east bank of said creek and the extension of the northern property line of property now or formerly owned by William Martin, thence west crossing the creek to the northeast property corner of property now or formerly owned by William Martin, thence west to the northwest property corner of said property, thence west to a point on the west right-of-way line of the Wauhatchie Pike, said point is located a distance of 1,500 feet more or less south of the intersection of the west right-of-way line of Wauhatchie Pike and the south right-of-way line of Cummings Road, thence north along the west right-of-way line of Wauhatchie Pike to the south right-of-way line of Cummings Road, thence west along the south right-of-way line of Cummings Road to the intersection of the west right-of-way line of Inter-state Highway 24, thence north along the west right-of-way line of Interstate Highway 24 to the intersection with the south right-of-way line of Cummings Highway to a point that is the northwest corner of property now or formerly owned by the State of Tennessee, thence north to the southwest corner of property now or formerly owned by Bill Igou, Jr., thence north to the southwest corner of property now or formerly owned by Fuller Bonding Company, thence north to the northwest corner of said property, said corner is on the southerly property line of property now or formerly owned by W. A. Kelley, thence east to the southeast corner of property now or formerly owned by A. W. Kelley, said corner is on the west line of property now or formerly owned by Paul B. Carter, thence southerly, easterly and northerly along said property to a point that is the southeast corner of property now or formerly owned by the United States of America—Park, thence northerly to the southerly right-of-way line of Elder Mountain Road, thence northerly along the southerly right-of-way line of said road and the extension of the west property line of the property now or formerly owned by the Fire and Police Club, thence north along the west line of said property line and property line extended to a point of intersection with the north line of TVA transmission line right-of-way, thence along the north right-of-way line of TVA Transmission line crossing properties now or formerly owned by Robert Lansford, John C. Tinker, Lawrence Boydston, Allie B. Myers and Ethyl B. Merriam, and Jessie Burgress, thence crossing the Tennessee River to the existing city line, thence southerly along existing city limits line to the point of beginning.

ANNEXATION ORD. NO. 6406,
ENACTED FEBRUARY 15, 1972

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto, (Sec. 6-308 thru 6-319 T.C.A.) that there be and is hereby annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the Billy Hull property in the Second Civil District of Hamilton County, Tennessee, contiguous to the corporate boundaries of said City, which territory is fully described as follows:

Beginning at the point of intersection of the northern line of the Billy Hull, Sr., property and the existing corporate limits of Chattanooga, Tennessee, being 300 feet north of and perpendicular to the center line

of Shallowford Road; thence westwardly along the existing corporate limits of Chattanooga, Tennessee, being 300 feet north of and perpendicular to the center line of Shallowford Road, to a point on the southwest property line of the Billy Hull, Sr., property, bounded on the southwest by the Grady Jacoway property; thence north 49 degrees 37 minutes west along the said southwest property line of Billy Hull, Sr., a distance of 103 feet, more or less, to a point; thence north 39 degrees 14 minutes east along the said Billy Hull, Sr., property line, distance of 434 feet to a point, bounded on the northwest by the Martha E. Moore property; thence south 65 degrees 38 minutes east along said property line of Billy Hull, Sr., a distance of 429 feet, more or less, to the point of beginning.

ANNEXATION ORD. NO. 6419,
ENACTED MARCH 9, 1972

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto, (Sections 6-308 thru 6-319, T.C.A.) that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the North Valley Land Company property in the Third Civil District of Hamilton County, Tennessee contiguous to the corporate boundaries of said City, which territory is fully described as follows:

Beginning at the Chattanooga City Limits that is 1000 feet West of Mountain Creek Road on the South line of the North Valley Development Corporation Property; thence North 53 degrees 11 minutes West 480 feet, plus or minus, to an Iron Pin; thence North 32 degrees 15 minutes East 278 feet to an Iron Pin; thence North 58 degrees 46 minutes West 375 feet to a Point; thence North 32 degrees 15 minutes East 1782 feet to a Point; thence South 50 degrees 46 minutes East 375 feet to an Iron Pin; thence North 32 degrees 45 minutes East 661 feet to a cross on a Rock; thence South 71 degrees 09 minutes East 620 feet, plus or minus, to the City Limits of Chattanooga being on the Northern Boundary of the North Valley Development Corporation; thence Southwardly and parallel to Mountain Creek Road and 1000 feet West to the point of beginning-containing 51 acres, more or less.

ANNEXATION ORD. NO. 6437,
ENACTED MAY 2, 1972

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto, (Sec. 6-308 thru 6-319 T.C.A.) that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the property of Lookout Properties, Incorporated, and others, in the Third Civil District of Hamilton County, Tennessee, contiguous to the corporate boundaries of said City, which territory is fully described as follows:

Beginning at a point in the southwest right-of-way line of Cummings Highway, said point being the northeast corner of the property now or formerly owned by the Chattanooga Lookout Mountain Park, of record in Book G, Vol. 28, Page 65 of the Register's Office of Hamilton County, Tennessee, and being in the boundary line of the City of Chattanooga, Tennessee, thence in a northwestward direction with the said right-of-way line of Cummings Highway, Chattanooga Lookout Mountain Park line and the said City boundary line and said line extended to the point of intersection of said line with the north line of the said Park property, thence with the said north line of the Park property in a westward direction to a point in the east right-of-way line of Old Wauhatchie Pike, thence crossing the said Old Wauhatchie Pike to a point in the west right-of-way line of said pike, said point being the intersection of the north property line of the property now or formerly owned by the Title Guaranty and Trust Company, Trustee, and the said east right-of-way of the said Old Wauhatchie Pike, thence following the property line of the said Title Guaranty and Trust Company, Trustee, tract in a westward direction and said line extended across Guild Trail to a point in the westwardly right-of-way line of the said Guild Trail, said point being the intersection of the said right-of-way line of Guild Trail and the north property line of the property now or formerly owned by Irene H. Wolensky, thence following the westwardly right-of-way line of Guild

Trail in a southeastward direction to the intersection of the said right-of-way line and the southern property line of the said Wolensky tract, thence in a westwardly direction with Wolensky south property line to a point in the eastern line of Lookout Mountain Boulevard said point begin [sic., being] the southwest corner of the Wolensky tract, thence with the east right-of-way line of Lookout Mountain Boulevard in a southeastward direction along the said right-of-way to a point, said point being the most southern corner of the Lookout Properties, Incorporated tract, thence leaving the said east right-of-way line of Lookout Mountain Boulevard and following the property line of the said Lookout Properties, Incorporated in eastward, north-eastward directions to the most southern corner of the property now or formerly owned by L. D. Farrar, Jr., thence following the western property line of the said Farrar tract in a northward and eastward direction to a point in the eastern line of Jackson Road (not opened), thence in a northeastward direction crossing Guild Trail and following the southern property lines of the property now or formerly owned by Title Guaranty and Trust Company, Trustee, the property now or formerly owned by Carl L. Gibson, crossing Old Wauhatchie Pike and continuing along the southern property line of the aforesaid now or formerly owned property of Chattanooga Lookout Mountain Park to a corner in said property, thence in southward, northeastward, eastward, south-eastward and northeastwardly directions with the said Chattanooga Lookout Mountain Park property lines to a point in the west right-of-way line of Cummings Highway and the boundary line of the City of Chattanooga, said point being the point of beginning.

ANNEXATION ORD. NO. 6781,
ENACTED AUGUST 13, 1974

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto, (Sections 6-308 thru 6-319 T.C.A.) that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the property of K. D. Covey and others, a map of which is attached hereto and made a part hereof by reference, contiguous to the corporate boundaries of said city, which territory is fully described as follows:

Beginning at the extreme eastern corner of the lands of Winnie Light, located on the southwest line of Cummings Highway, and being also in the northwestern line of what has been known as the Robert Scholze property; thence along the northwestern line of what has been known as the Robert Scholze property, and being in part along a fence line, south forty-five (45) degrees fifteen (15) minutes west, two hundred eighty-one and seven-tenths (281.7) feet to an old iron pin; thence continuing with a fence line, north sixty-five (65) degrees forty-five (45) minutes west, seventy and five-tenths (70.5) feet; thence continuing with a fence line, south thirty-five (35) degrees west, seventy-six and eighth-tenths (76.8) feet; thence north sixty (60) degrees west, one hundred ninety-six (196) feet; thence north thirty-five (35) degrees east four hundred and thirty-six and eight-tenths (436.8) feet, more or less, to the intersection of said line with the present boundary of the city on Cummings Highway; thence along the current boundary of the city and the 19th Ward in a south and easterly direction to the point of beginning.

ANNEXATION ORD. NO. 8830,
ENACTED SEPTEMBER 1, 1987

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the property of The Boaz Company, a map of which is attached hereto and made a part hereof by reference, contiguous to the corporate boundaries of said City along Morris Hill Road, which territory is fully described as follows:

TRACT ONE (1): Being a part of the Northwest 1/4 of Section 18, Township 1, South, Range 2 West of the Basis Line, Ocoee District and described as: Beginning at a point in the East line of Morris Hill Road at the South line of Ray Jo Estates, Unit 1, as shown by plat recorded in Plat Book 25, page 11, of the

Register's Office of Hamilton County, Tennessee, if extended Westwardly to the East line of Morris Hill Road; thence along said line extended Westwardly and the South line of Ray Jo Estates, Unit 1, South 67 degrees 30 minutes East 1,270.5 feet to an iron pipe; thence South 24 degrees 18 minutes West 365 feet to an iron pipe; thence North 66 degrees 48 minutes West 1,265.8 feet to the East line of Morris Hill Road; thence along the East line of Morris Hill Road, North 23 degrees 04 minutes East 355.6 feet to the beginning.

TRACT TWO (2): Being a part of the Northwest 1/4 of Section 18, Township 1 South, Range 2 West of the Basis Line, Ocoee District and described as: Beginning at an iron pipe in the East line of Morris Hill Road at the Southwest corner of the property conveyed to Joseph F. Wheless and wife, recorded in Book 877, page 243, of the Register's Office of Hamilton County, Tennessee; thence along the East line of Morris Hill Road, North 23 degrees 04 minutes East 355.6 feet to an iron pipe; thence South 66 degrees 48 minutes East 1,265.8 feet to an iron pipe; thence South 24 degrees 18 minutes West 365 feet to the Southeast corner of the Wheless property; thence along the South line of the Wheless property, North 66 degrees 07 minutes West 1,261.2 feet to the beginning.

ANNEXATION ORD. NO. 9058
ENACTED NOVEMBER 8, 1988

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the property of Don Williams, a map of which is attached hereto and made a part hereof by reference, contiguous to the corporate boundaries of said City along Hixson Marina Road, which territory is fully described as follows:

Being a tract of land on Fairview Road and more particularly described as follows: To find the point of beginning, begin at the western most corner of Lot One (1), Harbor Ridge Estates, as shown by plat of record in Plat Book 42, page 185, said point also being in the east line of Fairview Road; thence along and with said east line the following bearings and distances: South 24° 15' 57" West 201.97 feet, South 31° 53' 37" West 176.76 feet; South 35° 58' 27" West 164.20 feet to a point in said east line, which is the point of beginning; thence South 44° 27' 29" East 78.41 feet to a point; thence South 89° 37' 10" East 302.13 feet to a point; thence North 86° 55' 22" East 102.43 feet to a point; thence curving to the west on a radius of 410.56 feet for an arc of 131.89 feet to a point; thence North 39° 13' 14" East 221.40 feet to a point in the original northwest line of the property conveyed to Elbert Harvey and wife, in Book 820, page 523, in the Register's Office of Hamilton County, Tennessee, said point also being in the southwest line of Lot 1, Harbor Ridge Estates; thence South 51° 36' 47" East 266.85 feet to an iron pin at the southern most corner of Lot One (1); thence South 51° 43' 37" East 1,613.34 feet to a point; thence south 52° 21' 25" East 1,276.92 feet to an iron pin and a stone, being the original east corner of the property conveyed in Book 820, page 523; thence South 36° 49' 43" West 536.0 feet to a point at the east corner of the Ashley property conveyed by deed in Book 2742, page 815, said Register's Office; thence North 45° 10' 17" West, 75 feet to the north corner of said property; thence South 36° 49' 43" West, 100 feet to the west corner of said property; thence South 45° 10' 17" East, 75 feet to the north corner of said property; thence South 36° 49' 43" West 320.61 feet to a point in the northwest line of Hixson Marina Road; thence Southwardly along and with said northwest line, 613.17 feet to a concrete monument; thence North 42° 59' 30" West 294.29 feet to a concrete monument; thence North 44° 10' 10" West 564.54 feet to a concrete monument; thence North 45° 51' 04" West 89.91 feet to a concrete monument; thence South 43° 02' 42" West 435.90 feet to a point; thence North 69° 09' 44" West 314.39 feet to an iron pin; thence North 31° 08' 56" West 242.28 feet to a fence corner; thence South 59° 24' 49" West 42.68 feet to a fence corner; thence North 27° 14' 09" West 563.63 feet to a point; thence North 19° 03' 34" West 297.0 feet to a point; thence North 27° 58' 14" West 200 feet to an iron pin; thence North 68° 34' 43" West 50.14 feet to a fence corner; thence North 52° 21' 06" East 100.24 feet to an iron pin; thence North 1° 55' 50" West 408.73 feet to a point; thence North 80° 06' 08" West 294.06 feet to an iron pipe; thence

North 06° 50' 40" East 423.39 feet to an iron pipe; thence North 57° 18' 40" West 372.11 feet to a concrete monument; thence North 72° 33' 15" West 106.19 feet to an iron pipe in the east line of Fairview Road; thence north along and with said east line, 356.22 feet to the point of beginning, all as shown by survey of David Matthews Surveying Co. dated April 30, 1988.

Last recorded Deed and prior title in Book 551, Page 663, Book 581, Page 76, Book 584, Page 165, Book 820, Page 523, and in Book 1005, Page 478, said Register's Office.

ANNEXATION ORD. NO. 9063,
ENACTED NOVEMBER 22, 1988

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as Hixson Marina Road, contiguous to the corporate boundaries of said City at Big Ridge Road, which territory is fully described as follows:

Hixson Marina Road beginning at the intersection of the northwest line of Hixson Marina Road with the northeast line of Big Ridge Road, thence northeast some 1035 feet with the northwest line of Hixson Marina Road to the northernmost point of which the Don Williams and Ben Spangler tract is contiguous to said Hixson Marina Road, thence at a right angle southeast 40 feet to the southeast line of Hixson Marina Road, thence southwest some 145 feet with the southeast line of Hixson Marina Road to the Chattanooga city limit line, thence continuing southwest some 880 feet with the southeast line of Hixson Marina Road and that Chattanooga city limit line to the northeast line of Big Ridge Road (if extended), thence northwest some 40 feet to the intersection of the northwest line of Hixson Marina Road with the northeast line of Big Ridge Road, the point of beginning.

ANNEXATION ORD. NO. 9084,
ENACTED DECEMBER 13, 1988

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as Fairview Road Properties, contiguous to the corporate boundaries of said City at Big Ridge Road, which territory is fully described as follows:

Lots 1-5, Resubdivision of Lot Number 1, Division of Big Ridge Development Company, as shown by plat of record in plat book 39, page 112, Register's Office of Hamilton County, Tennessee, lots 1-5, Edwin Harvey Subdivision, as shown by plat of record in plat book 44, page 221, Register's Office of Hamilton County, Tennessee, an unplatted tract, and part of Fairview Road. Said lots, unplatted tract, and part of street form one tract beginning on the northeast line of Big Ridge Road some 490 feet northwest of the intersection of the northeast line of Big Ridge Road with the northwest line of Fairview Road, said point being the southwest corner of property currently owned by Dallas A. Jones, thence northwest, northeast, and northwest some 1860 feet with the northeast and southeast line of Big Ridge Road to the southeast corner of property currently owned by Estelle Breedlove and George Joaquin, thence northeast 140 feet with the southeast line of said Breedlove and Joaquin tract to the northeast corner thereof, thence southeast some 720 feet, thence northeast some 290 feet, thence southeast some 520 feet to the southeast line of Fairview Road, thence southwest some 300 feet with the southeast line of Fairview Road to the northwest corner of lot 1, said Edwin Harvey Subdivision, thence with the northeast line of said subdivision southeast 106.19 feet, and southeast 372.11 feet to the northeast corner thereof, thence southwest 423.39 feet with the southeast line of said subdivision, thence northwest 752.57 feet with the southwest line of said subdivision to the southeast line of Fairview Road, thence southwest some 720 feet to the southwest line of the said Dallas Jones tract if said line were extended across Fairview Road, thence northwest, crossing Fairview Road and continuing with the southwest line of the said Jones tract, some 300 feet to the northeast line of Big Ridge Road, the point of beginning.

ANNEXATION ORD. NO. 9335*
ENACTED MARCH 1, 1990

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

Embracing that certain part of Civil District No. 2 of Hamilton County, Tennessee, and more fully described, to-wit:

Beginning on the southeast line of Old Lee Highway some 575 feet southwest of the intersection of the southeast line of Old Lee Highway with the northwest line of Green Shanty Road, said point also being the intersection of the southeast line of Old Lee Highway with the Chattanooga City Limit line, thence northwest 100 feet with said city limit line to the northwest line of Old Lee Highway, thence with Old Lee Highway northeast some 1090 feet, southeast some 15 feet, and northeast, southeast, and northeast some 4400 feet to the northeast line of Apison Pike (if extended), thence southeast some 1650 feet with Apison Pike, thence southwest 60 feet to the southwest line of Apison Pike, said point being 500 feet southeast of the intersection of the southwest line of Apison Pike with the southeast line of Pattentown Road, thence southwest at a right angle 300 feet, thence southeast and northeast some 1110 feet parallel to, and at all points 300 feet from, Apison Pike to the southwest line of a 100 foot T.V.A. transmission line easement, thence southeast some 1940 feet, with the southwest line of said easement to a point 500 feet (if measured at a right angle) southwest of the southwest line of Apison Pike, thence southeast some 1912 feet parallel to, and at all points 500 feet southwest of, the southwest line of Apison Pike to a point in the northwest line of the Barnie Joe and Darlene Hagan property, thence with Hagan's property lines southwest some 100 feet, southeast some 15 feet, southwest some 200 feet, southeast some 405 feet, southwest some 104 feet, southeast some 275 feet, and northeast some 320 feet to the Collegedale City Limit line, thence with said city limit line southeast some 1290 feet and southwest some 1390 feet, thence leaving said city limit line and continuing southwest some 3610 feet to the southwest line of the W. A. Varnell property, thence northwest some 1460 feet with Varnell's southwest line to the southeast line of property owned by the City of Chattanooga, thence with the City's property lines southwest some 1780 feet, northwest some 1330 feet, northeast some 710 feet, northwest some 420 feet, northeast some 900 feet, southeast some 430 feet, northeast some 425 feet, southeast some 750 feet, northeast some 260 feet, northwest some 270 feet, northeast some 410 feet, and northwest some 2420 feet to the northeast line of Woodland Drive, thence northwest some 670 feet with Woodland Drive, thence with the City's property lines northeast some 990 feet, northwest some 215 feet, northeast some 215 feet, northwest some 180 feet, southwest some 40 feet, northwest 103.4 feet, southwest some 22 feet, northwest some 425 feet, northeast some 265 feet, northwest some 210 feet, southwest some 310 feet, northwest some 220 feet, northeast some 420 feet, southeast some 40 feet, southwest some 170 feet, southeast some 560 feet, northeast some 315 feet, northwest some 575 feet, and northeast some 330 feet to the northeast corner of the property owned by Celestine Maston said point being in the southwest line of property owned by Elbert L. and Lorine F. Fox, thence with Fox's property lines northwest some 780 feet, northeast some 640 feet, and northwest some 855 feet to the southeast line of Pattentown Road, thence northeast some 515 feet with Pattentown Road to the southwest line of Apison Pike, thence crossing Pattentown Road and continuing northwest with Apison Pike some 1100 feet to the southeast line of Old Lee Highway, thence with Old Lee Highway southwest, northwest, and southwest some 4400 feet, northwest some 15 feet, and southwest some 1090 feet to the Chattanooga City Limit line, the point of beginning.

***Note—**Subsequently amended by Ord. Nos. 10359, adopted January 16, 1996, and 10371, adopted February 6, 1996.

ANNEXATION ORD. NO. 9359
ENACTED MAY 8, 1990

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

Property located in the 6400 block of Fairview Road, being on the southeast line of Fairview Road northeast of Big Ridge Road, and the northeast line of Big Ridge Road southeast of Fairview Road.

Harbor Ridge Estates and an unplatted tract together forming one tract beginning on the southeast line of Fairview Road some 2110.22 feet northeast of the intersection of the southeast line of Fairview Road with the northeast line of Big Ridge Road, said point being the northwest corner of lot 1, Bay Pointe Estates Subdivision, as shown by plat of record in plat book 43, page 106, R.O.H.C., thence northeast some 1139.3 feet with Fairview Road to the southeast line of Folkner Road, thence northeast and southeast 1103.56 feet with Folkner Road to the northeast corner of lot 16, Harbor Ridge Estates, as shown by plat of record in plat book 42, page 185, R.O.H.C., thence southwest 557.71 feet to the southeast corner of said lot, thence northwest 150.11 feet with the southwest line of lots 16 and 15 to the northeast corner of lot 1, said Harbor Ridge Estates, thence southwest 531.06 feet with the southeast line of lot 1 to the southeast corner thereof, said point being in the northeast line of said Bay Pointe Estates subdivision, thence northwest 266.85 feet with the line between said Bay Pointe Estates and said Harbor Ridge Estates to the northwest corner of lot 2, Bay Pointe Estates, thence southwest 221.4 feet with the northwest line of said lot 2 to the northeast line of Bay Pointe Drive, thence northwest and southwest 234.32 feet with Bay Pointe Drive to the southeast corner of lot 1, Bay Pointe Estates, thence with the northeast lines of said lot 1 northwest 302.13 feet and northwest 78.41 feet to the southeast line of Fairview Road, the point of beginning.

ANNEXATION ORD. NO. 9860
ENACTED APRIL 6, 1993

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the property of Blaine Reese, contiguous to the corporate boundaries of said City along Mountain Creek Road, which territory is fully described as follows:

LOCATED IN THE CITY OF CHATTANOOGA, HAMILTON COUNTY, TENNESSEE:

Beginning at an iron pin in the Northwest corner of said property said point being a common corner with the property of Richard Compton described in deed recorded in Book 3961, Page 247, in said Register's Office and the property of Corena Combs Cross, described in Deed recorded in Book 2782, Page 522, in said Register's Office; thence South 01 degrees 00 minutes West 518.14 feet to an iron pin, a common corner of the Richard Compton property; thence South 60 degrees 59 minutes 04 seconds East 271.41 feet, more or less, to a point being the boundary of the corporate limits of the City of Chattanooga, thence southwestwardly along said corporate limits to the point of beginning.

Being a part of the property conveyed to Blaine R. Reese by Zona B. Mabry.

ANNEXATION ORD. NO. 9890
ENACTED JUNE 1, 1993

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the area known as the property of William C. Haisten, Sr.,

contiguous to the corporate boundaries of said City in the Georgetown Trace Subdivision, which territory is more fully described in the legal description and map attached hereto and incorporated herein by reference.

Being a tract of land located on the eastern end of the proposed Georgetown Trace Development, being the William Haisten's property and being more particularly described as follows:

Beginning at the southeastern most corner of Lot 24, Ray-Jo Estates, Unit 3, recorded in plat book 31, page 162, thence north 24 degrees 26 minutes east a distance of 38.0 feet, thence along the southern line of the John Wright property south 58 degrees 02 minutes east a distance of 278.35 feet, thence south 64 degrees 25 minutes east a distance of 79.48 feet, thence south 67 degrees 15 minutes east a distance of 67.64 feet, thence along the western right-of-way of an unopened 20 foot road the following calls, south 27 degrees 45 minutes west a distance of 211.89 feet, thence south 43 degrees 27 minutes west a distance of 428.40 feet, thence south 70 degrees 18 minutes west a distance of 210.0 feet, thence north 75 degrees 09 minutes west a distance of 35.0 feet, thence north 63 degrees 54 minutes west a distance of 70.0 feet, thence leaving said right-of-way north 21 degrees 11 minutes east a distance of 37.44 feet, thence north 40 degrees 47 minutes east a distance of 712.19 feet to the point of beginning. All containing 5.8 acres as shown on a survey by David Mathews Surveying Dwg. No. 92-S1619.

ANNEXATION ORD. NO. 10044
ENACTED MAY 17, 1994

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Elder Mountain, in Marion County, contiguous to the corporate boundaries of said City, which territory is more fully described as follows:

Being that portion of Lots 16 and 17, Unit One, Elder Mountain Subdivision, located in Hamilton and Marion Counties, Tennessee, and recorded in the Marion County Register's Office in Plat Book 2, page 80, more particularly described as follows:

Beginning at a point in the north lot line of Lot 17 and the south lot line of Lot 19 of Unit One, Elder Mountain Subdivision, at the intersection of Hamilton and Marion County Lines and the City of Chattanooga Limits said point being 187 feet, more or less, S 51° 56' west of the northwest corner of said Lot 17 in the east right-of-way of Cumberland Road; thence southwardly along said City Limit and County Line, 382 feet more or less to a point in Lot 16 and Lot 17 and 220 feet more or less S 57° 14' E from an iron pin in the east right of line of Cumberland Road; thence N 57° 14' W 220 feet more or less to an iron pin in the east right-of-way of Cumberland Road that is 487.73 feet northwardly along said east right-of-way line from its intersection with the north right-of-way line of Elder Mountain Road; then northwardly 404.97 feet along said east right-of-way line of Cumberland Road to the northwest corner of Lot 17, being the southwest corner of Lot 19; thence S 51° 56' E along the line of Lot 17 and Lot 19, 187 feet more or less to the point of beginning.

ANNEXATION ORD. NO. 10115*
ENACTED OCTOBER 4, 1994

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

Beginning at a point in the southern boundary of the corporate limits of the City of Soddy-Daisy starting at the southwestern corner of the Soddy-Daisy corporation limits presently north of Selcer Road; thence

---

***Note—**Subsequently amended by Ord. No. 10836, adopted March 2, 1999.

following the northern right-of-way boundary of Selcer Road westward until Selcer Road intersects with the western right-of-way boundary of Loop Road; thence following the western right-of-way boundary of Loop Road southward until it intersects with the southern right-of-way boundary of Higgins Road; thence following the eastern property line of Parcel 53, Tax Map 73, and continuing southward along the eastern boundary of Parcel 46, Tax Map 73, to the northeastern corner of Parcel 4, Tax Map 82; thence following the northern boundary of Parcel 4, Tax Map 82, and the northern boundary of Parcel 2, Tax Map 82, continuing across Roberts Mill Road and onto the center line of Falling Water Creek; thence continuing southeastwardly with the center line of Falling Water Creek until Falling Water Creek intersects with the western right-of-way boundary of Dayton Pike; thence continuing in a generally southern direction following the western right-of-way boundary of Dayton Pike until it intersects the northern right-of-way boundary of Old Dayton Pike; thence continuing in a generally southwestward direction along Old Dayton Pike crossing Pitts Road and continuing until Old Dayton Pike intersects with the northern right-of-way boundary of U.S. Highway 29; thence continuing across U.S. Highway 29 to the southern right-of-way boundary of Boy Scout Road at its intersection with the eastern right-of-way boundary of U.S. Highway 29; thence continuing with the southern right-of-way boundary of Boy Scout Road crossing Old Dayton Pike and continuing with the southern right-of-way boundary of Boy Scout Road in an eastward direction until Boy Scout Road intersects the eastern right-of-way boundary of the Southern Railway; the eastern boundary of the annexed property will then proceed northward along the eastern right-of-way boundary of Southern Railway to the point that the eastern right-of-way boundary of the Southern Railway intersects the eastern property line of Parcel 251, Tax Map 82; the eastern limit of the annexation property shall then follow the eastern boundary of Parcel 251, Tax Map 82, northward until it touches the southwestern corner of Parcel 222, Tax Map 82; thence following the southern boundaries of Parcels 222 and 223 eastward to the southeastern corner of Parcel 223, Tax Map 82; thence following the eastern boundaries of Parcels 223, 220.1, and 220 northward to the northeastern property line of Parcel 220, Tax Map 82; thence following the northern boundary of Parcel 220, Tax Map 82, westward to the point that it intersects with the southeastern boundary of Parcel 16, Tax Map 82; thence following the eastern boundary of Parcel 16, Tax Map 82, northward until the eastern boundary of Parcel 16, Tax Map 82, reaches a point in the southern boundary of Tax Map 82F-A-26; thence eastward along the southern boundary of Tax Map 82F-A-26; thence in a northern direction following the eastern boundary of Tax Map 82F-A-26 some 140' to a point; thence southeast some 430' to a point in the western right-of-way boundary of Harper Road; thence following the western right-of-way boundary of Harper Road northward until it meets the southeastern corner of Tax Map 73M-C-27, and the southwestern corner of Tax Map 73M-C-26; thence following the southwestern property line of Tax Map 73M-C-26, northward to its northwestern corner; thence following the northern boundary lines of Tax Map 73M-C-26 and 73M-C-23, eastward until it meets the southeastern corner of Tax Map 73M-C-27, and the western boundary line of Tax Map 73M-C-7; thence continuing northwestwardly along the western boundary of Tax Map 73M-C-7 and 73M-C-6, to the northwestern corner of Tax Map 73M-C-6, and the southwestern corner of Tax Map 73M-C-5; thence continuing eastward along the northern boundary of Tax Map 73M-C-6, and the southern boundary of Tax Map 73M-C-5, until those boundaries reach the western right-of-way boundary of Thrasher Pike; thence crossing Thrasher Pike and continuing to the northern right-of-way boundary of Thrasher Pike to the present boundary line of the City of Soddy-Daisy, Tennessee; thence continuing westward with the southern boundary of the corporate limits of the City of Soddy-Daisy until the point of beginning.

ANNEXATION ORD. NO. 10156
ENACTED JANUARY 10, 1995

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

The area to be annexed consists of parcel 15, Hunnicutt map 154, and all road rights-of-way which are contiguous to parcel 15, plus any rights-of-way which are within parcel 15.

ANNEXATION ORD. NO. 10186
ENACTED MARCH 28, 1995

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

BEGINNING on the east bank of Lookout Creek and the Dade County, Georgia/Hamilton County, Tennessee line; thence, in a westerly direction along the county/state lines, and the south lines of parcels 3 and 6, Hunnicutt map 166, to a point in the east right-of-line of the Southern Railway and the county/state lines; thence, along Southern Railway's east right-of-way line and the west property line of parcels 6 and 3, map 166, to the southwest property corner of parcel 3.5, map 166; thence, in a southeastern direction along the common property line between parcels 3 and 3.5, map 166, to the southeast corner of parcel 3.5, map 166; thence, in a northeastern direction along the common property line between parcels 3 and 3.5, map 166, to the existing Chattanooga, Tennessee city limit line; thence, in a southeasterly direction along the existing city limit line to the east bank of Lookout Creek; thence, meandering along the east bank of Lookout Creek, in a southwesterly direction, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10187
ENACTED MARCH 28, 1995

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

BEGINNING at the southwest corner of parcel 8, Hunnicutt tax map 165, said point being on the Dade County, Georgia/ Hamilton County, Tennessee line; thence, in a northeasterly direction, along the west property line of parcels 8, 9, and 10.2, map 165, and continuing along the west property line of parcel 28.1, map 153, to its northwestern corner, which is in the existing Chattanooga, Tennessee city limits; thence, in a southeasterly direction along the north property line of said parcel 28.1 and the existing city limit line, extending across Interstate 24 to the western right-of-way line of U.S. Highway 11; thence, still following the existing city limit line and the western right-of-way line of U.S. Highway 11 on the eastern property line of parcel 10.1, map 165, in a southeastern direction, crossing the L & N RR right-of-way, then following the eastern property line of parcel 5, map 166 to its most southeastern corner, said corner is in the western right-of-way line of U.S. Highway 11; thence, leaving U.S. Highway 11 in a northwesterly direction, along the south property line if parcel 5, map 166, and the north property line of parcel 18, map 165 to the east right-of-way line of the L & N RR, said point being the northwest corner of parcel 18, map 166; thence, in a southwesterly direction, along the aforesaid east right-of-way line and the west property lines of parcels 18 and 16, map 165, continuing across the L & N spur track to the Wauhatchie Railroad Yards, then continuing along the east right-of-way line of the L & N RR and the west property line of parcel 14, map 165, and parcel 2, map 177, to the Dade County, Georgia/Hamilton County, Tennessee line; thence, westwardly along the said county/state line, being also the south line of parcel 8, map 165, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10190
ENACTED APRIL 4, 1995

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

The area to be annexed adjoins the western line of the Chattanooga City Limits on the north right-of-way line of Cummings Highway (US Route 41, 64, 72, and Tennessee State Route 2), at the most southern

property corner of Parcel 22, Hunnicutt Tax Map No. 143; thence, in a northwesterly direction along the northern right-of-way line of Cummings Highway and the southern property line of Parcels 22, and 23, Map 143, to the southeastern property corner of Parcel 24, Map No. 143; thence, along the eastern property line of Parcel 24, Map No. 143 and the western property lines of Parcels 23, 30, and 42, Map No. 143 in a northeasterly direction to a point in the property line of Parcel 43, Map No. 143 and the southeastern line of Wilcox Road; thence, in a south-westerly direction along the southeastern line of Wilcox Road and Parcel 43, Map No. 143 to a point; thence, in a southwesterly direction, leaving Wilcox Road, along the property line between Parcel 24, Map No. 143 and Parcels 43, 28, and 29 (Crossing Wilcox Road), Map No. 143, to the southeastern property corner of Parcel 29, Map No. 143; thence, in a north-westerly direction along the property line between Parcels 24 and 29, Map No. 143, to a point in the eastern line of Parcel 25, Map No. 143, being also the southwestern property corner of Parcel 29, Map No. 143; thence, in a south-westerly direction, along the property line between Parcels 24 and 25, Map No. 143, to a point in the northern right-of-way line of Cummings Highway; thence, along the northern right-of-way line of Cummings Highway along the southern property line of Parcel 25, Map No. 143, to the Marion/Hamilton County Line; thence, crossing the Cummings Highway right-of-way in a southwesterly direction along the county line, to the southern right-of-way line of Cummings Highway to the northwestern property corner of Parcel 1, Map No. 143; thence, following the south-western right-of-way line of Cummings Highway in a southeasterly direction, fronting on Parcels 1, 1.1, 1, 6, 12, 7, 8, 10, 12, 13, 14, 15, 16, 17, 18, 12, 19, 20, Map No. 143, Parcels 1 and 2, Map No. 153, to a point in the existing Chattanooga City Limit Line; thence, along the existing city limit line in a northeasterly direction, crossing to the Cummings Road northeastern right-of-way line to the POINT OF BEGINNING as shown by the attached map.

ANNEXATION ORD. NO. 10192
ENACTED APRIL 4, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Charles W. Walldorf and Flora Harkey Walldorf, which territory is more fully described as follows:

Lot 31, and part of lots 27 and 29, Cravens and McMillins Addition to Lookout Mountain, as shown by plat of record in plat book 2, page 39, ROHC; being the properties described as Tracts 2, 3 and 4 in deed book 3607, page 439, ROHC; together with that part of Shingle Road and Elinor Street which adjoins said tracts. Said lot, parts of lots, and parts of streets form one tract beginning at the intersection of the southeast line of Elinor Street with the northeast line of Shingle Road, thence southwest some 33 feet with the extension of the southeast line of Elinor Street to the southwest line of Shingle Road, thence northwest some 322 feet with the southwest line of Shingle Road to the northwest line of said Tract 3 (if extended southwestwardly), thence northeast some 245.1 feet, crossing Shingle Road, and continuing with the northwest line of said Tracts 3 and 2 to the southwest line of Carolina Street, thence southeast some 191.7 feet with the southwest line of Carolina Street, and said line extended, to the southeast line of Elinor Street, thence southwest some 255 feet with the southeast line of Elinor Street to the northeast line of Shingle Road, the point of beginning. Tax Map No. 155I-B-5.

ANNEXATION ORD. NO. 10193
ENACTED APRIL 4, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included

within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by James T. Williams, III, which territory is more fully described as follows:

Parcel 155I-B-004: The area to be annexed adjoins the Chattanooga City Limits on the northeastern right-of-way of Hardy Trail and consists of all of Parcel B-004, Hunnicutt tax map number 155I, plus that portion of Carolina Street which fronts on the north-eastern property line of said Parcel B-004.

Parcel 155I-B-011: The area to be annexed adjoins the Chattanooga City Limits Line on the northeastern line of Parcel 15, Hunnicutt Tax Map Number 154, and consists of all of Parcel B-011, said map number 155I, plus that portion of Cravens Road which is contiguous to said parcel on its northeastern property line.

ANNEXATION ORD. NO. 10194
ENACTED APRIL 4, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by William L. Frierson, Amy H. Frierson and Susan Dabney Frierson James, which territory is more fully described as follows:

PARCELS 155H-B-016,
155I-A-001, & 155I-A-002

The area to be annexed adjoins the Chattanooga City Limits on the northeastern property corner of Parcel A-002, Hunnicutt Tax Map Number 155I, being also in the southern right-of-way line of Cravens Terrace; thence, in a southwesterly direction, following the existing Chattanooga City Limits and the property line between Parcel 015, Map 154, and Parcels A-002 and A-001, Map 155I, to the most southeastern corner of Parcel A-001, Map 155I; thence, in a northwesterly direction still following the existing city limits line and the property line between Parcel 015, Map 154, and Parcel A-001, Map 155I, to the most southwestern corner of Parcel A-001, Map 155I; thence, in a north-easterly direction, continuing along the existing city limits line and the property line between Parcel 015, Map 154 and Parcel A-001, Map 155I to the most northwestern property corner of Parcel A-001, Map 155I, which is a point in the southern property line of Parcel A-008, Map 155H; thence, in a southeasterly direction, leaving the existing city limits line, along the northern property lines of Parcels A-001, Map 155I and Parcel B-016, Map 155H, being also the southern property lines of Parcels A-008, an unnamed road right-of-way, B-001, B-013, an unnamed road right-of-way, B-004, and Parcel C-014.1, Map 155H, to the most northeastern property corner of Parcel B-016, Map 155H; thence, in a southwesterly direction, along the property line between Parcels B-016 and B-015, Map 155H, to Cravens Terrace north right-of-way line; thence, extending the aforementioned property line to the southern right-of-way line of said Cravens Terrace; thence, in a southwesterly direction, along the eastern right-of-way line of Cravens Terrace to the most southwestern corner of Parcel B-007, Map 155I; thence, in a northeasterly direction, along the north right-of-way line of Cravens Terrace, fronting on Parcels B-007 and B-008, Map 155I, continuing to the most southeastern property corner of Parcel B-008, Map 155I; thence, crossing the Cravens Terrace right-of-way to the most northeastern corner of Parcel A-002, Map 155I, and the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10227
ENACTED MAY 23, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included

within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Scott King d/b/a Sky Harbor Bavarian Inn, which territory is more fully described as follows:

The area to be annexed consists of Parcel A-005, Hunnicutt Tax Map No. 155A.

ANNEXATION ORD. NO. 10228
ENACTED MAY 23, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by James C.R. Laney and E. George Gardenhire, which territory is more fully described as follows:

The area to be annexed adjoins the existing Chattanooga City Limits at the northwestern property corner of Parcel No. G-001, Hunnicutt Tax Map 167A; thence, in a southeasterly direction along the property lines of Parcels H-001 and H-012, Map 155P, and Parcel G-001, Map 167A, to the southwestern property corner of Parcel H-012.01, Map 155H; thence, in a northeasterly direction along the property line between Parcels H-012 and H-012.01, Map 155P, to a point in the western right-of-way line of Shingle Road; thence, perpendicular to Shingle Road, across said road to its eastern right-of-way line, to a point in the western property line of Parcel H-010, Map No. 155P; thence, in a southeasterly direction along the eastern right-of-way line of said road and the western property line of Parcel H-010, Map No. 155P to the western right-of-way line of Scenic Highway; thence, extending the property line of Parcel H-010, Map No. 155P across Scenic Highway to its eastern right-of-way line to a point in the western property line of Parcel H-005, Map No. 167A; thence, in a southwesterly direction, along Scenic Highway's eastern right-of-way line, fronting on the western property lines of Parcels 5, 4, and 3, Map No. 167A, crossing Sanders Road, to a point which is opposite the southeastern property corner of Parcel G-001, Map No. 167A; thence, crossing Scenic Highway to its western right-of-way line and the southeastern property corner of said parcel; thence, in a westerly direction along the property line between Parcels G-001 and G-002, Map no. 167A to the southwestern property corner of said Parcel G-001 in the existing Chattanooga City Limits Line; thence, in a northerly direction, along the existing city limits line and the western property line of Parcel G-001, Map 167A, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10229
ENACTED MAY 23, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by John Robert, which territory is more fully described as follows:

The area to be annexed consists of Parcel B-017, Hunnicutt Tax Map No. 155I.

ANNEXATION ORD. NO. 10230
ENACTED MAY 23, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included

within the corporate boundaries of said City an area adjacent to Cummings Highway, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Richard Rossell and Martha Rossell, which territory is more fully described as follows:

The area to be annexed consists of Parcel 20, Hunnicutt Tax Map No. 143.

ANNEXATION ORD. NO. 10231
ENACTED MAY 23, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Mary Ellen Lynde Thompson, which territory is more fully described as follows:

The area to be annexed adjoins the existing Chattanooga City Limits on the southwestern corner of Parcel B-002, Hunnicutt Tax Map No. 155I on the northern right-of-way line of Carolina Street, on the eastern property line of Parcel 15, Map No. 155; thence, continuing along the existing city limits line in a northeastern direction between Parcel 15, Map No. 155 and Parcel B-002, Map No. 155I, to the northwestern corner of Parcel B-002, Map No. 155I and the southern right-of-way line of Rutherford Street, continuing along the eastern property line of Parcel 15, Map No. 155 across said street right-of-way to a point in its northern right-of-way line; thence, along the northern right-of-way line of Rutherford Street in a south-easterly direction to a point opposite the northeastern property corner of Parcel B-002, Map No. 155I; thence, crossing said street right-of-way line to the northeastern property corner of Parcel B-002, Map No. 115I, and continuing along the property line between Parcels B-002 and B-003, Map No. 155I, to the northern right-of-way line of Carolina Street and the existing city limits line; thence, continuing along the existing city limits line in a northwesterly direction, being also the northern right-of-way line of Carolina Street and the southern property line of Parcel B-002, Map 155I TO THE POINT OF BEGINNING.

The area to be annexed adjoins the existing Chattanooga City Limits on the northern right-of-way line of Cravens Terrace at the southeastern property corner of Parcel No. B-008, Hunnicutt Tax Map No. 155I; thence, in a northerly direction along the most westerly line of an unnamed road right-way line, as shown on the plat of the Cravens & McMillans Addition to Lookout Mountain recorded in Plat Book 2, page 39, of the Register's Office of Hamilton County, Tennessee, and the eastern property line of Parcel B-008, Map No. 155I, to a point in the southern right-of way line of Cravens Road, and continuing across said right-of-way to its northern right-of-way line; thence, along the northern right-of-way line of Cravens Road and the southern property line of Parcel B-14.1, Map No. 155H, to a point opposite the north-eastern property corner of Parcel B-009, Map No. 155I; thence, in a southeasterly direction, crossing the right-of-way of Cravens Road to the southern right-of-way line of said road and the northeastern property corner of Parcel B-009, Map No. 155I; thence, in a southwesterly direction along the property line between Parcels B-009 and B-010, Map No. 155I, to the southeastern property corner of Parcel B-009, Map No. 155I; thence, in a northwesterly direction along the property line between Parcels B-009 and B-010, Map No. 155I, to a point in the eastern line of an unnamed road right-of-way line; thence, along the unnamed road right-of-way line and the western property line of Parcel B-010, Map 155I, in a southwesterly direction to a point in the northern right-of-way line of Cravens Terrace; thence, in a north-westerly direction, along the northern right-of-way line of Cravens Terrace to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10245
ENACTED JUNE 20, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included

within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Marcia McMillin and Garvin McMillin Colburn, which territory is more fully described as follows:

BEGINNING at the existing Chattanooga City Limit Line at the northwest property corner of Parcel G-004, Hunnicutt Tax Map 167A; thence, in an easterly direction along the northern property line of Parcel G-004, Map 167A, and the southern property line of Parcel G-003, Map 167A, to a point which is the north-eastern property corner and in the western right-of-way line of South Scenic Highway; thence, extending said property line across said highway to its eastern right-of-way line, said point being the northwestern property corner of Parcel J-004, Map 167A; thence, along the common property line between Parcels J-004 and J-005 to the north-eastern property corner of Parcel J-004, Map 167A and the western right-of-way line of Sanders Road; thence, extending said property line across said road right-of-way to its eastern right-of-way line; thence, in a south-easterly direction, along the eastern right-of-way line of said road to the southeast property corner of Parcel J-004, Map 167A; thence, in a westerly direction, along the common property line between Parcel J-004 and Parcels J-003 and J-003.1, Map 167A, to a point in the eastern right-of-way line of South Scenic Highway; thence, across said highway to the southeastern property corner of Parcel G-004, Map 167A; thence in a westerly direction, along the common property line between Parcels G-004 and G-005, Map 167A, to the southwestern property corner of Parcel G-004, Map 167A, to the aforementioned city limit line; thence, in a northerly direction, along said city limit line and the western property line of Parcel G-004, Map 167A, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10263
ENACTED JULY 18, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Paul N. Holt and Wynette S. Holt, which territory is more fully described as follows:

BEGINNING at a point on the eastern right-of-way line of South Scenic Highway, being also a point in the existing Chattanooga City Limits Line and the northwestern property corner of Parcel H-004, Hunnicutt Tax Map Number 167A; thence, in an easterly direction along the common property line of Parcels H-004 and Parcel H-005, Map 167A, to the northeastern property corner of Parcel H-004, Map 167A and the northwestern property corner of Parcel H-001, Map 167A; thence, in a southerly direction along the common property line between Parcel Numbers H-001 and H-004, Map 167A, to the southeastern property corner of Parcel H-004, Map 167A; thence, in a westerly direction along the common property line between Parcels H-003 and H-004, Map 167A, to the southwestern property corner of Parcel H-004, Map 167A, which is a point in the eastern right-of-way line of South Scenic Highway and being also in the existing city limits line; thence, continuing along the existing city limits line in a northerly direction along the western property line of Parcel H-004, Map 167A, and the eastern right-of-way line of South Scenic Highway, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10264
ENACTED JULY 18, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Jack E. Meadows and Ann W. Meadows, which territory is more fully described as follows:

Area to be annexed is contiguous to the existing Chattanooga City Limits Line, and BEGINNING at a point in said existing city limits line, at the southwestern property corner of Parcel H-001, and the

southeastern property of Parcel H-002 of Hunnicutt Tax Map 167A; thence, continuing along the existing city limits line in a westerly direction along the southern property line of Parcel H-002, Map 167A to its southwestern property corner, said point is in the eastern right-of- way line of Sanders Road; thence, perpendicular to Sanders Road, crossing said road, and leaving existing city limits line, to its western right-of-way line; thence, along said road right-of-way line, in a northerly direction, to the eastern right-of-way line of South Scenic Highway, to a point in the existing city limits line; thence, along the eastern right-of- way line of said highway, and the existing city limits line, to a point in the eastern right-of-way line of Sanders Road; thence, in a southerly direction, along said eastern road right-of-way and the western property line of Parcel H-003, Map 167A, to its southwestern property corner and the northwestern property corner of Parcel H-002, Map 167A; thence, in an easterly direction, along the south property line of Parcel H-003, and the north property line of Parcel H-002, Map 167A, to a point in the western property line of Parcel H-001, Map 167A; thence, in a southerly direction, along the property line between Parcels H-001 and H-002, Map 167A, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10271
ENACTED AUGUST 8, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Robert S. Williams, which territory is more fully described as follows:

Property to be annexed is all of Parcel A-003, Hunnicutt Tax Map Number 155I, and more particularly described as follows:

BEGINNING at a point in the existing Chattanooga City Limit Line, said point being the northeastern property corner of Parcel A-003, Hunnicutt Tax Map Number 155I, being also in the western right-of-way line of Hardy Trail; thence, continuing along the existing city limit line and the western right-of-way line of Hardy Trail, being also along the eastern property line of Parcel A-003, Map Number 155I, to its south-eastern property corner; thence, continuing along the existing city limit line in a westerly direction, along the southern property line of Parcel A-003, Map Number 155I, to its southwestern property corner; thence, continuing along the existing city limit line in a northerly direction, along the western property line of Parcel A-003, Map Number 155I, to its north-western property corner; thence, continuing along the existing city limit line in an easterly direction, along the northern property line of Parcel A-003, Map Number 155I to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10272
ENACTED AUGUST 8, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Mrs. E.R. Theobold, which territory is more fully described as follows:

BEGINNING at a point in the existing Chattanooga City Limit Line, being also the northwestern property corner of Parcel B-017, on Hunnicutt's Tax Map Number 155I and southwestern property corner of Parcel B-014, Map Number 155I; thence, in a northeasterly direction on the common property line of Parcels B-013 and B-014, Map Number 155I, to the north-western property corner of Parcel B-014, Map Number 155I, being also a point in the southwestern right-of-way line of Cravens Terrace; thence, continuing on an extension of aforesaid common property line to the northeastern right-of-way line of Cravens Terrace; thence, in a southeasterly direction, along said north-eastern right-of-way line to a point opposite the

north-eastern property corner of Parcel B-014, Map Number 155I; thence, perpendicular to said right-of-way line in a south-westerly direction to the northeast property corner of Parcel B-014, Map Number 155I, and being also the north-western property corner of Parcel B-015, Map Number 155I; thence, in a southwesterly direction along the common property line between Parcels B-014 and B-015, Map Number 155I, to a point in the existing city limit line and the northeastern property line of Parcel B-017, Map Number 155I; thence, continuing along the existing city limit line in a northwesterly direction and being also along the common property line between Parcels B-014 and B-017, Map Number 155I, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10339
ENACTED NOVEMBER 28, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Lookout Mountain Caverns, Inc., which territory is more fully described as follows:

BEGINNING at a point in the existing Chattanooga City Limits Line at the terminus point of the eastern right-of-way line of Guild Trail at the southwestern property corner of Parcel D-002, Hunnicutt Tax Map Number 155H; thence, continuing along the said existing city limits line, crossing said trail, perpendicular to said right-of-way in a southwesterly direction, to the southeastern property corner of Parcel C-001, Map Number 155H, said property corner is a point in the northwestern property line of Parcel C-002, Map Number 155H; thence, continuing along the existing city limits line in a southeasterly direction, along the eastern property line of Parcel C-002, Map Number 155H, to its south-eastern property corner; thence, along the existing city limits line in a southwesterly direction, along the common property line between Parcels C-002 and C-003, Map Number 155H, to the southwestern property corner of Parcel C-002, Map Number 155H, being also the eastern right-of-way line of South Scenic Highway and the western property lines of Parcel C-003, Map 155H, and Parcel C-009, Map Number 155I; thence, continuing with the eastern right-of-way line of South Scenic Highway and the western property lines of Parcels C-010, C-011, C-012, and C-013, Map Number 155I, to its intersection with the northern right-of-way line of Lower Cravens Terrace; thence, crossing the right-of-way of South Scenic Highway, in a southwesterly direction to the northeastern property corner of Parcel B-015, Map Number 155I at the intersection of the rights-of-way of South Scenic Highway and Cravens Terrace; thence, along the southwestern right-of-way line of Cravens Terrace and the north eastern property lines of Parcels B-015, B-014, B-013, B-012, B-001.1, B-011.1, B-011, B-010, and B-009, Map Number 155I; thence, in a northeasterly direction, crossing Cravens Terrace to the southeastern property corner of Parcel B-015, Map Number 155H; thence, in a northeasterly direction along the common property line between Parcels B-014.1 and B-015, Map Number 155H, to the northeastern property corner of said Parcel B-015; thence, in a north-westerly direction, along the common property line between Parcels B-014.1 and B-015, Map Number 155H, to the common Section Corner of Sections 5, 6, 7, & 8, Township 3, Range 4; thence, in a northeasterly direction, along the common property line between Parcel B-014.1 and Parcels B-004, B-005, and B-006, Map Number 155H, to the northeastern property corner of said Parcel 014.1; thence, continuing in a northeastern direction along the common property line between Parcels B-014 and B-013, Map Number 155H, to a point in the south right-of-way line of Guild Trail and the existing city limits line; thence, continuing along the existing city limits line and the south right-of-way line of Guild Trail to its intersection with the western right-of-way line of South Scenic Highway, in a south-easterly direction: thence, continuing along the existing city limits line in a south-easterly direction, crossing South Scenic Highway to its eastern right-of-way line at its intersection with the south right-of-way line of Guild Trail; thence, continuing along the existing city limits line, along the south right-of-way line of Guild Trail and the north-eastern property line of Parcel C-001, Map Number 155H, to a point opposite

the north-western property corner of Parcel D-002, Map Number 155H; thence, continuing with the existing city limits line, in a northeasterly direction, crossing Guild Trail to the northwestern corner of Parcel D-002, Map Number 155H; thence, continuing along the existing city limits line in a northeasterly direction, along the northern property line of Parcel D-002, Map Number 155H, to its common property corner with Parcel D-001, Map Number 155H; thence, along the common property line between Parcels D-001 and D-002, Map Number 155H, to the southeastern property corner of said Parcel D-002; thence, in a south-westerly direction along the southern property line of said Parcel D-002, to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10343
ENACTED DECEMBER 12, 1995

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area known as Winterview Condominiums on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by all individuals notified on the list attached as Exhibit B, which territory is more fully described as follows:

BEGINNING at a point in the existing Chattanooga City Limits Line in the western right-of-way line of the South Scenic Highway, and the southeastern property corner of Parcel G-007, Hunnicutt Tax Map Number 167A; thence, in a northeasterly direction, along the western right-of-way line of South Scenic Highway, passing Parcels G-007, G-006, Map 167A, to a point in the eastern property line of Parcel G-005, Map 167A, opposite the northern right-of-way line of Winterview Lane; thence, in an easterly direction, crossing the South Scenic Highway right-of-way to its eastern right-of-way line, to a corner in the western property line of Parcel J-003.01, Map 167A, and the northeastern right-of-way line of Winterview Lane; thence, along the northeastern right-of-way line of Winterview Lane, passing Parcel J-003.01, J-001, and J-001.01, Map No. 167A, to the northwestern property corner of Parcel J-008, Map No. 167A; thence, in a southeasterly direction along the common property line of Parcels J-001.01 and J-008, Map No. 167A, to a point in the existing city limits line, which is the northeast property corner of Parcel J-008, Map No. 167A; thence, following the existing city limits line, in a south-westerly direction, along the eastern property line of Parcels J-008, J-002.06 and J-002, Map 167A, to the south-eastern property corner of Parcel J-002; thence, following the existing city limits line, in a north-westerly direction, along the southern property line of Parcel J-002, Map No. 167A, to its southwestern property corner, in the eastern right-of-way line of South Scenic Highway; thence, continuing in the direction of said southern property line across South Scenic Highway to the POINT OF BEGINNING.

ANNEXATION ORD. NO. 10359
ENACTED JANUARY 16, 1996*

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

BEGINNING at a point in the existing Chattanooga City Limit line, said point being approximately 500 feet east of the Pattentown Road east right-of-way line extended and the north right-of-way line of Apison Pike, said right-of-way line being 25 feet north of the Apison Pike center line; thence, along the north right-of-way line of Apison Pike in a northeasterly direction, 25 feet north of and parallel to its center line, a distance of approximately 2,625 feet, to a point which is opposite the northwestern property corner of Parcel 160.04, Hunnicutt Tax Map 140; thence, at right angles in a southerly direction, a distance of 50

***Note—**See also Ord. Nos. 10359, adopted January 16, 1996, and 10371, adopted February 6, 1996.

feet, to said northwestern property corner; thence, along the western property line of said Parcel 160.04 and the east right-of-way line of an unnamed road, to the southwestern property corner of said parcel, a distance of approximately 200 feet, to a point of curvature to the left; thence, in an easterly direction, along the radius line of said curve, a distance of approximately 10 feet, to a point which is 30 feet east of the center line of said unnamed road; thence, curving to the left, 30 feet east of and parallel to its center line which has a radius of 680 feet, a delta of 21°23'06", and a length of 253.8 feet, to its point of tangency; thence, along said tangent in a southeasterly direction a distance of approximately 129 feet, to a point of curvature to the right; thence, 30 feet east of and parallel to the center line which has a radius of 1,100 feet, a delta of 19°24'09", and a length of 372.5 feet, to a point of tangency; thence, along said tangent in a southeasterly direction a distance of approximately 106 feet, to a point of curvature to the left; thence, 30 feet east of and parallel to the center line which has a radius of 200 feet, a delta of 12°04'03", and a length of 42.1 feet, to a point of curvature to the right; thence, 30 feet east of and parallel to the center line which has a radius of 200 feet, a delta of 9°53'23", and a length of 34.5 feet, to a point of tangency; thence, along said tangent in a southeasterly direction a distance of approximately 168 feet, to a point of curvature to the left; thence, 30 feet east of and parallel to the center line which has a radius of 340 feet, a delta of 42°36'24", and a length of 252.8 feet, to a point of tangency, thence, along said tangent in a southeasterly direction, a distance of approximately 100 feet, to a point of curvature to the right; thence, 30 feet east of and parallel to the center line which has a radius of 160 feet, a delta of 26°01'48", and a length of 72.7 feet, to a point of tangency; thence, along said tangent in a southeasterly direction, a distance of approximately 100 feet, to a point in the north line of Parcel 160.05, Map 140, and the existing Chattanooga City Limit line; thence, following the existing city limit line in a northwesterly direction, a distance of approximately 75 feet, to point in the western right-of-way line of the 60 foot unnamed road; thence, following said right-of-way line in a northwesterly direction, a distance of approximately 50 feet, to a point of curvature to the left; thence, 30 feet west of and parallel to the center line which has a radius of 160 feet, a delta of 26°01'48", and a length of 72.7 feet, to a point of tangency; thence, along said tangent in a northwesterly direction, a distance of approximately 100 feet, to a point of curvature to the right; thence, 30 feet west of and parallel to the center line which has a radius of 340 feet, a delta of 42°38'24", and a length of 252.8 feet, to a point of tangency; thence, along said tangent in a northwesterly direction, a distance of approximately 168 feet, to a point of curvature to the left; thence, 30 feet west of and parallel to the center line which has a radius of 200 feet, a delta of 9°53'23", and a length of 34.5 feet, to a point of curvature to the right; thence, 30 feet west of and parallel to the center line which has a radius of 200 feet, a delta of 12°04'03, and a length of 42.1 feet, to a point of tangency; thence, along said tangent in a northwesterly direction, a distance of approximately 106 feet, to a point of curvature to the left; thence, 30 feet east of and parallel to the center line which has a radius of 1,100 feet, a delta of 19°24'09", and a length of 372.5 feet, to a point of tangency; thence, along said tangent in a northwesterly direction, a distance of approximately 129 feet, to a point of curvature to the right; thence, 30 feet west of and parallel to the center line which has a radius of 680 feet, a delta of 21°23'06", and a length of 253.8 feet, to the southeastern property corner of Parcel 160.03, Map 140; thence, along the eastern property line of said parcel in a northeasterly direction, to a point which is 25 feet south of the center line of Apison Pike; thence, 25 feet from and parallel to the center line of Apison Pike, a distance of approximately 2,575 feet, to a point which is approximately 500 feet east of the eastern right-of-way line of Pattentown Road, being also in the existing Chattanooga City Limit line; thence, following the existing city limit line in a northerly direction, crossing the Apison Pike right-of-way, to the POINT OF BEGINNING.

DEANNEXATION ORD. NO. 10371
ENACTED FEBRUARY 6, 1996*

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-201 to 6-51-204, the following described boundaries be and are hereby contracted from the City limits of the City of Chattanooga, Tennessee:

***Note—**See also Ord. Nos. 9335, adopted March 1, 1990, and 10359, adopted January 16, 1996.

REDUCTION OF MUNICIPAL AREA
ALL OR PORTIONS OF PARCELS 160,
160.01, 162, 162.01, 166, 173
AND 174, HUNNICUTT TAX MAP 140

BEGINNING at a point within the existing Chattanooga City limits, said point being also approximately 25 feet south of the intersection of the eastern right-of-way line of Pattentown Road and the southern right-of-way line of Apison Pike; thence, along a line which is 25 feet from and parallel to the southern right-of-way line of Apison Pike, a distance of approximately 500 feet, to a point in the existing city limit line; thence, at a right angle with Apison Pike, following the existing city limit line, in a southerly direction approximately 275 feet, to a point; thence, following the existing city limit line in an easterly direction, 325 feet from and parallel to the center line of Apison Pike for approximately 1,110 feet, to the south-western line of a 100 foot TVA transmission line easement; thence, following the existing city limit line in an easterly direction, along the said southwestern easement line a distance of approximately 1,940 feet, to a point which is 500 feet from and perpendicular to the south right-of-way line of Apison Pike; thence, 500 feet from and parallel to Apison Pike approximately 1,912 feet in a southeasterly direction, passing through Parcels 160, 162, 162.01, 160.01, 166, and 160, Map 140, to a point in the western property line of Parcel 172, Map 140; thence, following the existing city limit line, in a southwesterly direction along the western property line of Parcel 172, Map 140, a distance of approximately 100 feet, to property corner; thence, following the existing city limit line and said property line in a southeasterly direction a distance of approximately 15 feet, to a property corner; thence, following the existing city limit line and said property line in a southwesterly direction, a distance of approximately 200 feet, to a point in the City of Chattanooga's northern property line (Parcel 160.05, Map 140); thence, along the proposed Chattanooga City Limit Line, in a northwesterly direction, along the northern property line of said property a distance of approximately 15 feet to a property corner; thence, perpendicular to previous property line, along the proposed city limit line in a southwesterly direction, a distance of approximately 55 feet to a property corner; thence, continuing along the proposed city limit line in a northwesterly direction along said City northern property line, a distance of approximately 2,017 feet, to a property corner; thence, continuing along the proposed city limit line and the northern property line of said Parcel 160.05, a distance of approximately 1,065 feet, to the northwestern property corner of said parcel; thence, continuing along the proposed city limit line in a south-westerly direction, perpendicular to the previous property line, a distance of 1,011 feet, to a point in the common line between Sections 19 and 30, Township 4, Range 2, and being the southwestern property corner of Parcel 160.05, Map 140, in the common property line between Parcels 141 and 160, Map 140; thence, in a northwesterly direction, along said property and section lines, a distance of approximately 200 feet, to point which is in the existing city limit line, and is the northeastern property corner of Parcel 154, Map 140, being also in the southern property line of Parcel 160, Map 140; thence, continuing along the existing city limit line, said section line, and said southern property line of Parcel 160, and northern property line of Parcels 154, 155, and 155.01, Map 140, to the common property corner of Parcels 155.01, 156, and 158, Map 140; thence, continuing along the existing city limit line, in a northeasterly direction, being also the common property line between Parcels 158 and 160, Map 140, to the northeastern property corner of Parcel 158, Map 140; thence, continuing along the existing city limit line along the common property line of Parcels 158, 159, and 160, Map 140, to the northwestern property corner of Parcel 159, Map 140 which is in the eastern right-of-way line of Pattentown Road; thence, continuing in a northeasterly direction along the existing city limit line, eastern right-of-way line of said road, and the western line of Parcel 160, Map 140, to the POINT OF BEGINNING.

REDUCTION OF MUNICIPAL AREA
A PORTION OF PARCEL 172,
AND ALL OF
PARCELS 173 AND 174, MAP 140

BEGINNING at the common property corner of Parcels 133, 174, 175, and 194.01, Hunnicutt Tax Map 140; thence, along the proposed Chattanooga City Limit Line in a north-westerly direction along the

common section line between Sections 20 and 29, Township 4, Range 2, being also the common property line between Parcels 133, and 174, Map 140, to the southwestern property corner of Parcel 174, Map 140; thence, along the proposed city limit line, in a northeasterly direction, perpendicular to the previous line, along the property line between Parcels 160.05 and 174, Map 140, to a property corner, a distance of approximately 438 feet; thence, along the proposed city limit line, in a southeasterly direction, perpendicular to the previous line, along the common property line between Parcels 160.05 and 174, Map 140, to a common property corner, a distance of approximately 215 feet; thence, along the proposed city limit line, in a northeasterly direction, along the common property line between Parcel 160.05 and Parcels 174, 173 and 172, Map 140, to a property corner in the existing Chattanooga City limit line; thence, following the existing city limit line, in a southeasterly direction, for an approximate distance of 205 feet to a point; thence, continuing along the existing city limit line, in a southwesterly direction, perpendicular to the previous line, a distance of approximately 104 feet, to the northeastern property corner of Parcel 173, Map 140; thence, continuing along the existing city limit line in a southeasterly direction, along the common property line of Parcels 172 and 174, Map 140, a distance of approximately 275 feet, to the southeastern corner of Parcel 172, Map 140; thence, continuing along the existing city limit line in a northeasterly direction, and the common property line between Parcels 172 and 174, Map 140, a distance of approximately 320 feet, to the southwest property corner of Parcel 180, Map 140, said corner being also in the existing Collegedale Corporate Limit Line; thence, continuing with the existing city limit line and the existing corporate limit line in a southeasterly direction along the common property line between Parcels 174 and 180, Map 140, to the northwestern property corner of Parcel 175, Map 140, a distance of approximately 30 feet; thence, in a southwesterly direction, along the proposed city limit line, being also the common property line between Parcels 174 and 175, Map 140, to a property corner; thence, continuing along the proposed city limit line and the common property line between Parcels 174 and 175, Map 140, perpendicular to previous line in a northwesterly direction, a distance of approximately 30 feet to a property corner; thence, continuing with the proposed city limit line and the common property line between Parcels 174 and 175, Map 140, perpendicular to previous line in a southwesterly direction, a distance of approximately 600 feet to the POINT OF BEGINNING.

REDUCTION OF MUNICIPAL AREA
PARCELS 124, 194, 195,
HUNNICUTT TAX MAP 140
AND PARCEL 244,
HUNNICUTT TAX MAP 150

The area of the City of Chattanooga shall be reduced by any portion of Parcels 124, 194, and 195, Hunnicutt Tax Map 140, and Parcel 244, Map 150, which was annexed by Ordinance 9335, dated March 1, 1990.

ANNEXATION ORD. NO. 10590*
ENACTED JULY 1, 1997

Pursuant to the authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

BEGINNING at a point in the existing City Limit Line of Chattanooga, Tennessee, at the intersection of the centerline of the Southern Railway and the northwest right-of-way line of U.S. Highway I-75; thence, in a northeastern direction along the northwesterly right-of-way line of U.S. Highway I-75 and the southeastern property line of Parcels 099.2, 043, across the right-of-way of Country Valley Drive, Parcels 042.02, 042.01, 0041, 039, across the right-of-way of Hilltop Drive, Parcels 036, 037, 034, 034.01, across

***Note—**Subsequently amended by Ord. No. 10966, adopted July 1, 1997.

the right-of-way of Hunter Road, Parcels 074.01, 074, 075.01, 075.02, 075, 076, 075, across the right-of-way of Snowhill Road, of Hunnicutt Tax Map 131 and continuing in a northeasterly direction along said U.S. highway right-of-way and the southeastern property line of Parcel 3, Map Number 132 to its southeastern property corner; thence, in a southeasterly direction to the common corner between Parcels 002 and 002.04, Map 132; thence along the common lot line between Parcels 002 and 002.04, Map 132, to the most eastern corner of said parcel 002; thence, across Parcel 002.04, Map 132, to the common western corner between Parcels 013 and 014, Map 132; thence, along the common property line between said Parcels 013 and 014 to their common eastern corner in the reserved access right-of-way for said Parcels 013 and 014; thence, across said reserved access to the northwestern property line of Parcel B-010, Map 132H; thence, continuing on an easterly extension of the property line between Parcels 013 and 014, Map 132, through Parcel B-010, Map 132H, to the western right-of-way line of the Georgetown-Ooltewah Road and continuing eastwardly to the eastern right-of-way line of said road, to a point in the western property line of Parcel A-021, Map 132H; thence, in a southwesterly direction, along the eastern right-of-way line of Georgetown-Ooltewah Road and the western property lines of Parcels A-021, A-020, A-019, and A-018, Map 132H for a distance of 600 feet; thence, in a southeasterly direction, 500 feet from and parallel to Lee Highway, for a distance of 1,300 feet to a property line; thence, perpendicular to Lee Highway, a distance of 500 feet to the northern right-of-way line of Lee Highway at the southwestern property corner of Parcel 027.02, Map 132; thence, along the northern right-of-way line of Lee Highway, passing along the southern property lines of Parcels 027.02, 027.01, and 027, Map 132, to the western property line of Parcel 029, Map 132, a distance of 1,250 feet; thence, crossing Lee Highway in a southwesterly direction, along the western property line of Parcel 31, Map 132, crossing the right-of-way of the Southern Railroad Company, a distance of 1,150 feet, to a point in the southern right-of-way of said railroad, said point is in the property line of Parcel 032.01, Map 132; thence, in a westerly direction, along said railroad right-of-way and along the northern property lines of Parcel 032.01, Map 132, Parcels C-022, C-023, C-024, C-025, C-026, C-027, C-028, and C-029, Map 132I, to the intersection of the north right-of-way line of Brewer Drive and the western right-of-way line of Cherry Street; thence, continuing along the southern right-of-way line of the Southern Railroad Company, along the northern property line of Parcels B-001, B-012, B-022, Map 132I, crossing Mulberry Street, and continuing along the northern property line of A-001, A-020, A-10.01, Map 132I, crossing College Street, then continuing along A-015.01, Map 132I, crossing Main Street, continuing along Parcels A-017 and A-17.01, Map 132I, crossing Watkins Street, then continuing along Parcel A-019.01, Map 132I, Parcels 023, and 022, Map 132, and Parcel 093, Map 131, crossing a southbound railroad track in a northwesterly direction, to a point in the property line of Parcel 096.011, Map 131; thence, along the northern property line of said Parcels 096.01, and 092, Map 131, to the eastern right-of-way line of the Little Debbie Parkway; thence, crossing Little Debbie Parkway, continuing with the southern right-of-way line of the Southern Railroad Company, along the northern property lines of Parcels A-023, A-024.09, A-024.05, A-024, A-025, A-027, and A-028, Map 131K, to the eastern right-of-way line of Lee Highway; thence, crossing Lee Highway at its intersection with Old Cleveland Pike, continuing along the southeastern right-of-way of the Southern Railroad Company in a southwesterly direction, passing along the northwestern property lines of Parcels 012, 014, 015.05, 015.04, 015.03, 015.02, 015.01, 015, 016, 017, 018, Map 131, to the northwestern right-of-way line of Old Cleveland Pike; thence, in a southwesterly direction, along the aforementioned Southern Railroad and Old Cleveland Pike rights-of-way, a distance of 2,850 feet, more or less, to the northernmost property corner of Parcel B-020, Map 131P; thence, continuing with the Southern Railroad right-of-way line in a southwesterly direction, along the northwestern property lines of B-020, B-019, B-018, B-017, B-016, B-015, B-014, B-013, B-012, B-011, B-009, B-003, Map 131P, to the existing right-of-way of Old Cleveland Pike; thence, crossing Old Cleveland Pike, and continuing along the northwestern property lines of Parcels B-001, A-001, A-002, A-003, A-008, A-009, A-010, A-011, A-011.01, A-012.01, A-012, Map 131P, to the northwestern property corner of said Parcel A-012; thence, in a southerly direction along the western property line of Parcel A-012 and the Southern Railroad right-of-way, to the northern right-of-line of Apison Pike, being also a

point in the existing Chattanooga City Limit Line; thence, in a westerly direction, along the common right-of-way line of Southern Railroad and Apison Pike, being also the existing city limit line, a distance of 1,500 feet, more or less, to the center line of U.S. Highway I-76; thence, in a northerly direction, a distance of 140 feet, more or less, to the POINT OF BEGINNING. (See the attached reference map which more fully provides an illustration of the proposed annexation boundaries.)*

ANNEXATION ORD. NO. 10691
ENACTED APRIL 14, 1998

Pursuant to authority conferred by Tennessee Code Annotated, Sections 6-51-101 to 6-51-113, there is hereby annexed to the City of Chattanooga, Tennessee, and incorporated within the corporate boundaries thereof, the following described territory adjoining the present corporate boundaries:

BEING the property of the United States of America used as the Volunteer Army Ammunition Plant (VAAP) shown on Hamilton County Tax Map No. 130 as Parcel 001 and Tax Parcel 121A-E-32 and the adjacent portions of the rights-of-way of Highway 58 (S. R. 58) and Bonny Oaks Drive (S. R. 17); PLUS the property of Hamilton County bounded by Bonny Oaks Drive, the Southern Railroad, and Hickory Valley Road shown on Hamilton County Tax Map 139 as Parcel 001.01 and the adjacent right-of-way of Hickory Valley Road between the present city limits and Bonny Oaks Drive and the adjacent railroad right-of-way between the Hamilton County property and the present city limits; more particularly described as follows:

Volunteer Army Ammunition Plant and Adjacent Highway 58 and Bonny Oaks Drive Right-of-Ways

BEGINNING at a point in the existing Chattanooga City Limit Line and the northern right-of-way line of the Southern Railroad Company, which is the common property corner of Parcel 001, Hunnicutt Tax Map 130, and Parcel 099.2, Map 131; thence, in a southwesterly direction, then in a westerly direction for a distance of 7,000 feet, more or less, with the said city limit line (leaving the northern right-of-way line at 4,200 feet, more or less, and converging with the centerline of said railroad at 7,000 feet, more or less), to a point in the centerline of Bonny Oaks Drive; thence, continuing with the city limit line in a westerly direction, crossing the Bonny Oaks Drive right-of-way, to a point in its southwestern right-of-way line at the southeastern property corner of Parcel 001.01, Map 139; thence, along the southwestern right-of-way line of Bonny Oaks Drive and the northern property line of Parcel 001.01, Map 139, to its northwestern property corner at the intersection of the rights-of-way of Bonny Oaks Drive and Hickory Valley Road; thence, crossing Hickory Valley Road to its western right-of-way line, being the northeastern property corner of Parcel 002, Map 130; thence, along the southern right-of-way line of Bonny Oaks Drive and the northern property line of Parcel 002, Map 130, to its northwestern property corner at Parcel 001, Map 130; thence, in a southwesterly direction, along the western property lines of Parcel 002, Map 130, and Parcel 001, Map 139, to a point, said point is the western most property corner of Parcel 001, Map 139; thence, in a southeasterly direction along the southern boundary of Parcels 001 and 002, Map 139, to a point in the west right-of-way line of Hickory Valley Road; thence, along the west right-of-way of Hickory Valley Road adjacent to Parcel 001, Map 130, to the existing city limits line in the railroad right-or-way; then in a southwesterly direction along the existing city limit and railroad to its intersection with the east property line of Parcel 001, Map 129, thence, along said east property line of Parcel 001, Map 129, and west property line of Parcel 1, Map 130, in a northwardly direction to a point in the southern boundary of Parcel 001, Map 130, said point being the northeastern corner of Parcel 001, Map 129; thence, in a northwesterly direction, along the common property line of Parcel 001, Map 129, and Parcel 001, Map 130, to its southwestern property corner; thence, in a northeasterly direction, along the common property lines of Parcel 001, Map 129, and Parcel 001, Map 130, to a point in the southern right-of-way line of Bonny Oaks Drive; thence, along the said southern right-of-way line and the northern

*__Note—__Map is located in the office of the Clerk to the City Council.

property lines of Parcel 001, Map 129, and Parcel D-010, Map 129M, continuing to its most northwestern property corner in the southern right-of-way line of Bonny Oaks Drive, being a point in the existing Chattanooga City Limit Line; thence, crossing the Bonny Oaks Drive right-of-way in a northeasterly direction, a distance of 100 feet, more or less, to a point in its northern right-of-way line and the southern property line of Parcel 001, Map 130; thence, in a northwesterly direction, continuing with the existing city limit line along the northern right-of-way line of Bonny Oaks Drive and the southern property line of Parcel 001, Map 130, a distance of 680 feet, more or less, to the southeastern property corner of Parcel D-024.01, Map 129L; thence, continuing with the existing city limit line in a northwesterly direction along the western property line of Parcel 001, Map 130, and the eastern property line of Parcels D-024.01, D-023, D-017, and to a point in the rear property line of D-015, Map 129L, a distance of 1,180 feet, more or less; thence, continuing with the existing city limit line in a northeasterly direction along the eastern property lines of Parcels D-014, D-013, D-012, D-011, D-010, D-009, D-008, D-007, D-006.01, D-006, D-005, D-004, D-003, D-002, and D-001, Map 129L, a distance of 1,610 feet, more or less, to the northeastern property corner of said Parcel 001; thence continuing with the existing city limit line along the north property line of Parcel D-001, Map 129L, in a westerly direction to the eastern right-of-way line of Basswood Drive, a distance of 270 feet, more or less, to the northwestern corner of said Parcel D-001; thence, along the northern right-of-way line of Basswood Drive, a distance of 60 feet, more or less, to the southeastern property corner of Parcel D-001, Map 129E; thence, continuing with the existing city limit line in a northerly direction along the western property line of Parcel 001, Map 130, and the eastern property lines of Parcels D-001, D-002, D-003, D-004, C-006, C-007, C-008, C-009, C-010, C-011, C-012, C-013, C-014, C-015, C-016, C-017, C-018, C-019, C-020, C-021, C-022, C-023, C-024, C-025, C-026, Map 129E, a distance of 2,370 feet, more or less, to the northeastern property corner of said Parcel C-026; thence, in a northwesterly direction along the northeastern property line of said Parcel C-026, a distance of 100 feet, more or less, to a point in the eastern property line of Parcel C-034, Map 129E; thence, in a northeasterly direction, along the eastern property line of said parcel C-034, to an angle point in its rear property line, a distance of 120 feet, more or less; thence, in a northwesterly direction along the eastern property lines of Parcels C-034, C-035, C-036, Map 129E, E-019, E-020, E-021, Map 129C, F-032, F-034, F-035, F-036, F-037, F-038, D-001, D-018, Map 120D, a distance of 4,000 feet, more or less, to a point in the south right-of-way line of U. S. Highway 58, said point is the most northern property corner of Parcel D-018, Map 120D, and the northwestern property corner of Parcel 001, Map 130; thence, continuing with the existing city limit line in the southern right-of-way line of U. S. Highway 58, thence crossing U. S. Highway 58 on a diagonal line to a point in the southeast corner of Champion Road and Parcel B-001, Map 120K; thence eastwardly along the north right-of-way of U. S. Highway 58, a distance of 3,050 feet, more or less, to the intersection of the west right-of-way of North Hickory Valley Road, thence north along North Hickory Valley Road being a State of Tennessee acquired right-of-way, a distance of 460 feet, more or less, to a point, thence crossing North Hickory Valley Road at right angle to the eastern line thereof; thence southeastwardly with the present right-of-way, a distance of 290 feet, more or less, to the north right-of-way of U. S. Highway 58, also being the southwest corner of Parcel B-001, Map 120E, thence northeast along the north right-of-way of U. S. Highway 58, a distance of 2,320 feet, more or less, to a point in the east line of Parcel B-019, Map 120E, thence north along the east line thereof, a distance of 860 feet, more or less, to a point in the northeast corner of Parcel B-019, Map 120E, thence west along the north line thereof, a distance 90 feet, more or less, to a point, thence north along the east line of Parcel E-033, Map 121A, a distance of 360 feet, more or less, to a point, thence east along the dividing line between Parcel E-032 and E-033, Map 121A, a distance of 410 feet, more or less, to a point in the northeast corner of Parcel E-032, Map 121A, thence south along the east line thereof, a distance of 900 feet, more or less, to the north right-of-way line of U. S. Highway 58 and southwest corner of Parcel E-032.01, Map 121A, thence east along the north right-of-way of U. S. Highway 58, a distance of 1,960 feet, more or less, crossing Clark Road to a point in southeast corner of Parcel A-008,01, Map 121B, thence north 80.8 feet, more or less, to the southwest corner of Parcel A-010, Map 121B, thence eastwardly 156 feet, more or less, to a point in the west line of Parcel A-007, Map 121B,

thence southwestward along said line 129 feet, more or less, thence east along U. S. Highway 58, a distance of 480 feet, more or less, thence crossing U. S. Highway 58 at right angels to the south to a point in the south line thereof; thence continuing southwardly 130 feet, more or less, to a point which is the western property corner of Parcel 004, Map 121 (EPB); thence, along the southern property line of Parcel 004, Map 121, and the northern property line of Parcel 001, Map 130, in a southeasterly direction, a distance of 270 feet, more or less, to a point in the southern property line of Parcel 003, Map 121, (Central High School), thence, with the common property line between Parcel 003, Map 121, and Parcel 001, Map 130, a distance of 2,600 feet, more or less, to the most southwestern property corner of Parcel E-012.06, Map 121C; thence, in a northeasterly direction along the northern property line of Parcel 001, Map 130, and Parcels E-012.06, E-012.05, E-012.04, E-012.03, E-012, and A-024, Map 121C, a distance of 930 feet, more or less, to a point in the right-of-way line of Congress Lane; thence, continuing on the same line across the right-of-way of Congress Lane, a distance of 50 feet, more or less, to its eastern line; thence, along the southern property line of Parcels A-025, C-001, C-002, C-003, C-004, C-005, C-006, C-007, C-008, C-009, C-010, and D-021, Map 121C, continuing with Parcels C-019, and C-020, Map 112N, B-003, B-004, Map 121D, to a property corner, for a total distance of 2,850 feet, more or less; thence, in an easterly direction along the common property lines between Parcel 001, Map 130, and Parcels B-005, B-006, B-007, B-008, B-009, Map 121D, Parcel 005, Map 121, crossing the Harrison/ Ooltewah Road right-of-way, continuing along Parcel 005, Map 121, to a point that is the western property corner of B-054, Map 122H, a total distance of 1,920 feet, more or less; thence, in a southeasterly direction, along the common property line between Parcel 001, Map 130, and Parcels B-054, B-053, B-052, B-049, B-048, B-047, B-046, and a part of B-045, Map 122H, a distance of 1,260 feet, more or less, to an angle point; thence, in a southeasterly direction along the remainder of the western property line of B-045, and all of B-044, B-043, B-042, B-041, B-040, B-039, B-038, B-037, B-036, B-035, B-034, Map 122H, at its most southwestern property corner, a distance of 1,140 feet, more or less; thence, in a northeasterly direction, along the property lines of Parcels B-034, B-033, B-032,B-030 (property corner only), B-029, B-028, B-027, B-026, B-025, B-024, B-023 (property corner only), Map 122H, for a total distance of 1,240 feet, more or less, to an angle point at the common property corners of Parcels B-024, B-023, and B-012, Map 122H; thence, in a northeasterly direction along the southern property lines of Parcels B-012, B-011, B-007, B-006, B-005, B-004, B-003, B-002, B-001, Map 122H, continuing with Parcels A-021 and part of A-022, Map 122G, a total distance of 1,200 feet, more or less, to an angle point in the rear property line of said Parcel A-022; thence, in a southeasterly direction, continuing with the rear property line of said Parcel A-022, and Parcels A-023, A-024, A-025, A-026, A-027, A-028 (south property corner only), A-029, A-030, and part of A-031, Map 122G, a total distance of 1,230, more or less, to an angle point in the rear property line of said Parcel A-031; thence, in a southeasterly direction, continuing with the rear property line of said Parcel A-031, and Parcels A-032, A-033, A-034, A-035, A-036, A-037, A-038, A-039, and part of A-040, Map 122G, a total distance of 1,270 feet, more or less, to an angle point in said Parcel A-040; thence, in a southeasterly direction, continuing with the rear property line of said Parcel A-040, a distance of 100 feet, more or less, to its southwestern property corner; thence, in a northeasterly direction along the southeasterly property line of said Parcel A-040, a distance of 130 feet, more or less, to a point in the southwestern right-of-way line of Flagstone Drive; thence, along the southwestern right-of-way line of said drive, a distance of 270 feet, more or less, to the northwestern property corner of Parcel A-033, Map 122J; thence, in a southerly direction, along the western property line of said Parcel A-033, Map 122J; thence, in a southerly direction, along the western property line of said Parcel A-033 to its common property corner with Parcel C-011.01, Map 122J, a distance of 200 feet, more or less; thence, in a southeasterly direction, along the southwestern property line of said Parcel C-011.01, a distance of 170 feet, more or less, to its common property corner with Parcels C-011 and C-012, Map 122J; thence, in a southerly direction along the western property line of said Parcel C-012, a distance of 170 feet, more or less, to an angle in its rear property line; thence, in a southeasterly direction for the remaining portion of the rear property line of said Parcel C-012 and Parcels C-013, C-014, C-015, C-016, C-017, and part of C-018, Map 122J, a

distance of 730 feet, more or less, to an angle in the property line; thence, in a southeasterly direction along the remaining rear property line of said Parcel C-018 and Parcels C-019 and C-020, Map 122J, and continuing with Parcels A-004, A-005, A-013 (western property corner only), A-014, A-015, A-023 (western property corner only), and a portion of A-024, Map 1220, a distance of 1,640 feet, more or less, to an angle in the property line; thence, in a southeasterly direction, a distance of 1,260 feet, more or less, for the remainder of the rear property line of said Parcel A-024, Parcel A-025 (western property corner only), A-029, and A-030 (to approximately 50 feet north of its southernmost property corner) Map 1220; thence, in a southerly direction, for the remainder of said Parcel A-030 (to its southernmost corner), and along the western property line of parcel 099.01, Map 131, a distance of 470 feet, more or less, to its southernmost corner; thence, in a southerly direction, along the western property lines of Parcels D-005, D-006, D-007, and part of D-008, Map 131B, to an angle in the property line, a distance of 460 feet, more or less, to an angle point; thence, in a southwesterly direction, along the remainder of said Parcel D-008, continuing along the rear property lines of Parcels D-019, D-020, and D-021, Map 131B, a distance of 390 feet, more or less, to an angle in the line at the northernmost property corner of Parcel E-001, Map 131G; thence, along the northwestern property lines of Parcels E-001, E-004, E-005, E-006, E-007, and E-008, Map 131G, a distance of 1,040 feet, more or less, to the northernmost property corner of Parcel E-009, Map 131G; thence, along the northwestern property line of said Parcel E-009, crossing an unnamed street right-of-way, and continuing along the northwestern property lines of Parcels E-010, E-011, E-012, E-013, E-014, E-015, E-016, E-017, E-018, E-019, E-020, and a portion of E-021, Map 131G, a distance of 1,300 feet, more or less, to an angle in the property line of said Parcel E-021; thence, in a southwesterly direction along the remaining property line of said Parcel E-021, continuing along the northwestern property lines of Parcels E-022, Map 131G, Parcel 099.01, Map 131, and Parcel C-040, Map 131G, a distance of 1,100 feet, more or less, to the common property corner of Parcels C-040 and C-041, Map 131G; thence, in a southwesterly direction, along the northwestern property lines of Parcels C-041, C-042, C-043, C-044, C-045, and C-046, Map 131G, and Parcel 099.01, Map 131, a total distance of 1,570 feet, more or less, to the common property corner of Parcels 099.01, and 099.02, Map 131, and Parcel 001, Map 130; thence, meandering along the common property line between Parcel 099.02, Map 131, and Parcel 001, Map 130, a distance of 9,250 feet, more or less, to the POINT OF BEGINNING, containing in all 6,560 acres, more or less.

Hamilton County Property and Adjacent Hickory Valley Road and Railroad Rights-of-Way

BEGINNING at a point in the southwest right-of-way line of Bonny Oaks Drive in the center of the Southern Railroad right-of-way at the present city limit of the City of Chattanooga; thence in a northwest and westwardly direction along the southwest right-of-way line of Bonny Oaks Drive along the property of Hamilton County shown on Tax Map No. 139 as Parcel No. 001.01, a distance of 3,570 feet, more or less, to a point in the east right-of-way line of Hickory Valley Road being the northwest corner of the Hamilton County property; thence continuing across the right-of-way to a point in the east right-of-way line of Hickory Valley Road and the south right-of-way line of Bonny Oaks Drive, thence in a southerly direction along the west right-of-way line of Hickory Valley Road, adjacent to the properties shown on Tax Map 130 as Parcel Nos. 130-002, 139-001, 139-002, and 130-001, 1,660 feet, more or less, to a point in the centerline of the Southern Railroad and existing city limits of the City of Chattanooga; thence along the centerline of the railroad and the existing city limits line across the right-of-way of Hickory Valley Road and adjacent and parallel to the Hamilton County property, a distance of 3,340 feet, more or less, to the point of beginning, containing 73 acres, more or less.

ANNEXATION ORD. NO. 10836*
ENACTED MARCH 2, 1999

Pursuant to the authority conferred by T.C.A. §§ 6-51-201 through 6-51-204, the territory originally annexed by the City of Chattanooga within Ordinance No. 10115 shall be contracted to include the following territory set forth as "Chattanooga Annexation Area" in the Agreed Order of Compromise and Dismissal attached hereto as Exhibit "A":

***Note—**Amends Ord. No. 10115, adopted October 4, 1994.

CHATTANOOGA ANNEXATION AREA
(North of the Present City Limits Along US 27)

Beginning at the south right of way line of Thrasher Pike said point intersected by the east right of way of the Southern Railroad also being most northern corner of Jo Ann C. Jerrigan property described in Deed Book 3219, Page 791, in the R.O.H.C., thence in a southwesterly direction along the east right-of-way line of the Southern Railroad to a point in the north in the line of the Robert C. Sharpe tract recorded in Deed Book 2874, Page 267, in the R.O.H.C. also being Parcel No. 036, Tax Map No. 82F, Block A, thence southwardly along the above described tract and the line extended in all about thirty-eight hundred twenty (3820) feet to a point in the southeast corner of the J. W. Thomas tract recorded in Deed Book 1675, Page 95, in the R.O.H.C. also being Parcel 26, Block A, Tax Map No. 82F, thence in a westerly direction with the J. W. Thomas, et al tract southern line about thirteen hundred twenty (1320) feet to the northwest corner of the Richard D. Baynes property recorded in Deed Book 3384, Page 308, in the R.O.H.C., also being parcel No. 021, Block A, Tax Map No. 82F, thence southwardly and southeastwardly along the above described tract to a point in the northeast corner of Randle L. Carpenter property recorded in Deed Book 4634, Page 944, in the R.O.H.C., also being the northwest corner of Parcel 019, Block A, Tax Map No. 82F, thence in a southwesterly direction to a point being the southwest corner of Don L. Smith property described in Deed Book 4281, Page 612, R.O.H.C., and parcel 017, Block A, Tax Map No. 82F, thence in a northwesterly direction to northwest corner of the N. E. Vanderslice tract recorded in Deed Book 1423, Page 86, R.O.H.C., also being parcel 016, Block A, Tax Map No. 82F, thence southwestwardly along the west line thereof. To the southwest corner, thence in a southeasterly direction along the above described tract to the northwest corner of the Forrest M. Plemons property described in Deed Book 2238, Page 843, in the R.O.H.C. also being Parcel 015, Block A, Tax Map No. 82F, thence in a southwesterly direction along the west line thereof and extending along the west line of Lot 8, Cave Ridge Subdivision recorded in Plat Book 29, Page 117, in the R.O.H.C., and said line extended to the north line of the Billy Reagan property described in Deed Book 2054, Page 424, in the R.O.H.C. also being Parcel 019, Tax Map No. 82, thence in a northwesterly direction to the northwest corner thereof, thence in a southwesterly direction along the west line of the above described tract about fourteen hundred forty-five (1445) feet to a point where said makes a turn further to the southwest cornering in the north line of the Edward J. Ford tract described in Deed Book 2854, Page 317, in the R.O.H.C. also being Parcel 220, Tax Map No. 82, thence in northwesterly direction about six hundred sixty (660) feet to a point where said line turns west and corners at a distance of about four hundred forty (440) feet, thence in a southwesterly direction along the west line thereof and extending with west line the Joe B. Vandergriff property described in Deed Book 4747, Page 45 in the R.O.H.C. also being parcel 223, Tax Map No. 82 to the southwest corner thereof in the end of the east right-of-way of Hillcrest Road, thence crossing Hillcrest Road and with the north line of Lot 3, Hillcrest Bluff Subdivision, recorded in Plat Book 41, Page 312, in the R.O.H.C. To the northwest corner thereof, thence south extending along the west line of above described subdivision to a point in the north line of John R. Davis property, thence in a southwesterly direction to the northwest corner of Davis tract, thence in a southeasterly direction to the southwest corner thereof, thence to the northeast to the west right-of-way line Hillcrest Road, thence to the southeast along Hillcrest Road to the corner of Deon Hammontree property described in Deed Book 4604, Page 339, in the R.O.H.C. also being Parcel 251.06, Tax Map No. 82, thence in southwesterly direction to the northwest corner thereof, thence to the southeast with the Hammontree line and its extension to the southeast corner of the James W. Smith property described in Deed Book 4256, Page 974 in the R.O.H.C. also being Parcel 251, Tax Map No. 82, thence to the southwest with the Smith line about seven hundred ten (710) feet to a point intersecting the east right-of-way line of Southern Railroad, thence with the Southern Railroad right-of-way to a point intersecting the north bank of North Chickamauga Creek, thence crossing North Chickamauga Creek to the South Bank to a point, thence to the northwest with the meanders of the south bank to the most northern corner of the Robert Lee Roberts property described in Deed Book 5064, Page 196, in the

R.O.H.C. also being Parcel 001, Tax Map No. 91B, thence with the Roberts west line to the north right-of-way line of Boy Scout Road, thence to the northwest with the north right-of-way line of Boy Scout Road being the existing corporate limits of Chattanooga to a point in the east intersecting right-of-way U.S. Highway No, 27, thence crossing the highway to the west side intersecting the south right-of-way of Pitts Road, thence along the south right-of-way of Pitts Road as it meanders and extension thereof to the west right-of-way of Old Dayton Pike, also being the northeast corner of Parcel 077, Tax Map No. 81, thence in a northerly direction crossing State Route No. 29 intersecting the west right-of-way of Old Dayton Pike also being the southeast corner of Lot 1, Rainey R. Pitts Subdivision recorded in Plat Book 39, Page 49, in the R.O.H.C., thence in a northeasterly direction with north right-of-way of State Route No. 29 to a point intersecting the south right-of-way Old Dayton Pike and continuing northeast with State Route No. 29 right-of-way to the end of Old Dayton Pike, thence crossing State Route No. 27, or Dayton Pike intersecting the north right-of-way of State Route No. 29, thence in an easterly and northeasterly direction with State Route No. 29, bounded on the west by Thomas Brothers Construction Company, Inc., described in Deed Book 3178, Page 254, in the R.O.H.C. and continuing northeast bounded on the west by the Barbara M. Douglas property recorded in Deed Book 1572, Page 684, in the R.O.H.C., continuing northeast bounded on the west by the Paul B. Thomas property described in Deed Book 2507, Page 413, in the R.O.H.C., thence continuing to the northeast bounded on the west by J.W. Thomas et al property described in Deed Book 2391, Page 583, in the R.O.H.C., thence continuing northeast with State Route No. 29 bounded on the west by Foster Jackson property described in Deed Book 1030, Page 390 in the R.O.H.C. and extended north to the southeast corner of Lot 2, Ruby Gothard Subdivision recorded in Plat Book 37, Page 57 in the R.O.H.C., thence north with east line of said lot and extending across the end of Holland Johnson Road to point in the J.W. Thomas Sr. et al property also being Parcel 001, Block E, Tax Map No. 73F said point in the Thrasher Pike Access right-of-way, thence crossing State Route No. 29 Bridge intersecting the west right of Southern Railroad, thence in a northeast direction with Southern Railroad right-of-way about one hundred thirty (130) feet to the south right-of-way of Thrasher Pike, thence crossing Southern Railroad to the point of beginning.

ANNEXATION ORD. NO. 10966*
ENACTED FEBRUARY 8, 2000

Pursuant to the authority conferred by Tennessee Code Annotated, §§ 6-51-101 to 6-51-113, Ordinance No. 10590 of the City of Chattanooga be and the same hereby is amended to delete all territory within the corporate boundaries of the City of Chattanooga other than the following described territory adjoining the present corporate boundaries as follows:

CHATTANOOGA ANNEXATION AREA
(North of the Present City Limits
Along US 11 and Including
Access Along Interstate 75)

BEGINNING at a point in the existing City Limit Line of Chattanooga, Tennessee, at the intersection of the southern right-of-way line of the Southern Railway and the northwest right-of-way line of U. S. Highway I-75; thence, in a northeastern direction along the northwesterly right-of-way line of U. S. Highway I-75 and the southeastern property line of parcels 099.02, 044, across the right-of-way of Country Village Drive, parcels 044.02, 042.01, 42.02, 42.03, 041, 039, across the right-of-way of Hilltop Drive, parcels 036, 037, 034, 034.01, across the right-of-way of Hunter Road, parcels 074.01, 074, 075.01, 075.02, 076, 075, to the southeast corner of parcel 075, across the right-of-way of Snow Hill Road, of Hunnicutt Tax Map 131 and continuing in a northeasterly direction along said U. S. Highway I-75 right-of-way and the southeastern property line of parcel 3, Map 132, to its southeastern property

***Note—**Amends Ord. No. 10590, adopted July 1, 1997.

corner; thence, in a southeasterly direction across the right-of-way of U.S. highway I-75 to the common corner between parcels 002 and 002.04, Map 132; thence along the common lot line between parcels 002 and 002.04, Map 132, to the most eastern corner of said parcel 002; thence, across parcel 002.04, Map 132, to the common western corner between parcels 013 and 014, Map 132; thence, along the common property line between said parcels 013 and 014 to their common eastern corner in the reserved access right-of-way for said parcels 013 and 014; thence, across said reserved access to the northwestern property corner of parcel B-010, Map 132H; thence, continuing in an easterly direction along the property line between parcels B-009 and B-010, Map 132H, to the western right-of-way line of the Georgetown-Ooltewah Road and continuing eastwardly to the eastern right-of-way line of said road, to a point in the western property line of parcel A-021, Map 132H; thence, in a southwesterly direction, along the eastern right-of-way line of Georgetown-Ooltewah Road and the western property lines of parcels A-021, A-020, A-019, and A-018, Map 132H to the southeast corner of parcel A-018; thence, in a southeasterly direction, approximately 500 feet from and parallel to Lee Highway, along the line between parcel A-018 and A-017, along the line of parcel A-011, across Hall Road, along parcel A-010 to the line of parcel A-003; thence in a northeasterly direction to the northwest corner of parcel A-003; thence in a southeasterly direction along parcel A-003 and A-001.01 to the line of parcel 028 on map 132; thence with the west property line of parcel 028 and 027.02 in a southeasterly direction to the northern right-of-way line of Lee Highway at the southwestern property corner of parcel 027.02, Map 132; thence, continuing across Lee Highway to the northeast corner of parcel B-023 on map 132H; thence running along the southern right-of-way line Lee Highway and the northern property lines of B-023, B-018, B-017, B-016, B-015, across Park Street, along B-013, B-012 of Map 132H; thence crossing Main Street and along parcel B-003, B-002, B-001, and B-001.01 of Map 132H; thence continuing along parcel 020.01, 020.05, 020.02, of Map 132; along parcel 082 of map 131; along parcel 020.04, 020.03 of map 132; across Little Debbie Parkway, along parcel 082.02, 082.03 of map 131, across the relocated Lee Highway; thence continuing with the southern right-of-way line of Lee Highway along the line of parcel 082 to the northeast corner of parcel 083; thence leaving the right-of-way of Lee Highway and running along the common lines of parcel 083 and 082 to the corner of parcel 088; thence along the line of parcel 088 to the northwest corner of parcel 091; thence running with the common line between parcel 091 and 088 to the northwest corner of parcel 089; thence with the common line of parcel 089 and parcel 088 to the right-of-way line of Ooltewah Cemetery Road; thence crossing Ooltewah Cemetery Road and the Southern Railroad Company right-of-way to a point in the right-of-way of Little Debbie Parkway, said point being the northeast corner of parcel A-023 of map 131L; thence running in a northwesterly direction along the southern right-of-way of the Southern Railroad Company along parcel A-023, A-024.05, A-024, A024.1, of map 131L; continuing with the Southern Railroad right-of-way along parcel A-026, A-027, A-028 of map 131K, crossing Old Lee Highway and Old Cleveland Pike, continuing along the southeastern right-of-way of the Southern Railroad Company in a southwesterly direction, passing along the northwestern property lines of parcel 012, 014, 015.05, 015.04, 015.03, 015.02, 015.01, 015, 016, 017, 018, Map 131, to the northwestern right-of-way line of Old Cleveland Pike; thence, in a southwesterly direction, along the aforementioned Southern Railroad and Old Cleveland Pike rights-of-way, a distance of 2,850 feet, more or less, to the northernmost property corner of parcel B-020, Map 131P; thence, continuing with the Southern Railroad right-of-way line in a southwesterly direction, along the northwestern property lines of B-020, B-020.01, B-019, B-018, B-017, B-016, B-015, B-014, B-013, B-012, B-010, B-009, B-003, Map 131P, to the existing right-of-way of Old Cleveland Pike; thence, crossing Old Cleveland Pike, and continuing along the northwestern property lines of parcels B-001, A-001, A-002, A-003, A-008, A-009, A-010, A-011, A-011.01, A-012.01, A-012, Map 131P, to the northwestern property corner of said parcel A-012; thence, in a southerly direction along the western property line of parcel A-012 and the Southern Railroad right-of-way, to the northern right-of-line of Apison Pike, being also a point in the existing Chattanooga City Limit Line; thence, in a westerly direction, along the common right-of-way line of Southern Railroad and Apison Pike, being also the existing city limit line, a distance of 1,550 feet, more or less, across U.S. Highway I-75 to the POINT OF BEGINNING.

(See the attached reference map which more fully provides an illustration of the proposed annexation boundaries.)*

CONTRACT TO ADJUST CERTAIN OF THE CONTIGUOUS BOUNDARIES OF THE CITY LIMITS OF THE CITIES OF CHATTANOOGA AND RED BANK†

I. Statement of Intent

This contract, signed as duplicate originals, is entered by and between the City of Chattanooga, Tennessee and the City of Red Bank, Tennessee under the provisions of Section 6-51-302 of the Tennessee Code, which permits contiguous municipalities to adjust their coincident boundaries when said boundaries are not in line with the street and lot layout of the cities, or does not conform to the rights of ways and easement. The intent of this contract is to eliminate those parcels and public street rights of way which are split by the existing city limits boundary line such that only entire parcels and the full width of street rights of way are contained within a single municipality. Such changes offer the tangible benefit of eliminating uncertainties of jurisdiction for law enforcement, emergency response, and maintenance. These changes do not alter the voting precincts, government representation, assessed value, tax payment, or other elements of the relationship between local governments and their citizens. The revised city limits were developed by the involved cities' public works staffs working with the Hamilton County GIS Department, and have been reviewed by the Chattanooga-Hamilton County Regional Planning Commission, which recommends their adoption. The requirements of the applicable State statute have been met. No citizen or resident or owner of any of the effected parcels will, as a consequence of this agreement: (a) change the jurisdiction in which he or she votes or (b) pay taxes to any other city than the one to which such person or owner had previously paid real property taxes.

II. Effective Date

The provisions of this Agreement, and the boundary adjustments contemplated hereby, are intended to be effective as of the 1st day of October, 2000.

III. City of Chattanooga

A. The following parcels in existence at the time of this contract are placed entirely within the corporate boundary of the City of Chattanooga. (See attached Exhibit "A")

B. The following street rights of way are placed in the City of Chattanooga:

1. Altamount Road for its entire length.
2. Cary Lane for its entire length.
3. Delashmitt Road east of the northern extension of the western right of way line of Cary Lane.
4. Ely Road for its entire length.
5. Gadd Road for its entire length.
6. Hamilton Avenue south of the southern right of way line of Ramona Street (a.k.a., Dunellen Street).
7. McCahill Road north of the southern right of way line of Browntown Road.
8. Mountain View Avenue for its entire length.
9. New Pineville Road for its entire length.
10. Stringers Ridge Road for its entire length.

***Note—**Map is located in the office of the Clerk of the City Council.

†**Note—**Authorized by Reso. No. 22683, adopted October 10, 2000.

11. Tiktin Drive along the length of Parcel 118H-J-038.

12. US Highway 27 south of the southern right of way line of Signal Mountain Road.

IV. City of Red Bank

A. The following parcels in existence at the time of this contract are placed entirely within the corporate boundary of the City of Red Bank. (See attached Exhibit "B")

B. The following street rights of way are placed in the City of Red Bank:

1. East Frontage Road north of the northern right of way line of Stringers Ridge Road.

2. US Highway 27 from the southeast corner of Parcel 126G-C-009 north to the existing city limits located approximately 2,400 feet north of the centerline of Read's Lake Road, as measured along the centerline of US Highway 27.

3. Browntown Road from its intersection with the eastern right of way line of McCahill Road to the existing city limits located approximately 1,475 feet west of said intersection.

4. Delashmitt Road south from the southern right of way line of Gadd Rd. to the northern extension of the western right of way line of Cary Lane.

5. Highpoint Drive north to the northern right of way line of Altamount Road.

6. Ramona Street (a.k.a. Dunellen Street), for its entire length, and its intersection with Hamilton Avenue.

V. Documentation of Modifications:

The Hamilton County GIS Department has prepared an official map of the city limit boundary of the City of Red Bank, Tennessee, and the coincident portion of the city limit boundary of the City of Chattanooga, Tennessee, modified consistent with this Agreement and showing the involved parcels and rights of way which map is attached hereto as Exhibit A and is made a part hereof by reference. This map, RBCL0800, has been reviewed by all parties and used as the source of the information contained above, is hereby adopted by the City of Red Bank as its official map showing the extent of its jurisdiction, and is agreed to and endorsed by the City of Chattanooga as describing its official city limits in the affected area. The Hamilton County GIS Department shall make the revised city limits boundary available to both cities, the Chattanooga-Hamilton County Regional Planning Agency, the Hamilton County Election Commission, the Hamilton County Assessor of Property, and other interested parties in printed and electronic forms.

VI. Limitations

Unless specifically addressed by this agreement, the official city limit boundaries of the City of Chattanooga and the City of Red Bank in existence at the time of executing this contract shall not be modified. No provisions of this contract shall alter the voting rights or other elements of the relationship of these municipalities and their citizens.

FOR THE CITY OF CHATTANOOGA,
TENNESSEE

s/Jon Kinsey Mayor 11/10/00

Approved as to form: s/Phillip A. Noblett,
Special Counsel
City Attorneys for Chattanooga

The foregoing action and this Agreement was formally authorized by the City Council for the City of Chattanooga during a duly held meeting of the Council on October 10, 2000.

s/James S. Boney
City Recorder

FOR THE CITY OF RED BANK,
TENNESSEE

s/Ronnie E. Moore Mayor 8/15/00

Approved as to form: s/Arnold Stulce
City Attorneys for Red Bank

The foregoing action and this Agreement was formally authorized by the City Commission for the City of Red Bank during a duly held meeting of the City Commission on August 15, 2000.

s/Margaret Dillard
City Recorder

CONTRACT TO AMEND THE COINCIDENT CITY LIMITS OF THE CITIES OF CHATTANOOGA AND EAST RIDGE IN THE STATE OF TENNESSEE*

I. Statement of Intent

This contract was developed under the provisions of Section 6-51-302 of the Tennessee Code, which permits contiguous municipalities to adjust their coincident boundaries when said boundaries are not in line with the street and lot layout of the cities, or does not conform to other rights of way and easements. The intent of this contract is to eliminate those parcels and public street rights of way which are split by the existing city limits boundary line such that only entire parcels and the full width of street rights of way are contained within a single municipality. Such changes offer the tangible benefit of eliminating uncertainties of jurisdiction for law enforcement, emergency response, and maintenance. These changes do not alter the voting precincts, government representation, assessed value, tax payment, or other elements of the relationship between local governments and their citizens. The revised city limits were developed by the involved cities' public works staffs working with the Hamilton County GIS Department, and have been reviewed by the Chattanooga-Hamilton County Regional Planning Commission, which recommends their adoption. The requirements of the applicable State statute have been met.

II. City of Chattanooga

A. The following parcels in existence at the time of this contract are placed entirely within the corporate boundary of the City of Chattanooga. (See attached Exhibit "C")

B. The following street rights of way are placed in the City of Chattanooga:

1. Anderson Avenue, for its entire length.
2. Brockhaven Road west from the southern extension of the western right of way line of Laurel Drive to its terminus at Ridge Avenue.
3. East View Drive for its entire length.
4. Germantown Road south to the southern right of way line of Anderson Avenue.
5. Interstate 24 west of the eastern edge of the bridge carrying Seminole Drive to the existing western city limit of Chattanooga.
6. Interstate 24 east of the western edge of the two bridges carrying Interstate 24 over Germantown Road to the eastern terminus of the highway at its interchange with Interstate 75.

***Note—**Authorized by Reso. No. 22730, adopted November 21, 2000.

7. John Ross Road south of the southern right of way line of Sunrise Terrace to its terminus at South Crest Road.

8. Sheridan Avenue north from a line defined by a line connecting the northern property lines of parcels 156E-A-001 and 156E-B-001 to its terminus at South Crest Road.

9. South Crest Road south from John Ross Road to the southwestern right of way line of East Crest Road at its intersection with West Crest Road and Missionaire Avenue.

III. City of East Ridge

A. The following parcels in existence at the time of this contract are placed entirely within the corporate boundary of the City of East Ridge. (See attached Exhibit "D")

B. The following street rights of way are placed in the City of East Ridge:

1. East Crest Road south from the western extension of the southern right of way line of Missionaire Avenue to the Georgia-Tennessee state line.

2. Interstate 24 east from the eastern edge of the bridge carrying Seminole Drive over Interstate 24 to the western edge of the parallel bridges carrying Interstate 24 over Germantown Road.

3. Laurel Drive east and south from its start at Sheridan Avenue to its terminus at Brockhaven Road.

4. Ringgold Road east from the eastern property line of Parcel 156N-F-013.02 to the existing eastern city limit of East Ridge.

5. Sunrise Terrace west from and including its intersection with John Ross Road to a curve located at the western property line of Parcel 168K-E-026.

6. Shadowlawn Drive east from the western property line of Parcel 168C-F-038 to its terminus at Reeves Avenue.

IV. Documentation of Modifications:

The Hamilton County GIS Department has prepared an official map of the city limit boundary of the City of East Ridge, Tennessee, and the coincident portion of the city limit boundary of the City of Chattanooga, Tennessee, showing the involved parcels and rights of way. This map, which has been reviewed by all parties and used as the source of the information contained above, is hereby adopted by the City of East Ridge as its official map showing the extent of its jurisdiction, and is endorsed by the City of Chattanooga as describing its official city limits in the affected area. The Hamilton County GIS Department shall make the revised city limits boundary available to both cities, the Chattanooga-Hamilton County Regional Planning Agency, the Hamilton County Election Commission, the Hamilton County Assessor of Property, and other interested parties in printed and electronic forms.

V. Limitations

Unless specifically addressed by this agreement, the official city limit boundaries of the City of Chattanooga and the City of East Ridge in existence at the time of executing this contract shall not be modified. No provisions of this contract shall alter the voting rights or other elements of the relationship of these municipalities and their citizens.

IN WITNESS WHEREOF, the parties have hereunto set their hands on this the 26th day of October, 2000.

Commit themselves and their respective jurisdictions on this 26th day of October, 2000:

FOR THE CITY OF CHATTANOOGA,
TENNESSEE

BY: s/Jon Kinsey

Mayor

ATTEST: s/Daisy Madison

Deputy Finance Officer

Approved as to form: s/Randall L. Nelson

City Attorney

FOR THE CITY OF EAST RIDGE, TENNESSEE

BY: s/Fred Pruett

Mayor

BY: s/David Mays

Interim City Manager

Approved as to form: s/J. Cris Helton

City Attorney

FOR THE HAMILTON COUNTY, TENNESSEE GIS DEPARTMENT

BY: s/Al Butler

Director

ANNEXATION ORD. NO. 11174
ENACTED SEPTEMBER 4, 2001

Under the authority conferred by T.C.A. § 6-51-101, *et seq.*, that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by John C. Wilson and Patsy H. Wilson, which territory is more fully described as follows:

155I-B-001

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at an iron pipe in the Southern line of Cravens Road at the Northwest corner of property conveyed by Mary Belle Waldo to Elaine Pierce by Deed recorded in Book 2205, Page 68, in the Register's Office of Hamilton County, Tennessee; thence along the West line of said Pierce property, South 34 degrees 15 minutes, West 254.4 feet to an iron pipe; thence along the Southwest line of Pierce as follows: South 22 degrees 23 minutes East 53.52 feet to an iron pipe, and South 20 degrees, 56 minutes East 150.71 feet to an iron pipe; thence along the Southern line of Pierce, and along the Southern line of John F. Roberts and wife, as described in Book 1343, Page 621, South 57 degrees 48 minutes East 52.59 feet to Chickamauga-Chattanooga National Park Monument APE-39; thence South 46 degrees 26 minutes West along the Northwest line of Elinor Street, 208.23 feet to an iron pipe at the Northwest corner of Elinor and Rutherford Streets; thence North 34 degrees 14 minutes West along the Northeast line of Rutherford Street, 411.11 feet to an iron pipe in the Southeast line of the property of Chickamauga-Chattanooga National Park; thence North 47 degrees 03 minutes East along the Southeast line of said Park Property, 165.29 feet to Park Monument AP3-14 at the Northeast Corner of said Park Property; thence along the Southeast line of property conveyed to Damon L. Stegel by Deed recorded in

Book 2665, Page 157, in the Register's Office of Hamilton County, Tennessee, on a bearing of North 46 degrees 56 minutes East 253.62 feet to the Southern line of Cravens Road; thence along the Southern line of Cravens Road South 61 degrees 52 minutes East 113.73 feet to the point of beginning. Being shown on plat of survey by Betts-Lutin, Drawing No. 8791-1-21C, the line along the Pierce boundary certified on said Drawing to be the same line as shown on their Drawing No. 3812-C-37E, and on Deed recorded in Book 2205, Page 68, said Register's Office.

REFERENCE is made for prior title to Will Book 3, page 574, and Intestate Proceeding No. 810, in the Probate Records of Hamilton County, Tennessee.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11201
ENACTED NOVEMBER 13, 2001

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Richard Rossell and Martha Rossell, which territory is more fully described as follows:

153 001.01

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING on the south right of way line of Will Cummings Highway at the northeast corner of a one-acre tract conveyed by A. W. Kelley to Silas McNabb and running with the east line of the McNabb tract southwardly one hundred fifty (150) feet to a stake; thence south eight (8) degrees east two hundred (200) feet to a stake; thence north sixty-seven (67) degrees east thirty-eight (38) feet to the west right of way of a road leading to a coal mine tipple; thence with the west line of said road to its intersection with the south right of way of Will Cummings Highway; thence along the south right of way line of said Will Cummings Highway in a westwardly direction fifty (50) feet, more or less, to beginning point, and containing one-half (1/2) acre, more or less.

EXCEPT that part sold in Book 1497, page 669, in said Register's Office.

REFERENCE is made for prior see deed recorded in Book 1311, page 312, in said Register's Office.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11202
ENACTED NOVEMBER 13, 2001

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Peter A. Krenkel, which territory is more fully described as follows:

155P-G-001

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Lots Fifty-nine (59), Sixty (60), Sixty-one (61), Sixty-two (62) and Sixty-three (63), Cravens and McMillian's Subdivision, as shown by plat of record in Plat Book 2, page 39, of the Register's Office of Hamilton County, Tennessee. Said lots together form one (1) tract of ground described as follows:

BEGINNING at a monument located four and one-tenth (4.1) feet Westwardly of the Western line of Shingle Road as shown on survey by Hopkins-Morton Engineering Co., Inc., dated December 31, 1968;

thence South eighty (80) degrees West three hundred nineteen and three-tenths (319.3) feet along the Southern line of Lot Fifty-nine (59), being a Northern line of the Chickamauga and Chattanooga National Park, to a monument in the Eastern line of the Chattanooga-Lookout Mountain Railroad right of way; thence Northwardly along said right-of-way line, with a chord distance of North sixteen (16) degrees twenty-five (25) minutes West two hundred sixty-three and seventy-six hundredths (263.76) feet to a monument; thence North seventy-nine (79) degrees ten (10) minutes East along the Northern line of Lot Sixty-three (63), being a Southern line of the Chickamauga and Chattanooga National Park, two hundred seventy-nine and six-tenths (279.6) feet to a monument, located three and two-tenths (3.2) feet to the Western line of Shingle Road, as shown on said survey; thence continuing three and two-tenths (3.2) feet to the Western line of Shingle Road; thence Southward along Shingle Road, with a chord distance of South twenty-five (25) degrees twenty-six (26) minutes East two hundred sixty and three-tenths (260.3) feet to a point; thence Westwardly four and one-tenth (4.1) feet to the point of beginning.

EXCEPT THEREFROM that part of said tract lying within the boundaries of Shingle Road as shown on Plat Book 2, page 39, in said Register's Office.

REFERENCE is made for prior title to Book 2206, page 692, in the Register's Office of Hamilton County, Tennessee.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11385
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Tiftonia, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the western right-of-way line of Birmingham Highway at the existing City Limit Line of Chattanooga, Tennessee, being the southeast corner of parcel 166-05 and the common corner of parcel 166P-A-001; thence northerly along the western right-of-way line of Birmingham Highway to a point in the southern right-of-way of the CSX railroad; thence running with the right-of-way of the CSX railroad across Birmingham Highway to a point on the eastern right-of-way line of Birmingham Highway; thence running southerly with the eastern right-of-way line of Birmingham Highway to the corner of parcel 166I-A-014; thence southeasterly running with the common line of parcel 166I-A-014, parcel 166I-A-012, parcel 166-004, and parcel 166-004.01 to the eastern most corner of parcel 166I-A-012; thence southeasterly across the rights-of-way of Wauhatchie Pike and AGS railroad right-of-way to a point in the eastern right-of-way line of Wauhatchie Pike; thence southwesterly along the eastern right-of-way line of Wauhatchie Pike to the northwest corner of parcel 166I-B-015; thence southeasterly along the common line of parcel 166I-B-016 and parcel 166I-B-015, parcel 166I-B-013, parcel 166I-B-012, parcel 166I-B-011, parcel 166I-B-010, parcel 166I-B-009, and parcel 166I-B-008 to the northeast corner of parcel 166I-B-008, being a point in the right-of-way of the CSX railroad; thence southwesterly with the right-of-way of the CSX railroad along the eastern line of parcel 166I-B-008 and parcel 166-003.05 to the southeastern corner of parcel 166-003.05; thence northeasterly with the line of parcel 166-003.05 and parcel 166-003 to the southwest corner of parcel 166-003 and a point in the right-of-way of Wauhatchie Pike; thence southwesterly along the right-of-way of Wauhatchie Pike to the intersection of the eastern right-of-way of Birmingham Highway; thence crossing the rights-of-way of Birmingham Highway and AGS railroad to a point in the western right-of-way of Birmingham Highway, being the southeast corner of parcel 166P-A-006; thence northeasterly with the right-of-way of Birmingham Highway to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11386
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Tiftonia, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at point on the western right-of-way of Cummins Highway on the Chattanooga city limit line at the northeastern corner of parcel 153-002; thence southwestly to the southeastern corner of said parcel; thence northwesterly along the common line between parcel 153-002 and parcel 153-007.05 to the common corner of parcel 153-002 and parcel 153-002.01; thence northeast along the common line between parcel 153-002 and 153-002.01 to the common corner between said parcels in the southern right-of-way of Cummings Highway; thence southeast along the right-of-way of Cummings Highway and the line of parcel 153-002 to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11387
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Hixson, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the existing City Limit Line of Chattanooga, Tennessee, at the intersection of the northern right-of- way line of Lower Mill Road and the western right-of-way line of Middle Valley Road; thence, in a northwesterly direction along the northern right-of-way line of Lower Mill Road and the southwestern property line of parcel 091-062.02 to the common corner of parcel 091-062.02 and parcel 091-062; thence northeasterly with the common line of parcel 091-062.02 and parcel 091-062 to a point, a common corner of parcel 091-062.02 and parcel 091-062, thence, southeasterly with the common line of parcel 091-062.02 and parcel 091-062 to a point, the corner of parcel 091-062.01; thence, southeasterly with the common line of parcel 091-062.01 and parcel 091-062.02 to the northeast corner of parcel 091-062.02; thence crossing Middle Valley Road to a point in the east right-of-way of Middle Valley Road; thence, southwesterly along the east right-of-way of Middle Valley Road, crossing the right-of-way of Pheasant Run Place to the northeast right-of-way line of Shelby Circle; Thence across Middle Valley Road to the point of BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11388
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Hixson, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the existing City Limit Line of Chattanooga, Tennessee, at the intersection of the northern right-of-way line of Big Ridge Road and the eastern right-of-way line of Hixson Pike,

thence, in a northeasterly direction along the eastern right-of-way line of Hixson Pike and the property line of parcel 101-012.02, parcel 101-012.08, parcel 101-012.10, parcel 101-012.01, and parcel 101-011.02 to the northwest corner of parcel 101-011.02; thence southeasterly to the northeast corner of parcel 101-011.02; thence southwesterly to the southeast corner of parcel 101-011.02, being a point in the line of parcel 101-012.01; thence southeasterly with the line of parcel 101-012.01 to the corner of parcel 101-011; thence with the right-of way of Hixson Pike northeasterly along the line of parcel 101-011, parcel 101-010, parcel 101-009, parcel 101-008, parcel 101-007, and parcel 101-006 to the corner of parcel 101-005.03; thence southeasterly with the common line between parcels 101-006, parcel 101-007, and parcel 101-005.03 to the southeast corner of parcel 101-005.03; thence northwesterly to a common corner with parcel 092P-B-011 and parcel 101-005.03; thence northwesterly with the common line of parcel 101-005.03 and parcel 101-005.02 to the southeast corner of parcel 101-005.01; thence northeasterly with the common line of parcel 101-005.02 and parcel 101-005.01 to the northwest corner of parcel 101-005.02; thence northeasterly with the common line of parcel 101-003 and parcel 092-042 to the southeast corner of parcel 101-002.01; thence northwesterly with the common line of parcel 101-002.01, and parcel 092-042 to the northeast corner of parcel 101-002.01; thence northwesterly with the common line of parcel 101-002.01 and parcel 101-096 to the northwest corner of parcel 101-002.01; thence continuing northwest to the centerline of Hixson Pike; thence southwesterly along the centerline of Hixson Pike to a point on the north right-of-way of Big Ridge Road extended; thence from the centerline of Hixson Pike to the BEGINNING

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11389
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Lee Highway and Interstate 75, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the north right-of-way line of Hunter Road at the intersection of the existing city limit line of the City of Chattanooga, said point being the common corner of parcel 131-074 and parcel 131-074.03; thence leaving the north right-of-way line of Hunter Road and running in a northwesterly direction along the common line of parcel 131-074 and parcel 131-074.03 to the corner of parcel 131-074.03, being a point in the line of parcel 131-075.01; thence running southwesterly with the common line of parcel 131-074 and 131-075.01 to the southwest corner of parcel 131-075.01; thence running northeasterly with the common line of parcel 131-075 and 131-075.01 to the northwest corner of parcel 131-075.01; thence running southeasterly with the line of parcel 131-075.01 to the northeast corner of parcel 131-076; thence running northeast with the line of parcel 131-076 to the northeast corner of parcel 131-076; thence southeast with the line of parcel 131-076 to the northern right-of-way of Mountain View Road; thence southwesterly with the northern right-of-way of Mountain View Road and Hunter Road to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11390
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Lee Highway and Interstate 75, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the city limits line of Chattanooga, at the southeast corner of parcel 132-003 on the north right-of-way of Mountain View Road; thence southwesterly with the north right-of-way of Mountain View Road to the intersection of Mountain View Road with Snow Hill Road; thence with the right-of-way of Snow Hill Road northwesterly along the line of parcel 132-003 to the common corner of parcel 132-003 and 132-003.03; thence crossing the fifty foot (50') right-of-way of Snow Hill Road in a northwesterly direction to the corner of parcel 132-003.04; thence running with the common line between parcel 132-003.04 and 122M-A-105 to the northwest corner of parcel 132-003.04; thence in a southeasterly direction across Snow Hill Road to a point in the south right-of-way line of Snow Hill Road, being the corner of parcel 123-007.01; thence running with the south right of way line of Snow Hill Road to the line of parcel 123-007.01 in an easterly direction to the intersection with the south right-of-way of Amos Road; thence running with the south right-of-way of Amos Road to the northeast corner of parcel 123-007.01; thence crossing the right-of-way of Amos Road to a point in the east right-of-way line of Amos Road, being the northwest corner of parcel 123-007.05; thence northeasterly with the line of parcel 123-007.05 to the common corner of parcel 123-007.05 and parcel 123-007.03; thence northeasterly with the common line of parcel 123-007.03 and parcel 123-003 to a point; thence northwesterly with the common line of parcel 123-007.03 and parcel 123-003 to the common corner of parcel 123-007.03 and parcel 123.007; thence northwesterly with the common line of parcel 123-003 and parcel 123-007 to a point in the line of parcel 122-050; thence southeasterly with the common line of parcel 122-050 and parcel 123-007 to a point in the line of parcel 123-008.06; thence northeasterly with the common line of parcel 122-050, parcel 122-048, parcel 123-008.06, and parcel 123-008.01 to a common corner of parcel 123-008.01 and parcel 122-048; thence southeasterly along the common line of parcel 123-008.01 and parcel 122-048 to a point in the right-of-way of Transport Lane; thence with the right-of-way of Transport Lane to a point in the line of parcel 123-009.04; thence northwesterly with the common line of parcel 122-048 and parcel 123-009.04 to the southwest corner of parcel 123-009.04; thence northeasterly with the common line of parcel 122-048 and parcel 123-009.04 to the northwest corner of parcel 123-009.04; thence southeasterly with the common line of parcel 123-009.05, parcel 123-009.04, parcel 123-009.03, parcel 123-009.02, and parcel 123-009.01 to the northeast corner of parcel 123-009.01, being a point in the west right-of-way of Mountain View Road; thence running perpendicular to the east right-of-way of Interstate 75, and crossing Mountain View Road, to a point in the east right-of-way line of Interstate 75, being a point in the line of parcel 123-063; thence southwesterly with the east right-of-way line of Interstate 75 to the city limit line, being the corner of parcel 132.002; thence with the city limit line of Chattanooga northwesterly across Interstate 75 to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11391
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Lee Highway and Interstate 75, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the existing City Limit Line of Chattanooga, Tennessee, at the common corner of parcel 131-042.01, 131-042.03 and the right-of-way of Hilltop Drive; thence, southwesterly along the north right-of-way of Hilltop Drive and parcels 131-042.01 and 131-044.02 crossing the 50 foot right-of-way of Country Village Drive (Private Road) to a corner of parcel 131-044, being the northwest corner of the right-of-way of Hilltop Drive; thence southeasterly to the right-of-way of Interstate 75; thence running southwesterly with the right-of-way of Interstate 75 and the line of parcel 131-044 to a point, the common corner of parcel 131-099.02 and parcel 131-044; thence, northeast to common corner of parcel 131-044, parcel 131-099.02 and parcel 131-099.01; thence, northeast with the common boundary of parcel 131-044 and parcel 131-099.01 to a point, the common corner of parcel 131-044 and parcel 131B-A-026; thence, southeast with the common line of parcel 131-044, parcel 131-044.02 and the boundary of the Country Village subdivision, crossing the right-of-way of Country Village Drive (Private Road) to common corner of parcel 131-044.02 and 131G-B-001; thence, northeasterly along the common line of parcel 131-044.02, parcel 131-042.01, and the boundary of the Country Village subdivision to the northwest corner of parcel 131-042.01; thence southeasterly along the common line of parcel 131-042.01 and parcel 131-048, parcel 131-049, parcel 131-053.03, parcel 131-053.02, parcel 131-055, parcel 131-040, and parcel 131-041 to the northeast corner of parcel 131-042.01; thence southeasterly to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11392
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Bonny Oaks Drive, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at the existing City Limit Line of Chattanooga, Tennessee, at the intersection of the southern right-of-way line of Bonny Oaks Drive and the northeastern right-of-way line of North Bishop Drive; thence, in a southeastern direction along the right-of-way of Bonny Oaks Drive and the northeastern boundary line of parcel 129M-D-010, across the 50 foot right-of-way of Bonnyshire Drive along the northeastern boundary line of parcel 129M-E-002 to the common corner of parcel 129M-E-002 and parcel 130-001; thence, southwesterly along the common property line of parcel 129M-E-002 and 129M-E-001 and parcel 130-001 to the common corner of parcel 129M-E-001 and parcel 138-001; thence, southeasterly along the common boundary of parcel 138-001 and 130-001; thence, southeasterly with the common boundary to the common corner of parcel 138-001 and 138-001.01; thence, southwesterly to the common line of parcel 138-001.01 and the railroad right-of-way owned by the United States of America; thence southwesterly along the northern right-of-way of the railroad to the common corner of parcel 138-001.01 and parcel 138-001.02; thence, southwesterly along the northern right-of-way of the railroad to the common corner to the common corner of parcel 138-001.02, 138D-B-002.02 and the railroad right-of-way; thence, running northeasterly along the common line of

parcel 138-001.02, parcel 129M-D-013, parcel 129M-D-012, parcel 129M-D-011, parcel 129M-D-010, and the boundary line of the Austin Farms subdivision to the west right-of-way of North Bishop Drive; thence with the west right-of-way of North Bishop Drive to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11393
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Bonny Oaks Drive, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the existing City Limit line of Chattanooga, Tennessee, at the intersection of the southern right-of-way of Bonny Oaks Drive and the west right-of-way of Hickory Valley Road; thence southeasterly along the west right-of-way of Hickory Valley Road and the property lines of parcel 130-002, parcel 139-001, and parcel 139-002 to the southeast corner of parcel 139-002; thence northwesterly along the common line between parcel 139-002, parcel 139-001 and parcel 130-001 to the southwest corner of parcel 139-001; thence northeasterly along the common line between parcel 139-001 and parcel 130-001 to the northwest corner of parcel 139-001; thence southeasterly along the common line between parcel 139-001 and parcel 130-001 to a point, being a corner of parcel 130-002; thence along the common line between parcel 130-002 and parcel 130-001 to a point in the south right-of-way line of Bonny Oaks Drive, the common corner of parcel 130-001 and parcel 130-002; thence along the southern right-of-way of Bonny Oaks Drive to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11394
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Bonny Oaks Drive, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the city limit line of Chattanooga in the north right-of-way of Old Lee Highway at the corner or parcel 131P-A-012; thence northwesterly with the line of parcel 131P-A-012 and the right-of-way of the Norfolk Southern Railroad to the northwest corner of parcel 131P-A-012; thence northeasterly with the right-of-way of the Norfolk Southern Railroad and the line of parcel 131P-A-012, parcel 131P-A-012.01, parcel 131P-A-011.01, parcel 131P-A-009, parcel 131P-A-008, parcel 131P-A-003, and parcel 131P-A-002 to the northeast corner of parcel 131P-A-002, being a common corner with parcel 131P-A-001; thence southwesterly with the line of parcel 131P-A-001 and parcel 131P-A-002 to the north right-of-way of Old Lee Highway; thence westerly with the north right-of-way of Old Lee Highway to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11395
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of Bonny Oaks Drive, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the city limit line of Chattanooga in the south right-of-way of Old Lee Highway at the corner or parcel 131P-A-014; thence southwesterly with the line of parcel 131P-A-014, parcel 131P-A-015, and parcel 131P-A-018 to the southeast corner of parcel 131P-A-014, being a point on the line of parcel 131P-A-019.02; thence northwesterly with the line of parcel 131P-A-014, parcel 131P-A-014.01, parcel 131P-A-014.02 and parcel 131P-A-019.02 to the southwest corner of parcel 131P-A-014.02; thence northeasterly with the line of parcel 131P-A-014.02 and parcel 139D-A-001 to the northwest corner of parcel 131P-A-014.02, being a point on the south right-of-way of Old Lee Highway; thence easterly with the south right-of-way of Old Lee Highway to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11396
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City the Valley Hospital property, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the existing City Limit Line of Chattanooga, Tennessee, on the northeast right-of-way line of Morris Hill Road and the western property line of parcel 149M-A-006, thence, northwesterly along said right-of-way line to the southwest corner of parcel 149M-A-001.01, thence, southeasterly along a common line between parcel 149M-A-006 and parcel 149M-A-001.01, parcel 149M-A-001.03 to the southeast corner of parcel 149M-A-001.03; thence northerly along the common line of parcel 149M-A-001.02 and parcel 149M-A-001.03 to the northeast corner of parcel 149M-A-001.03; thence northerly to the northeast corner of parcel 149M-A-002.01; thence northwesterly to a corner of parcel 149M-A-002.01, being a point in the line of parcel 149M-A-003; thence northeasterly with the city limit line of Chattanooga to the southeast corner of parcel 149M-A-007.01; thence northeasterly along the common line of parcel 149M-A-006 and parcel 149M-A-007.01, and parcel 149M-A-007 to a point in the line of parcel 149L-D-006; thence, southeasterly along the common line between parcel 149M-A-006 and parcel 149L-D-006, parcel 149L-D-007, parcel 149L-D-008, parcel 149L-D-009, and 149E-L-011 to the northeast corner of parcel 149M-A-006; thence southwesterly along common line of parcel 149M-A-006 and Valley View subdivision to the corner of parcel 149M-A-006.01; thence northwesterly with the line of parcel 149M-A-006 to the northwest corner of parcel 149M-A-006.01; thence southwesterly with the line of parcel 149M-A-006 to the southwest corner of parcel 149M-A-006.01; thence southeasterly with the line of parcel 149M-A-006 to the southeast corner of parcel 149M-A-006.01, being the common corner with 159D-C-021; thence southwesterly along common line of parcel 149M-A-006 and Valley View subdivision to the southeast corner of parcel 149M-A-006, being a common corner with parcel 159D-B-019.01, thence northwesterly with the common line of 149M-A-006 and parcel 159D-B-019.01 and parcel 159D-B-023 to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11397
ENACTED FEBRUARY 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of East Brainerd, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the city limits of Chattanooga at the northeast intersection of Morris Hill Road and East Brainerd Road, said point being the southwest corner of parcel 171C-B-009.03, and running northeasterly along the east right-of-way of Morris Hill Road to the northeast corner of parcel 171C-B-009.03; thence running along the common line of parcel 171C-B-010 and parcel 171C-B-009.03, parcel 171C-B-009.02, parcel 171C-B-009, and parcel 171C-B-009.01 to a point in the line of parcel 171C-D-008; thence northeasterly with the common line of parcel 171C-B-010, parcel 171C-B-016, parcel 171C-B-017, parcel 171C-B-019, parcel 171C-B-009.03, and parcel 171C-D-008 and parcel 171C-D-007 to the northwest corner of parcel 171C-D-007; thence southeasterly with the common line of parcel 171C-D-007 and parcel 171C-B-003.02 to the northwest corner of parcel 171C-B-004; thence southwesterly with the common line of parcel 171C-B-004, parcel 171C-B-005, and parcel 171C-B-006 to the northwest corner of parcel 171C-B-006; thence southeasterly with the common line of parcel 171C-B-006 and parcel 171C-B-005 to the northern right-of-way of East Brainerd Road; thence crossing East Brainerd Road to a point on the southern right-of-way of East Brainerd Road; thence southwesterly with the southern right-of-way of East Brainerd Road to the corner of parcel 171C-D-001; thence southeasterly with the common line of parcel 171C-D-001 and parcel 171C-D-003 to the southeast corner of parcel 171C-D-001; thence northwesterly with the common line of parcel 171C-D-001 and parcel 171C-D-003 to the east right-of-way of Fuller Road; thence crossing Fuller Road to the common corner of parcel 171C-E-005.01 and parcel 171C-E-006; thence southwesterly with the common line of parcel 171C-E-005.01 and parcel 171C-E-006 to the southeast corner of parcel 171C-E-005.01; thence northwesterly with the common line of parcel 171C-E-005.01 and parcel 171C-E-005, crossing a private easement to the city limits on parcel 171C-E-003.01; thence running with the city limit line northwesterly to a point; thence with the city limit line northeasterly to a point in the southern right-of-way of East Brainerd Road; thence running westerly with the southern right-of-way of East Brainerd Road to the northwest corner of parcel 171C-E-002; thence crossing East Brainerd Road to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

ANNEXATION ORD. NO. 11406
ENACTED MARCH 25, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of the Jenkins Road Extension, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the city limit line of Chattanooga on the west right-of-way line of Old Lee Highway at the intersection of the south right-of-way of Stonehenge Drive, being the northwest corner of parcel 139F-E-002; thence southeasterly with the line of parcel 139F-E-002 and parcel 139F-E-003 to the northeast corner of parcel 139F-E-002; thence southwesterly with the line of parcel 139F-E-002 and parcel 139F-E-003 to the southeast corner of parcel 139F-E-002, being a point in the line of parcel 139F-E-001; thence southeasterly with the line of parcel 139F-E-003 and parcel 139F-E-001 to the northeast corner of parcel 139F-E-001; thence southwesterly with the line of parcel 139F-E-003 and

parcel 139F-E-001 to the southeast corner of 139F-E-001, being a point in the line of parcel 139F-006.03; thence southeasterly with the line of parcel 139F-006.03, parcel 139F-E-003, and parcel 139F-E-012 to the corner of parcel 139F-E-020, being the corner of the Stonehenge subdivision; thence continuing southeasterly with the line of the Stonehenge subdivision and parcel 139-012 to the northeast corner of parcel 139-012, being a point in the north right-of-way of an unnamed street; thence continuing southeasterly with the line of the Stonehenge subdivision and the north right-of-way of an unnamed street to the southeast corner of parcel 139E-B-001.06, being the boundary of the Stonehenge subdivision; thence continuing southeasterly with the north right-of-way of an unnamed street and the line of parcel 139-014 and parcel 139-022 to a point on the extended eastern line of parcel 139-013; thence southwesterly across the unnamed street to the northeast corner of parcel 139-013; thence continuing southwesterly with the line of parcel 139-013, parcel 139-019, and parcel 139-020 to the southeast corner of parcel 139-013, being a point in the line of parcel 139-007; thence southeasterly with the line of parcel 139-007, parcel 139-020, parcel 139-021.01, and parcel 139-021 to the southeast corner of parcel 139-021, being a corner of the Fair Oaks subdivision; thence continuing southeasterly with the line of the Fair Oaks subdivision and parcel 139-007 to the northeast corner of parcel 139-007; thence southwesterly with the line of the Fair Oaks subdivision, parcel 139-007, and parcel 139-006.02 to the southeast corner of parcel 139-006.02, being a corner of the Brock Pointe subdivision; thence northwesterly with the line of parcel 139-006.02 and the Brock Pointe subdivision to the east right-of-way line of Brock Road and the northwest corner of parcel 139M-C-033; thence crossing brock Road to the northeast corner of parcel 139M-D-001; thence westerly with the line of parcel 139-006.02 and the Brock Point subdivision to a point in the line of parcel 139-006; thence southeasterly with parcel 139-006 and the Brock Point subdivision to the southeast corner of parcel 139-006, being a point in the line of parcel 139-005; thence northwesterly with the line of parcel 139-006 and parcel 139-005 to the northeast corner of parcel 139N-B-010, being a corner of the Cambridge Estates subdivision; thence northwesterly with the line of the Cambridge Estates subdivision and parcel 139-006 to the northeast corner of parcel 139-004; thence northwesterly with the line of parcel 139-006 and parcel 139-004 to the northeast corner of parcel 139-004.02; thence southwesterly with the line of parcel 139-004 and parcel 139-004.02 to the east right-of-way of the Jenkins Road Connector; thence running southeasterly with the east right-of-way of the Jenkins Road Connector to the existing city limits of Chattanooga; thence northwesterly with the city limits of Chattanooga across the right-of-way of the Jenkins Road Connector to the corner of parcel 139-004.01; thence northwesterly continuing with the city limits of Chattanooga and the line of parcel 139-004.01 to the corner of parcel 139-004.01 in the right-of-way of Standifer Gap Road; thence northeasterly with the city limits of Chattanooga and the line of parcel 139-004.01 to the southwest corner of parcel 139-006; thence with the city limits of Chattanooga and the line of parcel 139-004.01 to the southwest corner of parcel 139-006; thence with the city limits of Chattanooga and the line of parcel 139-003.04 and parcel 139-006.04 to the northwest corner of parcel 139-006.04, being in the right-of-way of Intestate 75 thence northeasterly with the right-of-way of Intestate 75 and Old Lee Highway to the BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon. EXCLUDING Tax Map No. 139F-E-001.01, more particularly described as follows:

BEGINNING at a point in the existing City Limit of Chattanooga, Tennessee, on the east right-of-way line of Old Lee Highway and the northern property line of parcel 139-006.03, being the southwestern corner of parcel 139F-E-001.01, thence, northeasterly along said right-of-way line 320'+/- to the northwest corner of parcel 139F-E-001.01; thence, southeasterly 557'+/- along a common line between parcel 139F-E-001.01 and parcel 139F-E-001.02 to the northeast corner of parcel 139F-E-001.01; thence southernly 320'+/- along the common line of parcel 139F-E-001.01 and parcel 139F-E-001.02 to the southeast corner of parcel 139F-E-001.01, being a point in the line of parcel 139-006.03; thence northwesterly 557'+/- along a common line between parcel 139F-E-001.01 and parcel 139-006.03 to the point BEGINNING.

ANNEXATION ORD. NO. 11501
ENACTED DECEMBER 16, 2003

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area of the Jenkins Road Extension, specifically Tax Map No. 139F-E-001.01, in Hamilton County, contiguous to the corporate boundaries of said City which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

BEGINNING at a point in the existing City Limit of Chattanooga, Tennessee, on the east right-of-way line of Old Lee Highway and the northern property line of parcel 139-006.03, being the southwestern corner of parcel 139F-E-001.01, thence, northeasterly along said right-of-way line 320'+/- to the northwest corner of parcel 139F-E-001.01; thence, southeasterly 557'+/- along a common line between parcel 139F-E-001.01 and parcel 139F-E-001.02 to the northeast corner of parcel 139F-E-001.01; thence southerly 320'+/- along the common line of parcel 139F-E-001.01 and parcel 139F-E-001.02 to the southeast corner of parcel 139F-E-001.01, being a point in the line of parcel 139-006.03; thence northwesterly 557'+/- along a common line between parcel 139F-E-001.01 and parcel 139-006.03 to the point BEGINNING.

SUBJECT TO Governmental zoning and subdivision ordinances or regulations in effect thereon.

DEANNEXATION ORD. NO. 11502
ENACTED DECEMBER 16, 2003

Pursuant to the authority conferred by T.C.A. §§ 6-51-201 through 6-51-204, the territory originally annexed by the City of Chattanooga within Ordinance No. 6393 shall be contracted by this Ordinance to deannex the following territory set forth in the map which is attached hereto as Exhibit "B" and including the following specific tax parcels and owners referenced in the tax records of Hamilton County, Tennessee:

Elder Garrison Etal, Cash Canyon, 00000, 116 009.01; Coleman Charles Boyd Jr &, Cash Canyon, 00000, 116 009.02; Tenn River Gorge Natural, Cash Canyon, 02550, 116 013; Thompson John William Berry Iii &, Cash Canyon, 02480, 116 014; Thompson John William Berry Iii &, Cash Canyon, 00000, 116 015; Kellis John David & Tena-Marie, Cash Canyon, 02456, 116 015.01; Townson Jeff A & Susan S, Cash Canyon, 02464, 116 015.02; Jenkins Stephen R & Michelle R, Cash Canyon, 02488, 116 015.03; Thompson John William Berry Iv &, Cash Canyon, 02481, 116 015.04; Shaffner Gaylen & Doris, Cash Canyon, 02476, 116 015.05; Adams James W & Betty, Cash Canyon, 02470, 116 015.06; Kellis John David & Tena Marie, Cash Canyon, 02458, 116 015.07; Hudson Kendrick B Jr, Cash Canyon, 02375, 116 016; Mccroskey Joseph J Jr, Cash Canyon, 00000, 116 016.01; Stolpmann Family Partners Lp, Cash Canyon, 00000, 116 017; Stolpmann Fred J, Cash Canyon, 02357, 116 017.01; Thompson Cemetery, Cash Canyon, 00000, 116 018; Stolpmann Leo J, Cash Canyon, 00000, 125 001; Scott R P Tr Etal, Cash Canyon, 00000, 125 002; Brown Gerald, Cash Canyon, 01850, 125 003.01; Tennessee River Gorge Trust, Cash Canyon, 00000, 125 003.02; Spears Wickliffe R, Cash Canyon, 00000, 125 003.03; Hixson David & Alison, Cash Canyon, 01880, 125 003.04; Foy James A, Cash Canyon, 00000, 125 004; Foy Carolyn M, Cash Canyon, 01820, 125 004.01; Investment Properties Co, Cash Canyon, 00000, 125 005; Goins James W Etux, Cash Canyon, 01771, 125 006; Brown Billy D & Marion Ann, Cash Canyon, 01751, 125 007; Tennessee River Gorge Trust Inc, Elderview, 00000, 134 024.09; Moore Richard L & Tammy B, Cash Canyon, 01515, 134 037; Penney Carl E & Ola J, Cash Canyon, 01505, 134 037.04; Brady Vicky S., Cash Canyon, 01509, 134 037.05; Haley Jerry L & Peggy F, O Grady, 01520, 134 040; Johnson Randall W & Melissa S, Cash Canyon, 01580, 134 040.01; Pwi Realty Company Llc, Cash Canyon, 00000, 134 040.02; Tanner Leonard R, Cash Canyon, 00000, 134 040.03; Coker David T & Kathy L, Cash Canyon, 01560, 134 040.04; Tanner Leonard R Jr & Sarah G, Cash Canyon, 00000, 134 040.05;

Coker David T & Kathy L, Cash Canyon, 01580, 134 040.06; Fry Vernon Jackson &, O Grady, 01480, 134 041; Prince Shirley Calhoun &, Cash Canyon, 01510, 134 042; Foster G F & Eva, Cash Canyon, 01610, 134 044; Foster William C & Ruby Faye, Cash Canyon, 01616, 134 044.02; Title Cemetery, Cash Canyon, 00000, 134 045; Mc Nabb Alvin Nathan & Robin Denise, Cash Canyon, 01650, 134 046

ANNEXATION ORD. NO. 11511
ENACTED JANUARY 20, 2004

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City an area on the side of Lookout Mountain, in Hamilton County, contiguous to the corporate boundaries of said City, owned by Alfred N. Vail, Jr. and Teresa D. Vail, which territory is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Lot No. Two (2), John Wilson Subdivision, as shown by plat of record in Plat Book 42, Page 151, in the Register's Office of Hamilton County, Tennessee.

REFERENCE is made for prior title to Book 2876, Page 913, in the Register's Office of Hamilton County, Tennessee.

SUBJECT to governmental zoning and subdivision ordinances or regulations in effect thereon.

The preceding, last registered Instrument relating to the property or subject matter embraced in this Instrument is a UCC-1 Form and is recorded in Book 3010, Page 410, in the Register's Office of Hamilton County, Tennessee.

ANNEXATION ORD. NO. 12291
ENACTED SEPTEMBER 29, 2009

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to Cummings Highway known as Area 1B within the Urban Growth Boundary of the City of Chattanooga, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE FIRST CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning in the present city limit boundary at the intersection of Cummings Cove Drive and northeast corner of property now or formerly owned by Black Creek Club LLC (153E-007.07); thence proceeding southward a distance of 500 feet, more or less, along Cummings Cove Drive right-of-way to the intersection of the northeast corner of Lot 106, now or formerly owned by Phyllis and Irwin Perlman (153E-A-001) Cummings Cove Golf Club Subdivision Phase One (Plat Book 60, Page 174) and the Cummings Cove Drive right of way; thence proceeding southwesterly a distance of 100 feet, more or less, across Cummings Cove Drive right of way to the northeast corner of property now or formerly owned by Black Creek Club LLC (153-007.07); thence proceeding southward a distance of 4,950 feet, more or less, along the current boundary of the City of Chattanooga to the southern corner of property now or formerly owned by Obar Investments LLC (153-007); thence proceeding westward a distance of 5,315 feet, more or less, to the southwest corner of property now or formerly owned by Alpine Development LLC (153-007.02); thence proceeding northeasterly a distance of 1,964 feet, more or less, following the northern property line of property now or formerly owned by Alpine Development LLC (153-007.02) to the northern corner of property now or formerly owned by Alpine Development LLC (153-007.02); thence proceeding southeasterly a distance of 1475 feet, more or less, following the property line of the property now or formerly owned by Alpine Development LLC (153-007.02) to the

intersection of a corner of property now or formerly owned by Alpine Development LLC (153-007.02) and the West Hills Road right of way; thence proceeding southeasterly a distance of 115 feet, more or less, along the western line of West Hills Road to the southwest corner of property now or formerly owned by Obar Investments LLC (153-007); thence proceeding northeasterly a distance of 50 feet, more or less, across West Hills Road to the southwest corner of Lot 256 now or formerly owned by Lois Holdridge (153F-B-001) Cummings Cove Golf Club Subdivision Phase Four (Plat book 67, Page 8); thence proceeding westward following the boundary of Cummings Cove Golf Club Subdivision Phase Four 2,500 feet, more or less, to the west corner of Lot 302 now or formerly owned by Steven and Carolyn Sherman (153F-A-033) Cummings Cove Golf Club Subdivision Phase Four and West Hills Road right of way; thence proceeding northeasterly along the eastern line of West Hills Road to the west corner of property now or formerly owned by Black Creek Club LLC (153E-007.07); then following the property line of property now or formerly owned by Black Creek Club LLC (153E-007.07) to the point of beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels listed below and as shown on the attached map for Annexation Area 1B.

153F C 001 C036	153F B 004	153F B 001	153F C 001 C135
153F C 001 C052	153F A 035	153F B 005	153F C 001 C025
153F C 001 C064	153F A 036	153F A 012	153F C 001 C041
153F C 001 C076	153F A 031	153F A 004	153F C 001 C053
153F C 001 C092	153E B 003	153F C 001 C026	153F C 001 C065
153F C 001 C104	153E A 014	153F C 001 C012	153F C 001 C081
153F C 001 C116	153F A 026	153F C 001 C024	153F C 001 C093
153F C 001 C016	153F A 003	153F C 001 C013	153F C 001 C105
153F C 001 C032	153F A 019	153F C 001 C096	153F C 001 C131
153F C 001 C044	153F A 025	153F C 001 C112	153F C 001 C066
153 004	153F A 037	153F C 001 C134	153F B 004.01
153F C 001 C056	153E A 002	153E A 012	153F C 001 C082
153F C 001 C051	153E B 014	153F C 001 C045	153F C 001 C094
153F C 001 C063	153F B 010	153F C 001 C014	153F C 001 C106
153F C 001 C075	153F B 006	153F C 001 C021	153F C 001 C132
153F C 001 C091	153F A 002	153F C 001 C033	153F C 001 C086
153F A 023	153F A 018	153F C 001 C042	153F C 001 C102
153E A 001	153E A 009	153F C 001 C054	153F C 001 C114
153E B 006	153E A 010	153F C 001	153F C 001 C136
153F A 034	153F B 012	153F C 001 C022	153 007.02
153F A 010	153F A 011	153F C 001 C034	153 007
153F A 028	153F A 001	153F C 001 C046	153 007.07
153E B 012	153F A 014	153F C 001 C062	
153F A 020	153E A 008	153F C 001 C074	
153E B 007	153F A 009	153F C 001 C072	
153F A 029	153E B 011	153F C 001 C084	
153E B 005	153F B 011	153F C 001 C015	
153E A 004	153F A 006	153F C 001 C031	

153E A 003	153F A 017	153F C 001 C043
153F A 038	153F A 005	153F C 001 C055
153E A 015	153E B 002	153F C 001 C071
153E B 015	153F B 002	153F C 001 C083
153E A 006	153F A 021	153F C 001 C095
153E A 016	153E B 010	153F C 001 C111
153E A 011	153F B 009	153F C 001 C133
153F A 032	153F A 013	153F C 001 C011
153F A 040	153F B 003	153F C 001 C023
153E A 005	153F A 007	153F C 001 C035
153F A 033	153F B 008	153F C 001 C103
153 002.03	153E B 009	153F C 001 C115
153E B 013	153E B 004	153F C 001 C061
153F A 039	153F A 015	153F C 001 C073
153F A 024	153F A 008	153F B 003.01
153E B 008	153E B 001	153F C 001 C085
153F A 027	153F B 007	153F C 001 C101
153E A 007	153F A 016	153F C 001 C113

ANNEXATION ORD. NO. 12296
ENACTED OCTOBER 6, 2009

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.),* that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to Interstate 75 and Hunter Road known as Area 8A within the Urban Growth Boundary of the City of Chattanooga, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at the present city limit boundary a point along the northern line of Interstate 75 right of way and 70 feet southeast, more or less, from property now or formerly owned by The Krystal Company (131-074.03); thence proceeding south-westerly a distance of 3,450 feet, more or less, along the northern line of Interstate 75, Hunter Road, and Hilltop Drive right of ways to the southwest corner of property now or formerly owned by MCC Outdoor LLC (131-042.03); thence proceeding north-westerly a distance of 186 feet, more or less, to a point southeast of the southwest corner of property now or formerly owned by Amon and Doris York (131-041); thence proceeding north-westerly a distance of 650 feet, more or less, along the City of Chattanooga right of way to the southwest corner of property now or formerly owned by Amon and Doris York (131-055) along the northern right of Ooltewah Harrison Road; thence proceeding North 23 degrees East a distance of 910 feet, more or less, to a point directly across from the northwest corner of property now or formerly owned by Amon and Doris York (131-055); thence proceeding easterly a distance of 875 feet, more or less, along the northern right of way of the Ooltewah-Harrison Road right to a point directly across the road from the northern corner of property now or formerly owned by Mary and Richard Burton (131-063)at the intersection of Hunter Road and Ooltewah Harrison Road; thence proceeding easterly a distance of 50 feet, more or less, across the Hunter Road right of way to a point on the western line of property now or formerly owned by Michael Carter (131-074.01)on the eastern right of way of Hunter Road; thence proceeding north-westerly a distance of 100 feet, more or less, along the eastern line of Hunter Road right of way to the northwest corner of

property now or formerly owned by Michael Carter (131-074.01)on the eastern right of way of Hunter Road; thence proceeding north-westerly a distance of 100 feet, more or less, along the eastern line of Hunter Road right of way to the northwest corner of property now or formerly owned by Michael Carter (131-074.01); thence proceeding South 86 degrees East a distance of 1,470 feet, more or less, to the northwest corner of property now or formerly owned by Larry Armour (131-074); thence proceeding south-easterly a distance of 415 feet, more or less, to the northeast corner of property now or formerly owned by Larry Armour (131-074); thence proceeding south-easterly a distance of 463 feet, more or less, across Hunter Road right of way to the west corner of property now or formerly owned by The Krystal Company (131-074.03); thence proceeding south-easterly a distance of 280 feet, more or less, to the point of beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels listed below and as shown on the attached map for Annexation Area 8A.

131 063
131 061.01
131 061.02
131 061
131 041
131 040
131 056
131 055
131 038
131 039
131 060
131 074.01
131 042.03
131 056.01
131 063.01
131 034.01
131 035
131 062
131 034
131 036.01
131 036
131 037
131 074

ANNEXATION ORD. NO. 12308
ENACTED OCTOBER 27, 2009

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to Interstate 24 and the Tennessee River known as Area 3A in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning in the current City of Chattanooga boundary at the intersection of Lookout Creek and the northeastern corner of property now or formerly owned by MCC Outdoor LLC (154D-B-003); thence proceeding southwesterly a distance of 1,731 feet, more or less, along the current City of Chattanooga boundary to the northeastern corner of property now or formerly owned by Heller Properties LLC (154D-B-004); thence proceeding a distance of 4,859 feet, more or less, following the property line of Heller Properties LLC (154D-B-004) and the current City of Chattanooga boundary to the CSX Rail line right of way; thence proceeding a distance of 7,212 feet, more or less, along the southern boundary of the CSX Rail line right of way to the current City of Chattanooga boundary; thence proceeding northeasterly a distance of 21 feet, more or less, along the current City of Chattanooga boundary to the Interstate 24 right of way; thence proceeding northwesterly a distance of 2,664 feet along the current City of Chattanooga boundary the intersection of the Interstate 24 right of way and the AGS Rail line right of way; thence proceeding southwesterly a distance of 226 feet, more or less, following Lookout Creek which is the current City of Chattanooga boundary to the point of beginning. Included in this annexation are all tax parcel numbers and road right of ways on the accompanying attached map for Annexation Zone 3 A. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

ANNEXATION ORD. NO. 12311
ENACTED NOVEMBER 3, 2009

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, which includes properties adjacent to Ruby Falls and the U.S. Park Service Land Resource Division, on the side of Lookout Mountain known as Area 3C, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning in the present city limit boundary and the northeastern corner of property now or formerly owned by Ruby Falls Incorporated (155H-B-013); thence proceeding westward a distance of 3,212 feet, more or less, along the current City of Chattanooga boundary to the northwestern corner of property now or formerly owned by the United States of America National Park Service Land Resource Division (155H-A-005); thence proceeding southward a distance of 1,548 feet, more or less, along the current City of Chattanooga boundary to the southeastern corner of property now or formerly owned by United States of America (155H-B-004); thence proceeding north-easterly a distance of 1,179 feet, more or less, along the current City of Chattanooga boundary to the point of beginning. Included in this annexation are all tax parcel numbers and road right of ways on the accompanying attached map for Annexation Zone 3 C. All of this property lies within the Urban Growth Boundary of the City of

Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

ANNEXATION ORD. NO. 12309
ENACTED OCTOBER 27, 2009

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to streets including, but not limited to, Gold Crest, Dahl

[The next page is CDA:85]

Springs, and Fairview Road, known as Area 4B, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described below and shown on the map attached hereto and made a part hereof by reference.

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the present city limit boundary and the southwest corner of property now or formerly owned by WWLIP Incorporated (092-042.01); thence proceeding southward a distance of 790 feet, more or less, along the City of Chattanooga right of way to the southwest corner of property now or formerly owned by Georgia Conference Association of Seventh-Day Adventists (101-005.02); thence proceeding eastward a distance of 330 feet, more or less, along the current City of Chattanooga boundary to the intersection of the southeast corner of property now or formerly owned by Georgia Conference Association of Seventh-Day Adventists (101-005.03), which is the current City of Chattanooga boundary and a point on the northern line of property now or formerly owned by Patricia Conley (101-007); thence proceeding northwesterly a distance 1,170 feet, more or less, along the current City of Chattanooga boundary to the northwest corner of property now or formerly owned by Big Ridge Cove LLC (101-009); thence proceeding southward a distance of 1,516 feet, more or less, along the current City of Chattanooga boundary to a point on the southwest corner of property now or formerly owned by Janice Hill (101-016.01) and Big Ridge Road; thence proceeding southeasterly a distance of 2,198 feet, more or less, along the current City of Chattanooga boundary to the southeast corner of property now or formerly owned by Sandra Pollard (101-011.03); thence proceeding northeasterly along the right of way of Fairview Road including the whole right of way to the northeast corner of property now or formerly owned by Patricia Baird Caldwell Miller (101-055); thence proceeding northwesterly along the northern boundary of Parcel 101-055 to the current City of Chattanooga boundary, which is the intersection of the southeast corner of property now or formerly owned by Georgia Conference Association of Seventh-Day Adventists (101-005.03) and a point on the northern line of property now or formerly owned by Patricia Conley (101-007); thence continuing along the eastern boundary of Parcel 101-005.03, which is the current City of Chattanooga boundary, to the southeast corner of property now or formerly owned by Georgia Conference Association of Seventh-Day Adventists (101-005.02); thence proceeding along the eastern boundary of Parcel 101-005.02 to the southeast corner of property now or formerly owned by Terry Lynn Enos (092-042); thence proceeding along the eastern boundary line of Parcel 092-042 to the northeast corner of Parcel 092-042; thence proceeding northwesterly along the southern right of way of Gold Crest Drive 50 feet, more or less, to the intersection of Gold Crest Drive and the southeast corner of property now or formerly owned by Sue S. Franklin (101B-C-016) including the whole right of way of Gold Crest Drive, thence proceeding along the eastern boundary line of Parcel 101B-C-016, a distance of 171 feet, more or less, to the intersection of the northeast corner of Parcel 101B-C-016 and a point on the southern line of property now or formerly owned by William and Erma West, et al. (092-045).; thence proceeding southeasterly along the southern boundary line of Parcel 092-045 to the intersection of Fairview Road and the southeast corner of Parcel 092-045; thence proceeding northeasterly along the right of way of Fairview Road, including the whole right of way of Fairview Road, to the intersection of Fairview Road and Hidden Harbor Road; thence proceeding northwesterly a distance of 1,291 feet, more or less, to the southeast corner of property now or formerly owned by Mark and Ira Radpour (092-050); thence proceeding northeasterly a distance of 493 feet, more or less, to a

point on the southern line of property now or formerly owned by William and Mary London (092-157); thence proceeding along the boundary line of Parcel 092-157 to the intersection of the north corner of Parcel 092-157 and the eastern line that is part of a parcel now or formerly owned by Randy Rawlston (092-057); thence proceeding northeasterly a distance of 135 feet, more or less, at the intersection of the southeast corner of property now or formerly owned by Randy Rawlston (092-058) and part of parcel now or formerly owned by William and Mary London (092-157); thence proceeding northeasterly a distance of 893 feet, more or less, to the intersection of the northeast corner of property now or formerly owned by William and Marty Hixson (092-061) and the southeast corner that is part of a parcel now or formerly owned by William and Marty Hixson (092-062); thence proceeding northeasterly a distance of 368 feet, more or less, to the northeast corner of property now or formerly owned by and Marty Hixson (092-062); thence proceeding along the northern boundary of Parcel 092-062 to the eastern boundary of the Hixson Pike right of way; thence proceeding southwesterly along the eastern boundary of the Hixson Pike right of way**,** a distance of 4,395 feet, more or less, to the point of beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels listed below and as shown on the attached map for Annexation Area 4B.

092-042.01	092-042	101-005.02
101-007	101-010	101-011
101-016.01	101-016	101-012
101-011.03	101-011.04	101-054
101-054.01	101-009.01	101-055
101-009	101B-C-016	092-043
092-044	092-045	092-050
092-157	092-062	092-061
092-059.01	092-058	092-056
092-055.02	092-055	092-055.01
092-052.01	092-048	092-047
092-046	092-057 (part)	

ANNEXATION ORD. NO. 12513
ENACTED JUNE 7, 2011

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, which includes certain properties adjacent to the western right-of-way of Highway 58 and Turkeyfoot Road known as Area 6A, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the current boundary of the City of Chattanooga along the right-of-way for Highway 58 and the southeastern corner of property now or formerly

owned by Cornerstone Auto Brokers LLC (120E-A-006); thence proceeding northward a distance of 362 feet, more or less, following the property line of Cornerstone Auto Brokers LLC (120E-A-006) to the northeastern corner of property now or formerly owned by SunTrust Bank Trustee (120E-A-006.01); thence proceeding westward a distance of 544 feet, more or less, following the property line of SunTrust Bank Trustee to the northwestern corner of property now or formerly owned by SunTrust Bank Trustee (120E-A-007); thence proceeding southwesterly a distance of 137 feet, more or less, to the northwestern corner of property now or formerly owned by SunTrust Bank Trustee (120E-A-009); thence proceeding southwesterly a distance of 100 feet, more or less, to the northeastern corner of property now or formerly owned by Spanish Villa LLC (120E-A-011.01); thence proceeding northwesterly a distance of 47 feet, more or less, to the northeastern corner of property now or formerly owned by Spanish Villa LLC (120E-A-011); thence proceeding northwesterly a distance of 354 feet, more or less, to the northeastern corner of property now or formerly owned by Bernice Gay and Dorothy Jones (120E-A-012); thence proceeding northwesterly a distance of 394 feet, more or less, to the northeastern corner of property now or formerly owned by Charles McKenzie (120E-A-013); thence proceeding a distance of 1,816 feet, more or less, following the property line of Charles McKenzie (120E-A-013) to the northwestern corner of property now or formerly owned by Mary Lewis (120E-A-014); thence proceeding southwesterly a distance of 240 feet, more or less, to the northeastern corner of property now or formerly owned by Annie Armour (120E-A-013.02); thence proceeding a distance of 746 feet, more or less, following the property line of Annie Armour (120E-A-013.02) to the southeastern corner of property now or formerly owned by Annie Armour (120E-A-013.02) and the right-of-way of Highway 58; thence proceeding northeasterly a distance of 2,878 feet, more or less, along the Highway 58 right-of-way which is the current City of Chattanooga boundary to the point of beginning. Included in this annexation are all tax parcel numbers and road right of ways on the accompanying attached map for Annexation Zone 6 A. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

ANNEXATION ORD. NO. 12514
ENACTED JUNE 7, 2011

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain properties adjacent to the western right-of-way of Highway 58 and adjacent to the right-of-way for Hickory Valley Road known as Area 6B, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the current boundary of the City of Chattanooga along the right-of-way for Highway 58 and the southeastern corner of property now or formerly owned by Avondale Baptist Church TRS (120E-B-019); thence proceeding a distance of 4,744 feet, more or less, following the property line of Avondale Baptist Church TRS to the intersection of a point on the southern line of property now or formerly owned

by Avondale Baptist Church TRS (120E-B-019) and the northeastern corner of property now or formerly owned by B & R Development Company (120E-B-002.07); thence proceeding southwesterly a distance of 234 feet, more or less, to the northeastern corner of property now or formerly owned by B & R Development Company (120E-B-002.06); thence proceeding southwesterly a distance of 1,316 feet, more or less, to the intersection of the northwestern corner of property now or formerly owned by B & R Development Company (120E-B-002.06) and the eastern line of property now or formerly owned by MAPCO Express Incorporated (120E-B-001); thence proceeding a distance of 570 feet, more or less, following the property line of MAPCO Express Incorporated (120E-B-001) to the southwestern corner of property now or formerly owned by MAPCO Express Incorporated (120E-B-001) along the Highway 58 right-of-way and the current boundary of the City of Chattanooga near the intersection with Hickory Valley Road; thence proceeding northeasterly a distance of 2,358 feet, more or less, along the right-of-way of Highway 58 and the current boundary of the City of Chattanooga, to the point of beginning. Included in this annexation are all tax parcel numbers and road right of ways on the accompanying attached map for Annexation Zone 6 B. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

ANNEXATION ORD. NO. 12515
ENACTED JUNE 7, 2011

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, which includes certain properties adjacent to the eastern and western right-of-ways of Highway 58 up to its intersection with Harrison-Ooltewah Road, including portions of other streets named Bent Pine, Congress, Deerwood, Mahlon, Clark, Church, Tyner, and Easter known as Area 6C, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the current City of Chattanooga boundary which is the US Highway 58 right-of-way and the northwestern corner of property now or formerly owned by the City of Chattanooga c/o Electric Power Board (121 004); thence proceeding southward a distance of 392 feet, more or less, along the current City of Chattanooga boundary to southwestern corner of property now or formerly owned by Central High and Brown Middle Schools c/o HCDE (121-003); thence proceeding a distance of 4,102 feet, more or less, following the property line of Central High and Brown Middle Schools c/o HCDE (121-003) to the southeastern corner of property now or formerly owned by New Harrison Memorial Cemetery (121-002); thence proceeding northeasterly a distance of 357 feet, more or less, to the southeastern corner of property now or formerly owned by Steven Walls (121C-F-020); thence proceeding northward a distance of 105 feet, more or less, to the intersection of the southeastern corner of property now or formerly owned by Terry and Martha Wall (121C-F-021) and Bent Drive right-of-way; thence proceeding eastward a distance of 50 feet, more or less, across Bent Drive right-of-way to the southwestern corner of property now or formerly owned by Huberto Siniard (121C-F-001.02); thence proceeding eastward a

distance of 308 feet, more or less, to the intersection of the southeastern corner of property now or formerly owned by Huberto Siniard (121C-F-001.02) and a point on the western line of property now or formerly owned by Huberto Siniard (121-005.02); thence proceeding a distance of 1,214 feet, more or less, following the property line of Huberto Siniard (121-005.02) to the intersection of a point on the eastern line of property now or formerly owned by Huberto Siniard (121-005.02) and the Congress Lane right-of-way; thence proceeding eastward a distance of 50 feet, more or less, across the Congress Lane right-of-way to the southwestern corner of property now or formerly owned by TRC Watersports Center LLC (121C-A-010.01); thence proceeding eastward a distance of 390 feet, more or less, following the property line to the southwestern corner of property now or formerly owned by First Tennessee Bank National Association (121C-D-001.01); thence proceeding northeasterly a distance of 252 feet, more or less, to the southwestern corner of property now or formerly owned by Kenneth and Peggy Webb (121C-D-001.02); thence proceeding northeasterly a distance of 248 feet, more or less, to the southwestern corner of property now or formerly owned by Dollar General Corporation Incorporated (121C-D-001); thence proceeding northeasterly a distance of 154 feet, more or less, to the southwestern corner of property now or formerly owned by Kanji Holdings LLC (112N-C-001.03); thence proceeding northeasterly a distance of 439 feet, more or less, continuing across the intersection of the Deerwood Drive right-of-way to the eastern corner of property now or formerly owned by Terry and Martha Wall (112-012.04); thence proceeding a distance of 1,613 feet, more or less, following the property line of Terry and Martha Wall (112-012.04) to the intersection of the northeastern corner of property now or formerly owned by Terry and Martha Wall (112-012.04) and a point on the southern line of property now or formerly owned by Waymon and Mildred Farrar (112-012); thence proceeding northward a distance of 1,114 feet, more or less, to the intersection of the northeastern corner of property now or formerly owned by Waymon and Mildred Farrar (112-012) and a point on the southern line of property now or formerly owned by Bayside Baptist Church (112-013); thence proceeding a distance of 1,831 feet, more or less, following the property line of Bayside Baptist Church (112-013) to the intersection of the northwestern corner of property now or formerly owned by Bayside Baptist Church (112-013) and a point on the eastern line of property now or formerly owned by Bayside Baptist Church (112M-B-015.02); thence proceeding northeasterly a distance of 160 feet, more or less, to the southeastern corner of property now or formerly owned by Bayside Baptist Church (112M-B-015); thence proceeding northeasterly a distance of 145 feet, more or less, to the southeastern corner of property now or formerly owned by MAPCO Express Incorporated (112M-B-015.01); thence proceeding northward a distance of 251 feet, more or less, to the southeastern corner of property now or formerly owned by Evelyn Kuberg (112M-A-022); thence proceeding northward a distance of 208 feet, more or less, to the southeastern corner of property now or formerly owned by Rayford and Becky Carter (112M-A-023.01); thence proceeding northward a distance of 68 feet, more or less, to the southeastern corner of property now or formerly owned by C & W Rentals (112M-A-023.02); thence proceeding northward a distance of 93 feet, more or less, to the southeastern corner of property now or formerly owned by C & W Rentals (112M-A-023); thence proceeding northward a distance of 766 feet, more or less, to the intersection of the said northwestern corner of property now or formerly owned by C & W Rentals (112M-A-023) and a point on the eastern line of property now or formerly owned by South Central Bell Telephone Company (112M-A-024); thence proceeding northward a distance of 184 feet, more or less, to the intersection of the northeastern corner of

property now or formerly owned by South Central Bell Telephone Company (112M-A-024) and a point on the southern line of property now or formerly owned by Helen and Ann Hinson c/o Ralph Dill (112M-A-028); thence proceeding a distance of 640 feet, more or less, following the property line of Helen and Ann Hinson c/o Ralph Dill (112M-A-028) to the southeastern corner of property now or formerly owned by Brent and Natasha Davidson (112M-A-030.04); thence proceeding northward a distance of 67 feet, more or less, to the southeastern corner of property now or formerly owned by William Fryar (112M-A-030.05); thence proceeding northward a distance of 80 feet, more or less, to the southeastern corner of property now or formerly owned by Adam and Stephanie Rosenthal (112M-A-030); thence proceeding northward a distance of 148 feet, more or less, to the southeastern corner of property now or formerly owned by James Snowden (112M-A-030.01); thence proceeding northwesterly a distance of 110 feet, more or less, to the intersection of a point on the eastern line of property now or formerly owned by James Snowden (112M-A-030.01) and the southwestern corner of property now or formerly owned by William Fryar (112M-A-030.02); thence proceeding a distance 267 feet, more or less, following the property line of William Fryar (112M-A-030.02) to the southeastern corner of a part of parcel now or formerly owned by United States of America TVA (112-003); thence proceeding northward a distance of 333 feet, more or less, to the intersection of the northwestern corner of a part of parcel now or formerly owned by United States of America TVA (112-003) and the Highway 58 right-of-way; thence proceeding a distance of 446 feet, more or less, following the Highway 58 right-of-way, including the entire right-of-way of Highway 58, to the intersection of the Highway 58 right-of-way and the northeastern corner of property now or formerly owned by David Barrow (112-004.07); thence proceeding a distance of 543 feet, more or less, following the property line of David Barrow (112-004.07) to the northwestern corner of property now or formerly owned by David Barrow (112-004.08); thence proceeding a distance of 374 feet, more or less, following the property line of David Barrow (112-004.08) to the intersection of the Highway 58 right-of-way and the northeastern corner of property now or formerly owned by Bauling Schmitt LLC (112-004.01); thence proceeding eastward a distance of 379 feet, more or less, to the intersection of the southwestern corner of property now or formerly owned by Bauling Schmitt LLC (112-004.01) and the northwestern corner of property now or formerly owned by RI TN 2 LLC c/o Realty Income Corporation (112-005.01); thence proceeding a distance of 2,077 feet, more or less, following the property line of RI TN 2 LLC c/o Realty Income Corporation (112-005.01) to the northwestern corner of property now or formerly owned by Double James Properties LLC (112-006); thence proceeding southwesterly a distance of 564 feet, more or less, to the said northwestern corner of a part of parcel now or formerly owned by Title Guar c/o R. P. Scott (112-011); thence proceeding a distance of 1,351 feet, more or less, following the property line of Title Guar c/o R. P. Scott (112-011) to the intersection of the Highway 58 right-of-way at Harvest Run Drive and the northeastern corner of a part of parcel now or formerly owned by Title Guar c/o R. P. Scott (112-011); thence proceeding 50 feet, more or less, following the right-of-way of Highway 58 to the northeast corner of property now or formerly owned by Title Guar c/o R.P. Scott on the south side of Harvest Run Drive; thence proceeding a distance of 1,178 feet, more or less, following the property line of Title Guar c/o R.P. Scott (112-011) to the northwestern corner of property now or formerly owned by GVH Highway 58 Associates (112N-A-001); thence proceeding southward a distance of 1,877 feet, more or less, following the property line to the northern line of the Highway 58 right-of-way and continuing to the intersection of the Holder Road right-of-way and the northeastern corner of property

now or formerly owned by Martin and Cheryl McNabb (112N-A-003); thence proceeding a distance of 840 feet, more or less, following the property line of Martin and Cheryl McNabb (112N-A-003) to the intersection of the Staton Road right-of-way and continuing along the northern line of the Highway 58 right-of-way to the southeastern corner of property now or formerly owned by Ronnie Nichols (112O-J-013); thence proceeding a distance of 754 feet, more or less, following the property line of Ronnie Nichols (112O-J-013) to the northeastern corner of property now or formerly owned by Spector Enterprises Incorporated (112O-J-014); thence proceeding a distance of 564 feet, more or less, following the property line of Spector Enterprises Incorporated (112O-J-014) to the intersection of a point on the southern line of property now or formerly owned by Spector Enterprises Incorporated (112O-J-014) and the Highway 58 right-of-way; thence proceeding southwesterly a distance of 80 feet, more or less, along the northern line of the Highway 58 right-of-way to a point on the southern line of property now or formerly owned by Louise Spector (121B-C-007); thence proceeding a distance of 1,163 feet, more or less, following the property line of Louise Spector (121B-C-007) to the intersection of the northwestern corner of property now or formerly owned by Louise Spector (121B-C-007) and a point on the northern line of property now or formerly owned by Harrison Baptist Church (121B-C-008); thence proceeding northwesterly a distance of 145 feet, more or less, to the intersection of the northwestern corner of property now or formerly owned by Harrison Baptist Church (121B-C-008) and the Hillcrest Drive right-of-way; thence proceeding a distance of 1,881 feet, more or less, along the Hillcrest Drive right-of-way, including the entire right-of-way of Hillcrest Drive and continuing westward on the Church Road right-of-way and the Easter Drive right-of-way, including the entire right-of-ways of Church Road and Easter Drive, to the intersection of the Easter drive right-of-way and the northwestern corner of property now or formerly owned by Harrison Methodist Church (121B-A-007); thence proceeding southward a distance of 1,983 feet, more or less, following the property line of Harrison Methodist Church (121B-A-007) to the intersection of the current City of Chattanooga boundary, a point on the northern right-of-way of Highway 58, and the eastern corner of property now or formerly owned by Carroll and Shirley Martin (121B-A-008.01); thence proceeding northwesterly a distance of 208 feet, more or less, to the northeastern corner of property now or formerly owned by SunTrust Bank TR (121B-A-008.02); thence proceeding southwesterly a distance of 127 feet, more or less, to the intersection of the northwestern corner of property now or formerly owned by SunTrust Bank TR (121B-A-008.02) and the Clark Road right-of-way; thence proceeding southwesterly a distance of 50 feet, more or less, across Clark Road right to the intersection of the northeastern corner of property now or formerly owned by Northwest Georgia Bank (121A-E-006) and the eastern corner of property now or formerly owned by Reba Wilson Revocable Living Trust (121A-E-005); thence proceeding a distance of 2,084 feet, more or less, following the property line of Reba Wilson Revocable Living Trust (121A-E-005) to the intersection of the southwestern corner of property now or formerly owned by Reba Wilson Revocable Living Trust (121A-E-005) and a point on the northern right-of-way of Highway 58; thence proceeding easterly a distance of 2,390 feet, more or less, following the northern boundary of the Highway 58 right-of-way which is the current boundary of the City of Chattanooga and crossing to a point on the southern boundary of Highway 58 and its intersection at the northwest corner of property now or formerly owned by City of Chattanooga c/o Electric Power Board (121 004), which is the point of beginning. Included in this annexation are all tax parcel numbers and road right-of-ways on the accompanying attached map for Annexation Zone 6 C. All of this

property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

ANNEXATION ORD. NO. 12297
ENACTED OCTOBER 6, 2009

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to Interstate 75 and Relocation Way known as Area 8B within the Urban Growth Boundary of the City of Chattanooga, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning in the present city limit boundary at the intersection of property now or formerly owned by William and Myrtle Hulsey (132-014) and the southeast corner of property now or formerly owned by Leasing XII LLC (132-002.04); thence proceeding northwesterly a distance of 950 feet, more or less, along the current boundary of the City of Chattanooga to the western corner of property now or formerly owned by Leasing XII LLC (132-002.04); thence proceeding northeasterly a distance of 1,730 feet, more or less, along the Interstate 75 right of way to the intersection of the northwest corner of property now or formerly owned by Leasing XII LLC (132 -002.04) and the southwest corner of property now or formerly owned by Ooltewah United Methodist Church (132-004.01); thence proceeding southeasterly a distance of 615 feet, more or less, to the intersection of the northeast corner of property now or formerly owned by Leasing XII LLC (132 -002.04) and the southeast corner of property now or formerly owned by Ooltewah United Methodist Church (132-004.01); thence proceeding southwesterly a distance of 813 feet, more or less, to the point of beginning. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. Included in this annexation is the tax parcel 132-002.04 as shown on the accompanying attached map for Annexation Zone 8B.

ANNEXATION ORD. NO. 12298
ENACTED OCTOBER 6, 2009

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to the Enterprise South Property and the right-of-way of Interstate 75 known as Area 9A within the Urban Growth Boundary of the City of Chattanooga, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the current boundary of the City of Chattanooga at the northeast corner of property now or formerly owned by Melinda Harbour (131-099.02); and the

southwestern boundary of property now or formerly owned by David Lynch (131-044); thence proceeding southwesterly a distance of 535 feet, more or less, along the current boundary of the City of Chattanooga to the southeast corner of property now or formerly owned by Melinda Harbour (131-099.02) and the northern line of Interstate 75 right of way; thence proceeding south-westerly a distance of 9,257 feet, more or less, along the northern line of the Interstate 75 right of way to the southeast corner of property now or formerly owned by Cherokee Area Council 556 The Boy Scouts of America (130-003); thence proceeding south- westerly a distance of 2,041 feet, more or less, along the northern line of the Interstate 75 right of way and the current boundary of the City of Chattanooga to the southwest corner of property now or formerly owned by Cherokee Area Council 556 The Boy Scouts of America (130-003); thence proceeding northeasterly a distance of 880 feet, more or less, along the current boundary of the City of Chattanooga to the northwest corner of property now or formerly owned by Cherokee Area Council 556 The Boy Scouts of America (130-003); thence proceeding northeasterly a distance of 10,920 feet, more or less, to the point of beginning. Included in this annexation are tax parcels 130-003 and 131-099.02 as shown on the accompanying attached map for Annexation Zone 9A. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

ANNEXATION ORD. NO. 12543
ENACTED SEPTEMBER 13, 2011

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to Old Lee Highway and Apison Pike known as Area 9B within the Urban Growth Boundary of the City of Chattanooga, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning in the present city limit boundary at a point directly across the road from the northeast corner of property now or formerly owned by De Williams (131-023); thence proceeding south-easterly a distance of 50 feet, more or less, across the Old Cleveland Pike right of way to the northeast corner of property now or formerly owned by De Williams (131-023); thence proceeding South 32 degrees East a distance of 46.6 feet, more or less, to the east corner of property now or formerly owned by De Williams (131-023); thence proceeding South 22 degrees West a distance 257 feet, more or less, to the northeast corner of property now or formerly owned by Choo Choo Homes Incorporated (131-003.01); thence proceeding South 23 degrees West a distance of 1,071 feet, more or less, to the east corner of property now or formerly owned by Choo Choo Homes Incorporated (131-003.01); thence proceeding South 12 degrees East a distance of 119 feet, more or less, to the intersection of the southeast corner of property now or formerly owned by Choo Choo Homes Incorporated (131-003.01) and Lee Highway right of way; thence proceeding south-easterly a distance of 75 feet, more or less, to a point directly across the Lee Highway right of way from the southeast corner of property now or formerly owned by Choo Choo Homes Incorporated (131-003.01);

thence proceeding south-westerly a distance of 170 feet, more or less, along the southern line of Lee Highway right of way to the northeast corner of property now or formerly owned by Rhonda Neely (131O-B-001); thence proceeding south-westerly a distance of 765 feet, more or less, along the City of Collegedale right of way to the southern corner of property now or formerly owned by James Ransom (131O-B-004); thence proceeding north-westerly a distance of 485 feet, more or less, along the City of Collegedale right of way to northeast corner of property now or formerly owned by Eddie and Mary Osborne (131O-B-005); thence proceeding southwardly a distance of 815 feet, more or less, along the City of Collegedale right of way to the northeast corner of property now or formerly owned by Woodard Development Company (131O-B-020); thence proceeding south-westerly a distance of 625 feet, more or less, along the City of Collegedale right of way to the southeast corner of property now or formerly owned by Woodard Development Company (131O-B-020); thence proceeding north-westerly a distance of 170 feet, more or less, along the city of Collegedale right of way to the northeast corner of property now or formerly owned by Woodward Development Company (131O-B-019); thence proceeding southwardly a distance of 90 feet, more or less, to the southeast corner of property now or formerly owned by Woodward Development Company (131O-B-019) and the Apison Pike right of way; thence proceeding westwardly a distance of 3,703 feet, more or less, along the northern line of the Apison Pike right of way and the Old Lee Highway right of way to the southwest corner of property now or formerly owned by Indian Pentecostal Church of God (131P-A-001); thence proceeding northwardly a distance of 265 feet more or less to the northwest corner of property now or formerly owned by Indian Pentecostal Church of God (131P-A-001); thence proceeding north-easterly a distance 5,900 feet, more or less, along the southern line of Interstate 75 right of way and the northern line of Old Cleveland Pike right of way to the point of beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels listed below and as shown on the attached map for Annexation Area 9B.

131O B 008	131P B 007.03	131O B 019	131O A 025
131O A 012	131P B 004	131O B 002	131O A 026
131O B 011.02	131P B 019	131O A 010	131O A 004
131P B 020	131O A 002	131 002	131O A 018
131P C 002	131O B 009	131 026	131O A 017
131O A 027	131O B 005	131 003.01	131P C 008.02
131O A 007	131P B 009	131 001	131O A 014
131O B 016	131P C 001	131 025	131O B 020
131O B 003	131O A 001	131 024	131O A 003
131O B 018	131O B 017	131O A 019	131O B 015
131P B 006	131P B 017	131O A 010.01	131O B 001
131P B 008	131P C 003	131O B 013.01	131O A 023
131P C 007	131P B 018	131O A 006	131O A 020
131O B 011.04	131O B 007	131O B 006.01	131O B 011.03
131O A 009	131O B 012	131 023	

131O A 005	131O A 011	131P A 001
131O A 008	131O B 014	131P B 003
131O B 011	131O A 013	131P B 015
131O A 015	131P C 011	131P B 016
131O A 028	131P B 008.01	131P B 012
131O B 004	131 003	131P B 014
131O A 009.01	131P B 007.02	131P C 008
131O A 004.01	131P C 009	131P B 013
131O B 006	131P B 002	
131O A 024	131P B 001	

ANNEXATION ORD. NO. 12451
ENACTED NOVEMBER 30, 2010

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to Old Lee Highway, Green Shanty Road, Rexway Lane, Ranco Circle, and Maywater Road known as Area 10A, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the current boundary of the City of Chattanooga at the northeast corner of property now or formerly owned by A C Development (139D-A-001) and the southern line of the Old Lee Highway right of way; thence following the boundary of property now or formerly owned by A C Development (139D-A-001) southward a distance of 534 feet, more or less, along the current City of Chattanooga boundary to the southeastern corner of property now or formerly owned by A C Development (139D-A-001); thence proceeding westward a distance of 1,770 feet, more or less, to the intersection of the southwestern corner of property now or formerly owned by James and Pearlene Smith (139-040.07) and the eastern line of property now or formerly owned by Diana Peterson (139-041.02) [excluding property now formerly-owned by Bobby Joe and Louise Lynn Johnson, Tax Parcel No. 139-046]; thence proceeding southward a distance of 234 feet, more or less, to the southeastern corner of property now or formerly owned by Diana Peterson (139-041.01); thence proceeding northward a distance of 302 feet, more or less, following the boundary of property now or formerly owned by Diana Peterson (139-041.01) to the northwestern corner of property now or formerly owned by Diana Peterson (139-041.01) and the southern line of Old Lee Highway; thence proceeding eastward a distance of 2,125 feet, more or less, along the southern line of Old Lee Highway right of way to the point of beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels listed below and as shown on the attached map for Annexation Area 10A, with the exception of Parcel 139 046 which is deleted from this revised annexation area pursuant to this revised description.

139 041.01
139 045
139 047.04
139 047
139 041.02
139 040.07
139D A 001

ANNEXATION ORD. NO. 12452
ENACTED NOVEMBER 30, 2010

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to Old Lee Highway, Apison Pike, Pattentown Road and Woodland Drive, known as Area 10B, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the current boundary of the City of Chattanooga on the southern right of way of Old Lee Highway and the northwest corner of property now or formerly owned by A C Development, Inc. (131P-A-015); thence continuing along the southern right of way boundary of Old Lee Highway and Apison Pike, a distance of 4,164 feet, more or less, [(excluding approximately 99 Feet of frontage on Apison Pike and the parcel currently owned by Napoleon Custer, et al, tax map parcel 140A-A-025) as described more fully in Book 6045 Page 37 in the Register's Office of Hamilton County, Tennessee,] to the intersection of Pattentown Road and Apison Pike, across from the northeast corner of property now or formerly owned by Pearline and Owen Jones (140A-A-027)]; thence proceeding southeasterly a distance of 550 feet, more or less, along the eastern right of way of Pattentown Road and following the eastern right of way of Pattentown Road southward to the northwest corner of property now or formerly owned by Wilzie Gandy (140-158); thence proceeding southeasterly and continuing to follow the property line of Wilzie Gandy (140-158) along the City of Collegedale's UGB and southwesterly to the south west corner back to the eastern boundary of Pattentown Road; thence southwesterly following the eastern boundary of Pattentown Road to the northeast corner of property now or formerly owned by Theodore McGhee, Jr. (140-157); thence proceeding eastward along the northern boundaries of parcels 140-157, 140-157.03, 140-156 and along the northern boundary of parcel 140-155 a distance of 1745 feet, more or less, along the City of Collegedale's UGB to the northeast corner of property now or formerly owned by Vita Wilkins (140-155); thence proceeding generally southward to the intersection of Sanders Road and the southeast corner of property now or formerly owned by Vita Wilkins (140-155); thence proceeding northwesterly along the southern right of way line of Sanders Road, including the whole right of way, to the intersection of Sanders Road and Woodland Drive; thence proceeding northwesterly along the southern right of way of Woodland Drive, including the whole right of way, to the southwest corner of Parcel 140-157.03; thence proceeding northeasterly along the western boundary line of Parcel 140-157.03, a distance of 32 feet, more or less; thence proceeding generally westward across Pattentown Road to the southeast property line of property now or formerly owned by

Peggy Sanders (140-013); thence proceeding generally westward along the southern boundary of Parcel 140-013 to the southwest corner of Parcel 140-013; thence proceeding northeasterly to the southeast corner of property now or formerly owned by Adamson Developers LLC (140-011)**;** thence proceeding a distance of 2,115 feet, more or less, following the property line of Adamson Developers LLC (140-011); thence proceeding northeasterly, a distance of 650 feet, more or less, to the southeast corner of property now or formerly owned by Vicki Rosen (140-009); thence proceeding westward a distance of 385 feet, more or less, to the southeast corner of property now or formerly owned by Wilzie Gandy (140-008); thence proceeding westward a distance of 106 feet, more or less, to the southwest corner of property now or formerly owned by Henry Henderson (140-007); thence proceeding northwesterly a distance of 170 feet, more or less, to the southeast corner of property now or formerly owned by Henry Henderson (140-007.01); thence proceeding northwesterly a distance of 126 feet, more or less, to the southeast corner of property now or formerly owned by Geoffrey Ramsey (140-001.01); thence proceeding northwesterly a distance of 496 feet, more or less, to the southeast corner of property now or formerly owned by Geoffrey Ramsey (140-001); thence proceeding northwesterly a distance of 355 feet, more or less, to the southeast corner of property now or formerly owned by William Spurgeon (131P-A-032); thence proceeding northwesterly a distance of 170 feet, more or less, to the southwest corner of property now or formerly owned by William Spurgeon (131P-A-032) and crossing the Blue Bell Avenue right of way and following the southern boundary of property owned by A C Development Incorporated (131P-A-018); to the southeast corner of property now or formerly owned by A C Development Incorporated (131P-A-018); thence proceeding westward a distance of 160 feet, more or less, to the current boundary of the City of Chattanooga; thence proceeding northward a distance of 523 feet, more or less, along the current boundary of the City of Chattanooga to the point of beginning. Included in this annexation are all tax parcel numbers and road right of ways on the accompanying attached map for Annexation Zone 10B which excludes one (1) tax parcel owned by Napoleon Custer (140A-A-025) and one (1) tax parcel owned by James Atkins and wife Patricia Atkins (140-158.01) previously included in Ordinance No. 12301. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between municipalities within Hamilton County effective May 23, 2001. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

131P-A-016	140A-A-010
131P-A-015	140A-A-009
131P-A-017	140A-A-008
131P-A-018	140A-A-013
131P-A-036	140A-A-013.01
131P-A-035	140A-A-023
131P-A-033	140A-A-014
131P-A-034	140A-A-007
131P-A-032	140A-A-015
131P-A-037	140A-A-016
131P-A-038	140A-A-019
140-001	140A-A-021

140-001.01
140-002.02
140-002.01
140-007.01
140-007
140-008
140-009
140-011
140-011.10
140A-A-001
140A-A-002
140A-A-003
140A-A-005
140A-A-005.01
140A-A-004
140A-A-006
140A-A-017
140A-A-018
140A-A-033
140-012.02
140-013
140-157.01
140-157.02
140-156
140-155
140-158
140-159
140A-A-028
140A-A-027
140A-A-026
140A-A-026.01
140A-A-024
140A-A-012
140A-A-011
140A-A-011.01
140A-A-022.01
140A-A-022
140A-A-020
140A-A-029
140A-A-030
140A-A-031
140A-A-032.01
140A-A-032
140A-A-034
140A-A-032.02
140A-A-035
140-012
140-012.01
140-157
140-157.03

ANNEXATION ORD. NO. 12556
ENACTED JANUARY 17, 2012

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said

City, certain parcels adjacent to Interstate 75 and Hunter Road, known as Area 8A, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at the present city limit boundary a point along the northern line of Interstate 75 right of way and 70 feet southeast, more or less, from property now or formerly owned by The Krystal Company (131-074.03); thence proceeding south-westerly a distance of 3,450 feet, more or less, along the northern line of Interstate 75, Hunter Road, and Hilltop Drive right of ways to the southwest corner of property now or formerly owned by MCC Outdoor LLC (131-042.03); thence proceeding north-westerly a distance of 186 feet, more or less, to a point southeast of the southwest corner of property now or formerly owned by Amon and Doris York (131-041); thence proceeding north-westerly a distance of 650 feet, more or less, along the City of Chattanooga right of way to the southwest corner of property now or formerly owned by Amon and Doris York (131-055) along the northern right of Ooltewah Harrison Road; thence proceeding North 23 degrees East a distance of 910 feet, more or less, to a point directly across from the northwest corner of property now or formerly owned by Amon and Doris York (131-055); thence proceeding easterly a distance of 875 feet, more or less, along the northern right of way of the Ooltewah-Harrison Road right to a point directly across the road from the northern corner of property now or formerly owned by Mary and Richard Burton (131-063)at the intersection of Hunter Road and Ooltewah Harrison Road; thence proceeding easterly a distance of 50 feet, more or less, across the Hunter Road right of way to a point on the western line of property now or formerly owned by Michael Carter (131-074.01)on the eastern right of way of Hunter Road; thence proceeding north-westerly a distance of 100 feet, more or less, along the eastern line of Hunter Road right of way to the northwest corner of property now or formerly owned by Michael Carter (131-074.01); thence proceeding South 86 degrees East a distance of 1,470 feet, more or less, to the northwest corner of property now or formerly owned by Larry Armour (131-074); thence proceeding south-easterly a distance of 415 feet, more or less, to the northeast corner of property now or formerly owned by Larry Armour (131-074); thence proceeding south-easterly a distance of 463 feet, more or less, across Hunter Road right of way to the west corner of property now or formerly owned by The Krystal Company (131-074.03); thence proceeding south-easterly a distance of 280 feet, more or less, to the point of beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels listed below and as shown on the attached map for Annexation Area 8A.

131 063	131 056.01
131 061.01	131 063.01
131 061.02	131 034.01
131 061	131 035
131 041	131 062
131 040	131 034
131 056	131 036.01

131 055	131 036
131 038	131 037
131 039	131 074
131 060	
131 074.01	
131 042.03	

ANNEXATION ORD. NO. 12557
ENACTED JANUARY 17, 2012

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to the current city limits of Morris Hill Road, East Brainerd Road, and Igou Gap Road, known as Area 11A, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning in the current city limit boundary on Morris Hill Road in the northwest corner of property now or formerly owned by Steven Burroughs (159D-B-023); thence proceeding southeasterly a distance of 425 feet, more or less, to the northwest corner of property now or formerly owned by Braithe Krause (159D-B-019.01); thence proceeding southeasterly a distance of 770 feet, more or less, to the northwest corner of property now or formerly owned by Jerry and Carolyn Holsomback (159D-C-019); thence proceeding southwardly a distance of 2,980 feet, more or less, along the eastern boundary of said Holsomback property to the northeast corner of property now or formerly owned by Jerry and Carolyn Holsomback (159D-C-019.01); thence proceeding southwardly a distance of 612 feet, more or less, to the east corner of property now or formerly owned by Jerry and Carolyn Holsomback (159D-C-019); thence proceeding southwesterly 185 feet, more or less, to a point directly across from the intersection of Igou Gap Road right of way and the south corner of property now or formerly owned by Jerry and Carolyn Holsomback (159D-C-019); thence proceeding northwesterly a distance of 155 feet, more or less, along the southern line of Igou Gap Road right of way to the northeast corner of property now or formerly owned by John and Jill Pratt (159E-A-006); thence proceeding southwesterly a distance of 207 feet, more or less, to the northeast corner of property now or formerly owned by John and Jill Pratt (159E-A-001); thence proceeding southwesterly a distance of 440 feet, more or less, to the northeast corner of property now or formerly owned by John and Jill Pratt (159K-D-021); thence proceeding southwesterly a distance of 500 feet, more or less, to the northeast corner of property now or formerly owned by John and Jill Pratt (159K-D-018); thence proceeding southwesterly a distance of 160 feet, more or less, to the northeast corner of property now or formerly owned by John and Jill Pratt (159K-D-014); thence proceeding southwesterly a distance of 480 feet, more or less, to the northeast corner of Lot 12 now or formerly owned by Arthur and Lisa Quarles (159K-F-026) Ellington Place Subdivision (Plat Book 59, page 207); thence proceeding South 24 degrees West a distance of 970 feet, more or less, at the intersection of Lot 24 now or formerly owned by Derrick and Janet Eaton (159K-F-014) Ellington Place Subdivision and Lot 29 now or formerly owned by David Bevilaqua (159N-C-015.05) Ray Jo Estates Subdivision (Plat Book 31, page 162); thence proceeding South

24 degrees West a distance of 732 feet, more or less, at the intersection of Lot 25 now or formerly owned by Joseph Bevilaqua (159N-C-015.02) Ray Jo Estates Subdivision and the northwest corner of property now or formerly owned by Tennessee American Water Company (159M-A-024.01); thence proceeding eastward a distance of 605 feet, more or less, to the northwest corner of property now or formerly owned by Doyle Chadwick (159M-A-025); thence proceeding southeasterly a distance of 70 feet, more or less, to the northwest corner of property now or formerly owned by Fred Edgmon (159M-B-001); thence proceeding southwesterly a distance of 732 feet, more or less, to the intersection of the northeast corner of property now or formerly owned by Fred Edgmon (159M-B-001) and the Banks Road right of way; thence proceeding southwesterly a distance of 300 feet, more or less, along the western line of the Banks Road right of way to the intersection of East Brainerd Road and the southern corner of property now or formerly owned by Fred Edgmon (159M-B-001); thence proceeding southwesterly a distance of 3,000 feet, more or less, along the right of way of East Brainerd Road including the whole right of way to the intersection of the southeastern corner of property now or formerly owned by John and Shelia Harvey (171C-B-005) and the current City of Chattanooga boundary; thence proceeding northwardly a distance of 365 feet, more or less, along the current City of Chattanooga boundary to the southwest corner of property now or formerly owned by Floyd & Martha Ratliff (171C-B-004); thence proceeding northeasterly a distance of 70 feet, more or less, along the current City of Chattanooga boundary to the west corner of property now or formerly owned by Lester & Elizabeth Sandidge (171C-B-003.02); thence proceeding northwardly a distance of 360 feet, more or less, along the current City of Chattanooga boundary to the northeast corner of property now or formerly owned by James Million (171C-B-017); thence proceeding southwesterly a distance of 930 feet, more or less, along the current City of Chattanooga boundary to the southeast corner of property now or formerly owned by John and Janice Gray (171C-B-010); thence proceeding westerly a distance of 500 feet, more or less, along the current City of Chattanooga boundary to the intersection of the southwest corner of property now or formerly owned by John and Janice Gray (171C-B-010) and the Morris Hill Road right of way; thence proceeding Northeasterly a distance of 2,170 feet, more or less, to the northeast corner of property now or formerly owned by William and Marcia Casteel (159N-C-002); thence proceeding southeasterly 1,275 feet, more or less, along the current City of Chattanooga boundary to the northwest corner of Lot 35 now or formerly owned by Harley and Clara Caylor (159M-B-005) Ryall Springs Subdivision (Plat Book 8, page 31); thence proceeding northeasterly a distance of 975 feet, more or less, along the current City of Chattanooga boundary to the intersection of west corner of property now or formerly owned by Doyal Chadwick (159M-A-025) and the southeast corner of property now or formerly owned by Tennessee American Water Company (159M-A-024.01); thence proceeding westerly a distance of 1,680 feet, more or less, along the current City of Chattanooga boundary to the southwest corner of said Lot 1 now or formerly owned by Gary and Brenda Matlock (159N-C-006) Ray Jo Estates Subdivision Unit One (Plat Book 25, page 11); thence proceeding northeasterly a distance of 6,740 feet, more or less, along the eastern line of Morris Hill Road right of way to the point of beginning. Included in this annexation are all tax parcels listed below and road right of ways as shown on the accompanying attached map for Annexation Zone 11A. References herein to Plat Books refers to the official records the Hamilton County Register of Deeds and references to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department.

159K D 005
159N C 015.08
159N C 015
159N C 015.10
159N C 015.03
159N C 015.04
159N C 015.09
159N C 015.02
159N C 015.01
159N C 015.11
159N C 015.07
159N C 015.05
159N C 015.06
159K D 017.03
159K D 019
159K D 017.04
171C B 003.01
171C B 003.02
171C B 003
159E D 019
159E D 026
159E D 033
159E D 011
159E D 016
159E D 030
159D A 002
159D B 015
159D B 010
159D A 012
159F C 002.01
159D B 007
159F C 003
159D A 005
159D B 011
159F C 002
159D B 006
159D B 005
159D A 003
159K F 021
159K F 013
159K F 014
159K F 027
171C B 002.03
159E D 031
159E D 009
159F C 001.08
159E D 028
159E D 037
159E D 002
159F C 001.03
159E D 036
159F C 001.07
159E D 038
159E D 039
159E D 022
159E D 024
159E D 009.01
159E D 017
159E D 035
159E D 034
159E D 013
159K D 019.01
159K D 017
159K D 019.02
159K D 017.02
159K C 002
159K C 006
159K D 004
159K D 001
159K D 003
159K D 002
159K C 003
159K D 009
171C B 002.02
159M B 002
159M B 006
159M B 008
159M B 004
159M B 002.01
159M B 010
159M B 007
159M B 003
171C B 002.01
171C B 002

159A C 024
159K F 011
159K F 020
159K F 015
159K F 023
159K F 024
159K F 025
159K F 016
159K F 022
159K F 030
159K F 026
159K F 018
159K F 012
159K F 029
159K F 028
159K F 017
159K F 019
159K D 006
159K D 007
159K D 008
159K C 004
159K C 005
159D B 016
159F C 002.05
159F C 002.04
159D B 008
159D A 013
159D B 004
159D A 004
159D B 001
159D A 015
159D B 013
159D B 012
159D A 014
159D A 006
159D B 009
159D B 014
159D A 016
159D B 017
159D A 007
159F C 002.03
159F C 004
159E D 012
159E D 015
159E D 007
159E D 020
159E D 023
159E D 014
159E D 008
159E D 005
159F C 001.04
159E D 001
159F C 001.02
159E D 025
159E D 021
159E D 010
159E D 004
159E D 032
159E D 029
159E D 003
159E D 006
159E D 027
159E D 018
159D A 011
159N C 004.02
159N C 001
159K D 021
159E A 002.02
159E A 005
159E A 003
159D B 019.02
159D C 019
159E A 004
159E A 002
159E A 005.01
159F C 001.09
159D B 019.01
159E A 001
159D B 021
159D B 020
159D C 019.01
159E A 002.01
159E A 006
159D B 019.19

159D B 003
159D A 009
159D A 010
159D B 002
159D B 018
171C B 001
171C B 022
159K E 006
159D B 022
159F C 002.06
159E A 002.03
159K D 013.02
159K D 012
159K D 018
159M A 024.01
159K D 017.05
159K D 020
159K D 013.01
159K D 011
159N C 003
159K D 014
159M B 001.03
159N C 004
159M B 001
159N C 004.01
159K F 003
159K F 007
159K C 014
159N C 013
159N C 019
159K C 013
159N C 017
159K C 009
159N C 007
159K C 008
159K C 011
159N C 010
159N C 009
159K C 012
159K C 007
159N C 014
159N C 012
171C B 010
171C B 023
171C B 004
171C B 021.02
171C B 023.01
171C B 011
171C B 005
171C B 018
171C B 021
171C B 020
171C B 002.04
159K E 005
159K E 004
159K F 004
159K E 002
159K F 010
159K F 009
159K E 003
159K F 005
159K F 002
159K E 007
159K F 008
159K F 001
159K E 001
159K F 006
159D B 019.12
159D B 019.18
159D B 019.14
159D B 019.03
159D B 019.10
159D B 019.06
159D B 019.08
159D B 019.13
159K D 017.01
159K D 016
171C B 014.02
171C B 014
171C B 014.01
159F C 002.02
159K C 001
159M B 005
159M B 009

159N C 020	159F C 001.01
159N C 008	159F C 001.06
159N C 006	159F C 001
159K C 010	159F C 001.05
159N C 016	159D A 001
159N C 018	159M A 025
159N C 011	159K D 010
159N C 021	159M B 001.04
159D B 019.11	159N C 002
159D B 019.17	159D B 023
159D B 019.15	171C B 016
159D B 019.16	171C B 017
159D B 019.07	171C B 019
159D B 019.05	171C B 012
159D B 019.04	171C B 021.01
159D B 019.09	171C B 013

ANNEXATION ORD. NO. 12596
ENACTED MAY 22, 2012

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to the current city limits of Hixson Pike and Middle Valley Road, known as Area 4A, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE FIRST CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at a point in the present city limit boundary on the eastern side of Hixson Pike and directly across the road from the southeast corner of property now or formerly owned by Burks United Methodist Church (092P-F-002); thence proceeding northwesterly a distance of 5,300 feet, more or less, along the current City of Chattanooga boundary to Middle Valley Road and the southwestern corner of property now or formerly owned by David Lewis (091-061.01); thence proceeding northeasterly a distance of 4,300 feet, more or less, along the eastern line of Middle Valley Road to the northeastern corner of property now or formerly owned by The Pantry Incorporated Tax Department (091-057); thence proceeding southeasterly a distance of 710 feet, more or less, to northwest corner of property now or formerly owned by Laurel Cove Home Association (092-008.01); thence proceeding southeasterly 1,476 feet, more or less, to the northeast corner of property now or formerly owned by Laurel Cove Home Association (092-008.01); thence proceeding southwesterly a distance of 355 feet, more or less, to the northern corner of property now or formerly owned by Richard Agnew (092-013.05); thence proceeding southward a distance of 435 feet, more or less, to the northwest corner of property now or formerly owned by Mary St Clair-Warner (092-013.03); thence proceeding southeasterly a distance of 190 feet, more or less, to the northern corner of property now or formerly owned by Mary St Clair-Warner (092-013.04); thence proceeding southeasterly a distance of 635 feet, more or less, to the northwest corner of property now or formerly owned by Wanda and James Weems

(092-015); thence proceeding northeasterly a distance of 1,120 feet, more or less, to the west corner of property now or formerly owned by Randy Rawlston (092-057); thence proceeding northeasterly a distance of 943 feet, more or less, to the northwest corner of property now or formerly owned by Wanda and James Weems (092-060); thence proceeding north-easterly a distance of 384 feet, more or less, to the southwest corner of property now or formerly owned by William and Marty Hixson (092-062); thence proceeding a distance of 3,755 feet, more or less, following the property line of William and Marty Hixson (092-062) to the intersection of the northeast corner of property now or formerly owned by William and Marty Hixson (092-062) and the Hixson Pike right of way; thence proceeding southwesterly a distance of 4,495 feet, more or less, along the Hixson Pike right of way including the whole right of way to the beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels shown on the attached list and as shown on the attached map for Annexation Area 4A.

ANNEXATION ORD. NO. 12597
ENACTED MAY 22, 2012

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, *et seq.*), that there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain parcels adjacent to the current city limits of Hixson Marina Road, Big Ridge Road, and Fairview Road, known as Area 4C, in Hamilton County, contiguous to the corporate boundaries of said City, which is more fully described as follows:

IN THE SECOND CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Beginning at the present city limit boundary on Hixson Marina Road a point in the southeast corner of property now or formerly owned by Robert Daughtrey (101G-A-058); thence proceeding northwesterly a distance of 4,216 feet, more or less, along the right of way of Big Ridge Road to the northwest corner of property now or formerly owned by Robert and Cathy Messler (101-050); thence proceeding southeasterly a distance of 250 feet, more or less, to the northeast corner of property now or formerly owned by Robert and Cathy Messler (101-050) and the Fairview Road right of way; thence proceeding northeasterly a distance of 700 feet, more or less, to the northwest corner of property now or formerly owned by Melvin and Mabel Harvey (101-052); thence proceeding southeasterly a distance of 2,662 feet, more or less, to the west corner of property now or formerly owned by Richie Rolston (101G-A-061); thence proceeding southeasterly at a distance of 650 feet, more or less, to the west corner of property now or formerly owned by Rebecca Rolston-Miller (101G-A-060); thence proceeding easterly a distance of 522 feet, more or less, to the northwest corner of property now or formerly owned by Dana and Julie Harding (101G-A-059.01); thence proceeding southeasterly a distance of 160 feet, more or less, to the northwest corner of property now or formerly owned by Kenneth & Carolyn Wilson (101G A 059); thence proceeding southeasterly a distance of 365 feet, more or less, to the northwest corner of property now or formerly owned by Robert Daughtrey (101G-A-058); thence proceeding southeasterly a distance of 296 feet, more or less, to the point of beginning. References to parcel numbers in parenthesis above are based upon official Geographic Information System maps maintained by the Hamilton County GIS Department. All of

this property lies within the Urban Growth Boundary of the City of Chattanooga as provided in the Master Interlocal Agreement between all municipalities within Hamilton County effective May 23, 2001. Included in this annexation are all tax parcels listed below and as shown on the attached map for Annexation Area 4C.

ANNEXATION ORD. NO. 12659
ENACTED OCTOBER 23, 2012

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain territory in the Third Civil District of Hamilton County, Tennessee, owned by Barrier Properties, LLC, d/b/a Cambridge Square, lying contiguous to the present corporate limits, as shown on the attached map, and described as follows:

CAMBRIDGE SQUARE

Proposed Annexation Area

Being a portion of the W. L. Hall's Subdivision as shown in Plat Book 15, Page 35 (ROHC), Registers Office Hamilton County Tennessee and more particularly described as follows:

To find the TRUE POINT OF BEGINNING, begin at the eastern most corner of Lot 1, Final Plat of Ooltewah Church of Christ's Resubdivision, Lot 1, as shown in Plat Book 35, Page 388 ROHC; thence along the northern line of said lot 1 N 66-58-38 W, a distance of 227.11 feet to a point being 42.89 feet southeast of the northern most corner of lot 1 being the TRUE POINT OF BEGINNING; thence N 66-58-38 W, a distance of 42.89 to said corner; thence N 66-45-33 W, a distance of 224.91 feet to a point; thence S 23-16-12 W, a distance of 58.31 feet to a point; thence N 66-43-48 W, a distance of 116.26 feet to a point; thence N 23-01-08 E, a distance of 96.22 feet to a point; thence S 66-53-05 E, a distance of 384.32 feet to a point; thence S 23-01-08 W, a distance of 38.65 feet to the TRUE POINT OF BEGINNING. Containing 0.49 acres more or less.

Tax Map Parcel No. 132A-A-026

ANNEXATION ORD. NO. 12803
ENACTED FEBRUARY 18, 2014

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-101, et seq.), there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain territory in Hamilton County, Tennessee, owned by Irrevocable Family Trust dated August 4, 2004, under Will of Frances C. Cannon and the Estate of Alvin F. Cannon, lying contiguous to the present corporate limits, as shown on the attached map, and described as follows:

(i) The following Tax Map Parcels owned 29.74% by the Irrevocable Family Trust Dated August 4, 2004 under Will of Frances C. Cannon and 70.26% by the Residual Marital Trust under the Last Will and Testament of Frances C. Cannon dated August 4, 2004:

Tax Map No. 120E-A-002

Being a part of the Rex A. Richey Farm in the Southwest Quarter of Section Sixteen (16), Township Five (5), Range Three (3), and being described as follows: Beginning on the Western line of Hickory Valley Road at the Northeastern corner of Lot One (1), Subdivision of part of the Rex Richey Tract, as shown by plat of record in Plat Book 14, Page 82, in the Register's Office of Hamilton County, Tennessee; thence North sixty-five (65) degrees West along the Northern line of said Lot One (1) five hundred thirty-one and 45/100 (531.45) feet to the Western line of said Southwest Quarter; thence North twenty-six (26) degrees, fifty-nine (59) minutes East, along said line, two hundred (200) feet; thence South sixty-four (64) degrees, fifty-six (56) minutes East, five hundred forty-three and 83/100 (543.83) feet, more or less, to the Western line of the said Hickory Valley Road; thence Southwardly along said road two hundred (200) feet to the point of beginning.

Tax Map No. 120E-A-004

Being Lot No. Two (2), and a part of Lot No. Three (3), Subdivision of a part of the Rex Richey Tract in Section Sixteen (16), Township Five (5), Range Three (3), West of the Basis Line, Ocoee District, as shown by plat of record in Plat Book 14, Page 82, in the Register's Office of Hamilton County, Tennessee, being described as follows: Beginning at a point in the Western line of Hickory Valley Road at the Northeast corner of Lot No. Two (2) of said subdivision; thence Westwardly along the dividing line of Lots No. One (1) and Two (2) five hundred forty-one and 1/10 (541.1) feet to the Northwest corner of said Lot No. Two (2); thence Southwardly three hundred fifty (350) feet to the Southwest corner of Lot No. Three (3) of said subdivision; thence Eastwardly along the dividing line of Lots No. Three (3) and Four (4) three hundred thirty-two and 8/10 (332.8) feet, more or less, to the Southwest corner of the property conveyed to Mary Trotter by deed recorded in Book 830, Page 696, in the said Register's Office; thence Northwardly along said tract seventy-five (75) feet, more or less, to the Northern line of said tract two hundred fifty (250) feet to the Western line of Old Hickory Valley Road; thence Northwardly along the Western line of said road and continuing along the Western line of said present Hickory Valley Road two hundred seventy-eight and 2/10 (278.2) feet, more or less, to the point of beginning.

Except therefrom that part of said property conveyed to the State of Tennessee for the widening of Hickory Valley Road, as set out in deed recorded in Book 2183, Page 881, in the Register's Office of Hamilton County, Tennessee.

Tax Map No. 120E-A-010

Being a part of the Northeast Quarter of Section Thirty (30), Township Five (5), Range Three (3), West of the Basis Line, Ocoee District, and bounded as follows: Beginning on a stake in the northeast corner of said Quarter Section; thence running south 247.5 feet to a stake; thence North 67 degrees, 08 minutes West, along the northern boundary of property conveyed to Wall by deed recorded in Book 2427, Page 425, in the Register's Office of Hamilton County, Tennessee, 397.56 feet, more or less, to a stone corner in a fence line; thence North 22 degrees, 33 minutes East, along said fence line, which is the boundary of property conveyed by deed recorded in Book 2057, Page 676, said Register's Office, 258.36 feet to a stone corner; thence South 65 degrees, 32 minutes East, 408.57 feet, more or less, to the point of beginning.

The source of petitioner's interest is found in deed of record in Book 8809, Page 932, in the Register's Office of Hamilton County, Tennessee.

(ii) And the following tax map parcel, owned by the Estate of Alvin F. Cannon:

Tax Map No. 120E-A-003

All that tract or parcel of land lying and being in the Second Civil District of Hamilton County, Tennessee, being Lot One (1) of Part of Rex Ritchie Tract, as shown by plat recorded in Plat Book 14, Page 82, in the Register's Office of Hamilton County, Tennessee.

ANNEXATION ORD. NO. 12897
ENACTED JANUARY 20, 2015

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-122, et seq.), there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain territory in the Third Civil District of Hamilton County, Tennessee, owned by Johnston Southern Company, LLC lying contiguous to the present corporate limits, as shown on the attached map, and described as follows:

CAMBRIDGE SQUARE

Proposed Annexation Area

Being a portion of Lots 6 & 7 Cambridge Square as shown in plat book 99, page 189 (ROHC), Registers Office of Hamilton County, Tennessee and more particularly described as follows:

Beginning at the northern most corner of lot 7, at the eastern ROW (right-of-way) of Ooltewah-Georgetown Road; thence along northern line of lot 7, South 66 degrees 37 minutes 40 seconds East, a distance of 79.44 feet to the common corner of lot 6 & 7; thence along the northern line of lot 6, South 66 degrees 37 minutes 40 seconds East, a distance of 137.0 feet to the eastern most corner of lot 6; thence along the eastern line of lot 6 South 23 degrees 10 minutes 27 seconds West, a distance of 80 feet more or less to a point in the current Chattanooga and Hamilton County annexation limit line; thence along the current limit line North 66 degrees 37 minutes 40 seconds West, a distance of 137 feet more or less to a point in the common line of lots 6 & 7; thence continuing along said existing limit line North 66 degrees 37 minutes 40 seconds West, a distance of 80 feet more or less to a point at the eastern ROW of Ooltewah-Georgetown Road; thence along said eastern line North 23 degrees 48 minutes 11 seconds East, a distance of 80 feet more or less, to the POINT OF BEGINNING.

CONTAINING a total of 0.39 acres more or less. Being 0.14 acres more or less in lot 7 and 0.25 acres more or less in lot 6.

Tax Map Parcel Nos. 132H-A-001.04 and 132H-A-001.08

DEANNEXATION ORD. NO. 12902
ENACTED FEBRUARY 10, 2015

Pursuant to the authority conferred by T.C.A. §§ 6-51-201 through 6-51-204, the territory originally annexed by the City of Chattanooga within Ordinance No. 6379 shall be contracted by this Ordinance to deannex the following territory set forth in the map which is attached hereto as Exhibit "B" and including the following specific tax parcel and owner referenced in the tax records of Hamilton County, Tennessee:

Parcel #	Owner Name
117B-A-001.01	Patricia Y. Pesnell — Lot 35

LOCATED PARTLY IN THE THIRD CIVIL DISTRICT AND MOSTLY IN THE CITY OF CHATTANOOGA, HAMILTON COUNTY, TENNESSEE:

Lot No. Thirty-Five (35), as shown on Corrective Plat of Lots 35, 36 and 40, Majestic View, Phase I, as shown by plat of record in Plat Book 40, Page 54, in the Register's Office of Hamilton County, Tennessee.

TOGETHER WITH all easements and rights appurtenant thereto under the stipulations contained in the original plat of Majestic View, Phase I, recorded in Plat Book 32, page 100, in the Register's Office of Hamilton County, Tennessee, and under the provisions of Instrument recorded in Book 2541, page 983, as amended by Instrument recorded in Book 2615, page 326, in the Register's Office of Hamilton County, Tennessee.

TOGETHER WITH a non-exclusive easement in and to the use of a 15-foot driveway, provided on subdivision plat as being for the common use of Lots 35, 36, 38, 39 and 40, which is shown by legend on the subdivision plat and as clarified as to the location thereof along the Northwestern line of Lot No. 36, by Instrument executed by and between Thilo H. Best and wife, Louise G. Best and William K. Scholze, dated June 10, 1986, recorded in Book 3236, page 714, in the Register's Office of Hamilton County, Tennessee.

TOGETHER WITH non-exclusive use of the driveway easement located within the 25-foot flag portion of Lot No. 36, as created in deed from William K. Scholze, joined by his wife, to Tony H. Brock, dated April 29, 1983, recorded in Book 2891, page 990, in the Register's Office of Hamilton County, Tennessee, and the driveway easement as sown on the subdivision plat in Plat Book 40, page 54, in the Register's Office of Hamilton County, Tennessee (excepting a triangle portion thereof located within the bounds of Lot No. 37) as clarified in the Instrument executed by and between Thilo H. Best and wife, Louise G. Best and William K. Scholze, dated June 10, 1986, recorded in Book 3236, page 714, in said Register's Office.

For prior title and last instrument of record affecting title to the above-described property, see deed recorded in Book 4289, Page 406, said Register's Office.

Parcel #	Owner Name
117B-A-002	Thilo H. Best — Lot 36

LOCATED LARGELY IN THE CITY OF CHATTANOOGA, AND PARTLY IN THE THIRD CIVIL DISTRICT OF HAMILTON COUNTY, TENNESSEE:

Lot No. Thirty-Six (36), Corrective plat of Lots 35, 36, and 40, Majestic View, Phase I, as shown by plat of record in Plat Book 40, page 54, in the Register's Office of Hamilton County, Tennessee.

TOGETHER WITH all easements and rights appurtenant thereto under the stipulations and conditions contained on plat recorded in Plat Book 32, page 100, in the Register's Office of Hamilton County, Tennessee, and under the provisions of the instrument recorded in Book 2541, page 983, amended by instrument recorded in Book 2615, page 326, in the Register's Office of Hamilton County, Tennessee.

TOGETHER WITH a non-exclusive Easement in and to the use of a 15-foot driveway, provide on subdivision plat as being for the common use of Lots 35, 36, 38, 39 and 40, which is shown by legend on the subdivision plat.

REFERENCE is made for prior title to Book 2732, page 897, in the Register's Office of Hamilton County, Tennessee.

Parcel #	**Owner Name**
117B-A-003	George Wright — Lot 40

IN THE CITY OF CHATTANOOGA, HAMILTON COUNTY, TENNESSEE:

Lot No. Forty (40), Majestic View, as shown by plat of record in Plat Book 40, Page 54 in the Register's Office of Hamilton County, Tennessee.

TOGETHER WITH non-exclusive driveway easement, as located within the bounds of Lot Number 39, as shown and provided for on the subdivision plat.

Being the same land described in a deed to Manorama K. Reddy by deed dated July 30, 1993 and recorded in Book 4182, page 81, in the Register's Office of Hamilton County, Tennessee.

SUBJECT to the rights of owners of Lots Numbers 35, 36, 38 and 39, in and to the use of the 15-foot non-exclusive driveway easement, as provided for on plat of record in Plat Book 40, Page 54, in the Register's Office of Hamilton County, Tennessee, and subject to the obligations as to maintenance of said driveway.

DEANNEXATION ORD. NO. 12903
ENACTED FEBRUARY 10, 2015

Pursuant to the authority conferred by T.C.A. §§ 6-51-201 through 6-51-204, the territory originally annexed by the City of Chattanooga within Ordinance No. 9335 shall be contracted by this Ordinance to deannex the following territory set forth in the map which is attached hereto as Exhibit "B" and including the following specific tax parcel and owner referenced in the tax records of Hamilton County, Tennessee:

Parcel #	**Owner Name**
140-136	Donald L. Barbee, Jr.

ANNEXATION ORD. NO. 12959
ENACTED JUNE 16, 2015

Under the authority conferred by Chapter 113, Public Acts of 1955, and the amendments thereto (T.C.A. § 6-51-122, et seq.), there be and hereby is annexed to the City of Chattanooga, Tennessee, and included within the corporate boundaries of said City, certain territory in Hamilton County, Tennessee, owned by Cornerstone Auto Brokers, LLC; Barbara Moss Beville; Ray E. Moss, III; and James Woodruff, lying contiguous to the present corporate limits, as shown on the attached map, and described as follows:

Tax Map No. 120E-A-001

SITUATED in the City of Chattanooga, Hamilton County, Tennessee, being known as a parcel of land conveyed to Ray E. Moss, III by deed recorded in instrument 2008120200048 in the Hamilton County Register of Deeds Office and is further bounded and described as follows:

BEGINNING at the Southwesterly corner of land conveyed to SunTrust Bank, TR Frances C. Cannon Irrevocable Family Trust Parcel 5, recorded by deed in Instrument

2008120300052 in the Hamilton County Register of Deeds Office also being a Northwesterly corner of land conveyed to SunTrust Bank, TR. Frances C. Cannon Irrevocable Family Trust Parcel 6, in instrument 200812030052 in the Hamilton County Register of Deeds Office also being Northeasterly corner of land conveyed to SunTrust Bank, TR. Frances C. Cannon Irrevocable Family Trust Parcel 8, in instrument 20081203000052 in the Hamilton County Register of Deeds Office.

THENCE along a Northerly line of said Parcel 8 North 64°37'11" West a distance of 408.71 feet to an iron rebar found at a Northwesterly corner of said parcel 8; thence North 22°17'05" East a distance of 185.68 Feet; thence North 56°09'45" East a distance of 791.42 feet to a point in a Westerly line of land conveyed to SunTrust Bank, TR. Frances C. Cannon Irrevocable Family Trust, Parcel 3, Recorded by Deed in Instrument 2008120300052 in the Hamilton County Register of Deeds Office; thence along Westerly lines of lands conveyed to said parcel 3, Alvin F. Cannon by deed recorded in instrument 2004102900146 in the Hamilton County Register of Deeds Office, SunTrust Bank, TR. Frances C. Cannon Irrevocable Family Trust, Parcel 4, by deed in instrument 2008120300052 in the Hamilton County Register of Deeds Office and said parcel 5 South 24°28'23" West a distance of 865.44 feet to the principal place of beginning containing 217,790 SQ. FT. or 5.00 acres (more or less) of land.

Tax Map No. 120E-A-005

CORNERSTONE AUTO BROKERS, LLC TRACT 2

SITUATED in the City of Chattanooga, Hamilton County, Tennessee, being known as a parcel of land conveyed to Cornerstone Auto Brokers, LLC, Tract 2, by deed recorded in instrument 20005060300333 in the Hamilton County Register of Deeds Office and is further bounded and described as follows:

BEGINNING at an iron rebar at a Northeasterly corner of land so conveyed to Cornerstone Auto Brokers, LLC. Tract 1 said Iron rebar lying in a Westerly right-of-way of Hickory Valley Road (width varies).

THENCE along a Northerly line of said Tract 1, North 68°27'10" West a distance of 266.63 feet to an iron rebar found at a Southeasterly line of land conveyed to SunTrust Bank, TR, Frances C. Cannon Irrevocable Family Trust 4 by a deed recorded in instrument 2008120300052 in the Hamilton County Register of Deeds Office; thence along an Easterly line of land so conveyed to SunTrust Bank, TR Frances C. Cannon Irrevocable Trust Parcel 4 North 21°28'20" East a distance of 75.08 feet to an iron rebar found at a Southeasterly corner thereof; thence along a Southerly line of land so conveyed to SunTrust Bank, TR Frances C. Cannon Irrevocable Trust Parcel 4 South 68°27'09" East a distance of 246.93 feet to an iron rebar found in said Westerly right-of-way; thence along said Westerly right-of-way South 06°46'36" West a distance of 77.64 feet to the place of beginning containing 19,279.26 SQ. FT. or 0.44 acres (more or less) of land.

CODE COMPARATIVE TABLE

Beginning with the 2015 republication, this Code Comparative Table lists, in a chronological order, the ordinances of the City used in this codification. Repealed or superseded laws at the time of the codification and any omitted materials are not reflected in this table. Prior to the 2015 republication, this Code contained no similar record of the ordinance history.

Ordinance Number	Date	Section		Section this Code
12296	10- 6-09	1		App. A
12556	1-17-12	1		App. A
12557	1-17-12	1		App. A
12589	5- 1-12	1		27-36
		2		27-38
		3		27-39
		4	Added	27-43
		5		27-59
		6		27-61
		7		27-62
		8		27-63
		9		27-64
		10	Added	27-66(f)
		11	Added	27-71
12596	5-22-12	1		App. A
12597	5-22-12	1		App. A
12599	5-29-12	1	Added	Ch. 24, Art. X, Div. 9, §§ 24-388—24-390.1
12605	5-29-12	1		27-1
		2		27-2
		3		27-3
12659	10-23-12	1		App. A
12764	9-10-13	1		17-1(hist. note)
12798	2- 4-14	1		2-193
12803	2-18-14	1		App. A
12859	9-16-14	1	Added	38-201(4)
		2		38-207—38-213
		3		38-473(12)

Ordinance Number	Date	Section		Section this Code
12880	11-18-14	1		7-1—7-4, 7-6, 7-7, 7-17, 7-18, 7-35, 7-66, 7-68—7-73, 7-80, 7-82—7-88, 7-98, 7-105, 7-106, 7-124, 7-131—7-133, 7-141, 7-154
		2		7-1
		3		7-2
		4		7-23
		5	Added	Ch. 7, Art. XIV, §§ 7-300—7-313
		6	Added	Ch. 7, Art. XV, §§ 7-340—7-343
		7	Added	Ch. 7, Art. XVI, §§ 7-380—7-383
		8	Added	Ch. 7, Art. XVII, §§ 7-420—7-431
		9	Added	Ch. 7, Art. XVIII, §§ 7-460—7-464
		10	Added	Ch. 7, Art. XIX, §§ 7-490—7-498
12888	1- 6-15	1		14-77
		2		14-78
		3		14-79
		4		14-82, 14-84
12889	1- 6-15	1	Rnbd as	26-24 26-91 Ch. 26, Art. IV (Tit.)
		2	Rpld	26-91—26-93
12891	1- 6-15	1		Ch. 35, Art. II Div. 1 (Tit.),

Ordinance Number	Date	Section		Section this Code
				35-17—35-20, 35-22—35-27, 35-33, 35-37, 35-39, 35-41—35-50, 35-52—35-59, 35-61—35-67, 35-186, 35-187, 35-189—35-201, 35-203, 35-205—35-208, 35-241—35-254, 35-256—35-258, 35-260, 35-273—35-278, 35-280, 35-281
		2		35-17
		3		35-21
		4		35-22
		5	Rpld	35-23(a)(13)
			Added	35-23(a)(16), (17)
		6		35-24(a)
		7		35-25
		8		35-26(a)(1), (4)
		9		35-33
		10		35-41
		11		35-45
		12		35-48
		13		35-49
		14	Added	35-45.1
		15		35-54(b)
		16		35-67
		17		Ch. 35, Art. VIII, §§ 35-283—35-294
12892	1-13-15	1	Added	38-35
12896	1-20-15	1	Rpld	38-43(4), 38-524
12897	1-20-15	1		App. A
12899	1-27-15	1	Added	Ch. 18, Art. XI, §§ 18-211—18-214

Ordinance Number	Date	Section		Section this Code
12900	2- 3-15	1		Ch. 31, Art. VIII, Divs. 1—6, §§ 31-301—31-303, 31-313, 31-320—31-325.9, 31-326—31-328, 31-330—31-332, 31-340—31-348 31-350—31-356.3
12902	2-10-15	1		App. A
12903	2-10-15	1		App. A
12911	2-17-15	1		38-2
		2	Added	38-185(4)
		3		38-205
		4	Added	38-224(3)
		5	Added	38-246(3)
		6	Added	38-266(9)
			Rnbd	38-266(9)
			as	38-266(10)
		7		38-289(2)
		8	Added	38-303(5)
		9	Added	38-125
		10		38-134(7)
		11	Added	38-529
12926	3-17-15	1	Added	38-104(6)
12928	3-17-15	1		38-568(23)
12930	3-24-15	1		Ch. 26, Art. IV (Tit.)
		2		26-17(3)
		3		26-17(4)
		4		26-21
		5	Rpld	26-22
				26-23
			Added	26-24
				26-25—26-31, 26-34
12932	4- 7-15	1		18-52
12933	4- 7-15	1		31-356.1(3)
12939	4-21-15	1		38-228(1)
12940	4-21-15	1	Rpld	38-121(18)
			Rnbd	38-121(19)—(21)
			as	38-121(18)—(20)
		2	Rpld	38-171(9), (12)
			Rnbd	38-171(10), (11)
			as	38-171(9), (10)

Ordinance Number	Date	Section		Section this Code
12941	5- 5-15	1		35-171(e)(1)
		2		35-171(e)(3)
		3	Added	35-171(e)(5)
		4		35-171(i)
		5	Added	35-171(j)
12950	5-19-15	1		38-672
		2		38-565
		3	Added	38-566(6)
12951	5-19-15	1		24-507
12953	6-16-15	13		2-167(b)
		20		31-36(a)
		21		31-36(c)
		22		31-36(d)
		23		31-37
		24		31-41(c)
		25		31-43(b), (f), (g)
		27		31-354
12957	6-16-15	1		38-11(2)
12958	6-16-15	1	Added	38-223(4)
12959	6-16-15	1		App. A
12962	6-16-15	1		31-50(b)(8), (9), (37), (44), (47)
		2	Rpld	31-51(n)
			Added	31-51.01, 31-51.02
		3		31-58(a)
		4		31-1, 31-2, 31-4—31-6, 31-8, 31-9, 31-11, 31-13, 31-15, 31-16, 31-20, 31—32, 31-33, 31-38, 31-40—31-43, 31-50—31-55, 31-37, Ch. 31, Art. III, Div. 5 (Tit.), 31-59—31-64, 31-295, 31-296
12963	6-16-15	1		10-3
12966	6-30-15	1		2-621
		2		3-126, 3-132
		3		10-31, 10-32

Ordinance Number	Date	Section		Section this Code
		4		32-33, 32-166—32-168, 32-172, 32-175—32-178
		5		24-271, 24-273
12967	7-21-15	1		2-137(b)(1)
		2		2-138
		3		2-183
12973	7-28-15	1		2-562
12974	8-18-15	1		3-102(c)
12980	8-18-15	1		38-321(2)(v)
		2	Rpld	38-324
		3	Rpld	38-528
12981	8-18-15	1		38-25
12982	8-18-15	1	Added	38-563(5)
12983	8-25-15	1		Ch. 2, Art. III (Tit.)
		2	Rpld	Ch. 2, Art. III, Divs. 1—13, 16, 19, §§ 2-136—2-150, 2-154—2-197, 2-271—2-278, 2-430—2-449,
		3	Added	Ch. 2, Art. III, Divs. 8.1, 14, 15, 17, 18, §§ 2-179.1—2-179.15, 2-231—2-236, 2-251—2-256, 2-301—2-319, 2-400—2-424
			as	Ch. 2, Art. III, Divs. 1—5, §§ 2-231—2-246, 2-251—2-256, 2-261—2-266, 2-301—2-319, 2-400—2-424
12984	9- 1-15	1		10-13(a)
12985	9- 1-15	1		31-302
		2		31-313 7.A.
12986	9- 8-15	1		24-388—24-390.1

Ordinance Number	Date	Section		Section this Code
12987	9- 1-15	1		24-504
12990	9-29-15	1		5-47(a)—(c)
12998	10-20-15	1	Rpld	38-596
12999	10-20-15	1		31-14
13000	11-10-15	1		32-166, 32-167, 32-172, 32-175—32-178
13006	12- 8-15	1		35-252(h)
13015	12-15-15	1		38-2
13016	12-15-15	1	Added	38-563(6)
13020	1-19-16	1		38-361(3)
13022	1-19-16	1		7-17, 7-18
13023	1-26-16	1		2-303(11)
		2	Added	2-303(25)
		3	Added	2-320
		4	Added	2-306(6)(h)
13024	1-26-16	1		2-415
		2		2-410(b)(1)
		3		2-419(4)
		4	Added	2-419(10)
		5	Added	2-425
13025	2-16-16	1	Added	11-457, 11-458
13027	3- 1-16	1	Added	11-477, 11-478
13034	3-15-16	1		38-402
13035	3-15-16	1		38-482(1), (2)
		2	Added	38-482(3)
13036	3-15-16	1	Rpld	38-411—38-421
			Added	38-411—38-419
13038	4-12-16	1		24-242
		2		24-501
		3		24-502
13047	5- 3-16	1	Added	11-490—11-501
13061	5-17-16	1		38-2
		2		38-184(7)
		3		38-204(7)
		4		38-302(6)
		5		38-568(12)
13062	5-17-16	1		38-361(3)
13070	6-21-16	2	Rpld	38-281—38-289
		3	Added	38-568(24)
		4	Added	38-530
13075	7- 5-16	1		5-75(b)
		2		5-108(b), (c)
13084	7-19-16	1		38-402(2)(b)
13085	7-19-16	1		38-414
13086	7-19-16	1	Added	38-568(12)(e)

Ordinance Number	Date	Section		Section this Code
13092	8- 2-16	1		26-33
13093	8- 9-16	1	Added	5-88
13104	9-13-16		Added	Ch. 21, Art. VII, 21-151—21-167
13105	9-13-16	1		31-57(a), (b), (d)
13117	10-18-16	1		38-480
13118	11-15-16	1		5-47(c), (d)
		2		5-48(b)
		3		5-78(c)
13121	11-15-16	1		38-2
		2		38-91
		3		38-94
13122	11-15-16	1		38-568(7)
13127	12-13-16	1		5-41
		2		5-87(f)
		3		5-101
		4		Ch. 5, Art. III(tit.)
		5		Ch. 5, Art. VI(tit.)
		6		35-252(h)
13072	6-28-16	20		31-36(a)
		21		31-36(c)
		22		31-36(d)
		23		31-37
		24		31-41(c)
		25		31-43(b), (f), (g)
13165	3-14-17	1		38-44(3)
13172	4-18-17	1		31-16
		2		31-50(b)(17)
		3		31-50(c)(15)
		4		31-51(i), (j), (p)
		5		31-51(l)
		6		31-51(k)
		7		31-53(l), (m)
		8		31-54(f)
		9		31-57(c)
		10		31-289
13177	4-25-17	1		38-32
13178	4-25-17	1		38-568(3)
		2		38-568(12)
		3		38-568(24)
		4		38-568(24)
13184	5-30-17			26-25, 26-26
13185	6- 6-17			21-151
13186	6- 6-17	1		31-20
		2		31-33
		3		31-35

Ordinance Number	Date	Section		Section this Code
		4		31-36, 31-37
		5		31-43
				31-291
13191	6-22-17	1		17-1
13194	7-11-17	1		38-2
			Added	38-36
		2		38-11
		3		38-121
		4		11-186(2)
		5	Added	11-510—11-518
13195	7-18-17	1		10-3j
		2		16-29
13204	7-18-17	1		38-84(1)(f)
		2		38-84(1)(g)
		3		38-84(2)(f)
		4		38-84(3)(d)
		5		38-86(1)
13205	7-18-17	1		38-568(16)
		2		38-42(4)
				38-63(3)
				38-83(3)
				38-92(4)
				38-102(3)
				38-112(5)
				38-122(13)
				38-124(7)
				38-162(3)
				38-172(5)
				38-184(5)
				38-189
				38-204(8)
				38-208(e)
				38-223
				38-245(3)
				38-252
				38-264(2)
				38-268
				38-302(4)
				38-304
				38-321(1e)
				38-322(8)
				38-331(1)
				38-332(7)
				38-341(2)
				38-453(11)
				38-455

Ordinance Number	Date	Section		Section this Code
		3		38-223(3)
		4		38-2
13211	8-22-17	1		25-67
		2	Rnbd	25-73—25-77
			as	25-74—25-78
		3	Added	25-73
13212	8-22-17	1	Added	2-49
13213	9-12-17	1	Added	2-111
		23		31-36(a)
		24		31-36(c)
		25		31-36(d)
		26		31-37
		27		31-41(c)
		28		31-43(b, (f), (g)
		30		31-354
13218	9-19-17	1		8-1—8-17
13219	9-19-17	1	Added	38-14—38-17
		2		38-563(3)
		3	Added	38-563(7)
		4	Added	38-592(1)(c)
13220	9-19-17	1		24-388(e), (f)
		2	Added	24-388(g)
13221	9-19-17	1		4-2
		2		4-4
		3		4-6
		4		4-7
		5		4-8(a)(14)
		6		4-8(c)(12)
		7		4-8(d)(4)
		8		4-8(d)(6)
		9		4-8(f)
		10		4-8(g)
		11		4-10(a)
		12		4-17
		13—15		4-41
		16		4-60(e)(1)
		17		4-60(e)(6)
		18		4-65
12927	3-17-15	1		38-23
		2		38-502—38-511
13225	10- 3-17	1	Added	12-21(b)
		2	Rnbd	12-21(b)—(d)
			as	12-21(c)—(e)
13226	10- 3-17			5-110
13227	10-10-17	1		38-452
		2		38-453(1)(a)

Ordinance Number	Date	Section		Section this Code
		3		38-453(1)(b)
		4		38-454(1)
		5		38-456
		6		38-457
		7	Added	38-458
		8	Added	38-459
13234	10-17-17	1		38-2
		2		38-13(9)(f)
		3		38-212(2)(h)
		4		38-503
		5		38-504
13238	11-14-17	1	Added	21-150
		2		21-151
13239	11-14-17	1		2-425E.a
		2	Added	2-425G
		3	Added	2-425H
		4		2-414
13240	11-14-17	1	Added	5-87(g)
13251	11-28-17	1		31-301—31-365
13257	12-19-17	1		22-2
		2		22-3
		3	Added	22-7
		4	Rnbd	22-7, 22-8
			as	22-8, 22-9
13267	1-30-18	1		2-65, 2-66
		2		32-16
		3		32-62—32-68
		4		32-224
		5	Rpld	32-231—32-253
			Added	32-231—32-258
13272	1-23-18	1		38-2
		2		38-32
13273	1- 9-18	1		38-137
13274	1-30-18	1	Added	2-321, 2-322
13276	2- 6-18	1	Added	9-1—9-6
13286	3- 6-18	1		11-510—11-518
13289	3-20-18	1	Added	38-18
13290	3-20-18	1		38-13
13295	4-10-18	1		25-39
13297	4-17-18	1		11-457, 11-458
13302	4-17-18	1		38-64(4)
		2, 3		38-84
13318	6- 5-18	1		2-400
		2		2-402(e)
		3		2-403
		4		2-404

Ordinance Number	Date	Section		Section this Code
		5		2-406
		6		2-407
		7		2-408
		8		2-409
		9		2-411
		10		2-419
		11		2-420
		12		2-422
13319	6-12-18	1		26-26
				26-27
				26-34
		2	Added	26-35
13332	6-19-18	1		38-504(a)
13333	7- 3-18	1	Rpld	2-581—2-586
13334	7- 3-18	22		31-36(a)
		23		31-36(c)
		24		31-36(d)
		25		31-37
		26		31-41(c)
		27		31-43(b), (f), (g)
		29		31-354
		30		31-322
13348	8-14-18	1		11-381
		2	Rpld	20-146—20-150
			Added	20-146—20-153
13349	8-21-18	1, 2		11-456
13350	8-21-18	1—3		11-477
		4		11-478
13361	8-21-18	1—3		38-2
		4	Added	38-183(18)
		5	Added	38-203(19)
		6	Added	38-263(5)
13363	9-11-18	1		26-56, 26-57
			Added	26-58
13366	9-18-18	1		38-252
		2	Added	38-253
13369	9-18-18	1	Rpld	6-61—6-70
			Rpld	6-81—6-89
13375	10- 9-18	1		35-241
13376	10-16-18	1		10-3
		2		10-31(a)
13384	10-16-18	1		31-356.1
13385	10-16-18	1		18-1—18-19
				18-31—18-34
				18-46—18-52
				18-66—18-68

Ordinance Number	Date	Section		Section this Code
				18-86, 18-87
				18-101—18-106
				18-141—18-170
				18-181—18-183
				18-211—18-214
13386	10-23-18	1	Rpld	1-9
		2	Rpld	2-9, 2-10
			Rpld	2-661
		3	Rpld	6-6, 6-7
		4	Rpld	11-57, 11-58
			Rpld	11-131, 11-132
		5	Rpld	12-5
			Rpld	12-13, 12-14
		6	Rpld	16-11
		7	Rpld	18-181—18-183
		8	Rpld	20-45
		9	Rpld	24-21
		10	Rpld	25-9
			Rpld	25-12
		11	Rpld	26-15
		12	Rpld	28-1—28-6
		13	Rpld	35-283
		14	Rpld	35-283—35-294
13389	10-23-18	1		16-58
13390	10-30-18	1		24-443
13392	11- 6-18	1	Added	24-50
13393	11- 6-18	1	Added	24-51
13394	11-20-18	1		10-33
13395	11-20-18	1		14-2
		2		14-3
13407	12-18-18	1		38-2
		2		38-568
13408	12-18-18	1		38-510
13414	1- 8-19	1		2-409
		2		2-410
		4	Rpld	2-412
		5	Rpld	2-416
		6		2-420
13442	3-12-19	1	Rpld	21-1—21-19, 21-26—21-30, 21-35—21-46, 21-55—21-67, 21-76—21-78, 21-81—21-92, 21-101—21-109, 21-121—21-127,

Ordinance Number	Date	Section		Section this Code
				21-150—21-21-167
			Added	21-1—21-9, 21-21, 21-22 21-31—21-62 21-76—21-89 21-101—21-108 21-126—21-137 21-151—21-155 21-171—21-197 21-231—21-248
13443	3-12-19	1		24-502
13444	3-12-19	1		3-94(a)
		2		3-96
		3		5-88(a)
		4		32-44
13447	3-19-19	1		38-2
		2	Added	38-185(5)
		3		38-187
		4		38-321
		5	Added	38-351
13450	4- 2-19	1		2-49
13452	4-16-19	1		4-41
13455	4-16-19	1		24-504
13457	5- 7-19	1	Added	26-22
13458	5-14-19	1	Added	16-59—16-66
13462	5-21-19	1	Added	38-114(7)
13463	5-28-19	1		35-19
13465	6- 4-19	1		11-510
13466	6- 4-19	1		24-2
		2	Added	24-21
13473	6-25-19	22		31-36(a)
		23		31-36(c)
		24		31-36(d)
		25		31-37
		26		31-41(c)
		27		31-43(b), (f), (g)
		29		31-354
		30		31-322
13476	6-25-19	1		24-507
13478	7- 2-19	1		11-510
13479	7- 9-19	1	Added	24-511
13482	7-16-19	1		38-453
		2	Added	38-460
13486	7-23-19	1	Added	31-314D(iv), (v)
			Added	31-314E

Ordinance Number	Date	Section		Section this Code
		2		31-356.1(4)
			Rpld	31-356.1(6)
		3		31-356.2(3)
		4		31-302
13487	7-30-19	1	Added	11-525—11-534
13496	8-27-19	1		38-2
		2		38-183(17)
		3	Rpld	38-305
		4	Rpld	38-306
		5	Rpld	38-323(5)
		6	Rpld	38-333(7)
		7	Rpld	38-341(10)
13497	9-10-19	1		11-510
13498	9-10-19	1		11-531(i)
13503	9-24-19	1		24-49
		2	Rpld	24-50
		3	Rpld	24-51
13506	10-22-19	1		19-86(b)(1)
13507	10-22-19	1		27-57(b)
13515	12-17-19	1		11-510
		2		11-511—11-518
13520	12-17-19	1		38-2
13529	1-21-20	1		38-94(4)
13530	1-28-20	1		2-409
		2		2-410
		3		2-418
13531	1-28-20	1		5-71(c)
		2		5-71(f)
		3		5-75(b)
		4		5-87(g)
		5	Added	5-89
13532	2- 4-20	1		24-501
		2		24-502
13533	2- 4-20	1		24-511(b)
13541	3-10-20	1		3-2
13558	6-23-20	22		31-36(a)
		23		31-36(c)
		24		31-36(d)
		25		31-37
		26		31-41(c)
		27		31-43(b), (f), (g)
		29		31-354
		30		31-322
13584	7-21-20	1	Rpld	16-59—16-66
			Added	16-59—16-66
13585	7-28-20	1		26-91

Ordinance Number	Date	Section		Section this Code
		2		26-17
13591	8-25-20	1		31-314(D)(v)
13592	9- 1-20	26		38-2
13613	10-27-20	1		38-81
		2	Added	38-82(9)
		3		38-84(a)
		4		38-84(b)
		5	Added	38-87
13639	1-12-21	1		21-136, 21-137
13658	3-30-21	1		24-502
13660	4- 6-21	1	Added	31-324.3
		2	Added	31-324.4
		3	Added	31-324.5
13661	4- 6-21	1		31-365
13663	4-13-21	1		2-554
13671	5-18-21	1		2-3
13675	5-18-21	1		31-356.1
13676	5-25-21	1		2-526
13687	7- 6-21	1		14-75
				14-81
		2		24-1
13700	8- 3-21	1		38-221
		2	Added	38-230—38-237
13702	8-17-21	1		24-502
13710	9-28-21	15	Added	2-267
		22		31-36(a)
		23		31-36(c)
		24		31-36(d)
		25		31-37
		26		31-41(c)
		27		31-43
		29		31-354
		30		31-322
13719	10- 5-21	2		12-18(b)
		3		12-19
13720	10-19-21	1		25-2
13732	10-19-21	1		38-502(3)(b)
		2		38-504
		3	Rpld	38-504(4)
13743	11-16-21	1	Added	38-37
		2	Rpld	38-13(5)(c)v.a
		3	Rpld	38-18(5)(h)(iv)(1)
		4		38-74(7)
13778	1-18-22	1		38-84(2)(c)
		2		38-84(2)(f)
		3	Rpld	38-84(3)(e)

Ordinance Number	Date	Section		Section this Code
13786	2-22-22	1	Rpld	2-641—2-650
			Added	2-641—2-650
13795	4- 5-22	1	Added	11-519
13811	4-19-22	1		38-210(1)
		2		38-210(3)
		3	Rpld	38-211(5)
		4		38-595
13839	5-31-22	1	Added	38-764—38-771
13840	6-14-22	15		2-267
		22		31-36(a)
		23		31-36(c)
		24		31-36(d)
		25		31-37
		26		31-41(c)
		27		31-43(b), (f), (g)
		29		31-354
		30		31-322
13842	6-14-22	1		11-186
		2		11-199
13854	7-12-22	1		2-549
		2		2-551
		3		2-552
13858	7-19-22	1		9-2
		2		9-4
		3		9-5
		4		9-6
13859	7-19-22	1	Rpld	31-358
13871	7-19-22	1		26-23(C)(1)(a)
13874	8- 9-22	1	Added	2-790—2-797
13880	8-16-22	1		38-208
		2		38-212
		3	Rpld	38-213
		4	Rpld	38-253
13881	8-16-22	1	Rpld	38-32
13882	8-16-22	1		16-60
		2		16-61(d), (e)
		3		16-63
		4		16-64(c)—(g)
		5		16-66
13886	8-30-22	1		38-44(6)
		2	Rpld	38-44(7)(b)(vi)
		3	Rpld	38-44(7)(e)(iii)
		4	Added	38-44(7)(g)
		5	Rpld	38-477—38-482
13893	9- 6-22	1		11-531
13901	10-11-22	1		31-4

Ordinance Number	Date	Section		Section this Code
		2		31-14
13909	11- 8-22	1	Rpld	2-711—2-716
			Added	2-711—2-719
13920	1-10-23	1		35-160
13921	12- 6-22	1—3		10-1—10-3
				10-33
13922	12- 6-22	1—3		19-1—19-3
13923	12- 6-22	1—3		22.5-1—22.5-3
13924	12- 6-22	1—3		27-1—27-3
13925	12- 6-22	1		31-4
13927	12-20-22	1		14-15
		2		19-36
		3		22.5-3
		4		27-3(d)
13928	12-20-22	1		26-23—26-34
			Rpld	26-58
				26-91
13929	12-20-22	1		10-3(j)
		2		10-32
13930	12-20-22	1—3		17-1—17-3
13931	12-20-22	1		11-519
13967	4-18-23	1	Added	25-79
13972	4-18-23	1	Added	10-50—10-61
13974	5- 9-23	1		10-5
13981	5-16-23	1	Rpld	11-510—11-519
			Added	38-431—38-441
13985	6-13-23	1		21-137
13986	6-13-23	1		17-3
		2	Added	17-43
13998	6-27-23	1-4		4-2
		5-13		4-3
		14-18		4-8
		19, 20		4-19
		21		4-20
		22, 23		4-21
		24-76		4-41
		77		4-50
		78		4-52
		79-89		4-53
		90		4-54
		91-97		4-56
		98		4-58
		99		4-68
14000	7-11-23	1		5-17
14013	8- 1-23	1		2-406, 2-407
14017	8-15-23	1		2-303

Ordinance Number	Date	Section		Section this Code
		2		2-311
14022	8-29-23	1		38-431
				38-2
			Rpld	38-36
				38-432
				38-433
				38-436
				38-568
14028	10- 3-23	3—8	Rpld	Ch. 26, Art. V, 26-150—26-154
			Added	Ch. 26, Art. V, 26-150—26-154
14038	10- 3-23	1		21-62
14057	11-28-23	1		2-566
14063	11-28-23	1		38-2
14065	12- 5-23	1		10-53
		2		10-56
		3		10-59
14069	12-19-23	1		10-5
13951	2-21-23	1		21-232
13960	2-21-23	1		38-541
14090	3-12-24	1	Rpld	5-1—5-188
			Added	5-1—5-188
14091	3-12-24	1		35-149
		2		35-147
		3		35-160
14092	3-12-24	1		32-61—32-85
14093	3-12-24	1		32-271—32-388
14094	3-12-24	1		32-13
		2	Rpld	32-14
		3		32-15
14101	4- 9-24	1		26-23
		2		26-28
		3		26-30
14118	6-18-24	21		31-36(a)
		22		31-36(c)
		23		31-36(d)
		24		31-37
		25		31-41(c)
		26		31-43(b), (f)—(i)
		29		31-322
14135	7-16-24	1		10-3
14137	7-23-24	1	Rpld	38-010—38-771
		1	Added	38-010—38-102
14138	7-23-24	1		38-010—38-102
14148	8-27-24	1		2-110

Ordinance Number	Date	Section		Section this Code
14154	10- 1-24	1		16-2
14157	10-15-24	1		24-302
14158	10-15-24	1		24-326
14159	10-15-24	1		24-505
14160	10-15-24	1		23-2
		2		23-3
		3		23-9
		4		23-18
14165	10-29-24	1		4-2
		2		4-8
		3. 4		4-12
		5		4-19
		6—16		4-41
		17		4-52
		18—20		4-53
		21		4-57
		22		4-65
		23		4-68
14167(1)	11- 5-24	1		5-108
14167(2)	11- 5-24	1	Added	5-190—5-206
14167(3)	11- 5-24	1		5-126
14167(4)	11- 5-24	1		5-45
14167(5)	11- 5-24	1		5-42
14167(6)	11- 5-24	1		5-42
14167(7)	11- 5-24	1		5-23
14169	11-19-24	1		38-77
				38-96
				38-97
				38-16
				38-21
				38-26
				38-42
				38-41
				38-65
				38-72
				38-74
				38-75
				38-76
				38-77
				38-79
14181	12-17-24	1		38-77
				38-96
				38-97
				38-16
				38-21
				38-26

Ordinance Number	Date	Section		Section this Code
				38-41, 38-42
				38-65, 38-72
				38-74—38-77
				38-79
				38-96, 38-97
14183	1-14-25	1	Added	25-40
14202	2-18-25	1		38-16, 38-41
				38-45, 38-65
				38-71, 38-72
				38-74—38-76
14204	3-11-25	1		14-2, 14-3
14117	6-11-24	1		38-85
14208	3-18-25	1		38-41
		2		38-45
14217	4- 8-25	1	Rpld	32-300—32-319
			Added	32-300—32-322
		2		21-232
14216	4- 8-25	1	Rpld	3-1—3-22, 3-31—
				3-33, 3-41, 3-42,
				3-51—3-55, 3-61,
				3-71, 3-81—3-86,
				3-91—3-109,
				3-111—3-115,
				3-121—3-126,
				3-131, 3-132
			Added	3-1—3-22, 3-31—
				3-33, 3-41, 3-42,
				3-51—3-55,
				3-101—3-109,
				3-111—3-114,
				3-133—3-204
14222	4-15-25	1		38-4, 38-41
				38-46, 38-54
				38-56, 38-58
				38-59, 38-63
14223	4-22-25	1		11-456
14224	4-29-25	1	Added	16-30—16-34
14228	5- 6-25	1		24-502
14231	5-13-25	1		31-314
14232	5-13-25	1		21-136
14233	5-13-25	1		31-37
14238	5-20-25	1		38-85
				38-16
				38-29

Ordinance Number	Date	Section		Section this Code
				38-41
				38-45
				38-66
				38-99
14239	6-10-25	21—23		31-36(a), (c), (d)
		24		31-37
		25		31-41(c)
		26		31-43
		28		31-354
		29		31-322
14248	7- 8-25	1		21-22
		2		21-31
14254	7-22-25	1		10-3
14257	7-29-25	1		7-107
		2	Added	7-145
14253	7-15-25	1		38-98
				38-16
				38-29
				38-53
14256	7-22-25	1	Rnbd	38-100—38-102
			as	38-112—38-114
			Added	38-100—38-111
				38-52
				38-61
				Art. IV
				38-20
				38-25
14278	9-16-25	1		38-748
				38-41
				38-42
				38-45
				38-54
				38-65
				38-97
14291	10-21-25	1		38-739
				38-65
14297	12- 2-25	1		38-12
				38-41
14309	1- 6-26	1—7		35-203
14312	1-13-26	1		24-502
14319	1-20-26	1		38-73
14320	1-20-26	1		38-10
				38-698
14324	2-17-26	1		4-4
		2—6		4-8
		7-10		4-41

Ordinance Number	Date	Section		Section this Code
		11-13		4-60
14329	2-17-26	1		38-69
14330	2-17-26	1		38-9
14333	3-10-26	1		24-502
14334	3-10-26	1		35-160
14336	3-10-26	1		31-314
14337	3-17-26	1		38-41
				38-42
14338	3-17-26	1		38-41
14339	3-17-26	1		38-72
14347	4-14-26	1		24-337
		2	Added	24-390.2—24-390.9
14292	10-21-25	1		38-85
14298	12- 2-25	1		38-9
			Rpld	38-38
			Added	38-38
			Rpld	38-39
				38-98
14308	12-16-25	1		38-41
				38-42
				38-45
14365	5-19-26	1		38-29
				38-43
14366	5-26-26	1		3-55
14372	6-16-26	1		35-26
14373	6-16-26	1		10-3
14374	6-16-26	1		38-41